SUPPLEMENT NO. 92
VOLUMES I AND II
August 2026

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2026-0650, adopted July 22, 2026, effective July 28, 2026.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 91
VOLUMES I AND II
June 2025

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-457, adopted May 28, 2025.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 90
VOLUMES I AND II
February 2024

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2023-1130, adopted December 13, 2023.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 89
VOLUMES I AND II
May 2022

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2022-399, adopted May 4, 2022.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 88
VOLUMES I AND II
August 2021

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2021-583, adopted June 30, 2021.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 87
VOLUMES I AND II
January 2021

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2020-1093, adopted December 16, 2020.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 86
VOLUMES I AND II
July 2020

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2020-440, adopted May 20, 2020.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 85, REVISION
VOLUMES I AND II
October 2019

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement No. 85, Revision, is printed to revise pages appearing in Supplement No. 85, and should be inserted as directed below.

The Code is current through:

Ordinance No. 2019-717, adopted September 18, 2019.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 85
VOLUMES I AND II
October 2019

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2019-717, adopted September 18, 2019.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Ordinance No. 2018-931, adopted November 28, 2018,
Election of November 6, 2018.

See the Charter Comparative Table—Volume I for further information.

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SUPPLEMENT NO. 84
VOLUMES I AND II
November 2018

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-790, adopted October 3, 2018.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 83
VOLUMES I AND II
May 2018

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-227, adopted March 22, 2018.

See the Code Comparative Table—Volume II for further information.

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4653, 4654	4653, 4654
4667—4678	4667—4678
4689, 4690	4689, 4690
4697, 4698	4697, 4698
4705—4708	4705—4708.1
4717—4722	4717—4722
4727—4730	4727—4730
4735—4738	4735—4738
4743, 4744	4743, 4744
4751—4762	4751—4762
4769—4778	4769—4778

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SUPPLEMENT NO. 82
VOLUMES I AND II
October 2017

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2017-677, adopted August 30, 2017.

See the Code Comparative Table—Volume II for further information.

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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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1501—1506	1501—1508
1847, 1848	1847—1848.1
1853—1856	1853—1856
1887—1912.9	1887—1912.11
2003—2008.1	2003—2008.1
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2287—2293	2291—2297
2303—2310.1	2303—2310.1
2312.3—2312.8	2312.3—2312.8.1
2312.21, 2312.22	2312.21—2312.22.1
2312.41	2312.41—2312.46
2363—2364.2	2363—2364.2.1
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2710.1—2714	2711—2715
2787—2788.1	2787—2788.1
2807	2807—2810.7

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4649, 4650	4649, 4650
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4691—4694	4691—4694.1
4699—4708	4699—4708
4725—4732	4725—4732.1
4737—4742	4737—4742.1
4749, 4750	4749—4750.1
4757—4760	4757—4760

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SUPPLEMENT NO. 81
VOLUMES I AND II
February 2017

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-986, enacted December 14, 2016.

See the Code Comparative Table—Volume II for further information.

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665—668	665—668.1
673—678.1	673—678.1
1043—1046	1043—1046
1765, 1766	1765—1766.1
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2787—2788.1	2787—2788.1
2813, 2814	2813—2814.1
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3181—3196	3181—3196
3203—3219	3203—3220
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4663, 4664	4663, 4664
4669—4672	4669—4672.1
4699—4704	4699—4704
4711, 4712	4711, 4712
4729, 4730	4729, 4730
4739—4744	4739—4744
4751—4754	4751—4754
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SUPPLEMENT NO. 80
VOLUMES I AND II
August 2016

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-562, adopted July 20, 2016.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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685—698	685—697
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1089, 1090	1089, 1090
1119—1122	1119—1122
1294.1—1298	1295—1298.1
1305—1307	1305—1307
1421, 1422	1421, 1422
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1755—1758	1755—1758.1
1775—1779	1775—1780
1855—1858	1855—1858.1
2005—2008	2005—2008.1
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3245, 3246	3245—3246.1
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4749—4752	4749—4752
4763—4768	4763—4768
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SUPPLEMENT NO. 79
VOLUMES I AND II
January 2016

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-1302, adopted December 16, 2015.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Ordinance No. 2015-1129, adopted November 13, 2015.
Election of November 3, 2015.

See the Charter Comparative Table for further information.

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2032.5—2032.8	2032.5—2032.8.1
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4483	4483—4487
4575, 4576	4575, 4576
4591—4598	4591—4598
4611, 4612	4611—4612.1
4635—4790	4635—4786

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SUPPLEMENT NO. 78
VOLUMES I AND II
September 2015

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-820, adopted August 26, 2015.

See the Code Comparative Table—Volume II for further information.

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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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451, 452	451—452.1
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561—564	561—564.1
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731—735	731—735
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1089—1102.3	1089—1102.5
1115—1126	1115—1125
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1380.1—1384	1381—1384.1

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1521—1524	1521—1524
1629—1634.1	1629—1634.1
1851—1856.1	1851—1856
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2032.5—2032.14	2032.5—2032.14
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2731—2738	2731—2738.1
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2875, 2876	2875—2876.1
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3291, 3292	3291, 3292
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SUPPLEMENT NO. 77
VOLUMES I AND II
February 2015

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-23, adopted January 7, 2015.

See the Code Comparative Table—Volume II for further information.

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xvii—xxxiv	xvii—xxxiv
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1525—1528	1525—1528
1761, 1762	1761—1762.1
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4655—4658	4655—4658
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4705—4724	4705—4724.1
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4753—4756	4753—4756
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Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

SUPPLEMENT NO. 76
VOLUMES I AND II
August 2014

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2014-721, adopted July 16, 2014.

See the Code Comparative Table—Volume II for further information.

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VOLUME I	
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553—556	553—556.1
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1093—1096.1	1093—1096.1
1231—1245	1231—1248
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4591—4598	4591—4598
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4645—4652	4645—4652
4657—4660	4657—4660
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4717, 4718	4717—4718.1
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4753—4764	4753—4764.1
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4781—4786	4781—4786

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SUPPLEMENT NO. 75
VOLUMES I AND II
May 2014

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2014-364, adopted April 30, 2014.

See the Code Comparative Table—Volume II for further information.

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1094.1—1096	1095—1096.1
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3253—3256	3253—3256
3262.1—3278	3263—3278.2
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4673—4692	4673—4692.1
4695—4728.1	4695—4728.1
4733—4791	4733—4792

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SUPPLEMENT NO. 74, REVISION
VOLUMES I AND II
March 2014

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement No. 74, Revision, is printed to add pages omitted in Supplement No. 74, and should be inserted as directed below.

Remove Old Pages	*Insert New Pages*
	VOLUME I
	1032.1

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SUPPLEMENT NO. 74
VOLUMES I AND II
January 2014

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

The Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-1209, adopted December 18, 2013.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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585—596	585—596.2
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1049—1054	1049—1054.1
1089—1094	1089—1094.1
1099—1102	1099—1102.3
1123—1126	1123—1126
1161, 1162	1161, 1162
1285, 1286	1285, 1286
1297, 1298	1297, 1298
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1697, 1698	1697—1698.1
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4591—4598	4591—4598
4635—4658	4635—4657
4662.1—4694	4663—4694.2
4701—4710	4701—4710.1
4715—4728	4715—4728.1
4732.1—4758	4733—4758.1
4768.1—4784	4769—4784
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SUPPLEMENT NO. 73, REVISION
VOLUMES I AND II
July 2013

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement No. 73, Revision, is printed to revise pages appearing in Supplement No. 73, and should be inserted as directed below.

The Code contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-429, adopted May 8, 2013.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME II	
3261, 3262	3261—3262.1

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SUPPLEMENT NO. 73
VOLUMES I AND II
July 2013

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-429, adopted May 8, 2013.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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xvii—xxxiii	xvii—xxxiv
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4667—4680.1	4667—4680.1
4685—4686.1	4685—4686.1
4693—4696	4693—4696.1
4703—4718	4703—4718.1
4723, 4724	4723, 4724
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4739—4750	4739—4750.1
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SUPPLEMENT NO. 72, REVISION
VOLUMES I AND II
March 2013

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement No. 72, Revision, is printed to revise pages appearing in Supplement No. 72 and should be inserted as directed below.

Remove Old Pages	*Insert New Pages*
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2221—2226	2221—2226.1

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SUPPLEMENT NO. 72
VOLUMES I AND II
January 2013

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-1112, adopted December 19, 2012.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Ordinance No. 2012-1003, adopted November 19, 2012
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See the Charter Comparative Table—Volume I for further information.

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SUPPLEMENT NO. 71
VOLUMES I AND II
November 2012

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-908, adopted October 17, 2012.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 70
VOLUMES I AND II
July 2012

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-522, adopted May 30, 2012.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 69
VOLUMES I AND II
December 2011

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2011-874, adopted October 12, 2011.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 68
VOLUMES I AND II
May 2011

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2011-324, adopted May 4, 2011.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 67, ADDITION
VOLUMES I AND II
February 2011

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2011-47, adopted January 12, 2011.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 67
VOLUMES I AND II
December 2010

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-1016, adopted December 8, 2010, effective December 31, 2010.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 66
VOLUMES I AND II
August 2010

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-668, adopted August 18, 2010.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 65
VOLUMES I AND II
April 2010

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-212, adopted March 10, 2010.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 64
VOLUMES I AND II
January 2010

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 09-1050, adopted November 4, 2009.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 63
VOLUMES I AND II
August 2009

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 09-631, adopted June 30, 2009.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 62
VOLUMES I AND II
March 2009

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 09-191, adopted March 4, 2009.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 61
VOLUMES I AND II
December 2008

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 08-118, adopted December 3, 2008.

See the Code Comparative Table—Volume II for further information.

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4776.1—4782	4777—4782.1
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SUPPLEMENT NO. 60
VOLUMES I AND II
August 2008

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 08-665, adopted July 23, 2008.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 59
VOLUMES I AND II
April 2008

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 08-285, adopted April 9, 2008.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 58, ADDITION
VOLUMES I AND II
January 2008

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement No. 58, Addition, is printed to add material omitted from Supplement No. 58, and should be inserted as directed below.

Remove old pages	*Insert new pages*
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SUPPLEMENT NO. 58
VOLUMES I AND II
December 2007

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 07-1191, adopted October 24, 2007.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 57
VOLUMES I AND *II
August 2007

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 07-840, adopted July 18, 2007.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Amendment of November 7, 2006.

See the Charter Comparative Table—Volume I for further information.

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*At the request of City, please remove Chapters 26 through 29 from Volume II and insert following Chapter 25 in Volume I.

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SUPPLEMENT NO. 56
VOLUMES I AND II
May 2007

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 07-464, adopted April 11, 2007.

See the Code Comparative Table—Volume II for further information.

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492.1—500.1	493—500.8
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SUPPLEMENT NO. 55
VOLUMES I AND II
February 2007

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 07-150, adopted January 31, 2007.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 54, REVISION
VOLUMES I AND II
November 2006

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

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SUPPLEMENT NO. 54
VOLUMES I AND II
September 2006

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 06-892, adopted August 23, 2006.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 53
VOLUMES I AND II
May 2006

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 06-419, adopted April 26, 2006.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 52
VOLUMES I AND II
October 2005

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 05-1076, adopted September 14, 2005.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 51
VOLUMES I AND II
April 2005

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 05-371, adopted April 13, 2005.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 50
VOLUMES I AND II
January 2005

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 04-1312, adopted December 21, 2004.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 49
VOLUMES I AND II
July 2004

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 04-682, adopted June 23, 2004.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 48
VOLUMES I AND II
January 2004

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 03-1324, adopted December 23, 2003.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 47
VOLUMES I AND II
September 2003

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 03-794, adopted September 3, 2003.

See the Code Comparative Table—Volume II for further information.

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Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

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SUPPLEMENT NO. 46
VOLUMES I AND II
January 2003

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 02-1184, adopted December 18, 2002.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 45
VOLUMES I AND II
July 2002

CODE OF ORDINANCES

City of

HOUSTON, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 02-558, adopted June 19, 2002.

See the Code Comparative Table—Volume II for further information.

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CODE OF ORDINANCES

CITY OF

HOUSTON, TEXAS

VOLUME I

Adopted: August 21, 1985

Effective: August 21, 1985

Published by Order of the City Council, 1985

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of the

CITY OF HOUSTON, TEXAS

2024

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Mayor

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Amy Peck, District A
Tarsha Jackson, District B
Abbie Kamin, District C
Carolyn Evans-Shabazz, District D
Dave Martin, District E
Tiffany D. Thomas, District F
Mary Nan Huffman, District G
Mario Castillo, District H
Robert Gallegos, District I
Edward Pollard, District J
Martha Castex-Tatum, District K

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Julian Ramirez, Position 1
Willie Davis, Position 2
Twila Carter, Position 3
Letitia Plummer, Position 4
Sallie Alcorn, Position 5

Chris Hollins
City Controller

Arturo G. Michel
City Attorney

Pat Jefferson-Daniel
City Secretary

FOUNDERS OF THE CITY

Augustus Chapman Allen and John Kirby Allen
August 30, 1836

MAYORS OF THE CITY OF HOUSTON

1837	James Sanders Holman
1838	Francis W. Moore, Jr.
1839	George W. Lively
1840	Charles Bigelow
1841—1842	John Day Andrews
1843	Francis W. Moore, Jr.
1844	Horace Baldwin
1845	William W. Swain
1846	James Bailey
1847—1848	Benjamin P. Buckner
1849—1852	Francis W. Moore, Jr.
1853—1854	Nathan Fuller
1855—1856	James H. Stevens
1857	Cornelius Ennis
1858	Alexander McGowan
1859	William Harrison King
1860	Thomas W. Whitmarsh
1861	William J. Hutchins
1862	Thomas William House, Sr.
1863—1865	William Anders
1866	Horace D. Taylor
1867	Alexander McGowen
1868—1869	Joseph R. Morris
1870—1873	Thomas Howe Scanlan
1874	James T. D. Wilson
1875—1876	Irving Capers Lord
1877—1878	James T. D. Wilson
1879	Andrew J. Burke
1880—1886	William R. Baker
1886—1890	Daniel C. Smith
1890—1892	Henry Scherffius
1892—1896	John T. Browne
1896—1898	Horace Baldwin Rice
1898—1901	Samuel H. Brashear
1901	John D. Woolford
1902—1904	Orren T. Holt
1904—1905	Andrew L. Jackson
1905—1913	Horace Baldwin Rice
1913—1917	Ben Campbell
1917	Joseph Jay Pastoriza
1917—1918	Joseph Chappel Hutcheson, Jr.
1918—1921	Almeron Earl Amerman, Sr.
1921—1929	Oscar Fitzallen Holcombe
1929—1933	Walter Embree Monteith
1933—1937	Oscar Fitzallen Holcombe
1937—1939	Richard H. Fonville
1939—1941	Oscar Fitzallen Holcombe
1941—1943	Cornelius A. "Neal" Pickett
1943—1947	Otis Massey
1947—1952	Oscar Fitzallen Holcombe
1953—1955	Roy Mark Hofheinz
1956—1957	Oscar Fitzallen Holcombe
1958—1963	Lewis Wesley Cutrer
1964—1973	Louie Welch
1974—1977	Fred Hofheinz
1978—1981	Jim McConn
1982—1991	Kathryn J. Whitmire
1992—1997	Bob Lanier
1998—2003	Lee P. Brown
2004—2009	Bill White
2010—2015	Annise D. Parker
2015—2023	Sylvester Turner
2023—	John Whitmire

PREFACE

This Code constitutes a complete recodification of the ordinances of the City of Houston, Texas of a general and permanent nature.

Source materials used in the preparation of the Code were the City's 1968 Code and ordinances adopted after October 4, 1967 adopted by the city. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the Comparative Tables appearing in the back of this volume, the reader can locate any section of the 1968 Code and any subsequent ordinance included herein. A table listing the state law citations and setting forth their location within the Code is included at the back of this volume.

Numbering System

The numbering system used in this Code is the same system used in many state and municipal codes. Each section number consists of two component parts separated by a dash, the figure before the dash representing the chapter number and the figure after the dash indicating the position of the section within the chapter. Thus, the first section of Chapter 1 is numbered 1-1 and the twenty-first section of Chapter 44 is 44-21. Under this system, each section is identified with its chapter and at the same time new sections or even whole chapters can be inserted in their proper place, simply by using the decimal system for amendments. By way of illustration: If new material consisting of three sections that would logically come between Sections 2-1 and 2-2 is desired to be added, such new sections would be numbered 2-1.1, 2-1.2 and 2-1.3 respectively. New chapters may be included in the same manner. If the new material is to be included between Chapters 5 and 6, it will be designated as Chapter 5.5. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject, the next successive number being assigned to the article or division.

Indices

The indices of the Code have been prepared with the greatest of care. Each particular item has been placed under several headings, some of the headings being couched in lay phraseology, others in legal terminology, and still others in language generally used by municipal officials and employees. There are numerous cross references within the indices which stand as guideposts to direct the user to the particular item in which he is interested.

Looseleaf Supplements

A special feature of this Code is the looseleaf system of binding and supplemental service, by which the Code will be kept up-to-date periodically. Upon the final passage of amendatory ordinances, they will be properly edited and the page or pages affected will be reprinted. These new pages will be distri-

buted to holders of copies of the Code, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

The successful maintenance of this Code up-to-date at all times will depend largely upon the holder of the volume. As revised sheets are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publishers that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

The publication of this Code was under direct supervision of George R. Langford, President, and Roger D. Merriam, Supervising Editor, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publishers are most grateful to Mr. Paul Bibler, assistant city attorney and all other city officers and employees for their cooperation and assistance during the progress of the work on this Code.

MUNICIPAL CODE CORPORATION

Tallahassee, Florida

ADOPTING ORDINANCE

ORDINANCE NO. 85-1380

AN ORDINANCE ADOPTING A CODIFICATION OF THE GENERAL CIVIL AND CRIMINAL ORDINANCES OF THE CITY OF HOUSTON, TEXAS; REPEALING THE PRIOR CODIFICATION THEREOF AS ADOPTED PURSUANT TO ORDINANCE NO. 68-1900, AS AMENDED, SUBJECT TO CERTAIN SAVINGS PROVISIONS; PROVIDING FOR PENALTIES BY FINES NOT EXCEEDING TWO HUNDRED DOLLARS FOR VIOLATIONS; PROVIDING FOR THE AUTHENTICATION OF COPIES OF THE CODIFICATION AND FOR THE ADMISSIBILITY THEREOF IN THE COURTS; PROVIDING FOR SEVERABILITY; AND CONTAINING FINDINGS AND OTHER PROVISIONS RELATING TO THE FOREGOING SUBJECT.

* * *

WHEREAS, the City of Houston is authorized under its charter and pursuant to Art. 1176a Tex. Rev. Civ. Stats. to codify its civil and criminal ordinances and to adopt a code of ordinances together with appropriate penalties therefor, which code, when adopted, shall have the force and effect of an ordinance regularly enacted with the usual prerequisites of law; NOW, *THEREFOR,*

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF HOUSTON:

Section 1. That the two loose-leaf volumes labeled "Code of Ordinances/City of Houston Texas" and designated as Volume 1 and Volume 2 that are attached to and made a part of this ordinance as Exhibits "A" and "B", respectively, containing Chapters 1 through 47, inclusive (except that Chapter 25 is reserved), are hereby adopted and enacted as the "Code of Ordinances, City of Houston, Texas" (hereinafter referred to as the "1985 Code of Ordinances"). The 1985 Code of Ordinances shall be a new and comprehensive ordinance that codifies the general civil and criminal ordinances of the City of Houston, and repeals the "Code of Ordinances, City of Houston, Texas" as adopted by Ordinance No. 68-1900, as amended (hereinafter referred to as the "1968 Code of Ordinances"), except as otherwise provided in Section 2 of this ordinance, below.

Section 2.

(a) The repeal provided for in Section 1 of this ordinance shall not be construed to repeal any of the following:

1. Any ordinance adopted after May 1, 1985.
2. Any ordinance adopted on or prior to May 1, 1985, that has not been incorporated into the 1985 Code of Ordinances, except and only to the extent that it expressly amended or repealed the 1968 Code of Ordinances or any provision(s) thereof.
3. Any Motion or Resolution adopted by the City Council.

4. Ordinance No. 84-1962, adopted on December 19, 1984, as amended.

5. The Fire Code of the City of Houston (Ordinance No. 73-2078, adopted November 21, 1973, as amended, which is Chapter 17 of the 1968 Code of Ordinances).

6. The Building Code of the City of Houston (Ordinance No. 71-2351, adopted December 15, 1971, as amended).

7. The ordinances that appeared as Appendices "A" through "E", inclusive to the 1968 Code of Ordinances, to-wit: A—Ordinance No. 61-589, adopted July 12, 1961, as amended; B—Ordinance No. 61-1830, adopted October 18, 1961, as amended; C—Ordinance No. 74-307, adopted February 13, 1974, as amended; D—Ordinance No. 61-849, adopted May 16, 1961, as amended; and E—Ordinance No. 74-419, adopted February 27, 1974, as amended.

8. Any ordinance that is expressly saved from repeal by the provisions of the 1985 Code of Ordinances.

9. Subsection (a) of Section 34-11 of the 1968 Code of Ordinances.

(b) The provisions of the 1968 Code of Ordinances shall remain in full force and effect for the trial and punishment of all criminal violations thereof occurring through the time of its repeal and for the recovery of penalties and forfeitures incurred thereunder and for the preservation of rights, privileges, obligations, liabilities and remedies established, accrued, accorded or incurred thereunder before the time of its repeal. The repeal of the 1968 Code of Ordinances does not affect its prior operation or any prior action taken under it.

(c) The repeal provided for in Section 1, hereof, shall not be construed to revive any ordinance or part thereof that has been repealed by a subsequent ordinance that was repealed by this ordinance.

Section 3. Violations of the 1985 Code of Ordinances shall be punishable as provided therein; if no specific penalty is otherwise provided for an offense, then it shall be punishable by a general penalty fine not exceeding two hundred dollars as more particularly provided in Section 1-6 thereof.

Section 4. The 1985 Code of Ordinances may be amended as provided in Section 1-4 thereof. In case of an amendment for which no specific penalty is provided, then the general penalty established in Section 1-6 thereof shall apply as provided in Section 3 of this ordinance.

Section 5. The City Council hereby notes for reference that the two volume edition of the 1985 Code of Ordinances to which is appended to this Ordinance as Exhibits "A" and "B" contains Supplement No. 1, which has been installed in accordance with the instructions furnished by Municipal Code Corporation as the editor of the 1985 Code of Ordinances, and that Volumes 1 and 2 (Exhibits "A" and "B") also have been corrected to cure the errata that are listed on the "Errata list" that is attached to and made a part of this ordinance as Exhibit "C". The City Secretary is hereby directed to record this ordinance and the 1985 Code of Ordinances in the ordinance records of the City of Houston.

Section 6. The Mayor is authorized to approve and authenticate, and the City Secretary is authorized to attest, any printed copy of the 1985 Code of Ordinances that conforms to the Volumes 1 and 2 (Exhibits "A" and "B") attached hereto as a true copy. Copies, so authenticated by the Mayor and City Secretary, shall have the same force and effect for all purposes as the originals thereof that are appended to this Ordinance and shall be admissible in evidence in all courts pursuant to Section 5 of Art. 1176a, Tex. Rev. Civ. Stats. and Article IX, Section 13 of the City Charter. The provisions of this section shall not be construed to prevent the certification or admission into evidence of the 1985 Code of Ordinances, or any excerpts or copies thereof, in any other manner authorized by law or judicial rules.

Section 7. An authenticated copy of the 1985 Code of Ordinances shall be kept on file in the office of the City Secretary preserved in loose-leaf form, or in such other form as the City Secretary may consider most expedient. It shall be the express duty of the City Secretary or someone authorized by him or her, to insert in such copy and in the designated places all amendments or ordinances which indicate the intention of the Council to make the same a part of such Code when the same have been printed or reprinted in page form, and to extract from such copies all provisions that may be from time to time repealed by the Council. Such copy shall be available for all persons desiring to examine the same.

Section 8. Any ordinance or document that amended or referred to any provision of the 1968 Code of Ordinances shall be construed as if it referred to the like provision of the 1985 Code of Ordinances. The City Attorney is hereby authorized and directed to make any nonsubstantive revisions of ordinances adopted after May 1, 1985, amending the 1968 Code of Ordinances as may be required for their proper incorporation by supplement into the 1985 Code of Ordinances, including, but not limited to, the correction of section, division, article and chapter numbers and the conforming of definitional words and phrases to those used in the 1985 Code of Ordinances.

Section 9. If any provision, section, subsection, sentence, clause, or phrase of this ordinance, or the application of same to any person or set of circumstances, is for any reason held to be unconstitutional, void or invalid, the validity of the remaining portions of this ordinance or their application to other persons or sets of circumstances shall not be affected thereby, it being the intent of the City Council in adopting this ordinance that no portion hereof or provision or regulation contained herein shall become inoperative or fail by reason of any unconstitutionality, voidness or invalidity of any other portion hereof, and all provisions of this ordinance are declared to be severable for that purpose.

Section 10. This Ordinance and the 1985 Code of Ordinances that is incorporated herein and adopted hereby shall take effect immediately upon the passage of this ordinance on third and final reading and its approval by the Mayor.

PASSED on first reading August 7, 1985.

PASSED on second reading August 14, 1985.

PASSED on third reading August 21, 1985.

APPROVED August 21 at 3:35 o'clock p.m. on August 21, 1985.

ATTEST:

/s/ _____ /s/ _____

Anna Russell
City Secretary

Kathryn J. Whitmire
Mayor

Prepared by: /s/ _____

Paul Bibler, Jr.
Senior Assistant City Attorney

APPROVED:

/s/ _____

Jerry E. Smith
City Attorney

"EXHIBIT C"

ERRATA

Volume 1 (Exhibit "A")

Chapter 2, Section 2 (2)j., page 171, first column, line 47
delete "the"
line will read: "dar week, the consideration of that"

Chapter 6, Section 90, page 434, first column, line 12
change "section" to "article"
line will read: "fied in this article for the issuance of a license,"

Chapter 6, Section 92, page 434, first column, line 46
change "section" to "article"
line will read: "record of all licenses issued under this article"

Chapter 9, Section 141(d), page 672, second column, line 22
change "during" to "thing"
line will read: "thing of value (paid or to be paid specifically"

Chapter 9, Section 251(2)a., page 682, second column, line 21
change "tractor" to "tract or"
line will read: "tract or lease agreement."

Chapter 11, Section 55(c), page 847, second column, line 5
change "changeable" to "chargeable"
change "(2)" to "(3)"
line will read: "be chargeable under item (1) or item (3) of section"

Chapter 20, Section 25(d), page 1430, first column, lines 45 and 46
delete "(Code 1968, § 19-25; Ord. No. 78-1882, § 1, 9-20-78)"
"Cross reference—Building Code, §10-1."

Chapter 21, Section 15(a) I.B., page 1511, second column, line 4
change "Macteriology" to "Bacteriology"
line will read: "B. Milk and Food Bacteriology:"

Chapter 21, Section 15(a) I.B., page 1511, second column, line 5
add "18.00" under "Fee"
line will read: "Milk, raw (counts, inhibitor, WMT) 18.00"

Chapter 21, Section 15(a) I.B., page 1511, second column, line 8
change "34.00" to "13.00"
line will read: "Milk, DMSCC .....13.00"

Chapter 29, Section 38(a), page 2040, first column, line 16
change "expected" to "excepted"
line will read: "cepted in calculating the said period."

Chapter 29, Section 84, page 2048, first column, line 11
change "change" to "charge"
line will read: "responsible agent or other persons in charge of"

Volume II (Exhibit "B")

Chapter 34, Section 127, page 2362, first column, line 42
change "organizations" to "organization"
line will read: "tion qualified under this article, to gather in-"

Chapter 36, Section 61, page 2473, second column, line 16
change "permit" to "permitted"
change "used" to "use"
line will read: "Sec. 36-61. Composition; permitted use of funds,"

Chapter 36, Section 78, page 2478, second column, line 28
insert "by" before "law"
line will read: "obtained at the fees prescribed by law for copies of"

Chapter 38, Section 4(b)(2), page 2590, first column, line 29
change "tract" to "track"
line will read: "ing the railroad track from each direction."

Chapter 38, Section 4(h), page 2591, first column, line[s] 6-7
change "notifying" to "modifying"
line[s] will read: "decision in writing to both parties upholding, mo-"
"difying or overruling the decision of the director"

Chapter 46, Section 23, page 3144, first column, line 28
change "chapter" to "article"
line will read: "renewed under this article, the assessor and col-"

Chapter 46, Section 23, page 3144, first column, line 36
change "chapter" to "article"
line will read: "this article. It shall further be unlawful for any"

Chapter 46, Section 28, page 3145, second column, line 9
change "Chapter 46" to "article"
line will read: "the terms and provisions of this article shall"

Chapter 46, Section 31(a)(1)b.4., page 3147, first column, line 30
change "Littley" to "Little"
line will read: "on the west, to the junction of Little"

Chapter 46, Section 68, page 3153, second column, line 33
change "article" to "division"
line will read: "The annual fee for a permit under this division"

Chapter 46, Section 294(a), page 3182, first column, line 9
change "46-294" to "46-293"
line will read: "issued pursuant to section 46-293 shall present"

Chapter 47, Section 42(3), page 3248, second column, line 1
change "February 12, 1974" to "February 13, 1974."
line will read: "(3) Ordinance No. 74-307 (February 13, 1974)"

Chapter 47, Section 62(b)(1)b., page 3256, first column, line 2
insert "monthly" before "quantity."
line will read: "mum monthly quantity."

Chapter 47, Section 62(b)(1)b.3., page 3256, first column, line 10
change "$0.58356" to "$0.56856"
line will read: "lion (390,000,000) gallons: $0.56856"

Chapter 47, Section 241, page 3293, second column, line 29
insert ", Article II" before "of this Code."
line will read: "to Chapter 20, Article II of this Code."

Chapter 47, Section 247(d), page 3298, second column, line 10
change "the" to "for"
line will read: "for suspension or revocation of waste transporter"

Chapter 47, Section 321(c)(1), page 3309, first column, line 32
change "=" to "-"
line will read: "(A × B) - (C + $525);"

Chapter 47, Section 321(c)(1), page 3309, second column, line 1
change "=" to "-"
line will read: "(A × B) - C."

Chapter 47, Section 321(c)(2), page 3309, second column, line 7
change "=" to "-"
line will read: "[A × (B - E)] - C"

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From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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CHARTER*

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*__Editor's note—__The City of Houston received its first Charter from the Congress of the Republic of Texas in 1837 as an apparent amendment to a bill that was originally intended to incorporate the City of Nacogdoches. In 1839, the Congress of Texas granted the City its own unique Charter, which was amended or replaced at various times through 1905 by the Congress of the Republic of Texas and later by the Texas Legislature. The current Charter, which is codified herein, has its origins in the Charter granted by the Texas Legislature in March 1905, which was amended by the Legislature in April 1905 and again in 1911. The adoption of the "home rule" provisions of Article XI, § 5 of the Texas Constitution in 1912 repealed the authority of the Legislature to grant charters and gave that authority to the inhabitants of larger cities. The City of Houston's voters have used the home rule amendment to revise the Charter at many elections, the first of which was held in 1913.

The Charter codification that appears herein was compiled by Alice S. Wilson, Senior Legal Assistant, under the supervision of Paul Bibler, Senior Counsel, of the City of Houston Legal Department from the original source documents, including copies of the acts of the Legislature in 1905 and 1911 and the ordinances calling and canvassing the various home rule Charter amendment elections. Numerous grammar and spelling errors, inconsistencies in capitalization and numbering, and other anomalies that appear in the source documents have been faithfully reproduced in this codification. Reference has been made to sections where the catch lines were added because many sections did not have catch lines in the source documents.

A source list for the Charter appears in the Charter Appendix, which follows the Charter.

Granted by the Legislature	March 18, 1905
Amended by Legislature	April 13, 1905
Amended by Legislature	August 31, 1911
Amended by Voters	October 15, 1913
Amended by Voters	December 28, 1915
Amended by Voters	February 20, 1918
Amended by Voters	December 30, 1922
Amended by Voters	October 16, 1926
Amended by Voters	January 28, 1933
Amended by Voters	August 15, 1942
Amended by Voters	July 26, 1947
Amended by Voters	May 29, 1951
Amended by Voters	August 16, 1955
Amended by Voters	November 18, 1961
Amended by Voters	January 27, 1968
Amended by Voters	August 11, 1979
Amended by Voters	August 14, 1982
Amended by Voters	November 5, 1991
Amended by Voters	January 15, 1994
Amended by Voters	November 2, 1999
Amended by Voters	November 6, 2001
Amended by Voters	November 2, 2004
Amended by Voters	November 7, 2006
Amended by Voters	November 2, 2010
Amended by Voters	November 6, 2012
Amended by Voters	November 3, 2015
Amended by Voters	November 6, 2018
Amended by Voters	November 7, 2023

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Art. VIII.	**City Controller.**
Art. IX.	**General Provisions**

ARTICLE I. CORPORATE NAME AND BOUNDARIES AND PLATTING OF PROPERTY*

Section 1. Corporate Name.

That all the inhabitants of the City of Houston, Harris County, Texas, as the boundaries and limits of said City are herein established, or may be hereafter established, shall be a body politic, incorporated under, and to be known by the name and style of the City of Houston, with such powers, rights, and duties as are herein provided. (Act of 1905)

SECTION 2. BOUNDARIES ESTABLISHING CITY LIMITS. [Text omitted].

Section 2-a. Repealed.

Editor's note—Canvas Ord. No. 2012-1003, §§ 7—9, adopted November 19, 2012, adopted at an election of November 6, 2012, repealed § 2-a in its entirety. Formerly, said section pertained to "Extending City Limits upon Petition" and derived from an amendment of October 15, 1913. Said section is now superseded by state law.

Section 2-b. Repealed.

Editor's note—Canvas Ord. No. 2012-1003, §§ 7—9, adopted November 19, 2012, adopted at an election of November 6, 2012, repealed § 2-b in its entirety. Formerly, said section pertained to "Extending Limits by Action of City Council" and derived from an amendment of October 15, 1913. Said section is now superseded by state law.

SECTION 3. Platting of property.

That should any property lying within the city limits as established by this act be hereafter platted into blocks and lots, then and in that event the owners of said property shall plat and lay the same off to conform to the streets and lots abutting on same, and shall file with the City Engineer a correct map of same; provided, that in no case shall the City of Houston be required to pay for any of said streets at whatever date opened, but when opened by reason of the platting of said property, at whatever date platted, they shall become by such act the property of the City of Houston for use as public highways, and shall be cared for as such; provided, however, that the platting of any property laid off into blocks and lots as herein provided shall be platted in accordance with the regulations prescribed by the City Council. Said plat shall be approved by the City Council before said plat is placed of record, and before any lot or lots are sold with reference to said plat, and the City Council shall be authorized to pass all necessary ordinances, penal or otherwise, with reference to the platting of property so as to carry into effect the purposes of this provision and the City Council is further authorized to pass all necessary ordinances prescribing reasonable rules and regulations for the laying of water mains or pipes, sewers and the regulation of the kind and character of street paving which may be placed in any such addition. (Act of 1905; amended December 30, 1922)

*__Note—__The title of this article was added by the editor; it was not titled in the 1905 Special Act or any of the subsequent amendments.

ARTICLE II. CORPORATE AND GENERAL POWERS†

Section 1. Corporate Powers.

The City of Houston, made a body politic and corporate by this Act, shall have perpetual succession, may use a common seal, may sue and be sued, may contract and be contracted with, implead and be impleaded in all courts and

†__Note—__The title of this article was added by the editor; it was not titled in the 1905 Special Act or any of the subsequent amendments.

places and in all matters whatever, may take, hold and purchase lands as may be needed for the corporate

[The next page is 3]

purposes of said City, and may sell any real estate, or personal property owned by it, perform and render all public services, and when deemed expedient, may condemn property for public use, and may hold, manage, and control the same, such condemnation proceedings to be governed and controlled by the law now in force in reference to the condemnation of the right of way of railroad companies and the assessment of damages therefor, and shall be subject to all the duties and obligations now pertaining to or incumbent upon said City as a corporation not in conflict with the provisions of this Act, and shall enjoy all the rights, immunities, powers, privileges, and franchises now possessed and enjoyed by said City and herein granted and conferred. (Act of 1905)

Section 2. General powers.

(a) The City Council shall have power to enact and to enforce all ordinances necessary to protect life, health and property; to prevent and summarily abate and remove nuisances; to preserve and promote good government, order, security, amusement, peace, quiet, education, prosperity and the general welfare of said City and its inhabitants; to exercise all the municipal powers necessary to the complete and efficient management and control of the municipal property and affairs of said city to effect the efficient administration of the municipal government of said city; to exercise such powers as conduce to the public welfare, happiness and prosperity of said city and its inhabitants; and to enact and enforce any and all ordinances upon any subject; provided, that no ordinance shall be enacted inconsistent with the provisions of this charter; and, provided further, that the specification of particular powers shall never be construed as a limitation upon the general powers herein granted; it being intended by this charter to grant to and bestow upon the inhabitants of the City of Houston and the City of Houston full power of local self government, and it shall have and exercise all powers of municipal government not prohibited to it by its charter, or by the provisions of the Constitution of the State of Texas.

(b) The City shall have all powers that are or hereafter may be granted to municipalities by the Constitution or laws of Texas; and all such powers, whether expressed or implied, shall be exercised and enforced in the manner prescribed by this charter, or when not prescribed herein, in such manner as shall be provided by ordinance or resolution of the Council.

In addition to all the powers enumerated in this charter, implied thereby or appropriate to the exercise thereof, the City shall have and may exercise in the manner hereinbefore provided, all other powers which, under the Constitution and laws of this State, it would have been competent for this charter specifically to enumerate. (Act of 1905; amended October 15, 1913)

Sec. 3. Real Estate, etc., Owned by City.

All real estate owned in fee simple title, or held by lease, sufferance, easement or otherwise; all public buildings, market houses, school houses, fire engine stations, public squares, parks, streets, alleys and all property of whatever kind, character and description which has been granted, donated, purchased or otherwise acquired by the City of Houston through any means or agency, and all causes of action, choses in action, rights or privileges of every kind and character, and all property of whatsoever character or description which may have been held and is now held, controlled or used by said City of Houston for public uses or in trust for the public, shall vest in and remain in, and inure to, the said corporation, the City of Houston, under this Act; and all suits and pending actions to which the City of Houston heretofore was or now is a party, plaintiff or defendant, shall in no wise be affected or terminated by the provisions of this Act, but shall continue unabated. (Act of 1905)

Sec. 4. Street Powers.

The City of Houston shall have power to lay out, establish, open, alter, widen, lower, extend, grade, narrow, cure for, sell, pave, supervise, maintain, and improve streets alleys, sidewalks, squares, parks, public places and bridges; and to vacate and close the same and to regulate the use thereof, and to require the removal from the streets and sidewalks of all obstructions, telegraph, telephone, street railway or other poles carrying electric wires, signs, fruit stands, show

cases and encroachments of every character upon said streets or sidewalks; to vacate and close private ways. (Act of 1905)

Sections 4-a and 4b. Repealed.

Note—These sections, which related to street opening and condemnation, were repealed by the voters at the November 2, 1999, Charter Election. The repealer included the following savings clause:

This repealer shall not be construed to affect the validity of any action taken or right or obligation created or assumed under the said provisions prior to their repeal, and the said provisions are saved from repeal for the limited purpose of the continued enforcement of rights and obligations that arose thereunder prior to their repeal.

Section 5. To Regulate Street and Electric Railway Companies.

The City of Houston shall have the power by ordinance or otherwise to regulate the speed of engines, locomotives and street cars within the limits of said City, and to require steam railway companies to keep the streets over which they run properly drained, and to light the same wherever deemed necessary; and to require steam and electric railway companies to construct and keep in repair from curb to curb bridges and crossings over all the ditches, and to construct and maintain drains and culverts where crossed by any line of said railways on all streets over which they run.

To direct and control the laying and construction of railroad tracks, turnouts and switches, and to regulate the grade of same, and to require them to conform to the grade of the streets of said City as they may be or are now established, and that said tracks, turnouts and switches be so constructed and laid out as to interfere as little as possible with the ordinary travel in the use of the streets.

The City of Houston shall have power by ordinance or otherwise to require steam railways using any portion of the streets of the City to pay all or any part of the paving, grading, draining and repair thereof along the street so used by such railway, and to light the same whenever and wherever deemed necessary or advisable.

Said City shall have power by ordinance or otherwise to require any street or electric railway company to pay the cost of the grading, paving repairing or repaving or otherwise improving the street or streets or intersections thereof used or occupied by such railway company, and such cost shall be a lien upon the property and franchises of the company. The portion of the street occupied by an electric or street railway company shall be deemed to be the space between its tracks and twelve inches on the outside of each of its rails, and all the space between double tracks, turnouts and switches.

Any railroad company or street railway company proposing, with the permission of the Council, to occupy any street or streets already occupied by any other such company, shall, besides paying for paving as may be required by the City Council or by the provisions of this Act, be required also to pay for paving between the tracks of said two roads to within twelve inches of the track of such other road, and such cost shall be a lien upon the property and franchises of the company.

Should any railroad or street railway company propose to lay a track on any street or portion of a street which shall have been improved under the provisions of this Act, it shall become liable for the portion of the cost of such improvement as the City Council may direct or as is fixed by this Act.

No railroad or street railway company shall be permitted to occupy any street or portion of a street, improved or otherwise, not previously occupied by it, except with the permission of the City Council.

The City Council shall have power by ordinance to require any street car or electric railway company, or other person or corporation operating street cars in, into or through the City of Houston, to issue to its passengers transfers from any of its lines to any other lines within the City, upon the payment by said passenger of the fare or rate prescribed for one continuous passage. (Act of 1905)

Section 5-A. Interchange of Service or Common use of Tracks, poles, etc.

The City of Houston shall have the power by ordinance, to provide for the interchange of ser-

vice or common use, by and between every person, firm, corporation, assignee, trustee or receiver, including the City of Houston, owning, using, operating or controlling any franchise or public utility in the City of Houston, over and of the lines, tracks or properties owned, held, maintained or operated by such person, firm, corporation, assignee, trustee or receiver under such franchise, and to have the power to enforce all ordinances passed hereunder by appropriate provisions, penal or otherwise, including the repeal and forfeiture of any of said franchises for noncompliance with the provisions of any ordinance or requirement passed under authority hereof.

By the term "interchange of service or common use" as herein used is meant, that any person, firm, corporation, assignee, trustee or receiver holding a franchise from the City for any public utility shall allow the use by the City of Houston, or any other person, firm, corporation, etc. owning, using, operating or controlling any franchise or public utility in the City of Houston upon the payment of a reasonable rental for such use of any of its poles, tracks, wires, conduits, electric current, right of way or other properties or equipment.

The City of Houston shall also provide such reasonable rates of charge and conditions of use as in its judgment may be meet and proper, and the City Council shall especially have the power to compel any railroad or terminal company, whether operated by steam, electricity or other power to allow any other terminal or railroad company or the City of Houston to use its tracks or physical property under such reasonable regulations as to time and manner of use and compensation therefor as the city council may fix. (Added by amendment October 15, 1913)

Sec. 6. To Regulate Rates of Public Utilities.

The City Council shall have the power by ordinance to fix and regulate the price of water, gas and electric lights, and to regulate and fix the fares, tolls and charges of local telephones and exchanges; of public carriers and hacks, whether transporting passengers, freight or baggage, and generally to fix and regulate the rates tolls or charges of all public utilities of every kind.

To fix and regulate the fares and charges of electric or street railway companies, and shall require by ordinance, under proper penalties, that any street railroad using any of the streets of the City shall for one fare give a transfer from any of its lines to any other line in the City, whether such other line be owned by it or any other company, and in addition to the penalties to be prescribed by ordinance for the failure to give transfers, shall have the right by mandamus or other proper remedy in any court of competent jurisdiction to enforce any ordinance requiring the giving of transfers by any street railroad company; and in addition thereto, the City of Houston may recover of the street railway company the sum of twenty five dollars as penalty and liquidated damages for each and every failure to give a transfer.

It shall be unlawful to continue, amend or extend any street railroad franchise, without binding any such railroad to give universal transfers, under provisions to be fixed by general ordinance. (Act of 1905)

Section 6-A. Service and Extensions by Public Utility Concerns.

The City of Houston shall also have power by ordinance to prescribe the character, quality and efficiency of service to be rendered, given, performed and furnished, and the kind and design of material to be used in all their improvements by persons, firms, corporations, assignees, trustees or receivers engaged in the business of furnishing water, gas, electric lights, telephone service or in the transportation of passengers, or freight and baggage, or in the operation of any public utility of any kind operated under franchise from the City of Houston, and the improvement of their service in a manner necessary or required for the public comfort and convenience, and to make improvements and betterments of their property. The City of Houston shall also have the power to regulate the extensions of the lines or service of any public utility operated under franchise from the City of Houston, and shall have the authority by ordinance to require, prohibit or otherwise regulate such extensions of lines or service, and the City Council may of its own motion, and shall at the request of any person, firm, or corporation

affected by any such proposed extension make provision for a hearing for the purpose of determining the reasonableness thereof and public necessity therefor.

All such hearings shall be conducted under such provisions as the City Council may prescribe. Nothing herein shall prevent the City Council from making general rules and regulations for the extension of lines or service.

The City Council shall have power to enforce all ordinances passed under the authority hereof by appropriate provisions, penal or otherwise, including the repeal or forfeiture of any of said franchises for noncompliance with the provisions of any ordinance passed by authority hereof. (Added by amendment October 15, 1913)

Sec. 7. May Own Waterworks.

The City of Houston may buy or construct, own, maintain and operate a system of waterworks, gas or electric lighting plants, street cars and sewers, and it shall be its duty to regulate, care for and dispose of sewage, wastewater, surface water, offal, garbage and other refuse matter, and to make rules and regulations governing the same, and prescribe penalties for violations of said rules and regulations. (Act of 1905)

Sec. 7a. Ownership, etc. of public utilities.

The City of Houston may by purchase, lease, condemnation, construction or otherwise, establish, own, equip, maintain, conduct and operate, in whole or in part, libraries, reading rooms, art galleries, museums, assembly or convention halls, parks, playgrounds, gymnasiums, baths, public toilets and comfort stations, abattoirs, municipal lodging houses, and tenement houses, dispensaries, infirmaries, free employment bureaus, almshouses, work farms, detention homes, cemeteries, crematories, morgues, works or plants for the preparation, manufacture, handling or transportation of materials required in the construction, completion, maintenance or repair of streets, bridges, sidewalks, sewers and any public work, improvement, building or utility, whether specifically mentioned herein or not, and shall have power to purchase and contract for any and all materials used in connection with the operation of said works or plants, or the maintenance or repair of streets, bridges, etc., hereinabove mentioned, and shall further have power to bid on any public work or improvement proposed or instituted by or in the City of Houston and to contract for the same in like manner and upon the same terms and conditions as other contractors, with the power to purchase any and all materials which may be necessary to carry out and perform such contract whether same are of the kind repaired, manufactured or handled in the plants or works owned by the City of Houston or not. The City of Houston may also, by purchase, condemnation, construction or otherwise establish, own, equip, maintain, conduct and operate in whole or in part steam laundries, ice factories, bakeries, belt and terminal railways and union depots within or without the City of Houston; also, any and all buildings, establishments, institutions and places, whether situated inside or outside the city limits which are necessary or convenient for the transaction of public business or for promoting the health, morals, education or welfare of the inhabitants of the city, or for their amusement, recreation, entertainment or benefit. (Added by amendment October 15, 1913; amended August 14, 1982)

Sec. 7b. Power of the city to buy and sell electricity, etc.

The City of Houston shall have the power to buy gas, electricity, steam, water or any other kind of power, service or commodity needed for public use, and shall have the right to resell by wholesale or retail all such gas, electricity, steam or water, power, service or commodity which it may not need for its own use; provided, that the city shall not be bound by any contract for the purchase or sale of any gas, electricity, steam or other power, commodity or service for a longer period of time than five years, unless one of the following special requirements is fulfilled, either: (i) the council has approved such contract by motion, resolution or ordinance adopted by a vote of at least two-thirds of the council, or (ii) a proposition for the making of such contract is submitted to a vote of the qualified electors of the City at an election, which proposition must include a summary of the material terms of the contract, and a majority of the votes cast on such

proposition is in favor of the making of such contract. Said election shall be held in the manner provided in the applicable state laws, this Charter and the ordinance ordering the same. (Added by amendment October 15, 1913; amended August 14, 1982)

Sec. 8. Fires.

The City of Houston shall have power to provide means for the protection against and the extinguishment of conflagrations, and for the regulation, maintenance and support of the fire department, and for the purpose of guarding against the calamity of fire, may prescribe fire limits, and may regulate or prohibit the erection, building, placing or repairing of wooden buildings within such limits in said City as may by ordinance be designated and prescribed as fire limits, and may also within said limits prohibit the moving or putting up of any wooden buildings from without said limits, and may also prohibit the removal of any wooden buildings from one place to another within said limits, and may direct and prescribe that all buildings within the limits so designated in the ordinance as fire limits shall be made or constructed of fireproof material, the kind, character, extent and quality of which buildings and material may by ordinance be prescribed and fixed, and may prohibit the repairing of wooden buildings in fire limits when the same shall have been damaged to within fifty percent of the value thereof, and may prescribe the manner of finding such damages, and may declare all dilapidated buildings to be nuisances, and direct the same to be repaired, removed or abated in such a manner as the Council may prescribe, and may declare all wooden buildings in the fire limits which they deem dangerous to contiguous buildings, or which may cause or promote fires, to be nuisances, and may require and cause the same to be removed in such manner as may be prescribed, at the expense of the owner and may further prescribe limits within which only a fire-proof roofing may be used, and may impose a penalty for violations of such rules and regulations.

The City shall have the right by ordinance to regulate, prescribe and govern the storage of lumber, sash, doors, blinds, and any and all kinds of goods, wares and merchandise of every kind, and prescribe limits within which such materials may be carried, and fix penalties for violation of the rules and ordinances governing the same. (Act of 1905)

Sec. 9. Harbor and water front.

Said city shall have power by itself, or in connection with the Harris County Navigation District and the Government of the United States to acquire by purchase, lease, condemnation or otherwise, or to construct, keep, maintain, deepen, widen, cover, wall or alter waterways, channels, slips and canals; and to improve, maintain and control the waterfront and harbors of the city on Buffalo Bayou and its tributaries, whether within or without the city limits, and shall also have power to provide by purchase, lease, condemnation or otherwise and to establish, construct, buy, own, maintain, equip, regulate and operate and to lease or sell the same when constructed elevators, warehouses, bunkers, wharves, docks, dry docks, piers, marine ways, levees, seawalls, moles, drawbridges, and other structures and appliances for facilitating or accommodating commerce or navigation on Buffalo Bayou and its tributaries, whether within or without the city limits. And it shall also have power to license, regulate and control the use of said streams, or restrain the landing, anchorage, moorage, loading and unloading of steamships and steamboats, sailing vessels, tug boats, rafts and all other watercraft, on said Buffalo Bayou and its tributaries, whether within or without the city limits; to fix the rates of wharfage, dockage, towage, pilotage and tolls, and to provide for the collection thereof, and to make and enforce regulations governing the use of harbors, docks, wharves and waterfront and other navigable waters and the opening and passing of bridges in the said limits on said Buffalo Bayou and its tributaries, whether within or without the limits of said city. (Act of 1905; amended October 15, 1913, August 14, 1982)

Sec. 10. Markets.

Said City shall have power to establish, lease, maintain, regulate and operate markets and market places and abbatoirs [sic], and to build, own, and maintain buildings therefor, and to rent and lease the same. (Act of 1905)

Sec. 11. Charities and Corrections.

The City shall have power to establish, maintain and regulate the city prison, or city prisons, work houses, rock piles and other means of punishment for vagrants, city convicts and disorderly persons, houses of correction and reformatories for youthful criminals, compulsory schools for children without parents, or vicious parents or parents who willfully and grossly neglect them, and such other places of incarceration and reformatory institutions, and such hospitals, orphanages and charitable institutions as it may deem expedient; provided, however, that no gratuity that is purely personal, and no pension, shall ever be granted to any individual, and no money of the City shall be paid out except for personal services rendered, and for the other purposes specified or authorized by this Act. (Act of 1905)

Sec. 12. Fines for Violation of Ordinances.

That the bylaws and ordinances of the City shall be enforced by a fine not to exceed two hundred dollars ($200); provided, that no ordinance or by-law shall provide a lesser penalty than is prescribed for a like offense by the laws of the State.

The City Council may provide by ordinance for the commutation of fines imposed, by labor in a work house or on a rock pile, or upon the public streets and public ways of the City of Houston, and for the collection of any fine imposed execution may be enforced as other execution issued in civil causes. (Act of 1905)

Sec. 13. Corporation Court.

There shall be a court for the trial of misdemeanor offenses, known as the "Corporation Court," with such powers and duties as are defined and prescribed in an act of the Legislature of the State of Texas, and any acts amendatory thereof, entitled, "An Act to establish and create in each of the cities, towns and villages of this State a State Court, to be known as the 'Corporation Court' in each city, town or village, and to prescribe the jurisdiction and organization thereof, and to abolish municipal courts," said Act having been prescribed to the Governor of Texas March 15th, 1899, and not having been by him disapproved.

The Magistrate of said court shall be known as the "Judge of the Corporation Court," who shall be a qualified voter and shall be appointed by the Mayor and confirmed by the City Council, and shall hold his office for two years, unless sooner removed by the Mayor and City Council and shall receive such salary as may be fixed by ordinance.

It shall be the duty of the Mayor, as soon as practicable after the passage of this Act, to nominate some suitable person to the City Council, to be by it confirmed, for the position of Judge of the Corporation Court, who shall discharge the duties of said office under the terms and provisions of the State law creating said court, and also subject to the provisions of this Act.

There shall be a Clerk or Clerks of said court, with such deputies as may be created or provided by ordinance by the City Council, who shall be appointed by the Mayor, and shall be subject to removal at any time by the Mayor or City Council, and shall receive such salary as may be fixed by the City Council.

The Clerk or Clerks of said court, and the deputies thereof, shall have the power to administer oaths and affidavits, make certificates, affix the seal of said court thereto, and generally to do and perform all things and acts usually or necessary to be performed by Clerks of courts in issuing process of said courts and conducting the business thereof.

The City Council may require such Clerk, Clerks or deputies created by it to perform such other duties, in addition to the duties of the Clerk or Deputy Clerk, as may be prescribed, or may provide that some other persons, in addition to other duties, may perform the duties of a Clerk or Deputy Clerk, without extra compensation. (Act of 1905)

SECTION 13-a. Substitute judge; acting judge.

In the event of the absence, illness or inability from any cause whatsoever of the Judge of the Corporation Court to act in such capacity the Mayor shall be authorized to nominate some suitable person to the City Council to be by it confirmed to fill such position of Judge of the

Corporation Court during the absence, illness or continued inability to serve as the Judge of said Court and such temporary Judge shall discharge all of the duties and have all of the rights, power and authority that the regularly appointed Judge of said Corporation Court has during the tenure of his appointment. (Added by amendment October 16, 1926)

Note—The title of this section was added by the editor; it was not titled in the Ordinance calling the 1926 Charter Election.

Sec. 14. Repealed.

Editor's note—Canvas Ord. No. 2012-1003, §§ 7—9, adopted November 19, 2012, adopted at an election of November 6, 2012, repealed § 14 in its entirety. Formerly, said section pertained to "Schools—City of Houston an Independent School District" and derived from an Act of 1905. Said section is now superseded by state law.

Section 14a. Repealed.

Editor's note—Canvas Ord. No. 2012-1003, §§ 7—9, adopted November 19, 2012, adopted at an election of November 6, 2012, repealed § 14a in its entirety. Formerly, said section pertained to "School board to furnish free school books" and derived from an amendment of October 15, 1913. Said section is now superseded by state law.

Section 15. Burial Grounds, Crematories and Cemeteries.

The City Council shall have power to regulate burial grounds, crematories and cemeteries, and to prohibit burial within the city limits if deemed advisable, or if necessary to protect the public health, and to condemn and close burial grounds and cemeteries in the thickly settled portions of the City, and when demanded by the public interest or public health to remove or cause to be removed bodies interred in such condemned and closed cemeteries and burial grounds, and shall cause them to be re-interred in a suitable place to be provided by the City, at its expense, and whenever advisable the City may condemn the land proposed to be used for the re-interring of bodies, in the same manner as in condemnation suits of railway companies, and use such condemned ground formerly used for cemeteries for such purposes as may best subserve the interests of the City.

The City Council shall have power and authority to make all needful and necessary regulations in regard to butchers and persons selling meats, farm products, fish, vegetables and fruit, and all foodstuffs, and to require the same to be inspected and condemned if not found wholesome, and to provide penalties for violation thereof.

The City Council shall have the right and power by ordinance to provide that the tenant or owner of any property shall pay to the City such reasonable charges for the removal of night soil or other refuse matter from the closets of the premises thereof, and to prohibit anyone except some one in the employ of the City, or by the City authorized to do so, from removing or carrying away the contents of any privy, vault or water-closet, or any receptacle of human excrement, and the City shall have the right to have inspected the premises of all persons at any time in the interest of the public health, and for the purpose of making said inspection the officers or agents of the City duly authorized to do so, shall have a right to enter upon the premises of any person at any hour during the day time to make said inspection. Whenever notice is given by any officer or employe of the City inspecting any premises that said premises need cleaning, the said night soil or other refuse matter shall be removed and the owner or tenant of said premises shall pay the City the price prescribed therefor, and failure to do so shall subject said persons to the penalties to be prescribed by ordinance, and said persons shall be fined upon conviction in the Corporation Court, in any sum not less than one dollar, nor more than two hundred dollars.

To prevent any person from bringing, depositing or having within the limits of said City any dead carcasses or any offensive or unwholesome substances or matters, and to require the removal or destruction by any person who shall have placed upon or near his premises or elsewhere any substance or matter, filth, or unsound beef, pork or fish, or hides, and skins of any kind, and on his default, to authorize the removal or destruction thereof by some officer or employe of the City, and to require the owner of any dead animal to remove the same to such place as may be designated.

The City Council shall also have the power to pass ordinances authorizing the destroying of clothing, bedding, furniture, and buildings infected with the germs of any infectious or dangerous disease, when in the discretion of the City Council the public health requires the destruction of the same, and may also in the same manner authorize the destruction or removal of buildings or other objects, after the same shall have been declared a nuisance and to be dangerous to the health or lives of the citizens of said City.

That said corporation of the City of Houston is hereby given full power and authority to take such steps to improve and preserve the purity of the water in Buffalo Bayou above the City of Houston as it may think necessary, provided that the power in this Section shall not be construed to give said corporation any jurisdiction or control over said Bayou beyond the corporate limits of said City, except for the purpose of protecting or improving the water shed, i.e., the water supply of both Buffalo Bayou and the smaller streams or tributaries; provided, further, that the said corporation shall have the right to condemn land, buildings and out-houses or closets when they may deem necessary for the protection and preservation of the purity of the water in said Bayou, and shall have such police powers as to control the same.

The City Council shall also have power to require any persons or corporations owning or operating manufacturing enterprises within or without the City, which discharge refuse matter into Buffalo or White Oak Bayous, or the tributaries of either, to make other provision for such refuse matter, or so purify the same as that the public health will be fully protected. (Act of 1905)

Section 15-a. Legal Day's Work.

(a) Eight hours shall constitute a day's work of all laborers, workmen or mechanics now employed or who may hereafter be employed by or on behalf of the City of Houston in any one calendar day where such employment, contract or work is for the purpose of constructing, repairing or improving buildings, bridges, roads, highways, streams, levies, sewer building, pipe laying, water construction or other work of a similar character requiring the services of laborers, workmen or mechanics, except in cases of emergency, in which event the emergency provisions of section (b) hereof shall apply.

(b) All contracts hereafter made by or on behalf of the City of Houston with any corporation, person or association of persons for the performance of any work shall be deemed and considered as made upon the basis of eight hours constituting a day's work, and it shall be unlawful for any corporation, person or association of persons having a contract with the City of Houston to require or permit any such laborers, workmen or mechanics to work more than eight hours per calendar day in doing such work, except in case of emergency or in cases where it may become necessary to work more than eight hours per calendar day for the protection of property, human life or other grave necessity. In such emergencies the laborers, workmen or mechanics so employed and working to exceed eight hours per calendar day shall be paid on the basis of eight hours constituting a day's work; provided, that nothing in this amendment shall affect contracts in existence at the time of the taking effect of this amendment.

(c) The City Council shall enact all such ordinances as may be necessary to carry out and make effective the provisions of this amendment. (Added by amendment October 15, 1913)

Section 16. Peace and Good Order.

The City of Houston shall have power by ordinance duly passed to establish and maintain the City Police Department, prescribe the duties of policemen and regulate their conduct.

To permit, forbid or regulate theaters, balls, dance houses and other public amusements, and to suppress the same whenever the preservation of order, tranquility, public safety or good morals may demand.

To regulate dram shops, drinking saloons and other places where intoxicating liquors are sold, and to close variety theaters when necessary, expedient or advisable.

To prohibit and punish keepers and inmates of bawdy houses and variety shows, to prevent and

suppress assignation houses and houses of ill fame, and to regulate, colonize and segregate the same, and to determine such inmates and keepers to be vagrants, and provide for the punishment of such persons.

To inspect weights and measures, fix standards of weights and measures, and to fix penalties for not using or conforming to the same, and to provide that inspection fees may be fixed by ordinance.

To make all needful and proper regulations concerning keepers of taverns and grog shops and other public houses, draymen, horse drivers, water carriers, omnibus drivers, hack drivers and drivers of baggage wagons and other vehicles, and especially to preserve order and prevent noise and confusion in and about the several depots on the arrival and departure of railway trains, and to provide how and where hacks or other carriers shall stand or take their position upon the streets adjacent or near to said depots.

To prevent extortion by carriers of passengers or baggage, hacks, drays and public conveyances, by establishing maximum rates of charges and providing penalties for violation thereof.

To provide and fix by ordinance public stands where hacks and drays, baggage wagons or other public carriers shall stand on the streets of said City for the purpose of soliciting business, and to prescribe that they shall not stand, except when receiving or discharging passengers or freight, at any points, other than those designated in the ordinance as public stands.

To suppress gambling houses, and to punish keepers of gambling houses and pool sellers, and all persons who play cards or games of chance of any kind, and to punish persons who sell lottery tickets or who advertise lottery drawings or schemes and results of drawings or lotteries.

To establish and regulate public pounds and to regulate and restrain and prohibit the running at large of horses, mules, cattle, sheep, swine, goats, geese and pigeons, and to authorize the distraining, impounding and sale of the same for the cost of the proceedings and the penalty incurred, and to order their destruction when they cannot be sold, and to impose penalties upon the owners thereof for the violation of any ordinance regulating or prohibiting the same.

To tax, regulate, restrain and prohibit the running at large of dogs, and authorize their destruction when at large contrary to ordinance, and to impose penalties on the owners or keepers thereof.

To prohibit and restrain or regulate the rolling of hoops, the flying of kites and firing of fire crackers, the use of velocipedes and bicycles, and the use of any pyrotechnic or any other amusement or practice tending to annoy persons passing in the streets or sidewalks or to frighten horses and teams.

To restrain and prohibit the ringing of bells or blowing of horns, bugles and whistles, crying of goods, and all other noises, practices and performances, tending to the collection of persons in the streets or sidewalks by auctioneers and others for the purpose of business, amusement or otherwise.

To prohibit and regulate the ringing of bells and blowing of whistles of railroad engines or locomotives within the City limits and to regulate the speed thereof.

To regulate and control the driving of cattle, horses and all other animals into or through the City.

To prevent all trespasses and breaches of the peace and good order, assault and batteries, fighting, quarreling, using abusive, profane and insulting language, misdemeanors and all disorderly conduct, and punish all persons thus offending.

To prevent and punish the keepers of houses in which loud or immoral theatrical representations are given, and to adopt summary measures for the removal or suppression of all such establishments.

The City Council shall have power to require, on due notice, all steam or street railway companies owning tracks within the City limits upon the public streets or highways of said City, which may have been or may hereafter be abandoned by said companies by non-use, to remove such hacks

and to restore at their own expense the street or way upon which such abandoned track is located to the proper grade.

To prohibit, prevent and suppress horse racing, immoderate riding and driving in the streets of said City.

To regulate the use of automobiles and the speed thereof.

To prohibit and punish the abusers of animals.

To compel persons to fasten their horses or other animals attached to vehicles or otherwise hitched or standing in the streets.

To restrain and punish vagrants, mendicants, beggars and prostitutes.

To regulate and control the sale, gift, barter or exchange of cocaine, opium, morphine, and the salts thereof. (Act of 1905; amended November 6, 2012)

Sec. 17. Franchises.

The right of control, easement, user and the ownership of and title to the streets, highways, public thoroughfares and property of the City of Houston, its avenues, parks, bridges and all other public places and property are hereby declared to be inalienable, except by ordinance duly passed by a majority of all the members of the City Council and approved by the Mayor; and no grant of any franchise or lease, or right to use the same, either on, along, through, across, under or over the same by any private corporation, association or individual, shall be granted by the City Council unless submitted to the vote of the legally qualified voters of said City, for a longer period than thirty years; provided, however, that whenever application is made for any grant of franchise, lease right or privilege in or to the streets and public thoroughfares of the City of Houston by any person or corporation, if they so request, the Council shall submit the same at an election called for said purpose, the expense of which shall be borne by the applicant for said franchise, and at said election, if the majority of the votes cast by the legally qualified voters shall be in favor of making said grant as applied for, said grant may be made for such a term of years as is specified in the ordinance submitting the same at said election; provided, however, that no grant shall be made or authorized for a longer period than fifty years.

The City Council may also, upon its own motion, submit all applications or ordinances requesting the granting of franchises or special privileges in or to the streets, public thoroughfares and highways of the City of Houston to an election, at which the people shall vote upon the propositions therein submitted, the expense of which election shall be paid by the applicant or applicants therefor. No such franchise shall ever be granted until it has been read in full at three regular meetings of the Council, nor shall any such franchise, grant, right or easement ever be made to any private individual, corporation or association, unless it provides for adequate compensation or consideration therefor, to be paid to the City of Houston, and in addition to any other form of compensation, grantee shall pay annually such a fixed charge as may be prescribed in the franchise. Such grant under and any contract in pursuance thereof shall provide that upon the termination of the grant, the grant, as well as the property, if any, of the grantee, in the streets, avenues and other public places, shall thereupon, without other or further compensation to the grantee, or upon the payment of a fair valuation therefor (the mode of ascertaining which shall be determined in the grant), be and become the property of the City of Houston, and the grantee shall never be entitled to any payment or valuation because of any value derived from the franchise or the fact that it is or may be a going concern, duly installed and operated.

Every such grant shall make adequate provision by way of forfeiture of the grant, or other-

wise, to secure efficiency of public service at reasonable rates, and to maintain the property in good order throughout the life of the grant.

The City Council may also inspect and examine or cause to be inspected and examined at all reasonable hours any books of account of such grantee, which books of account shall be kept and such reports made in accordance with the forms and methods prescribed by the City Council, which, as far as practicable, shall be uniform for all such grantees. (Act of 1905)

Section 18. Referendum.

Whenever application is made to the city council of the City of Houston for any such grant or franchise, lease or right to use the streets, public highways, thoroughfares or public property of the City of Houston as is provided for in the preceding section of this act, or whenever an ordinance is introduced in the city council proposing to make the grant of any franchise, lease or right to use the public highways, streets, thoroughfares and public property of the City of Houston, such ordinance shall set forth in detail all the rights, powers and privileges granted or proposed to be granted, and notice as to the contents of said ordinance shall be given by publishing in some daily newspaper published in the City of Houston, once a week for three consecutive weeks, a notice which includes the name of each grantee, a description of the nature of the proposed grant, and the location where the entire ordinance may be found, which ordinance may not be changed after the notice is published unless another notice is published in the same manner after such change, which publication or publications shall be made at the expense of the applicant or the person or persons desiring said grant, and no such grant shall be made or ordinance passed until after publication of a notice in the manner aforesaid, nor shall any such ordinance confirming or making any such grant, lease or right to use the streets, public highways and thoroughfares of the City of Houston take effect or become a law or contract, or vest any right in the applicants therefor, until after the expiration of thirty days after said ordinance has been duly passed by the city council and been approved by the mayor.

Pending the passage of any such ordinance or during the time intervening between its final passage and approval by the mayor, and the expiration of the thirty days before which time it shall not take effect, it is hereby made the duty of the city council to order an election if requested so to do by written petition signed by at least five hundred legally qualified voters of said city, at which election the legally qualified voters of said city shall vote for or against the proposed grant as set forth in detail by the ordinance conferring the rights and privileges upon the applicants therefor, which said ordinance shall be published at length and in full in the call for said election made by the mayor, and if at said election the majority of the votes cast shall be for said ordinance and the making of said proposed grant, the same shall thereupon become effective; but if a majority of the votes cast at said election so held shall be against the passage of said ordinance and the making of said grant, said ordinance shall not pass, nor shall it confer any rights, powers or privileges of any kind whatever upon the applicants therefor, and it shall be the duty of the city council, after canvassing the vote of said election, to pass an ordinance repealing the ordinance which has been by it passed, if the same has been passed.

No grant of franchise, or lease or right of user, in, upon, along, through, under or over the public streets, highways or public thoroughfares of the City of Houston shall be made or given nor shall any rights of any kind whatever be conferred upon any person, private corporation, individual or association of any kind whatever, except the same be made by ordinance duly passed by the city council, nor shall any extension or enlargement of any rights or powers previously granted to any corporation, person or association of persons, in, upon, along, through, under or over the streets of the City of Houston be made, except in the manner and subject to all of the conditions herein provided for in this act for the making of original grants and franchises; provided, however, that the provisions of this section shall not apply to the granting of sidetrack or switch privileges to railway companies for the purpose of reaching, and affording railway connection and switch privileges to the owners or users of any

industrial plants; it being the intention to permit the city council to grant such rights of privileges to railway companies whenever in their judgment the same is expedient, necessary or advisable. (Act of 1905; amended August 14, 1982)

Sec. 19. Contracts.

No contract shall ever be made which binds the City to pay for personal services to be rendered for any stated period of time; but all contracts involving a personal service shall be restricted to the doing of some particular act or thing, and upon its completion no further liability shall exist on the part of the city.

Nor shall the City of Houston or any one acting for it make any contract for supplies for the current use of any department of the municipality for a longer period than twelve months, unless the council approves a longer period of time not exceeding five years for a specific contract by motion, resolution or ordinance adopted by a vote of at least two-thirds of the Council Members present and voting.

No contract shall be entered into until after an appropriation has been made therefor, nor in excess of the amount appropriated, and no contract shall be binding upon the city unless it has been signed by the mayor and countersigned by the controller, and the expense thereof charged to the proper appropriation, and whenever the contract charged to any appropriation equals the amount of said appropriation, no further contracts shall be countersigned by the controller.

In every instance required by state law, contracts shall be submitted for competitive bidding prior to being entered into by the City. Procedures for such competitive bidding shall be prescribed by the council, but the procedures must be in accordance with state law. (Act of 1905; amended January 27, 1968, August 14, 1982)

Sec. 19a. Certificate of controller prerequisite to ordinance, etc., appropriating money.

No contract, agreement or other obligation involving the expenditure of money in excess of the limitation amount determined as provided in this paragraph, below, shall be ordered, authorized, entered into, or executed by any officer of the city unless same be, by authority of ordinance, resolution or motion, nor shall any ordinance, for the appropriation of money, or any ordinance, resolution or motion for the making of any contract, agreement or other obligation requiring the expenditure of money, be passed by the council unless the controller first certify to the council, that the money required for such contract, agreement, obligation or expenditure is in the treasury, and not appropriated for any other purpose, or that the funds will be received into the treasury and be available before the maturity of said obligation, and that the said funds anticipated have not been already appropriated for any other purpose, which certificate shall be filed and immediately recorded. The limitation amount referred to above shall be equal to the maximum dollar amount of an expenditure that the City is generally allowed to make without taking competitive bids for contracts under state law, as amended from time to time.

If moneys be not actually in the treasury to the credit of the fund from which it is to be drawn, but will be received into the treasury before the maturity of the obligation, the controller shall not certify that the funds will be available unless the moneys are to be derived from lawfully authorized bonds sold and in process of delivery or that the funds are anticipated to be derived from current or general revenues such as from taxes or assessments, or from sales of services, products or by-products, or from any undertakings, fee charges, accounts and bills receivable, or for other items in process of collection, and will be available before maturity of the obligation; and he shall show from what source the funds will be derived, and if the amount anticipated is to come from the general revenues of the city, he shall certify further that the amount including the aggregate of amounts previously certified or anticipated either by budget or appropriation, will not exceed the revenues levied or assessed for the fiscal year.

Any sum certified by the controller shall not thereafter be considered as unappropriated or subject to reappropriation until the city is dis-

charged from the contract, agreement or obligation. (Added by amendment October 15, 1913; amended August 14, 1982, November 2, 1999)

Sec. 20. Pension plans.

The City Council shall provide a plan for the payment of pensions to City Policemen, Police Alarm Operators, City Firemen and Fire Alarm Operators, and such other groups of City employees as the City Council and/or the legislature, from time to time, may authorize; and, beginning with the fiscal year 1934, appropriate funds in aid thereof. (Added by amendment January 28, 1933)

Note—The title of this section was added by the editor; it was not titled in the Ordinance calling the 1933 Charter Election.

Section 21. METRO rail system projects.

City Council shall not hereafter grant any permission, consent, or authorization required by the Metropolitan Transit Authority of Harris County (METRO) in connection with the construction, maintenance, or operation of all or part of a rail system unless METRO previously has conducted an election at which a majority of the METRO voters who participated in the election approved construction of the rail system. Such City permission, consent, or authorization shall not be subject to any election under this Charter. The construction, maintenance, or operation of the rail system project described in Ordinance 2000-1028 shall not be subject to any election by the City or METRO under this section or any other section of this Charter.
(Added by amendment November 6, 2001)

Section 22. Denial of benefits to same sex partners and related matters.

Except as required by State or Federal law, the City of Houston shall not provide employment benefits, including health care, to persons other than employees, their legal spouses and dependent children; nor shall the City provide any privilege in promotion, hiring, or contracting to a person or group on the basis of sexual preference, either by a vote of the city council or an executive order by the Mayor. Further, the City of Houston shall not require entities doing business with the City to have any of the above benefits or policies.

If any portion of this proposed Charter amendment is declared unlawful, then such portion shall be removed and the remainder of the Charter amendment will remain in effect. Any ordinance in conflict with this section of the Charter is hereby repealed and declared invalid. (Added by amendment November 6, 2001)

Note—This section was submitted by a voter petition that did not specify a title, article or section number. The title was added by the editor, and the section was designated as Section 22 by the editor.

ARTICLE III. TAXES AND TAXATION

Section 1. Taxation.

In each tax year beginning in tax year 2005:

(a) The City Council shall not, without voter approval, levy ad valorem taxes at combined rates expected to result in total ad valorem tax revenues for the then current fiscal year that exceed the lower of (i) the allowable ad valorem tax revenues increased by the rate of inflation (based on the change in the Designated Index for the preceding calendar year) plus the rate of growth in the City's population (based on the published estimates of the U. S. Census Bureau for the most recently available twelve month period), but not less than zero (the "indexed ad valorem tax revenues"), or (ii) the amount of total ad valorem taxes, both current and delinquent, actually collected during the prior fiscal year, increased by 4.5% of that amount and, as to the calculations in (a)(i) and (a)(ii) hereinabove, excluding ad valorem tax revenues required by state law to be deposited in a tax increment fund and adding those attributable to each annexation occurring after July 1, 2005, for the first year after such annexation. The allowable ad valorem tax revenues for fiscal year 2006 shall be the actual total ad valorem tax revenues,

both current and delinquent, collected during the fiscal year ending June 30, 2005. In each subsequent fiscal year, the allowable ad valorem tax revenues shall be the prior fiscal year's indexed ad valorem tax revenues. In any fiscal year for which the voters have approved an increase in total ad valorem tax revenues above the limit set forth in this subsection, the total ad valorem tax revenues authorized by the voters for such fiscal year or a future fiscal year shall become the amount to be adjusted in (a)(i) and (a)(ii) hereinabove for the fiscal year succeeding the authorized increase; and

(b) The City Council shall provide for a minimum annual increase through the 2008 tax year of 10% in the amount of the exemption from all ad valorem taxes levied by the city on the appraised value of residence homesteads of persons, married or unmarried, including those living alone, who are under a disability for purposes of payment of disability insurance benefits under Federal Old-Age, Survivors and Disability Insurance, or its successor, or of married or unmarried persons 65 years of age or older, including those living alone. The amount of such exemption in the 2008 tax year shall be maintained thereafter unless increased by the City Council.

The inflation rate calculation in subsection (a) of this section shall be based on the change in the Designated Index for the preceding calendar year which shall mean the United States Consumer Price Index for All Urban Consumers (also known as the CPI-U) for the Houston-Galveston-Brazoria, Texas Metropolitan Area (1982-1984=100), as published by the Bureau of Labor Statistics, U.S. Department of Labor. If such index is subject to adjustment later, then the later adjusted index, together with any correlation factor necessary to relate the later adjusted index to the earlier index, as published by the entity publishing the index, shall be used, or if such publication is discontinued, the Designated Index shall then refer to comparable statistics on changes in the cost of living for urban consumers as the same may be computed and published, on the most frequent basis available, by an agency of the United States or by a responsible financial periodical of recognized authority, which agency or periodical shall be selected by the City.

The limitation on annual increases in ad valorem tax revenues provided in subsection (a) of this section shall not apply to additional revenues necessitated by city expenditures related to the inclusion of the city in any declaration of an emergency or disaster by federal or state authorities, provided that such additional revenues shall not be included in computing the allowable ad valorem tax revenues in any succeeding fiscal year.

City Council may adopt procedures as necessary to implement this section.

The City Council shall have full authority to assess and collect any and all revenues of the city without limitation, except as to ad valorem taxes and water and sewer rates.

If for any cause the City Council shall fail or neglect to pass a tax ordinance for any one year, levying taxes for that year, then, in that event, the tax levying ordinance last passed shall and will be considered in force and effect as the tax levying ordinance for the year for which the City Council failed to pass a tax levying ordinance, and the failure so to pass such ordinance for any one year shall in no wise invalidate the collection of the tax for that year. (Act of 1905; amended October 15, 1913, August 14, 1982, November 2, 1999; November 2, 2004)

Section 2. Compromise of Taxes; Payment of Obligations by City Officers and Employees.

In no case shall the City Council or any member of the City Council, or any other officer of the City of Houston extend the time for the payment of the taxes, nor shall any officer of the City remit, discount, or compromise any tax legally due the City, nor shall any person hold any position, office or employment who is in

arrears, or due and owing to the City any sum of money for taxes or otherwise. (Act of 1905; amended November 2, 1999)

ARTICLE IV. POWER AS TO BONDS, BUFFALO BAYOU, SIDEWALKS, STATE AGENCY, STREETCAR EQUIPMENT*

Section 1. Authority To Issue Bonds.

The City Council shall have the power and authority by ordinance duly passed, if it so elects, to borrow money on the credit of the City for permanent improvements, to an amount not to exceed one hundred thousand dollars ($100,000) in any one year, and may issue bonds of the City therefor. It may also have the power, and is hereby expressly authorized, to issue bonds for the purpose of refunding bonds of the City of previous issues; provided, the bonds may be refunded at a lower rate of interest than the bonds proposed to be retired draw.

No bonds shall be issued for any purpose, except for the purpose of making permanent improvements, which shall not exceed one hundred thousand dollars ($100,000) in any one year, and for the purpose of re-funding bonds of the City of previous issues, unless an election be duly ordered by the Mayor and City Council, and if at said election a majority of the vote polled shall be in favor of creating such debt, it shall be lawful for the City Council to make the issuance of bonds as proposed in the ordinance submitting the same at the election so held, but if a majority of the vote polled shall be against the creating of such debt, it shall be unlawful for the City Council to issue the bonds.

In all elections to determine the expenditure of money for the assumption of debt, only those shall be qualified to vote who pay taxes on property in said City, and are legally qualified voters in said City of Houston; provided, that no poll tax for the payment of debts thus incurred shall be levied upon the persons debarred from voting in relation thereto.

No bonds shall be issued drawing more than five percent. interest per annum, and they shall be invalid if sold for less than par and accrued interest, and all bonds shall express upon their face the purpose for which they are issued.

The ordinance authorizing any bonds to be issued shall provide for the creation of a sinking fund sufficient to pay the bonds at maturity, and make provisions for the payment of the interest thereon as it matures, and said sinking fund shall be invested in bonds of the State of Texas, or in the bonds issued by Counties in the State of Texas, or in bonds of the United States, or such funds may be used for the purchase of the bonds of the City of Houston which are not yet due, and neither interest nor sinking fund shall be devoted to any other purpose whatsoever.

Any officer of the City who shall willfully or knowingly direct or use said fund for any other purpose except that for which the fund is created, or herein expressly authorized to be invested, shall be deemed guilty of a felony, and subject to prosecution as provided under the general laws of the State for the diversion and conversion of funds belonging to any of the municipalities of said State. (Act of 1905)

Section. 1-a. Investment of Sinking Funds.

In addition to the bonds in which by Section 1 of Article IV the City of Houston is authorized to invest its sinking fund the City of Houston is authorized and it shall have the power to invest its sinking funds in bonds of any school, navigation, road, drainage or other improvement district in any counties of the State of Texas or subdivision thereof, or in the bonds of any city in the State of Texas, provided said bonds shall have been duly approved by the Attorney General of the State of Texas and registered by the comptroller as valid and enforcible [sic] obligations. (Added by amendment December 28, 1915)

Sec. 2. Bayou.

Power is hereby given to the City Council of the City of Houston to secure land between Houston and Harrisburg, along the banks of Buffalo Bayou, by purchase, condemnation or by gift, for the improvement of Buffalo Bayou by the United States, or by the City of Houston, and for this purpose it may by ordinance extend the corporate limits of said City from its present eastern limits eastwardly in a general direction with Buffalo Bayou from bank to bank as same is now con-

*__Note—__The title of this article was added by the editor; it was not titled in the 1905 Special Act or any of the subsequent amendments.

structed, or exists, or as same may be ordered constructed by the Government engineers in charge of said work; provided, that the City shall have no right to tax the property over which such boundaries are so extended, unless such property be within the line and within the limits of the general City boundaries or limits.

To effect a condemnation, the same proceedings shall be taken and the same statutes shall govern so far as applicable, or obtain and apply to the condemnation of lands by railway companies under the general statutes of the State of Texas. (Act of 1905)

Sec. 3. Fees.

Within its corporate limits the City of Houston shall be the local agent of the State Government for the enforcement of the State laws, in all cases wherein the corporation court of the City of Houston has jurisdiction, and all fines or penalties imposed by said court, including all costs incident thereto and assessed against the parties so fined, are by this Act declared to be due and owing to, and shall be payable to the City of Houston, and in all cases where fees are allowed the officers making the arrest, or the attorneys prosecuting said causes in said corporation court, said fees shall be payable to, and shall hereby become due and owing to the City of Houston.

And the City of Houston shall by ordinance prescribe that no officer or employe in the service of the City of Houston shall recover any fees, rewards or perquisites accruing from any service performed in any manner whatsoever, whether authorized by the general laws of the State or otherwise, but in addition may prescribe by ordinance that said fees, which may be collectible by said officers under the State law, shall become the property of, and shall be payable to the City of Houston, and a failure on the part of any officer or employe to collect said fees when collectible, and to pay the same over to the City of Houston, shall be deemed a malfeasance in office, and said officer shall be removed. (Act of 1905)

Sections 4 and 4-a. Repealed.

Note—These sections, which related to construction and laying of sidewalks and special assessments, certificates, errors, and limitations relating to street improvements, were repealed by the voters at the November 2, 1999, Charter Election. The repealer included the following savings clause:

This repealer shall not be construed to affect the validity of any action taken or right or obligation created or assumed under the said provisions prior to their repeal, and the said provisions are saved from repeal for the limited purpose of the continued enforcement of rights and obligations that arose thereunder prior to their repeal.

Sec. 5. Vestibule Cars.

The City Council may by ordinance duly passed require any street car company operating its lines or cars within or into the City of Houston, to equip its cars with vestibules of such pattern and style, and during such period of the year, as may be prescribed by ordinance.

The City shall also have the right and power by ordinance duly passed, to require any street railway company operating its cars or lines within the limits of the City of Houston to equip its cars with fenders of such style, design or pattern as may be prescribed by the City Council, and to run closed cars in the months of December, January and February of each year. (Act of 1905)

ARTICLE IVa. STREET IMPROVEMENTS Repealed.*

ARTICLE IVb. STREET IMPROVEMENTS—INCORPORATION OF STATE LAW†

Section 1. Adoption of certain state law.

The terms, powers and provisions of the Act passed at the First Called Session of the Fortieth Legislature of the State of Texas, relating to

*__Note—__This article, which related to the assessment of abutting property owners for street improvements, was repealed by the voters at the November 2, 1999, Charter Election. The repealer included the following savings clause:

This repealer shall not be construed to affect the validity of any action taken or right or obligation created or assumed under the said provisions prior to their repeal, and the said provisions are saved from repeal for the limited purpose of the continued enforcement of rights and obligations that arose thereunder prior to their repeal.

†__Note—__The title of this article was added by the editor; it was not titled in the Ordinance calling the 1933 Charter Election.

street improvements and assessments therefor, and being Chapter 106 of the General and Special Laws of said Session, are hereby adopted, embraced in and made a part of the Charter of the City of Houston, and such powers, terms and provisions shall exist, be in force, and may be exercised by the governing body of the City of Houston as alternative to and independent of other powers, terms and provisions of the charter of the City of Houston, with amendments thereto, and which in anywise relate to the same subject matter. (Added by amendment January 28, 1933)

Note—The title of this section was added by the editor; it was not titled in the Ordinance calling the 1933 Charter Election.

Section 2. Intention of Article.

It is the intention hereof to write into and make a part of the charter of the City of Houston the terms, powers and provisions of said Act, as fully as if same were set forth herein in full, and the governing body of the City of Houston may proceed either under the terms, powers and provisions of the heretofore existing charter, with amendments, of the City, or under the terms, powers and provisions of said Act. (Added by amendment January 28, 1933)

Note—The title of this section was added by the editor; it was not titled in the Ordinance calling the 1933 Charter Election.

ARTICLE V. OFFICERS AND ELECTIONS*

Sec. 1. Governing Body.

The governing body of the City of Houston, Texas, shall be the City Council. The City Council shall be composed of the Mayor and the number of Council Members hereinafter prescribed. (Added by amendment August 15, 1942; amended May 29, 1951, August 11, 1979)

Sec. 2. Council Members.

For terms of office for Council Members commencing in 1980, and continuing until such time as the number of Council Members is increased as provided below, there shall be fourteen Council Members designated as follows:

District Council Members

Council Member, District A

Council Member, District B

Council Member, District C

Council Member, District D

Council Member, District E

Council Member, District F

Council Member, District G

Council Member, District H

Council Member, District I

At-Large Council Members

Council Member, At-Large Position 1

Council Member, At-Large Position 2

Council Member, At-Large Position 3

Council Member, At-Large Position 4

Council Member, At-Large Position 5

If, upon any determination of the population of the City pursuant to this Charter, such population is determined to be 2,100,000 persons or more, then the number of Council Members for the regular terms next commencing and continuing thereafter shall increase from fourteen to sixteen. The two additional members shall be District Council Members designated as follows:

Council Member, District J

Council Member, District K

The number of Council Members shall not be decreased, notwithstanding any decrease in population.

All references in this Charter to "Councilmen," "Commissioners" or "Aldermen" shall be construed to be references to "Council Members," and all references in this Charter to a "Councilman" shall be construed to be references to a "Council Member." The "members" of the City Council shall include the Mayor and all Council Members, each of whom shall be a "member" thereof. (Added by amendment August 11, 1979)

*__Note—__The history of individual sections of this article is difficult to accurately state by section number because it has been substantially rewritten on several occasions. Many of these revisions retained language from prior iterations, but transferred the language from one section to another.

Sec. 3. Establishment of District Boundaries; Determinations of Population.

It shall be the duty of the City Council to establish the boundaries of districts covering the entire City for the purpose of electing District Council Members. Such boundaries shall be established by ordinance, which shall be final for purposes of this Charter. The first such establishment shall be made as soon as practicable prior to the first City General Election following adoption of this section. Any subsequent establishment shall be made when required by this Charter.

Promptly following the addition of territory to the City by a boundary change, the City Council shall, by ordinance, add such territory to an adjacent district or districts.

In each year during which a City General Election is to be held, the City Council shall conduct an investigation and determine the population of the City and the population of each of the districts from which District Council Members are to be elected. Each such determination shall be based upon the best available data, including, but not limited to, the most recent federal census. Each such determination shall be expressed in a ordinance, which shall be a final determination for purposes of this Charter.

After any such determination, if the distribution of population among the various districts is determined by the City Council to be materially unbalanced, or if the number of Council Members increases from fourteen to sixteen, then the City Council shall establish new boundaries for the election of District Council Members. (Added by amendment August 11, 1979)

Section 4. Qualifications for Elected Officers.

To serve as Mayor, City Controller or Council Member, a person must be a qualified voter and resident of the City; additionally, a District Council Member must reside in the City Council District from which the member was elected at all times during the member's term of office. To file for office as Mayor, City Controller or At-Large Council Member, a person must be a qualified voter of the City who has resided in the City for 12 months immediately preceding the election day. To file for office as a District Council Member, a person must be a qualified voter of the City who has resided in the territory encompassed by the City Council District to be served for 12 months immediately preceding the election day. As provided by applicable state law, residence in areas annexed into the City shall be considered as residence in the City for purposes of this section. The City Council shall be the judge of the election and qualifications of Council Members, subject to review by the courts in case of contest. (Added by amendment August 11, 1979, November 2, 1999)

Sec. 5. Elections.

A City General Election shall be held on the first Tuesday after the first Monday in November of every other odd-numbered year or such other day as may be prescribed by the general laws of the State of Texas. At each City General Election, the Mayor, the Council Members and the City Controller shall be elected for the terms of office next commencing. Such officers shall assume their offices on the second day of January next thereafter, shall perform the duties and discharge the obligations conferred and imposed by the provisions of this Charter, and shall hold their offices until their successors are elected and qualified, unless removed therefrom by impeachment or recall or otherwise as prescribed in this Charter.

The Mayor, the City Controller and the At-Large Council Members shall be elected by the qualified voters of the entire City. Each District Council Member shall be elected by the qualified voters of each respective district. The Mayor, the City Controller and the Council Members shall constitute all of the elected officers of the City, and all other officers shall be appointed in the manner prescribed by this Charter. (Added by amendment August 11, 1979; amended 11-3-2015)

Section 6. Candidates and Filing for Office.

All candidates shall file for office as herein after provided.

Any person duly qualified therefor may file as a candidate for any office herein referred to without other formality than filing his sworn application with the Mayor at least thirty (30) days prior to the election day and by paying the filing fee hereinafter provided. His application shall designate the office for which he desires to be a candidate, shall state the place of his residence in the City of Houston, and shall state the number of consecutive years next immediately before the date of his filing that he has resided in the City of Houston, and in those instances in which the ownership of real estate in the City of Houston for a certain period of years is a qualification to the office which he seeks, he shall state the fact that he has been a bona fide owner of real estate in the City for the required period of time. Such application shall be signed and sworn to by the person desiring to become a candidate. Such application shall not be considered filed unless it is physically filed in the Mayor's office before midnight of the last day for filing; and his office shall remain open until midnight that day to permit the same.

Such application shall be accompanied by a filing fee which is hereby fixed and established in the following amounts, to-wit: Each candidate for Mayor shall pay a filing fee of $1,250.00. Each candidate for City Controller shall pay a filing fee of $750.00, and each candidate for Councilman shall pay a filing fee of $500.00. Such payment shall be in cash or by cashier's or certified check to the order of the City of Houston; and the Mayor will not accept the application of any candidate which is not accompanied by the required filing fee. Such filing fees shall be for the use and benefit of the City of Houston and no part thereof shall ever be returned to any candidate.

As soon as practicable after the time for filing has elapsed, the order in which the names of the various candidates shall be printed and appear on the official ballot shall be determined by a drawing for positions at which all candidates or persons representing them may be present and which shall be conducted by or under the direction of the City Secretary in such manner as is designed to assure that nothing except chance shall determine the order in which the candidates' names for each position appear on the official ballot. (Added by amendment May 29, 1951)

Section 6a. Term of office; limitation of terms.

(a) For the purposes of term limits, City elective offices are Mayor, City Controller, and City Council Member (either At-Large or District). The term of office for a City elective office shall be four years. Except as otherwise provided herein, no person shall be eligible to be elected to more than two four-year terms in the same City elective office.

(b) For positions to be elected at the City General Election to be held in November 2015, the eligibility of persons then holding City elective office to seek re-election to a City elective office shall be as follows:

1. A person serving his or her first two-year term shall be eligible to seek two additional terms of four years duration in that same office. A person having then served two additional terms of four years duration shall not be eligible to seek re-election to the same office.
2. A person serving his or her second two-year term shall be eligible to seek one additional term of four years duration in that same office. A person having then served one additional term of four years duration shall not be eligible to seek re-election to the same office.
3. A person serving his or her third two-year term shall not be eligible to seek election to that same office.

(c) In all City General Elections after the City General Election to be held in November 2015, a term to which a City elective officer was elected or appointed shall be counted only if the City elective officer served one-half or more of the term.

(d) Persons term limited under prior law shall continue to be term limited. Persons who served a single term prior to 2016 who are not serving in City elective office in 2015 and thus not

subject to subsection (b), shall be eligible to serve one additional four-year term in the same City elective office.

(e) A prohibition against eligibility to seek election to a certain City elective office shall not bar a person from seeking election to another City elective office that such person has not previously held. (Added by amendment November 5, 1991; amended 11-3-2015)

Section 7. Provisions for City General Election.

In all matters not covered by this Charter or by the general law of the State of Texas, the City Council shall by ordinance make provisions relating to the holding of the City General Election and all matters relating thereto. (Added by amendment May 29, 1951)

Section 8. Run-off election, ticket declaration.

(a) The successful candidate for any office must receive a majority of the votes cast in the election for his office and if no candidate for a particular office receives a majority, a run-off election must be held as provided by the Texas Election Code, Acts 1951, 52nd Legislature, page 1097, Chapter 492, Article 81.

(b) Any group of candidates for Mayor and Council Members who have duly filed for office as provided in Section 6 hereof, comprising not more than one candidate for each of the offices, may file a declaration in writing with the City Secretary stating that they have associated themselves as a ticket for the purpose of presenting to the electors their qualifications for office and their political aims, which declaration may be filed at any time after all have filed for office but not later than five o'clock P.M. (local time) of the second day next following the last day for filing for office. They shall state in the said declaration the name of their ticket which shall not exceed four words in length and which ticket name shall not use all or any part of the name of any political party which nominated candidates for State office in the State General Election last preceding, or any part of the name of any ticket previously declared by another group of candidates. No candidate shall join in the ticket declaration of more than one ticket, and after a ticket declaration is filed, no candidate's name may be withdrawn from the ticket unless the candidate withdraws his application to be candidate at the election. The City Secretary shall cause the official ballot to be printed with the names of all candidates associated in a ticket declaration shown under a column headed by the ticket name.

If a ticket declaration is attempted to be filed which uses all or any part of the name of any political party which nominated candidates for State office in the State General Election next preceding, or which uses all or any part of the ticket name of any ticket which has a declaration previously filed, the City Secretary shall reject the defective declaration as void.

The applicable provisions of the general laws of the state shall govern and control any nomination of candidates by any political party or parties. The provisions of this section are provisions for the voluntary association of candidates upon tickets to present to the electors their qualifications for office and their political aims, and these provisions are not intended to and do not affect the nomination of candidates for office by political parties as prescribed and regulated by the state general law. (Added by amendment August 16, 1955; amended August 11, 1979)

Note—The title of this section was added by the editor; it was not titled in the Ordinances calling the 1955 Charter Election or the 1979 Charter Election.

Section 9. Appointive Officers.

Compensation of all officers, except where provided in the Charter, shall be fixed by the City Council which may increase or diminish the same at will, or abolish entirely at any time any office established by the Council and not created expressly by the Charter. No officer whose office is created by ordinance shall hold the same for any fixed term, but shall always be subject to removal by the proper authority of the City as provided in the Charter. (Added by amendment May 29, 1951)

Section 10. Number of Signatures on Recall, Initiative and Referendum Petitions.

The number of signatures required for the petitions provided for in Articles VII-a and VII-b of this Charter shall be calculated upon the greatest total vote cast for Mayor at any city general election held within the three years next preceding the date of the filing of such petition-.(Added by amendment May 29, 1951; amended November 6, 2012)

Section. 11. Action of Council Creating Liability after City General Elections Prohibitied [sic].

(a) From and after any City General Election for the election of Mayor and Councilmen and until those elected at such election shall have qualified, if a majority of the City Council be not re-elected, it shall be unlawful for the then existing City Council to pass any ordinance, resolution or motion whereby any appropriation of money is made, or any obligation or contract on the part of the City is sought to be created; or any franchise or privilege is granted, or attempted to be conferred; and any such ordinance, resolution or motion, or any action of the City Council in the creation of any obligation, or the grant, or attempted grant, of any franchise by such Council shall be illegal, unauthorized and void, and of no effect; provided, nothing herein shall prevent the City Council from making any such appropriation and obligation on the part of the City, or granting any such franchise, if a majority of said Council is reelected; and, provided further, that nothing herein shall prevent the City Council of the City of Houston from making the necessary financial arrangements for paying the current salaries of the City officials and current expenses of the City Government; provided, that the prohibitions hereof shall be suspended in case of a public calamity.

(b) Section 9a of Article VII of the existing Charter of the City of Houston is hereby repealed. (Added by amendment May 29, 1951)

Section 12. Saving Clause.

If any section, sub-section, clause, sentence or phrase of this article is for any reason held to be unconstitutional or invalid, such decision shall not affect the validity of the remainder of this article.

This amendment shall become effective upon the entry upon the records of the City of an official order by the City Council declaring the same adopted. (Added by amendment May 29, 1951)

Sec. 13. Continuation in effect of provisions of Charter.

The duties and powers of the Mayor as presently prescribed, set out and defined in existing Article VI of the Charter and in other provisions of the existing

[The next page is 23]

Article VI of the Charter and in other provisions of the existing Charter shall be and remain in full force and effect, unaltered and unchanged.

The duties, power and compensation of the Councilmen as presently prescribed, set out and defined in existing Article VI and in existing Article VII and in other provisions of the Charter shall be and remain in full force and effect, unaltered and unchanged; and the said Councilmen shall continue to exercise legislative authority only as now prescribed, and the Mayor shall continue as a member and presiding officer of the Council as now prescribed.

The present provisions of the Charter relating to any City department, office, commission or board; the present provisions for elections; the present provisions for Council procedures and rules; the present provisions for initiative, referendum and recall; and any and all present provisions relating to elective officers and appointive officers, their powers and duties, and restrictions on their powers and duties shall all remain as they presently read without any amendment or addition of any sort, unless amended or repealed by this very amendment. (Added by amendment August 16, 1955)

Note—The title of this section was added by the editor; it was not titled in the Ordinance calling the 1955 Charter Election.

Sec. 14. Purpose and effect of Article.

This Article V, as presently amended, is proposed and designed to accomplish an overall plan for the improvement of the government of the City of Houston. To this end, this amendment changes methods of election of members of the Council; permits groups of candidates to associate themselves under ticket designations; confirms the respective present powers and duties of the Mayor and City Councilmen as presently prescribed; and provides that all present provisions of the Charter, relating to elective officers and appointive officers, their powers and duties, the method of their election or appointment, the Council procedure and rules, and the provisions for initiative, referendum and recall shall remain as they presently read without any amendment or addition of any sort unless amended or repealed by this very amendment.

Any provision of any amendment submitted to election at the same election at which this amendment is adopted, in conflict with the terms of this amendment, shall be subject to the terms of Section 19, Article IX of the existing Charter; and this provision shall be liberally construed to the end that no changes in the Charter shall be adopted not encompassed within the plan of this amendment. (Added by amendment August 16, 1955)

Note—The title of this section was added by the editor; it was not titled in the Ordinance calling the 1955 Charter Election.

ARTICLE V-a. CIVIL SERVICE.

Sec. 1. Creation of Commission.

There is hereby established a Civil Service Commission, which shall consist of three persons of good moral character, resident citizens of the city who shall have resided therein for a period of more than three years, shall each be over the age of twenty-five years, and shall not have held any public office within the three years preceding his appointment. The term of office of each member of such commission shall be for three years, or until a successor is appointed, confirmed and qualified. The terms of office shall be so staggered that one of the terms expires on the same date in each year. Members of such commission shall be appointed by the Mayor and confirmed by the City Council, and they shall serve without compensation. Any vacancies in such commission caused by death, resignation or otherwise, or by failure of any appointee to qualify within ten days after appointment, shall be filled in the manner above specified for the unexpired term of the retiring member or of the appointee failing to qualify. (Added by amendment October 15, 1913; amended January 27, 1968)

Sec. 2. Rules and powers of commission.

The civil service commission, with the approval of the city council, shall make such rules and regulations for the proper conduct of its business as it shall find necessary and expedient; but all rules made by the commission may be changed or amended by the city council; provided, that no rules or regulations shall ever be adopted which

will permit the appointment or employment of persons without good character or unfit and incompetent to discharge the duties thereof or prevent the removal or discharge of any appointee or employee for want of fitness, moral character, or competency, or the failure or refusal to properly discharge the duties of his appointment or employment.

The civil service commission among other things, shall provide for the classification of all employees eligible to civil service hereunder upon the successful completion of their probationary period as applicable. All employees are eligible to classification under the civil service system created by this article unless an employee is placed by operation of the general laws of the state in a different civil service system or unless an employee is excepted from eligibility to the civil service system by or pursuant to the provisions of this section.

The following described categories of employees are excepted from eligibility to civil service classification:

(a) Appointive officials, that is, those employees and officials who are required or authorized to be appointed by the mayor and whose appointment is subject to the confirmation of city council including, but not limited to, all of the department heads of the various city departments;

(b) Assistant city attorneys and all professional non-clerical staff of the legal department;

(c) Part-time employees, that is, those employees who work less than the regular work week prescribed for city employees;

(d) Temporary employees, that is, those employees who are retained for seasonal work, work of fixed duration or other work which does not have a reasonable expectancy to continue indefinitely;

(e) Emergency employees, that is, those employees who are hired on an extraordinary basis for the duration of and as a result of an emergency situation which may result in loss of public property or serious inconvenience to the public; and

(f) Executive level employees, that is, those employees whose duties require them to determine and publicly advocate substantive program policy, to provide legal counsel, or to maintain a direct, confidential relationship with an appointive official of the City, as that term is used in this section or with an elected officer of the City. No position may be designated as an executive level employee position for purposes of this section except by ordinance adopted by city council. The total number of positions of employment designated as executive level employee positions for purposes of this section may not at any time exceed a number equal to two percent of the total number of all the employees of the City, whether eligible to civil service classification under this article or not.

The civil service commission shall also make provision for open, competitive and free examination as to the fitness in regard to classified services, for an eligibility list from which vacancies shall be filled, for a probationary period of not less than 12 months which appointees shall serve before they receive classified status and for promotion on the basis of merit, experience and record with probationary service of promoted employees prior to permanent classification in their new positions.

The city council may by ordinance confer upon the commission such further and additional rights and duties as may be deemed necessary to enforce and carry out the principles of this article.

Neither the adoption of this section as amended, nor any ordinance adopted by city council from time to time hereunder, which may designate any position formerly subject to civil service classification as not thereafter being eligible thereto shall be construed to divest any incumbent thereof of any vested right.

Laborers who may on the effective date of this amendment be employed by the City shall be eligible to receive classified status upon service of the probationary period for appointees; such probationary period for laborers shall commence on

the effective date of this amendment. (Added by amendment October 15, 1913; amended August 14, 1982)

Sec. 3. Removal of employees.

Any employee may be suspended by the head of the department under which he is employed, and thereupon his salary shall cease. The officer making the order of suspension shall forthwith file with the civil service commission a statement of the suspension and his reasons therefor. Within ten days after such suspension the employee so suspended may, if he desires, file an appeal with the civil service commission which shall hold a hearing and render a decision in writing within thirty days after it receives the appeal as to whether the employee shall be permanently dismissed from the service of the city, or reinstated in his employment. All such hearings shall be public; the decision of the commission shall be final. In order for an employee to file an appeal as hereinbefore provided it shall only be necessary for him to file a written statement showing in what department he was employed, when and for what he was suspended and a statement by him denying the truth of the matters charged in the statement of the officer so suspending him, and that he desires an appeal from the decision of said officer suspending him, which statement of appeal shall be signed and sworn to by the employee so suspended. In all hearings on appeal from the order of suspension to the civil service commission, the judgment of the officer suspending the employee shall be presumed to be correct; the burden of disproving the charges made against the employee that resulted in his removal shall be upon the employee. (Added by amendment October 15, 1913; amended August 14, 1982)

Sec. 4. Commission rules and regulations.

The civil service commission, with the approval of the city council, shall have power at all times to make proper rules and regulations for the government of the employees under civil service, and when any such rules and regulations have been made it shall cause such rules to be published in such manner as the city council may, from time to time, direct; provided, that no rules and regulations shall ever be adopted which will permit the appointment or employment of any person without good character, or unfit and incompetent, or to prevent the removal or discharge of any appointee or employee for want of fitness, moral character or the failure or refusal to properly discharge the duties of his appointment or employment. Without limitation, the rules and regulations of the civil service commission shall include such provisions as may be necessary to prohibit discrimination in employment, appointment or promotion because of sex, race, color, creed or national origin. (Added by amendment October 15, 1913; amended December 28, 1915, August 14, 1982)

Section 5. Continuation in effect of other rules and regulations.

That as to all employes, officers and appointees not under civil service the provisions of the present Charter shall remain in full force as to such appointment, removal salary, services and duties, unless amended at this or some other subsequent election. (Added by amendment October 15, 1913)

Note—The title of this section was added by the editor; it was not titled in the Ordinance calling the 1913 Charter Election.

ARTICLE VI. THE MAYOR

Section 1. Office Created.

There is hereby established the office of Mayor of the City of Houston. (Added by amendment August 15, 1942, November 2, 1999)

Section 2. Mayor Pro Tem.

At the first regular meeting of the City Council after the induction of the newly elected Mayor and Councilmen in office, the Mayor shall nominate, subject to confirmation by the City Council, one of the Councilmen who shall be known and designated as "Mayor Pro Tem," and shall continue to hold the title and the office until the expiration of the term of office for which he was elected as councilman, but shall receive no extra pay by reason of being or acting Mayor Pro Tem. (Added by amendment August 15, 1942)

Section 3. Disability of the Mayor.

If for any reason the Mayor is absent from the City, sick or unable to perform the duties of his office, the Mayor Pro Tem shall act as Mayor, and during such absence or disability shall possess all of the powers and perform all of the duties of the Mayor. (Added by amendment August 15, 1942)

Section 4. Vacancy.

In case of the death, resignation or permanent disability of the Mayor, or whenever a vacancy in the office of Mayor shall occur for any reason, the Mayor Pro Tem shall act as Mayor, and shall possess all of the rights and powers of the Mayor and perform all of his duties, under the official title, however, of "Mayor Pro Tem" until an election is ordered by the City Council to fill the vacancy in the office of Mayor, shall be called by the City Council and held within thirty days after the vacancy occurred and notice by publication given for at least twenty days, as may be required by law. (Added by amendment August 15, 1942)

Section 5. Removal of the Mayor.

In case of misconduct, inability or wilful neglect in the performance of the duties of his office, the Mayor may be removed from office by the City Council by vote of two-thirds of all the Councilmen elected, but shall be given an opportunity to be heard in his defense, and shall have the right to have process issued to compel the attendance of witnesses, who shall be required to give testimony, if he so elects. The hearing, in case of impeachment of the Mayor, shall be public and a full and complete statement of the reasons for such removal, if he be removed, together with the findings of facts as made by the Council, shall be filed by the City Council in the public archives of the city, and shall become and be a matter of public record.

Pending the charge of impeachment against the Mayor, the City Council may suspend him from office for a period of not exceeding thirty days by a vote of two-thirds of the Councilmen elected, and if upon final hearing the conclusions and findings of the City Council are that the Mayor be impeached and removed from office, such findings shall be final. (Added by amendment August 15, 1942)

Section 6. Signature of Ordinances.

Every ordinance, resolution or motion of the City Council shall, before it takes effect, be presented to the Mayor for his approval and signature. If the Mayor shall fail to sign any ordinance, resolution or motion within five days after adoption, it shall nevertheless be in full force and effect as if he had signed the same. The Mayor shall at all times preside over all meetings of the City Council and shall on all occasions be privileged to vote. He shall not have the right and privilege of veto. (Added by amendment August 15, 1942)

Section 7. General Powers of the Mayor.

The Mayor shall have and exercise such powers, prerogatives and authority, acting independently of or in concert with the City Council, as are conferred by the provisions of this Article or as may be conferred upon him by the City Council, not inconsistent with the general purposes and provisions of this charter, and shall have the power to administer oaths. Subject to the confirmation of the Council, he shall have the power to appoint all advisory boards created by the Charter or ordinance. The Mayor shall appoint, subject to confirmation of the City Council, the Civil Service Commissioners as is provided in Article Va of the existing Charter. (Added by amendment August 15, 1942)

Section 7a. ADDITIONAL POWERS AND DUTIES OF THE MAYOR.

All the administrative work of the city government shall be under the control of the Mayor, and he shall devote his full time to the duties of his office. Any and all administrative duties conferred or imposed upon the City Manager by any article or articles, or section or sections of such article or articles of the Charter which was not amended or repealed at the Charter Amendment Election of

1947 shall hereafter be exercised and performed by the Mayor. Among others, the powers and duties of the Mayor shall be as follows:

1. To see that all laws and ordinances are enforced.

2. The Mayor shall have power to appoint, subject to confirmation by the City Council, such heads of departments in the administrative service of the City as may be created by ordinance, and the Mayor shall have the power to remove such heads of departments at any time he shall see fit without confirmation by the City Council. The Mayor shall also have the power to appoint and remove all other employees of the City, such appointments and removals to be subject, however, to the civil service provisions of the Charter.

3. To exercise administrative control over all departments of the City.

4. It shall be the duty of the Mayor from time to time to make such recommendations to the Council as he may deem to be for the welfare of the City, and each year to submit to the Council the annual budget of the current expenses of the City in accordance with the requirements of the State Budget Law applicable to cities and towns.

5. To keep the Council at all times fully advised as to the financial condition and needs of the City.

The Council shall have authority to prescribe, by ordinance, rules and regulations governing the operation of each department, but the Mayor may prescribe such general rules and regulations as he may deem necessary or expedient for the general conduct of the administrative department, the heads of which are responsible to him. In order to expedite the work of any department, or to adequately administer an increase in the duties which may devolve on any department, or to cope with periodic or seasonal changes, the Mayor, subject to civil service regulations, is empowered to transfer employees temporarily from one department to perform similar duties in another such department. Likewise, each department head shall have power to transfer employees from one bureau or division to another within his department, subject to the rules and regulations of civil service. The Mayor may direct any such department or bureau to perform work for any other department or bureau.

In case of general conflagration, rioting, earthquakes, or other emergency menacing life and property, the Mayor shall be authorized to marshal all the forces of the different departments of the City for the maintenance of the general security, and shall have the power to deputize, or otherwise employ, such other persons as he may consider necessary for the purpose of protecting the City and its residents.

Neither the Council nor any of its committees or members shall in any manner interfere in the appointment of officers and employees in the departments of administrative service vested in the Mayor by this Charter, except that all department heads appointed by the Mayor shall be subject to confirmation by the City Council as herein provided. Except for the purpose of inquiry, the Council and its members shall deal with that part of the administrative service for which the Mayor is responsible solely through the Mayor, and neither the Council nor any member thereof shall give orders to any of the subordinates of the Mayor in said departments, either publicly or privately.

The Council, the Mayor or any person or committee authorized by either or both of them shall have power to inquire into the conduct of any department or office of the City and to make investigations as to City affairs. For that purpose the Council may subpoena witnesses, administer oaths and compel the production of books, papers and other evidence material to said inquiry. The Council shall provide by ordinance penalties for contempt in refusing to obey any such subpoenas or failure to produce books, papers and other evidence, and shall have the power to punish any such contempt in the manner provided by ordinance.

The City Council shall require the Mayor, before entering upon the duties of his office, to execute a good and sufficient bond, with a surety company doing business in the State of Texas, and

approved by the City Council, as surety thereon, said bond to be in such amount as the Council may demand payable to the City of Houston and conditioned for the faithful performance of the duties of his office, the premium for such bond to be paid by the City.

Article VIb, as heretofore existing, is hereby repealed.

If any paragraph, clause, sentence or phrase of this section is for any reason held to be unconstitutional or invalid, the validity of the remaining portions of this article shall not be affected.

This amendment shall become effective on the 1st day of August, A. D. 1947. (Added by amendment July 26, 1947; amended January 27, 1968)

Section 8. SALARY OF THE MAYOR.

The salary of the Mayor shall be $20,000.00 per annum, payable in equal semi-monthly installments.

This amendment shall become effective on the 1st day of August, 1947. (Added by amendment August 15, 1942; amended July 26, 1947)

Section 9. Saving Clause.

If any section, sub-section, clause, sentence or phrase of this Article is for any reason held to be unconstitutional or invalid, such decision shall not affect the validity of this Article. (Added by amendment August 15, 1942)

Section 10. Repeal.

Article VI, as heretofore existing, is repealed. (Added by amendment August 15, 1942)

Sec. 11. Vice Mayor Pro Tem.

At the first regular meeting of the City Council after the induction of the newly elected Mayor and members of Council in office, Council shall appoint, by majority vote, one of its members who shall be known and designated as 'Vice Mayor Pro Tem', who shall continue to hold the title and the office until such member resigns or is replaced by a majority vote of City Council, and who shall receive no extra pay by reason of being or acting as Vice Mayor Pro Tem. (Added by amendment August 14, 1982)

Sec. 12. Disability of the Mayor and Mayor Pro Tem.

If for any reason the Mayor is absent from the City, sick, or unable to perform the duties of that office, and the Mayor Pro Tem is absent from the City, sick or unable to perform the duties of the office of Mayor Pro Tem, the Vice Mayor Pro Tem shall act as Mayor, and during such absences or disabilities shall possess all of the powers and perform all of the duties of the Mayor. (Added by amendment August 14, 1982)

Sec. 13. Vacancy.

In case of the death, resignation or permanent disability of the Mayor, or whenever a vacancy in the office of Mayor shall occur for any reason, and in case of the death, resignation or permanent disability of the Mayor and Mayor Pro Tem, the Vice Mayor Pro Tem shall act as Mayor and shall possess all of the rights and powers of the Mayor and perform all of his duties, under the official title, however, of Vice Mayor Pro Tem until an election is ordered by the City Council to fill the vacancy in the office of Mayor and a successor has been elected and shall have qualified. Said election, should a vacancy occur in the Office of Mayor, shall be called by the City Council and held within thirty days after the vacancy occurred and notice by publication given for at least twenty days, as may be required by law. (Added by amendment August 14, 1982)

ARTICLE VI-a. FISCAL YEAR, BUDGET ALLOWANCE, REPORTS APPROPRIATIONS, ETC.

Section 1. Fiscal year, Appropriations.

The current fiscal year of the City of Houston shall, beginning January 1, 1916, commence on the first day of January of each year and end on the 31st day of December next thereafter.

It shall be the duty of the City Council at the first meeting in January of any year to make

appropriations for the support of the city government until the general appropriation ordinance passed on the second meeting in February shall have been passed, and at the second meeting in February of each year, or at any time thereafter in any year, the City Council shall appropriate such sums of money, respectively, for the various departments of the City Government as they may deem necessary for their maintenance for the current fiscal year. (Added by amendment December 28, 1915)

Editor's note—The fiscal year dates specified in this section are no longer applicable. Based upon Texas Tax Code § 1.05, city council adopted Ord. No. 82-269, by which the city adopted the July 1—June 30 fiscal year. The provisions regarding appropriations are honored but on the basis of the current fiscal year calendar, rather than at the times stated in this section.

SEC. 2. ANNUAL BUDGET.

It shall be the duty of the Mayor from time to time to make such recommendations to the Council as he may deem to be for the welfare of the City, and each year to submit to the Council the annual budget of the current expenses of the City in accordance with the requirements of the State Budget Law applicable to cities and towns. (Added by amendment December 28, 1915; amended January 27, 1968)

Section 3. Reports of Heads of Departments.

The head of each department created by the City Council shall make a written report to the Mayor on or before the 15th day of January of each and every year, showing the operations of the department for the preceding year. These reports to be transmitted to the Mayor and shall accompany and be a part of the Mayor's report to the City Council, which report shall be made on or before the 15th day of February of each year. (Added by amendment December 28, 1915)

Section 4. REPORT OF THE CITY CONTROLLER.

The City Controller shall, on or before the first day of April of each year, prepare and transmit to the City Council a report of the financial transactions of the City during the fiscal year ending the last day of December, next preceding, and of its financial condition on said last named day of December. The report shall show an accurate statement in summarized form and also in detail of the financial receipts of the City from all sources and of the expenses of the City for all purposes, together with a detailed statement of the debt of said City and of the purposes for which said debt was incurred, and of the property of said City, and of the accounts of the City with the grantees of franchises. (Added by amendment December 28, 1915; amended July 26, 1947)

Section 5. Council to effect change.

The City Council shall, and it is hereby authorized to pass all such ordinances not inconsistent herewith, as may be necessary to fully effect the change from the present fiscal year to the fiscal year fixed by this article. (Added by amendment December 28, 1915)

Note—The title of this section was added by the editor; it is not titled in the certification of the 1915 Charter Election.

Section 6. Repeal of Laws in Conflict with this Article.

Section 8 of Article VI, the first and fourth paragraphs of Section 10 of Article VII, the first paragraph of Section 4 of Article VIII, and all other sections or parts of sections of the existing charter of the City of Houston in conflict with this article shall be and are hereby repealed. (Added by amendment December 28, 1915)

Section 7. Limits on All City Revenues.

SUBSECTION ONE—LIMITATION ON GROWTH IN REVENUES. City Council shall not, without the prior approval of 60% of those voting at a regular election, increase the City's "Combined Revenues" (see SUBSECTION SIX for definition) for any fiscal year in an amount greater than the City's Combined Revenues for the immediately preceding fiscal year, increased/decreased for: (a) the rate of change in the federal Consumer Price Index ("CPI") in the immediately preceding full calendar year for the Houston Primary Metropolitan Statistical Area ("PMSA"); and (b) the rate of change in the City's "Population" (see SUBSECTION SIX for the source of population data) in the last twelve

months for which such data is available from the specified source. If the actual Combined Revenues in any one year result in an amount less than the amount allowed under this SUBSECTION ONE, then such reduced amount shall become that year's Combined Revenues base amount for the following year's computation.

If the City is included in any National Disaster Area by federal declaration, the City may immediately increase its Combined Revenues. Such emergency revenue increases must be limited to the amount of emergency expenditures specifically identified and justified in the City's accounting records. Such emergency revenues will not be included in computing the following year allowable Combined Revenues.

SUBSECTION TWO—CERTIFICATION OF CITY COMPLIANCE. Before each year's City budget can be officially authorized by City Council, the City Controller must furnish written verification that the budget complies with the requirements of SUBSECTION ONE of this Charter amendment. Further, within four months after the end of each fiscal year, the City's independent accountants (firm that performs the City's regular financial audit) shall furnish a written verification that the City complied during such complete fiscal year with SUBSECTION ONE of this Charter amendment, or specify the amount of noncompliance. If the City exceeds the Combined Revenues allowable under SUBSECTION ONE, then, within 30 days after receiving notification from the City's independent accountants, the City shall transfer such excess amount to an interest-bearing Taxpayers Relief Fund. Monies in the Taxpayers Relief Fund cannot be used for City expenditures. Any time the Taxpayers Relief Fund balance reaches ten million dollars ($10,000,000) the entire balance shall be refunded to Houston citizens and business owners within 90 days in the manner deemed by City Council to be the most equitable and practicable. Within 30 days after the last refund check has been mailed, the City Controller shall furnish written assurance to City Council that all refunds have been mailed, in what total amount, in what manner the refunds were calculated and the total costs of calculating, preparing and mailing the refund checks. The total costs of calculating, preparing, and mailing such refund checks must be paid for out of the City's Combined Revenues for the year in which the checks are mailed, not out of the Taxpayers Relief Fund.

SUBSECTION THREE—VOTER COVENANTS WITH BONDHOLDERS. The City shall always honor its covenants with bondholders on long-term debt. However, SUBSECTION ONE of this Charter Amendment is inviolate. Therefore, shortfalls in debt coverage on Iong-term debt shall be made up from reductions in other expenditures.

SUBSECTION FOUR—REQUIRED ELECTION NOTICES. Before any election required for voter approval under SUBSECTION ONE or for voter approval required for issuance of long-term debt, City Council shall: (a) have published in the major Houston newspaper, at least six weeks prior to the election date, analyses of related anticipated debt service, revenues, expenditures, cash flows, and debt service coverage for each year until final maturity; and (b) hold at least three public hearings thereon at least ten days before the election, each at least a week apart from the other hearing. Two of such required public hearings will be held in the evening and one during the day.

SUBSECTION FIVE-EFFECTIVE DATE OF THIS AMENDMENT. This Charter Amendment shall become effective with the City of Houston's first fiscal year beginning after the date this Amendment is approved by the voters. The allowable Combined Revenues for the City for this initially effective fiscal year will be determined by using the actual Combined Revenues derived from the City's audited Comprehensive Annual Financial Report for the fiscal year ended June 30, 2001, increased by: (a) the percentage by which the estimated population (see SUBSECTION SIX for source) of the City at the last available reportable date prior to the beginning of this first effective fiscal year exceeds or drops below the City's population per the official 2000 Census by the United States Department of Commerce-Bureau of the Census; plus (b) the percentage by which the CPI for the City's PMSA at the end of the calendar year immediately preceding the beginning of this initially effective

fiscal year exceeds or drops below the CPI for the City's PMSA at the end of calendar year 1999. For fiscal years ending after this initially effective fiscal year the allowable Combined Revenues shall be computed as described in SUBSECTION ONE.

SUBSECTION SIX—DEFINITIONS. Within this Charter Amendment:

a. *"REVENUES"* means that term as used for cities by the Governmental Accounting Standards Board and the Government Finance Officers Association, and is to include both operating and non-operating revenues.

b. *"COMBINED REVENUES"* means the combined revenues of the City's General Fund, Enterprise Funds and Special Revenue Funds. However, "COMBINED REVENUES" shall exclude: (1) grant monies and other revenues received from other governmental entities; and (2) IntraCity (in other words, InterFund) revenues.

c. The annual "POPULATION" data shall be obtained from the State of Texas' State Data Center, and will be adjusted every ten years to the City's official census per the United States Department of Commerce-Bureau of the Census.

SUBSECTION SEVEN—SEVERABILITY. If any provision or paragraph of this Charter Amendment is declared unlawful by a court of proper jurisdiction, then such portion shall be deleted from the Charter and the remainder of this Amendment will remain in effect.

SUBSECTION EIGHT—ENFORCEMENT AND SANCTIONS FOR VIOLATION. Any person who voted in a City of Houston election held on this Amendment shall have the right and standing to enforce the provisions of any Charter Amendment approved by the voters at this election by injunction, declaratory judgment, contempt and/or any other remedy provided by law, notwithstanding any other valid law of equal or lesser authority in conflict, including all of the above paragraphs of this Amendment. (Added by amendment November 2, 2004)

ARTICLE VII. CITY COUNCIL

Section 1. COMPENSATION OF COUNCILMEN.

Each Councilman shall receive as compensation for his services the sum of $3,600.00 per annum, payable in equal semi-monthly installments, and in addition, all necessary expenses incurred by members of the City Council in the performance of their official duties shall be paid by the City.

The Councilmen shall not be required to devote their full time to the duties of their offices.

This amendment shall become effective on the 1st day of August, A. D. 1947. (Added by amendment August 15, 1942; amended July 26, 1947)

Sec. 2. Vacancies.

If the positions of six or fewer Council Members are vacant at any one time, the remainder of the City Council shall, by a majority vote, fill each such position. If the positions of seven or more Council Members are vacant at any one time, the remainder of the City Council shall call a special election to fill such positions, unless such vacancies occur within sixty days of a City General Election, in which event the remainder of the City Council shall, by a majority vote, fill each such position. A person selected to fill any such vacant position must meet all qualifications for such position and shall serve during the unexpired term of such position. (Added by amendment August 15, 1942; amended August 11, 1979)

Sec. 3. Meetings.

At eleven o'clock A.M. on the day the members of the City Council take office, they shall meet at the City Hall and thereafter all meetings of the Council shall be held in the City Hall at such times as may be prescribed by ordinance or resolution; but not less than one regular meeting shall be held each week unless postponed for valid reasons, to be spread on the minutes. Special meetings shall be called by the City Secretary upon the written request of the Mayor or three Council Members. Three or more City Council Members may also request, in writing,

that any lawful item(s), as specified in such request, be placed on the agenda of any designated, regular meeting of City Council, consistent with the notice requirements of the Texas Open Meetings Act. The Mayor shall ensure that such item(s) be placed on the agenda of the designated meeting, and shall continue to place the item(s) on the agenda of each subsequent regular meeting until the same shall be considered by City Council. Unless a request for an item(s) to be placed on the agenda of a City Council meeting specifies otherwise, it shall be treated as a request for the item(s) to be considered at a regular, as opposed to special meeting.

All meetings of the Council and of all committees thereof shall be open to the public and the rules of the Council shall provide that citizens of the city shall have a reasonable opportunity to be heard at any such meetings in regard to any matter to be considered, provided that the Council may enact ordinances requiring applications for hearings to be in writing and shall have power to prescribe rules and regulations for such hearings.

A quorum shall consist of a majority of the members elected, except where the number of members, due to vacancies, is reduced to less than two-thirds of the total number of members elected, in which event a quorum shall consist of all the remaining members; but a less number than a quorum may adjourn from time to time and compel the attendance of absent members in such manner and under such penalties as may be prescribed by ordinance.

The council shall act only by ordinance, resolution or motion, and all ordinances, resolutions or motions, except ordinances making appropriations, shall be confined to one subject, which shall be clearly expressed in the title, and ordinances making appropriations shall be confined to the subject of appropriation, except that a single ordinance authorizing one or more contracts, agreements or obligations may also make an appropriation of money for the same.

The ayes and nays shall be taken upon the passage of all ordinances, resolutions and motions and entered upon the minutes of the proceedings of the Council, and every ordinance, resolution, or motion shall require on final passage the affirmative vote of at least a majority of the members present. No member shall be excused from voting except on matters involving the consideration of his own official conduct, or where his financial interests are involved. (Added by amendment August 15, 1942; amended August 11, 1979, August 14, 1982; Amended by Ord. No. 2023-1012, §§ 7, 8, 11-20-2023, election of 11-20-2023, Prop. A; Amended by Ord. No. 2023-1013, §§ 2, 3, 11-20-2023, election of 11-7-2023, Prop. A)

Section 4. Restrictions upon Members of the Council.

No member of the City Council shall hold any other public office, or hold any office or employment, compensation for which is paid out of public moneys, except membership on the Board of Appraisement; nor be elected or appointed to any office created by, or the compensation of which was increased or fixed by the City Council while he was a member thereof, until after the expiration of at least one year after he has ceased to be a member of the City Council. Nor shall any member of the City Council, or any officer of the City of Houston, be pecuniarily interested, directly or indirectly, in any contract let by the city, or in any work done by the city, or in any matter wherein the rights or liabilities of the City of Houston are or may be involved.

In the event such officer of the City of Houston shall become interested, directly or indirectly, in any contract or work, purchase or sale made by the City of Houston, then the said contract or work, purchase or sale, shall be null and void and shall be discontinued, and new arrangements shall be entered into as in case of the incipiency of the contract of work, purchase or sale. (Added by amendment August 15, 1942)

Section 5. City Council May Summon Witnesses.

The City Council shall have power to summon and compel the attendance of witnesses and the production of books and papers before it whenever it may be necessary for the more effective discharge of its duties, and shall have the power

to punish for contempt with the same fines and penalties as the County Judge may impose in punishing for contempt before the County Court. All processes shall be signed by the Mayor and attested by the City Secretary and shall be served by the Chief of Police or any police officer of the said city.

The Mayor, City Secretary or any member of the City Council shall have the authority to administer oaths in any matter pertaining to municipal affairs. (Added by amendment August 15, 1942)

Section 6. Rules of the Council.

The City Council shall determine its own rules of procedure, may punish its members for misconduct, shall compel the attendance of members, and, by a vote of a two-thirds majority of the members elected, may impeach and remove a member.

Any member of the City Council who shall have been convicted of bribery or who shall violate any

of the provisions of this Article shall forfeit his office and the emoluments attached thereto. (Added by amendment August 15, 1942)

Section 7. Passage of ordinances after introduction.

No ordinance shall be passed finally on the date it is introduced, except in the case of public emergencies, and then only when requested by the Mayor in writing; provided that no ordinance or resolution making a grant of any franchise or special privilege shall ever be passed as an emergency measure. (Added by amendment August 15, 1942)

Note—The title of this section was added by the editor; it was not titled in the ordinance calling the 1942 Charter Election.

Section 8. May Establish Office, Fix Salary and Define Duties.

The City Council shall, consistent with the provisions of this Charter, have power to establish any office that may in its opinion be necessary or expedient for the conduct of the city's business or government, and may fix its salary and define its duties; provided, however, that all offices established by the Council shall be subject to discontinuance or abolishment by the Council at any time, and in no case shall any officer or employee of the city be entitled to receive any compensation or emolument of any office which may be abolished, or from which he may be removed, except for services rendered to the date when the office was abolished or the incumbent removed.

The Council shall require all officers of the city to give bond in such sum as may be prescribed by ordinance, which sum shall always be of sufficient amount amply to protect the city. (Added by amendment August 15, 1942)

Sec. 9. Limitations on the power to sell or lease real estate.

In addition to the power already possessed by it, the City of Houston shall have the power to lease any real estate or interest therein, mineral or otherwise, owned by it. The city council shall not have the power to sell or dispose of any real estate or interest therein, or make any mineral lease of land belonging to the city, except by ordinance adopted by a vote of two-thirds of the council. The City Council shall enact by a vote of two-thirds of the Council, such ordinances governing the sale, lease or disposal of said real estate or interest therein as it deems to be in the best interest of the City; which shall establish the minimum monetary value of the real estate or interest therein at which the Council must appoint two qualified appraisers for the purpose of determining fair market value prior to completion of the transaction; which may define and identify authorized transactions involving the sale, lease or disposal of said real estate or interests therein; and which may outline the procedures for and the manner in which such transactions shall be administered.

It shall be the duty of the Tax Assessor and Collector of the City of Houston, prior to June 1st of each year, to prepare and present to the City Council an inventory of all of the real estate or interest in real estate owned by the City of Houston, together with an inventory of all of the improvements situated thereon.

The provisions of this section shall not apply to the sale or conveyance of property by the City acquired by it at the foreclosure of a tax lien. (Added by amendment August 15, 1942; amended November 5, 1991)

Section 10. Councilmen have Legislative Power Only.

All legislative powers of the City shall be vested, subject to the terms of this Charter and the Constitution of the State of Texas, in the City Council; and no Councilman shall exercise any administrative powers or be the head of any department. (Added by amendment of August 15, 1942)

Section 11. Provision for Interest and Sinking Fund on Bonded Indebtedness in Budget.

In making up the budget allowance for any current year, the City Council shall first make provision for the payment of the interest and the creation, setting aside and preservation of a legal sinking fund upon all of the outstanding bonded

indebtedness of the city, and shall then make such appropriations as the remaining revenues of the city justify, to be apportioned among the respective departments, or otherwise appropriated for public uses, as to the Council may seem best; provided, however, that in no case shall the entire appropriation as made, which comprehends interest and sinking fund on the bonded debt, together with other public uses and purposes, ever exceed the estimated available resources, which shall be based upon the probable revenues of the city derived from ad valorem taxes upon the basis of the total valuation of the property for taxation for the preceding year, and of such other contingent revenues of the city as may probably accrue.

It shall be deemed a malfeasance for the City Council to make an appropriation in the budget the sum total of which shall exceed the estimated available or probable revenues for any current fiscal year. (Added by amendment of August 15, 1942)

Section 11a. Appropriation for emergency fund.

The City Council at the time it makes the budget allowance for any current year, or at any subsequent time, may also appropriate a sum not to exceed Five Thousand Dollars ($5,000.00) to be used by the Mayor as an emergency fund for any current year, and for which he shall not be required to account. (Added by amendment July 26, 1947)

Note—The title of this section was added by the editor; it is not titled in the ordinance calling the 1947 Charter Election.

Section 12. Savings Clause.

If any section, sub-section, clause, sentence or phrase of this article is for any reason held to be unconstitutional or invalid, such decision shall not affect the validity of this article. (Added by amendment August 15, 1942)

ARTICLE VII-a. RECALL OF OFFICERS.

Section 1. Scope of Recall.

The holder of any public office in the City of Houston, whether elected thereto by the people or appointed by the City Council, may be removed from office by recall. (Added by amendment October 15, 1913; amended November 6, 2012)

Section 2. Petition—Generally.

All petitions for recall of any officer of the City of Houston, shall be instituted by filing with the City Secretary a verified written petition requesting the removal of such officer, which said petition shall be signed by qualified voters of the City of Houston, in number not less than twenty-five per cent of the total votes cast calculated in accordance with Article V, Section 10 of this Charter, based on the votes cast city-wide if the officer sought to be recalled was elected city-wide, or if the officer sought to be recalled was elected by district, based on the votes cast in the district which the officer sought to be recalled currently serves. The signers of said petition shall also set opposite their respective names, the number of his residence, naming the street, and shall also state the day of the month and the year when such signature was affixed. (Added by amendment October 15, 1913; amended November 6, 2012)

Section 3. Form of Petition.

The form of petition above provided for shall be as follows:

TO THE MAYOR AND CITY COUNCIL
OF THE CITY OF HOUSTON:

We, the undersigned hereto, who are qualified voters of the City of Houston, request the removal of _____ from the office of _____ (petition shall set forth distinctly and specifically grounds showing or tending to show some ground of incompetency or unfitness for or misconduct or malfeasance in the office, upon which the petition for removal is predicated, and if there be more than one ground, shall specifically state each ground with such certainty as to give the officer sought to be removed, notice of the matters and things which he will be called to answer). Said petition shall be signed by the requisite number of voters as provided by Section 2 of this Article. Each signature to said

said petition shall be proved or acknowledged as required of petitioners by Article IX, Section 3 of this Charter, or shall be verified as follows.

STATE OF TEXAS §

COUNTY OF HARRIS §

I, _____, being first duly sworn on oath depose and say: that I am one of the signers of the above petition, that the statements made therein are true, and that each signature appearing thereto was made in my presence on the day and date it purports to have been made, and I solemnly swear that the same is a genuine signature of the person whose name it purports to be.

_____

Sworn to and subscribed before me this ____ day of _____, 2____.

/s/ _____
Notary Public, State of Texas

(Added by amendment October 15, 1913; amended November 6, 2012)

Editor's note—In light of court decisions addressing the constitutionality and enforceability of circulator requirements, the City will accept petitions circulated by individuals that are not registered to vote in the City or are not residents of the City, provided the circulators complete the City's alternate affidavit form set forth in section 2-3.1 of the City Code of Ordinances. In lieu of the affidavit provided in Article VII-a, section 3 of the City Charter, circulators who are not registered to vote in the City or are not residents of the City must use the "Affidavit for Circulators Who Are Not Registered Voters in the City of Houston or Are Not Residents of the City of Houston," available in the City Secretary's Office and at the City Secretary's Office Homepage here: http://www.houstontx.gov/citysec/.

Section 3a. Various Papers, Certifications, Filing.

The petition may consist of one or more papers circulated separately, and the signatures thereto may be upon the paper or papers containing the formal petition, or upon other papers attached thereto; each signer of a petition shall sign his name in ink or indelible pencil. The verification may be made by one or more petitioners, and the several parts of the petition may be verified separately and by different persons, but no signature to such petition shall remain effective or be counted which was placed thereon more than thirty days prior to the filing of such petition or petitions with the City Secretary. All papers and documents comprising a single petition shall be filed with the Secretary on the same day, and the Secretary shall immediately notify in writing the officers sought to be removed. (Added by amendment October 15, 1913)

Section 4. Objection to Petition.

Within ten days after the filing of petition, the incumbent whose removal is requested shall file with the City Secretary his objection in writing to the sufficiency of such petition, and he cannot thereafter contest its sufficiency upon any objection not so filed. Within ten days after exceptions have been filed, if the petition is filed to remove an appointee of the Council, then the City Council shall sit as a body to hear and determine the sufficiency of the objections, and the exceptions shall be sustained in the particulars in which the same are held to be sufficient, and the signers of said petition may amend said petition to meet the requirements of the ruling of the Council, and if the said objections go to the form and manner of the charge preferred it shall be necessary for said petition to be recirculated and signed anew, but if the objections go to the number of the signers, or the genuineness of the signatures, or the fact of the party signing being a qualified voter, and are sustained, then said petition shall be dismissed and the parties may immediately reinstitute a petition to remove said party.

Any member or members of the City Council against whom a petition is directed shall not be eligible to act in the matter of the determination of the sufficiency of said objections, but the remainder of said Council, if constituting a majority shall serve and act therein, and a majority of the votes of those members of the Council acting on the sufficiency of the petition shall control; provided, that should the petition be directed against a majority of the members of the City Council then same shall be presented to and acted upon by one of the District Judges of Harris County, Texas, whose decision on the sufficiency of said petition shall be final, and who, if he shall sustain said petition shall order

the Council to call a recall election to be held as provided in Section 7 hereof. Any exceptions or objections to the sufficiency of the petition must be specific and definite and no general objections will be entertained. (Added by amendment October 15, 1913)

Section 5. The Certificate of the Secretary.

On or before the thirtieth day after the date of filing of the petition the City Secretary shall certify to the City Council (a) the minimum number of signatures necessary to qualify the petition as calculated in accordance with Section 2 of this Article VII-a, and (b) the number of valid signatures on said petition, and shall present such petition and certificate to the Council. (Added by amendment October 15, 1913; amended November 5, 1991; amended November 6, 2012)

Section 6. Amendment of Petition.

If the petition is insufficient in respect to the matters charged against the officer sought to be removed, it may be withdrawn by the person filing it, and amended as many times as desired within twenty days of the time when objections are sustained thereto. The duty of the Secretary shall be the same with respect to any amended petition as with the original petition. (Added by amendment October 15, 1913)

Section 7. Calling of Election.

If the petition be signed as herein provided, and if it set forth the grounds of objection as provided in Section 3 hereof and same is not declared insufficient upon objection thereto as provided in Section 4 hereof, the Council shall within ten days after the final certification of the Secretary, unless the incumbent sought to be removed resigns within five days after such final certification, order a special election to be held on the next uniform date prescribed by the Texas Election Code to determine whether the incumbent sought to be removed should be recalled, provided that sufficient time remains to properly order and conduct such election, and if time is not sufficient for such election, the election shall be held on the next available uniform date prescribed by state law. (Added by amendment October 15, 1913; amended November 6, 2012)

Section 8. Result of Election: Petition to Recall.

If the person sought to be removed shall at said election be recalled, his tenure of office shall terminate upon the determination of the result of the election by the City Council, who shall examine, count and canvass the returns and declare the result as elsewhere provided in this Charter for other elections; and, if an appointed officer, his successor shall at once be appointed by the Mayor and City Council, as provided in this Charter, and if an elective officer, provision shall at once be made for the election of a successor to fill the vacancy, as elsewhere provided for in this Charter and State law. (Added by amendment October 15, 1913; amended November 6, 2012)

Section 9. Qualification of Recalled Officers.

Any officer removed from office by recall election, or who shall resign from said office pending recall proceedings against him, shall not be appointed or elected to any city office or appointment within two years after his removal or resignation. (Added by amendment October 15, 1913)

Section 10. Joinder of Several Officers in One Petition.

Two or more officers subject to recall, as provided for in this amendment may be joined in one petition for removal, and one election may be held therefor. (Added by amendment October 15, 1913)

Section 11. Limitation on Filing Petition.

No petition for the recall of any officer shall be filed until eight months after the election or appointment and the qualification of such officer, nor shall there be more than one recall election in any one calendar year. (Added by amendment October 15, 1913; amended November 6, 2012)

ARTICLE VII-b. LEGISLATION BY THE PEOPLE. INITIATIVE AND REFERENDUM.

Section 1. General Power.

The people of Houston, in addition to the method of legislation hereinbefore provided, shall have the power of direct legislation by the initiative and referendum. (Added by amendment October 15, 1913; amended November 5, 1991)

Section 2. The Initiative.

The initiative shall be exercised in the following manner:

(a) *Petition.* A petition signed and verified in the manner and form required for recall petition in Article VII-a by qualified voters equal to fifteen per cent of the total vote cast as calculated in accordance with Article V, Section 10 of this Charter, next preceding the filing of said petition, accompanied by the proposed legislation or measure in the form of a proposed ordinance or resolution, and requesting that such ordinance or resolution be submitted to a vote of the people, if not passed by the Council, shall be filed with the City Secretary.

(b) On or before the thirtieth day after the date of filing of the petition the City Secretary shall certify to the City Council (a) the greatest total vote cast for Mayor at any city general election held within three years next preceding the date of the filing of such petition, and (b) the number of valid signatures on said petition, and shall present such petition and certificate to the Council.

(c) *Action by the Council upon Petition.* If such petition be signed, as in the Charter provided, by qualified voters equal to fifteen per cent of the total vote cast as calculated in accordance with Article V, Section 10 of this Charter, next preceding the filing of such petition, the Council, within ten days after the receipt thereof, except as otherwise provided in this Charter, shall either pass such ordinance or resolution without alteration, or submit it to the popular vote at a special election, which must be held on the next uniform date prescribed by the Texas Election Code, provided that sufficient time remains to properly order and conduct such election, and if time is not sufficient for such election, the election shall be held on the next available uniform date prescribed by state law. (Added by amendment October 15, 1913; amended November 5, 1991; amended November 6, 2012)

Editor's note—In light of court decisions addressing the constitutionality and enforceability of circulator requirements, the City will accept petitions circulated by individuals that are not registered to vote in the City or are not residents of the City, provided the circulators complete the City's alternate affidavit form set forth in section 2-3.1 of the City Code of Ordinances. In lieu of the affidavit provided in Article VII-a, section 3 of the City Charter, circulators who are not registered to vote in the City or are not residents of the City must use the "Affidavit for Circulators Who Are Not Registered Voters in the City of Houston or Are Not Residents of the City of Houston," available in the City Secretary's Office and at the City Secretary's Office Homepage here: http://www.houstontx.gov/citysec/.

Section 3. Referendum.

If prior to the date when an ordinance or resolution shall take effect, or within thirty days after the publication of same, whichever is later, a petition signed and verified, as required in section 2(a) hereof, by the qualified voters equal in number to ten percent of the total vote cast as calculated in accordance with Article V, Section 10 of this Charter, shall be filed with the City Secretary, protesting against the enactment or enforcement of such ordinance or resolution, it shall be suspended from taking effect and no action theretofore taken under such ordinance or resolution shall be legal and valid. Immediately upon the filing of such petition the City Secretary shall do all things required by section 2(b) of this Article. Thereupon the Council shall immediately reconsider such ordinance or resolution and, if it does not entirely repeal the same, shall submit it to popular vote at the next city general election, or the Council may, in its discretion, call a special election for that purpose; and such ordinance or resolution shall not take effect unless a majority of the qualified voters voting

thereon at such election shall vote in favor thereof. (Added by amendment October 15, 1913; amended November 6, 2012)

Section 4. Submission by the Council.

The Council, on its own motion, may submit to popular vote for adoption or rejection or repeal at any election any proposed ordinance or resolution or measure, in the same manner and with the same force and effect as provided in this Article for submission on petition. (Added by amendment October 15, 1913; amended November 6, 2012)

Section 5. Form of Ballots.

The ballots used when voting upon such proposed and referred ordinances, resolutions or measures shall set forth their nature sufficiently to identify them, and shall also set forth upon separate lines the words "For the Ordinance" and "Against the Ordinance", or "For the Resolution" or "Against the Resolution." (Added by amendment October 15, 1913; amended November 6, 2012)

Section 6. Publication of Ordinance, etc. Notice of Election.

The Secretary shall publish at least once, every proposed or referred ordinance or resolution in some daily newspaper in the City of Houston within fifteen days before the date of the election; and shall have such other notices, and do such other things relative to such election as are required in general municipal elections, or by the ordinance calling said election. (Added by amendment October 15, 1913)

Section 7. Adoption of Ordinance.

If a majority of the qualified voters voting on any proposed ordinance or resolution or measure shall vote in favor thereof the same shall thereupon or at any time fixed therein become effective as a law or as a mandatory order to the Council. (Added by amendment October 15, 1913; amended November 6, 2012)

Section 8. Inconsistent Ordinances.

If the provisions of two or more proposed ordinances or resolutions approved at the same election are inconsistent, the ordinance or resolution receiving the highest number of votes shall prevail. (Added by amendment October 15, 1913)

Section 9. Repeal or Amendment of Ordinances Passed by the People.

No ordinance or resolution, which has been passed by the Council upon a petition, or adopted by popular vote, under the provisions of this Article, shall be repealed or amended, except by the Council in response to a referendum petition or by popular vote thereon. (Added by amendment October 15, 1913)

Section 10. Number of Elections.

There shall not be held under this Article more than one special election in any period of six months. (Added by amendment October 15, 1913)

Section 11. Regulations by Council.

The Council, by ordinance may make other and further regulations for carrying out the provisions of this Article not inconsistent herewith. (Added by amendment October 15, 1913)

Section 12. Certain sections not construed to be repealed.

Nothing herein shall be construed to in any wise affect, impair or repeal Sections 17 and 18 of Article II or any other provision of the Charter affecting the granting of franchises or privileges or the referendum thereon, but the same shall continue to remain in full force and effect as though this Article had not been adopted. (Added by amendment October 15, 1913; amended November 6, 2012)

Section 13. Referendum on Zoning.

The City of Houston shall have the power to adopt a zoning ordinance only by: (a) allowing a six month waiting period after publication of any proposed ordinance for public hearings and debate

and (b) holding a binding referendum at a regularly scheduled election. Any existing zoning ordinance is hereby repealed. (Added by amendment January 15, 1994; amended November 6, 2012)

ARTICLE VIII. CITY CONTROLLER.

Section 1. ELECTION, SALARY, BOND, ETC.

The City Controller shall receive a salary of $14,800.00 per annum, payable in equal semi-monthly installments, and shall make a bond in the sum of $50,000.00 conditioned as the Council may require. He shall not be removed from office except by impeachment proceedings, as provided for in the case of the Mayor and Councilmen, or by recall as provided in this Charter.

This section shall be effective on the 1st day of August, A. D. 1947. (Act of 1905; amended October 15, 1913; December 30, 1922, January 28, 1933, July 26, 1947, November 18, 1961)

Sec. 2. Duties of the controller.

It shall be the duty of the controller to superintend and supervise the fiscal affairs of the City of Houston, and to manage and conduct the same as prescribed by this Charter and the ordinances of the City of Houston that are now or may be hereafter enacted; and said controller shall prepare and publish in some newspaper in the City of

Houston, not later than the 5th day of each month, a notice declaring that a statement of the preceding month's expenses is available for examination and inspection in the office of the controller. Such statement shall show the total amount paid in monthly salaries to all the employees in each department of the city and shall also show the amount paid on the weekly pay roll to all persons working for the city by the week or day, and shall also show the cost of maintaining each department of the city government, and the total amount of each month's expenses so incurred; said statement shall also show the cost of improvement and extension work not properly classed as current expenses and not done under contract with outside parties, and shall show all other extraordinary expenditures, for interest on bonds, payments on bonds, etc., which statement shall be signed and sworn to by said controller, and he shall permit any qualified elector at all reasonable hours to examine or inspect the books of the city, furnishing such party all reasonable assistance therein, and the council shall pass suitable ordinances to enforce this section and provide suitable penalties. (Act of 1905; amended October 15, 1913, August 14, 1982)

Section 2a. Vacancy.

In the case of the death, resignation or permanent disability of the City Controller or whenever a vacancy in the office of the City Controller shall occur for any reason, the City Council shall appoint a successor to fill the unexpired term of such office, provided that City Council may appoint someone temporarily for not more than sixty (60) days to hold such office, which person or persons shall be qualified in like manner as is required of persons elected to the office of City Controller. (Added by amendment August 14, 1982)

Section 3. Books of Account.

It shall be the duty of the Controller to keep books of account of the City of Houston, and to make such financial reports and statements as are provided by the terms of this Act. His books of account shall exhibit accurate and detailed statements of all moneys received and expended for account of the City by all City officials and other persons, and shall show in detail the property owned by the City and the income derived therefrom.

He shall also keep separate accounts of each and every appropriation made by the City Council, showing the date thereof and the purpose for which the same is made, and shall show for what each payment of any public money is made and the manner of making the same, and to whom same is made.

He shall keep a separate account with each department of the City government, and also such other accounts as may be necessary to show a complete financial statement of the City, and he shall be prepared at every regular meeting of the City Council to give such information concerning the finances of the City as the Council may require.

All warrants or orders for payment of any public fund or moneys for any purpose shall be signed by the Controller and the Mayor. No warrant not signed by the Controller shall be authority for the payment of any public funds whatever, but the Controller shall in no instance, unless the money is in the treasury and in the fund against which it is drawn, sign any warrant or order for the payment of any sum or amount for any purpose; provided, however, that nothing herein contained shall prevent the issue and sale of warrants to anticipate the current revenue for any one year, which said warrants shall bear such rate of interest, not exceeding five per cent., as the City Council by ordinance may prescribe.

He shall not sign any contract nor make or execute any warrant or order for the payment of any sum of money, unless the same be legal, and all prerequisites and requirements shall have been complied with, nor until after an appropriation has been duly and legally made therefor.

He shall, whenever deemed necessary, require all accounts presented to him for settlement or payment to be certified to by affidavit, and he is hereby authorized to administer oaths, with authority to compel and require persons to answer such questions as may be propounded to them touching the correctness of any account or claim against the City. He shall require all persons who

shall have received any moneys belonging to the City and not having accounted therefor, to settle their accounts, and it is hereby made his duty from time to time to require all persons receiving moneys, or having the disposition or management of any property of the City of which an account is kept in his office, to render statements thereof to him; provided, that no warrant or order shall ever be issued in favor of any person or corporation, or to the assignee or agent of any person indebted in any manner for taxes or otherwise to the City, unless such debt so due and owing to the City be paid.

No disbursing officer of the City, nor any one having money in his possession for the account of the City, shall pay the same to any person or persons for the account of the City, except to the regularly designated officer or custodian of the public funds for the City, except upon draft or warrant countersigned by the Controller of the City of Houston, and signed by the Mayor; and the Controller shall not countersign any such draft or warrant until he has audited and examined the claim and found the same justly and legally due and payable, and that the payment has been legally authorized, and appropriation therefor duly made, and that the appropriation has not been exhausted. (Act of 1905)

Section 4. Annual Report.

In addition to the annual statement herein required, and of the reports which may be demanded by the Council at any time, it is especially made the duty of the Controller to be able to show at any time, and certainly upon or immediately after the first of each month, a comprehensive and accurate statement of the financial affairs of the City of Houston, and if any officer of any department, or any employe of the City, shall fail to make such stated or stipulated reports as, and at the times, required either by the Mayor or the City Council, it shall be the duty of the Controller to report such delinquency or failure to the Mayor, and further to state at any time any carelessness or negligence of any officer or employe in the making or stating of reports covering any matter within the range of the duty of said officer or employe. (Act of 1905; amended December 28, 1915)

Section 5. Right to Examine the Books of the Grantees of Public Franchises.

The City of Houston shall have the right to regulate the rates, fares, tolls and charges to be collected from the public by any holders, owners, operators, persons or incorporations enjoying any grants or franchises from the City of Houston pertaining to public utilities, including furnishing of lights, water, telephones, and street car service, etc., pertaining to a public or quasi public duty, and the right and authority is hereby given to the Mayor or to the City Council to require the City Controller or such other officer or employe as may be designated, to examine, carefully inspect all of the books, accounts, papers and documents, as well as the property of such persons or corporations using and enjoying any of said grants or franchises from the City of Houston as above stated, and to make such reports of said examination as required by the Mayor or City Council, when deemed necessary, for the following purposes:

1. When such franchise or grant was made upon the consideration and agreement that the City of Houston should receive a per cent. or portion of the revenue derived from the use of said grant or franchise.
2. When the persons or corporations above referred to have listed their property for taxation at a valuation deemed by the City Council or the Mayor to be below its actual value, or fails to list the same for taxation.
3. When the City Council desires to fix the rates, fares, tolls and charges which said persons or corporations above described shall charge the public for water, lights, transportation, or other services rendered or furnished under the franchises granted to it or them by the said City of Houston, and the information is desired or deemed necessary by the Mayor or City Council as a basis upon which to fix a proper rate.
4. When the Mayor or City Council have directed the individuals or corporations above specified to extend their lines and service or to improve their service in any manner necessary for the public comfort

and convenience, or to make improvements and betterments of their property, and such persons or corporations demur thereto, on the ground that the income from their property used under said franchise is not sufficient to justify the same.

Such examinations and reports provided for in this Section are for the purpose of ascertaining the value of the property and the income derived from it, and the reasonable expense for its operation. (Act of 1905)

Section 6. Reports of Owners of Franchises.

It is hereby made the duty of every person, firm or corporation, assignee, trustee or receiver owning, operating or controlling any property under a franchise or grant from the City of Houston to make and submit to the City Council of the City of Houston, within sixty days after the first day of January of each and every year, an annual report in writing, verified under oath by such person, firm, or the president, treasurer, general manager, trustee, assignee or receiver of such corporations, which said report shall contain a complete statement of the financial condition of said person, firm or corporation, or assignee, trustee or receiver, including the authorized capital stock, the amount of stock issued and outstanding, the bonded indebtedness, if any, the indebtedness of any and all kinds, the assets of any and all kinds including personal property and real estate, the earnings, gross and net, the operating and other expenses, and all such other detailed information as may be prescribed from time to time by the City Council by ordinance; and every such person, firm or corporation, assignee, trustee or receiver shall also be required, whenever requested by the City Council, within 30 days thereafter, to make such other and further reports and to give such other and further information as may be required by said City Council from time to time in regard to their said business.

Any such person, firm or corporation, assignee, trustee or receiver who shall fail or refuse to make the annual report herein provided for, or fail or refuse to furnish any such information as may be requested by the City Council as herein provided for, or make a report false in any material particular, or fail or refuse to permit the examination provided for in section 5 of this Article shall forfeit and pay to the City of Houston the sum of Fifty Dollars per day for each and every day during which he or it shall so fail or refuse to make and submit such annual report, or give such information as may be requested or permit a report false in any material particular to remain on file uncorrected, or refuse to permit the examination provided for in Section 5 of this Article, which said sum may be recovered by the City of Houston in any court of competent jurisdiction. That in addition to such penalty or penalties the City Council shall, in the event of a failure or refusal to make such annual report, or to give additional information, or to permit such examination, or to allow to remain on file a report false in any material particular, pass appropriate ordinances forfeiting the franchise of such person, firm, corporation, assignee, trustee or receiver.

That the City Council, in addition to the foregoing penalties provided for, may pass such ordinances as it may deem necessary to enforce the provisions of this section and fix a penalty for the violation hereof in any sum not exceeding One Hundred Dollars and provide that each and every day that such failure or refusal continues, or such false report is allowed to remain upon file shall constitute a separate and distinct offense, and provide in such ordinances that the officers, servants and agents of any such person, firm or corporation, or assignee, trustee or receiver having the custody, management and control of said franchise and its books and property shall also be deemed the owners and operators and controllers of such franchise, and they, as well as such persons, firms, or corporations, trustees, assignees or receivers, shall be guilty of violation of such penal ordinances as may be passed hereunder. (Added by amendment October 15, 1913)

Section 7. Audits.

The City Controller shall be responsible for conducting internal audits, in accordance with professionally recognized auditing standards, of the operations of all City departments, offices, agencies and programs. The scope of internal auditing shall encompass an objective and systematic examination of evidence to provide an

independent assessment of the efficiency and effectiveness of the city's system of internal controls and the quality of performance based on quantifiable criteria in meeting objectives. Nothing in this section shall extend the authority of the City Controller to initiate or implement policy beyond the financial oversight already granted by the Charter. (Added by amendment November 2, 2004)

ARTICLE IX. GENERAL PROVISIONS

Section 1. Actions by Citizens.

Any citizen who is a property tax-payer of the City of Houston may maintain an action in the proper court to restrain the execution of any illegal, unauthorized or fraudulent contract or agreement on behalf of said City, and to restrain any disbursing officer of said City from paying any illegal, unauthorized or fraudulent bills, claims or demand against said City, or any salaries or compensation to any person in its administrative service whose appointment has not been made in pursuance of the provisions of law and the regulations in force thereunder. And in case any such illegal, unauthorized or fraudulent bills, claims or demands or any such salary or compensation shall have been paid, such citizen may maintain an action in the name of said City against the officer making such payment, and the party receiving the same, or either, or both, to recover the amount so paid, and such amount, after deducting all expenses of the action, shall be paid into the City treasury; provided, however, that the court may require such citizen to give security to indemnify the City against costs of court, unless the court shall decide that there was reasonable cause for bringing the action. The right of any property tax-payer of the City to bring an action to restrain the payment of compensation to any person appointed to or holding any office, place or employment in violation of any of the provisions of this Act, shall not be limited or denied by reason of the fact that said office, place or employment shall have been classified as, or determined to be, not subject to competitive examination; provided, however, that any judgment or injunction granted or made in any such action shall be prospective only, and shall not affect payments already made or due to such persons by the proper disbursing officers.

In case of any unsatisfied judgment, or any suit or process of law against said City, any five or more citizens who are freeholders of said City, shall, upon petition, accompanied by affidavit that they believe that injustice will be done to said City in said suit or judgments, be permitted to intervene and inquire into the validity of said judgment, or defend said suit or action as fully and completely as the officers of said City would by law have the right to do. (Act of 1905)

Sec. 2. Elections.

That in each voting precinct of the City as the same may be legally defined, shall be established and arranged at least one voting place, and where two or more voting places are established, they shall be so located as to be most convenient to the greatest number of voters, with a distinct set of election officers, ballot boxes and registration books for each voting place; provided, the voter shall vote in the district or precinct of his residence. The city council shall make all necessary regulations concerning elections; the manner and method of holding the same. Such regulation, however, shall be in keeping with the provisions of this Act, and shall be in keeping with and consistent with the provisions of the State law applicable to elections and municipalities, in so far as the same may be practicable, and the city council shall provide for the examination and counting of the returns of elections, declarations of the result thereof, and the issuance of proper certificates to the successful candidates; and it is hereby made the duty of the council to examine and count the returns at its first regular meeting after the election shall be held, or if no regular meeting shall be held within one week after an election is held it is hereby made the duty of the mayor to call a special meeting of the council for the purpose of counting the vote and determining the result of the election within one week after the election is held, and the officers declared to be elected at such election shall be entitled to qualify immediately after the declaration of the result of the election, upon taking the oath of office prescribed by law.

The city council may, consistent with the other provisions of this Act, and conforming to all the provisions of the State law regulating primary elections in cities and towns in so far as the same may be applicable, prescribe the manner and method of holding primary elections by all political parties or political organizations of any kind whatsoever, and to determine the rules that shall obtain with respect to the representation the respective parties or candidates may be entitled to at the polls; may prescribe an official ballot, official returns, etc., and the expense of all primary elections held for the purpose of nominating candidates of any political party or organization for city offices shall be borne and paid for by the city of Houston. (Act of 1905; amended by Act of April 13, 1905)

Section 3. Petitions.

The petitions provided for in this Act need not be on paper, and may be printed or written, but the signatures thereto must be the autograph signatures of the persons whose names purport to be signed. To each signature the house address of the signer must be added, and the signature must be made acknowledged or proved before an officer authorized by law to take acknowledgments and proof of deeds. The certificate of such officer, under his official seal, that a signature was so made and acknowledged or proved shall be sufficient proof of the genuineness of the signature for the purposes of this Act. The signing of another's name, or of a false or fictitious name, to a petition, or the signing of a certificate falsely stating either that a signature was made in presence of the officer or acknowledged or proved before him, shall be punishable as a forgery. (Act of 1905)

Section 4. Public Act.

That this act shall be deemed a public Act, and judicial notice shall be taken thereof in all courts. (Act of 1905)

Section 5. Existing Ordinances.

All ordinances of the City of Houston, not inconsistent with the provisions of this Charter, shall remain in full force and effect, until altered, amended or repealed by the City Council. Provided, that the power to pass such ordinances under former charters has not been repealed expressly or impliedly by the terms of this Act. (Act of 1905)

Section 6. Repealed.

Section 7. Printed Ordinances as Evidence.

All ordinances of the City of Houston published in book or pamphlet form, and purporting to be published "by authority of the City Council of the City of Houston," shall be received by all the courts of the State of Texas as prima facie evidence of the due passage and publication of such ordinances as appear therein; provided, that no person shall be precluded from showing by competent evidence that any ordinance published "by authority of the City Council of the City of Houston," as aforesaid, is not a true copy of the original ordinance. (Act of 1905)

Section 8. City not Required to Give Bond.

It shall not be necessary in any action, suit or proceeding in which the City of Houston is a party for any bond, undertaking or security to be demanded or executed by or on behalf of said City in any of the State courts, but all such actions, suits, appeals or proceedings shall be conducted in the same manner as if such bond, undertaking or security had been given as required by law, and said City shall be just as liable as if security or bond had been duly executed. (Act of 1905)

Sec. 9. Public Property Exempt from Execution Sale.

The property, real and personal, belonging to the City of Houston, shall not be liable to be sold or appropriated under any writ of execution, nor shall the funds belonging to the City in the hands of any person be liable to garnishment, nor shall the City or any of its officers or agents be required to answer any writ of garnishment, served upon or issued against it, and a failure to do so shall not entail any liability upon the City, but if the Mayor of the City elects so to do, he may answer in a writ of garnishment for the City, in his discretion. (Act of 1905)

Sec. 10. Repealed.

Editor's note—Canvas Ord. No. 2012-1003, §§ 7—9, adopted November 19, 2012, adopted at an election of November 6, 2012, repealed § 10 in its entirety. Originally adopted in 1905, said section pertained to exempting City officers and employees from jury duty. State law requires that all citizens of this state—Including employees of the City—Are required to serve on jury duty.

Section 11. Notice of Claim for Damages.

Before the City of Houston shall be liable for damages for personal injuries of any kind, or for injuries to or destruction of property of any kind, the person injured, or the owner of the property injured or destroyed, or some one in his behalf, shall give the Mayor and City Council notice in writing of such injury or destruction, duly verified, within ninety days after the same has been sustained, stating in such written notice when, where and how the injury or destruction occurred, and the apparent extent thereof, the amount of damage sustained, the amount for which claimant will settle, the actual residence of the claimant by street and number at the date the claim is presented, and the actual residence of such claimant for six months immediately preceding the occurrence of such injuries or destruction, and the names and addresses of the witnesses upon whom he relies to establish his claim, and a failure to so notify the Mayor and City Council within the time and manner specified herein shall exonerate, excuse and exempt the City from any liability whatsoever, provided that nothing herein shall be construed to effect or repeal Section 12 of Article IX of this Charter. (Act of 1905; amended October 15, 1913)

Section 12. Liability and Negligence.

The City of Houston shall not be liable to any person for damages caused from streets, ways, crossings, bridges, culverts, sewers or sidewalks being out of repair from negligence of said corporation, unless the same shall have remained so for ten days after special notice in writing given to the Mayor or city council. (Act of 1905)

Section 13. Pleading Ordinances.

It shall be sufficient in all judicial proceedings to plead any ordinance of the city by caption, without embodying the entire ordinance in the pleading, and all printed ordinances or codes of ordinances shall be admitted in evidence in any suit, and shall have the same force and effect as the original ordinance. Certified copies of ordinances may also be used in evidence. (Act of 1905)

Section 14. Judicial notice of Charter.

This Act shall be deemed a public Act, and judicial notice shall be taken thereof in all courts. (Act of 1905)

Note—The title of this section was added by the editor; it was not titled in the 1905 Special Act.

Section 15. Ownership and Regulation of Public Utilities.

The right is hereby granted to the City of Houston to acquire its public utilities, such as gas, water and electric light works, and underground, surface and elevated street railways, subways or underground conduit systems for electric light, power, telephone, telegraph and other wires used for the purpose of transmitting any electric service. That such utilities may be purchased by a payment in cash of twenty-five per cent. of such price, the balance in annual installments, including interest, to be paid out of the revenues of such utility, and that such works so purchased shall stand pledged as security for the payment of the amount due thereon, but that no judgment shall be rendered against the city upon any deferred note, requiring the city to pay any specified sum of money, but said judgment shall be merely one of foreclosure, divesting and depriving the City of the possession of the property so purchased but not paid for, in which event the City shall forfeit and lose only the cash payment of twenty-five per cent. of the agreed price, without liability or judgment in any sum for the unpaid purchase price; provided, that no purchase or expenditure shall be made under this Section, unless the same shall first have been submitted to the vote of the qualified tax-paying voters at an election to be held exclusively for that purpose.

And the right is hereby expressly granted to the City of Houston to regulate all public utilities in said City, and to require efficiency of public service, and to require all persons or corporations

to discharge the duties and undertakings for the performance of which the respective franchises were made. (Act of 1905)

Section 16. Improvement Districts.

The city council may, and upon petition shall, divide the city or any portion of the corporate territory thereof, into "Improvement Districts", clearly defining the limits and boundaries of each district; and shall have the right, and is hereby authorized to borrow money on the credit of any improvement district so created in the city, and issue bonds therefor for the purpose of constructing and laying permanent sidewalks improvements, or permanent street paving improvements, or both, in such district, but every proposition to borrow money on the credit of any improvement district for permanent sidewalk improvements or street improvements, or both, therein shall be submitted to the qualified taxpaying voters living within and owning property in such district, and shall distinctly specify the purpose for which the loan is desired, and the permanent sidewalk or street improvements, one or both, proposed to be constructed. If said proposition be sustained by a majority of the votes cast in such election in such district, such loan shall be lawful. All bonds shall specify for what purpose they are issued, shall bear interest at a rate not greater than six per cent per annum, and, when sold, shall net not less than par value, with accrued interest to date of payment of the proceeds into the city treasury, and such bonds may be negotiated in lots, as the City Council may direct. No debts shall be contracted for the payment whereof such bonds are issued until such bonds shall have been disposed of, and no debts shall ever be created against any such improvement district, unless at the same time provision be made to assess and collect annually upon the property in such improvement district a sum sufficient to pay the interest on such bonds and create a sinking fund of at least two per cent, thereon; or if a certain portion of said bonds are payable each year, then a sufficient amount shall be assessed and collected to pay each of said bonds as they mature and pay the interest on all unpaid bonds. The interest and sinking fund shall be kept separate by the city from other funds, and shall not be diverted or used for any other purpose than to pay interest and principal on such bonds, and the city comptroller shall sing [sic] no draft or warrant on said fund, except to pay the interest and redeem the bonds for which it was provided. The sinking fund for such bonds shall be invested as provided in section 1, Article IV of this Charter, or in bonds of such improvement district; provided, however, that all property situated within any improvement district which may be created under the authority of this section shall participate to its full extent in, and be equally improved in its just proportion by said sidewalk or street improvements. (Act of 1905; amended October 15, 1913)

Section 17. Repealed.

Section 17-a. Repealed.

Section 17-b. Publication of ordinances and resolutions.

The City Secretary shall give notice of the passage of all ordinances and resolutions, except those granting franchises (which shall be published as now provided by the charter), by causing to be published in some daily newspaper in the City of Houston at least once within ten days after their passage and approval, the caption or title of such ordinances and resolutions, and such ordi nance or resolution shall take effect and be in full force and effect from and after its passage and approval, unless otherwise provided therein; provided, that all such resolutions and ordinances shall be subject to the provisions of this charter for a referendum, and any action taken by authority of same shall be and become null and void should a referendum petition be filed on such ordinance or resolution as provided in Article VII-b of this charter. (Added by amendment October 15, 1913)

Section 18. Repeal of conflicting laws.

Be it further enacted, that all laws and parts of laws in conflict herewith be and the same are

hereby repealed; and that all previous special Acts granting or amending Charters of the city of Houston be especially repealed. (Act of 1905)

Note—The title of this section was added by the editor; it was not titled in the 1905 Special Act.

Section 19. Effect of Adopting Inconsistent Amendments.

Any amendment to the Charter of the City of Houston which may be adopted which is inconsistent with any existing provision of the City Charter shall by such adoption repeal such inconsistent provision, and at any election for the adoption of amendments if the provisions of two or more proposed amendments approved at said election are inconsistent the amendment receiving the highest number of votes shall prevail. (Added by amendment October 15, 1913)

Section 20. Limits on Water and Sewer Rates.

Beginning July 1, 2005, the average annual rates for water and sewer services over the period beginning January 1, 2005, shall not be increased, without voter approval, in any fiscal year by an amount greater than the combined rates of inflation and population growth in the city, identified as provided in Article III, Section 1(a)(i) of this Charter, excluding rate increases required by bond covenants and rates established by contract. Notwithstanding the above, each year the city council may review and adjust the rate design for the combined utility system such that the overall average of all rates does not exceed the limit set out above. (Added by amendment November 2, 2004)

Section 21. Exclusions from limits on City revenues.

(a) Revenues of enterprise funds are not included in revenues limited by this Charter. The preceding provisions do not affect Charter limitations on the growth of property taxes or water and sewer rates contained in Article III, Section 1, and Article IX, Section 20, of this Charter.

Enterprise funds (e.g., the Airport System) are all those largely self-sufficient activities not funded with property tax revenues. To maintain the self-sufficiency of the Water and Sewer System, the revenues of that System can only be used for the purposes of that System, and limited drainage purposes, as set forth in the existing debt covenants of that System. Those revenues cannot be used for any other purpose.

(b) For the purposes of calculating any revenue limitation in this Charter, amounts resulting from termination of or reduced participation in a tax increment reinvestment zone shall be treated in the same manner as revenues from annexed areas in Article III, Section 1.

(c) City Council may prescribe methods for complying with limits on revenues in this Charter to account for changes in accounting standards or practices. (Added by amendment November 7, 2006)

Section 22. Dedicated Pay-As-You-Go Fund for Drainage and Streets.

To provide for the enhancement, improvement and ongoing renewal of Houston's drainage and streets, a dedicated, pay-as-you-go fund entitled the 'Dedicated Drainage and Street Renewal Fund' shall be established, applied and funded as follows:

(a) The Dedicated Drainage and Street Renewal Fund shall be established as a dedicated, pay-as-you-go source of funding for the City's drainage and streets.

(b) To ensure the continued availability of the Dedicated Drainage and Street Renewal Fund as a pay-as-you-go source for the capital cost of future drainage and street needs, no more than 25% of each annual appropriation to the Fund may be used for maintenance and operation expenses, except where third party contracts, grants or payments may provide otherwise. The balance shall be used exclusively on a pay-as-you-go basis for capital costs of drainage and streets, including planning, engineering and right-of-way acquisition. The Fund may not be used to pay debt service. Beginning in the budget for fiscal year 2012, the

Dedicated Drainage and Street Renewal Fund shall be funded annually in each budget adopted by the city council from the following sources, the first two of which are intended to supplement and not replace historic funding sources and the third and fourth of which are intended to confirm the City's commitment to continue historic funding:

(i) All proceeds of developer impact fees, which beginning in fiscal year 2012, shall be assessed in an equitable manner as provided by law to recover allocable costs of providing drainage and streets for properties under development.

(ii) All proceeds of drainage charges, beginning in fiscal year 2012, and continuing thereafter shall be imposed in an equitable manner as provided by law to recover allocable costs of providing drainage to benefitting properties, with drainage charges initially set at levels designed to generate at least $125 million for fiscal year 2012.

(iii) An amount equivalent to proceeds from $0.118 of the City's ad valorem tax levy minus an amount equivalent to debt service for drainage and streets for any outstanding bonds or notes:

(A) Issued prior to December 31, 2011, and

(B) Bonds or notes issued to refund them.

(iv) All proceeds from third party contracts, grants or payments of any kind earmarked or dedicated to drainage or streets.

(c) This Section is subject to modification as permitted by law or termination at the end of fiscal year 2031 (i.e., after 20 years of operation) if during fiscal year 2030 (i.e. 19th year of operation) such modification or termination is authorized by an affirmative vote of two-thirds of the City Council following a public hearing on the matter. If not so terminated, this Section shall continue in full force and effect for successive 20 year periods, subject in each case to modification or termination in the same manner.

(d) Funding for the Dedicated Drainage and Street Renewal Fund that is not derived from ad valorem taxes levied by the City (i.e., that portion derived from fees, charges and third party payments) shall not be included in those revenues limited by this Charter.

(Added by amendment November 2, 2010; amended by Ord. No. 2018-931, §§ 2, 3, 11-28-2018, election of 11-6-2018, Prop. A)

Section 23[1]. Photographic Traffic Signal Enforcement Systems.

The City of Houston shall not use photographic traffic signal enforcement systems to civilly, criminally, or administratively enforce any state law or City ordinance against the owner or operator of a vehicle operated in violation of a traffic control signal, specified by Section 544.007(d) of the Texas Transportation Code, nor shall it collect any money from any recipient of a notice of violation issued, in whole or in part, in connection with the use of a photographic traffic signal enforcement system.

(Added by amendment November 2, 2010)

[1] Section 22 was added to the Charter at the same election, so the next available Section number is 23.

Section 24. Compensation Provided to Firefighters Compared to the Compensation Provided to Police Officers.

The City of Houston shall compensate City firefighters in a manner and amount that is at least equal and comparable by rank and seniority with the compensation provided City police officers including:

a. Persons employed in the following firefighter classifications shall receive the same base pay as persons of like seniority employed in the following, similarly numbered police officer classifications:

Firefighters	*Police Officers*
1. Probationary Firefighter	1. Probationary Police Officer
2. Firefighter	2. Police Officer
3. Engineer/ Operator	3. Senior Police Officer
4. Captain, Inspector, Investigator, Communications Captain, Mechanic	4. Sergeant
5. Senior Captain, Senior Inspector, Senior Investigator, Communications Senior Captain, Shop Supervisor	5. Lieutenant
6. District Chief, Assistant Arson Investigator, Chief Inspector, Chief Communications Officer, Master Mechanic	6. Captain
7. Deputy Chief, Arson Investigator, Assistant Fire Marshal, Deputy Chief Communications Officer	7. Captain (with an additional 15% for parity)
8. Assistant Fire Chief, Fire Marshal	8. Assistant Police Chief
9. Executive Assistant Fire Chief	9. Executive Assistant Police Chief

In the event the title of any of the above classifications shall be changed, the new classification most similar in terms of qualifications and duties to the old shall be substituted therefore, to achieve pay parity.

b. Firefighters employed in fire suppression shall receive the same incentive pay as police officers, of like seniority, employed as patrol officers.

c. Firefighters shall receive the same training pay as police officers of like seniority.

d. Firefighters employed as arson investigators shall receive the same investigative incentive pay as police officer investigative personnel of like seniority and investigative experience.

e. Firefighters who serve as Field Training Officers shall receive the same Field Training Officer training pay as police officers who serve as Field Training Officers.

f. Firefighters shall receive mentoring pay in the same amount and on the same basis as police officers.

g. Firefighters classified as arson investigators, inspectors, communications captain, senior inspectors, senior investigators, communications senior captain, assistant arson investigator, chief inspector or chief communications officer shall receive the same weekend premium and shift differential pay in the same amount and on the same basis as police officers qualified to receive such pay.

h. Firefighters shall receive educational incentive pay in the same amount and on the same basis as police officers entitled to receive such pay.

i. Firefighters shall receive college tuition reimbursement in the same amount and on the same basis as police officers entitled to receive such reimbursement

j. Firefighters shall receive the same clothing allowance (or similar benefit)paid to police officers, in addition to any protective clothing and equipment provided by the City.

k. Firefighters shall receive the same equipment allowance (or similar benefit) paid to police officers.

l. The City shall make the same contribution to the Houston Professional Firefighters Association Medical Trust that it does to the Texas Police Trust.

m. To the extent that the names of any of the forms of pay or benefits identified above are changed, the requirement of

the parity for firefighters to police officers shall continue to apply. In addition, if any new form of pay or benefit is provided to police officers, the same shall also be provided to firefighters.

(Added by Ord. No. 2018-931, §§ 4, 5, 11-28-2018, election of 11-6-2018, Prop. B)

Section 25. Membership in a council of government or metropolitan planning organization.

The City may accept or maintain membership in a Council of Government or Metropolitan Planning Organization only if votes on the governing board are apportioned proportionally on the basis of population notwithstanding statutory voting members. However, members representing local governments shall have at least 90% of total votes.

In the event that a Council of Government or Metropolitan Planning Organization does not comply with section (a) the City shall withdraw its membership from the body if the voting system is not corrected within 60 days of the effective date of adoption of this section.

(Added by Ord. No. 2023-1012, §§ 9, 10, 11-20-2023, election of 11-7-2023, Prop. B; Ord. No. 2023-1013, § 4, 5, 11-20-2023, election of 11-7-2023, Prop. B)

CHARTER COMPARATIVE TABLE

SPECIAL ACTS

This table shows the location of the sections of the basic Charter and the special acts amending the Charter.

Year	Section	Section this Volume
1905	Arts. I—IX	Arts. I—IX
1905		Art. IX, § 2
1911		Art. IVa, §§ 1—5
		Art. IVa, §§ 7—18

CHARTER COMPARATIVE TABLE

AMENDMENTS

This table shows the location of the various amendments to the Charter.

Date	Section this Volume
10-15-13	Art. I, § 2a
	Art. I, § 2b
	Art. II, § 2
	Art. II, § 4a
	Art. II, § 5a
	Art. II, § 6a
	Art. II, § 7a
	Art. II, § 7b
	Art. II, § 9
	Art. II, § 14a
	Art. II, § 15a
	Art. II, § 19a
	Art. III, § 1
	Art. IVa, § 3
	Art. IVa, § 4a
	Art. IVa, § 5
	Art. IVa, § 5a
	Art. IVa, § 6
	Art. Va, §§ 1—5
	Art. VIIa, §§ 1—3
	Art. VIIa, § 3a
	Art. VIIa, §§ 4—11
	Art. VIIb, §§ 1—12
	Art. VIII, § 2
	Art. IX, § 11
	Art. IX, § 16
	Art. IX, §§ 17, 17a, 17b
	Art. IX, § 19
12-28-15	Art. IV, § 1a
	Art. Va, § 4
	Art. VIa, §§ 1—6
12-30-22	Art. I, § 3
	Art. VIII, § 1
10-16-26	Art. II, § 13a
	Art. IV, § 4a
1-28-33	Art. II, § 4b
	Art. II, § 20
	Art. III, § 10
	Art. III, §§ 15, 16
	Art. IVa, § 9
	Art. IVa, § 14a
	Art. IVb, §§ 1, 2
8-15-42	Art. V, § 1
	Art. V, §§ 6—14
	Art. VI, §§ 1—10
	Art. VII, §§ 1—12
	Art. IX, §§ 17, 17a
7-26-47	Art. VI, § 7a
	Art. VI, § 8
	Art. VIa, § 4
	Art. VII, § 1
	Art. VII, § 11a
	Art. VIII, § 1
5-29-51	Art. V, § 1
	Art. V, §§ 6—12
8-16-55	Art. V, § 8
	Art. V, §§ 13, 14
11-18-61	Art. VIII, § 1
1-27-68	Art. II, § 19
	Art. Va, § 1
	Art. VI, § 7a
	Art. VIa, § 2
8-11-79	Art. V, §§ 1—5
	Art. V, § 8
	Art. VII, §§ 2, 3
8-14-82	Art. II, §§ 7a, 7b
	Art. II, § 9
	Art. II, §§ 18, 19, 19a
	Art. III, § 1
	Art. Va, §§ 3, 4
	Art. VI, §§ 11—13
	Art. VII, § 3
	Art. VIII, §§ 2, 2a
11- 5-91	Art. V, §§ 4a, 6a
	Art. VII, § 9
	Art. VIIa, § 5
	Art. VIIb, § 2(b)
1-15-94	Art. VIIb, § 13
	Rpld Art. V, § 4a
11- 2-99	Rpld Art. II, §§ 4-a, 4b
	Art. II, § 19a
	Art. III
	Rpld Art. IV, §§ 4, 4a

Date		Section this Volume
	Rpld	Art. IVa
		Art. V, §§ 3, 4
		Art. VI, § 1
11- 6-01		Art. II, §§ 21, 22
11- 2-04		Art. III, § 1
	Added	Art. IX, § 20
	Added	Art. VI-a, § 7
	Added	Art. VIII, § 7
11- 7-06	Added	Art. IX, § 21

Ordinance Number	Adoption Date	Election Date	Section		Section this Charter
2010-879	11-15-2010	11- 2-2010	2	Added	Art. IX, § 22
2010-881	11-15-2010	11- 2-2010	3	Added	Art. IX, § 23
2012-1003	11-19-2012	11- 6-2012	7—9	Rpld	Art. I, §§ 2-a, 2-b, Art. II, §§ 14, 14a, Art. II, § 16, ¶10, ¶15 Art. IX, § 10
			10—12	Amend.	Art. V, § 10, Art. VII-a, §§ 1—3, §§ 5, 7, §§ 8, 11 Art. VII-b, §§ 2—5, §§ 7, 12, 13
2015-1129	11-13-2015	11- 3-2015	9—11		Art. V, § 5, Art. V, § 6a
2018-931	11-28-2018	11- 6-2018	2, 3		Art. IX, § 22
			4, 5	Added	Art. IX, § 24
2023-1012	11-20-2023	11- 7-2023	7, 8		Art. VII, § 3
			9, 10	Added	Art. IX, § 25
2023-1013	11-20-2023	11- 7-2023	2, 3		Art. VII, § 3
			4, 5	Added	Art. IX, § 25

[The next page is 93]

APPENDICES*

App. A. **Sources of Houston City Charter—Original Act of 1905 and Subsequent Amendments**

App. B. **Referendum Ordinances Adopted at Elections**

APPENDIX A

SOURCES OF HOUSTON CITY CHARTER—ORIGINAL ACT OF 1905 AND SUBSEQUENT AMENDMENTS

The original Act of 1905, 29th Legislature, Regular Session, Special Laws, Chapter 17, House Bill 503, Page 131 (12 Gammel), still constitutes a large part of the present charter of the city. The charter so granted has since been successively amended, as follows:

1. Amendment by Act effective April 13, 1905, H.B. 634, § 1, 29th Leg., R.S., by which § 2 of Art. IX was amended to read as now carried and § 17 of Art. IX was amended to read as it continued to read until amended in 1913 and 1933, and finally repealed in 1942.

2. Amendment by Act effective August 31, 1911, S.B. 50, 32nd Leg., 1st C.S., by which there was added Art. IVa, as carried except for subsequent amendment in 1913 and 1933, and finally repealed in 1999.

3. After the adoption of 1912 of the Home Rule Amendment to the State Constitution and the passage in 1913 of the Home Rule Enabling Act now appearing as recodified as Tex. Loc. Gov't Code Ann. ch. 9 (Vernon 1988 and Supp. 1993), the voters of the city successively amended their charter at elections at which the following amendments were approved:

   (a) At election (Ord. Book 3, Page 426) October 15, 1913, amendments were adopted which were recorded in Vol. 1, Page 105, of the Secretary of State's Record of Charter Amendments, as follows:

   (1) Amended § 2 of Art. I (Setting boundaries); many times since re-amended and modified by ordinances. This section is omitted from the current codification; the City Secretary's office can provide annexation ordinances.

   (2) Added § 2a to Art. I, as carried until repealed in 2012.

   (3) Added § 2b to Art. I, as carried until repealed in 2012.

   (4) Amended § 2 of Art. II, to read as now carried.

   (5) Added § 4a to Art. II, as carried until repealed in 1999.

   (6) Added § 5a to Art. II, as now carried.

   (7) Added § 6a to Art. II, as now carried.

   (8) Added § 7a to Art. II, as now carried except for subsequent amendment in 1982.

   (9) Added § 7b to Art. II, as now carried except for subsequent amendment in 1982.

   (10) Amended § 9 of Art. II, to read as now carried except for subsequent amendment in 1982.

   (11) Added § 14a to Art. II, as carried until repealed in 2012. (This section and accompany-

*These appendices to the Charter are taken from appendices that first appeared in the 1947 and 1958 compilations of the Charter and were prepared by Mr. F. F. Beadle, Senior Assistant City Attorney. They have been updated by Alice S. Wilson and Paul Bibler, Jr., to include Charter amendments subsequent to 1955.

ing § 14 were impliedly repealed by Act creating H.I.S.D. See Act effective March 20, 1923, S.B. 402, 39th Leg., R.S.)

(12) Added § 15a to Art. II, as now carried.

(13) Added § 19a to Art. II, as now carried except for subsequent amendment in 1982 and 1999.

(14) Amended last paragraph of § 1 of Art. III, to read as carried until entire article superseded by new Art. III in 1999.

(15) Amended § 3 of Art. IVa, to read as carried until repealed in 1999.

(16) Added § 4a to Art. IVa, as carried until repealed in 1999.

(17) Amended § 5 of Art. IVa, to read as now carried until repealed in 1999.

(18) Added § 5a to Art. IVa, as carried until repealed in 1999.

(19) Amended § 6 of Art. IVa, to read as carried until repealed in 1999.

(20) Added § 3 to Art. V, as carried until amended in 1933; superseded by new Art. V in 1942.

(21) Added § 4 to Art. V, as carried until entire article superseded by new Art. V in 1942.

(22) Added § 4a to Art. V, as carried until amended in 1933; superseded by new Art. V in 1942.

(23) Added Art. Va (Civil Service), as now carried except for subsequent amendment in 1915, 1968 and 1982. (This Article has been superseded by State Civil Service Laws for firefighters and police officers. See Tex. Loc. Gov't Code Ann. ch. 143.)

(24) Amended § 9 of Art. VI (Mayor's Salary), to read as it continued to read until entire article superseded by new Art. VI in 1942.

(25) Added § 6a to Art. VII, as carried until entire article superseded by new Art. VII in 1942. (This is the "Lame Duck" provision which passed out of the charter with the 1942 amendments, but was placed back in the charter as one of the 1947 amendments.)

(26) Added Art. VIIa (Recall of Officials), as now carried except for subsequent amendment in 1991 and 2010.

(27) Added Art. VIIb (Initiative and Referendum), as now carried except for subsequent amendment in 1991, 1994, and 2010.

(28) Amended § 1 of Art. VIII (Controller and His Salary), to read as now carried except for subsequent amendment in 1922, 1933, 1947, and 1961.

(29) Amended § 2 of Art. VIII, to read as now carried except for subsequent amendment in 1982.

(30) Added § 6 to Art. VIII, as now carried.

(31) Amended § 11 of Art. IX, to read as now carried.

(32) Amended § 16 of Art. IX, to read as now carried.

(33) Amended § 17 of Art. IX (provision for carrying over terms of existing officers), to read as carried until amended in 1933 to like purpose; finally repealed entirely in 1942.

(34) Added § 17a to Art. IX (provision for filling vacancies in certain offices), as carried until repealed in 1942.

(35) Added § 17b to Art. IX, as now carried.

(36) Added § 19 to Art. IX, as now carried.

(b) At election (Ord. Book 6, page 30) December 28, 1915, amendments were adopted which were recorded in Vol. 3, Page 129, of the Secretary of State's Record, as follows:

(1) Added Art. VIa, as now carried except for subsequent amendment in 1947, 1968, and 2004.

(2) Added § 1a to Art. IV, as now carried.

(3) Amended § 4 of Art. Va, to read as now carried except for subsequent amendment in 1982. (Note that the certificate filed with the Secretary of State is rather obscure in connection with this amendment as it merely states that the amendment was of "Sec. 4— Commissioners, Rules and Regulations" and does not directly indicate what article was referred to and does not clearly show whether it is an amendment or the addition of something entirely new. This obscurity has been cleared up by checking against the original article, the election proposition, etc.)

(c) At election (Ord. Book 7, page 247) February 20, 1918, only one amendment was adopted, recorded in Vol. 3, page 521, of the Secretary of State's Record, being amendment of § 2 of Art. I, providing for the consolidation of Houston with Houston Heights and amending the City's boundaries to include the additional area involved. This section is omitted from the current codification; the City Secretary's office can provide annexation ordinances.

(d) At election (Ord. Book 10, page 371) December 30, 1922, amendments were adopted which are recorded in Vol. 5, page 459, of the Secretary of State's Records, as follows:

(1) Amended § 12 of Art. VII, to read as it continued to read until entire article superseded by new Art. VII in 1942.

(2) Added § 13 to Art. VII, as carried until entire article superseded by new Art. VII in 1942.

(3) Amended § 1 of Art. VIII (City Controller's Salary), to read as now carried except for subsequent amendment in 1933, 1947 and 1961.

(4) Amended § 2 of Art. I (Boundaries). This section is omitted from the current codification; the City Secretary's office can provide annexation ordinances.

(5) Amended § 3 of Art. I, to read as now carried.

(e) At election (Ord. Book 15, page 259) October 16, 1926, amendments were adopted which are recorded in Vol. 6, page 439, of the Secretary of State's Records, as follows:

(1) Added § 4a to Art. IV, as carried until repealed in 1999.

(2) Added § 13a to Art. II, as now carried.

(3) Amended § 2 of Art. I (Boundaries) to consolidate City of Houston with City of Magnolia Park. This section is omitted from the current codification; the City Secretary's office can provide annexation ordinances.

(f) At election (Ord. Book 24, page 389), January 28, 1933, amendments were adopted which are

recorded in Vol. 8, page 259, of the Secretary of State's Records, as follows:

(1) Amended § 10 of Art. III, to read as carried until entire article superseded by new Art. III in 1999.

(2) Amended § 3 of Art. V, to read as carried until entire article superseded by new Art. V in 1942.

(3) Amended Subdivisions a and b of § 4a of Art. V to read as carried until entire article superseded by new Art. V in 1942.

(4) Added § 4b to Art. II, as carried until repealed in 1999.

(5) Added Art. IVb, as now carried.

(6) Amended § 17 of Art. IX, as carried until repealed in 1942.

(7) Added § 14a to Art. IVa, as carried until repealed in 1999.

(8) Amended third paragraph of Sec. 9 of Art. IVa, to read as carried until repealed in 1999.

(9) Added Subdivision (s) to § 4a of Art. V (Provision fixing date of City Democratic Primary), as carried until entire article superseded by new Art. V in 1942.

(10) Amended § 1 of Art. VIII (City Controller's Salary), to read as now carried except for subsequent amendment in 1947 and 1961.

(11) Amended first paragraph of § 15 of Art. III (Composition of Board of Appraisement), to read as carried until entire article superseded by new Art. III in 1999.

(12) Added § 16 to Art. III, as carried until entire article superseded by new Art. III in 1999.

(13) Added § 20 to Art. II, as now carried.

(g) At election (Ord. Book 35, page 331) August 15, 1942, amendments were adopted which are recorded in Vol. 10, page 42, of the Secretary of State's Records, as follows:

(1) Adopted new Art. V superseding former article, as carried until superseded by new Art. V in 1951.

(2) Repealed §§ 6, 17, and 17a of Art. IX.

(3) Adopted new Art. VI superseding former article, as now carried except for subsequent amendment in 1947, 1968, 1982, and 1999.

(4) Added Art. VIb, as carried until repealed in 1947.

(5) Adopted new Art. VII superseding former article, as now carried except for subsequent amendment in 1947, 1951, 1979, 1982 and 1991.

(h) At election (Ord. Book 43, page 117) July 26, 1947, amendments were adopted which are recorded in Vol. 10, page 315, of the Secretary of State's Records, as follows:

(1) Added § 4a to Art. V, as carried until entire article superseded by new Art. V in 1951.

(2) Added § 7a to Art. VI, as now carried except for subsequent amendment in 1968.

(3) Repealed Art. VIb.

(4) Amended § 8 of Art. VI, to read as now carried.

(5) Amended § 4 of Art. VIa, to read as now carried.

(6) Added § 9a to Art. VII, as carried until repealed in 1951.

(7) Amended § 1 of Art. VII, to read as now carried.

(8) Added § 11a to Art. VII, as now carried.

(9) Amended § 1 of Art. VIII (City Controller's Salary), to read as now carried except for subsequent amendment in 1961.

(i) At election May 29, 1951, amendments were adopted as follows:

(1) Adopted new Art. V superseding former article, as carried until superseded by new Art. V in 1955.

(2) Repealed § 9a of Art. VII.

(j) At election August 16, 1955, amendments were adopted as follows:

Adopted new Art. V superseding former article, as now carried except for subsequent amendment in 1979, 1991, 1999, and 2015.

(k) At election November 18, 1961, an amendment was adopted as follows:

Amended § 1 of Art. VIII, to read as now carried.

(l) At election January 27, 1968, amendments were adopted as follows:

(1) Amended § 19 of Art. II, to read as now carried except for subsequent amendment in 1982.

(2) Amended § 1 of Art. Va, to read as now carried.

(3) Amended § 2 of Art. VIa, to read as now carried.

(4) Amended paragraph (4) of § 7a of Art. VI, to read as now carried.

(m) At election August 11, 1979, amendments were adopted as follows:

(1) Amended §§ 1, 2, 3, 4, 5, and 8 of Art. V, to read as now carried except for subsequent amendment in 1999 and 2015.

(2) Amended § 2 of Art. VII, to read as now carried.

(3) Amended § 3 of Art. VII, to read as now carried except for subsequent amendment in 1982.

(n) At election August 14, 1982, amendments were adopted as follows:

(1) Amended §§ 2, 3 and 4 of Art. Va, to read as now carried.

(2) Amended §§ 7a, 7b, 9, 19 and 19a of Art. II, to read as now carried except for subsequent amendment of § 19a in 1999.

(3) Amended § 3 of Art. VII, to read as now carried.

(4) Added § 2a to Art. VIII, as now carried.

(5) Added §§ 11, 12 and 13 to Art. VI, as now carried.

(6) Amended § 18 of Art. II, to read as now carried.

(7) Amended § 2 of Art. VIII, to read as now carried.

(8) Amended the first paragraph of § 1 of Art. III, to read as carried as two paragraphs until entire article superseded by new Art. III in 1999.

(o) At election November 5, 1991, amendments were adopted as follows:

(1) Added § 6a to Art. V, as now carried except for subsequent amendment in 2015.

(2) Amended § 5 of Art. VIIa, to read as now carried.

(3) Amended subsection (b) of § 2 of Art. VIIb, to read as now carried.

(4) Amended § 9 of Art. VII, to read as now carried.

(5) Added § 4a. to Art. V, as carried until repealed in 1994.

(p) At election January 15, 1994, amendments were adopted as follows:

(1) Repealed § 4a of Art. V.

(2) Added § 13 to Art. VIIb, as now carried.

(q) At election November 2, 1999, amendments were adopted as follows:

(1) Repealed §§ 4-a and 4b of Art. II, §§ 4 and 4-a of Art. IV, and all of Art. IVa.

(2) Amended Art. III, to read as now carried.

(3) Amended § 4 of Art. V and § 1 of Art. VI, to read as now carried.

(4) Amended the first paragraph of § 19a of Art. II, to read as now carried.

(r) At election November 6, 2001, amendments were adopted as follows:

(1) Added § 21 to Art. II, as now carried.

(2) Added a section, which the editors placed in Art. II as § 22, as now carried.

(s) At election November 2, 2004, amendments were adopted as follows:

(1) Amended the first paragraph of § 1 of Art. III, to read as now carried as five paragraphs.

(2) Added § 20 to Art. IX, as now carried.

(3) Added a section, which the editors placed in Art. VI-a as § 7, as now carried.

(4) Added § 7 to Art. VIII, as now carried.

(t) At election November 7, 2006, an amendment was adopted as follows:

Added § 21 to Art. IX, as now carried.

(u) At election November 2, 2010, amendments were adopted as follows:

(1) Added § 22 to Art. IX, as carried until the election for the proposition by which this section was added to the Charter was ordered, adjudged and decreed void on October 29, 2015, in accordance with the decision in Dacus v. Parker, 466 S.W.3d 820, 822 (Tex. 2015).

(2) Added § 23 to Art. IX, as now carried.

(v) At election November 6, 2012, amendments were adopted as follows:

(1) Repealed:

§ 2-a of Art. I.

§ 2-b of Art. I.

§§ 14 and 14a of Art. II.

¶ 10 of § 16 of Art. II.

¶ 15 of § 16 of Art. II.

§ 10 of Art. IX.

(2) Amended:

§ 10 of Art. V, to read as now carried.

Art. VII-a, to read as now carried.

Art. VII-b, to read as now carried.

(w) At election November 3, 2015, amendments were adopted as follows:

(1) Amended the first paragraph of § 5 of Art. V, to read as now carried.

(2) Amended § 6a of Art. V, to read as now carried.

(x) At election November 6, 2018, amendments were adopted as follows:

(1) Added a section, which City Council placed in Art. IX as § 24, to read as now carried.

(2) Added a new § 22 to Art. IX, to read as now carried.

APPENDIX B

REFERENDUM ORDINANCES ADOPTED AT ELECTIONS

Because Art. VIIb, the referendum and initiative article in the city charter, provides that ordinances adopted under its provisions may not be thereafter amended or repealed except as therein provided, such ordinances have until so repealed practically the same effect as charter provisions. The following brief statement is made of the subject matter of the ordinances below referred to, adopted at elections indicated and apparently never repealed or amended pursuant to the provisions of Art. VIIb (except as noted below), but without expression of opinion either as to their initial or present validity, effectiveness, or binding force, except to the limited extent below indicated:

2½% ANNUAL LIBRARY TAX

At the election held February 9, 1921, the ordinance calling which is in Vol. 9, page 9, of the city secretary's books, the taxpaying voters of the city approved a proposition stated on the ballots as follows:

> "For the levy and collection by the City Council of the City of Houston of a direct ad valorem tax of not less than two and one-half (2½) cents, as may be determined by the city Council, on every One Hundred ($100.00) Dollars of value thereof, on all property real, personal and mixed within the City of Houston upon which a tax is authorized by law to be levied in the City of Houston, and upon all franchises of all individuals and corporations holding a franchise from the City of Houston, said tax to be appropriated for maintaining the Public Library System in the City of Houston."

Upon question of binding effect of this ordinance on future city councils, *see Denman v. Quinn*, 116 S.W.2d 783 (Tex. Civ. App.—San Antonio 1938, writ ref'd), holding that a city's annual tax levying ordinance passed by the city council was not subject to referendum under board referendum provision containing in San Antonio charter. *See*, however, contrary view as to a different type of ordinance as stated in *Taxpayers Association v. City of Houston*, 129 Tex. 629, 106 S.W.2d 655 (1937). Note also that the foregoing ordinance was not submitted to the general electorate of the city as contemplated by Art. VIIb of the charter for referendum or initiative submission of ordinance, but was submitted only to the tax-paying voters.

ORDINANCE ABOLISHING JITNEYS

An election hold January 19, 1924, the ordinance calling which is in Vol. 11, page 435, of the city secretary's ordinance books, there was approved a very lengthy and detailed ordinance abolishing jitney busses and jitney routes and virtually prohibiting operation along fixed routes of any passenger vehicle with a seating capacity of less than fifteen persons and prohibiting the operation of motor vehicles carrying passengers along fixed routes upon streets on which street cars were operated.

By order of the United States District Court for the Southern District of Texas dated March 31, 1994, in Cause No. H-89-1245, the foregoing jitney ordinance was declared unconstitutional.

1936 GENERAL EMPLOYEES' MINIMUM SALARY ORDINANCE

At election held on August 22, 1936, the ordinance calling which appears in Vol. 26, page 441, of the city secretary's ordinance books, there was approved an ordinance fixing minimum monthly salaries of various and sundry appointive officers and employees of the city, the employees being classified by departments in extreme detail and including apparently all employees from the department head on down. The fire department was not included in this ordinance, but apparently all other departments were included, including police department.

Note the 1946 ordinance referred to below granting blanket salary increases to city employees except police and fire department personnel, and note that the 1946 police department minimum salary ordinance referred to below in all certainty repealed so much of the foregoing 1936 ordinance as referred to the police department. For validity and effect of this type of ordinance adopted by referendum, *see Taxpayers Association*

v. City of Houston, 129 Tex. 629, 105 S.W.2d 655 (1937), and *Dry v. Davidson*, 115 S.W.2d 689 (Tex. Civ. App.—Galveston 1938, writ ref'd).

1936 FIRE DEPARTMENT MINIMUM SALARY ORDINANCE

At election held August 22, 1936, the ordinance calling which appears in Vol. 26, page 436, of the city secretary's ordinance books, there was approved an ordinance fixing minimum salaries within detailed classifications of fire department personnel.

Note the 1946 fire department minimum salary ordinance referred to below, the provisions of which in all certainty superseded the foregoing 1936 ordinance. For validity and effect see cases referred to under the 1936 general employees minimum salary ordinance.

1946 FIRE DEPARTMENT MINIMUM SALARY ORDINANCE

At election held on June 22, 1946, the ordinance calling which is in Vol. 40, page 322, of the city secretary's ordinance books, there was approved an ordinance prescribing in detail positions and classifications of employees in the fire department and fixing in detail salaries in such department.

Note that the foregoing 1946 ordinance in all certainty superseded the similar 1936 ordinance. For validity and effect, see cases referred to above under the 1936 general employees' salary ordinance. Note also general legislation from time to time passed by the State Legislature in the matter of minimum salaries of firemen.

1946 POLICE DEPARTMENT MINIMUM SALARY ORDINANCE

At election held June 22, 1946, the ordinance calling which is in Vol. 40, page 327, of the city secretary's ordinance books, there was approved an ordinance prescribing in extreme detail positions and classifications of employees in the police department and fixing minimum salaries of police department personnel.

Note that the foregoing ordinance in all certainty repealed so much of the 1936 general city employees' minimum salary ordinance as dealt with the police department. For validity and effect, see cases cited above under 1936 general employees' minimum salary ordinance. Note also general state laws covering minimum hours and minimum salaries of police officers.

GENERAL CITY EMPLOYEES' SALARY ORDINANCE OF 1946

At an election held on June 22, 1946, the ordinance calling which is in Vol. 40, page 332, of the city secretary's ordinance books, there was approved an ordinance which very briefly provided blanket percentage salary increases for certain city employees and for a flat $30.00 per month increase for all or at any rate nearly all other employees (except fire and police department personnel covered by the two ordinances adopted the same day hereinabove referred to).

For validity and effect, see cases cited above under 1936 general city employees' salary ordinance, noting that the 1946 ordinance did not designate or establish positions and did not prescribe minimum salaries for any positions, it not being within the scope of this work to attempt a determination of the effect of this 1946 ordinance on salary schedules in general.

POLICEMEN'S AND FIREMEN'S CIVIL SERVICE, STATE LAW, 1947

Article 1269m, Vernon's Texas Civil Statutes, enacted by the 1947 Legislature now codified as Tex. Loc. Gov't Code Ann. ch. 143, provides for civil service system for policemen and firemen under a uniform plan provided by the Legislature. Pursuant to a command contained in the Act, cities were required to submit to popular vote the question of adoption or rejection of the Act, with provision that upon its adoption it would supersede charter provisions or ordinances covering its subject matter.

At an election held in the city January 31, 1948, this Act was adopted by a majority vote of the votes cast at the election. It differs in many important respects from the city's civil service charter provisions (Art. Va of the foregoing charter) and no action should be taken in the matter of civil service, whether pertaining to policemen and

firemen or to other employees without first consulting ch. 143, Tex. Loc. Gov't Code Ann., since some of its provisions touch upon the entire subject of composition of the city's civil service commission and of the executive administration of the civil service functions.

1950 FIRE DEPARTMENT MINIMUM SALARY ORDINANCE

At an election held on July 22, 1950, an ordinance was adopted that established various positions and salaries for those positions in the classified service of the Fire Department. The ordinance contains a repealer clause, and it presumably repealed the 1946 ordinance, which is discussed above.

1954 POLICE AND FIRE DEPARTMENT SALARY ORDINANCE

At an election held on August 28, 1954, an ordinance was adopted that increased the salaries of firefighters and police officers by forty-five dollars per month. This ordinance contained a repealer clause, and it repealed the salaries contained in the other police and fire salary ordinances, which are described above.

CONCLUSION

In the foregoing brief reference to ordinances adopted at elections no effort has been made to include those ordinances so adopted which merely authorized the doing once of some one particular thing, which, when done, thereby accomplished the entire purpose of the ordinance, as for example ordinances authorizing purchase of a certain parcel of land or sale of a certain parcel of land.

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CODE OF ORDINANCES

Chapter 1

GENERAL PROVISIONS

Sec. 1-1. How Code designated and cited.

The ordinances embraced in the following chapters and sections shall constitute and be designated the "Code of Ordinances, City of Houston, Texas," and may be so cited.

The *Construction Code,* including the *Fire Code,* constitutes a part of this Code and is adopted herein by reference. The *Construction Code* is published by separate promulgation and is not set forth in this two-volume edition of the Code. Interested persons may contact the city secretary for purchase information.
(Code 1968, § 1-1; Ord. No. 2011-1168, § 3, 12-14-2011; Ord. No. 2021-1037, § 20(Exh. I.1, 12-1-2021, eff. 4-1-2022)

Charter references—Printed ordinances as evidence, Art. IX, § 7; force and effect of Codes of Ordinances and admission thereof into evidence, Art. IX, § 13.

Sec. 1-2. Rules of construction and definitions.

(a) In the construction of this Code, and of all ordinances, the following rules shall be observed and the following definitions shall apply, unless the context clearly indicates otherwise:

Generally. In the interpretation and application of any provision of this Code, it shall be held to be the minimum requirements adopted for the promotion of the public health, safety, comfort, convenience and general welfare. Where any provision of the Code imposes greater restrictions upon the subject matter than the general provisions imposed by the Code, the provision imposing the greater restriction or regulation shall be deemed to be controlling.

Abatement warrant is a warrant authorized by Section 30.00005(d)(3)(B), Texas Government Code, and issued only upon application to a magistrate, which application shall include either (a) a verified copy of a judicial or administrative order authorizing the city to secure, remove, or demolish property for a violation of this Code related to public health or safety or to nuisance abatement, or (b) an affidavit, which may be based on information supplied by others, stating facts establishing probable cause to abate (i) a nuisance pursuant to Article XI of Chapter 10 of this Code; (ii) a junked vehicle pursuant to Article XIII of Chapter 10 of this Code; or (iii) an off-premise sign pursuant to Article XVII of Chapter 10 of this Code. An abatement warrant shall be served by a peace officer.

Building Code means the *City of Houston Building Code,* as adopted and amended by the city council.

Building official means the Director of Houston Public Works or such other person as the said director may designate to act as the chief *Construction Code* enforcement official of the city and the said official's designee.

City. The words "city" "the city" or "this city" shall mean the City of Houston, in the State of Texas.

City council. Whenever the words "city council" or "council" are used, they shall be construed to mean the City Council of the City of Houston, as the governing body of the city.

City engineer shall mean:

(1) The Director of Houston Public Works and the director's designee; or

(2) The director of the general services department or the engineer

designated by the director and that director's or engineer's designee, as applicable.

The term primarily relates to employees of Houston Public Works and the general services department who are engaged in acquisition, design and construction of public works and related projects.

City fee schedule means the schedule of fees charged by the city for various permits, licenses, authorizations and services, which schedule is maintained on the city's website.

City officers or *departments.* Whenever reference is made to an officer or department, the same shall be construed as if followed by the words "of the City of Houston, Texas."

Computation of time. Except as otherwise provided in this Code, or in applicable statutes of the state, whenever a notice is required to be given or an act to be done a certain length of time before any proceedings shall be had, the day on which such notice is given or such act is done shall not be counted in computing the time, but the day on which such proceedings are to be had shall be counted, unless it is a Sunday or a legal holiday on which city offices are closed, in which event the period runs until the end of the next day which is neither a Sunday nor a legal holiday.

Construction Code means the *City of Houston Construction Code,* as amended from time to time by the city council, which code consists of various texts setting forth requirements relating to building construction and safety, namely:

City of Houston Building Code, also known as the *Building Code*

City of Houston Electrical Code, also known as the *Electrical Code*

City of Houston Energy Conservation Code, also known as the *Energy Conservation Code*

City of Houston Existing Building Code, also known as the *Existing Building Code*

City of Houston Fire Code, also known as the *Fire Code*

City of Houston Mechanical Code, also known as the *Mechanical Code*

City of Houston Plumbing Code, also known as the *Plumbing Code*

City of Houston Residential Code, also known as the *Residential Code*

City of Houston Swimming Pool and Spa Code, also known as the *Swimming Pool and Spa Code*

Chapter 10, Article IX, also known as the *Houston Building Standards Code*

and

Houston Public Works Infrastructure Design Manual, also known as the *Infrastructure Design Manual* or *IDM.*

In particular instances this Code may refer to individual volumes of the *Construction Code,* and any such specific reference shall be construed to mean the identified portion of the *Construction Code.*

County. The words "the county" or "this county" shall mean and refer to Harris, Fort Bend, and Montgomery Counties, either singularly or collectively, whichever is applicable when taken in context.

Director of public health means only such officer; the term shall not be deemed to include that officer's designees, or to authorize that officer to delegate any authority or duty vested in him as director of the Houston Health Department, unless the intention to include designees, or to authorize delegation, is clearly expressed.

Electrical Code means the *City of Houston Electrical Code* as adopted and amended by the city council.

Electronic means relating to technology having electrical, digital, magnetic, wireless, optical, electromagnetic, or similar capabilities.

Electronic signature means an electronic sound, symbol, or process attached to or logically associated with a record or document, which can include an electronic record or

document, and executed or adopted by a person with the intent to sign the record or document.

Energy Conservation Code means the *City of Houston Residential Energy Conservation Code* or the *City of Houston Commercial Energy Conservation Code,* both as adopted and amended by the city council.

Existing Building Code means the *City of Houston Existing Building Code,* as adopted and amended by the city council.

Fire Code means the *City of Houston Fire Code,* as adopted and amended by the city council.

Gender. Words imparting masculine gender, whenever used herein, shall be deemed to include the feminine and shall also extend and apply to persons as the term "person" is herein defined. The use of words imparting masculine gender shall not be deemed to imply any preference for them or any subordination, disqualification or exclusion of the feminine.

Health officer means the director of public health or the director's duly authorized designees.

Housing officer. The term "housing officer" shall mean the director of the housing and community development department or the director's duly authorized designees.

Inspection warrant is an administrative warrant authorized by Article 18.05, Texas Code of Criminal Procedure, for the inspection of property to determine the presence of a fire or health hazard, an unsafe building condition, or a violation of any fire, health, or building regulation, statute, or ordinance. An inspection warrant may be issued only upon application to a magistrate, which magistrate may be a municipal judge authorized by Section 30.00006(e), Texas Government Code. The application shall include an affidavit, which may be based on information supplied by others, stating facts establishing probable cause that a fire or health hazard or an unsafe building condition is present in or on the property to be inspected. An inspection warrant may not authorize the arrest of a person or the seizure of property. An inspection warrant may be issued to and served by either a peace officer or a city official designated pursuant to Article 18.05(d), Texas Code of Criminal Procedure.

Judge or *municipal judge.* The words "judge" or "municipal judge" or any like term shall be construed to mean a judge (or an acting judge) of a municipal court of the City of Houston.

Major collector street shall mean a public street that is not a thoroughfare, but that provides access and circulation between thoroughfares and other streets and is so designated on the major thoroughfare and freeway plan.

Major thoroughfare shall mean a public street designated as a principal thoroughfare or thoroughfare on the major thoroughfare and freeway plan.

Major thoroughfare and freeway plan or *MTFP* means the latest edition of the major thoroughfare and freeway plan adopted by the planning commission and approved by the city council.

May. The word "may" is permissive.

Mechanical Code means the *City of Houston Mechanical Code,* as adopted and amended by the city council.

Must. The word "must" is mandatory.

Neighborhood protection official means the director of neighborhoods and such other natural persons as the director may designate in writing to act on his behalf.

Nontechnical and technical words. Words and phrases shall be construed according to the common and approved usage of the language; provided, however, that technical words and phrases and such others as may have acquired a peculiar and appropriate meaning in law shall be construed and understood according to such meaning.

Notarization. Where notarization is required, an online notarization, as defined in Texas Government Code section 406.101, or electronic

notarization in compliance with Texas Government Code section 406.026 or other applicable law satisfies notarization requirements.

Number. A word imparting the singular number only may extend and be applied to several persons and things as well as to one person and thing.

Oath. The word "oath" shall be construed to include an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the words "swear" and "sworn" shall be equivalent to the words "affirm" and "affirmed."

Official time standard. Whenever certain hours are named herein they shall mean standard time or daylight-saving time as may be in current use in this city.

Or, and. "Or" may be read "and" and "and" may be read "or" if the sense requires it.

Owner. The word "owner" applied to a building or land, shall include any part owner, joint owner, tenant in common, tenant in partnership, joint tenant, or tenant by the entirety, of the whole or of a part of such building or land.

Parking official means the director of the department of administration and regulatory affairs or such other person as the said director may designate to act as the parking management official of the city and the said official's designee.

Person. The word "person" shall extend and be applied to associations, clubs, societies, firms, partnerships, and bodies politic and corporate as well as to individuals or groups of individuals.

Personal property includes every species of property except real property.

Planning official shall mean the director of planning and development and the director's designees.

Plumbing Code means the *City of Houston Plumbing Code,* as adopted and amended by the city council.

Residential Code means the *City of Houston Residential Code,* as adopted and amended by the city council.

Shall. The word "shall" is mandatory.

Signature means (a) any mark or sign that is written, printed, electronically inserted, stamped, engraved, or otherwise placed upon any instrument or document by the signatory with the intent to execute, acknowledge, attest, endorse, or authenticate the instrument or document; (b) an electronic signature as defined in this section; or (c) a 'digital signature' as defined by Section 2054.060 of the Texas Government Code, as may be amended from time to time.

State. The words "the state" or "this state" or "state" shall refer to the State of Texas.

Street. The word "street" shall be construed to embrace streets, avenues, boulevards, drives, roads, alleys, lanes, viaducts and all other public highways in the city.

Swimming Pool and Spa Code means the *City of Houston Swimming Pool and Spa Code,* as adopted and amended by the city council.

Tense. Words used in the present or past tense include the future as well as the present or past.

Traffic engineer shall mean the person designated under subsection (a) of section 45-5 of this Code.

Transit-oriented development plan or *TODP* means the latest edition of the transit-oriented development plan adopted by the planning commission.

Transit-oriented development street or *TOD street* means a public street designated as a primary TOD street or secondary TOD street on the transit-oriented development plan.

Utility official shall mean the Director of Houston Public Works and the director's designee. The term primarily relates to those Houston Public Works employees who are engaged in activities relating to the delivery of water and wastewater services.

Walkable places plan or *WPP* means the latest edition of the walkable places plan adopted by the planning commission and approved by the city council.

Walkable places street or *WP* street means a public street designated as a primary WP street or secondary WP street on the walkable places plan.

Writing. The words 'write,' 'writing,' and 'written' shall include printing, whether physically on paper or in electronic form.

Year, month. The word "year" shall be construed to mean a calendar year, and the word "month" shall be construed to mean a calendar month.

(b) The provisions of Titles 1, 2 and 3 of the Penal Code shall apply in the interpretation of all penal provisions of this Code to the extent that the Penal Code mandates that they shall apply.

(Code 1968, § 1-2; Ord. No. 72-201, § 1, 2-2-72; Ord. No. 89-1079, § 2, 7-12-89; Ord. No. 90-635, §§ 1—3, 5-23-90; Ord. No. 93-514, §§ 1, 2, 5-5-93; Ord. No. 94-674, § 2, 7-6-94; Ord. No. 98-334, § 1, 4-29-98; Ord. No. 98-613, § 9, 8-5-98; Ord. No. 99-378, § 1, 4-21-99; Ord. No. 02-399, § 11, 5-15-02; Ord. No. 02-528, § 14a., 6-19-02; Ord. No. 03-925, § 2, 10-8-03; Ord. No. 03-1196, § 2, 12-23-03; Ord. No. 04-1015, § 5, 9-27-04; Ord. No. 04-1075, § 1, 10-20-04; Ord. No. 05-995, § 1, 8-24-05; Ord. No. 07-464, § 2, 4-11-07; Ord. No. 07-840, § 1, 7-18-07; Ord. No. 08-417, § 2, 5-14-08; Ord. No. 08-568, § 18, 6-18-08; Ord. No. 2010-304, § 2, 4-21-2010, eff. 4-1-2010; Ord. No. 2011-108, § 2, 2-9-2011; Ord. No. 2011-108, § 2, 2-9-2011; Ord. No. 2011-378, § 2, 5-18-2011; Ord. No. 2011-697, § 1, 8-10-2011; Ord. No. 2011-1168, § 4, 12-14-2011; Ord. No. 2015-820, § 2, 8-26-2015; Ord. No. 2018-11, §§ 2, 49, 50, 51, 1-10-2018; Ord. No. 2020-320, §§ 2, 3, 4-15-2020; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020; Ord. No. 2021-1037, § 20(Exh. I.2, 3, 12-1-2021, eff. 4-1-2022)

Sec. 1-3. Catchlines.

(a) The catchlines of the several sections or subsections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the section and shall not be deemed or taken to be the titles of such sections or subsections, nor as any part thereof, nor shall they be so deemed when any of such sections or subsections, including the catchlines, are amended or reenacted, unless expressly so provided.

(b) The city has granted general discretion to Municipal Code Corporation as editor of this Code to include source references, editor's notes, charter references, internal cross references and similar notations throughout this Code. Such notations are intended for the convenience of the public in the use of this Code. The city has not reviewed the same and makes no representation as to their accuracy. Such notations do not constitute a part of this Code and shall have no legal effect upon its interpretation or enforcement.

(Code 1968, § 1-3)

Sec. 1-4. Amendments to Code.

All ordinances passed subsequent to this Code, which amend, repeal or in any way affect this Code, may be numbered in accordance with the numbering system of this Code and printed for inclusion herein. In the case of the repeal of any chapter, section and subsection or any part thereof by subsequent ordinance, such repealed portions may be excluded from the Code by omission from reprinted pages affected thereby.

Amendments to any of the provisions of this Code may be made by amending such provisions by specific reference to the section number of this Code in the following language: "That section _____ of the Code of Ordinances, Houston, Texas, is hereby amended to read as follows: . . . ." The amended provisions shall then be set out in full as desired.

In the event a new section not heretofore existing in the Code is to be added, the following language may be used: "That the Code of Ordinances, Houston, Texas, is hereby amended by adding a section, to be numbered _____, which said section reads as follows: . . . ." The new section shall then be set out in full as desired.

(Code 1968, § 1-4)

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Sec. 1-5. Effect of repeal of ordinances.

The repeal of any prior ordinance of the city by any subsequent ordinance shall not operate to revive the provisions of any ordinance which may have been repealed by such prior ordinance, unless such revival shall be expressly provided for. Ordinances repealed remain in force for the trial and punishment of all past violations of them, and for the recovery of penalties and forfeitures already incurred, and for the preservation of all rights and remedies existing by them and so far as they apply, to any office, trust, proceeding, right, contract or event, already affected by them.
(Code 1968, § 1-5)

Sec. 1-6. General penalty; continuing violations; license revocation, etc.

(a) When in this Code or in any ordinance of the city an act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor, or wherever in such Code or ordinance the doing of any act is required or the failure to do any act is declared to be unlawful, and no specific penalty is provided therefor, the violation of any such provision of this Code or any such ordinance shall be punished by a fine of not exceeding $500.00; provided, however, that no penalty shall be greater or less than the penalty provided for the same or a similar offense under the laws of the state. Each day any violation of this Code or of any ordinance shall continue shall constitute a separate offense.

(b) When in this Code or in any ordinance of the city an act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor, or wherever in such Code or ordinance the doing of any act is required or the failure to do any act is declared to be unlawful and the offense is punishable by a fine exceeding $500.00, yet no culpable mental state is prescribed as an element necessary for conviction of that unlawful act, then a person shall be considered to have committed an unlawful act if it can be shown that he acted with knowledge with respect to the nature of his conduct or to circumstances surrounding his conduct.

(c) The suspension, revocation, cancellation or denial of any license, permit or certificate by the city shall not prohibit the imposition of any civil or criminal penalty. The imposition of a civil or criminal penalty by the city shall not prohibit the suspension, revocation, cancellation or denial of any license, permit or certificate.
(Code 1968, § 1-7; Ord. No. 92-1449, § 2, 11-4-92; Ord. No. 06-263, § 2, 3-22-06)

Charter reference—Penalties for ordinance violations, Art. II, § 12.

Cross references—Application of state law to judgments, executions and fine collections, § 16-75; assessment of fines against corporations, 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

Sec. 1-7. Aiding or abetting violations.

The prohibition of any act in this Code, and in any rule or regulation adopted hereunder, shall include the causing, securing, aiding, or abetting of another person to do such act.
(Code 1968, § 1-8)

Sec. 1-8. Severability of parts of Code.

The sections, paragraphs, sentences, clauses and phrases of this Code are severable, and if any phrase, clause, sentence, paragraph or section of this Code shall be declared unconstitutional by the valid judgment or decree of any court of competent jurisdiction, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections of this Code.
(Code 1968, § 1-10)

Sec. 1-9. Procedures for denial, suspension or revocation of licenses and permits—Generally.

No permit or license authorizing a person to engage in a trade, occupation, vocation, profession or business, shall be denied, suspended, or revoked on the grounds that the applicant, permittee, or licensee has been convicted of, or has received adjudication for, a criminal offense except

under the following procedures and in accordance with Chapter 53 of the Texas Occupations Code:

(a) An applicant for a license or permit or for the renewal of a license or permit shall be given written notice informing him of the following matters:

(1) That the city has information that the applicant has been convicted of, or has received deferred adjudication for, certain offenses, and a list of the specific offenses for which the city has such information.

(2) That the application cannot be considered unless the applicant provides the city with evidence concerning each of the matters set out in Chapter 53 of the Texas Occupations Code within 30 days of the date of the notice. The applicant shall be informed that such evidence shall be in the form of sworn affidavits or declarations under penalty of perjury which must state that the affiant or declarant has personal knowledge of the facts set forth in the affidavit or declaration and state the basis of that personal knowledge, except where Chapter 53 of the Texas Occupations Code specifies that certain letters of recommendation shall be considered. If the applicant does not provide the city with the information required in the notice within 30 days of the date of the notice, the application shall be rejected for failure to complete the application process; provided, however, applicants for taxicab permits shall provide the director of the department of administration and regulatory affairs with the information required in the notice at least ten days prior to the date on which the hearing is to be held on the request for the permit.

If the applicant provides the city with evidence as specified above, the applicant shall be given notice that a hearing will be held on his application. Such notice shall specify the date, time and place that the hearing will be held.

(b) If the city desires to revoke or suspend a permit or license on the grounds that the permittee or licensee has been convicted of, or has received deferred adjudication for, a criminal offense, the city shall give the applicant written notice informing him of the following matters:

(1) That the city is seeking to revoke or suspend his license or permit on the grounds of a criminal conviction or convictions or deferred adjudication.

(2) The specific conviction or convictions or deferred adjudication upon which the city intends to rely in seeking revocation or suspension of the permit or license.

(3) That a hearing will be held on the city's request for revocation or suspension of the permit or license and the date, time and place of the hearing.

(4) That he may appear at the hearing, give testimony and examine witnesses.

(5) That the licensee or permittee shall have the burden to present evidence concerning each of the matters set out in Chapter 53 of the Texas Occupations Code.

(c) All hearings held in connection with the denial of an application or revocation or suspension of a permit or license to engage in a trade, occupation, profession, vocation or business, shall be conducted by the director of the department which issues such permits or licenses, or a person designated by the director to conduct such hearings; provided, however, all hearings on licenses or permits issued by any board whose members are

appointed by the mayor shall be conducted by the board which issues the license or permit.

All such hearings shall be conducted under rules consistent with the nature of the proceedings.

If the hearing is on an application for an initial license or permit or an application to renew a license or permit, and the applicant fails to appear at the hearing, the application shall be rejected and the permit or license denied on the basis of the applicant's failure to appear.

If the hearing is on a request by the city to revoke or suspend a permit or license on the grounds that the licensee or permittee has been convicted of a criminal offense or has received deferred adjudication and the applicant does not appear, the city shall introduce sufficient evidence to establish a prima facie case showing grounds for revocation.

If the hearing official finds that the applicant, permittee or licensee was convicted of, or has received deferred adjudication for, an offense that is grounds for denial, revocation or suspension of the license or permit under the ordinances of the city, the hearing official shall deny, revoke or suspend the license or permit unless he finds that the license or permit should be granted pursuant to Chapter 53 of the Texas Occupations Code.

The hearing official shall give written notice to the applicant, licensee or permittee of his findings as to whether the license or permit should or should not be denied, revoked or suspended, and the reasons therefor.

If the hearing official finds that the permit or license should be denied, revoked, or suspended on the basis of one or more criminal convictions or deferred adjudication, he shall also inform the applicant, permittee or licensee of his right to file an action in the district court in Harris County for review of the evidence presented to the licensing authority and its decision within 30 days after the date the decision was rendered by the hearing official. The manner of review for such decision shall be under the substantial evidence rule.

(d) There shall be no appeal to city council from the decision of a hearing official on the denial, revocation or suspension of a permit or license on the grounds of a criminal conviction.

(e) All notices required under this section shall be given by hand delivery or sent by certified mail, return receipt requested, to the applicant, licensee or permittee at the address set out in his application; provided, however, that the notice required in subsection 1-9(a) may be served by regular first class mail.

(f) Proceedings relating to licenses and permits issued under article III of chapter 8 of this Code shall additionally be governed by the procedures established therein. To the extent of any conflict, the provisions of chapter 8 shall control over this section.

(g) Proceedings relating to permits issued under article XIV of chapter 28 of this Code shall additionally be governed by the procedures established in this section. Applicants for permits under article XIV of chapter 28 of this Code who are denied such permit on the basis of one or more criminal convictions shall be considered applicants for purpose of this section, and those receiving registration under article XIV of chapter 28 of this Code later found subject to revocation of that permit on the basis of one or more criminal convictions for themselves or their employee(s) shall be considered licensees/permittees for purposes of this section.

(Code 1968, § 1-11; Ord. No. 82-303, § 1, 2-23-82; Ord. No. 97-129, § 2, 1-29-97; Ord. No. 2011-1012, § 2, 11-30-2011, eff. 1-1-2012; Ord. No. 2013-674, §§ 2, 3, 7-24-2013; Ord. No. 2013-

1159, §§ 12—15, 12-11-2013; Ord. No. 2014-482, § 21, 5-28-2014; Memorandum of 11-30-2015; Ord. No. 2018-225, § 3, 3-22-2018)

Sec. 1-10. Same—Specific permits, licenses, and registrations.

(a) Except as provided in item (2) of this subsection pertaining to wrecker driver licenses, the licenses and permits enumerated in this subsection shall be denied if the applicant:

(i) has been convicted of any of the enumerated offenses within the seven-year period immediately preceding the date of the filing of the application or has spent time in jail or prison during the seven-year period immediately preceding the date of filing of the application for such a conviction, or

(ii) is subject to deferred adjudication in connection with any of the enumerated offenses and has not completed the period of supervision, or completed the period of supervision less than five years before the date of the application, pursuant to § 53.021 of the Texas Occupations Code.

As to the wrecker driver license listed in item (2) of this subsection, the seven-year limitation shall not apply to any felony conviction for any sexual offense or offense involving violence, including, but not limited to, murder.

Additionally, the following licenses and permits shall be subject to denial, revocation, or refusal for renewal, as applicable, if the licensee or permittee has been convicted of any of the designated offenses since the application was filed. Provided, however, no such license or permit shall be denied, revoked, or refused for renewal if the conviction was set aside as invalid or if it is found that the license or permit should not be denied, revoked, or refused for renewal under Chapter 53 of the Texas Occupations Code:

(1) All licenses issued pursuant to article II of chapter 8 of this Code:

a. Any violation of the ordinances or statutes regulating the sale, trade, servicing, storage, handling, dismantling, or destruction of any motor vehicle or motor vehicle parts, accessories, or supplies.

b. Any violation of the ordinances or statutes regulating the business of selling, trading, storing, dismantling or destruction of motor vehicles or motor vehicle parts, accessories, or supplies.

c. Any offense involving forgery, fraud, misrepresentation, bribery, or perjury.

d. Any offense involving theft, criminal mischief, robbery, or burglary.

e. Any offense involving violence to any person except for conduct that is classified as no greater than a Class C misdemeanor under the laws of Texas.

f. Any felony conviction for any violation of any state or federal laws regulating firearms.

g. For salesman licenses, in addition to the offenses listed in this subparagraph, any offense involving rape, sexual abuse, sexual assault, enticing of a child, rape of a child, sexual abuse of a child, indecency with a child, solicitation of a minor, public lewdness, or indecent exposure.

The above listed offenses shall be grounds for denial, revocation, or refusal for renewal of the licenses issued pursuant to article II of chapter 8 as all licenses issued under that article allow persons to engage in businesses connected with the sale, trade, servicing, storage, handling, dismantling, or destruction of motor vehicles or motor vehicle parts, accessories or supplies and city council finds that persons engaged in such businesses have contact with the public or have special opportunities to engage in the offenses listed above due to the nature of the businesses and the lack of relevant technical knowledge on the part of many of those persons who deal with such businesses.

(2) Wrecker driver licenses issued pursuant to subdivision B of division 2 of article III of chapter 8 of this Code:

a. Any violation of the ordinances or statutes regulating the sale, trade, servicing, storage, towing, handling, dismantling, or destruction of any motor vehicle or motor vehicle parts, accessories, or supplies.

b. Any offense involving forgery, fraud, misrepresentation, bribery, or perjury.

c. Any offense involving theft, criminal mischief, robbery, or burglary.

d. Any offense involving violence to any person except for conduct that is classified as no greater than a Class C misdemeanor under the laws of Texas.

e. Any felony conviction for any violation of any state or federal laws regulating firearms.

f. Any offense involving the theft or unauthorized use of a motor vehicle or burglary of a motor vehicle.

g. Any offense involving prostitution or the promotion of prostitution.

h. Any offense involving rape, sexual abuse, sexual assault, enticing of a child, rape of a child, sexual abuse of a child, indecency with a child, solicitation of a minor, public lewdness, or indecent exposure.

i. Any offense involving misdemeanor or felony possession or delivery of drugs.

j. Four or more moving violations of the traffic laws of this state or any other state, each of which arises from a separate incident, occurring within any 12-month period during the three years immediately preceding the application for a license or of the notice of a hearing for revocation of a license.

k. Any offense involving driving a motor vehicle while intoxicated, whether under the influence of alcohol or drugs, or both.

The above listed offenses shall be grounds for denial, revocation, or refusal for renewal of a wrecker driver license issued pursuant to subdivision B of division 2 of article III of chapter 8 as that license allows persons to engage in an occupation in which there is a high degree of danger to the public through the involuntary towing and storage of automobiles, and city council finds that such activities involve substantial contact with the public including contact with persons whose vehicles may have become disabled at all hours of day and night and in remote locations. This occupation also affords special opportunities for theft and fraud. Therefore, there is a serious need to protect the public from the types of criminal conduct represented by such offenses.

Provided, however, no such license or permit shall be denied, revoked or refused for renewal if any conviction was set aside as invalid or if it is found that the license should not be revoked, denied or refused for renewal under chapter 53 of the Texas Occupations Code.

Additional provisions relating to the revocation, suspension, and refusal to renew wrecker driver licenses are established in article III of chapter 8 of this Code. The applicable provisions of chapter 8 are cumulative of the provisions of this section and shall also constitute grounds for the revocation, suspension or refusal to renew a wrecker driver license.

(3) Licenses issued pursuant to 5-163 of this Code authorizing a person to operate, use or maintain a game room or any room or place where persons are permitted to play at any game of dominoes, cards or other games, as described in section 5-162(b) of this Code:

a. Gambling, gambling promotion, keeping a gambling place, communicating gambling information, possession of gambling devices or equipment, or possession of gambling

paraphernalia as described in Chapter 47 of the Texas Penal Code;

b. Forgery, credit card abuse or commercial bribery as described in Chapter 32 of the Texas Penal Code;

c. A criminal offense as described in Chapter 34 of the Texas Penal Code;

d. Criminal attempt, conspiracy or solicitation to commit any of the foregoing offenses; or any other offense to the laws of another state or of the United States that, if committed in this state, would have been punishable as one or more of the aforementioned offenses; or

e. A criminal offense as described in Chapter 352, Subchapter B of the Texas Local Government Code; and

[1] Less than two years have elapsed since the date of conviction or the date of release from confinement imposed for the conviction, whichever is the later date if the conviction is of a misdemeanor offense; or

[2] Less than five years have elapsed since the date of conviction or the date of release from confinement for the conviction, whichever is the later date, if the conviction is of a felony offense.

Offenses involving gambling and the possession of gambling paraphernalia shall be grounds for denial, revocation or refusal for renewal of such licenses because these businesses offer special opportunities for gambling activities.

(4) Licenses issued pursuant to the Fire Code of the city:

a. All permits relating to explosives as required under the Fire Code: any offense involving arson or intoxication.

b. All permits relating to flammable liquids as required the Fire Code: any offense involving arson or intoxication.

c. All permits for a public fireworks display as required under the Fire Code: any offense involving arson or intoxication.

d. All permits for open burning as required under the Fire Code: all offenses involving arson. The above listed offenses shall be grounds for denial, revocation, or refusal for renewal of the above listed Fire Code permits as city council finds that these permits authorize persons to handle substances that can cause substantial injury to persons or destruction of property through the willful or careless action of the permittee.

(5) Licenses issued to crafted precious metals dealers pursuant to Chapter 7 of this Code:

a. Any violation of the ordinances or statutes regulating the purchase or sale of crafted precious metals.

b. Any offense involving fraud or misrepresentation.

c. Any offense involving theft, robbery, or burglary.

d. Any offense involving forgery.

e. Any offense involving a false report to a peace officer, federal special investigator or law enforcement employee as described in Chapter 37 of the Texas Penal Code.

f. Any offense involving tampering with or fabricating physical evidence as described in Chapter 37 of the Texas Penal Code.

g. Any offense involving tampering with a governmental record as described in Chapter 37 of the Texas Penal Code.

The above listed offenses shall be grounds for denial or revocation of, or refusal to renew a precious metals dealer's license issued pursuant to Chapter 7, Article IV, because the license allows persons to engage in a business in which there is a high degree of opportunity for unlawful practices relating to the crafted precious metals trade. The precious metals business also affords special opportunities for theft, fraud, and false reporting. Therefore, there is a serious need to protect the public from the types of criminal conduct represented by these offenses.

(6) Reserved.

(b) The authorizations enumerated in this subsection shall be denied if the applicant has been convicted of any of the designated offenses within the five-year period immediately preceding the date of the filing of the application or has spent time in jail or prison during the five-year period immediately preceding the date of the filing of the application for such a conviction. Additionally the following authorizations shall be subject to denial, revocation, or refusal for renewal, as applicable, if the holder has been convicted of any of the designated offenses since the application was filed. Provided however, no such authorization shall be denied, revoked or refused for renewal if the conviction was set aside as invalid or if it is found that the authorization should not be denied, revoked or refused for renewal under chapter 53 of the Texas Occupations Code:

(1) Authorizations for private storage lots issued pursuant to chapter 8, article III, division 3 of this Code:

a. Any offense involving fraud or theft;

b. Any offense involving the unauthorized use of a motor vehicle;

c. Any offense involving forgery;

d. Any violation of state or federal laws regulating firearms;

e. Any offense involving violence to any person except for conduct that is classified as no greater than a Class C misdemeanor under the laws of the state;

f. Any offense involving the possession, use of or sale of drugs except for conduct that is classified as no greater than a Class C misdemeanor under the laws of this state;

g. Any offense involving prostitution or the promotion of prostitution;

h. Any offense involving rape, sexual abuse, sexual assault, rape of a child, sexual abuse of a child or indecency with a child; or

i. Any violation of state laws relating to the operation of motor vehicle storage lots.

The above listed offenses shall be grounds for the denial, revocation or nonrenewal of authorizations issued under division 3, article III of chapter 8, as enumerated, because the authorizations thereunder allow persons to engage in businesses and occupations in which there is a high degree of danger to the public through the voluntary or involuntary storage of automobiles. Such activities involve substantial contact with the public including contact with persons whose vehicles have become disabled at all hours of day and night. These businesses also afford special opportunities for theft and fraud. Therefore, there is a serious need to protect the public from the types of criminal conduct represented by such offenses.

(2) Permits for sexually oriented business enterprise entertainers and managers issued pursuant to article VIII of chapter 28 of this Code:

a. Any of the following offenses as described in chapter 43 of the Texas Penal Code:

(i) Prostitution;

(ii) Promotion of prostitution;

(iii) Aggravated promotion of prostitution;

(iv) Compelling prostitution;

(v) Obscenity;

(vi) Sale, distribution or display of harmful material to a minor;

(vii) Sexual performance by a child;

(viii) Employment harmful to children; or

(ix) Possession or promotion of child pornography;

b. Any of the following offenses as described in chapter 21 of the Texas Penal Code:

(i) Public lewdness;

(ii) Indecent exposure; or

(iii) Indecency with a child;

c. Sexual assault or aggravated sexual assault as described in chapter 22 of the Texas Penal Code;

d. Harboring a runaway child as described in chapter 25 of the Texas Penal Code;

e. Criminal attempt, conspiracy or solicitation to commit any of the above offenses; or

f. Any violation of article VIII of chapter 28 of this Code.

The above-listed offenses shall be grounds for the denial, revocation or refusal for renewal of a permit under article VIII of chapter 28 of this Code because persons who hold that permit are employed by sexually oriented businesses where there is a high degree of opportunity for unlawful sexual conduct or the solicitation thereof, lewd conduct, obscenity offenses, and conduct harmful to minors. Therefore, the enumerated offenses are directly related to the duties and responsibilities authorized by the subject permit. There is a serious need to protect members of the public and fellow employees of sexually oriented business enterprises from persons who have the foregoing criminal histories.

(3) All certificates, licenses, permits, registrations, and other authorizations issued pursuant to chapter 47, article XI of this Code:

a. Any offense involving violation of federal, state and local litter, special waste and hazardous waste laws including, without limitation, those relating to permitting of transporters and biological pretreatment.

b. Any offense involving fraud or misrepresentation.

c. Any offense involving forgery.

The above listed offenses shall be grounds for the denial, revocation or refusal to renew certificates, licenses, permits, registrations and other authorizations pursuant to chapter 47, article XI of this Code because the holders thereof engage in activities where there is a high degree of opportunity for the unlawful handling or disposition of waste materials or the alteration or fabrication of records relating thereto.

(4) Permits for valet parking services issued pursuant to chapter 26, article VII, division 2 of this Code:

a. Any offense involving burglary, fraud or theft;

b. Any offense involving the unauthorized use of a motor vehicle;

c. Any offense involving forgery;

d. Any violation of state or federal laws regulating firearms;

e. Any offense involving violence to any person except for conduct that is classified as no greater than a Class C misdemeanor under the laws of the state;

f. Any offense involving the possession, use of or sale of drugs except for conduct that is classified as no greater than a Class C misdemeanor under the laws of this state;

g. Any violation of state laws relating to the operation of motor vehicle storage lots.

h. Any offense involving driving a motor vehicle while intoxicated, whether under the influence of alcohol or drugs, or both.

The above listed offenses shall be grounds for the denial, revocation or nonrenewal of permits issued under division 2 of article VII of chapter 26, as enumerated, because the authorizations thereunder allow persons to engage in businesses and occupations in which there is a high degree of danger to the public through the operation of automobiles. Such activities involve substantial contact with the public, including assuming possession of automobiles owned by members of the public. These businesses also afford special opportunities for theft and fraud. Therefore, there is a serious need to protect the public from the types of criminal conduct represented by such offenses.

(5) Permits for vehicle immobilization services issued pursuant to chapter 26, article X, division 2 of this Code:

a. Any offense involving burglary, fraud or theft;

b. Any offense involving the unauthorized use of a motor vehicle;

c. Any offense involving forgery;

d. Any violation of state or federal laws regulating firearms;

e. Any offense involving violence to any person except for conduct that is classified as no greater than a Class C misdemeanor under the laws of the state;

f. Any offense involving the possession, use of or sale of drugs except for conduct that is classified as no greater than a Class C misdemeanor under the laws of this state;

g. Any violation of state laws relating to the operation of motor vehicle storage lots; and

h. Any offense involving driving a motor vehicle while intoxicated, whether under the influence of alcohol or drugs, or both.

The above listed offenses shall be grounds for the denial, revocation or nonrenewal of permits issued under division 2, article X of chapter 26 of this Code, as enumerated, because the authorizations thereunder allow persons to engage in businesses and occupations in which there is a high degree of danger to the public through the immobilization of automobiles. Such activities involve substantial contact with the public, including contact with persons whose vehicles may be rendered inoperable by an immobilization device at all hours of the day and night. These businesses also afford special opportunities for theft and fraud. Therefore, there is a serious need to protect the public from the types of criminal conduct represented by such offenses.

(6) Permits for boarding homes and boarding home operators issued pursuant to chapter 28, article XIV of this Code:

a. Any offense involving fraud or theft;

b. Any offense involving forgery;

c. Any violation of state or federal laws regulating firearms;

d. Any offense involving the possession, use of or sale of drugs except for conduct that is classified as no greater than a Class C misdemeanor under the laws of this state;

e. Any offense involving prostitution or the promotion of prostitution;

f. Any offense involving rape, sexual abuse, sexual assault, rape of a child, sexual abuse of a child or indecency with a child;

g. Any other felony offense listed under Title 5 to the Texas Penal Code.

The above listed offenses shall be grounds for the denial, revocation or nonrenewal of authorizations issued under article XIV of chapter 28, as enumerated, because the authorizations thereunder allow persons to engage in businesses and occupations in which there is a high degree of danger to the elderly, the disabled, and members of the general public through the operation of boarding homes. Such activities involve the operation of boarding homes and providing direct personal assistance and services in a closed facility to disabled and elderly individuals who cannot fend for themselves; such assistance and services include lodging, meal preparation, light housework, transportation, grocery shopping, money management, and assistance with self-administration of medication. Providing these services affords special opportunities for theft, fraud, personal and sexual abuse, assault, transportation related offenses and injuries, misuse and theft of drugs, assault with a deadly weapon, and other crimes traditionally committed against the infirm and the defenseless. Therefore, there is a serious need to protect the individuals housed in these facilities and members of the general public from the types of criminal conduct represented by such offenses.

(7) Licenses issued for dance halls pursuant to chapter 5, article III, of this Code:

a. Any offense involving fraud or misrepresentation;

b. Any offense involving bribery or perjury;

c. Any offense involving violence to any person except for conduct that is classified as no greater than a class C misdemeanor under the laws of Texas;

d. Any felony conviction for any violation of any state or federal laws regulating firearms;

e. Any violation of the Texas liquor laws;

f. Any offense involving prostitution or aiding, abetting, or promotion of prostitution; or

g. Any violation of the Texas Controlled Substances Act or other state or federal law regulating drugs that permits punishment of confinement for one year or more upon conviction for such violation.

The above listed offenses shall be grounds for denial, revocation or refusal for renewal of dance hall licenses issued pursuant to article III, chapter 5 of this Code, as licenses authorized thereunder allow persons to engage in businesses and occupations in which there is a high degree of personal contact with and danger to the public and a serious need to protect the members of the public patronizing dance halls from the type of criminal conduct represented by such offenses.

(8) Occupational licenses or permits issued to, or in connection with, the following businesses or occupations:

TYPE OF PERMIT	*CODE REFERENCE**
Ambulance Permits	4-1 thru 4-19
Antique Dealers, Precious Metals Dealers, Resale Media & Clothing Dealers	7-16 thru 7-50
Automotive Body Repair Shop	21-166(a)(1)
Automotive Parts Rebuilder	8-16, 8-51, et seq.
Automotive Rebuilder and Dismantler	8-16, 8-51, et seq.
Automotive Repair Facility	8-16, 8-51, et seq.
Automotive Storage Lot Operator	8-16, 8-51, et seq.
Body Shop Facility With Storage Privileges	8-16, 8-51, et seq.; 20-166(a)(1)
Carnival Amusement	5-16 thru 5-45
Charter Bus Operator	46-211(a)
Common Market	7-108(a)
Concrete Crushing Site	21-167, et seq.
Dance Hall	5-71, et seq.
Dealer—Vehicles, Parts, Accessories	8-16, 8-51, et seq.
Drain Layer	47-221; Plumbing Code § 104

TYPE OF PERMIT	*CODE REFERENCE**
Dealer in Motor Vehicles	8-16, 8-51, et seq.
Dry Cleaning Plant	21-166(a)(3); Fire Code § 105.6.13
Farmers Market	20-186, et seq.
Food Dealers (restaurants, street vendors, etc.)	20-36 thru 20-44
Gas Dispensing Site	21-166(a)(2)
House Mover	10-84
House Repair or Resale Lot	10-49(e)
Jitney Permit	46-321 thru 46-370
Kennel License	6-121 thru 6-126
Limousine Permit	46-331, et seq.
Low Speed Shuttle Permit	46-391, et seq.
Metal Recyclers	7-51 thru 7-80
Mini Warehouse	27-1 thru 27-6
Mobile Dispatch Service Certificate of Registration	46-452
Parking Facility	8-16, 8-51, et seq.
Pedicab Permit	46-141 thru 46-190
Retail Supply Dealer	8-16, 8-51, et seq.
School Vehicles	46-276 thru 46-320
Secondhand Reseller	7-57(b)
Sexually Oriented Businesses	28-81 thru 28-150
Sidewalk Sales and Performances (food; merchandise)	40-261 thru 40-280
Skeet Club/Shooting Gallery	5-139
Storage Lot	8-16, 8-51, et seq.
Street Vendors	22-1 thru 22-50
Swimming Pools	43-31 thru 43-39
Taxicabs	46-16 thru 46-140
Tire Transporter	21-198(c)
Used Parts & Used Accessory Dealer	8-16, 8-51, et seq
Used vehicle sales lot	21-166(a)(4)
Valet Parking Services	26-371 thru 26-452
Vehicle Immobilization Service	26-651, et seq.
Wholesale Auto Jobber & Supply Dealer	8-16, 8-51, et seq.
*** All references are to the numbered sections of the City's Code of Ordinances unless otherwise specified.**	

a. A conviction of either criminal offense defined in the Texas Pay Day Act, Texas Labor Code, Section 61.019; or

b. A conviction of the criminal offense of theft of service defined in Texas Penal Code, Section 31.04(a)(4).

For purposes of this item, conviction means that a final adjudication of guilt relating to a criminal offense described in this item has been entered that has not been satisfied and for which no further appeal is available; the conviction shall be grounds for the denial, revocation or nonrenewal of any occupational license or permit issued to any business or occupation described in this item for a period of five years following the date of such conviction.

(9) Licenses issued to metal recyclers pursuant to article III of chapter 7 of this Code: Any misdemeanor offense greater than a Class C misdemeanor offense under the laws of this state involving:

a. Arson, criminal mischief, or other property damage or destruction;

b. Burglary or criminal trespass;

c. Theft;

d. Fraud;

e. Bribery or corrupt influence;

f. Perjury or other falsification;

g. Any violation of section 1956.038 or 1956.040 of the Texas Occupations Code, as may be amended from time to time; and

h. A prohibited weapon or explosive weapon; and

i. A component of explosives.

(10) Permits issued for BYOB establishments pursuant to chapter 28, article XXII, of this Code:

a. Any offense involving fraud or misrepresentation;

b. Any offense involving bribery or perjury;

c. Any offense involving violence to any person except for conduct that is classified as no greater than a class C misdemeanor under the laws of Texas;

d. Any felony conviction for any violation of any state or federal laws regulating firearms;

e. Any violation of the Texas liquor laws;

f. Any offense involving prostitution or aiding, abetting, or promotion of prostitution; or

g. Any violation of the Texas Controlled Substances Act or other state or federal law regulating drugs that permits punishment of confinement for one year or more upon conviction for such violation.

The above listed offenses shall be grounds for denial, revocation, or refusal for renewal of BYOB establishment permits issued pursuant to article XXII, chapter 28 of this Code, as permits authorized thereunder allow persons to engage in businesses and occupations in which there is a high degree of personal contact with and danger to the public and a serious need to protect the members of the public patronizing BYOB establishments from the type of criminal conduct represented by such offenses.

(c) The permits, certificates of registration, and licenses enumerated in this subsection shall be denied if the applicant (i) has been convicted of any of the designated offenses within the ten-year period immediately preceding the date of the filing of the application or has spent time in jail or prison during the ten-year period immediately preceding the date of filing of the application for such a conviction, or (ii) is subject to deferred adjudication in connection with any of the above offenses. Additionally, the following permits, certificates of registration, and licenses shall be subject to denial, revocation, or refusal for renewal, as applicable, if the permittee, registrant, or licensee has been convicted of any of the designated offenses since the application was filed. Provided, however, no such permit, certificate of registration, or license shall be denied, revoked, or refused for renewal if the conviction was set aside as invalid or if it is found that the license or permit should not be denied, revoked or refused for renewal under chapter 53 of the Texas Occupations Code:

(1) SGT licenses issued pursuant to section 9-58 of this Code and permits, certificates of registration, and licenses issued pursuant to chapter 46 of this Code:

a. Any offense involving fraud or theft;

b. Any offense involving forgery;

c. Any offense involving the unauthorized use of a motor vehicle;

d. Any violation of state or federal laws regulating firearms;

e. Any offense involving violence to any person except for conduct that is classified as no greater than a Class C misdemeanor under the laws of Texas;

f. Any offense involving prostitution or the promotion of prostitution;

g. Any offense involving rape, sexual abuse, sexual assault, rape of a child, sexual abuse of a child, indecency with a child, or resulting in designation of the individual as a "registered sex offender" by any state or by the federal government;

h. Any offense involving the use of or sale of drugs;

In addition to the offenses listed above, the following shall apply to SGT licenses issued pursuant to section 9-58 of this Code and licenses issued pursuant to Chapter 46 of this Code:

i. Three or more moving violations of the traffic laws of this state or any other state if such violations occurred within the two years immediately preceding the application for or renewal of a license or of the notice of a hearing for revocation of a license;

j. Any offense involving driving a motor vehicle while intoxicated, whether under the influence of alcohol or drugs, or both.

The above listed offenses shall be grounds for denial, revocation or refusal for renewal of the above referenced permits, certificates of registration, and licenses as they allow persons to engage in businesses and occupations in which there is a high degree of personal contact with and danger to the public and a serious need to protect the members of the public utilizing public transportation services from the type of criminal conduct represented by such offenses.

(2) Licenses issued for metal recyclers pursuant to Chapter 7, Article III of this Code:

a. Any felony offense involving arson, criminal mischief, or other property damage or destruction;

b. Any felony offense involving burglary or criminal trespass;

c. Any felony offense involving theft;

d. Any felony offense involving;

e. Any felony offense involving bribery or corrupt influence;

f. Any felony offense involving perjury or other falsification;

g. Any felony offense involving any violation of section 1956.038 or 1956.040 of the Texas Occupations Code, as may be amended from time to time;

h. Any felony offense involving a prohibited weapon or explosive weapon;

i. Any felony offense involving any component of explosives;

j. Any sexually violent offense as defined by the Texas Code of Criminal Procedure, Article 62.001; and

k. Any offense listed in the Texas Code of Criminal Procedure, Article 42.12, section 3(g).

The above listed offenses shall be grounds for the denial or revocation of a license issued under article III of chapter 7 of this Code because persons who hold such a license are allowed to engage in a business in which there is a high degree of opportunity for the unlawful sale or purchase of metal items or the alteration or fabrication of records relating to the sale or purchase of metal items. Therefore, there is a serious need to protect the public from the types of criminal conduct represented by these offenses.

(d) This section shall not limit the right of the city to deny, revoke or refuse to renew any license or permit on any grounds set out in the ordinance relating to such license or permit except insofar as such license or permit is denied or revoked on the basis of a criminal conviction. (Ord. No. 85-2121, §§ 2, 3, 12-10-85; Ord. No. 90-14, § 6, 1-10-90; Ord. No. 90-253, § 1, 2-28-90; Ord. No. 92-1093, § 26, 8-12-92; Ord. No. 95-613, § 2, 6-14-95; Ord. No. 97-75, § 5, 1-15-97; Ord. No. 97-196, § 2, 2-19-97; Ord. No. 99-1331, § 2, 12-15-99; Ord. No. 00-960, § 1, 11-1-00; Ord. No. 01-1079, § 2, 12-5-01; Ord. No. 03-703, § 4, 7-30-03; Ord. No. 03-1046, § 1, 11-12-03; Ord. No. 03-1319, § 2, 12-23-03; Ord. No. 03-1324, § 1, 12-23-03; Ord. No. 05-116, §§ 2, 3, 2-9-05; Ord. No. 07-227, §§ 12, 13, 14, 2-14-07; Ord. No. 07-1111, § 3, 10-3-07; Ord. No. 08-847, § 4, 9-24-08; Ord. No. 2010-834, §§ 2—4, 10-27-2010; Ord. No. 2011-489, § 2, 6-22-2011; Ord. No. 2013-111, § 19, 2-6-2013; Ord. No. 2013-157, §§ 2, 3, 2-20-2012; Ord. No. 2013-613, § 3, 6-19-2013; Ord. No. 2013-674, §§ 4, 5, 7-24-2013; Ord. No. 2013-1081, § 2, 11-20-2013; Ord. No. 2013-1159, §§ 16, 17, 12-11-2013; Ord. No. 2014-482, § 22, 5-28-2014; Ord. No. 2014-674, § 2, 6-25-2014; Ord. No. 2014-754, §§ 3, 4, 8-6-2014; Ord. No. 2016-964, §§ 7—9, 12-7-2016; Ord. No. 2018-225, § 4, 3-22-2018; Ord. No. 2018-645, § 2, 8-15-2018; Ord. No. 2019-669, § 52, 9-4-2019; Ord. No. 2021-1037, § 20(Exh. I.4, 12-1-2021, eff. 4-1-2022; Ord. No. 2023-376, § 2, 5-24-2023)

Sec. 1-11. Declaration for permits, licenses, etc.

(a) A license, permit or certificate issued pursuant to any code or ordinance of the city shall not be issued unless the applicant submits with the application the following declaration, pursuant to Texas Civil Practice and Remedies Code section 132.001:

My name is _____ (first, middle, and last name), my date of birth is

_____, and my address is _____ (street, city, state, zip code) and _____ (country).

I have personal knowledge of the statements made in the application. None of the statements are misleading or false. I acknowledge that issuance of the license, permit or certificate does not excuse or approve any violation of deed restrictions or city, state, or federal laws or regulations. To the extent that this declaration is made on behalf of a corporation or any other legal entity or persons, I certify that I have fully advised them of the contents of the application and this declaration and that I am authorized to execute this declaration.

I declare under penalty of perjury that the foregoing is true and correct.

Executed in _____ County, State of _____, on the ____ day of _____, (month), _____, (year).

/s/ _____
Declarant

(b) Each city permit, license or certificate shall include the following statement in a conspicuous place:

> The issuance of this permit, license or certificate does not constitute approval by the City of Houston for the violation of any deed restriction, or any city, state and federal laws, regulations, or ordinances. Each holder and other person acting under the authority of this permit, license or certificate is personally responsible for complying with deed restrictions and city, state and federal laws relating to the activity contemplated by this permit, license or certificate.

(c) The provisions of this section are applicable to original applications and renewal applications for permits, licenses and certificates.

(Ord. No. 89-714, § 1, 5-17-89; Ord. No. 94-1268, § 4, 11-22-94; Ord. No. 05-91, § 1, 1-25-05; Ord. No. 2013-794, § 2, 9-11-2013; Ord. No. 2015-160, §§ 2, 3, 2-18-2015)

Editor's note—Ord. No. 2015-160, adopted February 18, 2015, amended the title of § 1-11 to read as herein set out. Formerly said section was entitled "Affidavit for permits, licenses, etc."

Sec. 1-12. Late renewals of permits.

(a) In this section the following words shall have the meanings ascribed to them in this subsection unless the context of their usage clearly indicates another meaning:

Director means the department director of the city department that is responsible for the processing of the renewal of a permit.

Permit means a license, certificate, approval, registration, consent, permit or any other form of authorization required by law, regulation or ordinance for the operation of any business activity that is issued by any department of the city.

(b) Notwithstanding any other provision of law, a director shall accept and process a late filed application for the renewal of a permit if the application is filed or tendered for filing within the 30 day period following the last day otherwise authorized by law for filing of the renewal application and if the applicant demonstrates that the failure to timely file was based upon an error or misunderstanding and was not the result of a conscious indifference to the requirements for renewal.

(c) The provisions of this section shall not be construed to excuse compliance with any applicable requirement other than the filing date for a permit renewal, and the applicant shall be required to demonstrate compliance with all other requirements for renewal of the permit. A permit renewal issued under this section shall not be retroactive for the conduct of any business activity during the period of any lapse prior to the issuance of the renewal, and

this section shall not be construed to excuse the conduct of any business activity without a current and valid permit.

(d) The refusal of a director to accept or process the filing of a late filed permit renewal application under this section shall be subject to appeal in the same manner provided by the law governing issuance of the permit.

(e) The provisions of this section shall not apply in any instance where the late filing or processing of the permit is prohibited by a state or federal law or regulation that supersedes the operation of this section.

(f) To the extent that any law regarding the issuance of a permit conditions the issuance of the permit upon the existence or nonexistence of another permit for a premises conducting the same or another activity within a specified proximity, a lapsed permit shall be considered to still exist during the grace period authorized under this section and until the resolution of any late renewal application that is filed under this section for the limited purpose of determining the existence of other permit holders in the processing of any application for an original permit.
(Ord. No. 95-868, § 1, 8-9-95)

Sec. 1-13. Annual fee increase.

(a) The fees to which this section applies shall be adjusted according to this provision and automatically increased on the first day of January 2012, and on January 1 of each subsequent calendar year, by a percentage equal to the percentage increase shown in the most recent available 12 month Consumers Price Index, if any, over the previous one year period ("the CPI Adjustment"). If there is a decrease in the CPI Adjustment, or if there is no increase in any period measured by the CPI Adjustment, the fees then existing shall remain unchanged.

(b) For purposes of this section only, the following terms shall have the meanings set forth in this subsection unless the context or other language clearly provides to the contrary:

Contract fee means a fee set forth in and agreed upon by the city in a written contract to which the city is a party and which makes no reference to any provision of the Code.

Franchise fee means a fee charged to be paid to the city by a utility, telecommunications, gas or other public or private utility provider for the privilege of using, occupying or maintaining facilities or infrastructure within a public street or right-of-way or other city property, whether such obligation to pay arises from a contract or state or other law.

License fee means a fee paid to the city for the issuance of a written record authorizing the holder thereof to engage in an occupation, trade, business or other activity or in an activity otherwise unlawful.

Parking fee means a fee paid to the city to park a vehicle in a city-owned parking lot, garage or other structure devoted to such use.

Parking meter fee means a fee paid to the city to park in any portion of a public street in the city designated and marked for the on-street parking of vehicles.

Permit fee means a fee paid to the city to obtain a written record authorizing the holder thereof to engage in an activity, action, event, or other conduct, whether commercial or otherwise, regulated by the city and otherwise unlawful.

Service fee means a fee paid to the city for the provision of a service provided to a person by the city.

User fee means a fee paid to the city for the use of a city-owned or controlled facility, structure, recreational or other area or for the use of a transportation or other facility or service provided by the city.

(c) Except for the fees excluded by the following subsection, all fees set forth in this Code, and whether made by motion of the city council or by a director acting pursuant to authorization granted by the city council, shall be adjusted according to the procedures set forth in this section. Where a fee subject to this section is established within a range, each end of the range of such fee shall be subject to this provision. Where a maximum fee is established in this Code, the maximum shall also be subject to adjustment under this section.

(d) This section shall not apply to the following fees:

(1) Any fee subject to other automatic increase provisions or to other limitations or provisions in this Code or other applicable law, including but not limited to water, sewer, drainage, or similar fees.

(2) Contract fees;

(3) Franchise fees; and

(4) User fees.

(e) For new fees or fee adjustments that become effective on a date other than January 1, the next following January 1 increase will be prorated so that the increase will be for the amount of increase in the CPI that has occurred between the fee effective date and that January 1.

(f) Proposal for new fees will be prepared by the department director and forwarded to the director of finance for review prior to being presented to city council for approval.

(g) The director of finance is authorized to promulgate rules regarding rounding of fee amounts, the treatment of applicable sales taxes and other similar issues.
(Ord. No. 2010-1016, § 3, 12-15-2010; Ord. No. 2011-1168, § 9, 12-14-2011)

Sec. 1-14. Administrative fee.

An administrative fee shall be collected from the applicant at the time of application for any license, permit or service for which the fee is greater than $50.00, in addition to the fee set out in this Code. The current fee is set forth by reference to this provision in the city fee schedule. In the case of a renewal for which no application is filed, the administrative fee shall nevertheless be collected prior to the granting of the renewal. The administrative fee shall be in addition to the fee for the permit, license or other service. The administrative fee shall be subject to the CPI Adjustment set out in section 1-13 of this Code. This section shall not apply to fees that are subject to other administrative fee provisions or to other limitations or provisions in this Code or other applicable law.
(Ord. No. 2010-1016, § 14, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 1-15. Conducting national criminal background checks.

(a) This section applies to the following licenses, permits or authorizations or renewals thereof:

(1) All licenses issued pursuant to article II of Chapter 8 of this Code except retail supply dealer licenses;

(2) Wrecker licenses issued pursuant to subdivision B of division 2 of article III of Chapter 8 of this Code;

(3) Licenses issued pursuant to 5-163 of this Code authorizing a person to operate, use or maintain a game room or any room or place where persons are permitted to play at any game of dominoes, cards, or other games as described in section 5-162(b) of this Code;

(4) Authorizations for private storage lots issued pursuant to Chapter 8, article III, division 3 of this Code;

(5) Permits for sexually oriented business enterprise entertainers and managers issued pursuant to article VIII of Chapter 28;

(6) Permits for valet parking services, issued pursuant to Chapter 26, article VII, division 2;

(7) Permits for vehicle immobilization services issued pursuant to Chapter 26, article X, division 2 of this Code;

(8) SGT licenses issued pursuant to section 9-58 of this Code and permits, certificates of registration, and licenses issued pursuant to Chapter 46 of this Code;

(9) Licenses for crafted precious metals dealers issued pursuant to article IV of Chapter 7 of this Code;

(10) Permits for boarding homes issued pursuant to article XIV of chapter 28 of this Code;

(11) Licenses issued for dance halls pursuant to chapter 5, article III, of this Code; or

(12) Licenses issued to metal recyclers pursuant to article III of Chapter 7 of this Code.

(13) Permits for BYOB establishments issued pursuant to chapter 28, article XXII of this Code.

(b) This section is enacted pursuant to §§ 411.122 and 411.087 of the Texas Government Code, which authorizes the city to obtain criminal history record information maintained or indexed by the Federal Bureau of Investigation ("FBI") through the Texas Department of Public Safety ("DPS").

(c) Each individual whose application for a license, permit or authorization or any renewal thereof is subject to subsection (a) shall be required to provide a complete set of fingerprints and other identifying information to the official designated by the permitting, licensing or authorizing department, along with any applicable fee and any release or waiver forms required in order for the official to conduct a national background check through the FBI.

(d) Upon receipt of the fingerprints and any applicable fee, the city is authorized to submit the fingerprints to the DPS for a search of the State's criminal history record, and the DPS is authorized to forward a set of the fingerprints to the FBI for a national criminal history check. The results of the FBI check will be returned to the DPS, which will disseminate the results of state and national criminal history checks to the city.

(e) The criminal history record information obtained through the FBI by the city will be used to determine compliance with section 1-10 of this Code.

(Ord. No. 2011-395, § 2, 6-1-2011; Ord. No. 2011-489, § 3, 6-22-2011; Ord. No. 2013-111, § 20, 2-6-2013; Ord. No. 2013-157, § 4, 2-20-2013; Ord. No. 2013-613, § 4, 6-19-2013; Ord. No. 2013-674, § 6, 7-24-2013; Ord. No. 2014-674, § 3, 6-25-2014; Ord. No. 2014-754, § 5, 8-6-2014; Ord. No. 2016-964, § 10, 12-7-2016; Ord. No. 2018-225, § 5, 3-22-2018; Ord. No. 2023-376, § 3, 5-24-2023)

Sec. 1-16. Non-substantive corrections to Code provisions or non-codified ordinances, resolutions or other records.

The city attorney is directed and authorized to direct the publisher to make necessary minor, non-substantive corrections to the provisions of this Code, including but not limited to, the misspelling of words, typographical errors, duplicate pages, incorrect references to state or federal laws, statutes, this Code, or other codes or similar legal or technical sources, and other similar amendments, without necessity of passage of a correction ordinance or other action of the city council. The city secretary shall, upon the written advice or recommendation of the city attorney and without the necessity of further council action, alter, amend or supplement any non-codified ordinance, resolution or other record filed in her office as necessary to effect similar non-substantive changes or revisions and ensure that such public records are correct, complete and accurate.

(Ord. No. 2011-797, § 2, 9-14-2011; Ord. No. 2013-112, § 2, 2-6-2013)

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Chapter 2

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ARTICLE I. IN GENERAL

Sec. 2-1. Establishment and function of mayor and councilmember's office.

There is hereby created a department of the municipal government of the city to be known as "the mayor and councilmember's office." The function of such office is to provide executive, administrative and clerical assistants to the mayor and city council.
(Code 1968, § 2-1)

Sec. 2-2. Council rules of procedure.

The following rules of procedure shall govern all meetings and proceedings of the city council:

Rule 1. Meetings Generally.

a. The city council shall conduct its regular weekly meeting in two daily sessions commencing at 1:30 p.m. on Tuesday and at 9:00 a.m. on Wednesday, respectively, of each calendar week. Each session shall be conducted in the city council chamber unless another place in the City Hall is designated by the city council. The final non-consolidated Tuesday session of each month shall take place at 5:00 p.m. Meetings shall recess at the times provided in Rule 7 and shall be subject to recess at other times as provided in subsection c, below. No notice shall be required to be given to any member of any recessed meeting. In the event that Tuesday or Wednesday, or both, of any calendar week falls on a holiday observed by the closure of city offices, then the regular weekly meeting sessions shall be rescheduled or consolidated as determined by the city council. The city council may consolidate daily sessions or reschedule any weekly meeting or daily session thereof to other days and times in the same calendar week and may for valid reasons postpone any regular weekly meeting or daily session to another week.

b. All council members shall be notified of all special meetings of the council, which notice shall be given by the city secretary or some other duly authorized representative of the city. Such notice may be either written or verbal and may be served upon each party in person or through a representative at either a residence or place of business.

c. Any meetings may be recessed for short periods of time upon majority vote of the members present.

d. The description, caption or title of each item on the agenda shall be read by the city secretary (or designee) in the city council chamber beginning not earlier than 60 minutes before the scheduled commencement time of the city council meeting session at which the agenda will be considered. The council chamber shall be open to the public at all times during the reading of the agenda.

e. At the third city council meeting following the 15th day of each month, a report by the city administration and the city controller regarding the current financial status of the city including, but not limited to, a revenue, expenditure and encumbrance report for the general fund, all special revenue funds and all enterprise funds and a report on the status of bond funds is presented. The director of finance and the city controller shall be present to answer questions about their reports at the council meeting and shall be limited to a combined time of 30 minutes. The director of finance and the city controller shall endeavor to furnish their respective reports in written form to the city secretary in sufficient time preceding the council meeting session at which the reports will be formally presented in order that copies of the reports may be distributed to the city council members among the various city council meeting preparation materials with the agenda. When the scheduled presentation of the report would occur at a time that would make it difficult to provide the written report to city council prior to presentation, such as over holiday periods, the administration may postpone the presentation of the report to the following week, provided the director of finance and the city controller mutually agree to do so. Notwithstanding such changes to the schedule, the financial report shall be presented to city council 12 times each year.

Rule 2. Order of Business.

a. The order of business for the Tuesday session of the regular weekly meeting of the city council shall be:

1. Calling the roll and marking absences.
2. Adopting and, if necessary, correcting the minutes.
3. Presentations to the city council by persons, groups or organizations regarding matters of public interest. Presentations shall be scheduled by councilmembers through the office of the mayor pro tem. The mayor pro tem shall promulgate rules regarding scheduling. No more than three presentations, each not to exceed ten minutes, shall be scheduled for any council meeting. In the event that a quorum is not present at the scheduled time of commencement of the session, the presentations shall nevertheless proceed as scheduled by the mayor pro tem, provided that no business requiring official action of the city council shall commence until a quorum is present and the roll has been called.
4. Appearances by members of the public, which out of respect to the public, shall commence promptly at 2:00 p.m. as provided in Rule 8.
5. Reserved.

b. The order of business for the Wednesday session of the regular weekly meeting of the city council shall be:

1. Reading of the descriptions, captions or titles of the agenda items by the city secretary (to begin not earlier than 60 minutes before the scheduled commencement time of the session).
2. Hearings.
3. Monthly financial and operations report (when scheduled).
4. Mayor's report
5. Consent agenda.

6. Matters removed from consent agenda.
7. Matters held.
8. Matters presented by council members.

c. The agendas posted for each regular weekly meeting of the city council shall separately specify which items will be considered at each session (the Tuesday session and Wednesday session except where the meeting is rescheduled). Unfinished business from the first daily session in any calendar week's meeting shall not be carried over to the second daily session conducted that week.

Rule 3. Consent Agenda.

The mayor may submit all new items of business as a "consent agenda," which may contain one or more ordinances, resolutions or matters incorporated in a written motion as part of the regular agenda of matters to be considered by city council. The items on the consent agenda shall be grouped by category (e.g., miscellaneous; damages; accept work; property; purchasing and tabulation of bids; resolutions and ordinances; etc.). Each item on the consent agenda shall be separately identified and designated. No item may be considered as part of the consent agenda unless it has been publicly posted and submitted to council members at least 72 hours in advance of the scheduled time for the council meeting.

In the due order of business, the mayor shall announce that the consent agenda is to be considered and voted upon by the city council. Each category, or group, of items on the consent agenda will then be considered and voted upon by a separate motion made for each group. At any time during the council meeting, prior to the announcement of the vote on a group of items within the consent agenda, any council member may request the deletion of one or more items from consideration as part of that group of items. The making of such a request shall have the effect of removing the matter from the consent agenda without any further council action, and any matter so deleted may not thereafter be considered as an item on the consent agenda. In the event that any agenda item, whether or not on the consent agenda, is not ready for council action at the time it is reached on the agenda, that item shall be placed at the end of the agenda for action by council when all other agenda items have been considered; all publicly posted agendas shall so state.

Where the accomplishment of any specific matter on the city council agenda will require the adoption of more than one ordinance, resolution or motion, all relating to the accomplishment of that same specific matter, the city secretary shall endeavor to place the related items on the agenda in consecutive order. In such cases the first of the related items will be indicated by a number, and the subsequent related items will be indicated by the letter(s) a, b, c, etc. A request by any council member to remove any one of the items so grouped on the agenda shall be deemed to constitute a request to remove all of the items that are related to the accomplishment of the same specific matter. Where the city secretary has grouped similar but unrelated items for consideration on the agenda a request to remove one item shall not be deemed to extend to the other unrelated items.

Each item so deleted from the consent agenda shall be considered immediately after the council action on the entire consent agenda. In the event that more than one item is deleted from the consent agenda, each item shall be considered individually in the order in which it originally appeared on the agenda, unless a majority of members present vote to consider one or more items out of order.

All items so deleted by the request of a council member shall be subject to any other motion or action of council, including a "tag." Prior to the consideration of any group of items within the consent agenda, the city secretary shall announce, by item number, those items that have been eliminated from the consent agenda.

Only one vote shall be taken on all items within any category, or group, remaining on the consent agenda. However, the city secretary shall record such vote as the vote on each separate item within such category or group.

Rule 4. Tag Rule.

Whenever any motion other than a procedural motion, resolution or ordinance (including a motion to amend a proposed motion, resolution, or ordinance) is presented for the first time to the city council, a council member may 'tag' such matter for a period of one week when such action will not render the subject matter moot. If a council member is marked absent for an entire council session when a matter is considered for the first time, then that council member shall have the privilege of "tagging" the new matter for a period of one week at a subsequent council meeting, provided such new matter has not previously been finally approved by the city council. A matter that is postponed to a later time on the same calendar day is still subject to tag. Debate of an item or consideration or adoption of motions relating to an item shall not preclude its being subject to a tag at the meeting when it is first presented, or by an absent member at a subsequent meeting, as provided above.

A council member may exercise a "tag" at any time before voting on the matter has been completed. However, if a roll call vote has been requested, then the "tag" must be exercised before the first member polled has cast a vote. Whenever an item is tagged, all council members desiring such tag shall be listed by the city secretary, and no tag shall be released prior to the expiration of the one-week period unless all the members so listed have given their release; an item on which all tag(s) have been released shall be reconsidered following consideration of other agenda legislation items.

A motion to approve or disapprove an appointment by the mayor is not subject to a "tag" if written notice of such appointment, including a resume of the proposed appointee, has been delivered to the offices of all council members at least 14 calendar days prior to the meeting at which an appointment is submitted to council for approval. No resume shall be required in the event of a reappointment.

In this rule, references to a "one week period" or a "period of one week" shall be construed to mean the duration of time between one regular weekly meeting of city council and the next, regardless of whether that period may be more or less than seven days.

Rule 5. Attendance at Meetings.

The council members shall attend the regular and special meetings. If any member shall be absent without just cause, the presiding officer may issue a warrant of attachment for such member to compel attendance, which warrant may be executed by any person to whom the presiding officer shall direct the warrant. The council may impose a fine of not more than $10.00 upon any member failing to attend a meeting without just cause.

Charter reference—Power of council to compel attendance of members, Art. VII, § 6.

Rule 6. Council Member Code of Conduct.

City council finds and determines that establishing rules of conduct for members of city council is conducive to the conduct of the affairs of the council as a governing body and to good governance. Furthermore, the city council alone is empowered by Article VII, Section 6 of the City Charter to establish standards of conduct for the members of city council and to assess appropriate discipline for failure to comply with those standards. Consistent with that authority, the city council hereby establishes the following standards of conduct and accompanying disciplinary procedures.

I. **Standards of Conduct.** Council members shall at all times conduct themselves in a manner consistent with the importance and dignity of their office. To that end, council members shall observe:

(1) All ethical standards of conduct stated in Chapter 18 of this Code;

(2) All requirements of the City Charter regarding conduct by members of city council, including specifically but not limited to Article VII, Section 4; and

(3) All requirements of federal law, state law, and this Code regarding the duties, responsibilities, and obligations of elected officials.

II. **Disciplinary Procedure.**

A. *Complaints.* A complaint by any council member alleging non-compliance with one or more standards of conduct by another council member shall be submitted to the city attorney or his designee and shall be in writing, dated, and either properly verified (a document will be considered properly verified when a notary executes it with the language "Signed and sworn to (or affirmed) before me on (date) by (the name of the person))" or conform to minimum state law requirements for unsworn declarations, and shall include:

(1) The name and position or title of the party or parties filing the complaint (hereinafter referred to as the complainant(s));

(2) The name and position or title of the individual(s) alleged to have violated one or more standards of conduct (hereinafter referred to as the respondent(s));

(3) The nature of the alleged violation of the standards of conduct or of other law, rule, or regulation;

(4) The specific facts or circumstances that constitute a violation of one or more of the standards of conduct, including the submission of any documentation that relates to the alleged violation (the complaint shall not contain innuendo, speculative assertions, or conclusory statements); and

(5) A statement by the complainant acknowledging that the complaint and all associated materials shall, to the extent permitted by law, be deemed confidential throughout the review process, and shall not be released to any third party by the complainant until such time the matter is brought before city council.

B. *Review Panel.* Notwithstanding the disciplinary procedure provided herein, the review panel shall stay its review of any complaint containing allegations that are the subject of a pending investigation or prosecution by a law enforcement agency until such time as the investigation and any prosecution thereof is completed; provided however, the review panel may proceed with its review of the complaint following its receipt of a written request from the respondent requesting that the review panel move forward with its review of the complaint.

(1) Not later than five business days after receiving the complaint, the city attorney or his designee shall forward a true and complete copy of the complaint to the respondent, the mayor pro tem, and the vice mayor pro tem.

(2) The complaint shall be reviewed by the mayor pro tem, the vice mayor pro tem, and a member of city council mutually agreed upon by the complainant and respondent (collectively referred to as the review panel); provided however, the mayor pro tem, vice mayor pro tem, or any other members of council selected or designated to serve on the review panel shall not participate in the

review of a complaint which alleges he/she has violated one or more standards of conduct.

(3) If the complainant and respondent are unable to agree upon a member of city council to serve on the review panel within five business days of the receipt of the complaint, the mayor pro tem shall submit to the complainant and respondent an identical list of council members not a party to the complaint. The complainant and respondent shall each have five business days from the date of the receipt of the list to:

a. Strike not more than three names;

b. Number the remaining names in order of preference; and

c. Return the list to the mayor pro tem.

If the complainant or respondent does not return the list within the time specified, all council members named therein shall be deemed acceptable. From the names that have been approved on both lists, the mayor pro tem shall invite the acceptance of the identified council member to serve on the review panel in accordance with the designated order of mutual preference.

(4) If the complainant and respondent fail to identify a mutually agreed upon council member from the names submitted in order of preference, or if any mutually agreed upon council members identified on their respective lists is unable or unwilling to serve on the review panel, the mayor pro tem shall select a council member to serve on the review panel by an impartial means of chance.

C. *Review.*

(1) The review panel shall meet and conduct an initial review of the complaint and any documentation submitted therewith within five business days of its formation. The review panel shall then meet as often as necessary to review the complaint in conjunction with its receipt of any additional documentation it deems necessary and relevant in making a determination whether the complaint alleges a violation of the standards of conduct and the evidence, when viewed as a whole, establishes reasonable cause to believe there has been a violation of one or more of the standards of conduct.

(2) The mayor pro tem shall immediately forward a copy of the complaint to the Houston Ethics Commission ("ethics commission") who shall endeavor to make a determination in accordance with sub items (a) and (b) below and furnish a written report to the review panel within 30 days of its receipt of the complaint. A member of the ethics commission shall recuse oneself and abstain from participating in the review of the complaint and making a determination in accordance with sub items (a) and (b) below if the member has any conflict of interest that would preclude the member from being impartial in participating in the review of the complaint.

a. *No violation.* Upon the review panel's receipt of a written report from the ethics commission stating the complaint does not allege a violation of one or more of the ethical standards contained in the Chapter 18 of this Code, the review panel shall forward a copy of the written report to the complainant and respondent and cease any further inquiry and investigation of the matter as it pertains to an alleged violation of one or more of the ethics standards contained in Chapter

18 of the Code; provided however, the Review Panel shall immediately proceed with its review of the complaint to determine whether it contains any other alleged violations of the standards of conduct.

b. *Possible violation*. Upon the review panel's receipt of a written report from the ethics commission stating that the complaint alleges a violation of one or more of the ethical standards of conduct contained in Chapter 18 of this Code, the review panel shall forward a copy of the written report to the complainant and respondent and cease any further inquiry into the matter and take no further action pending receipt of a written report by the ethics commission whether there is reasonable cause to believe the respondent has violated one or more of the ethical standards of conduct contained in Chapter 18 of this Code.

(3) The review panel shall determine by majority vote whether the evidence, when viewed as a whole, establishes reasonable cause to believe that a violation of one or more standards of conduct has occurred. In making said determination the review panel may undertake any such inquiry as the review panel deems appropriate and necessary. Additionally, the review panel shall accept and take into consideration the receipt of a written report by the ethics commission stating whether there is reasonable cause to believe the respondent has violated one or more of the ethics standards of conduct contained in Chapter 18 of this Code. The review panel shall furnish a copy of the written report to the complainant and the respondent.

(4) The review panel shall advise the complainant and the respondent of its findings.

(5) Upon the review panel's determination that the complaint does not contain an alleged violation of the standards of conduct and the evidence, when viewed as a whole, does not establish reasonable cause to believe there has been a violation of one or more of the standards of conduct and therefore should not be considered by city council, the matter is concluded.

(6) Upon the review panel's determination that the complaint does contain an alleged violation of the standards of conduct and the evidence, when viewed as a whole, does establish reasonable cause to believe there has been a violation of one or more of the standards of conduct, the matter shall be considered by city council and the mayor pro tem shall request that the mayor present the complaint to city council by posting the same on an agenda of a meeting of the city council to be held not earlier than 20 business days following the date of the action of the review panel. If the respondent so desires, he or she may file a written response with the mayor not later than seven business days prior to the date of the council meeting. In lieu of filing a response, the respondent may within the same time frame file a written request with the mayor for and shall receive a one-time extension of two weeks (or until the next available council meeting thereafter) for initial consideration of the complaint; if such an extension is requested, the period for filing a response is likewise extended.

D. **City Council Consideration.** For purposes of this rule of procedure, the term city council or council members shall exclude the mayor and shall mean only those individuals who have been elected to and are currently serving on the governing body of the City of Houston, Texas as a district council member or an at-large council member pursuant to Section 2, Article V of the City Charter.

(1) The posted item for the agenda of the city council meeting to consider the complaint shall be to "Discuss, Consider, and Possibly Take Action" regarding the complaint. At the initial city council meeting, city council shall consider the complaint on its face, shall consider any response thereto, and shall hear comment or where deemed appropriate sworn testimony from the complainant(s) and from the respondent(s).

(2) If city council determines the complaint may have merit, but additional information is required to make a final decision, city council may forward the matter to a future council meeting to take additional evidence and consider further action.

(3) If city council defers action at the initial meeting at which the complaint is considered, city council shall establish a future council meeting date to resume deliberations. Pursuant to Article VII, Section 5 of the City Charter, city council may summon and compel the attendance of witnesses and the production of documents necessary to the consideration of the complaint. Following the discussion and consideration of additional evidence as city council deems appropriate, city council shall determine if the complaint is sufficient or insufficient to establish a violation of the standards of conduct. A vote of not less than two-thirds majority of council members shall be required to determine a violation of the standards of conduct has occurred.

(4) If city council determines the complaint does not establish a violation of the standards of conduct, the matter is concluded. If city council determines a violation of the standards of conduct has occurred, city council shall then determine the appropriate discipline.

E. **Discipline.**

(1) Upon a finding by the city council that a respondent has violated one or more of the standards of conduct, the council may, in addition to any other action taken by any agency or tribunal, assess the discipline it deems appropriate. A vote of not less than two-thirds majority of council members shall be required in determining the assessment of the appropriate discipline listed in the following progressive order of seriousness:

a. *Verbal reprimand*—A statement of disapproval made publicly during a meeting of city council admonishing the respondent.

b. *Written letter of reprimand*—A formal, written statement of disapproval memorializing the contents of a verbal reprimand which shall be read aloud at a meeting of city council and become part of city council's record of the meeting at which the written statement is read.

c. *Official censure*—A written letter of reprimand and other sanction(s) including:

i. Removal of council committee chairmanship(s), if applicable, and other special appointments;

ii. Removal of membership from council committee(s); and/or

iii. Suspension of participation in a designated number of city council meetings.

d. *Impeachment and removal from office*—The removal of a council member from office creates a vacancy which shall be filled in a manner consistent with Section 2, Article VII of the Charter and applicable state law.

(2) All discipline imposed as a result of a finding that one or more of the standards of conduct have been violated shall be in addition to any other penalty or punishment that may be imposed pursuant to federal and state law or any other applicable provision of the City Charter or this Code.

III. **Implementation.** Following adoption by ordinance of these standards of conduct, each current member of city council shall, within ten business days of adoption, execute an acknowledgment in a form acceptable to the city attorney stating that he/she has received and read this Code of Conduct. All newly elected members of city council shall execute a similar acknowledgment at the time of their receipt of the oath of office. All acknowledgments shall thereafter be placed in the official records of the City of Houston.

Charter reference—Authority to punish members of council for misconduct, Art. VII, § 6.

Rule 7. Recesses.

a. Regular meetings of the city council shall be in recess between the hours of 5:00 p.m. on Tuesdays and 9:00 a.m. on Wednesdays.

b. In any instance in which the city council is unable to complete the appearances by members of the public prior to the regularly scheduled 5:00 p.m. recess of the Tuesday session and there remain speakers to be heard who have timely requested to speak on identifiable items of business to be considered on the agenda for the Wednesday session, then any member of the city council may bring the matter to the attention of the mayor. In such instance, the city council may, at the discretion of a majority of the members present, either continue in session or reconvene after a dinner recess on Tuesday for such length of time as may be required to complete the public appearances of those speakers who have requested to speak on identifiable agenda items.

c. The provisions of subsection b shall not be construed to require the reconvening or continuation of the city council session to hear any speaker whose name was called in due course and who was not present in the city council chambers.

Rule 8. Appearances by Members of the Public.

a. Any citizen of the city shall have a reasonable opportunity to be heard at all regular and special meetings of the city council in regard to any and all matters to be considered at such meetings that are germane and relevant to any subject matter of city affairs or business that is within the scope of the authority and legislative functions of the city council. Such appearances by members of the public shall be scheduled to begin at 2:00 p.m. at the Tuesday session of the regular meetings of city council. The last non-consolidated Tuesday session of each month shall be scheduled for 5:00 p.m. Evening public session meetings shall not have proclamations presented. The mayor, mayor pro tem, or other presiding officer shall at all times be responsible for

conducting the meeting and maintaining proper order and decorum. Any council member shall have the privilege of raising a point of order as to whether the subject matter to be heard and considered as presented by a citizen is germane and relevant to any subject matter of city affairs or business that is to be considered by city council.

Requests to appear shall be made to the office of the city secretary, and may be made in person or by mail, email, fax, telephone, or online form, provided that the request is received before the scheduled time of commencement of the city council meeting session at which public appearances will be heard. Each speaker shall provide his or her name, street address, mailing address (if different), telephone number, and a brief description (not to exceed ten words) of the intended subject matter of the citizen's remarks. The speaker's street address, mailing address (if different), and telephone number is for internal, administrative use only by city council, the city secretary's office, and city departments, and shall not be disclosed publicly, except as required by law. Speakers who have not appeared at any of the four preceding regular city council meetings shall also state whether they wish to limit their remarks to one, two or three minutes.

Speakers will be heard in accordance with the following priority:

1. Speakers who have not appeared at any of the four previous weekly city council meetings and whose intended comments as stated in their request relate to an identifiable item of business that will be considered on that week's city council agenda will be heard in the order in which their requests were received with those requesting one minute being first, those requesting two minutes being second, and those requesting three minutes being third. Each speaker shall be limited to one, two or three minutes as specified in the request to appear. The city secretary shall where possible list together and call as a group, in the order of each individual request to appear, those speakers who indicate they are speaking on the same subject and for the same length of time.
2. Thence, speakers who have not appeared at any of the four previous weekly city council meetings and whose intended comments as stated in their request do not relate to an identifiable item of business that will be considered on that week's city council agenda will be heard in the same manner as provided in item 1, above.
3. Thence, speakers who have appeared at any of the four previous weekly city council meetings will then be heard in the order in which their requests were received for no more than one minute.

Council members shall not ask speakers questions during their allotted presentation time, nor shall the council members respond to speakers during their presentations. The city council members may pose questions to any speaker about his or her presentation, either following that speaker's presentation or after all speakers have been heard. City council members having questions for a speaker shall request that the speaker remain and return for ques-

tions following presentations by all other speakers unless they believe that the questions of the speaker by all council members can be concluded in five minutes or less. In any instance in which the questioning of a speaker is commenced following the speaker's presentation and is not completed within five minutes, then the questioning shall be suspended and the speaker may be asked to return for the completion of the questioning following the presentations of the other speakers. If any speaker desires to present public charges of misconduct against a named police officer or other city employee, then the speaker shall be placed under oath. Following the presentations by all speakers the city council shall refer, where appropriate, the matters that have been raised.

b. Notwithstanding the provisions of subsection a, if the total of the times requested by speakers at any council meeting is greater than 150 minutes, the mayor shall so announce and each speaker's time shall be one minute. Furthermore, when the provisions of this subsection are invoked, the question time for city council members shall be limited to a cumulative total of one minute for each speaker, notwithstanding the provisions of this rule and rule 10 to the contrary.

c. The provisions of this subsection c shall only be applicable in an instance in which the city council has rescheduled the order of business to be conducted at any weekly meeting in such a manner that the agenda of city business that is usually conducted at the Wednesday session, or a portion thereof, will be taken up prior to the appearances by the public. In any such instance, if there is scheduled any agenda item on which one or more citizens are scheduled to be heard at that meeting, then the consideration of that agenda item will be postponed by the mayor upon the request of any council member until after the conclusion of the public speaker session at which such persons are scheduled to be heard. This rule shall not apply unless the speaker(s) on the agenda item to be postponed are scheduled to appear as of the time that the session is scheduled to commence. A speaker will be considered to be scheduled when that speaker's name has been placed on the speaker list maintained by the city secretary. Furthermore, this provision shall not apply if the postponement would render the agenda item moot.

This postponement provision shall not affect the use of, but shall be supplemental to, the tag rule; provided, however, that any tag must still be exercised on the first day on which a matter is presented to the city council, subject to the exceptions set forth in the tag rule, and the request by any council member that an item be postponed shall not prevent another council member from tagging it in lieu of its postponement hereunder. An item which has been previously tagged may nevertheless be further postponed hereunder, subject to the rule that it not thereby be rendered moot.

Rule 9. Appearances by Persons Regarding Agenda Items.

During consideration of an agenda item, the city council may, by suspension of the rules, elect to hear from or question an individual who is not seated at the council table. Suspension of the rules shall not be necessary for inquiries from city council to city officials who are present at the council table, and such persons may be questioned at the time the agenda item is being considered.

For purposes of this rule "agenda item" includes any item on the published agenda or any other matter properly before city council.

*Rule 10. Time Limit on Debate.**

Whenever individual citizens or city employees appear before the city council to speak or to present testimony relative to any item on the agenda, each council member shall limit the questions or remarks for each speaker to an initial maximum period of five minutes, including time used by the speaker to answer the council member's questions. A person answering a question shall be permitted to complete the answer, despite the expiration of the five-minute limit.

In all other deliberations by the city council, the same initial maximum period of five minutes per council member shall apply during the debate of any item on the agenda. A council member may question or remark as to each speaker, or debate any agenda item, for a second maximum period of five minutes, but only after all other council members desiring to be heard on the matter have exercised their initial opportunity for questioning, remarks or debate. Subsequent rounds may ensue in the same manner, each limited to five minutes per council member, until all questioning, remarks or debate has been completed.

During hearing of the agenda item entitled matters presented by council members' each council member shall be limited to an initial period of up to five minutes. After all council members wishing to speak have made remarks in the first round, each member who desires additional time may speak for a second period of up to five minutes. Unused time from the first round shall not carryover to the second round.

Rule 11. Readings Required of Ordinances and Resolutions.

The passage of ordinances, other than on the consent agenda, shall be by reading the same at two regular meetings by caption or title, unless a reading in full is requested by a council member; provided, however, that all ordinances that are public emergencies may be passed finally on the date of their introduction when so requested by the mayor in writing, by one reading of the caption or title thereof. This rule shall not be applicable to ordinances that are required, by virtue of their subject matter or otherwise, to be read or adopted in a different manner pursuant to applicable provisions of the Charter or state law.

Rule 12. Appeals to City Council.

Every appeal that is authorized by federal law, state law, the City Charter, or city ordinance to be made to the city council from a decision by an officer, agency, board or commission shall be reviewed by the city council, without the taking of further evidence by city council, on the basis of the record of the decision from which the appeal is taken. Consideration of appeals may be scheduled at any specific time on the agenda, irrespective of the order of business established by these rules.

The director of each department (or a designee), or the presiding officer of a board, commission or agency, or a hearing examiner (the "hearing officer"), as appropriate, shall conduct an evidentiary hearing, the record of which shall be made by a certified court reporter of any matter that may be appealed to the city council. The term "record" shall include, but is not limited to, a transcript of oral testimony, exhibits offered and considered, written or oral responses, answers or questions, and all documents reviewed or considered by a hearing examiner or officer, commission or agency, board, or department director or his designee at an evidentiary hearing.

*__Editor's note—__Rules 8 and 10 both provide five minute limitations, but the two limitations operate independently. Rule 8 provides for city council to suspend questioning of a public session speaker after five cumulative minutes of questioning by council members and for the suspended speaker to be asked to wait and return following the other speakers' appearances, if council members desire. Rule 10 limits each council member to five minutes of questioning at a time, per speaker, on a rotating basis. Rule 8 applies during the appearances by members of the public, which are usually presented during the Tuesday afternoon session. Rule 10 applies to all city council debate.

Each presiding officer or hearing officer shall give written notice to any party appearing in an evidentiary hearing that:

(1) A court reporter is required to prepare a record in order for there to be an appeal to the city council;

(2) The party must request, in writing, the presence of a court reporter at the hearing before the hearing officer not less than 24 hours prior to such evidentiary hearing; and

(3) The party requesting the court reporter agrees to pay all costs of the court reporter, including preparation of transcript(s) for appeal to city council.

(4) Except as otherwise provided by the City Code, the party appealing to city council shall submit the complete court reporter-certified record to the city secretary as required by this Code within 60 days of the decision of the officer, agency, board, or commission whose decision or action is the basis of the appeal. Failure to submit the requested or required records within the required time period shall constitute an untimely appeal to city council and a waiver by the appealing party to an appeal before city council.

In the event that an appeal to the city council is filed by a party to a decision, the city council shall consider the appeal solely on the basis of:

(1) The written record of the hearing conducted below; and

(2) The written exceptions, if any, of each party to the proceeding to the facts and administrative rulings and decisions made by the officer, agency, board or commission.

In the event the city council finds that the record is incomplete or inadequate, the city council may refer the matter to the officer, agency, board or commission for further proceedings to complete the record. All decisions of the council on the record, other than a referral for further proceedings, as described above, shall be final and not subject to further appeal or rehearing.

Rule 13. Roll Call Vote.

A vote shall be taken by roll call at the request of any council member. A council member may not abstain or pass on any vote.

Rule 14. Questions of Order.

All questions of order shall be decided by the presiding officer, with the right of appeal to the city council, the majority of whom may override the ruling.

Rule 15. City Secretary as Clerk.

The city secretary shall be the clerk or secretary of the council, whose duty it shall be to act as reading and recording clerk to the council and to certify the correctness of the minutes and the journals and to perform such other duties as may be required by the city council and the mayor.

Rule 16. Confirmations and Approvals.

All confirmations or approvals required by the city council shall be made by a majority vote of the members present at such council meeting at the time of such confirmation or approval. It shall be assumed the council member is voting "aye" or "yes" unless he audibly votes "nay" or "no"; i.e., silence during a voice vote shall be recorded as an "aye" or "yes" vote."

Rule 17. Motions.

All oral motions must be seconded before being put by the chair and upon the request of any council member shall be reduced to writing by the party making the same. Written motions shall require no second.

Rule 18. Motion to Reconsider.

When a question has once been determined by the city council, the same question shall not again be considered until 90 days thereafter, and then only by motion to reconsider made by a member who voted with the prevailing side of such question.

Rule 19. City Council Appointments.

a. *Notice to nominate.* Where an appointment to a board, commission, or similar entity is decided through nomination and confirmation by the city council ("council appointment"), any member of council shall have the right to make a motion in open session of council that an item appear on the printed agenda (the "agenda") not less than seven days thereafter to consider nominations for such council appointment. At the time the motion is made, the member making the motion shall provide to those members of council present the name of the board, commission, or similar entity for which the nomination is being made, the length of the term for that position, the incumbent for that position, and the expiration date for that incumbent's term.

b. *Making nominations.* When the item to consider nominations for such council appointment is reached on the agenda, each council member, including the mayor, shall have the right to make one or more nominations. Where more than one council appointment to the same board, commission, or similar entity is to be voted upon, then each nomination shall be to a specified position. Each council member who makes a nomination shall, at the time of such nomination, submit to the city secretary, the mayor, and to each other council member, a resume for the nominee. If a council member fails to provide such a resume, the nomination shall be void. The resume shall include at least the nominee's full name, current residence address, current business address, residence and business telephone numbers, employment history for the preceding six years, and a record of all other public positions currently or previously held, whether elected or appointed. Neither the item to consider nominations to such council appointment or the nomination or nominations by a council member shall be subject to tag.

c. *Vote on nomination.* The vote on a council appointment shall be taken seven days after nominations to the council appointment are presented in open council meeting. This provision can be suspended, and the vote taken in less than seven days, if the matter is properly posted under state law. If more than one council appointment to a particular board, commission, or similar entity is being voted upon, the candidates for each position shall be voted upon separately. If no nominee for a particular council appointment receives a majority of the votes cast for that position, then council shall, by majority vote, choose between those two candidates having the greatest number of votes. In the event of a tie, the council shall vote again. If the result is again a tie, then the election shall be decided by the drawing of lots.

Rule 20. Suspension of Rules.

Any one or all of these rules may be suspended by a vote of at least ⅔ of the members of council, except such rules that embody provisions of the Charter, identically or substantially. The rules may be suspended only for a specific purpose, and immediately following the achievement of that purpose, the rules shall again be in full force and effect, subject to further suspension by motion.

Rule 21. Robert's Rules of Order Newly Revised.

The rules of procedure as stated in the current edition of "Robert's Rules of Order Newly Revised" shall govern the proceedings of the city council except when in conflict with the provisions of state law, the Charter or city ordinances or the rules of procedure adopted hereby.

Rule 22. Posters in Council Chambers, Applause, Booing; Containers at Speakers' Podium; Decorum.

a. No person shall brandish, wave or display or cause to be brandished, waved or displayed any sign, placard, poster or banner within the city council chambers in such a manner as to impede the use of the aisles, interfere with the use of the seating area, obstruct the view of another or in any other manner disturb or interfere with the orderly conduct of the meeting at any time during which the city council is conducting a meeting in the city council chambers.

b. Only one person at a time shall be permitted to stand at the speaker's podium, unless the speaker requires an interpreter or other special assistance or during a presentation by a council member.

c. No person making an appearance before the city council pursuant to Rule 8 of these rules shall have in his or her possession while at the public speakers' podium any paper bag, plastic bag, handbag, briefcase, purse, satchel, box, envelope, tape recorder or other container of any sort. A drawer shall be provided near the speakers' podium in which handbags, briefcases and other small items may be placed during an appearance.

d. No person within public aisles or seating area of the city council chambers shall applaud, boo, clap, or otherwise audibly express approval or disapproval of the actions being taken at the city council table or the public speakers' podium in a loud and raucous manner calculated to disturb the meeting, except for public recognition initiated by city council.

e. Citizens appearing before city council are expected to do so without engaging in disorderly conduct or without disrupting the meeting as those actions are defined in sections 42.01 and 42.05 of the Texas Penal Code, but without requiring the standard of proof or mental state for criminal convictions.

f. Violation of this rule shall not be a municipal offense; however, any police officer or other person assigned to provide security for the council meeting shall advise any person who fails to comply with this rule of his or her noncompliance. Any person who, after having been advised of his or her noncompliance, continues to violate this rule shall be ejected by the security personnel from the council chambers for noncompliance with this rule. The operation of this rule shall not be construed to preclude any person from prosecution for violation of any applicable penal law.

Rule 23. Agenda Items Submitted by Council Members Pursuant to Article VII, Section 3 of the City Charter.

a. Pursuant to article VII, section 3 of the City Charter, three or more council members may request any lawful item be placed on the agenda of any designated regular meeting of city council. Requests shall be submitted to the agenda office, and the agenda director is authorized to promulgate processes to facilitate the agenda process.

b. The request must:
   (1) Be in writing;
   (2) Include signatures of three or more council members (but no more than eight);
   (3) Be lawful; and
   (4) Include a copy of the draft resolution, motion, or ordinance that would be considered by city council.

c. The legal department shall review all items submitted for form and lawfulness. The legal department shall complete its lawfulness review and provide the agenda director, copying the sponsoring council members and any relevant department directors, with a memo explaining its determination within seven days of receipt of the proposed item, unless the proposed agenda item is lengthy, presents a complex issue, or otherwise requires additional time.

d. If the legal department determines that the proposed agenda item is lawful, the agenda director shall place a caption for the proposed item on the regular city council agenda within the next two regular council meetings after the agenda director's receipt of the legal department's determination. The legal department shall format the proposed agenda item to the city's conventions for motions, resolutions, and ordinances.

e. The proposed item shall satisfy all other legal requirements, including any deadlines, for placement and consideration of an item on the city council agenda.

f. Relevant department representatives or city subject matter experts shall attend the council meeting and be available to provide support, as needed, and answer relevant technical, financial, operational, and administrative questions pertaining to a council member sponsored agenda item.

g. Department representatives shall also provide the requested information or answer questions asked in advance by council members or their staff at least 48 hours prior to council consideration and action.

Rule 24. Procedures for Agenda Items Submitted by Council Members Routed Through Committee.

a. *Submission of Proposed Item to Committee.* In lieu of or prior to submission of a proposed agenda item under Rule 23, a council member may submit a proposed agenda item to the city council committee designated by the mayor to receive such proposals ("the committee"). A proposed agenda item must be submitted at least 14 days before the next scheduled meeting of the committee for inclusion on the committee agenda.

(1) Prior to submission of the proposed agenda item to the committee, the author or sponsor of the proposed item shall request the legal department review the proposal, to the extent possible with the information provided, for any lawfulness concerns. The legal department shall review the item for any initial legal concerns within seven days of receipt of the proposed item unless the proposed agenda item is lengthy, presents a complex issue, or otherwise requires additional time. In such instances requiring additional time for legal review, the legal department shall provide an initial update to the committee chair and the sponsor within 14 days.

(2) The proposed item must be submitted in writing to the committee and accompanied by the following:

i. One hard copy and one electronic copy (in PDF format) of the introduced item as reviewed by the legal department;

ii. One hard copy and one electronic copy of the background and a brief purpose statement (in Microsoft Word format) for the proposed item; and

iii. Name of the point of contact for the proposed item.

b. *Committee Meeting Procedure.*

(1) *Roll Calls.* A roll call must be taken at the beginning of every meeting of the committee and following any recess.

(2) *Scheduling of Business.* The chair of the committee schedules items, determines the order of consideration of items, and creates the agenda.

(3) *Robert's Rules of Order.* The meeting will be governed by Robert's Rules of Order and the rules of the committee.

c. *Committee Meetings.*

(1) The committee shall meet at the time and place designated on the schedule prepared by the chair.

(2) If no meeting is scheduled, the chair shall call a special meeting for the purpose of discussing a council-sponsored item no later than 14 days after the legal department completes its review.

(3) Relevant department representatives or city subject matter experts shall attend the committee meeting and be available to provide support, as needed, and answer relevant technical, financial, operational, and administrative questions pertaining to a council member-sponsored item.

(4) Department representatives shall also provide requested information or answer questions asked in advance by council members or their staff during the committee meeting at least 48 hours prior to council consideration and action.

(5) Additional meetings for purposes provided by the chair can be called at any time by the chair, so long as the meeting is called and conducted in compliance with the Texas Open Meetings Act.

(6) The committee chair shall designate the vice chair to preside over any committee meeting during the temporary absence of the chair.

d. *Public Testimony.* The public has the right to come and speak to the committee in accordance with Rule 8.

e. *Committee Report.*

(1) No action taken by a committee shall infringe upon a sponsoring council member's right to have the proposed item submitted to the full council for consideration and a vote under article VII, section 3 of the City Charter.

(2) *Vote Requirements for Taking Action on an Item.* An action on a proposed item from the committee requires an affirmative record vote of the majority of the members present of the committee. If a quorum is not established at the beginning of the committee meeting for which a proposed item is on the agenda such that no vote on the proposed item can be taken at that meeting, in lieu of appearing on the agenda of a subsequent committee meeting, the proposed item may be submitted in writing by three

or more council members pursuant to Rule 23 and article VII, section 3 of the City Charter.

(3) After consideration of an item on the committee's agenda, the committee may do the following:

i. Agree with placement on the city council agenda within the next two regular council meetings.

ii. Disagree with placement on the city council agenda.

iii. If the proposed item requires further evaluation and drafting assistance, refer the item to the administration.

1. The administration shall:

a. Direct the relevant department(s) and the legal department to assist the sponsoring council member(s) with development of the proposed item, including drafting assistance, evaluation of legal, administrative, and policy issues, and fiscal analysis, as necessary; and

b. Submit the item to the city council committee that is most relevant to the subject matter of the proposed item.

2. The assigned departments will provide updates to the committee chair of the designated subject-matter committee on the status of the proposed item, which shall be included in the chair's report.

3. Once the sponsoring council member(s), the relevant department(s) and the legal department have jointly reviewed and determined the proposed item has been completed, it shall be presented to the designated subject-matter committee, and then at least three but no more than eight council members may submit the proposed item in compliance with subsection b of Rule 23 to the agenda director for placement on the regular city council agenda within the next two regular council meetings after the agenda director's receipt of the item.

iv. Amend the item and agree with placement on the city council agenda within the next two regular council meetings.

v. Postpone consideration of the item.

(4) If a motion to place an item on the city council agenda fails, the committee will no longer consider the item.

(Code 1968, § 2-2; Ord. No. 70-1753, § 1, 10-7-70; Ord. No. 72-2170, § 1, 11-21-72; Ord. No. 72-2186, § 1, 11-27-72; Ord. No. 75-1774, § 1, 10-1-75; Ord. No. 76-491, § 1, 3-23-76; Ord. No. 76-702, § 1, 4-27-76; Ord. No. 80-2463, § 1, 7-30-80; Ord. No. 82-1313, § 1, 8-24-82; Ord. No. 82-1314, § 1, 8-24-82; Ord. No. 82-1315, § 1, 8-24-82; Ord. No. 82-1424, § 1, 9-14-82; Ord. No. 82-1544, § 1, 9-28-82; Ord. No. 84-1422, §§ 1—4, 9-22-84; Ord. No. 84-1443, § 1, 9-12-84; Ord. No. 87-1023, § 1, 6-24-87; Ord. No. 87-1176, § 1, 7-8-87; Ord. No. 87-1194, §§ 1—6, 7-8-87; Ord. No. 88-389, § 1, 3-16-88; Ord. No. 88-548, § 1, 4-6-88; Ord. No. 88-620, §§ 1, 2, 4-20-88; Ord. No. 88-1235, § 1, 7-13-88; Ord. No. 88-1707, § 1, 11-2-88; Ord. No. 89-583, § 1, 4-26-89; Ord. No. 90-631, § 1, 5-23-90; Ord. No. 90-832, §§ 1—5, 7-3-90; Ord. No. 90-1111, §§ 1—3, 9-12-90; Ord. No. 93-217, § 1, 3-3-93; Ord. No. 93-1048, § 2, 8-25-93; Ord. No. 93-1251, §§ 1, 2, 10-6-93; Ord. No. 94-1385, §§ 1—3, 12-21-94; Ord. No. 95-996, § 1, 9-13-95; Ord. No. 95-1296, § 8, 12-6-95; Ord. No. 96-930, § 1, 9-11-96; Ord. No. 98-587, § 1, 7-22-98; Ord. No. 98-1233, §§ 1—3, 12-22-98; Ord. No. 05-91, § 1, 1-25-05; Ord. No. 08-848, §§ 1—13, 9-24-08; Ord. No. 09-425, § 2, 5-13-09; Ord. No. 2011-284, § 2, 4-20-2011; Ord. No. 2011-1169, § 2, 12-14-2011; Ord. No. 2012-772, § 2(Exh. A), 8-29-2012; Ord. No. 2024-542, §§ 2, 3, 7-24-2024; Ord. No. 2024-853, § 2, 11-6-2024; Ord. No. 2025-604, §§ 2, 3, 7-9-2025, eff. 8-1-2025; Ord. No. 2025-1029, §§ 2, 3, 12-10-2025; Ord. No. 2026-0437, § 2, 5-20-2026)

Charter references—Authority of council to prescribe its rules, Art. VII, § 6; presiding officer, Art. VII, §§ 3, 6.

Sec. 2-3. Filing for elective city offices.

Candidates for full time elective terms of office at city general elections may have their names printed upon the official ballot, if such candidates meet all legally applicable qualifications for such office, by filing their sworn applications, in such form as may be required by law, with the mayor at least 45 days prior to the election day and by paying filing fees for the respective offices in the amounts specified in article V, section 6, of the Charter, or submitting in lieu of a filing fee a nomination petition signed by qualified voters pursuant to the applicable provisions of the Texas Election Code.

(Code 1968, § 16-4; Ord. No. 73-1487, § 1, 8-1-73; Ord. No. 73-1534, § 1, 8-8-73; Ord. No. 87-1519, § 1, 9-2-87)

Charter reference—Filing for office, Art. V, § 6.

Sec. 2-3.1. Petition circulator affidavits.

(a) It is the policy of the city to enforce the United States Constitutional requirements relating to petition circulator qualifications.

(b) The city shall accept the 'Affidavit for Circulators Who Are Not Registered Voters in the City of Houston or Are Not Residents of the City of Houston,' in the form set forth below.

STATE OF TEXAS §

COUNTY OF HARRIS §

I, _____, being first duly sworn on oath depose and say:

I am 18 years of age or older, of sound mind, and capable of making this affidavit. The facts stated in this affidavit are within my personal knowledge and are true and correct. I am a circulator who: (a) is not registered to vote in the City of Houston or (b) is not a resident of the City of Houston. I agree to submit myself to the jurisdiction of the courts in Harris County, Texas and waive any challenge to venue and personal jurisdiction in connection with the matters encompassed by this affidavit. I further depose and say that each signature appearing on this petition was made in my presence on the day and date it purports to have been made, and I solemnly swear that the same is a genuine signature of the person whose name it purports to be.

Signature: _____

Printed Name: _____

Address: _____

_____

_____

Contact Number: _____

Email Address: _____

Sworn to and subscribed before me this ____ day of _____ (Month), _____ (Year).

/s/ _____

Notary Public, State of Texas

(c) The city secretary shall post a link to the 'Affidavit for Circulators Who Are Not Registered Voters in the City of Houston or Are Not Residents of the City of Houston' on the city secretary's website."

(Ord. No. 2020-1033, § 2, 12-2-2020; Ord. No. 2022-455, § 2, 6-8-2022)

Sec. 2-4. Waiver of notice of claims against city.

Neither the mayor nor any other officer or employee of the city shall have authority to waive any of the provisions of section 11, article IX, of the Charter of the city.

(Code 1968, § 2-15)

Sec. 2-5. Hiring of appraisers and experts in connection with lawsuits and hearings.

In connection with lawsuits pending or threatened and in connection with hearings before the city council or before other bodies by which hearings are, from time to time, had, the mayor is hereby authorized, if the necessity or propriety thereof becomes evident, to procure or cause to be procured, the services of such appraisers and such experts in the matter of values and damages as he may deem proper; the city council hereby authorizes the making with such appraisers and such experts of such agreements for the payment to them for their services as may be deemed proper by the mayor, and payment therefor out of funds appropriated, or hereafter appropriated, from which such payments may lawfully be made.

(Code 1968, § 2-16)

Sec. 2-6. Emergency medical services system director.

Within the office of the mayor in the city department known as the mayor and council members' office, there is hereby created the executive level position of emergency medical services ("EMS") system director ("the director"). Funding for the position shall be derived from the fire department's budget. The director shall be a physician licensed as such in the State of Texas who has training and expertise in the out-of-hospital care of critically ill and injured patients. The director is responsible for medical oversight of the city's delivery of emergency medical services, including all medical aspects of the coordination, monitoring and implementation of emergency medical services system policies, procedures, research and educational activities. The director shall also hold simultaneous outside employment with a local medical school that has the responsibility for emergency medical research activities and on-line medical direction activities for the city and shall report to the president or dean of the medical school for purposes of the outside employment.

(Ord. No. 96-57, § 6, 1-17-96)

Sec. 2-7. Reserved.

Editor's note—Ord. No. 09-2, § 2, adopted January 7, 2009, repealed § 2-7 in its entirety. Formerly, said section pertained to veterans' parking privileges and derived from Ord. No. 00-520, § 2, 6-12-00.

Secs. 2-8—2-20. Reserved.

ARTICLE II. OFFICERS AND EMPLOYEES IN GENERAL*

DIVISION 1. GENERALLY

Sec. 2-21. Positions, classifications, salaries and salary ranges.

The positions, classifications, salaries, and salary ranges of the officers and employees of the city, other than as prescribed in this Code, are contained in separate ordinances not included in this Code, and nothing in this Code or the ordinance adopting this Code shall be deemed to repeal such ordinances.
(Code 1968, § 2-32)

Sec. 2-22. Payment of moving expenses.

In the event it becomes necessary to employ a person possessing special professional skills and experience, whose residence at the time of employment is located more than 100 miles from the city, upon the employment of any such person, his moving expenses may be paid by the city as a part of his contract of employment.
(Code 1968, § 2-33)

Sec. 2-23. Solicitation of funds by employees.

(a) It shall be unlawful for any person employed and carried on the payroll of the city to solicit funds of any character for any purpose or to sell tickets for any function not approved and permitted by law or ordinance or approved by the city council; provided, the following functions shall be exempt from the provisions of this section:

(1) Police department ball.

(2) Firemen's band annual dance.

(3) City employees' union dance.

(4) Firemen's annual ball.

(5) City-county employees' union dance.

(6) Fire department Christmas tree shoe fund.

(7) Solicitation of funds which are actually used to purchase floral offerings for the funeral of any city employee or official.

(b) Any employee desiring to take part in the solicitation of funds for any purpose, other than the causes declared exempt by this section, must first obtain the approval and permission of the city council so to do.

(c) Violation of this section shall be grounds for termination or other appropriate disciplinary action.
(Code 1968, § 2-34)

Sec. 2-24. On the job injuries sustained prior to July 1, 1974.

The provisions of Ordinance No. 71-2404 are hereby incorporated by reference and shall remain applicable to the continuing and necessary medical and hospital services costs relating to on the job injuries sustained by city employees prior to the July 1, 1974 effective date of workers compensation insurance benefits for city employees.

Editor's note—Ordinance No. 71-2404 was codified as sections 2-53 through 2-57 of the 1968 edition of the Code of Ordinances, City of Houston.

Sec. 2-25. Limitation for compensation payments for on the job injuries where payments are derived from general funds or sources receiving general funds.

A city employee who is injured on the job and is entitled to receive compensation payments for such injury shall not receive more than his base salary, plus longevity, during the period that he is entitled to receive such compensation payments where the payments are made from general funds of the city or from any source whatsoever which receives general funds of the city.
(Code 1968, § 2-58; Ord. No. 74-1126, § 1, 6-26-74)

Sec. 2-26. Assignment of employee's wages.

No assignment of wages, whether earned or unearned, made and executed by any city

*__Cross references—__Representation of defendants in criminal cases by city employees, § 16-65; civil service, Ch. 14; ethics and financial disclosure, Ch. 18; assaulting, interfering, etc., with city officers, § 28-6.

employee for wages due and owing to said employee by reason of employment with the city, or for wages that may become due and owing to said employee by reason of employment with the city, nor any power of attorney executed by any employee of the city authorizing any person to collect wages due and owing to such employee, or which may become due and owing to such employee by reason of employment with the city, shall ever be recognized by the city, and the city controller is hereby directed to refuse to recognize or honor any such assignment of wages or powers of attorney, and he is hereby further directed to pay any wages due and owing to any employees of the city to the employee who actually earned said wages.
(Code 1968, § 2-37; Ord. No. 69-534, § 1, 4-1-69)

Sec. 2-27. Facsimile signatures; facsimile seal.

(a) *In general.* Subject to the provisions of this section, certain city officers are hereby authorized to cause certain documents to be executed, certified or endorsed by a facsimile signature. Such authorization is permissive; this section does not prohibit any such officer from using his or her signature. The process of affixing a facsimile signature of any given officer shall at all times remain under the direction and control of such officer.

(b) "*Facsimile signature" defined.* As used in this section, "facsimile signature" shall have the same meaning as in Chapter 618 of the Texas Government Code, the "Act". A "facsimile signature" authorized by this section shall have the effect prescribed by the Act.

(c) *Extent of authorization.* The authorization by this section to cause documents to be executed, certified or endorsed with a facsimile signature shall extend to the officers shown on the table in section 2-1001.

(d) *Facsimile signature certificates; revocation.* A facsimile signature certificate, when specially required by this section for the validity of a facsimile signature, shall only be effective if it contains the required elements and is filed with the city secretary. Each such certificate shall automatically lose its effectiveness when the person making the certificate ceases to hold office. An officer making such a certificate may revoke it at any time by signing an appropriate revocation notice and causing it to be filed with the city secretary. A certificate so revoked shall lose its effectiveness when the revocation notice is filed. The city secretary is hereby authorized to provide a certified copy of any such certificate or notice to any person who requests the same and pays the standard fee for such copy. The city secretary is also authorized to endorse any such copy with a notation as to when it was filed and whether or not a revocation notice has been filed with respect thereto as of any given day, according to the records of the city secretary.

(e) *Facsimile seal.* With respect to any documents for which a facsimile signature of the city secretary is authorized, a facsimile seal of the city is also authorized to be affixed, or caused to be affixed, by the city secretary.

(f) *Section not exclusive.* This section shall not preclude the use of facsimile signatures in other instances or under different conditions authorized by the city council or by the act, or by both.
(Code 1968, § 2-17; Ord. No. 82-266, § 1, 2-10-82; Ord. No. 82-1318, § 1, 8-24-82; Ord. No. 82-1829, § 1, 11-19-82; Ord. No. 08-210, § 2, 3-12-08; Ord. No. 2020-320, § 4, 4-15-2020)

Sec. 2-28. Emergency action.

(a) In the event of an extraordinary or catastrophic circumstance, the mayor may order the temporary reassignment of city resources, personnel, or functions of departments for the purposes of performing or facilitating city services. Upon the order of the mayor, the human resources director, in consultation with the appropriate department directors, will issue event-specific procedures, as deemed necessary, to temporarily reassign city personnel to perform other duties as required to facilitate or perform city services. Reassignment may include, but is not limited to: changed work schedules or shifts, and performance of other duties as needed. In the event of an extraordinary or catastrophic circumstance, temporary reassignment of city employees shall not be subject to review by the civil service commission.

(b) Every officer, agent or employee of the city, when acting within the course and scope of his employment and while responding to emergency calls or reacting to emergency situations, is hereby

[The next page is 169]

authorized to act in such a manner as to deal reasonably and effectively with the emergency. Neither the city nor its officers, agents or employees shall be liable for any failure to use ordinary care in such emergency.

(c) This section shall prevail, to the extent allowed by law, over any other law establishing a standard of care in conflict with this section.
(Ord. No. 86-838, § 1, 6-3-86; Ord. No. 05-1076, § 1, 9-14-05)

Secs. 2-29, 2-30. Reserved.

DIVISION 2. TRAVEL

Sec. 2-31. Supplemental travel funding.

If any or all of the costs of city business travel or travel-related expenses of salaried and non-salaried employees or elected officials of the city are paid from non-city sources (other than by the employee or elected official or by a person related to the employee or elected official within the second degree of affinity or consanguinity), then the person(s) traveling shall supplement the information required by the administrative procedure applicable to the travel by disclosing the source and amount of the funding and the amount of the expenses on a travel expense report and travel-related log filed in accordance with administrative procedure requirements for filing expense reports and travel-related logs. If the expenses are not completely known as of the date of the report, then the expenses shall be estimated and later updated by memorandum whenever the expenses and source(s) of funding are completely known. The funding sources and expense amounts disclosed pursuant to this section shall include those of any person accompanying the salaried or non-salaried city employee or elected official who is related to the employee or elected official within the first degree of affinity or consanguinity, except when the relative pays for his own travel or it is paid by another person related to the employee or elected official within the second degree of affinity or consanguinity.
(Ord. No. 01-698, § 2, 7-25-01)

Sec. 2-32. Accompanying travelers.

If other travelers accompany a salaried or non-salaried employee or elected official of the city as part of a trade or economic mission and the co-travelers are part of the city coterie, then the names of such co-travelers shall be disclosed in the travel expenses report and travel-related log in a separate exhibit entitled, "Accompanying Travelers," which shall be filed in accordance with the applicable administrative procedure requirements for filing expense reports and travel-related logs.
(Ord. No. 01-698, § 2, 7-25-01)

Sec. 2-33. Filing of travel expenses report and travel-related log.

A duplicate copy of travel expenses reports and travel-related logs containing information required to be reported under this division, together with any updating memoranda, shall be filed with the city secretary at the same time they are filed in accordance with administrative procedure requirements for filing expense reports and travel-related logs. The city secretary shall maintain such reports in a manner that is accessible to the public during regular business hours.
(Ord. No. 01-698, § 2, 7-25-01)

Secs. 2-34, 2-35. Reserved.

DIVISION 3. FIDELITY COVERAGE*

Sec. 2-36. Generally.

All officers and employees of the city shall be covered either by individual public official bonds or by the blanket crime policy for public employees in accordance with the conditions and requirements set forth in this division.
(Ord. No. 04-1244, § 2, 12-1-04)

Sec. 2-37. Individual public official bonds for specific officers—Required; amount.

(a) Throughout the incumbency of each, the holders of the following offices and positions shall be covered by individual public official bonds in the amounts set forth below opposite the titles of such respective offices and positions:

*__Editor's note—__Ord. No. 04-1244, § 1, adopted December 1, 2004, amended the title of Division 3 to read as herein set out. Formerly, said title pertained to bonds.

Title	*Amount*
Mayor	$50,000.00
City controller	50,000.00
City treasurer	25,000.00
Tax assessor and collector	25,000.00
Assistant city treasurer	25,000.00
Assistant director of treasury	25,000.00
Assistant tax assessor and collector	25,000.00
Deputy city controller (designated)	25,000.00
Deputy assessor of taxes	25,000.00
Clerk of the municipal courts	25,000.00

(b) In the event two or more of the titles above listed should become applicable to the same person, only one public official bond need be provided for such person, and it shall cover him in all capacities.
(Ord. No. 04-1244, § 2, 12-1-04; Ord. No. 2010-846, § 2, 11-3-2010)

Sec. 2-38. Same—conditions.

The individual public official bonds mentioned in section 2-37 shall each be conditioned that the surety executing such bond agrees to indemnify the city against any direct loss of money or other personal property belonging to the city or for which the city is legally responsible, caused by larceny, theft, embezzlement, forgery, misappropriation, willful misapplication, wrongful abstraction or by any other dishonest or fraudulent act or acts committed by the officer or employee covered by such bond. In addition, the bonds covering the offices of mayor and city controller shall be conditioned for the faithful performance of the duties of those respective offices.
(Ord. No. 04-1244, § 2, 12-1-04)

Sec. 2-39. Blanket crime policy for public employees.

A blanket crime policy for public employees shall be maintained and shall cover all employees other than those officers and employees required by section 2-37 of this Code to be covered by individual public official bonds. The policy required under this section shall be conditioned such that the issuer of the policy shall indemnify the city against loss sustained through any fraudulent or dishonest act or acts committed by any of the covered employees, acting alone or in collusion with others, during the term of the policy. The policy shall be in an amount that the city council determines from time to time provides the most favorable premium and limit of coverage available to the city.
(Ord. No. 04-1244, § 2, 12-1-04)

Sec. 2-40. Approval of form.

(a) The form of the public official bond, whether new or a change to an existing bond, required to cover the mayor or the city controller pursuant to this division shall be subject to final approval by the city council. Whenever a new public official bond to cover the mayor or the city controller is to be filed, or a change to the existing public official bond form for the mayor or the city controller is proposed, the same shall be presented to the city council together with the recommendation of the director of administration and regulatory affairs and the city attorney. The city council will then, by motion, indicate its approval or disapproval of the form of the public official bond. Failure of the city council to act will in no way diminish any liability the surety would otherwise have with respect to any public official bond that the surety has delivered for the purpose of putting it in force.

(b) The director of administration and regulatory affairs is authorized to approve the form of public official bonds for all officers except the mayor and the city controller and the blanket crime policy for public employees.
(Ord. No. 04-1244, § 2, 12-1-04; Ord. No. 05-346, § 1, 4-6-05; Ord. No. 08-110, § 2(1a), 2-13-08)

Sec. 2-41. Payment of premiums.

Payment of the premiums on the public official bonds and blanket crime policy provided for in this division will be out of the budget appropriations for which the city council will make provision annually.
(Ord. No. 04-1244, § 2, 12-1-04)

Sec. 2-42. Duties of director of administration and regulatory affairs under division.

It shall be the duty of the director of administration and regulatory affairs to ensure compliance with the provisions of this division and to ensure that the public official bonds and blanket crime policy provided for in this division are obtained in accordance with the city's procurement procedures set forth in chapter 15 of this Code.
(Ord. No. 04-1244, § 2, 12-1-04; Ord. No. 08-110, § 2(1b), 2-13-08; Ord. No. 2015-668, § 7, 7-8-2015)

Editor's note—Ord. No. 08-110, § 2(1b) amended the title of § 2-42 to read as herein set out. Formerly said section was entitled Duties of director of treasury under division.

Secs. 2-43—2-50. Reserved.

ARTICLE III. DEPARTMENT OF FINANCE*

DIVISION 1. IN GENERAL

Sec. 2-51. Created.

There is hereby created a department to be designated the department of finance.
(Ord. No. 08-52, § 1, 1-16-08, eff. 1-26-08)

Sec. 2-52. Director—Position created; appointment.

There is hereby created the position of director of the department of finance, who shall be appointed by the mayor and confirmed by the city council. Except as provided or limited by the City Charter, the director of the department of finance shall mean the director or his designee.
(Ord. No. 08-52, § 1, 1-16-08, eff. 1-26-08)

Sec. 2-53. Same—Powers and duties.

The director of the department of finance shall perform all duties and have all the responsibilities required and imposed by the laws of the United States and the state, the City Charter and ordinances of the city, and such other functions, duties and powers as may be assigned by the mayor. In addition to the foregoing duties, functions, powers and responsibilities, the director of the department of finance, subject to the direction and supervision of the mayor, shall:

(1) Be executive head of the department of finance, and as such, shall have control, supervision and authority over all officers and employees therein.
(2) Be designated as the tax assessor and collector of the city and have all of the powers and duties provided by law for such office or designate in writing a qualified individual who will perform the duties of tax assessor and collector of the city with the same legal authority as the director of finance as provided in section 2-57 of this Code.
(3) Exercise and perform or cause to be exercised or performed all duties and functions assigned to the department of finance.
(4) Be designated as and perform the duties of the city treasurer and all functions usually and customarily appertaining to such office, including all statutory duties and functions, or designate in writing an individual who will perform the duties of city treasurer with the same legal authority as the director of finance as provided in section 2-57 of this Code.
(5) Prescribe a system of controls and recordkeeping for all real and personal property owned or held by the city.
(6) Recommend such legislation as may be necessary to more efficiently operate and maintain the department of finance.

(Ord. No. 08-52, § 1, 1-16-08, eff. 1-26-08; Ord. No. 603, § 3, 6-19-2013)

Sec. 2-54. Duties of department.

The department of finance and such employees of the department as are assigned to it shall be charged with the following duties:

(1) Prepare the mayor's annual operating and capital budgets as prescribed by the City Charter, city ordinances and all related operational plans.

*__Editor's note—__Ord. No. 08-52, § 1, adopted January 16, 2008, effective January 26, 2008, amended Article III in its entirety to read as herein set out. Former said article pertained to the Department of Finance and Administration and derived from Code 1968, §§ 2-236—2-241 and subsequent amendatory ordinances. See the Code Comparative Table.

(2) Supervise and administer the duties imposed by this Code, other ordinances, the City Charter and state law relating to all city-funded pension programs.

(3) Recommend new sources of revenue designed to pay the cost of providing city services.

(4) Periodically review the cost of services associated with existing fees.

(5) Review costs and charges associated with any proposed fees.

(6) Monitor all actions necessary to enforce ordinances pertaining to the collection of revenue due and owing to the city.

(7) Monitor all duties prescribed and specified by law pertaining to the rendition, assessment and collection of ad valorem taxes by the city.

(8) Review the city's operating and support procedures, recommend and implement methods of improving the efficiency of such procedures and assist with developing methods designed to increase the revenue and efficiency of the city.

(9) Establish a system of management reporting, control and improvement to ensure effective use of budgeted funds, personnel and facilities.

(10) Establish a system of internal financial controls.

(11) Develop, implement and manage policies and procedures under the direction of the mayor.

(12) Manage the financial accounting of all revenues, expenditures, assets and liabilities for the city.

(13) Monitor and manage all debt for the city.

(14) Develop, implement and manage citywide policies and procedures for the procurement and strategic purchasing of goods and services.

(15) Develop and implement citywide policies, procedures and standards for materials requirement planning and warehousing and distribution.

(16) Supervise all accounts payable activities for the city.

(17) Manage all energy purchases including, but not limited to electricity, natural gas, and fuel from all sources.

(18) Monitor citywide costs, including but not limited to, property and casualty insurance, information technology and services, fleet, insurance, health benefits, and facilities maintenance. Recommend to Mayor and responsible Directors means for controlling costs in all areas.

(19) Perform the central administrative, budgeting and personnel duties of the office of city council.

The city controller has parallel processes for the activities listed in items (12), (13) and (16) above.
(Ord. No. 08-52, § 1, 1-16-08, eff. 1-26-08; Ord. No. 08-568, § 19, 6-18-08; Ord. No. 2010-803, § 3, 10-13-2010; Ord. No. 603, § 4, 6-19-2013)

Sec. 2-55. Designation of temporary director.

The director of finance shall designate, with the approval of the mayor, an employee who, during the temporary absence or incapacity of the director, shall have and perform all of the powers and duties of the director of finance. Such appointee will serve in such capacity at the pleasure of the mayor and shall receive no additional compensation by reason of such appointment.
(Ord. No. 08-52, § 1, 1-16-08, eff. 1-26-08)

Sec. 2-56. Authority of director to function in other capacities.

(a) Whenever any provision of this Code or any other city ordinance provides for the taking of any action or the performance of any function by any of the city treasurer, the director of the treasury, the department of treasury, the tax assessor and collector, the director of the tax department, the director of the purchasing department, or the purchasing agent, then the director of the department of finance shall be authorized to take such action or perform such function, or to cause the same to be taken or performed. Provided, how-

ever, if the director of the department of finance has elected to designate another person as the city treasurer or tax assessor and collector of the city as authorized in section 2-57 of this Code, then the person so designated shall perform any duty devolving upon that office.

(b) To the extent that any other reference in this Code or in any other ordinance of the city or any reference in any city contract or other document devolves duties relating to capital improvement planning upon the general services department or the director or employees of that department, then the reference shall be construed to mean the department of finance or the director and employees thereof, as applicable.
(Ord. No. 08-52, § 1, 1-16-08, eff. 1-26-08; Ord. No. 08-568, § 20, 6-18-08; Ord. No. 2010-803, § 4, 10-13-2010; Ord. No. 603, § 5, 6-19-2013)

Sec. 2-57. Designation of city treasurer or tax assessor and collector of the city.

The director of finance is hereby authorized to delegate the performance of the duties of city treasurer or tax assessor and collector of the city to a qualified individual by filing in the office of the city secretary a memorandum designating the person who shall perform each of such functions. In the event that such a delegation is made the person so delegated shall perform all duties devolving by law upon said office. Any designation shall remain in force and effect until a document shall be filed in the office of the city secretary revoking such designation or appointing another person to perform such function.
(Ord. No. 08-52, § 1, 1-16-08, eff. 1-26-08)

DIVISION 2. PURCHASING FUNCTIONS

Sec. 2-58. Reserved.

Editor's note—Ord. No. 2015-668, § 8, adopted July 8, 2015, repealed § 2-58 in its entirety. Formerly said section pertained to method of making purchase and derived from Ord. No. 2013-603, § 6, 6-19-2013.

Sec. 2-59. Necessity for appropriation before purchase.

Before granting any requisition for or contracting for or accepting any bid or purchasing any supplies, merchandise, or articles, the director of the department of finance shall cause an inquiry to be made as to whether or not there is an appropriation therefor out of which payment for same can be made, and if there is not, then the director shall refuse to grant such requisition or to contract for or accept such bids or purchase such supplies, merchandise, or articles.
(Ord. No. 2013-603, § 6, 6-19-2013)

Sec. 2-60. Rental of office equipment on a month-to-month basis.

(a) The department of finance may rent office equipment on a month-to-month basis without taking formal bids when the monthly rental does not exceed the city council approval requirement limitation amount established pursuant to article II, section 19a of the City Charter pursuant to the following policy and standards:

(1) Office equipment shall be deemed to include, without limitation, the following:

a. Copy machines.

b. Typewriters.

c. Furniture.

d. Personal computers.

e. Miscellaneous office equipment.

(2) Each department shall establish its requirements for items of office equipment which it desires to rent on a month-to-month basis. Such requirements shall be furnished in writing to the department of finance. Several machines shall be examined or inspected to determine which one best suits the specific requirements of a department. In addition to a machine's functional features, operational costs shall be taken into consideration.

(b) The director of finance or his designee shall make the selection of a particular type of office equipment based on the following criteria:

(1) The item of equipment that best serves the requirements for which it is to be used, with costs given a weighted value;

(2) The capability of the lessor to provide maintenance to the item of office equipment on short notice; and

(3) The availability of trained technicians who are fully familiar with the item of equipment so that servicing and repairs will be made in a good and workmanlike manner.

(c) Contract charges shall be paid monthly by the city upon receipt of an invoice therefor from the contractor.

(d) Rental and maintenance agreements for items of office equipment are hereby authorized when the obligations therefor are governed by the laws of the state and the obligations of the city do not exceed that of a bailee for hire, and all such lease agreements shall provide that the city shall have the option to terminate such lease agreement upon 30 days' written notice.

(e) If any price increase raises the monthly rental to more than the city council approval requirement limitation amount established pursuant to article II, section 19a of the City Charter, the department of finance shall immediately submit the rental to competitive bids or proposals as required by state law."
(Ord. No. 2013-603, § 6, 6-19-2013)

ARTICLE IV. CITY RECORDS

DIVISION 1. GENERALLY

Sec. 2-61. Fees for subpoenaed information related to fire department services.

(a) The fire chief may impose fees for certain services related to providing information and copies of records in response to a subpoena properly served upon the City of Houston, care of the custodian of records for the Houston Fire Department, for records relating to fire response and emergency medical services when the city is not a party to the underlying litigation. Fee amounts shall be based upon the cost of providing the services as determined by the fire chief and are stated in the city fee schedule for the following services:

(1) Production of copies of patient medical records.

(2) Production of copies of fire records, which include incident reports and additional documents related to specific fire event responses.

(3) Preparation of affidavits.

(4) Production of responses to depositions on written questions.

(b) The director of finance may impose fees for providing information and copies of records in response to a subpoena properly served upon the City of Houston, care of the custodian of records for the department of finance for fire department services billing information, when the city is not a party to the litigation. Fee amounts shall be based upon the cost of providing the services as determined by the director of finance and are stated in the city fee schedule for the production of responses to depositions on written questions.

(c) No fee shall be imposed under this section if its imposition is prohibited by a valid and applicable state or federal law, and no fee shall be imposed in excess of any fee limitation established by a valid and applicable state or federal law.
(Ord. No. 2017-51, § 2, 1-25-2017, eff. 3-1-2017)

Secs. 2-62—2-65. Reserved.

DIVISION 2. CITY SECRETARY

Sec. 2-66. Office created; appointment and removal.

The department and office of city secretary is hereby created. The city secretary shall be appointed by the mayor and confirmed by the city council, and shall hold office subject to removal at any time by the mayor or city council. The city secretary shall be the director of the department of the city secretary.
(Code 1968, § 2-124; Ord. No. 05-91, § 2, 1-25-05)

Charter reference—Appointment of heads of administrative departments, Art. VI, § 7a.

Sec. 2-67. General duties.

The duties of the city secretary shall be to keep, record and preserve the minutes and proceedings of the city council, and to be custodian of all the papers and records of the council proceedings of the city, with power to make certificates of any proceedings of the city council, to affix the city seal thereto, and to do and perform all things and acts usually done or necessary to be performed by secretaries or clerks of cities in connection with the business thereof. In addition to the duties herein mentioned, the city secretary shall do and perform such other duties, acts and things as may be required of him by the mayor or city council.
(Code 1968, § 2-125)

Sec. 2-68. Authority of assistants.

During the absence or inability of the city secretary to act, any assistant city secretary shall discharge the functions and duties of the city secretary and shall act in the city secretary's place and stead.
(Code 1968, § 2-126)

Sec. 2-69. Endorsement on official communications.

It shall be the duty of the city secretary to endorse on all official communications and documents received by him the date and hour of the receipt of the same.
(Code 1968, § 2-127)

Sec. 2-70. Recording ordinances—Generally.

The city secretary shall record all ordinances and keep a record book for that purpose. The transcriptions of such ordinances shall be in typewriting on loose leaves, numbered consecutively and shall be kept in a safe place until not less than 250 leaves or 500 pages of typewriting have accumulated when such leaves shall be bound securely in permanent book form. In lieu of such books, the city secretary may make and preserve permanent microfilm copies of said ordinances, which shall be appropriately indexed by number and subject matter or make and preserve copies of said ordinances in an electronic format stored or maintained in an electronic storage system or in a manner that enables searching or locating of said ordinances. The city secretary may also keep copies of said ordinances in such other form as the city secretary may consider most expedient. Such copies shall constitute official public records of the city.
(Code 1968, § 2-128; Ord. No. 72-1871, § 1, 10-17-72; Ord. No. 2020-320, § 5, 4-15-2020)

Sec. 2-71. Same—Annexation ordinances.

Whenever any ordinance annexing any territory to the city is passed upon its first reading or upon any subsequent or further reading, it shall, as soon thereafter as may be reasonably possible, be recorded at length in a separate record book kept by the city secretary for that purpose, together with an appropriate record of the date of its passage and whether the same is a passage upon its first or subsequent (including final) reading; provided, when any such annexation ordinance is passed on its final reading and approved by the mayor it shall not only be so recorded at length in such separate annexation ordinance book, but shall also then be recorded at length in the book in which ordinances generally are then being recorded, and in the form in which it was passed upon its final reading. In lieu of such books, the city secretary may make and preserve permanent microfilm copies of said ordinances in an electronic format or in an electronic storage system, which shall be appropriately indexed by number and subject matter or make and preserve copies of said ordinances in an electronic format stored or maintained in an electronic storage system or in a manner that enables searching or locating of said ordinances. The city secretary may also keep copies of said ordinances in such other form as the city secretary may consider most expedient. Such copies shall constitute official public records of the city.
(Code 1968, § 2-129; Ord. No. 72-1871, § 2, 10-17-72; Ord. No. 2020-320, § 5, 4-15-2020)

Sec. 2-72. Fee for certificates issued under Alcoholic Beverage Code.

There is hereby established and the city secretary shall charge and collect the fee stated for this provision in the city fee schedule for the preparation, issuance or signing of each certificate issued by the city secretary pursuant to the Texas Alcoholic Beverage Code, including, but not limited to, certificates issued pursuant to sections 11.37 and 61.37 of such code. The fees so charged and collected shall be periodically remitted to the city controller.
(Code 1968, § 2-22; Ord. No. 69-1609, §§ 1, 2, 8-27-69; Ord. No. 2011-1168, § 13, 12-14-2011)
Cross reference—Alcoholic beverages, Ch. 3.

Sec. 2-73. Fee for district petitions.

The city secretary's office is hereby designated as the filing place for all petitions and requests for consent that are required by state law to be filed with the city for the inclusion of any land within the city or its area of extraterritorial jurisdiction in any district created under the authority of article III, section 52 or article XVI, section 59 of the Texas Constitution, whether by virtue of the creation of the district or the change of boundaries of a district in existence. There is hereby imposed a fee in the amount stated for this provision in the city fee schedule, which shall be payable upon the filing of each petition or request for consent in order to defray the city's costs in reviewing the same.
(Ord. No. 91-1171, § 1, 8-14-91; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 2-74. Notices of claims.

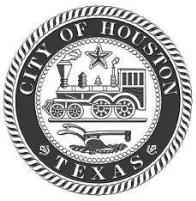
The city secretary's office is hereby designated as the place of official filing of any notice that is required or permitted to be given to the city under section 101.101 of the Texas Civil Practice and Remedies Code or section 11 of article IX of the city Charter, or both. The city secretary shall maintain a record of the date and time that each notice is filed and shall forward each notice or a copy thereof to the city attorney or his designee for disposition. Any notice that is not filed with the city secretary's office in accordance with this section shall be presumed not to have been received by the city.
(Ord. No. 94-957, § 1, 9-14-94)

Secs. 2-75—2-80. Reserved.

DIVISION 3. CITY SEAL

Sec. 2-81. Definitions

City seal, when used in this Code, means the official seal of the City of Houston, including any physical or electronic cut, facsimile or reproduction thereof (including an electronic reproduction, electronic form or electronic image), which consists of a circular seal having a rope pattern contour with a design of a plow, a locomotive and a five-pointed Texas star, and the wording 'CITY OF HOUSTON TEXAS' within the seal and a fleur de lis on each side of the term 'TEXAS' and the face of which is substantially as set forth below:



Department logo means any city department or office logo, shield, mark, patch, emblem, or similar insignia, including any cut, facsimile or reproduction thereof, that is created and used by the city to represent a specific city department or office.
(Ord. No. 2012-13, § 2, 1-4-2012; Ord. No. 2020-320, § 6, 4-15-2020)

Sec. 2-82. Custodian.

(a) The mayor or her designee is the custodian of the city seal.

(b) The director of a department or office is the custodian of the department logo for that department or office.
(Ord. No. 2012-13, § 2, 1-4-2012)

Sec. 2-83. Use of city seal and department seal for official use.

(a) The city seal and any department logo are the property of the City of Houston.

(b) The city seal and a department logo may be used by city employees and elected or appointed city officials in connection with the performance of official city business or city sanctioned events, including but not limited to placement of the city seal or department logo on city vehicles, equipment, stationery, the city flag, department websites, handouts for city training sessions, city brochures, city presentations, city uniforms and city issued articles of clothing, department news releases, HTV programs and bulletins, city-sponsored events, and city memorabilia used to promote the city.

(c) The city secretary or her designee is authorized to use the city seal on any ordinance, resolution, proclamation, commendation, certificate or other instrument approved by the city council or executed by the mayor or other city officials and to use the city seal to authenticate official documents in the conduct of official city business.
(Ord. No. 2012-13, § 2, 1-4-2012)

Sec. 2-84. Other approved uses.

(a) The mayor may approve other uses of the city seal or a department logo by any person for the following purposes provided that such use promotes the interests of the city and is not detrimental to the image of the city:

(1) In an encyclopedia, dictionary, book, journal, pamphlet, periodical, magazine or newspaper incident to a description or history of the city seal or department logos;

(2) In a library, museum or educational facility incident to descriptions or exhibits relating to the city seal, a department logo, or the city;

(3) In a theatrical, motion-picture, television, or similar production exhibited for a historical, educational or other non-commercial purpose.

(b) Before any person is allowed to use the city seal or any department logo pursuant to this section, the person must:

(1) Agree that the proposed use of the city seal or any department logo shall conform to the permitted uses set forth in the preceding subsection.

(2) Submit samples of all documents, goods, and other materials upon which the city seal or a department logo is to be used sufficient to demonstrate that the proposed use of the city seal or department logo is a faithful reproduction and has not been altered in any manner.

(3) Acknowledge the right of the city, at all reasonable times, to inspect any item upon which the city seal is used to ensure that the city seal is being used appropriately in an unadulterated form.

(4) Execute an agreement approved by the city attorney containing such terms as he may require.

(c) Approval to use the city seal or any department logo shall not be assignable or transferable.

(d) The approval to use the city seal or any department logo under this section shall be limited to only the event or item for which the approval is granted for.

(e) If a person who is authorized to use the city seal or a department logo pursuant to this section breaches any provisions of the agreement for its use, the city attorney shall serve written notice of such breach upon the person with a demand to take appropriate and immediate affirmative action to cure such breach. Any failure to cure the breach to the city's satisfaction shall be grounds for the city's termination of permission to use the seal or department logo and the city attorney shall pursue all steps reasonably necessary to restrain the improper use of the city seal or department logo.

(f) The city may revoke a person's previously authorized use of the city seal or department logo upon finding false or inaccurate information was submitted by the person to the city or that he violated any provision of this division.
(Ord. No. 2012-13, § 2, 1-4-2012)

Sec. 2-85. Prohibited uses.

The use of the city seal or any department logo by any person for the following uses is specifically prohibited:

(1) In support or opposition of any candidate for elective office, referendum, initiative, or ballot measure or in any candidate or committee campaign literature.

(2) Except as provided in section 2-83, in connection with any advertisement or promotion for any product, business, organization or service whether offered for sale, profit, or without charge.

(3) On any written or printed material designed, calculated, intended or likely to confuse, deceive or mislead the public or cause the reader of such written or printed material to believe it to be an official city publication, including circulating or distributing any such written or printed material or to suggest or assert any city support or endorsement of any product, goods or services.

(Ord. No. 2012-13, § 2, 1-4-2012)

Sec. 2-86. Offense.

It shall be unlawful for any person to use the city seal or any department seal in violation of this division.
(Ord. No. 2012-13, § 2, 1-4-2012)

Secs. 2-87—2-94. Reserved.

DIVISION 4. COPIES GENERALLY

Sec. 2-95. Requests for accident reports.

Any person requesting copies of accident reports from the police department must furnish a request for such report signed by the person involved authorizing the delivery of such copy to the applicant therefor and releasing such department from all claims arising by reason of having furnished such report.
(Code 1968, § 2-19; Ord. No. 87-1321, § 1, 8-5-87)

Cross reference—Accident reports generally, § 45-286 et seq.

Sec. 2-96. Charge for records furnished by police department or municipal court.

There is hereby authorized a charge for certified copies of reports, records and other documents by the police department and clerks of the municipal courts. The fee for such services is stated for this provision in the city fee schedule.
(Code 1968, § 2-18; Ord. No. 87-1321, § 2, 8-5-87; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 2-97. Charge for criminal history record information reports (clearance letters).

There is hereby authorized a charge for the issuance of criminal history record information reports, known as clearance letters, in the amount stated for this provision in the city fee schedule for each letter issued. Such letters may be issued

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for purposes of international travel and other lawful purposes in accordance with applicable federal and Texas laws and regulations.
(Ord. No. 87-1321, § 3, 8-5-87; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 2-98. Copies of council proceedings and similar public records.

(a) Upon application therefor, the city secretary shall furnish a true and correct copy of the record of any proceeding of the city council on file in his office and attach his certificate of true copy with the seal of the city thereon to same. For such service, the fees stated for this provision in the city fee schedule shall be charged and collected by the city secretary.

(b) The city secretary, upon the applicant preparing and furnishing him a true copy of the record of any proceeding of the city council on file in his office, shall compare the same and, if found correct, he shall attach his certificate of true copy with the seal of the city affixed thereon and for such service, he shall receive fees stated for this provision in the city fee schedule.

(c) Either the city council or the mayor may, whenever the city council or the mayor shall deem it of public interest, waive the charge for any mimeographed copies of any ordinance, motion, resolution, or other record of any proceeding of the city council. The city secretary may waive the charge for any such copies requested by a governing body, official, or employee of any city.

(d) Upon application therefor, the city secretary shall furnish noncertified photographic reproductions of public records. For such service, the city secretary shall charge and collect a fee based upon the rules promulgated by the Texas Building and Procurement Commission in the Texas Administrative Code Title 1, Chapter 70, from time to time. Such fees shall be collected and accounted for as provided for in section 2-100 of this Code.

(e) Upon request therefor the city secretary shall provide copies of documents larger than 8½ inches by 14 inches in size including maps, charts, and other large documents. The fee shall be based upon the actual cost of reproducing the document requested including labor, equipment, materials, and related expenses.
(Code 1968, § 2-20; Ord. No. 74-1137, § 1, 7-2-74; Ord. No. 80-45, §§ 1, 2, 1-15-80; Ord. No. 91-1172, § 1, 2, 8-14-91; Ord. No. 94-862, § 2, 8-24-94; Ord. No. 02-528, § 11a., 6-19-02; Ord. No. 2011-1168, § 13, 12-14-2011)

State law reference—See T.A.C. Title 1, Ch. 70

Sec. 2-99. Charges for copies by other departments.

All other city departments furnishing copies of reports, records and documents of such departments shall charge and collect a fee based upon the rules adopted in section 2-98 of this Code. Such fees shall be collected and accounted for as provided for in section 2-100 of this Code.
(Code 1968, § 2-20.1; Ord. No. 76-1258, § 1, 7-27-76; Ord. No. 94-862, § 3, 8-24-94; Ord. No. 02-528, § 11b., 6-19-02)

Sec. 2-100. Accounting for fees; failure to collect fees.

Such fees as are collected under this division shall be the property of the city, and shall be accounted for by the officer receiving same, and paid over to the assessor and collector of taxes of the city semi-monthly, on the fifteenth and thirtieth of each month, following the collection thereof, and a failure of any officer or employee to collect such fee when collectible, or to account for same and pay the same over to the assessor and collector of taxes for the city after the collection of same, shall be deemed a malfeasance in office and such officer or employee failing to collect same or to account and pay over same to the assessor and collector of taxes shall be removed.
(Code 1968, § 2-21)

Sec. 2-101. Copies of records to laid-off employees.

Notwithstanding the provisions of section 2-98 of this Code, any person laid off from city employment will be entitled to one copy of the civil service rule provisions applicable to his or her

layoff and one copy of his or her personnel file without charge upon request to the human resources director.
(Ord. No. 88-1284, § 1, 7-27-88; Ord. No. 96-1290, § 1, 12-4-96)

Cross reference—Layoffs (Civil Service Rule 11), § 14-140 et seq.

Secs. 2-102—2-110. Reserved.

DIVISION 5. MUNICIPAL RECORDS MANAGEMENT*

Sec. 2-111. Definitions.

For the purpose of this division, the following words and terms shall have the meanings respectively ascribed:

City record means any document, paper, letter, book, map, photograph, sound or video recording, microfilm, magnetic tape, electronic medium, or other information recording medium, regardless of physical form or characteristic and regardless of whether public access to it is open or restricted under the laws of the state, created or received by the city government or any of its officers or employees pursuant to law, including an ordinance, or in the transaction of public business. The term does not include:

(1) Extra identical copies of documents created only for convenience of reference or research by officers or employees of the city government;

(2) Notes, journals, diaries, and similar documents created by an officer or employee of the city government for the officer's or employee's personal convenience;

(3) Blank forms;

(4) Stocks of publications;

(5) Library and museum materials acquired solely for the purposes of reference or display; or

(6) Copies of documents in any media furnished to members of the public to which they are entitled under Chapter 424, Acts of the 63rd Legislature, Regular Session, 1973 (Article 6252-17a, Vernon's Texas Civil Statutes), or other state law.

Custodian means the appointed or elected public officer who by the city Charter, state law, ordinance or administrative policy is in charge of an office that creates or receives city records.

Director and librarian means the executive and administrative officer of the Texas State Library and Archives Commission.

Office means any office, department, division, program, commission, bureau, board, committee, or similar entity of the city government.

Records control schedule means a document prepared by or under the authority of the records management officer listing the records maintained by the city, their retention periods, and other records disposition information that the records management program may require.

Records management means the application of management techniques to the creation, use, maintenance, retention, preservation, and disposal of records for the purposes of reducing the costs and improving the efficiency of recordkeeping. The term includes the development of records control schedules, the management of filing and information retrieval systems, the protection of essential and permanent records, the economical and space-effective storage of inactive records, control over the creation and distribution of forms, reports, and correspondence, and the management of micrographics and electronic and other records storage systems.

Records management officer means the person designated in section 2-114 pursuant to section 203.025 of the Texas Local Government Code as the records management officer for the City of Houston.

Records retention schedule means a document issued by the Texas State Library and Archives

*__Editor's note—__**Editor's note—**Section 1 of Ord. No. 91-88, adopted Jan. 16, 1991, amended Div. 5 to read as herein set forth. Prior to such amendment, Div. 5 consisted of §§ 2-111—2-118 which pertained to similar subject matter and derived from § 2-73 of the 1968 Code and Ord. No. 85-1380 which adopted this Code.

Commission under authority of Subchapter J, Chapter 441, Government Code, establishing mandatory retention periods for city records.
(Ord. No. 91-88, § 1, 1-16-91)

Sec. 2-112. City records declared public property.

All city records as defined in section 2-111 of this Code are hereby declared to be the property of the City of Houston. No city official or employee has, by virtue of his or her position, any personal or property right to such records even though he or she may have developed or compiled with them. The unauthorized destruction, removal from files, or use of such records is prohibited.
(Ord. No. 91-88, § 1, 1-16-91)

Sec. 2-113. Policy.

It is hereby declared to be the policy of the City of Houston to provide for efficient, economical, and effective controls over the creation, distribution, organization, maintenance, use, and disposition of all city records through a comprehensive system of integrated procedures for the management of records from their creation to their ultimate disposition.
(Ord. No. 91-88, § 1, 1-16-91)

Sec. 2-114. Designation of records management officer.

The director of the department of administration and regulatory affairs shall be the city's records management officer and shall be responsible for city-wide files management and the direction and control of the city's records disposition program.
(Ord. No. 91-88, § 1, 1-16-91; Ord. No. 91-1076, § 9, 7-17-91; Ord. No. 08-52, § 2, 1-16-08, eff. 1-26-08)

Sec. 2-115. Duties of the records management office.

The specific duties of the records management office and its employees shall include, but not be limited to, the following:

(1) Plan, formulate, and prescribe basic files management and records disposition policies, systems, standards, and procedures.

(2) Prepare records control schedules in cooperation with the heads [directors] of all city offices and departments, define and identify vital and permanent records, and establish retention periods for all records which shall be at least as long as any mandatory retention periods established by the librarian and director.

(3) Review schedules annually and update or amend as needed.

(4) Coordinate the city-wide files management and records disposition programs and report annually to the mayor on program effectiveness.

(5) Provide records management advice and assistance to all city offices and departments by preparation of manuals of procedure and policy and by on-site consultation.

(6) Develop, disseminate, and coordinate files maintenance and records disposition procedures, including, but not limited to, those prescribed by this division 5, to meet the current and long-term information needs of the city.

(7) Train departmental records officers and other personnel in the fundamentals of records management and their duties in the records management program.

(8) Carry out at the proper time actions such as microphotography, destruction, and transfers that are required by records control schedules.

(9) Establish and monitor compliance with standards for filing and storage equipment and supplies in all city offices and departments.

(10) Develop a city-wide forms design and control system.

(11) Establish in cooperation with other responsible city officials a disaster plan for each city office and department to ensure maximum availability of records for reestablishing operations quickly and with minimum disruption and expense.

(12) Develop procedures to ensure the permanent preservation of the historically valuable records of the city.

(Ord. No. 91-88, § 1, 1-16-91; Ord. No. 05-91, § 1, 1-25-05)

Sec. 2-116. Responsibilities of city office and department directors.

Unless otherwise provided by law, all city office and department directors shall serve as custodians of the city records created or received by their offices or departments. They shall be responsible for the implementation and operation of the effective files procedures, records transfers and dispositions, and other activities within their areas of responsibility in accordance with the provisions of this division. They shall designate records officers within their offices and provide the records management officer the names of such designees and of all file stations and file personnel under their supervision. Persons designated as records officers shall report directly to the directors of their departments on matters relating to the records management program and should have full access to all files in their department.

(Ord. No. 91-88, § 1, 1-16-91; Ord. No. 05-91, § 1, 1-25-05)

Sec. 2-117. Responsibilities of records officers.

The records officer in each office and department is responsible for providing coordination between the records management officer and personnel in his or her office to ensure that provisions of this division are complied with. This responsibility shall include overseeing the application of records control schedules within the office or department.

(Ord. No. 91-88, § 1, 1-16-91)

Sec. 2-118. City offices to use records control schedule.

In accordance with the Local Government Records Act, Tex. Local Government Code, section 201.001, et seq., all city offices and departments shall adopt records control schedules and destroy, transfer, or otherwise dispose of records only according to such schedules.

(Ord. No. 91-88, § 1, 1-16-91)

Sec. 2-119. Development of records control schedules.

(a) Retention periods to be included in records control schedules shall be submitted by the records management officer to the city attorney, who shall notify the records management officer within 20 working days of his approval or of any objection to a retention period or request additional time not to exceed 20 additional working days in which to respond. At the expiration of the period (which shall not exceed 40 working days), if no objection has been submitted, the records control schedule shall be adopted by the city. If objection is made, the records management officer shall determine a retention period satisfactory to the office or department concerned and to the city attorney. Retention periods shall be at least as long as any mandatory period established by the librarian and director. If approved by the director and librarian of the Texas State Library and Archives Commission in accordance with section 202.001 of the Texas Local Government Code, the records control schedule shall have full force as sufficient authorization for records destruction or other action.

(b) When a records control schedule is adopted by the city and approved by the director and librarian, it shall thenceforth constitute full authority to destroy, transfer, microphotograph, or take other actions, and the city council hereby directs that such action be taken by the records management officer. No further notice to the city council or other city office shall be required.

(c) Revision of retention periods shall be submitted for review to the city attorney in the same manner as the original retention periods.

(Ord. No. 91-88, § 1, 1-16-91; Ord. No. 91-1076, § 10, 7-17-91)

Sec. 2-120. One-time destruction of records.

Prior to the adoption of records control schedules for an office, a one-time destruction of accumulated obsolete records of that office may be made by or under the supervision of the records management officer if approved by the director and librarian pursuant to sections 203.044 through 203.045 of the Texas Local Government Code. Prior to such destruction the records manage-

ment officer shall submit lists of records to be destroyed to the city attorney, who shall give notice within 30 working days of any records he believes should not be destroyed, and such records shall be retained for a period suggested by him. The records management officer shall also submit notice as required by law to the director and librarian. Obsolete records shall include those no longer created by the office or department and no longer needed for administrative, legal, fiscal, or other research purposes.
(Ord. No. 91-88, § 1, 1-16-91; Ord. No. 91-1076, § 10, 7-17-91)

Sec. 2-121. Preservation of permanent records.

The records management officer shall develop procedures to ensure the permanent preservation of the historically valuable records of the city. In no circumstances shall the permanent records of the city be transferred to private individuals, to private historical societies or museums, or to private colleges or universities.
(Ord. No. 91-88, § 1, 1-16-91)

Sec. 2-122. Noncurrent records not to be maintained in office files.

Records no longer required in the conduct of current business by any office or department of the city shall be promptly transferred to archives or be destroyed, at the time such action is designated on an approved records control schedule. Such records shall not be maintained in current office files or equipment.
(Ord. No. 91-88, § 1, 1-16-91)

Sec. 2-123. Confidentiality.

Nothing in this division 5 shall be deemed to authorize the records management officer to inspect the contents of any record which is confidential or to which access is otherwise restricted by law. The confidentiality of such information shall be maintained in accordance with section 203.023(8) of the Texas Local Government Code.
(Ord. No. 91-88, § 1, 1-16-91)

Sec. 2-124. Reserved.

DIVISION 6. RELEASES

Sec. 2-125. Fees for releases of liens.

The fees stated for this provision in the city fee schedule shall be charged for the initial recordable release furnished by the city upon payment of any obligation secured by a lien and for each additional subsequent release of the same obligation and lien.
(Code 1968, § 2-23; Ord. No. 74-831, § 1, 5-21-74; Ord. No. 84-898, § 1, 6-12-84; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Secs. 2-126—2-135. Reserved.

ARTICLE V. FINANCIAL AFFAIRS*

DIVISION 1. GENERALLY

Sec. 2-136. City depositories—Generally.

(a) The depositories of the funds of the city shall be such banks as are designated and enumerated from time to time by ordinance of the council and nothing in this Code or the ordinance adopting the same shall be deemed to affect the validity of any ordinance making such designations.

(b) The officers of the city entrusted with the depositing of funds of the city shall deposit such funds to the credit of the city in the banks designated and enumerated by ordinance pursuant to this section.
(Code 1968, § 2-13)

Sec. 2-137. Same—Deposit of sinking fund securities and unsold bonds.

All securities owned by the city sinking fund, and all unsold bonds of the city, shall be kept in any of the depositories designated pursuant to section 2-136, and shall be under the joint control of the director of treasury and the city controller.
(Code 1968, § 2-14)

***Charter reference—**Financial affairs generally, Art. VIa.

Cross references—Acceptance of statutory appearance bond, § 16-101 et seq.; use of revenue derived from the operation of parks, § 32-7; taxation, Ch. 44.

Sec. 2-138. Setting off taxes and other debts against city creditors.

(a) Any person who sells goods, wares or merchandise of any name, nature or description to the city, and who is indebted to the city for taxes of any kind, or who owes the city any other debt, shall either pay his taxes or other debt due to the city or else the city shall have the right to setoff such taxes or other debts out of such amount owed by the city.

(b) It shall be the duty of the city controller to ascertain from the tax assessor-collector whether or not any person collecting money from the city is indebted to the city for taxes or in any other way and if it is ascertained that such person is indebted to the city for taxes or in any other way, it shall be the duty of the city controller to report same to the mayor and he shall withhold the payment of the claim until the person legally entitled to collect the same has paid the taxes or any other debt due to the city.
(Code 1968, § 2-111)

Sec. 2-139. Dishonored checks, money orders, etc.

(a) If any party attempts to pay any bill, charge, fee, tax, fine or other indebtedness or obligation to the city by check, money order or similar instrument, and if the instrument is dishonored, then:

(1) The bill, charge, fee, tax, fine or other indebtedness or obligation shall be deemed to remain unpaid; and

(2) An additional dishonored instrument fee equal to 80 percent of the maximum processing fee permitted by § 3.506 of the Texas Business and Commerce Code, or any successor statute, shall be payable to the city by the maker of such instrument in addition to the total amount of such bill, charges, fees, taxes, fines, or other indebtedness if the instrument is not referred to a collection agency under contract with the city. The current fee amount shall be stated for this provision in the city fee schedule. If the dishonored instrument is referred by the city to a collection agency under contract with the city, then the dishonored instrument fee shall be the collection fee specified in the contract or the maximum fee permitted by state law, whichever is less. The dishonored instrument fee shall be in addition to any other applicable charges including charges for late payment.

(b) This section does not apply in the case of checks, money orders or similar instruments dishonored in the course of any attempt to pay any bill, charge, fee, tax, fine or other indebtedness or obligation by a check, money order or similar instrument drawn on or issued by a financial institution which has had its funds frozen by involuntary or voluntary action, if such freezing occurs after the attempt to pay the bill, charge, fee, tax, fine or other indebtedness or obligation in such manner. In such event the party attempting such payment shall not be charged the dishonored instrument fee if the bill, charge, fee, tax, fine or other indebtedness or obligation is paid within ten days from the date such party has been mailed a written notice that payment on the check, money order or similar instrument has not been honored.
(Ord. No. 87-1318, § 2, 7-29-87; Ord. No. 92-179, § 2, 2-19-92; Ord. No. 05-99, § 2, 2-2-05; Ord. No. 2011-1168, § 13, 12-14-2011)

Secs. 2-140—2-150. Reserved.

DIVISION 2. CITY CONTROLLER*

Sec. 2-151. Office created.

There is hereby created a department of the municipal government of the city to be known as the controller's office, the director of which shall be the city controller.
(Code 1968, § 2-108; Ord. No. 05-91, § 3, 1-25-05)

Sec. 2-152. Approval or disapproval of forms and blanks pertaining to accounting system.

(a) Forms for books or blanks pertaining to the accounting system of the city must be submitted in duplicate to the city controller before being adopted, printed or used by any departmental

*__Charter reference—__City controller, Art. VIII.

officer or person required to render periodical accounts to the city controller. If the city controller approves the form submitted, he shall file one copy in this office and return the other to the proper official, with his approval endorsed thereon.

(b) Should the city controller disapprove the form of any blank or book submitted to him, he shall thereupon prepare in his office a form to take the place of the form submitted and forward the same to the proper officer duly approved; provided, however, should the city controller determine that the blank form submitted will be unnecessary to the accounting system of the city, the proper officer shall be duly notified of such decision and such form shall not be adopted, printed or used by the department, officer or person submitting the same.
(Code 1968, § 2-110)

Sec. 2-153. Account with chief of police as to fines, etc.

(a) The city controller shall open an account with the chief of police of the city in which he shall charge the chief of police with all fines assessed in the municipal courts and credit him with all amounts paid on fines and deposited with the tax assessor and collector, together with such allowance on fines as provided for and referred to in chapter 35 of this Code.

(b) The city controller shall use, as his authority for the entries in this account, the daily reports furnished him by the clerk of the municipal court and the chief of police. He shall charge the chief of police with the total amount of fines assessed as shown on the report of commitments issued, and shall credit the chief of police with the total amount of fines discharged either by payment of cash or otherwise as shown in the reports of commitments returned.

(c) It shall be the duty of the city controller to file with the city council, as early as practicable after the close of each month, a statement which shall show the balance, if any, brought forward at the beginning of the month, the total amount debited to this account and the total amount credited to this account during the month, together with an analysis of any balance shown to be due the city, which shall give the case number, the date of commitment, the name of the defendant and the amount of fines and costs due the city in each of the cases remaining unpaid and represented in the balance due the city as reflected by this account.
(Code 1968, § 2-112)

Sec. 2-154. Destruction of documents.

The city controller, subject to the approval of the legal department, is hereby authorized to destroy or cause to be destroyed old vouchers, warrants and checks, representing completed transactions, and still in his possession, after the lapse of 15 years from the date of issuance of such documents. He is also authorized, subject to such approval, to destroy or cause to be destroyed cancelled bonds and interest coupons after the lapse of 15 years from the date of cancellation.
(Code 1968, § 2-113)

Sec. 2-155. Authority of designated deputy city controller.

The city controller shall designate a deputy city controller who, during any temporary absence or incapacity of the city controller, shall act for and on behalf of the city controller and shall possess all of the powers and perform all of the duties of the city controller; provided however, that any such designee shall be bonded as provided in section 2-37 of this Code.
(Code 1968, § 2-114; Ord. No. 68-1624, § 1, 10-2-68; Ord. No. 04-1243, § 1, 12-1-04)

Secs. 2-156—2-180. Reserved.

DIVISION 3. RESERVED*

Secs. 2-181—2-200. Reserved.

*__Editor's note—__Former §§ 2-181—2-186, which comprised Div. 3 and pertained to the purchasing department, were repealed by § 3 of Ord. No. 86-528, enacted April 22, 1986. The repealed provisions derived from §§ 2-156—2-160, 2-162 of the 1968 Code and Ord. No. 77-651, § 1, enacted March 29, 1977; Ord. No. 78-658, § 1, enacted April 4, 1978; Ord. No. 82-1317, §§ 1, 2, enacted Aug. 28, 1982; and Ord. No. 85-2120, §§ 1, 2, enacted Dec. 10, 1985.

ARTICLE VI. CITY PROPERTY*

DIVISION 1. GENERALLY

Sec. 2-201. Acceptance of deeds, dedications, easements, etc., by mayor.

The mayor is hereby authorized to accept, on behalf of the city, without action or further action by the city council, any and all deeds, dedications, easements and other instruments granting to the city any right, title, interest or use in or to any lands, or other property, both real and personal, and which are delivered to the city as a gift or for a consideration not to exceed $25.00, or for a recited consideration that has been previously approved by the city council. All such instruments so accepted shall be recorded by the Director of Houston Public Works in the official public records of real property of the county within which the land described therein is located, and the Director of Houston Public Works shall additionally notify the city secretary of the acceptance of each such instrument. Thereafter the original recorded deeds or other instruments shall be filed in the inventory records of the appropriate offices Houston Public Works.
(Code 1968, § 2-5; Ord. No. 86-1979, § 1, 11-10-86; Ord. No. 90-635, § 4, 5-23-90; Ord. No. 93-514, § 3, 5-5-93; Ord. No. 2018-11, §§ 49, 50, 1-10-2018)

Sec. 2-202. Execution of bills of sale for city property.

In any case where the city council has authorized the sale of improvements, chattels or fixtures appertaining to land owned by the city or has authorized the sale of any personal property owned by the city, the Director of Houston Public Works, or the director of administration and regulatory affairs, is hereby authorized to execute for and on behalf of the city a bill of sale embodying the terms and provisions of the sale as authorized by the city council, and the city secretary is hereby authorized to attest such bills of sale and affix the corporate seal of the city thereto.
(Code 1968, § 2-12; Ord. No. 90-635, § 4, 5-23-90; Ord. No. 93-514, § 3, 5-5-93; Ord. No. 08-52, § 3, 1-16-08, eff. 1-26-08; Ord. No. 2018-11, § 49, 1-10-2018)

Secs. 2-203—2-235. Reserved.

DIVISION 2. ABANDONMENT, SALE, ETC., OF CITY LAND, STREETS, ETC.†

Sec. 2-236. Sale of city land generally.

(a) Any land owned by the city, other than land provided for in sections 2-237, 2-238 and 2-239, determined not to be needed for city purposes, shall be advertised and may be sold to the highest bidder upon authorization of the city council, based upon the appraised fair market value of such land. The selling price for such land shall never be for less than the market value fixed by city council, which determination as to such market value will be final.

(b) When such land is advertised for sale upon authorization of the city council, any bidder may bid on the basis of all or part of the consideration for such land being the conveyance to the city of good, clear and merchantable title to land which the city council, prior to the advertisement for bids, has determined is needed by the city for public purposes.
(Code 1968, § 2-6; Ord. No. 74-803, § 1, 5-15-74)

***Charter references—**Sale or lease of city property, Art. VII, § 9; public property exempt from execution sale, Art. XI, § 9.

Cross references—Purchase of city property by antique dealers, § 7-20; purchase of city property by junk dealers, scrap metal processors, etc., § 7-61; purchase of city property by pawnbrokers, § 7-86; use of candles on certain city properties, § 28-32; painting or posting advertising matter on streets, sidewalks, bridges, etc., § 28-38; posting advertising matter on traffic signs, utility poles, etc., § 28-39; abandonment of city-owned utility facilities, § 47-266 et seq.

†**Editor's note—**Section 5 of Ord. No. 90-635, adopted May 23, 1990, repealed former Div. 2 of Ch. 2, Art. VI, and redesignated former Div. 3 as Div. 2. (The sections within new Div. 2 have not been renumbered.) Former Div. 2, §§ 2-216—2-220, pertained to the real estate department and derived from § 4 of Ord. No. 86-528, adopted April 22, 1986.

Charter reference—Limitations on sale or lease of real estate, Art. VII, § 9.

Cross reference—Abandonment of city-owned utility facilities, § 47-266 et seq.

Sec. 2-237. Abandonment of streets and alleys.

Streets or alleys, whether owned in fee or used by easement, may be sold to the abutting owner or owners, in proportion to the underlying fee ownership as exists, or would exist if by easement. When ownership is of the underlying fee, the apportionment shall be determined by city council, which determination will be final. Upon the payment of:

(1) The fee stated for this provision in the city fee schedule; or

(2) The appraised market value of the street or alley, based on not less than one appraisal; or

(3) The actual costs to the city based upon a "per square foot" proration of the city's cost plus the cost of any city improvements subsequently made that pertain to the property covered by the street or alley;

whichever is greatest, and after abandonment of the street or alley, the city will deliver a certified copy of the ordinance effecting abandonment to the owners of the fee simple title thereto, or to the abutting owners. The market value of any street or alley shall be fixed by city council, which determination as to such market value will be final.

(Code 1968, § 2-7; Ord. No. 74-803, § 1, 5-15-74; Ord. No. 88-171, § 1, 2-10-88; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 2-238. Abandonment of easements.

Easements, other than streets or alleys, may be sold to the abutting owner or owners, in proportion to the underlying fee ownership as exists, upon the payment of:

(1) The fee stated for this provision in the city fee schedule; or

(2) The appraised market value of the easement, based on not less than one appraisal; or

(3) The actual costs to the city based upon a "per square foot" proration of the city's costs plus the cost of any city improvements made that pertain to the property covered by the easement;

whichever is greatest, and after abandonment of the easement, the city will deliver a certified copy of the ordinance effecting abandonment to the owners of the fee simple title thereto. The market value of any easement shall be fixed by city council, which determination as to such market value will be final.

(Code 1968, § 2-8; Ord. No. 74-803, § 1, 5-15-74; Ord. No. 88-171, § 2, 2-10-88; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 2-239. Narrow strips of land.

Fee-owned narrow strips of land, or land so shaped as to be incapable of being used independently, may be sold to the abutting owner or owners, in proportion to the abutting ownership.

(1) Apportionment will generally be based on:

a. The projection of existing abutting property lines over such narrow strip; or

b. Street frontage, if any; or

c. Access to the property;

said apportionment to be determined by city council, which determination will be final.

(2) Payment for such tract of land shall be made in the amount of:

a. The fee stated for this provision in the city fee schedule; or

b. The appraised market value of the tract of land, based on not less than one appraisal; or

c. The actual costs to the city based upon a "per square foot" proration of the city's cost plus the cost of any city improvements subsequently made that pertain to the tract of land;

whichever is greatest. The market value of such tract of land shall be fixed by city council, which determination as to such market value will be final.

(Code 1968, § 2-9; Ord. No. 74-803, § 1, 5-15-74; Ord. No. 88-171, § 3, 2-10-88; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 2-240. Conditions to all sales.

(a) Nothing in this division shall be construed to require the city council to accept any bid or offer, or be required to consummate any sale of any land or property interest or to give any person a vested right to compel the city either to abandon, vacate or dispose of any land or any easement or right therein, or to compel or require that the same be upon any particular or exact terms or consideration.

(b) Any applicant under sections 2-237, 2-238 or 2-239 shall be required to make a cash deposit with the city equal to $300.00 plus the city's estimate of its cost to obtain appraisals of the land or property interest in question, or any re-appraisal thereof requested by or on behalf of the applicant, as reflected by the estimates of the cost to perform such work submitted by the appraisers selected by the city. All such appraisals or re-appraisals shall be obtained in the name of, and solely for the use and benefit of, the city. The $300.00 deposit, and the amount deposited for the first appraisal(s) only, shall be applied to the purchase price of the land or property interest under sections 2-237, 2-238 or 2-239 if the abandonment and sale is completed. The entire amount so deposited shall be forfeited by the applicant to the city the event the abandonment and sale is not completed.

(c) Reserved.

(d) Reserved.

(Code 1968, §§ 2-10, 2-11; Ord. No. 74-803, § 1, 5-15-74; Ord. No. 86-1582, § 1, 9-9-86; Ord. No. 88-171, § 4, 2-10-88; Ord. No. 92-984, § 1, 7-15-92; Ord. No. 08-664, § 2, 7-23-08)

Sec. 2-241. Appointment of appraisers.

(a) The Director of Houston Public Works and the director of general services ('the directors') shall allow council members to submit the names of appraisers to be evaluated for inclusion in a list of qualified appraisers. The directors shall jointly develop and maintain policies and procedures (i) for obtaining and maintaining a list of qualified appraisers who have applied to receive appraisal engagements from the city, and (ii) for appraisals of city owned real estate. The directors may remove appraisers with repeated performance violations including refusal of engagements, untimely delivery of appraisals, inadequate documentation, inadequately supported market values, and similar performance issues from the list of qualified appraisers for not less than one year nor more than three years.

(b) The directors shall recommend qualified appraisers to the city council, and the council shall designate by ordinance a list of the city's appointed appraisers for a period of not less than one year nor more than three years. The directors shall engage appraisers as needed from the list of appointed appraisers pursuant to subsection (c) or subsection (d) on a rotating basis, engaging the next appraiser(s) on the list who has appropriate (i) appraisal qualifications for the type of real estate or interest therein being sold or leased (such as residential, commercial, or industrial) and of the size and complexity of the appraisal, and/or (ii) appraisal experience in the locality of the subject real estate.

(c) In any sale of real estate or interest therein for which the value is estimated to exceed $1,000,000.00 or in any lease in which the value of the fee estate is estimated to exceed $1,000,000.00, the Director of Houston Public Works or director of general services, as applicable, shall engage two qualified appraisers on the list of appointed appraisers for the purpose of determining fair market value.

(d) In any sale of real estate or interest therein for which the value is estimated to not exceed $1,000,000.00, the Director of Houston Public Works or director of general services, as applicable, shall receive a minimum of one appraisal report from a qualified appraiser on the list of appointed appraisers for the purpose of determining fair market value. In any sale of real estate or interest therein for which the value is estimated to not exceed $50,000.00, an

appraisal report may be provided by a city employee with professional appraisal qualifications.

(e) In any transactions involving the Houston Airport System, the Director of the Houston Airport System shall have the responsibilities of and be substituted for either or both of the directors in subsections (b), (c), and (d) of this section.
(Ord. No. 04-338, § 2, 4-21-04; Ord. No. 08-664, § 3, 7-23-08; Ord. No. 2015-350, § 2, 4-15-2015; Ord. No. 2018-11, § 49, 1-10-2018)

Secs. 2-242—2-255. Reserved.

ARTICLE VII. LEGAL DEPARTMENT*

DIVISION 1. GENERALLY

Sec. 2-256. Created; department director.

There is hereby created a legal department of the city, and the city attorney shall be the director of such department.
(Code 1968, § 2-140; Ord. No. 05-91, §§ 1, 4, 1-25-05)

Sec. 2-257. City attorney's office created; appointment and removal of city attorney.

There is hereby created the office of city attorney of the city. The holder of such office shall be appointed by the mayor and confirmed by the city council and may be removed from office by the mayor at any time.
(Code 1968, § 2-141)

Charter reference—Appointment of heads of administrative departments, Art. VI, § 7a.

Sec. 2-258. General duties of city attorney.

The city attorney shall represent the city in all actions and proceedings before any court, commission, board or other judicial or administrative authority. He shall represent the city in all other legal matters. Upon request, he shall render opinions and advice to the mayor or city council upon any legal matter affecting municipal affairs. He shall render opinions and advice to city boards, commissions or directors of city departments, when requested in writing, upon any legal matter affecting the affairs of such board, commission or department. He shall maintain complete records in his department and perform such other duties as may be assigned from time to time by the mayor and city council.
(Code 1968, § 2-142; Ord. No. 05-91, § 1, 1-25-05)

Sec. 2-259. Assistant city attorneys.

The first assistant city attorneys and all assistant city attorneys shall be appointed and removed by the mayor at will. They shall aid and assist the city attorney in the exercise of his powers and duties, acting in his place when directed by him, and shall perform such duties as shall be assigned to them by the mayor, the city council, and the city attorney. For the purpose of discharging any power vested in the city attorney by Chapter 45 of the Code of Criminal Procedure of the State of Texas, the first assistant city attorneys and all assistant city attorneys shall each be considered a deputy of the city attorney.
(Code 1968, § 2-143; Ord. No. 93-1096, § 1, 9-8-93)

Charter reference—Appointment of employees, Art. VI, § 7a.

Sec. 2-260. Authority of city attorney relative to agreements for installment payment for damages to city property resulting from collisions.

In instances where any property, including, but not limited to, motor vehicles, owned by the city has been damaged in a collision involving a person operating a motor vehicle who has not complied with the requirements as to proof of financial responsibility, as provided by Article 6701h, Revised Civil Statutes, the city attorney, or his designated assistant, is hereby authorized to accept, execute and acknowledge on behalf of the city written agreements providing for the payment to the city of an agreed amount of

*__Cross references—__Representation of criminal defendants by city employees, § 16-65; city as party to suit to enjoin or abate recorded restrictions affecting subdivision, § 41-8 et seq.

money in installments to be paid by persons operating motor vehicles which have been in collision with and have caused damage to such city-owned property, such agreement being in compliance with Section 5 of said Article 6701h. The city attorney, or his designated assistant, is also authorized to execute and acknowledge on behalf of the city all releases of indebtedness and liability after full payment of all agreed installments have been made to the city.
(Code 1968, § 2-145)

Sec. 2-261. Authority of city attorney to accept immediate right of entry agreements under certain conditions.

Whenever an emergency exists requiring that the city obtain immediately the legal right to possession of all lands required for a certain public improvement or project and the Director of Houston Public Works shall certify that such an emergency exists, the city attorney is authorized to accept from any property owner whose land is required for such project an instrument granting the right of entry to the city and its contractors to take possession of the land and proceed with the construction of the improvement, which instrument may provide for the payment to the owner of interest at the legal rate from the date of the right of entry upon whatever compensation shall be paid him, either by purchase or condemnation award.
(Code 1968, § 2-146; Ord. No. 70-1754, § 1, 10-7-70; Ord. No. 90-635, § 6, 5-23-90; Ord. No. 93-514, § 4, 5-5-93; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 2-262. Authority of city attorney to institute and settle suits for debts and damages owed to the city.

(a) The city attorney or any of his assistants are hereby authorized to institute lawsuits on behalf of the city in any court of competent jurisdiction to recover any debt or damages owed to the city when in the exercise of their judgment such action is necessary. For the purposes of this subsection, any debt or damages owed to the city shall mean any monies deemed by a department to be payable to the city, or any money owed to the city under a previously executed installment contract.

(b) In a suit instituted under the authority of this section, the city attorney or his assistants are hereby authorized to make any settlement or compromise which in their judgment is in the best interest of the city.
(Code 1968, § 2-147; Ord. No. 73-730, § 1, 4-18-73)

Sec. 2-263. Authority of city attorney to settle contract disputes.

(a) The city attorney or any of his or her assistants are hereby authorized to settle disputes involving city contracts without approval by city council where such disputes involve a settlement amount to be paid by the city that is less than or equal to the maximum dollar amount of an expenditure that the city is generally allowed to make without taking competitive bids for contracts under state law, as amended from time to time.

(b) In exercising the authority pursuant to this section, the city attorney or any of his or her assistants are hereby authorized on behalf of the city to execute settlement agreements, releases, covenants not to sue, and similar documents which in their judgment are in the best interest of the city.
(Ord. No. 2016-909, § 1, 11-30-2016)

Sec. 2-264. Replacement of bonds and bond coupons—authorized; costs; collection of fees.

(a) The city is authorized by Chapter 1206 of the Texas Government Code and Section 8.405, Texas Business and Commerce Code, as amended, to issue a replacement bond for any bond theretofore lawfully issued and which is outstanding to replace, without an election, any such bond which has been destroyed, lost or stolen, upon receipt by the city of an indemnity satisfactory to the city together with an affidavit satisfactory to the city to establish proof of ownership and the circumstances of the loss, theft, destruction, mutilation or damage of such bond.

(b) The costs incurred by the city in issuing a replacement bond or bond coupon include personnel costs of the city secretary's, city controller's and city attorney's offices for time consumed in processing requests for replacements, research costs, managerial costs for review and signing all required documents, and legal fees.

(c) The city attorney shall levy and collect a fee, as set out in the fee schedule below, for the replacement of bonds and bond coupons. The fees shall be collected by the city attorney and transferred to the city controller for deposit in the city's general fund. All relevant records and the original transcript pertaining to the replacement bond or coupon shall be delivered to the city controller.

(Ord. No. 88-30, § 1, 1-6-88; Memorandum of 9-12-2012; Ord. No. 2016-909, § 1, 11-30-2016)

Note—Formerly § 2-263.

Sec. 2-265. Same—Fees.

(a) The following fees shall be charged for the issuance of a replacement for a bond(s) or coupon(s) which has been lost, stolen, destroyed or mutilated.

(1) Registered bonds fee, payable by the owner requesting the replacement bond(s) or coupon(s). This fee shall cover all costs, except printing costs, associated with replacing the bond(s) or coupon(s).

(2) Bearer bonds fee, payable by the owner requesting the replacement bond(s) or coupon(s). This fee shall cover all costs, except printing costs, associated with replacing the bond(s) or coupon(s).

(3) Printing costs. The actual invoice cost for printing of the replacement bond(s) or coupon(s), payable by the owner requesting the replacement bond(s) or coupon(s).

(4) Use of personal counsel. In the event that the owner requesting the replacement of bond(s) and/or coupons uses his or her personal counsel rather than the city attorney to prepare and have printed the required documents and certificates, the city shall assess a fee for review and processing of registered bond(s) and/or coupon(s) and a fee for review and processing of for bearer bond(s) and/or coupon(s).

(b) The fees shall be the same for replacing matured and unmatured bond(s) or coupon(s). The owner requesting the replacement will be assessed the applicable fees only once for replacement of single or multiple bond(s) or coupon(s), in the event that the bond(s) or coupon(s) are from the same bond series or issuance and the request for replacement of all the bond(s) or coupon(s) are made simultaneously. A fee will be assessed for each separate request for replacement of bond(s) and coupon(s) from different bond series or issuances.

(c) The fees are stated for this section in the city fee schedule.

(Ord. No. 88-30, § 2, 1-6-88; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2016-909, § 1, 11-30-2016)

Note—Formerly § 2-264.

Secs. 2-266, 2-267. Reserved.

DIVISION 2. NUISANCE ABATEMENT

Sec. 2-268. Policy.

Consistent with the remedies available under chapter 125 of the Texas Civil Practices & Remedies Code ("chapter 125"), it is the policy, but not the duty, of the city to aggressively pursue remediation of nuisance properties, including properties used for gambling, prostitution, obscenity offenses, controlled substance violations and other offenses that are enumerated in chapter 125. In cooperation with the police department and county law enforcement and prosecution officials, the legal department shall pursue suits whenever appropriate under chapter 125.

(Ord. No. 94-923, § 3, 9-7-94)

Sec. 2-269. Alternative remedies.

Whenever practicable, the city attorney shall notify the owners, tenants or persons in possession of a property prior to initiating a suit under chapter 125. However, prior notice shall not be required if in the judgment of the city attorney the giving of notice would not be in the best

interest of the public, including, but not limited to, instances where the severity of the situation justifies immediate legal action or situations where there is reason to believe that the owners, tenants or persons in possession might attempt to avoid service if they were aware of the filing of a suit.
(Ord. No. 94-923, § 3, 9-7-94)

Sec. 2-270. Alternative resolutions.

(a) In those instances in which the owners, tenants or persons in possession of property that is subject to a suit under this division indicate a willingness to attempt to rectify their nuisance conditions without a suit or in settlement of a suit, the city attorney may agree to forebear or abate the suit under chapter 125 upon a written undertaking by the owners, tenants or persons in possession of the property to take one or more of the following actions, as appropriate:

(1) The installation and use of lighting on the property to avoid dark passageways and exterior areas;

(2) The initiation or enhancement of privately funded security patrol services on the property;

(3) The inspection of vacant commercial or residential units or spaces to ensure that they remain secure and do not become a harborage for criminal activities;

(4) The removal or eviction of persons who have been associated with the causation of criminal activities on the property;

(5) The installation or enhancement of fencing and/or other crime deterrent devices on the property; and/or

(6) The installation or enhancement of other appropriate security or crime deterrent devices and/or procedures, as determined by the city attorney or other city officials or designees.

(b) Without limiting the prerogatives of the city attorney to develop appropriate agreement forms for the written undertakings of owners, tenants or persons in possession of property to abate nuisance conditions, the following requirements are specifically authorized to be included, as appropriate:

(1) That the undertaking be for a specific period of time, be binding upon any subsequent owner, tenant or person in possession of the property, and be duly recorded in the county real property records;

(2) That the owners, tenants or persons in possession be required to give immediate notice to appropriate city officials upon any transfer of the property title, leasehold or other interest involved;

(3) That the understanding be specific as to the exact nature of the actions that will be taken by the owners, tenants or persons in possession of the property and include a time schedule for the completion or implementation of the various items;

(4) That the owners, tenants or persons in possession of the property reimburse the city for inspection expenses, public safety expenses, legal expenses and costs of any other nature that have been incurred by the city in its actions to abate the nuisance or settle any matter relating to any nuisance condition that is associated with the property;

(5) That the owners, tenants or persons in possession be required to post a good and sufficient bond, assign a financial account or provide other security to cover the city's legal expenses and related enforcement costs for the prosecution of a suit under chapter 125 in case the undertaking is not timely and fully complied with; and/or

(6) That the owners, tenants or persons in possession be required to reimburse the city for public safety costs that are in excess of a level that is deemed to be reasonable in relation to the circumstances surrounding the use of the property.

(c) The undertaking of the owners, tenants or persons in possession of a property to take actions as provided in subsections (a) and (b),

above, may be monitored by the city attorney and the police department to ensure that the measures are implemented as agreed. In the event that the measures are not timely implemented or are not effective in abating the nuisance conditions, then the city attorney shall not in any manner be precluded from initiating or further prosecuting a matter under chapter 125.
(Ord. No. 94-923, § 3, 9-7-94)

Secs. 2-271—2-275. Reserved.

ARTICLE VIII. HOUSTON PUBLIC WORKS*

Sec. 2-276. Department created.

There is hereby created a department of the city to be known as Houston Public Works.
(Ord. No. 90-635, § 7, 5-23-90; Ord. No. 93-514, § 5, 5-5-93; Ord. No. 2018-11, § 4, 1-10-2018)

Sec. 2-277. Office of director.

(a) There is hereby created the office of Director of Houston Public Works. The director shall be the executive officer of the department and shall be appointed by the mayor and confirmed by city council. The director shall either:

(1) Be a professional engineer, registered as such in Texas;

(2) Have at least five years of full-time experience in an executive position in public service administration or business administration with accountability for management of complex business or service line performance and growth; or

(3) Have an equivalent combination of training, education, and experience sufficient to provide leadership and perform the duties of the office.

(b) The director shall have all the powers and shall exercise all the duties conferred upon the department stated in section 2-278 of this Code, except that if the director is not a professional engineer registered as such in Texas, any duties that devolve upon the director that are required to be performed by a professional engineer shall be performed by the city engineer.
(Ord. No. 90-635, § 7, 5-23-90; Ord. No. 93-514, § 5, 5-5-93; Ord. No. 05-91, §§ 1, 5, 1-25-05; Ord. No. 2018-11, § 49, 1-10-2018; Ord. No. 2024-880, § 2, 11-20-2024)

Charter reference—Appointment of heads of administrative departments, Art. VI, § 7a.

Sec. 2-278. Duties.

(a) The duties of the department shall include the following:

(1) Construction, maintenance and operation of the city's water system, sewer system, drainage utility system, and any combination of those systems.

(2) Design, construction, repair and maintenance of streets, bridges, structures and capital projects of all natures as required for the infrastructure of the city.

(3) Acquisition of real property for capital projects and maintenance of real property records; disposal of surplus real property.

(4) Operation and maintenance of city buildings and structures that are assignedto the department.

(5) Design, installation and maintenance of traffic control signals and devices and related duties.

(6) Administration and enforcement of the Construction Code and related duties.

(7) Administration of the building official's functions assigned to the department in Chapter 10 of this Code.

(8) Administration of the solid waste management division's duties and functions, including maintenance and operation of the city's solid waste management system, assigned to the department in Chapter 39 of this Code.

*__Editor's note—__Ord. No. 2018-11, § 3, adopted January 10, 2018, amended the title of Ch. 2, Article VIII to read as herein set out. Former Article VIII was entitled "Public Works and Engineering Department."

(9) Any other duties as assigned by the mayor or city council pursuant to law.

(b) To the extent that this Code or any other ordinance or any motion, resolution, or other document devolves duties relating to the enforcement of the Construction Code upon the department of planning and development or the director thereof, then such references shall be construed to mean Houston Public Works and the director thereof.

(c) To the extent that this Code or any other ordinance or any motion, resolution, or other document devolves duties upon the department of public works and engineering or the director thereof, then such references shall be construed to mean Houston Public Works and the director thereof.
(Ord. No. 90-635, § 7, 5-23-90; Ord. No. 93-514, § 5, 5-5-93; Ord. No. 94-674, § 3, 7-6-94; Ord. No. 98-613, § 10, 8-5-98; Ord. No. 02-528, § 14d., 6-19-02; Ord. No. 03-794, § 5, 9-3-03; Ord. No. 04-1015, § 6, 9-27-04; Ord. No. 08-417, § 3, 5-14-08; Ord. No. 08-568, § 21, 6-18-08; Ord. No. 2018-11, §§ 5, 50, 1-10-2018; Ord. No. 2021-1037, § 20(Exh. I.5, 12-1-2021, eff. 4-1-2022; Ord. No. 2026-0516, § 21, 6-10-2026)

Sec. 2-279. Certain functions to be performed by the general services and aviation departments.

With the exception of real property acquisition and the disposition of surplus real property, which shall be handled concurrently by the department and the general services department, the planning, design, construction and management of city buildings shall be the responsibility of the general services and aviation departments, as provided in this Code.
(Ord. No. 99-378, § 3, 4-21-99; Ord. No. 05-946, § 2, 8-10-05; Ord. No. 06-804, § 2, 8-2-06; Ord. No. 07-840, § 3, 7-18-07)

Sec. 2-280. Use of training services by outside agencies.

Houston Public Works shall maintain one or more training facilities at which job related training shall be provided to personnel of the department and of other city departments. Priority shall be given in all training courses conducted by Houston Public Works to city employees. To the extent that any excess capacity may exist in any class or training course after city needs have been accommodated, Houston Public Works may allow persons who are employed by other political subdivisions, persons who are employed by construction contractors and other persons to attend the class or training course. The Director of Houston Public Works may adopt procedures regarding the offering of training to persons who are not city employees. The Director of Houston Public Works or the director's designee shall establish training fees, registration fees, lab fees, printing fees, and other related fees for any training furnished to persons who are not city employees. The fees shall be payable for each person other than a city employee attending each class. The fees shall be based upon the city's cost of providing the services and shall be remitted to the city treasury. In addition to the imposition of the fees authorized above for training provided to persons who are not city employees, the Director of Houston Public Works may impose interdepartmental fees to recover the Houston Public Works costs when training is provided to city personnel who are assigned to other departments.

The fee amounts are stated for this provision in the city fee schedule.
(Ord. No. 00-14, § 1, 1-5-00; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2018-11, §§ 49, 50, 1-10-2018)

Sec. 2-281. Leasing of parking lots.

(a) The department* shall have and exercise management of the leasing, subject to city council approval, of all city-owned parking lots, and garages that are situated on property within its director's custody and of any that are situated on other city property that is assigned to the department for such purpose. The department shall collect and account for the revenues therefrom.

(b) Users of the post office lot, being that parking lot beneath Interstate 45 between Franklin and the Southern Pacific Railroad tracks,

shall be liable for payment of the fees stated for this provision in the city fee schedule, plus sales tax.
(Ord. No. 91-1076, § 7, 7-17-91; Ord. No. 96-50, § 6, 1-17-96; Ord. No. 96-1379, § 1, 12-18-96; Ord. No. 08-417, § 4, 5-14-08; Ord. No. 08-568, § 22, 6-18-08; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2018-11, § 50, 1-10-2018)

Note—(*Houston Public Works)

Sec. 2-282. Freeway ramp closing agreements.

The Director of Houston Public Works is authorized to negotiate agreements with the Texas Department of Transportation for the temporary closure of ingress and egress ramps of state maintained controlled access highways as may be necessary or desirable for public safety during temporary use of adjacent city streets for events such as the Houston International Festival, street functions conducted under section 40-27 of this Code, parades conducted under chapter 45 of this Code, city sanctioned motor vehicle races, and similar activities.
(Ord. No. 00-184, § 1, 3-22-00; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 2-283. Fees for review of plans or specifications.

Plan review fees shall be charged in any instance in which city engineer is requested to review plans or specifications to ensure compliance with the city's water, wastewater, drainage, street paving, and traffic infrastructure standards. An administrative fee shall also be payable in full upon submission of plans or specifications to the city engineer. Plan review fees for the initial submittal shall be payable as follows: (1) 25 percent of the total plan review fee (nonrefundable) shall be paid upon submission of plans or specifications for review, and (2) the remainder of the total plan review fee shall be paid upon completion of the review. Plan review fees for additional pages for a resubmittal shall be paid in full upon resubmission of plans or specifications for review. The fee amounts are stated for this provision in the city fee schedule. Payment of the fees is a condition of the processing of any request for review of plans or specifications.
(Ord. No. 05-820, § 11a, 6-22-05; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 2-284. Notice to building owners or building managers that an individual has requested their building plans.

(a) The director shall promulgate procedures to notify building owners or building managers when a request is made to inspect or to obtain copies of their building's construction plans and floor plans that are maintained by the city. This service shall be available to all building owners who register and pay the required registration fee.

(b) The director is authorized to charge each building owner who registers for the service a registration fee for each two-year registration period. The fee are stated for this provision in the city fee schedule.

(c) The service must be renewed upon the expiration of the registration period with the fee payable upon renewal.

(d) Failure to renew the service upon the expiration of the registration period shall result in the discontinuation of the service for the building owner or building manager. The service shall resume upon renewal.

(e) Participation in this program is not intended to, nor shall it create a contract, either express or implied, creating a guarantee of performance by the city. Any and all liability and consequential damages resulting from the city's failure to comply with this program are hereby disclaimed and governmental immunity as provided by law is retained.

(f) The building owner, building manager or any other persons registered for this program must covenant and agree that they will, jointly and severally, indemnify and hold the city harmless against liability for any and all claims, judgments and associated legal expenses and costs and for claims and litigation arising out of the city's failure to comply with this program.

(g) The provisions of subsection (a) of this section shall not apply to a request made by a governmental entity or a law enforcement agency to inspect or obtain copies of building plans.
(Ord. No. 05-1401, § 1, 12-20-05; Ord. No. 2011-1168, § 13, 12-14-2011)

Secs. 2-285—2-290. Reserved.

ARTICLE IX. HOUSING AND COMMUNITY DEVELOPMENT DEPARTMENT

Sec. 2-291. Department created.

There is hereby created the housing and community development department.

Sec. 2-292. Director.

(a) There is hereby created the office of director of the housing and community development department.

(b) The director shall be the executive officer of the department and shall perform or cause to be performed the duties that are assigned by law or by the mayor.
(Ord. No. 89-1079, § 1, 7-12-89)

Sec. 2-293. Duties.

In addition to any other duties that may from time to time be assigned, the director and the department shall be charged with:

(1) Administration of the community development block grant program;

(2) Administration of all city housing programs (except those administered by the housing authority of the City of Houston) including the rental, rehabilitation, emergency repair, urban homesteading, replacement housing, lead-based paint removal program and housing improvement programs and the contracts for professional services and other support required for the administration thereof;

(3) Coordination with the housing authority of the City of Houston to assure the effective development of public housing;

(4) Development of neighborhood plans and coordination of neighborhood development with other city departments;

(5) Administration of the city's economic development programs, including but not limited to, the small business development corporation, target of opportunity loan program and enterprise zone development program;

(6) Monitoring the city's participation in the federal job training partnership act program;

(7) Rendering support services to the human resources department and director regarding compliance with affirmative action requirements, and rendering support services regarding Davis-Bacon Act compliance and other requirements that are administered by the office of business opportunity for contracts, programs and projects administered by the department under this article;

(8) Monitoring the disbursement of funds and program operations of those city service programs for the elderly including, but not limited to, meals programs and transportation programs that are funded in whole or in part with federal community development block grant funds, which programs shall be administered through the Houston Health Department;

(9) Monitoring the disbursement of funds and program operations of those city service programs for the provision of child care services and/or the reduction of juvenile delinquency that are funded in whole or in part with federal community development block grant funds, which programs shall be administered through the Houston Health Department;

(10) Administering the city's program for the rendition of relocation payments and assistance to persons who have been displaced by federal community development block grant funded activities;

(11) Monitoring the expenditure of federal community development block grant funds by the parks and recreation department for leisure enrichment activities in the city's parks, including the development of interdepartmental agreements for the services to be rendered with those funds;

(12) Acting as the city's liaison with the Houston Residents Citizen Participation Commission; and

(13) Rendering support services for the well being of the citizens of the city in the areas of independent living, aesthetic environment, employment opportunities, natural resources utilization and other matters affecting the quality of life.

(Ord. No. 89-1079, § 1, 7-12-89; Ord. No. 90-2, § 1, 1-3-90; Ord. No. 91-1102, § 1, 7-31-91; Ord. No. 02-528, § 14e., 6-19-02; Ord. No. 2011-320, § 1, 5-4-2011; Ord. No. 2012-850, § 4, 9-26-2012; Ord. No. 2015-820, § 34, 8-26-2015)

Sec. 2-294. Transfer of duties.

To the extent that any of the duties to be performed by the director or the department are assigned elsewhere in this Code or in any other ordinances, resolutions, motions or regulations of the city to the Director of Houston Public Works or Houston Public Works, or to the director of planning and development or the department of planning and development, or to the mayor or the office of the mayor or any division thereof, or to the director of the real estate department or to the real estate department, or to the director of public health or to the Houston Health Department, then such references shall be construed, as applicable, to mean the department and director created in this article.

(Ord. No. 89-1079, § 1, 7-12-89; Ord. No. 2015-820, §§ 33, 34, 8-26-2015; Ord. No. 2018-11, §§ 49, 50, 1-10-2018)

Sec. 2-295. Use of community development block grant funds for personnel.

Except within the housing and community development department, no position of employment within city government shall be directly funded in whole or in part through the expenditure of federal community development block grant funds unless the funding of the position with those funds is authorized by the city council in the personnel ordinance creating the Position. The provisions of this section shall not be construed to prohibit reimbursements paid through federal community development block grant funds to other city departments for personnel services rendered in support of community development block grant projects and activities under interdepartmental service agreements approved by the director of the housing and community development department.

(Ord. No. 89-1079, § 1, 7-12-89)

Secs. 2-296—2-300. Reserved.

ARTICLE X. LEGAL REPRESENTATION AND INDEMNIFICATION OF CITY OFFICERS AND EMPLOYEES

Sec. 2-301. Generally.

The purpose of this article is to establish the city's policy of providing legal representation to and indemnification of current and former city officers and employees against whom civil lawsuits are brought alleging acts or omissions by such officers and employees during the course and scope of their assigned duties with the city.

(Ord. No. 91-1611, § 1, 11-13-91; Ord. No. 2018-286, § 2, 4-4-2018)

Sec. 2-302. Definitions.

As used in this article, the following terms and phrases shall have the following meanings:

City attorney means the city attorney or his designee.

Covered person means a person who is or was:

(1) The mayor, the city controller, or a member of city council;

(2) A member of a city board, commission, or committee created by Charter, ordinance, or resolution of the city;

(3) An employee of the city;

(4) A volunteer who has been approved in writing by and works under the direction of the mayor, the city controller, a member of city council, or a city employee and who has been issued a city identification badge by the security official for use while acting as such a volunteer; or

(5) A member of a super neighborhood council formally recognized by the mayor, and a member of the super neighborhood alliance, while acting in their capacity as a member of a super neighborhood council or the super neighborhood alliance at a meeting of the super neighborhood council or super neighborhood alliance to which they are a member.

Security official shall have the meaning ascribed in section 2-411 of this Code.

(Ord. No. 91-1611, § 1, 11-13-91; Ord. No. 2018-286, § 3, 4-4-2018; Ord. No. 2025-845, § 2, 10-8-2025)

Sec. 2-303. Legal representation.

(a) The city shall, subject to the exclusions described below, provide legal representation to a covered person for any claim or lawsuit brought against the covered person alleging acts or omissions by the covered person during the course and scope of his assigned duties with the city.

(b) The city may provide legal representation to a covered person by assigning an assistant city attorney to undertake such representation or by employing a private lawyer or law firm.

(c) The city shall pay all costs associated with legal representation, including any fees of the attorney selected by the city attorney to represent the employee, court fees, deposition and expert witness fees and other costs associated with the preparation for or presentation of the covered person's defense.

(d) Covered persons who wish to select and employ their own attorney may do so at their own cost.

(e) Notwithstanding the above, the city shall not be obligated to provide legal representation to a covered person if:

(1) The acts or omissions alleged in the claim or lawsuit are intentional or willful, and the city attorney has determined, based on a departmental investigation or such other information as is available to the city attorney, that the covered person intentionally or willfully violated a city ordinance, rule or policy or a clearly established constitutional or statutory right or was otherwise acting in bad faith; or

(2) The claim or lawsuit against the covered person has been brought by or on behalf of the city.

(Ord. No. 91-1611, § 1, 11-13-91; Ord. No. 2018-286, §§ 4, 5, 4-4-2018)

Sec. 2-304. Indemnification.

(a) The city shall, subject to the exclusions and other provisions of this section, pay judgments, attorney's fees and costs assessed against a covered person in a lawsuit for which the city has an obligation to provide legal representation under section 2-303, above.

(b) The city shall not pay that portion of any judgment against a covered person that awards:

(1) Exemplary or punitive damages; or

(2) Actual or compensatory damages arising out of a cause of action for official misconduct.

(c) Total payments made under this section on behalf of a covered person shall not exceed $100,000.00 to any one person or $300,000.00 for any single occurrence of personal injury or death or $10,000.00 for a single occurrence of property damage.

(d) Where multiple claims are made against two or more covered persons or against the city and one or more covered persons for injuries and/or damages from a single occurrence, and where the city's liability is limited by the Texas Tort Claims Act, the total of all payments arising out of the bodily injury or death of any one

person shall not exceed $250,000.00 and the total of all payments arising out of a single occurrence shall not exceed $500,000.00.

(e) The city shall have the right to investigate, negotiate, and settle any claim or suit as it determines desirable.

(Ord. No. 91-1611, § 1, 11-13-91; Ord. No. 2018-286, § 6, 4-4-2018)

Sec. 2-305. Duties and responsibilities of covered persons.

In order to receive the benefits of the legal representation and indemnification provisions of this article a covered person must:

(1) Notify the city attorney, in writing, as soon as practicable upon receipt of written notice of a claim or lawsuit, but no later than five working days after receipt;

(2) Cooperate with the city attorney and, upon the city attorney's request, assist in making settlements, in the conduct of suits, and in enforcing any right of contribution or indemnity against a person or organization who may be liable to the city because of injury or damage covered under this article;

(3) Attend hearings and trials and assist in securing and giving evidence and obtaining the attendance of witnesses; and

(4) Not, except at the covered person's own cost, voluntarily make any payment, assume any obligation, or incur any expense with respect to a claim or lawsuit without the consent of the city.

(Ord. No. 91-1611, § 1, 11-13-91)

Sec. 2-306. Subrogation.

If payment or legal representation is provided under this article, the city is subrogated to the covered person's rights of recovery against any person or organization to the extent of the city's liability and payments, and the covered person must execute and deliver to the city attorney whatever documents are necessary to secure those rights. The covered person shall not do anything after a loss to prejudice those rights.
(Ord. No. 91-1611, § 1, 11-13-91)

Sec. 2-307. No creation of cause of action.

Nothing contained in this article shall be construed as creating a right or cause of action against a covered person nor as giving a right to a third party to institute or maintain a suit which would not otherwise exist under law as a legal claim against a covered person.
(Ord. No. 91-1611, § 1, 11-13-91)

Secs. 2-308—2-315. Reserved.

ARTICLE XI. BOARDS, COMMISSIONS, AUTHORITIES, ETC.*

DIVISION 1. GENERALLY

Sec. 2-316. Residency requirements.

(a) No person shall be appointed to any board or commission of this city unless at the time of such appointment, and throughout the duration of such appointment, such person maintains his or her actual residence and domicile within the corporate limits of the city, except as follows:

(1) When otherwise specifically provided in any ordinance which designates the composition of a city board or commission.

(2) Full-time salaried employees of the city.

(3) Any person presently serving as a member of any board or commission of this city including the right of any such current board or commission member to be reappointed to such position without regard to the foregoing residency requirement.

(b) Any person who removes his actual residence or domicile from within the corporate limits of the city during the term of an appointment to any city board or commission shall automatically be disqualified from such appointment thereby making the appointment null and void so as to make the position theretofore held by any such person vacant effective simultaneously with such change in residency or domiciliary.
(Code 1968, § 2-38; Ord. No. 76-1402, § 1, 8-18-76)

Secs. 2-317—2-325. Reserved.

DIVISION 2. HOUSTON WOMEN'S COMMISSION

Sec. 2-326. Creation; purposes.

There is hereby created the Houston Women's Commission ("commission"). The commission shall be responsible for advising and making recommendations to the mayor, city council, and department directors on issues pertaining to the well-being and advancement of women and families. The mayor shall annually assign to the commission a topic of study and discussion, on which the commission shall report at least annually to the mayor and city council, and to council committees as requested. The subjects to be addressed by the commission shall include, but not be limited to:

(1) Developing programs to identify and address disparities in healthcare;

(2) Developing programs to address wage inequity and employment issues;

(3) Developing programs to identify and address safety and security issues across communities and industries;

*__Cross references—__Ambulance advisory committee, § 4-2; automotive board, § 8-17 et seq.; airport board of adjustments, ch. 9, art.VII et seq.; civil service commission, § 14-1; contracts compliance commission, § 15-19; ehtics commission, ch. 18, art. II et seq.; board of health, § 21-41 et seq.; Southwest Texas Hospital Financing Agency, § 21-61 et seq.; library board, § 24-25 et seq.; Houston Parks Board, § 32-201 et seq.; planning commission, § 33-14 et seq.; appeals board for news media identification, § 34-135; board of public trusts, § 36-20 et seq.; Houston Foundation, § 36-46 et seq.; Houston Clean City Commission, § 39-30 et seq.

(4) Developing community-based programs to enhance the quality of life for women in Houston;

(5) Developing programs to assist women and women's organizations in taking full advantage of federal, state and local funding opportunities; and

(6) Identifying areas in which gathering information through further study would benefit women in Houston.

(Ord. No. 2021-701, § 2, 8-25-2021)

Sec. 2-327. Appointment of members.

The commission shall consist of no less than 15 and no more than 25 regular members, to be appointed by the mayor and subject to confirmation by the city council, as specified in this section. These positions shall be numbered 1 through 25, though up to ten positions may be left vacant. The mayor shall designate the commission's chairperson from among the membership of the commission. The city attorney shall designate a representative from the legal department to render legal advice and attend commission meetings as requested by the commission's chairperson, but such person shall not be a member of the commission and shall not have a vote.

(Ord. No. 2021-701, § 2, 8-25-2021)

Sec. 2-328. Composition of commission; positions; terms of members.

(a) Twelve of the regular members of the commission shall be residents of the city or work within the city. The remaining membership positions need not be occupied by residents of the city, provided they reside in the Houston-Sugar Land-Baytown metropolitan statistical area, as defined by the Office of Management and Budget within the Executive Office of the President of the United States. The membership shall have an interest in issues affecting women and families and shall share a commitment to the goals of the commission.

(b) Members shall be broadly representative of the community at large with regard to race, ethnicity, age, socioeconomic status, LGBT+ status, religious affiliation, and economic sector.

(c) Members shall serve a four-year term of office and the terms of office for positions on the commission shall be as follows:

(1) The terms of members serving in odd-numbered positions shall expire on January 2, 2023 and every four years thereafter.

(2) The terms of members serving in even-numbered positions shall expire on January 2, 2025 and every four years thereafter.

(d) Any member serving in a position for which the term has expired shall continue to serve until the member's successor in that position is appointed, confirmed and qualified.

(e) The commission shall have four alternate member positions numbered 1 through 4. The persons appointed to three of the alternate positions shall be residents of the city; the remaining alternate position need not be occupied by a resident of the city, provided the appointee resides in the Houston-Sugar Land-Baytown metropolitan statistical area, as defined by the Office of Management and Budget within the Executive Office of the President of the United States. The persons appointed to the alternate positions shall serve for four-year terms. In the absence of a regular member from a commission meeting, a staff member of the Mayor's Office of Boards and Commissions may call an alternate member to attend a commission meeting. The alternate members shall be called for service on a rotating basis. When so called and serving, an alternate member shall have the same rights and responsibilities as a regular member.

(Ord. No. 2021-701, § 2, 8-25-2021)

Sec. 2-329. Meetings.

Regular commission meetings shall be held at least four times per year. The commission may establish for itself rules of order that are consistent with the City of Houston Code of Ordinances and not in conflict with state law. Special meetings may be held in accordance with commission rules. The commission shall elect a vice-chair at the first commission meeting and thereafter at the first meeting of each calendar year. A quorum of the members of the commission shall consist of not less than a majority of the members.

Neither the commission nor any member shall have power to take action except by authority of majority vote.
(Ord. No. 2021-701, § 2, 8-25-2021)

Sec. 2-330. Assistance by certain city departments.

The directors of the Mayor's Office on Human Trafficking and Domestic Violence, the Office of Business Opportunity, the police department, and the Houston Health Department and their staffs shall provide requested assistance to the commission. The director of the Mayor's Office of Boards and Commissions shall designate a city employee to maintain the records of the commission and serve as secretary to the committee.
(Ord. No. 2021-701, § 2, 8-25-2021)

Sec. 2-331. Compensation.

The members of the committee, in the performance of their duties as such, shall serve without compensation, provided that any member who is a city employee shall continue to receive regular compensation while serving on the committee.
(Ord. No. 2021-701, § 2, 8-25-2021)

Secs. 2-332—2-345. Reserved.

DIVISION 3. HOUSTON FOOD INSECURITY BOARD

Sec. 2-346. Creation; purposes.

There is hereby created the Houston Food Insecurity Board ("board"). The board shall be responsible for advising and making recommendations to the mayor, city council, and department directors to address issues pertaining to food insecurity that exist in the City of Houston. Annually, the mayor shall assign to the board a topic of study and discussion on which the board shall report at least annually to the mayor and city council, and to council committees as requested. The subjects to be addressed by the board shall include, but not be limited to:

(1) Reviewing and making recommendations regarding ways in which the resources and efforts currently devoted to address food insecurity can be best coordinated and implemented, and how those resources and efforts can be most effectively supplemented;

(2) Identifying and developing policy suggestions, modeled after other municipalities, that have shown to decrease food insecurity;

(3) Developing public and private partnerships to tackle aspects of food insecurity such as food deserts and food waste;

(4) Identifying and developing policy suggestions to help tackle the social determinants of food insecurity, such as programs that help ensure affordable housing or transportation for people facing food insecurity;

(5) Identifying federal, state, and local funding opportunities; and

(6) Identifying areas in which gathering information through further study would decrease food insecurity in Houston.

(Ord. No. 2021-995, § 2, 12-1-2021)

Sec. 2-347. Appointment of members.

The board shall consist of 19 regular members, to be appointed by the mayor and subject to confirmation by the city council, as specified in this section. These positions shall be numbered 1 through 19. The mayor shall designate the board's chairperson from among the membership of the board. The city attorney shall designate a representative from the legal department to render legal advice and attend board meetings as requested by the board's chairperson, but such person shall not be a member of the board and shall not have a vote.
(Ord. No. 2021-995, § 2, 12-1-2021)

Sec. 2-348. Composition of board; positions; terms of members.

(a) Ten of the regular members of the board shall be residents of the city. The remaining membership positions need not be occupied by the residents of the city, provided they reside in the greater Houston metropolitan area. The

membership shall have an interest in issues affecting food insecurity and shall share a commitment to the goals of the board.

(b) Members shall be broadly representative of the various sectors affected by, and/or working towards, a solution for food insecurity in Houston, such as the healthcare, agriculture, education, business, and nonprofit sectors.

(c) Members shall serve a two-year term of office. The terms of members shall expire on January 2, 2023, and every two years thereafter.

(d) Any member serving in a position for which the term has expired shall continue to serve until the member's successor in that position is appointed, confirmed, and qualified.
(Ord. No. 2021-995, § 2, 12-1-2021)

Sec. 2-349. Meetings.

Regular board meetings shall be held at least four times per year. The board may establish for itself rules of order that are consistent with the City of Houston Code of Ordinances and are not in conflict with state law. Special meetings may be held in accordance with board rules. The board shall elect a vice-chair at the first board meeting and thereafter at the first meeting of each calendar year. A quorum of the members of the board shall consist of not less than a majority of the members. Neither the board nor any member shall have power to take action except by authority of majority vote.
(Ord. No. 2021-995, § 2, 12-1-2021)

Sec. 2-350. Assistance by certain city departments.

The directors of the Mayor's Office of Boards and Commissions and the Houston Health Department and their staffs shall provide requested assistance to the board.
(Ord. No. 2021-995, § 2, 12-1-2021)

Sec. 2-351. Compensation.

The members of the committee, in the performance of their duties as such, shall serve without compensation, provided that any member who is a city employee shall continue to receive regular compensation while serving on the committee.
(Ord. No. 2021-995, § 2, 12-1-2021)

Secs. 2-352—2-359. Reserved.

DIVISION 4. HOUSTON CENTER FOR LITERACY*

Sec. 2-360. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except when the context clearly indicates a different meaning.

Literacy shall mean the ability to read, write, analyze, reason, and to use mathematics well enough to perform tasks basic to everyday life in an increasingly complex technological society.

Literacy service provider shall mean a nonprofit, tax-exempt organization providing low-cost or free literacy tutoring services for adults who are illiterate or marginally literate in the English language.
(Ord. No. 88-93, § 1, 1-20-88; Ord. No. 2012-71, § 2, 1-25-2012)

Sec. 2-361. Name; members.

The name of this organization shall be the Houston Center for Literacy hereinafter called the "center," which shall consist of 24 members.
(Ord. No. 88-93, § 1, 1-20-88; Ord. No. 92-423, § 1, 4-15-92; Ord. No. 2012-71, § 2, 1-25-2012)

Sec. 2-362. Composition; members.

(a) The members of the center shall be appointed to specific positions. Positions 1 through 17 shall be appointed by the mayor and confirmed by the city council. Positions 18 through 22 shall be appointed by the city council. Positions 23 and 24 shall be the directors of the libraries of the City of Houston and of Harris County and

*__Editor's note—__Ord. No. 2012-71, § 2, adopted January 25, 2012, amended the title of Division 4 to read as herein set out. Formerly, Division 4 was entitled Houston READ Commission.

shall be ex officio with full voting privileges. Additionally, the mayor shall serve as a non-voting ex officio member of the center. The composition is as follows:

(1) Positions 1 and 2 shall be held respectively by the Superintendent of the Houston Independent School District, or the superintendent's high-ranking designated representative and by the President of the Houston Community College System, or the president's high-ranking designated representative.

(2) Positions 3, 4, 5, 6, 7, 8, 9, 10, 11, and 12 shall be held by members of the business sector in the city.

(3) Position 13 shall be held by a representative of higher education in the city.

(4) Positions 14 and 15 shall be held by representatives of the media or the communications industry in the city.

(5) Positions 16 and 17 shall be held by representatives of literacy service providers in the city nominated by the mayor's coalition for literacy.

(6) Positions 18, 19, 20, 21, and 22 shall be held by interested residents of the city.

(7) Positions 23 and 24 shall be held by library directors as provided in section 2-362(a).

(b) One organization shall not be represented on the center more than once at any one time; however, employment by or membership in an organization by a person shall not of itself be a deciding factor regarding the prohibition. The decision of the city council in this matter shall be final.

(c) No person shall serve more than two consecutive terms on the center.

(d) The terms of office for positions on the center shall be as follows:

(1) Positions 1 and 2 shall have no set term unless filled by a designated representative, in which case the terms shall expire on January 1, 2014, and on the same date on each third successive year thereafter.

(2) The terms of office for Positions 3, 6, 9, 12, 15, 18, and 21 shall expire on January 1, 2014, and on the same date in each third successive year thereafter.

(3) The terms of office for Positions 4, 7, 10, 13, 16, 19, and 22 shall expire on January 1, 2015, and on the same date in each third successive year thereafter.

(4) The terms of office for Positions 5, 8, 11, 14, and 17, and 20 shall expire on January 1, 2013, and on the same date in each third successive year thereafter.

(e) Any member serving in a position for which the term has expired shall continue to serve until the member's successor in that position is appointed and confirmed.

(f) By majority vote of a quorum of its members, the center may designate persons to serve one-year terms as honorary or ex-officio members of the center. Persons so designated shall not be members of the center, and they shall not have a vote.

(g) Positions 1, 2, 4, 5, 7, 12, 15, 23 and 24 shall be exempt from the residency requirements of section 2-316(a) of this Code, provided those positions are occupied by persons working or having a business within the corporate limits.
(Ord. No. 88-93, § 1, 1-20-88; Ord. No. 89-395, § 1, 3-22-89; Ord. No. 92-423, § 2, 4-15-92; Ord. No. 93-58, § 1, 1-20-93; Ord. No. 2012-71, § 2, 1-25-2012)

Sec. 2-363. Mayor's coalition for literacy.

There is hereby established the mayor's coalition for literacy. The sole purposes of this coalition are to provide a forum where literacy service providers in the city can meet to discuss needs of the members and the literacy needs of the city, to make recommendations to the mayor and the

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center on such matters, and to nominate and submit to the mayor at least three months before each term expires a list of at least five candidates from which the mayor will appoint persons to fill Positions 16 and 17 on the center. Membership on the coalition is open to all literary service providers in the city. If the coalition fails to nominate and submit a list of candidates in a timely fashion, the mayor shall select the persons to be appointed, section 2-362(a)(5) of this Code notwithstanding.
(Ord. No. 88-93, § 1, 1-20-88; Ord. No. 2012-71, § 2, 1-25-2012)

Sec. 2-364. Assistance by certain city departments.

The Directors of the Houston Public Library System, the Houston Health Department, and the departments of planning and development finance, and administration and regulatory affairs and their staffs shall provide requested assistance to the center. The city attorney and his staff shall provide legal services and representation to the center.
(Ord. No. 88-93, § 1, 1-20-88; Ord. No. 08-52, § 4, 1-16-08, eff. 1-26-08; Ord. No. 2012-71, § 2, 1-25-2012; Ord. No. 2015-820, § 3, 8-26-2015)

Sec. 2-365. Compensation of members; conflicts of interest.

Members of the center shall serve without compensation from the city or any firm, trust, donation or legacy to or on behalf of the city; provided, however, that the center may appropriate and disburse sufficient funds in its control to pay the expenses of administering its duties, and provided further that a member of the center or the firm, company or corporation with whom the member is associated shall not be precluded from receiving compensation from the city under any contract for services rendered which has no relation to the member's duties as a member of the center. Members of the center shall abstain from voting upon matters in which they have or may have a conflict of interest, and officers and members of the center shall not participate in any activity of the corporation in which they have or may have a conflict of interest.
(Ord. No. 88-93, § 1, 1-20-88; Ord. No. 2012-71, § 2, 1-25-2012)

Sec. 2-366. Organization.

The center shall organize by electing from their membership a chairperson, a vice chairperson, and a secretary, each of whom shall hold office for one year or until their successors shall have been elected and qualified. No officer shall serve more than two consecutive terms in the same office, and no person shall serve more than four consecutive years as an officer. The center may adopt such administrative procedures as are necessary or convenient to accomplish the purposes set out in this division. The center may employ an executive director and necessary staff, at salaries set by the center. The executive director and the staff of the center shall not be considered employees of the city for any purposes and shall not be entitled to any of the privileges or benefits of the city's employees.
(Ord. No. 88-93, § 1, 1-20-88; Ord. No. 89-395, § 2, 3-22-89; Ord. No. 2012-71, § 2, 1-25-2012)

Sec. 2-367. Purposes.

The purposes of the center shall be to:

(1) Receive and maintain real or personal property, or both, and to use and apply the income therefrom and the principal thereof exclusively for charitable, scientific, literary and educational purposes;

(2) Solicit funds, gifts, and bequests for literacy providers and literacy activities in the city and manage and invest such funds, gifts, and bequests donated to the center, including but not limited to, the purchase or sale of real or personal property and investments in bonds, notes, common stocks, and securities of any kind;

(3) Review and make advisory recommendations to the mayor and city council on proposed literacy projects to be paid for by city funds;

(4) Bring to the attention of Houston residents the extent and ramifications of functional illiteracy in the city;

(5) Recruit and screen volunteers and students, direct them to organizations that offer literacy services, and monitor their progress;

(6) Find organizations, facilities and resources to help promote literacy;

(7) Encourage and expand new approaches and programs to promote literacy;

(8) Prevent the perpetuation of functional illiteracy, particularly through family or intergenerational literacy programs;

(9) Work toward creation of a literate work force in Houston as the foundation of a strong economy;

(10) Assist in enriching the lives of Houstonians and enable them to reach their full potential by helping them become literate;

(11) Formulate and submit to the mayor and city council in December of each year a report on literacy projects using funds and assets held by the center or for its benefit in trust accounts, or invested by the center. A one-month extension of time for submission of the report may be given by the mayor;

(12) Offer technical assistance and training to individuals and organizations to increase and improve literacy services;

(13) Establish pilot or demonstration programs needed to fill gaps in the literacy service delivery system, particularly for underserved and at-risk groups; and

(14) Collect learner data from literacy service providers throughout Houston to show the need for, and current use of, such agencies in Houston.

(Ord. No. 88-93, § 1, 1-20-88; Ord. No. 89-395, § 3-6, 3-22-89; Ord. No. 2012-71, § 2, 1-25-2012)

Sec. 2-368. Additional powers.

(a) The center may cooperate with any trust created for a purpose similar to that of the center as set out in section 2-367 of this Code. In addition, the center may contract for financial management and investment services and may pay the reasonable fees therefor from solicited funds, gifts, bequests, and income therefrom; provided, the center shall exclude therefrom any solicited funds, gifts, or bequests when payment of a financial management and investment service fee would be contrary to the provisions of the grant.

(b) The center may exercise its sole discretion in the application for literacy purposes of funds received from any trust created specifically for the benefit of the center when such trust specifically grants such sole authority to the center and from funds donated directly to the center; provided, expenditure of funds shall be in compliance with the applicable competitive bid laws of the state and the Charter of the city.

(Ord. No. 88-93, § 1, 1-20-88; Ord. No. 2012-71, § 2, 1-25-2012)

Sec. 2-369. Financial records.

The financial books and records of the center shall be open to inspection and audit during regular business hours by any authorized representative of the city, by independent certified public accountants employed by the city, or by members of the public in accordance with the Texas Public Information Act. Similarly, the financial books and records of any trust created for the benefit of or to cooperate with the center shall be open to such inspection and audit.

(Ord. No. 88-93, § 1, 1-20-88; Ord. No. 2012-71, § 2, 1-25-2012)

Sec. 2-370. Annual financial report.

The center shall file an annual audited financial statement meeting the requirements set forth by the director of finance.

(Ord. No. 88-93, § 1, 1-20-88; Ord. No. 2012-71, § 2, 1-25-2012)

Sec. 2-371. Fidelity bond.

The city shall maintain a blanket fidelity bond for the center members.

(Ord. No. 88-93, § 1, 1-20-88; Ord. No. 2012-71, § 2, 1-25-2012)

Sec. 2-372. Meetings.

Regular center meetings shall be held at least four times a year. In addition, special meetings may be held in accordance with such rules as the center may provide. All meetings of the center

shall be held in accordance with the Texas Open Meetings Act. A quorum of the members of the center shall consist of a majority of the center's members.
(Ord. No. 88-93, § 1, 1-20-88; Ord. No. 94-1370, § 2, 12-21-94; Ord. No. 2012-71, § 2, 1-25-2012)

Sec. 2-373. Removal of members.

Center members may be removed by the city council for the followings causes:

(1) Four consecutive absences from regular meetings of the center;

(2) Failure to abstain in votes or activities of the center, where direct or indirect conflicts of interest are or may be involved; or

(3) Conduct, whether or not resulting in a conviction, which impairs the ability of the member to carry out his or her center duties.

(Ord. No. 88-93, § 1, 1-20-88; Ord. No. 2012-71, § 2, 1-25-2012)

Sec. 2-374. Articles of incorporation.

The city council hereby approves the form and substance of the restated articles of incorporation of the Houston Center for Literacy, under the Texas Business Organizations Code. A copy of said articles of incorporation and any amendments thereto, and the center's bylaws and any amendments thereto, shall be maintained in the office of the city secretary. In the event of the dissolution of this corporation, the city shall succeed to the funds and assets of the corporation except to the extent that this may conflict with the conditions of a particular donation to the corporation.
(Ord. No. 88-93, § 1, 1-20-88; Ord. No. 2012-71, § 2, 1-25-2012)

Secs. 2-375—2-379. Reserved.

DIVISION 5. HOUSTON COMMISSION ON DISABILITIES

Sec. 2-380. Definitions.

The following words, terms, and phrases, when used in this division, shall have the meanings ascribed to them in this section, except when the context clearly indicates a different meaning:

Commission shall mean the Houston Commission on Disabilities.

Disability shall mean, with respect to an individual, a physical or mental impairment that substantially limits one or more of the life activities of such individual; a record (or past history) of such an impairment; or being regarded as having such an impairment. For purposes of this division, the term disability shall not include an individual who is currently engaging in the illegal use of drugs. The definition of disability in this ordinance shall be construed in favor of broad representation of individuals by this commission, to the maximum extent permitted by the terms of this division.

Major life activities shall mean, but are not limited to functions such as caring for oneself, performing manual tasks, seeing, hearing, eating, sleeping, walking, standing, lifting, bending, speaking, breathing, learning, reading, concentrating, thinking, communicating, interacting with others, and working. Major life activities can also include the operation of a major bodily function, including functions of the immune system, special sense organs and skin; normal cell growth; and digestive, genitourinary, bowel, bladder, neurological, brain, respiratory, circulatory, cardiovascular, endocrine, hemic, lymphatic, musculoskeletal, and reproductive functions. The operation of a major bodily function includes the operation of an individual organ within a body system.

Has a record of such an impairment shall mean has a history of, or has been misclassified as having, a mental or physical impairment that substantially limits one or more major life activities.

Is regarded as having an impairment shall mean:

(1) Has a physical or mental impairment that does not substantially limit major life activities but that is treated by a public entity as constituting such a limitation;

(2) Has a physical or mental impairment that substantially limits major life activities only as a result of the attitudes of others toward such impairment; or

(3) Has none of the impairments defined in paragraph (1) of this definition but is treated by a public entity as having such an impairment.

(Ord. No. 93-956, § 1, 8-18-93; Ord. No. 2022-386, § 2, 5-18-2022)

Sec. 2-381. Creation; appointment of members.

There is hereby created the Houston Commission on Disabilities that shall consist of 14 regular members, to be appointed by the mayor and subject to confirmation by the city council, as specified in this section. The mayor shall designate the commission's chairperson from among the membership of the commission. The individual designated by the mayor to head the mayor's office on disabilities shall be a non-voting ex-officio member. The person who is designated as the Americans with Disabilities coordinator, human resources department, shall also be a non-voting ex-officio member. The city attorney shall designate a representative from the legal department to render legal advice, but such person shall not be a member of the commission and shall not have a vote.

(Ord. No. 93-956, § 1, 8-18-93; Ord. No. 2011-320, § 2, 5-4-2011; Ord. No. 2022-386, § 2, 5-18-2022)

Sec. 2-382. Composition of commission; positions; terms of members.

(a) The membership shall have an interest in the community of disabled persons and shall share a commitment to the goals of the commission.

Members shall be broadly representative of the disabled community at large as the term "disability" is defined herein, without dominance by any single disability group.

(b) The members of the commission shall be appointed to specific positions. The composition is as follows:

(1) Positions 1 through 9 shall be held by persons with disabilities who are residents of the city.

(2) Positions 10 through 14 shall be held by persons who represent persons with disabilities or have an interest in the rights of persons with disabilities and who are known in the community as advocates for persons with disabilities. The members in these positions may be, but need not be, disabled. Positions 10 through 14 need not be occupied by residents of the city, provided they reside in the greater Houston-The Woodlands-Sugar Land census statistical area.

(c) Except as provided in subsection (e) below, no regular member shall serve more than two consecutive full terms on the commission.

(d) Members shall serve a four-year term of office and the terms of office for positions on the commission shall be as follows:

(1) The terms of members serving in odd-numbered positions shall expire on July 26, 2024 and every four years thereafter.

(2) The terms of members serving in even-numbered positions shall expire on July 26, 2022 and every four years thereafter.

(e) Any member serving in a position for which the term has expired shall continue to serve until the member's successor in that position is appointed, confirmed and qualified.

(Ord. No. 93-956, § 1, 8-18-93; Ord. No. 98-504, § 1, 6-24-98; Ord. No. 2022-386, § 2, 5-18-2022)

Sec. 2-383. Meetings.

Regular commission meetings shall be held at least six times a year. In addition, special meetings may be held in accordance with such rules

as the commission may provide. A quorum of the members of the commission shall consist of not less than a majority of the members.
(Ord. No. 93-956, § 1, 8-18-93; Ord. No. 2022-386, § 2, 5-18-2022)

Sec. 2-384. Removal of members.

Commissioners may be removed by the mayor for any of the following causes:

(1) Three absences from regular meetings of the commission during any 12-month period;

(2) Failure to abstain in votes or activities of the commission where direct or indirect pecuniary conflicts of interest are or may be involved; or

(3) Conduct, whether or not resulting in a conviction, that impairs or interferes with the ability of the member to carry out his or her commission duties.

(4) Failure of a member to comply with city ordinances and commission rules.

(Ord. No. 93-956, § 1, 8-18-93; Ord. No. 2022-386, § 2, 5-18-2022)

Sec. 2-385. Assistance by certain city departments.

The directors of the departments of public works, planning and development, general services, parks and recreation, housing and community development, information technology, human resources, and the Houston Health Department and their staffs shall provide requested assistance to the commission. The city attorney and staff shall provide legal services and representation to the commission.
(Ord. No. 93-956, § 1, 8-18-93; Ord. No. 98-613, § 12, 8-5-98; Ord. No. 99-378, § 4, 4-21-99; Ord. No. 07-840, § 4, 7-18-07; Ord. No. 2011-320, § 3, 5-4-2011; Ord. No. 2015-820, § 4, 8-26-2015; Ord. No. 2018-11, § 6, 1-10-2018; Ord. No. 2022-386, § 2, 5-18-2022)

Sec. 2-386. Compensation of members; conflicts of interest.

Members of the commission shall serve without compensation from the city or any firm, trust, donation or legacy to or on behalf of the city. A member of the commission is a "city official" as that term is defined in chapter 18 of this Code. The member shall abstain from voting upon matters in which there is or may be a conflict of interest, shall not participate in any activity of the commission in which there is or may be a conflict of interest, and shall not participate in any city contract that relates to the duties of the commission.
(Ord. No. 93-956, § 1, 8-18-93; Ord. No. 2022-386, § 2, 5-18-2022)

Sec. 2-387. Purposes.

The commission shall be responsible for advising and making recommendations to the mayor, city council, department directors and the individual designated by the mayor to head the mayor's office on disabilities on issues pertaining to the full spectrum of needs, rights, and privileges of people with disabilities. The subjects to be addressed by the commission shall include, but not be limited to:

(1) Developing programs to provide employment opportunities for people with disabilities;

(2) Developing programs and policy recommendations to address physical and digital accessibility barriers in the city;

(3) Developing community-based programs to enhance the quality of life for Houstonians with disabilities;

(4) Developing programs to address the issues pertaining to alcoholism and drug abuse;

(5) Developing programs to take full advantage of all federal, state and local funding opportunities to improve access for and promote awareness of people with disabilities;

(6) Developing programs and policy recommendations to insure accessible housing, infrastructure, educational, cultural, and transportation opportunities for people with disabilities; and

(7) Developing programs and policy recommendations to insure effective communication for people with disabilities.

(Ord. No. 93-956, § 1, 8-18-93; Ord. No. 2022-386, § 2, 5-18-2022)

Sec. 2-388. Mayor's Office on Disabilities.

There is hereby established a Mayor's Office on Disabilities, a division of the department of public works.

(Ord. No. 93-956, § 1, 8-18-93; Ord. No. 2011-697, § 3, 8-10-2011; Ord. No. 2022-386, § 2, 5-18-2022)

Sec. 2-389. Purpose.

The mayor's office on disabilities shall provide support for initiatives of the commission and shall serve as liaison between the mayor, city council, city departments, and other public and private entities on matters pertaining to people with disabilities in the greater Houston-The Woodlands-Sugar Land census statistical area.

(Ord. No. 93-956, § 1, 8-18-93; Ord. No. 2022-386, § 2, 5-18-2022)

Sec. 2-390. Duties of Mayor's Office on Disabilities.

The Mayor's Office on Disabilities shall perform various duties, including, but not limited to, the following:

(1) Assist in developing, coordinating and formulating policies and legislation relating to all people with disabilities, and assist in overseeing the implementation of programs consistent with such policies and legislation;

(2) Act as a public advocate for the rights and needs of all people with disabilities;

(3) Assist in coordination of compliance with all federal, state and city laws impacting people with disabilities;

(4) Oversee the implementation of the Americans with Disabilities Act Transition Plan and make any necessary updates at least every three years;

(5) Assist in analyzing existing programs for people with disabilities, and in developing and promoting additional programs for people with disabilities;

(6) Develop and implement programs to take full advantage of all federal, state and local funding opportunities to improve access for and promote awareness of people with disabilities;

(7) Assist in maintaining demographic and statistical data regarding people with disabilities;

(8) Assist and educate individuals and entities in the public and private sectors regarding the implementation of the Americans With Disabilities Act; and

(9) Provide information to assist in planning and prioritizing allocations for enhancing city programs, services, activities, and city-owned or leased facilities for people with disabilities.

(Ord. No. 93-956, § 1, 8-18-93; Ord. No. 2011-697, § 4, 8-10-2011; Ord. No. 2022-386, § 2, 5-18-2022)

Sec. 2-390. Reserved.

DIVISION 6. HOUSTON MUSIC ADVISORY BOARD

Sec. 2-391. Creation; purposes.

There is hereby created the Houston Music Advisory Board ("board"). The board shall be responsible for advising and making recommendations to the mayor, city council, and department directors on issues pertaining to economic development of the local music industry. The subjects to be addressed by the board shall include, but not be limited to:

(1) Determining the top challenges and opportunities facing the music industry in the city;

(2) Developing policy recommendations for support of the music industry and musicians;

(3) Developing recurring annual event programs and workshops on a volunteer basis and in coordination with the Mayor's Office of Cultural Affairs;

(4) Publicizing the opportunity to register in the Houston Music Directory;

(5) Assisting the Mayor's Office of Cultural Affairs in planning, implementing, and participating in activities concerning the music industry in the city; and

(6) Making recommendations to the Mayor's Office of Cultural Affairs concerning areas of opportunity in the local music industry and strategies for developing the local music industry.

(Ord. No. 2022-694, § 2, 9-14-2022)

Sec. 2-392. Appointment of members.

The board shall consist of nine regular members, to be appointed by the mayor, and subject to confirmation by the city council. These positions shall be numbered 1 through 9.
(Ord. No. 2022-694, § 2, 9-14-2022)

Sec. 2-393. Composition of board; positions; terms of members.

(a) The membership shall represent the diversity, interests, and expertise of the local community and music industry. Members shall be broadly representative of the local music industry with regard to race, ethnicity, age, socioeconomic status, LGBT status, religious affiliation, music genre or practice, and economic sector. Members shall possess knowledge and understanding of the city's diverse music community. Members shall be active stakeholders in the local music industry.

(b) Members shall serve a two-year term of office and the terms of office for positions on the board shall be as follows:

(1) The terms of office for the initial members serving in odd-numbered positions shall expire on January 2, 2025; subsequently, terms shall expire every two years thereafter.

(2) The terms of office for initial members serving in even-numbered positions shall expire on January 2, 2024; subsequently, terms shall expire every two years thereafter,

(c) Any member serving in a position for which the term has expired shall continue to serve until the members successor in that position is appointed, confirmed and qualified.

(d) The board shall have three alternate member positions numbered 1 through 3 that shall serve terms of the same duration and expiration dates as regular members. In the absence of a regular member from a board meeting, a staff member of the Mayor's Office of Boards and Commissions may call an alternate member to attend a board meeting. The alternate members shall be called for service on a rotating basis. When so called and serving, an alternate member shall have the same rights and / as a regular member.
(Ord. No. 2022-694, § 2, 9-14-2022)

Sec. 2-394. Meetings.

Regular board meetings shall, be held at least three times per year. The board may establish for itself rules of order that are consistent with this Code and not in conflict with state Special meetings may be held in accordance with board rules. The board shall elect a chair and vice-chair at the first board meeting and thereafter at the first meeting of each calendar year. The board shall elect a secretary, who may or may not be a member of the board, at the first meeting of each calendar year. Such secretary shall keep the minutes of the board and perform other such services as may be required by the board. Five members of the board present at any meeting shall constitute a quorum for the transaction of all business of the board, and a majority vote of those members of the board present at any meeting shall prevail. Neither the board nor any member shall have power to take action except by authority of majority vote.
(Ord. No. 2022-694, § 2, 9-14-2022)

Sec. 2-395. Removal of members.

Members may be removed by the mayor for any of the following causes:

(1) Three absences from regular meetings of the board during any 12-month period;

(2) Failure to abstain in votes or activities of the board where direct or indirect pecuniary conflicts of interest are or may be involved;

(3) Conduct, whether or not resulting in a conviction, that impairs or interferes with the ability of the member to carry out his or her board duties; or

(4) Failure of a member to comply with city ordinances and board

(Ord. No. 2022-694, § 2, 9-14-2022)

Sec. 2-396. Assistance by certain city departments.

The director of the mayor's office of cultural affairs and the director's staff shall provide requested assistance to the board.
(Ord. No. 2022-694, § 2, 9-14-2022)

Sec. 2-397. Compensation.

Members of the board shall serve without compensation from the city or any firm, trust, donation or legacy to or on behalf of the city. A member of the board is a 'city official' as that term is defined in chapter 18 of this Code. The member shall abstain from voting upon matters in which there is or may be a conflict of interest, shall not participate in any activity of the board in which there is or may be a conflict of interest, and shall not participate in any city contract that relates to the duties of the board.
(Ord. No. 2022-694, § 2, 9-14-2022)

Secs. 2-398—2-402. Reserved.

DIVISION 7. RACING EVENTS COMMISSION

Sec. 2-403. Commission created; makeup.

(a) There is hereby created the racing events commission, which shall have eleven regular members who shall be appointed by the mayor and confirmed by the city council.

(b) The regular membership positions shall be numbered one through eleven. Members shall serve a two-year term of office and shall continue in office until their successors are appointed and qualified. The terms for members in even-numbered positions shall commence on January 1 of each even-numbered year and end on December 31 of the following odd-numbered year. The terms for members in odd-numbered positions shall commence on January 1 of each odd-numbered year and end on December 31 of the following even-numbered year.

(c) In addition to the eleven regular members, the director of the convention and entertainment facilities department shall serve as an ex officio, non-voting member and shall act as the secretary for the commission.

(d) The mayor may remove members of the commission for any cause. Any vacancy shall be filed in the manner provided above, but for the unexpired portion of the term of the vacant position.

(e) The mayor shall designate one of the commission members to act as the chair. At their first meeting of each year, the commission members shall elect a vice chair, who may perform the duties of the chair in case of the chair's absence or inability to function.

(f) Five regular members of the commission shall constitute a quorum for the purpose of transacting business.

(g) The commission shall meet from time to time at the call of the chair.

(h) The provisions of section 2-316 of this Code shall not be applicable to the commission.
(Ord. No. 97-1055, § 3, 9-3-97; Ord. No. 97-1626, § 1, 12-23-97)

Sec. 2-404. Mission.

The commission shall serve in an advisory-only capacity to the city and to event promoters with respect to the conduct of "special racing

events" as that term is defined in section 40-312 of this Code. Responsibilities of the commission shall include:

(1) Recommendations to the city and to event promoters with respect to the marketing of special racing events that are scheduled to be conducted within the city.

(2) Recommendations to city officials with respect to the promotion of the city as a venue for special racing events.

(3) Other assistance as may be requested by the director of the convention and entertainment facilities department.

(Ord. No. 97-1055, § 3, 9-3-97)

Sec. 2-405. Reserved.

DIVISION 8. HOUSTON COMPLETE COMMUNITIES ADVISORY BOARD*

Sec. 2-406. Creation; purposes.

There is hereby created the Houston Complete Communities Advisory Board ('board'). The board shall serve as a communication conduit between the residents and community stakeholders in Houston's most under-resourced and under-served neighborhoods included in the City of Houston Complete Communities Program and shall assist the Mayor's Office of Complete Communities, Department of Neighborhoods, and the Planning & Development Department to create and maintain effective and transparent dialog concerning projects, programs, and access to services for residents and businesses in neighborhoods in the city's Complete Communities Initiative. The subjects to be addressed by the board shall include, but not be limited to:

(1) Assisting the Mayor's Office of Complete Communities, Department of Neighborhoods, and the Planning & Development Department in developing and implementing Complete Communities Action Plans;

(2) Identifying and recommending projects, programs, and services that address the needs of residents and businesses in neighborhoods included in the city's Complete Communities Initiative; and

(3) Applying resident-representatives' lived experiences to the development of recommendations and suggestions that address historic inequities in Houston that contribute to present-day disparities.

(Ord. No. 2023-1130, § 2, 12-13-2023)

Sec. 2-407. Appointment of members.

(a) The board shall consist of one resident-representative from each of Houston's most under-resourced and under-served neighborhoods included in the city's complete communities program. Each district council member whose district includes any part of a neighborhood included in the city's complete communities program shall nominate a person to serve on the board. All board member nominations shall be subject to confirmation by the city council.

(b) The mayor shall designate the board's chairperson from among the membership of the board.

(Ord. No. 2023-1130, § 2, 12-13-2023)

Sec. 2-408. Composition of board; positions; terms of members.

(a) The board's membership shall represent the diversity and interests of Houston's most under-resourced and under-served neighborhoods in the Complete Communities Program. Members shall be broadly representative of the community at large with regard to race, ethnicity, age, educational attainment, socioeconomic status, LGBTQ+ status, religious affiliation, and economic sector.

(b) Members shall serve a two-year term of office and the terms of office for positions on the board shall be as follows:

(1) The terms of office for the initial members serving in odd-numbered positions shall expire on December 31, 2025; subsequently, terms shall expire every two years thereafter.

(2) The terms of office for initial members serving in even-numbered positions shall

*__Cross reference—__City council appointments, § 2-2, Rule 19.

expire on December 31, 2024; subsequently, terms shall expire every two years thereafter.

(c) Any member serving in a position for which the term has expired shall continue to serve until the member's successor in that position is appointed, confirmed and qualified.

(Ord. No. 2023-1130, § 2, 12-13-2023)

Sec. 2-409. Meetings.

Regular board meetings shall be held at least three times per year. The board may establish for itself rules of order that are consistent with this Code and not in conflict with state law. Special meetings may be held in accordance with board rules. The board shall elect a vice-chair and secretary at the first board meeting and thereafter at the first meeting of each calendar year. The board secretary, who may or may not be a member of the board, shall keep the minutes of the board and perform other such services as may be required by the board. A majority of the board members present at any meeting shall constitute a quorum for the transaction of all business of the board, and a majority vote of those members of the board present at any meeting shall prevail. Neither the board nor any member shall have power to take action except by authority of majority vote.

(Ord. No. 2023-1130, § 2, 12-13-2023)

Sec. 2-410. Removal of members.

Members may be removed by the mayor for any of the following causes:

(1) Three absences from regular meetings of the board during any 12-month period;

(2) Failure to abstain from votes or activities of the board where direct or indirect pecuniary conflicts of interest are or may be involved;

(3) Conduct, whether or not resulting in a conviction, that impairs or interferes with the ability of the member to carry out his or her board duties; or

(4) Failure of a member to comply with city ordinances and board rules.

(Ord. No. 2023-1130, § 2, 12-13-2023)

Sec. 2-410.1. Assistance by certain city departments.

The director of the Mayor's Office of Complete Communities and the director's staff shall provide requested assistance to the board.

(Ord. No. 2023-1130, § 2, 12-13-2023)

Sec. 2-410.2. Compensation.

Members of the board shall serve without compensation from the city or any firm, trust, donation or legacy to or on behalf of the city. A member of the board is a 'city official' as that term is defined in chapter 18 of this Code. The member shall abstain from voting upon matters in which there is or may be a conflict of interest, shall not participate in any activity of the board in which there is or may be a conflict of interest, and shall not participate in any city contract that relates to the duties of the board.

(Ord. No. 2023-1130, § 2, 12-13-2023)

ARTICLE XII. SECURITY

Sec. 2-411. Definitions.

As used in this article, the following terms shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

City premises means a property or portion of a property that is owned by the city or is in the possession of the city by a lease or other right and is regularly maintained or occupied by employees of the city and utilized for the conducting of business of the city.

Secure area means any area upon any city premises to which access is controlled by a security system or security post.

Security post means any location on city premises that is manned by any contract security officer, certified peace officer or city security personnel.

Security system means magnetometers, X-ray devices, card-operated entry systems, camera surveillance systems, operating regulations and related measures, or any combination thereof, that may be installed, promulgated and operated upon any city premises to ensure that persons entering a secure area do not have weapons in their possession.

Security official means the director of the general services department or such individual as the said director may designate as the official primarily responsible for the administration and enforcement of this article.

Weapon means a firearm, explosive device, club, knife or other offensive or defensive instrument as more particularly defined by regulation of the mayor under this article.
(Ord. No. 95-1200, § 3, 11-15-95; Ord. No. 09-15, § 2, 1-14-09)

Sec. 2-412. Article cumulative.

The provisions of this article are cumulative of all state and federal laws and other ordinances, civil service rules and regulations of the city. Without limitation of the foregoing, the provisions of this article shall not be applicable to the airport security systems established under applicable federal laws and regulations or to the municipal courts security systems established under chapter 16 of this Code, nor shall the provisions of this article be construed to limit more restrictive provisions with respect to the possession of weapons by city employees.
(Ord. No. 95-1200, § 3, 11-15-95; Ord. No. 09-15, § 2, 1-14-09)

Sec. 2-413. Regulations for security system.

Consistent with applicable state and federal laws, the mayor may promulgate regulations relating to establishment of secure areas and the installation and operation of security systems.
(Ord. No. 95-1200, § 3, 11-15-95; Ord. No. 09-15, § 2, 1-14-09)

Sec. 2-414. Entry into secure areas.

It shall be unlawful for any person to enter or attempt to enter a secure area without fully complying with the applicable provisions of the security system or security post.
(Ord. No. 95-1200, § 3, 11-15-95; Ord. No. 09-15, § 2, 1-14-09)

Sec. 2-415. Weapons on city premises.

(a) The mayor is authorized to establish regulations consistent with applicable state and federal laws relating to the possession of certain weapons upon city premises.

(b) Signage consistent with applicable state and federal laws to advise persons of Texas Penal Code provisions relating to the possession of certain weapons on specified city premises may be posted upon those city premises, and copies of such provisions made available for inspection upon each premises to which they pertain and in the office of the city secretary.

(c) Compliance with regulations promulgated under this section is a condition of the entry upon and use of each premises to which they are applicable.

(d) All employees and contract security personnel of the city are authorized for and on behalf of the city to notify any person who fails to comply with any regulation promulgated under this section to depart from the applicable city premises.

(e) Any person who enters or remains on city premises after written notice not to enter or verbal notice to depart as required by section 30.05 of the Texas Penal Code shall be subject to prosecution under section 30.05 of the Texas Penal Code for criminal trespass in addition to prosecution for any other crime that he may have committed.

(f) Any person who carries a prohibited weapon, including a handgun licensed under subchapter H, chapter 411 of the Texas Government Code, on city premises prohibited by sections 46.03 and 46.035 of the Texas Penal Code shall be subject to prosecution under sections and 46.03 and 46.035(c) of the Texas Penal Code.
(Ord. No. 95-1200, § 3, 11-15-95; Ord. No. 09-15, § 2, 1-14-09)

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Sec. 2-416. Counterfeiting, imitating, or altering city identification badges

It is unlawful for any person to counterfeit, imitate, alter or attempt to counterfeit, imitate, or alter a city identification badge issued or approved by the security official.
(Ord. No. 09-15, § 2, 1-14-09)

Sec. 2-417. Unlawful use of expired or deactivated city identification badges.

It is unlawful for any person to use or attempt to use an expired or deactivated city identification badge for the purpose of entering city premises.
(Ord. No. 09-15, § 2, 1-14-09)

Sec. 2-418. Unlawful use of city identification badge by others.

(a) It is unlawful for an authorized holder of a city identification badge to permit anyone else to use the authorized holder's badge for any purpose, including entry onto city premises and into secured areas.

(b) It is unlawful for any person other than the authorized holder to use a city identification badge issued to an authorized holder for any purpose including entry onto city premises and into secured areas.
(Ord. No. 09-15, § 2, 1-14-09)

Sec. 2-419. Penalty.

Any person who violates any provision of this article shall, upon conviction, be fined an amount not less than $100.00, nor more than $500.00. Each day that any such violation continues shall constitute and be punishable as a separate offense.
(Ord. No. 09-15, § 2, 1-14-09)

Secs. 2-420—2-430. Reserved.

ARTICLE XIII. GENERAL SERVICES DEPARTMENT*

Sec. 2-431. Department created.

There is hereby created the general services department of the city.
(Ord. No. 99-378, § 5, 4-21-99; Ord. No. 07-840, § 6, 7-18-07)

Sec. 2-432. Office of the director.

There is hereby created the office of director of the general services department.
(Ord. No. 99-378, § 5, 4-21-99; Ord. No. 07-840, § 6, 7-18-07)

Sec. 2-433. Professional services.

(a) To the extent that any of the duties and responsibilities assigned to the department are of a nature requiring that they be performed by or under the oversight of a person who holds a registration or license as an engineer, architect, electrician, plumber, stationary engineer or other profession or trade, the director shall ensure that the services are performed in compliance with applicable registration and licensing laws and by or under the supervision of a person who holds the required registration or license.

(b) Nothing in this section shall be construed to require that the director hold any particular registration or license, and the director may employ persons who hold the required registration or license to perform and oversee the functions for which a registration or license is required.
(Ord. No. 99-378, § 5, 4-21-99)

Sec. 2-434. Functions.

The department shall:

(1) Be responsible for construction and remodeling of city buildings, including management and provision of in-house and contract services for design of projects, construction bidding, construction contract

*__Editor's note—__Ord. No. 07-840, § 5, adopted July 18, 2007, amended the title of Ch. 2, Art. XIII, to read as herein set out. Formerly said article was entitled building services department.

management, construction-related testing services and construction-related environmental services;

(2) Perform facilities management services including review of requirements for space in city buildings, negotiations of city building space leases, whether the city is the lessor or the lessee, assignment of space in city buildings, development of office size and furnishing standards, management of furnishings installations and office moves and related services whether performed directly by the department or by contractors;

(3) Acquire real property and dispose of surplus real property in coordination with Houston Public Works;

(4) Manage and oversee energy programs for city buildings;

(5) Provide on-site building maintenance and operations services for buildings assigned to the department for that purpose, including janitorial, cleaning, building systems maintenance, minor repairs, carpentry and construction work and security operation and maintenance;

(6) Render assistance to other city departments upon request for buildings that may not be under the direct management of the department on issues relating to building management; and

(7) For any matters involving procurement, as defined in section 15-42 of this Code, defer to the chief procurement officer as required in section 15-43 of this Code.

The foregoing duties and functions shall not extend to aviation department properties, unless so requested by the aviation department.
(Ord. No. 99-378, § 5, 4-21-99; Ord. No. 05-946, § 1, 8-10-05; Ord. No. 06-804, § 1, 8-2-06; Ord. No. 07-840, § 7, 7-18-07; Ord. No. 08-568, §§ 23, 24, 6-18-08; Ord. No. 2010-304, § 3, 4-21-2010, eff. 4-1-2010; Ord. No. 2010-803, § 5, 10-13-2010; Ord. No. 2013-603, § 7, 6-19-2013; Ord. No. 2015-668, § 9, 7-8-2015; Ord. No. 2018-11, § 50, 1-10-2018)

Sec. 2-435. Coordination.

The director shall coordinate the work of the department with the director of the finance department, Houston Public Works and other departments that have concurrent functions, and the various directors shall develop operating guidelines as necessary to ensure coordination of work and delivery of services.
(Ord. No. 99-378, § 5, 4-21-99; Ord. No. 08-52, § 5, 1-16-08, eff. 1-26-08; Ord. No. 2018-11, § 7, 1-10-2018)

Sec. 2-436. Advisory committee.

The director and the mayor may establish an advisory committee of not less than five persons who perform building management services or have related responsibilities in the private sector. The committee shall advise the director on issues within the responsibility of the department for the purpose of ensuring that the department has the guidance necessary to provide services of the highest quality and ensuring that the director and the mayor remain aware of evolving issues with respect to building management.
(Ord. No. 99-378, § 5, 4-21-99)

Sec. 2-437. Transfer of duties.

To the extent that any other reference in this Code or in any other ordinance of the city or any reference in any city contract or other document devolves duties upon the finance and administration department or Houston Public Works or the directors or employees of those departments that have been reassigned to the general services department or director thereof, then the reference shall be construed to mean the general services department or the director and employees thereof, as applicable.
(Ord. No. 99-378, § 5, 4-21-99; Ord. No. 07-840, § 8, 7-18-07; Ord. No. 08-568, § 25, 6-18-08; Ord. No. 2010-304, § 4, 4-21-2010, eff. 4-1-2010; Ord. No. 2018-11, § 50, 1-10-2018)

Sec. 2-438. Reserved.

Editor's note—Ord. No. 2010-304, § 5, adopted April 21, 2010, effective April 1, 2010, renumbered § 2-438 as § 2-508.

Secs. 2-439—2-450. Reserved.

ARTICLE XIV. NON-DISCRIMINATION IN CITY EMPLOYMENT, CITY SERVICES AND CONTRACTING PRACTICES

Sec. 2-451. Definitions.

As used in this article, the following words and terms shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

City employment and *employment opportunities* shall include city job application procedures, recruitment, referrals for employment, selection and hiring, placements, compensation, promotions, demotions, transfers, layoffs, recalls, training, educational opportunities, and all forms of discipline, including indefinite suspensions/terminations.

Discriminate, discriminates, discrimination shall mean to distinguish, differentiate, separate, or segregate, to either the advantage or disadvantage of any person, on the basis of race, color, national origin, marital status, religion, age, gender, sexual orientation and gender identity, disability, military service, except as required by federal or state law or court order.

Sexual orientation and *gender identity* shall mean having or being perceived as having an emotional, physical, or sexual attachment to another person without regard to the sex of tha person or having or being perceived as having an orientation for such attachment, or having or being perceived as having a self-image or identity not traditionally associated with one's biological maleness or femaleness. Sexual orientation and gender identity does not include pedophilia, exhibitionism, voyeurism, or any unlawful conduct.

(Ord. No. 01-699, § 2, 7-25-01; Ord. No. 2015-1129, §§ 7, 8(Exh. A), 11-13-2015, election of 11-3-2015)

Sec. 2-452. Prohibition against discrimination in employment.

It is the policy of the city that the city will not discriminate in city employment and employment opportunities.

(Ord. No. 01-699, § 2, 7-25-01; Ord. No. 2015-1129, §§ 7, 8(Exh. A), 11-13-2015, election of 11-3-2015)

Sec. 2-453. Prohibition against discrimination in awarding contracts.

It is the policy of the city that the city will not discriminate in the consideration, award, or administration of any contract entered into between the city and any person (including, but not limited to, any contractor, vendor, supplier, lessee, or lessor) for the provision of any works, goods, or services of any type to the city.

(Ord. No. 01-699, § 2, 7-25-01; Ord. No. 2015-1129, §§ 7, 8(Exh. A), 11-13-2015, election of 11-3-2015)

Sec. 2-454. Prohibition against discrimination in city services.

It is the policy of the city that the city will not discriminate in authorizing or making available the use of city facilities or in the delivery of city services.

(Ord. No. 01-699, § 2, 7-25-01; Ord. No. 2015-1129, §§ 7, 8(Exh. A), 11-13-2015, election of 11-3-2015)

Sec. 2-455. Enforcement.

(a) It is the policy of the city that no employee or officer of the city shall engage in any act or practice prohibited by this article.

(b) An employee or officer found in violation of this article shall be subject to disciplinary action up to and including indefinite suspension/termination or removal from office pursuant to applicable city ordinances, city Charter provisions, executive orders, administrative procedures, laws, and policies.

(c) The provisions of this article shall be enforced pursuant to applicable city ordinances, city Charter provisions, executive orders, administrative procedures, laws, and policies.

(Ord. No. 01-699, § 2, 7-25-01; Ord. No. 2015-1129, §§ 7, 8(Exh. A), 11-13-2015, election of 11-3-2015)

Sec. 2-456. This article inapplicable to certain fringe benefits.

The provisions of this article are not in any manner applicable to those city provided fringe benefits (including, but not limited to, plans or

programs of life, health, dental, disability coverage, or pension benefits) that are furnished by or through contracts between the city and third party vendors or administrators or are furnished under the terms of state laws governing pensions and benefits. Those fringe benefits shall instead be governed under the terms of the programs, plans, contracts, and laws under which they are furnished.
(Ord. No. 01-699, § 2, 7-25-01; Ord. No. 2015-1129, §§ 7, 8(Exh. A), 11-13-2015, election of 11-3-2015)

Secs. 2-457—2-470. Reserved.

ARTICLE XV. HOUSTON INFORMATION TECHNOLOGY SERVICES*

Sec. 2-471. Department created.

Houston Information Technology Services, originally established as and formerly known as the information technology department, is hereby continued. To the extent that this Code or any other ordinance or any motion, resolution, contract or other document devolves duties upon the former information technology department or upon the employees or director thereof, then such references shall be construed to mean the Houston Information Technology Services.
(Ord. No. 02-528, 14f., 6-19-02; Ord. No. 2012-908, §§ 2, 5, 10-17-2012)

Sec. 2-472. Chief information officer.

The office of the director of the Houston Information Technology Services (HITS), formerly known as the director of the information technology department, is hereby continued. The director shall be appointed by the mayor and approved by the city council. The director shall act as the city's chief information officer. The title chief information officer or CIO shall be utilized only by the director. The director shall also be the executive officer of HITS and shall perform or cause to be performed the duties that are assigned by law or by the mayor.
(Ord. No. 02-528, § 14f., 6-19-02; Ord. No. 2012-908, §§ 2, 5, 10-17-2012)

Sec. 2-473. Functions.

The department shall be responsible for information resource management as follows:

(1) Define, plan, and implement strategic, operational, and tactical information systems, information technology assets, needs and directions, including project priorities and schedules, resource allocation, and project budgeting, citywide.

(2) Coordinate selection, procurement, implementation and installation of information technology systems, solutions, and services, following citywide procurement policy, in concert with city departments, other than 911 emergency systems.

(3) Implement and maintain an information technology service model as required for effective operation of citywide information technology assets.

(4) Procure and maintain the city's radio network, including ongoing support of software, hardware and third party agreements that are in the best interest of the city as a whole.

(5) Maintain and protect the confidentiality, integrity, and availability of computer-generated records as requested by city departments using industry standard practices.

(6) Define, develop, and maintain information technology risk management, security and operational compliance programs via related policies, standards, and technologies, which will identify, analyze and respond to risks that could potentially impact the city's business objectives.

(Ord. No. 02-528, § 14f., 6-19-02; Ord. No. 2012-908, § 2, 10-17-2012)

*__Editor's note—__Ord. No. 2012-908, § 5, adopted October 17, 2012, amended the title of Ch. 2, Article XV to read as herein set out. Formerly said article was entitled Information Technology Department.

__Editor's note—__Ord. No. 2004-672, § 2, adopted June 23, 2004, renumbered this former Ch. 2, Art. XVI, as Ch. 2, Art. XV. See the Code Comparative Table.

Sec. 2-474. Transfer of duties.

To the extent that any other reference in this Code or in any other ordinance of the city or any reference in any city contract or other document devolves duties upon all departments or the directors or employees of those departments that have been reassigned to Houston Information Technology Services or the director thereof under this article, then the reference shall be construed to mean Houston Information Technology Services or the director and employees thereof, as applicable.
(Ord. No. 02-528, § 14f., 6-19-02; Ord. No. 2012-908, §§ 2, 5, 10-17-2012)

Secs. 2-475—2-500. Reserved.

ARTICLE XVI. DEPARTMENT OF ADMINISTRATION AND REGULATORY AFFAIRS

DIVISION 1. GENERALLY

Sec. 2-501. Created.

There is hereby created a department to be designated the department of administration and regulatory affairs.
(Ord. No. 08-52, § 6, 1-16-08, eff. 1-26-08)

Sec. 2-502. Director—Position created; appointment.

There is hereby created the position of director of the department of administration and regulatory affairs, who shall be appointed by the mayor and confirmed by the city council. Except as provided or limited by the City Charter, the director of the department of administration and regulatory affairs shall mean the director or his designee.
(Ord. No. 08-52, § 6, 1-16-08, eff. 1-26-08)

Sec. 2-503. Same—Powers and duties.

The director of the department of administration and regulatory affairs shall perform all duties and have all the responsibilities required and imposed by the laws of the United States and the state, the City Charter and ordinances of the city, and such other functions, duties and powers as may be assigned by the mayor. In addition to the foregoing duties, functions, powers and responsibilities, the director of the department of administration and regulatory affairs, subject to the direction and supervision of the mayor, shall:

(1) Be executive head of the department of administration and regulatory affairs, and as such, shall have control, supervision and authority over all officers and employees therein.

(2) Exercise and perform or cause to be exercised or performed all duties and functions assigned to the department of administration and regulatory affairs.

(3) Recommend such legislation as may be necessary to more efficiently operate and maintain the department of finance and administration.

(Ord. No. 08-52, § 6, 1-16-08, eff. 1-26-08)

Secs. 2-504. Duties.

The department of administration and regulatory affairs and such employees of the department section as are assigned to it shall be charged with the following duties:

(1) Oversight and administration of the city's central payroll function.

(2) Oversight and administration of the city's records management.

(3) Administration of ordinances related to regulatory services, including utilities, vehicles for hire, certain permits for alcohol-related businesses, franchise fees, and other licenses and permits.

(4) Oversight and administration of the city's strategic alliance management functions.

(5) Supervision and administration of the city's requirements for insurance by establishing a risk management program, and supervision and administration of fidelity bonds and notary public commissions.

(6) Supervision of the establishment and implementation of a system of administrative procedures to improve city operations.

(7) Supervision and administration of the duties and responsibilities of the city as provided by this Code or other ordinance, the City Charter and state law in relation to its regulation of public utilities.

(8) In the event of an application by a utility for a change in rates, development of a recommendation and sponsorship of the city's case in the ensuing hearing.

(9) Responsibility for all actions necessary to ensure the delivery of services required of public utilities and charging of fair and reasonable rates for such services.

(10) Responsibility for provision of office services and reproduction management, including, but not limited to:

a. Pick-up and delivery of mail for all city departments.

b. Provision of printing and graphics services to city departments.

c. Coordination of acquisition and leasing of all types of reproduction equipment.

(11) Management of surplus city personal property and maintenance of a perpetual inventory thereof.

(12) Supervision, administration, and enforcement of the franchises granted by the city.

(13) Direct, control, and manage all on-street parking in residential and commercial areas, as more particularly described in chapter 26 of this Code.

(14) Responsibility for supervision, administration, and management of BARC animal services, including the development, recommendation, and implementation of the necessary policies and procedures to ensure the efficient operation of all city services regarding animal regulation and care.

(Ord. No. 08-52, § 6, 1-16-08, eff. 1-26-08; Ord. No. 2010-304, § 6, 4-21-2010, eff. 4-1-2010; Ord. No. 2010-398, § 2, 6-2-2010; Ord. No. 2013-603, § 8, 6-19-2013; Ord. No. 2022-44, § 3, 1-19-2022)

Sec. 2-505. Designation of temporary director.

The director of administration and regulatory affairs shall designate, with the approval of the mayor, an employee who, during the temporary absence or incapacity of the director, shall have and perform all of the powers and duties of the director of administration and regulatory affairs. Such appointee will serve in such capacity at the pleasure of the mayor and shall receive no additional compensation by reason of such appointment.

(Ord. No. 08-52, § 6, 1-16-08, eff. 1-26-08)

Sec. 2-506. Authority of director to function in other capacities.

(a) Whenever any provision of this Code or any other city ordinance provides for the taking of any action or the performance of any function by the director of the public service department or the public service director, then the director of the department of administration and regulatory affairs shall be authorized to take such action or perform such function, or to cause the same to be taken or performed.

(b) To the extent that this Code or any other ordinance or any motion, resolution, or other document devolves duties relating to the enforcement of parking regulations in the city upon the municipal courts department, the convention and entertainment facilities department, Houston Public Works, the general services department, or the directors or employees of those departments, then such references shall be construed to mean the department of administration and regulatory affairs or the director or employees thereof.

(c) To the extent that this Code or any other ordinance or any motion, resolution, or other document devolves duties relating to the regula-

tion and care of animals upon the Houston Health Department or the director or employees of that department, then such references shall be construed to mean the department of administration and regulatory affairs or the director or employees thereof.
(Ord. No. 08-52, § 6, 1-16-08, eff. 1-26-08; Ord. No. 2010-304, § 7, 4-21-2010, eff. 4-1-2010; Ord. No. 2010-398, § 3, 6-2-2010; Ord. No. 2010-846, § 3, 11-3-2010; Ord. No. 2013-603, § 9, 6-19-2013; Ord. No. 2015-820, § 34, 8-26-2015; Ord. No. 2018-11, § 50, 1-10-2018)

Sec. 2-507. Management of surplus city personal property.

(a) The following words, terms, and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except when the context clearly indicates a different meaning:

Director means the director of administration and regulatory affairs.

Surplus city personal property, means supplies, materials and equipment, excluding vehicles, that are obsolete or in excess of the city's requirements.

(b) Surplus city personal property may be sold, disposed of or destroyed in accordance with the following procedures:

(1) Items that have an estimated market value of $25.00, or less, as determined by the director, may be donated to a nonprofit corporation or governmental entity in accordance with a policy developed by the director and approved by the mayor for use in providing services benefitting the residents of the city, or may be destroyed. Such items may be donated or destroyed only if, in the reasonable opinion of the director the cost of maintaining the item in inventory and the probable cost of attempting to sell the item exceed the market value of the item.

(2) Items that are not disposed of or donated in accordance with item (1) of this subsection that have an estimated market value of $5,000.00 or less, each as determined by the director, may be sold by informal bid, auction, negotiated sale or any other lawful method that in the opinion of the director will result in the best return to the city, taking into consideration storage and sale costs. The director shall provide at least one week's notice prior to such disposition. The notice may include any of the following: Internet; public posting; municipal channel advertisement; or any other reasonable public notice as determined by the director.

(3) Items that have an estimated market value of more than $5,000.00, as determined by the director, may be sold only at a publicly advertised auction, provided that if any such item does not sell at auction, then it may be disposed of as provided in item (2) of this subsection.

(Ord. No. 08-52, § 6, 1-16-08, eff. 1-26-08)

Sec. 2-508. Management of municipal courts parking lot.

The department shall have and exercise management of the municipal courts parking lot, being that parking lot bounded by Lubbock, Reisner, West Capitol, and Houston Avenue. The department shall collect and account for the revenues therefrom.

Users of the municipal courts parking lot shall be liable for payment of thefees stated for this provision in the city fee schedule, including sales tax, per vehicle.
(Ord. No. 08-568, § 26, 6-18-08; Ord. No. 2010-304, § 5, 4-21-2010, eff. 4-1-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Note—Formerly § 2-438.

Secs. 2-509—2-520. Reserved.

DIVISION 2. OFFICE OF SUSTAINABILITY

Sec. 2-521. Office of sustainability; created.

There is hereby established an office of sustainability, a division of the administration and regulatory affairs department.
(Ord. No. 2020-911, § 2, 10-21-2020)

Sec. 2-522 Definitions

As used in this article, the following words, terms and phrases shall have the meanings assigned to them in this section, unless the context of their usage clearly indicates a different meaning:

Climate action plan means and refers to the city's strategic plan to reduce greenhouse gas emissions within the city boundary.

Director means the director of administration and regulatory affairs or the director's designee.

Greenhouse gas means any gas that causes the atmosphere to retain heat and includes gases such as carbon dioxide, methane, nitrous oxide, and fluorinated gases.

Greenhouse gas mitigation means any action that results in a net reduction in greenhouse gases from an activity in relation to the emissions from that activity before the mitigation occurs.

(Ord. No. 2020-911, § 2, 10-21-2020)

Sec. 2-523. Purpose; climate action plan.

(a) The office of sustainability shall provide support for greenhouse gas mitigation initiatives and shall serve as liaison among the mayor, city council, city departments, and other public and private entities on matters pertaining to greenhouse gas mitigation. To this end, the city shall establish, adopt, implement, and maintain a climate action plan describing and incorporating the city's goals, strategies, action plans, and policies for the reduction of greenhouse gas.

(b) The climate action plan shall include, but not be limited to:

(1) A greenhouse gas emission inventory compliant with the latest national and international standards and completed using the latest available data;

(2) Reasonable, practical, and cost-effective measures to reduce or offset community-wide greenhouse gas emissions to zero percent of the 2014 baseline by the year 2050;

(3) Updates to the plan which shall take place not later than five years after the adoption of the most recent climate action plan and include quantitative and qualitative analysis of progress toward the goals specified therein; and

(4) Implementation and coordination strategies to achieve the objectives of the climate action plan.

(Ord. No. 2020-911, § 2, 10-21-2020)

Sec. 2-524. Duties of office of sustainability.

The office of sustainability shall perform various duties, including, but not limited to, the following:

(1) Assist in developing, coordinating and formulating policies and legislation relating to greenhouse gas mitigation, and assist in overseeing the implementation of programs consistent with such policies and legislation;

(2) Act as a public advocate for community-led greenhouse gas mitigation initiatives;

(3) Assist in coordination of compliance with all federal, state and city laws concerning greenhouse gas reporting, energy consumption reporting, and climate action plan implementation;

(4) Assist in analyzing existing city programs for global warming potential, and in developing and promoting additional programs relating to the implementation of the climate action plan;

(5) Assist in maintaining statistical data regarding the city's municipal and community greenhouse gas emissions;

(6) Assist and educate individuals and entities in the public and private sectors regarding best practices to reduce greenhouse gas emissions;

(7) Provide information to assist in planning and prioritizing resources to reduce greenhouse gas emissions resulting from city operations.

(Ord. No. 2020-911, § 2, 10-21-2020)

Sec. 2-525. Director's authority; duties.

The director shall:

(1) Oversee the maintenance of the climate action plan;

(2) Establish an open, inclusive, public process for engaging the diverse ethnic, cultural, and economic communities in the development of the climate action plan, any proposed amendments, and any implementation actions;

(3) Develop policies and procedures to guide city departments in implementing the climate action plan and other greenhouse gas mitigation activities as needed;

(4) Lead day-to-day climate action plan implementation across all city departments;

(5) Implement greenhouse gas mitigation into a strategic function that optimizes the city's strategic and operational climate action plan objectives;

(6) Make recommendations to the mayor and city council regarding greenhouse gas mitigation and promulgate climate action plan policies in conjunction with department directors; and

(7) When appropriate, consult with legal counsel when making decisions regarding climate action plan implementation; and

(8) Report annually to the mayor and city council on progress toward the goals of the climate action plan.

(Ord. No. 2020-911, § 2, 10-21-2020)

Sec. 2-526. Responsibilities of city departments.

Each department director shall:

(1) Designate a liaison to periodically report to the department new or updated policies, regulations, and planning activities related to the scope of the climate action plan; and

(2) Direct the liaison to periodically report to the office of sustainability progress toward the goals of the climate action plan and statistical data regarding the department's greenhouse gas emissions; and

(3) Consult and coordinate with the office of sustainability when formulating plans, policies, regulations and public-private partnerships related to greenhouse gas mitigation and climate action plan implementation.

(Ord. No. 2020-911, § 2, 10-21-2020)

Sec. 2-527. Transfer of duties.

To the extent that a provision of this Code or of any ordinance, executive order, administrative procedure, administrative order, or contract of the city devolves a duty to, or imposes a duty on, a department or division other than the office of sustainability, which duty this division assigns to the office of sustainability, the provision shall be construed to refer to the office of sustainability.

(Ord. No. 2020-911, § 2, 10-21-2020)

Secs. 2-528—2-599. Reserved.

ARTICLE XVII. FLEET MANAGEMENT DEPARTMENT

Sec. 2-600. Department created.

There is hereby created the fleet management department of the city.

(Ord. No. 2010-803, § 2, 10-13-2010)

Sec. 2-601. Director—Position created; appointment.

There is hereby created the position of director of the fleet management department, who shall be appointed by the mayor and confirmed by the city council. Except as provided or limited by the City Charter, the director of the fleet management department shall mean the director or the director's designee.

(Ord. No. 2010-803, § 2, 10-13-2010)

Sec. 2-602. Same—Powers and duties.

The director of the fleet management department shall perform all duties and have all the responsibilities required by this Code and such other functions, duties and powers as may be assigned by the mayor.
(Ord. No. 2010-803, § 2, 10-13-2010)

Sec. 2-603. Duties of department.

The fleet management department and such employees of the department as are assigned to it shall be charged with the following duties:

(1) Specification and acquisition of new vehicles and other related equipment and preparation of any required capital planning to budget for such acquisitions;

(2) Permanent assignment of vehicles and other related equipment to city departments;

(3) Creation and management of the city's motor pool;

(4) Management of maintenance and repair for all vehicles and other related equipment;

(5) Management, control, supervision and authority over all department employees in the performance of duties assigned to the department;

(6) Procurement, in accordance with the city's procurement procedures set forth in chapter 15 of this Code, storage and dispensing of all fuel and supplies necessary to operate the city fleet of vehicles and other related equipment; and

(7) Disposal of vehicles and other related equipment.

(Ord. No. 2010-803, § 2, 10-13-2010; Ord. No. 2015-668, § 10, 7-8-2015)

Sec. 2-604. Transfer of duties.

To the extent that any other reference in this Code or in any other ordinance of the city or any reference in any city contract or other document devolves duties upon any department or the director or employees of that department whose functions have been reassigned to the fleet management department or the director or employees thereof, then the reference shall be construed to mean the fleet management department or the director or employees thereof, as applicable.
(Ord. No. 2010-803, § 2, 10-13-2010)

Secs. 2-605—2-620. Reserved.

ARTICLE XVIII. DEPARTMENT OF NEIGHBORHOODS

Sec. 2-621. Created.

There is hereby created the department of neighborhoods.
(Ord. No. 2011-697, § 2, 8-10-2011)

Sec. 2-622. Director—Position created; appointment.

There is hereby created the position of director of neighborhoods, who shall be appointed by the mayor and confirmed by the city council.
(Ord. No. 2011-697, § 2, 8-10-2011)

Sec. 2-623. Same—Powers and duties.

The director of neighborhoods shall perform all duties and have all the responsibilities required by the laws of the United States and the State of Texas, the City Charter and ordinances of the city, and such other functions, duties, and powers as may be assigned by the mayor. In addition to the foregoing, subject to the direction and supervision of the mayor, the director of neighborhoods shall be the chief executive officer of the department of neighborhoods and the supervisor of all employees therein.
(Ord. No. 2011-697, § 2, 8-10-2011)

Sec. 2-624. Duties.

The department of neighborhoods is charged with the following duties:

(1) Through the Mayor's Citizens' Assistance Office, a division of the department, to help citizens access city services and to serve as a liaison between citizens of the city and city departments;

(2) Through the Mayor's Office On Disabilities, a division of the department, to fulfill the purposes and the duties prescribed by sections 2-389 and 2-390 of this Code;

(3) Through the Mayor's Office of Education Initiatives, a division of the department, to enhance education opportunities for students of all ages, both inside and beyond traditional classrooms;

(4) Through the Mayor's Office of Gang Prevention, a division of the department, to assist families, young adults, and communities in reducing the frequency and the effects of juvenile delinquency in general and gang participation in particular;

(5) Through the Mayor's Office of Immigrant and Refugee Affairs, a division of the department, to connect immigrants and refugees with government, private enterprise, and not-for-profit resources intended to stabilize lives, preserve families, promote personal responsibility, and provide a path to citizenship or other legal residency, all as permitted by law;

(6) Through the Inspections and Public Service division of the department, to reduce substandard living conditions in the city through the enforcement of articles V and IX through XIV of chapter 10 of this Code, to the extent and in the manner prescribed by the said articles;

(7) Through the Mayor's Volunteer Initiatives Program, a division of the department, to promote and to facilitate volunteer public service; and

(8) To perform such other duties as may be prescribed by the mayor to enhance the quality of residential life in the city.

(Ord. No. 2011-697, § 2, 8-10-2011)

Sec. 2-625. Transfer of duties.

To the extent that a provision of this Code or of any ordinance, executive order, administrative procedure, administrative order, or contract of the city devolves a duty to, or imposes a duty on, a department other than the department of neighborhoods and which duty this article assigns to the department of neighborhoods, the provision shall be construed to refer to the department of neighborhoods.

(Ord. No. 2011-697, § 2, 8-10-2011)

Secs. 2-626—2-660. Reserved.

ARTICLE XIX. OFFICE OF BUSINESS OPPORTUNITY

Sec. 2-661. Department created.

There is hereby created a new department to be known as the office of business opportunity.

(Ord. No. 2012-850, § 2, 9-26-2012)

Sec. 2-662. Director—Position created; appointment.

There is hereby created the position of director of the office of business opportunity, who shall be appointed by the mayor and confirmed by the city council. Except as provided or limited by the City Charter, the director of the office of business opportunity shall mean the director or the director's designee.

(Ord. No. 2012-850, § 2, 9-26-2012)

Sec. 2-663. Same—Powers and duties.

The director of the office of business opportunity shall be the executive head of the department and shall perform, or cause to be performed, all duties assigned by law or by the mayor.

(Ord. No. 2012-850, § 2, 9-26-2012)

Sec. 2-664. Duties of department.

The office of business opportunity and such employees of the department as are assigned to it shall be charged with the following duties:

(1) Management of the city's minority, women and small business enterprise programs provided for in this Code, specifically including but not limited to the programs described in article V of chapter 15 of this Code;

(2) Management of the city's program for business enterprises owned and operated by persons with disabilities provided for or described in article VI of chapter 15 of this Code;

(3) Oversight, operation and management of all other duties, functions, programs, initiatives and undertakings currently assigned to or performed by the mayor's office of business opportunity; and

(4) Management of other programs or functions assigned to the department by the mayor or city council.

(Ord. No. 2012-850, § 2, 9-26-2012)

Sec. 2-665. Transfer of duties.

To the extent that any other reference in this Code or in any other ordinance of the city or any reference in any city contract or other document devolves duties upon the mayor's office of business opportunity, or the director or personnel of that office, then the reference shall be construed to mean the office of business opportunity or the director or employees thereof, as applicable."

(Ord. No. 2012-850, § 2, 9-26-2012)

Secs. 2-667—2-1000. Reserved.

ARTICLES XX—XXIX. RESERVED

ARTICLE XXX. TABLES AND CHARTS*

Sec. 2-1001. Facsimile signatures.

The authorization by section 2-27 to cause documents to be executed, certified or endorsed with a facsimile signature shall extend to the officers shown below with respect to each corresponding category of documents (as shown in the same numbered provision as the title of the officer), but no such facsimile signature shall be valid unless all of the corresponding special requirements for validity of the facsimile signature (as indicated in the same numbered provision) are present.

Table 2-1001
Facsimile Signatures

Description of Documents		*Officers*	*Special Requirements For Validity of Facsimile Signatures*
(1)	Contracts and other written agreements, including but not limited to, compromise and settlement agreements, whether approved by city council or not, subject to the requirements of Article II, Section 19a of the Houston City Charter	Mayor, City Controller, Mayor Pro Tem, Vice Mayor Pro Tem	A, B, C
(2)	Purchase orders, service release orders, project release orders and month-to-month office equipment agreements, whether approved by city council or not, subject to the requirements of Article II, Section 19a of the Houston City Charter	Mayor, City Controller	A and D
(3)	Written acceptances on behalf of the city of certain deeds, dedications, easements or other instruments relating to real or personal property, as designated in section 2-201 of this Code	Mayor, Mayor Pro Tem, Vice Mayor Pro Tem	A
(4)	Letters of indefinite suspension	Mayor	A and B

*__Editor's note—__Ord. No. 2004-672, § 2, adopted June 23, 2004, renumbered this former Ch. 2, Art. XV as Ch. 2, Art. XXX. See the Code Comparative Table.

Description of Documents		*Officers*	*Special Requirements For Validity of Facsimile Signatures*
(5)	Notices to contractors, including change orders approved by city council, contemplated by any contract document to be signed by the Mayor and the City Controller, Mayor, City Controller, Mayor Pro Tem, Vice Mayor Pro Tem	A and B	

As used in Table 2-1001, the following symbols shall have the meanings set out below:

'A' Means that the facsimile signature is invalid unless, at the time it is affixed, there is on file an effective facsimile signature certificate that contains a likeness of the facsimile signature, the signature of the officer who has adopted it and a description of the documents to which the facsimile signature may be affixed.

'B' Means that the facsimile signature is invalid unless the facsimile signature is accompanied by the signature, which can include initials, of another person, as specified on the facsimile signature certificate, whose name and signature, in addition to the elements listed under 'A' above, are contained in an effective facsimile signature certificate on file at the time the facsimile signature is affixed.

'C' Means the facsimile signature is invalid unless the document to which it is affixed bears the embossed or electronic impression of the official seal of the city and an attesting signature of the city secretary or an assistant city secretary.

'D' Means that any imprinted facsimile signature of the Mayor or City Controller is invalid unless, in addition to the elements listed under 'A' above, the facsimile signature is accompanied by the signature of the purchasing agent.

(Code 1968, § 2-17; Ord. No. 82-266, § 1, 2-10-82; Ord. No. 82-1318, § 1, 8-24-82; Ord. No. 82-1829, § 1, 11-19-82; Ord. No. 85-2120, § 3, 12-10-85; Ord. No. 86-1252, § 28, 7-16-86; Ord. No. 93-931, § 3, 9-4-93; Ord. No. 94-1112, § 2, 10-19-94; Ord. No. 96-50, § 4, 1-17-96; Ord. No. 96-1248, § 3, 11-26-96; Ord. No. 97-415, § 2, 4-17-97; Ord. No. 00-184, § 2, 3-22-00; Ord. No. 01-1079, §§ 3, 4, 12-5-01; Ord. No. 04-497, § 2, 5-26-04; Ord. No. 04-672, § 3, 6-23-04; Ord. No. 08-20, § 3, 3-8-08; Ord. No. 2008-210, § 3, 3-12-08; Ord. No. 2020-320, § 7, 4-15-2020)

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Chapter 3

ALCOHOLIC BEVERAGES*

Art. I. In General, §§ 3-1—3-15
Art. II. Applications and Fees, §§ 3-16—3-22

ARTICLE I. IN GENERAL

Sec. 3-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alcoholic beverage means alcohol, or any beverage containing more than one-half of one percent of alcohol by volume, which is capable of use for beverage purposes, either alone or when diluted.

Director means the Director of the Department of Administration and Regulatory Affairs or the director's designee.

Grocery store means an establishment which has at least 10,000 square feet of interior floor space, selling at retail a general line of food, such as canned and frozen foods; fresh fruits and vegetables; and fresh and prepared meats, fish and poultry. Included in this industry are establishments, such as supermarkets that hold a valid wine and beer retailer's off-premise permit authorizing the establishment to sell wine, beer and malt liquors for off-premise consumption only. Excluded from this industry are establishments that derive more than 25 percent of gross receipts for the premises, excluding the sale of items subject to the motor fuels tax, from the sale of wine, beer and malt liquors; also excluded are establishments that allow on-premises consumption or that sell distilled spirits.

License means any license issued pursuant to the T.A.B.C., except a temporary or agent's beer license.

Licensee means a person who is the holder of a license, as herein defined, or any agent, servant, or employee of that person.

Permit means any permit issued pursuant to the T.A.B.C., except any of the following:

a. Agent's, airline beverage, industrial, carrier's, private carriers, private club registration, local cartage, storage, and temporary wine and beer retailer's permits.

b. A wine and beer retailer's permit issued for a dining, buffet, or club car.

c. A mixed beverage permit during the three-year period following the issuance of the permit.

Permittee means a person who is the holder of a permit, as herein defined, or an agent, servant, or employee of that person.

Premises means the grounds and all buildings, vehicles, and appurtenances pertaining to the grounds, including any adjacent premises if they are directly or indirectly under the control of the same person.

T.A.B.C. means the Texas Alcoholic Beverage Code, as amended.

(Code 1968, § 4-1; Ord. No. 81-1237, § 1, 6-30-81; Ord. No. 2014-9, § 2, 1-8-2014; Ord. No. 2025-742, § 3, 8-27-2025)

Sec. 3-2. Location of dealer's premises near church, school or hospital.

(a) It shall be unlawful for any dealer to sell alcoholic beverages within the corporate limits of the city where the place of business of such dealer is within 300 feet of any church, public

*__Charter reference__—Authority to regulate dram shops, drinking saloons, etc., Art. II, § 16j(c).

__Cross references__—Food and drug, Ch. 20; health, Ch. 21; fee for certificates issued pursuant to Alcoholic Beverage Code, § 2-72; closing hours for dance halls licensed to serve alcoholic beverages, § 5-50; sale, possession, etc., of alcoholic beverages in teenage dance halls, § 5-56.

elementary, junior high or high school, or public hospital or within 300 feet of a "private school" as that term is defined in Section 109.33 of the Texas Alcoholic Beverage Code. It shall be unlawful for any dealer to sell alcoholic beverages in any area designated by the city council, as provided in subsection (e) below, as an "alcohol-free school zone." The measurement of the distance between the place of business where alcoholic beverages are sold and the church, public hospital, public school, or private school shall be made as provided in Section 109.33 of the Texas Alcoholic Beverage Code. This section shall be administered in a manner that is consistent with Section 109.33 of the Texas Alcoholic Beverage Code and shall not apply to any alcoholic beverage license or permit to which that section is inapplicable. The provisions of this subsection shall not apply to the operation of a grocery store.

(b) The provisions of subsection (a) of this section shall not apply to any place of business actually operated by a dealer on April 24, 1940, and continuously thereafter under a license or permit provided for in the Texas Alcoholic Beverage Code so long as such license or permit remains in full force and effect in the name of such dealer for the particular place of business so operated and is promptly renewed from year to year or is transferred strictly as authorized in subsection (c) of this section. Except for transfers made strictly as authorized in subsection (c) of this section, in the event such license or permit is permitted to lapse, or is transferred to a different person or is suspended or cancelled for any cause, or in the event such dealer ceases to operate such place of business, either temporarily or permanently, then such place of business shall cease to be excepted from the provisions of this section. The provisions of this subsection shall apply only to the extent that the premises remains at the same address at which it was situated on April 24, 1940.

(c) The application of the distance requirements of subsection (a) of this section to subsequent renewals of a license or permit or to the sale or transfer of premises or the business on the premises for which a new original license or permit is required shall be as provided in Section 109.59 of the Texas Alcoholic Beverage Code.

(d) In any prosecution under this section, the provisions of subsections (b), (c), (f), (g), and (h) of this section shall be regarded as defenses.

(e) Following receipt of a written request from the board of trustees of a school district for the designation of an alcohol-free school zone, the city council may designate areas within 1,000 feet of public schools as "alcohol-free school zones," as provided in Section 109.33 of the Texas Alcoholic Beverage Code and Section 38.007 of the Texas Education Code. Following receipt of a written request from the governing body of a private school for the designation of an alcohol-free school zone, the city council may designate areas within 1,000 feet of the private school as an alcohol-free school zone. Requests for designation shall be filed with the city secretary and shall be presented to city council as soon as practicable following their filing. Designations under this subsection may be made by city council motion.

(f) The provisions of subsection (a) shall not apply to the operation of a restaurant and/or bar that is associated with a hotel, subject to each of the following criteria:

(1) The hotel must be situated within the "central business district," as defined in section 3-3 of this Code;

(2) The hotel must have a total project cost per room of $100,000.00, or more, and must continuously meet each of the following criteria:

a. Have 80 or more separately rentable guest sleeping accommodations;

b. Have breakfast, lunch, and dinner meal service available to the public on the premises during normal meal periods;

c. Have an average daily room rental rate of $100.00 or more; and

d. Have 15 hours or more of on premises room service on a daily basis.

(3) The restaurant and/or bar must be operated within the same structure that principally houses the guest sleeping accommodations of the hotel and must be an integral part of the hotel's operations; this requirement shall not be construed to preclude the operation of a restaurant by another person acting under a license or business agreement with the hotel's owner or operator, but a bar must be operated by the hotel's owner or, if the hotel is not operated by the owner, then by the person primarily responsible for the overall operation and management of the hotel; and

(4) The restaurant or bar shall:

a. Take access from the lobby or interior corridors of the hotel; a restaurant may in addition to the lobby or interior access have direct public access to the exterior of the hotel structure but a bar may have no direct exterior access, except for "exit only" emergency egress doors if required for compliance with building and fire codes;

b. Have no signage that is placed upon or visible from the exterior of the hotel that references or suggests the existence of a bar or advertises or suggests the availability of alcoholic beverages within a bar or restaurant;

c. Not have any alcohol bottles, beer taps, alcohol service equipment, bars of the type typically associated with the service of alcohol by a bartender, alcohol related signage, or any other indicia of the sale or service of alcohol that may be viewed from the exterior of the hotel through windows, doorways, or other openings; however, this provision shall not preclude the service of alcohol in unmarked or covered containers or barware at patrons' tables in response to customer service orders; and

d. Not have any outside seating or service areas; this requirement shall not be construed to preclude an interior courtyard restaurant or bar that is completely surrounded by the hotel and is not visible in any manner from the exterior of the hotel.

(g) The provisions of subsection (a) shall not apply to the operation of a restaurant as related to its proximity to a public school, subject to the following criteria:

(1) The restaurant may have no signage that is placed upon or visible from the exterior that references or suggests the existence of or availability of alcohol on the premises; and

(2) The restaurant may have no outside seating or service area in which alcohol is served; this requirement shall neither preclude an interior courtyard that is surrounded by walls and is not visible in any manner from the exterior nor preclude a sidewalk cafe under section 40-10.1 of this Code, provided that the sidewalk cafe area is not a part of the alcohol premises for purposes of the State alcohol license or permit and that no alcohol is served or consumed in the sidewalk cafe area.

For purposes of the application of this subsection, the term "restaurant" shall be limited to a premises operating under a food and beverage certificate issued by the Texas Alcoholic Beverage Commission. Operation of a restaurant under the provisions of this subsection shall require written approval of the director of planning and development, which shall be granted upon demonstration of compliance with the foregoing requirements. Application for an approval shall be made by the applicant for the alcohol license or permit for the premises, who shall additionally be joined by the owner of the land upon which the restaurant will be situated if he is not the same person who will hold the alcohol licenses or permits. The approval shall be in the form of a covenant enforceable by the city that shall

run with the land upon which the restaurant will be situated and shall be conditioned upon full and continuing compliance with all requirements of this subsection for the duration of the alcohol license or permit. The covenant shall be executed by the applicants and duly recorded in the real property records of the county at the expense of the applicants. The director of planning and development may issue rules that are consistent with the requirements of this subsection for the administration of its provisions. No certification that may be required from the city by the Texas Alcoholic Beverage Commission or any other authority for the issuance of any alcohol permit or license shall be provided until all requirements of this subsection have been completed.

The provisions of this subsection shall not affect any alcohol premises that otherwise qualifies for an alcohol license or permit under the other provisions of this section.

(h) The provisions of this subsection (h) shall only be applicable within mixed land use/entertainment zones established by city council.

(1) Any such zone shall be at least ten acres or ten city blocks in size and shall be characterized by the following:

a. High density mixed land use development, including uses such as residential, commercial, retail, institutional, and entertainment with a predominance of multi-story and multi-tenant buildings.

b. Special public development interests, such as may be characterized by or associated with a tax increment reinvestment zone, improvement district, enterprise zone, historic district, transit corridor, or contractual street amenities development program.

(2) The mixed land use/entertainment zones established by city council pursuant to this subsection (h) that are currently in effect are:

a. **MIXED LAND USE/ENTERTAINMENT ZONE 1,** as described in Ordinance No. 2023-1001, adopted on November 15, 2023; and

b. **MIXED LAND USE/ENTERTAINMENT ZONE 2,** as described in Ordinance No. 2021-1113, adopted on December 15, 2021.

(3) Where an ordinance designating a mixed land use/entertainment zone attaches specific limitations and/or conditions on eligibility of an alcohol premises within that zone to be excepted from the distance requirements of subsection (a), an alcohol premises that qualifies for an alcohol license or permit under the terms of such ordinance shall not be affected by the other provisions of this section to the extent there is any conflict between the provisions of this section and the terms of the designating ordinance.

(4) Within a zone established under this subsection, a street level alcohol premises may be situated without regard to the other requirements and provisions of subsection (a), provided that not more than two other alcohol premises exists at street level in the same block face. In this subsection, a "block face" is the area on both sides of a city street block between two intersections. Alternatively, if three premises already exist at street level in the same block face, then additional premises may exist, but only if they are concealed; for this purpose and consistent with any applicable rules promulgated as provided below, concealment shall require that the additional premises be situated in the basement or on the second or a higher story of a building and have no signage or other indicia of the availability of alcohol that is visible from the street level.

The provisions of this subsection shall not affect any alcohol premises that otherwise qualifies for an alcohol license or permit under the other provisions of this section. The director of planning and development may issue rules that are consistent with the requirements of this subsection for the administration of this subsection. Without limitation, the rules shall address requirements for compliance with this subsection and the priority between alcohol license and

permit applications in case two or more applications are received for street level locations in the same block face. The rules may require the applicant for the alcohol license or permit, joined by the owner of the land upon which it is situated, to execute and record in the real property records of the county a covenant that is enforceable by the city to ensure compliance with this section and the director's rules.
(Code 1968, § 4-2; Ord. No. 81-1237, § 1, 6-30-81; Ord. No. 83-1249, § 1, 8-16-83; Ord. No. 93-1326, § 1, 10-20-93; Ord. No. 96-368, §§ 1—3, 4-17-96; Ord. No. 01-832, § 1, 9-12-01; Ord. No. 03-1319, § 3, 12-23-03; Ord. No. 07-227, § 14, 2-14-07; Ord. No. 2014-9, § 3, 1-8-2014; Ord. No. 2023-1001, § 2, 11-15-2023)

Sec. 3-3. Alcohol in central business district.

(a) In this section, the following words and terms shall have the meanings ascribed in this subsection:

Central business district means the area designated in Ordinance No. 2023-1001, adopted on November 15, 2023 by city council as *"MIXED LAND USE/ENTERTAINMENT ZONE 1."*

Licensed premises means the premises of any place for which a Texas Alcoholic Beverage Commission permit or license has been issued that allows on-premises consumption of alcoholic beverages.

Open container means an alcoholic beverage container that is no longer sealed.

Special event lot means a lot leased or licensed by the owner, operator, manager or management team of a sports venue through an agreement with the lot owner and where the lot is under the control of the owner, operator, manager or management team of the sports venue during an event authorized by them.

Sports venue means a stadium, arena, ballpark, parking lot, or other related property in the central business district that is owned, operated, or project managed by the Harris County-Houston Sports Authority.

(b) It shall be unlawful for any person to be in possession of an open container in the central business district.

(c) It shall be unlawful for any person to engage in the public consumption of any alcoholic beverage in the central business district.

(d) It is a defense to prosecution under this section that the alleged offense took place in a motor vehicle; in a building not owned or controlled by the city; in a residential structure; on the premises of a sports venue or special event lot during the hours authorized by the owner, operator, manager or management team of the sports venue; or on licensed premises that are situated in the central business district.
(Ord. No. 94-597, § 2, 6-15-94; Ord. No. 2012-236, §§ 2, 3, 3-21-2012; Ord. No. 2023-1001, § 3, 11-15-2023)

Sec. 3-4. Location of dealer's premises near day-care center or child-care facility.

(a) In accordance with section 109.331 of the T.A.B.C., the city, through approval by city council following a recommendation from the director of administration and regulatory affairs or on its own motion, may create 300-foot alcohol-free zones surrounding day-care centers or child-care facilities. As used in this section, *applicant* means the owner of a day-care center or child-care facility.

An application for the creation of an alcohol-free zone within 300 feet of a day-care center or child-care facility may be submitted to the director of administration and regulatory affairs by the owner of such day-care center or child-care facility. As soon as practicable following receipt of such an application, the director of administration and regulatory affairs shall submit his recommendation for approval of the application for an alcohol-free zone to the city council. An application for the creation of an alcohol-free zone shall be recommended for approval by the director of administration and regulatory affairs only if the day-care center or child-care facility is located in a residential area as defined in this subsection. Designations of alcohol-free zones pursuant to this

section may be made by city council motion. An alcohol-free zone designation shall continue for as long as the child-care center or day-care facility remains under the same ownership and retains its license, certification or registration from the state.

As used in this section, *alcohol-free zone* means the area within 300 feet of a day-care center or child-care facility.

As used in this section, *residential area* means an area in which 75 percent or more of the tracts within a circular area, as described herein, are residential in character; the radius of such circular area shall be 1,500 feet, and the center of such circular area shall correspond to the midpoint of a line joining the two most distant points on the boundary of the tract on which the dealer's premises are located; multifamily tracts shall be counted as multiple residential tracts based upon the tax records acreage of the multifamily tract according to the following formula: each one-eighth acre of land or fraction thereof shall be equivalent to one residential tract; for purposes of this calculation a residential tract or multifamily tract shall be considered to be in the circular area in its entirety if any portion of it lies within the circular area.

(b) If an alcohol-free zone designation has been approved by city council, it shall be unlawful for any dealer in a residential area holding a permit or license under the following chapters of the T.A.B.C. to sell alcohol within 300 feet of a day-care center or child-care facility, as those terms are defined in section 42.002 of the Human Resources Code: Chapter 25 (Wine and Beer Retailer's Permit), Chapter 28 (Mixed Beverage Permit), Chapter 32 (Private Club Registration Permit), Chapter 69 (Retail Dealer's On-Premise License) or Chapter 74 (Brewpub License). The measurement to a dealer's premises shall be in a direct line from the property line of the day-care center or child-care facility to the property line of the place of business where alcoholic beverages are sold and in a direct line across intersections, in accordance with sections 109.33 and 109.331 of the T.A.B.C.

(c) This section does not apply to a permit or license holder who sells alcoholic beverages if:

(1) The holder of a permit or license issued under the chapters of the T.A.B.C. listed in subsection (b) holds a food and beverage certificate issued by the Texas Alcoholic Beverage Commission;

(2) The permit or license holder and the day-care center or child-care facility are located on different stories of a multistory building;

(3) The permit or license holder and the day-care center or child-care facility are located in separate buildings and either the permit or license holder or the day-care center or child-care facility is located on the second story or higher of a multistory building;

(4) The place of business where alcoholic beverages are sold and the day-care center or child-care facility are located on the same tract or contiguous tracts of land which are under the direct ownership of the same person or entity; or

(5) The sale of alcoholic beverages at a location was authorized by the Texas Alcoholic Beverage Commission before the day-care center or child-care facility use was established within 300 feet from the place of business, and a new application for the same location is filed with the Texas Alcoholic Beverage Commission not later than one year after the date the previous permit or license authorizing the sale of alcoholic beverages at the location either expired or was terminated.

(d) The application shall contain a statement under oath that:

(1) The applicant has personal knowledge of the information contained in the application and that the information contained therein and furnished therewith is true and correct;

(2) The applicant has, for a minimum of 30 days, placed signs (at least 24 inches by 36 inches in size) that provide notification and information specifically stating

"300-FOOT ALCOHOL-FREE ZONE PENDING," identifying the address of the day-care center or child-care facility, and containing the notation: "For further information, contact the Director of the Department of Administration and Regulatory Affairs of the City of Houston." All lettering on the signs must be at least one and one-half inches by two inches in size for each letter on the sign. It shall be the duty of each applicant as to each particular application to erect at least one such sign along each of the property's public road or highway frontages so as to be clearly visible from the public road or highway. If a property does not have a public road or highway frontage, then signs shall be placed upon the property at a point visible from the nearest public right-of-way. Said signs shall be checked daily by the applicant and reposted as required to ensure that they remain posted until the application has been approved or denied; and

(3) The applicant has mailed the same information appearing on the sign to each property owner, as shown on the most recently approved tax rolls of the City of Houston, within 300 feet of the day-care center or child-care facility.

(e) The director of administration and regulatory affairs may require the sign to be both in English and in a language other than English if it is likely that a substantial number of the residents and property owners in the vicinity of the day-care center or child-care center speak a language other than English as their familiar language.

(f) In the event that the creation of an alcohol-free zone is initiated by action of city council, the director of administration and regulatory affairs shall cause notice of such action to be mailed to each owner, as shown on the most recently approved tax rolls of the city, of property within 300 feet of the day-care center or child-care facility.

(g) Notwithstanding anything to the contrary in this section, an alcohol-free zone shall not be created if the day-care center or child-care facility is located within a high density mixed land use development, including uses such as residential, commercial, retail, institutional, and entertainment with a predominance of multi-story and multi-tenant buildings.
(Ord. No. 05-63, § 1, 1-19-05; Ord. No. 08-52, §§ 7, 8, 1-16-08, eff. 1-26-08)

Sec. 3-15. Administrative rules.

The director is hereby authorized to promulgate rules regarding the application requirements for permits and licenses issued under this chapter. A copy of the rules shall be maintained by the department, published on the department's website, and made available in the office of the city secretary for inspection by the public, and copies shall be made available for purchase consistent with the fees prescribed by law.
(Ord. No. 2025-742, § 4, 8-27-2025)

Secs. 3-5—3-16. Reserved.

ARTICLE II. APPLICATIONS AND FEES*

Sec. 3-16. City license fee.

There is hereby levied a city fee in an amount equal to one-half the corresponding state license fee for each license issued for premises located within the city. The current fee amount is stated for this provision in the city fee schedule.
(Code 1968, § 4-10; Ord. No. 81-1237, § 1, 6-30-81; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 3-17. City permit fee.

There is hereby levied a city fee in an amount equal to one-half of the corresponding state permit fee for each permit issued for premises located within the city. The current fee amount is stated for this provision in the city fee schedule.
(Code 1968, § 4-11; Ord. No. 81-1237, § 1, 6-30-81; Ord. No. 2011-1168, § 13, 12-14-2011)

*__Editor's note—__Ord. No. 2025-742, § 2, adopted August 27, 2025, amended the title of Article II to read as herein set out. Formerly Article II was titled City Fees.

Sec. 3-18. Fees payable to tax assessor and collector.

The fees levied pursuant to this article shall be payable to the tax assessor and collector of the city. Each license and permit shall be presented to the tax assessor and collector by the permittee or licensee thereof for examination. The tax assessor and collector shall examine the same, determine the amount of the applicable city fee, and return the permit or license.
(Code 1968, § 4-12; Ord. No. 81-1237, § 1, 6-30-81)

Sec. 3-19. Issuance of receipt.

Upon payment of the applicable city fee, the tax assessor and collector shall issue a city fee receipt to the licensee or permittee setting forth, without limitation, the name of the licensee or permittee, the address of the premises, a description of the permit or license, the permit or license number, the date issued, and the amount paid.
(Code 1968, § 4-13; Ord. No. 81-1237, § 1, 6-30-81)

Sec. 3-20. Fee receipt to be posted.

All city fee receipts issued under this article shall be displayed adjacent to the permit or license to which they appertain. Failure of any permittee or licensee to display his city fee receipt in accordance with the provisions of this section shall be unlawful.
(Code 1968, § 4-14; Ord. No. 81-1237, § 1, 6-30-81)

Sec. 3-21. Fee payable prior to sale.

Any permittee or licensee who sells an alcoholic beverage without first having paid any applicable city fees or without having submitted an administratively complete application pursuant to this article and any rules promulgated thereunder commits a misdemeanor punishable by a fine of not less than $10.00 nor more than $200.00.
(Code 1968, § 4-15; Ord. No. 81-1237, § 1, 6-30-81; Ord. No. 2025-742, § 5, 8-27-2025)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

Sec. 3-22. Refunds.

(a) No permittee or licensee may obtain a refund of any city fee paid pursuant to this article, except as follows:

(1) The permittee or licensee is prohibited from continuing in business at the premises to which the fee appertains because of a local option election, provided that in such event the refund shall be limited to the proportionate amount of the city fee covering the unexpired term of the permit or license; or

(2) The Texas Alcoholic Beverage Commission decides to allow the permittee or licensee to withdraw its application and refunds the Texas Alcoholic Beverage Commission permit or license payment; or

(3) The permit or license was issued through error on the part of city personnel. For purposes of this item, an error on the part of both city personnel and the permittee or licensee, such as the request for and issuance of a duplicate permit or license is excluded. Only errors that are exclusive to city personnel are included.

Except as provided in item (1) above, no refund shall ever be allowable where a Texas Alcohol Beverage Commission licensed or permitted premises has been operated for any length of time under authority of the fee receipt.

(b) In order to receive a refund, the fee receipt must be surrendered to the tax assessor and collector. If any business was conducted under the permit or license, the refund shall be prorated on the basis of the date of surrender of the fee receipt.

(c) Except in the circumstance described in item (3) of subsection (a), there shall be imposed the refund processing fee stated for this provision in the city fee schedule. If the amount of the refund to be given is less than the amount of the refund processing fee, then no refund shall be made.

(d) In the circumstance described in item (3) of subsection (a), the fee shall be refunded in full. (Code 1968, § 4-16; Ord. No. 81-1237, § 1, 6-30-81; Ord. No. 94-61, § 1, 1-19-94; Ord. No. 2011-1168, § 13, 12-14-2011)

[The next page is 325]

Chapter 4

AMBULANCES*

Sec. 4-1. Definitions.

The following words, terms, and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Ambulance means a motor vehicle used, designed or redesigned, and equipped for the primary purpose of the transportation of sick or injured persons.

Ambulance service means a trip made by an ambulance to transport a sick or injured person from place to place under other than emergency circumstances.

Ambulance operator means the person holding a city ambulance permit.

Department means the Houston Health Department.

Direct call means a request for ambulance service made by telephone or other means directly to an ambulance operator, his agents or employees.

Driver's permit means a city emergency ambulance driver's permit.

Emergency ambulance means any motor vehicle used, designed or redesigned, and equipped for the primary purpose of transporting sick or injured persons under emergency circumstances, and the rendering of first aid or the performance of rescue work, or both, under such circumstances.

Emergency circumstances means the existence of circumstances in which the element of time in expeditiously transporting a sick or injured person for medical or surgical treatment is essential to the health or life of such person, and in which rescue operations or competent first aid or both at the place of emergency may be essential to the health or life of such person.

Emergency ambulance service means a trip made by an emergency ambulance under emergency circumstances to the place of emergency, performance of any necessary rescue operations, rendering of any necessary first aid assistance, and the trip to the hospital or other place for medical attention. An ambulance is being operated in emergency ambulance service if all or any part of the above-described trip to the place of emergency and any subsequent trip to the hospital is made on the streets within the corporate limits of the city. An emergency ambulance shall be considered to be rendering emergency ambulance service when it is responding to a call for emergency assistance even though, upon arrival at the place of emergency, it is found that the call was falsely made or that no further emergency ambulance assistance is required or when it is responding to a call for routine ambulance service and during such trip emergency circumstances develop.

Emergency medical services means services used to respond to an individual's perceived need for immediate medical care and to prevent death or aggravation of physiological or psychological illness or injury.

Mobile Stroke Unit ("MSU") means an ambulance equipped with specialized stroke treatment equipment including laboratory and telemedicine capabilities in order to administer neurological emergency treatment before arrival at the hospital.

(Code 1968, § 5-1; Ord. No. 70-1518, § 1, 9-16-70; Ord. No. 2015-820, § 5, 8-26-2015; Ord. No. 2019-142, § 2, 3-20-2019; Ord. No. 2025-722, § 2, 8-27-2025)

Sec. 4-2. Ambulance advisory committee.

An ambulance advisory committee is hereby created, to consist of the director of public health or in his absence a representative appointed by the director; the chief of the fire department, or

*__Cross references—__Health generally, Ch. 21; traffic, Ch. 45.

in his absence a representative appointed by him; and a third member to be selected by the Harris County Medical Society, or in his absence, an alternate member selected by such society. It shall be the duty of such committee to recommend to the city council, specifications for construction, equipment and numbers of emergency ambulances to be purchased by the city (which specifications shall include the essential equipment referred to in section 4-6 below). The committee shall meet at least two times per year. The committee shall submit to the city council from time to time, its recommendations as to new specifications for emergency ambulances and its recommendations as to revisions of this chapter.
(Code 1968, § 5-2; Ord. No. 70-1518, § 19, 9-16-70; Ord. No. 2015-820, § 33, 8-26-2015)

Sec. 4-3. City emergency ambulance driver's permit.

(a) It shall be unlawful for any person other than a member of the fire department assigned to drive a fire department ambulance to operate or drive an emergency ambulance upon the public streets of the city unless the driver thereof shall first have obtained a city emergency ambulance driver's permit.

(b) An application for such permit shall be submitted to the health officer upon a form or forms to be provided by the health officer, which outline the current requirements. Such application must be signed and sworn to before a notary public. The applicant shall have the following qualifications:

(1) The applicant must be 18 years of age or older; and

(2) The applicant must be the holder of a Class C Texas driver's license or an equivalent driver's license issued by another state.

(c) The health officer shall investigate the application and determine whether the applicant meets the qualifications required for the issuance of an emergency ambulance driver's permit. If the applicant is so qualified, the health officer shall issue such a permit, and if the applicant is not qualified, the health officer shall notify the applicant in writing to the applicant's address as given in the application.

(d) A permit issued under this section shall be valid for two years from the date of issuance.

(e) The fee for a permit required by this section is stated for this provision in the city fee schedule, payable at the time the application for said permit is submitted to the health officer.
(Code 1968, § 5-3; Ord. No. 70-1518, § 2, 9-16-70; Ord. No. 71-698, § 1, 4-7-71; Ord. No. 71-736, § 1, 4-14-71; Ord. No. 78-2404, § 1, 12-5-78; Ord. No. 82-1109, § 1, 7-13-82; Ord. No. 05-939, §§ 1, 2, 8-3-05; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2025-722, § 3, 8-27-2025)

Sec. 4-4. Personnel required during operation of emergency ambulances.

It shall be unlawful to operate or drive or cause to be operated or driven an emergency ambulance on a public street of the city when furnishing emergency ambulance service, including emergency ambulances operated by the fire department, unless there is aboard such emergency ambulance on each trip at least two persons, one of whom is currently a state-certified Emergency Medical Technician (EMT). The holder of such a certificate must be the person attending the patient while such patient is being transported.
(Code 1968, § 5-4; Ord. No. 70-1518, § 3, 9-16-70; Ord. No. 78-2404, § 2, 12-5-78; Ord. No. 2025-722, § 4, 8-27-2025)

Sec. 4-5. Structural and licensing requirements.

No emergency ambulance shall be operated on the public streets of the city unless it is free of structural defects and unless it has no serious impairment of any safety feature resulting from an accident or otherwise. No emergency ambulance shall be operated upon the streets of the city for the purpose of furnishing emergency ambulance service unless it complies with all applicable provisions of chapter 773 of the Texas Health and Safety Code and is operated pursu-

ant to an emergency medical services provider license issued by the Texas Department of State Health Services.
(Code 1968, § 5-5; Ord. No. 70-1518, § 4, 9-16-70; Ord. No. 2025-722, § 5, 8-27-2025)

Sec. 4-6. Required equipment.

(a) No emergency ambulance or transfer ambulance shall be operated upon the streets of the city for the purpose of furnishing ambulance service unless such ambulance is equipped as required by section 157.11 of Title 25 of the Texas Administrative Code, a copy of which shall be filed in the office of the city secretary by the health officer.

(b) In addition to the equipment requirements referenced in subsection (a) of this section, each emergency ambulance or transfer ambulance operated upon the streets of the city for the purpose of furnishing ambulance service shall be equipped in compliance with the department's approved medical equipment list, specifying the necessary equipment, medications, and quantities of each required aboard each emergency ambulance or transfer ambulance offering service within the city. To the extent of any inconsistency between the minimum equipment requirements stated in Title 25 of the Texas Administrative Code and the department's medical equipment list, the more restrictive requirement shall govern. Modifications to the standards for specialized units are allowed, as long as these units are not used for routine operations. The equipment list shall be reviewed and approved annually by the emergency medical services system physician medical director, the fire department, and the department's emergency medical services (EMS) program.
(Code 1968, § 5-6; Ord. No. 70-1518, § 5, 9-16-70; Ord. No. 2025-722, § 6, 8-27-2025)

Sec. 4-7. Vehicle inspections.

The health officer shall cause all emergency ambulances, including those operated by the fire department, to be inspected before being placed in service and thereafter annually, as well as on a spot inspection basis. In the event an emergency ambulance fails to pass inspection, the health officer shall notify the emergency ambulance operator or the chief of the fire department to correct the defects noted in the inspection and, after such notification, the health officer shall cause such ambulance to be reinspected for compliance. If, upon such reinspection, the defects noted in the original inspection have not been corrected, the vehicle decals shall be removed from the ambulance by the health officer and shall only be replaced upon such ambulance after the defects have been corrected. Inspections provided for herein may also be made by any police officer of the city or any authorized employee of the department of administration and regulatory affairs of the city.
(Code 1968, § 5-7; Ord. No. 70-1518, § 6, 9-16-70; Ord. No. 79-1817, § 1, 10-23-79; Ord. No. 05-939, § 3, 8-3-05; Ord. No. 08-52, § 9, 1-16-08, eff. 1-26-08)

Sec. 4-8. Decals and display of name.

(a) When an ambulance operator's permit is issued or renewed under this article, the holder of the operator's permit shall present each ambulance that he proposes to operate thereunder to the health officer for inspection pursuant to the standards adopted in section 4-5, and if the operator proposes to use the ambulance in either or both of the instances described in section 4-9(b)(3) or (4), then for additional inspection for compliance with section 4-6. Upon the successful completion of such inspection, the health officer will furnish the permittee two decals for each ambulance which has been inspected and is authorized to be used in service. One such decal shall be affixed to the front windshield at the lower right (passenger side) corner; the other such decal shall be affixed to the rear bumper or to a similar location in a manner as to be readily visible from a following vehicle. The color of such decals shall be changed annually. Additionally, all emergency ambulances shall have the name of the ambulance service prominently displayed on both exterior sides.

(b) It shall be unlawful to operate an ambulance on the streets of the city without having such decals affixed and, in the case of an

emergency ambulance, without having the name of the ambulance service displayed as required by this section.
(Code 1968, § 5-8; Ord. No. 70-1518, § 7, 9-16-70; Ord. No. 71-698, § 2, 4-7-71; Ord. No. 71-736, § 2, 4-14-71; Ord. No. 79-1817, § 2, 10-23-79)

Sec. 4-9. Persons authorized to engage in emergency ambulance service.

(a) The operation of emergency ambulances on the streets of the city for the furnishing of emergency ambulance service is hereby declared to be a governmental function of the city to be performed by the fire department in accordance with the terms of this chapter. It shall be unlawful for any person or persons, other than members of such fire department, or emergency ambulance service provided by a mobile stroke unit or other emergency ambulance operated by an ambulance operator pursuant to an agreement with the city, while driving emergency ambulances operated by the fire department, to furnish or to attempt to furnish emergency ambulance service or to operate or drive or cause to be operated or driven any ambulance on the streets of the city for the purpose of furnishing emergency ambulance service.

(b) It is an affirmative defense to prosecution under subsection (a) that:

(1) The person operating an ambulance upon responding to a direct call for ambulance service determined that an emergency existed requiring the sick or injured person to be transported with all practical speed for medical treatment and attention and obtained permission to operate such ambulance in emergency ambulance service; from the fire department dispatcher;

(2) That the emergency ambulance service was provided by an ambulance based outside the city when not in use and operated by an ambulance company having an established place of business and permanent address outside the city, provided;

a. The sick or injured person was picked up outside the corporate limits of the city and transported to a hospital within the city; and

b. The ambulance performing such emergency ambulance service was, at the time, duly licensed and operated in compliance with all applicable city and state regulations; and

c. The driver of such ambulance complied with all speed and other traffic regulations of the city and the state.

(3) That the person operating an ambulance within the city was performing a service under contract of maintaining an ambulance at a particular location, or event, for the purpose of transporting sick or injured persons for medical or hospital treatment, and determined that a sick or injured person at such location or event required immediate hospital or medical attention and obtained permission to operate such ambulance in emergency service from the fire department dispatcher.

(4) That the emergency ambulance service was provided at the request of the fire department dispatcher due to unavailability of a city ambulance.

In each instance set out in (1) through (4) above, the driver or operator of such ambulance shall prior to commencement of each emergency ambulance run, notify the fire department dispatcher of the conditions requiring the operation of his vehicle in emergency ambulance service, the location from which he is proceeding, and the location to which he is proceeding under emergency ambulance service and obtain permission for such trip from the dispatcher. Each ambulance being operated under paragraphs (1) and (2) above shall comply with the requirements of this chapter regarding emergency ambulances insofar as traffic safety is concerned. Each ambulance being operated under the provisions of paragraphs (3) and (4) above shall comply with all requirements of this chapter regarding emergency ambulances of every nature. Upon arriving at his destination, the ambulance driver or ambulance operator will again notify the fire department dispatcher that he has arrived and is no longer in emergency ambulance service.

When the driver or operator of an ambulance is responding to a direct call for ambulance service, either under emergency conditions or otherwise, he shall inform the fire department ambulance dispatcher of the location of such call and such information as he may have concerning the circumstances surrounding the request for service, and if the fire department ambulance dispatcher reports that a fire department ambulance is either on route to the same location or has arrived there and instructs such ambulance driver or operator not to respond to such call, it shall be unlawful for such driver or operator to so respond when instructed not to do so by the fire department ambulance dispatcher.
(Code 1968, § 5-9; Ord. No. 70-1518, § 8, 9-16-70; Ord. No. 71-698, § 3, 4-7-71; Ord. No. 71-736, § 3, 4-14-71; Ord. No. 2025-722, §§ 7, 8, 8-27-2025)

Sec. 4-10. General authorization.

Nothing herein shall prohibit any person owning an ambulance duly licensed and operated in accordance with section 157.11 of Title 25 of the Texas Administrative Code from operating such ambulance on the public streets for the purpose of furnishing ambulance service only; provided, however, such person shall secure an operator's permit in compliance with the provisions of sections 4-15 and 4-16 hereof and shall cause his ambulance to have been inspected and be in display of a medallion issued in compliance with section 4-8 hereof. The driver of any such ambulance shall comply with all of the traffic laws of the state and ordinances of the city, including this chapter, in furnishing such ambulance service. The operator thereof shall not permit such ambulance to be used for emergency ambulance service unless all requirements of this chapter regarding emergency ambulance service have been complied with.
(Code 1968, § 5-10; Ord. No. 70-1518, § 9, 9-16-70; Ord. No. 71-736, § 4, 4-14-71; Ord. No. 2025-722, § 9, 8-27-2025)

Cross reference—Traffic, Ch. 45.

Sec. 4-11. Use of signs or flashing emergency lights.

The use of signs or flashing emergency lights on an ambulance upon the public streets of the city shall be unlawful except when furnishing emergency ambulance service in accordance with the terms of this chapter.
(Code 1968, § 5-11; Ord. No. 70-1518, § 10, 9-16-70)

Sec. 4-12. Patient transport status; solicitation of business prohibited.

(a) A patient's transport status shall be determined solely on the basis of the medical needs of the patient in accordance with the most current fire department guidelines as approved by the physician medical director. Under no circumstances shall the fact that a person is or appears to be indigent and unable to pay the cost of such service be considered in such determination.

(b) It shall be unlawful for any person, while operating or accompanying an emergency ambulance on the public streets or easements of the city, to solicit the business of transporting the sick or injured.
(Code 1968, § 5-13; Ord. No. 70-1518, § 12, 9-16-70; Ord. No. 2010-525, § 2, 6-30-2010)

Sec. 4-13. Charges.

(a) *Fees.* to partially defray the costs incurred by the city when the fire department provides emergency medical services, the following fees are hereby established:

(1) **Treatment-and-transport fee,** in the amount stated in the city fee schedule, shall be charged for the transportation of a patient by fire department ambulance from the scene of patient encounter to a hospital or other place approved by the EMS system director appointed pursuant to section 2-6 of this Code for medical attention.

(2) **Mileage fee,** at the rate stated in the city fee schedule, shall be charged for each mile or any part of a mile a patient is transported. Mileage fees are charged in addition to the treatment-and-transport fee.

(3) **Field termination response fee,** in the amount stated in the city fee schedule, shall be charged for activities associated with a patient not transported because of death following an unsuccessful resuscitation attempt.

(4) **Treatment-without-transport fee,** in the amount stated in the city fee schedule, shall be charged for a patient who receives care requiring assessment and therapeutic intervention but is not transported.

(5) **Lift response fee,** in the amount stated in the city fee schedule, shall be charged for the fourth and each successive response for the same patient in any period of twelve months that includes only activities associated with a patient not transported or treated other than returning a patient to an upright or comfortable position and the absence of any emergency circumstances.

All fees shall be payable by or on behalf of the patient served except as provided in this section.

(b) *Billing.* The city tax assessor-collector shall be responsible for the billing and collection of the applicable fees. The fire department shall submit to the tax assessor-collector a record of each instance in which emergency medical service or ambulance transportation service is provided.

(c) *Charity care.* The director of the department of finance or her designee shall promulgate all forms, policies and guidelines and establish procedures necessary to establish eligibility of uninsured patients for charity care and/or financial assistance and to implement and enforce the provisions of this section. The policy for charity care and/or financial assistance must:

(1) Adhere to the charity-care principles of the Healthcare Financial Management Association Principles and Practices Board Statement 15 (December 2012);

(2) Be in compliance with any standards or limitations required by Rule § 355.8210(b)(3), Texas Administrative Code, Title 1, as amended from time to time, and any standards or limitations required by the federal or state agencies providing reimbursement to the city for the costs of uncompensated charity care for the fire department's provision of emergency medical services and ambulance services; and

(3) Exclude bad debt, courtesy allowances and discounts, if any, given to patients who are not eligible for charity care or financial assistance from the city.

The director of the department of finance or her designee shall apply a credit to the account of a patient that the director determines finally eligible for charity care and/or financial assistance. The credit amount shall be in accordance with the policies and guidelines promulgated under this subsection.

(d) No provision in this section shall be construed to authorize the fire department, under any circumstances, to refuse emergency assistance to any person upon the grounds that the person is indigent or unable to pay for the service.
(Code 1968, § 5-15; Ord. No. 70-1518, § 14, 9-16-70; Ord. No. 76-2031, § 1, 11-23-76; Ord. No. 83-1318, § 1, 8-23-83; Ord. No. 86-1616, § 1, 9-10-86; Ord. No. 91-1178, § 1, 8-14-91; Ord. No. 93-918, § 1, 7-28-93; Ord. No. 96-665, § 7, 6-26-96; Ord. No. 97-1003, § 1, 8-20-97; Ord. No. 01-564, § 11, 6-20-01; Ord. No. 02-528, § 14a., 6-19-02; Ord. No. 2010-892, §§ 2—4, 11-17-2010; Ord. No. 2012-396, § 5-2-2012; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2019-142, § 3, 3-20-2019; Ord. No. 2019-1014, §§ 2, 3, 12-11-2019)

Sec. 4-14. Uncollectible transport account.

There is hereby created a list of ambulance accounts to be entitled "uncollectible transports." The tax assessor-collector of the city shall have the power to place ambulance bills on the uncollectible transports list if he determines such ambulance bills to be uncollectible.

An "uncollectible transport" shall be defined as any of the following:

(1) Emergency ambulance service provided a patient whose name and/or address is unknown, or upon whom there is

otherwise insufficient information to locate the patient, or a patient using a false name and/or, address, or a patient who is a minor and whose parents or next of kin are unknown, or there is otherwise insufficient information to locate the parents or next of kin.

(2) Emergency ambulance service provided a patient who is in the custody of, or placed under arrest by, a police officer of the city.

(3) Emergency ambulance service provided at least six months previously and upon which a diligent collection effort has been made.

(Code 1968, § 5-15.1; Ord. No. 74-1778, § 1, 10-8-74)

Sec. 4-15. Ambulance service operator's permit, insurance required.

Any person operating an ambulance service upon the streets of the city must secure a permit therefor from the health officer. Such applicant shall provide evidence to the health officer that he has in full force for such calendar year a public liability insurance policy on each ambulance, such insurance policy to be issued by an insurance company which is authorized by law to do business in the state. Such policy shall provide liability insurance in the amount required by section 157.11 of Title 25 of the Texas Administrative Code. Such insurance policy shall not contain a passenger liability exclusion. Each policy shall contain a provision obligating the insurer to give to the health officer written notice of cancellation not less than ten days prior to the date of any cancellation.

(Code 1968, § 5-16; Ord. No. 70-1518, § 15, 9-16-70; Ord. No. 76-235, § 1, 2-11-76; Ord. No. 2025-722, § 10, 8-27-2025)

Sec. 4-16. Fees for operator's permit, decals; term of decals.

There shall be a fee for the ambulance operator's permit required pursuant to section 4-15 of this Code, and all permits issued under this chapter shall be valid for one year from the date of issuance. Such permits may be renewed after the termination date of the initial permit and during that same year by paying a prorated permit fee. There shall also be a charge for decals required pursuant to section 4-8 of this Code for each pair of decals issued, renewed or replaced. Decals expire concurrently with the ambulance operator's permit under which they are issued. Such fees and charges shall be collected by the department and transferred to the department of administration and regulatory affairs, together with an accounting of the permits and pairs of decals for which same were collected. The fees and charges are stated for this provision in the city fee schedule.

(Code 1968, § 5-17; Ord. No. 70-1518, § 16, 9-16-70; Ord. No. 71-698, § 4, 4-7-71; Ord. No. 71-736, § 5, 4-14-71; Ord. No. 76-235, § 2, 2-11-76; Ord. No. 79-1817, § 3, 10-23-79; Ord. No. 82-1107, § 2, 7-13-82; Ord. No. 05-939, § 4, 8-3-05; Ord. No. 08-52, § 10, 1-16-08, eff. 1-26-08; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2015-820, § 6, 8-26-2015)

Sec. 4-17. Penalty for violations.

Whenever in this chapter an act is prohibited or is made or declared to be unlawful or an offense or misdemeanor, or whenever in this chapter the doing of any thing or act is required or the failure to do any thing or act is prohibited, the violation of the provision shall be and constitute a misdemeanor punishable, upon conviction, by a fine of not more than $2,000.00. Each violation shall constitute and be punishable as a separate offense. Prosecution or conviction under this provision is cumulative of and shall never be a bar to any other civil or administrative remedy provided or allowed in this chapter or by law. In addition, the city attorney is hereby authorized to file suit in any court of competent jurisdiction to enjoin any person from violating or causing to be violated any of the provisions of this chapter.

(Code 1968, § 5-18; Ord. No. 70-1518, § 18, 9-16-70; Ord. No. 92-1449, § 3, 11-4-92; Ord. No. 05-939, § 5, 8-3-05)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

Sec. 4-18. Revocation or suspension of permits, licenses and certificates.

Any permit, license or certificate issued pursuant to this chapter shall be subject to suspension or revocation upon the finding pursuant to a public hearing conducted by the health officer that the holder of such permit, license or certificate has failed to comply with the applicable provisions of this chapter or that the holder no longer meets the requirements which pertain to the issuance thereof, provided that the holder of such permit, license or certificate shall be given prior notice of the date, time and place of the hearing setting forth the grounds upon which the suspension or revocation is based and shall be afforded an opportunity to appear in person or through counsel to present evidence and to cross examine all witnesses appearing at such hearing.

Sec. 4-19. Disposition of certain fees.

All fees collected under sections 4-3 and 4-16 of this Code shall be allocated to the department to fund the inspection of ambulances and the permitting of ambulance operators as required by this chapter and other permitting, inspection, monitoring, controlling, education and enforcement activities pertaining to environmental health services of the department.
(Ord. No. 05-939, § 6, 8-3-05; Ord. No. 2013-617, § 14, 6-19-2013; Ord. No. 2015-820, § 7, 8-26-2015)

Sec. 4-20. Rules and regulations.

Consistent with the other provisions of this article, the director may promulgate rules and regulations to administer provisions of this ordinance. The rules and regulations shall not conflict with any applicable provisions of this Code. A copy of the rules and regulations shall be maintained for public inspection in the offices of the said director and city secretary, and copies may be purchased at the fees prescribed by law.
(Ord. No. 2025-722, § 11, 8-27-2025)

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Chapter 5

AMUSEMENTS*

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Art. II.	**Carnivals, §§ 5-16—5-45**
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ARTICLE I. BUNGEE CORD JUMPING

Sec. 5-1. Definitions.

As used in this article the following terms, phrases and words shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

Bungee cord jumping means the sport, activity, or practice of jumping, falling, stepping out of, dropping, or otherwise being released into the air while attached or fastened to any type of cord or rope or other device, including cords made of rubber, latex, or other elastic-type material, whether natural or synthetic, whereby the cord stops, lengthens or shortens the fall of any person, allowing the person to bounce up and down, ultimately intending to bring the person to a stop at a point above the ground surface.

Enterprise means any establishment that provides the services or facilities required for engaging in bungee cord jumping or reverse bungee cord jumping or the demonstration or exhibition thereof.

Reverse bungee cord jumping means the sport, activity, or practice of attaching or fastening one's self to any type of cord or rope or other device, including cords specified in the definition of bungee cord jumping above, whereby a person is located below a device or structure or machine from which a cord or rope is suspended or attached and is released to cause the person to be propelled, catapulted, or otherwise launched out of a fixed position into the air, allowing the person to bounce up and down, ultimately intending to bring the person to a stop at a point above the ground surface.
(Ord. No. 92-1480, § 2, 11-10-92)

Sec. 5-2. Bungee cord jumping and reverse bungee cord jumping prohibited.

It shall be unlawful for any person to engage in bungee cord jumping or reverse bungee cord jumping in any form whatsoever, or for any person to own, operate or conduct any enterprise.
(Ord. No. 92-1480, § 2, 11-10-92)

Sec. 5-3. Penalty.

Any person who violates any provision of this article shall, upon conviction, be fined an amount not less than $200.00, nor more than $500.00.

*__Charter reference__—Power of city to regulate amusements, Art. II, § 16(b).

__Cross references__—The Houston Festival, § 12-81 et seq.; special events, § 25-1 et seq.; parks and recreation, Ch. 32; use of police academy driving track by private persons, § 34-36; street functions, § 40-27; tax on coin-operated machines, § 44-82 et seq.

__State law reference__—Power of city to regulate amusements, Vernon's Ann. Civ. St. art. 1175(22).

Each day that any such violation continues shall constitute and be punishable as a separate offense.
(Ord. No. 92-1480, § 2, 11-10-92)

Secs. 5-4—5-15. Reserved.

ARTICLE II. CARNIVALS*

DIVISION 1. GENERALLY

Sec. 5-16. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Amusement ride* shall mean any device that carries or conveys passengers upon, along, around, or over a fixed or restrictive route or course or within a defined area, for the purpose of giving its passengers amusement, pleasure, thrills, or excitement.

(2) *Carnival* shall mean any traveling enterprise which offers the use of one or more amusement rides.

(Code 1968, § 36-1; Ord. No. 81-1590, § 1, 8-18-81)

Secs. 5-17—5-25. Reserved.

DIVISION 2. PERMIT

Sec. 5-26. Required.

No person shall permit a carnival to be placed on property under his control or place or operate any carnival on any property within the city unless a permit has been issued by the city for the operation of the carnival.
(Code 1968, § 36-2; Ord. No. 81-1590, § 1, 8-18-81)

Sec. 5-27. Application.

To obtain a permit for the operation of a carnival, the applicant shall file an application therefor with the department of administration and regulatory affairs on a form furnished by the department for that purpose. The application information shall include:

(1) The name and address of the person or persons under whose control the carnival will be operated.

(2) The street address of the site on which the carnival is to be operated.

(3) The number and types of amusement rides which will be operated at that location.

(4) Whether there will be any temporary electrical, gas, water or sewer connections to any equipment or fixtures associated with the carnival and a description of the connections that will be made.

(5) Whether there will be any food offered for sale as part of or in association with the carnival.

(6) Whether there will be any tents and the dimensions thereof.

(7) The date on which the carnival will be placed on the property and the date it will be removed therefrom.

(8) The date on which the carnival will be first operated on the property and the last date the carnival will be operated at that location.

(9) The name of the owner of the real property upon which the carnival will be operated; if the applicant is not the owner thereof he shall attach a lease or other written evidence of his authority to use the property to the application.

(Code 1968, § 36-3; Ord. No. 81-1590, § 1, 8-18-81; Ord. No. 08-52, § 11, 1-16-08, eff. 1-26-08)

Sec. 5-28. Issuance.

Upon the filing of an application pursuant to this division and the payment of the permit fee, the director of administration and regulatory affairs or his designee shall issue a permit for the operation of the carnival at the location and for the dates specified in the application. Upon issuance of a permit for a carnival, the director of administration and regulatory affairs or his des-

*__Cross reference—__Noise generally, Ch. 30.

ignee shall notify the fire marshal, the building official, the planning official, and the health officer thereof.
(Code 1968, § 36-5; Ord. No. 81-1590, § 1, 8-18-81; Ord. No. 90-635, § 13, 5-23-90; Ord. No. 93-514, § 10, 5-5-93; Ord. No. 98-613, § 13, 8-5-98; Ord. No. 04-1075, § 2, 10-20-04; Ord. No. 08-52, § 12, 1-16-08, eff. 1-26-08)

Sec. 5-29. Fee and term.

The fee for a permit for the operation of a carnival is stated for this provision in the city fee schedule. The permit shall be valid only for the location and dates specified on the permit.
(Code 1968, § 36-4; Ord. No. 81-1590, § 1, 8-18-81; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 5-30. Effect.

Any carnival and any operator thereof must meet and comply with all applicable requirements of law, and the issuance of a permit under this division shall not excuse any person from obtaining any other permit or license or inspection required under this Code, the Construction Code or the Fire Code.
(Code 1968, § 36-6; Ord. No. 81-1590, § 1, 8-18-81; Ord. No. 02-399, § 12, 5-15-02)

Secs. 5-31—5-45. Reserved.

ARTICLE III. DANCE HALLS*

DIVISION 1. GENERALLY

Sec. 5-46. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings provided below:

Alcoholic beverage means any beverage containing more than one-half of one percent of alcohol by volume that is capable of use for beverage purposes, either alone or when diluted.

Dance hall means any room, place, space or building where a public dance is authorized to be conducted, including but not limited to a nightclub.

Dance school means any room, place, space, building or academy in which dance instruction is provided for hire and used by an individual, group, or association for the purpose of educating and instructing its patrons in dance. The term does not include any room, place, space, building, or academy which functions, in whole or in part, as a nightclub.

Director means the director of the department of administration and regulatory affairs or the director's designee.

Dress code means a set standard of rules specifying the required manner of dress an attendee must comply with for entry.

Licensee means any person who holds a license issued pursuant to this article.

Minor means a person under 18 years of age whose disabilities as a minor have not been removed by a court of competent jurisdiction.

Nightclub means any room, space, structure, or building open to the public where:

(1) Food or any alcoholic beverage is served or consumed on the premises, including restaurants and cafes; and

(2) Patrons are provided with a designated area for dancing or are permitted to dance.

Operator or *dance hall operator* means the on-site representative(s) who conducts, manages, maintains or controls, either directly or indirectly, any dance hall as defined and designated in this article.

Police chief means the chief of police or the police chief's designee.

Private dance means any dance to which admission is granted to members of a club,

*__Editor's note—__Ord. No. 2013-613, § 2(Exh. A), adopted June 19, 2013, amended Ch. 5, Art. III, in its entirety to read as herein set out. Formerly said article pertained to similar subject matter.

Cross references—Noise generally, Ch. 30; playing of radios, phonographs, etc., § 30-3.

group, or similar organization, and their invited guests and from which the general public is excluded, including any dance held:

(1) At any private residence;

(2) At a members-only private club (i.e. country club, yacht club, etc.); or

(3) At a facility that conducts private, invitation-only events where dancing may occur (i.e. wedding reception halls).

Public dance means any dance conducted in a dance hall to which the general public may gain admission by payment of a fee, purchase, possession or presentation of a ticket or token, or without payment of a fee, where dancing by the general public is conducted.

Security officer shall have the meaning ascribed in section 1702.002 of the Texas Occupations Code.

Teenage dance hall means any room, place, space or building where a public dance is conducted exclusively for persons under the legal age established by state law for purchase and consumption of alcoholic beverages and where the sale, consumption or possession of alcoholic beverages is prohibited.

(Code 1968, § 36-33; Ord. No. 98-986, § 2, 11-4-98; Ord. No. 09-398, § 2, 5-13-09; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013; Ord. No. 2025-619, § 2, 7-16-2025)

Sec. 5-47. Classification.

Dance halls are hereby designated and rated by the following classes:

(1) *Class A.* Nightclubs and all dance halls under the terms of this article not otherwise specifically classified are designated as Class A dance halls.

(2) *Class B.* Teenage dance halls are designated as Class B dance halls.

(Code 1968, § 36-34; Ord. No. 09-398, § 3, 5-13-09; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-48. Compliance with construction code and fire code.

(a) All dance halls shall be constructed and maintained in conformity with the Construction Code and the Fire Code, except as otherwise provided in subsection (b) of this section.

(b) Any building located in an area annexed to the city that was originally constructed in compliance with the laws applicable in the area prior to its annexation may be operated as a dance hall even though the floor space therein exceeds the maximum area specified in the Building Code if the dance hall meets all other applicable standards and requirements specified in the Construction Code relating to stairs, exits, and occupant loads and all applicable provisions of the Fire Code.

(c) For the purpose of the enforcement of this section, police department peace officers and any inspector designated by the director shall be deemed deputies of the fire marshal and any of the powers and duties herein given to the fire marshal may be exercised by any such officers and inspectors on behalf of the fire marshal.

(Code 1968, § 36-35; Ord. No. 02-399, § 13, 5-15-02; Ord. No. 09-398, § 4, 5-13-09; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-49. Marking requirement for dance floor.

Any elevated dance floor area shall be designated by a two-inch band of highly visible paint or tape or other marking defining the outermost boundaries of the dance floor.

(Code 1968, § 36-36; Ord. No. 71-2365, § 1, 12-21-71; Ord. No. 09-398, § 5, 5-13-09; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-50. Reserved.

Sec. 5-51. Minors in Class A halls.

(a) It is unlawful for any minor to enter or be in attendance in a Class A dance hall between the hours of 8:00 p.m. and 8:00 a.m., unless the minor is accompanied by the minor's parent, spouse or legally appointed guardian.

(b) It is unlawful for the licensee or operator of a dance hall to suffer, allow or permit a minor to enter or be in attendance in the dance hall between the hours of 8:00 p.m. and 8:00 a.m., unless the minor is accompanied by the minor's parent, spouse or legally appointed guardian.

(c) It is unlawful for any person who is not the parent, spouse or legally appointed guardian of a minor to represent himself as the parent, spouse or legally appointed guardian of the minor for the purpose of enabling the minor to enter or remain in a dance hall.
(Code 1968, § 36-39; Ord. No. 98-986, § 3, 11-4-98; Ord. No. 09-398, § 6, 5-13-09; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-52. Suffering or permitting illegal conduct.

It is unlawful for the licensee or operator of a dance hall to permit or suffer any activity or conduct therein that is illegal, including without limitation, public intoxication, prostitution, promotion of prostitution, gambling, obscenity, disorderly conduct, or the consumption of alcohol in violation of state law.
(Code 1968, § 36-40; Ord. No. 99-1085, § 3, 10-6-99; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-53. Sleeping rooms prohibited.

No dance hall shall be connected to any room or rooms equipped or fitted as sleeping rooms that are open to or let to the patrons of such dance hall, or to the public, with or without a charge being made therefor, except rooms used as living quarters for dance hall employees only.
(Code 1968, § 36-41; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-54. Toilet facilities.

Each dance hall shall be equipped with separate and convenient toilet facilities for each sex.
(Code 1968, § 36-42; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-55. Employees not to mingle with patrons.

Waiters, waitresses or entertainers are not permitted to eat, drink, dance or fraternize with patrons in any dance hall.
(Code 1968, § 36-44; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-56. Special regulations for teenage dance halls.

(a) In addition to the other provisions of this article, a teenage dance hall is governed by the provisions of this section.

(b) Teenage dance halls shall not operate between the hours of 12:00 midnight and 12:00 noon; provided, however, on the thirty-first day of December of each year, such dance halls may operate until 1:00 a.m. on the first day of January of the succeeding year.

(c) On nights preceding a regular school day, no person under 17 years of age shall be permitted to remain in a teenage dance hall after 8:00 p.m. unless accompanied by a parent or legal guardian. On nights preceding a school holiday or during school vacation periods, no person under 15 years of age shall be permitted to remain in a teenage dance hall after 8:00 p.m. unless accompanied by a parent or legal guardian. For purposes of this subsection, school days, school holidays, and school vacation periods shall be determined on the basis of the regular classroom attendance schedule for the public school district in which the dance hall is located.

(d) It is the duty of the operator or licensee of a teenage dance hall to ascertain the correct legal age of all persons seeking admission to such facility, and such persons who do not meet the age requirements of this article shall be excluded from admission. All persons over 20 years of age shall be refused admission to a teenage dance hall unless they are a parent or legal guardian accompanying a minor to a teenage dance hall.

(e) The sale, consumption, or possession of any alcoholic beverages on the premises of a teenage dance hall is prohibited, and no one

under the influence of any alcoholic beverage or showing any evidence thereof shall be admitted to such premises.

(f) Patrons shall be admitted to a teenage dance hall only once in a 12-hour period and shall not be granted readmission privileges under any circumstances .

(g) The operator or licensee shall employ not less than two security officers for each 100 persons in attendance to patrol the premises of a teenage dance hall and adjoining areas and to prevent disorder.
(Code 1968, § 36-45; Ord. No. 09-398, § 7, 5-13-09; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-57. Right of entry.

Free access and entrance into all dance halls shall at all times be granted to all law enforcement officers and deputies of the fire marshal in pursuit of their official duties.
(Code 1968, § 36-46; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-58. Compliance with article.

The licensee and operator of any dance hall shall not permit the violation of any of the terms of this article, and it is the duty of the licensee and operator to ensure compliance with the terms of this article.
(Code 1968, § 36-47; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-59. Exemptions.

The provisions of this article do not apply to:

(1) Private dances;

(2) Dances conducted on property owned by a governmental entity;

(3) Dances conducted under the supervision of school authorities for school children at public or private schools;

(4) Public dances conducted by entities recognized as a non-profit organizations;

(5) Public dances conducted by organizations that are exempt from taxation under section 501(c)(3) of the Internal Revenue Code;

(6) Dance schools; or

(7) Hotels or motels that contain a dance hall the use of which is restricted to registered guests of such establishments and their invitees.

(Code 1968, § 36-48; Ord. No. 09-398, § 8, 5-13-09; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Secs. 5-60—5-70. Reserved.

DIVISION 2. LICENSE

Sec. 5-71. Required.

(a) It is unlawful to conduct any public dance or teenage dance within the limits of the city, unless and until the dance hall has been issued a license pursuant to this division; provided, however, this section shall not apply to a facility or dance prescribed in section 5-59 of this Code.

(b) It is unlawful for any person to dance at any unlicensed dance hall. The owner, proprietor or operator of an unlicensed dance hall who suffers or permits any person to dance therein shall be deemed to have violated this article.
(Code 1968, § 36-54; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-72. Application.

Any person desiring a license to operate a dance hall shall file with the director a sworn application for such license on a form approved by the director containing the following information, if applicable:

(1) The full name and residential address of the applicant and any operator(s). The applicant shall indicate whether it is an individual, partnership, corporation, or other legal entity. The type of business organization shall include only those organizations recognized by the Texas Business Organizations Code ("BOC"); provided however, if the organization is a

foreign entity required to register under Chapter 9 of the BOC, it shall submit full and complete copies of the organization's current registration at the time of application. If the applicant is a partnership, the name and address of each general partner shall be provided. If the applicant is a corporation, the name and address of the corporation, all officers and directors, and each person who owns 20 percent or more interest in the corporation shall be provided. If the applicant is a limited liability entity, the names and, business addresses of the members, managers or governing persons responsible for the daily operations of the applicant, as applicable and reflected in the applicant's organizational documents.

(2) The location, by street and number, of the place, space, or building and room or floor, and the size of such room, space, or floor proposed to be used as a public dance hall or teenage dance hall.

(3) A statement whether the applicant has any criminal history that is disallowed under section 1-10 of this Code. Upon initial application for a dance hall license and before each renewal thereof, the director shall cause each applicant's criminal history to be researched. The applicant shall complete any forms required for the director to obtain the report and provide funding to the director in a manner specified to cover any fees imposed by state or federal agencies for the report. The provision of this requirement shall not be construed to preclude the director from obtaining interim reports at the city's expense.

(4) Whether the business of a hotel, rooming house or lodging house is conducted in any part of the premises for which a license is sought.

(5) Such other and additional information as may be reasonably requested by the director.

(Code 1968, § 36-56; Ord. No. 08-52, § 13, 1-16-08, eff. 1-26-08; Ord. No. 09-398, §§ 9, 10, 5-13-09; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-73. Inspection of premises and issuance of license by director.

Notwithstanding the satisfaction of all the requirements provided in this division, the director shall not grant a license under this division unless the premises to be used as a dance hall complies with the laws of this state and the ordinances of the city regulating health and sanitation, fire safety regulations and the Construction Code.

(Code 1968, § 36-57; Ord. No. 90-635, § 14, 5-23-90; Ord. No. 02-399, § 14, 5-15-02; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Secs. 5-74, 5-75. Reserved.

Sec. 5-76. Taxi dancing with minors prohibited.

(a) It is unlawful for any licensee or operator of a dance hall to suffer or permit a minor to engage in the activities commonly known as "taxi dancing," "dollar dancing" or "pony dancing," or any activity wherein any person accepts, agrees to accept or solicits any cash, benefit or other thing of monetary value for the privilege of dancing with a minor.

(b) It is unlawful for any person to offer, confer or agree to confer any cash, benefit or other thing of monetary value to any person for the privilege of dancing with a minor.

(c) It is unlawful for the minor or any other person to solicit, accept or agree to accept any cash, benefit or other thing of monetary value from any person for the privilege of dancing with a minor.

(d) The provisions of this section apply without regard to whether:

(1) The minor is an employee, agent or contractor of the dance hall or is merely present in the dance hall;

(2) The cash, benefit or other thing of monetary value is solicited or accepted by the licensee or operator, the minor or any other person; and

(3) The cash, benefit or other thing of monetary value is solicited or accepted

exclusively for the dancing privilege or for food, beverage or other services or merchandise with which the dancing privilege is also provided.

(e) The licensee's and operator's agreement to comply with this section shall constitute a condition of the issuance or renewal of a license under this article, and a statement reflecting this requirement shall be included on the application form. Any violation of this section constitutes grounds for the revocation of or refusal of renewal of a license issued under this article.
(Code 1968, § 36-60; Ord. No. 98-986, § 4, 11-4-98; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-77. Fees.

(a) The annual fees stated for this provision in the city fee schedule shall be charged for each of the following licenses issued under the terms of this division:

(1) Class A.

(2) Class A, one night per week.

(3) Class B.

(4) Class B, not more than three nights per week.

(b) License fees provided for in subsection (a) above shall be paid in advance on an annual basis. A license shall be cancelled automatically upon the licensee's failure to make timely payment of the required license fee.

(c) No refund of any license fee paid hereunder shall be made by the city for any cause whatsoever.
(Code 1968, § 36-61; Ord. No. 84-897, § 1, 6-12-84; Ord. No. 09-398, § 13, 5-13-09; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-78. Issuance.

A license applied for under this division shall be issued by the director when all conditions of this article have been satisfied and the application has been approved in accord with this division.
(Code 1968, § 36-62; Ord. No. 08-52, § 14, 1-16-08, eff. 1-26-08; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-79. Contents.

Any license issued pursuant to this division shall be signed by the director and shall state:

(1) To whom the license is issued;

(2) The date the license will expire;

(3) The address and location of the dance hall; and

(4) Whether the licensee is authorized to operate and conduct a Class A or B dance hall.

(Code 1968, § 36-63; Ord. No. 08-52, § 15, 1-16-08, eff. 1-26-08; Ord. No. 09-398, § 14, 5-13-09; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-80. Posting.

A license issued under this division shall be posted by the licensee in a conspicuous place at or near the entrance to the dance hall so that it may be easily viewed by the public during the dance hall's hours of operation. Additionally, if the owner, operator, or licensee requires a dress code for entry to a night club or dance hall, the complete dress code must be posted in a conspicuous place at or near the entrance to the dance hall so that it may be easily viewed by the public during the dance hall's hours of operation. If a dance hall or establishment does not have a dress code policy displayed near the entrance, it will be interpreted that there is no dress code, and no dress code policy shall be enforced.
(Code 1968, § 36-64; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013; Ord. No. 2025-619, § 3, 7-16-2025)

Sec. 5-81. Assignment or transfer from one location to another.

Licenses issued under this division shall be deemed personal to the licensee and shall not be assignable to any other person or transferable to any other location.
(Code 1968, § 36-65; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-82. Effect.

The granting of any license under the terms of this division shall in no event be construed as the granting or conferring of any vested right to the licensee or operator. Licenses are subject to revocation and cancellation as provided for in this division.
(Code 1968, § 36-66; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-83. License term; expiration and renewal.

A license issued pursuant to this article shall be valid for a one-year term from the date of issuance. Any licensee desiring to renew a license shall make application for renewal in the manner provided in section 5-72 of this Code not more than 30 days and not less than 10 days prior to the expiration of such license.
(Code 1968, § 36-67; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-84. License denial, suspension, revocation, refusal of renewal.

(a) Licenses issued pursuant to this chapter may be denied, revoked, suspended, or refused for renewal based upon the applicable grounds specified in section 1-10 of this Code by following procedures specified in section 1-9 of this Code.

(b) Additionally, licenses may be denied, revoked, suspended, or refused for renewal following notice and a hearing conducted by a hearing officer appointed by the director if:

(1) The license was issued through error;

(2) The applicant or licensee provided materially false or incomplete information on the license application; or

(3) The licensee is convicted of violating any of the provisions of this article on two or more occasions within the term of the license or has been convicted of violating any provisions of this article within the 24 month period immediately preceding the date of application for a dance hall license.

(c) Consistent with sections 1-9 and 1-10 of this Code and applicable state laws, the director shall promulgate regulations for any required hearings and procedures. The director shall not designate a person to act as hearing officer who participated in the review of the application. Hearings shall be conducted in a manner that is consistent with principles of due process. The applicant may be represented by legal counsel, may present evidence and cross examine witnesses presented by the city. The hearing officer shall have the discretion to exclude from hearings any person who is not the applicant, the director, their legal representatives, and such other persons not entitled to attend and participate as a matter of law and any persons whose presence the hearing officer deems not necessary or expedient to the complete resolution of the matter. The decision of the hearing officer shall be based upon the preponderance of credible evidence presented and shall be final and exhaust the applicant's administrative remedies regarding the denial, revocation, or refusal of renewal of the license to operate a dance hall, subject to the applicant's right to appeal pursuant to state law if the denial is based upon section 1-10 of this Code.

(d) Any person whose application for a dance hall license has been denied, revoked, or refused for renewal and such action has become final shall be required to wait a period of one year from the date the denial, revocation, or refusal of renewal becomes final before becoming eligible to reapply for a dance hall license.

(e) In the event a license is revoked or suspended, the city shall not be liable to the licensee for any refund of any part of the license fee.

(Code 1968, § 36-68; Ord. No. 08-52, § 16, 1-16-08, eff. 1-26-08; Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Sec. 5-85. Penalty.

Any person who fails or refuses to comply with the terms and provisions of this article shall be deemed guilty of an offense and, upon conviction thereof, shall be punished as provided in section 1-6 of this Code. Each violation shall constitute and be punishable as a separate offense.

(Code 1968, § 36-69; Ord. No. 78-509, § 2, 3-21-78; Ord. No. 79-1762, § 2, 10-16-79; Ord. No. 98-986, § 5, 11-4-98; Ord. No. 08-52, § 17, 1-16-08, eff. 1-26-08; Ord. No. 09-398, §§ 15, 16, 5-13-09 Ord. No. 2013-613, § 2(Exh. A), 6-19-2013)

Secs. 5-86—5-100. Reserved.

ARTICLE IV. GOLF COURSES, DRIVING RANGES AND ARCHERY RANGES

Sec. 5-101. Hours of operation.

The operation of miniature golf courses, golf driving ranges, golf courses and outdoor archery ranges between the hours of 12:30 a.m. and daylight is hereby prohibited and declared to be unlawful.

(Code 1968, § 36-10; Ord. No. 81-1590, § 1, 8-18-81)

Sec. 5-102. Shading of lights.

Lights on miniature golf courses, golf driving ranges, golf courses and outdoor archery ranges shall be equipped with shades or hoods to prevent the same from shining directly into any residence, apartment house, boarding house or rooming house.
(Code 1968, § 36-11; Ord. No. 18-1590, § 1, 8-18-81)

Secs. 5-103—5-115. Reserved.

ARTICLE V. SKEET CLUBS AND SHOOTING GALLERIES

DIVISION 1. GENERALLY

Sec. 5-116. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Building Code Enforcement means that division within the Houston Public Works that is assigned the responsibility of enforcement of the *Construction Code.*

Shooting gallery means a room, place or enclosure wherein the firing of firearms is permitted to practice marksmanship.

Skeet club means an open premises where shotguns are used in target practice by shooting clay pigeons ejected by machines or thrown by hand to simulate flight. Trap shooting clubs are considered herein as "skeet clubs" and shall be subject to the same regulations.
(Code 1968, § 36-80; Ord. No. 90-635, § 15, 5-23-90; Ord. No. 93-514, § 11, 5-5-93; Ord. No. 98-613, § 14, 8-5-98; Ord. No. 02-399, § 15, 5-15-02; Ord. No. 04-1015, § 7, 9-27-04; Ord. No. 2018-11, § 50, 1-10-2018; Ord. No. 2021-1037, § 20(Exh. I.6), 12-1-2021, eff. 4-1-2022)

Sec. 5-117. Exemption from article provisions.

The provisions of this article shall not apply to any firearms practice range or facility of any sort which:

(1) Is owned and operated by the United States, the State of Texas or any department or political subdivision thereof; and

(2) Is utilized exclusively for the purpose of training and qualifying peace officers and persons in training to become peace officers.

(Code 1968, § 36-80.1; Ord. No. 83-1406, § 3, 9-6-83)

Sec. 5-118. General regulations.

(a) No skeet or shooting gallery shall be constructed or operated within the city unless the plans for such are submitted to Building Code Enforcement. The skeet club or shooting gallery shall comply with all provisions of the *Construction Code.* The approval of the chief of police shall be required as to the location of any skeet club or shooting gallery.

(b) The room, place or enclosure wherein the firing of firearms is to take place at a shooting gallery shall comply with all provisions of this section and shall not be used for any other purpose whatsoever during the progress of firing.

(c) The rear wall and side walls to a point on a line with the firing position shall be of bullet proof construction in accordance with the following specifications:

(1) Not less than six-inch masonry or solid concrete.

(2) Wood stud and plaster walls or equivalent construction, faced with one inch boards, backed with one-quarter-inch steel plate. Floors and ceilings of joist construction shall be considered bullet proof.

(d) All openings of any nature in the rear and side walls shall be protected with one inch board backed by a one-quarter inch steel plate.

(e) Open steel truss ceilings shall be protected by a one-quarter inch steel baffle plate inclined toward the firing position. The plate shall be as wide as the total width of the target and not less than five feet in depth, and shall be suspended from the bottom cord of the trusses to the intersection of two sight lines drawn from the elevation of the firearm at the prone firing position to the bottom of the furthest truss, and from the elevation of the firearm at the off-hand firing position to a point five feet above the floor at the target. Baffle plates less than 15 feet from the firing position shall be protected with one inch boards.

(f) Exposed steel girders less than 15 feet (horizontal or vertical) from the firing position shall be protected with one inch boards.

(g) In addition to the above protection, there shall be provided a one-quarter inch steel stop plate, directly in the rear of targets, extending not less than eight inches beyond the outer ring of the bull's-eye, and inclined towards the firing position at an angle of 45 degrees. The stop plate shall be housed, on sides and top, with corrugated sheet metal extending not less than one foot beyond the top edge of the plate. At the base of the inclined stop plate there shall be provided a sand box with not less than six inches of sand and of sufficient width so as to absorb all of the bullets ricocheted by the stop plate as fired from the firing position.

(h) Vertical stop plates existing on October 23, 1957, will be accepted with the same regulations as is provided for inclined stop plates, except that the thickness of the stop plate shall be not less than five-sixteenths of an inch and that the corrugated sheet metal housing shall extend not less than three feet beyond the face of the stop plate.

(i) Entrance to that part of the licensed area situated between the firing position and targets shall be protected with 36-inch guard rails or equivalent protection. No person except the person in charge shall be permitted within the above described area during the progress of firing.
(Code 1968, § 36-81; Ord. No. 72-2007, § 1, 11-1-72; Ord. No. 02-399, § 16, 5-15-02; Ord. No. 2021-1037, § 20(Exh. I.7), 12-1-2021, eff. 4-1-2022)

Sec. 5-119. Stationary bull's-eye targets.

Targets used at shooting galleries shall be of the stationary bull's-eye type. All moving targets are prohibited.
(Code 1968, § 36-82)

Sec. 5-120. Certain weapons and ammunition prohibited at shooting galleries.

(a) It shall be unlawful for any person to possess or discharge within or upon any shooting gallery permitted under this article, any rifle which is of other than 22 calibre or which is chambered to accept a cartridge larger than 22 calibre rim fire long rifle.

(b) It shall be unlawful for any person to possess or discharge within or upon any shooting gallery permitted under this article any pistol:

(1) Which is of other than 22 calibre or which is chambered to accept a cartridge larger than 22 calibre long rifle, if the shooting gallery does not have a special permit issued under the provisions of section 5-121 of this Code; or

(2) Which is of a calibre larger or is chambered to accept a cartridge more powerful than is authorized to be discharged by authority of the special permit, if the shooting gallery has a special permit issued under the provisions of section 5-121.

(c) It shall be unlawful for any person to possess or cause to be discharged within or upon any shooting gallery permitted under this article any rifle or pistol ammunition which is not authorized to be discharged at such shooting gallery by authority of this article and the permit issued to such shooting gallery.
(Code 1968, § 36-83; Ord. No. 83-1406, § 1, 9-6-83)

Sec. 5-121. Special shooting gallery permit.

(a) A pistol of a calibre and chamber larger than 22 calibre rim fire long rifle, whether rim fire or center fire, may be discharged upon a shooting gallery permitted under this article,

provided that the shooting gallery holds a valid special permit issued under this section which authorizes the discharge thereof.

The special permit shall be issued in the same manner in all respects as a regular shooting gallery permit under this article, except as provided in this section.

(b) The applicant shall advise Building Code Enforcement and the chief of police that he desires a special permit and shall designate the maximum caliber and the most powerful standard pistol cartridge proposed to be fired at the shooting gallery.

(c) The construction standards specified in section 5-118 of this Code shall not apply except as minimum design criteria where reinforcement thereof is not necessary for the safe firing of the maximum calibre and cartridge proposed. The applicant shall cause the facility to be designed for the safe firing of the maximum calibre and cartridge proposed, and shall submit a certificate of a full-time practicing professional engineer registered by the state that the facility will, if constructed in accordance with the applicant's plans and specifications, permit the safe firing thereof.

(d) The applicant shall cause the facility to be designed so that with all firing positions in use for the rapid fire discharge of the maximum proposed calibre and cartridge specified, the facility will not cause a noise disturbance across any real property boundary of the proposed site or within any public space or right-of-way. The applicant shall submit a certificate by a full-time practicing professional engineer registered by the State of Texas who devotes at least 50 percent of his practice time to acoustical design certifying that the facility will, if constructed in accordance with the applicant's plans and specifications, meet the noise standard specified in this subsection.

(e) Prior to the issuance of a special permit, the shooting gallery shall be inspected in test operation by an engineer designated by the Director of Houston Public Works to determine that the facility has been constructed in accordance with the plans and specifications proposed, and that safety and noise standards specified in subsections (c) and (d) of this section have in fact been met in the actual operation of the facility.

(f) Upon such determination and compliance with all other provisions of this article, the chief of police shall issue a special permit designating the maximum calibre and cartridge authorized to be fired upon the shooting gallery.

(g) All design criteria, certificates and tests under this section shall be based upon the most powerful commercially manufactured cartridge loads for the pistol calibre and cartridge specified as produced by any manufacturer of handgun ammunition whose products are regularly sold in the city. Remanufactured or handloaded ammunition shall be permitted to be fired, provided that it is not loaded in such a manner as to be more powerful than the maximum load allowed by the permit.
(Code 1968, § 36-83.1; Ord. No. 83-1406, § 2, 9-6-83; Ord. No. 90-635, §§ 16, 17, 5-23-90; Ord. No. 93-514, § 12, 5-5-93; Ord. No. 98-613, § 15, 8-5-98; Ord. No. 04-1015, § 8, 9-27-04; Ord. No. 2018-11, § 49, 1-10-2018; Ord. No. 2021-1037, § 20(Exh. I.7), 12-1-2021, eff. 4-1-2022)

Sec. 5-122. Indoor trap ranges excepted from sections 5-118, 5-119 and 5-120.

The provisions of sections 5-118, 5-119 and 5-120 shall not be applicable to mechanically operated or coin-operated indoor trap ranges as provided in section 5-141.
(Code 1968, § 36-84)

Sec. 5-123. Hours of operation for shooting galleries.

The operation of any shooting gallery between the hours of 12:30 a.m. and daylight is hereby prohibited and declared unlawful.
(Code 1968, § 36-85)

Sec. 5-124. Permitted firearms and ammunition at skeet clubs; firing near streets, houses, etc., prohibited.

No firearm other than shotguns shall be discharged at a skeet club and no shot larger

than No. 7½ shall be used. No gun shall be fired within 300 yards of any street, alley, public grounds, business district or house, provided, however, skeet clubs in operation prior to annexation into the city and which comply with the other provisions hereof and which have a distance of not less than 150 feet back of any gun position measured to the nearest street, alley, public grounds, business district or house, shall satisfy the distance provision, if, after inspection, it is determined that adequate safety is assured, and provided, further, any skeet club using only shotguns of .310 caliber or smaller which utilize No. 11 shot or smaller and the barrel of which is tethered so as to restrict the muzzle to a downrange position shall require a minimum of 125 yards downrange and there shall be no additional distance requirements with reference to streets, alleys, public grounds or business district.
(Code 1968, § 36-87; Ord. No. 70-829, § 1, 5-26-70)

Sec. 5-125. Periodic inspections.

(a) Every skeet club or shooting gallery for which a license has been issued under this article shall be periodically inspected by the chief of police or his duly appointed representative, and such inspections shall be made and conducted at any time the same shall be deemed advisable in the opinion of the chief of police and every skeet club and shooting gallery shall be at all times open for inspection.

(b) All such inspections shall be subject to applicable constitutional limitations.
(Code 1968, § 36-88)

Secs. 5-126—5-135. Reserved.

DIVISION 2. LICENSE

Sec. 5-136. Required.

It shall be unlawful for a person to establish, maintain or operate, within the corporate limits of the city, a skeet club or shooting gallery without having first secured a license to do so from the chief of police. Such license shall not be issued by the chief of police unless the person applying therefor has secured a certificate of occupancy from Building Code Enforcement authorizing the occupancy of the premises for purposes of operating a skeet club or shooting gallery. Provided, however, this article governing the construction, licensing, use and occupancy of skeet clubs and shooting galleries shall not be applicable to any such installations which are constructed, operated and supervised in accordance with U.S. Army or Reserve Officers Training Corps regulations by school districts, colleges or universities.
(Code 1968, § 36-94; Ord. No. 72-2007, § 2, 11-1-72; Ord. No. 90-635, § 18, 5-23-90; Ord. No. 2021-1037, § 20(Exh. I.7), 12-1-2021, eff. 4-1-2022)

Sec. 5-137. Application.

Any person desiring a license required by this division shall make written application therefor to the chief of police on forms to be provided by the chief of police.
(Code 1968, § 36-95)

Sec. 5-138. Inspection of applicant's premises.

The chief of police shall cause an investigation and inspection to be made of any skeet club or shooting gallery for which a license is desired, to determine if it is in compliance with the terms of this article.
(Code 1968, § 36-96)

Sec. 5-139. Fee.

The annual fee for a license under this division is stated for this provision in the city fee schedule. Such fee shall be collected by the chief of police before the issuance of such license or a renewal thereof. When the license is issued during any current calendar year, the fee therefor shall be prorated and, for the purpose of determining the amount due, the month during which the license is issued shall be counted as one full month. No refund of any license fee paid hereunder shall be made by the city for any cause whatsoever.
(Code 1968, § 36-97; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 5-140. Issuance.

If the chief of police determines that a skeet club or shooting gallery for which a license is applied for is in compliance with this article, he shall issue the license, upon payment of the required fee.
(Code 1968, § 36-98)

Sec. 5-141. Special provisions for indoor trap ranges.

(a) An applicant for a license to operate an indoor trap range shall submit, together with his application therefor, a copy of the proposed plans and specifications of such range and a description of the premises on which such range shall be operated. Such application shall also describe the nature, size and muzzle velocity of the firearms to be used in such indoor trap range, and the license, if issued, shall limit and restrict the operation of such range to the described firearms, and no other. Such application, or the plans and specifications submitted therewith, shall affirmatively disclose that the walls, floor and ceiling of the proposed range shall be of sufficient thickness to prevent penetration by the pellets, shot or ammunition fired from the described firearms.

(b) Upon compliance with the foregoing provisions, an applicant may be issued a license by the chief of police under the terms and provisions of this division.
(Code 1968, § 36-99)

Sec. 5-142. Contents.

A license issued under this division shall set forth the name and location of the skeet club or shooting gallery covered by such license, the name or names of those persons to whom such license is issued and any other information that the chief of police may deem necessary.
(Code 1968, § 36-100)

Sec. 5-143. Display.

A license issued under this division shall be placed and kept at all times in some open and prominent place within the skeet club or shooting gallery.
(Code 1968, § 36-101)

Sec. 5-144. Expiration.

All licenses issued under this division shall expire on the thirty-first day of December of the year for which issued.
(Code 1968, § 36-102)

Sec. 5-145. Not transferable.

Licenses issued under this division shall be deemed personal to the licensee and shall not be assigned or transferred to any other person.
(Code 1968, § 36-103)

Sec. 5-146. Does not bar prosecutions under or enforcement of other ordinances.

No license granted under this division shall ever be held to bar a prosecution for violation of any other ordinance of this city, or to prevent the enforcement of any ordinance, or inhibit the exercise of powers and duties of any officer under the terms of any such ordinance.
(Code 1968, § 36-104)

Sec. 5-147. Appeal from grant or refusal; notice of refusal.

Any person dissatisfied with the decision of the chief of police in either granting or refusing a license to operate a skeet club or shooting gallery shall have the right of an appeal to the city council by notifying the city council in writing within ten days after the decision of the chief of police of his appeal therefrom. Every person who is refused a license to operate a skeet club or shooting gallery by the chief of police shall be notified in writing of the reasons for such refusal.
(Code 1968, § 36-105)

Sec. 5-148. Suspension or revocation.

(a) Any license issued under this division may be revoked on any of the following grounds:

(1) Violation of any of the provisions of this article or any rules and regulations either now or hereafter adopted pursuant hereto, or of any laws of the state.

(2) Permitting, aiding or abetting the commission of any illegal act in or on the licensed premises.

(3) Selling or permitting the consumption of alcoholic beverages on the licensed premises.

(4) Permitting any person under the influence of alcoholic beverages to use the facilities of the club or gallery.

(5) Acts, conduct or practices detrimental to the health, safety or welfare of any person in the city.

(b) Such revocation shall be subject to the same procedures specified in subsections (b) through (h) of section 5-85, as applicable to revocation of dance hall permits.
(Code 1968, § 36-106)

Secs. 5-149—5-160. Reserved.

ARTICLE VI. GAME ROOMS*

DIVISION 1. IN GENERAL

Sec. 5-161. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Amusement redemption machine means any electronic, electromechanical, or mechanical contrivance designed, made, and adopted for bona fide amusement purposes that rewards the player exclusively with noncash merchandise, prizes, toys, or novelties, or a representation of value redeemable for those items, that have a wholesale value available from a single play of the game or device of not more than ten times the amount charged to play the game or device once, or $5.00, whichever amount is less.

Director means the director of administration and regulatory affairs department or his designee.

Random generator machine means a type of amusement redemption machine that is recreational and provides the user with an opportunity to receive something of value other than a right to replay and in which credits, or the equivalent thereof, are accumulated when: a particular configuration of like symbols is displayed in a random fashion by the machine; symbols or numbers are matched to a randomly selected symbol or number determined by the machine; a combination of cards is arrived at and valued in a traditional hierarchy for purposes of poker; or a combination of cards is arrived at and points assigned for purposes of blackjack.

Game room means a building, facility, or other place that contains six or more amusement redemption machines.

Game room owner means an individual who:

(1) Has an ownership interest in or receives income from a game room or an amusement redemption machine located in a game room;

(2) Is a partner, director, or officer of a business, company, or corporation that has an ownership interest in a game room or in an amusement redemption machine located in a game room;

(3) Is a shareholder that holds more than ten percent of the outstanding shares of a business, company, or corporation that has an ownership interest in a game room or in an amusement redemption machine located in a game room;

(4) Has been issued by the county clerk an assumed name certificate for a business that owns a game room or an amusement redemption machine located in a game room;

(5) Signs a lease for a game room;

*__Editor's note—__Ord. No. 2014-674, § 4, adopted June 25, 2014, deleted and added a new Ch. 5, Art. 6 to read as herein set out. Formerly said article pertained to simlar subject matter and derived from Code 1968, §§ 36-127—36-133 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

(6) Opens an account for utilities for a game room;

(7) Receives a certificate of occupancy for a game room;

(8) Pays for advertising for a game room; or

(9) Signs an alarm permit for a game room.

Operator means an individual who supervises, manages, or participates in the performance of activities that contribute to the functioning of a game room, including the following activities:

(1) Operates a cash register, cash drawer, or other depository on the premises of a game room or of a business where the money earned or the records of credit card transactions or other credit transactions generated in any manner by the operation of a game room or activities conducted in a game room are kept:

(2) Displays, delivers, or provides to a customer of a game room; merchandise, goods, entertainment, or other services offered on the premises of a game room;

(3) Take orders from a customer of a game room for merchandise, goods, entertainment, or other services offered on the premises of a game room; or

(4) Acts as a door attendant to regulate entry of customers or other persons into a game room.

(Ord. No. 2014-674, § 4, 6-25-2014)

Sec. 5-162. License required.

(a) It shall be unlawful for an owner or operator of a game room to operate, use, or maintain a game room without first obtaining city game room license and if required under this article, a county game room permit.

(b) It shall be unlawful to operate, use or maintain any room or place in the city where persons are permitted to play at any game of dominoes, cards or other games, and for the use of which, or privilege of playing therein or thereat, any money or its equivalent, or any check or counter in lieu of money shall be paid or received, or where memberships are sold for anything of value for the privilege of playing therein or thereat, without first securing a license therefor.

(c) An application for an existing game room location that is submitted by an individual who is different from the individual named as the owner or operator on the current application or a re-application for an existing game room location after denial or revocation shall be considered a new application and not a renewal.

(Ord. No. 2014-674, § 4, 6-25-2014)

Sec. 5-163. Game room license for game rooms and similar establishments.

(a) A game room owner shall obtain a license from the city for each game room located in the city.

(b) The owners or operator of a place where dominoes, cards, or other games are permitted, as described in section 5-162(b) of this Code, shall obtain a license from the city for each place.

(c) The application for a city license required by this section shall be in the form prescribed by the director or his designee and shall contain such information as he shall require. Any failure to provide the information required by this section or a determination by the director that inaccurate, erroneous or incomplete information has been submitted shall be grounds for denial of the application by director.

(1) The proposed game room must comply with this chapter 5 and with chapter 44 of this Code, if applicable, at the time of the submission of the application for a license.

(2) Each application shall also be accompanied by (i) a copy of a certificate of occupancy issued by the building official

as appropriate for the proposed game room; (ii) in the case of a game room to be operated under an assumed name, a true and correct copy of the registration of the assumed name filed in the office of the Harris, Fort Bend, or Montgomery County Clerk, bearing the file mark or stamp that evidences its filing in that office; and (iii) non-refundable fee(s) for the license as stated in the city fee schedule. Any failure to provide the documents required by this item shall be grounds for denial by the director.

(c-1) The director shall investigate each application received under this section to determine whether the applicant has been convicted of an applicable offense as specified in section 1-10 of this Code. If it appears that the applicant has been convicted of such an offense, the director of administration and regulatory affairs shall follow the procedures set forth in section 1-9 of this Code.

(d) A license issued under this section shall be subject to revocation by the director of administration and regulatory affairs pursuant to the applicable provisions of sections 1-9 and 1-10 of this Code.

(e) Any failure of a proposed game room to meet all requirements of this article or chapter 44 of this Code or to obtain a county permit if required, shall be grounds for denial, revocation, or suspension of a game room license.

(f) Each city game room license is valid for one year and shall expire on the anniversary date of the issuance of the license. A license may be renewed for the following calendar year beginning 60 days before the expiration of the current license by filing a completed application for each license and paying the applicable fee set forth in the city fee schedule. A renewal application shall be subject to the same requirements in this section as for an initial city game room license application.
(Ord. No. 2014-674, § 4, 6-25-2014)

Sec. 5-164. Hearings.

Any applicant desiring to contest the denial, revocation, or suspension of a game room license under section 5-163(e) of this Code may request a hearing before a hearing officer designated by the director in accordance with the following procedures:

(1) A request for hearing must be in writing and delivered to the director within ten days of the denial. The applicant waives the right to hearing if the request is not timely received by the director.

(2) The only issue before the hearing officer shall be whether or not the proposed game room complies with the requirements of this Article and Chapter 44 of this Code, including obtaining a county permit if required.

(3) If the hearing officer determines that a proposed game room does not comply with the requirements of this Article or Chapter 44 of this Code, then application for a game room license shall be denied. The applicant may re-apply for a game room license if changes are made to bring the proposed game room into compliance with this Article and Chapter 44 of this Code.

(4) The decision of the hearing officer shall be final.
(Ord. No. 2014-674, § 4, 6-25-2014)

Sec. 5-165. County game room permit.

(a) Game room owners shall obtain a Harris County permit or renewal thereof in addition to a city game room license issued pursuant to section 5-163 of this Code for each game room in the city that is located in Harris County by submitting to the director an application and the application fee for a Harris County Game Room Permit and City License stated in the city fee schedule. The application fee covers both the county permit and the city license. The license or permit shall be issued by the county or its designated agent in accordance with Harris County regulations and shall be subject to Harris County regulations. Applicants shall refer to Harris County's regulations for permitting requirements. County permit application forms may be obtained from the city.

(b) Applications for Harris County game room permits shall follow county regulations regarding, denial, revocation or suspension of a permit and the appeal thereof.
(Ord. No. 2014-674, § 4, 6-25-2014)

Secs. 5-166—5-170. Reserved.

DIVISION 2. REQUIREMENTS

Sec. 5-171. Applicability.

This division shall apply to game rooms with only a city license.
(Ord. No. 2014-674, § 4, 6-25-2014)

Sec. 5-172. License displayed.

The game room owner or the owner and operator of a place where dominoes, cards, or other games are permitted, as described in section 5-162(b) of this Code, shall display within plain sight of an accessible public area of each game room a current permit or license for that game room.
(Ord. No. 2014-674, § 4, 6-25-2014)

Sec. 5-173. Game room sign required.

(a) A game room owner or the owners and operators of a place where dominoes, cards, or other games are permitted, as described in section 5-162(b) of this Code, shall mark each entrance to a game room with a sign that:

(1) States "GAME ROOM" in four inch or larger block letters; and

(2) Is legible and visible at all times from a distance of 25 feet.

(b) Any signage required by this section shall be in conformance with the *Sign Code*.
(Ord. No. 2014-674, § 4, 6-25-2014; Ord. No. 2021-1037, § 20(Exh. I.8), 12-1-2021, eff. 4-1-2022)

Sec. 5-174. Egress doors.

It shall be the duty of all of the owners and operators of a place where dominoes, cards, or other games are permitted, as described in section 5-162(b) of this Code, or the owner, manager, or employee of a game room, or other person exercising control over a game room or a portion of a game room, or over a building, facility, or other place that contains amusement redemption machines, to provide egress doors during business hours that are readily opened from the egress side without the use of a key or special knowledge or effort, in conformance with the Construction Code and Fire Code. No electronic locks shall be used to prevent entry during business hours at the places described in this section.
(Ord. No. 2014-674, § 4, 6-25-2014)

Sec. 5-175. Transparent, uncovered windows required.

(a) The owner, manager or other person exercising control over any building, facility, or other place that contains five or fewer random generator machines shall have in the front of the building at least one window that meets the criteria set forth in items (2), (3), and (4) of subsections 5-175(e) of this Code and allows a clear and unobstructed view of all random generator machines.

(b) It shall be the duty of all owner, manager, or employee of a game room, or other person exercising control over a game room or a portion of a game room, to provide transparent glass in each game room window. This subsection shall not apply to game rooms without any random generator machines.

(c) Unless otherwise excepted, it shall be unlawful for any person to cover the windows of a game room or other location with a random generator machine or otherwise block or obscure the full view through such window of that part of the random generator machine that contains the screen and controls or where the screen and controls would be if a user is in front of the random generator machine.

(d) It shall be unlawful for any person to exhibit or display, or to permit to be exhibited or displayed, for commercial use six or more random generator machines unless such machines are located in a game room building or structure with not fewer than two windows or transparent walls or panels of glass or other material that

permit a clear, unobstructed view of both the interior of the game room and each random generator machine located therein, by a person outside the building or structure standing in an area open to and accessible by a member of the public at all times the game room is in operation.

*(e) It shall be unlawful for any person to exhibit or display, or to permit to be exhibited or displayed, for commercial use any random generator machine in a game room unless the required transparent walls or windows of the game room:

(1) Are located on at least two sides of the game room, and each random generator machine located therein is visible through such walls or windows; and

(2) At the lowest point are not more than four feet above the adjacent sidewalk or ground level; and

(3) At the highest point are at least eight feet higher than the adjacent sidewalk or ground level; and

(4) Are at least four feet wide.

(Ord. No. 2014-674, § 4, 6-25-2014)

***Editors' note—**Ord. No. 2014-674, § 4, adopted June 25, 2014, inadvertently misnumbered subsection (e) as subsection (f). At the direction of the city, said subsection was renumbered as subsection (e).

Sec. 5-176. Unrestricted access by law enforcement officer.

It shall be the duty of all owner, manager, or employee of a game room, or other person exercising control over a game room, a portion of a game room, an amusement redemption machine or a place where dominoes, cards, or other games are permitted, as described in section 5-162(b) of this Code, to provide any law enforcement officer with immediate unrestricted access during business hours to all areas of a game room and to all amusement redemption machines.

(Ord. No. 2014-674, § 4, 6-25-2014)

Sec. 5-177. Inspection by law enforcement officer.

(a) Any law enforcement officer may inspect a game room or an amusement redemption machine located in the city to determine whether the game room or amusement redemption machine complies with this article, county regulations, and state law.

(b) An owner, manager, or employee of a game room or other person who does not allow a law enforcement officer to inspect a game room or amusement redemption machine commits an offense.

(Ord. No. 2014-674, § 4, 6-25-2014)

Sec. 5-178. Owner presence required.

The owner of a game room shall be present during inspections related to obtaining permits or licenses required under this article.

(Ord. No. 2014-674, § 4, 6-25-2014)

Secs. 5-179—5-185. Reserved.

DIVISION 3. PENALTIES AND OTHER PROVISIONS

Sec. 5-186. Illegal machines.

This article shall not be construed to authorize or permit the keeping, exhibition, operation, display, or maintenance of any machine that is prohibited by the constitution of this state or Chapter 47 of the Texas Penal Code.

(Ord. No. 2014-674, § 4, 6-25-2014)

Sec. 5-187. Same—payment; receipt constitutes license.

The license fees provided for in the city fee schedule shall be paid to the director, who, upon receipt of such fees and subject to the following terms hereof, shall give a receipt to the taxpayer therefor in the name of the city, signed by the director. The receipt shall be a license for the operation of the game rooms for one year, which shall expire on the one-year anniversary of the date it was issued.

(Ord. No. 2014-674, § 4, 6-25-2014)

Sec. 5-188. Violations.

Any person operating, using or maintaining any room or place for which a license is required by this division without first paying the fee and securing a license therefor, or who operates, uses

or maintains such place after the license therefor has been revoked, shall, upon conviction, be fined as provided in section 1-6 of this Code for each day that such room or place is so operated.
(Ord. No. 2014-674, § 4, 6-25-2014)

Sec. 5-189. Exemptions.

This division shall not be construed to embrace bona fide fraternal organizations and lodges, social clubs or social gatherings in private residences for the sole purpose of sociability and amusement.
(Ord. No. 2014-674, § 4, 6-25-2014)

Sec. 5-190. Effect.

Each licensee under this article must meet and comply with all requirements of law applicable to the premises or any activity conducted thereon and the issuance of a license under this article shall not excuse the licensee, his agents or employees or any patrons of such premises therefrom.
(Ord. No. 2014-674, § 4, 6-25-2014)

Chapter 6

ANIMALS AND FOWL*

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ARTICLE I. IN GENERAL

DIVISION 1. MATTERS OF GENERAL APPLICABILITY

Sec. 6-1. Scope; definitions; penalty.

(a) This chapter shall apply to animals or property found or located within the corporate limits of the city.

(b) The following words, terms and phrases, when used in this chapter, shall have the same meanings as provided in this section, except where the context clearly indicates a different meaning:

Adoption means the sale of an animal that is owned by and in the custody of BARC animal services to a member of the general public in exchange for cash or other financial consideration.

Animal enforcement officer means an individual employed by the city who meets the definition and training requirements of Chapter 829 of the Texas Health and Safety Code.

BARC adoptions, education and outreach means the section of BARC animal services responsible for the processing of animal adoptions and education and outreach related to animal health, safety, and care.

BARC animal enforcement means the section of BARC animal services responsible for the enforcement of animal regulations.

BARC animal services means the division of the department of administration and regula-

*__Editor's note—__Ord. No. 2022-44, § 2(Exh. A). adopted January 9, 2022, amended Ch. 6 in its entirety to read as herein set out. Former Ch. 6 pertained to similar subject matter and derived from Ord. No. 2014-244, § 2(Exh. A), adopted March 26, 2014 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

Charter reference—General authority to regulate animals, Art. II, § 16(k), (l), (q), (u), (w), (x).

Cross references—Restriction on location of abattoirs or rendering plants, § 10-271 et seq.; hunting at Lake Houston Reservoir, § 23-9; notice to be given of use of guard dogs, § 28-5; noisy animals and birds, § 30-15; riding or driving animals in parks, § 32-30; molesting animals in parks, § 32-31; hunting in parks, § 32-34; fishing in parks, § 32-35; the Houston Zoo, § 32-146 et seq.; bringing animals onto zoo grounds, § 32-152; application of traffic ordinances to persons riding animals, § 45-20.

tory affairs responsible for the city's animal shelter, animal adoptions, enforcement of animal regulations, and education and outreach related to animal health, safety, and care.

BARC animal shelter means the section of BARC animal services responsible for the operation of the city's animal shelter.

Commercial breeder means any person who:

(1) Breeds dogs or cats for the purpose of selling; or

(2) Sells or offers for sale unneutered or unspayed offspring of dogs or cats to another person.

Commercial pet service facility means any lot, enclosure, premises, residence, structure, or building where dogs or cats over the age of four months are kept or maintained for any commercial purpose. This term includes a mobile commercial pet service business. Provided, however, for purposes of article IV of this chapter only, commercial pet service facility shall not include commercial breeders, hobby/conformation breeders, non-commercial breeders, veterinarians, or veterinary hospitals.

Community cat means any unowned, socialized, or feral free-roaming domestic cat that may be cared for by one or more residents. Community cats that are ear-tipped have been sterilized and have received at least one vaccination against rabies. Community cats shall not be subject to provisions of this chapter that are directed at owned animals.

Community cat caretaker means a person, group, or humane organization approved by the director that provides services to community cats. Services may include, but are not limited to: food, shelter, and medical care. Community cat caretakers shall follow guidelines approved by the director.

Community cat program (CCP) means a program that allows community cat caretakers to manage free roaming community cats with the goal of improving the lives of and reducing the overall number of community cats. The program shall include the trap, neuter, and return program or any substantially similar type of program.

Current rabies vaccination means a rabies vaccination that was administered in compliance with the requirements of Chapter 826 of the Texas Health and Safety Code and Title 25 of Chapter 169 of the Texas Administrative Code and that has not expired under the terms thereof.

Department means the department of administration and regulatory affairs.

Direct physical control means the use of a tether or other bodily restraint by a person capable of controlling the animal to restrict the movements of an animal.

Director means the director of the department of administration and regulatory affairs or his designee.

Disposition means the relocation of an animal or termination of ownership of an animal by BARC animal shelter through adoption, transfer to a humane organization, or humane euthanasia.

Domestic animal means any beast or bird in common use that has been bred or trained to need and accept the care of humans and to live in a tame condition, including, but not limited to, livestock, goat, swine, dog, cat, fowl, or other beast or bird.

Domestic cat means Felis catus, Felis domesticus, or any domesticated member of the genus Felis.

Domestic fowl means birds of a breed developed or kept for the purpose of meat production, egg laying or purely for ornament or show, including, but not limited to, chickens, turkeys, geese, ducks, pea-fowl, and parakeets, canaries, parrots, cockatoos, macaws or similar birds.

Ear-tipping means a surgical procedure performed under anesthesia by a veterinarian that removes approximately 20 percent of a cat's left ear at the apex, and is a universally recognized method of identifying sterilized and vaccinated community cats in the field.

Extreme weather conditions means conditions in which the actual or effective outdoor temperature is below 32 degrees Fahrenheit

or above 90 degrees Fahrenheit, or a hurricane, tropical storm, flood, flash flood, severe thunderstorm or tornado warning has been issued for the jurisdiction by the National Weather Service.

Feral animal means any untamed or free-roaming animal other than a domestic cat.

Hobby/conformation breeder means a person who:

(1) Breeds personally-owned dogs or cats for the purpose of improving a breed, showing in a competitive venue, use in a sporting activity or working purposes, or other personal reasons;

(2) Is a member in good standing with an organized national, regional, or local club established for the purposes listed above in item (1), as evidenced by a membership card or other proof of membership; and

(3) Sells, trades, barters, distributes, or otherwise exchanges consideration for dogs or cats to other hobby/conformation breeders or conducts private sales to individuals. For purposes of this chapter, this term shall not include sales, trades, barter, distribution or the exchange of consideration to wholesalers or brokers.

Hearing officer means an individual employed by the municipal courts department of the city designated to conduct administrative hearings and enter orders in the manner provided by this chapter, and who shall have no prior knowledge of the facts or circumstances regarding the matter at issue, except that he may receive a copy of the notice of the hearing prior to the hearing and may have conducted a prior hearing regarding a lesser penalty involving the same party.

Humane organization means any not-for-profit organization that rescues and places animals into permanent homes. Humane organization does not include an entity that breeds animals; or in exchange for payment or compensation, obtains any dog or cat from a person who either breeds dogs or cats or facilitates the sale of dogs or cats that were obtained from a person who breeds dogs or cats.Livestock shall mean any sheep, llama, or any equine or bovine species.

Microchip means a chip encoded with a unique identification number that can be implanted in an animal for identification purposes, and is obtained from a manufacturer, a veterinary clinic, a pet services facility or BARC animal services.

Neuter refers to permanent sterilization to render male animals incapable of impregnating female animals by means of:

(1) Surgery performed to remove the testicles; or

(2) Chemical sterilization utilizing a drug approved by the United States Food and Drug Administration.

Non-commercial breeder means any person who allows a dog or cat in his possession to produce offspring.

Owner means any person who owns, harbors, or has custody or control of an animal but shall not include a person providing commercial or veterinarian services to an animal.

Police officer means any peace officer employed by the city's police department.

Rabies quarantine facility means a veterinary hospital or clinic that is able to properly confine and observe animals that have or may have been exposed to rabies.

Registration means the record in the BARC animal services office of the identification number of a microchip and the associated documentation of its implantation in an animal.

Running at large or *to run at large* means an animal that is allowed to go on public or private property without its owner or a person having direct physical control over the animal; the terms include any animal that is staked, tied or hobbled in any manner as to allow the animal to access public streets or sidewalks.

Spay refers to permanent sterilization to prevent female animals from having estrus (heat) cycles and eliminating the ability to become pregnant by means of:

(1) Surgery performed on an animal to remove the ovaries and uterus; or

(2) Chemical sterilization utilizing a drug approved by the United States Food and Drug Administration.

Sterilized refers to a spayed or neutered dog or cat.

Sterilized pet registration means a current and valid registration for a microchip issued under this chapter for a dog or cat that has been spayed or neutered.

Trap, neuter, and return program means a program approved by the director in which community cats are humanely trapped, evaluated, vaccinated, sterilized, and marked by tipping of the left ear by a veterinarian and returned to the trap location.

Unsterilized refers to a dog or cat that has not been spayed or neutered.

Unsterilized pet registration means a current and valid registration for a microchip issued under this chapter for a dog or cat that has not been spayed or neutered.

Veterinarian means any person licensed to practice as a doctor of veterinary medicine by the State of Texas.

Veterinary hospital means any place where medical and surgical treatment is administered to animals by or under the supervision of a veterinarian.

(c) The violation of any provision of this chapter is hereby declared to be unlawful. Provided, however, any violation of this chapter that constitutes an offense under Chapter 826 of the Texas Health and Safety Code or other applicable state laws shall be punishable as provided thereunder.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-2. Acceptance of donations, gifts or bequests.

The director is authorized to accept, on behalf of the city, donations, gifts and bequests, which shall be used solely for the care of the animals in the care and control of the city. Funds shall be used exclusively for the purpose for which they are donated.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-2.1. Administrative rules.

The director shall promulgate rules and regulations to administer the provisions of this chapter. The rules and regulations shall not conflict with any applicable provisions of this Code. The director shall post a copy of the rules and regulations on the BARC animal services website and maintain a copy of the rules and regulations for inspection in the office of the director and at the BARC animal shelter. The director shall provide copies for purchase to any person upon payment of the fees prescribed by law.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

DIVISION 2. ANIMALS AT LARGE AND IMPOUNDMENT

Sec. 6-3. Owner's responsibility for animals at large.

An owner or any other person having the right of possession of an animal shall ensure that the animal does not run at large in violation of this chapter and shall be subject to punishment under this chapter without regard to whether the person was acting with a culpable mental state.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-4. Running at large of domestic animals or fowl prohibited.

(a) The running at large of domestic animals or domestic fowl is hereby declared to be a nuisance. It is unlawful for an owner to permit any animal or fowl to run at large.

(b) It shall be a defense to prosecution under subsection (a) above that the animal was:

(1) A dog in an off-leash site established under section 32-11 of this Code; or

(2) A feral cat that is a part of a trap, neuter, and return program.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-5. Impoundment of animal running at large; surrender of animals

(a) It shall be the duty of the department to establish an animal shelter in the city, at such place as may be designated by the city council, where all animals found running at large in violation of this chapter shall be received and taken care of in accordance with any applicable rules and regulations promulgated by the director.

(b) The city, through the director, is the designated caretaker of every impounded animal on the date of impoundment, intake or surrender.

(c) Immediately upon intake, the designated caretaker is authorized to provide each healthy, appropriate-aged, impounded animal with core immunizations as defined by the Association of Shelter Veterinarian guidelines, administered by a licensed veterinarian or by a person under the veterinarian's supervision who is familiar with the common infectious diseases affecting dogs and cats, along with any other necessary treatment the veterinarian determines to be appropriate for the animal.

(d) The provisions of this section shall not apply to 'estrays' as defined in § 142.001 of the Texas Agriculture Code.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-5.1. Surrendering of animals upon owner's or citizen's request.

(a) The director may accept a domestic non-livestock animal from its owner residing within the city limits of Houston for disposition by the BARC animal shelter. Ownership of all animals surrendered by the owner shall immediately transfer to BARC animal services. Disposition of such an animal shall be accomplished in the same manner as though the animal had been impounded and not redeemed as provided in section 6-138 of this Code. Proof of residence may be required.

(b) The director may accept a stray injured or ill domestic non-livestock animal found in the city limits from an individual residing within the city limits of Houston who is not the owner or custodian of the animal and who surrenders it to the BARC animal shelter for disposition. The disposition of such an animal shall be accomplished in the same manner as though the animal had been impounded and not redeemed as provided in section 6-138 of this Code. Proof of residence may be required.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-6. Unauthorized impoundment of animals.

(a) It is unlawful for any person, other than a police officer, an animal enforcement officer, a member or employee of a humane organization approved by the director, or a licensed employee of a licensed pest control service to engage in the catching or impounding of animals.

(b) It is a defense to prosecution under this section that:

(1) The animal was unlawfully running at large upon property under the possession or control of the person catching it;

(2) The animal was caught and held in a humane manner; and

(3) The capture of the animal was promptly reported to BARC animal services for the pick-up and disposition of the animal as BARC animal services deems appropriate; provided, however, if the captured animal is a domestic animal, the animal was brought to BARC animal services for disposition as BARC animal services deems appropriate.

(c) The provisions of this section shall not apply to "estrays" as defined in § 142.001 of the Texas Agriculture Code.

(d) Notwithstanding anything to the contrary in this section, it is unlawful for anyone other than a police officer, an animal enforcement officer, a member or employee of a humane organization approved by the director, or a licensed employee of a licensed pest control service to engage in the use of a trap to capture animals under extreme weather conditions.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

DIVISION 3. CARE, KEEP, AND USE OF ANIMALS

Sec. 6-7. General regulations as to care, keeping and using of animals.

Every owner, caretaker or user of any animal shall observe the following rules in connection with the care, keeping and using of the animal, and any person violating any provisions of this section shall be deemed guilty of an offense:

(1) All stables or other enclosures in which the animal is kept and the ground upon which the stable or enclosure is situated shall be maintained in a clean and sanitary condition, and all stables and fences surrounding each lot where the animal is kept and the feed troughs and water troughs, with which such animals are fed and watered, shall be free from any conditions that may injure the animal. All stables and enclosures shall contain adequate space for an animal relative to the animal's species, size, weight, and age and must allow the animal to stand upright without touching any part of the structure and to move around unencumbered.

(2) All stables containing horses shall meet the following minimum standards:

a. The size of the stable must be at least 100 square feet for horses weighing up to 1,000 pounds; stables for horses weighing over 1,000 pounds shall have a wall length of at least one and a half times the horse's length;

b. A ceiling height of at least ten feet, with a minimum clearance of three feet and six inches above the horse's head. The ceiling height is measured from the floor to the lowest point of the ceiling of the stable, including any fixtures and beams;

c. The roof of the stable must be weatherproof and the structure must provide for adequate ventilation;

d. The walls or partitions of the stable must be flush to the floor and at least eight feet tall and made of solid plywood with metal horizontal edges or boards spaced no more than 1½ inches apart with center bracing. For stables containing multiple horses, the walls or partitions must have metal bars or heavy-gauge wire mesh extending to the ceiling to allow the horses to see each other. The bars must be at least ¾ of an inch to one inch in diameter and spaced no more than three inches apart. The heavy-gauge wire mesh must have openings of no more than two inches;

e. Door openings must be at least seven feet in height and 45 inches wide; and

f. The flooring must be nonslip. Any concrete or pavers must have sufficient rubber mats or deep bedding to protect the legs and feet of the horse and must be sloped for drainage. All dirt flooring must be dug out and replaced once it is ammonia saturated.

(3) The owner, caretaker or user shall feed all animals in his care with a quantity of good, wholesome food sufficient to keep the animals in a good, well-nourished condition, and shall serve the food in a clean, sanitary manner.

(4) The owner, caretaker or user shall feed all work and milk animals with salt at proper and regular intervals.

(5) The owner, caretaker or user shall ensure that all horses or mules worked or used have good substantial shoes upon each hoof.

(6) No person shall work or use an animal where there are any sores upon the animal's body, legs, head or shoulders.

(7) The owner, caretaker or user shall ensure that all harness used on any work animal is properly fitted to the animal and is free from any wire, rivets, break, tear or anything else that will irritate or make sores on the animal.

(8) No person shall hitch an animal to any wagon that is not well-greased or where the pole or the singletree is in such condition as may cause injury to the animal.

(9) No person shall drive an animal drawing a wagon or other loaded vehicle faster than at a walk.

(10) The owner, caretaker or user shall provide each animal with pure, clean water in sufficient quantities at all times.

(11) No person shall work or use a sick or crippled animal or lead or drive it on any street of the city.

(12) No person shall run, or participate in the running, of any horse race in, along or across any public road, public square or public street in the city.

(13) No person shall leave a dog outside and unattended by use of a tether unless the person provides the dog access to:

a. Adequate shelter that is:

[1] Clean;

[2] Of sturdy construction;

[3] Able to protect the dog from direct sunlight, rain, snow, hail and subfreezing temperature; and

[4] Large enough for the dog to be able to sit, stand, lie down and turn around normally;

b. An area that allows the dog to avoid standing water; and

c. Pure, clean water.

(14) No person may restrain a dog by a tether that:

a. Is less than ten feet in length or five times the length of the dog measured from nose to the base of the tail, whichever is longer;

b. Due to the weight or construction of the tether itself, causes injury or visible discomfort to the dog;

c. Is not attached to a properly fitted collar or harness; or

d. Is a chain.

(15) The caretaker, owner, or user shall provide each animal sufficient and appropriate exercise for the requirements of the species.

(16) The caretaker, owner or user shall ensure that each animal receives adequate grooming, treatment, transportation, and veterinary care when needed to prevent suffering or disease transmission.

(17) The caretaker, owner, or user shall provide each animal sufficient and appropriate shelter for the requirements of the species.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-8. Destruction of wounded or feral animals.

(a) When any animal shall be so wounded, maimed or injured as to render its recovery hopeless, or the animal is a feral animal and poses a threat to humans, domestic animals or property, it shall be the duty of the director to cause it to be humanely destroyed. The director shall humanely destroy the animal as soon as practicable after he discovers the injury or the feral animal's threat. Upon destruction, the director shall direct or cause the carcass to be lawfully removed and disposed of. When the director causes any animal to be destroyed under this section, he shall prepare a report in writing

of the destruction to be maintained in BARC animal services' electronic records. The report shall show:

(1) A description of the animal destroyed, and the name of the animal's owner, if known; and

(2) The injury or situation that made destruction necessary, and in the case of injured animals, how the injury was inflicted, and by whom, if known.

(b) The provision of subsection (a) of this section shall not apply to veterinarians or veterinary hospitals.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-9. Shooting or catching wild birds.

(a) It is unlawful for any person to shoot or attempt to shoot or kill with any air rifle, bow and arrow, slingshot, firearm or other means, or to ensnare or catch by any means whatsoever any wild bird.

(b) It is an affirmative defense to prosecution under subsection (a) of this section that the person ensnaring or catching a wild bird is:

(1) A federal- or state-permitted bird rehabilitator authorized to take, transport and temporarily possess sick, injured or orphaned birds for rehabilitation purposes; or

(2) A federal, state, county or municipal employee capturing birds for testing purposes related to zoonotic diseases.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

DIVISION 4. LIVESTOCK

Sec. 6-10. Breeding of livestock.

It is unlawful for any person to breed, or permit or cause to be bred, any livestock unless it is done within the confines of an enclosure. For the purposes of this section, an 'enclosure' shall be construed to mean a barn or other building conforming to any applicable requirements set forth in the Building Code.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-11. Driving livestock, hogs and goats through streets.

It is unlawful for any person to drive cattle, horses, mules, hogs, sheep or goats over the public streets and ways of the city unless the person has obtained prior written permission from the chief of police. Any person desiring permission shall make a written request to the chief of police designating the type and number of animals to be driven, the route upon which they will be driven, the means of control that will be employed and the time or times at which they will be driven. The chief of police shall grant permission unless he affirmatively determines upon investigation of the request that it would pose a burden upon pedestrian or vehicular traffic or otherwise pose a danger to the safety or welfare of the public.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-12. Staking, hitching or hobbling animals.

(a) It is unlawful for any person to stake, tie or hobble any animal on any property that is owned by another without the other person's written consent by way of a sworn or unsworn declaration.

(b) It is unlawful for any person to obstruct any street or sidewalk by hitching or staking out any animal or to permit any animal to be so hitched or staked out that it can go upon or across any street or sidewalk.

(c) It is unlawful for any person to tie or fasten any animal to any tree, or to the box around any tree, planted or growing in any street or public place, or to a fence or lamppost which is the property of another without such other person's written consent by way of a sworn or unsworn declaration.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-13. Keeping of swine and goats prohibited.

It is unlawful for any person to keep or maintain one or more hogs, swine, pigs, pot-bellied pigs, or goats.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-14. Restrictions on keeping livestock.

(a) It is unlawful for any person to keep, possess, or maintain any livestock on any uncovered parcel of land unless the parcel has a minimum area of 5,000 square feet for the first animal and 2,500 additional square feet for each additional animal.

(b) It is unlawful for any person to keep, possess or maintain any livestock within 100 feet of any actual residence or building used for human habitation (other than that of the owner of such animal), or any restaurant, cafe, or other public eating place, or any church, school or hospital. The distance shall be measured in a straight line from the nearest point of the shed, stable, barn, pen or fenced enclosure or area in which the animal is contained to the nearest point of the actual residence or building used for human habitation, restaurant, cafe or other public eating place, or church, school or hospital.

(c) Any enclosure or structure used to contain livestock pursuant to this section shall be constructed in accordance with any applicable standards and requirements provided in section 6-7 of this Code and the Building Code. However, the requirements provided in item (2) of section 6-7 of this Code shall not be applicable to enclosures or structures with a valid building permit in existence on or before March 26, 2014; provided, however, that any alteration, remodeling, or reconstruction of the enclosure or structure must meet the requirements provided in item (2) of section 6-7 of this Code. Additionally, the suspension or revocation of a valid building permit for any enclosure or structure subject to this special exemption shall result in the forfeiture of the privilege of use of the enclosure or structure and shall require compliance with the requirements provided in item (2) of section 6-7 of this Code.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-15. Exemption from sections 6-13 and 6-14.

The provisions of sections 6-13 and 6-14 of this Code shall not prohibit:

(1) The temporary keeping of the animals for slaughter by slaughterhouses, for treatment by veterinary hospitals or for exhibition at fairs, shows, and circuses; or

(2) The temporary or permanent keeping of the animals mentioned in sections 6-13 and 6-14 of this Code for teaching or research purposes at a medical school, a veterinary school, a high school agricultural facility, a licensed hospital, or a nonprofit university or college providing a degree program; provided that the person in charge of the animals shall not be relieved of the operation of any of the other applicable provisions of this Code, including, without limitation, those governing sanitary conditions, nuisances, and noises. The exemption extended above to high school agricultural facilities shall apply only to facilities situated upon property that is owned and maintained by a public school district or a private school.

(3) The city keeping or maintaining goats for the purpose of managing vegetation on city property.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-16. Storage, disposal, etc., of manure.

(a) Any person owning or leasing any stable or other building or enclosure where any livestock is kept shall maintain a substantial and sufficient receptacle for manure, which must be so constructed and kept as to protect the contents from rain and so screened as to prevent access to flies, and the person must place all manure from the livestock in the receptacle.

(b) Any person owning or leasing any stable, other building or enclosure where livestock is kept shall have all manure from the animals removed from their premises at least twice in each week, and at no time shall the person allow the manure to accumulate in such a manner as to be a nuisance.

(c) It is unlawful for any person to throw or deposit any manure in any street or public place, or to allow manure from any animal under the person's care, control, or custody to remain in any street or public place. No person hauling manure through the streets shall permit the manure to litter the streets.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

DIVISION 5. DISEASE CONTROL

Sec. 6-17. Rabies control, generally; quarantine; penalty.

(a) The responsibility for the control of rabies within the city shall rest with the department, and the director of the department is duly designated as the local health authority for the purpose of the Rabies Control Act of 1981 (Chapter 826 of the Texas Health and Safety Code).

(b) The following provisions apply to an incident in which an animal bites, scratches, or otherwise attacks a person in a manner in which rabies may be transmitted:

(1) The owner of any such animal shall, on demand of the director or any animal enforcement officer, immediately surrender the animal to BARC animal services or any other rabies quarantine facility approved by the director for observation for a period lasting not more than 10 days after the date of the incident.

(2) Except as provided in items (1) and (4) of this subsection, every such animal shall be seized at once and:

a. Humanely destroyed and sent to a laboratory for testing;

b. Held under observation by the director at the BARC animal shelter in quarantine for 240 hours from the date and time of the incident at the expense of the owner of the animal; or

c. Upon request by the owner of the animal, the animal may be confined for observation in a rabies quarantine facility approved by the director at the owner's expense for the same period of time as the animal would be confined for observation at the BARC animal shelter. The director shall approve a request upon the owner's showing that the rabies quarantine facility is willing and available to confine the owner's animal.

(3) If the animal is held in quarantine at the BARC animal shelter, the owner shall be responsible for payment of fees for impoundment and veterinarian services. Additionally, the owner shall be responsible for payment of fees for the following, as applicable: microchip implantation, registration, and sterilization. Upon release of the animal, payment of fees for the boarding of the animal is due. The fees described in this subsection are stated in the city fee schedule. If, by the date the animal is to be released from the BARC animal shelter, the owner does not pay all amounts due and owed, the owner shall relinquish ownership of the animal, and the animal shall become the property of BARC animal services for disposition as BARC animal services deems appropriate.

(4) The following dogs and cats may be quarantined upon the approval of the director on the owner's premises for a period of 240 hours immediately following the date and time the animal has attacked a person if the animal had a current rabies vaccination at the time of the incident:

a. Dogs or cats confined in a building or secure enclosure;

b. Dogs or cats restrained on property that does not allow access to public sidewalks, streets and common areas; and

c. Dogs or cats under the direct physical control of the owner.

(5) All animals quarantined on the owner's premises must be examined by a veterinarian at a private veterinary clinic or a certified animal enforcement officer at the beginning of the quarantine period and examined a second time by a veterinarian or a certified animal enforcement officer at the end of the quarantine period. If the animal is examined by a veterinarian at any place other than the BARC animal shelter, the owner shall provide BARC animal enforcement with

a written report from the veterinarian setting out the results of each examination within 24 hours after the examination has been made.

(6) Any owner of an animal subject to quarantine under this subsection who fails to keep the animal confined, fails to have the animal examined by a veterinarian or an animal enforcement officer, as applicable, or fails to provide BARC animal enforcement a veterinarian's report of the results of an examination when required to do so under the provisions of this subsection shall be guilty of a misdemeanor, and upon conviction thereof, shall be fined not less than $100.00 nor more than $2,000.00.

(7) None of the provisions of this subsection apply to any dangerous dog surrendered to the director pursuant to article VI of this chapter.

(c) No animal that has rabies shall be allowed at any time on the streets or public ways of the city. No animal that has been suspected of having rabies shall be allowed at any time on the streets or public ways of the city until the animal has been released from quarantine by the director or under his direction.

(d) The owner or person in charge of any animal that has rabies or symptoms thereof, or that has been exposed to rabies, or that has bitten, scratched or otherwise attacked any person in a manner in which rabies may be transmitted shall, on demand, turn over the animal to the director.

(e) Any person having knowledge of an animal considered to be a high risk for the rabies virus, which animal has bitten, scratched or otherwise attacked, contacted, or exposed any animal in a manner in which rabies may be transmitted, is required to report it immediately to the department. The owner or person in charge of the animal shall, on demand, turn over the animal to the director for testing. For purposes of this subsection, animals considered to be a high risk for the rabies virus are animals that have a high probability of transmitting rabies, including skunks, bats, foxes, coyotes, and raccoons.

(f) No person shall dispose of the body of any animal that has died of rabies except as directed by the director.

(g) The director shall check and record all cases of rabies and of suspected rabies.

(h) Any person having knowledge of an animal bite is required to report it immediately to the department.

(i) The police and fire departments shall electronically transmit to BARC animal enforcement reports made to their respective departments of any animal that has:

(1) Rabies or symptoms thereof;

(2) Been exposed to rabies; or

(3) Bitten, scratched or otherwise attacked any person in a manner in which rabies may be transmitted.

The police and fire departments shall transmit the reports daily and shall include all relevant information gathered as a result of the response to the incident by the respective department.

(j) It shall be unlawful for any person to fail or refuse to quarantine or present for quarantine or testing an animal that is required to be placed in quarantine or required to be presented for testing under this section.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-18. Microchip implantation.

No dog that is impounded, quarantined or examined as required pursuant to section 6-17 of this Code shall be released to its owner by the private veterinary hospital or by BARC animal shelter unless and until a microchip has been implanted in the animal and the identification number has been registered with BARC animal services. If performed by the city, the city's fee for microchip implantation is stated in the city fee schedule. Upon request, the director may deputize a private veterinarian to perform any microchip implantation required under this section for a dog under the veterinarian's care; no fee shall be collected by the city for any microchip implantation that is performed by a private

veterinarian, and the veterinarian may impose any fee for his or her services as agreed between the veterinarian and his client.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-18.1. Mandatory sterilization.

(a) Except as provided in subsection (b) of this section, any dog or cat that is quarantined at the BARC animal shelter pursuant to section 6-17 of this Code shall be sterilized at the BARC animal shelter, and the owner of the animal shall be responsible for payment of the sterilization fee specified in the city fee schedule.

(b) Any dog or cat that has been approved by the director for quarantine on the owner's premises or that was quarantined at a private quarantine facility approved by the director pursuant to section 6-17 of this Code shall be exempt from the mandatory sterilization requirement set forth in subsection (a) of this section.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-19. Veterinarians to report communicable diseases.

Every veterinarian or other person who is called to examine or professionally attend any animal having glanders or farcy, rabies, tuberculosis, or any other communicable disease shall, within 24 hours, report in writing to the department the following facts:

(1) The location of the diseased animal;

(2) The name and address of the owner of the animal; and

(3) The type and character of the disease.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

DIVISION 6. ENFORCEMENT

Sec. 6-20. Powers of enforcement officers.

The director, the animal enforcement officers and other authorized employees of BARC animal services, along with any police officer, shall have full authority to enforce this chapter and other ordinances of the city relating to animals and fowl.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-21. Notice of violations.

All police officers, animal enforcement officers, and urban park rangers of the parks and recreation department are authorized to issue written citations to persons violating this chapter or any other ordinance governing the regulation of animals.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-22. Enforcement by neighborhood protection official.

The neighborhood protection official shall have concurrent authority with the director to enforce the provisions of articles I and II of this chapter. However, the neighborhood protection official shall not impound any animal or issue any permit under this chapter.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

DIVISION 7. DOMESTIC ANIMALS GENERALLY

Sec. 6-23. Congregations of unconfined and stray cats and dogs.

(a) It is unlawful for any person to intentionally cause, suffer or permit the maintenance of an attractive environment for the assembly of a congregation of unconfined and stray cats or dogs by the placement of dog food or cat food. For purposes of this section a "congregation of unconfined stray cats or dogs" means any three or more dogs or cats that:

(1) May, of their own volition, enter or leave the property on which the food is placed; and

(2) Are not part of a community cat or trap, neuter, and return program.

(b) For purposes of this section, "cat food" or "dog food" means any commercially prepared cat or dog food or any other food item or product that is subject to consumption by dogs or cats.

(c) It is an affirmative defense that the dogs or cats were free-roaming and that the person placed the food solely for the purpose of apprehending the dogs and cats and:

(1) Delivering them to the BARC animal shelter;

(2) Delivering them to a humane organization;

(3) Delivering them to a licensed veterinarian for sterilization as part of a community cat or trap, neuter and return program; or

(4) Assuming ownership and obtaining a rabies vaccination and a current registration issued by the city for such animals.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-24. Defecation by dogs or cats.

(a) Any person in control of a dog or cat is required to promptly remove and dispose of, in a sanitary manner, feces left by the dog or cat.

(b) Any person in control of a dog or cat is required to be in possession of materials to remove feces left by the dog or cat.

(c) It is an affirmative defense to prosecution under this section that the person in control of the dog or cat is the owner of the premises, or the owner's agent of the premises, where the dog or cat deposits feces.

(d) Violation of this section is unlawful and any violation shall be punishable upon conviction by a fine of not less than $75.00 or more than $500.00. Each act in contravention of this section is a separate offense.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-25. Assuming responsibility for domestic animals.

Except as provided in the affirmative defenses as set forth in section 6-23 of this Code, any person who has encouraged the presence of any domestic animal on his property, residence, or premises by providing food and water or other care, or has otherwise accepted caretaker responsibility for the animal for longer than three consecutive days, and who is not part of a community cat program approved by the director, shall be considered to be the owner of the animal.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

DIVISION 8. BARC FOUNDATION

Sec. 6-26. Name and purpose.

(a) The name of this organization shall be the BARC Foundation, herein after called the "foundation."

(b) The foundation shall, among other things:

(1) Receive and maintain real or personal property, or both, and use and apply the income therefrom and the principal thereof exclusively for charitable, scientific and educational purposes related to the care and humane treatment of animals;

(2) Solicit funds, gifts, and bequests for medical and kennel supplies and equipment for use at BARC animal shelters;

(3) Promote awareness to Houston area residents on responsible pet ownership, spay/ neuter practices, pet adoption and the humane treatment of all animals; and

(4) Review and make advisory recommendations to the mayor and city council on responsible pet ownership, spay/neuter practices, pet adoption and the humane treatment of all animals.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-27. Composition; appointment and terms of members; filling of vacancies; fidelity bond.

(a) The board of directors of the foundation shall, in addition to the ex officio members hereinafter provided for, consist of not more than 15 members to be nominated by the mayor and confirmed by the city council. Each member shall be appointed to a specific position, Position 1 through 15. All members shall reside in one of the counties that make up the Houston-The Woodlands-Sugar Land, TX Metropolitan Statistical Area as defined by the Office of Management and Budget in the Executive Office of the President of the United States.

(b) The term for members of the board shall be two years. Odd-numbered positions shall have terms that expire June 30 of odd-numbered years. Even-numbered positions shall have terms that expire June 30 of even-numbered years.

(c) The BARC Animal Services director, or his designee, and the executive director shall be at all times an ex officio nonvoting member of the board.

(d) The board, by adoption of a resolution, may designate persons to serve as additional ex officio nonvoting members of the board or as nonvoting advisory directors of the board.

(e) In the event of the death or resignation of any member of the board prior to the expiration of such member's term of service, the mayor shall nominate and the city council shall confirm a successor who shall serve out the remaining unexpired term and enter upon the duties of a member at the next regular meeting of the foundation.

(f) Any member of the board serving in a position for which the term has expired shall continue to serve until the member's successor in that position is appointed and confirmed.

(g) Any director may be removed by the mayor for the following reasons:

(1) With or without cause, by the affirmative vote of a majority of the board of directors (other than such director being removed) present at a duly held meeting of the Corporation;

(2) Failure to abstain in votes or activities of the foundation where direct or indirect conflicts-of-interest are, or may be involved; or

(3) Failure to meet any minimum requirements established by the board and imposed upon all directors.

(h) The city shall maintain a blanket fidelity bond in the amount of $10,000.00 for each member of the board. This requirement may be satisfied by amendment to the city's blanket fidelity bond for city employees so as to authorize inclusion of the board members.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022; Ord. No. 2026-0389, 2, 5-6-2026)

Sec. 6-28. Compensation of members; conflicts of interest.

(a) Members of the board shall serve without compensation from the city or any firm, trust, donation or legacy to or on behalf of the city; provided, however, that a member of the foundation, or the firm, company or corporation with whom the member is associated, shall not be precluded from receiving compensation from the city under any contract for services rendered which have no relation to the member's duties as a member of the board.

(b) Each member of the board is a covered person for the purpose of article X of chapter 2 of this Code.

(c) Members of the board shall abstain from voting upon matters in which they have a conflict of interest, and members of the board shall not participate in any activity of the foundation in which they have a conflict of interest. The provisions of this subsection shall be cumulative of any applicable foundation bylaws, resolutions adopted by the board or other documentation ratified by the board pertaining to compensation, conflicts of interest or any other documentation addressing the conduct of members of the board.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-29. Organization and meetings.

(a) The foundation shall organize by electing from their membership a board chair, a chair-elect, a secretary and a treasurer, each of which officers shall hold office for two years, or until their successor shall have been elected and qualified. The foundation may adopt such administrative procedures as are necessary or convenient to accomplish the purposes set out in this article.

(b) The foundation may employ any necessary staff, including an executive director, at salaries set by the foundation. Any staff of the foundation shall not be considered employees of the city for any purposes and shall not be entitled to any of the privileges or benefits of the city's employees.

(c) Regular foundation meetings shall be held at least four times a year. In addition, annual and special meetings may be held in accordance with such rules as the foundation may provide.

(d) A majority of the members of the board shall constitute a quorum for the transaction of business; however, in the event of a vacancy on the board, a majority of the remaining members of the board shall constitute a quorum for the transaction of business.

(e) All meetings of the foundation shall be held in accordance with the Texas Open Meetings Act.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022; Ord. No. 2026-0389, §§ 3, 4, 5-6-2026)

Sec. 6-30. Additional powers.

(a) The foundation may cooperate with any trust created for a purpose similar to that of the foundation as set out in section 6-26 of this Code. In addition, the foundation may contract for financial management and investment services and may pay the reasonable fees therefor from solicited funds, gifts, bequests, and income therefrom; provided, the foundation shall exclude therefrom any solicited funds, gifts, or bequests when payment of a financial management and investment service fee would be contrary to the provisions of the grant.

(b) Whenever funds are given to the foundation for a specific purpose, the board may exercise its sole discretion on how that purpose is accomplished; provided, however, if the purchase of any services is involved, such purchases shall be executed in accordance with any applicable local or state laws, rules or regulations, including but not limited to, the City of Houston Procurement Code.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-30.1. Financial records and annual financial report.

(a) The financial books and records of the board shall be open to inspection and audit during regular business hours by authorized representatives of the city, or by independent certified public accountants employed by the city, or by board members themselves. Similarly, the financial books and records of any trust created for the benefit of or to cooperate with the foundation shall be open to inspection and audit.

(b) The foundation shall file, at least annually, audited financial statements with the mayor, city council, the city controller, and the director of the department of finance.

(c) All foundation financial and accounting procedures shall be approved by the director of the department of finance and comply with the city's policies, processes, and procedures for city nonprofit and local government corporations.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

ARTICLE II. KEEPING OF FOWL, RABBITS AND GUINEA PIGS

Sec. 6-31. Location restrictions for fowl.

(a) It is unlawful, except as provided in sections 6-33 and 6-34 of this Code, for any person to keep, possess or maintain in the city any chickens, turkeys, geese, ducks, pea-fowls, or any other bird or fowl, except parakeets, canaries, parrots, cockatoos, macaws or similar birds, or any pens, enclosures, or other structures in which any such fowl are kept or possessed within 100 feet of any actual residence or habitation of human beings, or within 100 feet of any church, school or hospital, other than the residence of the possessor or owner of the fowl, the distance to be measured in a straight line from the nearest point of any pen, enclosure, or other such structure in which the fowl are kept to the nearest point of the actual residence or place of human habitation, or church, school or hospital.

(b) Any enclosure or structure located outside of a residence that is used to contain fowl and satisfies the distance requirement set forth in

subsection (a) of this section shall be constructed in accordance with any applicable standards and requirements set forth in the Building Code.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-32. Location restrictions for rabbits and guinea pigs.

(a) It is unlawful, except as provided in section 6-33 of this Code, for any person to keep, possess or maintain in the city any rabbits or guinea pigs, or any pens, enclosures, hutches, cages or other structures in which any rabbits or guinea pigs are kept, possessed or maintained, within 100 feet of any actual residence or habitation of human beings, or within 100 feet of any church, school or hospital, other than the residence of the possessor or owner of the rabbits or guinea pigs, the distance to be measured in a straight line from the nearest point of any pen, enclosure, hutch, cage or other such structure in which such rabbits or guinea pigs are kept to the nearest point of the actual residence or place of human habitation, or church, school or hospital.

(b) It is an affirmative defense to prosecution under subsection (a) of this section that rabbits or guinea pigs are kept inside the residence of the owner at all times and that the conditions within the residence are not unsanitary to the extent that the conditions create a possible medium for the transmission of disease to the animals kept there or to human beings.

(c) Any enclosure or structure located outside of a residence that is used to contain rabbits or guinea pigs and satisfies the distance requirement set forth in subsection (a) of this section shall be constructed in accordance with any applicable standards and requirements set forth in the Building Code.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-33. Keeping for commercial purposes.

It is unlawful for the owner of any geese, ducks, turkeys, chickens or other domestic fowl or rabbits or guinea pigs, where the fowl or animals are kept for sale or commercial purposes, to allow the fowl or animals to roam in open pens on the ground; but the owner may keep the fowl or animals for sale or commercial purposes, provided he keeps the fowl or animals in batteries or coops arranged inside of buildings in a sanitary condition, and he shall remove all droppings from the buildings, batteries or coops at least once each day, and disinfect and deodorize the buildings, batteries or coops at least once each day.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-34. Keeping for public showing.

Notwithstanding anything in this article, it shall be lawful for any person to keep, possess and maintain chickens, turkeys, geese, ducks, pea-fowls, guineas, rabbits and guinea pigs for the purpose of a legitimate showing of the fowl and animals for purely public exhibition, provided the conditions set forth in this article are observed.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-35. Limitation on number to be kept.

Any person keeping, possessing, or maintaining chickens, turkeys, geese, ducks, pea-fowls, rabbits, or guinea pigs in the city at least 100 feet from any actual residence or habitation of human beings, church, school or hospital, other than the residence of the possessor or owner of such animals, shall keep no more than 30 chickens, turkeys, geese, ducks, pea-fowls, rabbits, or guinea pigs. Additionally, no more than 40 of any combination of chickens, turkeys, geese, ducks, pea-fowls, rabbits and guinea pigs shall be kept upon any lot or enclosure of the size of 65 by 125 feet or less. In the event that the fowl or animals are kept in a larger enclosure, the number so kept and maintained may be increased only in the ratio that the above figures of 30 and 40 bear to the increase in the square footage of the larger enclosure.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-36. Maintenance of premises where kept.

(a) Any person keeping pens, hutches, or houses or any enclosure in which fowl, rabbits or guinea pigs are kept must clean and disinfect the

premises daily, lime the premises every two days and must keep the premises in a clean and sanitary condition at all times.

(b) Litter and droppings from such fowl, rabbits and guinea pigs must be collected daily and stored in a flytight container and hauled away at intervals not to exceed seven calendar days. Rabbit and guinea pig hutches must have traps or floors to keep droppings or urine from such animals off the ground.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-37. Keeping guineas prohibited.

It is unlawful to keep or maintain any guinea fowl or guinea hens.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-38. Possession or sale of rooster prohibited.

(a) It is unlawful for any person to be in possession or engaged in the sale of roosters or male chickens.

(b) The director may seize any rooster possessed in violation of this section and impound the animal at the BARC animal shelter. The director, any animal enforcement officer or any police officer may enter any building or property to seize a rooster that is possessed in violation of this section upon consent of an adult occupant of the building or property or one having the right of possession thereof, or under a warrant issued by a municipal judge.

(c) The director shall impose a fee for the impoundment and daily boarding of a rooster and the amount of such fees shall be stated in the city fee schedule. All fees are payable by the owner of the rooster upon either redemption of the rooster from the BARC animal shelter or disposition of the rooster by BARC animal services.

(d) The owner of an impounded rooster may redeem the rooster within 24 hours upon payment of all impoundment and daily boarding fees and the provision of a sworn statement stating that the owner will immediately remove the rooster from the city and will keep the rooster at an identified place where its possession is not unlawful.

(e) An impounded rooster that is not claimed within 24 hours by its owner shall become the property of BARC animal services for disposition as BARC animal services deems appropriate.

(f) It shall be a defense to prosecution under subsection (a) of this section that the rooster is:

(1) Owned by a governmental entity or participating in a health, research, educational or similar program conducted by a governmental entity; or

(2) Owned by a medical, educational, or research institution operating in compliance with all applicable federal, state, and local laws.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-39. Coloring of baby fowl and rabbits.

(a) It is unlawful for any person to dye, stain or otherwise alter the natural color of any chicken, duckling, gosling or rabbit.

(b) It shall be a defense to prosecution under subsection (a) of this section that the animal was dyed or stained for commercial use or breeding purposes, for scientific, educational or governmental purposes or any other purpose not related to its being furnished or kept as a pet.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Secs. 6-40—6-50. Reserved.

ARTICLE III. KEEPING OF WILD ANIMALS

Sec. 6-51. Wild animal defined.

As used in this article, the term wild animal shall mean any mammal, amphibian, reptile or fowl of a species that is wild by nature and that, because of its size, vicious nature or other characteristics, is dangerous to human beings. Wild animals shall include, but not be limited to, lions, tigers, leopards, panthers, wild cat-domestic cat hybrids up to the third generation, bears, wolves, wolf-dog hybrids, cougars, coyotes, coyote-dog hybrids, raccoons, skunks (whether deodorized or not), apes, gorillas, monkeys of a species whose average adult weight is 20 pounds or more, foxes, elephants, rhinoceroses, alligators, crocodiles, caymans, fowl larger than a macaw, all forms of venomous reptiles and any snake that will grow to a length greater than eight feet. The term shall also include any animal listed as an 'endangered species' under the Federal Endangered Species Act of 1973, as amended, or any fowl protected by the Federal

Migratory Bird Treaty Act. The term wild animal shall not include gerbils, hamsters, guinea pigs, mice and domesticated rabbits.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-52. Possession prohibited.

(a) It is unlawful for any person to be in possession of a wild animal.

(b) It is unlawful for the owner or other person in possession or control of any property, residence or business premises to knowingly permit any other person to be in possession of a wild animal upon the property, residence or business premises.

(c) As used in this section, the term 'to be in possession' includes the harboring or keeping of any wild animal, whether on a temporary or permanent basis and includes, without limitation, holding or keeping the wild animal for the temporary and/or limited purpose of sale or transfer or offering of sale or transfer to another person.

(d) It is an affirmative defense to prosecution under this section that the wild animal is in possession in accordance with all applicable state and federal laws and that:

(1) The wild animal is being kept for treatment in an animal hospital operated by a veterinarian;

(2) The wild animal is being kept at an institution that is accredited by a nationally recognized zoological association;

(3) The wild animal is being kept at a shelter operated by a state or federally recognized humane agency for the purpose of its transfer to a refuge or sanctuary;

(4) The wild animal is being kept for medical research or teaching purposes at a medical school or licensed hospital or by a university or college offering an accredited degree program;

(5) The wild animal is in the possession of an airline, motor freight agency, rail freight agency or other carrier, and its possession in the city is incidental to transportation, provided that the wild animal is secured within a cage or other enclosure that is adequate to prevent its escape;

(6) The wild animal is being kept or transported temporarily for a production in accordance with a permit or registration under section 6-54 of this Code; or

(7) The wild animal is being transported for use in film making and other productions under section 6-58 of this Code.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-53. Penalty.

Violation of any provision of this article is a misdemeanor punishable by a fine of not less than $500.00, nor more than $2,000.00. Each wild animal possessed in violation of this article and each day on which it is possessed shall constitute and be punishable as a separate offense.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-54. Temporary permit; registration for productions.

(a) In this section, the term 'production' means any temporary exhibition or use of a wild animal for purposes of a television, movie or stage production, circus or carnival performance, traveling zoo or animal exposition or other similar use.

(b) A temporary and nonrenewable permit to possess a wild animal in the city for a period of not more than 30 calendar days may be obtained from the director for the purpose of a production. The applicant for a production permit shall demonstrate to the director that:

(1) The wild animal is required for the production;

(2) The wild animal will be in the direct charge of its trainer or another person who is familiar with the wild animal and has been trained in its handling and care;

(3) The applicant will, consistent with the size and characteristics of the wild animal, have additional handlers available as required to control the wild animal at any time that it is not confined;

(4) The owner of each place where the production will take place and the owner of each place where the wild animal will be kept, if different, has consented in writing to its presence;

(5) The applicant holds a policy of public liability insurance issued by a carrier authorized to write the policy under Texas law in an amount of not less than $100,000.00, per occurrence, providing coverage in case of injury or death of any person or damage to any property that results from negligence in the control or handling of the wild animal; and

(6) The wild animal will be kept in such manner as to prevent its escape and to prevent injury to persons not associated with the production.

(c) Applications for permits shall be made in writing to the director upon forms promulgated for that purpose and shall be submitted to the director at least 20 calendar days before the commencement of the production. Each application shall be accompanied by the nonrefundable fee in the amounts stated in the city fee schedule for five or fewer wild animals, for six to ten wild animals or for 11 or more wild animals.

(d) A permit issued under this section is valid only for the designated production and the keeping of a wild animal in the city for that limited purpose and shall only extend for the duration of the production.

(e) The director shall have the right to inspect a wild animal at any time while it is being kept under a permit issued under this section.

(f) If the director denies a permit application, he shall give the applicant notice of the reasons for denial and an opportunity for a hearing.

Following notice, the director may revoke a permit for any violation of this article or applicable state or federal laws. The permit holder shall be afforded an opportunity for a hearing before a permit is revoked. Pending the hearing, the director may suspend the permit if the actions of the permit holder appear to constitute a substantial hazard to public health or safety. Hearings and proceedings referenced in this subsection shall be conducted in the same manner as provided in division 4 of article IV of this chapter for denials, suspensions and revocations of breeder's permits.

(g) The provisions of this section shall not be construed to require a person to obtain a city permit if the person holds a current and valid exhibitors license under the Federal Animal Welfare Act (7 U.S.C. § 2131 et seq.) or a current and valid circus, carnival or zoo operators license issued under chapter 2152 of the Texas Occupations Code and is conducting the production under authority of the state or federal license, provided that the person registers his production with the director at least 20 calendar days prior to the commencement of the production and provides the following information:

(1) A description of each wild animal to be kept;

(2) A copy of the state or federal license or other evidence that the person holds a current and valid state or federal license to keep and use the wild animals for the production;

(3) Evidence that each person on whose property the production will be presented or the wild animals will be kept has consented to the presence of the wild animals on the person's property; and

(4) The name, local address and local telephone number of a person or persons who may be contacted for inspections conducted or notices given by the director or in case of any escape, attack or other incident involving the wild animal.

The director may conduct inspections of wild animals kept pursuant to registrations filed under this section and, in cooperation with responsible state and federal regulatory authorities, may take action as appropriate to ensure that wild animals are kept and exhibited in accordance with applicable state and federal requirements. Failure to complete the registration with the director prior to 20 calendar

days before the commencement of the exhibition will result in a late fee in the amount stated in the city fee schedule.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-55. Impoundment.

(a) The director shall seize any wild animal possessed in violation of this article and impound the animal at the BARC animal shelter or other suitable place. The director, any animal enforcement officer or any police officer may enter any building or property to seize a wild animal that is possessed in violation of this article upon consent of an adult occupant of the building or property or one having the right of possession of the building or property, or under a warrant issued by a municipal judge.

(b) The director shall impose a per animal fee for the impoundment of a wild animal, and a daily boarding fee, per animal. The amounts of the fees shall be predicated upon the cost of impoundment, care and feeding of the type of wild animal impounded and are stated in the city fee schedule.

(c) A wild animal that has been impounded for the first time may be redeemed within seven calendar days by its owner if:

(1) The owner demonstrates that he holds any state or federal license or permit required to keep the animal;

(2) The animal is not believed to be infected with rabies or any other infectious disease; and

(3) The owner provides a sworn affidavit setting forth that the wild animal will immediately be removed from the city and will be kept at an identified place where its possession is not unlawful.

The director may require that a wild animal that is released under this subsection be tattooed or otherwise made identifiable in the event that it is again impounded.

(d) Consistent with applicable state and federal laws and regulations, the director shall dispose of any wild animal that:

(1) Is not timely redeemed following its first impoundment; or

(2) Is impounded for a second time.

Disposal of a wild animal pursuant to this subsection shall occur by placing the wild animal in a public zoo or at a reserve, sanctuary or shelter operated by or under the auspices of a recognized humane organization. If a placement is not practicable and cannot be made within 30 calendar days following the date of impoundment, the wild animal may be humanely destroyed if destruction is not prohibited by state or federal law.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-56. Regulations promulgated by the director.

Consistent with the provisions of this Code and applicable state and federal laws, the director may adopt and implement regulations for the administration of this article and the keeping of wild animals. The director shall post a copy of the regulations on BARC animal services' website and maintain a copy of the regulations for inspection in the offices of the city secretary and the director. The director shall provide copies for purchase for fees provided by law.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-57. Vaccine; use of live vaccine prohibited; keeping of animals vaccinated by same prohibited; exception.

(a) No person shall vaccinate, or attempt to vaccinate, any wild animal against rabies except in strict compliance with any regulations promulgated and published by the Texas Department of State Health Services and in accordance with the current protocol published by the American Veterinary Medicine Association for the vaccination of wild animals.

(b) Notwithstanding subsection (a) of this section, no person shall vaccinate, or attempt to vaccinate, any wild animal against rabies by the use of live vaccine.

(c) Except as provided in subsection (d) of this section, no person shall possess, keep, permit, or allow any wild animal if such animal has been vaccinated against rabies with the use of live vaccine.

(d) This section shall not apply to the use of live rabies vaccine for research purposes when the research is conducted by a medical school, licensed hospital or nonprofit university providing a degree program.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-58. Transport of wild animals used for film making, productions, etc.

(a) It is an affirmative defense to prosecution under section 6-52 of this Code that the person cited was transporting the wild animal by vehicle upon the public streets and that the wild animal was secured within the vehicle being utilized for its transport in such a manner that it could not escape from the vehicle, it could not come into contact with any person who was not also within or upon the vehicle, and it could not come into contact with the driver of the vehicle while the vehicle was in motion.

(b) It is also an affirmative defense to prosecution under section 6-52 of this Code that, at the time of the alleged offense:

(1) The person cited was actually utilizing the wild animal at a production site for the purposes of the production of a motion picture being made for viewing by the general public, or a film or tape designed for use in a television show or television advertisement and in which the use of the wild animal was specified by the script; and

(2) The person cited had the written permission of the person having the right of possession and control of the production site to use the wild animal on the site in the production; and

(3) The wild animal was in the immediate and direct charge of a person who had been trained in its care and handling and who was responsible to ensure that the animal could not come in contact with persons who had not affirmatively consented to be involved in the production, and who was responsible for the prevention of its escape or any injuries or damage that the animal might cause to persons or property at all times during its utilization at the production site, and who had under his control and supervision at all times the wild animal was present no fewer than four additional persons over 18 years of age who could assist if needed in controlling the animal; and

(4) The person cited had given the director five calendar days' prior written notice of his intent to utilize the wild animal, specifying the type of wild animal and production activity, the location of the production site, the address of the place where the wild animal would be kept when not in use at the production site, dates and times that the wild animal would be present at the site, and the name and a local address and telephone number at which the handler of the wild animal could be contacted during the production activity. The notice shall be either mailed, certified mail, return receipt requested, or hand-delivered to the Director, c/o AnimalEnforcement Manager, BARC Animal Services, 2700 Evella, Houston, Texas 77026.

(c) The provisions of section 6-52 of this Code shall be applicable to the wild animal when it is kept within the city while not being used in the production.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Secs. 6-59—6-75. Reserved.

ARTICLE IV. DOGS AND CATS

DIVISION 1. GENERALLY

Sec. 6-76. Number to be kept.

It is unlawful for any person to own, keep, possess or have control over four or more adult dogs, four or more adult cats, or any combination thereof exceeding three adult dogs and three adult cats on residential property within 100 feet of any other building used for human habitation. The distance shall be measured in a straight line from the nearest point of the structure or fenced enclosure where the animal is contained to the nearest point of the other building used for human habitation.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Secs. 6-77—6-84. Reserved.

DIVISION 2. MICROCHIPPING AND VACCINATION

Sec. 6-85. Microchip required.

No person shall own, possess or have control over any dog or cat that is four months of age or older unless the dog or cat has been implanted with a microchip.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-86. Registration required.

(a) The owner or custodian of any dog or cat must register the animal by providing to BARC animal services the identification number of the implanted chip and a physical description of the animal before the animal attains four months of age, for an amount set in the city fee schedule. It is the duty of the owner or custodian of the animal to ensure that the animal's implanted microchip identification number is registered with the manufacturer of the microchip in addition to being registered with BARC animal services. If there is a change in contact information for the owner or custodian of the microchipped animal, the owner or custodian shall update the contact information with BARC animal services and the microchip manufacturer within 30 days after the date of the change in contact information. If there is a change in ownership of a microchipped animal, the initial owner or custodian shall be responsible for notifying BARC animal services and the microchip manufacturer of the change within 30 days after the date of change in ownership. The new owner or custodian shall be responsible for providing BARC animal services with the new owner's or custodian's name, address and telephone number within 30 days after the change in ownership.

(b) It is a defense to prosecution under this section that:

(1) The animal owner is a nonresident of this city and is keeping the subject animal in the city for fewer than 30 days;

(2) The animal owner has been a resident of this city for fewer than 30 days; or

(3) The animal had been abandoned or lost and the temporary owner has had the dog or cat for fewer than 30 days.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-87. Fees.

(a) The following terms shall be applicable for microchip registrations for dogs and cats:

(1) If the cat or dog has been sterilized, the owner shall obtain a sterilized pet registration for each animal for an initial registration fee and the regular payment of a renewal fee.

(2) If a dog or cat has not been sterilized, the owner shall obtain an unsterilized pet registration for the animal for an initial registration fee and the regular payment of a renewal fee.

(3) Senior citizens 60 years of age or older shall obtain a sterilized pet registration for each sterilized dog or cat for an initial registration fee and the regular payment of a renewal fee.

(4) A person who uses a service animal, as defined by federal or state law, that has been sterilized may, upon application,

obtain a sterilized pet registration without paying any fee therefor except a registration renewal fee.

(b) The amounts of the fees described in this section are stated in the city fee schedule.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-88. Special clinics; fees.

(a) From time to time, the department may conduct special clinics for the vaccination, microchip implantation and registration of dogs and cats in cooperation with any group or association of veterinarians at the times and places designated by the director. Prior to each special clinic, the director shall provide a notice to the city secretary to be posted in a conspicuous place in City Hall.

(b) The following provisions shall be applicable to any special clinic held pursuant to this section:

(1) The veterinarians shall agree to reduce their charges below the usual and customary fees for vaccinating a dog or cat at the clinic; and

(2) The city's registration fee for each dog or cat vaccinated and registered at the clinic shall be the applicable fee set out in the city fee schedule, provided, however, that the director may establish a lesser fee amount in connection with periodic special programs designed to promote the adoption of dogs or cats.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-89. Duration; transfer.

(a) Each sterilized pet registration and unsterilized pet registration shall expire upon the first occurrence of any of the following events:

(1) The expiration of the current rabies vaccination that was evidenced in the documentation furnished to obtain the registration;

(2) The death of the animal;

(3) The 30th calendar day following any change of ownership of the animal, unless the registration has been amended by that date;

(4) The 30th calendar day following any change of the address of the animal's owner unless the registration has been amended by that date;

(5) The anniversary of the issuance of the dog or cat's registration if the rabies vaccination is documented by a licensed veterinarian to be medically inadvisable for the dog or cat; or

(6) In order to partially defray the city's additional costs associated with late issuance and renewal of licenses, a late processing fee shall be added to the cost of the dog or cat license fees if the applicant fails to obtain both a current rabies vaccination and a renewed registration upon the expiration of the current vaccination and registration.

(b) In the event of a change of ownership of the registered animal or in the event of a change of address of the registered animal's owner, the owner must submit an application for amendment to reflect the change of owner or address within 30 calendar days following the date of the change. The director may promulgate forms and administrative rules as required for the orderly administration of registration amendments and applications. The director shall post a copy of the administrative rules on BARC animal services' website and maintain a copy for public inspection in the offices of the director and the city secretary. No fee shall be imposed for an amendment.

(c) An expired registration is of no force and effect. A new registration must be obtained on or before expiration if the animal remains subject to registration by the city hereunder.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-90. Rabies vaccination required prior to issuance; certification of sterilization.

(a) Subject to the affirmative defenses provided in section 6-94 of this Code, the director shall not issue any animal registration unless there is

exhibited to him a certificate by a veterinarian showing that the animal to be registered has been inoculated with a rabies vaccine approved by the U.S. Department of Agriculture's Veterinary Biologics Division in accordance with the recommendations of the manufacturer, and that the vaccination will not expire prior to the issuance of the registration.

(b) The director shall not issue any animal registration for an animal as being a spayed or neutered animal unless there is also exhibited to him:

(1) A certificate by a veterinarian indicating that the animal has been spayed or neutered; or

(2) Other clear and convincing evidence that the animal has, in fact, been spayed or neutered.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-91. Records.

The department shall maintain a record of all registrations issued under this article, which shall show the name and address of each person issued a registration, a description of the dog or cat for which the registration is issued, the date of issuance, the fee paid, the place of issuance, the type of rabies vaccine administered and the date of inoculation, if applicable.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Secs. 6-92, 6-93. Reserved.

Sec. 6-94. When rabies vaccination required; evidence.

(a) No person shall own, possess or have control over any dog or cat that is four months of age or older unless the dog or cat has a current rabies vaccination.

(b) In any prosecution under this section, the burden shall be upon the defendant to prove that the animal is not required to be vaccinated because:

(1) The animal is less than four months of age;

(2) The animal was in fact vaccinated and such vaccination is not expired; or

(3) The vaccination against rabies is medically inadvisable for the animal.

A certificate duly signed by a veterinarian attesting either that he administered the vaccination required by this section, bearing the date and type of vaccine or that the vaccination against rabies is medically inadvisable shall be accepted as valid proof, provided that the certificate contains the identification of the dog or cat by breed, color, and sex, the vaccination tag number, if applicable, and the name and address of the owner.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-95. Duty of veterinarian.

(a) For purposes of this section, the following terms shall have the following meanings:

Information bulletin shall mean the informational bulletin that is described in subsection (b) of this section.

Registration application form shall mean the form prescribed by the city for a dog or cat registration application.

Vaccination tag shall mean any tag, disk or other item designed or intended to be attached to a dog or cat as evidence that the animal has received a vaccination for rabies. For purposes of this section, a veterinarian shall be deemed to vaccinate an animal whether he personally administers vaccine to the animal or causes or allows the vaccine to be administered under his supervision or his control.

(b) The director shall print information bulletins and microchip registration application forms. The information bulletins shall contain any information concerning the ordinances regulating dogs and cats that the director finds will aid in enforcement of the city's requirements for registering animals. The director shall make copies, without charge, of the information bulletin and the registration application form available for distribution to veterinarians and their employees in quantities sufficient to meet their needs. Copies of the information bulletin and

registration application form shall also be available at the BARC animal shelter during regular business hours.

(c) Each time a veterinarian vaccinates a dog or cat for rabies, the veterinarian is encouraged to furnish a copy of the information bulletin to the person presenting the animal for vaccination.

(d) It shall be the duty of each veterinarian who vaccinates any dog or cat for rabies to furnish to the director, on or before the 30th calendar day following the administration of the vaccination, a copy of the veterinarian's rabies vaccination information for the animal, setting forth:

(1) A description of the dog or cat, including its breed, age, color and sex;

(2) Whether the animal has been neutered (if known or determinable by the veterinarian);

(3) The rabies vaccine manufacturer name and serial number;

(4) The vaccination date and expiration (one or three years);

(5) The serial number of the vaccination tag furnished; and

(6) The name and the current address of the person owning or keeping the animal. Any information required to be provided above may be furnished to the office of the director by personal delivery, electronic transmission or by United States Mail properly addressed to the director. Mailed notices shall be deemed received upon their deposit with the United States Postal Service as evidenced by the postmark date, if legible, provided that they are in fact received by BARC animal services.

(e) Each veterinarian, or his agent or employee, shall inform each person to whom he furnishes a vaccination tag that the vaccination tag does not constitute a city registration. The veterinarian shall provide this information in writing and in a manner that the information is clearly conspicuous to the reader of the writing.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-96. Unsterilized pet registration revocation; mandatory sterilization.

Any owner of an animal with an unsterilized pet registration whose animal is impounded for running at large in violation of this chapter two or more times shall have the unsterilized pet registration immediately revoked and shall be required to have the animal sterilized prior to redemption of the animal from the BARC animal shelter. Upon redemption of the animal from the BARC animal shelter:

(1) The owner shall purchase a sterilized pet registration for the animal;

(2) The owner shall pay the fee for the performance of sterilization at the BARC animal shelter; and

(3) The owner shall pay any other applicable fees as set forth in section 6-137 of this Code.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Secs. 6-97—6-100. Reserved.

DIVISION 3. IMPOUNDMENT OF DOGS RUNNING AT LARGE

Sec. 6-101. Running at large prohibited.

(a) It is unlawful for any person owning or having in his possession any dog to allow the dog to be at large without the owner or person in charge having direct physical control over the dog. An owner or person having in his possession a dog may allow the dog to be at large on property that does not provide the animal with access to a sidewalk, street, or common areas of apartment buildings, condominiums, retirement facilities, nursing homes, and other multiple-unit residential facilities.

(b) It is a defense to prosecution under subsection (a) of this section that the dog was in an off-leash site established under section 32-11 of this Code.

(c) It is unlawful for any person owning or having in his possession a dangerous dog, as defined in section 6-151 of this Code, to allow

that dog to be at large. A person who violates this subsection shall, upon conviction, be assessed a fine of not less than $500.00 nor more than $2,000.00. Each day that any violation of this subsection continues shall constitute and be punishable as a separate offense.

(d) It is unlawful for any person owning or having in his possession an aggressive dog, as defined in section 6-151 of this Code, to allow that dog to be at large. A person who violates this subsection shall, upon conviction, be assessed a fine of not less than $250.00 nor more than $1,000.00. Each day that any violation of this subsection continues shall constitute and be punishable as a separate offense.

(e) It is unlawful for any person owning or having in his possession a public nuisance dog, as defined in section 6-151 of this Code, to allow that dog to be at large. A person who violates this subsection shall, upon conviction, be assessed a fine of not less than $200.00 nor more than $1,000.00. Each day that any violation of this subsection continues shall constitute and be punishable as a separate offense.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-102. Impoundment generally.

(a) It shall be the duty of the animal enforcement officers to take up and take charge of all dogs found to be running at large in contravention of section 6-101 of this Code, and to take the dogs to the BARC animal shelter or any other suitable place to be impounded and detained for a period as provided in subsection (b) or (c) of this section.

(b) If a dog that has been delivered to the BARC animal shelter has a microchip or is wearing a city license tag not more than one year past the expiration date, a current local veterinarian's vaccination tag, or an identification tag, the director shall notify the owner of the dog by telephone, mail, email, or hand delivery that the dog has been received at the BARC animal shelter. The mailing or hand delivery of notice shall be deemed sufficient notice under this section if it is mailed or hand delivered to the owner at the address shown in the city's records for the license if the dog is wearing a city license tag, to the address shown in the local veterinarian's records if the animal is wearing a local veterinarian's tag, or to the address provided on the identification tag or obtained from the microchip.

Dogs wearing a current local veterinarian's tag or an identification tag, or implanted with a microchip, shall be held in designated pens for the owner for six calendar days from the date the owner was notified by telephone, mail, email, or hand delivery. If the notice is delivered by mail, the six calendar days will begin on the date that the notice is delivered to the owner. A notice delivered by mail shall be deemed to be received on the earlier of the date it is actually received, or the third day following the date upon which the notice was deposited, properly addressed and with proper postage attached, in custody of the U.S. Postal Service. On the seventh calendar day following notice, title and sole ownership of the dog transfers to BARC animal services, the dog becomes the sole property of BARC animal services, and becomes subject to disposition as BARC animal services deems appropriate.

(c) Except as provided in section 6-138(6) of this Code, any dog without an identification tag, a microchip, or a current local veterinarian's vaccination tag, or any dog with a city license tag more than one year past the expiration date shall be held at a BARC animal shelter facility for a period of 48 hours, after which title and sole ownership of the dog transfers to BARC animal services, the dog becomes the sole property of BARC animal services, and becomes subject to disposition as the director deems appropriate.

(d) The director is authorized to negotiate with other local government agencies for the handling of animals under the provisions of this Code. Any contract that is the subject of negotiations must be approved and its execution authorized by city council as in other contracts entered into by the city.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Secs. 6-103—6-110. Reserved.

DIVISION 4. BREEDING AND SELLING

Sec. 6-111. Permit required.

It is unlawful for any person to operate as any of the following types of breeders without a valid breeder's permit:

(1) Commercial breeder;

(2) Hobby/conformation breeder; or

(3) Non-commercial breeder.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-112. Application for breeder's permit.

(a) A person who wishes to operate as a commercial breeder shall apply to the director for a commercial breeder's permit. An application for a commercial breeder's permit shall include:

(1) The name, address, and telephone number of the applicant;

(2) The name, address, and telephone number of the location where the breeding will be conducted;

(3) A description of the types of animals to be bred; and

(4) Any other information deemed necessary by the director.

(b) A person who wishes to operate as a hobby/conformation breeder shall apply to the director for a hobby/conformation breeder's permit. An application for a hobby/conformation breeder's permit shall include the information contained in subsection (a) of this section. Additionally, the applicant shall submit the following documentation must be submitted with the permit application:

(1) Ownership papers or a current pet registration issued pursuant to this chapter;

(2) Membership card or receipt for current dues being paid to an organized national, regional, or local club established for the purpose of improving a breed, showing in a competitive venue, use in a sporting activity or work purposes, or other personal reasons; and

(3) One of the following items:

a. Breed standard, if breeding is for the purposes of conforming or strengthening the lineage of a particular breed; or

b. A completed entry form for a competitive, sporting, or working event.

(c) A person who wishes to operate as a non-commercial breeder shall apply to the director for a non-commercial breeder's permit. An application for a non-commercial breeder's permit shall include the information contained in subsection (a) of this section.

(d) The director shall issue the commercial, hobby/conformation or non-commercial breeder's permit if the applicant meets the qualifications to obtain the permit. The director shall deny a commercial, hobby/conformation, or non-commercial breeder's permit if the applicant fails to:

(1) Complete the application for a commercial, hobby/conformation or non-commercial breeders permit;

(2) Properly restrain the dogs and cats in his care and custody;

(3) Adequately care for and protect the dogs and cats in his care and custody;

(4) Meet all requirements specified on the commercial, hobby/conformation or non-commercial breeder's permit; or

(5) Pay all required fees pertaining to the commercial, hobby/conformation or non-commercial breeder's permit.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-113. Grounds for revocation.

The director shall revoke a commercial, hobby/conformation, or non-commercial breeder's permit if the permit holder fails to comply with the provisions set forth in subsection (d) of section 6-112 of this Code.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-114. Fees.

The annual fee for a commercial, hobby/conformation and non-commercial breeder's permit is stated in the city fee schedule. A permit shall expire one year from the date of issuance and must be renewed prior to its expiration. Failure to timely renew a permit will result in the assessment of the late fee stated in the city fee schedule against the permit holder.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-115. Notice of denial or revocation.

If the director denies an application or a request for renewal, or revokes an existing permit, he shall provide notice of the denial or revocation to the applicant or permit holder in writing not later than the tenth business day after his determination to deny an application or renewal or to revoke a permit. The notice of denial or revocation shall be sent to the permit holder or applicant by certified mail, return receipt requested, addressed to the permit holder or applicant.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-116. Appeal.

A person may appeal the denial or revocation of a permit by delivering a written request for an appeal to the director not more than ten calendar days after the first date of mailing written notice of denial or revocation.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-117. Hearing.

(a) The director shall cause written notice to be given to the applicant or permit holder that a hearing on his appeal will be conducted. The notice shall include the following:

(1) The place where the hearing will be conducted; and

(2) The date and time of the hearing, which shall be not later than the tenth business day after the date the notice was sent to the applicant or permit holder; provided that the hearing officer may continue the hearing upon the written request of the applicant or permit holder.

(b) All hearings shall be held by a hearing officer, who may, prior to the hearing, receive a copy of the notice given to the applicant or permit holder.

(c) An assistant city attorney may be present at the hearing to advise the hearing officer as to procedural matters; however, the attorney shall not participate in any determination of the facts.

(d) All hearings shall be conducted under rules consistent with the informal nature of the proceedings; provided, however, the following rules shall apply to all hearings:

(1) All parties shall have the right to representation by a licensed attorney, though an attorney is not required;

(2) Each party may present witnesses in his own behalf;

(3) Each party has the right to cross examine all witnesses; and

(4) Only evidence presented before the hearing officer at the hearing shall be considered in rendering the decision.

(e) The hearing officer may affirm or reverse a permit denial or a permit revocation. The decision of the hearing officer shall be final and shall be delivered in writing to the applicant or permit holder in the same manner as a notice under section 6-115 of this Code.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-118. Pet and live animal sales

(a) It is unlawful for any person to sell, trade, barter, lease, rent, give away, or display for a commercial purpose a live animal on a roadside, public right-of-way, commercial parking lot, or at an outdoor special sale, swap meet, indoor or outdoor flea market, parking lot sale, or similar event.

(b) This section does not apply to:

(1) An agent of a business that has a valid permit for a commercial pet service facility under section 6-121 of this Code;

(2) An event primarily for the sale of agricultural livestock such as hoofed

animals or animals or fowl commonly raised for food, dairy, or fiber products; or

(3) A tax-exempt non-profit organization founded for the purpose of providing humane sanctuary or shelter for abandoned or unwanted animals.

(c) Notwithstanding anything to the contrary in this section, it is unlawful for anyone to sell or offer for sale in commercial or retail pet store, feed store, or other related retail establishment, any canine or feline of any age that is not sourced from a municipal or county animal shelter, or a humane organization as defined in section 6-1 of this Code.

(1) Commercial or retail establishments selling canines or felines shall keep a record of the animal shelter or humane organization that any canine or feline sold was sourced from. Such records must be kept for a minimum of one year from the date of the sale, and be available for inspection by BARC animal enforcement upon request.

(2) It shall be an affirmative defense to this section, during the period from January 19, 2022 until January 19, 2023, that such an establishment was fully permitted under this division and in operation prior to January 19, 2022. Thereafter, commencing on January 20, 2023, this affirmative defense shall no longer apply. Anytime such an establishment allows for its permit to lapse or it is no longer compliant with section 6-111 of this Code, it must then comply with section 6-118(c) of this Code.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-119. Penalty.

A violation of this division shall constitute a Class C misdemeanor.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-120. Reserved.

DIVISION 5. COMMERCIAL PET SERVICE FACILITIES

Sec. 6-121. Commercial pet service facility license—Required; fee; exceptions.

(a) Any person in the city conducting, managing or maintaining a commercial pet service facility shall obtain a license to do so from the department and pay an annual license fee, regardless of the number of animals kept. The annual license fee is stated in the city fee schedule.

(b) The license fee shall be for the calendar year or any part thereof during which the commercial pet service facility is maintained, and shall be due and payable in advance on or before January first of each year.

(c) The fee imposed under subsection (a) of this section shall not be applicable to a commercial pet service facility that is operated by a humane organization as a shelter facility. The foregoing fee exemption shall not be construed to exempt the humane organization from maintaining a valid license for any commercial pet service facility which it may operate or from compliance with any applicable ordinance governing the operation or location of a commercial pet service facility.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-122. Application.

(a) Any person desiring to obtain a license shall make application on forms provided by the director and shall include information requested by the director for implementation of this division, including the following information:

(1) The full name of the applicant, the street address where the business is to be located, and the residence address of each owner, manager and operator of the business;

(2) Whether any owner or operator is an individual, partnership, corporation, or other legal entity; provided, however, that the type of business organization shall include only those organizations recognized by the Texas Business

Organizations Code ("BOC") and authorized to engage in the type of business covered by this article, and if the organization is a foreign entity required to register under Chapter 9 of the BOC, full and complete copies of the organization's current registration;

(3) If any owner or operator is a corporation, the names and addresses of all officers of the corporation; and if there are fewer than five shareholders, the names of all shareholders;

(4) If any owner or operator is a partnership, the type of partnership and names and addresses of all general partners, and for limited partnerships, the names and addresses of all members;

(5) If any owner or operator is an unincorporated association, the names and addresses of all officers of the association;

(6) If any applicant does business under an assumed name as that term is defined in Texas Business and Commerce Code § 71.002, all assumed names used;

(7) A declaration that the operation of a commercial pet service facility at the street address where the business is to be located will not violate any applicable deed restrictions enforceable by the city pursuant to article XV of chapter 10 of this Code;

(8) A description of the types of services to be provided at the facility;

(9) A declaration that the minimum standards regarding maintenance, sanitation and prevention of nuisances as set forth in the rules and regulations established by the director pursuant to section 6-123 of this Code have been met;

(10) A declaration that the director may enter and inspect the facility at any reasonable time to ensure compliance with this division; and

(11) Any other information reasonably required by the director to ensure compliance with the requirements of this division.

(b) Upon submission of a complete application and payment of the license fee, an applicant shall be entitled to receive a license. All licenses issued pursuant to this division are made expressly subject to applicable deed restrictions enforceable by the city pursuant to article XV of chapter 10 of this Code and no license shall be construed as authorizing any violation thereof.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-123. Minimum standards for operations.

The director shall establish rules and regulations for the minimum standards regarding maintenance, sanitation, and prevention of nuisances for the various types of commercial pet service facilities to be issued a license under this division. He shall base the rules and regulations on the standards set forth in 9 C.F.R. part 3, subpart A (Specification for the Humane Handling, Care, Treatment, and Transportation of Dogs and Cats), and any amendment or successor thereto. The director shall maintain a copy of the rules and regulations for public inspection in his offices and on the BARC animal services website. Each licensee shall maintain a commercial pet service facility in accordance with the applicable minimum standards set forth in such rules and regulations.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-124. Issuance and display of certificate; notification of changes.

(a) The director shall issue a certificate to the person paying for a commercial pet service facility license, which certificate shall contain the information specified in section 6-125 of this Code. The licensees shall display the certificate at all times in a prominent place in the commercial pet service facility.

(b) A licensee shall notify the director by personal delivery or certified mail of any change in the name, address, management, or substantial control or ownership of ten percent or more of

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the outstanding shares of stock as shown on the license application of his business or operation within ten calendar days of any such change.

(c) A license issued under this division shall be personal to the applicant and shall not be transferrable or otherwise assigned.

(d) A license issued under this division shall only be valid for the address of the facility provided in the application.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-125. Records to be kept.

The director shall keep a permanent record of all commercial pet service facility licenses issued under the terms of this chapter, which record shall show the following information:

(1) The name and address of all persons being issued a commercial pet service facility license;

(2) The name and address of the commercial pet service facility;

(3) The number of the commercial pet service facility license,

(4) The date the license was issued; and

(5) The amount paid for the license.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-126. Suspension, revocation.

(a) *Grounds for suspension.* The director may suspend any commercial pet service facility license if any of the following conditions occur:

(1) Animals at the commercial pet service facility are being deprived of necessary food, water, care or shelter;

(2) Animals at the commercial pet service facility are being cruelly confined or are otherwise being cruelly treated;

(3) Unsanitary conditions exist at the commercial pet service facility to such an extent that those conditions create a possible medium for the transmission of disease to the animals kept there or to human beings; or

(4) The licensee or any agent or employee of the licensee responsible for the oversight or operation of the commercial pet service facility receives three or more convictions for violations of section 30-3 of this Code in relation to the operation of the commercial pet service facility in a 12-month period.

(b) *Written notice of suspension.* Prior to suspension, written notice shall be given to the licensee, the person in charge of the commercial pet service facility, or any employee or agent of the licensee. The notice shall set forth:

(1) The specific conditions existing at the commercial pet service facility that are grounds for suspension of the license pursuant to subsection (a) of this section;

(2) That a hearing will be held by a hearing officer;

(3) The date, time and place of the hearing; and

(4) That the licensee may appear in person and/or be represented by counsel and may present testimony and cross-examine all witnesses.

The hearing shall be held not later than seven business days after the date the licensee received notice of the suspension.

(c) *Conduct of hearing.* All hearings shall be held by a hearing officer and shall be conducted under rules consistent with the nature of the proceedings; provided, however, the following rules shall apply to each hearing:

(1) All parties shall have the right to representation by a licensed attorney though an attorney is not required;

(2) Each party may present witnesses in his own behalf;

(3) Each party has the right to cross-examine all witnesses; and

(4) Only evidence presented before the hearing officer at the hearing may be considered in rendering the order.

If the licensee fails to appear at the hearing at the time, place and date specified, the city shall

present sufficient evidence to establish a prima facie case showing that conditions exist at the commercial pet service facility that are grounds for suspension of the license pursuant to subsection (a) of this section.

(d) *Findings of hearing officer.* After completion of the hearing, the hearing officer shall make written findings as to whether grounds exist for suspension of the license. If the hearing officer finds that no grounds exist for suspension of the license, the hearing officer shall deny the request for suspension. If the hearing officer finds that grounds do exist for suspension of the license, he shall order the suspension of the license; provided, however, if the hearing officer finds that the needs of the animals and the public interest will be adequately protected by a warning, he may issue a warning and deny the request for suspension. A denial of a request for suspension of a license shall not preclude the director from seeking a revocation of the license as set forth below.

A copy of the written findings and order of the hearing officer shall be served on the licensee. If the address of the licensee is unknown or the notice has been sent certified mail, return receipt requested and has been returned undelivered, such notice shall be served on the person in charge of the commercial pet service facility or on any employee or agent of the licensee.

(e) *Removal of animals upon suspension of license.* If the license is suspended, no one shall accept or place any animal in the commercial pet service facility and all animals at the commercial pet service facility on the date the license is suspended shall be removed by the licensee as soon as possible, but in no case no later than ten calendar days after receipt by the licensee, his agent or his employee of the order of suspension from the hearing officer unless the license has been reinstated prior to that time.

(f) *Correction of conditions; inspection; reinstatement of license.* Whenever the reason for a suspension no longer exists, the licensee or person in charge of the commercial pet service facility shall notify BARC animal enforcement that the conditions under which the license was suspended have been corrected and that an inspection is requested; provided, however, if the license was suspended under subsection (a)(4) of this section, the licensee or person in charge of the commercial pet service facility shall notify BARC animal enforcement that the conditions under which the convictions were received have been corrected and an inspection is requested. The director shall conduct the inspection as soon as possible after receiving the request and in no event later than three business days after the receipt of the request for an inspection. If the inspection shows that the conditions have been corrected, the director shall reinstate the license unless the director has given notice that he is seeking revocation of the license.

(g) *Conditions for revocation.* The director may revoke a license to operate a commercial pet service facility if any of the following conditions occur:

(1) Animals at the commercial pet service facility are being deprived of necessary food, water, care or shelter;

(2) Animals at the commercial pet service facility are being cruelly treated;

(3) Unsanitary conditions exist at the commercial pet service facility to such an extent that those conditions create a possible medium for the transmission of the disease to the animals kept at the commercial pet service facility or to human beings;

(4) Conditions stated in subsection (g)(2) and/or (g)(3) of this section have existed on two or more occasions at the commercial pet service facility after the officials of BARC animal enforcement have warned the commercial pet service facility of the conditions;

(5) The commercial pet service facility license has been suspended two or more times;

(6) The licensee is shown to have committed any offense involving cruelty to animals; or

(7) The licensee has knowingly employed any person at the commercial pet service facility or allowed any person to work at

the commercial pet service facility who has been convicted of any offense involving cruelty to animals.

(h) *Written notice of grounds for revocation.* Prior to revocation, the director shall give written notice to the licensee or person in charge. The notice shall set forth:

(1) The specific conditions existing at the commercial pet service facility which are grounds for revocation of the license pursuant to subsection (g) of this section;

(2) That a hearing will be held by a hearing officer;

(3) The date, time and place of the hearing; and

(4) That the licensee may appear in person and/or be represented by counsel, may present testimony and may cross-examine all witnesses.

Each hearing shall be held in accordance with subsection (c) of this section not later than seven business days after the date the notice of revocation is received by the licensee. If the licensee fails to appear at the hearing at the time, place and date specified, the city shall present sufficient evidence to establish a prima facie case showing that grounds in fact do exist for the revocation of the license.

(i) *Findings of hearing officer.* After completion of the hearing, the hearing officer shall make written findings as to whether grounds exist for revocation of the license. If the hearing officer finds that no grounds exist for revocation of the license, the hearing officer shall deny the request for revocation. If the hearing officer finds that grounds do exist for revocation of the license, he shall order the revocation of the license; provided, however, if the city sought revocation for reasons under subsection (g)(1), (2) or (3) of this section and no grounds exist for revocation under (g)(4), (5), (6) or (7) of this section, the hearing officer may deny the request for revocation and either order the suspension of the license or issue a warning if he finds that the needs of the animals and the public interest will be adequately protected by a warning. The licensee of any license that is suspended under this subsection must comply with subsection (e) of this section regarding the removal of animals from the property. The license may be reinstated in accordance with subsection (f) of this section.

A copy of the written findings and order of the hearing officer shall be served on the licensee. If the address of the licensee is unknown or if the findings and order have been sent certified mail, returned receipt requested, and returned undelivered, the findings and order shall be served on the person in charge of the commercial pet service facility or on an agent or employee of the licensee.

(j) *Removal of animals upon revocation of license.* If the license is revoked, no one shall accept or place any animal in the commercial pet service facility and all animals at the commercial pet service facility on the date the license is revoked shall be removed by the licensee as soon as possible, but in no case no later than ten calendar days after receipt by the licensee, his agent or his employee of the order of revocation from the hearing officer.

(k) *Service of notices.* Any notice provided for in this section may be served by personal delivery or by certified mail, return receipt requested.

(l) *Nonrefundability of license fee; reinstatement of license.* In the event a license is revoked, the city shall not be liable to the licensee for any refund of any part of the license fee. Reinstatement of a license that has been revoked shall require application and payment of a license fee as if it were an initial application; provided, however, no license shall be issued to the same licensee if the licensee has been convicted of any offense involving cruelty to animals; no license shall be issued to the same licensee within one year of the date a license has been revoked; and no license shall be issued for the same location unless it is shown that adequate precautions have been taken so that the conditions under which the license was revoked shall not reoccur. If there is a dispute between the inspector and a person applying for a license for a place for which a license was revoked as to whether adequate precautions have been taken so that the conditions under which the license was revoked will not reoccur, the applicant may

request a hearing before a hearing officer. The hearing shall be conducted under the same procedures as a hearing for a revocation of a license; however, the burden shall be on the applicant to show that adequate precautions have been taken so that the conditions under which the license was revoked will not reoccur.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Secs. 6-127—6-130. Reserved.

DIVISION 6. ANIMAL SHELTER ADVISORY COMMITTEE

Sec. 6-131. Committee created.

(a) There is hereby created the animal shelter advisory committee ("the committee").

(b) The committee shall perform the state law advisory committee functions contemplated in § 823.005 of the Health and Safety Code by rendering advice and assistance to the director regarding the city's compliance with the requirements of chapter 823 of the Health and Safety Code.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-132. Members; terms; offices.

(a) The committee shall consist of six members, which membership positions shall be designated as positions one through six. The members in positions one through four shall be appointed by the city council in accordance with rule 19 of the city council's rules of procedure as codified in section 2-2 of this Code. The members in positions five and six shall be appointed by the mayor and confirmed by the city council. The following membership criteria shall apply:

(1) Position one shall be filled by a veterinarian.

(2) Position two shall be filled by a municipal or county official.

(3) Position three shall be filled by a person whose duties include the daily operation of an "animal shelter" as that term is defined in § 823.001 of the Health and Safety Code.

(4) Position four shall be filled by a person who is an officer or employee of an animal welfare organization.

(5) Positions five and six shall be filled by residents of the city.

(b) The members of the committee shall serve for two-year terms commencing on the first day of each even-numbered calendar year and ending on the last day of each odd-numbered calendar year, or until such time as their successors are appointed and qualified, whichever event shall occur later.

(c) At the first meeting of each calendar year, the members of the committee shall select a chairperson. The member serving in position two of the committee shall be the ex officio, non-voting secretary of the committee.

(d) Positions 1 through 4 need not be occupied by residents of the city, provided they reside in the Houston-Sugar Land-Baytown metropolitan statistical area, as defined by the Office of Management and Budget within the Executive Office of the President of the United States.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-133. Meetings; corporation; quorum.

The committee shall meet from time to time at the call of the chairperson, provided that the committee shall meet not less than three times per calendar year. A majority of the members of the committee shall constitute a quorum for the conduct of business. The director shall arrange for a city conference room to be provided for the conduct of meetings. Members shall not be compensated for service, provided that any member who is a city employee shall continue to receive his regular compensation while serving on the committee. All meetings of the committee shall be conducted in accordance with the Texas Open Meetings Act.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Secs. 6-134, 6-135. Reserved.

ARTICLE V. DISPOSITION OF IMPOUNDED ANIMALS

Sec. 6-136. Scope.

This article shall apply to the disposition of impounded animals, and the word 'animals' as used in this article shall mean all animals other than those subject to the provisions of chapter 142 of the Texas Agriculture Code (estrays) and those subject to the provisions of article III of this chapter.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-137. After impoundment.

(a) *Redemption.* The person entitled to the possession of any animal delivered (the "claimant") to the BARC animal shelter shall be entitled to have the animal delivered to him at the BARC animal shelter and shall meet the following conditions:

(1) *Evidence of ownership.* The claimant must present satisfactory evidence of ownership, as evidenced by the following:

a. A registration issued pursuant to this chapter;

b. A microchip indicating ownership of the animal;

c. Receipt for purchase or adoption of the animal;

d. Records from a veterinarian showing vaccinations administered within the previous 12 months;

e. Receipts for payment to a veterinarian or commercial pet service facility for services rendered to the animal; or

f. Photographic or videographic records showing the animal and individual asserting ownership at home or in other environments.

(2) *Compliance with law.* The claimant must also demonstrate proof of compliance with the following:

a. Sections 6-18 and 6-85 of this Code requiring microchip implantation. If the animal does not have a microchip implanted and the claimant cannot show proof of otherwise complying with sections 6-18 or 6-85, BARC animal services shall perform the service, for which the claimant shall pay the fee stated in the city fee schedule.

b. Section 6-86 of this Code requiring registration of microchip identification number. If the claimant has not registered the animal's microchip identification number with BARC animal services or the microchip manufacturer, the claimant shall register the animal's microchip identification number and pay the fee as provided in section 6-87 of this Code.

c. Section 6-90 of this Code requiring a certification of rabies vaccination. If the claimant has not provided a certification of vaccination and cannot show proof of otherwise complying with section 6-90, BARC animal service shall vaccinate the animal and the claimant shall pay the fee stated in the city fee schedule.

d. Any other applicable ordinance or statute governing the release of an animal to the owner.

(3) *Impoundment fee.* Except as otherwise provided in this chapter, the following fees in the amounts stated in the city fee schedule shall be charged for each category of animal listed below for the first, second, and third and each subsequent impoundment of the same animal in the BARC animal shelter:

a. For sterilized dogs and cats;

b. For unsterilized dogs and cats;

c. For fowl; and

d. For other animals.

(4) *Waiver of impoundment fee.* An animal implanted with a registered microchip under section 6-86 of this Code shall not be subject to the impoundment fee for the first six days of impoundment.

(5) *Sterilization.* Unsterilized dogs or cats shall be sterilized at the BARC animal shelter, for which the claimant shall pay the amount stated in the city fee schedule, plus any additional fees that may be applicable in cases of surgical complications, unless:

a. The animal has a valid unsterilized pet registration as of the time of the impoundment of the animal;

b. The officer in charge of the BARC animal shelter is able to determine by external examination that the animal has been sterilized;

c. The dog or cat is not yet of age to be sterilized; or

d. The owner presents a certificate from a veterinarian establishing either that the animal has been sterilized or that it has a serious medical condition that would make it medically inadvisable to sterilize the animal.

(6) *Boarding fee.* Except as otherwise specifically provided in this chapter, the director shall impose and the claimant shall pay the per animal daily boarding fee stated in the city fee schedule. The director may promulgate a schedule of boarding fees for various types of animals, including but not limited to dogs and cats, fowl, and other animals. The fees for boarding shall be based on the costs for care and feeding of the type of animal impoundedWhen a claimant seeks delivery of an animal on the first business day after a holiday observed by closure of city offices, no boarding fee shall be charged for the immediately preceding holiday unless the holiday was within the period of quarantine of the animal for rabies observation. No boarding fee shall be charged for the first six days for animals implanted with a registered microchip under section 6-86 of this Code.

(7) *Veterinarian care fee.* The claimant shall pay reasonable expenses for the treatment of the animal for injury or illness. Any veterinarian of the BARC animal shelter is hereby specifically authorized to treat an animal for injury or illness when the treatment is found to be reasonably necessary in his judgment. The veterinarian in charge of the BARC animal shelter shall, from time to time, establish a uniform schedule of fees for treatment on the basis of the city's actual costs incurred in providing treatment. The director shall post a copy of the schedule on BARC animal service's website and maintain a copy for public inspection in the offices of the director and the city secretary. The minimum fee for veterinary services to any animal shall be not less than the minimum fee stated in the city fee schedule.

(b) It shall be the duty of the officer in charge of the BARC animal shelter to offer for adoption any and all animals deemed medically and behaviorally appropriate by the BARC animal shelter staff that have become the property of BARC animal services pursuant to section 6-102 of this Code and to offer the animals for adoption for cash or other financial consideration for the amount of the accrued fees against the animal. Upon the adoption of the animal by any individual, title and sole ownership of the animal by BARC animal services ceases and transfers to the adopting individual.

(c) No animals that have been taken to the BARC animal shelter shall be redeemed or adopted unless they are vaccinated for rabies, except in the following instances:

(1) The appropriate official has been furnished with satisfactory proof and evidence that the animal has been inoculated with a rabies vaccine approved by the U.S. Department of Agriculture's Veterinary Biologics Division, and that the immunization will not expire prior to the expiration of a registration issued for the animal upon release of the animal;

(2) The animal is less than four months of age;

(3) The vaccination against rabies is medically inadvisable for the animal as

evidenced by a certificate duly signed by a veterinarian attesting such and containing the identification of the dog or cat by breed, color, sex, and the name and address of the owner; or

(4) The animal cannot be inoculated for rabies due to illness, in which case, the owner must comply with subsection (g) of this section.

(d) The owner of any animal impounded in the BARC animal shelter shall be required to redeem the animal as provided for in subsection (a) of this section and shall not be permitted to adopt the animal in lieu of paying the redemption fee.

(e) It is unlawful to remove animals from the BARC animal shelter except in accordance with the procedures established in this section and the regulations established by the director.

(f) Any dog or cat impounded in the BARC animal shelter that is claimed by the owner that has not been inoculated for rabies in accordance with article IV (dogs and cats) of this chapter and cannot be inoculated due to illness will be delivered to any veterinary hospital within the city, as designated by the animal's owner, for further treatment for the fee stated in the city fee schedule. In these instances, the veterinarian operating the veterinary hospital must agree to:

(1) Vaccinate the animal for rabies in accordance with article IV of this chapter prior to releasing the animal from the veterinary hospital; and

(2) Furnish a certificate evidencing the vaccination to BARC animal services.

(g) Under no circumstances may an animal that has been impounded be transferred or sold to a dealer as that term is defined in 7. U.S.C. § 2132.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-138. Disposal of impounded dogs, cats, other animals not redeemed or adopted.

Animals taken up and impounded under the terms of this chapter that are not redeemed as provided in this article shall be disposed of by the city as follows:

(1) Any animal that is vaccinated and sterilized and is otherwise deemed suitable for adoption may be offered for adoption through a city facility. The director shall impose a per animal adoption fee in accordance with the city fee schedule. The director is authorized to offer an incentive program to promote the adoption of dogs, cats or other animals for one or more periods during which the director may reduce the adoption fee. Upon the adoption of the animal by any individual, title and sole ownership of the animal by BARC animal services ceases and transfers to the individual.

(2) Any animal that is suitable for adoption as a pet and is not placed for adoption through city facilities may be placed for adoption through a humane organization. The director shall establish uniform criteria for the placement of adoptable animals through a humane organization and shall make surplus adoptable animals available to those organizations that meet the criteria. The criteria shall include requirements that animals be vaccinated and sterilized in accordance with law and that the animals be registered in the jurisdiction where they will be kept. Upon the transfer of the animal to the humane organization, title and sole ownership of the animal by BARC animal services ceases and transfers to the humane organization.

(3) The director may authorize a third party not regularly employed by the city to offer animals for adoption and collect the adoption fees on behalf of the city if the third party demonstrates proof of financial responsibility for the fees to be collected and remitted in a form satisfactory to the

director. A third party may not impose any fee in addition to that specified by this section. Upon the adoption of the animal by any individual, title and sole ownership of the animal by BARC animal services ceases and transfers to the individual.

(4) All animals that are not placed for adoption shall be destroyed by use of humane euthanasia procedures as recommended by the American Veterinary Medical Association.

(5) Under no circumstances may an animal be sold or donated for research or teaching purposes to a medical school, licensed hospital, or nonprofit university or college.

(6) Notwithstanding any other provisions of this chapter, any animal under four months of age that is surrendered to BARC animal services at a BARC animal shelter facility or picked up by an animal enforcement officer shall become the sole property of BARC animal services upon delivery of the animal to a BARC animal shelter facility and shall be subject to disposition as BARC animal services deems appropriate.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-139. Reserved.

Sec. 6-140. Sterilization of dogs and cats offered for adoption or fostering.

(a) In accordance with applicable state law, the director shall establish procedures to ensure that no unsterilized dog or cat is released from the city's animal enforcement facilities for adoption or fostering except under the terms of a sterilization agreement as required by chapter 828 of the Texas Health and Safety Code.

(b) It shall be unlawful for an individual that signs a sterilization agreement in subsection (a) of this section to fail to comply with the terms of the sterilization agreement, including the presentation of proof of sterilization to BARC animal services within the timeframe specified in the sterilization agreement.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-141. Adoption or fostering of animals from barc animal services; denial; appeal.

(a) Except as provided in subsection (b) of this section, any person of at least 18 years of age may submit an application to the director to adopt or foster an animal.

(b) No person who has been convicted of animal cruelty shall be permitted to adopt or foster animals from BARC animal services. If the director denies an application to adopt or foster an animal from BARC animal services due to the applicant's prior conviction of animal cruelty, the director shall give written notice by personal delivery or certified mail, return receipt requested, to the applicant at the address stated in the application. The decision of the director is final unless the applicant files a written appeal with the director not later than the fifth business day after the date the applicant received notice that the application was denied. If the applicant timely files a written appeal, the applicant shall be given notice of the date, time and place of the hearing for his appeal. A hearing officer shall conduct the hearing within ten business days of the director's receipt of the notice of appeal. The hearing shall be conducted informally and the hearing officer shall determine by a preponderance of the evidence whether grounds exist for the denial of the application. The hearing officer may consider city records used in the consideration of the application and affidavits, as well as any testimony or documentary evidence offered by the applicant. At the conclusion of the hearing, the hearing officer shall enter a written order with his findings as to whether or not the application should be denied. The written order shall be sent by personal delivery or certified mail, return receipt requested, to the applicant at the address stated in the application and shall be sent as soon after the conclusion of the hearing as practicable, but in no event more than 30 calendar days thereafter. The decision of the hearing officer shall be final.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Secs. 6-142—6-150. Reserved.

ARTICLE VI. DANGEROUS, AGGRESSIVE, AND PUBLIC NUISANCE DOGS

Sec. 6-151. Definitions.

As used in this article, the following words and phrases shall have the meanings provided below, unless the content of their usage clearly indicates another meaning:

Aggressive dog means a dog that meets one of the following conditions:

(1) Bites, assaults, or otherwise attacks a person without provocation on the property of the owner and causes serious bodily injury to the person, provided that the person is on the property of the owner with the owner's consent or invitation;

(2) Attacks and does bodily injury to domestic animals;

(3) Has committed acts that cause a person of normal sensibilities to fear the dog will attack that person or a domesticated animal without provocation while inside an enclosure, and such enclosure is not sufficient to ensure the safety of persons or domesticated animals on adjoining property or the public at large; or

(4) Has otherwise interfered with the freedom of movement of persons in a public right-of-way, regardless of whether the dog was on the property of its owner.

Bodily injury means physical pain, illness, or any impairment of physical condition that results from a bite or attack by a dog.

Dangerous dog has the same meaning as provided in § 822.041 of the Texas Health and Safety Code, as amended from time to time.

Owner has the same meaning as provided in § 822.041 of the Texas Health and Safety Code, as amended from time to time.

Public nuisance dog shall mean any dog that meets one of the following conditions:

(1) Substantially interferes with the right to enjoyment of life or property by persons other than the owner by acts including, but not limited to, frequent, long, or continued barking or howling, repeated defecation on property other than that of the owner, or damaging property other than that of the owner;

(2) Is documented by BARC animal enforcement, a police officer, a neighborhood protection official or a member of the public to be running at large three or more times in a 12-month period; or

(3) Is one of a number of dogs or other animals maintained on the property owned or controlled by its owner so as to be dangerous to the public health, safety or welfare.

Secure enclosure means a fenced area or structure that is:

(1) At least six feet in height with secure sides and a secure top; if the enclosure does not have a floor that is secured to its sides, the sides shall be embedded at least two feet into the ground;

(2) Of sufficient size to allow the dog to move freely;

(3) Locked;

(4) Capable of preventing the entry of the general public, including children;

(5) Capable of preventing the escape or release of a dangerous dog by any means, including digging, climbing, jumping, or chewing out of the enclosure;

(6) Clearly marked as containing a dangerous dog; and

(7) Located no less than five feet from another property line or fence adjoining the premises on which the enclosure is located.

Serious bodily injury has the same meaning as provided in § 822.001 of the Texas Health and Safety Code, as amended from time to time.

Unprovoked means action by a dog that is not:

(1) In response to being tormented, abused, or assaulted by any person;

(2) In response to pain or injury;

(3) In protection of itself; or

(4) In response to a person trespassing or committing a crime on the owner's property.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-152. Determination that dog is dangerous.

(a) Upon receipt of a sworn, written complaint by any person, in a form approved by the director, that a dog may constitute a dangerous dog, the director may conduct an investigation. At the conclusion of the investigation, the director may:

(1) Determine that a dog is not dangerous; or

(2) Determine that a dog is dangerous and order the registrant or owner to comply with the requirements for ownership of a dangerous dog set forth in this article and Subchapter D, Chapter 822 of the Texas Health and Safety Code.

(b) The director shall notify the registrant or owner, either in person, by posting a determination notice on the last known residence of the owner or by certified mail, return receipt requested, of his determination. If a dog is determined to be dangerous, the notice of determination shall inform the registrant or owner of the following:

(1) That the dog is dangerous;

(2) That the registrant or owner must comply with requirements for ownership of a dangerous dog as set forth in this article and Subchapter D, Chapter 822 of the Texas Health and Safety Code; and

(3) That the registrant or owner has a right to appeal a determination of dangerousness in accordance with section 6-158 of this Code.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-153. Dog causing death or serious bodily injury to a person.

(a) The provisions of this section for the seizure of a dog and subsequent hearing shall comply with Subchapter A, Chapter 822 of the Texas Health and Safety Code.

(b) Any person may make a sworn complaint to a municipal court that a dog has caused the death of or serious bodily injury to a person by attacking, biting, or mauling the person.

(c) Upon receipt of the complaint in subsection (b) of this Code and a showing of probable cause to believe that the dog caused the death of or serious bodily injury to the person as stated in the complaint, a municipal court shall order BARC animal enforcement to seize the dog and shall issue a warrant authorizing the seizure.

(d) BARC animal enforcement shall seize the dog or order its seizure and shall provide for the impoundment of the dog in secure and humane conditions until the court orders the disposition of the dog.

(e) The court shall set a time for a hearing to determine whether the dog caused the death of or serious bodily injury to a person by attacking, biting, or mauling the person. The hearing must be held not later than the 10^{th} day after the date on which the warrant is issued. The court shall give written notice of the time and place of the hearing to:

(1) The owner of the dog or the person from whom the dog was seized; and

(2) The person who made the complaint.

(f) Any interested party, including the city attorney, is entitled to present evidence at the hearing.

(g) The court shall order the dog to be humanely destroyed if the court finds that the dog caused the death of or serious bodily injury to a person by attacking, biting, or mauling the person. The court shall also order that the owner or registrant pay all fees incurred for the impoundment of the dog.

(h) If the court does not find that the dog caused the death of or serious bodily injury to a person by attacking, biting, or mauling the person, the court shall waive any impoundment fees incurred and shall order the dog released to:

(1) Its owner;

(2) The person from whom the dog was seized; or

(3) Any other person authorized to take possession of the dog.

(i) The court may not order the dog destroyed if the court finds that the dog caused serious bodily injury to a person by attacking, biting, or mauling the person and:

(1) The dog was being used for the protection of a person or person's property and the attack, bite, or mauling occurred in an enclosure in which the dog was being kept, and:

a. The enclosure was constructed in such a manner and of such materials as to be reasonably certain to prevent the dog from leaving the enclosure on its own and notice of the presence of a dog was posted upon the enclosure; and

b. The injured person was at least eight years of age and was trespassing in the enclosure when the attack, bite, or mauling occurred;

(2) The dog was not being used for the protection of a person or person's property, the attack, bite, or mauling occurred in an enclosure in which the dog was being kept, and the injured person was at least eight years of age and was trespassing in the enclosure when the attack, bite, or mauling occurred;

(3) The attack, bite, or mauling occurred during an arrest or other action of a peace officer while the peace officer was using the dog for law enforcement purposes;

(4) The dog was defending a person from assault or a person's property from damage or theft by the injured person; or

(5) The injured person was younger than eight years of age, the attack, bite, or mauling occurred in an enclosure in which the dog was being kept, and the enclosure was constructed in such a manner and of such materials as to be reasonably certain to keep a person younger than eight years of age from entering.

(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-154. Requirements for owner of a dangerous dog.

(a) Not later than the 30th calendar day after the date a registrant or owner learns that he is the owner of a dangerous dog that is not to be humanely euthanized, the registrant or owner shall:

(1) Comply at all times with the requirements set forth in Subchapter D, Chapter 822 of the Texas Health and Safety Code;

(2) Permit the department to implant a microchip in the dog, at the registrant's or owner's expense, which will identify it as a dangerous dog;

(3) Obtain a dangerous dog license from the director for the fee stated in the city fee schedule and affix a city-issued "dangerous dog" tag to the dog's collar that must be worn by the dog at all times. The license and the accompanying tag must be renewed annually;

(4) Muzzle and restrain the dangerous dog at all times on a leash that is no longer than six feet in length, is of sufficient strength to control the dog, and is in the

direct physical control of a person capable of controlling the dog at any time the dog is not in a secure enclosure;

(5) Confine the dog in a secure enclosure except as provided in item (4) of this subsection;

(6) Sterilize the dog; and

(7) Obtain liability insurance coverage in an amount of at least $100,000.00 to cover damages resulting from an attack by the dangerous dog causing bodily injury to a person and provide proof of the required liability insurance coverage to the department. The proof of insurance must clearly indicate that the insurer is aware that the insured dog has been declared dangerous either by the inclusion of a statement on the coverage policy itself or in an original letter on the insurer's letterhead signed by the insurance agent issuing the policy.

(b) The owner of a dangerous dog who does not comply with any part of subsection (a) of this section shall deliver the dog to BARC animal enforcement not later than the 30th calendar day after the owner learns that the dog is a dangerous dog.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-155. Failure to comply with requirements for ownership of a dangerous dog.

(a) Any person may make application to a municipal court that the owner of a dangerous dog has failed to comply with the requirements for ownership of a dangerous dog as set forth in section 6-154 of this Code.

(b) The court shall set a time for a hearing to determine whether the owner of the dog has complied with the requirements for ownership as set forth in section 6-154 of this Code. The hearing must be held within 10 calendar days after the date on which the dog was to be delivered to BARC animal enforcement or within ten calendar days after the date of the application, whichever is later. The court shall give written notice of the time and place of the hearing to:

(1) The owner of the dog or the person from whom the dog was seized; and

(2) The person who made the complaint.

(c) Any interested party, including the city attorney, is entitled to present evidence at the hearing.

(d) The court shall determine whether the owner of a dangerous dog has complied with the requirements for ownership of a dangerous dog as set forth in section 6-154 of this Code.

(1) If the court determines that the owner has met all ownership requirements, the court shall waive any impoundment fees incurred and order the dog released to the owner.

(2) If the court determines that the owner has not met all ownership requirements, the court shall order the owner to come into compliance with all ownership requirements within 11 calendar days after the date the court issues the order and shall order the owner to pay all fees incurred for the impoundment of the dog. If all ownership requirements are met within 11 calendar days after the date the court issues the order, BARC animal services shall release the dog to the owner upon payment of all fees incurred for the impoundment of the dog. Except as provided in item (4) of this subsection, if the owner has not met all ownership requirements within 11 calendar days after the date the court issues the order, the court may order BARC animal enforcement to humanely destroy the dog and the owner to pay all impoundment fees incurred and any fees for the destruction of the dog.

(3) The court may order the humane destruction of a dog if the owner of the dog has not been located after the 15th calendar day after the date on which the dog was to be delivered to BARC animal enforcement.

(4) The court may not order the destruction of a dog during the pendency of an appeal under subsection (h) of this section.

(e) The court shall determine the estimated costs to house and care for the impounded dog during the appeal process set forth in subsection (h) of this section and shall set the bond for an appeal in an amount adequate to cover those estimated costs.

(f) The order of the municipal court issued under subsection (f) of this section may be appealed in accordance with section 822.0424 of the Texas Health and Safety Code to a county court or county court at law in the county in which the municipal court is located. The appellant is entitled to a jury trial on request. Not later than the 10th calendar day after the date the municipal court order is issued, the appellant must file a notice of appeal, and if applicable, an appeal bond in the amount determined by the court from which the appeal is taken.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Secs. 6-156, 6-157. Reserved.

Sec. 6-158. Appeal from a determination as a dangerous dog.

If the director determines a dog is a dangerous dog under section 6-152 of this Code, that decision is final unless the licensee or owner files a written appeal in accordance with section 822.0421 of the Texas Health and Safety Code with a justice, county, or municipal court of competent jurisdiction not later than the 15th calendar day after the date the licensee or owner received notice that the dog is dangerous.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-159. Reserved.

Sec. 6-160. Dangerous dog owned or harbored by minor.

If the licensee or owner of a dangerous dog is a minor, the parent or guardian of the minor shall be liable for all injuries and property damage sustained by any person or domestic animal in an unprovoked attack by the dog.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-161. Violations; defenses.

(a) A person commits an offense if he violates, or fails to perform an act required by, a provision of this article or Subchapter D, Chapter 822 of the Texas Health and Safety Code, as amended. A person commits a separate offense each day or part of a day during which a violation is committed, permitted, or continued.

(b) An offense under this article is a Class C misdemeanor.

(c) Any defense to prosecution under Subchapter D, Chapter 822 of the Texas Health and Safety Code, as amended, is a defense to prosecution under this article.

(d) Any defense to an order to euthanize under § 822.003(f) of the Texas Health and Safety Code, as amended, is a defense under this article.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-162. Dangerous, aggressive, and public nuisance dog database; animal complaints investigated by the police department.

(a) The department shall maintain a detailed database of all dogs deemed to be dangerous, aggressive, and public nuisances and shall make this information available to the police department. The database shall include, but not be limited to, information such as the registrant's, licensee's or owner's name, address, phone number, the dangerous dog case number, the assigned microchip identification number, and all identifying information regarding the dog.

(b) Any reports involving complaints of animals investigated by the police department shall be electronically transmitted to BARC animal enforcement and shall include all relevant information gathered as a result of the response to the incident.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-163. Reserved.

Sec. 6-164. Aggressive dog.

Upon receipt of a sworn, written complaint by any person, in a form approved by the director, that any dog may be an aggressive dog, the director shall conduct an investigation. If upon investigation, the director reasonably believes that grounds exist to declare the dog an aggressive dog, he shall issue a written order containing the grounds for his determination to the registrant or owner of the dog by personal delivery, or by certified mail, return receipt requested. The order shall include all requirements for a registrant or owner of a dog determined to be aggressive as set forth in section 6-165 of this Code and the process for appeal of the determination.

Sec. 6-165. Requirements for an aggressive dog; violation.

(a) Not later than the 30th calendar day after the date a registrant or owner learns that he is the owner of an aggressive dog, theregistrant or owner shall:

(1) Permit the department, at the registrant's or owner's expense, to implant in the dog a microchip that will identify it as an aggressive dog;

(2) Obtain an aggressive dog license from the director for the fee stated in the city fee schedule and affix a city-issued "aggressive dog" tag to the dog's collar that must be worn by the dog at all times. The license and the accompanying tag must be renewed annually;

(3) Restrain the aggressive dog at all times on a leash of sufficient strength to control the dog, no longer than six feet in length and in the immediate control of a person capable of controlling the dog at any time the dog is not in a fenced area or structure that meets the requirements set forth in the following item;

(4) Except as provided in the preceding item, confine the dog in a fenced area or a structure that is:

a. At least six feet in height;

b. Of sufficient size to allow the dog to move freely;

c. Locked;

d. Capable of preventing the entry of the general public, including children;

e. Capable of preventing the escape or release of the dog; and

f. Clearly marked as containing an aggressive dog; and

(5) Sterilize the dog.

(b) A person commits an offense if he violates or fails to perform an act required by this section. A person commits a separate offense each day or part of a day during which a violation is committed, permitted, or continued. (Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-166. Appeal from a determination as an aggressive dog.

If the director determines a dog is an aggressive dog under section 6-164 of this Code, that decision is final unless the registrant or owner files a written appeal with the office of the director not later than five calendar days after the date the registrant or owner receives an order from the director stating that the dog is an aggressive dog. A hearing officer shall conduct the hearing within ten calendar days of the director's receipt of the notice of appeal. The hearing shall be conducted informally, and the hearing officer may consider city investigative reports, medical records, and affidavits, as well as any testimony or documentary evidence offered by the registrant or owner. At the conclusion of the hearing, the hearing officer shall enter a written order with factual findings as to whether the dog is an aggressive dog. The written order of the hearing officer shall be sent by personal delivery or certified mail, return receipt requested, to the registrant or owner as soon after the conclusion of the hearing as practicable, but in no event more than five business days thereafter. The decision of the hearing officer shall be final. (Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-167. Public nuisance dog.

(a) Upon receipt of a sworn, written complaint by any person, in a form approved by the director, that any dog may constitute a public nuisance, the director shall conduct an investigation. If upon investigation, the director reasonably believes that grounds exist to declare the dog a public nuisance dog, he shall issue a written order containing the grounds for his determination to the registrant or owner of the dog by personal delivery, or by certified mail, return receipt requested. The order shall include all requirements for a registrant or owner of a dog determined to be a public nuisance as set forth in section 6-168 of this Code and the process for the appeal of the determination.

(b) For purposes of this section, if a dog is documented to be at large three or more times in a 12-month period by a member of the public, such documentation must consist of photographic evidence with a date and time stamp and in which the dog can be clearly identified.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-168. Requirements for a public nuisance dog; violation.

(a) Not later than the 30th calendar day after the date a registrant or owner learns that he is the owner of a public nuisance dog, the registrant or owner shall take all measures necessary to abate the nuisance that served as the basis for the determination of the dog as a public nuisance dog.

(b) A person commits an offense if he violates or fails to perform an act required by this section. A person commits a separate offense each day or part of a day during which a violation is committed, permitted, or continued.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-169. Appeal from a determination as a public nuisance dog.

If the director determines a dog is a public nuisance dog under section 6-167 of this Code, that decision is final unless the registrant or owner files a written appeal with the office of the director not later than five calendar days after the date the registrant or owner receives an order from the director stating that the dog is a public nuisance dog. The hearing shall be conducted and the written order from the hearing officer shall be issued in the same manner as set forth in section 6-166 of this Code. The decision of the hearing officer shall be final.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

Sec. 6-170. Penalties; appeal.

(a) If a licensee, registrant or owner of a dog receives the specified number of convictions for the following offenses within a 12-month period, the director may order the dog at issue removed from the city:

(1) One or more convictions for allowing an aggressive dog to be at large in violation of subsection 6-101(d) of this Code;

(2) One or more convictions for allowing a public nuisance dog to be at large in violation of subsection 6-101(e) of this Code; or

(3) Two or more convictions for violations of section 6-165 or section 6-168 of this Code.

The removal order shall be issued in writing to the licensee, registrant or owner of the dog at issue by personal delivery or by certified mail, return receipt requested. The notice shall include the reason for the order and shall inform the licensee, registrant or owner of his right to appeal the order.

(b) If the director orders a dog removed from the city, that decision is final unless the licensee, registrant or owner files a written appeal with municipal court not later than five calendar days after the date the licensee, registrant or owner received notice that the dog has been ordered removed from the city. A municipal court judge shall hold the hearing within ten calendar days of the director's receipt of the notice of appeal. The judge may consider city investigative reports, medical records, and affidavits, as well as any testimony or documentary evidence offered by the licensee, registrant or owner. At the conclusion of the hearing, the municipal court judge shall enter a written order upholding or overrul-

ing the director's order to remove the dog at issue from the city. The written order shall be sent by personal delivery or certified mail, return receipt requested, to the licensee or owner as soon after the conclusion of the hearing as practicable, but in no event more than five business days thereafter. The decision of the municipal court judge shall be final.
(Ord. No. 2022-44, § 2(Exh. A), 1-19-2022)

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Chapter 7

ANTIQUE DEALERS, COMMON MARKETS, SCRAP METAL PROCESSORS, SECONDHAND RESELLERS AND RELATED BUSINESSES*

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ARTICLE I. IN GENERAL†

Sec. 7-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Antique dealer means any person who engages in the business of buying, selling, trading, or otherwise dealing in used items which, because of age or design or quality or intrinsic beauty, or rarity or demand or otherwise have a value enhanced over the original value of the goods.

Business means an activity carried on for profit, but shall not include occasional purchases or trades by a hobbyist.

Chief of police means the Chief of Police for the City of Houston and persons he may designate to perform his duties under this article.

Clear thumb print impression means an intentional digital recording of the friction ridge detail on the volar pads of the thumb.

Director means the director of the department of administration and regulatory affairs or his designee.

Minor means any person under 18 years of age.

Real-time electronic web-based database means an electronic filing system in which data is organized by fields and records and that is capable of transmitting a file or responding to input immediately via the internet.

Show means any display and offering of used items for sale or trade by more than one dealer at a single location.

Used means any items, goods, products, wares, chattels, or articles of any sort, which have previously been owned by someone other than the manufacturer, or by a dealer whose business it is to sell such items, goods, products, wares, chattels, or articles when new to the customer.

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*__Editor's note—__Ord. No. 2009-931, § 2, adopted October 7, 2009, amended the title of Chapter 7 to read as herein set out. Formerly said chapter was entitled Antique Dealers, Common Markets, Scrap Metal Processors, Secondhand Dealers and Related Businesses.

__Cross references—__Automotive dealers and auto wreckers, Ch. 8; tire storage and tire carriers, § 21-181 et seq.; itinerant vendors, Ch. 22.

†__Editor's note—__Ord. No. 09-410, § 3, adopted May 13, 2009, amended Ch. 7, Article I in its entirety to read as herein set out. Formerly said article pertained to similar subject matter and derived from Code 1968, §§ 28-63, 28-64; Ord. No. 75-1947, § 1, 10-29-75; Ord. No. 76-1017, §§ 1—9, 6-22-76; Ord. No. 77-1013, § 5, 5-24-77; Ord. No. 81-315, § 1, 2-24-81; Ord. No. 82-133, §§ 1—4, 1-20-82; Ord. No. 91-1102, § 3, 7-31-91; Ord. No. 92-1449, § 7, 11-4-92; Ord. No. 93-514, § 14, 5-5-93; Ord. No. 94-674, § 5, 7-6-94; Ord. No. 98-613, § 17, 8-5-98; Ord. No. 02-399, § 17, 5-15-02; Ord. No. 08-52, § 20, 1-16-08, eff. 1-26-08.

Web-based database means an electronic reporting system approved by the chief of police that is capable of transmitting information and responding to input on the internet.
(Ord. No. 09-410, § 3, 5-13-09; Ord. No. 09-931, § 4, 10-7-09; Ord. No. 09-931, § 3, 10-7-09; Ord. No. 2013-111, §§ 2—4, 2-6-2013; Ord. No. 2016-964, § 2, 12-7-2016)

Sec. 7-2. Licensed pawnbrokers excluded.

This chapter shall not apply to pawnbrokers licensed by the State of Texas.
(Ord. No. 09-410, § 3, 5-13-09)

Sec. 7-3. Penalty for violation of any portion of this chapter.

Any person who owns or operates any business governed by this chapter but does not have a valid license therefor or any person who shall violate any portion of this chapter shall be guilty of a misdemeanor and, upon conviction thereof shall be punished by a fine of not less than $100.00 nor more than $500.00. Each day the owner/operator/person permits the sale or purchase of any goods from the unlicensed business or violates any provision of this chapter shall constitute a separate offense.
(Ord. No. 09-410, § 3, 5-13-09; Ord. No. 2013-111, § 5, 2-6-2013)

Sec. 7-4. State law/city retention periods.

Any retention periods required by this chapter are not meant to replace any required retention periods provided by state law; in the event there is a conflict between retention periods provided for in this chapter and retention periods required by state law, the longer retention requirements shall apply.
(Ord. No. 09-410, § 3, 5-13-09; Ord. No. 2013-111, § 5, 2-6-2013)

Sec. 7-5. Requirement for certificate of occupancy.

Any business covered by this chapter that operates out of facilities required by city ordinance to have a certificate of occupancy must obtain said certificate of occupancy prior to a license being issued under this chapter.
(Ord. No. 09-931, § 5, 10-7-09)

Sec. 7-6. Reports of property suspected stolen; purchase of city property.

(a) It shall be the duty of the licensee, his agents, or employees to immediately report to the police department any offer to sell to the licensee, his agents, or employees property which the licensee, his agents, or employees have actual knowledge is stolen or by reasonable diligence should know is stolen, together with the identity, when known, and description of the person or persons making such offer. The licensee, his agents, or employees shall also report any property acquired by the licensee which the licensee, his agents, or employees subsequently determine or reasonably suspect to be stolen property and shall furnish such other information as might be helpful to the police in investigating the matter.

(b) It shall be unlawful for any licensee, his agents or employees to purchase an item of property on which are written or affixed the words "Property of the City of Houston" or other words demonstrating ownership by the city except in the following circumstances:

(1) When the person offering the property for sale is an employee of the city who is authorized to make the sale by the director of the department of administration and regulatory affairs or the Director of Houston Public Works pursuant to chapter 2, article IV of this Code, and provides the licensee, his agents or employees with a written authorization for the sale of the property from his department's director or the director's designee; or

(2) When the person offering the property for sale presents at the time of the offer a valid receipt from the department of administration and regulatory affairs or Houston Public Works, pursuant to chapter 2, Article IV of this Code, evidencing the purchase of the property.

(Ord. No. 2013-111, § 6, 2-6-2013; Ord. No. 2018-11, §§ 49, 50, 1-10-2018)

Sec 7-7. Process for revocation of license; appeal.

(a) A license issued pursuant to this chapter may be revoked without refund of any portion of the license application or renewal fee.

(b) The director shall give written notice of revocation to the licensee by certified mail, return receipt requested, and by regular mail, setting forth the grounds for revocation and the opportunity to request a hearing regarding the revocation. A revocation hearing based upon the licensee's conviction of a criminal offense shall be conducted in accordance with section 1-9 of this Code and applicable state laws.

(c) If the licensee wishes to request a hearing, the request must be made in writing and provided to the director within ten business days of the date of the director's notice of revocation. The hearing shall be conducted within 20 business days of the director's receipt of the request. If the licensee does not request a hearing within ten business days, the revocation is effective on the 11th business day after the date of the director's revocation notice."

(d) The hearing shall be conducted by a hearing officer appointed by the director, who shall revoke the license if he determines by a preponderance of the evidence that grounds exist for revocation. At the hearing, the licensee may be represented by an attorney, present evidence, and cross-examine witnesses.

(e) The hearing officer shall give written notice to the licensee of his findings as to whether or not the license should be revoked and the reasons therefor. The notice shall be by certified mail, return receipt requested, as soon after the conclusion of the hearing as practicable but in no event more than 30 days thereafter. The decision of the hearing officer shall be final.
(Ord. No. 2013-111, § 6, 2-6-2013; Ord. No. 2016-964, § 3, 12-7-2016)

Secs. 7-8—7-15. Reserved.

ARTICLE II. ANTIQUE, RESALE MEDIA AND CLOTHING DEALERS*

Sec. 7-16. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Licensee means any person licensed as a secondhand reseller pursuant to article III of this chapter, or as an antique dealer or resale media and clothing dealer pursuant to this article.

Resale media and clothing dealer means any dealer who deals exclusively in:

(1) Used books, magazines and other printed documents;

(2) Used phonographic records, magnetic audio tapes, audio discs or other recordings of sound which do not include recordings of visual images; and/or

(3) Used items of clothing, except those made in whole or in part from fur, but not in any other items, goods, products, wares, clothes or articles which are subject to regulation under this article.

(Code 1968, § 6½-1; Ord. No. 76-146, § 1(1), 2-3-76; Ord. No. 09-410, § 4, 5-13-09; Ord. No. 09-931, § 4, 10-7-09; Ord. No. 2013-111, § 8, 2-6-2013)

Sec. 7-17. License required; display.

No person shall operate as an antique dealer or resale media and clothing dealer, own any such business, or engage in the business of buying, trading, or otherwise receiving used books, magazines and other printed documents, or used items of clothing (except those made from fur), unless he is licensed pursuant to this article, is licensed as a secondhand reseller pursuant to article III of this chapter, is licensed

*__Editor's note—__Ord. No. 2013-111, § 7, adopted February 6, 2013, amended the title of Ch. 7, Art. II to read as herein set out. Formerly, said article was entitled "Antique, Precious Metals, and Resale Media and Clothing Dealers.

as a pawnbroker pursuant to state law or is acting in the employment of one licensed under one of the above-listed laws. A separate license shall be required for each permanent location of any such business. A license issued under this subsection shall be marked to indicate that the business is authorized to deal only in the items listed in this subsection (or as a secondhand reseller pursuant to article III of this chapter) and shall be posted in a conspicuous place upon the licensed premises.
(Code 1968, § 6½-2; Ord. No. 76-146, § 1(2), 2-3-76; Ord. No. 09-410, § 4, 5-13-09; Ord. No. 09-931, § 4, 10-7-09; Ord. No. 2013-111, § 8, 2-6-2013)

Sec. 7-18. Application for and issuance or refusal of license.

(a) Any person desiring a license required by this article shall make application therefore in writing to the director on an application form provided for that purpose. On the application, the applicant shall provide the following information:

(1) The full name of the applicant, the street address where the business is to be located, and the residence address of each owner, manager and operator of the business;

(2) The application form shall be accompanied by an affidavit, sworn to by the applicant, that neither he nor any business partner, nor, in the case of a corporation, any corporate officer, has had a license revoked under this chapter or any preceding city ordinance governing the business described herein;

(3) Whether any owner or operator is an individual, partnership, corporation, or other legal entity; provided, however, that the type of business organization shall include only those organizations recognized by the Texas Business Organizations Code ("BOC"), and if the organization is a foreign entity required to register under Chapter 9 of the BOC, full and complete copies of such organization's current registration;

(4) If any owner or operator is a corporation, all officers of the corporation; and if there are fewer than five shareholders, the names of all shareholders;

(5) If any owner or operator is a partnership, the type of partnership and names and addresses of all general partners;

(6) If any owner or operator is an unincorporated association, the names and addresses of all officers of such association;

(7) The location where the business will be conducted, along with a copy of the certificate of occupancy for the location; and

(8) The time period or periods during which the business will be conducted.

(b) Upon receipt of the application, the director shall investigate the items sworn to by the affidavit. If neither the applicant, his business partners, nor any corporate officers have had a license revoked as described above, the director shall issue a license to the applicant upon payment of the license fee.

(c) If the director rejects the application, he shall give written notice by personal delivery or certified mail, return receipt requested to the applicant at the address stated in the application. The written notice shall specifically set forth the reasons for the rejection.
(Code 1968, § 6½-3; Ord. No. 76-146, § 1(3), 2-3-76; Ord. No. 08-52, § 21, 1-16-08, eff. 1-26-08; Ord. No. 09-410, § 4, 5-13-09; Ord. No. 09-931, § 6, 10-7-09; Ord. No. 2013-111, §§ 10—12, 2-6-2013)

Sec. 7-19. License fees.

(a) The annual fee for a license issued pursuant to this article for a dealer with a permanent place of business within the city is stated for this provision in the city fee schedule. The license shall be valid for one year from the date of issuance.

Each licensee with a permanent business location in the city may use the license for that business when attending shows at other locations in the city.

(b) Any dealer described herein who desires to sell or purchase items at shows in the city, but who does not maintain a permanent place of business in the city, must apply for and secure a license for each location. The daily license fee for each show is stated for this provision in the city fee schedule.

(Code 1968, § 6½-4; Ord. No. 76-146, § 1(4), 2-3-76; Ord. No. 09-410, § 4, 5-13-09; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2013-111, § 13, 2-6-2013)

Sec. 7-20. Records required to be kept.

(a) Every person engaged in the business of buying, trading or otherwise receiving antique items shall keep at his place of business a record book, in a form approved by the chief of police, in which he shall enter daily a full description of all personal property purchased or otherwise received at his licensed place of business. The description shall include the date and hour of receipt, the name and address of the person or place of business from which the item was received, and the driver's license or Texas personal identification certificate number of the person selling or otherwise giving the items. All entries in the record book shall be made legibly.

(b) In addition to the requirements set out in subsection (a) hereof, the property shall be fully described including, where customary in the business, the size, weight, material, length, number of items, capacity, and any other designations or descriptions customarily employed in the sale and purchase of the items.

(c) The licensee, his agents or employees shall provide a receipt to the seller or transferor of the property. Each receipt shall be consecutively numbered and shall be dated on the actual date of the transaction and shall list the items sold or otherwise transferred. An accurate copy or record of receipts obtained shall be retained for a period of not less than two years, and shall be available for inspection upon request during business hours by any peace officer or authorized inspector of the department of administration and regulatory affairs.

(d) Every person engaged in the business of buying, trading or otherwise receiving antique items shall, upon request, submit and exhibit the various business records which are required to be maintained for inspection or copying to any peace officer or authorized inspector of the authorized inspector of the department of administration and regulatory affairs. Failure to maintain or to so permit the examination or copying of the records when required shall be a misdemeanor.

(Code 1968, § 6½-5; Ord. No. 76-146, § 1(5), 2-3-76; Ord. No. 08-52, § 22, 1-16-08, eff. 1-26-08; Ord. No. 09-410, § 4, 5-13-09; Ord. No. 2013-111, § 14, 2-6-2013)

Sec. 7-21. Stock to be open for examination.

The stock or inventory of any dealer that is openly displayed and available to the public shall at any time during ordinary business hours be accessible for examination by any peace officer or authorized inspector of the department of administration and regulatory affairs. Failure to permit an examination when requested shall be a misdemeanor.

(Code 1968, § 6½-6; Ord. No. 76-146, § 1(6), 2-3-76; Ord. No. 08-52, § 23, 1-16-08, eff. 1-26-08; Ord. No. 09-410, § 4, 5-13-09)

Sec. 7-22. Articles to be retained.

No antique dealer or resale media and clothing dealer shall sell, dismantle, deface or in any manner alter or dispose of any item purchased or otherwise received by him at his licensed place of business for 72 hours after receipt. During the 72-hour period, all items of property shall be stored or displayed at the dealer's business location, in the exact form received, and in a manner so as to be identifiable from the description entered in the record book. The property shall not be kept so as to prevent or impede its examination hereunder.

(Code 1968, § 6½-7; Ord. No. 76-146, § 1(7), 2-3-76; Ord. No. 09-410, § 4, 5-13-09; Ord. No. 2013-111, § 15, 2-6-2013)

Sec. 7-23. Purchasing or receiving goods of minors.

No antique dealer shall purchase or otherwise receive in the course of his business, any item, ownership of which is claimed by any minor, or which may be in the possession of or under control of a minor, unless the minor's parent or guardian shall state in writing that the transaction is taking place with the parent's or guardian's full knowledge and consent. It shall be the duty of the antique dealer to preserve and keep on file, and available for inspection, the written statements of consent.
(Code 1968, § 6½-8; Ord. No. 76-146, § 1(8), 2-3-76; Ord. No. 09-410, § 4, 5-13-09; Ord. No. 2013-111, § 15, 2-6-2013)

Sec. 7-24. Change in business address.

Should any person licensed under this article move his permanent place of business from the place designated in the license to a new address, he shall immediately give written notice to the director and have the change noted on his license. The fee stated for this provision in the city fee schedule, payable to the director, is hereby levied for the change.
(Code 1968, § 6½-10; Ord. No. 76-146, § 1(10), 2-3-76; Ord. No. 08-52, § 24, 1-16-08, eff. 1-26-08; Ord. No. 09-410, § 4, 5-13-09; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2013-111, § 15, 2-6-2013)

Sec. 7-25. Revocation of license.

A license may be revoked in the manner provided in section 7-7 of this Code if:

(1) Any information supplied in the permit application was materially false or incorrect;

(2) The license was issued as a result of error; or

(3) The licensee has violated the provisions of this chapter or any state or federal statute involving the criminal offense of theft, or Texas Penal Code section 37.09 or 37.10.

(Code 1968, § 6½-11; Ord. No. 76-146, § 1(11), 2-3-76; Ord. No. 08-52, § 25, 1-16-08, eff. 1-26-08; Ord. No. 09-410, § 4, 5-13-09; Ord. No. 09-425, § 3, 5-13-09; Ord. No. 2013-111, § 15, 2-6-2013)

Sec. 7-26. Reserved.

Editor's note—Ord. No. 2013-111, § 16, adopted February 6, 2013, repealed § 7-26 in its entirety. Formerly said section pertained to reports of property suspected stolen and derived from Code 1968, § 6½-12; Ord. No. 76-146, § 1(12), 2-3-76; Ord. No. 09-410, § 4, 5-13-09.

Sec. 7-27. Reserved.

Editor's note—Ord. No. 2013-111, § 16, adopted February 6, 2013, repealed § 7-27 in its entirety. Formerly said section pertained to exemptions from licese fee and derived from Code 1968, § 6½-13; Ord. No. 76-146, § 1(13), 2-3-76; Ord. No. 09-410, § 4, 5-13-09.

Sec. 7-26. Inapplicability of certain chapter provisions.

Notwithstanding any other provision of this article that might be construed to the contrary, the provisions of section 7-23 of this Code shall not be applicable to the sale, receipt, transfer or holding of (1) Used books, magazines and other printed documents; (2) Used phonographic records, magnetic audio tapes, audio discs or other recordings of sound which do not include recordings of visual images; and/or (3) Used items of clothing, except those made in whole or in part from fur.
(Ord. No. 09-410, § 4, 5-13-09; Ord. No. 2013-111, § 17, 2-6-2013)

Note—Formerly § 7-28.

Secs. 7-27—7-50. Reserved.

ARTICLE III. METAL RECYCLERS*

DIVISION 1. GENERAL

Sec. 7-51. Definitions.

The following words, terms and phrases, when used in this article, shall have the same meanings as provided in this section, except where the context clearly indicates a different meaning:

Applicant means a person who applies for a license required by this article.

Authorized personnel means an individual who has been granted permission to sell material or accept payment in connection with a business to business transaction on behalf of a metal recycler, public utility, manufacturing, industrial, retail or other commercial vendor that generates or sells regulated material in the ordinary course of its business and whose name has been provided in writing from the company and maintained on file with the metal recycler conducting the business to business transaction.

Business to business transaction means a sale or transfer of material between a metal recycler and a company represented by authorized personnel.

Catalytic converter means an exhaust emission control device that reduces toxic gases and pollutants from internal combustion; this includes any material removed from a catalytic converter.

Electronic database means an electronic filing system in which data is organized by fields and records.

Enclosed structure means a building that consists of a roof and solid walls on all sides, with or without windows or doors, that extend from the roof to the floor. The term includes detached trailers or semi-trailers with fully-enclosed cargo space and containers as defined by rule or regulation promulgated pursuant to section 7-53 of this Code.

Fixed location means any building or structure for which a certificate of occupancy has been issued.

Licensee means a person who holds a license to conduct business as a metal recycler and includes the person's agents and employees.

Metal recycler means any person who:

(1) Engages in the business of purchasing aluminum cans or ferrous or nonferrous metals, such as stainless steel alloys, copper cables or steel plates;

(2) Engages in the business of utilizing machinery or equipment for the processing or manufacturing of iron, steel or nonferrous metallic scrap and whose principal product is scrap metal for reuse; or

(3) Operates or maintains a place in which used metal items or scrap metal is purchased, collected or kept for shipment, sale, or transfer to other facilities.

The term does not include secondhand reseller as defined in chapter 7, article VI of this Code.

On-site representative means an individual responsible for the day-to-day operation of the place of business of a metal recycler.

Open storage means keeping, maintaining, or placing processed metal items or scrap metal outside of an enclosed structure for shipment, sale, or transfer to other facilities.

Public transaction means a sale or transfer of material between a metal recycler and an individual selling material on his own behalf. The term does not include any business to business transactions or any transaction involving an individual selling material on behalf of a company.

*__Editor's note—__Ord. No. 2016-964, § 4(Exh. A), adopted December 7, 2016, amended Ch. 7, Art. III, §§ 7-51—7-76 to read as herein set out. Formerly said article was entitled Metal Recyclers/Secondhand Metal Dealers and Secondhand Resellers and derived from Code 1968, § 23-1; Ord. No. 76-271, § 1, 2-17-76; Ord. No. 83-996, § 1, 6-29-83; Ord. No. 07-295, § 2, 3-21-07; Ord. No. 08-52, § 26, 1-16-08, eff. 1-26-08; Ord. No. 09-410, §§ 6, 7, 23, 5-13-09; Ord. No. 09-931, § 7, 10-7-09; Ord. No. 09-1346, §§ 2, 3, 12-16-09, eff. 1-1-2010; 2013-157, §§ 6, 7, 2-20-2013.

Regulated material shall have the same meaning as in Chapter 1956 of the Texas Occupations Code.

Scrap metal means a direct product or byproduct of any form of a manufactured, shaped, or processed iron, steel, aluminum, brass, copper, lead, tin, zinc, or other nonferrous material or alloy of materials.

(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016; Ord. No. 2022-341, § 2, 5-4-2022)

Sec. 7-52. Article inapplicable to automotive dealers, pawnshops or secondhand resellers.

This article shall not apply to businesses licensed as automotive dealers under chapter 8, article II of this Code, pawnshops as defined by state law, or secondhand resellers as defined in chapter 7, article VI of this Code.

(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-53. Administrative rules.

(a) The director and the chief of police, acting in concert and in conjunction with individuals designated by the Recycling Council of Texas, shall promulgate rules and regulations to administer the provisions of this article. The rules and regulations shall not conflict with any applicable provisions of this Code. The director shall post a copy of the rules and regulations on the department of administration and regulatory affairs' website and maintain a copy of the rules and regulations for inspection in the offices of the city secretary, the chief of police and the director. The director shall provide copies for purchase to any person upon payment of the fees prescribed by law.

(b) The revocation of any license shall not prohibit the imposition of a criminal penalty, and the imposition of a criminal penalty shall not prevent the revocation of a license under this article.

(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

DIVISION 2. LICENSES

Sec. 7-54. License required; penalty; posting of license.

(a) No person shall operate as a metal recycler or own any such business unless the operation or business is conducted from a fixed location.

(b) No person shall operate as a metal recycler or own any such business without a valid metal recycler's license.

(c) Any person who engages in more than one type of business described under this Code at the same location must obtain a separate license for each business conducted at that location. Except as provided in subsection (d) below, a person conducting a metal recycler business as described in this article at more than one fixed location shall obtain a separate license for each location.

(d) A person who holds a license required by this article and who maintains a lot or tract of a land separate from the person's licensed place of business for the exclusive purpose of storing processed metal items and scrap metal for shipment, sale, or transfer to other facilities is not required to obtain a metal recycler's license for the separate lot or tract of land. All operations conducted from such lot or tract of land shall be subject to the record keeping requirements of section 7-58 of this Code. Additionally, such lot or tract of land must:

(1) Comply with the provisions of section 7-70 of this Code; and

(2) Comply with the provisions of section 28-34 of this Code, unless a variance is granted pursuant to division 5 of this chapter.

(e) The licensee shall display the license required under this article at all times in a conspicuous place that is accessible to the public on the licensed premises.

(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-55. Application for and issuance of license; denial; expiration.

(a) Any person desiring a license required by this article shall submit an application along with the license fee required for this provision in the city fee schedule to the director on a form promulgated by the director. No portion of the license fee shall be refundable. The applicant shall provide the following information:

(1) The full name and residential address of the applicant and each on-site representative(s). The applicant shall indicate

whether the applicant is an individual, partnership, corporation, or other legal entity; provided however, that the type of business organization shall include only those organizations recognized by the Texas Business Organizations Code ("BOC"), and if the organization is a foreign entity required to register under Chapter 9 of the BOC, full and complete copies of the organization's current registration. If the applicant is a partnership, the name and address of each general partner shall be provided. If the applicant is a privately-held corporation, the name and address of the corporation, all officers and directors, and each person who owns 50 percent or more interest in the corporation shall be provided. If the applicant is a publicly-held corporation, the name and address of the corporation and the on-site representative(s) shall be provided;

(2) If the applicant is an individual, proof satisfactory to the director that the applicant and each on-site representative(s) is either a citizen of the United States or an individual legally permitted to work in the United States;

(3) The social security number of the applicant if the applicant is an individual or the federal tax identification number of the applicant if the applicant is a business;

(4) The address of the fixed location where the applicant's business is to be conducted and proof of the applicant's ownership of the property or if the applicant is not the owner, a lease or other documentation satisfactory to the director granting permission to the applicant to operate the business at the proposed location;

(5) A copy of the certificate of occupancy for the applicant's proposed business location, if applicable;

(6) The days and hours that the business will operate, including a description of the types of processes used for handling materials at the applicant's place of business, such as, but not limited to, crushing, grinding, shredding, or using handheld torches;

(7) For each person listed under subsection (a)(1) of this section, the following information:

a. The date of birth, place of birth, and each address where the person has resided in the five years immediately preceding the filing of the application;

b. If convicted of any criminal offense in this state or any other state or country or incarcerated in any jail or prison due to a conviction within ten years immediately preceding the filing of the application, the applicant shall provide the specific offense committed, date of conviction, term of sentence, case number and court number relating to each offense; provided, however, that no conviction of a traffic offense punishable by fine only shall be listed;

c. If any conviction relates to organized criminal activity, the applicant shall provide the underlying offense that was the basis of the organized criminal activity (i.e., robbery, burglary, theft, etc.); and

d. Whether any person has been denied a license required under this article or any preceding city ordinance governing the businesses described in this article or has had such license revoked;

(8) Evidence that the applicant and each on-site representative is at least 18 years of age by presentation of a valid government-issued identification document that contains the individual's photograph. For publicly-held corporations, such information shall only be required of each on-site representative, manager and operator;

(9) For each on-site representative, fingerprints and a signed authorization for the city to gather criminal history

information in accordance with section 1-15 of this Code and to determine the existence of any applicable offenses set forth in subsections (b) and (c) of section 1-10 of this Code;

(10) Documentation satisfactory to the director showing the applicant's form of entity and current status. Such documentation includes, but is not limited to, a current certificate of assumed name or a current certificate of status issued by the Texas Office of the Secretary of State and a certificate of account status from the Texas Comptroller of Public Accounts;

(11) A declaration of whether the entirety of the business operations will be conducted within an enclosed structure;

(12) A declaration of whether the applicant will engage in open storage. If open storage will be used, applicant must:

a. Identify whether the location of the lot or tract of land intended for open storage is a part of or separate from the applicant's place of business;

b. Provide the address for the lot or tract of land if the location of the lot or tract of land intended for open storage is separate from the applicant's place of business; and

c. Acknowledge that, regardless of location, such lot or tract of land must be maintained in accordance with the provisions set forth in sections 7-70 and 28-34 of this Code;

(13) Except for applicants intending to engage solely in business to business transactions, a valid state-issued certificate of registration number for operating as a metal recycling entity pursuant to Chapter 1956, Subchapter A-2 of the Texas Occupations Code;

(14) The signature of the owner, if an individual; otherwise the application shall be signed by a person duly authorized to bind the applicant; and

(15) Any other information that the director may reasonably require.

(b) The application form shall be accompanied by an unsworn declaration pursuant to section 132.001 of the Texas Civil Practice and Remedies Code acknowledging that the applicant:

(1) Including his business partners, and, in the case of a corporation, all corporate officers, has not had a license revoked under this chapter or any preceding city ordinance governing the business described herein;

(2) Has read the application and agrees to all of its terms and provisions;

(3) Affirms the correctness and accuracy of the information given on the application; and

(4) Affirms that he has the authority to bind the applicant to all of the terms, provisions and requirements of the application.

(c) The director shall review and approve the application and issue a license if he determines that all the requirements of this article and any applicable rules and regulations have been met.

(d) The director shall deny an applicant a license if he determines that:

(1) The information provided in the application is incomplete, false or incorrect;

(2) The requirements of this article and any applicable rules and regulations have not been met;

(3) Any person listed in subsection (a)(1) of this section:

a. Has been denied a license required by this article or has had such license revoked within the preceding 24 months from the filing of the application; or

b. Is not in compliance with the applicable criminal history provisions of subsections (b) and (c) of section 1-10 of this Code; or

(4) With the exception of applicants intending to engage solely in business to business transactions, the applicant has not provided the director with a valid state-issued certificate of registration number for operating as a metal recycling entity within three business days of completing the remaining information in the application required by this section.

(e) In the event that the director denies an application, he shall give written notice by personal delivery or certified mail, return receipt requested, to the applicant at the address stated in the application. The written notice shall set forth the specific reasons for the denial and shall notify the applicant of the opportunity to request a hearing regarding the denial. A denial hearing based upon the applicant's conviction of a criminal offense shall be conducted in accordance with section 1-9 of this Code and applicable state laws. A denial hearing based upon reasons other than the applicant's conviction of a criminal offense shall follow the procedures set forth below:

(1) If the applicant wishes to request a hearing, the request must be made in writing and provided to the director within ten business days of the date of the director's denial of the license. If the applicant does not request a hearing within ten business days, the denial of the license is effective on the 11th business day after the date of the director's denial of the license.

(2) The hearing shall be conducted within 20 business days of the director's receipt of the request. The hearing shall be conducted by a hearing officer employed by the municipal courts department of the city designated to conduct administrative hearings and enter orders in the manner provided in this section. The hearing officer shall deny the license if he determines by a preponderance of the evidence that grounds exist to deny the license. At the hearing, the applicant may be represented by an attorney, present evidence and cross-examine witnesses.

(3) The hearing officer shall give written notice to the applicant of his findings as to whether or not the license should be denied and the reasons therefor. The notice shall be by certified mail, return receipt requested, as soon after the conclusion of the hearing as practicable, but in no event more than 30 calendar days thereafter. The decision of the hearing officer shall be final.

(f) Each license, unless revoked as provided in this article, shall expire two years from the date of issuance. Any licensee whose license is expiring and who desires a new license shall make application for a new license in the manner provided in this section at least 30 calendar days, but not more than 60 calendar days, prior to the expiration of the license. All the requirements of this section must be met, including the submission of fingerprints and a signed authorization for the city to gather criminal history information as provided in item 9 above, before a new license may be issued.

(g) A license issued pursuant to this article is personal to the licensee and is valid only for the location stated in the application.

(h) A license is void if the applicant obtains the license by knowingly providing false information on the application.

(i) A license issued under this article is a grant of privilege and is not a property right.

(j) While an application for a license is pending, or a license is in effect, an applicant or licensee shall immediately supplement the information provided to the director in the license application if such information is or becomes inaccurate, incomplete or misleading.

(k) A license issued under this article may be transferred only as provided in section 7-62 of this Code.

(l) No application for a new license shall be considered by the director while a hearing to revoke or deny a license relating to the same applicant or licensee is pending or in progress.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

DIVISION 3. OPERATIONAL RULES AND REGULATIONS

Sec. 7-56. Payment by metal recyclers.

(a) A metal recycler may pay for a purchase of regulated material only by:

(1) Cash if:

a. The seller has been issued a cash transaction card under section 7-57 of this Code, unless the metal recycler is prohibited from paying cash under section 1956.038(b) of the Texas Occupations Code; or

b. The transaction is a business to business transaction;

(2) Debit card if:

a. The seller has been issued a cash transaction card under section 7-57 of this Code; or

b. The transaction is a business to business transaction;

(3) Check;

(4) Money order; or

(5) Direct deposit by electronic funds transfer.

(b) A metal recycler may pay for a purchase of non-regulated material by cash, check, money order or direct deposit by electronic funds transfer.

(c) It shall be unlawful for a metal recycler to:

(1) Cash a check or money order issued to a seller by a metal recycler; or

(2) Allow any person or entity on the property of the metal recycler to cash a check or money order issued to a seller by a metal recycler.

(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-57. Cash transaction card; application; issuance and use.

(a) With the exception of business to business transactions, a metal recycler may pay a seller for a purchase of regulated material by cash or debit card only if, before the metal recycler issues payment:

(1) The seller presents to the metal recycler a valid cash transaction card issued by the metal recycler or by another metal recycler located in this state; or

(2) The metal recycler obtains a copy of the seller's cash transaction card from the records of the metal recycler.

(b) An application for the issuance or renewal of a cash transaction card must include:

(1) The name, address, sex, and birth date of the applicant;

(2) The identification number from the applicant's personal identification document;

(3) A color digital photograph that accurately depicts the applicant's entire face taken at the time the applicant completes the application;

(4) A clear and legible thumbprint of the applicant; and

(5) The signature of the applicant.

(c) On receipt of an application that contains the information required by subsection (b) above, a metal recycler may approve the application and issue a cash transaction card to the applicant in accordance with subsection (e) of this section. The individual approving the application on behalf of the metal recycler must sign the application.

(d) A cash transaction card must be laminated or made of a rigid plastic or other durable material that will preserve the legibility of the information on the card, completed in legible print in English, and include the following information:

(1) The name and address of the seller;

(2) The name, address, and state registration number of the metal recycler that issued the cash transaction card;

(3) A color digital photograph of the seller that accurately depicts the seller's entire face;

(4) An identifying number that is unique to the individual card; and

(5) The expiration date of the card, which may not be later than two years from the date the card was issued or renewed.

(e) A metal recycler must mail the issued cash transaction card to the address provided on the application for the card.

(f) A cash transaction card issued under this section is not transferable.

(g) Subsequent to issuing the cash transaction card as provided in subsection (e) above, a metal recycler may maintain or obtain possession of the cash transaction card. However, it is unlawful for a metal recycler to maintain or obtain possession of a cash transaction card issued by another metal recycler under this section.

(h) A metal recycler shall preserve each application for a cash transaction card the metal recycler receives until the second anniversary of the date the application was received and a copy of each cash transaction card the metal recycler issues or renews until the second anniversary of the date the card was issued or renewed.

(i) A cash transaction card issued under Chapter 1956 of the Texas Occupations Code, as may be amended from time to time, shall be deemed equivalent to the cash transaction card required under this article of the Code.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-58. Records required to be kept by metal recyclers.

(a) *Records of public transactions.* With the exception of the sale or transfer of aluminum cans, a metal recycler shall keep at his place of business a record in an electronic database or a real-time electronic web-based database, in a form and method approved by the chief of police, in which he shall enter daily, in English, a full description of all public transactions in which materials are purchased or otherwise received at his place of business. Such description shall include:

(1) The date and time of receipt of any item and the amount paid for the item;

(2) The full name and current address of the person or place of business from whom each item was purchased or received;

(3) A clear thumbprint impression of the person from whom each item is received. The thumbprint impression shall be excluded from the requirement for electronic transmission set forth in subsection (b) of this section but shall be maintained by the metal recycler for not less than two years from the date of receipt and made available to the director and any peace officer upon request;

(4) Evidence that the person transferring, selling or otherwise giving the items is at least 18 years of age by presentation of valid identification that includes a photograph of the person's face, in the form of either:

a. A current driver's license or identification card issued by the Texas Department of Public Safety or another state within the United States; or

b. A United States military identification card;

(5) A description of the motor vehicle and/or trailer or other mode of transportation in or on which each item purchased or received was carried to, delivered or transported to the metal recycler's place of business, including the license plate number, the name of the state issuing the license plate, and the make, model and color of the vehicle, if applicable;

(6) The individual transaction number assigned by the metal recycler to each transaction;

(7) A description of each of the items received as part of the transaction including, where customary in the business, the size, weight, material, length, capacity, and any other designations or descriptions customarily employed in the sale and purchase of such items;

(8) A digital photograph of sufficient quality to enable the identification of each item received;

(9) If the item received is a junked, abandoned or wrecked automotive vehicle,

documentation of ownership and any other information required for receipt of such vehicles as provided in state or federal laws or regulations and any provision of this Code;

(10) The name or employee number of the metal recycler's employee who facilitates or conducts the transaction;

(11) Whether the person from whom each item was purchased or received either:

a. Presented a written document evidencing that the person is the legal owner or is lawfully entitled to sell or otherwise transfer the item; or

b. Signed a written statement that the person is the legal owner of or is lawfully entitled to sell or otherwise transfer the item;

(12) A digital photograph of sufficient quality taken at the time of the transaction that accurately depicts the entire face of the person transferring, selling or otherwise giving the item;

(13) A copy of the seller's cash transaction card or approved application for a cash transaction card if the metal recycler paid for items purchased by cash;

(14) A copy of the debit card receipt and the seller's cash transaction card or approved application for a cash transaction card if the entity paid for items purchased by debit card;

(15) A copy of the check if the metal recycler paid for items purchased by check;

(16) The serial or heat number of any item purchased or received as required by rule or regulation promulgated pursuant to section 7-53 of this Code;

(17) A copy of a valid city-issued or state-issued construction, demolition, electrical, plumbing or heating, ventilation, or air conditioning (HVAC) permit or license for transactions in which the person seeking to sell or otherwise transfer items does so in the ordinary course of the person's business; and

(18) Any other information that the chief of police may reasonably require as set forth in the administrative rules and regulations pursuant to section 7-53 of this Code.

(b) *Reporting of public transactions.* The real-time electronic web-based database described in subsection (a) of this section shall be created and maintained by the police department. The metal recycler shall forward the required record and descriptions set forth in subsection (a) of this section for all public transactions in an electronic format to the designated police department web site before the close of business on each day on which the metal recycler is open for business.

(c) *Records of business to business transactions.* A metal recycler shall keep at his place of business a record in an electronic database or the real-time electronic web-based database as described in subsection (a) of this section a full description of all business to business transactions in which materials are purchased or otherwise received at his place of business. Such description shall include:

(1) The date and time of receipt of any item;

(2) The full name of the authorized personnel and the address of the place of business from whom each item was purchased or received;

(3) The individual transaction number assigned by the metal recycler to each transaction;

(4) A description of each of the items received as part of the transaction including, where customary in the business, the size, weight, material, length, capacity and any other designations or descriptions customarily employed in the sale and purchase of such items;

(5) A digital photograph of sufficient quality to enable the identification of each item received with the exception of material transported by commercial vehicle, of

which the entire load inside the trailer or the loaded trailer on the scale shall be photographed;

(6) The name or employee number of the metal recycler's employee who facilitates or conducts the transaction;

(7) A copy of a valid city-issued or state-issued construction, demolition, electrical, plumbing or heating, ventilation, or air conditioning (HVAC) permit or license for transactions in which the person seeking to sell or otherwise transfer items does so in the ordinary course of the person's business; and

(8) Any other information that the chief of police may reasonably require as set forth in the administrative rules and regulations pursuant to section 7-53 of this Code.

(d) *Business to business transactions not required to be reported.* A metal recycler shall not be required to forward to the real-time electronic web-based database as described in subsection (a) of this section the following information:

(1) The record and description of business to business transactions as described in subsection (c) of this section; and

(2) Material a metal recycler receives from a company at a location other than the metal recycler's place of business.

(e) *Receipts.* A metal recycler shall provide a consecutively numbered receipt to each seller or transferor of items, including the authorized personnel for a business to business transaction. Such receipt shall be dated on the actual date of the transaction and shall list the items sold or otherwise transferred. A printed version of the record input to an electronic database or input and transmitted to the real-time electronic web-based database as described in this section shall satisfy this requirement. An accurate copy or record of receipts provided shall be retained for a period of not less than three years from the date of the transaction.

(f) *Authorized personnel records.* A metal recycler shall maintain a written designation from a company with which the metal recycler engages in business to business transactions that occur at the metal recycler's place of business. The written designation must contain the name of the individual(s) serving as the company's authorized personnel and is valid for a 12-month period after the date provided on the designation unless, prior to the expiration of the 12-month period, the company designates new authorized personnel and submits that change in writing to the metal recycler. The written designation must:

(1) Be dated;

(2) Contain the first and last name of the individual(s) designated as the authorized personnel;

(3) Be updated by the company annually; and

(4) Be maintained by the metal recycler for a period of not less than three years from the date that appears on the designation.

(g) *Requirements for a business to business transaction.* To be deemed a business to business transaction, the name of the person from whom the item(s) is received at the metal recycler's place of business must be listed as authorized personnel on a written designation and that designation must be valid as of the date of the business to business transaction. The following transactions will not be considered business to business transactions and must be recorded as public transactions as required in subsection (a) of this section and forwarded to the real-time electronic web-based database as required by subsection (b) of this section:

(1) Transactions involving an individual whose name is not listed as authorized personnel on a written designation from the company of which the individual claims to be acting on its behalf; and

(2) Transactions involving an individual whose name does appear as authorized personnel on a written designation from the company of which the individual

claims to be acting on its behalf, but for which the written designation has expired.

(h) *Inspection.* A metal recycler shall, upon request, submit and exhibit for inspection or copying by any peace officer or inspector authorized by the director all business records that are required to be maintained under this section.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-59. Stock to be open for examination.

The stock or inventory of any metal recycler shall be accessible for examination by any peace officer or inspector authorized by the director at any time during ordinary business hours.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-60. Hold period; exceptions.

(a) Except as provided in subsection (b) of this section and the administrative rules and regulations promulgated pursuant to section 7-53 of this Code, it is unlawful for a metal recycler to sell, dismantle, deface or in any manner alter or dispose of any material purchased or otherwise received at the metal recycler's licensed place of business for 72 hours after receipt, excluding weekends and holidays, provided that the metal recycler shall not be required to keep aluminum cans for more than 24 hours. During the 72-hour period, all items shall be stored or displayed at the metal recycler's business location, in the exact form received, and in a manner so as to be identifiable from the description entered in the real-time electronic web-based database described in section 7-58 of this Code. Such property shall not be kept in such a manner so as to prevent or impede its examination.

(b) A metal recycler is not required to comply with subsection (a) of this section if:

(1) The transaction by which the material was acquired is a business to business transaction properly recorded as required by section 7-58 of this Code;

(2) The metal recycler verifies that the person seeking to sell or otherwise transfer the items has one of the following licenses or permits to establish that he is a manufacturing, industrial, commercial, retail, or other seller that sells the items in the ordinary course of its business:

a. A valid city-issued or state-issued metal recycler license, which the metal recycler shall record by photocopying the license or recording the license number in connection with the sale and maintain for a period of not less than two years from the date of the transaction; or

b. A valid city-issued or state-issued construction, demolition, electrical, plumbing or heating, ventilation, or air conditioning (HVAC) permit or license, which the metal recycler shall record by photocopying the permit or license or recording the project number located on the permit or license in connection with the sale and maintain for a period of not less than two years from the date of the transaction; or

(3) The material received by the metal recycler is tin or household appliances.

(c) Notwithstanding any provisions of this section, a peace officer who has reasonable suspicion to believe that an item or material in the possession of a metal recycler is stolen may place the item on hold in the manner provided by section 7-63 of this Code or Section 1956.037 of the Texas Occupations Code or any amendment thereof.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-61. Purchasing or receiving goods from minors.

(a) No metal recycler shall purchase or otherwise receive in the course of his business, any item, ownership of which is claimed by any minor, or which is in the possession of or under the control of a minor, unless:

(1) The minor is accompanied by his parent or guardian, who shall state in writing,

that such transaction is taking place with the parent's or guardian's full knowledge and consent; or

(2) The only items offered for sale by the minor are aluminum cans.

(b) It shall be the duty of a metal recycler to preserve and keep on file and available for inspection such written statements of consent for a period of not less than two years from the date of the transaction.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-62. Change in business name, address or operations.

(a) Should any metal recycler change the name of his business, the metal recycler shall notify the director within ten calendar days following the effective date of the change and shall provide documentation satisfactory to the director reflecting the new business name, including but not limited to, a certificate of assumed name or a certificate of status issued by the Texas Office of the Secretary of State and a certificate of account status from the Texas Comptroller of Public Accounts. The director shall issue a new license reflecting the new business name and the metal recycler must surrender the original license to the director at the time the new license is issued to the metal recycler.

(b) Should any metal recycler change the structure of its business organization, including, but not limited to, any change to the type of business organization under which the metal recycler is organized, the on-site representative, a proprietor, or in the case of a privately-held legal entity, a change of the holders of 50 percent or more of the ownership interest as shown on the license application, then the license shall be null and void unless a new application is made to the director for a new license and the full license fee is paid within ten calendar days following the effective date of the change. The metal recycler must surrender the original license to the director at the time a new license is issued to the metal recycler.

(c) Should any metal recycler move his place of business from the place designated in such license to a new address, he shall not operate as a metal recycler at the new address until:

(1) The metal recycler makes application to the director for a new license and pays the full license fee;

(2) The director determines that the requirements for the issuance of a license as set forth in section 7-55 of this Code are met;

(3) The director issues a new license reflecting the new business address; and

(4) The metal recycler surrenders the original license to the director at the time a new license is issued to the metal recycler.

(d) Should any metal recycler make the following changes in its operations, the metal recycler shall notify the director within ten calendar days following the effective date of the change:

(1) Exclude purchases from individuals, allowing only business to business transactions; or

(2) Expand purchases from solely business to business transactions to include purchases from individuals.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-63. Acceptance of property suspected stolen; peace officer requested holds.

(a) It shall be the duty of every metal recycler to report immediately to the police department, by filing a formal complaint, any offer to sell to the metal recycler property that the metal recycler has actual knowledge or a reasonable belief is stolen, together with the identity, when known, and description of the person or persons making such offer. A metal recycler shall also report to the police department, by filing a formal complaint, any property acquired by the metal recycler that the metal recycler subsequently determines or reasonably suspects to be stolen property and shall furnish such other information as might be helpful to the police department in investigating the matter.

(b) Notwithstanding the provisions of section 7-60 of this Code, it shall be the duty of every metal recycler to hold all suspected stolen property in a secure place on its business premise for 60 days upon request by a peace officer. The metal recycler may not process or remove the property from the secure place on its business premise before the 60th day after receipt of the request from a peace officer to hold the property unless:

(1) The item is released into a peace officer's care, custody and control at an earlier time;

(2) A peace officer releases the hold on the property upon an earlier date; or

(3) A court orders release of the property.

(c) Upon receipt of a written request from a peace officer, a metal recycler may be requested to hold all suspected stolen property in a secure place on its business premise for more than 60 days. A peace officer may request to extend the holding period for up to 24 months from the date the request is received. During this extended holding period, the metal recycler may not process or remove the property from the secure place on its business premise.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-63.1 Purchase of catalytic converters.

(a) It shall be unlawful for any individual or entity other than a metal recycler or other person described by section 1956.123 of the Texas Occupations Code to possess a used catalytic converter that was cut from its original vehicle, rather than unbolted, unless the individual or entity provides the applicable information under subsection (b) of this section. Each catalytic converter in an individual or entity's possession shall constitute a separate offense.

(b) Individuals, except those described in section 1956.123 of the Texas Occupations Code, must provide:

(1) The year, make, model and vehicle identification number for the vehicle from which the catalytic converter was removed;

(2) A copy of the certificate of title or other documentation indicating that the person has an ownership interest in the vehicle from which the catalytic converter was removed; and

(3) Any other information required by chapter 1956 of the Texas Occupations Code.

(Ord. No. 2022-341, § 3, 5-4-2022; Ord. No. 2024-218, § 2, 4-10-2024)

Sec. 7-64. Government or utility property.

(a) It shall be unlawful for any metal recycler or his agents or employees acting on his behalf to purchase or receive property, including but not limited to, street signs, traffic signals, manhole covers, road and bridge guard rails, street light poles and fixtures on which are written or affixed the words "City of Houston" or other words or markings demonstrating ownership by the city except in the following circumstances:

(1) Where the person offering such property for sale is an employee of the city authorized in writing by his department director to make such a sale and provides the metal recycler with written authorization from the director to sell such property; or

(2) Where the person offering such property for sale presents at the time of the offer appropriate documentation from the city evidencing the purchase of the property by the person offering to sell the property.

(b) It shall be unlawful for any metal recycler or his agents or employees acting on his behalf to purchase or receive property that is marked with any form of the name or initials of a governmental agency, including but not limited to, the State of Texas, the United States and any agencies and political subdivisions thereof, or that the metal recycler knows or should reasonably know belongs to a governmental agency, including but not limited to, street signs, traffic signals, manhole covers, road and bridge guard rails, street light poles and fixtures, except:

(1) Where the person offering such property for sale is an employee of the governmental agency authorized by that

agency to make such a sale and provides the metal recycler with a written authorization from the agency for the sale of such property; or

(2) Where the person offering such property for sale presents at the time of the offer appropriate documentation from the governmental agency evidencing the purchase of the property by the person offering to sell the property.

(c) It shall be unlawful for any metal recycler or his agents or employees acting on his behalf to purchase or receive property that is marked with any form of the name or initials of an electrical, telephone, cable, or other public utility company or that the metal recycler knows or should reasonably know belongs to a public utility company unless the person offering such property for sale presents at the time of the offer to sell the property appropriate documentation from the public utility company evidencing the person's authorization to sell the property.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-65. Acceptance of property in original packaging.

It shall be unlawful for any metal recycler or his agents or employees acting on his behalf to

purchase or receive property in its original packaging unless the person offering such item presents a receipt or proof of purchase for that property.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-66. Acceptance of property inscribed with company name.

It shall be unlawful for any metal recycler or his agents or employees acting on his behalf to purchase or receive property that is marked with any form of the name or initials of a private company or that the metal recycler knows or should reasonably know belongs to a private company unless the person offering such property for sale presents at the time of the offer to sell the property a written and signed statement from the seller attesting to lawful ownership of the property, a receipt from the lawful owner, or a written, signed statement from the lawful owner of the property providing that the seller has authorization to sell or otherwise transfer that property.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-67. Acceptance of property delivered by shopping cart.

It shall be unlawful for any metal recycler or his agents or employees acting on his behalf to purchase or receive property that is transported to the metal recycler's place of business by a shopping cart that is marked with any form of the name or initials of a private company or that the metal recycler knows or should reasonably know belongs to a private company unless the person operating the shopping cart presents at the time of transportation of the property to the metal recycler appropriate documentation evidencing the purchase or other lawful transfer of the shopping cart by or to the person operating the shopping cart.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-68. Acceptance of air conditioning unit parts and burned insulated wire.

(a) It shall be unlawful for any metal recycler or his agents or employees acting on his behalf to purchase or receive any central air conditioning unit parts from any person offering such property for sale unless the person presents:

(1) A valid city-issued or state-issued HVAC permit or a permit issued by the city to a homeowner for the installation, alteration, or repair of an air-conditioning system at a particular address. This provision shall not apply to window air conditioning units;

(2) A receipt, bill of sale, or other documentation showing that the seller purchased the central air conditioning unit parts the seller is attempting to sell; or

(3) A receipt, bill of sale, or other documentation showing that the seller has purchased a replacement central heating or air conditioning unit.

(b) It shall be unlawful for any metal recycler or his agents or employees acting on his behalf to purchase or receive from any person any insulated wire that has been burned wholly or partly to remove the insulation unless the person offering the insulated wire presents appropriate documentation that shows that the insulated wire was salvaged from a fire.

(c) The provisions of this section shall not apply to a metal recycler's purchase or receipt of window air conditioning units.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-69. Inspections.

(a) The chief of police or his designee is hereby authorized and directed to conduct inspections on an applicant or metal recycler's place of business as necessary or desirable to determine satisfactory compliance with this article and all other applicable ordinances and laws.

(b) Each metal recycler's place of business shall be subject to periodic inspections to determine compliance with the requirements of this article or applicable rules and regulations.

(c) In consideration for the payment of the license fee required for this provision in the city fee schedule, an applicant shall be entitled to an initial inspection of the applicant's proposed place of business and, if necessary, one reinspection to verify corrections of any deficiencies noted in the initial inspection. An additional fee, as stated for this provision in the city fee schedule, is hereby imposed and shall be collected from each applicant who requests in writing a second reinspection to verify corrections of deficiencies noted in the first reinspection. Failure to pass the second reinspection is grounds for the denial of a license required under this article.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-70. Operation of yards used by a metal recycler; hours for purchasing materials.

(a) *Compliance.* All lots or tracts of land owned, used or operated within the city by a metal recycler for the following purposes shall comply with all city ordinances including this Code, and specifically section 28-34 of this Code:

(1) To store loose or bailed inventory outside of an enclosed structure;

(2) To store equipment outside of an enclosed structure; or

(3) To process scrap metal outside of an enclosed structure.

(b) *Removal of flammable liquids from vehicles.* All gasoline, gasohol, diesel fuel or other flammable liquids shall be completely drained and removed from any junked, wrecked or abandoned automotive vehicle before the vehicle is placed in any lot or tract of land described in subsection (a) of this section. All flammable liquids drained from any vehicle shall be stored in a safe manner and in strict accordance with the Fire Code.

(c) *Fencing, wall requirements.* Every lot or tract of land described in subsection (a) of this section shall be completely surrounded and enclosed by a solid fence or wall as follows:

(1) All fences or walls must be at least six feet in height.

(2) The term "solid" as used in this section shall mean constructed and maintained so that the outer surface is continuous and without interstices, gaps, spaces or holes. This shall not be construed to prohibit any spaces or gaps left by a properly constructed and maintained chain link fence with strips or slats as provided in this section.

(d) *Construction, maintenance of fence or wall.* Every fence or wall required in this section shall be constructed and maintained in good repair as follows:

(1) All fences shall be constructed of wood, masonry, corrugated sheet metal, chain link, or any combination thereof; provided, however, that any one side shall be bounded by a fence or wall constructed of only one of the above materials.

(2) Chain link fences shall be constructed of galvanized chain link fencing with wood or metal slats or strips run through all links of the chain link fence.

(3) All fences or walls shall extend downward to within three inches of the ground and shall test plumb and square at all times.

(4) All fences or walls shall be constructed in compliance with all applicable provisions of the Construction Code.

(e) *Use of wall, door of structure as part of fence or wall.* Any part of a fence or wall required by subsection (c) of this section may consist, in whole or in part, of a solid wall and door, or walls and doors of any completely enclosed structure on said premises, if such wall or door meets all construction requirements set forth in subsection (d) of this section.

(f) *Gates at openings in enclosure.* Openings in the enclosed fence or wall which are necessary to permit reasonable access to a lot or tract of

land shall be equipped with a gate or gates, constructed and maintained in accordance with the requirements for a fence or wall described in subsection (d) of this section. Such gates shall be closed and securely locked at all times except during normal business hours.

(g) *Use of premises outside enclosed fence or wall.* It shall be unlawful for a metal recycler to display, store or work on any junked or wrecked automotive vehicle, home appliances, or any parts, accessories or junk thereof or any other new or used metal materials outside of the fence or wall required in this section.

(h) *Arrangement of materials.* All automotive vehicles, parts and other materials located in or on any lot or tract of land described in subsection (a) of this section shall be so arranged to allow reasonable access to, and inspection of, the premises at any time during ordinary business hours by authorized representatives of the city's fire, health and police departments and the department of neighborhoods. No materials shall be stored at a height greater than six feet within ten feet of the fence required in this section.

(i) *Control of vegetation.* It shall be unlawful to allow grass or other vegetation to grow to a height of more than nine inches above the ground in any lot or tract of land described in subsection (a) of this section.

(j) *Improved surface.* All lots or tracts of land described in subsection (a) of this section shall have an all-weather surface of concrete, asphalt, black-top, stone, macadam, limestone, iron ore, gravel, shell, slag or other hard fill surface and appropriate drainage. This subsection shall not include those areas of a yard which are utilized for purposes of inventory storage and processing.

(k) *Vector and rodent control.* Any materials stored on a lot or tract of land described in subsection (a) of this section must be stored in a manner that will allow adequate vector and rodent control measures. A metal recycler shall provide for vector and rodent control at least once within a 90-day period or more frequently as needed.

(l) *Hours of operation.* A metal recycler may only purchase scrap metal from the general public on Monday through Saturday between the hours of 6:00 a.m. and 7:00 p.m.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

DIVISION 4. REVOCATION

Sec. 7-71. Revocation of a license.

(a) *Grounds for revocation.* A license issued under this article may be revoked pursuant to the procedures set forth in section 7-7 of this Code if the director determines that:

(1) The licensee or the licensee's place of business has not been in compliance with the requirements of any provision of Chapter 1956 of the Texas Occupations Code, this article or any applicable rules or regulations since the license was issued;

(2) The licensee obtained a license by means of fraud, misrepresentation, or concealment of a fact or that the licensee falsified his original application for a license;

(3) Any fact or circumstance exists that would be a basis for denial of an application for issuance or renewal of a license, or the license was otherwise obtained or issued in error; or

(4) Any person listed on the licensee's original application has since the license was issued been convicted of any applicable offenses specified in section 1-10 of this Code.

(b) *Suspension or revocation of state-issued certificate of registration.* When a metal recycler's state-issued certificate of registration is suspended or revoked, the metal recycler shall immediately limit its operations by excluding all public transactions involving the purchase of regulated material for the duration of the suspension or revocation. Notwithstanding the provisions of section 7-62 of this article, a metal recycler shall notify the director within three days of a suspension or revocation of his state-issued certificate of registration. A metal recycler may resume engaging in public transactions involving the

purchase of regulated material once its state-issued certificate of registration has been reinstated.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

DIVISION 5. VARIANCES

Sec. 7-72. Variance procedure.

(a) A licensee or an applicant for a metal recycler license may make written application to the director on a form promulgated by the director for a variance from the requirements regarding open storage contained in section 28-34 of this Code. The applicant shall provide the following:

(1) The name and address of the fixed location of the business;

(2) A statement of the extent of the variance sought and the specific facts and reasons that the applicant believes warrant the granting of the variance;

(3) The nonrefundable fee stated for this provision in the city fee schedule; and

(4) Any other information that the director may reasonably require.

(b) A staff report regarding the variance request shall be provided to the director prior to his consideration of the variance request.

(c) The director shall consider the variance application and make a determination to grant or deny the variance within ten business days of receipt of the variance application. All determinations shall be issued in writing, contain the reasons the variance was granted or denied, signed by the director, and issued to the applicant at the address provided in the application.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-73. Standards for variances.

The director is authorized to consider and grant variances from the provisions of section 28-34 of this Code if the director determines that:

(1) That the circumstances supporting the granting of the variance are not the result of a hardship imposed or created by the applicant;

(2) That, in the sole discretion of the director, the intent and general purposes of this article will be preserved and maintained and that the granting of the variance will not be injurious to the public health, safety or welfare.

(3) At least 75% of the surrounding properties in a 1500 foot radius, as measured from the property line of the applicant's place of business, are used for commercial or industrial purposes; and

(4) No more than 25% of the surrounding properties in a 1500 foot radius, as measured from the property line of the applicant's place of business, are designated for tax appraisal purposes as residential by the Harris County Appraisal District if situated in the city or by the appraisal district of the county in which the applicant's place of business is situated if not situated in the city.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-74. Applicability of variance.

Any variance granted under the provisions of this division will apply only to the specific property and use upon which the director was requested to grant a variance by the applicant. All variances as granted shall be in writing, signed by the director and maintained by the director in accordance with the appropriate record retention schedule.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-75. Renewal of variance.

A variance granted under this division shall be valid for 20 years from the date of issuance. Any applicant whose variance is expiring and who desires to renew the variance shall make written application for a renewal of the variance in the manner provided in this division not more than 30 days prior to the expiration of the variance. All the requirements of this division must be met before a new variance may be issued.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Sec. 7-76. Appeal.

(a) Any applicant for a variance whose application has been denied may request a hearing regarding the denial of the variance. The request must be made in writing and provided to the director within ten business days of the date of the director's denial of the variance. If the applicant does not request a hearing within ten business days, the denial of the variance is effective on the 11th business day after the date of the director's denial of the variance.

(b) The hearing shall be conducted within 20 business days of the director's receipt of the request and shall be conducted by a hearing officer employed by the municipal courts department of the city designated to conduct administrative hearings and enter orders in the manner provided in this section. The hearing officer shall deny the variance if he determines by a preponderance of the evidence that grounds exist to deny the variance. At the hearing, the applicant may be represented by an attorney, present evidence and cross-examine witnesses.

(c) The hearing officer shall give written notice to the applicant of his findings as to whether or not the variance should be granted and the reasons therefor. The notice shall be by certified mail, return receipt requested, as soon after the conclusion of the hearing as practicable, but in no event more than 30 days thereafter. The decision of the hearing officer shall be final.
(Ord. No. 2016-964, § 4(Exh. A), 12-7-2016)

Secs. 7-77—7-80. Reserved.

ARTICLE IV. CRAFTED PRECIOUS METALS DEALERS

Sec. 7-81. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings assigned to them in this section, except where the context clearly indicates a different meaning:

Crafted precious metal means jewelry, silverware, an art object, or another object made wholly or partly from precious metal, other than a coin, a bar, a commemorative medallion, or scrap or a broken item selling at five percent or more than the scrap value of the item.

Dealer means a person licensed to engage in the business of purchasing and selling crafted precious metal (including purchases or sales made through the mail), except for coins, bars, commemorative medallions, or items that the dealer purchases for five percent or more than the scrap value.

Licensee means any person licensed as a dealer pursuant to this article.

Permanent registered location means a location where a crafted precious metals dealer engages in the business of buying crafted precious metal for one year or longer.

Precious metal means gold, silver, platinum, palladium, iridium, rhodium, osmium, ruthenium, or an alloy of those metals.

Scrap value means the value at which an item would be purchased by a person who will melt the item or otherwise transform it so that it will not be used for its original purpose.

Tableware means any flatware, dishes, serving pieces or other items designed or intended to be used in connection with the serving or eating of food when the items are made of any precious metal or wholly or partially plated with a precious metal.

Temporary dealer means any person who conducts business as a dealer in the city for a period of time not to exceed one year but does not have a permanent place of business in the city.
(Ord. No. 2013-111, § 18, 2-6-2013)

Sec. 7-82. License required; display, exceptions.

(a) No person shall operate as a dealer or own any such business or engage in the business of buying, trading, or otherwise receiving jewelry, used tableware, or other used items containing precious stones or made of or plated with precious metals unless he is licensed pursuant to this article, is licensed as a pawnbroker pursuant to the statutes of the state or is acting in the employment of one licensed under one of the

above-listed laws. A separate license shall be required for each permanent location of any such business. A license issued under this subsection shall be marked to indicate that the business is authorized to deal only in the items listed in this article and shall be posted in a conspicuous place upon the licensed premises.

(b) A dealer must provide and display valid city and state license numbers on all forms of advertisement (i.e., print, video, internet, and radio) for business conducted within the city limits.

(c) Exceptions to the applicability of this article are as provided in the Texas Occupations Code, Chapter 1956, Subchapter B.
(Ord. No. 2013-111, § 18, 2-6-2013)

Sec. 7-83. Application for license.

(a) Any person desiring a license required by this article shall make application therefor in writing to the director on an application form provided for that purpose. On the application, the applicant shall provide the following information:

(1) The full name of the applicant, the street address where the business is to be located, and the residence address of each owner, manager and operator of the business;

(2) Whether any owner or operator is an individual, partnership, corporation, or other legal entity; provided, however, that the type of business organization shall include only those organizations recognized by the Texas Business Organizations Code ("BOC") and authorized to engage in the type of business covered by this article, and if the organization is a foreign entity required to register under Chapter 9 of the BOC, full and complete copies of the organization's current registration;

(3) If any owner or operator is a corporation, all officers of the corporation; and if there are fewer than five shareholders, the names of all shareholders;

(4) If any owner or operator is a partnership, the type of partnership and names and addresses of all general partners, and for limited partnerships, the names and addresses of all members;

(5) If any owner or operator is an unincorporated association, the names and addresses of all officers of the association;

(6) If any applicant does business under an assumed name as that term is defined in Texas Business and Commerce Code section 71.002, all assumed names used;

(7) The person responsible for the on-site day-to-day operation of the applicant's permanent registered location and a person responsible for each temporary location;

(8) The location where the business will be conducted, along with a copy of the certificate of occupancy for the location;

(9) The time period or periods during which the business will be conducted, including hours of operation;

(10) A copy of the certification of registration issued by the Office of Consumer Credit Commissioner (OCCC) of the State of Texas; and

(11) Any other information reasonably required by the director for the purpose of processing the application under the requirements of this article.

(b) The application form shall be accompanied by an affidavit, sworn to by the applicant, (or declaration pursuant to Texas Civil Practice and Remedies Code § 132.001) acknowledging that the applicant:

(1) Including his business partners, and, in the case of a corporation, all corporate officers, have not had a license revoked under this chapter or any preceding city ordinance governing the business described herein;

(2) Has read the application and agrees to all of its terms and provisions;

(3) Affirms the correctness and accuracy of the information given on the application; and

(4) Affirms that he has the authority to bind the applicant to all of the terms, provisions and requirements of the application.

(Ord. No. 2013-111, § 18, 2-6-2013)

Sec. 7-84. Temporary license.

A temporary dealer who wishes to purchase crafted precious metals in the city must apply for and secure a license for each location. An application for a temporary dealer's license shall be submitted as required in section 7-83, not later than 30 business days prior to the desired effective date of the license, and shall contain, for each location:

(1) The approximate dates and hours of operation for each temporary location; and

(2) The name of the person responsible for on-site operations and compliance with applicable laws at each temporary location.

(Ord. No. 2013-111, § 18, 2-6-2013)

Sec. 7-85. Issuance, denial, fees.

(a) Upon receipt of an application, the director shall investigate the items sworn to by affidavit or declaration. An application is complete when the application contains the information required by this article and is accompanied by the payment of the license fee.

(b) Within 30 days of receiving an incomplete application, the director will provide written notice to the applicant stating that the application is incomplete and specifying the additional information required for completion. If the director requests additional information and the applicant does not respond within 30 days, the application will be considered withdrawn, and the applicant must reapply to obtain a license.

(c) For temporary licenses, within ten business days of receiving an incomplete application, the director will provide written notice to the applicant stating that the application is incomplete and specifying the additional information. If the applicant does not respond within ten business days, the application will be considered withdrawn, and the applicant must reapply to obtain a temporary license.

(d) Upon receipt of a complete application for a temporary or permanent license, the director shall issue a license to the applicant unless:

(1) The information provided in the application is materially false or incorrect;

(2) The applicant has violated the provisions of this chapter;

(3) The applicant or any of the applicant's principals are not in compliance with the criminal history provisions of section 1-10 of this Code; or

(4) The applicant, his business partners or corporate officers have had a license revoked under this article or a preceding city ordinance governing the business described herein within the last five years.

(e) If the director denies the application, he shall give written notice by personal delivery or certified mail, return receipt requested, to the applicant at the address stated in the application. The written notice shall specifically set forth the reasons for the denial and shall be subject to an appeal pursuant to the procedures in section 7-7 of this Code.

(f) The annual fee for a license issued pursuant to this article for a dealer with a permanent place of business within the city is stated for this provision in the city fee schedule. The license, unless revoked, shall be valid for one year from the date of issuance.

(g) A temporary dealer shall pay the daily license fee for each show. The daily license fee is stated for this provision in the city fee schedule.

(Ord. No. 2013-111, § 18, 2-6-2013)

Sec. 7-86. Change in business name or address; notice.

(a) Should any person licensed under this article move his permanent place of business from the place designated in the license to a new address, he shall immediately give written notice to the director and have the change noted on his

license. The fee stated for this provision in the city fee schedule, payable to the director, is hereby levied for such a change.

(b) The director will rely on the mailing and e-mail addresses currently on file to contact dealers. The failure to maintain a current mailing or e-mail address with the director is not a defense to any action based on a dealer's failure to respond to notifications from the director.
(Ord. No. 2013-111, § 18, 2-6-2013)

Sec. 7-87. Use of license at shows, other locations.

Each licensee with a permanent business location in the city may use the license for that business when attending shows or conducting business at other locations in the city.
(Ord. No. 2013-111, § 18, 2-6-2013)

Sec. 7-88. Required recordkeeping; transaction report form, scrap value estimation, receipt.

(a) A dealer shall keep at his place of business a record of all purchases of crafted precious metals in a real-time electronic web-based database, in a form and method approved by the chief of police. The record shall be updated daily, with a full description in English of each transaction in which personal property is purchased or otherwise received at the dealer's licensed place of business.

(b) The dealer must prepare a transaction report form for each transaction. The report form shall be preprinted and pre-numbered, and shall contain all the following information:

(1) The date of purchase.

(2) The name and address of the dealer's permanent business location.

(3) The name and address where the dealer purchased the crafted precious metal, if the location is different than the dealer's permanent business location and the transaction takes place in person.

(4) The dealer's registration number.

(5) The full name of the seller, as listed on the seller's driver's license or personal identification certificate as defined by Texas Occupations Code § 1956.001(8).

(6) A physical description of the seller to include date of birth, height, eye color, and gender.

(7) The physical address where the seller is residing at the time of the transaction.

(8) The seller's driver's license number or personal identification number from the following unexpired forms of identification:

a. A driver's license number from Texas or another state within the United States;

b. An identification card issued by the Texas Department of Public Safety;

c. A United States military identification card; or

d. A United States passport or visa, or other identification issued by the United States government as described in the administrative rules promulgated pursuant to section 7-93 of this Code.

(9) A clear digital photograph of the seller, in accordance with the administrative rules issued by the director and the chief of police.

(10) A clear thumbprint from the seller.

(11) The seller's certification that the seller's name and address, as well as the description of the crafted precious metal, are true and complete.

(12) The seller's representation that the seller has the right to possess and sell the property.

(13) A description of the crafted precious metal purchased by the dealer, accompanied by a clear digital image of each item purchased, including the:

a. Total number of items purchased by the dealer;

b. Type of each item (e.g., fork, tray, chain, ring);

c. Type, color and purity of each kind of metal purchased (e.g., 10 karat white gold, 0.925 sterling silver);

d. Weight in troy ounces, grams, or pennyweights for each kind of metal;

e. Amount paid by the dealer for each kind of metal;

f. Color (e.g., clear, blue, green), number, and approximate size (e.g. small, medium, large) of any stones and which item(s) included those stones;

g. Size or length of each item (e.g., size 7, 18 inches);

h. Any discernible serial numbers;

i. Any engravings, inscriptions, distinctive markings, or designs;

j. Gender for which any jewelry item was manufactured, if identifiable; and

k. Any unique markings that are not visible and identifiable from the photographic images.

(14) The total amount paid to the seller by the dealer.

(15) The notice regarding oversight of precious metals dealers by the state's Office of Consumer Credit Commissioner and the office's contact information for consumer complaints as required by Title 7 of the Texas Administrative Code, Part 5, Ch. 85, Subch. B, Div. 2, Rule 85.2001(a).

Additional information is permissible on the transaction report form as long as it is not misleading with respect to rights arising under the law.

(c) The dealer shall maintain a scrap value estimation record for each purchase of crafted precious metal, including a reasonable good faith estimate of the each item's scrap value or the percentage of scrap value that the dealer will pay the seller. The scrap value estimation is not required on the seller's receipt copy of the transaction report form, but must be included on the dealer's copy, which must be maintained for a period of not less than three years, pursuant to Texas Occupations Code § 1956.063.

(d) The dealer shall submit the required records to the real-time electronic web-based database by the close of business on each day on which the dealer is open for business. Failure to comply with any provision of this section shall be grounds for the revocation of or the refusal to issue or renew a dealer's license. Any person violating any provision of this section shall be punished as provided by section 1-6 of this code.

(e) The dealer, his agents, or employees shall supply a consecutively-numbered receipt to the seller or transferor of the property. The receipt shall be dated on the actual date of the transaction and shall list the items sold or otherwise transferred. A printed version of the record input to the real-time electronic web-based database shall satisfy this requirement. An accurate copy or record of receipts shall be retained for a period of not less than three years.

(f) A dealer and every person engaged in the business of buying, trading or otherwise receiving crafted precious metals in any form shall, upon request, submit and exhibit the various business records required to be maintained under this section for inspection and copying to any peace officer or authorized inspector of the director. Failure to maintain or to so permit the examination or copying of the records when requested shall be a misdemeanor.
(Ord. No. 2013-111, § 18, 2-6-2013; Ord. No. 2016-964, § 5, 12-7-2016)

Sec. 7-89. Stock to be open for examination.

The stock or inventory of any dealer that is openly displayed and available to the public shall at any time during ordinary business hours be accessible for examination by any peace officer or authorized inspector of the department of administration and regulatory affairs. Failure to permit an examination when requested shall be a misdemeanor.
(Ord. No. 2013-111, § 18, 2-6-2013)

Sec. 7-90. Articles to be retained, placed on hold, exceptions.

(a) No dealer shall sell, dismantle, deface, melt, or in any manner alter or dispose of any item purchased or otherwise received at the dealer's licensed place of business for 11 days after receipt. During the 11-day period, all items of property shall be stored or displayed at the dealer's permanent business location or in a secure location readily accessible to the dealer, in the exact form received, and in a manner so as to be identifiable from the description entered in the record book. The property shall not be kept so as to prevent or impede its examination hereunder and shall be available for inspection by a peace officer within 24 hours of a peace officer's request to inspect the property.

(b) A dealer may not melt, deface, alter, or dispose of crafted precious metal received by the dealer before the 11th day after the required report is filed unless:

(1) The peace officer to whom the report is submitted, for good cause, authorizes the disposition of the metal;

(2) The dealer obtains the name, address, and description and other information pertaining to the buyer as required in section 7-88(b) of this article and retains a record of that information; or

(3) The dealer is a pawnbroker and the disposition is the redemption of pledged property by the pledger.

(c) A peace officer who has a reasonable suspicion that an item of crafted precious metal in a dealer's possession is stolen may place the item on hold for a period not to exceed 60 days by issuing to the dealer a written notice that specifically identifies the item alleged to be stolen and subject to the hold, and informs the dealer of the requirements of this section.

(d) On receiving notice from a peace officer that an item is placed on hold, the dealer may not melt, deface, alter, or dispose of the identified crafted precious metal until the hold is released in writing by a peace officer of this state or by court order.

(e) Failure to comply with any provision of this section shall be grounds for the revocation of or the refusal to issue or renew any license required of a dealer under this Code. Any person violating any provision of this section shall be punished as provided by section 1-6 of this Code.
(Ord. No. 2013-111, § 18, 2-6-2013)

Sec. 7-91. Purchasing or receiving goods from minors.

No dealer shall purchase or otherwise receive in the course of his business any item, ownership of which is claimed by any minor, or which may be in the possession of or under control of a minor, unless the minor's parent or guardian shall state in writing, that the transaction is taking place with the parent's or guardian's full knowledge and consent. It shall be the duty of the dealer to preserve and keep on file, and available for inspection, the written statements of consent, for a period of three years.
(Ord. No. 2013-111, § 18, 2-6-2013)

Sec. 7-92. Revocation of license.

(a) A license may be revoked pursuant to the procedures in section 7-7 of this Code if:

(1) Any information supplied in the permit application was materially false or incorrect;

(2) The license was issued as a result of error;

(3) The licensee has failed to operate in compliance with any applicable provision of the license or this chapter; or

(4) The licensee has violated the provisions of this chapter, or is not in compliance with the criminal history provisions of section 1-10 of this Code.

(b) A dealer whose registration has been revoked may not reapply for five years from the date of revocation.
(Ord. No. 2013-111, § 18, 2-6-2013)

Sec. 7-93. Administrative rules.

The director and the chief of police shall promulgate rules and regulations to administer

the provisions of this ordinance. The rules and regulations shall not conflict with any applicable provisions of this Code. All rules and regulations so promulgated shall be kept on file for public inspection at the office of the director and the office of the chief of police.
(Ord. No. 2013-111, § 18, 2-6-2013)

Secs. 7-94—7-100. Reserved.

ARTICLE V. COMMON MARKETS*

Sec. 7-101. Definitions.

The following words and phrases shall have the following meanings in this article unless otherwise clearly indicated in the text. Words not defined shall be interpreted in their usual sense.

Common market shall mean any tract of land, including all improvements thereon, on which three or more spaces, booths and/or rooms are rented or let for a period not to exceed eight consecutive days, for the purpose of selling used goods or handicrafts, artisan products and original works of art, including the activities conducted at 'certified farmer's markets,' as defined in this Code. However, if the lessor rents or lets three or more spaces, booths, and/or rooms, for a period not to exceed eight consecutive days, for purposes other than the sale of used goods, and subsequently permits the sale of used goods from three or more spaces, booths and/or rooms, that tract shall be deemed a common market.

Used goods shall mean any items, goods, products, wares, chattels, or articles of any kind or character which have previously been owned by someone other than the manufacturer or a dealer whose business it is to sell such when new to the consumer.
(Code 1968, § 12½-1; Ord. No. 78-1884, § 1, 9-26-78; Ord. No. 09-931, § 13, 10-7-09)

*__Cross references—__The Houston Festival, § 12-81 et seq.; rat-proofing for curb and farmer's markets, § 21-128 et seq.; itinerant vendors, Ch. 22.

Sec. 7-102. License required; display of licenses.

No person shall own or operate a common market unless he has a valid license issued by the director of administration and regulatory affairs. Any person who owns or operates a common market at more than one location must obtain a license for each separate location. In the event the person who operates a common market is not the owner thereof, both the owner and the operator shall be co-licensees. Each license required under this article shall be conspicuously posted upon the licensed premises.
(Code 1968, § 12½-2; Ord. No. 78-1884, § 1, 9-26-78; Ord. No. 08-52, § 29, 1-16-08, eff. 1-26-08)

Sec. 7-103. Application for license.

(a) To obtain a license to own or operate a common market, the applicant shall submit an application therefor in writing to the director of administration and regulatory affairs on a form furnished by the department for that purpose. The applicant shall set forth:

(1) The name and address of the common market.

(2) The name and address of the persons who will operate the common market.

(3) If the owner or operator is a corporation, all officers of the corporation; and if there are fewer than five shareholders, the names of all shareholders.

(4) If the owner or operator is a partnership, the names and addresses of all partners.

(5) If the owner or operator is an association, the names and addresses of all officers of such association.

(6) The street address where the common market is located.

(7) The legal description of the property on which the common market is located.

(8) Whether or not any person required to be listed on the application has had a license revoked under this article at any time.

(9) A notarized written affidavit of consent from the property owner of the real property on which the common market will be operated that the operator has permission to be on the property and that the operator has permission to operate a common market; the affidavit must contain the contact number at which the owner may be reached at all times.

(b) Such application shall be subscribed and sworn to by all owners and operators of the specified market before an officer authorized to administer oaths.
(Code 1968, § 12½-3; Ord. No. 78-1884, § 1, 9-26-78; Ord. No. 08-52, § 30, 1-16-08, eff. 1-26-08; Ord. No. 09-931, § 14, 10-7-09)

Sec. 7-104. License issuance; notification upon rejection.

The director of administration and regulatory affairs shall issue a license upon submission of an application in accordance with this article and payment of the license fee, unless he finds the applicant cannot be granted a license under section 7-105 of this Code.

If the director of administration and regulatory affairs rejects the application, he shall give written notice by certified mail, return receipt requested, to the applicant stating the reasons for such rejection. If an application is rejected on a finding that the applicant cannot be granted a license under section 7-105 of this Code, no portion of the license fee shall be refunded.
(Code 1968, § 12½-4; Ord. No. 78-1884, § 1, 9-26-78; Ord. No. 08-52, § 31, 1-16-08, eff. 1-26-08)

Sec. 7-105. Grounds for not issuing license.

No person may be granted a license to own or operate a common market at a particular location if:

(1) Any statement made in the application was incomplete or false.

(2) Any person required to be listed on the application has had a license revoked under this article.

(Code 1968, § 12½-5; Ord. No. 78-1884, § 1, 9-26-78)

Sec. 7-106. Transfer of license.

Any license issued in accordance with this article is personal to the applicant and is neither transferable, nor alienable.
(Code 1968, § 12½-6; Ord. No. 78-1884, § 1, 9-26-78)

Sec. 7-107. License expiration and renewal.

Each license issued in accordance with this article shall expire one year from the date of issuance. The license may be renewed by submitting an application in accordance with section 7-103 of this Code and payment of the license fee.
(Code 1968, § 12½-7; Ord. No. 78-1884, § 1, 9-26-78)

Sec. 7-108. License fee.

(a) The annual fee for each license to own and operate a common market, broken down by number of vendors or booths; there shall be one fee for markets with 0 to ten vendors or booths; a different fee for markets with 11 to 20 vendors or booths; and yet a different fee for markets with more than 20 vendors or booths. The fees are stated for this provision in the city fee schedule.

(b) The operator of the common market must obtain the common market license; said license will cover all vendors within that market and said vendors are exempt from obtaining separate permits for that common market.
(Code 1968, § 12½-8; Ord. No. 78-1884, § 1, 9-26-78; Ord. No. 09-931, § 15, 10-7-09; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 7-109. Licensee to keep records.

(a) Each person who is licensed pursuant to the provisions of this article shall cause to be kept a record of each transaction in which a space, booth and/or room in a common market is rented or let, unless such space, booth, and/or room is rented or let for 30 consecutive days or more and such space, booth and/or room will be open for business not less than five days per week. Such record shall include:

(1) The name of each person renting or leasing the space, booth and/or room.

(2) The dates of such space, booth and/or room may be used by the person renting or leasing the same.

(3) The name of all persons who will be selling or assisting the lessee in selling goods in that space, booth and/or room.

(4) The mailing address of each person renting or leasing a space, booth and/or room and of each person selling and/or assisting in the selling of goods in that space, booth and/or room.

(5) The driver's license number of each person renting or leasing a space, booth and/or room, and of each person selling and/or assisting in the selling of goods from that space, booth and/or room; or if any such person does not have a valid driver's license and is 16 years of age or older, such person shall be required to present a personal identification certificate issued by the Texas Department of Public Safety and the number of such personal identification certificate shall be listed in the record required under this section.

(6) The license plate number, make, model, and color of the vehicle used by each person selling or assisting in the selling of goods from a space, booth or room.

(b) The licensee shall maintain the records so described in a record book which has a carbon copy, the original being the city police department's copy and the carbon being for the licensee's records. The licensee's copies shall be available for inspection by any peace officer or authorized inspector of the department of administration and regulatory affairs during regular business hours. The licensee shall maintain his copies of such records for six months after the dates the persons listed were permitted to use such space, booth or room and shall maintain the originals for the same period unless the police department has taken custody of the originals prior to the expiration of that time. It will be the responsibility of the police department to pick up the original copies of the records.

(c) The licensee shall not permit any person to sell or assist in the selling of any goods from any space, booth or room for which a record is required to be kept by this section unless such person is listed in the licensee's records.
(Code 1968, § 12½-9; Ord. No. 78-1884, § 1, 9-26-78; Ord. No. 08-52, § 32, 1-16-08, eff. 1-26-08)

Sec. 7-110. Examination of goods.

(a) All goods located on the property of the common market which are openly displayed or available for purchase in a space, booth or room for which a record must be kept under section 7-109 of this Code shall be accessible for examination by any police officer of the city at any time the common market is open to the public.

(b) Prior to renting or letting any space, booth and/or room for which a record must be kept under section 7-109 of this Code, the licensee shall give written notice to the person renting or letting such space of the provisions of subsection (a) above.
(Code 1968, § 12½-10; Ord. No. 78-1884, § 1, 9-26-78)

Sec. 7-111. Grounds for revocation of license.

A license issued under this article may be revoked in accordance with the following procedures if it is found that:

(a) The licensee has violated any provisions of this article.

(b) Any person required to be listed on the application for the license has, since the license was granted, violated any federal or state criminal statutes involving theft or fraud after such license was granted.

(c) Any statements made in the application for the license were known to be false or should have been known to be false by any person required to sign the application.
(Code 1968, § 12½-11; Ord. No. 78-1884, § 1, 9-26-78)

Sec. 7-112. Investigation of facts prior to revocation of license; notice to licensee of possible revocation.

Whenever the director of administration and regulatory affairs receives reliable information that grounds for revocation of a license exists, he shall investigate the facts. If he finds that there are probable grounds for revocation of a license, he shall give written notice to the licensee by personal service or by certified mail, return receipt requested. Such notice shall set forth:

(1) The specific grounds upon which the license in question may be revoked.

(2) That there will be a hearing before the director of administration and regulatory affairs or his designee in which the city will seek the revocation of the license.

(3) The date, time and place of such hearing.

(4) That the licensee may appear in person and/or be represented by an attorney and may present testimony and may examine all witnesses.

In the event the address of the licensee is unknown or notice which has been mailed is returned undelivered, service upon any agent of the licensee at the common market shall be deemed service upon the licensee.
(Code 1968, § 12½-12; Ord. No. 78-1884, § 1, 9-26-78; Ord. No. 08-52, § 33, 1-16-08, eff. 1-26-08)

Sec. 7-113. Hearing on license revocation.

(a) All hearings shall be held by the director of administration and regulatory affairs or his designee. Such officer shall be referred to as the hearing officer. However, the director of administration and regulatory affairs shall not designate any person to perform the duties of hearing officer under this section who has participated in the investigation or has prior knowledge of the allegations or circumstances discovered in the course of said investigation except those set forth in the notice given pursuant to section 7-112 of this Code.

(b) All hearings shall be conducted under rules consistent with the nature of the proceedings, and only evidence presented at such hearing may be considered in rendering the final order.
(Code 1968, § 12½-13; Ord. No. 78-1884, § 1, 9-26-78; Ord. No. 08-52, § 33, 1-16-08, eff. 1-26-08)

Sec. 7-114. Failure of licensee to appear at hearing.

If the licensee fails to appear at the hearing at the date and time specified, the city shall introduce evidence to establish a prima facie case showing that grounds exist for revocation of the license.
(Code 1968, § 12½-14; Ord. No. 78-1884, § 1, 9-26-78)

Sec. 7-115. Findings of hearing officer.

After completion of the presentation of evidence by all parties appearing, the hearing officer shall make written findings in an order as to whether or not there are grounds for revocation of the license, and if there are such grounds setting forth in such written findings the specific facts supporting such grounds. If the hearing officer finds that grounds do exist for revocation of the license, he shall revoke the license for such common market. A true and accurate copy of the hearing officer's order shall be personally delivered or sent by certified mail, return receipt requested, to the licensee.
(Code 1968, § 12½-15; Ord. No. 78-1884, § 1, 9-26-78)

Sec. 7-116. License fee not to be refunded upon revocation of license.

In the event any such license is revoked by the hearing officer, the city shall not be liable to any person for any refund of any part of the license fee.
(Code 1968, § 12½-16; Ord. No. 78-1884, § 1, 9-26-78)

Sec. 7-117. Applicability of other ordinances.

Persons who sell used goods from a space, booth or room in a common market shall not be

required to comply with the requirements of articles II or III of this chapter, except that any person who engages in the business of selling used goods in one or more common markets on five or more days, whether such days are consecutive or not, in any two consecutive month period must comply with all applicable requirements of such articles.
(Code 1968, § 12½-17; Ord. No. 78-1884, § 1, 9-26-78)

Sec. 7-118. Reserved.

Editor's note—Ord. No. 09-410, § 22, adopted May 13, 2009, repealed § 7-118 in its entirety. Formerly said section pertained to Penalty for failure to obtain license or violation of article and derived from Code 1968, § 12½-18; Ord. No. 78-1884, § 1, 9-26-78; Ord. No. 92-1449, § 10, 11-4-92.

Secs. 7-119, 7-120. Reserved.

ARTICLE VI. SECONDHAND RESELLERS

Sec. 7-121. Definitions.

The following words, terms and phrases, when used in this article, shall have the same meanings as provided in this section, except where the context clearly indicates a different meaning:

Secondhand reseller means any person who offers or exposes for sale, barters, trades, delivers, consigns, leases, possesses with intent to sell, or disposes of in a commercial manner any item that was previously used in any manner other than use as a manufacturer or vendor sample or floor model. The term does not include metal recycler as defined in chapter 7, article III of this Code.

Used has the same meaning as provided in section 7-1 of this Code.
(Ord. No. 2016-964, § 6(Exh. B), 12-7-2016)

Sec. 7-122. License required; penalty; posting of license.

(a) No person shall operate as a secondhand reseller or own any such business unless the operation or business is conducted from a fixed location.

(b) No person shall operate as a secondhand reseller or own any such business without a valid secondhand reseller's license.

(c) The licensee shall display the license required under this article at all times in a conspicuous place that is accessible to the public on the licensed premise.
(Ord. No. 2016-964, § 6(Exh. B), 12-7-2016)

Sec. 7-123. Application for license; denial; expiration

(a) Any person desiring a license required by this article shall submit an application along with the license fee required pursuant to section 7-124 of this Code to the director on a form promulgated by the director. No portion of the license fee shall be refundable. The applicant shall provide the following information:

(1) The full name of the applicant, the street address where the business is to be located, and the residence address of each owner, manager and operator of the business;

(2) Whether any owner or operator is an individual, partnership, corporation, or other legal entity; provided, however, that the type of business organization shall include only those organizations recognized by the Texas Business Organizations Code ("BOC"), and if the organization is a foreign entity required to register under Chapter 9 of the BOC, full and complete copies of such organization's current registration;

(3) If any owner or operator is a corporation, all officers of the corporation; and if there are fewer than five shareholders, the names of all shareholders;

(4) If any owner or operator is a partnership, the type of partnership and names and addresses of all general partners;

(5) If any owner or operator is an unincorporated association, the names and addresses of all officers of such association;

(6) Documentation satisfactory to the director showing the applicant's form of entity and current status. Such documentation includes, but is not limited to, a current certificate of assumed name or a current certificate of status issued by the Texas Office of the Secretary of State and a certificate of account status from the Texas Comptroller of Public Accounts;

(7) The location where the business will be conducted, along with a copy of the certificate of occupancy for the location;

(8) The days and hours that the business will operate;

(9) Whether any person listed in subsection (a)(1) of this section has been denied a license required under this article or any preceding city ordinance governing the businesses described in this article or has had such license revoked;

(10) Evidence that the applicant and each owner, manager, or operator is at least 18 years of age by presentation of a valid government-issued identification document that contains the individual's photograph;

(11) The signature of the applicant. If the applicant is a partnership, the application shall be signed by each general partner. If the applicant is a corporation, the application shall be signed by the president and attested by the secretary; and

(12) Any other information that the director may reasonably require.

(b) The director shall review and approve the application and issue a license if he determines that all the requirements of this article and any applicable rules and regulations have been met.

(c) The director shall deny an applicant a license if he determines that:

(1) The information provided in the application is incomplete, false or incorrect;

(2) The requirements of this article and any applicable rules and regulations have not been met; or

(3) Any person listed in subsection (a)(1) of this section has been denied a license required by this article or has had such license revoked within the preceding 12 months from the filing of the application.

(d) In the event that the director denies an applicant a license, he shall give written notice by personal delivery or certified mail, return receipt requested, to the applicant at the address stated in the application. The written notice shall specifically set forth the reasons for the denial and shall notify the applicant of the opportunity to request a hearing regarding the denial. A denial hearing shall follow the procedures set forth in subsection 7-55(e) of this Code.

(e) Each license, unless revoked as provided in this article, shall expire one year from the date of issuance. Any licensee whose license is expiring and who desires a new license shall make application for a new license in the manner provided in this section not more than 30 days prior to the expiration of the license. All the requirements of this section must be met before a new license may be issued.

(f) A license issued pursuant to this article is personal to the licensee and is valid only for the location stated in the application.

(g) A license issued under this article is a grant of privilege and is not a property right.

(h) While an application for a license is pending, or a license is in effect, an applicant or licensee shall immediately supplement the information provided to the director in the license application if such information is or becomes inaccurate, incomplete or misleading.

(i) A license issued under this article is not transferable or assignable to another person.

(j) No application for a new license shall be considered by the director while a hearing to revoke or deny a license relating to the same applicant or licensee is pending or in progress.
(Ord. No. 2016-964, § 6(Exh. B), 12-7-2016)

Sec. 7-124. License fees; use of license at shows.

(a) The annual license fee for a secondhand reseller with any permanent place of business within the city is stated for this provision in the city fee schedule.

(b) Each secondhand reseller with a permanent place of business in the city may use the license for that business when attending shows at other locations in the city.

(c) Any secondhand reseller who desires to sell items at shows in the city, but who does not maintain a permanent place of business in the city, must apply for and secure a license for each location at a show. The daily fee for such licenses is stated for this provision in the city fee schedule and shall be paid at the time the applicant submits an application for such license

(d) No portion of any fee identified in this section shall be refundable.
(Ord. No. 2016-964, § 6(Exh. B), 12-7-2016)

Sec. 7-125. Records required to be kept by secondhand resellers.

(a) A secondhand reseller shall be required to keep records of any used property purchased or otherwise received as follows:

(1) The date of receipt of any item; and

(2) The individual transaction number assigned by the secondhand reseller.

(b) A secondhand reseller, his agents or employees shall provide a consecutively numbered receipt to the seller or transferor of the item. Such receipt shall be dated on the actual date of the transaction.

(c) A secondhand reseller shall only purchase, acquire or sell catalytic converters if allowed under section 1956.123 of the Texas Occupations Code. A secondhand reseller shall be required to keep records of any catalytic converter purchased or otherwise received as detailed in section 1956.124 of the Texas Occupations Code.
(Ord. No. 2016-964, § 6(Exh. B), 12-7-2016; Ord. No. 2022-341, § 4, 5-4-2022; Ord. No. 2024-218, § 3, 4-10-2024)

Sec. 7-126. Stock and records to be open for examination.

The stock or inventory and all records of any secondhand reseller shall be accessible for examination by any peace officer or inspector authorized by the director at any time during ordinary business hours.
(Ord. No. 2016-964, § 6(Exh. B), 12-7-2016)

Sec. 7-127. Purchasing or receiving goods from minors.

No secondhand reseller shall purchase or otherwise receive in the course of business, any item, ownership of which is claimed by any minor, or which is in the possession of or under the control of a minor, unless the minor is accompanied by his parent or guardian and the transaction is taking place with such parent's or guardian's full knowledge and consent.
(Ord. No. 2016-964, § 6(Exh. B), 12-7-2016)

Sec. 7-128. Change in business name or address.

Should any secondhand reseller change the name of his business from the name designated on the license or move his place of business from the place designated on the license to a new location, the license shall be null and void and the secondhand reseller shall immediately make application to the director for a new license and pay the full license fee. If the requirements for issuance of a license are met, the director shall issue a new license reflecting the new business name or location. The licensee must surrender the original license to the director at the time the new license is issued to the licensee.
(Ord. No. 2016-964, § 6(Exh. B), 12-7-2016)

Sec. 7-129. Acceptance of property suspected stolen; peace officer requested holds; violation.

(a) It shall be the duty of every secondhand reseller, his agents or employees to report immediately to the police department, by filing a formal complaint, any offer to sell to the secondhand reseller, his agents or employees any property that the secondhand reseller, his agents or employees have actual knowledge is stolen or

by reasonable belief should know is stolen, together with the identity, when known, and description of the person or persons making such offer.

(b) A secondhand reseller, his agents, or employees, shall also report to the police department, by filing a formal complaint, any property acquired by the secondhand reseller that the secondhand reseller, his agents or employees, subsequently determine or reasonably suspect to be stolen property, and secondhand reseller, his agents or employees, shall furnish such other information as might be helpful to the police department in investigating the matter.

(c) It shall be the duty of every secondhand reseller, his agents or employees to hold all suspected stolen property in a secure place on its business premise for 60 days upon request by a peace officer. The secondhand reseller, his agents or employees, may not process or remove the property from the secure place on its business premise before the 60th day after receipt of the request from a peace officer to hold the property unless:

(1) The item is released into a peace officer's care, custody and control at an earlier time;

(2) A peace officer releases the hold on the property upon an earlier date; or

(3) A court orders release of the property.

(d) Upon receipt of a written request from a peace officer, a secondhand reseller may be requested to hold all suspected stolen property in a secure place on its business premise for more than 60 days. A peace officer may request to extend the holding period for up to 24 months from the date the request is received. During this extended holding period, the secondhand reseller may not process or remove the property from the secure place on its business premise.
(Ord. No. 2016-964, § 6(Exh. B), 12-7-2016)

Sec. 7-130. Acceptance of property in original packaging.

With the exception of manufacturer or vendor samples and floor models, it shall be unlawful for any secondhand reseller, his agents or employees to purchase or receive any property in its original packaging or with the original retail tag still attached to the property unless the person offering such item presents a receipt or proof of purchase for the property.
(Ord. No. 2016-964, § 6(Exh. B), 12-7-2016)

Sec. 7-131. Revocation; hearing.

(a) *Grounds for revocation.* The director may revoke a license issued under this article if the director determines that:

(1) The licensee or the licensee's place of business has not been in compliance with the requirements of any provision of this article or any applicable rules or regulations since the license was issued; or

(2) The licensee obtained a license by means of fraud, misrepresentation, or concealment of a fact or that the licensee falsified his original application for a license.

(b) *Hearing.* A license may be revoked in the manner provided in section 7-7 of this Code.
(Ord. No. 2016-964, § 6(Exh. B), 12-7-2016)

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Chapter 8

AUTOMOTIVE DEALERS AND AUTO WRECKERS*

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ARTICLE I. IN GENERAL

Sec. 8-1. Reserved.

Editor's note—Former § 8-1, which declared that state law concerning licensing and regulation of motor vehicle storage facilities was inapplicable within the city limits, was repealed by § 1 of Ord. No. 86-1252, enacted July 16, 1986. The repealed provisions derived from Ord. No. 85-2098, § 1, enacted Dec. 3, 1985.

Secs. 8-2—8-15. Reserved.

ARTICLE II. AUTOMOTIVE DEALERS

DIVISION 1. GENERALLY

Sec. 8-16. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Automotive jobber and supply firm. Any person who buys in the open market or who holds a contract with a manufacturer of motor parts, motor vehicle units, accessories or supplies, for the purpose of engaging in, conducting or carrying on, primarily or incidentally, wholly or part time, the public business of buying, selling, offering for sale, consigning to be sold, servicing, trading or otherwise publicly dealing in new parts, units or supplies for motor vehicle maintenance or accessories for motor vehicles and who engages in, conducts or carries on such public business. Such term shall not apply to the exchange of automotive parts where no factory consecutive serial number is used and the part is shown as an exchange item in a standard parts catalogue.

Automotive parts rebuilder. Any person who engages in, conducts, or carries on the public business of buying, selling, offering for sale, consigning to be sold, trading or otherwise dealing with the public or operating as a public dealer in rebuilt parts and accessories, to include the following: Motors for motor vehicles, transmissions, differentials, generators, starters, carburetors, fuel pumps, shock absorbers, voltage regulators and distributors.

Automotive rebuilder. Any person who, primarily or incidentally, wholly or part time, engages in, conducts, or carries on the public business of buying, selling, offering for sale, consigning to be sold, trading or otherwise dealing with the public in or operating as a public dealer in used, secondhand or salvage titled motor vehicles or trailers for the purpose of rebuilding or dismantling wrecked or salvage titled motor vehicles or trailers.

*__Cross references—__Antique dealers, common markets, junk dealers, scrap metal processors, pawnbrokers and related businesses, Ch. 7; tire storage and tire carriers, § 21-181 et seq.

Automotive repair facility. Any person who engages in, conducts or carries on the public business of repairing motor vehicles or motor vehicle trailers, or both. This term includes a mobile automotive repair business.

Body shop facility with storage privileges. Any person who operates an automotive repair facility that is primarily a body shop and has qualified under division 4 of this article to provide storage of customer vehicles for not more than 30 days in exchange for a fee pending the repair or other disposition of the vehicles.

Consent storage lot operator. Any person who engages in, conducts or carries on the public business of storing motor vehicles, including wrecked, damaged, or repossessed motor vehicles; provided however that this term shall not include those who store new or used motor vehicles pending the retail sales thereof nor those who own or operate lots or garages for the hourly or daily parking of motor vehicles. The term also shall not include any facility that is required to be licensed pursuant to the Vehicle Storage Facility Act (Chapter 2303 of the Texas Occupations Code) unless the facility, in addition to keeping vehicles parked or stored without the owners' consent as authorized by a license granted thereunder, keeps vehicles parked or stored with the owners' consent.

Dealer in motor vehicles. Any person who publicly engages in, conducts, or carries on the business of buying, selling, offering for sale to the public, consigning to be sold to the public, trading or otherwise dealing in motor vehicles or motor vehicle trailers, or both; provided, however, that this term does not include a person who repairs or stores disabled, wrecked, or salvage titled motor vehicles.

Demonstrator. Any motor vehicle which has been used by any new motor vehicle dealer in effectuating the sales and which has been driven more than 150 miles.

Itinerant dealer. Any person who engages in the temporary or transient public business in the city of selling or offering for sale new or used motor vehicles, trailers, motor vehicle parts, supplies for motor vehicle maintenance, accessories for motor vehicles, or any or all of the same, or publicly exhibiting any or all of the same for public sale, and who, for the purpose of carrying on such public business or conducting such public exhibits, either hires, rents, leases, or occupies any room or space in any building, structure or enclosure in the city, in, through or from which such articles are or may be sold, offered for sale, or exhibited for sale. The word "temporary" used above means any such business transacted or conducted in the city for which definite arrangements have not been made for the hire, rental or lease of premises for at least three months, or upon which such public business is to be operated or conducted. The word "established" as used herein means and shall be construed to mean any such business transacted or conducted in the city for which definite arrangements have been made for the hire, rental or lease of premises for at least three months. The word "transient" as used above means and shall be construed to mean such business as may be operated or conducted by a person who does not have a fixed place of business (other than a temporary place as herein defined) in the city or who has his principal place of business in a place other than the city, and moves stocks of goods or articles into the city for public sale with the purpose or intention of removing the unsold portion thereof away from the city and ceasing to engage in business in the city before the expiration of three months from the commencement of such business. It is specifically provided that the term "itinerant dealer" shall also include any person engaged in the businesses hereinabove mentioned, who associates himself temporarily with any local licensee hereunder, by conducting such temporary or transient business in connection with or as a part of the business of any local licensee. No person will be granted a license as an itinerant dealer unless he sets up and maintains a regular place of business at a fixed address in the city open to the inspection of the police and the public.

Mobile automotive repair business. Any person who provides the services of an automo-

tive repair facility, a retail supply dealer, or a used parts and used accessories dealer at a location determined by a vehicle owner solely from one or more mobile repair units and does not have a facility or regularly established location or place of business that is or may be used for the provision of such repair services.

Mobile repair unit. A motor vehicle used by a mobile automotive repair business to conduct repair services.

Police chief means the chief of police of the city or his designee.

Retail supply dealer. Any person who publicly engages in, conducts or carries on the public business of buying, selling, offering for sale, trading or otherwise dealing in new parts, motor vehicle units, supplies for motor vehicle maintenance or new accessories for motor vehicles to consumers; but does not rebuild, dismantle, wreck or disassemble motor vehicles or trailers as part of such business. The term does not include convenience stores as defined in section 28-401 of this Code.

Salesman. Any person who sells, offers for sale, leases or offers for lease any new or used motor vehicle, new or used motor vehicle trailer, used motor vehicle parts or used accessories for motor vehicles.

Salvage titled motor vehicle means a motor vehicle that has been issued a salvage vehicle title by the Texas Department of Motor Vehicles pursuant to Texas Transportation Code, Chapter 501.

Used automotive parts recycler means any person who engages in the public business of keeping or storing discarded, abandoned, junked, wrecked, worn out, salvage titled or otherwise disabled or nonrepairable motor vehicles, including but not limited to cars, trucks, tractor trailers and buses, for the purpose of disassembling, dismantling, cutting up, stripping or otherwise wrecking those motor vehicles to extract therefrom parts, components, or accessories for sale, export or use in an automotive repair or rebuilding business.

Used parts and used accessories dealer. Any person who, primarily or incidentally, wholly or part time, engages in, conducts, or carries on the public business of buying, selling, offering for sale, consigning to be sold, trading or otherwise dealing with the public in or operating as a public dealer in used or secondhand motor vehicle parts or accessories for motor vehicles, either or both; but does not rebuild, dismantle, wreck or disassemble motor vehicles or trailers as part of such business. This term shall not include a business that is licensed as a pawnshop pursuant to Chapter 371 of the Texas Finance Code.

Used parts and used accessories seller. Any person whose name is reported to the police department on more than three occasions as required by section 8-25(b) of this Code over a 12-month period.

Wholesale automotive jobber and supply firm. Any person who holds a contract with a manufacturer of motor parts, motor vehicle units, accessories or supplies for the purpose of and is primarily or incidentally, wholly or part time, engaged in, conducting or carrying on the public business of buying, selling or offering for sale or otherwise publicly dealing in new or used parts, motor vehicle units, supplies for motor vehicle maintenance or accessories for motor vehicles at wholesale or quantity prices or at a price or prices lower than the established published retail price or prices, and makes sales to garage service stations or dealers for expected resale to the consumer. The term shall not apply to the exchange of automotive parts where no factory consecutive serial number is used and the part is shown as an exchange item in a standard parts catalogue.

(Code 1968, § 8-11; Ord. No. 67-2161, § 1, 11-8-67; Ord. No. 71-1242, § 1, 7-13-71; Ord. No. 86-1252, § 2, 7-16-86; Ord. No. 87-1195, §§ 1, 2, 7-8-87; Ord. No. 93-1574, §§ 1—3, 12-8-93; Ord. No. 99-1354, § 1, 12-21-99; Ord. No. 08-249, § 1, 3-26-08; Ord. No. 08-1054, § 3, 12-3-08; Ord. No. 2013-1159, § 2, 12-11-2013; Ord. No. 2013-1209, §§ 2, 3, 12-18-2013; Ord. No. 2014-482, § 2, 5-28-2014; Ord. No. 2022-151, § 2, 2-23-2022)

Sec. 8-17. Automotive board.

(a) There is hereby created an automotive board consisting of 11 members appointed by the mayor and confirmed by the city council. The mayor shall designate the member to be chairman. Each of the eleven positions shall be numbered and filled as follows:

(1) Position number one shall be filled by a new car dealer.

(2) Position number two shall be filled by a used car dealer.

(3) Position number three shall be filled by a wholesale parts and accessories dealer.

(4) Position number four shall be filled by a new and used automobile retail parts dealer.

(5) Position number five shall be filled by a person who owns and operates a towing company.

(6) Position number six shall be filled by a person who owns and operates a vehicle storage lot.

(7) Position number seven shall be filled by a person who is not related within the first or second degree by consanguinity or affinity to any person who holds any interest in or is employed by any automotive business of a type that is subject to regulation under this chapter and is situated in the county.

(8) Position number eight shall be filled by a person who owns and operates an automotive repair facility.

(9) Position number nine shall be filled by a person who owns and operates an automobile wrecking and salvage yard.

(10) Position number ten shall be filled by a member of the legal department of the city designated by the city attorney, who shall be an ex officio, non-voting member only.

(11) Position number 11 shall be the chief of police or his duly authorized representative assigned to the automobile dealers detail, who shall serve as secretary of the automotive board and shall be an ex officio, non-voting member only.

(b) Appointments to positions created hereunder shall be made on or before January 2nd of each year and shall take effect on that date. Each member of the board shall serve for a term of four years and until his successor has been appointed and qualified. Any appointed member of the board shall be subject to discharge and removal from his position on the board at any time by the mayor.

(c) Each member of the automotive board shall receive $25.00 per diem for his services while attending meetings of the automotive board, and each member of the board who is employed by the city shall receive the same compensation as other members of the board for attending those meetings not held during, or which continue beyond, his regular working hours. To the extent permitted by law, per diem payments to the board members shall be made out of the auto dealers' fund.

(d) Five members of the automotive board (excluding ex officio members) present at any meeting shall constitute a quorum for the transaction of all business of the board, and a majority

vote of those members of the board present at any meeting shall prevail. The board shall hold not less than one nor more than three regular meetings each calendar month, provided that additional meetings may be conducted if required in order to meet deadlines imposed by law or by any contract to which the city is a party.
(Code 1968, § 8-12; Ord. No. 67-2161, § 3, 11-8-67; Ord. No. 94-922, §§ 1, 2, 9-7-94; Ord. No. 99-1379, § 1, 12-21-99; Ord. No. 2013-1209, § 4, 12-18-2013; Ord. No. 2017-500, § 2, 7-5-2017)

Cross reference—Boards, commissions, authorities, etc., generally, § 2-316 et seq.

Sec. 8-18. Posting of list of salesmen.

Each dealer or other person licensed under division 2 of this article who employs salesmen to assist him in the sale of motor vehicles or motor vehicle trailers or motor vehicle parts or accessories shall keep posted in the showroom of his business or in some other conspicuous place upon the business premises a list of the names of salesmen and the numbers of their licenses issued under this article, which list shall be open to the inspection of the chief of police or his duly authorized representative.
(Code 1968, § 8-13)

Sec. 8-19. Reports of salesmen's names and license numbers to police chief.

Each dealer or other person licensed under division 2 of this article shall report the names of all salesmen employed by him and their license numbers to the chief of police by the tenth day of each month.
(Code 1968, § 8-14)

Sec. 8-20. Information stickers on vehicles.

New or used motor vehicles which are or have been driven or towed from a point outside of the city shall be marked by affixing to the windshield thereof, in plain view, a sticker, of not less than three inches in diameter, showing the point outside of the city from which the motor vehicle was driven or towed, together with the approximate distance which such motor vehicle has been driven or towed, and the point at which purchased. The word "demonstrator" shall appear on such sticker as to all of such motor vehicles which have been used as demonstrators.
(Code 1968, § 8-15)

Sec. 8-21. Sale of unregistered vehicles.

(a) It shall be unlawful for any new or used motor vehicle which has not been registered by obtaining a motor vehicle license in the state, for use upon the highways of this state for the last registration date prior to sale or offer for sale, to be sold or offered for sale in the city unless the person so selling or offering the same for sale shall, prior thereto, file with the chief of police or his authorized representative, the following instruments:

(1) A true copy of the certificate of title to the person who last operated the new or used motor vehicle.

(2) A true copy of the license papers last issued on or for operation of such vehicle.

(b) The chief of police or his authorized representative shall inspect such instruments so filed with him and shall inspect such new or used motor vehicle. If satisfied that the instruments are regular and in order and that such new or used motor vehicle has not been stolen or fraudulently obtained from any prior owner, the chief of police or his authorized representative shall issue a permit granting the right of sale hereunder to the person filing such instruments. Upon refusal to so grant the permit, the applicant shall have the right to perfect an appeal to city council within five days from the denial or refusal by the chief of police.
(Code 1968, § 8-16)

Sec. 8-22. Purchase or sale of vehicles, parts, etc., when identification marks are removed, changed, etc.

It shall be unlawful for any person to purchase, sell or exchange in the city any motor vehicle, motor vehicle trailer, motor vehicle accessories and tires or motor vehicle parts from or on which any of the original manufacturer's identification numbers, or other original marks of identification, shall have been removed, obliterated, defaced, or changed, unless there shall be filed with the

chief of police or his duly authorized representative, prior to and within five days of the date of such sale, purchase or exchange, a full description of the property involved and the reason for or explanation of the removal, obliteration, defacement or changing of identification numbers or marks, such description to be in writing and duly sworn to before a notary public.
(Code 1968, § 8-18)

Sec. 8-23. Secondhand parts, accessories, etc., to be retained forty-eight hours.

It shall be unlawful for any dealer or other person licensed under this article to offer for sale, trade, transfer or exchange or to sell, trade, transfer or exchange any used or secondhand motor vehicle part, parts, accessories, supplies, attachment, tires or equipment acquired by him until 48 hours after the time and date he in fact acquired the secondhand or used motor vehicle part, parts, accessories, attachments, equipment or supplies.
(Code 1968, § 8-19)

Sec. 8-24. Statement to be furnished purchaser of vehicle or trailer.

Prior to or at the time of the delivery of a motor vehicle or motor vehicle trailer, the dealer shall deliver to the purchaser a written statement describing clearly the motor vehicle or motor vehicle trailer sold to the purchaser, the cash sale price thereof, the cash paid down by the purchaser, the amount credited the purchaser for any trade-in, and a description of the motor vehicle or motor vehicle trailer traded, the net balance due from the purchaser, the terms of the payment of such net balance and a summary of any insurance protection to be effected.
(Code 1968, § 8-21)

Sec. 8-25. Reports to police chief.

(a) Every licensee under this article who shall transport or otherwise bring into the city any out-of-state motor vehicle, new or used, or motor vehicle trailer, new or used, shall file with the chief of police a report in writing in the form prescribed by the chief of police, and an instrument in writing in the form provided for by the state highway department, and a copy of the bill of sale or certificate of title on all such vehicles or trailers within 48 hours after any such motor vehicle or motor vehicle trailer has been brought into the city.

(b) Every dealer or other person licensed under this article and his servants, agents and employees, shall execute and deliver, or cause to be executed and delivered, a report in writing to the chief of police or his duly authorized representative of every transaction in which the dealer or licensee shall have acquired possession of any secondhand or used automobile part, accessory, article, supplies, equipment or attachment, except tires, and deliver or cause to be delivered the report to the chief of police or his authorized representative at the headquarters of the police department not later than 11:00 a.m. on the day following the date upon which the dealer or licensee acquired possession of the thing or article, except that in the event the dealer or licensee shall so acquire possession of the thing or article on a Friday or Saturday, the dealer or licensee shall then deliver or cause the report to be delivered as aforesaid not later than 11:00 a.m. on the following Monday. Such written report shall include the following:

(1) Name under which the dealer's or licensee's business is operated.

(2) Name of the owner and operator of the business.

(3) Location of the business.

(4) Description of the article acquired by the dealer or licensee.

(5) How acquired, whether by purchase, exchange, trade or loan, or in some other stated manner.

(6) Name of the seller, depositor or person delivering the article to the dealer or licensee.

(7) Whether delivery was made to the licensee, dealer or to his servant, agent or employee.

(8) In the event delivery was made to a servant, agent or employee, the name and address of such servant, employee or agent.

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(9) The address, nationality, sex, color and approximate height, age and weight of the person from whom the article was acquired.

(10) How delivery was made to the dealer or licensee, and in cases where a motor vehicle was used in the delivery, then the make, the license number exhibited on the vehicle, and the name of the state issuing the license number plate must be given.

(11) The date and time of day the licensee or dealer acquired the article.

(12) Signature of the licensee or dealer and the signature of his agent, servant or employee in cases wherein the article was acquired by such agent, servant or employee.

(13) Signature of the person delivering possession of such article to the licensee or dealer.

The chief of police or his duly authorized representative shall prescribe the form of the aforesaid written report, and, in the event he should fail so to do, then a written report complying with the above requirements shall be sufficient.
(Code 1968, § 8-22)

Sec. 8-26. Other required records.

(a) Every person who, as dealer, makes any sale, purchase, transfer or exchange of a new or used motor vehicle, or a new or used motor vehicle trailer in the city shall keep a permanent record of any and all transfers and assignments made by such person, or chattel mortgages, liens or notes covered or secured by a lien upon such motor vehicles or motor vehicle trailers. The record shall include the following information:

(1) The name and address of each transferee; and

(2) A description of the mortgage, lien or note transferred and of the property affected thereby, including the motor number, model and license number of the motor vehicle or trailer therein involved.

(b) Every licensee under this article who repossesses any motor vehicle or trailer or forecloses any lien or mortgage upon any motor vehicle shall keep a record of each repossession or foreclosure. The record shall include the following information:

(1) The name of the mortgagor or lienholder;

(2) The total amount of indebtedness, including principal, interest and other items, if any, stated separately;

(3) The date and manner of foreclosure, whether by suit or private sale; and

(4) The description of the property repossessed or foreclosed upon, including the motor number, model and license number of the motor vehicle or trailer involved, and the name and address of the purchaser.

(c) Each person to whom a license is issued under this article to deal in secondhand or used motor vehicle parts or accessories shall keep at all times in the licensee's place of business a record of secondhand and used motor vehicle accessories and parts except tires, purchased by the licensee or deposited for any purpose with such licensee, and of each motor vehicle or motor vehicle trailer purchased or received by such person for the purpose of rebuilding or dismantling the same.

With respect to accessories and parts, the record shall include any item that constitutes a "major component part" as defined in section 501.091 of the Texas Transportation Code, or a "component part," "interior component part," "minor component part," and "special accessory part" as those terms are defined in section 2302.251 of the Texas Occupations Code. Additionally, the record shall include any other part or parts that are regularly the subject of trade by automotive parts thieves as determined by regulation promulgated by the automotive board and supported by clear and convincing evidence that there is recurring theft of the same type of part, provided that any such automotive board regulation that adds additional parts shall expire on the second anniversary of its adoption unless extended by the automotive board, and is again supported by clear

and convincing evidence that there is reoccurring theft of the same type of part. Such record shall include the following information:

(1) The vehicle identification number and license number of all motor vehicles or trailers transferred to the licensee;

(2) An accurate description in the English language of the secondhand or used motor vehicle parts or accessories purchased or deposited, the vehicle identification number of the motor vehicle from which the parts or accessories were removed, the amount of money paid for same or loaned thereon, and the time of purchase, transfer, or deposit thereof;

(3) The name, age, sex, signature, residence, race, and approximate height and weight of the person (transferor or seller) from whom the licensee acquired the property;

(4) A thumbprint and photograph of the face of the transferor or seller together with the secondhand or used motor vehicle parts or accessories purchased, provided that if a licensee acquires an entire motor vehicle or trailer from the owner of the vehicle or trailer, then in lieu of the photograph and thumbprint, the buyer may obtain and maintain a copy of the seller's vehicle title and the vehicle identification number of the motor vehicle or trailer; and

(5) A unique identification number which corresponds to a transaction and has been attached to the motor vehicle or trailer and to the secondhand or used motor vehicle parts or accessories purchased by the licensee.

(d) It is an affirmative defense to prosecution under this section that both the transferor and the transferee are city and state licensed dealers in used parts and used accessories and that the transfer was documented in full compliance with Chapter 2302 of the Texas Occupations Code with the name of the business from which the motor vehicle or motor vehicle part was purchased and the Texas Certificate of Inventory number or federal taxpayer identification number. The record must include the part description and a unique inventory number or motor vehicle identification number from which the part came. It is also an affirmative defense to prosecution under this section that the transferee is a city licensed dealer in used parts and used accessories and that the transferor is a person who conducts a similar business in another jurisdiction who caused the parts or accessories to be delivered to the transferee by commercial freight line or common carrier and the transferee documented the inventory number kept by the transferor for the part under Texas State Law, if the transferor resides in Texas, or obtained the transferor's federal taxpayer identification number if the transferor resides outside the State of Texas. The provisions of this section are in addition to any applicable state law, including but not limited to Chapter 2302 of the Texas Occupations Code. Records forms promulgated hereunder shall be designed to include applicable state requirements to avoid duplication of records. Any violation of this section that also constitutes a violation of state law shall be punishable as provided by the applicable state law.

(e) A person who sells a motor vehicle, a motor vehicle trailer, or a secondhand or used motor vehicle accessory or part to a licensee under this section must have a valid government-issued identification from which the licensee shall record the required information.

(f) All records required to be maintained under this section shall be kept at the licensee's place of business in written form or in an electronic recordkeeping system.
(Code 1968, § 8-23; Ord. No. 82-2038, § 1, 12-22-82; Ord. No. 93-1574, § 4, 12-8-93; Ord. No. 00-947, § 1, 11-1-00; Ord. No. 2013-1209, § 5, 12-18-2013)

Sec. 8-27. Retention and inspection of records.

All records provided for in this division shall be retained permanently and shall at all times be available and open for inspection by the chief of police or his authorized agent or representative or by any sheriff, constable or federal officer, or their duly authorized agents.
(Code 1968, § 8-24)

Sec. 8-28. Police records under article confidential.

All records filed with or kept by the police department under and by virtue of this article shall be kept confidential by the department and shall not be made available to the public.
(Code 1968, § 8-25)

Sec. 8-29. Enforcement of article and related laws.

The provisions of this article, as well as all other ordinances, procedural rules and regulations established by the automotive board, and statutes regulating the sale, barter, or exchange of new or used motor vehicles or motor vehicle trailers, or both, or of motor vehicle parts or accessories, shall be enforced by the police department and the automotive board.
(Code 1968, § 8-26)

Sec. 8-30. Used automotive parts recyclers, automotive rebuilders and automotive repair facilities.

(a) *Definitions:*

Automotive business dealing in used parts and used accessories as used herein shall mean any lot or tract of land used for the purpose of carrying on the trade of a 'used parts and used accessories dealer,' as defined in this chapter.

Automotive rebuilder lot means any lot or tract of land used for the purpose of carrying on the trade of an 'automobile rebuilder,' as defined in this chapter.

Automotive repair facility as used herein shall mean any lot or tract of land used for the purpose of carrying on the trade of an 'automotive repair facility,' as defined in this chapter.

Solid as used herein in reference to a fence shall mean a fence constructed and maintained so that the outer surface thereof is continuous and without interstices, gaps, spaces or holes. This shall not be construed to prohibit any spaces or gaps left by a properly constructed and maintained chain link fence with strips or slats as hereinafter provided.

Stored as used herein shall mean placed on or left on property.

Used automotive parts recycler lot means any lot or tract of land used for the purpose of carrying on the business or trade of a 'used automotive parts recycler,' as defined in this chapter.

(b) *Compliance.* All lots and tracts of land used to carry on the business or trade of a used automotive parts recycler, an automotive rebuilder, an automotive repair facility, or an automotive business dealing in used parts and used accessories shall comply with the requirements of this section.

(c) *Removal of flammable liquids from vehicles.* All gasoline, gasohol, and diesel fuel shall be completely drained and removed from any junked, wrecked or abandoned automotive vehicle before the vehicle is placed in any used automotive parts recycler lot or lot operated by an automotive rebuilder or automotive repair facility in the city. All flammable liquids drained from any vehicle in the lot shall be stored in a safe manner and in strict accordance with the Fire Code of the city.

(d) *Fencing wall requirements.* Each area utilized to keep or store used automotive parts or used accessories by an automotive business dealing in used parts and used accessories or each area that is utilized for the keeping, storing, dismantling, cutting up, stripping or otherwise wrecking of any discarded, abandoned, junked, wrecked or otherwise disabled automotive vehicles upon any used automotive parts recycler lot, automotive rebuilder lot or any automotive repair facility within the city shall be completely surrounded and enclosed by a solid fence or wall as follows:

(1) Any side of the lot which extends generally parallel to, and within 100 feet of any public street right-of-way shall be bounded by a solid fence or wall at least eight feet in height.

(2) All sides of the lot not included in (d)(1) above shall be bounded by a solid fence or wall at least six feet in height.

(e) *Construction, maintenance of fence or wall.* Every fence or wall herein required shall be constructed and maintained as follows:

(1) All fences shall be constructed of wood, masonry, corrugated sheet metal, chain link, or any combination thereof; provided, however, that any one side of a used automotive parts recycler's lot, automotive rebuilder's lot or automotive repair facility shall be bounded by a fence or wall constructed of only one of the above materials.

(2) Chain link fences shall be constructed of galvanized chain link fencing with wood or metal slats or strips run through all links of the chain link fence.

(3) All fences or walls shall extend downward to within three inches of the ground and shall test plumb and square at all times.

(4) All fences or walls shall be constructed in compliance with all applicable provisions of the Construction Code.

(f) *Use of wall, door or building as part of fence or wall.* Any part of a fence or wall required by subsection (d) of this section may consist in whole or in part of a solid wall and door, or walls and doors of any completely enclosed building on the premises, if the wall or door meets all construction requirements set forth herein.

(g) *Gates at openings in enclosure.* Openings in the prescribed enclosure that are necessary to permit reasonable access to used automotive parts recyclers, automotive rebuilders, automotive repair facilities or automotive businesses dealing in used parts and used accessories shall be equipped with a solid gate or gates, constructed and maintained in accordance with the requirements of this section for a fence or wall. Gates shall be closed and securely locked at all times, except during normal business hours.

(h) *Use of premises outside enclosure.* It shall be unlawful for any owner, operator, his agents or employees, to display, store or work on any junked or wrecked automotive vehicle, or the parts, accessories or junk therefrom outside of or above the herein required fence or wall. It is a defense to prosecution under this subsection that the actor has established and is using one unfenced rectangular area not exceeding ten feet by 100 feet in maximum dimensions upon the premises to display dismantled component parts or accessories for sale, which parts and accessories are stored and arranged in compliance with all other applicable provisions of this section. The display area authorized in the foregoing affirmative defense may also be utilized for the display for sale of whole motor vehicles, whether wrecked or damaged or not, provided that the operator of the premises also holds an automotive dealer's license for vehicle sales at the premises. Nothing in this subsection shall be construed to authorize the use of any public street or other public property for the sale or display of any merchandise in contravention of section 40-8 of this Code.

(i) *Arrangements of vehicles, parts and materials.*

(1) All automotive vehicles, parts and other materials located in or on the premises of any used automotive parts recycler, automotive rebuilder, automotive repair facility or automotive business dealing in used parts and used accessories in the city shall be arranged so as to allow reasonable access to, and inspection of, the premises by authorized fire, and police officials, the health officer, and the neighborhood protection official.

(2) All automotive vehicles, parts and materials stored in any used automotive parts recycler's lot, automotive rebuilder's lot, automotive repair facility, or automotive business dealing in used parts and used accessories must be stored at least six inches above the surface of the lot. A motor vehicle stored in its normal upright position shall be deemed to be stored in compliance with the foregoing requirement if all portions of the body floor plan of the vehicle are situated at least six inches above the lot surface, regardless of the height of wheels, tires, brake components, axles and suspension components that are attached in their normal manner to the vehicle and regardless of the height of wheels, tires or other devices used to elevate the vehicle.

It is an affirmative defense to prosecution under this item (2) that the vehicle's parts and materials were in process of disassembly and were situated within a 'disassembly area' designated on a used automotive parts recycler lot or automotive rebuilder lot pursuant to item (3), below, at the time of the alleged offense.

(3) Each duly licensed used automotive parts recycler or automotive rebuilder may file with the automotive board a plat or legal survey of its lot accurately setting forth under oath the dimensions and size of the lot exclusive of all covered improvements and out buildings utilized as part thereof and in connection therewith. The plat or legal survey shall also accurately depict all adjoining public thoroughfares. Each business filing a plat or legal survey may designate upon the plat or legal survey an accurately delineated open area not to exceed 20 percent of the unimproved area within the lot, or 21,780 square feet within the lot, whichever designation is smaller, as a "disassembly area." Upon approval of the plat or legal survey and designated 'disassembly area' by the automotive board, the duly licensed lot operator may use the area for the active disassembly of wrecked vehicles in the usual course of lot business. A true copy of the approved plat or legal survey and designated 'disassembly area' shall be displayed at all times upon the premises of business for review by any peace officer of the State of Texas or the neighborhood protection official of the city.

(j) *Control of vegetation.* It shall be unlawful for the owner or operator of a used automotive parts recycler lot, automotive rebuilder lot, automotive repair facility or automotive business dealing in used parts and used accessories to allow grass or other vegetation to grow to a height of more than nine inches above the ground.

(k) *Watershed.* No used automotive parts recycler lot, automotive rebuilder lot, automotive repair facility or automotive business dealing in used parts and used accessories shall be located on top of a watershed.

(l) *Compliance with regulations and ordinances.* All used automotive parts recycler lots, automotive rebuilder lots, automotive repair facilities and automotive businesses dealing in used parts and used accessories must at all times be in full compliance with all city ordinances regarding health and safety, including specifically without limitation, all requirements of the Fire Code, and with state regulations regarding hazardous waste disposal including requirements promulgated by the Texas Commission on Environmental Quality.

(m) *Improved surface.* All portions of lots or tracts of land used in the operation of a used automotive parts recycler lot, automotive rebuilder lot, an automotive repair facility or an automotive business dealing in used parts and used accessories must have an all-weather surface of concrete, asphalt, blacktop, stone, macadam, limestone, iron ore, brick pavers, gravel or shale of such composition and drainage as to enable the safe and effective movement of motor vehicles upon all portions of the lot, both under their own power and under tow, at all times regardless of prevailing weather conditions.

(n) *Violations and penalties.* Failure by any person to comply with any provision of this section shall be grounds for the revocation of, or the refusal to issue or renew, any license required of the owner or operator of a used automotive parts recycler lot, an automotive rebuilder, automotive repair facility or an automotive business dealing in used parts and used accessories under this Code. It shall be unlawful for any person to fail to comply with any applicable provision of this section.

(o) *Vehicles stored less than 30 days for repairs.* For automotive repair facilities it is an affirmative defense to prosecution under subsections (c) and (d), above, that a wrecked or disabled vehicle stored thereupon is owned by a person other than the owner of the automotive repair facility, is being stored at the automotive repair facility for the purpose of its repair there and that the vehicle has been stored there for 30 days or less at the time of the alleged offense.

(Code 1968, § 8-27; Ord. No. 82-2038, § 2, 12-22-82; Ord. No. 85-2216, §§ 4, 5, 12-26-85; Ord. No. 87-1195, § 4, 7-8-87; Ord. No. 88-1370, §§ 1, 2,

8-10-88; Ord. No. 90-635, §§ 18-C, 18-D, 5-23-90; Ord. No. 93-514, §§ 17, 18, 5-5-93; Ord. No. 93-1574, § 5, 12-8-93; Ord. No. 94-674, §§ 7, 8, 7-6-94; Ord. No. 98-613, § 20, 8-5-98; Ord. No. 02-399, § 20, 5-15-02; Ord. No. 02-676, § 3, 7-17-02; Ord. No. 2013-1209, § 6, 12-18-2013; Ord. No. 2015-820, § 9, 8-26-2015)

Charter reference—Penalties for ordinance violations, Art. II, § 12.

Sec. 8-31. Penalty.

Unless otherwise provided, and regardless of whether the person holds a valid license issued pursuant to this chapter, any person who violates any provision of this article shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not less than $200.00 nor more than $500.00; provided, however, if the person is convicted of an offense under this article that is also a violation of the penal laws of the state, the person shall be subject to the penalties set out in the penal laws for the offense.

A used parts and accessories seller commits a separate offense for each sale of used parts and/or used accessories made without a valid salesman's license. The offense shall be punishable by a fine of not less than $200.00 nor more than $500.00 than for each transaction.
(Ord. No. 93-1574, § 6, 12-8-93; Ord. No. 2013-1209, § 6, 12-18-2013)

Secs. 8-32—8-50. Reserved.

DIVISION 2. DEALER'S LICENSE

Sec. 8-51. Required.

It shall be unlawful for any person, either for himself or as agent or representative of another, to engage primarily or incidentally, wholly or part time, in any business defined in section 8-16 of this Code within the city without first obtaining a license so to do in accordance with this division.
(Code 1968, § 8-32)

Sec. 8-52. Application generally.

(a) Every applicant for a license to engage in, conduct or carry on within the city limits any of the businesses described in section 8-16 of this Code shall make application therefor on an application form furnished by the chief of police and prescribed by the automotive board, which application shall be signed and sworn to as herein provided and shall include, among other things, the following information respecting the applicant:

(1) Trade name of each business that the applicant has engaged in during the five-year period next preceding the filing of such application.

(2) Address of the applicant's principal office or establishment in the city. If the applicant is a mobile automotive repair business it must provide a mailing address, a physical address if different from the mailing address, and the VIN and license plate number of each mobile repair unit used for the business.

(3) Number and location of branch establishments, if any, maintained and operated in the city.

(4) Whether the applicant is the owner or lessee of the real property occupied and, if the lessee, the name of the landlord.

(5) Type of service to be provided by the business.

(6) If application is for a dealer(s license, applicant must provide a state issued general distinguishing number, if required to have one.

(7) Whether the applicant has ever been convicted of a felony or of a crime involving moral turpitude, and if a partnership, the answer shall be as to all members of the partnership, and if a corporation, shall be as to all officers of the corporation.

(8) The name and mailing address of each owner or principal of the applicant and copies of the assumed-name registration if the business will be operated under an assumed name.

(9) If the applicant is a corporation, a certificate of good standing from the Texas Secretary of State for a Texas domestic corporation or a certificate of authority to do business in Texas if a foreign corporation, along with the names and addresses of all officers and the corporation(s registered agent in Texas.

(10) If the applicant is a partnership, the partnership registration, if any, and the names and addresses of all the general partners.

(11) Except for applicants for retail supply dealer licenses, each applicant shall submit himself to be fingerprinted at the police department or at the police department of any other city or town if such department will forward the fingerprints to the police department. The application shall be signed by and have fingerprints of: a) the owner if the applicant is a sole proprietorship or b) an authorized person if the applicant is a corporation or a general partnership.

(b) If the application is by a corporation, the same shall be signed and sworn to by a duly authorized officer thereof, if by a partnership, then by one of the general partners therein, and if by an individual, then by such individual personally.

(c) Such application, properly filled out and executed, shall be delivered by the applicant to the chief of police or his duly authorized representative.

(d) Any person submitting an initial application pursuant to this section or an application for an amended license for a different premises as provided for in this division shall also submit a copy of either a certificate of occupancy issued by the building official or a receipt demonstrating that the applicant has applied for a certificate of occupancy for the occupancy of each structure which is to be used for the applicant's business. No such initial license shall be issued unless the applicant has submitted a copy of such a certificate of occupancy or receipt for each structure, and each certificate or receipt shows that the structure to which it appertains may be occupied for the type of business for which the application is being made.

(e) Any licensee submitting an application for the renewal of a license shall submit a copy of a certificate of occupancy issued by the building official for the occupancy of each structure which is used for the licensee(s business. No such renewal license shall be issued unless the licensee has submitted a copy of such a certificate of occupancy for each structure, and each certificate shows that the structure to which it appertains may be occupied for the type of business for which the application is being made.

A copy of each certificate of occupancy or receipt submitted by an applicant or licensee pursuant to this subsection shall be deemed to be a part of the application for the license. Its submission shall also be deemed to be a representation of the applicant that the certificate is a true and correct copy of the instrument that was issued by the building official, and that is valid.

(f) The requirements of item (6) of subsection (a) and subsections (d) and (e) of this section shall not apply to an applicant or licensee that is a mobile automotive repair business.

(g) Any fraudulent information provided on the license application, including the omission of any criminal background data, shall be cause for denial of the license.
(Code 1968, § 8-33; Ord. No. 89-1738, § 1, 12-6-89; Ord. No. 90-1508, § 1, 12-19-90; Ord. No. 08-249, § 2, 3-26-08; Ord. No. 08-285, § 1, 4-9-08; Ord. No. 2013-157, § 8, 2-20-2013; Ord. No. 2016-456, §§ 2, 3, 6-15-2016)

Sec. 8-53. Applicant must have established place of business.

(a) Except as provided in subsection (b) of this section, no license shall be granted under this division to a person who does not have, or prove the bona fide intention to have forthwith upon the issuance of a license, a regular established place of business, at a definite and fixed address in the city used to offer for sale vehicles, parts or

accessories by such person and which is open to reasonable inspection by the chief of police or his authorized representative.

(b) Notwithstanding the provisions of subsection (a) of this section, a mobile automotive repair business is not required to have or prove the bona fide intention to have upon the issuance of a license, a regular established place of business. However, a mobile automotive repair business must permit a reasonable inspection of each mobile repair unit and documentation by chief of police or his authorized representative upon request. If the documentation of the mobile automobile repair unit is not available at the time an inspection is requested, the licensee must deliver the documentation to the requesting officer within 48 hours of the inspection request.
(Code 1968, § 8-34; Ord. No. 67-2161, § 1, 11-8-67; Ord. No. 71-1242, § 1, 7-13-71; Ord. No. 08-249, § 2, 3-26-08; Ord. No. 08-285, § 1, 4-9-08)

Sec. 8-54. Separate license for each address.

Every person who desires to maintain and operate more than one place of business or branch office or substitute place of business must designate in his original application each such place of business, branch office or substitute place of business, giving each address and pay a separate license fee and secure a license pursuant to the provisions of this division for each address.
(Code 1968, § 8-35)

Sec. 8-55. Separate license for each person engaged in business at same place.

(a) A separate license issued hereunder shall be required for each person who may engage in the business of dealing in new motor vehicles or used motor vehicles, or both, at any fixed or established place of business.

(b) A separate license issued hereunder shall be required for each person who may engage in the business of dealing in new motor vehicle parts or accessories or used motor vehicle parts or accessories, or both, at any fixed or established place of business.
(Code 1968, § 8-36)

Sec. 8-56. Investigation.

When an application is made for a license under this division, the chief of police or his duly authorized representative shall make or cause to be made such inspections of the establishments of the applicant and such investigations as he may deem necessary and shall report the results thereof to the automotive board. The chief of police shall also advise the automotive board as to whether the applicant or any other person required to be listed on the application appears to have been convicted of or served time in jail or prison for any applicable offense specified in section 1-10 of this Code.
(Code 1968, § 8-37)

Sec. 8-57. Approval or disapproval of application.

(a) The automotive board shall consider the application for a license under this division and the report of the chief of police or his duly authorized representative concerning the same, after which time it shall stamp its approval or disapproval on such application.

(b) If the automotive board refuses to approve an application for a license or revokes or suspends a license under this division, the applicant or licensee therefor shall have the right of appeal to the city council; provided, however, if the license is denied, suspended or revoked due to a conviction pursuant to section 1-10 of this Code, then such applicant or licensee shall have no right of appeal to the city council. In all other cases, an appeal may be set pursuant to Rule 12 of section 2-2 of the Code and by filing a written request in the office of the city secretary within ten days after the action of the automotive board disapproving the application or revoking or suspending the license. The city secretary shall select a date for the hearing and written notice thereof will be given to the applicant. If such appeal is from the denial of a license and if such license is granted by the city council, the applicant therefor

shall be entitled to the issuance thereof in the same manner as other licenses are issued hereunder.
(Code 1968, § 8-38; Ord. No. 71-1456, § 1, 8-18-71; Ord. No. 09-425, § 4, 5-13-09)

Sec. 8-58. Fees.

(a) The fees for the types of licenses issued under this division are stated for each license in the city fee schedule and shall be payable to the chief of police.

(b) Fees on all licenses issued during any calendar year shall be paid in advance to the chief of police.

(c) Any combination license may be issued for any combination of the businesses governed by this article, upon payment of the appropriate fee as herein provided, after application for such license has been made and approval has been granted by the automotive board pursuant to the terms of this division. The following shall constitute the schedule of combination licenses issued under this division, for which the fees stated for this provision in the city fee schedule shall be payable to the chief of police in lieu of separate licenses for two or more classes of business conducted by the licensee.

(d) A dealer who inadvertently obtains duplicate licenses for the same address under subsections (a) and (c) shall be entitled to a refund for such duplication; provided, the city shall retain the fee stated for this provision in the city fee schedule for handling the refund.

(e) Upon disapproval by the automotive board of any license issued hereunder, the applicant (by requesting same in writing) shall be entitled to a refund of money paid the city; provided, the city shall retain the fee stated for this provision in the city fee schedule for handling the refund.

(f) No license issued pursuant to the provisions of this division may be renewed more than 30 days after the date of its expiration. If a license had expired and not been renewed within 30 days, the applicant may apply for a new license as an initial applicant. The fee for such a new license shall be the fee set out for an original license.

(g) It shall be unlawful for any person to operate a business for which a license is required under this division without first obtaining a license therefor.
(Code 1968, § 8-39; Ord. No. 69-704, § 1, 4-23-69; Ord. No. 71-1242, § 2, 7-13-71; Ord. No. 73-2513, § 1, 12-26-73; Ord. No. 74-361, § 1, 2-26-74; Ord. No. 77-446, §§ 1, 2, 3-9-77; Ord. No. 81-1804, §§ 1—3, 9-15-81; Ord. No. 87-1195, § 3, 7-8-87; Ord. No. 93-1574, § 7, 12-8-93; Ord. No. 99-1354, § 2, 12-21-99; Ord. No. 08-923, § 2, 10-15-08; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2013-1209, §§ 7, 8, 12-18-2013)

Sec. 8-59. Issuance.

When an application for a license under this division is approved by the automotive board or the city council, the chief of police shall, upon payment to him by the applicant of the proper license fee as provided for in this division for the business described in such application, and compliance with all provisions of this division by the applicant, issue the proper license on a form to be prescribed by the automotive board.
(Code 1968, § 8-40)

Sec. 8-60. Term.

All licenses issued under this division shall be valid for one year from the date of issuance and must be renewed annually.
(Code 1968, § 8-41; Ord. No. 08-923, § 3, 10-15-08)

Sec. 8-61. Display.

A license issued under this division shall be displayed in a conspicuous place in the office of each place of business maintained by the licensee.
(Code 1968, § 8-42)

Sec. 8-62. Amendment upon change of business.

Any license issued under this division shall apply to the premises described therein, but a licensee may, upon application therefor and the payment of the fee stated for this provision in the city fee schedule to the chief of police for each such application and the turning in of the old

license for cancellation, be issued an amended license showing any change in location of the place of business of such licensee. Such amended license shall expire on the date of the expiration of the license which it replaces and shall so state. Said licensee shall report to the chief of police any change in location of his place of business within 30 days from the date of any change.
(Code 1968, § 8-43; Ord. No. 81-1804, § 4, 9-15-81; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 8-63. Certified copies.

Any licensee under this division who desires a certified copy of his license or amended license, shall make a written application therefor addressed to the chief of police stating therein the number of certified copies desired by the applicant and over his signature, and upon payment made to the chief of police of the fee stated for this provision in the city fee schedule for each such certified copy applied for, the chief of police is hereby authorized and required to issue and deliver such copy or copies to the applicant and certify in his official capacity that each copy is a true and correct copy of the original or amended license issued to the applicant.
(Code 1968, § 8-44; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 8-64. Licensee restricted to business specifically licensed.

No person having a license as provided for in this division shall engage in any business regulated by this article except that for which such person has been specifically licensed.
(Code 1968, § 8-45)

Sec. 8-65. No vested rights.

No license issued under this division shall be construed as the grant of a vested right, but shall be subject to such other regulations or amendments as the city council may from time to time promulgate in the regulation of the businesses coming within the scope of this article.
(Code 1968, § 8-46)

Sec. 8-66. Revocation or suspension.

(a) The automotive board may revoke or suspend a license after it has been granted under this division for any of the following reasons:

(1) Habitual drunkenness or the use of narcotics by the licensee.

(2) Conviction of an offense pursuant to section 1-10 of this Code.

(3) Adjudication of insanity of the licensee.

(4) Fraud or misrepresentation in obtaining the license.

(5) Violation by the licensee, on more than one occasion, either willfully or maliciously or by reason of incompetence, of any of the provisions of this chapter or of any rule or regulation adopted and promulgated by the automotive board and approved by the city council, under authority vested in it by this chapter.

(6) Upon satisfactory proof that the licensee has violated any of the laws of Texas affecting either the sale of automobiles or the operation of the business or service for which the license was issued.

(7) Proof that the licensee has represented and sold as a new and unused motor vehicle any motor vehicle which has been operated for demonstration purposes or which is otherwise a used motor vehicle.

(8) Proof that the licensee has sold or offered for sale as a new and unused motor vehicle any motor vehicle for which he cannot secure for the purchaser thereof such new car warranty as may be extended by the manufacturer of the car to the purchaser of one of its new cars, unless he shall explain to the purchaser and show on the bill of sale that the car is being sold without any warranty being extended by the manufacturer.

(9) Proof that the licensee resorts to or uses any false or misleading advertising in connection with his business as such motor vehicle dealer or motor vehicle salesman.

(10) Proof that the licensee gives false or fictitious names or addresses for the purpose of registering the sale of a motor vehicle, or makes application for the registration of a motor vehicle in the name of any person other than the true owner, or any other fraudulent practices to evade the meaning of this section.

(b) The automotive board, before taking any action under this section, shall give the licensee written notice of the violation or offense complained of and shall conduct a hearing inquiring into such violation or offense, at which time the licensee shall have an opportunity to present evidence on his behalf. If the board revokes or suspends a license because the licensee has been convicted of the commission of a felony or of a misdemeanor involving moral turpitude, the revocation or suspension shall be effective immediately.

(c) A licensee whose license has been revoked or suspended by the automotive board shall have the right to appeal such revocation or suspension to the city council in the manner and under the terms and conditions provided for in section 8-57 of this Code and the council shall follow the procedure set forth in that section.

(d) A licensee whose license has been revoked or suspended pursuant to this section shall not be eligible to apply for the same type of license for a period of one year from the date of revocation.

(Code 1968, § 8-47; Ord. No. 71-1456, § 1, 8-18-71; Ord. No. 2016-456, § 4, 6-15-2016)

Secs. 8-67—8-80. Reserved.

DIVISION 3. SALESMAN'S LICENSE

Sec. 8-81. Required.

It shall be unlawful for any person to engage as a salesman, full or part time, in the business of selling new or used motor vehicles, new or used motor vehicle trailers, or used motor vehicle parts or accessories, or to engage as a storage lot operator, full or part time, in the city, unless such person shall first obtain a salesman's license. It shall be unlawful for any dealer or other person licensed under division 2 of this article to allow any person to act as a salesman for his business who has not obtained a salesman's license as herein provided.

(Code 1968, § 8-53; Ord. No. 93-1574, § 8, 12-8-93)

Sec. 8-82. Application; issuance or denial.

It shall be the duty of each salesman required to be licensed under this division to apply for such license in the same manner as prescribed in division 2 of this article. Such application shall be on an application form provided by the chief of police and prescribed by the automotive board. Such application shall state the applicant's name, age, present address, former addresses and places of employment during the preceding two years, whether the applicant has been convicted of a felony or of a crime involving moral turpitude. A bust picture of applicant, not less than 1½ inches by two inches in size, shall be attached to said application. An application for the license required by the provisions of this division shall be acted upon by the automotive board in the same manner and respect as provided for in the issuance of licenses under division 2 of this article, and the board shall either approve or deny the application. Each application shall be referred to the chief of police who shall advise the board as to whether the applicant appears to have been convicted of or served time in jail or prison for any applicable offense specified in section 1-10 of this Code. Any fraudulent information provided on the license application, including the omission of any criminal background data, shall be cause for denial of the license. If the application is approved, it shall be transmitted to the chief of police for the issuance of the license. A person aggrieved by the action of the automotive board in denying an application for the license required by the provisions of this division or revoking or suspending such a license may appeal to the city council in the manner and under the terms and conditions provided for in section 8-57 of this Code and the council shall follow the procedure set forth in such section.

(Code 1968, § 8-54; Ord. No. 75-107, § 1, 1-21-75; Ord. No. 2016-456, § 5, 6-15-2016)

Sec. 8-83. Fee.

Upon filing an application for a license under this division, the applicant shall pay to the chief of police or his representative the nonrefundable license fee stated for this provision in the city fee schedule.
(Code 1968, § 8-55; Ord. No. 74-361, § 2, 2-6-74; Ord. No. 77-446, § 3, 3-9-77; Ord. No. 81-1804, § 5, 9-15-81; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 8-84. Certain applicants to be fingerprinted.

All salespersons, used parts and used accessories sellers and storage lot operators applying for a salesman's license shall submit themselves to be fingerprinted at the police department.
(Code 1968, § 8-56; Ord. No. 86-44, § 1, 1-21-86; Ord. No. 93-1574, § 9, 12-8-93)

Sec. 8-85. Contents.

A license issued under this division shall contain a license number, the licensee's social security number, his signature, and the name of the licensee's employer.
(Code 1968, § 8-57; Ord. No. 2020-320, § 8, 4-15-2020)

Sec. 8-86. Exhibition.

A license issued under this division shall be exhibited, upon demand, to any peace officer showing proper identification.
(Code 1968, § 8-58)

Sec. 8-87. Expiration and renewal.

(a) Each salesman license shall expire each year on the last day of the month of the anniversary of the license holder's date of birth.

(b) The first license issued to an individual hereunder shall expire on the last day of the month of the salesman license holder's date of birth following the expiration of one year from issuance.

(c) The license may be renewed annually upon payment to the chief of police of the fee stated for this provision in the city fee schedule.

(d) No license that has lapsed for 90 days or more shall be renewed except upon re-examination upon the same terms and conditions as provided for herein in the case of original licenses.
(Code 1968, § 8-59; Ord. No. 70-37, § 1, 1-13-70; Ord. No. 74-361, § 3, 2-6-74; Ord. No. 77-447, § 4, 3-9-77; Ord. No. 81-1804, § 6, 9-15-81; Ord. No. 08-923, § 4, 10-15-08; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 8-88. Transfer or change of employment after issuance; fee.

A license issued under this division shall not be transferable. It shall be lawful, however, for a salesman to use the same license after changing employment from one employer to another, provided the fact of such change in employment is endorsed on the license by the chief of police and the fee stated for this provision in the city fee schedule is paid to the chief of police for making the notation of such change.
(Code 1968, § 8-60; Ord. No. 77-447, § 5, 3-9-77; Ord. No. 81-1804, § 7, 9-15-81; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 8-89. Revocation or suspension.

Any license issued under this division may be revoked or suspended by the automotive board for any of the reasons stated in section 8-66 of this Code, and such suspension or revocation shall be subject to all of the provisions and conditions of section 8-66.
(Code 1968, § 8-61)

Sec. 8-90 Reserved.

DIVISION 4. BODY SHOP FACILITY WITH STORAGE PRIVILEGES

Sec. 8-91. Purpose; relationship to other provisions.

(a) Pursuant to the provisions of this division, an automotive repair facility that primarily functions as a body shop may qualify to obtain a license as a body shop facility with storage privileges. A holder of that license shall, subject

to compliance with this division, be entitled to function as both an automotive repair facility and an automotive storage lot operator under this article so that a storage fee may be imposed for vehicles that are stored with the owner's consent pending their repair at the body shop or other disposition. The holder of a body shop facility with storage privileges license shall not be required to also hold an automotive repair facility license or automotive storage lot operator's license for operations at the covered premises in compliance with this division.

(b) A body shop facility with storage privileges that is licensed under this division is not required to comply with the land use requirements established in section 28-34 of this Code. However, it is the intent of city council in adopting this article that the article cannot be used to circumvent the 300-foot land use restrictions that apply therein to any storage lot, whether in existence at the time of adoption of this article or created thereafter.

(c) Nothing contained in this division shall be construed to preclude an automotive repair facility, whether primarily operating as a body shop or not, that is situated in a location that complies with section 28-34 of this Code from obtaining a license under the state Vehicle Storage Facility Act or a private storage lot authorization under article III of this chapter, as applicable, and conducting vehicle storage operations thereunder.

(d) Nothing contained in this division shall be construed to preclude any automotive repair facility, whether primarily operating as a body shop or not, from storing vehicles without imposing a fee for the service as authorized in section 8-30 of this Code.

(e) All provisions of this article that apply to automotive repair facilities shall also apply to a body shop facility with storage privileges license holder, except that the license holder may not store vehicles as provided in section 8-30(o) of this Code.
(Ord. No. 99-1354, § 3, 12-21-99)

Sec. 8-92. Licensing requirements.

In order to obtain a body shop facility with storage privileges license, the applicant must demonstrate:

(1) That on the premises where the licensed facility will be situated, the applicant operates a body shop that is operationally equipped with one or more frame machines, an estimating system, two or more fully equipped body repair bays and one or more city permitted vehicle paint booths, which equipment shall be situated within enclosed structures.

(2) That the licensed facility may not derive more than 25 percent of all income from fees charged specifically for storage of vehicles on the premises.

(3) That, in addition to the vehicle storage area required under item (5), below, the operator has, upon the premises, not less than five parking spaces for every 1,000 square feet of gross floor area, as required for an auto repair establishment under chapter 26 of this Code.

(4) That the premises abuts a major thoroughfare and will take access to the premises for all purposes relating to the operation of the body shop and the storage of vehicles from the major thoroughfare.

(5) That the premises has an enclosed all-weather-improved surface parking area not larger than seven and one-half marked parking spaces per 1,000 square feet of gross floor area, measured and construed in the same manner provided in chapter 26 of this Code, that will be utilized as its vehicle storage area. The area shall be enclosed in the same manner described in section 8-30(e) of this Code, provided that if the premises abuts any deed restricted property and the deed restrictions require a particular type of fence, then the fence shall also conform to the style required in the abutting property's deed restrictions. The vehicle storage area shall be located on the same tract or

parcel of land where the body shop is situated or a contiguous tract or parcel of land. For this purpose, "contiguous" shall include an abutting tract or parcel and shall also include atract or parcel that is situated directly across the major thoroughfare from which the body shop takes it access. For these purposes, the term directly across means that 50 percent or more of the tract frontages on the opposite sides of the major thoroughfare are parallel.

(6) That signs are conspicuously posted at each public entrance to the premises setting forth the hours of operation and the amount of any daily vehicle storage fee imposed.

(Ord. No. 99-1354, § 3, 12-21-99)

Sec. 8-93. Operating requirements.

Holders of body shop facility with storage privileges licenses shall be subject to the following operating rules:

(1) No vehicle may be stored without the owner's consent, which shall be evidenced either by an auto wrecker tow slip signed by the owner or operator of the vehicle designating the licensed premises as the intended tow destination or by a vehicle work order or repair contract executed by the owner of the vehicle that provides for repair of the vehicle at the premises. The tow slip or contract shall evidence the date of receipt of the vehicle at the premises.

(2) No vehicle shall be stored unless it has in display Texas registration and vehicle inspection stickers that are current or not more than two months expired, or equally current operating documentation if the vehicle is registered in another jurisdiction.

(3) No vehicle shall be stored except in the storage enclosure described in section 8-92(5) of this Code, nor shall the number of vehicles stored exceed the number of authorized storage spaces.

(4) Within 30 days from the date of its receipt, each vehicle stored shall either be removed from the premises or be brought into an enclosed body shop structure for the commencement of repairs and may not be returned to outside storage until all body work is completed. In the event that the owner does not remove the vehicle as required under this item, the body shop facility with storage privileges license holder shall cause the vehicle to be timely removed to a city-licensed private storage lot operating under article III of this chapter or a state-licensed vehicle storage facility. A daily log of vehicles received and removed shall be maintained to evidence compliance with this item.

(5) The operator of the body shop facility with storage privileges may, but shall not be obligated to, impose a fee of not more than $11.00 per calendar day, or any portion of a calendar day, for storage services. No additional fee may be imposed for preservation, notices or other services related to the storage services.

(6) The owner of each vehicle stored hereunder shall be notified of the applicable terms and conditions relating to storage periods and fees, including the amount of the storage fees that may be imposed, the requirement that the vehicle may not be stored on the premises for more than 30 days, the destination to which it will be taken if not timely removed, the amount of any additional towing fee that may be imposed for the removal and that the vehicle will be subject to additional fees and sale pursuant to state law if not timely redeemed from the place to which it will be removed. The notice shall be in a form approved by the police chief or his designee, shall set forth the above information and shall be mailed to the registered owner of record within five days from the date of the receipt of the vehicle, provided that the notice shall not be required to be mailed if the owner has, within five days follow-

ing receipt of the vehicle on the premises, executed a work order or repair contract that includes the required notice information.

(Ord. No. 99-1354, § 3, 12-21-99)

Sec. 8-94. Compliance required; inspection.

(a) Records of compliance with this article, including tow slips, work orders, repair contracts, the daily compliance log and storage receipts shall be maintained on the premises of the body shop facility with storage privileges and shall be made available for inspection and copying by any police officer immediately upon request during regular business hours. The records shall be retained on the premises for two years from the date of their creation.

(b) Compliance with all provisions of this article is a condition of imposition of a storage fee by a body shop facility with storage privileges.

(c) It shall be the duty of the owner and each agent and employee of a body shop facility with storage privileges to comply with all requirements of this article and any failure to comply shall be an offense punishable as provided in section 1-6 of this Code.

(d) The holder of a body shop facility with storage privileges license shall only have storage privileges as extended hereunder.

(Ord. No. 99-1354, § 3, 12-21-99)

Secs. 8-95—8-100. Reserved.

ARTICLE III. AUTO WRECKERS AND STORAGE YARDS

DIVISION 1. GENERALLY

Sec. 8-101. Definitions.

For the purposes of this article:

Accident means a situation where one or more motor vehicles have collided with any other motor vehicle or object.

Authorization holder means a person who is operating a private storage lot under an authorization issued under division 3 of this article, rather than under a Vehicle Storage Facility Act license.

Auto wrecker means any vehicle used for the purpose of towing, carrying, pushing or otherwise transporting any motor vehicle.

Consent tow means the tow of a motor vehicle conducted with the prior authorization of the vehicle owner.

Custodial arrest means a situation in which a law enforcement officer takes the vehicle owner into custody.

Freeway means the entire public right-of-way of a divided, controlled-access highway located within the city, including its roadway lanes, ramps, shoulders, and unimproved areas, but excluding frontage or service roads.

Heavy-duty wrecker means an auto wrecker having chassis rated at five tons or greater by the vehicle manufacturer and a winch capable of lifting a minimum of 30,000 pounds as rated by the winch manufacturer. Except where a distinction is made, the term "auto wrecker" includes a "heavy-duty wrecker."

Lawfully hooked up means and refers to a vehicle a wrecker driver has attached to an auto wrecker, is lifted in the tow position or, if required, placed on a dolly in a raised position, with tow lights and safety chains attached and is fully prepared for transport.

Nearest place of safety means, during the period each day from 10:00 p.m. to 6:00 a.m., the nearest licensed storage facility that is lighted, manned on a 24-hour basis, and provides the vehicle owner with access to a telephone and other facilities or other safe place, and at all other times, the nearest licensed storage facility or other safe place.

Nonconsent storage lot means an automobile storage facility that is either:

(1) Operating under a current and valid license granted pursuant to the

Vehicle Storage Facility Act (Chapter 2303 of the Texas Occupations Code); or

(2) Operating under a current and valid police private storage lot agreement issued under division 3 of this article.

Nonconsent tow means the tow of a motor vehicle in every instance in which the vehicle owner is unwilling or unable to designate a tow operator to remove the vehicle, including instances in which the vehicle is: (i) abandoned or stolen, or (ii) being operated by a person who is the subject of a custodial arrest or who is physically or mentally unable or unwilling to request a tow operator or destination, when a law enforcement officer determines that no other authorized person is present and able to remove the vehicle.

Parking compliance officer has the meaning ascribed in section 26-2 of this Code.

Police-authorized tow service agreement or *PATSA* means an agreement made pursuant to the provisions of section 8-126 of this Code.

Police chief means the chief of police of the city or his designee.

Police private storage lot means a private storage lot for which the operator has a current and valid agreement with the city pursuant to section 8-143 of this Code.

Police scene means a place at which (i) an accident has taken place that is subject to a field investigation conducted by a law enforcement officer, (ii) a law enforcement officer has recovered a stolen vehicle, (iii) a vehicle has been abandoned in a roadway, (iv) a custodial arrest by a law enforcement officer has taken place, or (v) a vehicle is otherwise subject to removal or impoundment pursuant to law by a law enforcement officer, parking compliance officer or personnel designated by the police chief.

Recovery services means any and all actions relating to uprighting or otherwise moving a vehicle into a position from which it can be towed, securing a shifted or lost load of cargo, and cleaning up of debris from the scene. This definition also applies to scenes to which a heavy-duty wrecker is called.

Safe place means a location chosen with regard to the following criteria: the age, physical or other condition of the vehicle owner, including whether the vehicle owner is accompanied by one or more minor children, the remoteness of the location, the proximity of authorities or persons who could render aid or assistance, the time of day, the climatic conditions, the character of the location or surrounding neighborhood and the vehicle owner's knowledge or familiarity with the location or surrounding neighborhood.

Stalled vehicle means a vehicle that has a flat tire or other mechanical problem, is out of gas or, due to other factors other than physical damage from a collision, may not be operated in a normal manner.

Tow means the removal from public or private property of a vehicle, including a trailer towed by the vehicle, by means of an auto wrecker only.

Tow operator means the owner of an auto wrecker authorized to perform tows under applicable state law and this chapter.

Vehicle owner means the actual owner of the vehicle towed or transported or any driver of the vehicle who reasonably appears to have authority to operate the vehicle.

Wrecked vehicle means a vehicle that, due to a collision, is incapable of being driven or moved.

Wrecker driver means any individual who drives an auto wrecker.

Wrecker driver trainee means an individual who, to obtain on-the-job training and experience in connection with PATSA tow operations before applying for a wrecker driver license, holds a wrecker driver trainee license from the city.

(Ord. No. 01-1079, § 5, 12-5-01; Ord. No. 05-1271, § 2, 9-22-05; Ord. No. 09-1135, §§ 2, 3, 11-18-09; Ord. No. 2014-482, § 3, 5-28-2014; Ord. No. 2019-1015, § 31, 12-11-2019; Ord. No. 2021-753, § 2, 9-1-2021; Ord. No. 2022-151, § 3, 2-23-2022)

Sec. 8-102. Penalty.

Unless otherwise provided, a person who violates any provision of this article shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not less than $200.00 nor more than $500.00; provided, however, if the person is convicted of an offense under this article that is also a violation of the penal laws of the state, the person shall be subject to the penalties set out in the state penal laws for the offense. Each day that any violation continues shall constitute and be punishable as a separate offense.
(Ord. No. 01-1079, § 5, 12-5-01)

Sec. 8-103. Freeway towing.

(a) *Wrecked or stalled vehicle; traffic hazard.* A wrecked or stalled vehicle on a freeway is a traffic hazard and a threat to public safety. Wrecked vehicles, regardless of location, or stalled vehicles in a moving lane shall be removed from a freeway at the earliest possible opportunity consistent with safety and proper police procedures. Stalled vehicles on a shoulder shall be removed as directed by a law enforcement officer.

(b) *Police scene; law enforcement jurisdiction.* A wrecked or stalled vehicle on a freeway shall constitute a police scene.

(c) *Persons authorized.* A wrecked or stalled vehicle may be towed from a freeway only by an auto wrecker operated by:

(1) A tow operator holding a contract to conduct Tow and Go freeway towing under section 8-127 of this Code;

(2) A PATSA tow operator called to a police scene on a freeway by a law enforcement officer; or

(3) A tow operator called by the vehicle owner of a wrecked or stalled vehicle who arrives at the location of such vehicle before the law enforcement officer in charge of the scene directs the removal of the vehicle, including but not limited to an auto wrecker operated by an automobile club, insurance company or other person having a contractual obligation to provide the vehicle owner with towing services.

(d) Except as provided in item (3) of subsection (c) of this section, it shall be unlawful for any auto wrecker not operated pursuant to items (1) or (2) of subsection (c) of this section to be present or remain at, or to tow any vehicle from, a freeway. It shall be an affirmative defense to prosecution under this subsection that (i) the wrecker driver was acting under the direction of a law enforcement officer, (ii) the auto wrecker is a heavy-duty wrecker summoned to the scene by a law enforcement officer pursuant to section 8-123 or (iii) the auto wrecker is acting to provide a warning to oncoming traffic pursuant to section 8-118 of this Code.
(Ord. No. 05-1271, § 3, 9-22-05; Ord. No. 2021-753, § 3, 9-1-2021)

Secs. 8-104—8-110. Reserved.

DIVISION 2. AUTO WRECKERS*

Subdivision A. Operational Rules and Regulations and Tow Agreements†

Sec. 8-111. Auto wrecker requirements.

(a) *State registration required.* Any auto wrecker that is used to perform any nonconsent tow shall be registered as a tow truck under applicable provisions of state law, including, without limitation, Chapter 2308 of the Texas Occupations Code.

(b) *City registration required.* Any auto wrecker that is used to perform any nonconsent tow on private property in the city must be registered with the police department, regardless of whether the owner of the auto wrecker has a place of business in the city.

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*__Editor's note—__Ord. No. 04-497, § 3, adopted May 26, 2004, amended Ch. 8, Art. III, Div. 2 in its entirety. Formerly said division pertained to similar subject matter and derived from Ord. No. 01-1079, § 5, adopted 12-5-01.

†__Editor's note—__Ord. No. 05-116, § 4, adopted February 9, 2005, designated Subdivision A to be entitled as herein set out.

(c) *Application for city registration.* A tow operator may apply to the police department for registration of an auto wrecker by i) submitting a completed application on a form promulgated by the police chief; ii) paying the fee stated for this provision in the city fee schedule per auto wrecker to the police department; iii) providing verification that the auto wrecker is equipped to tow light-duty or heavy-duty motor vehicles according to the manufacturer's guidelines; and (iv) providing proof of insurance that meets the requirements of § 86.400 of Title 16 of the Texas Administrative Code.

(d) *Inspection; proof of registration.* Upon receipt of an application, the police department will inspect the auto wrecker to determine compliance with the requirements of subsection (d) of this section and, if the auto wrecker is found in compliance, shall issue proof of registration to the applicant. The proof of registration (a medallion) shall be attached to the auto wrecker for which it is issued, at the place on the vehicle designated by the police chief. It shall be unlawful for any person to drive or operate an auto wrecker without the proof of registration being so attached.

(e) *Requirements for city registration.*

(1) Each tow operator must meet the signage, safety equipment, safety clothing, and identification requirements of §§ 86.701, 86.1000, and 86.1001 of Title 16 of the Texas Administrative Code.

(2) Each auto wrecker shall meet the following minimum requirements:

a. Except for heavy duty wreckers, the auto wrecker's chassis cab shall be rated at no less than one ton by the manufacturer and will be equipped by the manufacturer with dual wheels and tires at each end of the rear axle;

b. The auto wrecker at all times shall carry tow lights with appropriate cable (unless wireless) and cushions to protect a vehicle's finish; and

c. The auto wrecker at all times shall be equipped with safety (mud) flaps with the bottom edge of the mud flap no more than eight inches from the surface of the road.

(f) *Renewal of registration.* The registration for each auto wrecker that is used to perform non-consent tows subject to this section shall be renewed annually by payment of the fee stated for this provision in the city fee schedule to the police department, which shall verify that the auto wrecker is still in compliance with this section.

(g) *Replacement medallion.* In the event a wrecker medallion is lost or stolen, the tow operator shall file a completed police department offense report and pay the medallion replacement fee stated in the city fee schedule to the police department for each replacement medallion.

(h) *Medallion transfer.* In the event a tow operator wishes to transfer an auto wrecker to another towing zone, the tow operator shall pay the police department the medallion transfer fee stated in the city fee schedule for each medallion transferred.
(Ord. No. 04-497, § 3, 5-26-04; Ord. No. 2011-1012, § 3, 11-30-2011, eff. 1-1-2012; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2013-1159, §§ 3, 4, 12-11-2013; Ord. No. 2014-482, § 4, 5-28-2014; Ord. No. 2021-753, § 4, 9-1-2021)

Sec. 8-112. State licensing of wrecker drivers.

Auto wreckers shall be operated by persons who hold the type of state driver license that is required for their auto wrecker, as applicable.
(Ord. No. 04-497, § 3, 5-26-04)

Sec. 8-113. Information to be furnished owner of vehicle who requests towing at a police scene.

(a) No wrecker driver shall accept a motor vehicle to be towed with the vehicle owner's consent from a police scene unless he has informed the vehicle owner of the following:

(1) The exact fee to be charged for the towing and any terms applicable to its

payment, including the forms of payment that will be accepted and the time when payment will be due;

(2) The name, business address and phone number of the auto wrecker company that will tow the vehicle;

(3) The legibly printed name and state driver license number of the wrecker driver;

(4) The state license plate number of the auto wrecker being used for the tow;

(5) The location to which the vehicle will be towed; and

(6) A complete description of the vehicle towed, including the license plate number and vehicle identification number.

(b) The information required above shall be provided in the form of a written wrecker slip. The wrecker driver shall provide a copy of the wrecker slip to the law enforcement officer in charge of the police scene and shall also provide a copy of the wrecker slip to the vehicle owner.
(Ord. No. 04-497, § 3, 5-26-04)

Sec. 8-114. Notice to vehicle owner or police when vehicle is not towed to place designated by vehicle owner.

If a wrecker driver has accepted a motor vehicle to be towed to a place designated by the vehicle owner, but is unable to deliver the vehicle to the place so designated, he shall inform the vehicle owner immediately as to the reasons why the vehicle was not taken to the place agreed and where the vehicle was taken. If the wrecker driver is unable to so notify the vehicle owner, he shall notify the police department immediately and shall send or cause to be sent notification to the vehicle owner by certified mail, return receipt requested, within 48 hours of the time the vehicle was towed; provided, however, if it is impossible to send such certified mail within 48 hours due to a federal holiday occurring on a Monday, such notice shall be mailed within two hours of the time the post office reopens after the holidays.
(Ord. No. 04-497, § 3, 5-26-04)

Sec. 8-115. When towing from public property authorized.

No person shall tow, carry or transport any motor vehicle without the consent of the vehicle owner from any public street, alley, road, right-of-way, or park except under the direction and authority of a law enforcement officer acting in his official capacity or a parking compliance officer or personnel designated by the police chief acting pursuant to section 26-298 of this Code.
(Ord. No. 04-497, § 3, 5-26-04; Ord. No. 09-1135, § 4, 11-18-09; Ord. No. 2019-1015, § 31, 12-11-2019)

Sec. 8-116. Wrecker slip for towing vehicle under direction of law enforcement officer.

(a) Except as otherwise provided in subsection (c) of this section, no person shall tow, carry or transport a motor vehicle under the direction or authority of a law enforcement officer, parking compliance officer or personnel designated by the police chief unless a wrecker slip has been issued to the wrecker driver by the officer. Such wrecker slip shall be filled out by the law enforcement officer, parking compliance officer or personnel designated by the police chief on a form designated by the chief of police. The wrecker slip shall contain the following information:

(1) A complete description of the vehicle to be towed, including the license plate number and the vehicle identification number;

(2) Any visible damage to the inside or outside of the vehicle;

(3) Any personal property contained within the vehicle that is visible from outside that vehicle;

(4) Any visible missing parts or paraphernalia;

(5) The location from which the vehicle is being towed;

(6) The date and time the vehicle is picked up by the auto wrecker;

(7) The reason the vehicle is being towed;

(8) The police private storage lot or other police designated location to which the vehicle is to be towed;

(9) The state license plate number of the auto wrecker being used for the tow;

(10) The signature and employee number of the law enforcement officer, parking compliance officer or personnel designated by the police chief authorizing the tow; and

(11) The signature, legibly printed name, and state driver license number of the wrecker driver.

(b) The wrecker driver signing the wrecker slip shall be responsible to account for the vehicle at all times until the vehicle has been accepted by an agent of the destination set out in the wrecker slip. No fee shall be charged for towing any vehicle under the direction and authority of a law enforcement officer, parking compliance officer or personnel designated by the police chief unless the wrecker driver has obtained a completed wrecker slip. The wrecker driver shall cause the vehicle to be delivered without delay to the location designated on the wrecker slip and may not redirect the vehicle to another destination unless:

(1) Authorization has been obtained from the operator of the police private storage lot specified on the wrecker slip on a form specified by the police department to take the vehicle to another police private storage lot and the form is delivered to the police private storage lot accepting the vehicle for storage along with the original wrecker slip; or

(2) Verbal authorization has been given by a supervisor in the auto dealers detail of the police department and noted on the wrecker slip.

(c) In accordance with orders established by the chief of police for that purpose, the signature and employee number of the authorizing officer as required in this section may be affixed to the wrecker slip by the wrecker driver by facsimile. The provisions of this authorization shall be limited to circumstances where the authorizing officer is not present at the police scene but is able to view the police scene from a remote location by televised link and/or able to communicate with the wrecker driver by telephone or radio.

(Ord. No. 04-497, § 3, 5-26-04; Ord. No. 09-1135, § 5, 11-18-09; Ord. No. 2019-1015, § 31, 12-11-2019)

Sec. 8-117. Nonconsent tow regulations.

(a) A person who performs a nonconsent tow in the city may not operate or permit another person to operate an auto wrecker on a public roadway in the city unless the person has a current wrecker driver license issued by the city.

(b) A private storage lot owned or used by a towing company to store a motor vehicle subject to a nonconsent tow must be located within the city limits.

(c) A towing company that performs a nonconsent tow of a motor vehicle:

(1) Shall immediately tow the motor vehicle to a private storage lot located within the city limits; and

(2) May not unload the towed motor vehicle at a place other than the private storage lot.

(d) Notwithstanding the foregoing, a towing company that performs a nonconsent tow of a motor vehicle may unload a motor vehicle at a place other than its private storage lot only:

(1) If safety reasons or mechanical breakdown require the transfer of the motor vehicle to another tow truck;

(2) To transfer the motor vehicle to another tow truck, within 100 feet of the private property, if the original tow truck is the company's only available truck that is capable of entering the property and removing a motor vehicle, and the original truck is needed immediately for additional towing; or

(3) The towing company agrees to take the motor vehicle to a location designated by

the vehicle owner, provided that, in the event of a police-authorized tow, if the motor vehicle is unloaded at a location that is more than twenty miles from the site of the tow, the vehicle owner shall pay the towing company a mileage fee, in addition to the service charge for the tow established pursuant to section 8-123. A mileage fee assessed under this subsection shall be calculated by multiplying the number of miles in excess of twenty miles by an amount that is not greater than two percent of the applicable service charge for the tow.

(e) A towing company that transfers a motor vehicle to another tow truck pursuant to subsection (d)(1) or (d)(2) may not charge an additional fee for the transfer.

(f) Once a law enforcement officer has authorized a tow under this section, the wrecker slip has been signed and the services commenced, the services shall remain nonconsent towing services under the auspices of the authorizing agency and may not be changed to a consent tow.
(Ord. No. 04-497, § 3, 5-26-04; Ord. No. 09-1135, § 6, 11-18-09; Ord. No. 09-1347, § 2, 12-16-09; Ord. No. 2011-1012, § 4, 11-30-2011, eff. 1-1-2012; Ord. No. 2014-482, § 5, 5-28-2014)

Sec. 8-118. Parking at police scenes.

Whenever a person operating an auto wrecker or other vehicle arrives at a police scene, the driver shall park his vehicle as close to the street curb as possible and in such a manner as not to interfere with traffic. He shall not park his vehicle within a distance of 100 feet from a wrecked or stalled vehicle. It is a defense to prosecution under this section that the vehicle is operated by a law enforcement officer or is parked as directed by a law enforcement officer at the scene. No wrecker driver shall stop or park or allow his auto wrecker to remain stopped or parked at a police scene if the number of auto wreckers already present at the scene equals the number of wrecked or stalled vehicles; provided, that no more than two additional auto wreckers may remain at a police scene when no law enforcement officer is present. It is an affirmative defense to prosecution that a law enforcement officer was present and in control of the police scene at the time that the wrecker driver arrived and had called the wrecker driver to the police scene or had asked the wrecker driver to cause his auto wrecker to remain at the scene.
(Ord. No. 04-497, § 3, 5-26-04; Ord. No. 05-1271, § 4, 9-22-05; Ord. No. 2011-1012, § 5, 11-30-2011, eff. 1-1-2012)

Sec. 8-119. Igniting matches, etc., or smoking at scene of accident.

It shall be unlawful for any person to ignite a match, lighter or any other flammable object within a distance of 50 feet in any direction from the location of a vehicular accident. It shall further be unlawful for any person to enter into such area with a lighted cigarette, cigar, pipe or other burning material.
(Ord. No. 04-497, § 3, 5-26-04)

Sec. 8-120. V.I.N. inspection; transport authorization.

(a) It shall be unlawful for any wrecker driver to attach or cause or permit any auto wrecker to be attached to any motor vehicle without first personally inspecting the manufacturer's permanent vehicle identification number affixed to the motor vehicle to be transported.

(b) It shall be unlawful for any wrecker driver to attach or cause or permit any auto wrecker to be attached to any motor vehicle on which the manufacturer's permanent vehicle identification number has been removed or is not permanently affixed or is not clearly legible or that, upon visual examination of the manufacturer's permanent vehicle identification number, shows any evidence whatsoever of its possibly having been changed, altered or obliterated in whole or in part.

(c) It is a defense to prosecution under subsection (a) or (b) that the wrecker driver obtained, prior to attaching or causing or permitting the auto wrecker to be attached to the transporting vehicle and retained in his possession at all times while transporting the vehicle, a legible written authorization for the transport of the

vehicle issued by a law enforcement officer, parking compliance officer or personnel designated by the police chief setting forth:

(1) The printed name, signature and badge number, if applicable, of the law enforcement officer, parking compliance officer or personnel designated by the police chief;

(2) The state license plate number of the auto wrecker;

(3) The printed name and signature of the wrecker driver;

(4) A description of the transported vehicle;

(5) The place to which the transported vehicle is authorized to be towed; and

(6) The date upon which the tow is authorized to be conducted.

The aforesaid police or parking compliance transport authorization shall be required in addition to any other authorization required by law for the transportation of the vehicle, and the possession of a wrecker slip issued under section 8-116 of this Code shall not constitute a defense under this subsection. An authorization issued under this subsection shall only be a defense for the transport of the vehicle designated thereon by the wrecker driver and auto wrecker identified thereon to the place designated thereon on the date authorized thereon.
(Ord. No. 04-497, § 3, 5-26-04; Ord. No. 09-1135, § 7, 11-18-09; Ord. No. 2019-1015, § 31, 12-11-2019)

Sec. 8-121. Removal of or tampering with vehicles at police scene without consent of vehicle driver or before police investigation completed.

(a) No wrecker driver shall remove any vehicle that is involved in a police scene and requires towing or attach his auto wrecker to such a vehicle until a law enforcement officer responsible for the police scene authorizes the moving of the vehicle.

(b) The fact that no law enforcement officer is present at a police scene when an auto wrecker arrives shall not constitute an exception to this section, and it shall be the duty of any vehicle owner desiring to tow or haul any vehicle from the police scene to cause the police department of the city to be notified and to await the arrival of a law enforcement officer and the completion of his investigation.

(c) Taking into consideration the location of the vehicle insofar as it may obstruct traffic, traffic conditions, and related factors of traffic management, law enforcement officers shall afford any vehicle owner who is present at a police scene and is able and willing to do so a reasonable time to make arrangements with a wrecker driver of his choice for a consent tow. However, in the event that the vehicle owner of a vehicle involved in a police scene is not present or is incapable of making or unwilling to make his own arrangements with a wrecker driver to remove the vehicle within a reasonable time, the investigating law enforcement officer shall give such orders as may be necessary to remove the vehicle from the street through a police-authorized tow.

(d) The provisions of this section shall not apply to vehicles detained for police investigation or other purposes as authorized by state and federal law, which may be removed by police department auto wreckers or as otherwise directed by the law enforcement officer in charge of the police scene, to vehicles towed from residential parking permit areas pursuant to section 26-298 of this Code, or to tows on freeways conducted pursuant to section 8-127 of this Code.
(Ord. No. 04-497, § 3, 5-26-04; Ord. No. 05-1271, § 5, 9-22-05; Ord. No. 09-1135, § 8, 11-18-09)

Sec. 8-122. Debris glass, etc., at accident scenes.

Where vehicles to be towed have been involved in an accident, it is the responsibility of the vehicle owners for consent tows or the persons authorizing the tow for nonconsent tows to ensure that any glass or other debris or parts are removed from the scene of the accident. The owner or person authorizing the tow may perform

the work or cause the work to be performed by another person, including but not limited to the wrecker drivers performing the tows of the affected vehicles. The fees established in section 8-123 of this Code for the nonconsent tows are inclusive of glass, parts, and debris cleanup and removal for services other than tows requiring heavy-duty wreckers. For consent tows, any additional service fees for those services shall be disclosed on the wrecker slip provided under section 8-113 of this Code. This section shall not apply to the towing of vehicles under section 8-127 of this Code.
(Ord. No. 04-497, § 3, 5-26-04)

Sec. 8-123. Towing charges.

(a) For purposes of this section, the phrase 'without the consent of the vehicle owner' applies to all nonconsent tows.

(b) Whenever a vehicle is towed without consent of the vehicle owner, the service charge for a tow not requiring the use of a heavy-duty wrecker shall not exceed the amount established pursuant to subsection (d). This charge shall be applicable whether the vehicle is to be towed from public or private property.

(c) Whenever a vehicle is towed without consent of the vehicle owner, and the use of a heavy-duty wrecker is required due to the size or condition of the motor vehicle, the fee for the tow shall be no more than the amount per hour established pursuant to subsection (d) with a minimum charge of two hours to be assessed without regard to the actual time expended. The hourly rate shall be determined by starting the time charges when the heavy-duty wrecker leaves to report to the police scene and shall be stopped when the actual towing job is completed. The time going to the police scene may be included in the charges, but the time used to return shall not be included in the charges. The hourly rate established pursuant to subsection (d) does not apply to recovery services, a fee for which may also be reasonably imposed.

The law enforcement officer in charge of a police scene shall have authority to summon a heavy-duty wrecker when in his opinion such equipment is required. The vehicle owner of the vehicle whose car is serviced by a heavy-duty wrecker called by the investigating officer shall be responsible for any and all charges that result from such heavy-duty wrecker service.

(d) The rates referred to in subsections (b) and (c), above, shall be established in accordance with the following process:

(1) A rate review for auto wreckers, including heavy-duty wreckers, may be initiated by request of any tow operator that performs nonconsent tows in the city. Any such request must be made in writing to the director of administrative and regulatory affairs. Upon receipt of a request for a rate review, the director shall prepare an estimate of the administrative cost of the rate review, and if the tow operator determines to proceed with the rate review, the tow operator shall submit a cashier's check to the director in an amount equal to the estimated administrative cost. The rate review shall be conducted in accordance with procedures established for that purpose by the director. Without limitation, the director may select a representative group of auto wrecker owners and request that they provide verified financial data and vehicle-operating data regarding their operating costs and return on investment for use as a basis in conducting the review. Following receipt and review of the required data, the director shall make a recommendation to city council whether any rate change is justified, and, if so, the amount of the recommended increase or decrease. If a rate change is recommended to the city council, then the city council or a committee of city council shall conduct a hearing before adopting any increase or decrease. The increase or decrease may be adopted by motion and shall be effective on the first day of the next calendar year.

(2) Except for years in which a rate adjustment adopted by city council under item (1) will take effect, the director shall adjust the rates effective January 1 of each year, based upon a weighted blend

of the following indices with one-half attributed to the percentage increase or decrease in the Consumer Price Index, All Urban Consumers, All Items, United States average, and one-sixth each attributed to the percentage increase or decrease in:

a. Consumer Price Index, All Urban Customers (CPI-U), U.S. City Average, Motor Vehicle Maintenance & Repair;

b. Consumer Price Index, All Urban Customers (CPI-U), U.S. City Average, Vehicle Insurance; and

c. Consumer Price Index, All Urban Customers (CPI-U), Houston-Galveston-Brazoria Average, Gasoline;

all as published by the U. S. Department of Labor. The adjustment shall be based upon the most current data available on November 15, shall be rounded to the nearest increment of $0.50 cents and shall be effective on the following January 1. Notice of the adjusted rates shall be published one time in a daily newspaper of general circulation within the city and filed in the city secretary's office on or about December 1. The director may establish and promulgate regulations relating to the adjustment process.

(e) When a vehicle is received by a storage lot and fees are collected, an additional fee stated for this provision in the city fee schedule shall be collected and remitted to the police department regardless of the origin of the tow to defray the costs of enforcement of complaints related to the towing and storage of a vehicle without the consent of the vehicle owner. The time and method of remittance of the additional fee prescribed in this subsection shall be established by the police department so as to make the transfer of funds as close to the date and time of the release of the vehicle from the storage as is practical or possible. The time and method of remittance may include the electronic transfer of funds at the time of the release of the vehicle or at a later time as specified by the police department. This subsection does not apply to a vehicle submitted for auction.

(f) If the vehicle owner is present when an auto wrecker is attempting to tow a vehicle, and the vehicle owner does not desire the vehicle to be towed, no charge shall be made, and the vehicle owner shall be allowed to take possession of the vehicle if the vehicle has not been hooked up by the auto wrecker. If the motor vehicle has been lawfully hooked up to the auto wrecker, but not towed from the scene, the vehicle shall be released to the vehicle owner upon payment of one-half the regular auto wrecker fee. This section shall not apply where the vehicle owner is unable to remove the vehicle from the scene immediately if the vehicle were released to the vehicle owner.

(g) The towing of a vehicle and a trailer being towed by the vehicle shall constitute two separate tows and shall require the removal of both the vehicle and the trailer to the same licensed storage facility, unless otherwise authorized by a law enforcement officer.

(Ord. No. 04-497, § 3, 5-26-04; Ord. No. 05-1271, § 6, 9-22-05; Ord. No. 08-52, § 34, 1-16-08, eff. 1-26-08; Ord. No. 09-631, § 2, 6-30-09; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1012, § 6, 11-30-2011, eff. 1-1-2012; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2021-753, § 5, 9-1-2021)

Sec. 8-124. Oral report to police of tows authorized by persons other than vehicle owner.

Whenever a wrecker driver is authorized to pick up and tow any vehicle when such authorization was given by someone other than the vehicle owner, the wrecker driver shall make an oral or electronic report to the police department within one hour of the time the vehicle was picked up. An electronic report shall be filed using an authorized electronic reporting system implemented by the police department. In an oral report the wrecker driver shall inform the police department of the license plate number of the vehicle towed, its vehicle identification number, the location from which the vehicle was towed, the date and time the vehicle was towed, and the location to which the vehicle was towed. This section shall not apply when the vehicle was towed pursuant to authorization by a city

police officer, a parking compliance officer or personnel designated by the police chief acting pursuant to section 26-298 of this Code and the wrecker driver has signed the copy of the wrecker slip retained by the city police department.
(Ord. No. 04-497, § 3, 5-26-04; Ord. No. 09-631, § 3, 6-30-09; Ord. No. 09-1135, § 9, 11-18-09; Ord. No. 2019-1015, § 31, 12-11-2019)

Sec. 8-125. Reports to police of towing pursuant to lienholder's request.

(a) Whenever any person tows, carries, transports or otherwise takes a motor vehicle pursuant to a request by a lienholder incident to a lawful repossession, the person so taking the vehicle who does not file an authorized electronic report shall make a verbal report to the police department within one hour of the time of picking up the vehicle, which shall include the following information:

(1) The license plate number of the repossessed motor vehicle;

(2) The vehicle identification number of the repossessed motor vehicle;

(3) The year, make, model and color of the repossessed motor vehicle;

(4) The name, address and telephone number of the lienholder who requested the taking of the vehicle;

(5) The state license plate number of the auto wrecker used, and the name and Texas driver license number of the wrecker driver;

(6) The location from which the vehicle was towed, the date and time that the vehicle was picked up and the name, street address and telephone number of the place to which the vehicle was taken for storage.

(b) Within 72 hours of the time of picking up the vehicle the person shall also mail or deliver to the police department a written report of the repossession, including:

(1) The information specified above;

(2) The reporting number assigned by the police department by telephone at the time the oral report was made as required above; and

(3) A copy of the court order or other legal document(s) that authorized the repossession.

(c) The chief of police shall designate a telephone number for the filing of oral reports under this section and an address for the filing of written reports under this section. The chief of police may also promulgate a form to be used for the filing of the written reports.
(Ord. No. 04-497, § 3, 5-26-04; Ord. No. 09-631, § 4, 6-30-09)

Sec. 8-126. Police-authorized tow service agreement (PATSA).

(a) The police chief may execute agreements for the mayor and on behalf of the city with persons to perform police-authorized tows. The right to enter into such agreements shall be extended on a uniform basis to all eligible persons.

(b) The police chief may refuse to enter into an agreement hereunder if the tow operator (including partners if a partnership and stockholders if a corporation) or any employee has had an agreement terminated for cause within the preceding period of five years. The police chief may require an affidavit and the furnishing of business records to demonstrate compliance with the foregoing provision. The foregoing provision shall apply to PATSAs that are not renewed or are terminated by the tow operator under threat of termination for cause in the same manner as to those that have actually been terminated for cause. In addition, the police chief may refuse to enter into a PATSA with individuals (or associated entities) who have a history of complaints with any government agency that demonstrate a pattern of negative behavior and an unwillingness to take corrective action when notified. This includes suspensions and license or contract revocations. The police chief may consider the applicant's history of complaints or infractions with any governing body concerning the towing of vehicles without the vehicle owner's consent when determining whether to execute a PATSA.

(b-1) *Auto wrecker requirements.* Each auto wrecker that will be utilized under the terms of a PATSA shall:

(1) Be registered with the city under a current PATSA. The police department shall inspect the auto wrecker and if it is found in compliance, shall issue proof of registration (a medallion) that shall be attached to the auto wrecker in the same manner as provided in section 8-111(e); registration under this section shall also serve as registration for private property tows;

(2) Have a mounted light bar that conforms to the requirements of Chapter 547 of the Texas Transportation Code;

(3) Be equipped with wheel dollies, except on heavy duty wreckers and rollback type trucks; and

(4) Carry at all times:

a. Warning devices for stopped vehicles consisting of:

[1] Three flares, each of which shall be capable of being seen at a distance of not less than 600 feet under normal conditions at nighttime, or

[2] Three emergency reflective triangles that conform to the requirements of Federal Motor Vehicle Safety Standard No. 125;

b. A push broom with a handle of not less than 36 inches and a head of not less than 18 inches;

c. No less than five gallons of dry sand or other absorbent that is at least as effective as sand in absorbing liquid;

d. A container to carry glass and debris cleaned from the roadway when picking up a wrecked vehicle;

e. A shovel with a flat edge of not less than nine inches and a handle of not less than 36 inches;

f. A wrecking bar of not less than 36 inches in length, with a wedge-shaped head; and

g. At least one ten pound fire extinguisher or two five pound multiple purpose fire extinguishers, in good working condition.

(b-2) *Wrecker driver requirements.* Tow operators shall require their wrecker drivers who will drive auto wreckers under the terms of a PATSA to wear:

(1) A Class 3, Level 2 reflective vest, shirt, or jacket meeting the ANSI/ISEA requirements for high visibility safety apparel at all times while working outside of the auto wrecker;

(2) Closed toe shoes; and

(3) A vest or shirt displaying, on the front of the shirt or vest, the name of the tow operator as it is registered with the city.

(b-3) *Wrecker driver trainees.* Tow operators operating pursuant to a current and valid PATSA may utilize wrecker driver trainees to provide recovery services and assistance to wrecker drivers. Wrecker driver trainees shall be licensed in accordance with section 8-131 of this Code.

(c) An annual agreement fee in the amount stated for this provision in the city fee schedule per covered auto wrecker shall be paid by the tow operator to the city for each agreement. A tow operator may add an additional auto wrecker to an agreement upon payment of the annual fee, which may be prorated.

(d) Agreements under this section are not exclusive. The city shall not be precluded from using city-owned auto wreckers to perform police-authorized tows, such as for certain vehicles that are detained for criminal investigation needs, or from entering into other contracts and agreements, such as for towing of vehicles involved in parking violations.

(e) The agreements shall conform to the following requirements and terms, which shall be incorporated therein by reference:

(1) Each auto wrecker shall be allowed to perform police-authorized tows in only

one 'zone,' which for purposes of the agreements shall mean one of the five service areas that are described and depicted in Exhibits A and B to Ordinance 84-560. Consistent with the foregoing requirement, the agreement shall include the following clause:

"Operator shall choose one specific zone for each auto wrecker that is to be utilized by the Operator to perform police-authorized tows. Operator shall not allow an auto wrecker to tow any vehicle outside of the approved zone, except when authorized by the police department. No tow hereunder shall exceed a maximum distance of 20 miles unless the tow destination is located within the zone. Violation of this provision is grounds for revocation of this Agreement."

(2) The PATSA shall include a clause setting forth the operator's obligation to obtain and maintain required insurance coverages and minimum insurance amounts in effect during the term of the agreement. The required insurance coverages and minimum insurance amounts shall be determined by the police chief in consultation with the director of the department of administration and regulatory affairs.

(3) The agreement shall include the following clause regarding fee requirements:

"The Operator shall charge no fees for servicing a police scene in excess of the fees authorized under city ordinance for vehicles towed without the consent of a vehicle owner. Further, the operator shall not obligate the owner of a vehicle removed from a police scene and placed in storage to pay any fees in excess of those authorized for a vehicle delivered to a state licensed vehicle storage facility without the consent of the vehicle owner. Under no circumstances will a vehicle owner be charged a fee of any type in excess of the fees applicable had the vehicle been towed without the vehicle owner's consent."

(f) It shall be unlawful for the driver of any auto wrecker that is not then being operated under a current and valid PATSA to respond to a police scene or be or remain at a police scene if the police scene is not situated in the traffic management area (zone) for which the auto wrecker has been authorized under subsection 8-126(e)(1) of this Code. It is an affirmative defense to prosecution under this section that the driver of the auto wrecker was called to the police scene by the law enforcement officer in charge of the scene, a parking compliance officer or other personnel designated by the police chief or by a vehicle owner requiring towing services from the police scene.

(g) Tow operators and auto wrecker drivers operating pursuant to a current and valid PATSA shall report the towing of vehicles via an authorized electronic reporting system implemented by the police department.

(h) Every applicant for a PATSA shall make application therefor on an application form furnished by the police chief and prescribed by the automotive board, which application shall be signed and sworn to as herein provided and shall include, among other things, the following information respecting the applicant:

(1) Trade name of each business that the applicant has engaged in during the five-year period preceding the filing of such application.

(2) Address of the applicant's principal office or establishment in the city.

(3) Whether the applicant has ever been arrested for, convicted of, or given deferred adjudication for an offense listed in section 1-10(a)(2) of this Code, and if a partnership, the answer shall be as to all members of the partnership, and if a corporation, shall be as to all officers of the corporation.

(4) The name and mailing address of each owner or principal of the applicant and copies of the assumed-name registration if the business will be operated under an assumed name.

(5) If the applicant is a corporation, a certificate of good standing from the Texas Secretary of State for a Texas domestic corporation or a certificate of authority to do business in Texas if a foreign corporation, along with the names and addresses of all officers and the corporation's registered agent in Texas.

(6) If the applicant is a partnership, the partnership registration, if any, and the names and addresses of all the general partners.

(7) Each applicant shall submit himself to be fingerprinted at a place designated by the police department. The application shall be signed by a) the owner if the applicant is a sole proprietorship or b) an authorized person if the applicant is a corporation or a general partnership.

(i) If the application is by a corporation, the same shall be signed and sworn to by a duly authorized officer thereof, if by a partnership, then by one of the general partners therein, and if by an individual, then by such individual personally.

(j) Such application, properly filled out and executed, shall be delivered by the applicant to the police chief or his duly authorized representative.

(k) If the application is denied because of a conviction or deferred adjudication for an offense listed in section 1-10(a)(2) of this Code, the applicant shall have the right to appeal such denial to the automotive board under the terms and conditions provided for in section 8-57 of this Code, and the automotive board shall follow the procedure set forth in that section.
(Ord. No. 04-497, § 3, 5-26-04; Ord. No. 05-1271, § 7, 9-22-05; Ord. No. 07-1040, § 1, 9-12-07; Ord. No. 09-631, § 5, 6-30-09; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2014-482, §§ 6—9, 5-28-2014; Ord. No. 2021-753, §§ 6—11, 9-1-2021)

Sec. 8-127. Tow and go—Freeway tow agreement.

On recommendation of the mayor and approval by the city council, the police chief may execute non-exclusive agreements on behalf of the city with any tow operator then holding a valid PATSA under section 8-126 of this Code to provide towing or emergency road service on freeways in the manner and according to specifications required by this Code and described in such agreements.

Such agreements shall be in a form approved by the city attorney and shall provide, without limitation, the following:

(1) That the tow operator shall remove wrecked or stalled vehicles from a designated segment of a freeway on a 24-hour basis and shall respond to the scene within the time designated in the agreement;

(2) That the term of the agreement shall not exceed five years from date of execution unless terminated earlier as outlined in the agreement;

(3) That the tow operator shall perform non-consent tows from a freeway and remove all such vehicles to a licensed storage facility within the zone for the rate set forth in section 8-123 of this Code;

(4) That the tow operator shall remove to the nearest place of safety a wrecked vehicle, regardless of location, or a stalled vehicle in a moving lane for the rate established under section 8-123 of this chapter;

(5) That the tow operator shall tow a stalled vehicle located on a shoulder to a safe place off the freeway within one mile from the nearest freeway exit at the rate prescribed and subject to the conditions established in the agreement, provided, however, that if the vehicle owner is unable to pay the tow operator at the time of service, such vehicle shall be towed to the nearest licensed storage facility that is lighted and manned on a 24-hour basis, provides telephone and other access to the vehicle owner, and will not charge any storage-related fees for the first 48 hours;

(6) That during the period each day from 10:00 p.m. to 6:00 a.m., the tow operator shall tow a stalled vehicle to a safe place in accordance with this contract. If there is no safe place, the vehicle shall be towed to the nearest licensed storage facility that is lighted and manned on a 24-hour basis, provides the vehicle owner with access to a telephone and other facilities, and will not charge any storage-related fees for the first 24 hours;

(7) That the tow operator shall provide continuous coverage of its designated freeway segment, respond immediately to a call for assistance from a law enforcement officer, and patrol its segment as required by the agreement;

(8) That the tow operator shall cooperate with all law enforcement and other public service employees responding to or present at a police scene;

(9) That solicitation of business of any kind whatsoever at a police scene is prohibited;

(10) That the tow operator shall not employ any wrecker driver who does not meet the requirements of this Code relating to towing of vehicles and any current and valid PATSA;

(11) That, except as otherwise provided in this chapter, the tow operator shall respond to a police scene with no more towing capacity than necessary, based on the number of wrecked or stalled vehicles at the scene, to minimize hazards and traffic obstructions within the time designated in the agreement and will expeditiously remove from the freeway any wrecked or stalled vehicle, debris, and other traffic impediment;

(12) That any failure by the tow operator to timely respond to a call for assistance shall authorize an incident management supervisor or a law enforcement officer at a police scene who has determined that public emergency then exists to direct any PATSA auto wrecker to remove any wrecked or stalled vehicle, debris, or other traffic hazard or impediment;

(13) That emergency road service shall consist of providing towing, gasoline, tire changing, or other services as designated in the agreement;

(14) That the police chief is authorized, upon a determination of a public emergency or when required in the interest of public safety, to direct the tow operator to direct its patrol activities to specific times and/or portions of the tow operator's freeway segment;

(15) That the tow operator shall report any wrecked or stalled vehicle or other hazardous road condition to the police department and remain at the scene until a law enforcement officer arrives or he receives authorization to remove the hazardous condition;

(16) That authorization to remove a wrecked or stalled vehicle shall be provided in the manner and form specified by the agreement; and

(17) That removal of any wrecked or stalled vehicle at the direction of a law enforcement officer shall be documented on a police department vehicle disposition form.

(Ord. No. 04-497, § 3, 5-26-04; Ord. No. 05-1271, § 8, 9-22-05; Ord. No. 2011-324, § 2, 5-4-2011; Ord. No. 2021-753, §§ 12, 13, 9-1-2021)

Sec. 8-128. Wreckers not to solicit business at scene of accident until police depart scene.

It shall be unlawful for any wrecker driver to solicit the business of towing, removing or repairing any abandoned or disabled vehicle at a police scene by words, cards, circulars or gestures, until such time as all law enforcement officers have departed the scene.

(Ord. No. 04-497, § 3, 5-26-04; Ord. No. 09-1347, § 3, 12-16-09)

Sec. 8-129. Obedience to police at accident scene; interference with police.

All wrecker drivers at a police scene shall obey all lawful orders given them by any law enforcement officer investigating such scene and shall not in any manner knowingly or intentionally interfere with such law enforcement officer in the performance of his duty.
(Ord. No. 04-497, § 3, 5-26-04)

Sec. 8-130. Reserved.

Subdivision B. Wrecker Driver Licenses

Sec. 8-131. Wrecker driver and wrecker driver trainee—license required, qualifications.

(a) It shall be unlawful for any person to perform a nonconsent tow unless he has a current wrecker driver license issued by the city, which license shall be prominently displayed on his person during any nonconsent tow.

(b) It shall be unlawful for any person to allow, permit or cause another to drive or operate any auto wrecker for the purpose of performing a nonconsent tow unless the person has a current wrecker driver license issued by the city.

(c) It shall be unlawful for any person to allow, permit, or cause a person with a wrecker driver trainee license to drive any auto wrecker on the public roadways.

(d) To qualify for a wrecker driver's license, an applicant must:

(1) Be at least 18 years old;

(2) Hold a valid driver's license and towing operator's license issued by the state;

(3) For the initial application, present proof of successful completion of a defensive driving course approved by the Texas Education Agency within the preceding 12 months;

(4) Not have been convicted of an offense pertaining to wrecker drivers listed in section 1-10 of this Code;

(5) Not have been involved in more than two motor vehicle accidents within any 12 month period during the preceding 36 months in which the police chief could reasonably determine from a government-issued crash report that the applicant was at fault;

(6) Be subject to no outstanding warrants of arrest; and

(7) Provide evidence that he has passed the drug screening test required by section 8-132(c) of this Code.

(e) An applicant for a wrecker driver trainee license must meet the requirements of items (d)(1),(2), (4), and (6) of this section.
(Ord. No. 05-116, § 5, 2-9-05; Ord. No. 2013-1159, § 5, 12-11-2013; Ord. No. 2014-482, §§ 10—12, 5-28-2014; Ord. No. 2021-753, § 14, 9-1-2021)

Sec. 8-132. Application.

(a) Each person desiring a wrecker driver license shall submit an application to the police chief on a form furnished by the city. A wrecker driver may only operate an auto wrecker for the tow operator listed on the wrecker driver's license application. Individuals desiring to operate an auto wrecker for more than one tow operator must submit a wrecker driver license application and the accompanying license fee for each tow operator for whom the wrecker driver license-applicant seeks to operate an auto wrecker. On the application the applicant shall set forth:

(1) The applicant's full name and residence address;

(2) The applicant's date of birth, place of birth, sex, race, and each address where he has resided in the five years immediately preceding his application;

(3) Whether the applicant has been arrested or jailed for any criminal offense in this state or any other state or country, and if so, the applicant shall set out the offense for which he was arrested or jailed, the date of the arrest or confinement, and the place, court and case number of the case;

(4) The number of the applicant's current driver's license issued by the state and a list of all driver licenses the applicant has held in the three years immediately preceding submission of the application showing the state that issued each license and the type of license held. The applicant shall also provide the police chief evidence that he has a current towing operator's license (or training license for wrecker driver trainee applications) issued by the state and shall complete a form allowing the police department to obtain the applicant's driving record from the state and from any state that had issued the applicant a driver license within the three years immediately preceding submission of the application;

(5) Evidence that the applicant has passed a drug screening test administered within the 30 days preceding the date of the application under subsection (c) below; and

(6) Such other information as the police chief finds relevant.

After the application has been completed, the applicant shall sign the application and shall execute a sworn affidavit, or a declaration pursuant to Texas Civil Practice and Remedies Code § 132.001, that all matters stated in the application are true and correct.

The applicant shall also submit himself at such times and places designated by the police chief to be photographed and fingerprinted.

(b) Upon initial application for a wrecker driver license or wrecker driver trainee license and at each renewal, the police chief shall cause each applicant's criminal history to be researched by the Texas Department of Public Safety. The applicant shall complete any forms required for the police chief to obtain the report and shall provide funding to the police chief in a manner specified to cover any fees imposed by any state agency for the report. This provision shall not be construed to preclude the police chief from obtaining interim criminal history reports at the expense of the city.

(c) Each person desiring a wrecker driver trainee license shall submit an application that includes the information required in items (a)(1), (2), (3), and (4) and subsection (b) of this section. A wrecker driver trainee license issued under this section shall expire on the sixty-first day after the date of issuance and may not be renewed. A wrecker driver trainee may apply for a wrecker driver license within 90 days after the expiration of his trainee license for a reduced fee as provided in section 8-133 of this Code.

(d) Evidence that the applicant has passed the drug screen test administered within the 30 days preceding the date of the application shall be required for original applicants and all renewals; provided, however, that a PATSA wrecker driver who is subject to random drug tests is not required to submit a drug test for a license renewal. The police chief shall promulgate rules and regulations relating to the drug screening test. The test procedure shall be equivalent to that prescribed by the mayor for pre-employment drug screenings for city employees. The police chief or his designee shall authorize laboratories and facilities that meet nationally recognized standards to obtain samples and perform the tests. The responsibility for obtaining the test and all costs associated therewith shall rest with the applicant.
(Ord. No. 05-116, § 5, 2-9-05; Ord. No. 2013-1159, § 5, 12-11-2013; Ord. No. 2014-482, §§ 13, 14, 5-28-2014; Ord. No. 2021-753, § 15, 9-1-2021)

Sec. 8-133. Fees.

Any person desiring a wrecker driver license or wrecker driver trainee license shall pay the non-refundable fee stated for this provision in the city fee schedule at the time he submits his application for the license. There shall also be a fee for a wrecker driver license applicant who has, or has had within past 90 days, a valid wrecker driver trainee license. In addition, PATSA drivers shall pay the nonrefundable fee stated in the city fee schedule to the police department.
(Ord. No. 05-116, § 5, 2-9-05; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2014-482, § 15, 5-28-2014; Ord. No. 2021-753, § 16, 9-1-2021)

Sec. 8-134. Issuance; denial; hearing.

(a) Any person desiring a wrecker driver license or wrecker driver trainee license shall pay the non-refundable fee stated for this provision in the city fee schedule at the time he submits his application for the license. There shall also be a prorated fee for a wrecker driver license applicant who has, or has had within past 90 days, a valid wrecker driver trainee license. The police chief shall approve an application and issue the wrecker driver license or wrecker driver trainee license after payment of the application fee and completion of the investigation of the criminal and driving record of the applicant, unless:

(1) The police chief determines that the applicant is not qualified under section 8-131;

(2) The information provided in the application is materially false or incorrect or the applicant has failed in any material way to comply with this article;

(3) The applicant has had a wrecker driver license revoked during the preceding one year period; or

(4) The applicant is not in compliance with the criminal history provisions of section 1-10 of this Code.

(b) For purposes of this article, the police chief may consider an applicant to have been convicted of an offense when the applicant was charged with an offense listed in section 1-10 of this Code pertaining to wrecker drivers, and

(1) The applicant entered a plea of guilty or nolo contendere;

(2) The court deferred further proceedings without entering an adjudication of guilt and placed the person under the supervision of the court or a court officer; and

(3) After the period of supervision, the court dismissed the proceedings and discharged the person.

In the instances set forth in this subsection, and in accordance with Texas Occupations Code section 53.021, the police chief may propose denial of the application upon his determination that the applicant may pose a continued threat to public safety, or employment of the applicant as a wrecker driver or wrecker driver trainee, as applicable, would create a situation in which the person has an opportunity to repeat the prohibited conduct.

(c) The police chief may delay his decision on an application until final adjudication when the applicant is under indictment for or has charges pending for an offense listed in section 1-10 of this Code pertaining to wrecker drivers, and shall promptly inform the applicant of the reason for the delay. Upon receiving notice of the reason for the delay, the applicant shall be entitled to an appeal of the police chief's delay in the same manner as provided in sections 8-134 and 8-135 of this Code.

(d) In the event that an application is proposed for denial, the police chief shall promptly inform the applicant in writing of the reasons for the proposed denial and of the applicant's right to a hearing before the automotive board regarding the proposed denial. The notice shall be sent by United States certified mail, return receipt requested, to the applicant's address set out in the application.

(e) The applicant may perfect his appeal of the proposed denial by a letter addressed to the chairman of the automotive board and delivered to the chairman of the automotive board within 15 days after the date that notice of the proposed denial of the application is placed in the United States mail. The letter of appeal must state that an appeal from the decision of the police chief is desired. The appeal process shall be conducted in accordance with rules promulgated by the automotive board for that purpose. If the proposed denial is based in whole or in part upon section 1-10 of this Code, then the notice and hearing procedures shall also include any requirements to comply with section 1-9 of this Code and applicable state laws. The determination of the automotive board with respect to the application shall be final.

(Ord. No. 05-116, § 5, 2-9-05; Ord. No. 2011-1012, § 7, 11-30-2011, eff. 1-1-2012; Ord. No. 2013-1159, § 6, 12-11-2013; Ord. No. 2014-482, §§ 16, 17, 5-28-2014; Ord. No. 2016-456, § 6, 6-15-2016)

Sec. 8-135. Standards for review.

(a) An applicant whose application for a wrecker driver license or wrecker driver trainee license has been proposed for denial pursuant to item (4) of subsection (a) of section 8-134 of this Code may qualify for a license only if the automotive board determines that the applicant is presently fit to engage in the occupation of a wrecker driver. The standards for review that the automotive board shall use in determining the applicant's fitness shall be:

(1) The extent and nature of the applicant's past criminal activity;

(2) The age of the applicant at the time of the commission of the crime;

(3) The amount of time that has elapsed since the applicant's last criminal activity;

(4) The conduct and work activity of the applicant prior to and following the criminal activity;

(5) Evidence of the applicant's rehabilitation or rehabilitative effort while incarcerated or following release; and

(6) Other evidence of the applicant's fitness, including signed letters of recommendation from:

a. Prosecution, law enforcement, and correctional officers who prosecuted, arrested, or had custodial responsibility for the applicant;

b. The sheriff and police chief in the community where the applicant resides; and

c. Any other person in contact with the applicant.

(b) The applicant has the responsibility, to the extent possible, to obtain and provide to the automotive board the recommendations of the prosecution, law enforcement, and correctional authorities as required by item (6) of subsection (a) of this section.

(c) In addition to fulfilling the requirements of subsection (b) of this section, the applicant shall furnish proof in the form required by the automotive board that the applicant has:

(1) Maintained a record of steady employment;

(2) Supported the applicant's dependents;

(3) Maintained a record of good conduct; and

(4) Paid all outstanding court costs, supervision fees, fines, and restitution ordered in any criminal case in which the applicant has been convicted.

(d) Following the opportunity for the applicant to be heard, the automotive board may approve the license, deny the license, or condition the approval of the license on such terms and conditions as the automotive board deems appropriate, based on the evidence received at the hearing and consistent with the standards of review contained in this section.
(Ord. No. 05-116, § 5, 2-9-05; Ord. No. 2011-1012, § 8, 11-30-2011, eff. 1-1-2012; Ord. No. 2013-1159, §§ 7—9, 12-11-2013; Ord. No. 2014-482, §§ 18, 19, 5-28-2014)

Sec. 8-136. Term; renewal; transfer; replacement of lost or destroyed license.

(a) Each wrecker driver license shall expire each year on the last day of the wrecker driver license holder's birth month. A license may be renewed by filing an application pursuant to section 8-132 of this Code at least 30 days prior to the expiration of the license and paying the application fee pursuant to section 8-133 of this Code. A renewal license application shall be reviewed and approved pursuant to section 8-134 of this Code.

No license shall be renewed more than 30 days after the date of its expiration. If a license had expired and not been renewed within 30 days, the applicant may apply for a new license as an initial applicant. The fee for such a new license shall be the fee set out for an original license.

(b) A lost or destroyed wrecker driver license may be replaced upon the holder's compliance with the following conditions:

(1) The filing of an offense report with the police department stating that the license has been lost or stolen and setting out the details of how the license was lost or stolen, or if such facts are not known, setting out the details of where and when the license holder last saw the license and when its loss was discovered;

(2) Appearing at the police department for a replacement photograph and fingerprinting; and

(3) Paying the license replacement fee stated for this provision in the city fee schedule.

A replacement wrecker driver license shall expire on the date of expiration for the license that was lost or stolen.

(c) A wrecker driver wishing to transfer to a different tow company shall pay the license transfer fee stated in the city fee schedule.
(Ord. No. 05-116, § 5, 2-9-05; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2013-1159, § 10, 12-11-2013; Ord. No. 2021-753, § 17, 9-1-2021)

Sec. 8-137. Revocation, suspension, and refusal to renew.

(a) The police chief may suspend or revoke a wrecker driver license or wrecker driver trainee license if:

(1) Any information supplied in the license application was materially false or incorrect;

(2) The license was issued through error;

(3) The licensee has failed to comply with any applicable provision of the license or this chapter;

(4) The licensee has been convicted of violating state laws or city ordinances;

(5) The licensee is under indictment for or has a charge pending for an offense listed in section 1-10 of this Code pertaining to wrecker drivers; or

(6) The licensee has failed to comply with any applicable state law or regulation regarding nonconsent towing.

(b) A wrecker driver's or wrecker driver trainee's license is automatically revoked if his state-issued driver's license, state-issued incident management towing operator's license, or state-issued towing operator training license (state-issued license) is suspended or revoked. A wrecker driver or wrecker driver trainee shall notify the police chief's designee within three days of a suspension or revocation of any of his state-issued licenses and shall immediately surrender his city wrecker driver's license or wrecker driver trainee's license to the police chief's designee.

(c) A revoked wrecker driver license may not be renewed and shall not be subject to reissuance for a one year period as provided in section 8-134 of this Code. A suspended wrecker driver license may not be renewed until the period of suspension has expired.

(d) An individual whose wrecker driver or wrecker driver trainee license is revoked or suspended under subsection (a) of this section is entitled to an appeal in the same manner as provided in sections 8-134 and 8-135 of this Code upon receipt of written notice of the revocation or suspension of his license.
(Ord. No. 05-116, § 5, 2-9-05; Ord. No. 2013-1159, § 11, 12-11-2013; Ord. No. 2014-482, § 20, 5-28-2014; Ord. No. 2016-456, § 7, 6-15-2016; Ord. No. 2021-753, § 18, 9-1-2021)

Secs. 8-138—8-140. Reserved.

DIVISION 3. NONCONSENT STORAGE LOTS*

Subdivision A. General Provisions

Sec. 8-141. General; state license required.

(a) Any person who holds a valid license pursuant to the Vehicle Storage Facility Act (Chapter 2303, Texas Occupations Code) may store motor vehicles towed without the consent of the vehicle owner.

(b) All nonconsent storage lots in the city are subject to the provisions of this division and the applicable provisions of section 28-34 of this Code. The provisions of this division do not apply to a vehicle storage facility operated by a person licensed under the Texas Motor Vehicle Commission Code (chapter 2301, Texas Occupations Code).

(c) All nonconsent storage lots shall have not less than 1.25 acres of contiguous space dedicated for the storage of motor vehicles; provided however, nonconsent storage lots operated on or before February 23, 2022, shall be exempt from the requirements of this subsection, provided the nonconsent storage lot has been operated continuously without termination, revocation, or lapse longer than 90 days.

(d) For purposes of this division, the term vehicle owner includes the registered owner of a vehicle or other person authorized by law to retrieve a vehicle from a storage lot.

(e) The provisions of this article are cumulative of applicable state law and regulations concerning vehicle storage facilities. To the extent there exists any difference or inconsistency between the provisions of this article and applicable state law or regulations, the more restrictive shall apply.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-142. Police private storage lots.

Only nonconsent storage lots that have a current police private storage lot agreement may store vehicles towed under the authority of a city police officer.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-143. Police private storage lot agreement (PPSLA).

(a) The police chief may execute PPSLAs for the mayor on behalf of the city with persons who hold a valid license issued pursuant to the Vehicle Storage Facility Act to store motor vehicles towed under the authority of a city police officer. PPSLAs shall contain such other terms and conditions as the police chief determines to be necessary or desirable to safeguard the storage and disposal of motor vehicles towed without the vehicle owner's consent. A PPSLA shall be personal to the nonconsent storage lot and owner to whom it is issued and shall become void upon any attempted assignment, sublease, lease, sale or other transfer, unless prior written approval has been given for the same by the police chief. A PPSLA shall be for a term stated therein and shall be subject to suspension or termination pursuant to all applicable conditions and requirements stated in the PPSLA.

(b) The police chief may refuse to enter into a PPSLA hereunder if the nonconsent storage lot owner (including its partners if a partnership and stockholders if a corporation) or any storage lot operator has had either a PPSLA terminated or a license issued pursuant to the Vehicle Storage Facility Act revoked within the preceding five-year period. The police chief may require a business records affidavit to demonstrate compliance with the foregoing provision. Without limiting the foregoing, in any instance in which a PPSLA is requested for a tract or parcel of land upon which there has been a police private storage lot holding a PPSLA that was terminated during the preceding five years, the applicant shall disclose the names of the intended nonconsent storage lot owners and any storage lot operators, and the PPSLA shall not be entered into unless the intended nonconsent storage lot owner and storage lot operator demonstrate full

*__Editor's note—__Ord. No. 2022-151, § 4, adopted February 23, 2022, amended and rearranged Division 3, Subdivisions A—G as new Division 3, Subdivisions A and B, as set out in Exhibit A of said ordinance. Formerly said division was entitled private storage yards and derived from Ord. No. 01-1079, § 5, adopted December 5, 2001 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

compliance with the applicable provisions of this section. The foregoing provisions shall apply to a PPSLA that is not renewed or is terminated by the nonconsent storage lot under threat of termination in the same manner as a PPSLA that has been terminated by the city. The police chief may consider the history of complaints against the applicant or the applicant's infractions with any governing body concerning the storage of vehicles towed without the vehicle owner's consent when determining whether to execute a PPSLA with the owner of a nonconsent storage lot. For purposes of this section, applicant means the owner of a nonconsent storage lot who seeks to enter into a police private storage lot agreement with the city.

(c) Application. The owner of a nonconsent storage lot seeking a PPSLA shall file an application with the police department on a form provided by the city, accompanied by the nonrefundable application fee stated for this provision in the city fee schedule. On the application, the applicant shall set forth:

(1) The name and address of the applicant and any storage lot operator. If the applicant is an individual, the application shall so state. If the applicant is a partnership, the name and address for each partner shall be set out. If the applicant is a corporation, the applicant shall set forth:

a. The name and address of the corporation;

b. The name and address of each corporate officer;

c. The name and address of each person owning a controlling interest in the corporation. If no single person owns a controlling interest in the corporation, the applicant shall list the names of each person who owns 20 percent or more of the interest in the corporation. If the controlling interest is held by an entity, and not by one or more individuals, the applicant shall list each individual who owns 20 percent or more of the interest in any such entity.

(2) The street address and the full property description of the nonconsent storage lot, the tow zone in which the storage lot is located, and the number of vehicle storage or parking spaces thereon that will be used for the storage of motor vehicles.

(3) The telephone number of the storage lot.

(4) The business name of the storage lot.

(5) The date of birth, place of birth, sex, race, and address information for the preceding five years for each person listed under item (1) of this subsection.

(6) Whether any person listed under item (1) above has been convicted of any criminal offense in this state or any other state or country within the five years immediately preceding the application date or has spent any time in jail or prison within the five years immediately preceding the application date due to a conviction; provided, however, convictions for any traffic offenses that are classified as no greater than a Class C misdemeanor under the laws of Texas are not required to be listed on the application. If any such person has been convicted of any offense required to be listed on the application or been in jail or prison due to a conviction, the applicant shall set out the offense convicted of, the date of the conviction, and the place, court and case number of the case.

(7) Each person listed in the application shall be fingerprinted at a location designated by the police chief.

(8) An application under this section shall be signed by the applicant. If a partnership, it shall be signed by each partner. If a corporation, it shall be signed by the president and attested by the corporate secretary. In all cases, the person signing shall execute an affidavit, on the application form, that the statements contained in such application are true and correct.

(9) The PPSLA shall contain a provision that the applicant agrees that the nonconsent storage lot will be operated in

compliance with all amendments or additions to the ordinances regulating storage lots as may be adopted by city council, and any requirements regarding the storage, handling or release of vehicles that have been towed without the vehicle owner's consent that may be imposed by any court of competent jurisdiction.

(d) The annual PPSLA fee per nonconsent storage lot stated for this provision in the city fee schedule shall be payable by the storage lot owner to the city on or before the date specified in the PPSLA. The PPSLA fee is nonrefundable and not subject to proration.

(e) A PPSLA is not exclusive, and the city shall not be precluded from directing that vehicles, such as those impounded for criminal investigations, be taken to other premises.

(f) Each PPSLA holder shall report the receipt and release of vehicles delivered to its storage facility without the consent of the vehicle owner via the use of an authorized electronic reporting system implemented by the police department.

(g) Each PPSLA holder shall maintain the minimum insurance amounts and surety bond set forth in the PPSLA. The minimum insurance amounts and surety bond shall be determined by the police chief after consulting with the director of the department of administration and regulatory affairs.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-144. Bond required.

(a) Each nonconsent storage lot owner who has not executed a current, valid PPSLA shall file with the city a financial guarantee bond executed by the owner as principal. The bond shall be in a form approved by the city attorney and issued by a corporate surety authorized and admitted to write surety bonds in Texas. The bond shall be filed with the auto dealers detail of the police department.

(b) The purpose of the bond is to satisfy any fees collected pursuant to section 8-123(e) of this Code but not remitted before the due date established in section 8-183(e) of this Code. The amount of the bond for existing nonconsent storage lots shall be equal to the average of the previous 12 months of release fees collected pursuant to section 8-123(e). For new nonconsent storage lots, the amount of the bond shall be $5,000 for the first year. For each subsequent year the bond amount will be equal to the average of the previous 12 months of release fees collected pursuant to section 8-123(e).

(c) The bond shall be payable to the city upon the nonconsent storage lot owner's failure to remit the fees collected pursuant to section 8-123(e) of this Code by the 15th day of the month following the month the fees were collected.

(d) The term of the bond shall be for one calendar year from the date of issuance and shall continue to renew annually without amendment unless cancelled by the surety, who shall provide the nonconsent storage lot and the auto dealers detail of the police department not less than 30 calendar days written notice of cancellation.

(e) The bond shall be kept in full force and effect for the entire duration of the nonconsent storage lot's operation in the city.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-145. Transfer of location.

A nonconsent storage lot shall only operate at the location set out in the state license issued to the vehicle storage facility.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-146. Vehicle records.

(a) Each nonconsent storage lot owner and storage lot operator shall keep written records on each vehicle that is kept or stored on the nonconsent storage lot. Such records shall contain the following information:

(1) The year, make, color, correct license plate number, state issuing the license and correct vehicle identification number of the vehicle.

(2) The date, time and location where the vehicle was towed from.

(3) The name and state driver license number of the wrecker driver and the name of the company towing the vehicle.

(4) The date the vehicle was released, the name of the individual to whom the vehicle was released, or if the vehicle was transferred to another location, the address of that location, the name of the company towing the vehicle and the wrecker driver who made that transfer.

(5) If the vehicle ownership has been transferred due to any action of the nonconsent storage lot or the vehicle has been disposed of or demolished, a copy of the certificate of title issued after the vehicle came into the possession of the nonconsent storage lot, the certificate of authority to demolish, a police auction sales receipt, or a transfer document issued by the state for the vehicle.

(6) All fees charged for the vehicle.

(b) The receipts, records and other information required to be kept by this section, or by section 8-183, shall be kept in the form of a separate file for each vehicle, that shall be maintained either:

(1) By assembling all such data relating to the vehicle under a single staple, clip, binder or other attachment device that securely holds them together;

(2) By assembling all such data relating to the vehicle in a separate envelope or file folder; or

(3) By assembling all such data related to the vehicle in a commonly accepted electronic format that must also be:

(i) Stored in a safe and secure place and in protected folders;

(ii) Protected against loss, damage or overwriting, and

(iii) Held in a format that is not readily corruptible and protected from deliberate or accidental alteration.

All amounts charged or chargeable for each vehicle shall be separately itemized in the file relating to that vehicle. It shall be the duty of each nonconsent storage lot owner and storage lot operator to ensure that the aforesaid separate files for each vehicle are kept on the storage lot premises where the vehicle was towed.

(c) The nonconsent storage lot owner and its storage lot operator shall ensure that any police officer may, without prior notice, inspect and copy all the records required to be kept pursuant to this article without delay upon appearance at the nonconsent storage lot at any time during the hours that the storage lot must ensure that vehicles can be released, provided that either the storage lot operator or someone else who is able to produce the records is present at the nonconsent storage lot. If the storage lot operator or another person who can produce the records is not present at the nonconsent storage lot, then it shall be the duty of the storage lot operator to ensure that he or some other person who is able to produce those records comes to the nonconsent storage lot within 30 minutes of a request made by a police officer during the hours the nonconsent storage lot must ensure that vehicles can be released to their owners. Upon arrival at the nonconsent storage lot, the storage lot operator or other designated person shall make the records available to the police officer without delay. All records required to be maintained for inspection shall be provided to the police officer either:

(1) In person by an employee or agent of the nonconsent storage lot; or

(2) By telephone, facsimile, email, or other method approved by the police chief.

Further, the nonconsent storage lot owner or operator shall ensure that the name of the person who is to produce such records is made known to the police officer at the time he requests to see such records pursuant to this section.

Additionally, if a police officer asks the storage lot operator or any agent or employee of the nonconsent storage lot who is able to produce the records to see the file that is required to be maintained on any specific vehicle or vehicles pursuant to subsection (b) of this section, and informs that person of the date or dates such vehicle or vehicles were towed to the nonconsent storage lot, the storage lot operator or

any employee or agent of his who is able to produce such records shall, without delay, produce the files on those vehicles.

(d) Each record required to be kept by this article shall be kept for two years from the date of the last transaction shown in the record.

(e) The storage lot operator shall utilize and maintain a computerized inventory system approved by the police chief. The storage lot operator shall utilize the Towed Vehicle Reporting Management System (TVRMS), or any other record management system mandated by the police chief, to provide information pertaining to nonconsent tows and to transmit any information required to be submitted to the auto dealers detail.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-147. Conflicts of interests by city officials.

No member of the police department shall have any ownership interest in any nonconsent storage lot required to comply with the provisions of this article or in any towing company that holds a police-authorized tow service agreement. No other appointed or elected official or employee of the city shall have any ownership interest in any nonconsent storage lot where there may be a conflict of interest due to the person's position or duties. This section shall not be applicable to members of the automotive board.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Secs. 8-148—8-170. Reserved.

Subdivision B. Operational Rules, Regulations and Requirements

Sec. 8-171. Persons authorized to operate lot.

(a) No person other than the nonconsent storage lot owner and the storage lot operator shall operate the nonconsent storage lot.

(b) Except for nonconsent storage lot owners, all individuals who release vehicles at nonconsent storage lots must have a storage lot operator's license required pursuant to section 8-81 of this Code.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-172. Business name; fences, paving, signs, etc.

(a) No name other than the name provided on the state vehicle storage facility license and police private storage lot agreement, if applicable, may be used for advertising, for telephone listing or for the conduct of the nonconsent storage lot.

If a nonconsent storage lot owner desires to change the name under which it conducts business, the nonconsent storage lot owner shall file a notice of such change with the police department on a form designated by the police chief at least ten days before the name of the storage lot is changed. Such notice shall show the current name under which business is conducted, the name that will be used, and the date on which the change of name shall be made. Only one name may be used at any one time for the conduct of business at a nonconsent storage lot.

(b) Each nonconsent storage lot being operated under this article shall:

(1) Be completely enclosed by a solid fence that complies with subsections (d), (e), (f), and (g) of section 8-30 of this Code, with a gate that is locked at all times when the storage lot operator or an agent or employee of the storage lot is not at the storage lot;

(2) Have an all-weather surface of concrete, asphalt, blacktop, stone, macadam, limestone, iron ore, gravel or shell;

(3) Have a sign clearly readable from the street setting out the name of the storage lot, the street address, the hours vehicles will be released to vehicle owners, and the city and the state-issued license numbers of the storage lot, if applicable;

(4) Have a sign setting out the charges for towing vehicles, the per diem charge for storage and all other fees that may be

charged by the storage lot. This sign shall also identify the documents required for a vehicle owner to retrieve a vehicle from the storage lot and the phone number of the auto dealers detail. This sign shall be located so that it is clearly visible to a vehicle owner prior to payment of the fees; and

(5) Have an operable telephone. In the event that a nonconsent storage lot has an employee or agent who serves as an answering service or utilizes an answering machine, the nonconsent storage lot owner and the storage lot operator shall be responsible for the information provided by the service or the content of the message relayed by the answering machine. An answering service must identify itself as such to the caller. Should the caller have a complaint regarding the storage of a vehicle, the answering service must provide the caller with the Houston Police Department storage facility complaint telephone number of (832)394-4869 or (832)394-HTOW. This same telephone number must be provided at the end on a recorded message if the storage lot operator uses an answering machine. At minimum, an answering service or recorded message must inform the caller that vehicles will be released within one hour after a request for release with proof of ownership, and may not suggest, imply, or state that release of a vehicle is limited to certain business hours or days of the week. A police officer from the auto dealers detail may pose as a citizen for the purposes of testing responses to calls for the release of a vehicle towed without the consent of the owner.

A nonconsent storage lot that was first operated under a PPSLA executed on or before December 18, 2013, shall be exempt from the requirements of item (1) of this subsection, provided that the nonconsent storage lot is operated continuously under a PPSLA or renewal thereof without termination, revocation, or lapse longer than 90 days.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-173. Inspection and report.

When a vehicle towed without the consent of the vehicle owner is delivered and accepted by a nonconsent storage lot, the nonconsent storage lot owner, the storage lot operator, or an agent or employee of a nonconsent storage lot shall inspect the vehicle and note as an addition on the wrecker slip any differences from the information previously set out thereon, but shall not write over or deface in any manner any prior writing on the wrecker slip. If the license plate number or vehicle identification number on the wrecker slip was incorrect, the storage lot shall notify the police department of the correct number within 30 minutes after the time the vehicle was delivered to the storage lot.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-174. Use of fenced area required.

All vehicles towed without the consent of the vehicle owner must be kept inside the fenced area at all times.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-175. Inspection by police.

The storage lot operator shall ensure that all automobiles and parts thereof located on a storage lot are available and accessible for inspection by any police officer during the hours the storage lot must ensure that vehicles may be released to vehicle owners.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-176. Right of owner of stored vehicle to inspect wrecker slip.

Whenever a person claims ownership or right of possession to a motor vehicle located on a nonconsent storage lot, that person shall be entitled to inspect the wrecker slip for the motor vehicle and shall not be required to pay any fees or charges prior to inspecting the wrecker slip.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-177. Release of liability, waiver of rights, etc., prohibited.

No storage lot operator, or agent or employee of the storage lot, shall ask or require any vehicle

owner to sign any statement or form containing a statement releasing a storage lot, its owner, or its agents or employees, from any liability or waiving any rights the vehicle owner may have against the storage lot, or his agents or employees, prior to the release of a motor vehicle; provided, however, the storage lot may request a vehicle owner to sign such a release or waiver if the vehicle is being released without any charges for towing, preservation or storage and there has been no hearing held in regard to the removal of the vehicle pursuant to chapter 685 of the Texas Transportation Code. A nonconsent storage lot may require a vehicle owner claiming a vehicle to sign a receipt acknowledging that the vehicle owner has in fact received the vehicle after the vehicle has been delivered to the vehicle owner.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-178. Release of vehicles.

All storage lot operators shall ensure that a motor vehicle is released to the vehicle owner in a manner consistent with section 2303.160, Texas Occupations Code, and section 85.710, Texas Administrative Code.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-179. V.I.N. inspection.

(a) Each vehicle towed without the consent of the owner shall be inspected by the storage lot operator for the manufacturer's permanent vehicle identification number affixed to the vehicle prior to its acceptance into the nonconsent storage lot.

(b) It shall be unlawful for a nonconsent storage lot operator to accept and store a vehicle whose manufacturer's permanent vehicle identification number has been removed or is not permanently affixed or is not clearly legible or that, upon visual examination of the manufacturer's permanent vehicle identification number, shows any evidence whatsoever of its possibly having been changed, altered or obliterated in whole or in part.

(c) It shall be the duty of a nonconsent storage lot operator to immediately notify the auto dealers detail of the police department if it receives a vehicle with a vehicle identification number in a condition described in subsection (b) of this section.

(d) The provisions of subsection (b) of this section shall not apply when a police department auto theft division officer or supervisor provides a nonconsent storage lot operator with written authorization to accept a nonconsent tow from a police scene.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-180. Payment window.

Any window at which a storage lot operator or an agent or employee accepts payment, processes paperwork, or otherwise deals with the public shall be:

(1) At a height that does not prevent the customer from clearly seeing the employee; and

(2) Transparent and free of tint or any obstruction that prevents the customer from clearly seeing the employee.

(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-181. Acceptance of towed vehicles from unlicensed wrecker drivers.

(a) It shall be unlawful for a storage lot operator to accept a nonconsent tow originating from any location in the city from a wrecker driver who does not have a wrecker driver license issued by the city.

(b) Notwithstanding the provisions of subsection (a) above and the provisions of section 8-117 of this Code, this section shall not apply to a nonconsent tow originating from any location in the city that is conducted pursuant to a contract with other governmental entities or at the request of a law enforcement agency other than the Houston Police Department.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-182 Notice to owner and lienholder; report to police department.

(a) All nonconsent storage lots shall comply with all state law requirements regarding giving notices to the registered owner and primary

lienholder of each vehicle that is towed or delivered to the private storage lot without the authorization of the vehicle owner. The storage lot operator shall keep a record of the date and time that each notice was provided to the registered owner and primary lienholder of each vehicle that is towed or delivered to the private storage lot without the authorization of the vehicle owner.

(b) Every Monday, each storage lot operator shall submit an electronic report to the police department in a form and method approved by the police chief, containing the following information:

(1) A list of all nonconsent tows received by the nonconsent storage lot between 8:00 a.m. on the Monday immediately preceding the date of the report and 8:00 a.m. on the Monday on which the report is made. Such list shall contain:

a. The date and the time each motor vehicle was delivered to the nonconsent storage lot;

b. The auto wrecker company, the name and state driver license number of the wrecker driver who delivered the motor vehicle to the nonconsent storage lot; and

c. The license plate number, the vehicle identification number, the year, the make, and the color of the motor vehicle.

(2) A list of all nonconsent tows received by the nonconsent storage lot that were delivered to the vehicle owner or released from the nonconsent storage lot between 8:00 a.m. on the Monday immediately preceding the date of the report and 8:00 a.m. on the Monday on which the report is made. Such list shall contain:

a. The license plate number and the vehicle identification number, the year, the make, and the color of each such motor vehicle;

b. The date and time the motor vehicle was released from the storage lot;

c. The name of the vehicle owner receiving the motor vehicle; and

d. The payment amount received by the nonconsent storage lot.

(3) Notices to the police department shall be provided on a form promulgated by the police chief and shall include the year, make, model, vehicle identification number and license plate number of the motor vehicle, the location of the nonconsent storage lot where the vehicle is being held, and all charges owed to the nonconsent storage lot for the vehicle.

(c) All reports, notifications and the payment of fees submitted by nonconsent storage lots to the police department regarding abandoned vehicles pursuant to chapter 683 of the Texas Transportation Code shall be electronically submitted to the police department by methods approved by the police chief.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-183. Fees.

(a) The provisions of this section are applicable to services regulated under this article for nonconsent tows. It shall be the duty of each storage lot operator to comply with this section and to ensure that all agents or employees of the nonconsent storage lot comply with this section.

(b) A nonconsent storage lot may charge a daily storage fee not to exceed the applicable daily storage fee established in section 2303.155(b)(3), Texas Occupations Code, for each day or portion of a day that a motor vehicle remains stored at the nonconsent storage lot. The time shall be computed as provided in section 2303.155(d), Texas Occupations Code.

(c) In addition to the daily storage fees authorized under subsection (b) of this section, a nonconsent storage lot may impose notification fees and other fees not exceeding those specified in the Vehicle Storage Facility Act.

(d) Each fee charged by a nonconsent storage lot for towing, storage, or any other service that is regulated under this article shall be separately itemized and noted on the records of the nonconsent storage lot and on a receipt given to the vehicle owner. The receipt shall also include the Texas Department of Licensing and Regulation

license number of the storage lot operator or employee who conducted the release transaction. The receipt shall also state a police department telephone number for auto wrecker/storage lot information to be provided by the police chief. No fees, except those specifically authorized by section 8-123 of this Code and by this section, may be charged for services that are regulated under this article without consent of the vehicle owner, except a nonconsent storage lot may collect any applicable sales tax that is required to be collected pursuant to law in addition to the maximum charges permitted by this chapter. It shall be unlawful for any person to impose any sales tax on any fee authorized by this chapter unless the sales tax is imposed by state law for the services subject to the fee, and further it shall be unlawful to collect any amounts as sales tax in excess of the amount imposed by law.

(e) The storage lot operator shall ensure that the fee collected pursuant to section 8-123(e) of this Code is remitted to the police department in a manner approved by the police chief not later than the 15th day of the month following the month the fees are collected.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-184. Separation of vehicles.

Each nonconsent storage lot operator shall, insofar as may be practicable, maintain all vehicles parked or stored without the consent of the vehicle owner in a separate and totally fenced and enclosed area and apart from any other vehicles that may be parked or stored upon the lot for any other reason.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-185. Sale of vehicles in nonconsent storage lots.

Each vehicle parked or stored on a nonconsent storage lot without the consent of the vehicle owner that is not reclaimed by the vehicle owner or another person having a right of possession thereof shall be disposed of by police department sale pursuant to chapter 683 of the Texas Transportation Code. Consistent with efficient utilization of police personnel resources and the objective of obtaining the highest price for each vehicle sold, the chief of police may, at his election, either cause such sales to be conducted at the various police private storage lots where the vehicles are parked or stored or may require that the vehicles be brought to another place within the city that he may designate, from time to time, for the conduct of such sales. Vehicles from various police private storage lots may be consolidated for joint sales at the direction of the chief of police.

The sale or disposition of abandoned vehicles shall be conducted pursuant to the procedures set forth by the police department.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-186. Auction procedures for abandoned vehicles.

(a) Vehicles stored or towed with the consent of the owner shall not be auctioned by the police department.

(b) Vehicles stored or towed without the consent of the vehicle owner are subject to the following minimum auction procedures:

(1) On the day of the auction, the storage lot operator shall remove all license plates from all vehicles to be auctioned. All license plates shall be given to the police officer who conducts the auction;

(2) If the storage lot operator cancels an auction for any reason, all storage charges for vehicles set for that auction will be suspended and shall not accrue; and

(3) All vehicles set for auction shall be arranged in an orderly and safe manner that allows for unhindered movement between and inspection of each vehicle.

(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-187. Cessation of operations.

In the event a nonconsent storage lot that does not hold a PPSLA ceases operations and vehicles towed without the consent of the owner remain on the storage lot, the nonconsent storage lot operator shall immediately notify the auto dealers detail of the police department. The nonconsent storage lot operator and the auto dealers detail shall make arrangements with

another nonconsent storage lot operator to transfer all remaining vehicles towed without the consent of the vehicle owner at the storage lot operator's expense. In the event the operator does not accomplish the transfer of vehicles towed without the consent of the vehicle owner to another nonconsent storage lot, the police department shall have the authority to enter the property in order to take possession of such vehicles remaining on the nonconsent storage lot.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

Sec. 8-188. Penalty.

A violation of any provision of this division is an offense punishable as provided in section 1-6 of this Code. Each day that any violation continues shall constitute and be punishable as a separate offense.
(Ord. No. 2022-151, § 4(Exh. A), 2-23-2022)

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Chapter 9

AVIATION*

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*__Cross references—__City contracts generally, Ch. 15; contracts for public improvements and maintenance, § 15-41 et seq. regulations for aircraft over Lake Houston, § 23-165 et seq.; designation of taxicab stands at George Bush Intercontinental Airport/Houston (IAH), § 46-26; designation of taxicab stands at William P. Hobby Airport (HOU), § 46-27; pay toilets in public places § 28-29; rates for taxicabs to airports, § 46-31.

ARTICLE I. IN GENERAL*

Sec. 9-1. Definitions.

When used in this chapter, the following words, terms, and phrases shall have the meanings ascribed to them in this section, unless the context clearly indicates a different meaning:

Air operations area means that area of a city airport, as identified in the airport's security program, in which security measures are carried out. The area includes but is not limited to aircraft movement areas, aircraft parking areas, aircraft loading ramps, safety areas for use by aircraft regulated under 49 CFR parts 1544 or 1546, and any adjacent areas, such as general aviation areas, that are not separately secured. This area does not include the secured area.

Aircraft fuel means gasoline, kerosene, jet fuel, AvGas, or any other aircraft fuel.

Aircraft movement area means any area within the air operations area that is used or intended to be used for the taxiing, landing, and taking-off of aircraft.

Aircraft operator means a person who uses, causes to be used, or authorizes to be used an aircraft with or without the right of legal control (as owner, lessee, or otherwise) for the purpose of air navigation, including the taxiing of aircraft on any part of the surface of a city airport.

Airport security program means a security program for a city airport, as approved in writing by the director and the TSA, that provides for the safety and security of persons and property on aircraft operating in air transportation against an act of criminal violence, aircraft piracy, or the introduction of an unauthorized weapon, explosive, or incendiary onto an aircraft.

Airside area means all areas within the boundaries of a city airport that are access restricted and require persons present to be in display or possession of an identification badge under section 9-91 of this Code, including air operations areas, secured areas, and security identification areas.

Aviation official means the director or a department employee who has been designated in writing by the director to act on behalf of the director in a specified capacity.

CFR means the Code of Federal Regulations, as amended from time to time.

City airport means any airport, owned or operated by the city, including all lands, buildings and other improvements owned, controlled, leased, or operated and maintained by the city appurtenant thereto.

Commercial activity shall mean any activity undertaken for profit or direct monetary benefit, including the sale, advertisement, or display of goods or services.

Daily parking means any area on any city airport designated by the director as intended for the parking of passenger vehicles by persons who are leaving their passenger vehicles at a city airport while they travel for periods of one or more days.

Department means the Houston Airport System.

Director means the Director of HAS or his duly designated deputy director.

EFD means Ellington Airport.

Exclusive area means any portion of a secured area, air operations area, or security identification display area, including individual access points, for which an aircraft operator has assumed responsibility under 49 CFR section 1542.111.

FAA means the Federal Aviation Administration.

FIS means the facility at IAH used by various agencies of the United States for the inspection and processing of arriving international passengers, together with the baggage claim, luggage storage, baggage recheck areas, in-transit lounge, and other appurtenant areas.

Ground handling services means any of the following: on- and off-loading of aircraft passengers, baggage, mail, or cargo; into plane

*__Editor's note—__Ord. No. 02-1184, § 1(Exh. A), adopted December 18, 2002, amended Art. I, §§ 9-1—9-5 in its entirety. Formerly, said section pertained to similar subject matter and derived from Code 1968, §§ 9-1—9-6 and subsequent amendments.

fueling; servicing aircraft lavatories; providing ground power, potable water and preconditioned air to aircraft; cleaning the interior or exterior of aircraft; provision of food and beverages for in-flight service; and emergency maintenance of aircraft engines and systems; and similar ground services.

HAS means the Houston Airport System.

HOU means William P. Hobby Airport.

Hourly parking means any area on any city airport designated by the director as intended for the parking of passenger vehicles for short periods of time by persons who are dropping off or picking up travelers.

IAH means George Bush Intercontinental Airport/Houston.

Intoxicated has the meaning ascribed in Texas Penal Code § 49.01.

Landside area means all areas other than airside areas within the boundaries of a city airport, including roadways, terminals and sterile areas.

Landside vehicle means any type of vehicle that is powered by a gasoline, diesel, electric, LPG, or natural gas motor and is used or driven on the landside of a city airport.

Motorized equipment means any type of vehicle other than aircraft that is self-powered (such as by a gasoline, diesel, electric, LPG, or natural gas motor) and is used or driven by any authorized person on the airside of a city airport.

Operating instructions (OIs) shall mean the administrative rules and regulations promulgated by the director governing the use, control and operation of a city airport.

Preferred parking means any of those areas in parking garages at a city airport designated by the director for the purpose of offering customers, by card access subscription, the right to preferred, close-in garage parking.

Secured area means a portion of an airport, as identified in the airport's security program, where aircraft operators enplane and deplane passengers and sort and load baggage. The term includes any adjacent areas that are not separately secured.

Security identification display area means a portion of a city airport, as specified in the airport's security program, in which security measures set forth in 49 CFR part 1540 are carried out. The term includes, but is not limited to, the secured area.

Service animal has the meaning ascribed in 28 CFR § 36.104.

Short-term parking means the same as hourly parking.

Sterile area means a portion of a city airport, as identified in the airport's security program, in which passengers are provided access to boarding aircraft and to which access is controlled by the inspection of persons and property by the TSA or by an aircraft operator under 49 CFR, part 1544.

Tower means an airport traffic control tower and its operating personnel.

TSA means the Transportation Security Administration of the United States Department of Transportation.

(Ord. No. 02-1184, § 1(Exh. A), 12-18-02; Ord. No. 09-22, §§ 2, 3, 1-14-09; Ord. No. 2020-371, § 2, 5-6-2020)

Sec. 9-2. Establishment and general duties of the Houston Airport System.

(a) There is hereby created a department of the city to be known as the Houston Airport System.

(b) The Houston Airport System and its employees shall be charged with the following duties:

(1) To develop, redevelop, operate, supervise, manage, and maintain the city airports.

(2) To plan the further expansion of the city airports as may be necessary or desirable to properly accommodate the needs of the public.

(3) To evaluate the city airport system facilities and services and the domestic and international scheduled air services to and from the city for the purpose of ensuring adequate public air services, and to initiate, direct, or recommend, when so indicated, corrective action for deficiencies revealed.

(4) To cooperate and coordinate with and represent the city with the FAA, TSA, and all other agencies constructively concerned with air transportation for the city and its trade territory.

(5) To do all things necessary to assure the development and growth of air passenger and air cargo traffic to, from, and through the city.

(6) To design or cause to be designed improvements to aviation facilities and construct or cause to be constructed such improvements under the supervision of its own professional architectural and engineering staff.

(7) To acquire land and interests therein as may be required for the expansion of city airports and other aviation facilities, dispose of surplus land and interests therein, and lease aviation facilities to users thereof.

(8) To administer all commercial and general aviation matters in which the city is interested and perform such other duties and functions as may be assigned to or required of the department or its personnel by and under any provision of the federal or state laws or the Charter or the ordinances or other appropriate action of the city.

(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-3. Office of director created; appointment of director.

There is hereby created the office of director of the Houston Airport System. The director shall be appointed by the mayor and confirmed by the city council.

(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-4. Duties and authority of the director.

(a) The director shall perform all duties and responsibilities as are required of him by the laws of the United States and the state and the ordinances of the city and such other functions, duties, and powers as may be assigned to him by the mayor. In addition to the foregoing duties, functions, powers, and responsibilities, the director shall:

(1) Be executive head of the department and have control, supervision, and authority over all officers and employees therein in the performance of the duties set forth in this section.

(2) Promulgate and enforce or cause to be enforced reasonable and necessary administrative rules and regulations governing the use, control, and operation of the city airports and any other property placed under the jurisdiction of the department. The regulations shall not be inconsistent with applicable state, federal, or local laws, rules, and regulations. A copy of the regulations shall be maintained for public inspection in the manager's office at each city airport and in the city secretary's office.

(3) Be authorized and directed for and on behalf of the city to notify any person who fails or refuses to comply with any applicable provision of law or departmental rules and regulations to depart from any city property or building under control of the department. Any person who upon such notice fails to depart from the city property or building shall be subject to prosecution under § 30.05 of the Texas Penal Code for criminal trespass in addition to prosecution for any other crime that he may have committed thereupon.

(b) The director is hereby authorized to perform the following functions:

(1) Close or restrict the use of all or any portion of any city airport as he may deem necessary and advisable in the

interest of public safety in the event of natural disaster, airplane crash, structural failure of a runway or other facility, or other unsafe condition or during construction and maintenance work.

(2) Deny the use of IAH, HOU, and EFD to any person who fails to pay the charges or conform to any provision of this chapter.

(3) Determine for each construction project which delivery method provides the best value for the city pursuant to state and federal law.

(4) Promulgate standard terms for leases and concessions that shall be included in all such agreements.

(5) Give any and all notices that are required to be given by the city as a condition precedent to the taking of any action by the city under the provisions of any and all lease agreements for land and premises at any city airport and under the terms and provisions of all concession agreements for concessions at any city airport. The director, with the counsel of the city attorney, is further authorized to initiate or take any action under the terms of any such agreement upon the failure or refusal of the party notified to comply with such agreement.

(6) Establish reasonable aircraft parking charges within the ranges set forth in section 9-142 for the parking of commercial aircraft on unleased areas controlled by the city on the city airports.

(7) Subject to approval by the city controller:

a. Establish billing and collection procedures and forms for collecting and remitting the fees and charges provided for in this chapter.

b. Prepare forms and prescribe methods of reporting numbers of flights, all enplaning and deplaning activities, aircraft weight, and time of use of the ramp areas and other facilities and services for which fees are charged.

(8) Allow scheduled and nonscheduled airlines to use unleased gates and common use areas and other associated operating space and facilities within the terminals and concourses at IAH and HOU as described in sections 9-165 and 9-166 of this Code.

(9) Establish air cargo aircraft operations charges within the ranges set forth in section 9-167 for the use of the air cargo apron areas designated by the director at IAH.

(10) Require those persons not under written contract with the city who conduct business on the airside to maintain the insurance coverages described in section 9-95.

(11) When determined to be in the best interest of the city and HAS, execute terminable written occupancy license agreements not exceeding six months, for the mayor and on behalf of the city, upon forms approved by the city attorney.

(Ord. No. 02-1184, § 1(Exh. A), 12-18-02; Ord. No. 04-1150, § 1, 11-9-04; Ord. No. 2015-668, § 11, 7-8-2015)

Sec. 9-5. Airport zoning.

Nothing in this Code or the ordinance adopting this Code shall be deemed to affect the validity of any ordinance relating to airport zoning, establishing an airport zoning commission, or designating any airport hazard area for zoning purposes, and all such ordinances are hereby recognized as continuing in full force and effect.

(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-6. References to aviation department and aviation director.

The Houston Airport System was formerly known as the department of aviation or the aviation department, and the director was formerly known as the director of aviation or the aviation director. Any such reference in this Code or in any contract, agreement, purchase order, or other document shall be construed to

mean the Houston Airport System or the director of the Houston Airport System, as applicable.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-7. Animal regulations.

No person shall enter any city airport terminal building or airside area with an animal in his possession. It is a defense to prosecution under this section that:

(1) The animal is a service animal in actual service to the actor, who is a person with disabilities;

(2) The animal is securely contained within a cage or carrier that is approved for airline use; or

(3) The actor has been authorized by the director to bring the animal onto airport property.

(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-8. Lost articles.

Any person who finds lost articles on any city airport shall deposit them with persons authorized under regulations promulgated from time to time by the director.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-9. Deposit of garbage or waste.

No person shall deposit or leave any debris, garbage, paper or any other type of waste on any city airport, except in approved receptacles provided for that purpose. A person who commits an offense under this section shall, upon conviction, be subject to a fine of not less than $100.00 nor more than $4,000.00. To the extent that any conduct in violation of this section is also a violation of the Texas Litter Abatement Act, then the violation shall be prosecuted under and punishable as provided under the Act, rather than this section
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02; Ord. No. 2021-431, § 3, 5-26-2021)

Sec. 9-10. Environmental regulations.

Persons who violate any environmental rules or regulations promulgated by the director, the Texas Commission on Environmental Quality, or the United States Environmental Protection Agency while on airport property shall be subject to any and all applicable state and federal laws.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Secs. 9-11—9-20. Reserved.

ARTICLE II. LANDSIDE AREA REGULATIONS*

DIVISION 1. IN GENERAL

Sec. 9-21. Sterile areas.

Persons who enter or to attempt to enter any sterile area without complying with the security measures in effect thereat shall be subject to prosecution under any and all applicable state and federal laws.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-22. Commercial activities—Generally.

(a) Recognizing that FAA grant assurances require airports to be self-sustaining, no commercial activity shall take place at a city airport without the person engaging in the commercial activity possessing either a direct contract with the city, an airport use permit, or authority under this chapter.

(b) All persons engaging in commercial activity operating at IAH, HOU, or EFD must follow airport rules including airport operating instructions (OIs).
(Ord. No. 2020-371, § 3, 5-6-2020)

Secs. 9-23—9-30. Reserved.

DIVISION 2. MOTOR VEHICLES

Sec. 9-31. Designation of traffic engineer.

(a) The director shall designate an engineer who is an employee of the department to act as the traffic engineer for the department.

*__Editor's note—__Ord. No. 02-1184, § 1(Exh. A), adopted December 18, 2002, amended Art. II, §§ 9-61—9-145 in its entirety. Formerly, said sections pertained to general airport regulations and derived from Code 1968, §§ 9-24—9-113 and subsequent amendments.

(b) The department traffic engineer, rather than the city traffic engineer designated in chapter 45 of this Code, shall have jurisdiction over the erection of regulatory traffic signs and traffic control devices on the landside of any city airport, consistent with the authority granted to the city traffic engineer in chapter 45 of this Code, and applicable state laws.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-32. Designation by traffic engineer.

(a) Subject to any notice requirements of applicable laws or ordinances, the traffic engineer may designate parking areas, temporary hourly parking areas, no parking areas and free parking areas on the landside of a city airport. The Houston Police Department shall have the authority to ticket and/or cause to be towed any landside vehicle that is in violation of any regulatory traffic signs located in parking areas, temporary hourly parking areas, no parking areas, and free parking areas.

(b) The provisions of chapters 26 and 45 of this Code shall apply for purposes of enforcement as if said areas were "public streets," provided that no such drive, roadway or other area designated as a parking area, temporary hourly parking area, no parking area, or free parking area shall constitute a "public street" for any other purpose, unless expressly so dedicated as a "public street" by the city.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02; Ord. No. 07-464, § 4, 4-11-07)

Sec. 9-33. Storing, parking, or repairing landside vehicles.

(a) No person shall store, park, or repair any landside vehicle on any city airport except in areas clearly marked by signage as designated by the aviation official for such purposes.

(b) The aviation official may move or cause to be moved to some other location, at the sole risk and expense of the owner, any landside vehicle that is in violation of this section or any other city ordinance or city airport rule or regulation.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-34. Loading or unloading passengers.

It shall be unlawful for any person engaged in the operation of any landside vehicle on the landside area of any city airport to take on or discharge passengers, except at the places designated by the director for such purposes.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-35. Parking lots—Rates and time limits.

(a) *Fees.* The following fees are hereby established for public parking on the landside area at the city airports where the parking space is not designated a free parking zone:

(1) *City economy lot parking at IAH:*

a. *Uncovered parking*—Rates and times to be established by the director and shall not exceed a maximum of $9.24, for each 24-hour period, plus applicable sales tax.

b. *Covered parking*—Rates and times to be established by the director and shall not exceed a maximum of $11.09, for each 24-hour period, plus applicable sales tax.

(2) *Surface and garage parking, other than the economy at IAH:*

a. *Hourly parking*—Rates and times to be established by the director not to exceed a maximum of $27.72, for each 24-hour period, plus applicable sales tax.

b. *Daily parking*—Rates and times to be established by the director not to exceed a maximum of $23.09, for each 24-hour period, plus applicable sales tax.

(3) *Preferred parking at IAH:* In addition to the areas in the garage that are designated for hourly or daily parking by the director, the director may designate preferred parking areas. The director shall promulgate policies and procedures to implement and operate the preferred parking areas, including, without limitation,

application requirements, revocation of use, access and exiting, billing procedures and charges. The director is authorized to charge each customer who uses the preferred parking areas an annual registration or membership fee of up to $200.00 and a refundable deposit of $50.00 per access card, plus any applicable sales tax, and a parking rate to be established by the director which shall not exceed a maximum of $27.72, plus any applicable sales tax, for each 24-hour period or portion of a 24-hour period that the customer's vehicle is parked in a preferred parking area.

(4) *City economy lot parking at HOU:*

a. *Uncovered parking*—Rates and times to be established by the director and shall not exceed a maximum of $9.24, for each 24-hour period, plus applicable sales tax.

b. *Covered parking*—Rates and times to be established by the director and shall not exceed a maximum of $11.09, for each 24-hour period, plus applicable sales tax.

(5) *Surface and garage parking, other than the economy at HOU:*

a. *Hourly parking*—Rates and times to be established by the director not to exceed a maximum of $27.72, for each 24-hour period, plus applicable sales tax.

b. *Daily parking*—Rates and times to be established by the director not to exceed a maximum of $23.09, for each 24-hour period, plus applicable sales tax.

c. *Surface parking*—Rates and times to be established by the director not to exceed a maximum of $13.86, for each 24-hour period, plus applicable sales tax.

(6) *Preferred parking at HOU:* In addition to the areas in the garage that are designated for hourly or daily parking by the director, the director may designate preferred parking areas. The director shall promulgate policies and procedures to implement and operate the preferred parking areas, including, without limitation, application requirements, revocation of use, access and exiting, billing procedures and charges. The director is authorized to charge each customer who uses the preferred parking areas a registration and/or annual membership fee of up to $200.00 and a refundable deposit of $50.00 per access card, plus any applicable sales tax, and a parking rate to be established by the director which shall not exceed a maximum of $27.72, plus any applicable sales tax, for each 24-hour period or portion of a 24-hour period that the customer's vehicle is parked in a preferred parking area.

(7) *Surface parking at Ellington Airport:* Rates and times to be established by the director not to exceed a maximum of $13.86, for each 24-hour period, plus applicable sales tax.

(8) The applicable fees established by section 9-35 of this Code shall be based upon the total time of use of the facilities, and the foregoing rate cycles shall apply during each 24-hour parking period if a vehicle remains parked in the applicable parking area for more than 24 hours.

Wherever in section 9-35 of this Code rates are stated as not to exceed maximum amount or the director is authorized to set rates within a range or offer special rates, the actual rate shall be deemed by the director. The director shall determine rates in consideration of the best interests of the public balancing considerations of market conditions, maximization of the city's total recovery of revenue from the parking facilities and the provision of service to the traveling public.

(b) *Grace period.* The director is authorized to establish a grace period not to exceed 30 minutes for any parking area at each city airport. The director may, at his discretion, waive the portion of the parking fee covered under this grace period.

(c) *Valet services.* The director may establish and provide for valet parking services at IAH and HOU. The valet service shall charge a fee determined by the director, to be not less than the current hourly parking rate for garage parking at IAH and HOU.

(d) *Promotional offers.* The director may approve promotional offers by various marketing mediums including the acceptance of competitor discount offerings and offering corporate discounts. (Ord. No. 02-1184, § 1(Exh. A), 12-18-02; Ord. No. 09-683, § 1, 7-22-09)

Secs. 9-36—9-50. Reserved.

DIVISION 3. GROUND TRANSPORTATION

Sec. 9-51. Definitions.

For the purpose of this division only, the following terms shall have the meanings specified below unless otherwise indicated herein:

Airport use fees includes all fees and charges required to be paid under or pursuant to this division.

Airport use permit means a valid, unexpired and unrevoked permit issued by the director pursuant to this division. An airport use permit contains terms and conditions more completely prescribed in this division. An airport use permit grants privileges (e.g., using airport property for commercial purposes, supplying services at the airports) for which fees are imposed. Both airport use permits and the more specialized contracts mentioned in this division are types of contracts, leases or other arrangements authorized by state law. An airport use permit does not grant a permittee the privilege of parking on airport property without paying a separate parking fee.

Applicable regulations means all of the provisions of this chapter, all other applicable ordinances, rules, and regulations of the city and the director, any applicable rules, regulations, statutes, and constitutional provisions of the federal and state governments, and any applicable assurances and covenants made by the city in connection with federal or state grant programs.

Automated vehicle identification system means a system consisting of vehicle transponders, radio-frequency identification, antennas, computer software and industry-specific hardware to facilitate billing, reporting, invoicing, security and access control, compliance enforcement, automatic staging and call up for buses, limousines, shuttles, and TNCs, taxi queuing and dispatching from the holding lot, and gate access control and security authorization for commercial transportation providers.

Commercial business entity means any sole proprietorship, partnership, corporation, trust or other person engaged in commercial, industrial or institutional operations in connection with which money or anything of value is paid, demanded or expected by passengers, customers or other users, but does not include the federal government of the United States, the State of Texas or any of their departments, agencies or political subdivisions (unless they provide, as their primary function, ground transportation of passengers in exchange for fares or charges).

Commercial carrier service means transportation service provided by a commercial passenger vehicle under circumstances where two or more passengers may share the same vehicle and each is charged a fare that is determined on a per-passenger, per-trip or similar basis that does not depend upon the number of passengers being carried.

Commercial passenger vehicle means a motor vehicle while it is used, or offered (orally or in a writing or sign) to be used, to transport one or more persons, on land, either:

(1) In exchange for a fare, charge, or other thing of value (paid, demanded, or expected for the transportation service, in whole or in part, directly or indirectly, by the person transported or by another person, or otherwise); or

(2) In connection with the operations of a commercial business entity, regardless of whether a fare, charge, or other thing of value is paid, demanded or expected for the transportation service.

It shall be a presumption that a motor vehicle bearing the name, trade name, common name, emblem, trademark or other identification of a commercial business entity and being used to transport a passenger is a commercial passenger vehicle.

Consolidated rental car facility means any building, parking structure, commercial passenger vehicle, maintenance and storage facility and related infrastructure for rental car users designated by the director as a consolidated rental car facility.

Courtesy vehicle means a commercial passenger vehicle that meets all of the following criteria at all times when it is operated on city airport premises:

(1) The vehicle is owned or provided by one or more commercial business entities that: (i) arrange for the vehicle to provide transportation only incidentally to the commercial business entities' primary businesses or activities, which may, for example, be car rental, parking, lodging, air transportation, special events or medical care; (ii) provide the vehicle, by purchase or lease or by contracting with another party (which party may or may not be primarily in the business of providing ground transportation); and (iii) all sign the application for the airport use permit for the vehicle, as applicants or co-applicants.

(2) The vehicle is provided for the exclusive use of officers, agents, employees, customers or invitees of any of the commercial business entities.

(3) There is no fare, charge or thing of value paid, demanded or expected from the persons transported, directly or indirectly, for transportation, and this is effectively communicated to the traveling public. (Example: An increase in the charge for lodging or for an event could be an indirect charge, if related to transportation.)

(4) If required by the director, the vehicle is prominently and permanently marked to show its status as a courtesy vehicle. Such marking could include, for example, the legend "free courtesy vehicle, not for hire," or a similar legend, together with the names and locations of the commercial business entities served.

Customer facility charge or *CFC* means a fee collected by a rental car user from a rental car customer for the purposes of funding a consolidated rental car facility and related expenses. The CFC does not constitute income, revenue, or an asset of the rental car user. The CFC and revenues derived therefrom constitute fees and charges of the kind that will generate excluded fee and charge revenues," as defined herein.

Excluded fee and charge revenues means all income and revenues derived from fees and charges imposed by any city ordinance adopted after July 1, 2007, and declared in such ordinance to constitute fees and charges of the kind that will generate excluded fee and charge revenues, as further defined in Ordinance No. 2016-846, as may be amended from time to time.

Geofence means a virtual perimeter, consisting of defined geographical boundaries, that uses global positioning system, radio frequency identification or other technology to track and report vehicle location and activity.

HOU transaction day means a 24-hour period or fraction thereof for which a rental car customer is provided the use of a rental car for compensation at HOU, regardless of the duration or length of the rental term, except that a partial day after the last 24-hour day booked shall not be considered a transaction day. If the same rental car is rented to

more than one customer within such continuous 24-hour period, then each such rental shall be calculated as a transaction day.

Hearing officer means a person appointed by the director of administration and regulatory affairs to hear appeals under this division. An appointee may be a city employee, but an appointee shall be disqualified from hearing any matter that the appointee personally investigated or for which the appointee had any substantial enforcement responsibility.

Local transit vehicle means a motor vehicle operated by a political subdivision of the State of Texas under Chapter 451 or 452, Texas Transportation Code, or other applicable laws, while it is providing local transit service characterized by frequent stops along local streets or characterized by demand-responsive stops to receive or discharge persons with physical disabilities.

Non-Houston taxi means a vehicle with a capacity of six or fewer persons while it is lawfully operated under a license, permit, or other similar permission issued by another municipality, which license, permit, or permission is substantially similar to a permit issued under article II of chapter 46 of this Code.

Off-airport parking user means a commercial business entity that provides or arranges for one or more commercial passenger vehicles, however owned or operated, to pick up or drop off passengers within a terminal complex of an airport in connection with the operations of a business of the user involving the parking of motor vehicles at a facility, including a hotel or other entity whose primary business may not be parking, located outside the airport boundary.

Off-airport rental car user means a rental car user, where the user does not have a concession, contract or lease with the city for the use of counter space or other facilities in the terminal complex.

On-airport rental car user means a rental car user, where the user has a concession, contract or lease with the city for the use of counter space or other facilities in the terminal complex.

Peer-to-peer car rental means the rental of an individual's personal vehicle to another individual, involving monetary compensation to the vehicle owner.

Permittee means a person to whom an airport use permit has been issued.

Regulatory approvals means all permits, licenses, certificates, registrations, and other approvals required by applicable regulations.

Rental car user means any business entity that directly or indirectly provides, procures or brokers rental vehicles and/or conducts, facilitates, and/or manages vehicle rental activities and either picks up or drops off passengers in the terminal complex or allows passengers to pick up or drop off their rental vehicles within the terminal complex. Rental car user includes any traditional rental car business, broker for car rental business or service, rental car delivery company, peer-to-peer car rental business or service, and car-sharing business or service (excluding any transportation network company), regardless of whether the entity has an on-airport concession or other agreement with the city.

SGT permit means a valid, unexpired, and unrevoked permit issued by the director of administration and regulatory affairs pursuant to section 9-58.

SGT vehicle means a motor vehicle, other than a taxicab or a vehicle operated by the Metropolitan Transit Authority of Harris County, Texas, with a rated passenger capacity of ten persons or more (including the driver), that is used or offered (orally or in a writing or sign) to be used, to transport one or more persons in exchange for a fare, charge, or other thing of value (paid or to be paid specifically for the transportation service), where such transportation is provided or offered (orally or in writing or sign) to be provided as part of a regularly scheduled transportation service to or from an airport. A "regularly scheduled transportation service" is a

transportation service provided or offered at fixed times or intervals or at repetitive times or intervals.

Specified service area means an area specified from time to time by the director pursuant to section 9-54.

Taxicab means a vehicle while it is lawfully operated under a taxicab permit issued under chapter 46 of this Code.

Terminal complex means each area within the boundary of HOU or IAH located within 400 feet of any part of the following: (i) a passenger terminal building, (ii) a consolidated rental car facility, or (iii) a parking facility. The interterminal train system at IAH is deemed to be a part of a passenger terminal building. The director may promulgate a map or other description of a terminal complex, and it shall be a presumption that the boundaries of the terminal complex are as so promulgated by the director.

TNC means transportation network company.

Transportation network company has the meaning provided in Chapter 2402 of the Texas Occupations Code.

Transportation network company driver means an individual affiliated with a transportation network company transporting passengers for compensation.

(Ord. No. 02-1184, § 1(Exh. A), 12-18-02; Ord. No. 08-52, § 37, 1-16-08, eff. 1-26-08; Ord. No. 2011-489, § 4, 6-22-2011; Ord. No. 2014-1013, §§ 2, 3, 11-12-2014; Ord. No. 2016-728, § 2, 9-28-2016; Ord. No. 2020-371, § 4, 5-6-2020)

Sec. 9-52. General provisions.

(a) *Use of property and funds.* This division provides rules and regulations for the use of airport property by commercial passenger vehicles, and it requires that airport use fees be paid for the use of airport property. It is city policy that funds from airport use fees shall be used for airport purposes, as more fully described in the ordinances authorizing the issuance of airport system bonds adopted from time to time. With the exception of the commercial ground transportation activities described in Table 9-1 or the city fee schedule, any other commercial ground transportation activity using airport property is prohibited without a permit or direct agreement with the city and payment of appropriate airport use fees.

(b) *Permits required, etc.* It shall be unlawful for any person owning, possessing, controlling, or operating a commercial passenger vehicle to cause or allow one or more other persons to board the vehicle, or to alight from the vehicle, in any terminal complex if there is no airport use permit for the vehicle unless such boarding and alighting is covered under a direct agreement with the city. It shall also be unlawful for any person owning, possessing, controlling, or operating a commercial passenger vehicle to cause or allow the vehicle to be operated upon airport property if:

(1) The vehicle is operated in violation of this division, any airport use permit, or any condition in an airport use permit; or

(2) Any of the airport use fees required by this division with respect to the use of the airport has not been paid when due.

(3) The vehicle or its operation does not comply with any other regulatory approval required by applicable regulations (e.g., a city, state or federal license, permit, franchise), for any part of a trip that includes airport property.

(c) *Others liable; contractors.* It shall be unlawful for any person to direct, cause, or allow another person to violate, or to aid another person in violating, subsection (b) above. A permittee may allow independent contractors to operate permittee's vehicles; however: (i) the permittee must maintain all required insurance mandated by federal and state laws, including those articulated in chapter 1954 of the Texas Insurance Code pertaining to transportation network company drivers, covering both permittee and each contractor, and (ii) in any event, both the permittee and the contractor are responsible for compliance with applicable regulations.

(d) *Control of vehicles.* For purposes of this division only, it shall be a presumption that a motor vehicle bearing the name, trade name, common name, emblem, trademark, or other identification of a commercial business entity is controlled by that business entity and by the managers of that business entity; however, this presumption does not apply in the case of a taxicab, or TNC, while it is driven by an independent contractor.

(e) *Taxicabs.* It shall be an affirmative defense in any prosecution involving lack of an airport use permit under this section (but not prosecutions involving other violations or nonpayment of fees) that the vehicle in question was:

(1) A taxicab; or

(2) A non-Houston taxi, and no passengers boarded it on airport property.

(f) *Occasional users.* It shall be an affirmative defense in any prosecution involving lack of an airport use permit under this section (but not prosecutions involving other violations or nonpayment of fees) that the vehicle in question was not used to transport passengers within a given terminal complex more than twice during the seven-day period ending on and including the day of the alleged offense.

(g) *Non-airport use.* It shall be an affirmative defense in any prosecution involving lack of an airport use permit or nonpayment of fees under this section that the vehicle in question was operated exclusively on dedicated public streets, roads and highways, without using airport property during the trip in question.

(h) *Consolidated rental car facility.*

(1) *IAH.* The director has designated 17330 Palmetto Pines at IAH as a consolidated rental car facility and part of the terminal complex. The consolidated rental car facility is designed and operated to allow a single, consolidated shuttle bus system to transport all rental car passengers to and from the passenger terminals. It shall be unlawful for any person owning, possessing, controlling, or operating a commercial passenger vehicle to cause or allow any passenger to board the vehicle, or to alight from the vehicle, anywhere within 400 feet of a passenger terminal building at IAH, if the passenger comes from, or is going to, any premises owned, possessed, controlled or operated by an off-airport rental car user. This paragraph does not apply to passengers boarding or alighting from the consolidated shuttle bus system serving the consolidated rental car facility. The director shall have the right to designate successor and substitute consolidated rental car facility which shall become part of the terminal complex for IAH.

(2) *HOU.* The director may designate a consolidated rental car facility at HOU. The consolidated rental car facility may be designed and operated to allow a single, consolidated shuttle bus system to transport all rental car passengers to and from the passenger terminals. After a designation becomes effective, the designated facility will become part of the terminal complex for HOU, and rental car users at HOU shall direct their customers to the consolidated rental car facility at HOU. It shall be unlawful for any person owning, possessing, controlling, or operating a commercial passenger vehicle to cause or allow any passenger to board the vehicle, or to alight from the vehicle, anywhere within 400 feet of a passenger terminal building at HOU, if the passenger comes from, or is going to, any premises owned, possessed, controlled or operated by an off-airport rental car user. This paragraph does not apply to passengers boarding or alighting from a consolidated shuttle bus system serving the consolidated rental car facility. The director shall have the right to designate a successor and substitute consolidated rental car facility which shall become part of the terminal complex for HOU.

(i) *Consent to use property.* For purposes of section 9-161 of this Code, persons who operate commercial passenger vehicles or local transit vehicles in compliance with this division, and in

compliance with other applicable regulations, do so with the approval of the city council, and the commercial activity of transporting passengers at the airports is authorized by the city council to the extent herein provided. The city, as the owner of the city's airports, does not consent to the use of airport property in violation of this division or other applicable regulations.

(j) *Penalties.* Violation of this section shall be punished by a fine not exceeding $500.00. Each day any violation of this section continues shall constitute a separate offense. The suspension, revocation, cancellation, or denial of any license, permit, or certificate shall not prohibit the imposition of any civil or criminal penalty. The imposition of a civil or criminal penalty shall not prohibit any other remedy and shall not prohibit the suspension, revocation, or denial of a license, permit, or certificate. The city shall have the authority to enforce this division by civil litigation to the full extent allowed by state law.

(k) *Regulations.* The director shall prescribe regulations for the use of airport premises by permittees, including, but not limited to: regulations for applications, permits and appeals, which must include the use of a hearing officer; regulations allowing temporary substitute vehicles; regulations as to locations to drop off or pick up passengers, park vehicles, stage vehicles, or hold vehicles; regulations as to routes of vehicles; regulations as to appearance of vehicles and drivers; regulations as to conduct upon airport premises; and other regulations as may be necessary for the safe and efficient operation of the airports.

(l) *Enforcement.* The director shall enforce the provisions of chapters 26, 45 and 46 of this Code on each airport's roadways and curb zones, including the designation of persons other than peace officers, to enforce the provisions of those chapters as well as state laws and regulations relating to the stopping, standing and parking of motor vehicles by issuance of citations on the official form prescribed by the director. The director shall issue appropriate identification and the necessary citation forms to the persons designated pursuant to this section.

(m) *Inspections and audits.* All commercial business entities and vehicles permitted to access any city airport, including vehicles driven by a transportation network company driver, are subject to inspection and audits to ensure compliance with the provisions of this division.

(n) *Permit and HAS access limits.* The director may at any time limit either the number of permits or the access afforded to commercial business entities due to limitations in the availability of curbside space or parking and staging in the applicable staging lots, garages and holding areas.

(o) *Badging and driver identification.* The director reserves the right to require the possession and presentation upon request, of HAS badges, identification cards, radio-frequency identifications or other forms of identification verification as the director deems necessary for the enforcement of this division.

(p) *City audit rights.* Unless otherwise provided in a contract entered into pursuant to this division, the director may, upon 14 days' written notice, without cost to a commercial business entity operating under this division, cause an inspection and audit to be made of the books and records of the commercial business entity to determine the correctness of the computation of fees paid to the city on behalf of the Houston Airport System. If, as a result of such inspection and audit, it is established that additional compensation is due the city, the commercial business entity shall pay such additional compensation to the city within 15 days of receipt of written notice from the director.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02; Ord. No. 2014-1013, § 4, 11-12-2014; Ord. No. 2020-371, §§ 5—8, 5-6-2020)

Sec. 9-53. Airport use permits generally.

(a) *Application.* A person desiring to obtain an airport use permit must apply to the director upon a form promulgated by the director. The form may require: (i) multiple signatures, in the case of transportation services provided by or for more than one entity, (ii) agreements to comply with applicable regulations, (iii) indemnities to

protect the city and its officers, agents and employees, and (iv) other provisions related to this division.

(b) *Form of permits, devices, etc.* The director shall prescribe the form of airport use permits. There may be different permit forms (with different provisions) for different categories of vehicles and services. The director shall also prescribe the form of stickers, electronic devices, or other evidence of an airport use permit and the manner in which the evidence shall be affixed and displayed.

(c) *Insurance.* Each permittee must provide and maintain insurance coverage (or self-insurance) as required by this section throughout the term of the permit.

(1) Insurance policies maintained by permittees other than transportation network company drivers must meet all of the criteria, coverage limits and all prescribed times when the requisite coverage shall be in effect as provided in chapter 46 of this Code. The director shall approve self-insurance in lieu of liability insurance policies if the applicant submits proof that the applicant has qualified as a self-insurer under state laws and regulations applicable to motor carriers (see, e.g., § 643.102, Texas Government Code and 43 TAC § 18.16) up to the limits required by this section for liability insurance policies.

(2) Except for transportation network company drivers, a permittee not covered by chapter 46 is required to have and maintain motor vehicle (or automobile) liability insurance with limits of liability not less than $100,000.00 for bodily injury to one person or death of one person and $300,000.00 for bodily injury to or death of all persons injured or killed in any one accident.

(3) Because airport use permits are not required for taxicabs or non-Houston taxis, the foregoing insurance provisions (as well as the other permit requirements) do not apply to them; however, the provisions of chapter 46, including the insurance provisions, shall remain applicable to taxicabs, and the ordinances and regulations of the municipality regulating non-Houston taxis shall remain applicable to them.

(4) Each permittee shall submit written proof of insurance (or self-insurance) to the director: (i) with each application for a permit, including transfers and other changes, (ii) at least 15 days before any existing coverage expires, and (iii) at any other time when requested by the director. Except for transportation network company drivers, each proof of insurance shall meet the criteria of chapter 46 of this Code, or such other criteria as the director may promulgate, e.g., for self-insurance. The director may waive these requirements when proof is already on file with another city department as required by chapter 46 of this Code.

(5) A permittee who is a transportation network company driver shall have and maintain primary automobile insurance as required by Chapter 1954 of the Texas Insurance Code.

(d) *Term.* Each airport use permit shall be effective for a term prescribed by the director, not to exceed 18 months. A permit may be renewed. The standards and procedures for renewals are the same as for original permits.

(e) *Issuance or denial.* After a complete and effective permit application is received, the director shall grant it unless one or more of the following circumstances is present:

(1) The application does not meet a requirement of this chapter or another applicable regulation, or information required to be provided by the applicant is missing.

(2) The application includes false or misleading information or omits information necessary to prevent the application from being misleading.

(3) It appears that the proposed activity will not comply with applicable regulations,

or the director is not able to discern from the application that the activity will so comply.

(4) An airport use permit or other regulatory approval relating to passenger transportation issued to the applicant, or to a closely-related party, was revoked within the 180 day period preceding the date the application is filed, and the revocation has become final, all because of a violation of a statute, rule, regulation or ordinance. This requirement may be waived if the applicant demonstrates clearly that the circumstances of the revocation have been changed so as to prevent another violation. If a permit is denied under this paragraph because of a previous conviction, the director shall follow the procedures of section 1-9 of this Code and applicable state law. It is found and determined that the previous conviction for a violation of a statute or ordinance that results in a revocation of an airport use permit shall be grounds for denial of a new permit because such a conviction would indicate an inability or an unwillingness of the applicant to comply with this division or the terms of the permit.

(5) The director determines that the proposed service: (i) would be inconsistent with any contracts, leases or other arrangements previously made, or in process, for service to a specified service area; (ii) would cause a reduction in the quality, reliability or traveler-orientation of the overall ground transportation system; (iii) would cause an increase in price, immediately or in the future, of scheduled or lower-priced services; (iv) would be inconsistent with efficient operation of the airport in question; or (v) would otherwise adversely affect the traveling public.

(f) *Conditions.* The director may grant a permit with conditions, to be stated in the permit, if the director determines that such conditions are: (i) required by this division; (ii) required to allow the permit to be issued under the criteria set out in this division; or (iii) reasonably necessary to achieve compliance with applicable regulations. An application for a permit shall be deemed denied if not granted on or before the thirtieth day next following the day the application is completely and effectively filed.

(g) *Non-transferable.* A permit is personal to the applicant or commercial business entity to whom it is issued and may not be sold, transferred or conveyed by operation of law or otherwise.

(h) *Revocation.* The director shall have the authority to revoke a permit for any one or more of the following reasons:

(1) The activity covered by the permit appears not to comply with any applicable regulation or with any condition imposed in connection with the permit, regardless of whether the noncompliance was shown on the application for the permit or was otherwise known to the city.

(2) The activity has been substantially abandoned or ceased for a period of 30 consecutive days or more, unless such abandonment or cessation is caused by circumstances beyond the control of the applicant, and the applicant is proceeding with due diligence, given all attendant circumstances, to resume the activity.

(3) Information provided in or as part of the permit application is materially incorrect.

(4) The permit should not have been issued pursuant to the criteria of this article or the criteria of any other ordinance applicable to the permit.

(5) Any check or instrument presented to the city in connection with the permit was returned unpaid for any reason.

(6) A change in an applicable regulation requires that the permit be revoked.

(7) The director is denied access to inspect or examine any vehicle or place where the activity occurs or any records to which the director is required to have access under this division.

(8) The permittee does not have other regulatory approval to operate the service in question (where required).

(9) In the case of permits issued pursuant to a contract for service, the contract is not in effect.

(10) Any permit, sticker, electronic device, or other required evidence of an airport use permit is counterfeited, disabled, tampered with, transferred, affixed, displayed, or removed contrary to rules issued by the director.

(11) Any fees or charges required by this division are not paid when due.

(12) Cancellation, termination or other lack of insurance or self-insurance.

(13) The permittee does not file the reports evidencing its commercial activities or revenue required under section 9-56 of this Code.

(i) *Procedures.* Before revoking or suspending a permit (and except as provided below), the director shall make a reasonable attempt to:

(1) Notify the permittee (or local management personnel of the permittee, in case the permittee is not notified) orally or in writing at an appropriate address (physical or electronic), telefax number or telephone number shown on the permittee's most recent permit application;

(2) Describe the evidence supporting the revocation or suspension; and

(3) Provide the permittee an opportunity to respond. If requested by the permittee, the director shall grant a reasonable time extension for the permittee's response, unless it is obvious that there has been a serious or repeated violation of applicable regulations. The proceedings may be handled informally. If, after making such an attempt, the director is of the opinion that the permit should be revoked or suspended, he may issue a written order so stating, which shall be effective (unless a later time is indicated in the order) when notice thereof is given to the permittee.

(j) *Suspension.* If the director so determines, based upon the nature of the violation, that the ends of justice would be served by a suspension in lieu of a revocation, the director may suspend the permit for a period of time to be stated in the order of suspension. The director may suspend a permit without prior notice if the permittee knows, or should know, that: (i) any other regulatory approval required to operate the vehicle is not in effect, (ii) required insurance or self-insurance is not in effect, or (iii) fees or charges required by this chapter are not paid when due. In case of such a suspension, the director shall provide an expedited opportunity for the permittee to respond and appeal.

(k) *Demerit system.* The director may classify violations and assign each a specified number of demerits. Accumulated demerits may be used to determine when permits are suspended or revoked.

(l) *Refund of annual permit fees.* A permit holder whose permit has been suspended or revoked for a reason other than nonpayment of fees shall be entitled to a refund of the pro rata share of the annual fee paid.

(m) *Nature of permits.* An airport use permit is only a nonexclusive, conditional permission to use airport premises. No permit confers a vested right or property right of any kind, and all permits are subject to amendment, cancellation, revocation, or suspension at any time.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02; Ord. No. 2010-354, § 2, 5-12-2010; Ord. No. 2014-1013, §§ 5, 6, 11-12-2014; Ord. No. 2020-371, §§ 9, 10, 5-6-2020)

Sec. 9-54. Contracts; specified service areas; commercial carrier service.

(a) *Contract service.* Where the director finds that reliable, modestly-priced, scheduled, on-demand or pre-arranged commercial carrier service between an airport(s) and one or more specified points or service areas would be

beneficial to the traveling public and should be assured by one or more contracts, the director may recommend that the city enter into one or more contracts for any such service. Any such contract must be approved by the city council and must contain the requirement that the operator maintain fares and other service standards.

(b) *Specified service areas, designation.* If such a contract would require a substantial financial investment by an operator, the contract may designate a specified service area that the contractor must serve, and the contract may include restrictions on granting others the right to use airport property to provide the same or similar service. However, it is the policy of the city that a contract containing such restrictions:

(1) Should be made, to the greatest extent practicable, only after seeking competitive proposals;

(2) Should be made with an operator that can provide low passenger fares consistent with good service and financial stability; and

(3) Should have a term no longer than is reasonably necessary to induce the operator to make the necessary financial investment or commitment.

(c) *Specified service areas, details.* A specified service area for a given airport shall not be substantially larger than is reasonably necessary, in the judgment of the director, to assure that the contracted-for service will be financially viable, modestly priced and reasonably frequent. The director may amend a specified service area from time to time, unless otherwise limited by contract. The director may decline to issue an airport use permit authorizing the use of airport property to provide commercial carrier service to or from points within any specified service area unless the director determines that the service in question:

(1) Would benefit the traveling public;

(2) Would be consistent with the practical and efficient operation of the airport in question; and

(3) Would not violate any contractual arrangements in process or in effect.

(d) *Commercial carrier service, generally.* The director shall insert conditions into each permit for commercial carrier service to require:

(1) Maintenance of a regular, predetermined schedule (which must be defined in terms of departure times, arrival times, pickup points, and discharge points, or in other terms such as routes or places served and minimum headways or maximum waiting times, all of which must provide enough detail to inform a traveler as to when and where the service will be provided); and

(2) Publication of the schedule and the carrier's fares in a manner acceptable to the director.

(e) *Commercial carrier service, additional conditions.* The director may also insert conditions into any permit for commercial carrier service to require one or more of the following:

(1) Termination of the permit after a temporary period shorter than the normal term of a permit.

(2) Payment of additional fees to the city upon noncompliance with the permit.

(3) Maintenance of vehicles of the capacity, quality, condition, and age required to comply with regulatory approvals and with the applicant's proposal or contract with the city.

(4) Posting of a performance bond or other performance security to assure compliance with the permit.

(5) Specification of points or areas to or from which service may not be provided, including, for example, specified service areas.

(Ord. No. 02-1184, § 1(Exh. A), 12-18-02; Ord. No. 06-947, § 1, 9-13-06)

Sec. 9-55. Application fees.

(a) For vehicle classes 2, 4, 5, and 6, as defined in Table 9-1, a non-refundable application fee must accompany each application for an airport use permit. The amount of the fee is

stated for this provision in the city fee schedule for an original permit or a renewal permit or for transfer of a permit.

(b) For vehicle classes 3, 7, 8, and 12, as defined in Table 9-1, the application fee is included in the annual use fee.

(c) Exceptions to the provisions of this section:

(1) If the applicant began operations or continued operations without a valid permit, the application fee is stated for this provision in the city fee schedule (to cover additional costs imposed upon the city);

(2) If the director prescribes a permit term shorter than one year, the full application fee must be paid, but the director shall grant the applicant a credit toward the next renewal fee, and the credit shall equal the pro rata part of the permit fee not covered by the short permit term;

(3) If the director prescribes a permit term longer than one year, the fee shall be increased pro rata; and

(4) The application fee for a temporary permit (term shorter than 30 days) is stated for this provision in the city fee schedule.

(5) See section 9-57 of this Code for additional provisions, as applicable.

(Ord. No. 02-1184, § 1(Exh. A), 12-18-02; Ord. No. 2010-354, § 3, 5-12-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2014-1013, § 7, 11-12-2014; Ord. No. 2016-728, § 3, 9-28-2016)

Sec. 9-56. Annual and recurring airport use fees and reporting.

(a) The annual and recurring airport use fees for the classes of vehicles described in Table 9-1, which are in addition to any other fees provided for in this division, are stated for this provision in the city fee schedule. Annual use permit fees are due in full at the time of issuance airport use permit.

(b) Off-airport rental car users and off-airport parking users, as described in Table 9-1, shall file with the director a financial report evidencing such off-airport rental car users' and off-airport parking users' gross receipts, as defined in Table 9-1, on a monthly basis on or before the 15th day of the month following the close of each calendar month. All such off-airport rental car users and off-airport parking users shall utilize any forms promulgated by the director for the submission of the required financial reports and shall submit the financial reports in accordance with any instructions, rules, or regulations promulgated by the director.

(c) Transportation network companies not having a TNC operating agreement with the city for service at IAH or HOU, as described in Table 9-1, shall file with the director a trip report evidencing such company's total number of trips on a monthly basis on or before the 15th day of the month following the close of each calendar month. All such companies shall utilize any forms promulgated by the director for the submission of the required trip reports and shall submit the trip reports in accordance with any instructions, rules, or regulations promulgated by the director.

(Ord. No. 02-1184, § 1(Exh. A), 12-18-02; Ord. No. 2010-354, § 4, 5-12-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2020-371, § 11, 5-6-2020)

Sec. 9-57. Airport use fees; additional provisions.

(a) *Billing accounts.* The director is authorized to establish monthly billing accounts for permittees who regularly use an airport.

(b) *Payment procedures.* Payment of the airport use fees required by this division shall be made in accordance with procedures promulgated by the director and at the times specified by the director. The director is authorized to employ automated vehicle identification systems and other measures deemed appropriate by the director for this purpose, parts of which systems, if used, shall be affixed to vehicles as prescribed by the director. Payment shall be made by charging the fee to an account established by the director pursuant to this section or by United States currency. With respect to taxicabs and non-

Houston taxis at city airports, the director shall also have the authority prescribed by chapter 46 of this Code.

(c) *Appeals.* The fee for an appeal to the hearing officer is stated for this provision in the city fee schedule, but the hearing officer may order the refund of part of the appeal fee, to the extent, if any, that the hearing officer determines that the cost incurred by the city is less than the fee for that appeal.

(d) *Temporary substitutes.* The fee for a temporary substitute vehicle is stated for this provision in the city fee schedule.

(e) *Replacement permits.* The fee for a replacement permit is stated for this provision in the city fee schedule.

(f) *Periodic revisions.* Periodically, the director shall calculate and submit to the city council for approval a new schedule of airport use fees that reflect changes in costs of providing, operating, and maintaining airport facilities.

(g) *Certain waivers.* For vehicles authorized to be operated under other types of agreements for use of airport property (e.g., airline agreements, hotel agreements, leases of real property) in exchange for rentals, fees or other charges paid to the city, the director may waive the fees required by this division (but not the requirement to obtain an airport use permit), if waiver is necessary to avoid a double payment to the city. The director may also waive the requirements for airport use permits and fees for local transit vehicles, if suitable vehicle identification provisions are made, and if, as a practical matter, they provide an essential public service requiring a direct tax subsidy. The director may also waive the requirements for airport use permits and fees for vehicles transporting passengers for purely charitable purposes or events if adequate evidence is provided to the director that such purpose or event is not for the commercial enrichment of an individual or entity.

(h) *Owner responsibility.* The owner of a commercial business entity providing transportation services under this division is responsible for the payment of all fees under this Code and may not delegate or assign such responsibility or otherwise avoid it by altering the name of the commercial business entity.

(Ord. No. 02-1184, § 1(Exh. A), 12-18-02; Ord. No. 07-739, § 1, 6-27-07; Ord. No. 2010-354, § 5, 5-12-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2014-1013, §§ 8—10, 11-12-2014; Ord. No. 2016-728, § 4, 9-28-2016; Ord. No. 2020-371, § 12, 5-6-2020)

Sec. 9-58. Scheduled ground transportation permits issued by the department of administration and regulatory affairs.

(a) *In general.* SGT permits issued by the director of administration and regulatory affairs pursuant to this section shall be sufficient authorization for SGT vehicles to operate on the streets, roads, and highways of the city while en route to or from an airport. An SGT permit is not required for vehicles operated in compliance with another chapter of this Code, or state or federal laws, governing vehicles for hire and use of streets, roads, and highways. An SGT permit, or another regulatory approval, is required in addition to an airport use permit in the circumstances described in section 9-52 of this Code.

(b) *Term, etc.* SGT permits shall have a term of one year from the date of issuance and may be renewed for yearly terms upon reapplication therefor.

(c) *Fees.* Permit fees per year for SGT permits are stated for this provision in the city fee schedule.

(d) *Applications.* Applications for SGT permits shall be submitted on forms furnished by the director of administration and regulatory affairs and shall provide the following information:

(1) Name and form of business under which the service will be operated.

(2) The mailing address and telephone number of the applicant.

(3) A list showing the model, type, and make of each vehicle applicant desires to place into operation.

(4) A description of the service proposed to be provided. If the service is contract service authorized by section 9-54 of this Code, a copy of the contract is a sufficient description.

(5) Written proof that the applicant has an airport use permit for each vehicle in question or has applied for such a permit.

(6) Whether the applicant has ever been convicted of a felony or misdemeanor

(7) Any other information that may be reasonably requested by the director.

(e) *Criminal history.* Each person listed on the application must comply with the criminal history requirements of chapter 46 of this Code.

(f) *Issuance.* Upon verification of the material submitted by the applicant pursuant to subsection (d) of this section and payment of the required permit fee, the director of administration and regulatory affairs shall issue an SGT permit to the applicant covering each vehicle specified in the application provided that any person required to be listed in the application has not been convicted, served time in jail or prison or is not subject to deferred adjudication for any applicable offense specified in section 1-10 of this Code.

(g) *Other standards.* SGT permittees are required to observe the requirements of article VI of chapter 46 of this Code (relating to jitneys) concerning the conditions and safety of their equipment and operations. Provided, however, where the operator's contract with the city or an airport use permit provides for more stringent provisions, the more stringent provisions shall be applicable.

(h) *Substitute vehicles.* Permittees may substitute a vehicle for a vehicle covered by an SGT permit, provided the director of administration and regulatory affairs is notified in advance on forms approved by the director.

(i) *Revocation or suspension; appeals.* The director of administration and regulatory affairs may revoke or suspend any SGT permit, in whole or in part, for failure to comply with this section, provided that:

(1) The permittee is given notice and an opportunity to be heard prior to the action; and

(2) No such action is effective until the permittee is notified in writing, which notice must include a statement of the reason for the action.

Within 15 days following receipt of such a notice, and if the permittee is wholly or partially suspended for 16 days or more or revoked, the permittee may appeal the action to the city council by delivering a written notice of appeal to the city secretary. Upon timely receipt of such appeal, a date will be set by the city council for a hearing thereon, subject to the councils general rules. The city council may affirm, modify, or reverse the action of the director of administration and regulatory affairs.

(j) *Status of vehicles.* Any vehicle for which an SGT permit is in effect shall not be deemed a "taxicab" as defined in section 46-16 of this Code at any time when the vehicle is operated pursuant to this section.

(Ord. No. 02-1184, § 1(Exh. A), 12-18-02; Ord. No. 08-52, § 38, 1-16-08, eff. 1-26-08; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No 2011-489, § 5, 6-22-2011; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2016-728, § 5, 9-28-2016)

Sec. 9-59. Transportation network company airport operations.

(a) TNCs (class 11, as defined in Table 9-1) and their drivers and vehicles must be in compliance with chapter 2402 of the Texas Occupations Code, and TNCs must have a valid airport use permit to operate at a city airport.

(b) TNC drivers waiting for a fare through a TNC's mobile application technology shall wait in a designated TNC commercial vehicle waiting area on airport property or outside the geofence.

(c) TNC drivers may pick up or drop off pre-arranged passengers only at designated TNC pick-up and drop off areas at airport terminal commercial curbs or other airport areas designated by the director.

(Ord. No. 2014-1013, § 11, 11-12-2014; Ord. No. 2016-728, § 6, 9-28-2016; Ord. No. 2020-371, § 13, 5-6-2020)

Sec. 9-60. Geofence required.

TNCs shall create and maintain a geofence that complies with HAS Operating Instruction to track and report the monthly activity of TNC vehicles at any city airport. A TNC's mobile application technology must not show available vehicles within the geofence boundary surrounding an airport, except in designated TNC commercial vehicle waiting areas. A TNC's mobile application technology must capture vehicle movements into and out of the boundaries, to allow for tracking of trips from the airport. Each TNC shall (i) demonstrate to the director that the airport's designated geofenced area has been incorporated into its mobile application technology and (ii) ensure TNC drivers comply with all state and airport requirements.
(Ord. No. 2014-1013, § 11, 11-12-2014; Ord. No. 2020-371, § 14, 5-6-2020)

Sec. 9-61. Assessment and payment of TNC trip fees.

(a) Trip fees for TNCs shall be assessed when entering an airport's designated geofenced area for the purpose of picking up a passenger.

(b) Fees shall be payable to the Houston Airport System based upon monthly accumulated trip fees and are due the 15th day of every month. TNCs shall pay the Houston Airport System electronically either by wire transfer or by Automated Clearing House to the city bank account designated by the director.
(Ord. No. 2014-1013, § 11, 11-12-2014; Ord. No. 2016-728, § 7, 9-28-2016; Ord. No. 2020-371, § 15, 5-6-2020)

Table 9-1.
Annual and Recurring Airport Use Fees for Commercial Passenger Vehicles

Class		*Description / Criteria*	*Fees*
1	Taxicabs	HOU: Departures from the airline terminal building at HOU with one or more passengers.	$1.25 per departure
		IAH: Departures from anywhere at IAH with one or more passengers	$2.75 per departure
2	Commercial Carrier Service (Contract)	Vehicles providing commercial carrier service under contract with the City.	Fees are as prescribed in the contract.
3	Commercial Carrier Service (Special Permit Conditions)	Vehicles providing commercial carrier service not under contract with the City, but with special permit conditions under subsection 9-54.	The annual use fee, based on number of seats (including driver) is: 1 through 6 seats: $325.00 7 through 11 seats: $400.00 12 through 24 seats: $475.00 25 seats or more: $550.00
4	On-Airport Rental Car Users at IAH	Vehicles used in connection with the business of on-airport rental car users.	Customer facility charge is as specified in the contracts.

Class		*Description / Criteria*	*Fees*
	On-Airport Rental Car Users at HOU	Vehicles used in connection with the business of on-airport rental car users.	Customer facility charge is as established by the director and shall not exceed a maximum of $8.00 per HOU transaction day.
5	Off-Airport Rental Car Users at IAH	Vehicles used in connection with the business of off-airport rental car users.	Off-airport percentage of adjusted gross receipts. See Note 1.
	Off-Airport Rental Car Users at HOU	Vehicles used in connection with the business of off-airport rental car users.	Customer facility charge is as established by the director and shall not exceed a maximum of $8.00 per HOU transaction day.
6	Off-Airport Parking Users	Vehicles used in connection with the business of off-airport parking users.	8% of gross receipts. See Note 2.
7	Courtesy Limousines	Courtesy vehicles providing limousine service	The annual use fee, based on number of seats (including driver) is: 1 through 6 seats: $325.00 7 through 11 seats: $400.00 12 through 24 seats: $475.00 25 seats or more: $550.00 Additional fee for each hour over first for parking in Limousine Lots is $1.50 per each 15 minute increment. Waive first chargeable hour for vehicles waiting for international flights.
8	Other Courtesy Vehicles	All other courtesy vehicles not covered elsewhere in this table	The annual use fee, based on number of seats (including driver) is: 1 through 6 seats: $325.00 7 through 11 seats: $400.00 12 through 24 seats: $475.00 25 seats or more: $550.00
9	All Others	All other commercial passenger vehicles not covered elsewhere in this table	The annual use fee, based on number of seats (including driver) is: 1 through 6 seats: $325.00 7 through 11 seats: $400.00 12 through 24 seats: $475.00 25 seats or more: $550.00

Class		*Description / Criteria*	*Fees*
10	Occasional Use	All commercial vehicles using the airport occasionally (no more than twice in any week)	Fee per trip, based on number of seats (including driver) is: 1 through 6 seats: $2.00 7 through 11 seats: $3.00 12 through 24 seats: $5.00 25 seats or more: $7.50
11	Transportation Network Companies (TNCs) (without a TNC operating agreement with the city at IAH and HOU)	Vehicles used for providing transportation services pursuant to Chapter 2402 of the Texas Occupations Code and chapter 9 of this Code.	$1.25 per departure from HOU $2.75 per departure from IAH
	Transportation Network Companies (TNCs) (with a TNC operating agreement with the city at IAH and HOU)	Vehicles used for providing transportation services pursuant to Chapter 2402 of the Texas Occupations Code and chapter 9 of this Code.	Fees pursuant to TNC operating agreements
12	Wheelchair Accessible Service Providers (WAVS)	Vehicles providing transportation services pursuant to chapter 46, article X of this Code.	The annual use fee, based on number of seats (including driver) is: 1 through 6 seats: $325.00 7 through 11 seats: $400.00 12 through 24 seats: $475.00 25 seats or more: $550.00

Note 1 *Rental car users (percentage, gross receipts).* For off-airport rental car users: (i) the off-airport percentage is two percentage points lower than the prevailing percentage rate of gross receipts for on-airport rental car users at the airport in question, as determined by the director, and (ii) "adjusted gross receipts" means the sum of money, for any given time period, computed according to the following formula: (G - N) - E. In this formula:

"G" is gross receipts, which for this purpose shall mean all revenue paid or payable and all compensation received in connection with the user's business operations at the facility served by the commercial passenger vehicles in question, including without limitation, the following: all sums received as time and/or mileage charges after discount, for the rental of automobiles by the user; all sums received from the user's customers by the reason of their acceptance of personal accident insurance; all sums received for any other insurance or airport fees, including any renewal policy issued to any customer; all sums received in connection with automobile rentals for mobile phones, car seats, and other amenities; all sums received for valet services, or other services rendered in connection with user's business; the fair market value of any goods, services or other things of value received as compensation for, or in exchange for, the supply of automobiles or any of the other goods and services referred to above; but "gross receipts" shall not include the following: the amount of any federal, state, or municipal sales or other similar taxes (which do not include non-tax fees such as airport use fees), whether or not separately stated and/or collected directly from customers of the user, now or hereinafter levied or imposed; any sums received as insurance payments or otherwise for damage to automobiles or other property of the user or for loss, conversion, or abandonment of such automobiles; amounts paid by customers of the user separately billed as additional charges for waiver by the user of its right to recover from customers for damage to the vehicle rented; any charges collected from customers as reimbursement for refueling an automobile rented pursuant

to a rental agreement under which the customer is obligated to return the automobile with the same amount of gasoline furnished at rental; or any sums received by reason of the user's disposal of capital assets and/or trade fixtures.

"N" is the amount, if any, of the user's non-airport-related gross receipts (included in "G") for the time period in question, as determined by the director. The user may seek to have such an amount determined for any given time period by applying in writing to the director on or before the due date of the fee for that time period and providing clear and convincing documented proof as to the amount of the user's non-airport-related gross receipts during such time period. If such proof is made to the satisfaction of the director, the director shall issue an order determining the amount of "N" for such time period and adjusting the airport use fee accordingly. If the director does not issue such an order within 30 days following the day that the user makes an application, the user may appeal the failure to issue the order to the hearing officer in the same manner as an appeal for the denial of a permit.

"E" is $15,000.00 per month, prorated on a daily basis for time periods shorter than a month.

Note 2 *Parking users (gross receipts).* For off-airport parking users, 'gross receipts' means all revenue paid or payable and all compensation received from the user's business operations at each facility served by the commercial passenger vehicles in question, including without limitation, the following: all sums received as parking charges after discount; all sums received as airport fees; all sums received in connection with providing any amenities or services in connection with parking; all sums received for valet services or other services rendered in connection with user's business; the fair market value of any goods, services or other things of value received as compensation for, or in exchange for, motor vehicle parking or any of the other goods and services referred to above; but "gross receipts" shall not include the following: the amount of any federal, state, or municipal sales, or other similar taxes (which do not include non-tax fees such as airport use fees), whether or not separately stated and/or collected directly from customers of the user, now or hereinafter levied or imposed; any sums received as insurance payments or otherwise for damage to automobiles or other property of the user or for loss, conversion, or abandonment of such automobiles or property; or any sums received by reason of the user's disposal of capital assets and/or trade fixtures. With the approval of the director, a user that also provides parking for non-airport-related activities may deduct the resulting non-airport-related gross receipts. Any such deduction is determined and governed by the provision, above, for the non-airport-related deduction from the gross receipts of off-airport car rental users (see "N" in the formula for adjusted gross receipts of off-airport car rental users).

(Ord. No. 02-1184, § 1(Exh. A), 12-18-02; Ord. No. 08-52, § 38, 1-16-08, eff. 1-26-08; Ord. No. 09-683, § 2, 7-22-09, eff. 1-1-2010; Ord. No. 2010-354, § 6, 5-12-2010; Ord. No. 09-683, § 2, 7-22-09, eff. 7-1-2010; Ord. No. 2014-1013, § 12, 11-12-2014; Ord. No. 2016-728, §§ 9—12, 9-28-2016; Ord. No. 2020-371, § 16, 5-6-2020)

Sec. 9-62. Wheelchair accessible service provider airport operations.

Wheelchair accessible service providers (class 12, as defined in Table 9-1) and their drivers and vehicles must comply with chapter 46 of this Code.

(Ord. No. 2016-728, § 8, 9-28-2016)

Secs. 9-63—9-70. Reserved.

DIVISION 4. SOLICITATION

Sec. 9-71. Definitions.

When used in this in this division, the following words, terms, and phrases shall have the

meanings ascribed to them in this section, unless the context clearly indicates a different meaning:

Baggage claim area means any of the spaces designated for the disposition of baggage in each terminal facility.

Commercial activity shall mean any activity undertaken for profit or direct monetary benefit, including the sale, advertisement, or display of goods or services.

Distribute literature means to distribute any printed or written matter consisting of books, pamphlets, handbills, tracts, cards, circulars, pictures, films, magazines, or any other written matter for a philanthropic, religious, charitable, benevolent, humane, public interest, political, or similar eleemosynary purpose, nonprofit activity or non-commercial activity or purpose.

Permittee means a person who engages in solicitation or distributes literature pursuant to a permit duly issued under this division.

Person means only a natural person.

Solicitation means the act of requesting or accepting money or other thing of value by a person for a philanthropic, religious, charitable, benevolent, humane, public interest, political, or similar eleemosynary purpose, nonprofit or non-commercial activity or purpose. This term shall not include activities intended to directly benefit the individual making the request, which shall be considered commercial activity as defined hereunder and regulated by section 9-161 et seq. of this Code and any other ordinances, laws, or rules regulating commercial activity at the airports.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-72. Regulated activities.

(a) Any person who desires to engage in solicitation or distribute literature at any city airport shall first file an application with the director on a form prescribed by the director during regular business hours at the office of the director or at such other place prescribed by the director.

(b) Upon receipt of an application containing the information required by the director and upon the payment of such fees as the director may uniformly prescribe to defray administrative expenses, if there is space available in the airport facility in which the applicant wishes to engage in solicitation or distribute literature, the director shall issue a permit to the applicant.

(c) Upon issuance of a permit by the director, the permittee shall be entitled to engage in solicitation or distribute literature for a period of not more than seven consecutive days. A new application must be completed and submitted to the director prior to each seven-day period or portion thereof during which a person desires to engage in the activities regulated hereunder.

(d) Upon issuance of a permit, the permittee shall be entitled to engage in solicitation or distribute literature from within, and not from without, certain solicitation booths or areas to be designated by the director

(e) It is the intent of the city council that the director exercise no judgment regarding the purpose or content of the proposed activity and exercise no discretion over the allocation of available booth space or designated areas, except as provided in this section. The allocation of available booth space or designated areas hereunder by the director shall be a routine clerical and mandatory function. The director shall utilize a first-come-first-served basis for allocating the booths or designated areas. In the event that two or more applicants seek to conduct the activities regulated herein in the same booth or designated area at the same time, the director shall apportion the available booth space or designated area between or among permittees on an as equitable basis as possible.

(f) The permittee shall conspicuously display his permit in the booths or designated areas at all times while engaging in solicitation or distributing literature.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-73. Prohibited activities.

It shall be unlawful for any person who is engaging in solicitation or distributing literature described under this division to:

(1) Intentionally or knowingly cause physical, expressive, or verbal contact with another person when permittee knows or should reasonably believe that the other person will regard the contact as offensive;

(2) In any way obstruct, delay, or interfere with the free movement of any other person or seek to annoy, coerce, or disturb any other person;

(3) Engage in solicitation or distribute literature outside a solicitation booth or designated area provided for under this division;

(4) Engage in solicitation or distribute literature without first filing an application and obtaining a permit as required under this division;

(5) Misrepresent whether any printed matter is available without cost or donation;

(6) Make any loud or raucous noise, verbalization, communication, or disturbance that interferes with: the public, the ability of others to hear public announcements, the transaction of business by any airline or other airport tenant, concessionaire, licensee, or permittee;

(7) Drape or attach any materials to any booth or in any designated area;

(8) Alter a permit issued by the director;

(9) Engage in solicitation or distribute literature while displaying a permit issued in the name of another person;

(10) Engage in solicitation or distribute literature in a booth or designated area after the expiration of any permit issued under this division;

(11) Engage in solicitation or distribute literature for a purpose other than that set out in the application upon which the permit was issued; or

(12) Misrepresent permittee's identity, purposes, or affiliations to any person at the airports; or

(13) Represent in connection with the solicitation or distribution of literature that the issuance of a permit by the director constitutes an endorsement or approval of the purposes of such activities by the city or any officer or employee thereof.

(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Secs. 9-74—9-90. Reserved.

ARTICLE III. AIRSIDE AREA REGULATIONS*

DIVISION 1. GENERAL

Sec. 9-91. Identification badge required.

(a) It is unlawful for any person to be in any security identification display area of any city airport unless the person properly and continuously displays, while in the area, a valid, unexpired identification badge issued or approved by the aviation official. An identification badge will be deemed properly displayed only if is worn photograph side up, on the front of the outermost garment between the waist and neck.

(b) It is unlawful for any person to enter into or upon any other airside area of any city airport unless the person continuously has a valid unexpired identification badge issued or approved by the aviation official in his possession while in the area.

(c) It is unlawful for any person to counterfeit or imitate or attempt to counterfeit or imitate an identification badge issued or approved by the aviation official; nor shall any person use or exhibit, or attempt to use or exhibit, any identification badge unless he is the actual authorized holder thereof.

*__Editor's note—__Ord. No. 02-1984, § 1(Exh. A), adopted December 18, 2002, amended Art. III in its entirety. Formerly, said article pertained to commercial use of airports and derived from Code 1968, §§ 9-119—9-151 and subsequent amendments.

(d) In addition to any administrative remedies available to the director, any person violating any of the provisions of this section shall, upon conviction, be fined not less than $50.00 nor more than $500.00. It is a defense to prosecution under this section that the actor is:

(1) An enplaning or deplaning passenger; or

(2) Escorted by a person who is duly badged according to department and TSA regulations.

(3) A uniformed member of a flight crew with a valid company identification badge who is on the ramp consistent with federal regulations.

(e) For purposes of the enforcement of this section, an identification badge is valid only when used in an area to which it is intended to give its authorized user access and shall not be valid in any other place.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-92. Bicycles, animals, etc., on air operations area.

No person shall ride a bicycle or allow any animal on any air operations area of any city airport except in compliance with rules and regulations promulgated by the director.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-93. Intoxicated on city airports.

It shall be unlawful to be intoxicated on city airport property. To the extent that the person's conduct also constitutes a violation of state penal laws including, without limitation, Chapter 49 of the Texas Penal Code, then the offense shall be punishable as provided by state law.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-94. Provision of ground handling services.

No person shall provide ground handling services on any city airport without first obtaining a ground handling permit from the city.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-95. Liability insurance required.

Those persons not under written contract with the city involving activities on or relating to a city airport shall maintain the following insurance coverages and minimum amounts in order to access the airside of a city airport. Evidence of such insurance coverages shall be provided to the aviation official to his satisfaction.

(1) Commercial General Liability, including Broad Form Property Damage, Contractual Liability, Bodily Injury, Personal Injury, and Products and Completed Operations:

$1,000,000.00 per occurrence/aggregate.

(2) Automobile liability coverage:

Combined single limit of $1,000,000.00.

(3) Workers compensation in statutory amounts.

(4) Such other insurance as the director may require.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Secs. 9-96—9-110. Reserved.

DIVISION 2. IDENTIFICATION BADGES

Sec. 9-111. Issuance of identification badge.

Consistent with procedures issued by the director, the aviation official shall issue identification badges to persons who require access to airside areas in order conduct activities on behalf of the city, department lessees, or department contractors, and to others who are determined by the director to require access. Without limitation, the procedures may, to the extent consistent with applicable laws and regulations, provide for:

(1) Review and consideration of applicant's background, including criminal history, citizenship status, driving history and related safety and security matters;

(2) Sponsorship of applicants by department contractors or lessees, who may be required to provide insurance coverage

for persons they sponsor and assume responsibility for their actions in using the identification badges;

(3) Different identification badge classes and geographic coverage areas;

(4) Requirements for applicants or their sponsors to pay fees, which shall be stated in the city fee schedule, to cover the costs of issuing and administering the identification badges;

(5) Drug screening and testing of applicants, either through the sponsor or the department;

(6) Periodic training and periodic rescreening of identification badge holders by the department or by the sponsors, or both; and

(7) Responsibility of sponsor to keep the department notified of the employment status of persons they sponsor and secure the return of identification badges to the department upon request of the department or cessation of employment.

(Ord. No. 02-1184, § 1(Exh. A), 12-18-02; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 9-112. Department property.

Identification badges issued under this division shall be and remain the property of the department and may only be used in accordance with applicable laws and regulations. Upon lawful request, any person holding a security identification badge shall immediately surrender the badge to the aviation official.

(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-113. Suspension, revocation.

(a) The director shall establish procedures for the suspension and revocation of identification badges consistent with any applicable laws and regulations. Without limitation, the procedures may provide:

(1) That identification badge holders may have their badges suspended for a period of time or revoked for violation of applicable laws and regulations.

(2) That persons in possession of identification badges who are observed while violating applicable laws and regulations may be required to immediately surrender the identification badges to the aviation official, provided that before making any such demand for immediate surrender the aviation official shall obtain the concurrence of the director or a deputy or assistant director of the department.

(3) A hearing procedure, for suspensions or revocations, which shall include a provisions for a hearing to be afforded on three days' written request to any person who has been required to surrender an identification badge upon demand of an aviation official.

(b) Consistent with procedures established for that purpose, the director may suspend the sponsorship privileges of department lessees and contractors who fail to comply with applicable laws and regulations. Notice and an opportunity for a hearing shall be afforded prior to any suspension or revocation of sponsorship privileges.

(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Secs. 9-114—9-120. Reserved.

DIVISION 3. MOTORIZED EQUIPMENT

Sec. 9-121. Driver's license required to operate motorized equipment.

No person shall operate a motorized equipment on the airside area of any city airport unless the person has in his possession a valid driver's license. In any prosecution under this section, the exemptions set forth in Section 521.001 et. seq. of the Texas Transportation Code shall be treated as defenses to prosecution in the manner provided by Section 2.03 of the Texas Penal Code. Any conduct under this section that also constitutes an offense under state law shall be punishable as provided by the applicable state law.

(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-122. Operation of motorized equipment.

(a) No person shall park or operate any motorized equipment in a manner contrary to or in violation of posted traffic signs on the airside of city airports.

(b) No person shall operate any motorized equipment on the airside of any city airport unless such equipment has been properly permitted in accordance with regulations promulgated from time to time by the director, and the person operating such motorized equipment is in compliance with section 9-91 of this Code.

(c) No person shall operate any motorized equipment between a terminal building and an aircraft from which passengers are enplaning or deplaning at the hardstands on the ramp.

(d) No person shall operate any motorized equipment in the aircraft movement area of the air operations area on any city airport unless the person maintains constant two-way radio contact with the tower and operates in compliance with the radio instructions or other signals given by the tower.

(e) No person shall operate any motorized equipment in any hangar on any city airport unless the exhaust on the motorized equipment is equipped with adequate screens or baffles to prevent the escape of sparks and the propagation of flames.

(f) Any person operating motorized equipment on the airside of any city airport shall yield the right-of-way to any aircraft that is being towed or maneuvered.

(g) No person operating motorized equipment on the airside of any city airport shall pass any moving aircraft without first receiving clearance from the tower.

(h) No person shall operate motorized equipment on the airside of any city airport without operating headlights and taillights, both of which shall be of sufficient brilliance to assure safety while operating at night. Such lights shall be kept lighted between sunset and sunrise. All motorized equipment shall have not less than one reflector mounted on each corner of such equipment.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-123. Airside speed limits.

(a) It shall be unlawful for any person to operate motorized equipment on the air operations area and the secured area of any city airport in excess of 15 miles per hour.

(b) It shall be unlawful for any person to operate motorized equipment on the airside service roads of any city airport in excess of 25 miles per hour.

(c) It shall be unlawful for any person to operate motorized equipment in the tug tunnels at IAH or HOU in excess of 10 miles per hour.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-124. Storing, parking, or repairing of motorized equipment.

(a) No person shall store, park, or repair any motorized equipment of any kind on any air operations area or secured area of any city airport, except in areas that are clearly marked by signage as designated by the aviation official for such purposes.

(b) The aviation official may move or cause to be moved to some other location, at the sole expense and risk of the owner, any motorized equipment that is in violation of this section or any other city ordinance or city airport rule or regulation.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Secs. 9-125—9-140. Reserved.

DIVISION 4. AIRCRAFT OPERATIONS

Sec. 9-141. Removal of aircraft from city airports.

(a) The aviation official may move or cause to be moved any disabled aircraft or its wreckage on any city airport that creates a hazard or interferes with or jeopardizes the safe and orderly

operation of the city airport and its lawful use by others. The removal shall be at the owner's sole expense and risk.

(b) In an emergency, when it is necessary to remove immediately any crashed or disabled aircraft or its wreckage from any city airport to restore the city airport to normal operational conditions, the director shall have the authority, on an emergency basis, to expend funds for that purpose from department funds budgeted in the miscellaneous contractual services account, if said funds are available. Any such action shall be consistent with city procedures for the issuance of emergency purchase orders, shall be coordinated with city purchasing officials, and shall, where applicable based upon the cost of the work, be submitted to city council as soon as practicable following the commencement of the work.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-142. Aircraft parking charges for city airports.

(a) The range of aircraft parking charges that the director may impose on an aircraft operator for each 24-hour period, or any part thereof, that an aircraft is parked on the unleased areas on the city airports that are controlled by the city is stated below for this provision and the effective rate can be found in the city fee schedule.

(1) For aircraft with a wingspan up to but not including 79 feet, also known as Group I and Group II aircraft per the FAA, $70.00 to $175.00.

(2) For aircraft with a wingspan from 79 feet up to but not including 118 feet, also known as Group III aircraft per the FAA, from $100.00 to $200.00.

(3) For aircraft with a wingspan from 118 feet up to but not including 171 feet, also known as Group IV aircraft per the FAA, from $150.00 to $250.00.

(4) For aircraft with a wingspan from 171 feet up to but not including 214 feet, also known as Group V aircraft per the FAA, from $200.00 to $350.00.

(5) For aircraft with a wingspan of 214 feet or greater, also known as Group VI aircraft per the FAA, from $300.00 to $500.00.

(b) In the event that the FAA redefines the wingspan dimensions to something other than those shown above, the FAA Group designation and rate range shown above shall apply.

(c) Prior to parking an aircraft on any unleased area on the city airports that is controlled by the city, the operator shall first obtain the approval of the aviation official.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2020-371, § 17, 5-6-2020)

Secs. 9-143—9-160. Reserved.

DIVISION 5. COMMERCIAL USE

Sec. 9-161. Council authorization required.

No person shall use any city airport or any facility of any city airport for commercial activities without having been authorized so to do by the city council.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-162. Landing fees.

(1) The following landing fees are hereby established for those aircraft operators conducting flights into IAH, HOU and EFD who do not have a written contract with the city providing for the use of the city airport:

a. Each such aircraft operator conducting flights into IAH or HOU shall pay a landing fee for each landing of an aircraft at the airport at the same rate established from time to time for that airport in the city contracts applicable to signatory scheduled commercial airlines, plus an administrative fee not to exceed 25 percent as established by the director to recover the city's costs of billing and collection of the fees and other administrative expenses.

b. Each aircraft operator conducting flights into EFD shall pay a landing fee at a rate

to be established by the director between a minimum of $0.50 and a maximum of $1.50 per thousand pounds of FAA maximum certified gross landing weight.

c. If the FAA has not approved a maximum certified gross landing weight for a particular aircraft, the above rates shall be applied to the aircraft manufacturer s maximum gross landing weight.

d. Notwithstanding the foregoing, the minimum landing fee for any aircraft landing at any city airport shall be $25.00 per landing, regardless of weight.

e. The landing fee rate shall be subject to a year-end adjustment as such procedure is described in the written contract providing for the use of the airport between the city and the signatory scheduled commercial airlines. Aircraft operators subject to this section shall pay the difference or be credited the difference between the initial rate and the adjusted rate as applied to landing weight described in this section.

(2) The landing fee imposed under this section for each individual city airport shall not apply to the following:

a. Scheduled commercial airlines operating under a certificate issued by the department of transportation or operating under the authority of a bilateral treaty agreement with the United States of America that have executed a contract, lease or other agreement with the city and that are obligated to pay landing fees established in accordance with the provisions of that contract or lease agreement.

b. Nonscheduled aircraft operating under certificates issued by the FAA pursuant to authority other than Federal Aviation Regulation Parts 121, 125, 129 or 135.

(3) Each aircraft operator conducting flights into or out of IAH, HOU and EFD shall provide a monthly report of all enplaning and deplaning passengers or cargo loaded and off-loaded. The reports shall also include information regarding the number of flights, terminals utilized, and any other information required by the director.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-163. Collection, payment of landing fees.

Each fixed base operator on IAH, HOU or EFD whose facilities are used for the origination or termination of a commercial or revenue flight for which a landing fee is due under section 9-162 of this Code shall collect the landing fee from the aircraft operator engaged in the flight and shall provide to the aircraft operator a receipt upon a form furnished by the director to evidence payment thereof. The fixed base operator shall remit to the director the amounts received on a monthly basis together with a complete report and accounting upon the forms furnished by the director for this purpose. As compensation for this service and the cost to the fixed base operator involved, the fixed base operator may retain from each landing fee collected a sum equal to 25 percent thereof or the sum of $5.00, whichever is less.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-164. Failure to pay fees; fees supplemental.

(a) It shall be unlawful for any aircraft operator who incurs any landing fee obligations under section 9-162 to remove or attempt to remove from IAH, HOU, or EFD any aircraft for which a landing fee has been incurred without first paying the charges.

(b) The airport landing fees shall be in addition to and not in lieu of any other fees or charges established for the use of the particular city airport.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-165. Use of unleased areas at HOU and IAH.

(a) Upon the written permission of the director, the unleased terminal space (including common use areas) and associated apron space at HOU and IAH may be occupied by scheduled or nonscheduled airlines and their service provid-

ers for consideration based upon the categories, rate making methodology, periodic adjustment, and reconciliation procedure described in the use and lease agreement providing for the use of the city airport between the city and the signatory scheduled airlines.

(b) A scheduled or nonscheduled airline shall also pay an administrative fee of up to 25 percent (as established by the director to recover the city's costs of billing and collection of rental fees and other administrative expenses) of the consideration described in this section for the use of the unleased terminal space (including common use areas) and associated apron space at HOU and Terminal A at IAH.

(c) The aircraft parking charges set forth in section 9-142 may be applied to aircraft operators falling under this section as described therein. However, the aircraft parking charges shall only apply after the maximum gate occupancy time allocations have expired as described in the most recent access and assignment policy of the department.

(d) The director is hereby authorized to refund any overcharges made pursuant to this section by means of a credit against future payments made by an airline pursuant to this section.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02; Ord. No. 2020-371, § 18, 5-6-2020)

Sec. 9-166. Common use areas at Terminal D and the FIS.

(a) Non-signatory airlines who desire to use the common use areas at Terminal D and the FIS at IAH may do so after receiving the written permission of the director, which shall be granted if space is available.

(b) Consideration for the use of such common use areas at Terminal D and the FIS shall be based upon the categories, rate making methodology, periodic adjustments, and reconciliation procedures described in the international facilities agreement for the use of Terminal D and the FIS between the city and signatory airlines.

(c) Non-signatory airlines shall also pay an administrative fee of up to 25 percent (as established by the director to cover the city's costs of billing and collection of user fees and other administrative expenses) of the consideration described in this section for the use of the common use areas at Terminal D and the FIS.

(d) The aircraft parking charges set forth in section 9-142 may be applied to this section as described therein. However, the aircraft parking charges shall only apply after the maximum gate occupancy time allocations have expired as described in the most recent access and assignment policy of the department.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-167. Air cargo operations at IAH.

(a) For each three-hour cargo operation (i.e. cargo off-load and/or on-load) or any part thereof not involving livestock, or for each four-hour period or any part thereof for air cargo operations involving livestock, the permitted range of air cargo aircraft operations charges that the director may impose on an aircraft operator for the use of the cargo apron areas at IAH is stated below for this provision and the effective rate can be found in the city fee schedule.

(1) For aircraft with a wingspan up to but not including 79 feet, also known as Group I and Group II aircraft per the FAA, from $125.00 to $250.00.

(2) For aircraft with a wingspan from 79 feet up to but not including 118 feet, also known as Group III aircraft per the FAA, from $225.00 to $350.00.

(3) For aircraft with a wingspan from 118 feet up to but not including 171 feet, also known as Group IV aircraft per the FAA, from $325.00 to $450.00.

(4) For aircraft with a wingspan from 171 feet or greater, also known as Group V and Group VI aircraft per the FAA, from $450.00 to $650.00.

(b) In the event that the FAA redefines the wingspan dimensions to something other than shown above, the FAA Group designation and rate range shown above shall apply.

(c) Aircraft operators who are permitted to have their aircraft remain on the air cargo apron areas by an aviation official beyond the air cargo operation time period additionally shall be charged the aircraft parking charge set forth in section 9-142.

(d) All air cargo operations at IAH shall be conducted only on air cargo apron designated by the director except as otherwise permitted by an aviation official. In the event air cargo operations are directed by an aviation official to be conducted on other than designated air cargo apron areas on IAH, the parking charges set forth in section 9-142 shall apply in lieu of the charges set forth in this section.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2020-371, § 19, 5-6-2020)

Sec. 9-168. Loading and discharging of passengers.

No scheduled or non-scheduled airline shall load or discharge passengers at city airports except at the aircraft parking positions at the terminals, hard stand locations on the ramps as designated by the aviation official, or on fixed base operator aprons. In the case of an emergency, a scheduled or non-scheduled airline may discharge passengers elsewhere on a city airport as directed by the aviation official.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Secs. 9-169—9-180. Reserved.

DIVISION 6. DELIVERY OR RECEIPT OF AIRCRAFT FUELS

Sec. 9-181. Permission—Required.

It shall be unlawful for any person to deliver aircraft fuel to a city airport, whether by pipeline, tank car, transportation truck, or any other means, for the purpose of storage, sale, distribution, or use thereat, without written permission from the aviation official, provided that the provisions of this division shall not apply to deliveries of aircraft fuel made pursuant to a written agreement with the city.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-182. Same—How obtained.

The written permission required by section 9-181 shall be obtained by written application to the aviation official. Endorsement of approval by the aviation official on a copy of the written application that has been returned to applicant will constitute continuing permission to make aircraft fuel deliveries until canceled by either party, at which time the endorsed copy of the application shall be returned to the director. The aviation official may cancel any such permission upon failure of the permittee to pay the fees prescribed in this division or otherwise to comply with the provisions of this division. The application must contain the names and airport address of each of the supplier's customers.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-183. Charge to be paid by suppliers—Imposed; amount.

There is hereby imposed upon all persons delivering aircraft fuel to any city airport a per gallon fee stated for this provision in the city fee schedule for fuel delivered to the city airport for the purpose of storage, sale, distribution or use. This charge shall not be applicable to deliveries of aircraft fuel made to the following:

(1) Scheduled airlines operating scheduled services to the airport pursuant to state or federal authority that are obligated by contract, lease, or ordinance to pay a landing fee to the city, provided that the aircraft fuel is used in aircraft engaged in operating the scheduled airline service.

(2) Nonscheduled aircraft operating at the airport under certificates issued by the FAA pursuant to Federal Aviation Regulations Parts 121 and 129 that are obligated by contract, lease, or ordinance to pay a landing fee to the city.

(Ord. No. 02-1184, § 1(Exh. A), 12-18-02; Ord. No. 04-1198, § 1, 12-10-03; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 9-184. Same—When and where payable; statement and invoice to accompany payments.

The charge imposed by section 9-183 shall be due and payable monthly at the office of the

director on or before the tenth day of the calendar month following the month in which the deliveries are made. Payments shall be accompanied by a statement, verified as true and correct by the person making the same, that such payment is equal to the charge per gallon imposed by section 9-183 multiplied by the number of gallons of aircraft fuel delivered to the city airport during the preceding month. The statement shall contain a detailed listing of each invoice giving the type of fuel, number of gallons and delivery ticket number for each customer receiving said fuel, or in lieu thereof, a copy of each invoice included in the payment computation may be submitted with the payment. If the supplier is an individual, association of individuals, or partnership, the report and statement must be signed and verified by the individual, by a member of the association, or by one of the partners, as the case may be. If the supplier is a corporation, the report and the statement shall be signed and verified by its duly authorized officer or officers. (Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-185. Reports by receiver of fuels.

It shall be the duty of each person accepting delivery of aircraft fuel at any city airport for the purpose of storage, sale, distribution, or use thereat, to timely furnish to the director a true and correct statement showing the correct number of gallons received. The statement shall contain a detailed listing of each invoice giving the type of fuel, number of gallons and delivery ticket number by date of delivery. This statement shall be made monthly on or before the tenth day of each calendar month showing deliveries for the preceding month. The statement will be made on a form furnished by the director. If the person receiving the delivery of fuel is an individual, association of individuals, or partnership, the statement shall be signed and verified by the individual, by a member of the association, or by one of the partners, as the case may be. If the recipient of

the delivery of aircraft fuel is a corporation, the statement shall be signed and verified by its duly authorized officer or officers.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-186. Records of supplier and receiver.

Both the supplier and each person receiving deliveries of aircraft fuel shall keep accurate records that reflect the exact gallonage of aircraft fuel delivered. The records and books of the supplier and receiver of aircraft fuel shall be made available for inspection upon request by the director at all times during the normal business hours for verification of fuel deliveries reported to the director by the supplier.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-187. Fuel system at IAH.

(a) No person shall uplift fuel from the fuel system at IAH except in accordance with the most recent fuel system and appurtenances license agreement entered into between the city and the IAH fuel system licensees.

(b) Notwithstanding subsection 9-187(a), a person who is not a licensee under the most recent fuel system and appurtenances license agreement may uplift fuel as long as he meets one of the definitional requirements of a permittee set forth therein.

(c) For its use of the fuel system, a permittee shall pay to the city a fee calculated by multiplying the permittee's gallonage uplifted monthly by the highest annual depreciation and interest expense associated with the capital improvement cost to the IAH fuel system and ground rental rate per gallon paid by all licenses in accordance with the fuel license. The rate used will be the prior month's highest such rate per gallon paid by any licensee.

(d) For its use of the fuel system, a permittee shall also pay to the city a fee calculated by multiplying the permittee's gallonage uplifted monthly by the highest maintenance and operation rate per gallon paid by any licensee to the city during the prior month.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Secs. 9-188—9-200. Reserved.

ARTICLE IV. EXPLORING FOR OR PRODUCING, REFINING, ETC., PETROLEUM PRODUCTS AT HOUSTON INTERCONTINENTAL AIRPORT (IAH)*

DIVISION 1. GENERALLY

Sec. 9-201. Compliance with and application of article.

No person shall explore for, drill for, mine, produce, store, refine or process oil, gas and other petroleum products from or on the following described lands, except as provided in this article:

Being a tract of land in Harris County, Texas, and being more particularly described by metes and bounds as follows:

BEGINNING at the intersection of the easterly right-of-way line of Aldine-Westfield Road with the southerly right-of-way line of Greens Road;

THENCE easterly along the southerly right-of-way line of the said Greens Road to a point 100 feet east of the easterly line of the Malcolm McAuley Survey, A-577;

THENCE northerly along a line parallel with and 100 feet easterly from the easterly line of the Malcolm McAuley Survey, A-577, crossing Greens Road, to the northerly right-of-way line of the said Greens Road;

THENCE easterly along the northerly right-of-way line of Greens Road to the easterly line of the W.C.R.R. Survey, A-893;

THENCE N 0° 09′ E along the easterly line of the W.C.R.R. Survey, A-893 and the most easterly line of the Jas. R. Johnston Survey, A-1084, a distance of 4,237.66 feet to a point;

THENCE S 89° 54′ E a distance of 758.81 feet to a point;

***Editor's note—**Ord. No. 02-1184, § 1(Exh. A, adopted December 18, 2002, amended Art. IV in its entirety. Formerly, said article pertained to similar subject matter and derived from Code 1968, §§ 9-192—9-207.

Cross reference—Oil and gas wells generally, Ch. 31.

THENCE North, a distance of 50 feet to a point;

THENCE East, a distance of 1,337.12 feet to a point, said point being in the westerly right-of-way line of Lee Road;

THENCE northwesterly and northerly along the westerly right-of-way line of Lee Road, a distance of 2,685.2 feet to a point;

THENCE East, crossing Lee Road, along the northerly line of Still Meadows Addition, a distance of 2,500 feet to a point, said point being in the Austin R. Bodman Survey, A-140;

THENCE North, a distance of 1,200 feet to a point;

THENCE East, a distance of 2,700 feet to a point, said point being in the C. E. Barrett Subdivision located in the C. C. Shelby Survey, A-693;

THENCE North, a distance of 700 feet to a point;

THENCE East, a distance of 500 feet to a point;

THENCE North, a distance of 400 feet to a point;

THENCE West, a distance of 500 feet to a point;

THENCE North, a distance of 700 feet to a point;

THENCE West, a distance of 2,700 feet to a point, said point being in the Austin R. Bodman Survey, A-140;

THENCE North, a distance of 900 feet to a point;

THENCE West, a distance of 2,500 feet to the westerly right-of-way line of Lee Road;

THENCE northerly along the westerly right-of-way line of Lee Road a distance of 4,000 feet to a point;

THENCE East, crossing Lee Road, a distance of 600 feet to a point, said point being the A. R. Bodman Survey, A-140;

THENCE North, a distance of 400 feet to a point;

THENCE West, a distance of 600 feet to the westerly right-of-way line of Lee Road;

THENCE Northerly along the Westerly right-of-way line of Lee Road a distance of 644.44 feet to a point;

THENCE S 89° 47′ 45″ W, a distance of 1,066.42 feet to a point;

THENCE N 0° 52′ 15″ W, a distance of 111.78 feet to a point;

THENCE S 89° 12′ 40″ W, a distance of 1,496.56 feet to a point, said point being in the Chas. Huffman Survey, A-319;

THENCE N 0° 48′ 45″ W, a distance of 1,067.42 feet to a point;

THENCE West, a distance of 12,322.38 feet, to a point, said point being in the W.C.R.R. Survey, A-927;

THENCE S 0° 17′ 52″ E, a distance of 725.0 feet to a point;

THENCE S 45° 00′ W, a distance of 565.7 feet to a point;

THENCE West, a distance of 4,032.50 feet to the easterly right-of-way line of Aldine-Westfield Road;

THENCE southeasterly along the easterly right-of-way line of Aldine-Westfield Road, a distance of 155.6 feet to a point;

THENCE East, a distance of 1,200 feet to a point, said point being in the J. E. Quinn Survey, A-1423;

THENCE S 0° 11′ 35″ W, a distance of 2,275.32 feet to a point;

THENCE S 28° 00′ E, a distance of 4,221.43 feet to a point, said point also being in the westerly line of the N. W. Travis Survey, A-769;

THENCE S 1° 15′ W, along the westerly line of the N. W. Travis Survey, A-769, a distance of 4,792.53 feet to a point; the S. W. corner of said N. W. Travis Survey;

THENCE N 89° 40′ W along the northerly line of the Malcolm McAuley Survey, A-577, to the easterly right-of-way line of Aldine-Westfield Road, a distance of 1,544.80 feet;

THENCE southeasterly along a curve to the left on the easterly right-of-way of Aldine-Westfield Road, said curve having a central angle of 11° 54′ and a radius of 1,392.41′, a distance of 289.31 feet to a point;

THENCE southeasterly along the easterly right-of-way line of Aldine-Westfield Road, a distance of 206.10 feet to a point;

THENCE S 89° 46′ E, a distance of 1,333 feet to a point, said point also being the northeasterly corner of Lot 126 Waverly Farms Subdivision; THENCE S 0° 04′ 40″ E, along the easterly lines of Lots 126, 127, 128, 129 and 130 Waverly Farms Subdivision, a distance of 937.30 feet to a point;

THENCE S 89° 35′ E, a distance of 2,642.6 feet to a point, said point also being in the westerly line of the T. S. Roberts Survey, A-660;

THENCE S 0° 07′ E, along the westerly line of the T. S. Roberts Survey, A-660, a distance of 3,896.23 feet to the northerly right-of-way line of Greens Road;

THENCE westerly along the northerly right-of-way line of Greens Road to the easterly right-of-way line of Aldine-Westfield Road;

THENCE southeasterly and southerly along the easterly right-of-way of Aldine-Westfield Road to its intersection with the southerly right-of-way line of Greens Road and the place of beginning.

The lands included within the above described area have been and are being acquired by the city for the purpose of constructing and developing thereon the IAH. Each and all activities prohibited thereby are declared to be unlawful and hazardous to aviation and airport operations and activities over, on, above and across the above described area, and are dangerous to the health, safety and welfare of the public.

The provisions of this article shall not apply to constructions within such area by the city.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-202. Drilling operations, processing plants, etc., near runways or structures; plat of runways and structures.

No drilling operations, structures, refineries, processing plants, machinery or storage tanks or facilities shall be located or carried on within 2,000 feet of any runway or other structure located or placed on the property described in this article, nor within 2,000 feet of the proposed location of any such runway or other structure on such property as shown on the plat attached to the original copy of Ordinance No. 62-1371, as Exhibit "A" reference to which is here made for the purpose of showing such existing and proposed runways and structures or any authorized amendment to said plat. Such plat may be amended from time to time showing additional existing or proposed runways and structures or changes in locations thereof by authorization of the city council upon request of the director. Any amended plat as authorized by the city council shall be filed in its minutes and attached to Ordinance No. 62-1371 as amended, Exhibit A.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-203. Height limit for structures.

No structure for which a permit is issued under the provisions of this article shall be of a height above the existing ground level in excess of 30 feet.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-204. Authorization of city lessees to construct structures or store petroleum products contrary to article.

Nothing in this article shall prevent the city from authorizing lessees from the city of property included within the area governed by this article to construct structures or store petroleum products contrary to the provisions of this article, so long as any such authorized structure or storage facility does not and will not interfere with or create a hazard to the health, safety and welfare of the public or to aviation operations and activities on, over, above and across such property.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-205. Application of oil and gas ordinance.

All the provisions of chapter 31 of this Code and all amendments thereto, to the extent that such provisions are not in conflict with this arti-

cle, shall apply to and govern all operations and activities authorized by a permit issued under this article.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Secs. 9-206—9-220. Reserved.

DIVISION 2. PERMIT

Sec. 9-221. Required.

No person shall explore for, drill for, mine, produce, store, refine or process oil, gas and other petroleum products from the lands described in section 9-261 of this Code or any part thereof without obtaining a permit so to do in accord with this division.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-222. Application generally.

Any person desiring a permit required by this division shall make written application therefor to the director upon forms furnished by the director and provide all information and other matters requested therein.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-223. Applications to be approved by director and Federal Aviation Administration.

All applications for permits under this division shall be approved by the director before issuance. The director shall consult with and receive the approval of the FAA on all such applications before issuing the permit. If the FAA refuses to approve such application or requires certain conditions to be complied with before it will approve such application, such application shall be denied until such requirements and conditions have been complied with and such application has been approved by the FAA. Upon FAA approval of the application, the director shall issue the permit unless he finds that the proposed activity will not be conducted in compliance with chapter 31 of this Code, or that such activity would interfere with or pose a potential hazard to, the health, safety and welfare of the public or to aircraft activities on, over, above or across the property described in section 9-261 of this Code.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-224. Fees.

The fees for obtaining permits under the provisions of this division shall be the same as those set forth for obtaining a permit under the provisions of chapter 31 of this Code, and all amendments thereto.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Sec. 9-225. Issuance; hazard zoning.

(a) Permits required by this division shall be issued by the director upon compliance by the applicant with all provisions of this article. No permit shall be issued by the director to carry on any operations or construct or locate any structures contrary to the provisions of section 9-262 of this Code.

(b) The provisions of this article shall not be construed to modify, repeal or supersede any applicable provision of *Ordinance 63-2026 adopted December 20, 1963, as amended, relating to zoning for the airport hazard area at IAH. To the extent that any proposed kind use or improvement is governed by both this article, and such ordinance, then permits shall be required under both.
(Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

*Ord. No. 02-1184 cited Ordinance No. 63-206, wherein it should have cited as listed above.

Sec. 9-226. Appeals.

If the director refuses to approve an application for a permit under this division and refuses to issue such permit, even though the same has been approved by the FAA, the director shall submit in writing the grounds of such refusal to the applicant and a copy thereof shall be furnished to the city council. If the applicant so desires, he may, within ten days after receipt of such written refusal, and not thereafter, file in writing his appeal to the city council. Such appeal must be addressed to the mayor and city council and be received in the office of the city secretary within such ten-day period. Upon timely receipt of such

appeal, a date will be set by the city council for a hearing thereon, such date to be not later than 30 days after receipt of such appeal by the city secretary. After hearing all parties to the appeal, the city council may affirm, modify or reverse the action of the director in refusing such permit, but any action taken by city council must be in accordance with the provisions of this article. (Ord. No. 02-1184, § 1(Exh. A), 12-18-02)

Secs. 9-227—9-314. Reserved.

ARTICLE V. HELIPORTS AND HELISTOPS*

Sec. 9-315. Definitions.

When used in this article, the following words, terms, and phrases shall have the meanings ascribed to them in this section, unless the context clearly indicates a different meaning. The other definitions found in Chapter 9 of this Code shall supplement the meanings of the words in this article.

Church means a building or structure that is exempt from ad valorem taxes where a society of persons who profess a religious belief regularly assembles for religious worship or religious instruction or for propagating a particular form of religious belief.

Director means the Director of Houston Public Works or the director's designee.

Emergency operation means any operation on the roof or other portion of a building or a ground level area during emergency conditions.

Helicopter means an aircraft whose support in the air is derived chiefly from the aerodynamic forces acting on one or more rotors turning about a substantially vertical axis.

Heliport means an area of land, water, or a structural surface containing fuel facilities that is designed, used, or intended to be used for the landing and takeoff of helicopters, and any appurtenant areas including buildings or other facilities such as parking, maintenance, and repair facilities.

Helistop means a minimum facility without the logistical support provided by a heliport at which helicopters land and take off, including the touchdown area and parking and related facilities other than maintenance and repair buildings. A helistop may be at ground level or elevated on a structure.

Hospital building means a structure containing hospital patient bed rooms or bed wards, or both, with an occupancy capacity to house ten or more persons while admitted as inpatients of a general hospital or a special hospital as those terms are defined in section 241.003 of the Texas Health and Safety Code. In any instance in which two or more structures connected by shared or adjoining walls or connected by tunnels or fully enclosed walkways are jointly operated by or under the control of the same person as a hospital or medical complex, then each such building that meets the foregoing definition shall be deemed to be a hospital building; however, any other connected structure, whether utilized for parking, doctors' or administrative offices, laboratory facilities, outpatient facilities, or any other purpose, that does not contain hospital patient bed rooms or bed wards, or both, with an occupancy of ten or more admitted inpatients shall not be deemed to be a hospital building.

Interested party means any person residing or owning property within 2,400 feet of the center of the touchdown pad of a proposed or existing heliport or helistop.

Medical evacuation means any operation where a helicopter has been authorized or directed to land to administer medical aid or perform a medical evacuation.

Operation means a takeoff and landing by a helicopter. A touch and go movement is counted as one operation.

*__Editor's note__—Ord. No. 2015-1103, § 2(Exh. A), adopted November 10, 2015, amended Ch. 9, Art. V in its entirety to read as herein set out. Former Art. V pertained to similar subject matter and derived from Code 1968, §§ 9-15—9-20.7 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

Owner means any person having a legal or equitable interest in property.

Plot plan means a graphic depiction or drawing of a small planned area, either on the roof of a building or on the ground, that reflects the location of the actual landing area, markings and identification of the landing area, aircraft parking area, peripheral area, other unobstructed areas, fencing, safety barriers, screening, ingress and egress path, any proposed structures or accessory equipment, fire protection equipment, communication signs, patron and employee parking areas, maintenance and fuel area, and any other details, if any, required under the Construction Code, the Fire Code or this article. The scale for the plot plan map shall be not less than one inch equals 50 feet.

Public use heliport means a heliport or helistop that has been designated by the city for use by the general public and is available for public use, whether owned or operated by the city or a private individual firm or corporation, provided that the individual firm or corporation has agreed to the public use of his property in writing.

Residence means any building or structure containing habitable rooms for nontransient occupancy, designed primarily for living, sleeping, cooking, and eating, that is being used as a dwelling place for residential purposes, whether single-family or multifamily. Hotels, motels, boarding houses, nursing homes, hospitals, nursery schools, and child care facilities shall not be considered residences. A structure located on a lot or tract of land used as a heliport or helistop shall not be considered a residence within the terms of this definition.

School means any building or structure where persons regularly assemble for the purpose of instruction or education, together with any playgrounds, dormitories, stadia, and other structures or grounds used in conjunction with the school. The definition of school shall be limited to a public or private elementary, middle, junior high, or high school.

Site plan means a graphic depiction or drawing of an area or space on the ground within a 2,400-foot radius from center of the touchdown pad indicating the approach and departure routes, obstructions along and adjacent to the approach-departure path, and the location of all residences, schools, and churches. The site plan map shall be at a scale no less than one inch equals 300 feet.

Television/radio news building means a structure that houses the central newsgathering facility of a television/radio broadcast station operating under a license granted by the Federal Communications Commission.

(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 9-316. Landings and takeoffs prohibited.

(a) It shall be unlawful for any person to take off or land any helicopter or aircraft within the city at any point, except at the following locations:

(1) An airport; or

(2) A heliport or helistop that holds a valid license or special permit under this article.

(b) It shall be an affirmative defense to any prosecution under this section that the landing or takeoff prohibited by this section shall have occurred at a facility exempt under section 9-318 of this Code or as part of a medical evacuation or an emergency operation.

(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-317. License required.

It shall be unlawful for any person to construct, establish, maintain, or operate a heliport or helistop within the corporate limits of the city without first having obtained a license from the city, unless exempted by a provision of this article.

(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-318. Exemptions.

None of the provisions of this article shall be applicable to any facility owned or operated by

the state or federal government or any political subdivision, department, or agency of the state or federal government.
(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-319. Application for license.

(a) *Form and contents.* An application for a heliport or helistop license, other than a temporary license, shall be submitted in such form as the director may prescribe and shall be accompanied by drawings, descriptive data, and inspection reports to verify compliance with this article, the Construction Code, the Fire Code, and any other applicable city, state, or federal requirement. The director shall have the authority to establish minimum design standards for heliports and helistops, provided that the standards are not inconsistent with any applicable city, state, or federal standards. In addition, the application shall contain the following:

(1) A site plan;

(2) A plot plan;

(3) FAA letter of airspace determination;

(4) FAA statement of no objection to approach and departure routes;

(5) Types and weights of helicopters to be used;

(6) Number and estimated duration of operations daily for each type of helicopter listed;

(7) Days and hours of operation;

(8) Name of insurance carrier and proof of insurance as required by this article;

(9) A declaration that complies with 1-11(a) of this Code along with other proof that all required notices including publication have been given;

(10) A photograph of the sign posted in accordance with subsection (d)(1) of this section;

(11) A noise study as required by section 9-323 of this Code; and

(12) An approval from Houston Public Works affirming that all Construction Code and Fire Code requirements are met or will be when construction of the heliport or helistop is complete.

(b) *Oath.* Every application for license shall be accompanied by a declaration that complies with section 1-11(a) of this Code executed by the owner of the premises on which the heliport or helistop is to be constructed, or the authorized lessee of the premises, that the proposed facility is authorized to be constructed or to be maintained on the premises, and does not violate any deed restrictions or other similar restrictions applicable to the property.

(c) *Permission to inspect premises.* By applying for a license under this article, the owner or lessee specifically grants permission to the city and its duly authorized agents, officials, and employees to enter upon the premises for the purpose of making all inspections required or authorized to be made under this article. A statement to this effect shall be included in the application form.

(d) *Public notices:*

(1) The applicant must post and maintain a sign at the prospective location of the heliport or helistop for at least 20 days before an application submitted to the director may be considered. The sign shall remain posted until the license proceedings are completed. The sign shall provide adequate information as to the location of the proposed heliport or helistop. The director may provide an example of the required sign to the applicant. The sign shall be not less than 32 square feet nor more than 40 square feet and shall be placed in a conspicuous location and in a manner calculated to give adequate public notice. Declarations that comply with section 1-11(a) of this Code of sign posting and maintenance or other proof that the requirements of this subsection have been met shall be provided as part of the application. This article constitutes complete, sufficient and independent authority for such sign

to be erected and maintained and no additional sign fees or permits shall be required.

(2) The applicant must cause to be published a notice of intent to construct and operate a heliport or helistop in a daily newspaper of general circulation in the city for two separate days, exactly one week apart, before an application may be considered. The second notice of intent must be published no more than five days before the application is submitted to the director. The application shall not be considered by the director until at least five days have passed since the second notice of intent publication. The director may provide an example of the required notice of intent to the applicant.

(3) Failure to give notice or to provide adequate proof as required by this article shall constitute grounds for denial of any license.

(e) *Terms and conditions of the license.* By applying for a license under the provisions of this article, each applicant agrees that, in the event that the license is granted, the contents of the application will become part of the license and that the license is granted subject to applicant's compliance with the terms and conditions contained in the application. The applicant further agrees that failure to comply fully with the terms and conditions of the license as granted and as from time to time altered or changed in accordance with this article, including but not limited to failure to comply with the approach and departure routes, shall be grounds for the revocation of the license.
(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015; Ord. No. 2018-11, § 50, 1-10-2018)

Sec. 9-320. Restricted license.

(a) The director may issue a restricted license for:

(1) A helistop or heliport operated by a television or radio broadcast station and used exclusively for helicopters engaged in newsgathering functions; or

(2) A helistop or heliport operated by a hospital and used exclusively for helicopters engaged in the emergency transport of medical treatment personnel, patients, body organs or tissue, or medical supplies, equipment or personnel required on an emergency basis;

provided that the proposed helistop or heliport is situated within 500 feet of the hospital building or television/radio news building to be principally served by the helistop or heliport. Such distance shall be measured in a straight line and without regard to intervening objects from the nearest point on the hospital building or the television/radio news building to the center of the touchdown pad of the helistop or heliport.

(b) An application for a restricted license shall be completed in accordance with the provisions of section 9-319 of this Code, except that the application shall not be required to include the noise study in subsection (a)(11) of that section. The director may prescribe separate rules and procedures for the restricted license application process that are in accordance with the purpose of this article.

(c) Each restricted license application shall state whether the proposed heliport or helistop qualifies under item (1) or (2) of subsection (a) of this section. Heliports and helistops with restricted licenses shall be limited to the operation of helicopters for the restricted use applied for and maintenance, fueling, and training flights associated with the restricted use specified in the application.
(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-321. Temporary license.

(a) An application for a temporary license to operate a temporary ground level heliport or helistop shall be made to the director in such form and upon such terms as the director may prescribe. A temporary license shall be valid for a period not to exceed ten consecutive days, except as provided in subsection (b) of this section. An applicant shall be issued no more than two such temporary licenses a month for a particular location.

(b) A temporary license at a ground level area may be issued by the director for a construction or development project shall be valid for one 90-day-period, renewable for two additional 90-day periods. A temporary license may be extended for more than three 90-day periods, but shall only be valid until the construction or develop-

ment project is completed and shall only be extended upon a showing of good cause to the director and the approval of the director.

(c) An application for a temporary license shall include proof of liability insurance as required by section 9-334 of this Code.

(d) Before the issuance of a temporary license, the director shall make any necessary inspections.

(e) Before the issuance of a temporary license, the director shall evaluate the proposed temporary heliport or helistop site for safety hazards and community impact. The director may deny an application for a temporary license that would result in excessive safety hazards or a substantially negative community impact. Where the applicant feels that the director has misinterpreted or misconstrued the application of this article, the applicant shall have the right of appeal to the General Appeals Board.

(f) A temporary license may be suspended or revoked by the director for any violation of this article or any operation he deems hazardous or as having a substantially negative community impact. Where the temporary licensee feels that the director has misinterpreted or misconstrued the application of this article, the temporary licensee shall have the right of appeal to the General Appeals Board.

(g) The temporary license applicant or temporary licensee shall provide the director with any additional information that the director requests for use in implementing the requirements of this article regarding the application for or operation of the temporary heliport or helistop.
(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-322. Location of heliports and helistops.

(a) In any instance in which the director determines that a reasonable doubt exists regarding the actual distances relevant to any provision of this article, the applicant, at the applicant's expense, may be required to obtain and furnish a survey plat showing the distance and the manner of its computation prepared by and bearing the seal of a registered professional engineer or a registered public surveyor. An applicant may provide such a survey without a request by the director. If a survey is prepared and furnished in accordance with the provisions of this section and the distances shown on that survey are equal to or exceed a requirement of this article, then the survey shall constitute prima facie evidence of compliance with such distance requirement of this article.
(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-323. Noise standard.

(a) Prior to the granting under this article of any license, other than a temporary license or a restricted license, the director shall take, or cause to be taken, a measurement of the ambient noise level at the proposed location.

(b) For purposes of this section, the ambient noise level shall be defined as the totality of the background noise in a given place and time, composed of sounds from various sources at various distances, exclusive of the noise emitted by the operation of the helicopter in flight. The ambient noise level shall be determined by measurements, taken during the proposed hours of operation, using a conventional or integrating sound level meter, at a minimum of two locations. Such locations shall be the two nearest churches, schools or residences. Each measurement shall be taken outdoors at the location's property boundary closest to the proposed heliport or helistop.

(c) The estimated noise to be emitted by each proposed helicopter operation specified in the license application will be measured at the same locations used to measure the ambient noise level. All measurements shall be made with the helicopter operating under normal operating conditions and while the helicopter is simulating normal operating procedures, and utilizing all operating modes applicable to the site, including, but not limited to, ingress, egress, hover and fly-over.

(d) The director shall then calculate, based on the formula in subsection (e), the effect of the helicopter operations on the ambient noise level at the locations specified in subsection (b) of this

section. The estimated increase of noise level as a result of the proposed helicopter operations shall not exceed the ambient noise level by more than two dBA. If the proposed helicopter operation increases the ambient noise level by more than two dBA, then the license shall be denied.

(e) Formula:

$$L_{eq} = 10 \log \left(10^{Lamb/10} + \frac{H \times T \times 10^{L/10}}{SO}\right)$$

Where:

Lamb =	Ambient noise level in dBA over the period of operations, without helicopters.
L_{eq} =	Ambient noise level reflecting the operational helicopter noise impact.
H =	Number of daily helicopter operations where one operation consists of a landing and takeoff.
T =	Time duration of each helicopter noise operation (seconds).
L =	L_{eq} of each helicopter operation in dBA.
SO =	Number of seconds in period of operations.

(f) If the proposed facility is located within 2,400 feet of an existing facility, then in addition to the specifications set out in 9-323(b), the measurements taken to establish the baseline ambient noise level shall be taken when the pre-existing facility or facilities are not in active operations, and in addition to the specifications set out in 9-323(c) the measurements taken shall be taken during active operations at the pre-existing facility or facilities.
(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-324. Fee; term of license; deposit.

(a) *Heliport.* The fee for a heliport license is stated for this provision in the city fee schedule. Such license shall be valid for a period of six years from date of issuance unless sooner revoked or terminated.

(b) *Helistop.* The fee for a helistop license is stated for this provision in the city fee schedule. Such license shall be valid for a period of six years from date of issuance, unless sooner revoked or terminated.

(c) *Inspection fee.* The fee payable each year while the license is in effect for the annual inspection of a heliport or helistop is stated for this provision in the city fee schedule. Such inspection shall be for the purpose of ensuring compliance with the terms and conditions of the license.

(d) *Temporary license.* The fees for temporary heliport or helistop licenses under section 9-321 of this Code are stated for this provision in the city fee schedule.

(e) *Deposit for license.* Any application submitted for a heliport or helistop license, other than a temporary license, shall be accompanied by a deposit of $500.00. Such deposit shall be nonrefundable and shall be applied to the license fee when the application for license is approved.

(f) *No refund of fees.* The license applicant or licensee shall not be entitled to a refund of any fee paid where the license is revoked, any change of status occurs, or for any deposit.
(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-325. Director to issue license.

(a) Following the posting and publication of notice as required in section 9-319(d) of this Code, the following administrative steps will be followed:

(1) Where any notice of opposition to a heliport or helistop application has been received by the director, the director shall call and hold a hearing on the question of whether a license should be granted under this article.

a. Prior to the commencement of such hearing, the director shall determine the parties to the license proceeding. The director shall not confer party status on a person who is not an interested party as defined in

this article. The director shall be the sole judge of whether a person is entitled to status as a party.

b. The director shall provide a minimum of ten days' written notice of the time and place of the hearing to the applicant and all persons whom the director has designated as interested parties.

c. At such hearing, the director shall receive oral and written testimony regarding the application. After hearing from all parties, the director shall grant or deny the license in accordance with subsection (2) below.

(2) Where no notice of opposition to a heliport or helistop application is received by the director, or the director has conducted a hearing as required by subsection (a)(1) of this section, the director shall grant a license where he finds that:

a. The proposed heliport or helistop is not in violation of the distance restriction set out in section 9-322 of this Code;

b. The proposed operations of the heliport or helistop will not be in violation of the noise standard set out in section 9-323 of this Code;

c. The proposed heliport or helistop meets or exceeds the requirements of the Construction Code and the Fire Code; and

d. The proposed heliport or helistop meets all other requirements of this article.

(b) The effective date of the license shall be the date the application is approved by the director.
(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-326. Duties of director.

(a) The director shall have the power and the authority to administer and enforce the provisions of this article.

(b) The director shall have the powers enumerated in this article for the review of applications for licensing, including approving or denying applications for licensing and conducting hearings on applications as provided for in this article.

(c) The director shall submit an annual report to the mayor and city council containing a summary of his actions performed under this article during the preceding year, together with recommendations for amendments to this article.

(d) The director shall have the authority to receive complaints or allegations concerning the operation of any heliport or helistop and to refer such matters to the appropriate city department or governmental agency for investigation and report.

(e) The director shall adopt reasonable rules for the conduct of his duties under this article, to include procedures for hearings, appeals, and all other business conducted by the director.

(f) The director shall be responsible for and maintain the minutes of license application hearings, including correspondence received and sent by the director. All minutes shall be public records, available for inspection by the public at all reasonable times in the presence of the director.

(g) The director shall advise, consult and cooperate with the FAA regarding the location, siting, and regulation of heliports and helistops, as necessary.

(h) The director may issue rules and opinions that are consistent with the purposes and requirements of this article to aid in the performance of his duties.
(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-327. Inspection of premises and structures.

For the purpose of ensuring compliance with this article, the director shall inspect all licensed heliports or helistops at least once annually. The director may, at reasonable hours and after presenting proper identification to the licensee, enter upon, inspect, and examine the premises,

including the buildings, of any heliport or helistop for which a license has been issued or for which an application for license has been submitted under the provisions of this article, or that is subject to the provisions of this article. The licensee shall provide the director with any flight records or other data that the director requires for the purposes of ensuring compliance with this article.

In cases of emergency where extreme hazards are known to exist that may involve imminent injury to persons, loss of life, or severe property damage, and where the licensee is not available after the director has made a good faith effort to locate him, the director may enter the premises at any time upon presentation of proper identification to any other person on the premises.

The director, when on private property, shall observe the establishment's rules and regulations concerning safety, internal security, and fire protection. When the director is denied admission to inspect any premises, inspection shall be made only under authority of a warrant issued by a magistrate authorizing the inspection for violations of this article. It shall be unlawful to deny the director access to the premises after a warrant has been issued. Failure to admit the director shall be grounds for the suspension of the license.
(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-328. License renewal.

(a) A helistop or heliport license granted under this article shall be renewable for an additional six-year term on or before the expiration date of the current license.

(b) Each licensee desiring to renew his license shall make an application for renewal on forms provided by the director at least 60 days prior to the expiration date of the license. The application shall be accompanied with the following:

(1) An declaration that complies with 1-11(a) of this code by the applicant, that the heliport or helistop will continue to comply with the terms and conditions of the original application, together with any such changes that have been approved in accordance with this article.

(2) Payment of the deposit as set out in section 9-324 of this Code.

(c) The director shall order inspections of the facility for compliance with the Construction and Fire Codes. After these inspections are completed, the license shall be renewed by the director without review, provided that:

(1) All inspections are satisfactory;

(2) No request for modification of the terms of the existing license regarding time of operation, frequency of operations, types of helicopters used, or relocation of touchdown pad has been submitted with the renewal; and

(3) Director review of the renewal application is not required under subsection (d) of this section.

(d) The director shall review the application for renewal and grant or deny such application under the following circumstances:

(1) The facility failed to pass the Fire and Construction Code inspections as required by subsection (c) of this section;

(2) The licensee has requested a modification of the terms and conditions of the original application pursuant to section 9-333 of this Code; or

(3) The director has received notice of a dispute of any facts supporting the application for renewal.

(e) The director shall issue a renewal of a license where he finds that the applicant is in compliance with the requirements of this article and has paid the full amount of the required fee.
(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-329. Suspension or revocation of license.

(a) The director shall have authority to order the suspension or revocation of any license issued under this article for failure to comply with any provision of this article, the terms and conditions of the application and license, or for any false statements or misrepresentations made by the applicant in the application for a license.

(b) Prior to the revocation or suspension of a license, the director shall notify the licensee in writing of the reasons for the proposed order of suspension or revocation and grant the licensee the opportunity to appear before the director at a time and place specified within the notice. Such hearing shall be held not less than five days after receipt of the notice by the licensee. Under extreme conditions where the director determines that life or property are threatened by the operation of the heliport or helistop, the director may suspend the license for up to ten days prior to a hearing being held. At the hearing the licensee shall be given an opportunity to argue why his license should not be suspended or revoked. At such hearing the director shall present the evidence supporting the charges against the licensee and the licensee may introduce any relevant evidence relating to the charges. If, after the hearing, the director finds that the license should be revoked or suspended, he shall, within five days, issue an order suspending or revoking such license. If the licensee fails to appear for the hearing as provided in this subsection, the order suspending or revoking his license shall become final upon its issuance by the director.

(c) The licensee shall have the right to appeal an order of the director suspending or revoking a license to the General Appeals Board under Section 9-331.The filing of an appeal to the city council shall not have the effect of superseding or suspending the order of the director.
(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-330. Injunction.

The city attorney may file a civil suit in a court of competent jurisdiction to enjoin the violation of any of the provisions of this article. This remedy shall be cumulative and in addition to any other penalty provisions.
(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-331. Appeal.

(a) An applicant, licensee, or interested party to a decision of the director pertaining to the grant, denial, suspension, or revocation of a license may appeal the decision of the director to the general appeals board created under the Building Code by filing a written notice of appeal with the director within ten days after notice is given that a license has been denied. The general appeals board may require applicants to submit such documents as the board deems relevant to support the application and may dismiss any appeal from a decision of the director denying a permit if the applicant has not submitted the documentation required by the board.

(b) An applicant, licensee, or interested party to a decision of the general appeals board, may appeal the decision of the board to city council as provided by Rule 12 of section 2-2 of this Code. Any interested party may make a written appeal to the city council by filing such appeal in the office of the city secretary within ten days after receipt of written notice containing the findings and decision of the board. The city secretary shall present the written appeal, together with the application, findings, decision and other documents or evidence received by the board, to the city council. Upon receipt thereof, the city council shall set a time and place for the disposition of such appeal and cause the city secretary to give notice thereof to the applicant and any other interested parties.

(c) A decision of the city council shall be effective as of the date it is voted upon. Every decision of the city council shall be final.
(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-332. Maintenance.

All buildings, structures, or ground areas used as a heliport or helistop shall be maintained in a safe and sanitary condition. All equipment or machinery required by the Construction Code or the Fire Code for a building, structure, or ground level area when erected, altered, or repaired shall be maintained in good working order. The licensee shall be responsible for the maintenance of all buildings, structures, or ground areas used as landing areas by helicopters.
(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-333. Change in operation.

(a) Any change that affects or alters the terms and conditions of a heliport or helistop license pertaining to the time of operation, the

frequency of operations, the type of helicopter used in such operations, or the relocation of the touchdown pad shall be submitted to the director for approval before such changes in the license are effective.

(b) Any application to enlarge, modify, or otherwise substantially change the surface of the part of a heliport or helistop that is used or intended to be used for the landing or takeoff of a helicopter shall be submitted in writing to the director 30 days prior to the commencement of such alteration or change and shall not be commenced until written airspace determination and a letter of no objection has been obtained from the FAA and the director has been provided with a true copy of the FAA approval.
(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-334. Insurance.

(a) The director shall not issue a license for any helistop or heliport unless the applicant has liability insurance in effect that covers the proposed operations of the applicant at the location specified in the application. The licensee shall annually provide proof of insurance to the director once a heliport or helistop license has been granted. Insurance for a temporary license shall be in effect for the entire duration of the temporary heliport or helistop's operations.

(b) The minimum limit for public liability coverage maintained by the licensee shall be a combined single limit of liability for bodily injury and property damages of $5,000,000.00 per occurrence.

(c) The insurance policy shall indemnify the city from all claims including, but not limited to, noise, nuisance, personal injury, death, or property damage arising from the use of the helistop or heliport facility, shall meet the requirements set forth in this section, and shall not be canceled without at least 30 days' written notice to the director.

(d) Any cancellation or suspension of the applicant's insurance for a licensed heliport or helistop that results in a lapse of coverage of the heliport or helistop's operations shall constitute good cause for revocation of the license by the director. All insurance policies shall be issued by an insurance company duly authorized to do business in the state and maintaining an office or represented by an authorized agent in the state.

(e) Proof of insurance shall be met by filing with the director any one of the following:

(1) A certified original copy of the policy;

(2) A photostatic copy of the policy;

(3) An abstract of the original policy signed by the issuing company; or

(4) A certificate of insurance, including the policy limits, attested to by the insurer.

(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015; Memorandum of 1-27-2016)

Sec. 9-335. Transferability.

A license issued pursuant to the terms of this article may be sold, transferred, or assigned, provided that the licensee gives written notice to the director at least 30 days prior to any sale, transfer, or assignment, and further provided that such licensee is in compliance with the terms and conditions of the license.
(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-336. Existing heliports or helistops.

(a) Any owner or operator of an existing heliport or helistop, as defined in this section, shall not be required to comply with the terms and conditions of this article until November 10, 2021, in order to provide a reasonable time for amortization of the investment in the heliport or helistop. This section shall not be construed as exempting an existing heliport or helistop from complying with all Fire and Construction Code provisions.

(b) A heliport or helistop shall be considered to be existing if:

(1) The heliport or helistop had a current valid license, other than a temporary license, from the city in effect on November 10, 2015;

(2) The heliport or helistop had a properly-submitted application for renewal of a

previously valid license, other than a temporary license, pending on November 10, 2015; or

(3) The heliport or helistop was located in an area annexed to the city, the effective date of which annexation was on or after December 29, 1982, and was constructed, under construction, or in operation prior to such annexation and had a properly-submitted application for a license, other than a temporary license, pending on November 10, 2015.

(c) Any owner or operator of an existing heliport or helistop as defined in this section shall make an application to the director for a special permit. The director shall grant the special permit upon finding the facility qualifies as an existing heliport or helistop under this section. Such permit shall, unless revoked, be valid for so long as the heliport or helistop remains in operation during the amortization period set out in this section. In the event that the permittee abandons or discontinues operation of the existing heliport or helistop, the special permit shall expire.

(d) Additional investment may be made in an existing heliport or helistop during the amortization period upon notice to the director so long as the owner or operator of the existing heliport or helistop agrees that any investment shall not be subject to recoupment, be the basis for any extension of the amortization period, or enlarge or otherwise expand the number of monthly operations at the heliport or helistop.

(e) If improvements upon any lot covered by this subsection are destroyed or damaged in excess of 50 percent of the value of the then-current city tax rolls as a result of fire, explosion, weather, or other act of God, then the improvement shall not be rebuilt or otherwise reconstructed. Nothing in this subsection shall be construed to prohibit the minor repair or routine maintenance of existing improvements.

(f) By applying for a special permit under the provisions of this article, the applicant agrees that if a special permit is granted, the contents of the prior license or license application will become part of the special permit and that the special permit is granted subject to the applicant's compliance with the terms and conditions of the special permit. The applicant further agrees that failure to fully comply with the terms and conditions of the special permit as granted, and as from time to time altered or changed in accordance with this article, including but not limited to failure to comply with the approach and departure routes, shall be grounds for revocation of the special permit.

(g) Any existing heliport or helistop entitled to a special permit under this article shall be restricted under this article only to the extent that:

(1) The maximum number of monthly operations at the facility may not exceed the maximum number of monthly operations for which the facility was licensed on November 10, 2015 or, if the facility was not licensed at this time, may not exceed the maximum number of monthly operations listed in the license application for the facility; and

(2) The types of helicopters using the facility may not be noisier types of helicopters than those listed in the license application for the facility.

(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-337. Expiration of amortization period; treatment of amortized facilities.

Any provision of this article to the contrary notwithstanding, no existing heliport or helistop shall be deemed to be in violation of the requirements of this article subsequent to the expiration of the amortization period contained in section 9-336 until either the opening of a public use heliport with adequate facilities within two miles of the amortized heliport or helistop or November 10, 2025 whichever occurs first.
(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Sec. 9-338. Annexed areas.

An owner or operator of a heliport or helistop located within territory annexed to the city subsequent to December 9, 1983, shall, within 60 days of the effective date of annexation, submit an application to the director for a license under

the terms of this article. In the event that the applicant cannot meet the requirements of this article, then the applicant shall be required to obtain a special permit and shall have six years to comply with such requirements in order to provide a reasonable time for amortization of the investment in such heliport or helistop. Any such applicant shall be governed by the provisions of sections 9-336 and 9-337 of this Code.
(Ord. No. 2015-1103, § 2(Exh. A), 11-10-2015)

Secs. 9-339—9-350. Reserved.

ARTICLE VI. AIRPORT LAND USE REGULATIONS*

DIVISION 1. MATTERS OF GENERAL APPLICABILITY

Subdivision A. In General

Sec. 9-351. Applicability.

This article shall apply to all present or future development within an airport land use envelope, as that term is defined herein, which is either within the city limits or the city's extraterritorial jurisdiction, or is the subject of an interlocal agreement with a governmental entity whose jurisdiction extends to land within such airport land use envelope. No land, body of water, or structure shall be used or permitted to be used and no structures shall be hereafter erected, constructed, moved or reconstructed, structurally altered or maintained for any purpose in the identified airport land use envelopes except in compliance with the restrictions, limitations and prohibitions contained in this article.
(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-352. Definitions.

As used in this article, these words and phrases shall have the meanings ascribed to them in this section, unless the context clearly indicates a different meaning. All words and phrases not defined shall have their common meaning.

Airport means any airport owned or operated by the city, including all lands, buildings and other improvements owned, controlled, leased, or operated and maintained by the city appurtenant thereto, as described by any current or future plans of the Houston Airport System (HAS).

Airport commission means the airport zoning commission described in Chapter 241 that is charged with making recommendations to the city council on regulations and boundaries, and performing other tasks delegated to it in accordance with state law in the implementation of this article.

Airport land use envelope means the area of land subject to the terms of this article, being generally described as a box established no farther than 1.5 miles either side of a runway center line and no more than five miles from each runway end, as shown on the official airport land use map for each airport, and which is also a controlled compatible land use area as described in Chapter 241.

Airport land use tier means a division of an airport land use envelope into one of three tiers for regulatory purposes, described as tier one, tier two, or tier three, and shown on the official airport land use map for each airport.

Airport land use permit or *permit* means a permit required by this article for construction on or development of land within an airport land use tier.

Board of adjustment or *board* means the board charged with hearing requests to reverse an order, requirement, decision, or determination of the director and deciding matters that are delegated to the board pursuant to this article.

Casualty means destruction by accidental or natural causes.

Chapter 241 means Chapter 241 of the Texas Local Government Code, as it may be amended from time to time.

*__Editor's note__—It should be noted that § 10 of Ord. No. 08-1052 provides for an effective date of February 1, 2009.

Compatible land use means a use of land that does not endanger the health, safety, or welfare of the owners, occupants, or users of the land, and that is compatible with airport operations, according to the standards and criteria for the designated airport land use tier where the use or activity is, or is proposed to be, located.

Conforming use means any use of land or a structure that complies with the provisions of this article and is not a nonconforming use.

Development plat has the meaning ascribed in section 42-1 of this Code or as provided in an interlocal agreement for land located outside the city.

General plan has the meaning ascribed in section 42-1 of this Code or as provided in an interlocal agreement for land located outside the city.

Livable area means a space in a structure for living, sleeping, eating or cooking, including bathrooms, toilet rooms, closets and halls. Storage or utility areas that do not open directly into a livable area and unfinished attic space are not considered livable area.

Nonconforming use means any use of land or a structure that is inconsistent with the provisions of this article and that legally exists as of February 1, 2009.

Nonresidential or *nonresidential use(s)* means any use that is not a residential or a sensitive land use, as those terms are hereinafter defined.

Official airport land use map or *OM* means the map depicting the airport land use envelope and the airport land use tiers for each airport.

Public assembly use means an institution of higher education, religious institution, community recreational facility, public recreational facility, or other similar use where individuals assemble for a common purpose.

Residential means the use or proposed use of land for premises that contain habitable rooms for nontransient occupancy, designed primarily for living, sleeping, cooking and eating, unless it is actually occupied and used exclusively for other purposes. This definition may be modified in an interlocal agreement in the case of land located outside of the city.

School means a public or private school used for primary or secondary education, in which any regular kindergarten or grades one through 12 are taught.

Sensitive land use means a childcare facility, nursing home, assisted living center, boarding home as defined in section 28-451 of this Code, school, hospital or medical facility.

Subdivision plat has the meaning ascribed in section 42-1 of this Code or as provided in an interlocal agreement for land located outside the city.

(Ord. No. 08-1052, § 2, 12-3-08; Ord. No. 2011-221, § 2, 3-23-2011; Ord. No. 2018-225, § 6, 3-22-2018)

Sec. 9-353. Essential community purpose.

The airports are used in the interest of the public to the benefit of the city and fulfill an essential community purpose.

(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-354. Other jurisdictions' regulations; interlocal agreements.

(a) Each municipality, county, and other jurisdiction with regulatory authority within the airport land use envelopes defined in this article may coordinate with the city to adopt an ordinance, order, or appropriate regulation consistent with this article, including airport land use regulations and provisions regarding the enforcement and administration thereof, or otherwise enter into an interlocal agreement with the city pursuant to Chapter 791, Texas Government Code.

(b) If a municipality, county, or other governmental entity so provides in an interlocal agreement with the city, or in an ordinance, order, or regulation, the provisions of this article shall apply within any other governmental entity's boundaries except to the extent modified in such interlocal agreement.

(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-355. Cumulative effect.

(a) The provisions of this article are cumulative of all other requirements of this Code and other laws and regulations of the city, including, without limitation, the Construction Code, the Fire Code and the Houston Public Works Infrastructure Design Manual, as well as all applicable state and federal laws and regulations. Compliance with this article does not excuse compliance with any other law or regulation, and applicants and owners of developments that are not required to obtain a permit pursuant to this article are nevertheless required to obtain any other permits, licenses, and authorizations required by law. In the event of any conflict between any other city ordinance and this article, the provisions of this article shall control.

(b) For land located outside the city's jurisdictional boundaries, the provisions of this article are cumulative of the requirements imposed by ordinances of any other political entity pursuant to interlocal agreement and the city code or other laws and regulations of that political entity.
(Ord. No. 08-1052, § 2, 12-3-08; Ord. No. 2018-11, § 8, 1-10-2018)

Sec. 9-356. Penalty.

It shall be unlawful to violate any provision of this article. The penalty for violation shall be up to $500.00 for each day of violation.
(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-357. Tier boundaries.

The director shall determine the location or meaning of an airport land use tier boundary or other feature on an OM in the event of any question or dispute with respect thereto.
(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-358. Airport land use maps.

The city council has adopted an official airport land use map for each airport, which shall be used to implement this article. An OM may be amended in accordance with Chapter 241. The OM for each airport shall be maintained on file in the office of the city secretary, with a copy available at the department.
(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-359. Notice on plats; affidavit when no subdivision plat required.

(a) *Subdivisions requiring subdivision plat.* The recorded subdivision plat of any land located wholly or partially within an airport land use envelope shall include on its face the following statement:

> **NOTICE:** Individual lots or parcels within this subdivision may be located in an airport land use tier and may be subject to use restrictions or increased noise or hazard levels associated with air traffic operations.

(b) *For construction on land not requiring subdivision plat.* Prior to the issuance of a permit for construction on or development of property located within any airport land use tier one or tier two that has been platted prior to the effective date of this article, or that is not otherwise required to be platted, an affidavit in the form prescribed by the planning director shall be executed by the owners of the property setting forth, at a minimum, the notice language set forth in section (a) of this section. The department shall record the affidavit in the real property records in the county in which the property is located, at the expense of the affiant.

(c) *Prior to the use of any affidavit form,* the city attorney or his designee shall review and approve the affidavit form for legal sufficiency. The affidavit form shall be attached to the permit application as a part thereof, shall include but not be limited to a description of the type of structure or activity for which the permit application is being made and any exhibits referred to therein, and shall be properly sworn to and subscribed before a notary public.
(Ord. No. 08-1052, § 2, 12-3-08; Ord. No. 2011-221, § 5, 3-23-2011)

Sec. 9-360. Land use restrictions.

Divisions 2, 3, and 4 of this article set forth permitted residential and nonresidential uses by airport land use tiers within the airport land use

envelope at each airport. Divisions 2, 3, and 4 of this article also set forth restrictions, limitations, and prohibitions on the use of land and structures located within each airport land use tier. Notwithstanding any other provisions of this article to the contrary, the following uses shall be prohibited within any airport land use envelope where they may adversely impact airport operations or safety:

(1) Uses that produce steam, smoke, or other vision-obscuring emissions;

(2) Uses that emit glaring light or employ highly reflective surfaces;

(3) Uses that have the potential to attract birds;

(4) Uses that create electrical or electromagnetic interference; or

(5) Any other use deemed by the director to adversely impact airport operations.

(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-361. Continuation or expansion of nonconforming use.

A nonconforming use may be continued or, if it meets the requirements of this article, may be enlarged.
(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-362. Abandonment of nonconforming use.

A nonconforming use that ceases for a period of 12 months or more shall be presumed to be abandoned. Any future use of the property shall be a conforming use. Upon evidence of hardship, the board of adjustment shall have the power to approve a variance to the above time limit by a period not to exceed six months. The absence of electric or water and wastewater utility services shall be prima facie evidence of abandonment.
(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-363. Change, reversion or resumption of nonconforming use.

(a) A nonconforming use may not be changed in whole or in part to another nonconforming use.

(b) A nonconforming use that is changed to a conforming use may not thereafter revert to a nonconforming use.

(c) A nonconforming use, when discontinued for any reason, shall not be resumed.
(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-364. Restoration of partially destroyed structure.

Nothing in this article shall prevent the repair or restoration, and continued occupancy or use, of the livable area of any structure containing a nonconforming use destroyed to the extent of not more than 51 percent of its appraised market value by fire, explosion, casualty, or act of God or the public enemy. For purposes of this section, appraisal district records shall constitute prima facie proof of appraised market value.
(Ord. No. 08-1052, § 2, 12-3-08)

Secs. 9-365—9-370. Reserved.

Subdivision B. Administration

Sec. 9-371. Airport commission.

(a) An airport commission has been established by City of Houston Ordinance Number 2008-609. The members of the airport commission shall be the members of the city planning commission, as established pursuant to Chapter 33 of this Code, and such other members as provided by this section.

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(b) The airport commission may include a member appointed by the City of Humble and a member appointed by the City of Pasadena which members are not required to be residents of the city.

(c) A quorum of the airport commission shall be as provided in section 33-19 of this Code, regardless of whether the membership has been enlarged pursuant to this section. All meetings of the airport commission shall be held in accordance with the Texas Open Meetings Act, be recorded, and have minutes made and kept in accordance with all regulations governing the city planning commission.

(d) The airport commission may adopt such rules and regulations for the conduct of public hearings and meetings as are in compliance with federal and Texas law and city ordinances. Except as herein provided, all provisions of Chapter 33 of this Code shall apply to the airport commission.

(e) The director shall be a non-voting, ex officio member and shall serve as secretary to the commission.
(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-372. Department; director.

The department is hereby designated the agency responsible for administering and enforcing this article. The director or his designee is hereby designated as the administrator of this article. The duties of the director shall include:

(1) To promulgate rules and forms as necessary to administer and enforce the provisions of this article;

(2) To review and approve or disapprove applications for airport land use permits in accordance with the provisions and timelines of this article and Chapter 241; and

(3) To charge and collect applicable fees stated for this article in the city fee schedule for processing each airport land use permit.
(Ord. No. 08-1052, § 2, 12-3-08; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 9-373. Board of adjustment.

(a) *Establishment of board of adjustment and board powers.* A board of adjustment is hereby created pursuant to Chapter 241 and shall have the following powers:

(1) To hear and decide appeals, as provided by Chapter 241 or this article, from an order, requirement, decision, or determination made by the director in the enforcement of this article;

(2) To hear and decide special exceptions to the terms of this article; and

(3) To grant variances from these regulations.

(b) *Board composition.* The board shall be composed of five members appointed by position to two year terms. Members holding positions 1 through 4 shall be appointed by the mayor and confirmed by the city council and shall be residents of the city.

(1) In all matters involving HOU, position 5 shall be appointed by the mayor and confirmed by the city council and shall be a resident of the city.

(2) In all matters involving IAH, position 5 shall be appointed by the mayor and confirmed by the city council until the City of Humble, pursuant to an interlocal agreement, appoints a member to position 5. The Humble appointee is not required to be a resident of the city.

(3) In all matters involving EFD, position 5 shall be appointed by the mayor and confirmed by the city council until the City of Pasadena, pursuant to an interlocal agreement, appoints a member to position 5. The Pasadena appointee is not required to be a resident of the city.

(4) The mayor shall appoint a chair from among the members.

(5) The director shall be a non-voting, ex officio member of the board and shall serve as secretary to the board.

(6) An alternate member may be appointed for each position by the entity entitled to

appoint the member. An alternate member may serve in the absence of the member in that position.

(c) *Board procedures.* The board shall adopt rules and procedures for its governance consistent with the provisions of this article, including how members shall rotate to allow Humble or Pasadena members to participate as required. A board member may be removed by the appointing authority for cause on a written charge after a public hearing. A vacancy in any position shall be filled for the remainder of the unexpired term, giving first consideration to any current alternate members. The board shall adopt a regular meeting schedule and shall give public notice of the meeting schedule by publication for three consecutive days in a daily newspaper of general circulation within the city, any other jurisdiction located within the airport land use envelope, and the area of extraterritorial jurisdiction. The board may change this meeting schedule by the adoption of a new schedule, the effective date of which shall not be less than ten days after publication of the new schedule for three consecutive days in a daily newspaper having general circulation within the city, the area of extraterritorial jurisdiction, and any other jurisdiction located within the airport land use envelope. The board may meet in panels to consider each airport individually. The chair, or the acting chair, may administer oaths and compel the attendance of witnesses. All hearings of the board of adjustment shall be public. The board shall keep minutes of its proceedings showing the vote of each member upon each question, and if any member is absent or fails to vote, indicating such fact, and shall keep records of its examinations and other official actions, all of which shall immediately be filed in the office of the board of adjustment and are public records. Four members of the board shall constitute a quorum. The concurring vote of four members of the board shall be necessary to:

(1) Reverse an order, requirement, decision, or determination of the director;

(2) Decide in favor of an applicant on a matter on which the board is required to pass under this article; or

(3) To hear and decide specific variances from this article.

(d) *Compensation.* Members of the board, in the performance of their duties as such, shall serve without compensation.
(Ord. No. 08-1052, § 2, 12-3-08)

Secs. 9-374—9-380. Reserved.

Subdivision C. Airport Land Use Permits

Sec. 9-381. Airport land use permit required.

(a) An airport land use permit is required for the following on any land within an airport land use tier one or tier two:

(1) An application for subdivision plat or development plat, including modification of a subdivision plat or general plan;

(2) New construction, replacement after demolition, or rebuilding of any structure; or

(3) The enlargement of an existing structure by an addition of livable area outside of the structure's original exterior dimensions, vertically or horizontally, the value of which is 51 percent or more of the appraised market value of the existing structure.

(b) A current valid airport land use permit as required by this section is a condition for the approval of a subdivision plat or development plat, the issuance of a building permit, and the issuance of a water or wastewater capacity reservation.
(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-382. Concurrent variance application.

An application for a variance may be filed before or concurrently with the application for an airport land use permit. Filing of an application or approval by the board of a variance shall not confer any authorization to begin work on the proposed project without the issuance of an airport land use permit.
(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-383. Airport land use permit application.

(a) Each application for a permit shall be in the form prescribed by the director and shall contain sufficient information to allow the director to determine whether the proposed use or project would conform to the regulations herein prescribed.

(b) An affidavit, if required by section 9-359 of this Code, shall accompany the permit application. Prior to the use of any affidavit form, the city attorney or his designee shall review and approve the affidavit form for legal sufficiency. The affidavit form shall be attached to the permit application as a part thereof, shall include but not be limited to a description of the type of occupancy for which the permit application is being made and any exhibits referred to therein, and shall be properly sworn to and subscribed before a notary public.
(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-384. Permit review, approval, denial.

(a) No permit application shall be deemed complete and accepted by the director unless it is accompanied by all required documents and information, including all applicable permit fees.

(b) The director shall make a determination of completeness in writing to the applicant no later than the tenth business day after the date that the permit application is submitted. The determination of completeness shall:

(1) Indicate that the permit application is complete; or

(2) Indicate that the permit application is not complete and specify the documents or other information necessary to complete the application and shall state the date the permit application will expire, which shall be on or after 45 days from the date of the letter.

(c) If the required additional information is not timely submitted, the permit application shall be deemed to have expired, and a new permit application shall be required.

(d) The director shall review each complete permit application, and if in compliance with this article, a permit shall be issued; if not in compliance with this article, the permit application shall be denied, with a notation of the reasons for denial.
(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-385. Exceptions.

No airport land use permit shall be required for any activity on property owned or leased by the city, its tenants, or the federal government.
(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-386. Expiration.

An airport land use permit shall expire if development has not commenced within two years of issuance or upon completion of the project for which it is granted, whichever occurs first.
(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-387. Revocation of permit; appeal process.

(a) In addition to any enforcement remedies allowed by law, whenever the director finds that there are grounds for revocation of a permit, he shall give written notice to the permittee by personal service or by certified mail, return receipt requested, addressed to the applicant at the address set forth in the permit application. The notice shall include:

(1) The specific grounds upon which the permit in question may be revoked;

(2) The fact that there will be a hearing in which the city will seek the revocation of the permit;

(3) The date, time and place of the hearing;

(4) The fact that the permittee may appear in person or be represented by an attorney; and

(5) Any notice required by other city ordinance.

(b) All hearings shall be held by a hearing officer appointed by the director.

(c) All hearings shall be conducted under rules consistent with the nature of the proceedings; provided however, that the following specific rules shall also apply:

(1) All parties shall have the right to representation by a licensed attorney, though an attorney is not required.

(2) Each party may present witnesses in its own behalf.

(3) Each party has the right to cross-examine all witnesses.

(4) Only evidence presented before the hearing officer at the hearing may be considered in rendering the final order.

(d) If the permittee fails to appear at the hearing on the date and time specified, the city shall introduce evidence to establish a prima facie case on behalf of the city showing that grounds exist for revocation of the permit.

(e) After completion of the presentation of evidence by all parties appearing, the hearing officer shall make written findings and render a written order as to whether or not grounds exist for the revocation of the permit. If grounds exist, the hearing officer shall revoke the permit; provided that he may, in the interest of justice, take such other lesser actions as deemed appropriate including, but not limited to, the temporary suspension of the permit, the revision of the permit, or the addition of permit conditions. A true and accurate copy of the order shall be personally delivered or mailed by certified mail, return receipt requested, to the permittee.

(f) In the event a permit is revoked, suspended, or revised, the city shall not be liable to any person for any refund of any part of any permit fees.

(g) An action under this section may be appealed to the city council pursuant to Rule 12 of the city council rules of procedure, upon the filing of a written application therefore with the city secretary within ten days from the date the written order is signed by the hearing officer. Filing of an appeal shall not operate to suspend the hearing officer's order thereon.
(Ord. No. 08-1052, § 2, 12-3-08)

Secs. 9-388—9-390. Reserved.

Subdivision D. Appeals, Variances and Special Exceptions

Sec. 9-391. Appeals.

Except for actions brought under section 9-387 of this Code, the board shall hear and decide an appeal from an order, requirement, decision, or determination made by the director in the application or enforcement of this article in accordance with such reasonable rules as the board may establish.

(1) *Who may appeal.* Any person aggrieved by an order, decision, or determination of the director, any taxpayer affected by a decision or determination of the director made in the administration of this article, or the governing body if the governing body believes the order, decision or determination is an improper application of this article may file an appeal with the board.

(2) *Commencement of appeals.* All appeals hereunder must be taken within seven business days of the director's decision or prior to commencement of construction, whichever occurs first, by filing a notice of appeal with the board and the department specifying the grounds for the appeal. The department shall transmit to the board all papers constituting the record upon which the action appealed was taken.

(3) *Stay of proceedings.* An appeal shall stay all proceedings in furtherance of the action appealed unless the director certifies in writing to the board that by reason of the facts stated in the certificate, a stay would, in the opinion of the director, cause imminent peril to life or property. In such case, proceedings shall not be stayed except by order of the board on notice to the director and on due cause shown.

(4) *Appeal procedures.* The board shall set a reasonable time for an appeal hearing, and public notice of the hearing and due notice to the parties in interest shall be

given as provided in section 9-395 of this Code. The board shall decide an appeal within a reasonable time. At the hearing, any party may appear in person, by agent, or by attorney.

(5) *Decision.* The board may reverse or affirm, in whole or in part, or modify the director's order, requirement, decision, or determination from which an appeal is taken and make the correct order, requirement, decision, or determination, and for this purpose the board of adjustment has the same authority as the department.

(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-392. Special exceptions.

The board shall be entitled to hear and grant special exceptions to the terms of this article as provided in this article.

(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-393. Variances.

The board shall hear and decide specific variances to the regulations in this article.

(1) A person who desires to use property in a manner inconsistent with this article may apply to the board of adjustment for a variance from the regulations.

(2) The board shall allow a variance from these regulations if:

a. A literal application or enforcement of the regulation would result in practical difficulty or unnecessary hardship; and

b. The granting of the relief would:

[1] Result in substantial justice being done;

[2] Not be contrary to the public interest; and

[3] Be in accordance with the spirit of these regulations and Chapter 241.

(3) The board may impose any reasonable conditions on the variance that it considers necessary to accomplish the purposes of this article and Chapter 241.

(4) A request for a variance shall be made by filing with the director a complete application in the form prescribed by the director and payment of the fee stated for this provision in the city fee schedule established by city council. The director shall set a reasonable time for a hearing date and shall give public notice of the hearing and due notice to the parties in interest as required by section 9-395 of this Code. The board shall conduct a public hearing on the application and shall make its decision within a reasonable time, not to exceed 30 days from the date of the close of the hearing. In each case, the board shall make written findings that all conditions for the particular variance sought have been met or not met, and the board may impose such additional conditions or safeguards it deems necessary to protect the public interest.

(Ord. No. 08-1052, § 2, 12-3-08; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 9-394. Time for submittal.

Complete applications shall be reviewed and referred to the board by the director for the next meeting for which proper notice pursuant to section 9-395 of this Code can be given.

(Ord. No. 08-1052, § 2, 12-3-08; Ord. No. 2011-221, § 4, 3-23-2011)

Sec. 9-395. Notification of application before the board.

(a) The director shall give public notice of a hearing before the board on an appeal of the director's decision, a special exception, or a variance by:

(1) Either:

a. Mailing a letter, first class mail, postage paid, to the owner of the property that is the subject of the matter presented to the board, and to the owners of all lots or tracts that are within 250 feet of the boundary of the property, as shown on the most recently approved ad valorem tax rolls of the city not less than the

seventh day before the first meeting at which the board will first consider the application; or

b. By causing the information to be readily available to the public in an electronic format; and

(2) By letter mailed first class mail, postage paid, or by electronic mail message to each neighborhood association with defined boundaries registered with the department in whose area the property is located as soon as reasonably possible before the first meeting at which the board will consider the application.

(b) The applicant shall give notice of an application before the board by posting at least one sign on the property that is the subject of a proposed variance or special exception before the tenth business day before the date of the meeting at which the board will first consider the application. A sign shall face each public right-of-way bordering the site, provided, however, that if more than four signs would be required to be posted, the applicant may request the director to approve an alternative number and location of signs. The director shall approve an alternative to the number and location of signs required by this subsection in excess of four upon determining that the alternative will provide maximum visibility and obtain the objectives of this section without unduly burdening the applicant. Each sign shall be a minimum of four by eight feet in size and shall be posted no more than 15 feet from the public right-of-way. The lettering on the sign shall be legible from the public right-of-way. The applicant shall use reasonable efforts to maintain each required sign on the site until the close of the meeting at which the board acts on the application. The sign shall provide the following information:

(1) The application number of the plat and the fact that a variance or special exception is being requested;

(2) The date, time, and place of the meeting at which the board will first consider the application;

(3) A telephone number of the applicant to call for additional information; and

(4) A department telephone number to call for additional information.

(Ord. No. 08-1052, § 2, 12-3-08)

Secs. 9-396—9-400. Reserved.

DIVISION 2. GEORGE H. BUSH INTERCONTINENTAL AIRPORT (IAH) COMPATIBLE LAND USE REGULATIONS

Sec. 9-401. Regulated area.

The area subject to the regulations contained within this division is shown in the IAH official airport land use map.

(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-402. General provisions.

Land uses not specifically allowed shall not be permitted.

(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-403. Land uses in IAH tier one.

(a) *Nonresidential uses.* Nonresidential uses are permitted in tier one as follows:

(1) *Public assembly uses and sensitive land uses.*

a. No permit shall be issued for the establishment of a new public assembly use or sensitive land use except as provided in paragraph d. of this item.

b. An existing public assembly use or sensitive land use shall be permitted to enlarge within or renovate an existing structure where it is located, provided that any physical expansion of the structure meets a 45 dBA interior sound level.

c. An existing public assembly use or sensitive land use shall be permitted to construct new structures within the land area of a master plan for

the entity, provided that any new structure meets a 45 dBA interior sound level.

d. A new public assembly use or sensitive land use shall be permitted under the following conditions:

[1] The new use shall be located in a structure that meets a 45 dBA interior sound level; and

[2] The owner grants the city an avigation easement and release over the affected property.

(2) *Hotels and motel lodging uses.*

a. A new hotel or motel use shall be permitted provided that the structure meets a 45 dBA interior sound level where central HVAC is used. For hotels and motels wishing to utilize through wall systems, all other sound insulation requirements will apply.

b. An existing hotel or motel use shall be permitted to enlarge within or renovate an existing structure where it is located, provided that any physical expansion of the structure meets a 45 dBA interior sound level where central HVAC is used. For hotels and motels wishing to utilize through wall systems, all other sound insulation requirements will apply.

(3) *Commercial and employment uses.* All uses shall be permitted unless otherwise proscribed above.

(b) *Residential uses.* An existing, unmodified residential use shall be allowed to continue. Enlargement, replacement, or reconstruction of an existing residential use shall not increase the density or the intensity of the use. A residential use in tier one is further allowed as follows:

(1) An existing single family use will be permitted to renovate the livable area of an existing structure in which it is located if the renovation is entirely contained within the existing livable area of the structure, provided the use will not involve the subdivision of the property on which the existing single family use is located.

(2) An existing single family use will be permitted to enlarge the livable area of an existing structure in which it is located under the following conditions:

a. The use is located on a residential lot within an existing platted subdivision, or valid deed restrictions prohibit the use of the property for other than residential use;

b. The use will not involve the subdivision of the lot on which the existing single family use is located; and

c. The newly constructed livable area shall meet a 45 dBA interior sound level.

(3) An existing single family use will be permitted to convert existing non-livable area located wholly within an existing structure provided the use will not involve the subdivision of the lot on which the existing single family use is located.

(4) An existing single family use will be permitted to be replaced after a casualty under the following conditions:

a. The livable area shall meet a 45 dBA interior sound level.

b. The use will not involve the subdivision of the property on which the existing single family use is located.

(5) A new single family residential use shall be permitted under the following conditions:

a. The use is located on a residential lot within an existing platted subdivision, or valid deed restrictions prohibit the use of the property for other than residential use;

b. The construction shall meet a 45 dBA interior sound level; and

c. The use will not involve the subdivision of the lot on which the existing single family use is located.

(6) An existing multifamily use will be permitted to renovate an existing structure provided the use will not increase the density of development as shown by a filed subdivision plat or development plat, measured in dwelling units per acre. The applicant shall be required to demonstrate to the satisfaction of the director the density prior to the application for the residential building permit.

(7) An existing multifamily use will be permitted to enlarge an existing structure under the following conditions:

a. The use will not increase the density of development as shown by a filed subdivision plat or development plat, measured in dwelling units per acre. The applicant shall be required to demonstrate to the satisfaction of the director the density prior to the application for the residential building permit; and

b. The enlargement shall meet or shall be located in a structure that meets a 45 dBA interior sound level.

(8) An existing multifamily use will be permitted to be replaced after a casualty under the following conditions:

a. The livable area shall meet a 45 dBA interior sound level;

b. The use will not involve the subdivision of the lot on which the existing multifamily use is located; and

c. The use will not increase the density of development as shown by a filed subdivision plat or development plat, measured in dwelling units per acre. The applicant shall be required to demonstrate to the satisfaction of the director the density prior to the application for the residential building permit.

(9) A new multifamily residential use shall not be permitted.

(10) No new mobile or manufactured home parks or subdivisions shall be permitted.

(Ord. No. 08-1052, § 2, 12-3-08; Ord. No. 2011-221, § 3, 3-23-2011)

Sec. 9-404. Land uses in IAH tier two.

(a) *Nonresidential uses.* Nonresidential uses are permitted in tier two as follows:

(1) *Public assembly uses or sensitive land uses.*

a. A new public assembly use or sensitive land use shall be permitted provided the new use shall be located in a structure that meets a 45 dBA interior sound level.

b. An existing public assembly use or sensitive land use shall be permitted to enlarge within or renovate an existing structure where it is located, provided that any physical expansion of the structure meets a 45 dBA interior sound level.

(2) *Hotels and motel lodging uses.*

a. A new hotel or motel use shall be permitted provided that the structure meets a 45 dBA interior sound level where central HVAC is used. For hotels and motels wishing to utilize through wall systems, all other sound insulation requirements will apply.

b. An existing hotel or motel use shall be permitted to enlarge within or renovate an existing structure where it is located, provided that any physical expansion of the structure meets a 45 dBA interior sound level where central HVAC is used. For hotels and motels wishing to utilize through wall systems, all other sound insulation requirements will apply.

(3) *Commercial and employment uses.* All uses shall be permitted unless otherwise proscribed above.

(b) *Residential uses.* An existing, unmodified residential use shall be allowed to continue. Enlargement, replacement, or reconstruction of an existing residential use shall not increase the density or the intensity of the use. Residential uses in tier two are further allowed as follows:

(1) An existing single family use will be permitted to renovate or convert non-livable area within the existing structure in which it is located, provided the use will not involve the subdivision of the property on which the existing single family use is located.

(2) An existing single family use will be permitted to enlarge the existing structure in

which it is located, provided the use will not involve the subdivision of the property on which the existing single family use is located.

(3) An existing single family use will be permitted to be replaced after a casualty under the following conditions:

a. The construction shall meet a 45 dBA interior sound level; and

b. The use will not involve the subdivision of the property on which the existing single family use is located.

(4) A new single family use shall be permitted only on the condition that the new construction shall meet or exceed a 45 dBA interior sound level.

(5) An existing multifamily use will be permitted to renovate an existing structure provided the use will not increase the density of development as shown by a filed subdivision plat or development plat, measured in dwelling units per acre. The applicant shall be required to demonstrate to the satisfaction of the director the density prior to the application for the residential building permit.

(6) An existing multifamily use will be permitted to enlarge an existing structure under the following conditions:

a. The use will not increase the density of development as shown by a filed subdivision plat or development plat, measured in dwelling units per acre.The applicant shall be required to demonstrate to the satisfaction of the director the density prior to the application for the residential building permit; and

b. An enlargement shall meet or shall be located in a structure that meets a 45 dBA interior sound level.

(7) An existing multifamily use will be permitted to be replaced after a casualty under the following conditions:

a. The livable area shall meet a 45 dBA interior sound level;

b. The use will not involve the subdivision of the lot on which the existing multifamily use is located; and

c. The use will not increase the density of development as shown by a filed subdivision plat or development plat, measured in dwelling units per acre. The applicant shall be required to demonstrate to the satisfaction of the director the density prior to the application for the residential building permit.

(8) A new multifamily residential use shall be permitted only on the condition that the construction shall meet or exceed a 45 dBA interior sound level.

(9) No new mobile or manufactured home parks or subdivisions shall be permitted.

(Ord. No. 08-1052, § 2, 12-3-08; Ord. No. 09-825, § 2, 9-16-09)

Sec. 9-405. Land uses in IAH tier three.

(a) *Nonresidential uses.* A new nonresidential use or enlargement of a nonresidential use is permitted in IAH tier three subject to a determination upon application for a building or development permit that it is proposed on property located in tier three and is therefore not subject to additional restrictions set forth in this section for tiers one and two.

(b) *Residential uses.* A new residential use or enlargement of a residential use is permitted in tier three subject to a determination at application for a building or development permit that such use/structure is proposed on property located in tier three and is therefore not subject to additional restrictions set forth in this section for tiers one and two.

(Ord. No. 08-1052, § 2, 12-3-08)

Secs. 9-406—9-500. Reserved.

DIVISION 3. HOUSTON HOBBY AIRPORT (HOU) COMPATIBLE LAND USE REGULATIONS

Sec. 9-501. Regulated area.

The area subject to the regulations contained within this division is shown in the HOU official airport land use map.
(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-502. General provisions.

Land uses not specifically allowed shall not be permitted. Notwithstanding any other provision of this article, no new residential use or structure shall be permitted within the present or any future 70 DNL or higher noise contour formally approved by the FAA for HOU.
(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-503. Land uses in HOU tier one.

(a) *Nonresidential uses.* Nonresidential uses are permitted in tier one as follows:

(1) *Public assembly uses and sensitive land uses.*

a. No permit shall be issued for the establishment of a new public assembly use or sensitive land use except as provided in paragraph d. of this item.

b. An existing public assembly use or sensitive land use shall be permitted to enlarge within or renovate an existing structure where it is located, provided that any physical expansion of the structure meets a 45 dBA interior sound level.

c. An existing public assembly use or sensitive land use shall be permitted to construct new structures within the land area of a master plan for the entity, provided that any new structure meets a 45 dBA interior sound level.

d. A new public assembly use or sensitive land use shall be permitted under the following conditions:

[1] The new use shall be located in a structure that meets a 45 dBA interior sound level; and

[2] The owner grants the city an avigation easement and release over the affected property.

(2) *Hotels and motel lodging uses.*

a. A new hotel or motel use shall be permitted provided that the structure meets a 45 dBA interior sound level where central HVAC is used. For hotels and motels wishing to utilize through wall systems, all other sound insulation requirements will apply.

b. An existing hotel or motel use shall be permitted to enlarge within or renovate an existing structure where it is located, provided that any physical expansion of the structure meets a 45 dBA interior sound level where central HVAC is used. For hotels and motels wishing to utilize through wall systems, all other sound insulation requirements will apply.

(3) *Commercial and employment uses.* All uses shall be permitted unless otherwise proscribed above.

(b) *Residential uses.* An existing, unmodified residential use shall be allowed to continue. Enlargement, replacement, or reconstruction of an existing residential use shall not increase the density or the intensity of the use. A residential use in tier one is further allowed as follows:

(1) An existing single family use will be permitted to renovate the livable area of an existing structure in which it is located if the renovation is entirely contained within the existing livable area of the structure, provided the use will not involve the subdivision of the property on which the existing single family use is located.

(2) An existing single family use will be permitted to enlarge the livable area of an existing structure in which it is located under the following conditions:

a. The use is located on a residential lot within an existing platted subdivision, or valid deed restrictions prohibit the use of the property for other than residential use;

b. The use will not involve the subdivision of the lot on which the existing single family use is located; and

c. The newly constructed livable area shall meet a 45 dBA interior sound level.

(3) An existing single family use will be permitted to convert existing non-livable area located wholly within an existing structure provided the use will not involve the subdivision of the lot on which the existing single family use is located.

(4) An existing single family use will be permitted to be replaced after a casualty under the following conditions:

a. The livable area shall meet a 45 dBA interior sound level.

b. The use will not involve the subdivision of the property on which the existing single family use is located.

(5) A new single family residential use shall be permitted under the following conditions:

a. The use is located on a residential lot within an existing platted subdivision, or valid deed restrictions prohibit the use of the property for other than residential use;

b. The construction shall meet a 45 dBA interior sound level; and

c. The use will not involve the subdivision of the lot on which the existing single family use is located.

(6) An existing multifamily use will be permitted to renovate an existing structure provided the use will not increase the density of development as shown by a filed subdivision plat or development plat, measured in dwelling units per acre. The applicant shall be required to demonstrate to the satisfaction of the director the density prior to the application for the residential building permit.

(7) An existing multifamily use will be permitted to enlarge an existing structure under the following conditions:

a. The use will not increase the density of development as shown by a filed subdivision plat or development plat, measured in dwelling units per acre. The applicant shall be required to demonstrate to the satisfaction of the director the density prior to the application for the residential building permit; and

b. An enlargement shall meet or shall be located in a structure that meets a 45 dBA interior sound level.

(8) An existing multifamily use will be permitted to be replaced after a casualty under the following conditions:

a. The livable area shall meet a 45 dBA interior sound level;

b. The use will not involve the subdivision of the lot on which the existing multifamily use is located; and

c. The use will not increase the density of development as shown by a filed subdivision plat or development plat, measured in dwelling units per acre. The applicant shall be required to demonstrate to the satisfaction of the director the density prior to the application for the residential building permit.

(9) A new multifamily residential use shall not be permitted.

(10) No new mobile or manufactured home parks or subdivisions shall be permitted.

(Ord. No. 08-1052, § 2, 12-3-08; Ord. No. 2011-221, § 3, 3-23-2011)

Sec. 9-504. Land uses in HOU tier two.

(a) *Nonresidential uses.* Nonresidential uses are permitted in tier two as follows:

(1) *Public assembly uses and sensitive land uses.*

a. A new public assembly use or sensitive land use shall be permitted provided the new use shall be located in a structure that meets a 45 dBA interior sound level.

b. An existing public assembly use or sensitive land use shall be permitted to enlarge within or renovate an existing structure where it is located, provided that any physical expansion of the structure meets a 45 dBA interior sound level.

(2) *Hotels and motel lodging uses.*

a. A new hotel or motel use shall be permitted provided that the structure meets a 45 dBA interior sound level where central HVAC is used. For hotels and motels wishing to utilize through wall systems, all other sound insulation requirements will apply.

b. An existing hotel or motel use shall be permitted to enlarge within or renovate an existing structure where it is located, provided that any physical expansion of the structure meets a 45 dBA interior sound level where central HVAC is used. For hotels and motels wishing to utilize through wall systems, all other sound insulation requirements will apply.

(3) *Commercial and employment uses.* All uses shall be permitted unless otherwise proscribed above.

(b) *Residential uses.* An existing, unmodified residential use shall be allowed to continue. Enlargement, replacement, or reconstruction of an existing residential use shall not increase the density or the intensity of the use. Residential uses in tier two are further allowed as follows:

(1) An existing single family use will be permitted to renovate or convert non-livable area within the existing structure in which it is located, provided the use will not involve the subdivision of the property on which the existing single family use is located.

(2) An existing single family use will be permitted to enlarge the existing structure in which it is located, provided the use will not involve the subdivision of the property on which the existing single family use is located

(3) An existing single family use will be permitted to be replaced after a casualty under the following conditions:

a. The construction shall meet a 45 dBA interior sound level; and

b. The use will not involve the subdivision of the property on which the existing single family use is located.

(4) A new single family use shall be permitted only on the condition that the new construction shall meet or exceed a 45 dBA interior sound level.

(5) An existing multifamily use will be permitted to renovate an existing structure provided the use will not increase the density of development as shown by a filed subdivision plat or development plat, measured in dwelling units per acre. The applicant shall be required to demonstrate to the satisfaction of the director the density prior to the application for the residential building permit.

(6) An existing multifamily use will be permitted to enlarge an existing structure under the following conditions:

a. The use will not increase the density of development as shown by a filed subdivision plat or development plat, measured in dwelling units per acre. The applicant shall be required to demonstrate to the satisfaction of the director the density prior to the application for the residential building permit; and

b. An enlargement shall meet or shall be located in a structure that meets a 45 dBA interior sound level.

(7) An existing multifamily use will be permitted to be replaced after a casualty under the following conditions:

a. The livable area shall meet a 45 dBA interior sound level;

b. The use will not involve the subdivision of the lot on which the existing multifamily use is located; and

c. The use will not increase the density of development as shown by a filed subdivision plat or development plat, measured in dwelling units per acre. The applicant shall be required to demonstrate to the satisfaction of the director the density prior to the application for the residential building permit.

(8) A new multifamily residential use shall be permitted only on the condition that the construction shall meet or exceed a 45 dBA interior sound level.

(9) No new mobile or manufactured home parks or subdivisions shall be permitted.

(Ord. No. 08-1052, § 2, 12-3-08; Ord. No. 09-825, § 2, 9-16-09)

Sec. 9-505. Land uses in HOU tier three.

(a) *Nonresidential uses.* A new nonresidential use or enlargement of a nonresidential use is permitted in HOU tier three subject to a determination upon application for a building or development permit that it is proposed on property located in tier three and is therefore not subject to additional restrictions set forth in this section for tiers one and two.

(b) *Residential uses.* A new residential use or enlargement of a residential use is permitted in tier three subject to a determination at application for a building or development permit that such use/structure is proposed on property located in tier three and is therefore not subject to additional restrictions set forth in this section for tiers one and two.

Secs. 9-506—9-600. Reserved.

DIVISION 4. ELLINGTON AIRPORT (EFD) COMPATIBLE LAND USE REGULATIONS*

Sec. 9-601. Regulated area.

The area subject to the regulations contained within this division is shown in the EFD official airport land use map.

(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-602. General provisions.

Land uses not specifically allowed shall not be permitted. Notwithstanding any other provision of this article, no new residential use or structure shall be permitted within the present or any future 70 DNL or higher noise contour formally approved by the FAA for EFD.

(Ord. No. 08-1052, § 2, 12-3-08)

Sec. 9-603. Land uses in EFD tier one.

(a) *Nonresidential uses.* Nonresidential uses are permitted in tier one as follows:

(1) *Public assembly uses and sensitive land uses.*

a. No permit shall be issued for the establishment of a new public assembly use or sensitive land use except as provided in paragraph d. of this item.

b. An existing public assembly use or sensitive land use shall be permitted to enlarge within or renovate an existing structure where it is located, provided that any physical expansion of the structure meets a 45 dBA interior sound level.

c. An existing public assembly use or sensitive land use shall be permitted to construct new structures within the land area of a master plan for

*__Editor's note—__Ord. No. 09-22, §§ 2, 3, adopted January 14, 2009, amended the title of Ch. 9, Art. VI, Div. 4 to read as herein set out. Formerly said division was entitled Ellington Field.

the entity, provided that any new structure meets a 45 dBA interior sound level.

d. A new public assembly use or sensitive land use shall be permitted under the following conditions:

[1] The new use shall be located in a structure that meets a 45 dBA interior sound level; and

[2] The owner grants the city an avigation easement and release over the affected property.

(2) *Hotels and motel lodging uses.*

a. A new hotel or motel use shall be permitted provided that the structure meets a 45 dBA interior sound level where central HVAC is used. For hotels and motels wishing to utilize through wall systems, all other sound insulation requirements will apply.

b. An existing hotel or motel use shall be permitted to enlarge within or renovate an existing structure where it is located, provided that any physical expansion of the structure meets a 45 dBA interior sound level where central HVAC is used. For hotels and motels wishing to utilize through wall systems, all other sound insulation requirements will apply.

(3) *Commercial and employment uses.* All uses shall be permitted unless otherwise proscribed above.

(b) *Residential uses.* An existing, unmodified residential use shall be allowed to continue. Enlargement, replacement, or reconstruction of an existing residential use shall not increase the density or the intensity of the use. A residential use in tier one is further allowed as follows:

(1) An existing single family use will be permitted to renovate the livable area of an existing structure in which it is located if the renovation is entirely contained within the existing livable area of the structure, provided the use will not involve the subdivision of the property on which the existing single family use is located.

(2) An existing single family use will be permitted to enlarge the livable area of an existing structure in which it is located under the following conditions:

a. The use is located on a residential lot within an existing platted subdivision, or valid deed restrictions prohibit the use of the property for other than residential use;

b. The use will not involve the subdivision of the lot on which the existing single family use is located; and

c. The newly constructed livable area shall meet a 45 dBA interior sound level.

(3) An existing single family use will be permitted to convert existing non-livable area located wholly within an existing structure provided the use will not involve the subdivision of the lot on which the existing single family use is located.

(4) An existing single family use will be permitted to be replaced after a casualty under the following conditions:

a. The livable area shall meet a 45 dBA interior sound level.

b. The use will not involve the subdivision of the property on which the existing single family use is located.

(5) A new single family residential use shall be permitted under the following conditions:

a. The use is located on a residential lot within an existing platted subdivision, or valid deed restrictions prohibit the use of the property for other than residential use;

b. The construction shall meet a 45 dBA interior sound level; and

c. The use will not involve the subdivision of the lot on which the existing single family use is located.

(6) An existing multifamily use will be permitted to renovate an existing structure provided the use will not increase the density of development as shown by a filed subdivision plat or development plat, measured in dwelling units per acre. The applicant shall be required to demonstrate to the satisfaction of the director the density prior to the application for the residential building permit.

(7) An existing multifamily use will be permitted to enlarge an existing structure under the following conditions:

a. The use will not increase the density of development as shown by a filed subdivision plat or development plat, measured in dwelling units per acre. The applicant shall be required to demonstrate to the satisfaction of the director the density prior to the application for the residential building permit; and

b. An enlargement shall meet or shall be located in a structure that meets a 45 dBA interior sound level.

(8) An existing multifamily use will be permitted to be replaced after a casualty under the following conditions:

a. The livable area shall meet a 45 dBA interior sound level;

b. The use will not involve the subdivision of the lot on which the existing multifamily use is located; and

c. The use will not increase the density of development as shown by a filed subdivision plat or development plat, measured in dwelling units per acre. The applicant shall be required to demonstrate to the satisfaction of the director the density prior to the application for the residential building permit.

(9) A new multifamily residential use shall not be permitted.

(10) No new mobile or manufactured home parks or subdivisions shall be permitted.

(Ord. No. 08-1052, § 2, 12-3-08; Ord. No. 2011-221, § 3, 3-23-2011)

Sec. 9-604. Land uses in EFD tier two.

(a) *Nonresidential uses.* Nonresidential uses are allowed in tier two as follows:

(1) *Public assembly uses and sensitive land uses.*

a. A new public assembly use or sensitive land use shall be permitted provided the new use shall be located in a structure that meets a 45 dBA interior sound level.

b. An existing public assembly use or sensitive land use shall be permitted to enlarge within or renovate an existing structure where it is located, provided that any physical expansion of the structure meets a 45 dBA interior sound level.

(2) *Hotels and motel lodging uses.*

a. A new hotel or motel use shall be permitted provided that the structure meets a 45 dBA interior sound level where central HVAC is used. For hotels and motels wishing to utilize through wall systems, all other sound insulation requirements will apply.

b. An existing hotel or motel use shall be permitted to enlarge within or renovate an existing structure where it is located, provided that any physical expansion of the structure meets a 45 dBA interior sound level where central HVAC is used. For hotels and motels wishing to utilize through wall systems, all other sound insulation requirements will apply.

(3) *Commercial and employment uses.* All uses shall be permitted unless otherwise proscribed above.

(b) *Residential uses.* An existing, unmodified residential use shall be allowed to continue. Enlargement, replacement, or reconstruction of an existing residential use shall not increase the density or the intensity of the use. Residential uses in tier two are further allowed as follows:

(1) An existing single family use will be permitted to renovate or convert non-livable area within the existing structure in which it is located, provided the use will not involve the subdivision of the property on which the existing single family use is located.

(2) An existing single family use will be permitted to enlarge the existing structure in which it is located, provided the use will not involve the subdivision of the property on which the existing single family use is located.

(3) An existing single family use will be permitted to be replaced after a casualty under the following conditions:

a. The construction shall meet a 45 dBA interior sound level; and

b. The use will not involve the subdivision of the property on which the existing single family use is located.

(4) A new single family use shall be permitted only on the condition that the new construction shall meet or exceed a 45 dBA interior sound level.

(5) An existing multifamily use will be permitted to renovate an existing structure provided the use will not increase the density of development as shown by a filed subdivision plat or development plat, measured in dwelling units per acre. The applicant shall be required to demonstrate to the satisfaction of the director the density prior to the application for the residential building permit.

(6) An existing multifamily use will be permitted to enlarge an existing structure under the following conditions:

a. The use will not increase the density of development as shown by a filed subdivision plat or development plat, measured in dwelling units per acre. The applicant shall be required to demonstrate to the satisfaction of the director the density prior to the application for the residential building permit; and

b. An enlargement shall meet or shall be located in a structure that meets a 45 dBA interior sound level.

(7) An existing multifamily use will be permitted to be replaced after a casualty under the following conditions:

a. The livable area shall meet a 45 dBA interior sound level;

b. The use will not involve the subdivision of the lot on which the existing multifamily use is located; and

c. The use will not increase the density of development as shown by a filed subdivision plat or development plat, measured in dwelling units per acre. The applicant shall be required to demonstrate to the satisfaction of the director the density prior to the application for the residential building permit.

(8) A new multifamily residential use shall be permitted only on the condition that the construction shall meet or exceed a 45 dBA interior sound level.

(9) No new mobile or manufactured home parks or subdivisions shall be permitted.

(Ord. No. 08-1052, § 2, 12-3-08; Ord. No. 09-825, § 2, 9-16-09)

Sec. 9-605. Land uses in EFD tier three.

(a) *Nonresidential uses.* A new nonresidential use or enlargement of a nonresidential use is permitted in EFD tier three subject to a determination upon application for a building or development permit that it is proposed on property located in tier three and is therefore not subject to additional restrictions set forth in this section for tiers one and two.

(b) *Residential uses.* A new residential use or enlargement of a residential use is permitted in tier three subject to a determination at application for a building or development permit that such use/structure is proposed on property located in tier three and is therefore not subject to additional restrictions set forth in this section for tiers one and two.
(Ord. No. 08-1052, § 2, 12-3-08)

ARTICLE VII. AIRPORT HAZARD AREA REGULATIONS

DIVISION 1. IN GENERAL

Sec. 9-701. Applicability.

The provisions of this article shall apply within an airport hazard area, whether located within or outside the city. No land, body of water, structure or object of natural growth shall be used or permitted to be used, no structure or object of natural growth shall be erected, constructed, moved, reconstructed, structurally altered or maintained, nor shall any electronic emissions, visual effect, or other objects or activities which could adversely affect the operation of aircraft be permitted, for any purpose except in compliance with the terms of this article.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-702. Definitions.

As used in this article, these words and phrases shall have the meanings ascribed to them in this section, unless the context clearly indicates a different meaning. All words and phrases not defined shall have their common meaning.

Airport means George Bush Intercontinental Airport/Houston (IAH), William P. Hobby Airport (HOU) or Ellington Airport (EFD), as described by any current or future plans of HAS.

Airport commission means the airport zoning commission described in Chapter 241 that is charged with making recommendations to the city council on regulations and boundaries, and performing other tasks delegated to it in accordance with state law in the implementation of this article.

Airport hazard means any permanent or temporary structure or proposed structure; any addition to or alteration of an existing structure; any object of natural growth; or any electronic emission or visual effect, that obstructs or limits, or has the potential to obstruct or limit, the operation of aircraft to, from or in the vicinity of, any airport, including, but not limited to:

(1) Anything that obstructs the air space required for the taking off, landing or maneuvering of aircraft;

(2) Anything that interferes with visual, radar, radio or other systems for tracking, acquiring data relating to, monitoring or controlling aircraft;

(3) Anything tending to destroy or impair the utility of any airport;

(4) Anything constituting an obstruction to air navigation, as defined in section 77.21 *et seq.* of Part 77; or

(5) Anything that is found to be a hazard to air navigation or a presumed hazard to air navigation as a result of an aeronautical study conducted by the FAA pursuant to section 77.31 *et seq.* of Part 77.

Airport hazard area means the areas described in section 9-706 of this Code.

Airport hazard area permit or AHA permit means a permit issued by the department for regulated activities within an airport hazard area.

Airport hazard notification surface means any of the following surfaces:

(1) Primary notification surface, which is a slope of 100 feet horizontal to one foot vertical for a distance of 20,000 feet from the nearest point of each runway at each airport, or any TERPS surface that is lower at any point than this slope;

(2) Secondary notification surface, which is a surface that would be penetrated by a structure or an object of natural growth that is 200 feet above ground level at any given location within the city or in an air hazard area;

(3) Special one engine inoperative surface, which is a one-engine inoperative surface at any airport that is lower at any point than any other surface established by or pursuant to FAA regulation.

Board of adjustment or board means the board charged with hearing requests to reverse an order, requirement, decision, or determination of the director and deciding matters that are delegated to the board pursuant to this article.

Chapter 241 means Chapter 241 of the Texas Local Government Code, as it may be amended from time to time.

Composite perimeter means a perimeter line delineating the outer boundary of the combined TERPS surface, Part 77 surface, one engine inoperative surface and airport hazard notification surface at IAH, and at HOU/EFD combined, as those surfaces exist as of December 16, 2009 or may hereafter be established, and as shown on the official airport hazard area maps.

Development plat has the meaning ascribed in section 42-1 of this Code or as provided in an interlocal agreement for land located outside the city.

Form 7460-1 means the form identified in section 77.17 of Part 77.

Nonconformity means any airport hazard that penetrates any airport hazard notification surface and that legally exists as of March 1, 2010.

One engine inoperative surface means any surface established at each airport in accordance with FAA requirements to permit the safe operation of air carrier aircraft in the event of loss of engine power on takeoff.

Part 77 means Part 77 of the FAA regulations in Title 14, Code of Federal Regulations as it now exists or may hereafter be amended.

Part 77 surfaces means those surfaces identified in section 77.25 of Part 77.

Structure means anything that is built, constructed or erected, whether temporary or permanent, including, but not limited to, cranes and drilling rigs.

Subdivision plat has the meaning ascribed in section 42-1 of this Code, or as provided in an interlocal agreement for land located outside the city.

TERPS means one or more terminal instrument procedures surfaces established by FAA orders to protect aircraft on approach to and departure from, or operations in the vicinity of each airport.

(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-703. Essential community purpose.

The airports are used in the interest of the public to the benefit of the city and fulfill an essential community purpose.

(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-704. Other jurisdictions' regulations; interlocal agreements.

(a) Each municipality or county whose jurisdiction includes land within an airport hazard area may coordinate with the city to adopt an ordinance, order, or appropriate regulation consistent with this article, including airport hazard area regulations and maps, and provisions regarding the enforcement and administration thereof, or may enter into an interlocal agreement with the city pursuant to Chapter 791, Texas Government Code.

(b) If a municipality or county whose jurisdiction includes land within an airport hazard area does not enter into an interlocal agreement with the city, or adopt an ordinance, order or regulation consistent with this article, the city reserves its rights to enforce the terms of this article, as

well as all rights granted to the city under Chapter 241 in the airport hazard area within that jurisdiction.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-705. Cumulative effect.

(a) The provisions of this article are cumulative of all other requirements of this Code and other laws and regulations of the city, including, without limitation, the Construction Code, the Fire Code and the Houston Public Works Infrastructure Design Manual, as well as all applicable state and federal laws and regulations. Compliance with this article does not excuse compliance with any other law or regulation, and persons who are not required to obtain a permit pursuant to this article shall nevertheless obtain any other permits, licenses, and authorizations required by law.

(b) For land located outside the city, the provisions of this article are cumulative of the requirements imposed by ordinances or other laws and regulations of a municipality or county whose jurisdiction extends to land within an airport hazard area.

(c) If a conflict exists between this article and any other city ordinance or regulation, or an ordinance or regulation of another municipality or county whose jurisdiction extends to land within an airport hazard area, the provisions of this article shall control.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010; Ord. No. 2018-11, § 9, 1-10-2018)

Sec. 9-706. Airport hazard areas.

(a) The following airport hazard areas are hereby established:

(1) The land area within the IAH composite perimeter;

(2) The land area within the HOU/EFD combined composite perimeter;

(3) Airspace at or above 200 feet above ground level within the city; and

(4) Any area within the city on which an object or activity described in section 9-709 of this Code exists or is proposed.

(b) The director shall determine the location or character of an airport hazard area or other feature on an airport hazard area map in the event of any question or dispute with respect thereto.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-707. Airport hazard area maps.

The city council has adopted an official airport hazard area map for IAH and an official airport hazard area map for HOU/EFD combined, which shall be used to implement this article. The maps may be amended in accordance with Chapter 241. The official airport hazard area maps shall be maintained on file in the office of the city secretary, with a copy available at the department.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-708. Notice on plats; affidavit when no subdivision plat required.

(a) *Subdivisions requiring subdivision plat.* The recorded subdivision plat of any land located wholly or partially within an airport hazard area shall include on its face the following statement:

> **NOTICE:** Individual lots or parcels within this subdivision may be located in an airport hazard area and may be subject to height or use restrictions.

(b) *For construction on land not requiring subdivision plat.* Prior to the issuance of a permit for construction on or development of property located within any airport hazard area that has been platted prior to the effective date of this article, or that is not otherwise required to be platted, an affidavit in the form prescribed by the planning director shall be executed by the owners of the property setting forth, at a minimum, the notice language set forth in section 9-708(a) of this Code. The department shall record the affidavit in the real property records in the county in which the property is located, at the expense of the affiant.

(c) Prior to the use of any affidavit form, the city attorney or his designee shall review and approve the affidavit form for legal sufficiency. The affidavit form shall be attached to the permit application as a part thereof, shall include but not be limited to a description of the type of structure or activity for which the permit application is being made and any exhibits referred to therein, and shall be properly sworn to and subscribed before a notary public.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-709. Objects or activities that could adversely affect the operation of aircraft.

It shall be unlawful to create or maintain any electronic emission, visual effect or other object or activity in an airport hazard area that adversely affects the operation of aircraft. Upon receipt of a written notice of violation of this section from the director, the owner of the source of the electronic emission, visual effect or other object or activity shall immediately cease the emission, alter or remove the visual effect or other object or cease the activity.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-710. Objects of natural growth.

It shall be unlawful to plant or permit to grow any object of natural growth whose typical height at maturity will penetrate any airport hazard notification surface. The owner of any object of natural growth shall immediately remove the object of natural growth upon receipt of a written notice of violation of this section from the director. It shall be an affirmative defense to prosecution under this article that the object of natural growth does not penetrate an airport hazard notification surface.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-711. Continuation of nonconformity.

A nonconformity may be continued as it existed on March 1, 2010, but may not be enlarged or expanded unless in compliance with this article and other city requirements.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-712. Restoration of partially destroyed structure.

Nothing in this article shall prevent the repair or restoration, and continued occupancy or use, of any nonconforming structure destroyed to the extent of not more than 51 percent of its appraised market value, by fire, explosion or other casualty, natural disaster or other act of God or the public enemy. For purposes of this section, appraisal district records shall constitute prima facie proof of appraised market value.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-713. Mitigation of nonconformity.

(a) The owner of a nonconformity shall allow the installation, maintenance and operation of markers and lights, in accordance with FAA standards, deemed necessary by the department or the FAA to identify airport hazards.

(b) The owner of a tree or other object of natural growth that penetrates an airport hazard notification surface shall allow the department to lower or remove the tree or other object of natural growth to bring it into conformity with the requirements of this article.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Secs. 9-714—9-730. Reserved.

DIVISION 2. ADMINISTRATION

Sec. 9-731. Airport commission.

(a) An airport commission for airport hazard areas has been established by City of Houston Ordinance No. 2009-954. The members of the airport commission shall be the members of the city planning commission, as established pursuant to chapter 33 of this Code, and such other members as provided by this section.

(b) The airport commission may include a member appointed by the City of Humble and a member appointed by the City of Pasadena. The airport commission may also include members appointed by other units of local government whose jurisdiction extends to land within an airport hazard area upon entering into an interlocal agreement with the city, which members are not required to be residents of the city.

(c) A quorum of the airport commission shall be as provided in section 33-19 of this Code, regardless of whether the membership has been enlarged pursuant to this section. All meetings of the airport commission shall be held in accordance with the Texas Open Meetings Act, be recorded, and have minutes made and kept in accordance with all regulations governing the city planning commission.

(d) The airport commission may adopt such rules and regulations for the conduct of public hearings and meetings as are in compliance with federal and Texas law and city ordinances. Except as herein provided, all provisions of chapter 33 of this Code shall apply to the airport commission.

(e) The director shall be a non-voting, ex officio member and shall serve as secretary to the commission.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-732. Department; director.

The department is hereby designated the agency responsible for administering and enforcing this article. The director or his designee is hereby designated as the administrator of this article. The duties of the director shall include:

(1) To promulgate rules and forms as necessary to administer and enforce the provisions of this article;

(2) To review and approve or disapprove applications for AHA permits in accordance with the provisions and timelines of this article and Chapter 241; and

(3) To charge and collect applicable fees, as set by the city council, for processing each AHA permit.

(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-733. Board of adjustment.

(a) *Establishment of board of adjustment and board powers.* A board of adjustment is hereby created pursuant to Chapter 241 and shall have the following powers:

(1) To hear and decide appeals, as provided by Chapter 241, or pursuant to this article, from an order, requirement, decision, or determination made by the director in the enforcement of this article;

(2) To hear and decide special exceptions to the terms of this article; and

(3) To grant variances from these regulations.

(b) *Board composition.* The board shall be composed of five members appointed by position to two-year terms. The mayor may appoint an individual board member to serve in matters involving only IAH, matters involving only HOU and matters involving only EFD, which members shall serve individually in position 5(IAH), position 5(HOU), and position 5(EFD), respectively. Members, including alternate members, shall be appointed by the mayor and confirmed by the city council and shall be residents of the city, except as provided in subsection (4), below.

(1) The mayor shall appoint a chair from among the members.

(2) The director shall be a non-voting, ex officio member of the board and shall serve as secretary to the board.

(3) An alternate member may be appointed for each position. An alternate member may serve in the absence of the member in that position.

(4) In the event another governmental entity whose jurisdiction includes land within an airport hazard area enters into an interlocal agreement with the city for enforcement of the terms of this article, the agreement may contain provisions for the appointment to the board of a resident of that governmental entity for matters affecting property within that entity's jurisdiction only. Any member so appointed does not need to be a resident of the city.

(5) The board may be composed of the same members appointed to the Board of Adjustment for Airport Land Use regulations in article VI of this chapter.

(c) *Board procedures.* The board shall adopt rules and procedures for its governance consistent with the provisions of this article, including how members shall rotate to allow members appointed under section 9-733 (b)(4) of this Code to participate as required. A board member may be removed by the appointing authority for cause on a written charge after a public hearing. A vacancy in any position shall be filled for the remainder of the unexpired term, giving first consideration to any current alternate members. The board shall adopt a regular meeting schedule and shall give public notice of the meeting schedule by publication for three consecutive days in a daily newspaper of general circulation within the city and any other jurisdiction located within the airport hazard area. The board may change this meeting schedule by the adoption of a new schedule, the effective date of which shall not be less than ten days after publication of the new schedule for three consecutive days in a daily newspaper having general circulation within the city and any other jurisdiction located within the airport hazard area. The board may meet in panels to consider each airport individually. The chair, or the acting chair, may administer oaths and compel the attendance of witnesses. All hearings of the board of adjustment shall be public. The board shall keep minutes of its proceedings showing the vote of each member upon each question, and if any member is absent or fails to vote, indicating such fact, and shall keep records of its examinations and other official actions, all of which shall immediately be filed in the office of the board of adjustment and are public records. Four members of the board shall constitute a quorum. The concurring vote of four members of the board shall be necessary to:

(1) Reverse an order, requirement, decision, or determination of the director;

(2) Decide in favor of an applicant on a matter on which the board is required to pass under this article; or

(3) To hear and decide specific variances from this article.

(d) *Compensation.* Members of the board, in the performance of their duties as such, shall serve without compensation.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Secs. 9-734—9-750. Reserved.

DIVISION 3. AIRPORT HAZARD AREA PERMITS

Sec. 9-751. Potential airport hazard—Structures; airport hazard area permit required.

(a) Any proposed structure or any proposed permanent or temporary improvement to any existing structure that, as described by plans, specifications, application for building permit or other information, would, if constructed or erected, penetrate any airport hazard notification surface, shall constitute a potential airport hazard.

(b) It shall be unlawful to place, construct, or erect any potential airport hazard or alter an existing structure to create a potential airport hazard without an AHA permit issued pursuant to this article.

(c) A current valid AHA permit that is required by this section is a condition for the approval of a development plat or the issuance of a building permit.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-752. AHA permit procedure—Initial determination.

(a) Department staff shall review each completed application for a development plat, building permit or other plans to determine whether a proposed structure would, if built or erected, constitute a potential airport hazard.

(b) If the department determines that a proposed structure would not penetrate any airport hazard notification surface, no AHA permit shall be required.

(c) If the department determines that a proposed structure would penetrate an airport notification surface, an AHA permit shall be required.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-753. AHA permit procedures—FAA submission.

To obtain an AHA permit, the proponent of a proposed structure shall first submit a Form 7460-1 for the structure to the FAA in accordance with the requirements of section 77.17 of Part 77 and obtain a determination from the FAA as provided in section 77.35 of Part 77.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-754. AHA permit application.

(a) Upon receipt of a notice of determination by the FAA, the proponent of a proposed structure shall submit to the department an AHA permit application in the form prescribed by the director, which shall include:

(1) The name of the applicant;

(2) The address of the proposed structure;

(3) The maximum height above ground level of the proposed structure including all appurtenances that extend above roof level;

(4) A copy of the Form 7460-1 previously filed with the FAA;

(5) The FAA notice of determination for the proposed structure; and

(6) Any additional information that the director may reasonably require.

(b) No AHA permit application shall be accepted by the director unless it is complete, accompanied by all required documents and information, including all applicable permit fees, and the affidavit required by section 9-708 of this Code, if applicable.

(c) The director shall make a determination of completeness in writing to the applicant no later than the tenth business day after the date that the AHA permit application is filed. The determination of completeness shall:

(1) Indicate that the application is complete; or

(2) Indicate that the application is not complete and specify the documents or other information necessary to complete the application and shall state the date the permit application will expire, which shall be on or after 45 days from the date of the director's determination.

(d) If the required additional information is not timely submitted, the AHA permit application shall be deemed to have expired, and a new permit application shall be required.

(e) The director shall review each complete AHA permit application, and if in compliance with this article, an AHA permit shall be issued; if not in compliance with this article, the application shall be denied, with a notation of the reasons for denial.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-755. AHA permit review, approval, denial.

(a) The director shall review each complete AHA permit application to determine whether an AHA permit can be approved pursuant to this section.

(b) The director shall approve an AHA permit application for a proposed structure that penetrates a primary or secondary notification surface only if the final FAA determination for the proposed structure is a "No Hazard to Air Navigation", a "Does Not Exceed", or an "Exceeds But Okay" determination. In all other cases, the director shall deny the AHA permit application.

(c) The director shall deny an AHA permit application for a proposed structure that he confirms will penetrate a special one engine inoperative surface.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-756. Expiration.

An AHA permit shall expire if construction has not commenced within two years of the approval of an AHA permit or upon completion of the structure for which it is approved, whichever occurs first.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-757. Revocation of permit; appeal process.

(a) In addition to any enforcement remedies allowed by law, whenever the director finds that there are grounds for revocation of an AHA permit, he shall give written notice to the permittee by personal service or by certified mail, return receipt requested, addressed to the applicant at the address set forth in the AHA permit application. The notice shall include:

(1) The specific grounds upon which the permit in question may be revoked;

(2) The fact that there will be a hearing in which the city will seek the revocation of the permit;

(3) The date, time and place of the hearing;

(4) The fact that the permittee may appear in person or be represented by an attorney; and

(5) Any notice required by other city ordinance.

(b) All hearings shall be held by a hearing officer appointed by the director.

(c) All hearings shall be conducted under rules consistent with the nature of the proceedings; provided however, that the following specific rules shall also apply:

(1) All parties shall have the right to representation by a licensed attorney, though an attorney is not required.

(2) Each party may present witnesses in its own behalf.

(3) Each party shall have the right to cross-examine all witnesses.

(4) Only evidence presented before the hearing officer at the hearing may be considered in rendering the final order.

(d) If the permittee fails to appear at the hearing on the date and time specified, the city shall introduce evidence to establish a prima facie case on behalf of the city showing that grounds exist for revocation of the AHA permit.

(e) After completion of the presentation of evidence by all parties appearing, the hearing officer shall make written findings and render a written order as to whether or not grounds exist for the revocation of the AHA permit. If grounds exist, the hearing officer shall revoke the permit; provided that he may, in the interest of justice, take such other lesser actions as deemed appropriate including, but not limited to, the temporary suspension of the permit, the revision of the permit, or the addition of permit conditions. A true and accurate copy of the order shall be personally delivered or mailed by certified mail, return receipt requested, to the permittee.

(f) In the event an AHA permit is revoked, suspended, or revised, the city shall not be liable to any person for any refund of any part of any permit fees.

(g) An action under this section may be appealed to the city council pursuant to Rule 12 of the city council rules of procedure, upon the filing of a written application therefor with the city secretary within ten days from the date the written order is signed by the hearing officer. Filing of an appeal under this section shall not operate to suspend the hearing officer's order thereon.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-758. Fees.

The fees that shall be paid by an applicant for an AHA permit, appeals and variances are stated for this article in the city fee schedule. Payment of any applicable fees when due is a condition of the processing of any application under this article.
(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Secs. 9-759—9-780. Reserved.

DIVISION 4. APPEALS, VARIANCES AND SPECIAL EXCEPTIONS

Sec. 9-781. Appeals.

Except for actions brought under section 9-757 of this Code, the board shall hear and decide an appeal from an order, requirement, decision, or determination made by the director in the application or enforcement of this article in accordance with such reasonable rules as the board may establish.

(1) *Who may appeal.* Any person aggrieved by an order, decision, or determination of the director, any taxpayer affected by a decision or determination of the director made in the administration of this article, or the governing body if the governing body believes the order, decision or determination is an improper application of this article may file and appeal under this article.

(2) *Commencement of appeals.* All appeals hereunder must be taken within seven business days of the director's decision or prior to commencement of construction, whichever occurs first, by filing a notice of appeal with the board and the department specifying the grounds for the appeal. The department shall transmit to the board all papers constituting the record upon which the action appealed was taken.

(3) *Stay of proceedings.* An appeal shall stay all proceedings in furtherance of the action appealed unless the director certifies in writing to the board that by reason of the facts stated in the certificate, a stay would, in the opinion of the director, cause imminent peril to life or property. In such case, proceedings shall not be stayed except by order of the board on notice to the director and on due cause shown.

(4) *Appeal procedures.* The board shall set a reasonable time for an appeal hearing, and public notice of the hearing and due notice to the parties in interest shall be given as provided in section 9-785 of this Code. The board shall decide an appeal within a reasonable time. At the hearing, any party may appear in person, by agent, or by attorney.

(5) *Decision.* The board may reverse or affirm, in whole or in part, or modify the director's order, requirement, decision, or determination from which an appeal is taken and make the correct order, require-

ment, decision, or determination, and for this purpose the board of adjustment has the same authority as the department. The board, however, may not issue a decision that would result in the issuance of an AHA permit that would allow the creation of an airport hazard.

(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-782. Variances.

(a) The board shall hear and decide specific variances to the regulations in this article.

(1) A person who desires to place, construct, erect, or alter a structure or object of natural growth in a manner inconsistent with this article may apply to the board of adjustment for a variance from the regulations.

(2) The board shall allow a variance from these regulations if:

a. A literal application or enforcement of the regulation would result in practical difficulty or unnecessary hardship;

b. The granting of the relief would:

[1] Result in substantial justice being done;

[2] Not be contrary to the public interest; and

[3] Be in accordance with the spirit of these regulations and Chapter 241;

c. The variance is the minimum variance that will make possible the reasonable use of the land, structure, or object of natural growth; and

d. The variance would not result in the issuance of an AHA permit that would allow the creation of an airport hazard.

(3) In determining whether the standards set forth in subitems (2)c and d above have been met, the board shall consider the following factors:

a. The FAA's determination as to whether the proposed structure would constitute a hazard to air navigation;

b. The director's determination as to whether the proposed structure would penetrate a special one engine inoperative surface;

c. The nature of the terrain and height of existing structures;

d. Public and private interest and investments;

e. The character of aircraft operations and planned future development of the airport;

f. Federal airways as designated by the FAA;

g. Technological advances;

h. The safety of persons on the ground and in the air;

i. Land use density; and

j. Safe and efficient use of navigable airspace.

(4) The board may impose any reasonable conditions on a variance that it considers necessary to accomplish the purposes of this article and Chapter 241.

(5) A request for a variance shall be made by filing with the director a complete application in the form prescribed by the director, and payment of the fee stated for this provision in the city fee schedule. The director shall set a reasonable time for a hearing date and shall give public notice of the hearing and due notice to the parties in interest as required by section 9-785 of this Code. The board shall conduct a public hearing on the application and shall make its decision within a reasonable time, not to exceed 30 days from the date of the close of the hearing. In each case, the board shall make written findings that all conditions for the particular variance sought have been met or not met, and the board may impose such additional conditions or safeguards it deems necessary to protect the public interest.

(b) Exclusions from board authority.

(1) Applications for variance when the FAA has ruled that the placement, construction, or alteration of the structure or object of natural growth would constitute a hazard to air navigation.

(2) Enlargement of any nonconformity. A request for action by the board regarding a nonconforming structure or object of natural growth may be considered only to determine that a structure or object of natural growth is, or is not, in whole or in part, a legal nonconformity.

(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010; ; Ord. No. 2011-1168, § 13, 12-14-2011; Memorandum of 9-12-2012)

Sec. 9-783. Special exceptions.

The board shall be entitled to hear and grant special exceptions to the terms of this article as provided in this section.

(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-784. Time for submittal.

Complete applications shall be reviewed and referred to the board by the director for the next meeting for which proper notice pursuant to section 9-785 of this Code can be given.

(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Sec. 9-785. Notification of application before the board.

(a) The director shall give public notice of a hearing before the board on an appeal of the director's decision, a special exception, or a variance by:

(1) Either:

a. Mailing a letter, first class mail, postage paid, to the owner of the property that is the subject of the matter presented to the board, and to the owners of all lots or tracts that are within 250 feet of the boundary of the property, as shown on the most recently approved ad valorem tax rolls of the city not less than the seventh day before the first meeting at which the board will first consider the application; or

b. By causing the information to be readily available to the public in an electronic format; and

(2) By letter mailed first class mail, postage paid, or by electronic mail message to each neighborhood association with defined boundaries registered with the department in whose area the property is located as soon as reasonably possible before the first meeting at which the board will consider the application.

(b) The applicant shall give notice of an application before the board by posting at least one sign on the property that is the subject of a proposed variance or special exception before the tenth business day before the date of the meeting at which the board will first consider the application. A sign shall face each public right-of-way bordering the site, provided, however, that if more than four signs would be required to be posted, the applicant may request the director to approve an alternative number and location of signs. The director shall approve an alternative to the number and location of signs required by this subsection in excess of four upon determining that the alternative will provide maximum visibility and obtain the objectives of this section without unduly burdening the applicant. Each sign shall be a minimum of four by eight feet in size and shall be posted no more than 15 feet from the public right-of-way. The lettering on the sign shall be legible from the public right-of-way. The applicant shall use reasonable efforts to maintain each required sign on the site until the close of the meeting at which the board acts on the application. The sign shall provide the following information:

(1) The application number of the request and the fact that a variance or special exception is being requested;

(2) The date, time, and place of the meeting at which the board will first consider the application;

(3) A telephone number of the applicant to call for additional information; and

(4) A department telephone number to call for additional information.

(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

Secs. 9-786—9-800. Reserved.

DIVISION 5. ENFORCEMENT; PENALTY

Sec. 9-801. Actions authorized to enforce article.

(a) The city, acting through the city attorney or any other attorney representing the city, is hereby authorized to file an action in a court of competent jurisdiction to:

(1) Enjoin any person from violating the terms, conditions and restrictions of an AHA permit issued under this article;

(2) Enjoin or abate the violation of the provisions of this article;

(3) Recover civil penalties for violation of the terms, conditions and restrictions of an AHA permit issued under this article;

(4) Recover civil penalties for violation for the provisions of this article; or

(5) Recover damages from the owner of property in an amount adequate for the city to undertake any construction or other activity necessary to bring about compliance with this article on the property.

(b) The city, acting through the city attorney or any other attorney representing the city, is hereby authorized to enter into agreements in lieu of litigation to achieve compliance with the terms, conditions and restrictions of any AHA permit issued under this article or the provisions of this article.

(c) The director is authorized to:

(1) Whenever any work authorized by an AHA permit is being performed contrary to the provisions of this article, or other pertinent laws or ordinances implemented through the enforcement of this article, order the work (other than work to cure a violation) stopped by notice in writing served on any persons performing the work or causing the work to be performed. Any such persons shall forthwith stop the work until authorized by the director to proceed with the work.

(2) At the time a stop work order is issued, the person performing the work and the permit holder shall be given notice of a right to a hearing on the matter pursuant to section 9-757 of this article. Any stop work order that has been issued shall remain in effect pending any hearing that has been requested unless the stop work order is withdrawn by the director.

(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010; Ord. No. 2021-1037, § 20(Exh. I.9), 12-1-2021, eff. 4-1-2022)

Sec. 9-802. Penalty.

It shall be unlawful to violate any provision of this article. The penalty for violation shall be up to $2,000.00 for each day of violation.

(Ord. No. 09-1301, § 2, 12-16-09, eff. 3-1-2010)

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Chapter 10

BUILDINGS AND NEIGHBORHOOD PROTECTION*

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*__Cross references—__Convention and entertainment facilities, Ch. 12; discrimination in housing, § 17-11 et seq.; flood plain, Ch. 19; piers at Lake Houston, § 23-31 et seq.; dredging or excavating at Lake Houston, § 23-136 et seq.; fencing or filling of abandoned excavations, § 28-12; manufactured homes and recreational vehicles, Ch. 29; restricted hours for work on buildings, Ch. 30 et seq.; oil and gas wells, Ch. 31; erecting structures, bill posting etc., § 32-32; planning and development, Ch. 33; mixing mortar or cement on streets, § 40-21; dropping window cleaner's tools on sidewalks, § 40-26; subdivisions—Generally, Chs. 41, 42; pool and spa safety, Ch. 43; water and sewers, Ch. 47.

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ARTICLE I. IN GENERAL

Sec. 10-1. Construction Code.

(a) Nothing in this Code or the ordinance adopting this Code shall be deemed to repeal or affect the validity of the Construction Code. The Construction Code is published as a separate code. The Construction Code, as amended, is hereby continued in full force and effect to the same extent as if set out in full herein, save and except any provisions which may be in conflict with any provision of this Code.

(b) The *Construction Code* was formerly known as the *Building Code.* Any reference in city ordinances, contracts, or other documents to the *Building Code* shall be construed to mean the document now known as the *Construction Code,* unless the reference is clearly intended by its context to mean that document called the *Building Code,* which is now one of several documents that constitute the *Construction Code.*
(Code 1968, § 10-1; Ord. No. 02-399, § 28, 5-15-02; Ord. No. 05-603, § 6, 5-11-05; Ord. No. 2021-1037, § 20(Exh. I.10), 12-1-2021, eff. 4-1-2022)

Sec. 10-2. Code compliance review.

The building official shall forward each application for the issuance or amendment of a building permit to the director of the department of planning and development or the director's designee to determine compliance with chapters 26, 33, and 42 of this Code and those provisions of the Construction Code that relate to driveways, sidewalks, parking lots, and alleys, if the scope of the work involves one or more of the following:

(1) The construction of any new structure or building;

(2) An addition to any structure or building;

(3) A change in occupancy designation of a structure or building or portion thereof;

(4) The construction of any driveway or curb cut;

(5) The construction or expansion of any parking lot;

(6) The construction of any fence over eight feet high;

(7) The construction of any retaining wall;

(8) The construction of any masonry wall;

(9) The exterior modification to the ground floor façade, as the term is defined in section 42-1 of this Code, to any structure or building located on a tract adjacent to a walkable places street or transit-oriented development street; or

(10) The construction, removal, or alteration of a sidewalk.

There is hereby imposed the fee stated for this provision in the city fee schedule for the review under this section. The building official shall collect this fee from the applicant at the time of the issuance of the building permit or amendment. The fee shall not be refundable and shall be in addition to any other fee imposed by law.
(Ord. No. 99-262, § 8, 3-24-99; Ord. No. 02-399, § 29, 5-15-02; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 10-3. Declaration concerning deed restrictions on property—Prerequisite to issuance of building permit.

(a) No building permit shall be issued until a declaration as provided in section 1-11 of this Code has been submitted to the building official stating that the construction, alteration, or repair for which the building permit is sought, and the use to which the improvement or building is to be put, will not violate deed restrictions or restrictive covenants running with the land, except that no such declaration need be submitted to obtain a permit solely for the following:

(1) The demolition of a building;

(2) The repair of a building, provided that the materials and methods to be used for

the repair are substantially the same as the materials and methods used for the construction of the building; or

(3) The interior remodeling of a building, provided that the remodeling will not

change the building's "use and occupancy classification" within the meaning of Chapter 3 of the *Building Code.*

(b) The director is authorized to promulgate declaration forms to use in the implementation of this section. Prior to the use of any declaration form, the city attorney or his designee shall review and approve the declaration form for legal sufficiency. The declaration form shall be attached to the building permit application as a part thereof, and shall include but not be limited to, a description of the type of occupancy for which the building permit application is being made, any exhibits referred to therein, and shall be properly subscribed by the person making the declaration as true under penalty of perjury.
(Code 1968, § 10-3; Ord. No. 71-2253, § 1, 12-3-71; Ord. No. 85-1180, § 1, 7-10-85; Ord. No. 88-1555, §§ 1, 2, 9-21-88; Ord. No. 90-635, § 21, 5-23-90; Ord. No. 94-1154, § 3, 10-26-94; Ord. No. 98-613, § 22, 8-5-98; Ord. No. 01-770, § 1, 8-15-01; Ord. No. 09-761, § 2, 8-19-09; Ord. No. 2015-160, § 4, 2-18-2015; Ord. No. 2021-1037, § 20(Exh. I.11), 12-1-2021, eff. 4-1-2022)

Sec. 10-3.1. Same—Prerequisite to issuance of certificate of occupancy or a life safety compliance certificate.

(a) No certificate of occupancy or life safety compliance certificate that is not required by a building permit application made in compliance with section 10-3 of this Code shall be issued by the building official except upon a written application including a declaration as provided in section 1-11 of this Code that the building or structure for which the certificate is sought, and the use to which it will be put, will not violate the deed restrictions or restrictive covenants running with the land to which the property is subject as set forth in the declaration.

(b) The director is authorized to promulgate declaration forms to use in the implementation of this section. Prior to the use of any declaration form pursuant to this section, the city attorney or his designee shall review the declaration form for legal sufficiency and approve each declaration form the city attorney or his designee, in his sole professional judgment, determines to be legally sufficient. The declaration form shall be attached to the certificate of occupancy or life safety compliance certificate as a part thereof, and shall include but not be limited to, a description of the type of occupancy for which the certificate of occupancy or life safety compliance certificate is being made, any exhibits referred to therein, and shall be properly subscribed by the person making the declaration as true under penalty of perjury.
(Ord. No. 85-1530, § 1, 9-4-85; Ord. No. 90-635, § 22, 5-23-90; Ord. No. 94-1154, § 4, 10-26-94; Ord. No. 01-770, § 2, 8-15-01; Ord. No. 2015-160, § 4, 2-18-2015)

Sec. 10-4. Stop work orders.

Where construction or other work is being done contrary to the provisions of this Code, the Construction Code or the Fire Code, or is being done in an unsafe or dangerous manner, the building official may order the work stopped by notice in writing served on the person engaged in doing or causing the work to be done, and the person shall forthwith stop the work until authorized to recommence it by the building official.
(Code 1968, § 18-60; Ord. No. 73-2079, § 1, 11-21-73; Ord. No. 90-635, § 23, 5-23-90; Ord. No. 02-399, § 30, 5-15-02)

Sec. 10-5. Reserved.

Editor's note—Section 4 of Ord. No. 92-147, adopted Feb. 12, 1992, repealed § 10-5 in its entirety. Formerly, § 10-5 pertained to the securing of unoccupied buildings and derived from § 18-73 of the 1968 Code; § 1 of Ord. No. 78-243, adopted Feb. 14, 1978; § 2 of Ord. No. 86-57, adopted Jan. 21, 1986; § 3 of Ord. No. 89-1079, adopted July 12, 1989; § 23 of Ord. No. 90-635, adopted May 23, 1990; § 1 of Ord. No. 91-360, adopted Mar. 13, 1991; and §§ 5 and 6 of Ord. No. 91-1102, adopted July 31, 1991.

Sec. 10-6. Deposits of foam or spray from air conditioning equipment.

Any person who operates or permits to be operated, on property owned, leased or in his possession, control or management, any air conditioning equipment shall cause the said equipment to be operated and maintained in such a manner that no foam or water spray from

such equipment blows onto or is otherwise deposited on any other person's property. Each day that such condition is allowed to continue after five days' notice from the neighborhood protection official to correct such condition shall constitute a separate offense.
(Code 1968, § 28-17; Ord. No. 70-1720, § 1, 10-6-70; Ord. No. 90-635, § 23, 5-23-90; Ord. No. 93-514, § 20, 5-5-93; Ord. No. 94-674, § 9, 7-6-94; Ord. No. 98-613, § 23, 8-5-98)

Sec. 10-7. Maintenance of premises liable to fire.

Any owner or occupant of any building or other structure or premises who shall keep or maintain the same when, for want of repair or by reason of age or dilapidated condition, or for any other cause, such building is especially liable to fire, and is so situated as to endanger buildings or property of others, or is especially liable to fire and is so occupied that fire would endanger other persons or other property therein, shall be guilty of a misdemeanor. Each day that such condition is allowed to continue after five days' notice by the fire marshal to correct such condition is hereby declared a separate offense.
(Code 1968, § 28-61; Ord. No. 69-756, §§ 1, 2, 4-30-69)

Sec. 10-8. Access rights to adjacent single-family residential property.

The building official shall not issue a permit for the construction of a new building or addition to an existing building within three feet of property used for or restricted to single-family residential use, as that phrase is defined in chapter 42 of this Code, unless the owner of the property for which a permit is sought has filed a separate instrument in the form provided for by the director of the department of planning and development for recordation in the real property records that provides for the owner's right to enter onto the adjacent single-family residential property for the purpose of performing construction, repairs, and maintenance to the building on the property for which a permit is sought.
(Ord. No. 2013-343, § 2, 4-24-2013)

Secs. 10-9—10-30. Reserved.

ARTICLE II. BUILDINGS ON UTILITY EASEMENTS

Sec. 10-31. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Actual notice.* Actual knowledge or such circumstances or conditions as would put a person of ordinary prudence on inquiry to determine the facts.

(2) *Constructive notice.* Such information or facts as may be determined from instruments in writing placed of record in the office of the county clerk of the county.

(Code 1968, § 10-31)

Sec. 10-32. Permit to construct—Required.

It shall be unlawful for any person to build, erect, or construct, or cause to be built, erected or constructed any building, structure or edifice for any use or occupancy whatsoever in, upon, over or across any easement, or any part thereof, granted to the city for sanitary sewer, storm water, water main, or electric line conduit purposes, or a combination of same, or upon, over, or across any privately constructed sanitary sewer, storm sewer, water main, or electric line conduit managed, supervised, or controlled by the city or connected with the sanitary sewer system, storm sewer system, water main system or electric line conduit system of the city when such person has actual or constructive notice of such privately constructed sewers, mains, or conduits, without first procuring a written permit to do so from the utility official.
(Code 1968, § 10-32; Ord. No. 90-635, § 24, 5-23-90)

Sec. 10-33. Same—Application.

Application for a permit required by section 10-32 of this Code shall be addressed in writing to the utility official. The applicant shall set forth therein:

(1) The true name and address of the person seeking the permit.

(2) The name and address of the contractor employed to do the work, if any.

(3) The nature of the building, structure or edifice proposed to be erected, including the type of construction proposed.

(4) The use or occupancy to which such proposed building, structure or edifice is to be put.

(5) The legal description and street address of the lot or tract of land upon which the building, structure or edifice is proposed to be built.

(6) Whether or not such proposed building, structure or edifice, or any part thereof, will be in, upon, over or across any easement granted to the city for the purposes enumerated in section 10-32, or upon, over, or across any privately constructed sanitary sewer, storm sewer, water main, or electric line conduit of which the applicant has actual or constructive notice.

(Code 1968, § 10-33; Ord. No. 90-635, § 24, 5-23-90)

Sec. 10-34. Issuance and appeals.

(a) Upon receipt of an application for the permit required by section 10-32 of this Code, the utility official shall consider the impact of the use proposed by the applicant upon the present and probable future uses of the easement by the city, including but not limited to the city's need for ingress and egress to maintain and construct improvements within the easement and the potential risk of damage to the city's improvements. The permit shall be granted unless the utility official determines that the proposed use will materially interfere in some manner with the city's exercise and enjoyment of its easement rights.

(b) If the utility official refuses to grant such permit, the applicant may have such action reviewed by an appeal to the city council, in writing, within ten days after the decision of the utility official is published. The decision of the council shall be final.

(Code 1968, § 10-34; Ord. No. 90-635, § 24, 5-23-90)

Sec. 10-35. Permit to maintain when construction permit not obtained.

Should it be made to appear to the utility official, upon written application by any person, that a building, structure or other edifice has been constructed upon or across any sanitary sewer, storm sewer, water main or easement granted for the purpose of constructing and maintaining such utilities, and that such construction was done without the permit required by section 10-32 of this Code through inadvertence, mistake or ignorance of the existence of the sewer, water line, or easement in question, the utility official is empowered to issue a permit to maintain such building, structure or edifice, provided that, upon investigation, the utility official is satisfied that a permit would have been granted in the initial instance prior to construction. Should the utility official refuse to issue the permit to maintain as herein provided, the applicant shall have the same right to appeal to the city council as provided in section 10-34 of this Code.

(Code 1968, § 10-35; Ord. No. 90-635, § 24, 5-23-90)

Sec. 10-36. Assumption of risks by builder.

Regardless of whether a permit has been issued therefor under this article, or not, any person who builds, erects, or constructs a building, structure, or edifice over any of the sewers, mains or lines enumerated in section 10-32 of this Code assumes all of the risks incident to such construction, and the city shall never be liable for any damage occasioned to any such building, structure, or edifice by reason of the granting of permission to build or construct the same, or because of the supervision, operation and maintenance of any sanitary sewer, storm sewer, water main, or electric line conduit, whether the same is in an easement granted to the city for that purpose or privately constructed.

(Code 1968, § 10-36; Ord. No. 90-635, § 24, 5-23-90)

Sec. 10-37. Tunneling to inspect or repair utility installations.

If, in the course of maintenance and supervision of any of the sewers, mains or conduits enumerated in section 10-32 of this Code over which a building, structure or edifice has been built or erected, it should become necessary to tunnel beneath or excavate through the floor or foundation of such building, structure or edifice for the purpose of making inspections or repairs, the person owning such building, structure or edifice, his successors or assigns, shall, regardless of whether a permit has been issued therefor under this article, or not, stand and bear all of

the expense and damage occasioned to such building, structure or edifice by reason of such tunneling or excavation. In addition thereto, such person shall likewise stand and bear the added cost incurred by the city in tunneling beneath or excavating through the floor or foundation of such building, structure or edifice for the purpose of making such inspections or repairs, the amount of which added cost is to be determined by the utility official, and such amount shall be paid promptly to the city.
(Code 1968, § 10-37; Ord. No. 90-635, § 24, 5-23-90)

Secs. 10-38—10-47. Reserved.

ARTICLE III. HOUSE MOVING

DIVISION 1. GENERALLY

Sec. 10-48. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *House.* Any building, structure or edifice.

(2) *House moving.* The transportation of a house from place to place along or across any public street within the corporate limits of the city.

(3) *Licensee.* A person licensed under this article to engage in the business of house moving.

(4) *Street.* The term "street" shall mean any part of the street right-of-way, including the sidewalk area.

(Code 1968, § 10-48)

Sec. 10-49. Compliance with construction code; landowner's agreement; bond; certificate of compliance; move to house repair or resale lot.

(a) It shall be unlawful for any licensee to begin or complete the moving of any building onto any property in the city unless the permanent location and foundation of the building on the property complies in all respects with the Construction Code. No permit shall be issued to move any building, and no building shall be moved onto any property in the city, unless the owner of the land upon which the building is to be moved has completed a landowner's agreement on a form approved by the building official and has delivered a cashier's check to the city pursuant to the requirements set out below, or has posted a bond signed by the owner as principal and by a good and sufficient corporate surety company licensed to do business in the state as surety, which bond shall be in a form approved by the building official.

The bond shall be in the sum of $3,500.00 and shall provide and be conditioned that if the owner fails or refuses to timely perform any one or more of his obligations under the landowner's agreement, then the surety shall be liable for reimbursement of the costs incurred by the city for demolition of the building.

If a cashier's check is delivered to the city in lieu of the aforesaid surety bond, it shall be in the amount of $3,500.00, issued by a bank that is insured by the Federal Deposit Insurance Corporation and made payable to the city. The cashier's check shall be for reimbursement of the costs incurred by the city for demolition of the building if the owner fails or refuses to timely perform one or more of his obligations under the landowner's agreement.

In the landowner's agreement the owner shall set out his full name, mailing address, the legal description and the street address of the property upon which the building is to be moved and the purpose for which the building will be used after it has been moved and repaired, specifying the purpose in sufficient detail so that the applicable Construction Code occupancy can be determined. The owner shall certify that the occupancy will not violate any valid and applicable deed restriction or covenant running with the land. The landowner shall covenant and agree in the landowner's agreement:

(1) That application will be made for all necessary permits to bring the building

into compliance with the Construction Code within 30 calendar days after the building is moved onto the property.

(2) That the building will be brought into compliance with all applicable Construction Code requirements for the designated occupancy within 150 calendar days, and that the issuance of any permit by the city shall not be construed to extend the time to repair the building beyond 150 calendar days after the building was moved onto the property.

(3) That until such time as the building is permanently occupied the owner will ensure that the building will not be permitted to become or remain in such a condition that a person can enter into it without the use of force through unlocked doors or unsecured openings except at such times as the owner or any persons engaged in the repair of the building are in actual attendance on the property and that the owner of the property will ensure that the building does not become or remain a dangerous building as defined in section 10-361 of this Code.

(4) The owner expressly understands and agrees that if he fails or refuses to timely perform any one or more of his obligations under the landowner's agreement, the city may demolish or cause the demolition of the building at the risk, expense and liability of the owner, and the owner agrees to pay the city all costs incurred by the city therefor.

The landowner's agreement shall be signed by each owner of the property onto which the building is to be moved.

(b) When the requirements of a landowner's agreement have been fully met and the building has been brought into compliance with all Construction Code requirements for the occupancy designated in the application for the house moving permit, the building official shall issue a certificate of compliance for the building upon the request of the landowner. If a bond has been posted to secure performance of the landowner's agreement, the surety company shall be relieved of liability on the bond when a certificate of compliance is issued by the building official for the building that was the subject of the permit. If a cashier's check was delivered to the city pursuant to this section, the landowner may demand return of the cashier's check when a certificate of compliance is issued by the building official for the building that was the subject of the permit.

(c) Prior to demolition of any building pursuant to a landowner's agreement, the city shall provide the owners with notice and a hearing in the same manner as provided for in article IX of this chapter.

(d) This section shall not be applicable to the moving of a building to a "house repair or resale lot" which holds a current license issued by the city for that purpose. The term "house repair or resale lot" means a contiguous plot or tract of land which:

(1) Has 15,000 square feet or more in area;

(2) Is suitable for use for the repair and/or display of buildings which are to be subsequently moved to a permanent location after repair or resale; and

(3) Is subject to such use without violation of any valid and applicable deed restrictions or covenants running with the land.

Further, this section shall not be applicable to portable school buildings moved onto the property of an independent school district.

(e) License for house repair or resale lot:

(1) To obtain a license to operate a house repair or resale lot, an application shall be filed with the building official on a form designated by the city for that purpose. On such application, the applicant shall set forth:

a. The address of the site where the house repair or resale lot will be operated.

b. The legal description of the property on which the house repair or resale lot will be operated.

c. The names and street addresses of each owner of the property on which the house repair or resale lot will be operated.

d. The name and street address of the person who will operate the house repair or resale lot.

e. Such other information as the Director of Houston Public Works finds will aid in the enforcement of this Code in regard to the house repair or resale lot.

f. A statement that the proposed use of the property described in the application for use as a house repair or resale lot will not violate any restriction contained in or incorporated by reference in a recorded instrument affecting the land. Such an application shall be signed by each owner of the property.

(2) The building official shall issue a license to the person who will operate the house repair or resale lot upon submission of an application pursuant to this section and payment of the license fee if, upon inspection, the building official finds that the house repair or resale lot meets the requirements of this section.

(3) The fee for a license issued under this section is stated for this provision in the city fee schedule.

(4) A license issued under this section shall expire one year from the date of its issuance but may be renewed upon application therefor and payment of the annual renewal fee stated for this provision in the city fee schedule. An application for renewal shall be on a form designated by the city for that purpose and shall include such information as the Director of Houston Public Works determines is necessary to enforce this Code relating to house repair or resale lots.

(5) A license issued to operate a house repair or resale lot shall be valid only for the property described in the application for the license. Such a license shall also be personal to the licensee and shall not be transferable.

(6) Each building situated on a house repair or resale lot shall be kept in such a condition that a person cannot enter it without the use of force through unlocked doors or unsecured openings except at such times as the licensee, his agents or employees, or any person engaged in the repair of the building are in actual attendance on the property.

(7) No part of a building on a house repair or resale lot shall either be closer to any other building on such lot than six feet or be closer than three feet to any property line.

(8) House repair or resale lot licenses shall be subject to revocation and suspension by the building official as provided in section 10-92 of this Code.

(Code 1968, § 10-49; Ord. No. 81-2515, § 1, 12-22-81; Ord. No. 82-870, § 1, 5-25-82; Ord. No. 90-635, § 25, 5-23-90; Ord. No. 93-514, § 21, 5-5-93; Ord. No. 93-1570, § 3, 12-8-93; Ord. No. 98-613, § 24, 8-5-98; Ord. No. 02-399, § 31, 5-15-02; Ord. No. 04-1015, §§ 10, 11, 9-27-04; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 10-50. Reserved.

Editor's note—Ord. No. 00-551, § 1, adopted June 21, 2000, repealed § 10-50 in its entirety. Formerly, said section pertained to moving concrete slab foundations and derived from Code 1968, § 10-50; Ord. No. 67-2030, § 1, 10-24-67; Ord. No. 72-499, § 1, 3-15-72. See the Code Comparative Table.

Sec. 10-51. Bond.

(a) In the event a house moving license is granted under division 2 of this article, before delivery thereof, the licensee shall file with the city a bond signed by the licensee as principal and by a good and sufficient corporate surety on the current approved United States Treasury list, which bond shall be in the sum of $10,000.00, conditioned that the licensee will engage in the business of house moving within the corporate

limits of the city in strict accordance with the terms of this article, and will pay to the city any and all damages to streets, curbs, gutters, water lines, fire hydrants and other public property occasioned in any manner by the licensee's moving of houses, and further conditioned that the licensee will pay to the city, as minimum liquidated damages, the sum of $50.00 per day for each day or part thereof that any house being moved by the licensee shall remain on any street or part of street in excess of the number of days shown in the house moving permit issued to the licensee for such move. The bond shall contain a provision that the parties recognize that the damages to the city occasioned by any house remaining on any street or part of the street in excess of the number of days shown in the permit will, in all probability, be difficult to ascertain and consequently that the parties have agreed on such sum as the minimum amount of such damages. However, such bond shall contain the further provi-

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sion that the amount agreed upon is the minimum amount of damages which the city will sustain in any event, but that the city shall not be prevented from claiming and proving any additional amount in excess of such minimum sum.

(b) Bonds provided for in this section shall not be exhausted until fully paid. Each such bond shall contain a provision that it shall not be exhausted until a recovery or recoveries have been obtained totaling the full amount of the bond.
(Code 1968, § 10-51; Ord. No. 72-500, § 1, 3-15-72)

Sec. 10-52. Insurance.

In addition to the requirements for a bond the holder of any category of house moving license shall be required to carry liability insurance in the minimum sum of $50,000.00 for injury to or death of one person, and $100,000.00 for injury to or death of more than one person from any one accident, and the minimum sum of $25,000.00 for property damage for any one accident. Such policy shall contain a provision obligating the insurer to give written notice of cancellation, not less than ten days prior to the date of such cancellation, to the building official. No house moving permit will be issued to any house moving licensee unless such insurance is in full force and effect.
(Code 1968, § 10-52; Ord. No. 90-635, § 26, 5-23-90)

Sec. 10-53. Mover's equipment generally.

No house mover shall move or attempt to move any house by means of any equipment whether owned by him, or not, which has not first been registered with the city and inspected and a certificate of compliance obtained therefor pursuant to section 10-88 of this Code.
(Code 1968, § 10-53)

Sec. 10-54. Marking of mover's equipment.

All house moving equipment shall be plainly marked in letters not less than four inches in height, showing the name of the licensed house mover.
(Code 1968, § 10-54)

Sec. 10-55. Lights on load.

Amber or red lights at least four inches in diameter, with two units to each side on the back not less than three feet nor more than six feet from the ground, with one on each side in the center of the load, shall be required when a house is being moved. There shall be comparable lights of amber color across the front of the load and these lights shall be in operation at all times while the house is on the public street or right-of-way during the night or day.
(Code 1968, § 10-55)

Sec. 10-56. When barricades, warning lights, etc., required.

Barricades and warning lights or other equivalent danger warning devices shall be placed wherever any house being moved is stopped on any public street right-of-way for any period of time in excess of ten minutes.
(Code 1968, § 10-56)

Sec. 10-57. Authority to require additional safety equipment.

The building official is hereby authorized to specify required safety equipment to be employed while any house is being moved upon the public streets of the city, in addition to the equipment specified in this article.
(Code 1968, § 10-57; Ord. No. 90-635, § 27, 5-23-90)

Sec. 10-58. Establishment of time, routes, etc., for moving.

(a) The building official shall have authority to establish and direct, as a condition to the issuance of a permit under this article, the time when the house moving shall start and the time when it shall be completed, the routes over which houses of specified dimensions may be moved and such other regulations and conditions which he may deem necessary. Any deviation from such routes and hours shall constitute an offense. Decisions made by the building official pursuant to the provisions of this subsection shall be such that they result in the prevention of traffic obstruction and overloading of pavement weight capacity.

(b) When it is required by the provisions of this article that an inspector be present, the building official shall establish a time for the house to be moved upon the request of the licensee. Such request shall be made at least 24 hours prior to the moving time. The licensee may give notice of cancellation of such scheduled house moving, if such notice is given not less than 12 hours prior to the scheduled time of moving.

In the event that a scheduled house moving has not been completed within the time assigned, or if such scheduled house moving is cancelled by the licensee less than 12 hours prior to the assigned time, the licensee shall pay the additional fee stated for this provision in the city fee schedule to the city as a condition precedent to the building official assigning another time for the moving of such house; provided, however, that no additional fee shall be paid to establish a new moving time if the noncompletion or cancellation has resulted from inclement weather.

(c) Route changes may be authorized by the building official. All concerned parties shall be notified immediately and prior to any deviation from the original announced route. Changes in time shall be made in the same way as changes in route.
(Code 1968, § 10-58; Ord. No. 90-635, § 27, 5-23-90; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 10-59. Maximum time limit.

No move authorized pursuant to this article shall last for a period of time in excess of 48 hours, and the maximum time during which a house may legally remain in a street, under a permit issued pursuant to this article, shall be 48 hours.
(Code 1968, § 10-59)

Sec. 10-60. Inspection of route prior to moving.

All routes over which a house is to be moved shall be physically inspected prior to each haul by the licensee and the house moving inspector and others concerned.
(Code 1968, § 10-60)

Sec. 10-61. Escort by off-duty police required.

Every licensee shall, before moving a house, engage at his own cost, the services of an off-duty police officer of the city as an escort for such move. Such police officer shall be selected from a roster prepared under the supervision of the chief of police, and the names on such roster shall be rotated; provided, however, such off-duty police officer shall not use city-owned vehicles or equipment while engaged in the service of such house mover. When the house to be moved exceeds 22 feet in width or 40 feet in length one additional off-duty police officer escort shall be required. It shall be unlawful to move a house of any dimension, when a permit therefor is required, without the required police escort.
(Code 1968, § 10-61; Ord. No. 72-499, § 2, 3-15-72)

Sec. 10-62. Secondary escort.

In circumstances where the contour of the road requires it, in the opinion of the building official, the licensee shall provide a secondary escort in a vehicle with a reflectorized sign reading: "DANGER, SLOW, BE PREPARED TO STOP" in red letters on a white background 20 inches wide and 12 inches high attached to the rear of such escorting vehicle and placed more than six feet above the ground. Such sign shall be carried 200 feet to 500 feet behind the house, depending upon the contour of the roadway; provided, however, the building official may authorize some other procedure in lieu of a secondary escort.
(Code 1968, § 10-62; Ord. No. 90-635, § 28, 5-23-90)

Sec. 10-63. When inspector required.

No house moving inspector will be required during the moving of a house upon the public streets of the city unless the building official determines that special circumstances exist which would make the presence of such an inspector necessary.
(Code 1968, § 10-63; Ord. No. 72-499, § 3, 3-15-72; Ord. No. 90-635, § 28, 5-23-90)

Sec. 10-64. Authority to stop moving and inspect equipment.

The police escort, or the house moving inspector if present, are hereby empowered to stop a

house which is being moved at any time for the purpose of inspecting the rigging, trucks, and lighting in order to insure the safety of the move with a minimum of exposure to danger or damage to property.
(Code 1968, § 10-64; Ord. No. 72-499, § 4, 3-15-72)

Sec. 10-65. Continuous motion required in street.

During the entire time that a house being moved in occupying the street, or any portion thereof, the licensee shall make every reasonable effort to keep it continuously in motion toward its destination and, insofar as possible, he shall not allow the work of moving to stop during such time. This shall not be interpreted to encompass accidents, breakdowns for which the licensee has not been negligent, or acts of God which prevent continuous movement when the house moving is underway.
(Code 1968, § 10-66)

Sec. 10-66. Unattended houses on street.

No house being moved pursuant to this article shall be left unattended on any public street or right-of-way.
(Code 1968, § 10-67)

Sec. 10-67. Removal of house from street by city.

When a house has been left on a public street, or other public way or place, and, in the opinion of the building official, the house mover is not proceeding with all diligence, or without reasonable likelihood of success to move or cause the removal of the house from such location, the building official shall have authority to remove or cause the removal of such house, and all costs pertaining to such removal shall be paid by the licensee.
(Code 1968, § 10-68; Ord. No. 90-635, § 29, 5-23-90)

Sec. 10-68. Disconnecting utilities.

It shall be unlawful for any licensee to disconnect any electric light and power connection, gas connection, water connection, sewer connection or telephone connection from any house which he proposes to move, without the consent of the public utility owning such connection.
(Code 1968, § 10-69)

Sec. 10-69. Disconnection and plugging of sewer service line.

It shall be the duty of the licensee to cause to be disconnected outside of the property line and properly plugged by a licensed plumber, in such a manner as to prevent any surface water from entering same, the sewer service line connection of any house to be moved by such licensee prior to the issuance of a moving permit therefor and such licensee shall comply with all applicable provisions of ordinance relating to sewage, sewers and drains.
(Code 1968, § 10-70; Ord. No. 72-499, § 6, 3-15-72)

Sec. 10-70. Removing or destroying poles or wires.

It shall be unlawful for any licensee to remove, tear down or destroy any pole or wire or other property belonging to the city or to any electric light and power company, gas company or telephone or telegraph company without the consent of such utility or other person owning the same.
(Code 1968, § 10-71)

Sec. 10-71. Cutting down trees or branches.

It shall be unlawful for any licensee engaged in moving a house to cut down any tree growing within any parkway or esplanade of a public street or to cut any branches therefrom without having first obtained permission from the director of parks and recreation.
(Code 1968, § 10-72)

Sec. 10-72. Removal of equipment, cribbing and debris from vacated premises.

It shall be the duty of the licensee to remove all equipment, cribbing, and debris deposited or caused to be deposited on the land vacated by the moving of any house therefrom.
(Code 1968, § 10-73)

Sec. 10-73. Removal of trash deposited on streets or other public property.

The licensee shall be required to remove at his expense all trash and debris which he has deposited or caused to be deposited in any public street or other public place or property at the time he is moving the house.
(Code 1968, § 10-74)

Sec. 10-74. Notice of completion; repair of damage to public property.

(a) Whenever a licensee has completed the work of moving a house under a permit, and the house no longer occupies any part of the street, he shall promptly notify the building official of such fact. The building official shall cause an inspection to be made of the route of moving and the installation of the house. If he finds that the licensee has caused damage to the streets, curbs, gutters, sidewalks or other public property, he shall notify the licensee of such fact, specifying the damage, by mailing to him a written notification at either of the addresses listed in the licensee's application. The licensee shall proceed within two days from the date of such notification to begin the work of repairing the damage, which work shall be promptly done and completed under the supervision of and to the entire and complete satisfaction of the building official.

(b) In the event that the licensee fails to begin work within two days, or fails to continuously proceed therewith promptly and expeditiously, or fails to complete it to the entire and complete satisfaction of the building official, then the building official may promptly cause the damage to be repaired on behalf of the city. In such case, the building official shall make and execute a certificate, setting out the relevant facts pertaining to the transaction, and shall certify therein the amount of damage sustained by the city and shall file the certificate with the city controller. The licensee, by accepting the permit provided for in this article, does thereby constitute and appoint the building official as his agent and representative with full power and authority to bind the licensee and his surety to prepare and file such certificate. Upon the filing of the certificate, the amount stated therein shall be and become a sum, liquidated and certain, owing to the city by the licensee and the surety on his bond and, in any suit involving such sum, the facts recited in the certificate and the amount of damage certified therein shall in all things be presumed to be true and binding upon the licensee and his surety in the absence of clear, convincing and unmistakable proof that the building official has acted arbitrarily and without any evidence whatsoever of such facts.

(c) Notwithstanding the foregoing provisions, the city may, as an alternative, and at the city's option, make or cause to be made repairs to its property damaged by the licensee and the licensee shall be obligated to pay the city reasonable costs of such repairs.

(d) On the day following the moving of a house, the licensee shall furnish to the building official the names of the police officers who escorted the move. In the event the day following such move is a Saturday, Sunday or holiday, the licensee shall submit such information on the next regular business day. The licensee may satisfy this requirement by mailing such information to the building official on the day following such move.
(Code 1968, § 10-75; Ord. No. 72-499, § 7, 3-15-72; Ord. No. 90-635, § 30, 5-23-90)

Sec. 10-75. Completion certificate.

When a house is moved pursuant to the provisions of this article, a move completion certificate shall be issued after the move has been completed and all inspections have been made and approval has been given by the building official. The move completion certificate shall be issued by the building official. Such certificate shall not be issued until repairs or replacements have been made for any public property damaged in such move.
(Code 1968, § 10-76; Ord. No. 90-635, § 30, 5-23-90)

Sec. 10-76. Exemptions from article.

Portable houses without plumbing facilities not more than 12 feet in width and not exceeding 16 feet in height, when loaded for moving, shall be exempt from the provisions of this article. Such exemption does not exempt the mover from com-

pliance with chapter 45 of this Code. All houses moved into or within the city, regardless of size, shall comply fully with the Construction Code.
(Code 1968, § 10-77; Ord. No. 72-1075, § 1, 6-22-72; Ord. No. 02-399, § 32, 5-15-02)

Sec. 10-77. Penalty.

Any person who violates any of the provisions of this article shall be fined not less than $100.00 nor more than $500.00 and each day's violation shall constitute a separate offense.
(Code 1968, § 10-78; Ord. No. 92-1449, § 21, 11-4-92)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

Secs. 10-78—10-83. Reserved.

DIVISION 2. MOVER'S LICENSE

Sec. 10-84. Required.

It shall be unlawful for any person to move any house along or across any public street within the city without first having secured the required classification of house moving license to engage in the business of house moving as provided in this division.
(Code 1968, § 10-84)

Sec. 10-85. Classifications; final authority for permit issuance.

(a) *Class A.* The holder of a Class A license shall be authorized to move all houses authorized for a Class B license and shall also be authorized to move all houses in excess of the maximum size specified in this section for holders of Class B licenses where the building official approves the move. Special requirements for moves in excess of 30 feet in width, 40 feet in length and 18 feet in height shall be imposed by the building official when deemed advisable from the point of view of traffic safety and protection of the city's streets.

(b) *Class B.* The holder of a Class B license shall be authorized to move houses upon the public streets of the city when the maximum size of the house moved does not exceed 30 feet in width, 40 feet in length and 18 feet in height, and when the axle load is in compliance with the requirements of applicable provisions of the state law.

(c) *Final authority for permit issuance.* The building official shall have final authority in granting permits to movers based on the size of the house to be moved and the mover's equipment as inspected and certified under section 10-88 of this Code.
(Code 1968, § 10-85; Ord. No. 72-1075, §§ 2, 3, 6-22-72; Ord. No. 90-635, § 31, 5-23-90; Ord. No. 93-514, § 22, 5-5-93)

Sec. 10-86. Application.

Any person desiring to engage in the business of house moving shall make application for a license to the building official. Such application shall be in writing and shall contain the following:

(1) The name of the applicant and his residence and business addresses. If a partnership or association, the application shall state the names of all partners, their residence addresses and the office address of the partnership or association. If a corporation, the application shall state the names and residence addresses of all officers and directors and the principal office of the corporation.

(2) A statement that the applicant (or officers, if applicant is a corporation) has read and thoroughly understands the terms of this article and agrees to abide by its terms in the business of house moving.

(3) The classification of house moving license for which application is made.

(4) The application shall be signed by the applicant, if an individual; by a partner, if a partnership; or by the president, if an association or corporation.

(5) Such other information as may be required by the building official.

(Code 1968, § 10-86; Ord. No. 90-635, § 31, 5-23-90)

Sec. 10-87. Fee.

The annual fee for a license required by this division is stated for this provision in the city fee schedule. Such fee shall be paid at the time the application for a license is filed. No part of this fee shall be refunded whether or not a license is granted, but shall be held by the city to reimburse its expenses of investigation and inspection.
(Code 1968, § 10-87; Ord. No. 72-1075, § 4, 6-22-72; Ord. No. 90-635, § 31, 5-23-90; Ord. No. 03-645, § 2, 7-16-03; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 10-88. Inspection of applicant's equipment.

Prior to the issuance of a license under this division or a renewal thereof, the building official shall inspect the house moving equipment intended to be used by the applicant in connection with house moving, and if such equipment is safe and adequate and in compliance with the provisions of this article, a certificate shall be issued for display upon or within each approved tractor or towing unit.
(Code 1968, § 10-88; Ord. No. 90-635, § 31, 5-23-90)

Sec. 10-89. Issuance.

The building official shall examine the application for a license under this division and make such investigation as may be necessary, and if, in his opinion, based upon such application and investigation, the applicant is entitled to a license, he shall issue to the applicant a license of the classification to which he is entitled upon the execution and delivery of the required bond and the satisfaction of the liability insurance requirements specified in sections 10-51 and 10-52 of this Code.
(Code 1968, § 10-89; Ord. No. 90-635, § 31, 5-23-90)

Sec. 10-90. Transfer.

A license issued under this division shall be personal to the licensee and shall not be transferable.
(Code 1968, § 10-90)

Sec. 10-91. Expiration and renewal.

A license issued under this division shall expire at midnight the following December thirty-first and any renewal thereof shall similarly expire upon the following December thirty-first. Upon expiration, a license may be renewed, if such license has not theretofore been revoked or suspended, by payment of the required license fee and the continuation in force of the licensee's bond pending the filing of a new bond, and the continued satisfaction of the liability insurance requirements of this article. In the event such license is under suspension, the license will not be renewed until the suspension period has ended, however, there shall be no proration of the license fee.
(Code 1968, § 10-91)

Sec. 10-92. Suspension or revocation.

After a public hearing thereon, the building official may suspend or revoke a house moving or a house repair or resale lot license issued pursuant to this article upon finding that the licensee made a materially false statement in his application or a finding that the licensee has violated any provision of this article and such suspension or revocation shall not bar a prosecution for the same offense. Prior to such hearing, the building official shall give written notice to the licensee of the grounds for the hearing, the date, time and place of the hearing and that the licensee may attend, be represented by counsel, present evidence and cross examine witnesses at the hearing.
(Code 1968, § 10-92; Ord. No. 90-635, § 32, 5-23-90)

Secs. 10-93—10-97. Reserved.

DIVISION 3. MOVING PERMIT

Sec. 10-98. Required; application.

Any licensee desiring to move any house shall, at least three days prior to the date upon which it is desired to make such move, apply to the building official for, and obtain, a permit, showing the present location of the house, the proposed new location, the proposed route of moving, the size

and type of construction of the house and such other information as the building official may require.
(Code 1968, § 10-98; Ord. No. 90-635, § 33, 5-23-90)

Sec. 10-99. Fee.

(a) Each applicant for a permit under this division shall pay the applicable fees stated for this section in the city fee schedule. In each instance in which the building official determines that an inspector will be required during the move as provided in section 10-63 of this Code there shall be an additional inspection service fee. The fees provided for herein are in addition to the yearly license fee provided for in section 10-87 of this Code.

(b) Where a licensee commences to move a house without first having secured a permit therefor, the fee shall be doubled for the permit required for the house move, but the paying of such double fee shall neither relieve any person from fully complying with the requirements of this article nor from any other penalties prescribed herein.

(c) Any emergency move scheduled during holidays, weekends or other times not normally scheduled for moving a house and requiring a house moving inspector shall be subject to a special fee. This special fee shall be in addition to the normal fee and shall be charged even though the basic moving permit is issued under an exempt fee. Any such emergency move must be approved by the building official.
(Code 1968, § 10-99; Ord. No. 72-499, § 8, 3-15-72; Ord. No. 90-635, § 33, 5-23-90; Ord. No. 91-1173, § 1, 8-14-91; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 10-100. State permit prerequisite to issuance.

No permit shall be issued under this division unless any required permits from the Texas Department of Transportation shall have first been obtained.
(Code 1968, § 10-100; Ord. No. 90-635, § 33, 5-23-90; Ord. No. 93-514, § 23, 5-5-93)

Sec. 10-101. City departments to be notified prior to issuance.

The time of the house moving for which a permit is applied for under this division shall be predetermined, and before the permit shall be issued, the departments of fire, police and parks and recreation shall be notified, as required by the building official.
(Code 1968, § 10-101; Ord. No. 90-635, § 33, 5-23-90; Ord. No. 93-514, § 23, 5-5-93)

Sec. 10-102. Issuance.

The building official shall examine the application for a permit under this division and, if it is in order, he shall issue the permit, in duplicate.
(Code 1968, § 10-102; Ord. No. 90-635, § 33, 5-23-90)

Sec. 10-103. Contents.

Each permit issued under this division shall show:

(1) The name of the licensee.

(2) The present location of the house.

(3) The proposed new location.

(4) The route of moving, as approved by the building official.

(5) The date and time during which the house will occupy the streets, if no inspector is required. This may subsequently be modified with the approval of the building official.

(6) The time that the house will be permitted to remain in the streets.

(7) The size and type of construction of the house.

(8) Evidence that arrangements have been made with utility companies and/or the city electrical division for the rearrangement of any utility company's or the city's installations where required in order to prevent damage thereto.

(9) The receipt of the permit fee.

(Code 1968, § 10-103; Ord. No. 90-635, § 33, 5-23-90)

Sec. 10-104. Posting.

A copy of the permit issued under this division shall be posted on the house to be moved, and no house shall be moved unless such copy and the job card are posted thereon.
(Code 1968, § 10-104)

Sec. 10-105. Transfer.

Permits issued under this division shall be nontransferable.
(Code 1968, § 10-105)

Sec. 10-106. Acceptance constitutes obligation and contract.

The acceptance by a licensee of a permit issued under this division shall constitute a binding obligation and contract on the licensee's part to abide by and comply with the terms of the permit and of this article.
(Code 1968, § 10-106)

Secs. 10-107—10-150. Reserved.

ARTICLE IV. HOUSTON MULTI-FAMILY HABITABILITY CODE

DIVISION 1. GENERALLY

Sec. 10-151. Title; purpose; conflict with other municipal laws.

This article is, and may be cited as, the "Houston Multi-Family Habitability Code." One purpose of this Habitability Code is to comply with Section 214.219 of the Texas Local Government Code. The provisions of this Habitability Code are cumulative of all other laws and regulations of the city, as well as all applicable state and federal laws and regulations. In the event of a conflict between this Habitability Code and another law or regulation of the city, the provisions of this Habitability Code shall control.
(Ord. No. 09-1043, § 2, 11-4-09)

Sec. 10-152. Definitions.

In addition to definitions appearing elsewhere in this division, the following words and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Apartment Standards Enforcement Committee or *ASEC* means a committee tasked with coordinating city responses to substandard and dangerous apartment buildings as defined in this division, consisting of:

(1) Two representatives from the police department;

(2) Two representatives from Houston Public Works;

(3) One representative from the fire department;

(4) One representative from the health department;

(5) One representative from the housing community and development department;

(6) One representative from the solid waste department;

(7) One representative who is a property owner in the city;

(8) One representative who is a tenant residing in the city; and

(9) Ex-officio representative from the office of the mayor.

Building official means the building official and all persons designated in writing by the building official to act on his or her behalf to construe and to enforce this article.

Habitability refers to the character of a multi-family rental building free of any condition constituting a material risk to the physical safety or health of the building's ordinary tenants. A multi-family rental building substantially free of such conditions is habitable.

High-risk rental building or *HRRB* means any multi-family rental building that meets the criteria in section 10-171(b) of this Code. This includes all MFRBs and all accessory buildings on the same tract consistent with the definition of MFRB.

High-risk apartment inspection program ("Program") means and refers to a proactive regulatory initiative designed to identify, monitor, and address multifamily residential properties meeting the conditions in section 10-171(b) of this Code to prioritize inspection, enforcement, and compliance efforts for these properties to reduce hazards, ensure adherence to applicable codes and regulations, and promote safe and habitable living conditions, including but not limited to the timely resolution of any notices of violation under the Construction Code or citations alleging violation of the Building Code or of division 3 or division 4 of article IX, chapter 10 of this Code.

Manager shall have the same meaning as ascribed in section 10-317 of this Code.

Multi-family rental building or *MFRB* means a building that has three or more units. Only for the purposes of the Inspection Program established by this article, multi-family rental building or MFRB includes all MFRBs and all accessory buildings (such as a boiler room, laundry room, clubhouse, or garage) on the same tract.

Owner means the current owner (or, collectively, the current owners) of the real property on which a multi-family rental building is located. For the purposes of this article, records available for public view at an official website maintained by the appraisal district in which the MFRB is located are presumed to be accurate with regard to the ownership of real property, but the presumption of ownership may be rebutted by documents properly recorded in the real property records of the county in which the MFRB is located.

Tract means the parcel or parcels of real property on which a multi-family rental building is located.

Unit means one or more rooms rented for use as permanent residence under a lease to one or more tenants, except that none of the following shall constitute a unit:

(a) A room or rooms rented primarily for the purpose of receiving services regulated by a department or agency of the federal government or of the State of Texas (including, but not limited to, the Texas Department of State Health Services);

(b) A room or rooms owned or operated by a public or private college or university accredited by a recognized accrediting agency within the meaning of Section 61.003, Texas Education Code;

(c) An "apartment" in a "condominium" within the meaning of Chapter 81, Texas Property Code; or

(d) A "unit" in a "condominium" within the meaning of Chapter 82, Texas Property Code.

(Ord. No. 09-1043, § 2, 11-4-09; Ord. No. 2026-0388, § 4, 5-6-2026)

Sec. 10-153. Construction of this Habitability Code.

This article shall not be construed to alter the terms of any lease or other agreement between an owner and a tenant relating to an MFRB, except that no provision of any such lease or other agreement shall be construed to excuse compliance with this article or with any other law or regulation of the city. It is not the purpose of this article to prescribe legal rights or liabilities as between an owner and a tenant.
(Ord. No. 09-1043, § 2, 11-4-09)

Sec. 10-154. MFRB registration.

(a) The building official shall promulgate a form for the registration of MFRBs, which form shall require disclosure of:

(1) The physical address of the MFRB;

(2) The account number(s) assigned to the tract by the appraisal district in which the MFRB is located;

(3) The number of buildings on the tract;

(4) The number of units in each building on the tract;

(5) A brief description of the intended use of each building on the tract (residential building, boiler room, laundry room, club house, garage, etc.);

(6) The Project Number(s) appearing on the face of either the Certificate of Occupancy or the Life Safety Compliance Certificate issued by the city for each building on the tract; and

(7) The name, mailing address, physical address, telephone number, and e-mail address (if available) of at least one owner of the MFRB.

(b) The form promulgated by the building official shall provide a physical address and a mailing address for filing completed MFRB Registration Forms. In addition, the building official shall establish a means by which MFRB Registration Forms may be completed and filed electronically.

(c) An owner of an MFRB shall register the MFRB by completing and filing an MFRB Registration Form with the building official.

(d) An owner of an MFRB shall post a hard copy of the current, completed MFRB Registration Form in or on the MFRB.

(e) If an MFRB was not in existence on January 1, 2010, the owner of the MFRB shall register the MFRB by completing and filing the MFRB Registration Form with the building official no later than 30 days after the MFRB receives a Certificate of Occupancy.

(f) Registration of an MFRB as required by this section shall constitute:

(1) Registration of the MFRB under section 28-283 of the Code of Ordinances; and

(2) Compliance with sections 250.003 and 250.004 of the Texas Local Government Code.

(g) No later than 30 days after an owner of an MFRB knows or reasonably should know that a statement on the MFRB Registration Form was incomplete or inaccurate when filed, or has become incomplete or inaccurate since filed, the owner must complete and file an amended MFRB Registration Form.
(Ord. No. 09-1043, § 2, 11-4-09)

Sec. 10-155. Habitability standards.

In addition to the habitability standards established by Article V and by divisions 4 and 5 of Article IX of Chapter 10 of this Code:

(1) An owner of an MFRB violates this division if the MFRB does not comply with:

a. All applicable provisions of the Fire Code;

b. Sections D102 through D108 of Appendix D (Life-Safety Requirements for Existing Buildings) of the *Existing Building Code*;

c. Sections 10-211 through 10-218 of this Code (which provisions pertain to the numbering of buildings);

d. The provisions of chapter 41 of this Code (which provisions pertain to street names and site addresses);

e. The provisions of chapter 43 of this Code (which provisions pertain to swimming pools); and

f. Sections 92.153 through 92.162 of the Texas Property Code (which provisions pertain to security devices).

(2) An owner of an MFRB at all times must post in or on the MFRB:

a. A valid Certificate of Occupancy or a valid Life Safety Compliance Certificate; and

b. A "NOTICE TO ALL RESIDENTS" legibly typed or printed in a font 28 points or larger, in both English and Spanish, the substance of which Notice is as follows: "IF ANY CONDITION of this building CREATES A HAZARD to human safety or health, REPORT THE CONDITION to the building's manager or owner. You also may report the condition to the City of Houston by calling the City's Service Helpline at 311."

(3) Any document required by this division to be posted in or on an MFRB must be posted either (a) as provided by the Building Code or (b) by posting an accurate

copy of the document in a manner reasonably protected from weather and in a place conspicuous to ordinary tenants no more than five feet from each mailbox facility at which the United States Postal Service delivers mail to tenants or, if no such facility exists, in some other place equally conspicuous to ordinary tenants of the MFRB.

(Ord. No. 09-1043, § 2, 11-4-09; Ord. No. 2010-908, § 3, 11-17-2010, eff. 1-1-2011; Ord. No, 2011-436, § 2, 6-8-2011; Ord. No. 2021-1037, § 20(Exh. I.12), 12-1-2021, eff. 4-1-2022; Ord. No. 2026-0388, § 5, 5-6-2026)

Sec. 10-156. Powers and duties of building official.

(a) Except for applicable provisions of the Fire Code incorporated herein by reference, the building official has primary responsibility for the enforcement of this Habitability Code.

(b) With regard to MFRBs only, the building official has powers and duties equal to and concurrent with the health officer for the enforcement of chapter 43 of this Code (which pertains to swimming pools).

(Ord. No. 09-1043, § 2, 11-4-09; Ord. No. 2011-108, § 5, 2-9-2011)

Sec. 10-157. MFRB inspection program.

(a) The building official shall inspect MFRBs pursuant to an inspection program (the "Multi-Family Rental Building Inspection Program" or the "MFRB Inspection Program"), as provided in this section.

(b) The building official shall promulgate a checklist (the "Multi-Family Rental Building Checklist" or the "MFRB Checklist") of criteria by which the building official shall determine the habitability of MFRBs.

(1) The MFRB Checklist shall have no force or effect until 90 days after copies of City of Houston Ordinance No. 2009-1043 and the MFRB Checklist have been available for public view in the office of the city secretary and at a website maintained by the city.

(2) The building official may amend the MFRB Checklist; however, an amendment of the MFRB Checklist shall have no force or effect until 90 days after the MFRB Checklist has been available for public view in the office of the city secretary and at a website maintained by the city.

(c) No MFRB shall be inspected under the MFRB Inspection Program until at least 45 days after the building official has mailed to the owner a letter stating:

(1) The first day of 30 consecutive days during which the building may be inspected under the MFRB Inspection Program;

(2) The physical address of the office of the city secretary and the internet address of the website at which copies of the MFRB Checklist are available for public view;

(3) The amount of the fee (the "MFRB Inspection Fee") to be paid to the city prior to the first day of the said 30 consecutive days during which the building may be inspected; and

(4) The mailing and physical addresses at which the MFRB Inspection Fee may be paid.

(d) The building official shall mail by first-class mail duplicate originals of the letter required by subsection (c) of this section to the owner of the MFRB at the respective addresses:

(1) Of the owner, according to MFRB Registration Form filed with the building official, or, if the MFRB has not been registered with the building official, according to records available for public view at an official website maintained by the appraisal district in which the MFRB is located; and

(2) Of the MFRB.

(e) No inspection of an MFRB under the MFRB Inspection Program shall be delayed solely because the owner did not receive or did not understand a letter prepared and sent as required by subsections (c) and (d) of this section.

(f) Notwithstanding anything to the contrary in this division, no employee of the city inspecting an MFRB under the MFRB Inspection Program shall enter a unit without the written permission of a person who has a legal right to occupy the unit.
(Ord. No. 09-1043, § 2, 11-4-09; Ord. No. 2026-0388, § 6, 5-6-2026)

Sec. 10-158. Fees.

For the inspection of an MFRB under the MFRB Inspection Program the owner shall pay to the city the MFRB Inspection Fee, which fee is stated for this provision in the city fee schedule.
(Ord. No. 09-1043, § 2, 11-4-09; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 10-159. Remedies.

An owner who violates, or whose MFRB is in violation of, any provision of this division shall be guilty of a misdemeanor punishable upon conviction by a fine of not less than $500.00 nor more than $2,000.00. Each violation, and each day that a violation continues, shall constitute and be punishable as a separate offense.
(Ord. No. 09-1043, § 2, 11-4-09; Ord. No. 2026-0388, § 7, 5-6-2026)

Secs. 10-160—10-169. Reserved.

DIVISION 2 HIGH-RISK RENTAL BUILDINGS

Sec. 10-170. Apartment Standards Enforcement Committee (ASEC).

There is hereby established the Apartment Standards Enforcement Committee (ASEC), which shall serve as an advisory body responsible for:

(1) Monitoring compliance with minimum habitability standards for multi-family residential buildings (MFRBs) within the city.

(2) Reviewing and monitoring MFRBs designated as high-risk rental buildings (HRRBs) and their compliance with the program established under this division; and

(3) Developing and recommending to City Council any additional regulations or Code Amendments necessary to protect the health, safety, and welfare of tenants residing in MFRBs.

(Ord. No. 2026-0388, § 3(Exh. A), 5-6-2026)

Sec. 10-171. Registration required; exceptions.

(a) It shall be unlawful for an owner or manager of a MFRB designated as a HRRB to fail to register their property in the high-risk apartment inspection program.

(b) A multi-family rental building (MFRB) shall be designated a high-risk rental building (HRRB) if the MFRB receives ten or more citations in a 6-month period for one or more or any combination of the following:

(1) Failure to maintain or obtain a valid certificate of occupancy;

(2) Repeated or uncorrected violations related to structural integrity, including but not limited to foundation, framing, roofing, or load-bearing components;

(3) Violations resulting in the issuance of an order to vacate or an emergency repair order due to unsafe or hazardous conditions;

(4) Violations related to fire safety systems, including nonfunctional smoke detectors, fire alarms, or sprinkler systems;

(5) Violations involving inadequate sanitation, plumbing, or waste disposal facilities that create or contribute to unsafe or unsanitary living conditions, including, but not limited to, bulk containers;

(6) Electrical violations posing fire or shock hazards;

(7) Violations relating to the failure to maintain required means of egress, emergency lighting, or other life safety features;

(8) Failure to correct cited violations within the time prescribed by law or by the building official; or

(9) Any other condition or pattern of violations indicating neglect, inadequate maintenance, or threat to the health, safety, or welfare of occupants or the public.

(c) Multiple citations issued to an MFRB on a single calendar day shall be considered one citation for purposes of calculating and determining whether the MFRB is an HRRB.

(d) Once designated as an HRRB, the building manager shall register the property in the high-risk apartment inspection Program for six months from the date the notice of designation is issued.

(e) ***Exceptions.*** The requirements under this division shall not apply to any building with any of the following:

(1) A room or rooms rented primarily for the purpose of receiving services regulated by a department or agency of the federal government or of the State of Texas (including, but not limited to, the Texas Department of State Health Services);

(2) A room or rooms owned or operated by a public or private college or university accredited by a recognized accrediting agency within the meaning of Section 61.003, Texas Education Code;

(3) An apartment in a condominium within the meaning of Chapter 81, Texas Property Code; or

(4) A unit in a condominium within the meaning of Chapter 82, Texas Property Code.

(Ord. No. 2026-0388, § 3(Exh. A), 5-6-2026)

Sec. 10-172. Registration procedures; registration form content.

(a) The building official shall send notice to the owner of an MFRB that meets the conditions in section 10-171(b) of this Code. The notice will identify the affected property, describe the violation, and the applicable Code provisions.

(b) The owner of an MFRB in this program shall provide the official building with the name, street address, and telephone number of a manager who can be contacted twenty-four (24) hours a day, seven (7) days a week, in the event of an emergency.

(c) In addition to all requirements under section 10-154 of this Code, within 15 days after receipt of notice under subsection (a) of this section, the owner of an HRRB shall register for the program by submitting to the building official a completed MFRB registration form approved by the building official.

(d) The owner or manager of a multi-family rental building designated as an HRRB may appeal the designation by filing a written notice of appeal with the building official within 15 days of receiving the notice of designation. The appeal shall be heard by an impartial hearing officer who shall render a decision within 30 business days of the date of the filing of an appeal to render a decision to uphold or overturn a designation as an HRRB.

(Ord. No. 2026-0388, § 3(Exh. A), 5-6-2026)

Sec. 10-173. Penalty; enforcement.

(a) An owner or manager who allows, causes, or permits a HRRB to be in violation of any provision of this division, or who fails to remedy all violations within the period of correction, consistent with repair timeframes under state law where appliable, or as otherwise established by the city, shall be guilty of a misdemeanor punishable upon conviction by a fine of not less than $250.00 nor more than $2,000.00. Each violation, and each day that a violation continues, shall constitute and be punishable as a separate offense.

(b) Employees designated by the building official authorized to enforce building, housing, health, or safety codes are authorized to issue notices of violation and citations for violations of this division.

(c) For purposes of this article, a manager is considered the authorized agent of the owner for accepting service of a citation and may be issued

a citation for an alleged violation occurring on the property in accordance with section 250.004 of the Texas Local Government Code.

(d) A manager who is issued a citation under this section shall not be personally liable for a violation at the property if, in accordance with section 250.003 of the Texas Local Government Code, the manager timely provides to the enforcement official who issued the citation the property owner's name, current street address, and telephone number.

(e) Nothing in this section shall be construed to limit the City's authority to pursue enforcement against the owner or any other person responsible for the violation, as provided by law. (Ord. No. 2026-0388, § 3(Exh. A), 5-6-2026)

Sec. 10-174. High-Risk Apartment Inspection Program.

(a) ***Initial inspection.*** The building official shall perform an initial inspection of each HRRB within 30 days of the HRRB's registration in the Program. The building official shall provide the manager of the HRRB building with a written accounting of all identified Code violations no later than twenty (20) days following completion of the initial inspection. The owner or manager of the HRRB shall be physically present at the property during all scheduled inspections. The owner or manager shall have charge, care, and control of the HRRB, and shall provide access to the property or inspection upon request by the building official within a reasonable length of time, no more than fifteen (15) calendar days from receipt of said request.

(b) ***Follow-up inspections.*** Following the initial inspection of an HRRB, the building official shall conduct follow-up inspections at intervals necessary to verify correction of Code violations and continued compliance with applicable standards. At a minimum, a follow-up inspection shall be conducted within 30 days after the initial inspection pursuant to subsection (a) of this section, and additional inspections may be scheduled as deemed appropriate by the building official.

(c) ***Emergency repairs.*** Upon the building official issuing a permit to authorize emergency repairs, the manager of a High-Risk Rental Building (HRRB) shall, within the timeframe specified by the building official, submit documentation confirming completion of such repairs. Completion of emergency repairs shall be subject to field verification by one or more city departments, as appropriate.

(d) ***Registration termination.*** The building official shall terminate the registration of an HRRB in the Program upon any of the following conditions:

(1) The HRRB has resolved all pending citations and has maintained compliance with applicable Code requirements for a continuous period of six months from the date of completion of the last required corrective action, as verified by the building official; or

(2) The HRRB no longer houses residents. (Ord. No. 2026-0388, § 3(Exh. A), 5-6-2026)

Sec. 10-175. Transfer of ownership.

(a) The owner shall notify the building official of any pending or proposed sale of an HRRB at least 30 days prior to the transfer of ownership.

(b) At least 30 days prior to the closing of any sale for the transfer of ownership in any HRRB, the owner shall notify all prospective buyers of any notices of violation or citations issued to the owner of the HRRB.

(c) Within 180 days following the transfer of ownership of an HRRB, the new owner shall resolve all outstanding violations, unless the building official grants an extension of time to make all necessary repairs upon a showing of good faith by the new owner to correct the outstanding violations. For purposes of granting an extension under this subsection, good-faith efforts include, but shall not be limited to:

(1) Obtaining all necessary permits to complete all necessary repairs in a timely fashion;

(2) Commencing and pursuing the completion of all necessary repairs without unreasonable delay;

(3) Demonstrating financial or contractual commitments to complete all necessary repairs; and

(4) Providing documentation or other evidence reasonably requested by the building official, demonstrating progress towards correcting violations in furtherance of completing all necessary repairs.

(d) Failure to satisfy these criteria shall be grounds for denial of extension. No extension shall exceed 90 days from the date the building official grants the extension.
(Ord. No. 2026-0388, § 3(Exh. A), 5-6-2026)

Sec.10-176. Repeat Offender program.

(a) Upon the building official's determination that the manager of an HRRB has failed to resolve all violations at a single property within a 6-month period following the date the notice of designation is issued, the building official shall extend the time period for an HRRB to be registered in the program for 12 months.

(b) The building official shall send notice to the owner of an HRRB that meets the conditions in section 10-171(b) of this Code. The notice will identify the affected property, describe the violation and applicable Code provisions, and provide a reinspection date on which the building official shall reinspect the property and confirm whether or not the HRRB has corrected the violation or provided proof of ongoing good-faith efforts to correct.

(c) In addition to subsection (a), the building official may designate a property as a repeat offender if the property incurs five or more citations for violations for one or more of the violations stated in section 10-171 of this Code within a twelve-month period after having first been designated as an HRRB.

(d) A property designated as a repeat offender shall be subject to enhanced enforcement measures, which may include mandatory inspections at intervals determined by the building official.

(e) Upon the designation of an HRRB as a repeat offender, the building official shall ensure such designation is recorded in the real property records of the county in which the building is located. The record shall identify the MFRB by legal description and street address, reference the provisions of section 10-171 of this Code establishing the designation, and provide notice that the building is subject to the requirements of the program.

(f) When an MFRB registration in the HRRB program is terminated, the building official shall file a release of designation in the real property records of the county in which the MFRB is located. The release shall identify the building by legal description and street address, reference the prior designation, and state that the MFRB is no longer subject to the requirements of the program established pursuant to this division.

(g) The owner or manager of a multi-family rental building designated as an HRRB may appeal the designation by filing a written notice of appeal with the building official within 15 days of receiving the notice of designation. The appeal shall be heard by an impartial hearing officer who shall render a decision within 30 business days of the date of the filing of an appeal.
(Ord. No. 2026-0388, § 3(Exh. A), 5-6-2026)

Sec. 10-177. Tenant advocacy.

The building official shall, in conjunction with the police department, Houston Public Works, fire department, health department, and housing and community development department, make information available on the city's website to provide assistance or referrals to tenants of any HRRB regarding complaints, inspections, or any work to alter, repair, replace, maintain, or remove any building or structure, or any appurtenance connected or attached to such building or structure, in response to a notice of violation or citation issued to the manager of an HRRB under this division.
(Ord. No. 2026-0388, § 3(Exh. A), 5-6-2026)

Sec. 10-178. Online report.

For as long as the HRRB is in the Program, the building official shall make available for public view the business name and physical

address of the HRRB in the office of the city secretary and on a website maintained by the city.
(Ord. No. 2026-0388, § 3(Exh. A), 5-6-2026)

Sec. 10-179. Apartment Landlord Training Program.

(a) ASEC and the building official shall collaborate with the police department, fire department, health department, housing and community development, legal department, and Houston Public Works to establish an apartment landlord training program to provide training to owners and managers of HRRB's.

(b) The owner or manager of an HRRB shall complete training online in the manner prescribed by the building official. The training shall include, but not be limited to, the following:

(1) An overview of all applicable provisions of this Code, the City of Houston Construction Code, and any other relevant laws or regulations applicable to MFRBs;

(2) Guidance on how to identify and abate unsafe use and occupancy of apartment buildings; and

(3) The contact information of appropriate city departments and law enforcement for the manager to use in response to specific purposes.

(c) The manager of an HRRB shall maintain records sufficient to verify compliance with the training requirements of this section of the Code.

(d) Upon written request from the building official, the manager of an HRRB shall produce records demonstrating completion of the required training.
(Ord. No. 2026-0388, § 3(Exh. A), 5-6-2026)

Secs. 10-180—10-210. Reserved.

ARTICLE V. NUMBERING

Sec. 10-211. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Commercial building means and includes any building used in whole or in part for any trade, business, the provision of services for remuneration, or for any commercial purpose, but the term commercial building shall not include any building used for residential or lodging purposes.

Commercial unit means and includes the portion of any commercial building that is used by any corporation, partnership, association or sole proprietorship which does not occupy the entire building.

Family means and includes one or more individuals living together in a single housekeeping unit.

Identifying number means the street address number assigned by the director of planning and development, or where no such number has been assigned by the director of planning and development, any number, letter, or number and letter combination which is distinct from any other number, letter, or number and letter combination used on the same premises.

Lodging unit means and includes any room, other than one in a residential unit, which is generally used for sleeping purposes.

Premises means any tract or tracts of land under common ownership. Premises shall also include the total area of any condominium or town house development where the owners of individual units hold all or part of the land in common.

Residential unit means and includes any building or portion thereof designed as a dwelling for a family.

Residential unit number means the number on each residential unit in an apartment community or any other multiunit residential property, including but not limited to townhomes, garden homes, and condominiums.
(Ord. No. 09-1049, § 2, 11-4-09, eff. 1-1-2010)

Sec. 10-212. Directory for multiunit residential properties, etc.

Whenever there are four or more residential units on the same premises, there shall be a directory posted and maintained within eight feet or less of the front of the driveway of each vehicular entrance to the premises unless a residential unit number posted on each unit is clearly visible from the public street. Such directory shall indicate by a map or clearly worded directions the exact location of each residential unit on the premises. This section shall not apply if all units on the premises are located in one building which meets the requirements of section 10-213.1 of this Code.
(Ord. No. 09-1049, § 2, 11-4-09, eff. 1-1-2010)

Sec. 10-213. Posting of residential unit numbers.

Each residential unit and each lodging unit shall have a residential unit number posted and maintained on or within 18 inches of the principal entrance to the unit or such greater distance as the fire marshal may approve.
(Ord. No. 09-1049, § 2, 11-4-09, eff. 1-1-2010)

Sec. 10-213.1. Posting of directions for multiunit residential properties.

(a) If a building contains more than two residential or lodging units which cannot be entered directly from outside, directions shall be posted and maintained outside the principal entrance to such building or inside such building where it is clearly visible upon entering the principal entrance to the building. Such directions shall indicate one of the following:

(1) The location of all units in the building by arrows, by a map, or by clearly worded directional information.

(2) The location of all units on the same floor as the principal entrance and the floor on which each other unit is located. When the directions at the principal entrance to the building simply indicate the floor on which some units are located, directions shall be posted and maintained at the elevator entrance to each floor, or if there is no elevator, at the principal stairwell entrance. Such directions shall show the location of all units on that floor by arrows, a map, or clearly worded directional information.

If it is not obvious which entrance to a building is the principal entrance, a sign clearly indicating the location of the principal entrance shall be posted and maintained on all entrances to the building which might be confused with the principal entrance; however, two or more entrances may be considered principal entrances to the building if the owner of the property so desires. Where two or more entrances are considered principal entrances to the building, all numbers and directories must be posted and maintained at each such entrance as though it were the only principal entrance to the building.

(b) If a building contains four or more residential or lodging units, residential unit numbers shall be posted and maintained at each end of said building indicating the units contained therein. If the residential unit numbers posted at one end of the building are clearly visible from a public street or private driveway, and the opposite end of the building is not visible from either a public street or a private driveway, residential unit numbers shall be required only on the end of the building that is clearly visible from the public street or private driveway. It shall not be necessary to post the identifying residential unit numbers of all units contained in the building at the ends of said building if the residential unit numbers posted at the ends indicate the units contained in the building. (Example: Where a building contains units numbered 1 to 20, it shall be adequate to post "1—20" on the end of the building.) The ends of the building shall be designated by the owner of the property. The residential unit numbers required by this subsection shall be at least four inches in height, shall be permanently affixed to the outside of the building, and shall be of a color which is in contrast to the background.
(Ord. No. 09-1049, § 2, 11-4-09, eff. 1-1-2010)

Sec. 10-214. Listing of occupants.

It shall not be necessary to list the occupants of any unit on any sign or directory used to comply with this article.
(Ord. No. 09-1049, § 2, 11-4-09, eff. 1-1-2010)

Sec. 10-215. Specifications for numbers—Noncommercial buildings and residential units.

(a) Each noncommercial building shall have an indentifying number posted in a position to be plainly legible and visible from the street, road, common driveway or common parking lot fronting the property.

(b) Each identifying residential unit number is to be posted and maintained on or within 18 inches of an entrance to the unit or such greater distance as the fire marshal may approve and shall be:

(1) Permanently affixed to the outside of the door or on the outside wall of such building or unit.

(2) Of a color which is in contrast to the background.

(3) For any noncommercial building built for first occupancy on or before May 22, 1979, at least two inches in height.

(4) For any noncommercial building built for first occupancy after May 22, 1979, at least three inches in height, except that a residential unit contained in a building where residential unit numbers are posted pursuant to section 10-213.1 of this Code may have residential unit numbers two inches or more in height.

(5) For each noncommercial building and each residential unit therein for which a building permit was issued after January 1, 2010: (i) of a color that contrasts with the background; (ii) one or more Arabic numerals or alphabet letters; and (iii) a minimum of 4 inches (102 mm) high with a minimum stroke width of 0.5 inches (12.7 mm).

(6) For any multiunit residential property for which a building permit is issued after January 1, 2010: required to be illuminated.

(Ord. No. 09-1049, § 2, 11-4-09, eff. 1-1-2010; Memorandum of 11-30-2015)

Sec. 10-216. Same—For commercial units and buildings.

(a) Each new and existing commercial building and each commercial unit therein shall have an identifying number posted in a position to be plainly legible and visible from the street, road, common driveway or common parking lot fronting the property.

Each commercial building shall have an identifying number posted and maintained on or within 36 inches of the principal entrance.

The identifying number of the building shall also be posted and maintained on any sign which:

(1) Sets out the name of the building; and

(2) Is located on the same premises as the building; and

(3) Is visible to persons traveling on the street from which the address is derived.

Each commercial unit having its principal entrance in such a location that it can be entered directly from outside the building shall have an identifying number posted and maintained on or within 36 inches of the principal entrance.

If it is not obvious which entrance is the principal entrance of a commercial building or a commercial unit, a sign clearly indicating the location of the principal entrance shall be posted and maintained on all entrances which might be confused with the principal entrance. However, two or more entrances may be considered principal entrances if the person in control of the property so desires. Where two or more entrances are considered principal entrances; all numbers must be posted and maintained at each such entrance as though it were the only principal entrance.

(b) For each commercial building for which a building permit was issued on or before January 1, 2010, and each commercial unit therein, the identifying number shall be:

(1) Permanently affixed to the outside of the door or on the outside wall of such building or unit;

(2) Of a color which is in contrast to the background; and

(3) At least three inches in height.

(c) For each commercial building for which a building permit was issued after January 1, 2010, and each commercial unit therein, the identifying number shall:

(1) Be permanently affixed to the outside of the door or on the outside wall of such building or unit;

(2) Contrast with the background;

(3) Consist of one or more Arabic numerals or alphabet letters; and

(4) Be a minimum of 4 inches (102 mm) high with a minimum stroke width of 0.5 inches (12.7 mm).

(d) All numbers which are posted and maintained on a sign or marker pursuant to this section shall be permanently affixed to the sign or marker and meet the same color and size requirements as specified in subsection (b) or (c) above.

(e) Provisions of this section shall not be construed to authorize the erection or maintenance of any sign or marker in contravention of any applicable provisions of the *Sign Code*.
(Ord. No. 09-1049, § 2, 11-4-09, eff. 1-1-2010; Ord. No. 2021-1037, § 20(Exh. I.13), 12-1-2021, eff. 4-1-2022)

Sec. 10-217. Compliance with article provisions notice; penalties for noncompliance.

(a) It shall be the responsibility of each owner of the property and of each person having control over the property to ensure that any number required to be posted and maintained on such property is so posted on such property at all times.

(b) Charges may be filed in municipal court for any violation of this article upon proper complaint under the following conditions:

(1) Written notice has been given the person charged, by an officer or employee of the city, either by hand delivery or by certified mail, return receipt requested. Such notice shall inform the person that identifying numbers must be posted on each building, lodging, residential or commercial unit and/or, in the case of residential units, that a directory must be maintained, as applicable. The notice shall also set out the requirements for such numbers and/or, if applicable, such directory, as specified in this article and shall be accompanied by a copy of applicable provisions of this article.

(2) The person charged did not comply with the applicable provisions of this article

within ten days of the date such person received notice pursuant to subsection (b)(1) hereof.

(c) Any person who fails to ensure that all numbers or, if applicable, directories required by this article are posted and maintained on property under his control after receiving notice as provided in subsection (b) shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not less than $100.00 nor more than $500.00 for each offense. Each day a number or, if applicable, directory, required to be posted under this article is not so posted shall constitute a separate offense.
(Ord. No. 09-1049, § 2, 11-4-09, eff. 1-1-2010)

Sec. 10-218. Responsibility for enforcement.

The neighborhood protection official is primarily responsible for the enforcement of this article with regard to dwellings, as "dwelling" is defined article IX of this chapter. The building official is primarily responsible for the enforcement of this article with regard to all other properties.
(Ord. No. 2011-108, § 3, 2-9-2011)

Secs. 10-219—10-230. Reserved.

ARTICLE VI. MODULAR HOUSING*

DIVISION 1. GENERALLY

Sec. 10-231. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Alteration* means the replacement, installation, addition, modification or removal of any structural component or any equipment which may affect the construction, fire safety, occupancy, plumbing, heat-producing or electrical system. It includes any modification made in a modular home which may affect the compliance of the home with the standards, but it does not include the repair or replacement of a component or appliance requiring plug-in to an electrical receptacle where the replaced item is of the same configuration and rating as the one being replaced. It also does not include the addition of an appliance requiring "plug-in" to an electrical receptacle, which appliance was not provided with the modular home by the manufacturer, if the rating of the appliance does not exceed the rating of the circuit to which it is connected.

(2) *Factory lot* means any property on which modular homes are manufactured. No property that is not adjoining property on which modular homes are actually constructed shall be considered a factory lot or part of a factory lot.

(3) *Manufacturer* means a person licensed as a manufacturer by the state pursuant to Article 5221f, Vernon's Texas Civil Statutes.

(4) *Modular home* means a structure or building module that is manufactured at a location other than the location where it is installed and used as a residence by a consumer, transportable in one or more sections on a temporary chassis or other conveyance device, and designed to be used as a permanent dwelling when installed and placed upon a permanent foundation system. The term includes the plumbing, heating, air-conditioning, and electrical systems contained in the structure. The term does not include a manufactured home as defined in Article 5221f, Vernon's Texas Civil Statutes, nor does it include building modules incorporating concrete or masonry as the primary structural component.

(5) *Owner* means the person holding title to the property and any person having control over the property.

(6) *Retailer* means a person licensed as a retailer by the state pursuant to Article 5221f, Vernon's Texas Civil Statutes.

*__Cross reference—__Manufactured homes, manufactured home parks, travel trailers, motor homes, etc., Ch. 29.

(7) *Sales lot* means any tract of land used by a retailer for showing modular homes to potential customers.

(Code 1968, § 10-300; Ord. No. 80-875, § 1, 4-23-80; Ord. No. 94-1268, § 4, 11-22-94)

Sec. 10-232. Application and interpretation of other ordinances.

(a) All provisions of the ordinances of the city shall apply to the placement and the use of a modular home on any property within the city on the same basis that such ordinances are applicable to the construction and the use of any other structure except to the extent such ordinances of the city are inconsistent with state law, or are in conflict with the provisions of this article.

(b) For purposes of all the ordinances of the city, the placement of a modular home shall be deemed the construction of a structure.

(Code 1968, § 10-301; Ord. No. 80-875, § 1, 4-23-80)

Sec. 10-233. Compliance with Construction Code.

No structure originally constructed as a modular home shall be used for any purposes other than as a dwelling or a residence, for demonstration purposes at a sales lot, or as an office of a licensed retailer at a sales lot, unless the structure meets all requirements of the Construction Code of the city.

(Code 1968, § 10-302; Ord. No. 80-875, § 1, 4-23-80; Ord. No. 02-399, § 33, 5-15-02)

Sec. 10-234. Setbacks.

No portion of any modular home may be less than three feet from any property line and may not be nearer to any property line than that distance specified in the Construction Code for structures of the same type of construction and occupancy. For purposes of this section, the term "property line" shall include an imaginary line midway between a modular home and any other structure on the same property, any easement line, and all lines falling within the usual and customary meaning of the term "property line."

(Code 1968, § 10-303; Ord. No. 80-875, § 1, 4-23-80; Ord. No. 02-399, § 33, 5-15-02)

Sec. 10-235. Location restrictions.

No person shall allow, cause, or suffer any modular home to be on any property owned by him or under his control within Fire Zones One and Two. This section shall not prohibit the transportation of modular homes through Fire Zones One and Two on the public streets when such transportation is accomplished in compliance with all other applicable statutes and ordinances.

(Code 1968, § 10-304; Ord. No. 80-875, § 1, 4-23-80)

Sec. 10-236. Permit prior to placement on lot—Required.

No person shall permit, allow, suffer or cause a modular home to be on any property owned by him or under his control unless a permit has been issued by the city pursuant to the provisions of this article; provided that the provisions of this section shall not apply if the property is a factory lot or if such home was permanently installed on the property prior to May 1, 1980.

(Code 1968, § 10-305; Ord. No. 80-875, § 1, 4-23-80)

Sec. 10-237. Same—Application.

(a) To obtain a permit to place a modular home on property within the city when it is intended that such modular home shall be used as a residence by the applicant or by another, the owner of such property shall file an application therefor on a form designated by the city. Such application shall include:

(1) The name and mailing address of the applicant;

(2) The legal description of the property on which such modular home is to be placed;

(3) The street address of the property on which the modular home is to be placed;

(4) The size of such modular home;

(5) The year in which the modular home was constructed;

(6) A full description of such modular home, and the name of the manufacturer;

(7) The serial number of each modular section of the home;

(8) A map or drawing of the property drawn to scale showing the location where the modular home will be placed, the location of all other structures on the property, all driveways on the property, and where off-street parking will be provided.

(b) The application shall state thereon: "If the placement or use of the modular home on the property described in this application violates any restriction contained in or incorporated by reference in a duly recorded plan, plat, replat or other instrument affecting the property, the city may file suit or become a party to a suit for the purpose of enjoining or abating the violation of the restriction."
(Code 1968, § 10-306; Ord. No. 80-875, § 1, 4-23-80)

Sec. 10-238. Same—Conditions for permit issuance.

Upon the filing of a proper application pursuant to section 10-237 and the payment of the permit fee, the building official shall issue a permit for the placement of a modular home on such property unless the building official finds that the placement of the modular home on such property would violate any provision of the ordinances of the city or laws of the state, or finds that adequate utilities are not available for residential use of such modular home at the location set out in the application.
(Code 1968, § 10-307; Ord. No. 80-875, § 1, 4-23-80; Ord. No. 90-635, § 34, 5-23-90)

Sec. 10-239. Same—Applicability of permit.

A permit granted pursuant to section 10-238 shall be valid only for the placement of the modular home described in the application therefor on the property designated in the application.
(Code 1968, § 10-308; Ord. No. 80-875, § 1, 4-23-80)

Sec. 10-240. Same—Permit fee.

The fee for a permit for the placement of a modular home that is intended to be used as a residence is stated for this provision in the city fee schedule. This fee shall be in addition to all other applicable fees.
(Code 1968, § 10-309; Ord. No. 80-875, § 1, 4-23-80; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 10-241. Certificate of compliance—Required prior to habitation and utility connection.

No utility of any kind shall be connected to a modular home and no person shall occupy or allow or permit another to occupy a modular home as a residence unless a certificate of compliance has been issued for such modular home.
(Code 1968, § 10-310; Ord. No. 80-875, § 1, 4-23-80)

Sec. 10-242. Same—Information required prior to issuance of certificate of compliance.

To obtain a certificate of compliance for a modular home, the applicant shall give the building official the following information:

(1) The number of the permit issued under section 10-238 for placement of the modular home;

(2) The date the modular home was placed on the property; and

(3) The serial number of each modular section of the home placed on the property.

(Code 1968, § 10-311; Ord. No. 80-875, § 1, 4-23-80; Ord. No. 90-635, § 35, 5-23-90)

Sec. 10-243. Same—Conditions for issuance of certificate.

Upon receipt of a request for a certificate of compliance, inspectors of the city shall inspect the property on which the modular home is located to determine if the modular home meets all applicable requirements of the ordinances of the city. After such inspection a certificate of compliance shall be issued unless it is found that the requirements of this article or of other applicable ordinances have not been met.
(Code 1968, § 10-312; Ord. No. 80-875, § 1, 4-23-80)

Sec. 10-244. Same—Applicability of certificate of compliance.

A certificate of compliance for a modular home shall be valid only for the occupancy of that particular home for the location set out in the application.
(Code 1968, § 10-313; Ord. No. 80-875, § 1, 4-23-80)

Sec. 10-245. Seal, decal or label to be affixed to home used as residence.

No modular home shall be placed on any property within the city for use as a residence unless there is affixed thereto a seal, decal or label issued by the Texas Department of Labor and Standards pursuant to Article 5221f, Vernon's Texas Civil Statutes.
(Code 1968, § 10-314; Ord. No. 80-875, § 1, 4-23-80)

Sec. 10-246. Parking spaces required if used as residence.

No modular home may be placed on any property for use as a residence unless there are the minimum number of parking spaces for the modular home and for all other residential structures on the same property as required in chapter 26 of this Code.
(Code 1968, § 10-315; Ord. No. 80-875, § 1, 4-23-80; Ord. No. 02-399, § 34, 5-15-02)

Sec. 10-247. Use as model or sales office—Permit application.

To obtain a permit to place one or more modular homes on a sales lot to be used as models and/or an office, the owner or lessee of the property shall file an application therefor on a form designated by the city. Such application shall include:

(1) The name and mailing address of the applicant;

(2) The legal description of the property on which such modular homes are to be placed;

(3) The street address of the property on which the modular homes are to be placed;

(4) The name and state license number of the retailer who will use the sales lot;

(5) The maximum number of such modular homes to be placed on such property for use as an office and/or models;

(6) The maximum size of the modular homes to be placed on the property for use as an office and/or models;

(7) A map or drawing of the property, drawn to scale, showing where each modular home to be used as an office and/or model will be placed;

(8) A declaration as provided in section 1-11 of this Code, subscribed by the person making the declaration as true under penalty of perjury, that the use of such property as a sales lot will not violate any restriction contained in or incorporated by reference in a duly recorded plan, plat, replat, or other instrument affecting the property.

(Code 1968, § 10-316; Ord. No. 80-875, § 1, 4-23-80; Ord. No. 2015-160, § 5, 2-18-2015)

Sec. 10-248. Same—Review of application; issuance of permit.

Upon the filing of a proper application pursuant to section 10-247 and the payment of the permit fee, the building official shall review the application to determine if the proposed plans for use of the property as a sales lot meet the requirements of all applicable laws. After such review the building official shall issue a permit for the placement of modular homes as an office and/or models on the sales lot as requested in the application unless he finds that the placement of such modular homes on the property would violate any applicable laws or would violate any restriction contained in or incorporated by reference in a duly recorded plan, plat, replat, or other instrument affecting the property.
(Code 1968, § 10-317; Ord. No. 80-875, § 1, 4-23-80; Ord. No. 90-635, § 36, 5-23-90)

Sec. 10-249. Same—Permit fee.

The fee to place or allow modular homes on a sales lot for an office and/or models is stated for this provision in the city fee schedule. This fee shall be in addition to all other applicable fees.
(Code 1968, § 10-318; Ord. No. 80-875, § 1, 4-23-80; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 10-250. Same—Term of permit; violation of restrictions.

A permit to place modular homes on a sales lot shall be valid for one year from the date of issuance and may be renewed annually upon payment of the permit fee stated for this provision in the city fee schedule.

Provided, however, a permit to place modular homes on a sales lot shall be null, void and of no effect if such use of the property violates any restrictions contained in or incorporated by reference in any plan, plat, replat or other instrument affecting the property.
(Code 1968, § 10-319; Ord. No. 80-875, § 1, 4-23-80; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 10-251. Same—Use as residence or dwelling prohibited.

No modular home located on a factory lot or a sales lot may be used as a residence or dwelling.
(Code 1968, § 10-320; Ord. No. 80-875, § 1, 4-23-80)

Sec. 10-252. Same—Number permitted.

No more than one modular home shall be used on any one sales lot as an office for a retailer of modular homes. If two or more sales lots are on adjoining property and such adjoining lots are used by the same retailer for the sale, exchange, and/or lease-purchase of modular homes, all such lots taken together shall be treated as one sales lot for purposes of this section.
(Code 1968, § 10-321; Ord. No. 80-875, § 1, 4-23-80)

Sec. 10-253. Penalty.

Any person who violates any provision of this article shall be guilty of a misdemeanor and upon conviction thereof shall be punished by a fine of not less than $100.00 nor more than $500.00. Each day during which any violation of this article is continued or permitted shall be deemed a separate offense.
(Code 1968, § 10-322; Ord. No. 80-875, § 1, 4-23-80; Ord. No. 92-1449, § 23, 11-4-92)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

DIVISION 2. INDUSTRIALIZED HOUSING AND INDUSTRIALIZED BUILDINGS

Sec. 10-254. Definitions.

The following words and phrases shall have the following meanings in this division unless otherwise clearly indicated in the text. Words not defined shall be interpreted in their usual sense.

Industrialized building means a commercial structure that is constructed in one or more modules or constructed using one or more modular components built at a location other than the permanent commercial site, and that is designed to be used as a commercial building when the modules or modular components are transported to the permanent commercial site and are erected or installed on a permanent foundation system. The term includes the plumbing, heating, air-conditioning, and electrical systems. The term does not include any commercial structure that is in excess of three stories or 49 feet in height as measured from the finished grade elevation at the building entrance to the peak of the roof.

Industrialized housing means a residential structure that is designed for the use and occupancy of one or more families, that is constructed in one or more modules or constructed using one or more modular components built at a location other than the permanent residential site, and that is designed to be used as a permanent residential structure when the modules or modular components are transported to the permanent residential site and are erected or installed on a permanent foundation system. The term includes the plumbing, heating, air conditioning, and electrical systems. The term

does not include any residential structure that is in excess of three stories or 49 feet in height as measured from the finished grade elevation at the building entrance to the peak of the roof. The term shall not mean nor apply to:

(1) Housing constructed of sectional or panelized systems not utilizing modular components; or

(2) Any ready-built home which is constructed so that the entire living area is contained in a single unit or section at a temporary location for the purpose of selling it and moving it to another location.

Modular component means a structural portion of any dwelling or building that is constructed at a location other than the homesite in such a manner that its construction cannot be adequately inspected for code compliance at a homesite without damage or without removal of a part thereof and reconstruction.
(Ord. No. 85-2215, § 1, 12-26-85)

Sec. 10-255. Application of ordinances of the city to industrialized structures.

All provisions of the ordinances of the city shall apply to the construction, placement and the use of any industrialized building or industrialized housing on any property within the city on the same basis as such ordinances are applicable to the construction and the use of any other structure except to the extent such ordinances of the city are inconsistent with state law, or are in conflict with the provisions of this article. For purposes of all ordinances of the city, the placement of an industrialized building or industrialized housing shall be deemed the construction of a structure.
(Ord. No. 85-2215, § 1, 12-26-85)

Sec. 10-256. Conformance to uniform codes.

Any industrialized building or industrialized housing erected or installed in the city shall be constructed in accordance with the requirements, standards and rules as determined by the Texas Industrialized Building Code Council, pursuant to Chapter 1202 of the Texas Occupations Code.
(Ord. No. 85-2215, § 1, 12-26-85; Ord. No. 02-399, § 35, 5-15-02; Ord. No. 2021-1037, § 20(Exh. I.14), 12-1-2021, eff. 4-1-2022)

Sec. 10-257. Submission of plans and specifications.

Prior to the issuance of any permit for the installation of any industrialized building or industrialized housing in the city, the applicant shall submit to the building official a complete set of design plans and specifications bearing the stamp of the Texas Industrialized Building Code Council for the structure.
(Ord. No. 85-2215, § 1, 12-26-85; Ord. No. 90-635, § 37, 5-23-90)

Sec. 10-258. Decal or insignia required.

No industrialized building or industrialized housing shall be installed in the city unless it bears an approved decal or insignia pursuant to the rules of the Texas Department of Labor and Standards reflecting that the structure has been inspected at the manufacturing plant or facility.
(Ord. No. 85-2215, § 1, 12-26-85)

Secs. 10-259—10-270. Reserved.

ARTICLE VII. LOCATION OF ABATTOIRS AND RENDERING PLANTS

Sec. 10-271. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section unless the context requires otherwise:

(1) *Abattoir* or *slaughterhouse* means any establishment within the city within which cattle, sheep, swine, goats or any such animals are slaughtered for meat for human consumption. The term shall include stockyards and all other operations and facilities necessary, useful or incidental to such abattoir or slaughterhouse.

(2) *Rendering plant* means any establishment at which any animal or parts thereof, or the proteins and fats from animals, poultry, fish or any other waste organic material, in whole or in part, is processed for commercial use. The term "rendering plant" shall include related industry or other operations and facilities necessary, useful or incidental to such rendering plant.

(Code 1968, § 10-323; Ord. No. 81-1458, § 3, 8-4-81)

Sec. 10-272. Prohibited locations—For abattoirs.

(a) It shall be unlawful for any person to erect, establish, enlarge, or expand an abattoir or slaughterhouse in the corporate limits of the city within 3,000 feet of any:

(1) Church;

(2) Public park;

(3) School;

(4) Hospital;

(5) College or university; or

(6) Any dwelling resided in by anyone other than the applicant or employees of such abattoir or slaughterhouse.

(b) The measurement of such distance of 3,000 feet shall be in a straight line from the nearest point on the nearest real property line of such church, public park, school, hospital, college, university or dwelling to the nearest exterior portion of any building, outbuilding, structure or facility used or useful in connection with such abattoir or slaughterhouse to be erected. No building permit shall be issued by the building official for the erection or construction of any such abattoir or slaughterhouse within such three-thousand-foot distance.

(c) This section shall not apply to abattoirs or slaughterhouses in existence on January 23, 1957, to the extent that they were then in existence, but shall apply to all additions and extensions to such existing abattoirs or slaughterhouses.

(Code 1968, § 10-324; Ord. No. 81-1458, § 3, 8-4-81; Ord. No. 90-635, § 38, 5-23-90)

Sec. 10-273. Same—For rendering plants.

(a) It shall be unlawful for any person to erect, establish, enlarge or expand a rendering plant in the corporate limits of the city within 600 feet of any:

(1) Church;

(2) Public park;

(3) School;

(4) Hospital;

(5) College or university;

(6) Established eating place; or

(7) Any dwelling resided in by anyone other than the applicant or employees of the rendering plant.

(b) The measurement of such distance of 600 feet shall be in a straight line from the nearest point on the nearest real property line of the church, public park, school, hospital, college, university, eating establishment, or dwelling to the nearest exterior portion of any building, outbuilding, or structure or facility used or useful in connection with the rendering plant to be erected.

(c) This section shall not apply to rendering plants in existence on October 27, 1965, to the extent that they were then in existence, but shall apply to all additions and extensions to such existing rendering plants.

(Code 1968, § 10-325; Ord. No. 81-1458, § 3, 8-4-81)

Secs. 10-274—10-295. Reserved.

ARTICLE VIII. BUILDINGS CONSTITUTING FIRE HAZARDS GENERALLY

Sec. 10-296. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings

ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Building.* The term "building" is used in this article in its customary and ordinary meaning, but where a shed or attachment has been built onto an original structure, or where two or more buildings have been joined together, or where a second building has been built adjacent to the first and utilizes a wall of the first building as a party wall, all parts shall be considered one building.

(2) *Combustible fibre.* The term "combustible fibre" shall mean and include cotton, sisal, henequen, ixtle, jute, hemp, tow, cocoa, fibre, oakum, baled waste, baled wastepaper, kapok, hay, straw, Spanish moss and excelsior.

(3) *Lodging house.* The term "lodging house" is used in this article in its ordinary and customary meaning and shall also mean and include hotels, boarding home, as defined in section 28-451 of this Code, lodging facilities, as defined in section 28-601 of this Code, rooming houses, tenement houses, or any other house (by whatever name known) used and occupied, or designed and constructed so that the same may be used and occupied, for the permanent or temporary occupancy for living quarters for ten or more persons.

(4) *Owner.* The term "owner" is used in this article in its customary and ordinary meaning and, in addition thereto:

a. If the building is owned by two or more persons, each shall be responsible hereunder as an owner.

b. If the building is owned or leased by a corporation, the president, the general agent (if there be one), the general manager (if there be one), and each member of the board of directors shall be responsible hereunder as an owner.

c. If the building is owned by one and leased to another, the responsibility hereunder shall be the responsibility of both the lessor and lessee and each or both may be held accountable for a violation hereof, and the term "owner" shall include "lessee."

d. If the building is the property of an estate under administration, in custodia legis, or held in trust, the executor, administrator, guardian, receiver or trustee shall be responsible hereunder as an owner.

(Code 1968, § 18-35; Ord. No. 73-2079, § 1, 11-21-73; Ord. No. 2018-225, § 7, 3-22-2018)

Sec. 10-297. Purpose and intent.

The purpose and intent of this article is to protect human life from destruction by fire. The chief offense denounced herein is the offense of permitting a building to be occupied by human beings when there is serious danger of loss of life from conflagration of the building due to dangerous conditions therein existing. All persons have a lawful right to peaceable occupancy and use of property owned by them but no person has a right to occupy or use or to profit from the occupancy or use of a building which seriously hazards human life, and the police power of the state, delegated to this city, is hereby invoked in prevention thereof. Connected offenses are also denounced by this article in furtherance of the principal intent.

(Code 1968, § 18-36; Ord. No. 73-2079, § 1, 11-21-73)

Sec. 10-298. Fire hazards enumerated.

The following shall be considered fire hazards:

(1) Any building containing electrical wiring or appliances in a dangerous and defective condition likely to cause fire. Electrical wiring and appliances installed or in use that are not in compliance with the provisions of any ordinance of the city regarding wiring and appliances and the installation thereof shall be deemed dangerous and defective.

(2) Any building containing gas plumbing or appliances in a dangerous and defective condition likely to cause fire. Gas plumbing or appliances installed or in use that

are not in compliance with the provisions of any ordinance of this city regulating plumbing and appliances and the installation thereof shall be deemed dangerous and defective.

(3) Any building where flammable or combustible liquids are used or stored in violation of any applicable provisions of the Fire Code.

(4) Any building of wooden frame construction wherein any cafe or restaurant business is operated, unless the walls and ceilings of that portion of the building in which the cafe or restaurant is operated are separated from the remainder of the building by one-hour fire-resistive materials.

(5) Any building of wooden frame construction wherein any automobile repair or service business is carried on unless fire-resistive separation is installed as provided in item (4) above.

(6) Any building of wooden frame construction wherein any combustible fibers are stored in quantities in excess of 100 cubic feet or wherein combustible fibers of a quantity less than 100 cubic feet are stored other than in a metal-lined wooden bin equipped with a self-closing metal cover.

(7) Any lodging house being operated in a two-story building of wooden frame construction; provided, however, that no such lodging house shall constitute a fire hazard if:

a. The ceiling of the first floor is separated from the floor of the second by one-hour fire-resistive materials; and

b. The walls between the rooms are insulated by one-hour fire-resistive materials that extend from ceiling to floor; and

c. The stairways, including the doors, platforms, landings, railings and corridors or passageways constructed in connection therewith, in all ways conform to the provisions of the *Building Code*; and

d. The floors, walls, and frame of the house are in safe and sound structural condition; and

e. The building does not otherwise constitute a fire hazard as defined herein.

(8) Any wooden frame building a substantial portion of which is in a state of dilapidation and in an advanced stage of rot and the deteriorated condition of the building renders its occupancy extremely hazardous to human life due to the increased likelihood of the occurrence of fire and the increased danger of its rapid and violent spread.

(9) Though not otherwise defined herein, any building wherein there exists a dangerous, defective and hazardous condition the nature of which renders the occupancy of the building an extreme risk to human life and the continued existence of which will, under all probabilities, result in a loss of human life.

(Code 1968, § 18-37; Ord. No. 73-2079, § 1, 11-21-73; Ord. No. 95-279, § 9, 3-15-95; Ord. No. 02-399, § 36, 5-15-02; Ord. No. 2021-1037, § 20(Exh. I.15), 12-1-2021, eff. 4-1-2022; Ord. No. 2022-234, § 3, 3-30-2022)

Sec. 10-299. Initial placarding.

(a) Whenever the fire marshal shall find that any building within the city constitutes a fire hazard, he shall forthwith cause to be posted on or near the front door of such building, in as conspicuous a manner as possible, a substantial placard upon which shall be printed in red, in letters at least 2½ inches high, the words "WARNING—FIRE HAZARD," and on which placard there shall also appear the following words:

"THIS BUILDING IS A FIRE HAZARD. ITS OCCUPANCY IS DANGEROUS TO HUMAN LIFE. THE OWNER AND ALL OCCUPANTS ARE DIRECTED BY LAW TO COMMUNICATE IN PERSON OR BY

TELEPHONE, IMMEDIATELY, WITH THE OFFICE OF THE FIRE MARSHAL OF THE CITY OF HOUSTON."

(b) Such placard may contain other information deemed advisable by the fire marshal. Like placards shall be placed in or on other portions of the building as may be deemed necessary by the fire marshal.
(Code 1968, § 18-38; Ord. No. 73-2079, § 1, 11-21-73)

Sec. 10-300. Notice to owner.

(a) The fire marshal shall give notice to the owner of the building placarded in accord with section 10-299 of this Code that the same constitutes a fire hazard, stating substantially what conditions exist giving rise to same and substantially what measures should be taken to abolish the hazard. Such notice shall normally be given in writing by mail or delivery, but may be given orally if the circumstances are urgent and delay would endanger life.

(b) The fire marshal shall find and determine from the existing facts what maximum amount of time may be safely permitted the owner to abolish the fire hazard, without materially increasing the danger of life, and shall specify in his notice to the owner the extent of such time limit.

(c) Where the fire marshal cannot, by the exercise of reasonable diligence, ascertain the identity or the residence of the owner, or is wholly unable to communicate with him for any reason, it shall be sufficient for the fire marshal to post a written notice near his placard on the building.
(Code 1968, § 18-39; Ord. No. 73-2079, § 1, 11-21-73)

Sec. 10-301. Duty of owner to abolish hazard.

(a) Whenever any owner shall be given notice as provided in section 10-300 of this Code, he shall forthwith take such action as may be necessary to abolish the fire hazard. He shall do so by either correcting the physical condition or conditions which cause fire, or by causing the building to be vacated of human occupancy. Purported or alleged inability to abolish the hazard in one way will not excuse failure to abolish it in the other. He shall take all necessary action and abolish the fire hazard within the time limit which the fire marshal has found from the facts may safely be allowed.

(b) Any owner of any building who shall receive notice from the fire marshal that the building is a fire hazard as provided in section 10-300 of this Code and shall fail or refuse to abolish the fire hazard within the maximum time limit found by the fire marshal as provided in section 10-300 of this Code shall be fined not less than $250.00 nor more than $2,000.00. Each day such fire hazard continues to exist after the expiration of the time limit shall constitute a separate offense.
(Code 1968, § 18-40; Ord. No. 73-2079, § 1, 11-21-73; Ord. No. 92-1449, § 24, 11-4-92)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

Sec. 10-302. Acceptance of rent prohibited until hazard abolished.

(a) Any owner of any building who shall receive notice from the fire marshal that the building is a fire hazard as provided in section 10-300 of this Code and shall fail or refuse to abolish the fire hazard within the maximum time limit found by the fire marshal as provided in section 10-300 of this Code and shall, after the expiration of such time limit, accept payment of rent from any person as consideration for occupying such building or any portion thereof shall be guilty of a misdemeanor and, upon conviction, shall be fined not less than $250.00 nor more than $2,000.00. This offense shall be separate and distinct from the offense denounced in section 10-301 of this Code. Each acceptance of payment of rent shall constitute a separate offense.

(b) Any owner of any building who has received notice from the fire marshal that the building is a fire hazard as provided in section 10-300 of this Code and, without abolishing the fire hazard, thereafter rents any portion of the building to

some person not theretofore renting or occupying same, shall be fined not less than $250.00 nor more than $2,000.00.
(Code 1968, § 18-41; Ord. No. 73-2079, § 1, 11-21-73; Ord. No. 92-1449, § 25, 11-4-92)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

Sec. 10-303. Discontinuing electric service.

When any fire hazard is permitted to continue in existence by the owner after receiving the notice provided in section 10-300 of this Code, and after the expiration of the time limit as determined under section 10-300 of this Code, if the fire marshal shall find and determine from the facts that the danger to human life is materially increased by the electrical wiring and appliances present in the building, he shall give notice to the public utility company supplying electrical current to such building, to disconnect its service and forthwith cease supplying electrical current thereto. It shall thereupon be the duty of the chief officer of the company in active charge of its operations to cause such service to be disconnected and the supply of electrical current discontinued, immediately.
(Code 1968, § 18-42; Ord. No. 73-2079, § 1, 11-21-73)

Sec. 10-304. Discontinuing gas service.

When any fire hazard is permitted to continue in existence by the owner after receiving the notice provided in section 10-300 of this Code, and after the expiration of the time limit as determined under section 10-300 of this Code, if the fire marshal shall find and determine from the facts that the danger to human life is materially increased by the gas plumbing and appliances present in the building, he shall give notice to the public utility company supplying gas to such building, to disconnect its service and forthwith cease supplying gas thereto. It shall thereupon be the duty of the chief officer of the company in active charge of its operations to cause such service to be disconnected and the supply of gas discontinued, immediately.
(Code 1968, § 18-43; Ord. No. 73-2079, § 1, 11-21-73)

Sec. 10-305. Second placarding.

(a) Whenever the fire marshal shall find that a fire hazard continues to exist after the giving of notice and the expiration of the time limit provided in sections 10-300 and 10-301 of this Code, he shall cause to be posted on or near the front door of such building, in as conspicuous a manner as possible, a second substantial placard upon which shall be printed in red in letters at least two and one-half inches high the words, "SECOND WARNING—FIRE HAZARD," and on which placard there shall also appear the following words:

> "THE TIME LIMIT HAS EXPIRED FOR THE CORRECTION OF THE CONDITIONS WHICH MAKE THIS BUILDING A FIRE HAZARD, AND THEY HAVE NOT BEEN CORRECTED.
>
> "THE FURTHER OCCUPANCY OF THIS BUILDING BY ANY PERSON IS PROHIBITED BY LAW AS IT IS DANGEROUS TO LIFE.
>
> "THIS NOTICE IS POSTED (Here the notice shall show the date and hour). ALL PERSONS ARE REQUIRED BY LAW TO VACATE SAME NOT LATER THAN FORTY-EIGHT HOURS AFTER SUCH TIME, AND ARE PROHIBITED FROM RE-ENTERING SAME UNTIL THE FIRE MARSHAL FINDS THAT THE FIRE HAZARD HAS BEEN ABOLISHED.
>
> "FOR FURTHER INFORMATION, CALL THE FIRE MARSHAL OF THE CITY OF HOUSTON."

(b) Such placard may contain other information deemed advisable by the fire marshal.
(Code 1968, § 1844; Ord. No. 73-2079, § 1, 11-21-73)

Sec. 10-306. Unlawful occupancy or entry.

After 48 hours from the stated hour of the posting of the second placard pursuant to section 10-305 of this Code, as shown therein, it shall be

unlawful for any person to occupy the building as living quarters or to enter or remain in same except for short visits not exceeding 30 minutes in any one day, during daylight hours, after first giving notice to the fire marshal's office of intention to enter; provided, that, after first giving notice to the fire marshal's office and subject to his regulation, the owner may cause persons to enter the premises for the purpose of correcting the physical conditions which give rise to the hazard.
(Code 1968, § 18-45; Ord. No. 73-2079, § 1, 11-21-73)

Sec. 10-307. Allowing reoccupancy without correcting hazardous condition.

Any owner of any building who receives a notice from the fire marshal that the building is a fire hazard as provided in section 10-300 of this Code, and abolishes the fire hazard by causing the building to be vacated of human occupancy and thereafter reconstitutes the fire hazard by allowing or causing human occupancy to be resumed without correcting the hazardous physical condition of the building shall be guilty of a misdemeanor and, upon conviction, shall be fined not less than $250.00 nor more than $2,000.00 and each day that such reconstituted fire hazard continues to exist shall be a separate offense. No additional notice from the fire marshal shall be required in such cases.
(Code 1968, § 18-46; Ord. No. 73-2079, § 1, 11-21-73; Ord. No. 92-1449, § 26, 11-4-92)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

Sec. 10-308. Unlawful removal or defacing of placards.

Any person who shall tear down or deface any placard posted by the fire marshal under the provisions of this article shall be guilty of a misdemeanor and, upon conviction, fined not less than $250.00 nor more than $2,000.00.
(Code 1968, § 18-47; Ord. No. 73-2079, § 1, 11-21-73; Ord. No. 92-1449, § 27, 11-4-92)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

Sec. 10-309. Removal of placards after conditions remedied.

Whenever the fire marshal finds that the physical conditions causing a fire hazard defined in this article no longer exist, he shall forthwith notify the owner and remove his placard or placards. After such finding, it shall be lawful to occupy the building.
(Code 1968, § 1848; Ord. No. 73-2079, § 1, 11-21-73)

Sec. 10-310. Enforcement officers.

For the purpose of the enforcement of this article, any assistant fire marshal, city arson investigator or inspector of the fire prevention division of the fire department shall be deemed to be a deputy of the fire marshal and any of the powers and duties given the fire marshal by this article may be exercised by any such deputy on behalf of the fire marshal.
(Code 1968, § 18-49; Ord. No. 73-2079, § 1, 11-21-73)

Sec. 10-311. Alternative remedies.

Any building in which one or more of the fire hazard conditions enumerated in section 10-298 above exists is hereby declared a public nuisance and a fire hazard. The fire marshal is hereby expressly authorized and directed to take or initiate appropriate action for the abatement thereof pursuant to this article or any other applicable provisions of this Code, including without limitation, article IX of this chapter and the city's Fire Code. Notwithstanding, the availability of any other remedies and sanctions the fire marshal is authorized and directed to proceed with immediate abatement action pursuant to this article whenever he finds upon inspection

thereof that the continued occupancy of any building constitutes a substantial hazard to human life from potential conflagration of the building.
(Code 1968, § 18-50; Ord. No. 73-2079, § 1, 11-21-73)

Secs. 10-312—10-315. Reserved.

ARTICLE IX. BUILDING STANDARDS*

DIVISION 1. GENERALLY

Sec. 10-316. Title.

This article is, and may be cited as, the "Houston Building Standards Code."
(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-317. Definitions.

When used in this article, the following words and phrases have the meaning stated, unless the context of their usage clearly indicates another meaning:

Building standards official means the neighborhood protection official or the building official or the fire code official (as defined in the *Fire Code*), according to their respective enforcement responsibilities as provided in this article or in the *Fire Code*.

Commission means the building and standards commission created by this article.

Congregate living facility means a building containing facilities for living, sleeping, and sanitation for occupancy by other than a family. Examples of congregate living facilities include shelters, convents, monasteries, dormitories, boarding homes, as defined in section 28-451 of this Code, lodging facilities, as defined in section 28-601 of this Code and rooming houses, and fraternity and sorority houses. Notwithstanding the foregoing, the following buildings are not congregate living facilities:

(a) Jails;

(b) Hotels (as defined by article III of chapter 44 of this Code); and

(c) Buildings providing sleeping facilities primarily for the purpose of rendering services regulated by a department or agency of the federal government or of the State of Texas (including, but not limited to, the Texas Department of State Health Services).

Dwelling means a property containing not more than two dwelling units.

Dwelling unit means a single unit providing complete independent living facilities for one or more individuals, including permanent provisions for living, sleeping, eating, cooking, and sanitation. Notwithstanding the foregoing, units in the following buildings are not dwelling units:

(a) Jails;

(b) Hotels (as defined by article III of chapter 44 of this Code); and

(c) Buildings providing sleeping facilities primarily for the purpose of rendering services regulated by a department or agency of the federal government or of the State of Texas (including, but not limited to, the Texas Department of State Health Services).

Family means an individual; or two or more individuals related by blood or by marriage; or a group of not more than ten individuals, who need not be related by blood or marriage, living together in a dwelling unit.

Habitable space means a room or other interior space lawfully occupied for living, sleeping, eating, or cooking. Bathrooms, toilet rooms, closets, halls, storage rooms, and utility rooms are not habitable spaces.

Hearing officer means the individual, whether one or more, designated by the mayor

*__Editor's note—__Ord. No. 2011-108, § 4, adopted February 9, 2011, amended Ch. 10, Art. IX to read as herein set out. Former Art. IX pertained to Comprehensive Urban Rehabilitation and Building Minimum Standards and derived from Ord. No. 93-1570, § 1, 12-8-93 and subsequent amendatory ordinances. See the Code Comparative Table for a detailed list of amendatory ordinances.

to conduct administrative hearings as provided by this article; to consider evidence of violations of this article and of certain provisions of the Fire Code, as provided therein or in this Code; and to enter orders as are supported by the evidence.

Kitchen means an area used, or designated to be used, for the preparation of food.

Manager means an individual authorized by the owner of property to control or supervise the property.

Occupant means an individual having lawful possession of a building or a portion thereof, including a tenant of the building and his invitees.

Overcrowded describes:

(1) A dwelling unit or a congregate living facility not containing at least 150 square feet of net floor area for the first resident and at least 100 square feet of additional net floor area for each additional resident; or

(2) A dwelling unit or a congregate living facility of two or more rooms not containing at least 70 square feet of net floor area in each room occupied by one resident for sleeping purposes; or

(3) A dwelling unit or a congregate living facility of two or more rooms not containing at least 50 square feet of net floor area per resident in each room occupied by more than one resident for sleeping purposes;

provided that, in a calculation of net floor area for the purposes of this article, children younger than one year old shall not be considered residents; children at least one year old but younger than six years old shall be considered one-half of one resident; and floor area in a room with a ceiling height of less than seven feet shall not be included in the calculation.

Owner means

(1) A person who holds one of the following legal interests in real property:

a. Fee simple title;

b. Life estate; or

c. Leasehold estate, unless the context differentiates between owner and tenant or resident, in which case "owner" means a lessee with a lease term of five or more years; or

(2) A person (such as an executor, receiver, or trustee, depending upon the terms of the person's appointment) who by operation of law holds rights in real property materially equal to those of a holder of fee simple title; or

(3) The buyer in a contract for deed.

Premises or *property* means a parcel of land and any structures on the parcel; for the purposes of this article, real property to which one account number has been assigned by the appraisal district in which the land is located constitutes one parcel of land.

Record proceeding refers to an administrative proceeding conducted pursuant to this article, if the proceeding is related directly to a property with an appraised value exceeding $250,000.00 (including improvements), according to the most recent information available at a public website maintained by the appraisal district in which the property is located, and if the proceeding:

(1) Includes a request by the building standards official for entry of an order, declaration, or directive; or

(2) Is a hearing conducted pursuant to section 10-394 of this article.

Refuse means garbage, rubbish, or anything discarded or rejected as useless or worthless.

Resident means an individual lawfully residing in a building.

Sanitary describes a condition of good order and cleanliness reasonably likely to preclude the transmission of disease.

Secure, when used in the context of a vacant building, means to take measures necessary to prevent unauthorized entry into the building, which measures shall be in accordance with the specifications on file in the office of the city secretary for the purposes of this article, unless a variance from the specifications is approved in writing by the building standards official. To the extent an order of the hearing officer, the commission, or a court of lawful jurisdiction establishes or adopts other criteria for securing a building, a building satisfying those criteria is considered secured.

Serious and immediate hazard means a condition that violates this article and that in the absence of immediate corrective action by the city presents a reasonable likelihood of causing serious bodily injury to a human being. For purposes of illustration only, examples of serious and immediate hazards include (a) a condition presenting a reasonable likelihood of electrocution or asphyxiation; (b) a structure reasonably likely to collapse; and (c) a vacant structure in which there is a reasonable likelihood that an individual with no right of entry may commit a violent criminal act while shielded from public view. The existence of a serious and immediate hazard may be determined from the personal observation of any person or from circumstantial evidence.

Sleeping unit means a room or other interior space occupied, with the permission of the owner of the property, for sleeping and other living purposes, which space may include sanitation or kitchen facilities but not both. Notwithstanding the foregoing, spaces in the following buildings are not sleeping units:

(1) Jails;

(2) Hotels (as defined by article III of chapter 44 of this Code); and

(3) Buildings providing sleeping facilities primarily for the purpose of rendering services regulated by a department or agency of the federal government or of the State of Texas (including, but not limited to, the Texas Department of State Health Services).

Substandard building means a building characterized by any of the conditions described in Section 214.001(a), Texas Local Government Code.

Vacant describes a structure in which there is no lawful residential, commercial, recreational, charitable, religious, or construction activity.

Weatherproof describes a structure able to protect occupants from exposure to precipitation, wind, and direct sunlight.

(Ord. No. 2011-108, § 4, 2-9-2011; Ord. No. 2013-296, §§ 17, 18, 4-3-2013; Ord. No. 2018-225, § 8, 3-22-2018; Ord. No. 2021-1037, § 20(Exh. I.16), 12-1-2021, eff. 4-1-2022)

Sec. 10-318. Scope; responsibility for enforcement.

(a) This article applies to all structures, regardless of when they were constructed, altered, or repaired, except as otherwise may be provided by this Code.

(b) The neighborhood protection official is primarily responsible for the enforcement of this article with regard to dwellings. The building official is primarily responsible for the enforcement of this article with regard to all other properties.

(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-319. Article supplemental.

The provisions of this article are cumulative of all other ordinances, laws, and applicable regulations. Without limitation of the foregoing, any act to secure, repair, or demolish a structure ordered pursuant to this article must comply with all applicable requirements of this Code, specifically including the Construction Code and division 4 of article VII of chapter 33 of this Code. Furthermore, this article shall not be construed to limit the enforcement authority of

officers of the police department, specifically including members of the police department's Differential Response Team.
(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-320. Authority to enter property; warrants; emergencies.

(a) For purposes related to the enforcement of this article, the building standards official may enter:

(1) Vacant property, provided that

a. The building standards official does not alter or damage the property; and

b. No owner of the property has denied the building standards official permission to enter the property; and

(2) Occupied property, but only with written or verbal permission from an owner, manager, or other person who reasonably appears to be in control of the property, unless otherwise provided by this article.

(b) If the building standards official is denied permission to enter a property, entry shall be made only under authority of a warrant issued by a magistrate.

(1) In applying for a warrant, the building standards official shall submit to the magistrate an affidavit, which may be based on information supplied by others, describing with reasonable specificity the property into which entry is sought, stating facts giving rise to the building standards official's reasonable belief that the property is in violation of this article, and, to the extent known by the building standards official after reasonable inquiry, the name and contact information of the owner, manager, or other person in control of the property.

(2) If the magistrate finds that probable cause exists for entry into the property by the building standards official, the magistrate shall issue a warrant authorizing the entry. The warrant shall constitute authority for the building standards official to enter and to inspect the property, to gather evidence by any reasonable means, including photography and videography, and to procure samples and specimens as reasonably necessary to determine the existence and extent of a violation of this article. It is unlawful for a person to interfere or to refuse compliance with a warrant issued pursuant to this section.

(c) Notwithstanding anything to the contrary in this section, if the building standards official reasonably believes that a serious and immediate hazard exists on a property, the building standards official may enter the property at any time. In such circumstances the building standards official:

(1) May be accompanied by other city employees, including officers of the police department;

(2) Shall make every reasonable effort to present proper identification to the owner, manager, or other persons who appear to have a right to occupy or to control the property;

(3) Shall remain on the property only for such time as is reasonably necessary to conduct inspections and to gather evidence required to determine whether a serious and immediate hazard exists on the property; and

(4) As soon as reasonably possible, shall memorialize the circumstances of his entry into the property. The memorialization may be typed, handwritten, or in electronic form and shall be preserved in the records of the building standards official.

After expiration of the time prescribed in subsection (c)(3) of this section, the building standards official may enter a property only under the authority of subsections (a) or (b) of this section.
(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-321. Alternative means of posting notice.

If an official responsible for posting a placard or other notice pursuant to this article reasonably believes posting the notice in the manner prescribed will present a danger to any individual, the official may post the notice in another manner reasonably likely to accomplish the intent of the notice.
(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-322. No alteration of lease or other agreement.

The terms of this article shall not be construed to alter the terms of a lease or other agreement between landlord and tenant or others relating to property that is a subject of this article; provided that no provision of a lease or other

agreement shall be construed to excuse compliance with this article by any person. It is the intent of this article to identify the parties the city will hold responsible for compliance with and violations of this article, rather than to determine the rights and liabilities of persons under agreements to which the city is not a party.
(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-323. Responsibilities of the city attorney.

(a) The city attorney and attorneys acting at the direction of the city attorney shall:

(1) Provide legal advice and assistance as requested by the building official or by the neighborhood protection official related to the discharge of their respective duties under this article, which assistance may include the presentation of evidence, the examination of witnesses, and written and oral advocacy;

(2) Provide legal advice and assistance as requested by the hearing officer or by a member of the commission related to the discharge of their respective duties under this article; and

(3) Take all legal action reasonable and necessary to carry out the terms and provisions of this article, which action may include, but is not limited to, prosecution in the municipal courts of criminal citations issued for violations of this article and prosecution of civil lawsuits as authorized by this Code, by statute, or by common law.

(b) In the event the city attorney is requested by the building official or the neighborhood protection official and the hearing officer or a member of the commission to provide legal advice or assistance related to the same proceeding or to the same property, the city attorney shall take all actions reasonably necessary to protect the fairness of the proceeding, especially with regard to the rights of alleged violator(s).
(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-324. Penalty for violations.

Unless a different penalty is provided elsewhere in this Code, a person violating a provision of this article shall be guilty of a misdemeanor, and, upon conviction, shall be fined not less than $200.00 nor more than $2,000.00. Each day a violation continues shall constitute a separate offense. It shall be an affirmative defense to prosecution under this article that compliance with this article or an order issued pursuant hereto was prevented as a result of the time for review and appeal following application for a certificate of appropriateness for mandatory repair pursuant to section 33-249 of this Code.
(Ord. No. 2011-108, § 4, 2-9-2011)

Secs. 10-325—10-330. Reserved.

DIVISION 2. ADMINISTRATIVE HEARINGS BEFORE HEARING OFFICER

Sec. 10-331. Authority of the hearing officer.

The hearing officer is authorized to conduct public administrative hearings and to enter orders in the manner provided by this article and to the extent authorized by Subchapter A of Chapter 214, Texas Local Government Code, and this article, or by the Fire Code.
(Ord. No. 2011-108, § 4, 2-9-2011; Ord. No. 2013-296, § 19, 4-3-2013)

Sec. 10-332. Hearings before the hearing officer.

(a) The city attorney may recommend to the hearing officer rules and procedures as are reasonable and necessary for the enforcement of this article.

(b) The building official shall designate a city employee to maintain the office of the hearing officer and to preserve all records of the hearing officer for at least three years after the records are created and as otherwise required by law.

(c) Notice of all hearings before the hearing officer shall be given as required by Subchapter A of Chapter 214, Texas Local Government Code, and by this Code.

(d) In each public proceeding before the hearing officer, the first order of business shall be for the building standards official to state whether or not he intends to request entry of an order, declaration, or directive related to a subject of the proceeding. The building standards official's statement shall be noted in the minutes or other record of the proceeding. Subject to subsection (f) of this section, if the building standards official states that he intends to request entry of an order, declaration, or directive related to a subject of the proceeding, the hearing officer shall cause the proceeding to be recorded by a court reporter, a video recorder, or other means sufficient to ensure the availability of a record for judicial review.

(e) Any person who complies with the requirements of this subsection may record a public proceeding before the hearing officer by any reasonable method that does not disrupt, delay, or otherwise burden the proceeding. Otherwise, the proceeding may not be recorded. In each public proceeding before the hearing officer, the second order of business shall be for the hearing officer to ask if any person present intends to record the proceeding. Any person who answers in the affirmative shall state his name and mailing address and tender to the hearing officer for review a valid, government-issued identification document, which document must include the person's photograph. The names and addresses of all persons answering in the affirmative shall be noted in the minutes or other record of the proceeding. This subsection is not applicable to persons recording the proceeding at the request of the hearing officer.

(f) A record proceeding conducted by the hearing officer shall be recorded by a court reporter certified by the Texas Court Reporters Certification Board. The building standards official shall pay a reasonable and customary fee to the court reporter for the recording services. Any person, including an employee of the city, may purchase a transcript of the proceeding (or a physical or electronic copy of a transcript of the proceeding, if available) after payment of a reasonable and customary fee to the court reporter. Notwithstanding anything to the contrary in this subsection, the building standards official shall not pay any fee to a court reporter who is an employee of the city.

(g) A proceeding conducted by the hearing officer may be postponed once for good cause shown; the existence of "good cause" shall be determined by the hearing officer in the exercise of his sole but reasonable discretion.

(h) Unless otherwise provided by this article, in a proceeding before the hearing officer in which the building standards official requests entry of an order, declaration, or directive, the factual and legal basis for the request shall be presented to the hearing officer by a person designated by the building standards official, which person may be an assistant city attorney. During the proceeding, the following persons may present testimony and other evidence on relevant issues and may cross-examine witnesses:

(1) The building standards official;

(2) An owner, resident, sublessor, or lessee of the property that is the subject of the proceeding;

(3) A person who has a lien against, or other legal interest in, the property that is the subject of the proceeding, according to:

a. The real property records of the county in which the property is located; or

b. A publicly available database maintained by the appraisal district in which the property is located;

(4) An owner, resident, sublessor, or lessee of a property adjoining the property that is the subject of the proceeding;

(5) A licensed attorney authorized to represent a person listed in subparts (1)—(4) of this subsection; and

(6) Any other person whom the hearing officer reasonably concludes is likely to further his understanding of the evidence or to assist his determination of a fact in issue.

(i) Before testifying, each witness shall be required to declare that he will testify truthfully, by an oath or affirmation administered by the hearing officer and in a form calculated to awaken the witness's conscience and to impress the witness's mind with his duty to testify truthfully.

(j) If no person having a possessory or other legal interest in the property appears before the hearing officer on the date and at the time for which the proceeding has been noticed, the building standards official shall proceed with the presentation of the evidence of the alleged violation(s).

(k) Upon consideration of the evidence and arguments presented at the proceeding, the hearing officer shall issue a written order that sustains one or more of the allegations of the building standards official or that dismisses one or more of the allegations and that orders relief, if and as authorized by this article, provided that any relief ordered by the hearing officer shall be reasonably proportionate to the threat to human health or safety presented by the violation. The order may include findings by the hearing officer, but findings are not required.

(l) Promptly after the hearing officer has issued a written order under this section, the building standards official shall give notice of the order in the manner required by Subchapter A of Chapter 214, Texas Local Government Code, and by this Code.

(m) Without the necessity of a hearing, the building standards official shall provide in recordable form a release of an order entered pursuant to this division upon:

(1) Payment of any fee required by this Code; and

(2) Presentation to the building standards official of:

a. A certificate of compliance issued by the Houston Public Works; or

b. A written report of a timely, personal inspection of the subject property by an employee of the department of neighborhoods, from which report the building standards official reasonably has concluded that all actions required by the subject order have been completed.

(Ord. No. 2011-108, § 4, 2-9-2011; Ord. No. 2011-697, § 10, 8-10-2011; Ord. No. 2018-11, § 50, 1-10-2018)

Secs. 10-333—10-340. Reserved.

DIVISION 3. ADMINISTRATIVE HEARINGS BEFORE BUILDING AND STANDARDS COMMISSION

Sec. 10-341. Building and standards commission created.

The building and standards commission of the city is hereby created. The commission shall function in the manner authorized by Subchapter C of Chapter 54, Texas Local Government Code. The commission shall conduct administrative hearings as provided by this article, to consider evidence of violations of this article, and to enter orders as are supported by the evidence. (Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-342. Members of the commission; terms.

(a) The commission consists of two commission panels, each of which shall be composed of five regular members appointed by the mayor and confirmed by the city council. At least one member of each commission panel shall be generally familiar with housing for low-income or homeless persons.

(b) The mayor also shall appoint eight alternate members to the commission, which members shall be confirmed by the city council. At the request of the neighborhood protection official, which request shall be noted in the records of the commission, in the absence of a regular member an alternate member may serve on either commission panel.

(c) Each regular and alternate member shall serve for a term of two years and, absent unusual circumstances as determined by the mayor's office of boards and commissions, shall hold over

until the member's successor is appointed and confirmed. Each regular panel position shall be numbered consecutively within each panel as positions one through five, and each alternate position shall be numbered consecutively as positions one through eight. Each member of the commission, regular or alternate, shall be appointed to a specific numbered position. The terms of each even-numbered position shall begin on the first day of each even-numbered year and end on the last day of each odd-numbered year, and the terms of each odd-numbered position shall begin on the first day of each odd-numbered year and end on the last day of each even-numbered year. A vacancy in any position shall be filled for the remainder of the unexpired term.

(d) At its first meeting of each calendar year, the commission as a whole shall elect a chairman to preside over its meetings. A quorum of the commission as a whole consists of a total of 14 members, whether regular members or alternates.

(e) A quorum of a commission panel consists of three members. An affirmative vote of three members of each commission panel is required for the issuance of an order by the commission panel. A tie vote shall be treated as a vote to deny the relief requested. No member of the commission may abstain from a vote unless before the vote the member publicly announces the factual basis for his reasonable belief that he has a conflict of interest related to the subject of the vote.

(f) Each commission panel shall elect a chairman and vice chairman at its first meeting of each calendar year and may convene at other times as necessary to function in the manner authorized by this article.

(g) A member of the commission, regular or alternate, may be removed as provided in Section 54.033(c), Texas Local Government Code.
(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-343. Authority of the commission.

For the enforcement of this article the commission is authorized to conduct public administrative proceedings, to enter orders, and to take actions to the extent and in the manner authorized by Subchapter C of Chapter 54, Texas Local Government Code.
(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-344. Hearings before the commission.

(a) The city attorney may recommend to the commission rules and procedures as are reasonable and necessary for the operation of the commission and the enforcement of this article. The commission as a whole shall adopt rules as required by Section 54.034, Texas Local Government Code.

(b) The neighborhood protection official shall designate a city employee to maintain the office of the commission and to preserve all records of the commission for at least three years after the records are created and as otherwise required by law. The city employee designated pursuant to

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this subsection may be the same city employee designated by the building official pursuant to section 10-332(b) of this Code.

(c) Notice of all proceedings before the commission shall be given as required by Section 54.035, Texas Local Government Code, or by Subchapter A of Chapter 214, Texas Local Government Code, and by this Code, as applicable to the proceeding.

(d) Proceedings before the commission shall be conducted essentially in the same manner prescribed by division 2 of this article for administrative hearings before the hearing officer.

(e) Promptly after the commission has issued a written order under this division, the neighborhood protection official shall give notice of the order in the manner required by Section 54.035, Texas Local Government Code, or by Subchapter A of Chapter 214, Texas Local Government Code, and by this Code, as applicable to the proceeding.

(f) In essentially the same manner prescribed by section 10-332(m) of this Code, the building standards official shall provide in recordable form a release of an order entered by the commission.
(Ord. No. 2011-108, § 4, 2-9-2011; Ord. No. 2011-697, § 11, 8-10-2011)

Secs. 10-345—10-360. Reserved.

DIVISION 4. MINIMUM STANDARDS

Sec. 10-361. Minimum standards generally; responsibilities of owners and occupants.

(a) It is unlawful for a person knowingly to allow a property of which the person has ownership or control to be kept or used in violation of this division.

(b) Each person who owns or otherwise has control of a property is responsible for maintaining in a sanitary condition the shared or public areas of the property and the premises thereof.

(c) Each occupant of a dwelling unit or a sleeping unit shall keep in a sanitary condition the part of the unit that the occupant occupies or controls.

(d) No person who owns, controls, or occupies real property shall use the property for the open storage of any dead tree, refuse, glass, building material, or of any inoperable motor vehicle, boat, refrigerator, stove, or other object of a reasonably similar size. For the purposes of this division, "inoperable" means either incapable of use for its intended purpose or reasonably appearing to be incapable of use for its intended purpose. It is an affirmative defense to prosecution for violation of this subsection that the person to whom the citation was issued was licensed by a proper authority to store the item in the manner in which it was stored at the time the citation was issued.

(e) A violation of this division does not of itself create a negligence per se standard or otherwise expand existing liability in tort.

(f) This division applies to manufactured homes and house trailers to the extent allowed by law.
(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-362. Congregate living facilities.

(a) Each building designed or used as a congregate living facility shall contain, at a minimum, the sanitary facilities and equipment shown below:

Toilets	*Lavatories*	*Tubs or Showers*
1 for each 8 individuals	1 for each 12 individuals	1 for each 8 individuals

(b) Except as otherwise provided by this Code, the minimum standards stated in section 10-363 of this Code apply to each sleeping unit within a congregate living facility.
(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-363. Responsibilities of owner.

(a) *General maintenance.* Each property shall be maintained by its owner in a safe and sanitary condition and in compliance with this division. Compliance with this division does not equate to compliance with the Construction Code, or vice versa.

(b) *Property standards.* An owner of property shall:

(1) Eliminate any unprotected hole, open excavation, sharp protrusion from the ground or walls, and any other object or condition on the premises reasonably likely to cause injury to an individual;

(2) Securely seal or plug any unused water well; secure any pump house and electrical service for operating water wells; remove an unused septic tank or grease trap, or pump the effluent and fill the tank or trap with soil or sand; remove or fill an unused cesspool or cistern with soil or sand; and securely cover all septic tanks or grease traps in service;

(3) Remove dead trees, tree limbs, and other debris reasonably likely to cause injury to an individual or to provide living or breeding places for insects, ectoparasites, or rodents, provided that a reasonably-sized accumulation of compost shall not constitute a violation of this subsection; and

(4) Keep doors and windows of any vacant portion of a building secured.

(c) *Structural standards.* An owner of property shall:

(1) Protect the exterior surfaces subject to decay by application of a protective covering or coating or other surface preservative;

(2) Fill any unprotected or unenclosed hollow masonry piers, foundation holes, and other openings reasonably likely to cause injury to an individual;

(3) Provide and maintain handrails for stairways, ramps, balconies, and porches more than 30 inches above grade;

(4) Maintain buildings intended for human occupancy in a weatherproof condition;

(5) Maintain floors, supporting walls, ceilings, and all supporting structural members in a sound and safe condition, capable of bearing imposed loads safely;

(6) Maintain each inside and outside stairway, porch, and appurtenance thereto in a sound and safe condition, capable of bearing imposed loads safely;

(7) Provide cross-ventilation of not less than 1½ square feet for each 25 linear feet of wall in each basement or crawl space not mechanically ventilated;

(8) Repair or replace any chimney flue or vent attachment reasonably likely to constitute a health or safety hazard;

(9) In a floor, wall, ceiling, porch, step, or balcony, repair any hole, crack, break, or loose material reasonably likely to constitute a health or safety hazard;

(10) For the flooring or subflooring of each bathroom and other room containing a toilet, provide and maintain a moisture-resistant finish or material, such as ceramic tile or vinyl; and

(11) Maintain all fences and accessory structures, including detached garages and sheds, in a structurally sound condition and in good repair.

(d) *Utility standards.* An owner of property shall:

(1) In each non-vacant dwelling unit and congregate living facility, provide and maintain in good operating condition one or more connections to discharge sewage from the building into a public sanitary sewer system, where service is available, or into an approved septic system where public sanitary sewer service is not available;

(2) In each non-vacant dwelling unit and congregate living facility, provide and maintain in good operating condition a toilet located in a room affording privacy to the user and connected to a water source and to a public sanitary sewer system, where service is available, or to an approved septic system where public sanitary sewer service is not available;

(3) In each non-vacant dwelling unit and congregate living facility, provide and main-

tain in good operating condition connections and pipes to supply potable water at adequate pressure;

(4) In each non-vacant dwelling unit and congregate living facility, provide and maintain in good operating condition a device to supply hot water at a minimum temperature of 120 degrees Fahrenheit;

(5) In each non-vacant dwelling unit and congregate living facility, provide a bathtub or shower in a room affording privacy to the user and maintain connections to sources of cold and hot water for each bathtub, shower, and lavatory;

(6) In each kitchen, provide and maintain connections to sources of cold and hot water for a sink;

(7) In each habitable space, provide and maintain in good operating condition heating equipment capable of maintaining a minimum inside temperature of 70 degrees Fahrenheit when it is 20 degrees Fahrenheit outside, the inside temperature to be measured at a point three feet above the floor;

(8) In each habitable space, if screens are not provided as required in subsection (e)(2) of this section, provide and maintain in good operating condition refrigerated air equipment capable of maintaining a maximum inside temperature 20 degrees Fahrenheit lower than the outside temperature or 80 degrees Fahrenheit, whichever is warmer;

(9) In each non-vacant building (except for buildings lawfully used exclusively for storage), provide and maintain in good operating condition such electrical circuits and outlets as are sufficient to carry safely an electrical load imposed by the normal use of equipment, appliances, and fixtures;

(10) In each habitable space, connect the space to an approved electrical service and provide and maintain in good operating condition either two wall-type convenience outlets or one wall-type convenience outlet and one ceiling-type light fixture with a wall switch;

(11) In each bathroom, toilet room, laundry room, and furnace room in a non-vacant building, connect the room to an approved electrical service and provide and maintain in good operating condition one ceiling or wall-type light fixture or one wall-type convenience outlet;

(12) Provide each public hall and stairway with illumination sufficient to allow occupants who are not visually impaired to use the hall or stairway without an unreasonable risk to safety; and

(13) In each non-vacant dwelling unit and congregate living facility, connect each heating or cooking device that burns solid fuel to a chimney or flue.

For purposes of this division, existing plumbing and electrical equipment and heating and cooling facilities that at the time of installation were in compliance with the then-existing Construction Code are permissible, provided the equipment or facility is in good operating condition and capable of being used in a safe manner.

(e) *Health standards.* An owner of property shall:

(1) Substantially eliminate insects, ectoparasites, and rodents in or on the premises, except as may be limited in section 10-364(b) of this Code;

(2) Provide and maintain a screen for keeping out insects at each exterior opening of each non-vacant dwelling unit, congregate living facility, and sleeping unit not cooled with refrigerated air;

(3) Maintain the interior of each vacant building or vacant portion of a building free from refuse;

(4) Properly grade the property surrounding a building to obtain thorough drainage and to prevent the accumulation of stagnant water;

(5) Provide each non-vacant dwelling unit, congregate living facility, and sleeping

unit with means of egress as required by the *Construction Code* in effect at the time of construction and as required by Appendix D to the *Existing Building Code;* and

(6) Provide a kitchen in each dwelling unit.

(f) *Light and ventilation standards.* An owner of property shall:

(1) Provide each habitable space with at least one window or skylight facing directly to the outdoors. The minimum total window area, measured between stops, for each such space shall be ten percent of the floor space of the room. Whenever walls or other portions of structures face a window of any such room and light-obstructing structures are located less than three feet from the window and extend to a level above that of the ceiling of the room, the window shall not be deemed to face directly to the outdoors and shall not be included as contributing to the required minimum total window area. Whenever the only window in a room is a skylight-type window in the top of the room, the total window area of the skylight shall equal at least 15 percent of the total floor space of the room. For purposes of this section, a sliding glass doors shall be considered equivalent to a window;

(2) Provide each habitable space with at least one window or skylight that can be opened easily, with a total openable window area in each such space equal to at least 40 percent of the minimum window area size or minimum skylight size, as required; or, where the Construction Code does not require windows, provide an approved ventilation system; and

(3) Provide each bathroom and toilet room with facilities meeting the light and ventilation standards for habitable spaces, except that no window or skylight is required in an adequately ventilated bathroom or toilet room equipped with an approved ventilation system.

(g) It is an affirmative defense to prosecution of an owner for violation of this section that (i) the property is the site of new construction and reasonable and continuous progress is being made to complete the construction; (ii) with respect to subsections (d)(3), (d)(4), and (d)(7) through (d)(11) of this section, that (A) the applicable utilities were disconnected from the premises by or at the instruction of the owner, who was legally authorized to cause the termination of utility service because of non-payment of rent, and (B) the tenant did not pay the utilities directly to the utility company, and (C) the premises otherwise were in substantial compliance with this division; or (iii) the violation was not capable of discovery by the owner upon reasonable investigation or inspection.
(Ord. No. 2011-108, § 4, 2-9-2011; Ord. No. 2021-1037, § 20(Exh. I.17), 12-1-2021, eff. 4-1-2022)

Sec. 10-364. Responsibilities of occupant.

(a) An occupant, with regard to any portion of a building under the occupant's control, shall:

(1) Keep the premises free from refuse and other conditions likely to encourage infestation by insects, ectoparasites, or rodents;

(2) Install in accordance with applicable codes and laws any plumbing fixtures, heating equipment, electrical equipment, and mechanical equipment supplied by the occupant; and

(3) Not alter the property so as to create a violation of this Code.

(b) With regard to dwellings, if the building was treated to eliminate insects, ectoparasites, and rodents by a duly licensed exterminator within either (i) two weeks before the date the resident took occupancy or (ii) the preceding six months if there has been more than one residential lease during the preceding six months, the resident of the structure is responsible for keeping the interior of the structure free from insects, ectoparasites, and rodents.
(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-365. Retaliation against residents prohibited.

It is unlawful for an owner or manager of a property to retaliate against a resident for reporting potential violations of this division. Without limitation of the foregoing, the actions constituting retaliation set forth in Subchapter H of Chapter 92, Texas Property Code, as may be amended from time to time, are hereby incorporated by reference and constitute events of retaliation under this section.
(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-366. Enforcement of minimum standards.

Upon discovery of a violation of this division, the building standards official may issue to the violator:

(1) A criminal citation enforceable in municipal court, provided that the violation remains after the building standards official has issued to the violator a written warning affording a reasonable opportunity to cure the violation; or

(2) An administrative citation or summons issued pursuant to article XVIII of this chapter.

(Ord. No. 2011-108, § 4, 2-9-2011)

Secs. 10-367—10-370. Reserved.

DIVISION 5. DANGEROUS BUILDINGS

Sec. 10-371. Dangerous buildings defined; existence unlawful.

(a) For the purposes of this article, the following are dangerous buildings, regardless of date of construction:

(1) A building with walls or other vertical structural members that list, lean, or buckle in excess of ¼ inch of horizontal measurement for each foot of vertical measurement;

(2) A building with 33 percent or more damage or deterioration of its supporting members, or 50 percent or more damage or deterioration of its non-supporting members or outside walls or coverings;

(3) A building with a floor or a roof of insufficient strength to be reasonably safe for the purpose used;

(4) A building with a part not properly attached so that the part may fall on or otherwise injure occupants of the building or members of the public;

(5) A building with light or air or sanitation facilities inadequate to protect the health and safety of the building's occupants;

(6) A building with unsafe electrical wiring;

(7) A building with unsafe natural gas piping or equipment;

(8) A vacant building, regardless of its structural condition, that has been unsecured for more than seven days (which days need not be consecutive) in any 30-day period;

(9) Even if secured from unauthorized entry, two or more vacant buildings under common ownership situated near one another in a manner as to allow criminal acts to be shielded from public view;

(10) An overcrowded dwelling unit or congregate living facility;

(11) A pool or other aquatic structure not enclosed as required by chapter 43 of this Code; and

(12) A property with a condition causing a building to be unfit for human occupancy or causing a danger to the public health, safety, or welfare.

(b) It is unlawful for a person knowingly to allow a property under the person's ownership or control to constitute a dangerous building.

(c) It is unlawful for a person to occupy, or to let to another person for occupancy, property that has been ordered vacated pursuant to this article.
(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-372. Dangerous buildings declared nuisances.

All dangerous buildings are hereby declared to be public nuisances and shall be vacated, secured, repaired, removed, or demolished as provided by this article.
(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-373. Duty of city employees to report dangerous buildings.

It is the duty of each city employee whose job responsibilities include the enforcement of any aspect of this Code, the Construction Code, or the Fire Code to report to the 3-1-1 Houston Service Helpline the existence of a property that reasonably appears to be a dangerous building.
(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-374. Administrative hearing.

(a) If a property other than a dwelling is in violation of this division, the building official shall schedule a public hearing before the hearing officer to present evidence of the violation and to request any relief authorized by this article.

(b) If a dwelling is in violation of this division, the neighborhood protection official shall schedule a public hearing to present evidence of the violation and to request any relief authorized by this article. The hearing shall be scheduled before the commission unless the commission is unable to conduct the hearing on a date and at a time reasonably necessary to protect the health and safety of any occupants of the property or of the public in general, in which case the hearing shall be scheduled before the hearing officer.

(c) Neither the building official or the neighborhood protection official shall schedule a public hearing before the hearing officer or the commission to request any relief authorized by this article that involves the demolition of a landmark, protected landmark, archaeological site, or a building, structure, or object in a historic district, as those terms are defined in article VII of chapter 33 of this Code, without first obtaining a certificate of appropriateness as required by article VII of chapter 33 of this Code.
(Ord. No. 2011-108, § 4, 2-9-2011; Ord. No. 2015-967, § 42, 10-7-2015)

Sec. 10-375. Public notice of dangerous buildings.

(a) If pursuant to this article the hearing officer or the commission finds that a property constitutes a dangerous building and that its occupancy is reasonably likely to result in an injury to or the illness of a human being, the building standards official shall post on the structure or in other conspicuous places visible from the nearest public street at least two copies of a brightly colored placard, the text of which shall be in a typeface no smaller than 28 points and include the following:

> THE BUILDING OFFICIAL [OR THE NEIGHBORHOOD PROTECTION OFFICIAL] OF THE CITY OF HOUSTON POSTED THIS NOTICE ON _____, 20____, AT ____:____ ____.m.
>
> **THIS BUILDING HAS BEEN FOUND TO BE A DANGEROUS BUILDING, AND ITS OCCUPANCY IS REASONABLY LIKELY TO RESULT IN INJURY OR ILLNESS.**
>
> **NO LATER THAN 48 HOURS AFTER THE POSTING OF THIS NOTICE, ALL PERSONS MUST VACATE THIS BUILDING AND NOT RE-ENTER.**
>
> EFFECTIVE 48 HOURS AFTER THE POSTING OF THIS NOTICE, ENTRY INTO THIS BUILDING IS PROHIBITED, EXCEPT (1) BY AUTHORIZED EMPLOYEES AND AGENTS OF THE CITY OF HOUSTON OR (2) BY PERSONS AUTHORIZED BY THE BUILDING OWNER TO PERFORM WORK FOR WHICH THE CITY HAS ISSUED ALL REQUIRED PERMITS.
>
> IT IS A VIOLATION OF MUNICIPAL LAW TO ALTER OR REMOVE THIS NOTICE.

Each placard also shall include the date and time of its posting by the building standards official.

(b) If pursuant to this article the hearing officer or the commission finds that a property constitutes a dangerous building and presents a serious and immediate hazard, instead of posting the placard required by subsection (a) of this section, the building standards official shall post on the structure or in other conspicuous places visible from the nearest public street at least two copies of a brightly colored placard, the text of which shall be in a typeface no smaller than 28 points and include the following:

> THE BUILDING OFFICIAL [OR THE NEIGHBORHOOD PROTECTION OFFICIAL] OF THE CITY OF HOUSTON POSTED THIS NOTICE ON _____, 20____, AT ____: ____ ____.m.
>
> **THIS BUILDING HAS BEEN FOUND TO PRESENT A SERIOUS AND IMMEDIATE HAZARD TO HUMAN LIFE.**
>
> **ENTRY INTO THIS BUILDING IS PROHIBITED,** EXCEPT (1) BY AUTHORIZED EMPLOYEES AND AGENTS OF THE CITY OF HOUSTON OR (2) BY PERSONS AUTHORIZED BY THE BUILDING OWNER TO PERFORM WORK FOR WHICH THE CITY HAS ISSUED ALL REQUIRED PERMITS.
>
> IT IS A VIOLATION OF MUNICIPAL LAW TO ALTER OR REMOVE THIS NOTICE.

Each placard also shall include the date and time of its posting by the building standards official.

(c) No person shall occupy, let to another person for occupancy, or otherwise make available for use by any person a property if the occupancy or use violates the terms of a placard placed by the building standards official pursuant to this section.

(d) It shall be unlawful to remove a placard to which this section refers except upon the written instruction of the building standards official who posted the placard, which instruction shall not be issued unless the condition(s) that caused the placard to be posted has been abated.
(Ord. No. 2011-108, § 4, 2-9-2011)

Secs. 10-376—10-380. Reserved.

DIVISION 6. SECURING A SUBSTANDARD OR DANGEROUS BUILDING

Sec. 10-381. Authority of building standards official to secure and notify.

The building standards official shall cause to be secured a vacant building that in the sole but reasonable judgment of the building standards official appears to be (a) in violation of division 5 of this article and (b) capable of being secured by a means and at an expense reasonably proportionate to the threat to human health or safety presented by the vacant building. After securing such building, the building standards official shall comply with Section 214.0011, Texas Local Government Code. A hearing conducted pursuant to this division shall be conducted by the hearing officer.
(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-382. Permit to secure; fees.

Unless otherwise provided by this article, a person other than the building standards official causing a building to be secured must obtain a permit from the code enforcement branch of the planning and development services division of the Houston Public Works. The application for and administration of the permit shall be handled as prescribed by section 105 of the Building Code. The fee for the permit, whether original or renewal, is stated for this provision in the city fee schedule.
(Ord. No. 2011-108, § 4, 2-9-2011; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2018-11, § 50, 1-10-2018)

Secs. 10-383—10-390. Reserved.

DIVISION 7. EMERGENCIES

Sec. 10-391. Definitions.

In this division, "corrective action" means any one or more of the following:

(1) Ordering the property vacated;

(2) Repairing all or part of a structure or other fixture on the property;

(3) Demolishing a structure or other fixture on the property, specifically including a vacant building not capable of being secured by a means and at an expense reasonably proportionate to the threat to human health or safety presented by the building; or

(4) Taking any other action reasonably calculated to alter the condition so that it no longer constitutes a serious and immediate hazard;

provided that all corrective action shall be reasonably proportionate to the threat to human health or safety presented by the hazard.
(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-392. Immediate corrective action.

(a) If after an investigation appropriate to the circumstances the building standards official concludes that a condition of a property constitutes a serious and immediate hazard, the building standards official, as soon as reasonably possible, shall confer with the hearing officer regarding the condition. The conference may be in person, by telephone, or by electronic means but will not constitute a proceeding within the meaning of this article. The conference may be ex parte.

(b) If, as a result of the conference to which subsection (a) of this section refers, the building standards official and the hearing officer agree that the condition constitutes a serious and immediate hazard, as soon as reasonably possible the building standards official, at the city's expense, but without the necessity of prior notice to any person, shall cause corrective action to be taken so that the condition no longer constitutes a serious and immediate hazard.

(c) As soon as reasonably possible after the conclusion of the conference to which subsection (a) of this section refers, the hearing officer shall memorialize the date and time of the conference; the circumstances as described during the conference by the building standards official; whether the building standards official and the hearing officer agreed or disagreed that the condition constituted a serious and immediate hazard; and the reasons for the agreement or disagreement, as understood by the hearing officer. The memorialization may be typed, handwritten, or in electronic form and shall be preserved in the records of the hearing officer. The hearing officer promptly shall provide a copy of the memorialization to the building standards official.
(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-393. Notice to vacate.

If the building standards official orders that a property be vacated pursuant to this division, he shall post on the property a placard whose contents and manner of posting shall not vary materially from that prescribed by section 10-375(b) of this Code.
(Ord. No. 2011-108, § 4, 2-9-2011)

Sec. 10-394. Notice of corrective action; hearing.

(a) Pursuant to Section 214.002, Texas Local Government Code, before the fifteenth day after the last day on which the building standards official takes corrective action as authorized by this division, the building standards official shall give a Notice of Corrective Action to the owner and to any mortgagee of the property in the manner described in Section 214.0011(c), Texas Local Government Code. The Notice of Corrective Action shall include the following:

(1) The date on which the building standards official issued the Notice of Corrective Action;

(2) An identification of the property that was the subject of the corrective action, which identification need not be a legal description;

(3) A brief description of the corrective action taken and the dates of the action;

(4) A good-faith estimate of the funds expended by the city to take the corrective action;

(5) A statement that the city intends to impose a lien against the property in an amount equal to the funds expended by the city to take the corrective action, which lien shall be imposed in the manner described in subsections (d)—(i) of Section 214.0015, Texas Local Government Code; and

(6) A statement that any owner or mortgagee of the property may file with the building standards official (whose address shall be included in the notice) a written request for an administrative hearing regarding the corrective action, which request must be received by the building standards official within 30 days after the day on which the building standards official is-

sued the Notice of Corrective Action, and that, in the absence of such a request for hearing:

a. The corrective action will be deemed to have been duly authorized by this division; and

b. The city will make a final calculation of the funds expended by the city to take the corrective action and impose the lien to which subsection (a)(5) of this section refers.

(b) No later than 30 days after the building standards official's receipt of a request to which subsection (a)(6) of this section refers, the building standards official shall give a notice of hearing to the owner and to any mortgagee of the property in the manner described in Section 214.0011(c), Texas Local Government Code. The notice of hearing shall include the following information:

(1) That a hearing will be held on a stated date and at a stated time and place, which date shall be as soon as reasonably possible but in any case no later than ninety days after the day on which the building standards official receives a request to which subsection (a)(6) of this section refers;

(2) That the hearing will be held before a panel of the commission to consider whether the corrective action was duly authorized by this division; and

(3) That any person having a legal interest in the property (as evidenced by the real property records of the county in which the property is located) may appear in person, may be represented by an attorney, may present testimony and other evidence, and may cross-examine all witnesses.

(c) A panel of the commission shall conduct the hearing to which subsection (b) of this section refers.

(1) If the hearing is a record proceeding, the hearing shall be recorded by a court reporter certified by the Texas Court Reporters Certification Board.

(2) The hearing may be postponed once for good cause shown; the existence of "good cause" shall be determined by the commission panel in the exercise of its sole but reasonable discretion.

(3) If no person having a legal interest in the property appears before the commission on the date and at the time for which notice was given, the commission shall proceed with the hearing, and building standards official shall present the evidence.

(4) After consideration of the evidence presented at the hearing, the commission shall issue a written order, the substance of which order shall be limited to the following:

a. A statement of the date, time, and place of the hearing and of the authority pursuant to which the hearing was conducted;

b. A list of all persons who attended all or part of the hearing, to the extent known by the commission;

c. A general description of the evidence considered by the commission;

d. A declaration of whether the corrective action was duly authorized by this division; and

e. If the commission has declared that the corrective action was duly authorized by this division, a declaration of (i) the city's right to impose the lien to which subsection (a)(5) of this section refers and (ii) the amount of the lien.

(Ord. No. 2011-108, § 4, 2-9-2011)

Secs. 10-395—10-410. Reserved.

DIVISION 8. SPECIAL HEARINGS UNDER THE FIRE CODE

Sec. 10-411. Appeals of certain orders of the fire code official.

(a) An order of the fire code official (as defined in the Fire Code) outside the scope of Section 105 and Sections 108.1 through 108.3 of the Fire Code

shall be appealed by filing a written request for an administrative hearing, which request must be received by the city secretary within thirty days after the day on which the person filing the request was served with the order. Notwithstanding the previous sentence, an order issued under Section 105.5.3 of the Fire Code shall be appealed in the manner provided by this division. All such requests received by the city secretary shall be forwarded promptly to the fire code official. In the absence of such a request for hearing, the order of the fire code official is final, and no further appeal shall be allowed.

(b) No later than thirty days after the city secretary's receipt of a request to which subsection (a) of this section refers, the fire code official shall give a written notice of hearing to each owner, lienholder, and mortgagee of the subject property in the manner described in Section 214.0011(c), Texas Local Government Code. The notice of hearing shall include the following information:

(1) That a hearing will be held on a stated date and at a stated time and place, which date shall be as soon as practicable but in any case no later than ninety days after the day on which the city secretary receives a request to which subsection (a) of this section refers;

(2) That the hearing will be held before a hearing official to consider whether the order was duly authorized by the Fire Code;

(3) That any person having a legal interest in the property (as evidenced by the real property records of the county in which the property is located) may appear in person, may be represented by an attorney, may present testimony and other evidence, and may cross-examine all witnesses; and

(4) That the hearing will be conducted 'in accordance with Division 8 of Article IX of Chapter 10 of the Code of Ordinances, Houston, Texas, which Code is available for public review at www.houstontx.gov/codes.

(c) The hearing officer shall conduct the hearing to which subsection (b) of this section refers.

(1) If the hearing is a record proceeding, the hearing shall be recorded by a court reporter certified by the Texas Court Reporters Certification Board.

(2) The hearing may be postponed once for good cause shown; the existence of 'good cause' shall be determined by the hearing officer in the exercise of his sole but reasonable discretion.

(3) If no person having a legal interest in the property appears before the hearing officer on the date and at the time for which notice was given, the hearing officer shall dismiss the appeal.

(4) After consideration of the evidence presented at the hearing, the hearing officer shall issue a written order, the substance of which order shall be limited to the following:

a. A statement of the date, time, and place of the hearing and of the authority pursuant to which the hearing was conducted;

b. A list of all persons who attended all or part of the hearing, to the extent known by the hearing officer;

c. A general description of the evidence considered by the hearing officer; and

d. A declaration that the order was or was not duly authorized by the Fire Code.

(5) In the event that the hearing official declares that the order was not duly authorized by the Fire Code, the fire code official shall withdraw the order.

(Ord. No. 2013-296, § 20, 4-3-2013)

Sec. 10-412. Hearings after permit revocation or summary abatement.

(a) Before the fifteenth day after the day on which the fire code official either (1) revokes a permit pursuant to Section 105.5.3 of the Fire Code or (2) summarily abates a serious and im-

mediate fire hazard pursuant to Section 110.3 of the Fire Code, the fire code official shall give written notice in the manner described in Section 214.0011(c), Texas Local Government Code, to each owner, lienholder, and mortgagee of the subject property, which notice shall (1) notify the said person(s) of the right to request an administrative hearing to determine whether the permit revocation or summary abatement was duly authorized by law and (2) state an address to which such a request shall be delivered or mailed.

(b) A request responsive to the notice described in subsection (a) of this section must be received by the fire code official within thirty days after the day on which the person submitting the request was served with the notice. In the absence of such a request for hearing, the permit revocation or summary abatement shall be deemed to have been authorized by law.

(c) No later than 30 days after the fire code official's receipt of a request to which subsection (b) of this section refers, the fire code official shall give a written notice of hearing to each owner, lienholder, and mortgagee of the subject property in the manner described in Section 214.0011(c), Texas Local Government Code. The notice of hearing shall include the following information:

(1) That a hearing will be held on a stated date and at a stated time and place, which date shall be as soon as practicable but in any case no later than ninety days after the day on which the fire code official receives a request to which subsection (b) of this section refers;

(2) That the hearing will be held before a hearing official to consider whether the permit revocation or summary abatement was authorized by law;

(3) That any person having a legal interest in the property (as evidenced by the real property records of the county in which the property is located) may appear in person, may be represented by an attorney, may present testimony and other evidence, and may cross-examine all witnesses; and

(4) That the hearing will be conducted "in accordance with Division 8 of Article IX of Chapter 10 of the Code of Ordinances, Houston, Texas, which Code is available for public review at www.houstontx.gov/codes."

(d) The hearing officer shall conduct the hearing to which subsection (c) of this section refers.

(1) If the hearing is a record proceeding, the hearing shall be recorded by a court reporter certified by the Texas Court Reporters Certification Board.

(2) The hearing may be postponed once for good cause shown; the existence of 'good cause' shall be determined by the hearing officer in the exercise of his sole but reasonable discretion.

(3) After consideration of the evidence presented at the hearing, the hearing officer shall issue a written order, the substance of which order shall be limited to the following:

a. A statement of the date, time, and place of the hearing and of the authority pursuant to which the hearing was conducted;

b. A list of all persons who attended all or part of the hearing, to the extent known by the hearing officer;

c. A general description of the evidence considered by the hearing officer; and

d. A declaration that the permit revocation or summary abatement was or was not authorized by law.

(4) In the event that the hearing official declares that the revocation of a permit was not authorized by law, the fire code official shall reissue the permit.

(5) If no person having a legal or equitable interest in the property appears before the hearing officer on the date and at the time for which notice was given, the hear-

ing officer shall issue a written order, the substance of which order shall be limited to the following:

a. A statement of the date, time, and place of the hearing and of the authority pursuant to which the hearing was conducted;

b. A list of all persons who attended all or part of the hearing, to the extent known by the hearing officer;

c. A statement that no person having a legal or equitable interest in the property appeared before the hearing officer on the date and at the time for which notice was given; and

d. A declaration that the permit revocation or summary abatement is presumed to have been authorized by law.

(Ord. No. 2013-296, § 20, 4-3-2013)

Secs. 10-413—10-440. Reserved.

ARTICLE X. CLEANUP AFTER DEMOLITION OR REMOVAL OF STRUCTURES

Sec. 10-441. Required.

(a) Within 30 days after any building or structure is demolished or removed from any lot or tract of land:

(1) All debris must be removed from the property.

(2) All holes or depressions in the ground must be filled to grade level.

(3) All lumber, pipes and all other buildings materials must be removed from the property or stored in such a manner that they are not a hazard to safety and do not create a condition where rats are likely to live or mosquitoes likely to breed.

(4) All pipes and conduits must be removed from above grade and must be removed or sealed below grade.

(5) All piers, pilings, steps and other appurtenances must be removed above grade.

(b) Each owner and each person having control over the property on which the building or structure stood prior to removal or demolition is individually responsible for completing such work or causing such work to be completed.

(Code 1968, § 18-83; Ord. No. 76-1919, § 1, 11-9-76; Ord. No. 93-1570, § 2(b), 12-8-93)

Sec. 10-442. Report, inspection where work believed not completed.

It shall be the duty of all city employees to make a report in writing to the neighborhood protection official whenever such employee has reason to believe a building or structure has been demolished or removed from a lot of land and the work required by this article has not been completed. Upon receipt of such written report, the neighborhood protection official shall inspect the lot or tract.

(Code 1968, § 18-84; Ord. No. 76-1919, § 1, 11-9-76; Ord. No. 89-1079, § 16, 7-12-89; Ord. No. 91-1102, § 5, 7-31-91; Ord. No. 93-514, § 26, 5-5-93; Ord. No. 93-1570, § 2(b), 12-8-93; Ord. No. 94-674, § 32, 7-6-94; Ord. No. 98-613, § 38, 8-5-98)

Sec. 10-443. Notice to complete work.

Whenever it shall come to the knowledge of the neighborhood protection official or a hearing officer designated pursuant to article IX of this chapter that a building or structure has been demolished or removed and that the work required by this article has not been completed, the neighborhood protection official or hearing officer shall cause written notice to be given by personal service or by certified mail, return receipt requested, to the owner of the property or to any person having control over the property setting out the work required by this article which has not been completed. In such notice, the neighborhood protection official or hearing officer shall order the owner of the property or person having control over the property to complete or cause to be completed all work required by this article within 30 days of service of such notice.

(Code 1968, § 18-84; Ord. No. 76-1919, § 1, 11-9-76; Ord. No. 89-1079, § 17, 7-12-89; Ord. No.

91-1102, § 5, 7-31-91; Ord. No. 93-514, § 26, 5-5-93; Ord. No. 93-1570, § 2(b), 12-8-93; Ord. No. 94-674, § 32, 7-6-94; Ord. No. 98-613, § 38, 8-5-98)

Sec. 10-444. Penalty.

Failure to comply with the requirements of section 10-441 or to comply with the order of the neighborhood protection official or a hearing officer given pursuant to this article shall be punishable by a fine of not less than $250.00, nor more than $2,000.00. Each day such work is not completed in violation of this article shall constitute a separate offense.
(Code 1968, § 18-86; Ord. No. 76-1919, § 1, 11-9-76; Ord. No. 89-1079, § 18, 7-12-89; Ord. No. 91-1102, §§ 5, 10, 7-31-91; Ord. No. 93-514, § 26, 5-5-93; Ord. No. 93-1570, § 2(b), 12-8-93; Ord. No. 94-674, § 32, 7-6-94; Ord. No. 98-613, § 38, 8-5-98)

Charter reference—Fines for violation of ordinances, Art. II, § 12.

Secs. 10-445—10-450. Reserved.

ARTICLE XI. NEIGHBORHOOD NUISANCES

Sec. 10-451. Nuisances, generally.

(a) Whatever is dangerous to human health or welfare, or whatever renders the ground, the water, the air, or food a hazard to human health is hereby declared to be a nuisance.

(b) The following specific acts, conditions, and things are declared to constitute public nuisances and are hereby prohibited and made unlawful:

(1) The deposit or accumulation of any foul, decaying, or putrescent substance or other offensive matter in or upon any lot, street, or in or upon any public or private place in such a way as to become offensive or objectionable; the overflow of any foul liquids, or the escape of any gases, dusts, fumes, mists, and sprays to such an extent that the same, or any one of them, shall become, or be likely to become, hazardous to health or a source of discomfort to persons living or passing in the vicinity, or that the same shall by reason of offensive odors become a source of discomfort to persons living or passing in the vicinity thereof.

(2) A polluted well, or cistern, spring or stream, or the pollution of any body of water used for drinking purposes.

(3) The maintenance of any privy, vault or cesspool, except as provided in this Code.

(4) Keeping any building or room is such state of uncleanliness or the crowding of person in any building or room in such a manner as to endanger the health of the persons dwelling therein, or so that there shall be less than 400 cubic feet of air to each adult, and 150 cubic feet of air to each child under 12 years of age occupying such building or room. To the extent of any conflict between the requirements of this item and those established in section 10-331 of this Code, the more restrictive shall apply.

(5) Allowing cellars to be used as sleeping rooms.

(6) A building or portion of a building occupied as a dwelling which is not lighted and ventilated by means of at least one window, opening to the outer air, in each room, or any such building which is not provided with a plentiful supply of pure water.

(7) The accumulation of manure, unless it is in a properly constructed pit or receptacle.

(8) The maintenance, in a public place, of a roller towel for the use of more than one person.

(9) The slopping or feeding of cattle or other animals on distillery swill, unless the enclosure wherein such slopping or feeding is done is provided with means for preventing and removing the unsanitary conditions associated with such slopping or feeding.

(10) Permitting the existence of weeds, brush, rubbish, and all other objectionable, unsightly, and insanitary matter of what-

ever nature covering or partly covering the surface of any lots or parcels of real estate situated within the city; permitting such lots or parcels of real estate, as aforesaid, to have the surface thereof filled or partly filled with holes or be in such condition that the same holds or is liable to hold stagnant water therein, or from any other cause be in such condition as to be liable to cause disease or produce, harbor, or spread disease germs of any nature or tend to render the surrounding atmosphere unhealthy, unwholesome, or obnoxious.

Such lots or parcels of real estate in addition to those grounds within their respective boundaries shall be held to include all lots or parcels of ground lying and being adjacent to and extending beyond the property line of any such lots or parcels of real estate to the curbline of adjacent streets, where a curbline has been established, and 14 feet beyond the property line where no curbline has been established on adjacent streets, and also to the center of adjacent alleys.

The word "weeds" as herein used shall include all rank and uncultivated vegetable growth or matter which has grown to more than nine inches in height or which, regardless of height, is liable to become an unwholesome or decaying mass or a breeding place for mosquitoes or vermin. The word "brush" as herein used shall include all trees or shrubbery under seven feet in height which are not cultivated or cared for by person owning or controlling the premises. The word "rubbish" shall include all refuse, rejected tin cans, old vessels of all sorts, useless articles, discarded clothing and textiles of all sorts, and in general all litter and all other things usually included within the meaning of such term. The words "any and all other objectionable, unsightly, or insanitary matter of whatever nature" shall include all uncultivated vegetable growth, objects and matters not included within the meaning of the other terms as herein used, which are liable to produce or tend to produce an unhealthy, unwholesome or unsanitary condition to the premises within the general locality where the same are situated, and shall also include any species of ragweed or other vegetable growth which might or may tend to be unhealthy to individuals residing within the general locality of where the same are situated.

The provisions of this item (10) shall not be applicable to a "natural area," and it shall also constitute an affirmative defense to prosecution in any criminal proceeding that is initiated under this item (10) that the property or affected portion thereof is a "natural area" that is being maintained in accordance with a permit issued under section 32-10 of this Code and regulations issued thereunder, and further provided that:

a. The natural area is maintained and managed so that no weeds or debris are allowed to accumulate and create an imminent hazard to health or safety; and

b. The natural area is regularly mowed so as to prevent uncontrolled vegetation growth within ten feet of a public roadway and within five feet of a public sidewalk.

(11) Permitting the accumulation or collection of any water, stagnant, flowing, or otherwise, in which the mosquito breeds or which may become a breeding place for mosquitoes, unless such accumulation or collection of water is treated so as effectually to prevent such breeding.

The natural presence of well grown mosquito larvae, or of pupae, shall be evidence that proper precautions have not been taken to prevent the breeding of mosquitoes.

(12) Permitting the detectible presence of urine or the presence of feces, vomit and other bodily fluids in or upon any property, including any sidewalk adjacent to any paved portion of a street abutting the property, that may be accessible to the

public or in such a manner that the presence of any of the foregoing may be detected in the vicinity of the property.

(c) It shall be unlawful for any owner, lessee, occupant, or any agent, representative, or employee of any owner, lessee, or occupant or any other person having ownership, occupancy, or control of any land, or improvements thereon, to permit, allow, or suffer any condition to exist on such property if such condition is prohibited or made unlawful under the provisions of this section. It shall be an affirmative defense to prosecution under section 10-451(b)(12) of this Code that the detectible presence of urine or the presence of feces, vomit or other bodily fluids in or on any property is specifically authorized or permitted by law or ordinance.

(d) Except as provided below, whenever in this section an act is made or declared to be unlawful, the first violation by any person of any such provision shall be punishable by a fine of not less than $50.00 nor more than $1,000.00; the second violation by the same person of any such provision shall be punishable by a fine of not less than $100.00 nor more than $1,500.00; and the third and any subsequent violation by the same person of any such provision shall be punishable by a fine of not less than $200.00 nor more than $2,000.00. Provided, however, if a person is convicted of an offense under this section which offense is also a violation of the criminal provisions of any state law, such person shall be subject to the criminal penalties set out in state law. Each day any violation of this section continues shall constitute a separate offense.

The first violation of item 10-451(b)(12) of this Code shall be punishable by a fine of not less than $200.00, nor more than $1,000.00; the second violation by the same person of such provision shall be punishable by a fine of not less than $400.00, nor more than $1,500.00; the third and any subsequent violation by the same person of such provision shall be punishable by a fine of not less than $600.00, nor more than the maximum amount allowed by law.
(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-1570, § 2(c), 12-8-93; Ord. No. 94-83, §§ 1—3, 1-26-94; Ord. No. 03-537, § 1, 6-4-03)

Sec. 10-452. Notice to property owner.

Whenever the existence of any nuisance defined in this article, on any lots or parcels of real estate situated within the city, shall come to the knowledge of the neighborhood protection official, it shall be his duty to forthwith cause a written notice identifying such property to be issued to the person owning the same; provided that notice shall not be required prior to abatement of violations described in section 10-453(e). Any required notice shall be given in compliance with the applicable provisions of section 342.006 or section 342.008 of the Texas Health and Safety Code, as amended.
(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-514, § 26, 5-5-93; Ord. No. 93-1570, § 2(c), 12-8-93; Ord. No. 94-674, § 33, 7-6-94; Ord. No. 95-993, § 2, 9-13-95; Ord. No. 98-613, § 39, 8-5-98)

Sec. 10-453. Abatement by city, generally.

(a) In the event of the failure, refusal, or neglect of the owner or occupant of any premises or property to timely cause such nuisance to be removed or abated in the manner and within the time provided in the notice given pursuant to section 10-452 of this Code, the neighborhood protection official shall cause the weeds, brush, rubbish, or other insanitary matter or condition constituting a nuisance to be promptly abated in a reasonable and prudent manner at the expense of the city. The neighborhood protection official shall carefully compile the cost of such work done and improvements made in abating such nuisance, and shall charge the same against the owner of the premises.

(b) The city council hereby finds and declares that the general overhead and administrative expense of inspection, locating owner(s), issuing notice, reinspection, and ordering work done, together with all necessary incidents of same, require a minimum administrative fee for each lot, series of two or more adjacent and contiguous lots, or tract or parcel of acreage, and such minimum charge is hereby established and declared to be an expense of such work and improvement. The minimum fee for this provision stated in the city fee schedule shall be assessed against each

lot so improved under the terms of this section, unless the tabulated cost of the work done shall exceed such minimum fee.

(c) After determining the cost of the work, and after charging the same against the owner of the premises, the neighborhood protection official shall certify a statement of such expenses and shall file the same with the county clerk of the county in which the premises or property is located. Upon filing such statement with the county clerk, the city shall have a privileged lien, inferior only to tax liens and liens for street improvements, upon the land described therein and upon which the improvements have been made, to secure the expenditure so made, plus ten percent interest.

(d) For any such expenditures and interest, as aforesaid, suit may be instituted by the city attorney and recovery and foreclosure had in the name of the city; the statement so made, as aforesaid, or a certified copy thereof, shall be prima facie proof of the amount expended in any such work or improvements. Upon payment of the full charges assessed against any property, pursuant to the procedure hereinabove set forth, the neighborhood protection official shall be authorized to execute, for and in behalf of the city, a written release of the lien heretofore mentioned, such written release to be on a form prepared and approved in each case by the legal department.

(e) Weeds or brush higher than 48 inches tall are declared to be an immediate danger to the health, life, or safety of all persons in the vicinity thereof, and the abatement of such weeds or brush may be carried out without prior notice as described in this subsection.

(1) The neighborhood protection official may cause such weeds and brush to be removed or abated, without notice. The expenses incurred shall be assessed and a lien created in the same manner as provided for other expenses under this section.

(2) Not later than the tenth day after the date of the removal or abatement, the neighborhood protection official shall give notice thereof to the owner of the lot or parcel in the manner required in section 342.008 of the Texas Health and Safety Code, as amended.

(3) The owner may request a hearing by notifying the neighborhood protection official within 30 days following the date of the abatement. The hearing shall be scheduled not later than 20 days after the date the request therefor is received and shall be conducted by a hearing official designated by the chief of police (the "director") for the purpose of determining whether the conditions qualified for abatement under the terms of this subsection. Unless notice is waived by the owner, the owner shall be provided written notice of the time and place of the hearing at least seven days prior thereto.

(4) At the hearing, the owner and the neighborhood protection official may present any evidence relevant to the proceedings, in accordance with reasonable rules adopted by the director and approved by the city attorney. If the hearing official finds that weeds or brush existed on the property in violation of this subsection at the time of the abatement, the hearing official shall issue an order so stating. If no violation of this subsection is found to have existed, a lien for applicable abatement expenses shall not be authorized under this subsection.

(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-514, § 26, 5-5-93; Ord. No. 93-1570, § 2(c), 12-8-93; Ord. No. 94-674, § 33, 7-6-94; Ord. No. 95-993, § 3, 9-13-95; Ord. No. 98-613, § 39, 8-5-98; Ord. No. 04-1075, § 5, 10-20-04; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 10-454. City may contract for abatement.

The city shall have the right to award any quantity of work authorized under section 10-453 of this Code to a general contractor whose bid shall be accepted by the city council as the lowest and best secured bid for the doing of the work herein mentioned during a stipulated time not to exceed one year.

(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-1570, § 2(c), 12-8-93)

Sec. 10-455. Removal of weeds by city at request of property owner.

Any owners of vacant property in the city shall have the right to contract with the city to remove all such weeds and vegetation as may grow on such real estate by requesting in writing the neighborhood protection official so to do, and by agreeing to the charge to be paid therefor, not less than the minimum fee stated for this provision in the city fee schedule to be paid therefor per lot, series of two or more adjacent and contiguous lots, or tract or parcel of acreage, to be charged against such property for each such removal of weeds and vegetation.
(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-514, § 26, 5-5-93; Ord. No. 93-1570, § 2(c), 12-8-93; Ord. No. 94-674, § 34, 7-6-94; Ord. No. 98-613, § 40, 8-5-98; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 10-456. Summary abatement.

In addition to the remedies prescribed in this article, and cumulative thereof, if it is determined by the director or the health officer that any nuisance described in this article is likely to have an immediate adverse effect upon the public health or safety, then the director or the health officer may order such nuisance to be summarily abated by the city in a reasonably prudent manner, and a lien for the city's expenses related to such abatement shall be assessed in the manner provided in this article. Notice and the opportunity for a hearing shall be provided in the manner provided in section 10-453(e) of this Code.
(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-1570, § 2(c), 12-8-93; Ord. No. 95-993, § 4, 9-13-95)

Sec. 10-457. Authority to execute and release liens.

(a) The neighborhood protection official is hereby authorized to certify a statement of expenses and cause said statement and lien to be filed of record as provided for in this article. The neighborhood protection official is hereby authorized to execute releases on behalf of the city of any and all liens created under the provisions of this article. The neighborhood protection official shall have no right to execute such releases until satisfied that the debt or portion thereof secured by the lien and for which a release is requested has been paid in full to the city, and any such lien shall be released only insofar as it affects the property for which the debt secured thereby has been paid in full.

(b) A fee shall be imposed for each release of lien as specified in section 2-125 of this Code.
(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-514, § 26, 5-5-93; Ord. No. 93-1570, § 2(c), 12-8-93; Ord. No. 94-674, § 35, 7-6-94; Ord. No. 98-613, § 41, 8-5-98)

Sec. 10-458. Remedies cumulative; civil enforcement; other action not limited.

The procedures set forth in this article are cumulative of all other remedies available to the city relating to the subject matter hereof. Specifically, the city attorney may institute any legal action to enforce this ordinance or enjoin or otherwise cause the abatement of any condition described in this article, as well as for the recovery of all expenses incurred in connection therewith, including without limitation administrative and legal expenses, attorneys fees and costs, and for civil penalties as provided by law.
(Ord. No. 94-83, § 4, 1-26-94)

Secs. 10-459—10-480. Reserved.

ARTICLE XII. RAT CONTROL

DIVISION 1. GENERALLY

Sec. 10-481. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Business building* means any structure, whether public or private, regardless of the type of material used in its construction, located within the boundaries of the

city that is adapted to occupancy for the transaction of business, whether vacant or occupied, for the rendering of professional services, for the display, sale, or storage of goods, wares, or merchandise, or for the performance of work or labor, including hotels, boarding homes, as defined in section 28-451 of this Code, lodging facilities, as defined in section 28-601 of this Code, rooming houses, beer parlors, office buildings, public buildings, stores, markets, restaurants, grain elevators and abattoirs, warehouses, workshops and factories.

(2) *Opening* means and refers to any opening in the foundation, side, or walls of any business building, including roof, chimney caves, grills, windows, sidewalk grates, and sidewalk elevators, through which a rat may enter.

(3) *Person* includes the owner, occupant, agent, individual, partnership, or corporation, or any other person in custody of any business building as defined herein.

(4) *Premises* includes all business buildings, outhouses, sheds, barns, garages, docks, wharves, piers, grain elevators and abattoirs, whether public or private, and any and all other structures used in connection with the operation of any business building as herein defined.

(5) *Rat harborage* means any condition found to exist under which rats may find shelter or protection, and shall include any defective construction which would permit the entrance of rats into any business building.

(6) *Rat stoppage* means a form of ratproofing to prevent the ingress of rats into or to buildings or other structures from the exterior, or from one building or structure to another. It consists essentially of the closing or protecting of all openings in exterior walls, foundation, roof, sidewalk grates, outer entrances, floors, drains, doors, and all other openings that may be reached by rats from the ground by climbing or by burrowing, with concrete, galvanized flat sheet-iron of 24-gauge or heavier, hardware cloth of not more than one-half-inch mesh in its greatest dimension of 19-gauge wire or heavier, or other type of ratproofing material impervious to rat gnawing, approved by the director of public health.

(7) *Ratproof building* means one constructed in such manner and of such materials as to prevent the ingress of rats.

(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-1570, § 2(d), 12-8-93)

Sec. 10-482. Dumping or accumulating garbage, rubbish, etc.

(a) It shall be unlawful for any person to dump or place on any land or on any water or waterway within the city any dead animal, butchers' offal, seafood, or any waste vegetables, animal matter, or any food products whatsoever.

(b) No garbage, rubbish, waste, or manure shall be placed, left, dumped, or permitted to accumulate or remain in any building or premises in the city so that same shall or may afford food or a harboring or breeding place for rats.

(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-1570, § 2(d), 12-8-93; Ord. No. 2018-225, § 9, 3-22-2018)

Sec. 10-483. Accumulations of lumber, boxes, etc.

It shall be unlawful for any person to permit to accumulate on any premises, improved, or unimproved, or on any open lot or alley in the city, any lumber, boxes, barrels, or similar material that may be permitted to remain thereon and that may be used as a harborage for rats, unless the same is placed on open racks and elevated not less than 18 inches above the ground, with a clear intervening space underneath, to prevent the harborage of rats. This section shall not apply when such lumber or other material is stored temporarily, for a period not to exceed 14 days, at an elevation designated by the neighborhood protection official.

(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-514, § 26, 5-5-93; Ord. No. 93-1570, § 2(d), 12-8-93; Ord. No. 94-674, § 36, 7-6-94; Ord. No. 98-613, § 42, 8-5-98)

Sec. 10-484. Storage of feed and grain.

It shall be unlawful for any person to store any feed or grain for the use of animals or fowl, for other than commercial purposes, unless it is placed within a metal bin or container to prevent the feeding of rats.
(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-1570, § 2(d), 12-8-93)

Sec. 10-485. Treatment of rat burrows and other exterior harborage.

Rat burrows and other exterior harborage shall be treated under methods directed by the neighborhood protection official.
(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-514, § 26, 5-5-93; Ord. No. 93-1570, § 2(d), 12-8-93; Ord. No. 94-674, § 37, 7-6-94; Ord. No. 98-613, § 43, 8-5-98)

Sec. 10-486. Penalty for article violations.

With the exception of section 10-482 of this Code, whenever in this article an act is prohibited or is made or declared to be unlawful, or a misdemeanor, or the doing of any act is required or the failure to do any act is declared to be unlawful, the violation of any such provision shall be punishable by a fine of not less than $100.00 nor more than $2,000.00. A violation of section 10-482 of this Code shall be punishable by a fine of not less than $100.00 nor more than $4,000.00. However, if a person is convicted of an offense under this article which offense is also a violation of the criminal provisions of any state law, such person shall be subject to the criminal penalties set out in state law. Each day any violation of this article continues shall constitute a separate offense.
(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-1570, § 2(d), 12-8-93; Ord. No. 2021-431, § 4, 5-26-2021)

Secs. 10-487—10-495. Reserved.

DIVISION 2. BUSINESS BUILDINGS

Sec. 10-496. New construction to be rat-proof.

It shall be unlawful for any person to construct within the corporate limits of the city any business building unless such building shall be rat-proof.
(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-1570, § 2(d), 12-8-93)

Sec. 10-497. Rat stoppage and freedom from rats required.

Every business building, vacant or occupied, within the city limits shall be rat-stopped, freed of rats, and maintained in a rat-stopped and rat-free condition.
(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-1570, § 2(d), 12-8-93)

Sec. 10-498. Inspection of and orders to correct defects in existing buildings.

(a) The neighborhood protection official is authorized to make frequent and unannounced inspections of existing business buildings within the corporate limits of the city for the purpose of determining any rat infestation, and order, by written notice, either the owner, occupant, agent, or any other person in custody of any rat-infested business building to protect such business building by rat stoppage as provided for in this article, regardless of the need for the remodeling of or repairs to such business buildings, and further order that such other rat-control methods be employed as may be deemed necessary by the neighborhood protection official to maintain business buildings free from rats.

(b) The written notice or order shall specify the time, in no event less than 15 days, for completion of such work and improvements. Unless such work and improvements are completed in accordance with the written order or notice within the time so specified or within the time to which a written extension has been granted by the neighborhood protection official,

the owner, occupant, agent, or other person in custody of the building shall be deemed guilty of a misdemeanor.
(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-514, § 26, 5-5-93; Ord. No. 93-1570, § 2(d), 12-8-93; Ord. No. 94-674, § 38, 7-6-94; Ord. No. 98-613, § 44, 8-5-98)

Sec. 10-499. Inspections of new construction.

The neighborhood protection official is authorized to make inspections during the course of and upon completion of any construction, repairs, remodeling, or installation of rat-control measures to business buildings to ensure compliance with the provisions of this division, and no person shall interfere with or refuse to permit such inspection.
(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-514, § 26, 5-5-93; Ord. No. 93-1570, § 2(d), 12-8-93; Ord. No. 94-674, § 38, 7-6-94; Ord. No. 98-613, § 44, 8-5-98)

Sec. 10-500. Closing building which is not rat-stopped or is rat-infested.

(a) The neighborhood protection official shall recommend to the city council that the city close each business building which is not rat-stopped, or which he finds to be rat-infested, to any occupancy or use until rats are exterminated or during the process of extermination. The city council shall cause the owner or occupant of such building to be notified by the city secretary of a hearing or

[The next page is 815]

the closing of such building, which hearing shall be held by the city council at any time after the expiration of 15 days after the mailing of such notice of such hearing. All such buildings which are not rat-stopped may be closed by order of the city council after such hearing in each case.

(b) The city council shall hear evidence as to the condition of buildings in each case and the owner or occupant shall have the right to testify and introduce evidence and examine and cross examine witnesses. If the city council shall find that such building is not rat-stopped or is rat-infested, the city council shall, by ordinance, order the owner or occupant to close such building and cease using it for human occupancy until such time as owner or occupant shall prove to the city council that such building has been rat-stopped and is no longer rat-infested, and the city council has repealed the ordinance which ordered such building closed.
(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-514, § 26, 5-5-93; Ord. No. 93-1570, § 2(d), 12-8-93; Ord. No. 94-674, § 38, 7-6-94; Ord. No. 98-613, § 44, 8-5-98)

Sec. 10-501. Duty of occupant when notified of rat infestation.

(a) Whenever the neighborhood protection official notifies the occupant of a business building, in writing, that there is evidence of rat infestation of the building, such occupant shall immediately institute anti-rat-infestation measures and shall continuously maintain such measures in a satisfactory manner until the premises are declared by the neighborhood protection official to be free of rat infestation. Unless such measures are undertaken within 15 days after receipt of notice, it shall be construed as a violation of the provisions of this division and the occupant shall be held responsible therefor. Any rat or rats caught or killed therein shall be removed daily and disposed of in a manner acceptable to the neighborhood protection official, and all traps reset and rebaited and other anti-rat-infestation measures shall be continued.

(b) Rats may also be destroyed by such means other than trapping as are approved by the neighborhood protection official, or by any authorized agency of the United States Public Health Service, or the state board of health.
(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-514, § 26, 5-5-93; Ord. No. 93-1570, § 2(d), 12-8-93; Ord. No. 94-674, § 38, 7-6-94; Ord. No. 98-613, § 44, 8-5-98)

Sec. 10-502. Minimum requirements for applying rat stoppage.

(a) For the purpose of obtaining maximum rat stoppage at a minimum cost to the owner or occupant of business buildings or structures, the regulations prescribed in this section are set forth as minimum requirements for applying rat stoppage to all buildings or structures.

(b) The neighborhood protection official shall approve all materials used, the methods of installation, and standards of work.

(c) Solid sheet metal, expanded metal, and wire cloth specified in this section shall have a rust-resistant coating, preferably galvanized.

(d) All foundation wall ventilator openings shall be covered for their entire height and width with perforated sheet metal plates of a thickness not less than fourteen-gauge, or with expanded sheet metal of a thickness not less than eighteen-gauge, or with cast-iron grills or grates, or with any other material of sufficient strength and equal rat-resisting properties. The openings therein shall be small enough to prevent the ingress of rats, and in no instance shall be larger than one-half inch.

(e) All foundation and exterior wall openings, excluding those used for the purpose of ventilation, light, doors, and windows, such as those openings around pipes, electric cables, conduits, openings due to deteriorated walls, broken masonry, or concrete, shall be protected against the ingress of rats by closing such openings with cement mortar, concrete, or masonry, or close-fitting sheet metal or suitable size pipe flanges or other material with equal rat-resisting properties, which shall be securely fastened in place.

(f) All exposed edges of the lower eight inches of wooden doors and door jambs, serving as front, rear, or side entrances into business buildings, from the ground, basement, or cellar floors, and other doors accessible to rats, shall be protected against the gnawing of rats by covering such doors and jambs with solid sheet metal of not less than twenty-four-gauge thickness. The same material shall be used on door sills or thresholds, or such door sills or thresholds may be constructed of cement, stone, steel, or case iron.

Doors, door jambs, and sills of coal chutes and hatchways that are constructed of wood shall be covered with solid sheet metal of twenty-four-gauge or heavier, or they may be replaced with metal chutes of twenty-four-gauge or heavier, installed in such manner as will prevent the ingress of rats.

All doors on which metal flashing has been applied shall be properly hinged to provide for free swinging. When closed, doors shall fit snugly so that the maximum clearance between any door, door jambs, and sill shall not be greater than three-eighths of an inch.

Door jambs and sills constructed of metal, concrete, masonry, stone, or cement mortar, or cast iron and steel, when fitting closely to exclude rats, are not required to comply with this subsection.

(g) All screen doors, regardless of where located in or on a building or structure, which are exposed to the gnawing of rats and through which a rat may gain entrance to such building or structure, shall be protected by affixing hardware cloth over the entire length and width of the screen panels of such doors and shall, in addition, be flashed with flat sheet metal strips for the entire length and width of top and bottom rails and side stiles. All door openings not having screen doors, through which rats may gain entrance to a building or structure, shall have screen doors installed, and such screen doors shall be protected from the gnawing of rats as provided for in this division and shall be equipped with adequate closing devices so that the door will at all times be properly closed.

(h) All windows and other openings for the purpose of light or ventilation located in the exterior walls, foundation, roof, or eaves accessible to rats, or which may be subject to gnawing for the purpose of gaining ingress to a building, from the ground, climbing, or by burrowing into or under buildings from the exterior or from one building or structure to another, via wires, pipes, etc., shall be protected by placing over such opening for the entire width and length of the frame, a screen made of hardware cloth 19-gauge or heavier, such screen to be inserted in a frame made of galvanized flat sheet iron of not less than 24-gauge in thickness. All such screens shall be securely riveted together and affixed as herein provided with metal screws. All such screens installed shall be portable in application. All openings accessible to rats by way of exposed pipes, wires, conduits, or structural appurtenances shall be closed and protected with guards of galvanized twenty-four-gauge flat sheet metal so as to completely block rat usage in, through or around such pipes, wires, conduits, or structural appurtenances. All guards shall be affixed in such manner as to be portable in application so as to permit necessary repairs to and not interfere with the continuity of such service, for which such pipes, wires, conduits, or structural appurtenances shall have been installed.

(i) Unless otherwise specified, all hardware cloth to be used for the purpose of rat stoppage, as referred to in this division, shall be of not less than 19-gauge wire and shall have a mesh of not greater than one-half inch. All solid flat sheet metal used for rat stoppage purposes, as referred to in this division, shall be of not less than 24-gauge in thickness and shall have a rust-resistant coating, preferably galvanized.

(j) Light wells with windows in exterior walls that are located below the outside ground level shall be protected from the ingress of rats by one of the following methods:

(1) Installing over light wells cast-iron or steel grills or steel gratings, or other material of equal strength and rat-resisting properties, with opening in grills or gratings not to exceed one-half inch in shortest dimension.

(2) Installing securely to and completely covering existing metal grills that are broken or have openings larger than one-half inch in shortest dimension, or otherwise defective, with expanded metal of 18-gauge or heavier, having openings not greater than one-half inch in shortest dimension, or with 16-gauge or heavier wire cloth with one-half inch mesh.

(3) At the option of the owner, the opening in the wall of the building below the grate may be entirely closed with brick or concrete or partially closed and the remaining open space covered with 19-gauge or heavier wire cloth with mesh not to exceed one-half inch.

(k) Business buildings constructed on piers having wooden floor sills less than 12 inches above the surface of the ground shall have the intervening space between the floor sill and the ground protected against the ingress of rats by installing a curtain wall of solid masonry or reinforced concrete of not less than four inches in thickness and 18 inches in depth below the ground surface, with a shelf or beam four inches thick extending outward from the outside of the curtain wall eight inches.

All curtain walls installed under the provisions of this division shall provide ventilator openings of not less than two square feet for each 20 lineal feet of wall, where permissible.

All curtain walls and foundation wall ventilator openings shall be covered for their entire height and width with perforated sheet metal plates of a thickness of not less than 14-gauge or with expanded sheet metal of not less than 18-gauge or with hardware cloth of not less than 18-gauge wire, such hardware cloth to be inserted in frames of 24-gauge galvanized iron, cast-iron grills or grates or with concrete with any of the aforementioned materials set firmly therein. All openings in such wire cloth, expanded metal grills, grates, or perforated sheet metal shall have openings or mesh not to exceed one-half inch in greatest width. All ventilators in curtain walls shall be portable in application. Curtain walls as installed under the provisions of this division shall extend upward from the ground level to the first floor level of the building or structure, and shall meet with outside wood siding, and there shall be installed a protective sheathing between concrete and such outside wood siding. The top of the curtain wall shall be beveled outward from the building wall to prevent water from standing and shall be affixed so as to prevent water from seeping between the curtain wall and building wall.

(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-514, § 26, 5-5-93; Ord. No. 93-1570, § 2(d), 12-8-93; Ord. No. 94-674, § 39, 7-6-94; Ord. No. 98-613, § 45, 8-5-98)

Sec. 10-503. Special requirements for curb and farmers' markets.

Curb or farmers' markets in which fruits or vegetables or any other products are exposed and offered for sale, on racks, stands, platforms, and in vehicles outside of business buildings, shall have floors paved with concrete or asphalt for the entire surface area of the market. Display racks, stands, or platforms on which fruit or vegetables or any other food products are displayed or offered for sale shall be of sufficient height and shall be kept at a distance of not less than 18 inches above the floor pavement and be so constructed that rats cannot harbor therein or thereunder.

(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-1570, § 2(d), 12-8-93)

Sec. 10-504. Protection against climbing rats.

(a) In order to protect business buildings from what is commonly called the climbing or roof rat, it shall be unlawful to permit fishing poles, ladders, or any other object that a rat could climb on in order to reach the roof of any business building, to lean against the side or walls of such business building.

(b) The owner of a business building shall also protect elevator shafts, fire escapes, and guy wires in such manner that rats will not be able to gain ingress into any business building.

(c) It shall be the duty of any person in charge of a business building to trim the branches of all trees extending over and against such building, and the same shall be cut and trimmed and kept trimmed and cut so that no part of any branch or

any part of such tree shall be closer than ten feet to any business building, and the tops of all trees shall be cut back ten feet from a line extending perpendicular from any exterior wall of a business building.
(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-1570, § 2(d), 12-8-93)

Sec. 10-505. Repairing breaks in rat stoppage.

The owner, agent, or occupant in charge of a rat-stopped building or structure shall maintain it in rat-stopped and rat-free condition, and repair all breaks or leaks that may occur in rat stoppage.
(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-1570, § 2(d), 12-8-93)

Sec. 10-506. Removing and failing to restore rat stoppage.

It shall be unlawful for the owner, agent, occupant, contractor, public utility company, plumber, or any other person to remove rat stoppage from any building or structure for any purpose and fail to restore the same in a satisfactory condition, or to make openings that are not closed or sealed against the entrance of rats.
(Ord. No. 91-1102, § 12, 7-31-91; Ord. No. 93-1570, § 2(d), 12-8-93)

Secs. 10-507—10-530. Reserved.

ARTICLE XIII. ABATEMENT OF JUNKED VEHICLES*

Sec. 10-531. Definitions.

When used in this article, the following words and phrases have the meaning stated, unless the context clearly indicates another meaning:

Hearing officer means the individual, whether one or more, designated by the mayor to conduct administrative hearings pursuant to this article.

Junked vehicle is defined in Section 683.071, Texas Transportation Code.

Property means a parcel of land and any structures on the parcel.

Vacant describes a property on which there is no lawful residential, commercial, recreational, charitable, religious, or construction activity.

Vehicle is defined in Section 621.001(9), Texas Transportation Code.
(Ord. No. 2011-389, § 2, 5-18-2011)

Sec. 10-532. Declaration of junked vehicle as public nuisance; scope.

(a) A junked vehicle that is a public nuisance under Section 683.072, Texas Transportation Code, is also a public nuisance under this article.

(b) This article does not apply to a vehicle or vehicle part described in Section 683.077(a), Texas Transportation Code.

(c) This article does not limit the enforcement of other provisions of this Code.
(Ord. No. 2011-389, § 2, 5-18-2011)

Sec. 10-533. Offense; punishment; remedies.

A person who commits an offense under Section 683.073(a), Texas Transportation Code:

(1) Also commits an offense under this article;

(2) Is subject to prosecution in the municipal courts for violation of this article, which courts may impose the punishment and remedies prescribed by Sections 683.073(b) and (c), Texas Transportation Code; and

(3) May be sued in a civil lawsuit to the extent authorized by this Code, by statute, or by common law.
(Ord. No. 2011-389, § 2, 5-18-2011)

Sec. 10-534. Enforcement.

(a) Enforcement of this article shall be consistent with Chapter 683, Subchapter E, Texas Transportation Code.

*__Editor's note—__Ord. No. 2011-389, § 2, adopted May 19, 2011, amended Ch. 10, Art. XIII, in its entirety to read as herein set out. Formerly, said article was entitled Junked vehicle abatement procedures and derived from Ord. No. 91-1303, § 2, 9-11-91; Ord. No. 93-1570, § 2(e), 12-8-93; Ord. No. 98-1251, § 1, 12-22-98; Ord. No. 02-1057, § 1, 11-13-02; Ord. No. 07-1001, § 4, 9-5-07.

(b) The neighborhood protection official is primarily responsible for enforcement of this article; however, this section shall not be construed to limit the enforcement authority of the city attorney or of officers of the police department.

(c) Upon discovery of a violation of this article, the neighborhood protection official:

(1) May issue to the violator a criminal citation enforceable in municipal court;

(2) May issue to the violator an administrative citation or summons pursuant to article XVIII of this chapter; or

(3) May abate the nuisance by removing the junked vehicle, provided that the neighborhood protection official complies with all procedures prescribed by Sections 683.074 and 683.075, Texas Transportation Code, which procedures, as may be amended from time to time, are incorporated by reference into this section as if set out herein.

(d) The neighborhood protection official and any person acting at his direction is a "person authorized" within the meaning of Section 683.074(e), Texas Transportation Code.
(Ord. No. 2011-389, § 2, 5-18-2011)

Sec. 10-535. Authority to enter property for investigation; warrants.

(a) To investigate whether a vehicle is a public nuisance under this article, the neighborhood protection official may enter:

(1) Vacant property, provided that:

a. The neighborhood protection official does not alter or damage the property; and

b. The entry does not constitute an offense under Section 30.05, Texas Penal Code; and

(2) Occupied property, but only with written or verbal permission from an owner, manager, or other person who reasonably appears to be in control of the property.

(b) If the neighborhood protection official is denied permission to enter property pursuant to this section, or if entry would constitute an offense under Section 30.05, Texas Penal Code, entry shall be made only under authority of an inspection warrant or a search warrant.

(1) In applying for a warrant pursuant to this section, the neighborhood protection official shall submit to the magistrate an affidavit, which may be based on information supplied by others, describing with reasonable specificity the property on which entry is sought, stating facts giving rise to the neighborhood protection official's reasonable belief that a vehicle on the property is a public nuisance, and, to the extent known by the neighborhood protection official after reasonable inquiry, the name and contact information of the owner, manager, or other person in control of the property.

(2) If the magistrate finds that probable cause exists for the neighborhood protection official's entry on property pursuant to this section, the magistrate may issue an inspection warrant or a search warrant authorizing the entry. The warrant shall constitute authority for the neighborhood protection official to enter and to inspect the vehicle, to gather evidence by any reasonable means, including photography and videography, as reasonably necessary to determine the existence of a violation of this article. It is unlawful for a person to interfere or to refuse compliance with a warrant issued pursuant to this section.
(Ord. No. 2011-389, § 2, 5-18-2011)

Sec. 10-536. Administrative hearings.

(a) The hearing officer may conduct public administrative hearings to consider evidence of violations of this article and to enter orders as are authorized by this section and supported by the evidence.

(b) The neighborhood protection official shall designate a city employee to maintain the office of the hearing officer and to preserve all records of

the hearing officer for at least three years after the records are created and as otherwise required by law.

(c) The neighborhood protection official shall provide notice of all hearings in the manner required by Sections 683.075 and 683.076(b), Texas Transportation Code. If after the neighborhood protection official has provided the said notice the junked vehicle is relocated to a different property in the city but continues to constitute a public nuisance, no additional notice is required, and the hearing may proceed as scheduled.

(d) The hearing officer shall cause the hearing to be recorded by a court reporter, by a video or audio recorder, or by other means reasonably likely to ensure the availability of a record for judicial review.

(e) A hearing may be postponed once for good cause shown; the existence of "good cause" shall be determined by the hearing officer in the exercise of his sole but reasonable discretion.

(f) At the hearing, evidence of violation(s) of this article shall be presented by a person designated by the neighborhood protection official, which person may be an assistant city attorney. During the hearing, the following persons may present testimony and other evidence on relevant issues and may cross-examine witnesses:

(1) The neighborhood protection official;

(2) Any person entitled to notice of the hearing under Section 683.075(a), Texas Transportation Code;

(3) A licensed attorney authorized to represent a person entitled to notice of the hearing under Section 683.075(a), Texas Transportation Code; and

(4) Any other person whom the hearing officer reasonably concludes is likely to further his understanding of the evidence or to assist his determination of a fact in issue.

(g) Before testifying, each witness shall be required to declare that he will testify truthfully, by an oath or affirmation administered by the hearing officer and in a form calculated to awaken the witness's conscience and to impress the witness's mind with his duty to testify truthfully.

(h) The hearing officer may consider testimony presented by an affidavit based on personal knowledge, provided that the hearing officer shall give less weight to evidence presented by affidavit than to evidence presented by live testimony.

(i) At the hearing, the junked motor vehicle is presumed to be inoperable, unless demonstrated otherwise by its registered owner, which presumption is authorized by Section 683.076(c), Texas Transportation Code.

(j) If no person entitled to notice of the hearing under Section 683.075(a), Texas Transportation Code, appears before the hearing officer on the date and at the time for which the hearing has been noticed, the neighborhood protection official shall proceed with the presentation of the evidence of the alleged violation(s).

(k) If after consideration of the evidence the hearing officer sustains the allegations of the neighborhood protection official, the hearing officer shall issue a written order:

(1) Authorizing the neighborhood protection official to remove or to dispose of the junked vehicle in the manner prescribed by Section 683.078, Texas Transportation Code; and

(2) Instructing the neighborhood protection official to notify the Texas Department of Transportation of the removal or disposition of the junked vehicle, as required by Section 683.074(b)(3), Texas Transportation Code.

(Ord. No. 2011-389, § 2, 5-18-2011)

Sec. 10-537. Authority to enter property for abatement; warrants.

(a) To enforce a written order issued pursuant to this article, the neighborhood protection official may enter:

(1) Vacant property, provided that:

a. The neighborhood protection official does not alter or damage the property; and

b. The entry does not constitute an offense under Section 30.05, Texas Penal Code; and

(2) Occupied property, but only with written or verbal permission from an owner, manager, or other person who reasonably appears to be in control of the property.

(b) If the neighborhood protection official is denied permission to enter property for enforcement of an order issued pursuant to this article, or if entry would constitute an offense under Section 30.05, Texas Penal Code, entry shall be made only under authority of an abatement warrant issued pursuant to this section.

(1) In applying for an abatement warrant pursuant to this section, the neighborhood protection official shall submit to the court:

a. An accurate copy of the written order that the neighborhood protection official is seeking to enforce;

b. An affidavit, which may be based on information supplied by others, describing with reasonable specificity the property on which entry is sought for enforcement of an order issued pursuant to this article and stating why the neighborhood protection official has concluded that a warrant is necessary; and

c. To the extent known by the neighborhood protection official after reasonable inquiry, the name and contact information of the owner, manager, or other person in control of the property.

(2) If the court finds that probable cause exists for the neighborhood protection official's entry on property pursuant to this section, the court may issue an abatement warrant. The warrant shall constitute authority for the neighborhood protection official or persons acting at his direction to enter the property and to remove the junked vehicle. It is unlawful for a person to interfere or to refuse compliance with a warrant issued pursuant to this section.

(Ord. No. 2011-389, § 2, 5-18-2011)

Sec. 10-538. Reconstruction of junked vehicle unlawful.

As required by Section 683.074(b)(1), Texas Transportation Code, it is unlawful for any person to reconstruct or to make operable a junked vehicle after its removal or disposition pursuant to this article.

(Ord. No. 2011-389, § 2, 5-18-2011)

Sec. 10-539. Contracts for removal or disposition of junked vehicles.

Each contract for the removal or disposal of a junked vehicle pursuant to this article shall require the contractor:

(1) To ensure the junked vehicle is not reconstructed or made operable; and

(2) To advise the neighborhood protection official in writing of the junked vehicle's final disposition as scrap or salvage, which disposition shall be no later than one year after the contractor takes possession of the junked vehicle.

(Ord. No. 2011-389, § 2, 5-18-2011)

Sec. 10-540. Reserved.

ARTICLE XIV. ABATEMENT OF UNAUTHORIZED VISUAL BLIGHT*

Sec. 10-541. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates a different meaning:

Graffiti implement means an aerosol paint container, a permanent broad-tipped marker, a gum label, a paint stick, a graffiti stick, a graffiti cap, any etching equipment, a brush or any other device capable of scarring or leaving a visible mark on any natural or manmade surface.

Minor means any person under 17 years of age.

*__Editor's note—__Ord. No. 06-1055, § 1, amended Art. XIV in its entirety to read as herein set out.

Owner means the record owner of the lot or parcel or other person specifically authorized in writing by the record owner to authorize the placement of any painting, scratching, writing or inscription upon the owner's property.

Paint stick means a solid form of paint capable of leaving a mark of at least ¼-inch in width.

Permanent broad-tipped marker means any marker, pen, or similar implement, which contains a fluid that is not water soluble and that has a tip, point, brush, applicator or other writing surface which, at its broadest, is ¼-inch or greater in width.

Unauthorized means without the consent of the owner or without authority of law, regulation or ordinance. Unless the owner proves otherwise, lack of consent will be presumed under circumstances tending to show (i) the absence of evidence of specific authorization of the visual blight by the owner, (ii) that the visual blight is inconsistent with the design and use of the subject property, or (iii) that the person causing the visual blight was unknown to the owner.

Visual blight means any unauthorized graffiti or any other unauthorized form of painting, scratching, writing or inscription, including without limitation, initials, slogans or drawings, regardless of the content or nature of the material that has been applied to any wall, building, fence, sign, or other structure or surface and is visible from any public property or right-of-way or is visible from the private property of another person.

(Ord. No. 94-1163, § 2, 11-2-94; Ord. No. 06-1055, § 1, 10-18-06)

[The next page is 821]

Sec. 10-542. Declaration; notice.

Visual blight is declared to be a public nuisance. whenever the neighborhood protection official becomes aware of the existence of visual blight on any lot or parcel of real estate in the city, the neighborhood protection official shall provide the property owner with written notice identifying the visual blight and directing its abatement. The notice shall be sent in accordance with article XI of this chapter; however, the time allowed for abatement of the nuisance shall not be less than ten business days. The notice shall further state that the owner may request a hearing as described in section 10-543 of this Code.
(Ord. No. 94-1163, § 2, 11-2-94; Ord. No. 98-613, § 47, 8-5-98; Ord. No. 06-1055, § 1, 10-18-06)

Sec. 10-543. Hearing.

The owner of a lot or parcel subject to abatement under this article may request a hearing by notifying the neighborhood protection official within ten days following the date the city mails or delivers the required notice. The hearing shall be conducted by a hearing official designated by the chief of police for the purpose of determining whether the conditions constitute a public nuisance under the provisions of this article. Unless notice is waived by the owner, the owner shall be provided written notice of the time and place of the hearing at least ten days prior thereto. At the hearing, the owner and the neighborhood protection official may present any evidence relevant to the proceedings, in accordance with reasonable rules adopted by the chief of police and subject to approval by the city attorney. If the hearing official finds that conditions constituting a nuisance hereunder exist, the hearing official shall issue an order so stating.
(Ord. No. 94-1163, § 2, 11-2-94; Ord. No. 98-613, § 47, 8-5-98; Ord. No. 02-528, § 14i., 6-19-02; Ord. No. 04-1075, § 7, 10-20-04; Ord. No. 06-1055, § 1, 10-18-06)

Sec. 10-544. Abatement by the city; expenses and liens.

If the owner fails to either abate the visual blight or request a hearing as provided in this article, or if it is determined at a hearing that the condition of the property constitutes a nuisance under this article, then the city shall be authorized to carry out the abatement thereof and to assess its expenses and place a lien in the same manner as provided in article XI of this chapter.
(Ord. No. 94-1163, § 2, 11-2-94; Ord. No. 06-1055, § 1, 10-18-06)

Sec. 10-545. Paint provided.

An owner who demonstrates to the neighborhood protection official that his structure has been subjected to visual blight shall be provided sufficient paint materials to cover the visual blight on the blighted structure on the property. The materials will typically be from donated sources or bulk purchases and the paint may not match the existing background surface color. The owner shall have ten business days following receipt of the paint materials to abate the visual blight.
(Ord. No. 94-1163, § 2, 11-2-94; Ord. No. 98-613, § 48, 8-5-98; Ord. No. 06-1055, § 1, 10-18-06)

Sec. 10-546. Hardships.

(a) In addition to the relief authorized in section 10-545 of this Code, if the owner demonstrates that none of the family members residing in a homestead that is the subject of a visual blight notice is able to apply the paint because of age, physical disabilities, dependent care obligations or other limitations beyond their reasonable control, then the neighborhood protection official shall cause the visual blight to be abated without cost to the owner, and no lien shall be placed on the homestead property. The operation of this subsection is limited to any single family residential property that is occupied as a homestead by a very low income family as defined in 24 Code of Federal Regulations Section 813.102 as computed for the city for purposes of Section 8 of the United States Housing Act of 1937.

(b) Without regard to the eligibility standards described in subsection (a) above, if an owner demonstrates that (i) the property for which the owner has been given notice of visual blight hereunder has been the subject of at least two prior visual blight incidents (evidenced by either notices provided pursuant to this article or bona fide police reports) during the preceding 180 days,

and (ii) the owner complied with the requirements of this article by abating the prior visual blight within ten business days of the date of the applicable notice or police report, then the neighborhood protection official shall cause the visual blight to be abated without cost to the owner, and no lien shall be placed on the property.

(c) Each notice given under section 10-542 of this Code shall advise of the availability of the relief under this section. Applications for relief under this section shall be submitted to the neighborhood protection official in such form and with such proofs of ownership, income, disabilities, repeat occurrences and related factors as may be required to determine whether the applicant is entitled to assistance within ten days following the date the city mails or delivers the notices under section 10-542 of this Code. If the neighborhood protection official is unable to concur that the applicant is entitled to assistance, then the issue shall be scheduled for a hearing under section 10-543 of this Code, and the hearing official shall make the determination.
(Ord. No. 94-1163, § 2, 11-2-94; Ord. No. 06-1055, § 1, 10-18-06)

Sec. 10-547. Landlord/tenant.

The terms of this article shall not be construed to alter the terms of any lease or other agreement between any landlord and any tenant or others relating to property that is the subject of this article; provided that no provision of any lease or other agreement shall be construed to excuse compliance with this article by any person. It is the intent of this article to identify the parties the city will hold responsible for compliance with and violations of this article, rather than to determine the rights and liabilities of persons under agreements to which the city is not a party.
(Ord. No. 06-1055, § 1, 10-18-06)

Sec. 10-548. Noncompliance.

(a) It shall be unlawful for any person who is the owner or who has primary responsibility for control of property or for repair or maintenance of property in the city to permit, allow or suffer property that is defaced with visual blight to remain defaced for a period of ten business days after receipt of notice of the defacement.

(b) Upon completion of appropriate training, employees designated by the neighborhood protection official are authorized to issue citations charging the violation of this section.

(c) It is a defense to prosecution under this section that the person, who is the owner or who has primary responsibility for control of property or for repair or maintenance of property, has executed a graffiti abatement waiver, as promulgated by the neighborhood protection official, and has filed such waiver with the neighborhood protection official prior to defacement of property.
(Ord. No. 06-1055, § 1, 10-18-06)

Editor's note—Section 5 of Ord. No. 06-1055 states that this § 10-548 shall take effect on the sixtieth day next following the date of passage and approval of this Ordinance. All other portions of this Ordinance shall take effect immediately upon its passage and approval by the Mayor.

Sec. 10-549. Graffiti implements.

(a) It shall be unlawful for a minor to possess any graffiti implement while on any school property, adjacent public property, or private property without the prior written consent of the owner or occupant of such private property. This subsection shall not apply to the possession of permanent broad-tipped markers and paint sticks by a minor attending or traveling to or from a school at which the minor is enrolled if the minor is participating in a class at the school that formally requires the possession of permanent broad-tipped markers and paint sticks. The burden of proof in any prosecution for violation of this subsection shall be upon the minor to establish the need to possess a permanent broad-tipped marker and paint sticks.

(b) It shall be unlawful for any person to possess any graffiti implement while in or upon any public facility, building or structure owned or operated by the city or while in or within 50 feet of any underpass, bridge abutment, storm drain, or similar types of infrastructure unless otherwise authorized by the city.

(c) It shall be unlawful for a parent or legal guardian of a minor to intentionally, knowingly, recklessly, or with criminal negligence allow the minor to violate this section.
(Ord. No. 06-1055, § 1, 10-18-06)

Sec. 10-550. Access to broad-tipped markers and paint sticks.

(a) It shall be unlawful for any person, other than a parent or legal guardian, to sell, exchange, give, loan, or otherwise furnish, or cause or permit to be exchanged, given, loaned, or otherwise furnished, any permanent broad-tipped marker or paint stick to any minor.

(b) For purposes of this section, the actions of an employee shall not be attributable to an employer if:

(1) The employer requires its employees to attend a training program regarding this section;

(2) The employee has actually attended such a training program; and

(3) The employer has not directly or indirectly encouraged the employee to violate this section.

(Ord. No. 06-1055, § 1, 10-18-06)

Editor's note—Section 5 of Ord. No. 06-1055 states that this § 10-550 shall take effect on the sixtieth day next following the date of passage and approval of this Ordinance. All other portions of this Ordinance shall take effect immediately upon its passage and approval by the Mayor.

Sec. 10-550.1. Signage.

(a) A business establishment that sells a permanent broad-tipped marker or paint stick at retail shall display a conspicuous sign, in English and Spanish, that states the following:

"Graffiti is a crime. The defacing of public or private property is punishable by a fine or imprisonment. Selling a permanent broad-tipped marker or paint stick to a person under the age of 17 is against the law. Violators can be fined up to $500.00."

(b) Failure of any business establishment to display the sign required in subsection (a) of this section shall be unlawful.
(Ord. No. 06-1055, § 1, 10-18-06)

Editor's note—Section 5 of Ord. No. 06-1055 states that this § 10-550.1 shall take effect on the sixtieth day next following the date of passage and approval of this Ordinance. All other portions of this Ordinance shall take effect immediately upon its passage and approval by the Mayor.

ARTICLE XV. DEED RESTRICTION COMPLIANCE*

Sec. 10-551. Definitions.

As used in this article the following words or phrases shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Building permit means a permit issued by the city under the provisions of the Construction Code.

City attorney means the city attorney or any assistant city attorney.

Commercial building means any building other than a single family residence.

Construction of a fence means, without limitation, the materials, location, and height of a fence.

Fence means any fence or wall that requires a building permit for construction.

Recorded restrictions means a restriction that is contained or incorporated by reference in any properly recorded plan, plat, replat or other instrument affecting a subdivision or that portion of a subdivision located inside the boundaries of the city.

Restricted subdivision means a subdivision of land or that portion of a subdivision within the city limits that is subject to recorded restrictions.

Restriction means a limitation that:

(1) Affects the character of the use to which real property, including residential and rental property, may be put;

*__Note—__**See the editor's note to art. XIV.

(2) Fixes the distance that a structure must be set back from property lines, street lines, or lot lines;

(3) Affects the size of a lot or the size, type, and number of structures that may be built on the lot;

(4) Regulates orientation or fronting of a structure; or

(5) Regulates construction of a fence.

however, restrictions do not include provisions that restrict the sale, rental, or use of property on the basis of race, color, religion, sex, or national origin and do not include any restrictions that by their express provision have terminated.

Restriction suit means a lawsuit filed in a court of competent jurisdiction to enjoin or abate the violation of a recorded restriction.

(Ord. No. 94-1154, § 2, 10-26-94; Ord. No. 02-399, § 42, 5-15-02; Ord. No. 07-228, § 1, 2-14-07; Ord. No. 08-250, § 1, 3-26-08)

Sec. 10-552. Compliance; enforcement; penalties.

(a) An owner or owner's representative with control over the property that is subject to a recorded restriction who, after notice of the provisions of this article, fails to comply with any recorded restriction shall be deemed to civilly violate this article and shall be subject to civil penalties of not more than $1,000.00 per day for violation of this article. Each day of noncompliance shall constitute a separate violation.

(b) It shall be unlawful to use any property or construct or continue to construct any building or structure on any property, that is the subject matter of an affidavit required by this Code as a condition for the issuance of any city permit if (1) the activity that is the subject of the affidavit is a violation of one or more recorded restrictions and (2) the person who signed the affidavit swore that the activity did not violate any recorded restriction.

(Ord. No. 94-1154, § 2, 10-26-94)

Sec. 10-553. Action by city attorney.

(a) The city attorney is authorized to file or become a party to a restriction suit; provided, however, that after a careful investigation of the facts and of the law, or of either, if in the opinion of the city attorney no legal cause of action could be alleged and proved, then in such event, the city shall not file or become a party to a suit. The city attorney is further authorized, as part of a restriction suit, to seek to compel the repair or demolition of any structure or portion thereof that is in violation of this article to the extent of noncompliance.

(b) The city attorney is authorized to file suit in a court of competent jurisdiction to seek civil penalties for the violation of subsection (a) of section 10-552 of the Code as authorized by subchapter B of chapter 54 of the Texas Local Government Code, as amended.

(c) The city attorney is authorized to establish guidelines for any activity or category of activity that the city attorney, in his best legal judgment, believes is the appropriate subject for an action to abate or enjoin pursuant to this article.

(d) All authority granted to the city attorney under this section shall be exercised uniformly on behalf of and against all citizens and property in the city.

(Ord. No. 94-1154, § 2, 10-26-94)

Sec. 10-554. Limitations.

(a) The city attorney shall have no authority to file a restriction suit or intervene in a pending restriction suit on behalf of the city upon the complaint or request of a person who:

(1) Is a defendant in a currently pending restriction suit filed by the city attorney;

(2) Is a defendant in a restriction suit in which the city attorney has intervened on behalf of the city to enforce the recorded restrictions;

(3) Has applied for a building permit for a commercial building in a restricted subdivision located in the city that has recorded restrictions the terms of which

prohibit or exclude the construction or repair of commercial buildings in such subdivision; or

(4) Has filed suit to invalidate or otherwise void any portion of the recorded restrictions of a subdivision that requires the property owned by the complainant to be used for residential purposes only.

(b) The building official shall have no authority to refuse or revoke a building permit for a commercial building located in a restricted subdivision located in the city on the grounds that the construction or repair of such commercial building is prohibited or excluded by the recorded restrictions upon the complaint or request of a person who:

(1) Is a defendant in a currently pending restriction suit filed by the city attorney;

(2) Is a defendant in a restriction suit in which the city attorney has intervened on behalf of the city to enforce the recorded restrictions;

(3) Has applied for a building permit for a commercial building in a restricted subdivision that has recorded restrictions that prohibit or exclude the construction or repair of commercial buildings in the subdivision; or

(4) Has filed suit to invalidate or otherwise void any portion of the recorded restrictions of the subdivision that requires the property owned by the person to be used for residential purposes only.

(Ord. No. 94-1154, § 2, 10-26-94)

Sec. 10-555. Building permits.

The city attorney shall advise the building official whenever, in the city attorney's opinion, building work is being done under a building permit that is void. Upon that advice the building official shall order the building work stopped. The city attorney and the building official, acting in good faith and for the city in the discharge of their duties under this section, shall not thereby render themselves liable personally and they are hereby relieved of all personal liability for any damage that may accrue to persons or property as a result of any act required or by reason of any act or omission in the discharge of their duties.
(Ord. No. 94-1154, § 2, 10-26-94)

Sec. 10-556. Notice of deed restrictions upon conveyance of property.

(a) In this section the following words and terms shall have the meanings herein ascribed:

(1) *Deed restrictions* shall have the meaning ascribed to the word "restriction" in Section 230.002 of the Local Government Code, as amended, provided that it shall not be deemed to include any restrictions that by their express provisions have terminated or any provisions contained within any restrictions to the extent and only to the extent that the provisions restrict the sale, rental, or use of property on the basis of race, color, religion, sex or national origin.

(2) *Sale or conveyance* means any transfer of any lot, tract or parcel of real property subject to deed restrictions that is situated in whole or in part within the corporate limits of the city, except:

a. A conveyance by trustee's or substitute trustee's deed to the lienholder pursuant to a foreclosure sale;

b. A conveyance by deed to the lienholder in full or partial satisfaction of a debt secured by the property conveyed;

c. A deed of trust conveyed to secure a lien;

d. An auction sale conducted by a public official pursuant to an order of a court of competent jurisdiction; or

e. A conveyance in which the purchaser is a governmental entity.

Without limitation, the term shall include an executory contract of purchase and sale having a performance period of more than six months.

(3) *Purchaser* shall mean each person who constitutes a grantee, purchaser, buyer, or

transferee in a sale or conveyance, regardless of the amount or nature of the consideration received.

(4) *Seller* shall mean each person who constitutes a seller, grantor or transferor in a sale or conveyance, regardless of the amount or nature of the consideration received.

(b) It shall be the duty of each seller to ensure that each buyer receives, in connection with each sale or conveyance, notice issued in accordance with the terms of this section in the form of Exhibit A to Ordinance No. 89-1312 which exhibit is incorporated herein by reference. The following procedure shall be followed in the giving and recording of the notice:

(1) The notice shall be given to each purchaser at the final closing of the sale and purchase; provided, however, seller may provide the notice prior to closing;

(2) Each seller and each purchaser shall sign and acknowledge the notice; and

(3) Following the execution, acknowledgment and closing of the sale and purchase, the notice shall be recorded in the real property records of the county in which the property is located.

(c) The failure of any seller to comply with this section shall constitute a misdemeanor punishable upon conviction by a fine of not more than $500.00. Each person who constitutes a seller shall be criminally responsible and each sale or conveyance for which the seller has failed to comply with this section shall constitute a separate offense.

(Ord. No. 89-1312, § 2, 9-20-89; Ord. No. 2014-364, § 4, 4-30-2014)

Note—Formerly § 41-11.

Secs. 10-557—10-600. Reserved.

ARTICLE XVI. ADOPT-A-LOT PROGRAM

Sec. 10-601. Definitions.

As used in this article, the words and terms defined in this section shall have the meanings ascribed, unless the context clearly indicates another meaning:

Department means the police department or its successor.

Director means the director of the department or any other person who is specifically designated in writing by the director to perform any function under this article on behalf of the director of the department.

Program means the adopt-a-lot program, as established under this article.

(Ord. No. 99-1380, § 2, 12-21-99; Ord. No. 02-528, § 14j., 6-19-02; Ord. No. 04-1075, § 8, 10-20-04)

Sec. 10-602. Powers and duties of the director.

(a) The director has responsibility for the enforcement of this article, as more particularly provided herein.

(b) The director shall promulgate written applications for volunteer organizations and community groups to participate in the program. The director shall determine the criteria required for an organization or a group and its members to be authorized to participate in the program in accordance with those criteria established in sections 10-603 and 10-604 of this Code. The director shall reject an application if the applicant does not meet all of the established criteria for participation in the program.

(c) The director upon approval of the applications of civic organizations and community groups shall authorize the members of such organizations and groups to act as volunteer independent contractors for the purpose of abating violations of article XI of this chapter relating to weeds, brush, rubbish, and other objectionable, unsightly, and insanitary matter located on abandoned or vacant private property within the city, after prior notification to the property owner by the director.

(d) The director shall provide the following services:

(1) Determine the lots to be adopted in the area served by each organization or group;

(2) Perform the initial abatement on the selected properties;

(3) Provide safety training regarding the use of the tools and equipment to the organization or group;

(4) Provide limited accident and disability insurance to the organization or group to cover the program participants;

(5) Provide limited types of city tools and equipment for use by each organization or group;

(6) Document the work performed by each organization or group; and

(7) Provide such other assistance as the director may determine is required or necessary.

(Ord. No. 99-1380, § 2, 12-21-99)

Sec. 10-603. Duties of the volunteer civic organizations and groups.

(a) Each volunteer civic organization or group shall agree to be responsible for the general maintenance, storage, and security of the city's equipment.

(b) Each volunteer civic organization or group shall agree to participate in the program for a minimum of two years.

(c) Each volunteer civic organization or group shall demonstrate the ability to carry out its duties under the program, including:

(1) Community support;

(2) Adequate number of volunteers; and

(3) Technical ability of volunteers to operate equipment.

(Ord. No. 99-1380, § 2, 12-21-99)

Sec. 10-604. Duties of the members of the volunteer civic organizations and groups.

(a) The members of each volunteer civic organization or group shall agree to hold the city harmless and release the city from any and all liability with respect to the program and their participation in the program in excess of the insurance coverage under section 10-602 (d)(4) of this article.

(b) The members of each volunteer civic organization or group shall agree to abide by all applicable laws and regulations and all terms, conditions, and guidelines imposed by the director.

(c) The members of each volunteer civic organization or group shall agree to be responsible for supervising and carrying out the details of the work they perform.

(Ord. No. 99-1380, § 2, 12-21-99)

Sec. 10-605. Contract.

The director shall promulgate a written contract in a form approved by the city attorney to be executed by the members to evidence the provisions of sections 10-603 and 10-604 of this Code.

(Ord. No. 99-1380, § 2, 12-21-99)

Secs. 10-606—10-650. Reserved.

ARTICLE XVII. ABATEMENT OF OFF-PREMISE SIGNS CONSTRUCTED OR MAINTAINED IN VIOLATION OF THE SIGN CODE*

Sec. 10-651. Definitions.

As used in this article, the following terms and phrases shall have the meanings ascribed to them in this section:

Off-premise sign shall have the meaning ascribed to it in Section 4603(a) of the Sign Code.

***Editor's note—**Ord. No. 2021-1037, § 20(Exh. I.18), adopted December 1, 2021, effective April 1, 2022, amended the title of Ch. 10, Art. XVII to read as herein set out. Formerly said article was entitled Abatement of Off-Premise Signs Constructed or Maintained in Violation of Section 4612(b) of the City of Houston Building Code.

Cross reference—Neighborhood nuisances, 10-451 et seq.

Owners means the owner of the off-premise sign and the record owner of the lot or parcel on which the off-premise sign is located.

Unauthorized refers to an off-premise sign that is in the process of being constructed, or is constructed or maintained in violation of the prohibition on new off-premise signs in Section 4612(b) of the Sign Code.

(Ord. No. 06-255, § 2, 3-8-06; Ord. No. 2021-1037, § 20(Exh. I.19), 12-1-2021, eff. 4-1-2022)

Sec. 10-652. Declaration; notice.

An unauthorized off-premise sign is declared to be a public nuisance. Whenever the existence of unauthorized off-premise sign within the limits of the city or within 5,000 feet outside the limits shall come to the knowledge of the sign administrator, the sign administrator shall cause a written notice identifying the unauthorized off-premise sign and directing its removal to be sent to the owners. The notice shall be sent in the manner provided for notices under article XI of this chapter, provided that the time allowed in the notice for abatement shall not be less than 30 days, and such notice shall further state that the owners are entitled to request a hearing to be held in the manner described in section 10-653 of this Code.

(Ord. No. 06-255, § 2, 3-8-06)

Sec. 10-653. Hearing.

The owners subject to abatement under this article may request a hearing by notifying the sign administrator within ten days following the date the city mails the required notice. The hearing shall be conducted by a hearing official designated by the Director of Houston Public Works for the purpose of determining whether the off-premise sign has been constructed or is being maintained in violation of section 4612(b) of the Sign Code. At the hearing, the owners and the sign administrator may present any evidence relevant to the proceedings, in accordance with reasonable rules adopted by the Director of Houston Public Works and approved by the city attorney. If the hearing official determines that the sign has been erected or is being maintained in violation of section 4612(b) of the Sign Code, the hearing official shall issue an order so stating.

(Ord. No. 06-255, § 2, 3-8-06; Ord. No. 06-419, § 1, 4-26-06; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 10-654. Abatement by city; expenses and liens.

If the owners fail to timely abate the unauthorized off-premise sign by complete removal of the sign structure, then the city shall be authorized to carry out the abatement thereof and to assess its expenses and place a lien in the same manner as provided in article XI of this chapter.

(Ord. No. 06-255, § 2, 3-8-06)

Sec. 10-655. Remedies cumulative, civil enforcement, other action not limited.

The procedures set forth in this article are cumulative of all other remedies available to the city relating to the subject matter hereof. Exercise of this remedy shall not be a bar against, nor a prerequisite for, taking any other available actions. Specifically, the city attorney may institute any legal action to enforce this ordinance or enjoin or otherwise cause the abatement of any condition described in this article, as well as for the recovery of all expenses incurred in connection therewith, including without limitation administrative and legal expenses, attorneys fees and costs, and for civil penalties as provided by law. The city attorney is hereby authorized to file a civil suit in a court of competent jurisdiction to prevent the violation of any of the provisions of this article. This remedy shall be cumulative and in addition to any other remedies.

(Ord. No. 06-255, § 2, 3-8-06)

Secs. 10-656—10-700. Reserved.

ARTICLE XVIII. ALTERNATIVE ADMINISTRATIVE ADJUDICATION PROCEDURE

Sec. 10-701. In general.

Every violation of an ordinance in this Code or the Construction Code that is described by Sec-

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tion 54.032 of the Texas Local Government Code or adopted under Section 214.001(a)(1) of the Texas Local Government Code may be prosecuted as an administrative offense using the alternative administrative adjudication procedure in this article. The adoption or use of this alternative administrative adjudication procedure does not preclude the city from prosecuting a violation of an ordinance described in this section through criminal penalties and procedures or through the procedures provided in article IX of this chapter.
(Ord. No. 2010-815, § 2, 10-13-2010)

Sec. 10-702. Definitions.

The following words, terms, and phrases when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Day means a calendar day, unless otherwise specified.

Inspector means all persons designated by the building official or neighborhood protection official to enforce the provisions of chapter 10 of this Code, the Construction Code, and related laws.
(Ord. No. 2010-815, § 2, 10-13-2010)

Sec. 10-703. Administrative citations and summons.

(a) An administrative citation or summons may be issued for violations described by Section 54.032 of the Texas Local Government Code or adopted under Section 214.001(a)(1) of the Texas Local Government Code. Each citation or summons will include the following information:

(1) The amount of the administrative penalty, costs, and fees;

(2) The nature, date, and location of the violation;

(3) The person's right to a hearing;

(4) The time, date, and location of the hearing;

(5) That the failure to timely appear at any scheduled hearing is an admission of liability for the violation for which the citation or summons was issued; and

(6) That the inspector who issued the citation or summons is not required to appear at the hearing, but the person charged with the violation may request that the inspector be present by submitting a written request to the clerk of the municipal courts at least 15 days before the hearing. Absent a timely request for the inspector to be present, the person charged is deemed to have waived the right to call and examine that inspector.

(7) That if the person charged wants a record of the proceeding or a translator, the person must notify the clerk of the municipal courts at least five days before the hearing date. Absent a timely request, the person is deemed to have waived the right to have a record of the hearing or to have a translator.

(b) For purposes of this article, a citation may also serve as a summons.
(Ord. No. 2010-815, § 2, 10-13-2010)

Sec. 10-704. Record of citations and summons.

The original or a copy of the administrative citation or summons shall be kept as a record in the ordinary course of the business of the municipality and is rebuttable proof of the facts it states.
(Ord. No. 2010-815, § 2, 10-13-2010)

Sec. 10-705. Service of administrative citations and summons.

(a) An administrative citation or summons may be served in the following manner:

(1) Personal service by:

a. Personally handing it to the person charged;

b. If the person charged is not available, leaving the citation or sum-

mons at the person's residence with any person who is 16 years of age or older; or

c. If the person charged is not available, leaving the citation or summons at the person's place of business with any person who is 16 years of age or older and an employee or agent of the person charged; or

(2) Mailing it by certified mail to the address shown in the appraisal district records of the county in which the premises or property that is the subject of the citation or summons is located; or

(3) Posting the citation or summons on either:

a. The front door of the premises or property; or

b. A placard staked to the yard of the premises or property in a location visible from a public street or alley.

(b) If service upon the person charged is by posting the citation or summons on the premises or property, a copy of the citation or summons must also be sent by regular United States mail to the address shown in the appraisal district records of the county in which the premises or property that is the subject of the citation or summons is located.

(c) If service upon the person charged is by posting the citation or summons on the premises or property, a photograph of the posting and a copy of the mailed notice must be forwarded with a copy of the citation or summons to the clerk of the municipal courts.
(Ord. No. 2010-815, § 2, 10-13-2010)

Sec. 10-706. Responding to citations and summons.

The person charged with the violation may answer the citation or summons by:

(1) Paying the administrative penalty, costs, and fees prior to the scheduled hearing date. Payment constitutes an admission of liability; or

(2) Appearing in person at the scheduled administrative hearing at the time, date, and location set forth in the citation or summons.
(Ord. No. 2010-815, § 2, 10-13-2010)

Sec. 10-707. Failure to appear.

(a) Failure to timely appear at any scheduled hearing is an admission of liability for the violation for which the citation or summons was issued.

(b) The hearing officer shall issue in writing an administrative order of liability and assess against the person charged with the violation the appropriate administrative penalties, costs, and fees.

(c) The administrative order must include:

(1) The amount of the administrative penalties, costs, and fees;

(2) Notification of the right to appeal to municipal court within 30 days of the date the hearing officer's order is filed with the clerk of the municipal courts;

(3) Notification that unless the hearing officer's order is stayed through a properly filed appeal, the administrative penalties, costs, and fees must be paid within 30 days of the date the hearing officer's order is filed with the clerk of the municipal courts; and

(4) Notification that the city may enforce the hearing officer's administrative order pursuant to the procedure in section 10-711.

(d) Within seven days of the filing of an administrative order of liability with the clerk of the municipal courts, the city shall send a copy of the order to the person charged with the violation. The copy of the administrative order must be sent by regular United States mail to the address shown in the appraisal district records of the county in which the premises or property that is the subject of the citation or summons is located.
(Ord. No. 2010-815, § 2, 10-13-2010)

Sec. 10-708. Hearing officers—Qualifications, powers, duties and functions.

(a) Hearing officers shall be appointed by the mayor to adjudicate administrative citations or summons issued under this article. Appointment shall be made for a two year term to begin as of the date of the appointment.

(b) A hearing officer must meet all of the following qualifications:

(1) Be a resident of the city at the time of appointment and maintain residency in the city throughout the period of appointment;

(2) Be a citizen of the United States;

(3) Be a licensed attorney in good standing; and

(4) Have two or more years of experience practicing law in the State of Texas.

(c) A hearing officer shall have the following powers, duties, and functions:

(1) To act as the fact finder and determine whether or not the person charged is liable;

(2) To assess administrative penalties, costs, and fees;

(3) To issue orders compelling the attendance of witnesses and the production of documents;

(4) To administer oaths;

(5) To question witnesses and consider evidence;

(6) To suspend the payment of administrative penalties, costs, and fees for a specific period of time not to exceed one year from the date the administrative order of liability is filed with the municipal court;

(7) To make a finding as to the financial inability of a person found liable of a violation to pay administrative penalties, costs, and fees; and

(8) To make a finding as to the financial inability of a person found liable of a violation to pay for the transcription of any recording of an administrative hearing or to post an appeal bond.

(Ord. No. 2010-815, § 2, 10-13-2010)

Sec. 10-709. Hearing procedures.

(a) Every hearing conducted pursuant to this article must be held before a hearing officer no sooner than 30 days after the citation or summons has been filed in municipal court.

(b) The person charged must personally appear at the hearing at the time, date, and location set forth in the citation or summons and at any subsequent hearings set because of postponement or continuance.

(c) The administrative citation or summons is rebuttable proof of the facts that it states.

(d) The formal rules of evidence do not apply at the administrative hearing and any relevant evidence will be admitted if the hearing officer finds it competent and reliable, regardless of the existence of any common law or statutory rule to the contrary. The hearing officer shall make a decision based upon a preponderance of the evidence presented at the hearing.

(e) Each party shall have the right to call and examine witnesses, to introduce exhibits that are relevant to the issues at the hearing, to cross examine opposing witnesses on any matter relevant to the issues, and to rebut evidence.

(f) The inspector who issued the citation is not required to be present at the hearing, but the person charged with the violation may request that the inspector be present by submitting a written request to the clerk of the municipal courts no later than 15 days before the hearing. Absent a timely request for the inspector to be present, the person charged is deemed to have waived the right to call and examine that inspector.

(g) If the person charged wants a record of the proceeding or a translator, the person must notify the clerk of the municipal courts at least five days before the hearing date. Absent a

timely request, the person is deemed to have waived the right to have a record of the hearing or to have a translator.

(h) The hearing officer may examine any witness and may consider any evidence offered by a witness or person charged with a violation.

(i) After hearing the evidence and testimony presented, the hearing officer shall issue a written order.

(1) If the hearing officer determines that the charged party is liable for the violation, then the hearing officer shall issue at the hearing an administrative order of liability for the violation and assess the appropriate administrative penalties, costs, and fees, and notify the person of the right to appeal to municipal court.

(2) If the hearing officer determines that the charged person is not liable for the violation, then the hearing officer shall issue at the hearing an administrative order of non-liability.

(j) A person who has been found liable for a violation may, after the hearing officer has issued an administrative order, but prior to the conclusion of the hearing, assert financial inability to pay the administrative penalties, costs, and fees assessed by the hearing officer. At that time, the hearing officer may stay enforcement of the administrative order and make a determination of financial inability to pay pursuant to sections 10-708 (7) and (8) of this Code.

(k) An administrative order issued by the hearing officer must be filed with the clerk of the municipal courts.

(l) Any record of an administrative hearing must be kept and stored for not less than 45 days after the last day of the administrative hearing. Any administrative hearing that is appealed must be transcribed from the record by a court reporter or other person authorized to transcribe court proceedings. The court reporter or other person transcribing the record of the hearing is not required to have been present at the administrative hearing.

(m) The person seeking to appeal an administrative order to the municipal court shall pay for any transcription of the record of the administrative hearing unless the hearing officer finds, pursuant to section 10-708 of this Code, that the person is unable to pay or give security for the transcription.
(Ord. No. 2010-815, § 2, 10-13-2010)

Sec. 10-710. Financial inability to pay for administrative penalties, costs, and fees; to pay for transcription of a record; or to post an appeal bond.

(a) A person found by the hearing officer to be financially unable to pay the administrative penalties, costs, and fees assessed must be:

(1) A resident of the property or premises that is the subject of the administrative order; and

(2) The sole owner of the property or premises, except that the person may be a co-owner of the property or premises if all other co-owners cannot be located or are themselves financially unable to pay the administrative penalties, costs, and fees as established by credible evidence.

(b) A person claiming a financial inability to pay the administrative penalties, costs, and fees assessed by the hearing officer; to pay for a transcription of the record; or to post an appeal bond must make that claim prior to the conclusion of the administrative hearing before the hearing officer.

(c) A person claiming a financial inability to pay the administrative penalties, costs, and fees; to pay for a transcription of the record; or to post an appeal bond must have an income that does not exceed 50 percent of the Houston Area Median Family Income as determined by the United States Department of Housing and Urban Development.

(d) After receiving a claim that a person found liable for violation under this article is financially unable to pay the administrative penalties, costs, and fees; to pay for a transcription of the record; or to post an appeal bond, the

hearing officer may set the matter for hearing and notify all parties of the hearing date by regular United States mail. The hearing officer's determination of whether the person found liable for a violation is financially unable to pay any administrative penalties, costs, or fees assessed by the hearing officer; to pay for a transcript of the record; or to post an appeal bond must be based on all information provided to the hearing officer by the person found liable or by the city attorney in opposition to the claim of financial inability.

(e) If the hearing officer determines that the person found liable for a violation does not have the financial ability to pay the administrative penalties, costs, or fees assessed by the hearing officer; to pay for a transcription of the record; or to post an appeal bond, then the hearing officer shall enter that finding in writing and may order that the penalties, costs, and fees be waived by the city.
(Ord. No. 2010-815, § 2, 10-13-2010)

Sec. 10-711. Enforcement.

An order issued by the hearing officer or a municipal judge under this article may be enforced by:

(1) Filing a civil suit for the collection of penalties, costs, and fees assessed against the person; or

(2) Obtaining an injunction to prohibit the specific conduct that violates the ordinance.

(Ord. No. 2010-815, § 2, 10-13-2010)

Sec. 10-712. Appeals.

(a) Either party may appeal the determination of the hearing officer by filing a petition and a bond for twice the amount of the administrative penalties, costs, and fees ordered by the hearing officer in municipal court within 30 days after the date the hearing officer's administrative order is filed with the municipal court. An appeals petition will not be accepted if a bond has not been filed with the municipal court, unless the appellant requests and receives a waiver pursuant to 10-712(b) of this Code.

The municipal court's ruling shall be final.

If the party does not timely file an appeal, then the hearing officer's ruling shall be final.

An appeal stays enforcement of the order of the hearing officer.

(b) An appellant to municipal court may request a waiver of the bond amount on the basis of financial inability to pay, in which case the hearing officer may hold a hearing pursuant to section 10-710 of this Code to determine whether the appellant is indigent and whether the bond amount may be waived. If the hearing officer's administrative order is reversed on appeal, the appeal bond will be returned to the appellant.

(c) If the administrative penalties, costs, and fees assessed in the final judgment are not paid within 30 days after the date the hearing officer's order is filed with the clerk of the municipal courts, the administrative penalties, fees, and costs may be referred to a collection agency and the cost to the city for the collection services will be assessed as costs to the person found liable, at the rate agreed to between the city and the collection agency, and added to the judgment.

(d) If the person found liable for violation timely requested a record of the proceedings pursuant to section 10-709(g) of this Code, and through no fault of the person, the record of the hearing is unavailable, then the municipal judge shall reverse the hearing officer's order and remand the matter to the hearing officer for a new administrative hearing.

(e) Upon receiving the record of the administrative hearing, the municipal judge shall review the record and may grant relief from the administrative order only if the record reflects that the appellant's substantial rights have been prejudiced because the administrative order is:

(1) In violation of a constitutional or statutory provision;

(2) In excess of the hearing officer's statutory authority;

(3) Made through unlawful procedure; or

(4) Affected by another error of law.

(f) The municipal judge shall rule on the appeal within 30 days after receiving the record of the administrative hearing. The municipal judge shall affirm the administrative order of the hearing officer unless the record reflects that the order violates one of the standards in subsection(e) of this section. If the record reflects that the hearing officer's order violated one of the standards in subsection(e) the municipal judge may:

(1) Reverse the hearing officer's order and find the appellant not liable;

(2) Reverse the hearing officer's order and remand the matter to the hearing officer for a new hearing; or

(3) Affirm the order, but reduce the amount of the administrative penalties assessed.

(g) The municipal judge's ruling on the appeal must be issued in writing and filed with the clerk of the municipal courts. A copy of the ruling must be sent by the clerk of the municipal courts to the appellant by regular United States mail at the last known address of the appellant as provided to the municipal court for the appeal.

(h) The municipal judge's ruling is a final judgment. If an appeal bond was posted, any administrative penalties, costs, and fees assessed by the municipal judge or by the hearing officer, if affirmed by the municipal judge, will be deducted from the appeal bond. If no appeal bond was posted, any administrative penalties, costs, and fees assessed by the municipal judge or by the hearing officer, if affirmed by the municipal judge, must be paid within 30 days after the municipal judge's ruling is filed with the clerk of the municipal courts, unless the administrative penalties, costs, and fees were waived pursuant to section 10-710(e) of this Code. The city may enforce the municipal judge's ruling pursuant to section 10-711 of this Code.
(Ord. No. 2010-815, § 2, 10-13-2010)

Sec. 10-713. Amount and disposition of administrative penalties, costs, and fees.

(a) The amount of the administrative penalties will be the same as those provided for criminal penalties throughout this Code and the Construction Code.

(b) When no specific penalty is provided for a violation that is enforced as an administrative offense under this article and that violation pertains to fire, safety, or public health and sanitation, then the violation shall be punished by an administrative penalty not exceeding $2,000.00.

(c) The administrative cost is stated for this provision in the city fee schedule and is subject to an annual adjustment by the director to reflect an increase or decrease in the CPI-U. The costs will be reviewed every three years in order to ensure accurate cost recovery. Any proposed adjustments beyond changes in the CPI-U will be presented to city council for approval.

(d) Administrative penalties, costs, and fees assessed under this article will be paid into the city's general fund.
(Ord. No. 2010-815, § 2, 10-13-2010; Ord. No. 2010-1063, § 2, 12-22-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Secs. 10-714—10-730. Reserved.

ARTICLE XIX. CHILD CARE HOMES

Sec. 10-731. In general.

The fire department may inspect each licensed child-care home and each registered child-care home at least once every 12 months.
(Ord. No. 2011-392, § 2, 6-1-2011)

Sec. 10-732. Definitions.

Care giver is the individual listed as the operator or care giver of a child-care home by the Texas Department of Family and Protective Services.

Licensed child-care home has the same meaning as defined in 40 Tex. Admin. Code § 747.111.

Registered child-care home has the same meaning as defined in 40 Tex. Admin. Code § 747.109.
(Ord. No. 2011-392, § 2, 6-1-2011)

Sec. 10-733. Notice.

Prior to an inspection, the fire department shall send written notice of the required fire

inspection to the care giver of each licensed and registered child-care home at the address published by the Texas Department of Family and Protective Services. The notice shall include a fire inspection form and information regarding payment.
(Ord. No. 2011-392, § 2, 6-1-2011)

Sec. 10-734. Scheduling an inspection.

Each care giver shall return completed fire inspection form, the inspection fee stated for this provision in the city fee schedule, and any required administrative fees to the fire department within 30 days of the date of the notice. Upon receipt of the form and fees, the fire department shall notify the licensed and registered child-care home's care giver of the inspection date and time.
(Ord. No. 2011-392, § 2, 6-1-2011; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 10-735. Inspections.

(a) Only the city's fire department may conduct a fire inspection of licensed and registered child-care homes in the city under this article. The inspector shall provide to the care giver a written summary of the results of the inspection. Unless the child-care home is found to constitute a fire hazard under Article VIII of this chapter, care givers shall remedy any problems identified by the inspection within 30 days of the initial inspection. The fire department shall conduct a follow-up inspection on the 30th day of the initial inspection or earlier if it receives notice that the problem has been resolved before the deadline. There shall be no charge for the first follow-up inspection. If any problem remains after the follow-up inspection and a third inspection is required, the re-inspection fee stated for this provision in the city fee schedule will be assessed.

(b) If a child-care home is found to constitute a fire hazard, the provisions in Article VIII of this chapter shall apply.
(Ord. No. 2011-392, § 2, 6-1-2011; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 10-736. Reporting violations.

The city shall report violations of this article, city ordinance and codes, and state laws and regulations to the Texas Department of Family and Protective Services.
(Ord. No. 2011-392, § 2, 6-1-2011)

Sec. 10-737. Penalties.

Failure to comply with this article will result in a penalty of not more than $2,000.00 for each day of the violation. Additional fines or penalties may be imposed as authorized by this Code or state law.
(Ord. No. 2011-392, § 2, 6-1-2011)

Secs. 10-738—10-750. Reserved.

ARTICLE XX. HOARDING AND RELATED BEHAVIORS

Sec. 10-751. Definitions.

When used in this article, the following words and phrases have the meaning stated, unless the context of their usage clearly indicates another meaning:

Dwelling unit means an interior space that provides an independent residential facility for one or more individuals (including permanent provisions for living, sleeping, eating, cooking, and sanitation) and that is used regularly for such purposes, together with any adjoining exterior space (such as a patio, carport, or fenced area) that reasonably appears to be part of the same independent facility. Notwithstanding the foregoing definition, space in any of the following structures does not constitute a *dwelling unit*:

(a) Jails;

(b) Hotels (as defined by article III of chapter 44 of this Code); and

(c) Buildings providing sleeping facilities primarily for the purpose of rendering services regulated by a department or agency of the federal government or of the State of Texas

(including, but not limited to, the Texas Department of State Health Services).

Enforcing official is any person listed in section 10-752(b) of this Code and the said person's designees.

Occupant means an individual at least eighteen years old having lawful possession of a *dwelling unit*.

Property means a parcel of land to which a single account number has been assigned by an appraisal district.

Serious and immediate hazard means a condition that in the absence of immediate corrective action by the city presents a reasonable likelihood of causing serious bodily injury to a human being. The likelihood of a serious and immediate hazard may be determined from the personal observation of any person or from circumstantial evidence.
(Ord. No. 2014-331, § 2, 4-16-2014)

Sec. 10-752. Scope; responsibility for enforcement.

(a) This article applies to:

(1) Any property containing two or more dwelling units, without regard to the form of the ownership of the property;

(2) Any dwelling unit that shares a common interior wall with another dwelling unit, without regard to the form of the ownership of the property or properties on which the dwelling units are located; and

(3) Any dwelling unit subject to a lawful condominium declaration within the meaning of either Chapter 81 or Chapter 82, Texas Property Code.

(b) The chief of police is primarily responsible for the enforcement of this article, in coordination with the fire chief, the city attorney, the director of public health, the director of the department of neighborhoods and the Director of Houston Public Works, as appropriate to the circumstances of the violation.
(Ord. No. 2014-331, § 2, 4-16-2014; Ord. No. 2015-820, § 10, 8-26-2015; Ord. No. 2018-11, § 10, 1-10-2018)

Sec. 10-753. Unlawful accumulations.

It is unlawful for an occupant of a dwelling unit within the scope of this article to store or otherwise to accumulate in or on the dwelling unit objects or substances of a nature or in a quantity reasonably likely to create a hazard to the safety or health of an occupant of another dwelling unit on the same or a contiguous property, even if the objects or substances are not visible from a public place or a public right-of-way.
(Ord. No. 2014-331, § 2, 4-16-2014)

Sec. 10-754. Penalty for violations.

(a) Unless a different penalty is provided elsewhere in this Code, a person violating this article shall be guilty of a misdemeanor and upon conviction shall be fined not less than $200.00 nor more than $500.00. Each day a violation continues shall constitute a separate offense.

(b) Upon discovery of a violation of this article, the enforcing official may issue to the violator a criminal citation enforceable in municipal court, provided that the violation remains after the enforcing official has issued to the violator a written warning affording a reasonable opportunity to cure the violation.
(Ord. No. 2014-331, § 2, 4-16-2014)

Sec. 10-755. Authority to enter property; warrants; emergencies.

(a) For purposes related to the enforcement of this article, authority to enter a dwelling unit includes authority to enter the property on which the dwelling unit is located, but only to the extent necessary to access the dwelling unit against which this article is being enforced.

(b) For purposes related to the enforcement of this article, an enforcing official may enter a dwelling unit, but only with written or verbal permission from an occupant, unless otherwise provided by this section.

(c) If circumstances exist that would lead a reasonable person to conclude the enforcing official does not have permission to enter a dwelling unit, entry shall be made only under authority of a warrant issued by a magistrate.

(1) In applying for a warrant, the official shall submit to the magistrate an affidavit, which may be based on information supplied by others, describing with reasonable specificity the dwelling unit into which entry is sought, stating facts giving rise to the official's reasonable belief that the dwelling unit is in violation of this article, and, to the extent known by the official after reasonable inquiry, the name and contact information of the occupant(s) of the dwelling unit.

(2) If the magistrate finds that probable cause exists for the enforcing official's entry into the dwelling unit, the magistrate shall issue a warrant authorizing the entry. The warrant shall constitute authority for the official to enter and to inspect the dwelling unit, to gather evidence by reasonable means, including photography and videography, and to procure samples and specimens as reasonably necessary to determine the existence and extent of a violation of this article. It is unlawful for a person to interfere or to refuse compliance with a warrant issued pursuant to this section.

(d) Notwithstanding anything to the contrary in this section, if the enforcing official reasonably believes that a serious and immediate hazard exists in or on a dwelling unit, the official may enter the dwelling unit at any time. In such circumstances the enforcing official:

(1) May be accompanied by other city employees, including officers of the police department;

(2) Shall make every reasonable effort to present proper identification to the owner, tenant, or other person who reasonably appears to have a right to occupy or to control the dwelling unit;

(3) Shall remain in or on the dwelling unit only for such time as is reasonably necessary to conduct inspections and to gather evidence required to determine whether a serious and immediate hazard exists; and

(4) As soon as reasonably possible, shall memorialize the circumstances of the official's entry into the dwelling unit. The memorialization may be typed, handwritten, or in electronic form and shall be preserved in the records of the enforcing official.

After expiration of the time prescribed in subsection (d)(3) of this section, the official may enter a dwelling unit only under the authority of subsections (b) or (c) of this section.
(Ord. No. 2014-331, § 2, 4-16-2014)

Sec. 10-756. Authority to consult with mental health organization.

In a manner consistent with an operating procedure promulgated by the chief of police, an enforcing official may consult with MHMRA of Harris County (or with another nonprofit mental health organization approved in writing by the chief of police) when circumstances related to the enforcement of this article reasonably indicate that an occupant of a dwelling unit may suffer from a mental illness, including but not limited to a hoarding disorder as described in the then-current edition of the *Diagnostic and Statistical Manual of Mental Disorders*.
(Ord. No. 2014-331, § 2, 4-16-2014)

Sec. 10-757. Article supplemental.

The provisions of this article are cumulative of all other ordinances, laws, and applicable regulations.
(Ord. No. 2014-331, § 2, 4-16-2014)

Secs. 10-758—10-1000. Reserved.

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Chapter 11

BURGLAR AND FIRE ALARM PROTECTIVE SERVICES*

Art. I. In General, §§ 11-1—11-5
Art. II. Fire Alarm Services, §§ 11-6—11-31
Div. 1. General Fire Alarm Process, §§ 11-6—11-10
Div. 2. Fire Alarm Permits; False Fire Alarm Fees, §§ 11-11—11-31
Art. III. Burglar Alarms, Holdup Alarms and Other Similar Alarm Systems, §§ 11-32—11-56

ARTICLE I. IN GENERAL

Secs. 11-1—11-5. Reserved.

ARTICLE II. FIRE ALARM SERVICES

DIVISION 1. GENERAL FIRE ALARM PROCESS†

Sec. 11-6. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Fire alarm protective service. Any service whereby any person provides or employs electronic or mechanical means to detect the presence of fire on any premises in the city, the report of which is then transmitted to or through the communication system of the fire department or which system is in any manner connected with the fire alarm communication system of the fire department. The term also means the activity of maintaining, servicing, repairing, altering, replacing, moving or installing in or on any building, place or premises any device designed or used for detection of fire.

Local alarm. A protective signaling system so designed and operated that (1) the equipment for detecting fire, smoke or heat, or for manually activating the alarm and (2) the equipment for signaling a warning thereof by bell, horn, siren or other means are located on the particular premises being protected.

Person. A person as defined in section 1-2 of this Code other than the city.

(Ord. No. 02-527, §§ 2, 3, 6-19-02; Ord. No. 03-1101, § 2, 11-12-03)

Note—Formerly, § 11-16.

Sec. 11-7. Automatic telephone devices.

No person shall use or permit the use of any telephone device or telephone attachment which automatically selects any city telephone trunkline or number leading into the fire department or other offices of the city and then transmits any prerecorded fire alarm message or signal which indicates the presence or possibility of the presence of a fire at any location.

(Ord. No. 02-527, § 2, 6-19-02)

Note—Formerly, § 11-17.

Sec. 11-8. Standards.

(a) The fire chief may establish minimum standards and permit fire alarm protective services which meet those standards to connect their systems directly to the dispatcher's office of the fire department by dedicated telephone line when he finds that the methods of operations of companies meeting such standards will give reasonable assurance that the use of such connections will not impose a burden on the fire department.

(b) No person shall operate a fire alarm protective service unless it complies in all respects, including the maintenance of runners and appro-

*__Cross reference—__Police and fire protection, Ch. 34.

†__Editor's note—__Section 2 of Ord. No. 02-527, adopted June 19, 2002, added Div. 1 title to read as set out. Said section also renumbered §§ 11-16—11-20 as §§ 11-6—11-10.

priate record keeping systems, with the applicable requirements set out in N.F.P.A. Pamphlet No. 71, 1977 edition, entitled "Central Station Signaling Systems" and complies with the applicable requirements of state laws, rules and regulations.
(Ord. No. 02-527, § 2, 6-19-02)

Note—Formerly, § 11-18.

Sec. 11-9. Dispatch personnel.

All fire alarm protective services shall provide the necessary personnel giving them the capability to respond, upon request by any member of the fire department, to the scene of an activated alarm 24 hours of each day, Saturdays and Sundays included. It shall be unlawful for such fire alarm protective service to fail to dispatch personnel, after being notified that such alarm is sounding, to come to the premises to shut off such alarm or to assist firemen in an inspection of the premises.
(Ord. No. 02-527, § 2, 6-19-02)

Note—Formerly, § 11-19.

Sec. 11-10. Local alarms.

No local alarm shall make a sound similar to that of a siren on emergency vehicles or similar to a civil defense warning system. The permit holder and person in control as defined in Article II of Chapter 11, shall ensure that a clearly legible notice is posted and maintained upon the exterior of the structure at or near the location of such alarm, stating the name and telephone number of the person designated to be notified to render repairs or service during any hour of the day or night that such alarm sounds, signals or activates. Such notice shall be posted in such a position as to be readable by a person of average height from the ground level adjacent to the structure. It shall be unlawful for such designated person, after being notified that the local alarm is sounding, signaling or otherwise activated, to refuse to come to the premises to shut off such alarm or to assist firemen in an inspection of the premises.
(Ord. No. 02-527, § 2, 6-19-02; Ord. No. 03-1101, § 3, 11-12-03)

Note—Formerly, § 11-20.

DIVISION 2. FIRE ALARM PERMITS; FALSE FIRE ALARM FEES

Sec. 11-11. Definitions.

The following words, terms, and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alarm actuating device means any mechanical, electrical, electronic or radio-controlled alarm device designed or intended to, or that does emit a sound or transmit a signal or message when activated because of smoke, heat, or fire to summon, or that would reasonably be expected to summon, or cause to be summoned, directly or indirectly, fire response services of the city. The term includes a local alarm.

Alarm site means the premises or location where the alarm system(s) is installed or operated.

Alarm system means one or more alarm actuating devices controlled by one person and designed to function together and to be monitored together for protection of one alarm site. Alarm systems are classified as follows:

(1) *Group A* means an alarm system with not more than ten alarm actuating devices;

(2) *Group B* means an alarm system with not less than 11 nor more than 100 alarm actuating devices; and

(3) *Group C* means an alarm system with 101 or more alarm actuating devices.

Applicant means the person who makes application to be the permit holder of the alarm system.

False fire alarm means an incident in which the operation of an alarm system elicits an emergency response by the fire department when a situation requiring such a response by the fire department did not in fact exist. The term does

not include an otherwise false alarm if the fire chief determines that the false alarm was caused primarily by one or more of the following:

(1) Manual alarm notification to the fire department and the person actuating the alarm was acting under a reasonable belief that smoke or fire existed; or

(2) Any cause clearly unrelated to the proper maintenance, use or operation of the alarm system that is beyond the control of the permit holder.

False fire alarm response. For purposes of this division, the fire department is deemed to have made an emergency response to the false fire alarm at the moment that it receives notice of an alarm that is subsequently determined or deemed to be a false fire alarm.

Fire chief means the chief of the fire department or his designee(s).

Permit holder means the person to whom an alarm system permit is issued who shall be a person in control of the premises where the alarm system is installed, maintained, or operated site.

Person in control means a person who owns, leases, possesses, resides at or manages the alarm site.

Single-family residential dwelling means a house, apartment, condominium, town home or similar dwelling unit (attached or detached) designed for occupancy by no more than one family and designed for living, sleeping, cooking and eating therein unless actually occupied or used primarily for other purposes. The term does not include day care centers, or units of hotels, "all-suites" and "suites hotels", motels or similar transient housing facilities. The term also does not include units of a residential apartment complex, condominium, town home or other multi-unit housing facility if a centrally monitored fire alarm system protects two or more individual apartment units or suites.
(Ord. No. 02-527, § 4, 6-19-02; Ord. No. 03-1101, §§ 4, 5, 11-12-03)

Sec. 11-12. Permit required.

(a) It is unlawful for any person to operate, cause to be operated, or allow the operation of an alarm system unless a valid permit issued in accordance with this division is in effect for that system. All persons in control of any part of the alarm site are deemed to have operated or caused or allowed to be operated the alarm system and shall be jointly and severally liable for payment of response fees.

Note—Section 11-12(a) as adopted by Ord. No. 02-527, shall become effective on the 180th day next following the date that this ordinance is passed and approved. All other provisions of this ordinance shall take effect immediately. To allow for orderly implementation of this ordinance, and so any person who requires a permit under this ordinance will have an opportunity to avoid penalties and fees imposed by this ordinance for failure to have a valid permit, the fire chief or his designees shall begin accepting and processing properly submitted applications for permits on the 120th day prior to the effective date of the delayed sections. If application for a permit for an alarm system has been submitted and the required permit fee paid prior to the effective date of the delayed sections, no person shall be subject to enforcement of the delayed sections in connection with the alarm system until after the effective date of the delayed sections and the earlier of the date the fire chief 1) issues a permit for the alarm system, or 2) mails a denial of permit notice to the applicant at the address set out in the application.

(b) The issuance of a permit authorizing the use of an alarm system is not intended to nor shall it create a contract, either express or implied, creating a duty or guarantee of. Any and all liability and consequential damages resulting from responding or the failure to respond to a fire alarm are hereby disclaimed and governmental immunity as provided by law is retained.

(c) The fire chief shall have the right to inspect any alarm system at the alarm site at any reasonable time to determine whether it is being used in conformity with this division.

(d) It is an affirmative defense to civil or criminal liability under this division that the alarm system is operated solely for the protection of one single-family residential dwelling.
(Ord. No. 02-527, § 4, 6-19-02; Ord. No. 03-1101, § 6, 11-12-03)

Sec. 11-13. Same—Application.

(a) Application for a permit authorizing the operation of an alarm system shall be made in writing to the fire department on forms designated for that purpose. On such application shall be set forth:

(1) The name, address, telephone number(s), federal employee identification number, state sales tax number, corporate charter number, and Texas driver's license number (if applicable) of the applicant.

(2) Copies of the assumed-name registration if the alarm site will be operated under an assumed name; the partnership registration, if any, and the names and addresses of all general partners if the permit holder is a partnership; the Texas corporate charter or certificate of authority to do business in Texas if a foreign corporation, along with the names and addresses of all officers and the registered agent.

(3) The street address of the alarm site at which the alarm system is or will be installed and operated, including the particular suite, apartment, unit, or other similar occupancy number(s) or designation(s), if applicable.

(4) Any business names used for the alarm site.

(5) The name of the alarm system business or other person that has installed or will install and monitor the alarm system.

(6) In addition to the permit holder,

a. The names and telephone numbers of two individuals, or the name and local telephone number of an alarm system business which are able to and have agreed to:

(i) Receive fire alarm notification at any time;

(ii) Come to the alarm site within one hour after receiving a request from a member of the fire department to do so; and

(iii) Grant access to the alarm site and to deactivate the alarm system if such becomes necessary; or

b. The name and telephone number of an alarm system business that is able to and has agreed to receive calls at any time and to give the fire department the names of individuals listed with that company as set out below if:

(i) The permit holder has given the alarm system business the names and local telephone numbers of two individuals who are able and have agreed to receive fire alarm notification at any time; to come to the alarm site within one hour after receiving a request from a member of the fire department to do so; and to grant access to the alarm site and to deactivate the alarm system if necessary; and

(ii) The permit holder has authorized the alarm system business to provide the names listed with that business pursuant to section 11-13(a) of this Code to the fire department whenever that department has requested that information in order to obtain assistance after an alarm has been activated.

(7) Whether all fees due under this division owed to the city by the applicant, its partners, officers, and owners have been paid.

(8) Such other information as the fire chief may determine is necessary.

(b) The application shall be signed by an owner, officer, or partner of the applicant if the applicant is not an individual, or by the individual applicant for the permit acknowledging that he has read the application, affirming the correctness and accuracy of the information given on the application,

and authorizing the release to the fire department of information specified in section 11-13(a) of this Code.

(c) The fire chief shall issue a permit upon submission of an application therefor in accordance with this division and payment of the permit fee, unless the fire chief finds that any statement made in the application was incomplete, misleading, or false; that the applicant, its partners, officers, and owners have not paid all fees due under this division owed to the city; that the alarm system installed at the alarm site has, or is of the type that is prohibited by division 1 of this article or of a type that has had a history of unreliability; or if the alarm site was previously non-permitted while under the control of the applicant, its partners, officers, and owners, and has outstanding false fire alarm fees owed to the city. The fire chief shall establish reasonable standards for determining reliability or unreliability of alarm systems and promulgate written regulations setting forth those standards. If the fire chief denies the application for a permit, the fire chief shall cause to be mailed by certified mail, return receipt requested, a denial notice to the applicant at the address set out in the application and shall maintain a copy thereof. The notice shall state the reasons for the denial and advise the applicant of the right to a hearing as provided by section 11-23 of this Code.
(Ord. No. 02-527, § 4, 6-19-02; Ord. No. 03-1101, § 7, 11-12-03)

Sec. 11-14. Same—Term; renewal.

(a) Each permit issued pursuant to this division shall be valid for a 12-month period from the date of issuance as stated on the permit. If the permit holder relinquishes control of the alarm site before the expiration of the permit period, then the permit terminates on the date of such relinquishment, and any subsequent person in control is required to obtain a new permit before the alarm system can be lawfully operated. If the permit holder fails to deliver written notice of cancellation of the permit to the fire department prior to such relinquishment, the permit holder shall be liable as if he were a person in control of the alarm site, for all subsequent non-permitted response fees, jointly and severally with any other persons liable as provided in this division.

(b) The city shall give at least 30 days notice of the expiration date and need for renewal. A renewal application must be presented to the fire chief along with the renewal fee not less than ten business days before expiration of the permit. If the permit is not renewed as of the expiration date, then a new permit must be obtained. If any fees due under this division remain owed to the city or if there is a history of unreliability of the alarm system, the fire chief shall deny the renewal application until such time as all fees due under this division have been paid and unreliability of the alarm system is shown to have been corrected according to fire department regulation. The renewal permit shall be issued for the 12 month period from the date of renewal. Upon expiration of a permit that is not renewed, the provisions of section 11-12(a) shall apply until a new permit is issued.
(Ord. No. 02-527, § 4, 6-19-02)

Sec. 11-15. Same—Fees.

The fees for a new permit and for a renewal permit are stated for this provision in the city fee schedule.
(Ord. No. 02-527, § 4, 6-19-02; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 11-16. Same—Nontransferable; re-application required following revocation.

Each permit issued shall be valid only for the alarm site and alarm system permitted, and shall not be transferable to any other person or premises. Upon transfer from the permit holder of ownership or leasehold rights to the alarm site, or upon revocation of the permit, the permit shall terminate, and a new permit must be applied for according to this division. Upon termination of the permit and before a new permit is issued, the provisions of section 11-12(a) shall apply.
(Ord. No. 02-527, § 4, 6-19-02)

Sec. 11-17. Same—To be kept at alarm site.

The permit holder shall keep the alarm permit at the alarm site and shall produce the permit for inspection upon the request of any member of the fire department or other official authorized to enforce the provisions of this division.
(Ord. No. 02-527, § 4, 6-19-02)

Sec. 11-18. Duties.

The permit holder shall:

(1) Ensure that the individuals listed with the fire department under section 11-13(a)(6) of this Code are able to:

a. Receive fire alarm notification at any time;

b. Come to the alarm site within one hour after receiving a request from a member of the fire department to do so; and

c. Grant access to the alarm site and if necessary, deactivate the alarm system.

(2) Train all persons who may activate the alarm system in the proper operation of the alarm system.

(3) Pay when due all fees associated with the permit and the operation of the alarm system.

(4) Maintain the alarm site in a manner that ensures proper operation of the alarm system.

(5) Maintain or cause to be maintained the alarm system in a manner that will minimize false fire alarms.

(6) Respond or cause a representative to respond within a reasonable period of time when notified by the city to repair a malfunctioning alarm system, to provide access to the alarm site, or to provide security for the alarm site.

(7) Not manually activate an alarm for any reason other than an occurrence of an event that the alarm system was intended to report.

(8) Maintain at the alarm site a complete set of written instructions for the alarm system. Special codes, combinations, or passwords must not be included in these instructions.

(Ord. No. 02-527, § 4, 6-19-02)

Sec. 11-19. Fees for city responses to false fire alarm; hearing on false alarm determination.

(a) A permit holder will be charged a fee of $360.00 for each false fire alarm response by the fire department in excess of the following, during each permit period:

(1) Five false fire alarms for a Group A alarm system,

(2) Fifteen false fire alarms for a Group B alarm system, or

(3) Thirty false fire alarms for a Group C alarm system.

(b) If the false alarm(s) occurred during the three month period commencing on the date of the first operation of a newly installed alarm system, the permit holder shall not be charged the fee under subsection (a) of this section, and the false alarms shall not count against the number of false alarms allowable under that subsection.

(c) If the fire department receives notice of any fire alarm from an alarm system that does not have a valid permit, then each person in control of any portion of the alarm site shall be jointly and severally liable to the city for a fee of $300.00 for each false fire alarm response by the fire department. Notwithstanding the general definition of "false fire alarm" as set forth in section 11-11 of this Code, for the limited purposes of this subsection, "false fire alarm" means an incident in which the operation of an alarm system elicits an emergency response by the fire department when a situation requiring such a response by the fire department did not in fact exist; however, the term does not include an otherwise false fire alarm if the fire chief determines that the false alarm was caused primarily by a manual alarm

notification to the fire department and the person actuating the alarm was acting under a reasonable belief that smoke or fire existed.

(d) A notice of each false alarm (the "false alarm notice") shall be mailed to the permit holder, or the person in control if there is no valid alarm permit, within 30 days from the date of the false fire alarm response. Fees assessed under this subsection, if applicable, shall be paid within 30 days following the date that the city places the false alarm confirmation notice in the mail, unless a hearing has been timely requested under subsection (e), below.

(e) If the permit holder, or the person in control if there is no valid alarm permit, disputes any part of the false alarm notice, he must mail or deliver a written statement to the fire chief requesting a hearing. The request for hearing must be received by the fire chief not later than the 30th day following the date that the city places the false alarm confirmation notice in the mail. The sole purpose of the hearing is to ascertain whether or not the disputed alarm was false. The request for hearing shall specify facts and have documents and records attached that prove the alarm was not false. Hearings shall be conducted in accordance with the rules established for that purpose by the fire chief. The proceedings shall be informal. Without limitation of other provisions that the fire chief may establish in his rules, the records generated by the fire department personnel who responded to the alarm shall be admissible as proof of their contents and it shall not be required that the fire department personnel who responded be made available to testify at the hearing. The fire chief shall have the discretion at any time prior to the hearing to reverse a false alarm determination if the records clearly establish the response was not in fact a false fire alarm. At the hearing, the burden shall be upon the person requesting the hearing to demonstrate by a preponderance of the evidence that the fire alarm was not a false fire alarm. The decision of the hearing officer shall be final and fees assessed, if applicable, shall be paid within 15 days following the date that notice of the decision is mailed to the appellant.

(f) *Collection fee.* A collection fee shall be added to each false fire alarm response fee assessed under this section if the false fire alarm response fee remains unpaid on the 61st day after it is due. Collection fees are due and payable on the day they are added to the false fire alarm response fee. The collection fee shall be 30 percent of the false fire alarm response fee amount unless state law requires a lesser amount, in which case such lesser amount shall apply.
(Ord. No. 02-527, § 4, 6-19-02; Ord. No. 07-1298, § 2, 11-28-07; Ord. No. 2010-1016, § 2, 12-15-2010)

Sec. 11-20. Systems performance reviews.

If the fire chief believes that an alarm system is not being used or maintained in a manner that reasonably insures proper operation and prevention of false fire alarms, the fire chief may require a conference with the permit holder and the individual or other entity responsible for maintenance of the alarm system to review circumstances of each alarm.
(Ord. No. 02-527, § 4, 6-19-02)

Sec. 11-21. Violations; penalty; corporations; partnerships and associations.

(a) Whenever in this division an act is prohibited or is made or declared to be unlawful or an offense or misdemeanor, or whenever in this division the doing of any thing or act is required or the failure to do any thing or act is prohibited, the violation of the provision shall be and constitute a misdemeanor punishable, upon conviction, by a fine of not less than $250.00 nor more than $2,000.00. Each violation shall constitute and be punishable as a separate offense. Prosecution or conviction under this provision is cumulative of and shall never be a bar to the imposition or collection of false fire alarm fees or any other civil or administrative remedy provided or allowed in this division.

(b) In addition to prohibiting or requiring certain conduct of individuals, it is the intent of this division to also hold a corporation, partnership, association, limited partnership, limited

liability corporation or other such entity criminally responsible for acts or omissions performed by an agent acting in its behalf.
(Ord. No. 02-527, § 4, 6-19-02)

Sec. 11-22. Revocation of permit.

The permit for a fire alarm system will be revoked or refused for renewal for any of the following reasons:

(1) The permit holder has failed to make payment in full to the city of any fees due under this division within 30 days of the date the city has mailed a notice to the permit holder that the fees are due and owing or within 15 days following the date of mailing of the decision notice where an appeal has been timely filed; or

(2) The permit holder accrues more than twice the number of false fire alarms for the applicable group referred to in section 11-19(a) of this Code during the permit period; or

(3) Any fact or circumstance exists that would be a basis for denial of an application for issuance or renewal of a permit, or the permit was otherwise obtained or issued in error.

(Ord. No. 02-527, § 4, 6-19-02)

Sec. 11-23. Appeals.

(a) A person may appeal the denial or revocation of a permit by delivering a written request for an appeal to the fire chief not more than 15 days after the first date of mailing written notice of denial or revocation. The notice of denial or revocation shall be sent to the permit holder or applicant by certified mail, return receipt requested, addressed to the permit holder or applicant at the alarm site address, or to such other address specified by them in writing to the fire department.

(b) All hearings shall be held by a hearing officer appointed by the fire chief. The fire chief shall not designate any person to perform the duties of hearing officer under this section who has participated in the investigation of false fire alarms from the alarm site in question, or has prior knowledge of the allegations or circumstances discovered in such investigation. The hearing officer, may, prior to the hearing, receive a copy of the notice given to the permit holder.

(c) An assistant city attorney may be present at the hearing to advise the hearing officer as to procedural matters; however, the attorney shall not participate in any determination of the facts.

(d) All hearings shall be conducted under rules consistent with the informal nature of the proceedings; provided, however, the following rules shall apply to all hearings:

(1) All parties shall have the right to representation by an attorney licensed to practice in Texas though an attorney is not required.

(2) Each party may present witnesses in his own behalf.

(3) Each party has the right to cross examine all witnesses.

(4) Only evidence presented before the hearing officer at the hearing shall be considered in rendering the decision.

(e) The hearing officer may affirm or reverse a permit denial or a permit revocation; however, the exclusive remedy for determining whether a response was a false fire alarm response shall be the review process established in section 11-19(e) of this Code. No proceeding under this section may be used to address or reconsider the determination of whether or not a response was a false fire alarm response.
(Ord. No. 02-527, § 4, 6-19-02)

Sec. 11-24. Policies and procedures.

The fire chief shall institute in accordance with this division policies and procedures necessary to implement and enforce this division.
(Ord. No. 02-527, § 4, 6-19-02)

Secs. 11-25—11-49. Reserved.

ARTICLE III. BURGLAR ALARMS, PANIC ALARMS AND OTHER SIMILAR ALARM SYSTEMS*

Sec. 11-50. Application; purpose.

It is the purpose of this article to:

(1) Regulate the activities and establish the responsibilities of persons who purchase, rent, operate or use an alarm system subject to this article and, to the full extent permitted by Texas law, persons who engage in the business of selling, leasing, renting, installing, maintaining or monitoring such alarm systems pursuant to a permit or license issued by the State of Texas; and

(2) Promote the improved reliability of alarm systems governed by this article to ensure that police department and HEC personnel will not be unduly diverted from responding to actual criminal activity as a result of responding to false alarms.

This article is intended to specifically encompass "burglar alarms," "holdup alarms," and "panic alarms," whether audible or inaudible (silent), and other such alarm systems, but not audible alarms affixed to motor vehicles, personal emergency response system alarms, or fire alarms. (Ord. No. 08-387, § 2, 4-30-08)

Sec. 11-51. Definitions.

In this article, unless the context clearly otherwise requires:

Activate means the completion of all steps necessary to render an alarm system capable of carrying out its intended function of producing an alarm notification under appropriate circumstances.

Alarm notification means the receipt of notice transmitted to HEC or the police department that an alarm signal has been detected and that a police department response is being requested.

Alarm permit means a certificate issued by the department pursuant to this article authorizing a person to operate or use an alarm system in accordance with this article.

Alarm signal means the transmission of a signal, whether by electronic or other means, by an alarm system to an alarm systems company in response to an incident at the alarm site.

Alarm site means the single fixed premises or location where an alarm system is operated, used, installed or rendered capable of being activated.

Alarm subscriber means a person who directly or through another person contracts with an alarm systems company. Each alarm subscriber is deemed to be a person who operates or uses, causes or allows the operation or use of the alarm system and will be liable for the payment of permit fees, fines or penalties, or the performance of other duties and responsibilities as provided in this article.

Alarm system means any mechanical, electrical, electronic or radio-controlled alarm device or equipment designed to or that does emit or transmit an alarm signal that is designed or intended to produce an alarm notification. Alarm system includes, but is not limited to, silent, audible, panic, holdup, burglar and local alarm systems. Alarm system also includes a device designed and installed for the purpose of transferring video images reflecting existing conditions at an alarm site to an alarm systems company. The term does not include a personal emergency response system alarm, a fire alarm system designed solely to detect fire or smoke, or an alarm installed in a motor vehicle solely to prevent theft of the vehicle.

Alarm systems company means any person who engages in the business of monitoring, selling, leasing, renting, maintaining, servic-

*__Editor's note—__Ord. No. 08-387, § 2, adopted April 30, 2008, amended Art. III in its entirety to read as herein set out. Formerly said article pertained to burgular alarms, holdup alarms and other similar alarm systems and derived from Ord. No. 91-1346, § 2, 9-18-91.

ing, repairing, altering, replacing, or installing alarm systems or rendering such systems capable of generating an alarm signal.

Applicant means a person who makes application to the department to obtain an alarm permit and will be liable for the payment of permit fees, fines or penalties, or the performance of other duties and responsibilities as provided in this article. The term does not include a person who merely fills out an application for another person.

Automatic dialer or *automatic dialing device* means any electrical, electronic, mechanical or other device capable of being programmed to send an alarm notification in the form of a prerecorded voice message to the police department or HEC over a telephone line, radio or other communication system when an alarm signal is generated.

Burglar alarm system means an alarm system designed to detect an attempted or actual unauthorized entry into the alarm site and transmit a signal to an alarm systems company for the purpose of generating an alarm notification.

Common cause means a technical difficulty or malfunction that causes an alarm system to generate a series of two or more false alarms.

Deactivate means to disconnect or render an alarm system disabled so as to prevent any possibility that the alarm system will generate an alarm signal.

Department means the department of administration and regulatory affairs.

Director means the director of the department or his designee.

False alarm means an alarm notification generated when an emergency of the kind for which the alarm system was designed did not in fact exist and a response is made by the police department within a reasonable time after the alarm notification and the police department determines from an inspection of the interior or exterior of the premises that the alarm was false. The term false alarm does not include an alarm caused by violent conditions of nature or other extraordinary circumstances not reasonably subject to the control of a permit holder.

Houston Emergency Center or *HEC* means the city's emergency response communications center and any employee of such center assigned to perform any duty prescribed by this article.

Individual facility means, in the context of a multi-unit housing facility, each unoccupied individual residential unit (including an apartment unit), office, storage room, utility room, shop, game room, exercise room, laundry room, hallway, vending area, lobby or similar non-residential facility.

Local alarm system means an alarm system designed and operated to generate audible or visual alarm signals at the alarm site when activated.

Multi-unit housing facility means a residential multi-unit apartment complex, town homes, condominiums, or similar housing facilities.

Non-permitted alarm system means an alarm system for which no valid alarm permit has been issued.

Non-residential alarm site means an alarm site that is not a 'residential alarm site' as defined by this section.

Panic or *holdup alarm system* means an alarm system that, when manually triggered by a person at the alarm site, generates an alarm signal indicating a holdup or other life-threatening emergency requiring a police department response.

Permit holder means a person to whom an alarm permit has been issued. The permit holder shall at all times be deemed a person-in-control of the alarm site.

Person shall have the meaning set forth in section 1-2 of this Code but shall not include the city or any of its departments.

Person-in-control means a person holding an alarm permit or a person who owns, leases, possesses, resides at, or manages any part of the alarm site.

Police chief means the chief of the police department, or his designee or any employee of the police department assigned by the police chief to perform any duties prescribed by this article.

Police department means the city police department.

Residential alarm site means an alarm site used solely for residential purposes, including an occupied apartment or other residential unit located in a multi-unit housing facility. Each occupied apartment or other individual residential unit in which an alarm system is operated, used, installed, or placed shall be a separate residential alarm site. All other alarm sites are non-residential.

Verify an alarm signal means to attempt to contact the alarm site and alarm subscriber or other person-in-control of the alarm site by telephone calls of at least six rings each to two separate telephone numbers, regardless of whether actual contact with an individual is made, to determine whether an alarm signal is valid.

(Ord. No. 08-387, § 2, 4-30-08; Ord. No. 2017-960, § 2, 12-13-2017; Ord. No. 2019-189, § 2, 3-27-2019)

Sec. 11-52. Alarm permit required; violation; penalty.

(a) *Unlawful conduct.* It is unlawful for any person to operate or use, cause or allow the operation or use of an alarm system unless a valid alarm permit is in effect for that alarm system.

(b) *Non-permitted alarm system.* All duties and responsibilities for the use or operation of a non-permitted alarm system at an alarm site and the obligation to pay all fines, penalties and other amounts authorized in this article in connection with such system shall be imposed, jointly and severally, on the alarm subscriber and any person-in-control at the alarm site.

(c) *Separate alarm permit required.* Each alarm system must have a separate alarm permit. An alarm system may not be operated, used, installed or monitored to protect more than one alarm site.

(Ord. No. 08-387, § 2, 4-30-08)

Sec. 11-53. No duty created.

The issuance of an alarm permit authorizing the use of an alarm system shall not create any duty or liability on the part of the city or guarantee any police department or other response from the city. Nothing in this article shall be construed to waive the city's governmental immunity from suit or from liability.

(Ord. No. 08-387, § 2, 4-30-08)

Sec. 11-54. Right to inspect.

The police chief shall have the right to inspect any alarm system at an alarm site at any reasonable time to determine whether it is being used in conformity with this article.

(Ord. No. 08-387, § 2, 4-30-08)

Sec. 11-55. Police response to alarm notification.

(a) *Policy.* Any police department response to an alarm notification shall be governed by the provisions of this section and the rules and regulations, as applicable, promulgated by the police chief pursuant to section 11-76 of this Code, provided that any police response to the alarm site shall be evidenced by the responding officer's placement of a notice or decal at or on the doorway or principal entry to such site noting the responding officer's name and the date and time of the response.

(b) *Non-permitted alarm systems.* The police chief may refuse to respond to an alarm notification from a burglar alarm system that according to department records does not have a current and valid alarm permit.

(c) *Information to be provided by alarm systems company.* An alarm systems company shall provide an alarm subscriber with information concerning the police department's policy regarding whether or not the police department will respond

to an alarm notification from a system that according to department records does not have a current and valid alarm permit. The police chief will make available to an alarm systems company a copy of such police department policy upon written request.
(Ord. No. 08-387, § 2, 4-30-08)

Sec. 11-56. Disclosure of alarm permits.

The director shall maintain a complete record of all alarm systems installed or capable of being activated in the city, based upon the reports required to be provided by alarm companies pursuant to Section 1702.286(b), Texas Occupations Code, or information regarding such alarm systems derived from other sources.
(Ord. No. 08-387, § 2, 4-30-08)

Sec. 11-57. Alarm system companies—Duty to maintain and provide records.

(a) *Records to be provided.* It shall be the duty of each alarm systems company to maintain a record of all alarm systems the company has installed or rendered capable of being activated in the city, as required by § 1702.286(b), Texas Occupations Code. The records required to be maintained by this subsection shall be maintained for at least two years from the date of their creation and shall be available for inspection and duplication upon demand by the police chief or director. At the discretion of the police chief or director, any such request may be made electronically or in writing by mail or by personal delivery to an alarm systems company.

(b) *Periodic reports to be provided.* A true and correct list of all alarm systems installed, rendered capable of being activated, maintained or monitored in the city by an alarm systems company shall be provided to the police chief and director annually, or more frequently if requested by the police chief or director. Such list shall be provided in an electronic or other format as may be required by the police chief or director.

(c) *Violation; penalty.* A person who violates any provision of this section is guilty of a separate offense for each day or portion of a day during which the violation is committed, continued or permitted. Each offense is punishable as provided in section 11-74 of this Code.
(Ord. No. 08-387, § 2, 4-30-08; Ord. No. 2019-189, § 3, 3-27-2019)

Sec. 11-57.1. Same—Duty to inform person-in-control.

(a) Upon installation or activation of an alarm system, the installation company shall distribute to the person-in-control information concerning:

(1) How to apply for an alarm permit;

(2) How to operate the alarm system;

(3) How to prevent false alarms; and

(4) The applicable law relating to false alarms, including the potential for penalties and revocation of the alarm permit.

(b) Upon installation or activation of an alarm system, the installation company shall ensure the person-in-control of an alarm system equipped with a panic, holdup, duress or burglar alarm is trained on the proper use of the panic, holdup, duress or burglar alarm.
(Ord. No. 2019-189, § 4, 3-27-2019)

Sec. 11-58. Alarm systems in multi-unit housing facilities.

(a) *Residential alarm sites.* The lessee, tenant or other adult occupant lawfully residing in the individual residential unit shall apply for and, upon approval by the department, be issued a residential alarm permit. The alarm permit application shall provide, in addition to other requirements in this article, the name and contact information such as telephone number or email address of a representative of the multi-unit housing facility owner or property manager who will grant access to the alarm site in the absence of the permit holder.

(b) *Non-residential alarm sites.* Areas of the multi-unit housing facility other than occupied individual residential units in which an alarm system is operated, used, installed or placed

shall constitute one or more separate non-residential alarm sites, and the following provisions shall apply:

(1) *Individual facility.* Each individual facility shall be a separate non-residential alarm site, requiring a separate alarm permit, separate alarm system monitoring, and payment of the alarm permit fee required by this article, except as otherwise specifically provided in any applicable policies and procedures established pursuant to section 11-76 of this Code.

(2) *Identification of facility.* Each individual facility shall be clearly identified and designated by a unique individual facility number by the applicant in the alarm permit application, and the applicant shall attach a corresponding map or diagram of the premises showing the location of each such facility.

(3) *Visible markings.* Each individual facility shall be clearly and visibly marked and identified with its individual facility number at the physical premises.

(4) *Separate monitoring of facilities.* Each individual facility shall be separately monitored by the alarm systems company to ensure that the individual facility where an alarm system may be triggered can be readily identified.

(5) *Information required.* An alarm notification to the police department shall include the individual facility number.

(Ord. No. 08-387, § 2, 4-30-08)

Sec. 11-59. Alarm permit—Application.

(a) Application for an alarm permit shall be made to the department in a format designated by the director for that purpose. Each application shall be set forth:

(1) *Applicant.* The name, address, telephone number(s), email address, federal employee identification number, state sales tax number, corporate charter number, and state driver's license number of the applicant, as applicable. An applicant who is an individual who does not have a valid Texas driver's license must provide his social security number.

(2) *Alarm subscriber.* If different from the applicant, the name, address, telephone number(s), email address, federal employee identification number, state sales tax number, corporate charter number, and state driver's license number of the alarm subscriber, as applicable.

(3) *Assumed names; other entity names.* Copies of the assumed name registration if the alarm site will be operated under an assumed name; the partnership registration, if any, and the names and addresses of all general partners if the applicant is a partnership; or a copy of the alarm subscriber's the Texas corporate charter or, if the alarm subscriber is a foreign corporation, a copy of the corporation's certificate of authority to do business in Texas, along with the names and addresses of all officers of the corporation and the corporation's registered agent.

(4) *Alarm site.* The street address of the alarm site at which the alarm system is or will be installed, placed, operated or used, including the particular suite, apartment number, unit number, or other similar occupancy number(s) or designation(s), if applicable, and a statement specifying whether the premises is used solely for residential or non-residential purposes.

(5) *Business names.* Any business names used for the alarm site.

(6) *Alarm system.* A description of the alarm system to be permitted and the type of alarm system.

(7) *Alarm system installer.* The name, address, Texas Department of Public Safety/Texas Private Security Bureau license number and type, and telephone number of the alarm systems company that has installed or will install and activate the alarm system.

(8) *Alarm systems company.* The name, address, Texas Department of Public Safety/Texas Private Security Bureau license number and type, and telephone number of the alarm systems company or other person that will monitor the alarm system.

(9) *Contact information.* In addition to the applicant information:

a. The names and telephone numbers of two individuals, or the name and local telephone number of an alarm systems company that is able to and has agreed to:

[1] Receive an alarm notification at any time;

[2] Come to the alarm site within one hour after receiving a request from a member of the police department to do so; and

[3] Grant access to the alarm site and to deactivate the alarm system if necessary; or

b. The name and telephone number of an alarm systems company that is able to and has agreed to receive calls at any time and to give the police department and the director the names of individuals listed with that company as set out below if:

[1] The applicant has given the alarm systems company the names and local telephone numbers of two individuals who are able and have agreed to receive alarm notification at any time; to come to the alarm site within one hour after receiving a request from a member of the police department to do so; and to grant access to the alarm site and to deactivate the alarm system if necessary; and

[2] The applicant has authorized the alarm systems company to provide the names and telephone numbers of those two individuals to the chief of police and director whenever the police chief or director has requested that information in order to obtain assistance after an alarm system has been activated.

(10) *No unpaid fees.* A statement that all fees and penalties due and owing to the city under this article by the alarm subscriber, the applicant and its partners, officers, owners and other principals have been paid or that any such outstanding fees and penalties are being paid under a payment arrangement with the director.

(11) *Compliance statement.* A statement that within the 12 months preceding the date the alarm permit will be issued, there has been no denied application for an alarm permit, denied renewal or revocation of any alarm permit, or penalty imposed for operation of an alarm system without an alarm permit that is connected to the alarm site, the alarm system, the alarm subscriber, the applicant, any person-in-control of the alarm site, or a person described in item (10) of this subsection.

(12) *Other required information.* Such other information as the police chief and the director in their discretion, individually or jointly, determine to be reasonably necessary.

(b) *Signature required.* The application shall be signed by an owner, officer, or partner of the applicant if the applicant is not an individual, or by the individual applicant, acknowledging that he has read the application, affirming the correctness and accuracy of the information given on the application, and authorizing the release to the department of information specified in subsection (a) of this section.

(c) *Issuance of alarm permit.* The director shall issue an alarm permit upon submission of an application that fully complies with this

article and the alarm permit fee; provided that the application shall be denied and no alarm permit shall be issued if the director finds that:

(1) Any statement made in the application is incomplete, misleading, or false;

(2) The application truthfully states matters sufficient to deny the alarm permit application;

(3) The applicant, its partners, officers, owners and other principals have not paid to the city all fees and penalties due under this article; or

(4) The alarm system installed at the alarm site has, or is of the type that has had, a history of unreliability.

(Ord. No. 08-387, § 2, 4-30-08; Ord. No. 2019-189, §§ 5—7, 3-27-2019)

Sec. 11-60. Same—Amendments to application.

The permit holder has an affirmative duty to promptly submit updated alarm permit application information to the department in writing when any information contained in or relevant to the alarm permit application has changed or is out of date. In all circumstances, the updated information must be provided not later than 15 days after the information changed or became out of date. Submission of updated alarm permit application information shall not prevent revocation, termination, denial of application or renewal, or other remedy authorized by this article.
(Ord. No. 08-387, § 2, 4-30-08)

Sec. 11-61. Same—Term; expiration; renewal.

(a) *Term of alarm permit.* Each alarm permit shall be valid for a 12-month period from the date of issuance stated on the alarm permit.

(b) *Notice of expiration.* The department shall give at least 30 days written notice to the permit holder of the expiration date of an alarm permit. A permit holder who wants to renew the permit shall file the renewal fee with the director not less than ten business days before expiration of the alarm permit. The director shall issue the renewal alarm permit for the 12-month period following the expiration date of the current permit.

(c) *Grounds for denial or renewal of alarm permit.* The director shall deny the renewal application for any of the reasons set forth in section 11-70(a) of this Code.

(d) *New alarm permit required.* If the alarm permit is not renewed as of the expiration date, then a new alarm permit must be applied for and obtained as provided in this article. Upon expiration of an alarm permit that is not renewed, the provisions of section 11-68(d) of this Code regarding penalties for non-permitted alarm systems shall apply until a new alarm permit is issued.
(Ord. No. 08-387, § 2, 4-30-08; Ord. No. 2019-189, § 8, 3-27-2019)

Sec. 11-62. Same—Fees.

(a) *Residential alarm site.* The fees for a new or renewal alarm permit for a residential alarm site are stated for this provision in the city fee schedule. For purposes of this subsection, a burglar alarm system with a remote control that may be used to trigger the alarm shall not be deemed a panic alarm system. The fees charged for burglar alarm permits under this subsection are subject to a state law maximum amount and shall not be subject to the annual fee increase under section 1-13 of this Code.

(b) *Non-residential alarm site.* The fee for a new or renewal alarm permit for a non-residential alarm site is stated for this provision in the city fee schedule.

(c) *Refunds.* A permit holder who, within the first 30 days of the current permit term, vacates his alarm site because it has become uninhabitable as a result of violent conditions of nature or other extraordinary circumstances not reasonably subject to the control of the permit holder may receive a refund of the permit fee upon request submitted in writing or by email. No refund of any other fee paid pursuant to this article shall be made by the city for any reason except as follows:

(1) Duplicate payments;

(2) Payments clearly intended for another purpose; or

(3) Payments submitted for alarm systems located outside the city limits.

(Ord. No. 08-387, § 2, 4-30-08); Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2017-960, §§ 3, 7, 12-13-2017)

Editor's note—It should be noted that § 11-62, § 7, 12-13-2017, which amended subsection (a) of this section, provided for an effective date of 2-1-2019.

Sec. 11-63. Same—Transfer.

(a) *Residential alarm permits.* A permit holder who relocates his residence may transfer a valid and current residential alarm permit to the new residential alarm site at no expense by submitting updated alarm permit application information to the department in writing or by email. Residential alarm permits are not transferable for any other reason.

(b) *Non-residential alarm permits non-transferable.* Non-residential alarm permits are not transferable to any other person, premises, alarm system or alarm subscriber. Each alarm permit shall be valid only for the permit holder, alarm site and alarm system as they existed when the alarm permit was originally issued, and the alarm permit shall terminate immediately upon change of any such items or persons. If the permit holder voluntarily or involuntarily ceases to have ownership, leasehold, possession or management rights to the alarm site, or upon revocation or expiration of the alarm permit, the alarm permit shall terminate, and a new alarm permit must be applied for and a new alarm permit fee paid as required by this article.

(Ord. No. 08-387, § 2, 4-30-08; Ord. No. 2017-960, § 4, 12-13-2017)

Sec. 11-63.1. Same—Re-application required following revocation or termination.

(a) *Effect of termination of alarm permit.* Upon termination of the alarm permit and before a new alarm permit is issued for that alarm site, the provisions of this article concerning a non-permitted alarm system shall apply.

(b) *Liability of permit holder.* If the permit holder fails to deliver written notice of the cessation of the permit holder's rights in the alarm site to the department at least 30 days prior to such cessation of rights, he shall remain liable as if he were a person-in-control of the alarm site, for all subsequent fees and penalties, jointly and severally with any other persons liable as provided in this article, until a new alarm permit is issued for an alarm system at the alarm site.

(Ord. No. 2017-960, § 4, 12-13-2017)

Sec. 11-64. Duties of permit holder.

The permit holder shall:

(1) Ensure that as set forth under section 11-59(a)(9) of this Code, the individuals or the alarm systems company listed with the police department and the director, and the individuals listed with the alarm systems company have agreed and are able to:

a. Receive an alarm signal at any time;

b. Come to the alarm site within one hour after receiving a request from the police department to do so; and

c. Grant access to the alarm site and, if necessary, deactivate the alarm system.

(2) Train all persons who may operate or use the alarm system in the proper operation or use of the alarm system.

(3) Pay when due all fees and penalties associated with the alarm permit and the operation or use of, including the generation of any false alarm signal from, the alarm system.

(4) Maintain the alarm site in a manner that ensures proper operation or use of the alarm system.

(5) Maintain or cause to be maintained the alarm system in a manner that will minimize the occurrence of false alarms.

(6) Respond or cause a representative to respond within a reasonable period of time when notified by the police depart-

ment to repair a malfunctioning alarm system, to provide access to the alarm site, or to provide security for the alarm site.

(7) Ensure that the alarm system is not manually triggered for any reason other than an occurrence of an event that the alarm system was intended to report.

(8) Maintain at the alarm site a complete set of written instructions for the alarm system, excluding any special codes, combinations, or passwords.

(9) At least 30 days prior to relinquishing control of the alarm site, deliver written notice of cancellation or transfer, as applicable, of the alarm permit to the department.

(10) Upon the giving of written notice of the cancellation of his alarm permit to the department, or upon receipt of notice from the director that his alarm permit has been terminated, revoked or otherwise has become invalid under this article, immediately notify the following persons that it is unlawful to operate or use the alarm system, or to cause or allow it to be operated or used until a new alarm permit has been applied for and issued by the department:

a. Persons-in-control of the alarm site;

b. Persons who will be in control of the alarm site after the permit holder's relinquishment of control;

c. The alarm subscriber; and

d. The alarm systems company.

(11) Keep the alarm permit at the alarm site and produce the alarm permit for inspection upon the request of the police chief or the director.

(12) Promptly give updated alarm permit application information to the department in writing when any information contained in or relevant to the alarm permit application has changed or is out of date. The updated information in all circumstances must be provided within 15 days after the information changed or became out of date.

(13) Comply with all requirements of this article and applicable city and police department policies, procedures, standards and regulations.

(Ord. No. 08-387, § 2, 4-30-08; Ord. No. 2017-960, § 5, 12-13-2017)

Sec. 11-65. Duty of person notified by police department to provide access to premises.

Any person who is notified by a member of the police department that an alarm signal has been received from an alarm system and who is able to give access to the alarm site shall come to the alarm site within one hour of the time such person is notified of such signal and shall provide the police department any necessary access or assistance.

(Ord. No. 08-387, § 2, 4-30-08)

Sec. 11-66. Other requirements for operation of alarm systems; prohibitions.

No person shall install or cause or allow to be installed and no person shall operate or use or cause or allow the operation or use of any alarm system unless all of the following requirements are met:

(1) An alarm system that can be activated as a result of more than one type of emergency situation shall generate a unique alarm signal to designate that it has been triggered as a result of a holdup, a burglary, or any other different type of emergency situation to ensure that the proper alarm notification and a proper response, if any, can be made.

(2) A local alarm shall have an automatic 30-minute shutoff from the time it generates an alarm signal and must not sound similar to a siren, an emergency vehicle, or a civil defense warning system. For purposes of this subsection, any alarm system that emits any variable tone (as opposed to a steady pitch or a ringing

sound as is made by a bell) shall be considered to be emitting a sound that is similar to a siren, an emergency vehicle, or a civil defense warning system.

(3) No holdup alarm shall include a money clip, pressure pad, or similar device that can cause the alarm system to be triggered inadvertently and shall be designed to ensure that it may be triggered only by deliberate human action.

(4) No person shall use or permit the use of an automatic dialer or automatic dialing device.

(Ord. No. 08-387, § 2, 4-30-08)

Sec. 11-67. False alarm signals prohibited; exceptions.

(a) No person shall intentionally or knowingly cause an alarm system to be triggered for any purpose other than an emergency or threat of emergency of the kind for which the alarm system was designed to give notice; provided, however, it shall be an affirmative defense to prosecution under this subsection that the alarm system was triggered solely for the purpose of testing the alarm system and the person who tested the alarm system was a representative of the department, police department, or duly licensed under Chapter 1702 of the Texas Occupations Code and took reasonable precautions to avoid any alarm notification being sent to the police department.

(b) This section shall not be deemed to apply to conduct prohibited by Chapter 42.06 of the Texas Penal Code, as presently enacted or subsequently amended.

(Ord. No. 08-387, § 2, 4-30-08; Ord. No. 2019-189, § 9, 3-27-2019)

Sec. 11-68. Penalties for false alarms and non-permitted alarms; collection fees; hearing on false or non-permitted alarm determination.

(a) *False alarm.* For a burglar alarm system, the permit holder will be charged a penalty based on the following table for each false alarm in excess of three during the preceding 12-month period, provided a response is made by the police department to the alarm site within a reasonable time after the alarm notification:

False Alarm Penalty	
4th false alarm	$ 50.00
5th false alarm	$ 50.00
6th false alarm	$ 75.00
7th false alarm	$ 75.00
8th false alarm	$ 100.00
Each additional	$ 100.00

(b) *False residential panic or holdup alarm.* For a residential alarm site, the permit holder of a panic or holdup alarm system will be charged a penalty based on the following table for each false panic or holdup alarm in excess of one during the preceding 12-month period:

False Alarm Penalty	
2nd false alarm	$ 140.09
3rd false alarm	$ 280.20
4th false alarm	$ 420.29
5th false alarm	$ 560.39
Each additional	$ 560.39

(c) *False non-residential panic or holdup alarm.* For a non-residential alarm site, the permit holder of a panic or holdup alarm system will be charged a penalty based on the following table for each false panic or holdup alarm in excess of one during the preceding 12-month period:

False Alarm Penalty	
2nd false alarm	$ 280.20
3rd false alarm	$ 560.39
4th false alarm	$ 700.50
5th false alarm	$ 700.50
Each additional	$ 700.50

(d) *Alarm generated by a non-permitted alarm system.* If HEC or the police department receives an alarm notification, regardless of whether the alarm is false, from an alarm system that does not have a valid alarm permit, the alarm

subscriber and the persons-in-control of any portion of the alarm site shall be charged a penalty for each such alarm notification and shall be jointly and severally liable to the city for payment thereof. The penalty per alarm notification for each type of alarm notification received shall be:

(1) *Residential burglar alarm system:* $116.75

(2) *Non-residential burglar alarm system:* $233.50

(3) *Residential panic or holdup alarm system:* $308.21

(4) *Non-residential panic or holdup alarm system:* $490.34

(e) *Notice.* A notice of each false alarm or alarm generated by a non-permitted alarm system shall be mailed to the permit holder by the director, or to any general addressee at the alarm site address if there is no valid alarm permit, within 30 days from the date of the alarm. The notice shall include:

(1) The date of the alarm; and

(2) The address of the alarm site, and if the alarm site is a multi-unit housing facility, the identification of the individual facility where the false alarm occurred.

Except for collection fees added pursuant to subsection (l) of this section, the permit holder or owner of a non-permitted alarm system shall pay all fees and penalties assessed under this section to the department or make an arrangement with the director to cover the cost of such fees and penalties within 30 days following the date that the city places the false or non-permitted alarm notice in the mail, unless a hearing has been timely requested under subsection (f) of this section.

(f) *Hearing on false or non-permitted alarm.* If the permit holder, or an alarm subscriber or other person-in-control if there is no valid alarm permit, disputes any part of the false or non-permitted alarm notice, such person (appellant) may appeal by filing a written request for a hearing by mail or personal delivery to the director. The request for hearing and supporting documents must be received by the director not later than the 30th day next following the date that the city places the false or non-permitted alarm notice in the mail. Failure to timely request a hearing shall render the notice and imposition of penalties final.

(g) *Purpose of hearing.* The sole purpose of the hearing set out in the preceding subsection shall be to ascertain whether the disputed alarm was false or generated by a non-permitted alarm system. The request for hearing shall specify facts and have documents and records attached that prove the alarm was not false or generated by a non-permitted alarm system.

(h) *Rules and procedures for hearing.* Hearings shall be conducted in accordance with the rules established for that purpose by the director. The proceedings shall be informal. Without limitation of other provisions that may be established in such rules, the records generated by the police department personnel who responded to the alarm shall be admissible as proof of their contents, and the police department personnel who responded shall not be required to testify at the hearing.

(i) *Authority of director.* The director shall have the discretion at any time prior to the hearing to reverse a determination that an alarm was false or generated by a non-permitted alarm system if the records clearly establish the alarm was:

(1) Not in fact false or generated by a non-permitted alarm system; or

(2) Generated by or as a result of disaster for which the mayor has declared a state of disaster and emergency exists.

(j) *Burden of proof.* At the hearing, the burden shall be upon the appellant to demonstrate by a preponderance of the evidence that the alarm was not false or generated by a non-permitted alarm system.

(k) *Final decision.* The decision of the hearing officer shall be final, and fees and penalties assessed, if applicable, shall be paid within 15 days following the date that notice of the decision is mailed or hand delivered to the appellant.

(l) *Collection fee.* A collection fee of 30 percent of the false alarm penalty amount shall be added to each false alarm penalty assessed under this section if the false alarm penalty remains unpaid on the 61st day after it is due. Collection fees are due and payable on the day they are added to the false alarm penalty.
(Ord. No. 08-387, § 2, 4-30-08; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2017-960, § 6, 12-13-2017; Ord. No. 2019-189, § 10, 3-27-2019)

Sec. 11-69. Common cause for a series of false alarms.

(a) *In general.* Notwithstanding other provisions in this article to the contrary, false alarms of an alarm system may be accounted for as provided in this section to the extent the false alarms are attributable to a common cause.

(b) *Establishment of common cause; conditions.* A series of false alarms shall be deemed as originating from a common cause and counted as one false alarm if all of the following conditions are met:

(1) The series of false alarms occurs within a 72-hour period;

(2) The alarm system has a valid alarm permit at the time of the false alarms;

(3) The cause of the series of false alarms is repaired before it generates additional false alarms;

(4) Within 15 days after the end of the 72-hour common cause period, an alarm systems company duly licensed under Chapter 1702 of the Texas Occupations Code provides the police chief with documentation verifying the technical difficulty or malfunction that caused the series of false alarms, and that all necessary repairs have been completed;

(5) During the 30-day period following the repair, the alarm system generates no additional false alarms from the documented common cause; and

(6) There are no unpaid fees or penalties under this article due and owing from the permit holder.

(c) *Application of section.* This section shall not apply to:

(1) The same alarm site, alarm system, alarm subscriber or permit holder more than once in any 24-month period; or

(2) Non-permitted alarm systems.
(Ord. No. 08-387, § 2, 4-30-08; Ord. No. 2019-189, §§ 11, 12, 3-27-2019)

Sec. 11-70. Revocation of alarm permit; denied renewal; termination of police department response.

(a) *Grounds for revocation or denial.* An alarm permit shall be revoked or denied renewal by the director for any of the following reasons:

(1) *Unpaid amounts.* The permit holder has failed to make full payment to the city for any fees and penalties due under this article within 90 days after the date the director mailed a notice to the permit holder that the fees and penalties are due and owing, or within 15 days following the date of mailing or delivery of the decision notice adverse to the permit holder if an appeal has been timely filed;

(2) *Burglar alarm system; excessive false alarms.* The permit holder of a burglar alarm system on a residential or non-residential alarm site accrues more than seven false alarms during the preceding 12-month period;

(3) *Panic or holdup alarm system; excessive false alarms.* The permit holder of a panic or holdup alarm system accrues more than:

3	false alarms in the preceding	1-month period;
4	false alarms in the preceding	3-month period;
5	false alarms in the preceding	6-month period; or
6	false alarms in the preceding	12-month period.

(4) *Code violations.* The permit holder has violated any applicable provision of this article or has failed to perform any duty imposed by this Code; or

(5) *Other grounds.* Any fact or circumstance exists that would be a basis for denial of an application for issuance or renewal of an alarm permit, or the alarm permit was otherwise obtained or issued in error.

(b) *Effect of alarm permit revocation or expiration.* Upon revocation or expiration of the alarm permit by the director, the alarm system becomes a non-permitted alarm system, and all penalties, fees and punishments authorized by this article for a non-permitted alarm system are applicable.

(c) *Notice of alarm permit denial or revocation.* If the director denies an application for an alarm permit or revokes an alarm permit, the director shall cause a denial or revocation notice to be sent to the applicant at the address set out in the permit application and shall maintain a copy thereof. The notice shall state the reasons for the denial or revocation and advise the applicant of the right to a hearing as provided in section 11-71 of this Code.

(d) *Termination of police response.* The police department may decline or terminate police department response to any alarm site at any time without notice at the discretion of the police chief, except in those instances where a denial of response would be prohibited by state law.
(Ord. No. 08-387, § 2, 4-30-08; Ord. No. 2019-189, §§ 13, 14, 3-27-2019)

Sec. 11-70.1. Exclusion of alarm system by owner.

(a) A property owner or person-in-control of an alarm site may elect to exclude the city from receiving an alarm signal from an alarm system located on the owner's property or at the alarm site by submitting to the city, on a form promulgated by the director, a request for exclusion. If an election is made under this section, the city shall not require the property owner or person-in-control to obtain a permit and shall not impose any fee to obtain a permit for the alarm system.

(b) A property owner or person-in-control who makes an election under this section shall pay to the director a penalty of $250.00 for each Houston police department response to a signal from the alarm system requested by an alarm system monitor.
(Ord. No. 2019-189, § 15, 3-27-2019)

Editor's note—It should be noted that Ord. No. 2019-189, § 15, adopted March 27, 2019, provides for an effective date of January 1, 2020.

Sec. 11-71. Appeals.

(a) *Appeal; written request required.* A person may appeal the denial or revocation of an alarm permit by delivering a written request for an appeal to the director not later than 30 days after the first date of mailing written notice of denial or revocation.

(b) *Hearing officer.* All appeal hearings shall be held by a hearing officer appointed by the director. The director shall not designate any person to perform the duties of appeal hearing officer under this section who has participated in the investigation of false alarms from the alarm site in question or has prior knowledge of the particular allegations or circumstances discovered in such investigation. The appeal hearing officer may, prior to the hearing, receive a copy of the notice given to the permit holder or applicant.

(c) *Assistant city attorney.* An assistant city attorney may be present at the hearing to advise the appeal hearing officer as to procedural matters; however, that assistant city attorney shall not participate in any determination of the facts.

(d) *Conduct of hearing; rules and procedures.* All appeal hearings shall be informal and conducted under rules established by the director consistent with the informal nature of the proceedings; provided, however, the following rules shall apply to all appeal hearings conducted under this section:

(1) All parties shall have the right to representation by an attorney licensed to practice in Texas, though an attorney is not required.

(2) Each party may present witnesses in his own behalf.

(3) Each party shall have the right to cross examine all witnesses.

(4) The appeal hearing officer shall consider only the evidence presented at the appeal hearing in rendering a final decision.

(e) *Authority of hearing officer.* The appeal hearing officer may affirm or reverse an alarm permit denial or revocation; however, no proceeding under this section may be used to address or reconsider whether an alarm signal was false or generated from a non-permitted alarm system. The exclusive remedy for determining whether an alarm was false or non-permitted shall be the review process established in section 11-68(f)—(k) of this Code.

(f) *Decision of the hearing officer.* The decision of the hearing officer shall be final.
(Ord. No. 08-387, § 2, 4-30-08; Ord. No. 2019-189, §§ 16, 17, 3-27-2019)

Sec. 11-72. Mandatory verification of burglar alarm; alarm notification.

(a) *Verification.* Prior to generating an alarm notification, an alarm systems company shall verify the alarm signal and determine the permit status of the alarm system at the location of the alarm signal.

(b) *Notice; requirements.* An alarm notification to HEC or the police department shall include all of the following:

(1) For a burglar alarm notification, whether the mandatory verification has been completed;

(2) Type of alarm signal;

(3) Alarm permit number and name of the permit holder;

(4) Street address of the alarm site, including the particular suite, apartment, or individual facility number or other designation, if applicable;

(5) If requested by the official receiving the alarm notification, the name(s) and local telephone number(s) of the person(s) to notify, if so authorized by the permit holder; and

(6) Such additional information as HEC or the police department may reasonably require.

(c) *Policies and procedures; effect.* Policies and procedures instituted by the police chief may include provisions that if the alarm notification provided in subsection (b) of this section is incomplete or erroneous:

(1) The request for dispatch shall be assigned a lower priority than would otherwise be the case; or

(2) No officer shall be dispatched.
(Ord. No. 08-387, § 2, 4-30-08; Ord. No. 2019-189, § 18, 3-27-2019)

Sec. 11-73. Alarm systems performance reviews.

If the police chief believes that an alarm system is not being used or maintained in a manner that reasonably ensures proper operation and prevention of false alarms, the police chief may require a conference with the permit holder and the individual or other entity responsible for maintenance of the alarm system to review the circumstances of each alarm.
(Ord. No. 08-387, § 2, 4-30-08)

Sec. 11-74. Violations; penalty; corporations; partnerships and associations.

(a) Except where a fine is specifically stated herein, whenever in this article an act is prohibited or is made or declared to be unlawful or an offense or misdemeanor, or whenever in this article the doing of any thing or act is required or the failure to do any thing or act is prohibited, the violation of the provision shall be and constitute a misdemeanor punishable, upon conviction, by a fine of not less than $250.00 nor more than $500.00. Each violation shall constitute and be punishable as a separate offense. Prosecution or conviction under this provision is cumulative of and shall never be a bar to the imposition or collection of false alarm penalties, non-permitted alarm penalties, fees or any other civil or administrative remedy provided or allowed in this article.

(b) In addition to prohibiting or requiring certain conduct of individuals, it is the intent of this article to also hold a corporation, partnership, association, limited partnership, limited liability corporation or other such entity criminally responsible for acts or omissions performed by an agent acting on its behalf.
(Ord. No. 08-387, § 2, 4-30-08)

Sec. 11-75. Certain notices; procedure.

Any notice required or allowed by this article to be sent by the director to a permit holder or other person, unless expressly provided otherwise in this article, shall be considered sufficient if sent by first class U.S. Mail to the permit holder's address, billing address or alarm site address as set forth in the alarm permit application or the most recent amendment thereto, or the address specified by the permit holder in writing to the department.
(Ord. No. 08-387, § 2, 4-30-08)

Sec. 11-76. Standards and procedures.

Development of policies and procedures. The director and the police chief, as applicable, shall have the authority to institute standards and procedures necessary to implement and enforce this article to ensure the effective utilization of police department and HEC resources, and the enhancement of public safety. In establishing any rules, regulations and policies regarding the administration of the permitting process, hearings or appeals, the director and the chief of police shall consult with each other to ensure to maximum efficiency and coordination between their departments.
(Ord. No. 08-387, § 2, 4-30-08)

Sec. 11-77. Use and allocation of revenues.

Revenues from alarm permit fees and penalties collected pursuant to this article shall be placed in the General Fund and used to defray the costs associated with administering this article, including the costs of responding to alarm calls, and for other purposes of the department or the police department, except as may be limited by state law, including Local Government Code, Chapter 214, Subchapter F-1.
(Ord. No. 08-387, § 2, 4-30-08; Ord. No. 2012-589, § 13, 6-20-2012; Ord. No. 2019-189, § 19, 3-27-2019)

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Chapter 12

CONVENTION AND ENTERTAINMENT FACILITIES DEPARTMENT*

Sec. 12-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Corporation means Houston First Corporation, a local government corporation, its successors and assigns.

Day, unless otherwise specified in the license agreement, means the period of time from 8:00 a.m. to 2:00 a.m. for the Jesse H. Jones Hall for the Performing Arts and the Gus Wortham Theatre Center.

Department means the convention and entertainment facilities department.

Director means the director of the department, or any person designated by the director to perform any of the director's functions.

Event period means:

(1) Any period of six consecutive hours between the hours of 6:00 a.m. and 4:00 p.m.;

(2) Any period of eight consecutive hours between the hours of 8:00 a.m. and 8:00 p.m.; or

(3) The period of ten consecutive hours between the hours of 4:00 p.m. and 2:00 a.m. during which a licensee conducts an event in the Jesse H. Jones Hall for the Performing Arts or the Gus S. Wortham Theater Center

Interlocal agreement means the interlocal agreement between the city and the corporation with respect to the leased facilities, as the same may be amended from time to time.

Lease means the lease agreement between the city and the corporation with regard to the facilities and property described therein from time to time, as the same may be amended from time to time.

Leased facilities means the facilities and properties leased from time to time by the city to the corporation under the lease.

License fee means the sum of all charges prescribed in this chapter for the use or occupancy of the Jesse H. Jones Hall for the Performing Arts or the Gus S. Wortham Theater Center.

Non-event day means a day on which the event for which the Jesse H. Jones Hall for the Performing Arts or the Gus S. Wortham Theater Center is occupied is not being conducted but during which the licensee requires access to the facility in order to set up or break down for the event or perform other incidental activities.

Non-event period means:

(1) Any period of six consecutive hours between the hours of 6:00 a.m. and 4:00 p.m.;

(2) Any period of eight consecutive hours between the hours of 8:00 a.m. and 8:00 p.m.; or

(3) The period of ten consecutive hours between the hours of 4:00 p.m. and 2:00 a.m. during which a licensee does not actually conduct an event

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*__Editor's note—__Ord. No. 2011-391, § 2, adopted June 1, 2011, effective July 1, 2011, amended Ch. 12 in its entirety to read as herein set out. Formerly said chapter pertained to Convention and entertainment facilities and derived from Ord. No. 96-50, § 3, 1-17-96; Ord. No. 98-894, § 1, 10-7-98; Ord. No. 03-1174, § 1, 12-3-03; Ord. No. 05-995, § 2, 8-24-05; Ord. No. 07-1261, § 1, 11-7-07; Ord. No. 08-417, § 5, 5-14-08; Ord. No. 08-893, § 2(Exh. A), 10-8-08; Ord. No. 09-2, § 3, 1-7-09; Ord. No. 2010-683, § 3, 8-25-2010.

Charter reference—Authority of city to own convention halls, etc., Art. II, § 7a.

Cross references—Dogs in buildings under management of convention and entertainment facilities department, § 28-31; use of candles on certain city properties, § 28-32; parks and recreation generally, Ch. 32.

but requires access to the Jesse H. Jones Hall for the Performing Arts or the Gus S. Wortham Theater Center in order to set up, break down, or perform other incidental activities relating to an event.

Tax-exempt rate means the license fee charged for non-exhibit space in the Jesse H. Jones Hall for the Performing Arts or the Gus S. Wortham Theater Center to the United States government, State of Texas, their agencies and political subdivisions and organizations that are exempt from taxation under Section 501(c)(3) of the Internal Revenue Code; provided that the applicant must demonstrate to the sole satisfaction of the director that the applicant has a material role in the production of the event for which the Jesse H. Jones Hall for the Performing Arts or the Gus S. Wortham Theater Center is being licensed. For example, the director will review the following criteria to make his determination: if the applicant is (i) financially at risk for the staging and production of the event; (ii) executes contracts with the artists, production companies, and other event service providers that may be required; (iii) exercises significant control over the marketing campaign for the event including, but not limited to, placing the advertising with various mediums; and (iv) exercises significant control over ticket pricing and expenses. An applicant whose role is primarily signing the license agreement in exchange for payment to allow another organization the benefit of a reduced license fee shall not qualify for the tax-exempt rate.

(Ord. No. 2011-391, § 2, 6-1-2011, eff. 7-1-2011)

Sec. 12-2. Department created.

There is hereby created the convention and entertainment facilities department of the city.
(Ord. No. 2011-391, § 2, 6-1-2011, eff. 7-1-2011)

Sec. 12-3. Director.

The office of director of the convention and entertainment facilities department is hereby created. The director shall be head of the department, shall be the president of the corporation, and shall be appointed by the mayor and confirmed by the city council.
(Ord. No. 2011-391, § 2, 6-1-2011, eff. 7-1-2011)

Sec. 12-4. Former name; references.

(a) To the extent that this Code or any other ordinance or any motion, resolution, contract or other document devolves duties upon the former civic center department or upon the employees or director thereof, then such references shall be construed to mean the convention and entertainment facilities department and the employees and director thereof.

(b) Any reference in this Code to facilities under the management of the convention and entertainment facilities department shall be construed to mean the leased facilities.
(Ord. No. 2011-391, § 2, 6-1-2011, eff. 7-1-2011)

Sec. 12-5. Duties of the director.

The director shall perform all duties and responsibilities as are required of him by law and such other functions, duties and powers as may be assigned to him by the mayor. Without limiting the foregoing duties, functions, powers and responsibilities, the director shall:

(1) Be executive head of the department and have control, supervision and authority over all officers and employees therein in the performance of the duties of the department.

(2) Perform any function reserved to the director of the department under this Code.

(3) Serve as the liaison between the city and the corporation in regard to the administration of the interlocal agreement and the lease, as well as any other written documents and agreements between the city and the corporation in regard to the leased facilities.

(4) As director and as president of the corporation, ensure that the corporation's obligations extend equally to all of the leased facilities, so that the legitimate needs of

none of the leased facilities will be subordinated to benefit others of the leased facilities.

(Ord. No. 2011-391, § 2, 6-1-2011, eff. 7-1-2011)

Sec. 12-6. Licensing of the Jesse H. Jones Hall for the Performing Arts.

License fees for occupancy of the Jesse H. Jones Hall for the Performing Arts are stated for this provision in the city fee schedule.

On August 1 of each year, the rates shall increase by an amount equal to the percentage increase in the Consumer Price Index - All Urban Consumers for Houston-Galveston (CPI-U) for the preceding calendar year, provided that (I) if the CPI-U has not increased or if the amount of the percentage increase is less than one percent, then the license fees shall nevertheless be increased by one percent, and (ii) further provided that if the CPI-U has increased by more than three percent, then the license fees shall nevertheless be increased by only three percent. The director shall annually calculate the effective license fees and make them available in his office upon request for public inspection. Each license agreement shall be subject to the license fees that are in effect at the time of the execution of the license.

(Ord. No. 2011-391, § 2, 6-1-2011, eff. 7-1-2011; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 12-7. Licensing of the Gus S. Wortham Theater Center.

(a) *Alice and George Brown Theater.* License fees for occupancy of the Alice and George Brown Theater are stated for this provision in the city fee schedule.

On August 1 of each year, the license fees shall increase by an amount equal to the percentage increase in the Consumer Price Index - All Urban Consumers for Houston-Galveston (CPI-U) for the preceding calendar year, provided that (I) if the CPI-U has not increased or if the amount of the percentage increase is less than one percent, then the license fees shall nevertheless be increased by one percent, and (ii) further provided that if the CPI-U has increased by more than three percent, then the license fees shall nevertheless be increased by only three percent. The director shall annually calculate the effective license fees and make them available in his office upon request for public inspection. Each license agreement shall be subject to the license fees that are in effect at the time of the execution of the license agreement.

(b) *Lillie and Roy Cullen Theater.* License fees for occupancy of the Lillie and Roy Cullen Theater are stated for this provision in the city fee schedule.

All license fees that are expressed in dollar amounts in the city fee schedule are for license agreements executed through and including July 31, 2009. On August 1 of each year, the license fees shall increase by an amount equal to the percentage increase in the Consumer Price Index - All Urban Consumers for Houston-Galveston (CPI-U) for the preceding calendar year, provided that (I) if the CPI-U has not increased or if the amount of the percentage increase is less than one percent, then the license fees shall nevertheless be increased by one percent, and (ii) further provided that if the CPI-U has increased by more than three percent, then the license fees shall nevertheless be increased by only three percent. The director shall annually calculate the effective license fees and make them available in his office upon request for public inspection. Each license agreement shall be subject to the license fees that are in effect at the time of the execution of the license agreement.

(Ord. No. 2011-391, § 2, 6-1-2011, eff. 7-1-2011; Ord. No. 2011-1168, § 13, 12-14-2011)

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Chapter 13

EMERGENCY MANAGEMENT*

Sec. 13-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Disaster means the occurrence or imminent threat of widespread or severe damage, injury, or loss of life or property resulting from any natural or human cause, including but not limited to fire, flood, earthquake, wind, storm, wave action, oil spill or other water contamination, volcanic activity, epidemic, air contamination, blight, drought, infestation, explosion, riot, hostile military or paramilitary action, or other public calamity requiring emergency action.

Emergency management coordinator means the person designated by the mayor to supervise all activities of the office of emergency management.

Office means the office of emergency management.

(Ord. No. 07-490, § 1, 4-18-07)

Sec. 13-2. Creation of office.

There is hereby created the Office of Emergency Management of the City of Houston, which shall be an office in the office of the mayor or in a department as assigned by the mayor.

(Ord. No. 07-490, § 1, 4-18-07)

Sec. 13-3. References in this Code.

Any reference to the "department of civil defense" or the "civil defense department" within this Code or in any other ordinance shall be construed to mean the "office of emergency management." Any reference to the "civil defense director" or "director of civil defense" within this Code or any other ordinance shall be construed to mean the 'emergency management coordinator.

(Ord. No. 07-490, § 1, 4-18-07)

Sec. 13-4. Official duties.

(a) The mayor may authorize the emergency management coordinator to conduct the city's emergency management program.

(b) The office shall, in cooperation with the state and the federal government, establish a disaster preparedness program for the city that will enable city government to react promptly and effectively to protect lives and property before, during and after a disaster. To effect this general purpose, the office shall:

(1) Prepare an emergency management program for the city.

(2) Survey and establish the availability of personnel, equipment, supplies and services that could be used in implementing the emergency management program.

(3) Maintain effective liaison and coordination with other governmental units and emergency management services organizations in developing the emergency management program.

(4) Maintain a secure facility to carry out the basic functions of city government during a disaster.

(5) Maintain an emergency communications system for use during a disaster.

(6) Establish a method to conduct city-wide warnings or other public announcements and disseminate emergency public information during a disaster.

(7) Coordinate, in time of war, all city functions in support of the Armed Forces of the United States. In connection with this responsibility, the office may assemble and authorize volunteer units to assist the armed forces and to deny the resources of the city to the enemy.

***Editor's note—**Ord. No. 2007-490, § 1, adopted April 18, 2007, amended Ch. 13 in its entirety to read as herein set out. Formerly, said chapter pertained to similar subject matter and derived from Ord. No. 04-682, § 10, adopted 6-23-04 and Ord. No. 2002-258, § 14k.

(8) Cooperate in inter-jurisdictional disaster emergency management planning and operations with other political subdivisions having contracts therefor with the city, if any.

(9) Assist and coordinate with the mayor and other city officers and departments in carrying out their responsibilities during periods of declared disaster emergency.

(Ord. No. 07-490, § 1, 4-18-07)

Sec. 13-5. Emergency management volunteer units.

The emergency management coordinator may organize emergency management volunteer units and prescribe qualifications for volunteers to staff the units. Volunteers may be dismissed by the emergency management coordinator at any time, shall receive no salary, wage, or other compensation whatsoever, shall not be entitled to any pension rights, local or state civil service rights, or other rights and privileges of employees of the city, and shall not for any purpose be deemed employees of the city. The emergency management coordinator may cause members of the volunteer units to be given such instruction and training as will ensure that each unit is well organized and coordinated to protect life and property in the city in the event of a disaster. The emergency management coordinator may delegate certain functions of his or her office to volunteers. The emergency management coordinator shall ensure that each volunteer meets all qualifications required by state or federal law and takes the oaths required by state and federal law, if any, before entering upon his duties.

(Ord. No. 07-490, § 1, 4-18-07)

Sec. 13-6. Interference with emergency management activities, etc.

(a) The following acts shall be unlawful:

(1) Failure to comply with lawful orders issued by authority of the city during a declared state of disaster.

(2) Any act that endangers the lives, or obstructs, hinders or delays the activities of authorized emergency management personnel, emergency management volunteers, or other authorized city personnel in their efforts to respond to/recover from a disaster;

(3) Any act that adversely contributes to the extent or intensity of a disaster.

(4) The wearing, carrying or displaying of any emblem, insignia or any other means of identification as a member of the office, unless authority to so do has been granted to such person by the emergency management coordinator.

(5) The operation of a siren or other device so as to simulate a warning signal, or the termination of a warning, without express written authorization of the emergency management coordinator.

(b) Violation of any of the provisions of subsection (a), upon conviction, shall be punished as provided by section 1-6 of this Code. Subsection (a) is not to be construed so as to infringe upon the constitutional freedom of the press.

(Ord. No. 07-490, § 1, 4-18-07)

Sec. 13-7. Mayor's authority under proclamation declaring local state of disaster.

(a) A proclamation of a local state of emergency issued by the mayor pursuant to Chapter 418, Texas Government Code, authorizes the mayor to issue such executive orders as the mayor reasonably deems necessary to protect public health and safety from conduct and conditions directly related to the circumstances that are the subject of the proclamation.

(b) An executive order issued pursuant to this section shall remain in force and effect until:

(1) The proclamation is rescinded, terminated, or expires by operation of law;

(2) The executive order is rescinded by the mayor; or

(3) The executive order is terminated by an ordinance passed and approved by the city council.

(c) An executive order issued pursuant to this section may declare to be unlawful conduct reasonably deemed by the mayor to constitute a threat to public health and safety under the circumstances that are the subject of the proclamation.

(d) Unless a different penalty is provided elsewhere in this Code, a person violating an executive order issued pursuant to this section shall be guilty of a misdemeanor and, upon conviction, shall be fined not less than $200.00 nor more than $2,000.00. Each day a violation continues shall constitute a separate offense.

(e) A person violating an executive order issued pursuant to this section may be issued a criminal citation enforceable in municipal court. The citation may be issued by any employee of the city so authorized in writing by the chief of police, the fire chief, the director of public health, the director of the department of neighborhoods, the director of the parks and recreation department, or the Director of Houston Public Works. (Ord. No. 2011-792, § 2, 9-14-2011; Ord. No. 2015-820, § 11, 8-26-2015; Ord. No. 2018-11, § 11, 1-10-2018)

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Chapter 14

CIVIL SERVICE*

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ARTICLE I. IN GENERAL

Sec. 14-1. Commission members; appointments, terms, vacancies; organization; officers.

(a) There are hereby re-established three civil service commission positions. Such positions shall be separately designated as "Position One," "Position Two," and "Position Three."

(1) The mayor, when making an appointment to the civil service commission, and the city council, when confirming such appointment, shall specify the position for which such appointment or confirmation is made.

(2) The initial term of each position as hereby re-established shall commence on June 15, 1983. The initial term of Position One shall expire on June 14, 1986; the initial term of Position Two shall expire on June 14, 1985; and the initial term of Position Three shall expire on June 14, 1984.

(3) Following the aforesaid initial terms, the term of office for each position on the

*__Editor's note—__Ord. No. 2015-1300, § 2(Exh. A) adopted December 16, 2015, amended Ch. 14 in its entirety to read as herein set out. Former chapter 14 pertained to similar subject matter and derived from Code 1968, §§ 12-1—12-211 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

__Charter reference—__Civil services generally, Art. Va.

__Cross references—__Ethics and financial disclosure, Ch. 18; police department, § 34-21 et seq.; fire department, § 34-46 et seq.; investigation of employee misconduct (police officers and firefighters), § 34-160 et seq.

civil service commission shall be three years, to commence on June 15 and to expire on June 14.

(4) Any appointment to a vacancy on the commission caused by death, resignation or otherwise, or caused by the failure of an appointee to qualify within ten days after appointment, shall be for the unexpired term of the deceased or retiring member or of the appointee failing to qualify.

(b) No sooner than June 15, and no later than June 30 of each year, the members of the commission shall meet to organize for the transaction of business. At such organizational meeting, the members shall take the constitutional oath of office and shall elect one member as chairman, and one member as vice-chairman.

(1) It shall be the duty of the chairman to preside at all meetings of the commission; it shall be the duty of the vice-chairman to preside at such meetings in the absence of the chairman.

(2) The chairman and vice-chairman each shall be elected for a period of one year or until a successor is elected.

(3) The numerical positions established in subsection (a) of this section are for identification purposes only, and shall bear no relation whatsoever to the chairmanship or vice-chairmanship of the commission.

(c) The mayor, subject to confirmation by city council, may appoint an alternate for each designated position on the civil service commission. Each alternate shall serve only when the regular member of the civil service commission in his position is absent and unable to attend meetings and perform commission duties for any reason. Alternates must have the same qualifications as regular members of the civil service commission and shall have all the powers and duties of a regular member but only when acting in the regular member's absence. An alternate shall be empowered to act as a regular member whenever the regular member notifies the secretary of the commission that the regular member is unable to attend a meeting of the commission or when the secretary of the commission is unable to secure the attendance of the regular member. The period of time during which an alternate may serve on the civil service commission shall expire at the end of the term of office of the regular member for which he serves as an alternate. An alternate shall not serve in any proceeding under Chapter 143 of the Local Government Code.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-1.1. Human resources department—Established.

The human resources department, formerly known as the department of personnel and originally established as and formerly known as the department of civil service, is hereby continued. To the extent that this Code or any other ordinance or any motion, resolution, contract or other document devolves duties upon the former department of personnel or department of civil service or upon the employees or director thereof, then such references shall be construed to mean the human resources department or the employees or director thereof, respectively.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-2. Same—Director.

(a) The office of human resources director, formerly known as the director of the department of personnel and originally established as and formerly known as the director of civil service, is hereby continued. the director shall be appointed by the mayor, with the approval of the city council, shall be over 21 years of age, and shall receive such salary as the city council may allow. before entering upon the discharge of the duties of his office, the director shall take the constitutional oath of office.

(b) It shall be the responsibility of the director to keep the minutes of the meetings and proceedings and all the books, records, etc., of the civil service commission. Such director shall be the secretary and the chief examiner for such commission, and as such shall perform the duties provided in the rules and regulations of such commission. He shall perform all such other

duties as are now or may be hereafter imposed upon him by the civil service commission or the mayor and council.

(c) It shall be the responsibility of the director to supervise and administer the city's employee benefit programs, including but not limited to the city's pension programs (excluding those duties required by state law to be performed by the city treasurer), health benefits, long term disability, life insurance, sick leave, vacation leave, and deferred compensation, and to serve as the administrator of the city's "125 Plan."
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-3. Duty of commission to prepare and submit rules and regulations.

It shall be the duty of the civil service commission to prepare, adopt and submit, as needed, to the city council for its approval such rules and regulations for the proper conduct of its business in carrying out the purpose of the Charter, and thereafter such amendments, alterations and changes of such rules and regulations as it may find necessary and expedient.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-4. Classification of offices and positions.

It shall be the duty of the civil service commission to classify all of the offices of, and places or positions of employment in the service of the city with reference to the examinations provided for in the Charter, in this chapter and in the rules and regulations of the civil service commission, except those exempt from civil service under the Charter. The offices, places and positions so classified shall constitute the classified civil service of the city, and no appointment, employment, promotion, reappointment or reinstatement to any position, office or place shall be made except in accordance with the Charter, this chapter and the rules and regulations of the civil service commission.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-5. Examination and minimum age of applicants; exclusion of applicants likely to impair service.

(a) It shall be the duty of the civil service commission to provide that all applicants for offices, places or positions in such classified civil service shall be subject to examination, either written or oral, which shall be open, competitive and free to those authorized to work in the United States of America provided, however, that the minimum age of applicants for original employment in such classified civil service shall be 18 years. Such examinations shall be practical in their nature and character and shall relate to those matters which will fairly test the relative capacity of the person examined to discharge the duties of the office, position or place to which he seeks to be appointed. No question in any examination shall relate to political or religious opinions or affiliations. The commission shall have direct charge and control of all examinations of whatsoever character.

(b) No applicant shall be entitled to take any examination hereinabove provided for unless the applicant shall have filed with the human resources director his application prior to the date of examination.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-6. Appointments, promotions, etc., to be made in accordance with Charter, chapter and rules and regulations of commission.

Appointments, employments, promotions, reappointments and reinstatements in the classified civil service of the city shall be made only in accordance with the provisions of the Charter, this chapter and the rules and regulations of the civil service commission, and no officer or employee of the city having the power of appointment, employment, promotion, reappointment or reinstatement of persons to offices, places or positions in such classified civil service shall appoint, employ, promote, reappoint or reinstate any person to or in any office, employment, position or place in such service except in

accordance with the Charter, this chapter and the rules and regulations of the civil service commission.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-7. Procedure when vacancy exists; suspension of employees.

When any office, employment, place or position in the classified service is vacant, which is desired to be filled, following the conclusion of an open, competitive and free examination, the director shall certify to the commission a list of eligibles for appointment to the office, employment, place or position in the classified service and the department director concerned shall select an individual from a list of eligibles for appointment to the office, employment, place or position in the classified service. Such appointment shall be on probation as provided by the Charter and rules and regulations of the commission, and such appointees shall not be removed or dismissed except as provided therein; provided, that nothing herein shall prevent the director of any department or office from temporarily suspending officers or employees for disciplinary purposes for reasonable periods not exceeding 15 work days. It shall be the duty of the mayor to indefinitely suspend employees upon the recommendation of the respective department director. The commission shall be notified of any such suspension immediately and may, at its discretion or upon request of the mayor, investigate same and determine whether just cause therefor exists.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-8. Transfers from one department to another.

The civil service commission shall have the power to so amend its rules that any employee in the classified service in the city may be transferred by such commission from one department to another for the good of the service, provided such transfer is satisfactory to the director of the department to which the employee is transferred and to the director of the department from which he is transferred.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-9. Duty of city officers and employees to assist commission.

It shall be the duty of all officers and employees of the city to aid and assist the civil service commission, and the members and officers and employees thereof, in all proper ways in carrying out the Charter provisions, this chapter and the rules and regulations of the commission, and it shall be an offense for any such officer or employee to willfully fail or refuse so to aid and assist, or to willfully hinder, obstruct or delay the civil service commission, or the members, officers or employees thereof, in any manner in carrying out such Charter provisions, this chapter and such rules and regulations.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-10. Suspension of provisions requiring competition.

When an office, employment, place or position in the classified service, in which peculiar and exceptional qualifications of a scientific, professional or educational character are required, is vacant, upon satisfactory evidence that, for special reasons, competition in such special case is impracticable, and that the position, etc., can be best filled by the selection of some designated person of high and recognized attainments in such qualities, the commission may suspend all provisions requiring competition in such case, but no such suspension shall be general in its application to such place.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-11. Offenses in regard to examinations.

No person or officer or employee shall willfully or corruptly, by himself or in cooperation with one or more other persons, defeat, deceive or obstruct any person in respect to his right of examination, or corruptly or falsely mark, grade, estimate or report upon the examination or proper standing of any person examined, or aid in so doing, or willfully or corruptly make any false representation concerning the same or concerning the person examined, or willfully or corruptly furnish to any person any special or secret information for the purpose of either

improving or injuring the prospects or chances of any person so examined, being appointed, employed, promoted, reappointed or reinstated.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-12. Hearings and investigations by commission.

The civil service commission may hold hearings concerning all matters touching the enforcement and effect of the Charter provisions for civil service, this chapter and the rules and regulations of such commission concerning the action of any officer or employee of the city in respect to the execution of such Charter provision, this chapter or the rules and regulations of the commission; and in all cases of investigation under the preceding provision, or of an appeal of an officer or employee in the classified service from the action of any officer, department director or employee of the city removing, discharging or suspending him from his office or employment, the commission, for the purpose of holding such hearing, investigation or inquiry, shall have the power to take testimony, administer oaths and affirmations, subpoena and require the attendance of witnesses and the production of books and papers pertinent thereto, and to examine such witnesses, books and papers, and it shall be the duty of all persons to obey such subpoenas, produce such books, records and papers, and to submit to examination and give their testimony, in all cases where such testimony, evidence, etc., could be required in a court of competent jurisdiction.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-13. Compiling, checking, certifying and correcting payrolls.

(a) It shall be the duty of every department director to complete all payrolls as promptly as possible, and to deliver same to the administration and regulatory affairs department in good order, properly signed and ready for the city controller. It shall be the duty of each supervising authority to review and approve time cards, electronically, of direct reports prior to the pay period close.

(b) It shall be the duty of the director to maintain the active payroll status of all employees.

(c) Payrolls checked under this section shall comply with personnel actions certified by the director.

(d) After payrolls have been checked and certified by the administration and regulatory affairs department, they shall be delivered immediately to the city controller.

(e) It shall be the duty of the administration and regulatory affairs department director to notify the department director if any irregularity, mistake or error is found in the names or in the amount of compensation on any payroll and to refuse to certify to the correctness of such payroll until the mistake or error is rectified. All department directors, when notified of such irregularity or error, shall at once correct the error.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-14. Salaries and wages not to be approved or paid for improper employment.

(a) The city controller shall not approve the payment of, or be in any manner concerned in paying, any salary or wages to any person for services as an officer or employee of the city unless such person is occupying an office or place of employment according to the provisions of the Charter and ordinances of the city and is entitled to payment therefor.

(b) No officer or agent of the city shall willfully pay, or be in any manner concerned in paying, any person any salary or wages for services as an officer or employee of the city, unless such person is occupying an office or place of employment according to the provisions of the Charter and ordinances of the city and is entitled to payment therefor.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-15. Responsibility for irregularities or mistakes in payrolls.

It is the object of this article to hold responsible the directors of departments furnishing the payrolls for all irregularities, mistakes and incorrectness.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-16. Violation of Charter, this chapter or rules and regulations.

(a) Whenever any person or any officer or employee of the city has any positive duty imposed upon him, or any person or any officer or employee of the city is prohibited from the doing of any act by the Charter provisions for civil service, by this chapter or by the rules and regulations of the civil service commission, now or hereafter adopted and approved by the city council and filed in the office of the city secretary, a willful failure, refusal or neglect to perform such duty, or the willful doing of any act prohibited, shall constitute an offense, and the officer or employee or person convicted thereof shall be punished as provided by section 1-6 of this Code.

(b) If any person or any officer or employee of the city shall be convicted under subsection (a) above, any office, place or position which he may hold with the city shall, by force of such conviction, be rendered vacant, and such person, officer or employee shall be incapable of holding any appointive office, or any office, place or position in the classified service of the city.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-17. Soliciting compensation or offering compensation to hasten an employee's retirement or resignation.

(a) A city employee commits an offense if the city employee pays or offers to pay anything of value to another city employee with the intent to hasten the retirement or resignation of the other city employee in order to gain a promotion in rank, classification or salary or an opportunity therefor.

(b) A city employee commits an offense if the city employee solicits or accepts anything of value from another city employee upon the representation that such payment will hasten the retirement or resignation of the city employee making the solicitation or accepting the payment in order to gain a promotion in rank, classification or salary for the city employee solicited or making the payment or an opportunity therefor.

(c) The term city employee as used in this section includes any person employed by the city at the time of the offense whether holding a position that is classified under the Municipal Civil Service System created pursuant to Article Va of the City Charter, a position that is classified under the Firemen's and Policemen's Civil Service System created pursuant to Chapter 143 of the Texas Local Government Code or a position that is not classified.

(d) Any person who violates this section shall, upon conviction, be punished by a fine of exactly $500.00.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-18. Creation of § 401(a) Plan authorized.

(a) This section applies to any employee of the city, other than a police officer or fire fighter classified under Chapter 143 of the Texas Local Government Code, who upon termination of city employment is entitled to a combined gross benefit amount exceeding $5,000.00 under section 14-170 or article III of this chapter for accumulated but unused vacation leave and sick leave benefits. This section shall not be applicable if the termination results from the death of an active city employee.

(b) City council hereby authorizes the establishment of a retirement savings plan under 26 U.S.C. § 401(a) and other applicable provisions of federal income tax laws and regulations. The plan shall be as established and amended from time to time by ordinance of the city, and it shall be administered by a third party administrator retained from time to time by contract with the city, as authorized by ordinance.

(c) Notwithstanding any provision of section 14-170 or article III of this chapter to the contrary, any terminating employee to whom this section applies shall forfeit his right to ordinary cash compensation for a portion of the combined gross termination benefit amount otherwise payable under section 14-170 and/or article III of this chapter that is equal to the lesser of: (1) the combined gross termination benefit amount, or (2) the amount of any applicable contribution limit for the plan as established by federal income tax laws and regulations. The amount so forfeited shall be allocated to an account in the name of the employee within the plan established under subsection (b) of this section.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-19—14-26. Reserved.

ARTICLE II. RULES*

DIVISION 1. RULE 1. DEFINITIONS

Sec. 14-27. Definitions and rules of construction.

The following words, terms and phrases, when used in article I of this chapter and these rules and regulations shall have the meanings assigned to them in this section, unless otherwise clearly indicated in the text:

Accumulated (in reference to time or leave). Days and fractions thereof which are credited to an employee's vacation or sick allowance and gained through length of service with the city.

Allocate (allocation). Official determination of the class and pay level in which a position in the classified service is deemed to exist.

Appeal. A request in writing by an employee of the city addressed to and filed with the civil service commission, in the manner and within the time provided by the Charter and these rules, seeking an investigation, review or hearing of facts therein represented to constitute a deprivation or impairment of rights vested in such employee as a member of the classified service.

Appointee. An employee of the city who is not an elected official nor one working on a contract basis.

Appointing authority. The mayor.

Appointment. The designation of an individual by the appointing authority to become appointed to a position.

Article Va. Article Va of the City Charter, which creates civil service.

Budgetary reasons. Generally assigned in connection with releases, suspensions, or terminations that occur when available funds for a department, division or section, or project are depleted, withdrawn by the proper authorities, or when necessary revenues fail to materialize.

Certification. A written statement which advises of confirmation of conditions, individuals or positions by the constituted authority or authorities.

Charter. City Charter.

Chief examiner. The human resources department director.

Civil service or civil service employee. All city employees, other than probationary employees, embraced within the classifications recognized by the commission and not otherwise excepted from civil service by the Charter.

Civil service staff. The employees in the offices of the commission.

Class. A group of positions which, having common characteristics or similar educational and general qualification requirements or encompassing positions sufficiently alike as to character of duties and responsibilities, warrant for the group essentially the same treatment for all civil service purposes; as, "the engineering class," "the skilled labor class," etc.

*__Editor's note—__See the Memorandum History Table.

Classification. The title of an individual position in the classified service; also the title of an individual employee in the service.

Classification plan. Orderly arrangement of positions into separate and distinct classes so that each class will contain those positions which involve similar duties, responsibilities, and qualification requirements.

Classified (position—service). All positions and their titles which have been created by council and are under civil service.

Commission. The civil service commission of the city.

Compensation plan. Schedule of salaries or salary ranges established by ordinance for the several classes of positions in the service of the city; the provisions whereby all positions of a given classification will be paid either the same salary or within the same salary range.

Council. The city council.

Demotion (demote). A change in (or change to) the employment status of an employee to a position of lower classification or lower pay grade.

Department. Each department, division of a department, office, or division of an office of the city that is listed on Exhibit A at the end of Division 11, without regard to whether it constitutes a department of the city government.

Department director. Each person appointed as a department director by the mayor and confirmed by the council to assume the administrative duties of the various departments of the city. For the purposes of administering this article only, each person appointed by the mayor as the director or head of the division for each division of the mayor's office shall be considered a "department director." For purposes of mayor and councilmember offices, the mayor shall be considered the department director.

Director. The human resources department director.

Discharge. Act of removing an employee from the roster of the city.

Eligible (eligibility). One whose name is placed upon an employment, reemployment, reappointment or promotional list for a given class or classification after fulfilling the requirements therefor; attainment by an applicant, after passing the prescribed tests and fulfilling the qualifications, of the right to be certified as a prospective incumbent of a position.

Examination. A standard means by which an individual's or group's knowledge, skill, and/or ability in a particular area is evaluated, but which is not an employee performance rating. Examinations must be open, competitive, and free in accordance with the charter.

Full-time (employees, employment, position). Refers (or relates) to employees who are scheduled to work 80 hours per pay period throughout the year.

Hearing. A commission session, following notice to the interested party or parties, held for the purpose of receiving evidence and thereafter reaching a decision with respect to matters or controversies appropriately submitted to it for determination.

List of applicants. Those persons who have completed and submitted an application for employment, grouped according to merit, qualifications or pass/fail grade.

List of eligibles. A final list of applicants who have passed suitable examinations and/or possess the necessary qualification and who are eligible to be certified for an original appointment or reappointment under the provisions of Article Va and these rules.

Noncivil service employee. An employee not under civil service as defined by the charter.

Number. Use of the singular shall be held to include the plural, and use of the plural shall be held to include the singular.

Original appointment. Authorization for an eligible to begin work at a stated time and with a specific title and salary; such eligible shall not have previously worked for the city.

Part-time (employees, employment, position). Refers (or relates) to employees of the city who are scheduled to work less than 80 hours per pay period.

Pay grade. A designated level in a compensation plan with an assigned salary range to be used for any classifications determined to have that relative value.

Performance rating. The prescribed methods for determining the varying degrees of efficiency, production, capacity and the general contribution of a civil service employee.

Probationary employee. An employee who has not completed his first year of employment after original appointment or reappointment in a civil service position.

Promotion. A change in the employment status of an employee to a position of higher classification or pay grade.

Promotional examination. Examination of employees as a selection procedure for awarding promotions on the basis of merit.

Promotional probationary employee. An employee who has completed his probationary period after original appointment or reappointment in a civil service position, but has not completed the necessary six months in a position to which he has been promoted.

Reappointment. Authorization for a former employee to resume city employment, usually the position he last held but also any position, which appointment of itself (without the approval of the commission then given) does not restore seniority formerly held by such appointee.

Reassignment of duties. Result of changing by a supervisor, section head, division head or department director of an employee's duties or responsibilities, whether gradually or suddenly, whereby the duties or responsibilities then vary substantially from those in the job description and/or most recent employee performance plan last given for that position.

Reclassification. Change in title of a position; also change in title of an employee either through promotion, demotion or transfer.

Reemployment list. Names of persons, arranged in the order prescribed by these rules, who formerly occupied classified positions in the classified service and are entitled to certification to the appointing authority for reappointment after a layoff.

Regular. In reference to a position, one requiring full-time employment which has reasonable expectancy of continuing indefinitely; in reference to an employee, one who occupies such a position and has fulfilled the required probationary period of one year in a civil service position; and in reference to employment, appointment to such a position of an eligible who has reasonable expectancy of continuance even though his probationary period may not have ended, as distinguished from temporary employment, emergency employment, etc., where in the latter cases a limited term of employment was contemplated when either the position was created or the appointment was made.

Reinstatement. The commission's return of an employee to regular employment of the city with or without back pay and/or seniority.

Salary range. The amounts from minimum to maximum for a pay grade within which a specific salary may be determined.

Supervising authority. An employee who is charged with the responsibility of overseeing the work of one or more other employees, usually a department director but may also be a division head, section head or other designated employee.

Suspension. Period of time during which an employee, through disciplinary action, is forbidden to work and is denied salary.

Termination. The cessation of employment with the city.

Title. The designation given to a position; also the designation of an incumbent of a position in the classified service.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-28. Task system employees.

(a) Upon the request of the department director of the department in which they are employed, regular, full-time employees of the city may be designated by order of the commission as "task system employees." Requests to the commission for such designations shall be made by the department director who shall demonstrate to the commission each of the following:

(1) The identity of classifications or positions of employment requested to be designated for task system employees.

(2) That the work performed within those positions or classifications is not temporary in nature, that the work is of a kind which varies in a predictable manner by season or otherwise so that more work is required to be performed in some workweeks than in other workweeks, and that the annually adjusted regular workweek of the employees therein requires the actual performance of an average of 40 hours of work per week.

(3) That the department director has developed a means of equitably assigning the employees involved so that each will be required to perform a specifically assigned task or tasks as his weeks' work, which task or tasks will, on an annually adjusted basis, require the actual performance of an average of 40 hours of work per week.

(4) That it is impracticable to assign the employees involved to a regular and uniform 40-hour workweek.

(b) The task system employee designation may be removed by the commission at any time upon its own motion or upon request of the department director and a finding that the conditions justifying its establishment as defined in subsection (a), above, no longer exist.

(c) Task system employees shall be considered to be full-time employees, and those task system employees who are not otherwise exempt from civil service classification under section 2 of article Va shall be entitled to civil service classification.

(d) The tasks to be performed as a regular workweek by each task system employee shall be as assigned from time to time by the department director. Such tasks shall be allocated so that they will require the actual performance of an average 40 hours of work per week on an annually adjusted basis. The department director shall maintain, by use of time clocks, a record of the hours actually worked by each task system employee by name and classification and shall furnish an annual report thereof for each calendar year to the commission by the thirty-first day of January of the next year so that the commission may properly review its designation pursuant to subsection (b) above. Any task system employee who is aggrieved by his or her task assignments shall be entitled to the recourse provided by the grievance procedure established in section 14-50 of this Code.

(e) Notwithstanding the requirements of subsections (a) and (d), above, the commission may, by order, find that an average of a lesser number of hours of productive effort is equivalent to an average of 40 hours per week on an annually adjusted basis for any classifications or positions of employees authorized for task system assignment, if their department director demonstrates to the commission each of the following:

(1) That the employees are required by virtue of the nature of their work to perform strenuous and continuing physical labor without an opportunity for the rest periods which are usually afforded to employees in other classifications;

(2) That no practicable means exist to restructure the employees' work assignments to provide such rest periods; and

(3) That the work tasks assigned to the employees will require a productive effort which is equivalent to not less than 40 hours of work as performed by other city employees who are assigned to labor under the normal working conditions associated with city employment.

Employees who are authorized to perform a reduced workweek pursuant to this section shall, nevertheless, not be subject to overtime benefits

in any workweek unless and until all of the requirements of section 14-168 of this Code, specifically including the requirements of subsection (e) thereof have been met. The designation of any position or classification of task system employees as equivalent workweek employees shall not impair their right to civil service classification under subsection (c) above. Consistent with the nature of the work to be performed, the commission shall establish minimum time in attendance work hour requirements, which shall in no event be less than 32 hours per week, for payroll reporting purposes as to each position or classification of task system employment which is authorized to perform an equivalent workweek under this subsection.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-29—14-32. Reserved.

DIVISION 2. RULE 2. COMMISSION AND DIRECTOR GENERALLY; PURPOSE, ETC., OF RULES*

Sec. 14-33. Appointment of commission.

There shall be a civil service commission duly installed and authorized to operate under the provisions of section 1 of Article Va.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-34. Purposes of rules.

These rules shall be known as the civil service rules for employees of the city (other than fire fighters and police officers) and are adopted to conform with provisions of Article Va for the purpose of establishing procedures for handling those matters which are the responsibility of the civil service commission in such a way as to ensure:

(1) That all appointments and promotions to, and separations from, positions in the classified service shall be made on the sole basis of merit and fitness, which, so far as is practicable, shall be ascertained by means of competitive examinations.

(2) That a plan of classification and fair compensation for positions therein shall be adopted which will conform with the principle of like pay for like work.

(3) That employment in the service of the city shall be made attractive as a career.

(4) That each civil service employee shall be encouraged to render his best service in compliance with all of the provisions of his employment.

(5) That a modern, comprehensive performance rating system shall be provided whereby economy and effectiveness in personal services may be promoted to the mutual benefit of the employees and the taxpayers.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-35. Application of rules.

These rules shall apply to all positions in the classified service, except those as otherwise provided for in section 2 of Article Va.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-36. Adoption and publication of rules.

Civil service rules, when adopted by the commission and approved by the council, shall be effective but shall also be published publically through the use of any media most likely to reach citizens of the city, employees and applicants, including electronic media.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-37. General powers and duties of the commission.

(a) In accordance with the provisions of sections 2 and 4 of Article Va, the commission shall have the power to amend, repeal or supplement these rules at any time and adopt new rules which shall become effective upon approval thereof by the council.

(b) The commission shall, in cooperation with the mayor and council, develop job descriptions and qualifications and recommend to the council a compensation plan of properly related scales of pay for all classes of positions.

*__Editor's note—__See the Memorandum History Table.

(c) The commission shall, in cooperation with the mayor and council, develop regulations covering vacations, sick leaves, leaves without pay, injury leaves, and other leaves, which will take effect when approved by the council.

(d) The commission shall develop a system of performance ratings and administer same for employees in the classified service.

(e) The commission shall develop and enforce a code of rules and regulations which, being based upon merit, efficiency, production, character and conduct, will provide for:

(1) Appointments and employment in all positions of the classified service;

(2) Reduction in forces;

(3) The order in which employees shall be laid off and reinstated; and

(4) Appeals from dismissals, demotions and suspensions.

(f) The commission shall direct the administration and enforcement of the civil service rules and regulations and ordinances which affect the civil service commission. Should the commission have reason to believe any officer, board, commissioner or person concerned with appointment, layoff, demotion, suspension, indefinite suspension, discharge or promotion has abused such power by executing or recommending any action in violation of the civil service rules and regulations or ordinances or Charter provisions covering civil service, it shall be the duty of the commission to make an investigation and, if violation of the provision or spirit and intent of the law or rules and regulations is found, the commission shall make a report thereof to the mayor and council and recommend appropriate action.

(g) The commission shall order reinstatement without loss of pay for any employee who has been demoted, indefinitely suspended, reduced in rank or compensation, suspended or transferred for religious, racial or political reasons.

(h) The commission shall order reinstatement without loss of pay for any employee in the classified service who has been demoted, indefinitely suspended, reduced in rank or compensation in any instance where, following a hearing, the commission finds as a fact that such demotion, indefinite suspension, reduction in rank or compensation was not affected in a manner consistent with these rules and regulations.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-38. Duties of director.

The duties of the director shall be:

(1) To recommend for action by the commission rules and regulations for the proper administration and development of the merit system for employees of all departments.

(2) To recommend for action by the commission rules and regulations for the establishment of a classification plan for all positions affected herein, based upon similarity of duties and responsibility.

(3) To recommend for action by the commission rules and regulations for the establishment of a compensation plan for all positions affected herein, in conjunction with the directors of the departments.

(4) To recommend for action by the commission rules and regulations for the establishment of open, competitive and free examinations.

(5) To recommend for action by the commission reasonable provisions for preference for service of persons who:

a. Have been members of the armed forces of the United States covered by the Uniformed Services Employment and Reemployment Rights Act of 1994, as amended; and

b. Who are able to produce evidence of an honorable discharge.

(6) To recommend for action by the commission such other rules and regulations, including but not limited to matters pertaining to attendance of witnesses, filling of vacancies, promotions, demotions, probationary periods, layoffs,

discharges, reductions and suspensions, and appeals from actions taken therewith; to make recommendations tending to establish and maintain harmony between the commission and the various city departments; to improve selection methods; to reduce excessive turnover of personnel in the departments; to forestall excessive increases in personnel; to make available to the various departments the best personnel practices; to develop an adequate and comprehensive system of personnel records; and, generally, to perform at the direction of the commission any other work necessary or proper for making effective the provisions of Article Va and the rules and regulations and the ordinances pertaining thereto.

(7) To hold examinations, pass upon qualifications of applicants, establish lists of eligibles as needed, and to certify lists of eligibles to department directors for filling vacancies in the city's service.

(8) To serve as executive head of the civil service staff, to direct and supervise all of its administrative and technical activities, and with the approval of the commission, and under the budgetary procedure of the city, to direct and control the expenditures from appropriations for the commission.

(9) To serve as secretary of the commission, to keep the minutes and records thereof, and in all other proper ways to facilitate the actions and proceedings of the commission.

(10) To examine and qualify for appointment all employees of the commission except the director and the members of the commission, and to plan, direct and supervise their work.

(11) To establish and maintain a record of all city employees, showing as to each the classification, position held, the salary or wages, the address, and any other necessary data, and all changes thereto.

(12) With the approval of the commission, to allocate each position in the classified service to its appropriate class and pay level in the classification plan and reallocate positions as conditions warrant.

(13) To recommend to the commission for its adoption amendments to the classification plan.

(14) To make such investigations as he may deem desirable with respect to the enforcement and effect of the civil service provisions of the Charter, the ordinances, and the rules over which the commission has jurisdiction, and to make such other investigations as the commission or the mayor may request, and to make special reports thereon.

(15) To aid the mayor and department directors in handling matters over which the commission has jurisdiction.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-39—14-44. Reserved.

DIVISION 3. RULE 3. OFFICERS, MEETINGS, ETC., OF COMMISSION

Sec. 14-45. Meetings generally.

All meetings of the commission shall be held in an appropriate public meeting place, shall be open to the public, and shall be held on the days and hours that the commission from time to time may designate. Special meetings may be held on the call of the chairman or the director.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-46. Rules of order, evidence or procedure.

The commission shall not be bound by any rules of order, evidence, or procedures in its meetings, hearings, or investigations, except such rules as it may establish.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-47. Quorum.

Two members of the commission shall constitute a quorum for the transaction of business. A meeting shall be adjourned in the absence of a quorum.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-48. Power to take action.

Neither the commission nor any member shall have power to take action except by authority of majority vote in the meeting assembled.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-49. Duty of director to attend meetings; minutes of meetings.

The director or his designee shall attend all meetings of the commission; shall act as its secretary and have recorded its official actions in the minutes; and shall have recorded a commissioner's dissent with his reasons therefor when such there be. The director or chairperson may cause the minutes to be transcribed and presented for approval or amendment. The official copy of the minutes and any amendments thereto shall be kept in the office of the commission.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-50. Grievable issues.

Any civil service protected employee who feels aggrieved due to:

(1) Nonselection for a promotion to a referred position; and/or

(2) Hazardous working conditions not intrinsic to the job; and/or

(3) Employee performance ratings with an overall rating of less than acceptable or effective or the equivalent; and/or

(4) Failure to receive a performance rating if delayed more than six months; and/or

(5) Failure to be paid overtime or compensatory time, if eligible, appropriate, and worked; and/or

(6) Written reprimand;

may file a grievance and pursue it through as many of the grievance steps provided by this chapter as desired.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-51. Grievances generally.

At each step in the grievance proceedings, the following shall apply:

(1) At all times, the department will give the grievant at least four calendar days notice of any step meeting unless a shorter period is mutually agreed upon. At each step in the process the participants shall appear in person and fully, candidly and openly discuss the grievance in an effort to mutually resolve the disputed issues.

(2) The grievant must submit the grievance on the appropriate forms provided by the director with the grievant's original signature. The grievance form may not be signed by a representative, or faxed, e-mailed, or otherwise transmitted by electronic means to the grievance coordinator or the commission.

(3) The grievant and department management are required to mutually disclose non-privileged information, names of witnesses/persons with relevant knowledge, and provide documents to be used in the step meetings. Failure by either party to disclose known witnesses/persons with relevant knowledge, documents or information may be grounds for exclusion/inclusion of such evidence, where appropriate. Failure by the department to disclose known witnesses/persons with relevant knowledge, documents or information shall subject the person responsible to discipline.

(4) With the approval of a grievance examiner, a grievance may be discontinued at any step in the process for the grievant's unexcused failure to disclose witnesses/persons with relevant knowledge, documents or information or failure to cooperate or respond. Such decisions may be reviewed by the commission.

(5) The dates required herein for scheduling meetings/hearings may not be extended except where an investigation for criminal misconduct is pending, where the failure to meet a date is the result of an authorized leave of absence or excused illness of the grievant, or the parties mutually and voluntarily agree in writing to extend the deadlines. Any extension granted must be reasonable and not unduly or unnecessarily delay the grievance process.

(6) Upon mutual agreement, grievances by more than one grievant arising out of the same or similar fact situations may be consolidated and heard concurrently at the discretion of the department.

(7) Grievances by the same grievant may be consolidated and heard concurrently at the discretion of the grievance examiner at step III.

(8) The grievant and the department shall be allowed to have a representative present at any meeting or hearing authorized herein, though each shall be conducted so that the grievant may represent himself if he so chooses. No representative need be a licensed attorney. Any representative must be in compliance with section 14-183(a)(10) of this Code.

(9) No electronic or other technological mode of recording may be used at step I or II proceedings by any participant.

(10) Grievance forms and related documents shall not be filed in a grievant's personnel file. Every reasonable effort shall be made to keep grievances and the documents related thereto from disclosure to persons without a need to know, except as required by state, federal or local law.

(11) Neither step I or II meetings nor step III hearings shall be open to the public.

(12) In each step of the grievance process, the grievant shall be allowed a reasonable time off from his regular duties to file his grievance and to attend step I or II meetings or a step III hearing thereon, and such time off shall not be charged against the grievant. Such allowed time does not include time for preparation, meetings with witnesses or representatives, drafting responses or gathering evidence, etc. At its discretion, the department may provide an alternative work schedule or overtime as needed to accommodate the grievant's attendance at step meetings or hearings.

(13) Subpoenas may be issued only for step III hearings and will be limited to a maximum of five fact witnesses per grievance. Upon presentation of the subpoena, city employees will be allowed reasonable time for travel and participation at step III hearings and will be compensated (regular or overtime hours, as appropriate) by the department.

(14) If a grievant resigns his position with the city or is indefinitely suspended while a grievance is pending at any step proceeding, the grievance shall become moot and all further processing shall be discontinued.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-52. Grievance filing period.

Grievances shall be in writing and received by the designated departmental grievance coordinator within 30 calendar days (including weekends and official city holidays) after the occurrence of the action or inaction or the date on which the grievant knew or should have known through the exercise of reasonable diligence of the action or inaction for which the civil service protected employee feels himself aggrieved. This time period shall be mandatory and jurisdictional.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-53. Compliance oversight.

The director shall recommend to the commission for approval a procedure for the handling of grievances. It shall be the responsibility of the director to monitor, coordinate and facilitate the processes of this grievance procedure. The director may designate one or more persons who shall assist the designated departmental grievance

coordinators to resolve any questionable or challenged grievances, schedule and coordinate step III hearings, give timely and proper notice to all parties of step III hearings, and shall take such other and further action as shall be required to assure that this grievance procedure operates timely, correctly and effectively in compliance with these rules.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-54. Grievability challenges.

If there is any doubt as to whether an issue is grievable under section 14-50 above, a written request may be directed to the director to have the grievance referred to a grievance examiner for a determination of grievability. Either the grievant's department, the director or the grievant may challenge grievability at any point in the grievance process and submit written arguments on the issue of grievability.

(1) At the request of either the grievant or the department, the grievance examiner's determination of grievability may be referred to the commission for review without hearing or testimony. Written arguments may be submitted to the commission; however, no other issues or new evidence on the issue of grievability may be submitted to the commission by either party at any time.

(2) When a request for a determination of grievability is filed with the director or the commission, all subsequent time frames in the grievance step process shall be suspended during the period of referral and review by the grievance examiner and/or the commission.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-55. Grievance process.

The grievance process shall consist of four steps.

(1) *Step I:*

a. The step I grievance form may be obtained from the departmental grievance coordinator. The completed form must be received by the grievance coordinator on or before the deadline. The date the grievance is filed shall be documented on the grievance form by the grievance coordinator. Thereafter, the grievance coordinator must arrange a meeting between the grievant and the immediate supervisor or another supervisor in the chain of command who might better resolve the grievance at this step, and/or other appropriate parties to be concluded no later than 30 calendar days after the date on which the grievance was received. If the meeting is not concluded within 30 calendar days, the grievance shall proceed automatically to step II.

[1] No later than 24 hours before the meeting, the parties shall mutually exchange all documents reasonably related and relevant to the grieved issue.

[2] If the grievance may not be resolved by the immediate supervisor because of a lack of authority to resolve the issue, steps I and II may be combined.

[3] If the grievant's immediate supervisor is the department director, steps I and II are automatically combined and considered concurrently. In such case, the department director shall meet with the grievant and shall not appoint a designee.

[4] When a performance rating of less than effective is grieved, at the option of the grievant, steps I and II may be combined and the grievance may proceed directly to a step II meeting. If steps I and II are combined, all time frames shall be the same as at step II.

b. Regardless of the outcome of the step I meeting, the immediate supervisor or appropriate party shall

respond in writing not later than ten calendar days after the date on which the meeting was concluded. The response must include the supervisor's evaluation of the grievance and proposed resolutions, if any. Any proposed resolution must be within the authority of the supervisor or approved by the department director.

[1] The supervisor or appropriate party shall submit the completed written response to the grievance coordinator. The grievance coordinator shall forward the supervisor's response to the grievant with a copy to the director. The response shall be either personally delivered by the grievance coordinator to the grievant or be served by certified mail, return receipt requested, to the last address of record provided by the grievant on the step I grievance form.

[2] If no written response is submitted by the supervisor or appropriate parties within the ten calendar days following the conclusion of the step I meeting, the grievance coordinator shall have an additional ten calendar days to automatically schedule a step II meeting. Notice shall be given to the grievant, the department director/designee and the supervisor. A supervisor or appropriate party who fails to comply with the requirements of this section or to do so timely may be disciplined.

[3] An untimely filed response may be accepted at the discretion of the grievant, but will not avoid the automatic referral to step II unless the grievant requests that the grievance be withdrawn.

c. Proposed resolutions for each grievance by a supervisor or appropriate party must be accepted by the grievant entirely or not at all. If the proposed resolution is rejected, the grievant may file a step II grievance form with the department grievance coordinator. If the grievant fails to timely file a step II grievance form, the grievance process is terminated. If the grievant accepts the proposed resolutions, the department must implement the proffered resolutions.

(2) *Step II:*

a. To continue the grievance, the grievant must reject all of the proposed step I resolutions, specifying reasons for the rejection on the step II grievance form. The completed step II grievance form must be received by the department grievance coordinator no later than the tenth calendar day after the date on which the grievant was served with the supervisor's response. If certified mail is used to give the step I response to the grievant, the step II grievance form still must be received no later than the tenth calendar day after the date the step I response was mailed.

b. The grievance coordinator shall arrange a step II meeting between the grievant, the immediate supervisor and/or the appropriate parties at step I and the department director or a designee of at least an assistant director level or the equivalent selected by the department director.

[1] Where steps I and II are combined, and the grievant's immediate supervisor is not the department director, the department director or a designee of at least assistant director or the equivalent shall hear the grievance. If the

grievant's immediate supervisor is the department director, the combined step I and II meeting shall be with the department director and may not be held with a designee from any level.

[2] The step II meeting must be concluded no later than 45 calendar days after the date on which the step II grievance form was received by the department's grievance coordinator. If the meeting is not concluded within 45 calendar days, the grievant has ten calendar days to request that a grievance examiner order the grievance to proceed to step III without a step II meeting. Such a request must be filed with the civil service coordinator at the human resources department in accordance with procedures recommended by the director and approved by the commission.

[3] No later than 24 hours before the scheduled step II meeting, both parties must mutually exchange through the grievance coordinator any additional non-privileged documents not previously disclosed or discovered through the exercise of reasonable diligence or provided at step I which are related to the grievant and reasonably related to his grievance or the grieved issue. Documents or information indirectly related to the grievant or his issue or related to other employees may be disclosed at the discretion of the department and the grievant respectively.

c. Within ten calendar days after the date the step II meeting concludes, the department director or the designee who conducted the step II meeting shall provide a written response to the grievance issues together with proposed resolutions to the grievance coordinator who shall be responsible for service of the response on the grievant in person or by certified mail, return receipt requested, to the last address of record provided by the grievant on the step II grievance form.

[1] Any proposed resolutions must be within the authority of the department director or designee.

[2] If no written response is submitted by the department director or the designee within the ten calendar days following the conclusion of the step II meeting, the grievance coordinator shall have an additional ten calendar days to refer the grievance to the civil service coordinator of the human resources department to automatically set the grievance for a step III hearing. Notice shall be given to the grievant, the department director or the designee and the supervisor that the matter was automatically referred to step III.

[3] An untimely filed response may be accepted at the discretion of the grievant, but will not avoid the automatic referral to step III unless the grievant requests that the grievance be withdrawn.

d. Proposed step II resolutions must be accepted by the grievant entirely or not at all. If the grievant accepts the proposed resolutions, the department must implement the resolutions.

(3) Alternative mediated Step II proceeding for written reprimands or a performance rating of less than effective: At the time of filing of a step II proceeding only for a grievance of a written reprimand or an employee performance rating of less than effective, the grievant may elect to proceed to a step II meeting with a department director or designee or to proceed to request a mediated step II in accordance with the procedures set forth below.

a. The director shall be authorized to establish a mediation program and to develop procedures for its implementation. Prior to implementation, the commission shall approve rules and procedures for step II mediations, which shall be in writing and made available to all parties. A mediation program for this purpose shall have certified mediators who shall not be city employees. A mediation program established under this section shall have the following features:

[1] At step II, instead of a meeting with the department director or a designee, the parties may mutually agree to mediate the grievable issue (written reprimand or less than effective performance rating). A mediated step II must be accomplished within the same time frames as a nonmediated step II proceeding.

[2] If a settlement is reached and reduced to writing and signed by all parties at the mediated step II, no further appeal is allowed.

[3] If a settlement is not reached through mediation, a grievant who wishes to continue the grievance shall file a step III request for grievance hearing with the director on or before the tenth calendar day following the conclusion of the mediated step II meeting.

b. No mediator may be called to testify at the commission or at a step III hearing.

(4) *Step III:* The director or his designee shall coordinate all proceedings at steps III and IV.

Grievance examiner

a. The completed step III request for grievance hearing form obtained from the human resources department must be received by the director on or before the tenth calendar day following service of the written step II department response or the conclusion of the mediation, as applicable. If the grievant fails timely to file a step III request, the grievance process is terminated. The request for grievance hearing must specify the reasons for the rejection. The director or his designee shall notify the department grievance coordinator when a step III request is filed and serve notice of the scheduled hearing date and time on the grievant and the department director/designee at least ten calendar days before the hearing.

b. The grievance examiner shall conclude an evidentiary hearing within 60 calendar days after the date of receipt by the director of the step III request for grievance hearing. If the grievant fails to appear at the hearing, the grievance examiner shall dismiss the grievance.

c. Step III grievance hearings shall be limited to the issues articulated at step I and shall be conducted as informal administrative proceedings. The presumption in favor of the departmental action mandated by the Charter is rebuttable. The burden shall be on the grievant to support the grievance by a preponderance of the evidence.

d. At each hearing, the grievance examiner shall:

[1] Review the current status of the grievance;

[2] Determine whether jurisdiction is proper;

[3] Determine the issues to be addressed and the extent to which evidence will be allowed;

[4] Determine who will be allowed to testify and what documentary and other evidence will be admitted; and

[5] Hear the evidence and ensure that the proceedings follow due process and these rules.

d. Written rules of evidence, order and procedure shall be adopted by the commission with copies provided to the parties at the time of filing. All rules adopted by the commission for step III hearings shall be enforced by grievance examiners. The hearing shall be transcribed.

e. The parties to a hearing before the grievance examiner shall be the grievant, his representative, the department, by and through a departmental representative designated by the department director, and the department's attorney. Other persons who may attend include fact witnesses, appropriate supervisory personnel, and any other persons necessary for a fair determination of the grievance.

f. The director, on behalf of the commission, may issue subpoenas to require the attendance of witnesses and/or the production of books, documents, records or other tangible evidence relevant to any factual dispute. At the time of hearing, the grievance examiner will determine which witnesses will be allowed to testify. Alternative forms of allowable testimony (video, telephonic, deposition, affidavit, etc.) may be accepted in addition to or in lieu of live testimony if, in the opinion of the grievance examiner, such alternative testimony is credible, relevant, authentic, and reliable.

g. All witnesses shall be examined under oath in relation to any matters relevant to the grievance issues. No general references or character evidence or testimony shall be allowed in any form, including character affidavits, declarations or statements. Persons to be called as witnesses may be excluded from the hearing room during the taking of testimony upon the request of either party.

h. Grievance examiners may impose a reasonable time limit on the time allowed the parties to present evidence or examine witnesses, limit the number of witnesses to be heard in accordance with commission rules, and restrict presentation of the issues or the proceedings.

i. After the close of evidence and the arguments of the parties, if any, the grievance examiner may rule immediately into the record or take the matter under advisement. In either case, the grievance examiner shall file a written determination within 15 calendar days after the date the hearing concludes. The determination shall consist of findings of fact and conclusions of law based upon the grievance issues, evidence, legal principles and arguments presented, and recommendations for resolution of the grievance. The authority and powers of the grievance examiner are limited to those of the commission as reflected by the commission's rules, the Charter and ordinances. A grievance examiner may not exceed her jurisdiction or authority or recom-

mend relief that is not otherwise authorized by this chapter or these rules.

j. The grievance examiner's determination shall be served on the grievant on or before the fifth calendar day following receipt by the director with a copy to the commission and the department director.

k. If the grievance examiner's determination is improper due to lack of jurisdiction, authority, due process or sufficiency of the evidence to sustain the examiner's findings or recommendations, either party may file a step IV request for review on a form provided by the director. If both the grievant and the department director fail to timely file a request for review, the grievance examiner's determination is deemed affirmed by the commission and the grievance process terminated.

(5) *Step IV:*

a. The completed step IV request for review form must be received by the commission on or before the tenth calendar day following service of the grievance examiner's determination.

b. The step IV request for review form provided by the director must include all of the reasons for the request, all agreed facts and issues through step III and may include a statement in support of the issues and/or a proposed resolution together with all supporting documentation and justification for the request. A copy shall be served upon the opposing party. No reply statement is allowed by the filing party.

c. The opposing party may file a response in support of the determination and/or a proposed resolution together with any agreed issues and/or facts and all supporting documentation and justification to be served upon the commission and all opposing parties at least seven calendar days before the scheduled commission review. The burden of proof remains on the grievant.

d. If both parties file a step IV request for review, each may prepare and file a response to the opposing party's request and statement.

e. Review by the commission shall be limited to the evidence before the grievance examiner, including the transcript from the Step III hearing. No new evidence may be submitted or introduced for the first time at step IV.

f. The commission may affirm, reverse, or modify the grievance examiner's determination and issue an order which shall be served upon the parties with a copy to the grievance coordinator and the grievance examiner. The commission's order is final for all administrative purposes.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-55.1. Grievance coordinators.

(a) Each department director or designee shall appoint from among the employees in that department one or more grievance coordinators who shall perform without additional compensation the ministerial, administrative and clerical duties required to coordinate this grievance procedure within the department. The title "grievance coordinator" is a functional designation of each person selected by the department to be the focal point for the initiation, facilitation and completion of the mechanics and logistics of the grievance process and confers no official status, position, authority, or power upon the person so appointed. The department director or designee may assign additional duties to grievance coordinator(s) relating to any employee concerns review programs adopted by the department.

(b) The grievance coordinator shall:

(1) Be responsible for implementing the requirements of this procedure and ensuring timely and correct compliance with these rules within the department.

(2) Provide all civil service protected employees with appropriate forms for filing grievances, upon request, along with written instructions or guidelines, but shall not assist or fill out the forms for the grievant.

(3) Before accepting the grievance, receive and review the grievance form to ensure that it is:

a. Grievable as set forth hereinabove;

b. Complete in sufficient detail to inform the department of the factual basis;

c. Timely filed; and

d. Executed by a civil service protected employee.

(4) Refer any questionable grievances in compliance with these rules.

(5) Arrange and coordinate all meetings and proceedings required herein, notify all participants of scheduled meetings/ proceedings, and may only facilitate scheduling of, but not conduct, meetings.

(6) Coordinate the exchange between the parties of documents, forms, and other materials associated with each grievance.

(7) Provide responses or information regarding policies and procedures when requested.

(8) Receive the results of the step proceedings from the departmental representatives and forward them to the appropriate participants.

(9) Keep a permanent record of all grievances filed and maintain all grievance matters and related documents in segregated, confidential files. Subject to federal, state and local law, all information contained in such files may be disclosed on a need to know basis only. Any employee who otherwise discloses such confidential information without the grievant's authorization may be subject to disciplinary action.

(c) Grievance coordinators shall not:

(1) Encourage or discourage grievances, nor represent or advocate for or against the grievant or the department at any time, at meetings or otherwise.

(2) Participate in the decision making.

(d) Original grievance forms and related documents filed with the grievance coordinator at each step of these proceedings shall be forwarded to the director.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-55.2. Grievance examiners.

The commission shall appoint qualified persons, independent of all city departments and experienced in employment related issues, to preside over and conduct step III grievance hearings. Each appointment shall be for a term of one year. Reappointment to successive one year terms shall be at the discretion of the commission. The grievance examiner shall be responsible only to the commission.

(1) A grievance examiner shall not be a city employee nor shall such examiner be considered an employee by such service to the commission.

(2) An examiner may be removed from an appointment by a majority vote of the commission. Removal may be by resignation or for cause including, but not limited to, a violation of an ordinance or criminal law whether misdemeanor or felony including moral turpitude, continued failure to be available to hear grievances, negligence, or failure to perform the duties of an examiner timely, to follow the rules of the commission, or to provide due process.

(3) For participation in the hearing and providing a written determination, each examiner shall be paid a fee set by the commission. A separate budget account shall be set up for this purpose by the director.

(4) The director shall provide each grievance examiner with a suitable location to hold hearings and sufficient clerical support to perform his duties.

(5) Anyone who has a complaint against a grievance examiner may file such complaint in writing with the director. Any such complaints will be set on the next agenda of the commission for review, whereupon the commission will determine the appropriate action to be taken (e.g. investigation, notice, opportunity to respond, etc.) with regard to such complaint.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-55.3. Retaliation prohibited.

It shall be a violation of the civil service rules and regulations for any supervisor to take any retaliatory action against any grievant for utilizing or participating in any of the grievance procedures established by this section. It shall also be a violation for a grievant to retaliate against a supervisor or another employee for participating in a grievance. If retaliation is alleged to have occurred, that allegation shall be incorporated into the next succeeding step proceeding through step III.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-55.4. Notice of these procedures.

The director shall provide a suitable notice explaining this grievance procedure and the grievant's rights thereunder and furnish an adequate number of copies to each city department. The department director shall cause to be posted in a prominent place at least one copy of such notice in each division within the department.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-55.5. Assistance by legal and human resources departments.

When requested to do so by the commission, the director, or the department director of the grievant who has filed a grievance under this procedure, the legal and/or the human resources departments shall assist in the representation or resolution of a grievance.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-55.6. Record keeping requirements.

The director shall be the official custodian of all records involving grievances after each grievance has been resolved. A repository of closed grievances shall be maintained by the civil service coordinator of the human resources department.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-55.7. Nongrievable issues.

Unless specifically authorized in section 14-50 above, other issues that concern employees shall be handled as set forth below:

(1) *Employee concerns review programs.* All departments shall establish and implement programs with written procedures to address employee concerns which do not allege discrimination or are not expressly made grievable herein. The director shall establish guidelines for such programs which shall be approved by the commission prior to the development of any departmental program. Regardless of the form or manner, programs such as peer review, employee representative councils, mediation or any other alternative dispute resolution mechanism, or any combination of programs may be implemented to address such issues.

a. Each department's employee concerns review programs must be accessible to all of its employees regardless of civil service protection (e.g. probationary, part-time, appointed, executive, etc.).

b. Departments may reasonably limit concerns which can be addressed through this process. All programs and procedures and any amendments or subsequent changes must be approved by the commission prior to implementation.

c. There is no appeal to or review by the commission of decisions made by departments in any employee concerns review program.

(2) *Nonreferral complaints.* The director shall establish procedures for addressing complaints regarding nonreferral of applicants to posted vacant positions.

(3) *Classification challenge.* Any civil service protected employee who feels that he is performing duties outside the course and scope of his classification as defined by the position job description and/or the performance plan may request a review of his actual duties performed to ensure conformity and consistency in that classification and the classification system.

a. The request must be made in writing and filed with the employee's department grievance coordinator who shall be responsible for immediately providing a copy of the request to the department director or his designee.

b. The department director or his designee shall review the request and no later than ten calendar days after the request was provided by the grievance coordinator shall determine whether the request has merit and should be resolved internally without formal review by the director. The department director or designee may elect to:

[1] Make no change in the employee's duties; or

[2] Eliminate any duties alleged to be outside the job description of the employee's classification and/or the employee's performance plan; or

[3] Assign and/or substitute other duties that conform with the current job description of the employee's classification and/or reflect duties on the employee's performance plan; or

[4] Join the employee's request for a job audit and determination. The department director shall immediately forward a request to the director for review.

c. If the department director or designee fails to take any action within ten calendar days after the employee's initial request, the grievance coordinator shall forward the employee's request to the director requesting a formal job audit.

d. The director shall process the request as expeditiously as possible and issue a determination as to the propriety of the duties the employee is being asked to perform and whether they are within the existing classification. The final determination of the director shall be forwarded to the department grievance coordinator, the employee and the department director or designee.

e. Upon receiving the director's determination, the department director shall have ten calendar days to elect to change those duties that are non-conforming with the employee's job description and performance plan and set forth in writing the proposed actions, if any, to be taken with respect to the employee's duties and/or classification. The department director or designee shall respond in writing to the director within ten calendar days of receipt of the director's determination, setting forth the proposed action(s), if any, to be made with respect to the employee's duties and/or classification. The director will send a copy of the determination and the department director's response and proposed action to the requesting employee.

[1] If the department director's proposed action implements the director's determination, the offer is presumed accepted and

the request may not be pursued further. There is no appeal to or review by the commission.

[2] If the department's proposed action is inconsistent with the director's determination, the employee may request a review by the commission.

f. When an employee is authorized to request a review by the commission above, the employee must request a review by the commission in writing on a form provided by the director within ten calendar days after the employee's receipt of the department's response provided by the director. The request must be filed with the director, who shall log the request, monitor its progress and place the request on the agenda of the commission at the next possible regularly scheduled meeting. At least ten calendar days' notice of the date of the commission review shall be served on all parties.

[1] The parties may submit written arguments and relevant documents in support of their respective positions. The director shall supply a copy of his determination to the commission at least five calendar days before the matter is scheduled for commission review. Unless the commission specifically requests, there will be no oral presentation, testimony or arguments to the commission.

[2] The commission shall review the director's determination, the department's response and proposed action, and the written arguments and documents of the parties and shall issue its order at the earliest practical time after the scheduled meeting of the commission affirming, rejecting, or modifying the determination of the director and/or proposed action of the department director with regard to the employee's duties and/or classification. The order of the commission shall be final and shall be implemented immediately. There shall be no further appeal or review.

(4) *Discrimination complaints.* Any complaint which alleges discrimination in whole or in part, based on race, color, religion, sex, national origin, age 40 years and over, veteran status, disability, genetic information, sexual orientation, gender identity, Family Medical Leave Act status, workers' compensation status, or retaliation for filing a charge/claim of discrimination (discrimination factors) or for whistleblowing is not grievable through the grievance process. All such claims will be referred by the grievance coordinator to the office of the inspector general for investigation and/or to the director for a determination of severability, if necessary. All or any portion of the complaint which is not based upon a discrimination factor and which may be segregated and severed, may proceed through the grievance process if it is otherwise grievable herein even if the grievant has concurrently or subsequently filed a complaint on the nongrievable (discrimination based) aspects of the complaint with the office of inspector general and/or the Equal Employment Opportunity Commission (EEOC), or the Texas Workforce Commission (TWC).

a. If at any point in the grievance process, a grievant alleges discrimination in either the grievance forms, at step proceedings, or in documentary materials, all such discrimination based issues, documents or testimony will be excluded from consideration.

b. If the grievable issues cannot be separated from the discrimination based issues which are not grievable, further processing of the griev-

ance will be suspended, and the grievance will be referred to the office of inspector general for an investigation of the discrimination complaint. If an allegation of discrimination is sustained, the office of inspector general will inform the department who will attempt to resolve the issues in accordance with the applicable law. If any nondiscrimination issues remain to be resolved after the office of inspector general issues its findings, any previously intertwined grievable issues will be referred back to the department (if referred at steps I or II) or to the director (if referred at step III) for completion of grievance processing of the remaining unresolved grievable (nondiscrimination) issues.

c. A civil service protected employee who files a grievance must affirm in writing on a form provided by the director, that the grievance is not based upon a discrimination factor in whole or in part. If the grievant indicates a discrimination factor on the form, the grievant will be referred to the office of inspector general and the grievance handled as indicated above.

d. Notices regarding the filing of federal and state law complaints of discrimination shall be posted in prominent places in compliance with state and federal laws. A charge of discrimination filed with the EEOC or the TWC will not affect a valid grievance based on the same facts, even if concurrently or subsequently filed with the processing of the grievance, so long as the grievance is processed in accordance with the rules set forth above and limited to the nondiscrimination based facts. EEOC and/or TWC determinations will not affect any grievance.

(5) *City appeals to state court.* In cases of exceptional importance, legal precedence, or challenge to jurisdiction or legal authority, the city/department may seek a declaratory judgment from a state district court of Harris County construing the commission's orders. The appeal must be filed within thirty days after the date of the commission's order and be based upon substantial evidence. The commission need not be joined as a necessary party.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

DIVISION 4. RULE 4. CLASSIFICATION PLAN

Sec. 14-56. Generally.

The commission shall, in cooperation with the mayor and council, have a classification plan which shall provide for the use of standard titles for all classes of positions in the classified service and a written job description for each classification which will describe duties and responsibilities and set forth minimum requirements necessary for the successful performance of the task involved in each classification.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-57. Adding or revising classifications.

The commission may, at any meeting, add new classifications or revise existing classifications whenever it is deemed advisable, always subject to the approval of the mayor and council. There shall be no new classification proposed for council approval until the proposal, with full details of the duties involved, has been submitted to the commission for its recommendation.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-58. Interpretation of specifications.

The specifications of the various positions in the classification plan are hereby declared to have the following force and effect:

(1) The use of a particular expression or illustration as to duties, qualifications, or other attributes, shall not be held to

exclude others not mentioned, provided such others are similar in kind or quality; nor to limit the power of the supervising authority to alter the detailed tasks involved in the duties of a position. But when a substantial change of duties is made, except for limited, temporary periods, such change shall be reported to the commission with a view to a possible reclassification of the position.

(2) In determining where a given position is to be allocated, the specifications shall be considered as a whole. Consideration shall be given to the job purpose, the specific responsibilities, duties, tasks, and qualification requirements, and to the relation of the position to other classifications as all together affording a picture of the kind of employment the classification is intended to embrace.

(3) The commission shall prescribe minimum and maximum age requirements of applicants for appointment to particular positions. The minimum age for employment in the classified service of the city shall be 18 years.

(4) For all classes, qualifications such as legal authority to work, honesty, and industry shall be deemed to be required even though they may not be specifically mentioned in the definitions of the positions.

(5) The statement of necessary special qualifications in the specifications of a position, comprising an enumeration of license, registration, or other legal qualifications required for the performance of the duties of the position, shall constitute a basis and source of authority for acceptance or rejection of applications for examination for the position and also for the evaluation of the qualifications of an applicant. When such qualifications exist in state laws or city ordinances, they shall be required even though they are not specifically stated in the specifications.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-59. Allocation of positions to classes.

The commission shall allocate each position in the classified service to its appropriate class under the classification plan by placing in each class those positions substantially similar in nature, degree of difficulty, responsibility, and character of work which require generally the same kind and amount of training and experience for proper performance and which merit approximately equal pay. In making such allocations, provisions shall be made for the uniform application of the classification plan to positions in the various departments of the city.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-60. Status of incumbents of positions when allocated.

Should a position in the original allocation process be allocated or reallocated to a different class in order to correct an error in its original allocation, the employee in such position shall be entitled to continue therein, provided he legally occupies that position by regular appointment thereto.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-61. Allocation of new positions and reallocation.

(a) Whenever a new position is created by the mayor and council, the commission shall allocate the position to its proper class in the classification plan, or if no suitable class exists, one shall be established as provided in these rules and the position allocated thereto.

(b) Whenever the duties of a position are so changed as to justify its allocation to a different class, the commission shall make that reallocation and shall decide whether the change represents a promotion or a demotion for the incumbent of the position. Should it be a promotion, the incumbent must qualify therefor, provided he has not previously done so.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-62. Protesting allocations.

If an employee believes that his position has been improperly allocated, he may protest by

presenting his reasons therefor upon such forms or documents as the director may prescribe. The claim shall be investigated consistent with the rules under a classification challenge under section 14-55.7(3) of this Code.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-63. Use of position titles.

The commission-approved title of each position shall be its official title for all purposes having to do with the position as such and shall be used to the exclusion of all other titles on all payrolls, budget estimates, official records and reports and personnel forms.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-64. Effect of classification on payments of salaries.

No employee shall be appointed, employed, or paid under any title other than that of the class to which the position occupied by him is allocated.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-65. Right to make investigations.

The commission shall have the right to initiate and conduct investigations of positions in the classified service at any time and to propose changes in the classifications of positions when the facts warrant such action. The commission, through the director, may secure from the employee or his supervisor a new statement of the duties and responsibilities of the position under consideration. Should a change to the classification be proposed, the employee and/or the department director shall have an opportunity to be heard by the commission before the revised classification shall become effective.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-66—14-70. Reserved.

DIVISION 5. RULE 5. COMPENSATION PLAN

Sec. 14-71. Preparation, approval and revision.

The commission, in cooperation with the mayor and council, shall prepare or cause to be prepared a compensation plan for the classified service and from time to time propose such revision as may be deemed advisable so as to provide for uniform scales of pay for all classes of positions. No such plan shall become effective until it has been approved by the mayor and council.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-72. Adjustment of wages when plan made effective.

When the compensation plan is made effective under these rules by ordinance, the employees within a certain classification who are receiving a salary or wage lower than the minimum for that classification shall have their salary or wage increased to an amount equal to the minimum for that classification. The salaries or wages which are in excess of the maximum for that classification shall be considered individually by the commission, which in turn shall make recommendations to the mayor and council for their action.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-73. Longevity pay.

(a) Effective January 1, 1975, in addition to his base salary, each full-time regular employee shall be paid longevity pay in the sum of $2.00 per bi-weekly pay period for each one year period of actual service with the city. The maximum longevity to which any employee shall be entitled under this section shall not exceed $50.00 per bi-weekly pay period.

(b) Longevity pay for employees of the city shall be computed on a bi-weekly basis being effective on the first day of the first pay period following the employee's anniversary date of employment with the city. In computing actual service, time spent on authorized absence on military leave for service with the armed forces of the United States shall be included, but any other period of time in which an employee is out of the service of the city, or absent on leave without pay in excess of 90 days, shall not be counted, provided, however, that in the case of extended leave without pay only the period in excess of 90 days shall not be counted.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-74. Shift pay differential for certain city employees.

(a) For the purposes of this section, the following phrases shall have the meanings hereby ascribed to them:

Day shift. Any regularly scheduled work shift which begins between the hours of 5:00 a.m. and 12:00 noon.

Second shift. Any regularly scheduled work shift which begins between the hours of 12:00 noon and 6:00 p.m.

Third shift. Any regularly scheduled work shift which begins between the hours of 6:00 p.m. and 5:00 a.m.

(b) All full-time regular employees of the city, other than fire fighters and police officers, who are assigned to the second shift shall be paid, in addition to their base pay, shift differential in the amount of $0.25 per hour.

(c) All full-time regular employees of the city, other than fire fighters and police officers, who are assigned to the third shift shall be paid, in addition to their base pay, shift differential in the amount of $0.35 per hour.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-75—14-78. Reserved.

DIVISION 6. RULE 6. EXAMINATION

Sec. 14-79. Requirements for examinations.

The director shall, whenever vacancies exist within the civil service or even in advance of such vacancies, prepare, view and rate necessary examinations, or direct this work, which examinations shall determine the suitability of applicants for civil service positions. No person shall be appointed to a position in the civil service, except as otherwise provided for by law, until he shall have signed a completed application on the forms prescribed by the commission, qualified by passing the required examination, and been certified for appointment in accordance with these rules.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-80. Notice required; exceptions.

Public notice of competitive group examinations shall be given at least seven calendar days prior to such examinations by posting notices in the office of the commission or upon any public bulletin boards available in the City Hall or elsewhere as the director may decide. Such examinations may be further publicized through the use of any other media most likely to reach qualified applicants for the position in question. This requirement may be waived by the commission in cases of special examinations for positions for which there is substantial difficulty in obtaining qualified applicants.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-81. Contents of notice.

Each official notice of an examination shall state the title, duties and pay of the position for which the examination is to be held, the qualifications required, the time and place for making application, the time and place of examination, and any other information which is deemed to be pertinent and useful.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-82. Open application period.

Should the commission find that there is a shortage of qualified candidates for positions or classes of positions which urgently need to be filled, it may announce that no time limit has been established for receiving applications, and applications may be filed during such period of time as may be necessary to establish a satisfactory employment list. When a satisfactory employment list has been established, public notice shall then be given that no further applications will be accepted.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-83. Types of examinations.

(a) All examinations shall be open, competitive, and free in character and designed to measure fairly the applicant's suitability to perform the duties of the position which he seeks to fill.

(b) An examination may be written or oral and may include physical tests, demonstrations of skill, evaluation of training and experience of applicants as recorded in their applications, or any combination thereof.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-84. Applications and examination admission.

(a) All applications shall be made on forms prescribed by the director who may require such information as he deems pertinent, but no questions in the application, or in any other portion of the examination, shall be so framed as to elicit information concerning the political, fraternal or religious opinion or affiliation of the applicant.

(b) Any person may apply for any examination unless the public notice of same shall disqualify such person based upon a bona fide occupational qualification.

(c) The commission or director may reject the application of any person for admission to an examination, or refuse to examine any applicant, who is found to lack any of the qualifications prescribed in the public notice, or who is physically or mentally unqualified to perform the duties of the class, or who has been dismissed from the public service for delinquency or misconduct, or who has made false statements of any material fact, or has practiced or attempted to practice deception or fraud in his application or in his examination. In every such case, the commission may reject the application and likewise may cancel the eligibility of the applicant if he has already been admitted to an examination and has attained a place on a list of eligibles, and take action for his removal from the service in case he has already received appointment when such finding is made.

(d) The director may exclude from any further participation in any examination any applicant who does not make a passing grade on any part of an examination where the examination is in more than one part. Failure in any portion of the examination shall be sufficient grounds for exclusion in any other part of the examination, or, if all portions of the examination have been completed, the director may declare such applicant as failing in the entire examination.

(e) When applications are received from qualified applicants who are living in another city and it is not practical for such applicants to present themselves in the city for the examination, the director may make arrangements with any other person in that city who is acceptable to the commission to administer the examination.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-85. Conduct of examinations.

(a) The examinations shall be conducted by the director, or by persons designated by him, according to the procedure established by the director. Safeguards shall be devised which, insofar as possible and practicable, shall conceal the identity of candidates from examiners or other persons engaged in scoring, marking, or otherwise rating the candidates.

(b) The director shall arrange for suitable persons in the service of the city, with the consent of the supervising authorities under whom such persons work, to assist in examinations. When there is an insufficient number of such persons available, the director may arrange to employ temporarily such other persons as might be needed and shall provide for their pay.

(c) It shall be the duty of all city employees having such authority to allow the reasonable use of public buildings and other facilities as conditions might require for holding such examinations and tests.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-86. Passing grade.

The commission shall have the power to place the passing grade at any figure or percentage deemed equitable in each test but, unless a definite figure is set, the passing grade shall be 70, based upon a total weight of 100 for the entire examination.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-87. Eligibility for examinations.

(a) Examinations for appointment shall be open to persons who meet the requirements for admission to the examinations as established in the public notices therefor or as specified in these rules. Such requirements may relate only to qualifications, characteristics, skills and abilities related to the actual performance of the duties of the job for which the examination is being held.

(b) No additional applicant shall be admitted to the examination room after any candidate has permanently absented himself from the place of examination.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-88. Reexaminations; correcting; amending, etc., records.

The commission shall have the power, whenever in its judgment the interests of the public service require it, to order a reexamination of applicants for any position, and shall have the power to correct, amend, or revoke any schedule, list or other papers or records when it appears that an error or injustice has been done; and when any person whose name appears on the list of eligibles has, for any reason, become incapacitated for appointment in the public service, the commission may strike such name from said list of eligibles. The reason for such action shall be recorded in full in the minutes of the commission.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-89. Original papers.

All original papers, applications, examination papers and questions, certificates, and all other papers pertaining to the application and examination are the property of the human resources department and must be filed with the human resources department and shall be kept for a minimum of three years or longer if circumstances require.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-90. Notice of results.

Each person competing in an examination shall be given a written notice of the examination results. Those who fail to attain a place on the list of eligibles shall be notified of that fact.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-91. Review of results.

Each person competing in an examination may, within five business days after the notice of the results, and only after such person has requested in writing to the director, be permitted to inspect his rating and examination papers at the appropriate human resources department location, during business hours, and may secure any necessary explanations of the methods by which the ratings were determined. However, no examinee will be permitted to review the questions used in a written examination but may be allowed to review his answer sheet only.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-92. Appeals.

An examinee may file his appeal with the director for correction of his rating at any time during the five days immediately following notice of the examination results; such appeals must be made in writing and must set forth the grounds for such appeal. The commission shall review such appeal within a reasonable time and shall notify the examinee of its decision, and the decision of the commission shall be final.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-93. Correction of results.

If, after examination of the appeal filed by a candidate, the director finds that any manifest error existed in the rating, scoring, or computing of the results, he shall, upon approval by the commission, make the required correction and place the name of that person in its true position on the list as the correction warrants. Such correction, however, shall not invalidate any appointment previously made from such list.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-94—14-98. Reserved.

DIVISION 7. RULE 7. LIST OF ELIGIBLES

Sec. 14-99. Preparation; contents.

(a) The director may prepare a list of eligibles, when needed, from the results of each examination. The list shall contain the names of only those persons who have met the minimum requirements for eligibility. Names shall be listed in a descending scale order starting with the one receiving the highest rating.

(b) When two or more candidates have equal final weighted ratings, their names shall be arranged on the list by the order in which the application was submitted.

(c) When a list of eligibles is being prepared in the course of an open application or examination period, as provided for by Rule 6, section 14-84 of this Code, names of eligibles shall be added to the list as rapidly as the necessary examinations are completed and rated, and in the order to which their final earned ratings entitle them. However, names certified prior to receipt of later eligibles shall not instantly be affected even though later eligibles may have higher earned final ratings, the prior certified names being affected only when these certified are returned to the eligible list at which time the names of eligibles who earned higher, though later, ratings shall be placed above them on the list to await another certification.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-100. Duration of lists of eligibles.

All lists of eligibles shall remain in existence for one year unless sooner exhausted, and at the end of one year they shall expire and new examinations shall be given as the need requires.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-101. Promotional lists.

After each promotional examination, the commission, through the director, shall prepare and keep available a promotional list of eligible. When two or more persons have equal final weighted ratings, their names shall be placed in the following manner: The one with the higher performance rating shall be placed above the other; but if there should still be a tie, the one of greater seniority shall be placed above the other one.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-102. Reemployment lists and reappointment.

(a) The name of any employee who has held a regular position in the civil service and has been laid off for reasons not to his discredit or whose position has been abolished under reduction of forces shall be placed upon the reemployment list according to the date laid off, and shall remain thereon for a period of one year.

(b) Any person who voluntarily resigns from a position in the civil service and who leaves the service shall forfeit any rights which he might have had under civil service and may be reappointed in the civil service only in the manner prescribed by the rule governing original appointment. Nothing herein contained shall affect adversely the rights of any employee who enters the uniformed military forces as provided under rules governing military leaves.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-103. Removal of names.

Names of eligibles may be removed from a list of eligible for any of the following reasons:

(1) Failure to report for an interview.

(2) Declining an appointment.

(3) Inability to be located.

(4) Continued unavailability after expiration of a stated limited period of time during which, at the eligible's request, the director has not certified him.

(5) Failure to report to work after appointment.

(6) Death of eligible.

(7) Loss of legal authority to work.

(8) The commission has reason to believe that the individual is unqualified for appointment because of:

[1] Incapacity;

[2] Errors discovered in computing his examination score;

[3] False statements made in his application; or

[4] Other similar reasons.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-104. Offenses relative to examinations, applications, etc.

No person shall willfully, by himself or in cooperation with any others, defeat, deceive, or obstruct any person in respect to his rights to any examination or appointment to any position under the provisions of Article Va and any rules or ordinances adopted thereunder; nor shall anyone willfully and falsely mark, grade, estimate or report upon, the examination, the standing of any person examined or certified, or the performance ratings of any employee; nor shall anyone aid in so doing; nor shall anyone willfully make any false representation concerning any person examined, or willfully furnish to any person any special or secret information for the purpose of either improving or injuring that person's prospects or chances in connection with any examination or appointment; nor shall anyone impersonate any other person or permit or aid in any manner any other person to impersonate him in connection with any examination or appointment or application or request to be examined. Violation of this rule by a city employee shall be grounds immediate indefinite suspension of the offending employee or employees as provided for by Rule 15. Violation of this rule by an applicant shall cancel all present rights of that applicant or candidate for consideration as an appointee to the city's service. Violation of this rule by a noncivil service employee shall be grounds for the immediate discharge or termination of the noncivil service employee. In all cases, violation of this rule may result in removal of the offending employee or candidate from all lists of eligibles.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-105—14-109. Reserved.

DIVISION 8. RULE 8. CERTIFICATION AND APPOINTMENT; TRANSFERS

Sec. 14-110. Requests for certification.

Whenever it is desired to fill a vacant classified position, written notification and such information as might be necessary for an informed certification shall be submitted to the commission on a form prescribed by the director. Insofar as is practicable, each vacancy shall be anticipated sufficiently in advance by the department in order to permit the director to determine who may be available for appointment and, if necessary, to prepare a class specification and to establish a list of eligibles.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-111. Certification of eligibles.

(a) Upon receipt of written request for certification, the director shall certify to the department director the list of eligibles, and any other applicable data.

(b) If any of the number so certified shall not be available for appointment, the director shall certify the succeeding name or names from such list of eligibles until a sufficient number of eligibles are certified.

(c) Vacancies in the classified service shall be filled by promotion, except when the commission deems that the interests of the city may be served better thereby, such vacancies may be filled by the demotion, transfer, reemployment or original employment when applicable.

(d) The eligibles to be certified, subject to the limitations of the preceding section, shall be the highest ranking ones willing to accept employment chosen in this order:

(1) Former regular employees on a reemployment list whose services terminated only because of budgetary or force-reduction reasons.

(2) Regular employees on the appropriate promotion list, if any.

(3) Those approved for reappointment, if any.

(4) Those on an original employment list.

All names on one of such lists shall be exhausted before names from another list may be certified, but names certified may be those taken from two or more lists, if necessary, to provide the necessary number prescribed in subsection (a) of this section.

(e) If the appropriate lists do not contain a sufficient number of eligibles prescribed in subsection (a) of this section, the maximum number of available eligible persons willing to accept appointment shall then be certified. Under such circumstances, the director shall then prepare an examination in order to create a new list of eligibles from which certification shall be made.

(f) When, upon request for certification, there are no eligibles on an appropriate list, certification may be made at the discretion of the director, and the director may appoint any qualified person available to fill the position.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-112. Report and effective date of appointments.

An appointment shall be reported immediately to the human resources department on the form prescribed by the commission. The director, after certification of conformity with the rules, shall forward one copy of the form to the department concerned, the payroll section, and the civil service personnel files. An appointment shall become effective as of the date on which the appointee enters upon duty.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-113. Temporary and emergency appointments.

(a) Whenever a department requires temporary assistance because of a special project, a temporary increase in the work load, or absence of a regular employee, appointments may be made from an appropriate list of eligibles for the duration of such unusual work. Each such employee shall have the prefix temporary in the official records.

(b) The acceptance or rejection by an eligible of temporary appointment shall not affect his standing on the list of eligibles, but the temporary service shall not be counted as a part of his probation in case of immediately subsequent, regular employment in the same position in the same department.

(c) No temporary appointment shall be made for a period of more than six months, but may be extended by the commission for a longer period. No temporary employment shall become regular unless the employee, at the time of original, temporary placement, came from a list of eligibles for that position. In case it is desired to convert a temporary appointment into a regular one, such appointee shall fulfill the requirements covering candidates for original entrance into the service and must be certified by the commission before he may become a regular appointee.

(d) In the event of an emergency which may result in loss of public property or in serious inconvenience to the public, the mayor may direct the director to select and appoint a person or persons without regard to the rules governing other appointments, but in no case shall such emergency placements be employed for longer than the duration of the emergency and each such employee shall have the prefix emergency in the official records.

(e) Successive or consecutive emergency appointments shall be made only with express approval by the commission with a view of limiting a person to a total of 90 working days of such employment.

(f) Emergency appointments shall be reported promptly to the commission with reasons therefor; the commission reserves the right to inquire into the nature of the emergency.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-114. Approval of appointments.

(a) Approval by the commission of regular appointments made in conformity with civil service rules and from lists of eligibles shall not be required.

(b) Approval by the commission of temporary appointments shall be required before the administration and regulatory department director may certify to the legality of the payrolls upon which such names appear.

(c) Approval by the commission before employment begins shall not be required in the case of an emergency placement, but each such appointment shall be reported to the commission immediately.

(d) When there is a vacancy in a scientific, managerial, professional, or educational class and there is a shortage of applicants in that class, the commission may approve the appointment of an applicant recommended by the mayor upon satisfactory evidence that the applicant meets the requirements for the class and is qualified otherwise; however, the commission may require the applicant to pass an examination.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-115. Transfers.

(a) A department director, with the approval of the mayor, may request the commission to reclassify within his department any classified employee under his jurisdiction with the same maximum salary. Reclassification shall not be allowed until prior approval by the commission.

(b) Transfer of a classified employee from a position under the jurisdiction of one department director to a position under the jurisdiction of another department director may be made only upon approval of the commission and both department directors concerned.

(c) Any transfer of an employee from a position in a lower class to a position in a class carrying a higher maximum salary shall be deemed a promotion; while any transfer from a position in a higher class to a position in a class carrying a lower maximum salary shall be deemed a demotion and neither may be accomplished except in the manner provided in these rules for making a promotion and for making a demotion.

(d) A city employee in a noncivil service position shall not be transferred, appointed, nor promoted to a civil service position without first having been qualified by the commission.

(e) When the best interests of the city may be served thereby, the commission may approve transfers, to vacancies, of employees who are about to be displaced for reasons not reflecting upon the efficiency, character, conduct or capacity of those employees.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-116. Procedure.

The director shall institute procedures and designate forms for carrying on all of the activities involved in such transactions coming under the jurisdiction of the commission.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-117—14-121. Reserved.

DIVISION 9. RULE 9. PROBATION

Sec. 14-122. Duration.

(a) Each appointment to a position in the civil service shall be for a probationary period of 12 consecutive months. Each employee so appointed shall complete the 12 months probationary period, which is to be regarded as a working evaluation period, before being considered a civil service employee.

(b) Each promotion in the civil service shall require an additional probationary period of six months, which is also to be regarded as a working evaluation period.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-123. Service during probation.

During a probationary period the department director shall observe the performance and conduct of the employee and, if such is not satisfactory, then the circumstances shall be filed in writing with the commission.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-124. Effect of nonpaid absences or transfers during probation.

(a) If an employee is absent without pay for any reason from his work for a period of over 30 calendar days, during the probationary period, the time he is absent shall not count as a part of the period of probation and the employee will be required to serve that additional time as part of his probationary period.

(b) If an employee is transferred during the period of probation from a position in one department to a position in another department, the employee so transferred shall be required to start a new probationary period at the time of his transfer.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-125. Removals during probation.

(a) In case the department director deems a probationary employee unable or unwilling to render satisfactory service, or for other sufficient cause, the director of the department may remove such employee upon written notice to the commission. When any employee is removed for any cause during probationary period, he shall not be entitled to a review or hearing before the commission.

(b) If a civil service employee is removed during probation, from a position to which he has been promoted, he shall be restored to his former classification in the department in which the employee is presently assigned, unless the employee consents to other placement.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-126. Credit for prior service.

The provisions of this section shall be available in any instance in which a position which was not theretofore subject to civil service protections is revised or redesignated by action of the council or the commission so that it becomes a civil service position and the incumbent thereof qualifies for and continues to hold such position without a break in service after its revision or redesignation. Under such circumstances, the commission may, upon recommendation of the department director and the director and a finding that the duties and responsibilities of the position have not substantially changed, grant credit to the incumbent for all or a portion of his prior service time or none towards the appointment probation period established pursuant to section 14-122 of this Code.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-127—14-130. Reserved.

DIVISION 10. RULE 10. PROMOTIONS

Sec. 14-131. General requirements.

Vacancies in the classified service shall be filled only at the discretion of the department director and, insofar as is practicable, by the promotion of employees within the department in the classified service. Only the director shall, in each case, certify the qualifications of the employees recommended to the department director. Promotions shall involve a definite change in duties or an increase in responsibilities and an increase in pay grade and shall not be made merely for the purpose of effecting an increase in compensation.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-132. Promotional examinations generally.

Promotional examinations shall be limited to only employees in the classified service who, at the time of the examination, are serving in other classified positions and have served for such a period as may be prescribed by the director. A promotional examination may include employees with specific classifications in all departments or only in the department for which the list of eligibles is being established, as determined by the director in each instance. Certification shall be made in the same manner as that prescribed for original appointment. Promotional examinations may, at the direction of the director, consist of one or more of the following parts: Written, oral, psychological, and practical performance tests, a special rating by each candidate's department director and, in some cases, a medical examination as an additional requirement.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-133. Notice of promotional examinations.

Whenever a promotional examination is to be held, notice of such examination shall be posted. It shall be the duty of the director to determine where such notices shall be posted and the duty of the department director to see that each such notice is properly posted.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-134. Temporary promotions.

An interim or temporary promotion to a higher position, made necessary by reasons of sickness, disability, vacancy, or other absence of another employee, may be authorized by the commission upon the written request of the department director concerned who shall set forth full information regarding such request. All such temporary promotions, where practical, shall be filled from a promotional list if there is one in effect for the particular class, and shall continue only during such period of sickness, disability or other absence. Any such temporary promotion may or may not include a temporary increase in compensation at the discretion of the department director.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-135—14-139. Reserved.

DIVISION 11. RULE 11. LAYOFFS

Sec. 14-140. Notice.

When it is necessary to reduce the number of employees within any department due to reorganization of the department, reduction in funding, reduction in services provided, or for any other reason, each employee whose position is to be eliminated shall be so notified, and at the stated time his salary and work shall cease. This shall constitute a layoff. The department director shall notify the employee in writing at least 45 calendar days in advance of the layoff. A copy of the layoff notice shall be forwarded promptly to the director. A suspension, dismissal, discharge or discontinuance of temporary, part-time or seasonal employment shall not necessarily constitute a layoff and vice versa.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-141. Who shall be laid off.

When it becomes necessary to lay off one employee or more in the same classification in a department, the one or ones to be laid off shall be determined by the department director on the basis of this section. While there is no guarantee of reemployment for any laid-off employee, the names of all those laid off, who have received performance ratings reflecting acceptable performance or higher, shall be placed on a reemployment list for a period of one year. No employee in a regular position shall be laid-off while any probationary, temporary, part-time, seasonal, or emergency employee is performing comparable duties in the same department unless the department director determines that the continued use of such employees is necessary due to unpredictable work loads, seasonal or temporary work requirements, or related factors that make the use of regular full-time employees for the work impracticable or inefficient or would impair the quality of service of the department. Employees will be laid off by a combination of merit rating and seniority as provided in this ordinance.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-141.1. Rules of construction and definitions.

In the construction of this division, the following rules shall be observed and the following definitions shall apply, unless the context clearly indicates otherwise:

Classification means the actual employment category to which each employee is assigned at the city.

Combined merit rating means the total point score of overall appraisal ratings received during the past three years' annual performance ratings. Combined merit rating will be based on the overall performance ratings from the subject employee's annual performance ratings given upon forms promulgated by the director and approved by the commission, during the calendar year in which the implementation date occurs and for each of the two calendar years preceding the year in which the implementation date occurs. For each of those three years' performance reviews, the employee shall receive points on a basis that corresponds to the employee's overall performance rating numerical score. If the numerical scoring systems differ between types of performance review forms, those ratings shall be adjusted to obtain corresponding scoring systems according to standards set by the director.

If an employee received more than one performance rating during any such calendar year, then the results of each performance rating for that year shall be averaged on the basis of the number of performance ratings that the employee received during that calendar year. For any year in which an employee did not receive a performance rating for any reason including, but not limited to, not being employed by the city, then for that year the average of the scores the employee received in the remaining year(s) in the combined merit rating period shall be used. If an employee in a classification tier that is targeted for layoff has not received any performance reviews during employment with the city, then the department shall perform an unscheduled performance review before the implementation date, and the score on that review shall be multiplied by three to give that employee's combined merit rating. If a performance rating is on appeal through a grievance process, the appropriate hearing officer will be notified and requested to render a decision before the implementation date. If the appeal is still pending on the implementation date then the average of the scores the employee received in the remaining year(s) in the combined merit rating period shall be used instead of the score on the performance rating which is pending on appeal. Combined merit ratings shall be computed for all employees within the department and classification in which a layoff is to be implemented.

Department means each department, division of a department, office, or division of an office of the city that is listed on the Exhibit A at the end of this division, regardless of whether it actually constitutes a department of the city government, or not.

Implementation date means the date established in writing by the mayor for the implementation of a layoff within a department. All computations regarding the layoff shall be based upon the implementation date, and the delay of the actual implementation of the layoff for any reason shall not affect the use of the established implementation date for such computations, unless the mayor elects to establish a new implementation date.

Layoff tier. Each employee within a department and classification in which a layoff is to be implemented will be assigned to a layoff tier as determined by the employee's combined merit rating. Employees within a layoff tier will be laid off on the basis of their seniority with the employees having the least amount of seniority being laid off first. The most senior person within a layoff tier will be retained, barring any exemptions.

Managerial tier means a separate tier which consists of employees who occupy positions within classifications assigned to a pay grade greater than or equal to pay grade 23, as designated in the Officials and Administrators EEOC (Equal Employment Opportunity Commission) job category A, and which are designated as a mid-level manager or above on the class description. Managerial tier shall not include employees excepted from eligibility to civil service classification under Article Va, Section 2. When a classification in the managerial tier is targeted for layoff within a department, all employees holding positions within that classification in the department shall constitute one tier for the purposes of computing the combined merit rating.

Total continuous employment shall be computed from the date of an employee's initially reporting to work with the city as an employee in a regular position. Total continuous service in the current job classification shall be computed from the date of an employee's certification to the current job classification. If the employee has had a break in employment, then the total continuous employment or the total continuous service in the current job classification shall be computed from the date of the employee's return reporting to work with the city as an employee in a regular position. A break in employment shall consist of any instance in which the person ceased to be a regular employee of the city under these civil service rules, except for a

military leave authorized under state or federal law or a prior layoff and reemployment under Civil Service Rule 11.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-141.2. Layoff procedure including sequence of layoffs.

(a) With the exception of employees in classifications in the managerial tier, employees within the same classification in a department where the layoff is to be implemented shall be laid off on a lowest numbered layoff tier-first out basis. In the event that there are two or more employees within a given classification and layoff tier and the number of persons to be laid off is such that one or more of the employees within that classification and layoff tier need be laid off and one or more need not be laid off, then the person or persons with the least seniority, based on total continuous employment, shall be laid off first.

(b) For each job classification affected by the layoff, probationary, temporary, part-time, seasonal and emergency employees shall be laid off first and, exclusive of exemptions, comprise Layoff Tier Number One of the layoff scheme. Layoff Tier Number Two shall, exclusive of exemptions, be comprised of all employees having a combined merit rating falling below standard (i.e. below 9). Layoff Tier Number 3 shall, exclusive of exemptions, be comprised of all employees having a combined merit rating greater than or equal to 9 and less than or equal to 11.07. Layoff Tier Number 4 shall be comprised of all employees with a combined merit rating greater than 11.07.

(c) The employee or employees to be laid off will be determined by their layoff tier and seniority, based on total continuous employment, on a lowest tier number-first out basis. Within a layoff tier, the employee or employees having the least seniority (exemptions excluded) will be the first laid off. After all employees within a layoff tier (exemptions excluded) have been laid off, the employees in the next numbered layoff tier will be laid off in order of seniority, and layoffs will continue through layoff tiers sequentially until the layoff has been completed.

(d) If a tie exists between two or more employees after use of the procedure outlined in (c) of this section, then among those employees with the tie score, the following steps will be utilized in the following numbered sequence until the tie is broken, with use of a succeeding step only in the event a tie still exists among two or more employees:

(1) Employees will be laid off on the basis of the commencement of their total continuous service in the current job classification on a last in-first out basis, with the last commenced to be the first laid off.

(2) Employees will be laid off on the basis of their most recent job performance review score on a lowest score-first out basis, with the employee receiving the lowest score to be the first laid off.

(3) Employees will be laid off on the basis of the commencement of their total continuous employment on a last in-first out basis, with the last commenced to be the first laid off.

(4) Employees will be laid off on the basis of the date an employee filed an application for current continuous employment with the human resources department on a last in-first out basis, with the last applicant to be the first laid off.

(5) Employees will be laid off on the basis of total city service, which shall include all periods of permanent employment with the city, on at least total service-first out basis, with employee(s) with the least amount of total city service to be the first laid off.

(6) Employees will be laid off on the basis of their names selected on a random basis by the human resources director, or his or her designee, on a first selected-first out basis, with the first name(s) selected to be laid off first.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-141.3. Exemptions and directors' discretion.

The department director may exempt one or more employees from the operation of the layoff, if the department director makes a specific written finding that:

(1) The exempted employee(s) have specifically enumerated educational qualifications or specialized technical training, professional licenses or qualities relevant to their work functions that are not possessed by the employee or employees who would otherwise replace them; or

(2) The retraining of the employee or employees who would otherwise replace the exempted employee(s) would cause a deterioration of service delivery or service quality by the department or the exempted employee has specifically enumerated skills, the loss of which would adversely impact the department's service delivery or quality.

At least ten calendar days prior to the date that the laid off employees are formally notified in writing of their layoff under this rule, the department director implementing such layoff shall provide the city attorney with written exemptions, if any, for review and approval.

Except as to employees who are exempted in accordance with this subsection, the layoff shall be accomplished in the manner otherwise provided in this rule.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-141.4. Grant-funded positions.

In any instance in which a department has some positions that are funded in whole or in part by virtue of funding received from one or more state or federal grant contracts and other positions that are funded in whole by virtue of funds derived from other general sources of city revenue and a layoff is required due to a reduction or elimination of the funding, then the layoff shall be accomplished in accordance with this rule, but in such a manner as to affect only those employees whose positions are funded in whole or in part through the source of funding that has been reduced or eliminated. It shall be the duty of the department director to ensure that each employee hired, transferred, promoted, demoted or otherwise assigned into a position that is funded in whole or in part by any state or federal contract or grant in aid notified prior to such assignment that the position will not be wholly funded by general city revenues and that the employee's continued employment will be subject to the city's continued receipt of funds for the position under the applicable state or federal contract funding the position.

A position shall be considered to be funded by a state or federal grant contract for purposes of the administration of this subsection regardless of whether the grant contract provides for the receipt of the funds in advance of their expenditure by the city, or provides for the expenditure of city funds from other city sources with their subsequent reimbursement pursuant to the terms of the grant contract, or provides for any combination of advance funding and reimbursement funding.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-142. Reemployment list; reappointment; restoration of sick leave and vacation accruals.

The names of persons officially filling regular civil service positions at the time such positions are abolished and who have performance rating scores of acceptable or higher shall be placed on a reemployment list and shall remain on this list for a period of one year. When vacancies occur in positions with the same classification or any other classification which is determined by the director to require equivalent job skills within the same or any other department, except as provided below the last one or ones laid off shall be the first reappointed, and no other names shall be certified for those classifications until the one or ones laid off have been given a reasonable opportunity to accept reemployment with the city. Nothing herein shall be construed as a guarantee of reemployment.

(1) For any instance in which there exists a reemployment list for a classification, and if an employee has been or will be voluntarily or involuntarily demoted to

that classification within the department or if a qualified employee with a disability must be transferred to a vacant position in that classification as an accommodation of last resort, the department director may request and the commission may approve the certification of the employee to a position within that classification and thereby reject placement of those on the reemployment list.

(2) In any instance in which the reemployment list for a given classification contains employees who before the layoff did not work within the department in which they would be reemployed, the department director may request and the commission may approve the certification of only those employees on that reemployment list who worked in that department at the time they were laid off, and thereby reject all employees on the reemployment list who were not employed in that department at the time they were laid off. If vacancies that the department seeks to fill still exist after certification of all those employees who worked in the department at the time they were laid off, then for those remaining vacancies the last employees laid-off in that classification within any other department shall be the first reemployed.

(3) In any instance in which the duties assigned to a classification within a department will require the performance of different work functions, which vary as to tasks performed, equipment operated, or in any other manner that affects the transferability of persons between the functions, and any one or more employees on the reemployment list were, before the layoff, either:

a. Selected for employment or promotion to the same or similar work functions on the basis of different formal education qualifications, professional licenses, or specialized technical training, or

b. Given specialized training, whether of a formal or on-the-job nature, while employed by the city that substantially meets the needs of the work functions to be performed in the department where reemployment of employees based strictly on their numerical position on the reemployment list would, in the opinion of the department director, require the retraining, licensing, or additional education of any one or more employees on the reemployment list to effectively staff those activities of the department that will be performed, then the department director may request that the commission reject one or more employees on the reemployment list. The commission may reject the employee(s) based on the director's opinion:

[1] The employee(s) who will be rejected does not have educational or training skills or licenses relevant to the work functions required for the department that are possessed by the employee(s) who the department requests be employed, or

[2] The retraining, licensing or additional education of the employee(s) who will be rejected would cause a deterioration of service delivery or service quality by the department.

(4) Restoration of sick leave accruals. An employee laid off under the Rule 11 provisions and placed on a reemployment list who returns to regular employment with the city within one year of the layoff effective date, shall be immediately reinstated to the Compensable sick leave or Modified sick leave plan which the employee participated in at the time of layoff. Upon reemployment, the employee shall have restored all unused sick leave hours accrued by the employee as of the

time of layoff under the Compensable sick leave plan, not to exceed 1,040 hours. Any unused sick leave hours accrued by the employee under the Compensable sick leave plan as of the time of layoff in excess of 1,040 hours and for which the employee has been compensated, shall not be restored. Upon reemployment, any sick leave hours that had been accrued by the employee under the Modified sick leave plan and for which the employee was compensated subsequent to the layoff, shall not be restored to the employee.

(5) Restoration of vacation accruals. An employee laid off under the Rule 11 provisions and placed on a reemployment list who returns to regular employment with the city within one year of the layoff effective date, shall be reinstated to the vacation accrual program the employee participated in at the time of the layoff as provided under section 14-170 of this Code. All vacation hours the employee had accrued in excess of the vacation cap applicable to the employee at the time of layoff, shall also be restored to the employee. Any vacation hours accrued by an employee at the time of layoff, for which the employee was compensated subsequent to the layoff, shall not be restored to the employee.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-143. Transfer or demotion in lieu of layoff.

An employee who is determined to be in line for layoff may be transferred, before the effective date of such layoff, to a position in the same classification in a different department or to a position in any other classification for which the employee is qualified in the same department, in lieu of being laid off, such transfer to be governed by conditions or procedures prescribed in these civil service rules and the availability of suitable positions that the department directors desire to fill. If a regular employee is in line for layoff from a position to which he was promoted within the preceding 12 months, he may be demoted to his previous classification, provided that there is a vacant position available in such classification that the department director desires to fill and further provided that the employee is willing to accept a pay reduction to the rate applicable for the classification to which the employee will be demoted.

Sec. 14-144. Filing of plan; appeal.

(a) At least seven calendar days prior to the date that the laid off employees are formally notified in writing of their layoff under this rule, the department director implementing such layoff shall file a written plan reflecting such layoff with the human resources director as secretary to the commission for review of compliance with non-discrimination obligations. Such plan shall set forth:

(1) Reason for the layoff and the source of funding which was reduced, if applicable;

(2) An organizational plan or diagram for the department affected by the layoff as it appeared prior to the layoff;

(3) The names and the current home addresses and telephone numbers and classifications of the employees who are to be laid off;

(4) For each classification and final layoff tier in the department in which employees are to be laid off along with the computation of each employees' (whether laid off or not) combined merit rating score and layoff tier pursuant to section 14-141 of this Code; and

(5) A copy of any exemption designations made pursuant to section 14-141 of this Code.

(b) Each layoff process accomplished under this rule that causes the layoff of any permanent employee shall be subject to review by the commission upon the request of any laid off permanent employee filed in writing with the director within ten calendar days after the date that the employee is given written notice of the layoff. If the tenth day falls on a Saturday, Sunday, or holiday, the time for filing the request for review shall be extended to the next working day. In this paragraph "permanent employee"

shall mean a full-time regular employee who is serving in a classified civil service position who has completed the one-year probationary period applicable to new and rehired civil service employees but shall not be construed to mean any employee excepted from civil service classification pursuant to Article Va, Section 2. Such request shall specify the reason that the laid off employee believes that the layoff process was not properly accomplished in accordance with this rule. Any request which lacks such specificity may be rejected by the commission. The appeal shall not raise prior acts of the department or delve into past incidents. It shall focus solely on the process of the layoff and whether it was done correctly and in accordance with this rule. The chairman, in consultation with the other members and the director, shall determine the type of review to be conducted, establish a date and determine the names of those persons who would be affected by the appeal if meritorious. The director shall cause a written notice of the review proceeding to be mailed to each person who may be designated by the commission, at the address furnished in the layoff plan, by certified U.S. mail, return receipt requested. Any of the persons so designated may intervene in the review by filing a written statement of position on the matter with the director by the day prior to its setting. To the extent practicable, only one review shall be conducted for each layoff process. The commission shall limit its inquiry to the issue of whether the layoff process was accomplished as to all employees involved, whether laid off not, in accordance with this rule, and it shall not at any time substitute its judgment or opinion for that of the department director as to any decision made within the legitimate discretion of the department director. The commission shall enter a written decision as soon as practicable after the conclusion of the review which shall be done by written documentation only (no testimony or oral argument) but not later than the twentieth day next following the date that the review is concluded. The commission may uphold the layoff as presented, uphold it in part and change it in part or take any other action necessary in order to conform the layoff to this rule. In accordance with its determination the commission may order the reinstatement of any laid off employee with back pay and the layoff of any other employee in lieu thereof. The filing of an appeal hereunder shall not defer the implementation of the layoff. However, the mayor may defer the implementation of the layoff process, in whole or in part, upon written recommendation of the director and the commission chairman that it be deferred due to an apparent violation of this rule. Layoffs reviewed and sustained by the commission shall be final and shall not be subject to any other administrative recourse, review, or appeal process.

(c) To the extent an employee association has been duly recognized by the city as the sole and exclusive bargaining agent for municipal employees under Chapter 146 of the Local Government Code, the city and bargaining agent shall, through meet and confer, arrive at an alternate expedited process by which an exemption afforded under that section 14-141.3 of this Code may be challenged by the employee association on the grounds that it does not meet the criteria under that section, and whereby a laid off employee with at least eight years of service may challenge a combined merit rating of 9 received by the employee on the grounds that such rating does not accurately represent the employee's performance for the covered period.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-145. Review by human resources department for nondiscrimination obligations.

The mayor shall cause any plan for the implementation of a layoff to be reviewed by the human resources department to ensure that no employee is denied any benefit of employment or granted any preference on the basis of race, color, creed, sex, religion, national origin, age, gender, handicap or political of fraternal affiliation in the implementation of the layoff. If the commission finds that a denial of benefits or preference was undertaken for any of the foregoing reasons, then it shall order the reinstatement of the wronged employee(s) with back pay and the layoff of other employee(s) in lieu thereof. In order to facilitate such review the department director shall file a document reflecting the

racial and sexual makeup of the department, including the employees to be laid off, with the documents provided to the commission.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

EXHIBIT A
CITY DEPARTMENTS

Administration and Regulatory Affairs

City Controller

City Council

City Secretary

Convention and Entertainment Facilities

Finance

Fire

Fleet Management

General Services

Housing and Community Development

Houston Airport System

Houston Health Department

Houston Information Technology Services

Houston Public Library System

Houston Public Works

Human Resources

Legal

Mayor's Office—Administration

Mayor's Office—Houston Emergency Center

Municipal Courts

Neighborhoods

Office of Business Opportunity

Parks and Recreation

Planning and Development

Police

Solid Waste Management
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015; Ord. No. 2018-11, § 12, 1-10-2018)

Secs. 14-146—14-149. Reserved.

DIVISION 12. RULE 12. RESIGNATIONS

Sec. 14-150. Written resignation to be requested with copy forwarded to director.

An employee in good standing who decides to leave city employment for any reason shall be asked by his supervisor or department director for a formal resignation in writing and a copy of same shall be forwarded to the director.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-151. Investigation; treatment of forced resignation as removal.

The commission is authorized to make such investigation of any resignation as it may think advisable. If it develops that a separation reported as a resignation did not result from the voluntary act of the employee, the commission shall notify the mayor and may treat the separation as a removal and the provisions of these rules relating to removals shall then apply.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-152. Forfeiture of rights; reemployment.

Any employee in the classified service who voluntarily resigns his position shall forfeit all rights which he might have had under civil service. He can be reemployed with the city only in the manner prescribed by the rules governing original appointment, except that the commission may decide, after considering the recommendation of the department director, that his name may be returned to the original list of eligibles, if still in existence, or to a new list of eligibles for that classification. However, such eligibility for reemployment shall not take precedence over the rights of those who were laid off for budgetary or force-reduction reasons and are on a reemployment register.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-153. Withdrawal of resignation.

An employee, upon his written request before the effective date thereof and with the written approval of the department director, may be allowed to withdraw his resignation.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-154. Reinstatement of retired employees.

No employee in the classified service who is retired on pension for service retirement shall be eligible for reappointment to regular employment that includes eligibility for the same pension. Employees retired for disability shall file with the commission a letter requesting reinstatement, together with a physician's statement stating that the pension employee is now physically fit to resume his duties in the position from which he was retired. The commission shall transmit the letter and physician's certificate to the municipal employees pension board for its consideration. The pension board, after due investigation and satisfactory physical examination of the pensioned employee, shall notify the commission that the pensioned employee is physically qualified to have his name placed on an eligibility register for his former position or a lower position in the department from which he was pensioned.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-155. Absence from work without notice considered job abandonment.

Any employee who is absent for three consecutive working days, without having notified his immediate superior, shall be considered to have abandoned his position from the employment of the city. The department director or designee shall take reasonable affirmative steps to ascertain the whereabouts of the employee before effectuating this rule.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-156. Candidacy for and holding of elective office.

(a) Any employee in the classified or unclassified service of the city, except appointed or elected officers, who is a candidate for any public elective office, whether the same be federal, state, county or city, either paid or nonpaid, shall immediately, in writing make such candidacy known to the director. It shall be the duty of the director to determine if the candidacy poses a conflict of interest with the employee's city employment. If any such conflict is found, the director shall provide the employee's department director with a full report of his findings together with any recommendation that he may have. If the department director concurs that there is a conflict of interest, he shall forthwith report such findings to the mayor together with any recommendation he may have. The mayor shall finally determine whether a conflict of interest with the employee's city job exists.

(b) In the event that the director determines that the employee's candidacy results in no conflict of interest, and the employee is elected to the office sought, the same procedures as outlined above where candidacy presents a conflict shall be followed to determine if the holding of the office presents a conflict of interest and if termination from employment is appropriate.

(c) Failure to make such candidacy known shall be a violation of this rule. Disciplinary action shall then be handled consistent with the City Charter and these rules.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-157—14-161. Reserved.

DIVISION 13. RULE 13. PERFORMANCE RATINGS

Sec. 14-162. System.

The commission will assume that all employees are performing their assigned duties in a satisfactory manner unless and until the department director notifies the commission to the contrary.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-163—14-167. Reserved.

DIVISION 14. RULE 14. LEAVES OF ABSENCE AND OUTSIDE EMPLOYMENT

Sec. 14-168. Attendance; workweek; overtime compensation, etc.

(a) *Definitions.* Unless otherwise indicated, the following words shall, for purposes of this section, have the following meanings:

Compensatory time or *compensatory time off.* Hours during which eligible employees are

not working but which are counted as hours worked during the applicable workweek for purposes of overtime compensation and for which the employee is compensated at the employee's regular rate of pay.

Eligible employee. All employees of the City of Houston other than exempt and noncovered employees as defined in this subsection and those employees classified pursuant to Chapter 143 of the Texas Local Government Code.

Exempt employees. All employees of the City of Houston who are exempted from the overtime compensation requirements of the Fair Labor Standards Act of 1938, as amended and the pertinent regulations and opinions interpreting that act and who have been designated as such by the human resources director and the commission.

Non-covered employees. All employees of the City of Houston who:

(1) Are excluded from coverage under the Fair Labor Standards Act of 1938, as amended, and the regulations and administrative opinions interpreting that act; and

(2) Are designated as such by the human resources director and the commission. In reaching the determinations required by this subsection or subsection (a)(3) above, the director and the commission shall be guided by the various criteria which are applied to determine whether overtime must be paid under the wage and hour provisions of the Fair Labor Standards Act of 1938, as amended.

Overtime. Time actually worked in excess of 40 hours in a workweek.

Regular rate of pay. Regular rate of pay shall include:

(1) Base pay;

(2) Longevity pay; and

(3) Shift differential pay.

(4) Assignment Pay

The term "regular rate of pay" shall not include compensation excluded under Section 7(e) of the Fair Labor Standards Act of 1938, as amended or the interpretative regulations and administrative or judicial opinions construing that section.

Workweek. The workweek shall consist of 40 hours of actual work within the consecutive 168 hour period beginning with the day shift on Saturday.

Time actually worked or *actual work.* The time the employee is actually on duty or on a council declared holiday, on authorized sick leave, vacation leave, compensatory time off, death in the family leave or any other authorized leave. However for clarification, if the holiday falls on an eligible employee's day off, and the employee does not work on the holiday, the employee will receive holiday compensation, but those hours will not count towards the overtime calculation for that week.

(b) All departments of the city shall maintain accurate and complete records of all employee attendance and time actually worked during each work week. Each department director or designee shall certify the correctness of submitted time and attendance records in a manner prescribed by the director.

(c) All eligible employees of the City of Houston shall be compensated for working overtime beyond their regularly scheduled workweek by the payment of either monetary compensation at the rate of 1½ times their regular rate of pay or compensatory time at the rate of 1½ hours for each overtime hour worked. The following shall apply to the payment of overtime compensation:

(1) The department director or designee of the department in which the employee works shall verify that the overtime is needed to complete a required city service or operation.

(2) The department director or designee may determine whether overtime shall be paid in cash or compensatory time. Where overtime is paid in cash it shall be paid in the pay period in which it is earned or

as soon thereafter as is possible, taking into consideration both the workweek and the payroll system used.

(3) Where the employee is granted compensatory time the following shall apply:

a. The number of hours of compensatory time that may be accumulated shall not exceed 240.

b. Accrued compensatory time must be used within 120 calendar days from the date accrued, provided that it does not unduly disrupt departmental operations.

c. Eligible employees shall be paid for accrued compensatory time not taken within 120 days from the date of accrual. Such payment shall be in cash at the greater of:

[1] The employee's average regular rate of pay over the employee's last three years of employment by the city preceding the date of payment; or

[2] The employee's regular rate of pay for the pay period immediately preceding the date of payment.

Such payment shall be made in the first full pay period following expiration of the 120-day period.

d. Each department shall maintain detailed records of the accumulation and use of compensatory time in a form prescribed by director.

e. Accumulated compensatory time shall be used in accordance with the first-in-first-out (FIFO) accounting principle.

f. Any compensatory time accrued prior to April 15, 1986 and not used shall be carried on the records of the department until such time as it is used by the employee. The employee shall not be entitled to monetary compensation for any compensatory time accrued prior to April 15, 1986.

(d) A department director or designee may, subject to the operational requirements and needs of the department, require an eligible employee to work on a council declared holiday.

(1) *Definitions.* In this subsection only, the following definitions will apply:

Actual hours worked. The time an employee is working on duty performing assigned work required and authorized by the department director for the holiday starting with the actual time the work begins on the holiday and ending with the actual time the employee completes the required work or stops for the day on the holiday.

Eligible employee. For purposes of holiday compensation, holiday premium pay, and short notice premium pay, all permanent, full-time employees of the City of Houston other than those employees who are: (i) subject to Chapter 143 of the Texas Local Government Code, (ii) classified as fire protection or law enforcement personnel or (iii) subject to other civil service systems and/or other meet and confer or collective bargaining agreements under Chapter 143 or 174 of the Texas Local Government Code.

Holiday. A date that the council has declared as a holiday on which city offices will be closed.

Holiday compensation. The payment an eligible employee is to receive for the observance of a holiday, to be paid at one times the regular rate of pay, for the appropriate number of hours as indicated below.

Holiday hours. The hours accrued in lieu of payment for holiday premium pay.

Holiday premium pay. The payment or accrual an eligible employee is to receive in addition to base pay and any other additional pay not provided by this subsection, for the appropriate number of actual hours worked on the holiday as indicated below. It is to be paid at one times the regular rate of pay times the appropriate number of actual hours worked on the

holiday as indicated below, or accrued at one times the appropriate number of actual hours worked on the holiday as indicated below.

Regular or *scheduled hours*. The time an employee is usually and regularly scheduled to work on a day on which a holiday falls. The term excludes scheduled overtime hours.

Short notice call to duty. The director or designee determines that extraordinary circumstances or a true emergency exists that requires an employee to report to work or return to work on a holiday. Extraordinary circumstances or a true emergency occurs when the employee is provided less than 24 hours notice in advance of the starting time of the shift or hours to be worked on the holiday. It does not apply to those, scheduled or not, who know 24 hours or more in advance that they are required to work on the holiday.

Short notice premium pay. The payment or accrual an eligible employee is to receive in addition to base pay and any other additional pay not provided by this subsection, for the appropriate number of actual hours worked on the holiday as a result of Short Notice Call to Duty, regardless of the employee's regular work schedule. It will be paid at one and one-half times the regular rate of pay times the appropriate number of actual hours worked on the holiday as indicated below, or accrued at one and one-half times the appropriate number of actual hours worked on the holiday as indicated below.

(2) If an eligible employee's regular or scheduled hours to work fall on a holiday, but the employee is not required to and does not work on the holiday, the employee will be paid only holiday compensation at one times the regular rate of pay for the number of hours the employee is regularly scheduled to work on that day. Hours may not be accrued in lieu of payment.

(3) Where an employee's regularly scheduled day off falls on a holiday, the employee may be given a day off in lieu of the holiday or the employee may receive straight-time payment equal in value to the employee's regularly scheduled workday at the employee's regular rate of pay. The department director shall determine whether the employee shall be paid for the holiday or be given a day off at a later date. For purposes of computing overtime, cash payment granted will not be considered payment for hours worked. If a day off in lieu of the holiday is granted, it must be granted and taken within 180 calendar days of the holiday or be paid.

(4) If an eligible employee's regular or scheduled hours to work fall on a holiday and the employee is required to work on the holiday, but the employee does not work on the holiday because the employee has an excused absence or authorized leave for the date of the holiday, the employee will be paid only holiday compensation at one times the regular rate of pay for the number of hours the employee is regularly scheduled to work on that day; and no leave balance will be debited for that day. Hours may not be accrued in lieu of payment.

(5) If an eligible employee's regular or scheduled hours to work fall on a holiday, and the employee is required to work on the holiday, but does not work, resulting in an unexcused absence, the employee will be paid only holiday compensation at one times the regular rate of pay for the number of hours the employee is regularly scheduled to work on that day. In addition, disciplinary action may be taken, the same as if the employee did not work on any scheduled non-holiday work day.

(6) The department director or designee has discretion to determine whether holiday premium pay or short notice premium pay will be paid or hours accrued under the circumstances set out in items (7)

and (8) below. The number of hours will be the same whether they are paid or accrued.

(7) If an eligible employee is required by the department director or designee to work, and does work, on a holiday (regardless of whether regularly scheduled, or called to report to work more than 24 hours in advance of the starting of the shift), the employee will be paid or will accrue hours for the hours actually worked on the holiday for which the employee had 24 hours or more notice ("full notice hours") as follows:

a. Except as provided in (b) below, if the employee works on a holiday, the employee will be paid at one times the regular rate of pay for all actual full notice hours worked on the holiday, and additionally will receive holiday premium pay for the number of actual full notice hours worked on the holiday (For illustration purposes only: Total = 1 × regular rate of pay × number of actual full notice hours worked on the holiday, plus either 1 × regular rate of pay × number of actual full notice hours worked on the holiday or accrual of 1 × number of actual full notice hours worked on the holiday).

b. If the employee works fewer than the number of hours in his regular or scheduled hours on the holiday, or if not regularly scheduled to work on the holiday, fewer than the number of hours in the most frequently occurring daily schedule in the employee's work schedule the employee will be paid at one times the regular rate of pay for all actual full notice hours worked on the holiday, and additionally will receive holiday premium pay for the number of actual full notice hours worked on the holiday, plus holiday compensation only for the remaining hours of the regular or scheduled hours not worked on the holiday or if not regularly scheduled to work on the holiday, the remaining hours of the most frequently occurring daily schedule in the employee's work schedule. (For illustration purposes only: Total = 1 × regular rate of pay × number of actual full notice hours worked on the holiday, plus either 1 × regular rate of pay × number of actual full notice hours worked on the holiday or accrual of 1 × number of actual full notice hours worked on the holiday, and also paid additionally 1 × regular rate of pay × number of remaining regular or scheduled hours not worked on the holiday, or if not regularly scheduled, the remaining hours in the most frequently occurring daily schedule in the employee's work schedule not worked on the holiday.)

(8) If an eligible employee was not previously scheduled to work on a holiday but is then required by the department director or designee to report to work or stay at work with less than 24 hours notice before the time required to report to work, the employee will be paid or will accrue hours for the hours actually worked on the holiday for which the employee had less than 24 hours notice ("short notice hours") as follows:

a. The employee will be paid at one times the regular rate of pay for all actual short notice hours worked on the holiday, and additionally will receive short notice premium pay for the number of actual short notice hours worked on the holiday. Such payment will be made without regard to the employee's usual shift or regular scheduled hours. (For illustration purposes only: Total = 1 × regular rate of pay × number of actual short notice hours worked on the holiday, plus either 1.5 × regular rate of pay × number of actual short

notice hours worked on the holiday or accrual of 1.5 × number of actual short notice hours worked on the holiday.)

b. An employee required or called in to work on short notice call to duty should work only the hours necessary to do the required work and should not be required to work an entire shift or be held over unless operationally necessary.

(9) Holiday hours accrued must be used as follows:

a. If accrued, the accrued holiday hours must be used on or before the 180th day after the date of the holiday for which they were accrued or they shall be paid in the first full pay period immediately following the expiration of the 180 days.

b. Eligible employees who accrue holiday hours must make a good faith effort to use the accrued hours before the 180 day period expires. These hours shall be used before other forms of leave except Family and Medical leave or injury on duty leave.

c. If an eligible employee has failed to submit a request for accrued holiday leave on or before the thirtieth day before the relevant period expires, the department may, upon notice to the employee, convert a request for vacation or sick leave to accrued holiday leave in order to avoid the conversion of the accrued holiday leave to pay. Departments also may direct employees with accrued holiday leave hours that are within 30 days of conversion to pay to take such leave before it expires and becomes payable.

d. All accrued holiday hours of police and firefighter trainees not used on or before the date the trainee is scheduled to become a sworn classified officer or firefighter will be paid at one times the regular rate of pay with an effective date on the final day prior to the date on which the trainee is scheduled to become a sworn classified officer or firefighter.

e. All remaining accrued holiday hours not used on or before the date an eligible employee separates from city employment are forfeited and will not be paid.

(10) Holiday compensation paid in lieu of base pay for a holiday observed is to be included in pay reported for pension purposes so as not to reduce base pay or service for pension purposes. Holiday premium pay is not to be included in pay or service reported for pension purposes.

(11) An eligible employee who is scheduled to work, but does not work and is not paid for the last scheduled workday (unless the day is an authorized furlough day) before the holiday or is scheduled to work but does not work and is not paid for the first scheduled workday (unless the day is an authorized furlough day) after the holiday will not be paid holiday compensation, holiday premium pay, short notice premium pay, or accrue holiday hours for the holiday.

(12) If a holiday falls on a day that an eligible employee is on approved work-related injury leave or on transitional duty, the holiday will be compensated under Executive Order 1-33 and other applicable policies, but not under this section.

(e) Any employee who is exempt and, as a result, not eligible for overtime pay as prescribed in this section, may, notwithstanding and other provisions of this section to the contrary, be eligible for compensatory time on a straight time (hour-for-hour) basis, upon the recommendation of his department director and the approval of the director, subject to the following criteria:

(1) The employee is in a classification assigned to pay grades 26 and below.

(2) The overtime work must be performed under unusual circumstances, which shall

mean additional hours not ordinarily required to perform the employee's regularly assigned tasks including, but not limited to, unscheduled work hours on a council declared holiday or work performed over a confined period of time due to a special project assignment or a condition of emergency.

(3) An employee may not receive more than 40 hours of compensatory time hereunder in any calendar year quarter.

(4) Compensatory time granted under this subsection and its use shall be reported to the human resources director in accordance with subsection (c)(3)d., above.

(5) Any compensatory time granted must be used within 120 calendar days following the payroll period in which it was earned, and the employee's department director shall afford the employee a reasonable opportunity to use the time within that period. Compensatory time that is not used within the 120-day period is forfeited.

(6) Compensatory time granted hereunder may not be converted to any other form of leave benefit or be paid as a cash benefit under any circumstances, including the death, resignation or termination of the employee.

(7) The director may, subject to the review and approval of the mayor, issue administrative guidelines to the department directors for the granting and reporting of such compensatory time.

(f) Under certain extraordinary circumstances, the mayor may extend, amend and augment the above requirements in the following manner:

(1) The mayor will declare that an extraordinary and/or catastrophic condition exists and will order the human resources director, in consultation with the appropriate department directors, to issue an event-specific procedure to provide compensatory time to certain exempt employees.

(2) The procedure will extend eligibility for compensatory time to exempt employees in specified pay grades required to address the extraordinary condition, but shall in no case specify pay grades beyond pay grade 29.

(3) Maximum hours accumulated in a calendar year quarter may be increased, but shall in no case exceed 60 hours.

(4) The time period for using the compensatory time accumulated under this special subsection may be increased, but shall in no case extend beyond 365 calendar days from the pay period in which the compensatory time was granted.

(g) Notwithstanding the provisions of subsection 14-168(e) of this section, full-time exempt employees may be eligible to be compensated in cash in the form of special assignment pay for time worked in excess of 40 hours in one week, subject to the following limiting criteria:

(1) The work performed must be at a city-operated health clinic facility that is open to the public and provides a service to the public;

(2) The work performed by the full-time, exempt employee must directly involve providing critical service to the public at such a facility;

(3) The hours worked must be in addition to the normal 40 hours of the work week; and

(4) The employees must be employed by the city in a licensed medical professional capacity.

Special assignment pay is subject to approval by director and requires conclusive justification by the director of the department requesting the special assignment pay. Authorized special assignment pay will be reviewed on an annual basis by the director in conjunction with the requesting department. When authorized, the amount of assignment pay will be established on an individual basis for each affected classification by the director but may not be payable at more than 1½ times the employee's regular hourly

rate of pay. Authorized assignment pay will be funded by the requesting department's personnel budget.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-169. Prenatal, parental, and infant wellness leave.

(a) *Definition.* For purposes of this section, eligible employee means a full-time employee who has been employed by the city as a full-time employee for at least six continuous months prior to the initial use of any leave described in this section as determined according to the rules promulgated by the director.

(b) *Prenatal wellness leave.* Eligible employees shall receive a maximum of 160 hours of paid prenatal leave for prenatal wellness healthcare appointments and other absences related to the pregnancy from the first date the leave is used in a 12-month period, regardless of whether more than one birth occurs within that 12-month period. Such leave shall be compensated at the employee's regular rate of pay plus any longevity or supplemental pays. Unused leave shall not be compensable and shall be forfeited (1) on the date the pregnancy ends; (2) upon the date the employee separates from employment with the city; or (3) upon the date the employee moves to a part-time or temporary position, whichever comes first.

(c) *Paid parental leave.* Eligible employees shall receive a maximum 320 hours of paid parental leave to bond and care for a child after the birth or placement of a child with the employee for adoption or foster care from the first date the leave is used in a 12-month period, regardless of whether more than one birth or placement of a child with the employee for adoption or foster care occurs within that 12-month period. Beginning September 1, 2023, eligible employees shall receive a maximum of 480 hours of paid parental leave per 12-month period described above. Any unused paid parental leave shall not be compensable and shall be forfeited (1) on the date after the child's first birthday; (2) on the date after one year since placement of a child with the employee for adoption or foster care; (3) when an employee separates from employment with the city; or (4) when the employee moves to a part-time or temporary position, whichever comes first.

(d) *Infant wellness leave.* Eligible employees shall receive a maximum of 40 hours of infant wellness leave to seek medical care for their infants during the infant's first year after birth. An eligible employee shall not receive more than the maximum allotted amount of infant wellness leave, regardless of whether more than one birth or placement of a child with the employee for adoption or foster care occurs within that 12-month period. Any unused infant wellness leave shall not be compensable and shall be forfeited (1) after the infant's first birthday; (2) upon the date the employee separates from employment with the city; or (3) upon the date the employee moves to a part-time or temporary position, whichever comes first.

(e) The director shall promulgate internal rules regulations regarding employee eligibility for and use of the leaves described in this section.

(f) The provisions of this section are inapplicable to police officers and fire fighters serving in positions that are classified under Chapter 143 of the Texas Local Government Code. Prenatal, parental, and infant wellness leave for employees so classified shall be as provided by applicable provisions of Chapter 34 of this Code.
(Ord. No. 2022-267, § 2, 4-13-2022, eff. 5-14-2022)

Sec. 14-170. Vacations.

(a) Full-time employees, excluding temporary employees in the classified and unclassified service shall be allowed vacation with pay in accordance with the employee's service time and the following schedule:

Years 1 through 4	80 hours
Year 5	120 hours
Years 6 and 7	128 hours
Years 8 and 9	136 hours
Years 10 and 11	144 hours
Year 12	152 hours
Year 13	160 hours
Year 14	168 hours

Year 15	176 hours
Year 16	184 hours
Year 17	192 hours
Year 18 and beyond	200 hours

Service time for purposes of the foregoing accrual rates shall be based upon the employee's total eligible length of service with the city, and for a rehired employee credit shall be afforded for prior service time. Accruals shall be allocated on a fractional basis per pay period, with applicable service time adjustments commencing on the first pay period following the employee's service time anniversary date. Accruals during the first six months of service shall be subject to subsection (c) below.

Accruals of vacation time shall be limited as follows:

(1) Except as provided in item (2) below, accruals of vacation time shall be limited to a maximum of 360 unused hours.

(2) Persons who are actually employed by the city on October 1, 2003, and who have a commencement date for vacation benefits purposes that is prior to January 1, 2000, shall be subject to an accrual limit of 720 unused hours for so long as they remain continuously employed by the city without a gap in service.

Once the applicable maximum limit is reached, accruals shall be suspended and shall not recommence until the employee reduces the balance by use of benefits.

(b) When vacation absence is requested and approved by the department director or designee, the absence during that period shall not be converted to any other type of authorized absence, such as absence with pay, without pay, or sick or injury leave, without approval of the commission.

(c) No employee will accumulate any vacation leave until he has been in the city's service for a period of six months. If he continues in the city's service beyond said six months' period, such employee will be allowed such vacation leave as would have accrued during such six months' period of time.

(d) Vacation leave may be accumulated to a total of 360 or 720 working hours, as applicable, subject to the following:

(1) Each employee of the city shall, upon termination of employment, receive in a lump sum payment, the full amount of his salary for his unused accrued vacation leave. If the termination results from the death of the employee, then the amount shall be payable to the beneficiaries of the employee.

(2) Each employee, upon leaving the employment of the city, shall be paid accumulated vacation in the amount to be determined by taking the average of the hourly base pay of the employee, plus the longevity rate he has attained and has received or been entitled to receive during his last 60 calendar days of employment; provided, however, that the employee has received, for at least another 60 calendar day period of time, a higher base pay than that which he was paid during his last 60 calendar days of employment, then the amount of such payment shall be

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determined by taking the average of the hourly base pay of the employee for the 60-day calendar period for which he was paid a greater hourly base pay, plus the longevity rate he has attained. The computation of the "hourly base rate of pay" shall be based upon the hourly equivalent for 80 hours of scheduled work (excluding overtime) per biweekly pay period, regardless of the actual work hours scheduled per day. For a rehired employee, all computations shall be based upon the employee's then current term of service.

(e) Employees who take an extended leave of absence without pay for personal reasons, consisting of 80 or more hours of absence, shall not accumulate vacation allowances during such absences.

(f) The provisions of this section are inapplicable to police officers and fire fighters serving in positions that are classified under Chapter 143 of the Texas Local Government Code. Vacation leave benefits for employees so classified shall be as provided by applicable provisions of Chapter 34 of this Code, the aforesaid Chapter 143, and any applicable agreements established between the city and employee bargaining groups under Chapter 143.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-171. Leave with pay.

(a) Attendance of employees at conventions, conferences and meetings of like nature is not to be considered a leave from duty but shall be noted on the payroll and such attendance must be authorized by the department director or designee.

(b) In the case of death in the immediate family, the department director may excuse an employee for as many as three calendar days. Immediate family shall include father, mother, sister, brother, husband, wife, child, grandparents, and other relatives if, in the opinion of the department director, such employee's presence due to his individual relationship and the circumstances of the case, would be required. Such absences and the reasons therefore must be reported in a manner prescribed by the director.

(c) Absence of employees due to religious holidays may be covered by the employee's accrued leave, except sick and wellness leave; however, such absences must be approved by the department director or designee.

(d) Employees who leave to serve as members of the uniformed military forces of the United States are to be given pay for whatever time they may have accumulated as vacation time prior to their leaving but shall not accumulate leaves with pay during absences which extend for periods of longer than one month unless otherwise provided by law.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-172. Leave without pay; voluntary leave without pay program.

(a) Department directors may grant, upon good reason, leaves of absence without pay for as many as 14 consecutive calendar days for full-time employees in the classified or unclassified service. All leaves in excess of 14 calendar days shall be reported promptly to the commission on forms prescribed by the commission. Commission approval of leaves without pay extending for more than 14 calendar days shall be required before such leaves shall be authorized. The commission, with the exception of those leaves known as military leave, shall not approve of more than 90 consecutive calendar days of leave at any one time, but the commission may subsequently approve extensions of a leave as long as a total of 180 calendar days of leave without pay in one 12-month period is not exceeded. Leaves without pay extending for more than 180 calendar days shall be authorized only after the request for the same is approved by the council. A leave for less than 180 days and more than 14 calendar days may be cancelled by the commission upon reasonable notice to the employee.

(b) Employees who begin a leave on Monday shall be paid for the preceding Saturday and Sunday. Employees who begin a leave on Tuesday or other weekday which immediately follows a council-approved holiday, or who return from a

leave on the day immediately following such a holiday, shall not be paid for that holiday. Saturdays, Sundays, off-days and holidays which come during a leave without pay shall be without pay, as also shall Saturdays, Sundays and off-days which terminate a leave.

(c) If an employee returns to work before his leave expires, the employee's department director shall notify promptly the human resources department in writing, and, furthermore, the employee's department director will notify the human resources department in writing if an employee fails to return on the working day next following the end of this leave. Failure to return within three days from a leave shall be taken as evidence of job abandonment.

(d) In time of war or emergency, an employee who serves in the Uniformed Military Forces of the United States shall be granted a military leave without pay but shall be eligible for reinstatement to his former position and all other entitlements consistent with the requirements of the Uniformed Services Employment and Reemployment Rights Act of 1994, as amended.

(e) When budgetary constraints require a reduction in expenditures, the mayor is authorized to implement, as needed, a program of voluntary and/or involuntary leaves of absence without pay (furloughs) whereby employees will not come to work and will not be paid on a regular work day. The mayor must designate and approve the parameters of such a program (the Furlough Plan) in advance. The Furlough Plan must specify: (1) whether furloughs will be voluntary, involuntary, or both, (2) the limited duration of time either or both shall be in effect, (3) whether furloughs will be citywide or department specific, (4) the date(s) either or both programs will be activated and implemented, (5) the civil service systems and respective employee groups, pay grades or classifications affected, (6) the minimum and maximum number of days or hours to be taken as furlough, and (7) the time period during which furloughs must be taken. Furloughs must affect all designated employee group members consistently (i.e. all employees in each affected group will be treated the same as all other members of that group) and (8) all Federal and State laws concerning labor standards and pay will be followed.

(f) At the direction of the mayor, the director will promulgate procedures for each type of furlough authorized consistent with sections 14-172(a) through 14-172(e) of this Code and the parameters specified in the Furlough Plan. During the course of a furlough, whether voluntary or involuntary, the mayor may alter or revise specific components of the program to respond to changes in the city's financial condition and the director will modify procedures accordingly. Any furlough taken will be appropriately noted on each affected employee's attendance records and will in no way be regarded as an unauthorized absence, a permanent reduction in pay, a reduction in force or contribute toward disciplinary action. A furlough shall not affect the employee's accrual of sick and vacation leave or eligibility for health insurance or other benefits, subject, however, to any relevant provisions in an applicable pension agreement.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-173. Outside employment of employees.

No employee shall contract for, or be engaged in, any work of any kind after regular working hours for compensation or non-monetary compensation, unless specifically authorized, in writing, to do so by his department director or designee. An employee shall submit a new outside work authorization form annually and/or for each new work assignment. The department director or designee shall not approve a request permitting a member of his department to hold a full-time or part-time position which would deprive another from regular employment by the city. The department director or designee will be required to maintain in his office a permanent record of all outside employment authorization forms for which approval has been sought. Such records shall be maintained for a minimum period of three years.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-174—14-181. Reserved.

DIVISION 15. RULE 15. DISCIPLINARY ACTIONS GENERALLY*

Sec. 14-182. Removal; demotion; suspension.

(a) A department director may terminate the employment of, demote, reduce in pay or temporarily suspend for any period of time any noncivil service employee in his department (or division), which action shall not be subject to appeal or review by the commission.

(b) A department director may, for just cause, indefinitely suspend the employment of, demote, or reduce in pay, any civil service employee in his department (or division) which action shall be subject to appeal and review by the commission pursuant to the authority vested in it by the Charter and these rules.

(c) A department director may temporarily suspend without pay any civil service employee in his/her department (or division) for any period of time not to exceed 90 days. An employee temporarily suspended for up to 15 calendar days, shall not have a right of appeal before the commission, but civil service employees may request a hearing which may be granted at the discretion of the commission. An employee temporarily suspended for 16 to 90 calendar days shall have a right of appeal before the commission pursuant to the authority vested in it by the Charter and these rules.

(d) No indefinite suspension, demotion or reduction in pay of any civil service employee shall become effective until the employee has been given an opportunity by his/her department director to explain the conditions or actions which prompted consideration of one or more of these disciplinary actions. The department director shall give to the employee written notice of the indefinite suspension, demotion or reduction in pay, the effective date thereof, and the reasons or grounds for such action with a copy of the notice to the commission. The disciplinary action shall then become effective immediately, but the employee shall retain the right of appeal to the commission as prescribed in these rules. After hearing the appeal, the commission shall either sustain the action, modify the penalty, or reject the action of the department director and if applicable, reinstate the employee to the employment roster. The decision of the commission shall be final.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-183. Violation of certain standards.

(a) Any civil service employee, may be disciplined under the provisions of subsections 14-182(a) and (b) for violating any of the standards of conduct listed below. Any noncivil service employee, may be disciplined at the discretion of the employee's department director and the mayor for violating any of the following standards of conduct:

An employee shall not:

(1) Accept or solicit any money, property, service or other thing of value by way of gift, favor, loan or otherwise which the employee knows or should know is being offered or given with the intent to influence said employee in the discharge of official duties.

(2) Accept or solicit any money, property, service or other thing of value from a private person or group of people in return for having exercised, performed or failed to perform official duties. Excepted from this prohibition are regularly scheduled wages and other employee benefits paid or given to an employee of a private person or company while such employee is working for the city as a loaned executive.

(3) Engage in any business or professional activity which might tend to impair independence of judgment in the discharge of official duties.

(4) Engage in any outside employment without first securing approval, in writing, from the department director.

(5) Invest or hold any investment or interest directly or indirectly in any financial, business, commercial or other transaction, which creates or might reasonably

*__Editor's note—__See the Memorandum History Table.

tend to create a conflict between the public trust held as an employee of the city and the employee's private interests.

(6) Disclose confidential information concerning the property, operations, policies or affairs of the city, nor use such confidential information to advance the personal interests, financial or otherwise, of said employee or others.

(7) Use one's official position or the city's facilities, equipment or supplies, nor use or attempt to use one's official position to secure special advantage, privilege or exemption for the employee or others.

(8) Negotiate for or accept future employment with any person, firm, association or corporation which has a substantial interest in any proposed ordinance or decision within such person's area of responsibility and upon which the employee may or must act or make a recommendation.

(9) Represent, directly or indirectly, any private person, group or interest before any agency of the city, except in matters of purely civic or public concern and when doing so without compensation or remuneration.

(10) Represent directly or indirectly, any private person, group or interest in any action or proceeding against the interests of the city, or in any litigation in which the city or any agency thereof is a party. However, this provision shall not prohibit representation by a group, firm or organization the employee is associated with if such employee does not participate in the action proceeding or litigation in any manner.

(11) Represent, directly or indirectly, any private person, group or interest in any action or proceeding in the municipal courts of the city which was instituted by a city officer or employee in the course of official duties.

(12) Violate any provision or set of provisions of a departmental code of ethical conduct promulgated pursuant to subsection (e) below for the city department of which the employee is a member.

(b) If an employee has a personal interest, direct or indirect, financial or otherwise, in any decision pending before such employee or a body or group of which the employee is a member, the employee shall not participate in the consideration of the matter. If such employee is in attendance at such meeting, he or she shall publicly disclose a conflict of interest to the body or group prior to any determination of the matter.

(c) Certain classifications of employee may be required by a department director to report all gifts received from any person, business entity or organization. An employee in a classification so designated by a department director shall report all gifts, including the estimated amount of the gift and the source, on April 30 of each year, for the preceding calendar year. The department director shall file with the city secretary a list of the job classifications required to make this report. Excluded from the requirement are gifts received from relatives within the second degree of consanguinity or affinity, and food and beverages of trivial benefit.

(d) Department directors may require certain classifications of employees to report a list of all real property held legally or beneficially by them. An employee in a classification so designated by a department director shall report all such real property held legally or beneficially by him on April 30 of each year for the preceding calendar year. The department director shall file with the city secretary a list of the job classifications required to make this report.

(e) Department directors shall, in consonance with the foregoing standards, establish by administrative rules or regulations additional requirements for the ethical conduct of salaried municipal employees, or classifications of such employees, within their respective departments. Such administrative rules or regulations shall be approved by the mayor and placed on file with the city secretary and the applicable department director.

(f) The term "salaried municipal employee," as used in this section, shall include civil service employees and noncivil service employees.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015; Memorandum of 1-5-2017)

Sec. 14-184. Carrying of dangerous weapons while on duty or on city property.

(a) All employees, except those who are required to do so in the performance of their official duties, are prohibited from possessing dangerous weapons while on duty, in a city vehicle, or while on city property. This prohibition does not extend to off-duty possession by a handgun license holder in a public area as authorized by state law. Possession includes all enumerated weapons within the employee's actual care, custody, control, or management, except for a firearm or ammunition transported or stored in a locked, privately owned motor vehicle in accordance with state law. Those weapons which are specifically prohibited include:

(1) Any instrument that is specially designed, made, or adapted for the purpose of inflicting serious bodily injury by striking a person with the instrument, including but not limited to:

a. Blackjack.

b. Nightstick.

c. Mace.

d. Tomahawk.

e. Other instruments which are readily capable of but not specifically designed to cause serious bodily injury.

(2) Any explosive or incendiary bomb, grenade, rocket, or mine that is designed, made, or adapted for the purpose of inflicting serious bodily injury, death, or substantial property damage, or for the principal purpose of causing such a loud report as to cause undue public alarm or terror, and includes a device designed, made, or adapted for delivery or shooting an explosive weapon.

(3) Any device designed, made or adapted to expel a projectile through a barrel by using the energy generated by an exploding or burning substance, by compressed air or gases or by any device readily convertible to that use, including but not limited to:

a. Rifles.

b. Shotguns.

c. Handguns.

d. Machine gun.

e. Short-barrel firearm.

f. Hunting guns.

g. Antique guns.

h. Zip gun.

(4) Any bladed hand instrument that is capable of inflicting serious bodily injury or death by cutting or stabbing a person with the instrument, including but not limited to:

a. Any jackknife with a blade over three inches.

b. Throw-blade knife or hand instrument designed to cut or stab another by being thrown.

c. Dagger, including dirk, stiletto, poniard, etc.

d. Bowie knife.

e. Sword.

f. Spear.

g. Switchblade knife.

(5) Any conducted-energy device that is used or intended to be used as either an offensive or defensive weapon, which is capable of temporarily immobilizing a person by inflicting an electrical charge, including but not limited to:

a. Stun gun.

b. Taser.

(6) Any chemical dispensing device that is designed, made, or adapted for the purpose

of dispensing a substance capable of causing an adverse psychological or physiological effect on a human being.

(7) Any device that reasonably appears to be an explosive or incendiary device or by its design causes alarm or reaction of any type by an official of a public safety agency or a volunteer agency organized to deal with emergencies.

(8) Any bladed hand instrument that consists of finger rings or guards made of a hard substance and that is designed, made, or adapted for the purpose of inflicting serious bodily injury or death by striking a person with a fist enclosed in the knuckles.

(b) Violation of this rule will subject the employee to disciplinary action up to and including indefinite suspension.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-185—14-187. Reserved.

DIVISION 16. RULE 16. APPEALS, HEARINGS AND INVESTIGATIONS

Sec. 14-188. Right of appeal; correction of improper disciplinary action.

(a) Any regularemployee in the classified service who believes he has been unjustly indefinitely suspended, retired, demoted, transferred, or reduced in any pay may file an appeal with the commission in the same manner as prescribed in section 3 of Article Va pertaining to an appeal and hearing.

(b) No disciplinary action shall be taken by the commission, the mayor, a supervisor, or department director against an employee because of membership in any political, religious, or fraternal labor organizations. If the commission finds a disciplinary action has been taken for these reasons, the employee shall be reinstated immediately to the employment roster and may be reimbursed for any loss of pay occasioned by such action.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-189. Investigations generally.

If, at any time, there is brought to the attention of the commission a condition whereby it appears that an injustice has been done an employee in the classified service with respect to his position or duties in the service of the city, the commission is vested with authority to investigate the facts, and if it finds the employee is entitled to relief, it shall make such appropriate order, after review, as will grant the relief to which the employee is entitled, and its finding thereon shall be final; provided, however, that in any instance herein mentioned the commission shall first direct, in writing, the attention of the mayor to the purported injustice and take no action thereon for a period of ten days following delivery of such notice, and only then in the event it finds that the injustice as to such employee has not been corrected by the mayor.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-190. Right to counsel at hearings.

Any person appearing at a hearing as a party to the cause being heard shall be entitled to legal counsel, but this fact shall not be construed to mean that such representation is necessary.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-191. Power to administer oaths and require attendance of witnesses and production of records.

In the course of any hearing, investigation, or tests of fitness conducted under the provisions of these rules and regulations, the commission and any other person authorized by it as its representative for such purposes shall have the power to administer oaths, to subpoena, and to require the attendance of witnesses within the legal limits and the production by them of books and papers pertinent to any matter of inquiry, and to examine such witnesses under oath, in relation to any matters properly involved in such proceedings.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-192. Refusal to testify.

If any officer or employee shall willfully refuse on any grounds to testify or to answer any

question relative to the matter being heard by the commission, such refusal shall constitute sufficient grounds for either suspension or termination, and the commission may recommend to the mayor the suspension or discharge if, in its judgment, such disciplinary measure is advisable. Any employee indefinitely suspended for refusing to testify before the commission shall have no right of appeal.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-193. Investigations on commission's own initiative.

The commission may, upon its own initiative, make such inquiries and investigations as it may deem to be warranted regarding the administration and effect of the provisions of Article Va and of ordinances and rules adopted in accordance therewith and to make such recommendations to the mayor, or take such other action as in its judgment is warranted in the premises.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-194. Hearings to conform to charter.

All hearings shall be held in conformity with Charter provisions covering civil service hearings.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-195—14-199. Reserved.

DIVISION 17. RULE 17. RECORDS, REPORTS, ETC.

Sec. 14-200. Official roster.

The director shall maintain a complete official record of employees, showing for each employee his name, address, classification, rate of pay, changes in any of these, and such other information as he may deem desirable. The form and manner in which such information shall be maintained shall be determined by the director.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-201. Report of change in employee's status; personnel actions.

Every temporary or permanent change in the status of employees in the classified service shall be reported to the director at such time and in such form, together with such supporting or pertinent information, as the director may prescribe.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-202. Personnel files generally.

There will be only one official personnel file maintained on each employee of the city and that file shall be maintained in the custody of the director. Any action designated by the director pertaining to any employee shall be forwarded to the director for proper filing.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-203. Review of employee files.

(a) Any department director or his designated supervisor of the city may, upon request, review any file of any employee in his respective department, but shall not be allowed to review the official personnel file of an employee of another department, unless consideration is being given to the transfer of that employee from one department to another department. All official personnel files shall be reviewed under the supervision of an employee of the human resources department, and no files shall be allowed to be taken from the human resources department. Information from any file of any employee of the city may be released to persons not employees of the city only at the discretion and under the supervision of the director.

(b) The names of special investigators or special employees who may be temporarily employed by the city and whose usefulness would be impaired were their identity disclosed, and the confidential reports on any applicant, eligible, or employee are to be held as confidential data and are to be guarded accordingly.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-204. Preservation of records.

Official employee records, minutes of the commission meetings, and lists of eligibles shall be

kept for a period of three years, or longer as may be required by the City's official retention policy. Employment related records of employees shall be made a part of the personnel files of individuals who become employees of the city; otherwise, they shall be kept by the commission for a period of three years after the establishment of the list of eligibles. Roster cards or records, payroll records, minutes of the commission meetings, lists of eligibles, and records pertaining to any examination, including correspondence, applications, and examination papers of persons who scored non-passing grades shall not be removed from the possession of the commission.

Employment related records, minutes of the commission meetings, and eligible records shall be kept as required by the city's retention policy. All such records pertaining to any correspondence, applications, and papers with passing grades, shall be preserved for at least three years after the establishment of the list of eligibles, after which period of time they may be destroyed if deemed by the commission to be of no further value. Such papers shall be made a part of the official files of individuals who become employees of the city in the interim. The papers and records of those who do not make a passing grade may be destroyed after three years, computing from the date the list of eligibles is created, but in no event shall these cards, papers, or records be removed meanwhile from the possession of the human resources department.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-205—14-209. Reserved.

DIVISION 18. RULE 18. PAYROLL PROCEDURE

Sec. 14-210. Automated payroll system.

(a) The administration and regulatory affairs department, central payroll division, has authority for maintaining the automated payroll system and for maintaining the integrity of data therein. However, no payroll transaction that is made necessary by the hiring, discharge, or change in the rate of pay for an employee, when such transaction is used to generate payroll warrants for employees of the city shall be entered into the payroll data base unless and until the transaction has been audited by the controller and delivered to the administration and regulatory affairs department, central payroll division, signifying that such audit has been conducted.

(b) The administration and regulatory affairs department, central payroll division, has authority for preparing all necessary payroll system reports, including payroll warrants. However, the city controller and the director of administration and regulatory affairs shall not issue any warrant or order in payment of any salary or compensation to any person for filing or holding a classified position unless either the payroll, warrant, or check for that work bears the certification of the director, that the persons named thereon are correctly named and titled, at the legal rate of pay, and were appointed or employed in accordance with the provisions of these rules and regulations. Subsequent to such certification and upon receipt of the payroll warrants, the city controller has exclusive authority for verifying, signing, and distributing the warrants.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-211. Notice to the controller.

The director shall be responsible for making available to the controller all forms, reports, and certificates affecting the status and rates and amounts of salary and compensation of all employees.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-212—14-216. Reserved.

DIVISION 19. RULE 19. VALIDITY OF RULES

Sec. 14-217. Effect of invalidity of part.

If any part of these rules and regulations is held by competent authority to be invalid, each and all of the other part or parts thereof not so held shall continue in full force and effect as though such invalid part had not been included herein.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-218, 219. Reserved.

ARTICLE III. SICK LEAVE AND INJURY

DIVISION 1. GENERALLY

Sec. 14-220. Definitions.

As used in this article, the following words and phrases shall have the meanings ascribed to them in this section unless the context of their usage clearly indicates another meaning:

Activestatus means that the employee is following an approved schedule, performing all the regular duties of his employment at a regularly established business location of the city or another location to which he may be required to travel to perform the regular duties of his employment. An employee shall be deemed to remain on active status for compensable sick leave plan or modified sick leave plan benefits purposes on each day of leave compensated as a city benefit, such as each day of a regular paid vacation or holiday, on authorized paid sick or injury leave, on a scheduled nonworking off day (exempt employees only), on relief of duty with pay, or on an unpaid absence of 80 consecutive work hours or less. An employee on an unpaid absence in excess of 80 consecutive work hours for any reason will not be considered to be on active status for sick leave benefits purposes under either plan while on such unpaid absence. Employees serving temporary disciplinary suspensions of 15 calendar days or less shall be considered to be on active status, but employees serving longer term temporary disciplinary suspensions shall not be considered to be on active status for sick leave benefits purposes under either plan.

Base pay means the employee's current approved salary rate of pay stated in hourly, biweekly or other appropriate rate of pay, excluding overtime, assignment pay, higher classification pay, shift differential, allowances, incentives or any additional compensation based upon his normal working hours.

Benefit or *benefits* means compensation in the form of continuation of salary.

Benefit year means a plan year commencing on September 1 of each calendar year and ending on August 31 of the next calendar year.

Break in service means any termination of employment of any duration for any reason. The term "break in service" shall not include an authorized leave of absence (paid or unpaid) or a temporary disciplinary suspension of any duration.

Compensable sick leave means a benefit payable to an employee only when the employee has available sick leave hours and has been authorized sick leave by the department director because he cannot discharge his regular duties due to a bona fide illness, disease or off duty injury of the employee, or in order to care for a family member due to the family member's bona fide illness, disease or injury, or because the employee requires time off to consult with or receive testing or treatment from a health care provider for the diagnosis or treatment of his bona fide illness, disease or off duty injury.

Compensable sick leave plan means the program of benefits created in division 2 of this article.

Department director means the director of the department to which an employee is assigned or the department director's designee.

Director means the human resources director of the city.

Employee means any permanent or temporary full-time employee of the city in the classified or unclassified service, including firefighters and police officers who are classified under chapter 143 of the Texas Local Government Code.

Family member means the spouse, child or step-child, or parent or step-parent of the employee.

Frozen days means unused accumulated benefit days that an employee who was employed prior to September 1, 1985, had accrued as of August 31, 1985, through the

city's former sick leave plan as provided under former section 14-169 of the City Code which was repealed effective September 1, 1985.

Full-time means regularly assigned to work not less than 40 hours per week.

Modified sick leave plan means the program of benefits created in division 3 of this article.

Part-time means regularly assigned to work less than 40 hours per week.

Sick leave means time off authorized at the discretion of an employee's department director for an employee's own bona fide illness, disease, or off duty injury, or because the employee requires time off to consult with or receive testing or treatment from a health care provider for the diagnosis or treatment of the bona fide illness, disease or off duty injury. Sick leave may also mean time off authorized at the discretion of an employee's department director in order to care for a family member due to the family member's bona fide illness, disease, or injury. Sick leave may be authorized as uncompensated if the employee has no compensable sick leave plan or modified sick leave plan hours available.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-221. Application.

The provisions of this division shall apply to employees who are covered by either the compensable sick leave plan or the modified sick leave plan. No employee may be covered by both plans. Sick leave benefits will not be provided for persons who are employed by the city on a part-time basis or to emergency employees.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-222. Outside employment.

No employee shall engage in any outside employment on any day for which the employee has requested or received compensable or uncompensated sick leave, whether or not related to family medical leave, or workers' compensation benefits with or without salary continuation. Approval of outside employment pursuant to applicable civil service regulations and department policies shall not be construed as authorizing an exception to the foregoing prohibition. A violation of this section shall be grounds for appropriate disciplinary action, including indefinite suspension or termination.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-223. Off days, holidays.

Benefits may only be utilized and will only be charged for days and hours upon which an employee is regularly scheduled to work. Benefits will not be provided for any extra work days or work hours to which an employee may have been assigned to work on an overtime basis.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-224. Benefit amount.

When sick leave is utilized by an active employee, compensable sick leave plan or modified sick leave plan, benefits will be computed for payment purposes on the basis of the employee's then current base pay plus any permanent pay components, such as longevity pay, assignment pay or bilingual pay to which the employee is regularly entitled, regardless of whether charged to available sick leave time allowances or charged to frozen days (in the case of employees whose service commenced prior to September 1, 1985, who may have frozen days available).

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-225. Coverage, transitional provisions.

(a) The modified sick leave plan is a closed enrollment plan that is available only to those employees who have been employed by the city since on or before August 31, 1985, without a break in service and who did not elect to convert to the city's former income protection plan as authorized by law in 1985. Other employees eligible for sick leave benefits, including members of the former income protection plan and persons hired or rehired following a break in service on or after September 1, 1985, shall be members of the compensable sick leave plan.

(b) Employees who are rehired following a break in service shall be members of the compensable sick leave plan and shall be treated in all respects as new employees thereunder, unless

entitled to restoration of modified sick leave plan membership or restoration of other benefits following a layoff or a military leave as provided by law or by civil service regulations.

(c) The modified sick leave plan shall remain unaffected by the creation of the compensable sick leave plan. An employee who is a member of the modified sick leave plan shall continue to accrue benefits as set forth in division 3 of this article for so long as he remains continuously employed by the city without a break in service. The value of frozen days for a modified sick leave plan member determined as of August 31, 1985, under former section 14-225(a) of the City of Houston Code of Ordinances shall apply to his payment upon termination pursuant to section 14-233 or 14-244 of this Code, as applicable; however, frozen days shall be payable as provided in section 14-224 of this Code when utilized by an active employee for authorized compensable sick leave.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-226. Injury in course and scope of employment, workers' compensation benefits and salary continuation.

(a) In a circumstance in which an employee is injured in the course and scope of performing his duties on behalf of the city, the employee's department director may grant the injured employee an injury leave of absence not to exceed 12 months' duration. An employee who qualifies for workers' compensation income benefits under state law shall be paid in accordance with applicable state law for supplemental income or other benefits for which the injured employee may be eligible. In addition to statutory workers' compensation benefits, an injured employee may be paid supplemental salary continuation in an amount not to exceed in the aggregate the maximum of his base salary plus any permanent pay components, such as longevity pay, assignment pay or bilingual pay, to which the employee is regularly entitled. Salary continuation may only be paid in accordance with rules and terms promulgated by the mayor as required elsewhere herein.

(b) Salary continuation benefits provided under this section shall not be charged to the available compensable sick leave plan time allowances or to the modified sick leave plan balance otherwise authorized in these provisions for compensable sick leave.

(c) If, at the end of the first 12-month period of injury leave, the employee is still not able to return to full-time employment but medical prognosis indicates that the employee will be able to resume full-time employment following an additional period of treatment and/or convalescence, the city council may, upon the request of the department director with the concurrence of the director and the mayor, grant additional leaves of absence at full or reduced pay for a period not to exceed an additional 12 months, to be granted in increments of three months.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-227. Sick leave regulations.

The mayor may, upon recommendation of the director, establish regulations for the accounting of sick leave use and benefits under either plan, for the verification of bona fide illness, disease, off duty injury or medical or other treatment by a health care provider, and for discipline of employees who have excessive absences. Any such regulations shall be consistent with this article and other applicable laws and shall be written so as to ensure that benefits and their use are properly accounted for and that sick leave benefits are limited to eligible uses. The director shall submit accounting regulations to the city controller for approval prior to recommending them to the mayor. With the exception of any provisions that relate to employees who work shifts of unusual duration, the foregoing regulations shall provide, as a qualification for sick leave hereunder, that each absence for an eligible reason after 64 hours within a benefit year, regardless of the duration of the absence, whether taken cumulatively or in a single event, must be verified by an attending health care provider's statement on a form promulgated by the director. No assessment by telephone will be accepted as a verification required herein.

Verification may be required prior to the use of 64 hours of sick leave in any instance of potential abuse of sick leave.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-228. Coordination.

All payments for sick leave benefits under this article (whether paid pursuant to the modified sick leave plan, the compensable sick leave plan or as salary continuation under section 14-226 of this Code) shall be subject to coordination with:

(1) Payments to which an employee is entitled by virtue of any policy or self-funded plan of disability insurance benefits provided in whole or in part at the expense of the city; and

(2) Payments to which an employee is entitled by virtue of any state or federally provided or mandated benefit program including, but not limited to, state workers' compensation benefits and federal social security benefits.

The coordination shall extend to payments made thereunder for the purpose of compensating an employee for lost wages or lost capacity to earn wages, but it shall not extend to payments expressly made thereunder for the reimbursement of actual medical expenses incurred by an employee. In any instance where such other payments as described in section 14-228(2) are available, then the sick leave compensation benefits under this Article shall be reduced by an amount equal to the other benefits that are available to the employee, so that the employee shall not receive more than an amount equal to his base salary plus any other permanent pay components.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-229. Removal because of medical impairment.

(a) This section provides the exclusive procedure for determining whether an employee, whether full-time or part-time, who is not subject to chapter 143 of the Local Government Code is sufficiently physically or mentally fit to continue the employee's duties or assignment.

(b) As used in this section, the terms "reasonable accommodation" and "undue hardship" shall have the same meaning as those terms appearing in the Americans with Disability Act of 1990, as amended, (42 U.S.C. section 1210 et seq.) enacted by Congress on July 29, 1990 and in regulations issued under that Act by the United States Equal Employment Opportunity Commission.

(c) The department director shall be responsible for restructuring the employee's duties and responsibilities as a reasonable accommodation so long as the employee can perform the essential job functions of his or her position. Whenever a question exists whether the employee is sufficiently physically or mentally fit to continue the employee's essential job functions, whether or not the employee is on leave of absence, upon receiving a written order by the department director, the employee shall submit to the department a report from the employee's personal physician, psychiatrist, or psychologist, as appropriate. If the report by the employee's personal physician, psychiatrist, or psychologist establishes that the employee is unable to perform the essential job functions of the employee's position, the department director shall attempt to make a reasonable accommodation. If reasonable accommodation cannot be made within the department, then the department director shall notify the director, who shall institute a city-wide search for available positions. The director shall make a report and recommendation to the civil service commission, and the commission shall hold a hearing to determine whether a reasonable accommodation for the employee's disability can be made either in the employee's current position or by transfer to another available position. If the commission determines that a reasonable accommodation can be made, it shall enter an order of accommodation and/or if applicable, reclassifying the employee's position or transferring the employee to another available position, in consultation with the department director or designee. The commission shall not transfer the employee to another department if there is a vacancy in the employee's department that the employee is qualified to perform with or without reasonable accommodation. If

the commission determines that no reasonable accommodation can be made and that the employee will not be able to resume his or her essential job functions with or without a reasonable accommodation within a reasonable period of time, the commission shall enter an order removing the employee from the city's employment roster; however, such order shall not prejudice the employee's ability to seek reappointment with the city in the future, should there be a change in the employee's medical condition.

(d) If the commission, the department director, or the employee questions the report, the commission may appoint a physician, psychiatrist, or psychologist, as appropriate, to examine the employee and to submit a report to the commission, the department director, and the employee.

(e) If the report of the appointed physician, psychiatrist, or psychologist, as appropriate, disagrees with the report of the personal physician, psychiatrist, or psychologist, as appropriate, the commission may appoint an independent three-member board composed of a physician, a psychiatrist, and a psychologist or any combination, as appropriate, to examine the employee. The board shall submit to the commission a written report of its finding regarding whether employee is sufficiently physically or mentally fit to continue the person's essential job function. The commission, at its next regularly scheduled meeting after the date it receives the report of the board, shall determine whether the employee is sufficiently physically or mentally fit to continue the assignment. The commission shall hold a hearing to make the determination of fitness and reasonable accommodation as is provided in subsection (b) above and enter an order accordingly.

(f) The employee shall be responsible for paying the cost of the services of the employee's personal physician, psychiatrist, or psychologist, as appropriate. The city shall pay all other costs. (Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

DIVISION 2. COMPENSABLE SICK LEAVE PLAN

Sec. 14-230. Application.

The compensation benefits provided in this division shall constitute the compensable sick leave plan and shall be available only to those employees who are entitled to coverage hereunder. (Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-231. Compensable sick leave.

(a) The compensable sick leave plan is created effective September 1, 1996. A member of the city's former income protection plan, which is replaced by the compensable sick leave plan, may be entitled to an initial sick leave time allowance hereunder as provided by section 6 of Ordinance No. 96-1088 and regulations promulgated thereunder. The initial sick leave time allowance, if any, shall be in addition to the biweekly sick leave time allowances received under subsection (b).

(b) A compensable sick leave plan member who is actively at work shall receive a biweekly sick leave time allowance of 2.5 hours per biweekly payroll period up to a maximum of 65 hours per benefit year.

(c) Sick leave may not be compensated unless sufficient unused sick leave time allowances are currently available to the employee at the time of the absence. If sick leave time allowances are not available, any authorized sick leave shall be uncompensated unless the employee elects to use other available benefits, such as vacation, to supplement any deficiency in sick leave time allowances.

(d) Except for classified fire fighters of the Houston Fire Department, who are addressed in subsection (f) of this section, in his first full biweekly payroll period that commences in October, each member of the compensable sick leave plan who has used fewer sick leave time allowance hours than he received during the previous benefit year shall be given additional sick leave time allowance hours in an amount equal to the difference between the number of hours received and the number of hours used. However, no additional sick leave time allowance hours shall be given that would cause the employee's available sick leave time allowance hours to exceed 1,040 hours. Once an employee has 1,040 hours of unused sick leave time allowances, the annualized addition for unused hours shall not be provided. The annual addition

authorized in this subsection for unused sick leave time allowance hours shall not apply to initial sick leave time allowances provided under subsection (a).

(e) Except for classified fire fighters of the Houston Fire Department, who are addressed in subsection (g) of this section, upon discharge of employment, all unused sick leave time allowances in excess of 1,040 hours shall be payable to the employee or to the employee's beneficiaries, as applicable, at the employee's rate of base pay, plus longevity, at the time of discharge. The first 1,040 hours of unused sick leave time allowances shall have no value, except when used for compensable sick leave benefits and may not be converted to any other use or benefit, nor shall they be payable upon discharge or death of the employee under any circumstances.

(f) For all classified fire fighters who are compensable sick leave plan members: No later than a member's first full biweekly payroll period that commences in October, each member of the compensable sick leave plan who has used fewer sick leave time allowance hours than the member received during the previous benefit year shall be given additional sick leave time allowance hours in an amount equal to the difference between the numbers of hours received and the number of hours used. However, no additional sick leave allowance hours shall be given that would cause the member's available sick leave time allowance hours to exceed 520. Once a member has 520 hours of unused sick leave time allowance, the annualized addition for unused hours shall not be provided.

(g) For all classified fire fighters who are compensable sick leave plan members: Upon discharge of employment, all unused sick leave time allowances in excess of 520 hours shall be payable to the member or to the member's beneficiaries, as applicable at the member's rate of base pay, plus longevity, at the time of separation. The first 520 hours of unused sick leave time allowances shall have no value, except when used for compensable sick leave benefits and may not be converted to any other use or benefit, nor shall they be payable upon separation or death of the employee under any circumstances.

(h) For all classified fire fighters who are compensable sick leave plan members: Sick Reserve hours, as defined and created by the 2009 Collective Bargaining Agreement between the City of Houston and the Houston Professional Fire Fighters Association, also known as the International Association of Fire Fighters, AFL-CIO-CLC, Local Union 341, shall be available for use only when a member's sick leave is exhausted and shall not be payable upon discharge nor count towards the 520 compensable sick leave plan threshold. For the purposes of leave utilization, sick shall be utilized before Sick Reserve.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015; Ord. No. 2017-462, §§ 7.1, 7.2, 6-28-2017, eff. 7-1-2017)

Sec. 14-232. Personal leave hours.

(a) Compensable sick leave plan members are eligible to receive personal leave hours in accordance with the following schedules:

(1) A fire fighter classified under chapter 143 of the Texas Local Government Code:

Hours of Benefits Used in Preceding Benefit Year	*Personal Leave Hours Earned*
None	16
From one minute to eight hours	8
More than 8 hours	None

(2) Any other compensable sick leave plan member:

Hours of Benefits Used in Preceding Benefit Year	*Personal Leave Hours Earned*
None	24
From one minute to eight hours	16
From eight hours and one minute to 16 hours	8

Hours of Benefits Used in Preceding Benefit Year	*Personal Leave Hours Earned*
More than 16 hours	None

(b) Personal leave hours granted for each benefit year will be awarded as of the first full pay period in October of each succeeding benefit year. Personal leave hours may not be accumulated past August 31 of each benefit year and may only be used during the benefit year in which they are awarded. No compensation of any sort will be granted for personal leave hours that are not timely used during the benefit year awarded.

(c) Personal leave hours may be used in the same manner as vacation and may be taken separately or in conjunction with regular vacation or other authorized leave. Department directors may impose internal regulations, including reasonable advance notice requirements for taking personal leave hours, in order to ensure that working schedules are maintained. However, no department director shall unreasonably continually or arbitrarily deny an employee the right to use earned personal leave hours.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015; Ord. No. 2017-462, § 7.3, 6-28-2017, eff. 7-1-2017)

Sec. 14-233. Frozen days.

(a) Those compensable sick leave plan members who were employed by the city before September 1, 1985, and who have frozen days may utilize them as supplemental compensation in the event of illness or injury and exhaustion of sick leave time allowances available under the compensable sick leave plan. Frozen days may not be utilized for sick leave benefits while compensable sick leave plan time allowances remain available. Also, frozen days may not be utilized to supplement the benefits received through any long term disability policy that may be provided by the city as an adjunct benefit to the compensable sick leave plan.

(b) The value of an employee's remaining frozen days that have not been used as supplemental benefits under subsection (a), above, shall be payable to the employee upon termination of employment with the city, or to the employee's beneficiaries in the event of the death of the employee. Payment under this subsection will be limited to the value of the employee's remaining frozen days that were not used as supplemental benefits; the payment value therefor shall be as calculated as of August 31, 1985, under former section 14-225(a) of the City of Houston Code of Ordinances, regardless of whether the employee is earning a lesser or greater amount at the time of termination.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-234. Long-term disability.

The city may, if it so elects, provide an insurance policy or a self-funded plan of long term

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disability coverage for members of the compensable sick leave plan who meet certain eligibility criteria therefor in such form and upon such terms as the city council may, from time to time, elect to offer.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-235. Wellness leave.

(a) During each benefit year, a compensable sick leave plan member may take up to eight hours of wellness leave to go to health care providers for examinations and physicals, annual check ups and prospective health screening/testing of any kind in order to ensure that the employee continues to stay in good health or for the purpose of encouraging early detection of potentially debilitating or life threatening illness or diseases that might otherwise be ignored.

(b) The director may impose internal regulations, including reasonable advance notice requirements for taking any of such hours, in order to ensure that working schedules are maintained. No department director shall unreasonably refuse to allow such leave, but shall ensure that the time is taken when mutually beneficial or convenient for both the employee and the department.

(c) Wellness leave taken by compensable sick leave plan members will be payable in the same manner as sick leave, but shall not be regarded as use of sick leave time allowances, nor shall it be regarded as a use of sick leave for other purposes, such as attendance awards.

(d) Unused wellness leave hours may not be carried from one benefit year to the next; remaining unused hours will be canceled on August 31 of each benefit year. No compensation of any sort will be paid or granted for wellness leave that is not timely used.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-236—14-239. Reserved.

DIVISION 3. MODIFIED SICK LEAVE PLAN

Sec. 14-240. Application.

The benefits provided in this division 3 shall constitute the modified sick leave plan and shall be available only to those employees who are covered by the modified sick leave plan. The meaning of the word "employee" as used in this division shall be so restricted.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-241. Benefit days—Accrual.

(a) Employees shall receive benefit sick days at the rate of 1¼ eight-hour working days for each full month of employment so that they shall be eligible to receive 15 eight-hour benefit days per benefit year.

(b) Benefit days may be accumulated without limitation.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-242. Same—days charged.

When an employee utilizes an accumulated benefit day for sick or injury leave purposes, it will be charged to his or her accumulated benefit days on a first-in-first-out accounting basis so that days used during any benefit year will be charged:

(1) First to frozen days, if any;

(2) Then to unused days accumulated, if any, from the earliest benefit year and then to unused days accumulated, if any, from each succeeding benefit year until all days earned through the expiration of the last preceding benefit year have been exhausted; and

(3) Finally to unused days accumulated, if any, during the then-current benefit year.

No further benefits will be paid when all unused accumulated benefit days have been exhausted.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-243. Same—Annual valuation.

After the conclusion of each benefit year, the director shall determine the number of benefit days accrued during the benefit year that were not utilized during the benefit year, if any, by each employee and the per day value thereof. Such per day value shall be based upon the employee's average daily rate of base pay plus

longevity during the benefit year, and it shall be computed by adding an amount equal to the employee's daily rate of base pay plus longevity as applicable for each biweekly city payroll cycle that commenced during the benefit year and dividing that sum by the number of city biweekly payroll cycles that commenced during the benefit year. To the extent that the city may have two or more different biweekly payroll cycles in effect, then the computation for each employee shall be based upon the payroll cycle applicable to that employee. The per day value of the days so determined shall apply to their payment upon discharge pursuant to section 14-244 of this Code; however, they shall be payable as provided in section 14-224 of this Code when utilized by an active employee for compensable sick leave plan benefits.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-244. Same—Discharge benefit.

The combined value of any unused accumulated benefit days will be payable to the employee, or to the employee's beneficiaries in the event of the death of the employee, upon the discharge or death of the employee, in the following manner:

(1) Remaining frozen days, if any, will be payable at their per day value calculated as of August 31, 1985, as established under former section 14-225(a) of the City of Houston Code of Ordinances.

(2) Remaining days, if any, from each benefit year elapsed since the inception of this plan (September 1, 1985), will be paid at their per day value as established pursuant to section 14-243 of this Code.

(3) Remaining days, if any, from the benefit year in which the employee's employment with the city is discharged will be paid at the employee's daily average rate of base pay plus longevity during the benefit year of discharge, to be computed through the biweekly payroll period in which the discharge occurs in the same manner provided in section 14-243 of this Code.

(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-245. Wellness.

Members of the modified sick leave plan may utilize up to eight hours per benefit year of their accrued benefit days for wellness leave to go to health care providers for examinations and physicals, annual checkups and prospective health screening/testing of any kind in order to ensure that the employee continues to stay in good health or for the purpose of encouraging early detection of potentially debilitating or life threatening illness or diseases that might otherwise be ignored. Even though the wellness time used will be charged to their available benefit balance, it shall not be regarded as a use of sick leave for other purposes, such as attendance awards.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Secs. 14-246—14-250. Reserved.

ARTICLE IV. MILITARY LEAVES

Sec. 14-251. Definitions.

As used in this article the following words and terms shall have the meanings ascribed in this section, unless the context of their usage clearly indicates another meaning:

Armed Forces means the State Military Forces of Texas and the Reserve Components of the United States Armed Forces and National Guard.

Called to duty means ordered on proper authority to assume active duty status as a full-time member of the military forces during a time of war or a state of emergency for service relating to the war or emergency.

City salary means the employee's regular rate of base from the city inclusive of longevity, incentives, differentials or other compensation ordinarily received by the employee for service to the city. The regular rate of pay shall not include clothing or equipment allowances.

Director means the human resources director of the city.

Employee means a member of armed forces who is a full-time employee of the city.

Military salary means base pay plus any incentive pay, duty pay or other compensation payable to the employee by the military for full-time service while called up, exclusive of allowances for travel, uniforms and other personal expenses of the employee.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-252. Rights cumulative.

The provisions of this article shall not be construed to abridge any right of compensation or benefits arising under state or federal law or regulations, including those benefits arising under section 431.005 of the Texas Government Code.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-253. Military leave.

(a) An employee who is called to duty shall be entitled to be placed on military leave upon written application to the director. Each application shall be accompanied by duly authenticated copies of state or federal military orders, and any other documentation reasonably required by the director to establish the employee's right to leave status under this article. Upon receipt of an application and related documents establishing the right to leave status under this article, the director shall place the employee on military leave status.

(b) An employee on active military duty can be authorized to use up to eighty (80) hours of accrued leave per pay period.

(c) Accrued hours include, but are not limited to, floating holiday or deferred holiday, personal leave hours, compensatory time, vacation hours, or Paid Time Off (PTO) under the Houston Police Department Paid Time Off Program. Sick leave hours and no-value PTO hours may not be used. Value of leave used will be computed using bi-weekly base pay plus longevity rates of pay, and shall include any other pay to which the employee would be entitled to if the employee was using time for a reason other than military leave including, but not limited to, all allowances, assignment pays and certification pays to which the employee was entitled prior to being placed in a military leave status.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-254. Compensation.

(a) A full-time employee who is granted military leave under this article and whose military salary is less than his city salary shall be entitled to compensation for the difference. Such compensation shall not apply to any period prior to the reporting of the employee for the military call up or following the employee's discharge from the call up. In those instances in which an employee is eligible for compensation at full pay under section 431.005 of the Texas Government Code, the compensation hereunder shall not be payable for any period during which the employee is entitled to compensation thereunder.

(b) The compensation payable under this section shall be paid from time to time in accordance with administrative regulations established by the director with the consent of the city controller. Without limitation, such regulations may require that the employee regularly submit proof that he remains on active duty status with the military and the amount of the military salary that is payable.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-255. Status for other purposes.

The military leave provided under this Article shall not be construed to make any employee of the city who is on military leave an active employee of the city during his period of service in the armed forces while called up. For all other purposes the employee shall be regarded as being on leave without pay status entitled to those rights of restoration of employment and benefits that are provided by applicable state and federal law.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

Sec. 14-256. Time limitation.

The compensation to any employee under section 14-254 of this Code shall be limited to a period of 90 calendar days from the date that the

employee is called up, unless the city council determines, based upon the nature of the war or emergency, the number of city employees involved and the potential costs to the city, that the benefits should be extended.
(Ord. No. 2015-1300, § 2(Exh. A), 12-16-2015)

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Chapter 15

CONTRACTS*

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***Editor's note—**Ord. No. 2013-428, § 10(Exh. A), adopted May 8, 2013, effective July 1, 2013, amended Ch. 15 in its entirety to read as herein set out. Former Ch 15 pertained to similar subject matter and derived from Code 1968, §§ 2-3, 2-292—2-299; 13-1—13-9 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

Charter reference—Contracts generally, Art. II, §§ 7a, 19, 19a.

Cross reference—Ethics and financial disclosure, Ch. 18.

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ARTICLE I. IN GENERAL

Sec. 15-1. Public policy; prohibited interest in city contracts; persons indebted to city.

(a) It shall be against the public policy of the city as expressed by the city council for any employee of the city to bid on or to be awarded any contract being let by the city or to be pecuniarily interested, directly or indirectly, in any contract let by the city, or in any work done by the city, or in any matter wherein the rights or liabilities of the city are or may be involved.

(b) It shall be against the public policy of the city as expressed by the city council for any firm, partnership or corporation, in which any employee of the city has any ownership interest in excess of one percent of the total ownership interest in such firm, partnership or corporation to bid on or to be awarded any contract being let by the city or to be pecuniarily interested, directly or indirectly, in any contract let by the city, or in any work done by the city or in any matter wherein the rights or liabilities of the city are or may be involved.

(c) It shall be against the public policy of the city to enter into any contract or other transaction or business relationship or amend or extend any contract or business transaction that (i) requires the expenditure of funds equal to or exceeding the amount that requires the taking of competitive bids under state law, as amended from time to time, or (ii) grants a right, privilege, lease or franchise valued, in any one year period, in an amount equal to or in excess of the amount prescribed in (i) of this subsection, if the proposed contracting entity or any owner thereof is then indebted to the city or a qualifying entity, as set forth in article VIII of this chapter.

(d) It shall be against the public policy of the city to enter into, or to continue or extend, any contract if it is determined that a proposed or current contracting entity or person is an employer that has been convicted of wage theft, has been assessed an administrative penalty involving wage theft, or has been adjudicated in a civil action of engaging in wage theft by a court of competent jurisdiction, as set forth in article IV of this chapter.

(e) In the event that any contract or work, purchase or sale, is found to have been made in violation of subsections (a) or (b) hereof, then the said contract or work, purchase or sale, shall be null and void and shall be discontinued, and new arrangements shall be entered into as in the case of the incipiency of such contract of work, purchase or sale.

(f) It is a defense to prosecution under this section that the person contracting with the city is employed at one of the city's golf or tennis facilities and has executed a concession contract with the city to teach golf or tennis lessons at such facilities at times outside the person's regular working hours.

(g) It is an exception under this section that an employee of the city or employee's relative may participate in a city assistance program to the same extent as a member of the general public, which participation may be memorialized in a grant, loan, note, deed of trust, contract or other agreement between the city or the city's agent and employee if the employee qualifies for assistance under such program in accordance with the laws, rules, regulations and guidelines applicable to the city assistance program. However, a city employee eligible to participate in a city assistance program under this subsection is prohibited from engaging in any one or more of the following activities as it relates to the employee or any of the employee's relatives within the first, second, or third degree of consanguinity or affinity, as determined under Chapter 573, Texas Government Code:

(1) Exercising any functions or responsibilities with respect to administering the city assistance program including determining eligibility to participate in the city assistance program; or

(2) Participating in a decision-making process with regard to the city assistance program.

(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013; Ord, No. 2013-1081, § 3, 11-20-2013; Ord. No. 2021-44, § 2, 1-27-2021)

Sec. 15-2. Reserved.

Ord. No. 2015-668, § 2, adopted July 8, 2015, repealed § 15-2 in its entirety. Formerly said section pertained to collusion in bidding on public work and derived from Ord. No. 2013-428, § 10(Exh. A) 5-8-2013, eff. 7-1-2013.

Sec. 15-3. Reserved.

Ord. No. 2015-668, § 2, adopted July 8, 2015, repealed § 15-3 in its entirety. Formerly said section pertained to bid opening procedures, rules and appeals and derived from Ord. No. 2013-428, § 10(Exh. A) 5-8-2013, eff. 7-1-2013; Ord. No. 2013-603, § 11, 6-19-2013.

Secs. 15-4—15-15. Reserved.

ARTICLE II. ANTI-DISCRIMINATION PROVISIONS IN CITY CONTRACTS

Sec. 15-16. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings provided in this section, except where the context clearly indicates a different meaning:

Affirmative action means the policies, requirements, and procedures established in Subparts B and C, 41 C.F.R. 60-2 (1971), as amended, which are incorporated in this article by reference and a copy of which will remain on file in the office of the city secretary.

Bidder means any person seeking to be awarded a contract by the city.

Contractor means any person who has received, is to receive, or is receiving public funds for work or services rendered.

Discriminate has the meaning set forth in section 17-2 of this Code, except as required by federal or state law or court order.

Director means the head of the city department responsible for the management and inspection of the performance of work, services, or delivery of goods under a contract.

OBO director means the director of the office of business opportunity.

(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013; Ord. No. 2015-668, § 3(Exh. A), 7-8-2015)

Sec. 15-17. Equal employment opportunity clause.

All contracts entered into by the city involving the expenditure of $50,000.00 or more of public funds ("nonexempt city contracts") shall incorporate—by inclusion, attachment, or reference—an equal employment opportunity clause, which shall read as follows:

"EQUAL EMPLOYMENT OPPORTUNITY

"1. The contractor, subcontractor, vendor, supplier, or lessee will not discriminate against any employee or applicant for employment because of sex, race, color, ethnicity, national origin, age, familial status, marital status, military status, religion, disability, sexual orientation, genetic information, gender identity, pregnancy, or any other legally protected characteristic. The contractor, subcontractor, vendor, supplier, or lessee will take affirmative action to ensure that applicants are employed and that employees are treated during employment without regard to their sex, race, color, ethnicity, national origin, age, familial status, marital status, military status, religion, disability, sexual orientation, genetic information, gender identity, pregnancy, or any other legally protected characteristic. Such action will include, but not be limited to, the following: employment; upgrading; demotion or transfer; recruitment advertising; layoff or termination; rates of pay or other forms of compensation and selection for training, including apprenticeship. The contractor, subcontractor, vendor, supplier, or lessee agrees to post in conspicuous places available to employees, and applicants for em-

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ployment, notices to be provided by the city setting forth the provisions of this equal employment opportunity clause.

"2. The contractor, subcontractor, vendor, supplier, or lessee states that all qualified applicants will receive consideration for employment without regard to sex, race, color, ethnicity, national origin, age, familial status, marital status, military status, religion, disability, sexual orientation, genetic information, gender identity, pregnancy, or any other legally protected characteristic.

"3. The contractor, subcontractor, vendor, supplier, or lessee will send to each labor union or representative of workers with which it has a collective bargaining agreement or other contract or understanding a notice to be provided by the agency contracting officer advising the said labor union or workers' representative of the contractor's and subcontractor's commitments under Section 202 of Executive Order No. 11246, as amended or superseded, and shall post copies of the notice in conspicuous places available to employees and applicants for employment.

"4. The contractor, subcontractor, vendor, supplier, or lessee will comply with all provisions of Executive Order No. 11246, as amended or superseded, and the rules, regulations, and relevant orders of the secretary of labor or other federal agency responsible for enforcement of the equal opportunity and affirmative action provisions applicable and will likewise furnish all information and reports required by the mayor and/or contract administrator(s) for purposes of investigation to ascertain and effect compliance with this program.

"5. The contractor, subcontractor, vendor, supplier, or lessee will furnish all information and reports required by Executive Order No. 11246, as amended or superseded, and by the rules, regulations, and orders of the secretary of labor, or pursuant thereto, and will permit access to all books, records, and accounts by the appropriate city and federal officials for purposes of investigations to ascertain compliance with such rules, regulations, and orders. Compliance reports filed at such times as directed shall contain information as to the employment practice policies, program, and workforce statistics of the contractor, subcontractor, vendor, supplier, or lessee.

"6. In the event of the contractor's, subcontractor's, vendor's, supplier's, or lessee's noncompliance with the nondiscrimination clause of this contract or with any of such rules, regulations, or orders, this contract may be cancelled, terminated, or suspended in whole or in part, and the contractor, subcontractor, vendor, supplier, or lessee may be declared ineligible for further city contracts in accordance with procedures provided in Executive Order No. 11246, as amended or superseded, and such other sanctions may be imposed and remedies invoked as provided in the said executive order, or by rule, regulation, or order of the secretary of labor, or as may otherwise be provided by law.

"7. The contractor shall include the provisions of paragraphs 1-8 of this equal employment opportunity clause in every subcontract or purchase order unless exempted by rules, regulations, or orders of the secretary of labor issued pursuant to Section 204 of Executive Order No. 11246 of September 24, 1965, as amended or superseded, so that such provisions will be binding upon each subcontractor or vendor. The contractor will take such action with respect to any subcontractor or purchase order as the contracting agency may direct as a means of enforcing such provisions including sanctions for noncompliance; provided, however, that in the event the contractor becomes involved in, or is threatened with litigation with a subcontractor or vendor as a result of such direction by the contract-

ing agency, the contractor may request the United States to enter into such litigation to protect the interests of the United States.

"8. The contractor shall file and shall cause each of his subcontractors, if any, to file compliance reports with the city in the form and to the extent as may be prescribed by the mayor. Compliance reports filed at such times as directed shall contain information as to the practices, policies, programs, and employment policies and employment statistics of the contractor and each subcontractor."

(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013; Memorandum of 7-17-2013; Ord. No. 2014-530, § 4(Exh. B), 5-28-2014; Ord. No. 2015-668, § 3(Exh. A), 7-8-2015)

Sec. 15-18. Notice to bidders.

All notices to prospective bidders published on behalf of the city must include as a part of the contract specifications that all bidders will be required to comply with the provisions of this article.

(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013; Ord. No. 2015-668, § 3(Exh. A), 7-8-2015)

Sec. 15-19. Contract compliance commission.

(a) There is hereby created and established a contract compliance commission ("commission") composed of five persons who shall be resident citizens of the city. The commission shall have the duties and powers as set out in this article.

(b) The five members of the commission shall be appointed by the mayor and confirmed by the city council. The mayor shall designate the member to be chairman of the commission.

(c) The membership of the commission shall be filled as follows:

(1) One person from the construction industry;

(2) Two persons from the minority group containing the largest number of minority workers in industry in Houston;

(3) One person from the minority group containing the second largest number of minority workers in industry in Houston; and

(4) One person from the public at large.

(d) The mayor shall designate two of the initial members of the commission to serve for a term of two years and three members of the commission to serve for a term of one year, respectively, from the date of their appointment and confirmation. Thereafter terms of all members shall be for two years from the date of their appointment and confirmation.

(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013; Ord. No. 2015-668, § 3(Exh. A), 7-8-2015)

Sec. 15-20. Appointment of contract administrators.

(a) Each director whose department is responsible for the management and inspection of the performance of work on a contract shall appoint one or more contract administrators or designated department representatives responsible for the oversight of contracts.

(b) The OBO director shall appoint one or more contract administrators.

(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013; Ord. No. 2015-668, § 3(Exh. A), 7-8-2015)

Sec. 15-21. Function of contract administrators.

(a) It shall be the function of contract administrators to see that all nonexempt city contracts with all contractors, vendors, suppliers, and lessees contain the equal employment opportunity clause and all of the required language as set forth in the Code of Federal Regulations that is applicable for federal and federally assisted contracts. Further, it shall be the function of the contract administrators to determine, after review, if a city contractor is in compliance with this article.

(b) The office of business opportunity contract administrators shall coordinate with the respective departments' contract administrators or des-

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ignated department representatives responsible for the oversight of contracts to monitor all contract compliance functions in all city departments and divisions to ensure that contract compliance procedures are applied uniformly throughout the city.

(c) All contract administrators and designated department representatives responsible for the oversight of contracts shall cooperate fully with the OBO director in locating and encouraging minority businesses to enter into contracts involving the expenditure of less than $50,000.00 of city funds ("exempt city contracts"), as well as nonexempt city contracts, and in assisting minority contractors whenever possible.

(d) In addition to the compliance monitoring performed by the contracting departments and OBO, the chief procurement officer shall evaluate performance of contractors as well as compliance with contract terms and conditions. Designated department representatives shall cooperate fully with the chief procurement officer in this regard. (Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013; Ord. No. 2015-668, § 3(Exh. A), 7-8-2015)

Sec. 15-22. Noncompliance of contractor.

In the event that a contract administrator encounters an instance of noncompliance with this chapter, the following procedure will be followed:

(1) Where deficiencies are found to exist in a contractor's wage, hiring, and employment practices, the contract administrator shall issue, in writing, a notice of noncompliance to such contractor, giving that contractor 14 days after receipt of such notice to show cause why the imposition of sanctions should not be instituted. The notice, which shall be served upon the contractor by certified United States mail, return receipt requested, or by commercial carrier that provides written confirmation of delivery, shall set forth:

a. The specific basis and reason, action or failure to act, and all other relevant data, which caused the noncompliance finding;

b. The specific statutes, regulations, and/or ordinances with which the contractor is not complying;

c. The date of the compliance review;

d. A specific date by which the compliance must be achieved by the contractor;

e. The action to be taken by the city for continued noncompliance;

f. The time and place of any informal conciliation conference between the contractor and the contract administrator; and

g. The specific documents, records, or other relevant information concerning the contractor's compliance status requested by the contract administrator.

(2) If, within this 14-day time period, the contractor is unable to show good cause for his failure to resolve deficiencies, the contract administrator shall issue a notice of proposed recommendation of sanctions to the contractor and to the commission. The notice, which shall be served as set forth in item (1), shall set forth:

a. A short and plain statement of the matters that constitute the basis for the imposition of sanctions;

b. A citation of the provisions of the executive order, regulations, or ordinances pursuant to which the requested action may be taken;

c. The date of the compliance review;

d. The date of the informal conciliation conference between the contractor and the contract administrator;

e. The specific documents, records, and other relevant information concerning the contractor's compliance status requested by the contract administrator; and

f. An enumeration of the sanctions being requested.

(3) The contractor shall be afforded 14 days from receipt of a notice of proposed recommendation of sanctions to file an answer and to make a request for a hearing with the commission.

(4) If a hearing is requested within the specified time limit, a hearing shall be provided for the contractor, vendor, or supplier as set forth in this procedure.

(5) If, at the end of the 14-day period, no answer including a hearing request has been made, in writing, the contractor shall be deemed to have waived the right of a hearing, and shall be deemed to have consented to the making of a decision by the commission on the basis of such information as is available.

(6) In the event the address of the contractor is unknown or that notice which has been mailed is returned undelivered, service upon any employee or agent at the contract site shall be deemed service upon the contractor.

(7) Any decision of the commission shall be submitted to the chief procurement officer at the same time the decision is sent to the contractor.

(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013; Ord. No. 2015-668, § 3(Exh. A), 7-8-2015)

Sec. 15-23. Commission hearing procedure.

(a) A record shall be made of all hearings conducted by the commission. All hearings held by the commission shall be public and shall be conducted under rules consistent with the nature of the proceedings; provided, however, that the following rules shall apply to such hearing:

(1) The formal rules of evidence applicable to judicial proceedings are not required. The commission may receive hearsay testimony or evidence which, while technically objectionable, is in its discretion relevant and reasonably reliable.

(2) The commission may exclude irrelevant, cumulative, immaterial, or repetitious evidence.

(3) Only evidence presented before the commission at such hearing may be considered in rendering a final order.

(4) All parties to the hearing may be represented by a licensed attorney, though an attorney is not required.

(5) Each party may present witnesses in his own behalf.

(6) Each party has the right to cross-examine all witnesses.

(7) All witnesses may be placed under the witness rule at the request of any party. The legal department of the city shall have an attorney present who shall represent the city's interest at each hearing held by the commission.

(b) If the contractor does not appear before the commission at the date and time specified, the contract administrator may introduce evidence showing the noncompliance of the contractor, vendor or supplier.

(c) After completion of the presentation of evidence by all parties appearing, the commission shall make written findings and a final order as to whether a violation of this Code exists, setting forth in such written findings the specific conditions which classify the contractor to be in noncompliance in violation of this Code, federal regulations, or executive order. If the commission finds that violation of this Code, federal regulations or executive order exists, the commission shall submit its recommendation to the mayor and city council.

(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013; Ord. No. 2015-668, § 3(Exh. A), 7-8-2015)

Sec. 15-24. Sanctions.

(a) Upon receiving the recommendation of the commission, the mayor and city council shall review and consider the recommendation of the commission within 30 days. The mayor and city council shall make a decision based upon the record of the hearing, including but not limited to reports and records of the contractor and/or the commission.

(b) Subsequent to review, the mayor and city council may:

(1) Adopt the recommendation of the commission;

(2) Adopt the recommendation of the commission with modifications;

(3) Return the recommendation to the commission for development of further factual evidence if the city council finds the record to be incomplete; or

(4) Reject the recommendation and take no action against the contractor.

(c) Additionally, the mayor and city council may impose any other sanctions as provided by law. The decision of the mayor and city council shall be final and exhaust all available administrative remedies.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013; Ord. No. 2015-668, § 3(Exh. A), 7-8-2015)

Secs. 15-25—15-40. Reserved.

ARTICLE III. CONTRACTS; PROCUREMENT*

Sec. 15-41. Statement of policy.

It is the policy of the city that all procurements shall be made in accordance with relevant state and federal law, as well as the charter and this Code.
(Ord. No. 2015-668, § 4(Exh. B), 7-8-2015)

Sec. 15-42. Definitions.

As used in this article, the following terms have the meanings set forth below:

Bid means the response submitted by a bidder to an invitation to bid (ITB), including any variation of the competitive bid process, such as best-value bid or multi-step bid.

Proposal means the response submitted by a vendor in response to a request for proposals (RFP) issued by the city.

Procurement means the process by which pricing, qualifications, and bids and/or proposals for goods and services are solicited from vendors, which may result in contracts for the purchase of such goods or services. Procurement includes three phases: planning and sourcing, solicitation (through the selected method of procurement and contract award) and contract administration (performance and closeout).

Public work means a project calling for the construction, repair or renovation of buildings, streets, bridges, sewers, water lines, or any other publicly owned improvements to real property.

Request for proposals (RFP) means the document used to solicit proposals for services or a combination of goods and services from vendors. Price is not the primary evaluation criterion but is a factor considered in the determination of best value and affordability. The process may consist of two steps (prequalification and proposals) or a single step (proposals including consideration of quality).

Public private partnership (P3) means an agreement between the city and the private sector by which the private sector makes physical assets or services available to a public entity for an extended term in exchange for fixed payments over a term of 20 years or more.

Request for qualifications (RFQ) means the document used to solicit statements of qualifications from vendors. The process is generally used to pre-qualify vendors as part of a multi-step process or to select professional services prohibiting price as a consideration or whenever the best interest of the city is served.

Reverse auction means a real time bidding process that occurs online and allows vendors to compete during the short time allowed for the bidding. Each vendor knows the bids of all the others and can repeatedly amend a bid while the auction proceeds.

*__Editor's note__—Ord. No. 2015-668, § 4(Exh. B), 7-8-2015, amended Ch. 15, Art. III, in its entirety to read as herein set out. Formerly said article was entitled Contracts for Public Improvements and Maintenance and derived from Ord. No. 1013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013.

Solicitation means the document used to solicit bids, proposals, or qualifications.

Submission means the document responding to a RFQ.

Threshold means the amount of expenditure that triggers a requirement for a competitive procurement under state law, as may be amended from time to time.

Vendor means a provider of goods and/or services, including professional and construction services, that does business or seeks to do business with the city.

Work services means services that are not of a professional or consulting nature that involve manual labor or are performed by skilled trades.

(Ord. No. 2015-668, § 4(Exh. B), 7-8-2015)

Sec. 15-43. Chief procurement officer; authority; duties.

(a) There is hereby created the position of the chief procurement officer (CPO).

The CPO shall be appointed by the mayor. The CPO shall possess the qualifications and experience necessary to effectively provide leadership on procurement methods and globally accepted public procurement practices. In making procurement decisions, the CPO may delegate purchasing authority to certain departments for a defined period of time, provided that those departments comply with the procurement procedures promulgated by the CPO. The CPO shall develop requirements to be met by delegates prior to commencing any procurement or purchasing activity, including periodic reporting for submission to the CPO. The CPO may at any time withdraw approval for delegated authority if established procedures are not followed.

(b) Except as provided in this article, no department director or individual acting under the department director's authority shall order the procurement in excess of the threshold, of supplies, services, construction, or professional or consulting services other than through the office of or with the approval of the CPO. To the extent of any conflict with any other provision of this Code, this article takes precedence.

(c) The CPO shall:

(1) Lead day-to-day procurement activities across all city departments for direct and indirect sourcing.

(2) Accelerate the implementation of procurement best practices and organizational development efforts.

(3) Transform procurement operations into a strategic function that optimizes the city's strategic and operational objectives.

(4) Drive cross-functional procurement strategy, common process definition and deployment, and personnel and organizational development.

(5) Make procurement decisions and recommendations in accordance with globally accepted public procurement standards and promulgate procurement policies in conjunction with department directors.

(6) When appropriate, consult with user departments and legal counsel when making decisions regarding procurement.

(Ord. No. 2015-668, § 4(Exh. B), 7-8-2015)

Sec. 15-44. Procurement methods.

Whenever practicable, the CPO shall conduct a competitive process for the selection of a vendor associated with contracting opportunities. The following methods or strategies shall be used, as appropriate, based on the type of procurement:

(1) Competitive bid;

(2) Best value bids;

(3) Request for proposals;

(4) Request for qualifications;

(5) Hybrid methods;

(6) Non-competitive methods:

a. Sole source; and

b. Emergency procurements;

(7) Innovative methods and other procurement strategies:

a. Interlocal agreements;

b. Public-private partnerships;

c. Innovative methods;

d. Reverse auctions;

e. Cooperative purchasing; and

f. Other methods as may be authorized by law.

(8) Revenue generating contracts;

(9) Alternative delivery methods for construction projects; and

(10) Informal procurements for purchases under the threshold.

(Ord. No. 2015-668, § 4(Exh. B), 7-8-2015)

Sec. 15-45. Competitive sealed bids; bid opening; bid bonds; rejection of bids; return of bid bonds.

(a) A competitive bidding process or variation (such as best value bid) shall generally be used for the purchase of goods, equipment, and work services.

(b) The CPO shall ensure that the specifications for such purchases are not restrictive and provide maximum opportunity for fair and open competition. When a brand name or make is used as the standard to illustrate the requirements in a specification, the ITB shall include language indicating that the requirement may be met by a different source and shall include the phrase "or equal" so as to avoid issuing specifications that are restrictive.

(c) Bids shall be opened and read in public. The opening shall be held at a time, date, and place designated in the ITB at a location approved by the CPO. The time and date, and when appropriate, the place of the meeting designated in the ITB may be rescheduled without the necessity of readvertising for bids if:

(1) The ITB includes notice that the opening may be rescheduled, provided the rescheduled date or time may not be earlier than the time or date identified in the original solicitation; and

(2) A letter of clarification is issued.

(d) Late or unsealed bids shall not be read and shall be returned to the bidder unopened.

(e) For purposes of this section, bid bond means a valid and enforceable bond that is in substantial compliance with the following requirements:

(1) The bond must be executed by a corporate surety authorized by the state board of insurance to conduct insurance business in the State of Texas and shall comply with any other requirements set out by law or included in the bid package.

(2) The bond must be payable to the city.

(3) The bond must be conditioned such that if the bidder is awarded the contract and then fails to execute the contract timely or to provide any required bonds timely, or to do both, then in that event the surety will be obligated to pay to the city an amount equal to the difference between the bid of the bidder on whom the bond was written and the bid of the bidder who is finally awarded the contract and who executes the contract and provides the required bonds, up to the penal sum of the bond.

(f) All bid documents prepared by or on behalf of the city for public works projects or for contracts for the maintenance of public property shall require:

(1) That bidders must submit, along with their bids, a bid bond or a certified or cashier's check in an amount equal to ten percent of their bids.

(2) That the bidder to whom the contract is awarded must, if the contract amount exceeds the amount set by state law or other amount stated in the project documents, provide a performance bond in an amount equal to 100 percent of the contract amount, as described in section 15-52 of this Code.

(3) That the bidder to whom the contract is awarded must provide a payment bond if the contract is in excess of the amount set by state law or other amount stated in the project documents.

(4) That the bidder to whom the contract is awarded must provide such other bonds as are required by law or by the terms of the bid documents.

(g) Bidders submitting bids for the furnishing of materials only shall have the option of furnishing to the city, with any such bid, a cashier's or certified check in the sum of ten percent of the amount of such bid, in lieu of the bidder's bond required by this section. Such cashier's or certified check shall be furnished on the same terms and conditions as set out in this section.

(h) Upon receipt of a tabulation of bids and a recommendation as to the award of a contract, the CPO shall return to each vendor who has made a bid deposit the bond, cashier's check or certified check representing such deposit, except that the CPO shall retain any such deposit made by the lowest and second lowest bidders, as shown by such tabulation. Any deposit so retained shall be returned at such time as a contract has been awarded.
(Ord. No. 2015-668, § 4(Exh. B), 7-8-2015)

Sec. 15-46. Best value bids.

In compliance with applicable law, the CPO may utilize a best value bid method, a process under which criteria other than price are considered when making an award. The criteria upon which the outcome will be determined will be identified in the ITB.
(Ord. No. 2015-668, § 4(Exh. B), 7-8-2015)

Sec. 15-47. Request for proposals.

(a) Whenever the experience, qualifications, or overall quality is determined to have an impact on the success of the project, the CPO or authorized delegate may elect to utilize the RFP method in order to serve the best interests of the city. The RFP document shall, at a minimum, clearly state the scope of services, the process that will be followed, the criteria that will be considered in the evaluation of proposals, and a list of submission requirements.

(b) The goal of the RFP method is to obtain the best value, highest qualified, or a value-added proposition at an affordable price to the city.

(c) The CPO shall develop procedures for the use of the RFP method, specifying when its use is appropriate, and setting forth best practices and guidance to evaluation committee members.

(d) Consulting services and professional services not covered by the Professional Services Procurement Act, Texas Government Code Chapter 2254, shall generally be procured using the RFP method.
(Ord. No. 2015-668, § 4(Exh. B), 7-8-2015)

Sec. 15-48. Request for qualifications.

(a) The purpose of the RFQ method is to identify the highest qualified vendor with whom the city would then negotiate a reasonable fee.

(b) The Professional Services Procurement Act of the Texas Government Code, Chapter 2254, requires that the selection of architects, engineers, and land surveyors be made based on qualifications. Price shall not be considered in such selection.

(c) Other types of professional services may be procured using a RFQ when the CPO determines that the RFQ method is in the best interest of the city.
(Ord. No. 2015-668, § 4(Exh. B), 7-8-2015)

Sec. 15-49. Noncompetitive methods.

Noncompetitive methods are acceptable only under specific circumstances, such as:

(1) *Sole source.* Procurements of supplies, equipment, goods or services may be made without the use of a competitive method if such supplies, equipment, goods, or services can only be obtained from a single source. The CPO shall promulgate procedures for the review of a sole source requested by an operating department These procedures shall address the evidence necessary to demonstrate that the unique specifications, qualities, or capabilities of the items substantiate a sole source exception.

(2) *Emergency.* The CPO may execute contracts without the use of a competitive method without prior approval of city council when procurements are necessary (i) due to a threat to public health or safety, (ii) for repairs to city property in order to protect against further loss or damage, (iii) to prevent or minimize seri-

ous disruption in city services, (iv) to ensure the integrity of city records, or (v) in the reasonable opinion of the CPO, whenever the best interests of the city is served. The CPO shall implement procedures to meet these requirements, and when practicable, conduct informal competition for the award of an emergency contract. Any emergency purchases made in excess of the threshold shall be submitted to city council for approval as soon as practicable.

(Ord. No. 2015-668, § 4(Exh. B), 7-8-2015)

Sec. 15-50. Innovative methods.

Subject to applicable law, the CPO may conduct procurements using innovative methods, including, but not limited to, electronic procurement, reverse auctions, prequalification and pilot procurement programs that have no cost to the city. In order to implement innovative methods of procurement, either directly or through a vendor, the CPO must make a determination that such process is competitive and in the best interest of the city. Innovative methods may take into consideration market conditions, spend analysis, and other factors. Such methods include:

(1) *Interlocal agreements.* The city may enter into interlocal agreements with other governmental entities in order to cooperatively perform governmental functions and services, including purchasing. Such agreements will be entered into as authorized by state and federal law.

(2) *Public-private partnerships (P3s).* The city may enter into public-private partnerships or "P3s" in accordance with state law. If the city elects to move forward with a P3 proposal, the city will conduct a competitive process for the selection of a vendor and negotiation of a contract.

(3) As an alternative or in addition to directly conducting procurement using innovative methods, the CPO may conduct reverse auctions, electronic auctions, or provide an on-line or electronic forum for competitive bids, requests for qualifications and requests for proposals and other types of innovative methods of procurement on the city's behalf.

(4) *Cooperatives.* Under Texas law, the city may participate in a cooperative purchasing program with another local government or a local cooperative organization. Provided the city purchases goods and services in accordance with the cooperative purchasing requirements, the city is deemed to have satisfied state law competitive procurement requirements for the purchase of the goods or services.

(5) Other methods as may be authorized by law.

(Ord. No. 2015-668, § 4(Exh. B), 7-8-2015)

Sec. 15-51. Revenue-generating contracts.

The city may enter into contracts with third parties for the purpose of generating revenue for the city. The CPO shall be informed prior to or at the commencement of the negotiation of all revenue-generating contracts. The CPO shall promulgate policies to ensure that a competitive procurement is conducted when market conditions indicate doing so would be in the best interests of the city.
(Ord. No. 2015-668, § 4(Exh. B), 7-8-2015)

Sec. 15-52. Informal procurement.

Any purchase exceeding $3,000.00 but less than the threshold may be made by soliciting quotes from one or more vendors, provided that a city-wide contract is not available for the goods or services required. Such procurement opportunity need not be published in a newspaper of general circulation, but the city may elect to publish such opportunities on a central procurement website so as to promote competition.
(Ord. No. 2015-668, § 4(Exh. B), 7-8-2015)

Sec. 15-53. Competitive bidding and alternative delivery methods for construction.

(a) Construction shall generally require a competitive bid process; however, the CPO may choose to conduct a variation of the competitive process as authorized by law, whenever the best interest of the city will be served.

(b) All solicitations for construction projects in excess of the amount set in state law or other amount set forth in the project documents shall include a requirement that, if awarded the work, the vendor shall furnish a performance bond. For purposes of this requirement, "performance bond" means a valid and enforceable bond which is in substantial compliance with the following requirements:

(1) The bond must be executed by a corporate surety authorized by the state board of insurance to conduct insurance business in the State of Texas.

(2) The bond must be payable to the city.

(3) The bond must be conditioned upon the faithful performance of work in accordance with the plans, specifications and contract documents.

(4) The bond must comply with any special requirements contained in the bid package.

(5) The bond must be accompanied by satisfactory evidence of the authority of the surety's agent to bind the surety by executing the bond.

(Ord. No. 2015-668, § 4(Exh. B), 7-8-2015)

Sec. 15-54. Protests.

The CPO shall establish protest procedures and steps to be taken by vendors and the city when a vendor is dissatisfied with a procurement process. The bid protest process does not create any due process right, but is intended to allow vendors the opportunity to raise concerns regarding actions taken regarding a competitive solicitation.

(Ord. No. 2015-668, § 4(Exh. B), 7-8-2015)

Sec. 15-55. Conflicts of interest.

The CPO shall establish a process for addressing conflicts of interest in the procurement and contracting process. Such conflicts may be set forth in state law, common law, the city charter, and/or city ordinance. Anyone involved in procurement is required to disclose any conflict or appearance of conflict before participating in a procurement process.

(Ord. No. 2015-668, § 4(Exh. B), 7-8-2015)

Sec. 15-56. Ethics, values, and guiding principles.

Procurement personnel and others involved in a procurement must exhibit the highest level of ethical behavior so as to protect the integrity of the procurement process. Procurement professionals and those involved in any procurement in the city shall observe the values and guiding principles globally accepted and promulgated by public procurement professional organizations. Such values and guiding principles include but are not limited to: transparency, impartiality, accountability, professionalism, ethics and service.

(Ord. No. 2015-668, § 4(Exh. B), 7-8-2015)

Sec. 15-57. Prohibited practices.

The following practices are prohibited:

(1) *Restrictive specifications.* City employees and officials are prohibited from issuing specifications that restrict fair and open competition for a contracting opportunity. This provision does not prohibit the city from engaging in non-competitive procurements when updating or upgrading a standardized system that was originally procured through a competitive process.

(2) *Bid splitting, sequential bidding, and component purchases.* In accordance with state law, it shall be unlawful to split purchases for the purpose of avoiding a procurement process. The appropriate process shall be determined based on the entirety of the scope to fulfill the project or purpose intended. Public officials and employees shall not segregate components of a project to avoid a procurement or approval process.

(3) *Bid rotating; bid rigging.* It shall be unlawful for any vendor to engage in bid rotating practices. Bid rotation occurs when vendors take turns being the designated successful vendor; for example, each vendor is designated to be the successful bidder on certain contracts, with others

designated to win other contracts. Bid rigging is a form of fraud in which a contract is promised to one party even though for the sake of appearance several other parties also present a bid. Such practices interfere with the competitive environment sought for public procurements and are strictly prohibited.

(4) Any other act prohibited by law.

(Ord. No. 2015-668, § 4(Exh. B), 7-8-2015)

Secs. 15-58—15-60. Reserved.

ARTICLE IV. WAGE THEFT

Sec. 15-61. Definitions.

In this article:

Adjudicated or *adjudication* means a judgment by a civil court, in a civil action brought under the Texas Theft Liability Act or the Texas Pay Day Act, finding that an employer failed to pay wages for which judgment no appeal is available.

Commission means the Texas Workforce Commission.

Contract or *city contract* means any contract let by the city for the construction of any public improvement or the purchase of goods or services.

Conviction or *convicted* means, for purposes of this article, a final adjudication of guilt relating to a criminal offense for which no further appeal is available.

Employee means an individual who is employed by an employer for compensation. The term does not include a person related to the employer or the employer's spouse within the first or second degree by consanguinity or affinity, as determined under Chapter 573, Government Code, or an independent contractor.

Employer means a person who employs one or more employees as set forth in Texas Labor Code, Section 61.001(4)(A).

Inspector General or *IG* means the person in charge of the Office of the Inspector General created by Executive Order No. 1-39 or his designee.

Wages means compensation owed by an employer to an employee for labor or services rendered by the employee to the employer, whether computed on a time, task, piece, commission or other basis, but shall exclude any deduction authorized by section 61.018, Texas Labor Code.

Wage theft means action by an employer that, with intent to avoid payment of any wages for a service that the employer knows is provided only for compensation, intentionally or knowingly secures the performance of the service by agreeing to provide compensation and, after the service is rendered, fails to make payment after receiving notice demanding payment. In no event shall wage theft be interpreted to include a dispute over wage rates.

(Ord. No. 2013-1081, § 4, 11-20-2013)

Sec. 15-62. Wage theft complaint involving city contracts; procedures.

(a) A person employed in connection with a city contract who has a good faith belief that he is the victim of wage theft may file a wage theft complaint with the Inspector General on a form prescribed by the IG.

(b) The IG shall first determine whether a wage theft complaint alleges wage theft as defined in this article and, if the complaint is found deficient in that regard, shall dismiss the complaint. A complaint shall likewise be dismissed, and the complainant referred to the commission, if no city contract is involved in the complaint. No record shall be maintained relating to any complaint dismissed under this section.

(c) If the IG is satisfied that a complaint alleges sufficient facts to support further inquiry, the complaint shall be investigated in a manner consistent with similar investigations of employee misconduct or other matters by a person trained in employment law, including the taking of sworn statements from the complainant and the employer's personnel and the inspection of relevant records.

(d) Upon completion of the investigation of a wage theft complaint, the IG shall determine whether the complaint is meritorious and sustain or dismiss the complaint.

(e) In the event a wage theft complaint is sustained, the IG shall affirmatively seek to resolve the complaint via payment of wages due the complainant by the employer.

(f) The city or the employer may request that the complaint be resolved by mediation.

(g) If no resolution is achieved, the complainant shall be referred to the commission unless the same claim is then on file with that agency. The matter shall also be referred to the city attorney for appropriate action in the best interests of the city.

(h) Should the IG determine, with respect to a wage theft complaint, that the complainant also filed the same complaint with the commission, the IG shall seek to determine status of the complaint at the commission and, if it appears that the commission may conclude its action on that complaint within a reasonable period of time, may abate his review or investigation pending the final resolution of the complaint by the commission.
(Ord. No. 2013-1081, § 4, 11-20-2013)

Sec. 15-63. Wage theft database; creation; procedures.

(a) The finance director shall create and maintain on the city's website a publicly accessible database of all employers located or operating within the area described in the definition of 'local firm' in section 15-82 of this Code that have been:

(1) Convicted of a criminal offense under Section 61.019, Texas Labor Code or Section 31.04(a)(4), Texas Penal Code, for engaging in wage theft;

(2) Assessed an administrative penalty under Section 61.053, Texas Labor Code and such order has not been satisfied before becoming final and non-appealable; or

(3) Adjudicated by a court of competent jurisdiction as having engaged in wage theft and such judgment has not been satisfied before becoming final and non-appealable.

(b) For purposes of this section, any conviction of an employer for wage theft occurring within the five year period preceding the effective date of this article or at any time thereafter shall be cause for inclusion in the database. No assessment of an administrative penalty relating to wage theft or adjudication of wage theft by a civil court prior to the effective date of this article shall be a basis for including an employer in the database.

(c) No employer shall be included in the database unless:

(1) The finance director has received confirmation from the Inspector General that an employer has met at least one of the criteria set forth in subsection (a) of this section; or

(2) The employer named in such complaint has received 30 days' written notice of the city's intent to place its name in the database and has failed to demonstrate that the criteria for placement on the database have not been met.

(d) An employer shall be removed from the database if more than five years has elapsed since the date of the employer's most recent conviction, adjudication, or assessment of administrative penalty relating to wage theft, as set forth in subsection (a) of this section.
(Ord. No. 2013-1081, § 4, 11-20-2013; Memorandum of 1-23-2014)

Sec. 15-64. Retaliation prohibited; adverse action.

(a) No city contractor shall retaliate against any person who has filed a wage theft complaint in good faith pursuant to this article. If the Inspector General determines that retaliation has occurred, the employer shall be subject to the sanctions provided in this article. For purposes of this provision, retaliation means action to discharge from employment, discipline or otherwise punish an employee for filing a wage theft complaint in good faith.

(b) No department shall take any adverse action against an employer based solely on the filing of a wage theft complaint under this article.
(Ord. No. 2013-1081, § 4, 11-20-2013)

Sec. 15-65. Sanctions.

(a) If, at the time an employer is included in the wage theft database, the employer is then serving as a contractor, subcontractor or as a goods or materials supplier in connection with any city contract, the finance director and Inspector General shall notify the city attorney who may take appropriate action to serve the best interests of the city, including the use of remedies provided by the city's contract with the employer.

(b) If an employer included in the wage theft database currently holds, or wishes to apply for or renew, an occupational license or permit listed in section 1-10(b)(8) of this Code, the appropriate director or other licensing official or board shall, for a period of five years following the employer's inclusion in the wage theft database, revoke or refuse to issue or renew any such occupational license or permit, provided such action is based upon the employer's conviction of an offense set forth in section 1-10(b)(8) of this Code.

(c) Each licensing official or board shall notify the employer in writing by certified mail of the refusal to issue, revocation of, or refusal to renew, the license or permit pursuant to the preceding subsection and shall cite the violation of this article and section 1-10(b)(8) of this Code as the grounds on which such decision was made. The employer shall have all applicable rights of appeal or contest relating to the refusal to issue or renew or to the revocation of a license or permit under this section.
(Ord. No. 2013-1081, § 4, 11-20-2013)

Secs. 15-66—15-80. Reserved.

ARTICLE V. MINORITY, WOMEN AND SMALL BUSINESS ENTERPRISES

Sec. 15-81. Declaration of policy.

(a) It is the policy of the city to stimulate the growth of local minority, women and small business enterprises by encouraging the full participation of these business enterprises in various phases of city contracting, as set forth in this article. The purposes and objectives of this article are:

(1) To promote equal opportunity for participation amongst local minority, women and small business enterprises in all phases of city contracting;

(2) To increase the utilization of such local firms in providing certain goods and services;

(3) To provide opportunities to broaden and enhance local firms' ranges of capacities; and

(4) To increase opportunities for such local firms to serve as contractors, in addition to acting as subcontractors to others, there applicable, in an effort to remedy discriminatory practices and eliminate statistical disparities in city contracting.

(b) This article is intended to be remedial in nature and to continue only until its purposes and objectives are achieved. At least every five years the city shall make its best efforts to initiate a review of its minority and women business enterprise program, the results of which shall be provided to city council, who shall determine, upon its receipt of recommendations and the consideration of other relevant information from the OBO director, whether there is strong statistical and anecdotal evidence of discrimination against minority and women business enterprises in city contracting warranting the continuation of a race and gender conscious minority and women business enterprise program.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-82. Definitions.

The following words and phrases, when used in this article and in article VI of this chapter, shall have the meanings provided in this section, unless the context clearly indicates another meaning. For the purpose of these definitions, the singular shall also include the plural, and the plural shall also include the singular.

Bidder means any person or legal entity which submits a bid or proposal to provide labor, goods or services to the city by contract for profit.

Commercially useful function means a discrete task or group of tasks, the responsibility for performance of which shall be discharged by the MWSBE by using its own forces or by actively supervising on-site the execution of the tasks by another entity for whose work the MWSBE is responsible. In determining whether a MWSBE is performing a commercially useful function, factors including but not limited to the following shall be considered: (1) whether it has the skill and expertise to perform the work for which it is being utilized and possesses all the necessary licenses; (2) whether it is in the business of performing, managing or supervising the work for which it has been certified and is being utilized; and (3) whether it is performing a real and actual service that is a distinct and verifiable element of the work called for in a contract. An entity may use an employee's license in lieu of the owner's for purposes of determining whether the entity is performing a commercially useful function only when the owner has a documented disability, relevant and specific to the required license, making licensure impossible, when allowed under federal and state law, and otherwise still possesses the skill and expertise to perform the work for which the entity is being utilized. MWSBEs shall be responsible for performing more than 50 percent of the task or group of tasks being counted toward the applicable participation goal unless subcontracting such task or group of tasks in excess of 50 percent has been expressly authorized via a waiver by the OBO director.

Contractor means any person or legal entity providing goods, labor, or services to the city by contract for profit.

Established business enterprise means a MWSBE or any business applying for certification as a MWSBE that, by virtue of its size meets or exceeds the standards promulgated by the U.S. Small Business Administration for that category of business, as determined by the procedures described in section 15-87(a) of this Code.

Goal-oriented contract means any contract, agreement or other undertaking anticipated for construction work in excess of $1,000,000.00 and for the supply of goods or nonpersonal or nonprofessional services in excess of $100,000.00:

a. For which competitive bids are required by law;

b. Which is not within the scope of the disadvantaged business enterprise programs of the United States Environmental Protection Agency or the United States Department of Transportation or any other federal or state agency having jurisdiction; and

c. That the initiating city department, in consultation with the OBO director, determines has significant subcontracting potential in fields in which there are adequate numbers of known MWSBEs to compete for and perform the subcontract service(s).

Good faith efforts shall refer to steps taken to achieve a MWSBE goal or other requirements which, by their scope, intensity and usefulness demonstrate a bidder's responsiveness to fulfill the business opportunity objective prior to the award of a contract and a contractor's responsibility to put forth measures to meet or exceed a MWSBE goal throughout the duration of the contract.

Joint venture means an association of a MWSBE and one or more other firms to carry out a single, for-profit business enterprise, for which the parties combine their property, capital, efforts, skills and knowledge, and in which the MWSBE is responsible for a distinct, clearly defined portion of the work of the contract and whose share in the capital contribution, control, management, risks, and profits of the joint venture are commensurate with its ownership interest.

Local firm, local MWSBE, or *locally based when describing a firm or entity seeking certification* means a sole proprietorship, partnership, corporation or any other business entity with a significant business presence in the metropolitan statistical area that includes the City of Houston ("MSA"), as

defined by the Office of Management and Budget within the Executive Office of the President of the United States. A significant business presence includes the requirement that a MWSBE have an established place of business in the MSA that has a substantial role in the MWSBE's performance of a commercially useful function.

MWSBE means, collectively, MBEs, WBEs, and SBEs.

Minority business enterprise or *MBE* means:

a. A business which is:

i. A sole proprietorship in which the owner is a minority person who owns, controls and manages the business; or

ii. A corporation in which at least 51 percent of the stock or of the assets of such corporation is owned, controlled and managed by one or more minority persons; or

iii. A partnership in which at least 51 percent of the assets of such partnership is owned, controlled and managed by one or more minority persons; or

iv. Any other business or professional entity in which at least 51 percent of the assets in such business or professional entity is owned, controlled and managed by one or more minority persons; or

v. A business which has been certified as an MBE by the office of business opportunity under any other recognized MBE program; and

b. The majority owner on whom the MBE status relies has a personal net worth that does not exceed the current threshold outlined in the Office of Business Opportunity's Policies and Procedures.

Minority person means a citizen or legal resident alien of the United States who is:

a. Black American, which includes persons having origins in any of the black racial groups of Africa;

b. Hispanic American, which includes persons of Mexican, Puerto Rican, Cuban, Central or South American, or other Spanish or Portuguese culture or origin, regardless of race;

c. Asian-Pacific American, which includes persons having origins from Japan, China, Taiwan, Korea, Burma (Myanmar), Vietnam, Laos, Cambodia (Kampuchea), Thailand, Malaysia, Indonesia, the Philippines, Brunei, Samoa, Guam, the U.S. Trust Territories of the Pacific Islands (Republic of Palau), the Commonwealth of the Northern Marianas Islands, Macao, Fiji, Tonga, Kiribati, Juvalu, Nauru, the Federated States of Micronesia, or Hong Kong, or the region generally known as the Far East;

d. Native American, which includes persons having origins in any of the original peoples of North America, American Indian, Eskimo, Aleut, Native Hawaiian; or

e. Subcontinent Asian American, which includes persons whose origins are from India, Pakistan, Bangladesh, Bhutan, the Maldives Islands, Nepal, or Sri Lanka.

Origin or descent can be regarded as the ancestry, nationality group, lineage or country in which the person or persons' parents or ancestors were born before their arrival in the United States.

Owned, controlled and managed means that the one or more minority persons or women who own the requisite interests in or assets of a business applying for minority or women business enterprise certification possesses equivalent incidents of such ownership, including an equivalent interest in profit and loss,

and has contributed an equivalent percentage of capital and equipment to the business. Contributions of capital and equipment must be real and substantial. In instances where expertise is relied upon to demonstrate ownership, control, and management, it must be shown that the expertise is: (1) in a specialized field; (2) in an area critical to the firm's operation and performance of a commercially useful function; (3) critical to the firm's continued success; and (4) documented in the records of the firm, including but not limited to documentation showing the particular expertise and its value to the firm. Additionally, the individual whose expertise is relied upon must have a significant financial investment in the business. Ownership shall be measured as though not subject to the community property interest of a spouse, if both spouses certify in writing that the nonparticipating spouse relinquishes control over his or her community property interest in the subject business (but by doing so is not required to transfer to his or her spouse his or her community property ownership interest or to characterize the property as the separate property of the spouse). The one or more minority person or woman owners shall have recognized, ultimate control over all day-to-day business decisions affecting the MBE or WBE and shall hold a title commensurate with such control. Such ultimate control shall be known to and at least tacitly acknowledged in day-to-day operations by employees of the business.

Regulated contract means any contract, agreement or other undertaking:

a. For which competitive bids are not required by law;

b. That is not covered by the MBE/WBE programs of the United States Environmental Protection Agency or the United States Department of Transportation or any other federal or state agency having jurisdiction; and

c. That the recommending city department has determined, in consultation with the director of the office of business opportunity either:

1. Has significant subcontracting potential in fields in which there are sufficient known MWSBEs to perform the particular subcontract service(s); or

2. Is of a type for which there are sufficient known MWSBEs which have represented their ability to perform the prime contract service to afford effective competition for the prime contract.

Small business enterprise or *SBE* means a firm whose gross revenues or number of employees, averaged over the past three years, inclusive of any affiliates as defined by 13 CFR Section 121.103, does not exceed the size standards defined in Section 3 of the Federal Small Business Act and applicable Small Business Administration regulations related to the size standards found in 13 CFR Part 121. The term shall also include a certified minority/women business enterprise defined in this Code.

Subcontractor means any business providing goods, labor or services to a contractor if such goods, labor or services are procured or used in fulfillment of the contractor's obligations arising from a contract with the City of Houston.

Woman means a person who is a citizen or legal resident alien of the United States and who is of the female gender.

Women business enterprise or *WBE* means:

a. A business which is:

i. A sole proprietorship in which the owner is a woman who owns, controls and manages the business; or

ii. A corporation in which at least 51 percent of the stock or assets

of such corporation is owned, controlled and managed by one or more women; or

iii. A partnership in which at least 51 percent of the assets of such partnership is owned, controlled and managed by one or more women; or

iv. Any other business or professional entity in which at least 51 percent of the assets in such business or professional entity is owned, controlled and managed by one or more women; or

v. A business which has been certified as a WBE by the office of business opportunity under any other recognized WBE program; and

b. The majority owner on whom the WBE status relies has a personal net worth that does not exceed the current threshold outlined in the Office of Business Opportunity's Policies and Procedures.

(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013; Ord. No. 2025-378, §§ 11—14, 5-7-2025)

Sec. 15-83. Program elements.

(a) Based upon a review of annual awards and purchases by affected city departments, the office of business opportunity shall each year submit a progress report to the city council. The report shall include two percentage figures that are intended to as closely as possible represent the ratio of the prior year's measured utilization and availability of local MWSBEs to do business in:

(1) The supply of goods and nonpersonal or nonprofessional services; and

(2) The performance of personal or professional services;

to the prior year's total local business community utilization and availability to do business in each of the two named fields of city contracting.

In addition, the report shall include percentage figures that are intended to as closely as possible represent the ratio of the prior year's measured utilization and availability of local MWSBEs to do business in construction to the prior year's total local business community utilization and availability to do business in city construction contracting. The report may also include figures and other evidence of factors prescribed in Part 26, Title 49 of the Code of Federal Regulations in the year the report is made that may affect the aforementioned ratio of utilization and availability.

(b) Based upon the measured utilization and availability and any other relevant factors prescribed in Part 26, Title 49 of the Code of Federal Regulations and identified in the report submitted pursuant to subsection (a) above, city council shall from time to time set annual citywide percentage goals for city contracting with MWSBEs in each of the two named categories described in subsection (a)(1) and (2) above and for contracting with MWSBEs in the construction category. The adjustment, if any, in the percentage goals shall be made during the first quarter of the fiscal year.

(c) It is the responsibility of each city department to determine which contracts initiated by it are goal-oriented contracts and which are regulated contracts. If the determination is made that a contract is a goal-oriented contract or a regulated contract, the initiating department shall review the contract and shall determine, by reference to the MWSBE register, the number of certified MWSBEs in each of the two named categories described in subsection (a)(1) and (2), above, and for construction, the number of certified MWSBEs in the construction category. The initiating department director or his or her

designee shall determine whether the contract is one to which MWSBE provisions should be applied.

(1) These provisions are not required to be applied in the following circumstances:

a. A public or administrative emergency exists which requires the goods or services to be provided with unusual immediacy;

b. The service or goods requested are of such a specialized, technical or unique nature as to require the city department to be able to select its contractor without application of MWSBE provisions (such as contracts for expert witnesses, certain financial advisors or technical consultants);

c. If application of MWSBE provisions would impose an unwarranted economic burden or risk on the city or unduly delay acquisition of the goods or services, or would otherwise not be in the best interest of the city; or

d. If the possible MWSBE participation level based on MWSBE availability would produce negligible MWSBE participation.

If one of the above-listed conditions is determined to exist, the department director shall certify that determination in writing prior to the award of the contract, specifying the conditions which lead to the determination, and submit the determination to the OBO director for review and approval.

(2) If the contract does not fall within one of the above-listed exceptions, based upon its overall review, the initiating department shall assign an appropriate MWSBE participation level, if any, for the contract (whether goal-oriented or regulated) considering the local availability of certified MWSBEs in the contract field.

The intention of this article is to provide administrative flexibility in the application of MWSBE provisions of this Code and in the percentage participation level on a contract-by-contract basis so as not to limit access to city contracting by nonminority-owned, non-women-owned or established business enterprises to a greater degree than necessary to meet the city-wide annual goal and the policies and objectives of this article.

(d) The bidding documents and the contract documents for goal-oriented contracts for which a MWSBE participation level has been established shall contain a provision detailing the purposes and objectives of the city's MWSBE ordinance and shall incorporate by reference this article and the then-current motion or ordinance establishing MWSBE annual goals. Regulated contracts which are determined to have significant subcontracting potential for which a MWSBE participation level has been established shall contain contractual provisions (and proposal provisions if submitted for proposals or for bids) requiring the contractor to meet or exceed the determined MWSBE participation level for that contract, or to establish that it has made good-faith efforts to do so, and that notwithstanding such efforts, was unable to meet or exceed the determined participation levels. The OBO director shall establish procedures defining good-faith efforts. These procedures will be reviewed and approved by the mayor and the city attorney. (Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-84. Office of business opportunity.

(a) Applications for certification as a MWSBE and any addenda thereto shall be made on a form promulgated by the OBO director, and the requirements for certification shall be consistent with the applicable requirements set forth in subsection (b) below.

(b) The office of business opportunity has responsibility for:

(1) Establishing procedures for the implementation of this article, and reviewing and approving procedures established by city departments, such procedures to be narrowly designed to attain the purposes and objectives specified herein

without unduly limiting nonminority-owned or nonwoman-owned or established business enterprises. Such procedures shall be reviewed and approved by the mayor and by the city attorney prior to implementation;

(2) Certifying businesses as minority, small or women business enterprises and maintaining and distributing to affected city departments a current register, updated monthly, of such business (including a separate listing of such businesses whose applications for certification are pending) specifying the categories of city contracting represented by the certified MWSBEs;

(3) Developing educational programs for and otherwise assisting (without offering favoritism in relation to the competitive bidding system) MWSBEs to compete effectively for city contracts;

(4) Making recommendations to the mayor, city council and city departments to further the policies and objectives of this article, including but not limited to assisting city departments in setting contract-specific MWSBE goals;

(5) Reviewing documentation from potential contractors and from contractors concerning good-faith efforts made to meet or exceed the participation level for contracts. The final recommendation to city council for award or for acceptance of work shall be the city department's, although the office of business opportunity may take exception;

(6) Compiling a report of the progress of city departments, by department, in attaining the city-wide goals set by city council. This report shall be based upon MWSBE contractor and subcontractor information, to be specified by the office of business opportunity. Upon completion, the report is to be submitted quarterly to city council members, the mayor and all affected city department directors for their information;

(7) Receiving and reviewing complaints and suggestions concerning the MWSBE program from contractors, MWSBEs and city departments; and

(8) Without limiting the authority of the office of business opportunity to establish procedures that are consistent with the terms of this article, the office of business opportunity is specifically directed to promulgate and implement procedures as follows:

a. Grievance procedures for any person aggrieved by any decision of the office of business opportunity under this article. The procedures shall include notice and a hearing before an impartial hearing officer who shall be appointed by the mayor;

b. Mediation procedures for the resolution of disputes between contractors or bidders and MWSBE participants or potential participants with respect to any aspect of compliance with this article, including, without limitation, any assertion that a contractor, subcontractor, or MWSBE has failed to make good faith efforts to comply with this article;

c. Procedures to implement and enforce any sanctions provided under this article;

d. Procedures to ensure performance of work by MWSBEs, which procedures shall include: (i) a requirement that no more than 50 percent of their work may be subcontracted, without a specific waiver from the office of business opportunity for cause; (ii) a requirement that the minority person, small business or woman owner of a MWSBE have the necessary experience, expertise, credentials and regulatory authority to conduct the type of business for which the business is certified; (iii) a requirement that bidders and contractors make good faith efforts to meet or exceed

contract MWSBE goals; and (iv) a requirement that MWSBEs accurately represent all material information required for certification and truly perform a commercially useful function;

e. Procedures for counting participation by MWSBEs as prime contractors, subcontractors, suppliers and joint venturers on city contracts, which procedures shall ensure that all work performed by MWSBEs is included in the computation of the progress made toward meeting the annual city-wide goals;

f. Procedures to ensure that this article is limited in its application to the certification of locally based MWSBEs;

g. Procedures to coordinate the operation of this article with other local MWSBE programs, which may include reliance upon certification procedures of other entities that are determined to be reliable and equivalent to this article;

h. Procedures to ensure access to necessary records of prime contractors and subcontractors on city contracts; and

i. Procedures for handling theft of services (wage theft) complaints of employees of city contractors and subcontractors.

(c) MWSBE certification shall be valid for a period of three years from the date of certification; provided, however, all applicants certified as MWSBEs shall be subject to review on an annual basis pursuant to procedures established by the OBO director to ensure compliance with all applicable provisions of this article.

(d) Applications for renewal of MWSBE certification shall be evaluated under the same criteria and subject to the same manner of review as original applications.

(e) All procedures established under this section shall be reviewed and approved by the city attorney prior to implementation. A copy of all procedures hereunder shall be maintained in the office of business opportunity for inspection, and copies may be purchased at the fees prescribed by law.

(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-84.1. Responsibilities of city departments; department utilization plan.

(a) Each department director shall be accountable for the oversight and implementation of the following activities:

(1) Informing MWSBE organizations or associations of the department's procurement procedures and future procurement opportunities;

(2) Ensuring that department bid solicitations and requests for proposals are sent to MWSBEs in a timely manner;

(3) Referring MWSBEs to technical assistance services available from the office of business opportunity and other organizations that provide such services;

(4) Reviewing each request for waiver or modification of participation goals prior to its submission to the office of business opportunity for approval;

(5) Monitoring the department's procurement activities to ensure compliance with and progress towards the city-wide participation goals; and

(6) Providing the OBO director with the departmental utilization plan prescribed in subsection (b) of this section and any other documentation requested by the office of business opportunity necessary in evaluating a department's progress in achieving city-wide participation goals.

(b) Each department that has procured goods and services in excess of three million dollars during the fiscal year ending on June 30th of the preceding calendar year shall be required to

submit a departmental utilization plan for the following fiscal year commencing on July 1st. Departmental utilizations plans shall be submitted on or before June 15, 2014, and not later than June 15th of each calendar year thereafter.

(c) Each department director shall be responsible for creating, submitting, and implementing an annual departmental utilization plan that shall include, at a minimum, the following:

(1) The department's forecast of anticipated projects and contract specific goals for the upcoming fiscal year;

(2) A detailed, written explanation for any departmental goal that is not consistent with the overall city-wide goals for MWSBE participation;

(3) A list of the names and titles of department personnel responsible for the implementation of the departmental utilization plan;

(4) The methods and relevant activities proposed for achieving the department's participation goals; and

(5) Any other information the department director deems relevant or necessary.

(d) Upon review by the OBO director, all departmental utilization plans shall be submitted to the mayor and city council for final approval.

(e) A departmental utilization plan may be amended to reflect changes in the department's projected procurements, expenditures, or other relevant circumstances and resulting changes in the department's participation goals. Such amendments shall be submitted to the OBO director for review and shall be submitted to city council for final approval not less than 30 days prior to the proposed date of implementation.

(f) Each department director shall be accountable for setting and making reasonable efforts to meet the participation goals stated its departmental utilization plan. Departments shall, at minimum, engage in outreach activities that encourage eligible businesses to apply for certification as MWSBEs and encourage MWSBEs to participate in all facets of the procurement process and compete for city contracts, including contracts awarded by negotiated acquisition and emergency and sole source contracts.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-85. Filing of plan.

Before execution of any contract or issuance of any purchase order for which a MWSBE goal has been established, a bidder or potential contractor shall submit a plan setting forth how it intends to meet the contract MWSBE goal or documentation demonstrating its proof of good faith efforts to meet the contract MWSBE goal. After execution of a contract or receipt of a purchase order, the contractor shall comply with the submitted plan, unless it has received approval from the OBO director for a deviation therefrom. Approval shall not be unreasonably withheld. While it is not a requirement that a contractor meet its goal, it is required that the contractor objectively demonstrate to the office of business opportunity that it has made good faith efforts to meet the goal. To this end, the contractor shall maintain records as prescribed by the office of business opportunity demonstrating its efforts at compliance. The contractor shall be required to submit to the office of business opportunity reports of its efforts under this article in such form or manner as shall be prescribed by the OBO director.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-86. Sanctions.

(a) The OBO director is authorized to suspend any contractor who has failed to make good faith efforts to meet any goal established under this article from engaging in any contract with the city for a period up to, but not to exceed, five years. The OBO director is also authorized to suspend any MWSBE who has failed to make good faith efforts to meet all requirements necessary for participation as a MWSBE from engaging in any contract affected by this article for a period up to, but not to exceed, five years.

(b) In accordance with section 15-84 of this Code, the office of business opportunity shall establish procedures for the imposition of sanctions and shall ensure that no sanction is imposed without notice of the grounds being given and an opportunity for a hearing consistent with the procedures set forth in sections 15-22, 15-23, and 15-24 of this Code. Any procedure established shall be consistent with state law.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-87. Determination of established business enterprise status.

(a) Based upon a review of data submitted by MWSBEs or MWSBE applicants and any other information available from its files or the files of any other governmental entity, the office of business opportunity shall determine the size of each MWSBE or MWSBE applicant by determining the average of the gross receipts for the prior three years and the average number of employees for the 12 calendar months immediately preceding the review, as applicable. The calculation of size shall be based solely upon the size standards and methods of calculation identified by the U.S. Small Business Administration (SBA) including, without limitation those set forth in 13 C.F.R. part 121, subpart A, secs. 121.101 through 121.107, and sec. 121.201, any amendment or successor thereto, or any other document defining such size standards or the calculation thereof that has been fully and finally adopted by the SBA. The review shall be applicable to business entities applying for initial certification as a MWSBE or to certified MWSBEs, provided that such review may not be initiated until the applicant or certified MWSBE has established a business history of sufficient length to allow calculation of size based on the three year financial or 12 month employee data, as applicable.

(b) Following the review described in this section, each certified MWSBE or MWSBE applicant shall be re-evaluated under this section on an annual basis based upon the size standards and methods of calculation identified by the SBA and procedures established by the OBO director to ensure compliance with all applicable provisions of this article.

(c) All MWSBEs and MWSBE applicants shall, upon written request of the OBO director, provide to the office of business opportunity copies of any and all documents, including without limitation financial statements and tax records, requested by the director in connection with the review authorized in subsection (a) of this section, not later than 20 business days following the date of mailing of the request. Failure to timely and completely comply with any such request will authorize the imposition of sanctions under section 15-86 of this Code, or denial of certification in the case of a MWSBE applicant.

(d) Following the review authorized by subsection (a) of this section, the office of business opportunity shall classify each MWSBE or MWSBE applicant whose size meets or exceeds the size standard identified by the SBA for that class of enterprise as an established business enterprise. The classification shall be effective as of the date of mailing of the notice provided in section 15-88 of this Code.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-88. Notice, appeal and waiver.

(a) Immediately upon classification of a certified MWSBE or MWSBE applicant as an established business enterprise pursuant to section 15-87 of this Code, the office of business opportunity shall notify the business so classified of the action by United States certified mail, return receipt requested, addressed to the last known address of the business and deemed given when placed in a United States mail depository.

(b) Each notice shall inform the affected MWSBE or MWSBE applicant of the following matters:

(1) That the MWSBE or MWSBE applicant has been classified as an established business enterprise;

(2) That the classification is effective as of the date of mailing of the notice;

(3) That the MWSBE or MWSBE applicant may appeal the classification or seek a

waiver of the classification pursuant to the procedures established under this section;

(4) That the provisions of section 15-89 of this chapter shall become enforceable with respect to any certified MWSBE one year following the notice of classification, unless the decision is reversed or a waiver is granted and the classification is withdrawn prior to the expiration of the one-year period; and

(5) That any MWSBE applicant deemed ineligible for certification based upon its classification as an established business enterprise shall remain ineligible for certification unless and until any withdrawal of the classification as an established business enterprise is granted pursuant to an appeal or a request for waiver conducted under this section.

(c) In order to appeal a classification as an established business enterprise, a MWSBE or MWSBE applicant must submit to the OBO director a written notice of appeal no later than 60 days following the date of mailing of the notice of classification. The sole basis for an appeal shall be that the office of business opportunity has incorrectly calculated the size of the business according to SBA standards based upon incorrect information or error in computation. The notice of appeal shall be accompanied by any documentation necessary to demonstrate the asserted error. If the OBO director finds that an error or errors were made in calculating the size of the business and that any such error resulted in an incorrect classification as an established business enterprise, the classification shall be withdrawn and the business promptly notified of the withdrawal. If the OBO director finds that no error was made, or that any error would not materially alter the classification, he shall notify the business that the classification is not altered, by certified mail, return receipt requested. The business may within ten days of the date of mailing of the notice submit to the OBO director a written request for a hearing, which hearing shall be conducted under the procedures set forth in subsections (e) through (g) of this section.

(d) In order to seek a waiver of a classification as an established business enterprise, a MWSBE or MWSBE applicant must submit to the OBO director a written request for a hearing no later than 60 days following the date of mailing of the notice of classification. The written request shall include documentary evidence, including but not limited to financial statements and tax records, relevant to the following criteria:

(1) Profitability of the enterprise;

(2) Sales of the enterprise, including a demonstration that 55 percent or more of the enterprise's sales, within the period utilized by the office of business opportunity in its classification determination, are not related to city contracts;

(3) Ability of the MWSBE or MWSBE applicant to obtain bonding, if the enterprise acts as a prime contractor or in a category in which obtaining bonding is required; and

(4) Positive comparison of the enterprise's business and financial profile with those of non-MWSBE firms in the same business category based on an objective industry standard.

(e) The OBO director shall notify the affected MWSBE or MWSBE applicant of the place and time of a hearing before the OBO director or his designee to consider an appeal requested under subsection (c) of this section, or a request for waiver of the classification under subsection (d) of this section, or both, as applicable, by United States certified mail, return receipt requested. The hearing shall be set not later than 30 days following receipt of the request, provided that the OBO director or his designee may in his discretion extend such date by a reasonable period for good and sufficient cause shown. Hearings for businesses that have both appealed under subsection (c) of this section and requested a waiver under subsection (d) of this section may be consolidated in a single hearing at the discretion of the OBO director or his designee.

(f) The OBO director shall promulgate written procedures for the conduct of hearings. The OBO director or his designee shall hear each

appeal or request for waiver and shall consider only the criteria set forth under subsections (c) and (d)(1) through (d)(4) of this section, as applicable, in determining whether to withdraw the classification of the affected business as an established business enterprise. The OBO director shall develop objective standards for evaluating each factor set forth under subsections (d)(1) through (d)(4) based upon recognized industry or governmental practices or standards. The burden shall be on the business to demonstrate by clear, convincing and cogent evidence either that a material error in classification was made or that the granting of a waiver is justified by at least two of the criteria set forth in subsections (d)(1) through (d)(4) of this section.

(g) Notwithstanding any provision of this Code or of the rules or regulations of the office of business opportunity to the contrary, including any provision for mediation of a decision of the OBO director, the decision of the OBO director or his designee regarding appeal or waiver shall be final.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-89. Effect of classification; re-application.

(a) Upon the expiration of one year following the notice of classification as an established business enterprise referenced in section 15-88(a) of this Code, and in the absence of any withdrawal of such classification by the OBO director, each certified MWSBE so classified shall be ineligible for future participation in any city contract as a MWSBE and its certification shall be withdrawn. No application for re-certification shall be granted absent the prior determination of the OBO director that the applicant does not meet or exceed the SBA size standards referenced in section 15-87(a) of this Code. Certified businesses whose evaluation results in classification as an established business enterprise shall timely file any re-certification application due prior to expiration of the one year extension of program eligibility referenced in this section, but the application shall not be granted unless and until the classification is withdrawn or waived.

(b) Notwithstanding any provision of this Code or the rules or regulations of the office of business opportunity to the contrary, including any provision for mediation of a decision of the OBO director, any initial applicant for MWSBE certification who meets the criteria for an established business enterprise at the time of its application and is so classified shall be denied certification on that basis alone and shall have no recourse for the denial except through challenging the classification in the manner set forth in section 15-88 of this chapter. Any and all other matters pertaining to the eligibility of the applicant shall be abated and shall only be reinstated if the classification as an established business enterprise is withdrawn.

(c) The office of business opportunity may continue to assist established business enterprises following ineligibility as follows:

(1) Such businesses, if formerly certified by the city, may continue to be listed in any listing of MWSBE firms in a separate category of established MWSBE firms for the information of other private or public entities; and

(2) Such businesses, if formerly certified by the city, may receive information, counseling and referrals to other agencies supporting business enterprises from the office of business opportunity after their classification as established business enterprises.

(d) No sooner than one year following the date of program ineligibility provided in subsection (a) of this section or the denial of certification provided in subsection (b) of this section, any established business enterprise may apply for reinstatement as a fully eligible, certified MWSBE or reinstatement of an application for certification abated under subsection (b) of this section, as applicable, upon demonstrating the existence of one or more of the following conditions:

(1) That the subsequent history from the date of initial classification as an established business enterprise demonstrates that a size calculation as of the date of application for reinstatement

would place the business below the SBA size standards for that category of business;

(2) That the established business enterprise has successfully obtained an SBA size determination from a federal agency authorized to make such a determination, or has prevailed in an SBA size protest under 13 CFR § 121.1001, et seq., as amended, including any judicial review thereof, establishing that the business does not meet or exceed the applicable SBA size standard;

(3) That the SBA size standards have been revised in such a manner that the subject business no longer meets or exceeds the size standard for its category based upon the most recent three-year average for receipts or 12 month average for employees, as applicable; or

(4) That the criteria listed in section 15-88(d) of this Code demonstrate the need to grant a waiver and withdraw the classification of the business as an established business enterprise.

(e) Applications for reinstatement shall be on a form prescribed by the OBO director and shall be accompanied by relevant documentary evidence supporting the ground or grounds for reinstatement asserted, as requested by the OBO director.

(f) Within 30 days following receipt of a completed application for reinstatement, the OBO director shall grant the application or deny the application and set the matter for hearing within 30 days of the date of mailing notice of such denial.

(g) The burden on the business applying for reinstatement shall be to demonstrate the existence of one or more of the conditions set forth in subsections d(1) through d(4) of this section by clear, convincing and cogent evidence, to be evaluated by the director under hearing procedures consistent with the nature of the application and, to the extent applicable, with the provisions of subsections (c), (d), (e) and (f) of section 15-88 of this Code. In addition, a business seeking reinstatement under subsection (b)(4) of this section that has previously sought a waiver of classification as an established business enterprise pursuant to section 15-88(d) of this chapter must present evidence of a material and substantial change in circumstances not shown at the preceding hearing, and the OBO director or his designee shall disregard evidence that is repetitious or cumulative of the prior hearing on the matter.

(h) The decision of the OBO director or his designee following a hearing on reinstatement shall be final, and any applicant denied reinstatement is to be notified in writing of the decision within ten days following the hearing. No business denied reinstatement may subsequently apply for reinstatement until the expiration of one year from the date of the denial.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

ARTICLE VI. PERSONS WITH DISABILITIES BUSINESS ENTERPRISES

Sec. 15-90. Declaration of policy.

(a) It is the policy of the city to stimulate the growth of local business enterprises owned, controlled and managed by persons with disabilities by encouraging the full participation of such businesses in all phases of its procurement activities and by affording them a full and fair opportunity to compete for all city contracts. The city council finds and determines that such businesses are historically underutilized and disadvantaged with respect to government and private sector contracting and in need of the measures provided by this article. The purposes and objectives of this article are:

(1) To increase the utilization of local PDBE enterprises to provide goods and services; and

(2) To provide opportunities for local PDBE enterprises to broaden and enhance their range of capacities; and

(3) To increase opportunities for local PDBE enterprises to serve as contractors for the supply of goods and services to the city, in addition to acting as subcontrac-

tors to others, all in order to help eliminate the historical underutilization and disadvantages faced by such businesses.

(b) This article is intended to be remedial in nature and to continue only until its purposes and objectives are met as determined by regular periodic reviews.

(c) This article is not intended to duplicate, supplement or overlap in any fashion the requirements, definitions, procedures or remedies afforded by the Americans with Disabilities Act of 1990, 42 U.S.C. § 12101 et seq., and shall be construed and applied in a manner entirely separate from and independent of any measures required by that Act.

(d) This article is not intended to duplicate, supplement or overlap in any fashion any state or federal program providing aid or assistance to individuals with disabilities, or to entities that aid or assist individuals with disabilities, with respect to rehabilitation, employment, job training, housing, economic or medical assistance and shall be construed and applied in a manner entirely separate from and independent of any such state or federal program.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-91. Definitions.

(a) The following words and phrases, when used in this article, shall have the meanings provided in this section, unless the context clearly indicates another meaning.

Chronic or *permanent character* means, with respect to a medically determined physical or mental impairment, that the impairment is medically anticipated to be of a continuing nature, with no present prognosis of complete or substantially complete recovery through the passage of time and/or the application of presently available medical treatment or rehabilitative therapy.

Major life activities means functions significantly affecting a person's quality of life, such as caring for one's self, performing manual tasks, walking, seeing, hearing, speaking, breathing, learning and working.

Medical doctor means an individual licensed to practice medicine in the State of Texas.

Medically determined means determined by a medical doctor.

Owned, controlled and managed means that the one or more persons with a disability who own the requisite interests in or assets of a business applying for persons with disabilities' business enterprise certification possesses equivalent incidents of such ownership, including an equivalent interest in profit and loss, and has contributed an equivalent percentage of capital and equipment to the business. Contributions of capital and equipment must be real and substantial. In instances where expertise is relied upon to demonstrate ownership, control, and management, it must be shown that the expertise is: (1) in a specialized field; (2) in an area(s) critical to the firm's operation and performance of a commercially useful function; (3) critical to the firm's continued success; and (4) documented in the records of the firm, including but not limited to documentation showing the particular expertise and its value to the firm. Additionally, the individual whose expertise is relied upon must have a significant financial investment in the business. Ownership shall be measured as though not subject to the community property interest of a spouse, if both spouses certify in writing that the nonparticipating spouse relinquishes control over his or her community property interest in the subject business (but by doing so is not required to transfer to his or her spouse his or her community property ownership interest or to characterize the property as the separate property of the spouse). The one or more persons with a disability owners shall have recognized, ultimate control over all day-to-day business decisions affecting the PDBE and shall hold a title commensurate with such control. Such ultimate control shall be known to and at least tacitly acknowledged in day-to-day operations by employees of the business.

Person with a disability means a disabled veteran or citizen or legal resident alien of the United States who has a presently existing, medically determined physical or mental

impairment of a chronic or permanent character which substantially limits one or more of his or her major life activities. The term persons with disabilities shall not include individuals currently engaging in the illegal use of drugs or currently engaging in the abuse of alcohol. However, the term persons with disabilities does not exclude individuals who have successfully completed a supervised drug or alcohol rehabilitation program and are no longer engaging in the illegal use of drugs or the abuse of alcohol and who otherwise qualify as persons with disabilities under the criteria set forth in this article.

Persons with disabilities business enterprise or *PDBE* means:

a. A business that is:

i. A sole proprietorship in which the owner is a person with a disability who owns, controls and manages the business; or

ii. A corporation in which at least 51 percent of the stock or of the assets of the corporation is owned, controlled and managed by one or more persons with a disability; or

iii. A partnership in which at least 51 percent of the assets of the partnership is owned, controlled and managed by one or more persons with a disability; or

iv. Any other business or professional entity in which at least 51 percent of the assets in the business or professional entity is owned, controlled and managed by one or more persons with a disability; and

b. The majority owner on whom PDBE status relies on has a personal net worth that does not exceed the current threshold outlined in the Office of Business Opportunity's Policies and Procedures.

(b) See section 15-82 of this Code for additional definitions.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013; Ord. No. 2025-378, §§ 15, 16, 5-7-2025)

Sec. 15-92. Program elements.

(a) Unless expressly excepted under this article, all elements, requirements and procedures of the MWSBE program set forth in article V of this chapter, including, without limitation, applicable definitions, reporting requirements, goal-setting procedures, city department procedures, exceptions, contract and participation provisions, plan filing requirements, sanctions and established business enterprise provisions, are hereby adopted and incorporated as if fully set forth herein and shall be applied to PDBEs in the same manner as to MWSBEs.

(b) The office of business opportunity has responsibility for establishing procedures for the PDBE program consistent with the directives set forth under section 15-84 of this Code for the MWSBE program; provided, that the office of business opportunity may simplify, condense or modify reporting and monitoring responsibilities consistent with the anticipated lower volume of PDBE contracts in the interest of administrative efficiency.

(c) Percentage goals for PDBEs shall be separate and apart from percentage goals established for city contracting with MWSBEs.

(d) All procedures established under this section shall be reviewed and approved by the city attorney prior to implementation. A copy of all procedures established hereunder shall be maintained in the office of business opportunity for inspection, and copies may be purchased at the fees prescribed by law.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-93. Application and certification.

(a) Applications for certification as a PDBE and any addenda thereto shall be made in a form promulgated by the OBO director, and the requirements for certification shall be consistent with the applicable requirements set forth under article

V of this chapter and the procedures of the office of business opportunity for businesses applying for certification as MBEs, SBEs or WBEs, except as follows:

(1) Each applicant for certification as a PDBE shall submit, in addition to any other information required, a disability affidavit and accompanying letter from a medical doctor documenting the present existence and nature of the medically determined physical or mental impairment asserted as the basis for certification as a PDBE; and

(2) Authorize the release of any medical information required by the director to verify the medical determination of a presently existing physical or mental impairment and/or the degree to which the major life activity or activities are impaired.

(b) Except for a disabled veteran who shows proof of a disability rating letter from the Department of Veterans Affairs or a disability determination from the Department of Defense demonstrating the disabled veteran has a service-connected disability, the determination of a qualifying impairment shall include the following criteria:

(1) The impairment must be shown to have been evaluated through a comprehensive diagnostic study, and in the case of a mental impairment through a psychiatric

[The next page is 1115]

or psychological evaluation, that is sufficient to demonstrate that a medically determined physical or mental impairment of a chronic or permanent character presently exists and that it substantially limits one or more of the applicant's major life activities.

(2) The applicant's substantial functional limitations must be a result of his or her physical or mental impairment.

(3) The existence of a physical or mental impairment alone, without substantial and continuing functional limitations as a result of the impairment, does not satisfy the requirements for certification.

(c) Notwithstanding any provision of this chapter to the contrary, the OBO director shall have the authority to question the authenticity or accuracy of information provided by any PDBE applicant, either for initial certification or for renewal of certification, purporting to verify the present existence of the claimed mental or physical impairment and/or the degree to which the impairment is claimed to limit a major life activity.

(d) If the OBO director finds that the PDBE application meets the criteria of this article, article V of this Code and applicable rules and procedures promulgated by the director, the director shall approve the application.

(e) If the OBO director determines that questions exist as to the matters referenced in subsection (b) of this section, the OBO director shall notify the applicant in writing of the nature of the questions raised and set the matter for a hearing before the OBO director or his designee not later than 30 days following the date of mailing of the notice. At such hearing the burden shall be upon the applicant to provide clear, convincing and cogent evidence to establish the nature and extent of the claimed impairment. The decision of the OBO director or his designee denying or granting certification shall be final, subject to the grievance procedures authorized by section 15-84(8)(a) of this Code.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-94. Review and renewal of certification.

(a) PDBE certification shall be valid for a period of three years from the date of certification; provided however, all applicants certified as PDBEs shall be subject to review on an annual basis pursuant to procedures established by the OBO director.

(b) In addition to any other criteria that may be established for renewal of PDBE certification, applications for renewal shall be evaluated under the same criteria and subject to the same manner of review as authorized by section 15-93 of this Code for original applications.

(c) This section shall not be construed to prohibit any person or business certified as a MWSBE from also being certified as a PDBE; provided, however, that any such person or business with dual certification shall not be permitted to participate in both a MWSBE goal and a PDBE goal in the same contract.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-95. Confidentiality of records.

Information submitted by PDBE applicants in connection with an application for certification or re-certification as a PDBE under this article shall be confidential and may be disclosed by the office of business opportunity only pursuant to the requirements of a statute or the order of a court of competent jurisdiction.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Secs. 15-96—15-99. Reserved.

ARTICLE VII. CONTRACTOR DEBARMENT*

Sec. 15-100. Scope.

This article provides for debarment of contractors as a remedy available to the city separate and apart from sanctions that may be imposed under article V of this chapter.
(Ord. No. 2015-668, § 5(Exh. C), 7-8-2015)

Sec. 15-101. Definitions.

As used in this article, the following terms have the meanings below, unless otherwise indicated:

Chief procurement officer or *CPO* means the chief procurement officer for the city.

Collusion means the cooperation of two or more parties to act together secretly to achieve a fraudulent or unlawful act, such as secretly agreeing to unlawful practices regarding competitive bidding; collusion may result in a violation of antitrust laws.

Commission means the contract compliance commission.

Contract means any contract or subcontract entered into by the city.

Contractor means any person who contracts with or otherwise provides goods or services to the city; the term includes subcontractors who provide any goods, materials, or services used in the performance of contracts.

Day means a calendar day.

Debarment means action taken by the city to exclude a person from acting as a contractor for a specified period.

Debarment regulations means written rules and procedures established by the chief procurement officer for the purposes set forth in this article.

Substantial evidence means more than a scintilla but less than preponderance of evidence and consists of such relevant evidence as a reasonable person would accept as adequate to support a conclusion.

Theft of services has the meaning provided in section 31.04 of the Texas Penal Code.

Wrongful conduct means any of the types of conduct or offenses listed in section 15-103(1)—(4) of this Code.
(Ord. No. 2015-668, § 5(Exh. C), 7-8-2015)

Sec. 15-102. Debarred person ineligible.

(a) No debarred contractor shall be eligible for award of any contract. No debarred contractor is a responsible bidder for any contract.

(b) No debarred contractor is eligible to serve as a subcontractor or as a goods or materials supplier for any contract. Unless otherwise determined by the CPO, this provision shall not be construed to preclude completion of existing subcontracts as provided in section 15-110(b) of this Code.
(Ord. No. 2015-668, § 5(Exh. C), 7-8-2015)

Sec. 15-103. Grounds for debarment.

A person found to have committed any of the following acts in the four-year period preceding referral to the chief procurement officer may be debarred:

(1) Any significant and material breach of any contract, including without limitation, without good cause:

a. Failing to comply with state, federal or local laws or regulations applicable to the performance of a contract;

b. Failing to comply with state, federal or local laws or regulations or applicable city policies and procedures concerning payment of a contractor or subcontractor;

c. Failing to pay its employees as required by law or otherwise engaging in theft of services; or

d. Engaging in collusion.

*__Editor's note—__Ord. No. 2015-668, § 5(Exh. C) adopted July 8, 2015, amended Ch. 15, Art. VII in its entirety to read as herein set out. Formerly said article was entitled Public Works Contractor Debarment and derived from Ord. No. 1013-428, § 10(Exh.A), 5-8-2013, eff. 7-1-2013.

(2) Knowingly using a debarred contractor as a subcontractor.

(3) Conviction or civil adjudication of the contractor or the contractor's officers or owners of a criminal offense or civil misconduct in connection with the contractor's business that evidences a lack of business integrity or business honesty, including without limitation, embezzlement, theft, theft of services, forgery, bribery, fraud, falsification or destruction of records, making false statements, or receiving stolen property, or violations of laws relating to the obtaining of or performing of public contracts.

(4) Any other conduct that evidences the inability of the contractor to responsibly complete contracts on behalf of the city.

The conduct giving rise to the debarment may be based upon actions taken in connection with work undertaken for the city, other public entities, or private entities. The conduct may also result in a referral to law enforcement.
(Ord. No. 2015-668, § 5(Exh. C), 7-8-2015)

Sec. 15-104. Wrongful conduct investigation; debarment determination.

(a) Any department director or elected city official may refer a contractor to the chief procurement officer for purposes of determining whether debarment is appropriate. The referral shall be signed and in writing and shall set forth the basis of the complaint asserted.

(b) Following receipt of the referral, the chief procurement officer, in his sole but reasonable discretion, shall assign an impartial individual, who may be a city employee, to investigate whether there is reasonable cause to believe wrongful conduct has occurred. In consultation with the city attorney, the CPO shall promulgate regulations governing the debarment process, including but not limited to the assignment of an impartial individual to conduct investigations on the CPO's behalf.

(c) Upon receipt of the investigator's findings, the CPO shall:

(1) Affirm or deny the finding;

(2) Return the matter for further investigation; or

(3) Refer the matter to the commission for a hearing in accordance with the standard of review and timeframes provided in section 15-105 of this Code.

(d) Upon the CPO's affirmation of a finding of wrongful conduct, the CPO shall provide to the contractor a written notice of debarment and offer the opportunity for a hearing, pursuant to the debarment regulations established under this section, and section 15-105 of this Code. A contractor's failure to make a timely request for a hearing renders the CPO's decision final.
(Ord. No. 2015-668, § 5(Exh. C), 7-8-2015)

Sec. 15-105. Debarment by the commission.

(a) A contractor who has received notice of debarment from the chief procurement officer may request a review by the commission, if, not later than 14 days after the date of the debarment decision, the contractor provides a written notice of appeal to the commission. The notice of appeal must contain specific exceptions to the CPO's decision to issue a notice of debarment.

(b) The commission shall conduct a hearing within 30 days after the date it receives a valid notice of appeal from a contractor or referral for a hearing from the CPO.

(c) The commission shall issue a decision affirming or reversing the decision of the CPO or, in instances when the CPO has referred a matter to the commission for a hearing, issue a decision determining whether there is substantial evidence that the contractor has engaged in wrong conduct. The commission shall make written findings explaining the basis for its decision. All decisions and written findings of the commission shall be based upon whether there is substantial evidence that the contractor engaged in wrongful conduct.

(d) If the commission affirms the decision of the CPO or determines on its own that the contractor engaged in wrongful conduct, the contractor may request review by city council if, not later than 14 days after the date of the decision of the commission, the contractor submits a written

request for review by city council to the city secretary. A contractor's failure to make a timely request for a hearing renders the commission's decision final.
(Ord. No. 2015-668, § 5(Exh. C), 7-8-2015)

Sec. 15-106. Review by city council.

(a) Upon receipt of a request for a review of the commission's debarment decision, city council shall review the record of the commission, including the record created at the hearing, the record of the chief procurement officer's hearing, if any, and any written exceptions to the CPO's decision filed with the commission. City council shall consider the matter in the manner set forth by Rule 12, section 2-2 of this Code. City council may:

(1) Affirm debarment for the recommended period of time;

(2) Affirm the debarment order with modifications as to the period of debarment;

(3) Return the matter to the CPO for development of further factual evidence if city council finds the record to be incomplete; or

(4) Overturn the debarment order and take no action against the contractor.

(b) The decision of city council shall be final and exhausts all administrative remedies.

(c) The city secretary shall notify the contractor in writing of city council's decision. The CPO shall maintain the record of all debarred contractors and shall publish the list on the city's website.
(Ord. No. 2015-668, § 5(Exh. C), 7-8-2015)

Sec. 15-107. Period of debarment; reinstatement.

(a) The period for debarment shall be commensurate with the seriousness of the cause or causes therefor, but in no case shall the period exceed five years.

(b) A debarred contractor may petition for reinstatement after one-half the period of debarment has passed by making written request to the CPO pursuant to the debarment regulations promulgated by the CPO.
(Ord. No. 2015-668, § 5(Exh. C), 7-8-2015)

Sec. 15-108. Effect of debarment order.

(a) Debarment of a contractor constitutes a finding under section 252.043(a) of the Texas Local Government Code that the contractor is not responsible and operates as the city's rejection of any bid submitted by the contractor during the debarment period. The CPO or designee shall return a debarred person's bid and bid bond immediately after bids are opened without requirement of any further action.

(b) When making a debarment decision, the CPO shall take into consideration whether the debarment affects any contract or subcontract existing at the time of the debarment decision.
(Ord. No. 2015-668, § 5(Exh. C), 7-8-2015)

Sec. 15-109. Application of remedies.

The provisions of this article are in addition to any other rights or remedies available to the city in connection with the award of any contracts to disqualify bidders who are not responsible, regardless of whether they have been so declared hereunder. This right extends but is not limited to declining to award contracts to bidders who have the same or substantially the same officers, owners, or managers as debarred contractors.
(Ord. No. 2015-668, § 5(Exh. C), 7-8-2015)

Sec. 15-110. Effect on other ordinances.

A debarred contractor is not eligible for certification under articles IV, V, or VI of this chapter. Debarment shall have the effect of terminating any certification thereunder.
(Ord. No. 2015-668, § 5(Exh. C), 7-8-2015)

Secs. 15-111—15-120. Reserved.

ARTICLE VIII. CITY CONTRACTS; INDEBTEDNESS TO CITY*

Sec. 15-121. Policy.

(a) Except as provided in section 15-125 of this Code or subsection (b) of this section, no contract shall be let, nor any other business transaction entered into, by the city with any contracting entity that is indebted to the city or whose owner is indebted to the city, if the contract or transaction comes within the provisions of section 15-1(c) of this Code. No city contract shall be amended or extended if the contracting entity or any owner thereof has become indebted to the city since the inception of the contract unless such indebtedness is fully paid prior to any council action to amend or extend such contract.

(b) Exception. Subsection (a) of this section shall not apply to any contract if prohibited by the provisions of Chapter 252, Texas Local Government Code (as the same may be amended from time to time), or by any other applicable state or federal law, rule or regulation restricting the power of the city to promulgate the policy set forth herein; provided however, that when a contract or other business matter that requires council action is placed before city council, regardless of the applicability of subsection (a), the city council shall be notified in writing whether a proposed contracting entity or owner thereof, if applicable, is indebted to the city.
(Ord. No. 2015-929, § 2, 9-30-2015)

Sec. 15-122. Definitions.

The following terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Contracting entity means a person, whether acting as an individual or operating as a sole proprietorship, corporation, non-profit corporation, partnership, joint venture, limited liability company, or other entity, regardless of the form of its organization, that seeks to enter into a contract that requires approval by the city council, but shall exclude governmental entities.

Controller means the city controller.

Debt means any delinquent sum of money in an amount greater than $100.00 levied, imposed or assessed against any contracting entity, or owner thereof, by the city for ad valorem taxes on real or personal property located within the boundaries of the city.

Debtor means a contracting entity, or owner thereof if the contracting entity is other than a person doing business as an individual or sole proprietorship, that owes a debt to the city, as shown by city or other governmental records.

Delinquent means past due, unpaid and no longer subject to challenge, protest or appeal, as those processes are described in the Texas Tax Code.

Indebted means owing a debt to the city, without regard to ability or inability to pay the same, where the amount is delinquent, provided that a debtor who remains current on all obligations of an installment agreement executed by the debtor regarding a debt shall not be deemed indebted for purposes of this article.

Initiating director means the director of the department responsible for a matter that is intended to, or does, result in the making of a contract or entry into another business transaction between a contracting entity and the city.

Owner means, with respect to a contracting entity, an individual contractor in his or her own name or as a sole proprietorship, and as to a contracting entity other than an individual or person operating as a sole proprietorship, any person who owns ten percent or more thereof, or, in the case of a non-profit corporation, any officer of the non-profit corporation.
(Ord. No. 2015-929, § 2, 9-30-2015)

*__Editor's note__—Ord. No. 2015-929, § 2, adopted September 20, 2015, amended Ch. 15, Art. VIII, in its entirety to read as herein set out. Formerly said article pertained to similar subject matter and derived from Ord. No. 2013-428, § 10(Exh. A) 5-8-2013.

Sec. 15-123. Determination of indebtedness; procedure.

(a) All bids, proposals, or other information submitted to the city in connection with any proposed contract, transaction, project or matter shall include a commitment that the contracting entity shall comply with this article. Contracts awarded without the submission of a bid or proposal, including but not limited to contracts for engineering and architectural services, shall be subject to this section and shall not be finally approved by the city council until a determination as to any indebtedness of the contracting entity or any owner thereof to the city has been made as provided in this section. The controller shall prescribe the information that shall be required from contracting entities.

(b) Any failure to submit information required by subsection (a) shall constitute grounds for rejection or non-consideration of such bid, proposal or other submission. It shall be the duty of the initiating director to ascertain that the requisite ownership information has been submitted and signed.

(c) Upon the initiating director's determination of the contracting entity to be recommended for the award of a contract, information regarding ownership of the contracting entity submitted by such entity shall be promptly forwarded by the initiating director to the controller.

(d) Before a contract is submitted to city council for approval, the controller shall immediately investigate whether the recommended contracting entity or any owner thereof is indebted to the city and, if so, determine insofar as possible with the information provided, whether such indebtedness is then under active protest, challenge or appeal by such debtor. The controller shall maintain a log of all received information forms and, at least weekly, forward a copy of such log to the city's delinquent tax collection firm or other third party of the controller's choosing, to assist the controller in identifying debts owed the city and determine the amount of any debt due the city.

(e) Promptly after receipt of the report of the delinquent tax collection firm, or other third party, the controller shall certify in writing to each initiating director whether, based on the best information available, a recommended contracting entity is indebted to the city and, if so, the amount of such debt. The initiating director shall immediately forward a copy of the controller's certificate or report to each affected contracting entity, together with the telephone number of the delinquent tax collection firm, a contact in the controller's office, or the alternate third party source of information, by which a debtor may confirm the information in such record or file an appeal under section 15-124 of this Code. The controller's certificate will be deemed to have been received by the contracting entity within three business days after its deposit in the U.S. mail by the initiating director.

(f) Should the controller fail to produce the certificate required by subsection (e) within ten business days from receipt of an ownership information form, the affected contracting entity and all owners thereof will be deemed not to be indebted to the city for purposes of this article only.

(g) The controller's certificate or report shall be valid only until the first of March next following its date of issue. A subsequent award to the same contracting entity during the time that the controller's certificate or report remains valid may be based on the controller's certificate or report. A subsequent award to the same contracting entity after the first of March of each calendar year is subject to all of the requirements of this section.

(h) If the debt shown in the controller's certificate or report is paid, the receipt or other written proof of payment shall be delivered to the controller who shall immediately issue a new certificate or report to the initiating director confirming such payment.

(i) When an award or other transaction is ready to be submitted to city council for action, the initiating director shall forward to the city secretary the controller's certificate or report, or the resolution of any appeal and related information as provided in sections 15-123 and 15-124 of this Code.

(j) The certificates or reports of the controller provided for in this section shall be made available to council members who request them.
(Ord. No. 2015-929, § 2, 9-30-2015)

Sec. 15-124. Appeal.

Any debtor shall have the right to appeal the controller's certificate or report under section 15-123(e) of this Code by filing a written statement with the delinquent tax collection firm.
(Ord. No. 2015-929, § 2, 9-30-2015)

Sec. 15-125. Exceptions.

(a) The policy and procedures set forth in this article do not apply in the following instances:

(1) Public emergency or calamity.

(2) Purchase of goods or services available only from a single source, including the lease of any personal property or equipment by the city.

(3) Circumstances in which the amount of the indebtedness is insignificant in relation to the economic or other benefit or harm that may result from the application of the policy.

(4) Pending bankruptcy of an indebted owner or contracting entity.

(5) Concluded bankruptcy of an indebted owner or contracting entity in which the debt was legally discharged.

(6) Memberships purchased by the city.

(7) Condemnation awards.

(8) Property acquisitions, including the lease of any real property to or by the city, excluding any lease of city-owned property below fair market rental.

(9) Purchase of property, casualty or other insurance by the city.

(10) Banking or other depository contracts.

(b) This policy may also be waived as to other matters where city council deems it to be in the city's interest.
(Ord. No. 2015-929, § 2, 9-30-2015)

Secs. 15-126—15-140. Reserved.

ARTICLE IX. RESERVED

Secs. 15-141—15-150. Reserved.

ARTICLE X. CONTRACTOR EMPLOYEE CLASSIFICATION

Sec. 15-151. Declaration of policy; exclusions

(a) It is the policy of the city to encourage fair competition for city contracts by requiring all contractors to comply with applicable employment laws, statutes and ordinances. It is city policy to prevent any unfairness or inequity for contractors who comply with applicable employment laws.

(b) It is the policy of the city to place an affirmative duty on contractors to demonstrate compliance with all employment laws, statutes and ordinances.

(c) Contractors awarded contracts for professional services, as defined in § 2254.002 of the Texas Government Code, are excluded from the requirements of this article.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-152. Definitions.

The words and phrases defined in this section shall have the meanings ascribed when used in this article, unless the context clearly indicates another meaning.

Contractor means any person or legal entity providing goods, labor, or services to the city by contract for profit and their agents.

Independent contractor means a person performing work for a contractor under a city contract for whom the contractor has the right to control or direct only the result of the work and not the means and methods of accomplishing the result, or a person the Internal Revenue

Service has determined is an independent contractor for purposes of federal employment taxes and income tax withholding.

(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-153. Records regarding classification.

(a) A contractor must maintain a list of all persons performing work under a city contract classifying each person as either an employee or independent contractor, including a description of each person's duties and any benefits provided, and produce a copy of the list upon request of the city.

(b) A contractor must produce a copy of the Internal Revenue Service Form 1099-Misc. for each independent contractor performing work under a city contract upon request of the city.

(c) A contractor must produce a copy of any written contract or agreement describing the relationship with each independent contractor performing work under a contract with the city upon request of the city.

(d) A contractor must submit to the Internal Revenue Service an SS-8 "Determination of Worker Status for Purposes of Federal Employment Tax and Income Tax Withholding" for any person classified as an independent contractor upon request of the city.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-154. Violation of article.

It is unlawful for a contractor to fail to maintain, fail to produce or fail to submit the records, documents or forms required by this article.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-155. Presumption.

Any person performing work for a contractor under a city contract who is not classified as an independent contractor on the list required by this article, and who has not been provided a 1099-Misc. form as required by this article, and with whom a written contract or other agreement describing the relationship with the person does not exist, is presumed to be an employee of the contractor.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-156. Debarment.

Failure to comply with the terms of this article constitutes grounds for debarment as defined in article VII of this Code.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013; Ord. No. 2015-668, § 6, 7-8-2015)

Sec. 15-157. Penalty.

A violation of this article is a misdemeanor criminal offense and is punishable pursuant to section 1-6 of this Code.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Secs. 15-158—15-174. Reserved.

ARTICLE XI. HIRE HOUSTON FIRST

Sec. 15-175. Declaration of policy.

(a) It is the policy of the city to use the city's spending powers in a manner that promotes fiscal responsibility and maximizes the effectiveness of local tax dollars by ensuring a portion of citizens' tax dollars remain in the local economy for economic benefit of the citizens by utilizing all available legal opportunities to contract with city and/or local businesses.

(b) It is the policy of the city to place an affirmative duty on city departments to grant a preference to city and/or local businesses unless doing so would be clearly contrary to the best interests of the city.

(c) It is the policy of the city to achieve the policy goal in subsection (a) above by utilizing all permissible tools.

(d) Nothing in this article prohibits the city from rejecting all bids.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-176. Definitions.

The following words and phrases, when used in this article, have the meanings provided in this section:

Bid means any procurement method governed by the Texas Local Government Code, Title 8, Acquisition, Sale or Lease of Property, or as it may be amended.

City business means a business with a principal place of business within the city limits.

Local area means the Houston-Sugar Land-Baytown metropolitan statistical area, as defined by the Office of Management and Budget within the Executive Office of the President of the United States.

Local business means a business with a principal place of business in the local area.

Principal place of business means the business must be either: (1) headquartered in the

incorporated limits of the city or the local area, as applicable; or (2) have an established place or places of business in the incorporated limits of the city or the local area from which 20% or more of the entity's workforce are regularly based, and from which a substantial role in the entity's performance of a commercially useful function or a substantial part of its operations is conducted. A location utilized solely as a post office box, mail drop or telephone message center or any combination thereof, with no other substantial work function, shall not be construed as a principal place of business.

(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-177. Hire Houston First Program—Purchases of personal property.

(a) *Contracts of $100,000.00 or more.* In purchasing any personal property that is not affixed to real property, if the city receives one or more bids from a bidder that is a city business and whose bid is within three percent of the lowest bid price received by the city from a bidder who is not a city business, the city shall, subject to the provisions of section 15-181, enter into a contract with a value of $100,000.00 or more with:

(1) The lowest bidder; or

(2) The bidder that is a city business, as defined in this article.

(b) *Contracts under $100,000.00.* In purchasing any personal property that is not affixed to real property, if the city receives one or more bids from a bidder that is a city business and whose bid is within five percent of the lowest bid price received by the city from a bidder that is not a city business, the city shall, subject to the provisions of section 15-181, enter into a contract for an expenditure of less than $100,000.00 with:

(1) The lowest bidder; or

(2) The bidder that is a city business, as defined in this article.

(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-178. Hire Houston First Program—Purchases of services.

(a) In procuring services, including construction services, the contracting department shall, subject to the provisions of section 15-181, grant a preference to a local business. In no event shall a contract for services be granted to a local business that is not within:

(1) Five percent of the lowest bidder for contracts under $100,000.00; or

(2) Three percent of the lowest bidder for contracts of $100,000.00 or more.

(b) In procuring architectural, engineering or land surveying services under the Professional Services Procurement Act, Tex. Gov't. Code, § 2254.004, the contracting department shall, when appropriate, consider knowledge of local conditions as part of the qualifications determination.

(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-179. Hire Houston First Program—Purchases under $50,000.00.

Subject to Texas Government Code § 2254.004, when procuring goods or services valued at less than $50,000.00 that are not the subject of a blanket purchase order or contract, the city shall, subject to the requirements of section 15-181, select vendors and services providers with a principal place of business in the local area, provided that any such vendor's bid is no more than five percent greater than the lowest bid, in the event the lowest bid is from one other than a city business or a local business.

(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-180. Hire Houston First Program—Responsibilities and enforcement.

(a) The Mayor's Office for Business Opportunities (MOBO) shall be responsible for establishing the documentation necessary to establish a principal place of business in the city or local area. Any entity claiming to be a local business shall submit to the city a form promulgated by the

MOBO, attested to by a duly authorized representative of the business. The MOBO shall make the final determination as to whether a business is a local business.

(b) Department directors shall maintain written records of all departmental actions under this program. Departments are charged with primary responsibility for monitoring their contracts for compliance with the program.

(c) The contracting or evaluating department shall award additional points to a local business in any bid based on a "best value" evaluation.

(d) The strategic purchasing division ("SPD") and MOBO, in consultation with the legal department, are directed to provide written guidance, including guidance on best value bids, to departments for implementing this article. Such guidance shall include a preference structure that grants the highest number of points to a city business, the next higher number of points to a local business, and no points to a business located outside of the city or local area.

(e) The submission of a form pursuant to subsection (a) above found to contain false information is grounds for debarment per section 15-103(1)(c) of this Code.

(f) The MOBO shall produce semi-annual reports, commencing July 1, 2012, summarizing the dollar amount of procurements awarded to city businesses and local businesses under this program.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

Sec. 15-181. Hire Houston First Program—Exceptions.

(a) This program does not apply to any contract in which the federal government participates in the form of a grant or loan, or the city acts as a conduit for federal money.

(b) This program does not apply to contracts in which the contracting department has determined that it would unduly interfere with contract needs. In cases of purchases over $100,000.00, such determination shall be made in writing, expressly approved by the department director, and furnished in advance to the MOBO.

(c) In accordance with Local Government Code § 271.9051, this program does not apply to the purchase of telecommunications services or information services, as those terms are defined by 47 U.S.C. Section 153.

Sec. 15-182. Hire Houston First Program—Effective date.

This article shall be effective as to solicitations for procurements published on or after September 1, 2011.
(Ord. No. 2013-428, § 10(Exh. A), 5-8-2013, eff. 7-1-2013)

ARTICLE XII. VETERAN-OWNED BUSINESS ENTERPRISES

Sec. 15-183. Declaration of policy.

(a) It is the policy of the city to stimulate the growth of local veteran-owned small businesses, including service-disabled veteran-owned small businesses, by encouraging the full participation of such businesses in all phases of its procurement activities and by affording them a full and fair opportunity to compete for all city contracts. The purposes and objectives of this article are:

(1) To increase the utilization of local VOSB enterprises to provide goods and services; and

(2) To provide opportunities for local VOSB enterprises to broaden and enhance their range of capacities; and

(3) To increase opportunities for local VOSB enterprises to serve as contractors for the supply of goods and services to the city, in addition to acting as subcontractors to others.

(b) This article is intended to be remedial in nature and to continue only until its purposes and objectives are met as determined by regular periodic reviews.

(c) This article is not intended to duplicate, supplement or overlap in any fashion any state or federal program providing aid or assistance to veterans, or to entities that aid or assist veterans, with respect to rehabilitation, employment, job training, housing, economic or medical assistance and shall be construed and applied in a manner entirely separate from and independent of any such state or federal program.
(Ord. No. 2025-378, § 17(Exh. A), 5-7-2025)

Sec. 15-184. Definitions.

(a) The following words and phrases, when used in this article, shall have the meanings provided in this section, unless the context clearly indicates another meaning.

Armed Forces means the United States Army, Navy, Air Force, Marine Corps, or Coast Guard.

Disabled veteran means an individual who served on active duty in the armed forces, separated from the Armed Forces under honorable conditions, and has a disability rating letter issued by the Department of Veterans Affairs establishing a service-connected disability rating between zero and one-hundred percent, or a disability determination from the Department of Defense.

Owned, controlled and managed means that the one or more veterans who own the requisite interests in or assets of a business applying for veteran-owned small business certification possesses equivalent incidents of such ownership, including an equivalent interest in profit and loss, and has contributed an equivalent percentage of capital and equipment to the business. Contributions of capital and equipment must be real and substantial. In instances where expertise is relied upon to demonstrate ownership, control, and management, it must be shown that the expertise is: (1) in a specialized field; (2) in an area(s) critical to the firm's operation and performance of a commercially useful function; (3) critical to the firm's continued success; and (4) documented in the records of the firm, including but not limited to documentation showing the particular expertise and its value to the firm. Additionally, the individual whose expertise is relied upon must have a significant financial investment in the business. Ownership shall be measured as though not subject to the community property interest of a spouse, if both spouses certify in writing that the nonparticipating spouse relinquishes control over his or her community property interest in the subject business (but by doing so is not required to transfer to his or her spouse his or her community property ownership interest or to characterize the property as the separate property of the spouse). The one or more VOSB owners shall have recognized, ultimate control over all day-to-day business decisions affecting the VOSB and shall hold a title commensurate with such control. Such ultimate control shall be known to and at least tacitly acknowledged in day-to-day operations by employees of the business.

Service-Disabled Veteran, as defined in 13 CFR §128.102, as amended, is a veteran who is registered in the Beneficiary Identification and Records Locator Subsystem or successor system, maintained by Department of Veterans Affairs' Veterans Benefits Administration as a service-disabled veteran.

Service-Disabled Veteran-owned small business or *SDVOSB* means, as found in 13 CFR Part 128, as amended, a SBE that is not less than fifty-one (51) percent owned, controlled and managed by one or more service-owned veterans, or in the case of any publicly owned business, not less than fifty-one (51) percent of the stock of which is owned by one or more service-disabled veterans.

Small business enterprise or *SBE* means a firm whose gross revenues or number of employees, averaged over the past three years, inclusive of any affiliates as defined by 13 CFR Section 121.103, does not exceed the size standards defined in Section 3 of the Federal Small Business Act and applicable Small Business Administration regulations related to the size standards found in 13 CFR Part 121. The term shall also include a certified VOSB defined in this Code.

Veteran, as defined in 13 CFR Part 128, as amended, is a person who served on active duty with the Armed Forces for any length of time and at any place and who was discharged or released under conditions other than dishonorable. Reservists or members of the National Guard called to federal active duty or disabled from a disease or injury incurred or aggravated in line of duty or while in training status also qualify as a veteran.

Veteran-owned small business or *VOSB* means, as found in 13 CFR Part 128, as amended, a SBE that is not less than fifty-one (51) percent owned, controlled and managed by one or more veterans, or in the case of any publicly owned business, not less than fifty-one (51) percent of the stock of which is owned by one or more veterans.

(b) See section 15-82 of this Code for additional definitions.
(Ord. No. 2025-378, § 17(Exh. A), 5-7-2025)

Sec. 15-185. Program elements.

(a) Unless expressly excepted under this article, all elements, requirements and procedures of the MWSBE program set forth in article V of this chapter, including, without limitation, applicable definitions, reporting requirements, goal-setting procedures, city department procedures, exceptions, contract and participation provisions, plan filing requirements, sanctions and established business enterprise provisions, are hereby adopted and incorporated as if fully set forth herein and shall be applied to VOSBs and SDVOSBs, in the same manner as to MWSBEs. In addition, the office of business opportunity may set a preference or contract-specific goals for VOSBs and SDVOSBs.

(b) The office of business opportunity (OBO) has responsibility for establishing procedures for the VOSB program consistent with the directives set forth under section 15-84 of this Code for the MWSBE program; provided, that the office of business opportunity may simplify, condense or modify reporting and monitoring responsibilities consistent with the anticipated lower volume of VOSB contracts in the interest of administrative efficiency.

(c) All procedures established under this section shall be reviewed and approved by the city attorney prior to implementation. A copy of all procedures established hereunder shall be maintained in the office of business opportunity for inspection, and copies may be purchased at the fees prescribed by law.
(Ord. No. 2025-378, § 17(Exh. A), 5-7-2025)

Sec. 15-186. Certification.

(a) The OBO director shall establish a methodology for certification as a VOSB and SDVOSB and provide for such certification in the office of business opportunities polices and procedures. The city may rely on a party's inclusion in the dataset of VOSBs and SDVOSBs maintained by the U.S. Small Business Administration, or certification by another public or private entity that uses similar certification procedures.

(b) The OBO shall make the final determination as to whether a business is a VOSB or SDVOSB.

(c) The submission of documentation by a person or business entity that is required to establish status as a VOSB or SDVOSB that is found to contain false information is grounds for suspension or debarment.
(Ord. No. 2025-378, § 17(Exh. A), 5-7-2025)

Sec. 15-187. Purchases of personal property.

(a) Contracts of $100,000.00 or more. In purchasing any personal property that is not affixed to real property, if the city receives one or more bids from a bidder that is a VOSB or SDVOSB and whose bid is within three percent of the lowest bid price received by the city from a bidder who is not a VOSB or SDVOSB, the city shall, subject to the provisions of section 15-98, enter into a contract with a value of $100,000.00 or more with:

(1) The lowest bidder; or

(2) The bidder that is a VOSB or SDVOSB, as defined in this article.

(b) Contracts under $100,000.00. In purchasing any personal property that is not affixed to real property, if the city receives one or more bids from a bidder that is a VOSB or SDVOSB and whose bid is within five percent of the lowest bid price received by the city from a bidder that is not a VOSB or SDVOSB, the city shall, subject to the provisions of section 15-98, enter into a contract for an expenditure of less than $100,000.00 with:

(1) The lowest bidder; or

(2) The bidder that is a VOSB or SDVOSB, as defined in this article.

(Ord. No. 2025-378, § 17(Exh. A), 5-7-2025)

Sec. 15-188. Purchases of services.

(a) In procuring services, including construction services, the contracting department shall, subject to the provisions of section 15-98 and subject to Texas Government Code § 2254.004, grant a preference to a VOSB or SDVOSB. In no event shall a contract for services be granted to a VOSB or SDVOSB that is not within:

(1) Five percent of the lowest bidder for contracts under $100,000.00; or

(2) Three percent of the lowest bidder for contracts of $100,000.00 or more.

(Ord. No. 2025-378, § 17(Exh. A), 5-7-2025)

Sec. 15-189. Purchases under $50,000.00.

Subject to Texas Government Code § 2254.004, when procuring goods or services valued at less than $50,000.00 that are not the subject of a blanket purchase order or contract, the city shall, subject to the requirements of section 15-98, select VOSB or SDVOSB provided that any such vendor's bid is no more than five percent greater than the lowest bid, in the event the lowest bid is from one other than VOSB or SDVOSB.

(Ord. No. 2025-378, § 17(Exh. A), 5-7-2025)

Sec. 15-190. Responsibilities and enforcement.

(a) OBO shall be responsible for the certification of a business as a VOSB or SDVOSB in accordance with Section 15-93.

(b) Department directors shall maintain written records of all departmental actions under this program. Departments are charged with primary responsibility for monitoring their contracts for compliance with the program.

(c) The contracting or evaluating department shall award additional points to a VOSB or SDVOSB in any bid based on a "best value" evaluation.

(d) The strategic purchasing division ("SPD") and OBO, in consultation with the legal department, are directed to provide written guidance, including guidance on best value bids, to departments for implementing this article. Such guidance shall include a preference structure that grants the highest number of points to a VOSB or SDVOSB and no points to a business that is not a VOSB or SDVOSB.

(e) The submission of a form pursuant to subsection (a) above found to contain false information is grounds for debarment per section 15-103(1)(c) of this Code.

(f) The OBO shall produce semi-annual reports, commencing January 1, 2026, summarizing the dollar amount of procurements awarded to VOSB or SDVOSB under this program.

(Ord. No. 2025-378, § 17(Exh. A), 5-7-2025)

Sec. 15-191. Exceptions.

(a) This program does not apply to any contract in which the federal government participates in the form of a grant or loan, or the city acts as a conduit for federal money.

(b) This program does not apply to contracts in which the contracting department has determined that it would unduly interfere with contract needs. In cases of purchases over $100,000.00, such determination shall be made in writing, expressly approved by the department director, and furnished in advance to the OBO.

(Ord. No. 2025-378, § 17(Exh. A), 5-7-2025)

Sec. 15-192. Effective date.

This article shall be effective as to solicitations for procurements published on or after July 1, 2025.
(Ord. No. 2025-378, § 17(Exh. A), 5-7-2025)

Chapter 16

MUNICIPAL COURTS*

Art. I.	**In General, §§ 16-1—16-20**
Art. II.	**Clerk, §§ 16-21—16-40**
Art. III.	**Practice and Procedure, §§ 16-41—16-60**
Art. IV.	**Adjudication of Parking Citations, §§ 16-61—16-68**

ARTICLE I. IN GENERAL

Sec. 16-1. Municipal courts department created; director.

(a) There is hereby created the municipal courts department of the city.

(b) The presiding judge of the municipal courts shall be appointed and designated by the mayor and city council from among the municipal courts judges.

(c) The presiding judge shall be the director of the municipal courts department and shall perform the duties of that office as provided by law and as assigned by the mayor and city council.
(Ord. No. 00-325, § 1, 4-26-00; Ord. No. 2010-740, §§ 2, 3, 9-22-2010)

Sec. 16-2. Courts created; jurisdiction.

(a) There are hereby created 30 municipal courts of record of the city to be designated as municipal courts of record numbers 1 through 30.

(b) The municipal courts of record shall have the full extent of jurisdiction provided in any manner by general law for municipal courts including, but not limited to, jurisdiction over criminal cases arising from city ordinance violations within the territorial limits of the city and to the extent provided by state law jurisdiction for violations of city ordinances arising outside of the territorial limits of the city. The municipal courts of record shall have concurrent jurisdiction with a justice court in any precinct in which the city is located in criminal cases that arise within the territorial limits of the city and are punishable by fine only. The municipal courts of record may also issue writs, warrants and other process as authorized by the general laws of the state.
(Ord. No. 00-325, § 1, 4-26-00; Ord. No. 2013-1143, § 2, 12-11-2013)

Sec. 16-3. Judges.

(a) The city shall have both full-time and substitute municipal judges. A substitute municipal judge shall be classified as an "Associate Judge of Municipal Courts."

(b) Each municipal judge shall meet the qualifications for that office that are prescribed by state law. Additionally, each municipal judge shall at the time of appointment and qualification be required to be a resident of the city.

(c) Each full-time municipal judge shall be appointed by the mayor and confirmed by the city council for a term of four years, which term shall begin as of the date the appointment is confirmed by the city council. Each substitute judge shall be appointed by the mayor and confirmed by the city council for a term of two years, which term shall begin as of the date the appointment is confirmed by the city council. A municipal judge shall continue in office after his term has expired until he is reappointed or his successor has been appointed and qualified; provided, that no holdover period, regardless of duration, shall ever be deemed a reappointment of any municipal judge. If an office becomes

*__Editor's note—__Ord. No. 00-325, § 1, adopted April 26, 2000, amended Ch. 16 in its entirety. Formerly, said chapter pertained to similar subject matter. See the Code Comparative Table.

__Charter reference—__Corporation court, Art. II, § 13.

__Cross references—__General penalty for violation of code, § 1-6; officers and employees generally, § 2-21 et seq.; charge for records of municipal court, § 2-97, prisoners and prison farms, Ch. 35; payment of fine to compound attendant, § 45-207.

vacant during a term, then a qualified person shall be appointed and confirmed to the completion of the unexpired term.

(d) Municipal judges shall be subject to removal from office as provided by state law.

(e) Full-time municipal judges shall be entitled to compensation as provided or authorized by ordinance. Substitute municipal judges shall be compensated on a per diem basis for services rendered, as provided in section 16-5 of this Code.
(Ord. No. 00-325, § 1, 4-26-00; Ord. No. 05-340, § 2, 4-6-05; Ord. No. 09-510, § 3, 6-10-09; Ord. No. 2015-1301, § 2, 12-15-2015, eff. 12-22-2015)

Sec. 16-4. Numbers of judges.

The numbers of municipal judges, both full-time and substitute, shall be as established from time to time in the master classification ordinance. For the sake of control of their terms, the judges may be assigned position numbers. However, all municipal judges, both full-time and substitute, shall be subject to assignment to serve from time to time in any of the municipal courts of record by the presiding judge, as provided by the general laws of the state.
(Ord. No. 00-325, § 1, 4-26-00)

Sec. 16-5. Assignment and compensation of substitute judges.

Substitute municipal judges shall be assigned to the municipal courts of record as and when needed on a temporary basis by the presiding judge, as authorized by state law. Substitute judges shall be compensated on a daily basis for those days upon which they perform services as directed by the presiding judge. The compensation shall be an amount equal to the minimum daily amount payable to a full-time municipal judge as computed on a daily basis. The compensation shall be payable in accordance with a procedure established by the presiding judge and the city controller, provided that the presiding judge shall in each instance certify that the service was requested and performed before any compensation is paid.
(Ord. No. 00-325, § 1, 4-26-00)

Sec. 16-6. Court facilities.

The mayor and city council shall provide court rooms, offices, furniture, law books, and other facilities and supplies as they deem necessary for the proper operation of the municipal courts of record.
(Ord. No. 00-325, § 1, 4-26-00)

Sec. 16-7. Reporter.

The record of proceedings in each of the municipal courts of record shall be preserved by a court reporter who shall meet the qualifications provided by law and shall be employed by the city as provided by law.
(Ord. No. 00-325, § 1, 4-26-00)

Sec. 16-8. Child safety fund.

(a) Pursuant to section (a) of article 102.014, Texas Code of Criminal Procedure there is hereby assessed a fine on each parking violation. The fine shall be assessed on every violation to which it appertains under the provisions of the state law.

(b) There is hereby created within the treasury of the city a fund to be designated as the child safety fund. The fund shall consist of those fees and fines that are payable into the fund as provided in section 106.002 of the Texas Local Government Code.

(c) In connection with the annual fiscal year city budget process, or an amendment thereto, the monies expected to be available in the fund shall be appropriated for the purposes provided by section 106.003 of the Texas Local Government Code in accordance with the following procedures and policies:

(1) Provisions for the services of school crossing guards shall be the first priority for expenditure of the fund. No monies shall be appropriated from the fund for administrative expenses as allowed by section 343.013 of the Texas Local Government Code or for other child services as provided by section 106.003(b) of the Texas Local Government Code, unless a surplus of funding exists after school crossing guard services have been funded.

(2) The chief of police or his designee shall annually designate a period during which applications will be received from public, parochial or private elementary or secondary schools for funding of school crossing guard services contracts during the next school year. Notice shall be provided by mailing a copy to the superintendent's office of each public school district having one or more schools in the city, by mailing a copy to each private and parochial school in the city that has its name and address available through a listing provided to the public by the Texas Education Agency and by publishing notice one time in a newspaper of general circulation. In the notice, the chief of police or his designee shall specify a date for the receipt of applications and specify the place where information may be obtained regarding the form in which they shall be provided. The chief of police may issue rules and regulations for the submission of applications and the determination of allowable service costs for personnel and equipment reimbursements hereunder.

(3) It is the policy of the city council to rely upon the traffic safety recommendations of school districts for public schools and school administrators for other schools in determining the need for school crossing guard services. Each application shall include justification for funding of each crossing location that is requested therein, including a description of street conditions, traffic levels, street use, expected student crossing use and related safety data, which shall be provided by the chief traffic safety official of school districts and by the principal of schools not operated by school districts. Subject to the priorities of funding set forth in item (4), below, the chief of police or his designee shall recommend each application that is timely filed in proper form for the issuance of a funding contract by the city council. In the event that the city council questions the appropriateness of a recommendation, then the matter may be referred by city council to the traffic engineer.

(4) Monies shall be disbursed from the fund to reimburse costs of providing paid school crossing guards at schools. No school district or school shall be reimbursed an amount greater than its actual service costs as computed in accordance with the rules and regulations adopted under item (2), above. To the extent that the monies available in the fund are insufficient to cover the costs of school crossing guards at both elementary schools and secondary schools, then funding shall be first applied to cover the full costs of elementary school crossing guards. To the extent that the monies available in the fund are insufficient to cover the full allowable costs of all elementary school crossing guards for which applications are timely filed and approved, then the available money in the fund shall be apportioned equally on the basis of the total number elementary school crossings within the city for which a funding application was timely filed and approved. In the event that the monies available in the fund are sufficient to pay the full costs of elementary school crossing guard services and only a portion of the costs of secondary school crossing guard services, then the funds remaining after full payment of the elementary school crossing guard services shall be equally apportioned for secondary school crossing guard services in the same manner provided above.

(d) All funding for school crossing guards for public schools under this section shall be made available through the school district that operates the school. Private and parochial schools funding shall be provided to the school. Funding shall be made available in quarterly reimbursements upon contracts and a schedule to be established by the chief of police, who may require proof that the services were or are being actually provided. All expenditures of the city under this section for contracts issued or other obligations assumed shall be expressly limited to the monies available in the fund.

(Ord. No. 00-325, § 1, 4-26-00; Ord. No. 08-52, § 46, 1-16-08, eff. 1-26-08; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2020-1, § 2, 1-8-2020)

Sec. 16-9 Juvenile case managers; local youth diversion fund.

(a) As authorized by article 45.056 of the Texas Code of Criminal Procedure, as approved by city council, the municipal courts department may employ a juvenile case manager to perform the duties contemplated in subsections (a) and (c) of article 45.056.

(b) As required by article 45.056, the city council has adopted rules for juvenile case managers, which are set forth in Exhibit A to Ordinance No. 2011-993 and specifically include a code of ethics with an enforcement procedure, educational pre-service and in-service training standards, and the training described in article 45.056.

(c) As required by article 45.056, the presiding judge, on behalf of the municipal courts department, shall implement the rules adopted by the city council.

(d) As authorized by sections 134.151 and 134.156 of the Texas Local Government Code, there is hereby created a local youth diversion fund, which shall consist of the portion of the local consolidated fee allocated to the fund in section 134.103 of the Texas Local Government Code. The fund shall be administered under the direction of city council and may only be used to finance the salary, benefits, training, travel expenses, office supplies, and other necessary expenses relating to the position of a juvenile case manager employed under article 45.056.
(Ord. No. 07-1297, § 1, 11-28-07; Ord. No. 2010-740, § 2, 9-22-2010; Ord. No. 2011-993, § 2, 11-16-2011; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2020-1, § 3, 1-8-2020; Ord. No. 2023-909, § 2, 11-1-2023)

Sec. 16-10. Municipal courts building security fund.

(a) As authorized by article 102.017 of the Texas Code of Criminal Procedure, there is hereby created a municipal courts building security fund.

(b) The fund created in subsection (a) shall consist of the portion of the local consolidated fee allocated to the fund in section 134.103 of the Texas Local Government Code. The fund shall be administered under the direction of the city council and may only be used to finance security equipment and services for buildings that house a municipal court as more particularly provided by article 102.017(b).
(Ord. No. 00-325, § 1, 4-26-00; Ord. No. 04-682, § 9a, 6-23-04; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2020-1, § 4, 1-8-2020)

Sec. 16-11. Municipal court security officers.

(a) There is hereby created the classification of municipal court security officer within the civil service system established under article Va of the City Charter.

(b) Municipal court security officers shall perform duties relating to the orderly and efficient administration of the municipal courts consistent with the directives of the presiding judge.

(c) Municipal court security officers shall not be peace officers, nor shall they be regarded as police officers or as municipal courts marshals. Furthermore, they shall not be entitled to classification under chapter 143 of the Texas Local Government Code or any of the other benefits that are specially afforded to peace officers, police officers and city marshals under state laws and city ordinances.
(Ord. No. 00-325, § 1, 4-26-00; Ord. No. 04-797, § 1, 7-28-04; Ord. No. 2010-740, § 4, 9-22-2010)

Sec. 16-12. Secure area.

(a) In this section the following words and terms shall have the meanings ascribed to them in this subsection:

Secure area means any area within any building that houses a municipal court to which entry is controlled by use of a security system.

Security system means the magnetometers, x-ray devices, card-operated lock systems and related measures that may be installed and operated within any building that houses a municipal court to ensure that persons entering a secure area within the building do not have weapons in their possession.

(b) It shall be unlawful for any person to enter or to attempt to enter the secure area without fully complying with the provisions of the security system.

(c) It is a defense to prosecution under this section that the accused person is a peace officer of the city or that the accused person is a contractor, officer or employee of the city who holds a valid security system pass issued under rules promulgated by the presiding judge of the municipal courts for the operation of the security system.

(d) Violation of this section is declared to be unlawful and violations shall be punishable by a fine of not less than $100.00 nor more than $500.00 provided that any conduct that also constitutes a violation of state law shall be punishable as provided by state law.

(e) The presiding judge of the municipal courts may issue regulations pertaining to the installation and operation of security systems.
(Ord. No. 00-325, § 1, 4-26-00)

Sec. 16-13. Municipal court technology fund.

(a) As authorized by article 102.0172 of the Texas Code of Criminal Procedure, there is hereby created a municipal courts technology fund.

(b) The fund created in subsection (a) shall consist of the portion of the local consolidated fee allocated to the fund in section 134.103 of the Texas Local Government Code. The fund shall be administered under the direction of city council and may only be used to finance the purchase and maintenance of technological enhancements for the municipal courts of record as more particularly provided in article 102.0172(b).
(Ord. No. 00-325, § 1, 4-26-00; Ord. No. 03-943, §§ 1, 2, 10-15-03; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2020-1, § 5, 1-8-2020)

Sec. 16-14. Municipal jury fund.

(a) As authorized by Section 134.154 of the Texas Local Government Code, there is hereby created a municipal jury fund.

(b) The fund created in subsection (a) shall consist of the portion of the local consolidated fee allocated to the fund in section 134.103 of the Texas Local Government Code. The fund shall be maintained in the city treasury and may be used only to fund juror reimbursements and otherwise finance jury services, as provided in section 134.154 of the Texas Local Government Code.
(Ord. No. 2020-1, § 6, 1-8-2020)

Sec. 16-15. Local consolidated fee.

(a) A person convicted of a nonjailable misdemeanor offense, including a criminal violation of a municipal ordinance, shall pay a local consolidated fee in the amount dictated by section 134.103 of the Texas Local Government Code as a court cost, in addition to all other costs, on conviction. (b) The treasurer shall allocate the court costs received under this section as directed in section 134.103 of the Texas Local Government Code.
(Ord. No. 2020-1, § 6, 1-8-2020)

Secs. 16-16—16-20. Reserved.

ARTICLE II. CLERK

Sec. 16-21. Position created; appointment, term and duties.

(a) There is hereby created the position of clerk of the municipal courts, who shall be appointed by the presiding judge. The clerk of the municipal courts shall serve at the pleasure of the presiding judge.

(b) The clerk of the municipal courts shall be the official clerk for each of the municipal courts created in this chapter and shall discharge all of the duties attendant upon that position as prescribed by this chapter and the laws of the state and the charter and ordinances of this city; provided, however, that all of the duties shall be carried out under the direction and supervision of the presiding judge, and further provided that each respective municipal judge shall have control over the deputy clerk serving his or her court.

(c) The duties of the clerk of the municipal courts shall be, in part, to administer oaths and affidavits, make certificates, affix the seal of the courts thereto, keep minutes of the proceedings of the courts, issue all processes and to do generally and perform all things and acts usually or necessarily performed by clerks of courts in connection with the business thereof. He shall do and perform any additional duties as may be required of him by the city council.

(d) The clerk of the municipal courts also shall, under the direction and supervision of the presiding judge of the municipal courts, perform the following duties:

(1) Maintain a central docket for all cases filed in the municipal courts.

(2) Keep for the period required by law permanently all dockets, books, papers, and other records of the municipal courts and to make the records available for inspection at all reasonable times by any interested party.

(3) Maintain as part of the records of the municipal courts an index of municipal courts judgments.

(4) Where necessary for the proper functioning of the municipal courts, provide for the preservation by microfilm of the records of the courts.

(e) The duties of the clerk of the municipal courts shall include other duties as are prescribed by applicable law.
(Ord. No. 00-325, § 1, 4-26-00; Ord. No. 2010-740, § 2, 9-22-2010)

Sec. 16-22. Oath.

The clerk of the municipal courts shall be required to take an oath to faithfully perform the duties of the office.
(Ord. No. 00-325, § 1, 4-26-00; Ord. No. 2010-740, §§ 2, 5, 9-22-2010)

Sec. 16-23. Reports.

The clerk of the municipal courts shall make a daily report of all cases brought before the municipal courts, tried and dismissed, showing the number of each case, the name of the defendant, the nature of the offense and the reasons for the dismissal or acquittal.
(Ord. No. 00-325, § 1, 4-26-00; Ord. No. 2010-740, § 2, 9-22-2010)

Sec. 16-24. Deputy clerks.

(a) In cooperation with the presiding judge, the clerk, within the number of authorized deputy clerks established by the city council, shall employ a sufficient number of deputy clerks to ensure the proper operation of the respective municipal courts. The deputies shall assist the clerk in performing his duties hereunder.

(b) Each deputy clerk of the municipal courts shall act for and on behalf of the clerk of the municipal courts in the discharge of the duties of that office and shall perform any other duties as may be assigned by the clerk, with the advice and consent of the presiding judge and in cooperation with the judge in whose court any particular deputy clerk may be assigned. The deputy clerks shall take the oath of office and give the bond as may be required by law.
(Ord. No. 00-325, § 1, 4-26-00; Ord. No. 2010-740, § 2, 9-22-2010)

Sec. 16-25. Reserved.

Editor's note—Ord. No. 07-464, § 5, adopted April 11, 2007, repealed § 16-25 in its entirety. Formerly said section pertained to parking citations issued for rental vehicles and derived from Ord. No. 00-325, § 1, 4-26-00; Ord. No. 04-386, § 2, 5-5-04.

Secs. 16-26—16-40. Reserved.

ARTICLE III. PRACTICE AND PROCEDURE

Sec. 16-41. Generally.

State law shall govern the procedure, practice and administration of the municipal courts in the city.
(Ord. No. 00-325, § 1, 4-26-00)

Sec. 16-42. Terms and business hours; setting trial time.

The municipal courts shall hold no terms and shall be at all times open for the transaction of business.
(Ord. No. 00-325, § 1, 4-26-00)

Sec. 16-43. Representation of defendants by counsel; informing defendants of rights.

(a) All defendants in municipal courts are entitled to be represented by counsel and the judges of each respective municipal court shall so instruct each defendant prior to any plea in the case. If requested, the judge shall grant a reasonable continuance to allow the defendant to retain counsel.

(b) If the defendant is charged with an offense involving moral turpitude or if the defendant is a juvenile charged with a non-traffic offense, the court shall, prior to any plea in the case, inform the defendant of the accusation against him, of the right to be represented by counsel and of the right to have counsel appointed if the defendant is indigent and financially unable to employ counsel.

(c) If the court determines that a defendant charged with an offense involving moral turpitude is indigent, the court shall appoint counsel to represent the defendant. In cases where a juvenile is charged with a non-traffic offense, if the court determines that the juvenile is indigent, that it is in the best interest of the juvenile, and that it is in the interest of justice to do so, the court shall appoint counsel to represent the juvenile defendant. Indigency is to be determined by the court. The defendant shall file an oath or affirmation of indigency under the penalties of perjury stating that he is financially unable to employ counsel. For a juvenile defendant, the court may, in the interest of justice, require a parent or guardian to join the aforesaid oath or affirmation. The court may appoint counsel on the basis of that oath or may hold a separate hearing to determine the defendant's financial ability to pay.
(Ord. No. 00-325, § 1, 4-26-00)

Sec. 16-44. Compensation of court-appointed counsel.

(a) A counsel appointed to defend a person charged with an offense involving moral turpitude or appointed to defend a juvenile charged in a non-traffic offense shall be paid according to the following schedule:

(1) For each appearance in the municipal courts representing the accused, a reasonable fee to be set by the court of not less than $50.00 nor more than $100.00.

(2) For the representation of an accused during a trial by jury in the municipal courts, a reasonable fee to be set by the court of not less than $100.00 nor more than $150.00.

(3) For the prosecution to a final conclusion of a bona fide appeal from the municipal courts to the county court, a reasonable fee to be set by the court of not less than $100.00 nor more than $150.00.

(b) The minimum fee will be automatically allowed unless the municipal judge who appointed counsel orders a higher fee within five days of the attorney's appearance.

(c) An attorney may not receive more than one fee for each one half day in court, regardless of the number of cases in which he appears as appointed counsel on the same day.
(Ord. No. 00-325, § 1, 4-26-00)

Sec. 16-45. City employee not to represent defendant.

It shall be unlawful for any person who receives a salary from the city to be in any way, directly or indirectly, interested in the defense representation of any person charged with the violation of any ordinance of the city or of any of the criminal laws of the state, except so far as may be necessary to give evidence in behalf of persons so charged with violating any of said ordinances or criminal laws.
(Ord. No. 00-325, § 1, 4-26-00)

Sec. 16-46. Docket.

The clerk of the municipal courts, under the direction of the presiding judge, shall keep a docket in which he shall enter the proceedings in each trial, which docket shall show:

(1) The style of the action.

(2) The nature of the offense charged.

(3) The date the warrant was issued and the return made thereon.

(4) All pleas, written motions and orders of the court.

(5) The jury charge and verdict, if the trial is by jury.

(6) The judgment of the court.

(7) Motion for new trial, if any, and the decision thereon.

(8) If an appeal was taken.

(9) The time when, and the manner in which the judgment was enforced.

(Ord. No. 00-325, § 1, 4-26-00; Ord. No. 2010-740, § 2, 9-22-2010)

Sec. 16-47. Failure of defendant to appear at trial.

It shall be unlawful for any person knowingly to fail to appear for the arraignment or trial of any charge against the person pending in the municipal courts of the city.

(Ord. No. 00-325, § 1, 4-26-00; Ord. No. 2011-995, § 2, 11-16-2011)

Sec. 16-48. Plea by defendant.

(a) The charge shall be read to the defendant, who shall plead thereto, and the plea shall be entered upon his docket by the judge of one of the municipal courts. All pleas must be made to the judge by the defendant or his legal representative.

(b) No plea of guilty shall be accepted except by the judge of one of the municipal courts. Should the defendant plead guilty before the municipal court, the judge thereof shall thereupon enter the plea on the judge's docket and assess a fine and costs as may be authorized by law. If a plea of not guilty shall be entered to the complaint, a trial shall be had, either by the court or by a jury, as the defendant may elect.

(Ord. No. 00-325, § 1, 4-26-00)

Sec. 16-49. Jury fees.

A person who responds to the process of the municipal courts and is not exempted or excused from service, shall be entitled to compensation at the rate of $6.00 per day or any portion of a day, regardless of whether the person is actually selected for or serves on a jury.

(Ord. No. 00-325, § 1, 4-26-00)

Sec. 16-50. Fines to be paid to clerk or officer.

All fines assessed by the municipal courts shall be paid to the clerk of the municipal courts or some officer designated by the presiding judge to receive the same. No person is to be imprisoned for nonpayment of a fine except as set out in section 16-51 of this Code.

(Ord. No. 00-325, § 1, 4-26-00; Ord. No. 2010-740, § 2, 9-22-2010)

Sec. 16-51. Alternative method for payment of fine.

(a) When a defendant has been found guilty, by plea or conviction, a judgment that the defendant pay a fine shall also direct that the defendant may request of the court a deferred payment, either to a certain time or by an installment agreement.

(b) The defendant's petition to the court for an installment agreement shall include:

(1) A statement of the fines which have been assessed against the defendant.

(2) A statement that the defendant is unable to pay the fine assessed at the time the petition is made.

(3) A statement of the amount of money the defendant will be able to pay periodically.

(4) A statement that if the court grants the installment agreement, the defendant shall make the payment of that amount.

(5) The defendant's statement that "I understand and agree that failure for any cause to make any payment as agreed will give rise to the issuance of a warrant for my arrest and my being confined in the City of Houston jail until the fine is fully satisfied."

(6) The defendant's signature.

(c) Only in the event that the defendant fails to pay the fine assessed or fails to pay an installment after having signed an installment agreement, may the defendant be incarcerated for failure to pay a fine. No person may be imprisoned because he cannot pay the full amount of the fine owed. If the defendant fails to pay an installment or refuses to pay the fine assessed, he shall be incarcerated until the fine is fully satisfied.
(Ord. No. 00-325, § 1, 4-26-00)

Sec. 16-52. Remittance of fine and court costs.

In all cases mentioned in section 16-51 of this Code, or in any other case resulting in a judgment from a municipal court, where it appears from the facts and circumstances surrounding the particular case that justice has not been served, or that an unjust or excessive fine has been imposed in the case, or for other just cause, the presiding judge of the municipal courts shall have the authority to remit all or any part of the fines and costs of the court associated with any judgment. The action of the presiding judge, on a proper form, shall be transmitted to the clerk of the municipal courts to be entered upon the municipal courts docket by the clerk and to the controller who shall authorize a refund of so much of the fine and costs as the presiding judge, in his sole discretion, in each particular case, shall so designate.
(Ord. No. 00-325, § 1, 4-26-00; Ord. No. 2010-740, §§ 2, 6, 9-22-2010)

Sec. 16-53. Report of commitments returned.

The chief of police shall make a report daily, except on legal holidays, of all commitments returned by him to any of the municipal courts. This report shall show the case number, the name of the defendant and the amount of the fine in each case, and shall also show opposite the fines in each case, the manner in which the fines were liquidated.
(Ord. No. 00-325, § 1, 4-26-00)

Sec. 16-54. Appeals.

A defendant has the right of appeal from a judgment of conviction in the municipal courts under the rules prescribed by state law. Defendants who institute appeals shall serve copies of their motions for new trial, any amended motions for new trial, notices of appeal and briefs upon the city attorney or his designated assistant who is handling the case in the manner prescribed by state law.
(Ord. No. 00-325, § 1, 4-26-00)

Sec. 16-55. Rules of practice and procedure.

The presiding judge may recommend to the city council the adoption of ordinances establishing rules and regulations concerning the practice and procedure in the municipal courts. The rules and regulations and amendments thereto, if any, shall not constitute a part of this Code. Copies thereof shall be maintained for public inspection and copying in the city secretary's office and the municipal courts. With the consent of the presiding judge, the clerk of the municipal courts may cause copies thereof to be published and make the same available at a cost that is equivalent to the cost of publication, provided that no fee shall be imposed for the first copy supplied to any indigent defendant who makes an affidavit that he is unable to pay the cost thereof.
(Ord. No. 00-325, § 1, 4-26-00; Ord. No. 2010-740, §§ 2, 7, 9-22-2010)

Secs. 16-56—16-60. Reserved.

ARTICLE IV. ADJUDICATION OF PARKING CITATIONS

Sec. 16-61. Jurisdiction.

The municipal courts department shall have original jurisdiction over cases involving viola-

tions of city ordinances enumerated in articles II, IV, VI, XI, and XII and division 1 of article III of chapter 26 of this Code and of offenses involving the parking or stopping of a vehicle that arise under the Fire Code of the city.
(Ord. No. 07-464, § 6(Exh. A), 4-11-07; Ord. No. 2010-740, § 2, 9-22-2010; Ord. No. 2019-1015, § 32, 12-11-2019)

Sec. 16-62. Procedures.

The presiding judge shall establish and implement appropriate procedures to effect the policy of this article, which may include procedures for online adjudication.
(Ord. No. 07-464, § 6(Exh. A), 4-11-07; Ord. No. 2010-740, §§ 2, 8, 9-22-2010; Ord. No. 2011-75, § 2, 2-2-2011)

Sec. 16-63. Adjudication hearing officers.

(a) The municipal courts department shall employ one or more adjudication hearing officers who shall be appointed by the mayor. Staff required for the support of the adjudication hearing officer's functions shall be provided by the clerk of the municipal courts.

(b) Adjudication hearing officers shall have the authority to administer oaths and to issue orders compelling the attendance of witnesses and production of documents.

(c) An order compelling the attendance of witnesses or production of documents may be enforced by the municipal courts department.
(Ord. No. 07-464, § 6(Exh. A), 4-11-07; Ord. No. 2010-740, § 2, 9-22-2010)

Sec. 16-64. Parking citations.

(a) The administrative adjudication process for parking, standing or stopping of vehicle violations that are subject to adjudication under this article shall be initiated by the issuance of a parking citation. A citation may be issued by a peace officer or other authorized parking compliance agent designated by or upon authority of the city.

(b) If the owner or operator of the vehicle is not present at the time of issuance of the citation, the citation may be issued by affixing the citation to the vehicle in a conspicuous place.

(c) The citation shall provide that the person charged with a parking, stopping or standing offense shall have the right of an instanter hearing to determine the issue of liability for the charged offense. Such right to a hearing shall be exercised by appearing in person before an adjudication hearing officer within 30 days from the date of issuance of the citation at such convenient and reasonable hours as may be specified by the adjudication hearing officer, which hours shall be printed on the parking citation.

(d) The original or any copy of the citation is a record kept in the ordinary course of business in the city and is rebuttable proof of the facts it contains.
(Ord. No. 07-464, § 6(Exh. A), 4-11-07; Ord. No. 2011-75, § 3, 2-2-2011; Ord. No. 2019-1015, § 33, 12-11-2019; Ord. No. 2023-548, § 14, 7-12-2023)

Sec. 16-64.1. Online adjudication.

In addition to the information required in section 16-64(c), a citation shall provide that the person charged with a parking, stopping or standing offense may, within 30 days of the issuance of the citation, contest the citation online in accordance with procedures established by the director of the municipal courts department. Such procedures will allow the person charged to submit written statements and evidence.
(Ord. No. 2011-75, § 4, 2-2-2011; Ord. No. 2023-548, § 15, 7-12-2023)

Sec. 16-65. Presumption of ownership.

(a) It is presumed that the registered owner of the motor vehicle that is the subject of the administrative hearing is the person who parked or stopped the vehicle at the time and place of the offense charged.

(b) A state department of transportation computer-generated record of the registered vehicle is a prima facie evidence of its contents in an administrative adjudication hearing under this article.
(Ord. No. 07-464, § 6(Exh. A), 4-11-07)

Sec. 16-66. Hearings.

(a) At the hearing before the adjudication hearing officer, the person charged may either admit, admit with explanation, or deny the alleged infraction.

(b) The issuing peace officer or other authorized parking compliance agent shall not be required to attend the hearing.

(c) No formal or sworn complaint shall be necessary. The adjudication hearing officer shall examine the contents of the citation and the evidence related to ownership of the vehicle in question, and shall hear and review the testimony and evidence presented by the person charged. If the adjudication hearing officer determines by the preponderance of the evidence that the violation was committed by the person charged, he shall find the person charged liable therefor.

(d) At the conclusion of the hearing, the adjudication hearing officer shall issue an order stating whether or not the person charged is liable for violation of the parking, standing or stopping ordinance and the amount of any fine, costs, or fees assessed against him. The order and all other records of the proceeding shall be filed with the clerk of the municipal court. All such orders shall be kept in a separate index or file by the clerk of the municipal court. The filing of the order and other records of the proceeding shall be kept in accordance with section 682.009 of the Texas Transportation Code.

(e) Failure of a person charged with the offense to appear before an adjudication hearing officer within 30 days from the issuance of the citation shall be considered an admission of liability for the charged offense and a default notice shall be issued on that basis.

(f) Fines for violations shall be as provided in section 26-10 of this Code. The presiding judge shall establish fines for persons who do not wish to contest their citations and for persons who admit liability under subsection (f)[(e)], above. The presiding judge shall establish the amount of any added fine that shall be payable if a citation or fine ordered by an adjudication hearing officer is not fully satisfied within 30 days from the date of issuance of the citation.

(g) Court costs shall be payable on all citations in the amounts required by law including, but not limited to, the fees payable under section 16-8 of this Code. The court costs shall be disposed of as provided in section 16-8, or as otherwise provided by law. All other fines and fees shall be deposited in the city treasury as general revenues of the city.

(h) The clerk of the municipal courts shall cause a video or audio tape record to be made of each hearing and shall retain the tape and any documents introduced at the hearing until the time for an appeal to be filed has expired.
(Ord. No. 07-464, § 6(Exh. A), 4-11-07; Ord. No. 2011-75, §§ 3, 5, 2-2-2011; Ord. No. 2019-1015, § 33, 12-11-2019; Ord. No. 2023-548, § 16, 7-12-2023)

Sec. 16-67. Appeal.

(a) A person who is found liable after an administrative adjudication hearing or online adjudication process may appeal that finding of liability to the municipal courts by filing a notice of appeal with the clerk of the municipal courts. The notice of appeal must be filed not later than thirty days after the date on which the adjudication hearing officer entered the finding of liability and shall be accompanied by the payment of the appellate filing fee stated for this provision in the city fee schedule for each citation that is appealed. The appellate filing fee shall be refunded if the municipal court overturns the hearing officer's finding of liability. Unless the person, on or before the date of filing of the notice of appeal, posts a bond in the amount of the civil penalty and any late fees, an appeal does not stay the enforcement of the civil penalty. An appeal shall be decided by the municipal court under the substantial evidence rule and on the basis of the evidence adduced at the hearing before the adjudication hearing officer. The clerk's

office shall provide or cause to be provided a copy of the record to the municipal court. If the municipal court finds the record to be materially incomplete, the court may upon its own motion or upon the motion of the defendant or the prosecuting attorney refer the case back to the adjudication hearing officer for further proceedings; however, no evidence may be adduced at the appeal hearing.

(b) The municipal court shall not reverse the adjudication hearing officer's decision unless it is determined to be:

(1) In violation of the law;

(2) Not reasonably supported by substantial evidence, based upon a review of the reliable and probative evidence in the record as a whole; or

(3) Arbitrary and capricious or characterized by an abuse of discretion.

(Ord. No. 07-464, § 6(Exh. A), 4-11-07; Ord. No. 2010-740, § 2, 9-22-2010; Ord. No. 2011-75, § 6, 2-2-2011; Ord. No. 2011-654, § 2, 8-3-2011; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 16-68. Enforcement.

In addition to the added fine amount for delayed payment as provided in section 16-66(g) of this Code, the failure to comply with an order or default notice issued under this article may be enforced in any of the other manners provided in Section 682.010 of the Texas Transportation Code.

(Ord. No. 07-464, § 6(Exh. A), 4-11-07; Ord. No. 2011-75, § 7, 2-2-2011)

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Chapter 17

FAIR HOUSING*

Art. I.	**General Provisions, §§ 17-1—17-6**
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Art. IV.	**Exemptions, §§ 17-17—17-21**
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ARTICLE I. GENERAL PROVISIONS

Sec. 17-1. Short title.

This chapter may be cited as the Houston Fair Housing Ordinance.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-2. Declaration of policy.

(a) It is the policy of the City of Houston to promote housing opportunities for all persons. Such policy is established upon the recognition of the rights of each individual to obtain housing without regard to race, color, religion, sex, national origin, familial status, or disability; and further that the denial of such rights through considerations based on race, color, religion, sex, national origin, familial status, or disability is detrimental to the health, safety, and welfare of the inhabitants of the city and constitutes an unjust denial or deprivation of such rights which are within the power and the proper responsibility of the government to prevent.

(b) This chapter is enacted pursuant to authority explicitly granted municipalities by Section 2.08 (a) of the Texas Fair Housing Act.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-3. Purpose.

The purposes of this chapter are:

(1) To provide for fair housing practices in the city;

(2) To create a procedure for investigating and settling complaints of discriminatory housing practices and any residential real estate-related transactions; and

(3) To provide rights and remedies substantially equivalent to those granted under federal law.

(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-4. Office established.

There is hereby established within the housing and community development department the office of fair housing. The mission of the office of fair housing shall be to monitor and evaluate fair housing opportunities in the city and to hear fair housing complaints under this chapter.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-5. General duties of the office of fair housing.

The duties of the fair housing staff shall be:

(1) To study the nature and extent of discriminatory housing practices in both the private and public sectors;

(2) To evaluate and assess the city's activities in connection with the development of fair housing opportunities in the city;

***Editor's note—**Ord. No. 2006-412, § 2(Exh. A), adopted April 26, 2006, effective September 1, 12:01 a.m., 2006 (per § 6 of Ord. No. 2006-412), amended Chapter 17 in its entirety to read as herein set out. Formerly, said chapter pertained to discrimination and derived from Code 1968, §§ 15½-11—15½-23 and subsequent amendatory ordinances. Section 5 of Ord. No. 2006-412 states that the various former ordinance provisions that are amended in Section 2 of Ord. No. 2006-412 are saved from repeal for the limited purpose of their continuing application to any violation committed before September 1, 2006, as applicable. For this purpose, a violation is deemed to have been committed before the effective date of Ord. No. 2006-412, as applicable, if any element of the offense was committed prior to the September 1, 2006, as applicable.

Cross reference—Anti-discrimination provisions in city contract, § 15-16 et seq.

(3) To recommend to the mayor and city council reasonable provisions and programs to further fair housing opportunities in the city; and

(4) To investigate, process, and hear fair housing complaints under article V of this chapter, and complaints referred by federal or state agencies that are filed under state or federal housing laws.

(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-6. Fair housing administrator.

(a) There is hereby created the office of fair housing administrator, who shall be in charge of the office of fair housing. The fair housing administrator, who shall be appointed by the mayor and confirmed by the city council, shall have the responsibility for implementing and enforcing this chapter 17 and may establish such rules and regulations as are determined necessary to perform the duties of that office.

(b) The fair housing administrator shall cooperate with the Secretary of Housing and Urban Development and the Attorney General of the United States in the enforcement of the federal Fair Housing Act, and may assist the secretary or attorney general in any way consistent with the policy of this chapter. The fair housing administrator is encouraged to cooperate with the Texas Workforce Commission, Civil Rights Division, in the enforcement of the Texas Fair Housing Act, and may assist the commission in any way consistent with the policy of this chapter.

(c) The fair housing administrator shall treat a complaint referred by the Secretary of Housing and Urban Development or the Attorney General of the United States under the federal Fair Housing Act, or by the Texas Workforce Commission, Civil Rights Division, under the Texas Fair Housing Act, as a complaint filed under this chapter. No action will be taken under this chapter against a person for a discriminatory housing practice if the referred complaint was filed with the governmental entity later than one year after an alleged discriminatory housing practice occurred or terminated.

(d) The fair housing administrator may order discovery in aid of investigations under this chapter. Such discovery may be ordered to the same extent and is subject to the same limitations as would apply if the discovery were ordered in aid of a civil action in a state district court of Harris County, Texas.

(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Secs. 17-7—17-10. Reserved.

ARTICLE II. DEFINITIONS

Sec. 17-11. General definitions.

The following words, terms, and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Accessible means capable of being approached, entered, and used by a person with a physical disability.

Accessible route means a continuous unobstructed path connecting accessible elements and spaces in a housing accommodation that can be negotiated by a person with a severe disability using a wheelchair and that is also safe for and usable by a person with other disabilities.

Aggrieved person means a person who claims to have been injured by a discriminatory housing practice or believes that a person will be injured by a discriminatory housing practice that is about to occur.

Building entrance on an accessible route means an accessible entrance to a covered multi-family dwelling that is connected by an accessible route to public transportation stops, to accessible parking and passenger loading zones, or to the public streets or sidewalks, if available.

Complainant means a person, including the fair housing administrator, who files a complaint under section 17-31 of this Code.

Conciliation means the attempted resolution of issues raised by a complaint or by the investigation of the complaint, through informal

negotiations involving the aggrieved person, the complainant if different from the aggrieved person, the respondent and the fair housing administrator.

Conciliation agreement means a written agreement setting forth the resolution of the issues in the conciliation.

Covered multi-family dwelling means a building consisting of four or more dwelling units if the building has one or more elevators; and a ground floor dwelling unit in any other building consisting of four or more dwelling units.

Defense means a defense to criminal prosecution in municipal court as explained in the Texas Penal Code. Defense also means, where specifically provided, an exemption from a civil action.

Disability means (i) a physical or mental impairment that substantially limits one or more major life activities; (ii) a record of an impairment described in part (i) of this definition; or (iii) being regarded as having an impairment described in part (i) of this definition. The term specifically does not include any current, illegal use of or addiction to a drug or illegal or federally-controlled substance.

Discriminatory housing practice means conduct that is an offense under article III of this chapter.

Dwelling means any building, structure, or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure, or portion thereof.

Dwelling unit means a single unit of residence for a family.

Fair housing administrator means the fair housing administrator of the fair housing office designated to enforce and administer this chapter and includes the fair housing administrator's designated representative.

Familial status means the status of a person resulting from being:

a. Pregnant; or

b. Domiciled with an individual younger than 18 years of age in regard to whom the person:

(i) Is the parent or legal custodian; or

(ii) Has the written permission of the parent or legal custodian for domicile with the individual; or

(iii) Is in the process of obtaining legal custody.

Family includes a single individual.

Federal Fair Housing Act means the Fair Housing Act of 1968, 42 U.S.C. § 3601, et seq., as amended.

Housing accommodation means:

a. Any building, structure, or part of a building or structure that is occupied, or designed or intended for occupancy as a residence for one or more families; and

b. Any vacant land that is offered for sale or lease for the construction or location of a building, structure, or part of a building or structure described by part a of this definition.

Person means an individual, corporation, partnership, association, labor organization, legal representative, mutual company, joint-stock company, trust, unincorporated organization, trustee, receiver, or fiduciary or any employee, representative, or agent of the person.

Rent means and includes to lease, sublease, let or otherwise grant for consideration the right to occupy premises not owned by the occupant.

Residential real estate-related transaction means:

a. The making or purchasing of loans or the providing of other financial assistance:

(i) For purchasing, constructing, improving, repairing, or maintaining a housing accommodation; or

(ii) Secured by residential real estate; or

b. The selling, brokering, or appraising of residential real property.

Respondent means a person identified in a complaint or charge as having committed a discriminatory housing practice under this chapter.

Texas Fair Housing Act means the act set forth in Article 1f, Vernon's Texas Revised Civil Statutes, as amended.

(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

ARTICLE III. DISCRIMINATORY HOUSING PRACTICES

Sec. 17-12. Discriminatory housing practices.

(a) A person commits an offense if he, because of race, color, sex, religion, familial status, disability or national origin:

(1) Refuses to negotiate with a person for the sale or rental of a housing accommodation or otherwise denies or makes unavailable a housing accommodation to a person;

(2) Refuses to sell or rent, or otherwise makes unavailable, a housing accommodation to another person after the other person makes an offer to buy or rent the accommodation; or

(3) Discriminates against a person in the terms, conditions, or privileges of, or in providing a service or facility in connection with, the sale or rental of a housing accommodation.

(b) A person commits an offense if he, because of race, color, sex, religion, disability, familial status, or national origin:

(1) Represents to a person that a housing accommodation is not available for inspection, sale, or rental if the accommodation is available;

(2) Discriminates against a prospective buyer or renter in connection with the showing of a housing accommodation; or

(3) With respect to a multiple listing service, real estate brokers' organization, or other business relating to selling or renting housing accommodations:

a. Denies a person access to or membership in the business; or

b. Discriminates against a person in the terms or conditions of access to or membership in the business.

(c) A person commits an offense if he:

(1) For profit, induces or attempts to induce another person to sell or rent a housing accommodation by a representation that a person of a particular race, color, sex, religion, disability, familial status, or national origin is in proximity to, is present in, or may enter into the neighborhood in which the housing accommodation is located;

(2) Makes an oral or written statement indicating a preference or a policy of discrimination based race, color, sex, religion, disability, familial status, or national origin in the selling or renting of a housing accommodation; or

(3) Prints or publicizes or causes to be printed or publicized an advertisement that expresses a preference or policy of discrimination based on race, color, sex, religion, disability, familial status, or national origin in the selling or renting of a housing accommodation.

(d) A person who engages in a residential real estate-related transaction commits an offense if he, because of race, color, sex, religion, disability, familial status, or national origin, discriminates against a person:

(1) In making a residential real estate-related transaction available; or

(2) In the terms or conditions of a residential real estate-related transaction.

(e) A person commits an offense if he:

(1) Discriminates in the sale or rental of a housing accommodation to any buyer or renter because of a disability of:

a. That buyer or renter;

b. A person residing in or intending to reside in the housing accommodation after it is sold, rented, or made available; or

c. Any person associated with that buyer or renter; or

(2) Discriminates against any person in the terms, conditions, or privileges of sale or rental of a housing accommodation, or in the provision of services or facilities in connection with the housing accommodation, because of a disability of:

a. That person;

b. A person residing in or intending to reside in the housing accommodation after it is sold, rented, or made available; or

c. Any person associated with that person.

(f) A person commits an offense if he:

(1) Refuses to permit, at the expense of a person with a disability, reasonable modifications of existing premises occupied or to be occupied by the person with a disability, if the modifications may be necessary to afford the person with a disability full use of the premises; except that, in the case of a rental, the landlord may, where reasonable to do so, condition permission for modification on the renter's agreeing to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted;

(2) Refuses to make reasonable accommodations in rules, policies, practices, or services when the accommodations may be necessary to afford a person with a disability equal opportunity to use and enjoy a housing accommodation;

(3) Fails to design or construct a covered multi-family dwelling for first occupancy after March 13, 1991, in such a manner as to have at least one building entrance on an accessible route, unless it is impractical to do so because of the terrain or unusual characteristics of the site; or

(4) Fails to design and construct a covered multi-family dwelling, for first occupancy after March 13, 1991, in such a manner that:

a. The public use and common use portions of the dwellings are readily accessible to and usable by a person with a disability;

b. All the doors designed to allow passage into and within all premises within the dwelling are sufficiently wide to allow passage by a person with a disability in a wheelchair; and

c. All dwellings contain the following features of adaptive design:

(i) An accessible route into and through the dwelling unit;

(ii) Light switches, electrical outlets, thermostats, and other environmental controls in accessible locations;

(iii) Reinforcements in the bathroom walls to allow installation of grab bars; and

(iv) Kitchens and bathrooms laid out in such a manner that an individual in a wheelchair can maneuver about the space.

(g) A person commits an offense if he coerces, intimidates, threatens, or otherwise interferes with any person in the exercise or enjoyment of, or on account of that person having exercised or enjoyed, or on account of that person having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by this chapter.

(h) A person commits an offense if he retaliates against any person for making a complaint or testifying, assisting, or participating in any manner in a proceeding under this chapter.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Secs. 17-13—17-20. Reserved.

ARTICLE IV. EXEMPTIONS

Sec. 17-21. Certain sales and rental exempted.

(a) Except as provided in subsection (b) of this section:

(1) The sale or rental of a single-family house sold or rented by an owner does not constitute an unlawful action under this chapter if the owner does not:

a. Own more than three single-family houses at any one time; or

b. Own any interest in, nor is there owned or reserved on his behalf, under any express or voluntary agreement, title to or any right to any part of the proceeds from the sale or rental of more than three single family houses at any time; and

(2) The sale or rental of rooms or units in a dwelling containing living quarters occupied or intended to be occupied by no more than four families living independently of each other does not constitute an unlawful act under this chapter if the owner maintains and occupies one of the living quarters as the owner's residence.

(b) The exemption in item (1) of subsection (a) of this section applies only when there is one sale or rental in a 24-month period, if:

(1) The owner was not the most recent resident of the house at the time of or prior to the sale or rental;

(2) The private, bona fide individual owner has sold or rented the house without the use in any manner of the sales or rental facilities or the sales or rental services of any real estate broker, agent, or salesman, or of such facilities or services of any person in the business of selling or renting dwellings, or of any employee or agent of any such broker, agent, salesman, or person; and

(3) The private, bona fide individual owner has sold or rented the dwelling without the publication, posting or mailing, after notice, of any advertisement or written notice in violation of the federal Fair Housing Act.

Nothing in this section shall prohibit the use of attorneys, escrow agents, abstractors, title companies, and other professional assistance as necessary to perfect transfer of title.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-22. Religious organizations and private clubs exemption.

(a) This chapter does not prohibit a religious organization, association, or society, or a nonprofit institution or organization operated, supervised, or controlled by or in conjunction with a religious organization, association, or society, from:

(1) Limiting the sale, rental, or occupancy of dwellings that it owns or operates for other than a commercial purpose to persons of the same religion; or

(2) Giving preference to persons of the same religion, unless membership in the religion is restricted because of race, color, sex, national origin, familial status or disability.

(b) This chapter does not prohibit a private club not open to the public that, as an incident to its primary purpose, provides lodging that it owns or operates for other than a commercial purpose, from limiting the rental or occupancy of that lodging to its members or from giving preference to its members.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-23. Housing for the elderly exempted.

The provisions of this chapter relating to familial status do not apply to housing for older persons.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-24. Appraisal exemption.

This chapter does not prohibit a person engaged in the business of furnishing appraisals of residential real property from taking into consideration factors other than race, color, religion, sex, disability, familial status, or national origin.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-25. Effect on other law.

This chapter does not affect a requirement of nondiscrimination in any other ordinance or state or federal law.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Secs. 17-26—17-30. Reserved.

ARTICLE V. ADMINISTRATIVE/COURT ENFORCEMENT

Sec. 17-31. Complaints.

(a) Complaints may be filed not later than one year after an alleged discriminatory housing practice has occurred or terminated. Any aggrieved person may file a complaint. The complaint may be filed with the assistance of an authorized representative of an aggrieved person, including any organization acting on behalf of an aggrieved person. The fair housing administrator may also file a complaint if he has reasonable cause to believe that a person has committed a discriminatory housing practice.

(b) The fair housing administrator shall treat complaints referred by the Secretary of Housing and Urban Development or the Attorney General of the United States under the federal Fair Housing Act or by the Texas Workforce Commission, Civil Rights Division, under the Texas Fair Housing Act as though filed under subsection (a) above.

(c) A complaint must be made:

(1) In writing; and

(2) Under oath or affirmation by an aggrieved person, or by an individual on behalf of an aggrieved person, stating: "I declare under penalty of perjury that the foregoing is true and correct."

(d) Each complaint must contain substantially the following information:

(1) The name and address of the respondent.

(2) Name, address and signature of the complainant.

(3) The name and address of the aggrieved person if different from the complainant.

(4) Date of the occurrence or termination of the discriminatory housing practice and the date of filing of the complaint.

(5) A description and address of the dwelling that is involved in a discriminatory housing practice.

(6) A concise statement of the facts constituting the alleged discriminatory housing practice, including the basis of the discrimination (sex, religion, color, race, national origin, familial status, or disability).

(e) A complaint may be reasonably and fairly amended at any time.

(f) Within ten days after the filing of a complaint, the fair housing administrator shall:

(1) Give the complainant, and the aggrieved person if different from the complainant, written notice that the complaint has been received; and

(2) Advise the complainant, and aggrieved person if different from the complainant, of the time limits applicable to the complaint and of any rights and choice of forums under this chapter.

(g) Not later than the tenth day after the filing of the complaint, the fair housing administrator shall serve on each respondent:

(1) A written notice that a complaint alleging the commission of a discriminatory housing practice has been filed against the respondent; identifying the alleged discriminatory housing practice; advising the respondent of the procedural rights and obligations of a respondent under this chapter, including the right to file a written, signed and verified informal answer to the complaint within ten days after service of notice of the complaint; and setting out the rights and remedies of the aggrieved person under the chapter; and

(2) A copy of the original complaint.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-32. Answer.

(a) Not later than the tenth day after receipt of the notice and copy of the complaint under subsection (g) of section 17-31 of this Code, a respondent shall file an answer to the complaint.

(b) An answer to a complaint:

(1) Must be made in writing;

(2) May include the assertion of any defense that might be available to a defendant in a court of law;

(3) Must be signed and affirmed by the respondent; and

(4) Must include an affirmation that states: "I declare under penalty of perjury that the foregoing is true and correct."

(c) An answer may be reasonably and fairly amended at any time before the fair housing administrator refers the matter to the city attorney for prosecution. The fair housing administrator shall furnish a copy of each amended complaint or answer, respectively, to each respondent or complainant, and to any aggrieved person who is not the complainant, as promptly as is practicable.

(d) The filing of an answer does not inhibit the investigation of a complaint.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-33. Investigation.

(a) If the federal government or the state of Texas has referred a complaint to the fair housing office or has deferred jurisdiction over the subject matter of a complaint to the fair housing office, the fair housing office shall initiate an investigation of the allegations set forth in the complaint.

(b) The fair housing office shall investigate all complaints within 30 days after a complaint is filed, and, except as provided by subsection (c) of this section, shall complete an investigation within 100 days after the date of filing of the complaint, and shall dispose of all administrative proceedings related to the investigation not later than one year after the date the complaint is filed.

(c) The fair housing administrator shall seek the voluntary cooperation of any person to:

(1) Obtain access to premises, records, documents, individuals, and any other possible source of information;

(2) Examine, record, and copy necessary materials; and

(3) Take and record testimony or statements of any person reasonably necessary for the furtherance of the investigation.

(d) If the fair housing office is unable to complete an investigation within the time periods prescribed by subsection (b) of this section the

fair housing administrator shall notify the complainant and the aggrieved person, if different from the complainant, and the respondent, in writing, of the reasons for the delay.

(e) The fair housing administrator shall assist in the investigation of complaints submitted to the fair housing office, and in preparing reports required under this chapter.

(f) Upon completion of an investigation where the fair housing administrator has made a determination that a discriminatory housing practice has in fact occurred, if the fair housing administrator is unable to secure from the respondent an acceptable conciliation agreement, then the fair housing administrator must refer the case and the entire file to the city attorney for prosecution in state district court or another court where appropriate relief may be granted.

(g) The fair housing administrator and the city attorney are authorized and encouraged to cooperate with the Secretary of Housing and Urban Development pursuant to the provisions of Title VIII of the Federal Fair Housing Act and may render such service to the secretary as they shall deem appropriate to further the policies of this chapter and may accept reimbursement from the Secretary for services rendered to assist in carrying out the provisions of the above cited federal law.

(h) An investigation shall remain open until a reasonable cause determination is made under section 17-38 of this Code, a conciliation agreement is executed and approved under section 17-35 of this Code, or the complaint is dismissed under section 17-40 of this Code. Unless impracticable to do so, the fair housing administrator shall complete the investigation within the 100-day period prescribed in subsection (b) of this section.

(i) This section does not limit the authority of the fair housing administrator to conduct such other investigations or to use such other lawful enforcement procedures as the fair housing administrator considers necessary to enforce this chapter.

(j) The fair housing administrator shall prepare a final investigative report showing:

(1) The names of and dates of contact with witnesses;

(2) A summary, including dates, of correspondence and other contacts with the aggrieved person and the respondent;

(3) A summary description of other pertinent records;

(4) A summary of witness statements; and

(5) Answers to interrogatories, if any.

(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-34. Additional or substitute respondent.

(a) The fair housing administrator may join a person not named in the complaint as an additional or substitute respondent if in the course of the investigation the fair housing administrator determines that the person should be accused of a discriminatory housing practice. Within ten days after the fair housing administrator's determination, any additional or substitute respondent shall be served with notice and a copy of the complaint, as provided in subsection (g) of section 17-31 of this Code.

(b) In addition to the information required in the notice under subsection (c) of section 17-31 of this Code the fair housing administrator shall include in the notice to a respondent joined under this section an explanation of the basis for the determination that the person is properly joined as a respondent. The added respondent shall be given an opportunity to file an answer to the complaint within 10 days after receipt of the notice, as provided in section 17-32 of this Code.

(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-35. Conciliation.

(a) The fair housing administrator shall, during the period beginning with the filing of a complaint and ending with issuance of charge under section 17-39 of this Code, the dismissal of complaint under section 17-40 of this Code, or the dismissal of a criminal action in municipal court, after consulting with the city attorney, where feasible,

engage in conciliation with respect to the complaint. In conciliating a complaint, the administrator shall try to achieve a just resolution and obtain assurances that the respondent will satisfactorily remedy any violation of the aggrieved person's rights and take action to assure the elimination of both present and future discriminatory housing practices.

(b) The fair housing administrator shall conduct a conciliation negotiation of any complaint received by the fair housing office, provided that all final conciliation agreements shall be submitted to the city attorney for review and approval.

(c) If a conciliation agreement is executed under this section, a party to the agreement may not be prosecuted in municipal court, nor may the fair housing administrator issue a charge against a party, for the discriminatory housing practice specified in the conciliation agreement under this section unless the fair housing administrator determines that the agreement has been violated and notifies the city attorney in writing of the violation.

(d) A conciliation agreement must be in writing in the form approved by the city attorney and must be signed and verified by the respondent, the complainant, and the aggrieved person if different from the complainant, subject to approval of the fair housing administrator who shall indicate approval by signing the agreement. A conciliation agreement is deemed executed upon its signing and verification by all parties to the agreement.

(e) A conciliation agreement executed under this section must contain:

(1) Identification of each discriminatory housing practice and each corresponding respondent that gives rise to the conciliation agreement under this section that the parties agree to make subject to the limitation on prosecution in subsection (c) of this section;

(2) An identification of the housing accommodation subject to the conciliation agreement;

(3) A statement that each party entering into the conciliation agreement agrees not to violate this chapter or the conciliation agreement; and

(4) Any other term or condition agreed to by the parties.

(f) The conciliation agreement may provide for binding arbitration or other method of dispute resolution. Dispute resolution resulting from a conciliation agreement may authorize appropriate relief, including monetary relief (in the form of damages, including humiliation and embarrassment, and attorney fees) and equitable relief (such as access to the housing accommodation at issue, or to a comparable housing accommodation, and provision of services at facilities in connection with a housing accommodation).

(g) Nothing said or done in the course of conciliation may be made public or used as evidence in a subsequent proceeding under this chapter without the written consent of the persons concerned.

(h) After completion of the investigation, the fair housing administrator shall make available to the aggrieved person and the respondent, at any time, information derived from the investigation as well as the final investigative report.

(i) A conciliation agreement may be made public, unless the aggrieved person and the respondent request non-disclosure and the fair housing administrator determines that disclosure is not required to further the purposes of this chapter. Notwithstanding a determination that disclosure of a conciliation agreement is not required, the fair housing administrator may publish tabulated descriptions of the results of all conciliation efforts.

(j) If the aggrieved person brings a civil action under a local, state, or federal law seeking relief for the alleged discriminatory housing practice and the trial in the action begins, the fair housing administrator shall terminate efforts to conciliate the complaint unless the court specifically requests assistance from the fair housing

administrator. The fair housing administrator may also terminate efforts to conciliate the complaint if:

(1) The respondent fails or refuses to confer with the fair housing administrator;

(2) The aggrieved person or the respondent fails to make a good faith effort to resolve any dispute; or

(3) The fair housing administrator finds, for any reason, that voluntary agreement is not likely to result.

(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-36. Violation of conciliation agreement.

(a) A person commits an offense if, after the person executes a conciliation agreement under section 17-35 of this Code, he violates any term or condition contained in the agreement.

(b) It is no defense to criminal prosecution in municipal court or to civil action in state district court under this section that, with respect to a discriminatory housing practice that gave rise to the conciliation agreement under section 17-35 of this Code:

(1) The respondent did not commit the discriminatory housing practice; or

(2) The fair housing administrator did not have probable cause to believe the discriminatory housing practice was committed.

(c) If the fair housing administrator determines that a conciliation agreement has been violated, the fair housing administrator shall give written notice to all parties subject to the agreement.

(d) When the fair housing administrator has reasonable cause to believe that a respondent has breached a conciliation agreement, the fair housing administrator shall refer the matter to the city attorney's office with a recommendation that a civil action be filed under section 17-42 of this Code for the enforcement of the agreement. The fair housing administrator shall also file a criminal action in municipal court for a violation of the agreement.

(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-37. Temporary or preliminary relief.

(a) If at any time following the filing of a complaint the fair housing administrator concludes that prompt judicial action is necessary to carry out the purposes of this chapter, the fair housing administrator may request the city attorney to initiate a civil action in the State District Court of Harris County, Texas for appropriate temporary or preliminary relief pending final disposition of the complaint.

(b) On receipt of the fair housing administrator's request, the city attorney shall promptly file the action in the state district court. Venue is in Harris County, Texas.

(c) A temporary restraining order or other order granting preliminary or temporary relief under this section is governed by the applicable Texas Rules of Civil Procedure.

(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-38. Reasonable cause determination.

(a) A panel consisting of a fair housing investigator representative, the city attorney, and the fair housing administrator, shall determine based on all the facts whether reasonable cause exists to believe that a discriminatory housing practice has occurred or is about to occur.

(b) The panel shall make the determination under subsection (a) of this section not later than the one hundredth day after the date a complaint is filed unless:

(1) It is impracticable to make the determination; or

(2) The city attorney has approved a conciliation agreement relating to the complaint.

(c) If it is impracticable to make the determination within the time period provided by subsection (b) of this section, the panel shall notify the complainant, and the aggrieved person if different from the complainant, and the respondent, in writing, of the reasons for the delay.

(d) If the city attorney determines that no reasonable cause exists to believe that a discriminatory housing practice has occurred, the city attorney shall issue to the fair housing administrator a short and plain written statement of the facts upon which the city attorney based the no reasonable cause determination. If the city attorney issues such a statement, the panel shall automatically determine that no reasonable cause exists to believe that a discriminatory practice has occurred or is about to occur.

(e) If the panel determines that reasonable cause exists to believe that a discriminatory housing practice has occurred or is about to occur, the fair housing administrator shall, as provided by this section 17-38 of this Code, immediately issue a charge on behalf of the aggrieved person.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-39. Charge.

(a) A charge issued under section 17-38 of this Code:

(1) Must consist of a short and plain statement of the facts upon which the fair housing administrator and the city attorney have found reasonable cause to believe that a discriminatory housing practice has occurred or is about to occur;

(2) Must be based on the final investigative report; and

(3) Need not be limited to the facts or grounds alleged in the complaint.

(b) Not later than the 20th day after the fair housing administrator issues a charge, the fair housing staff shall send a copy of the charge to:

(1) Each respondent, together with a notice of the opportunity for a hearing as provided in section 17-41 of this Code; and

(2) Each aggrieved person on whose behalf the complaint was filed.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-40. Dismissal.

(a) A complaint may be dismissed by the fair housing administrator during the investigation and prior to referral to the city attorney when the fair housing administrator determines that:

(1) The complaint was not timely filed;

(2) The location of the alleged discriminatory housing practice is not within the city's jurisdiction;

(3) The alleged discriminatory housing practice is not a violation of this chapter;

(4) The complainant, or the aggrieved person if different from the complainant, refuses to cooperate with the fair housing administrator in the investigation of the complaint or enforcement of the executed conciliation agreement; or

(5) The complainant, or the aggrieved person if different from the complainant, cannot be located after the fair housing administrator has performed a reasonable search.

(b) A criminal action may be dismissed by a municipal judge upon motion of the city attorney, if after the city attorney files the action charging a respondent with a discriminatory housing practice, a conciliation agreement is executed under section 17-35 of this Code before the trial begins in municipal court.

(c) The fair housing administrator shall notify the complainant, the aggrieved person if different from the complainant, and the respondent of the dismissal of the complaint, including a written statement of facts, and may make public disclosure of the dismissal unless the respondent requests that no public disclosure be made.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-41. Election of judicial determination.

(a) A complainant, a respondent, or an aggrieved person on whose behalf the complaint was filed, may elect to have the claims asserted in a charge decided in a civil action as provided by section 17-42 of this Code.

(b) The election must be made in writing not later than the twentieth day after the date of receipt of the charge or, in the case of the fair housing administrator, not later than the twentieth day after the date the charge was issued.

(c) The person making the election shall give notice of same to the fair housing office, and to all other complainants and respondents to whom the charge relates.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-42. Civil action in state district court.

(a) If a respondent has been found by the fair housing administrator and the city attorney to have breached an executed conciliation agreement or if the fair housing administrator has issued a charge under section 17-39 of this Code, the city attorney, upon the request of the fair housing administrator, shall initiate and maintain a civil action on behalf of the aggrieved person in the state district court seeking relief under this chapter. Venue is in Harris County, Texas.

(b) An aggrieved person may intervene in the action.

(c) If the court finds in the civil action that the conciliation agreement has been violated or a discriminatory housing practice has occurred, the court may award to the plaintiff:

(1) Actual and punitive damages;

(2) Civil penalties payable to the city (payable to the city controller for deposit in the general revenue fund) for vindication of the public interest in an amount that does not exceed:

a. $10,000.00 if the respondent has not been adjudged by order of a court to have committed a prior discriminatory housing practice;

b. Except as provided by subitem d of this item, $25,000.00 if the respondent has been adjudged by order of a court to have committed one other discriminatory housing practice during the five-year period ending on the date of the filing of the charge;

c. Except as provided by subitem d of this item, $50,000.00 if the respondent has been adjudged by order of a court to have committed two or more discriminatory housing practices during the 7 year period ending on the date of the filing of the charge; and

d. If the acts constituting the discriminatory housing practice that is the subject of the charge are committed by the same individual who has been previously adjudged to have committed acts constituting a discriminatory housing practice, the civil penalties in subitems b and c of this item may be imposed without regard to the period of time within which any other discriminatory housing practice occurred;

(3) Reasonable attorney's fees;

(4) Costs of court; and

(5) Any permanent or temporary injunction, temporary restraining order, or other order, including an order enjoining the defendant from engaging in the discriminatory housing practice or ordering appropriate affirmative action.

(d) If actual damages are sought for the benefit of an aggrieved person who does not intervene in the civil action, the court may not award the actual damages if the aggrieved person has not complied with discovery orders entered by the court.

(e) The city shall not be subject to orders for sanctions for the failure of the complainant, if other than the fair housing administrator, or aggrieved person to comply with discovery requests of the defendant or discovery orders of the court.

(f) Any resolution of a charge before a final order is signed by the state district court under this section requires the consent of the aggrieved person on whose behalf the charge is issued.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-43. Effect of the order.

An order of the court or any relief granted under this chapter does not affect a contract, sale, encumbrance, or lease that:

(1) Was consummated before the court issued the order; and

(2) Involved a bona fide purchaser, encumbrancer, or tenant who did not have actual notice of the charge filed under this chapter.

(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-44. Licensed or regulated businesses.

If the court issues an order with respect to a discriminatory housing practice that occurred in the course of a business subject to licensing or regulation by a government agency, the fair housing administrator shall, not later than the thirtieth day after the date of the issuance of the order:

(1) Send copies of the findings and the order to the governmental agency; and

(2) Recommend to the governmental agency appropriate action to address the discriminatory housing practice.

(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-45. Order in preceding five years.

If the court issues an order against a respondent against whom another order was issued within the preceding five years under section 17-42 of this Code, the fair housing administrator shall send a copy of each order issued under that section to the Texas Workforce Commission, Civil Rights Division, and to the Attorney General.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Secs. 17-46—17-50. Reserved.

ARTICLE VI. ENFORCEMENT BY PRIVATE PERSONS

Sec. 17-51. Civil action.

(a) An aggrieved person may file a civil action in state district court not later than two years after the occurrence or termination of an alleged discriminatory housing practice or after the breach of a conciliation agreement entered into under this chapter, whichever occurs last, to obtain appropriate relief with respect to the discriminatory housing practice or the breach of the conciliation agreement.

(b) An aggrieved person may file an action under this section whether or not a complaint has been filed under section 17-31 of this Code and without regard to the status of any complaint filed under section 17-31 of this Code.

(c) An aggrieved person may not file an action under this section for an alleged discriminatory housing practice that forms the basis of a charge issued by the fair housing administrator if:

(1) The fair housing administrator has obtained a conciliation agreement with the consent of the aggrieved person; or

(2) The city attorney has filed a civil action on the charge in state district court on behalf of the aggrieved person.

(d) In an action under this section, if the court finds that a discriminatory housing practice has occurred, the court may award to the plaintiff:

(1) Actual and punitive damages;

(2) Reasonable attorney's fees;

(3) Court costs; and

(4) Subject to section 17-43 of this Code, any permanent or temporary injunction, temporary restraining order, or other order, including an order enjoining the defendant from engaging in the discriminatory housing practice or ordering appropriate affirmative action.

(e) A court in a civil action brought under this section may award reasonable attorney's fees to the prevailing party and assess court costs against the non-prevailing party.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Secs. 17-52—17-60. Reserved.

ARTICLE VII. CRIMINAL ENFORCEMENT

Sec. 17-61. Criminal penalties for violation.

(a) A person who violates a provision of section 17-12 or 17-36 of this Code commits a criminal offense. A person is guilty of a separate criminal offense for each day or part of a day during which a violation is committed, continued, or permitted.

(b) A criminal offense under this chapter is punishable in municipal court by a fine of not less than $250.00 nor more than $500.00.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Secs. 17-62—17-70. Reserved.

ARTICLE VIII. OTHER CONSIDERATIONS

Sec. 17-71. Effect of relief granted.

Relief granted under this chapter does not affect a contract, sale, encumbrance or lease that:

(1) Was consummated before the granting of the relief; and

(2) Involved a bonafide purchaser, encumbrancer, or tenant who did not have actual notice of the filing of a complaint under this chapter or a civil action under this chapter.

(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-72. Court appointed attorney.

On application by a person alleging a discriminatory housing practice or by a person against whom such a practice is alleged, the court may appoint an attorney for the person.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-73. Subpoena enforcement.

The city attorney, on behalf of the fair housing administration or other party at whose request a subpoena is issued under this chapter, may enforce the subpoena in appropriate proceedings.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-74. Subpoenas; discovery.

The city attorney may issue subpoenas and order discovery as provided by this section in aid of investigations and hearings under this chapter. The subpoenas and discovery may be ordered to the same extent and are subject to the same limitations as would apply if the subpoenas or discovery evidence were ordered or served in aid of a civil action in the district court.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-75. Land use law.

If the fair housing administrator and staff determine that the matter involves the legality of a state or local zoning or other land use law or ordinance, the regional director of Housing and Urban Development Department's Fair Housing Division may not issue a charge and shall immediately refer the matter to the city attorney for appropriate action.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-76. Annual report.

The fair housing staff shall, at least annually in conjunction with the city attorney, provide a written report to the city council summarizing the activities of the staff under this chapter and recommending actions to carry out the purposes of this chapter.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-77. Service of notice and computation of time.

(a) For purposes of this chapter, any notice, paper, or document required to be served on any person under this chapter may be served in person or by United States mail to the person's last known address.

(b) When service is by mail, three days will be added to the prescribed time period allowed under this chapter for timely filing.

(c) Service is complete and time periods begin to run at the time the required notice, paper, or document is delivered in person or deposited in a United States postal receptacle.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-78. Additional remedies.

The procedures prescribed by this chapter do not constitute an administrative prerequisite to another action or remedy available to the city or to an aggrieved person under federal or state law.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-79. Education and public information.

The fair housing administrator may conduct educational and public information activities that are designed to promote the policy of this chapter.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Sec. 17-80. Effect on other law.

This chapter does not affect any local, state, or federal restriction on the maximum number of occupants permitted to occupy a dwelling unit or relating to health or safety standards.
(Ord. No. 06-412, § 2(Exh. A), 4-26-06)

Chapter 18

ETHICS AND FINANCIAL DISCLOSURE*

Art. I.	**In General, §§ 18-1—18-10**
Art. II.	**Ethics Commission, §§ 18-11—18-20**
Art. III.	**Financial Disclosure, §§ 18-21—18-30**
Art. IV.	**Limitations on Solicitations and Contributions, §§ 18-31—18-70**
	Div. 1. Generally, §§ 18-31—18-40
	Div. 2. Penalty, §§ 18-41—18-70
Art. V.	**Lobbying, §§ 18-71—18-100**
Art. VI.	**Electronic Filing of Campaign Finance Reports, §§ 18-101—18-105**

ARTICLE I. IN GENERAL

Sec. 18-1. Policy.

It is the policy of the city that all city officials shall act and conduct themselves, both inside and outside the city's service, so as to give no occasion for distrust of their integrity, credibility or devotion to the best interests of the city and the public trust that it holds. To this end, there is established in this chapter an ethics commission for the city. The purpose of the commission is to accept and review complaints of impropriety on the part of city officials including, but not limited to, conflicts of interest such as the use of offices or employment for private gain, the granting and exchanging of favored treatment to persons, businesses, or organizations, and the conduct of activities that engender opportunities to influence government decisions for personal gain or advantage or that might otherwise bring discredit on or to the city. Additionally, the policy of the city in adopting article IV of this chapter is:

(1) To eliminate any undue influence, and

(2) To prohibit solicitation of campaign funds by city employees or certain appointed officials.

(Ord. No. 87-59, § 1, 1-14-87; Ord. No. 92-1245, § 1, 9-16-92; Ord. No. 00-690, § 1, 7-26-00; Ord. No. 2011-47, § 2, 1-12-2011; Ord. No. 2012-773, § 2, 8-29-2012)

Sec. 18-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings provided in this section, except where otherwise expressly provided in this chapter or where the context clearly indicates a different meaning:

Benefit means anything reasonably regarded as economic gain or economic advantage, including any charitable contribution to any other person in whose welfare a city official is directly interested. The term benefit shall not apply to elected city officials in receipt of any political contribution, fee, gift, award, or other benefit as exempted by § 36.10 of the Texas Penal Code, as amended.

Business means any activity engaged in for economic gain, whether professional, industrial or commercial, and whether established to produce or deal with a product, service, or property including, but not limited to, activities operated in the form of a sole proprietorship, limited partnership, general partnership, corporation, joint stock company, joint venture, receivership or trust or in any other form. The term 'business' shall also include activities engaged in for charitable, educational or philanthropic purposes.

Candidate means a person who knowingly and willingly takes affirmative action for the

*__Editor's note—__Section 1 of Ord. No. 87-59, enacted Jan. 14, 1987, amended Ch. 18 to read as set forth herein in §§ 18-1—18-3, 18-11—18-17 and 18-21—18-27. Prior to such amendment, Ch. 18 consisted of §§ 18-1—18-12 which also pertained to ethics and financial disclosure and derived from §§ 16-11—16-22 of the 1968 Code as amended by Ord. No. 81-2238, § 1, enacted Nov. 4, 1981 and Ord. No. 82-732, §§ 1—3, enacted April 28, 1982.

Cross references—Prohibited interest in wrecker companies, § 8-326; prohibited interest in contracts let by city, § 15-1; investigation of employees misconduct (police and firefighters), § 34-160 et seq.

purpose of gaining election to city office or for the purpose of satisfying financial obligations incurred by the person in connection with the campaign for election. The term candidate shall also include an office holder of a city elective office or an office holder elect. To the extent that any candidate elects to receive contributions or make expenditures through a 'specific-purpose committee' as that term is defined by § 251.001 of the Texas Election Code, then the specific-purpose committee shall be regarded as the agency of the candidate, and the actions of the specific-purpose committee shall be deemed to be actions of the candidate who is utilizing the specific-purpose committee. Examples of affirmative action include:

(1) The filing of a campaign treasurer appointment;

(2) The filing of an application for a place on a ballot;

(3) The filing of declaration of a write-in candidacy;

(4) The making of a public announcement of a definite intent to run for city office in a particular election, regardless of whether the specific office is mentioned in the announcement;

(5) Before a public announcement of intent, the making of a statement of definite intent to run for city office and the soliciting of support by letter or other mode of communication; and

(6) The soliciting or accepting of a campaign contribution or the making of a campaign expenditure.

City elective office means the offices of the mayor, the various city council positions and the city controller.

City official means the elected city officials, appointive officials as defined in Article Va, Section 2(a) of the City Charter, assistant city attorneys, persons holding executive level employee positions as defined in Article Va, Section 2(f) of the City Charter, and appointed members of city boards, committees and commissions and any person whose services are donated to the city. The term includes full-time and part-time service and service on a long-term or short-term basis, whether undertaken pursuant to a written agreement or otherwise.

Commission means the ethics commission.

Contract means each contract having a value in excess of $50,000.00 that is let by the city for professional services, personal services, high-technology goods, construction or services, or other goods or services of any other nature whether the contract is awarded on a negotiated basis, request for proposal basis, competitive proposal basis or formal sealed competitive bids.

Contract award period means the period commencing upon the calendar day when the city takes formal action in publishing a request for a proposal or an invitation for formal bids for the award of the contract and ending upon the 30th day after the award of the contract by city council or a determination that the contract will not be awarded to a contractor.

Contractor means any person who has received the award of a contract, submitted a bid or proposal in any form for the award of a contract, or been proposed to be awarded the contract in an item placed upon the city council agenda, including any other person who seeks the award of the contract and is contesting, appealing or protesting the award of the contract as proposed. The term shall include the proprietor for a proprietorship, each partner having an equity interest of ten percent or more for a partnership and each corporate officer, corporate director or holder of ten percent or more of the outstanding shares of stock for a corporation. The term shall also include any subcontractor authorized to provide all or a portion of goods, labor, or services in fulfillment of an award of a contract.

Donated means provided without charge to the city or for compensation of $1.00 per year or less.

Elected city official means any person who holds a city elective office, whether through election or through an appointment to fill an unexpired term thereof.

Election means the process by which individuals (whether opposed or unopposed) seek election to city elective offices. A run-off election is a separate election.

Impropriety means conduct that violates one or more of the ethical standards established in section 18-3 of this Code.

Interest in real property includes any leasehold, beneficial interest, ownership interest or an option to acquire any such interest in real property.

Member of household means:

(1) A person who is the city official's or candidate's spouse, child, ward, parent or other relative, or the child, ward, parent or other relative of such official's or candidate's spouse, and who shares the city official's or candidate's legal residence; or

(2) A person who is the city official's or candidate's spouse, child, ward, parent or other relative, or the child, ward, parent or other relative of such official's or candidate's spouse, and over whose financial affairs and holdings the city official or candidate has legal or actual control, whether or not they share a legal residence.

Misconduct means an act committed in violation of a penal law of the United States or of the State of Texas, or an act committed in violation of any penal provision of this Code including an act committed in violation of section 18-3 of this Code.

Person means an individual, corporation, partnership, labor organization, unincorporated association, firm, committee, political committee, club or other organization or group of persons whether associated with a political party or element thereof or not.

Personal loan means a contribution, loan or other advance from personal resources made to a candidate's campaign by the candidate, or personal funds expended on a campaign by a candidate for which reimbursement will be sought, or any loans made to a candidate's campaign that are guaranteed in whole or in part by the candidate.

Salaried means receiving compensation from the city in any amount.

(Ord. No. 87-59, § 1, 1-14-87; Ord. No. 92-1245, §§ 2, 3, 9-16-92; Ord. No. 94-1387, §§ 1, 2, 12-21-94; Ord. No. 00-690, § 2, 7-26-00; Ord. No. 2011-47, § 2, 1-12-2011; Ord. No. 2012-773, § 3, 8-29-2012)

Sec. 18-3. Standards of conduct.

(a) It shall be unlawful for any city official to:

(1) Engage in any business or professional activity that conflicts with the discharge of official duties.

(2) Invest or hold any investment or interest in any financial, business, commercial or other transaction that creates a conflict between the public trust held as an official of the city and the official's private interests.

(3) Disclose confidential information concerning the property, operations, policies or affairs of the city, or use such confidential information to advance the personal interests, financial or otherwise, including the property interests, of said official or others, or accept employment or engage in business or professional activity that the official might reasonably expect would require or induce him to disclose confidential information acquired by reason of his official position.

(4) Use the official's position or the city's facilities, equipment or supplies for the private gain or advantage of the official or others, or use or attempt to use the official's position to secure special advantage for the official or others.

(5) Use or attempt to use any city employee(s) to perform acts or services for the private gain or advantage of the official or others unless the city employee(s) is acting during off-duty hours or is on a duly approved leave of absence.

(6) Negotiate for or accept future employment with any person, firm, association or corporation that has a substantial interest in any proposed ordinance or decision upon which the official may or must act or make a recommendation subsequent to such negotiation or acceptance.

(7) Appear before the body of which the official is a member while representing any private person, group or interest.

(8) Use the official's position to harass or discriminate against any person based upon ethnicity, race, gender, sexual orientation, or religion.

(9) Interfere with any criminal or administrative investigation alleging the violation of any provision of this Code, the City Charter, administrative policy or executive order in any manner, including but not limited to seeking to persuade or coerce city employees or others to withhold their cooperation in such investigation.

(10) Solicit, accept, or agree to accept a benefit from a contractor during a contract award period or any time when the city official knows the contractor is interested in any contract of any value.

(b) In addition to the provisions of subsection (a) of this section, it shall be unlawful for any elected city official to:

(1) Use or attempt to use the official's position to exercise any administrative powers over any city department, as provided for in section 10, article VII of the City Charter.

(2) Use or attempt to use the official's position to influence or attempt to influence a contractor or a recipient of grant money administered by the city to utilize the goods, labor, or services of any person for the private gain or advantage of the official or others; provided, this provision shall not be construed to prohibit an official, acting in the capacity of a citizen, from communicating with a contractor concerning matters not related to or affecting city business.

(c) It shall be unlawful for any salaried city official to:

(1) Represent any private person, group or interest before any agency of the city, except in matters of purely civic or public concern when the official is acting without compensation or remuneration.

(2) Represent any private person, group or interest in any action or proceeding against the interests of the city, or in any litigation in which the city or any agency thereof is a party. However, this provision shall not prohibit representation by a group, firm or organization the city official is associated with if such city official does not participate in the action, proceeding or litigation in any manner and does not receive any benefit directly or indirectly from the action or proceeding.

(3) Represent any private person, group or interest in any action or proceeding in the municipal courts of the city that was instituted by a city officer or employee in the course of official duties.

The provisions of this subsection shall not be construed to prohibit elected city officials and their staffs, while acting in the course and scope of their duties, from rendering assistance to constituents in lawfully obtaining city services, licenses, or permits or in transacting other routine matters of public business with city departments or agencies, provided that no preferential treatment or consideration is requested by the elected city official or his staff members on behalf of the constituents.

The provisions of this article shall be cumulative of any other applicable requirements imposed by this Code.

(Ord. No. 87-59, § 1, 1-14-87; Ord. No. 89-1683, § 1, 11-15-89; Ord. No. 2011-47, § 2, 1-12-2011; Ord. No. 2012-773, § 4, 8-29-2012)

Sec. 18-4. Chapter cumulative.

This chapter is cumulative of and supplemental to applicable state and federal laws and regulations. Compliance with the provisions of this chapter shall not excuse or relieve any person from any obligation imposed by federal, state or local law.
(Ord. No. 92-1245, § 4, 9-16-92; Ord. No. 2020-176, § 2, 3-4-2020)

Sec. 18-5. Disclosure of interest in property.

An elected city official required to file an affidavit pursuant to chapter 553 of the Texas Government Code shall also file a copy of the affidavit with the city secretary's office within the time prescribed by section 553.002(a) of the Texas Government Code and promptly provide all other elected city officials with a copy of the affidavit.
(Ord. No. 2020-176, § 3, 3-4-2020)

Secs. 18-6—18-10. Reserved.

ARTICLE II. ETHICS COMMISSION*

Sec. 18-11. Created; purpose.

There is hereby created and established the ethics commission for the city to administer and implement this chapter. The commission shall have the duty and power to review allegations of impropriety on the part of city officials.
(Ord. No. 87-59, § 1, 1-14-87; Ord. No. 2011-47, §§ 3, 4, 1-12-2011)

Sec. 18-12. Composition.

The ethics commission shall consist of seven persons of good moral character who shall be adult residents of the city. No member may be a current elected city official, city employee, or candidate or applicant for such position, a campaign treasurer for a current elected city official or candidate, or an individual required to register pursuant to Article V of this chapter or, notwithstanding making expenditures or the receipt of compensation in amounts that require registration pursuant to Article V of this chapter, is otherwise engaged in conduct prescribed in section 18-72(a) of this Code and not exempted from the registration requirement in section 18-72(b) of this Code or to which an affirmative defense is not provided in section 18-73 of this Code. The mayor shall direct certain organizations to nominate the members of the commission. The positions shall be filled as follows:

(1) *Position 1:* By a member of the legal community. The Houston Bar Association shall nominate the person to fill the position from the legal community.

(2) *Position 2:* By a member of the labor community. The Central Labor Council of the AFL-CIO shall nominate the person to fill the position from the labor community.

(3) *Position 3:* By a member of the medical community. The Harris County Medical Society shall nominate the person to fill the position from the medical community.

(4) *Positions 4, 5, 6 and 7:* By four members from the city community-at-large. The city council shall nominate the persons to fill these four positions.

The city council shall confirm all nominations for positions on the commission. If any nominee is unable or declines to serve on the commission, or is not confirmed by city council, the nominating authority shall nominate another person to fill the position. If the nominating authority for Position 1, 2 or 3 declines to submit a nomination to fill its respective position, either initially or subsequently, or is unable to do so, or fails to do so within 30 days of the request by the mayor, the city council shall nominate and confirm a person to fill such vacant position.
(Ord. No. 87-59, § 1, 1-14-87; Ord. No. 2011-47, §§ 3, 5, 1-12-2011; Ord. No. 2012-773, § 5, 8-29-2012)

Sec. 18-13. Term of office.

The initial term of each position as hereby established shall commence on January 1, 1986.

*__Editor's note—__Ord. No. 2011-47, § 3, adopted January 12, 2011, amended the title to read as herein set out. Formerly, said article was entitled ethics committee.

The initial terms of Positions 1, 3, 5 and 7 shall expire on December 31, 1987; and the initial term of Positions 2, 4 and 6 shall expire on December 31, 1986. Following the aforesaid initial terms, the term of office for each position on the commission shall be two years. Any vacancy that occurs during an unexpired term shall be filled for the remainder thereof in the manner prescribed in section 18-12 of this Code for original nominations. A member shall hold office until his successor has been nominated by the proper authority and confirmed by city council.
(Ord. No. 87-59, § 1, 1-14-87; Ord. No. 2011-47, § 3, 1-12-2011; Ord. No. 2012-773, § 6, 8-29-2012)

Sec. 18-14. Chairman, vice-chairman; quorum.

Annually, upon confirmation of its new members, the commission shall elect one of its members to serve as chairman who will preside at all meetings. The commission shall also elect another of its members to serve as vice-chairman who shall preside at meetings in the absence of the chairman. Four members of the commission shall constitute a quorum to transact business. If a quorum is present, a vacancy on the commission shall not impair the right of the remaining members to exercise all the powers of the commission.
(Ord. No. 87-59, § 1, 1-14-87; Ord. No. 2011-47, § 3, 1-12-2011)

Sec. 18-15. Removal of members.

Members of the commission may be removed by the mayor, with the concurrence of city council, for substantial neglect of duty or for conduct that impairs the ability of the member to carry out his commission duties.
(Ord. No. 87-59, § 1, 1-14-87; Ord. No. 2011-47, § 3, 1-12-2011)

Sec. 18-16. Procedures; duties.

(a) The commission may establish for itself rules of order, evidence, or procedure that are consistent with principles of due process and not in conflict with applicable state law. Copies of commission rules of order, evidence, or procedure shall be posted on the city's internet website and maintained in the city secretary's office for inspection and purchase at the fees prescribed by law.

(b) Neither the commission nor any member shall have power to take action except by authority of majority vote, which shall mean the vote of at least four members.

(c) The commission may request the city attorney to provide legal advice, including any necessary training, or it may request of city council that special outside counsel be employed to serve in an advisory capacity to the commission. The commission may also request that city council employ or retain any additional staff that the commission may deem necessary, but no person employed or retained by the commission shall be considered an officer or employee of the city.

(d) Upon the receipt of a sworn, written complaint of any person the commission shall, or upon its own initiative may, review alleged acts of impropriety on the part of city officials. Upon the commission's request, the office of inspector general shall provide the commission with necessary assistance in the investigation of complaints. Investigations requested by the commission and conducted by the office of inspector general shall be conducted in a confidential manner and records of any such investigations shall be considered confidential to the extent permitted by state law. The unauthorized release of confidential information by any commission member shall be grounds for the removal of the commissioner.

(e) If the commission concludes that there is reasonable cause to believe that impropriety has occurred, the commission shall make a detailed written report of such conduct and forward its finding to the mayor, city council, the city attorney, and any appropriate department, agency, commission, or board.

(f) If the commission concludes that there is not reasonable cause to believe that impropriety has occurred, it shall promptly report such finding to the city official who is the subject of the complaint and the person who submitted the complaint.

(g) If any complaint received or matter brought to the attention of the commission appears to involve misconduct beyond the scope of impropriety, the commission shall refer the matter to the office of inspector general or the proper federal, state, or local governmental authority responsible for the investigation or prosecution thereof, or coordinate its review with the office of inspector general or agency responsible for the criminal investigation or prosecution so as not to prejudice any investigation or prosecution for misconduct beyond the scope of impropriety that is being conducted by criminal investigation or prosecution authorities.

(h) If, in the course of the commission's review of allegations of impropriety, there appears to be a question or issue of misconduct beyond the scope of impropriety, the commission shall immediately suspend its review and refer the matter to the office of inspector general or the proper federal, state, and local governmental authority for investigation and possible criminal prosecution, or coordinate its review with the office of inspector

general or agency responsible for the criminal investigation or prosecution so as not to prejudice any investigation or prosecution for misconduct beyond the scope of impropriety that is being conducted by criminal investigation or prosecution authorities.

(i) When the commission concludes that there has been a violation of subsection (a), part (8) of section 18-3 of this Code it shall have the power to:

(1) Issue a public rebuke and reprimand of the city official; and/or

(2) Recommend to the mayor and city council and to any appropriate department, agency, commission, or board that the city official be removed and relieved of any and all assignments or duties related to same.

(j) The commission shall review, process, and conclude all complaints in an expeditious manner.

(k) At least once each calendar year the director of the department of administration and regulatory affairs shall cause to be distributed to each city employee by email, fax, or other similar means a notice setting forth the functions and duties of the commission and the procedures for filing complaints, and periodically such notices shall be posted in prominent places in city-owned facilities. The notices shall set forth a city office and telephone number that may be contacted for further assistance or information.
(Ord. No. 87-59, § 1, 1-14-87; Ord. No. 89-1683, § 2, 11-15-89; Ord. No. 08-52, § 47, 1-16-08, eff. 1-26-08; Ord. No. 2010-97, § 1, 2-10-10; Ord. No. 2011-47, §§ 3, 6, 1-12-2011; Ord. No. 2012-773, §§ 7—9, 8-29-2012)

Sec. 18-17. Opinions.

(a) Upon receipt of a written request from any person subject to the ethical standards set out in section 18-3 herein, the commission may render written advisory opinions about the application of such ethical standards to such person in regard to a specified factual situation, whether existing or hypothetical. Any written advisory opinion so rendered shall be issued not later than the 60th day after the date the commission receives the written request.

(b) On its own initiative, the commission may issue a written advisory opinion about the application of the ethical standards set out in section 18-3 if a majority of the commission determines that an opinion would be in the public interest or in the interest of any person or persons subject to section 18-3; provided, however, that in no case shall the commission issue such an opinion which includes the name of any individual who may be affected by the opinion.
(Ord. No. 87-59, § 1, 1-14-87; Ord. No. 2011-47, §§ 3, 7, 1-12-2011)

Secs. 18-18—18-20. Reserved.

ARTICLE III. FINANCIAL DISCLOSURE*

Sec. 18-21. By covered city officials and candidates for city office.

(a) Notwithstanding the meaning of the term city official as provided in section 18-2 of this Code, only the city officials holding the following positions or performing the duties and functions enumerated and described below (hereinafter referred to as "covered city officials") shall be required to comply with the provisions of this article:

(1) The mayor, the city controller, and city council members;

(2) The city attorney, the presiding judge of the municipal courts department and all full-time and substitute municipal court judges (classified as "Associate Judges of Municipal Courts");

(3) All executive level employees of the mayor's office and the city controller's office;

(4) Council member chiefs of staff and agenda directors; and

(5) City department personnel—Directors, deputy directors, and assistant directors.

(b) On or before April 30 of each calendar year, each covered city official shall file with the city secretary a financial disclosure statement. The

*__Editor's note—__Ord. No. 2014-231, § 2(Exh. A), adopted March 26, 2014, amended Ch. 18, Art. III in its entirety to read as herein set out.

statement shall cover the previous calendar year. The mayor, city council members, and the city attorney shall file a financial disclosure statement pursuant to Chapter 145 of the Local Government Code. All other covered city officials may elect to use either the financial disclosure form prescribed by Chapter 145 of the Local Government Code or the financial disclosure statement form promulgated pursuant to the provisions of section 18-25 of this Code to comply with the provisions of this article.

(c) Any candidate for a city elective office at a general election who has not filed a financial disclosure statement pursuant to Chapter 145 of the Texas Local Government Code during the year in which such election is held shall file a statement pursuant to that law with the city secretary. A candidate for city elective office in a special election to fill a vacancy shall file a financial disclosure statement with the city secretary as provided in the preceding sentence. The term candidate shall include a covered city official seeking reelection or election to another city elective office. Those candidates who have not filed by the filing date provided herein shall be advised of such omission by the commission via hand delivery, electronic mail, certified mail, return receipt requested, sent or delivered to the address provided by such candidate at the time of filing for office, or by any other method approved by the commission.

(d) A covered city official who ceases to be a covered city official shall not be required to file a financial disclosure statement with the city secretary for the period existing between the previous statement filed by such official and the effective date of such official's termination of duty or employment.

(e) Any person who is appointed to a city elective office for an unexpired term and who is not otherwise subject to subsections (b) or (c) hereinabove shall file a financial disclosure statement with the city secretary for the 12 months preceding his appointment. The statement shall be filed not later than 15 days following such appointment. This subsection shall not apply to the mayor pro tem who fills a vacancy created in the office of mayor, or to the vice mayor pro tem who fills a vacancy created in the office of mayor or mayor pro tem, provided such person has previously complied with subsection (b) above.

(f) The city secretary shall retain financial disclosure statements for not less than five years from the date of filing. The city secretary shall also maintain a list of the persons who are required to file financial disclosure statements under this article and an index of the statements filed, setting forth names and dates of filing.

(g) A covered city official or candidate for a city elective office shall include the following information by separate listing of each category, as enumerated in parts (1) through (14) below, in his or her required financial disclosure statement:

(1) The name, address, public position held or sought by the covered city official or candidate, the names of all members of his household, and all names under which any of them do business.

(2) All sources of occupational income in excess of $250.00 per source of the covered city official or candidate, and members of his household, including the amount, the name and business address of the employer or employing business and the nature of the occupation or business. If the covered city official, candidate, or any member of his household is self-employed, or if such person owns, either legally or beneficially, at least a 20 percent interest in the business, then he shall report the names and addresses of the clients or customers from whom he or his employer or employing business received at least ten percent of such employer's or employing business' gross income during the period covered by the statement. If such income is for the provision of medical, health-related, or legal services, the income shall be listed but the identity of the individual patients or clients need not be disclosed.

(3) All income received during the period covered by the statement by the covered city official, candidate, member of his household, or by a business in which the person has a 20 percent or greater inter-

est, as a fee for future, unspecified services, including the amount and the name of the source of the fee.

(4) An itemized list of all income in excess of $250.00 per source received during the period covered by the statement by the covered city official, candidate, or member of his household from interest, dividends, royalties or rents, including the amount and the identification of the source.

(5) An itemized list of all income in excess of $250.00 per source received during the period covered by the statement by the covered city official, candidate, or member of his household as the beneficiary of a trust, including the amount and the identification of the source.

(6) The identification of any person, business, or organization from whom the covered city official, candidate, or member of his household has received, during the period covered by the statement, a gift of any money or other thing of value in excess of $250.00, or a series of gifts from the same source, the total value of which exceeds $250.00, including, by itemized listing, the source of the gift and its value. Excluded from this requirement are gifts received from persons related to the covered city official, candidate, or member of his household within the second degree of consanguinity or affinity, and campaign contributions which were received and reported as required by state statute. Also excluded from this requirement are meals and beverages received during the period covered by the statement by such person from some other person, business or organization.

(7) The name of any business in which the covered city official, candidate, or member of his household held or owned stock, legally or beneficially, at any time during the period covered by the statement, which stock is registered and publicly traded on a recognized exchange (or through the over-the-counter market).

(8) The name, street address, and nature of any business in which the covered city official, candidate, or member of his household held or owned stock, legally or beneficially, at any time during the period covered by the statement, which stock is either unregistered, closely held or not publicly traded on a recognized exchange (or through the over-the-counter market), and a statement as to whether the holdings constitute a ten percent or larger interest in such business.

For purposes of sub-items 7 and 8, stock held in a mutual fund, company 401K plan, or similar investment in which the shares of the fund or investment may be actively traded or exchanged, stock ownership may simply be identified by the fund name, investment fund name, or other descriptive name (i.e., Fidelity Magellan Fund, COH 457 Plan, etc.).

(9) A description and the amount of all bonds, notes and other commercial paper held or owned, legally or beneficially, by the covered city official, candidate, or member of his household at any time during the period covered by the statement.

(10) All other income received during the period covered by the statement by the covered city official, candidate, or member of his household in excess of $250.00, including, by itemized listing, the amount and description of the source.

(11) All real property in which the covered city official, candidate, or member of his household has held, at any time during the period covered by the statement, any legal or beneficial interest, including, by itemized listing, a description of the property sufficient to locate the property, including the street address, if any, the present use of the property and the proportion, by percent, of the interest held in each tract by the covered city official, candidate, or member of his household.

(12) An itemized list of all real property that, at any time during the period covered by the statement, was owned, either directly

or through a subsidiary, by a corporation, partnership, limited partnership, trust, or other business in which the covered city official, candidate, or member of his household is an officer or owns at least a ten percent interest, including a description of the property sufficient to locate the property, including the street address, if any, and the present use of the property.

(13) All contractual financial liabilities of the covered city official, candidate, or member of his household that are in excess of $1,000.00 and that existed at any time during the period covered by the statement, including the amount of the liability, the interest rate and the name of the obligee. Provided, however, that such liabilities shall not be construed to include normal household accounts such as those with retail business establishments or bank credit or debit cards. Additionally excluded from this requirement are campaign loans which are to be reported as required by state statute.

(14) All boards of directors of which the covered city official, candidate, or member of his household was a member and the executive positions which the person held during the period covered by the statement in any business, stating the name of each such business and the position held.

(h) Reports of cash value or interest by category.

(1) Where a monetary amount or value is required to be reported, the exact amount need not be stated. The statement may instead include the category of amount as follows:

a.	*Category I:*	Less than $1,000.00
b.	*Category II:*	At least $1,000.00 but less than $10,000.00
c.	*Category III:*	At least $10,000.00 but less than $50,000.00
d.	*Category IV:*	At least $50,000.00 but less than $100,000.00
e.	*Category V:*	At least $100,000.00 but less than $500,000.00
f.	*Category VI:*	At least $500,000.00 but less than $1,000,000.00
g.	*Category VII:*	$1,000,000.00 or more

(2) Where the rate of interest is required to be reported, the exact rate of interest need not be stated. The statement may instead include the rate of interest by category as follows:

a.	*Category I:*	Not more than five percent.
b.	*Category II:*	Greater than five percent, but not more than ten percent.
c.	*Category III:*	Greater than ten percent, but not more than 15 percent.
d.	*Category IV:*	Greater than 15 percent, but not more than 20 percent.
e.	*Category V:*	More than 20 percent.

(Ord. No. 87-59, § 1, 1-14-87; Ord. No. 94-1006, § 1, 9-21-94; Ord. No. 94-1388, § 1, 12-21-94; Ord. No. 05-1060, § 1, 9-14-05; Ord. No. 05-1222, § 1, 11-9-05; Ord. No. 2011-47, §§ 8—11, 1-12-2011; Ord. No. 2012-773, § 10, 8-29-2012; Ord. No. 2014-231, § 2(Exh. A), 3-26-2014; Ord. No. 2015-245, § 2, 3-25-2015)

Sec. 18-22. Public records.

All financial disclosure statements required by this article shall be sworn or conform to minimum state law requirements for unsworn declarations and shall constitute public records. The city secretary shall maintain such statements in a manner that is accessible to the public during regular business hours.
(Ord. No. 87-59, § 1, 1-14-87; Ord. No. 2014-231, § 2(Exh. A), 3-26-2014)

Sec. 18-23. Dates.

All financial disclosure statements required by this article shall be filed with the city secretary by

5:00 p.m. of the last day designated. When the last day falls on a Saturday or Sunday, or on an official city holiday as established by city council, the deadline for filing is extended to 5:00 p.m. of the next day which is not a Saturday or Sunday or official city holiday. Such statement shall be deemed to be timely filed if it is placed in the United States Post Office or in the hands of a common or contract carrier properly addressed to the city secretary within the time limit applicable to such statement. The postmark or receipt mark (if received by a common or contract carrier) will be prima facie evidence of the date that such statement was deposited with the post office or carrier.
(Ord. No. 87-59, § 1, 1-14-87; Ord. No. 2014-231, § 2(Exh. A), 3-26-2014)

Sec. 18-24. Legal opinions.

Any elected city official may request, and the city attorney shall thereupon promptly issue, a written opinion concerning the meaning or effect of any section, word, or requirement of this article as it affects such official. At the request of such official, the city attorney shall not disclose the requesting party's identity in the written requested opinion or in any other manner, and shall render the opinion in the form of a response to an anonymous, hypothetical fact situation.
(Ord. No. 87-59, § 1, 1-14-87; Ord. No. 2014-231, § 2(Exh. A), 3-26-2014)

Sec. 18-25. Forms.

The city secretary shall promulgate forms on which statements required by this article may be made and shall make them available to all covered city officials who are subject to the terms of this article.
(Ord. No. 87-59, § 1, 1-14-87; Ord. No. 2014-231, § 2(Exh. A), 3-26-2014)

Sec. 18-26. Penalty.

Any violation of this article, upon conviction, shall be fined not less than $100.00 nor more than $500.00 for each violation. Each day that any violation continues shall constitute a separate and distinct offense. Financial disclosure statements filed pursuant to Chapter 145 of the Local Government Code shall be subject to the provisions and penalties therein.
(Ord. No. 87-59, § 1, 1-14-87; Ord. No. 92-1449, § 33, 11-4-92; Ord. No. 05-1060, § 2, 9-14-05; Ord. No. 2014-231, § 2(Exh. A), 3-26-2014)

Cross reference—General penalty, § 1-6.

Sec. 18-27. Review by ethics commission.

All financial disclosure statements shall be reviewed by the commission, and if a majority of the commission determines that the statement has been completed incorrectly or not in accordance with the provisions of this article or other applicable law, the covered city official or candidate who filed such statement shall be advised of such by the commission via hand delivery, electronic mail, certified mail, return receipt requested, sent or delivered to the address provided by such covered city official or candidate at the time of his or her filing, or by any other method approved by the commission. Any violation of this article or other applicable law pertaining to financial disclosure shall be referred to the city attorney or other appropriate official by the commission.
(Ord. No. 87-59, § 1, 1-14-87; Ord. No. 05-1060, § 2, 9-14-05; Ord. No. 2011-47, § 12, 1-12-2011; Ord. No. 2014-231, § 2(Exh. A), 3-26-2014)

Secs. 18-28—18-30. Reserved.

ARTICLE IV. LIMITATIONS ON SOLICITATIONS AND CONTRIBUTIONS*

Sec. 18-31. Scope; contribution cycles.

(a) The provisions of this article shall be applicable to all candidates and persons making contributions to candidates and to such additional matters as are addressed herein.

(b) Each candidate shall file with his application for a place on the ballot or declaration of write-in candidacy a written statement acknowledging that he has received a copy of this chapter.

*__Editor's note—__Ord. No. 2012-773, § 11, adopted August 29, 2012, repealed Divisions 1—3 Title designations.

(c) As used in this article the term contribution cycle shall mean:

(1) For a person or political committee:

a. The period beginning January 1 following a general municipal election and ending on December 31 of the next year, and

b. The period beginning January 1 after the end of the previous period and ending on December 31 following a general municipal election;

(2) For a person or political committee contributing to a candidate in a run-off election, the period beginning the day after a general municipal election and ending on December 31 following a run-off election; and

(3) For a person or political committee contributing to a candidate in a special election to fill a vacancy:

a. The period beginning when a person takes affirmative action to become a candidate as defined in section 18-2 of this Code and ending on December 31 of the year in which the special election is held, and

b. If candidate is in a run-off election, an additional period beginning the day after the special election and ending on December 31 of the year in which the special election run-off is held.

(d) Terms not defined in this article but defined in Title 15 of the Texas Election Code shall have the meanings assigned to them in Title 15 of the Texas Election Code.

(Ord. No. 92-1245, § 5, 9-16-92; Ord. No. 2011-47, § 13, 1-12-2011; Ord. No. 2016-528, § 2, 6-29-2016, eff. 7-1-2016)

Sec. 18-32. No contributions in city owned or operated buildings or facilities.

It shall be unlawful for any person to deliver a contribution to a candidate or for any candidate to accept a contribution in any city owned or operated building or facility. It is a defense to prosecution that the delivery was made by the United States Postal Service or other delivery service or common carrier or the contribution was offered and accepted during an authorized campaign fundraising event conducted at a city owned or operated building or facility pursuant to a written agreement with the city regarding the use of the city owned or operated building or facility.

(Ord. No. 92-1245, § 5, 9-16-92; Ord. No. 95-104, § 1, 1-25-95; Ord. No. 2011-47, § 13, 1-12-2011; Ord. No. 2011-107, § 2, 2-9-2011; Ord. No. 2012-773, § 12, 8-29-2012)

Sec. 18-33. Prohibited solicitations.

(a) It shall be unlawful for any candidate to accept or to offer or agree to accept any contribution that was solicited by a member of the ethics commission, planning commission or a member of the sports authority board, the port authority board, or the metropolitan transit authority board appointed by the city.

(b) It shall be unlawful for any member of the ethics commission, planning commission or a member of the sports authority board, the port authority board, or the metropolitan transit authority board appointed by the city to solicit contributions for any candidate.

(c) It shall be unlawful for a city employee to solicit contributions for any candidate at any time unless the employee is acting during off-duty hours or is on a duly approved leave of absence. Further, this section does not contradict state law as it applies to police and fire personnel.

(Ord. No. 92-1245, § 5, 9-16-92; Ord. No. 95-104, § 1, 1-25-95; Ord. No. 01-742, § 1, 8-8-01; Ord. No. 2011-47, § 14, 1-12-2011; Ord. No. 2012-773, § 13, 8-29-2012)

Sec. 18-34. Prohibition of contributions by litigants.

It shall be unlawful for any person who has any litigation pending in which the person is an adverse party to the city or who has an ownership interest of ten percent or more in any party that has any litigation pending in which it is an

adverse party to the city or who has an ownership interest of ten percent or more in any party that has any litigation pending in which it is an adverse party to the city to contribute or donate any funds to any candidate if the litigation seeks recovery of an unspecified amount or of an amount in excess of $50,000.00, exclusive of costs of court and attorneys' fees. Such restriction shall not be applicable to attorneys representing such person. It shall be the duty of any candidate to refuse to accept any contribution that may be offered by a person who is known to the candidate to have a litigation interest described in the foregoing provision. In the event that any candidate unknowingly accepts a contribution in contravention of the foregoing provision, then it shall be the duty of the candidate to return the contribution within ten days after the candidate becomes aware of the litigation.
(Ord. No. 92-1245, § 5, 9-16-92)

Sec. 18-35. Reserved.

Editor's note—Ord. No. 2016-528, § 3, adopted June 29, 2016, effective July 1, 2016, repealed § 18-35 in its entirety. Formerly said section pertained to restricted period for solicitations and contributions and derived from Ord. No. 92-1245, § 5, 9-16-92; Ord. No. 94-1387, § 3, 12-21-94; Ord. No. 00-690, § 3, 7-26-00.

Sec. 18-36. Prohibited contractor contributions.

(a) It shall be unlawful for any contractor to contribute or offer any contribution to a candidate, or for any candidate to solicit or accept any contribution from a contractor during a contract award period. In the event that a candidate unknowingly accepts a contribution in contravention of the foregoing provision, it shall be the duty of the candidate to return the contribution within ten days after he becomes aware of the violation.

(b) Each request for proposal or other document, notice or advertisement for a contract shall contain a notice regarding this section in a form approved by the city attorney. Each contractor shall be required to submit with any proposal or other submission for the award of any contract a complete list of the persons included in the term "contractor" as defined in this chapter in a form prescribed by the city attorney. It shall be the duty of each city department director to immediately forward each contractor list received to the city secretary who shall compile and maintain a log of persons who are required to be reported. In addition, the city secretary shall compile, maintain and post, by the 14th day after a city council meeting, a list of contracts awarded at such council meeting by city council, including on such list, the date of the initial posting of the request for council action relative to each specific contract, the name of the contractor, a short description of the contract and the date occurring 30 days after the award of the contract or the determination by city council or the mayor that the contract would not be awarded to a contractor.

(c) As used in this section the term contract award period shall mean the period commencing at the time of posting of the city council meeting agenda including an item for the award of the contract and ending upon the 30th day after the award of the contract by city council or a determination by city council or the mayor that the contract will not be awarded to a contractor.

(d) As used in this section the term contractor shall not include a subcontractor.
(Ord. No. 92-1245, § 5, 9-16-92; Ord. No. 00-690, § 4, 7-26-00; Ord. No. 05-91, § 1, 1-25-05; Ord. No. 2011-47, § 15, 1-12-2011; Ord. No. 2016-528, 4, 6-29-2016, eff. 7-1-201)

Sec. 18-37. Reserved.

Editor's note—Ord. No. 2026-650, § 2, adopted July 22, 2026, effective July 28, 2026, repealed § 18-37 in its entirety. Formerly said section pertained to limitation on repayment of personal loans and derived from Ord. No. 92-1245, § 5, 9-16-92; Ord. No. 2016-528, § 5, 6-29-2016, eff. 7-1-2016.

Sec. 18-38. Limitation on candidate contribution by individual and political committee.

(a) No person shall make contributions to any single candidate in excess of $5,000.00 per contribution cycle. No political committee shall make contributions to any single candidate in excess of $10,000.00 per contribution cycle.

(b) A candidate may utilize unexpended political contributions raised in connection with a non-city elective public office in an amount not to exceed the maximum contribution that the candidate may accept from a single donor under subsection (a), regardless of category, provided he files with the city secretary a statement of intent to do so at the time of the filing with the city secretary of his campaign treasurer designation, or if the filing of a campaign treasurer designation is not required, prior to the making of any expenditure in connection with his campaign for city elective office. The provisions of this subsection shall also be applicable to a run-off election, provided that the statement of intent shall be filed within three days after the run-off election is called.

(c) A coordinated campaign expenditure shall be considered a contribution subject to the limits set forth in subsection (a) and subject to the disclosure requirements for campaign contributions made to a candidate for city office. As used in this subsection, the term coordinated campaign expenditure means a payment, other than a direct contribution, for an activity, service or product that contains express advocacy for the election or defeat of a clearly identified candidate for city office and is made in cooperation, consultation, or concert, with or at the request or suggestion of, a candidate for city office or a candidate's representative, agent, or employee.

(1) Coordinated campaign expenditures shall include, but not be limited to the following:

a. Voter identification and/or get-out-the-vote activity on behalf of a specific candidate for city office; and

b. A public communication that refers to a clearly identified candidate for city office and that promotes or supports a candidate for that office, or attacks or opposes a candidate for that office, or is suggestive of no plausible meaning other than an exhortation to vote for or against a specific candidate.

(2) If an individual or organization is engaging in express advocacy for the election or defeat of a clearly identified candidate for city office, the following shall not be considered a coordinated campaign expenditure:

a. Direct monetary contributions made to a candidate for city office;

b. In kind contributions made to a candidate for city office;

c. Payments by an individual or organization for the individual's or organization's overhead expenses including but not limited to rent, utilities, taxes, office supplies or salaries; or

d. Volunteer (unpaid) activity on the part of the individual or the members of the organization.

(d) As used in this section, the term person shall not include a political committee.
(Ord. No. 92-1245, § 5, 9-16-92; Ord. No. 94-1387, § 4, 12-21-94; Ord. No. 01-799, § 1, 8-22-01; Ord. No. 05-73, § 1, 1-25-05; Ord. No. 2011-47, § 16, 1-12-2011; Ord. No. 2016-528, § 6, 6-29-2016, eff. 7-1-2016)

Editor's note—Ord. No. 2016-528, §§ 9, 10, adopted June 29, 2016, retroactively applied the changes to the contribution limits in Section 18-38(a) to March 5, 2016, or April 5, 2016, for a candidate who participated in the December 12, 2015 run-off election. The contribution cycles leading up to the November 5, 2019 election are as follows:

1) March 5, 2016 (or April 5, 2016 as applicable) through December 31, 2017;

2) January 1, 2018 through December 31, 2019; and

3) (For run-off candidates) November 6, 2019 through December 31, 2019.

Any contributions made before March 5, 2016, or April 5, 2016, as applicable, shall be governed by the provisions of Section 18-38(a) of the Code of Ordinances, Houston, Texas, that were in effect on the date the contribution was made.

Sec. 18-39. Reserved.

Editor's note—Ord. No. 2016-528, § 7, adopted June 29, 2016, effective July 1, 2016, repealed § 18-39 in its entirety. Formerly said section pertained to retirement of debt by term limited candidates and derived from Ord. No. 94-1387, § 5, 12-21-94.

Sec. 18-40. Reserved.

Editor's note—Ord. No. 2006-1239, § 3, adopted December 13, 2006, repealed § 18-40 in its entirety. Formerly, said section pertained to Internet posting of campaign finance reports and derived from Ord. No. 01-597, § 2, 6-27-01.

Sec. 18-41. Violations.

All provisions of this article shall be punishable as provided in section 1-6 of this Code. (Ord. No. 92-1245, § 5, 9-16-92; Ord. No. 2012-773, § 14, 8-29-2012)

Secs. 18-42—18-70. Reserved.

ARTICLE V. LOBBYING

Sec. 18-71. Definitions.

The definitions established in section 18-2 of this Code shall not apply in this article unless expressly indicated below. In this article, the following words and terms shall have the meanings provided to them in this section, unless the context clearly indicates another meaning:

Administrative action means rulemaking, licensing, or any other matter that may be the subject of action by a city official, city department or other city agency, including the proposal, consideration, or approval of the matter. The term does not include the day-to-day application, administration or execution of city programs and policies such as permitting, platting, and design approval matters related to or in connection with a specific project or development.

Benefit shall have the meaning provided in section 18-2 of this Code.

Candidate means a person who knowingly and willingly takes affirmative action for the purpose of gaining election to city office or for the purpose of satisfying financial obligations incurred by the person in connection with the campaign for election. Examples of affirmative action include:

(1) The filing of a campaign treasurer appointment;

(2) The filing of an application for a place on a ballot;

(3) The filing of a declaration of write-in candidacy;

(4) The making of a public announcement of definite intent to run for city office in a particular election, regardless of whether the specific office is mentioned in the announcement;

(5) Before a public announcement of intent, the making of a statement of definite intent to run for city office and the soliciting of support by letter or other mode of communication; and

(6) The soliciting or acceptance of a campaign contribution or the making of a campaign expenditure.

City elective office has the meaning provided in section 18-2 of this Code.

Communicates directly with, or any variation of the phrase, means contact in person or by telephone, telegraph, letter, facsimile, electronic mail, or other electronic means of communication.

Compensation means money, service, facility, or other thing of value or benefit that is received or is to be received in return for or in connection with services rendered or to be rendered.

Expenditure means a payment, distribution, loan, advance, reimbursement, deposit, or gift of money or any thing of value, including a contract, promise, or agreement, whether or not legally enforceable, to make an expenditure.

Member of the executive branch means the mayor, city controller, mayor-elect, city controller-elect, candidate for mayor or controller, or member of the Archaeological and Historical Commission, Airport Land Use Regulations Board of Adjustment, Automotive Board, Board of Public Trusts, Boiler Code Review and Licensing Board, Building and Standards Commission, Civil Service Commission, Electrical Board, Fire Code Board of Appeals, General

Appeals Board, Helicopter Facilities Licensing and Appeals Board, Mechanical Code Review Board, Municipal Board on Sign Control, Planning Commission, Plumbing Code Review Board, Tower Permit Commission, or Wastewater Capacity Reservation Review Board.

Member of the legislative branch means a council member, council member-elect, or candidate for the office of council member.

Municipal legislation means:

(1) An ordinance, resolution, motion, amendment, nomination, or other matter pending before the city council; or

(2) Any matter that is or may be the subject of action by the city council or a council committee, including drafting, placing on the agenda, consideration, passage, defeat, approval, or countersignature of the matter.

Owner means a person who is a sole proprietor of a business, a majority shareholder of a corporation, or a general partner of a partnership and who communicates directly with one or more members of the legislative or executive branch to influence municipal legislation or administrative action on behalf of such business, corporation, or partnership.

Person means an individual, corporation, association, firm, partnership, committee, club, organization, or group of persons who are voluntarily acting in concert.

Registrant means a person required to register under section 18-72 of this Code.

Reimbursement shall have the same meaning as "compensation" defined above.

(Ord. No. 98-732, § 2, 8-26-98; Ord. No. 01-115, § 1, 1-24-01; Ord. No. 02-399, § 44, 5-15-02; Ord. No. 2011-47, §§ 17, 18, 1-12-2011; Ord. No. 2011-107, § 3, 2-9-2011; Ord. No. 2012-773, § 16, 8-29-2012; Ord. No. 2021-1037, § 20(Exh. I.20), 12-1-2021, eff. 4-1-2022)

Sec. 18-72. Persons required to register.

(a) A person must register with the city secretary under this article if the person communicates directly with a member of the legislative or executive branch to influence municipal legislation or administrative action and:

(1) Makes or reasonably expects to make a total expenditure of $200.00 or more in a calendar quarter, or $800.00 or more in a calendar year, not including the person's own travel, food, or lodging expenses or the person's own membership dues, on activities described in section 18-75 of this Code to communicate directly with one or more members of the legislative or executive branch to influence municipal legislation or administrative action; or

(2) Receives or may reasonably expect to receive from another person compensation or reimbursement, not including reimbursement for the person's own travel, food, or lodging expenses or the person's own membership dues, of $200.00 or more in a calendar quarter, or $800.00 or more in a calendar year, to communicate directly with one or more members of the legislative or executive branch to influence municipal legislation or administrative action; or

(3) As part of the person's regular employment, communicates directly with one or more members of the legislative or executive branch to influence municipal legislation or administrative action on behalf of the employer by whom the person is compensated or reimbursed, whether or not the person receives any compensation for the communication in addition to the salary for that regular employment.

(b) A person otherwise required to register under subsection (a)(1) or (a)(2) who communicates directly with a member of the executive branch to influence administrative action is not required to register if:

(1) The person is performing an act that may be performed only by a licensed attorney; or

(2) The person is a representative of a city employee union whose only direct communication concerning administrative action is on behalf of an individual member of the union; or

(3) The person is an owner as defined in section 18-71 of this Code.

(Ord. No. 98-732, § 2, 8-26-98; Ord. No. 2011-47, § 19, 1-12-2011; Ord. No. 2011-107, § 4, 2-9-2011)

Sec. 18-73. Affirmative defenses for failure to register.

It shall be an affirmative defense to prosecution for failure to register under this article that:

(1) The person owns, publishes, or is employed by a newspaper, any other regularly published periodical, a radio station, a television station, a wire service, or any other bona fide news medium that in the ordinary course of business disseminates news, letters to the editor, editorial or other comments, or paid advertisements that directly or indirectly oppose or promote legislation or administrative action, provided the person does not engage in further or other activities that require registration under this article and has not been retained to represent another person in connection with influencing municipal legislation or administrative action;

(2) The person's only direct communication with a member of the legislative or executive branch to influence municipal legislation or administrative action is an appearance before or testimony to one or more members of the legislative or executive branch in a hearing conducted by or on behalf of either the legislative or the executive branch or public expression at a meeting of city officials, provided that the hearing or meeting is open to the public under the Open Meetings Act, Chapter 551, Texas Government Code, and that the person receives no special or extra compensation for the appearance other than actual expenses incurred in attending the hearing;

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(3) The person's only activity is to encourage or solicit members, employees, or stockholders of an entity by whom the person is retained or members of a union or association to which the person belongs to communicate directly with members of the legislative or executive branch to influence municipal legislation or administrative action;

(4) The person's only activity to influence municipal legislation or administrative action is to compensate or reimburse a registrant to act in the person's behalf to communicate directly with a member of the legislative or executive branch to influence municipal legislation or administrative action;

(5) The person's only activity to influence municipal legislation or administrative action is attendance at a meeting or entertainment event that is also attended by a member of the legislative or executive branch if the total cost of that meeting or entertainment event is paid by a business entity, union, or association; or

(6) The person's only compensation or reimbursement subject to section 18-72(a)(2) of this Code consists of reimbursement for any wages not earned due to attendance at a meeting or entertainment event, travel to and from the meeting or entertainment event, admission to the meeting or entertainment event, and any food and beverage consumed at the meeting or entertainment event, if the meeting or entertainment event is also attended by a member of the legislative or executive branch and if the total cost of the meeting or entertainment event is paid by a business entity, union, or association.

(Ord. No. 98-732, § 2, 8-26-98)

Sec. 18-74. Registration.

(a) A person required to register under this article who has not registered or whose registration has expired in connection with the communication shall file annually with the city secretary a registration form signed under oath not later than five working days after the date on which the person or person's employee makes the first direct communication with a member of the legislative or executive branch that requires the person's registration. If the registrant is not an individual, an authorized officer or agent of the registrant shall sign the form. Such registration shall be on a form prescribed by the city secretary and shall include:

(1) The registrant's full name, permanent street address and mailing address, if different;

(2) The name, address and nature of business of each entity or employer, if any, on whose behalf the registrant will communicate directly with one or more members of the legislative or executive branch to influence municipal legislation or administrative action;

(3) The subject or subjects on which the registrant will communicate directly with one or more members of the legislative or executive branch to influence municipal legislation or administrative action;

(4) If the registrant is acting as the agent or employee of an entity, the name, address, and nature of business of the entity; and

(5) Whether the registrant's compensation, if any, is totally or partially contingent on the passage or defeat of any municipal legislation or the outcome of any administrative action.

(b) At the time of registering, a registrant shall pay to the city and the city secretary shall collect an annual registration fee stated for this provision in the city fee schedule. The fee shall be payable for each registration form. All registration fees shall be deposited into the general fund.

(c) A registration expires one year from the date of its filing.

(Ord. No. 98-732, § 2, 8-26-98; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-47, § 20, 1-12-2011; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 18-75. Activity reports.

(a) Each registrant shall file with the city secretary between the first and tenth day of April, July, October and January an activity report signed under oath concerning the registrant's activities during the previous calendar quarter. If the registrant is not an individual, an authorized officer or agent of the registrant shall sign the form. Such report shall be on a form prescribed by the city secretary and shall include:

(1) A complete and current statement of the information required to be supplied pursuant to section 18-74 of this Code;

(2) Certain operational expenditures other than benefits included under item (3) for direct communication with a member of the legislative or executive branch to influence municipal legislation or administrative action, provided that each expenditure of $50.00 or more shall be itemized by the date, name and status of the recipient that requires the reporting of the expenditure, including the official title of any city official or employee, amount and purpose, broken down into the following categories:

a. Compensation or reimbursement to persons other than employees for professional or consulting services; and

b. Other professional expenses related to direct communication, including but not limited to advertising, public relations and catering expenses.

(3) Each expenditure, gift or honorarium of $250.00 or more (excluding those made for the attendance of a member of the legislative or executive branch at political fund-raisers or charity events) made by the registrant or anyone acting on behalf of the registrant to benefit a member of the legislative or executive branch, itemized by date, beneficiary, amount and circumstances of the transaction and the aggregate of all such individual expenditures that are less than $250.00 but more than $25.00; and

(4) Each business entity in which the registrant knows or has reason to believe that a member of the legislative or executive branch is a proprietor, partner, director, officer, manager, employer or employee or has a substantial interest within the meaning of Chapter 171, Texas Local Government Code and with which the registrant has engaged in an exchange of money, goods, services or anything of value if the total of such exchanges is $250.00 or more in a calendar quarter, identified by its name and address, the member of the legislative or executive branch, and the date, amount and nature of each such exchange.

(b) Each registrant shall obtain and preserve all accounts, bills, receipts, books, papers and documents necessary to substantiate the registrations and activity reports required to be made pursuant to this article for six years from the date of filing of the registration or report containing such items or for the period otherwise required by law, whichever is longer.

(c) Each person about whose activities a registrant is required by subsection (a) of this section to report shall provide all information necessary for the report concerning such activities to the registrant at least five days before such registrant's report is due to be filed.

(d) No quarterly activity report shall be required if there is no activity during the preceding quarter and there are no other changes to items required to be reported.
(Ord. No. 98-732, § 2, 8-26-98; Ord. No. 2011-47, §§ 21, 22, 1-12-2011)

Sec. 18-76. Other applicable policies.

Nothing in this article shall supersede or preempt the stricter provisions of any applicable policy of the mayor, the city controller, a city department director or a council member with respect to employees subject to their supervision and control.
(Ord. No. 98-732, § 2, 8-26-98; Ord. No. 05-91, § 1, 1-25-05)

Sec. 18-77. Termination notice.

(a) A person who ceases to engage in activities requiring registration under this article shall file a written, verified statement with the city secretary acknowledging the termination of activities. The notice of termination shall be filed within 30

days after the registrant ceases the activity that required registration. The notice is effective immediately.

(b) A person who files a notice of termination under this section must file the reports required by section 18-75 of this Code for any reporting period during which the person was registered.
(Ord. No. 98-732, § 2, 8-26-98)

Sec. 18-78. Maintenance of registrations and reports.

(a) All registrations and reports filed under this article are public records and shall be made available for public inspection during regular business hours.

(b) The city secretary shall:

(1) Provide appropriate forms, covering only the items required to be disclosed under this article, to be used for the registration and reporting of required information;

(2) Maintain registrations and reports in a separate, alphabetical file;

(3) Retain registrations and reports filed under this article for at least six years after the date of filing;

(4) Remove registrations and reports from the current files after two years from the date of filing and thereafter preserve or dispose of them in accordance with other applicable law; and

(5) Maintain a deputy available to receive registrations and reports and make the registrations and reports available to the public for inspection.
(Ord. No. 98-732, § 2, 8-26-98; Ord. No. 2011-47, § 23, 1-12-2011)

Sec. 18-79. Timeliness of filing registrations and reports.

A registration or report filed by certified first-class United States mail, return receipt requested, or by common or contract carrier is timely if:

(1) It is properly addressed with postage or handling charges prepaid;

(2) It bears a post office cancellation mark or a receipt mark from a common or contract carrier indicating a time within the applicable filing period or before the applicable filing deadline or if the person required to file furnishes satisfactory proof that it was deposited in the mail or with a common or contract carrier within that period or before that deadline; and

(3) It is in fact received by the city secretary.
(Ord. No. 98-732, § 2, 8-26-98)

Sec. 18-80. List of registrants and employers.

(a) The city secretary shall maintain a current list of the names of registrants and shall indicate by each registrant's name each person employing the registrant, if any, or the name of the entity or person on whose behalf the registrant communicated.

(b) In addition to the list required under subsection (a), the city secretary shall prepare a list of the names of any person employing a registrant and shall indicate each registrant compensated by the person.

(c) The city secretary shall provide the lists prepared under this section and a monthly update of the lists to the mayor, each member of the city council, the city controller, all city department directors, and any other member of the executive or legislative branches or person required to register or file under this article who requests one.
(Ord. No. 98-732, § 2, 8-26-98; Ord. No. 05-91, § 1, 1-25-05; Ord. No. 2011-47, § 24, 1-12-2011)

Sec. 18-81. Restrictions on expenditures.

(a) A person registered under section 18-74 of this Code or a person acting on the registrant's behalf and with the registrant's consent or ratification may not offer, confer, or agree to confer on a member of the legislative or executive branch:

(1) A loan, including the guarantee or endorsement of a loan; or

(2) A gift of cash or a negotiable instrument as described by section 3.104, Texas Business and Commerce Code.

(b) A member of the legislative or executive branch may not solicit, accept, or agree to accept from a person registered under section 18-74 of this Code or from a person acting on the registrant's behalf and with the registrant's consent or ratification an item listed in subsection (a).
(Ord. No. 98-732, § 2, 8-26-98)

Sec. 18-82. Affirmative defenses concerning restricted expenditures.

It shall be an affirmative defense to a prosecution under section 18-81 of this Code that the loan, gift or expenditure is:

(1) A loan in the due course of business from a corporation or other business entity that is legally engaged in the business of lending money and that has conducted that business continuously for more than one year before the loan is made;

(2) A loan or guarantee of a loan or a gift made or given by a person related within the second degree by affinity or consanguinity to the member of the legislative or executive branch; or

(3) A political contribution as defined by section 251.001 of the Texas Election Code.
(Ord. No. 98-732, § 2, 8-26-98)

Sec. 18-83. Required disclosure on legislative advertising.

(a) A person required to register under this article or a person acting on his behalf commits an offense if the person knowingly enters into a contract or other agreement to print, publish, or broadcast legislative advertising that does not indicate in the advertising:

(1) That it is legislative advertising;

(2) The full name of the individual who personally entered into the contract or agreement with the printer, publisher, or broadcaster and the name of the person, if any, that the individual represents; and

(3) In the case of advertising that is printed or published, the address of the individual who personally entered into the agreement with the printer or publisher and the address of the person, if any, that the individual represents.

(b) A professional advertising agent conducting business in this state on behalf of a person required to register under this article who seeks to procure the broadcasting, printing, or publication of legislative advertising on behalf of the sponsor of the advertising commits an offense if the agent enters into a contract or agreement for the broadcasting, printing, or publication of legislative advertising and does not, before the performance of the contract or agreement, give the sponsor written notice as provided by subsection (c).

(c) The notice required by subsection (b) must be substantially as follows:

"City of Houston Code of Ordinances Section 18-83 requires legislative advertising to disclose certain information. A person required to register under this article or a person acting on his behalf who knowingly enters into a contract or other agreement to print, publish, or broadcast legislative advertising that does not contain the information required under that section commits an offense that is a Class C misdemeanor."

(d) In this section, "legislative advertising" means a communication that supports, opposes, or proposes municipal legislation and that:

(1) In return for consideration, is published in a newspaper, magazine, or other periodical or is broadcast by radio, television, or on the internet; or

(2) Appears in a pamphlet, circular, flier, billboard or other sign, bumper sticker, button, or similar form of written or electronic means of communication.
(Ord. No. 98-732, § 2, 8-26-98)

Sec. 18-84. Criminal penalties.

(a) A person commits an offense if the person intentionally or knowingly violates any provision of this article.

(b) Violations shall be punishable as provided by section 1-6 of this Code.
(Ord. No. 98-732, § 2, 8-26-98)

Sec. 18-85. Failure to register or file all required forms.

(a) The city secretary shall maintain a record of all registrations, termination notices and reports filed under this article.

(b) Whenever the city attorney determines that a person has failed to register or file any required form, statement, or report as required by this article, the city attorney shall send a written statement of this finding to the person involved by certified mail to the last known mailing address.

(c) If the person fails to register or file the form, statement, or report as required by this article before the twenty-first day after the date on which the notice was deposited in the mail, the city attorney shall file a sworn complaint in the municipal court.
(Ord. No. 98-732, § 2, 8-26-98)

Sec. 18-86. Enforcement.

(a) Complaints of violations of this article shall be forwarded to the city attorney for review. If the city attorney determines that a violation may have occurred, he shall take appropriate action.

(b) A person may file a written, sworn statement alleging a violation of this article with the city attorney.

(c) If the person fails to register or file the form, statement, or report as required by this article before the 21st day after the date on which the notice was deposited in the mail, the city attorney shall file a sworn complaint in the municipal courts.
(Ord. No. 98-732, § 2, 8-26-98; Ord. No. 2010-846, § 9, 11-3-2010)

Sec. 18-87. Regulations.

The city secretary may adopt regulations for the efficient administration of this article. Any such regulations shall be consistent with this article and applicable laws and shall be approved prior to implementation by the city attorney. A copy of the regulations shall be maintained for inspection in the city secretary's office and shall be available for purchase at the fees prescribed by law.
(Ord. No. 98-732, § 2, 8-26-98)

Sec. 18-88. Certain actions by former city officials prohibited.

(a) No former city official shall during the one year period following his departure date enter into a contractual relationship with the city or hold more than a 20 percent interest in any company that has a contractual relationship with the city. Nothing in this subsection shall prohibit a former city official from accepting employment with the city following his departure date.

(b) No former city official shall during the one year period following his departure date communicate directly with a member of the legislative or executive branch to influence municipal legislation or administrative action. It is an exception to the application of this subsection that the former city official is primarily acting for his own benefit or making an uncompensated direct communication relating to matters of purely civic or public concern.

(c) No former city official shall communicate directly with a member of the legislative or executive branch in an attempt to secure access to information not otherwise available to the general public.

(d) For purposes of this section "departure date" means the last day of employment with the city or holding of city elective office. Where leave time is taken prior to termination, the departure date is the last day of the leave period.

(e) For purposes of this section and section 18-89 the term "city official" shall have the meaning provided in section 18-2 of this Code, except that persons whose services are donated, appointed members of city boards, committees and commissions who are compensated on a

per-meeting basis, and persons who are compensated at the rate of $1.00 per year shall be excluded.

(f) If, within one year after commencement of a contract between an individual/company and the city, the company or individual who negotiated and entered into said contract with the city hires a city employee who while a city employee had substantial and personal involvement with the negotiation of said contract, then said contract shall be subject to cancellation and/or the individual/company shall be barred from additional contracting with the city for a period of three years. For purposes of this subsection, the term had substantial and personal involvement means that a person, either as a person assigned to handle or participate in the handling of the matter or as a supervisor making decisions with respect to the matter, exercised discretion or decision-making in the handling of a matter that then was associated with a specific party or parties.
(Ord. No. 01-128, § 2, 1-31-01; Ord. No. 2011-47, § 26, 1-12-2011)

Sec. 18-89. Notice.

At least once each calendar year in conjunction with the notice to city employees required by section 18-16(d) of this Code, the director of administration and regulatory affairs shall cause to be distributed to each city official a notice regarding the provisions of section 18-88 of this Code. Each new city official shall be furnished the notice at the time of hiring, appointment or election. However, the failure of any city official to receive a notice shall not excuse compliance with section 18-88 of this Code.
(Ord. No. 01-128, § 2, 1-31-01; Ord. No. 08-52, § 48, 1-16-08, eff. 1-26-08)

Secs. 18-90—18-100. Reserved.

ARTICLE VI. ELECTRONIC FILING OF CAMPAIGN FINANCE REPORTS

Sec. 18-101. Purpose.

The purpose of this article is to require, with certain exceptions, that campaign finance reports required to be filed with the city secretary by any city officeholder, candidate for city elective office, or political committee, whether general purpose or special purpose, be filed in an electronic format. It is the intent of this article that the requirement of filing of campaign finance reports in an electronic format by city officeholders, candidates for city elective offices and general and special purpose political committees will not inconvenience those required to file such reports and will afford persons interested in the information contained in the reports easier access and an efficient means by which such information may be examined or extracted.
(Ord. No. 06-1239, § 2, 12-13-06; Ord. No. 2016-528, § 8, 6-29-2016, eff. 7-1-2016)

Sec. 18-102. Definitions

The following words, terms and phrases, when used in this article, have the meanings provided to them in this section, except where the context clearly indicates a different meaning:

Filer means the holder of a city elective office, any candidate for any such office, the duly authorized representative of a political committee, whether general purpose or special purpose, or any individual required to file a report under this article or Chapter 254, Texas Election Code.

Report means a campaign finance report required to be filed with the city secretary by Title 15 of the Texas Election Code.

Terms not defined in this article but defined in the Texas Election Code shall have the meanings assigned to them in the Texas Election Code.
(Ord. No. 06-1239, § 2, 12-13-06; Ord. No. 2011-47, § 27, 1-12-2011; Ord. No. 2016-528, § 8, 6-29-2016, eff. 7-1-2016)

Sec. 18-103. Electronic filing required; exceptions

(a) Except as provided in subsection (c) of this section, a report required to be filed under this article shall be filed with the city secretary in electronic format utilizing the system provided by the city. Updates, corrections or amendments

to any report shall be filed in like manner. The report shall be in a format approved by the Texas Ethics Commission.

(b) Each report shall contain all information required by Chapter 254, Texas Election Code. In addition, each report shall include the occupation and employer of each person making one or more political contributions that in the aggregate exceed $500.00 in a reporting period.

(c) A filer shall be exempt from the requirement set forth in subsection (a) of this section if the filer:

(1) Delivers to the city secretary an affidavit stating that the filer, or the person with whom the filer contracts, does not use computer equipment to keep the current records of political contributions, political expenditures, or persons making political contributions to the filer and the filer or committee does not, in a calendar year, accept political contributions that in the aggregate exceed $20,000.00 or make political expenditures that in the aggregate exceed $20,000.00; or

(2) Is an individual not acting in concert with another person who makes one or more direct expenditures in a campaign for an election from the individual's own property that exceed $100.00 on any one or more candidates or measures if the individual complies with Chapter 254, Texas Election Code, as if the individual were a campaign treasurer of a political committee and the individual receives no reimbursement for the expenditures.

The affidavit required in item (1) of this subsection shall conform to all requirements set forth in Chapter 254, Texas Election Code, and be filed with each report that is not filed electronically as required by this article.
(Ord. No. 06-1239, § 2, 12-13-06; Ord. No. 07-1147, § 1, 10-17-07; Ord. No. 2011-47, § 28, 1-12-2011)

Sec. 18-104. Offense; penalty

(a) It shall be unlawful for any filer to fail to timely file in an electronic format a report required by this article to be filed in that format.

(b) Each violation of this article shall constitute a separate offense that shall be punishable as provided in section 1-6 of this Code.
(Ord. No. 06-1239, § 2, 12-13-06)

Sec. 18-105. Internet posting of reports.

(a) The city secretary shall, within two business days following the date of each report's receipt, instruct the director of Houston Information Technology Services or his designee to post copies of all reports filed with the office of the city secretary on the city's Internet web site; provided that in such postings the address portion shall contain only the city, state and zip code of a person listed as having made a political contribution to the filer in the reporting period.

(b) The access allowed by this section to political reports is in addition to the public's access to the information through other electronic or print distribution of the information.
(Ord. No. 06-1239, § 2, 12-13-06; Ord. No. 2012-908, § 3, 10-17-2012)

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Chapter 19

FLOODPLAIN*

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ARTICLE I. IN GENERAL

Sec. 19-1. Statement of purpose.

(a) The purpose of this chapter is to promote the public health, safety and general welfare and to minimize public and private losses due to flood conditions in specific areas by provisions designed to:

(1) Protect human life and health.

(2) Minimize the need for rescue and relief efforts associated with flooding and generally undertaken at the expense of the general public.

(3) Minimize prolonged business interruptions.

(4) Minimize damage to public facilities and utilities such as water and gas mains, electric, telephone and sewer lines, streets and bridges located in floodplains.

(5) Provide for the sound use and development of flood prone areas in such a manner as to minimize the future flood-blight areas.

(b) This chapter provides a regulatory system to monitor the review of plats and permits to reduce the likelihood that development within this city will increase the dangers of flooding. To accomplish this purpose, this chapter utilizes the following methods:

(1) Restrictions or prohibitions of land uses that are dangerous to health, safety or property in times of flood, or cause excessive increases in flood heights or velocities.

(2) Requirements that land uses particularly vulnerable to floods, including facilities that serve such land uses, be protected against flood damage at the time of initial construction.

(3) Maintenance of control of the alteration of natural floodplains, stream channels,

*__Editor's note—__Ord. No. 2018-258, § 2(Exh. A), adopted April 4, 2018, effective September 1, 2018, amended Ch. 19 in its entirety to read as herein set out. Former Ch. 19 pertained to similar subject matter and derived from Ord. No. 85-1705, § 1, adopted 9-25-1985, and subsequent amendatory provisions. See the Code Comparative Table for a complete derivation.

__Cross references—__Buildings generally, Ch. 10; manufactured homes, etc., Ch. 29; planning and development generally, Ch. 33; subdivisions, Ch. 42.

and natural protective barriers, that are involved in the accommodation of floodwaters.

(4) Mitigation of filling, grading, dredging and other development that may increase flood damage.

(5) Prevention or regulation of the construction of flood barriers that will unnaturally divert floodwaters or which may otherwise increase flood hazards to other lands.

(c) The degree of regulation for flood protection established by this chapter is considered reasonable for regulatory purposes and is based on maps promulgated by FEMA that are required to be used as a condition of obtaining flood insurance. These maps are based on scientific and engineering considerations. On rare occasions greater floods can and will occur and flood heights may be increased by man-made or natural causes. Neither the regulations in this chapter nor the issuance of permits or other approvals granted pursuant to this chapter are intended to imply that lands outside the areas of special flood hazards or uses permitted within such areas will be free from flooding or flood damage.

(d) These rules and regulations shall be applicable throughout the city. The Houston special flood hazard areas identified by the effective version of the FEMA scientific and engineering report with accompanying flood insurance rate maps and flood boundary-floodway maps, and any subsequent revisions or amendments thereto are hereby adopted by reference and declared to be a part of this chapter. The provisions of this chapter shall take precedence over any less restrictive conflicting laws, ordinances, codes, or official determinations. For purposes of this chapter, the city engineer shall determine which of these conflicting laws are most restrictive and that decision shall be final.

(e) The FIS and the FIRM, and any subsequent revisions or amendments thereto that are being administered as provided in section 19-4 of this Code, are available for public inspection in the office of the city engineer during normal business hours. The city engineer shall be custodian of these records for all purposes. Maps may also be made available on the City of Houston website, but in the event of any conflict, the maps in the office of the city engineer shall control and are considered the official version.

(f) The Director of Houston Public Works is authorized to promulgate guidelines for administration of this chapter that are consistent with the requirements of this chapter and applicable state and federal laws and regulations.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-2. Definitions.

As used in this chapter the following words and terms shall have the following meanings unless the context of their usage clearly indicates another meaning:

0.2 percent flood elevation or *flood level* means the elevation above mean sea level that floodwaters have been calculated to have a 0.2 percent chance of reaching in any given year.

Addition means any alteration to an existing structure that increases its footprint.

AO, AH, or *VO Zones (areas of shallow flooding)* means those areas designated on the flood insurance rate map with a one percent or greater chance of flooding to an average depth of one to three feet, where a clearly defined channel does not exist, where the path of flooding is unpredictable, and where velocity flow may be evident. Such flooding is characterized by ponding or sheet flow.

Areas of combined probability means an area subject to both riverine and coastal flooding the limits of which are identified on the Flood Insurance Study profiles.

Base flood means a flood having a one percent chance of being equaled or exceeded in any one year.

Base flood elevation (BFE) or *base flood level* means the elevation above mean sea level that floodwaters have been calculated to reach during the base flood at a specific location.

Basement means any area of a building having its floor subgrade (below natural ground elevation) on all sides.

Breakaway wall means an open wooden lattice, insect screening or any other suitable building material approved by the city engineer that is not part of the structural support of the associated structure and that is intended to collapse under wind and water loads without causing collapse, displacement or other structural damage to the elevated portion of the structure or damage to the structural integrity of the structure on which breakaway walls are used. In addition, breakaway walls must be designed so that if carried downstream they will not cause damage to any other structure. Breakaway walls must have a design safe loading resistance of not less than ten and not more than 20 pounds per square foot. Use of breakaway walls that exceed a design safe loading resistance of 20 pounds per square foot (either by design or when so required by city or state codes) may be permitted only if a professional engineer, licensed in the State of Texas, certifies that the designs proposed meet the following conditions:

(1) Wall collapse shall result from a water load less than that which would occur during the base flood; and

(2) The elevated portion of the building and supporting foundation system shall not be subject to collapse, displacement, or other structural damage due to the effects of wind and water loads acting simultaneously on all building components (structural and nonstructural). Maximum wind and water loading values to be used in this determination shall each have a one percent chance of being equaled or exceeded in any given year (one hundred-year mean recurrence interval).

Certificate of Compliance means a document issued and filed in the Real Property Records by the city engineer indicating that a property owner has resolved a violation, temporary permit or substantial damage determination that caused a Certificate of Non-Compliance to be issued.

Certificate of Non-Compliance means a document issued and filed in the Real Property Records by the city engineer indicating that a property is in violation one or more provisions of this chapter; has been issued a temporary permit; or for which a substantial damage determination has not been resolved within six months from the date of the first notice of violation.

Coastal high hazard area—See definition of V1 through V30 Zones, VE Zones or V Zones.

Conveyance means, unless otherwise determined by the city engineer, the flow of water during the base flood with a velocity that is greater than one foot per second or a depth that is greater than one foot.

Critical facilities means facilities that materially affect the public health and welfare. Such facilities include, but are not be limited to:

(1) Hospitals, nursing homes, blood banks, health care facilities including those storing vital medical records, and housing likely to contain occupants who may not be sufficiently mobile to avoid death or injury during a flood;

(2) Police stations, fire stations, vehicle and equipment storage facilities, and emergency operations centers that are needed for flood response activities before, during, and after a flood;

(3) Public and private utility facilities that are vital to maintaining or restoring normal services to flooded areas before, during and after a flood;

(4) Structures or facilities that produce, use, treat, store, or dispose of highly volatile, flammable, explosive, toxic, and/or water-reactive materials;

(5) Drinking water plants and facilities, and wastewater treatment plants and facilities; and

(6) Schools, colleges, universities, and day care centers.

Development means any man-made change to improved or unimproved real estate, including, but not limited to buildings or other structures, mining, dredging, filling, grading, paving, excavation, or drilling operations or storage of equipment or materials.

Elevated floor construction means an engineered foundation system that is not constructed on natural grade, but uses a combination of vertical and horizontal members to support a structure above natural grade.

Elevation certificate means a statement from an engineer or surveyor licensed by the State of Texas on the most current FEMA form certifying that the lowest floor of the structure has been elevated at least as high as required by this chapter.

Federal Emergency Management Agency (FEMA) means the federal agency under which federal floodplain regulations and related programs are administered.

Fill means any material that is placed in an area and increases the elevation of that area or displaces water volume.

Flood means a general and temporary condition of complete or partial inundation of normally dry land areas from:

(1) The overflow of inland or tidal waters;

(2) The unusual and rapid accumulation or runoff of surface waters from any source; or

(3) A combination of (1) and (2).

Flood insurance rate map (FIRM) or *effective FIRM* means the official flood insurance rate map promulgated by the federal insurance administrator of FEMA that delineates both the special flood hazard areas and the risk premium zones applicable to the city, as amended and supplemented from time to time. Under certain circumstances as provided in section 19-4 of this Code, the effective FIRM may be supplemented with additional flood elevation data for purposes of the administration of this chapter.

Flood insurance study (FIS) means the effective report provided by FEMA containing current flood profiles of the water surface elevations of the base flood as well as the flood boundary-floodway map.

Floodplain development permit means a permit issued under the provisions of this chapter for any development of a site located within a Houston special flood hazard area. The term shall also include a permit for the placement of a recreational vehicle for more than 180 days in a Houston special flood hazard area.

Floodproofing means any combination of structural and nonstructural additions, changes or adjustments to structures which reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, structures and their contents.

Floodproofing certificate means a certificate issued by a registered professional engineer licensed in the State of Texas which states that he has developed and/or reviewed the structural design, specifications, and plans for the construction of a structure or improvement covered by the certificate and that the design and methods of construction are in accordance with accepted standards of practice for meeting the following requirements:

(1) The floodproofing methods used are adequate to withstand the flood depths, pressures, velocities, impact and uplift forces and other factors associated with the 0.2 percent chance flood; and

(2) Together with attendant utility and sanitary facilities, the structures are designed so that below the 0.2 percent chance flood level the structures are watertight with walls impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy.

Floodway means the channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge

the base flood without cumulatively increasing the water surface elevation more than the height specified for the site in the flood insurance study.

Floodway conveyance offset volume means the volume of material that must be excavated and removed from the special flood hazard area to provide an equivalent storage volume necessary to reduce loss of conveyance associated with development within the floodway.

Functionally dependent use means a use which cannot perform its intended purpose unless it is located or carried out in close proximity to water. The term includes only docking facilities, port facilities that are necessary for the loading and unloading of cargo or passengers, and ship building and ship repair facilities, but does not include long-term storage or related manufacturing facilities.

General appeals board means that board organized and created under the provisions of the Construction Code.

Highest adjacent grade means the highest natural elevation of the ground surface next to the proposed walls of a structure immediately prior to construction.

Historic structure means any structure that is:

(1) Listed individually in the National Register of Historic Places or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;

(2) Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district;

(3) Individually listed on the Texas Inventory of Historic Places; or

(4) Other historic designation acceptable to the city engineer.

Houston special flood hazard area means the land in the special flood hazard area and in the floodplain within the city that is subject to a 0.2 percent or greater chance of flooding in any given year and is designated as unnumbered A Zones, AE Zones, AO Zones, AH Zones, A1 through A99 Zones, VO Zones, V1 through V30 Zones, VE Zones, V Zones, or X Shaded Zones.

Lake Houston means, for purposes of this chapter, the shoreline of an area bounded on the south by the Lake Houston Dam, on the northwest by the West Lake Houston Parkway Bridge and on the northeast by an imaginary line running generally east to west that intersects the confluence of Luce Bayou and the East Fork of the San Jacinto River, and is more particularly described as beginning at a point located at 30° 2' 31.67" N, 95° 7' 12.09" W and running generally west to 30° 2' 32.02" N, 95° 7' 36.14" W.

Lowest floor means the lowest floor of the lowest enclosed area (including basement) of a structure. An unfinished or flood-resistant enclosure, used solely for parking of vehicles, building access or storage, in an area other than a basement area, is not considered a building's lowest floor, provided that such enclosure is not built to render the structure in violation of the applicable design requirements of this chapter or any other state or federal statute, rule, or regulation.

Manufactured home means a structure, transportable in one or more sections, which is built on a permanent chassis and is designed for use with or without a permanent foundation when connected to the required utilities including, but not limited to, a manufactured home as defined in section 29-1 of this Code.

Manufactured home park or *subdivision* means a parcel (or contiguous parcels) of land divided into two or more manufactured home lots for rent or sale including, but not limited to, a manufactured home park or manufactured home subdivision as defined in section 29-1 of this Code.

Market value means the value of a structure as established by one of the following:

(1) The improvement value assigned to the structure by the central appraisal district for the county in which the structure is located;

(2) The computed actual cash value as determined by the FEMA-approved Substantial Damage Estimator (SDE) methodology;

(3) An appraisal performed by a certified real estate appraiser licensed by the Texas Appraiser Licensing and Certification Board; or

(4) Any other similar method acceptable to the city engineer.

Market value shall not include land value.

Mean high tide means the average of all recorded high tides as recorded and reported by the National Weather Service.

Mean sea level means the National Geodetic Vertical Datum (NGVD) of 1929 or other datum, to which base flood elevations shown on the FIRM are referenced.

Minimum flood protection elevation means the 0.2 percent flood elevation, plus 2 feet.

Modular home means a structure or building module that is manufactured at a location other than the location where it is installed and used as a residence by a consumer, transportable in one or more sections on a temporary chassis or other conveyance device, and designed to be used as a permanent dwelling when installed and placed upon a permanent foundation system. This term shall include the plumbing, heating, air conditioning and electrical systems contained in the structure. This term does not include a manufactured home as defined in this chapter or building modules utilizing concrete or masonry as the primary structural component.

New construction means the initial construction of a structure.

Permit means a floodplain development permit issued under the provisions of this chapter.

Plat means any of the following: a Class II or Class III subdivision plat or a street dedication plat as those terms are defined in chapter 42 of this Code or a manufactured home subdivision plat as that term is used in chapter 29 of this Code.

Recreational vehicle means a vehicle that is:

(1) Built on a single chassis;

(2) Four hundred square feet or less when measured at the largest horizontal projections;

(3) Designed to be self-propelled or permanently towable by a light duty truck; and

(4) Designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

Section 1316 means 42 U.S.C. 4023, as amended, the section of the National Flood Insurance Act of 1968, which provides for the denial of flood insurance coverage for any property the FEMA Administrator finds has been declared by a duly constituted state or local authority to be in violation of state or local floodplain management regulations.

Special flood hazard area means the land in the floodplain within the city, that is subject to a one percent or greater chance of flooding in any given year and is designated as unnumbered A Zones, AE Zones, AO Zones, AH Zones, A1 through A99 Zones, VO Zones, V1 through V30 Zones, VE Zones or V Zones.

Start of construction, for other than new construction or substantial improvements under the Coastal Barrier Resources Act, 16 U.S.C. § 3501 et seq., includes substantial improvement, and means the date the building permit was issued, provided the actual start of construction, repair, reconstruction, placement, or other improvement is or was within 180 days after the permit date. The actual start means either the first placement of permanent construction of a structure on a site, such as the placement of concrete slabs or

footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation; or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for a basement, footings, piers, or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure.

Statement of compliance means a notarized statement, from the applicant for any permit issued under this chapter, to the effect that the applicant has received all permits, licenses, or approvals then required by federal law, statute or regulation, including but not limited to, permits issued under the authority of Section 404 of the Federal Water Pollution Control Act Amendments of 1972, or required by or under any statute, rule or regulation of the State of Texas.

Structure means an edifice or building of any kind or piece of work that is artificially built up or composed of parts joined together in a definite manner, including, but not limited to, a modular home, a manufactured home, or a gas or liquid storage tank when such tank is principally located above ground.

Substantial damage means the damage of any origin sustained by a structure for which the cost of repair or restoration of the structure to its before-damaged condition would equal or exceed 50 percent of the market value of the structure. For the purpose of this definition, the market value refers to the value of the structure immediately prior to the damage.

Substantial improvement means any repair, reconstruction, rehabilitation, addition, or other improvement of a structure, the cost of which equals or exceeds 50 percent of the market value of the structure before the start of construction of the improvement. This term shall include a structure that has incurred substantial damage, regardless of the repair work performed. The term shall not include either:

(1) Any project for improvement of a structure to correct existing violations of state or local health, sanitary, or safety code specifications that have been identified by the local code enforcement official and are the minimum necessary to assure safe living conditions; or

(2) Any alteration of a historic structure provided that the alteration will not preclude the structure's continued designation as a historic structure.

Temporary flood damage repair permit means a permit issued to allow limited repairs to and occupancy of a substantially damaged structure based on requirements and conditions promulgated by the city engineer before it is brought into compliance with the provisions of this chapter.

Utilities means all building utilities including, but not limited to, electrical, heating, ductwork, ventilating, plumbing, air-conditioning equipment, water softener equipment, and other service facilities to a building. For purposes of this chapter only, it does not include pool lighting and equipment, sewer cleanouts, sampling well access, interceptor access, landscaping irrigation systems, or any similar items and equipment not servicing a building, or that are otherwise sealed.

Utility construction permit means a permit issued to a developer under chapter 47 of this Code to construct a water or sewer main.

V1 through V30 Zones or *VE Zones* or *V Zones* or *coastal high hazard area* means those areas subject to high velocity waters, including but not limited to, hurricane wave wash or tsunamis.

Variance means a grant of relief to a person from the requirements of this chapter that allows development in a manner otherwise prohibited by this chapter.

Watercourse means any river, channel or stream for which base flood elevations have been identified in the flood insurance study for the city.

X Shaded Zone means areas subject to a 0.2 percent chance of flooding in any given year; areas of 1% annual chance flood with average depths of less than 1 foot or with drainage areas less than 1 square mile, and areas protected by levees from 1% annual chance flood.

X Unshaded Zone means areas of minimal flood hazard, outside of the 0.2 percent chance of flood.

(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-3. Certain prohibitions relating to recreational vehicles.

All recreational vehicles placed in a Houston special flood hazard area as shown on the FIRM must be:

(1) On the site for less than 180 consecutive days, and ready for highway use; or

(2) Be permitted under article IV herein and meet the elevation and anchoring requirements for manufactured homes.

A recreational vehicle is ready for highway use if it is on its wheels or jacking system, is attached to the site by quick disconnect type utilities and security devices, has no permanently attached additions and has current vehicle registration and inspection stickers or tags affixed.

(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-4. Use of other flood hazard data to supplement the effective firm.

(a) New elevation and flooding studies are undertaken by or under the auspices of FEMA and local political subdivisions, such as the Harris County Flood Control District. Upon determination that the data generated by such a study appears to be reliable and based upon sound engineering and surveying practices and further that the study's data indicate that the effective FIRMs are FIRM is materially inaccurate, the city engineer may cause the study data to be administered for purposes of this chapter as though it were a part of the effective FIRM. Any such determination shall be issued in writing and a copy shall be placed on file in the office of the city secretary. The city engineer is authorized to utilize updated information from FIS and floodplain models in administering this chapter.

(b) Where the study data are being administered as provided in subsection (a), the following procedures shall apply:

(1) To the extent of any inconsistencies between the study data and the effective FIRM, the more restrictive base flood or 0.2 percent chance flood elevations and Houston special flood hazard areas shall be controlling, and in no instance may any determination or designation that is based on the effective FIRM be reduced by study data.

(2) If alternative base flood or 0.2 percent chance flood elevations exist for the property because of the administration of supplemental data as provided in section 19-4 of this Code, the applicant shall provide two surveys, one of which shall be based in the effective FIRM and one of which shall be based on the study data.

(3) Any applicant for a plat, permit or other approval that is denied because of the application of the study data may appeal the denial of the permit, plat or other approval based on the validity of the study data as applied to the applicant's property or project. The appeal shall be considered in the same manner as a variance application under article II of this chapter. In any such appeal, the city engineer shall provide the documentation for the study data; however, the burden of demonstrating that the study data are incorrect as applied to the applicant's property shall rest upon the applicant and must be supported by the agency then responsible for the study data. Any appeal pursuant to this section shall not result in the change in any of the study data. In addition, if the

study data being used has been published by FEMA for comment as a draft or preliminary FIRM:

a. The appeal process shall be limited to the application of the study data by the city to the specific application that is the subject of the appeal;

b. The appeal process shall not be regarded as an appeal under part 67, or a request for map amendment under part 69, of Title 44 of the Code of Federal Regulations;

c. Any outcome of the appeal to the city is in no way binding on FEMA, nor will it affect or limit any action the agency may take; and

d. Any challenge to the use of the study data as the basis for a FIRM should be separately addressed to FEMA under the applicable federal rules.

(c) For any special flood hazard area for which a floodway has not been designated, the applicant may submit an engineering analysis by a registered professional engineer licensed in the State of Texas that defines the floodway with respect to the site for which a development permit is sought.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Secs. 19-5—19-10. Reserved.

ARTICLE II. REGULATORY SYSTEM FOR PERMITS AND PLATS

DIVISION 1. GENERALLY

Sec. 19-11. In general.

(a) No building permit, paving permit, utility construction permit or other permit required for a structure or development shall be issued, and no plat shall be approved, unless the applicant demonstrates one of the following:

(1) The permit application or plat meets the applicable requirements of this chapter;

(2) A variance, excepting such structure or development from the provisions of this chapter, has been granted under the terms of this chapter, and a drainage plan for the plat has been approved;

(3) A floodplain development permit has been issued for the structure or development; or

(4) Sufficient information has been submitted and approved resulting in the removal of a substantial damage determination.

(b) The owner of a substantially damaged structures may request and may be issued a temporary flood damage repair permit for limited repairs based on requirements and conditions promulgated by the city engineer in conformance with guidance from FEMA. A substantial damage determination shall be appealed prior to a request for a temporary flood damage repair permit.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-12. Duties of city engineer.

The city engineer is charged with exercising best engineering judgment in the administration and implementation of the provisions of this chapter. The duties shall include, but are not limited to, the following:

(1) Maintaining and holding open for public inspection all records pertaining to the provisions of this chapter including a record of all floodproofing certificates filed hereunder with the specific elevation (in relation to mean sea level) to which such structures are floodproofed.

(2) Reviewing, approving, or denying all applications for floodplain development permits required by the adoption of this chapter.

(3) Reviewing applications for floodplain development permits to ensure that all necessary licenses, approvals, or permits have been obtained from those federal, state or local governmental agencies from which prior approval is required.

(4) Where interpretation is needed as to the exact location of the boundaries of the

Houston special flood hazard areas (for example, where there appears to be a conflict between a mapped boundary and actual field conditions), making the necessary interpretation of the maps which shall be liberally construed by the city engineer in favor of inclusion of the site in a Houston special flood hazard area.

(5) Notifying adjacent communities, the Harris County Flood Control District and the Texas Commission on Environmental Quality prior to any alteration or relocation of a watercourse within the city, and submitting evidence of such notification to FEMA.

(6) Cooperate with the responsible local, state and federal agency to maintain the flood-carrying capacity of the altered or relocated portion of any watercourse within the city.

(7) When and where base flood or 0.2 percent chance flood elevation data has not been provided, obtaining, reviewing and reasonably utilizing any base flood or 0.2 percent chance flood elevation data and floodway data available from a federal, state or other source including any information obtained in connection with the provisions of section 19-13(b) of this chapter, as criteria in administering the applicable provisions of this chapter.

(8) Where an amendment or supplement to a FIRM that is being administered as provided in section 19-4 of this Code expresses base flood or 0.2 percent chance flood elevation based on different data than the FIRM it amends or supplements, reconciling the conflicting data to determine the more restrictive base flood or 0.2 percent chance flood elevation.

(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

DIVISION 2. PLAT PROCEDURE

Sec. 19-13. Plat approval; issuance.

(a) Any person who is required or elects to obtain a plat shall also comply with the provisions of this chapter, if applicable.

(b) When a person files an application for approval of a plat, the approval of the plat is subject to the approval of a drainage plan for the property that is the subject of the plat application if the property is located in whole or in part in a Houston special flood hazard area within the city. The drainage plan shall include the 0.2 percent chance flood elevation data for the property and be certified as true and correct on the face of the drainage plan by a registered professional engineer licensed in the State of Texas. If alternative 0.2 percent chance flood elevations exist for the property because of the administration of supplemental data as provided in section 19-4 of this Code, the drainage plan shall include both 0.2 percent chance flood elevations.

(c) The city engineer shall review the drainage plan and determine whether the development will be reasonably safe from flooding and whether such proposed development is:

(1) Consistent with the need to minimize flood damage within the Houston special flood hazard area;

(2) To be constructed so that all public utility facilities including, but not limited to, sanitary sewer, gas, water and electrical systems are located and constructed to minimize flood damage from the 0.2 percent chance flood;

(3) To be constructed so that drainage is provided to reduce exposure of such development to flood hazards; and

(4) Would comply with the applicable requirements of article III of this chapter.

(d) If the proposed development satisfies the criteria in subsection (c) of this section, the city engineer shall approve the drainage plan and shall so notify the city planning commission in writing.

(e) The city planning commission shall not approve a final plat until the city engineer has approved the drainage plan for that site. If the proposed development requires mitigation pursuant to section 19-17 or section 19-43 of this Code, the final plat and deed shall identify the location and volume of the mitigation as a feature of the

property. The obligation to have a mitigation feature shall run with all the land covered by the development permit. The owner of the land shall have the obligation to have and comply with the development permit unless that obligation is transferred to another person pursuant to rules and regulations promulgated by the director pursuant to subsection (f) of section 19-1 of this Code.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Secs. 19-14, 19-15. Reserved.

DIVISION 3. FLOODPLAIN DEVELOPMENT PERMIT PROCESS

Sec. 19-16. Regulatory process for permits; term.

(a) A floodplain development permit is required in addition to any other permit that may be required for any development activity in a Houston special flood hazard area. Any development within a Houston special flood hazard area shall be unlawful without a floodplain development permit, regardless of whether a plat is required under chapter 42 of this Code.

(b) A floodplain development permit will expire if development has not commenced within 18 months after issuance, and upon completion of the project for which it is granted, or after five years has elapsed from the date of permit issuance, whichever occurs first.

(c) No building permit, floodplain development permit, or plat approval shall be given on properties with existing floodplain violations unless the work permitted will remedy the violation, or the violations have been otherwise removed or corrected. Work permitted with a floodplain development permit must be undertaken in a manner designed to minimize surface runoff, erosion, and sedimentation, and to safeguard life, limb, property, and the public welfare.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-17. Floodplain development permit application.

(a) An applicant for a floodplain development permit shall submit an application on forms furnished by the city engineer along with plans in duplicate, drawn to scale, showing:

(1) The existing topography and the location, dimensions, and elevation of any proposed alterations;

(2) Existing and proposed structures;

(3) The location of the proposed alterations in relation to Houston special flood hazard areas;

(4) Elevation in relation to mean sea level of the lowest floor of all proposed structures and substantial improvements;

(5) Elevation in relation to mean sea level to which any structures will be or have been floodproofed;

(6) If the site is adjacent to a watercourse or drainage channel, the definition of how that watercourse or drainage channel will be impacted;

(7) 0.2 percent chance flood elevations from effective FIS data for all structures and substantial improvements; except that, this information is not required for A Zones where base flood elevation data has not been provided and must be developed from federal, state, or other sources; and

(8) All lettered cross section lines and corresponding labels, as shown on the FIRM that intersect the proposed development, as well as the nearest lettered cross section lines upstream and downstream of the site, for all new construction, additions to existing structures, or substantial improvements. The lettered cross section lines shall be labeled with the corresponding 0.2 percent chance flood elevation as indicated in the effective FIS.

Each sheet in the plans on which elevations are marked shall include the vertical datum and adjustment, consistent with the effective

FIRM, along with the site benchmark used for vertical control; except that, if the plan elevations are not on the same vertical datum as the base flood elevations shown on the effective FIRM, each sheet in the plans on which elevations are marked shall also show tabulated vertical datum differences.

(b) The applicant shall also provide a statement of compliance with copies of all supporting permits, licenses and approvals, and a floodproofing certificate where floodproofing is or may be required by the applicable provisions of this chapter.

(c) For areas that the city engineer has determined have no conveyance capacity, the applicant shall submit documentation that demonstrates that the proposed development will not, at any time, diminish the storage volume of the Houston special flood hazard area in accordance with the requirements of section 19-34(a).

(d) For areas that the city engineer has determined to have conveyance capacity and for areas for which the city engineer has made no determination of conveyance capacity, the applicant shall submit an engineering analysis certified by a professional engineer licensed in the State of Texas in accordance with section 19-34(b).

(e) Fees to be paid under this chapter are set forth in the city fee schedule. Payment of any applicable fees when due is a condition of the processing of any application under this article.

(f) In addition to other responsibilities under this Code or the Construction Code, the city engineer shall review each permit application to verify compliance with the provisions of this chapter.

(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-18. Additional requirements for floodplain development permit applications.

At the discretion of the city engineer, an applicant may be required to submit any or all of the following:

(1) Plans with the "official coordinate system" of the city as defined in section 33-81 of this Code as their horizontal datum. Where required, each sheet shall be marked with horizontal datum information and with the combined scale factor required to convert from surface coordinates to grid coordinates;

(2) Any datum differences between the vertical datum and adjustment of elevations used on the sheet and any other vertical datum and adjustment typically used in the watershed tabulated on each sheet in the plans on which elevations are marked, or a separate survey based on said additional vertical datum(s) and adjustment(s);

(3) A survey of property ownership of the site, which is signed and sealed by public surveyor licensed in the State of Texas;

(4) An interim drainage plan for the site during the activity;

(5) An indication of the source of fill material and the proposed disposal site, if applicable, and the expected duration of the activity;

(6) An engineering analysis signed and sealed by a registered professional engineer licensed in the State of Texas as required by the city engineer; and

(7) Any other relevant documentation requested by the city engineer.

(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-19. Review.

(a) The city engineer shall review each floodplain development permit application and the plans and documentation submitted in accordance with sections 19-17 and 19-18 of this Code and shall either approve or deny the issuance of the floodplain development permit. Approval or denial of a floodplain development permit by the city engineer shall be based on compliance with the applicable provisions of this chapter. In addition to employing the standards contained in article III of this chapter, the city

engineer may deny a floodplain development permit application if the issuance could result in:

(1) Danger to life or property due to flooding or erosion damage in the vicinity of the site;

(2) Susceptibility of the development and the contents of any structure to flood damage and the effect of such damage on the individual owner;

(3) Danger that materials may be swept onto other lands to the injury of others;

(4) Impairment of the access to and exit from the site in times of flood for ordinary and emergency vehicles; or

(5) Unusually high costs of providing governmental services during and after flood conditions, including maintenance and repair of streets, bridges, public utilities and facilities such as sewer, gas, electrical and water systems.

(b) In connection with this determination, the city engineer shall consider the following factors:

(1) Unusual circumstances affecting the expected height, velocity, duration, rate of rise and sediment transport of the floodwaters and the effects of wave action, if applicable, expected at the site in the presence of floodwaters;

(2) The necessity of a waterfront location for the structure, where applicable; and

(3) The lack of alternative locations not subject to flooding or erosion damage for the proposed use.

(c) A permittee shall submit an elevation certificate to the city engineer before the framing of a structure has started. Failure to do so may result in the revocation of a permit issued hereunder.

(d) The city engineer may enter any structure or premises to perform any duties or responsibilities imposed by this chapter.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-20. Variance procedure.

(a) Any applicant for a permit may apply for a variance from the requirements of this chapter. Except as may be otherwise provided in subsection 19-22(f), a variance may be sought only on the basis that the imposition of the requirements of this chapter for the issuance of a permit to the applicant constitutes an exceptional hardship.

(b) An applicant may file a request for variance at any time. However, no variance may be granted for development on vacant land in a floodway, and no variance may be granted after an applicant has complied with the provisions of this chapter and a permit has been issued. An applicant shall file the application for a variance on a written form to be supplied by the city engineer, and shall include the following information, at a minimum:

(1) The particular requirement from which a variance is sought;

(2) The nature of the hardship presented by the imposition of the requirements, including specific information on the uniqueness of the property for which the variance is requested;

(3) The proposed alternative method or procedure to be utilized in lieu of the required method, practice or procedure that is proposed;

(4) The effect of the proposed construction on flood levels within the city;

(5) The estimated cost in dollars of complying with the requirement;

(6) The estimated cost in dollars of construction by the proposed alternative method of procedure;

(7) The size, in acres, of the land area or the number of lots involved in the permit application; and

(8) The existence of lots contiguous to or surrounding the land area which are located below the 0.2 percent chance flood level.

(c) In addition, the applicant shall submit a verified acknowledgment stating:

(1) The granting of a variance for construction below the flood level may result in increased flood insurance rates commensurate with the increased risk resulting from the reduced lowest floor elevation; and

(2) Construction below the 0.2 percent chance flood level increases risks to life and property to the applicant and the residents of this city and the surrounding area.

(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-21. Restriction on applicants; fee for application.

(a) A variance application may be filed only by the owner of the property or the attorney-in-fact for the owner of the property on which a variance is sought, and written authorization to act for an owner must accompany an application. The application shall be submitted as a verified statement. Each variance application shall be accompanied by the fee for this provision stated in the city fee schedule.

(b) A variance application and all required information shall be submitted to the city engineer, who will review the information submitted, and may request additional information, or return the application as incomplete. Upon determination that the application is complete, the city engineer will forward the application to the board for review in accordance with section 19-22 of this Code.

(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-22. Review by the board of variance application; determination by city engineer.

(a) The city engineer shall receive, and transmit to the general appeals board, all applications for variances, except for those applications specified in subsection 19-22(f) of this Code. Except for those applications specified in subsection 19-22(f), the board shall be the body that determines whether a variance is to be granted. The board may consider the granting of a variance under the following circumstances:

(1) The application is for the reconstruction, rehabilitation, or restoration of an historic structure and the reconstruction, rehabilitation, or restoration of the structure will not preclude the structure's continued designation as an historic structure.

(2) The application is for improvement of an existing structure that is required to correct an existing violation of a state or local health, sanitary or safety code specification that has been identified by the neighborhood protection official and that is the minimum necessary to ensure safe living conditions.

(3) The application is for a development for which the city engineer finds that the granting of the variance is consistent with the procedures and standards established for the granting of variances. As the lot size increases, the burden on the applicant to provide a technical justification in favor of a variance under the facts of the case shall increase.

(4) The application is for an addition to, new construction of, or substantial improvements to, a structure necessary for the conduct of a functionally dependent use provided that:

a. The applicable requirements of sections 19-20, 19-21 and 19-22 of this Code are met;

b. The structure will be protected by methods designed to minimize flood damage during the 0.2 percent chance flood; and

c. The structure will create no additional threats to public safety.

(5) The variance is in effect an appeal from the application of a Houston special flood hazard area or 0.2 percent chance flood elevation determination or both being administered on the basis of supplemental data pursuant to section 19-4 of this

Code and the applicant demonstrates, with the concurrence of the agency then responsible for the study data, that the determination is scientifically or technically incorrect. The variance shall be limited to approval, with or without conditions, or denial and shall not constitute a change in the study data.

The board shall deny variances to disaggregated lots of proposed larger developments or subdivisions or structures when that larger development has been the subject of or included within a floodplain development permit application that has been previously disapproved by the city engineer.

(b) In addition, to grant a variance, the board must affirmatively find that:

(1) The imposition of the requirements of this chapter constitute an exceptional hardship on the applicant;

(2) No feasible method or procedure is currently available to comply with the requirement; and

(3) The imposition of the requirements of this chapter to the particular circumstances would be unjustified in light of good and sufficient cause which has been demonstrated to the board.

(c) In granting a variance, the board must find that the variance, if allowed, will not have the effect of:

(1) Increasing flood level height due to impedence of the stream of channel flow;

(2) Introducing or increasing any threat to public safety;

(3) Creating a nuisance which unreasonably interferes with the use of adjacent property;

(4) Causing a fraud to be worked upon the public or any individual member of the public;

(5) Causing extraordinary public expense for any reason; and

(6) Creating conflict with the codes and ordinances of the city, or with any provisions of a state or federal regulation other than the applicable requirements of this chapter.

(d) The board, in granting a variance, shall grant only the minimum variance necessary to afford relief from the complained of hardship.

(e) If the board approves a variance, the chair shall send, by regular mail, a notice of variance decision to the applicant, stating that:

(1) The variance has been approved, along with any conditions imposed by the board;

(2) The issuance of a variance to construct a structure below the 0.2 percent chance flood level may result in increased premium rates for flood insurance commensurate with the increased risk resulting from the reduced lowest floor elevation; and

(3) The construction under a variance of any structure below the 0.2 percent chance flood level may increase risks to life and property to the applicant and the residents of this city and the surrounding area.

Upon receipt of the notice of variance, the applicant shall file a copy of the notice of variance decision, along with the applicant's statement required in section 19-20(c) of this Code, in the permanent real property records of the county or counties in which the property is located. Upon the receipt of a copy of the notice of variance certified by the county clerk of the county in which the property is located, the city engineer shall issue a floodplain development permit complying with all provisions of this chapter with the exception of the variance granted.

(f) The city engineer may grant a variance for reconstruction of a structure damaged by fire, hail, wind or other event that is not flooding, if the applicant proposes to reconstruct on an existing foundation that is currently below the minimum flood protection elevation, and the reconstruction will not increase the footprint of the foundation.

(g) The city engineer shall maintain a permanent public record of all notices of variance and the variances granted. The written justification for the granting of each variance shall be included in such records.

(h) The denial of a variance by the board shall be final and is not subject to reconsideration.

(i) A variance is unique to and applies to only the property for which it is granted.

(j) Modification to the development scope or detail in an approved variance shall void the variance.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-23. Revocation of floodplain development permit.

(a) In addition to the remedies provided in section 19-91 of this Code, whenever the city engineer finds that there are grounds for revocation of a floodplain development permit, he shall give written notice to the permittee by personal service or by certified mail, return receipt requested, addressed to the applicant at the address set forth in the floodplain development permit application. That notice may require that any work on the property currently underway is required to stop immediately, that a stop work order is being issued, and shall set forth:

(1) The specific grounds upon which the floodplain development permit in question may be revoked;

(2) The fact that there will be a hearing before the board in which the city will seek the revocation of the floodplain development permit;

(3) The date, time and place of such hearing; and

(4) The fact that the permittee may appear in person or be represented by an attorney.

(b) All hearings shall be held by the board. The chair of the board or, in the chair's absence, the vice-chair of the board, shall serve as the hearing officer for all hearings held hereunder, moderating the discussion and ensuring the rules of this section are observed. However, no person shall perform the duties of hearing officer under this section if the person has participated in the investigation or has prior knowledge of the allegations or circumstances discovered in the course of said investigation except as may be set forth in the notice given pursuant to this section.

(c) All hearings shall be conducted under rules consistent with the nature of the proceedings; provided, however, that the following rules shall apply to such hearings:

(1) All parties shall have the right to representation by a licensed attorney, though an attorney is not required.

(2) Each party may present witnesses in his own behalf.

(3) Each party has the right to cross-examine all witnesses.

(4) Only evidence presented before the board at such hearing may be considered in rendering the final order.

(d) If the permittee fails to appear at the hearing at the date and time specified, the city engineer shall establish a case on behalf of the city that presents sufficient evidence, that unless it were otherwise rebutted, shows that grounds exist for revocation of the floodplain development permit in question.

(e) After completion of the presentation of evidence by all parties appearing, the board shall make written findings and render a written order as to whether or not there are grounds for revocation of the floodplain development permit. If there are such grounds, the board shall revoke the floodplain development permit; provided, the board may, in the interest of justice, take such other lesser actions as the board may deem appropriate including, but not limited to, the temporary suspension of the permit, the revision of the floodplain development permit, or the addition of conditions. A true and accurate copy of the board's order shall be personally delivered or mailed by certified mail, return receipt requested, to the permittee.

(f) In the event a floodplain development permit is revoked, suspended, or revised hereunder by the board, the city shall not be liable to any person for any refund of any part of any fees.

(g) The revocation, suspension, or revision of a floodplain development permit may be appealed to the city council pursuant to Rule 12 of section 2-2 of this Code and upon the filing of a written application with the city secretary within ten days after the board's written order is rendered. An appeal of a revocation, suspension, or revision of a floodplain development permit shall not operate to suspend the board's order pending such an appeal.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018; Ord. No. 2021-1037, § 20(Exh. I.21), 12-1-2021, eff. 4-1-2022; Ord. No. 2022-234, § 4, 3-30-2022)

Secs. 19-24—19-30. Reserved.

ARTICLE III. STANDARDS FOR FLOOD HAZARD REDUCTION

DIVISION 1. GENERALLY

Sec. 19-31. General construction of structures.

All structures, including modular homes, shall be constructed, regardless of location within the city, to be reasonably safe from flooding. In addition, the following provisions shall apply to structures located or to be constructed within various flood zones or areas:

(1) Within a Houston special flood hazard area, the provisions of the Construction Code and division 2 of this article shall apply. Substantial improvements and substantial damage are regulated only in the special flood hazard area, a subset of the Houston special flood hazard area.

(2) Within a watercourse or floodway, the provisions of the Construction Code and divisions 2 and 3 of this article shall apply.

(3) Within a coastal high hazard area, the provisions of the Construction Code and divisions 2 and 4 of this article shall apply.

(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

DIVISION 2. STANDARDS IN HOUSTON SPECIAL FLOOD HAZARD AREAS

Sec. 19-32. General standards.

(a) All new construction in the Houston special flood hazard areas, or substantial improvement of any existing structure in special flood hazard areas, shall be performed to keep the structure reasonably safe from flooding and in accordance with the following standards:

(1) Improvements shall be designed or modified to adequately anchor them to prevent flotation, collapse, or lateral movement of the structure in the presence of floodwaters;

(2) Improvements shall be constructed by methods and practices to minimize flood damage;

(3) Improvements shall be constructed with materials and equipment resistant to flood damage;

(4) Electrical, heating, ventilation, plumbing, and air conditioning equipment and other service facilities shall be designed and located above minimum flood protection elevation to prevent water from entering or accumulating within the components during conditions of flooding;

(5) Water supply systems shall be designed to prevent or eliminate infiltration of floodwaters into the system;

(6) Sanitary sewer systems shall be designed to prevent or eliminate infiltration of floodwaters into the structure's systems and discharge of sewage into floodwaters;

(7) On-site disposal systems, including but not limited to sewage treatment plants and septic tank systems located on the site of the structure, shall be located to prevent impairment of the function of those systems in the presence of floodwaters and to prevent contamination of floodwaters from those systems during flooding; and

(8) Fully enclosed areas below the lowest floor that are used solely for parking, building access or storage in an area other than a basement and that are subject to flooding shall be designed to automatically equalize hydrostatic flood forces on exterior walls by allowing for the entry and exit of floodwaters. Designs for meeting this requirement must either be certified by a registered architect or professional engineer licensed in the State of Texas or meet or exceed the following minimum criterion: have a minimum of two openings having a total net area of not less than one square inch for every square foot of enclosed area subject to flooding, with the top of all such openings no higher than one foot above grade or BFE, whichever is lower. Openings may be equipped with screens, louvers, valves, or other coverings or devices, provided they permit the automatic entry and exit of floodwaters.

(b) For a development site partially located in the Houston special flood hazard area, the applicant shall submit a site topographic map to establish the site boundary for the determination of the flood area.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-33. Base flood elevation requirements in Houston special flood hazard areas.

(a) The following additional requirements shall apply in Zones A1—30, AE, AH, A, and A99:

(1) For any addition to, and new construction and substantial improvement of, any residential structure:

a. The lowest floor and all utilities must be elevated to at least the minimum flood protection elevation, except that additions which are no greater than 33% of the habitable area of the structure shall be permitted to be constructed at one foot above base flood elevation; and

b. If the flood elevation of a garage attached to an addition is lower than the minimum flood protection elevation, the garage must meet the requirements of item (8) of section 19-32 of this Code.

(2) Any addition to, and new construction and substantial improvement of, any nonresidential structure:

a. Shall be elevated to at least the minimum flood protection elevation measured to the lowest floor; or

b. Shall, along with sanitary sewerage facilities, be floodproofed to the minimum flood protection elevation.

(b) The following additional requirements apply in an X Shaded Zone:

(1) Any addition to, and new construction of any residential structure shall:

a. Have the lowest floor and all utilities elevated to at least the minimum flood protection elevation, except that additions which are no greater than 33% of the habitable area of the structure shall be permitted to be constructed at the same elevation as the structure it is being added to; and

b. If the flood elevation of a garage attached to an addition is lower than the minimum flood protection elevation, the garage must meet the requirements of item (8) of section 19-32 of this Code.

(2) Any addition to, and new construction of nonresidential structure:

a. Shall be elevated to at least the minimum flood protection elevation measured to the lowest floor; or

b. Shall, along with sanitary sewerage facilities, be floodproofed to the minimum flood protection elevation.

(c) The following additional requirements shall apply in an AO Zone:

(1) All additions to, and new construction and substantial improvement of, any residential structure within an AO Zone shall have the lowest floor and all utilities elevated above the highest adjacent grade to at least two feet above the depth number in feet specified on the FIRM for the site or at least three feet above the highest adjacent grade if no depth number is specified. If the floor elevation of a garage attached to an addition is lower than the minimum flood protection elevation, the garage must meet the requirements of item (8) of section 19-32 of this Code.

(2) All additions to, and new construction and substantial improvement of, any nonresidential structure within an AO Zone shall have the lowest floor elevated above the highest adjacent grade at least two feet above the depth number specified in feet on the FIRM or at least three feet above the highest adjacent grade where no depth number is specified or, together with utility and sanitary sewerage facilities, be completely floodproofed to or above that level.

(d) All structures to be constructed in whole or in part within these zones shall be designed with adequate drainage paths around structures on slopes to guide floodwaters around and away from those structures.

(e) For critical facilities located in an area that is subject to a 0.2 percent or greater chance of flooding in any given year (X Shaded Zone), all additions, new construction, and substantial improvements shall have the lowest floor elevated or floodproofed to at least three feet above the elevation that is subject to a 0.2 percent or greater chance of flooding.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-34. Additional standards for design and mitigation.

(a) For areas that the city engineer has determined have no conveyance capacity, proposed development shall not, at any time, diminish the storage volume within a Houston special flood hazard area. Applicants shall demonstrate compliance with this requirement by submitting plans that demonstrate one or more of the following:

(1) Demonstrate that any loss of storage volume will be mitigated on-site, such that there is no net fill;

(2) Demonstrate that any loss of storage volume will be mitigated off-site in accordance with rules and regulations promulgated by the director pursuant to subsection (f) of section 19-1 of this Code;

(3) Identify an amount of fill associated with elevated floor construction that, although the amount may be approaching zero, is recognized by the city engineer as sufficiently important to be addressed, but for which mitigation is not required, in accordance with rules and regulations promulgated by the director pursuant to subsection (f) of section 19-1 of this Code; or

(4) In the 0.2 percent chance floodplain, the amount of fill proposed does not impact or impede the 100 year overland sheet flow in the watershed.

(b) For areas that the city engineer has determined to have conveyance capacity, and for areas for which the city engineer has made no determination of conveyance capacity, development shall not, at any time, either change the conveyance capacity or diminish storage volume of the Houston special flood hazard area; except that, if the applicant submits a Conditional Letter of Map Revision approved by FEMA, the engineering analysis need only demonstrate that the development will not, at any time, diminish storage volume of the Houston special flood hazard area.

(c) Mitigation facilities and drainage improvements shown on a subdivision plat, an approved mitigation plan, or a drainage plan for a site are required to be maintained by the property owner. Obstructions within mitigation areas, failure of mitigation facilities, and other impediments to full drainage may be cited as violations of this chapter. The owner of each mitigation facility or

drainage improvement shall submit an annual mitigation facility recertification to the city engineer, accompanied by the fee stated in the city fee schedule.

(d) In areas of combined probability, the city engineer may approve a deviation from the standards in section 19-34(a) and (b) so long as there is zero net fill below the 0.2% flood elevation.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Secs. 19-35—19-40. Reserved.

DIVISION 3. DEVELOPMENT IN A WATERCOURSE AND FLOODWAY

Sec. 19-41. Generally.

In addition to complying with the standards set out in division 2 of this article, development in a watercourse or a floodway shall comply with the provisions of this division.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-42. Watercourses.

A watercourse maintained by a county or a county agency shall not be altered or relocated unless the county engineer responsible for flood control in the county where the property is located, certifies to the city engineer in writing that the flood-carrying capacity of the altered watercourse will be the same as or greater than the flood-carrying capacity of the original watercourse.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-43. Floodways.

(a) Except as may be otherwise provided in this chapter, no floodplain development permit shall be issued for a development to be located in any floodway, or any special flood hazard area for which a floodway has not been designated, if that development provides for:

(1) Encroachment by the deposition of fill, or other similar construction, within the floodway, or the special flood hazard area if no floodway has been designated; or

(2) New construction, any addition to an existing structure, or substantial improvement of any structure within the floodway, or the special flood hazard area if no floodway has been designated.

The general restriction does not apply to a repair or renovation that is not a substantial improvement.

(b) For those facilities necessary to protect the health, safety and welfare of the general public, the city engineer may issue a floodplain development permit for development of a site or the new construction, addition to an existing structure, or substantial improvement of a structure within the floodway, or any special flood hazard area for which a floodway has not been designated, if a professional engineer licensed in the State of Texas submits supporting documentation or an engineering analysis acceptable to the city engineer and written certification to the effect that:

(1) The cumulative effect of the proposed development when combined with all other existing development, and if a floodway has not been designated, all anticipated development, will not have an adverse effect on flood levels at any point within the city during occurrence of the base flood;

(2) The development will not impede the flow of floodwaters; and

(3) The development will not result in an adverse effect on the conveyance capacity during the occurrence of the base flood.

(c) The city engineer shall issue a floodplain development permit for development for an addition to, or for the replacement or substantial improvement of, a structure in a floodway, or any special flood hazard area for which a floodway has not been designated, if the city engineer determines that:

(1) The bottom of its lowest horizontal structural member will be elevated at least three feet above the 0.2 percent chance flood level;

(2) The foundation system for the structure will be elevated floor construction; and

(3) The applicant has paid all fees required by section 19-17(e) of this Code.

If the city engineer cannot so determine, then the city engineer shall deny the floodplain development permit.

(d) While the community acknowledges the increased risks associated with development on vacant land in the floodway, the city engineer shall issue a floodplain development permit for a development in a floodway, or any special flood hazard area for which a floodway has not been designated, if the city engineer determines that:

(1) The bottom of the lowest horizontal structural member of the structure will be elevated at least two feet above the 0.2 percent chance flood level;

(2) The foundation system for the structure will be elevated floor construction;

(3) The applicant has submitted an engineering analysis acceptable to the city engineer, certified by a professional engineer licensed in the State of Texas, that demonstrates that the applicant will provide floodway conveyance offset volume at a rate defined by the city engineer. The floodway conveyance offset volume may be provided on applicant's site or at an off-site mitigation facility located within one-quarter mile upstream and in the same watershed as the site. If the applicant chooses to provide off-site mitigation, the applicant shall also comply with the requirements of section 19-17(c); and

(4) The applicant has paid all fees required by section 19-17(e) of this Code.

(e) The city engineer shall issue a floodplain development permit for development for the construction of a bridge, or the repair or replacement of an existing bridge in a floodway, or any special flood hazard area for which a floodway has not been designated, if the city engineer determines that:

(1) The cumulative effect of the proposed construction when combined with all existing development, and if a floodway has not been designated, all anticipated development, will result in a zero increase in flood levels at any point within the city during occurrence of the base flood; and

(2) The bottom of the lowest horizontal structural member of the bridge, excluding the pilings or columns, will be elevated at least 18 inches above the base flood level, or at least the 0.2 percent chance flood level, whichever is higher. If the city engineer determines that construction to this elevation is not practical based upon the application of sound engineering principles to the proposed construction, the elevation geometry, the attendant roadway geometry, and the necessity for the bridge to be built or reconstructed in the proposed location, the city engineer may approve a deviation from this standard.

If the city engineer cannot so determine, then the city engineer shall deny the floodplain development permit.

(f) If the city engineer denies a floodplain development permit pursuant to section 19-43(a), (b), (c) or (e) of this Code, and the general appeals board finds and determines in writing that:

(1) The improvement is insubstantial;

(2) The insubstantial construction will not increase flood levels during occurrence of the 0.2 percent chance flood; and

(3) The insubstantial improvement will not impede the flow of floodwaters;

then the city engineer shall issue a floodplain development permit only if the other applicable provisions of this chapter have been met by the applicant for the floodplain development permit.

(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-44. Boathouses and piers; Lake Houston.

Where a floodway has been designated, the city engineer may issue a floodplain develop-

ment permit for construction of a boathouse or pier provided the proposed development meets the requirements for bridge construction provided in section 19-43(e) of this Code. No floodplain development permit shall be necessary for construction of a boathouse or pier on Lake Houston.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Secs. 19-45—19-50. Reserved.

DIVISION 4. COASTAL HIGH HAZARD AREAS

Sec. 19-51. Generally.

Within special flood hazard areas, certain areas have been designated as coastal high hazard areas. There are special flood hazards associated with high velocity waters requiring additional conditions on construction within these areas.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-52. Building restrictions.

(a) In addition to the requirements of division 2 of this article, the following provisions shall apply in coastal high hazard areas:

(1) All buildings or structures shall be located landward of the reach of the mean high tide.

(2) All structures shall be elevated so that the bottom of the lowest horizontal structural member of the lowest floor, exclusive of pilings or columns, is elevated to at least the minimum flood protection elevation, with all space below the lowest horizontal structural member open so as not to impede the flow of water.

(3) All structures shall be elevated on and securely anchored to adequately anchored pilings or columns to withstand high velocity waters and hurricane wave wash and resist flotation, collapse and lateral movement due to effects of wind and water loads acting simultaneously on all building components.

(4) Pilings or columns used as structural support shall be designed and anchored to withstand high velocity water and hurricane wave wash and to resist flotation, collapse and lateral movement due to effects of wind and water loads acting simultaneously on all building components. For purposes of this section, wind and water loading values are considered as having a one percent chance of being equaled or exceeded in any given year (100-year mean recurrence interval).

(5) No fill shall be used as structural support of any structure.

(6) There shall be no alteration of the topography prior to development that would increase potential flood damage.

(7) Breakaway walls are allowed below the base flood elevation but the space enclosed by breakaway walls may be used only for parking of vehicles, building access, or storage.

(8) If breakaway walls are utilized, the space enclosed by the breakaway walls shall not be used for human habitation.

(9) No alteration, repair, reconstruction, or improvement to a structure or other obstruction shall enclose or obstruct the space below the lowest floor, except for breakaway walls as provided herein.

(b) When a floodplain development permit application is filed under the provisions of section 19-17, a registered professional engineer licensed in the State of Texas shall develop or review the structural design, specifications and plans for the construction and shall certify that the design and methods of construction of the structure to be built are in accordance with accepted standards of practice for meeting the provisions of subsections (a)(2), (a)(3) and (a)(4) of this section. In plans for any structure that includes breakaway walls, the breakaway walls must be specifically identified as such when submitted to the city engineer for approval.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Secs. 19-53—19-60. Reserved.

ARTICLE IV. MANUFACTURED HOMES

DIVISION 1. REQUIREMENTS IN ADDITION TO MANUFACTURED HOME CODE

Sec. 19-61. Generally.

(a) The provisions of this chapter shall be in addition to all other requirements, standards, and restrictions contained in this Code relating to manufactured homes, including, but not limited to, chapter 29 of this Code. In the event of conflict between the requirements of this chapter and any other requirement of this Code, the provisions of this chapter shall prevail.

(b) An applicant for a city manufactured home permit where the manufactured home will be located within a Houston special flood hazard area shall submit a floodplain development permit application and shall comply with the standards set forth in this chapter specifically including those standards contained in this article.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Secs. 19-62—19-70. Reserved.

DIVISION 2. PLACEMENT STANDARDS

Sec. 19-71. Generally.

Each manufactured home shall be placed in a location in the city that is reasonably safe from flooding, and the city engineer is hereby authorized to promulgate such written standards as may be deemed appropriate to determine such flood safety. In addition to the promulgated standards within Houston special flood hazard areas, the requirements of this division 2 shall apply.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-72. Flood safety.

The manufactured home and its site and any substantial improvement to a manufactured home site shall:

(1) Be designed or modified to prevent flotation, collapse, or lateral movement of the manufactured home in the presence of floodwaters;

(2) Be constructed with materials and types of utility equipment which are resistant to flood damage; and

(3) Be constructed by methods and practices that minimize flood damage.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-73. Utility systems protection.

(a) Each new and replacement water supply system for a manufactured home shall be designed to prevent or eliminate the infiltration of floodwaters into the water supply system and the utility system supplying water to the manufactured homes.

(b) Each new and replacement sanitary sewage system for a manufactured home shall be designed to prevent:

(1) The infiltration of floodwaters into such system; and

(2) Discharge from such systems into floodwaters.

(c) Each on-site disposal systems, including but not limited to, any sewage treatment plant and any septic tank located on the lot or site of the manufactured home or connected by a utility system to the manufactured home, shall be located to:

(1) Prevent impairment of the function of the system during flooding; and

(2) Prevent contamination of floodwaters from the system during flooding.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-74. Special requirements for manufactured homes.

Each manufactured home placed in, and any substantial improvement to a manufactured home site within a Houston special flood hazard area shall be secured as follows:

(1) *Anchors:* Each manufactured home shall be elevated and anchored to resist flotation, collapse, or lateral movement in the presence of floodwaters by providing over-the-top or frame ties to ground anchors. Each ground anchor shall be set in

concrete poured to a depth resistant to natural erosion caused by floodwater. In addition, each anchoring system shall comply with all applicable provisions of state law or regulations. Each component of the anchoring system for a manufactured home shall be capable of carrying a force of 4,800 pounds.

(2) *Tie-downs:*

a. Over-the-top ties shall be provided at each of the four corners of the manufactured home.

b. A manufactured home in excess of 50 feet in length shall have two side ties in addition to the above-described corner ties, that shall be placed at intermediate locations; manufactured homes less than 50 feet in length shall have one additional tie per side.

(3) *Frame ties:*

a. A frame tie shall be placed at each corner of the manufactured home.

b. A manufactured home in excess of 50 feet in length shall have five additional ties placed on each side at intermediate locations; manufactured homes less than 50 feet in length shall have four additional ties per side placed at intermediate locations.

(4) *Additions to manufactured homes:* Each addition to a manufactured home shall be anchored in the same manner as a manufactured home.

(5) *Flood elevation of manufactured home:*

a. The stand or lot on which a manufactured home is placed shall be elevated on a permanent foundation so that the lowest floor of the manufactured home is at least at the minimum flood protection elevation.

b. Adequate surface drainage and access for a hauler shall be provided at each manufactured home lot or stand and at the entrance of a manufactured home park or subdivision.

c. A manufactured home placed on pilings shall be placed on a lot large enough to permit steps wholly on the manufactured home lot.

d. Pilings shall be placed in stable soil not more than ten feet apart, center to center, and shall be reinforced if they extend more than six feet above ground level. A registered professional engineer licensed in the State of Texas must certify in writing that the size, strength, and treatment processes for wooden pilings and methods of reinforcement for those pilings are sufficient to prevent flotation, collapse or lateral movement of the manufactured home in the presence of floodwaters.

(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-75. Manufactured home placement in a floodway or coastal high hazard area.

A manufactured home to be placed in a floodway or a coastal high hazard area shall also specifically comply with divisions 3 and 4 of article III of this chapter.

(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Secs. 19-76—19-80. Reserved.

DIVISION 3. SUBDIVISIONS AND DEVELOPMENT

Sec. 19-81. Plats for manufactured home parks and subdivisions.

No plat shall be issued for a manufactured home park or subdivision unless it complies with the provisions of section 19-13 and the provisions of this article.

(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Sec. 19-82. Evacuation plan.

Any person who operates a manufactured home park or subdivision within any Houston special flood hazard area and who is licensed by the city under chapter 29 of this Code shall file an evacuation plan with the fire chief indicating alternate vehicular access and escape routes for the park or subdivision prior to being issued a floodplain development permit.
(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

Secs. 19-83—19-90. Reserved.

ARTICLE V. ENFORCEMENT

Sec. 19-91. Actions authorized to enforce chapter.

(a) The city, acting through the city attorney or any other attorney representing the city, is hereby authorized to file an action in a court of competent jurisdiction to:

(1) Enjoin any person from violating the terms, conditions and restrictions of any floodplain development permit issued under this chapter;

(2) Enjoin the violation of the provisions of this chapter;

(3) Recover civil penalties for violation of the terms, conditions and restrictions of any floodplain development permit issued under this chapter;

(4) Recover civil penalties for violation for the provisions of this chapter; or

(5) Recover damages from the owner of a site in an amount adequate for the city to undertake any construction or other activity necessary to bring about compliance with this chapter.

This authority is in addition to all provisions of this Code and the Construction Code relative to the definition of offenses and the provision of penalties for violations of those Codes.

(b) The city, acting through the city attorney or any other attorney representing the city, is hereby authorized to enter into an agreement in lieu of litigation to achieve compliance with the terms, conditions and restrictions of any floodplain development permit issued under this article or the provisions of this chapter.

(c) The city engineer is authorized to:

(1) Whenever any work authorized by a floodplain development permit is being performed contrary to the provisions of this chapter, or other pertinent laws or ordinances implemented through the enforcement of this chapter, order the work (other than work to cure a violation) stopped by notice in writing served on any persons performing the work or causing the work to be performed. Any such persons shall forthwith stop the work until authorized by the city engineer to proceed with the work.

(2) At the time a stop work order is issued, the person performing the work and the permittee shall be given notice of a right to a hearing on the matter pursuant to Section 117.2 of the *Construction Code* for permits authorized by that Code. Upon request, such a hearing shall be held within three business days unless the permittee or person who was performing the work requests an extension of time. Any stop work order that has been issued shall remain in effect pending any hearing that has been requested unless the stop work order is withdrawn by the city engineer.

(3) File a certificate of non-compliance in the county deed records for properties the city engineer determines to be in violation of the provisions of this chapter, for which a temporary damage repair permit is issued, or for which a substantial damage determination persists for six months or more.

(4) File a certificate of compliance in the county deed records for properties which have resolved a floodplain violation, obtained a permit to replace a temporary

flood damage repair permit, or appealed or otherwise resolved a substantial damage determination.

(5) As authorized by Section 1316 of the National Flood Insurance Act of 1968, as amended, request that FEMA deny flood insurance coverage for any property that has been determined to be in violation of the provisions of this chapter.

(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018; Ord. No. 2021-1037, § 20(Exh. I.22), 12-1-2021, eff. 4-1-2022)

Sec. 19-92. Criminal sanctions.

Any person violating any provision of this chapter within the corporate limits of the city shall be guilty of a misdemeanor punishable by a fine of not less than $250.00 nor more than $2,000.00. Each day that any violation continues shall constitute a separate offense.

(Ord. No. 2018-258, § 2(Exh. A), 4-4-2018)

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Chapter 20

FOOD AND DRUGS*

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ARTICLE I. IN GENERAL

Sec. 20-1. Reserved.

Editor's note—Ord. No. 2025-743, § 2, adopted August 27, 2025, repealed § 20-1 in its entirety. Formerly said section pertained to samples and derived from Ord. No. 99-1346, § 1, 12-15-99 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

Sec. 20-2. Condemnation and disposition of contaminated food.

(1) The health officer is authorized and directed to take action as may be reasonably necessary to protect the public health, safety and welfare by condemning or initiating the condemnation of any food or drug product or item of food equipment that may be used or held with intent to sell, offer or expose for sale within the city that is suspected to be unsafe, adulterated, misbranded or expired pursuant to applicable ordinances or state or federal laws, rules and regulations.

(2) Expiration of ready-to-eat time/temperature controlled for safety (TCS) food items that are required to be time and date marked as provided under section 3-501.17(A) of the U.S. Food and Drug Administration Food Code, 2022 ('FDA Model Food Code') shall be determined from the markings. Food that is not from an approved source as specified under section 3-201.11-17 of the FDA Model Food Code shall be discarded.

(3) Ready-to-eat food that may have been contaminated by an employee who has been restricted or excluded as specified under section 2-201.12 of the FDA Model Food Code shall be discarded.

(4) Food that is contaminated by food employees, consumers, or other persons through contact with their hands, bodily discharges, such as nasal or oral discharges, or other means shall be discarded.

(5) Pending disposition, the health officer may direct that the product or item not be used or sold by causing the same to be appropriately tagged if he finds upon diligent inquiry and inspection that the product or item poses an immediate threat of danger to the health, safety and welfare of the public and if the owner or person in possession thereof is afforded the right of a public hearing thereon within 24 hours, exclusive of Saturdays, Sundays and holidays observed by the closure of city offices, before the director of public health or his designee.

(6) The health officer may utilize the resources of all available state, county or federal offices and agencies as necessary or desirable in the prosecution of condemnation actions hereunder.
(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 07-1051, § 1, 9-12-07; Ord. No. 2015-1202, § 96, 12-2-2015; Ord. No. 2025-743, § 3, 8-27-2025)

Sec. 20-3. State and federal laws, regulations.

In addition to the enforcement of this chapter, the health officer may enforce the provisions of applicable state or federal laws, rules or regulations to the extent that he has been so authorized or is permitted by law to do so, and he shall refer those matters involving state or federal laws, rules or regulations that he is not authorized to enforce to the state or federal office or agency having jurisdiction. The health officer may promulgate rules, regulations and forms in administering this chapter.
(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 07-1051, § 1, 9-12-07)

Sec. 20-4. Charity bake sales.

Notwithstanding any provision of this chapter to the contrary, food prepared in a kitchen of a private home that is not licensed hereunder may be offered for sale for human consumption without any food permit, subject to full compliance with the following requirements:

(1) The items offered for sale shall be limited to foods that are not time/temperature controlled for safety (TCS) food, such as baked goods;

(2) The sale shall not be conducted in a food establishment;

(3) The consumer is informed by a clearly visible label. The label shall include:

a. The name and physical address of the cottage food production operation;

b. The common or usual name of the product;

c. Disclosure of any major food allergens, such as eggs, nuts, sesame, soy, peanuts, milk, wheat, fish, or shellfish used in the product; and

d. The following statement: 'This food is made in a home kitchen and is not inspected by the Department of State Health Services or a local health department.

(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 2015-1202, § 2, 12-2-2015; Ord. No. 2025-743, § 4, 8-27-2025)

Secs. 20-5—20-16. Reserved.

ARTICLE II. FOOD ESTABLISHMENTS GENERALLY

DIVISION 1. GENERALLY

Sec. 20-17. FDA Model Food Code and TFER compliance.

The Texas Department of State Health Services Texas Food Establishment Rules ('TFER') set forth in 25 Texas Administrative Code Chapter 228 and those portions of the FDA Model Food Code that the State of Texas has adopted through TFER constitute a part of this Code, are adopted herein by reference, and are hereby continued in full force and effect to the same extent as if set out in full herein. All provisions of this chapter are to be read and construed in a manner that is consistent with the TFER and those portions of the FDA Model Food Code that the State of Texas has adopted. Any inconsistency between the requirements of this chapter, the FDA Model Food Code, and TFER shall be resolved in favor of TFER.

(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 07-1051, § 2(Exh. A), 9-12-07; Ord. No. 2025-743, § 5, 8-27-2025; Ord. No. 2026-0397, § 2, 513-2026)

Sec. 20-18. Definitions.

When used in this article, the following words, terms and phrases shall have the meanings ascribed to them in this section, unless the context clearly indicates a different meaning:

Department shall mean the Houston Health Department.

Extensively remodeled shall mean having been subjected to a remodeling that includes a wall reconfiguration, in-wall plumbing modification or change of location or addition of any floor mounted equipment.

Frozen dessert shall mean any of the following: ice cream, light ice cream, ice milk, frozen custard, fruit sherbet, non-fruit water ice, frozen dietary dairy dessert, frozen yogurt, quiescently frozen confection, quiescently frozen dairy confection, mellorine, lorine, parevine, freezer-made milk shake, or nondairy frozen dessert. The term also includes mix used in the freezing of one of those frozen desserts.

(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 06-826, § 8, 8-9-06; Ord. No. 07-229, § 1, 2-21-07; Ord. No. 07-1051, § 2(Exh. A), 9-12-07; Ord. No. 07-1055, § 2, 9-19-07; Ord. No. 2015-820, §§ 34, 36, 8-26-2015; Ord. No. 2015-1202, §§ 3—8, 96, 12-2-2015; Ord. No. 2025-743, § 6, 8-27-2025)

Sec. 20-19. Applicability of article; compliance; penalty for violation; variances, etc.

(a) All provisions of this article shall be applicable to all food establishments unless specifically limited to food processing establishments or to food service establishments.

(b) No food service establishment or food processing establishment shall be operated within the city unless it conforms with the requirements of this article.

(c) Any person who violates any provision of this article, or rule or regulation promulgated by the health officer, shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not less than $50.00 nor more than $2,000.00. Each day a violation of this article continues shall constitute a separate offense.

Provided, however, if a person is convicted of an offense under this article that also constitutes a violation of any other criminal provision of the laws of the State of Texas, the person shall be subject to the criminal penalties set out in the laws of Texas for the offense.

Nothing in this article shall be construed as requiring the health officer to report minor violations of this article for prosecution whenever the health officer believes the public interest will be adequately served in the circumstances by a warning.
(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 07-1051, § 2(Exh. A), 9-12-07; Ord. No. 2015-1202, §§ 9—11, 12-2-2015; Ord. No. 2025-743, § 2, 8-27-2025)

Sec. 20-20. Inspections; reports.

(a) The health officer shall inspect each food establishment within the city at least once every 12 months or more often based on the processes of the operation and compliance history, except that risk category 1 food establishments shall be inspected at least once every 24 months, and the health officer shall make as many additional inspections as are necessary based on the public health risks posed by the establishment and the establishment's past compliance history. Inspections may also be made where consumer complaints and/or reports of foodborne illness outbreaks evidence a need to perform inspections.

(b) The report of inspection shall state that failure to comply with any time limits for corrections will require that the establishment immediately cease food service operations.

(c) Whenever a reinspection is required by the health officer to determine that conditions responsible for the reinspection no longer exist, the permit holder shall pay the reinspection fee stated for this provision in the city fee schedule, and the permit or permits shall not be renewed until the permit holder has paid any outstanding reinspection fees. The health officer shall conduct a reinspection within a reasonable period of time.

(d) Whenever a food establishment is required to cease operations under the provisions of this section, it shall not resume operations until a reinspection determines that conditions responsible for the requirement to cease operations no longer exist. The health officer shall conduct a reinspection within a reasonable period of time.
(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 02-528, § 13a., 6-19-02; Ord. No. 07-1051, § 2(Exh. A), 9-12-07; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2015-1202, § 12, 12-2-2015; Ord. No. 2025-743, § 7, 8-27-2025)

Secs. 20-21—20-24. Reserved.

Editor's note—Ord. No. 2025-743, § 2, adopted August 27, 2025, repealed §§ 20-21—20-24 in their entirety. Said sections derived from Ord. No. 99-1346, § 1, 12-15-99 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

Sec. 20-25. Construction, remodeling of food establishment generally.

(a) Wherever a food establishment or food establishment addition is constructed or remodeled and whenever an existing structure is converted to use as a food establishment, two sets of properly prepared plans and specifications for each construction, remodeling, or alteration shall be submitted to the health officer for approval before construction, remodeling, or alteration is begun. The plans and specifications shall indicate the proposed layout, arrangement, and construction materials of work areas, and the type of proposed fixed equipment and facilities. The health officer shall approve the plans and specifications if they meet the requirements of this article. No food establishment shall be constructed, remodeled, or altered except in accordance with plans and specifications approved by the health officer. If any changes are to be made concerning proposed layout, arrangement, and construction materials of work areas, and the type of proposed fixed equipment and facilities after the first set of approved plans and specifications have been delivered to the owner or contractor, the changes shall be shown on revised plans and specifications, which shall be reviewed and approved by the health officer

before the changes are made; then the approved changes shall be added to both original sets of plans and specifications.

(b) One set of the approved plans and specifications will be given to the owner or contractor responsible for the construction of the establishment. A second set of approved plans and specifications will remain on file with the health officer.

(c) Whenever plans and specifications are required under subsection (a) above to be submitted to the health officer, the health officer or his authorized representative shall inspect the food establishment prior to its beginning operation to determine compliance with the approved plans and specifications and with the requirements of this article.

(d) The requirements of this section shall be in addition to all applicable requirements of the Construction Code.

(e) The applicant shall pay to the department a nonrefundable plan review fee based on the project valuation for the review of plans required hereunder. The plan review fee shall be paid before plans are reviewed and is stated for this provision in the city fee schedule.

In the event that construction, remodeling, or alteration began prior to approval of plans and specifications, the fees described in this subsection shall be doubled. In addition to the fees described in this subsection, there shall be a technology and administrative fee added to each plan review in the amount stated for this provision in the city fee schedule. This technology and administrative fee shall be payable at the time the plan review fee is paid.

(f) The applicant shall pay to the department the nonrefundable preoperational inspection fee for this provision in the city fee schedule for each preoperational inspection required hereunder. In the event that the constructed, remodeled or altered space or area is occupied prior to the preoperational inspection approval, the applicant shall pay the nonrefundable inspection fee stated for this provision in the city fee schedule for each preoperational inspection performed while the constructed, remodeled or altered space or area is occupied. No permit shall be issued or renewed if there are any outstanding preoperational fees.

(g) Whenever a food establishment changes ownership a preoperational inspection or inspections shall be completed prior to operation under the new ownership. The applicant shall pay to the department a nonrefundable preoperational inspection fee as stated for this provision in the city fee schedule for each preoperational inspection required hereunder. In the event that the food establishment is in operation prior to the preoperational inspection approval, the nonrefundable inspection fee shall be as stated for this provision in the city fee schedule for each preoperational inspection performed. No permit shall be issued if there are any outstanding preoperational fees.

(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 02-399, § 49, 5-15-02; Ord. No. 07-1051, § 2(Exh. A), 9-12-07; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2015-1202, §§ 64, 65, 12-2-2015)

Sec. 20-26. Notices required.

FOG notice. Within each food establishment registered under section 20-38(d) there shall be conspicuously posted in an area accessible to all employees thereof a notice that describes ordinance requirements of grease traps.

(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 07-1051, § 2(Exh. A), 9-12-07; Ord. No. 2015-1202, § 66, 12-2-2015; Ord. No. 2025-743, § 8, 8-27-2025)

Secs. 20-27—20-35. Reserved.

DIVISION 2. PERMITS, MEDALLIONS, ETC.

Sec. 20-36. Food dealer's permit.

(a) Except as permitted in subsection (e) of this section, no person shall operate a food establishment or a food processing plant, other than a mobile food unit, who does not possess a valid permit issued to him by the health officer. The permit shall be known as a 'food dealer's permit'. Only a person who complies with the requirements of this article shall be entitled to

receive or retain a food dealer's permit. A food dealer's permit shall only be valid for the location specified thereon and may not be transferred from place to place. A food dealer's permit shall become void upon the closing of any sale of the establishment. A valid permit shall be posted in view of the public in every food establishment, food processing plant, and temporary food service establishment. Permits for temporary food service establishments shall be issued for a period of time not to exceed 14 consecutive days in conjunction with a single event. A temporary food dealer's permit shall not be required if:

(1) The temporary food service establishment is operated by a person who holds a valid food dealer's permit issued under this article;

(2) The operation of the temporary food service establishment is within the scope of the permit holder's regulated and inspected activities as the holder of a food dealer's permit; and

(3) All food is prepared inside of the permitted establishment by the holder of the valid food dealer's permit and then served outdoors on the same premises.

All food dealer's permits shall remain the property of the department.

(b) Any person desiring to obtain or renew an existing food dealer's permit shall make written or electronic application for a permit on forms provided by the health officer. The application shall include at least the applicant's full legal name and post office address and the location and type of proposed food processing or food service establishment. An application for a temporary food dealer's permit shall include at least the applicant's full legal name, the inclusive dates of the proposed operations, and the name, address, and telephone number of the owner or owners of the property where the temporary food service establishment is to be located, and attached to the application is a statement signed by the owner of the property or his authorized agent, stating that arrangements have been made for the proper disposal of all rubbish, trash, and garbage and for maintaining the property free from litter and nuisance during the total period of operation up to and including any clean up time required to remove all rubbish, trash, garbage, and litter resulting from the food service.

(c) Prior to approval of an application for a food dealer's permit or mobile food unit medallion, the health officer shall inspect the proposed establishment to determine compliance with the provisions of this article. Prior to approval of an application for a temporary food dealer's permit, the health officer shall review the application to determine compliance with the provisions of this article.

(d) The health officer shall issue a permit to the applicant if inspection or review in the case of a temporary food permit application reveals that the proposed food establishment complies with the requirements of this article.
(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 07-229, §§ 1a, 2, 2-21-07; Ord. No. 07-1051, § 2(Exh. A), 9-12-07; Ord. No. 2015-820, §§ 33, 34, 8-26-2015; Ord. No. 2025-743, § 9, 8-27-2025)

Sec. 20-37. Mobile food unit medallion.

(a) Any person desiring to operate one or more mobile food units in the city other than restricted operations mobile food units shall obtain an individual medallion for each operating mobile food unit from the health officer. Each medallion will be issued unit-by-unit only after an inspection reveals satisfactory compliance with the provisions of section 20-22 of this Code. The medallions shall remain the property of the department.

(b) No person shall operate or cause to be operated any mobile food unit that does not possess a valid medallion issued by the health officer.

(c) A medallion shall be affixed by the health officer or his authorized agents on the mobile food unit in a conspicuous place where it can be viewed by patrons.

(d) Application for a medallion shall be made electronically or on forms provided by the health officer. The application shall include, at a minimum, the applicant's full legal name and post office address; the address of the location at which the mobile food unit is stationed when not

in use; the business name and address of the commissary or other fixed food service establishment from which time/temperature controlled for safety (TCS) food supplies are obtained; the address of the servicing area; a description of the mobile food unit that includes the manufacturer's make, model, and serial number, the vehicle's state registration number, and the signature of the applicant.

(e) All of the provisions of this article pertaining to food service establishments shall apply to the commissary or other fixed food service establishment from which the food supplies are obtained. Any suspension or revocation of the food dealer's permit for a food service establishment will be cause for suspension or revocation of the medallion of any mobile food unit that is supplied or serviced by the establishment.
(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 07-1051, § 2(Exh. A), 9-12-07; Ord. No. 2015-1202, § 96, 12-2-2015; Ord. No. 2025-743, § 10, 8-27-2025)

Sec. 20-38. Fees; transfer of medallion.

(a) At the time of issuance of an original food dealer's permit and each renewal thereof, the person requesting the permit shall pay to the health officer a permit fee for one complete year from the date of issuance. Except as otherwise provided, permit fees shall be determined by the defined risk level presented by the food establishment.

(b) Fee amounts shall be determined according to the city fee schedule, as follows:

(1) Permit fees. The nonrefundable annual fee for a food dealer's permit shall be based on the defined risk level presented by the establishment to be licensed.

(1a) Temporary food establishments, as defined, shall be charged a non-refundable base fee for up to 14 consecutive days in conjunction with a single event. The temporary food service permit fee shall be paid at the time the application is submitted.

(2) Mobile food unit medallion—Fee; transferability. At the time of issuance of an original medallion to operate a mobile food unit and each renewal thereof, the person requesting the medallion shall pay to the health officer a fee for one complete year from the date of issuance. Medallions are not transferable from one person to another nor from one mobile food unit to another mobile food unit.

(3) Mobile food unit medallion—Replacement fee. An individual who has lost a valid, current food dealer's permit or mobile food unit medallion may obtain a replacement from the health officer upon payment of the replacement fee.

(4) Special investigative fee. In addition to the permit fee as specified in item (1) above, there is hereby assessed the special investigative fee stated in the city fee schedule, which shall be payable for any renewal of a food dealer's permit if the renewal application is not received in the offices of the department in completed form and accompanied by the permit fee therefor on or before the business day after the date of expiration of the permit to be renewed. For purposes of this fee, any new permit issued to the same person(s) for a food establishment at the same location shall be deemed to be a renewal, unless the person(s) demonstrate to the health officer, by clear and convincing evidence, that the food establishment has not been operated since the prior permit expired. This investigative fee shall also be applicable in the event that the complete application including payment for a temporary food service establishment permit is not received at the department at least seven days prior to beginning of temporary food service operations as specified in section 20-36(b) of this Code.

This special investigative fee is imposed to partially defray the additional inspection and administrative costs related to late renewals and applications. It shall not be considered to be a civil or criminal penalty, nor shall its

imposition bar or constitute a defense to any prosecution for operation of a food establishment without a food dealer's permit.

(c) The fees otherwise required by this section shall not be imposed by the health officer for the issuance of a food dealer's permit to operate a temporary food service establishment within a city park if each of the following criteria is met:

(1) The temporary food service establishment is being operated by a community-based organization as part of a public gathering for which a permit has been issued under article III of chapter 32 of this Code, and the director of parks and recreation has waived user fees for the gathering pursuant to section 32-69(f) of this Code;

(2) All persons responsible for organizing and working in the temporary food service establishment are unpaid volunteers; and

(3) All proceeds from the operation of the temporary food service establishment are retained to be used for the benefit of the community-based organization or are donated to the city.

The provisions of this subsection shall not be construed to excuse the community-based organization from obtaining a temporary food dealer's permit or from complying with any other applicable provision of this article.

(d) All food service establishments, except mobile food units and temporary food establishments, shall pay the nonrefundable annual fee stated for this provision in the city fee schedule for each interceptor to obtain a registration certificate, as provided in section 47-423 of this Code.

(e) All fees collected pursuant to this section are not refundable.
(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 02-528, § 13b., 6-19-02; Ord. No. 04-91, § 2, 2-4-04; Ord. No. 07-544, § 41, 5-9-07; Ord. No. 07-1051, § 2(Exh. A), 9-12-07; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2013-617, § 15, 6-19-2013; Ord. No. 2015-820, § 34, 8-26-2015; Ord. No. 2015-1202, §§ 67—69, 12-2-2015; Ord. No. 2025-743, § 11, 8-27-2025)

Sec. 20-39. Frozen desserts retail establishments.

In addition to any other information required to be furnished to the health officer pursuant to section 20-36 of this Code, each applicant for a food dealer's permit shall be required to disclose to the health officer whether the proposed establishment or mobile food unit constitutes a frozen desserts retail establishment. The term 'frozen desserts retail establishment,' as used in this section, shall mean any premises, including a retail store, approved type stand, hotel, restaurant, vehicle or mobile food unit, where frozen dessert mixes are frozen or partially frozen and dispensed for retail sale or distribution.
(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 02-528, § 13c., 6-19-02; Ord. No. 07-1051, § 2(Exh. A), 9-12-07; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2025-743, § 12, 8-27-2025)

Sec. 20-40. Term.

A food dealer's permit shall be valid for one year from the date of issuance and shall be renewed on or before the expiration date of the previous permit. Each mobile food unit medallion shall be valid for one year from the date of issuance and shall be renewed on or before the expiration date of the previous medallion.
(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 07-1051, § 2(Exh. A), 9-12-07)

Sec. 20-41. Suspension.

(a) The director of the public health, or at the director's designation in writing, any assistant director may suspend any food dealer's permit or any medallion to operate a mobile food unit, with notice as is reasonable under the circumstances, if the permit or medallion holder does not comply with the requirements of this article or section 21-244 or section 21-247(b) of this Code, or if the operation of the food processing or food service establishment or mobile food unit otherwise constitutes a substantial hazard to public health.

Without exclusion of any other grounds, operation of a food establishment in violation of any provision of section 20-53 of this Code is in and of itself sufficient cause for a suspension. Suspension is effective upon service of the notice required by subsection (b) below. Where a permit or medallion is suspended, food processing and/or food service operations shall immediately cease.

(b) Whenever a permit or medallion is suspended, written notice shall be given to the permit or medallion holder or the person in charge or any employee or agent of the food establishment or mobile food unit. The notice shall set forth:

(1) The specific conditions in the food establishment or mobile food unit that are in violation of this article or that constitute a substantial hazard to public health;

(2) That a hearing will be held before a hearing officer;

(3) The date, time and place of the hearing; and

(4) That the permit or medallion holder may appear in person and/or be represented by counsel, may present testimony and may cross-examine all witnesses.

The hearing shall be held not later than ten days after the date the permit or medallion is suspended.

(c) All hearings shall be conducted by a person designated by the director of public health, who shall be referred to as the hearing officer. The director shall not designate any person to perform the duties of hearing officer under this section who has participated in the inspection of the food establishment or mobile food unit, or has prior knowledge of the allegations or circumstances discovered in the inspection or inspections except the person designated as hearing officer may, prior to the hearing, receive a copy of the notice given to the permit or medallion holder or the person in charge.

(d) All hearings shall be conducted under rules consistent with the nature of the proceedings; provided, however, the following rules shall apply to the hearings:

(1) All parties shall have the right to representation by a licensed attorney though an attorney is not required.

(2) Each party may present witnesses in his own behalf.

(3) Each party has the right to cross-examine all witnesses.

(4) Only evidence presented before the hearing officer at the hearing may be considered in rendering the order.

(e) If the permit or medallion holder fails to appear at the hearing at the time, place, and date specified, the city shall present sufficient evidence to establish a prima facie case showing violation of this article or conditions constituting a hazard to public health that formed the basis of the suspension of the permit or medallion.

(f) If the hearing officer finds that the food service establishment, food processing establishment or mobile food unit was, in fact, in violation of this article or that it constituted a hazard to public health, the hearing officer shall make written findings of fact and shall order the permit or medallion suspended until all violations of this article are corrected and any conditions constituting a hazard to public health are eliminated. A copy of the findings and order of the hearing officer shall be sent by certified mail, return receipt requested, to the permit or medallion holder.

(g) If the hearing officer finds that the public interest will be adequately protected by a warning or other penalties authorized under this article, he may reinstate the permit or medallion.

(h) Whenever the reasons for a suspension no longer exist, the permit or medallion holder or person in charge shall notify the health officer that the conditions under which the permit or medallion was suspended have been corrected and that an inspection is requested. The inspection shall be conducted as soon as possible after

the request is received and in no event no later than three regular working days after the receipt of the request for inspection.
(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 07-1051, § 2(Exh. A), 9-12-07; Ord. No. 2015-820, § 33, 8-26-2015; Ord. No. 2025-743, § 13, 8-27-2025)

Sec. 20-42. Reserved.

Editor's note—Ord. No. 2025-743, § 2, adopted August 27, 2025, repealed § 20-42 in its entirety. Formerly said section pertained to revocation and derived from Ord. No. 99-1346, § 1, 12-15-99. See the Code Comparative Table for a complete derivation.

Sec. 20-43. Service of notices.

Any notice provided for in this article may be served by personal delivery, by registered mail, by public posting at the food service establishment or mobile food unit entrance, by certified mail, return receipt requested, or by any other method authorized by law.
(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 07-1051, § 2(Exh. A), 9-12-07; Ord. No. 2025-743, § 14, 8-27-2025)

Secs. 20-44—20-51. Reserved.

Editor's note—Ord. No. 2025-743, § 2, adopted August 27, 2025, repealed § 20-44 in its entirety. Formerly said section pertained to special employee training and derived from Ord. No. 99-1346, § 1, 12-15-99 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

DIVISION 3. FOOD SERVICE MANAGER'S CERTIFICATION AND FOOD HANDLER REQUIREMENTS*

Secs. 20-52, 20-53. Reserved.

Editor's note—Ord. No. 2025-743, § 2, adopted August 27, 2025, repealed §§ 20-52, 20-53 in their entirety. Formerly said sections pertained to revocation; food service manager and food handler requirements and derived from Ord. No. 99-1346, § 1, 12-15-99 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

*__Editor's note—__**Ord. No. 2015-1202, § 70, adopted December 2, 2015, amended the title of Ch. 20, Art. II, Div. 3, to read as herein set out. Formerly, said division was entitled food service manager's certification.

Sec. 20-54. Application for certification; training course generally.

(a) Any person desiring a food handler's certification shall make written application for certification on forms provided by the health officer. The application shall include, but not be limited to:

(1) The applicant's full name, mailing address, and telephone number;

(2) The gender of the applicant;

(3) The applicant's Texas driver's license or state identification card or other valid form of photographic identification;

(4) The name, address, and telephone number of the establishment where the applicant is currently employed, if employed;

(5) The signature of the applicant; and

(6) Date of birth of the applicant.

(b) A completed application for food handler's training shall serve as a request to obtain a food handler certificate by classroom or online training.

(c) All applications for food handler training must be accompanied by the appropriate fees as set forth in this division.

(d) The health officer may deny an application for a food handler's certificate if the applicant knowingly makes any false, fraudulent, or unlawful statement on the application.
(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 07-1051, § 2(Exh. A), 9-12-07; Ord. No. 2015-1202, §§ 75, 76, 12-2-2015; Ord. No. 2025-743, § 15, 8-27-2025)

Sec. 20-55. Duration of certification course and food handler course; passing grade.

(a) The special course of training for food service manager's certification shall be conducted at an appropriate length of time to cover course material.

(b) A food handler training course may not exceed two hours.

(c) An applicant for a food handler's certificate may be required to pass an examination to successfully complete the course.

(d) All persons successfully completing the course of training for food handlers shall receive a food handler's certificate.
(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 07-1051, § 2(Exh. A), 9-12-07; Ord. No. 2015-1202, § 77, 12-2-2015; Ord. No. 2025-743, § 16, 8-27-2025)

Secs. 20-56, 20-57. Reserved.

Editor's note—Ord. No. 2025-743, § 2, adopted August 27, 2025, repealed §§ 20-56, 20-57 in their entirety. Formerly said sections pertained to issuance of certification and fees and derived from Ord. No. 99-1346, § 1, 12-15-99 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

Sec. 20-58. Expiration of food service manager's certification and food handler certificate.

A food handler's certificate shall be valid for a period of two years from the date of issuance. The department shall accept as sufficient for food handler training, as specified in section 20-55 of this Code, written proof that such person has successfully completed a food handler training program accredited by the State of Texas pursuant to subchapter D of chapter 438 of the Health and Safety Code or similar food safety courses approved by the Conference for Food Protection (CFP) within the immediately preceding period of two years.
(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 07-1051, § 2(Exh. A), 9-12-07; Ord. No. 2015-1202, § 79, 12-2-2015; Ord. No. 2025-743, § 17, 8-27-2025)

Secs. 20-59—20-61. Reserved.

Editor's note—Ord. No. 2025-743, § 2, adopted August 27, 2025, repealed §§ 20-59—20-61 in their entirety. Formerly said sections pertained to revocation; false fraudulent statements on application and fraudulent use of certification and derived from Ord. No. 99-1346, § 1, 12-15-99 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

Sec. 20-62. Interpretation.

This article shall be liberally construed and applied to promote its underlying purpose of protecting the public health.
(Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 07-1051, § 2(Exh. A), 9-12-07)

Secs. 20-63—20-160. Reserved.

Editor's note—Ord. No. 2025-743, § 2, adopted August 27, 2025, repealed §§ 20-63—20-65 in their entirety. Formerly said sections pertained to state accreditation; reciprocity; bed and breakfast limited and group residences and derived from Ord. No. 99-1346, § 1, 12-15-99; Ord. No. 2015-1202, § 81, 12-2-2015 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

ARTICLE III. FARM PRODUCE*

DIVISION 1. GENERALLY

Sec. 20-161. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Certified farmers market means a farmers market that has been certified by the Texas Department of Agriculture pursuant to Subchapter D of Title 4 of the Texas Administrative Code.

Department means the Houston Health Department.

Establishment means within a certified farmers market, a building, structure or stand where only farm products are sold or offered for sale.

Farm produce means agricultural products including, but not limited to, fruits, vegetables, fungi, grains, fiber, honey, dairy products, meat, poultry, or eggs, by practice of the

*__Editor's note—__**Ord. No. 2007-1051, § 3, adopted September 12, 2007, repealed Ch. 20, Arts. III and IV, in their entirety and renumbered existing Arts. V and VI as Arts. III and IV. The former Article III was derived from Ord. No. 99-1346, § 1, 12-15-99. The users' attention is directed to Ch. 20, Art. II for similar provisions.

Cross reference—Itinerant vendors, Ch. 22.

agricultural arts upon land that the person or entity owns, rents, leases, or to which the person or entity otherwise has access.

Food shall have the meaning ascribed in the FDA Food Code.

Market manager means a person who is designated as the person-in-charge of a certified farmers market.

Sampling means the demonstration or promotion of a food and its characteristics via the on-site preparation and offering of the food in small servings which cannot be sold and which may not consist of a whole meal, an individual portion or a whole sandwich.

Time/temperature controlled for safety (TCS) food shall have the meaning set forth in Section 1-201.10(B) of the FDA Model Food Code.

Vendor means any person who sells or offers for sale farm products or engages in sampling in a certified farmers market.

Yard eggs means ungraded shell eggs from a producer defined in Chapter 15 of Title 4 of the Texas Administrative Code.

(Code 1968, § 19-441; Ord. No. 03-1047, § 1, 11-12-03; Ord. No. 04-1013, § 1, 9-29-04; Ord. No. 07-1051, § 3, 9-12-07; Ord. No. 2015-820, § 13, 8-26-2015; Ord. No. 2015-1202, §§ 82—84, 12-2-2015; Ord. No. 2025-743, § 18, 8-27-2025)

Secs. 20-162—20-185. Reserved.

Editor's note—Ord. No. 2025-743, § 2, adopted August 27, 2025, repealed §§ 20-162—20-164 and §§ 20-174 —20-178 in their entirety. Formerly said sections pertained to requirements as to sales establishments; enforcement; exemptions to article; license for peddlers and sales establishments and derived from Code 1968 §§ 19-442—19-444; Code 1968 §§ 19-450—19-454 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

DIVISION 2. CERTIFIED FARMERS MARKETS*

Sec. 20-186. Scope.

This division is applicable only to certified farmers markets and establishments therein.
(Ord. No. 04-1013, § 2, 9-29-04; Ord. No. 07-1051, § 3, 9-12-07)

Sec. 20-187. Prohibited activities.

(a) It shall be unlawful for any person to operate a certified farmers market without first having obtained a license therefor as required by this division.

(b) It shall be unlawful for any vendor to display, sell or offer for sale any food item other than farm produce.

(c) It shall be unlawful for any person at any establishment within a certified farmers market to engage in food preparation other than that involved in sampling.
(Ord. No. 04-1013, § 2, 9-29-04; Ord. No. 07-1051, § 3, 9-12-07; Ord. No. 2025-743, § 20, 8-27-2025)

Sec. 20-188. Additional requirements.

All vendors shall comply with the applicable requirements of article II of this chapter in addition to the provisions of this division. The health officer may impose additional requirements to protect against health hazards related to the conduct of a certified farmers market and may prohibit the sale of some or all time/temperature controlled for safety (TCS) foods where such action is reasonably necessary to protect the public from food borne illness.
(Ord. No. 04-1013, § 2, 9-29-04; Ord. No. 07-1051, § 3, 9-12-07; Ord. No. 2015-1202, § 96, 12-2-2015)

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*__Editor's note—__Ord. No. 2025-743, § 2, adopted August 27, 2025, repealed Division 2, §§ 20-174—20-178 in their entirety. Formerly said division pertained to license for peddlers and sales establishments and derived from Code 1968, §§ 19-450—19-454 and subsequent amendatory ordinances. Section 19 of said ordinance renumbered Division 3 as Division 2. See the Code Comparative Table for a complete derivation.

Sec. 20-189. Sanitation requirements.

All vendors shall comply with the following sanitation requirements:

(1) *Refrigeration.* Mechanical refrigeration shall be provided as required in section 4-301.11 of the FDA Model Food Code for the storage of all time/temperature controlled for safety (TCS) foods. The use of dry ice or cold packs as a substitute for mechanical refrigeration of time/temperature controlled for safety (TCS) foods shall be acceptable only if used for six hours or less during a single day.

(2) *Equipment.* All equipment, including hot/cold food storage facilities must meet the requirements of article II of this chapter regarding food storage and equipment design and fabrication.

(3) *Toilet facilities.* Approved toilet facilities shall be available at all times for vendors, their employees, and volunteers. All toilet rooms approved for use by vendors, employees and workers shall conform to the requirements of sections 5-203.12, 5-501.17, 6-202.14, 6-302.11, 6-402.11, and 6-501.18 of the FDA Model Food Code.

(4) *Hand-washing.* A hand-washing sink provided with hot and cold water under pressure and tempered through a mixing valve shall be provided in or immediately adjacent to each toilet room used by vendors. A supply of soap and paper towels or other approved hand-drying device shall be provided adjacent to each hand-washing sink.

(5) *Food protection; general.* At all times, food shall be protected from potential contamination by all agents, including dust, insects, rodents, unclean equipment and utensils, unnecessary handling, coughs and sneezes, flooding, draining, and overhead leakage. Delivery vehicles or other equipment used for food transportation shall be kept clean and shall be constructed so as to protect the food from contamination. Food samples for self-service shall be protected from consumer contamination by the use of packaging, sneeze guards, or other devices. Clean, disposable plastic gloves shall be worn by the vendor during sampling. Food intended for sampling shall be prepared, handled, and dispensed so as to be wholesome and safe for human consumption.

(6) *Wet storage.* The storage of unpackaged and packaged food in contact with water or ice is prohibited, except that produce and packaged farm products may be stored in contact with continuously drained ice obtained from an approved source.

(7) *Waste.* Liquid and solid waste shall be disposed of in accordance with all applicable laws.

(8) *Garbage and rubbish.* All garbage and rubbish shall be stored and disposed of in a manner approved by the health officer.

(9) *Live animals.* No live animals, birds, or fowl shall be kept or allowed within 20 feet of any area where food is stored, displayed or held, excluding patrol dogs or service animals when used in the manner specified in section 6-501.115(B) of the FDA Model Food Code.

(Ord. No. 04-1013, § 2, 9-29-04; Ord. No. 07-1051, § 3, 9-12-07; Ord. No. 2015-1202, §§ 87, 96, 12-2-2015; Ord. No. 2025-743, § 21, 8-27-2025)

Sec. 20-190. Sampling operations.

All vendors conducting sampling shall comply with the following sanitation requirements:

(1) *Limited preparation.* Only those time/temperature controlled for safety (TCS) foods approved by the health officer and foods requiring limited preparation shall be prepared, displayed, served or sampled.

(2) *Temperature maintenance.* Time/temperature controlled for safety (TCS) food requiring limited preparation shall be served and maintained at the internal temperature of 41°F (5°C) or below or 135°F (57°C) or above in facilities that meet the requirements of this article

except for shell eggs, as described in section 20-21.1(b)(3), which shall be stored at 45°F (7°C) or below according to all applicable laws. If the United States Department of Agriculture and the United States Food and Drug Administration determine by law that a lower temperature must be maintained, the lower temperature shall prevail.

(3) *Disposal.* All food samples shall be disposed within four hours after beginning of the operation, if not served or consumed.

(4) *Food service manager's certification.* The market manager or the operator of the establishment shall attend the food service manager's certification course in accordance with sections 20-52 and 20-53 of this Code. At least one certified manager shall be present when sampling operations are being conducted.

(5) *Water.* Vendors shall have sufficient hot and cold potable water for cleaning foods and for cleaning and sanitizing equipment and utensils.

(6) *Single use articles.* Only single use articles as defined in article II of this chapter shall be provided for use by consumers.

(7) *Hand-washing.* An approved facility for employee hand-washing, consisting, at a minimum, of warm, clean running water, soap, and individual paper towels or other approved hand drying device shall be provided near the vendors' establishments.

(8) *Single-use gloves.* Single-use gloves shall be used when the samples are being cut or prepared. Single-use gloves shall be used for only one task such as working with ready-to-eat food or with raw animal food. They shall be used for no other purpose and discarded when interruptions occur in the operation or when damaged or soiled.

(9) *Hair restraints.* While handling food or utensils, vendors shall wear effective hair restraints and clothing that covers body hair to prevent the contamination of food or food-contact surfaces as specified in section 2-402.11(a) of the FDA Model Food Code.

(10) *Equipment and utensil cleaning and sanitation.* An approved facility shall be provided for washing, rinsing and sanitizing of equipment and utensils used in the preparation and service of samples. The facility must consist of at least three containers or compartments, each of adequate size so as to permit the total immersion of all utensils used in the vendor's establishment. Washing, rinsing and sanitizing shall be conducted as specified under Sections 4-603.15, 4-603.16, and 4-703.11 of the FDA Model Food Code.

(11) *Walls and ceilings.* Walls and ceilings, where required by the health officer to protect food from contamination and to protect the public from food borne illness, shall be made of wood, canvas, or other similar material that protects the establishment from the weather and other contaminating agents. When required, screening material used for walls shall be at least 16-mesh to the inch.

(Ord. No. 04-1013, § 2, 9-29-04; Ord. No. 07-1051, § 3, 9-12-07; Ord. No. 2015-1202, §§ 88, 89, 96, 12-2-2015; Ord. No. 2025-743, § 22, 8-27-2025)

Sec. 20-191. Inspections; enforcement.

(a) The health officer shall inspect each establishment within a certified farmers market at least once every 12 months, and shall make as many additional inspections as are necessary for the enforcement of this division.

(b) The market manager of a certified farmers market shall be responsible for ensuring daily compliance with the provisions of this division. In the case of repeated violations of these requirements, the health officer may impose restrictions on the selling or sampling of some foods.

(c) All violations shall be corrected at the time of inspection unless an extension is allowed by the health officer. In determining whether to

allow an extension and the length of the extension, the health officer shall consider the degree of risk, if any, that is posed by the violation and the time reasonably required to correct it. No extension shall be granted where any significant risk of food borne illness is posed to the public. If violations are not corrected within the specified time limits, the health officer shall immediately suspend the license.
(Ord. No. 04-1013, § 2, 9-29-04; Ord. No. 07-1051, § 3, 9-12-07)

Sec. 20-192. License.

(a) *Application.* Any person desiring to obtain or renew a certified farmers market license shall make written or electronic application for a license on a form promulgated by the health officer. The application shall include at least the following:

(1) The applicant's full legal name, post office address, home and business telephone number;

(2) Copy of the current and valid farmers market certification issued to the applicant by the Texas Department of Agriculture;

(3) Copy of the certified farmers market association by-laws, list of governing body members, and membership list;

(4) A property owner agreement letter; and

(5) A description of the certified farmers market season, and days and hours of operations.

(b) *Posting of license.* A certified farmers market shall have its certified farmers market license posted in view of the public during hours of operation.

(c) *Term.* A license shall be issued for a period of one year.

(d) *Renewal.* An application for renewal of a certified farmers market license must be received by the department, accompanied by the applicable fee, before the expiration date of the previous license. Information provided in a renewal application must be current and valid.
(Ord. No. 04-1013, § 2, 9-29-04; Ord. No. 07-1051, § 3, 9-12-07; Ord. No. 2025-743, § 23, 8-27-2025)

Sec. 20-193. Fees.

(a) At the time of application for a certified farmers market license and each renewal thereof, the applicant shall pay to the health officer a nonrefundable annual fee stated for this provision in the city fee schedule.

(b) Replacement fee. A license holder who has lost his valid, current certified farmers market license may obtain a replacement from the health officer for the fee stated for this provision in the city fee schedule.
(Ord. No. 04-1013, § 2, 9-29-04; Ord. No. 07-1051, §§ 3, 5, 9-12-07; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2015-1202, § 90, 12-2-2015; Ord. No. 2025-743, § 24, 8-27-2025)

Sec. 20-194. Issuance or denial generally; term; suspension; revocation.

(a) Upon receiving the application for a license under this division, the health officer shall make an inspection of the certified farmers market and each vendor's establishment within a certified farmers market, and if the certified farmers market complies with the provisions and requirements of this division, as well as other applicable ordinances, then the health officer shall approve the application upon the payment of the license fee and issue a license to the applicant. In the event the health officer shall determine that the applicant's certified farmers market does not comply with the provisions of this division or other ordinances, the health officer shall disapprove the application.

(b) *Suspension or revocation.* A license issued pursuant to this division may be suspended or revoked upon the suspension, withdrawal, or non-renewal of a farmers market certification issued by the Texas Department of Agriculture, or for violations of this division or of any state or federal laws, rules or regulations relating to activities covered by this division in the same manner and upon the same procedures prescribed in sections 20-41 through 20-43 of this Code for revocation or suspension for a food dealer's permit. In the event that a license issued under this division expires without timely renewal or is suspended or revoked, all operations within the

certified farmers market shall be suspended until and unless the license for the certified farmers market is restored to valid status.
(Ord. No. 04-1013, § 2, 9-29-04; Ord. No. 07-1051, § 3, 9-12-07)

Sec. 20-195. Appeal from denial.

An applicant whose application for a certified farmers market license has been denied may, within ten days, appeal to a hearing officer appointed by the director of public health. The hearing officer shall conduct a hearing in the same manner and upon the same procedures prescribed in sections 20-41 through 20-43 of this Code.
(Ord. No. 04-1013, § 2, 9-29-04; Ord. No. 07-1051, § 3, 9-12-07; Ord. No. 2015-820, § 14, 8-26-2015)

Sec. 20-196. Alternatives; waivers.

The director of public health or his designee may authorize alternatives to particular requirements of this division or any other provisions of this article with respect to a certified farmers market. An authorization shall be considered only upon written request, which shall set forth the provision for which an alternative is sought and the nature of the proposed alternative. Approval for the alternative shall be granted if it is determined that, for the purpose intended, the alternative proposed is at least equivalent to the requirement otherwise specified in this division with respect to safety, sanitation and related purposes. The burden of demonstrating compliance with the foregoing standard shall be upon the requestor. Consistent with the foregoing procedures and standards, the director of public health or his designee may waive any requirement of this division upon his determination that failure to comply with the requirement, as applied to the operation of the certified farmers market or vendor's establishment, does not endanger the public health or safety of the food supply. An approval issued under this section shall be valid only if issued in writing and shall be limited in scope as provided therein.
(Ord. No. 04-1013, § 2, 9-29-04; Ord. No. 07-1051, § 3, 9-12-07; Ord. No. 2015-820, § 14, 8-26-2015)

Secs. 20-197—20-199. Reserved.

ARTICLE IV. VENDING MACHINES*

Sec. 20-200. Definitions.

As used in this article, the following words and phrases shall have the meanings set forth in this section unless otherwise clearly indicated in the text. Words not defined shall be interpreted in their usual sense:

Bulk food means any food that, when it is dispensed to the customer, is not packaged, wrapped, or otherwise enclosed.

Condiment means any food, such as salt, pepper, mustard and ketchup, that is used to enhance the flavor of other food.

Commissary means a catering establishment, restaurant, or any other place in which food, containers or supplies are kept, handled, prepared, packaged, or stored with the intent that some or all of the items will be used in vending machines. The term shall not be construed to include an area or conveyance at a vending machine location that is used for the temporary storage of packaged food or beverages.

Controlled location vending machine (limited service vending machine) means a vending machine that:

(1) Dispenses only non-time/temperature controlled for safety (non-TCS) packaged food;

(2) Is designed so that it can be filled and maintained in a sanitary manner by untrained persons at the location; and

(3) Is intended for and used at locations in which protection is assured against environmental contamination.

Corrosion-resistant means those materials that maintain their original surface characteristics under prolonged influence of the food to be contacted, the normal use of

*__Editor's note—__Formerly, Art. VI. See editor's note at Art. III for detailed analysis. Subsequently, Ord. No. 07-1051, § 6(Exh. B), adopted September 12, 2007, amended Art. IV in its entirety to read as herein set out.

cleaning compounds and bactericidal solutions, and other conditions of the use environment.

Easily cleanable has the meaning ascribed in section 1-201.10(B) of the FDA Food Model Code.

Employee means the permit holder, person in charge, person having the supervisory or management duties, person on the payroll, family member, volunteer, person performing work under contractual agreement, or other person working in a food establishment, and any other person who handles any food that is intended to be dispensed through vending machines, or who comes into contact with food-contact surfaces of containers, equipment, utensils, or packaging materials used in connection with vending machine operations, or who otherwise services or maintains the machines.

Equipment means vending machines, ovens, tables, counters, sinks, and similar items, other than utensils used in vending operations.

Filth means dust, dirt, insect excretions or other secretions, insect body parts, rodent hairs or excretions, feathers, or any other foreign or injurious contamination.

Food means any raw, cooked, or processed edible substance, ice, beverage, or ingredient used or intended for use or for sale in whole or in part for human consumption, including chewing gum.

Food-contact surfaces means those surfaces with which food normally comes into contact, and those surfaces from which food may drain, drip or splash back into a food or onto a surface normally in contact with food.

Garbage means every accumulation of animal, vegetable, and other waste matter that attends the preparation, handling, consumption, storage, or decay of plant and animal matter, including meats, fish and seafoods, birds, fruit, vegetable or dairy products and the waste wrappers or containers thereof.

Hermetically-sealed container means a container that is designed and intended to be secure against the entry of microorganisms and to maintain the commercial sterility of its contents after processing.

Law means all applicable federal, state, and local statutes, ordinances, and regulations.

Machine location means the room, enclosure, space or area where one or more vending machines are installed and operated.

Operator means any person who takes responsibility for furnishing, installing, servicing, operating, or maintaining one or more vending machines.

Packaged means bottled, canned, cartoned, or securely bagged or securely wrapped, whether packaged in a food establishment or a food processing plant. Packaged does not include a wrapper, carry out box, or other nondurable container used to containerize food with the purpose of facilitating food protection during service and receipt of the food by the consumer.

Person includes an individual, partnership, corporation, association, or other legal entity.

Poultry shall have the meaning ascribed in section 1-201.10(B) of the FDA Food Model Code.

Readily accessible means exposed or capable of being exposed for cleaning and inspection without the use of tools.

Restrict shall have the meaning ascribed in section 1-201.10(B) of the FDA Food Model Code.

Safe materials means articles manufactured from or composed of materials that may not reasonably be expected to result, directly or indirectly, in their becoming a component or otherwise affecting the characteristics of any food. If materials are food additives or color additives as defined in Section 201(s) or (t) of the Federal Food, Drug, and Cosmetic Act as used, they are "safe" only if they are used in conformity with regulations established pursuant to Section 409 or Section 706 of the Act.

Other materials are "safe" only if they are not food additives or color additives as defined in Section 201(s) or (t) of the Federal Food, Drug, and Cosmetic Act and are used in conformity with regulations issued under the Act.

Safe temperatures, for time/temperature controlled for safety (TCS) food, means temperatures of 41°F (5°C) or below or 135°F (57°C) or above.

Sanitized means having received effective bactericidal treatment by a process that provides enough accumulative heat or concentration of chemicals for enough time to reduce the bacterial count, including pathogens, to a safe level on utensils and equipment.

Sealed means free of cracks or other openings that permit the entry or passage of moisture.

Single-service articles means tableware, carry-out utensils, and other items such as bags, containers, placemats, stirrers, straws, toothpicks, and wrappers that are designed and constructed for one-time, one-person use, after which they are intended for discard.

Time/temperature controlled for safety (TCS) food shall have the meaning ascribed in section 1-201.10(B) of the FDA Food Model Code.

Utensil means shall mean any multi-use or single-service food-contact implement or container used in the storage, preparation, transportation, dispensing, sales or service of food, such as kitchenware or tableware; gloves used in contact with food; temperature sensing probes of food temperature measuring devices; and probe-type price or identification tags used in contact with food.

Vending machine means any self-service device that, upon insertion of a coin, paper currency, token, card or key or by optional manual operation, dispenses unit servings of food, either in bulk or in packages, without the necessity of replenishing the device between each vending operation. It shall also include self-service dispensers equipped for coin, paper currency, token, card, or key operation and optional manual operation. Unless otherwise stated, vending machine includes controlled location vending machines.

Vending machine location shall mean the room, enclosure, space, or area where one or more vending machines are installed or operated and includes the storage areas and areas on the premises that are used to service and maintain the vending machines.

(Code 1968, § 19-600; Ord. No. 83-744, § 1, 5-17-83; Ord. No. 99-1346, § 2, 12-15-99; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07; Ord. No. 2015-1202, §§ 91—93, 12-2-2015; Ord. No. 2025-743, §§ 25, 26, 8-27-2025)

Sec. 20-201. Food supplies.

(a) Food which is placed in any vending machine or is exposed for sale, offered for sale, or sold through a vending machine shall be in sound condition, free from spoilage, filth, or other contamination and shall be safe for human consumption. Food shall be obtained from sources that comply with all applicable laws relating to food and food labeling. Food in hermetically sealed containers that were not prepared in a food processing establishment may not be placed in any vending machine.

(b) Food from commissaries outside the jurisdiction of the city may be sold within the city if such commissaries conform to substantially equivalent food service sanitation standards. To determine the extent of compliance with such provisions, the health officer may accept reports from the responsible authorities in the jurisdictions where the commissaries are located. Where such reports cannot be obtained or there is some question regarding their validity, the health officer may request the commissary in question to permit an inspection of the commissary. If the commissary in question refuses to permit such an inspection after the health officer has determined the necessity for such an inspection, he shall bar the sale of food from that commissary within the city. The cost of inspections of commissaries outside the city shall be borne by the commissary.

(Code 1968, § 19-601; Ord. No. 83-744, § 1, 5-17-83; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07)

Sec. 20-202. Food protection.

Food intended for sale through vending machines shall be protected from any agent of contamination, including dust, insects, rodents, unclean equipment and utensils, unnecessary handling, coughs, sneezes, flooding, draining, and overhead leakage or condensation at all times, including while being prepared, stored, loaded, displayed or transported.
(Code 1968, § 19-602; Ord. No. 83-744, § 1, 5-17-83; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07)

Sec. 20-203. Temperatures.

The temperature of time/temperature controlled for safety (TCS) food shall be 41°F (5°C) or below or 135°F (57°C) or above at all times, except as otherwise provided in subsection 20-204(g) of this Code.
(Code 1968, § 19-603; Ord. No. 83-744, § 2, 5-17-83; Ord. No. 99-1346, § 3, 12-15-99; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07; Ord. No. 2015-1202, § 94, 12-2-2015)

Sec. 20-204. Time/temperature controlled for safety (TCS) foods.

(a) Milk and fluid milk products offered for sale through vending machines shall be pasteurized, shall meet the Grade A quality standards as established by applicable laws, and shall be dispensed only in individual original containers.

(b) Milk and fluid milk products and fluid nondairy products (creaming agents) shall not be dispensed in vending machines as additional ingredients in hot liquid beverages or other foods.

(c) When condiments are provided in conjunction with food dispensed by a vending machine, they shall be:

(1) Packaged in individual portions in single-service containers; or

(2) Made available from condiment self-service dispensing equipment at those locations having an on duty attendant if sanitary facilities are provided in accordance with article II of this chapter.

(d) Fresh fruits which may be eaten without peeling shall be thoroughly washed in potable water at the packing plant by the processor or at the commissary before being placed in the vending machines for dispensing. The washed fruit shall be protected from contamination after the washing process.

(e) All food, other than fresh fruit, shall be stored or packaged in clean protective containers, and all food shall be handled and vended in a sanitary manner.

(f) Time/temperature controlled for safety (TCS) food offered for sale through vending machines shall be dispensed to the consumer in the individual, original container or package into which it was placed at the commissary or at the manufacturer's or processor's plant.

Time/temperature controlled for safety (TCS) food shall not be dispensed from bulk food machines.

(g) Time/temperature controlled for safety (TCS) food shall be maintained at safe temperatures except as follows:

(1) During necessary periods of preparation and packaging; and

(2) During the actual time required to load or otherwise service the machine not to exceed ten minutes and for a maximum machine ambient temperature recovery period of 30 minutes following completion of loading or servicing operation.

(h) Vending machines dispensing time/temperature controlled for safety (TCS) food shall be provided with one or more thermometers which, to an accuracy of ±3 degrees Fahrenheit, indicate the air temperature of the warmest part of the refrigerated food storage compartment, or the coldest part of the heated food storage compartment, whichever is applicable.
(Code 1968, § 19-604; Ord. No. 83-744, § 1, 5-17-83; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07; Ord. No. 2015-1202, § 96, 12-2-2015; Ord. No. 2025-743, § 27, 8-27-2025)

Sec. 20-205. Personal hygiene.

(a) Employees shall maintain a high degree of personal cleanliness and shall conform to good hygienic practices while engaged in handling foods or food-contact surfaces, utensils or equipment.

(b) Employees shall thoroughly wash their hands with soap and warm water immediately prior to engaging in any vending machine servicing operation which may bring them into contact with food, or with food-contact surfaces of utensils, containers or equipment. While engaging in such servicing operations, employees shall wear clean outer garments, shall not use tobacco in any form and shall keep their fingernails clean and trimmed.
(Code 1968, § 19-605; Ord. No. 83-744, § 1, 5-17-83; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07)

Sec. 20-206. Communicable disease.

(a) No person, while infected with a communicable disease that can be transmitted by foods or who is a carrier of organisms that cause such a disease, or while afflicted with a boil, an infected wound, or an acute respiratory infection, shall work in any area of a commissary or vending operation.

(b) When the health officer has reasonable cause to suspect the possibility of disease transmission from any employee, he may secure a morbidity history of the suspected employee or make any other investigation as may be indicated and shall take appropriate action. The health officer may require any or all of the following measures:

(1) The immediate exclusion of the employee from the commissary or vending operation.

(2) The immediate closing of the commissary and vending operations concerned, in accordance with the procedures set out in article II of this chapter, until, in the opinion of the health officer, no further danger of disease outbreak exists.

(3) Restriction of the employee's services to some area of the establishment where there would be no danger of transmitting disease.

(4) Adequate medical and laboratory examinations of the employee, of other employees and of such persons' body discharges.

(Code 1968, § 19-606; Ord. No. 83-744, § 1, 5-17-83; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07)

Sec. 20-207. Interior of vending machines.

(a) The non-food-contact surfaces of the interior of vending machines shall be designed and constructed to permit easy cleaning and to facilitate maintenance operations and shall be kept clean and in good repair. Inaccessible surfaces and areas shall be minimized.

(b) All food-contact surfaces of vending machines shall be smooth, in good repair, and free of breaks, corrosion, open seams, cracks and chipped places. The design of such surfaces shall preclude routine contact between food and V-type threaded surfaces, except that in equipment where such contact is unavoidable, such as ice makers, such threads shall be minimized. All joints and welds in food-contact surfaces shall be smooth, and all internal angles and corners of such surfaces shall be rounded to facilitate cleaning.

(c) If solder or other sealer is used on food-contact surfaces, it shall be composed of safe materials and be corrosion-resistant.

(d) All food-contact surfaces of vending machines, including containers, pipes, valves and fittings, shall be constructed and repaired with safe materials, including finishing materials, shall be corrosion-resistant, nonabsorbent, easily cleanable and durable under conditions of normal use, and shall be cleaned, rinsed and sanitized as often as necessary to keep such surfaces clean. The health officer may establish frequencies for such cleanings based upon the type of product being dispensed to ensure that the surfaces are kept clean, and the operator shall comply with any such requirements.

(e) All food-contact surfaces, unless designed for in-place cleaning, shall be accessible for manual cleaning, rinsing, sanitizing and inspection:

(1) Without being disassembled; or

(2) By disassembly without the use of tools; or

(3) By easy disassembling with the use of only simple tools such as a screwdriver or an open-end wrench.

(f) All food-contact parts or surfaces not designed for in-place cleaning shall be cleaned, rinsed and sanitized in clean portable containers or in utensil-washing sinks at the location or at the commissary. Cleaning shall consist of washing in warm water containing a suitable detergent and brushing or wiping, as appropriate. Rinsing shall consist of immersion or wiping with clean clear rinse water. Sanitizing shall be accomplished by:

(1) Immersion or rinsing in water of at least 180° Fahrenheit (82.2° Celsius) for 30 seconds; or

(2) Immersion for one minute in a chemical sanitizing solution containing at least 50 parts per million (p.p.m.) of available chlorine, or 12.5 p.p.m. of available iodine, or 200 p.p.m. of quaternary ammonium sanitizer.

(g) In machines designed so that food-contact surfaces are not readily removable, all such surfaces intended for in-place cleaning shall be designed and fabricated so that:

(1) Cleaning and sanitizing solutions can be circulated throughout a fixed system using an effective cleaning and sanitizing regimen; and

(2) Cleaning and sanitizing solutions will contact all food-contact surfaces; and

(3) The system is self draining or capable of being completely evacuated; and

(4) The procedures utilized result in thorough cleaning of the equipment.

(h) The food storage compartment and other compartments in refrigerated vending machines which are subject to condensation or cooling water retention shall be self draining or equipped with a drain outlet which permits complete draining. In vending machines that store cartoned beverages, diversion devices and retention pans or drains for leakage shall be provided. All such drains and retention pans shall be easily cleanable.
(Code 1968, § 19-607; Ord. No. 83-744, § 1, 5-17-83; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07; Ord. No. 2025-743, § 28, 8-27-2025)

Sec. 20-208. Exterior of vending machine.

(a) The vending machine shall be of sturdy construction and the exterior shall be designed, fabricated, finished and maintained to facilitate its being kept clean and to minimize the entrance of insects and rodents. The exterior of the machine shall be kept clean.

(b) Door and panel access openings to the food and container storage spaces of the machine shall be tight-fitting, and if necessary, gasketed to prevent the entrance of dust, moisture, insects and rodents.

(c) All ventilation louvers or openings into vending machines shall be effectively screened. Screening material for openings into food and container storage spaces of the machine shall be not less than 16 mesh to the inch or equivalent. Screening materials for openings into condenser units which are separated from food and container storage spaces shall be not less than 8 mesh to the inch or equivalent.

(d) In all vending machines in which the condenser unit is an integral part of the machine, such unit, when located below the food and container storage space, shall be separated from such space by a dust-proof barrier, and when located above, shall be sealed from such space.

(e) In order to prevent seepage underneath the machine and to promote cleaning, free-standing vending machines shall have one or more of these elevation or movability features:

(1) Be light enough to be manually moved with ease by one person; or

(2) Be elevated on legs or extended sidewalls to afford, with or without kickplates, an unobstructed vertical space of at least six (6) inches (15 and 24-hundredths centimeters) under the machine; or

(3) Be mounted on rollers or casters which permit easy movement; or

(4) Be sealed to the floor.

Where used, kickplates shall be easily removable or be capable of being rotated. These kickplates shall be designed and installed to make the area under the machine easily accessible for routine cleaning without unlocking the cabinet door.

(f) Counter type machines shall be:

(1) Sealed to the counter; or

(2) Mounted on 4-inch (10.16 cm) legs or the equivalent; or

(3) Easily movable for cleaning with service connections in place.

(g) All service connections through an exterior wall of the machines, including water, gas, electrical and refrigeration connections, shall be grommeted, or closed with no opening larger than 1/32 inch (0.79 mm) to prevent the entrance of insects and rodents. All service connections to machines vending time/temperature controlled for safety (TCS) food shall be such as to discourage their unauthorized or unintentional disconnection.
(Code 1968, § 19-608; Ord. No. 83-744, § 1, 5-17-83; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07; Ord. No. 2015-1202, § 96, 12-2-2015)

Sec. 20-209. Vending machine locations.

(a) Vending machines, ovens and other equipment shall be located in a room, area or space which can be maintained in a clean condition and which is protected from overhead leakage or condensation from water, waste or sewer piping. The immediate area in which the equipment is located shall be well-lighted and ventilated. Each vending machine shall be located so that the space around and under the machine can be easily cleaned and maintained, and so that insect and rodent harborage is not created.

(b) The floor area where vending machines are located shall be reasonably smooth, of cleanable construction, and capable of withstanding repeated washing and scrubbing. This space and the immediate surroundings of each vending machine shall be maintained in a clean condition.

(c) Adequate hand-washing facilities, including hot and cold or tempered running water, soap and individual towels, shall be convenient to bulk food machine locations and shall be available for use by employees servicing or loading bulk food machines.

(d) In operations where vending machines are rented, leased or owned by persons other than the holder of the commissary food dealer's permit, the facilities for cleaning and hand-washing, and for garbage and refuse storage and disposal may be provided by persons owning, renting or leasing the vending machine(s) or by other persons. However, it is the responsibility of the holder of the commissary food dealer's permit to see that all of the requirements of this article are fulfilled.

(e) *Outdoor food vending areas, overhead protection.* If located outside, a machine used to vend food shall be provided with overhead protection except that machines vending canned beverages need not meet this requirement.
(Code 1968, § 19-609; Ord. No. 83-744, § 1, 5-17-83; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07)

Sec. 20-210. Single-service articles.

Single-service articles shall be purchased in sanitary packages which protect the articles from contamination, shall be stored in a clean, dry place until used, and shall be handled in a sanitary manner. Such articles shall be furnished to the customer in the original individual wrapper or from a sanitary single-service dispenser. All single-service articles shall be protected from manual contact, dust, insects, rodents, and other contamination.
(Code 1968, § 19-610; Ord. No. 83-744, § 1, 5-17-83; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07)

Sec. 20-211. Equipment cleaning.

(a) All equipment at the vending location must be kept clean. Food-contact surfaces, if any, must be cleaned, rinsed and sanitized as often as necessary to keep such surfaces clean. The health officer may establish set frequencies for such cleanings to protect the public health based upon the type of product being dispensed, and the operator shall comply with any such requirements.

(b) The cavities and door edges of microwave ovens must be cleaned at least once a day with nonabrasive cleaners and shall be kept free of encrusted grease deposits and other accumulated soil. All doors, seals, hinges and latch fasteners (screws and related hardware) shall be kept tight and adjusted in accordance with manufacturer's procedures.

(c) Food contact surfaces of all equipment and utensils must be protected from contamination at all times including while being transported from the commissary to the vending location.
(Code 1968, § 19-611; Ord. No. 83-744, § 1, 5-17-83; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07; Ord. No. 2025-743, § 29, 8-27-2025)

Sec. 20-212. Water supplies.

(a) All water used in vending machines shall be of a safe and sanitary quality and from a source constructed and operated according to all applicable laws. Water used as a food ingredient shall be piped to the vending machine under pressure, except that in controlled location vending machines, water may be obtained from a safe source and carried to the machines in containers that are clean and of good sanitary construction.

External water-fill parts and drawers of controlled location vending machines shall be designed so that covers and drawers are secured to the machine.

All plumbing connections and fittings shall be installed and maintained according to all applicable laws.

(b) If used, water filters or other water conditioning devices shall be of a type which may be disassembled for periodic cleaning or replacement of the active element.

(c) To prevent leaching of toxic materials caused by possible interaction of carbonated water, piping and contact surfaces, post-mix soft drink vending machines manufactured after January 1, 1975, which are designed with an incoming water supply air gap, shall have no copper tubing or other potentially toxic water system tubing between the air gap and the downstream, carbonated water dispensing nozzle.

(d) To prevent leaching of toxic materials caused by possible interaction of carbonated water, piping and contact surfaces, of post-mix soft drink vending machines which are indirectly connected to the external water supply system shall be equipped with a double (or two single) spring-loaded check valve or other devices which will provide positive protection against the entrance of carbon dioxide or carbonated water into the water supply system. Backflow preventive devices shall be located to facilitate servicing and maintenance. No copper tubing or other potentially toxic tubing or contact surfaces shall be permitted in or downstream from the check valves or backflow devices. These check valves or backflow devices shall be inspected and cleaned or replaced not less than once every 12 months, and the holder of the food dealer's permit under which the machine is operated shall maintain a record thereof for inspection by the health officer upon request.

(e) Where spring-loaded check valves are used to prevent the backflow of carbon dioxide into accessible upstream copper or to other potentially toxic piping or tubing, a screen of not less than 100 mesh to the inch shall be installed in the water line immediately upstream from the check valves in a location which permits servicing or replacement.

(f) In all vending machines in which carbon dioxide is used as a propellant, all food-contact surfaces from the check valves or other protective devices, including the valves of devices, shall be of such material as to preclude the production of toxic substances which might result from interaction with carbon dioxide or carbonated water.
(Code 1968, § 19-612; Ord. No. 83-744, § 1, 5-17-83; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07)

Sec. 20-213. Trash and garbage.

(a) All trash and other solid or liquid waste shall be removed from the machine location as frequently as may be necessary to prevent nuisances and unsightliness, and shall be disposed of in a lawful manner.

(b) Self-closing, leak-proof, easily cleanable, insect-proof and rodent-proof waste receptacles shall be provided in the vicinity of each machine or machines to receive used cups, cartons, wrappers, straws, closures, and other items. Plastic bags and wet strength paper bags may be used to line the receptacles. Soiled waste receptacles shall be cleaned at such frequency as is necessary to prevent insect and rodent attraction.

Waste receptacles shall not be located within the vending machines, with the exception of those machines dispensing only packaged food with crown closures and ring tabs; in which case, the closure receptacles may be located under counters or otherwise enclosed in a manner that will not create a nuisance or prevent space around and under the counter or enclosure from being easily cleaned and maintained. Suitable racks or cases shall be provided for multiuse containers or bottles.

(c) Containers shall be provided within all machines dispensing liquid food in bulk for the collection of drip, spillage, overflow, or other internal wastes. Such machines shall be equipped with an automatic shut-off device at the waste pail or other devices or valves which will place the machine out of operation before the waste pail overflows. Such devices shall prevent water or liquid product from continuously running in the event of the failure of any single control, high level control, or other flow-control device in the liquid product or water system.

Controlled location vending machines not connected to a water supply system which generate no internal liquid wastes may be equipped with easily removable drip pans at the dispensing platform in lieu of internal waste containers and automatic shut-off devices. Controlled location vending machines that are connected to a water supply and have no internal waste containers, shall be equipped with at least 2 independently operated controls to prevent the continued flow of water in the event of failure of any single flow-control device.

Containers or surfaces on which such wastes may accumulate shall be readily removable for cleaning, shall be easily cleanable, and shall be corrosion-resistant. If liquid wastes from drip, spillage or overflow which originate within the machine are discharged into a sewage system, the connection to the sewer shall be through an air gap.

(Code 1968, § 19-613; Ord. No. 83-744, § 1, 5-17-83; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07)

Sec. 20-214. Machine identification, required lettering; records.

(a) On each vending machine there shall be conspicuously and permanently displayed, in letters of at least one-fourth inch in height, the business name, service telephone number and information notifying users of the machine of the telephone number of an agent of the operators where persons can report malfunctions of the machine and request refunds of money put into the machine when the machine has malfunctioned. The telephone number of the health department to which consumers may call to register complaints regarding the sanitation of the machine shall also be conspicuously and permanently displayed on each vending machine other than those machines described in section 20-216 of this Code which do not dispense any time/temperature controlled for safety (TCS) foods. Such information shall be posted in numbers and letters of at least one-fourth inch in height. The health officer may designate the location, wording and manner in which the information required under this section shall be posted on vending machines if he finds that such requirements will aid in notifying consumers of the information, and operators shall comply with such requirements.

(b) All operators of vending machines, except as provided in section 20-216 of this Code, shall:

(1) Maintain, at the operator's headquarters or at some other designated location within the city, a current list of all vending machines operated by such operator

within the city and the complete address of each machine location and of all commissaries or other establishments from which his machines are serviced.

This information shall be furnished to the health officer as a requirement for the renewal of the food dealer's permit and shall be available for inspection by the health officer during regular business hours;

(2) Notify the health department, in writing, within 30 calendar days of each new location at which vending machines that dispense time/temperature controlled for safety (TCS) food, hot or cold cup beverages or bulk foods have been placed in operation; and

(3) Notify the health department, in writing, within 30 calendar days of any change in operations involving new types of vending machines or conversions of existing machines to dispense products other than those for which the machines were originally designed and constructed.

(Code 1968, § 19-614; Ord. No. 83-744, § 1, 5-17-83; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07; Ord. No. 2015-1202, § 96, 12-2-2015)

Sec. 20-215. Permits.

(a) No person shall operate one or more vending machines, other than those vending machines which are exempt under section 20-216 of this Code, without first having obtained a food dealer's permit issued by the city health department in accordance with the requirements and provisions of article II of this chapter. Compliance with the requirements of this article and all other applicable provisions of this chapter shall be a condition for the issuance of a food dealer's permit when any vending machines are to be operated by the permit holder.

(b) No person shall operate any vending machine unless the permit holder has notified the health department, in writing, that he intends to operate one or more vending machines under his permit. Upon receipt of such information, the health department shall make a notation on the permit that one or more vending machines are being operated by the permit holder. Such permits are not transferable.

(c) A food dealer's permit may be revoked or suspended for violations of the requirements of this article, for conditions existing in connection with one or more vending machines operated by the permit holder which pose a substantial hazard to public health, for repeated or serious violations of other applicable provisions of this chapter, or repeated or serious violations of federal or state food laws. Any such suspension or revocation shall be made in accordance with the procedures set out in article II of this chapter.

(Code 1968, § 19-615; Ord. No. 83-744, § 1, 5-17-83; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07)

Sec. 20-216. Controlled location machines.

All controlled location vending machines and vending machines which dispense exclusively bottled or canned soft drinks, prepackaged ice, water, candy, cookies, crackers, or similar prepackaged, non-time/temperature controlled for safety (TCS) food snacks, or ball gum, nuts, and panned candies are exempt from the requirements of sections 20-214(b) and 20-215 of this Code, but shall meet all other applicable requirements of this article.

(Code 1968, § 19-616; Ord. No. 83-744, § 3, 5-17-83; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07; Ord. No. 2015-1202, § 95, 12-2-2015)

Sec. 20-217. Inspections.

The health officer, after proper identification, shall be permitted to enter at any reasonable time upon any private or public property where vending machines or commissaries are operated, or from which such machines are otherwise serviced, for the purpose of determining compliance with the provisions of this article and all other applicable provisions of this chapter. The operator shall make provisions for the health officer to have access to the interior of all food vending machines operated by him in the company of the operator or his employee.

(Code 1968, § 19-617; Ord. No. 83-744, § 1, 5-17-83; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07)

Sec. 20-218. Inspection reports.

(a) Whenever an inspection of a food vending machine or machines is made, the original of the completed inspection form shall be furnished to the operator. A copy shall be made and, the copy shall become part of the health officer's permanent files.

(b) Whenever the health officer discovers a violation of any provision of this article or other applicable laws, he shall notify the operator concerned either by the inspection report form or by other written notice. Such form or notice shall:

(1) Describe the condition found; and

(2) Provide a specific period of time for the correction of the condition.

(c) The provisions of this section shall not relieve any person of criminal or civil penalties for such violation.
(Code 1968, § 19-618; Ord. No. 83-744, § 1, 5-17-83; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07)

Sec. 20-219. Compliance; penalties for violation.

(a) No person shall place or cause to be placed any food in a vending machine in the city unless the vending machine and the food placed in such machine are in full compliance with all applicable provisions of this article and all other applicable laws.

(b) A permit holder shall ensure that all vending machines which he is operating and all food placed in such machines are in full compliance with this article and all other applicable laws.

(c) Whenever the health officer shall find any article of food which is adulterated, misbranded or detrimental to public health, he shall cause such article to be tagged or otherwise properly marked as provided by law. When it is not possible to tag the articles of food within a vending machine, the health officer shall cause the machine containing the food items in question to be tagged.

(d) Any person who violates any provision of this article shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not less than $50.00 nor more than $2,000.00; provided however, if such person is convicted of an offense under this article which offense is also a violation of the penal laws of the state, such person shall be subject to the penalties set out in the penal laws of Texas for the offense.
(Code 1968, § 19-619; Ord. No. 83-744, § 1, 5-17-83; Ord. No. 92-1449, § 36, 11-4-92; Ord. No. 07-1051, §§ 3, 6(Exh. B), 9-12-07)

Secs. 20-220—20-250. Reserved.

ARTICLE V. CHARITABLE FOOD SERVICES

Sec. 20-251. Definitions.

As used in this article, the following words and phrases shall have the meanings set forth in this section:

Charitable food services means providing food without charge, payment or other compensation to benefit those in need at an outdoor location not owned, leased or controlled by the individual or organization providing the food.

Food service event means each instance in which charitable food services are provided to more than five individuals.

Health department means the Houston Health Department.

Parks department means the department of parks and recreation.

Recognized charitable food service provider means an individual or organization which participates in charitable food services and has received a certificate from the city designating said individual or organization as being in good standing in the City of Houston Recognized Charitable Food Service Provider Program.
(Ord. No. 2012-269, § 2, 4-4-2012, eff. 7-1-2012; Ord. No. 2015-820, § 15, 8-26-2015)

Sec. 20-252. Use of property without consent prohibited.

It shall be unlawful for any organization or individual to sponsor or conduct a food service event on public or private property without the advance written consent of the public or private property owner or other individual with lawful control of the property.
(Ord. No. 2012-269, § 2, 4-4-2012, eff. 7-1-2012)

Sec. 20-253. Program created.

There is hereby created the City of Houston Recognized Charitable Food Service Provider Program (the "program"). The purpose of the program shall be to create a voluntary coalition of religious, community based, and charitable organizations and individuals dedicated to providing charitable food services in an organized, efficient, and cooperative process, assuring sanitary, quality foods are delivered to those in need, while protecting the environment and the rights of private property owners. The program shall be coordinated jointly by the director of public health and one or more community-based organizations.
(Ord. No. 2012-269, § 2, 4-4-2012, eff. 7-1-2012; Ord. No. 2015-820, § 16, 8-26-2015)

Sec. 20-254. Participation in the program; certification.

Any individual or organization desiring to participate in the program shall provide to the health department basic contact information, including name, address, telephone number, FAX number, email address, and name or names of contact person(s). In addition, the individual or organization, by requesting to participate in the program, shall pledge to do the following:

(1) To cooperate with the program coordinators in the scheduling and siting of food service events, with the goal of maximizing the benefit of such charitable food services to the needy.

(2) To provide charitable food services in a manner consistent with good hygiene, sanitation, and food safety, by:

a. Following basic standards for food preparation, handling, storage, and use promulgated by the health department.

b. Conducting each food service event under the guidance of at least one person who has attended a city-sponsored, free-of-charge food safety training class conducted by the health department and has received an appropriate charitable food service certification (also referred to as a "certification"). A person qualified as a food service manager shall also suffice. A certification obtained in this manner shall be valid for a period of five years.

c. Authorizing the inspection of all food preparation areas, all food transport vehicles, and all food service events by appropriate representatives of the health department.

d. Agreeing to implement improvements to their food preparation, transportation, and service process as suggested by the health department.

(3) To provide adequate personnel, trash receptacles, and trash containment and removal measures to contain all trash, refuse, and litter on the site of the food service event and to remove all trash, refuse, litter and unused foods from the site at the conclusion of the food service event.

Any individual or organization providing the necessary contact information and pledging to participate in the program as described in this section shall be designated by an official certificate issued by the health department as a recognized charitable food service provider, and upon continuing to fulfill that pledge as determined by the health department, shall be eligible for renewal annually.

An individual or organization providing charitable food services with the consent of the property owner but without participating in the program established by this article shall not be deemed in violation of this article.
(Ord. No. 2012-269, § 2, 4-4-2012, eff. 7-1-2012; Ord. No. 2025-743, § 30, 8-27-2025)

Sec. 20-255. Health department authorized.

The health department is authorized to:

(1) Issue guidelines for food preparation, food transportation, food storage, and other food safety, sanitation, and public health-related issues associated with conducting food service events.

(2) Provide appropriate health department personnel to conduct charitable food service certification classes at no charge as described in section 20-254(2)(b) of this Code.

(3) Identify on an annual basis beginning one year from the effective date of Ordinance No. 2012-269, those recognized charitable food service providers which have abided by their pledge to provide charitable food services in conformance with section 20-254 of this Code, and based on that performance, determine that such individuals or organizations should continue in good standing as recognized charitable food service providers.

(Ord. No. 2012-269, § 2, 4-4-2012, eff. 7-1-2012)

Sec. 20-256. Identification and recognition.

The city shall maintain on the city website a list identifying by name and address (and if requested by the provider, other direct contact information), those recognized charitable food service providers which are in good standing under the program. In addition, recognized charitable food service providers currently in good standing under the program may also identify themselves as having achieved that status in correspondence, publications, and the like; provided, however, such identification shall not utilize the official city seal or other similar official identifiers of the City of Houston.

(Ord. No. 2012-269, § 2, 4-4-2012, eff. 7-1-2012)

Sec. 20-257. Use of city parks and other city property for food service events.

The director of the parks department shall develop rules, regulations, and criteria for the use of park properties for food service events and shall maintain a list of park properties with areas approved for food service events. The director of public health shall develop rules, regulations, and criteria for the use of other city property for food service events and shall maintain a list of such properties with areas approved for food service events. The parks department and the health department shall coordinate designation of such properties to avoid redundancy and maximize the most effective use of the properties.

(Ord. No. 2012-269, § 2, 4-4-2012, eff. 7-1-2012; Ord. No. 2015-820, § 17, 8-26-2015)

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Chapter 21

HEALTH*

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ARTICLE I. IN GENERAL

Sec. 21-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Department means the Houston Health Department.

Director means the director of public health.
(Ord. No. 2015-820, § 18, 8-26-2015)

Sec. 21-2. Houston Health Department—Created; general duties.

There is created the Houston Health Department. The officers and employees of that department are charged with the duty of enforcing all laws and ordinances relating to health and such other duties as are now or may hereafter be placed upon them by the mayor, city council and by the ordinances and Charter of the city. Any reference in this Code to the "health department," the "area agency on aging," the "health and human services department," or the "health and human resources department" of the city shall mean a reference to the Houston Health Department.
(Code 1968, § 21-1; Ord. No. 85-889, § 1, 6-13-85; Ord. No. 85-1190, § 1, 7-17-85; Ord. No. 2015-820, § 18, 8-26-2015)

Sec. 21-3. Same—Director designated; duties.

(a) The director of public health shall be the director of the Houston Health Department. For the purposes of this Code, the terms "director of public health," "director of health," "director of health and human services," "director of health and human resources," and "director of the area agency on aging" shall be synonymous. The director of public health shall coordinate the activities and recommendations of the mayor, the Texas Department of State Health Services and the United States Public Health Service.

(b) It shall be the duty of the director of public health to enforce all laws, ordinances and regulations pertaining to public health, to enforce regulations necessary for the occupational health of commercial and industrial workers, and to perform all public health services provided for by the laws of the state and the ordinances and

*__Cross references__—Alcoholic beverages, Ch. 3; ambulances, Ch. 4; animals and fowl, Ch. 6; housing code, § 10-151 et seq.; food and drugs, Ch. 20; possession, etc., of glue and related substances, § 28-21 et seq.; pay toilets in public places, § 28-29; manufactured homes and recreational vehicles generally, Ch. 29; noise, Ch. 30; payment of medical examination costs of rape victims, § 34-38; solid waste and litter control, Ch. 39; swimming pools, Ch. 43; medical examination of taxicab drivers, § 46-112; waters and sewers, Ch. 47.

Charter of the City. He shall direct the Houston Health Department, and all employees thereof shall be under his immediate direction and control. The director is hereby authorized to prescribe the duties of each employee and change such duties from time to time as he sees fit. The director may delegate the supervision of various functions of the Houston Health Department to such of the employees of such department as he may designate. He shall have authority to remove any nonclassified employee from the Houston Health Department for cause.

(c) No provision of this Code shall be construed as requiring the director of public health to be a licensed physician in Texas. If the person serving in that position is not a licensed physician, then, as provided by Section 121.033 of the Texas Health and Safety Code, the director of public health shall appoint another person who is a licensed physician in Texas as the 'health authority' for the jurisdiction, subject to confirmation by city council. Consistent with state law, any function that devolves upon the director of public health and is required to be performed by a licensed physician shall be performed by the health authority instead of the director of public health if the director is not a licensed physician.
(Code 1968, § 21-2; Ord. No. 85-889, § 2, 6-13-85; Ord. No. 85-1190, § 2, 7-17-85; Ord. No. 04-684, § 1, 6-30-04; Ord. No. 2015-820, § 18, 8-26-2015)

Cross reference—Officers and employees generally, § 2-21 et seq.

Sec. 21-4. Appointment of officers and employees and contract personnel of Houston Health Department generally.

The director shall be appointed by the mayor and confirmed by the council. All other officers and employees of the department, not exempted from civil service by article V-a of the Charter, shall be appointed in accordance with such article V-a, except as otherwise specifically provided. The director shall have authority to pass upon the qualifications, efficiency and fitness of all employees in the Houston Health Department, and no person shall be employed in the Houston Health Department until the director has approved his employment.
(Code 1968, § 21-4; Ord. No. 77-501, § 1, 3-15-77; Ord. No. 78-2200, § 1, 11-1-78; Ord. No. 92-289, § 1, 3-18-92; Ord. No. 2015-820, § 18, 8-26-2015)

Sec. 21-5. Appointment of acting director.

The mayor is authorized from time to time to appoint one of the division heads in the department to act in the capacity of director when the person duly appointed to fill such position is absent from duty.
(Code 1968, § 21-5)

Sec. 21-6. Auxiliary health inspectors.

Whenever, in the mayor's judgment, the state of the public health demands such action, the mayor is empowered to appoint any employee of the city in any department as an auxiliary health inspector in addition to his other duties. Any such auxiliary health inspector so appointed shall be considered an inspector of the department and shall have all the powers and duties of same.
(Code 1968, § 21-6)

Sec. 21-7. Employee qualifications.

The holders of all the positions in the department shall possess qualifications in accordance with the standards heretofore laid down for persons performing public health functions, such standards having been approved and recommended by the state and territorial health officers and the Texas Department of State Health Services. All new employees appointed to any of such positions must meet all minimum requirements as set up by the state and territorial health officers and the Texas Department of State Health Services.
(Code 1968, § 21-7; Ord. No. 2015-820, § 19, 8-26-2015)

Sec. 21-8. Medical examinations to identify diseases.

Whenever it shall be deemed necessary by the health officer to establish the true character of any disease which is suspected to be communicable, a medical examination of the person affected by such disease may be ordered by such officer. Any person interfering with or refusing to permit such examination shall be guilty of a misdemeanor.
(Code 1968, § 21-8)

Sec. 21-9. Reserved.

Editor's note—Section 13 of Ord. No. 91-1102, adopted July 31, 1991, repealed § 21-9 in its entirety. Formerly, § 21-9 pertained to health nuisances generally and derived from § 21-11, Code 1968, and § 2 of Ord. No. 85-1839, adopted Oct. 22, 1985.

Sec. 21-10. Reserved.

Editor's note—Section 13 of Ord. No. 91-1102, adopted July 31, 1991, repealed § 21-10 in its entirety. Formerly, § 21-10 pertained to treatment of accumulation of water for mosquito control and derived from § 21-12, Code 1968, and § 3 of Ord. No. 85-1839, adopted Oct. 22, 1985.

Sec. 21-11. Annual report of director.

The director shall make an annual report to the mayor and city council at the end of the fiscal year, which report shall cover the entire work of the department for the preceding year.
(Code 1968, § 21-19)

Sec. 21-12. Reserved.

Editor's note—Section 13 of Ord. No. 91-1102, adopted July 31, 1991, repealed § 21-12 in its entirety. Formerly, § 21-12 pertained to entry powers of enforcement officers and derived from § 21-20, Code 1968.

Sec. 21-13. International travel immunizations.

As a convenience to persons who may wish to engage in international travel, the director may offer immunization vaccinations that are not generally made available by local physicians but are required or recommended for persons traveling to certain foreign countries, including, but not limited to, cholera, typhoid and yellow fever immunizations. The fee for each vaccination that is administered, including any certificate provided therewith, shall be an amount equal to the city's cost of purchase of the vaccine plus the fee stated for this provision in the city fee schedule to cover the associated costs for providing the service and administering the vaccine.
(Code 1968, § 21-140; Ord. No. 78-1131, § 1, 6-6-78; Ord. No. 78-2488, § 1, 12-12-78; Ord. No. 90-1404, § 1, 11-28-90; Ord. No. 95-23, § 1, 1-4-95; Ord. No. 98-1111, § 1, 12-2-98; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 21-14. Fees charged for goods or services.

(a) The director of the public health is hereby authorized to charge and collect fees for goods or services provided by the department, provided that no person shall be denied goods or service because of his or her inability to pay for it. All fees charged pursuant to this section shall be set out in the city fee schedule. The director shall consider the actual costs, direct and indirect, of the goods and services provided when recommending to the city council fees to be charged pursuant to this section.

(b) All laboratory fees charged and revenues collected shall be retained by the Houston Health Department to defray a portion of the costs associated with the purchase, maintenance, operation, and utilization of the city laboratories, including but not limited to, infrastructure, equipment, supplies, software, and hardware systems, and with performing public health surveillance tests. By 60 days following the end of each fiscal year, any amount of money in the laboratory operations and maintenance fund's current fiscal year-end fund balance that is in excess of four months of the average of the previous three fiscal years' audited expenditures less debt from the current fiscal year's ending fund balance, may be appropriated by city council and transferred to the general fund fund balance for general city expenditures, as needed.
(Ord. No. 85-570, § 1, 4-23-85; Ord. No. 85-2159, § 1, 12-17-85; Ord. No. 08-1171, §§ 2, 3, 12-17-08; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2015-820, §§ 20, 33, 34, 8-26-2015; Ord. No. 2019-447, § 10, 6-12-2019)
Note—Formerly § 21-15.

Sec. 21-15. Fees charged pursuant to grants.

If the city is required to charge fees for goods or services provided by the Houston Health Department pursuant to the terms of a state or federal grant accepted by ordinance, then the director is hereby authorized to charge and collect fees in accordance with the terms of the grant.
(Ord. No. 85-1517, § 1, 8-28-85; Ord. No. 08-1171, § 4, 12-17-08; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2015-820, §§ 20, 34, 8-26-2015)
Note—Formerly § 21-15.1.

Sec. 21-16. Public health internships.

(a) A health education institution wishing to sponsor a public health internship program for its nursing or other health curricula shall make written application to the director on a form promulgated by him and approved by the legal department. No other form shall be used to establish terms and conditions for public health internship programs. The director shall review each application for compliance with the terms of this section. If the application is on compliance, the director may approve it, subject to the resource and budgetary constraints of the Houston Health Department. The director may reject an application if the proposed program would interfere with the city's program for delivery of public health care services. If there are more complying applications than can be approved due to budgetary or resource constraints, the director shall rank and approve applications in order of their benefits to the city's program for delivery of public health care services. The director may require, as a condition of approving an application, that the sponsoring institution provide a faculty member to accompany the intern or interns during clinical experience.

(b) All health education institutions wishing to sponsor interns in a public health internship program with the department must furnish to the department's office of quality assurance and continuing education a copy of a professional liability insurance policy in the amount of $300,000.00 per occurrence covering each intern and supervising faculty member provided by the sponsoring institution during his or her internship or during supervision or instruction given during the internship. The director may waive this insurance requirement for any intern if he determines that the intern will have no patient contact. The director may condition approval of an application upon the sponsoring institution's furnishing such policy 14 days prior to the start of the internship program. Unless waived by the director pursuant to this subsection, no intern shall be allowed to commence his or her internship without a copy of an insurance policy with coverage in compliance with this subsection on file with the office of quality assurance and continuing education.

(c) All books, manuals, and other educational materials and faculty required by the internship program shall be provided by the intern or the sponsoring institution at no cost to the city.

(d) The director shall establish general administrative procedures for public health internship programs including procedures for attendance verification, absences of interns because of illness, and unsatisfactory or unprofessional conduct of interns. The director may terminate an individual internship or an internship program for failure to comply with the administrative procedures established under this subsection. The director shall furnish the city secretary with a current copy of the procedures and shall maintain a copy in his offices at the Houston Health Department for public inspection.

(Ord. No. 85-943, § 1, 6-25-85; Ord. No. 86-640, § 1, 5-13-86; Ord. No. 2015-820, § 34, 8-26-2015)

Note—See the editor's note following § 21-15.1.

Sec. 21-17. Cigarette vending machines.

(a) As used in this section the following words and terms shall have the meanings herein ascribed:

(1) *Bar* means an establishment that derives 50 percent or more of its gross revenues from the sale of alcoholic beverages for on-premises consumption.

(2) *Cigarette* means:

a. Any roll of tobacco wrapped in paper or in any substance not containing tobacco; and

b. Any roll of tobacco wrapped in any substance containing tobacco which, because of its appearance, the type of tobacco used in the filler, or its packaging and labeling, is likely to be offered to, or purchased by, consumers as a cigarette described in item (2)a., above.

(3) *Cigarette vending machine* means any self-service device which, upon insertion of coin(s), paper currency, token(s), card(s) or key(s) or any other item(s) dispenses one or more cigarettes, as defined above, provided that the term shall neither be

deemed to include any machine that is in storage, in transit or otherwise not set up for use and operation nor be deemed to include any machine that is situated on a train, bus or other public conveyance.

(4) *Restaurant bar* means any area of a restaurant excluding the dining area,

that is primarily devoted to the serving of alcoholic beverages for consumption by guests on the premises and in which food service, if any, is only incidental to the consumption of such beverages.

(b) Subject to the defenses provided in subsection (c), below, it shall be unlawful for any person either to own or to suffer or allow the display or use of any cigarette vending machine upon any property within the city.

(c) It is a defense to prosecution under the provisions of this section that:

(1) The cigarette vending machine is situated in a premises where entry by any person under 18 years of age is prohibited by law; or

(2) The cigarette vending machine is situated in a hotel, a motel, a bar or a restaurant bar; or

(3) The cigarette vending machine is located in a workplace with the permission of the employer, provided that the employer has no persons under the age of 18 employed at the workplace, and further provided that the cigarette vending machine is situated at a location within the workplace to which persons other than those employed at the workplace are not permitted to have access.

(d) An offense under this section is a class C misdemeanor as defined by the Texas Penal Code.
(Ord. No. 91-427, § 2, 3-27-91)

Secs. 21-18—21-40. Reserved.

ARTICLE II. RESERVED*

Secs. 21-41—21-60. Reserved.

*__Editor's note—__Ord. No. 2015-820, § 32, adopted August 26, 2015, repealed Ch. 21, Art. II, §§ 21-41—21-49, in its entirety. Former article pertained to the Board of Health and derived from Code 1968, §§ 21-31—21-39.

ARTICLE III. ENCAMPMENTS

Sec. 21-61. Definitions.

As used in this article, the following words and terms shall have the meanings ascribed in this section, unless the context of their usage clearly indicates another meaning:

Encampment means any one or more of the following:

(a) The unauthorized use of fabric, metal, cardboard, or other materials as a tent or other temporary structure for living accommodation purposes or human habitation; or

(b) The unauthorized use of a heating device; or

(c) The unauthorized accumulation of personal property (other than durable medical equipment) that would not fit in a container three feet high, three feet wide, and three feet deep.

Designated outreach organization means a nonprofit organization jointly designated by the Houston Police Department's Homeless Outreach Team and the city's director of emergency medical services to assist the city's police department in the manner prescribed in section 21-63 of this Code.

Durable medical equipment means equipment customarily used for medical purposes, able to withstand repeated use, and generally not useful to a person in the absence of illness or injury. Non-exclusive examples of such equipment include wheelchairs, canes, crutches, and portable oxygen tanks.

Heating device means a camp stove, grill, heater, or other container or device capable of generating or containing an open flame.

Police officer means an officer of the city's police department.

Public place means an outdoor area owned, managed, or controlled by the city to which the public has access, including public rights-

of-way, parks, streets, sidewalks, hike and bike trails, transit facilities, underpasses, and parking lots.

(Ord. No. 2017-261, § 2, 4-12-2017)

Sec. 21-62. Encampment in a public place prohibited; penalty.

(a) Encampment in a public place in the city is unlawful.

(b) Any person who violates this section shall be guilty of a misdemeanor and, upon conviction, shall be punished as provided in section 1-6 of this Code.

(Ord. No. 2017-261, § 2, 4-12-2017)

Sec. 21-63. Procedure for enforcement.

(a) A police officer may issue a citation for a violation of this article if prior to issuing the citation:

(1) The officer has tendered a written warning to the person stating that a failure to comply with the city's prohibition against encampment may result in the issuance of a criminal citation to the person or in the person's arrest; and

(2) The officer has provided a reasonable time for the person to comply with the prohibition, but the person has not complied.

(b) The written warning required by subsection (a)(1) of this section may be accompanied by written information regarding the availability of medical treatment (including mental health treatment) or social services (including temporary shelter or drug or alcohol rehabilitation).

(c) A police officer may arrest a person for a violation of this article if prior to the arrest:

(1) The officer has tendered the written warning required by subsection (a) of this section and has provided a reasonable time for the person to comply with the prohibition, but the person has not complied;

(2) The officer has attempted to ascertain whether the person is in need of emergency medical treatment (including emergency mental health treatment) or social services (including temporary shelter or drug or alcohol rehabilitation), and, if the officer has concluded the person may be in need of emergency medical treatment or social services, has made reasonable efforts to obtain assistance from the Houston Police Department's Homeless Outreach Team and/or a designated outreach organization to informally evaluate the person's condition and needs; and

(3) At least one of the following circumstances exists:

a. The officer has concluded the person may be in need of medical treatment or social services, but, notwithstanding the officer's reasonable efforts, the officer has not been able to obtain the assistance contemplated by subsection (c)(2) of this section;

b. Personnel from the Houston Police Department's Homeless Outreach Team and/or a designated outreach organization have informally evaluated the person's condition and needs and concluded the person has no immediate need for emergency medical treatment or social services; or

c. Personnel from the Houston Police Department's Homeless Outreach Team and/or a designated outreach organization have informally evaluated the person's needs, concluded the person has an immediate need for emergency medical treatment or social services, and directed the person to an appropriate provider, but the person has not accepted the direction.

(Ord. No. 2017-261, § 2, 4-12-2017)

Sec. 21-64. Cumulative effect; conflict with other ordinances.

This article is cumulative of other applicable laws and ordinances. If this article conflicts with another provision of this Code, the more restric-

tive provision shall govern, except that Chapter 32 of this Code ('Parks and Recreation') shall govern over this article without regard to the restrictive nature of the respective provisions.
(Ord. No. 2017-261, § 2, 4-12-2017)

Secs. 21-65—21-80. Reserved.

ARTICLE IV. RESERVED*

Secs. 21-81—21-105. Reserved.

ARTICLE V. RESERVED†

Secs. 21-106—21-145. Reserved.

ARTICLE VI. AIR POLLUTION

DIVISION 1. GENERALLY

Sec. 21-146. Air pollution abatement program.

The health officer shall conduct an effective program for the abatement of air pollution within the city. Such program shall include, but not be limited to, the performance of the following duties:

(1) Conducting air quality monitoring and evaluation and maintaining records thereof;

(2) Investigating complaints of violations of the Texas Clean Air Act, pursuant to Chapter 382 of the Texas Health and Safety Code, and other applicable state and federal air pollution laws and rules, regulations and standards promulgated thereunder, by making investigations, inspections and observations of sources and ambient air conditions and maintaining records of such complaints, investigations, inspections and observations;

(3) Cooperating with the city attorney and with county, state and federal officers, offices, departments and agencies in the filing and prosecution of legal actions for civil and criminal enforcement of air pollution and air quality standards laws, rules and regulations;

(4) Cooperating with city, county, state and federal officers, offices, departments and other agencies in planning activities for the development of beneficial air resource planning strategies for the city and other matters relating to air quality management;

(5) Encouraging voluntary cooperation by persons and by affected groups in the preservation and regulation of purity of the outdoor atmosphere;

(6) Collecting and disseminating information to the general public on air pollution.

(Code 1968, § 21-115; Ord. No. 71-1049, § 1, 6-9-71; Ord. No. 07-208, § 2, 2-14-07)

Secs. 21-147—21-160. Reserved.

DIVISION 2. SOURCE REGISTRATION‡

Sec. 21-161. Definitions; scope.

(a) *Definitions.* As used in this division, the following words and terms shall have the meanings ascribed in this section unless the context of their usage clearly indicates another meaning:

*__Editor's note—__Section 13 of Ord. No. 91-1102, adopted July 31, 1991 repealed Art. IV of Ch. 21 in its entirety. Formerly, Art. IV consisted of §§ 21-81—21-89, which pertained to nuisances and derived from §§ 21-50—21-58 of the Code of 1968; § 1 of Ord. No. 68-1766, adopted Oct. 29, 1968; § 1 of Ord. No. 69-1860, adopted Oct. 7, 1969; §§ 1 and 3 of Ord. No. 74-831, adopted May 21, 1974; § 4 of Ord. No. 85-1839, adopted Oct. 22, 1985; and § 49 of Ord. No. 90-635, adopted May 23, 1990.

†__Editor's note—__Section 13 of Ord. No. 91-1102, adopted July 31, 1991 repealed Art. V of Ch. 21 in its entirety. Formerly, Art. V consisted of Divs. 1 and 2, §§ 21-106—21-111 and §§ 21-121—21-131, which pertained to rat control and derived from §§ 21-83—21-87 and §§ 21-93—21-103 of the Code of 1968; and § 5 of Ord. No. 85-1839, adopted Oct. 22, 1985.

‡__Editor's note—__Section 4 of Ord. No. 07-208 states that any valid registration heretofore issued under Division 2 of Article VI of Chapter 2 of the Code of Ordinances, Houston, Texas, prior to its amendment by this Ordinance, shall be regarded as a valid registration issued under Division 2 of

Act means the Texas Clean Air Act, Chapter 382 of the Texas Health & Safety Code, as may be amended from time to time.

Automotive body repair shop means any premises that engages in, conducts, or carries on automobile, truck or trailer body repairing or painting, or both.

Dry cleaning plant means any premises where fabrics or textiles are cleaned by use of

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Article VI of Chapter 21 of the Code of Ordinances, Houston, Texas, as amended by this Ordinance, for the remainder of the term of the registration.

perchlorethylene or petroleum solvents unless the devices used for the cleaning are coin-operated.

Facility means an automotive body repair shop, dry cleaning plant, gasoline dispensing site, sewage treatment plant, used vehicle sales lot or any facility or source as those terms are defined in the Texas Clean Air Act, Chapter 382 of the Texas Health Safety Code, as may be amended from time to time, that emits one ton per year or more of airborne contaminants.

Gasoline dispensing site means any premises where gasoline is dispensed from a fixed storage tank into vehicles.

Registration means a current and valid registration issued under this division.

Sewage treatment plant means a premises operated for the purpose of treating waste flowing into a publicly owned sanitary sewage system.

Used vehicle means an automobile, truck or trailer of any type that is used or intended for use on the streets and that has previously been registered in Texas or elsewhere.

Used vehicle sales lot means any premises utilized by a person required to be licensed as a dealer in motor vehicles under chapter 8 of this Code for the display of used motor vehicles for sale or trade.

(b) *Scope.* This article shall not be applicable to a facility that is owned and operated by the State of Texas or the United States of America.
(Ord. No. 92-180, § 2, 2-19-92; Ord. No. 93-460, § 1, 4-21-93; Ord. No. 07-208, § 3, 2-14-07; Ord. No. 08-414, § 2, 5-7-08)

Sec. 21-162. Registration required; penalty.

(a) It shall be unlawful for any person to operate or cause to be operated any facility unless there is a registration for the facility.

(b) It is an affirmative defense to prosecution under this section with respect to gasoline dispensing sites that the premises has dispensed less than 10,000 gallons per month in each calendar month beginning with January 1, 1991. Any site that exceeded 10,000 gallons in January of 1991 or that has exceeded 10,000 gallons in any ensuing month is not subject to this affirmative defense.

(c) Violation of this section shall be punishable upon first conviction by a fine of not less than $250.00 nor more than $1,000.00. If the violator has been previously convicted under this section, a violation of this section shall be punishable by a fine of not less than $1,000.00 nor more than $2,000.00.

(d) Each day that any violation under this section continues shall constitute a separate offense.
(Ord. No. 92-180, § 2, 2-19-92; Ord. No. 93-460, § 2, 4-21-93; Ord. No. 07-208, § 3, 2-14-07)

Editor's note—For any facility that does not have a valid registration issued under Division 2 of Article VI of Chapter 21 of the Code of Ordinances, Houston, Texas, and is required to be registered by Division 2 of Article VI of Chapter 2 of the Code of Ordinances, Houston, Texas, as amended by Ord. No. 2007-208, the effective date of Section 21-162 shall be July 1, 2007.

Sec. 21-163. Issuance; expiration.

Registrations shall be issued by the health officer. The director shall promulgate application forms on which applications shall be made. Upon the submission of a properly completed application form and the tender of the applicable fee, the health officer shall issue the registration. A separate application shall be required for each facility. A registration shall be valid for one year commencing on the date of its issuance and shall only apply to the facility identified on the registration. A registration is personal and may not be assigned, conveyed or transferred in any manner.
(Ord. No. 92-180, § 2, 2-19-92; Ord. No. 07-208, § 3, 2-14-07)

Sec. 21-164. Incorporation of state rules; compliance; penalty.*

(a) The following state air pollution control laws as they currently are and as they may be changed from time to time, are hereby incorpo-

***Editor's note—**Ord. No. 08-414, § 3, adopted May 7, 2008 amended the title of § 21-164 to read as herein set out. Formerly said section was entitled Incorporation of state rules; compliance.

rated as if written word for word in this section, including appendices and other matters promulgated as part of the state rules.

(1) 30 Tex. Admin. Code § 101 (2006)(General Air Quality Rules).

(2) 30 Tex. Admin. Code § 106 (2006)(Permits by Rule).

(3) 30 Tex. Admin. Code § 111 (2006)(Control of Air Pollution from Visible Emissions and Particulate Matter).

(4) 30 Tex. Admin. Code § 112 (2006)(Control of Air Pollution from Sulfur Compounds).

(5) 30 Tex. Admin. Code § 113 (2006)(Standards of Performance for Hazardous Air Pollutants and for Designated Facilities and Pollutants).

(6) 30 Tex. Admin. Code § 114 (2006)(Control of Air Pollution from Motor Vehicles).

(7) 30 Tex. Admin. Code § 115 (2006) (Control of Air Pollution from Volatile Organic Compounds).

(8) 30 Tex. Admin. Code § 116 (2006)(Control of Air Pollution by Permits for New Construction or Modification).

(9) 30 Tex. Admin. Code § 117 (2006)(Control of Air Pollution from Nitrogen Compounds).

(10) 30 Tex. Admin. Code § 122 (2006)(Federal Operating Permits Program).

(b) The director shall ensure that the health officers carry out a regulatory compliance program to determine whether registered facilities are in compliance with all applicable state and federal air pollution control laws and regulations. The regulatory compliance program shall include, but need not be limited to, on site inspections, complaint investigations and reviews of applicable compliance documentation.

(c) It shall be unlawful for any person to operate or cause to be operated any facility that does not comply with the requirements in subsection (a) of this section.

(d) It is an affirmative defense to prosecution under this section that the prosecuted condition or activity has been:

(1) Approved or authorized by the Act, state rule or state order; and

(2) That the facility is in compliance with any such approval or authorization under the Act, state rule or state order.

(e) Violation of this section shall be punishable upon first conviction by a fine of not less than $250.00 nor more than $1,000.00. If the violator has been previously convicted under this section, a violation of this section shall be punishable by a fine of not less than $1,000.00 nor more than $2,000.00.

(f) Each day that any violation under this section continues shall constitute a separate offense.
(Ord. No. 92-180, § 2, 2-19-92; Ord. No. 07-208, § 3, 2-14-07; Ord. No. 08-414, §§ 3—5, 5-7-08)

Sec. 21-165. Cumulative.

The purpose of this division is to provide a viable means of locating and monitoring by routine compliance inspections sources of air contamination. A registration under this division shall neither excuse the securing of any license, permit, registration or other compliance document required under state or federal pollution laws or regulations, nor excuse full compliance with any applicable state or federal law or regulation. This division is cumulative of all other applicable laws and regulations.
(Ord. No. 92-180, § 2, 2-19-92; Ord. No. 07-208, § 3, 2-14-07)

Sec. 21-166. Registration fees.

(a) There are hereby assessed the fees stated for this provision in the city fee schedule for the issuance of the following registrations:

(1) Automotive body repair shop;

(2) Gasoline dispensing site:

1—6 gasoline pump nozzles, per site

7 or more gasoline pump nozzles, per site

Where pumps are so configured that two or more nozzles dispensing different types or grades of fuel are attached to one meter, then the nozzles attached to each such meter shall be regarded as one nozzle for purposes of the above calculation.

(3) Dry cleaning plant (based upon the normal number of employees):

Fewer than 6 employees

6 to 10 employees

11 or more employees

(4) Used vehicle sales lot (based on the number of vehicles normally offered for sale):

1—5 vehicles

6—100 vehicles

101 or more vehicles

(5) Other facilities based upon annual airborne contaminant emissions:

1 ton or more but less than 5 tons

5 tons or more but less than 10 tons

10 tons or more

In any instance in which a facility is unable to produce the records needed to establish its emissions with a reasonable degree of certainty, then the health officer shall estimate the amount on the basis of the best available information.

(6) Dual chambered incinerators

Pathological waste incinerators

(7) Sewage treatment plant, based upon design capacity in gallons per day:

Less than 500,000

500,001 to 9,999,999

10,000,000 to 39,999,999

40,000,000 or more

(b) Should more than one facility exist on any premises, then the total of all applicable fees shall be payable up to a maximum of the equivalent of a fee for the four facilities with the highest fees.

(c) The foregoing fees shall apply to all privately and publicly owned facilities. Facilities owned and operated by a county, and city facilities that are operated with general fund revenues, shall be exempt from payment of the fees but shall be required to be registered.

(Ord. No. 92-180, § 2, 2-19-92; Ord. No. 93-460, §§ 3—5, 4-21-93; Ord. No. 02-528, § 13d., 6-19-02; Ord. No. 07-208, § 3, 2-14-07; Ord. No. 08-414, § 6, 5-7-08; Ord. No. 2011-1168, § 13, 12-14-2011)

DIVISION 3. CONCRETE CRUSHING SITES*

Sec. 21-167. Definitions.

As used in this division, the following words and terms shall have the meanings ascribed in this section, unless the context of their usage clearly indicates another meaning:

Child care facility has the meaning ascribed in section 28-222 of this Code.

Crushing means any fixed, portable, permanent or temporary operation where pressure is applied to concrete, whether new or used, to reduce the size of the original material so that it can be used or reused.

Designated area means an area determined by creating a closed curve with a radius of 1500 feet from the property line of each site where crushing operations are located. Each tract that is wholly or partially located within the area so created shall be part of the designated area.

Existing operation means a site that has a valid permit issued by the Texas Commission on Environmental Quality to perform crushing on or before May 9, 2007.

Expand or *expansion* means an increase in:

(1) The size of the tract on which a facility is located; or

(2) Operations, including but not limited to hours of operation and amount of materials that may result in an increase in air emissions.

*__Editor's note__—Section 5 of Ord. No. 07-545 provides for an effective date of 12:01 a.m. on October 1, 2007. It should also be noted that "Exhibit A" as referenced in Ord. No. 07-545, is not set out herein but is on file in the offices of the city.

Hospital has the meaning ascribed in section 28-222 of this Code.

Multi-family residential has the meaning ascribed in section 28-222 of this Code.

New operation means a site that does not have a valid permit issued by the Texas Commission of Environmental Quality to perform crushing on or before May 9, 2007.

Nursing home has the meaning ascribed in section 28-222 of this Code.

Permit means a current and valid permit issued pursuant to this division to operate a site.

Permittee means a person who holds a permit under this division to operate a site, and includes any employee, agent, or independent contractor of the permittee.

Place of worship means one or more buildings, whether situated in the city or not, in which persons regularly assemble for religious worship intended primarily for purposes connected with such worship.

Public park has the meaning ascribed in section 28-121 of this Code.

Residential has the meaning ascribed in section 28-222 of this Code.

Residential area means an area 50 percent or more of which consists of tracts that are wholly or partially subject to residential restrictions or are used for residential purposes. Tracts that are multi-family residential shall be treated as a residential tract.

School has the meaning ascribed in section 28-222 of this Code.

Site means the tract and fixtures, including structures, appurtenances and stockpiles of raw materials and finished products, where crushing is done.

Tract means a contiguous parcel of property under common ownership.

(Ord. No. 07-545, § 2, 5-9-07)

Sec. 21-168. Scope.

Pursuant to this division, all sites where crushing operations are performed are required to obtain a permit. Existing operations, expansions of existing operations and new operations are required to follow the permit application procedures in section 21-171 of this Code. Expansions of existing operations and new operations shall meet the location requirements in section 21-170 of this Code. However, the location requirements in section 21-170, notice requirements set forth in section 21-174 and the hearing and appeal procedures set forth in section 21-175, all sections of this Code, shall not apply to existing operations or to temporary crushing operations located at demolition sites if the concrete is being crushed primarily for use at the demolition site.

(Ord. No. 07-545, § 2, 5-9-07)

Sec. 21-169. Prohibited activities.

It shall be unlawful for any person to:

(1) Operate at a site within the city unless there is a permit for the site issued pursuant to this division;

(2) Expand crushing operations unless a permit for the expansion has been issued pursuant to this division;

(3) Operate at a site within the city in violation of any term of a permit issued pursuant to this division; and

(4) Fail to post signs as provided herein.

(Ord. No. 07-545, § 2, 5-9-07)

Sec. 21-170. Location requirements.

The director shall not issue a permit for a new operation or the expansion of any existing operation:

(1) On a lot, tract or parcel of land where the crushing operation or expansion of the site for crushing is prohibited, expressly or impliedly, by unexpired deed restrictions or covenants running with the land contained or incorporated by reference in a properly recorded map, plat, replat,

declaration, deed, judgment or other instrument filed in the county real property records, map records or deed records.

(2) In any designated area that is a residential area or contains a child care facility, hospital, nursing home, place of worship, public park, school or crushing site.

(Ord. No. 07-545, § 2, 5-9-07)

Sec. 21-171. Applications.

(a) An applicant may obtain a permit for an existing operation or new or expanded operation by submitting a permit application to the department in the time and manner prescribed by the director, along with the fee required by section 21-176 of this Code.

(b) An application shall not be considered complete unless accompanied by any drawings, descriptive data, emissions information, permit fees, ownership information, contact information, and other pertinent data that may be required by the director.

(c) The director shall notify the applicant when the application is complete.

(d) If any of the required documentation, data, reports or drawings contain any false, erroneous or misleading information known to the applicant, then any permit issued pursuant to that false, erroneous or misleading information shall be void with the same force and effect as if it had never been issued.

(e) On or before the 30th calendar day following the filing of the complete application, the director shall issue to the applicant a written notice of disapproval or preliminary approval of the permit. Any notice of disapproval of a permit application must include a written report explaining the reasons for disapproval. Any preliminary approval shall be subject to the hearing provisions of section 21-175 of this Code, and, if no request for hearing is timely filed thereunder, shall become a final approval on the business day next following the close of the protest period. The issuance of a written notice to the applicant shall be complete upon the deposit of the properly addressed notice in the United States mail, first class postage paid.

(Ord. No. 07-545, § 2, 5-9-07)

Sec. 21-172. Permits.

Each permit shall specify and display on its face the following terms, which shall be the conditions under which the permittee is authorized to operate or expand the site:

(1) Name of the permittee, address and contact information, including telephone number and e-mail;

(2) Name of the owner of the site, if different from the permittee;

(3) Operations authorized by the permit;

(4) Location of the site;

(5) Signage requirements, which shall include the information in section 21-174 of this Code, except that instead of the application number the permit number shall be listed; and

(6) A statement that the permittee must comply with all applicable requirements of this division, including rules promulgated by the director hereunder.

(Ord. No. 07-545, § 2, 5-9-07)

Sec. 21-173. Additional requirements.

The director may develop rules to ensure that particulate matter originating on a site or as a result of the operations on the site do not create a nuisance. These rules may include dust-suppression techniques, maintenance of entrances and exits and physical barriers and similar practices and may be incorporated into site permits. A copy of the regulations shall be maintained in the director's office for inspection, and copies may be purchased at the fee prescribed by law.

(Ord. No. 07-545, § 2, 5-9-07)

Sec. 21-174. Notice of pending application.

(a) The applicant must post and use reasonable efforts to maintain one or more signs at the location of the proposed site or existing site for which expansion is proposed for a minimum of 30

calendar days beginning no later than the sixth calendar day following the date of the filing of a complete permit application with the department. Each sign shall be posted no more than 15 feet from the public right-of-way that is used as access to the site. A sign shall face each public right-of-way bordering the site and the lettering on each sign shall be legible from the public right of way. Each sign shall be a minimum of four by eight feet in size, with lettering that complies with specifications promulgated by the director. Each sign shall contain at a minimum the following items of information:

(1) That this is the proposed location of a site or site expansion, with the type of operations identified;

(2) The hours of operation and the type of material to be processed or stored;

(3) The name, address and contact information for the applicant, including telephone number of the person who can provide information about the application;

(4) The permit application number assigned to this project by the department; and

(5) A contact telephone number of the department where information can be obtained about the application.

The applicant shall retain the sign or signs at the site as provided herein.

(b) If, in the opinion of the director, compliance with the requirements of this section is impracticable or insufficient to provide adequate notification of the pending permit application, the director may require additional signs to be erected at locations as he deems advisable.

(c) Written notice of the filing of each application for a permit shall be given to each property owner within the designated area surrounding the proposed site. Notice shall also be given to any civic organization, property owners association, or any other interested group with identifiable boundaries, provided that the organization, association or group is registered with the planning and development department in a manner prescribed by the director of that department. Notice to all owners of record and civic organizations registered with the planning and development department shall be deemed given if properly addressed and deposited in the United States mail, with first class postage paid. The required written notice shall be in a form prescribed by the director and shall be mailed no later than the tenth calendar day following the filing of the required completed application. The written notice shall include a map showing the location of the proposed site or site proposed to be expanded, the surrounding designated area and all other sites located within one square mile of the proposed site or expansion.

(d) Written notice shall be published by the applicant at least once in a daily newspaper of general circulation in the city not later than the seventh calendar day following the date of filing of a complete application. The notice shall be published in the section of the newspaper in which other legal notices are commonly published, and shall be headed with the following words (or their reasonable equivalent), in conspicuous type:

"NOTICE OF PROPOSED [TYPE OF SITE] [OPERATION OR EXPANSION]." The notice shall state the type of operations being proposed or expanded, describe the intended hours of operation of the site and the material that will be processed or stored at the site, and advise that additional information may be obtained by writing or calling the office of the chief of the bureau of air quality of the Houston Health Department.

(e) The written notice (required in subsection (d) above shall include at a minimum the following:

(1) The name, address, and telephone number of the operator of the proposed or expanded site;

(2) The name, address, and telephone number of the owner if different from the operator of the proposed or expanded site;

(3) The location of the proposed site or site to be expanded including the street address (or nearest street intersection) and the name of the subdivision or survey if there is no recorded subdivision;

(4) The proposed hours of operation of the site;

(5) The types of material to be processed or stored at the site; and

(6) That additional information may be obtained by writing or calling the office of the chief of the bureau of air quality.

(f) The applicant shall be responsible for paying all costs associated with the giving of notice under this division.
(Ord. No. 07-545, § 2, 5-9-07; Ord. No. 2015-820, § 34, 8-26-2015)

Sec. 21-175. Hearing; appeal.

(a) If one or more persons who own property or reside within the designated area request a hearing regarding an application for a permit by submitting to the director a written request therefor that is received in the director's office on or before the fifteenth day following the latter of the date of publication or mailing of notices as provided in section 21-174(c) of this Code, the director shall refer the matter to a hearing officer appointed by the director for a hearing with respect to whether the application meets the criteria specified in section 21-170 of this Code. The hearing officer shall promulgate rules for hearings. If a hearing is timely requested, the hearing officer shall conduct a hearing and shall make the determination whether the permit should be granted in accordance with this section. Otherwise, the director shall make that determination.

(b) In making a determination regarding the permit, the hearing officer or director shall consider whether the site complies with the requirements of section 21-170 of this Code and may not reasonably be expected to cause a nuisance.

(c) If the application is finally approved, the director shall issue the permit to the applicant.

(d) If an application is denied, the applicant shall be afforded a written notice of the reason for denial. There shall be no appeal from the denial of an application by the hearing officer pursuant to subsection (a) of this section. However, an applicant whose application is denied by the director shall be entitled to appeal the matter to the hearing officer by filing a written notice of appeal in the director's office within 15 days following the date that notice of the denial is mailed to the applicant. If an appeal is timely filed, the director shall cause the matter to be referred to the hearing officer, who shall conduct a hearing in accordance with this section. The hearing officer's determination shall be final.
(Ord. No. 07-545, § 2, 5-9-07)

Sec. 21-176. Application fees.

Application fees to be paid under this division are set forth in the city fee schedule. Any site where there are facilities that are required to register under division 2 of article VI of this chapter is exempt from the payment of any permit application fee under this division.
(Ord. No. 07-545, § 2, 5-9-07; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 21-177. Provisions cumulative.

The provisions of this division are cumulative of all other requirements of this Code and other laws, including, without limitation, the Construction Code and the Fire Code, as well as all applicable state and federal laws and regulations. Compliance with this division does not excuse compliance with any other law, and permittees are additionally required to obtain any other permits, licenses, and authorizations required by law, including but not limited to permits, licenses, and authorizations that are required to be obtained from the city, the Texas Commission on Environmental Quality, the United States Environmental Protection Agency or any other appropriate governmental agency.
(Ord. No. 07-545, § 2, 5-9-07)

Sec. 21-178. Penalty; enforcement by city attorney; access to sites.

(a) Violation of this division is unlawful and hereby declared to be a nuisance. Any person who violates any provision of this division shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not less than $500.00 or more than $2,000.00 for each

violation. Each and every day that any violation continues shall constitute a separate offense and shall be punishable as such.

(b) In accordance with Section 217.042 of the Local Government Code, the city attorney is hereby authorized to file suit on behalf of the city in any court of competent jurisdiction to enjoin or abate a violation of this division. All authority granted to the city attorney under this division shall be exercised uniformly on behalf of and against all citizens and property in the city. This authorization shall be cumulative and in addition to any other civil or criminal penalty provisions. The city, acting through the city attorney or any other attorney representing the city, may file an action in a court of competent jurisdiction to recover damages from the owner or the agent of the owner of a facility in an amount adequate for the city to undertake any activity necessary to bring about compliance with this division.

(c) The city, acting through the city attorney or any other attorney representing the city, is hereby authorized to enter into agreements in lieu of litigation to achieve compliance with the terms, conditions and restrictions of any permit authorized under this division or the provisions of this division.

(d) When it is necessary to make an inspection to enforce the provisions of this division or to inspect or investigate conditions related to air quality, the health officer may enter a site at reasonable times to inspect or to perform the duties imposed by this division or to inspect or review records, reports, data, plans, or other documents relating to compliance with this division. If the site is occupied, credentials must be presented to the occupant and entry requested. If the site is unoccupied, the health official shall first make a reasonable effort to locate the owner or other person having charge or control of the site and request entry. If refused, the health official shall have recourse to the remedies provided by law to secure entry.
(Ord. No. 07-545, § 2, 5-9-07)

Secs. 21-179, 21-180. Reserved.

ARTICLE VII. RESERVED*

Secs. 21-181—21-220. Reserved.

ARTICLE VIII. VITAL STATISTICS

Sec. 21-221. Officer of registrar created; appointment of registrar.

The office of the registrar of births and deaths and stillbirths is hereby created. Such registrar shall be appointed by the mayor on the recommendation of the director.
(Code 1968, § 48-1)

Sec. 21-222. General duties of registrar.

(a) The registrar of births and deaths and stillbirths shall complete, correct and arrange in chronological order and index the birth and death and stillbirth records of the city and shall forward, prior to the tenth of the following month, to the state bureau of vital statistics, all original certificates of births and deaths and stillbirths filed during the previous month, and shall keep a copy of such records in his office.

(b) The registrar of births and deaths and stillbirths shall tabulate the data shown on the birth and death and stillbirth certificates and shall make such monthly report to the city council as may be required by that body.
(Code 1968, § 48-2)

Sec. 21-223. Adoption of state law, rules and regulations.

All of the laws of the state with reference to vital statistics and particularly the Texas Vital Statistic Law [Vernon's Ann. Civ. St. Art. 4477, rules 34a through 55a] and all rules and regulations promulgated by the Texas Department of

*__Editor's note—__Ord. No. 2015-1032, § 4, adopted October 21, 2015, effective January 1, 2016, repealed Ch. 21, Art. VII, §§ 21-181—21-181, 21-194—21-209 in its entirety. Former Article VII pertained to tire storage and tire carriers and derived from Code 1968, §§ 21-150—21-175; Ord. No. 81-1013, § 1, 5-20-81; Ord. No. 82-1109, § 15, 7-13-82; Ord. No. 85-1762, § 2, 10-8-85; Ord. No. 92-1449, § 37, 11-4-92; Ord. No. 2011-1168, § 13, 12-14-2011. The users' attention is directed to Ch. 39, Art. VIII, § 39-151 et seq. for similar provisions.

State Health Services pursuant to such laws be and the same are hereby adopted by reference and made a part of this Code.
(Code 1968, § 48-3; Ord. No. 2015-820, § 36, 8-26-2015)

Sec. 21-224. Registration of births, deaths, etc., required.

Every birth and every death and every stillbirth occurring within the city shall be registered, and the registration must be in duplicate, and the necessary permits issued as provided for under the law adopted by section 21-223 of this Code.
(Code 1968, § 48-4)

Sec. 21-225. Certified copies of records, searches, amendments.

(a) Upon receipt of a completed application form and the applicable fee prescribed by law, the registrar of births, deaths and stillbirths shall provide certified copies of birth certificates (conventional or wallet size), death certificates and fetal death certificates. The fee for the foregoing certificates shall be an amount equal to that imposed by the Texas Department of State Health Services for the provision of the same certificate or the amount authorized by subsection (g) of section 191.0045 of the Texas Health and Safety Code, whichever is greater. The cost for the certificates requested pursuant to this subsection shall include applicable convenience fees, envelope fees, and delivery fees, each as set forth in the city fee schedule.

The certificates requested pursuant to this subsection shall be processed and issued in order of the receipt of completed applications in the office of the registrar unless the applicant requests expedited processing and pays the additional applicable fee stated for this provision in the city fee schedule to defray the added costs associated with the special handling of the application. The aforesaid expedited processing fee shall be payable for each separate request for document copies submitted on an expedited basis, regardless of the number of different documents or the number of copies specified in the request.

(b) Any qualified person who desires to receive a copy of a birth or death certificate and who is unable to furnish a complete application form containing all information requested by the registrar of births, deaths and stillbirths may request a search of the files. Such searches shall be conducted on a first-come-first-served basis to the extent that staff resources are available, and the issuance of records under subsection (a) above shall take precedence over searches under this subsection. Additionally, searches under this subsection that are requested for purposes other than genealogical research shall take precedence over those requested for genealogical research purposes. Prior to commencing any such search of the files, the registrar of births, deaths and stillbirths shall collect a fee from the applicant in an amount equal to the search fee imposed by the Texas Department of State Health Services. If the record is found, the fee shall be credited to the copy charge. If the record is not found, the fee shall be retained as a search fee and shall not be refunded.

(c) Upon receipt of a completed application from the registrar of births, deaths and stillbirths shall provide certificates of birth facts relating to persons born in Texas to the extent that data relating to the birth is available upon the state's data base as provided to the city. The fee for each birth facts certificate issued shall be equal to that imposed by the Texas Department of State Health Services for the issuance of a birth certificate. Certificates of birth facts may be obtained on an expedited basis, subject to payment of the same additional applicable fee established in subsection (a), above.

(d) Upon receipt of a completed application form, the registrar of births, deaths and stillbirths shall provide any information contained on the death certificate as to the exact place of burial of an individual as recorded under applicable state laws and regulations. The charge for such a search of the files will be equal to that imposed by the Texas Department of State Health Services for the same service.

(e) The duties of the registrar under this section shall be performed as authorized and required by applicable state laws and regulations.

(f) The fee levied under subsection (e) of section 191.0045 of the Texas Health & Safety Code and stated for this provision in the city fee schedule shall be collected for issuance of certified copy of birth certificate, issuance of wallet-sized certification of birth, or conducting a search for a certificate of birth, whenever applicable to documents and services provided under this section. Except as provided by subsection (g) below and by subsection (f) of section 191.022 of the Texas Health and Safety Code, all fees collected under this section shall be deposited in the city treasury to the credit of the general fund of the city.

(g) As authorized by subsection (h) of Section 191.0045 of the Texas Health and Safety Code, there is hereby assessed the fee stated for this provision in the city fee schedule for the preservation of vital statistics records. This fee shall be in addition to all other fees authorized by state law or city ordinance and shall be applied and payable on the issuance of each vital statistics record. The fee assessed under this subsection shall be deposited into a fund within the city treasury to be known as the "preservation of vital statistics records fund," which is hereby created. That fund shall be expended for purposes of the preservation of vital statistics records maintained by the registrar as authorized by section 191.0045(h).

(Code 1968, § 48-5; Ord. No. 78-133, § 1, 1-3-78; Ord. No. 81-2575, § 1, 12-29-81; Ord. No. 86-405, § 1, 3-25-86; Ord. No. 87-1682, § 1, 9-20-87; Ord. No. 89-919, § 1, 6-21-89; Ord. No. 90-802, § 1, 6-27-90; Ord. No. 95-1199, § 1, 11-15-95; Ord. No. 03-1276, § 1, 12-17-03; Ord. No. 2011-1168, § 13, 12-14-2011; Memorandum of 9-12-2012; Ord. No. 2015-820, § 36, 8-26-2015; Ord. No. 2020-196, §§ 3, 4, 3-11-2020)

Secs. 21-226—21-235. Reserved.

ARTICLE IX. SMOKING*

Sec. 21-236. Definitions.

The following words, terms and phrases, whenever used in this article, shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates a different meaning:

Bar means an establishment that is devoted to the serving of alcoholic beverages for consumption by guests on the premises and derives at least 60 percent of gross revenues from the sale of alcoholic beverages for on premise consumption, including, but not limited to, any tavern, nightclub, cocktail lounge, or cabaret.

Business means a sole proprietorship, partnership, joint venture, corporation, or other business entity, either for-profit or not-for-profit, including any retail establishment where goods or services are sold; any professional corporation or other entity where legal, medical, dental, engineering, architectural, or other professional services are delivered.

Electronic smoking device means any device with a heating element, battery, or electronic circuit that delivers nicotine or any other substance intended for human consumption by inhalation. The term includes every variation and type of such device whether manufactured, distributed, marketed, or sold as an electronic cigarette, an electronic cigar, an electronic cigarillo, an electronic pipe, an electronic hookah, vaping device, or any other product name or descriptor, and any aerosol, liquid, or vapor used in such a device.

Employee means a person who is employed by an employer in consideration for direct or

*__Editor's note—__Ord. No. 2006-1054, § 2, adopted Oct. 18, 2006, amended Ch. 21, Art. IX, in its entirety, to read as herein set out. Section 3 of said Ordinance states that all employers shall communicate the prohibition of smoking in places of employment enacted by this Ordinance to all existing employees within 60 days after the effective date of this Ordinance. Section 5 provides for an effective date of 12:01 a.m. on September 1, 2007.

Cross references—Air pollution, § 21-146 et seq.; no smoking signs at oil and gas wells, § 31-66; smoking by suburban bus drivers, § 46-147.

indirect monetary wages or profit, and a person who volunteers his services for a non-profit entity or provides such services on a contract basis.

Employer means a person, business, partnership, association, corporation, including a municipal corporation, trust, or non-profit entity that employs the services of one or more individuals.

Enclosed, when used in reference to an area or a building or portion thereof, means closed in on all sides from floor to ceiling by solid walls, with or without windows and exclusive of doorways.

Health care facility means an office or institution providing care or treatment of diseases, whether physical, mental, or emotional, or other medical, physiological, or psychological conditions, including, but not limited to, any hospital, rehabilitation hospital or other clinic, including any weight control clinic, nursing home, home for the aging or chronically ill, laboratory, or the office of any surgeon, chiropractor, physical therapist, physician, dentist, or specialist within these professions. This definition shall include all waiting rooms, hallways, private rooms, semiprivate rooms, and wards within a health care facility.

Meeting facility means a building designed, operated and used primarily for private functions.

Place of employment means an enclosed area under the control of a public or private employer where employees work or to which employees have access during the course of employment including, but not limited to, work areas, private offices, employee lounges, restrooms, conference rooms, meeting rooms, classrooms, employee cafeterias, hallways, and vehicles. A private residence is not a "place of employment" unless it is used as a child care, adult day care, or health care facility.

Private function means a gathering of individuals for the purpose of deliberation, education, instruction, entertainment, amusement, or dining, where specific invitation is a prerequisite to entry and where the event is not intended to be open to the public.

Public pedestrian plaza means a public street right-of-way that has been permanently closed to vehicular traffic but is open to pedestrian passage.

Public place means an enclosed area to which the public is invited or in which the public is permitted, including, but not limited to:

(1) Aquariums, galleries, libraries, and museums;

(2) Areas available to and customarily used by the general public in businesses;

(3) Bars;

(4) Bingo facilities;

(5) Child care and adult day care facilities;

(6) Convention facilities;

(7) Educational facilities, both public and private;

(8) Elevators;

(9) Gaming facilities;

(10) Governmental facilities, including buildings and vehicles;

(11) Health care facilities;

(12) Hotels and motels;

(13) Lobbies, hallways, and other common areas in apartment buildings, condominiums, retirement facilities, nursing homes, and other multiple-unit residential facilities;

(14) Polling places;

(15) Pool and billiard halls;

(16) Public transportation facilities, including buses and taxicabs, and ticket, boarding, and waiting areas of public transit depots;

(17) Restaurants;

(18) Restrooms, lobbies, reception areas, hallways, and other common-use areas;

(19) Retail establishments;

(20) Service lines;

(21) Shopping malls;

(22) Sports arenas; and

(23) Theaters and other facilities primarily used for exhibiting motion pictures, stage dramas, lectures, musical recitals, or other similar performances.

A private residence is not a "public place" unless used as a child care, adult day care, or health care facility.

Restaurant means food service establishment, including but not limited to, any coffee shop, cafeteria, sandwich stand, and private and public school cafeteria, that gives or offers for sale food to the public, guests, or employees, as well as any kitchen or catering facility in which food is prepared on the premises for serving elsewhere. The term "restaurant" shall include a bar area within the restaurant.

Retail tobacco store means any retail establishment utilized primarily for the sale of tobacco products, electronic smoking devices, and related accessories in which the sale of other products, including food and beverages, does not exceed 40 percent of gross revenues.

Service line means an indoor line in which one or more persons are waiting for or receiving service of any kind, whether or not the service involves the exchange of money.

Shopping mall means an enclosed public walkway or hall area that serves to connect customer entrances to two or more retail or other businesses and is used for customer pedestrian traffic.

Smoking means inhaling, exhaling, burning, or carrying any lighted cigar, cigarette, pipe, hookah, electronic smoking device, or any other lighted tobacco product, plant material, or other combustible substance.

Sports arena means any sports pavilion, stadium, gymnasium, health spa, boxing arena, swimming pool, roller and ice rink, bowling alley, pool hall or other similar place where members of the general public assemble to engage in physical exercise, participate in athletic competition, or witness sports or other events.

Tobacco bar means a bar in which the on site sales or rentals of tobacco products and smoking accessories for consumption or use on the premises exceeds 20 percent of gross revenues and into which entry is restricted to individuals 18 years of age and above.

(Ord. No. 02-800, § 1, 8-28-02; Ord. No. 05-245, § 1, 3-9-05; Ord. No. 06-1054, § 2, 10-18-06; Ord. No. 2014-894, §§ 2, 3, 10-1-2014; Ord. No. 2022-233, §§ 2—4, 3-30-2022)

Sec. 21-237. Prohibition of smoking in enclosed public places.

Smoking shall be prohibited in all enclosed public places within the city, except as provided in section 21-242 of this Code.

(Ord. No. 02-800, § 1, 8-28-02; Ord. No. 05-245, § 1, 3-9-05; Ord. No. 06-1054, § 2, 10-18-06)

Sec. 21-237.1 Prohibition of smoking in public pedestrian plazas.

Smoking shall be prohibited in all public pedestrian plazas.

(Ord. No. 2014-894, § 4, 10-1-2014)

Sec. 21-238. Prohibition of smoking in places of employment.

(a) Smoking shall be prohibited in all enclosed areas within places of employment, except as provided in section 21-242 of this Code.

(b) An employer shall communicate this prohibition to all prospective employees upon their application for employment.

(Ord. No. 02-800, § 1, 8-28-02; Ord. No. 06-1054, § 2, 10-18-06)

Sec. 21-239. Prohibition of smoking in seating areas at outdoor events.

Smoking shall be prohibited in the seating areas and covered concourses of all outdoor sports arenas, stadiums, and amphitheaters, as well as in bleachers and grandstands for use by spectators at sporting and other public events.
(Ord. No. 02-800, § 1, 8-28-02; Ord. No. 06-1054, § 2, 10-18-06)

Sec. 21-240. Prohibition of smoking in covered public transportation facilities.

Smoking shall be prohibited in any covered public transportation facilities, including ticket, boarding, and waiting areas of public transit depots.
(Ord. No. 02-800, § 1, 8-28-02; Ord. No. 06-1054, § 2, 10-18-06)

Sec. 21-241. Reasonable distance.

Smoking is prohibited within 25 feet outside entrances, exits, or wheelchair ramps serving any entrance or exit, operable windows, and ventilation systems of enclosed areas where smoking is prohibited, so as to ensure that tobacco smoke does not enter those areas. This section shall not apply to restaurant and bar outdoor seating areas.
(Ord. No. 02-800, § 1, 8-28-02; Ord. No. 06-1054, § 2, 10-18-06)

Sec. 21-242. Where smoking not regulated.

Notwithstanding any other provision of this article to the contrary, the following areas shall be exempt from the provisions of sections 21-237 and 21-238 of this Code:

(1) Private residences, except when used as a childcare, adult day care, or health care facility.

(2) Hotel and motel rooms that are rented to guests and are designated as smoking rooms; provided, however, that not more than 35 percent of rooms rented to guests in a hotel or motel may be so designated. All smoking rooms on the same floor must be contiguous, and smoke from these rooms must not infiltrate into areas where smoking is prohibited under the provisions of this article. The status of rooms as smoking or nonsmoking may not be changed, except to add additional nonsmoking rooms.

(3) Private and semiprivate rooms in nursing homes and long-term care facilities that are occupied by one or more persons, all of whom are smokers and have requested in writing to be placed in a room where smoking is permitted, provided that smoke from these places does not infiltrate into areas where smoking is prohibited under the provisions of this article.

(4) Retail tobacco stores, provided that no on-premise consumption of alcoholic beverages is permitted and smoke from these establishments does not infiltrate into areas where smoking is prohibited under the provisions of this article.

(5) Tobacco bars in operation on or before September 1, 2006; provided that the establishment operates an air ventilation and purification system using best available technology, offers comprehensive health insurance to its employees, including a substantial employer contribution, and obtains a permit from the department. The director is authorized to issue a permit for such establishments that are consistent with rules and regulations developed by the director regarding air ventilation and purification systems and comprehensive health insurance for the purpose of mitigating the effects of secondhand smoke on employees. The director is authorized to require a permit fee, not to exceed the maximum fee stated for this provision in the city fee schedule, that reflects the actual cost of processing and issuing said permit.

(6) Designated enclosed meeting areas in convention centers, hotels, motels, and other meeting facilities, only during times the meeting areas are in actual use for private functions; provided that the owners of such facilities must designate in writing to the department the meeting areas in which smoking will be permitted. The designated meeting areas must be separately enclosed from the rest of the facility, and smoke from these areas must not infiltrate into areas where smoking is prohibited under the provisions of this article.

(7) Reserved.

(8) Stage areas of enclosed theaters, if smoking is an integral part of a theatrical performance.

(Ord. No. 02-800, § 1, 8-28-02; Ord. No. 06-1054, § 2, 10-18-06; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 21-243. Declaration of establishment as nonsmoking.

Notwithstanding any other provision of this article, an owner, operator, manager, or other

person in control of an establishment, facility, or outdoor area may declare that entire establishment, facility, or outdoor area as a nonsmoking place. Smoking shall be prohibited in any place in which a sign conforming to the requirements of subsection (a) of section 21-244 of this Code is posted.
(Ord. No. 02-800, § 1, 8-28-02; Ord. No. 06-1054, § 2, 10-18-06)

Sec. 21-244. Posting of signs.

(a) The owner, operator, manager, or other person in control of a public place, public pedestrian plaza, or place of employment shall clearly and conspicuously post "No Smoking" signs or the international "No Smoking" symbol (consisting of a pictorial representation of a burning cigarette enclosed in a red circle with a red bar across it) in every place where smoking is prohibited by this article.

(b) The owner, operator, manager, or other person in control of a public place or place of employment place shall conspicuously post at every entrance thereto a sign clearly stating that smoking is prohibited therein.

(c) The owner, operator, manager, or other person in control shall remove all ashtrays from any area where smoking is prohibited by this article.
(Ord. No. 02-800, § 1, 8-28-02; Ord. No. 06-1054, § 2, 10-18-06; Ord. No. 2014-894, § 5, 10-1-2014)

Sec. 21-245. Enforcement.

(a) The department, in addition to any authority having jurisdiction to enforce city ordinances, shall have authority to enforce the provisions of this article.

(b) Any citizen who desires to register a complaint under this article may initiate enforcement with the department.

(c) The health officer and the fire marshal shall, while an establishment is undergoing otherwise mandated inspections, inspect for compliance with this article.

(d) The health officer, after proper identification, shall be permitted to enter any public place and place of employment at any reasonable time, for the purpose of making inspections and examining applicable records of the establishment to determine compliance with this article.
(Ord. No. 02-800, § 1, 8-28-02; Ord. No. 06-1054, § 2, 10-18-06)

Sec. 21-246. Rules and regulations.

The director is authorized to promulgate rules and regulations for the enforcement of this article.
(Ord. No. 02-800, § 1, 8-28-02; Ord. No. 06-1054, § 2, 10-18-06)

Sec. 21-247. Violations and penalties.

(a) A person commits an offense if he is smoking in an area where smoking is prohibited by the provisions of this article.

(b) It shall be the duty of every person in control of an area where smoking is prohibited by the provisions of this article to request any person known to be smoking in such area to extinguish the burning tobacco product. Any knowing or intentional failure to maintain compliance with such duty shall constitute an offense.

(c) Whenever in this article an act is prohibited or is made or declared to be unlawful or an offense or misdemeanor, or whenever in this article the doing of any thing or act is required or the failure to do any thing or act is prohibited, the violation of the provision shall be and constitute a misdemeanor punishable, upon conviction, by a fine not to exceed $2,000.00; provided that the penalty for violation of section 21-237.1 of this Code shall be a fine not to exceed $500.00. Each violation shall constitute and be punishable as a separate offense. Prosecution or conviction under this provision is cumulative of and shall never be a bar to any other civil or administrative remedy provided or allowed in this article or by law.
(Ord. No. 05-245, § 3, 3-9-05; Ord. No. 06-1054, § 2, 10-18-06; Ord. No. 2014-894, § 6, 10-1-2014)

Sec. 21-248. Other applicable laws.

This article shall not be interpreted or construed to permit smoking where it is otherwise restricted by other applicable laws.
(Ord. No. 06-1054, § 2, 10-18-06)

Secs. 21-249—21-300. Reserved

ARTICLE X. REDUCTION OF EMISSIONS FROM IDLING MOTOR VEHICLES

Sec. 21-301. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings assigned to them in this section, except where the content clearly indicates a different meaning:

Commercial or *public passenger transportation* means a mode of transportation provided by a bus or motor coach designed to accommodate ten or more passengers (including the operator) for compensation and that is powered by an engine, but specifically excluding railroad and light rail.

Engine means a mechanical device that converts heat energy produced from the internal combustion of gasoline or diesel fuel and an oxidizer into mechanical power or motion.

Idle means the operation of an engine in the operating mode where the engine is not engaged in gear, where the engine operates at a speed at the revolutions per minute specified by the engine or vehicle manufacturer for when the accelerator is fully released, and there is no load on the engine.

Motor vehicle means any self-propelled device powered by an engine, designed to operate with four or more wheels in contact with the ground, and with gross vehicle weight rating of more than 14,000 pounds, in or by which a person or property may be transported, and is required to be registered under the Texas Transportation Code, but specifically excluding motor vehicles being used by the United States Military, National Guard, or Reserve Forces, as an emergency or law enforcement motor vehicle, motor vehicles being used by the Metropolitan Transit Authority of Harris County for public health and safety purposes, or vehicles being actively loaded or unloaded.

Passenger transit operations means a regional mode of public transportation that is funded through a portion of the taxes of the region being served.

Primary propulsion engine means an engine attached to a motor vehicle that provides the power to propel the motor vehicle into motion and maintain motion.
(Ord. No. 2015-1086, § 2, 11-4-2015)

Sec. 21-302. Idling prohibited.

It shall be unlawful for an owner or operator of a motor vehicle operated within the city limits to cause or allow the primary propulsion engine of a motor vehicle to idle for more than five consecutive minutes when the motor vehicle is not in motion.
(Ord. No. 2015-1086, § 2, 11-4-2015)

Sec. 21-303. Affirmative defenses.

The restrictions in section 21-302 of this Code do not apply to:

(1) A motor vehicle that is equipped with a 2008 or subsequent model year heavy-duty diesel engine or liquefied or compressed natural gas engine that has been certified by the United States Environmental Protection Agency or another state environmental agency to emit no more than 30 grams of nitrogen oxides emissions per hour when idling;

(2) A motor vehicle forced to remain motionless because of traffic conditions over which the operator has no control;

(3) The primary propulsion engine of a motor vehicle that is being used to supply heat or air conditioning necessary for passenger comfort and safety in vehicles intended for commercial or public passenger transportation, or passenger transit operations, in which case idling up to a maximum of 30 minutes is allowed;

(4) The primary propulsion engine of a motor vehicle being used to provide air conditioning or heating necessary for employee health or safety in an armored vehicle while the employee remains inside the vehicle to guard the contents while the vehicle is being loaded or unloaded;

(5) The primary propulsion engine of a motor vehicle being used to provide air conditioning or heating necessary for employee health or safety while the employee is using the vehicle to perform an essential job function related to roadway or utility construction or maintenance;

(6) The primary propulsion engine of a motor vehicle providing a power source necessary for mechanical operation, other than propulsion, and/or passenger compartment heating, or air conditioning;

(7) The primary propulsion engine of a motor vehicle being operated for maintenance or diagnostic purposes;

(8) The primary propulsion engine of a motor vehicle being operated solely to defrost a windshield;

(9) The primary propulsion engine of a motor vehicle being used as airport ground support equipment;

(10) The owner of a motor vehicle rented or leased to a person that operates the vehicle and is not employed by the owner; or

(11) The motor vehicle when idling is necessary to power a heater or air conditioner while a driver is using the vehicle's sleeper berth for a government-mandated rest period and is not within two miles of a facility offering external heating and air conditioning connections at a time when those connections are available.

(Ord. No. 2015-1086, § 2, 11-4-2015)

Sec. 21-304. Penalties; actions authorized to enforce article.

(a) Any person who violates any provision of this article shall be guilty of an offense and upon conviction thereof, shall be punished by a fine of not less than $500.00 nor more than $1,000.00 for each violation. Each day in which any violation shall occur shall constitute a separate offense.

(b) The city, acting through the city attorney or the city attorney's designee, is hereby authorized to enter into agreements in lieu of litigation to achieve compliance this article.

(Ord. No. 2015-1086, § 2, 11-4-2015)

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Chapter 22

STREET VENDORS*

Art. I.	**Street Vendors, §§ 22-1—22-50**
	Div. 1. Generally, §§ 22-1—22-13
	Div. 2. Permit, §§ 22-14—22-50
Art. II.	**Reserved, §§ 22-51—22-90**
Art. III.	**Violations and Penalties, § 22-91**

ARTICLE I. STREET VENDORS

DIVISION 1. GENERALLY

Sec. 22-1. Definitions.

As used in this article, the following words and terms shall have the meanings ascribed to them in this section:

Director means the director of administration and regulatory affairs or the director's designee.

Goods or *merchandise* means any personal property of any nature whatsoever including but not limited to tickets for admission to athletic, sporting or entertainment events or shows.

Property owner means the person that appears as the title holder according to records on file with the Harris County real estate records.

Specific location means the physical address of a property or tract of land as listed in the Harris County Appraisal District Real Property account information.

Street vendor means any person, as well as any agent or employee of the person, who is not required to have a certificate of occupancy and who engages in the temporary or transient business in the city of selling, or offering for sale, any goods or merchandise, or exhibiting the same for sale, or exhibiting the same for the purpose of taking orders for the sale thereof, and who, for the purpose of carrying on such business or conducting such exhibits thereof, displays, exhibits, sells or offers for sale such goods or merchandise upon or from a truck, a cart, or other vehicle on non-residential property located in the city, or who hires, rents, leases or occupies any room or space in any building, structure, other enclosure, vacant lot or any other property whatever in the city that does not require a certificate of occupancy through or from which any goods or merchandise may be sold, offered for sale, exhibited for sale or exhibited for the purpose of taking orders for the sale thereof. The term "street vendor" shall not include or be construed to include anyone engaged in interstate commerce or anyone upon whom the provisions of this chapter would impose a direct and unlawful burden on interstate commerce.

Temporary refers to any business transacted or conducted in the city for which definite arrangements have not been made for the hire, rental or lease for at least one month of premises in or upon which such business is to be operated or conducted.

Transient refers to any business as may be operated or conducted by persons or by their agents or employees:

(1) Who:

a. Reside away from the city; or

b. Have fixed places of business in places other than the city; or

c. Have no fixed place of business; or

*__Editor's note__—Ord. No. 09-953, § 2(Exh. A), adopted October 7, 2009, effective January 1, 2010, amended Ch. 22 in its entirety to read as herein set out. Formerly, said chapter pertained to itinerant vendors and derived from Code 1968, §§ 22-1—22-22; Ord. No. 69-1770, § 1, 9-24-69; Ord. No. 76-1089, § 1, 6-30-76; Ord. No. 78-2261, § 1, 11-16-78; Ord. No. 07-225, § 2, 2-14-07.

Cross references—Antique dealers, common markets, scrap metal processors, secondhand resellers and related businesses, Ch. 7; common markets, § 7-181 et seq.; seafood dealers, § 20-120 et seq.; itinerant seafood dealers prohibited, § 20-121; license for peddlers of farm produce, § 20-174; shouting of peddlers, hawkers, and vendors, § 30-15.

d. Have their headquarters in places other than the city; and

(2) Who:

a. Move stocks of goods or merchandise, or samples thereof, into the city with the purpose or intention of removing them or the unsold portion thereof away from the city before the expiration of one month; and

b. Sell and offer for sale such goods or merchandise while upon the property of another; and

c. Conduct such business away from their fixed places of business, if any.

(Ord. No. 09-953, § 2(Exh. A), 10-7-09, eff. 1-1-2010)

Sec. 22-2. Defenses.

The following shall be affirmative defenses to prosecution under this article:

(1) That the defendant is an ordinary commercial traveler who sells or exhibits for sale goods or merchandise to parties.

(2) That the defendant is engaging in an activity for which a permit is required under chapter 20 of this Code, and the defendant has been issued such a permit.

(Ord. No. 09-953, § 2(Exh. A), 10-7-09, eff. 1-1-2010)

Sec. 22-3. Exceptions.

The provisions of this article shall not apply to wholesale trade shows, conventions or fairs where the vendors' activities are conducted primarily for amusement and entertainment.

(Ord. No. 09-953, § 2(Exh. A), 10-7-09, eff. 1-1-2010)

Sec. 22-4. Enforcement.

The provisions of this article may be enforced by any law enforcement officer.

(Ord. No. 09-953, § 2(Exh. A), 10-7-09, eff. 1-1-2010)

Secs. 22-5—22-13. Reserved.

DIVISION 2. PERMIT

Sec. 22-14. Required.

It shall be unlawful for any street vendor to sell, offer for sale, exhibit for sale, or exhibit for the purpose of taking orders for the sale thereof any goods or merchandise in the city without first obtaining a permit so to do in accordance with this article. It shall be unlawful for any street vendor to sell, offer for sale, exhibit for sale, or exhibit for the purpose of taking orders for the sale thereof any goods or merchandise in the city upon the property of another without the notarized statement of consent of the property owner required by section 22-15 of this Code or to fail to prominently display the city permit, the affidavit of the property owner and the street vendor's Texas sales tax permit while transacting business in the city.

(Ord. No. 09-953, § 2(Exh. A), 10-7-09, eff. 1-1-2010)

Sec. 22-15. Application.

Every street vendor shall apply to the director for the permit required by this article not less than ten days prior to the date of the contemplated sale or exhibit to be held in the city. Such application shall be in the form of an affidavit stating the full name and address of the street vendor; the location of the street vendor's principal office and place of business, the names and addresses of its officers if it is a corporation and the partnership name and the names and addresses of all partners if the street vendor is a partnership. The application must be accompanied by:

(1) A notarized statement of consent from the property owner of the specific location where the street vendor will sell the merchandise or the property owner's authorized agent. Said statement must be signed not more than two weeks prior to the application date with an effective expiration date to coincide with the expiration date of the permit. Said statement must include the current contact information of the property owner or agent, including but not limited to a telephone number, fax

number, or other similar means whereby the property owner or agent can be reached 24 hours a day.

(2) The applicant's Texas sales and use tax permit.

(3) A statement showing the kind and character of the goods or merchandise to be sold, offered for sale or exhibited.

(4) A certified copy of the charter, if the street vendor is a corporation incorporated under the laws of this state.

(5) A certified copy of its permit to do business in Texas, if the street vendor is a corporation incorporated under the laws of a state other than Texas.

(Ord. No. 09-953, § 2(Exh. A), 10-7-09, eff. 1-1-2010)

Sec. 22-16. Bond required of applicant.

Each applicant for a permit under this article shall file with the application a bond in the sum of not less than $10,000.00, issued by a corporate surety authorized to do business in this state, which bond shall be payable to the mayor and the mayor's successors in office for the use and benefit of any person entitled thereto, and conditioned that the principal and surety will pay all damages to persons caused by, or arising from or growing out of the wrongful, fraudulent or illegal conduct of the street vendor while conducting the sale or exhibit in the city. The bond shall remain in full force and effect for the entire duration of the permit and for two years thereafter. Each permit holder is required to clean up the property on which the permit holder operates a street vendor business at the end of each permit period; failure to do so will result in the city making a claim on the bond required by this section and may result in the refusal by the city to issue future permits to that permit holder.

(Ord. No. 09-953, § 2(Exh. A), 10-7-09, eff. 1-1-2010)

Sec. 22-17. Fee.

The fee for a permit required by this article is stated for this provision in the city fee schedule.

(Ord. No. 09-953, § 2(Exh. A), 10-7-09, eff. 1-1-2010; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 22-18. Issuance of permit.

(a) The director shall issue to any street vendor a permit authorizing the street vendor to sell, exhibit for sale, offer for sale or exhibit for the purpose of taking orders for the sale thereof, goods or merchandise in the city after such street vendor has fully complied with all provisions of this article and paid the prescribed fee.

(b) Any permit issued hereunder shall be issued to a specific person for a specific location and shall limit the hours of operation from 8:00 a.m. until 8:00 p.m.

(Ord. No. 09-953, § 2(Exh. A), 10-7-09, eff. 1-1-2010)

Sec. 22-19. Term and limitation on number of permits at specific location.

A permit issued pursuant to this article shall continue in effect so long as a sale or exhibit is continuously held in the city, but in no event shall the permit continue in effect for more than 7 consecutive days from the date of issuance. A permit shall not be issued for more than three sales or exhibits per calendar year for each specific location or for more than ten sales or exhibits for each street vendor per calendar year. No more than two permits per rolling 30 day period shall be issued to the same street vendor.

(Ord. No. 09-953, § 2(Exh. A), 10-7-09, eff. 1-1-2010)

Sec. 22-20. Not transferable; authority to conduct business extends to one person only.

A permit issued under this article shall not be transferable nor give authority to more than one person to conduct a business as a street vendor, but any person having obtained such permit may have the assistance of one or more persons in conducting such business.

(Ord. No. 09-953, § 2(Exh. A), 10-7-09, eff. 1-1-2010)

Sec. 22-21. Display.

The permit issued under this article, the notarized consent statement of the property owner or authorized agent, and the street vendor's Texas

sales tax permit shall be prominently displayed in a conspicuous place on the premises where a sale or exhibit is being conducted and shall remain so displayed as long as any goods or merchandise are being so sold or exhibited.
(Ord. No. 09-953, § 2(Exh. A), 10-7-09, eff. 1-1-2010)

Sec. 22-22. Sale of goods or merchandise on public property.

(a) It shall be unlawful for a street vendor to expose for sale or sell any goods or merchandise on any public sidewalk, public street, parking space, right-of-way or other public property or to offer for sale or sell any goods or merchandise to any person who is on any public sidewalk, public street, parking space, right-of-way or other public property.

(b) Subsection (a) of this section shall not apply to:

(1) Any person who is acting in compliance with a franchise granted by the city; or

(2) Transactions in public buildings or on public property to which the city is a party.

(Ord. No. 09-953, § 2(Exh. A), 10-7-09, eff. 1-1-2010)

Sec. 22-23. Display of goods.

Street vendors shall not display their goods or products from clotheslines, wires or other hanging mechanisms and shall display their goods or merchandise in a manner so as not to cause vehicular or pedestrian visual problems at any intersection or entry or exit between the property and a public street.
(Ord. No. 09-953, § 2(Exh. A), 10-7-09, eff. 1-1-2010)

Sec. 22-24. Revocation or non-renewal of permit.

If the director determines that any street vendor has failed to comply with the provisions of this article, the director may revoke the street vendor permit and may refuse to issue permits to that street vendor in the future.
(Ord. No. 09-953, § 2(Exh. A), 10-7-09, eff. 1-1-2010)

Secs. 22-25—22-50. Reserved.

ARTICLE II. RESERVED

Secs. 22-51—22-90. Reserved.

ARTICLE III. VIOLATIONS AND PENALTIES

Sec. 22-91. Penalties.

Whenever in this chapter an act is prohibited or is made or declared to be unlawful or an offense or misdemeanor, or wherever in this article the doing of any thing or act is required or the failure to do any thing or act is prohibited, the violation of the provision shall be and constitute a misdemeanor punishable, upon conviction of a violation of any provision of article I of this chapter, by a fine of not less than $250.00 nor more than $500.00, and upon conviction of a violation of any provision of article II of this chapter, by a fine of not less than $50.00 nor more than $500.00. Each violation shall constitute and be punishable as a separate offense. Prosecution or conviction under this provision is cumulative of and shall never be a bar to any other civil or administrative remedy provided or allowed in this chapter or by law.
(Ord. No. 09-953, § 2(Exh. A), 10-7-09, eff. 1-1-2010)

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Chapter 23

LAKE HOUSTON*

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Art. III.	**Dredging, Excavating and Mining, §§ 23-41—23-46**
Art. IV.	**Lake Houston Construction and Structures, §§ 23-47—23-116**
	Div. 1. Bulkheads, §§ 23-47—23-61
	Div. 2. Piers, §§ 23-62—23-86
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	Div. 4. Boat Ramps, §§ 23-102—23-116
Art. V.	**Shoreline and Vessel License, §§ 23-117—23-134**
	Div. 1. Shoreline License, §§ 23-117—23-122
	Div. 2. Vessel Licenses, §§ 23-123—23-134
Art. VI.	**Permits, Licenses, and Inspections, §§ 23-135—23-142**
Art. VII.	**Boating Regulations, §§ 23-143—23-153**

ARTICLE I. IN GENERAL

Sec. 23-1. Definitions.

The following words, terms or phrases, when used in this chapter, shall have the meanings ascribed to them, except where the context clearly indicates a different meaning:

Airboat means a vessel driven by utilizing a fan-like propeller mounted on or above the hull.

Approved means approved in writing by the public works official in accordance with the criteria of this chapter, except where no criteria are specified, the term means approved by the public works official as the result of investigations and tests conducted by the public works official, or by reliance on generally accepted scientific or engineering principles or tests conducted by nationally- or internationally-recognized authorities, technical or scientific organizations.

Boat ramp means an entrance to and exit from private premises that is designated for vehicle and vessel use and is not open for vehicle or vessel traffic except by permission of the owner of such private premises.

Bulkhead means a retaining wall designed to retard erosion of and prevent the banks of a lake from sloughing off.

Cabin means the area, hold, house or superstructure on a vessel that is or can be enclosed and that is four feet or more in height.

Chief of police means the director of the department of police. The term shall not include the director's designees, unless the intention to include those designees, or to authorize such delegation, is clearly expressed.

Commercial pier means a pier that is used for mooring of vessels for money or other consideration, including, but not limited to, any of the following: vessel livery; commercial fishing camp; public beach; camping area; private club; and homeowners' association. The term also includes any pier to be used for the mooring of more than two vessels that require licenses under this chapter.

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*__Editor's note—__Ord. No. 2011-862, § 2(Exh. A), adopted October 12, 2011, amended Ch. 23 in its entirety to read as herein set out. Formerly, Ch. 23 pertained to similar subject matter and derived from Code 1968, §§ 24-1—24-171; Ord. No. 73-202, § 1, 1-31-73; Ord. No. 73-482, § 1, 3-14-73; Ord. No. 73-1555, § 1, 8-14-73; Ord. No. 75-2191, § 2, 12-16-75; Ord. No. 77-545, § 1, 3-16-77; Ord. No. 90-635, §§ 51—53, 5-23-90; Ord. No. 91-478, §§ 1, 2, 4-10-91; Ord. No. 92-1449, § 40, 11-4-92; Ord. No. 93-514, § 35, 5-5-93; Ord. No. 98-613, §§ 50, 51, 8-5-98; Ord. No. 02-399, § 51, 5-15-02; Ord. No. 01-67, § 1, 1-17-01; Ord. No. 04-1015, §§ 12, 13, 9-27-04. See the Code Comparative Table for a detailed list of inclusion.

Cross reference—Parks and recreation, generally, Ch. 32.

Commercial shoreline means shoreline that is used for mooring of vessels for money or other consideration, including, but not limited to, any of the following: vessel livery; commercial fishing camp; public beach; camping area; private club; and homeowners' association. The term also includes any shoreline to be used for the mooring of more than two vessels that require licenses under this chapter.

Control area means the land either in the city or the extraterritorial jurisdiction of the city, containing waters that flow into or adjacent to the watershed of Lake Houston.

Dispose means discharge, deposit, release, inject, dump, spill, leak or place any waste (whether or not contained).

Dockage receipt means a receipt given to a vessel owner by the operator of a commercial pier evidencing the payment of rent or a dockage fee for the right to dock or moor in a dockage space. The dockage receipt must show the name and pier license number and the dockage space number, as well as the name and license number of the vessel and the name of the vessel owner.

Dredge means to remove material from below the stated normal conservation pool elevations of the lake.

Grade means the elevation of the shoreline embankment.

Jetty means a permanent structure built in the lake to influence the current, or flow of water.

License means a current and valid official document or tag authorizing a specific condition or structure on the lake issued pursuant to this chapter.

Lake Houston or *lake* means that area in northeast Harris County known as Lake Houston and described as the first, second, and third parcels in Section 3 of Ordinance No. 3351, passed on the fourth and final reading by the City Council of the City of Houston, Texas, on the 31st day of December, 1956, which ordinance is recorded in the annexation book and the original of which is on file, both as public records, in the office of the city secretary in the City Hall, and all adjoining waters maintaining the same level.

Motorboat means any vessel propelled or designed to be propelled by machinery, either permanently or temporarily affixed, regardless of whether the machinery is the principal source of propulsion.

Mine means an excavation in the earth from which ores, coal, limestone, sand or other mineral substances are being or have been removed by excavation or other mining methods. A mine shall include an area of land or surface actively or previously mined for the production of dimension stone, crushed or broken stone, sand, gravel, and clay.

Normal water level means the level of the surface of the water of Lake Houston when it is at an elevation of 45 feet above mean sea level, referred to the United States Engineers' Datum, 1936, Adjusted.

Normal water's edge means the water's edge when the lake is at normal water level.

On-site sewage facility means a tank or structure into which sewage or waste from a residential or commercial structure is discharged.

Operate means to navigate or otherwise use a motorboat or vessel.

Owner means the person who has lawful possession of a vessel or other property by virtue of legal title or lease.

Parks concession means those services and accommodations offered to the public in a city park for which charges, fees, admissions, or similar assessments are collected.

Parks director means the director of the department of parks and recreation. The term shall not include the director's designees, unless the intention to include those designees, or to authorize such delegation, is clearly expressed.

Parks official means the director of the department of parks and recreation or duly authorized designees.

Peace officer means those persons defined in article 2.12 of the Texas Code of Criminal Procedure.

Permit means a current and valid official document or certificate authorizing the performance of a specified activity issued pursuant to this chapter including but not limited to dredging, excavating or mining operations.

Pier means any platform or structure in or adjoining the water to which vessels may be moored, from which vessels may be boarded, or on which persons may walk or sit, and includes, but is not limited to any wharf, boat dock, boat house, or gangway.

Pier license means a current and valid yearly license for a pier issued by the public works official pursuant to this chapter. A commercial pier license is issued for commercial piers, and a private pier license is issued for non-commercial piers.

*Public works official*means the Director of Houston Public Works or the director's duly authorized designee.

Sanitary vessel means a vessel equipped with a toilet, sewage holding tank or cabin.

Sewage means human or animal wastes.

Sewage holding tank means a tank into which sewage from a toilet is discharged.

Shoreline means the land touching the water's edge of Lake Houston, at the water level described in City of Houston Ordinance No. 3351, at which a person may enter the water, or moor a vessel.

Shoreline license means a current and valid yearly license for a shoreline issued by the public works official pursuant to this chapter. A commercial shoreline license is issued for commercial shorelines, and a private shoreline license is issued for non-commercial shorelines.

Specialty fertilizer shall have the same meaning as that found in title 4 Texas Administrative Code section 65.1(7).

Spillway elevation means 44½ feet above mean sea level.

Structure means anything that is built or constructed, an edifice or building of any kind, or any piece of work artificially built up or composed of parts joined together in some definite manner.

Toilet means a flush toilet of the type generally used on vessels, including a marine sanitation device.

Variance shall mean a grant of relief to a person from the requirements of this chapter that allows activities otherwise prohibited by this chapter.

Vessel means any watercraft used, or capable of being used, as a means of transportation on water. The term includes, but is not limited to, boats, canoes, pedal boats and personal watercraft.

Vessel license means a current and valid yearly license issued under this chapter to the owner of a sanitary vessel for the revocable privilege of operating a sanitary vessel on the lake.

Vessel livery means a business establishment engaged in renting or hiring out of vessels for profit, or the renting of space for the storage of vessels.

Waste means any garbage, refuse, or other discarded material, including solid, liquid, semisolid, or contained gaseous material resulting from industrial, commercial, mining, and agricultural operations, and from community activities.

Watershed means all of the lands and areas surrounding Lake Houston, the drainage from which is so controlled by the terrain and terrain features, or by man-made facilities, that such drainage flows either directly or indirectly into Lake Houston.

Water supply protection area means the area of land within 1,000 feet of Lake Houston measured horizontally from the shoreline.

Well means any hole or bore into any sand, formation, strata, or depth, that has been, is being, or may hereafter be drilled, bored, sunk, dug or put down for the purpose of investigating, exploring for or producing any

oil, gas, liquid hydrocarbon or any other material. As used herein, well includes injection wells, but shall not include monitor wells.

(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011; Ord. No. 2015-820, § 21, 8-26-2015; Ord. No. 2018-11, § 13, 1-10-2018)

Sec. 23-2. Supervision and control.

Lake Houston is a park and all recreational facilities on the lake that have been dedicated to or built by the city are under the direct supervision and control of the parks director. Lake Houston and all other facilities on the lake are under the direct supervision and control of the Director of Houston Public Works.

(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 23-3. Commercial enterprises.

Except as may be otherwise provided in this chapter, it shall be unlawful for any person to operate any concession, or engage in any commercial enterprise whatsoever, on the lake that is inconsistent with its use as a source of city drinking water. The parks director, in consultation with the Director of Houston Public Works, may issue a permit for park concessions in accordance with the requirements of chapter 32 of this Code. Concession fees for commercial enterprises shall be determined in accordance with chapter 32 of this Code. The issuance of any permit under this chapter shall not be deemed to waive the requirements of this section.

(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 23-4. Rules and regulations.

(a) The Director of Houston Public Works shall adopt suitable rules and regulations regarding activities described in this chapter that may affect water quality in the lake.

(b) The parks director, in consultation with the Director of Houston Public Works, shall adopt suitable rules and regulations regarding recreational activities on or in the lake. The rules and regulations shall be governed by the requirements and procedures described in chapter 32 of this Code.

(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 23-5. Structures on or in Lake Houston.

(a) Except as otherwise specifically provided in this Code, it shall be unlawful for any person to construct, place, locate, or maintain, or cause to be constructed, placed, located, or maintained, any structure of any nature whatsoever within, over, on or in the lake or its shoreline.

(b) The public works official is authorized to require the owner to repair or demolish deteriorated structures, removal of any fill material or remediation of any excavation as described herein that encroaches into or on the lake. In the event the owner cannot be located, or refuses to timely repair or demolish the deteriorated structure, the public works official may demolish or remove the deteriorated structure. Upon determination by the Director of Houston Public Works that any structure is so deteriorated that it may cause an imminent and substantial threat to the health, safety or welfare of the public or the environment, then the director may instruct the public works official to remove the structure without notice to the owner.

(c) The city attorney is authorized to take such enforcement action as is necessary to collect the cost of demolition, removal and remediation from the owner. The express reservation of this right to the city is in addition to any other rights, remedies and penalties provided for in this Code.

(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 23-6. Restricted areas: Lake Houston Dam and water supply facilities.

(a) The area extending 500 feet upstream of Lake Houston Dam thence downstream to the river weir is restricted. The distance shall be measured horizontally from the aforementioned structures.

(b) The area extending 200 feet from any of the following areas is restricted: any SolarBee®, any water quality monitoring stations, any lake water supply pumping station, the canal right-of-way that extends from the lake pumping station to the city's East Water Purification Plant, the pipeline right-of-way that extends from the lake pumping station to the city's Northeast Water Purification Plant, and such other areas that may be determined by the Director of Houston Public Works to be critical to the lake's use as a source of drinking water. The distance shall be measured horizontally from the aforementioned structures.

(c) It shall be unlawful for any person to enter, operate a vessel, fish, swim, or perform any activities in the restricted area.

(d) The Director of Houston Public Works shall cause the restricted areas to be posted against trespassing.

(e) It is a defense to prosecution under this section that the person is designated by the Director of Houston Public Works, or authorized by section 23-18 of this chapter, and is engaged in official business.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 23-7. Other restricted areas on the lake.

(a) The area extending out one-quarter mile from the Lake Houston Dam or any pumping station water intake structures is restricted. The distance shall be measured horizontally from the aforementioned structures.

(b) It shall be unlawful to construct or maintain a facility or structure, including but not limited to boat ramps, piers or marinas, in the restricted area.

(c) The Director of Houston Public Works shall cause the restricted area to be posted.

(d) It is a defense to prosecution under this section that the person is designated by the Director of Houston Public Works, or authorized by section 23-18 of this chapter, and is engaged in official business.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 23-8. Hunting or discharging firearms.

It shall be unlawful for any person to hunt or discharge a firearm on, over or across the lake. Provided, however, the provisions of this section shall not apply to peace officers or game wardens in the lawful discharge of their duties.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-9. Persons authorized to enforce chapter.

The provisions of this chapter, all other ordinances applicable to the lake, and all applicable state laws may be enforced by peace officers, the public works official, the parks official, and the health officer.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-10. Persons disobeying rules or regulations to leave premises.

Any person who disobeys any rule or regulation covering the use of the lake, whether such rule or regulation is directly established by ordinance, or is adopted pursuant to the authority of an ordinance, may be required to leave the lake. Persons authorized to enforce this chapter may request any person who violates the rules and regulations to leave the lake. Any person who shall fail to comply with the request shall be subject to prosecution under section 30.05 of the Texas Penal Code for trespassing.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-11. Camping only in designated locations.

Camping on the lake, including its islands, is forbidden except at designated locations in city parks.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-12. Pontoons, barrels, and other containers to be permanently attached.

It shall be unlawful to use or place pontoons, barrels or other containers on or in the lake unless they are permanently attached to a vessel or pier by a mechanical device. No person shall operate, use, or maintain a vessel or pier on the

lake with pontoons, barrels or other containers that are not firmly attached to the same by mechanical means.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-13. Swimming prohibitions.

It shall be unlawful to swim within 100 feet of any public launch or ramp, or any commercial pier or commercial shoreline on the lake, unless otherwise indicated by official city signage.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-14. Recreational activities prohibited in cove adjacent to patrol facility.

(a) The chief of police is authorized to cause the cove area adjacent to the Lake Houston Patrol Facility at 22619 West Shorewood Loop to be marked off by buoys and signage as an area that is restricted to public access.

(b) It shall be unlawful for any person to operate a vessel, fish, swim, or perform other activities within the area restricted pursuant to subsection (a). It is a defense to prosecution under this section that the person is designated in section 23-9 of this chapter and is engaged in official business, or is otherwise engaged in the rendition of official police patrol, rescue, or emergency activities.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-15. Fees.

The Director of Houston Public Works and the parks director shall jointly, from time to time, prepare and submit for approval by motion of the city council revisions to thefees stated in the city fee schedule that shall be paid by an applicant for a permit, license or other authorization granted pursuant to this chapter. Payment of any applicable fees when due is a condition of the processing of any application under this chapter.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 23-16. Fines.

(a) Whenever in this chapter an act or omission is prohibited or declared to be unlawful or an offense or a misdemeanor, or the doing or performance of any act or duty is required, or the failure to do any act is prohibited or declared to be unlawful, and no specific penalty is provided, the violation thereof shall be punishable by a fine of not less than $100.00 nor more than $500.00, except violation of any provision of articles II and III is punishable by a fine of not less than $100.00 nor more than $2,000.00. Each day that any violation continues shall constitute and be punishable as a separate offense.

(b) Pursuant to the provisions of the Texas Local Government Code, the city council hereby finds that each and every provision enumerated in articles II and III governs public health and sanitation.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-17. Remedies.

(a) The city, acting through the city attorney or any other attorney representing the city, is hereby authorized to file an action in a court of competent jurisdiction to:

(1) Enjoin any person from violating or threatening to violate the terms, conditions and restrictions of any permit issued under this chapter;

(2) Enjoin the violation or threatened violation of the provisions of this chapter; or

(3) Recover civil penalties for violation of the terms, conditions and restrictions of any permit issued under this chapter, as may be allowed under applicable law;

(4) Recover civil penalties for violation for the provisions of this chapter, as may be allowed under applicable law; or

(5) Recover damages from the owner of a parcel in an amount adequate for the city to undertake any construction or other activity necessary to bring about compliance with this chapter.

(b) The city, acting through the city attorney or any other attorney representing the city, is hereby authorized to enter into agreements in lieu of litigation to achieve compliance with the terms, conditions and restrictions of any permit issued under this chapter or the provisions of this chapter.

The city's authority in subsections (a) and (b) is in addition to all provisions of this Code relative to the definition of offenses and the provision of penalties for violations of such offenses.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Secs. 23-18—23-30. Reserved.

ARTICLE II. WATER SUPPLY PROTECTION

Sec. 23-31. Deteriorated structures in the water supply protection area.

(a) The public works official is authorized to require the owner to repair or demolish deteriorated structures within the water supply protection area. In the event the owner cannot be located, or refuses to timely repair or demolish the deteriorated structure, the public works official may demolish or remove the deteriorated structure. Upon determination by the Director of Houston Public Works that any structure is so deteriorated that it may cause an imminent and substantial threat to the health, safety or welfare of the public or the environment, then he may direct the public works official to remove the structure without notice to the owner.

(b) The city attorney is authorized to take such enforcement action as is necessary to collect the cost of demolition and removal from the owner.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 23-32. Wells.

No well shall be drilled within the control area of Lake Houston, which is nearer than 1,000 feet from the normal water's edge of Lake Houston or any of its drains, streams or tributaries. In addition, no well shall be drilled within such control area at an elevation of less than 48 feet above mean sea level.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-33. Prohibited sewage facilities.

It shall be unlawful to build, construct, occupy, maintain or use a privy, portable toilet, outhouse, or any other open-type toilet in the water supply protection area.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-34. New on-site sewage facilities prohibited; other restrictions.

No on-site sewage facilities may be installed in the water supply protection area. It shall be unlawful for any person to cause or allow to overflow any on-site sewage facility, septic tank, or septic system, nor shall the contents thereof be permitted to reach the surface of the ground.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-35. Fuel storage tanks.

No person shall occupy, maintain, or use a fuel storage tank in the water supply protection area unless the tank is:

(a) Provided with a leak detection system and secondary containment of a type approved by the state,

(b) Permitted in accordance with state and federal regulations, and

(c) Maintained so as to prevent its contents from reaching the ground or the lake.

(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-36. Disposal of waste prohibited.

(a) It shall be unlawful for any person to dispose, discharge, or cause to be disposed or discharged, within the control area any waste regardless of whether the waste was originally removed from the lake or originated elsewhere.

(b) It shall be an affirmative defense to subsection 23-36(a) that:

(1) The person has a current permit, and

(2) Any disposal or discharge is in compliance with the permit.

(c) The city expressly reserves the right to exercise and pursue any and all procedures and remedies available to it to protect its property rights including, but not limited to, removal of any material as described herein that encroaches into or upon the lake.

(d) A violation of this section shall be punishable by a fine of not more than $4,000.00.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011; Ord. No. 2021-431, §§ 5, 16, 5-26-2021)

Sec. 23-37. Discharges to comply with other laws.

All discharges within or into the lake, control area, and the water supply protection area, shall be in conformance with all applicable state and federal laws, statutes, regulations, permits, orders and this Code. In addition to other remedies authorized by this Code, the city attorney is authorized to file and maintain all necessary civil legal action to enforce the provisions of laws, statutes, permits, orders and this Code regulating the discharge of waste into Lake Houston.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-38. Discharges in water supply protection area.

(a) Except as may otherwise be provided in this Code, it shall be unlawful for any person to dispose of any waste into any canal, ditch, or storm drain in the water supply protection area.

(b) No person shall maintain waste in a non-permitted condition in the water supply protection area.

(c) No person shall apply specialty fertilizers to land in the water supply protection area.

(d) Any owner of property in the water supply protection area shall maintain said property so as to prevent waste, or any other pollutant from reaching the lake. The city attorney is authorized to take such enforcement action as is necessary to collect from the owner the cost of cleanup and removal.

(e) A violation of subsection (a) of this section shall be punishable by a fine of not more than $4,000.00.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011; Ord. No. 2021-431, § 6, 5-26-2021)

Sec. 23-39. Commercial operations.

(a) It shall be unlawful for any commercial operation including, but not limited to, sand and gravel washing facilities, waste treatment facilities, or car washing facilities, located in the water supply protection area, to dispose of waste into the lake.

(b) It shall be an affirmative defense to subsection 23-39(a) that:

(1) The operator has a current permit, and

(2) Any release is in compliance with the permit.

(c) Any commercial operation in the water supply protection area, shall utilize best management practices for pollution prevention in accordance with federal, state, county, and city regulations governing such operations, and shall have on site a spill prevention plan.

(d) A violation of this section shall be punishable by a fine of not more than $4,000.00.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011; Ord. No. 2021-431, § 5, 5-26-2021)

Sec. 23-40. Water supply protection from construction.

(a) Any commercial or residential construction site in the water supply protection area shall be subject to federal, state and city storm water regulations and requirements, and shall have on site a current storm water pollution prevention plan.

(b) Any construction on the lake or in the water supply protection area shall utilize best management practices for pollution prevention in accordance with the most protective of federal, state, county, or city regulations governing such construction.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-41—23-55. Reserved.

ARTICLE III. DREDGING, EXCAVATING AND MINING

Sec. 23-56. Dredging, excavating or mining prohibited without permit.

It shall be unlawful for any person to perform or cause to be performed any dredging, excavating or mining in the control area without first having obtained a permit issued under this chapter. A permit application for dredging, excavating or mining will not be processed or issued until the applicant demonstrates that it has obtained all required state and federal permits.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-57. Requirements.

Permit applications for dredging, excavating or mining must include a plat showing the property lines, a site plan showing the area of proposed dredging or excavation, the proposed methods of dredging, excavating or mining, and an estimate of the amount of material to be removed. All waste from dredging, excavating and mining activities shall be properly deposited outside the control area in compliance with the applicant's state or federal permits and applicable law.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-58. Inspection of facilities.

The public works official shall be authorized to enter upon and inspect the facilities used in any dredging, excavating or mining operations conducted in the control area.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-59. Possession and display of permit.

It shall be unlawful for any person to participate in performing any dredging, excavating or mining operation in the control area unless the person in charge of the operation at the site thereof is in possession of a permit for dredging, excavating, or mining, or any combination, issued pursuant to this chapter and is in compliance with all terms of applicable state and federal permits. Any person authorized to enforce this chapter may demand that the person in charge of a dredging, excavating or mining operation in the control area produce a copy of the permits.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-60. Financial assurance; indemnity; certification of compliance.

Each applicant for a permit under this article shall deliver to the public works official financial assurance that is not inconsistent with the provisions of Title 30 Texas Administrative Code Chapter 37, Subchapter W. Each applicant shall certify that it will indemnify and save harmless the city from all loss or liability, including claims for damage to the person or property of third parties, in any way arising from the conduct of the dredging, excavating or mining operations to be conducted by the applicant in the control area, and, that all waste generated by dredging, excavating or mining activities will be properly deposited outside the control area and in compliance with the applicant's state or federal permits and applicable law. The financial assurance required in this section is in addition to any insurance required by the Building Code.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-61. Term.

Except as may otherwise be provided in this chapter, each permit issued under this article shall expire one calendar year from its date of issuance. A permit may be renewed or reissued subject to a new application that meets the original permit requirements.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-62—23-75. Reserved.

ARTICLE IV. LAKE HOUSTON CONSTRUCTION AND STRUCTURES

DIVISION 1. BULKHEADS

Sec. 23-76. Construction permit required.

It shall be unlawful to build, erect, alter or make major repairs to any bulkhead on or in the lake unless a construction permit has been issued by the public works official. An application for a bulkhead construction permit must include a plat showing the property lines and the layout of the bulkhead.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-77. Bulkhead, inspections and maintenance.

All private bulkheads shall be constructed on private property. This chapter shall not prohibit the city from constructing or causing to be constructed retaining walls or bulkheads to prevent a hazard to life, limb or property or to prevent pollution or the threat of pollution to the lake. All bulkheads shall be subject to periodic inspection by the public works official. Whenever any bulkhead requires maintenance for safety, sanitation, or any other reason determined by the public works official, the public works official may require the owner or lessee to repair the bulkhead such that it conforms to the requirements of this chapter. The owner or lessee shall complete any required repairs within 30 days of receipt of notice from the public works official.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Secs. 23-78—23-90. Reserved.

DIVISION 2. PIERS

Sec. 23-91. Construction permit required.

It shall be unlawful to build, erect, alter, or make major repairs to any pier on or in the lake unless a construction permit has been issued by the public works official. An application for a construction permit for a pier must include a plat showing the property lines, the layout of the pier, the designated dockage spaces, and their numbers. The public works official may also require a plat prepared by a Texas registered public surveyor or a professional engineer licensed in the State of Texas showing property lines, piers, water depths and shoreline used for docking or mooring vessels. Each applicant for a commercial pier construction permit must show on the plan the number of dockage spaces and the total square feet that the applicant intends to offer for rent in the permit year.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-92. Only one pier per residential lot.

It shall be unlawful to construct, own, use, maintain, or occupy more than one pier for each residential lot that borders the lake.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-93. Garbage and refuse receptacles.

Each pier owner and operator shall maintain adequate receptacles for garbage and other refuse from vessels using the pier.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-94 Piers with more than two licensed vessels.

It shall be unlawful to dock or moor more than two sanitary vessels at a pier that is not a commercial pier. Nothing herein shall prevent additional licensed vessels from mooring at any duly licensed pier for a period not in excess of three consecutive days; and nothing herein shall prevent a duly licensed vessel that displays a current dockage receipt from mooring at a licensed pier for a period not in excess of 15 consecutive days.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-95. Inspection of piers and adjacent premises.

All piers and adjacent premises are subject to inspection at any time by the public works official and the health officer to ensure the piers and premises comply with all applicable sanitary and structural requirements. All commercial piers and adjacent premises are also subject to inspection and re-inspection at any time by the parks official to ensure compliance with rules, regulations and permit requirements promulgated by the parks director.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-96. Annual pier license required.

It shall be unlawful to use, occupy, own, rent, or lease a pier, unless a license has been issued pursuant to this chapter.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-97. Alterations may be required prior to issuance.

As a condition for the issuance of any pier license, the public works official may require that the pier be altered to conform to the specifications for piers set out in this Code, occupy less space on or in the lake, or comply with any other ordinance of the city.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-98. Term.

A pier license shall be issued for one calendar year. License applications for the succeeding calendar year may be submitted at times designated by the public works official.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-99. License tag generally.

When a pier license is issued under this chapter, the public works official shall provide to the owner a metal license tag. The tag must be inscribed "City of Houston Pier License." The license tag shall also indicate the calendar year for which the license is valid and the license serial number.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-100. Display of license tag.

It shall be unlawful to use, occupy, own, rent, or lease a pier unless there is attached to its outermost extremity the pier license tag issued under this chapter. It shall be unlawful to display an illegible pier license tag.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-101. Revocation of license.

(a) The public works official may revoke any pier license if the official reasonably believes that:

(1) The licensee has failed to maintain a permanent telephone number and permanent address;

(2) The licensee's pier is unsanitary;

(3) The licensee's pier is being used in violation of any of the ordinances of the city;

(4) The licensee's pier is a hazard to navigation;

(5) The sewage or garbage facilities on the licensee's adjacent premises are insufficient or are causing pollution;

(6) The licensee's pier is not structurally sound; or

(7) In the case of commercial piers, the licensee is in default of any parks concession permit or contract as determined by the parks director.

(b) The public works official shall remove the license tag from the pier within 48 hours after revocation of the license and shall not return the license tag until the official determines that the owner has taken steps to comply with all applicable laws, permit requirements and contractual requirements.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Secs. 23-102—23-115. Reserved.

DIVISION 3. JETTIES PROHIBITED

Sec. 23-116. Requirements.

It shall be unlawful to build, erect, alter, or make major repairs to any jetty on or in the lake.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-117. Maintenance.

All jetties shall be subject to periodic inspection by the public works official. Whenever any jetty requires maintenance for safety, sanitation, or any other reason determined by the public works official, the public works official may require the owner or lessee to repair the jetty such that it conforms to the requirements of this Code. The owner or lessee shall complete any required repairs within 30 days of receipt of notice from the public works official.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Secs. 23-118—23-130. Reserved.

DIVISION 4. BOAT RAMPS

Sec. 23-131. Construction permit required.

It shall be unlawful to build, erect, alter or make major repairs to any boat ramp on or in the lake unless a construction permit has been issued by the public works official.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-132. Other requirements.

It shall be unlawful to build, erect, alter or make major repairs to any boat ramp in the lake unless a driveway permit has been issued by the public works official, and a dredging and excavation permit has been issued pursuant to this chapter. An application for construction of a boat ramp must include a plat showing the property lines and the layout of the boat ramp. All permit applications must include plans and specifications prepared and sealed by a licensed professional engineer authorized to practice in the State of Texas.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-133. Maintenance.

All boat ramps shall be subject to periodic inspection by the public works official. Whenever any boat ramp requires maintenance for safety, sanitation, or any other reason determined by the public works official, the public works official may require the owner or lessee to repair the boat ramp such that it conforms to the requirements of

this division. The owner or lessee shall complete any required repairs within 30 days of receipt of notice from the public works official.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Secs. 23-134—23-145. Reserved.

ARTICLE V. SHORELINE AND VESSEL LICENSE

DIVISION 1. SHORELINE LICENSE

Sec. 23-146. Shoreline license required.

A shoreline license shall be required for any shoreline at which a sanitary vessel shall be moored.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-147. Commercial shoreline license required.

It shall be unlawful to use, occupy, own, rent, or lease a commercial shoreline, unless a license has been issued therefor pursuant to this chapter.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-148. Term.

A shoreline license shall be issued for one calendar year. License applications for the succeeding calendar year may be submitted at times designated by the public works official.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-149. License tag generally.

When a shoreline license is issued under this chapter, the public works official shall provide to the owner a metal license tag inscribed "City of Houston Shoreline License." The license tag shall also indicate the calendar year for which the license is valid and the license serial number.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-150. Display of license tag.

(a) It shall be unlawful for the owner of a shoreline to moor a sanitary vessel at the shoreline unless the owner prominently displays the shoreline license tag or pier license issued under this chapter. It shall be unlawful to display an illegible shoreline license tag.

(b) It shall be unlawful to use, occupy, own, rent, or lease a commercial shoreline unless the owner prominently displays the commercial shoreline license tag issued under this chapter. It shall be unlawful to display an illegible commercial shoreline license tag.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-151. Revocation of license.

(a) The public works official may revoke any shoreline license if the official reasonably believes that:

(1) The licensee has failed to maintain a permanent telephone number and permanent address;

(2) The licensee's shoreline is unsanitary;

(3) The licensee's shoreline is used in violation of any of the ordinances of the city;

(4) The sewage or garbage facilities on the shoreline or licensee's adjacent premises are insufficient or may cause an adverse environmental impact to the lake; or

(5) The licensee is in default of any parks concession permit or contract as determined by the parks director.

(b) The public works official shall remove the license tag from the shoreline within 48 hours after revocation of the license and shall not return the license tag until he has determined that the owner has taken steps to comply with all applicable laws, permit requirements and contractual requirements.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

DIVISION 2. VESSEL LICENSES

Sec. 23-152. Vessel license required.

It shall be unlawful for any person to operate a vessel equipped with a toilet, sewage holding tank or cabin upon the lake unless a vessel license has been issued for the vessel.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-153. Listing of mooring location.

Each vessel license must list the location(s) on the lake at which the vessel may be moored.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-154. Inspection upon receipt of application.

As a condition for issuance of a vessel license, the owner must make the sanitary vessel available to the public works official for inspection. When inspecting the sanitary vessel, the public works official shall verify its identity, determine that the statements in the application correctly describe the vessel, verify that all sanitation devices are certified by the state, are designed by a sanitarian registered in the state, and are in good working order.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-155. Term.

A vessel license shall be issued for one calendar year. License applications for the succeeding calendar year may be submitted at times designated by the public works official.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-156. Issuance of license tag.

When a vessel license is issued, the public works official shall provide to the owner of the vessel a metal tag inscribed "City of Houston Vessel License." The license tag shall also indicate the calendar year for which the license is valid and the license serial number.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-157. Display of license tag; license to be on board in certain cases.

It shall be unlawful to operate any sanitary vessel upon the lake unless there is attached to the stern or transom of the vessel, so as to be visible from the rear, a license tag issued pursuant to this chapter. It shall be unlawful to use or occupy any sanitary vessel unless the vessel license is on board the vessel. It shall be unlawful to display an illegible vessel license or vessel license tag.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-158. Revocation of vessel licenses.

The public works official may revoke of any vessel license if the sanitary vessel is located on the lake and is in violation of any ordinance or state law regulating sanitation or pollution. The public works official shall remove the license tag from the vessel after revocation of the license and shall not return the license tag until he has determined that the owner has taken steps to comply with all applicable legal and permit requirements.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-159. Mooring and docking of vessels.

It shall be unlawful to moor or dock sanitary vessels at any location on the lake except at a licensed pier, or a licensed shoreline.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-160. Mooring in open water.

It shall be unlawful to moor any unattended vessel in open water for a period of more than 72 hours. If the vessel is connected to the shore or pier by a gangplank, it shall not be considered moored in open water for purposes of this section.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-161. Abandonment of vessels or other property; anchoring at prohibited anchorage.

(a) Any vessel left unattended at anchorage for more than 72 hours, or in a waterlogged or sunken condition, shall be deemed to be abandoned.

(b) If a vessel or a portion thereof is abandoned, or anchored at a prohibited anchorage, a person authorized to enforce this chapter may remove the vessel or portion thereof and recover the costs of the removal against the owner. Provided, vessels may be temporarily anchored or beached while the owner or operator is engaged in recreational activity.

(c) It is unlawful for any person to abandon any property on or in the lake.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-162. Vessels with cabins to have sanitation device.

It shall be unlawful to own, use, operate, or occupy any vessel with a cabin unless the vessel has on board a sealed sanitary toilet, sewage holding tank, or other marine sanitation device that has been certified by the state, and is designed by a sanitarian registered in the state.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-163. Inspection of vessels.

All vessels on the lake are subject to inspection at any time by all persons authorized to enforce this chapter to determine the sanitary conditions and the structural condition of the vessels.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-164—23-175. Reserved.

ARTICLE VI. PERMITS, LICENSES, AND INSPECTIONS

Sec. 23-176. Permits and licenses required, in general.

No activity for which a permit or license is required under this chapter shall be conducted and no structure or condition for which a permit or license is required under this chapter shall be constructed, demolished, used, or maintained, unless a permit or license for the activity, use, structure, or condition has first been obtained from the public works official.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-177. Permit holder insurance.

Each permit holder shall, if necessary, obtain and maintain in effect during the term of the permit such insurance coverage as is required under this Code. Failure or refusal of the permit holder to obtain and keep in force the insurance coverage required hereunder shall automatically terminate the permit.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-178. Permit issuance.

(a) *Application.* The public works official shall issue to the applicant a permit after the applicant has submitted all of the following to the public works official:

(1) A complete application, in a form to be determined by either the Director of Houston Public Works or the parks director, as applicable.

(2) Proof of insurance, if required;

(3) Financial assurance, if required;

(4) All applicable fees;

(5) Copies of applicable state and federal permits, licenses and authorizations;

(6) Plans, specifications and such other documents as reasonable requested by either the Director of Houston Public Works or the parks director, as applicable; and

(7) A copy of any approvals obtained from the parks director and the city council, if required under this chapter.

(b) The public works official shall not issue a permit until any required inspection has been conducted. When the public works official issues a permit for which plans are required, he shall endorse in writing or stamp the plans and specifications "Approved." Approved plans and specifications shall not be changed, modified or altered without authorization from the public works official, and all work regulated by this chapter shall be done in accordance with the approved plans.

(c) *Retention of plans.* One set of approved plans, specifications, computations and other data shall be retained by the public works official for a period of not less than 90 days from the date of completion of the work and one set of approved plans and specifications shall be returned to the applicant. The returned set shall be kept on the site of the structure or work at all times during which the work authorized thereby is in progress.

(d) *Validity of permit.* The issuance or granting of a permit or approval of plans, specifications, computations and other data shall not be

construed to be a permit for, or an approval of, any violation of any of the provisions of this Code or of any other applicable laws, city ordinances, rules, or regulations. The issuance of a permit based upon plans, specifications, computations and other data shall not prevent the public works official from thereafter requiring the correction of errors in the plans, specifications, computations and other data, or from preventing building operations from being carried on thereunder when the operations are determined to be in violation of this chapter or of any other applicable laws, city ordinances, rules and regulations.

(e) *Suspension or revocation.* The public works official may suspend or revoke a permit issued by the public works official under this chapter if the applicant has given false information in his application or has committed a violation of any ordinance, permit condition, rule or regulation. The public works official must provide the permit holder prior written notice and an opportunity to appear before the public works official and give evidence concerning why the permit should not be suspended or revoked.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 23-179. Variances.

(a) The Director of Houston Public Works and the parks director are each authorized to consider and grant variances from the provisions of this chapter, other than those provisions required by state law, for any permit when the director finds that each of the following conditions exist:

(1) Either:

a. The imposition of the terms, rules, conditions, policies and standards of this chapter would create an undue hardship by depriving the applicant of the reasonable use of the land; or

b. Strict application of the requirements of this chapter would make a project infeasible due to the existence of unusual physical characteristics that affect the property in question, or is otherwise contrary to sound public policy;

(2) The circumstances supporting the granting of the variance are not the result of a hardship created or imposed by the applicant;

(3) The intent and general purposes of this chapter will be preserved and maintained;

(4) The granting of the variance will not be injurious to the public health, safety or welfare; and

(5) Economic hardship is not the sole justification for the variance.

In granting a variance, the director is authorized to impose any condition on the permit for which the variance is requested that the director determines is reasonably related to the variance requested and that furthers the intent and purpose of this chapter. The findings of the director, together with the specific facts upon which such findings are based, shall be made available to the applicant.

(b) Any variance granted under the provisions of this chapter shall apply only to the specific property for which the director approved the variance, and shall not constitute a change of any part of this chapter, or establish any policy, rule or regulation contrary to the provisions of this chapter.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 23-180. License issuance.

(a) *Application in general.* The public works official shall issue to the applicant a license required by this chapter after the applicant has submitted all of the following to the public works official:

(1) The type of license being applied for;

(2) The calendar year being applied for;

(3) The name of the applicant;

(4) The mailing address of the applicant;

(5) The telephone number(s) of the applicant;

(6) The name of the property owner;

(7) The mailing address of the property owner;

(8) The telephone number(s) of the property owner;

(9) The payment of the fee provided for in this chapter.

The application shall contain this statement: 'I hereby accept all conditions of the governing City of Houston and all ordinances whether or not herein specified and certify that all statements herein recorded by the undersigned are true. I further understand failure to comply with ordinance requirements will result in revoking of my license.' The application shall be signed by the owner and may be filed with the director after September 1 of the preceding calendar year.

(b) *Pier or shoreline license application.* In addition to the information required in section 23-180(a), pier or shoreline license applications shall also include the following:

(1) The lake address of the structure to be licensed;

(2) The lot and block numbers, name of addition, lot size in square feet;

(3) The location on the creek, bayou, fork, or main body;

(4) The name of the body of water;

(5) The square feet of pier and number of dockage spaces on shore;

(6) The linear feet of shoreline and number of dockage spaces on shore;

(7) The commercial or residential designation.

The public works official may require that the applicant furnish a copy of the owner's deed recorded in the Deed Records of Harris County, Texas, and a copy of any lease from the owner to the applicant.

(c) *Vessel license application.* In addition to the information required in section 23-180(a), vessel license applications shall also include the following:

(1) The square feet of vessel decking;

(2) The make or manufacture of the vessel, serial number, and year built;

(3) The state certificate number, and issuing state;

(4) The state, county and city residence of the owner;

(5) The hull material (whether wood, aluminum, steel, plastic, or other);

(6) The propulsion (whether outboard, inboard, sail, paddle, or other);

(7) The fuel (whether gasoline, diesel, or other);

(8) The use (whether pleasure, or commercial);

(9) The make, power, year built, and manufacturer's serial number of any outboard or inboard engine used or kept on board;

(10) The name and address of premises where the vessel is usually moored or kept, the pier license tag number of the pier to which the vessel is moored when on waters governed by this article, and the dockage space number;

(11) A copy of certification for the onboard sanitary device as provided for in this chapter; and

(12) A side view photograph of the vessel.

(d) Applicant shall submit proof of any required federal or state permits, licenses or authorizations, and all applicable approvals from the parks director and the city council, if required, under this chapter.

(e) The public works official shall not issue a license until any required inspection has been conducted.

(f) *Validity of license.* The issuance or granting of a license shall not be construed to be a permit for, or an approval of any violation of any of the provisions of this chapter or of any other applicable laws, city ordinances, rules, or regulations. The issuance of a license shall not restrict the public works official from requiring the correction of deficiencies determined to be in violation of this chapter or of any other applicable law, city ordinance, rule or regulation.

(g) *Term.* Every license issued by the public works official under the provisions of this chapter, except where otherwise stated in this chapter, shall expire at the end of the calendar year in which the license was issued.

(h) *Suspension or revocation.* The public works official may suspend or revoke a license issued by the public works official under this chapter if the applicant has given false information in his application or has committed a violation of any ordinance, license condition, rule or regulation for which suspension or revocation is authorized under this chapter. Provided, however, in order for any such suspension or revocation to be effective, the public works official must provide the license holder written notice and an opportunity to appear before the public works official and give evidence concerning why the license should not be suspended or revoked.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011; Ord. No. 2020-320, § 9, 4-15-2020)

Sec. 23-181. Inspections.

(a) *Permit inspections.* All activities for which a permit is required shall be subject to inspection by the public works official. The public works official shall make a final inspection and approval of all construction or work when completed in compliance with the approved plans and specifications.

(b) *License inspections.* All structures or conditions for which a license is required shall be subject to annual inspections by the public works official and shall be inspected according to this chapter.

(c) *Other inspections.* In addition to the inspections specified above, the public works official may make or require other inspections of any activities to ascertain compliance with the provisions of this chapter and any other applicable laws, city ordinances, rules and regulations.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-182. Permits and licenses not transferable.

Permits and licenses issued under this chapter are not transferable.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-183. Appeals; permits and licenses.

(a) Any permit holder or applicant aggrieved by the refusal of the public works official or the parks official to issue a permit or license or the suspension or revocation by the public works official or the parks official of a permit or license may appeal the decision to the General Appeals Board and thence to the city council in accordance with the procedures adopted in this Code.

(b) All appeals to the city council are subject to the city council rules of procedure, as codified in this Code. Copies of the rules may be obtained from the city secretary. A party wishing to preserve his right of appeal must comply with the city council rules of procedure.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-184—23-195. Reserved.

ARTICLE VII. BOATING REGULATIONS

Sec. 23-196. Compliance with state and federal law.

All persons operating vessels in or upon the lake shall comply with the requirements of the Texas Water Safety Act, Texas Parks and Wildlife Code Chapter 31, and regulations promulgated by United States Coast Guard. Any persons authorized to enforce this chapter may eject from the lake any vessel not in compliance with this chapter, and applicable state and federal laws or regulations. Except as may be otherwise provided, such regulations are hereby adopted as standards governing the regulation, operation and equipment of all vessels located in or upon the lake.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-197. Posted and buoyed areas.

All vessels are to comply with the instructions of posted and buoyed areas erected or placed on the lake for public safety.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-198. Motorboat exhaust systems.

All inboard motorboats shall be equipped with through-hull exhaust. Noise level may not exceed 80 decibels within 100 feet of the vessel on the

lake, and at the boundary of the lake, noise levels should not exceed those regulated in chapter 30 of this Code.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-199. Records to be kept by vessel liveries.

The owner of a vessel livery on the lake shall keep a record of the name and address of each person who hires a vessel and the time and date of departure and the expected time of return. The record shall be kept for six months and made available upon request to all persons authorized to enforce this chapter.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-200. Vessel livery not to rent vessel without required equipment.

Neither the owner of a vessel livery nor its employee or agent shall permit any vessel to depart from the premises unless the vessel carries all equipment required by applicable laws and regulations.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-201. Use of siren prohibited.

It shall be unlawful for any person on any vessel operated on the lake to use a siren while on the lake. Vessels operated by persons authorized to enforce this chapter are exempted from this section to the extent such persons are authorized to use sirens for the performance of their duties.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-202. Towing persons on water skis or other devices.

(a) No person may tow a person on water skis or other devices that skim the water's surface unless:

(1) The motorboat is equipped with a rearview mirror of a size not less than four inches in measurement from bottom to top and across from one side to the other. The mirror shall be mounted firmly so as to give the boat operator a full and complete view beyond the rear of the boat at all times; or

(2) A person 13 years of age or older observes the progress of the person being towed.

(b) No person may tow or shall otherwise assist a person on water skis or other devices that skim the water's surface during the period from one-half hour after sunset to one-half hour before sunrise.

(c) Each person who tows or otherwise assists a person on water skis or other devices that skim the water's surface shall operate the motorboat in a careful and prudent manner and at a reasonable distance from persons and property so as not to endanger the life or property of any person.

(d) No person shall operate or manipulate any vessel, tow rope or other device by which the direction or location of water skis or other devices that skim the water's surface may be affected or controlled in such a way as to cause them, or any person on them, to collide with or strike against any person or object other than ski jumps, markers and like objects normally used in competitive or recreational skiing.

(e) It shall be unlawful for any person to ski or skim the water's surface on the lake within a distance of less than 200 feet from any bridge, pier, anchored vessel, or person on the lake surface.

(f) It shall be unlawful for any person to ski or skim the water's surface on the lake in restricted areas marked by buoys or official city signage.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-203. Operation of airboats or similar devices prohibited.

(a) It shall be unlawful for any person to operate an airboat or similar device upon the lake.

(b) It is a defense to prosecution under this section that the operator is a person designated by the Director of Houston Public Works, or by section 23-9 of this chapter, engaged in official business.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 23-204. Event permit required for certain recreational activities.

(a) Public events such as regattas, vessel or other races, tournaments, exhibitions, or organized water activity practice sessions are prohibited unless authorized by an event permit issued by the parks official. It shall be unlawful to erect or permit the erection of race or course markers, ski jumps or any similar recreation item in the lake unless authorized by an event permit issued by the parks official.

(b) The parks official may issue event permits authorizing the holding or scheduled events on the lake and the erection of course markers, ski jumps or similar recreation items as described in subsection (a) of this section. To apply for an event permit, the person in charge thereof shall, at least 15 days prior thereto, file an event permit application with the parks director. The application must set forth the date, beginning and ending times, types of related markers, jumps and/or other related items, and the proposed event location.

(c) The parks official, upon full payment of all required fees and security deposits, shall grant the permit unless he determines that the proposed activity:

(1) Would cause an unreasonable hazard to the health and safety of the event participants or the general public; or

(2) Would cause an unreasonable inconvenience to the general public due to noise levels, scheduling or other factors; or

(3) Would conflict with another event that is permitted by the parks official; or

(4) Is proposed to be conducted at a location on the lake that is not suited to the intended use; or

(5) Discharges or threatens to discharge waste into the lake; or

(6) Is inconsistent with the lake's use as a source of city drinking water.

(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-205. Collisions, accidents and casualties.

(a) It shall be the duty of the operator of a vessel involved in a collision, accident or casualty, so far as is possible without serious danger to himself or his own vessel, crew and passengers, if any, to render to other persons affected by the collision, accident or casualty such assistance as may be practicable and as may be necessary in order to save them from or minimize any danger caused by the collision, accident or casualty and also to give his name, address and identification of his vessel in writing to any person injured and to the owner of any property damaged in the collision, accident or other casualty.

(b) In the case of collision, accident or other casualty involving a vessel, the operator thereof, if the collision, accident or other casualty results in death or injury to a person or damage to property in excess of $500.00, shall file with the parks director a full description of the collision, accident or other casualty on or before 30 days from the date of such accident or casualty.

(c) Accident reports filed under this section shall not be admissible in court as evidence, and each such report shall be confidential as to all persons except to persons directly involved in such accident or casualty, and except to agencies of the state for their official use in compiling statistics.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

Sec. 23-206. Arrest procedure.

(a) Persons authorized by section 23-9 of this chapter to enforce this article shall have the authority to stop and board any vessel subject to this article. Officials so boarding any vessel shall first identify themselves by proper credentials.

(b) In the event a peace officer shall find that such person is or has been operating a vessel in a manner not in compliance with this article, such peace officer may arrest such person for violation of this article without a warrant.

(c) Any peace officer arresting a person for a violation of this article shall take such alleged violator to the nearest judge of the municipal court of the city where a complaint shall be filed; provided, however, that such peace officer may release the alleged violator upon the execution of a written promise to appear before a judge of the municipal court at a certain date and time.
(Ord. No. 2011-862, § 2(Exh. A), 10-12-2011)

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Chapter 24

LIBRARIES*

Art. I. In General, §§ 24-1—24-24
Art. II. Library Board, §§ 24-25—24-35

ARTICLE I. IN GENERAL

Sec. 24-1. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Department* means the Houston Public Library System.

(2) *Director* means the director of the Houston Public Library System.

(Code 1968, § 25-1; Ord. No. 81-1459, § 1, 8-4-81)

Sec. 24-2. Department established.

There is hereby established a department of the city to be known as the Houston Public Library System.

(Code 1968, § 25-2; Ord. No. 81-1459, § 1, 8-4-81)

Sec. 24-3. Director generally.

There is hereby established the office of director of the Houston Public Library System. The director shall be the head of the department and shall be appointed by the mayor subject to confirmation by the city council.

(Code 1968, § 25-3; Ord. No. 81-1459, § 1, 8-4-81)

Charter reference—Appointment of heads of administrative departments, Art. VI, § 7a.

Cross reference—Officers and employees generally, § 2-21 et seq.

Sec. 24-4. Duties of director.

It shall be the duty of the director to direct, control and manage all libraries, bookmobiles, reading and study centers and other facilities placed under the control of the department by the mayor and city council.

(Code 1968, § 25-4; Ord. No. 81-1459, § 1, 8-4-81)

Sec. 24-5. Rules and regulations.

(a) The director shall have authority, subject to the approval of the mayor and city council, to prescribe rules and regulations for the administration of the department and for the orderly government and use of the library system, provided that such regulations shall not conflict with valid laws or ordinances. Without limitation, the director is authorized to include provisions that govern the use of library premises by the public, including the use of the property around the library, in order to promote an environment that is protective of the health and well-being of patrons and children while at the library facility. A copy of such rules and regulations shall be maintained for public inspection in each library within the system, in the office of the director and in the office of the city secretary.

(b) For purposes of this section, library premises means the building and any city-owned property, plaza, green space, or walkway around the building. The term does not include a parking lot.

(c) The director and all other employees of the department are hereby individually and severally authorized and directed for and on behalf of the city to notify any person who fails or refuses to comply with any applicable provision of law or of departmental rules and regulations to depart from any city property or building under the control of the department. Any such person who upon such notice fails to depart from any such property or building shall be subject to prosecution under Section 30.05 of the Texas Penal Code for criminal trespass in addition to prosecution for any other crime that he may have committed thereupon.

(Code 1968, § 25-5; Ord. No. 81-1459, § 1, 8-4-81; Ord. No. 2013-1205, § 2, 12-18-2013)

***Charter reference—**Authority to own, operate, etc., library, Art. II, § 7a.

Cross references—Boards and commissions generally, § 2-316 et seq.; dogs in buildings under management of library board, § 28-31; parks and recreation generally, Ch. 32.

Sec. 24-6. Use of library system; cards; change of address.

(a) No fee shall be imposed for the issuance of a borrower's card to any resident of the State of Texas.

(b) It shall be the duty of each person who holds a library borrower's card issued by the department to notify the department of any change of his residence address within five days after the change.
(Code 1968, § 25-6; Ord. No. 81-1459, § 1, 8-4-81; Ord. No. 83-1228, § 1, 8-9-83; Ord. No. 91-671, § 1, 5-15-91; Ord. No. 98-514, § 1, 6-24-98; Ord. No. 99-813, § 1, 7-28-99; Ord. No. 01-1039, § 1, 11-14-01)

Sec. 24-7. Overdue or lost books and other materials.

(a) Civil overdue fees in the amounts established pursuant to section 24-8 of this Code are imposed and shall be collected by the department upon the failure of any borrower to return any book, audiovisual material, or other item that was loaned by the department to the borrower by the due date established therefor upon the loan or renewal loan of the item. Items that are deposited in the self-service return receptacle at any department facility after closing hours or on any day on which the facility is not open to the public shall be deemed to have been returned to the department on the last preceding day on which the facility at which the self-service return receptacle is located was open to the public. Items returned by mail or other carrier service shall be deemed returned upon the date of deposit with the carrier as evidenced by the carrier's postal mark or other receipt date affixed thereon, provided that if no legible postal mark or receipt date was affixed by the carrier then the return date shall be the date of delivery thereof to the department.

(b) Pursuant to section 24-5 of this Code, the director may establish regulations relating to complex audiovisual materials, including but not limited to audiocassette books and compact discs, for the purpose of determining the number of items contained therein for application of the aforesaid civil fines.

(c) A replacement fee is hereby imposed and shall be collected by the department for the loss by any borrower of any book or audiovisual material or other circulated item in an amount equal to the publisher or manufacturer's current suggested list price of the item at the time of payment for the loss. The list price of a substantially equivalent item shall be utilized if an exact replacement of the lost item is no longer available. In addition to the replacement fee, there are hereby imposed processing fees in the amounts established pursuant to section 24-8 of this Code for each item that is lost to defray processing costs for the purchase of the replacement item. In addition to the replacement and processing fees, the civil overdue fees, as provided in subsection (a) of this section above, shall be applicable through the day of payment if the borrower fails to report the loss and pay the loss fee specified in this subsection on or prior to the return date established for the lost item.

(d) No person who is indebted to the city for any fine or fee imposed by or pursuant to this section shall be permitted to borrow any item circulated by the department or be issued any renewal or replacement library card until such fine or fee has been fully paid.
(Code 1968, § 25-7; Ord. No. 81-1459, § 1, 8-4-81; Ord. No. 83-1228, § 2, 8-9-83; Ord. No. 91-1179, §§ 1, 2, 8-14-91; Ord. No. 01-357, § 1, 4-25-01)

Sec. 24-8. Fees and services.

(a) The fees for overdue library items and processing of replacement of library items, as referenced in section 24-7 of this Code, shall be in the amounts stated for this provision in the city fee schedule, revisions to which amounts may be established from time to time by motion duly adopted by city council.

(b) The department is authorized to offer various services for the convenience of its patrons including, but not limited to, self service and staff assisted copying, self serve and staff media printing, staff facsimile transmission, staff reference research, materials reservations, and parking in the Jesse Jones Library garage. The fees for those services shall be in the amounts stated for this provision in the city fee schedule, and revised fees

to be charged pursuant to this subsection may be established from time to time by motion duly adopted by city council.
(Code 1968, § 25-8; Ord. No. 81-1459, § 1, 8-4-81; Ord. No. 83-1228, § 3, 8-9-83; Ord. No. 91-1179, § 3, 8-14-91; Ord. No. 01-357, § 2, 4-25-01; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 24-9. Handling of fees.

The director shall cause all fines and fees collected by the department pursuant to this chapter to be promptly remitted to the city controller.
(Code 1968, § 25-9; Ord. No. 81-1459, § 1, 8-4-81)

Sec. 24-10. Inventory.

The director shall cause an inventory to be maintained of all books and other library materials and equipment of the department.
(Code 1968, § 25-9.1; Ord. No. 81-1459, § 1, 8-4-81)

Sec. 24-11. Neglect to return books, etc.

Every person who shall borrow from the department any book, audiovisual material or other circulated item, and neglect to return or, if lost, make payment of the applicable loss fee therefor, within 15 days after the date of receipt of a written notice of demand for return thereof shall be deemed guilty of a misdemeanor. A notice mailed to the person's residence address as set forth on the person's library card application shall be deemed to have been received by the person upon the third regular postal delivery day after its deposit in the United States mail, provided it is an affirmative defense to prosecution under this section that the person did not, in fact, receive the notice. It shall not be a defense to prosecution under this section that the person charged was acting without a culpable mental state.
(Code 1968, § 25-9.2; Ord. No. 81-1459, § 1, 8-4-81)

Sec. 24-12. Reserved.

Editor's note—Ord. No. 01-357, § 3, adopted April 25, 2001, repealed § 24-12 in its entirety. Formerly, said section pertained to parking fees for Jesse Jones garage. See the Code Comparative Table.

Secs. 24-13—24-24. Reserved.

ARTICLE II. LIBRARY BOARD*

Sec. 24-25. Library board created.

There is hereby created the Houston Library Board, hereinafter called "the library board."
(Code 1968, § 25-10; Ord. No. 77-631, § 1, 3-29-77)

Sec. 24-26. Composition; appointment and terms of members; filling of vacancies.

(a) The library board shall, in addition to the ex officio members hereinafter provided for, consist of 19 members to be nominated by the mayor and confirmed by the city council. One membership position may, but need not, be occupied by a nonresident of the city.

(b) The terms for members of the library board shall be two years.

(c) The mayor and the superintendent of the Houston Independent School District shall be at all times ex officio nonvoting members of the board by virtue of their offices.

(d) In the event of the death or resignation of any member of the library board prior to the expiration of such member's terms of service, the mayor shall nominate and the council shall confirm a successor who shall serve out the unexpired term and enter upon the duties of a member at the next regular monthly meeting of the board.
(Code 1968, § 25-11; Ord. No. 77-631, § 1, 3-29-77; Ord. No. 77-1829, § 1, 9-20-77; Ord. No. 05-117, § 1, 2-2-05)

Sec. 24-27. Reserved.

Sec. 24-28. Compensation of members; conflicts of interest.

Members of the library board shall serve without compensation from the city or any firm, trust, donation or legacy to or on behalf of the city; provided, however, that a member of the board, or the firm, company or corporation with whom the

***Cross reference—**Boards, commission, authorities, etc., § 2-316 et seq.

member is associated shall not be precluded from receiving compensation from the city under any contract for services rendered which have no relation to the member's duties as a member of the board. Members of the board shall abstain from voting upon matters in which they have or may have a conflict of interest, and officers and members of the board shall not participate in any activity of the corporation in which they have or may have a conflict of interest. In the event it is found necessary, for the better performance of any of their several duties, for any member, or committee of members of the board, to make any trips on behalf of the library, their actual traveling and living expenses shall be paid. Full and detailed vouchers of such expenses shall be filed and preserved.
(Code 1968, § 25-12; Ord. No. 77-631, § 1, 3-29-77)

Sec. 24-29. Officers and meetings.

The library board shall organize by electing from their membership a chairman, a vice-chairman, a secretary and a treasurer, each of which officers shall hold office for one year, or until their successor shall have been elected and qualified. The board may adopt such administrative procedures as are necessary or convenient to accomplish the purposes set out in this article. Ten voting members present shall constitute a quorum. The director shall schedule a board meeting every month.
(Code 1968, § 25-13; Ord. No. 81-1459, §§ 2, 3, 8-4-81; Ord. No. 05-117, § 2, 2-2-05)

Sec. 24-30. Unexcused absence of members.

Whenever a member of the board has accumulated four absences within a year, without leave of absence granted by the board for good cause, the secretary of the board shall notify the chairman of the board, whose duty it shall be to certify the facts to the mayor and city council. Any such member shall cease to be a member of such board and shall create a vacancy on such board, as if by death or resignation, and a successor shall be elected as provided in subsection (d) of section 24-26 in case of death or resignation, who shall enter his duties at the next regular monthly meeting of such board.
(Code 1968, § 25-14; Ord. No. 77-631, § 1, 3-29-77)

Sec. 24-31. Purposes.

The purposes of the library board shall be to:

(1) Solicit funds, gifts, and bequests for library acquisitions, additions and improvements.

(2) Review and make advisory recommendations to the mayor and city council on the acceptance of gifts of real estate, art objects, and items of similar nature. Review and make advisory recommendations to the mayor and city council on any proposed physical additions and improvements to be paid for with city funds.

(3) Review and make recommendations on library department matters submitted to it by the director of the library department, or by the mayor and city council.

(4) Manage and invest and oversee the management and investment of funds, gifts, and bequests donated for library purposes and held in special trust accounts set up by the board for these purposes or invested by the board.

(Code 1968, § 25-15; Ord. No. 77-631, § 1, 3-29-77)

Sec. 24-32. Additional powers.

(a) The library board may cooperate with any trust created for a purpose similar to that of the board as set out in paragraph (4) of section 24-31 of this Code. In addition the board may contract for financial management and investment services and may pay the reasonable fees therefor from funds, gifts, bequests and income therefrom, unless it be contrary to the provisions of the grant.

(b) Whenever funds are given to the Houston Public Library for a specific purpose, the board may exercise its sole discretion on how that purpose is accomplished; provided, however, if construction of public improvements on city-owned property is involved, it shall be executed in compliance with the competitive bid laws of the state and the charter of the city.

(c) The board may seek removal of any trustee of a trust established to benefit the libraries of the city, by instituting appropriate action in the dis-

trict court on at least 90 days written notice (unless waived by the trustee) to such trustee. Any removal notice must be actually received by the trustee being removed, must contain the appointment of a successor trustee and the acceptance of the successor trustee endorsed on it. Any successor trustee appointed to act shall be a bank with trust powers or a trust company, either state or national, located in the city with a combined capital and surplus of at least $10,000,000.00.
(Code 1968, § 25-16; Ord. No. 77-631, § 1, 3-29-77)

Charter reference—Bids generally, Art. II, § 19.

Sec. 24-33. Financial records.

The financial books and records of the board shall be open to inspection and audit during regular business hours by authorized representatives of the city, or by independent certified public accountants employed by the city, or by board members themselves. Similarly, the financial books and records of any trust created for the benefit of or to cooperate with the library board, shall be open to inspection and audit.
(Code 1968, § 25-17; Ord. No. 77-631, § 1, 3-29-77)

Sec. 24-34. Annual financial report.

The library board shall make an annual financial report to the mayor, city council and the city comptroller.
(Code 1968, § 25-18; Ord. No. 77-631, § 1, 3-29-77)

Sec. 24-35. Fidelity bond.

Each library board member shall furnish to the city a fidelity bond in the amount of $10,000.00, provided, the premium therefor shall be paid by the city and provided further this requirement may be satisfied by amendment to the city's blanket fidelity bond for city employees so as to authorize inclusion of the library board members.
(Code 1968, § 25-19; Ord. No. 77-631, § 1, 3-29-77)

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Chapter 25

SPECIAL EVENTS

Art. I.	**Special Events—Generally, §§ 25-1—25-49**
Art. II.	**Street Functions, §§ 25-50—25-100**
Art. III.	**Parades, §§ 25-101—25-150**
Art. IV.	**Nationally Competitively Bid Events, §§ 25-151—25-160**
Art. V.	**Outdoor Music Events on Private Property—Generally, §§ 25-161—25-169**

ARTICLE I. SPECIAL EVENTS—GENERALLY

Sec. 25-1. Declaration of policy—Public use of parks, streets and other city property.

(a) It is the policy of the city to ensure the peaceable use and enjoyment of city parks, streets, and other city property by all members of the public, including persons and groups engaging in demonstrations or expressive activity or a special event regulated by this chapter.

(b) Except as otherwise provided in this chapter or other applicable provisions of this Code, all park areas and streets generally accessible to the public are declared to be open to any person or group of persons for any lawful use, including any demonstration or expressive activity, or special event regulated under this Code.

(c) Except as otherwise expressly permitted in this Code, the use of parks, streets or other city property is prohibited.

(d) Consistent with this chapter, uses of park property, streets and other city property shall continue to be governed by other applicable provisions of this Code and any applicable regulations authorized under this Code.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-2. Definitions.

For purposes of this chapter, the following words and phrases shall have the meanings provided in this section, unless the context of their usage clearly indicates another meaning:

Application means a written request for the issuance of a permit to conduct a special event.

Appropriate director means the director of any city department having jurisdiction over a city property or core city service affected by a special event or the director's designee.

Building means any permanent structure built for the support, shelter, or enclosure of persons, animals, chattels, or property of any kind.

City produced or *city sponsored special event* means any special event that is wholly promoted, produced, financed, and conducted by the city with the use of city resources and city personnel.

City co-produced or *city co-sponsored special event* means any special event that is promoted, produced, financed, or conducted in part by the city, or partially supported with in-kind services provided by the city, and has been approved for city co-sponsorship pursuant to section 25-16 of this Code.

City property means a city park, street, public right-of-way, or other property owned or held by the city.

City revenues means that portion of gross revenues due and payable to the city.

Commercial activity means any revenue-generating activity.

Component unit means an entity identified in the city comprehensive annual financial report that has a relationship with the city of a nature and significance that requires financial reporting in accordance with generally accepted accounting principles as prescribed or modified by the General Accounting Standards Board.

Demonstration or *expressive activity* means conduct including a meeting, assembly, protest,

rally, march or vigil, the primary purpose of which involves the expression, dissemination or communication by verbal, visual, literary or auditory means of opinions, views, or ideas.

Fire chief means the chief of the fire department or the fire chief's designee.

Gross revenues means the revenues generated by a special event, including, but not limited to, receipts from admission charges, both prior to the special event and at the gate, licensing or sponsorship revenues, and television, radio, advertising, concessions, and any other similar revenues.

Mayor's office of special events ("MOSE") means the office or city staff designated by the mayor to oversee the management and administration of special events on behalf of the city, including:

(1) Producing special events;

(2) Coordinating the responsibilities of all city departments relative to special events;

(3) Representing the city's interest in evaluating and negotiating proposals for sponsorship and revenue-sharing agreements pertaining to special events; and

(4) Managing the administration of the city's special events permitting processes.

MOSE director means the director of the mayor's office of special events or the director's designee.

Non-commercial activity means any non-revenue generating activity.

Permit means a valid, unexpired and unrevoked permit issued by the MOSE director pursuant to the terms of this chapter.

Police chief means the chief of police or the police chief's designee.

Security control plan means a written document detailing the use of non-city personnel to provide the appropriate public security and crowd control. Such a plan shall be subject to the written approval of the police chief.

Security control services means the use of the appropriate number of law enforcement officers necessary to monitor and maintain public security and crowd control.

Sign means any sign, pennant, flag, banner, inflatable display, or other similar device.

Special event means a festival, celebration, or gathering that involves the reservation and temporary use of all or a portion of a public park, park road, public street, or other city property that includes one or more of the following: entertainment, dancing, music, dramatic productions, art or cultural exhibitions, the sale of merchandise, food, or alcohol, or mass participation sports events, such as marathons, bicycling, walking, running and other competitive events that require the significant provision or coordination of city services. The term includes a street function as described in article II of this chapter and a parade as described in article III of this chapter. The term does not include the rental of a park building or other city facilities that are available to the general public for rental on a regular basis. Additionally, the term does not include a demonstration or expressive activity that does not involve the reservation of all or a portion of a public park, park road, public street, or other city property.

Special event organizer means any person who has submitted an application for a permit to conduct a special event pursuant to this chapter.

Traffic control plan means a written proposal for the operation and regulation of traffic control devices used to facilitate vehicular and pedestrian traffic safely and efficiently through a temporary traffic control zone. A traffic control plan must be prepared in conformance with the Texas Manual on Uniform Traffic Control Devices.

Traffic control services means the use of cones, barricades, and any other traffic control devices necessary to facilitate vehicular and pedestrian traffic safely and efficiently through a temporary traffic control zone.

(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-3. Permit and reservation areas; exceptions.

(a) A permit shall be required to conduct a special event in the following designated areas:

(1) Any city owned building, space, park, or facility for which a rental fee is imposed by the city pursuant to section 25-13 of this Code;

(2) Any specially improved and maintained city owned property or facility that is dedicated to a specific use or designated by the appropriate director as suitable for special events; and

(3) Any city owned area sought to be reserved for the use of any person.

(b) The appropriate director shall cause maps or other similar documentation to be prepared illustrating the areas designated for use as provided in subsection (a) of this section applicable to each affected area. Copies of such information shall be maintained in the offices of the appropriate director and MOSE.

(c) The appropriate director may designate any area as a restricted use area in which certain types of special events, or public access generally to which, shall not be permitted. A listing or designation of such areas shall be maintained in the manner prescribed in subsection (b) of this section.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-4. Special events; permit required.

(a) It shall be unlawful for any person to conduct a special event, including related street functions and parades, in any of the areas designated in subsection (a) of section 25-3 of this Code or any other area of any park, street, or other city property without first having secured a permit for the special event approved by the MOSE director.

(b) Except for the applicable definitions contained in this article, any special event consisting solely of a street function or a parade, as the terms are defined respectively in articles II and III of this chapter, shall be governed exclusively under the provisions of such articles.

(c) The MOSE director, with the approval of the appropriate director, shall promulgate all forms and process all applications necessary to implement the provisions of this chapter relating to special events.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-5. Application for permit; information required.

(a) An application shall be submitted on a form supplied by the MOSE director, signed by the special event organizer, and filed with MOSE.

(b) Each application must be accompanied by the non-refundable application processing fee stated for this provision in the city fee schedule. All tendered fees must be in the form of cash, cashier's check, money order, or other method of payment accepted by the city.

(c) An application that includes a request to close a freeway entrance ramp or any portion of a state-owned controlled access highway shall be filed not less than 90 days prior to the proposed special event date(s).

(d) A permit required by section 25-4 of this Code may only be obtained upon written application filed with MOSE containing the following information, if applicable:

(1) The date of application and the date and time period desired for the special event, including the anticipated time necessary to set up and take down temporary structures;

(2) The designated area and facility desired for the special event;

(3) The name, address, and phone number of the special event organizer;

(4) The estimated attendance at the special event;

(5) The type or purpose of the special event, including the name of the special event, a suggested plan for utilization of the space or area sought under the permit, and a general description of the activities involved;

(6) The type of sound system or amplified sound equipment to be used, if any;

(7) A description of any special effects or features such as hot air balloons, gun salutes (blanks only), fireworks, bands, or other similar devices or attractions to be used, if any;

(8) Whether the special event is for profit or nonprofit purposes, including a description of all commercial activity to occur during the special event, if any;

(9) The method by which the clean up and removal of any litter or debris generated by the special event will be handled;

(10) A description of any goods or services to be sold and a schedule of all fees to be charged;

(11) Any proposed security control plan or traffic control plan, including a description of security control services and traffic control services that will be provided at the special event, as well as a staffing plan that includes the contact information for the event organizer and security coordinator;

(12) The names and portions or blocks of any park road, public street, freeway entrance or exit ramp requested to be closed for the special event;

(13) All documentation relating to the corporate, partnership, non-profit, assumed name, or other organizational status of a special event organizer;

(14) Descriptions or depictions of any signs the special events organizer proposes to display during the special event; and

(15) Any other information required by any appropriate director or MOSE.

(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2022-958, § 2, 12-7-2022)

Sec. 25-6. Issuance; priority of conflicting applications.

(a) The MOSE director shall review each application to ensure that the proposed special event complies with all applicable provisions of this chapter. The MOSE director shall:

(1) Notify the special event organizer of the denial of the application if it is found to conflict with another special event already permitted for the same time, location, and date, or to be incomplete or to violate any provision of this Code, which notice shall set forth the reasons for the denial; or

(2) Issue a permit if the special event organizer has satisfied all applicable requirements of this chapter.

(b) No application shall be accepted for filing that is submitted prior to 365 consecutive days immediately preceding the date(s) sought. A permit application filed fewer than 30 days prior to the commencement of the special event will require an additional expedited processing fee as set forth in the city fee schedule. The director may, in the director's reasonable discretion, deny a permit application filed fewer than 30 days prior to the commencement of the special event if the proposed event's complexity is such that an approval may not be obtained prior to the event being promoted. All applications shall be time stamped immediately upon receipt. An application received first in time shall be the first in right; provided that if two or more conflicting applications are received simultaneously, precedence shall be determined by an impartial means of chance.

(c) The MOSE director shall notify the special event organizer of the approval or denial of an application upon the receipt and review of all information requested by the MOSE director and any appropriate director taking into consideration the nature and size of the proposed special event and the time necessary for the MOSE director to coordinate with any appropriate director to determine the availability of city personnel

resources to provide the necessary city services requested by the special events organizer or required by the MOSE director.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010; Ord. No. 2022-958, § 3, 12-7-2022)

Sec. 25-7. Reasons for permit denial.

Upon review, the MOSE director shall deny an application if:

(1) The requested area has been previously reserved for the proposed date of the special event;

(2) The special event organizer has failed to tender payment of any applicable fee imposed by this chapter or any other applicable fee imposed pursuant to this Code;

(3) The special event organizer fails to obtain the consent required by section 32-5, 32-8, 32-32 or 32-301 of this Code, if applicable;

(4) The special event organizer fails to provide or to receive approval of a required security control plan or traffic control plan, as well as any proposal concerning the provision of first aid or emergency medical services, sanitary facilities, site cleanup and debris removal, or off-site parking or shuttle service as required;

(5) The city does not have adequate personnel resources to support the special event;

(6) The size or nature of the special event is inappropriate for the area requested, will substantially interrupt the safe and orderly movement of traffic or police, fire or ambulance emergency equipment on streets adjacent to, running through, or in the vicinity of the special event or would cause an adverse effect upon use of the area or adjacent areas by others;

(7) The application was not timely filed in accordance with this chapter or fails to contain information required by this chapter;

(8) The application contains a material falsehood or misrepresentation;

(9) The special event organizer fails to timely tender any required insurance documentation or indemnification agreement;

(10) The special event organizer has failed to pay any fees due or reimburse the city any fees assessed for city services provided in conjunction with a previously permitted special event;

(11) The special event organizer fails to provide for sufficient safety, health or sanitation equipment, services or facilities to ensure that the special event will be safely conducted or proposes to utilize equipment or facilities of an unsafe nature;

(12) The special event fails to conform to the requirements of any applicable law;

(13) The special event organizer failed to obtain the requisite approval of any other public agency required to hold the special event; or

(14) The area requested has been designated as a restricted use area under subsection (c) of section 25-3 of this Code.

(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010; Ord. No. 2016-65, § 9, 1-20-2016)

Sec. 25-8. Notice procedure upon permit denial.

(a) The MOSE director shall notify the special event organizer of any permit denial, and the reasons therefor, by placing such notice in the United States mail, sent certified, return receipt requested, to the special event organizer at the address stated on the application.

(b) If the denial is based upon item (1), (6), or (14) of section 25-7 of this Code, the MOSE director shall advise the special event organizer of alternative areas, if any, capable of accommodating a special event of the requested size and nature.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-9. Special events where security control services or traffic control services are necessary.

(a) The MOSE director, in consultation with the appropriate director, shall review each application taking into consideration the size of the

special event, including, but not limited to, anticipated attendance, spectatorship, and the proposed use of special effects or other devices in conjunction with the special event, in determining the requisite security control services and traffic control services to be provided by the special events organizer to ensure the preservation of the general public's health, safety, and welfare during the special event.

(b) Upon the review of an application, the MOSE director shall notify the special event organizer of the necessity to furnish a written security control plan or traffic control plan. The security control plan or traffic control plan shall be provided within three business days of receipt of the request but in no event less than ten business days prior to the special event. All security control plans and traffic control plans shall be subject to review, approval, and appeal in the same manner as a permit application under this article.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-10. Revocation of permit.

(a) A special event permit may be revoked if the MOSE director or the appropriate director determines that:

(1) A violation of any condition of the permit exists, including failure to obtain approval of any security control plan, traffic control plan, or other plans required under section 25-9 of this Code or to implement any such plans;

(2) The special event poses an immediate threat to public health or safety;

(3) The special event organizer or any person associated with the special event has failed to obtain any other permit required pursuant to this Code or other applicable law; or

(4) The permit was issued in error or contrary to law.

(b) Except as provided in subsection (c) of this section, notice of revocation shall be in writing and shall set forth the specific reasons for the revocation.

(c) Any threat to health or safety requiring immediate revocation of a permit shall authorize the MOSE director or the appropriate director to notify the special event organizer verbally of such revocation. This provision shall not in any way diminish the authority of public safety authorities to preserve public safety and enforce all applicable laws during any special event.

(d) The appeal of a revocation shall be handled in the same manner and under the same time requirements as the denial of a permit.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-11. Appeal of permit denial or revocation.

(a) The decision of the MOSE director is final unless appealed under this section. A special event organizer may appeal the denial or revocation of a permit by filing a written request for a hearing with the MOSE director within ten business days of the date of such denial. A hearing shall be conducted within ten business days of the receipt of such request before a hearing committee consisting of the appropriate director, the police chief, and the fire chief. The city attorney or the city attorney's designee shall be present, in a non-voting capacity, to advise on any legal issue. It shall be the duty of the MOSE director to defend the decision during the hearing. Evidence on the matter shall be received in accordance with Rule 12 of section 2-2 of this Code. The hearing committee shall render a written decision on the matter within five business days of the date of the hearing and immediately provide a copy of such decision to the special event organizer.

(b) Upon receipt of the hearing committee's decision to uphold the denial or revocation of a permit, the special event organizer may appeal such decision by giving written notice to the city secretary within five business days of the date of such decision. The city secretary and city agenda director shall arrange a date for the matter to be reviewed by the city council, at the next regularly-scheduled council meeting at which it is possible to give lawful prior notice of the matter after the receipt of the hearing committee's decision and the record required by Rule 12 of section 2-2 of

this Code. The city secretary shall give written notice thereof to the special event organizer. The city council shall consider the appeal under the provisions of Rule 12. Upon the conclusion of the city council's review of the matter, the city council shall render a decision to grant or deny the requested permit. Such decision shall be final and shall exhaust the special event organizer's administrative remedies. If the foregoing time requirements appear inadequate to resolve the appeal prior to the date scheduled for the special event, the burden shall be upon the special event organizer to expedite any filings required and to request a special city council meeting, which shall be granted if reasonable under the circumstances.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-12. Transfers, refunds or revocations.

Subject to the approval of the mayor and city council, the MOSE director may establish rules and regulations relating to refunds of fees for a special event that is canceled or rescheduled. No refund shall be made except as authorized pursuant thereto. Permits may not be transferred or assigned under any circumstances.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-13. Permit fees and event fees; percentage of admission or participation fees due to the city; waiver.

(a) Any additional fees for special events including rentals, vending licenses and permits (collectively, "event user fees") shall be established by the city council by motion, and may be amended from time to time. Copies of the schedule of event user fees shall be maintained for public inspection in the offices of the city secretary and MOSE.

(b) In the event an admission fee is charged by a special event organizer or any person or entity in conjunction with a special event and in the absence of a revenue sharing agreement under section 25-17 of this Code, the fee applicable thereto shall include ten percent of the gross revenue derived from the special event, in addition to any other applicable fees established by city council. MOSE shall require an accounting of all pre-sale tickets that were sold, the use of consecutively numbered admission tickets, recording cash registers or other reasonable methods to ensure accurate accounting of receipts and revenues derived from such activities.

(c) MOSE shall establish uniform procedures relating to reservations, deposits and the manner for paying applicable event user fees.

(d) The MOSE director, with the concurrence of the appropriate director may waive fees for city produced or city sponsored special events or any special event designated by the mayor to honor, observe, or celebrate any occasion of special significance to the city provided funds are available in the respective departmental budgets to provide the necessary city services during the special event.

(e) Except as otherwise provided in this Code, or in any agreement authorized under this Code or any ordinance of the city, MOSE shall endeavor to ensure reimbursement of the costs of providing city personnel and other city services for a special event.

(f) In reaching a determination of city costs for purposes of this section, the MOSE director shall consult with the appropriate director for a determination of the necessary city employee staffing and other required city services. Unless fees are waived under this article, the special event organizer shall be obligated to pay all such fees and shall furnish a deposit in the form of cash, cashier's check, money order, or security bond in an amount sufficient to cover such fees.

(g) If a special event is conducted in such a manner as to substantially exceed or deviate from the size or nature of the special event as applied for and permitted and such occurrence causes the city to provide additional services of any city department in connection with the special event, or if upon the inspection of the reserved area and all city property used in conjunction with the special event a determination is made that city property has been damaged or destroyed as a result of the special event, the MOSE director shall furnish the special

event organizer with an accounting of the costs incurred as a result of such services or damage and the special event organizer shall be responsible for prompt payment thereof.

(h) All application processing fees shall be remitted to the city's general fund.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-14. Insurance and waiver of insurance requirement.

(a) The special event organizer shall continuously and without interruption, during the course of the special event, maintain in force insurance coverage consisting of a commercial general liability insurance policy covering the special event in an amount not less than $500,000.00 per occurrence and $1,000,000.00 aggregate.

(b) The special event organizer shall furnish the requisite proof of insurance to the MOSE director. All proof of insurance shall bear on its face, or by endorsement, a statement that the insurer will provide the city with 15 business days advance written notice of cancellation of the requisite insurance. The policy shall name the city as an additional insured and be issued by a carrier authorized to transact business in Texas. Each policy shall contain an endorsement that the issuer waives any claim or right of subrogation to recover against the city, its officers, agents, or employees. Each policy shall be reviewed by the city attorney for conformity with this subsection. The policy or a binder evidencing the policy shall be furnished to the MOSE director by the special event organizer prior to the commencement of the special event in a time sufficient for the city attorney to review the submitted policy or binder for conformity with the provisions of this subsection.

(c) Except for special events in which the sale of alcoholic beverages is authorized, the MOSE director may decrease or waive insurance requirements after receipt of a written request from the special event organizer. The MOSE director may increase, decrease, or waive the amount of insurance required for the proposed event based upon an evaluation of the proposed special event and the risks to the city associated therewith utilizing the following criteria:

(1) The size, duration, and scope of the special event, including the number of projected attendees, attractions, and location of the special event;

(2) Whether food, beverages, alcoholic beverages, or non-food items are to be sold or served at the special event;

(3) Whether the special event requires the provision of utility services or the erection of temporary structures;

(4) Whether the special event poses any traffic and pedestrian safety concerns; and

(5) The risks inherent with respect to the proposed special event.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-15. Indemnification.

The special event organizer and any other persons on whose behalf the application is made must covenant and agree in writing that they will, jointly and severally, indemnify and hold the city harmless against liability for any and all claims, judgments and associated legal expenses and costs and for claims and litigation arising out of the special event including, but not limited to, those for damage to property or injury to or death of persons. The agreement shall be in a form approved by the city attorney.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-16. City co-production or city co-sponsorship of special events.

(a) Upon receipt of a request and documentation supporting the criteria herein, the MOSE director may approve a city co-produced or city co-sponsored special event provided:

(1) The special event has been approved by the MOSE director and the appropriate director and the requisite departmental budget funds and adequate city personnel resources are available to provide the

necessary city services based upon the size and nature of the special event; and

(2) The special event either:

a. Furthers a public purpose for the use of parks, streets or other city property; or

b. Promotes civic pride or honors historically-significant events or persons of particular significance to the nation, the state or city.

(b) City co-production or city co-sponsorship of any special event involving commercial activity shall require a revenue sharing agreement pursuant to section 25-17 of this Code.

(c) Event user fees associated with city co-production or city co-sponsorship of any special event consisting solely of non-commercial activity shall be waived provided the special event organizer maintains the reserved area and all other city property and facilities used in conjunction with the special event in good order and condition, subject to normal wear and tear.

(d) All appeals of denials of a request of a city co-produced or city co-sponsored special event shall be conducted in the same manner provided in section 25-11 of this Code.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-17. Revenue sharing agreements.

(a) MOSE may enter into a revenue sharing agreement with a special event organizer for a city co-produced or city co-sponsored special event which provides for the waiver, in whole or in part, of the city's fees associated with the special event, including event user fees, in return for payment to the city of a percentage of special event gross revenues, a flat fee, or a combination thereof. In addition to the information required in section 25-5 of this Code, a special event organizer subject to a revenue sharing agreement shall provide the MOSE director with written documentation containing:

(1) The extent of commercial activity, such as entertainment and the sale of food, alcoholic beverages, goods and services during the special event;

(2) The benefit or appeal the special event would provide to the general public;

(3) The extent of product advertising or promotion during the special event;

(4) A list of all businesses that will participate in the special event and the nature of their participation;

(5) The anticipated revenue of the special event organizer and all other participants in the special event from all sources, including, but not limited to sponsorships, donations, admission fees, and the sale of goods or services; and

(6) The basis upon which revenues will be shared amongst the special event organizer and all other participants.

(b) MOSE shall determine all costs to be incurred as a result of the city's co-production or co-sponsorship of the special event, including costs of personnel, equipment, maintenance, cleanup and any other city services required. No revenue sharing agreement may be approved under this section unless all city costs are reasonably anticipated to be recovered, or such costs have been approved for waiver under this Code. A special event organizer entering into a revenue sharing agreement under this article shall allow the MOSE director or director of finance to inspect all records of the special event organizer pertinent to the revenue sharing agreement, including all records within the actual or constructive custody of the special event organizer relating to all revenue sources including, but not limited to sponsorships, donations, admission fees, and the sale of goods or services at the special event.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-18. Accounting practices.

(a) The MOSE director or appropriate director shall furnish the director of the department of finance and the city controller with an accounting of all event user fees and city revenues received for all special events, including, but not limited to special events in which the city has entered into a revenue sharing agreement pursuant to section 25-17 of this Code.

(b) The MOSE director shall deposit all city revenues derived from and associated with special events in bank depository accounts held and managed by Houston Civic Events, Inc., a non-profit, local government corporation and component unit. All city revenues deposited with Houston Civic Events, Inc. shall be:

(1) Held in trust for the exclusive benefit of, and are designated for the city's exclusive use in, the promotion, coordination, production, and sponsorship of special events and shall not be used for any other purpose;

(2) Remitted to the city in any amount up to and including the balance of all city revenues deposited and held by Houston Civic Events, Inc. upon the receipt of written notice from the MOSE director or the director of finance authorized pursuant to the request and approval of city council; and

(3) Deposited therewith and shall be held in a manner consistent with general accounting practices of the city and state law.

(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010; Ord. No. 2014-992, § 2, 11-12-2014)

Sec. 25-19. Annual fee increase.

Notwithstanding any maximum fee established by this chapter, the fees set out herein, as adjusted according to this section, shall be automatically increased on the first day of each subsequent fiscal year by a percentage equal to the percentage increase to the Producers Price Index, if any, over the previous year ("the PPI Adjustment"). If there is a decrease or if there is no increase in any given year, the fees for that year shall remain the same as in the previous year.

(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-20. Regulations.

The MOSE director is authorized to adopt regulations consistent with and necessary for the implementation of the provisions of this chapter. The regulations shall be subject to the approval of the city attorney and the director of finance. A copy of any regulations so promulgated shall be made available upon request in the MOSE director's office for inspection and for purchase at the copy fee provided by law.

(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-21. Offenses.

(a) A person commits an offense under this section if they conduct a special event:

(1) Without an approved special event permit;

(2) After the approved special event permit is suspended or revoked; or

(3) In violation of an approved permit provisions.

(b) Any offense committed under this article is a misdemeanor punishable upon conviction by a fine not to exceed $2,000.00.

(Ord. No. 2022-958, § 4, 12-7-2022)

Secs. 25-22—25-49. Reserved.

ARTICLE II. STREET FUNCTIONS

Sec. 25-50. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings provided in this section, except where the context clearly indicates a different meaning:

Central business district has the meaning provided in section 42-1 of this Code.

Civilian traffic controllers means civilian police department personnel deployed to assist in providing traffic control services during duly authorized parades, street functions, and special events. Civilian traffic controllers shall be under the direct supervision of police department law enforcement officers certified under the laws of this state.

Director of Houston Public Works means the Director of Houston Public Works or the director's designee.

Major function, for purposes of the review of applications under this article, means any

function that will involve the closure of any portion of a major thoroughfare or major collector street, except:

(1) A function in the nature of a race or fun run in which the participants follow prescribed routes and is conducted in such a manner that the streets may be closed and opened on a rolling basis as the participants pass; or

(2) A function conducted within the central business district, including that portion of Allen Parkway between Bagby Street and Shepherd Drive, and Memorial Drive between Bagby Street and Waugh Drive, provided that the function will not cause the closure of any street during the hours of 7:00 a.m. through 6:00 p.m. on any day that is not a Saturday, Sunday or holiday observed by the closure of city offices.

Minor function, for purposes of the review of applications under this article, means any function that is not a major function as defined herein.

(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010; Ord. No. 2018-11, § 14, 1-10-2018)

Sec. 25-51. Permit required.

It shall be unlawful for any person to use a public street or portion thereof for the purpose of conducting or holding a street dance, block party, fun run or other pedestrian or wheelchair race, bicycle race, festival, or other function requiring the closing of the street or a portion thereof to normal vehicular traffic, unless the function is being conducted in compliance with a permit issued under this article.

(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-52. Permit issuance.

(a) Permits under this article shall be issued by the MOSE director. The MOSE director, in conjunction with the Director of Houston Public Works, shall approve the application for a permit unless the MOSE director determines that the proposed function will unreasonably interfere

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with the flow of traffic or with the use and enjoyment of properties, whether used for residential, commercial or other purposes, in the vicinity of the function or unless the special event organizer fails to demonstrate that it will comply with all provisions of this article. The MOSE director may condition approval upon full compliance with section 25-53, 25-55, or 25-59 below if the special event organizer has not yet provided cost deposits or the requisite proof of insurance as specified in section 25-59 of this Code.

(b) In determining whether the event will unreasonably interfere with the flow of traffic or with the use and enjoyment of properties in the vicinity of the function, the MOSE director and Director of Houston Public Works shall consider:

(1) The expected general flow of traffic upon the street or streets affected at the time proposed for the function;

(2) The existence, if any, of alternative routes for public transit vehicles and private vehicles;

(3) Whether the function will significantly affect the city's ability to deliver police, fire and medical emergency services to the function site and in the vicinity of the function site;

(4) The availability of public parking, public restroom facilities, public trash receptacles and other amenities in the vicinity where the function will be conducted to accommodate the number of persons that are expected to attend the function;

(5) Whether the function will include amplified music or other sound sources that may be expected to create a noise disturbance; and

(6) The extent, if any, of disruption to the use and enjoyment of residential, business, industrial and governmental facilities located in the vicinity of the proposed function.

(c) In considering the foregoing criteria, the MOSE director and Director of Houston Public Works shall review records, if any, from prior similar events conducted at or near the proposed site, whether conducted by the special event organizer or others, and the special event organizer's prior history of compliance, if any, to determine whether there has been a history of traffic control problems, littering and trash removal problems, noise or other disruptions associated with the event or other events conducted by the special event organizer.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 25-53. Police review.

Each application shall be referred by the MOSE director to the police chief for a determination of the law enforcement officer staffing reasonably required to provide security control services for the function and service calls relating to the function, including not only the street or streets to be closed but any other streets or public areas in the vicinity that may be utilized for alternative routes or for parking of vehicles of persons attending the function. In making the foregoing determination, the police chief shall consider whether alcohol will be served or allowed at the function as a factor in establishing the appropriate staffing level. The special event organizer must agree to either:

(1) Pay to the city the total salary cost(s) of providing the designated number of law enforcement officers, required supervisory personnel, and civilian traffic controllers, in which instance the special event organizer shall furnish a deposit sufficient to cover the cost of the same not less than 10 business days prior to the event; or

(2) Furnish the police chief with a security control plan detailing the proposed number of law enforcement officers certified under the law of this state who will provide security control services during the proposed event. Such law enforcement officers shall be paid directly by the special event organizer. However, no law enforcement officer who is regularly employed by the city may be utilized under this item (2) unless the officer executes an understanding of third party

compensation provided by the city for working at the event. The understanding of third party compensation shall be in a form approved by the city attorney;

provided that, consistent with the analyses of security, traffic and crowd control needs, and in order to maintain a command structure for the function, the police chief may require that all or a portion of the designated number of peace officers be on-duty Houston Police Officers for which the special event organizer shall make payment to the city under item (1) of this section.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-54. Emergency response capability.

The special event organizer must agree to conduct the function in such a manner that at least one lane of the street or streets to be utilized will be capable of being opened at all times for access by persons requiring emergency access to properties abutting the function and by police, fire, ambulance and other emergency vehicles. The special event organizer must also agree to provide a person on-site during the function to coordinate response activities with city officials. Consistent with the nature and size of the function, the special event organizer must also agree to provide a public address system for the function site if the police chief determines that the system is necessary or desirable to facilitate emergency responses during the function.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-55. PWE review; traffic control plan.

Each application shall be referred by the MOSE director to the Director of Houston Public Works for a determination of traffic control services reasonably required for the proposed street function. Based upon availability of the city resources and city personnel, the Director of Houston Public Works shall either:

(1) Elect to establish a plan for the deployment of the appropriate traffic control devices, such as cones, street barricades, and signage, as required for the proposed street function; or

(2) Require the special event organizer to submit a traffic control plan for review and subsequent approval by the traffic engineer.

(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 25-56. Payment of traffic control services.

The special event organizer must agree to either:

(1) Pay the costs of providing Houston Public Works employees to deploy and remove the traffic control devices if the Director of Houston Public Works determines that the city does have available the resources and personnel necessary to deploy the appropriate traffic control devices for the proposed street function. Such costs must be paid not less than ten business days prior to the proposed street function date; or

(2) Hire and pay all personnel necessary to deploy and remove traffic control devices as required for the proposed street function.

(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010; Ord. No. 2018-11, § 15, 1-10-2018)

Sec. 25-57. Disposition of fees.

All costs recovered in relation to the provision of city security control services and traffic control services shall be allocated to the city's general fund administered by the department of finance.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-58. Indemnification.

The special event organizer and any other persons on whose behalf the application is made must covenant and agree in writing that they will, jointly and severally, indemnify and hold the city harmless against liability for any and all claims, judgments and associated legal expenses and costs and for claims and litigation arising out of the function including, but not limited to,

those for damage to property or injury to or death of persons. The agreement shall be in a form approved by the city attorney.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-59. Insurance.

The provision of insurance for street functions shall be considered in the same manner provided in section 25-14 of this Code.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-60. Application filing and review generally.

(a) Applications for functions shall be filed on a form promulgated by the MOSE director. An application for a function may be filed with the MOSE director no sooner than 365 days prior to the commencement date of the function, provided that if the 365th day falls on a Saturday, Sunday, or day observed as a holiday for employees of the city, then the application may be filed no earlier than the next day that is not a Saturday, Sunday, or holiday observed by the closure of city offices. Prematurely filed applications, or applications that do not meet all requirements of this article, shall be of no force and effect and shall be returned to the special event organizer. An application for a major function shall be filed not less than 120 days prior to the commencement date of the function. An application for a minor function shall be filed not less than 40 days prior to the commencement date of the function, provided that: (i) a special event organizer for a minor function who wishes to retain the right of an appeal to city council shall file an application more than 120 days prior to the commencement date of the function; and (ii) applications for minor functions that require the closure of a freeway entrance or exit ramp shall be filed not less than 90 days prior to the proposed event date. Applications shall be filed in accordance with forms and procedures promulgated by the MOSE director.

(b) Applications for minor functions shall be considered in accordance with this subsection. The MOSE director shall approve or deny each application for a minor function within ten business days after the completed application is received. In the event that a minor function application is denied, the MOSE director shall mail written notice of the grounds for denial to the special event organizer. A special event organizer whose application is denied may request a hearing on the matter by filing a written request with the MOSE director within ten days following the date the MOSE director mails the notice of denial.

(c) Applications for major functions shall be considered in accordance with this subsection:

(1) The MOSE director shall review the application and advise the special event organizer whether it is materially complete and in proper form within ten business days following the receipt of the application. If it is not, the application shall be returned to the special event organizer with a written explanation of the deficiencies.

(2) If the application is determined to be complete and in proper form, the MOSE director shall cause notice of the application filing to be advertised in one or more of the following manners as determined to be applicable by the MOSE director, based upon the nature and location of the major function:

a. Advertisement one time in a newspaper of general circulation and/or in one or more community newspapers that serve the area where the major function will be conducted;

b. Posting of one or more placards along the major thoroughfare or major collector street where the major function will be conducted; and

c. Furnishing of a written notice by regular mail to the last known address of any person who has in writing requested notice from the MOSE director of any permit application for a major function to be held in the vicinity where the major function is proposed to be conducted.

The MOSE director may require the special event organizer to provide or pay for newspaper notices or placards posted and to furnish evidence thereof to the MOSE director. The notice(s) shall be in a form prescribed by the MOSE director and shall contain the name of the event, date or dates of the event, streets, roadways, and thoroughfares affected by the event, and a city office telephone number that interested persons may call for further information. The placard shall not contain advertising, including but not limited to any information concerning the name or logo of any sponsor, or any persons making a contribution to, or endorsement of, the proposed major function. If the special event organizer fails to promptly give the notices or provide security for the notices following the MOSE director's request, the MOSE director shall return the application to the special event organizer.

(3) If, following the completion of the publication and/or mailing of the notices, the MOSE director receives written notice from any person who resides or works or owns or operates a place of business in the vicinity of the proposed major function and whose interests may be affected by the major function, the MOSE director shall conduct, or designate another person as hearing officer to conduct, a hearing regarding the application to determine whether the permit may be issued in compliance with this article. A person who gives such notice shall upon request be allowed by the MOSE director to intervene and participate in the hearing as a party-intervenor thereto. Such written notice must be received by the MOSE director not later than 90 days prior to the proposed street function date.

(d) Hearings conducted under this section, whether for minor functions under subsection (b) or major functions under subsection (c) shall be governed by rules established by the MOSE director, which shall be consistent with principles of due process and shall provide that any party may be represented by legal counsel, may call witnesses and provide evidence and may cross examine witnesses. The burden shall be upon the special event organizer to demonstrate by clear and convincing evidence that the proposed function will comply in all respects with each requirement of this article. The hearing shall be conducted by an impartial hearing officer who shall issue a decision in writing and shall specify the grounds for denial therein if the application is denied. A copy shall be mailed to the special event organizer and any intervenors. Upon request of the MOSE director, the legal department shall act as counsel to the hearing officer.

(e) Each application for a street function permit must be accompanied by the non-refundable fee stated for this provision in the city fee schedule. All tendered fees must be in the form of cash, cashier's check, money order, or other method of payment accepted by the city.

(f) Applications for street function permits shall be accepted by MOSE between the hours of 8:00 a.m. and 5:00 p.m. on any day that is not a Saturday, Sunday, or day observed as a holiday for employees of the city.

(g) The MOSE director may require that a special event organizer modify any portion of the proposed event location, subject to the review and written approval of the PWE director and police chief, if:

(1) The Director of Houston Public Works and police chief determine that the time, route, or size of the proposed event will substantially disrupt the use of any street that is ordinarily subject to significant traffic congestion;

(2) The MOSE director is unable to secure the requisite approval of the use of any freeway entrance and/or exit ramps or any portion of a state-owned highway or road included in the event; or

(3) The Director of Houston Public Works and police chief determine that the proposed event will substantially affect the city's ability to deliver police, fire,

and medical emergency services to the proposed event location and in the vicinity of the proposed event location.

The special event organizer shall provide the requisite modified event location not more than two calendar days after receipt of notice from the MOSE director.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 25-61. Reasons for denial of a street function permit.

(a) The MOSE director may deny a street function permit if the special event organizer has failed to meet any of the requirements for submitting an application for a street function permit.

(b) The MOSE director may also deny a street function permit if, after reviewing the application:

(1) The special event organizer demonstrates an inability or unwillingness to conduct a street function pursuant to the terms and conditions of this article;

(2) The special event organizer demonstrates an inability or unwillingness to conduct a street function pursuant to the terms and conditions set forth in the street function permit application;

(3) The special event organizer has failed to conduct a previously authorized street function in accordance with law or the terms of a previously issued street function permit, or both;

(4) The street function will significantly affect the ability of the city to render necessary services to its residents, based upon its equipment and personnel resources and other ongoing functions and responsibilities of its affected departments, including the police and fire departments and Houston Public Works; or

(5) The special event organizer has been informed that the proposed street function location must be modified in accordance with subsection (g) of section 25-60 above, and the special event organizer fails or refuses to modify the proposed street function location.

(Ord. No. 2010-011, § 2(Exh. A), 12-1-2010; Ord. No. 2018-11, § 16, 1-10-2018)

Sec. 25-62. Revocation of a street function permit.

(a) A street function permit may be revoked if the MOSE director determines that:

(1) A violation of any condition of the permit exists, including failure to obtain written approval for any security or other plans required under this Code or to implement any such plans;

(2) The street function poses an immediate threat to health or safety;

(3) The special event organizer or any person associated with the event has failed to obtain any other permit required pursuant to this Code or other applicable law;

(4) The street function permit was issued in error or contrary to law; or

(5) The special event organizer demonstrates an inability or unwillingness to conduct a street function pursuant to the terms and conditions set forth in the street function permit application.

(b) Any threat to health or safety requiring immediate revocation of a permit shall authorize the MOSE director or any other person authorized by the city to notify the special event organizer verbally of such revocation.

(c) Except as provided in subsection (b) of this section, notice of revocation shall be in writing and set forth specifically the reasons for the revocation.

(d) The appeal of a revocation shall be handled in the same manner and under the same time requirements as denials of permits.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-63. Appeal of permit denial or revocation.

Where a right of appeal to city council exists, all appeals of the denial or revocation of a permit shall be conducted in the same manner provided in section 25-11 of this Code. Where a right of appeal to city council is not available, the decision of the hearing officer shall exhaust the special event organizer's administrative remedies regarding the denial or revocation of a permit application for a major or minor function.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Secs. 25-64—25-100. Reserved.

ARTICLE III. PARADES

Sec. 25-101. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings provided in this section, except where the context clearly indicates a different meaning:

Civilian traffic controllers has the meaning provided in section 25-51 of this Code.

Conditional permit means a permit subject to the satisfaction of conditions that if not satisfied within the time allotted shall result in the automatic revocation of such permit.

Director of Houston Public Works means the Director of Houston Public Works or the director's designee.

Disbanding area means the area where parade participants, floats, vehicles, and animals disband following a parade.

Downtown area has the meaning provided for the term central business district in section 42-1 of this Code.

Final permit means a permit issued upon the satisfaction of all requirements of this article.

Holiday means any day officially recognized by the city as a holiday for its employees observed by the general closure of city offices.

Intersection means the junction of any two streets within the parade route, but shall not include any staging or disbanding area.

Non-revenue-generating parade means any parade for which no participation fee is charged or for which no cash is accepted or collected as sponsorship or in support of the proposed parade.

Parade means a procession of pedestrians, vehicles, or animals, or any combination thereof, traveling in unison along or upon a street, road, or highway, organized and conducted for the purposes of attracting the attention of the general public and/or expressing or celebrating views or ideas by use of verbal, visual, literary, or auditory means of communication. A parade shall not mean a procession of vehicles operated in compliance with ordinary traffic laws or a procession of pedestrians along or upon public sidewalks or private property.

Revenue-generating parade means any parade for which a participation fee is charged or for which any cash is accepted or collected as sponsorship or in support of the proposed parade.

Special event holiday means any holiday proclaimed by the mayor as a special community celebration.

Staging area means the area where parade participants, floats, vehicles, and animals assemble prior to a parade.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010; Ord. No. 2018-11, § 17, 1-10-2018)

Sec. 25-102. Permit required; security and traffic control.

(a) It shall be unlawful for any number of persons, delegations, or associations of persons, or for any company, circus, or group to conduct a parade along or upon the streets of the city without first obtaining a permit to do so.

(b) It shall be unlawful for any number of persons, delegations, or associations of persons, or for any company, circus, or group to conduct a parade upon any esplanade, median, median strip, or traffic island designed for the purpose of

separating or directing vehicular traffic. No permit shall be required for the use of the sidewalks of the city for any procession or parade.

(c) Upon receipt of a permit, any number of persons, delegations, or associations of persons or any company, circus, or group may conduct a parade along or upon the streets of the city subject to the provisions of this article and other applicable laws.

(d) In no event shall the city provide security control services or traffic control services for more than two parades on the same calendar day.

(e) The use of city security control services and traffic control services shall be provided on a first-come, first-served basis based upon the special event organizer's declaration as required by item (12) of section 25-106 of this Code.

(f) If a special event organizer requests the use of city security control services and traffic control services along a parade route, and the city has the necessary resources available to provide the requisite security and traffic control services, such services shall be provided as follows:

(1) At no cost for the first 12 intersections along the proposed parade route.

(2) For each intersection thereafter along the proposed parade route, for the per intersection fee stated for this provision in the city fee schedule.

(g) In the event that the city is unable to provide traffic control services for the proposed parade or the special event organizer elects to provide its own traffic control services, the use of non-city personnel to perform traffic control services shall require the submission of a traffic control plan prepared in conformance with the Texas Manual on Traffic Control Devices. The submitted traffic control plan shall be subject to the review and written approval of the Director of Houston Public Works. The use of non-city personnel to provide public security control services during a parade shall require the submission of a security control plan subject to the review and written approval of the police chief.

(h) All costs recovered in relation to the provision of city security control services and traffic control services shall be allocated to the city's general fund administered by the finance department.

(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 25-103. Parade route restrictions in downtown area.

Subject to the approval of the MOSE director and Director of Houston Public Works, a special event organizer may design its own parade route for a parade to be held in the downtown area with the following restrictions:

(1) A parade held on a Saturday, Sunday, holiday, or special event holiday may include no more than 25 street intersections and must be completed in no more than three hours.

(2) A parade held on a day other than a Saturday, Sunday, holiday, or special event holiday may include no more than 10 street intersections. No permit shall be granted for a parade to occur between the hours of 10:00 p.m. and 9:00 a.m., 11:00 a.m. and 1:00 p.m., and 4:00 p.m. and 7:00 p.m. on a day other than a Saturday, Sunday, holiday, or special event holiday.

(3) The parade must be conducted in such a manner that to the extent that the route includes any entrances to or exits from off-street vehicle parking, loading, or customer service facilities, whether public or private, the width of the parade procession shall be controlled at those facilities so that at least one lane of the street may safely be left open for vehicular access to each vehicle facility from the nearest cross street.

(4) A parade route may not include any streets or portions of streets that are located west of Bagby Street, south of Jefferson Street, east of Chartres Street, or north of Congress Street.

(5) A parade route must in its entirety be located either:

a. On Fannin Street or other streets or portions of streets located to the east of Fannin Street; or

b. On Travis Street or other streets or portions of streets located to the west of Travis Street.

(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 25-104. Parades outside of downtown area.

(a) Permits for parades outside of the downtown area shall be issued in conformance with all the provisions of this article. No permit shall be issued for a parade that includes streets located both inside and outside the downtown area.

(b) Subject to the approval of the MOSE director and Director of Houston Public Works, a special event organizer may design its own parade route for a parade to be held outside the downtown area with the following restrictions:

(1) The route may not exceed one and one-half miles in length and may not include more than 25 intersections, whichever is less.

(2) The maximum time necessary for completion of the parade may not exceed three hours.

(3) A parade held on a day other than a Saturday, Sunday, holiday, or special event holiday, must be completed in no more than one hour, and must begin at 10:00 a.m., 2:00 p.m., or 7:00 p.m.

(4) If more than one parade is to be held on the same calendar day and time, the parade routes and staging and disbanding areas of each parade may not be within five miles of one another.

(5) No parade route shall contain any portion of the following streets, roads, or highways:

a. Interstate Highway 610 Loop, including its service roads.

b. U.S. Highway 59, including its service roads.

c. Interstate Highway 45, including its service roads.

d. U.S. Highway 290, including its service roads.

e. Interstate Highway 10, including its service roads.

f. State Highway 288, including its service roads.

g. Controlled access portions of U.S. Highways 90 and 90-A, including their service roads.

h. The Hardy Toll Road, including its service roads.

i. Beltway 8, including those portions known as the Sam Houston Toll Road, and its service roads.

j. State Highway 225, including its service roads.

k. Controlled access portions of State Highway 249, including its service roads.

l. State Highway Spur 5, including its service roads.

m. Westpark Toll Road.

n. State Highway Spur 527, including its service roads.

This provision shall not be construed to prohibit a parade route from crossing one of the listed streets, roads, or highways while traveling along or upon a non-listed street, road, or highway.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 25-105. Permit application generally; issuance, etc.

(a) An application for a parade permit shall be submitted on a form supplied by the MOSE director, signed by the special event organizer or, if the special event organizer is other than an individual, a person authorized for that purpose by the special event organizer, and filed with MOSE.

(b) An application for a parade permit that requires the closure of a freeway entrance or exit ramp or any portion of a state-owned controlled access highway shall be filed not less that 90 days prior to the proposed parade date.

(c) The MOSE director shall review each application to ensure that the time, place, and manner of the proposed parade complies with the provisions of this article. The MOSE director shall:

(1) Notify the special event organizer of the denial of the application if it is found to conflict with another parade already permitted for the same time, location, and date, or to be incomplete or to violate any provision of this Code, which notice shall set forth the reasons for the denial;

(2) Issue a final permit as provided in section 25-163 of this Code if the special event organizer has satisfied all requirements of this article for the proposed parade; or

(3) Issue a conditional permit, if additional requirements are to be satisfied in the future but within the time allotted by this article.

(d) The issuance of a conditional permit shall not authorize a special event organizer to conduct a parade at the requested time, place, or date and shall serve only to reserve the time, place, and date of the proposed parade route pending the special event organizer's timely satisfaction of all other requirements of this article applicable to the parade requested, including but not limited to the provision of required insurance, the payment of costs for security control services and traffic control services, or any other requirement.

(e) Each application for a parade permit must be accompanied by the non-refundable fee stated for this provision in the city fee schedule. All tendered fees must be in the form of cash, cashier's check, money order, or other method of payment accepted by the city.

(f) If at the time of submitting the parade application a special event organizer of a non-revenue-generating parade is unable to pay the full amount of the permit application fee pursuant to subsection (e), the fee shall be reduced to that amount the special event organizer is able to pay, provided the special event organizer submits a sworn affidavit, on a form provided by the city attorney, containing the following information:

(1) A statement that the special event organizer and the group or organization on whose behalf the application is made are unable to pay the full amount of the permit fee for the parade; and

(2) A statement of the exact amount the special event organizer and the group or organization on whose behalf the application is made are able to pay for the permit fee at the time the application is delivered to MOSE.

(g) Applications for parade permits shall be delivered to MOSE between the hours of 8:00 a.m. and 5:00 p.m. on any day that is not a Saturday, Sunday, or holiday.

(h) Applications for parade permits may be filed no earlier than the 365th day prior to the date of the requested parade, provided that if the 365th day falls on a Saturday, Sunday, or holiday, then the application may be filed no earlier than the next day that is not a Saturday, Sunday, or holiday. Prematurely filed applications, or applications that do not meet all requirements of this section, shall be of no force and effect and shall be returned to the special event organizer.

(i) The numbers of parade permits that may be issued shall be subject to the following limitations:

(1) Only one permit shall be issued for a parade to be conducted in the downtown area on the same day;

(2) Only four permits may be issued for parades to be conducted on the same calendar day in the city limits; and

(3) Permits may not be issued for conflicting times. For purposes of this provision, parades are considered to be conflicting if their starting times are less than four hours apart; provided, however, the Direc-

tor of Houston Public Works, in conjunction with the police chief, may exercise professional judgment in waiving the aforementioned four-hour provision provided:

a. The proposed parades will not substantially disrupt the use of any street in and around the parade route's respective locations; and

b. The Director of Houston Public Works and police chief:

[1] Determine that their respective departments have the appropriate amount of city personnel and resources available to monitor the parades based upon the estimated number of parade participants; or

[2] Approve a special event organizer's submitted security control plans and traffic control plans to hire and pay all personnel necessary to provide security control services and traffic control services along the proposed parade routes.

(j) Parade permits shall be issued in the order in which completed applications that comply with all applicable requirements of this article are received by MOSE.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 25-106. Application information.

The application for a parade permit shall contain the following information:

(1) The name, address, and telephone number of the special event organizer, as well as the name, address, and telephone number of the individual who will be on-site and in charge of conducting the parade for the special event organizer and will be responsible to city officials for ensuring that the parade is conducted in compliance with this article and other applicable laws.

(2) The date requested for the parade and the time of day requested.

(3) The estimated duration of the parade and proposed route thereof.

(4) The estimated number of animals that will be used in the parade.

(5) The estimated number of individual persons who will participate in the parade.

(6) The estimated number, if any, of animals and riders, animal-drawn vehicles, floats, motor vehicles, motorized displays, and marching units or organizations, such as bands, color guards, and drill teams, that will participate in the parade.

(7) A statement that the individual submitting the application is fully authorized to act and contract for the special event organizer, together with documents satisfactory to the MOSE director showing the authority of such individual.

(8) A provision, in a form approved by the city attorney, whereby the special event organizer contracts and agrees to indemnify and hold the city harmless against liability for any and all claims, judgments, and associated expenses, for damage to property or injury to or death of persons arising out of or resulting from conduct of the parade proximately caused by or resulting from the acts or omissions of the special event organizer or any person under their control, insofar as permitted by law.

(9) If required by section 25-112 of this Code, either proof of the required insurance or a declaration that proof of insurance will be provided within the time set forth in that section.

(10) A provision whereby the special event organizer and any other persons, associations, organizations, firms, or corporations on whose behalf the application is made agree to comply with any special

requirements that may be imposed or created by virtue of the proposed nature or size of the parade.

(11) A declaration as to the status of the parade as a revenue-generating or non-revenue-generating parade.

(12) A declaration that the special event organizer prefers to either:

a. Provide all necessary security control services and traffic control services with non-city personnel; or

b. Reimburse the city for the provision of security control services and traffic control services as provided in section 25-102 of this Code.

Such declaration by the special event organizer shall be final.

(13) A provision whereby the special event organizer agrees to modify the proposed parade route, subject to the review and written approval of the Director of Houston Public Works and police chief, if:

a. The Director of Houston Public Works and police chief determine that the time, route, or size of the proposed parade will substantially disrupt the use of any street that is ordinarily subject to significant traffic congestion;

b. The MOSE director is unable to secure the requisite approval of the use of any freeway entrance and/or exit ramps or any portion of a state-owned highway or road included in the proposed parade route; and/or

c. The Director of Houston Public Works and police chief determine that the proposed parade will substantially affect the city's ability to deliver police, fire, and medical emergency services to the proposed parade location and in the vicinity of the proposed parade location.

The special event organizer shall provide the requisite modified parade route not more than two calendar days after receipt of notice from the MOSE director.

(14) A statement that the special event organizer agrees to provide any other information required by the MOSE director.

(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 25-107. When application for parade permit is deemed complete.

An application for a parade permit is deemed completed when the special event organizer has provided all of the information required in section 25-106 of this Code including proof of insurance and any additional information required by the MOSE director pursuant to items (9) and (14) of section 25-106 of this Code and paid any fees or reimbursements due to the city pursuant to this or any previous permit from the city.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-108. Reasons for denial of a parade permit.

(a) The MOSE director may deny a parade permit if the special event organizer has failed to meet all of the requirements for submitting an application for a parade permit.

(b) Notwithstanding the provisions of subsection (a), the MOSE director may deny a parade permit if, after reviewing the application:

(1) The special event organizer demonstrates an inability or unwillingness to conduct a parade pursuant to the terms and conditions of this article;

(2) The special event organizer demonstrates an inability or unwillingness to conduct a parade pursuant to the terms and conditions set forth in the parade permit application;

(3) The special event organizer has failed to submit a timely parade permit application in accordance with subsections (b) and (h) of section 25-105 of this Code;

(4) The parade will significantly affect the ability of the city to render necessary services to its residents, based upon its equipment and personnel resources and other ongoing functions and responsibilities of its affected departments, including the police and fire departments and Houston Public Works; or

(5) The special event organizer has been informed that the proposed parade route must be modified in accordance with item (13) of section 25-106 of this Code and the special event organizer fails or refuses to modify the proposed parade route.

(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010; Ord. No. 2018-11, § 18, 1-10-2018)

Sec. 25-109. Procedure upon permit denial.

The MOSE director shall notify the special event organizer of any permit denial, and the reasons therefore, by placing such notice in the United States mail, certified, return receipt requested. Such letter shall be addressed to the special event organizer at the address stated on the application.

(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-110. Revocation of permit.

(a) A permit may be revoked if the MOSE director determines that:

(1) A violation of any condition of the permit exists, including failure to obtain written approval for any security control plans or other plans required under this Code or to implement any such plans;

(2) The parade poses an immediate threat to health or safety;

(3) The special event organizer or any person associated with the event has failed to obtain any other permit required pursuant to this Code or other applicable law;

(4) The permit was issued in error or contrary to law;

(5) The parade has changed from a parade that does not require insurance to a parade that requires insurance; or

(6) The special event organizer demonstrates an inability or unwillingness to conduct a parade pursuant to the terms and conditions set forth in the parade permit application.

(b) Except as provided in subsection (c) of this section, notice of revocation shall be in writing and set forth specifically the reasons for the revocation.

(c) Any threat to health or safety requiring immediate revocation of a permit shall authorize the MOSE director or any other person authorized by the city to notify the special event organizer verbally of such revocation.

(d) The appeal of a revocation shall be handled in the same manner and under the same time requirements as denials of permits.

(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-111. Appeal from permit denial or revocation.

All appeals of the denial or revocation of a permit shall be conducted in the same manner provided in section 25-11 of this Code.

(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-112. Insurance.

(a) No final parade permit shall be issued by the MOSE director for a parade to include any number of animals, floats, or motorized vehicles unless the special event organizer has delivered to the MOSE director proof that the insurance required by this section has been obtained by the special event organizer. Proof of insurance required for a parade to include any number of animals, floats, or motorized vehicles shall be delivered to the MOSE director not less than ten business days before the proposed parade date.

(b) Any special event organizer who fails to provide the requisite proof of insurance not less than ten business days before the proposed parade date shall not be granted a final parade

permit. Any conditional parade permit which may have been previously issued shall be revoked by operation of law.

(c) The proof of insurance required by this section for a parade to include any number of animals, floats or motorized vehicles not subject to state safety responsibility laws shall consist of a current policy of commercial general liability insurance to include designated premises of the parade route, staging area, and disbanding area. The policy shall bear an endorsement for the contractually assumed liability as set forth in item (8) of section 25-106 of this Code. The required policy shall name the city as an additional insured and be issued by a carrier authorized to transact business in Texas. Each policy shall contain an endorsement that the issuer waives any claim or right of subrogation to recover against the city, its officers, agents, or employees.

The insurance shall contain policy limits of not less than the following:

(1) Commercial general liability insurance with a minimum limit of:

a. *For property damage,* $1,000,000.00 for each occurrence; and

b. *For bodily injury or death,* $1,000,000.00 for each occurrence.

(2) Automobile liability insurance, covering all owned, hired and non-owned vehicles with a minimum limit of bodily injury and property damage of $1,000,000.00 combined single limit.

(d) The proof of insurance required by this section for a parade to include motorized vehicles subject to state safety responsibility laws may be in the form provided in subsection (c) or alternatively consist of proof of compliance with state safety responsibility laws for each vehicle.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-113. Final permit.

A final permit shall be issued only when the MOSE director determines that a special event organizer has provided all information, including proof of insurance and any additional information, required pursuant to section 25-106 of this Code.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-114. Parades exempt from permits.

(a) Notwithstanding the provisions of this article, no permit shall be required for a parade that meets all of the following restrictions:

(1) The parade shall not contain more than 250 individuals nor more than 12 vehicles or animals.

(2) The parade shall not contain any number of animals or vehicles that are not licensed to travel on public streets.

(3) The parade route shall not exceed one mile in length, shall contain no portion of a major thoroughfare or major collector street and may contain no streets located within the downtown area.

(4) The parade shall comply with the time restrictions contained in subsection (b)(3) of section 25-104 of this Code and shall take no longer than one hour to complete.

(5) The parade sponsors shall provide necessary traffic control services.

(b) The person who intend to conduct a parade under this section shall provide written notice of the time, day, and place of the parade to the MOSE director by hand delivering the notice or by mailing the notice by certified mail to be received by MOSE not less than ten business days before the parade.

(c) The city shall not be responsible for providing police officers or other city employees to perform traffic control functions during a parade held under authority of this section.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Sec. 25-115. Staging and disbanding areas; other uses of public streets and sidewalks.

Consistent with traffic mobility and access considerations, the Director of Houston Public Works and the MOSE director, in consultation with the police chief, may allow public streets to

be used by parade permit holders as staging and disbanding areas for parades. The use of public streets and sidewalks for purposes other than staging or disbanding are subject to the regulations set forth in article II of this chapter and sections 40-361 through 40-378 of this Code. The closure of freeway ramps associated with a parade requires the submission to the Director of Houston Public Works of a signed and sealed traffic control plan and proof of compliance with all insurance requirements at least 90 days prior to the scheduled parade date.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 25-116. Regulations.

Consistent with the provisions of this article and other applicable laws, the MOSE director may issue regulations governing the issuance of parade permits and the conduct of parades. The regulations shall be subject to the approval of the city attorney. A copy of any regulations so promulgated shall be made available upon request in the MOSE director's office for inspection and for purchase at the copy fee provided by law.
(Ord. No. 2010-911, § 2(Exh. A), 12-1-2010)

Secs. 25-117—25-150. Reserved.

ARTICLE IV. NATIONALLY COMPETITIVELY BID EVENTS

Sec. 25-151. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings assigned to them in this section, except where the context clearly indicates a different meaning:

Directors means the fire chief, chief of police, and traffic engineer, as well as the directors of the planning and development department, the administration and regulatory affairs department, and Houston Public Works and the director of any city department or other public agency that is acting as the host for a nationally competitively bid event or their designees.

National bid event period means the period commencing at 12:01 a.m. on the fourteenth day prior to commencement of and ending at 11:59 p.m. on the third day after the end of a nationally competitively bid event for which the city has been designated and by action of city council accepted the role of host-city.

Nationally competitively bid event means an event approved by city council and subsequently secured and awarded to the city in its capacity as a host-city through a competitive bid process that requires the provision of city services and is expected to draw 75,000 or more persons to simultaneously congregate in an area of one square mile or less at or near a convention and/or sporting venue within the city.

Safety zone means a zone, zones, or portions thereof as described below, which may be limited upon the request of the event producing entity with the approval of the directors.

(1) *Central Business District zone* means the area within and bounded by:

BEGINNING at the intersection of the northeasterly right-of-way line of Congress St. and the southeasterly right-of-way line of Dowling St.; then northwest along the northeasterly right-of-way line of Congress St. to its intersection with the southeasterly right-of-way line of Hutchins St.; then northeast along the southeasterly right-of-way line of Hutchins St. to its intersection with the northeasterly right-of-way line of Commerce St.; then northwest along the northeasterly right-of-way line of Commerce St. to its intersection with the northwesterly easterly right-of-way line of Milam Travis St.; then southwest north along the northwesterly right-of-way line of Milam St. to its intersection with the northeasterly right-of-way line of Franklin St.; then northwest along the easterly and northwest along the northeasterly right-of-way line of Franklin St. Travis St. to its intersection with

the centerline of Interstate Highway 10; then northwest along the centerline of Interstate Highway 10 to its intersection with the centerline of Interstate Highway 45; then southwest along the centerline of Interstate Highway 45 to its intersection with the northerly right-of-way line of Memorial Dr.; then west along the northerly right-of-way line of Memorial Dr. to its intersection with the northerly extension in the same course of the westerly right-of-way line of Taft St.; then south along the northerly extension in the same course of the westerly of right-of-way line of Taft St. to its intersection with the southerly right-of-way line of Allen Parkway; then east along the southerly right-of-way line of Allen Parkway to its intersection with the centerline of Interstate 45; then south and southeast along the centerline of Interstate 45 to its intersection with the southeasterly right-of-way line of Dowling St.; then northeast along the southeasterly right-of-way line of Dowling St. to the point of BEGINNING; provided, however, that the following area shall be excluded from the safety zone: BEGINNING at the intersection of the centerline of U.S. 59 and the southwesterly right-of-way line of Rusk St.; then northwest along the southwesterly right-of-way line of Rusk St. to its intersection with the southeasterly right-of-way line of Avenida de las Americas; then southwest along the southeasterly right-of-way line of Avenida de las Americas to its intersection with the southwesterly right-of-way line of McKinney St.; then northwest along the southwesterly right-of-way line of McKinney St. to its intersection with the southeasterly right-of-way line of La Branch St.; then southwest along the southeasterly line of La Branch Street to its intersection with the northeasterly right-of-way line of Lamar St.; then southeast along the northeasterly right-of-way line of Lamar St. to its intersection with the southeasterly right-of-way line of Avenida de las Americas; then southwest along the southeasterly right-of-way line of Avenida de las Americas to its intersection with the southwesterly right-of-way line of Dallas St.; then northwest along the southwesterly right-of-way line of Dallas St. to its intersection with the southeasterly right-of-way line of Crawford St.; then southwest along the southeasterly right-of-way line of Crawford St. to its intersection with the southwesterly right-of-way line of Polk St.; then northwest along the southwesterly right-of-way line of Polk St. to its intersection with the southeasterly right-of-way line of La Branch St.; then southwest along the southeasterly right-of-way line of La Branch St. to its intersection with the northeasterly right-of-way line of Leeland St.; then southeast along the northeasterly right-of-way line of Leeland St. to its intersection with the northwesterly right-of-way line of Jackson St.; then northeast along the northwesterly right-of-way line of Jackson St. to its intersection with the northeasterly right-of-way line of Polk St.; then southeast along the northeasterly right-of-way line of Polk St. to its intersection with the centerline of U.S. 59; then northeast along the centerline of U.S. 59 to the point of BEGINNING.

(2) *Memorial City zone* means the area within and bounded by:

BEGINNING at the intersection of the centerline of south feeder road of Interstate Highway 10 freeway and the easterly right-of-way line of

Bunker Hill Rd.; thence in a southerly direction along the easterly right-of-way line of Bunker Hill Rd. to its intersection with the southerly right-of-way line of Barryknoll Ln.; thence in a westerly direction along the southerly right-of-way line of Barryknoll Ln. to its intersection with the westerly right-of-way line of Frostwood Dr.; thence in a northerly direction along the westerly right-of-way line of Frostwood Dr. to its intersection with the southerly right-of-way line of Kingsride Ln.; thence in a westerly direction along the southerly right of way line of Kingsride Ln. to its intersection with the westerly right-of-way line of Benignus Rd.; thence in a northerly direction along the westerly right-of-way line of Benignus Rd. to its intersection with the centerline of south feeder road of Interstate Highway 10 freeway; thence in an easterly direction along the centerline of south feeder road of Interstate Highway 10 freeway to its intersection with the easterly right-of-way line of Bunker Hill Rd., the point of BEGINNING.

(3) *Galleria Area zone* means the area within and bounded by:

BEGINNING at the intersection of the centerline of the 610 West Loop Freeway and the centerline of the US 59 Freeway; thence in a southwesterly direction along the centerline of US 59 to its intersection with the westerly right-of-way line of Hillcroft Rd.; thence in a northerly direction along the westerly right-of-way line of Hillcroft Rd. and continuing in the same northerly direction along the westerly right-of-way line of Voss Rd. to its intersection with centerline of Buffalo Bayou; thence in a generally easterly direction along the meanders of the centerline of Buffalo Bayou to its intersection with the centerline of 610 West Loop, thence in a southerly direction along the centerline of 610 West Loop to its intersection with the northerly right-of-way line of Post Oak Boulevard; then in an easterly direction along the northerly right-of-way line of Post Oak Boulevard to its intersection with the easterly right-of-way line of Briar Hollow Lane; thence in a southerly direction along the easterly right-of-way line of Briar Hollow Lane to its intersection with the northerly right-of-way line of South Briar Hollow Lane; thence in an easterly direction along the northerly right-of-way line of South Briar Hollow Lane to its intersection with the easterly boundary line of East Briar Hollow Lane; thence in a southerly direction along the easterly boundary line of East Briar Hollow Lane to its intersection with the southerly right-of-way line of San Felipe St., thence in a westerly direction along the southerly right-of-way line of San Felipe St. to its intersection with the easterly right-of-way line of Mid Lane; thence southerly along the easterly right-of-way line of Mid Lane to its intersection with the southerly right-of-way line of Richmond Avenue; then westerly along the southerly right-of-way line of Richmond Avenue to its intersection with the centerline of 610 West Loop Freeway; thence southerly along the centerline of 610 West Loop Freeway to its intersection with the centerline of US 59 Freeway, the point of BEGINNING.

(4) *NRG Park zone* means the area within and bounded by:

BEGINNING at the intersection of the centerline of north service road of 610 South Loop and the northwesterly right-of-way line of S.

Main St.; thence in a northeasterly direction along the northwesterly right-of-way line of S. Main St. to its intersection with the centerline of Brays Bayou; thence in a generally northeasterly direction along the meanders of the centerline of Brays Bayou to its intersection with the southeasterly right-of-way line of Almeda Rd.; thence in a southwesterly direction along the southeasterly right-of-way line of Almeda Rd. to its intersection with the centerline of the north service road of 610 South Loop; thence in a westerly direction along the centerline of the north service road of the 610 South Loop to its intersection with the easterly right-of-way line of Fannin St.; thence in a southerly direction along the easterly right-of-way line of Fannin St. to its intersection with the southerly right-of-way line of W. Bellfort St.; thence in a westerly direction along the southerly right-of-way line of W. Bellfort St. to its intersection with westerly right-of-way line of Kirby Dr.; thence in a northerly direction along the westerly right-of-way line of Kirby Dr. to its intersection with the centerline of the north service road of 610 South Loop; thence in a westerly direction along the centerline of north service road of 610 South Loop to the point of BEGINNING.

(5) *Midtown zone* means the area within and bounded by:

BEGINNING at the intersection of the northeasterly extension in the same course of the northwesterly right-of-way line of Travis Street and the northwesterly extension in the same course of the northeasterly right-of-way line of McGowen Street;

THENCE in a southeasterly direction along that northwesterly extension, that northeasterly right-of-way line of McGowen Street and its southeasterly extension in the same course to its intersection with the northeasterly extension in the same course of the southeasterly right-of-way line of Main Street;

THENCE in a southwesterly direction along that northeasterly extension, that southeasterly right-of-way line of Main Street and its southwesterly extension in the same course to its intersection with the southeasterly extension in the same course of the southwesterly right-of-way line of Anita Street;

THENCE in a northwesterly direction along that southeasterly extension, that southwesterly right-of-way line of Anita Street and its northwesterly extension in the same course to its intersection with the southwesterly extension in the same course of the northwesterly right-of-way line of Travis Street;

THENCE in a northeasterly direction along that southwesterly extension, that northwesterly right-of-way line of Travis Street and its northeasterly extension in the same course to its intersection with the northwesterly extension in the same course of the northeasterly right-of-way line of McGowen Street, such point being the POINT OF BEGINNING.

(6) *East Downtown (EaDo) & East End Zone* means the area within and bounded by:

BEGINNING at the intersection of centerline of Navigation Blvd. and the centerline of Palmer St.;

THENCE in a southwesterly direction along the centerline of Palmer St. and its southwesterly extension to its intersection with the centerline of Harrisburg Blvd.;

THENCE in a generally northwesterly direction along the

centerline of Harrisburg Blvd. to its intersection with the northeasterly extension of the centerline of Nagle St.;

THENCE in a southwesterly direction along the extension and the centerline of Nagle St. to its intersection with the centerline of Leeland St.;

THENCE in a southeasterly direction along the centerline of Leeland St. to its intersection with the centerline of Velasco St.;

THENCE in a southwesterly direction along the centerline of Velasco St. to its intersection with the centerline of the Northbound Interstate-45 South to Northbound US-59 North/Pease Ramp;

THENCE northwesterly along the centerline of the Northbound Interstate-45 South to Northbound US-59 North/Pease Ramp to its intersection with the centerline of Emancipation Ave.;

THENCE in a northeasterly direction along the centerline of Emancipation Ave. to the centerline of Congress St.; thence in a northwesterly direction along the centerline of Congress St. to the centerline of Hutchins St.;

THENCE in a northeasterly direction along the centerline of Hutchins St. to the centerline of Commerce St.; thence in a northwesterly direction along the centerline of Commerce St. to its intersection with the centerline of North US-59 to Interstate-10 West Ramp;

THENCE in a generally northeasterly direction along the centerline of North US-59 to Interstate-10 West Ramp to its intersection with the centerline of Runnels St.;

THENCE in a southeasterly direction along the centerline of Runnels St. to its intersection with the centerline of Lottman St.;

THENCE in a northeasterly direction along the centerline of Lottman St. to its intersection with the centerline of Ann St.;

THENCE in a southeasterly direction along the centerline of Ann St. to its intersection with the centerline of North St. Charles St.;

THENCE in a southwesterly direction along the centerline of North St. Charles St. to its intersection with the centerline of Navigation Blvd.;

THENCE in a southeasterly direction along the centerline of Navigation Blvd. to the centerline of Palmer St., the beginning point.

Tent shall mean a temporary structure covered with fabric or another type of membrane. The term is intended to also include canopies and air-supported, air-inflated, and tensioned membrane structures, as well as conventional tents.

(Ord. No. 2015-1302(Corrected Ord.), § 2, 12-16-2015; Ord. No. 2016-174, § 2, 3-9-2016; Ord. No. 2016-730, §§ 2, 3, 9-28-2016; Ord. No. 2018-11, § 19, 1-10-2018; Ord. No. 2026-0228, § 2, 3-25-2026)

Sec. 25-152. Applicability.

The provisions of this article shall be applicable during a national bid event period.

(Ord. No. 2015-1302, § 2, 12-16-2015)

Sec. 25-153. Safety zones for nationally competitively bid events.

During a national bid event period, it shall be unlawful for any person to erect or cause to be erected or to use or cause to be used any tent within the safety zones other than those sanctioned and authorized by the city and the event producing entity.

(Ord. No. 2015-1302, § 2, 12-16-2015)

Sec. 25-154. Activating a safety zone.

(a) In consultation with the affected directors, the mayor is authorized to activate one or more safety zones, or a portion thereof, in the vicinity of venues utilized for the nationally competitively bid event or of necessary hotel accommodations for the nationally competitively bid event.

(b) When consulting with the mayor regarding activation of a safety zone, the directors shall take into consideration the nature of the event, the numbers of persons and vehicles expected, the street and highway configurations, the condition of and traffic flows expected on the streets, highways, and sidewalks, the location of police and fire stations, hospitals, and other critical facilities, security plans for the event, and other relevant factors.

The MOSE director shall cause the information described in section 25-157(e) of this Code to be published in a newspaper of general circulation at least one time before the national bid event period commences and shall post the notice on the same bulletin board used for open meetings notices.
(Ord. No. 2015-1302, § 2, 12-16-2015)

Sec. 25-155. Temporary taxicab rates for nationally competitively bid events.

(a) During the national bid event period temporary taxicab zones and the rates therefor shall be established using a methodology similar to that utilized to establish IAH and HOU airport flat rates described in section 46-31 of this Code.

(b) Temporary taxicab rates shall be established not more than six months prior to the beginning of the national bid event period and not less than one month before the beginning of the national bid event period.

(c) During the national bid event period, the zone taxicab rates established for certain taxicab trips within, to, and from the designated temporary taxicab zones established above shall be in effect. The affected zones and rates shall be maintained on file in the office of the city secretary and on the ARA website. They shall also be made available for inspection upon request at the office of the city secretary during normal business hours.

(d) Any applicable discount that is provided in section 46-31 of this Code shall be applied to the fare referenced in subsection (c) of this section. The provisions of this section do not excuse the operation of the taxicab's taximeter. For travel governed by this section, the fare shall be the lesser of the meter amount, less any applicable discounts, or the amount specified in this section, less any applicable discounts.

(e) Violation of this section is unlawful, and violations shall be punishable as provided in section 1-6 of this Code.

(f) Temporary signage shall be displayed in the taxicab during the national bid event period informing the customer of the temporary zone rates in effect.
(Ord. No. 2015-1302, § 2, 12-16-2015)

Sec. 25-156. Temporary taxicab and limousine driver licenses.

During a national bid event period, the director of administration and regulatory affairs is authorized to issue temporary taxicab and limousine driver licenses for the same fee as described for taxicab and limousine driver licenses in chapter 46 of this Code. In order to expedite processing temporary taxicab and limousine driver license applications, the director may waive licensing requirements articulated in chapter 46 of

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this Code, with the exception of those related to fingerprinting, which shall remain mandatory, provided the director, in the exercise of her reasonable discretion, determines the waived licensing requirements do not pose a significant threat to the public health and safety. The temporary taxicab and limousine driver licenses shall be valid only for taxicab and limousine vehicles operated in compliance with the applicable provisions of chapter 46 of this Code and only during the national bid event period. This section shall not be construed to excuse compliance with any other provision of chapter 46 of this Code.
(Ord. No. 2015-1302, § 2, 12-16-2015; Ord. No. 2016-729, § 2, 9-28-2016)

Sec. 25-156.1. Joint ground transportation airport use permits.

During a national bid event period, the director of administration and regulatory affairs, in cooperation with the director of the Houston airport system, is authorized to issue joint temporary ground transportation airport use permits that will be valid only during the national bid event period. The permits shall be issued in a manner that is, to the extent practicable, consistent with the requirements of chapter 46 and chapter 9 of this Code, upon payment to the director of administration and regulatory affairs of the fee stated in the city fee schedule.
(Ord. No. 2016-729, § 3, 9-28-2016)

Sec. 25-157. Temporary outdoor signage or displays for nationally competitively bid events.

(a) Outdoor signage or displays, including, but not limited to, portable signs, flags, streamers, pennants, banners, posters, decorative flags, video screens, balloons, electronic message boards, nighttime projections of messages, inflatables and building wraps installed by the event producing entity shall be permitted within the relevant safety zone described in this Article and upon compliance with all the applicable provisions of this chapter.

(b) Plans for signage or displays referenced in subsection (a) of this section must be submitted to the MOSE for review. The MOSE shall review the plans on an event by event basis in conjunction with the directors for compliance with all applicable national, state, and municipal safety standards as well as the Event Safety Alliance Guidelines created by the Event Safety Alliance, prior to approval and installation. The MOSE director shall notify the event producing entity of the director's determination in writing.

(c) The Event Safety Alliance Guidelines shall be available for public review in the city secretary's office. In the event a proposed signage or display is not discussed in the Event Safety Alliance Guidelines, the MOSE, in conjunction with the other directors, may establish requirements as needed. These requirements shall be maintained in the MOSE director's office for inspection and for purchase at the copy fee provided by law.

(d) Plans for signage or displays referenced in subsection (a) of this section must describe the size, height, setback, illumination, density and spacing type, other dimensions, placement location, and safety requirements of the signage or displays to be installed.

(e) The mayor or her designee shall give notice of the specific criteria for the zone to city council within a reasonable period of time prior to commencement of a national bid event period. MOSE shall publish, promulgate and make available on the city website rules and regulations that provide clear and objective standards to promote health, safety and welfare of the public, which at a minimum shall address:

(1) Traffic and transportation, including traffic plans and street closures;

(2) Impermissible and permissible signs and displays, including objective parameters regarding height, setback, illumination, density and spacing and the type and location of the displays to be installed and the time of their installation; and

(3) Relevant safety provisions, including security control plans

The website shall include a schedule for obtaining any requisite licenses or permits.

(f) Upon receipt of the director's decision to deny a plan for signage or displays, the event producing entity may appeal such decision by giving written notice to the city secretary within five business days of the date of such decision. The city secretary and city agenda director shall arrange a date for the matter to be reviewed by city council, at the next regularly-scheduled council meeting for which it is possible to give lawful prior notice of the matter after the receipt of the directors' decision and the record required by rule 12 of section 2-2 of this Code. The city secretary shall give written notice thereof to the event producing entity. The city council shall consider the appeal under the provisions of rule 12. Upon conclusion of the city council's review of the matter, the city council shall render a decision to grant or deny the requested plan for signage or displays. Such decision shall be final and shall exhaust the event producing entity's administrative remedies. If the foregoing time requirements appear inadequate to resolve the appeal prior the date scheduled for the special event, the burden shall be upon the event producing entity to expedite any filings required to request a special city council meeting, which shall be granted if reasonable under the circumstances.
(Ord. No. 2015-1302, § 2, 12-16-2015)

Sec. 25-158. Authority of MOSE.

The MOSE director shall promulgate all forms and adopt regulations consistent with and necessary for the implementation of the provisions of this article. The regulations shall be subject to the approval of the directors. A copy of any regulations so promulgated shall be made available on the city website.
(Ord. No. 2015-1302, § 2, 12-16-2015)

Secs. 28-159—25-160. Reserved.

ARTICLE V. OUTDOOR MUSIC EVENTS ON PRIVATE PROPERTY—GENERALLY

Sec. 25-161. Definitions.

For purposes of this article, the following words and phrases shall have the meanings provided in this section, unless the context of their usage clearly indicates another meaning:

Affected director means the director of any city department having jurisdiction over a core city service affected by an outdoor music event, or the director's designee.

Attendance load means the total number of allowed attendees based on the size of the outdoor music event space.

Attendance load calculation means the calculation used to determine the total number of allowed attendees, which is reached by dividing the available standing room area of the outdoor music event space by seven square feet per person.

Conditional permit means a permit subject to the satisfaction of conditions that if not satisfied within the time allotted shall result in the automatic revocation of such permit.

EMS medical director means the medical director of EMS or the director's designee.

Fire chief means the chief of the fire department or the chief's designee.

MOSE director means the director of the mayor's office of special events or the director's designee.

Outdoor music event means any form of musical entertainment provided by live performances, including but not limited to a singer, band, or disk jockey, if:

(1) The event is not a special event as defined in section 25-2 of this Code;

(2) More than 500 people attend or are expected to attend any performance;

(3) Any performer or audience member is not within a permanent structure;

(4) The event is open to the public or requires a ticket or entry fee to attend; and

(5) The event takes place on private property, unless the event takes place in a permanent outdoor stage area located on a property with an A-1 Certificate of Occupancy.

Outdoor music event organizer means any person who has submitted an application for a permit to conduct an outdoor music event pursuant to this chapter.

Police chief means the chief of police or the police chief's designee.

Permanent structure means a structure fixed to the ground by a foundation, slab, piers, poles, or other means allowed by the Houston Building Code. The term also includes a structure placed on the ground that lacks a foundation, a slab, piers, or poles, and that can only be moved through disassembly into its component parts or by techniques commonly used in house moving. The term does not apply to tents or lean-tos.

Private property means property owned by non-governmental entities. The term does not include property owned by religious organizations, as defined in Section 11.20 of the Texas Tax Code, or institutions of higher education, either public or private.

Property owner means the person or entity that has legal possession or ownership of a property.

Venue operator means the person with control over the location and the real property where the outdoor music event occurs.

(Ord. No. 2022-958, § 5, 12-7-2022)

Sec. 25-162. Outdoor music event permit required.

(a) It shall be unlawful for any person to conduct an outdoor music event without first securing an outdoor music event permit approved by the mayor's office of special events ("MOSE") director.

(b) The MOSE director, with the approval of any affected director, shall promulgate all forms and process all applications necessary to implement the provisions of this chapter relating to outdoor music events on private property.

(Ord. No. 2022-958, § 5, 12-7-2022)

Sec. 25-163. Outdoor music event permit.

(a) An outdoor music event organizer shall file a permit application with MOSE no later than the 30th day before the date the outdoor music event organizer plans to hold an outdoor music event, on a form supplied by the MOSE director and signed by the organizer. No applications shall be accepted fewer than 30 days prior to an event unless the director, in the director's reasonable discretion based on the size and complexity of the event, grants an extension of the deadline, if the event is such that MOSE anticipates that it can complete the permitting approval process prior to the start of event promotion.

(b) Each application must be accompanied by the non-refundable application processing fee as listed in the city fee schedule. All tendered fees must be in the form of cash, cashier's check, money order, or other method of payment accepted by the city.

(1) An expedited fee as listed in the city fee schedule will be assessed for applications submitted fewer than 30 days prior to an event.

(2) The application will not be approved if the event requires an expedited ramp and/or Texas Department of Transportation state right-of-way closure.

(c) The application must include:

(1) The name, street address, mailing address, electronic mailing address, and telephone number of:

a. The outdoor music event organizer;

b. Each of the outdoor music event organizer's associates and employees assisting in the promotion of the outdoor music event;

c. The registered agent for the organizer;

d. The venue operator; and

e. The property owner of the event location, if different from the venue operator.

(2) The proposed event control plan pursuant to section 25-164;

(3) A statement indicating whether the organizer has been convicted of a crime involving the misappropriation of funds, theft, burglary, or robbery;

(4) The address and a physical description of the event location;

(5) A copy of the agreement or a written description of the terms and conditions of the agreement between the venue operator and the outdoor music event organizer to use the proposed event location;

(6) The dates and times of the outdoor music event;

(7) The maximum-allowed attendance load of the usable event space;

(8) The maximum number of tickets to be sold;

(9) The expected total attendance;

(10) The maximum number of persons the outdoor music event organizer will allow to attend the event, including staff and performers, not to exceed the attendance load pursuant to the attendance load calculation;

(11) A copy of the agreement or a written description of the agreement between the outdoor music event organizer and each contracted artist who is scheduled to appear at the event along with their management's contact information;

(12) Event preparations to comply with the minimum standards of sanitation and health prescribed by Chapter 341, Health and Safety Code, and Chapter 20 of the City Code;

(13) Proof of insurance which must cover all operations of the outdoor event including, but not limited to, participants, subcontractors, vendors, exhibitors, volunteers, liquor liability, and auto, if applicable;

(14) The Tax ID Number of the entity hosting the outdoor music event;

(15) A description of any special effects or features such as hot air balloons, gun salutes (blanks only), fireworks, bands, or other similar devices or attractions to be used, if any;

(16) A list of unmanned aircraft systems (UAS) to be used, if any, and the purposes for which the UAS will be used;

(17) A description of any goods or services to be sold and a schedule of all fees to be charged;

(18) The names and portions or blocks of any park road, public street, freeway entrance or exit ramp requested to be closed for the outdoor music event;

(19) The manner in which the event is being promoted, such as print, radio, television, and social media, and;

(20) Such additional information as the outdoor music event organizer desires to include or that the MOSE director reasonably deems necessary to aid in the determination of whether the requested permit should be granted.

(d) Permits may not be transferred or assigned under any circumstances.
(Ord. No. 2022-958, § 5, 12-7-2022)

Sec. 25-164. Event control plan required.

(a) Outdoor music events must comply with an event control plan that has been approved by the MOSE director in coordination with the Houston police chief, the Houston fire chief, the EMS medical director, and the local health authority. The venue operator and the outdoor music event organizer are responsible for operating an outdoor music event in compliance with an approved event control plan.

(b) The MOSE director, in consultation with the affected directors, shall promulgate rules, regulations, and criteria to evaluate event control plans required for outdoor music events.

(c) All control plans shall be subject to review, approval, and appeal in the same manner as a permit application under this article.

(d) An event control plan for outdoor music events must include the following:

(1) Security and crowd control information that includes:

a. The number, location, and responsibilities of security personnel, including the provider/agency and command structure;

b. The number, location, and responsibilities of crowd management personnel;

c. The security coordinator's name, agency name, phone number(s), and contact information;

d. The hours security personnel will be on site;

e. Incident report procedures;

f. Plans to control crowd circulation including signage, barricades, and corrals, as applicable;

g. Plans for outdoor queuing for event entry;

h. Plans for queuing for food, beverages, merchandise, and other similar products and services;

i. The number and location of metal detectors, if any;

j. Emergency contingencies, including event stoppage and evacuation;

k. The names, street addresses, mailing addresses, electronic mailing addresses, and telephone number of an emergency contact person or persons who can be contacted 24 hours a day, seven days a week, in the event of an emergency condition involving the outdoor music event, and who will be physically present at the event throughout its duration; and

(2) Site plan information that includes:

a. All ingress, egress, and circulation of vehicular and pedestrian traffic, including emergency access for emergency responders;

b. A description of the square footage that will be accessible to the attendees immediately surrounding the performance area(s);

c. The total available standing room square footage area within the outdoor music event space;

d. The location of all tents;

e. Information required by the Fire Code, including but not limited to any planned use of combustibles, flammables, and pyrotechnics, and their locations;

f. Fire hydrant locations;

g. Locations of event exits and emergency exits; and

h. Street functions, if applicable.

(3) If the event may affect traffic on a public street, a written proposal for the operation and regulation of traffic control devices used to facilitate vehicular and pedestrian traffic safely and efficiently through a temporary traffic control zone which must be prepared in conformance with the Texas Manual on Uniform Traffic Control Devices.

(4) First aid and medical information that includes:

a. Name of providers, including command structure;

b. Number and location of medical personnel and first aid and medical stations;

c. Routes of ingress and egress for all emergency vehicles;

d. Safety precautions for adverse weather events;

e. Location of signage directing the public to first aid and medical stations;

f. Accident/incident report procedures; and

g. Confirmation that the number of first aid and medical resources meet or exceed, as calculated, the suggested resource requirements detailed in the tables of the Event Safety Alliance's The Event Safety Guide's section on Medical, Ambulance, and First-Aid Management.

(5) If the outdoor music event will include the sale or service of alcohol, the Texas Alcohol Beverage Commission ("TABC") license number and TABC temporary approval and whether attendees may bring their own alcohol for consumption at the venue;

(6) Food safety permits and protocols; and

(7) Noise abatement strategies, including a sound permit.

(e) Minimum number of exits required:

Attendance load	*Minimum number of exits*	*Minimum width of each exit (inches)*
500 to 999	4	96
1,000 to 1,999	5	120
2,000 to 2,999	6	120
Over 3,000*	7	120
*When the attendance load exceeds 3,000, the total width of exit space in inches shall not be less than the total attendance load multiplied by 0.2 inches per person.		

(Ord. No. 2022-958, § 5, 12-7-2022)

Sec. 25-165. Denial of permit.

(a) Upon review, the MOSE director shall approve an application unless:

(1) The outdoor music event organizer has failed to tender payment of any applicable fee required by this chapter or this Code;

(2) The application was not timely filed in accordance with this chapter or fails to contain information required by this chapter;

(3) The outdoor music event organizer has failed to provide an event control plan, or has not received the MOSE director's approval of a required event control plan, as well as a plan for provision of first aid or emergency medical services, sanitary facilities, site cleanup and debris removal, or off-site parking or shuttle service, as required;

(4) The size or nature of the outdoor music event space is inadequate to accommodate the anticipated attendance, will substantially interrupt the safe and orderly movement of traffic or police, fire or ambulance emergency equipment on streets adjacent to, running through, or in the vicinity of the outdoor music event, or would adversely affect the use of the adjacent area by others;

(5) The application contains a material falsehood or misrepresentation;

(6) The outdoor music event organizer has failed to timely tender any required insurance documentation;

(7) The outdoor music event organizer has failed to pay any fees due or has failed to reimburse the city for any costs or fees assessed for city services provided for a previously-permitted outdoor music event;

(8) The outdoor music event organizer has failed to provide for sufficient safety, health and sanitation equipment, services, or facilities to ensure that the outdoor music event will be safely conducted, or has proposed to utilize equipment or facilities of an unsafe nature;

(9) The outdoor music event has failed to conform to the requirements of any applicable law;

(10) The outdoor music event organizer has failed to obtain the requisite approval of any other public agency required to hold the outdoor music event; or

(11) If a listed performer has a prior conviction of inciting a riot, is under indictment for or has pending charges for inciting a riot, or has prior convictions for certain actions taking place at a music event or concert, including but not limited to reckless conduct, disorderly conduct, criminal negligence, or has a history of other similar activities including pending civil lawsuits or judgments, that information may be taken into consideration when considering the totality of the application.

(b) The MOSE director may issue a conditional permit if additional requirements are to be satisfied in the future but within the time period prescribed by this article.

(c) The issuance of a conditional permit shall not authorize an outdoor music event organizer to conduct an outdoor music event and shall serve only to reserve the time, place, and date of the proposed outdoor music event pending the outdoor music event organizer's timely satisfaction of all other requirements of this article. A conditional permit shall be automatically revoked 14 days prior to the event if the organizer has not satisfied the requirements of this article and obtained a final permit by that date.
(Ord. No. 2022-958, § 5, 12-7-2022)

Sec. 25-166. Revocation and suspension of permit.

(a) An outdoor music event permit may be revoked or suspended if the MOSE director determines that:

(1) A violation of any condition of the permit exists, including failure to obtain approval of any event control plan, failure to implement any such approved plan according to its terms, or if the event exceeds the maximum attendance listed in the approved permit application;

(2) The outdoor music event poses an immediate threat to public health or safety;

(3) The outdoor music event organizer has failed to obtain any other permit required by this Code or other applicable law;

(4) The permit was issued in error or contrary to law;

(5) There are two or more violations of section 25-169(b) associated with one outdoor music event; or

(6) A responsible party as defined in section 25-168(a)(3) has an outstanding balance for Emergency Response Costs for a prior event, pursuant to section 25-168.

(b) Except as provided in subsection (c) of this section, notice of revocation or suspension shall be in writing, shall set forth the specific reasons for the revocation or suspension, and shall be provided to the music event organizer.

(c) When there is an imminent threat to health or safety, e.g., severe weather, bomb threat/terrorist threat, imminent health concerns, fire, or blocked exits, that requires immediate revocation or suspension of a permit, the MOSE director is authorized to notify the outdoor event organizer verbally of such revocation or suspension. Such verbal notification shall be followed by a written notification from the MOSE director within 24 hours. This provision shall not in any way diminish the authority of public safety authorities to preserve public safety and enforce all applicable laws during an outdoor music event.

(d) The appeal of a revocation shall be handled in the same manner and under the same time requirements as the denial of a permit.

(e) If an outdoor music event permit is suspended on the day of the event, the MOSE director may either:

(1) Revoke the permit pursuant to section 25-167(a) if the MOSE director determines the violation or threat continues or cannot be fully addressed by the outdoor music event organizer in an adequate timeframe to ensure public health and safety; or

(2) Reinstate the permit and the outdoor music event may continue as planned if the immediate threat or violation is properly addressed and resolved.
(Ord. No. 2022-958, § 5, 12-7-2022)

Sec. 25-167. Appeal of permit denial or revocation.

(a) The decision of the MOSE director is final unless appealed under this section. An outdoor music event organizer may appeal the denial or revocation of a permit by filing a written request for a hearing with the MOSE director within ten business days of the date of such denial or revocation.

(b) A hearing shall be conducted within ten business days of the receipt of such request before a hearing conducted by an impartial hearing officer appointed by the MOSE director. The director shall not designate a person to act as hearing officer who participated in the review of the application. The appellant may be represented by legal counsel and may present evidence. The MOSE director shall explain the rationale for the denial or revocation during the hearing. The hearing officer shall have the discretion to exclude from hearings any person who is not the appellant, the MOSE director, their legal representatives, and such other persons not entitled to attend and participate as a matter of law and any persons whose presence the hearing officer deems unnecessary to the complete resolution of the matter. The hearing officer shall render a written decision on the matter within five business days of the date of the hearing and will promptly provide a copy of such decision to the outdoor music event organizer. The hearing officer's decision, which shall be based upon the preponderance of credible evidence presented, shall be final.
(Ord. No. 2022-958, § 5, 12-7-2022)

Sec. 25-168. Emergency response cost recovery.

(a) *Definitions.* In this section:

Emergency response means the provision, sending, or utilization of public service, police, firefighting, paramedics, rescue service, or any other agent of the city at an outdoor music event.

Expense of an emergency response means the direct and reasonable costs incurred by the city, or by a private person, corporation, or other entity operating at the request of or direction of the city, through the extraordinary use of public services, when making an emergency response to the outdoor music event, including the costs of providing police, firefighting, emergency medical technicians (EMT), paramedics, rescue services at the outdoor music event. These costs further include but are not limited to: all of the salaries, wages, workers' compensation benefits and fringe benefits of the city personnel responding to the incident; all salaries, wages, workers' compensation benefits and fringe benefits of the city personnel engaged in investigation, supervision and preparation of post incident reports; cost of equipment operation, cost of materials obtained directly by the city, cost of any labor or materials, and any property damage.

Responsible party means:

(1) the outdoor music event organizer;

(2) the venue operator; or

(3) the property owner of the event location.

(b) *Liability for expenses of emergency response.* The city may pursue cost recovery fees and expenses from a responsible party for an emergency response in connection with the operation of an unpermitted outdoor music event or a permitted outdoor music event that violated an approved event control plan in the amount of the expense of the emergency response.

(c) *Enforcement, billing, and collection of emergency response costs.* Any responsible party liable for the expense of an emergency response, who fails to reimburse the city within 30 days of receiving written notice of the emergency response expenses incurred by the city, shall be considered in default. If the responsible party who is liable for the debt refuses to reimburse the city, the city shall pursue collection actions.
(Ord. No. 2022-958, § 5, 12-7-2022)

Sec. 25-169. Offenses.

(a) A person commits an offense under this section if they conduct an outdoor music event:

(1) Without an approved outdoor music event permit;

(2) After the approved outdoor music event permit is suspended or revoked; or

(3) In violation of an approved event control plan.

(b) A person commits an offense if they are the responsible party or the individual named as the emergency contact person in section 25-164(d)(1)(k) for the outdoor music event, and an emergency contact:

(1) Earlier than 72 hours before the start of the event, fails to respond to a city representative within 24 hours of being contacted by the representative of the city in person, by telephone, or by email;

(2) Between 72 hours and 12 hours before the start of the event, fails to respond to the city within 4 hours of being contacted by the representative of the city in person, by telephone, or by email;

(3) Between 12 hours prior to the start of the event and the event's beginning, fails to meet police officers or code enforcement officers at the site of the promoted outdoor event within one hour of being contacted by the representative of the city in person, by telephone, or email;

(4) During the event, an emergency contact fails to be physically present at the outdoor music event to be able to immediately communicate with police officers or code enforcement officers on scene.

(c) Any offense committed under this article is a misdemeanor punishable upon conviction by a fine not to exceed $2,000.00.
(Ord. No. 2022-958, § 5, 12-7-2022)

Chapter 26

PARKING*

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***Editor's note—**Ord. No. 07-464, § 7(Exh. B), adopted April 11, 2007, amended Ch. 26, in its entirety to read as herein set out. Formerly said chapter pertained to off-street parking and loading and derived from Ord. No. 89-712, § 2, adopted 5-17-89 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

Cross references—Ambulances, Ch. 4; automotive dealers and auto wreckers, Ch. 8; manufactured homes and recreational vehicles, Ch. 29; parking rates for parking facilities, Ch. 12, div. 4; streets and sidewalks, Ch. 40; traffic, Ch. 45; vehicles for hire, Ch. 46.

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ARTICLE I. IN GENERAL

DIVISION 1. PARKHOUSTON*

Sec. 26-1. Short title.

This chapter may be known and cited as the Parking Ordinance.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alley means any street, as herein defined, of 20 feet or less in width having no legal or official name other than "alley."

Animal has the meaning ascribed in Texas Agricultural Code section 141.001 which states an animated being that is not human and has the power of voluntary action.

Appearance means either:

(1) The entry of an appearance, in person or through legal counsel, in the municipal courts system to contest a parking citation and, if required, the making of a bond in any manner authorized by law and approved by the municipal courts to secure appearance at the administrative hearing, as applicable; or

(2) The uncontested disposition of a parking citation by payment in good and sufficient funds received by the parking official in the applicable amount and manner established by the municipal courts for the uncontested payment of the fine for the parking citation, including all applicable fees and costs.

Authorized emergency vehicle means:

(1) A fire department or police vehicle;

(2) A public or private ambulance operated by a person who has been issued a license by the Texas Department of State Health Services;

*__Editor's note__—Ord. No. 2019-1015, § 2, adopted December 11, 2019, amended the title of Ch. 26, Art. I, Div. 1 to read as herein set out. Formerly said division was entitled Parking Management.

(3) A municipal department or public service corporation emergency vehicle that has been designated or authorized by the governing body of a municipality;

(4) A private vehicle of a volunteer firefighter or a certified emergency medical services employee or volunteer when responding to a fire alarm or medical emergency;

(5) An industrial emergency response vehicle, including an industrial ambulance, when responding to an emergency, but only if the vehicle is operated in compliance with criteria in effect September 1, 1989, and established by the predecessor of the Texas Industrial Emergency Services Board of the State Firemen's and Fire Marshals' Association of Texas; or

(6) A vehicle of a blood bank or tissue bank, accredited or approved under the laws of this state or the United States, when making emergency deliveries of blood, drugs, medicines, or organs.

Blockface means that portion of a block that abuts a street between two intersecting streets.

Bus means a motor vehicle designed for carrying more than ten passengers and used for the transportation of persons, and every motor vehicle, other than a taxicab or limousine, designed and used for the transportation of persons for compensation.

Bus zone means the area or space officially set apart within a roadway by one or more appropriate signs or markings for the exclusive use of buses for loading and unloading passengers.

Central business district means the area beginning at the intersection of the centerline of U.S. 59 and the centerline of I.H. 45; thence in a northwesterly and northerly direction along the centerline of I.H. 45 to its intersection with the centerline of I.H. 10; thence in an easterly direction along the centerline of I.H. 10 to its intersection with the centerline of U.S. 59; thence in a southwesterly direction along the centerline of U.S. 59 to its intersection with I.H. 45, the point of beginning.

Commercial vehicle means a truck or other vehicle that displays one or more commercial vehicle signs, but does not include a taxi, limousine, or bus.

Commercial vehicle signage means one or more magnetic signs or painted letters or decals on any side of the commercial vehicle stating, in letters at least two inches in height, the name, logo, or other designation of the person owning or operating the vehicle.

Department means the department of administration and regulatory affairs.

Digital payment means payment of a parking meter, parking zone, or parking facility fee through an online application or by using a mobile device.

Director means the director of the department of administration and regulatory affairs.

Driver means any person who drives or is in actual physical control of a vehicle.

Esplanade has the meaning ascribed in section 33-101 of this Code.

Goods means any personal property a person provides to another in exchange for compensation, including but not limited to, monetary or non-monetary compensation.

House trailer means a trailer or semitrailer:

(1) That is designed, constructed and equipped as a dwelling place, living abode or sleeping place (either permanently or temporarily) and is equipped for use as a conveyance on streets and highways; or

(2) Whose chassis and exterior shell is designed and constructed for use as a house trailer, as defined in subsection a., but is used instead permanently or temporarily for the advertising, sales, display or promotion of merchandise or services, or for any other commercial purpose

except the transportation of property for hire or the transportation of property for distribution by a private carrier.

Large vehicle means a "motor vehicle" or a "trailer," as defined herein, that is in excess of eight feet in height at the highest point on the vehicle or trailer or in excess of 22 feet in length. To the extent that any motor vehicle is coupled or otherwise attached to a trailer, then the motor vehicle and trailer shall together be deemed as constituting a single large vehicle if the combined length of the motor vehicle and trailer exceeds 30 feet.

Legal holidays means and includes only such holidays as are officially designated by the city council.

Livestock has the meaning ascribed in Texas Agricultural Code Section 1.003.

Maintenance mechanic means an employee of the department assigned to repair, service, install, and troubleshoot operational issues with the parking meters.

Median strip means the dividing area, either landscaped or paved, between opposing highway traffic lanes.

Meter or *pay station* means any mechanical or electronic device or signage that the city places or erects on property, or any internet-based application for the purpose of managing and controlling the use of parking spaces and that requires payment for use. Where the term 'meter' appears in this chapter, the reference also includes a pay station, signage, or any internet-based application where applicable.

Motor-assisted scooter has the meaning ascribed in section 551.351 of the Texas Transportation Code, as may be amended from time to time.

Motor vehicle means any vehicle that is self-propelled or propelled by electric power obtained from overhead trolley wires, but not operated upon rails.

Off-street parking means vehicular parking that is provided in a location other than in a public right-of-way.

Owner means a person, other than a lienholder, having the property interest in or title to a vehicle. The term includes a person entitled to the use and possession of a vehicle subject to a security interest in another person, but excludes a lessee under a lease not intended as security.

Park or *parking* means the standing of a vehicle, whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading passengers or merchandise except an involuntary stopping of such vehicle by reason of mechanical failure or direction of a police officer.

Parking citation means a citation, within the jurisdiction of the municipal courts of the city, issued for the alleged violation of any city ordinance or state penal law regarding the parking of vehicles.

ParkHouston means that portion of the department responsible for on-street parking, off-street metered parking, temporary restriction of access to metered parking, commercial vehicle loading zone permits, residential parking permits, newsrack permits, community parking permits, parking benefit districts, valet permits, and such other parking responsibilities as may be designated by the director from time to time.

Parking meter zone means the particular blockface in which a parking meter is located between appropriate street signage at each end of the block.

Parking official means the director or such other person as the director may designate to act as the parking management official of the city and the said official's designee.

Pedestrian means any person afoot or a person with an assisted mobility device.

Pole trailer means any vehicle without motive power designed to be drawn by another vehicle and attached to the towing vehicle by means of a reach, or pole, or by being boomed or otherwise secured to the towing vehicle, and

ordinarily used for transporting long or irregularly shaped loads such as poles, pipes, or structural members, capable, generally, of sustaining themselves as beams between the supporting connections.

Police officer means any officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations.

Public right-of-way means the area on a public roadway, highway, street, public sidewalk or alley in which the city has an interest.

Regulatory investigator or *parking compliance officer* means an employee of the department assigned to enforce the provisions of this chapter.

Rent means to grant the possession or use of a good, or to provide a service, to another for a temporary or open-ended period of time.

Rental vehicle means a motor vehicle operated pursuant to a lease, rental agreement, independent contractor vehicle for hire operating agreement, or other transaction whereby in exchange for monetary or other valuable consideration one person ("the lessor") transfers the right to possess and operate a motor vehicle to another person ("the lessee").

Residential district means the territory contiguous to and including a street or highway when the property on such street or highway for a distance of 300 feet or more is in the main improved with residences.

Roadway means that portion of a street or highway improved, designed, or ordinarily used for vehicular travel. In the event a street or highway includes two or more separate roadways, the term "roadway" shall refer to any such roadway separately but not to all such roadways collectively.

Semi-trailer means a vehicle with or without motive power, other than a pole trailer, designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that some part of its weight and that of its load rests upon or is carried by another vehicle.

Senior parking meter technician means an employee of the department assigned to collect revenue from and perform maintenance services on parking meters.

Services means any act, activity, duty, labor, delivery, or performance, whether intellectual or manual, provided in exchange for compensation, including but not limited to monetary or non-monetary compensation. Services shall not include the expeditious loading or unloading of property, goods, or merchandise from a commercial vehicle.

Sidewalk means that portion of a street between the curb lines, or the lateral lines of a roadway, and the adjacent property lines intended for the use of pedestrians.

Stop, stopping, standing, when prohibited, means any stopping or standing of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control sign or signal.

Street or *highway* means the entire width between the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel.

Taxi zone means the area or space officially set apart within a roadway by one or more appropriate signs or markings for the exclusive use of taxicabs licensed as such by the city.

Traffic means pedestrians, ridden or herded animals, vehicles, and other conveyances, either singly or together, while using any street or highway for purposes of travel.

Traffic-control device means any sign, signal, marking, or device not inconsistent with this chapter placed or erected by authority of a public body or official having jurisdiction, for the purpose of regulating, warning, or guiding traffic.

Traffic island means a raised area over which vehicles may not pass, placed at a junction of streets or between opposing traffic lanes.

Trailer means any vehicle with or without motive power, other than a pole trailer, designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that no part of its weight rests upon the towing vehicle.

Vehicle means any device in, upon, or by which any person or property is or may be transported or drawn upon a street or highway, excepting devices used exclusively upon stationary rails or tracks."

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 08-417, § 8, 5-14-08; Ord. No. 09-2, §§ 4, 5, 1-7-09; Ord. No. 2010-304, § 8, 4-21-2010, eff. 4-1-2010; Ord. No. 2010-846, § 10, 11-3-2010; Ord. No. 2011-1175, § 2, 12-14-2011; Ord. No. 2015-820, § 36, 8-26-2015; Ord. No. 2019-1015, §§ 3, 4, 12-11-2019; Ord. No. 2021-205, § 2, 3-24-2021; Ord. No. 2023-548, § 2, 7-12-2023)

Sec. 26-3. Compliance.

It is unlawful, unless otherwise declared in this chapter with respect to particular offenses, for any person to do any act forbidden or fail to perform any act required in this chapter.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-4. General powers and duties of parking official.

The parking official has responsibility for the enforcement of this chapter, with the exception of article VIII, which shall be enforced by the director of the planning and development department or the director's designee. It shall be the duty of the parking official to direct, control and manage all on-street parking in residential and commercial areas.

The parking official shall:

(1) Supervise and be responsible for the collection of revenue from and the maintenance of on-street parking meters and any city-owned and city-maintained public off-street parking meters authorized under this chapter.

(2) Be authorized to enforce all parking regulations of this chapter and the Texas Transportation Code.

(3) Maintain effective liaison and coordination with other governmental units that are active participants in the city's parking program.

(4) Prepare reasonable and necessary administrative rules, regulations and forms relating to the performance of duties under this chapter for approval by the director.

(5) Maintain a system to issue and track permits, licenses, and citations.

(6) Carry out the policies of the mayor in the overall planning effort to develop a reliable and efficient method of managing on-street parking and public off-street parking meters.

(7) Have such other duties and responsibilities as may be assigned by the mayor.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 08-417, § 9, 5-14-08; Ord. No. 08-568, § 28, 6-18-08; Ord. No. 2017-151, §§ 2, 3, 3-1-2017; Ord. No. 2019-1015, § 5, 12-11-2019)

Sec. 26-5. Rules and regulations.

The director is hereby authorized to promulgate, from time to time, reasonable rules and regulations to carry out the intent and purposes of articles I through VII, IX and X of this chapter, including, but not limited to rules for the conduct of hearings. The director shall also be responsible for promulgation of forms and establishment of fees in articles I through VII, IX and X of this chapter. A copy of the rules, regulations, forms and fee schedules shall be maintained in the office of the parking official for inspection, and copies may be purchased at the fee prescribed by law.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2011-1175, § 3, 12-14-2011)

Sec. 26-6. Regulatory investigators.

(a) Regulatory investigators shall enforce the provisions of this chapter by issuance of a parking citation on the official form prescribed by the director for such notices. Regulatory investigators shall not have any power of arrest under the authority conferred by this section. Regulatory

investigators shall be issued appropriate identification by the parking official and shall be issued the necessary forms to carry out their duties.

(b) Peace officers and other persons designated by the parking official for that purpose shall enforce the provisions of this chapter and state laws and regulations relating to the stopping, standing and parking of motor vehicles by issuance of citations on the official form prescribed by the director. Persons who are not peace officers may issue citations, but they shall not have the power of arrest. Persons designated under this section shall be issued appropriate identification and the necessary citation forms to carry out their duties. The persons shall account to the parking official for all citations issued and for all citation forms provided to them.

(c) Pursuant to Texas Occupations Code section 2308.354, regulatory investigators and other employees designated by the parking official are authorized to immobilize a vehicle or remove an immobilized vehicle upon any street or highway within the city, or upon any other property under the ownership or control of the city. Regulatory investigators and other employees designated by the parking official are also authorized to request the removal and storage of a vehicle that is located in an area where on-street parking is regulated by the city and is:

(1) Parked illegally; or

(2) Parked legally and has been unattended for more than 48 hours and the employee has reasonable grounds to believe is abandoned.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 09-1135, § 10, 11-18-09; Ord. No. 2019-1015, § 6, 12-11-2019; Ord. No. 2021-837, § 2, 9-29-2021; Ord. No. 2023-548, § 3, 7-12-2023)

Sec. 26-7. Senior parking meter technicians and maintenance mechanics.

(a) There shall be employment positions within ParkHouston for persons who shall be known as 'maintenance mechanics' or 'senior parking meter technicians.' The maintenance mechanics and senior parking meter technicians shall be selected and appointed in accordance with the established hiring practices of the city. The employees holding those positions shall be under the direction and control of the parking official or his designee.

(b) It shall be the duty of each maintenance mechanic or senior parking meter technician to collect revenues from assigned parking meters in the city at the times and in the manner prescribed by the parking official.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2019-1015, § 7, 12-11-2019; Ord. No. 2023-548, § 3, 7-12-2023)

Sec. 26-8. Signs and markings.

In this chapter, a sign, marking, or other device relating to any traffic control issue including, but not limited to, parking shall be construed to be a traffic-control device authorized under article IV of chapter 45 of this Code.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-9. Application of chapter to drivers of government vehicles.

The provisions of this chapter shall apply to the driver of any vehicle owned by or used in the service of the United States Government, this state, county or city, and it shall be unlawful for any such driver to violate any of the provisions of this chapter, except as otherwise permitted in this chapter or by state statute.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-10. Penalty for violation of chapter.

(a) It is a criminal offense for any person to violate any of the provisions of this chapter other than the provisions of articles II (except for section 26-102), IV, VI, XI, or XII of this chapter or of division 1 of article III of this chapter. Every person convicted of violating any of those provisions of this chapter for which another penalty is not specifically provided shall be punished by a fine of not less than $1.00 nor more than $200.00; provided that the penalty for violation of any provision of section 26-102 of this Code or Article X (Immobilization ("Booting") of Vehicles) of this chapter shall be a fine of not less than $300.00 nor more than $500.00;

further provided, however, that no penalty shall be greater or less than the penalty for the same offense under the laws of this state.

(b) It is a civil offense for any person to violate any of the provisions of Article II (Stopping, Standing, Parking and Operation of Vehicles) except for section 26-102 of this chapter, Division 1 of Article III (Parking Meters), Article IV (Commercial Vehicle Loading Zones), Article VI (Residential Parking Permits), Article XI (Parking Benefit Districts), or Article XII (Community Parking Program) of this chapter. Unless another fine is specifically provided by this Code or by state law, the penalty for violation of any of the aforesaid civil offense provisions shall be as follows:

Violation of	*Civil Fine*
Article II (except for sections 26-88 and 26-102)	$1.00—$200.00
Article III, Division 1	$1.00—$200.00
Article VI	$1.00—$200.00
Article XI	$1.00—$200.00
Article XII	$1.00—$200.00
Article II, Section 26-88	$500.00—$750.00
Article IV	$200.00—$500.00

(c) For violations under this chapter that are of a continuing nature, each day that the violation shall continue shall constitute a separate offense.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 08-847, § 3, 9-24-08; Ord. No. 2011-83, § 2, 2-2-2011; Ord. No. 2012-1097, § 3, 12-12-2012; Ord. No. 2019-1015, § 8, 12-11-2019; Ord. No. 2021-205, § 3, 3-24-2021)

Secs. 26-11—26-40. Reserved.

DIVISION 2. RESERVED*

Secs. 26-41—26-51. Reserved.

Secs. 26-52—26-80. Reserved.

*__Editor's note—__Ord. No. 2010-683, § 2, adopted August 25, 2010, repealed Ch. 26, Art. I, Div. 2, §§ 26-41—26-51, in its entirety. Formerly said division pertained to the Public Parking Commission and derived from Ord. No. 07-464, § 7(Exh. B), 4-11-07.

ARTICLE II. STOPPING, STANDING, PARKING AND OPERATION OF VEHICLES

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Sec. 26-87. Parking prohibitions and restrictions on specific streets generally.
Sec. 26-88. Parking areas for persons with disabilities.
Sec. 26-89. Restricted use of bus zones and taxi zones.
Sec. 26-90. Use of esplanade, median strip or traffic island.
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Sec. 26-81. Owner and operator responsible for illegal parking.

It shall be unlawful for any person, having registered in his name or owning or operating or having in charge any vehicle, knowingly to allow or suffer or permit the same to stop, stand or be parked in any street in the city in violation of any of the provisions of this chapter or other ordinances of the city regulating the stopping, standing or parking of vehicles.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-82. Parking citations issued for rental vehicles.

(a) The parking official shall cause notice to be provided by mail or electronic transmission to the registered owner of a rental vehicle that is the subject of a parking citation, provided that the registered owner has supplied information required by procedures adopted by the director in connection with this subsection. The notice shall be provided within 20 days after the issuance of the parking citation.

(b) If a parking citation is issued for a violation committed by the operator of a rental vehicle and the lessee or other person parking the vehicle fails to make an appearance on the parking citation within 30 days following the date of its issuance, then the lessor shall, within 30 days following the date of mailing of a written default notice from the parking official, pay the applicable fine for the citation including all applicable fees and costs on behalf of the lessee. Any default notice authorized to be mailed under this section may be deposited in the United States mail addressed as shown on the state vehicle registration records for the rental vehicle lessor or addressed to any other address used by the lessor for its rental vehicle business operations within the city.

(c) Nothing herein shall be construed to preclude rental vehicle lessors from obtaining a pledge of financial security from lessees or otherwise securing payment for or recovering the cost from the lessees on any parking citations that are paid on behalf of lessees hereunder.

(d) The parking official shall, from time to time, provide reports regarding collection activities under this section to the mayor and city council. Upon report that any lessor has failed to timely comply with any obligation under this section, the mayor may cause a hearing regarding the matter to be scheduled before the city council at one of its regular meetings or at a special meeting called for that purpose. The lessor shall be entitled to at least 20 days' prior written notice of the hearing and shall be provided a list of the parking citations for which the lessor is alleged to have failed to timely comply with any provision of this section. The hearing shall be conducted in accordance with procedural rules developed and promulgated by the mayor, which shall be consistent with principles of due process. If, following the hearing, the city council finds the lessor to have violated this section, then the city council may, unless otherwise prohibited by law, terminate any city license, permit, franchise, lease, concession, occupancy agreement, or other regulatory or contractual authorization or agreement by or through which the lessor or any other entity affiliated with the lessor conducts any business activities upon any premises owned or controlled by the city or upon the streets of the city. If the city council finds that the violation was not intentional and that the lessor has taken effective measures to prevent a recurrence, then it may issue a warning or suspension in lieu of a termination. The remedies provided in this section are in addition to any other action that is authorized in this Code or otherwise by law and shall not be deemed to preclude the taking of any other remedial action by the city.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2011-1175, § 4, 12-14-2011)

Sec. 26-83. Veterans' parking privileges.

(a) Pursuant to the provisions of section 681.008 of the Texas Transportation Code, as amended, the exemption from the payment of a parking meter fee for certain veterans and military award recipients shall also apply to payment of a parking fee or penalty imposed by the city for parking in a public parking garage or public parking lot. Any exemption shall not extend past the time limit applicable to the parking meter or

parking garage or lot. This exemption from paying a parking fee or penalty shall not, however, extend to parking reservations and designated valet and short-term hourly parking in Houston Airport System parking lots and parking garages. At Houston Airport System parking lots and parking garages, the time limit is set at five consecutive 24-hour periods (days) in the parking garages, and 60 days in the ecopark lots. Parking past the time limit requires payment at the posted daily parking rates for each 24-hour period (day). At parking garages managed by the Houston First Corporation, the exemption does not extend to overnight parking, and parking overnight requires payment at the posted daily parking rate.

(b) The exemption extended herein shall apply when the vehicle is being operated by or for the transportation of the registrant of the vehicle under the applicable provisions of the Texas Transportation Code. The directors who have jurisdiction over the various city-operated parking garages and lots to which this privilege applies may promulgate rules for the operation of this exemption. The rules shall be consistent with applicable state law and may include, but not be limited to, a requirement that persons requesting free parking provide a registration receipt and driver's license or other evidence that the vehicle is in fact being operated by or for the transportation of the vehicle registrant.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2016-369, § 2, 5-11-2016; Ord. No. 2023-548, § 4, 7-12-2023)

Sec. 26-84. Blocking roadways.

No person shall park any vehicle upon a street or alley in such a manner or under such conditions as to leave available less than ten feet of the width of the roadway for free movement of vehicular traffic.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-85. Parking or standing on two-way roadway.

A driver who stops or parks on a two-way roadway shall do so in the direction of authorized traffic movement with the right-hand wheels of the vehicle parallel to and not more than 18 inches from the right-hand curb or edge of the roadway, unless otherwise indicated by one or more signs, curb markings, or other traffic-control devices applicable to the roadway.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 09-2, § 7, 1-7-09)

Sec. 26-86. Parking or standing on one-way roadway.

In the event traffic is restricted to one direction upon a roadway, a driver who stops or parks on the roadway shall park the vehicle in the direction of authorized traffic movement with the right-hand wheels parallel to and not more than 18 inches from the right-hand curb or edge of the roadway. Where authorized by one or more signs, curb markings, or other traffic-control devices applicable to the roadway, a vehicle may be parked on the left-hand side of the roadway, but only with the left-hand wheels parallel to and not more than 18 inches from the left-hand curb or edge of the roadway.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 09-2, § 7, 1-7-09)

Sec. 26-87. Parking prohibitions and restrictions on specific streets generally.

(a) When one or more signs are erected giving notice the prohibition of parking a vehicle, no person shall park a vehicle at any time upon any of the streets so signed.

(b) When one or more signs are erected in each block giving notice restrictions on the stopping, standing or parking of vehicles, no person shall stop, stand, or park a vehicle in violation of the restrictions specified on such signs on any day, unless otherwise designated.

(c) The provisions of this section prohibiting the standing or parking of a vehicle shall apply at all times or at those times herein specified or as indicated on an official sign, except when it is necessary to stop a vehicle to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control device.

(d) The provisions of this section imposing a time limit on parking shall not relieve any person from the duty to observe other and more restrictive provisions prohibiting or limiting the stopping, standing or parking of vehicles in specified places or at specified times.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 09-2, § 7, 1-7-09; Ord. No. 2011-1175, § 5, 12-14-2011)

Sec. 26-88. Parking areas for persons with disabilities.

(a) Unauthorized use of parking spaces designated pursuant to section 45-128 of this Code for the exclusive use of vehicles transporting persons with disabilities shall be unlawful and shall be punished as provided by chapter 681 of the Texas Transportation Code.

(b) Pursuant to the provisions of subsection (b) of section 681.006 of the Texas Transportation Code, as amended, the owner of a vehicle transporting persons with disabilities is exempt from payment of parking meter fees required in section 26-157 of this Code, provided, the vehicle may not remain in the metered zone beyond the maximum legal parking limit applicable to the parking meter zone.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 09-2, § 7, 1-7-09; Ord. No. 2023-548, § 5, 7-12-2023)

Sec. 26-89. Restricted use of bus zones and taxi zones.

No person shall stop, stand or park a vehicle other than a bus in a bus zone, or other than a taxicab in a taxi zone, when any such zone has been officially designated and appropriately signed, except that the driver of a passenger vehicle may temporarily stop therein for the purpose of and while actually engaged in loading or unloading passengers when such stopping does not interfere with any bus or taxicab waiting to enter or about to enter such zone.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-90. Use of esplanade, median strip or traffic island.

(a) It shall be unlawful for any person to ride, operate, leave unattended any animal and/or livestock or park any vehicle on, over or across any esplanade, median strip or traffic island.

(b) In addition to any applicable fine or penalty, any animal and/or livestock left unattended or vehicle parked upon an esplanade, median strip or traffic island in violation of this section shall be subject to being removed or towed at the direction of any law enforcement officer or person designated by the parking official.

(c) The provisions of this section shall not apply to any city employee, city contractor or employee thereof, or any person whose duty it is to maintain the esplanade, median strip or traffic island or any equipment thereon.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2023-548, § 6, 7-12-2023)

Sec. 26-91. Parking on restricted city property.

(a) It shall be unlawful for any person to park, or leave unattended, or drive a vehicle into or upon any property owned and controlled by the city and restricted to use by authorized persons and vehicles only, without first obtaining permission in writing to do so from the proper city officer, agent or employee, authorized by the city council to give such permission. The director of the department to which such property is inventoried is hereby authorized to restrict the use of such property only to persons and vehicles authorized in writing by such director to use such property.

(b) All property of the city that has been restricted, either by the city council or by its duly authorized agent, to use by authorized persons and vehicles only, shall be designated by one or more appropriate and conspicuous signs posted at all vehicular entrances thereto, and such signs shall advise that the property is restricted to authorized persons and vehicles only, that all other vehicles will be towed or driven away, and that the driver of any illegally parked vehicle shall be subject to a civil fine. The department to which such property is inventoried shall cause such signs to be prepared and posted. The city shall incur no liability for damage caused to any such vehicle by such removal and the owner, by permitting his vehicle to be placed on such

property, thereby impliedly waives claim for any damages thereto that may be caused by such towing and storage.

(c) In addition to any other penalty provided for such violation, any vehicle parked, left unattended or driven upon any such restricted property of the city without permission from the proper authority having been first obtained in the manner above provided, is hereby declared to be an obstruction, and shall be subject to being towed or driven away by, or at the direction of any person designated by the head of the department to which such property is inventoried, or any city police officer, to a place of impoundment in the manner provided by law.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 09-2, § 8, 1-7-09)

Sec. 26-92. Vehicles on parking lots not to protrude over property line.

It shall be unlawful for any person who operates, keeps or maintains, or causes to be operated, kept or maintained, a parking lot where automobiles or other vehicles are parked on private property adjacent to public streets or sidewalks to permit any automobile or vehicle parked thereon to be parked in such a manner so as to protrude over the property line of such parking lot or to obstruct in any manner any public street or sidewalk adjacent to such private property.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-93. Parking in excess of 24 hours.

It shall be unlawful for any person to knowingly leave parked or standing in any public street, alley or other public right-of-way, or other public place, any vehicle for a longer continuous period of time than 24 hours.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2023-548, § 7, 7-12-2023)

Sec. 26-94. Time limit for trailer and large vehicle parking.

It shall be unlawful for any person to leave, stand or park a trailer, semi-trailer, large vehicle, pole trailer or house trailer, either attached or unattached to a motor vehicle, on the public streets of the city for a period of time in excess of two hours. It is a defense to prosecution under this section that the large vehicle is:

(1) Actually in the process of being loaded or unloaded;

(2) Parked while the driver or operator is performing a service visit;

(3) Temporarily leased or borrowed for purposes of short-term moving and parked for a period of not more than 72 hours; or

(4) Parked in area where the city has expressly authorized on-street parking for trailers or large vehicles.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2023-548, § 7, 7-12-2023)

Sec. 26-95. Parking of commercial and large vehicles prohibited between certain hours.

It shall be unlawful for any person to park or stand any commercial or large vehicle on or upon the streets between the hours of 2:00 a.m. and 6:00 a.m. except during the act of loading or unloading. It is a defense to prosecution under this section that the commercial or large vehicle is actually in the process of being loaded or unloaded.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2023-548, § 7, 7-12-2023)

Sec. 26-96. Large vehicle restrictions.

No person shall park or cause to be parked or permit to remain parked any large vehicle upon any street or highway in any residential district. It is a defense to prosecution under this section that the large vehicle is:

(1) Actually in the process of being loaded or unloaded;

(2) Parked while the driver or operator is performing a service visit; or

(3) Temporarily leased or borrowed for purposes of short-term moving and parked for a period of not more than 72 hours.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 08-442, § 3, 5-14-08; Ord. No. 2023-548, § 7, 7-12-2023)

Sec. 26-97. Using vehicle for primary purpose of advertising.

No person shall operate or park on any street any vehicle for the primary purpose of advertising, except where such operation or parking is specifically permitted by the terms of some provisions of this Code or other ordinance of the city.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-98. Parking for certain purposes prohibited.

No person shall park a vehicle upon any roadway for the principal purpose of:

(1) Displaying such vehicle for sale or rental.

(2) Washing, greasing, or repairing such vehicle, except repairs necessitated by an emergency.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2023-548, § 8, 7-12-2023)

Sec. 26-99. On-street parking for Car-share Houston vehicles.

(a) *Definitions.* As used in this section, the following terms and phrases shall have the following meanings:

Car-share vehicle means a motor vehicle made accessible by a car-share for use by its members.

Car-share means a business entity that operates a fleet of on-demand self-service vehicles located throughout a service area in the city, the use of which may be rented by the hour or the day and are accessible by an automated online reservation and billing system.

Designated car-share parking space means an on-street parking space within the city designated for the exclusive use of Car-share Houston vehicles.

Car-share Houston means a car-share who enters into a master license agreement with the city.

(b) *Master license agreement.* Subject to approval by city council, the city may enter into a master license agreement with car-shares to authorize the parking of car-share vehicles in designated car-share parking spaces and to establish fees and requirements. Car-share Houston licensees shall be chosen through a competitive process pursuant to section 15-44 of this Code and preference shall be granted to vendors who use vehicle technologies that result in increased fuel economy and lower CO2 emissions.

(c) *Permit required.* A Car-share Houston vehicle that occupies a designated car-share parking space shall display a city-issued permit. A permit is vehicle specific and is not transferable from one vehicle to another. A Car-share Houston vehicle that occupies a designated car-share parking space shall also display the identifying emblem of the Car-share Houston licensee.

(d) *Designation of car-share parking spaces.* The traffic engineer, in consultation with the parking official, is authorized to designate up to 20 on-street parking spaces for the exclusive use of any Car-share Houston vehicle in or upon which a permit issued pursuant to this section is displayed. The traffic engineer, in consultation with the parking official, shall determine the number of parking spaces assigned to each Car-share Houston licensee. City council may increase the maximum number of on-street parking spaces the traffic engineer is authorized to designate for the exclusive use of a Car-share Houston vehicle.

(e) *Notice of designation of car-share parking spaces.*

(1) *Notice to district council member.* Notice of a proposed designated car-share parking space shall be given to each district council member whose district includes the proposed designated car-share parking space.

(2) *Notice to surrounding property owners.* Before the designation of any car-share parking space, the parking official shall provide notice to owners of property within 200 feet of the proposed designated car-share parking space at the name and address as indicated by the most recent

appraisal district records. The notice shall be in a form prescribed by the parking official and shall contain the location of the proposed designated car-share parking space, the name of the Car-share Houston licensee, a city office, city telephone number and city e-mail address that interested persons may call or contact by e-mail to obtain further information or to provide input regarding the impact of the proposed car-share parking space designation, and contact information for the district council member whose district includes the proposed designated car-share parking space. Input received by the parking official within ten business days after the date of the notice will be considered by the parking official and the traffic engineer before designation of the car-share parking space.

(f) *Signage.* The traffic engineer is authorized to erect one or more signs or markings in the right-of-way giving adequate notice that the designated car-share parking space or spaces are restricted and to be used by Car-share Houston vehicles only. Upon a determination by the traffic engineer that there has been a change in traffic conditions, the traffic engineer is authorized to remove, move, or add designated car-share parking spaces.

(g) *Offense.* It shall be unlawful for any person to park a motor vehicle in a designated car-share parking space unless the motor vehicle has a valid permit displayed as directed by the city.

(h) *Annual report to city council.* The parking official shall make an annual report to a city council committee regarding Car-share Houston. (Ord. No. 2018-421, § 2, 5-23-2018)

Sec. 26-100. Blocking bicycle lanes.

(a) Definitions. As used in this section, the following terms and phrases shall have the following meanings:

Approved Bicycle Friendly Driver Training Class means a class, approved by the parking official, designed to teach violators best practices in considering the road safety of bicyclists and other non-motorists on shared rights-of-way.

Bicycle means a vehicle with two wheels in tandem, usually propelled by pedals connected to the rear wheel by a chain or an integrated motor, and having handlebars for steering and a saddle-like seat. Bicycle includes an 'electric bicycle' as defined by Texas Transportation Code section 664.001, as amended, and tricycles.

Bicycle lane means a dedicated portion of the roadway separated from motor vehicle traffic with striping and/or physical delineation intended for the exclusive use of bicyclists.

Bicyclist means a person riding a bicycle.

(b) No person shall stop, stand, or park any vehicle upon a bicycle lane. The provision of this subsection shall not apply to on-street bikeways where travel lanes are shared by vehicles and bicyclists and where the city permits on-street parking.

(c) In lieu of paying a fine pursuant to section 26-10 of this Code, a person who has not previously received a citation for violation of this section may appear for an instanter hearing before an adjudication hearing officer within 30 days of the date of the offense and make a request to take an Approved Bicycle Friendly Driver Training Class. A person who requests to take an Approved Bicycle Friendly Driver Training Class must do so within 90 days of the request being granted and shall return proof of completion within that time period. Upon receiving acceptable proof of completion, an adjudication hearing officer shall enter a finding of not liable in the case. The presiding judge of the municipal courts department and the parking official are authorized to prescribe rules and regulations for the administration of this section.

(d) In addition to any applicable fine, any vehicle parked or left in violation of this section shall be subject to being towed to a place of impoundment in the manner provided by law. (Ord. No. 2020-893, § 2, 10-14-2020; Ord. No. 2023-548, § 9, 7-12-2023)

Sec. 26-101. Parking for rental of goods or services prohibited.

(a) Notwithstanding section 26-155 of this Code, no person shall park a vehicle or motor assisted scooter upon any public property in the city, including any public roadway, sidewalk, park, street, parking space, right-of-way or other public property, for the purpose of exhibiting, placing, displaying or offering to rent any goods or services. This section does not apply if:

(1) The person is a permittee under division 2 of article III of this chapter, and displays his permit or a true copy on the dashboard of the parked vehicle, and is renting goods or services as part of a special event pursuant to chapter 25 of this Code; or

(2) The city and the person have entered into an agreement by which the director has authorized the person to park a vehicle on a roadway and rent goods or services.

(b) This section does not apply to a commercial vehicle loading zone under article IV of this chapter.
(Ord. No. 2021-205, § 4, 3-24-2021)

Sec. 26-102. Standing and parking of motor assisted scooters.

(a) It shall be unlawful for any person, for the purpose of renting a motor assisted scooter, to stand, park, place, offer to rent, exhibit, or display a motor assisted scooter on any public roadway, street, alley, parking space, sidewalk, park, right-of-way, or any other public property within the city limits.

(b) The director may authorize the removal of any item unlawfully left on city property in violation of this section. The city may remove or authorize a contractor to remove any item unlawfully left on city property and charge a fee in the amount stated for this provision in the city fee schedule for the city's cost of removing the item to the person who owns or is responsible for placing the item on city property, if such person is known. To the extent an item unlawfully left on city property has an identifiable owner, then the city will place the item in storage for up to 30 calendar days and notify the owner of the owner's opportunity to retrieve the item upon payment to the city of the removal and storage fee in the amount stated for this provision in the city fee schedule. After 30 days from the date the city notified the owner or following a reasonable, but unsuccessful attempt to locate the owner of such item, the city may dispose of such item. The city is entitled to retain any proceeds of a sale disposing of an item in order to cover the costs incurred by the city for removal and storage of such item. The director may establish additional notification procedures, including but not limited to notification procedures where an item unlawfully left on city property has no identifiable owner.
(Ord. No. 2021-205, § 4, 3-24-2021; Ord. No. 2025-971, § 2, 11-19-2025)

Secs. 26-103—26-150. Reserved.

ARTICLE III. PARKING METERS

Division 1. Generally

Sec. 26-151. Designation of metered on-street parking zones and maximum parking time therein—Generally.
Sec. 26-152. Installation of meters—Generally.
Sec. 26-153. Designation of metered public off-street parking zones.
Sec. 26-154. Operation, design, etc., of meters.
Sec. 26-155. When meter regulations effective.
Sec. 26-156. Manner of parking in meter zones.
Sec. 26-157. Payment; overtime parking and feeding meters prohibited.
Sec. 26-158. Proof of parking meter location and time limit.
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Sec. 26-162. Temporarily restricted meters.
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Division 2. Temporary Restriction of Access to Metered Parking

Sec. 26-181. Definitions.
Sec. 26-182. Application for permit; fee.
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Sec. 26-188. No private rights in street.
Secs. 26-189—26-220. Reserved.

DIVISION 1. GENERALLY

Sec. 26-151. Designation of metered on-street parking zones and maximum parking time therein—Generally.

The traffic engineer, in consultation with the parking official, is hereby authorized to establish parking metered on-street parking zones upon any street or portion of any street where it is determined, upon the basis of a traffic engineering study, that the installation of parking meters shall be necessary to aid in the regulation, control or inspection of the parking of vehicles. The parking of vehicles in such parking meter zones shall be controlled and regulated by parking meters. The traffic engineer from time to time shall also establish maximum parking times for each parking meter zone.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-152. Installation of meters—Generally.

The parking official, upon approval of the traffic engineer, is hereby authorized to install meters within any portion of the right-of-way designated pursuant to section 26-151 of this Code.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-153. Designation of metered public off-street parking zones.

(a) The parking official, with the approval of the department director under whose jurisdiction the property is placed, is hereby authorized to designate any portion or section of any area within any public ground or lands owned or controlled by the city as a public metered off-street parking zone within which parking shall be controlled by parking meters whenever the parking official shall find and determine that the use of public property or any public building, structure or activity situated thereon or adjacent thereto will be benefitted by the control of such parking, or access to such ground, buildings or activity will be made more readily available to a larger number of citizens, or congested traffic and parking conditions will be thereby alleviated. In the zones so designated, the parking official shall, with the approval of the department director under whose jurisdiction the property is placed, designate the maximum parking time for each parking meter, basing his designation on the fact finding above set forth.

(b) Whenever so designated, any such public metered off-street parking zone shall be considered a "street" as such term is used in other provisions of this chapter and such other provisions shall govern the use of such zones by the public; but such zones shall not thereby become streets for all purposes unless expressly recognized as such by the city council.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-154. Operation, design, etc., of meters.

(a) Parking meters shall be capable of being operated, either electronically or mechanically, upon the deposit therein of United States coinage, and may also accept currency, credit cards,

debit cards, digital payment or other forms of payment, based upon the capabilities of the meters installed.

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(b) Each parking meter shall be so designed, constructed, installed, and set that, upon the expiration of the time period registered for payment made as provided herein, it will indicate by an appropriate flag, electronic display, or otherwise that the lawful parking meter period has expired, and during such period of time and prior to the expiration thereof, will indicate the interval of time that remains of such period. Where a meter has been installed that controls two or more parking spaces, then the meter shall separately perform the above function for each individual space.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 09-2, § 9, 1-7-09; Ord. No. 2011-1175, § 6, 12-14-2011; Ord. No. 2023-548, § 10, 7-12-2023)

Sec. 26-155. When meter regulations effective.

Parking meters in the established zones shall regulate the parking of vehicles between the hours of 7:00 a.m. and 6:00 p.m. on Mondays through Saturdays except legal holidays unless otherwise specified on the meter or applicable signage.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-156. Manner of parking in meter zones.

Within the parking meter zones, all vehicles shall be parked parallel to the curb, unless otherwise indicated on the meter or by signage, curb markings, or other control system applicable to the meter. For parallel parking, no part of the curb side of the vehicle shall be parked at a distance greater than 18 inches from the curb. Where one parking meter has been installed on the meter pole for parallel parking, vehicles shall be parked along the curb so that the front of the vehicle is located opposite the parking meter. Where two meters have been installed on the meter pole for parallel parking, vehicles shall be parked along the curb so that either the front or rear of the vehicle is located opposite the parking meter, as applicable, based upon the relation of the meter locations to the parking spaces. Where a meter has been installed that controls two or more parking spaces, then the vehicles shall be parked in accordance with the signage or other control system applicable to the meter.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2019-1015, § 9, 12-11-2019)

Sec. 26-157. Payment; overtime parking and feeding meters prohibited.

(a) Parking in a metered zone during the restricted and regulated time applicable to the parking meter zone in which such meter is located requires payment in the amount applicable to that metered zone, which may be paid through operation of the meter as provided in section 26-154 of this Code. The maximum time to park in a parking meter zone is indicated on the receipt issued pursuant to section 26-154 of this Code, by appropriate street signage, or by signage located on the parking meter. It shall be unlawful to park beyond the maximum legal parking limit applicable to a parking meter zone.

(b) It shall be unlawful for the owner or operator of a vehicle to park the vehicle in any parking metered zone without paying the applicable parking fee.

(c) It shall be unlawful for the owner or operator of a vehicle to allow the vehicle to remain parked in any parking meter zone beyond the time paid to park such vehicle.

(d) It shall be unlawful for the owner or operator of any vehicle or for any person on behalf of another person to deposit any coin or make any other form of payment ("feed the meter") for the purpose of parking beyond the maximum legal parking limit applicable to the parking meter zone.

(e) Parking a vehicle in any parking zone in excess of the time paid for such vehicle for parking in such parking zone shall be the initial offense under this division. It shall also be unlawful to continue such violation, and more than one ticket may be issued for a continued violation under this division.

(f) If a notice on the meter itself or applicable signage placed under section 26-155 of this Code states that the parking metered zone is not

effective during certain hours or on certain days, then this section shall not be applicable during those days or times.

(g) *Exemption for vehicles in public law enforcement service.*

(1) As used in this subsection the term "peace officer" shall mean those persons who are defined as "peace officers" under § 2.12 of the Texas Code of Criminal Procedure and those employees of federal agencies who are authorized to carry handguns, investigate federal crimes, and make custodial arrests of persons accused of committing federal crimes.

(2) As used in this subsection the term "department head" shall mean the police chief or his designee which shall be of a rank no lower than assistant chief of police, sheriff, constable or other duly elected or appointed official in charge of the department or agency that employs a peace officer, provided that if the peace officer is employed by a state or federal agency, then it shall mean the person principally in command of the agency's division, field office or other work group that is responsible for the agency's operations within the city.

(3) It is a defense to prosecution under this section that the person who parked the vehicle is a peace officer and that he presents to the municipal court two affidavits:

a. One affidavit shall be duly executed by his department head and shall set forth:

[1] That the person was at the time of the alleged offense employed under the department head's command as a peace officer;

[2] That the vehicle parked was at the time of the alleged offense owned by or in the service of the State of Texas or the United States or an agency or subdivision thereof; and

[3] That the peace officer was (based upon department head's personal knowledge or upon the records of the department head's office) at the time of the alleged offense engaged in the performance of his officially assigned duties of office and was not parked while the peace officer was working at his customary office or job site.

b. The second affidavit shall be duly executed by the peace officer who parked the vehicle and shall state that while the vehicle was parked at an expired parking meter, the peace officer was engaged in the performance of his officially assigned duties of office, not at his customary office or job site, and:

[1] The vehicle was not parked at an expired parking meter for more than a total of four hours on the occasion during which the alleged offense arose; or

[2] Although the vehicle was parked for more than four hours at an expired parking meter, the peace officer was continuously engaged in the performance of his officially assigned duties of office the entire time the vehicle was parked at the meter and was not at his customary office or job site.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 09-2, § 10, 1-7-09; Ord. No. 2011-1175, § 7, 12-14-2011; Ord. No. 2013-479, § 2, 5-29-2013)

Sec. 26-158. Proof of parking meter location and time limit.

When any person is charged with having committed an offense under this division, proof that a parking meter was placed for the parking space in connection with which the offense was committed shall constitute prima facie evidence that the parking meter was installed and the

space laid out by order of the traffic engineer, and that its location and maximum parking time were designated by the traffic engineer.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-159. Effect on more restrictive provisions.

The provisions of this division shall not relieve any person from the duty to observe other and more restrictive provisions prohibiting, restricting, or limiting the stopping, standing, or parking of vehicles in specified places or at specified times.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-160. Parking meter fees.

Except as provided by section 32-312(6) of this Code, the parking official is hereby authorized to establish parking meter fees for any parking meter that has been placed upon any street or other property owned or controlled by the city. The following fees are hereby established for public parking at any parking meter that is governed by this section:

(1) *Demand parking:* A fee to be established by the parking official between a minimum of $0.31 for each ten minutes and a maximum of $1.89 for each ten minutes, which includes any applicable sales tax. Short-term parking fees shall apply to a meter during a time period for which the meter has been designated for short-term parking use upon determination that the public's needs during that time period may be best served by ensuring that the space is not used for lengthy periods of time by one vehicle.

(2) *Economy parking:* A fee shall be established by the parking official between a minimum of $0.31 for each hour and a maximum of $1.89 for each hour, which includes any applicable sales tax. Long-term parking fees shall apply at meters during those periods in which they have not been designated for short-term parking use.

The fees adopted under this provision shall be included in the city fee schedule.

In establishing the foregoing fees, the parking official shall consider the cost of providing the service, the prevailing private market parking rates in the immediate vicinity of the meter, and the needs of patrons of nearby businesses and other premises to have access to the use of metered parking, as well as relevant traffic mobility and engineering issues, as applicable. Without limiting the parking official's options, a parking space may be designated for demand parking during some times and days and economy parking during other times and days.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 09-2, § 11, 1-7-09; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2011-1175, §§ 8, 9, 12-14-2011; Ord. No. 2018-366, § 4, 5-2-2018; Ord. No. 2019-1015, § 10, 12-11-2019; Ord. No. 2022-716, § 4, 9-28-2022; Ord. No. 2023-548, § 11, 7-12-2023)

Sec. 26-161. Designation of authority.

Those duties of the traffic engineer under this division that do not require the exercise of professional engineering judgment or that do not relate to traffic-control shall be performed by the parking official.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-162. Temporarily restricted meters.

No person shall park a vehicle in a metered space that is subject to an access restriction in accordance with division 2 of this article. This section does not apply if the person is a permittee under division 2 and displays his permit or a true copy on the dashboard of the parked vehicle.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-163. Disposition of fees.

Except as provided by sections 32-302(6) and 32-312(7) of this Code, all fees and/or revenues generated from the use of parking meters under this division and all fees and revenues generated under division 2 of this article shall be first expended to defray all costs associated with debt service and operation and maintenance of park-

ing meters placed in service on or after April 1, 2006, and any remaining funds shall be deposited into the ParkHouston special revenue fund.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2011-1175, § 10, 12-14-2011; Ord. No. 2018-366, § 5, 5-2-2018; Ord. No. 2020-348, § 8, 4-29-2020; Ord. No. 2022-716, § 5, 9-28-2022)

Secs. 26-164—26-180. Reserved.

DIVISION 2. TEMPORARY RESTRICTION OF ACCESS TO METERED PARKING

Sec. 26-181. Definitions.

As used in this division, the following words and terms shall have the following meanings unless the context of their usage clearly indicates another meaning:

Access restriction means any restriction or other means or method of rendering unavailable for use by the general public of one or more metered parking spaces.

Attendee means a person who is attending an event sponsored by a permittee.

Peak hours of traffic means those hours established by the traffic engineer at a particular city location.

Permit means a current and valid permit issued under this division to cause an access restriction.

Permittee means a person who holds a permit under this division and includes any employee, agent, or independent contractor of the permittee.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-182. Application for permit; fee.

(a) *Application.* Persons who desire to obtain a permit shall make application to the parking official no later than five business days before the first day of the proposed access restriction, setting forth the following:

(1) The applicant's name, telephone number, fax number, email address, business street address and mailing address;

(2) The name and 24-hour telephone number of a person or persons whom the parking official may contact if needed to resolve any issue that may arise with respect to the permit;

(3) The purpose for which the permit is requested;

(4) The duration for which the permit is requested; and

(5) The location and identification number of the metered parking spaces to be restricted.

(b) *Fee.* The fee for the permit shall be the total of the fee stated in the city fee schedule for each metered space per day requested under the permit application. If the parking official determines that the permit should be granted, then the applicant shall, prior to receiving the permit and in addition to the permit fee, pay for the city's lost revenues, which shall be an amount equal to the total cost of parking at the affected metered space or spaces for the duration of the permit, based upon the fee applicable to the metered space or spaces. No portion of the fee shall be refundable unless the parking official revokes the permit as provided herein.

(c) *Waiver of fee.* The parking official shall waive the permit fee for:

(1) Applications made by the city or upon written request of the city engineer for a city contractor working on a public works construction project; provided that a waiver shall only be afforded as reasonably required for purposes of access to the metered parking space or spaces for the prosecution of the city's work;

(2) Applications made by the Memorial Park Conservancy pursuant to section 32-312(8) of this Code; and

(3) Applications made by the Buffalo Bayou Partnership pursuant to section 32-302(7) of this Code.

(d) *State or federal law.* To the extent that the imposition of any fee, requirement or other provision set forth in this division would be inconsistent with a controlling state or federal

law, then this division shall be construed and applied in a manner that conforms with the applicable state or federal law.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2018-366, § 6, 5-2-2018; Ord. No. 2022-716, § 6, 9-28-2022)

Sec. 26-183. Review, issuance, terms, revocation.

(a) The parking official shall, subject to the provisions of this division and upon applicant's payment of the fee, approve an application as submitted or modified subject to this subsection and issue a permit, unless he determines that:

(1) The application is incomplete or materially untruthful;

(2) There exist any unresolved parking citations for any vehicle owned by the applicant; or

(3) The proposed access restriction, as requested, would substantially inconvenience the public in its use of the streets and that the inconvenience would outweigh any public benefits from the work, function, or activity for which the permit is requested, according to written criteria established by the traffic engineer.

(b) The parking official may, according to written criteria established by the traffic engineer, impose reasonable limitations upon scope of a permit, which shall be consistent with the nature and time of the restriction and its anticipated effects upon vehicular and pedestrian use of the streets. Without limiting the foregoing, the parking official shall not authorize restriction during peak hours of traffic if a practicable alternative time schedule could be used, unless he determines that traffic and mobility will not be adversely affected. Consistent with the foregoing criteria and with approval by the traffic engineer, the parking official may require the permit holder to provide traffic-control devices, signage, and notice to the public at the permit holder's expense.

(c) To the extent that another person has previously requested or obtained a permit for all or part of the area subject to the application or the parking official is aware of any other activity that will also affect traffic at the time and in the area affected by the application, the parking official shall require the persons to coordinate their restrictions or may delay the effective date of the permit until a previous restriction is concluded.

(d) Each permit shall be issued in writing, shall set forth the specific meter spaces affected, beginning and ending dates, authorized days of the week and times of day, nature and authorized site of the authorized restriction, and any requirements for traffic-control devices, signage, and public notice. The permit restriction shall not be valid except in strict accordance with its terms and shall be void if used in any other time, place, or manner.

(e) Permits are personal to the permit holder and may not be assigned or used by any other persons.

(f) Upon written notice to the holder, a permit may be suspended or revoked if the parking official determines that it was issued by error, that the obstruction is having unanticipated adverse effects upon vehicular or pedestrian traffic, or that the holder has not complied with any applicable term of the permit. If a permit is suspended or revoked, the parking official shall refund a percentage of the fees for any unutilized days under such permit.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-184. Hearing.

A person who is aggrieved by the decision of the city, its officials, or employees with respect to a permit application, suspension, revocation or other action under this division shall, upon written request, be entitled to a hearing to be conducted by a hearing officer designated by the director who shall promulgate rules for hearings. The decision of the hearing officer shall be final.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-185. Closing of meters.

If the parking official issues a permit, ParkHouston personnel shall officially mark the meter or meters for the duration of the permit. Depend-

ing upon the type and number of affected metered spaces and meters, the official marking may be in the form of meter bags, signage, or other indicia to indicate that the affected meter spaces are not available for public use.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2019-1015, § 11, 12-11-2019)

Sec. 26-186. Prohibited activities.

(a) It is unlawful for any person or entity to cause, suffer, or permit an access restriction without a permit for the affected meter space or spaces.

(b) It is unlawful for a permittee to cause, suffer, or permit and access restriction in violation of any term of a permit.

(c) It is unlawful for a person who is not a ParkHouston employee to remove or tamper with any official marking placed under section 26-185 of this Code.

(d) Violation of this division is unlawful and shall be punishable as provided in section 1-6 of this Code.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2019-1015, § 11, 12-11-2019)

Sec. 26-187. Duty of permittee.

It shall be the duty of every permittee to cause each of its attendees and agents to comply with the requirements of this division and any permit issued hereunder.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-188. No private rights in street.

Nothing in this division shall be construed to give any person, whether or not a permittee, any property right in or to the use of any street. All permits issued and held under this division shall be subject to the superior right of the public to the safe and orderly movement of traffic.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Secs. 26-189—26-220. Reserved.

ARTICLE IV. COMMERCIAL VEHICLE LOADING ZONES*

Sec. 26-221. Designation of commercial vehicle loading zones.
Sec. 26-222. Parking in commercial vehicle loading zones.
Sec. 26-223. Commercial vehicle parking.
Sec. 26-224. Permit application; issuance.
Sec. 26-225. Permit classes.
Sec. 26-226. Permit specific to commercial vehicle.
Sec. 26-227. Display of permit.
Sec. 26-228. Use of parking meters.
Sec. 26-229. Compliance with other laws.
Sec. 26-230. Fees.
Sec. 26-231. Disposition of fees.
Secs. 26-232—26-260. Reserved.

*__Editor's note—__Section 23 of Ord. No. 2007-464 provides for an effective date of May 1, 2007, for this Ch. 26, Article IV.

Sec. 26-221. Designation of commercial vehicle loading zones.

The traffic engineer is hereby authorized to determine the location of commercial vehicle loading zones and may authorize the parking official to place one or more appropriate signs indicating the same and stating the hours during which the provisions of this article are applicable.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 09-2, § 12, 1-7-09)

Sec. 26-222. Parking in commercial vehicle loading zones.

It shall be unlawful for any person during the posted hours of operation of a commercial vehicle loading zone to:

(1) Park any vehicle other than a commercial vehicle in any commercial vehicle loading zone designated by the city;

(2) Utilize a commercial vehicle loading zone for any purpose other than the expedi-

tious loading or unloading of property, goods or merchandise from a commercial vehicle;

(3) Park any commercial vehicle in any commercial vehicle loading zone without either:

a. Displaying a current and valid commercial vehicle parking permit issued and utilized pursuant to this article; or

b. Paying the meter fee as provided in section 26-228 of this Code; or

(4) Park any commercial vehicle in any commercial vehicle loading zone for a period in excess of that allowed for the class of permit held or in excess of the maximum time allowed by the meter.

In addition to any applicable fine or penalty, any vehicle parked in violation of this section shall be subject to being towed at the direction of any law enforcement officer.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 09-2, § 12, 1-7-09)

Sec. 26-223. Commercial vehicle parking.

The operator of a commercial vehicle may utilize a commercial vehicle loading zone during the posted hours of operation of the zone pursuant to a permit issued under this article or by payment of the meter fee as provided in section 26-228 of this Code.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-224. Permit application; issuance.

(a) A person may apply for a commercial vehicle loading permit by submitting an application in the form prescribed by the director, along with the appropriate permit fee.

(b) The parking official shall issue a permit, unless he determines that:

(1) The application is incomplete or materially untruthful; or

(2) There exist any unresolved parking citations as defined in section 26-261 of this Code for any vehicle owned by the applicant or any agent of the applicant.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 09-2, § 13, 1-7-09)

Sec. 26-225. Permit classes.

Permits shall be classified as follows:

(1) *Class A permit.* A Class A permit will be valid for a period of one year from the date of issuance and shall be transferable to any other commercial vehicle operated by the permittee upon prior notice in a manner prescribed by the parking official. A commercial vehicle with a Class A commercial vehicle loading zone permit may be parked in a commercial vehicle loading zone or, where such zones are unavailable or occupied, parked utilizing one or two metered automobile parking spaces without payment of the usual meter fee as required elsewhere in this chapter for such spaces. A commercial vehicle with a Class A permit may be parked for a period not to exceed two consecutive hours at one time.

(2) *Class B permit.* A Class B permit will be valid for a period of one year from the date of issuance and shall be transferable to any other commercial vehicle operated by the permittee upon prior notice in a manner prescribed by the parking official. A commercial vehicle with a Class B permit may be parked in a commercial vehicle loading zone for a period not to exceed one hour at one time.

(3) *Class C permit.* A Class C permit will be valid for a period of one year from the date of issuance and shall be transferable to any other commercial vehicle operated by the permittee upon prior notice in a manner prescribed by the parking official. A commercial vehicle with a Class C permit may be parked in a

commercial vehicle loading zone for a period not to exceed 30 minutes at one time.

(4) *Class D permit.* A Class D permit will be valid for a period not to exceed 21 consecutive days. A commercial vehicle with a Class D permit may be parked in a commercial vehicle loading zone for a period not to exceed one hour at one time. Only one Class D permit per commercial vehicle may be issued within a 12-month period.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-226. Permit specific to commercial vehicle.

Each permit shall be registered to a specific commercial vehicle and shall be transferable only as provided in this article.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-227. Display of permit.

A permit must be conspicuously displayed upon the commercial vehicle for which it is issued so as to be easily visible to any person passing such commercial vehicle on the street or sidewalk while the commercial vehicle is parked in any commercial vehicle loading zone. Any failure to display a permit shall create the presumption that no permit for the commercial vehicle exists. The parking official may accept a valid license plate number on file with the department for each permit holder in lieu of affixing a permit or hanging a permit.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2023-548, § 12, 7-12-2023)

Sec. 26-228. Use of parking meters.

As an alternative to obtaining a permit, the operator of a commercial vehicle may park the commercial vehicle in a commercial vehicle loading zone space or spaces during posted hours of operation for the zone by paying the commercial vehicle loading zone meter fee for each space utilized in whole or in part for parking the commercial vehicle in that zone, provided that:

(1) The commercial vehicle is then being expeditiously loaded or unloaded; and

(2) The meter or meters are not allowed to expire; and

(3) The commercial vehicle may not be parked in excess of the maximum time allowed as posted on the meter or as authorized by a permit as provided for by section 26-225 of this Code;

provided, however, that pending the installation of a meter in a commercial vehicle loading zone, an unpermitted commercial vehicle may utilize one or more metered passenger vehicle spaces, or portions of such spaces, within the same blockface as the unmetered commercial vehicle loading zone, by paying the meter fee for each space wholly or partially occupied by such commercial vehicle.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 09-2, § 14, 1-7-09; Ord. No. 2011-1175, § 11, 12-14-2011)

Sec. 26-229. Compliance with other laws.

Except as allowed by a Class A permit, a permit issued under this article shall not excuse compliance with applicable laws, and a commercial vehicle parked in any metered automobile parking space remains subject to any "no parking" and "tow-away zone" restrictions applicable to the parking space. Additionally, a permit does not excuse the requirement that the commercial vehicle must be expeditiously loaded or unloaded at all times while parked under this article.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-230. Fees.

(a) Fees for commercial vehicle loading zone permits are stated for this provision in the city fee schedule.

A permit may be replaced during its valid term for the fee stated for this provision in the city fee schedule, upon providing the parking official the police report for the stolen permit or an affidavit for a lost permit. The permit shall be valid only for the remainder of the original term.

(b) The commercial vehicle loading zone meter fee per hour per metered space is stated for this provision in the city fee schedule.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 26-231. Disposition of fees.

All fees and/or revenues generated from the use of commercial vehicle loading zones shall be first expended to defray all signage and administration costs under this article, and the remainder shall be deposited into the ParkHouston special revenue fund.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2011-1175, § 12, 12-14-2011; Ord. No. 2020-348, § 9, 4-29-2020)

Secs. 26-232—26-260. Reserved.

ARTICLE V. BOOTING AND TOWING DELINQUENT VEHICLES AND OTHER ENFORCEMENT PROVISIONS

Sec. 26-261. Definitions.
Sec. 26-262. Purpose.
Sec. 26-263. Delinquent vehicle list.
Sec. 26-264. Booting or towing procedures.
Sec. 26-265. Fees, release.
Sec. 26-266. Hearing.
Sec. 26-267. Certain conduct unlawful.
Sec. 26-268. Release of vehicles from city vehicle compound.
Secs. 26-269—26-290 Reserved.

Sec. 26-261. Definitions.

As used in this article the following words and phrases shall have the meanings ascribed in this section, unless the context of their usage clearly indicates another meaning:

Boot means a lockable road wheel clamp or similar device, which is designed to immobilize a parked vehicle and prevent its operation until the device is unlocked and removed, or (verb) the act of installing such a device.

City vehicle compound means a vehicle storage facility to which vehicles owned by persons other than the city are towed upon direction of peace officers and other authorized personnel of the city. The term includes both facilities that are owned and operated by the city and facilities that are designated by contract with the city to act as city vehicle compounds for purposes of this article.

Delinquent vehicle means any vehicle on which three or more unresolved parking citations are outstanding or on which any single unresolved parking citation related to parking in a space designated for a transport vehicle for a person with disabilities is outstanding, which citations were issued during the time the vehicle has been registered to or otherwise held by the owner.

Delinquent vehicle list means the current delinquent vehicle list as maintained by the parking official under section 26-263 of this Code.

Officer means any peace officer employed by the city and any other city employee, whether a peace officer or not, who is designated by the parking official to place and remove boots or to cause vehicles to be towed under this article. The city may also authorize persons who are not city employees to act as "officers" for the purpose of installing or removing boots by contract.

Owner means the person registered with the state as the present owner of a vehicle in the most current registration records available to the city, or any transferee not designated in such records, provided that the parking official has received actual notice of the transfer.

Parking citation means a citation, returnable in the municipal courts of the city, issued

for the alleged violation of any city ordinance or state penal law regarding the parking of vehicles.

Unresolved, with respect to a "parking citation," means a citation issued and not cleared by an appearance within 30 days of issuance.

Vehicle means either a "motor vehicle" or a "trailer" as those terms are defined in section 45-2 of this Code, provided that it shall not include a vehicle registered to any governmental entity or agency thereof.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2011-1175, § 13, 12-14-2011)

Sec. 26-262. Purpose.

Pursuant to the provisions of this article an officer may cause a delinquent vehicle designated on the delinquent vehicle list to be booted, or towed, or both.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-263. Delinquent vehicle list.

(a) The parking official shall be responsible for creating and maintaining the delinquent vehicle list.

(b) A delinquent vehicle may be placed on the delinquent vehicle list after notice has been issued as provided in subsection (c), and a hearing, if requested, under subsection (d).

(c) At least 15 days prior to placing a delinquent vehicle on the delinquent vehicle list, the parking official shall mail a notice to the owner, at the address stated on the most current registration records available to the city from the state, or any more current address of which the parking official has actual notice, by first-class United States mail, postage prepaid. When the Texas Department of Transportation does not have current registration records for a vehicle, a self-adhering notice placed on the vehicle or handed to the vehicle operator by an officer will be deemed sufficient notice. The notice shall set forth:

(1) The license plate number of the alleged delinquent vehicle;

(2) A date certain on which the delinquent vehicle will be subject to placement on the delinquent vehicle list;

(3) A list of the three or more alleged unresolved parking citations or the single unresolved parking citation related to parking in a space designated for a transport vehicle for a person with disabilities, including the citation number, date, time, place of the violation, and the nature of the violation;

(4) That the owner may avoid the vehicle's being placed on the delinquent vehicle list by making an appearance on the unresolved parking citations;

(5) The name, mailing address (and street address if different), and telephone number of a city office or agency that may be contacted for a hearing if any of the alleged unresolved parking citations has been resolved by appearance, or if the recipient was not the owner of the vehicle when any of the alleged unresolved parking citations was issued, or if the title to the vehicle has been transferred since the unresolved parking citations were issued; and

(6) That administrative fees, boot fees, and towing/storage fees may be payable to obtain the release of a vehicle booted or towed pursuant to this article in addition to appearance on any unresolved parking citations.

For a vehicle that is not yet a delinquent vehicle, the notice required under this section may be mailed, adhered to the vehicle, or handed to the vehicle owner or operator by an officer advising that there are already two unresolved parking citations and that a third parking citation (which shall also be specified in the notice) will become unresolved if an appearance is not made thereon by the date specified for placement of the vehicle on the delinquent vehicle list.

(d) After expiration of the date certain provided in the notice issued under subsection (c), the parking official shall review the records to ensure

that the alleged unresolved citations have not been resolved by appearance, and that no information has been received indicating that the notice was erroneous. The parking official shall not have the authority to adjudicate any parking citation; however, he shall meet with any person desiring to present evidence that a notice given under subsection (c) is erroneous, shall afford the person an opportunity to present any relevant evidence on the matter, and shall mail or otherwise furnish a written notice to the person of his decision.

If the request for a hearing is received by the clerk of the municipal courts before the date specified in the notice for placement of the vehicle on the delinquent vehicle list, then the clerk shall notify the parking official of the request for hearing and afford the applicant an opportunity for a hearing prior to placement of the vehicle on the delinquent vehicle list. If the applicant timely appears for the hearing as scheduled, the clerk shall furnish the parking official and the applicant written notice of the adjudication hearing officer's decision.

(e) Once a vehicle has been placed on the delinquent vehicle list it shall not be removed from the list unless and until:

(1) All unresolved parking citations issued during the time it has been registered to or otherwise held by the owner are resolved by appearance;

(2) The parking official receives reliable information that the vehicle was not registered to its current owner at the time the unresolved citations were issued;

(3) The parking official receives reliable information that title to the vehicle has been transferred; or

(4) The parking official determines that the placement of the vehicle on the delinquent vehicle list was erroneous.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 09-2, § 15, 1-7-09; Ord. No. 2010-846, § 11, 11-3-2010; Ord. No. 2011-1175, §§ 14, 15, 12-14-2011)

Sec. 26-264. Booting or towing procedures.

(a) An officer may boot any vehicle then parked, lawfully or unlawfully, upon any street or highway within the city, or upon any other property under the ownership or control of the city. An officer may also boot any vehicle on property not owned or controlled by the city provided that parking citations may lawfully be issued for violation of city or state laws regarding the parking of vehicles on the property and further provided that the owner of the property gives written consent to the parking official for the installation of boots on the property.

An officer may cause the vehicle to be towed in lieu of being booted:

(1) If the vehicle, when located by the officer, was parked in violation of any city ordinance or state penal law relating to parking of vehicles;

(2) Under any circumstances in which towing by a peace officer is authorized by city ordinance or state law;

(3) If the location, configuration or size of the vehicle's tires, wheels, fender wells or other components makes the installation of any available boot owned by the city impracticable;

(4) If, based upon the age, model and condition of the vehicle, or the incidence of vehicular crimes in the area where the vehicle is located, or other relevant factors, the officer reasonably believes that there is a significant possibility of theft or damage relating to the vehicle if it is immobilized in place;

(5) If the owner has been convicted of any crime relating to the removal of, tampering with or theft of a boot previously installed by the city on any vehicle; or

(6) If the owner or operator of the vehicle requests, in writing, that the vehicle be towed.

A vehicle that has already been booted may be towed by an officer if any of the circumstances enumerated in items (1) through (6) above exists, or if:

(7) The owner has not made arrangements with the parking official to secure removal of the boot within 72 hours after its installation; or

(8) The vehicle remains immobilized in any zone where parking is prohibited during certain hours until the commencement of the restricted hours.

(b) At the time of booting or towing of a vehicle under this article the officer shall:

(1) Check or cause to be checked the appropriate records to ensure that the vehicle is properly listed on the delinquent vehicle list;

(2) Check or cause to be checked the most current vehicle registration records available to the city to ensure that the ownership of the vehicle is not reflected to have changed from that specified on the delinquent vehicle list;

(3) If booted, notify any office designated by the parking official and place a conspicuous notice or notices in a form approved by the director on the vehicle warning the operator or any other person not to attempt to move the vehicle and advising the operator of the means by which the boot may be removed, including the right of the hearing; provided, however, that the officer may hand the notice or notices to vehicle owner or operator who is present and objects to the placement of a notice on the vehicle; and

(4) If towed, notify the police dispatcher and any other office designated by the director so that they may respond promptly to any inquiry about the vehicle's disappearance.

(c) A vehicle may be booted or towed at any time on any day. A hearing requested pursuant to section 26-266 of this Code shall be conducted within two business days of such request.

(d) Vehicles shall be towed to a storage lot operated by the city or to a city-licensed storage lot operated under contract with the city. Each lot that is utilized shall have an attendant on duty or available for the release of vehicles from at least 6:00 a.m. to 9:00 p.m., Monday through Saturday, city observed holidays excepted, and shall have an attendant on call who will come to the lot upon one hour's notice at all other times.

(e) The parking official shall ensure that officers are available, either on duty or on call, to remove boots from vehicles Monday through Saturday, from 7:00 a.m. through 7:00 p.m. An officer shall remain on duty until at least two hours after a boot is installed. At other times, an officer shall be on call to remove a boot upon two hours' notice.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1175, §§ 16—18, 12-14-2011)

Sec. 26-265. Fees, release.

Except as provided in section 26-266 of this Code, the claimant of a vehicle may not secure the release of the vehicle until an appearance has been made on all unresolved parking citations relating to the vehicle which were issued while the vehicle was owned by the person who owned the vehicle at the time it is booted or towed hereunder, and the claimant has paid the following fees, as applicable:

(1) The administrative fee stated for this provision in the city fee schedule, if the vehicle has been booted or towed, or both, to defray the city's administrative costs in placing the vehicle on the delinquent vehicle list and related expenses under this article.

(2) The boot fee stated for this provision in the city fee schedule, if the vehicle has been booted, to defray the city's costs of installing, removing and maintaining the boot.

(3) Towing/storage and related fees, if the vehicle has been towed, in an amount established by the director, based upon the city's cost or upon the fees imposed by the city's contractors, as applicable. If

the vehicle has been towed and stored by city contractors, then the parking official may provide that the towing/storage fees be paid directly to the contractors, rather than to the city.

Towed vehicles that are not redeemed within 30 days shall be subject to disposition in the same manner provided by Chapter 683, Texas Transportation Code, for sale of abandoned motor vehicles by police auction after notice to the owner and lienholders. No person shall be permitted to claim a vehicle without proof of identity. If the person claiming the vehicle is not the owner or a family member residing at the same address as the owner, based upon the most current vehicle registration data available to the city, then proof shall also be required that the claimant is the owner or is redeeming the vehicle with the consent of the owner.

All fees and/or revenues generated from fees imposed under this section shall be deposited to the ParkHouston special revenue fund.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; ; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2011-1175, § 19, 12-14-2011; Ord. No. 2020-348, § 10, 4-29-2020)

Sec. 26-266. Hearing.

(a) The presiding judge of the municipal courts department shall designate one or more persons to act as adjudication hearing officers to conduct post-deprivation hearings for persons whose vehicles have been booted or towed under this article.

(b) Hearings shall be conducted on a first-come, first-served basis without the necessity of a prior appointment. The hours when hearings will be conducted and the place or places where they will be conducted shall be established by the presiding judge of the municipal courts department, provided that hearings shall be conducted at least between 9:00 a.m. and 6:00 p.m., on Mondays through Fridays, city observed holidays excepted.

(c) The applicant may secure release of the vehicle pending the hearing by making an appearance on the unresolved parking citations and posting a bond for the administrative and boot fees prescribed in section 26-265 of this Code, as applicable. If a bond is posted then a hearing may then be scheduled for a date and time certain, and the vehicle shall be released. If the vehicle has been towed, then the applicant shall also be required to post a bond for the towing/storage fees or to make payment of the towing/storage fees to the city's contractor, as applicable, subject to reimbursement as provided in subsection (f), below.

(d) The adjudication hearing officer shall be a person who is not associated with the maintenance of the delinquent vehicle list, nor shall the adjudication hearing officer hear any appeal in which he has personally participated in any decision relating to the booting or towing of the vehicle.

(e) The only issues before the adjudication hearing officer will be whether or not the vehicle was a delinquent vehicle owned by the person designated on the delinquent vehicle list at the time it was booted or towed under this article and whether the city has complied with this article in placing it on the delinquent vehicle list and causing it to be booted or towed, or both. The adjudication hearing officer shall have no authority to adjudicate any unresolved parking citation. The adjudication hearing officer may consider any competent evidence, including, but not limited to, public records and testimony from the applicant and city employees. The applicant may be represented by legal counsel and may cross-examine any witness presented by the city. Each applicant must appear at the hearing and shall be subject to examination on any matter relevant to the issues before the adjudication hearing officer. The adjudication hearing officer shall announce and record his decision within one hour following the conclusion of the hearing.

(f) If the adjudication hearing officer determines that the vehicle was not a delinquent vehicle owned by the person designated on the delinquent vehicle list at the time it was booted or towed under this article, or that the city has not complied with this article in placing the vehicle on the delinquent vehicle list and causing it to be booted or towed, or both, then the

vehicle shall be ordered released without payment of the fees prescribed in section 26-265 of this Code. Vehicle storage and related fees shall be payable for each twenty-four-hour period or portion thereof that a towed vehicle remains in storage after the adjudication hearing officer orders its release if not reclaimed within 24 hours after the adjudication hearing officer orders its release. If a bond had been posted for the administrative, boot, or towing/storage fees prescribed in section 26-265 of this Code, the bond shall be ordered to be refunded to the applicant. Furthermore, the city shall reimburse the applicant for any towing/storage fees that the applicant may have paid to a city contractor in order to secure release of the vehicle if those fees have been directly incurred by the applicant.

(g) A hearing under this section must be requested within ten days after the initial booting or towing of the vehicle by the city. A hearing requested thereafter will be granted if the city has not disposed of the vehicle, provided the owner must pay the vehicle storage and related fees for each day after the tenth day until the vehicle is reclaimed, regardless of the adjudication hearing officer's determination.

(h) In any instance in which a vehicle has been towed to a vehicle storage facility not owned by the city, then the applicant may alternatively request a hearing under Section 2308.452 of the Texas Occupations Code, before the justice court in the time and manner provided by Section 2308.456 of the Texas Occupations Code. The justices of the justice courts and the judges of the municipal courts shall have no authority to adjudicate any fee imposed under section 26-265 of this Code, or to order any release of a vehicle without payment of applicable fees, or to order a refund of applicable fees.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2010-846, § 12, 11-3-2010; Ord. No. 2011-1175, §§ 20—22, 12-14-2011)

Sec. 26-267. Certain conduct unlawful.

(a) It shall be unlawful for any person, other than an officer, employee of the city, or other authorized person acting in the course and scope of his duties under this article, to remove or attempt to remove or to tamper in any manner with a boot installed on any vehicle pursuant to this article.

(b) It shall be unlawful for any person, except under the written direction of a peace officer, to tow or move or to cause to be towed or moved any vehicle on which a boot is then installed pursuant to this article from the place where it was booted.

(c) It shall be unlawful for any person, other than an officer or employee of the city acting in the course and scope of his duties or the owner or operator of a booted vehicle, to remove or relocate any notice placed upon a booted vehicle under section 26-265(b)(3) of this Code.

(d) Any offense under this section shall be punishable upon conviction by a fine of not less than $200.00 nor more than $500.00, and each day that any violation continues shall constitute a separate offense. To the extent that any conduct declared to be unlawful under this section also constitutes a violation of any valid and applicable state law, then such unlawful conduct shall be punishable as provided by state law.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2023-548, § 13, 7-12-2023)

Sec. 26-268. Release of vehicles from city vehicle compound.

A vehicle that is towed to a city vehicle compound for reasons initially unrelated to the booting or towing procedures established under this article shall not be released until it has been verified that the vehicle does not appear on the delinquent vehicle list. If the vehicle appears on the delinquent vehicle list and if a review of the most current vehicle registration records available to the city indicates that the ownership of the vehicle has not changed from that reflected on the delinquent vehicle list, then the vehicle shall be subject to the fee and release provisions of section 26-265 of this Code and hearing provisions of section 26-266 of this Code. This section shall apply without regard to the day or the time that the vehicle was initially towed. However, if the towing was not initiated at a time otherwise authorized for towing under subsection (c) of section 26-264, then the presiding judge of the

municipal courts department shall ensure that a hearing is afforded within two hours of a request therefor or alternatively the parking official shall authorize the vehicle to be released without resolution of the parking citations.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2010-846, § 13, 11-3-2010)

Secs. 26-269—26-290 Reserved.

ARTICLE VI. RESIDENTIAL PARKING PERMITS

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DIVISION 1. GENERALLY

Sec. 26-291. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Commuter vehicle means a motor vehicle, other than a 'resident vehicle' as defined herein, that is parked in a residential area in which it is not registered with the Texas Department of Transportation.

Curbside parking space means 20 linear feet of curb, excluding those portions of the curb where the parking of any motor vehicle is not permitted.

One-day visitor permit means a permit that is valid for one 24-hour period to allow a

commuter vehicle to park in curbside spaces in the residential parking permit area except where or at times otherwise prohibited.

Permit means a current and valid permit issued under division 3 of this article.

Resident means the owner or tenant of residential property in a residential area or the tenant of an apartment complex with not more than eight units in a residential area.

Resident vehicle means a motor vehicle parked in a residential area in which it is registered with the Texas Department of Transportation.

Residential means pertaining to the use of land for premises such as single-family homes, duplexes, condominiums and apartment complexes with eight or fewer units, that contain habitable rooms for nontransient occupancy and are designed primarily for living, sleeping, cooking and eating therein. A premises that is designed primarily for living, sleeping, cooking and eating therein will be deemed to be residential in character unless it is actually occupied and used exclusively for other purposes. Hotels, suites hotels, motels,

apartment complexes with nine or more units, boardinghouses and day care centers shall not be considered to be residential.

Residential area means a contiguous area containing or bounded by public streets or parts thereof abutted by residential property occupying at least 75 percent of the front footage along the blockface, exclusive of vacant property that is not restricted by deed, covenant, plat or otherwise to residential use. A residential area may be one or more blockfaces within a larger residential area, provided that the parking official can consider a street of 500 feet in length or greater to be two blockfaces of approximately equal length for purposes of this article if requested by the applicants.

Residential parking permit area means an area designated pursuant to division 2 of this article.

Service provider permit means a permit that is valid for use in a commuter vehicle operated by an individual who provides one or more services, such as healthcare, housekeeping, child care, etc., to a resident.

Visitor permit means a permit that will allow a commuter vehicle to park in curbside spaces in the residential parking permit area except where or at times otherwise prohibited.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2011-1175, § 23, 12-14-2011; Ord. No. 2019-1015, §§ 12, 13, 12-11-2019)

Sec. 26-292. Compliance with other laws.

A permit issued pursuant to this article does not excuse compliance with any other provisions of state law or this Code relating to parking, including, but not limited to, parking meter payment, 'no parking' signs and restricted parking for persons with disabilities.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-293. Offenses.

(a) It shall be unlawful for any person to park a motor vehicle that does not display a permit in a curbside parking space on any day or during any hours for which commuter vehicle parking is prohibited by one or more official signs posted in a residential parking permit area.

(b) It shall be unlawful for any person to represent in any fashion that a motor vehicle is entitled to a permit authorized by this article when it is not so entitled. The display of a permit on a motor vehicle not entitled to the permit shall constitute such a representation.

(c) It shall be unlawful for any person to modify, duplicate, or attempt to duplicate, by any means, a permit authorized by this article. It also shall be a violation of this article for any person to display on any motor vehicle a modified or duplicate permit.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 09-2, § 16, 1-7-09; Ord. No. 2019-1015, § 14, 12-11-2019)

Sec. 26-294. Revocation of permit.

In addition to the penalties provided for violation of this article, the parking official shall revoke the residential permit and any associated visitor permit or service provider permit of any person found to have committed three or more violations of this article within any one year period. Upon a determination by the parking official that a person who holds a permit has been adjudicated to have committed the number of violations set forth in the preceding sentence within the prescribed period, the parking official shall provide written notification to such person by certified mail, return receipt requested, revoking the permit and ordering the surrender of any visitor permits or service provider permits held under the residential permit to the parking official. Failure to surrender a revoked visitor permit or service provider permit when requested to do so shall constitute a separate violation of this article, and a signed return receipt shall be prima facie evidence of the delivery of the notice to surrender such permit.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-295. Defenses.

It shall be an affirmative defense to civil prosecution for violation of this article that the motor vehicle parked in a residential parking permit area was:

(1) A motor vehicle owned by or operated under contract to a utility and in actual use in the construction, operation, removal or repair of utility property or facilities or engaged in authorized work in the designated residential parking permit area;

(2) A motor vehicle that was clearly identified as owned by or operated under contract to a federal, state, or local governmental agency, was being used in the course of official government business, and was not parked while the operator was working at his customary office or job site;

(3) An authorized emergency vehicle; or

(4) A motor vehicle used for delivery or service business purposes, including but not limited to motor vehicles such as moving vans and sanitation, repair, electrical and plumbing service motor vehicles, that was parked in a residential parking permit area while conducting business at a residence in the residential parking permit area.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-296. Cumulative effect.

This article is cumulative of other requirements imposed by ordinances and regulations of the city. To the extent of any inconsistency, the more restrictive provision shall govern. The authority granted by this article is cumulative of the powers granted by this chapter and does not limit the authority of the traffic engineer or other officers authorized to regulate traffic.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-297. Adjudication.

Cases involving violations of the parking provisions of this article shall be adjudicated before adjudication hearing officers of the municipal courts department.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2010-846, § 14, 11-3-2010)

Sec. 26-298. Removal of vehicle.

Pursuant to Texas Occupations Code Section 2308.354(a), a parking compliance officer or personnel designated by the police chief may authorize the towing of a vehicle parked in violation of this chapter. When a vehicle is towed pursuant to this section, the Houston Police Department shall be the responsible law enforcement agency for purposes of section 8-117 of this Code.

(Ord. No. 09-1135, § 11, 11-18-09; Ord. No. 2019-1015, § 6, 12-11-2019; Ord. No. 2021-837, § 3, 9-29-2021)

Secs. 26-299—26-310. Reserved.

DIVISION 2. DESIGNATION OF RESIDENTIAL PARKING PERMIT AREAS

Sec. 26-311. Designation.

(a) The city council may designate residential areas within the city with chronic commuter parking problems as residential parking permit areas pursuant to the procedures of this division. For purposes of this division, a 'chronic commuter parking problem' means the occupancy of curbside parking spaces by commuter vehicles at the same hours and on the same days, but shall not mean parking for events which by their nature are expected to occur on a frequency of less than once every two weeks.

(b) In carrying out the functions assigned by this division, the parking official shall consult with and obtain the concurrence of the traffic engineer.

(c) Notwithstanding the definition of residential area, areas within 1,000 feet outside of the boundary of the Washington Avenue Corridor, as defined in section 26-701 of this Code,

may be designated as a residential parking permit area pursuant to the procedures of this division.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2012-1097, § 4, 12-12-2012)

Sec. 26-312. Request for designation.

(a) A request for designation of a residential parking permit area shall be initiated by petition of residents within the proposed residential parking permit area. The minimum residential area for which a petition for designation may be submitted is one blockface, including both sides of the street if both sides are residential or one residential blockface if the opposing blockface is not residential. The request shall be filed with the parking official upon a form promulgated for that purpose by the director, provided that the parking official shall not consider a request for designation of a residential parking permit area consisting of the same block or street more than once in any consecutive 12-month period. The request shall include, at a minimum, the following:

(1) A description of the residential area proposed to be included in the residential parking permit area;

(2) A description of the chronic parking problem or condition to be remedied;

(3) Evidence of neighborhood support for the project;

(4) The name, address and telephone number of a resident in the proposed residential parking permit area who shall be the contact for the request;

(5) The names and addresses of all residents within the proposed residential parking permit area;

(6) Evidence of support of residents of the proposed residential parking permit area for designation by the traffic engineer of the proposed area as a tow-away zone; and

(7) Any other information reasonably required by the parking official to make any determination required under this article.

Each request shall be accompanied by the nonrefundable application fee stated for this provision in the city fee schedule.

The parking official shall immediately forward a copy of all information relating to the request to the traffic engineer.

(b) The parking official initially shall review each request for completeness. If the parking official determines that the request is complete, the request shall be acted upon as further provided in this article. If the parking official determines that the request is incomplete, he shall return the request with written notice of the deficiencies.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 26-313. Parking survey.

Upon receipt of a complete application for designation of a residential parking permit area, the parking official shall conduct or cause to be conducted a parking survey of the proposed residential parking permit area. The parking survey shall be conducted in the manner prescribed by the traffic engineer. The parking survey shall determine the following information, as well as any other information that the parking official or the traffic engineer determines will be useful to verify the chronic commuter parking problem identified in the application:

(1) The total number of legal curbside parking spaces in the proposed residential parking permit area;

(2) The number of legal curbside parking spaces that are occupied by motor vehicles;

(3) The number of curbside parking spaces that are occupied by commuter vehicles; and

(4) The general hours of occupancy of curbside parking spaces by commuter vehicles.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-314. Criteria for designation.

The parking official, in making a determination of approval or disapproval with respect to

designation, and the city council, in making a designation, shall consider the results of the parking survey and the following criteria:

(1) The extent to which curbside parking spaces are occupied by motor vehicles. The total number of curbside parking spaces occupied by motor vehicles at the minimum must exceed 60 percent of the number of curbside parking spaces on the public streets of the proposed residential parking permit area for the area to be eligible for designation;

(2) The extent to which motor vehicles parking in the area are commuter vehicles. The total number of curbside parking spaces occupied by commuter vehicles during any one-hour period must equal or exceed 25 percent of the total number of curbside parking spaces occupied by motor vehicles in the proposed residential parking permit area for the area to be eligible for designation;

(3) The extent to which residents cannot obtain adequate curbside parking adjacent to or near their residences because of widespread use of available curbside parking spaces by commuter vehicles;

(4) The time or times of day of greatest commuter parking in the period surveyed;

(5) The effect on the safety of the residents from intensive commuter vehicle parking;

(6) The existence of air and noise pollution, hazardous conditions, and deterioration of the residential environment as a result of traffic congestion and insufficient parking in the area;

(7) The extent and availability to the general public of parking in the residential area;

(8) The extent that the designation of a residential parking permit area would be likely to reduce traffic congestion and any other problems identified in this section;

(9) Evidence of support of the residents in the proposed residential parking permit area for the institution of a residential parking permit system and the willingness of those residents to bear the costs incidental to the issuance of permits authorized by this article;

(10) Whether the problems identified in this section can reasonably and feasibly be solved at no additional cost to the city through an alternative to the designation of a residential parking permit area; and

(11) Any other traffic issue identified by the traffic engineer.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-315. Parking regulations.

If the parking official determines that an application for designation meets the criteria for designation, he shall so notify the traffic engineer, including with the notification his recommendations regarding the proposed residential parking permit area. The traffic engineer, in consultation with the parking official, shall develop for the proposed residential parking permit area proposed parking regulations that shall establish the days of the week and the times of day that parking by commuter vehicles shall be prohibited in the residential parking permit area. Nothing in this article shall require the traffic engineer to develop any parking regulations for a proposed residential parking permit area for days and times the traffic engineer determines parking would interfere with traffic mobility. Parking regulations developed for residential parking permit areas for which an application is submitted after or was pending on October 19, 2005, shall not prohibit commuter vehicle parking along the portion of the blockface on which a nonresidential property faces.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-316. Public hearing.

(a) After determining that an application for designation meets the criteria for designation and developing the proposed regulations for the residential parking permit area, the parking official shall conduct a public hearing to receive

comment on the designation of the proposed residential parking permit area and the proposed parking regulations.

(b) The parking official shall give written notice of the public hearing by mail no less than 15 days before the date of the public hearing as follows:

(1) Addressed to "Occupant," of each property within, and within 200 feet of, the boundaries of the proposed residential parking permit area;

(2) To the owner of each property located within or within 200 feet of the boundaries of the proposed residential parking permit area as shown on the most recently approved tax rolls for the county in which the proposed area is located; and

(3) To each registered civic association and recognized super neighborhood in whose area the proposed residential parking permit area is located, provided that notice may be given electronically if that is the customary format with which the department communicates with the civic association or super neighborhood.

(4) For purposes of this subsection 26-316(b), the boundaries of the proposed residential parking permit area(shall be the rear property line, and the side property line of a corner property, of each lot or tract that abuts a blockface included in the residential parking permit area.

(c) Notice in the form prescribed by the director shall be published once in a newspaper of general circulation in the city at least 10 days prior to the hearing and shall be given in electronic format to the district council member in which the proposed residential parking permit area is located.

(d) The notice shall clearly state the purpose, date, time and location of the public hearing; the location and boundaries of the proposed residential parking permit area; the regulations proposed for the area; and the permit fees that will be charged.

(e) Written notice that is given by mail shall be deemed given when it is deposited in the United States mail, properly addressed, postage paid. The affidavit of a person who has knowledge of the fact that notice was mailed is prima facie evidence that notice has been given as required by this section.

(f) At the public hearing, any interested person, including the traffic engineer, may present testimony, orally or in writing, with respect to the proposed residential parking permit area, the proposed regulations and the permit fees. The director may establish rules for the conduct of the public hearing.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-317. Parking official action.

Following the close of the public hearing, the parking official shall approve or disapprove the proposed residential parking permit area or modify the proposal in response to public comment. If the parking official approves the proposal, with or without modification, he shall recommend the application and the parking regulations developed in relation to that application to the city council for designation of the residential parking permit area. If the parking official does not approve the proposal, he shall so advise the applicant, and the application shall not be submitted to the city council.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-318. City council action.

City council designation of a residential parking permit area shall be by motion. Designation of a residential parking permit area shall be effective 60 days after passage of the motion designating the district.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-319. Notice to residents.

As soon as practicable following the designation of a residential parking permit area, the parking official shall mail to the occupant of

every address within the designated residential parking permit area a written notice that shall contain the following information:

(1) The existence, boundaries and numerical designation of the residential parking permit area;

(2) The parking restrictions applicable to all motor vehicles in curbside parking spaces along public streets in the designated area that do not properly display a permit authorized by this article;

(3) The effective date of the regulations;

(4) The procedures and associated fees to obtain permits; and

(5) An application for a residential permit on the form to be prescribed by the director.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Secs. 26-320—26-340. Reserved.

DIVISION 3. PERMITS

Sec. 26-341. Residential permits.

(a) Upon submission of a complete residential permit application to the parking official by a resident of a residential parking permit area, and payment of the fee prescribed in this article, an applicant shall be entitled to receive one residential permit for each motor vehicle described in the application, provided that no unresolved parking citations, as defined in section 26-261 of this Code, exist for any motor vehicle owned by the applicant.

(b) A residential permit shall be valid for one year from its date of issuance and may be renewed for as long as the motor vehicle qualifies for a residential permit; provided, that no permit that has been revoked pursuant to section 26-294 of this Code shall be reissued for a period of two years from the date of such revocation.

(c) No residential permit shall be issued for a motor vehicle whose owner or principal operator does not reside within the designated residential parking permit area.

(d) A residential permit issued for a motor vehicle that no longer qualifies for a residential permit is void.

(e) An applicant may obtain a replacement residential permit in the same manner and for the same fee as the original residential permit upon providing evidence satisfactory to the parking official that the original permit has been destroyed.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-342. Visitor and service provider permits.

(a) Upon application of any resident of a residential parking permit area, the parking official shall issue to the resident no more than the number of visitor permits or one-day visitor permits in accordance with section 26-344 that will allow motor vehicles displaying the visitor permit or one-day visitor permit to park in curbside spaces in the residential parking permit area except where or at times otherwise prohibited. Each visitor permit shall be valid for one year from the date of issuance. Each one-day visitor permit shall be valid for one 24-hour period. For purposes of this article, the resident shall be the holder of and responsible for the use of any visitor permit or one-day visitor permit issued to the resident.

(b) Upon application of any resident of a residential parking permit area, the parking official shall issue to the resident no more than the number of service provider permits in accordance with section 26-344 that will allow motor vehicles displaying the service provider permit to park in curbside spaces in the residential parking permit area except where or at times otherwise prohibited. Each service provider permit shall be valid for one year from the date of issuance. For purposes of this article, the resident shall be the holder of and responsible for the use of any service provider permit issued to the resident.

(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-343. Permit fees.

The schedule of fees established pursuant to section 26-345 shall be applicable initially to the

permits authorized to be issued pursuant to this article. The director shall determine annually in connection with the city's fiscal year whether an increase or decrease in these fees is required for the continued operation of the residential parking permit program and is hereby authorized to make adjustments annually to the schedule of fees. The parking official shall not issue any permit unless and until the applicable fee has been paid.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07)

Sec. 26-344. Number of permits allowed.

(a) Each residential unit may obtain permits annually according to the following schedule:

Permit Type	*Number of Permits Allowed Annually*
Residential Unit	No limit for vehicles registered to RPP address
Visitor	4
Service Provider	2
One-Day (24-Hour) Visitor	100

(b) Each residential unit may obtain two service provider permits.

(c) Each residential unit is limited to 100 one-day (24-hour) visitor permits per year.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2011-1175, § 24, 12-14-2011; Ord. No. 2019-1015, § 15, 12-11-2019)

Sec. 26-345. Schedule of permit fees.

(a) The annual fee for each residential unit, visitor, and service provider permit is stated for this provision in the city fee schedule.

(b) The fee for each one-day (24-hour) visitor permit is stated for this provision in the city fee schedule.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2011-1175, § 25, 12-14-2011)

Sec. 26-346. Display of permits.

(a) Each residential unit permit shall be permanently adhered to the inside bottom driver side corner of the windshield of the motor vehicle above the inspection and vehicle registration stickers, unless otherwise provided by the parking official pursuant to subsection (c) of this section. A residential unit permit that is not permanently adhered shall not be a valid permit.

(b) Each visitor and service provider permit shall be displayed inside the motor vehicle hanging from the rear-view mirror so that the permit is easily visible from outside the motor vehicle, unless otherwise provided by the parking official pursuant to subsection (c) of this section.

(c) The parking official may accept a valid license plate number on file with the department for each permit holder in lieu of affixing a residential unit permit or hanging a visitor or service provider permit.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 09-2, § 17, 1-7-09; Ord. No. 2011-1175, § 25, 12-14-2011; Ord. No. 2019-1015, § 16, 12-11-2019)

Sec. 26-347. Effect of issuance of permit.

(a) A permit shall not guarantee or reserve a curbside parking space within a residential parking permit area. A permit issued pursuant to this article shall not authorize the standing or parking of any motor vehicle in any place or during any time when the stopping, standing or parking of motor vehicles is prohibited or set aside for specified motor vehicle types. The issuance of a permit shall not excuse the observance of any traffic regulation.

(b) Whenever the holder of a permit, or the motor vehicle for which a residential unit permit was issued, no longer fulfills one or more of the applicable provisions of this article controlling issuance or renewal of permits, the holder shall notify the parking official, who shall direct the holder to surrender the permit or present evidence that the permit has been removed from the motor vehicle.

(c) Until its expiration, surrender or revocation, a residential unit permit shall remain valid for the length of time the holder continues to reside within the designated residential parking permit area.

(d) A permit shall be valid only in the residential parking permit area for which it is issued.
(Ord. No. 07-464, § 7(Exh. B), 4-11-07; Ord. No. 2011-1175, § 26, 12-14-2011)

Secs. 26-348—26-370. Reserved.

ARTICLE VII. VALET PARKING SERVICES*

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*__Editor's note—__Ord. No. 07-1111, § 2, adopted October 3, 2007, effective November 1, 2007 (12:01 a.m.), amended Ch. 26, Art. VII in its entirety to read as herein set out. Formerly said article was entitled Valet Parking and derived from Ord. No. 07-464, § 7(Exh. B), 4-11-07.

DIVISION 1. GENERAL

Sec. 26-371. Definitions.

As used in this article, the following terms shall have the meanings ascribed in this section, unless the context of their usage clearly indicates another meaning:

Attendant means a person who operates a vehicle between a pick-up and drop-off point and a parking location on behalf of a valet parking service operator.

Major event venue means a venue with seating capacity for at least 2,000 patrons.

Permittee means a person who holds a valet parking service permit under this article to operate a valet parking service, and includes any employee, agent, or independent contractor of the permittee.

Pick-up and drop-off point means a designated location where an attendant takes possession of a vehicle for the purpose of parking and returns the vehicle to the possession of the driver thereof.

Principal means the valet parking service operator and also includes in the case of a proprietorship the proprietor and the proprietor's spouse, in the case of a partnership each partner, and in the case of a corporation each officer, each director and each other person who holds ten percent or more of the outstanding shares. For any other form of entity, the term shall include the equivalent persons as determined by the director.

Roadway means any portion of a street that is improved, designed or maintained for vehicular use, including but not limited to travel and parking.

Special event means an event occurring at a specific location outside the central business district not more than twelve times in a 12-month period and for not more than three consecutive 24 hour periods per event, for which valet parking service will be provided, including events at which the pick-up and drop-off point is entirely on private property when the valet parking operator's valet parking storage location includes the roadway.

Temporary valet zone means a valet zone that operates during authorized times for not more than a 14-day period.

Valet parking service operator means a person whose business is or includes the provision of valet parking service through use of a pick-up and drop-off point on a roadway or through use of the roadway as a valet parking storage location.

Valet parking service means accepting, parking and returning a vehicle on behalf of the operator of the vehicle regardless of whether a fee is charged.

Valet parking service permit means a current and valid permit issued to a valet parking service operator pursuant to division 2 of this article.

Valet parking service stand means a temporary, removable structure located near the pick-up and drop-off point that is utilized by the valet parking service operator for the general conduct of the valet parking service, including the dispatch of attendants and the storage of keys, umbrellas and other items.

Valet parking storage location means the location at which a valet parking service operator parks vehicles accepted from the operator of a vehicle during the course of providing a valet parking service.

Valet zone means the area or space officially designated by the traffic engineer as a pick-up and drop-off zone within a roadway as indicated by appropriate signs or markings for the use of valet parking service providers operating under permit issued by the city.

(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Sec. 26-372. Prohibited activities.

(a) It is unlawful for any person to provide valet parking service without a valet parking service permit issued by the city. It shall be an affirmative defense to prosecution under this subsection that the operation of a valet parking service occurs on private property and does not use any portion of a roadway for a pick-up and drop-off point or as a valet parking storage location, save for incidental use of the roadway

in driving vehicles to and from a pick-up and drop-off point on private property and a valet parking storage location not located on any portion of a roadway.

(b) It is unlawful for a permittee to operate, or cause to be operated, a valet parking service in violation of any term of a permit.

(c) It is unlawful for any permittee to fail to display a permit or a true copy thereof as required by this article. In any prosecution under this article, it shall be presumed that there is no permit if the permit or a true copy thereof is not properly displayed.

(d) It is unlawful for any permittee to park a vehicle or to cause or allow a vehicle to remain parked at any curbside parking space or any other portion of the roadway within the central business district in the course of providing valet parking service. Any person who violates any provision of this subsection shall be guilty of an offense and, upon conviction thereof, shall be punished by a fine of not less than $150.00 nor more than $500.00 for each violation. Each act of parking a vehicle in violation of this subsection shall constitute and be punishable as a separate offense. A violation of this subsection is a penal offense and shall not be subject to civil adjudication pursuant to article IV of chapter 16 of this Code. Parking compliance officers are authorized to issue written citations to persons violating this subsection.

(e) It is unlawful for any permittee to utilize any place on the roadway that is not a valet zone as a pick-up and drop-off point. It shall be an affirmative defense to prosecution under this subsection that the valet parking service is provided for a special event for which notice has been provided to the parking official pursuant to section 26-450 of this Code, or that the valet parking service operator is making reasonable accommodations for persons with disabilities who are utilizing the valet parking service.

(f) It is unlawful for any permittee to fail to identify a vehicle as required by section 26-412(10) of this Code.
(Ord. No. 07-1111, § 2(Exh. A), 10-3-07; Ord. No. 2019-1015, § 6, 12-11-2019)

Sec. 26-373. Provisions cumulative.

The provisions of this article are cumulative of all other provisions of this Code and other city ordinances, including, without limitation, building and fire codes, as well as all applicable state and federal laws and regulations. Compliance with this article does not excuse compliance with any other law, and permittees are additionally required to obtain any other permits, licenses, and authorizations required by law.
(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Sec. 26-374. No private rights in street.

Nothing in this article shall be construed to give any person, whether or not a permittee, any property right in or to the use of any street. All permits issued and held under this article shall be subject to the superior right of the public to the safe and orderly movement of traffic.
(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Secs. 26-375—26-390. Reserved.

DIVISION 2. VALET PARKING SERVICE PERMITS

Sec. 26-391. Permit applications.

(a) Any person who desires to operate a valet parking service in the city shall submit an application for a permit to the director in a form promulgated by the director for that purpose, which shall include the following:

(1) The applicant's name, telephone number, mailing address, street address, federal employee identification number, state sales tax number, corporate charter number, and Texas driver's license number (if applicable);

(2) The name and mailing address of each principal of the applicant, copies of the assumed-name registration if the valet parking service will be operated under an assumed name, the partnership registration, if any, and the names and addresses of all general partners if the permit holder is a partnership, and a certificate of good standing from the Texas

Secretary of State for a Texas domestic corporation or certificate of authority to do business in Texas if a foreign corporation, along with the names and addresses of all officers and the registered agent;

(3) The location of all existing and proposed valet zone locations where applicant intends to operate; provided, however, that providing information pertaining to locations where valet parking services will be provided or are intended to be provided does not constitute approval of a zone designation as required by division 4 of this article;

(4) The indemnity and release form provisions that are specified in section 26-391(b) of this Code;

(5) Proof of insurance required by section 26-411 of this Code;

(6) Criminal history information for every principal as required by the director to determine compliance with section 1-10 of this Code; and

(7) Any other information reasonably required by the director for the purpose of processing the application under the requirements of this article.

(b) As a part of its application, each applicant shall sign the following indemnity and release, which shall be a condition of each valet parking service permit:

"THE PERMITTEE AGREES TO AND SHALL DEFEND, INDEMNIFY, AND HOLD THE CITY, ITS AGENTS, EMPLOYEES, OFFICERS, AND LEGAL REPRESENTATIVES (COLLECTIVELY, THE "CITY") HARMLESS FOR ALL CLAIMS, CAUSES OF ACTION, LIABILITIES, FINES, AND EXPENSES (INCLUDING, WITHOUT LIMITATION, ATTORNEYS' FEES, COURT COSTS, AND ALL OTHER DEFENSE COSTS AND INTEREST) FOR INJURY, DEATH, DAMAGE, OR LOSS TO PERSONS OR PROPERTY SUSTAINED IN CONNECTION WITH OR INCIDENTAL TO ANY PERFORMANCE UNDER THIS PERMIT, INCLUDING, WITHOUT LIMITATION, THOSE CAUSED BY:

1. THE PERMITTEE'S AND/OR ITS AGENTS', EMPLOYEES', OFFICERS', DIRECTORS', CONTRACTORS', OR SUBCONTRACTORS' (COLLECTIVELY IN LETTERED PARAGRAPHS 1—3, "PERMITTEE'S") ACTUAL OR ALLEGED NEGLIGENCE OR INTENTIONAL ACTS OR OMISSIONS;
2. THE CITY'S AND THE PERMITTEE'S ACTUAL OR ALLEGED CONCURRENT NEGLIGENCE, WHETHER THE PERMITTEE IS IMMUNE FROM LIABILITY OR NOT; AND
3. THE CITY'S AND THE PERMITTEE'S ACTUAL OR ALLEGED STRICT PRODUCTS LIABILITY OR STRICT STATUTORY LIABILITY, WHETHER THE PERMITTEE IS IMMUNE FROM LIABILITY OR NOT.

THE PERMITTEE SHALL DEFEND, INDEMNIFY, AND HOLD THE CITY HARMLESS

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DURING THE TERM OF THE PERMIT AND FOR TWO YEARS AFTER THE PERMIT EXPIRES. THE PERMITTEE'S INDEMNIFICATION IS LIMITED TO $500,000.00 PER OCCURRENCE.

THE PERMITTEE AGREES TO AND SHALL RELEASE THE CITY FROM ALL LIABILITY FOR INJURY, DEATH, DAMAGE, OR LOSS TO PERSONS OR PROPERTY SUSTAINED IN CONNECTION WITH OR INCIDENTAL TO PERFORMANCE UNDER THE PERMIT, EVEN IF THE INJURY, DEATH, DAMAGE, OR LOSS IS CAUSED BY THE CITY'S SOLE OR CONCURRENT NEGLIGENCE."

(c) The application shall be signed by an owner, officer, or partner principal of the applicant if the applicant is not an individual, or by the individual applicant for the valet parking service permit acknowledging that he has read the application, agrees to all of its terms and provisions, affirms the correctness and accuracy of the information given on the application, and affirms that he has the authority to bind the applicant to all of the terms, provisions, and requirements of the application.
(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Sec. 26-392. Issuance; denial; fee.

(a) An application that contains all of the information required by section 26-391 of this Code shall be a complete application. A complete application shall be approved and the valet parking service permit shall be issued upon payment of the fee specified by subsection (c) below unless:

(1) The information provided in the application is materially false or incorrect or the applicant has failed in any material way to comply with this article;

(2) The applicant or an entity owned or controlled by the applicant or any of the principals of the applicant has had a valet parking service permit revoked during the preceding one year period;

(3) The director determines that proof of insurance provided by the applicant does not meet the requirements of section 26-411 of this Code;

(4) The parking official determines that there exist one or more unresolved parking citations, as defined in section 26-261 of this Code, for any vehicle owned by the applicant or any of its principals; or

(5) The applicant or any of its principals is not in compliance with the criminal history provisions of section 1-10 of this Code.

(b) In the event that an application is denied, the director shall promptly inform the applicant in writing of the reasons for the denial. The applicant, upon written request, shall be afforded an opportunity for a hearing regarding the denial before the director or a hearing officer appointed by the director. The appeal process shall be conducted in accordance with rules promulgated by the director for that purpose. If the denial is based in whole or in part upon section 1-10 of this Code, then the notice and hearing procedures shall also include any requirements to comply with section 1-9 of this Code and applicable state laws. The determination of the hearing examiner with respect to the application shall be final, unless otherwise provided by law.

(c) The initial annual fee and the annual fee for renewal of a valet parking service permit are stated for this provision in the city fee schedule. No portion of the fee shall be refundable.
(Ord. No. 07-1111, § 2(Exh. A), 10-3-07; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 26-393. Valet parking service permit conditions.

Each valet parking service permit shall specify the following terms, which shall be the conditions under which the valet parking service permittee is authorized to conduct the valet parking service:

(1) Name of the permitted valet parking service operator;

(2) That the permittee must comply with all applicable requirements of this article; and

(3) Any other reasonable conditions specified by the parking official at the time of issuance of the permit.

(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Sec. 26-394. Term.

A valet parking service permit shall be valid for one year from its date of issuance and shall not be transferrable. A permit may be renewed by filing an application pursuant to section 26-391 of this Code at least 30 days prior to the expiration of the permit. A renewal permit application shall be reviewed and approved pursuant to section 26-392 of this Code.

(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Secs. 26-395—26-410. Reserved.

DIVISION 3. REQUIREMENTS FOR OPERATING A VALET PARKING SERVICE

Sec. 26-411. Insurance.

The valet parking service operator shall maintain insurance coverage continuously during the term of its permit, in each case in accordance with the terms of this section through insurance carriers that are authorized or eligible by the Texas Department of Insurance to do business in the State of Texas and, in the case of claims made coverage, for an additional two years thereafter. The insurance required by this section shall insure against the following risks in at least the following amounts:

Coverage	*Limit of Liability*
Commercial General Liability: Including Broad Form Coverage	Bodily Injury and Property Damage, Combined Single Limits of $500,000.00 Each Occurrence and $500,000.00 Annual Aggregate
Automobile Liability Insurance: Endorsed to Include Garage Keepers Legal Liability Including Comprehensive and Collision Coverage for Vehicle Storage and Coverage for Vehicle Driven by or at Direction of Permittee	$500,000.00 Combined Single Limit per Accident
OR	
Garage Liability Insurance: Endorsed to Include Garage Keepers Legal Liability Insurance Including Comprehensive and Collision Coverage for Vehicle Storage and Coverage for Vehicle Driven by or at Direction of Permittee	$500,000.00 Combined Single Limit per Accident

The city shall be named as an additional insured on the commercial general liability and garage liability policies. Each policy must state that it may not be canceled, materially modified, or non-renewed unless the insurance company gives the director 30 days' advance written notice. Defense costs are outside the limit of liability. Aggregate limits are per 12-month policy period unless otherwise indicated. Proof of insurance required by this section shall be on the authorized form approved for this purpose by the director. A permit shall be automatically suspended without any requirement for action by the city or notice to the permittee for any period of time that any of the insurance required by this section is not in effect. In addition, the director may cause the permit to be revoked for cause for failure to maintain insurance pursuant to section 26-418 of this Code.

(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Sec. 26-412. Valet parking service operations.

A valet parking service permittee shall operate the permitted valet parking service in accordance with the following requirements:

(1) The valet parking service permittee shall maintain one valet parking service stand that meets the requirements of section 26-416 of this Code at each location where the permittee provides valet parking service;

(2) When pick-up and drop-off of vehicles occurs in the roadway, the permittee shall operate a pick-up and drop-off point only in a designated valet zone and in accordance with division 4 of this article;

(3) The permittee shall not park or allow the parking of vehicles in a pick-up and drop-off point;

(4) The permittee shall not cause or allow the standing of any vehicle in a pick-up and drop-off point for more than five minutes, inclusive of loading and unloading passengers, taking possession of or returning a vehicle and all other functions relating to the acceptance or return of a vehicle, as applicable;

(5) The permittee shall ensure that the valet parking service does not unreasonably interfere with safe traffic operations of roadways, driveways, and intersections;

(6) Except as provided in subsection 26-416(a) of this Code or otherwise authorized by a permit issued pursuant to article XVII of chapter 40 of this Code, the permittee shall not place signs, cones, or any other object in a roadway, parking space, or sidewalk, or otherwise block or hinder movement of pedestrian or vehicular traffic;

(7) The permittee shall not place or allow the placement of a sign identifying or advertising the valet parking service on a roadway or sidewalk unless the sign is located on the valet parking service stand;

(8) The permittee shall provide each patron with a pre-numbered receipt indicating the valet parking fee, if any; the name, address, and telephone number of the valet parking service operator; and information on obtaining a vehicle after the hours of valet parking service operation;

(9) The permittee shall display a true and correct copy of the valet parking service permit required by this article at each valet parking service stand;

(10) Promptly upon receipt of each vehicle for valet parking service, the permittee shall clearly identify the vehicle by affixing a ticket hang tag to the inside rear view mirror of the vehicle that identifies the valet parking service operator;

(11) The permittee shall provide a secure location for the storage of keys and shall not store keys with the parked vehicle;

(12) The permittee shall comply with all applicable traffic control laws, devices and markings and shall conduct valet parking services only where and when vehicles may lawfully park and stand; and

(13) The permittee shall not discriminate against persons wishing to utilize valet parking services on the basis of race, color, religion, sex, sexual orientation, national origin, age, or disability.

(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Sec. 26-413. Duty of valet parking operator.

It shall be the duty of every valet parking operator to cause each of the operator's attendants to comply with the requirements of this article and any permit issued hereunder. Further, it shall be the duty of valet parking operators that are not required to be permitted to maintain a copy of proof of insurance coverage for valet parking operations at each location where valet operations are performed and to display it upon request.

(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Sec. 26-414. Additional valet parking service operations requirements in central business district.

For valet parking service operations within the central business district, the valet parking service permittee shall not cause or allow the standing of vehicles in any moving lane of traffic approaching the pick-up and drop-off point.

(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Sec. 26-415. Attendant requirements.

It is the duty of the valet parking service permittee to ensure that no person at any time performs as an attendant unless the person meets each of the criteria of this section for an attendant. All attendants at a valet parking service location shall wear similar uniforms. Each attendant shall:

(1) Be 18 years of age or older;

(2) Operate vehicles in compliance with all applicable federal, state and local laws, and in a manner that assures the safety of persons and property;

(3) Possess a valid class A, B, or C Texas driver's license with no more than two convictions for offenses that occurred within any 12-month period during the preceding three years as a result of moving traffic violations;

(4) Wear a name tag identifying the attendant by name and the name of the valet parking company or the commercial establishment for which valet parking service is being provided; and

(5) Perform his duties in a courteous and professional manner.

If the valet parking service permittee, or any principal of a permittee, performs as an attendant, the permittee or principal must satisfy each of these requirements. The permittee shall maintain the information necessary to demonstrate compliance with item (3) of this section. The permittee shall retain the records at its principal office in the city for a period of three years. The director shall have the right, upon request, to inspect and copy these records of the permittee to determine compliance with the requirements of the permit.

(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Sec. 26-416. Valet parking service stand.

(a) The valet parking service permittee shall provide one valet parking service stand at each location where the permittee provides valet parking service. The valet parking service stand may be located within the building for whose benefit the valet parking service is provided or wholly on private property. A valet parking service stand shall not be located on a roadway unless expressly allowed by a valet zone designation issued pursuant to division 4 of this article. Any valet parking service stand located in whole or in part on a roadway, sidewalk, or any portion of the public right-of-way shall:

(1) Occupy a portion of the roadway, sidewalk, or public right-of-way no greater than four feet by four feet or one-half the width of the sidewalk if the sidewalk is less than eight feet wide;

(2) Not be affixed to the roadway, sidewalk, or public right-of-way in any manner;

(3) Be easily moveable by one person;

(4) Be removed from the roadway, sidewalk, or public right-of-way when the valet parking service is not being operated;

(5) Have affixed a sign not larger than four feet high by four feet wide with an area no smaller than 12 inches by 18 inches indicating:

a. The name and the valet parking service permit number of the valet service parking operator;

b. If the permittee is providing valet parking service for more than one establishment, the names of all such commercial establishments;

c. The fee for the valet parking service, if any;

d. The telephone number provided by the parking official for complaints or inquiries regarding operations of the valet parking service.

(6) Be secured and locked when left unattended; and

(7) Display a true and correct copy of the permit.

(b) If the valet parking service stand is located within a building, the permittee shall provide a portable sign that meets the requirements of subsection (a)(5) of this section on the sidewalk or roadway at the pick-up and drop-off point.

(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Sec. 26-417. Parking areas.

All vehicles parked by an attendant shall be legally parked in conformance with applicable city ordinances and state law.

(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Sec. 26-418. Revocation.

(a) A valet parking service permit may be revoked if:

(1) Any information supplied in the permit application was materially false or incorrect;

(2) The permit was issued through error;

(3) The holder of the permit has failed to comply with any applicable provision of the permit or this article;

(4) The permittee fails to perform under the release and indemnity required by section 26-391(b) of this Code; or

(5) The permittee or any of its principals are not in compliance with the criminal history provisions of section 1-10 of this Code.

(b) Notice of revocation shall be provided to the valet parking service permittee by depositing the same in the United States mail, first class, certified, return receipt requested, addressed to the address of the permittee shown in the permit application. The notice shall set forth the alleged grounds for the revocation and the opportunity to request a hearing regarding the revocation. If the revocation is based in whole or in part upon section 1-10 of this Code, then the notice and hearing procedures shall also include any requirements to comply with section 1-9 of this Code and applicable state laws.

(c) If the permittee wishes to request a hearing, such request must be made in writing and provided to the director within twenty days of the date of the director's notice of revocation. Pending the hearing, the director may suspend the valet parking service operator's permit when the director determines that continued operation of the valet parking service constitutes a hazard to public safety and welfare, including, but not limited to, interfering with the safe operation of the streets for pedestrians and the normal flow of traffic. At the hearing, the burden of demonstrating that a permit should be revoked shall be upon the city. The permittee may also present evidence and cross examine witnesses. The hearing shall be conducted by a hearing officer appointed by the director, who shall revoke the permit if he determines by a preponderance of the evidence that grounds exist for revocation. The decision of the hearing officer to revoke a permit shall be made in writing and shall set forth the grounds therefor. The hearing officer's determination shall be final.
(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Sec. 26-419. Permit subject to police regulation.

All valet operations are subject to temporary suspension when a police officer determines that the continued operation of the valet service constitutes a hazard to the public safety and welfare, including but not limited to, interfering with the safe operation of the streets for pedestrians and the normal flow of traffic.
(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Secs. 26-420—26-440. Reserved.

DIVISION 4. VALET ZONES

Sec. 26-441. Designation of valet zones.

(a) The owner or tenant of one or more commercial establishments located on a blockface may apply to the parking official for designation of a valet zone.

(b) In carrying out the functions assigned by this division, the parking official shall consult with and obtain the concurrence of the traffic engineer.
(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Sec. 26-442. Characteristics of a valet zone.

(a) A valet zone shall be located in the curbside lane of a roadway or, under certain conditions, in the portion of a roadway adjacent to a curbside that provides angled or parallel parking.

(b) A valet zone shall include not more than three parallel parking spaces, unless, under certain conditions, the traffic engineer approves the use of more spaces; provided, however, for a major event venue, a valet zone may include up to nine parallel parking spaces per blockface.

(c) A valet zone may be utilized for valet parking service only during the days and times authorized by the parking official in the valet zone designation.
(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Sec. 26-443. Application.

(a) Application for a valet zone designation shall be made upon a form promulgated by the director, shall be accompanied by the nonrefundable application fee stated for this provision in the city fee schedule, and shall include, at a minimum, the following:

(1) The name, address and phone number of the applicant;

(2) The name and location of each commercial establishment to be served by a valet parking service in the requested valet zone, and the name, address and telephone number of the owner or tenant of each commercial establishment;

(3) The days and hours during which the valet zone will be utilized for valet parking service.

(4) A copy of the valet parking service permit held by the valet parking operator who will provide valet parking service for the applicant;

(5) A copy of the applicant's valet parking plan, including:

a. A traffic flow plan, including a map, describing the route(s) that vehicles will be driven between the proposed valet zone and the valet parking storage location;

b. Information about the valet parking storage location, i.e.:

[1] Within the central business district, a copy of the contract or agreement to allow the valet parking operator to use an off-street parking facility to store vehicles, including the name and address of the off-street parking facility; or

[2] Outside the central business district, a copy of the contract or agreement to allow the valet parking operator to use an off-street parking facility, if applicable, and, if any vehicles will be stored on the roadway, a description of the area the valet parking operator will use to store vehicles, including names of streets, block designations, and an indication whether both sides of the block are intended to be used; and

c. A description of the applicant's plan for making safe and reasonable accommodations for persons with disabilities who wish to utilize valet parking services at the proposed valet zone; and

(6) Any other information reasonably required by the parking official to make any determination required under this division.

(b) The parking official initially shall review each application for completeness. If the parking official determines that the application is incomplete, he shall return the application with written notice of the deficiencies.

(c) If the parking official determines that the application is complete, the application shall be acted upon as further provided in this article following provision of notice of the application by furnishing of a written notice by regular mail to the owners of property within 200 feet of the valet zone designation at the name and address as indicated by the most recent appraisal district records.

The parking official may provide the notice, but require the applicant to pay the costs of providing notice. The notice shall be in a form prescribed by the parking official and shall contain the street address of the proposed valet zone designation, the name of the commercial establishment making the application, a city office, city telephone number and city e-mail address that interested persons may call or contact by e-mail to obtain further information or to provide input regarding

the impact of the proposed valet zone designation. Input received by the parking official within ten business days after the date of the notice will be considered by the parking official and the traffic engineer in reviewing the application.
(Ord. No. 07-1111, § 2(Exh. A), 10-3-07; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 26-444. Review and designation by traffic engineer.

(a) The parking official shall immediately forward a copy of an application determined to be complete to the traffic engineer, who is hereby authorized to determine whether the location of a valet zone within the blockface and the valet operator's parking plan are feasible and consistent with sound traffic engineering and mobility practices.

(b) The traffic engineer shall determine the number of on-street parking spaces required for each valet zone, which shall not exceed the equivalent of three parallel parking spaces, or for a valet zone serving a major event venue, the equivalent of nine parallel parking spaces; provided that the traffic engineer may authorize the use of additional spaces by a hotel when he determines that traffic conditions and hotel operations warrant.

(c) The traffic engineer may authorize more than one valet zone on a blockface only upon determining that special conditions exist relating to the configuration of the blockface or to the land uses located on the blockface and that the operation of more than one valet zone will not adversely affect vehicular and pedestrian traffic.

(d) As a condition of designating or renewing designation of a valet zone, the parking official and the traffic engineer may require holders of and applicants for valet zone designations to cooperate with each other where more than one commercial establishment located on a blockface desires designation of a valet zone.

(e) The traffic engineer shall review and approve or disapprove the proposed valet zone and parking plan. If the traffic engineer disapproves the valet zone or valet parking plan, he shall return the application to the parking official with notice of the reasons for his disapproval.

(f) If the traffic engineer determines that a valet zone and the valet parking plan are feasible and consistent with sound traffic engineering and mobility practices, he shall submit his determination and designation to the parking official.
(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Sec. 26-445. Approval or denial.

Based upon the traffic engineer's determination, the parking official shall approve or disapprove the application for a valet zone designation and provide written notice to the applicant. If the parking official disapproves the application, he shall advise the applicant of the reasons for the denial. The applicant, upon written request, shall be afforded an opportunity for a hearing regarding the denial before a hearing officer appointed by the director for that purpose. The determination of the hearing officer shall be final.
(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Sec. 26-446. Fees; term; renewal.

Each approved valet zone shall be designated for a period of one year and shall require payment to the director of the annual fee stated for this provision in the city fee schedule, plus a one-time fee to cover the city's actual cost of making and installing signage designating the valet zone.

A valet zone designation may be renewed by filing an application pursuant to section 26-443 of this Code at least 30 days prior to the expiration of the zone designation. A valet zone designation renewal application shall be reviewed and approved or denied pursuant to section 26-445 of this Code.
(Ord. No. 07-1111, § 2(Exh. A), 10-3-07; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 26-447. Signage.

(a) Upon the traffic engineer's receipt of the one-time fee to cover the city's actual cost of making and installing the signage for an approved designation of a valet zone, he shall place and maintain appropriate signs indicating the

same and stating the days and hours during which the valet zone is authorized to operate. The parking official is hereby authorized to install, maintain, and remove signs with the approval of the traffic engineer.

(b) For valet zones operating at commercial event venues where valet operations are provided for events when scheduled but not during regularly-fixed days and times, the traffic engineer shall place and maintain appropriate flip signage. Such flip signage shall be designed so that the signage may be manipulated to display an indication either that the valet parking service zone is in operation or that public parking is available in the zone. The signage indicating a valet zone shall be displayed not more than two hours prior to a scheduled event and while the zone is in operation for a scheduled event. At all other times the signage shall indicate that the public may park in the zone, subject to any other parking restrictions applicable to such zone.
(Ord. No. 07-1111, § 2(Exh. A), 10-3-07; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 26-448. Transfer; notice and approval of changes.

(a) Any transfer of a zone designation to another owner or tenant of one or more commercial establishments shall be subject to an application to be filed in the same manner as under section 26-443 of this Code along with the transfer application review fee stated for this provision in the city fee schedule. Such transfer shall only be authorized to the extent that the applicant is qualified under this division. The director may authorize the parking official to utilize modified application forms and procedures when the location and parking plan will remain unchanged. The parking official may authorize the applicant to operate in the valet zone on a temporary basis pending his determination if, based upon an initial review of the application, it appears that the applicant will be qualified. If the application is denied, the applicant must cease to utilize the designated valet zone, which shall terminate on the 30th day following notice of denial and any appeal therefrom, unless the applicant comes into compliance with this article.

(b) The holder of a valet zone designation shall notify the parking official not less than ten days prior to any proposed change in times/days of operation of the valet zone, any change of valet parking service operator, or any changes in the parking plan in a designated valet zone. After receipt of such notification and the fee stated for this provision in the city fee schedule, the parking official, in consultation with the traffic engineer, will review and approve or disapprove the proposed changes and notify the holder of his decision. The parking official shall provide signage to reflect approved changes in times/days of operation.
(Ord. No. 07-1111, § 2(Exh. A), 10-3-07; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 26-449. Temporary valet zones.

(a) An application for a temporary valet zone designation shall be submitted to the parking official not later than seven business days prior to the desired effective date of the zone designation. Upon receipt of an application for a temporary valet zone designation the owner or tenant of one or more commercial establishments located on a blockface containing the information required in section 26-443 of this Code and the fee stated for this provision in the city fee schedule, the parking official, in consultation with the traffic engineer, may establish a temporary valet zone upon a determination:

(1) By the parking official that the valet parking service will be provided by a valet parking operator permitted to operate in accordance with division 3 of this article; and

(2) By the traffic engineer that the temporary valet zone designation is feasible and consistent with sound traffic engineering and mobility practices and the parking of vehicles pursuant to the valet parking plan will not create a public safety hazard.

(b) The temporary valet zone designation shall allow the operation of valet parking service during specified hours and days for up to a 14-day period. Upon approval of the temporary valet zone designation, the parking official shall provide a temporary valet zone designation certifi-

cate, which shall indicate the authorized days and hours of operation, and appropriate nonpermanent signage to the applicant, who shall be responsible for placing the signage in the locations determined by the traffic engineer.

(c) The owner or tenant of one or more commercial establishments may receive designation of a temporary valet zone up to six times in a 12-month period, provided that for a major event venue, the owner or tenant may receive designation of a temporary valet zone up to 20 times in a 12-month period.
(Ord. No. 07-1111, § 2(Exh. A), 10-3-07; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 26-450. Special events.

A valet parking operator shall notify the parking official not later than 48 hours before a special event that it will provide valet parking services for the special event and provide the following information:

(1) The name, address and telephone number of the valet parking operator;

(2) The address of the establishment or residence to be served;

(3) The days and times of operation;

(4) The locations, including street names and block designations, where the valet parking operator will store vehicles, and a description of the portions of the roadway, if any, to be utilized for pick-up and drop-off of vehicles.

(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Sec. 26-451. Suspension of valet zone designation.

(a) Each valet zone is subject to temporary or permanent suspension by the director upon the traffic engineer's determination that the continued operation of the valet zone will interfere with the safe and efficient flow of vehicular and pedestrian traffic, without refund of any portion of the annual fee.

(b) A temporary suspension shall specify the number of days that the valet zone operation is suspended. The holder of a valet zone designation, upon written request made within ten days of receipt of the notice of the suspension, shall be afforded an opportunity for a hearing before a hearing officer appointed by the director regarding the permanent suspension of a valet zone or the temporary suspension of a valet zone of more than seven days. The hearing officer's determination shall be final.
(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Sec. 26-452. Revocation of valet zone designation.

(a) A valet zone designation may be revoked without refund of any portion of the annual and signage fees if the director determines that:

(1) A violation of any condition of the valet zone designation exists;

(2) The holder of a valet zone designation has failed to regularly provide or maintain valet parking service during any day or time period designated on the signs posted in the valet zone;

(3) The holder of a valet zone designation or the valet parking service permittee has allowed or provided valet parking service on days or times other than those authorized in the valet zone designation;

(4) The holder of a valet zone designation has failed to renew the designation in accordance with section 26-446 of this Code;

(5) The valet parking service permittee has failed to operate in accordance with the parking plan for the associated valet zone designation; or

(6) The valet parking service permittee has failed to operate in accordance with the requirements for operating a valet parking service as set forth in division 3 of this article.

(b) Notice of a revocation shall be provided to the holder of a valet zone designation by depositing the same in the United States Mail, first

class, certified, return receipt requested, addressed to the address of the holder shown in the valet zone application. The notice shall set forth the alleged grounds for the revocation and the opportunity to request a hearing regarding the revocation.

(c) If the holder of the valet zone designation wishes to request a hearing, such request must be made in writing and provided to the director within 20 days of the date of the director's notice of revocation. Pending the hearing, the director may suspend the valet zone designation pursuant to section 26-451(a). At the hearing, the burden of demonstrating that a valet zone designation should be revoked shall be upon the city. The holder of the valet zone designation may also present evidence and cross examine witnesses. The hearing shall be conducted by a hearing officer appointed by the director, who shall revoke the permit if he determines by a preponderance of the evidence that grounds exist for revocation. The decision of the hearing officer to revoke a permit shall be made in writing and shall set forth the grounds therefor. The hearing officer's determination shall be final.
(Ord. No. 07-1111, § 2(Exh. A), 10-3-07)

Secs. 26-453—26-470. Reserved.

ARTICLE VIII. OFF-STREET PARKING AND LOADING*

Article VIII. Off-Street Parking and Loading

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*__Editor's note—__Ord. No. 2013-208, § 2(Exh. A), adopted March 6, 2013, amended Ch. 26, Article VIII, in its entirety to read as herein set out. Former Article VIII pertained to similar subject matter and derived from Ord. No. 89-712, § 2, adopted 5-17-89 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

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DIVISION 1. IN GENERAL

Sec. 26-471. Purpose and applicability.

(a) This article establishes standards for sufficient off-street parking and loading facilities of newly developed or redeveloped buildings or tracts within the city during all times the buildings or tracts are in use or occupied. The director shall have the authority to enforce penalties for violations of this article.

(b) This article applies to:

(1) The construction of a new building;

(2) The alteration of an existing building or tract where the alteration results in an increase in the parking factor;

(3) A change of use classification;

(4) The modification of a parking facility that results in the elimination of any parking space, loading berth, or bicycle space otherwise required by this article;

(5) An alteration of a shopping center (strip) or shopping center (neighborhood) that results in the addition or alteration of a class 6 or 7 use classification;

(6) Buildings or tracts within the market-based parking area, except that division 2 of this article shall not apply to buildings or tracts within the market-based parking area; and

(7) Buildings or tracts along a primary transit-oriented development street, except that division 2 of this article shall not apply.

(c) This article does not apply to the construction or alteration of a temporary classroom building for a public school if the director reviews the development plat and other relevant information and determines that:

(1) There is a reasonable likelihood that the construction necessitating a temporary classroom building will not continue for more than five years; and

(2) Construction or alteration of the temporary classroom building will enable the public school to comply with state law respecting student/teacher ratios.

(d) In the event of a conflict between the definitions or regulations of this article and any other provision of this Code, the definitions or regulations of this article shall control; provided, however, that requirements to provide off-street parking contained in chapter 42 of this Code that are not mentioned in section 26-492 of this Code shall be considered additional requirements to provide off-street parking.

(e) The planning official is authorized to promulgate rules and procedures for the efficient administration of this article.

(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord. No. 2017-151, §§ 4—6, 3-1-2017; Ord. No. 2019-540, § 2, 7-17-2019; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 26-472. Definitions.

The following definitions shall apply to this article:

Alteration means (1) any addition to or modification of a building or tract that results in an increase in the parking factor used to calculate the number of parking spaces, bicycle spaces, and loading berths required of the use classification, or (2) any change of use classification of a building or tract.

Apartment means a building, or portion thereof, that is designed, built, rented, leased, or let out to be occupied, or that is occupied as the home or residence of three or more families living independently of each other, including a flat or a condominium created under chapter 81 or 82 of the Texas Property Code.

Applicant means a property owner or his or her designated agent, landlord, or tenant, holder of certificate of occupancy, management entity or other person or entity to which this article applies, that is requesting a building permit, development plat, site plan review, review of a shared parking agreement, review of a memorandum of lease, designation of a special parking area, or is otherwise seeking compliance with a provision of this article.

Arcade or *game room* means a building designed primarily as a place of amusement and recreation that may include pinball machines, video games or other related amusement machines or devices.

Arena means a building that contains facilities for seating for spectators of sporting events or other types of public amusement and entertainment.

Art gallery means a building that contains facilities for the sale or display of paintings, sculptures or other works or objects of art.

Auditorium means a building that contains facilities for use as a place for public or private gatherings.

Auto parts and supply store means a building that contains facilities for the sale of motor vehicle parts and related items to the general public.

Auto repair establishment means a building that contains facilities for the retail sale of automobile fuel, motor oil, or repair services for motor vehicles.

Auto sales dealer means a building that contains facilities for the display, service, and retail sale or lease of motor vehicles.

Bar, club or *lounge* means a building or a place of business that derives more than 50 percent of its gross revenue from the sale of alcoholic beverages for on-site consumption.

Barber or *beauty shop* means a building that contains facilities for the cutting of hair, providing facial and manicure treatments or other beauty related services and is licensed by the State of Texas as a barber shop or beauty shop or establishment.

Bicycle means a vehicle propelled by human power that has two tandem wheels at least one of which is more than 14 inches in diameter.

Bicycle space means a parking space provided solely for the parking of bicycles.

Block shall mean one or more lots, tracts or parcels of land bounded by streets, easements, rights-of-way or other physical features or a combination thereof.

Bowling alley means a building that contains facilities primarily designed for playing the game of bowling.

Building means any structure or portion thereof, that is built, or otherwise constructed, for the support, shelter or enclosure of persons, animals, or property of any kind.

Building materials or *home improvement store* means a building that contains facilities for the retail sale of lumber, tools, construction hardware, painting materials and related items.

Building permit means an official document issued by the building official authorizing performance of a specified activity under the Construction Code.

Business day means any day of the week except for Saturday, Sunday, or any other day on which department offices are closed.

Car wash (automated) means a building that contains facilities for washing more than two motorized vehicles using automated production line methods with a chain conveyor, blower, steam cleaning device or other mechanical devices.

Car wash (all others) means a building that contains facilities for the washing of motorized vehicles.

Certificate of occupancy means an official document issued by the building official after final inspections certifying that the building complies with the provisions of this article and the Construction Code. Certificate of occupancy includes a temporary certificate of occupancy issued by the building official.

Church means a building that is exempt from ad valorem taxes, in which a society of persons who profess a religious belief regularly assemble for religious worship or religious instruction or for propagating a particular form of religious belief.

Clinic (medical complex) means a group of interrelated buildings in close proximity to one another that contains facilities that provide human medical care under common management or control that may include medical or dental professional buildings as a part of such a complex.

Clinic (medical or *dental)* means a building that contains facilities for the offices of physicians or dentists for the examination and treatment of persons on an out-patient basis. A clinic (medical or dental) shall include medical or dental professional buildings which are not a part of a clinic (medical complex) as defined by this section.

Collector street is defined in chapter 42 of this Code.

College, university, or *trade school* means a building that contains facilities for an institution of higher education beyond the level of secondary school, including but not limited to, training in occupational or vocational education.

Commission means the city's planning commission created by the provisions of chapter 33 of this Code.

Compact car means a vehicle with an overall length of 16 feet or less and an overall width of six feet or less.

Construction means any act of forming, assembling, erecting or building a structure, building or portion thereof.

Courtyard style development as defined in Chapter 42.

Department means the planning and development department of the city.

Dessert shop means a building that contains facilities used primarily to sell pre-prepared desserts for on-site consumption and has a limited menu of foods such as ice cream, yogurt, custard, smoothies, cakes or cookies.

Development plat is defined in chapter 42 of this Code.

Director means the director of the department and his or her designees.

Driving range (golf) means a tract that contains facilities for practicing driving a golf ball.

Dwelling unit means a building or portion of a building that contains independent living facilities including provisions for nontransient sleeping, cooking, and sanitation.

Financial facility means a building that contains facilities for an establishment authorized to receive and safeguard money, lend money, execute bills of exchange and purchase and exchange foreign currency, including, but not limited to, banks, savings and loan associations and savings banks.

Funeral home or *mortuary* means a building that contains facilities for undertaking services such as preparing for human burial and arranging and managing funerals.

Furniture store means a building that contains facilities for the retail sale and display of furniture.

Golf course means a tract that contains facilities for playing golf and that is not a miniature golf course.

Gross floor area or *GFA* means the area within the perimeter of the outside walls of a building as measured from the inside surface of the exterior walls, with no deductions.

Heavy manufacturing and industrial means a building that contains facilities for the large-scale, capital-intensive, commercial production of goods.

Hospital means a building licensed by the State of Texas as a hospital that contains facilities for the provision of medical care of the sick or injured.

Hotel or *motel* means a building that contains guest rooms designed to be rented or let out for sleeping purposes by guests, but shall not include any use that is considered a special residential use in this article or any other residential use.

Leased tract means a tract subject to a memorandum of lease whether that tract part of a shared parking agreement or leased for use as an off-site parking facility.

Library means a building that contains a repository or collection of literary and artistic materials such as books, periodicals and newspaper.

Loading means the act of transferring items to or from a delivery motor vehicle.

Loading berth means a permanent, all-weather surfaced, marked space for the loading, unloading or parking of delivery motor vehicles other than motor vehicles principally designed for passengers.

Loading facilities category means the use of a building or tract for a purpose identified in section 26-522 of this Code.

Loading facility means a loading berth or other space used for the purpose of temporary loading and unloading or parking of trucks and motor vehicles other than motor vehicles principally designed for passengers.

Lot means (1) in the context of a subdivision plat, an undivided tract of land intended for single-family residential use contained within a block and designated on a subdivision plat by numerical identification; and (2) in the context of a development plat, a parcel intended as an undivided unit for the purpose of development.

Major thoroughfare. Is defined in section 1-2 of this Code.

Management entity means a political subdivision, a local government corporation, or other entity that represents the property owners within its boundaries.

Manufactured home means a building, transportable in one or more sections, that is eight body feet or more in width and 32 feet or more in length, that is built on a permanent chassis and designed to be used as a dwelling unit with or without a permanent foundation when connected to the required utilities, and includes plumbing, heating, air-conditioning and electrical systems.

Manufacturing facility means a building that contains facilities for the processing of raw or partially completed material into a finished or partially finished product.

Market-based parking area means the area beginning at the intersection of I.H. 10 and U.S. 59, then in a southerly direction along U.S. 59 until its intersection with the Union Pacific railroad, then in a southerly direction along the railroad until its intersection with I.H. 45, then in a northerly direction along I.H. 45 until its intersection with U.S. 59, then in a southerly direction along U.S. 59 until its intersection with McGowen Street, then in a northerly direction along McGowen Street until its intersection with San Jacinto Street, then in a southernly direction along San Jacinto Street until its intersection with Holman Street, then in a easterly direction along Holman Street unit its intersection with Crawford Street, then in a southerly direction along Crawford Street and continuing along Almeda Street unit its intersection with Alabama Street, then in a westerly direction along Alabama Street until its intersection with San Jacinto Street, then in a southerly direction along San Jacinto Street until its intersection with U.S. 59, then in a westerly direction along U.S. 59 to Spur 527, then in a northerly direction along Spur 527 until its intersection with Bagby Street, then in a northerly direction along Bagby Street until its intersection with Heiner Street, then in a northerly direction along Heiner Street and continuing along Heiner Street as projected and extended to Sabine Street until its intersection with Memorial Drive, then in a easterly direction along Memorial Drive until its intersection with I.H. 45, then in a northerly along I.H. 45 until its intersection with I.H. 10, then in an easterly direction along I.H. 10 until its intersection with U.S. 59. A tract within a block that abuts McGowen Street, San Jacinto Street, Holman Street, Crawford Street, Almeda Street, Alabama Street, Bagby Street, Heiner Street, or Sabine Street are included within the area.

Memorandum of lease means a summary of a lease agreement or shared parking agreement that designates certain property to be used exclusively for the parking of motor vehicles to satisfy all or part of the parking requirements of a use classification determined pursuant to this article.

Micro-mobility device means a scooter, skateboard, or other compact device designed for personal mobility, either privately-owned or part of a shared service. It does not include an "electronic personal assistive mobility" device under the Texas Transportation Code, section 551.201.

Mini-warehouse facility means a building that contains facilities designed as individual compartments available to the general public for rent or lease as storage.

Miniature golf means a tract that contains facilities for playing golf on a miniature course.

Movie theater means a building that contains facilities for showing motion pictures to an audience.

Multi-unit residential as defined in Chapter 42.

Museum means a building that contains facilities for the display of objects of art, science, history, or other objects of cultural significance.

Neighborhood restaurant means a restaurant that does not have a drive-through facility and that is greater in size than 3,000 square feet of GFA plus 15% of GFA used as outdoor decks, patios and seating areas, but less than or equal to 4,500 square feet of GFA plus 15% of GFA used as outdoor decks, patios and seating areas. If a neighborhood restaurant increases in size to greater than 4,500 square feet of GFA plus 15% of GFA used as outdoor decks, patios and seating areas, then no part of the building or outdoor decks, patios and seating areas shall continue to be considered a neighborhood restaurant."

Neighboring property owner means an individual, group, or entity listed on the current appraisal district records as the owner of record for a lot or tract, as those terms are defined in section 42-1 of this Code, that is within 800 feet of the boundary of the lot or tract for which an administrative modification or variance is requested.

Nursery school or *day care center* means a building licensed by the State of Texas as a nursery school or day care that contains facilities related to the care and education of children primarily under six years of age including, but not limited to, all buildings and facilities licensed by the State of Texas as child care facilities.

Nursing home means a building licensed by the State of Texas as a nursing home that contains facilities to provide accommodations for convalescents or other persons who are not acutely ill and not in need of hospital care but require skilled care and related medical services.

Occupants means the number of students, staff and guests estimated to be inside a school building as reflected by the latest utility capacity reservation letter for each building.

Off-site parking means a parking facility located on a tract other than the tract where the use classification is located that must be available for parking for the use classification in order to comply with the requirements of this article.

Office means a building that contains facilities for the regular transaction of business, whether public or private, that is not more adequately described as a different use classification by this article.

On-site means a location that is a genuine part of a development and that is located on the same lot or tract as the development. An on-site location does not include properties located across a public right-of-way.

Park pavilion means an enclosed or semi-enclosed building that contains facilities for picnicking or recreation.

Parking facility means a parking lot, parking garage, loading berth, or other collection of parking spaces or bicycle spaces used for the purpose of temporary parking of vehicles.

Parking factor means the unique quality of a use classification that is used to calculate the required number of parking spaces, bicycle spaces, and loading berths of a use classification, such as, by way of example, gross floor area, useable floor area, and number of dwelling units, employees, sleeping rooms, occupants, storage units or bays, seats, golf course greens, and bowling alley lanes.

Parking lift means a mechanical device that may be suitable for indoor and outdoor use powered by an electric motor or hydraulic pump used to increase parking capacity within a parking facility by moving motor vehicles into a temporary storage position.

Parking management plan means a plan submitted by a management entity that describes the shared parking plan, alternative parking regulations, or substituted requirements for the number of sparking spaces, bicycle spaces, or loading berths in a special parking area.

Parking space means an identified and marked area wholly within private property that is all-weather surfaced and that is designed for the storage of one parked vehicle.

Psychiatric hospital means a building that contains facilities licensed by the State of Texas to provide care of the mentally ill or mentally disabled.

Reciprocal easement agreement means a written agreement in recordable form between two or more property owners that includes, but is not limited to, a restriction on the use of certain property for parking purposes and describes the building or tract that is entitled to the exclusive use of the designated parking facilities.

Responsible party means the property owner or his or her designated agent, landlord, tenant, holder of certificate of occupancy, management entity, or other person or entity to which this article applies who is responsible for complying with certain ongoing duties and responsibilities of a person or entity to which this article applies regardless of whether they are an applicant requesting a building permit, development plat, site plan review, review of a shared parking agreement, memorandum of lease, designation of a special parking area, or other provision of this article.

Restaurant means a building that contains facilities for the preparation of food or drinks to serve to customers including, but not limited to, coffee shops, cafeterias, concession stands, clubs that provide food service, including veterans' clubs that give or offer food for sale to the general public.

Retail store means a building that contains facilities for the retail sale or rental of goods or merchandise including, but not limited to, clothing stores, discount stores, household goods stores, office supply stores, drugstores, and bookstores.

Retirement community (with kitchen facilities) means a building that contains two or more individual dwelling units with individual kitchen facilities that are specifically designed and restricted in use for the needs of persons over 55 years of age.

Retirement community (without kitchen facilities) means a building that contains two or more individual dwelling units without individual kitchen facilities that are specifically designed and restricted in use for the needs of persons over 55 years of age.

Roller or *ice skating rink* means a building that contains facilities designed primarily for use as a roller skating or ice skating area that may include a limited seating area.

School (public, denominational or *private)* means a building that contains facilities operated by a public, religious, private, or other agency with a curriculum for kindergarten, elementary or secondary education.

Service station means a building that contains facilities for the sale of gasoline.

Shared parking means the use of the same off-street parking space or spaces to satisfy the off-street parking requirements for two or more individual use classifications.

Shopping center (neighborhood) means a group of commercial establishments contained in one or more buildings encompassing a total GFA greater than or equal to 25,000 square feet and less than 100,000 square feet developed as an integrated unit under common ownership or common parking agreement (reciprocal easement agreement or similar arrangement).

Shopping center (regional) means a group of commercial establishments contained in one or more buildings encompassing a total GFA greater than or equal to 100,000 square feet developed as an integrated unit under common ownership or common parking agreement (reciprocal easement agreement or similar arrangement).

Shopping center (strip) means a group of commercial establishments contained in one or more buildings encompassing a total GFA below 25,000 square feet developed as an

integrated unit under common ownership or common parking agreement (reciprocal easement agreement or similar arrangement).

Single-family residential as defined in Chapter 42.

Site plan means a detailed, graphical representation of the arrangement of buildings, parking and loading facilities, driveways and other improvements on a tract of land.

Small bar means a bar, club or lounge that is greater in size than 2,500 square feet of GFA plus any outdoor decks, patios and seating areas, but less than or equal to 4,000 square feet of GFA plus any outdoor decks, patios and seating areas. If a small bar increases in size to greater than 4,000 square feet of GFA plus any outdoor decks, patios and seating areas, then no part of the building or outdoor decks, patios and seating areas shall continue to be considered a small bar.

Small restaurant means a restaurant that does not have a drive-through facility and that is less than or equal in size to 3,000 square feet of GFA plus 15% of GFA used as outdoor decks, patios and seating areas. If a small restaurant increases in size to greater than 3,000 square feet of GFA plus 15% of GFA used as outdoor decks, patios and seating areas, then no part of the building or outdoor decks, patios and seating areas shall continue to be considered a small restaurant.

Special parking area or *SPA* means an area designated by city council that is approved to have alternative parking requirements to those required by this article.

Special residential means a residential building that is not single family-residential or an apartment, which may contain rooming houses, group dwellings, community facilities, homes for physically or mentally disabled, lodging houses, hostels, or similar uses.

Sports club or *health spa* means a building that contains facilities for physical exercise, recreational sports, and relaxation.

Sports complex means a building or tract that contains facilities for playing baseball, softball, football, soccer or other competitive sports.

Subdivision plat is defined in chapter 42 of this Code.

Supermarket means a building that contains facilities for the sale of food, groceries, and household goods. Convenience stores shall be considered supermarkets.

Swimming club means a building or tract that contains facilities designed primarily for aquatic sports or recreation.

Take-out restaurant means a restaurant that does not provide seating for on-premises consumption of food or beverages and may include a drive-through facilities or a take-out window or counter.

Tavern or *pub* means a bar, club or lounge that is less than or equal in size to 2,500 square feet of GFA plus any outdoor decks, patios and seating areas. If a tavern or pub increases in size to greater than 2,500 square feet of GFA plus any outdoor decks, patios and seating areas, then no part of the building or outdoor decks, patios and seating areas shall continue to be considered a tavern or pub.

Temporary classroom building means a building built on skids and utilized by a public school district for the purpose of eliminating the shortage of classrooms in order to bring the student/teacher ratio into compliance with state law.

Tennis or *racquet club* means a building that contains facilities designed for playing racquet sports.

Theater means a building or tract that contains facilities for the performance of theatrical, literary or lyrical productions.

Title report means a current report, commitment, opinion or title policy that: (1) is prepared and executed by a title company authorized and in good standing to do business in the State of Texas or by an attorney licensed by the State of Texas; (2) provides a legal description of the property proposed to be subdivided

or developed; (3) identifies the owner and lienholder of the property subject to the subdivision plat or development plat and the recording information of each instrument by which each owner or lienholder acquired its respective interest; and (4) describes all encumbrances of record that affect the property and the recording information of each instrument by which each encumbrance was established.

Tract means a parcel of land.

Transit facility means a permanent facility owned and operated by the Metropolitan Transit Authority of Harris County (METRO) designed to serve as points of access to METRO's transit infrastructure.

Transportation terminal means a building that is used to accommodate the arrival and departure of passengers by aircraft, motor bus, ship, or railroad train.

Truck terminal means a building designed with two or more loading berths to facilitate the loading or unloading of trailer trucks.

Use classification means the use of a building or tract for a purpose identified in division 2 of this article.

Useable floor area or *UFA* means the gross floor area of a building excluding lobbies, hallways, restrooms, elevators, stairwells, mechanical shaft or vertical penetrations, atriums, mechanical rooms, and service rooms.

Valet parking plan means a detailed graphical representation of the arrangement of parking spaces, drive aisles, and other improvements, that includes detailed dimensions of parking facilities.

Veterinary clinic means a building that contains facilities for the examination and treatment of animals.

Warehouse means a building that contains facilities for the storage of goods or merchandise.

(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord. No. 2017-151, § 7, 3-1-2017; Ord. No. 2019-540, § 3, 7-17-2019; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020; Ord. No. 2023-802, § 2, 9-27-2023)

Sec. 26-473. Site plan submittal requirements.

(a) An applicant or responsible party shall submit a site plan to the department prior to obtaining a certificate of occupancy or a building permit, or in conjunction with a development plat required by chapter 42 of this Code. The site plan shall:

(1) Be accompanied by the non-refundable fee set forth for this provision in the city fee schedule when the site plan is not submitted in conjunction with a development plat;

(2) Be to scale, provide a north arrow, and contain bearings, dimensions, and boundaries of all tracts related to the use classification and the parking facilities;

(3) Include the calculation used to determine the number of parking spaces, bicycle spaces, and loading berths required by this article;

(4) Be accompanied by a survey of the tract or a copy of the most recently recorded subdivision plat of the tract; and

(5) Show:

a. Each existing and proposed building, including dimensions and GFA of each building;

b. Each proposed alteration to a building or tract, including dimensions and GFA of each alteration;

c. The dimensions, design, and location of parking spaces, bicycle spaces, bicycle racks, loading berths, drive aisles, existing and proposed driveways, landscaping islands, and other physical features relating to layout of parking and loading facilities;

d. Existing and proposed trees, shrubs, and screening fences required by article V of chapter 33, or chapter 39 for bulk containers with screening, of this Code;

e. Building setback lines required by chapter 42 of this Code or contained in any separately recorded instrument;

f. The location of above-ground existing and planned physical features such as utility poles, fire hydrants, dumpsters, bollards and other obstructions;

g. The location of sidewalks and other improvements;

h. The location, dimensions, distance, and clearly delineated pedestrian route to off-site parking facilities, as applicable; and

i. The location and configuration of each drop-off, drive-in, or drive-through facility, as applicable.

(b) The following documents must be submitted with a site plan, as applicable:

(1) Covenants and restrictions recorded in the real property records affecting the tracts contained in the site plan;

(2) Licenses, permits, and other documentation required by federal, state, and other governments for the operation of a use classification listed in division 2 of this article;

(3) All documents relied upon in making the calculation required by section 26-473(a)(3) of this Code, for example, floor plans, layout of golf course greens, tennis courts, outdoor decks, patios, and seating areas;

(4) The most recent utility capacity reservation letter;

(5) A valet parking plan;

(6) A shared parking plan;

(7) A memorandum of lease;

(8) The layout and description of proposed amenities for extending the distance of off-site parking in accordance with this article; and

(9) A title report.

(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord, No. 2023-802, § 3, 9-27-2023)

Sec. 26-474. Review of site plan and building permit.

(a) Upon receipt of a site plan containing all the information required by section 26-473 of this Code, the director shall perform a review of the site plan to verify compliance this article. The building official shall not issue a building permit for the construction of a building or alteration to a building or tract within the city unless the director approves the site plan verifying that the applicant provides for the parking and loading facilities required by this article.

(b) The building official shall not issue a certificate of occupancy for the construction of a building or alteration to a building or tract unless the applicant constructs or provides for the required parking and loading facilities. Prior to the issuance of a certificate of occupancy, the building official shall inspect the parking and loading facilities provided to verify compliance with the approved site plan.

(c) The director shall not approve a site plan and the building official shall not issue a building permit or certificate of occupancy until the applicant has produced all supporting documentation including required licenses, title reports, deed restrictions, surveys, and other required documentation prior to the approval of a site plan, building permit, or certificate of occupancy. Any site plan approved or building permit or certificate of occupancy issued on the basis of either erroneous documentation or false information is void with the same force and effect as if it had never been approved or issued without the necessity of any action by the city or any other person or agency.

(d) The director shall not approve a site plan containing a drop-off, drive-in, or drive-through facility configuration unless the configuration provides sufficient area for access to the drop-off, drive-in, or drive-through facility without blocking the public right-of-way or any parking space required by this article. The director shall consider the recommendation of the traffic engineer regard-

ing the configuration before approval of the site plan. The building official shall not issue a building permit or certificate of occupancy for any use classification containing a drop-off, drive-in, or drive-through facility unless the director approves the site plan.

(e) The director shall deny in writing all building permit applications and site plans that do not comply with the requirements of this article.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-475. Deed restriction compliance.

(a) A site plan submitted for review to verify compliance with the parking requirements of this article shall not include any land to be used for off-site parking that is restricted to residential use where the use or intended use of that restricted property as an off-site parking facility for a different purpose or enterprise would violate the applicable deed restrictions.

(b) No site plan submitted for review pursuant to this article shall be approved by the director if any portion of an off-site parking facility used to satisfy the off-street parking requirements of this article includes any land that is restricted to residential use and the use or intended use of that restricted property as an off-site parking facility for a different purpose or enterprise would violate the applicable deed restrictions.

(c) Every applicant who submits a site plan for review to verify compliance with the requirements of this article shall furnish to the director a certified copy of the instruments containing the deed restrictions, or any other recorded document containing restrictions that affect the use of all or any part of the property within the site plan, including any property to be used for on-site and off-site parking facilities.

(d) If there are no recorded restrictions affecting the use of any of the property included within the site plan then the applicant shall submit a current abstractor's certificate or a title report which expressly states that there are no recorded restrictions applicable to the subject property. A title report or abstractor's certificate required by this section shall be prepared within 30 days prior to the date submitted by a title company authorized by law to do business in this state or by an attorney licensed to practice law in this state.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-476. Violations.

(a) It is a violation of this article for any person to construct a building or alter a building or tract in the territorial limits of the city without first complying with the provisions of this article. Any person violating any provision of this article is guilty of a misdemeanor and, upon conviction, shall be fined an amount not less than $100.00 and not more than $500.00. Each day that a violation continues shall constitute a separate offense. Prosecution or conviction under this provision shall not be a bar to any other remedy or relief for violation of this article.

(b) If a person constructs a building or alters a building or tract prior to complying with the requirements of this article, the fees described in this article shall be doubled for construction or alteration required to comply with the provisions of this article. The paying of a double fee shall not relieve a person from complying with the requirements of this article, and shall not be a bar to any other remedy or relief for violation of this article.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-477. Fees.

The director may, from time to time, with the assistance of the department of finance, pursuant to city policies and procedures, prepare and submit for city council approval revisions to the fees that shall be paid by an applicant for services performed by the department in accordance with the provisions of this article. The fees approved under this provision shall be included in the city fee schedule. Payment of any applicable fees when due is a condition of the processing of any application under this article.
(Ord. No. 2017-151, § 8, 3-1-2017)

Sec. 26-478. Time for submittal.

(a) The director shall maintain on the department website an annual calendar approved by the commission that details the time for submittal for each type of application established by this article that requires approval by the commission. The calendar shall include:

(1) The name of the application type and corresponding section in this article;

(2) The submittal period, including the date and time by which an applicant must file a complete application with the department; and

(3) The corresponding date of the regularly scheduled meeting of the commission where a complete application will first be considered by the commission following the submittal period, as applicable.

(b) Each year, on or before the first regularly scheduled meeting of the commission in December, the commission shall adopt a schedule for the next calendar year that meets the following criteria:

(1) The schedule outlined in the calendar ensures the timely and expeditious consideration of a complete application submitted by an applicant;

(2) The schedule outlined in the calendar creates regular and predictable periods of time during which an applicant may file a complete application with the department; and

(3) The schedule outlined in the calendar establishes a reasonable time period for the director to perform the administrative procedures, consider and review the application, and fulfill the notification requirements of this article, as applicable.

(Ord. No. 2017-151, § 8, 3-1-2017)

Secs. 26-479—26-488. Reserved.

DIVISION 2. REQUIREMENTS FOR PARKING SPACES AND BICYCLE SPACES

Sec. 26-489. In general.

The building official shall not issue a building permit or certificate of occupancy for the construction of a building or alteration of a building or tract unless the building or tract includes the construction of or provides for the parking facilities required by this article. The parking facilities shall be on the same tract as the use classification those facilities are intended to serve except as otherwise provided for in this article.

(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-490. Use of parking space or bicycle space.

All required parking facilities shall conform to the following standards:

(1) Parking facilities shall be:

a. Available for use by employees, customers, and patrons;

b. Maintained at all times the building or tract is in use or occupied; and

c. Used exclusively for their intended purpose. A parking space shall be used exclusively for the temporary parking of passenger automobiles not exceeding one ton in capacity and a bicycle space shall be used exclusively for the temporary parking of bicycles;

(2) Parking facilities that are required by this article shall only be used for parking, and are not to be used for any other use, including but not limited to, the sale, display or storage of merchandise, as a place of public gathering, or for the storage or repair of vehicles or equipment. If a tract provides for more parking spaces than the number required by this article, the excess number of parking spaces may be used for any purpose permitted by law. All parking spaces required by this article may be used for valet parking in accordance with the requirements of this chapter.

(3) For a project that will be built in phases, an applicant may install the required parking spaces or bicycle spaces in phases if the applicant has submitted a schedule

for phased development and that schedule has been approved by the director. Each phased parking installation must include enough parking to meet the parking requirements for the completed phases of the development for which the parking is provided. This schedule for phased development must indicate the dates on which all parking approved pursuant to this article will be provided.

(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-491. Fractional requirements.

(a) If the parking space requirements of this article result in a fractional requirement that is 0.5 or greater, the applicant or responsible party shall provide parking spaces equal to the next higher whole number.

(b) If the bicycle space requirements of this article result in a fractional requirement, the applicant or responsible party shall provide bicycle spaces equal to the next higher whole number.

(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-492. Parking spaces for certain types of use classifications.

The construction of a building or alteration of a building or tract for any of the following types of use classifications shall provide the required number of parking spaces, or the incremental increase in the number of parking spaces in the case of an alteration, as shown below for that use classification.

Use Classification		*Required Number of Parking Spaces*
Class 1. Office:		
a.	Office	2.5 parking spaces for every 1,000 square feet of GFA or 2.75 parking spaces for every 1,000 square feet of UFA
b.	Financial facility	4.0 parking spaces for every 1,000 square feet of GFA
Class 2. Residential:		
a.	Apartment	1.250 parking spaces for each efficiency dwelling unit
		1.333 parking spaces for each one-bedroom dwelling unit
		1.666 parking spaces for each two-bedroom dwelling unit
		2.0 parking spaces for each dwelling unit with 3 or more bedrooms
b.	Single-family residential or manufactured home	2.0 parking spaces for each dwelling unit, except
		1.0 parking space per dwelling unit that is 1,500 sf or less
		No parking space if the criteria of § 42-186(a)(2) is met
	Second dwelling unit	If the first unit meets off-street parking requirements, then the second unit needs
		+0 parking space if the unit is 1,000 sf or less
		+1 parking space if the unit is 1,001 sf—1,500 sf
	Single-family residential lots within Courtyard style development	1.0 parking space per dwelling unit 1,000 sf or less
		2.00 parking spaces per dwelling unit is 1,001—1,800 sf
c.	Special residential	0.3 parking spaces per sleeping room, plus 1.0 parking space per employee on largest shift

Use Classification		*Required Number of Parking Spaces*
d.	Retirement community (with kitchen facilities)	0.75 parking spaces per dwelling unit, plus 1.0 space per employee on the largest shift
e.	Retirement community (without kitchen facilities)	1.0 parking space for every 6 beds, plus 1.0 parking space per employee on largest shift
f.	Hotel or motel	1.0 parking space for each sleeping room up and including 250 rooms;
		0.75 parking spaces for each sleeping room from 251 rooms to 500 rooms;
		0.50 parking spaces for each sleeping room in excess of 500 rooms
g.	Multi-unit residential (MUR)	1.0 Parking space per dwelling unit 1,000 sf or less
		2.0 parking spaces per dwelling unit greater than 1,000 sf
Class 3. Health Care Facilities:		
a.	Hospital	2.2 parking spaces for each bed
b.	Psychiatric hospital	1.0 parking space for every 4 beds and 1.0 parking space for every 4 employees
c.	Clinic (medical complex)	2.7 parking spaces for every 1,000 square feet of GFA
d.	Clinic (medical or dental)	3.5 parking spaces for every 1,000 square feet of GFA
e.	Nursing home	1.0 parking space for every 3 beds and 1.0 parking space for every 4 employees
f.	Funeral home or mortuary	0.5 parking spaces for every chapel seat
g.	Veterinary clinic	5.0 parking spaces for every 1,000 square feet of UFA
Class 4. Industrial and Commercial Manufacturing:		
a.	Multi-tenant (or multi-building project):	
	1. At grade (no docks)	2.5 parking spaces per 1,000 square feet of GFA of office space; and 1.0 parking space per 5,000 square feet of GFA of warehouse space
	2. Semi-dock high	2.5 parking spaces per 1,000 square feet of GFA of office space; and 1.0 parking space per 5,000 square feet of GFA of warehouse space
	3. Full-dock high	2.5 parking spaces per 1,000 square feet of GFA of office space; and 1.0 parking space per 7,000 square feet of GFA of warehouse space
	b. Bulk warehouse	2.5 parking spaces per 1,000 square feet of GFA of office space; and 1.0 parking space per 7,000 square feet of GFA of warehouse space
	c. Heavy manufacturing and industrial	2.5 parking spaces per 1,000 square feet of GFA of office space; and 1.0 parking space per 2,000 square feet of GFA of warehouse space
	d. Light manufacturing assembly and research and development	2.5 parking spaces per 1,000 square feet of GFA of office space; and 1.0 parking space per 1,500 square feet of GFA of assembly space
	e. Transportation terminal	6.5 parking spaces per 1,000 square feet of GFA of waiting area

Use Classification		*Required Number of Parking Spaces*
	f. Truck terminal	1.0 parking space per 2,000 square feet of GFA
	g. Mini-warehouse facility	1.0 parking space for every 50 storage units or bays
Class 5. Religious and Educational:		
	a. Church	1.0 parking space for every 5 fixed seats in auditorium or sanctuary or, if there are no fixed seats, 1.0 parking space for every 40 square feet of GFA in the main auditorium or sanctuary
	b. Nursery school or day care center	1.0 parking space for every employee on duty during the largest shift, plus 1.0 parking space for every 5 children in attendance when the facility is operating at maximum capacity
		1.0 parking space for every employee on duty during the largest shift and 1.0 parking space for every 10 children in attendance when the facility is operating at maximum capacity if a drop-off, drive-in, or drive-through facility is provided
c.	School (public, denominational or private):	
	1. Elementary school	1.0 parking space per every 12 occupants
	2. Junior high school (including a school for 9th grade only)	1.0 parking space per every 7 occupants
	3. Senior high school	1.0 parking space per every 3 occupants
d.	College, university, or trade school	1.0 parking space for every 3 employees plus 1.0 parking space for every 10 students residing on campus and 1.0 parking space for every 5 students not residing on campus
e.	Library	1.2 parking spaces for every 1,000 square feet of GFA
f.	Art gallery or museum	3.0 parking spaces for every 1,000 square feet of GFA of exhibit area or gallery space
Class 6. Recreation and Entertainment:		
a.	Golf course	5.0 parking spaces for every green
b.	Movie theater	0.3 parking spaces for every seat
c.	Bowling alley	5.0 parking spaces per lane
d.	Theater, auditorium or arena	1.0 parking space for every 3 seats
e.	Tennis or racquet club	3.0 parking spaces per court
f.	Sports club or health spa	5.0 parking spaces for every 1,000 square feet of GFA
g.	Roller or ice skating rink	5.0 parking spaces for every 1,000 square feet of GFA
h.	Swimming club	9.0 parking spaces per employee
i.	Park (5 to 10 acres)	1.0 parking space for the first 2 acres and 1.0 parking space for each additional acre and additional parking spaces must be provided for each separate use classification constructed in the park
j.	Park (over 10 acres)	5.0 spaces for the first acre; and 1.0 space for each additional 10.0 acres and additional parking spaces must be provided for each separate use classification constructed in the park
k.	Park pavilion	1.0 parking space for each picnic table
l.	Sports complex	1.0 parking space for every 40 square feet of seating
m.	Miniature golf	1.0 parking space for each hole
n.	Driving range (golf)	1.0 parking space for each tee

Use Classification		*Required Number of Parking Spaces*
o.	Arcade or game room	5.0 parking spaces for every 1,000 square feet of GFA
Class 7. Food and Beverage:		
a.	Take-out restaurant	4.0 parking spaces for every 1,000 square feet of GFA
b.	Dessert shop	6.0 parking spaces for every 1,000 square feet of GFA and outdoor decks, patio and seating areas in excess of 15% of GFA
c.	Small restaurant	8.0 parking spaces for every 1,000 square feet of GFA and outdoor decks, patio and seating areas in excess of 15% of GFA
d.	Neighborhood restaurant	9.0 parking spaces for every 1,000 square feet of GFA and outdoor decks, patio and seating areas in excess of 15% of GFA
e.	Restaurant	10.0 parking spaces for every 1,000 square feet of GFA and outdoor decks, patio and seating areas in excess of 15% of GFA
f.	Tavern or pub	10.0 parking spaces for every 1,000 square feet of GFA and outdoor decks, patio and seating areas
g.	Small bar	12.0 parking spaces for every 1,000 square feet of GFA and outdoor decks, patio and seating areas
h.	Bar, club or lounge	14.0 parking spaces for every 1,000 square feet of GFA and outdoor decks, patios and seating areas
Class 8. Retail Services:		
a.	Supermarket	5.0 parking spaces for every 1,000 square feet of GFA
b.	Furniture store	2.0 parking spaces for every 1,000 square feet of GFA
c.	Retail store	4.0 parking spaces for every 1,000 square feet of GFA
d.	Building materials or home improvement store	4.0 parking spaces for every 1,000 square feet of GFA of retail sales area
e.	Barber or beauty shop	8.0 parking spaces for every 1,000 square feet of GFA
f.	Shopping center (strip) (up to 25,000 square feet of GFA)	4.0 parking spaces for every 1,000 square feet of GFA, plus the incremental increase in the number of parking spaces required by 26-495(a)
g.	Shopping center (neighborhood)(25,000—100,000 square feet of GFA)	4.0 parking spaces per 1,000 square feet of GFA, plus the incremental increase in the number of parking spaces required by 26-495(b)
h.	Shopping center (regional) (over 100,000 square feet of GFA)	4.0 parking spaces for every 1,000 square feet of GFA
Class 9. Automobiles:		
a.	Auto sales dealer	5.5 parking spaces for every 1,000 square feet of GFA
b.	Auto repair establishment	5.0 parking spaces for every 1,000 square feet of GFA
c.	Car wash (automated)	2.5 parking spaces for each bay or stall for stacking space
d.	Car wash (all other)	1.0 parking space per bay or stall
e.	Service station	3.0 parking spaces for each service stall and 1.0 space for each employee on duty during largest shift
f.	Auto parts and supply store	4.0 parking spaces for every 1,000 square feet of GFA of retail sales area

(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord. No. 2023-802, § 4, 9-27-2023)

Sec. 26-493. Unspecified uses.

The director shall determine the minimum number of parking spaces and bicycle spaces required for any use not specified in section 26-492 of this Code. The director shall consider the following criteria to determine the parking requirements for the unspecified use:

(1) Documentation supplied by the applicant regarding actual and anticipated demand for parking spaces and bicycle spaces for the proposed use;

(2) Evidence or data in available planning and technical studies relating to the proposed use;

(3) Parking requirements for the proposed use as determined by other comparable jurisdictions; and

(4) Parking requirements for similar uses.

(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-494. Changes in use classification for grandfathered uses.

For buildings or tracts with a valid building permit or certificate of occupancy, a change in use classification shall not require additional parking spaces or bicycle spaces if the following criteria are satisfied:

(1) The number of parking spaces and bicycle spaces provided at the time of the most recently approved site plan, building permit, or certificate of occupancy is maintained;

(2) The change in use classification of the building or tract results in a lower overall parking requirement than the number of parking spaces that would be required by this article if the current use on the tract was newly constructed;

(3) Any construction of new buildings shall provide for the parking facilities required by this article for the new construction;

(4) Any alteration of existing buildings on the tract that results in an increase in GFA or UFA shall provide for the parking facilities required by this article for the incremental increase in GFA or UFA; and

(5) Any change in use classification to a class 7 use classification under section 26-492 of this Code is only to a take-out restaurant.

Nothing in this section shall prevent a change in use classification that satisfies the parking and loading requirements of this article.

(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-495. Shopping centers with certain use classifications.

(a) A shopping center (strip) that contains 20 percent or more of its GFA as a class 6 or 7 use classification, excluding a tavern or pub, small bar, or bar, club or lounge, pursuant to section 26-492 of this Code shall provide the incremental increase in the number of parking spaces required for the class 6 or 7 use classification in excess of the 20 percent of its GFA. A shopping center (strip) that contains a tavern or pub, small bar, or bar, club, or lounge shall provide the incremental increase in the number of parking spaces required.

(b) A shopping center (neighborhood) that contains 20 percent or more of its GFA as a class 6 or 7 use classification pursuant to section 26-492 of this Code shall provide the incremental increase in the number of parking spaces required for the class 6 or 7 use classification in excess of the 20 percent of its GFA.

(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-496. Bicycle spaces for certain use classifications.

For all use classifications under classes 1, 6, 7, 8, and 9 in section 26-492 of this Code, one bicycle space is required for a use that contains more than 5,000 square feet of GFA and less than 25,000 square feet of GFA. An additional bicycle parking space is required for each incremental 25,000 square feet of GFA between 25,000 square feet of GFA and 150,000 square

feet of GFA. Bicycle spaces required by this article shall conform to the design criteria of section 26-583 of this Code.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-497. Reduced parking space requirement for additional bicycle spaces.

(a) An applicant who provides bicycle spaces in addition to the minimum number of bicycle spaces required by section 26-496 of this Code shall receive a reduction of one parking space for every four additional bicycle spaces to the number of parking spaces required by section 26-492 of this Code.

(b) The maximum reduction in the number of parking spaces under this section shall be ten percent of the number of parking spaces required by section 26-492 of this Code.

(c) A reduction of parking spaces under this section is available for all use classifications except single-family residential or multi-unit residential developments.

(d) Each additional bicycle space shall conform to the standards of section 26-583 of this Code.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord. No. 2023-802, § 5, 9-27-2023)

Sec. 26-498. Reduced parking space requirement for a historic building.

For a building designated as a protected landmark or a contributing structure within a historic district pursuant to article VII of chapter 33 of this Code, the total number of parking spaces required by this article shall be reduced by 40 percent. No reduction under this section shall be permitted for a building where an exterior alteration or rehabilitation was performed without a certificate of appropriateness required by article VII of chapter 33 of this Code.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-499. Off-site parking.

(a) A parking space required by this article may be provided on off-site parking facilities if the following conditions are met:

(1) The off-site parking facilities are located less than 500 feet from the tract where the use classification is located except as provided for in items (2) and (3) of this subsection;

(2) Up to 25 percent of the required number of parking spaces may be provided on off-site parking facilities located:

a. Less than 800 feet from a tract where the use classification is located if the building for which the off-site parking is being provided contains less than 30,000 square feet of GFA; or

b. Less than 1,000 feet from a tract where the use classification is located if:

[1] The building for which the off-site parking is being provided contains less than 30,000 square feet of GFA; and

[2] The director determines in his or her sole professional judgment that sufficient pedestrian amenities mitigate the impact of the extended distance of the off-site parking facilities.

(3) Up to 75 percent of the required number of parking spaces for a freestanding class 7 use under section 26-492 of this Code may be provided on off-site parking facilities located up to 1,000 feet from a tract where the use classification is located if:

a. The off-site parking facilities are used only for valet parking services in accordance with this chapter;

b. Valet parking services for the off-site parking facilities must be available during all operating hours of the use classification;

c. 25 percent or more of the parking spaces required by this article are located either on-site or on off-site parking facilities located within 250 feet of the tract where the use classification is located; and

d. The applicant or responsible party submits an annual certification of

valet parking in accordance with the requirements of section 26-502 of this Code.

(4) The off-site parking spaces required by this article are not already being used to satisfy the parking requirement of a different building or tract.

(b) All distances shall be measured as the shortest clearly delineated pedestrian route between the property boundary of the tract where the use classification is located to the property boundary of the off-site parking facility as measured along sidewalks and other passageways that are open and accessible to the public at all times.

(c) When an off-site parking facility is located on a tract that is not owned by an applicant or responsible party for the property requiring the parking spaces, the applicant or responsible party shall provide to the department a memorandum of lease that complies with the requirements of section 26-501 of this chapter.

(d) Different requirements for off-site parking facilities may be provided for within a special parking area in accordance with division 3 of this article.

(e) This section does not apply to bicycle spaces or loading facilities required by this article. (Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord. No. 2017-151, § 9, 3-1-2017)

Sec. 26-500. Shared parking requirements.

(a) Two or more different use classifications within one or more tracts that are not used for or restricted to single-family residential purposes may share parking spaces to reduce the overall parking space requirement as provided in this section. This section shall not be used to reduce the number of required bicycle spaces or loading berths.

(b) The following formula and table shall be used to determine the adjustment of the minimum number of parking spaces required by this article:

(1) Determine the number of parking spaces required by this article for each use classification individually;

(2) Multiply the number derived from item (1) of this subsection for each individual use classification by the corresponding percentage listed in the rows of the table found in this subsection for each time period found in the columns of the table;

(3) Add the numbers derived from item (2) of this subsection for each time period found in the columns of the table. This is the column total for each column; and

(4) Determine the largest column total. This is the shared parking space requirement.

Class	**Type of Use**	**Typical Weekday**				**Typical Weekend**			
		Mid-night to 7 AM	*7 AM to 5 PM*	*5 PM to 9 PM*	*9 PM to Mid-night*	*Mid-night to 7 AM*	*7 AM to 5 PM*	*5 PM to 9 PM*	*9 PM to Mid-night*
Class 1. *Office*	Office	5%	100%	30%	5%	0%	10%	0%	0%
	Financial facility	0%	100%	10%	0%	0%	25%	0%	0%
Class 2. *Residential*	Apartment	100%	25%	50%	95%	100%	65%	50%	85%
	Hotel or motel	100%	10%	50%	85%	100%	10%	50%	75%
Class 3. *Health Care Facilities*	Clinic (medical complex)	5%	100%	50%	5%	0%	10%	0%	0%
	Clinic (medical or dental)	0%	100%	25%	0%	0%	25%	0%	0%
	Veterinary clinic	0%	100%	5%	0%	0%	25%	0%	0%
Class 4. *Industrial, Commercial Manufacturing*	All	10%	100%	50%	10%	10%	25%	10%	0%
Class 5. *Religious and Educational*	Church	0%	5%	25%	0%	10%	100%	40%	0%
	Nursery/day care	0%	100%	5%	0%	0%	5%	0%	0%
	School	0%	100%	5%	0%	0%	10%	0%	0%
	Library	0%	100%	10%	0%	0%	25%	0%	0%
	Art gallery/ museum	0%	75%	50%	0%	0%	100%	60%	0%
Class 6. *Recreation and Entertainment*	Movie theater	0%	10%	50%	75%	0%	50%	80%	100%
	Bowling alley	0%	10%	50%	85%	0%	40%	75%	100%
	Theater, auditorium or arena	—	—	—	—	—	—	—	—
	Sports club or health spa	50%	25%	100%	10%	10%	50%	10%	5%
Class 7. *Food and Beverage*	Dessert shop	0%	25%	100%	75%	0%	25%	100%	85%
	Small restaurant	10%	50%	75%	40%	15%	75%	100%	50%
	Neighborhood restaurant	10%	50%	75%	40%	15%	75%	100%	50%
	Restaurant	10%	50%	75%	40%	15%	75%	100%	50%
	Tavern or pub	0%	0%	25%	75%	0%	10%	80%	100%
	Small bar	0%	0%	25%	75%	0%	10%	80%	100%
	Bar, club or lounge	0%	25%	75%	75%	0%	40%	80%	100%
Class 8. *Retail Services*	All (excluding shopping center)	5%	50%	75%	10%	5%	100%	75%	10%
Class 9. *Automobiles*	Auto parts and supply store	0%	50%	75%	0%	0%	100%	50%	0%
All others		100%	100%	100%	100%	100%	100%	100%	100%

(c) A theater, auditorium, or arena use may share parking by submitting a parking study with a site plan that details the parking supply and demand of the intended use. The number of shared parking spaces shall be determined by the director after consideration of all relevant factors, including the factors of subsection (d) this section.

(d) Upon written request of the applicant supported by information adequate to make a determination, the director may approve an additional reduction of up to ten percent of the required number of shared parking spaces after considering all relevant factors, including:

(1) The unique parking characteristics of each use classification, including employee, customer, and patron parking

demand, hours of operation, and projected convenience and frequency of use of the shared parking.

(2) Whether the use of shared parking spaces will be injurious to public health, safety, and welfare including, but not limited to, whether the additional reduction of shared parking spaces will cause increased traffic congestion, potential harm to adjacent property owners, and spillover parking into surrounding residential neighborhoods; and

(3) The recommendation of the Director of Houston Public Works.

(e) All shared parking spaces must conform to the following criteria:

(1) A shared parking space shall not be reserved for or restricted to a specific use classification. A parking space reserved for a specific use classification shall not be considered a shared parking space;

(2) All shared and reserved parking spaces shall be identified on a site plan;

(3) Each shared parking space shall be clearly identified by signage on each tract and parking facility identifying the location and availability of the shared parking spaces for participating uses;

(4) Each shared parking space must be made available at all times for use by employees, customers, and patrons; and

(5) Shared parking spaces that are located on off-site parking facilities must comply with the provisions of section 26-499 of this Code for each individual use classification.

(f) The director shall not approve a site plan that proposes to use shared parking spaces unless the applicant or responsible party submits a shared parking agreement to the department that takes the form of a memorandum of lease or a reciprocal easement agreement in a form approved by the city attorney. The shared parking agreement shall comply with the requirements of a memorandum of lease contained in section 26-501 of this Code.

(g) After the director approves a site plan that uses shared parking spaces, any change in the use classification or parking factor shall require the applicant or responsible party to submit a new site plan to the department for approval and a revised shared parking agreement if necessary. The building official shall not issue a building permit or certificate of occupancy without a site plan approved by the director for the revised shared parking agreement.

(h) Operation of a use classification without an approved site plan required by this subsection is a violation of this article.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 26-501. Memorandum of lease.

(a) A memorandum of lease required by this article shall:

(1) Be in the form prescribed by the director upon approval by the city attorney or his or her designee, and shall not require that the amount of consideration paid or other financial information be reported to the department;

(2) Be filed with the department and maintained in the department's records.

(3) Be accompanied by the non-refundable fee set forth for this provision in the city fee schedule;

(4) Be signed by all interested parties;

(5) Include the legal description of the leased tract;

(6) Provide that the leased tract will be used solely to satisfy the parking requirements of this article for the term of the lease or agreement; and

(7) Be evidence of an effective lease or shared parking agreement with an effective term of at least one year.

(b) In the event that the leased tract becomes unavailable to the use classification whether through termination of the lease, agreement, or

other reason, the applicant or responsible party must immediately notify the department and take steps to obtain and submit for approval substitute parking arrangements that comply with the requirements of this article. The director shall cause the certificate of occupancy of an applicant or responsible party to be revoked after the expiration of the grace period set forth below if the applicant or responsible party is not in compliance with the requirements of this article due to the unavailability of the leased tract in accordance with the following:

(1) If the applicant or responsible party has not made substitute arrangements within a 90 day grace period after the date the leased tract became unavailable, the director shall cause the certificate of occupancy to be revoked for the use and that use shall cease immediately. Expiration of a lease at the end of its term without substitute parking arrangements shall not be considered as no fault of the applicant or responsible party.

(2) If an applicant or responsible party can demonstrate to the satisfaction of the director that the leased tract became unavailable through no fault of the applicant or responsible party, the grace period to submit substitute arrangements and have them approved shall be 120 days from the date the leased tract became unavailable. If no substitute arrangements are approved within the grace period, the director shall cause the certificate of occupancy to be revoked for the use and that use shall cease immediately.

(3) The director shall grant an additional 120 day extension to the grace period to an applicant or responsible party who can demonstrate the following to the satisfaction of the director:

a. The applicant or responsible party has acted in good faith and made reasonable efforts to obtain substitute parking;

b. The applicant or responsible party will have reasonable opportunity to obtain substitute parking if an extension is granted; and

c. The granting of an extension will not be injurious to the public health, safety, and welfare;

(4) The commission shall grant an additional 90 day extension to the grace period to an applicant who demonstrates to the satisfaction of the commission the criteria of item (3) of this subsection. An application to the commission for the additional 90 day extension shall:

a. Be filed with the department before the expiration of the grace period described by this section;

b. Be in the form prescribed by the director; and

c. Be accompanied by the non-refundable fee set forth for this provision in the city fee schedule.

(5) Operation of a use classification after the expiration of the grace period without providing for substitute parking arrangements approved by the director is a violation of this article.

(c) An applicant or responsible party must submit an annual certification to the department not more than one year from the date of the most recently approved site plan or memorandum of lease demonstrating the continued availability of the leased tract. The annual certification shall:

(1) Be in the form prescribed by the director;

(2) Be accompanied by the non-refundable fee set forth for this provision in the city fee schedule; and

(3) Include a current and valid memorandum of lease that complies with the standards of subsection (a) of this section showing that the leased tract is available for continued use as shown on the most recently approved site plan.

(d) If an applicant or responsible party fails to submit an annual certification to the department, the leased tract shall be considered to be unavailable for the parking purpose intended by the lease and the applicant or responsible party shall take the steps outlined in subsection (b) of this section required for compliance with this article.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-502. Annual certification of valet parking.

(a) An applicant or responsible party that is required by this article to submit an annual certification of valet parking shall submit an annual certification to the department that shall:

(1) Be in the form prescribed by the director;

(2) Be accompanied by the non-refundable fee set forth for this provision in the city fee schedule;

(3) Include the following documentation:

a. Current proof of liability insurance for valet parking services for the use classification for which valet parking is provided; and

b. Proof of compliance with the valet parking requirements of this chapter, as applicable; and

c. A current contract for valet services for all hours of operation of the use classification for which valet services are provided, or payroll evidence of employees that provide valet parking services for all hours of operation of the use classification; and

(4) Include other documentation demonstrating the continued operation and availability of the valet parking services for the use classification for which valet parking is provided.

(b) In the event that valet parking services cease to be available for all hours of operation of the use classification whether through termination of a contract for valet parking services or other reason, the applicant or responsible party must immediately notify the department and take steps to obtain and submit for approval substitute parking arrangements that comply with the requirements of this article. The director shall cause the certificate of occupancy of an applicant or responsible party to be revoked after the expiration of the grace period set forth below if the applicant or responsible party is not in compliance with the requirements of this article due to the unavailability of the valet parking services in accordance with the following:

(1) If the applicant or responsible party has not made substitute arrangements within a 15 day grace period after the date the valet parking services ceased to operate, the director shall cause the certificate of occupancy to be revoked for the use and that use shall cease immediately.

(2) The director shall grant an additional 15 day extension to the grace period to an applicant or responsible party who can demonstrate the following to the satisfaction of the director:

a. The applicant or responsible party has acted in good faith and made reasonable efforts to obtain substitute parking or valet parking services;

b. The applicant or responsible party will have reasonable opportunity to obtain substitute parking or valet parking services if an extension is granted; and

c. The granting of an extension will not be injurious to the public health, safety, and welfare.

(c) If an applicant or responsible party fails to submit an annual certification to the department, the director shall cause the certificate of occupancy for the building or tract for which valet parking services are provided to be revoked.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-503. Reduced parking space requirement for transit-oriented developments.

(a) The total number of parking spaces required by this article for a use classification on a secondary transit-oriented development street shall be reduced by 50 percent if:

(1) The building or tract complies with the requirements of article IV of chapter 42 of this Code; and

(2) The applicant does not receive an additional reduction in the total number of required parking spaces as provided for by section 26-497 or 26-498 of this Code.

(b) For a use classification that meets the criteria of subsection (a) of this section, no parking spaces shall be required for the portion of the use classification within the standard building line requirement, as the term is defined in section 42-1 of this Code, of:

(1) 25 feet when the secondary transit-oriented development street is designated a major thoroughfare, as shown below in Exhibit 26-503-1; or

(2) 10 feet when the secondary transit-oriented development street is not designated as a major thoroughfare, as shown below in Exhibit 26-503-2.

Exhibit 26-503-1—Secondary TOD street designated as a major thoroughfare

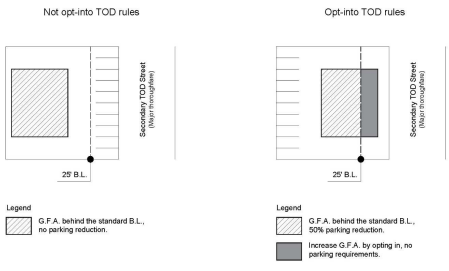
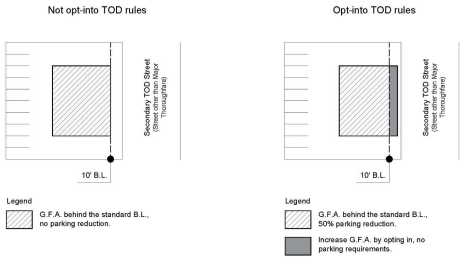


Exhibit 26-503-2—Secondary TOD street designated as a street other than a major thoroughfare



(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord. No. 2017-151, § 10, 3-1-2017; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 26-504. Administrative modification of parking requirement.

(a) The director is authorized to approve a reduction of up to five parking spaces for an existing use classification that proposes an alteration that meets the application requirements of this section. To qualify for an administrative modification under this section, the applicant shall:

(1) File an application in the form prescribed by the director;

(2) Pay the non-refundable fee set forth for this provision in the city fee schedule and all costs associated with the notice provisions of this section; and

(3) Provide documentation regarding the current and anticipated demand for parking spaces as a result of the alteration, including evidence or data in studies relating to the proposed use or unique parking characteristics of the use classification.

(b) Upon receipt of a complete application pursuant to subsection (a) of this section, the director shall:

(1) Within five business days, post a copy of the application materials on the depart-

ment website and maintain a copy of the application on the website until the director approves or denies the application;

(2) Give notice of the request by first class mail to neighboring property owners;

(3) Give notice of the request by electronic mail to the district council member in whose district use classification is located; and

(4) Give notice of the request by electronic mail to each neighborhood association registered with the department in whose area the use classification is located.

(c) The director shall establish a formal process for the community to submit comments to the department regarding the request. The comment period shall be not less than 30 days after the notice to neighboring property owners has been placed in the mail pursuant to this section. The director shall review the comments received prior to consideration of the administrative modification.

(d) The director shall approve a modification under this section only if the director finds that the modification meets all of the following criteria:

(1) The documentation supplied by the applicant supports the approval of a modification;

(2) The number of parking spaces is sufficient to meet the anticipated change in the demand for parking spaces as result of the alteration to the use classification;

(3) The approval of the modification is not likely to cause substantial harm or spillover parking into adjacent properties or streets within an 800-feet radius of the boundary of the property for which an administrative modification is requested;

(4) The modification is not likely to be injurious to public health, safety, and welfare; and

(5) The modification is consistent with the intent and general purposes of this article.

(e) On or before the 15th day after the close of the public comment period or the date of the most recent submittal of documentation by the applicant, whichever date is longer, the director shall inform the applicant, in writing, whether the director approved the modification.

(f) The director shall not grant at any time an administrative modification under this section to any use classification that was previously granted a variance pursuant to division 5 of this article.

(g) The maximum reduction in the number of parking spaces authorized under this section shall not exceed five parking spaces for any use classification.

(h) The director shall maintain a list of approved administrative modifications on the department website.
(Ord. No. 2017-151, § 11, 3-1-2017)

Secs. 26-505—26-509. Reserved

DIVISION 3. SPECIAL PARKING AREAS

Sec. 26-510. Special parking areas.

The city council may designate special parking areas to accommodate the unique parking needs in certain areas of the city upon consideration of an application filed in accordance with this division or in conjunction with an amendment to the walkable places plan. The planning official shall maintain a list of current special parking areas, maps and written descriptions of their boundaries, and their approved parking management plans on the department website.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 26-511. Requirements for designation or revision of a special parking area.

(a) An application for designation or revision of a special parking area may be filed with the department by a management entity that represents the holders of legal interests within the proposed special parking area and has a demonstrated perpetual commitment to the

proposed special parking area. The application shall be in the form prescribed by the planning official and shall include the following:

(1) The non-refundable fee set forth for this provision in the city fee schedule;

(2) Payment for all costs, as set out in the city fee schedule, associated with the notice provisions of this division;

(3) A proposed parking management plan in accordance with section 26-512 of this Code; and

(4) A map illustrating the boundaries of the proposed special parking area.

(b) For a special parking area designated in conjunction with an amendment to the walkable places plan for an area where there is no management entity participating, the planning official shall oversee the submittal for the parking management plan developed in accordance with section 26-512 of this Code and a map illustrating the boundaries of the proposed special parking area. Any revisions to a designation under this subsection shall be processed in the same manner in which the designation was granted.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord. No. 2017-151, § 12, 3-1-2017; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 26-512. Parking management plan.

(a) The parking management plan for a special parking area, for the initial plan and any modifications, shall include, but not be limited to:

(1) The proposed alternative standards of this article or substituted requirements for the number of parking spaces, bicycle spaces, or loading berths, as applicable, for the special parking area with a corresponding justification for each alternative standard or substituted requirement; and

(2) A summary of proposed and existing mitigation measures, if applicable, designed to prevent or discourage spillover parking into adjacent properties and residential neighborhoods.

(b) The initial parking management plan for a special parking area shall also include:

(1) A summary of existing use classifications within the proposed special parking area and any known proposal for development or redevelopment within the proposed special parking area;

(2) Existing and proposed parking facilities with more than 40 parking spaces available for use by the general public;

(3) Existing and proposed transit facilities and other alternative modes of transportation, including, but not limited to:

a. A transit ridership summary that details the extent of usage of the existing transit facilities within the boundaries of the proposed special parking area; and

b. Existing and proposed services for shuttle, trolley, park and ride, bicycle or micro-mobility device rental, jitney, and similar services; and

(4) An analysis of the parking supply and demand within the proposed special parking area, including anticipated peak demand hours.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord. No. 2018-11, § 49, 1-10-2018; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 26-513. Procedures for designation of a special parking area by application.

(a) The planning official shall review each application filed under section 26-511 of this Code for completeness. Upon determining that an application is complete, the planning official shall forward the application to the Director of Houston Public Works for review. The planning official shall give notice of a public hearing before the commission to:

(1) Each owner of property within the proposed special parking area and within 500 feet of the boundary of the proposed special parking area as shown on the most current appraisal district records;

(2) Each neighborhood association with defined boundaries registered with the department in which any portion of the proposed special parking area is located;

(3) Each district council member in whose district any portion of the proposed special parking area is located;

(4) The chief of the city police department; and

(5) The parking official of the city as defined in this chapter.

Notice shall be given by first class mail no later than 20 days before the date of the public hearing, except that notice may be given by electronic mail to the people and entities listed in items (2), (3), (4), and (5) of this subsection.

(b) The commission shall hold at least one public hearing to consider the designation of the area as a special parking area and on the management entity's proposed parking management plan. The planning official shall submit recommendations to the commission regarding the designation of the special parking area and the proposed parking management plan.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 26-514. Commission action on an application for designation of a special parking area.

(a) After the close of the public hearing and upon receipt of the planning official's recommendations pursuant to subsection (b) of section 26-513 of this Code, the commission shall consider the application and recommend the designation of the special parking area and the approval of the parking management plan if the commission finds that the application meets the following criteria:

(1) The special parking area has a clearly defined boundary;

(2) If submitted by a management entity, the management entity responsible for the special parking area has a demonstrated capacity to manage parking needs and parking facilities, including an understanding of the parking supply and demand within the proposed special parking area;

(3) The proposed parking management plan will not result in significant parking or mobility deficiencies from reduced parking standards, incompatible or competing use classifications, or inadequate enforcement and regulation;

(4) The proposed parking management plan is designed to prevent or discourage spillover parking onto adjacent properties and residential neighborhoods; and

(5) The proposed parking management plan demonstrates reasonable and sufficient access to parking facilities or transportation services within the special parking area.

(b) The commission may impose any conditions reasonably related to the designation of the special parking area that furthers the intent and purpose of this article.

(c) If the commission is unable to make the findings necessary for the designation of the special parking area and the approval of the parking management plan, the commission shall:

(1) Defer the application to a later commission meeting; or

(2) Deny the application.

(d) The planning official shall submit an affirmative recommendation of the commission and recommend placement of the request on the city council agenda.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 26-515. Commission action on the designation of a special parking area in conjunction with an amendment to the walkable places plan.

(a) If a proposed special parking area is requested as part of an amendment to the walkable places plan, the planning official shall submit recommendations to the commission on both the

amendment to the walkable places plan and the proposed special parking area designation with the parking management plan simultaneously.

(b) After the close of the public hearing required under section 33-423 of this Code and upon receipt of the planning official's recommendations pursuant to subsection (a) of this section, the commission shall consider the proposal and recommend the designation of the special parking area and the approval of the parking management plan if the commission finds that the proposal meets the following criteria:

(1) The special parking area has a clearly defined boundary within the limits of the walkable places plan amendment;

(2) The proposed special parking area is consistent with the purpose and objectives of the walkable places plan as described in section 33-421 of this Code;

(3) The proposed parking management plan will not result in significant parking or mobility deficiencies from reduced parking standards, incompatible or competing use classifications, or inadequate enforcement and regulation;

(4) The proposed parking management plan is designed to prevent or discourage spillover parking onto adjacent properties and residential neighborhoods; and

(5) The proposed parking management plan demonstrates reasonable access to parking facilities or transportation services within the special parking area.

(c) The commission may modify or amend the proposed special parking area or parking management plan to meet the intent and purpose of this article.

(d) If the commission is unable to make the findings necessary for the designation of the special parking area and the approval of the parking management plan, the commission shall:

(1) Defer the request to a later commission meeting;

(2) Refer the request back to planning official for further study;

(3) Remove the special parking area designation from further consideration with the amendment to the walkable places plan; or

(4) Deny the request.

(e) If the commission approves the special parking area or parking management plan, the planning official shall recommend placement of the request on the city council agenda.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 26-516. City council action on designation of a special parking area.

City council may consider the designation of a special parking area as recommended by the commission and shall vote to approve the recommendation of the commission, disapprove the recommendation of the commission, refer the special parking area back to the commission or administration, for further consideration, or deny the designation.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 26-517. Modification of a special parking area.

Additional tracts may be added to or deleted from a special parking area at any time in accordance with the designation procedures and criteria of this division.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 26-518. Duties and responsibilities.

(a) It shall be the responsibility of the management entity to implement the provisions of the parking management plan within the special parking area.

(b) Following the designation of the special parking area by city council, the planning official shall coordinate the implementation of the parking management plan with the city departments and other entities with an interest in planning and development within the right of way, including other governmental entities, political subdivi-

sions, transit authorities, or local government corporations and any other entity as determined by the planning official.

(c) The planning official shall, from time to time, evaluate each special parking area to determine if circumstances related to the designation or subsequent parking management plan implementation have changed and may warrant a revision to the parking management plan pursuant to section 26-519 of this Code or modification to the special parking area designation pursuant to section 26-517 of this Code. If such a determination is made, the planning official shall document the change in circumstances then report to the commission the findings of the evaluation and any corresponding recommendations.
(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 26-519. Review of parking management plan.

(a) Within 60 days of receiving the report from the planning official outlined in subsection (c) of section 26-518 of this Code, the commission shall review the parking management plan and circumstances related to the special parking area designation. Upon review, the commission shall:

(1) Take no action if the commission finds that no changes should be made to the parking management plan; or

(2) Instruct the management entity or planning official, as applicable, to submit for commission review a revised parking management plan in accordance with this division if the commission finds that evidence of changed circumstances within the special parking area may warrant a revision to the parking management plan.

(b) If the commission requires a revised parking management plan pursuant to item (2) of subsection (a) of this section, the planning official shall give notice of a public hearing on the review of the revised [parking] management plan in accordance with the provisions of section 26-513 of this Code. The commission shall hold a public hearing and review the revised parking management plan. After the close of the public hearing, the commission shall:

(1) Take no action if the commission finds that no changes should be made to the parking management plan;

(2) Recommend to city council that the revised parking management plan should be adopted to accommodate any changed circumstances outlined in the commission review of the revised parking management plan; or

(3) Recommend to city council that the designation of the special parking area should be terminated.

(c) If city council revises a parking management plan or terminates a special parking area in accordance with the procedures outlined in this section, all uses classifications permitted on or before the date of the council action to revise or terminate shall be allowed to continue except as otherwise provided in this article. All uses for which a permit is granted after the date of termination, shall be in compliance with the revised parking management plan or parking requirements of this article.
(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 26-520. Reserved.

DIVISION 4. REQUIREMENTS FOR LOADING FACILITIES

Sec. 26-521. In general.

No building permit or certificate of occupancy shall be issued for the construction or alteration of a building in the loading facilities category listed in section 26-522 of this Code unless the building includes the construction of, or provides for, the number of loading berths required for that use as shown in section 26-522 of this Code.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-522. Requirements for certain loading facilities categories.

The construction or alteration of a building for any of the following loading facilities categories shall provide the number of on-site loading berths shown below for that loading facilities category. The individual use classifications or classes of use classifications in the following chart shall correspond to the individual use classifications or classes of use classifications in section 26-492 of this Code:

Loading Facilities Category		*Loading Berth Requirements*
Category 1. Office:		
a.	Up to 300,000 square feet of GFA	None
b.	300,000 up to 750,000 square feet of GFA	1.0
c.	750,000 up to and including 1,500,000 square feet of GFA	2.0
d.	More than 1,500,000 square feet of GFA	3.0
Category 2. Apartment With More Than 50 Total Dwelling Units:		
a.	Up to and including 30 dwelling units per acre	None
b.	More than 30 dwelling units per acre	1.0 (minimum size of 10'× 40')
Category 3. Hotel or Motel:		
a.	Up to 100,000 square feet of GFA	None
b.	100,000 up to 200,000 square feet of GFA	1.0
c.	200,000 up to and including 300,000 square feet of GFA	2.0
d.	More than 300,000 square feet of GFA	3.0
Category 4. Industrial and Commercial Manufacturing (Includes All The Use Classifications of Class 4 of Section 26-492):		
a.	Up to 50,000 square feet of GFA	None
b.	50,000 up to 100,000 square feet of GFA	1.0
c.	100,000 up to and including 400,000 square feet of GFA	2.0
d.	More than 400,000 square feet of GFA	3.0
Category 5. Food and Beverage (Includes All Of The Use Classifications of Class 7 of section 26-492):		
a.	Up to 25,000 square feet of GFA	None
b.	25,000 up to and including 50,000 square feet of GFA	1.0
c.	Each additional 50,000 square feet of GFA beyond 50,000 square feet of GFA	1.0
Category 6. Retail Services (Includes All of the Use Classifications of Class 8 of Section 26-492):		
a.	Up to 10,000 square feet of GFA	None
b.	10,000 up to and including 60,000 square feet of GFA	1.0
c.	Each additional 60,000 square feet of GFA beyond 60,000 square feet of GFA	1.0

(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-523. Standards for loading berths.

(a) Each loading berth shall have minimum dimensions of ten feet wide and 55 feet long unless otherwise identified in this division.

(b) A tract that takes vehicular access from a major thoroughfare or collector street and that contains a loading berth must provide sufficient area for maneuverability on the tract for delivery vehicles, large trucks, and other vehicles to access or use the loading berth without blocking

any portion of the public right-of-way, as determined by the traffic engineer in his sole professional judgment.

(c) Loading berths shall not be located within a drive aisle or otherwise block access to parking spaces, bicycle spaces, or other loading berths. A loading berth shall not project into the public right-of-way or a private roadway as the term is defined in chapter 42 of this Code.

(d) Upon written request of the applicant supported by information adequate to make a determination, the director may reduce required

loading berth dimensions and maneuvering area if the applicant demonstrates that delivery vehicles can park and maneuver within the proposed loading and maneuvering areas and the proposed modification of the site plan complies with the requirements of subsections (b) and (c) of this section.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Secs. 26-524—26-559. Reserved.

DIVISION 5. VARIANCES

Sec. 26-560. Appeal of denial.

A denial of a building permit, site plan, or a certificate of occupancy for non-compliance with the provisions of this article may be appealed by requesting a variance in accordance with the provisions of this division.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-561. Variance application procedure.

(a) An applicant may submit an application to the department to request variance from the requirements of this article. An application for a variance shall include:

(1) A completed application in the form prescribed by the director; and

(2) Be accompanied by the non-refundable fee set forth for this provision in the city fee schedule and a payment for all costs associated with the notice provision of this division.

(b) The director shall review the application for completeness. If the director determines that an application is incomplete, the application shall be returned to the applicant. Within seven days after the date that the director accepts a completed application, the director shall forward a copy of the application to the building official and the traffic engineer who shall make a recommendation to the director regarding the proposed variance.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord. No. 2017-151, § 13, 3-1-2017)

Sec. 26-562. Notification of application for a variance.

(a) The director shall give notice of the variance request by first class mail to neighboring property owners not later than 20 days before the date of the first meeting at which the commission will consider the application.

(b) The director shall notify each neighborhood association registered with the department in whose area the property for which the requested variance is located by electronic mail or first class mail as soon as reasonably possible before the first meeting at which the commission will consider the application.

(c) The department shall give notice to each district council member in whose district the property for which the requested variance is located by electronic mail message as soon as reasonably possible before the first meeting at which the commission will consider the application.

(d) The applicant shall give notice by posting at least one sign on the property for which the variance is sought not less than 20 days before the date of the meeting at which the commission will first consider the application. At least one sign shall face each street bordering the tract for which the variance is sought, provided, however, that if more than four signs would be required to be posted, the applicant may request the director to approve an alternate number and location of signs. The director shall approve an alternative to the number and location of the signs required by this subsection in excess of four upon determining that the alternative will provide maximum visibility and satisfy the objectives of this section without unduly burdening the applicant. Each sign shall be a minimum of four by eight feet in size and shall be posted no more than 15 feet from the public right-of-way. Each sign shall face and be clearly legible from the public right-of-way. The applicant shall use reasonable efforts to maintain each required sign on the tract until the close of the meeting at which the commission acts on the application. The sign shall provide the following information:

(1) The address of the building or tract for which the variance is sought;

(2) The date, time, and place of the meeting at which the commission will next consider the application for variance, updated to reflect any changes in the date, time, and place of the meeting, including if the applicant's variance request is deferred, continued, or otherwise postponed by the commission;

(3) The proposed use classification of the building or tract;

(4) If the proposed use classification of the building is a class 7 use classification under section 26-492 of this Code, the sign shall indicate the tract may contain valet parking;

(5) A telephone number of the applicant to call for additional information; and

(6) A telephone number and e-mail address of the department to contact for additional information.

(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord. No. 2017-151, § 13, 3-1-2017)

Sec. 26-563. Standards and review of variances.

(a) The commission is authorized to consider and grant a variance from the provisions of this article if the commission determines that the granting of a variance satisfies the following criteria:

(1) Either:

a. The imposition of the terms, rules, conditions, policies and standards of this article would create an undue hardship by depriving the applicant of the reasonable use of the land; or

b. Strict application of the requirements of this article would make a project infeasible due to the existence of unusual physical characteristics that affect the property in question or would create an impractical development or one otherwise contrary to sound policy;

(2) That the circumstances supporting the granting of the variance are not the result of a hardship imposed or created by the applicant;

(3) The intent and general purposes of this article will be preserved;

(4) The number of proposed parking spaces will be sufficient to serve the use for which it is intended;

(5) The granting of the variance will not be injurious to the public health, safety or welfare; and

(6) If the building is subject to the requirements of article VII of chapter 33 of this Code, the granting of the variance is necessary to accomplish the purposes of a certificate of appropriateness issued pursuant to article VII of chapter 33 of this Code.

(b) In addition, if the building or tract for which the variance is sought proposes to provide parking spaces on an off-site parking facility, the commission shall consider the following factors:

(1) The locations of the proposed use classification and the proposed off-site parking facility;

(2) Existing and potential parking demand created by other use classifications in the vicinity;

(3) The characteristics of the use classification, including employee, customer, and patron parking demand, hours of operation, and projected convenience and frequency of use of the off-site parking facility;

(4) Adequacy, convenience, and safety of pedestrian access between off-site parking facilities and the tract where the use classification is located;

(5) Traffic patterns on adjacent streets, and proposed access to the off-site parking; and

(6) The recommendation of the traffic engineer.

(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-564. Commission consideration and action.

The commission shall consider and act on an application for a variance pursuant to this division. Upon consideration of an application, the commission shall:

(1) Grant the variance, with or without conditions, if the commission finds the application satisfies the criteria of section 26-563 of this Code;

(2) Deny the variance request if the commission is unable to make the findings necessary for the approval of a variance pursuant to section 26-563 of this Code; or

(3) Defer the variance to a later commission meeting.

(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-565. Applicability of variance.

Any variance granted under the provisions of this division will apply only to the specific building or tract and use classification upon which the commission was requested to grant the variance and shall not constitute a change of any part of this article. All variances granted shall be in writing and maintained as a permanent record of the commission.

(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Secs. 26-566—26-580. Reserved.

DIVISION 6. CONSTRUCTION, MAINTENANCE, AND DESIGN

Sec. 26-581. Construction standards for parking and loading facilities.

All parking and loading facilities shall be constructed in accordance with the Construction Code, except as otherwise provided for in this article. In addition, parking and loading facilities shall be:

(1) Surfaced and maintained with asphalt, concrete, or all-weather surfacing or other permanent hard surfacing material sufficient to prevent the accumulation of mud, dust or loose material. Materials may be pervious; and

(2) Graded and provide permanent storm drainage facilities that meet the construction specifications set by the city engineer. Surfacing, curbing and drainage improvements shall be sufficient to prevent free flow of water onto adjacent properties, public streets or alleys and to provide adequate drainage.

(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-582. Design and maintenance standards for parking and loading facilities.

(a) All parking and loading facilities shall be designed to:

(1) Include safety barriers, protective bumpers or curbing, and directional markers sufficient to provide safety, efficient utilization, protection to landscaping and bicycle spaces, and to prevent encroachment onto adjoining public or private property;

(2) Ensure motorist visibility of pedestrians, bicyclists, and other vehicles when entering individual parking spaces, circulating within a parking facility, and entering and exiting a parking or loading facility; and

(3) Provide for internal circulation patterns and the location and traffic direction of all drive aisles in accordance with accepted principles of traffic engineering and traffic safety.

(b) All parking and loading facilities shall be maintained by the property owner to assure desirability and usefulness of the facility. Such facilities shall be maintained free of refuse, debris or other accumulated matter and shall at all times be available for the off-street parking or loading use for which they are required or intended.

(c) A parking space shall not be in tandem unless the tandem parking space is reserved for use by occupants of the same residential unit to which the space is in tandem.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord. No. 2017-151, § 14, 3-1-2017)

Sec. 26-583. Design standards for bicycle spaces and bicycle racks.

(a) A bicycle space required by this article shall:

(1) Be located on the same tract as the building or tract it is being provided for, except when an application for an encroachment permit has been approved by the traffic engineer to locate the bicycle spaces within the public right-of-way adjacent to the tract; and

(2) Not obstruct access to parking spaces, other bicycle spaces, loading berths, or pedestrian walkways such as sidewalks and ramps.

(b) Each bicycle space required by this article shall contain a bicycle rack that is:

(1) Constructed of durable materials that can withstand permanent exposure to the elements and vandalism such as powdered-coated metal or stainless steel;

(2) Designed to permit the locking of the bicycle frame and the front wheel to the bicycle rack by a standard size 'U lock' containing locking points between one foot and three feet from the ground, and provide a gap for pedal clearance;

(3) Designed to accommodate the typical range of bicycle sizes;

(4) Securely anchored to the ground or building;

(5) Spaced with sufficient clearance from other bicycle racks to allow access to the bicycle spaces; and

(6) Properly maintained by the applicant or responsible party.

(c) The director shall develop and maintain a list of bicycle rack styles that meet and do not meet the requirements of subsection (b) of this section. The list will be available to the public on the department website. A bicycle rack style that is not identified on the list but meets the requirements of subsection (b) of this section as determined by the director shall not be prohibited from being used by the applicant to satisfy the requirements of this article.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013; Ord. No. 2017-151, § 15, 3-1-2017)

Sec. 26-584. Alternate design standards for parking facilities used for valet parking.

(a) For a freestanding class 7 use classification under section 26-492 of this Code, parking facilities intended to be used solely for valet parking purposes may be designed in a way that does not conform to the requirements of the Construction Code for the layout of parking spaces and drive aisles if a valet parking plan is submitted along with a site plan pursuant to section 26-473, which complies with the following standards:

(1) The valet parking plan is submitted with the written consent of the property owner of the tract for which valet parking is proposed;

(2) The layout and dimensions of the parking spaces and drive aisles provide for sufficient parking and maneuverability for a variety of passenger automobiles, motor vehicles, and light trucks;

(3) If the valet parking plan provides for an on-site drop-off for vehicles using the valet parking services, the drop-off shall comply with the site plan review requirements of subsection (d) of section 26-474 of this Code;

(4) The valet parking plan will mitigate the impact of spillover parking onto adjacent properties and residential neighborhoods; and

(5) If a valet parking plan includes parking spaces that are required by this article,

valet parking services must be provided for those parking spaces during all operating hours of the use classification.

(b) The director shall review the valet parking plan along with the site plan and shall approve a valet parking plan that complies with the standards of subsection (a) of this section. No valet parking services may be provided pursuant to subsection (a) of this section unless the director approves the site plan along with the valet parking plan.

(c) An applicant or responsible party that provides valet parking services pursuant to a valet parking plan approved by the director shall submit an annual certification of valet parking in accordance with section 26-502 of this Code.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-585. Design standards for parking facilities for compact cars.

A maximum of 35 percent of the parking spaces required by this article may be designed and reserved for small or compact cars in accordance with the dimensions specified in the Construction Code. No designated spaces for compact cars shall be permitted in any building or tract designed to be used for residential purposes or in parking facilities with less than 40 parking spaces. Compact parking spaces shall be identified by appropriate signage or markings within the compact parking space.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-586. Parking lifts.

(a) A parking lift shall not permitted within a parking facility except as follows:

(1) The parking lift is within the boundaries of a special parking area approved by city council pursuant to division 3 of this article, and the management entity has provided for the operation and maintenance of the parking lifts in the most recently approved parking management plan; or

(2) The parking lift is inside of a multi-story parking garage and the applicant or responsible party for the garage has provided for, in the sole professional judgment of the director:

a. The appropriate screening for any neighboring single-family residential use; and

b. The appropriate operation and maintenance of the parking lift.

(b) A parking lift that is permitted in accordance with subsection (a) of this section shall conform to the following standards:

(1) The parking lift shall not be permitted to be installed above or within a parking space, bicycle space, or loading berth required by this article; and

(2) The parking lift must be regularly maintained and operated by a trained operator when appropriate;

(3) The parking lift shall not be permitted to be installed in an area that obstructs access to a parking space, bicycle space or loading berth required by this article.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-587. Accessible parking.

Accessible parking spaces for vehicles operated by or for persons with disabilities shall be provided in accordance with state and federal standards. When only one parking space is required under this article, accessible parking requirements shall be in addition to the one parking space so required.
(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Sec. 26-588. Reconstruction after casualty.

The building official shall issue a building permit that does not require the construction of a parking and loading facility required by this article if:

(1) The building permit is for the reconstruction of a building damaged by fire or other casualty not intentionally caused by the owner of the building or the owner's agent and the estimated cost to rebuild is less than 75 percent of the estimated replacement cost of the entire

building, not including the estimated replacement cost of the building foundation; and

(2) The reconstruction would not result in an increase in the parking factor or a change in the use classification of the building or tract.

(Ord. No. 2013-208, § 2(Exh. A), 3-6-2013)

Secs. 26-589—26-600. Reserved.

ARTICLE IX. MINIMUM STANDARDS FOR PARKING FACILITIES*

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Sec. 26-602. Application.
Sec. 26-603. Entry powers of city officials.
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Division 2. Business Practices

Sec. 26-616. Signage required.
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*__Editor's note—__Ord. No. 09-1235, § 2, adopted December 2, 2009, amended the title of Article IX to read as herein set out. Formerly said article pertained to minimum standards for parking lots.

DIVISION 1. GENERALLY

Sec. 26-601. Definitions.

As used in this article, the following terms shall have the meanings ascribed in this section unless the context of their usage clearly indicates another meaning:

Barrier gate means an automated gate at each entrance to a parking facility to regulate vehicular entry to the parking facility that provides a ticket for entry or a receipt for payment of parking fees.

Parking facility means public or private property used, wholly or partly, for restricted or paid motor vehicle parking. The term includes without limitation:

(1) One or more restricted spaces on a portion of an otherwise unrestricted parking facility; and

(2) A commercial parking facility, a parking garage, and a parking area serving or adjacent to a business, church, school, home, apartment complex, property governed by a property owners' association for parking

purposes, or government-owned property leased to a private person for parking purposes, including:

a. A portion of the right-of-way of a public roadway that is leased by a governmental entity to the parking facility owner; and

b. The area between the facility's property line abutting a county or municipal public roadway and the center line of the roadway's drainage way or the curb of the roadway, whichever is farther from the facility's property line.

Parking facility attendant means an individual who, on behalf of a parking facility general manager, collects a parking fee from motor vehicle operators as payment to park in a parking facility.

Parking facility general manager means an individual who is employed by a parking facility operating company and is responsible for the day-to-day operations of a parking facility.

Parking facility operating company means the person who:

(1) Owns and operates a parking facility;

(2) Contracts with the owner(s) of a parking facility to manage the facility; or

(3) Leases the parking facility from the owner, for the purpose of operating the property as a parking facility.

Parking space means a space set aside in a parking facility for the purpose of parking a vehicle on a temporary basis.

Pay by space means a method of paying for parking in a facility whereby payment is made at a pay station by a vehicle operator who pays, by parking space number, for the parking space in which his vehicle is parked.

Pay station means a booth or box, whether attended or not, situated at or on a parking facility where payment of the hourly, daily, or monthly parking fee for that parking facility is made or deposited.

Police official means the chief of police or such other person as he may designate to act as the official primarily responsible for the administration of this article or the said official's designees.

Receipt means any paper receipt issued by a machine or parking attendant or a digital receipt for a digital parking payment issued by a parking operator.

Special event means an event for which demand for parking in an area is increased because of an activity that does not occur on a daily or regular basis.

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Special event parking fee means any parking fee charged other than the commonly-charged hourly, daily, or monthly rate as reflected on permanent signage or on the pay station in a parking facility; the special event parking fee may change during a special event depending on the demand for parking.

Temporary parking facility means a parking facility that operates during authorized times for not more than a 30-day period up to three times in a 12-month period.

Unauthorized vehicle means a vehicle parked, stored, or located on a parking facility without the consent of a parking facility general manager or parking facility operating company.

(Ord. No. 08-846, § 2, 9-24-08; Ord. No. 09-323, § 3, 4-22-09; Ord. No. 09-1235, §§ 2—6, 12-2-09; Ord. No. 2011-1175, § 27, 12-14-2011)

Sec. 26-602. Application.

The provisions of this article shall apply to parking facilities that use booting or towing to enforce against unauthorized vehicles in the facility, but shall not apply to:

(1) Any facility that boots a vehicle in exercise of a statutory or contractual lien right; or

(2) Any commercial office building owner or manager who installs or removes a boot in the building's parking facility.

(Ord. No. 08-846, § 2, 9-24-08; Ord. No. 09-1235, §§ 2, 7, 12-2-09)

Sec. 26-603. Entry powers of city officials.

It shall be the duty of any parking facility manager to allow immediate access by any police officer or building official to any portion of the premises of the parking facility for the purpose of inspection of such premises and vehicle immobilization services for compliance with this article, article X of this chapter, or any other applicable law.

(Ord. No. 08-846, § 2, 9-24-08; Ord. No. 09-1235, § 2, 12-2-09)

Sec. 26-604. Compliance with other laws.

Compliance with the requirements of this article does not excuse compliance with any other provisions of state law or this Code relating to parking regulations or parking facilities.

(Ord. No. 08-846, § 2, 9-24-08)

Sec. 26-605. Enforcement.

The building official or any police officer is authorized to issue citations charging the violation of any of the provisions of this article.

(Ord. No. 08-846, § 2, 9-24-08)

Sec. 26-606. Registration of parking facility operating companies.

(a) It shall be unlawful for any person to operate a parking facility in the city that has not been issued a registration compliance certificate as required by this section.

(b) A parking facility general manager may apply for a registration compliance certificate for each parking facility under his management by paying the fee stated for this provision in the city fee schedule per facility to the police official and providing to such official the following information regarding each parking facility:

(1) The name, telephone number, and business address of the parking facility operating company;

(2) The name, telephone number, facsimile number, and business or residence address, including street name and number, city, state and zip code, of the parking facility general manager; and

(3) The street address, days and hours of operation of the parking facility; and

(4) Evidence of a valid lease or contract authorizing the parking facility general manager or the parking facility operating company to operate in the location currently in use as a parking facility, by completing a form provided by the police official.

The use of a public or private post office box or other similar address shall not be sufficient for the purposes of complying with this subsection.

(c) Upon receipt of an application for a registration compliance certificate, the police official will provide a receipt to the applicant and perform an inspection of the parking facility to make a determination as to whether the facility is in violation of any requirements of this article. Upon completion of the inspection the police official shall either:

(1) Provide to the parking facility general manager a registration compliance certificate and decal to be posted as instructed by the police official; or

(2) Advise the parking facility general manager in writing that the parking facility is in violation of this article, pointing out the deficiencies and requiring that they be remedied within ten calendar days.

The police official shall reinspect the parking facility pursuant to this subsection upon receipt of a written request for reinspection and payment of the reinspection fee stated for this provision in the city fee schedule.

(d) Any change in the information required in subsection (b) of this section shall require the new parking facility general manager to file updated registration information and to pay the registration update fee stated for this provision in the city fee schedule to the police official within 30 days of the effective date of the change. A prior parking facility general manager shall advise the police official that he no longer manages the property.

(e) The parking facility general manager of a newly constructed or established parking facility shall comply with the provisions of this section not later than the thirtieth day following completion of construction or new opening of the parking facility, whichever occurs first.

(f) A parking facility general manager shall annually renew the registration for each parking facility under his management by paying the annual fe stated for this provision in the city fee schedule per parking facility to the police official, who shall verify that each parking facility is still in compliance with this article.
(Ord. No. 08-846, § 2, 9-24-08; Ord. No. 09-1235, §§ 2, 8, 9, 12-2-09; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2011-1175, § 28, 12-14-2011)

Sec. 26-607. Temporary parking facilities.

(a) It shall be unlawful for any person to operate a temporary parking facility in the city that has not been issued a registration compliance certificate as required by this section.

(b) A parking facility general manager may apply for and obtain a registration compliance certificate for each temporary parking facility under his management pursuant to the provisions set forth in section 26-606 of this Code.

(c) Conspicuous temporary signage at least two feet high and two feet wide shall be posted at all entrances to the temporary parking facility clearly stating the amount of the parking fee in letters not less than six inches high and displaying the name and logo of the parking facility operating company.

(d) It shall be the duty of any owner or manager of a temporary parking facility to comply with the attendant requirements set forth in section 26-618 of this Code.
(Ord. No. 2011-1175, § 29, 12-14-2011)

Secs. 26-608—26-615. Reserved.

DIVISION 2. BUSINESS PRACTICES

Sec. 26-616. Signage required.

(a) Signage prohibiting unauthorized vehicles on a parking facility shall comply with Sections 2308.301 and 2308.302 of the Texas Occupations Code. In addition, signage must be:

(1) Located at all pay stations; and

(2) Unobstructed by vegetation or any other obstruction.

(b) In addition to the requirements of Sections 2308.301 and 2308.302 of the Texas Occupations Code, signage prohibiting unauthorized vehicles must contain lettering at least one inch in height in a solid color that contrasts with the background that clearly states:

(1) How to pay for parking in the parking facility (i.e., "pay uniformed attendant," "pay drop box," "pay by phone," etc., as applicable), and the hourly or other fee for

such service; provided, however, for parking facilities utilizing different rates for various periods of parking, fee information may be contained on a separate sign adjacent to the pay station;

(2) If unauthorized vehicles may be booted in the parking facility, the telephone number for the police department's auto dealers detail;

(3) If unauthorized vehicles may be booted in or towed from the parking facility, the following: "Paper receipts must be displayed on dashboard"; and "Save digital receipt in mobile phone as proof of payment", as applicable;

(4) Notice to "See receipt for expiration time" and;

(5) "No in-and-out privileges" if applicable.

(c) In addition to the requirements listed in paragraphs (a) and (b) of this section, signage located at pay stations shall clearly state the street address of the parking facility in lettering at least one inch in height in a solid color that contrasts with the background.

(d) Unless otherwise provided in this article, lettering on all signs shall be at least one inch in height in a solid color that contrasts with the background.

(e) When the fee to park in a parking facility during a special event is a different amount than the hourly, daily or monthly rate, conspicuous temporary signage at least two feet high and two feet wide shall be posted at all entrances to the parking facility and at all pay stations, clearly stating the amount of the special event parking fee in letters not less than six inches high.
(Ord. No. 08-846, § 2, 9-24-08; Ord. No. 09-1235, §§ 2, 10, 12-2-09; Ord. No. 2011-1175, § 30, 12-14-2011)

Sec. 26-617. Receipt and enforcement.

(a) It shall be unlawful for a parking facility general manager to have a vehicle immobilized ("booted") or towed for non-payment of parking fees in a parking facility that does not provide receipts for payment of parking fees.

(b) Each paper receipt issued by an attendant or printed by a pay station for payment of a parking fee shall have printed thereon in bold type the following directive "Display receipt face up on dashboard" and shall contain the name and logo of the parking facility, street address of the parking facility, the parking space number, if applicable, the date and time parking fees were paid and the expiration time. Lettering for the directive "Display receipt face up on dashboard" and expiration dates and times shall be printed on receipts in at least 14 point font size.

(c) It shall be unlawful for a parking facility general manager to allow a receipt to be printed or issued for a space that is not available due to being "Reserved."

(d) It shall be unlawful for a parking facility general manager to have a vehicle booted for any reason (e.g., being parked on or across the parking space lines, on or across areas marked with hash marks, in driving lanes or in other unauthorized areas on the parking facility) other than non-payment.

(e) When a parking fee was paid by digital payment, it shall be unlawful for a parking facility general manager to have a vehicle immobilized or towed for:

(1) Failing to display a receipt; or

(2) Non-payment of parking fees.
(Ord. No. 08-846, § 2, 9-24-08; Ord. No. 09-1235, §§ 2, 10, 12-2-09; Ord. No. 2011-1175, §§ 31, 32, 12-14-2011)

Sec. 26-618. Attendant requirements.

It shall be the duty of any owner or manager of a parking facility to ensure that no individual at any time performs as a parking facility attendant unless the individual meets each of the requirements of this section. Each parking facility attendant shall:

(1) Be 16 years of age or older;

(2) Wear a picture ID, name tag with the employee's first name and employee identification number, and shirt, jacket or vest with the name and logo of the parking facility operating company;

(3) If the parking facility general manager intends to have vehicles immobilized ("booted") or towed for non-payment of parking fees, provide a written receipt to the operator of a vehicle parked on the parking facility with the name and logo of the parking facility, the street address of the parking facility, the parking space number if the parking facility utilizes "pay by space," and the date and time parking fees were paid; and

(4) Perform his duties in a courteous and professional manner.

(Ord. No. 08-846, § 2, 9-24-08; Ord. No. 09-2, § 19, 1-7-09; Ord. No. 09-1235, §§ 2, 11, 12-2-09)

Sec. 26-619. Access to money in unmanned pay stations.

It shall be unlawful for third-party enforcement services, including but not limited to vehicle immobilization services and tow companies, to possess keys or to have any other means of access to move or remove money from any unmanned pay station in a parking facility.
(Ord. No. 08-846, § 2, 9-24-08; Ord. No. 09-1235, § 2, 12-2-09)

Sec. 26-620. Closure of parking facility entrances.

(a) The parking facility operator or manager of a parking facility that is closed for business shall barricade all entrances to and exits from the parking facility by means of a barrier gate, chain, or other durable barrier equipment.

(b) The use of caution tape, plastic tape, rope, or other such non-durable equipment to indicate the closure of entrances and exits is prohibited.

(c) Barriers shall not be attached to signage, trees, or any such object in the public right-of-way.
(Ord. No. 08-846, § 2, 9-24-08; Ord. No. 09-1235, § 2, 12-2-09)

Sec. 26-621. Pay stations.

If unauthorized vehicles may be booted in the parking facility, pay stations shall be bagged or rendered non-operational during special events during any time when attendants are collecting payment for parking in a parking facility.
(Ord. No. 09-1235, § 12, 12-2-09)

Sec. 26-622. Lighting.

If a parking facility will be operating at night or if no attendant will be collecting payment for parking, the parking facility must have lighting to illuminate pay stations to at least 0.7 foot-candles between 6:00 p.m. and 6:00 a.m. on the following day.
(Ord. No. 09-1235, § 12, 12-2-09)

Sec. 26-623. Special events.

A parking facility that wishes to charge a special event parking fee may collect such fee only prospectively from the drivers of vehicles entering and paying for parking after the initiation of the special event parking fee for that special event.
(Ord. No. 09-1235, § 12, 12-2-09)

Sec. 26-624. Records of digital parking payments.

Records of digital payments shall be maintained by the parking operator for a period of one year from the date of the digital payment. Any peace officer shall have the right, upon request, to inspect and copy such records to determine compliance with this article."
(Ord. No. 2011-1175, § 33, 12-14-2011)

Secs. 26-625—26-640. Reserved.

ARTICLE X. IMMOBILIZATION ("BOOTING") OF VEHICLES

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DIVISION 1. GENERALLY

Sec. 26-641. Definitions.

(a) *Terms defined.* As used in this article, the following terms shall have the meanings ascribed in this section unless the context of their usage clearly indicates another meaning:

Boot (noun) means a vehicle immobilization device.

Boot (verb) means to install a vehicle immobilization device.

Booting means the act of installing a vehicle immobilization device.

Parking facility has the meaning ascribed in section 26-601 of this Code.

Parking facility general manager has the meaning ascribed in section 26-601 of this Code.

Parking facility operating company has the meaning ascribed in section 26-601 of this Code.

Permittee means a person who holds a vehicle immobilization service permit.

Police official has the meaning ascribed in section 26-601 of this Code.

Unauthorized vehicle has the meaning ascribed in section 26-601 of this Code.

Vehicle immobilization means installing a boot.

Vehicle immobilization device means a lockable road wheel clamp or similar vehicle immobilization device that is designed to immobilize a parked vehicle and prevent its operation until the device is unlocked or removed.

Vehicle immobilization operator means any individual who installs, affixes or places or removes a vehicle immobilization device on or from a motor vehicle.

Vehicle immobilization service means a person who at the request of a parking facility operating company or parking facility general manager engages in the act of booting vehicles that are in a parking facility without permission, without paying a parking fee, or in violation of any parking restriction posted in accordance with the signage requirements of section 26-616 of this Code.

Vehicle immobilization service permit means a current and valid permit issued to a vehicle immobilization service pursuant to section 26-652 of this Code.

(b) *Interchangeable terms.* The terms "*boot*" (verb) and "*immobilize,*" in reference to a vehicle, are used interchangeably in this article. The terms "*booting*" and "*vehicle immobilization*" are used interchangeably in this article. The terms "*boot*" (noun), "*boot device*" and "*vehicle immobilization device*" are used interchangeably in this article.
(Ord. No. 08-847, § 2, 9-24-08; Ord. No. 09-1235, §§ 2, 13, 12-2-09)

Sec. 26-642. Scope.

(a) This article applies only to parking facilities that cause or allow the booting or towing of unauthorized vehicles.

(b) This article does not apply to the booting of vehicles:

(1) In relation to delinquent municipal parking citations pursuant to article V of this chapter; or

(2) As provided in Section 2308.004 of the Texas Occupations Code:

a. In the exercise of a statutory or contractual lien right with regard to a vehicle; or

b. By a commercial office building owner or manager in the building's parking facility.

(Ord. No. 08-847, § 2, 9-24-08; Ord. No. 09-1235, §§ 2, 14, 12-2-09)

Sec. 26-643. Compliance with other laws.

Compliance with the requirements of this article does not excuse compliance with any other provisions of state law or this Code relating to parking regulations or parking facilities.
(Ord. No. 08-847, § 2, 9-24-08)

Sec. 26-644. Prohibited activities.

(a) It is unlawful for any person to immobilize a vehicle without a vehicle immobilization service permit issued by the city.

(b) It shall be unlawful for any vehicle immobilization operator to boot a vehicle:

(1) In a parking facility that is not in compliance with the signage requirements of section 26-616 of this Code;

(2) Without complying with the operating requirements of section 26-662 of this Code;

(3) In a parking facility used wholly or partly for paid motor vehicle parking that is accessible to the public and does not provide a receipt for payment of parking fees as required by section 26-617 of this Code;

(4) In a parking facility that has not been issued a registration compliance certificate as required by section 26-606 of this Code;

(5) In a parking facility for any reason (e.g., parked in a parking space marked "Reserved" when a receipt for the space has been issued and properly displayed, or parked on or across the parking space lines, on or across areas marked with hash marks, in driving lanes or in other unauthorized areas on the parking facility) other than non-payment;

(6) On the dashboard of which is displayed, face up and clearly visible through the front windshield of the vehicle, a valid receipt issued by a parking attendant, a barrier gate, or a pay station; or

(7) In a parking facility in which payment of parking fees was made by a digital parking payment.

(c) It is unlawful for a permittee to operate or cause to be operated a vehicle immobilization service in violation of any term of a permit.
(Ord. No. 08-847, § 2, 9-24-08; Ord. No. 09-1235, §§ 2, 15, 12-2-09; Ord. No. 2011-1175, § 34, 12-14-2011)

Sec. 26-645. Beneficial interests and rebates prohibited.

(a) A parking facility operating company or general manager may not have a direct or indirect monetary or ownership interest in a vehicle immobilization service that for compensation immobilizes unauthorized vehicles in a parking facility in which the parking facility operating company or general manager has an interest.

(b) A parking facility operating company or general manager of a parking facility in which vehicles are immobilized may not accept any rebate, compensation or other valuable consideration, directly or indirectly, from a vehicle immobilization operator in connection with the immobilization of vehicles.
(Ord. No. 08-847, § 2, 9-24-08; Ord. No. 09-1235, § 2, 12-2-09)

Secs. 26-646—26-650. Reserved.

DIVISION 2. VEHICLE IMMOBILIZATION SERVICE PERMITS

Sec. 26-651. Vehicle immobilization service permit application.

(a) Any person who desires to operate a vehicle immobilization service in the city shall submit an application for a permit to the police official in a form promulgated by the police official for that purpose, which shall include the following:

(1) The applicant's name, telephone number, mailing address, street address, federal employee identification number, corporate charter number, and Texas driver's license number (if applicable);

(2) The name and mailing address of each principal of the applicant, copies of the assumed-name registration if the vehicle immobilization service will be operated under an assumed name, the partnership registration, if any, and the names and addresses of all general partners if the applicant is a partnership, and a certificate of good standing from the Texas Secretary of State for a Texas domestic corporation or certificate of authority to do business in Texas if a foreign corporation, along with the names and addresses of all officers and the corporation's registered agent;

(3) The location of all parking facilities at which applicant intends to immobilize ve-

hicles and a copy of the agreement with the parking facility operating company or general manager for vehicle immobilization at each location;

(4) The indemnity and release form provisions that are specified in subsection (b) of this section;

(5) Proof of insurance required by section 26-661 of this Code;

(6) Criminal history information for every principal for whom information is provided in item (2) of this subsection as required by the police official to determine compliance with section 1-10 of this Code; and

(7) Any other information reasonably required by the police official for the purpose of processing the application under the requirements of this article.

(b) An application shall contain the following indemnity and release, which shall be a condition of each vehicle immobilization service permit:

'THE PERMITTEE AGREES TO AND SHALL DEFEND, INDEMNIFY, AND HOLD THE CITY ITS AGENTS, EMPLOYEES, OFFICERS, AND LEGAL REPRESENTATIVES (COLLECTIVELY, THE "CITY") HARMLESS FOR ALL CLAIMS, CAUSES OF ACTION, LIABILITIES, FINES, AND EXPENSES (INCLUDING, WITHOUT LIMITATION, ATTORNEYS' FEES, COURT COSTS, AND ALL OTHER DEFENSE COSTS AND INTEREST) FOR INJURY, DEATH, DAMAGE, OR LOSS TO PERSONS OR PROPERTY SUSTAINED IN CONNECTION WITH OR INCIDENTAL TO ANY PERFORMANCE UNDER THIS PERMIT, INCLUDING, WITHOUT LIMITATION, THOSE CAUSED BY:

1. THE PERMITTEE'S AND/OR ITS AGENTS', EMPLOYEES', OFFICERS', DIRECTORS', CONTRACTORS', OR SUBCONTRACTORS' (COLLECTIVELY IN LETTERED PARAGRAPHS 1—3, "PERMITTEE'S") ACTUAL OR ALLEGED NEGLIGENCE OR INTENTIONAL ACTS OR OMISSIONS;
2. THE CITY'S AND THE PERMITTEE'S ACTUAL OR ALLEGED CONCURRENT NEGLIGENCE, WHETHER THE PERMITTEE IS IMMUNE FROM LIABILITY OR NOT; AND
3. THE CITY'S AND THE PERMITTEE'S ACTUAL OR ALLEGED STRICT PRODUCTS LIABILITY OR STRICT STATUTORY LIABILITY, WHETHER THE PERMITTEE IS IMMUNE FROM LIABILITY OR NOT.

THE PERMITTEE SHALL DEFEND, INDEMNIFY, AND HOLD THE CITY HARMLESS DURING THE TERM OF THE PERMIT AND FOR TWO YEARS AFTER THE PERMIT EXPIRES. THE PERMITTEE'S INDEMNIFICATION IS LIMITED TO $500,000.00 PER OCCURRENCE.

THE PERMITTEE AGREES TO AND SHALL RELEASE THE CITY FROM ALL LIABILITY FOR INJURY, DEATH, DAMAGE, OR LOSS TO PERSONS OR PROPERTY SUSTAINED IN CONNECTION WITH OR INCIDENTAL TO PERFORMANCE UNDER THE PERMIT, EVEN IF THE INJURY, DEATH, DAMAGE, OR LOSS IS CAUSED BY THE CITY'S SOLE OR CONCURRENT NEGLIGENCE.'

(c) The application shall be signed by an owner if the applicant is a sole proprietorship, an authorized officer if the applicant is a corporation, or a general partner if the applicant is a partnership, acknowledging that the person signing has read the application, agrees to all of its terms and provisions, affirms the correctness and accuracy of the information given on the application, and affirms that he has the authority to bind the applicant to all of the terms, provisions, and requirements of the application.
(Ord. No. 08-847, § 2, 9-24-08; Ord. No. 09-1235, § 2, 12-2-09)

Sec. 26-652. Permit issuance; denial; fee.

(a) An application that contains all of the information required by section 26-651 of this Code and is duly and properly signed shall be a complete application. A complete application shall

be approved and the vehicle immobilization service permit issued upon payment of the fee specified by subsection (c) of this section unless:

(1) The information provided in the application is materially false or incorrect or the applicant has failed in any material way to comply with this article;

(2) The applicant or an entity owned or controlled by the applicant or any of the principals of the applicant has had a vehicle immobilization service permit revoked during the preceding one year period;

(3) The police official determines that proof of insurance provided by the applicant does not meet the requirements of section 26-661 of this Code;

(4) The parking official determines that there exist one or more unresolved parking citations, as defined in section 26-261 of this Code, for any vehicle owned by the applicant or any of its principals;

(5) The vehicle immobilization service has any unpaid final judgment relating to booting from a justice court, pursuant to Section 2308 of the Texas Occupations Code; or

(6) The applicant or any of its principals is not in compliance with the criminal history provisions of section 1-10 of this Code.

(b) In the event that an application is denied, the police official shall promptly inform the applicant in writing of the reasons for the denial. The applicant, upon written request, shall be afforded an opportunity for a hearing regarding the denial before a hearing officer appointed by the chief of police. The appeal process shall be conducted in accordance with rules promulgated by the police official and approved by the police chief for that purpose. If the denial is based in whole or in part upon section 1-10 of this Code, then the notice and hearing procedures shall also include any requirements to comply with section 1-9 of this Code and applicable state laws. The determination of the hearing examiner with respect to the application shall be final.

(c) The fees for an initial vehicle immobilization service permit and for annual renewal of a vehicle immobilization service permit are stated for this provision in the city fee schedule. No portion of the fee shall be refundable. Current fee information shall be maintained in the office of the police department's auto dealers detail.
(Ord. No. 08-847, § 2, 9-24-08; Ord. No. 09-1235, § 16, 12-2-09; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 26-653. Vehicle immobilization service permit conditions.

Each vehicle immobilization service permit shall specify the following terms, which shall be the conditions under which the vehicle immobilization service permittee is authorized to conduct vehicle immobilization:

(1) Name of the permitted vehicle immobilization operator;

(2) That the permittee must comply with all applicable requirements of this article; and

(3) Any other reasonable conditions specified by the police official at the time of issuance of the permit.
(Ord. No. 08-847, § 2, 9-24-08)

Sec. 26-654. Term.

A vehicle immobilization service permit shall be valid for one year from its date of issuance and shall not be transferrable. A permit may be renewed by filing an application pursuant to section 26-651 of this Code at least 30 days prior to the expiration of the permit. A renewal permit application shall be reviewed and approved pursuant to section 26-652 of this Code.
(Ord. No. 08-847, § 2, 9-24-08)

Sec. 26-655. Revocation.

(a) A vehicle immobilization service permit may be revoked without refund of any portion of the permit application or renewal fee if:

(1) Any information supplied in the permit application was materially false or incorrect;

(2) The permit was issued through error;

(3) The permittee has failed to operate in compliance with the requirements for operating a vehicle immobilization service as set forth in section 26-662 of this Code and Chapter 2308 of the Texas Occupations Code;

(4) The permittee has booted vehicles in parking facilities that are in violation of the signage requirements found in section 26-616 of this Code and applicable state law;

(5) The permittee has failed to comply with any applicable provision of the permit or this article;

(6) The permittee has failed to renew the permit in accordance with section 26-654 of this Code;

(7) The permittee has failed to perform under the release and indemnity requirements of section 26-651 of this Code;

(8) The permittee or any of its principals are not in compliance with the criminal history provisions of section 1-10 of this Code; or

(9) The permittee fails to maintain insurance in compliance with section 26-661 of this Code.

(b) The police official shall deliver notice of revocation to the permittee by personal delivery, or by certified mail, return receipt requested, or by United States Postal Service using signature confirmation service to the address of the permittee shown in the permit application. The notice shall set forth the alleged grounds for the revocation and the opportunity to request a hearing regarding the revocation. If the revocation is based in whole or in part upon section 1-10 of this Code, then the notice and hearing procedures shall also include any requirements to comply with section 1-9 of this Code and applicable state laws.

(c) If the permittee wishes to request a hearing to contest the revocation, such request must be made in writing and provided to the police official within 20 days of the date of the police official's notice of revocation. Pending the hearing, the police official may suspend the vehicle immobilization service permit when the police official determines that continued operation of the vehicle immobilization service constitutes a hazard to public safety and welfare. At the hearing, the burden of demonstrating that a permit should be revoked shall be upon the city. The permittee may also present evidence and cross examine witnesses. The hearing shall be conducted by a hearing officer appointed by the police official, who shall revoke the permit if he determines by a preponderance of the evidence that grounds exist for revocation. The decision of the hearing officer to revoke a permit shall be made in writing and shall set forth the grounds therefor. The hearing officer's determination shall be final.

(Ord. No. 08-847, § 2, 9-24-08; Ord. No. 09-1235, §§ 17—19, 12-2-09)

Secs. 26-656—26-660. Reserved.

DIVISION 3. REQUIREMENTS FOR OPERATING A VEHICLE IMMOBILIZATION SERVICE

Sec. 26-661. Insurance.

(a) The vehicle immobilization service shall obtain and maintain in effect during the term of a permit issued pursuant to section 26-652 of this Code insurance coverage as set out below and shall furnish certificates of insurance prior to the beginning of the term of such permit. All such policies shall be primary to any other insurance. Claims made policies shall have an extended reporting period (tail coverage) in place for two years after such policies expire. All liability policies shall be issued by a carrier that is authorized or deemed eligible by the Texas Department of Insurance to do business in the State of Texas. The vehicle immobilization service shall maintain at least the following insurance coverage in the following amounts:

(1) *Commercial General Liability,* including Broad Form Coverage: Bodily Injury and Property Damage, Combined Single Limits of $500,000.00 each Occurrence and $500,000.00 Annual Aggregate; and

(2) *Automobile Liability Insurance,* including owned, hired, or non-owned vehicles or any automobile: $500,000.00 Combined Single Limit per Accident.

(b) The insurance policy must state that it may not be canceled, materially modified, or non-renewed unless the insurance company gives the police official 30 days' advance written notice. Defense costs are outside the limit of liability. Aggregate coverage limits are per 12-month policy period unless otherwise indicated. Proof of insurance required by this section shall be on the authorized form approved for this purpose by the police official. A permit shall be automatically suspended without any requirement for action by the city or notice to the permittee for any period of time that any of the insurance required by this section is not in effect. In addition, the police official may cause the permit to be revoked for cause pursuant to section 26-655 of this Code for failure to maintain insurance in compliance with this section.
(Ord. No. 08-847, § 2, 9-24-08; Ord. No. 09-1235, § 20, 12-2-09)

Sec. 26-662. Vehicle immobilization service operations.

A vehicle immobilization service shall operate in accordance with the following requirements:

(1) Vehicles shall be booted only in parking facilities and only pursuant to a written agreement with the parking facility operating company or general manager;

(2) Upon affixing a boot device to a vehicle, a vehicle immobilization operator shall place an adhesive notice on the vehicle's front windshield or driver's side window and a non-adhesive notice under the driver's side windshield wiper advising the owner or operator of the information required by Section 2308.257(b) of the Texas Occupations Code, as amended, including notice of the procedure to file a complaint against the vehicle immobilization operator. In addition, each notice shall set forth: the street address of the parking facility in which the vehicle was booted; information about how to obtain release of the boot device from the vehicle; the possibility that the vehicle may be towed after 24 hours; the telephone number for the police department's auto dealers detail; and any additional text reasonably required by the police official;

(3) No person shall charge a booting fee of more than $25.00, plus applicable sales tax, for the removal or release of a boot device placed on the vehicle in the case of failure of a vehicle operator to (i) remove the vehicle from the parking facility before the expiration time shown on the receipt, (ii) pay for a rate change at the lot which occurred after the vehicle operator entered the lot and paid the applicable fee at the time of entry, or (iii) properly display a parking fee receipt on the vehicle dashboard upon display of such receipt by the vehicle operator to the vehicle operator to the vehicle immobilization service, or any combination of such events, nor more than $100.00, plus applicable sales tax, for the removal or release of a boot device placed on a vehicle for the failure to pay any parking fee; a vehicle mobilization operator responsible for the installation of more than one boot on a vehicle may not charge a total amount for the removal of the boots that is greater than the amount of the fee for the removal of a single boot;

(4) Except as provided in the previous item, no person shall be obligated to pay any fees, other than the booting fee, the unpaid parking fee for the immediately preceding 24-hour period and any past due fees for contract parking, plus any applicable sales tax, in connection with the installation or removal of a boot device;

(5) Payment for removal of boot devices shall be accepted in any of the following forms: cash, credit card, debit card, cashier's check, certified check, money order, or Western Union check, provided, however, that the vehicle immobilization service may elect to accept personal and business checks as well;

(6) A vehicle immobilization operator responsible for the installation of a boot on a vehicle shall remove the boot device not later than one hour after the time the owner or operator of the vehicle contacts the vehicle immobilization service to request removal of the boot and makes payment for removal of the boot; provided, however, that in the case of a boot device that may be removed by a vehicle owner or operator who has paid the boot removal fee or the administrative fee, the information necessary to unlock the device shall be provided immediately after payment is made; a vehicle immobilization service shall waive the amount of the fee for removal of a boot, excluding any associated parking fees, if the company fails to have the boot removed within one hour after the time the owner or operator of the vehicle contacts the vehicle immobilization service to request removal of the boot and offers payment for removal of the boot.

(7) The vehicle immobilization operator shall ensure that the act of booting a vehicle does not unreasonably interfere with safe traffic operations in parking facilities and entrances to and exits from such facilities;

(8) A vehicle immobilization service shall maintain an office readily accessible to the public by telephone or in person, open and manned 24 hours a day, seven days a week, 365 days a year for the purpose of accepting payment and releasing vehicles from immobilization;

(9) A permittee shall display, upon request, a true and correct copy of the vehicle immobilization service permit required by this article and a vehicle immobilization sales tax permit at each location where vehicle immobilization is provided;

(10) In addition to the notice required in item (2) of this section, the vehicle immobilization operator shall prepare a multiple-copy form that states:

a. The name, business address, and phone number of the vehicle immobilization operator and the vehicle immobilization service;

b. The name of the owner, operating company or general manager of the parking facility on which the boot device was installed;

c. The name of the individual(s) authorizing and performing the immobilization;

d. The date, time and location the boot device was installed;

e. A description of the booted vehicle, including the make, model, and license plate number;

f. The amount of the fee for removal of a boot device; and

g. The name of the person who removed the boot device, the date and time the device was removed, the name of the person to whom the vehicle was released, and the amount of fees paid for removal of the device and parking fees, as well as the amount of applicable sales tax.

A copy of the form must be given to the individual who reclaims the vehicle, and in the event that the boot device is removed by the vehicle owner or operator after payment of applicable fees, a copy of the form must be provided to the individual who returns the boot device to the vehicle immobilization service. The vehicle immobilization service shall maintain the original form at its place of business for a period of three years. Any peace officer shall have the right, upon request, to inspect and copy such records to determine compliance with the requirements of this section;

(11) Vehicles utilized for booting operations shall have signage consisting of reflective magnetic signs or painted letters on each side of the vehicle stating, in letters at least two inches in height in a solid color that contrasts with the background, the name, logo, or other designation of the vehicle immobilization service owning or operating the vehicle; and

(12) The vehicle immobilization operator shall comply with all applicable traffic control laws, devices, signs, and markings.

(Ord. No. 08-847, § 2, 9-24-08; Ord. No. 09-1235, §§ 2, 21—25, 12-2-09; Ord. No. 2018-674, § 2, 8-22-2018)

Sec. 26-663. Duty of vehicle immobilization service.

(a) It shall be the duty of every vehicle immobilization service permittee to cause each of its employees to comply with the requirements of this article and any permit issued hereunder.

(b) It shall be the duty of every vehicle immobilization service permittee to provide information and applicable fees to the police official to obtain criminal history information for each of its employees before the employee is allowed to perform any vehicle immobilization and to keep a record of the background check.

(c) It shall be the duty of every vehicle immobilization service permittee to notify the police official before he commences immobilization service on any parking facility not previously listed on its application.

(d) Reserved.

(Ord. No. 08-847, § 2, 9-24-08; Ord. No. 09-1235, § 2, 12-2-09; Ord. No. 2018-674, § 3, 8-22-2018)

Sec. 26-664. Operator requirements.

It is the duty of the vehicle immobilization service permittee to ensure that no individual at any time performs as a vehicle immobilization operator unless the individual meets each of the criteria of this section. Each vehicle immobilization operator shall:

(1) Be 18 years of age or older;

(2) Wear a picture ID, name tag with the employee's first name and employee identification number, and shirt, jacket or vest with the name and logo of the vehicle immobilization service; and

(3) Ensure that the vehicle he utilizes for vehicle immobilization operations has signage as required by section 26-662(11) of this Code;

(4) Perform his duties in a courteous and professional manner.

If the vehicle immobilization service permittee, or any principal of a permittee, performs as a vehicle immobilization operator, the permittee or principal must satisfy each of these requirements.

(Ord. No. 08-847, § 2, 9-24-08; Ord. No. 09-1235, § 26, 12-2-09)

Sec. 26-665. Vehicle immobilization service operations subject to police regulation.

All vehicle immobilization service operations are subject to temporary suspension when the police official determines that the continued operation of the service constitutes a hazard to the public safety and welfare, including but not limited to, conducting vehicle immobilization services:

(1) That are in violation of section 26-616 of this Code pertaining to required signage;

(2) That are in violation of section 26-662 of this Code pertaining to vehicle immobilization service operations requirements; or

(3) In a parking facility used wholly or partly for paid motor vehicle parking that is accessible by motor vehicles but in which patrons are unable to make payment due to the absence of a parking facility attendant, operable pay station, or other method of paying to park in the facility.

(Ord. No. 08-847, § 2, 9-24-08; Ord. No. 09-1235, §§ 2, 27, 12-2-09)

Sec. 26-666. Complaints.

(a) A person may file a complaint against a vehicle immobilization service or vehicle immobilization service operator in writing with the police official. A vehicle immobilization operator's notice under section 26-662(2) of this Code shall include notice of the procedure to file a complaint.

(b) A vehicle immobilization service permittee shall respond in writing to complaints received by the police official concerning misconduct on the part of the permittee or permittee's employees or agents such as excessive or unauthorized charges, poor business practices, discourteous service, damage to vehicles, failure to give notice as required by this article, or failure to comply with the requirements of section 26-662 of this Code. Permittee shall provide such response to the complainant, copy to the police official, within five days after receipt of the complaint.

(c) The police official shall investigate all written complaints and determine whether just cause exists for suspension of a vehicle immobilization service permit pursuant to section 26-665 of this Code or revocation pursuant to section 26-655 of this Code.
(Ord. No. 2018-674, § 4, 8-22-2018)

Secs. 26-667—26-700. Reserved.

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DIVISION 1. GENERALLY

Sec. 26-701. Definitions.

As used in this article, the following terms and phrases shall have the following meanings, except where the context clearly indicates a different meaning:

Business owner means a person who holds title to or leases property for the purpose of operating or engaging in a trade, occupation, profession or other lawful commercial activity.

Business establishment means any building or portion thereof that contains one or more commercial uses other than a residential use.

City parking facility means property that is owned or controlled by the city and that is used, wholly or partially, for off-street motor vehicle parking, including, but not limited to, a parking lot, a surface lot, or a parking garage.

Greater Southeast Management District means the district created by Chapter 3815 of the Texas Special District Local Laws Code, as amended.

Midtown means all streets included and bounded by IH US 45 to the north, IH US 59 to the east and south, and 527 Spur to Elgin to Bagby to Tuam to Genesee to Boston to Gillette to Bailey to Cleveland to Heiner to Bagby to Pierce to the west, as further described in Exhibit B to Ordinance No. 2022-252.

Midtown Management District means the district created by Chapter 3809 of the Texas Special District Local Laws Code, as amended.

Museum Park means all streets included and bounded by IH US 59 to the north, from Eagle Street where it meets IH US 59 to Crawford Street to Blodgett Street to Chenevert Street to Ewing Street to Jackson Street to the east, Hermann Drive to the south, and Main Street to the west, and is further described in Exhibit C to Ordinance No. 2019-1015.

Notice owner means the owner of real property as shown on the records of the tax appraisal district in the county in which the property is located.

On-street (also "curbside") parking space means a curbside parking space on the public right-of-way, excluding those portions of the right-of-way where the parking of any motor vehicle is prohibited.

Parking benefit district means an area designated pursuant to this article in which a portion of permit fees and meter revenue is returned to the district to finance improvements that enhance the quality of life and

promote walking, cycling, and the use of public transportation within the boundaries of the defined parking benefit district.

Permit, parking permit, or *parking benefit district permit* means a current and valid permit issued under division 3 of this article.

Projects shall include, but not be limited to, public amenities that enhance the quality of life and public safety in the parking benefit district, such as: increased security, sidewalk and pedestrian walkway improvements, street maintenance, street lights, landscaping, parking studies, parking facilities, improvements that promote walking, cycling, and the use of public transportation, and information to identify and inform the public of a parking benefit district.

Resident means the owner or tenant of residential property.

Residential has the meaning prescribed in section 26-291 of this Code.

Washington Avenue Corridor means all streets included and bounded by Center Street to the north, Houston Street to the east, Lillian Street to the south, and Westcott Street to the west, and is further described in Exhibit A to Ordinance No. 2012-1097.

(Ord. No. 2012-1097, § 2, 12-12-2012; Ord. No. 2019-1015, §§ 17, 18, 12-11-2019; Ord. No. 2022-252, § 2, 4-6-2022)

Sec. 26-702. Compliance with other laws.

A parking permit issued pursuant to this article does not excuse compliance with any other provisions of state law or this Code relating to parking, including but not limited to, parking meter payment, "no parking" signs and restricted parking for persons with disabilities.
(Ord. No. 2012-1097, § 2, 12-12-2012)

Secs. 26-703, 26-704. Reserved.

Editor's note—Ord. No. 2019-1015, §§ 19, 20, renumbered §§ 26-703, 26-704 as 26-728, 26-729 respectively.

Sec. 26-705. Cumulative effect.

This article is cumulative of other requirements imposed by ordinances and regulations of the city. To the extent of any inconsistency, the more restrictive provision shall govern. The authority granted by this article is cumulative of the powers granted by this chapter and does not limit the authority of the traffic engineer or other officers authorized to regulate traffic.
(Ord. No. 2012-1097, § 2, 12-12-2012)

Sec. 26-706. Removal of vehicle.

A parking compliance officer or personnel designated by the police chief may authorize the towing of a vehicle parked in a tow-away zone restricted to parking by permit only in violation of this article, and in the event of such tow, the police department shall be the responsible law enforcement agency for purposes of section 8-117 of this Code.
(Ord. No. 2012-1097, § 2, 12-12-2012; Ord. No. 2019-1015, § 21, 12-11-2019)

Secs. 26-707—26-710. Reserved.

DIVISION 2. DESIGNATION OF WASHINGTON AVENUE CORRIDOR AS A PARKING BENEFIT DISTRICT

Sec. 26-711. Designation of district; time limit; continuation, modification or termination of district.

(a) City council hereby designates the Washington Avenue Corridor as a parking benefit district.

(b) Upon recommendation from the traffic engineer, city council may modify or terminate the parking benefit district if the traffic engineer determines that termination or modification is necessary for public safety or mobility purposes.
(Ord. No. 2012-1097, § 2, 12-12-2012; Ord. No. 2014-591, § 2, 6-11-2014; Ord. No. 2019-1015, § 22, 12-11-2019)

Sec. 26-712. Parking regulations.

(a) The traffic engineer shall develop parking regulations that establish the days of the week and the times of day that parking meters shall be operational and the days of the week and the

times of day that parking shall be restricted to parking by permit only in the Washington Avenue Corridor parking benefit district.

(b) The traffic engineer, in consultation with the parking official, shall designate the areas within the Washington Avenue Corridor parking benefit district in which a resident and/or a business owner who receives a parking permit may park.

(Ord. No. 2012-1097, § 2, 12-12-2012; Ord. No. 2019-1015, § 23, 12-11-2019)

Sec. 26-713. Notice of designation.

(a) Within ten days following the effective date of designation of the Washington Avenue Corridor parking benefit district, the parking official shall mail written notice to:

(1) Each notice owner and the occupant of every address within the Washington Avenue Corridor parking benefit district; and

(2) Each notice owner and the occupant of every address within 500 feet outside of the boundary of the Washington Avenue Corridor parking benefit district.

(b) The written notice shall contain the following information:

(1) The existence and boundaries of the Washington Avenue Corridor parking benefit district;

(2) The effective date of the parking regulations;

(3) The location of the metered parking spaces; and

(4) The location of the parking spaces restricted to parking by permit only.

(c) In the event that the boundaries of the district change or additional contiguous areas are restricted to permit parking, the parking official shall mail a written notice containing the same information as set forth in subsection (b) of this section to:

(1) Each notice owner and the occupant of every address within the Washington Avenue Corridor parking benefit district boundaries or additional contiguous areas restricted to permit parking; and

(2) Each notice owner and the occupant of every address within 500 feet of the newly Washington Avenue Corridor parking benefit district boundaries or additional contiguous areas restricted to permit parking.

(Ord. No. 2012-1097, § 2, 12-12-2012; Ord. No. 2014-591, § 3, 6-11-2014; Ord. No. 2019-1015, § 23, 12-11-2019)

Sec. 26-714. Disposition of revenue.

(a) All fees and revenues generated from the use of parking meters in the Washington Avenue Corridor parking benefit district and the issuance of permits under this article shall be allocated to the Washington Avenue Corridor parking benefit district. All fees and revenues generated from the issuance of parking citations in the Washington Avenue Corridor parking benefit district shall be allocated to the ParkHouston special revenue fund.

(b) All the total combined fees and revenue of the Washington Avenue Corridor parking benefit district and the parking management special revenue fund shall be first expended to defray the total administrative costs, signage, enforcement, debt service, and the installation, operation and maintenance of parking meters placed in service in the Washington Avenue Corridor parking benefit district on or after the effective date of designation of the parking benefit district. The total administrative costs shall be shared and paid by the Washington Avenue Corridor parking benefit district and from the ParkHouston special revenue fund in proportion to the total combined fees and revenue generated by or deposited into each respectively for the previous year.

(c) Sixty percent of fees and revenues in excess of the total administrative costs shall be applied to the projects recommended by the advisory committee. The remaining funds shall be deposited in the ParkHouston special revenue fund.

(d) The threshold amount of net revenue (the remaining total combined fees and revenue of the Washington Avenue Corridor parking benefit district and the ParkHouston special revenue fund after the total administrative costs are paid) that must be generated before a project may be initiated is $100,000.00.

(e) Fees and revenue generated from the Washington Avenue Corridor parking benefit district may be used in conjunction with other public funds or public-private partnership funds available for projects to benefit the district.

(f) In the event that the Washington Avenue Corridor parking benefit district is terminated, any fees and revenues generated from the use of parking meters in the Washington Avenue Corridor parking benefit district that have not been expended shall be transferred to the ParkHouston special revenue fund.

(Ord. No. 2012-1097, § 2, 12-12-2012; Ord. No. 2014-591, § 4, 6-11-2014; Ord. No. 2019-1015, § 23, 12-11-2019; Ord. No. 2020-348, § 6, 4-29-2020)

Sec. 26-715. Surrounding area may be designated as a residential parking permit area.

Areas within 1,000 feet outside of the boundary of the Washington Avenue Corridor may be designated as a residential parking permit area pursuant to article VI of chapter 26 of this Code.
(Ord. No. 2012-1097, § 2, 12-12-2012)

Secs. 26-716—26-720. Reserved.

DIVISION 3. PERMITS FOR WASHINGTON AVENUE CORRIDOR PARKING BENEFIT DISTRICT*

Sec. 26-721. Parking benefit district permit application; issuance.

(a) Any resident of or business owner within a parking benefit district may submit an application for no more than one parking benefit district permit for each residential address or business establishment to the parking official in a form promulgated by the director for that purpose, which shall include the following:

(1) The applicant's name, telephone number, and the applicant's residential or business address located within the parking benefit district;

(2) Proof that the applicant is a resident of the parking benefit district in the form of:

a. A valid Texas driver's license, or personal identification card issued by the Texas Department of Public Safety, showing the applicant's current residential address within the parking benefit district; and

b. A recent utility bill acceptable to the director showing the applicant's address within the parking benefit district;

(3) Proof that the applicant is a business owner in the parking benefit district in the form of:

a. A true and correct copy of a valid certificate of occupancy of the applicant's business establishment within the parking benefit district; or

b. A recent utility bill acceptable to the director showing the applicant's business address within the parking benefit district; or

(4) Any other information reasonably required by the director to ensure compliance with the requirements of this article.

(b) Upon submission of a complete application for a parking benefit district permit and payment of the fee prescribed in the city fee schedule for this provision, an applicant shall be entitled to receive no more than one parking benefit district permit for each residential or business establishment address described in the application, provided that no unresolved parking citations, as defined in section 26-261 of this Code, exist for any motor vehicle owned by the applicant.
(Ord. No. 2012-1097, § 2, 12-12-2012)

Sec. 26-722. Permits.

Motor vehicles with a permit issued under this article may park in a designated area restricted to permit parking in a parking benefit district during the days and times as established by the traffic engineer pursuant to section 26-712 of this Code.
(Ord. No. 2012-1097, § 2, 12-12-2012)

Sec. 26-723. Effect of issuance of permit.

(a) A parking permit shall be valid for one year from its date of issuance and shall not be transferable. A permit may be renewed by filing an application pursuant to this section and paying the applicable fee. A renewal permit application shall be reviewed and approved in accordance with this section; provided, that a permit that has been revoked pursuant to sec-

*__Editor's note—__Ord. No. 2019-1015, § 24, adopted December 11, 2019 amdned the title of Ch. 26, Art. XI, Div. 1 to read as herein set out. Formerly said division was entitled Permits.

tion 26-724 of this Code shall not be reissued for a period of two years from the date of revocation.

(b) No parking permit shall be issued to a person who is neither a resident nor a business owner within a parking benefit district.

(c) A parking permit issued to a resident or business owner of a parking benefit district who no longer qualifies for a parking permit is voidand use thereof shall constitute an offense.

(d) A permit does not guarantee or reserve a parking space within a parking benefit district. A permit issued pursuant to this article does not authorize the standing or parking of any motor vehicle in any place or during any time when the stopping, standing or parking of motor vehicles is prohibited or set aside for specified motor vehicle types. The issuance of a permit shall not excuse the observance of any traffic regulation.

(e) Whenever the holder of a permit is not in compliance with one or more of the applicable provisions of this article controlling the issuance or renewal of permits, the holder shall notify the parking official, who shall direct the holder to surrender the permit or present evidence that the permit has been removed from the motor vehicle.

(f) Until its expiration, surrender or revocation, a parking benefit district permit shall remain valid for the length of time the holder continues to reside or own and/or operate a business within a parking benefit district.

(g) A permit shall be valid only in the parking benefit district for which it is issued.

(h) Nothing in this article shall be construed to supersede the parking regulations of an area that is designated as a residential parking permit area.
(Ord. No. 2012-1097, § 2, 12-12-2012; Ord. No. 2019-1015, §§ 25, 26, 12-11-2019)

Sec. 26-724. Revocation of permit.

In addition to the penalties provided for violation of this article, the parking official shall revoke the parking permit of any individual found to have committed three or more violations of this article within any preceding 12-month period. Upon a determination by the parking official that a person who holds a permit has been adjudicated to have committed three or more such violations within the prescribed period, the parking official shall provide written notification to such person by certified mail, return receipt requested, revoking the permit and ordering the surrender of such permit to the parking official. Failure to surrender a revoked permit when ordered to do so constitutes a separate violation of this article, and a signed return receipt shall be prima facie evidence of the delivery of the notice to surrender the permit.
(Ord. No. 2012-1097, § 2, 12-12-2012)

Sec. 26-725. Permit fees.

(a) The annual fee for each parking benefit district permit is stated for this provision in the city fee schedule.

(b) The parking official shall not issue any permit unless and until the applicable fee identified in this section has been paid.
(Ord. No. 2012-1097, § 2, 12-12-2012)

Sec. 26-726. Display of permit.

Each permit shall be conspicuously displayed upon a motor vehicle so as to be easily visible to any person passing the vehicle on the street or sidewalk while the vehicle is parked in an area designated for parking by permit in a parking benefit district. Any failure to display a permit shall create a presumption that no permit exists.
(Ord. No. 2012-1097, § 2, 12-12-2012)

Sec. 26-727. Adjudication.

Cases involving violations of the parking provisions of this division shall be heard by adjudication hearing officers of the municipal courts department.
(Ord. No. 2012-1097, § 2, 12-12-2012)

Sec. 26-728. Offenses.

(a) It is unlawful for any person to park a motor vehicle without a permit in a designated parking area in a parking benefit district on any day or during any hours for which parking is

allowed only by permit as indicated by one or more official signs posted in a parking benefit district.

(b) It is unlawful for any person to falsely represent in any fashion that he is entitled to a permit authorized by this article when he is not eligible for such a permit. The display of a parking benefit district permit by a person not eligible for such a permit shall constitute such false representation.

(c) It is unlawful for any person to duplicate, or attempt to duplicate, a permit authorized by this article or to display on any motor vehicle a forged or duplicated permit.
(Ord. No. 2012-1097, § 2, 12-12-2012; Ord. No. 2019-1015, § 19, 12-11-2019)
Note—Formerly § 26-703.

Sec. 26-729. Defenses.

It is an affirmative defense to civil prosecution for violation of section 26-728(a) that the motor vehicle parked in an area restricted to permit parking within a parking benefit district was:

(1) A motor vehicle owned by or operated under contract to a utility and in actual use in the construction, operation, removal or repair of utility property or facilities or engaged in authorized work in a parking benefit district;

(2) A motor vehicle clearly identified as owned by or operated under contract to a federal, state, or local governmental agency, and then being used in the course of official government business;

(3) An authorized emergency vehicle; or

(4) A motor vehicle used for delivery or service business purposes, including but not limited to motor vehicles such as moving vans and sanitation, repair, electrical and plumbing service motor vehicles then being used to conduct business at a residence or business establishment in a parking benefit district.

(Ord. No. 2012-1097, § 2, 12-12-2012; Ord. No. 2019-1015, § 20, 12-11-2019)
Note—Formerly § 26-704.

Secs. 26-730—26-740. Reserved

DIVISION 4. WASHINGTON AVENUE CORRIDOR ADVISORY COMMITTEE*

Sec. 26-741. Created.

There is hereby created a Washington Avenue Corridor Advisory Committee to make recommendations to the mayor and city council on issues relating to the parking benefit district, including: potential projects to be funded with revenue generated from the parking benefit district, the timing and order of such projects, changes to the parking meter and permit fees, and the allocation and management of permits.
(Ord. No. 2012-1097, § 2, 12-12-2012)

Sec. 26-742. Members; chair.

(a) The committee shall consist of no less than five and no more than nine regular members and five nonvoting ex officio members.

(b) The regular members shall be business owners or residents of the Washington Avenue Corridor who have an interest in the parking issues affecting the Washington Avenue Corridor and are at least 18 years of age. A majority of the regular members shall be business owners. The regular members shall be appointed by the mayor and confirmed by the city council. The mayor shall designate the committee chair from among the regular members of the committee. At the first meeting of the committee, the regular members shall elect a vice chair who shall perform the duties of the chair when the chair is absent or unable to perform such duties.

(c) The ex officio members shall be:

(1) The director of the department of administration and regulatory affairs or his designee, who shall also serve as secretary to the committee;

(2) The Director of Houston Public Works or his designee;

*__Editor's note—__Ord. No. 2019-1015, § 27, adopted December 11, 2019, amended the title of Ch. 26, Art. XI, Div. 4 to read as herein set out. Formerly said division was entitled Advisory committee.

(3) The director of the planning and development department or his designee;

(4) The chief of police or his designee; and

(5) A representative from the office of the mayor.

(Ord. No. 2012-1097, § 2, 12-12-2012; Ord. No. 2018-11, § 49, 1-10-2018; Ord. No. 2019-1015, § 28, 12-11-2019)

Sec. 26-743. Terms of members; dissolution of committee.

(a) Unless city council takes action to terminate a parking benefit district, regular members shall serve until the 180th day after the first anniversary of the effective date of designation of the parking benefit district and shall continue in office until their successors are appointed and qualified. As soon as practicable after the 180th day following the first anniversary of the effective date of designation of a parking benefit district, the mayor shall appoint or reappoint and city council shall confirm, regular members to serve on the committee for a term of two years.

(b) If a regular member moves his actual residence from or is no longer a business owner in the Washington Avenue Corridor during the term of his appointment, that person shall be disqualified from membership on the committee and his position shall become vacant effective simultaneously with such change in residency or business ownership.

(c) A vacancy in the position of a regular member shall be filled for the unexpired term by appointment by the mayor and confirmation by city council.

(d) In the event that a parking management district, a redevelopment authority, a tax increment and reinvestment zone or similar entity is created for or in the Washington Avenue Corridor or any portion thereof, the advisory committee shall be dissolved and such newly created entity shall assume the duties and responsibilities of the advisory committee.

(Ord. No. 2012-1097, § 2, 12-12-2012; Ord. No. 2014-591, § 5, 6-11-2014)

Sec. 26-744. Compensation

The members of the committee, in the performance of their duties as such, shall serve without compensation, provided that any member who is a city employee shall continue to receive his regular compensation while serving on the committee.

(Ord. No. 2012-1097, § 2, 12-12-2012)

Sec. 26-745. Meetings; quorum; absence from meetings.

(a) The committee shall meet from time to time at the call of the committee chair, provided that the committee shall meet not less than five times during the period provided in section 26-711 of this Code. All meetings of the committee shall be conducted in accordance with the Texas Open Meetings Act.

(b) A majority of the regular members of the committee shall constitute a quorum for the transaction of business; however, in the event of a vacancy on the committee, a majority of the remaining regular members of the committee shall constitute a quorum for the transaction of business.

(c) Three successive unexcused absences from the regularly scheduled meetings, after due notice served by telephone, mail, or electronic mail of the time and place of such meetings, shall automatically terminate membership on the committee. Absences may be excused only by a majority of the committee members present and voting at any scheduled meeting.

(Ord. No. 2012-1097, § 2, 12-12-2012)

Sec. 26-746. Procedures.

The committee shall adopt administrative procedures applicable to its own governance as are necessary or convenient to accomplish the purposes set out in this division.

(Ord. No. 2012-1097, § 2, 12-12-2012)

Secs. 26-747—26-750. Reserved.

DIVISION 5. DESIGNATION OF MUSEUM PARK AS A PARKING BENEFIT DISTRICT

Sec. 26-751. Designation of district; time limit; continuation, modification or termination of district.

(a) City council hereby designates Museum Park as a parking benefit district for a period ending on the 180th day following the first anniversary of the effective date of its designation (December 19, 2019), provided that the parking benefit district shall continue after the expiration of this period unless city council takes action to terminate the district.

(b) As soon as practicable after the time period provided in subsection (a) of this section:

(1) The director shall report to city council on the effectiveness of the parking benefit district and provide his recommendations for continuation, modification or termination of the district; and

(2) In consultation with the Museum Park Advisory Committee, the Greater Southeast Management District may make recommendations to the mayor and city council regarding modifications to the parking benefit district.

(c) Upon recommendation from the traffic engineer, city council may modify or terminate the parking benefit district prior to or after the time period provided in subsection (a) of this section if the traffic engineer determines that termination or modification is necessary for public safety or mobility purposes.
(Ord. No. 2019-1015, § 29(Exh. A), 12-11-2019)

Sec. 26-752. Disposition of revenue.

(a) All fees and revenues generated from the use of parking meters installed in the Museum Park parking benefit district and the issuance of permits in the parking benefit district under article XII of this chapter shall be allocated to the parking benefit district after the threshold amount of gross revenue generated by the parking benefit district exceeds $524,000.00 annually. All fees and revenues generated from the issuance of parking citations in the Museum Park parking benefit district shall be allocated to the ParkHouston special revenue fund.

(b) All the total combined fees and revenue of the Museum Park parking benefit district and the ParkHouston special revenue fund shall be first expended to defray the total administrative costs, signage, enforcement, debt service, and the installation, operation and maintenance of parking meters placed in service in the parking benefit district on or after the effective date of designation of the parking benefit district. The total administrative costs shall be shared and paid by the Museum Park parking benefit district and from the parking management special revenue fund in proportion to the total combined fees and revenue generated by or deposited into each respectively for the previous year.

(c) Sixty percent of fees and revenues in excess of the total administrative costs shall be allocated to projects for the sole benefit of the parking benefit district. The remaining funds shall be deposited in the ParkHouston special revenue fund.

(d) The city may enter into agreements with the Greater Southeast Management District, subject to city council approval, to manage projects to be funded with revenue generated by the parking benefit district.

(e) Fees and revenue generated from the Museum Park parking benefit district may be used in conjunction with other public funds or public-private partnership funds available for projects to benefit the district.

(f) In the event that the Museum Park parking benefit district is terminated, any fees and revenues generated from the use of parking meters and the issuance of permits in the parking benefit district that have not been expended shall be transferred to the ParkHouston special revenue fund.
(Ord. No. 2019-1015, § 29(Exh. A), 12-11-2019; Ord. No. 2020-348, § 7, 4-29-2020)

Sec. 26-753. Museum Park Advisory Committee.

(a) Prior to the city entering an agreement with the Greater Southeast Management District pursuant to section 26-752(d) of this Code, the

Greater Southeast Management District shall create a Museum Park Advisory Committee to make recommendations to the mayor and city council on issues relating to the parking benefit district, including: potential projects to be funded with revenue generated from the parking benefit district, the timing and order of such projects, changes to the parking meter and permit fees, and the allocation and management of permits.

(b) The committee shall consist of no less than five and no more than nine regular members and five nonvoting ex officio members. The regular members shall be business owners or residents of Museum Park who have an interest in the parking issues affecting Museum Park and are at least 18 years of age. A majority of the regular members shall be representatives of the Museum Park Super Neighborhood, with at least one member being a representative from the executive committee of the Museum Park Super Neighborhood. At least one of the regular members must be a representative from the Houston Museum District Association. The Greater Southeast Management District shall provide a list of the committee members to the parking official.

(c) The ex officio members shall be:

(1) The director of the department of administration and regulatory affairs or his designee;

(2) The director of the public works and engineering department or his designee;

(3) The director of the planning and development department or his designee;

(4) The chief of police or his designee; and

(5) A representative from the office of the mayor.

(d) All meetings of the committee shall be conducted in accordance with the Texas Open Meetings Act.

(e) In the event that a Museum Park Advisory Committee is not created by the Greater Southeast Management District in accordance with this section, there shall be a Museum Park Advisory Committee consisting of members as provided by this section, with the regular members appointed by the mayor and confirmed by city council. The committee shall comply with this section and the provisions of division 4 of this article as applicable.

(f) The provisions of this section shall terminate if the Museum Park parking benefit district is terminated.

(Ord. No. 2019-1015, § 29(Exh. A), 12-11-2019)

DIVISION 6. DESIGNATION OF MIDTOWN AS A PARKING BENEFIT DISTRICT

Sec. 26-754. Designation of district; time limit; continuation, modification or termination of district.

(a) City council hereby designates Midtown as a parking benefit district for a period ending on the 180th day following the first anniversary of the effective date of its designation (April 6, 2022), provided that the parking benefit district shall continue after the expiration of this period unless city council takes action to terminate the district.

(b) As soon as practicable after the time period provided in subsection (a) of this section:

(1) The director shall report to city council on the effectiveness of the parking benefit district and provide his recommendations for continuation, modification or termination of the district; and

(2) In consultation with the Midtown Advisory Committee, the Midtown Management District may make recommendations to the mayor and city council regarding modifications to the parking benefit district.

(c) Upon recommendation from the traffic engineer, city council may modify or terminate the parking benefit district prior to or after the time period provided in subsection (a) of this section if the traffic engineer determines that termination or modification is necessary for public safety or mobility purposes.

(Ord. No. 2022-252, § 3(Exh. A), 4-6-2022)

Sec. 26-755. Disposition of revenue.

(a) All fees and revenues generated from the use of parking meters located in the Midtown Parking Benefit District between the hours of 6:00 p.m. and 2:00 a.m. shall be allocated to the parking benefit district, beginning as soon as any such parking meter becomes operational. Additionally, all fees and revenues generated from the issuance of permits in the parking benefit district under article XII of this chapter shall be allocated to the parking benefit district. All fees and revenues generated from the issuance of parking citations in the Midtown Parking Benefit District shall be allocated to the ParkHouston special revenue fund.

(b) All the total combined fees and revenue of the Midtown parking benefit district and the ParkHouston special revenue fund shall be first expended to defray the total administrative costs, signage, enforcement, debt service, and the installation, operation and maintenance of parking meters placed in service in the Midtown Parking Benefit District on or after the effective date of designation of the parking benefit district. The total administrative costs shall be shared and paid by the Midtown parking benefit district and from the ParkHouston special revenue fund in proportion to the total combined fees and revenue generated by or deposited into each respectively for the previous year.

(c) Sixty percent of fees and revenues in excess of the total administrative costs shall be allocated to projects for the sole benefit of the parking benefit district. The remaining funds shall be deposited in the ParkHouston special revenue fund.

(d) The city may enter into agreements with the Midtown Management District, subject to city council approval, to manage projects to be funded with revenue generated by the parking benefit district.

(e) Fees and revenue generated from the Midtown Parking Benefit District may be used in conjunction with other public funds or public-private partnership funds available for projects to benefit the district.

(f) In the event that the Midtown Parking Benefit District is terminated, any fees and revenues generated from the use of parking meters and the issuance of permits in the parking benefit district that have not been expended shall be transferred to the ParkHouston special revenue fund.
(Ord. No. 2022-252, § 3(Exh. A), 4-6-2022)

Sec. 26-756. Midtown Advisory Committee.

(a) Prior to the city entering an agreement with the Midtown Management District pursuant to section 26-755(d) of this Code, the Midtown Management District shall create a Midtown Advisory Committee to make recommendations to the mayor and city council on issues relating to the parking benefit district, including: potential projects to be funded with revenue generated from the parking benefit district, the timing and order of such projects, changes to the parking meter and permit fees, and the allocation and management of permits.

(b) The committee shall consist of no less than five and no more than nine regular members and five nonvoting ex officio members. The regular members shall be business owners or residents of Midtown who have an interest in the parking issues affecting Midtown and are at least 18 years of age. A majority of the regular members shall be business or commercial property owners in Midtown or their designees, with at least one member being a representative from the executive committee of the Midtown Super Neighborhood. The Midtown Management District shall provide a list of the committee members to the parking official.

(c) The ex officio members shall be:

(1) The director of the department of administration and regulatory affairs or his designee;

(2) The Director of Houston Public Works or his designee;

(3) The director of the planning and development department or his designee;

(4) The chief of police or his designee; and

(5) A representative from the office of the mayor.

(d) All meetings of the committee shall be conducted in accordance with the Texas Open Meetings Act.

(e) In the event that a Midtown Advisory Committee is not created by the Midtown Management District in accordance with this section, there shall be a Midtown Advisory Committee consisting of members as provided by this section, with the regular members appointed by the mayor and confirmed by city council. The committee shall comply with this section and the provisions of division 4 of this article as applicable.

(f) The provisions of this section shall terminate if the Midtown parking benefit district is terminated.

(Ord. No. 2022-252, § 3(Exh. A), 4-6-2022)

Secs. 26-757—26-760. Reserved.

ARTICLE XII. COMMUNITY PARKING PROGRAM

Division 1. Generally

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Sec. 26-762. Compliance with other laws.
Sec. 26-763. Offenses.
Sec. 26-764. Defenses.
Sec. 26-765. Cumulative effect.
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Division 2. Designation of Community Parking Program Area

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Sec. 26-772. Designation of program areas.
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Division 3. Permits

Sec. 26-781. Community parking program resident permit application; issuance.
Sec. 26-782. Community parking program business permit application; issuance.
Sec. 26-783. Permits.
Sec. 26-784. Effect of issuance of permit.
Sec. 26-785. Revocation of permit.
Sec. 26-786. Permit fees.
Sec. 26-787. Display of permit.
Sec. 26-788. Adjudication.

DIVISION 1. GENERALLY

Sec. 26-761. Definitions.

As used in this article, the following terms and phrases shall have the following meanings, except where the context clearly indicates a different meaning:

Business means a recognized legal entity actively engaged in a trade, occupation, profession or other lawful commercial activity; the term shall include any lawful organization, such as a corporation, partnership, or other similar entity.

Business parking permit means a permit issued under division 3 of this article to a business owner, an agent of a business, or an employee of a business in a community parking program area.

Community parking program area means the following areas designated pursuant to division 2 of this article:

(1) *Zone 1:* all streets included and bounded by IH US 59 to the north, Montrose Street to the east, Bissonnet Street to the south and Graustark Street to the west, as further described in Exhibit D to Ordinance No. 2019-1015.

(2) *Zone 2:* all streets included and bounded by IH US 59 to the north, SH 288 to the east, Hermann Drive to the south, and Main Street to the west, as further described in Exhibit E to Ordinance No. 2019-1015.

(3) *Zone 3:* all streets included and bounded by IH US 45 to the north, IH US 59 to the east and south, and 527 Spur to Elgin to Bagby to Tuam to Genesee to Boston to Gillette to Bailey to Cleveland to Heiner to Bagby to Pierce to the west, as further described in Exhibit B to Ordinance No. 2022-252.

Dwelling unit means a structure, or a portion of a structure, that has independent living facilities including provisions for nontransient sleeping, cooking and sanitation.

Guest means any person visiting a resident in a community parking program area and who solely by reason of that visit needs a temporary place to park. The term "guest" does not mean or include a person who uses or attempts to use a permit to park in a community parking program area while he or she attends school, college or work in or near the community parking program area.

Multi-family means pertaining to the use of land for premises, such as condominiums or apartment complexes, with one or more buildings on a parcel designed for and containing an aggregate of between nine and 125 dwelling units.

On-street (also *"curbside"*) parking space means a curbside parking space on the public right-of-way, excluding those portions of the right-of-way where the parking of any motor vehicle is prohibited.

Permit or *parking permit* means a current and valid permit issued under division 3 of this article.

Resident means the owner or tenant of residential property or a dwelling unit in a multi-family property.

Residential means pertaining to the use of land for premises such as single-family homes, duplexes, condominiums and apartment complexes with eight or fewer dwelling units, which contain habitable rooms for nontransient occupancy and are designed primarily for living, sleeping, cooking and eating therein. A premises that is designed primarily for living, sleeping, cooking and eating therein will be deemed to be residential in character unless it is actually occupied and used exclusively for other purposes. Hotels, suites hotels, motels, boardinghouses and day care centers shall not be considered to be residential.

Resident parking permit means a permit issued under division 3 of this article to a resident in a community parking program area.

(Ord. No. 2019-1015, § 30(Exh. B), 12-11-2019; Ord. No. 2022-252, § 4, 4-6-2022)

Sec. 26-762. Compliance with other laws.

A parking permit issued pursuant to this article does not excuse compliance with any other provisions of state law or this Code relating to parking, including but not limited to, "tow-away zone" and "no parking" signs and restricted parking for persons with disabilities.

(Ord. No. 2019-1015, § 30(Exh. B), 12-11-2019)

Sec. 26-763. Offenses.

(a) It is unlawful for any person during the posted hours of operation of a parking meter to park any vehicle at a metered on-street parking space in a community parking program area without either:

(1) Displaying a current and valid permit issued and utilized pursuant to this article; or

(2) Paying the meter fee as provided in section 26-160 of this Code.

(b) It is unlawful for any person to park in violation of any signs imposing a time limit on parking in a community parking program area without displaying a current and valid permit issued and utilized pursuant to this article.

(c) It is unlawful for any person to falsely represent in any fashion that he is entitled to a permit authorized by this article when he is not eligible for such a permit. The display of a community parking program permit by a person not eligible for such a permit shall constitute such false representation.

(d) It is unlawful for any person to modify, duplicate, or attempt to duplicate, a permit authorized by this article or to display on any motor vehicle a modified, forged or duplicated permit.
(Ord. No. 2019-1015, § 30(Exh. B), 12-11-2019)

Sec. 26-764. Defenses.

It is an affirmative defense to civil prosecution for violation of section 26-763(b) of this Code that the motor vehicle parked in violation of any signs imposing a time limit on parking in a community parking program area was:

(1) A motor vehicle owned by or operated under contract to a utility and in actual use in the construction, operation, removal or repair of utility property or facilities or engaged in authorized work in a parking benefit district;

(2) A motor vehicle clearly identified as owned by or operated under contract to a federal, state, or local governmental agency, and then being used in the course of official government business;

(3) An authorized emergency vehicle; or

(4) A motor vehicle used for delivery or service business purposes, including but not limited to motor vehicles such as moving vans and sanitation, repair, electrical and plumbing service motor vehicles then being used to conduct business at a residence or business establishment in a parking benefit district.

(Ord. No. 2019-1015, § 30(Exh. B), 12-11-2019)

Sec. 26-765. Cumulative effect.

This article is cumulative of other requirements imposed by ordinances and regulations of the city. To the extent of any inconsistency, the more restrictive provision shall govern. The authority granted by this article is cumulative of the powers granted by this chapter and does not limit the authority of the traffic engineer or other officers authorized to regulate traffic.
(Ord. No. 2019-1015, § 30(Exh. B), 12-11-2019)

Secs. 26-766—26-770. Reserved.

DIVISION 2. DESIGNATION OF COMMUNITY PARKING PROGRAM AREA

Sec. 26-771. Community parking program established.

(a) City council establishes the community parking program to mitigate the adverse effects of motor vehicle congestion associated with long-term and nonresident motor vehicle parking in areas that contain a mix of residential and business property. City council may designate such areas within the city as community parking program areas.

(b) City council authorizes the parking official to administer the community parking program pursuant to this article. In carrying out the functions assigned by this article, the parking official shall consult with and obtain the concurrence of the traffic engineer.
(Ord. No. 2019-1015, § 30(Exh. B), 12-11-2019)

Sec. 26-772. Designation of program areas.

(a) City council hereby designates the following areas as community parking program areas:

(1) Zone 1;

(2) Zone 2; and

(3) Zone 3.

(b) Designation of a community parking program area shall be effective 60 days after passage of the ordinance designating the community parking program area.
(Ord. No. 2019-1015, § 30(Exh. B), 12-11-2019; Ord. No. 2022-252, § 5, 4-6-2022)

Sec. 26-773. Report to city council.

The parking official shall provide an annual report to city council on the effectiveness of the community parking program and all community parking program areas and make the report available to residents and businesses within the community parking program areas.
(Ord. No. 2019-1015, § 30(Exh. B), 12-11-2019)

Sec. 26-774. Parking regulations.

(a) The traffic engineer, in consultation with the parking official, shall develop parking regulations designating certain metered on-street parking and time-restricted parking within a community parking program area for which vehicles displaying a parking permit will be exempt.

(b) The traffic engineer, in consultation with the parking official, shall designate the locations within a community parking program area in which a resident or owner, agent, or employee of a business who receives a parking permit may park.

(c) The traffic engineer, in consultation with the parking official, is authorized to erect appropriate signs and markings within the area to give notice of the requirements of this article.
(Ord. No. 2019-1015, § 30(Exh. B), 12-11-2019)

Sec. 26-775. Notice of designation.

As soon as practicable following the designation of a community parking program area, the parking official shall mail to the occupant of every address within the designated community parking program area a written notice that shall contain the following information:

(1) The existence and boundaries of the community parking program area;

(2) The parking restrictions applicable to all motor vehicles in curbside parking spaces along public streets in the designated area that do not properly display a permit authorized by this article;

(3) The effective date of the regulations;

(4) The procedures and associated fees to obtain permits; and

(5) An application for a residential or business permit on the form to be prescribed by the director.

(Ord. No. 2019-1015, § 30(Exh. B), 12-11-2019)

Secs. 26-776—26-780. Reserved.

DIVISION 3. PERMITS

Sec. 26-781. Community parking program resident permit application; issuance.

Building	*Number of Permits Allowed Annually*
Residential buildings	3 permits per address/dwelling unit
Multi-family buildings constructed prior to the effective date of the city's off-street parking ordinance (Ord. No. 1989-712) on May 23, 1989 that provide no off-street parking spaces	2 permits per dwelling unit
Multi-family buildings	1 permit per dwelling unit but total permits issued to residents in a given building cannot exceed .5 permits multiplied by the total number of dwelling units in the building

If a resident lives in a permit-restricted building and there are no permits available, the resident shall be added to a waiting list. Residents of multi-family buildings that are subject to the off-street parking standards under the transit-oriented development rules or receive parking variances under article VIII of chapter 26 of this Code are not eligible for resident parking permits.

(b) Any resident within a community parking program area may submit an application to the parking official in a form promulgated by the director for that purpose, which shall include the following:

(1) The applicant's name, telephone number, and the applicant's residential address located within the community parking program area;

(2) Proof that the applicant is a resident of the community parking program area in the form of:

a. A valid Texas driver's license, or personal identification card issued by the Texas Department of Public Safety, showing the applicant's current residential address within the community parking program area; and

b. A recent utility bill acceptable to the director showing the applicant's address within the community parking program area; or

c. Vehicle registration reflecting an address within the community parking program area; and

(3) Any other information reasonably required by the director to ensure compliance with the requirements of this article.

(c) Upon submission of a complete application for a community parking program resident permit and payment of the fee prescribed in the city fee schedule for this provision, an applicant shall be entitled to receive a community parking program resident permit in accordance with subsection (a) of this section, provided that no unresolved parking citations, as defined in section 26-261 of this Code, exist for any motor vehicle owned by the applicant or listed on the application.

(d) Each permit issued under this section is transferable to any vehicle that is being operated by or for the transportation of any resident at the address listed on the permit application or a vehicle under the legal control of a guest of any resident at the address listed on the permit application.
(Ord. No. 2019-1015, § 30(Exh. B), 12-11-2019; Ord. No. 2022-252, § 6, 4-6-2022)

Sec. 26-782. Community parking program business permit application; issuance.

(a) A business owner of a business located within a community parking program area designated as Zone 1 or Zone 2 under section 26-772(a) of this Code may obtain one business parking permit. Each person who is employed by or who is an agent of a business located within the community parking program area designated as Zone 1 or Zone 2 under section 26-772(a) of this Code may also obtain one business parking permit.

(b) An owner, agent, or employee of a business within a community parking program area designated as Zone 1 or Zone 2 under section 26-772(a) of this Code may submit an application for a business parking permit to the parking official in a form promulgated by the director for that purpose, which shall include the following:

(1) The applicant's name, telephone number, and the applicant's business address located within the community parking program area;

(2) Proof that the applicant is an owner, agent, or employee of a business in the community parking program area in the form, as applicable, of:

a. A true and correct copy of a valid certificate of occupancy of the applicant's business within the community parking area; or

b. A recent utility bill acceptable to the director showing the applicant's business address within the community parking program area; or

c. Copy of payroll stub or statement on employer letterhead confirming employment and including physical

address of employer located within the community parking program area; and

(3) Any other information reasonably required by the director to ensure compliance with the requirements of this article.

(c) Upon submission of a complete application for a business parking permit and payment of the fee prescribed in the city fee schedule for this provision, an applicant shall be entitled to receive one community parking program business permit, provided that no unresolved parking citations, as defined in section 26-261 of this Code, exist for any motor vehicle owned by the applicant.

(d) Each permit issued under this section is non-transferable and only valid at such on-street parking spaces within a community parking program area as determined by the director.
(Ord. No. 2019-1015, § 30(Exh. B), 12-11-2019; Ord. No. 2022-252, § 7, 4-6-2022)

Sec. 26-783. Permits.

Motor vehicles with a parking permit issued under this article may park at an on-street parking space restricted by parking meters or signs establishing time limits in a community parking program area at the locations and during the days and times established by the traffic engineer pursuant to section 26-774 of this Code.
(Ord. No. 2019-1015, § 30(Exh. B), 12-11-2019)

Sec. 26-784. Effect of issuance of permit.

(a) A resident parking permit shall be valid for one year from its date of issuance. A permit may be renewed by filing an application pursuant to this section and paying the applicable fee. A renewal permit application shall be reviewed and approved in accordance with this section; provided, that a permit that has been revoked pursuant to section 26-785 of this Code shall not be reissued for a period of two years from the date of revocation.

(b) A business parking permit shall be valid for 30 days from its date of issuance. A permit may be renewed by filing an application pursuant to this section and paying the applicable fee prior to the expiration of the permit. A renewal permit application shall be reviewed and approved in accordance with this section; provided, that a permit that has been revoked pursuant to section 26-785 of this Code shall not be reissued for a period of two years from the date of revocation.

(c) No parking permit shall be issued to a person who is neither a resident nor an owner, agent, or employee of a business within a community parking program area.

(d) A parking permit issued to a resident or owner, agent, or employee of a business of a community parking program area who no longer qualifies for a parking permit is void and use thereof shall constitute an offense.

(e) A permit does not guarantee or reserve a parking space within a community parking program area. A permit issued pursuant to this article does not authorize the standing or parking of any motor vehicle in any place or during any time when the stopping, standing or parking of motor vehicles is prohibited or set aside for specified motor vehicle types. The issuance of a permit shall not excuse the observance of any traffic regulation.

(f) Whenever the holder of a permit is not in compliance with one or more of the applicable provisions of this article controlling the issuance or renewal of permits, the holder shall notify the parking official, who shall direct the holder to surrender the permit or present evidence that the permit has been removed from the motor vehicle.

(g) Until its expiration, surrender or revocation, a parking permit shall remain valid for the length of time the holder continues to reside or own, operate, or be employed by a business within a community parking program area.

(h) A permit shall be valid only in the community parking program area for which it is issued.

(i) Nothing in this article shall be construed to supersede the parking regulations of an area that is designated as a residential parking permit area.
(Ord. No. 2019-1015, § 30(Exh. B), 12-11-2019)

Sec. 26-785. Revocation of permit.

In addition to the penalties provided for violation of this article, the parking official shall revoke the parking permit of any individual found to have committed three or more violations of this article within any preceding 12-month period. Upon a determination by the parking official that a person who holds a permit has been adjudicated to have committed three or more such violations within the prescribed period, the parking official shall provide written notification to such person by certified mail, return receipt requested, revoking the permit and ordering the surrender of such permit to the parking official. Failure to surrender a revoked permit when ordered to do so constitutes a separate violation of this article, and a signed return receipt shall be prima facie evidence of the delivery of the notice to surrender the permit.
(Ord. No. 2019-1015, § 30(Exh. B), 12-11-2019)

Sec. 26-786. Permit fees.

(a) The fee for each community parking program permit is stated for this provision in the city fee schedule.

(b) The parking official shall not issue any permit unless and until the applicable fee identified in this section has been paid.
(Ord. No. 2019-1015, § 30(Exh. B), 12-11-2019)

Sec. 26-787. Display of permit.

Each permit shall be conspicuously displayed upon a motor vehicle so as to be easily visible to any person passing the vehicle on the street while the vehicle is parked in an area designated for parking by permit in a community parking program area, except the parking official may accept a valid license plate number on file with the department for each permit holder in lieu of affixing or hanging a permit. Any failure to display a permit shall create a presumption that no permit exists, except as otherwise provided in this section.
(Ord. No. 2019-1015, § 30(Exh. B), 12-11-2019)

Sec. 26-788. Adjudication.

Cases involving violations of the parking provisions of this division shall be heard by adjudication hearing officers of the municipal courts department.
(Ord. No. 2019-1015, § 30(Exh. B), 12-11-2019)

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Chapter 27

MINI-WAREHOUSES

Sec. 27-1. Definition.

The term "mini-warehouse" as used in this chapter shall mean any storage facility containing multiple storage units or rooms which do not exceed 40 feet in length and 20 feet in width and which are available to the general public for rental under circumstances where the tenant or lessee has sole control over the property that is stored in such units or rooms.
(Code 1968, § 27½-1; Ord. No. 76-145, § 1(1), 2-3-76)

Sec. 27-2. License required.

No person shall own or operate a mini-warehouse without a license as herein provided. Any person who owns or operates a mini-warehouse at more than one location shall be required to obtain a license for each separate location. In the event the operator of any location is not the owner of such location, both the owner and operator shall be co-licensees for each such location.
(Code 1968, § 27½-2; Ord. No. 76-145, § 1(2), 2-3-76)

Sec. 27-3. License application and issuance.

(a) Any person desiring a license required by this chapter shall make application therefor in writing to the director of administration and regulatory affairs on a form provided by the director for that purpose stating where the business is to be located and the residential addresses of the owner and the operator. Such application shall be subscribed and sworn to before an officer authorized to administer oaths. Such application shall state that neither the applicant nor any business partner, nor, in the case of a corporation, any corporate officer, have had a license revoked under any city ordinance governing the business described herein.

(b) Upon the receipt of such application, the director of administration and regulatory affairs shall investigate the items in the application. If neither the applicant, his business partners, nor any corporate officers have had a license revoked as described above, the director of administration and regulatory affairs shall notify the applicant that it has been approved and shall issue a license to the applicant upon payment of the license fee.

(c) If the director of administration and regulatory affairs rejects the application, written notice, by certified mail, return receipt requested, shall be given to the applicant at the address stated in the application. The applicant shall have 30 days from the date of mailing thereof to appeal the rejection of his application to the city council by filing written notice of such appeal with the city secretary. Upon receipt of such notice, the city council shall hear evidence regarding the rejection of the application and shall, based upon the preponderance of the evidence, sustain or overrule such rejection. The city council shall give written notice of its action within ten days of its decision and such decision shall be final.
(Code 1968, § 27½-3; Ord. No. 76-145, § 1(3), 2-3-76; Ord. No. 08-52, § 49, 1-16-08, eff. 1-26-08)

Sec. 27-4. License fees.

The license fee for mini-warehouse operators is stated for this provision in the city fee schedule per year for each mini-warehouse location proposed to be operated by the applicant. All such fees are payable on or before the first day of January of each year and each such license will expire on December 31st of each year. If a permit is granted subsequent to January first, the fee shall be paid pro rata for the balance of the year, and any portion of a month shall be considered as an entire month in calculating the fee to be charged.
(Code 1968, § 27½-4; Ord. No. 76-145, § 1(4), 2-3-76; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 27-5. Records required.

Every person licensed as a mini-warehouse operator shall cause to be kept at his place of business a record of each rental or lease transaction, listing the date, the number of the unit

rented, the name and address of the lessee, and the lessee's driver's license number. The record shall be written legibly in ink and shall be kept neat and clean. All records provided for in this section shall be retained for three years and shall be available and open for inspection during regular business hours by any police officer of the city or by any authorized representative of the director of administration and regulatory affairs. It shall be unlawful for any person coming within the terms of this section to fail to keep or display the records as provided.
(Code 1968, § 27½-5; Ord. No. 76-145, § 1(5), 2-3-76; Ord. No. 08-52, § 50, 1-16-08, eff. 1-26-08)

Sec. 27-6. License revocation.

(a) Upon written verified complaint filed by any person with the director of administration and regulatory affairs setting out facts alleging that any licensee under this chapter has, since the license was granted, violated the provisions of this chapter, or any state or federal statute involving the criminal offense of theft, or violated the provisions of § 37.09 or 37.10 of the Texas Penal Code, or that the licensee falsified his original application for a license, the director of administration and regulatory affairs shall investigate the allegations.

(b) Based on his investigation, the director of administration and regulatory affairs shall determine whether just cause exists for a hearing on revocation.

(c) If just cause exists for a hearing on revocation of a license herein, the director of administration and regulatory affairs shall notify the licensee in writing by certified mail, return receipt requested, that a revocation hearing will be conducted at a specified time and place with reference to such complaint. A copy of the verified complaint shall be included, notifying the licensee of the allegations against him.

(d) At the hearing conducted by the director of administration and regulatory affairs or his designee, all parties may present evidence and may be represented by licensed attorneys. All parties may question opposing witnesses.

(e) Based on a preponderance of the evidence, the director of administration and regulatory affairs or his designee shall determine, whether the license should be revoked. A written copy of the decision shall be sent to all parties by certified mail, return receipt requested, as soon after the conclusion of the hearing as practicable but in no event more than 30 days.

(f) In the event that the licensee's license is revoked, such licensee may appeal the revocation to city council pursuant to Rule 12 of section 2-2 of this Code and by notifying the city secretary in writing within 14 days after the revocation. A hearing before the city council shall be set as soon as practicable. Failure to appeal within 14 days shall render the decision of the director of administration and regulatory affairs final.

(g) The hearing shall be conducted by city council pursuant to Rule 12 of section 2-2 of this Code. The city council shall, based on a preponderance of the evidence, render its decision. A copy of the decision shall be sent to all parties by certified mail, return receipt requested, as soon after the conclusion of the hearing as practicable but in no event more than 30 days. This shall conclude the licensee's administrative remedies and city council's action shall be final.
(Code 1968, § 27½-7; Ord. No. 76-145, § 1(7), 2-3-76; Ord. No. 08-52, § 51, 1-16-08, eff. 1-26-08; Ord. No. 09-425, § 7, 5-13-09)

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Chapter 28

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ARTICLE I. IN GENERAL

Sec. 28-1. Obstructing ditches.

It shall be unlawful for any person to throw or deposit in any ditch anything which will in any way obstruct the free flow of water through the same. A violation of this section shall be punishable by a fine of not more than $4,000.00.
(Code 1968, § 28-3; Ord. No. 2021-431, § 7, 5-26-2021)

Sec. 28-2. Possession of gasoline siphons.

It shall be unlawful for any person to have in his possession upon any public street, alley, sidewalk or other public place within the city limits any rubber hose or any other device which could be used to siphon gasoline out of an automobile.
(Code 1968, § 28-11)

Sec. 28-3. Possession of missiles.

It shall be unlawful for any person to possess or have in his pocket, hands or about his person any stone, bolt, rock, piece of iron or other missile or hard object with the intent to injure or do harm to any person or to property, or with the intent to commit any unlawful act.
(Code 1968, § 28-14)

Sec. 28-4. Display or sale of goods in doorway, lobby, etc., of unoccupied buildings.

It shall be unlawful for any person to sell, offer for sale or display, in the doorway, lobby, stairway or entrance of any unoccupied store building or office building in the city, any goods, wares or merchandise.
(Code 1968, § 28-16)

Sec. 28-5. Notice of guard or watch dogs on premises.

It shall be unlawful to place a guard or watch dog on any premises other than a private residence and private grounds unless notice thereof is given to the police department. Such notice may be accomplished either by giving written notice thereof to the police department or by posting a sign at each entrance to the premises or building. A notice posted on the premises shall be by a sign furnished or approved by the police department and having letters not less than one inch in height and which sign shall state the following:

"WARNING: WATCH DOG ON PREMISES."
(Code 1968, § 28-18.1; Ord. No. 68-1032, § 1, 6-25-68)

Sec. 28-6. Reserved.

Editor's note—Ord. No. 2023-238, § 2, adopted April 12, 2023, repealed § 28-6 in its entirety. Formerly said section pertained to bands playing in public for contributions and derived from Code 1968, § 28-27; Ord. No. 91-1168, § 3, 8-14-91.

Sec. 28-7. Unattended children in motor vehicles.

(a) A person commits an offense if he, acting with knowledge, intent or criminal negligence, leaves a child in a motor vehicle for longer than five minutes if the child is:

(1) Younger than seven years of age; and

(2) Not attended by an individual who is 14 years of age or older.

(b) The terms "knowledge," "intent" and "criminal negligence," as used in this section, shall have the same meanings as set out in the definitions of these terms in the Texas Penal Code.
(Code 1968, § 28-32; Ord. No. 83-1405, § 1, 9-6-83)

Sec. 28-8. Fences—Prohibited along sidewalks.

Except as otherwise provided, it shall be unlawful for any person to erect or maintain, within the city limits, any railing or fencing along the sidewalks next to the street.
(Code 1968, § 28-33)

Sec. 28-9. Same—Barbed wire prohibited.

It shall be unlawful for any person owning or controlling any property in the city to construct, maintain or permit to remain on such property any fence constructed in whole or in part of barbed wire; provided, however, fences constructed in part of barbed wire shall be permitted if all of the barbed-wire portion thereof is six feet or more from the ground; and provided further, a plot of ground containing one acre or more may be fenced with barbed wire where such barbed wire does not abut to any extent whatsoever on a sidewalk or on an unimproved path or trail which is used by pedestrians for sidewalk purposes.
(Code 1968, § 28-34)

Sec. 28-10. Same—Electric.

(a) The construction and use of electrified fencing shall be allowed in the city only as provided in this section, subject to the following standards:

(1) *Electrification*:

a. No electrified fence shall be installed or operated with a power source other than a storage battery not exceeding 12 volts direct current, charged primarily with a solar panel; provided, however, in case of inclement weather or other conditions that inhibit the ability of the solar panel to fully recharge the battery, a charging device may be utilized for such pur-

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pose, if connected in a manner that ensures that the charging device cannot provide a source of power to the fence. In no case shall an electrified fence be connected to any other electric power source.

b. The electric charge produced by the fence upon contact shall not exceed energizer characteristics set forth in paragraph 22.108 and depicted in Figure 102 of International Electrotechnical Commission (IEC) Standard No. 60335-2-76, as such standard exists upon January 30, 2008.

To the extent that the construction or installation of an electrified fence does not conflict with the requirements of this section, and unless otherwise specified herein, such fence shall be constructed or installed in conformance with the specifications set forth in IEC Standard 60335-2-76, as such standard exists upon January 30, 2008.

(2) *Perimeter fence or wall*: No electrified fence shall be installed or used unless it is completely surrounded by a non-electrical fence or wall that is not less than six feet and not more than eight feet in height. The perimeter fence or wall shall be separated from the electrified fence by not less than one foot at its closest point, and by not more than five feet at its farthest point, except at gate openings, which shall be installed in conformance with the specifications set forth in Annex CC of IEC Standard 60335-2-76, as such standard exists upon January 30, 2008. The area between the perimeter wall or fence and the electrified fence shall be kept completely clear of landscaping, shrubbery, other fences or any material of any kind. The lowest part of the perimeter fence or wall shall be constructed to follow the natural terrain to prevent penetration of such fence or wall at ground level. No part of a perimeter fence or wall shall be allowed to be in contact with an electrified fence by any means at any time. Perimeter fences adjacent to residential lots at the time of installation of the electric fence shall be either a wood privacy fence, a chain link fence with wood or plastic slats inserted into each weave of the fence, or an equivalent solid barrier fence.

(3) *Location*:

a. Limited to commercial outdoor storage areas only.

b. Prohibited within five feet of any public right-of-way or sidewalk, unless the barrier fence is a wood privacy fence, a chain link fence with wood or plastic slats inserted into each weave of the fence, or an equivalent solid barrier fence.

c. Prohibited within 25 feet of any outdoor area utilized for the storage, use, or handling of hazardous materials as defined in the Fire Code.

(4) *Height*: Shall be not less than six feet and not more than ten feet in height.

(5) *Signage; other markings*: Shall be clearly identified with warning signs in English, Spanish and Vietnamese that read: "Warning—Electric Fence" placed along the non-electrical perimeter fence or wall at intervals of not less than fifty feet, however, in no instance may there be less than one sign on each side of the non-electrical perimeter fence or wall. In addition to the required signs, the top or uppermost horizontal frame member of any entry gate providing access to any property upon which an electrified fence is located, shall be marked by the placement or addition of a yellow reflective paint, tape or other permanent weatherproof marking along the full length of the gate frame, which marking shall be at least 3 inches wide and be kept in good condition to ensure its continued visibility.

(6) *Hours of activation*: Shall not be activated between the hours of 8:00 a.m. and 5:00 p.m., except:

a. On days when the business is closed, such as weekends and holidays; or

b. When security personnel is available on-site to deactivate the electrical fence.

(7) *Key box*: Shall be installed in accordance with Houston Fire Department Life Safety Bureau Standards.

(8) *Registration*: Prior to the installation or use of any electrified fence, the property owner or lessee of the property upon which such fencing will be installed or used shall submit a completed registration for such fencing to the fire department using the form promulgated for that purpose by the fire chief. The property owner or lessee shall certify that the energizer of the fence complies with characteristics set forth in paragraph 22.108 and depicted in Figure 102 of IEC Standard No. 60335-2-76, as such standard exists upon January 30, 2008. No fee shall be charged in connection with the registration required by this item.

(b) It shall be unlawful for any person to install, maintain, or operate an electrified fence in violation of this section.

(c) The provisions of this section shall not be applicable to any fence on zoological gardens owned by a political subdivision of the state.
(Code 1968, § 28-35; Ord. No. 85-1746, § 1, 10-1-85; Ord. No. 08-81, § 3, 1-30-08)

Sec. 28-11. Open or uncovered wells, cisterns, excavations, etc.

It shall be unlawful for any person to permit, on premises owned or occupied by him, any well, cistern or other excavation to remain open or uncovered, to the danger of others.
(Code 1968, § 28-36)

Cross reference—Street excavations, § 40-127 et seq.

Sec. 28-12. Fencing or filling of abandoned excavations.

(a) It shall be unlawful for any person to build, construct or maintain, or to have built or constructed, any excavation of any size, and thereafter to abandon the use and maintenance thereof, unless such person shall construct a chain link fence or masonry fence at least six feet in height, which fence shall completely enclose such excavation, or fill such excavation with earth, bank sand or similar material. It is an affirmative defense to prosecution under this section that the excavation is for a basement or foundation for a structure that is actively being constructed or that the excavation is a swimming pool subject to regulation under chapter 43 of this Code.

(b) Any person violating any provision of this section, upon conviction, shall be fined not less than $100.00 nor more than $2,000.00 for each violation, and each day shall constitute a separate offense.
(Code 1968, § 28-37; Ord. No. 73-2472, § 1, 12-14-73; Ord. No. 92-184, § 2, 2-19-92; Ord. No. 92-1449, § 42, 11-4-92)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Swimming pools, Ch. 43; assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for time served in incarceration, § 35-6 et seq.

Sec. 28-13. Employees of restaurants, etc., soliciting food or beverages.

(a) It shall be unlawful for any owner or employee of any establishment in which food or beverages are sold or offered for sale for consumption on the premises to solicit, induce, entice, or encourage any patron or customer thereof to buy food or beverages from that establishment for consumption by the soliciting owner or employee or by any other person whom the soliciting employee or owner knows to be an owner or employee of the establishment.

(b) It shall be unlawful for any owner, manager, operator or person having control of any establishment in which food or beverages are sold or offered for sale for consumption on the premises to permit, allow or suffer any other owner or employee of the establishment to solicit, induce, entice, or encourage any patron or customer thereof to buy food or beverages from that establishment for consumption by the soliciting owner or employee or by any other person whom the soliciting owner or employee knows to be an owner or employee of the establishment.

(c) It shall be a defense to prosecution under this section that:

(1) The customer or patron solicited was known by the soliciting employee or owner to be a relative of either the soliciting employee or owner or the employee or owner for whom the food or beverages were solicited; or

(2) The customer or patron solicited was a friend of the soliciting employee or owner for whom the food or beverage was solicited and that friendship existed prior to the customer or patron's most recent visit to the establishment.

(d) In the interpretation and enforcement of this section the term "employee" shall be construed to include managers, operators, agents, and servants.

(e) The provisions of this section shall not apply to establishments operating under a license or permit granted under authority of the Texas Alcoholic Beverage Code.

(f) Any person violating any provision of this section, upon conviction, shall be punished as provided by section 1-6 of this Code. Each unlawful act shall constitute a separate violation.
(Code 1968, § 28-38.2; Ord. No. 76-611, § 1, 4-13-76; Ord. No. 77-865, § 1, 5-4-77; Ord. No. 79-579, § 1, 4-10-79; Ord. No. 92-1449, § 43, 11-4-92)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

Sec. 28-14. Renting premises to person who engages in prostitution or related criminal activity.

(a) It shall be unlawful for any person, whether agent, resident, or owner, to knowingly rent, lease, sublet, hire, or agree to rent, lease, sublet, or hire, any house, building or room to any person who offers to engage, agrees to engage or engages in sexual conduct for a fee; solicits another in a public place to engage with any person in sexual conduct for hire; receives money pursuant to an agreement to participate in the proceeds of prostitution; solicits another to engage in sexual conduct with another person for compensation; or owns, invests in, finances, controls, supervises, or manages a prostitution enterprise that uses two or more prostitutes.

(b) The offense set forth in this section is a misdemeanor and shall, upon conviction, be punishable by a fine of not less than $500.00 nor more than $2,000.00. However, any conduct in violation of this section that also constitutes an offense under state law shall instead be punishable as provided in the applicable state law.

(c) It shall be an affirmative defense to prosecution under this section that the renter, lessee, or sublessee, rents, leases, subleases, or hires, the house, building or room for a continuous period exceeding 27 days in exchange for payment for the rental, lease or sublease, for the entire continuous period on a specified day.

(d) The definitions of *prostitution, sexual conduct,* and related offenses in Chapter 43 of the Texas Penal Code shall apply to this section.
(Code 1968, § 28-39; Ord. No. 06-76, § 1, 1-25-06)

Sec. 28-15. Bringing persons together for purpose of lewdness, assignation or prostitution.

It shall be unlawful for any person to bring together, offer to bring together, or assist in bringing together, by automobile, telephone or in any other manner, directly or indirectly, two or more persons for the purpose of lewdness, assignation or prostitution.
(Code 1968, § 28-40)

Sec. 28-16. Transporting persons for unlawful or immoral purposes.

It shall be unlawful for any person to transport, offer to transport, or aid, or assist in transport; directly or indirectly, any person in, upon, over or through the streets of the city, by means of an automobile or other vehicle, for purposes of lewdness, assignation or prostitution, or for any other unlawful or immoral purpose.
(Code 1968, § 28-41)

Sec. 28-17. Theater exhibits viewable from streets.

(a) The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Erotic* is a descriptive term meaning without serious literary, artistic, political or scientific value for minors.

(2) *Minor* is a human being under the age of 17 years.

(3) *Person* is any individual, firm, partnership, association, corporation, company or organization of any kind connected or employed by any "theater," as that term is defined herein.

(4) *Theater* is any premises in which motion pictures or slides are projected upon a screen or a theatrical performance is given for viewing by patrons, which screen or performance is visible from any public street, sidewalk, alley or other public property.

(5) *Sexually explicit nudity* is the portrayal of the following sexual conduct:

a. Human genitals in a state of sexual stimulation or arousal; or

b. Acts of human masturbation, sexual intercourse, or sodomy; or

c. Fondling or other touching of less than completely and opaquely covered human genitals, the pubic region, the buttocks, or the breast of a human female.

(6) *Sidewalk* is any walkway, pavement or pathway used by the public which is located on publicly owned property or publicly held easements.

(b) It is hereby declared to be a public nuisance for any person to show or participate in the showing at a theater in the city of any motion picture, slide, or other exhibit upon or before a screen which is visible from any public street, sidewalk, alley, or other public property, where such motion picture, slide, or other exhibit:

(1) Shows sexually implicit nudity in a manner patently offensive to minors; and

(2) Taken as a whole, appeals to the prurient interests of minors, as determined by the average person applying contemporary community standards; and

(3) Considered as a whole, is erotic.

(c) It is not a public nuisance under this section if the screen upon which the motion picture, slide, or other exhibit is shown is not visible from a public street, sidewalk, alley, or other public property.

(d) The city attorney is hereby authorized to institute a civil proceeding in a court of competent jurisdiction to enjoin any activity declared to be a public nuisance by this section.

(Code 1968, § 28-41.1; Ord. No. 71-249, §§ 1—4, 2-3-71; Ord. No. 78-1991, § 1, 10-10-78; Ord. No. 79-271, § 1, 2-21-79)

Sec. 28-18. Public nudity.

It shall be unlawful for any person to appear on any public street, sidewalk, alley, or other public thoroughfare, in or such close proximity thereto, as to be observed by the public traveling on such street, sidewalk, or other public thoroughfare, in a state of complete nudity, or in such a manner of dress or of undress in a manner which exposes to the public view such person's genitalia and/or buttocks, and in the case of a female, the female breasts.

(Code 1968, § 28-42.2; Ord. No. 70-411, § 1, 3-18-70; Ord. No. 72-904, § 1, 6-2-72)

Sec. 28-19. Public urination or defecation.

It shall be unlawful for any person to urinate or defecate in any public place or in immediate proximity thereto where such place has not been designated as a restroom.
(Code 1968, § 28-42.5; Ord. No. 72-904, § 2, 6-2-72)

Sec. 28-20. Entering restrooms of opposite sex.

It shall be unlawful for any person to knowingly and intentionally enter any public restroom designated for the exclusive use of the sex opposite to such person's sex without the permission of the owner, tenant, manager, lessee or other person in charge of the premises, in a manner calculated to cause a disturbance.
(Code 1968, § 28-42.6; Ord. No. 72-904, § 2, 6-2-72)

Sec. 28-21. Glue and related substances—Sale, possession, etc.

(A) *Definitions.* The following definitions shall apply to the construction and application of this section:

(1) *Possession* shall mean actual care, custody, control or management.

(2) *Abusable glue, aerosol paint or aerosol shoeshine product* shall mean any glue, aerosol paint or aerosol shoeshine containing any one or more of the following solvents:

(a) Acetone.
(b) Amyl acetate.
(c) Benzol or benzene.
(d) Butyl acetate.
(e) Butyl alcohol.
(f) Carbon tetrachloride.
(g) Chloroform.
(h) Cyclohexanone.
(i) Ethanol or ethyl alcohol.
(j) Ethyl acetate.
(k) Hexane.
(l) Isopropanol or isopropyl alcohol.
(m) Isopropyl acetate.
(n) Methyl "cellosolve" acetate.
(o) Methyl ethyl ketone.
(p) Methyl isobutyl ketone.
(q) Toluol or toluene.
(r) Trichlorethylene.
(s) Tricresyl phosphate.
(t) Xylol or xylene.

(B) *Sale, deliver, etc., to minors.* It shall be unlawful for a person to knowingly sell, offer for sale, deliver, give or make available to any individual under the age of eighteen (18) years any abusable glue, aerosol paint or aerosol shoeshine product or any substance containing one or more of the following volatile chemicals:

(1) Toluol.
(2) Hexane.
(3) Trichlorethylene.
(4) Acetone.
(5) Toluene.
(6) Ethyl acetate.
(7) Methyl ethyl ketone.
(8) Trichloroethane.
(9) Carbon tetrachloride.
(10) Methanol.
(11) Methyl isobutyl ketone.
(12) Methyl cellosolve acetate.
(13) Cyclohexanone.
(14) Amyl nitrite.
(15) Butyl nitrite.
(16) Nitrous oxide.
(17) Chloroform.
(18) Diethyl ether.

(C) *Labeling—On products for sale.* It shall be unlawful for a person to knowingly sell or offer for sale any abusable glue, aerosol paint or aerosol shoeshine product or any substance or product containing one or more of the volatile chemicals listed in subsection (B) herein in less than five-gallon quantities, unless the label for such product clearly lists said volatile chemical or chemicals as a component therein.

(D) *Same—On manufactured products.* It shall be unlawful for a person to knowingly manufacture, mix, or otherwise prepare for sale or distri-

bution for sale any abusable glue, aerosol paint or aerosol shoeshine product or a substance or product which contains one or more of the volatile chemicals listed in subsection (B) herein, unless the label for such substance or product clearly lists said volatile chemical or chemicals as a component therein. The provisions of this subsection (D) shall not apply to a substance or product manufactured, mixed, or otherwise prepared for sale or distribution for sale in interstate commerce.

(E) *Sign at point of sale.* It shall be unlawful for a person to knowingly sell, offer for sale, or display for sale, any abusable glue, aerosol paint or aerosol shoeshine product unless such person prominently displays a sign at the point of sale of such product stating that it is unlawful to sell or otherwise transfer possession to anyone under the age of eighteen (18) any abusable glue, aerosol paint or aerosol shoeshine product. Such sign shall be a minimum of ten (10) inches wide by fifteen (15) inches in length and must contain the statement required by this subsection in letters at least one-half inch high and an eighth of an inch wide and shall state the following:

"Unlawful to sell or make available to anyone under the age of eighteen (18) any abusable glue, aerosol paint or aerosol shoeshine product containing:

(1) Acetone;

(2) Amyl acetate;

(3) Benzol or benzene;

(4) Butyl acetate;

(5) Butyl alcohol;

(6) Carbon tetrachloride;

(7) Chloroform;

(8) Cyclohexanone;

(9) Ethanol or ethyl alcohol;

(10) Ethyl acetate;

(11) Hexane;

(12) Isopropanol or isopropyl alcohol;

(13) Isopropyl acetate;

(14) Methyl "cellosolve" acetate;

(15) Methyl ethyl ketone;

(16) Methyl isobutyl ketone;

(17) Toluol or toluene;

(18) Trichlorethylene;

(19) Tricresyl phosphate; or

(20) Xylol or xylene."

(F) *Proof of age.* It shall be a prima facie presumption that a person selling, offering for sale, delivering, giving, otherwise transferring possession or making available any abusable glue, aerosol paint or aerosol shoeshine product to a purchaser or transferee knew such was under the age of eighteen (18) years, unless such person asked for and was furnished one of the following proofs of age prior to such sale, offer for sale, delivery, gift or other offer of availability:

(1) A current driver's license from Texas or another state within the United States;

(2) An identification card issued by the Texas Department of Public Safety; or

(3) A current passport.

(G) *Possession with intent to inhale.* It shall be unlawful for a person to have in his possession any abusable glue, aerosol paint or aerosol shoeshine products or any substance containing one or more of the volatile chemicals listed in subsection (B) herein with the intent to inhale such products or chemicals.

(H) *Prescription of physicians, dentists, etc.* It shall be a defense to any prosecution under this section that any abusable glue, aerosol paint or aerosol shoeshine product or any substance containing one or more of the volatile substances listed in subsection (B) was sold, offered for sale, delivered, given, or made available by a duly licensed physician, dentist or veterinarian, or by a scientific investigator in the course of professional practice or research in this state.

(I) *Prescription by medical institutions.* It shall be a defense to any prosecution under this section that any abusable glue, aerosol paint or aerosol shoeshine product substance or any substance containing one or more of the volatile substances listed in subsection (B) or was sold, offered for

sale, delivered, given or made available by a pharmacy, hospital, or other institution licensed or registered to dispense such substance in the course of professional practice or research in this state.
(Code 1968, § 28-45; Ord. No. 78-1330, § 1, 6-28-78; Ord. No. 83-50, § 1, 1-12-83)

Sec. 28-22. Same—Penalty.

Any person violating any provision of section 28-21 of this Code shall be guilty of a misdemeanor and, upon conviction thereof, shall be fined not less than $100.00 nor more than $2,000.00 for each offense. Each sale, offer for sale, delivery, gift, offer of availability, manufacture or preparation of a substance or product for sale or distribution, or possession prohibited by section 28-21 shall constitute a separate offense under the terms herein. Each day of display for sale prohibited by section 28-21(f) shall constitute a separate offense under the terms herein. To the extent that any offense under section 28-21 also constitutes an offense under state law, then it shall be punishable as provided in state law.
(Code 1968, § 28-46; Ord. No. 78-1330, § 2, 6-28-78; Ord. No. 92-1449, § 44, 11-4-92)

Charter reference—Penalty for ordinance violations, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

Sec. 28-23. Identification cards for utility, cable, etc., employees.

It shall be unlawful for any utility or cable television company holding a franchise from the city, its officers, agents or employees, to direct or permit an employee of such a company or of an independent contractor hired by such company to enter upon a public utility easement traversing private property unless:

(1) Such employee is furnished with an identification card, badge, insignia or uniform identifying such person as an employee of such company or independent contractor; or

(2) Such employee is under the immediate supervision and control of another employee furnished with such an identification card, badge, insignia or uniform.

(Code 1968, § 28-55.2; Ord. No. 81-1460, § 1, 8-4-81)

Sec. 28-24. Trespass generally.

It shall be unlawful for any person to be found on the premises of another in the nighttime, under suspicious circumstances.
(Code 1968, § 28-57; Ord. No. 68-1962, § 2, 12-11-68)

Sec. 28-25. Reserved.

Editor's note—Ord. No. 03-703, § 8, adopted July 30, 2003, repealed § 28-25 in its entirety. Formerly, said section pertained to parking of vehicles by valet parking operators on roadway within central business district as enacted by Ord. No. 02-558, § 2, adopted June 19, 2002.

Sec. 28-26. Alteration or removal of public notices.

It shall be unlawful for any person to alter or to remove any order, notice, or placard placed by a city employee pursuant to this Code.
(Ord. No. 2011-108, § 6, 2-9-2011)

Secs. 28-27, 28-28. Reserved.

Editor's note—Former §§ 28-27 and 28-28, which pertained to smoking in public places and smoking in the Municipal Courts Building, were repealed by § 4 of Ord. No. 86-1311, enacted July 30, 1986. The repealed provisions derived from §§ 28-62 and 28-62.1 of the 1968 Code and the following ordinances: Ord. No. 75-668, §§ 1—4, enacted May 7, 1975; Ord. No. 75-931, §§ 1, 2, enacted May 28, 1975; Ord. No. 75-1216, §§ 1, 2, enacted July 9, 1975; Ord. No. 75-1390, § 1, enacted Aug. 5, 1975; Ord. No. 81-882, § 1, enacted May 5, 1981; Ord. No. 81-2397, § 1, enacted Dec. 2, 1981; and Ord. No. 86-322, §§ 1—4, enacted March 5, 1986.

Sec. 28-29. Pay toilets in public places.

It shall be unlawful for any person to make a charge for the use of a toilet maintained in a place open to the public or to a substantial part of the public.
(Code 1968, § 28-67; Ord. No. 77-228, § 1, 2-2-77)

Sec. 28-30. Conduct in buses, etc.

(a) It shall be unlawful for any person inside any bus or other motor vehicle engaged in mass transportation service on or over any street of the city:

(1) To consume any food or beverage; provided that this paragraph shall not apply to the driver of any such motor vehicle not in motion;

(2) To throw or deposit any garbage, refuse, containers, wrappings, or other trash upon any surface inside any such motor vehicle, except a designated trash receptacle; or

(3) To use or operate any radio receiver, magnetic tape player, or other electronic device in such a manner as to be plainly audible to any other person inside the motor vehicle, provided that this paragraph shall not apply to any electronic device attached to the motor vehicle and used by the driver for mass transportation purposes.

(b) As used in this section "bus or other motor vehicle engaged in mass transportation service" means any motor vehicle engaged in the carrying of passengers for hire from or to designated transit stops within the city or adjacent urbanized areas, but shall not include chartered vehicles, sightseeing vehicles, chauffeured limousines, school vehicles, school buses, taxicabs, or any vehicle providing intercity service regulated by the state or the United States of America.
(Code 1968, § 28-68; Ord. No. 77-1167, § 1, 8-24-77)

Sec. 28-31. Dogs in buildings under management of convention and entertainment facilities department or public library system.

(a) It shall be unlawful for any person having control over a dog to bring such animal into a building which is under the management of the convention and entertainment facilities department or the Houston Public Library System, or to permit a dog under his control to be within such a building.

(b) It shall be a defense to prosecution under subsection (a) that:

(1) The dog was owned by the city.

(2) The dog was a guide dog accompanying a blind person.

(3) The dog was brought into a facility in accordance with the terms of a rental agreement under which such facility had been rented from the city.

(4) The dog was only in areas solely used for parking of motor vehicles.

(Code 1968, § 28-69; Ord. No. 77-2412, § 1, 11-22-77; Ord. No. 96-50, § 2, 1-17-96)

Cross references—Convention and entertainment facilities department, § 12-2; libraries, Ch. 24.

Sec. 28-32. Use of candles on certain city properties.

(a) No person shall light a candle on the grounds of the Sam Houston Coliseum, the Coliseum Annex, the Jesse H. Jones Hall for the Performing Arts, the Music Hall, the Albert Thomas Convention and Exhibit Center and underground parking garages, the City Hall, the Margaret Westerman City Hall Annex, the Police administration building, the Underground Telephone Exchange and Emergency Operating Center, the Fire Alarm Building, the Municipal Courts Building, the Julia Ideson Building, and the Central Library Building of the Houston Public Library System unless the base of the candle is surrounded by a container sufficiently large enough to catch and to retain the wax droppings.

(b) A violation of subsection (a), upon conviction, shall be punished as provided by section 1-6 of this Code.
(Code 1968, § 28-70; Ord. No. 79-867, §§ 1, 2, 5-23-79; Ord. No. 79-911, §§ 1, 2, 6-5-79; Ord. No. 92-1449, § 45, 11-4-92)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for time served in incarceration, § 35-6 et seq.

Sec. 28-33. Carrying clubs, poles, etc., in demonstrations, picket lines, etc.

(a) No person shall carry or possess while participating in any demonstration, rally, picket line or public assembly, any stick, board, pole, stave, rod, plank, pipe, stud, cane, staff, slat, or similar object unless that object conforms to the following specifications:

(1) All objects which are generally rectangular in shape shall not exceed one-fourth inch in thickness and two inches in width.

(2) All objects which are not generally rectangular in shape shall not exceed three-quarters inch in their thickest dimension.

(3) All objects must be constructed of wood, wood products, or other cellulose materials.

(b) The fact that an object described in subsection (a) forms a component part of a sign or placard does not exempt it from coverage under this section.

(c) It is an affirmative defense to prosecution under this section that the object is used as an ambulatory aid and that the actor has a valid medical need for such aid.
(Code 1968, § 28-71; Ord. No. 78-2357, § 1, 11-29-78)

Cross reference—Parades, § 45-231 et seq.

Sec. 28-34. Location of automobile storage lots, automobile wrecking and salvage yards and lots used for open storage by metal recyclers.

(a) *Prohibition.* It shall be unlawful for any person to operate or cause to be operated within 300 feet of an existing church, school, or residence:

(1) An automobile storage lot, whether licensed as an automotive storage lot pursuant to chapter 8 of this Code or as a vehicle storage facility pursuant to the Vehicle Storage Facility Act (Chapter 2303 of the Texas Occupations Code);

(2) A used automotive parts recycler as defined in chapter 8 of this Code;

(3) A lot used for open storage by an automotive rebuilder as defined in chapter 8 of this Code;

(4) A lot used for open storage by a metal recycler, as defined in chapter 7 of this Code; or

(5) A lot used for open storage by a used parts and used accessories dealer as defined in chapter 8 of this Code.

(b) *Measurement.* The 300 foot measurement required under this section shall be in a straight line from the property line or (at the applicant's request) from the boundary of operations of the automobile storage lot, used automotive parts recycler, lot used for open storage by an automotive rebuilder, or lot used by a metal recycler for open storage as defined in article III of chapter 7 of this code to the property line of the church, school or residence. The 300 foot measurement is made on the basis of land uses in existence at the time the original permit or license application for the facility is filed and at the time of any expansion of the size of the property used for the facility. A facility that is lawfully in operation shall not become unlawful because a church, school, or residence is subsequently established within 300 feet of the facility and, provided that the facility remains continuously in operation without cessation for a period of 90 or more consecutive days, the permit or license for the facility may, subject to compliance with other applicable laws, nevertheless be renewed or transferred."

(c) *Definitions and standards.*

Boundary of operations. Shall be the fence line limiting the portion of a larger lot or tract to be used as the business operation area for the business requiring licensure under this Code. The boundary of operations and the fence shall be shown on a legal (or official) survey filed with the application for license and must be fenced according to the applicable standards of this Code. The survey shall show each route that will be used for vehicular ingress or egress to the business operation area. If the ingress or egress will not be exclusively taken from one or more public streets that abut the business operation area,

then each route of vehicular ingress or egress must be included within the surveyed and fenced boundary of operations. This definition is applicable to automobile storage lots, used automotive parts recyclers, lots used for open storage by automotive rebuilders, and lots used for open storage by metal recyclers only and has no effect on any other person or business required to be licensed by the city.

Church. A structure where a society of persons who profess a religious belief regularly assemble for religious worship or religious instruction and which is exempt from ad valorem taxes.

Open storage. Materials stored upon a lot not within an enclosed structure.

Residence. Any structure which, at the time the application for a license is filed, is being used as a dwelling place for residential purposes, whether single-family or multifamily. A structure located on a lot or tract of land used as an automobile storage lot, used automotive parts recycler, lot used for open storage by an automotive rebuilder, or lot used for open storage by a metal recycler shall not be considered a residence within the terms of this definition.

School. A public or private elementary, junior high, or high school.

(d) *Existing structure.*

(1) The terms of this section shall apply to all existing licensed automobile storage lots, used automotive parts recycler lots, lots used for open storage by automotive rebuilders, and lots used for open storage by metal recyclers, from and after December 22, 1982, and to all lots used for open storage by a used parts and used accessories dealer, from and after December 22, 1993. Any owner or operator of an automobile storage lot, used automotive parts recycler lot, lot used for open storage by an automotive rebuilder, or lot used for open storage by a metal recycler, which as of December 22, 1982, and any owner or operator of a lot used for open storage by a used parts and used accessories dealer, which as of December 22, 1993, is located within 300 feet of a church, school or residence shall, within 30 days of the date specified above, as applicable, make application with the appropriate licensing department for a special permit that indicates that the holder of the permit is located within 300 feet of a church, school or residence. It shall be unlawful to own or operate an automobile storage lot, used automotive parts recycler lot, lot used for open storage by an automotive rebuilder, a lot used for open storage by a metal recycler or a lot used for open storage by a used parts and used accessories dealer within 300 feet of a church, school or residence without first procuring the special permit required by this subsection.

(2) Subject to compliance with other applicable laws, including chapters 7 and 8 of this Code as applicable, a special permit may be transferred to another owner. Application shall be made to the department responsible for issuing the permit and the permit shall be executed by both the transferor and the transferee. In the event that the use of the premises is suspended at any time for a period of 90 or more consecutive days, then the special permit shall expire, and this provision shall not be construed to allow the transfer of a special permit that has so expired. A special permit may be revoked for failure to comply with any applicable law, regulation, or statute relating to the licensing or other regulation of the business.

(3) If improvements upon any lot covered by this subsection are destroyed or damaged as a result of fire, explosion, weather or other Act of God in excess of 50 percent of the value of the then-current market value of the improvement based on the current city tax rolls, such improvement shall not be rebuilt or otherwise reconstructed. Nothing in this subsec-

tion shall be construed to prohibit the minor repair or routine maintenance of any existing improvements.

(4) No holder of a special permit shall be entitled to expand or otherwise enlarge the business by adding additional improvements or land or to make a new investment thereto; provided, however, that this restriction on the addition of improvements shall not apply to improvements made in order to comply with any state or local ordinance, statute or regulations.

(5) If a licensed automobile storage lot, used automotive parts recycler lot, lot used for open storage by an automotive rebuilder, or a lot used for open storage by a metal recycler or a used auto parts and used accessories dealer holds a valid special permit under this subsection, then it shall not be placed in violation of this section, or become ineligible for a renewal of a permit or license, or be required to obtain a special permit, due to the subsequent construction or placement of a church, school or residence within 300 feet of the location of such licensed business.

(e) *Newly annexed areas.* Persons owning or operating automobile storage lots, used automotive parts recycler lots, lots used for open storage by automotive rebuilders, lots used for open storage by metal recyclers, and used parts and used accessories dealers situated in areas that are newly annexed into the corporate limits of the city after the dates specified in subsection (c) above, as applicable, may apply for and be granted special permits in the same manner provided for existing owners or operators under subsection (c), above. The application for the special permit must be filed within 30 days following the effective date of the annexation of the area where the lot or yard is situated. Special permits issued under this subsection and holders thereof shall be subject to all of the same restrictions imposed under subsection (c) with regard to other special permits and holders thereof, provided that the effective date of the annexation of the area where the lot or yard is situated shall apply in lieu of the applicable date specified in subsection (c) above, in any determination made with regard to the special permit or business operated thereunder. The provisions of this subsection shall not be available to the operator of any premises unless the premises was open for a business subject to regulation under this section on the date of first publication in a newspaper of general circulation of the notice of annexation hearings under section 43.052 of the Local Government Code or unless the operator had, on or before that date, leased or purchased the property and had actually commenced improving it for the express purpose of establishing the regulated business.

(f) *Improvement of specially permitted facilities.*

(1) Notwithstanding the provisions of item (4) of subsection (c), above, the planning commission may authorize the improvement of a specially permitted facility that is regulated under this section in accordance with this subsection. An application for improvement of a specially permitted facility shall be made to the planning official in a form prescribed by the director of planning and development and shall include:

a. The nonrefundable fee stated for this provision in the city fee schedule; and

b. A statement of the specific facts and reasons that the applicant believes warrant the authorization, which shall address each of the criteria of item (4) of this subsection.

The director shall cause each application to be reviewed and shall cause a staff report regarding the application to be provided to the commission prior to the meeting at which the application will be considered. The commission shall schedule the consideration of each application for a meeting of the commission and shall instruct the applicant and the director to cause notice to be given as provided in items (2) and (3) of this subsection.

(2) Notice of the commission meeting at which the application will be considered shall be given in both English and Spanish at the expense of the applicant by:

a. The publication of notice, in a form to be prescribed by the director, in a newspaper of general circulation in the city, at least 15 days before the date of the commission meeting;

b. The mailing of notice, at least 15 days before the date of the commission meeting, to the owners, as shown on the most recently approved tax roll, of each tract or parcel of property that is situated in whole or in part within a distance of 300 feet from the boundaries of the property that is the subject of the request for a transfer application;

c. The mailing of notice, at least 15 days before the date of the commission meeting, to all civic associations registered with the planning and development department whose boundaries include all or a portion of the area situated within 300 feet of the property that is the subject of the transfer application; and

d. The posting of notice upon a sign on the property for which the improvement is requested, giving notice of the application and the date of the commission meeting. The director shall prescribe the dimensions of the sign and shall establish criteria for the location of the sign. If the property for which the application is made fronts on or has access to more than one public street, the director may require placement of more than one sign on the subject property upon a finding that more than one sign is necessary to provide adequate notice. The sign or signs shall be posted 72 hours after the director gives notice for their posting to the applicant, provided that the sign shall be posted at least 15 days prior to the date of the hearing.

(3) The applicant shall provide the following information to the director at the time specified by the director:

a. A certified list of the property owners to whom notice must be given pursuant to item (2) of this subsection; and

b. For each property owner and registered civic association to whom notice must be given pursuant to item (2) of this subsection:

1. One stamped envelope addressed to each property owner and registered civic association; and

2. One copy of the notice of the public hearing in the form prescribed by the director.

The applicant shall also provide proof to the director that the required newspaper notices have been timely published and that the required sign(s) have been posted and maintained for the required time period.

(4) The applicant and any member of the public may address the commission and present evidence or comments regarding the application at the meeting at which it is considered. The burden shall be upon the applicant to show by a preponderance of the credible evidence that the applicant is entitled to the granting of the application. Following the receipt of evidence and comments, the commission shall consider the matter and shall grant the application if it determines that each of the following criteria exists:

a. The improvement will not substantially increase the vehicular traffic on any street that is not a major thoroughfare. In making this determination, the commission shall consider whether the facility takes

its primary access from a major thoroughfare and whether it has rail or waterborne access for the receipt and shipment of materials.

b. The improvement will not have a negative effect upon the appearance of the community in which it is situated. In making this determination, the commission shall consider the applicant's plans for perimeter fencing and landscaping as well as the appearance of any structures, equipment, or other features of the facility that may be visible from the exterior.

c. The facility, by virtue of its activities, does not pose a substantial risk of adverse health effects, unlawful noise, fire, explosion, or other nuisance conditions, and the proposed improvements will not increase those risks. In making this determination, the commission shall consider the prior operating history of the facility.

d. There exists upon the property a capital investment of at least $500,000.00 current book value in facilities and equipment.

e. The facilities and equipment upon the property were placed for the operation of the facility for which the authorization is sought and may not readily be adapted to other uses that are not subject to regulation under this section or be removed to another location.

f. The granting of the application will not be injurious to the public health, safety, and welfare.

The commission may condition its granting of the application, if granted, upon the applicant's installation and maintenance of buffer zones, trees, shrubs, special fences, or other improvements to reduce noise or improve the external appearance of the property if it determines that the action is desirable to protect the public health, safety, and welfare. Any such requirement shall be consistent with the purpose of causing the use of the applicant's property to be as harmonious as practicable with the use of other nearby properties.

(5) The applicant or any person to whom notice is required to be given under part b. or c. of item (2) of this subsection may appeal, provided that the person attended and participated in the commission meeting, either in person or through an authorized representative. Appeals shall be to the city council and shall be governed by rule 12 of the city council rules of procedure (section 2-2 of this Code). Notice of an appeal must be filed in the city secretary's office by the tenth day following the rendition of the commission's decision on the application. The commission shall cause each meeting or portion thereof at which an application is to be considered to be videorecorded. Notwithstanding any provision of rule 12 to the contrary, any required transcript for an appeal to the city council may be prepared from the video recording. An appeal shall not suspend the action of the commission pending the decision of the city council.

(g) The licensing department may extend the filing period for a special permit upon demonstration to the director by clear and convincing evidence that the facility was in fact in operation on the effective date and that the applicant's failure to timely file was based upon an error or misunderstanding and not the result of conscious indifference to the requirements of this section.

(h) The provisions of this section are not applicable to the premises of a body shop facility with storage privileges operating under a valid license issued under division 4 of article II of chapter 8 of this Code.

(Code 1968, § 28-72; Ord. No. 80-414, § 1, 2-27-80; Ord. No. 80-643, § 1, 3-26-80; Ord. No. 82-1541, § 1, 9-22-82; Ord. No. 82-1703, § 1, 10-26-82; Ord. No. 82-2038, § 7, 12-22-82; Ord. No. 86-1252, § 29, 7-16-86; Ord. No. 87-1922, § 1, 11-18-87; Ord. No. 93-1646, §§ 1, 2, 12-22-93;

Ord. No. 95-104, § 1, 1-25-95; Ord. No. 96-1377, § 1, 12-18-96; Ord. No. 98-334, § 3, 4-29-98; Ord. No. 99-1354, § 4, 12-21-99; Ord. No. 99-1378, §§ 2—5, 12-21-99; Ord. No. 02-676, §§ 1, 2, 7-17-02; Ord. No. 08-52, § 52, 1-16-08, eff. 1-26-08; Ord. No. 09-410, § 23, 5-13-09; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2013-1209, § 12, 12-18-2013; Ord. No. 2016-964, §§ 11—13, 12-7-2016)

Sec. 28-35. Reserved.

Editor's note—Section 2 of Ord. No. 86-323, enacted March 5, 1986, amended the provisions of former § 28-35 to read as set forth in Art. III, § 28-121 et seq., of this chapter. Section 28-35, which pertained to sexually oriented commercial enterprises, derived from § 28-73 of the 1968 Code, as amended by Ord. No. 80-3483, § 1, enacted Dec. 17, 1980; Ord. No. 83-1812, § 3, enacted Dec. 1, 1983; Ord. No. 84-92, §§ 1, 2, enacted Jan. 17, 1984; Ord. No. 84-1256, § 1, enacted Aug. 14, 1984; and Ord. No. 85-571, § 1, enacted April 23, 1985.

Sec. 28-36. Reserved.

Sec. 28-37. Attention-getting devices.

(a) As used in this section, attention-getting devices shall mean devices erected, placed or maintained outdoors so as to attract attention to any commercial business, or any goods, products or services available on the premises of a commercial business, including but not limited to the following devices: banners; cut out figures; discs; festooning, including tinsel, strings of ribbons, and pinwheels; inflatable objects, including balloons; non-governmental flags; pennants; propellers; steam- or smoke-producing devices; streamers; whirligigs; wind devices; blinking, rotating, moving, chasing, flashing, glaring, strobe, scintillating, search, flood or spot lights; or similar devices, any of which are located or employed in connection with the conduct of a commercial business. Attention-getting devices shall not include any structure or device that is permitted under the *Sign Code*.

(b) It shall be unlawful for any person to place, erect, maintain, or display any attention-getting device on any private or public property within the city. No attention-getting device shall be eligible for a permit under the *Sign Code*.

(c) Enforcement of this section shall be the duty of the sign administration division of the Houston Public Works or any law enforcement officer.

(d) Any person who shall violate any provision of this section shall be guilty of a misdemeanor and shall, upon conviction thereof, be punished by a fine of not less than $300.00 and not more than $500.00 for each violation. Each day in which any violation shall occur shall constitute a separate offense.
(Ord. No. 08-992, § 3, 11-12-08, eff. 1-1-2010; Ord. No. 2018-11, § 50, 1-10-2018; Ord. No. 2021-1037, § 20(Exh. I.23), 12-1-2021, eff. 4-1-2022; Ord. No. 2022-234, § 5, 3-30-2022)

Sec. 28-38. Painting or posting advertising matter on curbs, sidewalks, bridges or public buildings; enforcement.

(a) No person in the city shall paint, print, post, or otherwise display any poster, picture, bill, advertising matter, informational matter or political advertisement of any kind in, at or upon any curb, sidewalk or other public improvement in any public street, alley or grounds, any bridge or part of same, any public building, structure or erection of any kind belonging to the city, or any other public place, unless express consent therefor shall have been first granted by the city council and entered on its minutes.

(b) Stake-type signs constructed of cloth, wood, paper or similar lightweight materials that are picked up in the right-of-way may be disposed of immediately. Signage impounded pursuant to this section may be redeemed in the manner specified in section 4608(c)(2) of the Sign Code. The custodian of the storage area shall maintain records of where such signs were located when they were so impounded and the date on which they were so impounded and shall hold the same in the storage area for a period of not more than 30 days. Any signs so held may be redeemed by the owner thereof upon the payment of hauling and storage fees to the city through the custodian thereof. Amounts of the fees are stated in the

city fee schedule. Such fees shall be in addition to and not in lieu of any fine imposed upon such owner for violation of this chapter.

(c) Employees of the police department, department of planning and development, department of solid waste management, Houston Public Works, and the department of neighborhoods, and certain other city employees as designated by their department director, are hereby authorized to impound any signs found on a public street, public sidewalk or public alley and transport or cause the same to be transported and stored at a location to be designated by the director of the department of neighborhoods or his designee.

(d) Any person violating any provision of this section, upon conviction, shall be fined not less than $300.00 nor more than $500.00 for each violation, and each day that the violation continues shall constitute a separate offense.
(Code 1968, § 3-2; Ord. No. 70-1747, § 1, 10-6-70; Ord. No. 2014-641, § 2, 6-18-2014; Ord. No. 2018-11, § 20, 1-10-2018)

Sec. 28-39. Posting advertising matter on utility poles, trees, traffic signs, etc.

(a) It shall be unlawful for any person to place or cause to be placed, whether by posting, nailing, pasting, gluing or the use of any cohesive substance or in any manner whatever, any advertising sign, informational sign, poster, political advertisement, gummed label, bumper sticker, or any other advertising matter whatever on any utility pole, tree, fence, fire hydrant, street light standard, traffic light standard, stop sign or other traffic directional sign standard, or on any other structure of any kind whatsoever located in the public streets, sidewalks, alleyways, easements, public property, or any other public place in this city.

(b) Stake-type signs constructed of cloth, wood, paper or similar lightweight materials that are picked up in the right-of-way may be disposed of immediately. Signage impounded pursuant to this section may be redeemed in the manner specified in section 4608(c)(2) of the Sign Code. The custodian of the storage area shall maintain records of where such signs were located when they were so impounded and the date on which they were so impounded and shall hold the same in the storage area for a period of not more than 30 days. Any signs so held may be redeemed by the owner thereof upon the payment of hauling and storage fees to the city through the custodian thereof. Amounts of the fees are stated in the city fee schedule. Such fee shall be in addition to and not in lieu of any fine imposed upon such owner for violation of this chapter.

(c) Employees of the police department, department of solid waste management, Houston Public Works, and department of neighborhoods, and certain other city employees as designated by their department director, are hereby authorized to impound any signs found on a public street, public sidewalk or public alley and transport or cause the same to be transported and stored at a location to be designated by the director of the department of neighborhoods or his designee.

(d) Any person violating any provision of this section, upon conviction, shall be fined not less than $300.00 nor more than $500.00 for each violation, and each day that the violation continues shall constitute a separate offense.
(Code 1968, § 3-3; Ord. No. 70-1747, § 1, 10-6-70; Ord. No. 92-1449, § 46, 11-4-92; Ord. No. 2014-641, § 2, 6-18-2014; Ord. No. 2018-11, § 21, 1-10-2018)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for time served in incarceration, § 35-6 et seq.; erecting structures, bill posting, etc., in parks, § 32-32; placing banners, signs, etc., over or across street, § 40-15; advertising material prohibited in shelters for users of public transportation, § 40-200(f)(8).

Sec. 28-40. Reserved.

Editor's note—Ord. No. 2007-150, § 1, adopted January 31, 2007, repealed § 28-40 in its entirety. Formerly, said section pertained to carrying advertisements on person or animal and derived from Code 1968, § 3-4; Ord. No. 70-1747, § 1, 10-6-70; Ord. No. 70-3137, § 1, 12-8-70; Ord. No. 71-489, § 1, 3-10-71.

Sec. 28-41. Posting or distributing obscene matter viewable by minors.

No billposter, bill distributor or other person shall post to any building, structure or object

whatsoever, nor distribute in or at any place in the city, any poster or handbill that would be construed by law as that immoral or obscene matter proscribed for by Section 43.24 of the Texas Penal Code so that the same shall, can, or may be seen from any public street, park, school grounds or other public place where it would be reasonable to assume, judged by the standard of common experience, that minors would be present.
(Code 1968, § 3-9; Ord. No. 70-1747, § 1, 10-6-70)

Sec. 28-42. Handbill distribution.

No bill distributor shall hand to or foist upon any person a handbill without the consent of such person.
(Code 1968, § 3-10; Ord. No. 70-1747, § 1, 10-6-70)

Cross reference—Advertising materials prohibited in shelters for use of public transportation, § 40-200(f)(8).

Sec. 28-43. Warning required on certain political advertising materials.

(a) As used in this section:

(1) *Election* means any election conducted or to be conducted by or on behalf of the state, any one or more of the political subdivisions of the state or any political party, in which election, one or more of the residents of the city is qualified to vote;

(2) Political advertising material means any advertising material relating to any election which might, with reasonable foreseeability, be placed, posted or erected within the city by any person in violation of sections 28-38 and 28-39 of this Code or of the *Sign Code;* and

(3) The warning means the following words: "Warning: Placement, posting or erection of this material within the City of Houston is regulated by sections 28-38 and 28-39 of this Code and the *Sign Code;* violation thereof is punishable by a fine of up to five hundred dollars ($500.00).

(b) It shall be unlawful for any person to print, distribute or use or to cause to be printed, distributed or used any political advertising material unless the warning is affixed thereto. The warning shall be affixed by permanent means upon each face of the political advertising material where any advertising message is printed. The warning need only be so conspicuous that a person of normal visual acuity would reasonably be expected to take notice of the warning upon placing, posting or erecting the political advertising material.
(Code 1968, § 3-3-1; Ord. No. 81-1084, § 1, 5-27-81; Ord. No. 92-1449, § 47, 11-4-92; Ord. No. 2021-1037, § 20(Exh. I.24), 12-1-2021, eff. 4-1-2022)

Sec. 28-44. Solicitation to purchase or acquire a controlled substance, controlled substance analogue, dangerous drug or volatile chemical.

(a) As used in this section, the following words and terms shall have the meanings ascribed to them in this subsection, unless the context of their usage clearly indicates another meaning:

Controlled substance shall have the meaning ascribed to it by Section 1.02(4) of Article 4476-15, Texas Revised Civil Statutes or any amendments thereto.

Controlled substance analogue shall have the meaning ascribed to it by Section 1.02(5) of Article 4476-15, Texas Revised Civil Statutes or any amendment thereto.

Dangerous drug shall have the meaning ascribed to it by Section 2(a) of Article 4476-14, Texas Revised Civil Statutes or any amendment thereto.

Prohibited substance shall mean a "controlled substance," "controlled substance analogue," "dangerous drug," "volatile chemical," or any combination thereof.

Volatile chemical shall mean any of the chemicals, or an isomer of any of the chemicals, listed in Section 2 of Article 4476-13a, Texas Revised Civil Statutes or any amendment thereto.

(b) A person commits an offense if, with intent to acquire a prohibited substance, he requests, commands or attempts to induce another to sell, donate or otherwise transfer or deliver a prohibited substance to the person.

(c) A person may not be convicted under this section on the uncorroborated testimony of the person allegedly solicited and unless the solicitation is made under circumstances strongly corroborative of both the solicitation itself and the actor's intent that the other person act on the solicitation.

(d) It is no defense to prosecution under this section that:

(1) No monetary or other consideration was tendered to the person solicited; or

(2) That the person solicited was unable or unwilling to transfer or deliver a prohibited substance.

(e) It is an affirmative defense to any prosecution under this section that:

(1) The solicitation is made in furtherance of a transaction which would not constitute a violation of any applicable law; or

(2) The solicitation is made by a peace officer or federal law enforcement officer in the lawful discharge of his duties or by a law enforcement agent acting in the lawful discharge of an official duty.

(f) Violation of this section shall constitute a misdemeanor punishable, upon conviction, by a fine of not less than one hundred dollars ($100.00) nor more than two thousand dollars ($2,000.00). However, any conduct proscribed hereunder which also constitutes an offense under state law shall not be prosecuted under this section, but shall be prosecuted pursuant to and punishable as provided by the applicable state law. An offense under this section is not a lesser included offense under Article 4476-15, Article 4476-14 or Article 4476-13a, Texas Revised Civil Statutes Annotated.
(Ord. No. 89-918, § 1, 6-21-89)

Sec. 28-45. Repeated following and harassment of a person.

(a) Definitions. As used in this section, the following words and terms shall have the meanings ascribed to them in this subsection, unless the context of their usage clearly indicates another meaning:

Bodily injury shall have the meaning ascribed to it by section 1.07 of the Texas Penal Code, as amended.

Follow shall mean to pursue, trail, shadow or chase a person.

Harass or *harassed* shall mean to engage, or have engaged in, a pattern of conduct or series of acts and threats over a period of time directed at a specific person that would cause a reasonable person to be placed in imminent fear of death, bodily injury or serious bodily injury.

Repeatedly shall mean on more than one occasion within a one-year period.

Serious bodily injury shall have the meaning ascribed to it by section 1.07 of the Texas Penal Code, as amended.

(b) It shall be unlawful for any person to knowingly and repeatedly harass any other person or follow any other person under circumstances in which that person has previously harassed the person being followed.

(c) It is an affirmative defense to any prosecution under this section that the conduct proscribed under this section is engaged in by a peace officer or federal law enforcement officer in the lawful discharge of his or her duties while in the course of investigating a criminal offense or possible criminal activity.

(d) Violation of this section shall constitute a misdemeanor punishable, upon conviction, by a fine of not less than $100.00 nor more than $500.00. However, any conduct proscribed hereunder that also constitutes an offense under state law shall not be prosecuted under this section, but shall be prosecuted pursuant to and punishable as provided by the applicable state law.
(Ord. No. 92-1628, § 1, 12-16-92)

Sec. 28-46. Aggressive panhandling.

(a) The following words, terms, and phrases when used in this section shall have the meanings ascribed to them in this subsection, unless the context of their usage clearly indicates another meaning:

Automated teller machine or *ATM* means a machine, other than a telephone, that is capable of being operated by a patron to communicate to a financial institution:

(1) A request to withdraw money from an account directly or under a line of credit previously authorized;

(2) An instruction to deposit money in an account with the financial institution;

(3) An instruction to transfer money between one or more accounts maintained with the financial institution;

(4) An instruction to apply money against an indebtedness to the financial institution; or

(5) A request for information concerning the balance of the account with the financial institution.

Fuel dispensing device means a pump or other machine utilized for dispensing fuel to motor vehicles for a fee.

Pay telephone means any coin-operated or credit or debit card reader operated telephone located on any public or private property that is accessible for public use.

Parking meter means any coin-operated meter utilized to charge for parking a motor vehicle on public property.

Parking fee collection box means a device utilized to collect coins or currency as a charge for parking a motor vehicle on private property.

Public place means a street, sidewalk, or other place that is open to the public.

Request means any imperative instruction, whether verbal or non-verbal, by a solicitee to a solicitor to desist the solicitation including but not limited to words or gestures such as "stop," "back off," "stay back," "get away," "leave me alone," or "withdraw."

Solicitation means the act of panhandling by seeking through a communication with another person, whether by gesture or verbally, funds or goods for food, personal favors (such as trips, transportation, clothing, or other), drink, lodging, vehicle fare, or any other purpose to directly benefit an individual or his family members.

Solicitee means any individual to whom a solicitor, as defined herein, directs a solicitation.

Solicitor means any person who engages in the act of solicitation as defined above.

Transit facility means a facility that:

(1) Is owned and operated by the Metropolitan Transit Authority of Harris County, Texas (METRO);

(2) Constitutes a permanent and integral part of the transit system of METRO;

(3) Is designed to serve as a point from which METRO patrons take ingress and egress from the METRO transit system; and

(4) Includes one or more of the following structures: a sign or signs indicating a transit stop or pick-up point, a shelter for transit patrons or benches or chairs for transit patrons.

(b) Immediately upon any request from a solicitee to a solicitor, a solicitor who is in a public place at the moment the request is made shall discontinue the solicitation until there is a space of at least eight feet between the solicitor and the solicitee or, in the alternative, discontinue all efforts to engage in the solicitation if within eight feet proximity to a requesting solicitee.

(c) For the purposes of subsection (b) of this section, distance shall be measured from any extension of the solicitor's body, including without limitation any sign or other object being used or carried by the solicitor, to any part of the solicitee's body.

(d) Regardless of whether any request is made by the solicitee to the solicitor, no solicitor shall engage in solicitation within a distance of eight feet from any ATM, pay telephone, parking meter, parking fee collection box, transit facility, fuel dispensing device, or outdoor dining establishment, including, but not limited to, a sidewalk cafe.

(e) For the purposes of subsection (d) of this section, distance shall be measured from any extension of the solicitor's body, including without limitation any sign or other object being used or carried by the solicitor, to any part of the physical structure of the ATM, pay telephone, parking meter, parking fee collection box, transit facility, fuel dispensing device, or outdoor dining establishment, including but not limited to, a sidewalk cafe.

(f) Any person who violates any provision of this section shall be guilty of a misdemeanor and, upon conviction, shall be punished as provided in section 1-6 of this Code.
(Ord. No. 92-390, § 2, 4-8-92; Ord. No. 92-1449, § 48, 11-4-92; Ord. No. 02-504, § 3, 6-12-02; Ord. No. 2011-655, §§ 2—4, 8-3-2011)

Sec. 28-47. Discharge of firearms by minors; responsibility to avoid same.

(a) The purpose of this section is education and training to reduce the discharges of firearms by minors and the tragedies that often result from those discharges.

(b) As used in this section the following words shall have the meanings ascribed herein:

(1) *Adult* means any person who is 18 years of age or older.

(2) *Child* means any person who is younger than 18 years of age.

(3) *Firearm* means any device designed, made or adapted to expel a projectile through a barrel by using the energy generated by an explosive or burning substance or any device readily convertible to that use.

(4) *Range* means any public or private facility at which firearms training or practice, or both, is conducted under controlled circumstances intended to encourage the safe handling of firearms and at which procedures or facilities are in place that are intended to prevent the projectiles discharged from the firearms from causing any damage to persons or property.

(c) It is unlawful for a child intentionally, knowingly, recklessly or with criminal negligence to discharge a firearm within the city.

(d) It is unlawful for any adult intentionally, knowingly, recklessly or with criminal negligence to facilitate, suffer or permit the discharge of a firearm by a child by allowing the child to obtain unsupervised access to the firearm.

(e) It is unlawful for any adult intentionally, knowingly, recklessly or with criminal negligence to facilitate, suffer or permit the physical possession of a firearm by a child by allowing the child to obtain unsupervised access to the firearm.

(f) It is a defense to prosecution under subsections (c), (d) or (e) that:

(1) the firearm was possessed or discharged upon a range and under the supervision of an adult, or

(2) the child's access to firearms was obtained as a result of an unlawful entry, or

(3) the discharge or possession of the firearm was justified as provided in chapter 9 of the Texas Penal Code, or

It is additionally a defense to prosecution under subsection (d) or (e) that the actor had taken reasonable precautions under the attendant circumstances to ensure that minors would not have the ability to obtain access to the firearm without supervision. Such precautions could include, but need not be limited to:

(1) storage of the firearm in a place where, at the time the access was obtained, an unsupervised child would not reasonably have been expected to have been able to gain access, or

(2) storage of the firearm in a locked safe, locked rack, locked hard case, locked soft case, locked drawer, locked cabinet or other locked container, or

(3) installation of a lock on the firearm to prevent its normal function and discharge.

(g) Violation of this section is a misdemeanor punishable by a fine of not less than $200.00 nor more than $500.00 per violation. To the extent that any conduct in violation of this section also constitutes a violation of state law, then the conduct shall be punishable under the applicable state law.

(h) In keeping with the policy of education and firearm accident prevention that is one of the underlying purposes of this section, the municipal courts are urged to consider deferred dispositions

under article 45.54 of the Texas Code of Criminal Procedure whenever the circumstances warrant deferred dispositions. Conditions of deferral may include the defendants' obtaining firearms safety training and participating in projects aimed at preventing the unsafe discharge of firearms by juveniles or other similar and reasonable requirements.
(Ord. No. 92-471, § 2, 4-22-92)

Sec. 28-48. Manifesting the purpose of engaging in prostitution or solicitation of prostitution.

(a) A person commits an offense if he loiters in a public place with the intent to commit prostitution. This intent is evidenced by acting in a manner and under circumstances that openly demonstrate the purpose of inducing, enticing, soliciting, or procuring another to commit an act of prostitution. The circumstances that may be considered in determining whether a person loitered with the intent to commit prostitution include, among others, whether the person engaged in the conduct:

(1) Is a known prostitute;

(2) Repeatedly beckons to, stops or attempts to stop or engages other persons in conversation, or repeatedly stops or attempts to stop other persons by hailing, waving of arms, or use of any other bodily gesture; and

(3) Is in a location frequented by persons who engage in prostitution or solicitation of prostitution.

No arrest shall be made for a violation of this section unless the arresting officer first affords the actor an opportunity to explain his conduct, and it is a defense to prosecution hereunder that the explanation given was true and disclosed a lawful purpose.

(b) For the purpose of this section, a "known prostitute" is a person who, within one year previous to the date of arrest for violation of this section, has within the knowledge of the arresting officer been convicted of prostitution, promotion of prostitution, aggravated promotion of prostitution, or compelling prostitution.

(c) The definitions of prostitution and related offenses in Chapter 43 of the Texas Penal Code shall apply to this section.

(d) The offense sent forth in this section is a misdemeanor and shall, upon conviction, be punishable by a fine of not less than $500.00 nor more than $2,000.00. However, any conduct in violation of this section that also constitutes an offense under state law shall instead be punishable as provided in the applicable state law.
(Ord. No. 03-491, § 2, 5-28-03)

Sec. 28-49. Major event safety zones.

(a) *Definitions.* As used in this section, the following terms shall have the meanings ascribed in this section:

Major event means a sporting event or other function that is expected to draw 75,000 or more persons to simultaneously congregate in an area of one square mile or less at or near a convention and/or sporting venue within the city.

Safety zone means a zone established under subsection (b), below.

Tent means a temporary structure covered with fabric or another type of membrane. The term is intended to also include canopies and air-supported, air-inflated, and tensioned membrane structures, as well as conventional tents.

(b) *Establishment of safety zone.* In consultation with the fire chief, police chief, and traffic engineer, as well as the director of planning and development and the director of any city department or other public agency that is acting as the host for a major event, the mayor is authorized to establish one or more safety zones in the vicinity of venues for the major event. Based upon the recommendations of the traffic engineer, the fire chief, police chief and directors, which shall take into consideration the nature of the event, the numbers of persons and vehicles expected, the street and highway configurations, the condition and traffic flows expected on the

streets, highways, and sidewalks, the location of police and fire stations, hospitals, and other critical facilities, security plans for the event, and other relevant factors, the mayor shall establish the safety zone and the period that it will be in effect. Any such safety zone shall be established for an area with specified boundaries and shall be limited to a stated period of time at which large numbers of persons and vehicles are expected to be within the safety zone for the event or for activities relating to setting up and taking down apparatus for the event. The order establishing the safety zone shall be signed by the mayor and filed with the city secretary at least ten days before the time period for the safety zone commences. The city secretary shall cause the notice to be published in a newspaper of general circulation at least one time before the period commences and shall post the notice on the same bulletin board used for open meetings notices.

(c) *Unlawful acts.* It shall be unlawful for any person to erect or cause to be erected or to use or cause to be used any tent within a safety zone during the time that the safety zone is in effect.

(d) *Defense to prosecution.* It is a defense to prosecution under subsection (c) that the tent is part of the support apparatus set up by or for the major event and was set up by or on authorization of the persons conducting the major event and is not being used for merchandise sales or other activities of a commercial nature.
(Ord. No. 03-1314, § 2, 12-23-03)

Secs. 28-50—28-80. Reserved.

ARTICLE II. ADULT ARCADES AND ADULT MINI-THEATRES*

DIVISION 1. GENERALLY

Sec. 28-81. Definitions.

As used in this article, the following words shall have the meanings herein ascribed, unless the context of their use clearly indicates another meaning:

Adult arcade shall mean any premises that is subject to regulation under Chapter 243 of the Local Government Code, as amended, to which members of the public or members of any club, group or association are admitted and permitted to use one or more arcade devices on the premises.

Arcade device shall mean any coin- or slug-operated or electronically or mechanically controlled machine or device that dispenses or effectuates the dispensing of entertainment, that is intended for the viewing of five or fewer persons in exchange for any payment of any consideration. Arcade device shall also mean an anthropomorphic device or object that is utilized for entertainment with one or more persons.

Adult mini-theatre shall mean any premises that is subject to regulation under Chapter 243 of the Local Government Code as amended, to which members of the public or members of any club, group or association are admitted and permitted to use one or more "mini-theatre devices."

Director shall mean the director of the department of administration and regulatory affairs and any employee(s) of the department assigned by him to perform the duties prescribed in this article.

Entertainment shall mean:

(1) Any live exhibition, display or performance; or

*__Cross reference—__Sexually oriented businesses, § 28-121 et seq.

(2) Any still picture(s) or movie picture(s), whether mechanically, electrically or electronically displayed; or

(3) Any combination of the foregoing, in which the specified anatomical areas or specified sexual activities are depicted; or

(4) Use of an arcade device for any specified sexual activities.

Individual shall mean only a natural person.

Mini-theatre device shall mean any coin or slug-operated or electrically or electronically or mechanically controlled machine or device that dispenses or effectuates the dispensing of "entertainment," that is intended for the viewing of more than five persons but less than 100 persons in exchange for any payment of any consideration. The term "mini-theatre device" shall not include any conventional motion picture screen or projection area designed to be viewed in a room containing tiers or rows of seats with a viewer seating capacity of 100 or more persons.

Operator shall mean the individual who is principally in charge of the management of the adult arcade or adult mini-theatre.

Owner or *owners* shall mean the proprietor if a sole proprietorship, all general partners if a partnership, or the corporation and all officers, directors, and persons holding 50 percent or more of the outstanding shares if a corporation.

Permit shall mean a current, valid permit issued by the director under this article to an operator for an adult arcade or adult mini-theatre.

Premises shall mean a building; provided, that if a building has been physically divided into separate units that each have their own individual means of ingress or egress to the exterior of the building and which are offered by lease or otherwise for separate use and control, then it shall refer to each such separate unit.

Specified anatomical areas shall mean:

(1) Less than completely and opaquely covered:

a. Human genitals, pubic region or pubic hair; or

b. Buttock; or

c. Female breast or breasts or any portion thereof that is situated below a point immediately above the top of the areola; or

d. Any combination of the foregoing; or

(2) Human male genitals in a discernibly erect state, even if completely and opaquely covered.

Specified sexual activities shall mean:

(1) Human genitals in a state of sexual stimulation or arousal;

(2) Acts of human masturbation, sexual intercourse or sodomy;

(3) Fondling or other erotic touching of human genitals, pubic regions, buttock or female breast; or

(4) Any of the foregoing with an arcade device.

(Ord. No. 97-75, § 2, 1-15-97; Ord. No. 2010-721, §§ 2, 3, 9-15-2010, eff. 10-4-2010; Ord. No. 2010-767, § 2, 10-6-2010; Ord. No. 2018-790, §§ 2—6, 10-3-2018)

Sec. 28-82. Remedial effect.

The provisions of this article are remedial and they shall, notwithstanding any other provision of this Code, be construed to apply to all adult arcades or adult mini-theatres, both now existing and hereafter established.
(Ord. No. 97-75, § 2, 1-15-97)

Sec. 28-83. Supplemental effect.

The provisions of this article are supplemental and shall be cumulative with all other laws and ordinances applicable in any manner to an adult arcade or adult mini-theatre or to any owner or operator thereof.
(Ord. No. 97-75, § 2, 1-15-97)

Sec. 28-84. Penalty for article violations.

(a) The violation of any provision of this article, including the doing of anything which is herein prohibited or declared to be unlawful or the failure to do anything or perform any duty which is required herein, shall be punishable as provided by Section 243.010(b) of the Local Government Code. Each day that any violation shall continue shall constitute and be punishable as provided by Section 243.010(b) of the Local Government Code. Each day that any violation shall continue shall constitute and be punishable as a separate offense.

(b) The revocation or suspension of any permit shall not prohibit the imposition of a criminal penalty, and the imposition of a criminal penalty shall not prevent the revocation or suspension of a permit.

(Ord. No. 97-75, § 2, 1-15-97)

Cross reference—General penalty for Code violations, § 1-6.

Sec. 28-85. Notices.

(a) Any notice required or permitted to be given by the director or any other city officer or agency under this article to any applicant, operator or owner of an adult arcade or adult mini-theatre may be given either by personal delivery or by certified United States mail, postage prepaid, return receipt requested, to the most current address as specified in the application for the permit, or any amendment thereof which has been received by the director. Notices mailed as above shall be deemed given upon their deposit in the United States mail and shall be presumed to have been received on the third regular postal delivery day thereafter.

(b) It shall be unlawful for any person to remove any notice or order posted upon any adult arcade or adult mini-theatre pursuant to this article, except that a notice of a hearing under division 4 may be removed after the hearing has been conducted. It is a defense to prosecution under this subsection that the actor had the prior express consent of the director to remove the notice or order.

(Ord. No. 97-75, § 2, 1-15-97; Ord. No. 2010-721, § 3, 9-15-2010, eff. 10-4-2010; Ord. No. 2010-767, § 2, 10-6-2010)

Secs. 28-86—28-90. Reserved.

DIVISION 2. PERMIT

Sec. 28-91. Required; posting.

(a) It shall be unlawful for any person to own, operate, manage or conduct any business in an adult arcade or adult mini-theatre unless there is a permit for the adult arcade or adult mini-theatre.

(b) It shall be unlawful for any person to own, operate, manage or conduct any business in an adult arcade or adult mini-theatre unless there is a permit for the sexually oriented business enterprise pursuant to section 28-122 of this Code and Tex. Loc. Gov't Code section 243.002.

(c) It shall be unlawful for any person to own, operate, manage or conduct any business in an adult arcade or adult mini-theatre unless the permit is posted at the place designated therefor on the diagram submitted with or adopted in the permit application pursuant to section 28-92(c) of this Code and in such a manner that it is conspicuous to patrons of the adult arcade or adult mini-theatre.

(d) In any prosecution under subsections (a) and (b) of this section, it shall be presumed that there was no permit at the time of the alleged offense, unless a permit was then posted as provided in subsection (c), above.

(Ord. No. 97-75, § 2, 1-15-97; Ord. No. 2018-790, §§ 7, 8, 10-3-2018)

Sec. 28-92. Application.

(a) To obtain a permit, whether initial or renewal, the intended operator of the adult arcade or adult mini-theatre shall file an application with the director on a form prescribed by the director for that purpose. On the application, the applicant shall set forth the following information:

(1) The full name of the intended operator, his residence street address, and mailing address (if different), and his driver's license or Texas Department of Public Safety personal identification number.

(2) The name of the adult arcade or adult mini-theatre.

(3) The street address and real property description of the tract or parcel of land upon which the adult arcade or adult mini-theatre will be located.

(4) The names, residence street addresses, and mailing addresses (if different) of the owners of the adult arcade or adult mini-theatre and the type of business entity (proprietorship, partnership or corporation).

(5) The name, mailing address and telephone number of a person who will act as the applicant's liaison with the director for purposes of the permit inspection required under section 28-93 of this Code. Such person must be available to come to the adult arcade or adult mini-theatre upon one hour's notice given between the hours of 8:00 a.m. and 4:00 p.m., on Monday through Friday (holidays excepted), upon request by the director to the telephone number designated during the time that the license application is pending hereunder and must be authorized to act for the applicant in matters relating to the inspection of the premises during the time that the license application is pending hereunder.

(b) The application shall contain the following statement:

"I represent that I have personal knowledge of all statements made in this application and all information furnished herewith and that all of the same is true and correct."

(c) The application shall be accompanied by a diagram of the adult arcade or adult mini-theatre showing a plan thereof specifying the location of one or more manager's stations and the location of all overhead lighting fixtures and designating any portion of the adult arcade or adult mini-theatre in which patrons will not be permitted. A manager's station may not exceed 32 square feet of floor area. Such diagram shall also designate the place at which the permit will be posted pursuant to section 28-91(b) of this Code, if granted. A professionally prepared diagram in the nature of an engineer's or architect's blueprint shall not be required; however each diagram should be oriented to the north or to some designated street or object and should be drawn to a designated scale or with marked dimensions sufficient to show the various internal dimensions of all areas of the interior of the adult arcade or adult mini-theatre to an accuracy of plus or minus six inches. The director shall waive the foregoing diagram for renewal applications if the applicant adopts a diagram that was previously submitted and certifies that the adult arcade or adult mini-theatre has not been altered since it was prepared.

(d) The application shall be sworn to be true and correct by the applicant.

(e) The application shall not be complete unless it is accompanied by the nonrefundable adult arcade or adult mini-theatre permit fee stated for this provision in the city fee schedule.

(f) Applications and other notices required or permitted to be given to the director under this article must be submitted by hand delivery by the intended operator to the office of the director, during regular working hours 8:00 a.m. to 4:00 p.m., Monday through Friday (city holidays excepted).

(g) A separate permit shall be required for each adult arcade or adult mini-theatre, and a permit shall only be valid for the adult arcade or adult mini-theatre described in the application.

(h) Where a premises is so configured and operated as to constitute both an adult arcade and an adult mini-theatre, then the operator may apply for and obtain a combined permit authorizing operation as both an adult arcade and an adult mini-theatre.

(Ord. No. 97-75, § 2, 1-15-97; Ord. No. 2010-721, §§ 3, 4, 9-15-2010, eff. 10-4-2010; Ord. No. 2010-767, § 2, 10-6-2010; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 28-93. Issuance or denial by director.

(a) The director shall complete the actions required in this section resulting in the giving of his notice of the issuance or denial of the permit

by the twentieth day next following the date of his receipt of a completed application. The foregoing time period may be extended to the thirtieth day by the director upon notice to the applicant that the director has been unable, after diligent effort, to schedule the conduct of any required inspections of the adult arcade or adult mini-theatre with the liaison person designated therefor in the application by the nineteenth day next following the date of his receipt of the application. The time period may also be extended to a date mutually agreeable to the director and the applicant or his inspection liaison person if the applicant or liaison person has requested that any inspection or reinspection be delayed for the applicant's convenience. Any extensions and the basis therefor shall be documented in the director's file regarding the application.

(b) The director shall grant the permit unless:

(1) After a permit issuance inspection of the adult arcade or adult mini-theatre (or reinspection, if duly requested) it is found that the adult arcade or adult mini-theatre does not comply with the view or lighting requirements of division 3 of this article;

(2) The director is unable to schedule and conduct a permit issuance inspection of the adult arcade or adult mini-theatre by contacting the liaison person at the telephone number designated in the application; or

(3) The operator has had a permit revoked for the same adult arcade or adult mini-theatre within the 180-day period next preceding the date that the application was filed.

(c) No fee shall be imposed for the initial inspection of the adult arcade or adult mini-theatre, unless subject to the additional special inspection fee provided below. A reinspection to verify the correction of deficiencies noted on a previous inspection shall only be made upon written request of the applicant or his designated liaison person and prior payment of the nonrefundable reinspection fee stated for this provision in the city fee schedule. Inspections at an applicant's specially requested time or outside the regular working hours of 8:00 a.m. to 4:00 p.m., on Monday through Friday, whether on an initial or reinspection basis, will be subject to prior payment of the nonrefundable and additional special inspection fee stated for this provision in the city fee schedule, per inspection.

(d) Permits that are awarded shall be furnished to the operator. If a permit is denied, then a notice thereof setting forth the specific reason(s) therefor shall be given to the applicant and the owners. Permits and notices of denial may be given as provided in section 28-85 of this Code.

(e) Failure of the director to give timely notice of his action on an application within the limitation of time specified in subsection (a) or any extension authorized pursuant thereto shall entitle the applicant to the issuance of a temporary permit upon written demand therefor filed by the applicant with the director. Such a temporary permit shall only be valid until the third regular postal delivery day after the director gives notice of his action on the application pursuant to subsection (d), above.

(f) Computation of time periods under this article shall be as provided in section 1-2 of this Code.

(g) The fees prescribed in this article shall only be payable by cash, certified check, cashier's check or money order. If payment thereon is not honored, the director may suspend the permit, if issued, until payment is made by written notice to the operator.
(Ord. No. 97-75, § 2, 1-15-97; Ord. No. 2010-721, §§ 3—5, 9-15-2010, eff. 10-4-2010; Ord. No. 2010-767, § 2, 10-6-2010; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 28-94. Term.

Each permit shall be valid for a period of one year and shall expire on the anniversary of its date of issuance, unless sooner revoked, or surrendered. Each permit shall be subject to renewal as of its expiration date by the filing of a renewal application with the director. Renewal applications must be filed at least 20 days prior to the expiration date of the permit that is to be

renewed and shall be accompanied by the fee stated for this provision in the city fee schedule. (Ord. No. 97-75, § 2, 1-15-97; Ord. No. 2010-721, § 3, 9-15-2010, eff. 10-4-2010; Ord. No. 2010-767, § 2, 10-6-2010; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 28-95. Transfer upon change.

(a) A permit shall expire on the tenth day next following any of the following events:

(1) A change of the mailing address of the operator or owners of the adult arcade or adult mini-theatre; or

(2) Any change of the operator or owners of the adult arcade or adult mini-theatre;

unless the operator has obtained a permit transfer/amendment for such changes.

(b) The director shall prescribe a form on which permit transfer/amendment applications must be made and it shall include a statement under oath that:

"The original application remains correct as originally submitted and previously amended in all respects except those which are amended hereby."

The transfer/amendment application shall be sworn to be true and correct by the operator and shall not be complete unless accompanied by the nonrefundable transfer/amendment fee stated for this provision in the city fee schedule. The director shall cause the amendment or transfer to be issued upon the receipt of a completed application. Applications shall be filed in the manner specified in section 28-92(f) of this Code.

(c) Any change in the information specified in subsection 28-92(a) of this Code or any change in the identity or telephone number of the person designated as the inspection liaison or in the plans for the adult arcade or adult mini-theatre as related to a permit application which is pending issuance under section 28-93 of this Code shall be reported in the same manner to the director without delay and shall be accompanied by the same fee as specified in subsection (b) of this section. The filing of an amendment to an application which is pending issuance shall have the effect of causing all time periods set forth in section 28-93(a) of this Code to recommence as of the date the director receives the amendment.
(Ord. No. 97-75, § 2, 1-15-97; Ord. No. 2010-721, § 3, 9-15-2010, eff. 10-4-2010; Ord. No. 2010-767, § 2, 10-6-2010; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 28-96. Alteration of adult arcade or adult mini-theatre.

A permit shall only extend to the adult arcade or adult mini-theatre in the configuration described in the application and the plans submitted with or adopted therein. If an adult arcade or adult mini-theatre remains open during alterations or expansions, then it shall be the duty of the operator to ensure that no patron is permitted to use arcade devices or mini-theatre devices situated within any portion of the adult arcade or adult mini-theatre which has been altered or added by any alteration or expansion of the adult arcade or adult mini-theatre until a new permit has been obtained on the basis of the adult arcade or adult mini-theatre as reconfigured by the work.
(Ord. No. 97-75, § 2, 1-15-97)

Sec. 28-97. Persons on duty during operation.

It shall be the duty of the owners and operator of each adult arcade or adult mini-theatre to ensure that at least one person who is charged with the responsibility for the operation of the adult arcade or adult mini-theatre is on duty at the adult arcade or adult mini-theatre and situated in each manager's station designated pursuant to section 28-92(c) of this Code at all times that any patron is present in the adult arcade or adult mini-theatre.
(Ord. No. 97-75, § 2, 1-15-97)

Sec. 28-98. Conduct in adult arcades or adult mini-theatres.

It shall be unlawful for the owners or operator and it shall also be unlawful for any agent or

employee present in an adult arcade or adult mini-theatre to knowingly allow or permit any act of sexual intercourse, sodomy, oral copulation, indecent exposure, lewd conduct or masturbation with or without an individual or an arcade device to occur in the adult arcade or adult mini-theatre or to knowingly allow or permit the adult arcade or adult mini-theatre to be used as a place in which solicitation for sexual intercourse, sodomy or oral copulation occur.
(Ord. No. 97-75, § 2, 1-15-97; Ord. No. 2018-790, § 9, 10-3-2018)

Sec. 28-99. Appeals.

(a) Any applicant, operator or owner who is aggrieved by any decision of the director relating to his duties and authority under this division in the issuance of permits shall be entitled to a hearing to be conducted in the same manner specified in division 4 of this article for permit revocations, except that the grounds considered in the hearing shall be as applicable under this article; provided, that a written notice of the request for the hearing setting forth the grounds must be received by the director within 15 days from the date that notice of the action complained of is given to the hearing applicant. The applicant, owner or operator shall be entitled to three days' notice of the date, time and place of the hearing.

(b) Upon receipt of an appeal, the director shall refer the matter to the hearing officer for scheduling. If it will not be possible to hear and resolve the appeal within ten days after the date it was received by the director, then the director shall issue a temporary permit until the matter can be heard.
(Ord. No. 97-75, § 2, 1-15-97; Ord. No. 2010-721, § 3, 9-15-2010, eff. 10-4-2010; Ord. No. 2010-767, § 2, 10-6-2010)

Sec. 28-100. Authority to file suit.

The city attorney is hereby authorized to file suit to enjoin the violation of this article.
(Ord. No. 2018-790, § 10, 10-3-2018)

DIVISION 3. ADULT ARCADE OR ADULT MINI-THEATRE DESIGN

Sec. 28-101. View from manager's station.

(a) If an adult arcade or adult mini-theatre has one (1) manager's station designated pursuant to section 28-92(c) of this Code, then the interior of the adult arcade or adult mini-theatre shall be configured in such a manner that there is an unobstructed view of every area of the adult arcade or adult mini-theatre to which any patron is permitted access for any purpose from that manager's station. If an adult arcade or adult mini-theatre has two or more manager's stations designated pursuant to section 28-92(c) of this Code, then the interior of the adult arcade or adult mini-theatre shall be configured in such a manner that there is an unobstructed view of each area of the adult arcade or adult mini-theatre to which any patron is permitted access for any purpose from at least one of the manager's stations. The view required in this subsection must be by direct line of sight from the manager's station.

(b) It shall be the duty of the owners and operator, and it shall also be the duty of any agents and employees present in an adult arcade or adult mini-theatre, to ensure that the view area specified in subsection (a) remains unobstructed by any merchandise, display racks or other materials at all times that any patron is present in the adult arcade or adult mini-theatre and to ensure that no patron is permitted access to any area of the adult arcade or adult mini-theatre which has been designated as an area in which patrons will not be permitted in the plan filed pursuant to section 28-92(c) of this Code.
(Ord. No. 97-75, § 2, 1-15-97)

Sec. 28-102. Wall penetrations.

(a) In addition to any other requirements of this article, no adult arcade or adult mini-theatre shall be configured in such a manner as to have any opening in any partition, screen, wall or other barrier that separates viewing areas for arcade devices or adult mini-theatre devices from other viewing areas for arcade devices or adult mini-theatre devices. This provi-

sion shall not apply to conduits for plumbing, heating, air conditioning, ventilation or electrical service, provided that such conduits shall be so screened or otherwise configured as to prevent their use as openings that would permit any portion of a human body to penetrate the wall or barrier separating viewing areas.

(b) It shall be the duty of the owners and operator and it shall also be the duty of any agents and employees present in an adult arcade or adult mini-theatre to ensure that the premises is monitored to assure that no openings are allowed to exist in violation of subsection (a), above, and to ensure that no patron is allowed access to any portion of the premises where any opening exists in violation of subsection (a), above, until the opening has been repaired.
(Ord. No. 97-75, § 2, 1-15-97)

Sec. 28-103. Lighting.

(a) Each adult arcade or adult mini-theatre shall be equipped with lighting fixtures of sufficient intensity to illuminate every place to which patrons are permitted access at an illumination of not less than one (1.0) footcandle as measured at four feet above the floor level.

(b) It shall be the duty of the owners and operator and it shall also be the duty of any agents and employees present in an adult arcade to ensure that the illumination described in subsection (a), above, is maintained at all times that any patron is present in the adult arcade or adult mini-theatre.
(Ord. No. 97-75, § 2, 1-15-97)

Secs. 28-104—28-110. Reserved.

DIVISION 4. PERMIT REVOCATION

Sec. 28-111. Grounds.

(a) A permit for an adult arcade or adult mini-theatre may be revoked as provided in this division after a hearing conducted by a hearing officer appointed by the mayor and confirmed by the city council under the provisions of section 28-125(d) of this Code, if the hearing officer finds from a preponderance of the evidence adduced at such hearing that:

(1) The configuration or lighting equipment of the adult arcade or adult mini-theatre has been changed so that it is no longer in compliance with the view area, lighting or wall penetration requirements of division 3 of this article; or

(2) That a cumulative total of four or more violations of any of sections 28-97, 28-98, 28-101(b), 28-102(b) or 28-103(b) has occurred within the adult arcade or adult mini-theatre in a consecutive period of six (6) months; or

(3) That the operator of the adult arcade or adult mini-theatre has knowingly allowed or permitted any act of sexual intercourse, sodomy, oral copulation, indecent exposure, lewd conduct or masturbation with or without an individual or an arcade device to occur in the adult arcade or adult mini-theatre or has knowingly allowed or permitted the adult arcade or adult mini-theatre to be used as a place in which solicitation for sexual intercourse, sodomy, or oral copulation occur. Knowledge of such activities shall be presumed, subject to rebuttal by the operator, in any instance where there have been convictions in a court of original jurisdiction for four or more offenses arising on separate occasions in the adult arcade or adult mini-theatre and relating to the above activities within a continuous period of one year. The appeal of a conviction shall not prevent its consideration, unless and until it is reversed or set aside, and a disposition by deferred adjudication shall be considered in the same manner as a conviction.

(b) The director shall not request a hearing by the hearing officer on any alleged grounds for revocation until he has caused an investigation

to be made thereupon and determined that grounds for revocation may, in probability of fact, exist.
(Ord. No. 97-75, § 2, 1-15-97; Ord. No. 2010-721, § 3, 9-15-2010, eff. 10-4-2010; Ord. No. 2010-767, § 2, 10-6-2010; Ord. No. 2018-790, § 11, 10-3-2018)

Sec. 28-112. Notice of hearing.

(a) At least 14 days prior to the date set for the revocation hearing by the hearing officer, the operator of the adult arcade or adult mini-theatre shall be given a written notice by the director which shall set forth:

(1) The grounds upon which the director will seek revocation of the permit;

(2) That a hearing has been scheduled thereon before the hearing officer and the time, date and place of the hearing; and

(3) That the operator and owners may appear, may be represented by counsel, may present evidence and may cross examine witnesses presented by the director.

(b) The foregoing notices shall be given as provided in section 28-85 of this Code. Additionally, a copy thereof shall be posted at each public entrance to the adult arcade or adult mini-theatre upon the door and the notice shall also be published in a newspaper of general circulation within the City, both to be done one time at least ten days prior to the date of the hearing.
(Ord. No. 97-75, § 2, 1-15-97; Ord. No. 2010-721, § 3, 9-15-2010, eff. 10-4-2010; Ord. No. 2010-767, § 2, 10-6-2010)

Sec. 28-113. The hearing officer.

The hearing officer shall be an official appointed by the mayor and confirmed by the city council, and hearings shall be conducted as provided in section 28-125(d) of this Code. Only evidence presented at the hearing may be considered and the burden of proof shall be on the director.
(Ord. No. 97-75, § 2, 1-15-97; Ord. No. 2010-721, § 3, 9-15-2010, eff. 10-4-2010; Ord. No. 2010-767, § 2, 10-6-2010)

Sec. 28-114. Order of the hearing officer.

The hearing officer shall announce his decision by written order. If, after the hearing, the hearing officer finds that the permit should be revoked, he shall issue a written order revoking such permit. If the hearing officer determines, based upon the nature of the violation, that the ends of justice would be served by a suspension in lieu of a revocation, he may suspend the operation of the permit for a period of time to be stated in the order of suspension, not to exceed two months. Notice of the decision shall be given to the operator, owners, and any other persons appearing at the hearing and claiming an interest in the adult arcade or adult mini-theatre by providing each a copy of the order in the manner specified in section 28-85 of this Code.
(Ord. No. 97-75, § 2, 1-15-97)

Sec. 28-115. Posting, removal of permit, discontinuation of use as adult arcade or adult mini-theatre.

(a) If the permit is revoked or suspended, the director shall also post a copy of the order at each public entrance of the adult arcade or adult mini-theatre upon the door and shall remove the permit from the adult arcade or adult mini-theatre.

(b) It shall be unlawful for the operator, any owner or any agent or employee of the operator or any other person upon the adult arcade or adult mini-theatre to refuse to surrender the permit after notice that it has been suspended or revoked.
(Ord. No. 97-75, § 2, 1-15-97; Ord. No. 2010-721, § 3, 9-15-2010, eff. 10-4-2010; Ord. No. 2010-767, § 2, 10-6-2010)

Sec. 28-116. Judicial review.

The procedures set forth under section 28-135 of this Code shall apply to denials, suspensions and revocations of permits for adult arcades and adult mini-theatres under this article.
(Ord. No. 97-75, § 2, 1-15-97)

Secs. 28-117—28-120. Reserved.

ARTICLE III. SEXUALLY ORIENTED BUSINESSES*

Sec. 28-121. Definitions.

As used in this article, the following words and terms shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

Achromatic. Colorless, lacking in saturation or hue. Without limitation, grays, tans and light earth tones shall be included, but white and black and any bold coloration that attracts attention shall be excluded from the definition of achromatic.

Adult bookstore. An establishment whose primary business is the offering to customers of books, magazines, films or videotapes (whether for viewing off-premises or on-premises by use of motion picture machines or other image-producing devices), periodicals, or other printed or pictorial materials which are intended to provide sexual stimulation or sexual gratification to such customers, and which are distinguished by or characterized by an emphasis on matter depicting, describing or relating to specified sexual activities, or specified anatomical areas.

Adult cabaret. An establishment whose primary business is the offering to customers of live entertainment which is intended to provide sexual stimulation or sexual gratification to such customers, and which is distinguished by or characterized by an emphasis on matter depicting, describing or relating to specified sexual activities, or specified anatomical areas.

Adult encounter parlor. An establishment whose primary business is the provision of premises where customers either congregate, associate, or consort with employees who engage in specified sexual activities with or in the presence of such customers, or who display specified anatomical areas in the presence of such customers, with the intent of providing sexual stimulation or sexual gratification to such customers.

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*__Cross reference—__Adult arcades, § 28-81 et seq.

Adult lounge. An adult cabaret, as defined above, which is a permitted or licensed premises, pursuant to the Texas Alcoholic Beverage Code, where alcoholic beverages may be served or sold.

Adult modeling studio. An establishment whose primary business is the provision to customers of figure models who are so provided with the intent of providing sexual stimulation or sexual gratification to such customers and who engage in specified sexual activities or display specified anatomical areas while being observed, painted, painted upon, sketched, drawn, sculptured, photographed, or otherwise depicted by such customers.

Adult movie theatre. An establishment, containing a room with tiers or rows of seats facing a screen, or projection area, whose primary business is the exhibition to customers of motion pictures which are intended to provide sexual stimulation or sexual gratification to such customers and which are distinguished by or characterized by an emphasis on matter depicting, describing or relating to specified sexual activities or specified anatomical areas.

Applicant. The applicant for a permit shall be the intended operator of the enterprise.

Church. A building, whether situated within the city or not, in which persons regularly assemble for religious worship intended primarily for purposes connected with such worship or for propagating a particular form of religious belief.

Commercial multi-unit center. A building or structure (including a shopping mall or strip shopping center) containing three or more separate premises, each of which is offered by lease or otherwise for separate occupancy or control and each of which occupies an enclosed area having its own door or entranceway opening onto public property, a public way, or a common area.

Conduct any business in an enterprise. Any person who does any one or more of the following shall be deemed to be conducting business in an enterprise:

(1) Operates a cash register, cash drawer or other depository on the enterprise premises where cash funds or records of credit card or other credit transactions generated in any manner by the operation of the establishment or the activities conducted therein are kept;

(2) Displays or takes orders from any customer for any merchandise, goods, entertainment or other services offered on the enterprise premises;

(3) Delivers or provides to any customer any merchandise, goods, entertainment or other services offered on the enterprise premises;

(4) Acts as a door attendant to regulate entry of customers or other persons into the enterprise premises; or

(5) Supervises or manages other persons in the performance of any of the foregoing activities on the enterprise premises.

Customer. Any person who:

(1) Is allowed to enter an enterprise in return for the payment of an admission fee or any other form of consideration or gratuity; or

(2) Enters an enterprise and purchases, rents or otherwise partakes of any merchandise, goods, entertainment or other services offered therein; or

(3) Is a member of and on the premises of an enterprise operating as a private club.

Director. The director and such employee(s) of the department of administration and regulatory affairs as he may designate to perform the duties of the director under this article.

Display surface. The entire surface of a sign, on one side, devoted to exhibiting advertising. The display surface shall not include the sign frame and incidental supports thereto.

Employee. Any person who renders any service whatsoever to the customers of an enterprise or who works in or about an enterprise

and who receives compensation for such service or work from the operator or owner of the enterprise or from the customers therein.

Enterprise. An adult bookstore, adult cabaret, adult encounter parlor, adult lounge, adult modeling studio, adult movie theatre or any establishment whose primary business is the offering of a service or the selling, renting or exhibiting of devices or any other items intended to provide sexual stimulation or sexual gratification to its customers, and which is distinguished by or characterized by an emphasis on matter depicting, describing or relating to specified sexual activities or specified anatomical areas. The term "enterprise" shall not be construed to include:

(1) Any business operated by or employing licensed psychologists, licensed physical therapists, licensed athletic trainers, licensed cosmetologists, or licensed barbers performing functions authorized under the licenses held;

(2) Any business operated by or employing licensed physicians or licensed chiropractors engaged in practicing the healing arts; or

(3) Any retail establishment whose major business is the offering of wearing apparel for sale to customers.

Entertainment. Any act or performance, such as a play, skit, reading, revue, pantomime, scene, song, dance, musical rendition or striptease, whether performed by employees, agents, contractors, or customers. The term "entertainment" shall also mean bartenders, waiters, waitresses, or other employees exposing specified anatomical areas or engaging in specified sexual activities in the presence of customers.

Exterior portion. Any part of the physical structure of an enterprise, including a wall, veneer, door, fence, roof, roof covering, or window, which is visible from any public way or public property.

Licensed day-care center. A facility licensed by the State of Texas, whether situated within the city or not, that provides care, training, education, custody, treatment or supervision for more than 12 children under 14 years of age, where such children are not related by blood, marriage or adoption to the owner or operator of the facility, for less than 24 hours a day, regardless of whether or not the facility is operated for a profit or charges for the services it offers.

Multifamily tract. Any residential tract that contains any building or buildings or portion or portions thereof, that is designed, built, rented, leased, sold, let out or hired out to be occupied, or which is occupied, in separate units, each containing living, sleeping and food preparation facilities, as the homes or residences of three or more families, groups, or individuals living independently of each other.

Operator. The manager or other natural person principally in charge of an enterprise.

Owner or *owners.* The proprietor if a sole proprietorship, all general partners if a partnership, or the corporation and all officers, directors, and persons holding 50 percent or more of the outstanding shares if a corporation.

Permit. A current, valid permit issued by the director pursuant to the terms of this article to an operator for an enterprise.

Public park. A publicly owned or leased tract of land, whether situated in the city or not, designated, dedicated, controlled, maintained and operated for use by the general public for active or passive recreational or leisure purposes by the city or any political subdivision of the state and containing improvements, pathways, access or facilities intended for public recreational use. The term "public park" shall not include parkways, public roads, rights-of-way, esplanades, traffic circles, easements or traffic triangles unless such tracts or areas contain and provide improvements or access to a recreational or leisure use by the public. A current list of public parks shall be compiled and revised by the director of the parks and recreation department and maintained for public inspection in the office of the city secretary.

Residential. Pertaining to the use of land, whether situated within the city or not, for

premises such as homes, townhomes, patio homes, manufactured homes, duplexes, condominiums and apartment complexes, which contain habitable rooms for nontransient occupancy and which are designed primarily for living, sleeping, cooking, and eating therein. A premises which is designed primarily for living, sleeping, cooking and eating therein shall be deemed to be residential in character unless it is actually occupied and used exclusively for other purposes. Hotels, motels, boarding houses, nursing homes, college or university dormitories, hospitals, and nursery schools shall not be considered to be residential. The term 'residential' shall also include any unimproved tract designated for tax appraisal purposes as residential by the Harris County Appraisal District if situated in the city or by the appraisal district of the county in which the tract is situated if not situated in the city. The term additionally shall include any tract, that, based upon the records of the planning official has been subdivided or platted for residential use, but that is not yet designated for tax appraisal purposes as residential.

School. A building, whether situated within the city or not, where persons regularly assemble for the purpose of instruction or education together with the playgrounds, stadia and other structures or grounds used in conjunction therewith. The term is limited to:

(1) Public and private schools used for primary or secondary education, in which any regular kindergarten or grades one through 12 classes are taught; and

(2) Special educational facilities in which students who have physical or learning disabilities receive specialized education in lieu of attending regular classes in kindergarten or any of grades one through 12.

Sign. Any display, design, pictorial, or other representation, which shall be so constructed, placed, attached, painted, erected, fastened or manufactured in any manner whatsoever so that the same is visible from the outside of an enterprise and that is used to seek the attraction of the public to any goods, services or merchandise available at such enterprise. The term 'sign' shall also include such representations painted on or otherwise affixed to any exterior portion of an enterprise as well as such representations painted on or otherwise affixed to any part of the tract upon which such an enterprise is situated.

Specified anatomical areas:

(1) Less than completely and opaquely covered:

a. Human genitals, pubic region or pubic hair; or

b. Buttock; or

c. Female breast or breasts or any portion thereof that is situated below a point immediately above the top of the areola; or

d. Any combination of the foregoing; or,

(2) Human male genitals in a discernibly erect state, even if completely and opaquely covered.

Specified sexual activities:

(1) Human genitals in a discernible state of sexual stimulation or arousal; or

(2) Acts of human masturbation, sexual intercourse or sodomy; or

(3) Fondling or other erotic touching of human genitals, pubic region or pubic hair, buttock or female breast or breasts; or

(4) Any combination of the foregoing.

Tract. A contiguous parcel of land under common ownership, whether situated within the city or not.

(Ord. No. 97-75, § 3, 1-15-97; Ord. No. 2010-721, § 6, 9-15-2010, eff. 10-4-2010)

Sec. 28-122. Permit—Required.

(a) It shall be unlawful for any person to own, operate or conduct any business in an enterprise located within the city unless there is a permit for the enterprise.

(b) It shall be unlawful for any person to own, operate, or conduct any business in an enterprise located within the city unless the permit is posted at or near the principal public entrance to the enterprise in such a manner that it will be conspicuous to patrons who enter the premises.

(c) In any prosecution under subsection (a) above, it shall be presumed that there was no permit at the time of the alleged offense, unless a permit was then posted as provided in subsection (b).
(Ord. No. 97-75, § 3, 1-15-97)

Sec. 28-123. Same—Applications.

(a) Applications for a permit, whether original or renewal, must be made to the director by the intended operator of the enterprise. Applications must be submitted by hand delivery by the intended operator to the office of the captain of the vice division of the police department during regular working hours (8:00 a.m. to 4:00 p.m., Monday through Friday, city holidays excepted). Application forms shall be supplied by the director. The intended operator shall be required to give the following information on the application form:

(1) a. The name, street address (and mailing address if different) and Texas driver's license number of the intended operator;

b. The name and street address (and mailing address if different) of the owner(s);

(2) The name under which the enterprise is to be operated and a general description of the services to be provided;

(3) The telephone number of the enterprise;

(4) The address, and legal description of the tract of land on which the enterprise is to be located;

(5) If the enterprise is in operation, the date on which the owner(s) acquired the enterprise for which the permit is sought, and the date on which the enterprise began operations as an enterprise at the location for which the permit is sought; and

(6) If the enterprise is not in operation, the expected startup date (which shall be expressed in number of days from the date of issuance of the permit). If the expected startup date is to be more than ten days following the date of issuance of the permit, then a detailed explanation of the construction, repair or remodeling work or other cause of the expected delay and a statement of the owner's time schedule and plan for accomplishing the same.

(b) The application shall be accompanied by the following:

(1) Payment in full of the fee stated for this provision in the city fee schedule for:

a. An original application; or

b. A renewal application, as applicable, by cash, certified check, cashier's check or money order, which fee shall not be refundable under any circumstances;

(2) A certified copy of the assumed name certificate filed in compliance with the Assumed Business or Professional Name Act (Texas Business and Commerce Code, Chapter 71) if the enterprise is to be operated under an assumed name;

(3) If the enterprise is a Texas corporation, a certified copy of the articles of incorporation, together with all amendments thereto;

(4) If the enterprise is a foreign corporation, a certified copy of the certificate of authority to transact business in this state, together with all amendments thereto;

(5) If the enterprise is a limited partnership formed under the laws of Texas, a certified copy of the certificate of limited partnership, together with all amendments thereto, filed in the office of the Secretary of State under the applicable provisions of the Texas Limited Partnership Law (Texas Business Organizations Code, Title 1);

(6) If the enterprise is a foreign limited partnership, a certified copy of the certificate of limited partnership and the qualification documents, together with all amend-

ments thereto, filed in the office of the Secretary of State under the applicable provisions of the Texas Limited Partnership Law (Texas Business Organizations Code, Title 1);

(7) Proof of the current fee ownership of the tract of land on which the enterprise is to be situated in the form of a copy of the recorded deed;

(8) If the persons identified as the fee owner(s) of the tract of land in item (7) are not also the owners of the enterprise, then the lease, purchase contract, purchase option contract, lease option contract or other document(s) evidencing the legally enforceable right of the owners or proposed owners of the enterprise to have or obtain the use and possession of the tract or portion thereof that is to be used for the enterprise for the purpose of the operation of the enterprise;

(9) Any of items (2) through (8), above shall not be required for a renewal application if the applicant states that the documents previously furnished the director with the original application or previous renewals thereof remain correct and current.

(c) The application shall contain a statement under oath that:

(1) The applicant has personal knowledge of the information contained in the application and that the information contained therein and furnished therewith is true and correct; and,

(2) The applicant has read the provisions of this article.

(d) A separate application and permit shall be required for each enterprise.

(e) Each applicant shall, following the filing of the application and payment of the filing fee, place signs (at least 24 inches by 36 inches in size) that provide notification and information specifically stating "SEXUALLY ORIENTED BUSINESS PERMIT APPLICATION PENDING" and the date on which the application was filed along with the notation: "For further information, contact the Department of Administration and Regulatory Affairs." All lettering on the signs must be at least one and one-half inches by two inches in size for each letter on the sign. It shall be the duty of each applicant as to each particular application to erect at least one such sign along each of the property's public road or highway frontages so as to be clearly visible from the public road or highway. If a property does not have a public road or highway frontage, then signs shall be placed upon the property at a point visible from the nearest public right-of-way. Said signs shall be erected not less than three days after the filing of the application for the sexually oriented business permit and shall be checked daily by the applicant and reposted as required to ensure that they remain posted until the application has been approved or denied.

(f) Every applicant shall give notice of the application by publication at his own expense in two consecutive issues of a newspaper published in Houston, Texas with a daily circulation of not less than 100,000 copies. The notice shall be printed in 10-point boldface type and shall include: (1) the fact that a sexually oriented business permit has been applied for; (2) the street address, including suite or unit number, if any, of the place of business for which the permit is sought; (3) the names of the business and, if the business is operated under an assumed name, the trade name, and (4) if the applicant is a corporation, the names and titles of all officers. The notices shall be published within seven days after the application is filed with the director.

(g) The director shall cause to be prepared and transmitted to the mayor and the city council, with a copy to the city attorney, a monthly report summarizing all applications submitted under this section, and including the name of the proposed enterprise and the street address of the proposed location.

(Ord. No. 97-75, § 3, 1-15-97; Ord. No. 2010-721, §§ 7—10, 9-15-2010, eff. 10-4-2010; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 28-124. Same—Term; renewal.

Each permit shall be valid for a period of one year and shall expire on the anniversary of its

date of issuance, unless sooner revoked, or surrendered. Each permit shall be subject to renewal as of its expiration date by the filing of a renewal application with the director. Renewal applications must be filed at least 20 days prior to the expiration date of the permit that is to be renewed.
(Ord. No. 97-75, § 3, 1-15-97)

Sec. 28-125. Same—Issuance or denial.

(a) Within 20 days of receipt of any application, either original or renewal, the director shall grant or deny the requested permit and give written notice to the applicant as to the decision, unless such time period is extended at the request of the applicant as provided in subsection (d), below.

(b) The director shall issue a permit to the applicant unless one or more of the following conditions exist:

(1) The applicant's enterprise is located within 1,500 feet of any school, church, public park, or licensed day-care center. Measurements shall be made in a straight line, without regard to intervening structures or objects, from the nearest point on the property line of the applicant's enterprise to the nearest point on the property line of such school, church, public park, or licensed day-care center;

(2) The applicant's enterprise is located within 1,000 feet of any other enterprise for which there is a permit. Measurements shall be made in a straight line, without regard to intervening structures or objects, from the nearest point on the property line of the applicant's enterprise to the nearest point on the property line of any other enterprise;

(3) Seventy-five percent or more of the tracts within a circular area, as described herein, are residential in character. The radius of such circular area shall be 1,500 feet, and the center of such circular area shall correspond to the midpoint of a line joining the two most distant points on the boundary of the tract on which the enterprise is located; multifamily tracts shall be counted as multiple residential tracts based upon the tax records acreage of the multifamily tract according to the following formula: each one-eighth acre of land or fraction thereof shall be equivalent to one residential tract. For purposes of this calculation a residential tract or multifamily tract shall be considered to be in the circular area in its entirety if any portion of it lies within the circular area;

(4) The applicant failed to supply all of the information requested on the application;

(5) The applicant gave materially false, fraudulent or untruthful information on the application;

(6) The applicant's enterprise is not in compliance with section 28-129 and section 28-130 of this Code (the director may allow any noncompliance with section 28-129 or section 28-130 to be cured during the director's review period established in subsection (d), below, provided that it must be cured before the notice of decision on the permit is issued);

(7) The application or the enterprise does not meet any other requirement of this article;

(8) The operator has had a permit revoked for the same enterprise within the 180-day period next preceding the date that the application was filed; or

(9) The applicant has not demonstrated that the owner of the enterprise owns or holds a lease for the property or the applicable portion thereof upon which the enterprise will be situated or has a legally enforceable right to acquire the same.

(c) Property uses and distances for original applications shall be determined as of the time that the application is filed. If a renewal application is timely filed as provided in section 28-124 of this Code, the property uses and measurements for the renewal application shall be determined as of the time that the original application for the enterprise was filed. If not timely filed, renewal

applications shall be subject to the same fees and shall be treated in the same manner in all respects as original applications.

(d) In the event that the director determines that an applicant is not eligible for a permit, the applicant shall be given notice in writing of the reasons for the denial within 20 days of the receipt of its application by the director, provided that the applicant may request, in writing, that such period be extended for an additional period of not more than ten days at any time before the notice is issued in order to make modifications necessary to comply with section 28-129 or 28-130 of this Code. An applicant may appeal the decision of the director regarding such denial by filing a written request for a hearing with the director within 20 days after he is given notice of such denial. The director's decision on the application shall be final unless an appeal is timely filed. An appeal shall not stay the director's decision on the issuance of a permit. The applicant's written request for a hearing shall set out the grounds on which the denial is challenged. The hearing shall be conducted by a hearing official from a panel of hearing officials, not to exceed ten in number, to be appointed by the mayor and confirmed by the city council. Such hearing officials shall be attorneys licensed to practice law in the State of Texas and shall serve without compensation. Hearings shall be conducted by each hearing official in rotation as appeals are filed. Should the hearing official next in rotation be unavailable or otherwise unable to hear an appeal within the time specified under this section, the hearing official next in order who is available shall be designated to hear such appeal. The hearing official shall not have participated in any investigation or decision relating to the denial of the permit. At the hearing the hearing official shall receive oral and written testimony regarding the application. Hearings shall be conducted under rules issued by the director, which shall be consistent with the nature of the proceedings and shall ensure that each party may present evidence, cross-examine witnesses and be represented by legal counsel.

(e) The hearing official shall conduct the hearing within 20 days after receipt of the applicant's written request for a hearing unless the applicant requests an extension in writing. The hearing official shall render a written decision and issue notice thereof to the applicant within five days after the conclusion of the hearing. The written decision of the hearing official shall be final subject to the provisions of section 28-135 of this Code.

(f) Failure of the director to give timely notice of his action on an application, or failure of the hearing official to timely conduct or give notice of his decision on an appeal from the director's decision shall entitle the applicant to the issuance of a temporary permit upon written demand therefor filed by the applicant with the director unless the delay resulted from a written request for a delay or deferral by the applicant. Such a temporary permit shall only be valid until the third day after the director gives notice of his action on the application or the hearing official gives notice of his decision on the appeal, as applicable.

(g) In any instance in which the applicant's establishment is to be situated within 1,000 feet, as measured hereunder, from another proposed establishment for which a previously filed permit application has been denied, and the previously filed application is still subject to appeals, the director may grant the permit on a conditional basis, subject to the outcome of the appeals on the previous application. A permit so issued may be withdrawn and denied effective upon the third day after notice thereof is given to the operator following the resolution of the appeals on the prior permit. In case of denial the applicant shall have the same rights of appeal hereunder as if the permit had been denied in the first instance.

(h) The provisions of item (2) of subsection (b) of this section, above, shall not be construed to prohibit an enterprise for which there is a permit from relocating to another location situated within 1,000 feet of its existing location, provided that the proposed location complies with all applicable requirements of this article other than its proximity to its own existing enterprise location. An original permit application shall be required to be filed for the proposed relocation, and the director shall conditionally grant the application, if granted, on the stipulation that the permit will not actually be issued until the applicant discontinues operation at its existing location and surrenders

the permit for its existing location. Any such relocation must be completed within 180 days from the date that the permit is conditionally granted or the conditional grant of the application will become void. Pending the removal of the enterprise to its new location, both the old and new locations shall be deemed to be operating under a permit for purpose of measurements to locations of other proposed enterprises for which applications may be filed.

(i) In any instance in which the proposed enterprise tract description submitted by an applicant pursuant to section 28-123(b)(4) of this Code, above, for a permit reflects a tract or parcel of land that has resulted from a subdivision of property for which compliance with the applicable subdivision requirements of chapter 42 of this Code was required, and the director determines that the property has not been lawfully subdivided in accordance with chapter 42, then the director shall cause all measurements and determinations regarding the issuance of the permit to be made on the basis of the parent tract from which the subdivision was made, rather than the subdivided tract.
(Ord. No. 97-75, § 3, 1-15-97)

Sec. 28-126. Same—Transfer upon change.

(a) A permit is personal to the owner(s) and the operator designated in the application holds the permit on the owner(s)' behalf as the owner(s)' agent, provided it may be transferred pursuant to this section. A transfer application must be filed by the tenth day next following any change of the owner(s) or operator designated on the application. In the event that a transfer application is not timely filed, then the permit shall be invalid for any purpose relating to the operation of the enterprise, and any transfer shall require the filing of an original permit application and be subject to the regulations applicable thereto. For purposes of measurements between enterprises under section 28-125(b)(2) of this Code, an establishment for which the permit has become invalid by operation of this section shall be treated as though it had a permit until the permit is revoked pursuant to section 28-127 of this Code.

(b) The director shall prescribe a form on which permit transfer applications shall be made. The form shall include a statement under oath that the original application remains correct as previously submitted in all respects except those that are amended hereby. The transfer application shall contain a statement under oath that the individual signing the transfer application has personal knowledge of the information contained therein and that the information is true and correct and shall not be complete unless accompanied by the nonrefundable transfer fee stated for this provision in the city fee schedule. Transfer applications shall be filed in the same place and at the same time as original applications and the fee shall be payable in the same manner as for original applications, as provided in section 28-123 of this Code.

(c) Transfers shall be reviewed, issued and subject to appeal in the same manner as original applications, pursuant to section 28-125 of this Code, except that items (1), (2), and (3) of subsection (b) shall not apply, and they shall be issued for the remaining term of the permit to be transferred.

(d) No change in ownership of an enterprise or transfer of a permit for an enterprise shall be allowed during the pendency of any administrative proceeding under section 28-127 of this Code, from the time that any request for revocation or suspension has been filed with the hearing official until the hearing official's order is final. Any such transfer or attempted transfer shall confer no rights whatever in the permit for the enterprise to the putative transferee.
(Ord. No. 97-75, § 3, 1-15-97; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 28-127. Same—Revocation or suspension.

(a) The city attorney shall have the authority to request the revocation of a permit for any one (1) or more of the following reasons:

(1) The owner or operator of the permitted enterprise knowingly allowed a person under 18 years of age to enter an enterprise;

(2) The permitted enterprise does not conform to the provisions of section 28-129 and section 28-130 of this Code;

(3) Three or more cumulative violations of any of the offenses contained in Chapter 21, Chapter 43, Section 22.011, or Section 22.021 of the Texas Penal Code or of the offenses contained in this article or in article VIII of this chapter have occurred on the premises of the permitted enterprise. These violations must have occurred in a consecutive period of 12 months, and the owner, operator or any manager licensed under article VIII of this chapter: (i) knowingly allowed such violations to occur; (ii) did not make a reasonable effort to prevent the occurrence of such violations; or (iii) should have known that such violations were occurring or did occur;

(4) The operator of the permitted enterprise gave materially false, fraudulent or untruthful information on the original, renewal or transfer application form;

(5) The enterprise has not been open for business for a period of 30 consecutive days, unless due to circumstances beyond the control of the owner, and the owner is proceeding with due diligence, given all attendant circumstances, to open or reopen the establishment;

(6) That there was a change of owner or operator for which a transfer application was not timely filed pursuant to section 28-126 of this Code; or

(7) That the permit was erroneously issued in contravention of the criteria of this article.

(b) The city attorney shall nave sole authority to initiate any action for revocation of a permit; provided, that the director may request that the city attorney give priority to any such action based upon the number or nature of violations involving a particular enterprise or enterprises.

(c) The director shall cause to be prepared and transmitted to the mayor and the city council, with a copy to the city attorney, a monthly report summarizing the number and type of violations set forth under subsection (a) of this section for each permitted enterprise. The city attorney shall cause to be prepared and transmitted to the mayor and city council a monthly report summarizing revocation actions filed, currently pending or decided during the reporting period; provided, that the city attorney may withhold from such report any factual information that, in the city attorney's opinion, may tend to compromise any ongoing investigation being conducted under this article or any penal law.

(d) Prior to revocation of a permit, the city attorney, with the assistance of the director, shall investigate the grounds alleged to determine whether probable cause for revocation may exist and, if so, shall notify the owner(s) and operator in writing of reasons for the proposed revocation and grant such owner(s) and operator the opportunity to appear before a hearing official to be designated by the mayor and confirmed by the city council in accordance with the procedures set forth under section 28-125(d) of this Code, at a time and place specified within such notice. The hearing official designated shall not have participated in any investigation of the alleged grounds for the revocation. Such hearing shall be held not less than 20 days after the notice is given. Hearings shall be conducted under rules issued by the director. Such rules shall be consistent with the nature of the proceedings and shall ensure that each party may present evidence, cross-examine witnesses and be represented by legal counsel. If, after the hearing, the hearing official finds that the permit should be revoked, he shall issue a written order revoking such permit which shall be effective as provided in section 28-135 of this Code. If the hearing official determines, based upon the nature of the violation, that the ends of justice would be served by a suspension in lieu of a revocation, he may suspend the operation of the permit for a period of time to be stated in the order of suspension, not to exceed two months; however, a suspension may not be ordered if the grounds are based upon item (6) or (7) of subsection (a), above.

(e) An enterprise shall be treated as having a permit for purposes of measurements under section 28-125(b)(2) of this Code, pending the final disposition of any court action involving judicial review of a permit revocation. An establishment holding a suspended permit shall be treated as having a permit for the purpose of measurements made under section 28-125(b)(2) of this Code.
(Ord. No. 97-75, § 3, 1-15-97)

Sec. 28-128. Other permit provisions.

(a) A permit is valid only at the location for which it is issued.

(b) It shall be unlawful for any person to counterfeit, forge, change, deface, or alter a permit.

(c) A permit may be canceled upon written request of the owner(s) or operator and surrender of the permit itself to the director. Permits shall be surrendered at the same place and at the same time as provided in section 28-123(a) of this Code. The surrender of a permit shall be effective upon its filing in the office of the director.

(d) A permit shall not constitute authorization to operate the enterprise as an adult arcade or adult mini-theatre as that term is defined in section 28-81 of this Code. Each enterprise that also constitutes an adult arcade or adult mini-theatre shall require an additional permit under article II of this chapter.
(Ord. No. 97-75, § 3, 1-15-97; Ord. No. 2010-721, § 11, 9-15-2010, eff. 10-4-2010)

Sec. 28-129. Exterior portions of enterprises.

(a) It shall be unlawful for an owner or operator of an enterprise to allow the merchandise or activities of the enterprise to be visible from any point outside such enterprise.

(b) It shall be unlawful for the owner or operator of an enterprise to allow the exterior portions of the enterprise to have flashing lights, or any words, lettering, photographs, silhouettes, drawings, or pictorial representations of any manner except to the extent permitted by the provisions of this article.

(c) It shall be unlawful for the owner or operator of an enterprise to allow exterior portions of the enterprise to be painted any color other than a single achromatic color. This provision shall not apply to an enterprise if the following conditions are met:

(1) The enterprise is a part of a commercial multi-unit center; and

(2) The exterior portions of each individual unit in the commercial multi-unit center, including the exterior portions of the enterprise, are painted the same color as one another or are painted in such a way so as to be a component of the overall architectural style or pattern of the commercial multi-unit center.

(d) Nothing in this article shall be construed to require the painting of an otherwise unpainted exterior portion of an enterprise.
(Ord. No. 97-75, § 3, 1-15-97)

Sec. 28-130. Signage.

(a) Notwithstanding the *Sign Code* or any other city ordinance, code, or regulation to the contrary, it shall be unlawful for the owner or operator of any enterprise or any other person to erect, construct, or maintain any sign for the enterprise other than one primary sign and one secondary sign, as provided herein.

(b) Primary signs shall have no more than two display surfaces. Each such display surface shall:

(1) Not contain any flashing lights;

(2) Be a flat plane, rectangular in shape;

(3) Not exceed 75 square feet in area; and

(4) Not exceed ten feet in height or ten feet in length.

(c) Primary signs shall contain no photographs, silhouettes, drawings or pictorial representations of any manner, and may contain only:

(1) The name of the enterprise; and/or

(2) One or more of the following phrases:

a. "Adult bookstore."

b. "Adult movie theatre."

c. "Adult encounter parlor."

d. "Adult cabaret."

e. "Adult lounge."

f. "Adult novelties."

g. "Adult entertainment."

h. "Adult modeling studio."

(3) Primary signs for adult movie theatres may contain the additional phrase, "Movie Titles Posted on Premises."

(d) Each letter forming a word on a primary sign shall be of a solid color, and each such letter shall be the same print-type, size and color. The background behind such lettering on the display surface of a primary sign shall be of a uniform and solid color.

(e) Secondary signs shall have only one display surface. Such display surface shall:

(1) Be a flat plane, rectangular in shape;

(2) Not exceed 20 square feet in area;

(3) Not exceed five feet in height and four feet in width; and

(4) Be affixed or attached to any wall or door of the enterprise.

(f) The provisions of item (1) of subsection (b) and subsections (c) and (d) shall also apply to secondary signs.

(g) Any sign located on the premises of a commercial multi-unit center containing an enterprise that displays the name, or any portion of the name of the enterprise, any name under which any enterprise was formerly operated on the premises, or that contains any of the terms set forth in item (2) of subsection (c) or any other terminology that is commonly used to identify, or is associated with the presence of a sexually oriented business, shall comply with all restrictions of this section. The intent of this subsection is to prevent the use of signage identifying the commercial multi-tenant center itself from being used as a subterfuge to evade the restrictions on sexually oriented business signs set forth in this section.

(Ord. No. 97-75, § 3, 1-15-97; Ord. No. 02-399, § 58, 5-15-02; Ord. No. 2021-1037, § 20(Exh. I.25), 12-1-2021, eff. 4-1-2022)

Sec. 28-131. Persons younger than eighteen prohibited from entry; attendant required.

(a) It shall be unlawful to allow a person who is younger than 18 years of age to enter or be on the premises of an enterprise at any time that the enterprise is open for business.

(b) It shall be the duty of the operator of each enterprise to ensure that an attendant is stationed at each public entrance to the enterprise at all times during such enterprise's regular business hours. It shall be the duty of the attendant to not allow any person under the age of 18 years to enter the enterprise. It shall be presumed that an attendant knew a person was under the age of 18 unless such attendant asked for and was furnished:

(1) A valid operator's, commercial operator's, or chauffeur's driver's license; or

(2) A valid personal identification certificate issued by the Texas Department of Public Safety reflecting that such person is 18 years of age or older.

(Ord. No. 97-75, § 3, 1-15-97)

Sec. 28-132. Notices.

(a) Any notice required or permitted to be given by the director or any other city office, division, department or other agency under this article to any applicant, operator or owner of an enterprise may be given either by personal delivery or by certified United States mail, postage prepaid, return receipt requested, addressed to the most recent address as specified in the application for the permit, or transfer application which has been received by the director, or any notice of address change which has been received by the director. Notices mailed as above shall be deemed given upon their deposit in the United States mail. In the event that any notice

given by mail is returned by the postal service, the director shall cause it to be posted at the principal entrance to the establishment.

(b) Any notice required or permitted to be given to the director by any person under this article shall not be deemed given until and unless it is received in the office of the director at the time(s) and in the manner provided for filing of applications in section 28-123(a) of this Code.

(c) It shall be the duty of each owner who is designated on the permit application and each operator to furnish notice to the director in writing of any change of residence or mailing address.
(Ord. No. 97-75, § 3, 1-15-97; Ord. No. 2010-721, § 12, 9-15-2010, eff. 10-4-2010)

Sec. 28-133. Penalty.

(a) The violation of any provision of this article, including the doing of anything which is herein prohibited or declared to be unlawful or the failure to do anything or perform any duty which is required herein, shall be punishable as provided by Section 243.010(b) of the Local Government Code, as amended. Each day any violation shall continue shall constitute and be punishable as a separate offense.

(b) The revocation or suspension of any permit shall not prohibit the imposition of a criminal penalty and the imposition of a criminal penalty shall not prevent the revocation or suspension of a permit.
(Ord. No. 97-75, § 3, 1-15-97)

Sec. 28-134. Authority to file suit.

The city attorney is hereby authorized to file suit to enjoin the violation of this article.
(Ord. No. 97-75, § 3, 1-15-97)

Sec. 28-135. Judicial review.

(a) Any owner, operator, or applicant of an enterprise who is aggrieved by a decision that denies, suspends, or revokes a permit, and who has complied fully and timely with all applicable provisions pertaining to appeals of decisions in this article may seek appropriate judicial relief by writ of mandamus or other available remedy in a court of competent jurisdiction.

(b) The person aggrieved by the decision of the city may seek judicial review of such decision immediately following the decision. The city attorney shall cooperate with the aggrieved party in seeking an expedited disposition of the matter.

(c) The decision of the hearing official suspending or revoking a permit under section 28-127 of this Code shall be final as of the date written notice of the hearing official's decision is given to the owner or operator of the enterprise, but in order to afford the permit holder an opportunity to seek judicial review shall not be effective for purposes of enforcement of the decision by the director until the 20th day following such notice. If the permit holder initiates litigation for the purpose of seeking judicial review within the 20-day period, then the decision shall not be effective for purposes of enforcement prior to the 60th day following such notice. This subsection shall apply only to a decision sustaining the suspension or revocation of a permit for an existing enterprise, and shall not apply to a decision sustaining the denial of an initial application for a proposed enterprise.
(Ord. No. 97-75, § 3, 1-15-97)

Sec. 28-136. Access, visibility, lighting, supervision.

(a) Terms in this section shall be governed by the definitions in section 28-251 of this Code.

(b) It shall be unlawful for any owner, operator or manager of any enterprise to permit any employee to provide any entertainment to any customer in any separate area within an enterprise to which entry or access is blocked or obscured by any door, curtain or other barrier, regardless of whether entry to such separate area is by invitation, admission fee, club membership fee or any form of gratuity or consideration.

(c) It shall be the duty of any owner, operator or manager of an enterprise to allow immediate access by any police officer, city fire department official or health officer to any portion of the premises of the enterprise upon request for

purpose of inspection of such premises for compliance with this article, or any other applicable law.

(d) Each enterprise shall be equipped with lighting fixtures of sufficient intensity to illuminate every place to which customers are permitted access at an illumination of not less than one (1.0) footcandle as measured at four feet above floor level.

(e) It shall be the duty of any owner, operator or manager of an enterprise to ensure that at least one on-site manager is on duty on the premises at all times during which the enterprise is open for business or during which customers are on the premises.

(f) It shall be the duty of any owner, operator or manager of an enterprise to ensure that all persons acting as managers or entertainers on the premises hold and display permits under article VIII of this chapter, and that entertainers comply with section 28-258 of this Code.

(g) It shall be the duty of the on-site manager to ensure that no entertainer or manager is allowed or suffered to conduct any business on the premises of an enterprise unless the on-site manager thereof has in his possession or control an on-site card, as referenced in section 28-254(d) of this Code for the manager or entertainer. On-site cards shall be made available for immediate inspection by any police officer, fire department official or health officer. Managers or entertainers working at more than one enterprise may retrieve their on-site cards upon departing the premises in order to present them to a manager at any other enterprise where such persons are employed to hold while the manager or entertainer remains on those premises.

(h) It shall be the duty of any owner, operator or manager to maintain a complete list of all persons, including names and addresses, who conduct any business on the premises and are required to obtain a permit under article VIII of this chapter.
(Ord. No. 97-75, § 3, 1-15-97)

Secs. 28-137—28-150. Reserved.

ARTICLE IV. CORRECTIONAL FACILITIES AND ALTERNATE HOUSING FACILITIES*

Sec. 28-151. Definitions.

As used in this article, the following words and terms shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

Alternate housing facility means a residence in which three or more unrelated parolees reside that:

(1) Is owned by an individual, private entity, or non-profit or faith-based organization;

(2) Is not operated by, established by, or contracted with the Texas Department Criminal Justice ("TDCJ"); and

(3) Will be operated under TDCJ approval.

The operator of an alternate housing facility that does not have TDCJ approval may apply for and be granted an initial permit, provided he shall apply for and obtain TDCJ approval for the facility within 45 days after obtaining a permit under this article and shall maintain an approved status with TDCJ for as long as the facility is in operation.

Business day means the city's standard days of operation; 8:00 a.m. to 5:00 p.m., Monday through Friday, but shall exclude any day designated as an official city holiday or for which the operations of the city have been reduced or closed due to any unforeseen circumstance or emergency.

Correctional facility means a facility for the housing and rehabilitation or training of adults on parole, early release or pre-release, or any

*__Editor's note—__Ord. No. 2018-227, § 2(Exh. A), adopted March 22, 2018, amended Ch. 28, Art. IV in its entirety to read as herein set out. Former Art. IV pertained to correctional facilities and derived from Ord. No. 91-1306, § 2, 9-11-1991 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

other form of executive, judicial or administrative release from a penal institution. Such a facility shall not include a facility that is:

(1) Used primarily as a temporary holding facility;

(2) Used primarily for persons arrested for or found guilty of misdemeanor offenses;

(3) Located in or near court facilities; or

(4) Used primarily to hold prisoners awaiting transfer to a state facility.

Department means the department of administration and regulatory affairs.

Director means the director of the department and the director's designees.

Facility means a correctional facility or an alternate housing facility.

Hearing officer means an individual designated by the director to conduct administrative appeal hearings.

Licensed day care center means a facility licensed by the State of Texas, whether situated within the city or not, that provides care, training, education, custody, treatment or supervision for more than 12 children under 14 years of age, where such children are not related by blood, marriage or adoption to the owner or operator of the facility, for less than 24 hours a day, regardless of whether or not the facility is operated for a profit or charges for the services it offers.

Operator means the manager or other natural person principally in charge of a facility.

Owner or *owners* means the proprietor if a sole proprietorship, all general partners if a partnership, the corporation and all officers, directors, and persons holding 50 percent or more of the outstanding shares of the corporation if a corporation, or a governmental entity.

Parolee means a convicted felon released from incarceration to serve a portion of his sentence under supervision in the community.

Permit means a current, valid permit issued by the director pursuant to the terms of this article to an operator for a facility.

Public park or *recreation facility* means a publicly owned or controlled park or recreation facility operated for the benefit of the general public, whether situated in the city or not, and including but not limited to those park and playground properties placed under the direction and control of the parks and recreation department by chapter 32 of this Code.

School means a building, whether situated within the city or not, where persons regularly assemble for the purpose of instruction or education, together with the playgrounds, stadia and other structures or grounds used in conjunction therewith. The term is limited to:

(1) Public and private schools used for primary or secondary education, in which any regular kindergarten or grades one through twelve classes are taught;

(2) Special educational facilities in which students who have physical or learning disabilities receive specialized education in lieu of attending regular classes in kindergarten or any of grades one through twelve; and

(3) Public and private institutions of higher education.

Tract means a contiguous parcel of land under common ownership, whether situated within the city or not.

(Ord. No. 2018-227, § 2(Exh. A), 3-22-2018)

Sec. 28-152. Previously existing facilities.

(a) A correctional facility that is operating on March 22, 2018, shall come into full compliance with this article by October 1, 2019.

(b) An alternate housing facility that is operating under approval of the TDCJ on March 22, 2018, shall come into full compliance with this article by October 1, 2019.

(Ord. No. 2018-227, § 2(Exh. A), 3-22-2018)

Sec. 28-153. Permit.

(a) It shall be unlawful for any person to own or operate a facility located within the city limits without a permit.

(b) It shall be unlawful for any person to own or operate a facility located within the city limits unless the permit is posted at or near the principal public entrance to the facility in such a manner that it will be conspicuous to all who enter the premises.

(c) In any prosecution under subsection (a) above, it shall be presumed that there was no permit at the time of the alleged offense, unless a permit was then posted as provided in subsection (b) of this section.

(d) Obtaining or holding a permit under this article shall not be interpreted to excuse or relieve a facility or its owner, operator, or any employee from compliance with state law or other provision of this Code.

(e) A permit is personal to the owner of the facility for which it is issued and may not be transferred or otherwise assigned. Any change in ownership of the facility will require the filing of a new permit application within ten business days following the effective date of the change. The application shall be subject to the same fees and shall be treated in the same manner in all respects as an original application. Failure to timely file the new application for a permit may result in denial of the permit. If the permit holder for the facility is a corporation, and there is any transfer in the interest of the corporation or of any entity having an interest in the corporation after the permit is issued, the corporation must submit a new permit application within ten business days following the effective date of the change.

(f) A separate permit shall be required for each facility.

(g) A permit is valid only at the location for which it is issued.

(h) Each permit shall be valid for a period of one year and shall expire on the anniversary of its date of issuance, unless sooner renewed, revoked or surrendered. A permit may be renewed by filing an application for renewal with the director not more than 90 days prior to the expiration date of the permit.

(i) A permit may be cancelled upon written request of the owner or operator and surrender of the permit itself to the director. The surrender of a permit shall be effective upon its delivery to the office of the director.
(Ord. No. 2018-227, § 2(Exh. A), 3-22-2018)

Sec. 28-154. Fees.

(a) The applicable annual correctional facility fee or annual alternate housing facility permit fee stated in the city fee schedule shall be payable upon the issuance of a permit and shall be nonrefundable. The annual permit fee shall not be subject to the annual adjustment in section 1-13 of this Code.

(b) The applicable correctional facility inspection fee or alternate housing facility inspection fee stated in the city fee schedule shall be payable prior to the commencement of an inspection and shall be nonrefundable. The inspection fee shall not be subject to the annual adjustment in section 1-13 of this Code.
(Ord. No. 2018-227, § 2(Exh. A), 3-22-2018)

Sec. 28-155. Permit applications; renewals.

(a) An operator of a facility shall apply for a permit annually to the director. Application forms shall be supplied by the director. The intended operator shall be required to give the following information on the application form:

(1) a. The name, street address (and mailing address if different), email address, and Texas driver's license number of the intended operator; and

b. The name, street address (and mailing address if different), and email address of the owner;

(2) The name under which the facility is to be operated;

(3) The telephone number of the facility;

(4) A general description of the services to be provided, including the name and

contact information of any federal, state or other governmental entity for which the services are to be provided;

(5) The classification of the residents to be housed (including whether violent or nonviolent and whether any person convicted of an offense listed under article 42A.054 of the Code of Criminal Procedure will be housed);

(6) If operated on behalf of a governmental entity, a copy of any existing contract or bid specifications for its operation, all security and resident monitoring plans required under state or federal law, and any additional security and monitoring measures that are to be implemented;

(7) The address and legal description of the tract of land on which the facility is to be located;

(8) If the facility is in operation, the date on which the owner acquired the facility for which the permit is sought, and the date on which the facility began operations as a facility at the location for which the permit is sought; and

(9) If the facility is not in operation, the expected start-up date (which shall be expressed in number of days from the date of issuance of the permit). If the expected startup date is to be more than ten days following the date of issuance of the permit, then a detailed explanation of the construction, repair or remodeling work or other cause of the expected delay and a statement of the owner's time schedule and plan for accomplishing the same.

(b) The application shall be accompanied by the following:

(1) A statement conforming to minimum state law requirements for unsworn declarations by the owner of the real property attesting to the knowledge of the owner that the property will be used for the operation of a facility;

(2) If the facility is to be operated under an assumed name, a certified copy of the assumed name certificate filed in compliance with the Assumed Business or Professional Name Act (Texas Business and Commerce Code, chapter 71);

(3) If the facility is a Texas corporation, a certified copy of the articles of incorporation, together with all amendments thereto;

(4) If the facility is a foreign corporation, a certified copy of the certificate of authority to transact business in this state, together with all amendments thereto;

(5) If the facility is a limited partnership formed under the laws of Texas, a certified copy of the certificate of limited partnership, together with all amendments thereto, filed in the office of the Secretary of State under Texas Business Organizations Code chapter 153;

(6) If the facility is a foreign limited partnership, a certified copy of the certificate of limited partnership and the qualification documents, together with all amendments thereto, filed in the office of the Secretary of State under Texas Business Organizations Code chapter 153;

(7) Proof of the current fee ownership of the tract of land on which the facility is to be situated in the form of a copy of the recorded deed;

(8) If the person identified as the fee owner of the tract of land in item (7) is not also the owner of the facility, then the lease, purchase contract, purchase option contract, lease option contract or other document evidencing the legally enforceable right of the owner or operator of the facility to have or obtain the use and possession of the tract or portion thereof that is to be used for the facility for the purpose of the operation of the facility;

(9) A copy of the facility certificate of occupancy;

(10) A statement conforming to minimum state law requirements for unsworn declarations by the owner and operator of the

facility attesting that the applicant's operation will not violate deed restrictions;

(11) Upon renewal for an alternate housing facility, proof of the continued approval of the TDCJ; and

(12) Any other information that may be reasonably requested by the director.

Any of items (1) through (9) above may not be required for a renewal application if the applicant states that the documents previously furnished to the director with the original application or previous renewals thereof remain correct and current.

(c) *Request for inspection.* At the time of submission of the application, the owner or operator of a facility shall submit a request to the building official for the annual correctional facility or alternate housing facility inspection described in section 28-158 of this Code.
(Ord. No. 2018-227, § 2(Exh. A), 3-22-2018)

Sec. 28-156. Permit process.

(a) *Initial acceptance of application.* The director shall initially review each application for issuance or renewal of a permit to determine whether the application is complete and all required information has been provided. If not, the director shall return the application to the applicant with a statement of deficiencies. The applicant may then correct the deficiencies and resubmit the completed application.

(a-1) *Internet posting by director.* Within five business days of the director's receipt and acceptance of the completed application for the issuance or renewal of a permit, the director shall cause to be posted on an internet website hosted by the department and being accessible to the public the following information as contained in the completed application:

(1) The department's identification, reference, case or application number for the application;

(2) The name of the operator and owner making the application; and

(3) The physical street address and legal description of the real property as contained in the competed application, including but not limited to: the subdivision name, the subdivision section number, and the lot and block number on which the facility is or is to be situated.

(b) *Review of application.* Within 35 business days after receipt of any complete application and passed annual correction facility or alternate housing facility inspection, either original or renewal, the director shall review a complete application to determine whether the applicant has met all applicable requirements of this article and of other applicable provisions and shall:

(1) Return an application that contains any incorrect information;

(2) Deny the issuance or renewal of a permit if any of the following conditions exist:

a. The applicant's facility is located within 1,000 feet of any licensed day care center, public park or recreation facility, or school;

b. The applicant's facility is located within 1,000 feet of any other facility for which there is a permit or that is by law exempt from the terms of this article;

c. The applicant failed to supply all the information requested on the application;

d. The applicant gave materially false, fraudulent or untruthful information on the application;

e. The application or the facility does not meet any other requirement of this article;

f. The operator has had a permit revoked for the same enterprise within the 180-day period next preceding the date that the application was filed;

g. The applicant's facility will, or is intended to, house more than 75 adults on parole, early release or

pre-release, or any other form of administrative release from a penal institution; or

h. The facility or its operation has failed to comply with all applicable statutes and regulations, whether at the applied-for location or another location; or

(3) Approve the application and issue the permit, subject to compliance with this article, including, but not limited to, inspection of the facility and payment of any required fees.

A correctional facility that was operating on March 22, 2018, shall be exempt from subitems a, b, and g of item (2) above, provided that the facility is subsequently issued a permit on or before October 1, 2019, and is operated continuously thereafter under a permit or renewal without termination, revocation, or lapse.

An alternate housing facility that was operating under approval of the TDCJ on March 22, 2018, shall be exempt from the distance requirements of subitems a and b of item (2) above, provided that the facility is subsequently issued a permit on or before October 1, 2019, and is operated continuously thereafter under a permit or renewal without termination, revocation, or lapse, and further provided that the TDCJ approval continues to remain in effect. If not timely filed, a renewal application shall be subject to the same fees and shall be treated in the same manner in all respects as an original application.

All measurements for subitems a and b of item (2) above shall be made in a straight line without regard to intervening structures or objects, from the nearest point on the property line for the applicant's facility to the nearest point on the property line of such other licensed day care center, public park or recreation facility, or school.

(c) *Property uses and distances upon renewal.* Property uses and distances for subitems a and b of subsection (b)(2) of this section, as determined at the time an original application is filed shall apply to a renewal application that is timely filed as provided in section 28-153(h) of this Code. If not timely filed, renewal applications shall be subject to the same fees and shall be treated in the same manner in all respects as original applications.

(d) *Denial.* In the event that the director determines that an applicant is not eligible for a permit, the applicant shall be given notice in writing of the reasons for the denial within 35 days after the receipt of its application by the director. An applicant may, within ten business days after the date of the notice letter, cure any defect. If the applicant timely cures all defects, the director shall approve the application. If the applicant fails to cure all defects within ten business days after the date of the notice letter, the applicant may appeal the denial through the procedure described in section 28-160 of this Code.

(e) *Decision final.* The director shall provide written notice to an applicant of either final approval or denial of an application. The director's decision shall be final, unless an appeal is timely filed.

(f) *Additional conditions for issuance of permit.* Notwithstanding the foregoing, no permit shall be issued until:

(1) The director determines that the facility has passed the required inspection; and

(2) The applicant has paid all required fees.

(Ord. No. 2018-227, § 2(Exh. A), 3-22-2018; Ord. No. 2019-668, § 2, 9-4-2019)

Sec. 28-157. Operating requirements.

(a) *Posting.* The owner or operator of a facility shall display at the principal public entrance of the facility that is readily available to residents and visitors:

(1) The permit issued pursuant to this article; and

(2) The certificate of occupancy issued by the city for the facility.

(b) *Framed beds.* The owner or operator of a facility shall provide a separate framed bed at least six feet long and three feet wide equipped

with supportive springs and a clean supportive mattress 24 hours a day for each resident housed within the facility.

(c) *TDCJ approval.* The owner or operator of an alternate housing facility that is newly permitted shall obtain TDCJ approval for the facility within 45 days after obtaining a permit under this article and shall maintain an approved status with TDCJ for as long as the facility is in operation.

(d) *Records.* The owner or operator of each facility shall maintain on the premises of the facility records sufficient to verify and substantiate all information provided under section 28-155 of this Code. In addition, the owner or operator of each facility shall maintain on the premises of the facility documentation showing:

(1) Staffing and shift assignments for all employees;

(2) The name of each resident, accompanied by personal identifier information, including date of birth and copy of driver's license or other acceptable state recognized means of identification;

(3) Resident service agreements signed by each resident or the resident's legal representative detailing the services to be provided to the resident by the facility, and the cost of those services; and

(4) Contact information for the resident's legal representative, if any.

The owner or operator shall maintain information relating to employees or residents required under this section for a period of at least five years after the employee or resident ceases to be employed by or reside at the facility, as applicable, and shall maintain all other information required under this section for as long as the facility is in operation and two years after it ceases to operate.

(e) *Report of death or criminal activity.* The owner or operator of each facility shall immediately notify the Houston Police Department of any death or criminal activity that occurs on the premises of the facility.

(f) *Inspection reports.* The owner or operator shall maintain on the premises a current file of inspection reports and other documentation needed to demonstrate compliance with applicable laws and regulations, including the Fire Code and the Construction Code. The inspection reports must be signed by the inspector, dated, and free of any outstanding issues that require corrective actions.

(g) *Safety or emergency precautions.* The owner or operator of a facility shall:

(1) Implement a written fire and evacuation plan for the facility that sets forth the responsibilities and steps to be taken by staff and residents in the event of a fire or other emergency and identifies two points of entry and egress. The owner or operator shall ensure that all staff and residents are shown how to use all emergency exits from the facility within 24 hours after arrival at the facility. The owner or operator shall maintain documentation of such training.

(2) Post an emergency evacuation plan in a common area, such as the kitchen or living room.

(3) Ensure that each employee receives training on the emergency evacuation plan at least two times per year and shall maintain documentation of such training.

(4) Ensure that flammable supplies, gasoline-operated equipment, and compressed gas equipment are stored outside of the living area.

(5) Provide a sufficient number of accessible fire extinguishers. The owner or operator shall ensure that a person licensed to inspect fire extinguishers inspects the fire extinguishers annually. The owner or operator shall ensure that the fire extinguishers are recharged when needed by a person licensed to inspect fire extinguishers.

(6) Provide and maintain an operable smoke alarm and, if any gas utility is provided, a carbon monoxide detector in each sleep-

ing area, kitchen, and laundry area. The owner or operator shall ensure that these devices remain in good working order. If a facility has a resident who is hearing-impaired, the owner or operator shall install and properly maintain a visual smoke alarm that is capable of alerting a hearing-impaired person of the presence of fire or smoke.

(7) Ensure that properly and visibly labeled first aid supplies are readily accessible to all the residents and inform the residents of the location of the supplies.

(Ord. No. 2018-227, § 2(Exh. A), 3-22-2018)

Sec. 28-158. Inspections.

(a) Upon receipt of a request by the owner or operator of a facility, the building official shall conduct an annual correctional facility or alternate housing facility inspection to confirm that the facility is in compliance with this Code, including the Fire Code and the Construction Code. Upon receipt of the inspection request and payment of the fee stated in the city fee schedule, the building official shall notify the owner and operator of a facility of the date and time scheduled for the inspection.

(b) The building official or any peace officer may enter the premises of a facility at reasonable times to conduct an inspection, survey, or investigation to ensure compliance with this article and to protect the health, safety, or welfare of the residents of the facility. The building official may be assisted in any investigation by representatives of the department, the police department the fire department, the department of neighborhoods, the Houston Health Department, or other city or state agency or entity with appropriate jurisdiction over matters affecting health, safety or welfare of the residents of a facility. During the course of any inspection, the owner, operator, and any employee of the facility shall be required to identify himself and provide documentation of identity upon the request of the building official, or any other city representative participating in the inspection.

(c) At the time of any inspection, the owner or operator of a facility shall provide the building official or peace officer access to books, records, and other documents maintained by or on behalf of a facility as required under section 28-157 of this Code.

(Ord. No. 2018-227, § 2(Exh. A), 3-22-2018)

Sec. 28-159. Revocation of permit.

(a) The director shall have the authority to revoke a permit for any one or more of the following reasons:

(1) The operator of the facility gave materially false, fraudulent or untruthful information on the original, renewal or transfer application form;

(2) The facility has not been open for operations for a period of 30 consecutive days, unless due to circumstances beyond the control of the owner, and the owner is proceeding with due diligence, given all attendant circumstances, to open or reopen the facility;

(3) The permit was erroneously issued in contravention of the criteria of this article;

(4) The owner or operator of the facility has received notice of more than five violations of this Code, including the Fire Code or Construction Code, in a one-year period; or

(5) The facility or its operation has failed to comply with all applicable statutes and regulations.

(b) The procedures set forth in section 28-160 of this Code shall apply to appeals of the revocation of permits.

(Ord. No. 2018-227, § 2(Exh. A), 3-22-2018)

Sec. 28-160. Appeals.

(a) *Request for appeal.* An applicant or owner or operator of a facility may appeal a denial of an application for or renewal of a permit or the revocation of a permit within ten business days after date of deposit of written notice in the mail by submitting a written request for an appeal to the director. If the applicant does not request a

hearing within ten business days, the denial is effective and final on the eleventh business day after the date of the director's notice of denial.

(b) *Conduct of hearing; rules and procedures.* An appeal hearing shall be conducted on a single weekday within 20 business days after the director receives a request for appeal and shall last no longer than eight hours. Further, an appeal hearing shall be informal and conducted under rules established by the director consistent with the informal nature of the proceedings; provided, however, the following rules shall apply to all appeal hearings conducted under this section:

(1) All parties shall have the right to representation by an attorney licensed to practice in Texas, though an attorney is not required;

(2) Each party may present witnesses in his own behalf;

(3) Each party shall have the right to cross examine all witnesses; and

(4) The hearing officer shall consider only the evidence presented at the appeal hearing in rendering a final decision.

(c) *Authority of hearing officer.* The hearing officer may affirm or reverse a denial or revocation under this article. The hearing officer shall affirm a denial or revocation if he determines by a preponderance of the evidence that grounds exist for the denial or revocation, respectively. The decision of the hearing official shall be final.

(d) *Notice of decision.* The hearing official shall give written notice of the decision to the applicant or owner or operator of the facility and the reasons therefor. The notice shall be provided by certified mail, return receipt requested, as soon after the conclusion of the hearing as practicable, but not more than 30 business days thereafter.
(Ord. No. 2018-227, § 2(Exh. A), 3-22-2018)

Sec. 28-161. Rules; forms.

The director may issue rules and regulations for the operation of this article and shall promulgate application and permit forms. A copy of the forms rules, and procedures, if any, shall be maintained in the office of the director or on the city's website for inspection, and copies may be purchased at the fee prescribed by law.
(Ord. No. 2018-227, § 2(Exh. A), 3-22-2018)

Sec. 28-162. Notices.

(a) Any notice required or permitted to be given by the director or any other city office, division, department or other agency under this article to any applicant, operator or owner of a facility may be given either by personal delivery, electronic mail, or United States mail, postage prepaid, addressed to the most recent address as specified in the application for the permit most recently received by the director, or any notice of address change most recently received by the director. Notices mailed as above shall be deemed given upon their deposit in the United States mail.

(b) Any notice required or permitted to be given to the director by any person under this article shall not be deemed given until and unless it is received in the office of the director.

(c) It shall be the duty of each owner who is designated on the permit application and each operator to furnish notice to the director in writing of any change of residence or mailing address.
(Ord. No. 2018-227, § 2(Exh. A), 3-22-2018)

Sec. 28-163. Penalty; continuing violations.

(a) Violation of any provision of this article shall be punishable by a fine of $500.00. Each day any violation continues shall constitute and be punishable as a separate offense.

(b) The revocation of any permit shall not prohibit the imposition of a criminal penalty, and the imposition of a criminal penalty shall not prevent the revocation or suspension of a permit.
(Ord. No. 2018-227, § 2(Exh. A), 3-22-2018)

Sec. 28-164. Security and resident monitoring.

The director shall furnish a copy of each application for a correctional facility permit to the chief of police. The chief of police or his designees shall review the security and resident

monitoring plans and may make comments concerning any deficiencies to the owner, operator and governmental entity for which the correctional facility is to be operated, in the same manner as for notices in this article. The chief of police or his designees shall monitor all correctional facilities for compliance with the required security and resident monitoring plans and notify the owner, operator and applicable governmental entity of any alleged violations.
(Ord. No. 2018-227, § 2(Exh. A), 3-22-2018)

Sec. 28-165. Review to city council.

The director shall provide a review about this article to city council one year after it takes effect (March 22, 2018) and each year thereafter.
(Ord. No. 2018-227, § 2(Exh. A), 3-22-2018)

Secs. 28-166—28-170. Reserved.

ARTICLE V. JUVENILE CURFEW*

Sec. 28-171. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

Adult means an individual who has attained the age of 18.

Curfew hours means the period between the hours of 11:00 p.m. on any Sunday, Monday, Tuesday, Wednesday or Thursday and 6:00 a.m. of the following day, or between the hours of 12:00 a.m. (midnight) and 6:00 a.m. on any Saturday or Sunday, and, if recommended by the chief of police and ordered by the mayor, from time to time shall include the hours between 9:00 a.m. and 2:30 p.m. on a Monday, Tuesday, Wednesday, Thursday or Friday for such time as may be determined by the mayor, not to exceed 180 consecutive days.

Emergency means an unforeseen combination of circumstances or the resulting state that calls for immediate action. The term shall include but not be limited to a fire, natural disaster, vehicular accident, or a serious medical condition of sudden onset.

Guardian means the person who, under a court order, is the guardian of the person of a minor or the public or private agency with whom a minor has been placed by a court.

Minor means any person under 17 years of age.

Parent means the natural mother or father or adoptive mother or father of a minor.

Public place means any place to which the public or a substantial group of the public has access and includes, but is not limited to, streets, highways, and the common areas of schools, hospitals, apartments, office buildings, transport facilities, restaurants, theaters, game rooms, shops and shopping centers.
(Ord. No. 91-1543, § 2, 10-30-91; Ord. No. 07-563, § 3, 5-9-07; Ord. No. 2010-286, § 2, 4-21-2010; Ord. No. 2013-301, § 2, 4-10-2013; Ord. No. 2016-562, § 2, 7-20-2016; Ord. No. 2019-717, §§ 2, 3, 9-18-2019)

*__Editor's note—__In accordance with Texas Local Government Code § 370.002 (effective May 31, 1995), the provisions of this article are subject to a public hearing and review process at three-year intervals. Following public hearings conducted in 1998, City Council continued this article by adoption of Ord. No. 98-366, effective May 19, 1998. Following public hearings conducted in 2001, City Council continued this article by adoption of Ord. No. 01-409, effective May 15, 2001. Following public hearings conducted in 2004, City Council continued this article by adoption of Ord. No. 04-384, effective May 11, 2004. Section 2 of Ord. No. 07-563 continued this article with modifications as set out in §§ 3—5 of said ordinance, effective May 9, 2007. Following public hearings conducted in 2010, City Council continued this article by the adoption of Ord. No. 10-286, effective April 21, 2010. Following public hearings conducted in 2010, City Council continued this article by the adoption of Ord. No. 2013-301, effective April 10, 2013. Following public hearings conducted in 2016, City Council readopted this article by the adoption of Ord. No. 2016-562, effective July 20, 2016. Following public hearings conducted in 2019, City Council continued this article by the adoption of Ord. No. 2019-717 with modifications as set out in §§ 3—5 of said ordinance, effective September 18, 2019.

Sec. 28-172. Offenses.

(a) It shall be unlawful for any minor to knowingly remain, walk, run, stand, drive or ride about, in or upon any public place in the city during curfew hours.

(b) It shall be unlawful for the parent or guardian having legal custody of a minor to knowingly allow or permit the minor to be in violation of the curfew imposed in section 28-172(a) of this Code.

(c) Reserved.

(Ord. No. 91-1543, § 2, 10-30-91; Ord. No. 07-563, § 4, 5-9-07; Ord. No. 2010-286, § 2, 4-21-2010; Ord. No. 2013-301, § 2, 4-10-2013; Ord. No. 2016-562, § 2, 7-20-2016; Ord. No. 2019-717, §§ 2, 4, 9-18-2019)

Sec. 28-173. Defenses.

It is a defense to prosecution under section 28-172 of this Code that:

(1) The minor was accompanied by his or her parent or guardian;

(2) The minor was accompanied by an adult designated by his or her parent or guardian;

(3) The minor was on an errand made necessary by an emergency;

(4) The minor was attending a school, religious, or government-sponsored activity or was traveling to or from a school, religious, or government-sponsored activity;

(5) The minor was engaged in a lawful employment activity or was going directly to or coming directly from lawful employment;

(6) The minor was on the sidewalk directly in front of the place where he or she resides;

(7) The minor was on an errand directed by his or her parent or guardian;

(8) The minor was in a motor vehicle involved in intrastate or interstate transportation;

(9) The minor was engaged in, participating in, or traveling to or from any event, function or activity for which the application of section 28-172 of this Code would contravene his or her rights protected by the Texas or United States Constitution;

(10) The minor was married or had been married or had disabilities of minority removed in accordance with chapter 31 of the Texas Family Code;

(11) With respect to the hours between 9:00 a.m. and 2:30 p.m., the offense occurred during the school summer vacation break period of the school in which the minor is enrolled or on a holiday observed by the closure of classes in the school in which the minor is enrolled or that the minor has graduated from high school or received a high school equivalency certificate;

(12) With respect to the hours between 11:00 p.m. and 12:00 a.m. (midnight), the day following the offense is a holiday observed by the closure of classes in the school in which the minor is enrolled; or

(13) The minor was attending or was traveling to or from a recreational activity supervised by adults and sponsored by the city, a civic organization, or another similar entity that takes responsibility for the minor.

(Ord. No. 91-1543, § 2, 10-30-91; Ord. No. 07-563, § 5, 5-9-07; Ord. No. 2010-286, § 2, 4-21-2010; Ord. No. 2013-301, § 2, 4-10-2013; Ord. No. 2016-562, § 2, 7-20-2016; Ord. No. 2019-717, § 2, 9-18-2019)

Sec. 28-174. Supplemental effect.

The provisions of this article are supplemental and shall be cumulative with all other laws and ordinances applicable in any manner to juveniles. (Ord. No. 91-1543, § 2, 10-30-91)

Sec. 28-175. Enforcement.

(a) A police officer may issue a citation for a violation of this article if prior to issuing the citation:

(1) The officer has attempted to ascertain whether the minor is homeless, and the officer has concluded the minor is not homeless; and

(2) The officer has attempted to contact the minor's parent or guardian and has been unsuccessful.

(b) If the officer is able to contact the minor's parent or guardian, the officer shall transport the minor home to his parent or guardian without issuing a citation.

(c) If a police officer determines that a minor is homeless, the officer may not issue a citation and shall instead take the minor to a shelter or other safe harbor.

(d) In all instances, the officer may transport the minor home without issuing a citation.

(e) The Houston Police Department will provide enforcement procedures and data that relates to the enforcement of this article upon request in writing.

(f) At any time that daytime curfew hours are to be enforced, the city shall notify the public by posting curfew hours on the city's webpages for the municipal courts department, the police department, and the department of neighborhoods, and at such other locations as may be determined by the mayor, at least seven days before the daytime curfew becomes effective.
(Ord. No. 91-1543, § 2, 10-30-91; Ord. No. 2019-717, §§ 2, 5, 9-18-2019)

Sec. 28-176. Penalties.

(a) Each violation of this article shall be punishable by a fine not to exceed $50.00.

(b) Any minor charged with a violation of this article will be referred to the Municipal Courts Department Teen Court Program by order of the presiding judge.

(c) Upon making a court appearance, any minor charged with a violation of this article shall receive information from the office of the chief clerk of the municipal courts outlining the process for expunction of the violation.
(Ord. No. 2019-717, §§ 2, 6, 9-18-2019)

Secs. 28-177—28-200. Reserved.

ARTICLE VI. HOTELS*

DIVISION 1. LOCATION

Sec. 28-201. Definitions.

As used in this division the following words and terms shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

Bed and breakfast facility. A building on residential property with rooms for rent on a daily basis, with a resident owner, occupant or manager and no more than ten sleeping rooms for rent.

Central business district. The area included and bounded by Buffalo Bayou, Chartres Street, Texas Street, Dowling Street, Hadley Street, Hamilton Street, McGowen Street, Bagby Street, and Heiner Street as projected and extended to Sabine Street. Properties abutting and fronting on such streets are included in the district.

An area that has:

(1) A permanent public transit system;

(2) A demonstrated modal split in favor of public transportation;

(3) An equivalent level of municipally owned public parking; and

(4) Equivalent levels of vehicular traffic, as determined after a study by the director, may be added to the above-described area or established as a separate area and may, after a public hearing, be designated by the city council as a central business district.

Church. A building, whether situated within the city or not, in which persons regularly assemble for religious worship intended primarily for purposes connected with such worship or for propagating a particular form of religious belief.

*__Editor's note__—Ord. No. 2020-319, § 2, adopted April 15, 2020, changed the title of Article VI to read as herein as set out. Former Article VI was entitled Location of hotels.

Commission. The planning commission of the city.

Director. The director of the department of planning and development or the director's designee.

Health facility means a public health clinic or a multi-purpose center operated by the Houston Health Department or a public health clinic operated for the city by another entity.

Hotel. Any building or buildings in which the public may obtain transient sleeping accommodations. The term shall include hotels, motels, suites hotels, tourist homes, houses, or courts, inns, rooming houses, or other buildings where transient rooms are furnished for a consideration, but shall not include properties that are residential in character.

Library. A building or buildings, whether situated within the city or not, the primary purpose of which is the keeping of literary and artistic materials such as books, periodicals, newspapers, pamphlets, and prints for reference or reading.

Licensed day-care center. A facility licensed by the State of Texas, whether situated within the city or not, that provides care, training, education, custody, treatment or supervision for more than 12 children under 14 years of age, where such children are not related by blood, marriage or adoption to the owner or operator of the facility, for less than 24 hours a day, regardless of whether or not the facility is operated for a profit or charges for the services it offers.

Limited-access or *controlled-access highway.* Any highway, street or roadway in respect to which owners or occupants of abutting lands and other persons have no legal right of access to or from the same except at such points only and in such manner as may be determined by the public authority having jurisdiction over such highway, street or roadway.

Parking management area. A high density urban development with a minimum of 3,500,000 square feet of gross floor area and a minimum floor area ratio of one under a unified management entity that is situated in close proximity to permanent transit facilities.

Public park means a publicly owned or leased tract of land, whether situated in the city or not, designated, dedicated, controlled, maintained, and operated by the city or any political subdivision of the state for use by the general public for active or passive recreational or leisure purposes that contains improvements, pathways, access, or facilities intended for public recreational use. The term "public park" shall not include parkways, public roads, rights-of-way, esplanades, traffic circles, easements, or traffic triangles unless such tracts or areas contain and provide improvements or access to a recreational or leisure use by the public. A current list of public parks shall be compiled and maintained by the director of the parks and recreation department and shall be available for public inspection in the office of the city secretary.

Residence. Any permanent building or structure containing habitable rooms for non-transient occupancy, that is designed and used primarily for living, sleeping, cooking and eating, and is intended to be used or occupied as a dwelling place for residential purposes, whether or not attached, including homes, town homes, patio homes, duplexes, triplexes, quadraplexes, condominiums and apartments. Hotels, motels, boardinghouses, group homes, halfway houses, nursing homes, hospitals, nursery schools, schools and child care facilities shall not be considered residences.

Residential. Pertaining to the use of land for a residence, as defined in this section.

Residential area. The area around a hotel site that, within the residential test area, contains 50 percent or more residential tracts that are wholly or partially situated in the test area. For purposes of this computation, tracts that are improved with multi-unit residential occupancies, such as apartments and condominiums, shall be counted on the basis of each one-eighth acre of land, or any fraction thereof that is situated within the test area, being equal to one residential tract.

Residential restrictions. One or more restrictive covenants limiting the use of property to residential purposes that are contained or incorporated by reference in a properly recorded map, plat, replat, declaration, deed, judgment or other instrument filed in the county real property records, map records or deed records.

Residential street. A street where 30 percent or more of the frontage along both sides of the street within a distance of 250 feet or the distance to the nearest four-way public street intersection, whichever is greater, from the tract upon which a hotel would be located consists, in each direction along the blockface, of front, side or rear yards of residential uses. For purposes of this division, a major thoroughfare may also be classified as a residential street, in which case the residential street classification shall control.

Residential test area. An area determined by creating a closed curve with a radius as provided below from the boundaries of the proposed hotel tract. Each tract, other than the hotel tract, that is situated in whole or in part within the radius so created shall be a part of the residential test area. For a hotel with 50 or fewer separately rentable units, the applicable radius shall be 1,500 feet. For a hotel with 51 through 75 separately rentable units, the applicable radius shall be 1,000 feet.

Residential tract. Either of the following:

a. A tract that is included within a recorded residential subdivision subject to any enforceable, valid and unexpired residential restrictions upon which a residence exists or may be constructed pursuant to those valid and applicable residential restrictions; or

b. An unrestricted tract upon which a residence exists.

Service facilities. Facilities provided by a hotel for the service and convenience of customers, including, but not limited to, restaurant or food service, liquor sales, meeting rooms or swimming pool.

School. A building, whether situated within the city or not, where persons regularly assemble for the purpose of instruction or education, together with the playgrounds, stadia and other structures or grounds used in conjunction therewith. The term is limited to (1) public and private schools used for primary or secondary education, in which any regular kindergarten or grades one through 12 classes are taught, (2) special educational facilities in which students who have physical or learning disabilities receive specialized education in lieu of attending regular classes in kindergarten or any of grades one through 12, and (3) public and private institutions of higher education.

Suites hotel. A hotel as herein defined with all of the following characteristics:

(1) At least 75 separately rentable units, with service facilities; provided that the service facilities may not include a restaurant or cocktail lounge;

(2) Each rentable unit shall contain a kitchen with a full-size refrigerator, a range or range top with at least two burners, an oven (traditional, microwave or convection), sink, dishwasher, storage cabinets and counterspace for meal preparation;

(3) At least 75 percent of the rentable units shall be suites with a living room and a separately enclosed bedroom; and

(4) No units shall be rentable on less than a full twenty-four-hour basis.

Tract. A contiguous parcel of land under common ownership, whether situated within the city or not.

(Ord. No. 93-1641, § 2, 12-22-93; Ord. No. 94-1268, § 4, 11-22-94; Ord. No. 95-104, § 1, 1-25-95; Ord. No. 98-334, § 4, 4-29-98; Ord. No. 98-529, § 2, 6-30-98; Ord. No. 01-722, §§ 2, 3, 8-1-01; Ord. No. 2015-820, § 22, 8-26-2015; Ord. No. 2018-225, § 10, 3-22-2018; Ord. No. 2020-319, § 2, 4-15-2020)

Sec. 28-202. Locational requirements.

(a) It shall be unlawful for any person to construct any new hotel, to alter or remodel any existing hotel so as to add more sleeping rooms

thereto, or to convert any premises for use as a hotel unless the following requirements are met:

(1) The tract on which the hotel is situated shall have direct frontage on and take primary access from:

a. At least one major thoroughfare that is not a residential street;

b. The right-of-way of a limited access or controlled-access highway; or

c. A street or portion thereof that is not a residential street, that is striped or otherwise actually allows for at least four lanes of moving traffic, and that connects to a major thoroughfare that is not a residential street, provided that a hotel that is the result of the conversion of an existing apartment complex of 75 or more units to a suites hotel may be on a street or portion thereof that meets all of the requirements of this item 28-202(1)c. but that is a residential street.

All primary entrances to the property shall be at least 20 feet in width and shall be from the street identified above in this provision upon which the tract fronts and from which the tract takes primary access. Notwithstanding the foregoing, the hotel may have one or more secondary entrances to the tract from streets other than those identified in this paragraph, provided that the entrance lanes are not more than 15 feet in width and that the total number of secondary entrances does not exceed 75 percent of the total of primary entrances either in number or aggregate width.

(2) No portion of the tract on which the hotel, other than a hotel with 120 or more separately rentable units and service facilities is situated may have frontage on or take any access from any street on which any school, library, church, licensed day care center, health facility, or public park also has frontage, if the hotel tract would be within 750 feet of the school, library, church, licensed day care center, health facility, or public park tract. The distance shall be measured from the nearest point on the tract on which the hotel is situated to the nearest point on the tract on which the school, library, church, licensed day care center, health facility, or public park is situated.

(3) The property line of the tract on which a hotel with 50 or fewer separately rentable units is situated may not abut at any point any other tract that is in whole or in part residential in character. To the extent that any property line of the tract on which a hotel with 51 or more separately rentable units is situated abuts at any point any other tract that is in whole or in part residential in character, then the owner of the hotel shall provide a buffer along the entire length of that property line of the hotel. The buffer shall include the provision and maintenance of each of the following:

a. Hotel building(s) set back at least ten feet from the property line;

b. Canopy trees at least one per 100 lineal feet of property line;

c. Ornamental trees at least two per 100 lineal feet of property line;

d. Shrubs at least 16 per 100 lineal feet of property line; and

e. Solid wood or masonry fence at least eight feet in height.

Upon request by the applicant in writing, the director may waive any of the buffer requirements of item (3) above upon finding the following: (i) the project is a conversion of another premises to a suites hotel; (ii) the project, if a waiver is granted, will not be contrary to the public interest or detrimental to the public health, safety, or welfare; and (iii) the project, if a waiver is granted, will not result in a violation of any other applicable ordinance, regulation or statute.

(4) No premises located on a residential street shall be converted to a suites hotel other than an apartment complex with 75 or more units.

(5) A hotel, with or without service facilities, that has 75 or fewer separately rentable units may not be situated in a residential area unless the hotel is situated upon a tract that is contiguous to and abuts the right-of-way of a limited access or controlled access highway and takes its primary access from the frontage road of that highway, provided that the hotel may not take secondary access from any residential street.

(b) All determinations required under this section shall be based upon facts in existence on the day that the application for a building permit to construct, alter, or remodel the hotel is duly filed in the office of the building official with all plans, drawings, and other documents required for its consideration and processing under the terms of the *Building Code.* In the event that any applicant for a building permit to construct, alter, or remodel a hotel fails to initiate or prosecute the work such that the building permit expires under the terms of the *Building Code,* then a new building permit shall be required, and its issuance shall be subject to facts in existence at the time that the application is file for the new permit.
(Ord. No. 93-1641, § 2, 12-22-93; Ord. No. 98-529, § 3, 6-30-98; Ord. No. 01-722, § 4, 8-1-01; Ord. No. 2015-820, § 23, 8-26-2015; Ord. No. 2021-1037, § 20(Exh. I.26), 12-1-2021, eff. 4-1-2022)

Sec. 28-203. Penalty.

Violation of the provisions of this division is unlawful and shall be punishable as provided in section 1-6 of this Code.
(Ord. No. 93-1641, § 2, 12-22-93; Ord. No. 2020-319, § 2, 4-15-2020)

Sec. 28-204. Building permit.

It is the responsibility of the applicant for a building permit or other license, authorization or permit issued by the city to ensure that any construction, alteration or conversion of property for hotel use conforms to this division. No building permit or other license, authorization or permit shall be construed to allow any action in contravention of this division and any license, authorization or permit obtained that purports to allow any action in contravention of this division shall be void.

In addition to any other fees prescribed therein, each applicant for a building permit to construct, alter or remodel a hotel under the Building Code shall be required to pay the fee stated for this provision in the city fee schedule for inspection under this division, provided that the fee shall not be assessed for hotels that are exempt under section 28-205 of this division.
(Ord. No. 93-1641, § 2, 12-22-93; Ord. No. 02-399, § 59, 5-15-02; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2020-319, § 2, 4-15-2020)

Sec. 28-205. Exemptions.

It is a defense to prosecution under this division that the hotel is a bed and breakfast facility or is situated wholly within a central business district or a parking management area as defined herein. It is also a defense to prosecution under this division that the application for the building permit under which the hotel is being constructed, altered or remodeled was filed with the building official on or before June 16, 1992.
(Ord. No. 93-1641, § 2, 12-22-93; Ord. No. 2020-319, § 2, 4-15-2020)

Sec. 28-206. Appeal of denial of building permit.

Appeals from the denial of a building permit for noncompliance with this division shall be reviewed in the same manner as appeals from development plat disapprovals under section 42-87 of this Code.
(Ord. No. 93-1641, § 2, 12-22-93; Ord. No. 2020-319, § 2, 4-15-2020)

Sec. 28-207. Variance procedure.

(a) An applicant for a building permit may make written application to the director for a variance from the requirements of this division

other than those requirements which may be made the basis of a request for a waiver under item 28-202(3) of this Code. Application shall be made on a form supplied by the city and shall include:

(1) The nonrefundable fee stated for this provision in the city fee schedule;

(2) A statement of the specific provision of this division from which the variance is requested; and

(3) A statement of the extent of the variance sought and the specific facts and reasons that the applicant believes warrant the granting of the variance. This application package shall be reviewed by the director.

(b) A staff report regarding the variance request shall be provided to the commission prior to the meeting at which the variance will be considered.
(Ord. No. 93-1641, § 2, 12-22-93; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2020-319, § 2, 4-15-2020)

Sec. 28-208. Requirement for a public hearing.

(a) A request for a variance that includes relief from the provisions of item 28-202(2) of this Code shall be subject to a public hearing to be conducted by the commission under this section. A request for a variance that does not involve relief from those provisions shall not require a public hearing under this section.

(b) Notice of the public hearing shall be given at the expense of the applicant by:

(1) The publication of notice, in the form to be prescribed by the director, in a newspaper of general circulation in the city at least 15 days before the date of the public hearing;

(2) The mailing of notice at least 15 days before the date of the public hearing to the owners, as shown on the most recently approved tax roll, of property within a distance of 750 feet of the boundaries of the property that is the subject of the request for a variance from the requirements of item 28-202(2) of this Code;

(3) The mailing of notice at least 15 days before the date of the public hearing to all civic associations registered with the planning and development department whose boundaries include all or a portion of the area within 750 feet of the property that is the subject of the request for a variance from the requirements of item 28-202(2) of this Code; and

(4) The posting of notice upon a sign on the property for which the variance is requested at least 15 days before the date of the public hearing giving notice of the application for variance and the date of the public hearing. The director shall prescribe the dimensions of the sign and shall establish criteria for the location of the sign. If the property for which the variance is requested fronts on or has access to more than one public street, the director may require placement of more than one sign on the subject property upon a finding that more than one sign is necessary to provide adequate notice.

(c) The applicant for a variance subject to a public hearing shall provide the following information to the director at the time specified by the director:

(1) A certified list of the property owners to whom notice must be given pursuant to subsection (b) of this section; and

(2) For each property owner and registered civic association to whom notice must be given pursuant to subsection (b) of this section:

a. One stamped envelope addressed to each property owner and registered civic association; and

b. One copy of the notice of the public hearing in the form prescribed by the director.

(d) The director shall authorize the publication of the required notices for the public hearing after the commission establishes a date for the

hearing. After this authorization is given, the applicant must provide for the publication of the notice, in the form prescribed by the director, and provide the director with an affidavit of publication within one week of authorization.

(e) At the public hearing, any interested person may present testimony, orally or in writing, with respect to the application for variance.
(Ord. No. 93-1641, § 2, 12-22-93)

Sec. 28-209. Standards for variance.

(a) The commission is authorized to consider and grant variances from the provisions of this division by majority vote of those members present and voting, when the commission determines that the following conditions exist:

(1) The imposition of the terms, rules, conditions, policies and standards of this division would create an undue hardship by depriving the applicant or owner of the property of reasonable use of the land; and

(2) The circumstances supporting the granting of the variance are not the result of a hardship imposed or created by the applicant; and

(3) The intent and general purposes of this division will be preserved and maintained; and

(4) The granting of the variance will not be injurious to the public health, safety or welfare.

The commission shall not grant or deny any request for a variance on which a public hearing is required under section 28-208 of this Code until after the hearing has been conducted. After the close of any public hearing or other deliberation, the commission shall consider the application, the staff report, and any testimony and exhibits presented, and shall render its decision, which shall be in writing.

(b) The decision of the commission to grant or deny any variance shall be final, and no appeal may be taken.
(Ord. No. 93-1641, § 2, 12-22-93; Ord. No. 2020-319, § 2, 4-15-2020)

Sec. 28-210. Applicability of variance.

Any variance granted under the provisions of this division will apply only to the specific property and use upon which the commission was requested to grant a variance by the applicant. All variances granted shall be in writing, shall be signed by the secretary of the commission and be maintained as a permanent record of the commission.
(Ord. No. 93-1641, § 2, 12-22-93; Ord. No. 2020-319, § 2, 4-15-2020)

DIVISION 2. HUMAN TRAFFICKING TRAINING AND CERTIFICATION

Sec. 28-211. Definitions.

The following words, terms and phrases, when used in this division, shall have the same meanings as provided in this section, except where the context clearly indicates a different meaning:

Department means the department of administration and regulatory affairs.

Director means the director of the department and the director's designees.

Employee means any person who is directly employed in consideration of direct monetary wages.

Hotel means any building or buildings in which the public may, for a consideration, obtain sleeping accommodations. The term shall include hotels, motels, courts, inns, rooming houses, or other buildings where rooms are furnished for a consideration as well as the parking lot and other common areas, but shall not include hospitals, sanitariums, nursing homes, tourist homes, houses, boarding homes as defined in section 28-451 of this Code or lodging facilities as defined in section 28-601 of this Code.

Hotel operator means a person who owns, operates, manages or controls a hotel within the city.

Human trafficking means:

(1) Sex trafficking by way of the recruitment, harboring, transportation, provision or obtaining of a person

for the purpose of a commercial sex act in which the commercial sex act is induced by force, fraud, or coercion or in which the person induced to perform such act has not yet attained 18 years of age; or

(2) Labor trafficking by way of the recruitment, harboring, transportation, provision, or obtaining of a person for the purpose of labor or services through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.

Occupant has the same meaning as provided in section 44-101 of this Code.

(Ord. No. 2020-319, § 2, 4-15-2020)

Sec. 28-212. Hotels must provide human trafficking training; certification of training required.

(a) A hotel operator must provide at least 20 minutes of annual training to each hotel employee on how to identify human trafficking activities and victims and how to report human trafficking.

(b) Except as provided by subsection (c) of this section, the human trafficking training required by this section shall be approved by the mayor's office on human trafficking, completed either in person or online in the manner prescribed by rule or regulation promulgated pursuant to section 28-216 of this Code. The training shall include, but not be limited to, the following:

(1) An overview of human trafficking, including the experience of its victims, how and why human trafficking takes place in the hospitality industry, and how it is defined under federal law;

(2) Guidance on how to identify individuals who are most at risk for human trafficking;

(3) An explanation of the difference between labor and sex trafficking specific to the hotel sector;

(4) Guidance on the role of hospitality employees in reporting and responding to this issue;

(5) The contact information of appropriate agencies, including, but not limited to, the National Human Trafficking Hotline toll-free telephone number and text line, and the telephone numbers of the appropriate local law enforcement agencies; and

(6) If online, the training shall contain a pacing mechanism that requires the trainee to read all course material, view all videos, and complete all coursework before generating a certificate.

(c) Each trainee's completion of the training shall be documented with an attendance sheet or a certificate.

(d) The mayor's office on human trafficking shall publish a list of preapproved programs that satisfy the human trafficking awareness training requirements set forth in this section.

(e) After July 14, 2020, a hotel operator must provide the training described in subsection (b) of this section to any new employee within 30 days after the employee's hire.

(f) A hotel operator shall certify to the director by no later than March 31 of each year, beginning March 31, 2021, on a form promulgated pursuant to section 28-216 of this Code, that all of the hotel's employees that were hired by March 1 of the same year have completed the training required by this section.

(g) A late processing fee specified in the city fee schedule shall be assessed against a hotel operator that fails to comply with subsection (e) of this section. For purposes of avoiding this late processing fee, the date of the certification shall be the date that it is actually received by the director in complete and valid form; provided, however, that mailed submission forms shall be deemed to have been received on the postmark date, if legible.

(h) A hotel operator shall maintain records sufficient to verify and substantiate the hotel operator's full compliance with sections 28-212(a)

and (f) of this Code. A hotel operator shall produce the records described in this section to the director or to a police officer within 72 hours after receiving a request for the same.

(i) The director shall keep a record of all training certifications and attendance sheets received annually from hotel operators for at least two years.
(Ord. No. 2020-319, § 2, 4-15-2020)

Sec. 28-213. Display of hotline information.

(a) A hotel operator shall prominently display in clear view of all employees a sign in accordance with the standards set forth in rules promulgated by the director, including a statement that employees of the hotel must receive annual human trafficking training and information on how to recognize and report it.

(b) The sign required in subsection (a) above shall be posted in English, Spanish, and any other language that is spoken by at least 10% of the hotel's employees. A separate sign shall be posted for each required language.
(Ord. No. 2020-319, § 2, 4-15-2020)

Sec. 28-214. Retaliation or discrimination prohibited.

No hotel operator, his agent or representative, nor any employee may discharge from employment, discipline or otherwise punish, retaliate or discriminate against any person as a reprisal for the person's having made a good-faith report of a suspected act of human trafficking to that person's employer or any appropriate law enforcement agency or the National Human Trafficking Hotline.
(Ord. No. 2020-319, § 2, 4-15-2020)

Sec. 28-215. Penalty.

(a) The director shall inform a hotel operator of any discovered failure to comply with this section. Subsequently, the hotel operator must within 30 days either cure the violation or demonstrate to the director that the finding of non-compliance was incorrect. If, after 30 days, the director determines that the hotel operator has failed to cure the violation, the hotel will be subject to a penalty as set forth in subsection (b).

(b) This division is subject to the provisions of section 1-6 of this Code. The first violation of the provisions in this division shall be punishable by a fine of $100.00 as provided therein; the second and any subsequent violation by the same hotel shall be punishable by a fine of $500.00. Each day any violation continues shall constitute and be punishable as a separate offense.
(Ord. No. 2020-319, § 2, 4-15-2020)

Sec. 28-216. Rules and regulations.

The director is hereby authorized to promulgate rules and regulations consistent with the intent and purposes of the provisions of this article. A copy of all rules and regulations shall be maintained by the department, published on the department's website, and be made available in the office of the city secretary for inspection by the public, and copies shall be made available for purchase consistent with the fees prescribed by law.
(Ord. No. 2020-319, § 2, 4-15-2020)

Secs. 28-217—28-220. Reserved.

ARTICLE VII. HAZARDOUS ENTERPRISES*

DIVISION 1. IN GENERAL

Sec. 28-221. Scope and administration.

(a) This article imposes requirements upon the construction, expansion, and use of certain premises that constitute hazardous occupancies or other facilities falling within the definitions herein and under the Construction Code.

*__Editor's note—__Ord. No. 2020-1092, § 2(Exh. A), adopted December 16, 2020, amended Ch. 28, Art. VII in its entirety to read as herein set out. Former Article VII pertained to similar subject matter and derived from Ord. No. 96-1361, § 2, adopted December 8, 1996 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

(b) The planning official is authorized to promulgate rules and procedures for the efficient administration of this article, consistent with applicable state and federal laws and regulations.

(c) The requirements of this article shall not be construed to preclude the construction or expansion of a building or structure that is not an enterprise under this article.
(Ord. No. 2020-1092, § 2(Exh. A), 12-16-2020)

Sec. 28-222. Definitions.

As used in this article, the following words and terms shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

Applicant means the individual or entity filing an application under this article.

Department means the department of planning and development.

Effective date means December 16, 2020.

*Emergency management coordinator*shall have the meaning ascribed in chapter 13 of this Code. The term shall also include the emergency management coordinator's designee.

Enterprise means a use or activity on, or of, a tract of land or within a building or structure, in whole or in part, that includes inside and outside storage or use of hazardous materials exceeding the maximum allowable quantity limits (MAQs) per control area that constitutes a Group H-1, H-2 or H-3 occupancy as described in Section 307 of [the] *Building Code.* The term also includes any Group H-4 occupancy, in whole or in part, that includes storage (both interior and exterior) of hazardous materials exceeding the MAQs per control area as described in *Building Code* Section 307 if any highly toxic material is manufactured, processed, generated, stored or used. Otherwise, Group H-4 occupancies are not included. The term also does not include:

(1) Any public water or wastewater treatment facility that is being operated under regulations promulgated by state or federal agencies, including but not limited to the United States Environmental Protection Agency and the Texas Commission on Environmental Quality;

(2) Areas or spaces up to 500 square feet each in research labs operated under the authority of a hospital, college, or university, and classified as H-2, H-3 or H-4, with an aggregate maximum area of ten percent on each floor; or

(3) Any area or space containing fuel storage for generators, fire pumps, above or underground fuel storage associated with vehicle motor fuel-dispensing facilities.

Enterprise permit or *permit* means a current and valid license or document issued by the planning official authorizing the holder to operate an enterprise issued under this article. Except where specific reference is made to a restricted permit or an undertreated permit, the term "permit" includes a registration of a nonconforming enterprise.

Expansion means any addition or modification in construction of a building or structure that extends any exterior wall or roof of a building or structure and includes addition to the types of or increase to the authorized use or storage of quantities of hazardous materials present at the facility.

Fire marshal shall be a holder of a position described in section 34-56 of this Code or the holder's designee.

Hazardous materials means any chemicals or substances that are physical or health hazards as defined and classified in the Fire Code.

Highly toxic material means any substance defined as such in the *Fire Code.*

Land use test area means an area determined by creating a closed curve with a radius of 1,000 feet from the tract perimeters when testing for an unrestricted permit or 1,000 feet from the outer walls or an existing or proposed horizontal roof line of the building or structure in which hazardous materials will be manufactured, processed, generated, stored or used when testing for a restricted permit. Each tract, including the applicant's tract,

that is situated in whole or in part within the radius so created shall be a part of the land use test area.

Multifamily residential means the use of a tract, whether situated within the city or not, that contains three or more separate dwelling units, each with facilities for living, sleeping, cooking and eating.

Registration means an authorization of an enterprise that was previously a nonconforming enterprise as of December 18, 1996, or that became a nonconforming enterprise on the effective date of this ordinance.

Residential has the meaning ascribed in chapter 42 of this Code.

Restricted permit means a permit under which manufacture, processing, generation, storage or use of hazardous materials will take place only within the covered roof area of a building or structure that is so designated on the tract to which the permit pertains.

Review committee means the group of licensed or otherwise qualified technical professionals established by section 28-228 of this Code.

School means a building, whether situated within the city or not, where persons regularly assemble for the primary purpose of instruction or education, together with the playgrounds, stadia and other structures or grounds used in conjunction therewith. The term is limited to:

(1) Public and private schools used for primary or secondary education, in which any regular kindergarten or grades one through 12 classes are taught; and

(2) Special educational facilities in which students who have physical or learning disabilities receive specialized education in lieu of attending regular classes in kindergarten or any of grades one through 12.

Sensitive use means the use of a building, structure, or tract of land for a public park or community center, school, library, church, licensed day care center, licensed group day-care home, licensed family home, hospital, licensed continuing care facility, licensed convalescent and nursing facility, or any related institution.

Tract means a contiguous parcel or parcels of land under common ownership or control, whether situated within the city or not.

Unrestricted permit means a permit under which the manufacture, processing, generation, storage or use of hazardous materials may take place both within buildings or structures and out of doors on the tract to which the permit pertains.

(Ord. No. 2020-1092, § 2(Exh. A), 12-16-2020; Ord. No. 2021-1037, § 20(Exh. I.27), 12-1-2021, eff. 4-1-2022)

Sec. 28-223. Prohibited activities.

(a) It shall be unlawful for any person or entity to own, use or operate or to cause to be used or operated any enterprise located within the city unless there is an approved enterprise permit. An enterprise permit is valid only for operation as authorized in this article for the type of permit held.

(b) The enterprise permit shall be conspicuously posted upon the tract in a manner prescribed by the planning official. In any prosecution under this article, it shall be presumed that there is no enterprise permit if one is not properly posted.

(Ord. No. 2020-1092, § 2(Exh. A), 12-16-2020)

Sec. 28-224. Provisions cumulative.

The provisions of this article are cumulative of all other provisions of this Code and other city ordinances, including, without limitation, the Construction Code and the Fire Code, as well as all applicable state and federal laws and regulations. Compliance with this article does not excuse compliance with any other law, and permit holders are required to obtain all other permits, licenses and authorizations required by law.

(Ord. No. 2020-1092, § 2(Exh. A), 12-16-2020)

Sec. 28-225. Penalty and enforcement.

(a) Violation of this article is unlawful. Any person violating any provision of this article shall, upon conviction, be fined not less than $100.00 nor more than $2,000.00 for each violation. Each day that any violation continues shall constitute and be punishable as a separate offense.

(b) The fire marshal and the planning official shall each have the authority to enforce violations of this article.

(c) The remedies set forth in this article are cumulative of all other remedies available to the city in the enforcement of this article. The city attorney may institute any legal or equitable remedy to enforce this ordinance or enjoin or otherwise cause the abatement of any condition described in this article, and to recover all expenses incurred in connection therewith, including without limitation, administrative and legal expenses, attorneys' fees and costs, and civil penalties by law.
(Ord. No. 2020-1092, § 2(Exh. A), 12-16-2020)

Sec. 28-226. Fees and costs.

(a) Payment of all applicable fees as set forth in the city fee schedule is a condition of the acceptance and processing of any application under this article.

(b) The planning official may, from time to time, with the assistance of the department of finance, pursuant to Administrative Procedure 4-9, prepare and submit for the mayor's approval and placement on the city council agenda a recommendation for revision of the fees charged in this article. If city council authorizes revisions to the city fee schedule, applicant shall pay such fees for services performed by the department under this chapter. The fees approved under this provision shall be included in the city fee schedule.

(c) Any person who commences any work on a tract or within a building or structure for use as an enterprise before obtaining an enterprise permit shall pay the fee established pursuant to section 42-54(b) of this Code, in the amount stated in the city fee schedule.

(d) Each applicant for a modification shall be responsible for the payment of all costs for any expert deemed necessary by the review committee for the evaluation of the modification request. The city may require the applicant to provide to the city a reasonable amount to be placed in escrow for payment of such costs. Full payment shall be made within 30 days after the date of written notice from the city official, and the permit for the modification will not be released by the planning official until full payment is received by the city. If full payment is not made as provided herein, the modification shall be deemed denied, and the city may proceed with collection of any costs due under this section.
(Ord. No. 2020-1092, § 2(Exh. A), 12-16-2020)

Sec. 28-227. Notice; certain information deemed confidential by law.

(a) As soon as practicable following receipt of a complete application for an enterprise permit under section 28-231 of this Code, or a modification request under division 3 of this article, the planning official shall:

(1) Cause a map of the land use test area to be created;

(2) Provide notice of the application to:

a. Each district council member in whose district any portion of the tract included in the enterprise permit application or modification request is located, and

b. Each neighborhood association with defined boundaries registered with the department of neighborhoods in which any portion of the lot or tract included in the enterprise permit application or modification request is located.

(b) Certain information that is submitted by an applicant for an application including supporting information submitted for an enterprise permit, or utilized for notice, issuance of an enterprise permit, or enforcement of this article may be confidential by law or not subject to

public inspection, including but not limited to section 418.178 of the Texas Government Code, or other homeland security laws.
(Ord. No. 2020-1092, § 2(Exh. A), 12-16-2020)

Sec. 28-228. Establishment of the review committee.

There is hereby created a review committee to evaluate and make technical findings on a modification request submitted in accordance with division 3 of this article. Membership of the committee shall include the planning official, the building official, the fire marshal, and the emergency management coordinator. The committee may establish procedures necessary for the conduct of its business and may conduct its review via electronic mail or in-person meetings. In order to move a request for modification of standards forward for further review, unanimous consent of all members is required.
(Ord. No. 2020-1092, § 2(Exh. A), 12-16-2020)

Secs. 28-229—28-230. Reserved.

DIVISION 2. PERMITS

Sec. 28-231. Enterprise permit applications.

(a) Enterprise permits are categorized as restricted, unrestricted, or registration. A permit may only be issued to the owner of the tract where the enterprise will be located. The owner may designate, in writing and submitted with the application, an individual or company to represent them as applicant. A separate application and permit are required for each tract.

(b) An applicant who desires to obtain a permit under this article shall file an application with the department. The application shall be in the form prescribed by the planning official and shall include:

(1) The non-refundable fee set forth for this provision in the city fee schedule;

(2) Proof of ownership of the tract in the form of a certified copy of a deed, lease, or other evidence of legal title. If the applicant is not the title owner of the tract where the enterprise is located, proof that the applicant is authorized to act for the owner.

(3) A survey sealed by a state licensed surveyor, drawn to scale, and showing the exact location (existing or proposed) of any building or structure, or the location on the tract, in which hazardous materials will be manufactured, processed, generated, stored, or used.

(4) The specific occupancy divisions within Class H for the enterprise.

(5) If the application is for a registration of a nonconforming enterprise, the applicant shall provide evidence to the satisfaction of the planning official that one or more of the following conditions existed on the effective date:

a. The tract was in operation or in process of construction for use as an enterprise;

b. The tract was served by rail service; or

c. The active status of out of doors manufacture, processing, generation, storage, or use of hazardous materials.

(6) Any other information reasonably required by the planning official for the purpose of processing and evaluating the application under the requirements of this article.
(Ord. No. 2020-1092, § 2(Exh. A), 12-16-2020)

Sec. 28-232. Issuance or denial of an enterprise permit.

(a) The planning official shall review and approve an application for an enterprise permit meeting the standards set forth in this article unless:

(1) The information provided in the application is materially false or incomplete, or the applicant has failed in any material respect to comply with this article;

(2) The applicant has had a permit revoked for operations on the tract or any portion

thereof during the two-year period preceding the date of filing of the application; or

(3) The land use test area around a restricted or unrestricted permit meets one or more of the follow conditions:

a. One-third or more of the tracts within the land use test area are being used for residential purposes. In computing the foregoing percentage, any tract being used for multifamily residential purposes shall be counted as being equal to one tract for each eight dwelling units or fraction thereof upon the tract. Any tract other than the applicant's tract that is not improved with one or more buildings or structures shall not be included in the computation; or

b. Any portion of the tract upon which a sensitive use is situated falls within the land use test area.

Evaluation of these conditions shall be made based upon the land uses that existed on the date the application is filed with the department.

(b) When an application cannot be approved under this section, the planning official shall send notice via electronic mail to the applicant stating the reasons the application was denied. An applicant of an application denied pursuant to subsection (a)(3) of this section may submit written notice of intent to file a modification application, or a complete modification application, under the provisions of division 3 of this article within 90 business days of the date notice of the denial is sent by the planning official. A modification application will be held open for one year from the date of the notice of intent to file a modification application or a complete modification application is filed with the planning official. After a period of one year, an incomplete application for modification will be closed. An extension to complete an application for modification may be requested in writing by the applicant and may be granted by the planning official for a period not to exceed one year from the original date of the notice of intent to file a modification application or a complete modification application. Other than the opportunity to file a modification application, there shall be no appeal from the denial of an application.

(c) Each enterprise permit issued pursuant to this article shall include:

(1) The identity, type of legal entity, and legal address of the owner;

(2) The tract to which the permit pertains;

(3) The type of enterprise permit: restricted, unrestricted, or registration;

(4) A detailed statement identifying the historical and current status of the enterprise as:

a. An existing nonconforming enterprise established prior to February 16, 1997;

b. A conforming restricted enterprise registered between February 15, 1997 and the effective date;

c. A conforming restricted enterprise registered after the effective date;

d. A conforming unrestricted enterprise registered after the effective date; or

e. An existing unrestricted enterprise that is nonconforming as a result of outside storage exceeding the MAQs as of the effective date.

(5) A detailed statement of all activities authorized by the permit;

6) A detailed listing of all current and pre-existing authorizations and exemptions under which the permittee is operating; and

(7) Any other information required by the planning official, building official, or fire marshal that will facilitate identification of activities authorized by or subject to the permit.

(Ord. No. 2020-1092, § 2(Exh. A), 12-16-2020)

Sec. 28-233. Transfer.

Upon any change of ownership of the tract to which it pertains, an enterprise permit may be transferred to the new owner. A request to transfer ownership shall be made by the applicant in the form prescribed by the planning official and accompanied by:

(1) Payment of the non-refundable fee stated for this provision in the city fee schedule; and

(2) Proof of the change of ownership of the tract.

(Ord. No. 2020-1092, § 2(Exh. A), 12-16-2020)

Sec. 28-234. Revocation.

(a) The planning official may revoke an enterprise permit if the planning official determines:

(1) The permit application was materially false or incomplete;

(2) The permit was issued through error;

(3) The permit holder has failed to comply with any applicable provision of this article; or

(4) The use of the tract as an enterprise has been discontinued for a continuous period of 180 days.

(b) The planning official shall send notice to the permit holder of a revocation a minimum of 30 days before the date the permit is scheduled for revocation. Notice shall be sent by United States mail, first class, certified, return receipt requested, addressed to the last known address of the permit holder; provided that the notice shall be posted at the tract if returned by the U.S. Postal Service. The notice shall describe the basis of the revocation under subsection (a) of this section and the timeframe and method for the applicant to file a written request for the planning official to reconsider the revocation.

(c) A permit holder that has received a notice of revocation may, within the above-referenced 30-day notice period, present information to the planning official in writing to refute any determination made under subsection (a) of this section that is cited as a basis for permit revocation.

(d) If the grounds for revocation are based upon item (3) in subsection (a) of this section, and if the permit holder demonstrates to the satisfaction of the planning official that the violation was not intended and that effective measures have been taken to prevent a reoccurrence, then the planning official may suspend the permit in lieu of revocation. A suspension would continue, at a minimum, until the planning official has determined that the violation has been or will be adequately addressed.

(e) A decision by the planning official to suspend or revoke a permit under this section shall be made in writing and include the basis of the revocation under subsection (a) of this section. The decision of the planning official shall be final.

(f) An application for a permit following revocation of an enterprise permit at the same tract shall be treated as a new permit application under this article. Land use determinations shall be based upon uses in existence at the time the new permit application is filed.

(g) No application for a new permit or for expansion of operations under a registration that is required under this division shall be considered by the planning official while a revocation proceeding relating to the same tract is in progress under this section. In that instance, the planning official shall notify the applicant that action on the application will be withheld pending the resolution of the revocation proceeding.

(Ord. No. 2020-1092, § 2(Exh. A), 12-16-2020)

Sec. 28-235. Registrations.

(a) To assure public safety and emergency response effectiveness, hazardous enterprises that become non-conforming due to amendment of this article shall review their current hazardous enterprise permit and determine whether they may easily become conforming either as a restricted or unrestricted enterprise. If the enterprise would not qualify under the new rules, then in lieu of or in the alternative to

seeking a restricted permit or an unrestricted permit, an enterprise in existence or in process of construction on the effective date may seek a registration pursuant to this section, by making application as required under sections 28-231 through 28-233 of this article.

(b) An enterprise in existence or in process of construction on the effective date may continue to operate without a permit for a 60-day period following the effective date during which an application may be filed with the planning official, and thereafter may be authorized by the planning official to continue to operate while the city is acting upon the application.

(c) Applications for registrations shall not be subject to the land use criteria specified in section 28-232 of this Code and shall be granted or denied without notice and a hearing as otherwise provided in this division. However, if the applicant alternatively seeks a restricted permit or an unrestricted permit, then the applicant shall be subject to all criteria of this division with respect to the application insofar as it seeks a restricted or unrestricted permit.

(d) For purposes of this section, a building or structure is considered to be in process of construction when another permit required for its construction is applied for with the jurisdiction having authority to issue the other permit or if no other permit is required, when actual work commences on the ground.

(e) The filing period for a registration may be extended by the planning official if the applicant demonstrates, to the satisfaction of the planning official, that the enterprise was in fact in operation on the effective date and that the applicant's failure to timely file was based upon an error or misunderstanding and not the result of conscious indifference to the requirements of this article. A decision to extend a filing period is within the sole discretion of the planning official and is not subject to further appeal.
(Ord. No. 2020-1092, § 2(Exh. A), 12-16-2020)

Sec. 28-236. Limitations upon registrations.

(a) A registration authorizes enterprise operations within a building or structure identified for that use on the registration.

(b) A registration authorizes out of doors manufacture, processing, generation, storage or use of hazardous materials on the tract only if so designated on the registration.

(c) Any expansion of a building or structure to which the registration pertains, conversion of any other building or structure to use for enterprise operations or construction of any additional building or structure for enterprise operations shall be authorized only on the following basis:

(1) If the tract had rail service on the effective date and the rail service is designated on the registration, then no restriction exists.

(2) If the tract did not have rail service on the effective date, then construction or expansion will only be authorized following the application process for an enterprise permit under this article, except that the residential land use test criteria of section 28-232 of this Code shall be adjusted so that:

a. The test shall be based upon two-thirds or more, rather than one-third or more, of the tracts if the tract takes its street access exclusively from a major thoroughfare; or

b. The test shall be based upon one-half or more, rather than one-third or more, of the tracts if the tract does not take access exclusively from a major thoroughfare.

(d) The tract upon which an enterprise operating under a registration is situated may not be expanded, unless the enterprise seeks and obtains a new restricted or unrestricted permit.
(Ord. No. 2020-1092, § 2(Exh. A), 12-16-2020)

Sec. 28-237. Restricted enterprise permits—Expansion or construction.

A restricted enterprise permit is valid only for enterprise operations within the building or structure identified thereon for that purpose. Any expansion of the building or structure to

which the enterprise permit pertains, conversion of any other building or structure to use for enterprise operations or construction of any additional building or structure for enterprise operations shall require the application for and issuance of a new permit under this article. The holder of a restricted enterprise permit may not manufacture, process, generate, store, or use hazardous materials out of doors upon the tract without first obtaining an unrestricted enterprise permit.
(Ord. No. 2020-1092, § 2(Exh. A), 12-16-2020)

Sec. 28-238. Unrestricted enterprise permits—Expansion or construction.

The holder of an unrestricted enterprise permit may construct additional buildings or structures, convert the use of buildings or structures or undertake expansion of existing buildings or structures upon the tract to which the enterprise permit pertains without first obtaining a new permit under this article. The holder of an unrestricted enterprise permit may not expand the size of the tract to which the permit pertains without first obtaining a new unrestricted enterprise permit for the expanded tract.
(Ord. No. 2020-1092, § 2(Exh. A), 12-16-2020)

Secs. 28-239, 28-240. Reserved.

DIVISION 3. MODIFICATION TO STANDARDS.

Sec. 28-241. In general.

(a) A modification to the standards of this article may be requested by an applicant within the time period described in section 28-232(b) of this Code. The requested modification must meet or exceed the level of public safety standards enumerated in section 28-242 of this Code, and as otherwise required in this article or other chapters of this Code or state and federal law.

(b) The planning official is authorized to issue an enterprise permit for an application denied previously based upon the criteria of section 28-232 of this Code when a modification is approved under the provisions of this division. To qualify for a modification of these standards, the applicant shall:

(1) File an application in the form prescribed by the planning official;

(2) Include the material provided with the previously denied enterprise permit application;

(3) Provide technical information and other relevant documentation of specific evidence or data that justifies the required findings under subsection (c) of section 28-242 of this Code; and

(4) Pay all applicable fees as set forth for this provision in the city fee schedule, which shall include the fee for review of plans using alternative methods of construction, if the modification request includes alternative methods.

(c) Any modification approved under the provisions of this division shall apply only to the specific enterprise permit considered with the application and shall not constitute a change of this article, or any part hereof, or establish any policy or precedent, rule or regulation contrary to the provisions of this article.
(Ord. No. 2020-1092, § 2(Exh. A), 12-16-2020)

Sec. 28-242. Procedure and standards.

(a) Within five business days after receiving a complete application pursuant to section 28-241 of this Code, the planning official shall send an electronic copy of the modification request to the building official and fire marshal, for a technical review of the efficacy of the alternate materials or methods proposed.

(b) The building official and fire marshal shall submit their recommendations on the technical review detailed in subsection (a) of this section to the planning official within ten business days after the date their recommendations are completed. The planning official shall distribute the modification request and the technical review recommendation to the review committee within five business days after receipt of same.

(c) The review committee may request additional evaluation by other city departments or divisions, or hire experts to provide advice, and may request that the consulting experts or the applicant attend one or more meetings of the review committee to provide additional information for their thorough review. The review committee shall consider the modification request, the technical review recommendations of the building official and fire marshal, and the following standards:

(1) The approval of the modification would:

a. Not result in a violation of any other applicable ordinance, regulation, or statute;

b. Not be injurious to the public health, safety, and welfare;

c. Not impose an undue financial or administrative burden on the city; and

d. Be in accordance with the spirit and intent of this article.

(2) The applicant has established appropriate mitigation and safeguards that will be provided and maintained at the facility so the manufacturing, processing, generation, storage, or use of the hazardous material is not reasonably expected to pose a hazard to human health or the environment;

(3) There are no reasonable alternatives to granting the modification that would have an equal or lesser impact on the city, the applicant, residents of surrounding neighborhoods, or to a sensitive use; and

(4) The operation and location of the enterprise is not reasonably expected to prohibit the ability of the city to implement its emergency management plan or otherwise execute the duties of the office of emergency management described in chapter 13 of this Code.

(d) A unanimous recommendation of the review committee is required to grant a modification from the standards of this article. The review committee is authorized to impose any condition on the enterprise permit for which a modification is requested that the review committee determines is reasonably related to the request and furthers the intent and purpose of this article, specifically including a requirement to sign and submit a release and indemnification as determined by the review committee in favor of the city.

(e) The planning official shall advise the applicant of the decision by the review committee or request more information on behalf of the review committee within 30 business days after the date a complete application is submitted to the planning official. The decision of the review committee shall be final.

(f) The planning official shall provide an electronic copy of the approved modification application to applicant and the review committee within five business days after approval by the committee.
(Ord. No. 2020-1092, § 2(Exh. A), 12-16-2020)

Secs. 28-243—28-250. Reserved.

ARTICLE VIII. SEXUALLY ORIENTED BUSINESS EMPLOYEES, CONDUCT AND OPERATIONS

DIVISION 1. GENERALLY

Sec. 28-251. Definitions.

As used in this article, the following words and terms shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

Conduct any business in an enterprise. Any person who does any one or more of the following shall be deemed to be conducting business in an enterprise:

(1) Operates a cash register, cash drawer or other depository on the premises of the enterprise where cash funds or records of credit card or other credit transactions generated in any

manner by the operation of the enterprise or the activities of the premises of the enterprise;

(2) Displays or takes orders from any customer for any merchandise, goods, entertainment or other services offered on the premises of the enterprise;

(3) Delivers or provides to any customer any merchandise, goods, entertainment or other services offered on the premises of the enterprise;

(4) Acts as a door attendant to regulate entry of customers or other persons into the premises of the enterprise; or

(5) Supervises or manages other persons in the performance of any of the foregoing activities on the premises of the enterprise.

Customer. Any person who:

(1) Is allowed to enter an enterprise or any portion of an enterprise in return for the payment of an admission fee, membership fee or any other form of consideration or gratuity;

(2) Enters an enterprise or any portion of an enterprise and purchases, rents or otherwise partakes of any merchandise, goods, entertainment or other services offered therein; or

(3) Is a member of and on the premises of an enterprise operating as a private or membership club or an enterprise that reserves any portion of the premises of the enterprise as a private or membership club.

Director. The director and such employee(s) of the department of administration and regulatory affairs as he may designate to perform the duties of the director under this article.

Employee. Any person who renders any service whatsoever to the customers of an enterprise, works in or about an enterprise or who conducts any business in an enterprise and who receives or has the expectation of receiving any compensation from the operator, or customers of the enterprise. By way of example, rather than limitation, the term includes the operator and other management personnel, clerks, dancers, models and other entertainers, food and beverage preparation and service personnel,

door persons, bouncers, and cashiers. It is expressly intended that this definition cover not only conventional employer-employee relationships but also independent contractor relationships, agency relationships, and any other scheme or system whereby the 'employee' has an expectation of receiving compensation, tips, or other benefits from the enterprise or its customers in exchange for services performed.

Enterprise. An adult bookstore, adult cabaret, adult encounter parlor, adult lounge, adult modeling studio, adult movie theater or any establishment whose primary business is the offering of a service or the selling, renting or exhibiting of devices or any other items intended to provide sexual stimulation or sexual gratification to its customers, and which is distinguished by or characterized by an emphasis on matter depicting, describing or relating to specified sexual activities or specified anatomical areas. The term "enterprise" shall include any premises for which a permit is required under either or both of articles II and III of this chapter. However, the term 'enterprise' shall not be construed to include:

(1) Any business operated by or employing licensed psychologists, licensed physical therapists, licensed athletic trainers, licensed cosmetologists, or licensed barbers performing functions authorized under the licenses held;

(2) Any business operated by or employing licensed physicians or licensed chiropractors engaged in practicing the healing arts; or

(3) Any retail establishment whose major business is the offering of wearing apparel for sale to customers.

Entertainer. Any employee of an enterprise who performs or engages in entertainment.

Entertainment. Any act or performance, such as a play, skit, reading, revue, fashion show, modeling performance, pantomime, role playing, encounter session, scene, song, dance, musical rendition or striptease that involves the display or exposure of specified sexual activities or specified anatomical areas. The term "entertainment" shall include any employee or entertainer exposing any specified anatomical areas or engaging in any specified sexual activities whatever in the presence of customers.

Manager. Any person who supervises, directs or manages any employee of an enterprise or any other person who conducts any business in an enterprise with respect to any activity conducted on the premises of the enterprise, including any "on-site manager."

On-site manager. A person charged by an owner or operator of an enterprise with the responsibility for direct supervision of the operation of the enterprise and with monitoring and observing all areas of the enterprise to which customers are admitted at all times during which the enterprise is open for business or customers are on the premises of the enterprise.

Operator. The manager or other natural person principally in charge of an enterprise.

Owner or *owners.* The proprietor if a sole proprietorship, all general partners if a partnership, or the corporation if a corporation.

Permit. A current, valid permit issued by the director pursuant to the terms of this article.

Separate area. Any portion of the interior of an enterprise separated from any other portion of an enterprise by any wall, partition or other divider.

Specified anatomical areas:

(1) Less than completely and opaquely covered:

a. Human genitals, pubic region or pubic hair;

b. Buttock;

c. Female breast or breasts or any portion thereof that is situated below a point immediately above the top of the areola; or

d. Any combination of the foregoing; or

(2) Human male genitals in a discernibly erect state, even if completely and opaquely covered.

Specified sexual activities:

(1) Human genitals in a discernible state of sexual stimulation or arousal;

(2) Acts of human masturbation, sexual intercourse or sodomy;

(3) Fondling or other erotic touching of human genitals, pubic region or pubic hair, buttock or female breast or breasts; or

(4) Any combination of the foregoing.

(Ord. No. 97-75, § 4, 1-15-97; Ord. No. 2010-721, § 13, 9-15-2010, eff. 10-4-2010)

Sec. 28-252. Cumulative.

The provisions of this article are expressly made cumulative of other applicable laws including, without limitation, articles II and III of this chapter.

(Ord. No. 97-75, § 4, 1-15-97)

DIVISION 2. PERMITS

Sec. 28-253. Permit required.

(a) It shall be unlawful for any person who does not hold a permit to act as an entertainer or a manager of or in an enterprise.

(b) It shall be the duty of the operator and owners of each enterprise to ensure that no person acts as an entertainer or manager of or in the enterprise unless that person holds a permit.

(Ord. No. 97-75, § 4, 1-15-97)

Sec. 28-254. Issuance of permits.

(a) Any person who desires to obtain an original or renewal permit shall make application to the director in person at the offices of the director between the hours of 8:00 a.m. and 3:00 p.m., Monday through Friday, city observed holidays excepted. The application shall be made under oath upon a form prescribed by the director and shall include:

(1) The name, home street address and mailing address (if different) of the applicant;

(2) Proof of the date of birth of the applicant and the identity of the applicant, including at least one photographic identity card issued by a governmental agency;

(3) A list of any criminal charges pending, convictions, and time of service in jail or prison as related to any applicable offense that is specified in section 1-10 of this Code; and

(4) Two passport-type photographs of the applicant of a size specified by the director, which shall become part of the photographic identity cards if a permit is issued.

(b) Each application shall be accompanied by the nonrefundable processing fee stated for this provision in the city fee schedule. Each applicant shall be required to provide fingerprints to be used to verify the applicant's identity and criminal history information. Each applicant shall sign a waiver and authorization form authorizing the director to request on behalf of the applicant criminal history reports from the Texas Department of Public Safety and any appropriate federal agency.

(c) The director shall issue the permit within ten days from the date of filing of the application unless he finds that the applicant has been convicted of or spent time in jail or prison for an offense specified in the applicable provisions of section 1-10 of this Code within the time specified therein. If the application is not granted, then the applicant shall be mailed notice of the grounds and of their right to provide evidence and request a hearing as provided by section 1-9(a) of this Code, within ten days from the date of filing of the application.

(d) Each permit issued by the director shall consist of two photographic identification cards, a personal card and an on-site card.

(e) Any applicant whose application is denied and who requests a hearing on the denial shall be granted a hearing within ten days following the receipt of the request by the director. The hearing shall be conducted as provided in section 1-9(c) of the Code. If the hearing officer rules against the applicant, then the applicant shall be given notice

of the right to seek an injunction or judicial review of the decision as provided in section 1-9 of the Code and applicable laws, including Title 2 of the Texas Occupations Code.

(f) In the event that the director fails to issue or deny a permit application within the time specified in subsection (c) or to provide a hearing within the time specified in subsection (e), then the applicant shall, upon written request, be immediately issued a temporary permit which shall be valid until the third day after the applicant is given notice of the decision of the director or the hearing officer.

(g) If any personal card or on-site card is lost or stolen, the holder thereof shall immediately notify the director and request a replacement, which shall be issued for the fee stated for this provision in the city fee schedule within three days following verification of the identity of the holder.

(h) No permit application shall be accepted nor shall a permit be issued to any person who does not provide proof that he is at least 18 years old. Any permit issued by virtue of any misrepresentation or error to any person under age 18 shall be void.
(Ord. No. 97-75, § 4, 1-15-97; Ord. No. 02-528, §§ 12b., c., 6-19-02; Ord No. 2010-721, §§ 14—16, 9-15-2010, eff. 10-4-2010; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 28-255. Term, transfer, amendment.

(a) A permit is valid for two years from the date of its issuance.

(b) A permit is personal to the named permit holder and is not valid for use by any other person.

(c) Each permit holder shall notify the director of his new address within ten days following any change of his address.
(Ord. No. 97-75, § 4, 1-15-97; Ord. No. 2010-721, § 17, 9-15-2010, eff. 10-4-2010)

Sec. 28-256. Display.

(a) Each manager or entertainer shall conspicuously display his personal card upon his person at all times while acting as an entertainer or manager of or in an enterprise.

(b) Each manager or entertainer shall provide his on-site card to the manager or on-site manager in charge of the enterprise to hold while the manager or entertainer is on the premises.

(c) In any prosecution under section 28-253 of this Code, it shall be presumed that the actor did not have a permit unless the permit was in display as required under section (a) of this subsection.
(Ord. No. 97-75, § 4, 1-15-97)

Sec. 28-257. Revocation.

In the event that the director has reasonable grounds to believe that any permit holder has been convicted of or spent time in jail or prison for an offense as specified in the applicable provision of section 1-10 of this Code within the time specified therein, then the director may revoke the permit following a notice of the grounds and a hearing as provided in section 1-9(b) of this Code. In the event that the hearing officer determines that the permit should be revoked, he shall issue his final decree to be effective on the 30th day following the mailing of notice of the decree to the permit holder in order to allow the permit holder an opportunity to seek an injunction or judicial review of the decision before the permit must be surrendered as authorized in section 1-9 of this Code and applicable laws, including Title 2 of the Texas Occupations Code.
(Ord. No. 97-75, § 4, 1-15-97; Ord. No. 2010-721, § 18, 9-15-2010, eff. 10-4-2010)

DIVISION 3. CONDUCT OF ENTERTAINERS

Sec. 28-258. Conduct of employees.

(a) It shall be unlawful for any entertainer to touch a customer or the clothing of a customer while engaging in entertainment or while exposing any specified anatomical areas or engaging in any specified sexual activities.

(b) It shall be unlawful for any entertainer to approach closer than three feet to any customer while engaging in entertainment or while exposing any specified anatomical areas or engaging in any specified sexual activities.

(c) It shall be unlawful for any employee to engage in entertainment or to expose any specified anatomical areas or engage in any specified sexual activities in the presence of a customer in any separate area within an enterprise to which entry or access is blocked or obscured by any door, curtain or other barrier separating entry to such area from any other area of the enterprise.
(Ord. No. 97-75, § 4, 1-15-97)

DIVISION 4. PENALTIES

Sec. 28-259. Penalties.

(a) The violation of any provision of this article, including the doing of anything which is herein prohibited or declared to be unlawful or

the failure to do anything or perform any duty which is required herein, shall be punishable as provided by Section 243.010(b) of the Local Government Code. Each day that any violation shall continue shall constitute and be punishable as provided by Section 243.010(b) of the Local Government Code. Each day that any violation shall continue shall constitute and be punishable as a separate offense.

(b) The revocation or suspension of any permit shall not prohibit the imposition of a criminal penalty and the imposition of a criminal penalty shall not prevent the revocation or suspension of a permit.
(Ord. No. 97-75, § 4, 1-15-97)

Secs. 28-260—28-280. Reserved.

ARTICLE IX. EXCESSIVE CRIMINAL ACTIVITY AT CERTAIN APARTMENT COMMUNITIES

Sec. 28-281. Purpose.

The purpose of this article is to establish a method by which the city may measure certain types of criminal activity occurring in apartment communities in the city and to create a program to address within those apartment communities shown to have excessive levels of criminal activity the application of methods proven to reduce such activity. It is the intent of this article to identify the parties the city will hold responsible for compliance with and violations of this article, rather than to determine the rights and liabilities of persons under agreements to which the city is not a party. The terms of this article shall not be construed to alter the terms of any lease or other agreement between a landlord and a tenant or others relating to property that is the subject of this article; provided that no provision of any lease or other agreement shall be construed to excuse compliance with this article by any person. Additionally, a violation of this article shall not in and of itself create a negligence per se standard or otherwise expand existing liability in tort for either a landlord or a tenant.
(Ord. No. 06-1124, § 2, 11-8-06)

Sec. 28-282. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Apartment community means a multi-family residential rental property under common ownership containing ten or more separate living units designed, built, rented, leased, let out or hired out to be occupied, or that are occupied, as residences, but excludes a condominium subject to chapter 81 or 82 of the Texas Property Code.

Community per capita crime index or *CPCCI* means a determination by the police official of the criminal activity on the property of an apartment community over the immediately preceding 12-month period, calculated on a per capita basis. Two separate CPCCIs will be calculated for each apartment community based on the Part 1 and Part 2 crimes listed in the definition of the term criminal activity below that have occurred on such property. The CPCCIs shall be calculated in accordance with the manual.

Crime risk threshold or *CRT* means the statistically determined level of criminal activity in apartment communities in the city during the immediately preceding 12-month period, adjusted for the occupancy of the apartment communities surveyed and expressed on a per capita basis. A CRT will be established for each of two categories of criminal activity on the properties of the apartment communities surveyed based on the Part 1 and Part 2 crimes listed in the definition of the term criminal activity below that have occurred on such properties. The CRTs shall be calculated in accordance with the manual.

Criminal activity means the commission of one or more of the following crimes listed in the categories designated as Part 1 and Part 2 crimes by the Federal Bureau of Investigation's Uniform Crime Report ("UCR") that result in the preparation of an offense report by the police department, namely:

Part 1 Crimes: Murder, rape, robbery, aggravated assault, burglary, theft and auto theft; and

Part 2 Crimes: Other assaults, narcotics offenses (restricted to those of delivery, possession, or manufacture), arson, vandalism, weapons offenses, prostitution, gambling and disorderly conduct.

The following UCR crimes shall not be deemed criminal activity under this article: suicide, all offenses involving domestic violence, forgery and counterfeiting, fraud, embezzlement, stolen property (buying, receiving or possessing), crimes against family and children, driving while intoxicated, violation of alcoholic beverage laws, and vagrancy. State law relieves an owner from responsibility for offenses involving domestic violence and such offenses shall not be deemed criminal activity under this article.

F.A.S.T. means the Forfeiture Abatement Support Team composed of members of the legal and police departments.

F.A.S.T. CPCCI means a determination by the police official of the nuisance activity on the property of an apartment community over the immediately preceding 12-month period, calculated on a per capita basis. The F.A.S.T. CPCCI shall be calculated in accordance with the manual.

F.A.S.T. CRT means the statistically determined level of nuisance activity that is calculated based upon a survey of the apartment communities in the city on whose property at least one of the crimes listed in Chapter 125, Texas Civil Practices and Remedies Code, has occurred during the immediately preceding 12-month period, adjusted for the occupancy of the apartment communities surveyed, and expressed on a per capita basis. The F.A.S.T. CRT shall be calculated in accordance with the manual.

F.A.S.T. eligible apartment community means an apartment community at which the F.A.S.T. CPCCI exceeds the F.A.S.T. CRT.

Inspection means the initial onsite assessment by officers of the police department of the physical, operational and on-site measures in effect on the property that might affect the level of criminal activity at a remedial action eligible apartment community to determine the remedial measures deemed most appropriate to reduce criminal activity at such property.

Manager means the person appointed or hired by the owner to be responsible for the daily operation of an apartment community.

Manual means the manual promulgated by the police official to guide the enforcement of this article and containing, but not limited to, procedures for the registration of apartment communities, remediation strategies to reduce or abate criminal activity at apartment communities with excessive levels of criminal activity, a description of the methods and criteria used to calculate and determine the crime risk thresholds and community per capita crime indices described in this article, and related forms.

Nuisance activity means any one of the crimes listed in Chapter 125, Texas Civil Practices and Remedies Code.

Owner means the person or persons who hold title to an apartment community.

Police official means the chief of police or such other person as he may designate to act as the official primarily responsible for the administration of this article or the said official's designees.

Registered agent means the person identified by the owner of an apartment community in the registration filed pursuant to this article authorized to receive any legal process and/or notice required or provided for in this article on behalf of the owner.

Remedial action eligible apartment community means an apartment community at which both CPCCIs are higher than the corresponding CRTs.

Remedial action plan means a written plan issued by the police official to an owner pursuant to this article specifying and requiring the implementation of remedial measures at a remedial action eligible apartment community and the time allotted to the owner to effect such implementation.

Remedial measures means reasonable actions to be taken or implemented on the property of a remedial action eligible apartment community, including but not limited to: (i) property improvements (fencing, lighting, controlled access, etc.), (ii) operational practices (presence of onsite personnel licensed under the Texas Private Security Act, Chapter 1702, Texas Occupations Code or certified peace officer(s), tenant screening, evictions, recordkeeping, etc.) and (iii) educational programs (Positive Interaction Program, Blue Star training, citizens on watch, etc.) and other remedial measures that have proven effective in reducing criminal activity. Remedial measures shall be based upon standardized measures designed to address various crime risk circumstances that are included in the manual, which have been determined to be reasonable by city council pursuant to section 28-294. Consequently, measures derived from the manual are deemed to be reasonable. A true and correct copy of the manual shall be kept on file in the offices of the multifamily administrative unit of the police department. A true and correct copy of the manual shall also be kept in the office of the city secretary for viewing by any member of the public.

Remediation inspection means an inspection by officers of the police department pursuant to this article to determine whether the remedial measures specified in a remedial action plan or an agreement made pursuant to subsection (c) of section 28-287 of this Code have been implemented.

(Ord. No. 06-1124, § 2, 11-8-06)

Sec. 28-283. Registration of apartment communities.

(a) It shall be unlawful for any person to operate an apartment community in the city without first registering the ownership of such property as required by this section. No fee shall be charged for the registration required by this section.

(b) The owner of an apartment community shall provide or cause to be provided to the police official the following information regarding such property:

(1) The name of the owner and, if the owner is a corporation, whether foreign or domestic, the registered agent of the owner and the residential or business address of the owner and registered agent, if any, which address information shall include the street name and number, office or suite number if a business address, and the city, state, and zip code;

(2) The nature and extent of the owner's interest in the property. If there is only one owner, the extent of the owner's interest is 100 percent; and

(3) The name and business or residence address, including street name and number, city, state and zip code, of the current manager or management company of the apartment community and, if the manager is other than an individual, the name, title, business address, including street name and number, city, state and zip code, of the individual to be contacted for any purpose under this article relating to the apartment community.

(c) The use of a public or private post office box or other similar address shall not be sufficient for the purposes of complying with this section.

(d) Any change of ownership of an apartment community, including, but not limited to, the sale of the property or any ownership interest therein, shall require the purchaser or transferee to update the information provided under subsection (b) of this section and to file such updated information with the police official within 30 days of the effective date of such ownership change. A prior owner may advise the police official that he no longer holds any ownership interest in the property. The same requirement shall apply to any change relating to the owner's registered agent and manager or management company.

(e) The owner of a newly constructed apartment community shall comply with the provisions of this section not later than the thirtieth day following completion of construction.

(f) A true and correct copy of the registration statement shall be posted at all times in the business office at the property or, if no business

office is maintained at the property, in a common area or other conspicuous place accessible at all times to the tenants of such property.

(g) A failure to comply with the requirements of this section shall constitute an offense under this article.

(h) Compliance with the requirements of this section shall be deemed to meet the requirements of sections 250.003 and 250.004 of the Texas Local Government Code.

(Ord. No. 06-1124, § 2, 11-8-06)

Editor's note—Section 3 of Ord. No. 2006-1124 states that § 28-283 shall become effective on the 120th day following the passage and approval of this Ordinance by the Mayor.

Sec. 28-284. Measurement of criminal activity; remediation strategies.

The police official shall determine the CRTs for all apartment communities in the city. The police official shall monitor the CPCCIs for each apartment community on an ongoing basis. An apartment community shall be designated as either remedial action eligible or F.A.S.T. eligible based upon the relationship of its CPCCI(s) to the CRTs or F.A.S.T. CRT, as applicable. Apartment communities not meeting the threshold for designation as either remedial action eligible or F.A.S.T. eligible shall not be designated and changes in the criteria or methods used to calculate the foregoing indices or the remediation strategies set forth in the manual shall not be implemented until:

(1) Notice of such change, including the time, date and location of the public hearing required by item (3) of this section, is given by publication in a newspaper of general circulation and the publication produced by the Houston Apartment Association not later than 30 calendar days prior to the date of the public hearing;

(2) A panel of three persons consisting of: (i) a representative from the multifamily administrative unit of the police department, (ii) a member of the Houston Apartment Association and (iii) a citizen appointed by the mayor having no affiliation with the apartment industry or the police department is selected to carry out the duties set forth in the following item; and

(3) The panel (i) solicits comments from any interested party concerning the proposed change in criteria or methods for calculating the indices or the remediation strategies prescribed in the manual, and after a 30 day comment period, (ii) holds a public hearing at which any owner or manager may be heard on the proposed changes in criteria or methods used to calculate the indices or the remediation strategies prescribed in the manual and, (iii) no later than 30 days from the date of such hearing, makes a final determination concerning the proposed changes in criteria or methods used to calculate the indices or the remediation strategies prescribed in the manual.

(Ord. No. 06-1124, § 2, 11-8-06)

Sec. 28-285. Notice of designation.

(a) The police official shall provide written notification to the owner or registered agent of each apartment community designated as either remedial action eligible or F.A.S.T. eligible, by personal service, certified mail, or other method which provides confirmation of delivery.

(b) The notice shall consist of the following:

(1) The designation assigned to the apartment community, specifying the types of crimes identified as having occurred on the property during the period reviewed, including the incident numbers assigned to such crimes, the population calculated for the property and the street address and the date and time of each offense to allow the owner to understand the basis of the designation;

(2) The requirement of a mandatory inspection to be conducted by officers of the police department;

(3) The opportunity and procedures by which the owner may challenge the data pro-

vided to the owner pursuant to item (1) of this subsection upon which the designation is based; and

(4) That the police official will be available to meet with the owner or his manager prior to the inspection for the purpose set forth in subsection (b) of section 28-286 of this Code and that a second meeting with the owner or his manager must occur after the inspection to allow the department and the owner to review the results of the inspection and determine a remedial action plan to reduce criminal activity at the property unless an agreement is reached pursuant to subsection (c) of section 28-287 of this Code.

(c) The designation of an apartment community and application of the procedures set forth in this article by the police official shall be binding upon all subsequent owners or other transferees of an ownership interest in the apartment community.
(Ord. No. 06-1124, § 2, 11-8-06)

Sec. 28-286. Action after designation; initial meeting.

(a) The owner of a remedial action eligible apartment community must ensure that the police official has received, not less than ten calendar days after the owner's receipt of the notice of designation, a written statement of the owner's decision to either:

(1) Schedule an initial meeting with the police official; or

(2) Waive the initial meeting with the police official, which waiver shall be deemed a consent to the inspection and the owner's agreement to pay the fee prescribed by this article.

Failure of the owner to timely respond to the notice of designation shall be deemed the owner's acquiescence to the conduct of the inspection and agreement to pay the fee required by this article.

(b) At the initial meeting, if not waived or deemed waived, the police official shall discuss the apartment community's designation and the basis for such designation.

(c) A F.A.S.T. eligible apartment community shall be subject to the provisions of sections 2-268 through 2-270 of this Code and upon designation shall be referred by the police official to F.A.S.T for further action.
(Ord. No. 06-1124, § 2, 11-8-06)

Sec. 28-287. Inspection, meeting and remedial action plan.

(a) After the police official has designated an apartment community as a remedial action eligible apartment community and has provided the owner the opportunity for an initial meeting, the police official shall collect from the owner the fee required by section 28-290 of this Code and cause the apartment community to be inspected.

(b) Upon completion of the inspection, the police official shall schedule a second meeting at which the police official and the owner or his manager will: (i) discuss the results of the inspection and the owner's past efforts and actions to reduce criminal activity at the property; (ii) review the remedial measures proposed by the police official or the owner to reduce the criminal activity that resulted in the property's designation; and (iii) formulate and reduce to writing a remedial action plan specifying the remedial measures to be implemented at the property by the owner and the time for completion of each of such measures.

(c) The refusal or failure of an owner or his manager to meet with the police official following an inspection shall be deemed the owner's acquiescence to the remedial action plan issued by the police official under this article. In such instance, the police official shall deliver a copy of the remedial action plan to the owner or his manager by either of the methods authorized in subsection (a) of section 28-285 of this Code.
(Ord. No. 06-1124, § 2, 11-8-06)

Sec. 28-288. Redesignation; evaluation.

(a) The designations of all apartment communities will be redetermined by the police official not less than every two years after the date of initial designation.

(b) The designation of a remedial action eligible apartment community may be redetermined not sooner than six months following the final deadline for the owner's implementation of remedial measures in the remedial action plan.
(Ord. No. 06-1124, § 2, 11-8-06)

Sec. 28-289. Remediation inspection; subsequent inspection.

(a) Each remedial action eligible apartment community for which the police official has conducted an inspection and issued a remedial action plan is subject to a remediation inspection following the expiration of each of the respective dates for completion set out in the plan or agreement.

(b) An apartment community that is designated a remedial action eligible apartment community twelve months following the implementation of a remedial action plan issued pursuant to section 28-287 of this Code shall again be subject to an inspection and may be issued a new or revised remedial action plan pursuant to that section, at the discretion of the police official. After the initial payment of the fee prescribed by section 28-290 of this Code, no further payment of such fee shall be required of the owner of a remedial action eligible apartment community unless a reduction in the level of criminal activity at such property results in the removal of a designation under this article followed by a subsequent designation of the property as either remedial action eligible or F.A.S.T. eligible.
(Ord. No. 06-1124, § 2, 11-8-06)

Sec. 28-290. Inspection fee.

(a) The fee stated for this provision in the city fee schedule shall be charged to the owner of an apartment community to defray the costs incurred by the police official in conducting the inspection, the meetings required by sections 28-286 and 28-287 of this Code, preparing the remedial action plan, and conducting the remediation inspection(s) of the apartment community. The fee shall be paid to the police official prior to the commencement of the inspection.

(b) All revenues received by the city resulting from the operation or enforcement of this article shall be allocated to the police special services fund administered by the police department.
(Ord. No. 06-1124, § 2, 11-8-06; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 28-291. Conduct constituting an offense.

(a) It shall be unlawful for an owner of a remedial action eligible apartment community to:

(1) Fail or refuse to permit officers of the police department to conduct an inspection of the property after receipt of notice under section 28-285 of this Code;

(2) Fail or refuse to permit the police official to conduct the remediation inspection(s) to ensure conformity to a remedial action plan issued under this article;

(3) Fail or refuse to attend the meeting required by subsection (b) of section 28-287 of this Code;

(4) Fail or refuse to timely implement or maintain a measure specified in a remedial action plan issued under this article made pursuant to subsection (b) of section 28-287 of this Code; or

(5) Fail or refuse to pay the inspection fee prescribed in this article.

(b) Failure to comply with the provisions of this article shall be punishable by a fine of not less than $500.00 nor more than $2,000.00. Each day of non-compliance shall constitute a separate violation.

(c) Citations issued in connection with any violation of this article shall be issued in compliance with the provisions of Sections 250.003 and 250.004, Texas Local Government Code, as amended from time to time.
(Ord. No. 06-1124, § 2, 11-8-06)

Sec. 28-292. Nuisance.

(a) The city council hereby finds and declares that the operation of a remedial action eligible apartment community whose owner has failed or refused to timely implement one or more remedial

measures contained in a remedial action plan, as set forth in this article, constitutes a nuisance and is unlawful.

(b) After at least 10 days prior written notice to the owner of an apartment community described in the foregoing subsection, given in the manner provided in subsection (a) of section 28-285 of this Code, notifying the owner that legal action will be taken if the owner fails to take immediate action to implement a remedial action plan as provided in this article, the city attorney is authorized to institute any legal action to enforce this article including, but not limited to, the filing of civil injunctive proceedings in a court of competent jurisdiction against the owner of a remedial action eligible apartment community described in the foregoing subsection, seeking a mandatory injunction to compel the owner of any such property to implement the remedial measures set forth in a remedial action plan issued to such owner.
(Ord. No. 06-1124, § 2, 11-8-06)

Sec. 28-293. Receipt of notice.

Any notice sent or required to be sent by the police official shall be deemed to have been received by the owner or his registered agent not later than the third business day after mailing.
(Ord. No. 06-1124, § 2, 11-8-06)

Sec. 28-294. Adoption of initial manual.

The city council hereby adopts the apartment security ordinance manual dated October 2006 and on file in the office of the city secretary as the initial manual under this article. The city council hereby finds and determines the remediation strategies, remediation strategy standards, computation methodology and remediation strategy framework set out therein to be reasonable and appropriate to address the public health, safety and welfare issues addressed by this ordinance. The police official may make changes to the manual consistent with this article pursuant to and in accordance with the procedures set out in section 28-284 of this Code.
(Ord. No. 06-1124, § 2, 11-8-06)

Secs. 28-295—28-300. Reserved.

ARTICLE X. PARKING OF VEHICLES ON RESIDENTIAL PROPERTY

Sec. 28-301. Purpose.

The purpose of this article is to regulate the parking of vehicles or equipment on any surface that is not an improved surface in the front or side yard areas of an improved single-family residential lot to prevent damage to underground infrastructure that would be caused by the weight of vehicles parked over such infrastructure and which would also result in unsightly and permanent damage to such areas, thereby having a negative effect on the aesthetics of single-family residential areas affected by such practices and the property values of residences in those affected areas. This article shall not apply to the parking of any vehicle subject to article XIII of chapter 10 of this Code or Chapter 683 of the Texas Transportation Code.
(Ord. No. 09-59, § 2, 1-28-09)

Sec. 28-302. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Blockface means that portion of a block that abuts a street between two intersecting streets, or between an intersecting street and the termination of the street.

Civic club means an association, whether or not incorporated, that encompasses a residential area and that, by means of action or efforts by such association or its membership, actively seeks to promote or protect the interests of the area as a separate or identifiable neighborhood or community. At a minimum, a civic club shall have or maintain a name related to or identifying its connection to a residential area, a membership list, a slate of officers, whether paid or volunteers, and a means of communicating with owners of residences in the area on issues or matters of interest to that residential area.

Director means the director of the department of planning and development or his designee.

Front yard means an area extending the full width of an improved single family lot between its side property lines, the front property lot line and a line that is an extension of the front line of the residential structure located on a lot, excluding a driveway. The front yard of a corner lot shall be determined by the street address of the residence located on such lot.

Homeowners association has the meaning ascribed in section 47-601 of this Code.

Improved surface means an area, excluding a driveway, the surface of which is comprised of selected materials constructed to a depth sufficient to distribute the weight of a vehicle or equipment over such area to preclude deterioration and deflection of the area due to vehicle or equipment load, adverse weather, or other conditions. Examples of materials with which an improved surface might be constructed include asphalt, concrete, permeable pavement, or other materials approved by the Director of Houston Public Works or his designee.

Lot means contiguous land under common ownership, as shown on the most recently approved ad valorem tax rolls of the city, that is used or developed as a unit for residential or nonresidential uses, regardless of whether the land consists of a platted lot or a portion of a platted lot or a combination thereof. Two or more platted lots that have been combined in their entireties as a single building site shall not constitute a single lot for purposes of an application or petition filed pursuant to this article.

Park has the meaning ascribed in section 26-2 of this Code.

Owner means the owner of a single-family residential lot in a residential area that seeks the application of this section to such residential area, as such ownership is reflected in the records of the Harris County Appraisal District at the time of the filing of an application or petition as defined in this article.

Residential area means an area in which not less than 60% of the lots are developed and used for single-family residential structures and purposes.

Side yard means an area of an improved single-family lot circumscribed by a line parallel to and extending along the side of a residential structure located on the lot which line is joined at right angles by lines parallel to and that extend along the front and rear lines of the residential structure on the lot to the side property line of the lot, excluding a driveway.

Single-family residential has the meaning ascribed in section 42-1 of this Code.

Vehicle or equipment means and includes any house trailer, mobile home, motor vehicle, truck, passenger motor vehicle, motor home, camper cabin, motorcycle, trailer, boat, farm machinery or similar equipment or any truck with more than two axles or any trailer, mobile home or motor home with a length exceeding 20 feet.

(Ord. No. 09-59, § 2, 1-28-09; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 28-303. Parking of vehicles prohibited in certain residential areas; application and procedures.

(a) *Application of section.* This section shall apply to those residential areas designated by ordinance of the city council in accordance with the procedures outlined in this section.

(b) *Offense.* It shall be an offense for any person to park or to cause, suffer or permit the parking of a vehicle or equipment on any surface that is not an improved surface as defined in this article, within any front or side yard of a single-family residence in a residential area subject to this section. It is presumed that the registered owner of the vehicle or equipment is the person who parked, caused, suffered or permitted the vehicle or equipment to be parked in violation of this article.

(c) *Application; petition; who may file.* A request to apply this section to a residential area shall be initiated by filing with the director a written application or petition as follows:

(1) An application authorized by the board and signed by the president of an active homeowners association or civic club that encompasses the residential area described in the application; or

[The next page is 2032.1]

(2) A written petition signed by at least 60% of the owners within the area.

(d) *Application; petition; submittal.* Applications and petitions will be accepted by the director only if submitted no later than 5:00 p.m. on either of the first two business days of each month.

(e) *Written application or petition; information required.* An application or petition shall contain such information as the director shall require, including the following:

(1) A map of the proposed boundaries of the residential area requested to be made subject to this section. If the residential area is defined by a plat or map duly filed of record, a reference to such plat or map shall be sufficient; and

(2) If the request is a letter from a homeowners association or civic club, the name, mailing address, telephone number and email address of a person with the homeowners association or civic club or an owner within the area described in item (1) of this subsection who shall be the contact for the request; or

(3) If the request is in the form of a petition, the name and mailing address, including street number, street name and zip code, of all signers of the petition, one of whom shall be designated in the petition as the contact for the request. Each signer of a petition, by his or her signature, shall be deemed to have affirmed that such person is an owner within the residential area described therein, and a statement to that effect shall appear on the face of the petition.

(f) *Residential area; size and configuration requirements.* The description of a residential area in an application or petition shall include at least five contiguous blockfaces.

(g) *Filing of request; review and action by director.* The application or petition referenced in the preceding subsection shall be filed with the director, and upon receipt, the director shall determine whether such application or petition is complete. An incomplete application or petition shall be returned to the contact person named therein, specifying its deficiencies. Upon being revised to comply with this section, the application or petition may be re-filed with the director at a subsequent filing date.

(h) *Notice required by applicant.* Within ten days after the filing of a complete application or petition, the party filing such application or petition shall provide notice thereof to all owners by:

(1) The posting of signs on private property at such locations and containing such information as the director shall prescribe; and

(2) At least one of the following methods:

a. An electronic message directed to all owners within the residential area;

b. Inclusion in a newsletter or other similar publication customarily used by the neighborhood association or civic club to disseminate information of interest to all owners within the residential area; or

c. Any other writing or publication deemed by the party making the request as the most effective means of providing notice of such filing to all owners within the residential area.

(3) All signs required to be posted by this subsection shall remain in place continuously until either:

a. The city council passes an ordinance applying this section to the residential area or acts to deny the application or petition; or

b. If the application or petition was been referred to a hearing officer as provided in subsection (1) of this section, the hearing officer determines that the application or petition fails to meet the requirements of this section or any criteria prescribed by the director.

(4) All costs to prepare, install, maintain and remove the signs required by this subsection shall be borne by the party filing the application or petition required by subsection (c) of this section.

(i) *Notice required by director.* Within ten days after the filing of a complete application or petition, the director shall give written notice thereof to all owners within the residential area. A failure by the director to provide the notice required by this subsection, or failure of any owner to receive such notice, does not affect the validity or finality of decisions reached under this article.

(j) *Protest; deadlines.* An owner may protest an application or petition by timely filing a written protest with the director within 20 days after the date of the director's notice letter.

(k) *Approval by director.* The director shall approve an application or petition and refer the matter to the city council for final action upon determining that:

(1) The notice provisions of subsection (h) of this section have been fully and timely performed or completed; and

(2) No protest of such application or petition was filed within the period specified in subsection (j) of this section.

(l) *Public hearing; hearing officer.* Upon the receipt by the director of a timely filed protest to an application or petition, the director shall refer such application or petition to a hearing officer whom he shall appoint to conduct a public hearing to determine whether the application or petition should be recommended to the city council.

(m) *Approval criteria.* The hearing officer shall base his determination on an application or petition by applying the evidence presented at the hearing to the following criteria:

(1) The application or petition complied with items (1) or (2) of subsection (c) of this section;

(2) The evidence presented shows that the residential area described in the application or petition contains at least five contiguous blockfaces; and

(3) The curbside parking spaces or areas within the residential subdivision available to owners for the parking of vehicles or equipment are sufficient to accommodate the number of vehicles or equipment typically parked within the area.

If the evidence presented at the hearing demonstrates to the satisfaction of the hearing officer the likelihood that the parking of vehicles or equipment in the front or side yards of residences in the residential area has caused, or is presently causing, a diminution in the value of the residences in such area, degrades the aesthetic appearance of the neighborhood, or tends to damage underground infrastructures leading to the loss of water or other conditions contrary to the public interest, the hearing officer shall recommend the application or petition favorably to the city council. The hearing officer's determination shall be set forth in writing, copies of which shall be provided to any interested party upon request. In the absence of any such finding, the application or petition shall be denied.

(n) *Public hearing; notice required; final action.*

(1) The public hearing provided in subsection (l) shall not be held until after the notice requirements of subsections (h) and (i) of this section have been satisfied and the time for filing a protest or opposition to an application or petition, as set forth in subsection (j) of this section, has expired.

(2) Notice of a public hearing shall be provided by the hearing officer at least 15 days prior thereto and shall contain the date, time and location of such hearing. The notice shall be provided to the contact person listed in an application or petition made pursuant to subsection (c) of this section, and to all persons filing a protest to an application or petition within the period set forth in subsection (j) of this section.

(3) The hearing officer shall take final action on a request referred to him by the director not later than the sixtieth day following the director's receipt of a written

request, unless the hearing date is extended pursuant to subsection (o) of this section.

(o) *Action by hearing officer.* At the conclusion of the public hearing, the hearing officer shall either:

(1) Recommend that the city council pass an ordinance extending the application of this section to the requesting residential area;

(2) At his sole discretion, grant one continuance of the public hearing to a date certain in the future to allow for the provision of additional information relating to any issue arising during such hearing; provided, that the continuance shall not extend more than 15 days from the date of the original hearing; or

(3) Deny the request, which action of the hearing officer shall be final.

(p) *Submission to city council.* If the hearing officer makes the recommendation set forth in item (1) of the preceding subsection, the director shall promptly refer the matter to the city council for final action.

(q) *Action by city council.* Upon consideration of the recommendation of a hearing officer pursuant to subsection (o) of this section, the city council shall either:

(1) Adopt an ordinance extending the application of this section to the requesting residential area; or

(2) Deny such recommendation and request, which action shall be final in all respects.

The director shall cause notice of the passage of such ordinance, containing such information and in such form as the city attorney may deem appropriate, to be recorded in the real property records of each county in which the residential area is located.

(r) *Effective date; term of application.* An ordinance extending the application of section 28-303 of this Code to a residential area shall be in force as of its effective date and shall terminate 20 years after such effective date, unless earlier terminated by an ordinance adopted by the city council.

(s) *Re-filing of request.* In the event of a denial of a request under this article by either a hearing officer or the city council, no further request shall be filed for the same neighborhood or residential area, or portion thereof, within the six months following the date of such denial; provided, however, if new information is submitted to the director indicating a material change in off-street parking practices within the residential area sufficient to warrant the filing of a new application or petition, the director may waive the six month limitation.

(t) The director shall be authorized to promulgate rules and procedures for the efficient administration of this section, including provisions for the issuance of temporary permits that allow, on a limited basis and for a limited period, the parking of vehicles or equipment in areas where such conduct is otherwise prohibited by this section.
(Ord. No. 09-59, § 2, 1-28-09; Ord. No. 2010-185, § 2, 3-3-2010)

Sec. 28-304. Enforcement.

The provisions of this article may be enforced by any law enforcement officer, the neighborhood protection official or the parking official.
(Ord. No. 09-59, § 2, 1-28-09)

Sec. 28-305. Penalty.

Any person who violates any provision of this article shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine not to exceed $150.00. Each day a violation of this article shall continue shall constitute a separate offense.
(Ord. No. 09-59, § 2, 1-28-09)

Secs. 28-306—28-320. Reserved.

ARTICLE XI. ADULT ESTABLISHMENTS

Sec. 28-321. Definitions.

As used in this article:

Adult establishment means a nightclub, bar, restaurant, sexually oriented business or similar commercial enterprise that:

(A) Provides for an audience of two or more individuals live nude or semi-nude entertainment or live nude or semi-nude performances; and

(B) Authorizes on-premise consumption of alcoholic beverages, regardless of whether the consumption of alcoholic beverages is under a license or permit issued under the Texas Alcoholic Beverage Code.

Customer means any person on the premises of an adult establishment during any performance of live nude or semi-nude entertainment, except an owner, operator, independent contractor or employee of that adult establishment or any person on such premises exclusively for the repair or maintenance of the premises or for the delivery of goods to the premises.

Director means the director of the city's department of finance.

Nude means (i) entirely unclothed or (ii) clothed in a manner that leaves uncovered or visible through less than fully opaque clothing any portion of the breasts below the top of the areola of the breasts, if the person is a female, or any portion of the genitals or buttocks.

Semi-nude means (i) clothed in a manner that exposes the nipples and/or areola of the female breast or (ii) clothed in a manner that exposes the female breast if any device is worn as a cover over only the nipples and/or areola so long as the genitals, pubic region, anus and buttocks are fully and opaquely covered.

Sexually oriented business means any business or enterprise that is subject to regulation under Article III of this chapter.

(Ord. No. 2012-597, § 2, 6-26-2012)

Sec. 28-322. Fee imposed; records.

(a) A $5.00 fee is hereby imposed for each entry by a customer admitted into an adult establishment within the corporate limits of the city. For more than one entry by the same customer on the same day at the same location, it shall be presumed to have been one entry by the customer and the fee amount due for that customer is $5.00.

(b) For purposes of this article, a business day begins when the adult establishment opens and continues until the close of business.

(c) An adult establishment shall record daily the number of customers admitted to the business. The adult establishment shall maintain a record of the number of customers admitted to the business in the same manner required for such records pursuant to Section 102.052, Texas Business and Commerce Code, and as the same may be hereafter amended from time to time.

(d) An adult establishment is not required to impose the fee on a customer of the business. An adult establishment that chooses to recover the fee separately from its customers by including a stated charge for the fee on the customer check or invoice must clearly identify the charge as a reimbursement.

(e) An adult establishment that provides live nude or semi-nude entertainment on occasion but does not regularly or habitually provide such entertainment, such as hosting a wet t-shirt contest or naked sushi contest, is required to collect the fee for the day on which such entertainment is provided.

(f) An adult establishment shall file a quarterly statement even if there is no fee to report.
(Ord. No. 2012-597, § 2, 6-26-2012)

Sec. 28-323. Remittance of fees.

(a) An adult establishment must remit the fee and file a report with the director each quarter in the manner and containing the information required by the director.

(b) The adult establishment must remit the quarterly fee payment no later than the 20th day of the month following the end of the quarter for which the payment is due.

(c) The director shall make such rules and regulations as are reasonable and necessary to effectively collect the fee.
(Ord. No. 2012-597, § 2, 6-26-2012)

Sec. 28-324. Retention of records.

(a) An adult establishment must maintain and retain the records such as statements, books or accounts necessary to determine the amount of the fee for which the business is liable to pay for at least four years after the date on which the records are prepared.

(b) The city or its authorized representative may inspect, examine, or audit any records or equipment of an adult establishment liable for the fee in order to verify the accuracy of any payment made and shall have the right to determine the fee liability in the event no payment was made as required by this article.
(Ord. No. 2012-597, § 2, 6-26-2012)

Sec. 28-325. Estimated fees; civil penalty.

(a) Should an adult establishment fail to keep accurate records of the number of customers admitted to its business, the city may estimate the amount of fee liability based on any available information that includes, but is not limited to, any reports filed previously filed under this article.

(b) An adult establishment that fails to file a report or to pay the fee as required by this article when due shall be liable, in addition to the amount of the fee owed, interest on the principal amount due at the rate of ten percent per annum, and a civil penalty equal to 15 percent of the total amount. Should legal action be instituted for the recovery of the fees, such business shall also be liable for the city's reasonable attorney fees and costs incurred for the recovery of the fee and penalties.

(c) In addition to the civil penalty provided in this section, the failure of an adult establishment to timely file a report, make a payment, or maintain the records required by this article shall constitute a misdemeanor and, upon conviction thereof, the owner of the adult establishment shall be punished by a fine of not less than $100.00 nor more than $500.00. Each day that any violation continues shall constitute and be punishable as a separate offense.
(Ord. No. 2012-597, § 2, 6-26-2012)

Secs. 28-326—28-360. Reserved.

ARTICLE XII. MASSAGE ESTABLISHMENTS

Sec. 28-361. Definitions.

As used in this article, the following words, terms and phrases, shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates a different meaning:

Communicable disease means Methicillin-resistant Staphylococcus aureus (MRSA), scabies, and tuberculosis.

Department means the Texas Department of State Health Services.

Massage or *massage therapy* means and includes any process consisting in kneading, rubbing or otherwise manipulating the skin of the body of an individual, either with the hand, or by means of electrical instruments, devices, or apparatus, or other special apparatus, but shall not include massage by duly licensed physicians and chiropractors, registered physical therapists who treat only patients recommended by a licensed physician and who operate only under such physicians' direction, or massage of the face practiced by duly licensed personnel of beauty parlors or barbershops.

Massage establishment means any building, room, place, or any establishment whose business includes advertising or offering a massage or other massage services upon the human body for compensation by any person whether with or without the use of mechanical, therapeutic or bathing devices, and shall include Turkish bathhouses. This term shall

not include beauty parlors or barbershops duly licensed by the state, or licensed hospitals, medical clinics, or licensed physical therapy facilities or establishments wherein registered physical therapists treat only patients recommended and referred by a licensed physician and operate only under such physician's direction. Additionally, the term shall not include a place of business where a licensed massage therapist practices as a solo practitioner in a manner consistent with the applicable provisions of Section 455.155 of the Texas Occupations Code, as amended.

Massage therapist means a person who practices massage therapy or administers massages or other massage services to a client for compensation. The term includes a licensed massage therapist, therapeutic massage practitioner, massage technician, masseur, masseuse, myotherapist, body massager, body rubber, or any derivation of those titles.

Other massage services has the meaning ascribed in Section 455.001 of the Texas Occupations Code.

(Ord. No. 27-286, § 1, 3-7-07; Ord. No. 2015-1203, § 2(Exh. A), 12-2-2015)

Sec. 28-362. Massage establishment license display requirement.

A massage establishment or a place of business that advertises massage therapy or offers massage therapy or other massage services must be licensed by the department as provided by Title 25, Texas Administrative Code, Chapter 140. A massage establishment must display the establishment's license along with a current year validation card in a prominent location available for inspection by the public as provided by Section 140.361 of Title 25, Texas Administrative Code.

(Ord. No. 27-286, § 1, 3-7-07; Ord. No. 2015-1203, § 2(Exh. A), 12-2-2015)

Sec. 28-363. Maintenance of premises and equipment.

It shall be the duty of every person conducting or operating a massage establishment to keep the establishment in a clean and sanitary condition at all times. All instruments and mechanical, therapeutic and bathing devices or parts thereof that come into contact with the human body shall be sterilized on a regular basis and shall be rendered free from harmful organisms in a manner consistent with applicable state and local laws and regulations. Towels and linens furnished for use of one patron shall not be furnished for use of another until thoroughly laundered.

(Ord. No. 27-286, § 1, 3-7-07; Ord. No. 2015-1203, § 2(Exh. A), 12-2-2015)

Sec. 28-364. Operation in connection with living or sleeping quarters prohibited.

A massage establishment must maintain separation from rooms used wholly or in part for residential or sleeping purposes by a solid wall or by a wall with a solid door which shall remain locked during business hours.

(Ord. No. 27-286, § 1, 3-7-07; Ord. No. 2015-1203, § 2(Exh. A), 12-2-2015)

Sec. 28-365. Hours of operation.

No massage establishment shall be kept open for any purpose between the hours of 10:00 p.m. and 8:00 a.m. on any day.

(Ord. No. 27-286, § 1, 3-7-07; Ord. No. 2015-1203, § 2(Exh. A), 12-2-2015)

Sec. 28-366. Management to keep list of employees.

The manager or person in charge of a massage establishment shall maintain, on the premises, a list of the names and addresses of all employees therein, both on duty and off duty, and such list shall be readily available for inspection upon the request of any law enforcement officer or department of health and human services official. Failure to comply with this provision shall be an offense.

(Ord. No. 27-286, § 1, 3-7-07; Ord. No. 2015-820, § 24, 8-26-2015; Ord. No. 2015-1203, § 2(Exh. A), 12-2-2015)

Sec. 28-367. Employment of certain persons prohibited.

It shall be unlawful for any person operating a massage establishment to knowingly employ, in any capacity therein, any person who has been convicted, entered a plea of nolo contendere or guilty to, or received deferred adjudication for an offense involving prostitution or any other sexual offense. It shall also be unlawful for any person suffering from a communicable disease to work in any massage establishment.
(Ord. No. 27-286, § 1, 3-7-07; Ord. No. 2015-1203, § 2(Exh. A), 12-2-2015)

Sec. 28-368. Cleanliness of employees.

All massage therapists and operators at a massage establishment shall wash their hands thoroughly before administering massage manipulations to any patron.
(Ord. No. 27-286, § 1, 3-7-07; Ord. No. 2015-1203, § 2(Exh. A), 12-2-2015)

Sec. 28-369. Accommodation of diseased patrons prohibited.

No person suffering from a communicable disease, to the knowledge of the owner, operator, manager or person in charge, or employee of a massage establishment, shall be accommodated as a patron therein.
(Ord. No. 27-286, § 1, 3-7-07; Ord. No. 2015-1203, § 2(Exh. A), 12-2-2015)

Sec. 28-370. Access; right of entry.

A peace officer appointed or employed by a law enforcement agency of this state may enter the premises of a massage establishment pursuant to Sections 455.104 and 455.353 of the Texas Occupations Code. If entry and access to the premises of the massage establishment is denied, entry shall be made under the authority of a warrant to inspect the massage establishment.
(Ord. No. 27-286, § 1, 3-7-07; Ord. No. 2015-1203, § 2(Exh. A), 12-2-2015)

Sec. 28-371. Penalty.

Failure to comply with any of the requirements of this article shall result in a violation and punishable by a fine of not less than $500.00, nor more than $2,000.00. Each violation shall constitute and be punishable as a separate offense. Each day's violation shall constitute a separate offense.
(Ord. No. 2015-1203, § 2(Exh. A), 12-2-2015)

Sec. 28-372. Cumulative effect.

The provisions of this article are cumulative of applicable state law and regulations concerning massage establishments. To the extent there exists any difference or inconsistency between the provisions of this article and applicable state law or regulations, the more restrictive shall apply.
(Ord. No. 2015-1203, § 2(Exh. A), 12-2-2015)

Secs. 28-373—28-400. Reserved.

ARTICLE XIII. CONVENIENCE STORES

Sec. 28-401. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Convenience goods means basic food, household and/or pharmaceutical items.

Convenience store means any business that is primarily engaged in the retail sale of convenience goods, or both convenience goods and gasoline, and has less than 10,000 square feet of retail floor space. *Convenience store* does not include any business where there is no retail floor space accessible to the public.

Drop safe means a cash management device where money can be deposited without the depositor having access to the contents.

Employee means any person who is employed in consideration of direct or indirect monetary wages, commissions, or profits, any contract employee, and any other person engaged in the operation of a convenience store.

Height strip means markings to aid in estimating the height of suspects.

Manager means the person designated by the owner to be responsible for the daily operation of a convenience store.

Owner means the person or persons who hold title to or leases property for the purpose of operating a convenience store.

Police official means the chief of police or person he may designate to act as the official primarily responsible for the administration of this article or the official's designees.

Registered agent means the person identified by the owner of a convenience store in the registration filed pursuant to this article that is authorized to receive on behalf of the owner any legal process and/or notice required or provided for in this article.

Safety training program means the training program promulgated by the police department for convenience stores or a nationally recognized training program that includes all the training elements of the police department's training program.

(Ord. No. 08-248, § 2, 3-26-08; Ord. No. 2015-820, § 25, 8-26-2015)

Sec. 28-402. Registration of convenience stores.

(a) It shall be unlawful for any person to operate a convenience store in the city that has not been registered as required by this section. No fee shall be charged for the registration required by this section.

(b) The owner of a convenience store shall register by providing to the police official the following information regarding the convenience store:

(1) The name, telephone number, facsimile number and business or residence address of the owner; and, if the owner is a corporation, whether foreign or domestic, the name of the registered agent of the owner and the telephone number and facsimile number and business or residence address of the registered agent, which address information shall include the street name and number, office or suite number if a business address, and the city, state, and zip code.

(2) The nature and extent of the owner's interest in the property. If there is only one owner, the extent of the owner's interest is 100%; and

(3) The name, telephone number, facsimile number, and business or residence address, including street name and number, city, state and zip code, of the current manager and, if the manager is other than an individual, the name, title, telephone number, facsimile number and business or residence address, including street name and number, city, state and zip code, of the individual to be contacted for any purpose under this article relating to the convenience store.

The use of a public or private post office box or other similar address shall not be sufficient for the purposes of complying with this subsection.

(c) Any change of ownership of a convenience store, including, but not limited to, the sale of the convenience store or any ownership interest therein, shall require the purchaser or transferee to update the information provided under subsection (b) of this section and to file the updated information with the police official within 30 days of the effective date of the ownership change. The same requirement shall apply to any change relating to the owner's registered agent and manager. A prior owner shall advise the police official that he no longer holds any ownership interest in the property.

(d) The owner of a newly constructed or established convenience store shall comply with the provisions of this section not later than the thirtieth day following completion of construction or new opening of the convenience store, whichever occurs first.

(e) After a convenience store complies with the provisions of this section, the police official will provide to the convenience store:

(1) A registration compliance decal which shall be displayed above a public entrance door to the convenience store; and

(2) A registration statement, a true and correct copy of which shall be posted in the convenience store at all times in a conspicuous place accessible at all times to the public.

(f) Compliance with the requirements of this section shall be deemed to meet the requirements of 250.003 and 250.004 of the Texas Local Government Code.
(Ord. No. 08-248, § 2, 3-26-08)

Sec. 28-403. Employee, manager, supervisor safety training.

(a) All newly-hired employees, managers, and immediate supervisors of managers must complete a safety training program before reporting for duty and at least annually thereafter. Employees, managers and immediate supervisors of managers who are employed by a convenience store on the effective date of this ordinance must complete a safety training program not later than the ninetieth day following the effective date of this ordinance.

(b) All persons who complete the required safety training program shall sign a statement indicating the date, time and place the safety training program was completed. The owner shall keep the statements or copies of the statements on file in the convenience store for at least two years and make them available to the police official or the health officer immediately upon request.
(Ord. No. 08-248, § 2, 3-26-08)

Sec. 28-404. Trespass affidavit.

The owner of a convenience store shall execute a trespass affidavit as promulgated by the police department in order to enforce all applicable trespass laws on the owner's behalf at such property. A true and correct copy of the trespass affidavit shall be posted at the convenience store at all times in a conspicuous place accessible at all times to the public.
(Ord. No. 08-248, § 2, 3-26-08)

Sec. 28-405. Security signs; height strips.

(a) A convenience store shall have posted at all public exits and entrances "No Loitering" and "No Trespassing" signs in lettering two inches or larger, in English and in Spanish. Additionally, a convenience store shall post such signs on the front, sides, and rear of the convenience store.

(b) A convenience store shall have height strips posted at all public exits.
(Ord. No. 08-248, § 2, 3-26-08)

Sec. 28-406. Visibility.

A convenience store shall maintain an unobstructed line of sight allowing a clear view of and from the cash register and sales transaction area through all windows and public access doors. Such windows and doors must be clear of all items that would obstruct a clear view including, but not limited to, tinting, signage, advertisements, shelving, and merchandise. Such unobstructed line of sight must, at a minimum, extend from three feet above the ground to at least six feet above the ground.
(Ord. No. 08-248, § 2, 3-26-08)

Sec. 28-407. Alarm system.

(a) A convenience store shall have a silent panic or holdup alarm system for which a permit has been issued in accordance with Chapter 11 of this Code. This system shall, at a minimum, include a panic button located within reach of the cash register and out of view of the customer. Such panic button will generate an alarm signal indicating a holdup or other life-threatening emergency requiring a police department response.

(b) A convenience store shall have posted at all public exits and entrances signs or decals indicating that a security alarm system is in use.
(Ord. No. 08-248, § 2, 3-26-08)

Sec. 28-408. Drop safe.

(a) A convenience store shall have a drop safe on the premises to keep the amount of cash available to employees to a minimum. A drop safe must be bolted to the floor. A drop safe may have a time-delay mechanism to allow small amounts of change to be removed.

(b) A convenience store shall have a cash accountability policy mandating the maximum amounts of cash that can be kept in cash registers.

(c) A convenience store shall have posted at all public exits and entrances signs or decals indicating that employees cannot open the safe and that employees have minimum cash on hand.
(Ord. No. 08-248, § 2, 3-26-08)

Sec. 28-409. Surveillance camera system.

(a) A convenience store shall have a minimum of two color digital high-resolution surveillance cameras. One camera must have an overall view of the counter/register area and the other camera a view of the main entrance/exit area and both shall display the date and time of the recording.

(b) The entrance/exit area camera shall be placed to provide a clear and identifiable full frame of the filmed individual's face.

(c) The cameras shall be operated at all times, including hours when the store is not open for business.

(d) The owner shall provide the police department with digital color images in connection with crime investigations upon request.

(e) The owner shall maintain a library of the recorded digital images for not less than 30 days.

(f) A convenience store shall have posted at all public exits and entrances signs or decals indicating that surveillance cameras are in use.
(Ord. No. 08-248, § 2, 3-26-08)

Sec. 28-410. Violation.

Any failure to comply with any applicable provision of this article shall be an offense punishable as provided in section 1-6 of this Code.
(Ord. No. 08-248, § 2, 3-26-08)

Sec. 28-411. Exterior lighting.

A convenience store shall be equipped with exterior lighting fixtures of sufficient intensity to illuminate every place to which customers are permitted access, including, without limitation, the exterior of the main building, storefront entrances, parking areas, and fuel pump islands, at an illumination of not less than six footcandles (65 lux) as measured at five feet above the ground level. Exterior lighting must not be directed to illuminate a neighboring residential property. Exterior lighting must be turned on daily between sunset and sunrise.
(Ord. No. 2022-307, § 3, 4-20-2022)

Secs. 28-412—28-450. Reserved.

ARTICLE XIV. BOARDING HOMES*

DIVISION 1. GENERALLY

Sec. 28-451. Definitions.

As used in this article, the following words, terms and phrases shall have the meanings assigned to them in this section, unless the context of their usage clearly indicates a different meaning:

Assistance with self-administration of medication means assisting a resident by reminding the resident to take medication, opening and removing medications from a container, or reminding the resident when a prescription medication needs to be refilled.

Boarding home or *boarding home facility* means an establishment that:

(1) Furnishes, in one or more buildings, lodging to three or more persons with disabilities or elderly persons who are unrelated to the owner of the establishment by blood or marriage; and

(2) Provides residents with community meals, light housework, meal preparation, transportation, grocery shopping, money management, laundry services, or assistance with self-administration of medication, but does not provide personal care

*__Editor's note__—Ord. No. 2018-225, § 2(Exh. A), adopted March 22, 2018, amended Ch. 28, Art. XIV in its entirety to read as herein set out. Former Art. XIV pertained to similar subject matter and derived from Ord. No. 2013-674, § 7, 7-24-2013 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

services as defined by Section 247.002 of the Texas Health and Safety Code to those persons.

Business day means the city's standard days of operation; 8:00 a.m. to 5:00 p.m., Monday through Friday, but shall exclude any day designated as an official city holiday or for which the operations of the city have been reduced or closed due to any unforeseen circumstance or emergency.

Department means Houston Public Works.

Director means the director of the department and the director's designees.

Elderly person means a person who is 65 years of age or older.

Employee means a person who regularly works in a boarding home facility.

Hearing officer means an individual designated by the director to conduct administrative appeal hearings.

Operator means the person in control of a boarding home facility.

Owner means the proprietor if a sole proprietorship, all general partners if a partnership, or the corporation and all officers, directors, and persons holding 50 percent or more of the outstanding shares of the corporation, if a corporation.

Permit means a current, valid permit issued by the director pursuant to the terms of this article to an operator for a boarding home facility.

Person with a disability means a person with a mental, physical, intellectual or developmental disability that substantially impairs the person's ability to provide adequately for the person's care or protection and who is:

(1) 18 years of age or older; or

(2) Less than 18 years of age and who has had the disabilities of minority removed.

Resident means a person who is residing in a boarding home facility.

(Ord. No. 2018-225, § 2(Exh. A), 3-22-2018)

Sec. 28-452. Scope.

This article applies to all boarding home facilities as defined in this article, regardless of when they began operation, except as otherwise provided by this article.

(Ord. No. 2018-225, § 2(Exh. A), 3-22-2018)

Sec. 28-453. Previously registered boarding homes.

A boarding home that is operating under a current and valid registration certificate on March 22, 2018, shall come into full compliance with this article by October 1, 2019.

(Ord. No. 2018-225, § 2(Exh. A), 3-22-2018)

Sec. 28-454. Exemptions.

This article does not apply to:

(1) Home and community support services licensed under Texas Health and Safety Code Chapter 142, as amended.

(2) Convalescent and nursing facilities and related institutions licensed under Texas Health and Safety Code Chapter 242, as amended.

(3) Continuing care facilities licensed under Texas Health and Safety Code Chapter 246, as amended.

(4) Assisted living facilities licensed under Texas Health and Safety Code Chapter 247, as amended.

(5) Intermediate care facilities for individuals with an intellectual disability licensed under Texas Health and Safety Code Chapter 252, as amended.

(6) A person who provides home health, hospice, habilitation, or personal assistance services only to persons receiving benefits under:

a. The home and community-based services (HCS) waiver program;

b. The Texas home living (TxHmL) waiver program;

c. The STAR + PLUS or other Medicaid managed care program under the program's HCS or TxHmL certification; or

d. Texas Government Code Section 534.152.

(7) An establishment conducted by or for the adherents of a well-recognized church or religious denomination for the purpose of providing facilities for the care or treat-

ment of the sick who depend exclusively on prayer or spiritual means for healing, without the use of any drug or material remedy, if the establishment complies with safety, sanitary, and quarantine laws and rules as described in Texas Health and Safety Code Section 242.003(3), as amended.

(8) A facility that provides personal care services only to persons enrolled in a program that is funded in whole or in part by the Texas Department of Health and Human Services (HHS) and that is monitored by HHS or its designated local intellectual and developmental disability authority in accordance with standards set by HHS or is funded in whole or in part by the Texas Department of State Health Services and that is monitored by that department or by its designated local mental health authority in accordance with standards set by HHS, as described in Texas Health and Safety Code Section 247.004(4), as amended.

(9) A hotel as defined by Texas Tax Code Section 156.001, as amended.

(10) A retirement community as defined by Texas Tax Code Section 11.18, as amended.

(11) The living quarters or dwelling units for a religious order or for the congregation of persons under religious vows, such as a monastery or convent.

(12) A child-care facility as defined by Texas Human Resources Code Section 42.002, as amended.

(13) A family violence shelter center as defined by Texas Human Resources Code Section 51.002, as amended.

(14) A fraternity or sorority house, or other dormitory, associated with an institution of higher education.

(15) A multi-family rental building, as defined in section 10-152 of this Code.

(Ord. No. 2018-225, § 2(Exh. A), 3-22-2018)

Sec. 28-455. Rules; forms.

The director may issue rules and regulations for the operation of this article and shall promulgate application and permit forms. A copy of the forms, rules, and procedures, if any, shall be maintained in the office of the director or on the city's web site for inspection, and copies may be purchased at the fee prescribed by law.
(Ord. No. 2018-225, § 2(Exh. A), 3-22-2018)

Sec. 28-456. Notices.

(a) Any notice required or permitted to be given by the director or any other city office, division, department or other agency under this article to any applicant, operator or owner of a boarding home may be given by personal delivery, electronic mail, or United States mail, postage prepaid, addressed to the most recent address as specified in the application for the permit most recently received by the director, or any notice of address change most recently received by the director. Notices mailed as above shall be deemed given upon their deposit in the United States mail.

(b) Any notice required or permitted to be given to the director by any person under this article shall not be deemed given until and unless it is received in the office of the director.

(c) It shall be the duty of each owner who is designated on the permit application and each operator to furnish notice to the director in writing of any change of residence or mailing address.
(Ord. No. 2018-225, § 2(Exh. A), 3-22-2018)

Sec. 28-457. Penalty; continuing violations.

(a) Violation of any provision of this article shall be punishable by a fine of $500.00. Each day any violation continues shall constitute and be punishable as a separate offense.

(b) The revocation of any permit shall not prohibit the imposition of a criminal penalty, and the imposition of a criminal penalty shall not prevent the revocation or suspension of a permit.
(Ord. No. 2018-225, § 2(Exh. A), 3-22-2018)

Secs. 28-458—28-460. Reserved.

DIVISION 2. PERMITS

Sec. 28-461. Permit.

(a) It shall be unlawful for any person to own or operate a boarding home within the city limits without a permit issued by the department pursuant to this article.

(b) Obtaining or holding a permit under this article shall not be interpreted to excuse or relieve a boarding home facility or its owner, operator, or any employee from compliance with state law or other provision of this Code.

(c) A permit is personal to the owner of the facility for which it is issued and may not be transferred or otherwise assigned. Any change in ownership of the facility will require the filing of a new permit application within ten business days following the effective date of the change. The application shall be subject to the same fees and shall be treated in the same manner in all respects as an original application. Failure to timely file the new application for a permit may result in denial of the permit. If the permit holder for the facility is a corporation, and there is any transfer in the interest of the corporation or of any entity having an interest in the corporation after the permit is issued, the corporation must submit a new permit application within ten business days following the effective date of the change.

(d) A separate permit shall be required for each boarding home facility.

(e) Each permit shall be valid for a period of one year and shall expire on the anniversary of its date of issuance, unless sooner renewed, revoked or surrendered. A permit may be renewed by filing an application for renewal with the director not more than 90 days prior to the expiration date of the permit.
(Ord. No. 2018-225, § 2(Exh. A), 3-22-2018)

Sec. 28-462. Fees.

(a) The annual permit fee stated in the city fee schedule shall be payable upon the issuance of a permit and shall be nonrefundable. The annual boarding home permit fee shall not be subject to the annual adjustment in section 1-13 of this Code.

(b) The boarding home inspection fee stated in the city fee schedule shall be payable prior to the commencement of a scheduled inspection and shall be nonrefundable. The boarding home inspection fee shall not be subject to the annual adjustment in section 1-13 of this Code.
(Ord. No. 2018-225, § 2(Exh. A), 3-22-2018)

Sec. 28-463. Application for permit.

(a) *Application form.* An operator of a boarding home shall apply to the director for a permit annually on forms provided by the director and shall include the following information:

(1) a. The name, street address (and mailing address if different), email address, and Texas driver's license number of the intended operator; and

b. The name, street address (and mailing address if different), and email address of the owner;

(2) The name under which the boarding home is to be operated;

(3) The boarding home facility telephone number;

(4) If the boarding home is to be operated under an assumed name, a certified copy of the assumed name certificate filed in compliance with the Assumed Business or Professional Name Act (Texas Business and Commerce Code, Chapter 71);

(5) If the boarding home is a Texas corporation, a certified copy of the articles of incorporation, together with all amendments thereto;

(6) If the boarding home is a foreign corporation, a certified copy of the certificate of authority to transact business in this state, together with all amendments thereto;

(7) If the boarding home is a limited partnership formed under the laws of Texas, a certified copy of the certificate of limited

partnership, together with all amendments thereto, filed in the office of the Secretary of State under Texas Business Organizations Code chapter 153 or its successor statute;

(8) If the boarding home is a foreign limited partnership, a certified copy of the certificate of limited partnership and the qualification documents, together with all amendments thereto, filed in the office of the Secretary of State under Texas Business Organizations Code chapter 153 or its successor statute;

(9) The address and legal description of the real property on which the boarding home is or is to be situated;

(10) Proof of ownership of the real property upon which the boarding home will be operated in the form of a certified copy of the recorded deed;

(11) If the person identified as the owner of the real property in item (8) is not the owner or operator of the boarding home, then the lease, purchase contract, purchase option contract, lease option contract or other document evidencing the legally enforceable right of the owner or operator of the boarding home to use and possess the real property;

(12) A general description of the services provided;

(13) All security and resident monitoring plans and any additional security and monitoring measures which are to be implemented;

(14) The date on which the applicant began or expects to begin operations as a boarding home at the location;

(15) Copies of the statements required in section 28-466(b) of this Code;

(16) Any other information that may be reasonably requested by the director; and

(17) The following statements conforming to minimum state law requirements for unsworn declarations:

a. A statement by the owner of the real property upon which the boarding home is situated attesting to the knowledge of that owner that the property will be used for the operation of a boarding home;

b. A statement by the owner and operator of the boarding home attesting that the applicant's operation will not violate deed restrictions;

c. A statement by the owner and operator of the boarding home attesting that only framed beds at least six feet long and three feet wide equipped with supportive springs and clean supportive mattresses will be used by the boarding home facility; and

d. A statement by the operator of the boarding home that it is in full compliance with Chapter 325 of the Texas Health and Safety Code.

Any of items (2) through (9) above shall not be required for a renewal application if the applicant states that the documents previously furnished to the director with the original application or previous renewals thereof remain correct and current.

(b) *Criminal history documents.* Along with the application form, an applicant or operator of a boarding home shall submit, for each owner or operator, fingerprints and the signed authorization form described in section 28-464 of this Code in order to facilitate the criminal history check required by that section.

(c) *Request for inspection.* At the time of submission of the application, the owner or operator of a boarding home shall submit a request to the building official for an inspection, as described in section 28-467 of this Code.
(Ord. No. 2018-225, § 2(Exh. A), 3-22-2018)

Sec. 28-464. Criminal history check.

Upon receipt of an application for a permit under this article, the director shall cause the criminal history of each owner and operator designated in the application to be researched. In accordance with the provisions of section 28-463(b) of this Code, each owner and operator shall complete any forms, including any state or federal request and release forms, required for the director to obtain a criminal history report for the owner and operator, and the applicant shall present the required completed forms to the director and shall reimburse the city for any fees imposed by state or federal agencies for the report. This provision shall not be construed to preclude the director from obtaining interim reports at the expense of the city.

As provided in sections 28-465(b)(2)a and section 28-468(a) of this Code, the registration for a boarding home facility may be denied, revoked, or denied for renewal in accordance with section 1-9 of this Code if (1) the owner or operator has been convicted of a criminal offense listed in section 1-10(b)(6) of this Code, or (2) the owner, operator, or boarding home facility has any employee convicted of a criminal offense listed in section 1-10(b)(6) of this Code.
(Ord. No. 2018-225, § 2(Exh. A), 3-22-2018)

Sec. 28-465. Permit process.

(a) *Initial acceptance of application.* The director shall initially review each application for issuance or renewal of a permit to determine whether the application is complete and all required information has been provided. If not, the director shall return the application to the applicant with a statement of deficiencies. The applicant may then correct the deficiencies and resubmit the completed application.

(a-1) *Internet posting by director.* Within five business days of the director's receipt and acceptance of the completed application for the issuance or renewal of a permit, the director shall cause to be posted on an internet website hosted by the department and being accessible to the public the following information as contained in the completed application:

(1) The department's identification, reference, case or application number for the application;

(2) The name of the operator and owner making the application; and

(3) The physical street address and legal description of the real property as contained in the competed application, including but not limited to: the subdivision name, the subdivision section number, and the lot and block number on which the boarding home is or is to be situated.

(b) *Review of application.* The director shall review a complete application to determine whether the applicant has met all applicable requirements of this article and of other applicable provisions, including section 1-10(b)(6) of this Code, and shall:

(1) Return an application that contains any incorrect information;

(2) Deny the issuance or renewal of a permit for which the application:

a. Is submitted by or on behalf of an owner or operator who has been convicted of a criminal offense listed in section 1-10(b)(6) of this Code;

b. Contains materially false information; or

c. Is submitted for a boarding home that is not in compliance with this article; or

(3) Approve the application and issue the permit, subject to compliance with this article, including, but not limited to, inspection of the boarding home and payment of any required fees.

(c) *Denial.* If the director proposes to deny the issuance or renewal of a permit, he shall notify the applicant of the proposed grounds for the denial.

(1) If the denial is not based on section 28-465(b)(2)a of this Code, the applicant may, within ten business days after the date of the notice letter, cure any defect. If the applicant timely cures all defects, the director shall approve the application. If the applicant fails to cure all defects within ten business days after the date of the notice letter, the applicant

may appeal the denial through the procedure described in section 28-470 of this Code.

(2) If the denial is based on section 28-465(b)(2)a of this Code, the applicant may appeal the denial through the procedure described in section 1-9 of this Code.

(d) *Decision final.* The director shall provide written notice to an applicant of either final approval or denial of an application. The director's decision on an application shall be final, unless an appeal is timely filed.

(e) *Additional conditions for issuance of permit.* Notwithstanding the foregoing, no permit shall be issued until:

(1) The director determines that the boarding home facility has passed the required inspection; and

(2) The applicant has paid all required fees.
(Ord. No. 2018-225, § 2(Exh. A), 3-22-2018)

Sec. 28-466. Operating requirements.

(a) *Posting.* The owner or operator of a boarding home facility shall prominently and conspicuously post for display in a public area of the boarding home facility that is readily available to residents and visitors:

(1) The permit issued by the city under this article;

(2) In a font of sufficient size to be easily read, the provisions of Section 102.003 of the Texas Human Resources Code; and

(3) A phone number for the Texas Department of Family and Protective Services for reporting abuse, neglect and exploitation.

(b) *Employee statement.* The operator of a boarding home facility permitted under this article shall require each employee of the boarding home facility, as a condition of employment with the boarding home facility, to sign a statement in a form acceptable to the director that the employee acknowledges that the employee may be criminally liable under Section 48.052, Texas Human Resources Code, for failure to report abuse, neglect, or exploitation of any resident. The operator of a boarding home facility shall provide copies of the statement for a new employee to the director within ten business days of hire.

(c) *Framed beds.* The owner or operator of a boarding home facility shall provide a separate framed bed at least six feet long and three feet wide equipped with supportive springs and a clean supportive mattress 24 hours a day for each resident at the boarding home facility.

(d) *Records.* The owner or operator of each boarding home facility shall maintain on the premises of the facility records sufficient to verify and substantiate all information provided under section 28-463 of this Code. In addition, the owner or operator of each boarding home shall maintain on the premises of the boarding home documentation showing:

(1) Staffing and shift assignments for all employees;

(2) The name of each resident, accompanied by personal identifier information, including date of birth and copy of driver's license or other acceptable state recognized means of identification;

(3) Resident service agreements signed by each resident or the resident's legal representative detailing the services to be provided to the resident by the boarding home facility, and the cost of those services; and

(4) Contact information for the resident's legal representative, if any.

The owner or operator shall maintain information relating to employees or residents required under this section for a period of at least five years after the employee or resident ceases to be employed by or reside at the boarding home, as applicable, and shall maintain all other information required under this section for as long as the boarding home is in operation and two years after it ceases to operate.

(e) *Report of death or criminal activity.* The owner or operator of each boarding home facility shall immediately notify the Houston Police Department of any death or criminal activity that occurs on the premises of the boarding home facility.

(f) *Inspection reports.* The owner or operator shall maintain on the premises a current file of inspection reports and other documentation needed to demonstrate compliance with applicable laws and regulations, including the Fire Code and the Construction Code. The inspection reports must be signed by the inspector, dated, and free of any outstanding issues that require corrective actions.

(g) *Safety or emergency precautions.* The owner or operator of a boarding home shall:

(1) Implement a written fire and evacuation plan for the facility that sets forth the responsibilities and steps to be taken by staff and residents in the event of a fire or other emergency and identifies two points of entry and egress. The owner or operator shall ensure that all staff and residents are shown how to use all emergency exits from the boarding home facility within 24 hours after arrival at the boarding home facility. The owner or operator shall maintain documentation of such training.

(2) Post an emergency evacuation plan in a common area, such as the kitchen or living room.

(3) Ensure that each employee receives training on the emergency evacuation plan at least two times per year and shall maintain documentation of such training.

(4) Ensure that flammable supplies, gasoline-operated equipment, and compressed gas equipment are stored outside of the living area.

(5) Provide a sufficient number of accessible fire extinguishers. The owner or operator shall ensure that a person licensed to inspect fire extinguishers inspects the fire extinguishers annually. The owner or operator shall ensure that the fire extinguishers are recharged when needed by a person licensed to inspect fire extinguishers.

(6) Provide and maintain an operable smoke alarm and, if any gas utility is provided, a carbon monoxide detector in each sleeping area, kitchen, and laundry area. The owner or operator shall ensure that these devices remain in good working order. If a boarding home facility has a resident who is hearing-impaired, the owner or operator shall install and properly maintain a visual smoke alarm that is capable of alerting a hearing-impaired person of the presence of fire or smoke.

(7) Ensure that properly and visibly labeled first aid supplies are readily accessible to all the residents and inform the residents of the location of the supplies.

(Ord. No. 2018-225, § 2(Exh. A), 3-22-2018)

Sec. 28-467. Inspections.

(a) Upon receipt of a request by the owner or operator of a boarding home for an inspection to confirm that the boarding home is in compliance with this Code, including the Fire Code and the Construction Code, the building official shall meet with the owner or operator to determine whether the boarding home will require a certificate of occupancy.

(1) If the building official determines that the owner or operator possesses a certificate of occupancy for the boarding home that is appropriate for the proposed use, the building official shall schedule the boarding home for a boarding home inspection, upon receipt of payment of the fee stated in the city fee schedule;

(2) If the building official determines that the owner or operator possesses a certificate of occupancy for the boarding home that is not appropriate for the proposed use, the building official shall schedule the boarding home for a certificate of occupancy inspection, upon payment of any fee required therefor in the Construction Code;

(3) If the building official determines that the owner or operator does not possess a certificate of occupancy for the boarding home and a certificate of occupancy will be required for the proposed use, the building official shall schedule the boarding home for a certificate of occupancy inspection, upon payment of any fee required therefor in the Construction Code; or

(4) If the building official determines that a certificate of occupancy will not be required for the proposed use of the boarding home, the building official shall schedule the boarding home for a boarding home inspection, upon payment of any fee required therefor in the Construction Code.

The building official shall notify the boarding home operator of the date and time scheduled for the inspection.

(b) The building official or any peace officer may enter the premises of a boarding home facility at reasonable times to conduct an inspection, survey, or investigation to assure compliance with this article and to protect the health, safety, or welfare of the residents of a boarding home. The building official may be assisted in any investigation by representatives of the police department, the fire department, the department of neighborhoods, the Houston Health Department, or other city or state agency or entity with appropriate jurisdiction over matters affecting the health, safety, or welfare of the residents of a boarding home. During the course of any inspection, the owner, operator, and any employee of the boarding home facility shall be required to identify himself and provide documentation of identity upon the request of the building official, or any other city representative participating in the inspection.

(c) At the time of any inspection, the owner or operator of a boarding home facility shall provide the director or peace officer access to books, records, and other documents maintained by or on behalf of a boarding home facility as required under section 28-466 of this Code.
(Ord. No. 2018-225, § 2(Exh. A), 3-22-2018)

Sec. 28-468. Revocation of permit.

(a) A permit may be revoked in accordance with section 1-9 of this Code if:

(1) The owner or operator has been convicted of a criminal offense listed in section 1-10(b)(6) of this Code; or

(2) The owner, operator, or boarding home facility has any employee convicted of a criminal offense listed in section 1-10(b)(6) of this Code.

(b) A permit may be revoked if the director determines that:

(1) The boarding home has not been in compliance with the requirements of any provision of Chapter 260 of the Texas Health and Safety Code;

(2) The owner or operator of the boarding home has received notice of more than five violations of this Code, including the Fire Code or Construction Code, in a one-year period;

(3) Any information supplied in the permit application was materially false or incorrect;

(4) The permit was obtained or issued as a result of error;

(5) The applicant obtained a permit by means of fraud, misrepresentation, or concealment of a fact or that the applicant falsified his original application for a permit; or

(6) Any fact or circumstance exists that would be a basis for denial of an application for issuance or renewal of a permit.

(c) The procedures set forth in section 28-470 of this Code shall apply to appeals to the revocation of permits.
(Ord. No. 2018-225, § 2(Exh. A), 3-22-2018)

Sec. 28-469. Variance.

(a) This article complies with the Fair Housing Amendments Act of 1988 and the Americans with Disabilities Act of 1990. An applicant or resident may request a variance from the applica-

tion of relevant parts of this article to obtain a reasonable accommodation permitting equal access to housing.

(b) An applicant, permit holder, resident with a disability, or a representative of a resident with a disability may apply in writing to the director for a variance on forms provided by the director and shall include the following information:

(1) The name, address, phone number, and e-mail address of the person requesting a variance;

(2) The address of the property for which a variance is sought and the names, addresses and phone numbers of any known individuals with a disability who would benefit from the requested variance; and

(3) A clear description of the variance requested, the applicable rule from which a variance is sought and explain how the variance would enable a reasonable accommodation of a person with a disability and afford equal access to housing.

(c) The director may conduct an inspection of the boarding home, its records and the real property upon which it is situated to facilitate the director's assessment of the variance request. The director shall assess the variance request based on:

(1) The timeliness and extent of access to records, land and facility granted or denied by the applicant;

(2) Whether the housing that is the subject of the request will be used by one or more individuals with a disability;

(3) Whether the requested accommodation is necessary to make specific housing available to one or more individuals with a disability;

(4) Whether the requested accommodation would impose an undue financial or administrative burden on the city;

(5) Whether the requested accommodation would require a fundamental alteration in the nature of a city program or law;

(6) The potential impacts of the requested accommodation on the applicant, the other residents of the boarding home facility, and the surrounding neighborhood;

(7) Whether a failure to grant an accommodation would result in the property having no economically viable use; and

(8) Whether there are alternative accommodations that are reasonable and have an equal or lesser impact on the city, the applicant, the other residents of the boarding home facility, and the surrounding neighborhood.

(d) The director shall notify any person requesting a variance that the variance is approved or denied in writing, and if denied, state the director's reasons for denying the variance. The director may impose reasonable conditions on any variance granted.

(e) The procedures set forth in section 28-470 of this Code shall apply to appeals of requests for variances or accommodations under this section. (Ord. No. 2018-225, § 2(Exh. A), 3-22-2018)

Sec. 28-470. Appeals.

(a) *Request for appeal.* An applicant or owner or operator of a boarding home may appeal a denial of a variance or the application for or renewal of a permit or the revocation of a permit within ten business days after date of deposit of written notice in the mail by submitting a written request for an appeal to the director. If the applicant does not request a hearing within ten business days, the denial is effective and final on the eleventh business day after the date of the director's notice of denial.

(b) *Conduct of hearing; rules and procedures.* An appeal hearing shall be conducted on a single weekday within 20 business days after the director receives a request for appeal and shall last no longer than eight hours. Further, an appeal hearing shall be informal and conducted under rules established by the director consistent with the informal nature of the proceedings; provided, however, the following rules shall apply to all appeal hearings conducted under this section:

(1) All parties shall have the right to representation by an attorney licensed to practice in Texas, though an attorney is not required;

(2) Each party may present witnesses in his own behalf

(3) Each party shall have the right to cross examine all witnesses and

(4) The hearing officer shall consider only the evidence presented at the appeal hearing in rendering a final decision.

(c) *Authority of hearing officer.* The hearing officer may affirm or reverse a denial or revocation under this article. The hearing officer shall affirm a denial or revocation if he determines by a preponderance of the evidence that grounds exist for the denial or revocation, respectively. The decision of the hearing official is final.

(d) *Notice of decision.* The hearing official shall give written notice of the decision to the applicant or owner or operator of the facility and the reasons therefor. The notice shall be provided by certified mail, return receipt requested, as soon after the conclusion of the hearing as practicable, but not more than 30 business days thereafter.
(Ord. No. 2018-225, § 2(Exh. A), 3-22-2018)

Sec. 28-471. Review to city council.

The director shall provide a review about this article to city council one year after it takes effect (March 22, 2018) and each year thereafter.
(Ord. No. 2018-225, § 2(Exh. A), 3-22-2018)

Secs. 28-472—28-480. Reserved.

ARTICLE XV. CONSUMER PROTECTION

DIVISION 1. CREDIT ACCESS BUSINESSES

Subdivision A. General Provisions

Sec. 28-481. Definitions.

In this article:

Certificate of registration means a certificate of registration issued by the director under this article to the owner or operator of a credit access business.

Consumer means an individual who is solicited to purchase or who purchases the services of a credit access business.

Consumer's language of preference is the language the consumer understands best.

[The next page is 2032.15]

Credit access business has the meaning given that term in Section 393.601 of the Texas Finance Code.

Deferred presentment transaction has the meaning given that term in Section 393.601 of the Texas Finance Code.

Director means the director of the department designated by the mayor to enforce and administer this chapter.

Extension of consumer credit has the meaning given that term in Section 393.001 of the Texas Finance Code.

Motor vehicle title loan has the meaning given that term in Section 393.601 of the Texas Finance Code.

Registrant means a person issued a certificate of registration for a credit access business under this article and includes all owners and operators of the credit access business identified in the registration application filed under this chapter.

State license means a license to operate a credit access business issued by the Texas Consumer Credit Commissioner under Chapter 393, Subchapter G of the Texas Finance Code.

(Ord. No. 2013-1163, § 2, 12-18-2013, eff. 7-1-2014)

Sec. 28-482. Violations; penalty.

(a) A person who violates a provision of this article, or who fails to perform an act required of the person by this article, commits an offense. A person commits a separate offense for each and every violation relating to an extension of consumer credit, and for each day during which a violation is committed, permitted, or continued.

(b) An offense under this article is punishable as provided in section 1-6 of this Code.

(c) A culpable mental state is not required for the commission of an offense under this article and need not be proved.

(d) The penalties provided for in subsection (b) of this section are in addition to any other remedies that the city may have under city ordinances and state law.

(Ord. No. 2013-1163, § 2, 12-18-2013, eff. 7-1-2014)

Sec. 28-483. Defense.

It is a defense to prosecution under this article that at the time of the alleged offense the person was not required to be licensed by the state as a credit access business under Chapter 393, Subchapter G, of the Texas Finance Code.

(Ord. No. 2013-1163, § 2, 12-18-2013, eff. 7-1-2014)

Secs. 28-484—28-490. Reserved.

Subdivision B. Registration of Credit Access Businesses

Sec. 28-491. Registration required.

A person commits an offense if the person acts, operates, or conducts businesses as a credit access business without a valid certificate of registration. A certificate of registration is required for each physically separate credit access business.

(Ord. No. 2013-1163, § 2, 12-18-2013, eff. 7-1-2014)

Sec. 28-492. Registration application.

(a) To obtain a certificate of registration for a credit access business, a person must submit an application on a form provided for that purpose to the director. The application must contain the following:

(1) The name, street address, mailing address, facsimile number, and telephone number of the applicant.

(2) The business or trade name, street address, mailing address, facsimile number, and telephone number of the credit access business.

(3) The names, street addresses, mailing addresses, and telephone numbers of all

owners of the credit access business, and the nature and extent of each person's interest in the credit access business.

(4) A copy of a current, valid state license held by the credit access business pursuant to Chapter 393, Subchapter G of the Texas Finance Code.

(5) A copy of a current, valid certificate of occupancy showing that the credit access business is in compliance with the Construction Code.

(6) The non-refundable application fee stated for this provision in the city fee schedule.

(b) An applicant or registrant shall notify the director within 45 days after any material change in the information contained in the application for a certificate of registration, including, but not limited to, any change of address and any change in the status of the state license held by the applicant or registrant.
(Ord. No. 2013-1163, § 2, 12-18-2013, eff. 7-1-2014)

Sec. 28-493. Issuance and display of certificate of registration; presentment upon request.

(a) The director shall issue to the applicant a certificate of registration upon receiving a completed application under section 28-492 of this Code.

(b) A certificate of registration issued under this section must be conspicuously displayed to the public in the credit access business. The certificate of registration must be presented upon request to the director or any peace officer for examination.
(Ord. No. 2013-1163, § 2, 12-18-2013, eff. 7-1-2014)

Sec. 28-494. Expiration and renewal of certificate of registration.

(a) A certificate of registration expires on the earliest of:

(1) One year after the date of issuance; or

(2) The date of revocation, suspension, surrender, expiration without renewal, or other termination of the registrant's state license.

(b) A certificate of registration may be renewed by making application in accordance with section 28-492 of this Code. A registrant shall apply for renewal at least 30 days before the expiration of the registration.
(Ord. No. 2013-1163, § 2, 12-18-2013, eff. 7-1-2014)

Sec. 28-495. Non-transferability.

A certificate of registration for a credit access business is not transferable.
(Ord. No. 2013-1163, § 2, 12-18-2013, eff. 7-1-2014)

Secs. 28-496—28-500. Reserved.

Subdivision C. Miscellaneous Requirements for Credit Access Businesses

Sec. 28-501. Maintenance of records.

(a) A credit access business shall maintain a complete set of records of all extensions of consumer credit arranged or obtained by the credit access business, which must include the following information:

(1) The name and address of the consumer.

(2) The principal amount of cash actually advanced.

(3) The length of the extension of consumer credit, including the number of installments and renewals; and

(4) The fees charged by the credit access business to arrange or obtain an extension of consumer credit; and

(5) The documentation used to establish a consumer's income under section 29-502 of this Code.

(b) A credit access business shall maintain a copy of each written agreement between the credit access business and a consumer evidencing an

extension of a consumer credit (including, but not limited to, any refinancing or renewal granted to the consumer).

(c) A credit access business shall maintain copies of all quarterly reports filed with the Texas Consumer Credit Commissioner under Section 393.627 of the Texas Finance Code.

(d) The records required to be maintained by a credit access business under this section must be retained for at least three years and made available for inspection by the city upon request during the usual and customary business hours of the credit access business.
(Ord. No. 2013-1163, § 2, 12-18-2013, eff. 7-1-2014)

Sec. 28-502. Restriction on extension of consumer credit.

(a) The cash advanced under an extension of consumer credit that a credit access business obtains for a consumer or assists a consumer in obtaining in the form of a deferred presentment transaction may not exceed 20 percent of the consumer's gross monthly income.

(b) The cash advanced under an extension of consumer credit that a credit access business obtains for a consumer or assists a consumer in obtaining in the form of a motor vehicle title loan may not exceed the lesser of:

(1) Three percent of the consumer's gross annual income; or

(2) 70 percent of the retail value of the motor vehicle.

(c) A credit access business shall use a paycheck or other documentation establishing income to determine a consumer's income.

(d) An extension of consumer credit that a credit access business obtains for a consumer or assists a consumer in obtaining and that provides for repayment in installments may not be payable in more than four installments. Proceeds from each installment must be used to repay at least 25 percent of the principal amount of the extension of consumer credit. An extension of consumer credit that provides for repayment in installments may not be refinanced or renewed.

(e) An extension of consumer credit that a credit access business obtains for a consumer or assists a consumer in obtaining and that provides for a single lump sum repayment may not be refinanced or renewed more than three times. Proceeds from each refinancing or renewal must be used to repay at least 25 percent of the principal amount of the original extension of consumer credit.

(f) For purposes of this section, an extension of consumer credit that is made to a consumer within seven days after a previous extension of consumer credit has been paid by the consumer will constitute a refinancing or renewal.
(Ord. No. 2013-1163, § 2, 12-18-2013, eff. 7-1-2014; Memorandum of 1-23-2014)

Sec. 28-503. Requirement of consumer understanding of agreement.

(a) Every agreement between the credit access business and a consumer evidencing an extension of consumer credit (including, but not limited to, any refinancing or renewal granted to the consumer), must be written in the consumer's language of preference. Every credit access business location must maintain on its premises, to be available for use by consumers, agreements in the English and Spanish languages.

(b) For every consumer who cannot read, every agreement between the credit access business and a consumer evidencing an extension of consumer credit (including, but not limited to, any refinancing or renewal granted to the consumer) must be read to the consumer in its entirety in the consumer's language of preference, prior to the consumer's signature.

(c) For every consumer who cannot read, every disclosure and notice required by law must be read to the consumers in its entirety in the consumer's language of preference, prior to the consumer's signature.
(Ord. No. 2013-1163, § 2, 12-18-2013, eff. 7-1-2014)

Sec. 28-504. Referral to consumer credit counseling.

A credit access business shall provide a form, to be prescribed by the director, to each consumer

seeking assistance in obtaining an extension of consumer credit which references non-profit agencies that provide financial education and training programs and agencies with cash assistance programs. The form will also contain information regarding extensions of consumer credit, and must include the information required by section 28-501 of this article specific to the loan agreement with the consumer. If the director has prescribed a form in the consumer's language of preference, the form must be provided in the consumer's language of preference.
(Ord. No. 2013-1163, § 2, 12-18-2013, eff. 7-1-2014)

Secs. 28-505—28-520. Reserved.

ARTICLE XVI. REGULATION OF TOWERS*

Sec. 28-521. Definitions.

As used in this article, the following words and terms shall have the meanings ascribed below, unless the context of their usage clearly indicates another meaning:

Alteration means any modification, replacement, or reconstruction that increases the height or materially increases the dimension of a tower structure.

Antenna means a device or system of wires, poles, rods, dishes, discs or similar devices used for the transmission and/or receipt of electromagnetic waves.

Camouflage design or *camouflage tower* means the design of a tower or tower structure that blends into the surrounding environment and is visually unobtrusive. Examples of a camouflage design or tower are architecturally screened, roof-mounted antenna/array/equipment, building-mounted antenna/array/equipment that is painted and treated as an architectural element to blend with the existing building, designs that conceal the antenna/array/equipment, man-made trees, clock towers, bell towers, steeples, light poles, and similar alternative-design mounting structures.

Commission means the tower permit commission.

Department means the department of planning and development.

Director means the director or director's designee of the department.

FAA means the Federal Aviation Administration.

FCC means the Federal Communications Commission.

Grade means the lowest point of elevation of the finished surface of the ground, paving or sidewalk within the area between the building or structure and a line five feet from the building or structure.

HAHC means the Houston Archaeological and Historical Commission.

Height of the building means the vertical distance above a reference datum measured to the highest point of the coping of a flat roof or to the deck line of a mansard roof or to the average height of the highest gable of a pitched or hipped roof. The reference datum shall be selected by either of the following, whichever yields a greater height of the building:

a. The elevation of the highest adjoining sidewalk or ground surface within a five-foot horizontal distance of the exterior wall of the building when the sidewalk or ground surface is not more than ten feet above the lowest grade.

b. An elevation ten feet higher than the lowest grade when the sidewalk or ground surface described in item (a) above is more than ten feet above lowest grade.

The height of a stepped or terraced building is the maximum height of any segment of the building.

Height of the tower means the vertical distance between the finished grade at the base of the

*__Editor's note—__Ord. No. 2014-364, § 6(Exh. A), adopted April 30, 2014, redesignated Ch. 41, Art. III, §§ 41-50—41-67 as a new Ch. 28, Art. XVI, §§ 28-521—28-543 to read as herein set out.

tower or the lowest point of contact with the building, and the highest point of the tower structure, excluding the antenna, if any.

High mast light structure means a fixed, freestanding uninhabitable structure of a minimum height of 100 feet, specifically designed to carry light fixtures that is built on land on, along or adjacent to streets, roads, highways and bridges maintained by the state or political subdivision of the state.

Historic district means a district so designated by city council under article III of chapter 33 of this Code or an area for which an application for designation has been initiated thereunder and has not been disapproved by city council.

Landmark means a property so designated by city council under article III of chapter 33 of this Code or a property for which an application for designation has been initiated thereunder and has not been disapproved by city council.

Park means any property of the state or political subdivision thereof that is designated for and restricted to use by the public for park purposes.

Public utility means any person, company, corporation, cooperative corporation, partnership, or any combination thereof, that is subject to both a municipal franchise agreement and the comprehensive regulatory system established by and defined in the Texas Public Utility Regulatory Act, that owns or operates for compensation equipment or facilities for:

a. Producing, generating, transmitting, distributing, selling, or furnishing electricity; or

b. The conveyance, transmission, or reception of communications over a telephone system as a dominant carrier.

The term "public utility" shall not include, as is defined in the Public Utility Regulatory Act, telegraph services, television stations, radio stations, community antenna television services, general radio-telephone services, or radio-telephone services authorized under the Public Mobile Radio Services rules of the Federal Communications Commission or private water companies.

Residence means any permanent building or structure containing habitable rooms for nontransient occupancy, designed and used primarily for living, sleeping, cooking and eating, which is intended to be used or occupied as a dwelling place for residential purposes, whether or not attached, including homes, town homes, patio-homes, duplexes, triplexes, quadraplexes, condominiums and apartments. Multi-unit complexes shall be included at a ratio of one-eighth acre of land, or any fraction thereof, as being equivalent to one residential tract. For purposes of calculating the ratio of multi-unit complex acreage to residential tracts, only that portion of the multi-unit complex acreage within the residential test area shall be considered. Hotels, motels, boarding houses, group homes, half way houses, nursing homes, hospitals, nursery schools, schools, and child care facilities shall not be considered residences. A building or structure located on a lot or tract of land used as the site of a tower shall not be considered a residence so long as its primary use is to contain, house, store, and protect materials or equipment directly related to the purpose and use of the tower.

Residential means pertaining to the use of land for a residence as is defined in this section.

Residential lot means:

a. A lot which is included within a recorded residential subdivision subject to any enforceable, valid and unexpired residential deed restrictions upon which a residence exists or may be constructed pursuant to those valid and applicable deed restrictions, or

b. An unrestricted lot upon which a residence exists.

Residential restrictions means one or more restrictive covenants limiting the use of the property to residential purposes that are contained or incorporated by reference in a properly recorded map, plat, replat, declara-

tion, deed, judgment or other instrument filed in the county real property records, map records or deed records.

Residential area means the area around a proposed tower site that, within the residential test area, contains fifty percent or more tracts wholly or partially therein that are subject to residential restrictions or are in use for residential purposes.

Residential test area means the circular area, as described herein, surrounding a proposed tower structure. The radius of the circle shall be at least 375 feet and not more than 800 feet, and the center of the circular area shall correspond to the center of the base of the proposed tower structure. The radius of the circular area shall conform to the following ratios:

375 feet radius at a tower height of 100 feet or less

600 feet radius at a tower height of more than 100 feet but not more than 150 feet

800 feet radius at a tower height of more than 150 feet

Scenic area means those areas of the city so designated by city council, as listed in the *Sign Code,* except that, for purposes of this article, any designated scenic area that has one or more high mast light structures within its boundaries shall not be deemed a scenic area.

Setback area means the circular area surrounding a proposed tower structure and which delineates the area between the site of the proposed tower and the nearest residential structure or residential restricted tract of land as established in section 28-524(g) of this Code.

Subdivision means all land encompassed within one or more maps or plats of land within the city that is divided into two or more parts and are recorded in the deed, map or real property records of the county or counties in which the land covered by the map or plat is located.

Tower or *tower structure* means a fixed, freestanding or guyed, uninhabitable structure, not designed as a shelter or to be occupied for any use. This definition includes, but is not limited to, any such structure supporting antennae that transmit or receive any portion of the electromagnetic spectrum of radio waves. The following are, by way of example but not limitation, towers or tower structures: guyed or freestanding monopole structures, lattice or open framed structures, antennae supports, water towers, and other similar self-supporting, trussed, or open framed structures.

Tract means a contiguous parcel of property under common ownership.

(Ord. No. 91-1734, § 2, 12-11-91; Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, §§ 6(Exh. A), 7, 4-30-2014; Ord. No. 2021-1037, § 20(Exh. I.28), 12-1-2021, eff. 4-1-2022)

Sec. 28-522. Tower permit required.

(a) An application for a tower permit shall be submitted to the department and approved in accordance with the provisions of this article prior to the construction, placement or alteration of any tower or tower structure, as defined in this article and not specifically excluded herein, that is located within the boundaries of the municipality.

(b) A tower permit shall not be required for any tower repaired, replaced, or modified with no resulting increase in height or dimension and any tower repaired, replaced or modified in order to comply with the requirements of any statute, regulation, order, or rule of the FCC, the FAA, or any other federal, state or governmental agency or authority.

(c) Notwithstanding any other provision of this article, the owner of an antenna tower for which a tower permit and building permit were issued prior to April 14, 1998, may, without obtaining a new permit, upon written notice to the director, replace the tower with a new tower if the new tower structure complies with the requirements of sections 28-526 through 28-529 of this Code and: (i) is specifically designed to accommodate additional antenna arrays, (ii) is not more than 20 feet higher than the tower

structure being replaced, (iii) is not more than 50 feet from the location of the tower structure being replaced and (iv) the center of the tower structure is no closer to the nearest residence than the center of the tower structure it replaces. The new tower structure shall be assigned the same permit number as the tower structure it replaces. A tower structure may be replaced only once under this subsection.

(Ord. No. 91-1734, § 2, 12-11-91; Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, § 6(Exh. A), 7, 4-30-2014)

Sec. 28-523. Exemptions.

This article does not apply to the following structures:

(1) Church bell towers and religious symbols associated with a place of worship;

(2) Tower structures less than 60 feet in height;

(3) Tower structures used primarily for the support of amateur and citizens' band radio antennae;

(4) Tower structures that are attached to, placed upon, or constructed on top of a building provided that the height of the tower structure does not exceed 60 feet or the height of the building upon which the tower is constructed, whichever is less;

(5) Tower structures on real property owned, leased, held or used, or dedicated for use by a public utility for rendering its service, such as tower structures used primarily for the transmission of electrical power by a public utility or the conveyance of communications over a telephone wire-line system operated by a public utility;

(6) High mast tower structures or antennas built on land on, along or adjacent to streets, roads, highways and bridges maintained by the state or a political subdivision of the state;

(7) Tower structures constructed or placed on land or other structures owned, leased, held or dedicated for use by the state or federal government or any political subdivision thereof, which land or other structures are used by the governmental entity primarily for rendering fire, police or other public protection services or utility services, whether or not the tower structure is used jointly by the governmental entity and any other public or private person or entity for other and additional public or private purposes; and

(8) Temporary tower structures used as or in conjunction with construction cranes.

(Ord. No. 91-1734, § 2, 12-11-91; Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, § 6(Exh. A), 4-30-2014)

Sec. 28-524. Location of towers.

(a) A tower permit shall not be approved for the construction of a tower on a lot, tract or parcel of land where the construction of a tower is prohibited, expressly or impliedly, by duly recorded and unexpired deed restrictions or covenants running with the land.

(b) In a residential area, a tower permit shall not be approved for the construction or alteration of a tower structure.

(c) A tower permit shall not be approved for the construction or alteration of a tower structure unless the proposed tower structure is located a distance at least equal to the applicable setback area established by subsection (g).

(d) In an historic district, a tower permit shall not be approved for the construction or alteration of a tower structure unless the proposed tower conforms to the requirements for camouflage design and the HAHC has issued a certificate of appropriateness for the construction of the proposed tower.

(e) In an area within ¼ mile of an historic district or landmark, a tower permit shall not be approved for the construction or alteration of a tower structure unless:

(1) The proposed tower is located from the historic district or landmark, as applicable, a distance at least equal to the applicable setback area established by subsection (g), which shall for this limited purpose apply without regard to the existence of any residential lot; for purposes of this requirement, measurements shall be made from the perimeter of the historic district or landmark; and

(2) One or more intervening buildings, structures, topological features or trees will substantially obstruct a person's sight line

of the tower structure from ground level at the perimeter of the historic district or landmark, as applicable.

(f) A tower permit shall not be issued for the construction or alteration of a tower structure in a scenic area, nor shall a tower permit be issued for the construction or alteration of a tower structure in a park or on a tract surrounded by a park.

(g) A tower permit shall not be approved for the construction or alteration of a tower structure unless the distance between the center of the base of a tower and the nearest residential lot is at least one and one-half times the height of the tower or tower structure. The foregoing measurement shall be made to the nearest point on the property line of the residential lot, unless the tower permit application includes a category 3, condition II survey, as defined by the Texas Surveyors Association, of all properties within the setback area. If the survey is provided, the measurement shall instead be made as follows:

(1) If a residence has been constructed on the lot, the measurement shall be from the tower structure to the nearest outside wall of the residential structure on each lot; or

(2) If a residence has not been constructed on the lot, the measurement shall be from the tower structure to the center of the residential lot minus 25 feet.

(h) A tower permit shall not be approved for the construction or alteration of a tower structure within 1,000 feet of an approved tower structure, other than a tower structure for which a permit would not be required under this article. For purposes of this requirement, a tower is considered to be "approved" when a tower permit has been issued pursuant to this article and the tower structure has been constructed or any building permit issued thereunder remains in effect. The director shall promulgate rules and procedures for establishing precedent to the extent of conflict between two or more tower structures.

(i) Property uses and distances referred to in this section shall be determined as of the date and time that the completed tower permit application is filed.

(Ord. No. 91-1734, § 2, 12-11-91; Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, § 6(Exh. A), 4-30-2014)

Sec. 28-525. Tower structure.

Each antenna tower structure for which a permit is approved and issued shall be designed, engineered and constructed to accommodate the placement of a minimum of two antenna arrays. This requirement shall not apply to a camouflage tower.

(Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, § 6(Exh. A), 4-30-2014)

Sec. 28-526. Security fence.

(a) The base of a tower shall be completely enclosed by a fence, wall, or barrier which limits climbing access to the tower and any supporting systems, lines, wires, buildings or other structures.

(b) The fence, wall or barrier required by subsection (a) shall not be less than eight feet in height with no openings, holes or gaps larger than four inches measured in any direction. Gates and doors opening directly into the area enclosed by a fence, wall or barrier, as required by this section, shall be equipped with a lock to keep and capable of keeping the doors or gates securely closed and locked at all times.

(c) The requirements of this section do not apply to:

(1) Any tower located on a building that is not designed or built primarily to support the tower, provided that the general public has no physical access to the tower, or

(2) Existing tower sites having security fences at least six feet in height.

(Ord. No. 91-1734, § 2, 12-11-91; Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, § 6(Exh. A), 4-30-2014)

Sec. 28-527. Screening fence.

(a) The base of a tower, including all mechanical equipment and accessory structures, shall be screened from view of residential lots by a wooden, substantially opaque screening fence designed and built to provide privacy with a minimum height of eight feet.

(b) The screening fence may contain gates or doors allowing access to the tower and accessory structures for maintenance purposes, which shall be kept completely closed except for maintenance purposes and shall be located a minimum of 18 feet from the public right-of-way.

(c) The requirements of this section do not apply to:

(1) Any tower constructed or placed a distance of more than two times the height of the tower structure from all residential lots, or

(2) Any tower located on a building that is not designed or built primarily to support the tower, provided that the general public has no physical access to the tower.

(d) When both sections 28-526 and 28-527 of this Code are applicable, a single fence conforming to all applicable requirements of both sections may be provided.
(Ord. No. 91-1734, § 2, 12-11-91; Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, §§ 6(Exh. A), 7, 4-30-2014)

Sec. 28-528. Landscaping.

(a) A tower site shall have landscaping maintained in a healthy, growing condition at all times and in compliance with all applicable ordinances, deed restrictions and regulations.

(b) At a minimum, a tower site shall have one large shrub capable of reaching a minimum height of four feet for each four linear feet of required screening fence; provided that not less than eight large shrubs shall be provided for each tower site. The shrubs required by this subsection shall be installed at the tower site along the exterior side of the screening fence required in section 28-527 of this Code. All shrubs provided pursuant to this subsection shall be selected from the list of shrubs identified on Appendix D to article V, chapter 33, of this Code.

(c) At a minimum, a tower site shall have one street tree, with a minimum caliper of four inches, for each 50 linear feet of required screening fence; provided that not less than one street tree along each public right-of-way bordering the host tract shall be provided at each tower site. All trees shall be selected from the list of street trees identified on Appendix A-3 to article V, chapter 33, of this Code.

(d) The person or entity in whose name the tower permit is issued shall have complete responsibility for the maintenance of all landscaping required by this section.

(e) Any tower site that is excluded from the screening requirements of section 28-527(c) of this Code shall also be excluded from the landscape requirements of this section for which any amount of linear footage of screening fence is required.
(Ord. No. 91-1734, § 2, 12-11-91; Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, §§ 6(Exh. A), 7, 4-30-2014)

Sec. 28-529. Signs and lights.

(a) Lettering, signs, symbols, images or trademarks large enough to be legible to occupants of vehicular traffic on any adjacent roadway shall not be placed on or affixed to any part of a tower, antenna array or antenna, other than as required by FCC regulations regarding tower registration or other applicable law.

(b) A tower or tower structure shall not be artificially lighted, unless required by the FAA or other applicable authority. If lighting is required by law or regulation, a design that reasonably minimizes disturbance to any adjacent residence(s) or landmark shall be utilized.
(Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, § 6(Exh. A), 4-30-2014)

Sec. 28-530. Application procedures for a tower permit.

(a) An application for a tower permit shall be submitted to the department in the time and manner prescribed by the director. The applicant shall, with the filing of the completed tower permit application, submit payment of the tower permit fees calculated to reasonably cover the expenses of administering the provisions of this article and stated for this provision in the city fee schedule.

(b) The application shall not be considered complete unless accompanied by any drawings, descriptive data, filing fees, ownership information, and other pertinent data that may be required by the director. Each application for a tower permit or for a waiver shall include envelopes addressed to the owners and a complete list of those owners, as is indicated by the most recently approved tax rolls, of all properties within the residential test area of the proposed tower site.

(c) In the event that any of the required documentation, data, reports or drawings contain any false or erroneous information known to the applicant, then any permit issued pursuant to that false or erroneous information shall be void with the same force and effect as if it had never been issued.

(d) The director shall issue a permit for construction, placement or alteration of a tower only if it meets the requirements of this article.

(e) On or before the 30th calendar day following the filing of the required application, the director shall issue to the applicant a written notice of disapproval or preliminary approval of the tower permit. Any notice of disapproval of a tower permit application must include a written report explaining in detail the reasons for disapproval. Any preliminary approval shall be subject to the protest provisions of section 28-533 of this Code, and, if no protest is timely filed thereunder, shall become a final approval on the business day next following the close of the protest period. The issuance of a written notice to the applicant shall be complete upon the deposit of the properly addressed notice in the United States Mail, first class postage paid.
(Ord. No. 91-1734, § 2, 12-11-91; Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2014-364, §§ 6(Exh. A), 7, 4-30-2014)

Sec. 28-531. Notice of pending application.

(a) The notice requirements of this section apply only to applications for tower permits for the construction, placement or alteration of towers subject to the requirements of this article and for waivers from the requirements of this article. When an application for waiver is not filed as part of the original application for a tower permit, the notice requirements of this section apply separately to the waiver application.

(b) The applicant for a tower permit must post and use reasonable efforts to maintain a sign on the subject tower site for a minimum of 30 calendar days beginning no later than the sixth calendar day following the date of the filing of the required completed application with the department. The sign shall be posted no more than 15 feet from the public right-of-way that is used as access to the tower site. The sign shall face each public right-of-way bordering the tower site and the lettering on the sign shall be legible from the public right-of-way. Each sign shall be a minimum of four by eight feet in size, with lettering that complies with specifications promulgated by the director. The sign shall contain at a minimum the following items of information:

(1) That this is the proposed site of a tower;

(2) The proposed maximum height above grade of the proposed tower;

(3) The tower permit application number assigned to this project by the department; and

(4) The telephone number of the department where additional information concerning this project may be obtained.

The applicant shall remove the sign from the subject tower site after (i) the permit is obtained or (ii) the appeals process is complete.

(c) If, in the opinion of the director, compliance with the requirements of this section is insufficient to provide adequate notification of the pending tower permit application, the director may require additional signs to be erected at locations as he deems advisable.

(d) Written notice of the filing of each application for a tower permit or an application for a waiver, as provided for herein, shall be given to all property owners within the boundaries of the residential area or setback area, as applicable, determined in accordance with the provisions of section 28-524(g) of this Code, as is indicated by the most recently approved tax rolls. Notice shall also be given to any civic organization, property

owners association, or any other interested group, with identifiable boundaries, provided that the organization, association or group is registered with the department in a manner prescribed by the director. Notice to all owners of record and civic organizations registered with the department shall be deemed given if properly addressed and deposited in the United States mail, with first class postage paid. The required written notice shall be in a form prescribed by the director and shall be mailed no later than the tenth calendar day following the filing of the required completed application. The written notice shall include a map showing the proposed tower site and the surrounding residential test area or setback area, as applicable.

(e) Written notice shall be published at least once in a local newspaper of general circulation by the department not later than the seventh calendar day following the date of filing of the required completed application. The notice shall be published in the section of the newspaper in which other legal notices are commonly published, and shall be headed with the following words (or their reasonable equivalent), in conspicuous type: "NOTICE OF PROPOSED TOWER CONSTRUCTION." The notice shall state the height and location of the proposed tower site, describe the intended use of the tower, and advise that additional information may be obtained by writing or calling the office of the director of the planning and development department.

(f) The "written notice" required in subsection (d) above shall include at a minimum the following:

(1) The name, address, and telephone number of the person or entity that will own the proposed tower structure;

(2) The name, address, and telephone number of the applicant if different from the owner of the proposed tower;

(3) The approximate proposed location of the tower structure including the street address (or nearest street intersection) and the name of the subdivision or survey if there is no recorded subdivision;

(4) The proposed use of the tower structure and site;

(5) The proposed maximum height above grade of the proposed tower structure; and

(6) That additional information may be obtained by writing or calling the office of the director.

(g) The applicant shall be responsible for paying all costs associated with the giving of notice under this article.

(Ord. No. 91-1734, § 2, 12-11-91; Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, §§ 6(Exh. A), 7, 4-30-2014)

Sec. 28-532. Waiver.

(a) An application for a tower permit shall not be approved for a tower that is not in conformance with the regulations prescribed in this article unless a written application for a waiver has been submitted to and approved by the commission.

(b) An applicant for a tower permit who receives written disapproval from the director may elect to submit a written application for a waiver to the commission or may appeal the denial of the permit as provided in section 28-533 of this Code. An application for a waiver from the requirements of this article may be filed simultaneously with the filing of the application for a tower permit. An application for a waiver made after the disapproval of the tower permit by the director shall be submitted not later than 2:00 p.m. on the seventh calendar day following issuance of the notice of disapproval. The director shall waive this deadline upon a finding of good cause.

(c) An application for a waiver shall be submitted in the manner prescribed by the director citing the specific provision(s) of this article from which a waiver is desired, the extent of the waiver sought, and the specific facts or reasons why the waiver is necessary along with all supporting information or documentation.

(d) The commission is authorized to consider and grant a waiver from the provisions of this article, following a public hearing, when the commission finds that each of these conditions exist:

(1) That a literal application of this article will result in undue and unnecessary hard-

ship to the applicant, taking into account any federal or state licenses the applicant may have received to conduct its business;

(2) The waiver, if granted, will not be contrary to the public interest as implemented in this article;

(3) Consistent with the city's police power authority over towers, the waiver, if granted, will not be detrimental to the public health, safety, or welfare;

(4) The waiver, if granted, will not result in a violation of any other applicable ordinance, regulation or statute enforceable by the city; and

(5) The waiver, if granted, will not result in the violation of any applicable deed restriction or zoning regulation or the location of a tower in a park.

(e) A waiver from the requirements of section 28-524(h) of this Code for an antenna tower shall not be granted unless, in addition to finding that each of the conditions expressed in subsection (d) above is satisfied, the commission, after public hearing, finds that no approved tower or tower structure can accommodate the applicant's proposed antenna because the applicant has demonstrated any of the following:

(1) The approved tower or tower structure located within 1,000 feet of the proposed tower will not meet the applicant's engineering requirements;

(2) The approved tower or tower structure located within 1,000 feet of the proposed tower is not of sufficient height to meet the applicant's specific engineering requirements;

(3) The approved tower or tower structure located within 1,000 feet of the proposed tower does not have sufficient structural strength and cannot reasonably be reinforced to provide sufficient structural strength;

(4) The antenna array of the approved tower or tower structure located within 1,000 feet of the proposed tower would cause electromagnetic interference with the antenna array of the proposed tower, or the antenna on the proposed tower or tower structure to be located within 1,000 feet of the approved tower would cause interference with the antenna array of the approved tower;

(5) The approved tower or tower structure located within 1,000 feet of the proposed tower is not adaptable to accommodate additional antenna arrays or the costs required to share or adapt the approved tower or tower structure are unreasonable;

(6) The approved tower or tower structure located within 1,000 feet of the proposed tower is not available for co-location because the owner of the approved tower or tower structure or the owner of the tract on which the approved tower or tower structure is located refuses to agree to reasonable terms necessary to accommodate the requirements for the proposed antenna; or

(7) The approved tower or tower structure located within 1,000 feet of the proposed tower is not suitable for the specific requirements for the proposed antenna due to other factors as demonstrated by the applicant, taking into account any federal or state licenses the applicant may have received to conduct its business.

(f) The procedures prescribed in subsections (c) and (d) of section 28-533 of this Code shall govern the hearing required on an application for a waiver.

(Ord. No. 91-1734, § 2, 12-11-91; Ord. No. 95-104, § 1, 1-25-95; Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, §§ 6(Exh. A), 7, 4-30-2014)

Sec. 28-533. Protest and appeal; hearing procedures.

(a) Any property owner, association or group within the residential area or setback area, as applicable, who has reasonable grounds to believe that approval of an application for a tower permit, the granting of a waiver, or the proposed construction will violate any applicable restriction, rule,

regulation or ordinance may request a hearing before the commission to protest and present evidence establishing their allegations. The hearing request must state the specific grounds relied upon and be presented to the office of the director no later than 2:00 p.m. on the 37th calendar day following the date of filing of the required completed application for a tower permit or waiver, as applicable. Copies of all supporting documents, instruments, or other materials that are to be presented to the commission shall accompany the hearing request and shall be available for inspection and photocopying.

(b) An applicant for a tower permit that has been denied by the director has until 2:00 p.m. on the seventh calendar day following the issuance of a notice of disapproval to file a written notice of appeal in the manner prescribed by the director. The director shall waive this requirement upon a finding of good cause.

(c) Notice of the time, place and location of the public hearing at which the protest or appeal is to be presented must be given by the department before the tenth day before the date of the hearing by:

(1) Publication in a newspaper of general circulation in the city and county in which the land that is the subject of the waiver is located;

(2) By written notice delivered to the applicant, which shall be served by depositing the same, properly addressed and postage paid, in the United States Mail, first class postage; and

(3) By written notice delivered to each property owner, association or group registered with the department in the manner prescribed by the director, within the setback area. The written notice shall be served by depositing the same, properly addressed and postage paid, in the United States Mail, first class postage.

(d) All properly filed appeals and protests concerning the approval or disapproval of an application for a tower permit or the granting or refusal of an application for a waiver for a particular project shall be considered by the commission in a single public hearing. The public hearing shall be scheduled by the director at the next available commission meeting, assuming that proper notice has been given.

(e) The commission, following a public hearing, is authorized to deny a tower permit that is the subject of a protest under subsection (a) upon finding, based on substantial evidence, any of the following:

(1) The tower permit, if granted, will result in the violation of an applicable rule, regulation or ordinance enforceable by the city;

(2) The tower permit, if granted, will result in the violation of an applicable deed restriction or zoning regulation; or

(3) The information contained in the application is erroneous or the department's analysis of the permit application is based on erroneous information.

(f) The commission, following a public hearing, is authorized to deny a tower permit that is the subject of an appeal under subsection (b) upon finding, based on substantial evidence, that the decision of the director to deny the tower permit is erroneous or the department's analysis of the tower permit application or information therein is erroneous.

(g) If the commission denies the appeal of the denial of an application for a tower permit, a waiver or otherwise refuses to approve a tower permit as a result of a protest, the secretary of the commission shall issue a written report explaining in detail the reasons for the rejection, disapproval or refusal. The written report shall be issued not later than 30 calendar days from the date the decision was made.

(h) The decision of the commission concerning the issuance or denial of a tower permit or the granting or refusal of a waiver shall be the final administrative determination of the issue presented.

(Ord. No. 91-1734, § 2, 12-11-91; Ord. No. 95-104, § 1, 1-25-95; Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, § 6(Exh. A), 4-30-2014)

Sec. 28-534. Building permit requirement and plan review.

(a) A tower permit obtained pursuant to the provisions of this article shall become invalid after the passage of 180 days from the date of final approval of the tower permit unless any required building permit for the construction or alteration of the tower has been obtained before the expiration of that 180-day period.

(b) The construction, placement or alteration of a tower is subject to any plan review, permitting requirement or hearing process applicable to commercial construction in general which is required either by ordinance or by the rules promulgated by the director; provided that the regulation or rules are consistent with the provisions of this article.
(Ord. No. 91-1734, § 2, 12-11-91; Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, § 6(Exh. A), 4-30-2014)

Sec. 28-535. Maintenance and inspection.

(a) All buildings, structures, supporting structures, wires, fences or ground areas used in connection with a tower shall be maintained in a safe condition and in good working order. All equipment or machinery required by the Construction Code, the Fire Code or any other applicable regulation or ordinance for a building or structure or supporting structure or device shall be maintained in good working order. The owner or operator of a tower shall be responsible for the maintenance of the tower, supporting structures, buildings, fences and ground areas.

(b) By applying for a tower permit under this article, the applicant specifically grants permission to the city, its duly authorized agents, officials and employees, to enter upon the property for which a permit or waiver is sought, after first providing reasonable notice, for the purpose of making all inspections required or authorized to be made under this article, the Fire Code, the Construction Code, this Code or any other applicable regulation, rule or ordinance.
(Ord. No. 91-1734, § 2, 12-11-91; Ord. No. 98-253, § 2, 4-8-98; Ord. No. 02-399, § 85, 5-15-02; Ord. No. 2014-364, § 6(Exh. A), 4-30-2014)

Sec. 28-536. Removal of towers.

Any antenna or tower that is not operated for a continuous period of six months shall be considered abandoned, and the owner of the antenna or tower shall remove same within 90 days of receipt of notice from the director notifying the owner of the abandonment. If the antenna or tower is not removed within the 90 days, the city may remove the antenna or tower at the owner's expense. If there are two or more users of a single tower, then this provision shall not become effective until all users cease using the antenna or tower. The city attorney is hereby authorized to pursue all necessary legal remedies to implement the provisions of this subsection.
(Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, § 6(Exh. A), 4-30-2014)

Sec. 28-537. Deed restriction affidavit.

(a) Every applicant for a tower permit or a waiver shall furnish to the director an affidavit setting forth that the applicant is familiar with the title to the real property to which the requested permit appertains and that the intended use will not violate any applicable deed restrictions. The affidavit shall be accompanied with a certified copy of the instruments containing the deed restrictions, the instrument of revocation or termination, the declaratory judgment or any other recorded document containing restrictions that affect the use of the property.

(b) A tower permit shall not be issued until the requested affidavit and supporting documentation has been produced. Any permit issued on the basis of erroneous documentation known to the applicant or an affidavit which contains false information known to the applicant is void with the same force and effect as if it had never been issued and without the necessity of any action by the city or any other person or agency. A tower permit shall not be issued for the construction or alteration of a tower if the use or the intended use will be in violation of the recorded deed restrictions.
(Ord. No. 91-1734, § 2, 12-11-91; Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, § 6(Exh. A), 4-30-2014)

Sec. 28-538. Permitted hours for construction and maintenance.

Construction, placement, removal and maintenance of, and alterations or modifications to, a tower or equipment storage facility for a tower shall not be performed except between the hours of 7:00 a.m. and 9:00 p.m. of any day, except in a bona fide emergency; provided however, that the owner, operator or his agents may perform regular maintenance between the hours of 9:00 p.m. through 7:00 a.m. as long as it does not create an unreasonable noise.
(Ord. No. 91-1734, § 2, 12-11-91; Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, § 6(Exh. A), 4-30-2014)

Sec. 28-539. Tower permit commission.

(a) There is hereby created a tower permit commission of seven members. The positions of the commission shall be filled as follows:

Position 1: By a person who shall be chairman of the commission.

Position 2: By a person who is a member of a residential civic association.

Position 3: By a person who has training or a background as a land planner, surveyor, or other urban design discipline.

Position 4: By a person who has training or a background as a real estate agent or appraiser or other real estate related business.

Position 5: By a person who has training or a background in electrical engineering, physics or any discipline related to radio frequency technology.

Position 6: By a person who is a member of a residential civic association.

Position 7: By a person who has training or a background in electrical engineering, physics or any discipline related to radio frequency technology.

The city attorney may designate an attorney to represent the commission. The attorney may advise the commission on legal matters relative to topics under commission jurisdiction. The director shall serve as secretary of the commission and shall be responsible for assisting the commission to facilitate its actions and proceedings and shall respond to requests of the commission in a timely manner. The secretary of the commission shall be responsible for and keep the minutes of the meetings of the commission, including correspondence received and sent by the commission or at its direction. The minutes shall be public records, available for inspection by the public at all reasonable times in the presence of the secretary or any member of the commission.

(b) The mayor is hereby authorized to appoint the members of the commission, subject to the approval of the city council. The terms of appointments of the commission shall be for a period of two years and until their successors are appointed and qualified. The mayor shall appoint, subject to approval by city council, another qualified person to serve the unexpired term of any vacant position. Any member of the commission may be removed at any time by the mayor without consent of the city council.

(c) Four members of the commission shall constitute a quorum. No member of the commission shall be allowed to abstain from a vote on an appeal, waiver or protest unless the member has a conflict of interest which he discloses prior to the vote. All actions of the commission shall be taken by majority vote of the members constituting a quorum present. The commission shall meet at the call of the director when necessary to conduct the business of the commission, subject to the applicable requirements of the Texas Open Meetings Act.

(d) The commission shall adopt reasonable rules for the conduct of its duties, to include procedures for hearings and all other business conducted by the commission.
(Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, § 6(Exh. A), 4-30-2014)

Sec. 28-540. Enforcement and penalties.

Violation of this article is unlawful. Failure of any person to comply with any provision of this article shall be punishable upon conviction by a fine of not less than $100.00 or more than $500.00. Each day the violation continues shall constitute

a separate offense. All authority granted to the city attorney and the director and their designees under this article shall be exercised uniformly on behalf of and against all citizens and property of the city. Prior to the issuance of a citation under this article, the director shall furnish notice to the last known address of the tower owner of the alleged violation and shall afford the owner a reasonable opportunity to cure the violation, consistent with the risks posed by the violation and the efforts that would be required to cure it.
(Ord. No. 91-1734, § 2, 12-11-91; Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, §§ 6(Exh. A), 8, 4-30-2014)

Sec. 28-541. Cumulative effect.

This article is cumulative of other requirements imposed by ordinances and regulations of the city. To the extent of any inconsistency, the more restrictive provision shall govern. Without limitation, the issuance of a permit under this article shall not excuse compliance with the Construction Code, including permits required thereunder.
(Ord. No. 98-253, § 2, 4-8-98; Ord. No. 02-399, § 86, 5-15-02; Ord. No. 2014-364, § 6(Exh. A), 4-30-2014)

Sec. 28-542. City attorney authorized to file suit to abate violation.

The city attorney is hereby authorized to file suit on behalf of the city in any court of competent jurisdiction to enjoin or abate a violation of this article. All authority granted to the city attorney under this article shall be exercised uniformly on behalf of and against all citizens and property in the city. This authorization shall be cumulative and in addition to any other civil or criminal penalty provisions. The city, acting through the city attorney or any other attorney representing the city, may file an action in a court of competent jurisdiction to recover damages from the owner or the agent of the owner of a tower or tower structure in an amount adequate for the city to undertake any activity necessary to bring about compliance with this article.
(Ord. No. 91-1734, § 2, 12-11-91; Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, § 6(Exh. A), 4-30-2014)

Sec. 28-543. Transitional provisions.

(a) Sections 28-521, 28-522, 28-523, 28-524, 28-527, 28-528, 28-530, 28-531, 28-532, 28-533, 28-534, 28-535, 28-537, 28-538, 28-540, 28-542, and 28-543 of this Code apply to towers constructed, placed, or altered after December 11, 1991.

(b) Sections 28-525, 28-529, 28-536, 28-539, and 28-541 of this Code apply to towers constructed, placed, or altered after April 8, 1998.

(c) Section 28-526 of this Code applies to all towers subject to this article.
(Ord. No. 91-1734, § 2, 12-11-91; Ord. No. 98-253, § 2, 4-8-98; Ord. No. 2014-364, §§ 6(Exh. A), 7, 9, 4-30-2014)

Secs. 28-544—28-570. Reserved.

ARTICLE XVII. ILLICIT SYNTHETIC DRUGS

Sec. 28-571. Definitions.

The following words, terms and phrases, whenever used in this article, shall have the meanings set forth in this section, unless the context of their usage clearly indicates a different meaning:

Herbal incense means aromatic plant material, whether referred to as potpourri or otherwise, that is distributed in a loose, leafy, powder or granular form or in a compressed block or blocks that can be crushed to result in a powder or granular form, and can be placed into a pipe, cigarette paper, or other drug paraphernalia for purposes of ingestion by smoking, inhaling or other method, regardless of how the substance is labeled or marketed, including, but not limited to, whether or not such product is labeled 'as not for human consumption.'

Illicit synthetic drug means:

(1) Any vegetative material, or herbal or plant material, however constituted, designed, intended, marketed, manufactured, or engineered, that contains any quantity of a synthetic chemical or synthetic chemical com-

pound that has no legitimate relation to the advertised use of the product.

(2) Any vegetative material, or herbal or plant material, with packaging or labeling that indicates, suggests, or implies that the substance is a substitute for or otherwise mimics the pharmacological effects of marihuana ('marijuana'), a controlled substance, or a controlled substance analogue as defined by section 481.002 of the Texas Health and Safety Code.

(3) Any vegetative material, or herbal or plant material, offered for sale or sold with verbal or written representations regarding the purpose, methods, use, or effect of the substance that indicates, suggests, or implies that the substance mimics the pharmacological effects of marihuana ('marijuana'), a controlled substance, or a controlled substance analogue as defined by section 481.002 of the Texas Health and Safety Code.

(Ord. No. 2014-913, § 2, 10-8-2014)

Sec. 28-572. Prohibition of illicit synthetic drug.

It shall be unlawful for any person to possess, provide, sell, barter, produce, manufacture, distribute, or to offer, display, market or advertise for sale, or purchase with the intent to provide, sell, barter, produce, manufacture, or distribute, or to offer, display, market or advertise for sale any illicit synthetic drug.
(Ord. No. 2014-913, § 2, 10-8-2014)

Sec. 28-573. Failure to publicly display or label herbal incense.

(a) Herbal incense offered for sale to the public must be publicly displayed at all times through actual or representative packaging.

(b) All herbal incense offered for sale to the public must include a label listing each active ingredient.
(Ord. No. 2014-913, § 2, 10-8-2014)

Sec. 28-574. Penalty.

(a) Any violation of section 28-572 of this Code is a misdemeanor punishable upon conviction by a fine not to exceed $2000.00. Each separate package, container, or other separate unit containing an illicit synthetic drug shall constitute a separate and distinct offense.

(b) Any violation of section 28-573 of this Code is a misdemeanor punishable upon conviction by a fine not to exceed $2,000.00. Each separate package, container, or other separate unit containing any herbal incense shall constitute a separate and distinct offense.

(c) Prosecution or conviction under this article is cumulative of and shall never be a bar to any other civil or administrative remedy provided or allowed in this article or by law.
(Ord. No. 2014-913, § 2, 10-8-2014)

Sec. 28-575. Affirmative defenses.

(a) It is a defense to prosecution under the provisions of this article that the person possessed the illicit synthetic drug under the lawful supervision of an authorized law enforcement officer to enforce or ensure compliance with this article.

(b) It is a defense to prosecution that a violation of this article is expressly permitted by state or federal law.
(Ord. No. 2014-913, § 2, 10-8-2014)

Sec. 28-576. Seizure.

Any product or substance possessed, provided, sold, bartered, produced, manufactured, distributed, or offered, displayed, marketed or advertised for sale or purchased with the intent to provide, sell, barter, produce, manufacture, or distribute, or to offer, display, market or advertise for sale, in violation of any provision of this article, may be seized by any peace officer. Such

product or substance may be destroyed as authorized by state law after its use for evidentiary purposes is no longer required.
(Ord. No. 2014-913, § 2, 10-8-2014)

Secs. 28-577—28-600. Reserved.

ARTICLE XVIII. LODGING FACILITIES

DIVISION 1. GENERALLY

Sec. 28-601. Definitions.

As used in this article, the following words, terms and phrases shall have the meanings assigned to them in this section, unless the context of their usage clearly indicates a different meaning:

Business day means the city's standard days of operation; 8:00 a.m. to 5:00 p.m., Monday through Friday, but shall exclude any day designated as an official city holiday or for which the operations of the city have been reduced or closed due to any unforeseen circumstance or emergency.

Department means Houston Public Works.

Director means the director of the department and the director's designees.

Employee means a person who regularly works in a lodging facility.

Hearing officer means an individual designated by the director to conduct administrative appeal hearings.

Lodging facility means an establishment that furnishes lodging to three or more persons who are unrelated to the owner of the establishment by blood or marriage. The term "lodging facility" shall not include: (1) a boarding home, as defined in article XIV of this chapter, (2) a hotel or bed and breakfast facility, each as defined in article VI of this chapter, or (3) a single-family residential building, condominium, or townhouse that is owner-occupied for at least three months of the year each year.

Operator means the person in control of a lodging facility.

Owner means the proprietor if a sole proprietorship, all general partners if a partnership, or the corporation and all officers, directors, and persons holding 50 percent or more of the outstanding shares of the corporation if a corporation.

Permit means a current, valid permit issued by the director pursuant to the terms of this article to an operator for a lodging facility.

Resident means a person who is residing in a lodging facility.
(Ord. No. 2018-226, § 2(Exh. A), 3-22-2018)

Sec. 28-602. Scope.

This article applies to all lodging facilities as defined in this article, regardless of when they began operation, except as otherwise provided by this article.
(Ord. No. 2018-226, § 2(Exh. A), 3-22-2018)

Sec. 28-603. Exemptions.

This article does not apply to:

(1) Boarding home facilities, as defined in section 28-451 of this Code.

(2) Correctional facilities or alternate housing facilities, each as defined in section 28-151 of this Code.

(3) Home and community support services licensed under Texas Health and Safety Code Chapter 142, as amended.

(4) Convalescent and nursing facilities and related institutions licensed under Texas Health and Safety Code Chapter 242, as amended.

(5) Continuing care facilities licensed under Texas Health and Safety Code Chapter 246, as amended.

(6) Assisted living facilities licensed under Texas Health and Safety Code Chapter 247, as amended.

(7) Intermediate care facilities for individuals with an intellectual disability licensed under Texas Health and Safety Code Chapter 252, as amended.

(8) A person who provides home health, hospice, habilitation, or personal assistance services only to persons receiving benefits under:

a. The home and community-based services (HCS) waiver program;

b. The Texas home living (TxHmL) waiver program;

c. The STAR + PLUS or other Medicaid managed care program under the program's HCS or TxHmL certification; or

d. Texas Government Code Section 534.152.

(9) An establishment conducted by or for the adherents of a well-recognized church or religious denomination for the purpose of providing facilities for the care and or treatment of the sick who depend exclusively on prayer or spiritual means for healing, without the use of any drug or material remedy, if the establishment complies with safety, sanitary, and quarantine laws and rules as described in Texas Health and Safety Code Section 242.003(3), as amended.

(10) A facility that provides personal care services only to persons enrolled in a program that is funded in whole or in part by the Texas Department of Health and Human Services (HHS) and that is monitored by HHS or its designated local intellectual and developmental disability authority in accordance with standards set by HHS or is funded in whole or in part by the Texas Department of State Health Services and that is monitored by that department or by its designated local mental health authority in accordance with standards set by HHS, as described in Texas Health and Safety Code Section 247.004(4), as amended.

(11) A hotel as defined by Texas Tax Code Section 156.001, as amended.

(12) A retirement community as defined by Texas Tax Code Section 11.18, as amended.

(13) The living quarters or dwelling units for a religious order or for the congregation of persons under religious vows, such as a monastery or convent.

(14) A child-care facility as defined by Texas Human Resources Code Section 42.002, as amended.

(15) A family violence shelter center as defined by Texas Human Resources Code Section 51.002, as amended.

(16) A fraternity or sorority house, or other dormitory, associated with an institution of higher education.

(17) A multi-family rental building, as defined in section 10-152 of this Code.

(18) A facility that is a member of the Houston/Harris County Continuum of Care, as described in 24 CFR Part 578.

(Ord. No. 2018-226, § 2(Exh. A), 3-22-2018)

Sec. 28-604. Rules; forms.

The director may issue rules and regulations for the operation of this article and shall promulgate application and permit forms. A copy of the forms rules, and procedures, if any, shall be maintained in the office of the director or on the city's web site for inspection, and copies may be purchased at the fee prescribed by law.
(Ord. No. 2018-226, § 2(Exh. A), 3-22-2018)

Sec. 28-605. Notices.

(a) Any notice required or permitted to be given by the director or any other city office, division, department or other agency under this article to any applicant, operator or owner of a lodging facility may be given by personal delivery, electronic mail, or United States mail, postage prepaid, addressed to the most recent address as specified in the application for the permit most recently received by the director, or any notice of address change most recently received by the

director. Notices mailed as above shall be deemed given upon their deposit in the United States mail.

(b) Any notice required or permitted to be given to the director by any person under this article shall not be deemed given until and unless it is received in the office of the director.

(c) It shall be the duty of each owner who is designated on the permit application and each operator to furnish notice to the director in writing of any change of residence or mailing address.
(Ord. No. 2018-226, § 2(Exh. A), 3-22-2018)

Sec. 28-606. Penalty; continuing violations.

(a) Violation of any provision of this article shall be punishable by a fine of $500.00. Each day any violation continues shall constitute and be punishable as a separate offense.

(b) The revocation of any permit shall not prohibit the imposition of a criminal penalty, and the imposition of a criminal penalty shall not prevent the revocation or suspension of a permit.
(Ord. No. 2018-226, § 2(Exh. A), 3-22-2018)

Secs. 28-607—28-610. Reserved.

DIVISION 2. PERMITS

Sec. 28-611. Permit.

(a) It shall be unlawful for any person to operate a lodging facility within the city limits without a permit issued by the department pursuant to this article.

(b) Obtaining or holding a permit under this article shall not be interpreted to excuse or relieve a lodging facility or its owner, operator, or any employee from compliance with state law or other provision of this Code.

(c) A permit is personal to the owner of the facility for which it is issued and may not be transferred or otherwise assigned. Any change in ownership of the facility will require the filing of a new permit application within ten business days following the effective date of the change. The application shall be subject to the same fees and shall be treated in the same manner in all respects as an original application. Failure to timely file the new application for a permit may result in denial of the permit. If the permit holder for the facility is a corporation, and there is any transfer in the interest of the corporation or of any entity having an interest in the corporation after the permit is issued, the corporation must submit a new permit application within ten business days following the effective date of the change.

(d) A separate permit shall be required for each lodging facility.

(e) Each permit shall be valid for a period of one year and shall expire on the anniversary of its date of issuance, unless sooner renewed, revoked or surrendered. A permit may be renewed by filing an application for renewal with the director not more than 90 days prior to the expiration date of the permit.
(Ord. No. 2018-226, § 2(Exh. A), 3-22-2018)

Sec. 28-612. Fees.

(a) The annual lodging facility permit fee stated in the city fee schedule shall be payable upon the issuance of a permit and shall be nonrefundable. The annual lodging facility permit fee shall not be subject to the annual fee adjustment in section 1-13 of this Code.

(b) The lodging facility inspection fee stated in the city fee schedule shall be payable prior to the commencement of a scheduled inspection and shall be nonrefundable. The lodging facility inspection fee shall not be subject to the annual adjustment in section 1-13 of this Code.
(Ord. No. 2018-226, § 2(Exh. A), 3-22-2018)

Sec. 28-613. Application for permit.

(a) *Application form.* An operator of a lodging facility shall apply to the director for a permit annually on forms provided by the director and shall include the following information:

(1) a. The name, street address (and mailing address if different), email

address, and Texas driver's license number of the intended operator; and

b. The name, street address (and mailing address if different), and email address of the owner;

(2) The name under which the lodging facility is to be operated;

(3) The lodging facility telephone number;

(4) If the lodging facility is to be operated under an assumed name, a certified copy of the assumed name certificate filed in compliance with the Assumed Business or Professional Name Act (Texas Business and Commerce Code, chapter 71);

(5) If the lodging facility is a Texas corporation, a certified copy of the articles of incorporation, together with all amendments thereto;

(6) If the lodging facility is a foreign corporation, a certified copy of the certificate of authority to transact business in this state, together with all amendments thereto;

(7) If the lodging facility is a limited partnership formed under the laws of Texas, a certified copy of the certificate of limited partnership, together with all amendments thereto, filed in the office of the Secretary of State under Texas Business Organizations Code chapter 153 or its successor statute;

(8) If the lodging facility is a foreign limited partnership, a certified copy of the certificate of limited partnership and the qualification documents, together with all amendments thereto, filed in the office of the Secretary of State under Texas Business Organizations Code chapter 153 or its successor statute;

(9) The address and legal description of the real property on which the lodging facility is to be situated;

(10) Proof of ownership of the real property upon which the lodging facility will be operated in the form of a certified copy of the recorded deed;

(11) If the person identified as the owner of the real property in item (8) is not the owner or operator of the lodging facility, then the lease, purchase contract, purchase option contract, lease option contract or other document evidencing the legally enforceable right of the owner or operator of the lodging facility to use and possess the real property;

(12) A general description of the services provided;

(13) All security and resident monitoring plans and any additional security and monitoring measures which are to be implemented;

(14) The date on which the applicant began or expects to begin operations as a lodging facility at the location;

(15) Any other information that may be reasonably requested by the director; and

(16) The following statements conforming to minimum state law requirements for unsworn declarations:

a. A statement by the owner of the real property upon which the lodging facility is situated attesting to the knowledge of that owner that the property will be used for the operation of a lodging facility;

b. A statement by the owner and operator of the lodging facility attesting that the applicant's operation will not violate deed restrictions; and

c. A statement by the owner and operator of the lodging facility attesting that only framed beds at least six feet long and three feet wide equipped with supportive springs and clean supportive mattresses will be used by the lodging facility.

Any of items (2) through (8) above shall not be required for a renewal application if the

applicant states that the documents previously furnished to the director with the original application or previous renewals thereof remain correct and current.

(b) *Request for inspection.* At the time of submission of the application, the owner or operator of a lodging facility shall submit a request to the building official for the lodging facility inspection described in section 28-616 of this Code.
(Ord. No. 2018-226, § 2(Exh. A), 3-22-2018)

Sec. 28-614. Permit process.

(a) *Initial acceptance of application.* The director shall initially review each application for issuance or renewal of a permit to determine whether the application is complete and all required information has been provided. If not, the director shall return the application to the applicant with a statement of deficiencies. The applicant may then correct the deficiencies and resubmit the completed application.

(a-1) *Internet posting by director.* Within five business days of the director's receipt and acceptance of the completed application for the issuance or renewal of a permit, the director shall cause to be posted on an internet website hosted by the department and being accessible to the public the following information as contained in the completed application:

(1) The department's identification, reference, case or application number for the application;

(2) The name of the operator and owner making the application; and

(3) The physical street address and legal description of the real property as contained in the competed application, including but not limited to: the subdivision name, the subdivision section number, and the lot and block number on which the lodging facility is or is to be situated.

(b) Review of application. The director shall review a complete application to determine whether the applicant has met all applicable requirements of this article and of other applicable provisions and shall:

(1) Return an application that contains any incorrect information;

(2) Deny the issuance or renewal of a permit for which the application:

a. Contains materially false information; or

b. Is submitted for a lodging facility that is not in compliance with this article; or

(3) Approve the application and issue the permit, subject to compliance with this article, including, but not limited to, inspection of the lodging facility and payment of any required fees.

(c) *Denial.* If the director proposes to deny the issuance or renewal of a permit, he shall notify the applicant of the proposed grounds for the denial. The applicant may, within ten business days after the date of the notice letter cure any defect. If the applicant timely cures all defects, the director shall approve the application. If the applicant fails to cure all defects within ten business days after the date of the notice letter, the applicant may appeal the denial through the procedure described in section 28-618 of this Code.

(d) *Decision final.* The director shall provide written notice to an applicant of either final approval or denial of an application. The director's decision on an application shall be final, unless an appeal is timely filed.

(e) *Additional conditions for issuance of permit.* Notwithstanding the foregoing, no permit shall be issued until:

(1) The director determines that the lodging facility has passed the required inspection; and

(2) The applicant has paid all required fees.
(Ord. No. 2018-226, § 2(Exh. A), 3-22-2018)

Sec. 28-615. Operating requirements.

(a) *Posting.* The owner or operator of a lodging facility shall prominently and conspicuously post the permit issued for display in a public area of the lodging facility that is readily available to residents and visitors.

(b) *Framed beds.* The owner or operator of a lodging facility shall provide a separate framed bed at least six feet long and three feet wide equipped with supportive springs and clean supportive mattresses 24 hours a day for each resident at the lodging facility.

(c) *Records.* The owner or operator of each lodging facility shall maintain on the premises of the lodging facility records sufficient to verify and substantiate all information provided under section 28-613 of this Code. In addition, the owner or operator of each lodging facility shall maintain on the premises of the lodging facility documentation showing:

(1) Staffing and shift assignments for all employees;

(2) The name of each resident, accompanied by personal identifier information, including date of birth and copy of driver's license or other acceptable state recognized means of identification;

(3) Resident service agreements signed by each resident or the resident's legal representative detailing the services to be provided to the resident by the lodging facility, and the cost of those services; and

(4) Contact information for the resident's legal representative, if any.

The owner or operator shall maintain information relating to employees or residents required under this section for a period of at least five years after the employee or resident ceases to be employed by or reside at the lodging facility, as applicable, and shall maintain all other information required under this section for as long as the lodging facility is in operation and two years after it ceases to operate.

(d) *Report of death or criminal activity.* The owner or operator of each lodging facility shall immediately notify the Houston Police Department of any death or criminal activity that occurs on the premises of the lodging facility.

(e) *Inspection report.* The owner or operator shall maintain on the premises a current file of inspection reports and other documentation needed to demonstrate compliance with applicable laws and regulations, including the Fire Code and the Construction Code. The inspection reports must be signed by the inspector, dated, and free of any outstanding issues that require corrective actions.

(f) *Safety or emergency precautions.* The owner or operator of a lodging facility shall:

(1) Implement a written fire and evacuation plan for the facility that sets forth the responsibilities and steps to be taken by staff and residents in the event of a fire or other emergency and identifies two points of entry and egress. The owner or operator shall ensure that all staff and residents are shown how to use all emergency exits from the lodging facility within 24 hours after arrival at the lodging facility. The owner or operator shall maintain documentation of such training.

(2) Post an emergency evacuation plan in a common area, such as the kitchen or living room.

(3) Ensure that each employee receives training on the emergency evacuation plan at least two times per year and shall maintain documentation of such training.

(4) Ensure that flammable supplies, gasoline-operated equipment, and compressed gas equipment are stored outside of the living area.

(5) Provide a sufficient number of accessible fire extinguishers. The owner or operator shall ensure that a person licensed to inspect fire extinguishers inspects the fire extinguishers annually. The owner or operator shall ensure that the fire extinguishers are recharged when needed by a person licensed to inspect fire extinguishers.

(6) Provide and maintain an operable smoke alarm and, if any gas utility is provided,

a carbon monoxide detector in each sleeping area, kitchen, and laundry area. The owner or operator shall ensure that these devices remain in good working order. If a lodging facility has a resident who is hearing-impaired, the owner or operator shall install and properly maintain a visual smoke alarm that is capable of alerting a hearing-impaired person of the presence of fire or smoke.

(7) Ensure that properly and visibly labeled first aid supplies are readily accessible to all the residents and inform the residents of the location of the supplies.

(Ord. No. 2018-226, § 2(Exh. A), 3-22-2018)

Sec. 28-616. Inspections.

(a) Upon receipt of a request by the owner or operator of a lodging facility for an inspection to confirm that the lodging facility is in compliance with this Code, including the Fire Code and the Construction Code, the building official shall meet with the owner or operator to determine whether the lodging facility will require a certificate of occupancy.

(1) If the building official determines that the owner or operator possesses a certificate of occupancy for the lodging facility that is appropriate for the proposed use, the building official shall schedule the lodging facility for a lodging facility inspection, upon receipt of payment of the fee stated in the city fee schedule; or

(2) If the building official determines that the owner or operator possesses a certificate of occupancy for the lodging facility that is not appropriate for the proposed use, the building official shall schedule the lodging facility for a certificate of occupancy inspection, upon payment of any fee required therefor in the Construction Code;

(3) If the building official determines that the owner or operator does not possess a certificate of occupancy for the lodging facility and a certificate of occupancy will be required for the proposed use, the building official shall schedule the lodging facility for a certificate of occupancy inspection, upon payment of any fee required therefor in the Construction Code; or

(4) If the building official determines that a certificate of occupancy will not be required for the proposed use of the lodging facility, the building official shall schedule the lodging facility for a lodging facility inspection, upon payment of any fee required therefor in the Construction Code.

The building official shall notify the lodging facility operator of the date and time scheduled for the inspection.

(b) The building official or any peace officer may enter the premises of a lodging facility at reasonable times to conduct an inspection, survey, or investigation to assure compliance with this article and to protect the health, safety, or welfare of the residents of a lodging facility. The building official may be assisted in any investigation by representatives of the police department, the fire department, the department of neighborhoods, the Houston Health Department, or other city or state agency or entity with appropriate jurisdiction over matters affecting the health, safety, or welfare of the residents of a lodging facility. During the course of any inspection, the owner, operator, and any employee of the lodging facility shall be required to identify himself and provide documentation of identity upon the request of the building official or any other city representative participating in the inspection.

(c) At the time of any inspection, the owner or operator of a lodging facility shall provide the director or peace officer access to books, records, and other documents maintained by or on behalf of a lodging facility as required under section 28-615 of this Code.

(Ord. No. 2018-226, § 2(Exh. A), 3-22-2018)

Sec. 28-617. Revocation of permit.

(a) A permit may be revoked if the director determines that:

(1) The owner or operator of the lodging facility has received notice of more than

five violations of this Code, including the Fire Code or Construction Code in a one-year period;

(2) Any information supplied in the permit application was materially false or incorrect;

(3) The permit was obtained or issued as a result of error;

(4) The applicant obtained a permit by means of fraud, misrepresentation, or concealment of a fact or that the applicant falsified his original application for a permit; or

(5) Any fact or circumstance exists that would be a basis for denial of an application for issuance or renewal of a permit.

(b) The procedures set forth in section 28-618 of this Code shall apply to appeals to the revocation of permits.
(Ord. No. 2018-226, § 2(Exh. A), 3-22-2018)

Sec. 28-618. Appeals.

(a) *Request for appeal.* An applicant or owner or operator of a lodging facility may appeal a denial of the application for or renewal of a permit or the revocation of a permit within ten business days after date of deposit of written notice in the mail by submitting a written request for an appeal to the director. If the applicant does not request a hearing within ten business days, the denial is effective and final on the eleventh day after the date of the director's notice of denial.

(b) *Conduct of hearing; rules and procedures.* An appeal hearing shall be conducted on a single weekday within 20 business days after the director receives a request for appeal and shall last no longer than eight hours. Further, an appeal hearing shall be informal and conducted under rules established by the director consistent with the informal nature of the proceedings; provided, however, the following rules shall apply to all appeal hearings conducted under this section:

(1) All parties shall have the right to representation by an attorney licensed to practice in Texas, though an attorney is not required;

(2) Each party may present witnesses in his own behalf;

(3) Each party shall have the right to cross examine all witnesses; and

(4) The hearing officer shall consider only the evidence presented at the appeal hearing in rendering a final decision.

(c) *Authority of hearing officer.* The hearing officer may affirm or reverse a denial or revocation under this article. The hearing officer shall affirm a denial or revocation if he determines by a preponderance of the evidence that grounds exist for the denial or revocation, respectively. The decision of the hearing official is final.

(d) *Notice of decision.* The hearing official shall give written notice of the decision to the applicant or owner or operator of the facility and the reasons therefor. The notice shall be provided by certified mail, return receipt requested, as soon after the conclusion of the hearing as practicable, but not more than 30 business days thereafter.
(Ord. No. 2018-226, § 2(Exh. A), 3-22-2018)

Sec. 28-619. Review to city council.

The director shall provide a review about this article to city council one year after it takes effect (March 22, 2018) and each year thereafter.
(Ord. No. 2018-226, § 2(Exh. A), 3-22-2018)

Secs. 28-611-28-630. Reserved.

ARTICLE XIX. DONATION BOXES

DIVISION 1. GENERAL

Sec. 28-631. Definitions.

As used in this article, the following words and terms shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

Administrator means the director of administration and regulatory affairs or the director's designee.

Applicant means the individual or entity filing an application under this article.

Donation box means any unattended donation receptacle intended for use as a drop off and collection point for accepting donated textiles, clothing, shoes, books, toys, dishes, and other salvageable items of personal property.

Landowner means any person or entity who owns, leases, is in control of, or possesses real property on which a donation box has been placed or maintained.

Operator means the individual or entity who owns, leases or otherwise manages and controls the personal property constituting a donation box, and if a separate individual or entity carries on the maintenance, collection, and upkeep of the donation box, that separate individual or entity as well.

Permit holder means any person, partnership, corporation, firm, joint venture, limited liability company, association, organization, or any other entity holding a permit issued pursuant to this article.

Right-of-way shall have the same meaning as public way as defined in section 40-121 of this Code.

(Ord. No. 2021-350, § 2, 5-5-2021)

Sec. 28-632. Unlawful placement or maintenance of donation box.

It shall be unlawful for any person to place or maintain a donation box at any location within the city unless done in accordance with a valid permit as provided in this article.

(Ord. No. 2021-350, § 2, 5-5-2021)

Sec. 28-633. Unlawful to allow unpermitted donation box on real property.

It shall be unlawful for any person who owns, leases, is in control of, or possesses real property within the city to authorize or allow any donation box to be placed on, or remain on, that real property unless done in accordance with a valid permit as provided in this article.

(Ord. No. 2021-350, § 2, 5-5-2021)

Sec. 28-634. Penalty.

(a) Except as provided in section 28-657 of this Code, a person who violates any provision of this article, including committing an unlawful act under this article, is guilty of a misdemeanor punishable by a fine of not less than $100.00 nor more than $500.00. Each day any violation continues shall constitute and be punishable as a separate violation of this article.

(b) A landowner or an operator may be liable for criminal penalties and also subject to revocation of a permit issued under this article.

(c) All landowners and operators shall be jointly and severally liable for any penalties, fees, or costs arising under this article.

(d) Nothing in this article shall limit the remedies available to the city in seeking to enforce the provisions of this article.

(Ord. No. 2021-350, § 2, 5-5-2021)

Secs. 28-635—28-640. Reserved.

DIVISION 2. PERMITS

Sec. 28-641. Permit application requirements.

(a) To obtain a permit to operate a donation box, an applicant must file an application with the administrator. A single application may cover multiple donation boxes that are owned and operated by the applicant. The administrator may promulgate such application provided that an application must include the following information:

(1) The applicant's name, telephone number, mailing address, electronic mail address, and street address, if different from the mailing address, and the same information for each landowner and operator, if different from the applicant. For applicants who are individuals, a government-issued identification document or similar proof of legal right to work in the state of Texas shall be required. Applicants transacting business in Texas must provide proof of such right to transact business in Texas;

(2) Proof that the applicant owns the real property upon which the operator will place the donation box. Or, if the applicant does not own the real property upon which the donation box will be placed, written permission by the landowner or an authorized agent of the landowner to place the donation box as proposed in the application;

(3) A site plan or map drawn to scale showing the exact placement of the donation box on the proposed site;

(4) A service plan for each donation box. The service plan shall include information regarding which days and the time of day the items will be collected, and other requirements described under section 28-651(16) of this Code;

(5) A description of the size, color, and design of the donation box, and the type of material from which the box is constructed;

(6) A list of any other donation boxes located on the same property as the donation box that is the subject of the application;

(7) Proof of required insurance;

(8) A declaration of compliance with other laws; and

(9) Any other information that may be reasonably requested by the administrator.

(b) Any change in the information listed in subsection (a) of this section shall require a supplement to the application, and must be reported by the permit holder to the administrator within ten days after the change. Failure to supplement the permit application as required by the administrator invalidates the permit issued under the original application. The administrator may require a permit holder to reapply for a permit if information provided in the original application changes. The administrator may promulgate procedures and regulations regarding the requirement to supplement any change in the information listed under subsection (a) of this section.

(c) A separate permit shall be required for each donation box regardless of the ownership thereof. Permits issued under the provisions of this article shall be valid only at the address stated on the permit.

(d) A nonrefundable annual permit fee for each donation box, as stated in the city fee schedule, shall be required. Each permit shall expire on the one-year anniversary of the date of issuance unless revoked under this article. The annual donation box permit fee shall not be subject to the administrative fee requirement in section 1-14 of this Code.
(Ord. No. 2021-350, § 2, 5-5-2021; Memorandum of 7-8-2021; Ord. No. 2022-65, § 2, 1-26-2022)

Sec. 28-642. Issuance or denial of a permit application.

(a) The administrator shall issue a permit after receipt of a completed application if all requirements have been met. If not all requirements for issuance of a permit have been met, the administrator shall deny the permit application. The administrator shall issue notice of the denial to the applicant within a reasonable time.

(b) After issuance of a permit, the administrator shall issue a decal to the applicant to place on the donation box. This decal shall remain affixed to the donation box and visible on the outside of the donation box for the entire duration of the permit. Failure to maintain a visible decal on a donation box may constitute a violation and invalidation of a permit issued under this section. It shall be unlawful for a person, other than an employee of the city authorized to administer this article, to remove a decal from a donation box.

(c) An applicant may appeal a decision to deny a permit application in the same manner as for revocation of a permit under section 28-643 of this Code.
(Ord. No. 2021-350, § 2, 5-5-2021)

Sec. 28-643. Transfer, revocation, and appeal.

(a) Permits and decals are nontransferable.

(b) The administrator may revoke a permit for any of the following reasons without refund of any portion of the required fee:

(1) The information provided in the application is materially false, incorrect, or incomplete;

(2) The permit was issued through error;

(3) The permit holder has failed to comply with any applicable provision of this article; or

(4) The use of the donation box or permit has been discontinued for a continuous period of 180 days.

(c) Revocation of a permit for a single donation box does not affect the validity of permits granted for other donation boxes with the same landowner or operator.

(d) In the event that the administrator determines pursuant to this article that a permit holder is no longer eligible for a permit, or the administrator otherwise revokes the same, the permit holder shall be given notice in writing of the reasons for the revocation by the administrator. A permit holder may appeal the decision of the administrator regarding the revocation by filing a written request for a hearing with the administrator within 20 calendar days after he is given notice of the revocation. The permit holder's written request for a hearing shall set out the grounds on which the revocation is challenged. The administrator's decision on the revocation shall be final unless the permit holder has timely filed such an appeal. An appeal shall not stay the administrator's decision on the revocation. The hearing shall be conducted by a hearing officer appointed by the administrator within 30 calendar days after receipt of a request. At the hearing, the permit holder may present any evidence relevant to the proceedings, in accordance with reasonable rules adopted by the administrator and approved by the city attorney. The hearing officer shall give written notice to the permit holder of his findings as to whether or not the permit should be revoked and the reasons therefor. The notice shall be sent by certified mail, return receipt requested, as soon after the conclusion of the hearing as practicable but in no event more than 30 calendar days thereafter. The decision of the hearing officer shall be final.

(e) If a permit is revoked by the administrator for violation of this article, it shall not be reissued within the one-year period following the date that the permit was revoked.
(Ord. No. 2021-350, § 2, 5-5-2021)

Sec. 28-644. Indemnification of city.

The applicant must agree, as a condition of his permit, to indemnify and hold harmless the city, its officers, agents, contractors, and employees against any loss, liability or damage, including expenses and costs for bodily injury and for property damage sustained by any person, organization or entity resulting from the applicant's operation of a donation box or resulting from the city's abatement of a violation or emergency nuisance under this article.
(Ord. No. 2021-350, § 2, 5-5-2021)

Secs. 28-645—28-650. Reserved.

DIVISION 3. DONATION BOX REQUIREMENTS

Sec. 28-651. General requirements.

Each donation box in the city shall comply with the following requirements:

(1) Current contact information for the operator of the donation box shall always be displayed on a donation box.

(2) A valid decal shall be posted on the donation box and visible from the right-of-way at all times.

(3) Each donation box shall indicate, in clearly legible writing, the types of items accepted for donation, and that all donations must fit into and be placed within the donation box.

(4) No donation box shall be placed in the city's right-of-way.

(5) At least one parking space shall be provided for use of persons accessing the

proposed donation box. The donation box shall not block any parking space required under this Code or any other law.

(6) A donation box shall only be located on a paved surface.

(7) A donation box shall not be placed less than 25 feet from the adjacent right-of-way.

(8) No donation box shall be permitted in a required landscape buffer or building setback, drainage easement, floodplain, driveway, utility easement or fire lane.

(9) No donation box shall be permitted in a visibility triangle described in section 42-161 of this Code.

(10) No donation box shall exceed 125 cubic feet in volume or have a footprint that exceeds 50 square feet, about the size of an average business waste receptacle.

(11) No more than one donation box shall be placed on a single property except that one additional donation box may be permitted on a property with more than 300 feet of road frontage. Where two donation boxes are placed on the same property, they shall be arranged side-by-side with no more than 12 inches of separation. For the purposes of this paragraph a shopping center, strip center, office park, or other similar commercial property operated with common access and shared parking or interconnected parking areas is considered a single property.

(12) No donation box shall constitute a hazard for drivers on nearby roadways.

(13) A donation box shall not impede traffic or pedestrian travel, nor materially impair any motor vehicle operation within a parking lot, driveway, or street.

(14) A donation box shall be made of metal or other material that will reduce the possibility of arson, degradation resulting from exposure to the elements, and vandalism.

(15) All donated materials shall fit into and be placed inside the donation box. The collection or storage of any materials outside the container is strictly prohibited.

(16) Each landowner and operator of a donation box shall be responsible for collecting the contents of the donation box to prevent overflow and littering as part of the service plan required under section 28-641(a)(4) of this Code. Each landowner and operator shall keep the real property within 25 feet of the donation box free of trash, debris, donations, clothes, furniture, and any other materials related to or resulting from operation of the donation box.

(17) Each operator shall at all times maintain commercial general liability insurance with coverage of not less than $1,000,000.00. The city shall be listed as an additional insured on any such policy.

(18) Each donation box shall comply with all applicable state and federal laws, including but not limited to section 17.922 of the Texas Business and Commerce Code.

(Ord. No. 2021-350, § 2, 5-5-2021)

Sec. 28-652. Other maintenance and operation requirements.

(a) The structural and visual integrity of a donation box must be maintained at all times.

(b) The permit conditions must be met at all times during the term of the permit.

(c) A donation box shall not be used for solicitation or collection of anything other than clothing and household items.

(d) Compliance with the requirements of this division must be continuously maintained.

(Ord. No. 2021-350, § 2, 5-5-2021)

Secs. 28-653—28-655. Reserved.

DIVISION 4. ABATEMENT

Sec. 28-656. Abatement.

(a) Whenever the administrator is made aware of the existence of a donation box that is in violation of this article, the administrator shall issue a notice of the violation and a written order to remove or abate the violation within five business days of the mailing or personal delivery or publication or posting. The notice shall be sent to the landowner and operator of the donation box in the manner provided for notice under section 10-452 of this Code, provided that notice shall not be required prior to an abatement of an emergency nuisance described in section 28-657 of this Code. Any required notice under this subsection shall also be given in compliance with the applicable provisions of section 342.006 of the Texas Health and Safety Code, as amended.

(b) If a landowner or operator fails to remove or abate a violation of this article within five business days of the administrator's mailing or personal delivery or publication or posting of notice of the violation, then the city shall be authorized to carry out any and all abatement, which includes, but is not limited to, the following actions:

(1) Taking reasonable measure to remedy the violation;

(2) Revoking any permit issued for that donation box as prescribed under section 28-643 of this Code; or

(3) Ordering the removal and impoundment of the donation box.

(c) Any donation box placed or maintained on real property without consent of the landowner or any donation box that blocks the right of way shall be subject to removal and impoundment by the city, provided that notice under subsection (a) of this section shall not be required prior to removal or impoundment.

(d) For any abatement that is carried out by the city under this section, the city may assess its expenses related to such abatement, including applicable overhead expenses, and place a lien on any real property on which the donation box was placed. After determining the amount of expenses and charging the same against the applicable landowner or operator, the administrator shall certify a statement of such expenses and shall file the same with the county clerk of the county in which the premises or real property is located. Upon filing such lien with the county clerk, the city shall have a privileged lien, inferior only to tax liens and liens for street improvements, to secure the expenditure so made.

(e) If the city has removed a donation box under this section, and the landowner or operator or their designee has not retrieved the donation box and paid the city's expenses described in subsection (d) of this section within 30 days after removal, the city may dispose of the donation box without providing further notice.
(Ord. No. 2021-350, § 2, 5-5-2021)

Sec. 28-657. Emergency abatement of nuisance.

(a) If an administrator determines that a donation box is maintained in a manner or condition prescribed in this section, the administrator may, without providing the notice required under section 28-656(a) of this Code, take immediate action to abate the nuisance, including removal of the donation box.

Each of the following is an emergency requiring immediate action to protect the public health or safety, is declared a nuisance subject to abatement, and is hereby prohibited and made unlawful under this section:

(1) A donation box or any area within 25 feet of a donation box that is a breeding place for flies because of the unsafe/unsanitary condition of the donation box or its contents;

(2) The presence of ectoparasites, including bedbugs, lice, and mites, suspected to be disease carriers in a donation box or within 25 feet of a donation box because of the unsafe/unsanitary condition of the donation box or its contents;

(3) The accumulation or collection of any water, stagnant, flowing, or otherwise, in a donation box or within 25 feet of a

donation box, in which the mosquito breeds or which may become a breeding place for mosquitoes;

(4) The presence of well grown mosquito larvae, or of pupae, in a donation box or within 25 feet of a donation box, because of the donation box;

(5) A donation box that is defective and allows leakage or spilling of contents;

(6) A condition of a donation box, including any structural defect of the donation box, that may injuriously affect the public health;

(7) The deposit or accumulation of any foul, decaying, or putrescent substance or other offensive matter in a donation box or within 25 feet of a donation box;

(8) A donation box harboring rats or other vermin; and

(9) The detectible presence of urine or the presence of feces, vomit or other bodily fluids in a donation box or within 25 feet of a donation box.

(b) Not later than the tenth business day after the date of abatement under this section, the administrator shall give notice thereof to the landowner and operator in the manner provided for notice under section 10-452 of this Code. The landowner or operator may request a hearing within 20 calendar days after he is given notice of the abatement under this section by filing a written request for a hearing with the administrator. The hearing shall be scheduled not later than 30 calendar days after receipt of the request for a hearing and shall be conducted by a hearing officer appointed by the administrator for the purpose of determining whether the conditions qualified for abatement under the terms of this section. The hearing officer's decision shall be final.

(c) A landowner or operator who violates this section is guilty of a misdemeanor punishable by a fine up to $2,000.00. Each day any violation continues shall constitute and be punishable as a separate violation of this article.

(d) For any abatement that is carried out by the city under this section, the city may assess its expenses for such abatement and place a lien on any real property on which the donation box was placed in the same manner as under section 28-656(d) of this Code.

(e) If the city has removed a donation box under this section, and the landowner or operator or their designee has not retrieved the donation box and paid the city's expenses described in subsection (d) of this section within 30 days after removal, the city may dispose of the donation box without further notice.
(Ord. No. 2021-350, § 2, 5-5-2021)

ARTICLE XX. RESERVED

Secs. 28-658—28-670. Reserved.

ARTICLE XXI. EXTERIOR SECURITY CAMERAS

Sec. 28-671. Businesses covered.

The following types of businesses shall be subject to the requirements of this article:

(1) Nightclubs and bars, as defined in section 21-17 of this Code.

(2) Sexually oriented businesses, which shall mean those businesses listed in the definition for enterprise in section 28-121 of this Code.

(3) Convenience stores, as defined in section 28-401 of this Code.

(4) Game rooms, as defined in section 5-161 of this Code.
(Ord. No. 2022-307, § 2, 4-20-2022)

Sec. 28-672. Camera required.

(a) A business subject to the requirements of this article shall have digital high-resolution surveillance cameras sufficient to provide an overall view from the exterior of the building to the property line and each camera shall be placed in consultation with HPD. Each camera shall display the date and time of the recording.

The camera must be capable of providing a digital image with a minimum resolution of two megapixels, a minimum aspect ratio of 1920 horizontal pixels by 1080 vertical pixels, and a minimum frame rate of 30 frames per second. The camera shall have Wide Dynamic Range capabilities. The camera shall be capable of exporting video footage in a non-proprietary MPEG-4 format.

(b) Each camera shall be maintained in proper working order at all times. Each camera shall be operating at all times, including hours when the facility is not open for business.

(c) The owner shall, within 72 hours of a request, provide digital color video footage in connection with crime investigations to the police department.

(d) The owner or operator shall maintain a library of the recorded digital footage for not less than 30 days.

(e) A business subject to the requirements of this article shall have posted at all public exits and entrances signs or decals indicating that surveillance cameras are in use.
(Ord. No. 2022-307, § 2, 4-20-2022)

Sec. 28-673. Violation.

Any failure to comply with any applicable provision of this article shall be an offense punishable as provided in section 1-6 of this Code. The police chief and the director of the department of administration and regulatory affairs shall be authorized to enforce the provisions of this article.
(Ord. No. 2022-307, § 2, 4-20-2022)

Secs. 28-674—28-680. Reserved.

ARTICLE XXII. ESTABLISHMENTS NOT LICENSED BY THE TEXAS ALCOHOLIC BEVERAGE COMMISSION

DIVISION 1. GENERALLY

Sec. 28-681. Purpose.

The purpose of this chapter is to regulate commercial establishments not licensed or permitted by the Texas Alcoholic Beverage Commission (TABC) that allow patrons to bring their own alcoholic beverages onto the premises for consumption. This practice is commonly referred to as "BYOB", an initialism standing for "bring your own bottle."
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-682. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alcoholic Beverage has the meaning assigned by the Texas Alcoholic Beverage Code.

Applicant means owner or operator of the BYOB establishment.

BYOB establishment means an establishment to which this article applies, as described in section 28-683.

Department means the Department of Administration and Regulatory Affairs.

Director means the Director of the Department of Administration and Regulatory Affairs or the director's designees.

Hearing officer means an individual designated by the director to conduct administrative appeal hearings.

Inspection means the annual or any subsequent on-site assessment by officers of the Houston Police Department of the physical, operational, and on-site measures in effect on the property to comply with the minimum requirements in section 28-700.

Operator means the manager or other natural person principally in charge who will be physically present at the establishment during operating hours.

Owner means the person or persons who are the principal owners of the BYOB establishment.

Police official means the chief of police or the chief's designees.

Premises means the grounds and all buildings and appurtenances pertaining to the

grounds, including any adjacent premises if they are directly or indirectly under the control of the owner.

(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-683. Applicability.

(a) Except as provided in subsection (b), this article applies to an establishment that:

(1) Is not licensed or permitted by the TABC;

(2) Is open to the public between 12:01 a.m. and 7:00 a.m.; and

(3) Allows patrons to bring alcoholic beverages onto the premises for possession and consumption.

(b) This chapter does not apply to:

(1) A residence;

(2) A fraternal or veteran's organization, as defined by the Texas Alcoholic Beverage Code;

(3) A university or college providing a degree program;

(4) A church, as defined in section 28-121;

(5) A certified farmer's market licensed pursuant to section 20-192;

(6) A bingo facility licensed under chapter 2001 of the Texas Occupations Code;

(7) A banquet hall; or

(8) A theater that accommodates more than 100 persons.

(Ord. No. 2023-376, § 4, 5-24-2023)

DIVISION 2. PERMITS

Sec. 28-684. Permit required.

(a) It shall be unlawful for any person to operate a BYOB establishment in the city who has not obtained a permit issued by the department as required by this section.

(b) An owner must obtain a separate permit for each BYOB establishment location.

(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-685. Permit application.

(a) An applicant shall apply for a BYOB permit annually. Application forms shall be supplied by the director. The applicant shall be required to give the following information on the application form:

(1) The name, street address (and mailing address if different), email address, personal telephone number, and state driver's license number of each owner and operator, and the name, street address (and mailing address if different), personal telephone number, and email address of each owner;

(2) The name under which the BYOB establishment is to be operated;

(3) The nature and extent of each owner's interest in the BYOB establishment;

(4) The address and telephone number of the BYOB establishment. The use of a public or private post office box or other similar address shall not be sufficient for the purposes of complying with this subsection;

(5) If the BYOB establishment is in operation, the date on which the current owner acquired the BYOB establishment for which the permit is sought;

(6) If the BYOB establishment is not in operation, the expected start-up date;

(7) For each owner and operator, fingerprints and the signed authorization form described in section 28-686 of this Code in order to facilitate the criminal history check required by that section;

(8) The registration certificate or assumed name certificate of the BYOB establishment from the Secretary of State, or the registration of assumed name filed in the office of the Harris, Fort Bend, or Montgomery County Clerk;

(9) A copy of the BYOB establishment's certificate of occupancy;

(10) Scaled drawings of the premises, including:

a. A site plan;

b. The floor plan of each building; and

c. A designation of the areas where consumption of alcohol is to be allowed;

(11) A security plan that meets or exceeds the minimum standards established by this chapter, as determined by the police official;

(12) A copy of the lease agreement where the BYOB establishment will be operating, or proof of ownership of the property, if applicable; and

(13) Other information reasonably required by the director.

(b) The annual permit and inspection fee stated in the city fee schedule shall be payable upon the submission of the application and shall be nonrefundable.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-686. Criminal history check.

Upon receipt of an application for a permit under this article, the director shall cause the criminal history of each owner and operator designated in the application to be researched. In accordance with the provisions of section 28-685 of this Code, each owner and operator shall complete any forms, including any state or federal request and release forms, required for the director to obtain a criminal history report for the owner and operator in accordance with section 1-15 of this Code, and the applicant shall present the required completed forms to the director and shall reimburse the city for any fees imposed by state or federal agencies for the report. This provision shall not be construed to preclude the director from obtaining interim reports at the expense of the city.

As provided in section 28-687 of this Code, the permit application for a BYOB establishment may be denied or revoked at the time of initial application or for any renewal in accordance with section 1-9 of this Code if the owner or operator has been convicted of a criminal offense listed in section 1-10(b)(10) of this Code.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-687. Permit approval.

(a) The director shall approve a permit application if the director determines that the applicant and the proposed BYOB establishment meet the requirements of this chapter.

(b) The director shall deny a permit application if the director determines that:

(1) The applicant is under the age of 21 years;

(2) The BYOB establishment as proposed would not comply with this chapter;

(3) Any operator or owner had a permit required by this chapter that was revoked within the preceding 12-month period; or

(4) The applicant had a TABC permit that was involuntarily cancelled or suspended within the preceding 12-month period.

(c) The director may deny a permit application if the director determines that:

(1) The applicant provided incorrect or incomplete information on the application; or

(2) The owner or operator of the BYOB establishment has been convicted of a criminal offense listed in section 1-10(b)(10) of this Code.

(d) The director shall give written notice of a denial of an application to the applicant.

(e) An applicant may appeal a denial of a permit application to the director in accordance with section 28-693.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-688. Permit not transferable.

A permit issued under this chapter is not transferable to another person. Any change in ownership of a BYOB establishment, including, but not limited to, the sale of the BYOB establishment or any ownership interest therein, shall

require the purchaser or transferee to submit a permit application in accordance with section 28-685.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-689. Permit not a right.

A permit issued under this chapter is a grant of privilege and is not a property right.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-690. Permit expiration, renewal.

(a) A permit issued under this chapter expires one year after the date it is first issued.

(b) The owner shall file an application for permit renewal not sooner than the 90th day and not later than the 20th day before the permit expires. An application that is not filed within the described time period is a new application.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-691. Requirement to supplement information.

While a permit application is pending or a permit is in effect, an applicant or owner shall immediately supplement the information provided to the director in the permit application if the information is or becomes inaccurate, incomplete, or misleading.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-692. Permit revocation.

(a) The director may revoke a permit issued under this chapter if the director determines that:

(1) The owner or operator of the BYOB establishment has been convicted of violating any of the provisions of this article on two or more occasions within the term of the permit or has been convicted of violating any provisions of this article within the 24-month period immediately preceding the date of application for a BYOB establishment permit;

(2) The BYOB establishment does not comply with any applicable provisions of this article;

(3) The owner does not qualify for a permit under this article; or

(4) The permit was obtained or issued as a result of error.

(b) The director shall revoke a permit issued under this article if the director determines that the BYOB establishment violated section 28-706 of this article.

(c) Before revoking a permit, the director shall provide the owner with written notice in conformity with section 28-694 of the pending permit revocation. The written notice shall include:

(1) The reason the permit is subject to revocation;

(2) The date on which the permit is scheduled to be revoked; and

(3) A statement that the permit will be revoked on the scheduled date unless the owner files a written request for a hearing with the director not later than the 10th business day after the date listed on the written notice of revocation.

(d) A permit revocation becomes effective on expiration of the time period prescribed by the notice if the owner does not file a written request for a hearing with the director not later than the 10th business day after the date listed on the written notice of revocation.

(e) If the owner timely files a hearing request:

(1) The director shall comply with the appeal process set forth in section 28-693; and

(2) The revocation is stayed pending the outcome of the hearing.

(f) The director shall give written notice in conformity with section 28-694 to the owner of a decision to revoke the permit or a revocation that becomes effective under subsection (c).

(g) A BYOB establishment whose permit has been revoked pursuant to items (1) and (2) of subsection (a) and subsection (b) of section 28-692 of this Code shall be required to wait a period of

one year from the date the revocation became final before becoming eligible to reapply for a BYOB permit.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-693. Appeal.

(a) *Request for appeal.* An applicant may appeal a denial of the application for or renewal of a permit or the revocation of a permit within 10 business days after the date listed on the written notice by submitting a written request for an appeal to the director. If the applicant does not request a hearing within ten business days, the denial is effective and final on the eleventh business day after the date of the director's notice of denial.

(b) *Conduct of hearing; rules and procedures.* An appeal hearing shall be conducted on a single weekday within 20 business days after the director receives a request for appeal and shall last no longer than eight hours. Further, an appeal hearing shall be informal and conducted under rules established by the director consistent with the informal nature of the proceedings; provided, however, the following rules shall apply to all appeal hearings conducted under this section:

(1) All parties shall have the right to representation by an attorney licensed to practice in Texas, though an attorney is not required;

(2) Each party may present witnesses in his own behalf;

(3) Each party shall have the right to cross-examine all witnesses; and

(4) The hearing officer shall consider only the evidence presented at the appeal hearing in rendering a final decision.

(c) *Authority of hearing officer.* The hearing officer may affirm or reverse a denial or revocation under this article. The hearing officer shall affirm a denial or revocation if he determines by a preponderance of the evidence that grounds exist for the denial or revocation, respectively. The decision of the hearing official is final.

(d) *Notice of decision.* The hearing official shall give written notice of the decision to the applicant and the reasons therefor. The notice shall be provided by certified mail, return receipt requested, as soon after the conclusion of the hearing as practicable, but not more than 30 business days thereafter.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-694. Notices.

(a) Any notice required or permitted to be given by the director or any other city office, division, department or other agency under this article to any applicant may be given either by electronic mail, or first-class United States mail, addressed to the most recent address as specified in the application for the permit most recently received by the director, or any notice of address change most recently received by the director.

(b) Any notice required or permitted to be given to the director by any person under this article shall not be deemed given until and unless it is received in the office of the director.

(c) It shall be the duty of each owner who is designated on the permit application and each operator to furnish notice to the director in writing of any change of mailing address.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-695. Permit posting and sign required.

(a) After a BYOB establishment complies with the provisions of this section, the director will provide to the BYOB establishment a permit which shall be displayed in such a manner that it is conspicuous to patrons of the BYOB establishment.

(b) Each entrance to a BYOB establishment shall be marked with a sign that:

(1) States "BYOB ESTABLISHMENT" in four inch or larger block letters; and

(2) Is legible and visible at all times from a distance of 25 feet.

(c) Any signage required by this section shall be in conformance with the Sign Code.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-696. Public place.

A BYOB establishment is a public place.
(Ord. No. 2023-376, § 4, 5-24-2023)

DIVISION 3. MINIMUM REQUIREMENTS FOR BYOB ESTABLISHMENTS

Sec. 28-697. Operator required on premises.

The owner shall ensure that the operator is continuously on the premises during the hours of operation. The owner may serve as the operator.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-698. Minimum age for admittance and employment.

(a) The owner, the operator, or an employee of a BYOB establishment may not allow a person under the age of 18 years on the premises.

(b) The owner, the operator, or an employee of a BYOB establishment may not allow a person under the age of 21 years to consume alcohol on the premises.

(c) The owner or operator of a BYOB establishment that the city determines to also be a sexually oriented business under this Code may not employ or allow persons under the age of 21 years at a BYOB establishment.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-699. Security plan implementation.

(a) A person may not operate a BYOB establishment without an approved security plan.

(b) The applicant shall provide security for the BYOB establishment in accordance with the security plan.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-700. Minimum security requirements.

All BYOB establishments shall comply with the following minimum security requirements:

(1) Hand wand or walkthrough metal detectors shall be utilized on all persons entering the BYOB establishment;

(2) The exterior portion of the premises, including parking areas, shall be well lit during business hours and must have lighting to illuminate parking areas to at least 0.7 foot-candles. Said lighting shall be designed so as to not unduly interfere with any neighbor's reasonable use and/or enjoyment of the neighbor's premises;

(3) The BYOB establishment shall provide for at least one security officer per 100 patrons. Security officers must have at least a Level II non-commissioned security guard license;

(4) The BYOB establishment must have a working security video system with low light recording capabilities. The system must record open areas and all entrances and exits inside and outside of the premises, excluding restroom facilities. The BYOB establishment must also have digital high-resolution surveillance cameras sufficient to provide an overall view from the exterior of the building to the property line. The owner shall maintain a library of the recorded digital images for not less than 90 days. At least one on-site personnel must be able to access the system if requested by law enforcement. All security cameras and security footage is subject to inspection at any time by city personnel; and

(5) Any requirement that the police official deems reasonably necessary for the BYOB establishment.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-701. Doors to remain unlocked.

During the hours of operation, a person may not lock or obstruct:

(1) An exterior entrance door that is designated or available for use by patrons; or

(2) An interior door that provides access to a portion of the premises that is designated or available for use by patrons.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-702. Trespass affidavit.

The owner of a BYOB establishment shall execute a trespass affidavit as promulgated by the police department in order to enforce all applicable trespass laws on the owner's behalf at such property. A true and correct copy of the trespass affidavit shall be posted at the BYOB establishment at all times in a conspicuous place accessible at all times to the public.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-703. Annual compliance inspection.

(a) Before a BYOB establishment has been permitted pursuant to section 28-687, the owner shall schedule an inspection with the police official to determine the establishment's compliance with the minimum requirements established in this article. Each owner shall pay a nonrefundable inspection fee stated for this provision in the City Fee Schedule for the inspection services described in this section as provided in section 28-685(b). In consideration of such fee the applicant shall be entitled to the original inspection and one reinspection for deficiencies, if required. An additional fee is hereby imposed and shall be collected for the second and each subsequent reinspection required due to deficiencies as provided in the city fee schedule. The fee shall be paid to the department prior to the commencement of the inspection.

(b) During the inspection the police official shall identify any violations of section 28-700 and provide an action plan specifying the measures to be implemented at the property to bring it into compliance with section 28-700.

(c) The owner of the BYOB establishment must within 60 days after the inspection either cure the violations or demonstrate to the police official that the finding of non-compliance was incorrect. If, after the 60-day period has elapsed, the police official determines that the establishment has failed to cure the violation, the commercial establishment will be subject to a penalty as set forth in section 28-710.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-704. Consent to inspection.

(a) By accepting a permit under this chapter, the owner consents that the director, the director's representative, law enforcement personnel, code enforcement personnel, and other on-duty governmental personnel may enter the premises at reasonable times to investigate or inspect the premises to determine compliance with this chapter.

(b) The owner, the operator, and an employee shall provide the director, the director's representative, law enforcement personnel, code enforcement personnel, and other on-duty governmental personnel with immediate access to all portions of the premises. If the BYOB establishment is occupied, the police official must present credentials to the owner or other person having charge or control of the commercial establishment and request entry.

(c) If the owner or other person having charge or control of the BYOB establishment refuses the police official's request to enter the premises to inspect or perform the duties imposed by this article or to inspect or review records relating to compliance with this article, the police official shall have recourse to the remedies provided by law to secure entry.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-705. Parking area restrictions.

(a) The owner, the operator, or an employee may not allow persons to loiter in a parking area.

(b) The owner, the operator, or an employee may not allow persons to consume an alcoholic beverage in a parking area.

(c) The owner shall post signs in each parking area stating that the consumption of an alcoholic beverage is prohibited.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-706. Sale of alcoholic beverages prohibited.

A person may not sell an alcoholic beverage at a BYOB establishment.
(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-707. Consumption and purchase of alcohol by owner prohibited.

The owner, operator, employee, or agent of a BYOB establishment may not:

(1) Consume an alcoholic beverage while on duty;

(2) Purchase or otherwise acquire an alcoholic beverage for a patron; or

(3) Give an alcoholic beverage to a patron.

(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-708. Hours of operation.

(a) The owner, operator, employee, or agent of a BYOB establishment may not allow persons to bring alcoholic beverages onto the premises for possession and consumption between 2:15 a.m. and 7:00 a.m. each day except Sunday, or between 2:15 a.m. and noon on Sunday.

(b) A person may not consume an alcoholic beverage on the premises of a BYOB establishment between 2:15 a.m. and 7:00 a.m. each day except Sunday, or between 2:15 a.m. and noon on Sunday.

(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-709. Compliance with other laws.

The owner, the operator, or an employee of a BYOB establishment shall comply with all applicable local and state laws relating to the operation of the BYOB establishment. The application and issuance of a BYOB permit does not exempt the owner and operator from applying for and obtaining other permits required for the business.

(Ord. No. 2023-376, § 4, 5-24-2023)

Sec. 28-710. Violation.

(a) Any failure to comply with any applicable provision of this article shall be an offense punishable as provided in section 1-6 of this Code. Each hour or portion thereof in which any violation shall occur shall constitute a separate offense.

(b) The procedures set forth in this article are cumulative of all other remedies available to the city relating to the subject matter hereof. Specifically, the city attorney may institute any legal action to enforce this ordinance or enjoin or otherwise cause the abatement of any condition described in this article, as well as for the recovery of all expenses incurred in connection therewith, including without limitation administrative and legal expenses, attorney's fees, and costs, and for civil penalties as provided by law.

(Ord. No. 2023-376, § 4, 5-24-2023)

Secs. 28-711—28-720. Reserved.

ARTICLE XXIII. SHORT-TERM RENTALS*

DIVISION 1. GENERAL

Sec. 28-721. Definitions.

As used in this article, the following words and terms shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

Applicant means the owner and/or operator of a short-term rental who applies for a certificate of registration pursuant to the requirements of this article.

Certificate of registration means a current and valid certificate issued by the director pursuant to this article to the owner or operator of a short-term rental.

Director means the director of administration and regulatory affairs or the director's designee.

Dwelling unit means a structure, or an area within a structure, designed or used as living quarters for a single family or the equivalent thereof. A dwelling unit includes a single-family residence, and each unit of an apartment, duplex, or multiple dwelling structure designed as a separate habitation for one or more persons.

*__Editor's note__—Ordinance No. 2025-322, adopted April 16, 2025, provides that its provisions are not effective until 12:01 a.m. on January 1, 2026. The Administration and Regulatory Affairs Department will begin accepting certificate of registration applications on August 1, 2025.

Emergency condition means any fire, natural disaster, power outage, gas leak, noise violation, or medical emergency. The term shall also include the following crimes occurring at the short-term rental: murder, rape, robbery, aggravated assault, burglary, narcotics offenses (restricted to those of delivery, possession, or manufacture), human trafficking offenses, weapons offenses, prostitution offenses, arson, vandalism, gambling offenses, and disorderly conduct.

Occupant means any individual who rents or occupies a short-term rental during a rental period, including their invited guests.

Operator means the individual who operates or otherwise manages a short-term rental, which may be the owner or the authorized agent of the owner.

Owner means any person or entity who has a legal or equitable interest in the property used as a short-term rental or who is recorded in the official records of the county as holding title to the property used as a short-term rental.

Platform means a listing service, internet website, mobile application, or other digital platform that receives a fee or otherwise financially benefits, directly or indirectly, for facilitating short term rental booking transactions. The term "platform" shall not include a multiple listing services internet website, mobile application, or other digital platform for licensed real estate professionals that does not facilitate short term rental booking transactions.

Registrant means any person, partnership, corporation, firm, joint venture, limited liability company, association, organization or any other entity holding a certificate of registration issued pursuant to this article.

Short-term rental means a dwelling unit or any portion of a dwelling unit that is rented out or offered to be rented out for a period of less than 30 consecutive days. The term "short term rental" shall not include: (1) a boarding home, as defined in article XIV of this chapter, (2) a bed and breakfast, as defined in article II, chapter 20 of this Code; (3) hotel, as defined in article VI of this chapter, (4) a lodging facility, as defined in article XVIII of this chapter, (5) an alternate housing facility, as defined in article IV, chapter 28 of this Code, (6) buildings providing sleeping facilities primarily for the purpose of rendering services regulated by a department or agency of the federal government or of the State of Texas (including, but not limited to, the Texas Department of State Health Services); or (7) a lease-back arrangement under which the seller of a home leases the home back from the purchaser.

(Ord.No. 2025-322, § 2(Exh. A), 4-16-2025, eff. 1-1-2026)

Sec. 28-722. Registration required.

(a) It shall be unlawful for any person to operate, rent, lease, or advertise a short-term rental within the city limits without a valid certificate of registration as provided in this article.

(b) Each owner and/or operator of a short-term rental operating within the city limits shall register their short-term rental with the city in the manner prescribed in section 28-731 of this Code.

(Ord.No. 2025-322, § 2(Exh. A), 4-16-2025, eff. 1-1-2026)

Sec. 28-723. Penalty.

(a) Any person who violates any provision of this article commits an offense and upon conviction thereof, shall be punished by a fine of not less than $100.00 and not more than $500.00 for each violation. Each day any violation continues shall constitute and be punishable as a separate violation of this article.

(b) The revocation of any permit shall not prohibit the imposition of any other penalty, and the imposition of any other penalty shall not prevent the revocation of a certificate of registration.

(c) These remedies shall be cumulative of any other penalty or remedies available to the city.

(Ord.No. 2025-322, § 2(Exh. A), 4-16-2025, eff. 1-1-2026; Memorandum of 7-22-2025)

Secs. 28-724—28-730. Reserved.

DIVISION 2. CERTIFICATES OF REGISTRATION

Sec. 28-731. Certificate of registration—Application form.

(a) Each short-term rental shall register with the city on a form prescribed by the director and be accompanied by the non-refundable application fee set forth for this provision in the city fee schedule.

(b) The certificate of registration application shall contain the following information:

(1) The address of the short-term rental;

(2) The names, mailing addresses, street addresses (if different from the mailing address), telephone numbers, and electronic mail addresses of all owners, operators, and agents (if any) of the short-term rental;

(3) Proof of ownership of the property, or a sworn or unsworn declaration from the property owner granting permission for the operation of a short-term rental at the address provided;

(4) If the owner is not an individual, the name, mailing address, street address (if different from the mailing address), telephone number, and electronic mail address of a natural person/corporate representative (including an officer, director, or agent) with authority to act on behalf of the owner and a copy of the documents filed with the Texas Secretary of State establishing the entity and showing the entity is in good standing with the State of Texas;

(5) The names and 24-hour telephone numbers of one or more emergency contact persons, who shall be the owner, operator, or designated agents and who shall be authorized to respond to emergency conditions as required under section 28-741(b)(5) of this Code;

(6) The name and website address of all platforms that facilitated booking transactions for the short-term rental at any time during a twelve-month period prior to the date of application;

(7) Acknowledgement by the owner that the use of the property as a short-term rental does not violate any covenants, homeowner association rules, bylaws, deed restrictions, condominium agreement terms, rental agreement terms, or other restrictions, including but not limited to minimum occupancy duration requirements, applicable to the property proposed to be used as a short-term rental;

(8) Acknowledgment by the owner or operator that they have completed annual training on how to identify human trafficking activities and victims and how to report human trafficking;

(9) A sworn statement or unsworn declaration that the owner of the short-term rental shall comply with the requirements of this article;

(10) Proof of registration with the city for payment of hotel occupancy taxes or proof of remittance of hotel occupancy taxes for the operation of the short-term rental; and

(11) Any other information that may be reasonably requested by the director.

(c) Any change in the information listed in subsection (b) of this section shall require a supplement to the original application and must be reported by the owner and/or operator to the director within 15 calendar days after the change. Failure to supplement the registration application invalidates the original certificate of registration application. For renewals, the director shall require an owner and/or operator to reapply for a certificate of registration if information provided in the original application changes. The director may promulgate procedures and regulations regarding the requirement to supplement any change in the information listed under subsection (b) of this section.

(d) A separate certificate of registration shall be required for each short-term rental. Certificates of registration issued under the provisions of this article shall be valid only at the address of the short-term rental stated on the certificate of registration.

(e) Each certificate of registration shall be valid for one year from the date of issuance unless revoked or otherwise invalidated under this article. A registrant shall apply for renewal not more than 90 calendar days prior to the expiration on a form provided by the director.
(Ord.No. 2025-322, § 2(Exh. A), 4-16-2025, eff. 1-1-2026)

Sec. 28-732. Issuance or denial of a certificate of registration.

(a) The director shall approve a certificate of registration application if the director determines that the applicant has submitted a complete certificate of registration application and the proposed short-term rental meets the requirements of this article.

(b) The director may deny a certificate of registration for any of the following reasons:

(1) Any information provided in the certificate of registration application is false, misleading, incorrect, or incomplete;

(2) The applicant fails to submit a complete certificate of registration application or fails to provide any other reasonably requested information by the director;

(3) The applicant fails to show proof of registration or remittance of hotel occupancy taxes for the operation of the short-term rental; or

(4) The applicant is a former registrant whose certificate of registration has been revoked and is subject to the waiting period established in section 28-733(d) of this Code.

(c) The director shall provide the applicant written notice of the approval or the denial of the certificate of registration by either:

(1) Certified mail, return receipt requested, to the address provided in the certificate of registration application; or

(2) Electronic mail to the email address provided by the applicant.

(d) If the director determines that the application is incomplete, the director shall return the application with an explanation of the deficiency. If the director determines that the reason for the denial of a certificate of registration is curable, the director shall allow the applicant, upon the applicant's written request, to submit an amended application to cure the defect in lieu of filing an appeal. If the certificate is denied again, or if the applicant fails to cure any defect in the amended application, notice of denial of a certificate of registration shall be sent to the applicant in the manner provided in section 28-735 of this Code.

(e) The director's decision to deny the issuance of a certificate of registration shall be final unless an appeal is timely filed pursuant to section 28-735 of this Code.
(Ord.No. 2025-322, § 2(Exh. A), 4-16-2025, eff. 1-1-2026)

Sec. 28-733. Revocation of a certificate of registration.

(a) The director may revoke a certificate of registration for any of the following reasons without refund of any portion of the required fee:

(1) The certificate of registration was issued in error;

(2) Any information provided in the application is false, misleading, incorrect, or incomplete;

(3) The registrant fails to supplement any change in information as required in section 28-731(c) of this Code;

(4) The registrant fails to timely report and pay or ensure payment of hotel occupancy taxes required under article III of chapter 44 of this Code and state law;

(5) Two or more instances when the City, after providing notice pursuant to section 10-452 of this Code, removes or abates a nuisance prescribed in section 10-451 of this Code at a property operating as a short-term rental;

(6) Two or more citations are issued over two separate occasions within a twelve-month period at the property registered as a short-term rental, whether the citations are issued to the owner, operator, or occupants, resulting in two or more convictions for violations of chapter 30 of this Code; or

(7) One or more convictions of the owner, operator, or any occupant of the property registered as a short-term rental for any of the following offenses occurring at the short-term rental:

a. Kidnapping, unlawful restraint, and smuggling of persons as described in Chapter 20 of the Texas Penal Code;

b. Reckless discharge of a firearm as prohibited by the Penal Code;

c. Trafficking of persons as described in Chapter 20A of the Texas Penal Code;

d. Prostitution as described by Section 43.02, Penal Code, solicitation of prostitution as described by Section 43.021, Penal Code, promotion of prostitution as described by Section 43.03, Penal Code, or aggravated promotion of prostitution as described by Section 43.04, Penal Code;

e. Compelling prostitution as prohibited by the Penal Code;

f. Aggravated assault as described by Section 22.02, Penal Code;

g. Sexual assault as described by Section 22.011, Penal Code;

h. Aggravated sexual assault as described by Section 22.021, Penal Code;

i. Continuous sexual abuse of young child or disabled individual as described by Section 21.02, Penal Code;

j. Sexual conduct or performance by a child as described by Section 43.25, Penal Code;

k. Employment harmful to a child as described by Section 43.251, Penal Code; or

l. Disorderly conduct as described by Section 42.01(a)(7) and (a)(8), Penal Code.

(b) Notwithstanding any other provision of this section, if three (3) or more certificates of registration issued to the same owner or operator are revoked within any consecutive twenty-four (24) month period pursuant to subsection (a) of this section, the Director may initiate proceedings to revoke all remaining certificates of registration held by that property owner or operator. Such revocations shall be subject to the notice and hearing procedures established in section 28-735 of this Code.

(c) The director shall provide the applicant written notice of the revocation by certified mail, return receipt requested, to the mailing address of the registrant provided in the certificate of registration application, or by electronic mail to the email address provided by the registrant.

(d) A registrant whose certificate of registration has been revoked pursuant to items (2) through (7) of subsection (a) or subsection (b) of this section of this Code shall be ineligible to reapply for and receive a certificate of registration for the same short-term rental property for which the certificate of registration was revoked for the one-year period following the date that the certificate of registration was revoked.

(e) A registrant may appeal a decision to revoke a certificate of registration application as provided for under section 28-735 of this Code. (Ord.No. 2025-322, § 2(Exh. A), 4-16-2025, eff. 1-1-2026; Memorandum of 4-22-2025)

Sec. 28-734. Notice to platforms to delist short-term rentals.

The city shall notify and request that a platform remove a short-term rental listing from the platform if the short-term rental listing lacks a certificate of registration number, the short-term

rental certificate of registration number is invalid, expired, or the certificate of registration has been revoked. The city's notification shall identify the short-term rental listing to be removed by its physical address and uniform resource locator (URL) and state the reason for removal. The platform shall remove the short-term rental listing within ten (10) business days following receipt of the city's notification requesting that a platform remove a short-term rental listing.
(Ord.No. 2025-322, § 2(Exh. A), 4-16-2025, eff. 1-1-2026; Memorndum of 4-22-2025)

Sec. 28-735. Appeal of denial or revocation of a certificate of registration.

If the director determines pursuant to this article that a certificate of registration should be denied or revoked, the director shall provide written notice to the applicant or registrant of the reasons for the denial or revocation. An applicant or registrant may appeal the decision of the director regarding the denial or revocation by filing a written request for a hearing with the director within 20 calendar days after the applicant or registrant is given notice of the denial or revocation. The applicant's or registrant's written request for a hearing shall set out the grounds on which the denial or revocation is challenged. The director's decision on the denial or revocation shall be final unless the applicant or registrant has timely filed such an appeal. An appeal shall not stay the director's decision on the denial or revocation. The hearing shall be conducted by an impartial hearing officer appointed by the director within 30 calendar days after receipt of a request. At the hearing, the applicant or registrant may present any evidence relevant to the proceedings, in accordance with reasonable rules adopted by the director and approved by the city attorney. The hearing officer shall give written notice to the applicant or registrant of his findings as to whether or not the certificate of registration should be denied or revoked and the reasons therefor. The notice shall be sent by certified mail, return receipt requested, as soon after the conclusion of the hearing as practicable but in no event more than 30 calendar days thereafter. The decision of the hearing officer shall be final and exhaust the certificate of registration applicant's or registrant's administrative remedies.
(Ord.No. 2025-322, § 2(Exh. A), 4-16-2025, eff. 1-1-2026)

Sec. 28-736. Certificate of registration not transferrable.

(a) A certificate of registration issued to a registrant is nontransferable and shall not be assigned nor transferred to another person, entity, or location. A registrant may provide a change of information pursuant to section 28-731(c) of this Code without submitting a new certificate of registration application.

(b) Notwithstanding the provisions of subsection (a) of this section, a certificate of registration is null and void if the registrant sells or conveys any ownership or leasehold interest in a property operated as a short-term rental. Any change in ownership of a short-term rental, including but not limited to the sale or conveyance of any ownership or leasehold interest therein for more than 30 days, shall require the purchaser, transferee or lessee to apply for a certificate of registration pursuant to this article in order to operate the property as a short-term rental.
(Ord.No. 2025-322, § 2(Exh. A), 4-16-2025, eff. 1-1-2026)

Secs. 28-737—28-740. Reserved.

DIVISION 3. SHORT-TERM RENTAL REQUIREMENTS

Sec. 28-741. General requirements.

(a) The owner, operator, and occupants shall comply with all provisions of this article and applicable provisions of this Code, including, but not limited to:

(1) The noise and sound level regulations under chapter 30 of this Code;

(2) The buildings and neighborhood protection requirements under chapter 10 of this Code;

(3) All applicable solid waste and litter control requirements pursuant to chapter 39 of this Code; and

(4) All applicable provisions of the Construction and Fire Code.

(b) Additionally, it shall be unlawful for an owner or operator of a short-term rental to fail to comply with or use, cause to be used, allow, suffer, advertise or permit the use of the short-term rental in violation of any of the following general requirements:

(1) *Minimum individual stay.* No owner or operator of a short-term rental shall allow the rental of a short-term rental for a period of less than one night.

(2) *Payment of hotel occupancy taxes.* The owner or operator of a short-term rental shall not operate a short-term rental without paying the hotel occupancy taxes required under article III of chapter 44 of this Code and state law.

(3) *Advertising or promoting special events.* No owner or operator shall advertise or promote a special event or allow the advertising and promotion of a special event (e.g. banquet, wedding, reception, reunion, bachelor or bachelorette party, concert, or any similar activity that would likely assemble a number of invitees) to be held at a short-term rental.

(4) *Public listings.* All public listings or advertisements of a property as a short-term rental, including any public listings or advertisements by platforms, shall include the following information:

a. The certificate of registration number; and

b. The maximum permitted occupancy limits.

(5) *Emergency contact.* Any emergency contact person listed under section 28-731(b)(5) of this Code must be available by phone at all times to respond to emergency conditions while any occupants are on the premises of a short-term rental. If called, the emergency contact person shall respond to the emergency condition within one hour after being notified by the emergency response personnel or the director. The emergency contact person must be authorized to make decisions regarding the premises, its occupants, and shall take reasonable actions to resolve the emergency condition to the extent possible. The owner or operator shall post in a conspicuous location of the short-term rental the names and telephone numbers of one or more emergency contact persons authorized to respond to emergency conditions as required under this subsection.

(6) *Certificate of registration to be displayed.* A copy of the approved certificate of registration shall be posted at a conspicuous location inside the front entrance to the short-term rental.

(Ord.No. 2025-322, § 2(Exh. A), 4-16-2025, eff. 1-1-2026)

Sec. 28-742. Platform requirements.

(a) All platforms shall provide the following notice to all owners and operators listing a short-term rental located in the City of Houston through a platform's service: **ARTICLE XXIII, CHAPTER 28 OF THE CITY OF HOUSTON, TEXAS, CODE OF ORDINANCES, STATES IT SHALL BE UNLAWFUL FOR ANY PERSON TO OPERATE A SHORT-TERM RENTAL WITHIN THE CITY WITHOUT A VALID SHORT-TERM RENTAL CERTIFICATE OF REGISTRATION.**

(b) All platforms displaying listings of short-term rentals located in the city shall require owners or operators using the platform to include the certificate of registration number in any listing for a short-term rental on the platform. The certificate of registration number shall be prominently displayed on the listing. Platforms shall not list a short-term rental without a certificate of registration number issued by the city.

(c) Notwithstanding any other provisions of this chapter, nothing shall relieve any owner, operator, or platform of the obligation imposed

by the applicable provisions of state law and this Code, including but not limited to obligations imposed by the Texas Tax Code. Nothing in this chapter shall be construed to limit any remedies available under the applicable provisions of state law and this Code.
(Ord.No. 2025-322, § 2(Exh. A), 4-16-2025, eff. 1-1-2026)

Sec. 28-743. Rules and regulations.

The director is hereby authorized to adopt rules and regulations consistent with the intent and purposes of the provisions of this article. A copy of all rules and regulations shall be maintained in the director's office and the office of the city secretary for inspection by the public, and copies shall be made available for purchase consistent with the fees prescribed by law.
(Ord.No. 2025-322, § 2(Exh. A), 4-16-2025, eff. 1-1-2026)

Chapter 29

MANUFACTURED HOMES AND RECREATIONAL VEHICLES*

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ARTICLE I. IN GENERAL

Sec. 29-1. Definitions.

For the purpose of this chapter, the following words, phrases, definitions and their derivatives shall have the meanings ascribed to them unless the context in which they are used clearly indicates a different meaning:

Accessory structure. Any structural addition to a manufactured home including, without limitation, awnings, cabanas, Florida rooms, porches, ramadas, storage cabinets and similar appurtenant structures.

Approved. An approval by the building official which shall be granted if the building official finds that the item is suitable for its intended purpose and is not dangerous or detrimental to life, safety or welfare of people or property except as otherwise provided in this chapter. Such finding shall be based on the results of investigation or tests conducted by him, accepted principles of safety, or the results of tests by reliable national authorities, technical or scientific organizations.

Camping trailer. A portable unit mounted on wheels and constructed of collapsible partial side walls which fold for towing by another vehicle and unfold to provide temporary living quarters for recreational, camping or trailer use.

Dependant. Not self-contained and not having a water-flush toilet, lavatory and shower connected to outside utilities.

Finalized. With respect to any permit, the term finalized shall mean that all work authorized by the permit has been completed in due compliance with law and the building official's copy of the permit has been so noted.

Manufactured home. Has the meaning ascribed in Texas Revised Civil Statutes article 5221f, § 3(17), as amended.

***Editor's note**—Ord. No. 94-1268, § 2, adopted Nov. 22, 1994, substantially amended this chapter to read as herein set forth, and changed the name of this chapter from "mobile homes and recreational vehicles" to "manufactured homes and recreational vehicles."

Cross references—Buildings generally, Ch. 10; housing moving, § 10-48 et seq.; modular housing, § 10-231 et seq.; flood hazard areas, Ch. 19; manufactured homes in flood hazard areas generally, § 19-21 et seq.; planning and development generally, Ch. 33; subdivisions, Chs. 41, 42; swimming pools, Ch. 43.

Manufactured home park. A contiguous development of land that has been planned and improved for the placement of manufactured homes. (See article III for requirements.)

Manufactured home subdivision. A duly recorded subdivision for manufactured homes approved by the city planning commission in accordance with this Code and all other applicable laws, rules and regulations. (See article IV for requirements.)

Motor home. A vehicular unit designed to provide temporary living quarters for recreational, camping or travel use built on or permanently attached to a self-propelled motor vehicle chassis or on a chassis cab or van which is an integral part of the completed vehicle.

Occupied area. That area of an individual manufactured home space or lot which has been covered by a manufactured home and its accessory structures.

Premise. Any lot or tract of land and all adjacent land which is directly or indirectly under the control of the same person, together with all improvements thereon.

Recreational vehicle. Has the meaning ascribed in Title 24, U.S. Code of Federal Regulations, Section 3282.8(g), as amended. Without limitation, it includes a camping trailer, motor home, travel trailer or truck camper to the extent that the vehicle or device meets the criteria of 24 C.F.R. § 3282.8(g).

Recreational vehicle park. A contiguous development of land which has been planned and improved for the placement of recreational vehicles.

Replaced. Means any relocation of a manufactured home whether upon the same lot or tract of land or from one lot or tract of land to another.

Sales lot. Means any premises used by a retailer for showing manufactured homes to potential customers which is operated by the holder of a valid manufactured housing retailer's certificate issued pursuant to Article 5221f of Vernon's Texas Civil Statutes, or any tract of land used for showing recreational vehicles to potential customers excepting premises used and owned by an individual showing a recreational vehicle which he owns and has used when such individual has not shown or sold more than two recreational vehicles to potential customers in any twelve-month period.

Self-contained. Having a water-flush toilet, lavatory, tub or shower and kitchen sink, all of which are connected to water storage and sewage holding tanks located within the recreational vehicle and which facilities are also capable of being connected to outside utilities. Further, a recreational vehicle shall not be self-contained unless all plumbing fixtures and electrical outlets are both capable of being operated independent of connections to sewer, water and electrical systems and capable of being connected to outside utilities.

Travel trailer. A vehicular, portable structure built on a permanent chassis, designed by the manufactured to be towed by another vehicle and used as a temporary dwelling, and which meets the definition of "temporary living quarters" or "permanent living quarters" as applicable to its use.

(a) *Temporary living quarters.* A travel trailer intended to be used for recreational, camping or travel use and of such size and weight so as not to require a special highway movement permit and which complies with the standards of NFPA 501-C, dated 1982, or the ANSI standards for the construction of travel trailers which were in effect at the time the travel trailer was constructed.

(b) *Permanent living quarters.* A travel trailer which may be occupied indefinitely (without limit as to the length of time it is occupied) which:

(1) In the traveling mode does not require a special highway permit;

(2) Is less than eight feet in width;

(3) Is less than 40 feet in length exclusive of pulling or tow equipment;

(4) Has a minimum floor area of 120 square feet;

(5) When placed on location, has all the amenities, facilities and capabilities of a manufactured home; and

(6) Complies with the standards of NFPA 501-C, dated 1982, or the ANSI stan-

dards for the construction of travel trailers which were in effect at the time the travel trailer was constructed.

Truck camper. A portable unit constructed to provide temporary living quarters for recreational, travel, or camping use, consisting of a roof, floor, and sides designed to be loaded onto and unloaded from the bed of a truck.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, §§ 57, 58, 5-23-90; Ord. No. 94-1268, §§ 3—5, 11-22-94; Ord. No. 95-104, § 1, 1-25-95)

Sec. 29-2. Building official's authority.

Except as otherwise specified in this chapter, the building official shall be the permit and license issuance officer for all permits and licenses required pursuant to this chapter. He shall prescribe forms therefor including all information reasonably and necessary required for his enforcement of the provisions of this chapter. He shall also be authorized to perform all inspections necessary for the enforcement of this chapter. He shall also have authority to establish reasonable and necessary administrative rules and regulations relating to the performance of his duties under this chapter such as the place where license and permit applications will be received and the times when inspections will be made.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90)

Sec. 29-3. Notices and orders.

The building official shall issue all necessary notices or orders to remove or abate illegal or unsafe conditions and to ensure compliance with all the requirements of this chapter for the safety, health and general welfare of the public.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90)

Sec. 29-4. Compliance.

When any person shall have been notified by a written notice issued by the city that work being done by him as owner, agent, or in any other capacity, is in violation of the provisions of this chapter, it shall be his duty to abate the violation within the time specified in the written notice. Such time shall not exceed ten days and the building official may provide for immediate compliance when a serious threat to life or substantial damage to property may exist.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90)

Sec. 29-5. Penalty.

Any person who shall violate any of the provisions of this chapter, upon conviction, shall be fined not less than $100.00 nor more than $500.00, and each day's violation shall constitute a separate offense.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 92-1449, § 49, 11-4-92)

Sec. 29-6. Deed restriction declaration.

(a) In addition to any other applicable requirements specified therefor, each person making application pursuant to this chapter for a hardship permit or a manufactured home park development permit or for a placement permit appertaining to a manufactured home which is to be situated outside of the confines of a manufactured home park shall furnish to the building official a declaration as provided in section 1-11 of this Code, subscribed by the person making the declaration as true under penalty of perjury, setting forth that the applicant is familiar with the title to the real property to which the requested permit appertains and that the applicant's intended use thereof will not violate any valid and applicable deed restriction or covenant running with the land. The building official may not issue the requested permit unless such declaration has been duly submitted.

(b) All permits, licenses and approvals for occupancy issued pursuant to this chapter are hereby made expressly subject to applicable deed restrictions and covenants running with the land to which they appertain and no such permit, license or approvals for occupancy shall be construed as authorizing any violation thereof.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90; Ord. No. 2015-160, §§ 6, 7, 2-18-2015)

Editor's note—Ord. No. 2015-160, § 6, adopted February 18, 2015, amended the title of § 29-6 to read as herein set out. Formerly said section was entitled "Deed restriction affidavit."

Secs. 29-7—29-14. Reserved.

ARTICLE II. REQUIREMENTS CONCERNING MANUFACTURED HOMES AND RECREATIONAL VEHICLES

DIVISION 1. GENERALLY

Sec. 29-15. Authorized locations.

(a) Subject to lawful compliance with this Code, a manufactured home may be placed, or permitted to remain within the city, if and only if, it is situated:

(1) In a manufactured home park which the operator is licensed to operate pursuant to article III of this chapter;

(2) In a duly platted and recorded manufactured home subdivision that meets all requirements of article IV of this chapter;

(3) In a manufactured home sales lot;

(4) Upon a site that the manufactured home has continuously occupied since March 1, 1972, provided that the occupation was lawful on that date, and further provided that the continued occupation thereof does not pose a significant danger to the health or safety of persons within the manufactured home or to others;

(5) Upon a site that the manufactured home occupied prior to annexation of the site by the city, provided that the manufactured home has continuously occupied the site since the date the site was annexed, and further provided that the continued occupation thereof does not pose a significant danger to the health or safety of persons within the manufactured home or to others;

(6) Upon a site for which a hardship permit is in effect pursuant to division 2 of this article; or

(7) Upon a temporary site authorized by the director for disaster assistance organizations used as authorized in section 29-18 of this Code.

Provided that no manufactured home may be situated or permitted to remain in any place in violation of any valid and applicable deed restriction or covenant running with the land, or on any site within Districts of Limitations One and Two as those districts are established in the *Fire Code*.

(b) It shall be unlawful for any person to park or place, a manufactured home at any location not authorized by this chapter, or to permit or suffer any manufactured home to remain within the city in any location not authorized pursuant to this chapter.

(c) A recreational vehicle may not be placed on any property except as specifically permitted in this chapter.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 01-990, § 2, 10-31-01; Ord. No. 02-399, § 63, 5-15-02; Ord. No. 2021-1037, § 20(Exh. I.29, 30), 12-1-2021, eff. 4-1-2022)

Sec. 29-16. Placement standards.

(a) Placement of manufactured homes and recreational vehicles within manufactured home parks shall be as set forth in article III of this chapter, and as required in paragraph (b) below.

(b) Placement of all other manufactured homes shall be such that the manufactured home is situated not less than 25 feet from any property boundary line abutting upon a public street or highway, not less than ten feet from any private street, not less than five feet from any other property boundary line and not less than ten feet from any other structure.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-17. Upkeep, smoke detectors.

(a) All manufactured homes and recreational vehicles, both existing and new, and all parts thereof, shall be maintained in a safe and sanitary condition. All devices or safeguards which are required by this Code or by standards adopted by

this Code, or by any other law in a manufactured home or recreational vehicle shall be maintained in good working order.

(b) No person shall occupy a manufactured home, regardless of the age of the vehicle, unless there is installed therein smoke detectors conforming to the Texas Department of Licensing and Regulation, Rules and Requirements for the Construction of HUD Manufactured Homes that are in effect on April 10, 1985; provided, however, if stricter standards for smoke detectors were applicable by law to the construction of a particular manufactured home, no person shall occupy that manufactured home, unless the smoke detectors required in the construction of that manufactured home are installed.

No person shall occupy a recreational vehicle, regardless of the age of the vehicle, unless there is installed therein at least one smoke detector meeting the requirements of NFPA 501-C, paragraph 3.3, dated 1982.

(c) All smoke detectors in a manufactured home or a recreational vehicle shall be maintained so that they are in good working order at all times.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 94-1268, § 6, 11-22-94)

Sec. 29-18. Temporary accommodations for volunteer disaster relief workers.

(a) The Director of Houston Public Works ("director") may authorize the temporary placement and use of manufactured homes or recreational vehicles or both as housing and operational facilities for volunteer workers of not for profit and governmental agencies who are engaged in rendering disaster relief assistance to residents of the city, subject to the following requirements:

(1) The placement and use may not violate any valid and applicable deed restrictions or covenants running with the land.

(2) The placement may not violate any requirement of chapter 19 of this Code.

(3) The placement shall be limited to relief efforts that are related to events for which a proclamation of a local state of disaster has been declared by officials of the city.

(4) The manufactured homes or recreational vehicles shall be placed for such periods of time as the director determines are reasonably required in order for the relief efforts to be performed, provided that no authorization may extend beyond 30 months from the date that the disaster event commenced.

(b) To the extent that any temporary or portable structures are requested to be utilized in addition to manufactured homes and recreational vehicles, the director may authorize their temporary use subject to the foregoing criteria and a determination that they pose no material threat to the health, safety, and welfare of the public by virtue of their temporary placement and occupancy for the use intended. In making that determination, the director shall be guided by the Construction Code but shall not be obligated to demand strict compliance therewith, if he determines that the structures are safe and suitable for the purposes intended.

(c) The director is authorized to issue rules and regulations for the implementation of this section.
(Ord. No. 01-990, § 3, 10-31-01; Ord. No. 02-399, § 64, 5-15-02; Ord. No. 04-1015, § 15, 9-27-04; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 29-19. Reserved.

DIVISION 2. HARDSHIP PERMITS

Sec. 29-20. Grounds.

(a) Upon application therefor the building official may issue a hardship permit to place a manufactured home on a lot, tract or parcel of land located outside a manufactured home park, manufactured home sales lot or manufactured home subdivision because of one or more of the following grounds when it is found that there would be serious hardship if a manufactured home could not be placed on the site and there is

no permanent housing available that could fulfill the need. The grounds for the granting of such a permit are:

(1) Illness in the family or of relatives of the applicant.

(2) Temporary economic hardship that would only be relieved by temporary use of a manufactured home outside a manufactured home park or subdivision.

(3) To locate the manufactured home near the applicant's place of business where there is a serious need for security.

(b) The applicant shall have the burden of showing the need for a hardship permit by clear and convincing evidence.

(c) The permit shall be granted for the period of time necessary to relieve the hardship which would result if no permit were granted; provided, however, such permit shall not be valid for more than one year and the building official shall have no authority to grant any extension of a hardship permit.

(d) No rent may be charged for the use of a manufactured home placed outside of a manufactured home park or manufactured home subdivision pursuant to a hardship permit.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90)

Sec. 29-21. Appeal to general appeals board.

Any person desiring to appeal from a denial by the building official of a request for the issuance of a hardship permit may appeal the denial to the general appeals board created under the Building Code by filing a written notice of appeal with the building official within ten days after notice is given that the hardship permit has been denied. The general appeals board may require applicants for hardship permits to submit such documents as the board deems relevant to support a request for a hardship permit and may dismiss any appeal from a decision of the building official denying a permit if the applicant has not submitted the documentation required by the board.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90; Ord. No. 90-1050, § 1, 8-29-90; Ord. No. 02-399, § 65, 5-15-02)

Sec. 29-22. Appeal to city council.

If the denial of the hardship permit is upheld by the general appeals board, then the applicant may appeal to city council as provided in the Building Code.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-1050, § 1, 8-29-90; Ord. No. 02-399, § 65, 5-15-02)

Sec. 29-23. Extension.

The general appeals board shall have authority to extend a hardship permit, from time to time, for additional periods not to exceed one year upon the following conditions:

(1) When application is made for the extension of a hardship permit, notice shall be given by mail or by such other means as the board may direct to occupants of dwellings on abutting property if any such residence or habitation for human beings is located within 25 feet of the property line of the lot upon which the applicant desires to continue maintaining a manufactured home under a hardship permit. The applicant shall include the names and addresses of such persons, if any, in his application.

(2) The burden of proof shall be upon the applicant to show by clear, cogent and convincing evidence that his circumstances meet one or more of the grounds specified in section 29-20 of this Code and thereby qualify him to continue maintaining a manufactured home on his premises under authority of a hardship permit.

(3) Occupants of dwellings on abutting property to whom notice has been given may appear as parties at the hearing and give evidence controverting that given by the applicant. In addition, the board shall hear and consider evidence offered

by such occupants relating to any conditions alleged to adversely affect their health, safety or welfare from the placement and occupancy of the manufactured home. If the board determines that any person other than an occupant of abutting property has a substantial interest in the matter, such person may be made a party and be permitted to appear and testify as an intervenor. The action of the board in designating or declining to designate a person as an intervenor shall be final and may not be appealed to the city council.

(4) Notice of the decision of the board shall be given in writing by mail or by such other means as the board may direct to the applicant, to any abutting property owner who appeared at the hearing and to any designated intervenor. Each party shall have the right to appeal the decision of the board to the city council by complying with the appeal procedure of the Building Code.

(5) The building official shall act as the clerk for the board in proceedings under this section. Applications and other documents relating to such proceedings shall be filed with the building official. The board may, in its discretion and when it finds that justice will be served thereby, grant a temporary extension of a hardship permit pending the outcome of administrative proceedings under this section, provided that the applicant has filed his application for the extension at least 30 days prior to the expiration of his then-current permit or extension period, and further provided that no delays in the proceedings are attributable to actions of the applicant.

(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90; Ord. No. 90-1050, § 1, 8-29-90; Ord. No. 02-399, § 66, 5-15-02)

Sec. 29-24. Fee.

A hardship permit shall not be issued or extended until the fee as specified in section 29-160 has been paid for the term of the permit or extension period.

(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-25. Revocation.

(a) Pursuant to this section, a hardship permit may be revoked upon the following grounds:

(1) That any material fact set forth in the application therefor was untrue or incorrect; or

(2) That the facts relative to the use and occupancy of the manufactured home have changed to the extent that the grounds upon which the issuance of the hardship permit was based are no longer operative.

(b) Upon information that grounds for revocation may exist, the building official shall investigate the facts. If he determines that a reasonable probability of grounds for revocation exists, he shall schedule a hearing thereon by the general appeals board. Written notice of the date, time and place thereof shall be mailed to the permittee by certified United States mail, postage prepaid, return receipt requested, addressed to the address set forth in the application. Such notice shall be mailed at least ten days prior to the date of the hearing, shall set forth the grounds upon which revocation will be sought in sufficient detail to advise the hardship permittee thereof and shall advise the hardship permittee of his right to be present in person and through counsel to present evidence and cross examine witnesses appearing at such hearing.

(c) The burden of proof at such hearing shall be upon the building official. If the general appeals board determines that grounds for revocation exist, it shall order the hardship permit revoked by written decision. A copy thereof shall be furnished to the hardship permittee, and appeal thereof may be made to the city council by complying with the appeal procedure in the *Building Code.*

(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90; Ord. No. 90-1050, § 2, 8-29-90; Ord. No. 02-399, § 67, 5-15-02; Ord. No. 2021-1037, § 20(Exh. I.31), 12-1-2021, eff. 4-1-2022)

Secs. 29-26—29-34. Reserved.

DIVISION 3. MANUFACTURED HOME COMPLIANCE

Sec. 29-35. Finalized placement permit required for occupancy.

It shall be unlawful for any person to use or occupy in whole or in part any manufactured home which has been placed or replaced within the city until and unless the placement permit therefor has been issued and finalized.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-36. Finalized placement permit required prior to utility service.

Except as otherwise specifically provided in this chapter, it shall be unlawful for any person to make use of any utility service, or to furnish any utility service to any manufactured home which has been placed or replaced within the city until and unless the placement permit therefor has been issued and finalized.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-37. Utility disconnection.

(a) When any utility service to a manufactured home is discontinued it shall be the duty of the utility company to disconnect, lock, seal or otherwise prevent the unauthorized connection or reconnection of such utility service. In the event that the service is provided on a submetering or other basis whereby the utility company's billing is not made directly to the manufactured home resident, then such duty shall rest upon the person contracting for service with the utility company.

(b) A manufactured home which has not been replaced but which has had any utility service disconnected thereto may be reconnected to such utility service, provided that:

(1) A placement permit has been previously issued and finalized for such manufactured home at the site on which it is located; and

(2) A permit has been obtained for reconnection of any electrical utilities and the building official has found, upon inspection, that the exterior wiring service on the manufactured home is in such condition that it may be safely connected to the electrical utility services. The fee specified in the *Construction Code* for a reconnection fee shall be imposed for the issuance of a permit under this item.

(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90; Ord. No. 02-399, § 68, 5-15-02; Ord. No. 2021-1037, § 20(Exh. I.32), 12-1-2021, eff. 4-1-2022)

Sec. 29-38. Timely application.

(a) For manufactured homes placed or replaced within manufactured home parks and manufactured home subdivisions, application for a placement permit must be made within 48 hours from the time of placement or replacement. Saturdays, Sundays and holidays observed by closure of city offices are excepted in calculating the said period.

(b) No manufactured home may be placed or replaced upon a site designated in a hardship permit issued pursuant to division 2 of article II of this chapter until and unless application for a placement permit has first been made therefor. Furthermore, application for a placement permit may not be made for any manufactured home to be located pursuant to a hardship permit issued under division 2 of article II of this chapter until and unless such hardship permit has been issued.

(c) No application for a placement permit may be made for any manufactured home which is to be connected to public water or sewer services until application has been made for such services and the availability thereof has been established.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-39. Application.

(a) Any person desiring a placement permit shall make application therefor upon one or more forms prescribed by the building official setting forth:

(1) A description of the manufactured home by dimensions, manufacturer and serial or identification number;

(2) The name and address of the person having title to the manufactured home;

(3) The date of manufacture of the manufactured home;

(4) The proposed location of the manufactured home by legal description, plot plan, diagram or other means which is adequate to advise the building official of the exact placement location contemplated and its relationship to the property lines and other structures;

(5) The number of the hardship permit which has been issued by the city pursuant to division 2 of article II of this chapter if the manufactured home is to be placed outside the confines of a sales lot, manufactured home park or manufactured home subdivision;

(6) The license number of the manufactured home park operator if the manufactured home is to be placed in a manufactured home park;

(7) The county clerk's recording information for the plat thereof if the manufactured home is to be placed in a manufactured home subdivision;

(8) Any information necessary to determine compliance with any applicable provisions of chapter 19 of this Code relating to flood-prone areas;

(9) The utilities to be provided to the manufactured home and the source and availability thereof;

(10) Any additional information the building official finds will aid him in the enforcement of this chapter or other laws applicable to the manufactured home.

(b) The application shall be signed by the owner of the manufactured home or his agent, and if the manufactured home is to be located outside a manufactured home park, the owner of the land on which the manufactured home is to be located.

(c) In any instance in which the application is for a permit relating to the placement of a new "HUD-code manufactured home," as that item is defined by Texas Revised Civil Statutes article 5221f, then the building official shall ensure that the application is acted on and the applicant is given written notice of the approval or denial within 45 days of the filing of the application, including notice of the grounds if the application is denied. If the foregoing action is not taken by the forty-fifth day following the filing of the application, then the permit is deemed granted. Notice is considered to be given when placed in the mail addressed to the address as stated on the application.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90; Ord. No. 94-1268, §§ 7, 8, 11-22-94)

Sec. 29-40. Finalization of placement permits.

A placement permit shall be finalized by the building official and occupancy of the manufactured home shall be authorized when:

(1) The applicant has obtained all applicable permits and inspections under this Code and the Construction Code;

(2) The applicant has complied with all other applicable provisions of this code including, without limitation, chapter 19 relating to flood hazard areas;

(3) The building official has inspected the placement of the manufactured home and has found its placement is in accordance with this chapter; and

(4) The building official has found that the manufactured home and its placement, meet all applicable requirements of the city's ordinances and all state laws which may be enforced by the city.

(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90; Ord. No. 94-1268, § 8, 11-22-94; Ord. No. 02-399, § 69, 5-15-02)

Sec. 29-41. Placement inspection.

(a) Each manufactured home placed or replaced within the city shall be inspected by the building official to determine that its placement is in accordance with the provisions of this chapter. A fee for such placement inspection is hereby established and shall be collected in the amount specified in section 29-160. In consideration of such fee the applicant shall be entitled to the original inspection of the placement of the manufactured home and one reinspection for deficiencies, if required. An additional fee, as specified in section 29-160, is hereby imposed and shall be collected for the second and each subsequent reinspection due to deficiencies concerning the manufactured home or its placement.

(b) The purpose of a placement permit under this chapter is to ensure that the manufactured home has been situated in a location that complies with this Code, has been located so that it is in compliance with applicable setbacks and meets other municipal regulations that are enforceable

by the city with respect to the use and occupancy of manufactured homes. No provision of this Code shall be construed to require a city-imposed inspection of the "installation" of the manufactured home as that term is defined by Texas Revised Civil Statutes article 5221f, § (3). The building official may conduct installation inspections on behalf of the state if so authorized by the Texas Department of Licensing and Regulation, but no city permit or fee shall be imposed for that service.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90; Ord. No. 94-1268, § 10, 11-22-94)

Secs. 29-42, 29-43. Reserved.

Editor's note—Ord. No. 94-1268, § 11, adopted Nov. 22, 1994, repealed former §§ 29-42 and 29-43, which pertained to standards certification and standards adopted.

Secs. 29-44—29-54. Reserved.

DIVISION 4. RECREATIONAL VEHICLES

Sec. 29-55. Recreational vehicle placement.

(a) It shall be unlawful for any person to place, use or occupy a recreational vehicle within the city unless such placement, use or occupancy is specifically authorized by this division.

Furthermore, it shall be unlawful for any person to permit, allow or suffer the placement, use or occupancy of a recreational vehicle on any property under his ownership or control unless such placement, use or occupancy is specifically authorized by this chapter.

(b) Any provisions of this chapter which authorize the occupancy of a certain type of recreational vehicle under certain conditions shall not be applicable to any other type of recreational vehicle.

(c) Any computation of time under the provisions of this division shall commence from the date that the recreational vehicle is placed in the manufactured home park or recreational vehicle park.

(d) In addition to any other authorized placement or use of a recreational vehicle, it may be utilized as provided in section 29-18 of this Code upon a site authorized by the director for temporary disaster assistance organizations in accordance with the rules and regulations issued under that section.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 01-990, § 4, 10-31-01)

Sec. 29-56. Recreational vehicles outside parks.

A recreational vehicle may be parked or stored outside a manufactured home park or recreational vehicle park so long as no one occupies it for temporary or permanent use, no utilities are connected to the recreational vehicle, the vehicle is not parked on or extending over public property unless parked on a street or a parking lot in full compliance with the laws, and the parking or storage of the vehicle is not in violation of any other law or any valid and applicable deed restrictions or covenants running with the land.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-57. Camping trailers.

(a) A camping trailer may be placed in a recreational vehicle park licensed by the city as such, for a period not to exceed 30 days in any consecutive six-month period and may be used for sleeping and living purposes during the time it is so placed in a park.

(b) No camping trailer may be placed or used for any purpose within a manufactured home park.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-58. Motor homes, truck campers and travel trailers.

(a) A motor home, a truck camper or a travel trailer may be placed in a manufactured home park or a recreational vehicle park for a period of time not to exceed six months within any consecutive twelve-month period, and may be used for sleeping and living purposes during the time that it is so placed in a park if:

(1) It is self contained;

(2) It has at least 120 square feet of floor space;

(3) The park in which it is placed is licensed by the city as a recreational vehicle park or a manufactured home park; and

(4) It is placed on a lot in the park which was shown on the park's application and approved by the building official for use of the specific type of recreational vehicle being placed thereon.

(b) A motor home, a truck camper or a travel trailer which is not self-contained may be placed in a manufactured home park or a recreational vehicle park for a period of time not to exceed 30 days within any consecutive twelve-month period and may be used for sleeping and living purposes during the time it is placed in a park if:

(1) It has a minimum of 84 square feet of floor space;

(2) The park in which it is placed is licensed by the city as a manufactured home park or a recreational vehicle park, and the park meets the requirements of this chapter for a park on which dependent vehicles may be placed; and

(3) It is placed on a lot in the park which was shown on the park's application and approved by the building official for use of the specific type of recreational vehicle being placed thereon.

(c) A travel trailer may be placed in a manufactured home park or a recreational vehicle park, and may be used for sleeping and living purposes while it is placed in such a park, without limitation as to the period of time it is so located and used if:

(1) It is placed in a park which is licensed by the city as a recreational vehicle park or a manufactured home park;

(2) It is placed on a lot in the park which is shown on the park's application and approved by the building official for use by travel trailers connected to the park's utilities;

(3) It is connected to the park's (or to a public) water supply, sewer system and electric system, and to such a gas system if the travel trailer is designed for natural gas and has any gas appliances;

(4) The travel trailer has facilities to supply a reasonably continuous source of hot water to the lavatory, tub or shower and kitchen sink at a temperature of not less than 120 degrees Fahrenheit;

(5) It has a heating system which is in good state of repair of a type which will not create a serious risk to the safety of the occupants, and which is capable of providing the trailer with a minimum temperature of at least 70 degrees Fahrenheit measured at a point three feet above the floor during ordinary minimum weather conditions;

(6) It has at least 120 square feet of floor space for the first occupant and at least 30 square feet for each additional occupant;

(7) It is tied down and blocked pursuant to the requirements of this chapter;

(8) Application has been made for a certificate of compliance pursuant to this division; and

(9) The travel trailer is not occupied for sleeping or living purposes until it has been inspected by the city; the inspector has found that the travel trailer is in compliance with all requirements of this chapter for the use of travel trailers as permanent living quarters, and the certificate of compliance has been finalized by the building official.

(d) No person may use any truck camper for sleeping or living purposes if it has been dismounted from the truck unless the camper is tied down and anchored pursuant to the requirements of this chapter.

(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90)

Sec. 29-59. Responsibility of park owners and managers.

No manufactured home park or recreational vehicle park or owner or manager of such a park

shall allow, suffer or permit one or more persons to use a recreational vehicle in such park in violation of any provisions of this chapter.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-60. Recreational vehicle tie-down and foundation blocking standards.

Whenever the provisions of this chapter provide that a recreational vehicle is to be tied down, the building official must approve the method to be applied to the specific vehicle. The building official shall approve such a method if he finds that it will adequately protect those who use the recreational vehicle and members of the public, taking into consideration the size and shape of the vehicle. All materials used to anchor recreational vehicles approved for permanent occupancy shall comply with all requirements of anchoring for manufactured homes as established by the Texas Department of Licensing and Regulation.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90; Ord. No. 94-1268, § 6, 11-22-94)

Sec. 29-61. Certificate of compliance.

(a) Whenever a certificate of compliance is required for use of a recreational vehicle in a manufactured home park or recreational vehicle park, such certificate of compliance shall be issued upon the procedures established in this section.

(b) Any person desiring a certificate of compliance shall make application therefor upon a form prescribed by the building official setting forth:

(1) A description of the recreational vehicle by dimensions, manufacturer and serial or vehicle identification number;

(2) A copy of the title to the recreational vehicle (if the formal document of title has not yet been issued, then the title application receipt and a complete copy of the bill of sale shall be furnished in lieu thereof).

(3) The date of manufacture of the recreational vehicle;

(4) The name of the manufactured home park or recreational vehicle park in which it is located, and the park's license number;

(5) A description of the proposed location of the recreational vehicle in the manufactured home park or recreational vehicle park which is adequate to advise the building official of the exact place on the ground where the recreational vehicle will be located; and

(6) Any additional information which the building official finds will aid him in the enforcement of the provisions of this chapter in regard to such recreational vehicle.

The application shall be signed by the owner of the recreational vehicle or the owner's agent. Application for such a certificate of compliance shall be made within 48 hours from the time the recreational vehicle is placed in the manufactured home park or recreational vehicle park. Saturdays, Sundays, and holidays observed by closure of city offices are excepted from calculating the 48 hours.

(c) The building official shall not finalize a certificate of compliance for use of a recreational vehicle in a manufactured home park or recreational vehicle park until the recreational vehicle has been inspected by the building official and the building official has found that the recreational vehicle and its placement meet the requirements of this division and of all applicable ordinances for its use as permanent living quarters. A fee for such inspection is hereby established and shall be collected in the amount set out in section 29-160. In consideration of such fee the applicant shall be entitled to the original inspection and one reinspection for deficiencies, if required. An additional fee is hereby imposed and shall be collected for the second and each subsequent reinspection required due to deficiencies concerning the recreational vehicle, its placement, or its tie-downs.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90)

Secs. 29-62—29-69. Reserved.

ARTICLE III. MANUFACTURED HOME PARKS

DIVISION I. GENERALLY

Sec. 29-70. Requirements also generally extend to recreational vehicles.

Except as otherwise specifically provided, all requirements of this article for manufactured homes are also applicable to recreational vehicles, and all requirements for manufactured home parks are also applicable to recreational vehicle parks.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 94-1268, § 12, 11-22-94)

DIVISION 2. DEVELOPMENT PERMIT

Sec. 29-71. Permit required.

It shall be unlawful for any person to construct, alter or extend any manufactured home park within the city without first having obtained a permit therefor from the building official.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90)

Sec. 29-72. City planning commission approval.

All proposed manufactured home parks within the city shall be submitted to the city planning commission for approval under the applicable provisions of chapters 41 and 42 of this Code.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-73. Application contents.

(a) All applications for manufactured home park development permits shall be submitted to the building official and shall contain the following:

(1) The name and address of applicant;

(2) The street address and legal description of the land on which the manufactured home park development is to be or is located; and

(3) Complete engineering plans and specifications of the proposed development showing, but not limited to the following:

a. The area and dimensions of the tract of land;

b. The number, location, and size of all manufactured home lots;

c. Designations clearly showing:

1. Each lot designed for recreational vehicles;

2. Each lot designed for dependent recreational vehicles;

3. Each lot designed for self-contained recreational vehicles not connected to the park's utilities; and

4. Each lot designed for manufactured homes, specifically not including recreational vehicles.

A lot may be designed for more than one of the above uses, but the plans must indicate each use that each lot is designed for.

d. The location and width of roadways and walkways and vehicle parking;

e. The location of water and sewer lines and riser pipes;

f. Plans and specifications of the water supply and refuse and sewage disposal facilities;

g. Location and details of fire hydrants;

h. Location of all standpipes if a standpipe system is to be installed;

i. Plans and specifications of the required manufactured home park office and all buildings constructed within the manufactured home park;

j. Location and details of lighting and electrical systems; and

k. Site drainage and storm water.

(b) The building official may require that all or any portion of the plans and specifications be certified by a professional engineer registered in Texas.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90; Ord. No. 94-1268, § 13, 11-22-94)

Sec. 29-74. Fee to be paid.

All applications shall be accompanied by the deposit of the applicable fees as specified in the *Construction Code.* The fees set out in chapters 41 and 42 of this Code shall also be applicable to plans for manufactured home parks as though a manufactured home park were a subdivision.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 02-399, § 70, 5-15-02; Ord. No. 2014-364, § 2, 4-30-2014; Ord. No. 2021-1037, § 20(Exh. I.33), 12-1-2021, eff. 4-1-2022)

Sec. 29-75. Review and approval process.

When, upon review of the applications, the building official is satisfied that the proposed plan meets with the requirements of this chapter and other applicable provisions of this Code and any other applicable laws, rules and regulations, a permit will be issued. If the permit is for the operation of a recreational vehicle park, it shall be conspicuously marked thereon that it is for a "Recreational Vehicle Park." On all other permits for operation of manufactured home parks there shall be marked thereon that they are for the operation of a "Manufactured Home Park." The issuance of the permit shall not excuse the permittee from obtaining any other permit required under the Construction Code for the construction of the manufactured home park or for subsequent repair or maintenance thereof. Provided, however, proposed manufactured home parks shall not be acted upon by the building official until approval of the city planning commission is first had and obtained.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90; Ord. No. 02-399, § 70, 5-15-02)

DIVISION 3. LICENSE

Sec. 29-76. License required.

It shall be unlawful for any person to operate any manufactured home park within the limits of the city unless he holds a valid license issued annually (calendar-year basis) by the building official in the name of such person for the specific manufactured home park. All applications for licenses shall be made to the building official, who shall issue a license upon compliance by the applicant with provisions of this chapter. Fees for such licenses are hereby imposed in the amount specified in section 29-160.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90)

Sec. 29-77. Notice of disposition and transfer.

Every person holding a license shall give notice in writing to the building official within 24 hours after having sold, transferred, given away, or otherwise disposed of any interest in, or control of any manufactured home park. Such notice shall include the name and address of the person succeeding to the ownership, or control of, such manufactured home park. Upon application in writing for transfer of the license and deposit of the fee as specified in section 29-160, the license shall be transferred if the manufactured home park is in compliance with all applicable provisions of this Code. Such transferee shall be entitled to operate the manufactured home park for a period of 30 days, but if he shall not have within said period of time made application for a manufactured home park license, then his right to operate such park shall terminate upon the expiration of the thirty-day period. If such license terminates upon the aforesaid basis, the occupants of the manufactured home park shall be given a thirty-day notice to remove their manufactured homes from the premises and failure to do so within such period of time shall constitute a misdemeanor.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90)

Sec. 29-78. Licenses for operation of a manufactured home park.

(a) Applications for original licenses shall be in writing, signed by the applicant, accompanied by an affidavit of the applicant as to the truth of the application and shall contain: the name and address of the applicant, the location and legal

description of the manufactured home park development, plans and specifications of the park showing the information required in section 29-73(3)a through j, and any other information that may be required by the building official so that the city can determine whether the park meets all applicable laws and ordinances. In the event that the applicant does not reside within the city or is otherwise unable to personally act as liaison with the city for purposes of this article, then he shall designate a local agent for liaison with the city and list that person's name, telephone number and address on the application. Such agency may be changed from time to time, upon written notice to the building official. Such application shall be accompanied by the payment of an original application fee plus the annual calendar year license fee and the annual fees for each manufactured home lot in the amounts specified in section 29-160. The annual license and fees shall not be prorated.

(b) Applications for annual renewal of licenses shall be made in writing by the holders of the licenses, shall be accompanied by the payment of a license and annual inspection fees for each manufactured home lot, and shall contain any change in the information submitted since the original license was issued or the latest renewal granted.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90)

Sec. 29-79. Issuance of manufactured home park license.

The building official shall not issue any license for the operation of a manufactured home park unless application has been made therefor pursuant to this chapter, all applicable fees have been paid, and the park is found to meet all requirements of this chapter and all other applicable laws except to the extent modifications have been granted pursuant to section 29-127. Provided, however, the issuance of a license shall not constitute evidence that the park does meet the requirements of this chapter or any other applicable laws.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90)

Sec. 29-80. Appeals.

Any applicant for a manufactured home park operator's license whose application has been denied may appeal such denial by written notice of appeal to the city council as hereinafter provided in this division.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-81. Correction of violations.

Whenever, upon inspection of any manufactured home park, the inspector finds that conditions or practices exist which are in violation of this chapter, or regulations issued thereunder, the inspector shall give notice in writing to the person to whom the license was issued that unless such conditions or practices are corrected within a reasonable period of time specified in the notice issued by the inspector, the license shall be subject to revocation as provided in section 29-82 below.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-82. Revocation and expiration of license.

(a) A manufactured home park operator's license may be revoked if the licensee interferes with lawful inspection of the park or if there are uncorrected, repeated or serious violations of any applicable provision of the ordinances of the city or laws of the State of Texas.

(b) Upon information that grounds for revocation may exist, the building official shall cause an investigation of the facts to be conducted. If he determines that a reasonable probability of grounds for revocation exists, he shall schedule a hearing thereupon to be conducted before the building official or such other person as he may designate as a hearing examiner therefor. The building official shall not designate any person who participated in the active conduct of the investigation as the hearing examiner. Written notice of the date, time and place of the hearing shall be given to the licensee or his designated agent by certified United States mail, postage prepaid, return receipt requested, addressed to the address set forth in the application. Such notice shall be mailed at least ten days prior to the date of the hearing, shall set forth the grounds upon which revocation will be

sought in sufficient detail to advise the licensee thereof and shall advise the licensee of his right to be present in person and through counsel to present evidence and cross examine witnesses appearing at such hearing.

(c) The burden of proof at such hearing shall be upon the city. If the building official determines that grounds for revocation exist, he shall order the manufactured home park operator's license revoked by written decision. Such decision may be appealed as provided in section 29-126 of this Code.

(d) After a manufactured home park operator's license has expired, or if a manufactured home park operator's license has been revoked, notice shall be given by the city to the occupants to vacate the premises within a period of 30 days and to remove their manufactured homes therefrom. Failure of any such occupant to comply therewith shall constitute a misdemeanor.

(e) Nothing contained in this section shall be construed to prevent the city from ordering the immediate evacuation or closure of any manufactured home park to the extent permitted by law in the event of imminent or extreme hazard to human life or property.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90; Ord. No. 94-1268, §§ 14, 15, 11-22-94)

DIVISION 4. INSPECTION

Sec. 29-83. Inspection of manufactured home park development.

The city's building official, director of public health, chief of police, fire chief and their respective authorized deputies, officers, inspectors and other representatives are hereby authorized and directed to make such inspections as are necessary or desirable to determine satisfactory compliance with this chapter and all other applicable ordinances and laws.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90)

Sec. 29-84. Hours of inspection and entry.

The persons designated in section 29-83 shall enforce the provisions of this chapter. Upon presentation of proper identification to the licensee, responsible agent or other persons in charge of any manufactured home park, and to the affected occupants of such manufactured home park, such persons may enter any building, structure, dwelling, manufactured home, or premises, between the hours of 8:00 a.m. and 5:00 p.m., Mondays through Saturdays; provided, however, that in case of emergency where extreme hazards are known to exist which may involve imminent injury to persons, loss of life or severe property damage, such persons may enter the aforesaid structures and premises at any time upon presentation of proper identification. Such persons are hereby authorized and directed to seek a search warrant as provided by law if denied admission to inspect any such premises.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-85. Register.

The persons designated in section 29-83 shall have the authority to inspect the register containing a record of all residents of the manufactured home park.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-86. Residents to allow repairs.

It shall be the duty of every resident of a manufactured home park to give the licensee or his responsible agent access to any part of the manufactured home lot at reasonable times for the purpose of making such repairs or alterations as are necessary to comply with the provisions of this chapter and the failure or refusal of such occupant to permit such access shall constitute a misdemeanor.
(Ord. No. 85-498, § 1, 4-10-85)

DIVISION 5. MANUFACTURED HOME PARK STANDARDS

Sec. 29-87. Location.

A manufactured home park may be located upon any property in the city provided:

(1) The site is a contiguous development of land comprised of a minimum of two acres and not less than ten manufactured home stands;

(2) No valid and applicable deed restrictions or other land use restrictions prohibit the development or use of this site as a manufactured home park;

(3) The site is located outside city Fire Zones One and Two;

(4) Soil conditions, ground water level, drainage and topography do not constitute hazards to the residents' health or safety;

(5) The site is not to be exposed to objectionable smoke, dust, noise, odors, or other adverse influences; and

(6) The use of the site, as proposed, is not in violation of chapter 19 of this Code (Flood Hazard Areas).

(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-88. Use for nonresidential purposes.

No part of any park shall be used for nonresidential purposes, except such uses that are required for the direct servicing and well-being of park residents and for the management and maintenance of the park and the required manufactured home park office. Nothing contained in this section shall be deemed as prohibiting the sale by the owner of a manufactured home located on the manufactured home stand and connected to the permanent utilities.

(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-89. Development objectives.

Site planning and improvements shall provide for:

(1) Facilities and amenities appropriate to the needs of the occupants;

(2) Safe, comfortable and sanitary use by occupants under all weather conditions; and

(3) Practical and efficient operation and maintenance of all facilities at reasonable costs.

(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-90. Density.

(a) The maximum density of manufactured homes shall be regulated by separation requirements, occupied lot area ratios and recreation area requirements as set forth in these standards. Density will vary considerably in accommodating different sizes of manufactured home units with their accessory structures used in the locality and in the type of layout proposed.

(b) No manufactured home shall be located closer than ten feet from any other manufactured home or building or temporary structure of any description within the manufactured home park.

(c) Manufactured home stands shall not occupy an area in excess of ⅓ of the respective site area. The accumulated occupied area of the manufactured home, and its accessory structures on a manufactured home lot, shall not exceed ⅔ of the respective lot area.

(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-91. Recreational area.

Not less than eight percent of the gross site area shall be devoted to recreational facilities, generally provided in a central location. In large developments, recreation facilities can be decentralized with each location at least ⅔ of an acre. Recreation areas may include space for community buildings and community use facilities, such as indoor recreation areas, swimming pools, hobby and repair shops, and service buildings. Where compliance with this provision results in undue hardship and/or individual site areas are substantially above minimum standards and provide for sufficient outdoor recreation, an exemption may be granted to an extent that an absolute minimum of 100 square feet per lot shall constitute the land area which may be considered sufficient for the site of a centralized recreation area, provided that no recreation area shall contain less than 5,000 square feet. Application for such a variance shall be made to the planning commission and the said commission shall consider an application in the same manner as established for the consideration of variances under chapters 41 and 42.

(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 2014-364, § 2, 4-30-2014)

Sec. 29-92. Location.

(a) All manufactured homes shall be located at least 25 feet from any park property boundary line abutting upon a public street or highway and at least five feet from other park property boundary lines.

(b) There shall be a minimum distance of ten feet between the manufactured home stand and the abutting manufactured home park street. (Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-93. Streets.

(a) All manufactured home parks shall be provided with a safe and convenient vehicular access from an adjacent previously dedicated and improved public street. Such access streets, or internal streets (being either public or private) shall provide access to every designated manufactured home site within the manufactured home park.

(b) Access streets shall be considered to be the street (either public or private) which provides the principal connection to an adjacent previously dedicated and improved public street and shall be designed to allow free movement of traffic to such public street. No parking shall be permitted on any access street (either public or private) for 100 feet from its intersection with an adjacent public street.

(c) Internal streets shall be considered to be those private streets lying totally within the boundaries of a manufactured home park, not providing access to any adjacent property outside the manufactured home park and connecting with the "access street" as herein described.

(d) Public street design:

(1) The width of the right-of-way to be dedicated for any local street must be at least 60 feet except as provided in paragraph (c). In those instances where a subdivision or manufactured home park plat is located adjacent to an existing public street, with a right-of-way width less than 60 feet, sufficient additional right-of-way must be dedicated within the subdivision or manufactured home park plat boundary to accommodate the development of the street to a total right-of-way width of not less than 60 feet. In those instances where it is proposed to transition from any given right-of-way width to a greater right-of-way, the transition shall conform to the criteria adopted by the Houston Public Works for such transitions.

(2) An interior street which:

a. Includes in its design storm sewers; and

b. Is designed as either:

1. A cul-de-sac of 800 feet or less in length; or

2. As a loop having an internal block length of less than 1,000 feet; or

3. A street which is not an access or collector street and is designed so that it will, from a practical standpoint, serve only those lots which have frontage upon it;

shall have the following right-of-way widths:

a. A minimum of 50 feet where the widths of the manufactured home lots abutting the interior street are 40 feet or more at the right-of-way line; and

b. A minimum of 55 feet where the widths of the manufactured home lots abutting the interior street are less than 40 feet at the right-of-way line.

(3) Curves along long streets may have any centerline radius, except that the centerline radius on a reverse curve may not be less than 300 feet. Reverse curves should be separated by a tangent distance of not less than 50 feet. The acute angle of any intersection shall be no less than 80 degrees. Where acute angle intersections are approved, however, a radius of at least 25 feet in the right-of-way line at the acute corner must be provided. Intersections of local streets must line up

centerline to centerline or be offset a minimum 125 feet from centerline to centerline.

(4) The radii of the right-of-way at the end of local streets terminated with a circular cul-de-sac turnaround must be 50 feet except in those instances where a curbed type street section is to be constructed, and storm sewers are not planned to be installed, but storm drainage is proposed to be accommodated within the street right-of-way. Where the adjacent property is intended for uses other than single-family detached units, a cul-de-sac radii of 60 feet must be provided.

(5) Dead end streets will not be approved except in those instances where the street is terminated by a circular cul-de-sac turnaround or where the street is designed to be extended into adjacent property.

(6) An interior street must be designed to form a closed traffic circulation system. Culs-de-sac and loop streets or similar streets beginning from streets within a subdivision or manufactured home park are interior streets. A local street that allows access through the subdivision or manufactured home park to other properties adjacent to the subdivision or manufactured home park, or which directly connects with streets outside the plat boundary shall not be designated as an interior street.

(7) All public streets must be named in accordance with the provisions of chapter 41 of this Code.

(8) No public alleys shall be permitted in manufactured home parks.

(9) Public street right-of-way requirements shall be as provided in chapter 42 of this Code.

(e) Private streets:

(1) The purpose for the regulation of private streets and the standards established are:

a. To provide adequate vehicular access to all buildings, manufactured homes, and facilities by city police and fire vehicles; and,

b. To provide for the safe movement of all vehicles from a private street to the public street system of the city.

(2) Curves along private streets may have any centerline radius, except that the centerline radius on a reverse curve may not be less than 65 feet. Reverse curves should be separated by a tangent of not less than 25 feet. Intersections of private streets must line up centerline to centerline or be offset a minimum 65 feet from centerline to centerline. Transitions from a given private street width to a greater width must conform to the criteria adopted by the Houston Public Works for such transitions.

(3) The width of a private street shall be measured from edge to edge across the surface of the pavement. The right-of-way width and the pavement width of a private street are considered coterminous and the terms are used interchangeably. The minimum acceptable unobstructed width of any private street is 28 feet. If parallel parking is proposed along the private street, additional width shall be required to accommodate such parking.

(4) Dead end private streets must be terminated by a circular cul-de-sac having a paving radius of not less than 50 feet or a T- or L-type turnaround designed in conformance with the standards approved by the fire chief and the Director of Houston Public Works.

(5) A dead end private street must not extend further than 300 feet from nearest right-of-way line of the intersecting public or private street measured along the centerline of said private street to the center of the cul-de-sac or the center in the T- or L-type turnaround configuration.

(6) In those instances where a private street intersects with a public street paved with dual roadways and esplanade, the private street shall be located at an esplanade opening or offset a sufficient distance as determined by the Houston Public Works. Private streets must not

be direct (straight line) projections of any public street, except in those instances where:

a. Such extension is at an intersection with a public street paved with dual roadways and esplanade; or,

b. Where the private street is two separate twenty-foot (minimum) roadways separated by a minimum 20-foot curb section at the public street intersection and the private street is not a direct connection (straight line) between two public streets.

In those instances where the private street is not a direct extension of a public street, then the private street must be offset a minimum distance of 125 feet, centerline to centerline, from any public street intersection. Intersections of all private streets must be at right angles, provided that the planning commission may grant a variance from such requirement. Right angle intersections of private streets must have a 20-foot radius at all corners. Acute angle intersections must have a 25 foot radius at the acute corner on both public and private streets.

(7) All manufactured home parks containing private streets must have a private street system designed to provide adequate emergency vehicular access and the private street system must be designed to provide more than one point of access to the park from the public streets adjacent to the boundaries of the park in those instances where the fire chief finds, in writing, that additional access points will be necessary to ensure the safety and general welfare of the public and occupants of the projects.

(f) Grades of all streets shall be sufficient to ensure adequate surface drainage, but should not be more than eight percent. Short runs with a maximum grade of 12 percent may be permitted, provided traffic safety is assured.

(g) All streets shall be provided with a smooth, hard and dense surface which shall be durable and well drained under normal use and weather conditions. The surface shall be maintained free of cracks and holes and its edges shall be protected by suitable means to prevent traveling and shifting of the base.

(h) Lighting, when provided, shall be designed to produce a minimum of 0.1 footcandle throughout the street system.

(i) Vertical clearance of not less than 14 feet above all public and private streets shall be maintained for fire department vehicle clearance.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, §§ 59—62, 5-23-90; Ord. No. 93-514, §§ 40—43, 5-5-93; Ord. No. 98-334, § 6, 4-29-98; Ord. No. 2014-364, § 3, 4-30-2014; Ord. No. 2018-11, §§ 49, 50, 1-10-2018)

Sec. 29-94. Walks.

(a) All manufactured home parks shall be provided with safe, convenient, all-season pedestrian access of adequate width for intended use, durable and convenient to maintain. Sudden changes in alignment and gradient shall be avoided.

(b) A common walk system shall be provided and maintained between locations where pedestrian traffic is concentrated. Such common walks shall have a minimum width of three and one-half feet.

(c) All manufactured home stands shall be connected to common walks, or to streets, or to driveways, or to parking spaces. Such individual walks shall have a minimum width of two feet.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-95. Manufactured home site requirements.

(a) The limits of each manufactured home park site shall be marked on the ground by suitable means. The location of such site shall conform to the approved plans.

(b) It shall be the responsibility of the manufactured home owner to provide adequate tie-downs of the manufactured home. It shall be the responsibility of the manufactured home park licensee or his agent to assure the stand shall not heave, shift, or settle unevenly, under the weight of the manufactured home due to inadequate design or drainage.

(c) Improved driveways should be provided on lots where necessary for convenient access to manufactured homes. The minimum width shall be nine feet.

(d) There shall be two parking spaces for each manufactured home park site that shall be designed in accordance with the standards set out in the Construction Code for parking spaces and with the standards approved by the Director of Houston Public Works.

(e) Each manufactured home park site shall be provided with an outdoor living and service area. The area should be improved as necessary to assure reasonable privacy and comfort.

(f) Accessory structures remain, as per definition, dependent upon the manufactured home and shall not be used as complete independent living units with permanent provisions for sleeping, cooking and sanitation. Accessory structures shall be erected, constructed or occupied on a manufactured home park lot as directed by the management of the manufactured home park. Construction Code requirements must be adhered to.

(1) Accessory structures shall be designed in a manner that will enhance the appearance of the manufactured home park;

(2) Accessory structures shall not obstruct required openings for light and ventilation of the manufactured home and shall not prevent inspection of manufactured home equipment and utility connections;

(3) Construction and electrical installations, unless otherwise specified shall comply with requirements provided for herein; and

(4) Electrical circuits supplying the accessory structure shall be independent of the circuit supplying the manufactured home.

(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 63, 5-23-90; Ord. No. 93-514, § 44, 5-5-93; Ord. No. 98-613, § 54, 8-5-98; Ord. No. 02-399, § 71, 5-15-02; Ord. No. 04-1015, § 16, 9-27-04; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 29-96. General water supply requirements.

An accessible, adequate, safe and potable supply of water shall be provided in each manufactured home park. Where a public supply of water of satisfactory quantity, quality, and pressure is available at the site or within 300 feet of the boundary of the site, connection shall be made thereto and its supply used exclusively. When a satisfactory public water supply system is not available, a private system may be developed and used as approved by the city.

(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-97. Source and volume of water supply.

(a) The water supply shall be capable of supplying 150 gallons per day per lot which may be used for manufactured homes as designated on the plans and specifications of the park submitted to and approved by the utility official; 100 gallons per day per lot which may be used for recreational vehicles connected to the park's utilities; and 75 gallons per day per lot which may be used for dependent recreational vehicles.

If a lot may be used for more than one type of vehicle as shown on the plans and specifications of the park as submitted to and approved by the building official, the water supply shall be based on the type of vehicle requiring the greatest amount of water specified above.

The requirements for manufactured homes are specifically not applicable to recreational vehicles for purposes of this subsection, and the applicable water supply rates shall be separately applied as stated above.

(b) Every well or suction line of the water supply system shall comply with appropriate regulations of the city.

(c) No well-casings, pumping machinery or suction pipes shall be placed in any pit, room or space extending below ground level nor in any room or space above ground which is walled in or otherwise enclosed, unless such rooms, whether above or below ground, have free drainage by gravity to the surface of the ground.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 64, 5-23-90; Ord. No. 94-1268, § 16, 11-22-94)

Sec. 29-98. Water storage facility.

All water storage reservoirs shall be covered, watertight and constructed of impervious material. Overflows and vents of such reservoirs shall be effectively screened. Manholes shall be constructed with overlapping covers, so as to prevent the entrance of contaminated material. Reservoir overflow pipes shall discharge through an acceptable air gap.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-99. Water distribution system.

(a) All water piping, fixtures and other equipment shall be constructed and maintained in accordance with state and local regulations and requirements and shall be of a type and in locations approved by the city.

(b) The water piping system shall not be connected with nonpotable or questionable water supplies and shall be protected against the hazards of backflow or back siphonage.

(c) The system shall be so designed and maintained as to provide a pressure of not less than 20 pounds and not more than 80 pounds per square inch, under all normal operating conditions at each manufactured home stand. Also, the system shall be capable of supplying, e.g., 50 manufactured homes with a demand load of 100 gpm, 100 manufactured homes with 180 gpm, and 300 manufactured homes with 370 gpm. Greater design values will be required when the system is to provide fire hydrants. In such event, the water supply system shall permit the operation of a minimum of two 1½-inch hose streams, and the system shall deliver at least 250 gallons of water per minute for fire-fighting purposes.

(d) In any manufactured home park where recreational vehicles are permitted there shall be one or more water supply outlets for filling recreational vehicles water storage tanks. At least one such water supply outlet shall be easily accessible to any lot used by a recreational vehicle. Such water supply outlets shall consist of at least a water hydrant and the necessary appurtenances and shall be protected against the hazards of backflow and back siphonage. Such watering station shall be designed and maintained so that there is no accumulation of any water spillage on the water station site.

(e) All manufactured homes and buildings proposed to be constructed or placed within a manufactured home park containing private streets must be so arranged and located that fire-fighting apparatus can park and reach any part of any building and any manufactured home with a two hundred-foot long hose extending from such equipment. This two hundred-foot hose length must be measured as the hose is laid on the ground and may not be measured as an aerial radius from such parked equipment. In addition, fire hydrants must be so located and provided within the project boundaries so that 500 feet of fire hose, extending on the ground from the hydrant, can reach the furthermost part of any building and manufactured home within the boundaries of the park. The 500 feet includes the 200 feet of hose from the fire-fighting apparatus to the building or manufactured home and 300 feet of hose from the fire hydrant to the apparatus along the private street. Therefore, the distance between fire hydrants located along the private street shall not exceed 600 feet to ensure adequate fire protection. Entrances to all buildings and manufactured homes must be illustrated on the plat of any project containing private streets.

(f) Water mains, if installed parallel to sewer lines, shall be separated by ten feet horizontally from any sanitary sewer, storm sewer or sewer manhole, unless alternate methods of installation are approved.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-100. Individual water riser pipes and connections.

(a) Individual water riser pipes shall be located within the area of the manufactured home stand and approximately 30 feet from the front of such stand.

(b) Water riser pipes shall extend at least four inches above ground elevation. The pipe diameter shall be at least ¾ inch. The water outlet shall be capped when a manufactured home does not occupy the lot.

(c) Adequate provisions shall be made to prevent freezing of service lines, valves and riser pipes. Surface drainage shall be diverted from the location of the riser pipes.

(d) A shutoff valve located at a sufficient depth to prevent freezing or otherwise protected from freezing shall be provided for the water riser pipe on each manufactured home lot.

(e) Underground stop and waste valves shall not be installed on any water service.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-101. General requirements for sewage disposal.

An adequate and safe system shall be provided in all manufactured home parks for conveying and disposing of all sewage. Wherever feasible, connections shall be made to a public system. All new improvements shall be designed, constructed and maintained in accordance with federal, state and local laws, rules and regulations.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-102. Sewer lines.

All sewer lines shall be located in trenches of sufficient depth to be free of breakage from traffic or other movements and shall be separated from the park water supply system. Sewers shall be at a grade which will ensure a velocity of two feet per second when flowing full. The system shall be designed adequately for a minimum flow of 150 gallons per day per manufactured home site. All sewer lines shall be constructed of materials approved by the city, shall be adequately vented, and shall have watertight joints.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-103. Sanitary stations.

Each manufactured home park on which a self-contained recreational vehicle is permitted shall provide a sanitary station consisting of at least a trapped four-inch sewer riser pipe connected to the park sewerage system and surrounded at the inlet end by a concrete apron sloped to the drain, and provided with a suitable hinged cover; and a water outlet, with the necessary appurtenances, connected to the parking area water supply system to permit periodic washdown of the immediate adjacent areas. Such parks shall be provided with sanitary stations in the ratio of one for every 50 lots which are designed for use of recreational vehicles.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-104. Individual sewer connections.

(a) Each manufactured home stand shall be provided with a four-inch diameter sewer riser pipe. The sewer riser pipe shall be located within the area of the manufactured home stand, and approximately 40 feet from the front of such stand.

(b) The sewer connection shall have a nominal inside diameter of three inches, and the slope of any portion thereof shall be at least ¼ inch per foot. The sewer connection shall consist of one pipe line only, without any branch fittings. All joints shall be watertight.

(c) All materials used for sewer connections shall be as prescribed and approved in the Construction Code.

(d) Provisions shall be made for sealing the sewer riser pipe when a manufactured home does not occupy the site. Surface drainage shall be diverted away from the riser. The rim of the riser pipe shall extend at least four inches above ground elevation.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 02-399, § 72, 5-15-02)

Sec. 29-105. Sewage treatment and/or discharge.

Where the sewer lines of the manufactured home park are not connected to a public sewer, all proposed sewage disposal facilities shall be approved by the city prior to construction. Effluents from sewage treatment facilities shall be discharged only as permitted by applicable state and federal laws, rules and regulations.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-106. Solid waste disposal system.

(a) Solid waste collection stands shall be provided for all waste containers. Such stands shall be so designed so as to prevent containers from

being tipped, to minimize spillage and container deterioration and to facilitate cleaning around them.

(b) Solid waste incinerators, if provided, shall be constructed in accordance with engineering plans and specifications, which shall be reviewed and approved by the building official or other authority having jurisdiction.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90)

Sec. 29-107. Electrical distribution system and manufactured home electrical service equipment.

All electrical installations and the connection of all manufactured homes, manufactured home equipment, and accessory buildings in a manufactured home park shall comply with the applicable provisions of the Construction Code.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 02-399, § 73, 5-15-02)

Sec. 29-108. Reserved.

Sec. 29-109. Gas distribution system; general requirements.

Gas equipment and installation within a manufactured home park shall be designed and constructed in accordance with the *Plumbing Code,* the appropriate provisions of the *Fire Code,* and the standards adopted by reference in those codes.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 2021-1037, § 20(Exh. I.34), 12-1-2021, eff. 4-1-2022)

Sec. 29-110. Required gas supply volumes.

The minimum hourly volume of gas required at each manufactured home site outlet or any section of the manufactured home park gas piping system shall be calculated as required by the Construction Code.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 02-399, § 74, 5-15-02)

Sec. 29-111. Gas supply installation.

All gas piping installed below ground shall have a minimum earth cover of 18 inches. Gas piping shall not be installed under any manufactured home.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-112. Shutoff valves.

(a) A readily accessible and identified shutoff valve controlling the flow of the gas to the entire gas piping system shall be installed near to the point of connection to the service piping.

(b) Each manufactured home site shall have an approved gas shutoff valve installed upstream of the manufactured home site gas outlet and located on the outlet riser at a height of not less than four inches above grade. Such valve shall not be located under any manufactured home. Whenever the manufactured home site outlet is not in use, the outlet shall be equipped with an approved cap or plug to prevent accidental discharge of gas.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-113. Manufactured home gas connector, protection, location.

(a) Each manufactured home shall be connected to the manufactured home site outlet by an approved ¾ inch manufactured home connector not more than six feet in length.

(b) All gas outlet risers, regulators, meters, valves or other exposed equipment shall be protected from mechanical damage by vehicles or other causes.

(c) The manufactured home gas connection shall be installed at the edge of the manufactured home stand, approximately 30 feet from the front of such stand; and located as not to terminate beneath the manufactured home.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-114. Use of fuel oil prohibited.

Fuel oil shall not be permitted for use in manufactured homes for cooking, heating or lighting. Natural gas, L. P. gas and electricity only shall be used for such purposes.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-115. Telephone service and television systems.

(a) When telephone service to manufactured home stands is provided, the distribution systems shall be underground, unless economically impractical.

(b) Where central television antenna systems are to be installed as part of the manufactured home park service, distribution to manufactured home stands may be overhead or underground, but shall be in general accord with the placement of the electrical distribution system.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-116. Emergency sanitary facilities.

(a) Every park shall be provided with the following emergency sanitary facilities: For each 100 manufactured home lots, or fractional part thereof, there shall be one flush toilet and one lavatory. The building containing such emergency sanitary facilities shall be accessible to all manufactured homes.

(b) In addition to the requirements set out in subsection (a), the following sanitary facilities shall be provided in any manufactured home park where dependent recreational vehicles are permitted:

(MINIMUM REQUIREMENTS)

No. of Spaces Designed for Dependent Recreational Vehicles	*Toilets*		*Urinals*	*Lavatories*		*Showers*		*Drinking*	*Other*
	Men	*Women*	*Men*	*Men*	*Women*	*Men*	*Women*	*Fountains*	*Fixtures*
1—15	1	2	1	1	1	1	1	1	1 service
16—30	2	3	1	2	2	2	2	1	sink with a
31—45	2	3	2	3	3	2	2	1	flushing rim
46—60	3	4	2	3	3	3	3	2	for each 25
61—80	3	5	3	4	4	4	4	2	recreational
81—100	4	5	3	4	4	4	4	3	vehicles or portion thereof

No lot designed for use of dependent recreational vehicles shall be more than 150 feet from sanitary facilities for men and for women, such distance to be measured from the lot to the sanitary facilities along pedestrian walkways.

In any park having more than 100 lots designed for use by dependent recreational vehicles there shall also be one additional toilet and lavatory for each sex per each additional 20 spaces; one additional shower for each sex per each additional 30 spaces; one additional men's urinal per each additional 100 spaces; and one additional drinking fountain for each 50 spaces.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-117. Service building and other community facilities.

(a) The requirements of this section shall apply to permanent buildings including, without limitation, service buildings, recreation buildings and other community service facilities such as management offices, repair shops, storage areas, sanitary facilities, laundry facilities, indoor recreation areas, and commercial uses supplying essential goods or services for the exclusive use of park occupants.

(b) All portions of the structure shall be properly protected from damage by ordinary uses and by decay, corrosion, termites and other

destructive elements. Exterior portions shall be of such material and be so constructed and protected as to prevent entrance or penetration of moisture and weather.

(c) All rooms containing sanitary or laundry facilities shall meet the following additional requirements:

(1) They shall have sound-resistant walls extending to the ceiling between male and female sanitary facilities. Walls and partitions around showers, bathtubs, lavatories and other plumbing fixtures shall be constructed of dense, nonabsorbent, waterproof material or covered with moisture-resistant material.

(2) They shall have at least one window or skylight facing directly to the outdoors. The minimum aggregate gross area of windows for each required room shall be not less than ten percent of the floor area served by them.

(3) They shall have at least one window which can be easily opened, or a mechanical device which will adequately ventilate the room.

(4) Toilets shall be located in separate compartments equipped with self-closing doors. Shower stalls shall be of the individual type. The rooms shall be screened to prevent direct view of the interior when the exterior doors are open.

(5) Illumination levels shall be maintained as follows:

a. General seeing tasks—Five footcandles;

b. Laundry room work area—40 footcandles;

c. Toilet room, in front of mirrors—40 footcandles.

(6) Hot and cold water shall be furnished to every lavatory, sink, bathtub, shower and laundry fixture, and cold water shall be furnished to every water closet and urinal.

(Ord. No. 85-498, § 1, 4-10-85)

DIVISION 6. MISCELLANEOUS

Sec. 29-118. Location of manufactured homes and recreational vehicles.

(a) No manufactured home shall be located in any recreational vehicle park. This restriction does not apply to a recreational vehicle.

(b) No manufactured home shall be located on any lot in a manufactured home park except on a lot which was designated for use of manufactured homes on the plans of the manufactured home park which were submitted to and approved by the building official. This restriction does not apply to a recreational vehicle.

(c) No recreational vehicle, dependent recreational vehicle or self-contained recreational vehicle not connected to utilities shall be located on any lot in a manufactured home park or recreational vehicle park except on a lot designated for such a vehicle as shown on the plans submitted to and approved by the building official.

(d) No recreational vehicle may be located in any manufactured home park, for any period of time exceeding the periods of time such recreational vehicle may be used for sleeping or living purposes as set out in division 4 of article II.

(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90; Ord. No. 94-1268, § 17, 11-22-94)

Sec. 29-119. Community maintenance standards; responsibilities of the licensee or his agent.

(a) The person to whom a license for a manufactured home park is issued shall provide adequate supervision to maintain the park in compliance with this chapter and to keep its facilities and equipment in good repair and in a clean and sanitary condition.

(b) The licensee shall notify or have an agent notify the community residents of all applicable provisions of this chapter and inform them of their duties and responsibilities under this chapter.

(c) The licensee shall supervise or have an agent supervise the placement of each manufactured home on its manufactured home stand which includes securing its stability and installing all utility connections. Where permits for such connections are required, he shall refuse to allow connections that are in violation or require permits.

(d) The licensee shall maintain or ensure that an agent maintains a register showing:

(1) The names of all persons staying in or residing in the park showing the manufactured home lot on which they are staying or residing.

(2) The serial number of each manufactured home which is located in the park; whether the vehicle is a manufactured home as defined in Article 5221f of Vernon's Texas Civil Statutes, a HUD-Code manufactured home, a recreational vehicle connected to the park's utilities, a self-contained recreational vehicle not connected to the park's utilities, or a dependent recreational vehicle; the make, manufacturer, length and width of the vehicle, the license number of the vehicle if it is a recreational vehicle, and the lot on which each such vehicle is located.

(3) The date each manufactured home is placed in the park and the date it is moved from the park.

(4) The date each recreational vehicle is placed in the park and the date it is moved from the park.

The register shall be available for inspection by the building official, any person designated by the director of administration and regulatory affairs, and any person designated by the director of public health to inspect such records in the course of their official duties.

(e) A new register shall be initiated on January first of each year, and the old register shall be retired but shall be retained on the premises for at least three years following the retirement. Registers shall be available for inspection at all reasonable times by any official of the city listed in subsection (c) above whose duties may necessitate access to the information contained therein.

(f) The licensee shall notify the health officer immediately of any suspected communicable or contagious disease within the manufactured home park.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90; Ord. No. 08-52, § 53, 1-16-08, eff. 1-26-08)

Sec. 29-120. Responsibilities of the resident.

(a) The resident shall comply with all applicable requirements of this Code and shall maintain his manufactured home site, its facilities and equipment in good repair and in clean and sanitary condition.

(b) The resident shall be responsible for proper placement of his manufactured home on its manufactured home stand and proper installation of all utility connections in accordance with the instructions of the management. The resident shall obtain all city licenses and permits where required.

(c) Pets, if permitted in the park, shall not be allowed to run at large or to commit any nuisance within the limits of any manufactured home park.

(d) Skirtings, porches, awnings, and other additions shall be installed only if permitted and approved by the management. When installed, they shall be maintained in good repair. The space immediately underneath a manufactured home shall be used for storage only if permitted by the management. If permitted, the following conditions shall be satisfied:

(1) The storage area shall be provided with a base of impervious material.

(2) Stored items shall be located so as not to interfere with the underneath inspection of the manufactured home.

(3) The storage area shall be enclosed by skirting.

(e) The resident shall store and dispose of all his rubbish and garbage in a clean, sanitary and safe manner. The garbage container shall be rodent-proof, insect-proof and watertight.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-121. Solid waste handling.

(a) The storage, collection and disposal of refuse in the manufactured home park shall be so conducted as to create no health hazards, rodent harborage, insect breeding areas, accident or fire hazards or air pollution.

(b) All refuse and garbage shall be collected at least twice weekly. Where suitable collection service is not available from municipal or private agencies, the management shall provide this service. All refuse shall be collected and transported in covered vehicles or covered containers.

(c) Where municipal or private disposal service is not available, the management shall dispose of the refuse by incineration or transporting to a disposal site approved by the health officer.

(d) Refuse incinerators, if provided, shall be constructed in accordance with engineering plans and specifications which shall be reviewed and approved by the building official, the health officer, and other authority having jurisdiction and all city permits and licenses required therefor shall be obtained and maintained.

(e) Incinerators shall be operated only when attended by some person specifically authorized by the licensee or his agent.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90)

Sec. 29-122. Insect and rodent control.

(a) Grounds, buildings and structures shall be maintained free of insect and rodent harborage and infestation. Extermination methods and other measures to control insects and rodents shall conform with the requirements of the health officer.

(b) The community shall be maintained free of accumulations of debris which may provide rodent harborage or breeding places for flies, mosquitoes and other pests.

(c) Storage areas shall be so maintained as to prevent rodent harborage; lumber, pipe and other building material shall be stored at least one foot above the ground.

(d) Where the potential for insect and rodent infestation exists all exterior openings in or beneath any structure shall be appropriately screened with wire mesh or other suitable materials.

(e) The growth of brush, weeds and grass shall be controlled to prevent harborage of ticks, chiggers and other noxious insects. The park shall be so maintained as to prevent the growth of ragweed, poison ivy, poison oak, poison sumac and other weeds that are detrimental to health. Open areas shall be maintained free of heavy undergrowth of any description.

(f) No person shall keep, store or allow any motor vehicle to remain on the premises of a manufactured home park if such motor vehicle is incapable of being operated under its own power; provided, however, this subsection shall not be applicable to a recreational vehicle.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-123. Fuel supply and storage.

(a) Liquefied petroleum gas containers installed on a manufactured home site shall be securely, but not permanently, fastened to prevent accidental overturning. Such containers shall not be less than five water gallon or more than 25 water gallon capacity.

(b) No liquefied petroleum gas vessel shall be stored or located inside or beneath any storage cabinet, carport, manufactured home, or any other structure. All installations must conform to state and city regulations.
(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-124. Fire protection.

(a) Manufactured home park communities shall be kept free of litter, rubbish and other flammable materials.

(b) Portable fire extinguishers rated for Classes A, B and C shall be kept in service buildings and at other locations conveniently and readily accessible for use by all occupants and shall be maintained in good operating condition. Their capacity shall not be less than the underwriters laboratory (U.L.) rating of 2A 10BC. However, standpipes may be provided as an alternative to these fire extinguishers when approved by the fire marshal pursuant to the provisions of the *Fire Code*.

(c) Fires shall be made only in incinerators and other equipment intended for such purposes.

(d) Fire hydrants and their locations shall comply with the requirements of the fire department and this chapter.

(e) Storage and handling of flammable liquids. In parks in which gasoline, oil, paints, or other flammable liquids are stored and/or dispensed, their handling and storage shall comply with the city *Fire Code*.

(f) Approaches to all manufactured homes shall be kept clear for fire fighting.

(g) The manufactured home park licensee or his designated local agent shall be responsible for the instruction of his staff in the use of the park fire protection equipment and in their specific duties in the event of fire. The park owner shall provide standard city fire hydrants located within 500 feet of all manufactured home spaces, measured along the driveways or streets. The specific location of fire hydrants must be approved by the chief of the fire department. Fire hydrants will be subject to periodic inspection by the city fire department. It shall be the responsibility of the park licensee to ensure that the fire hydrants are maintained in a good state of repair at all times. Notice shall be given to the fire department when fire hydrants are inoperative. Such notice shall specify anticipated repair time. All repairs to fire hydrants will be made within 24 hours unless specific permission is requested and granted in writing by the fire department.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 2021-1037, § 20(Exh. I.35), 12-1-2021, eff. 4-1-2022)

DIVISION 7. APPEALS AND EXCEPTIONS

Sec. 29-125. Permit appeals.

Any appeals that a person may desire to make based upon the refusal of the building official to issue any manufactured home park development permit or any building permit for construction or maintenance work therein or based upon an inspection disapproving any work under any such permit shall be made to the board or boards having jurisdiction thereof and in accordance with the appeal procedure as provided for the respective boards as set out in the Construction Code. Appeals from the decisions of such boards, when allowed, shall be made in accordance with the applicable provisions of the Construction Code.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90; Ord. No. 02-399, § 75, 5-15-02)

Sec. 29-126. License appeals.

Any person desiring to appeal a manufactured home park operator's license denial, or the revocation thereof shall make such appeal in writing to the mayor and city council. Such notice must be received via mail or other delivery by the city secretary within ten calendar days from the date of the license denial or revocation. The city council may affirm, reverse or modify the ruling of the building official and the ruling of the city council shall be final.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90)

Sec. 29-127. Alternative materials and methods of construction and special provisions for certain parks.

(a) The provisions of this chapter are not intended to prevent the use of any material or method of construction not specifically prescribed by this chapter, provided any such alternate has been approved.

The building official may approve any such alternate provided he finds that the proposed design is satisfactory and that the material, method or work offered is, for the purpose

intended, at least the equivalent of that prescribed in this chapter in quality, strength, effectiveness, fire-resistance, durability, and safety.

The building official shall require that sufficient evidence or proof be submitted to substantiate any claims that may be made regarding the use of an alternative.

The authority granted in this section may be exercised by the Director of Houston Public Works or any assistant director or deputy director designated for that purpose, but such authority shall not be delegated to any other person.

This subsection shall not be construed to authorize the development of a manufactured home park in violation of section 29-87 except the building official may waive the requirements of section 29-87 in regard to manufactured home parks constructed prior to April 10, 1985, or prior to the annexation of the land on which the manufactured home park is located if the park meets the requirements of subsection (b) below.

(b) A manufactured home park which was constructed prior to April 10, 1985, or prior to the annexation of the land on which the manufactured home park is located may continue to be used as a manufactured home park although it was not constructed in accordance with the provisions of this chapter if:

(1) The manufactured home park meets all requirements of law which were applicable at the time of its construction as a manufactured home park; and

(2) The manufactured home park contains no conditions which constitute a threat to the health and safety of its residents or the public in general.

Provided, however, when additions, alterations, or repairs within any 12-month period exceed 50 percent of the value of such a manufactured home park at the time such work is commenced, the park shall be made to conform to the requirements for new manufactured home parks.

Provided, further, when additions, alterations or repairs within any twelve-month period exceed 25 percent but not 50 percent of the value of such manufactured home park as of the date that such work is commenced, such work may be performed without making the entire manufactured home park comply with the requirements for new manufactured home parks. The additions, alterations or repairs shall conform to the requirements of this Code for a new manufactured home park.

Provided, further, when additions, alterations or repairs within any 12-month period do not exceed 25 percent of the value of such manufactured home park as of the time the work is commenced, such work may be performed without making the entire manufactured home park comply with the requirements for new manufactured home parks. Such additions, alterations or repairs shall conform to the requirements of this Code for a new manufactured home park, except that such structural additions, alterations or repairs, when approved by the building official, may be made with the same material of which the manufactured home or recreational vehicle park is constructed. The building official shall approve such material only if he finds that the material is suitable for the purposes intended, and will not create any danger to human life.

(c) Notwithstanding the provisions of subsection (b) above, a manufactured home park that was constructed before April 10, 1985 or before annexation by the city, may not be enlarged so as to expand the number of stands therein unless the enlargement is constructed in full and current compliance with the requirements set forth in this article.

(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, §§ 57, 65, 5-23-90; Ord. No. 93-514, § 45, 5-5-93; Ord. No. 98-613, § 55, 8-5-98; Ord. No. 04-1015, § 17, 9-27-04; Ord. No. 2018-11, § 49, 1-10-2018)

Secs. 29-128—29-134. Reserved.

ARTICLE IV. MANUFACTURED HOME SUBDIVISIONS

Sec. 29-135. Plat approval.

Manufactured home subdivision plats will be considered and approved for recordation in the same manner and subject to the same provisions

of this Code as are applicable to plats for other residential subdivisions, provided that no such manufactured home subdivision plat will be approved by the city planning commission unless the following additional requirements are complied with:

(1) It shall contain a minimum of four acres of land and not less than 20 lots; and

(2) It shall be restricted by deed restriction so that no permanent type residential dwelling shall be permitted therein.

(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-136. Informal subdivisions prohibited.

No manufactured home subdivision may be established by informal or "red flag" means of sale of lots by metes and bounds descriptions or any other means which obviates plat approval pursuant to section 29-135 of this Code and the recordation of such plat as provided by law with the county clerk of the county in which the subdivision is situated.

(Ord. No. 85-498, § 1, 4-10-85)

Secs. 29-137—29-144. Reserved.

ARTICLE V. SALES LOTS

Sec. 29-145. Residence prohibited.

No manufactured home shall be permitted to be occupied for residential use on a sales lot, unless the requirements for a manufactured home park are complied with and a license for the operation of such park has been issued by the city.

(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-146. Prohibited connections to utilities.

No manufactured home or recreational vehicle on a sales lot may be connected to any utilities except as authorized in this division.

(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-147. When connection to electricity permitted.

A manufactured home or a recreational vehicle located on a sales lot for display purposes only may be connected to electricity if:

(1) It has been placed on a lot designated for use of manufactured homes or recreational vehicles connected to electricity pursuant to a plan submitted to and approved by the building official.

(2) The sales lot has a valid authorization for connection of either manufactured homes or recreational vehicles, or both, to electricity at all times the manufactured home or recreational vehicle is connected to electricity.

(3) The connection of the manufactured home or recreational vehicle to electricity is in compliance with all applicable ordinances.

(4) All electrical wiring in the manufactured home or recreational vehicle meets the requirements of:

a. The National Electrical Code that was in effect at the time the manufactured home or recreational vehicle was manufactured;

b. Any edition of the National Electrical Code that was issued after the date the manufactured home or recreational vehicle was manufactured; or

c. Federal or State or Texas laws regulating the installation of electrical wiring in manufactured homes at the time the manufactured home was manufactured if the structure is a manufactured home.

(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90)

Sec. 29-148. Authorization.

(a) To obtain authorization for connection of either manufactured homes or recreational vehicles, or both, to electricity, the operator of

the sales lot shall make application therefor on a form furnished by the city for such purpose. On the application, the operator shall set forth:

(1) His name and address.

(2) The number of his state registration as a manufactured home dealer if any manufactured homes are to be located on the sales lot.

(3) The street address and legal description of the property on which the sales lot is located.

(4) Plans of the sales lot showing:

a. The number, location and size of all spaces on which manufactured homes or recreational vehicles will be located that will be connected to electricity;

b. The location and details of all electrical systems on the sales lot;

c. The location of the manufactured home sales office if one is located on the sales lot; and

d. Any other information requested by the building official that will aid him in determining whether the sales lot meets the requirements of the ordinances.

The applicant for authorization for connection of either manufactured homes or recreational vehicles, or both, to electricity shall submit with the application the annual fee for such authorization as set out in section 29-160 of this Code and shall pay all applicable permit fees set out in the *Construction Code*.

(b) The building official shall grant authorization to connect either manufactured homes or recreational vehicles, or both, to electricity upon proper application therefor and payment of all applicable fees if the sales lot meets all applicable requirements of the ordinances of the city.

(c) Each authorization for the connection of either manufactured homes or recreational vehicles, or both, on a sales lot, and each renewal thereof, shall expire one year from the date of issuance. Such a permit may be renewed if application therefor is made on a form provided by the city for that purpose prior to the expiration of the permit, the renewal fee as set out in section 29-160 is paid, and the sales lot is found to be in compliance with all applicable ordinances of the city.

(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90; Ord. No. 2021-1037, § 20(Exh. I.36), 12-1-2021, eff. 4-1-2022)

Sec. 29-149. Sales office permitted.

The operator of a manufactured home sales lot may apply pursuant to division 3 of article II of this chapter for a placement permit for one manufactured home thereon to be connected to utilities for use as an office and for demonstration purposes.

(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-150. Display units exempt.

A manufactured home which is situated upon a sales lot and is not connected to any utilities other than electricity and is not being used for any purpose other than display for sale is exempt from the requirements of division 3 of article II of this chapter.

(Ord. No. 85-498, § 1, 4-10-85)

Sec. 29-151. Dealers to provide purchasers certain information.

Each manufactured home and recreational vehicle dealer shall furnish each purchaser and each lessee of a manufactured home or a recreational vehicle such information in writing as to the requirements of the Code of Ordinances relating to manufactured homes and recreational vehicles as the building official shall direct including, but not limited to, information concerning the requirements for permits, requirements as to where manufactured homes and recreational vehicles may be located, the time limits set out for use of such structures, and tie-down and blocking requirements for recreational vehicles. Such written information shall be on forms approved by the building official.

(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90)

Sec. 29-152. Dealers' responsibilities.

(a) As to any sales lot operated by a holder of a manufactured housing retailer's certificate issued pursuant to Article 5221f, Revised Civil Statutes of Texas, as amended, the holder of such certificate shall ensure that all requirements of this article are complied with.

(b) As to any sales lot which is not operated by a holder of a manufactured housing retailer's certificate issued pursuant to Article 5221f, Revised Civil Statutes of Texas, as amended, the person who operates such lot shall ensure that all requirements of this article are met.

(c) No person shall show the interior of any manufactured home or recreational vehicle to any person if such manufactured home or recreational vehicle has been connected to any utilities unless the requirements of this article have been met.
(Ord. No. 85-498, § 1, 4-10-85)

Secs. 29-153—29-159. Reserved.

ARTICLE VI. FEES

Sec. 29-160. Applicable fees.

(a) In addition to the fees set forth in this section, all other applicable inspection and permit fees as set forth in this Code and in the *Construction Code* must be tendered to the building official with the application.

(b) The fees stated for this provision in the city fee schedule are hereby imposed pursuant to the provisions of this chapter.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90; Ord. No. 91-1175, § 1, 8-14-91; Ord. No. 03-645, § 3, 7-16-03, Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2021-1037, § 20(Exh. I.37), 12-1-2021, eff. 4-1-2022)

Secs. 29-161—29-164. Reserved.

ARTICLE VII. APPEALS

Sec. 29-165. Appeals.

Appeals of any action of the building official in refusing to finalize a permit and authorize occupancy of a manufactured home or a recreational vehicle may be made in the manner provided in section 29-125 of this Code.
(Ord. No. 85-498, § 1, 4-10-85; Ord. No. 90-635, § 57, 5-23-90)

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Chapter 30

NOISE AND SOUND LEVEL REGULATION*

Sec. 30-1. Definitions.

The following words shall have the meanings provided below:

Annual permit means a current and valid permit authorizing the use of sound amplification equipment at a specific location or upon a specific route for a one-year period from the date of permit issuance.

Applicant means the person applying for a permit under this chapter.

Commercial establishment means any business entity that offers for sale, or allows its patrons the ability to consume, food or beverages or any combination thereof on its premises.

Commercial establishment permit means a current and valid permit authorizing a commercial establishment to use sound amplification equipment at a specific location for a one-year period from the date of permit issuance.

Daily permit means a current and valid permit authorizing the use of sound amplification equipment at a specific location or upon a specific route on a designated day.

Daytime hours means the hours between 8 a.m. on one day and 10 p.m. the same day.

dB(A) means the intensity of a sound expressed in decibels.

Director means the director of the administration and regulatory affairs department or his designee.

Emergency means any occurrence or set of circumstances involving actual or imminent physical trauma or property damage or loss that demands immediate action.

Emergency work means any work performed for the purpose of (i) preventing or alleviating the physical trauma or property damage threatened or caused by an emergency, (ii) restoring property to a safe condition following a fire, accident, or natural disaster, (iii) protecting persons or property from exposure to danger, or (iv) restoring public utilities.

Extended daily permit means a current and valid permit authorizing the use of sound amplification equipment at a specific location or upon a specific route at designated times for a period not to exceed five consecutive days.

Nighttime hours means the hours between 10:01 p.m. on one day and 7:59 a.m. the following day.

Nonresidential property means any real property not included in the definition of residential property as defined in this section. Without limitation, the term includes properties developed other than as residential properties, undeveloped properties, and properties devoted to public purposes, such as public streets and parks.

Operator means the manager or other individual principally in charge of a commercial establishment.

Outdoor area means any portion of a commercial establishment that is not fully enclosed by permanent, solid walls and a roof, including but not limited to patios, terraces, courtyards, verandas, plazas, and other similar portions of a commercial establishment where sound amplification equipment will be utilized for the enjoyment of its patrons. Outdoor area shall also include fixed, non-portable structures used in conjunction with sound amplification equipment, including but not limited to stages, decks, risers, and lighting support structures.

Owner or *owners* means the proprietor if a sole proprietorship, all general partners if a partnership, or the corporation and all officers,

*__Editor's note—__Ord. No. 2022-399, § 2(Exh. A), adopted May 4, 2022, amended Ch. 30 in its entirety to read as herein set out. Former Ch. 40 pertained to similar subject matter and derived from Ord. No. 2011-874, § 2(Exh. A), 10-12-2011.

directors, and persons holding 50 percent or more of the outstanding shares if a corporation.

Permit means an annual permit, daily permit, extended-daily permit, or commercial establishment permit.

Permittee means any person, partnership, corporation, firm, joint venture, limited liability company, association, organization or any other entity holding a permit issued pursuant to this chapter.

Plainly audible when describing a sound or noise means any amplified sound or noise that can be clearly heard by a person with normal hearing faculties such that a reasonable person would believe such sound or noise unreasonably disturbs, injures, or endangers the comfort, repose, health, peace, or safety of others in violation of this chapter. The term does not require the clear appreciation of specific words of speech or specific words of a song.

Property line means, with respect to single occupancy properties on the same side of a street, the line along the ground surface and its vertical extension that separates the real property occupied by one person from that occupied by another person. With respect to single occupancy properties on opposing sides of a street, the term means the curb line or line that separates the real property and the adjacent street. With respect to shared occupancy properties the term means the imaginary line that represents the legal limits of occupancy of any person who occupies a duplex, triplex, quadraplex, town home, nursing home, boarding home, apartment, condominium, or any other type of occupancy from that of other occupants.

Residential property means any permanent building or structure containing habitable rooms for nontransient occupancy that is designed and used primarily for living, sleeping, cooking and eating and intended to be used as occupancy as a dwelling place for residential purposes, whether or not attached, including homes, town homes, patio homes, duplexes, triplexes, quadraplexes, nursing homes, boarding homes, condominiums and apartments. Hotels and motels shall not be considered residential.

Sound amplification equipment means loudspeaker, loudspeaker system, sound amplifier, or any other machine or device that produces, reproduces, or amplifies sound.

Sound nuisance means any sound that either exceeds the maximum permitted sound levels specified in section 30-5 of this Code, or for purposes of sections 30-3, 30-4, and 30-7 of this Code, otherwise unreasonably disturbs, injures, or endangers the comfort, repose, health, peace, or safety of others.

(Ord. No. 2022-399, § 2(Exh. A), 5-4-2022)

Sec. 30-2. General prohibitions; exception.

(a) It is unlawful for any person to make, assist in making, permit, continue, cause to be made or continued, or permit the continuance of any loud, unnecessary, or unusual sound or noise that disturbs, injures, or endangers the comfort, repose, health, peace, or safety of others. In determining whether a sound or noise is loud, unnecessary, or unusual, the following factors shall be considered:

(1) The time of day;

(2) The proximity of the source of the sound or noise to residential structures;

(3) Whether the sound or noise is recurrent, intermittent, or constant;

(4) The volume and intensity of the sound or noise;

(5) Whether the sound or noise has been enhanced in volume or range by any type of electronic or mechanical means; and

(6) Whether the sound or noise is subject to being controlled without unreasonable effort or expense to the creator thereof.

(b) The acts enumerated in this chapter, among others, are declared to be sound nuisances in violation of this chapter, but such enumeration shall not be deemed to be exclusive.

(c) The provisions of this chapter shall not apply to a food service establishment or the establishment's sound-related activity under and limited to the express parameters identified in section 437.029 of the Texas Health and Safety Code.

(Ord. No. 2022-399, § 2(Exh. A), 5-4-2022; Ord. No. 2025-742, §§ 6, 7, 8-27-2025)

Sec. 30-3. Noisy animals and birds.

The keeping of any animal or bird that causes or makes frequent or long and continued sound that unreasonably disturbs, injures, or endangers the comfort, repose, health, peace, or safety of ordinary, reasonable persons of normal sensibilities and ordinary tastes, habits, and modes of living who reside in the vicinity thereof is hereby prohibited and declared to be unlawful regardless of whether the sound so created by said animal or bird is within the permissible levels specified in section 30-5 of this Code.
(Ord. No. 2022-399, § 2(Exh. A), 5-4-2022)

Sec. 30-4. Noisy vehicles generally.

It is unlawful to operate or cause to be operated any motor vehicle so out of repair or so loaded that it creates any loud and unreasonable grating, grinding, rattling, or squeaking sound regardless of whether the sound so created by the motor vehicle is within the permissible levels specified in section 30-5 of this Code.
(Ord. No. 2022-399, § 2(Exh. A), 5-4-2022)

Sec. 30-5. Maximum permissible sound levels.

(a) In addition to the violations established in other sections of this chapter, it is unlawful for any person to make, assist in making, permit, continue, cause to be made or continued, or permit the continuance of any sound beyond the property lines of the property on which the sound is being generated that exceeds the applicable dB(A) level listed below for the property on which the sound is received when measured from the property line of the residential or nonresidential property receiving the sound towards the source of the sound:

(1) *Residential property:*

a. 65 dB(A) during daytime hours.

b. 58 dB(A) during nighttime hours.

(2) *Nonresidential property:* 68 dB(A) at all times.

Except as otherwise permitted by this chapter or other applicable law, any sound that exceeds the dB(A) levels set forth in this section under the conditions and measurement criteria set forth in this chapter is a violation of this chapter. Evidence that an activity or sound source produces a sound that exceeds the dB(A) levels specified in this section shall be prima facie evidence of a sound that unreasonably disturbs, injures, or endangers the comfort, repose, health, peace, or safety of others in violation of this chapter.

(b) Regardless of the measurable dB(A) level established in this chapter and measured in a manner provided in subsection (a) of this section, the creation of any sound causing persons occupying or using any property other than the property upon which the sound is being generated to be aware of vibrations or resonance caused by the sound shall be prima facie evidence of a sound that unreasonably disturbs, injures, or endangers the comfort, repose, health, peace, or safety of others in violation of this chapter.
(Ord. No. 2022-399, § 2(Exh. A), 5-4-2022)

Sec. 30-6. Sound measurement device.

Whenever portions of this chapter prohibit sound over a certain decibel limit, measurement shall be made with a Type 1 or Type 2 calibrated sound level meter utilizing the A-weighting scale and the slow meter response as specified by the American National Standards Institute (A.N.S.I. S1.4-1984/85A). Measurements recorded shall be taken so as to provide a proper representation of the sound being measured. The microphone of the meter shall be shielded by use of a windscreen and positioned so as not to create any unnatural enhancement or diminution of the measured sound.
(Ord. No. 2022-399, § 2(Exh. A), 5-4-2022)

Sec. 30-7. Amplified sound in vehicles.

(a) It is unlawful for any person to make, assist in making, permit, continue, cause to be made or continued, or permit the continuance of any sound using any sound amplifier that is part of or connected to any speaker system, radio, stereo receiver, compact disc player, cassette tape player, microphone, computer or other sound source in a vehicle that, when operated disturbs the peace, quiet, and comfort of the neighboring

inhabitants, or is plainly audible at a distance of 50 feet from the vehicle from which the sound is emanating.

(b) It is an affirmative defense to prosecution under this section that the sound source is a vehicle or trailer that is:

(1) A mobile sound stage or studio used on a stationary basis at a location not situated upon any street for the purpose of providing sound during daytime hours for an event; and

(2) In compliance with all other provisions of this chapter, including but not limited to sections 30-8 and 30-9 of this Code, if applicable.

(Ord. No. 2022-399, § 2(Exh. A), 5-4-2022)

Sec. 30-8. Permit for sound amplification equipment.

(a) It is unlawful for a person to use, cause to be used, or permit the use of any sound amplification equipment outside of a building or enclosed structure or that causes sounds produced, reproduced, or amplified within a building or enclosed structure to exceed the levels specified in section 30-5 of this Code, when measured as provided in section 30-5 of this Code, without first obtaining a permit to do so.

(b) Notwithstanding the provisions of subsection (a) of this section, it shall be unlawful for any commercial establishment located within 300 feet of a residential property, when measured in a direct line from the property line of the commercial establishment to the property line of the residential property, to use, cause to be used, or permit the use of any sound amplification equipment at any outdoor area on the commercial establishment's premises or use or cause sound produced, reproduced or amplified by sound amplification equipment within the commercial establishment to be heard or appreciated beyond the property lines of the commercial establishment after 10 p.m. Sunday through Thursday, and after 11 p.m. Friday and Saturday, without first obtaining a commercial establishment permit to do so.

(c) Permits shall be granted only for the amplification of music or human speech, or both; provided however, no permit shall be issued to an applicant who has:

(1) Had a permit revoked within the twelve-month period prior to the date of application; or

(2) Received two or more convictions or entered two or more pleas of guilty or nolo contendere, or any combination thereof, in return for a grant of deferred disposition for violations of this chapter within the 36 month period prior to the date of application.

(d) Each applicant desiring to obtain a daily, extended-daily, or annual permit shall apply on a form provided by the director and shall submit the following information:

(1) The date of the application and the date and hours for which the permit is requested, including the permit classification being requested;

(2) The name, street address (and mailing address if different), and email address of the applicant;

(3) The name, street address (and mailing address if different), and email address of the person who will have charge of the sound amplification equipment;

(4) The purpose for which the sound equipment will be used;

(5) The physical address and a description of the location or proposed route where the sound amplification equipment will be used;

(6) A description of the type of sound amplifying equipment to be used; and

(7) Any other information reasonably requested by the director for administration of this chapter.

(e) Each commercial establishment required to obtain a permit shall apply on a form provided by the director and shall submit the following information:

(1) a. The name, street address (and mailing address if different), and email address of the commercial establishment owner;

b. The name, street address (and mailing address if different), email address, and the Texas driver's license number of the commercial establishment operator;

(2) The name of the commercial establishment, telephone number, and address or legal description of the tract of land on which the commercial establishment is located;

(3) If the commercial establishment is in operation, the date on which the owner acquired the commercial establishment for which the permit is sought, and the date on which the commercial establishment began operations as a commercial establishment at the location for which the permit is sought; and

(4) If the commercial establishment is not in operation, the expected startup date;

(5) The purpose for which the sound equipment will be used;

(6) A description of the type of sound amplifying equipment to be used; and

(7) Any other information reasonably requested by the director for administration of this chapter.

(Ord. No. 2022-399, § 2(Exh. A), 5-4-2022)

Sec. 30-9. Permit issuance; classification and terms.

(a) It shall be unlawful for any person operating sound amplification equipment under a permit issued pursuant to this section to make, assist in making, permit, continue, cause to be made or continued, or permit the continuation of any sound that when measured from the property line of the residential or nonresidential property receiving the sound towards the source of the sound, exceeds the maximum permissible sound level stated for the permit in this section. All permits issued pursuant to this chapter shall be issued according to the following permit classifications:

(1) *Daily permits:*

a. Valid for an authorized date and time between the hours of 8 a.m. and 10 p.m. as expressed on the face of the permit, for the production, reproduction or amplification of sound not to exceed 75 dB(A); and

b. Requires payment of the fee stated for this provision in the city fee schedule for the administrative costs of issuing the permit.

(2) *Extended daily permits:*

a. Valid for the authorized dates and times between the hours of 8 a.m. and 10 p.m. as expressed on the face of the permit, for the production, reproduction or amplification of sound not to exceed 75dB(A); and

b. Requires payment of the fee stated for this provision in the city fee schedule for the administrative costs of issuing the permit.

(3) *Annual permits:*

a. Valid for the 14-hour period between the hours of 8 a.m. and 10 p.m. Sunday through Thursday; and the 15-hour period between the hours of 8 a.m. and 11 p.m. Friday and Saturday, for the production, reproduction or amplification of sound not to exceed 75 dB(A); and

b. Requires payment of the fee stated for this provision in the city fee schedule for the administrative costs of issuing the annual permit.

(4) *Commercial establishments:*

a. Valid for the 14-hour period between the hours of 8 a.m. and 10 p.m. Sunday through Thursday; and the 15-hour period between the hours of 8 a.m. and 11 p.m. Friday and Saturday, for the production, reproduction or amplification of sound not to exceed 75 dB(A);

b. Valid for the 4-hour period between the hours of 10 p.m. and 2 a.m. the following calendar day, Sunday through Thursday; and the 3-hour period between the hours of 11 p.m.

and 2 a.m. the following calendar day, Friday and Saturday, for the production, reproduction or amplification of sound not to exceed the permissible decibel levels stated in section 30-5 of this Code. A commercial establishment required to obtain a commercial establishment permit shall not use, cause to be used, or permit the use of any sound amplification equipment at any outdoor area or use or cause sound produced, reproduced or amplified by sound amplification equipment within the commercial establishment to be heard or appreciated beyond the property lines of the commercial establishment between the hours of 2 a.m. and 8 a.m. on any day; and

c. Requires payment of the fee stated for this provision in the city fee schedule for the administrative costs of issuing the commercial establishment permit.

(b) If at the time of submitting the permit application an applicant is unable to pay the full amount of the applicable permit application fee pursuant to subsection (a) of this section, the fee shall be reduced to that amount the applicant is able to pay, provided the applicant submits a sworn affidavit, on a form provided by the city attorney, containing the following information:

(1) A statement that the applicant is unable to pay the full amount of the fee for the permit; and

(2) A statement of the exact amount the applicant is able to pay for the permit fee at the time the application is delivered to the director.

(c) Notwithstanding the provisions of this section and section 30-8 of this Code, the director shall not issue a permit for picketing activity that takes place in front of a residential property. The provisions of this section shall not prohibit picketing activity in residential areas.
(Ord. No. 2022-399, § 2(Exh. A), 5-4-2022)

Sec. 30-10. Permit application review—Approval; denial and appeal.

(a) Following review of the application, the director shall provide the applicant with written notification of the approval or denial of the requested permit.

(b) In addition to the provisions of subsection (c) of section 30-8 of this Code, the submission of any false information or a materially incomplete application, including but not limited to an applicant's failure to provide any information reasonably requested by the director, shall be grounds for denial of the requested permit. Additionally, the director shall consider whether an applicant has a prior business structure, ownership history, or affiliation with other persons including but not limited to owners, operators, agents, or employees when assessing whether the applicant is in good standing to receive a permit pursuant to this chapter or whether the applicant is in fact a former permittee whose permit has been revoked pursuant to section 30-11 of this Code and is subject to the waiting period established in section 30-12 of this Code. In the event of denial, the applicant shall be given written notice of the basis for such action. An applicant may file an appeal of the denial of a requested permit by filing such appeal in writing with the director not later than 15 days following the date of the director's decision.

(c) If the reason for the denial of a requested permit is curable, the director shall allow the applicant, upon a written request, to submit an amended application to cure the defect in lieu of filing an appeal. If the requested permit is again denied, the applicant shall still be entitled to file an appeal not later than 15 days following the date the director's decision regarding the amended application. Notice of any denial shall comply with section 1-9 of this Code and applicable state laws.

(d) An informal hearing shall be conducted by an impartial hearing officer appointed by the director who shall render a decision within 30 days from the date of the filing of the appeal. At the hearing, the burden shall be upon the applicant to demonstrate that he has satisfied all requisites of this chapter, including all rules

and regulations promulgated by the director regarding sound amplification equipment permits, and is therefore in good standing to receive the requested permit.

(e) The director shall promulgate regulations and procedures for any required hearings which shall be consistent with section 1-9 of this Code and applicable state laws.
(Ord. No. 2022-399, § 2(Exh. A), 5-4-2022)

Sec. 30-11. Permit suspension; revocation.

(a) Whenever the director finds that there are grounds for the suspension or revocation of a permit, the director shall give written notice to the permittee by certified mail, return receipt requested, or by courier or commercial carrier that provides written confirmation of delivery. The notice shall be addressed to the permittee at the address provided on the permit application and shall include:

(1) The specific grounds upon which the permit in question may be suspended or revoked;

(2) That there will be a hearing conducted by an impartial hearing officer selected by the city at which the city will seek the suspension or revocation of the permit;

(3) The date, time and place of the hearing; and

(4) The fact that the permittee may participate in the hearing or be represented by an attorney.

(b) A permit may be suspended or revoked if, following notice and a hearing conducted by the impartial hearing officer, it is determined:

(1) The permit was issued in error;

(2) The applicant provided materially false or incomplete information on the permit application;

(3) The permittee failed to comply with any applicable provisions of this chapter; or

(4) The permittee or any agent or employee of the permittee responsible for the oversight or operation of the sound amplification equipment received two or more convictions or entered two or more pleas of guilty or nolo contendere, or any combination thereof, in return for a grant of deferred disposition within a 36 month period for violations of any provision of this chapter.

(c) All hearings shall be conducted under rules consistent with the nature of the proceedings; provided however, the formal rules of evidence shall not apply at the hearing and any testimony or evidence may be considered if the hearing officer determines the testimony or evidence is relevant and reasonably reliable. The hearing officer may exclude irrelevant, cumulative, immaterial, or repetitious testimony or evidence. Additionally:

(1) All parties shall have the right to representation by a licensed attorney, though an attorney is not required;

(2) Each party may present witnesses in its own behalf;

(3) Each party has the right to cross-examine all witnesses and to rebut evidence; and

(4) Only evidence presented before the hearing officer at the hearing may be considered in rendering the final order; provided however, the hearing officer may take into consideration in his decision any written complaints received by the director from surrounding property owners concerning a permittee's use of sound amplification equipment in violation of any provision of this chapter; provided however, such complaints shall not be the sole basis for the suspension or revocation of a permit.

(d) If the permittee fails to appear at the hearing on the date and time specified, the city shall introduce evidence to establish a prima facie case on behalf of the city showing that grounds exist for suspension or revocation of the permit.

(e) Not later than the tenth calendar day before a suspension or revocation hearing, the holder of an annual or commercial establishment permit whose sound amplification permit is subject

to revocation or suspension pursuant to this section may submit to the director and the hearing officer a sound impact plan addressing the specific issues concerning its noncompliance with the provisions of this chapter. The sound impact plan shall contain, at minimum:

(1) A site diagram, including location of any outdoor area where amplified sound is emitted, and location of sound amplification equipment;

(2) Technical specifications of sound amplification equipment used in the outdoor area;

(3) A description of any sound barrier or sound mitigation device proposed to be installed in or around the outdoor area;

(4) A method of monitoring of sound amplification equipment by the establishment owner, the operator of said equipment, or by an electronic device; and

(5) A detailed plan and time schedule to perform all work necessary to complete and implement the proposed sound impact plan.

The administrative hearing officer shall consider the proposed sound impact plan submitted by permittee and any testimony offered by the city and the permittee concerning the proposed sound impact plan.

(f) The hearing officer shall make a decision based upon a preponderance of the evidence presented at the hearing. After completion of the presentation of evidence by all parties appearing, the hearing officer shall make written findings and render a written order as to whether or not grounds exist for the suspension or revocation of the permit.

(g) Notwithstanding the provisions of subsection (f) of this section, if the hearing officer determines the proposed sound impact plan may cure the specific issues concerning noncompliance with this chapter, the hearing officer shall neither suspend or revoke the permit and instead, shall order a period of time not to exceed 90 days during which the permittee shall perform all work necessary to complete and implement the proposed sound impact plan. The failure to comply by the terms of an approved sound impact plan or the continued failure to comply with any applicable provision of this chapter may result in the immediate suspension or revocation of the commercial establishment's sound amplification permit.

(h) If the hearing official determines, based upon the nature of the violation, that the ends of justice would be served by a suspension in lieu of a revocation, the hearing officer may suspend the permit for a period of time to be stated in the order of suspension, not to exceed 180 days; however, a suspension may not be ordered if the grounds are based upon items (1), (2), or (4) of subsection (b) of this section.

(i) In the event a permit is revoked or suspended, the city shall not be liable to any person for any refund of any part of any permit fees.

(j) The hearing officer's decision shall be final and shall exhaust the permittee's administrative remedies.

(k) The provisions of this section shall be cumulative of penalties stated in section 30-17 of this Code and any additional enforcement remedies allowed by law.
(Ord. No. 2022-399, § 2(Exh. A), 5-4-2022)

Sec. 30-12. Waiting period before becoming eligible to reapply for a sound amplification permit.

A permittee whose sound amplification permit has been revoked pursuant to items (2), (3), or (4) of subsection (b) of section 30-11 of this Code shall be required to wait a period of one year from the date the revocation became final before becoming eligible to reapply for a sound amplification permit.
(Ord. No. 2022-399, § 2(Exh. A), 5-4-2022)

Sec. 30-13. Permit not transferable.

(a) A permit is personal to the permittee to whom it is issued and may not be transferred or otherwise assigned. A permit shall constitute a privilege to which no property interests or property rights of any kind or character shall apply.

(b) A permit is null and void if the permittee:

(1) Changes the name of the person or business from the name designated on the permit or permit application;

(2) Moves the location or proposed route where the sound amplification equipment will be used or moves the place of business from the location designated on the permit or permit application; or

(3) Changes the structure of its business organization, including but not limited to any change to the type of business organization or its ownership or any operator stated in the permit application.

A permittee that desires to make changes to any of the items enumerated in this subsection shall be required to make application to the director for a new permit and pay the fee stated in the city fee schedule.
(Ord. No. 2022-399, § 2(Exh. A), 5-4-2022)

Sec. 30-14. Display of permit.

A permittee shall at all times have in his possession and conspicuously display the permit authorizing the use of sound amplification equipment upon a designated route or at a physical address in such a manner that the permit is easily visible by law enforcement officers and members of the public. Any failure to display a permit shall create the presumption that no permit for the use of sound amplification equipment has been issued.
(Ord. No. 2022-399, § 2(Exh. A), 5-4-2022)

Sec. 30-15. Change of information.

It shall be the duty of each permittee to submit to the director any change in information required to be submitted pursuant to this chapter. Any change in information shall be submitted on the form prescribed by the director within ten calendar days of any change.
(Ord. No. 2022-399, § 2(Exh. A), 5-4-2022)

Sec. 30-16. Defenses.

The following defenses shall apply to any offense established in this chapter:

(1) The emission of any sound was for the purpose of alerting persons to the existence of an emergency, danger, or attempted crime.

(2) The sound was produced by an authorized emergency vehicle.

(3) The sound was produced by emergency work.

(4) The sound was generated:

a. At a lawfully scheduled stadium event;

b. By a parade and spectators and participants on the parade route during a lawful parade;

c. By spectators and participants at lawfully scheduled amphitheater event;

d. By patrons and participants using cannons and gunfire during historical battle re-enactments for which a pyrotechnic permit was obtained and the explosives were inspected by the fire marshal;

e. By a pyrotechnic display that was inspected and approved by the fire marshal; or

f. By spectators and participants of any outdoor event, fun run, race, festival, fiesta, or concert that was sponsored or cosponsored by the city and is in full compliance with a permit issued by the city.

(5) The sound was produced by the erection, excavation, construction, or demolition of any building or structure, including the use of any necessary tools or equipment, conducted between the hours of 7 a.m. and 8 p.m., which activity did not produce a sound exceeding 85 dB(A) when measured from the property line of the residential property where the sound is being received.

(6) The sound was produced by aircraft in flight or in operation at an airport, or railroad equipment in operation on railroad rights-of-way operated in compliance with all applicable federal laws.

(7) The sound was produced by operating or permitting the operation of any mechanically powered saw, drill, sander, router, grinder, lawn or garden tool, lawnmower, or any other similar device used between the hours of 7 a.m. and 8 p.m., provided the device did not produce a sound exceeding 85 dB(A) when measured from the property line of the nearest residential property where the sound is being received and was used for the maintenance or upkeep of the property on which it was operated.

(8) The sound was generated as authorized under the terms of a permit issued under sections 30-8 and 30-9 of this Code.

(9) The sound was produced by the operation of any air conditioning unit that did not produce a sound exceeding 65 dB(A) on residential property or 75 dB(A) on nonresidential property, when measured from the property line of the nonresidential or residential property where the sound is received to the source of the sound.

(10) The sound was produced as part of a religious observance or service during daytime hours, provided the sound did not cumulatively exceed five minutes duration in any one hour period.

(11) The sound was produced during daytime hours by activities conducted on public parks, public playgrounds, and public or private school grounds, including, but not limited to, school athletic and school entertainment events.

(Ord. No. 2022-399, § 2(Exh. A), 5-4-2022)

Sec. 30-17. Penalty.

(a) Any person who violates any provision of this chapter, including but not limited to a violation of any provision or condition of a permit issued pursuant to this chapter, is guilty of an offense and, upon conviction thereof, shall be punished by a fine not to exceed $2,000.00. Each hour or portion thereof in which any violation shall occur shall constitute a separate offense.

(b) This remedy shall be cumulative of any other penalty or remedies available to the city.
(Ord. No. 2022-399, § 2(Exh. A), 5-4-2022)

Sec. 30-18. Regulations.

The director is authorized to adopt any regulations to implement this chapter. A copy of the regulations shall be maintained in the director's office for inspection by the public, and copies shall be made available for purchase at the fees prescribed by law.
(Ord. No. 2022-399, § 2(Exh. A), 5-4-2022)

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Chapter 31

OIL AND GAS WELLS*

Art. I.	In General, §§ 31-1—31-22
Art. II.	Permit, §§ 31-23—31-44
Art. III.	Drilling and Operating Rules, §§ 31-45—31-69

ARTICLE I. IN GENERAL

Sec. 31-1. Title.

The title of this chapter and the name by which it shall be known is the "City of Houston Oil and Gas Well Ordinance."
(Code 1968, § 30-1)

Sec. 31-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Gas.* "Gas," means natural gas including all of its constituent elements, which elements include (but not by way of limitation) gasoline, condensate, distillate, butanes, propanes and other lighter hydrocarbons.

(2) *Gas well.* A "gas well" is a well producing gas, as herein defined, and which produces no oil as herein defined, or less than one barrel of oil to each 100,000 cubic feet of gas.

(3) *Oil.* The word "oil" means any liquid hydrocarbon, regardless of gravity, capable of being produced from a drilling unit in liquid form at the well by ordinary production methods and which is not the result of the condensation of gas after it leaves the reservoir.

(4) *Oil well.* An "oil well" is any well which produces one barrel or more of oil, as herein defined, to each 100,000 cubic feet of gas, as herein defined.

(5) *Permittee.* The word "permittee" shall mean the person to whom is issued a permit for the drilling and operation of a well under this chapter, and his administrators, executors, heirs, successors and assigns.

(6) *Person.* The word "person" shall include both the singular and plural and shall mean and include any person, individual, firm, partnership, association, corporation, club, society, cooperative, trust, municipal corporation, or political subdivision whatsoever.

(7) *Regulated area.* The words "regulated area," subject to the exceptions contained in this chapter, shall include and mean all lands within the corporate limits of the city.

(8) *Technical or industry words.* All technical or oil and gas industry words or phrases used herein and not specifically defined herein shall have the meanings customarily attributable thereto by prudent operators in the oil and gas industry.

(9) *Well.* The word "well" shall include and mean any hole or holes, bore or bores, to any sand, formation, strata or depth, which is or are drilled, bored, sunk, dug or put down for the purpose of either exploring for or ascertaining the existence of any oil, gas, liquid hydrocarbon, or any of them, or for the purpose of producing and recovering any oil, gas, liquid hydrocarbon, or any of them.

(Code 1968, § 30-3)

Sec. 31-3. Drilling units and blocks generally.

In order that the purpose and intent of this chapter shall be carried out and future drilling for

*Cross references—Exploring for or producing, refining, etc., petroleum at George Bush Intercontinental Airport/Houston (IAH) § 9-261 et seq.; buildings generally, Ch. 10; planning and development generally, Ch. 33; inspection permit for certain pipe lines, etc., in public rights-of-way, § 40-192 et seq.; pipelines, conduits, across, along, or under streets, sidewalks, etc., § 40-228 et seq.

oil and gas within the city may proceed in an orderly manner, and for convenience and clarity in identifying the location of approved or proposed drilling locations, drilling units shall be described by use of the State Plane Coordinate System (Lambert) for the South Central Zone of Texas. For this purpose, the corporate limits of the city have been divided into blocks containing 640 acres and being 5,280 feet square. All blocks or portions thereof, which are located within the corporate limits of the city, are listed and described in an exhibit marked "A," attached to Ordinance No. 59-1887; styled "Lambert Coordinates Describing 640 Acre Blocks within the City Limits of the City of Houston" of record in the city secretary's office to which reference is here made for all purposes. The boundary lines of each block shall be contiguous with all adjacent blocks, as shown on said Exhibit "A." Each block shall be identified, as shown on said Exhibit "A," by the number of blocks distant it is located along the Lambert Coordinates north and west, north and east, south and east, or south and west from the intersection of coordinate X = 3,150,000 and Y = 720,000, which intersection is about 2,500 feet northwest of the city hall of Houston. For example, S 10 W 5 will identify the block which is the tenth block south and the fifth block west of X = 3,150,000 and Y = 720,000.

A drilling unit for oil within the corporate limits of the city shall contain 40 acres and be 1,320 feet square. Each oil drilling unit shall be wholly within one of the blocks described in said Exhibit "A" and the four boundary lines of each oil drilling unit shall be contiguous to all adjacent oil drilling units. Each of the blocks, as described in said Exhibit "A," shall contain sixteen (16) oil drilling units and each oil drilling unit shall be identified by numbers, starting with the northwest corner oil drilling unit of each block and reading from left to right for four rows, as illustrated in the example appearing on a plat marked Exhibit "B," attached to Ordinance No. 59-1887, styled "Example—Illustrating the Manner in which each 640 Acre Block within the City of Houston is Divided into 40 Acre Oil Drilling Units," of record in the city secretary's office, to which reference is here made for all purposes. The boundary lines of each oil drilling unit may be further described by Lambert Coordinates, as illustrated in the example appearing in said Exhibit "B."

A drilling unit for gas within the city shall contain 640 acres and be 5,280 feet square and the boundary lines of each such gas drilling unit shall be congruent with the boundary lines of one of the blocks described in said Exhibit "A."
(Code 1968, § 30-4)

Sec. 31-4. Drilling units limited to one well; exceptions; substitute wells.

(a) Not more than one oil well shall be permitted to be drilled, completed and operated in each oil drilling unit and it shall be unlawful to drill, complete and operate more than one oil well in each oil drilling unit; provided, however, that if, on December 22, 1959, there exists on any oil drilling unit one or more producing oil wells, one additional oil well may be drilled, completed and produced on the same oil drilling unit under the terms and provisions of this chapter.

(b) Not more than one gas well shall be permitted to be drilled, completed and operated in each gas drilling unit and it shall be unlawful to drill, complete and operate more than one gas well in each gas drilling unit; provided, however, that if, on December 22, 1959, there exists on any gas drilling unit one or more producing gas wells, one additional gas well may be drilled, completed and produced on the same gas drilling unit under the terms and provisions of this chapter.

(c) A substitute oil well may be drilled, completed and operated in each oil drilling unit and a substitute gas well may be drilled, completed and operated in each gas drilling unit in the event the prior existing oil well or gas well, drilled after December 22, 1959, shall be abandoned.

(d) A substitute oil or gas well may be drilled, completed and produced on the same proration unit in the event an oil well which was producing, or capable of producing, on December 22, 1959, shall be abandoned. A substitute gas or oil well may be drilled, completed and produced on the same proration unit in the event a gas well which was producing, on December 22, 1959, shall be abandoned. No substitute well provided for in this

subsection shall be drilled to a deeper reservoir than the deepest productive reservoir of the well for which such substitute well is drilled.

(e) Except as provided above in subsection (d), an oil well cannot be substituted for a gas well and a gas well cannot be substituted for an oil well.

(f) The provisions of this section shall not prevent a well from being completed in more than one producing horizon. Multiple completions in the same well bore are expressly authorized.
(Code 1968, § 30-5)

Sec. 31-5. Location near buildings or on public property.

(a) No well shall be drilled and no permit shall be issued for any well to be drilled in any location within a drilling unit which location is nearer than 400 feet from any residence or building without the applicant's having first secured the written permission of the owner or owners thereof; provided, however, that this requirement shall not apply to any well drilled in any location exempted by the terms of this chapter from the well-spacing requirements of this chapter.

(b) No well shall be drilled within any of the streets or alleys, parks or other public property unless authorized by an ordinance duly passed by the city council; provided, however, that wells may be drilled on all federally-owned lands in the Addicks and Barker Reservoirs upon the written authorization of the building official pursuant to article II of this chapter, and without passage of any further ordinance by the city council.
(Code 1968, § 30-6; Ord. No. 78-2592, § 1, 12-20-78; Ord. No. 90-635, § 67, 5-23-90)

Sec. 31-6. Wells drilled prior to June 24, 1959, exempt.

Anything contained herein to the contrary notwithstanding, none of the provisions of this chapter shall ever be construed as applying to the operation of any producing oil or gas well, located within the corporate limits of the city which was drilled and completed prior to June 24, 1959, or to the equipment and its operation (producing or otherwise), installed in connection with such well on the leased premises; and provided, further, without limitation on the foregoing, nothing contained herein shall be interpreted to require a permit for any producing oil or gas well located within the corporate limits of the city, which was drilled and completed prior to June 24, 1959, or for the continued operation, re-working, sidetracking, plugging back or abandonment, or deepening through the deepest productive reservoir to which any such well was previously drilled.
(Code 1968, § 30-7)

Sec. 31-7. Exemptions from well spacing provisions—Piercement type salt domes (Pierce Junction and Mykawa Fields.)

The well spacing provisions of this chapter shall not apply to producing areas which heretofore, prior to June 24, 1959, or may be in the future defined as piercement type salt domes by the state railroad commission. Two fields, namely, Pierce Junction and Mykawa, within the city limits are presently defined as piercement type salt domes.

The forty-acre drilling units within the Pierce Junction Field which are exempted from the spacing provisions of this chapter are listed in an exhibit marked "C," styled "Lambert Coordinates Describing Oil Drilling Units within the Producing Limits of the Pierce Junction Field," and the forty-acre drilling units within the Mykawa Field, which are exempt from the spacing provisions of this chapter, are listed in an exhibit marked "D," styled "Lambert Coordinates Describing Oil Drilling Units within the Producing Limits of the Mykawa Field," both of such exhibits being attached to Ordinance No. 59-1887, and of record in the city secretary's office, to which reference is here made for all purposes.
(Code 1968, § 30-8)

Sec. 31-8. Same—Clinton Field.

The well spacing provisions of this chapter shall not apply to the Clinton Field, the same being composed of the following listed and de-

scribed 640 acre blocks as set out and established in Exhibit "A" attached to Ordinance No. 61-109 and of record in the city secretary's office:

N1-E7, N1-E8, N1-E9, N1-E10, N1-E11
N2-E7, N2-E8, N2-E9, N2-E10, N2-E11
N3-E7, N3-E8, N3-E9, N3-E10, N3-E11
N4-E7, N4-E8, N4-E9, N4-E10, N4-E11
N5-E7, N5-E8, N5-E9, N5-E10, N5-E11

(Code 1968, § 30-9)

Sec. 31-9. Same—South Houston Field.

The well spacing provisions of this chapter shall not apply to the South Houston Field, the same being composed of the area described as follows:

"BEGINNING at the southwest corner of forty-acre Drilling Unit 7 in Block S8-E8 as said drilling units and blocks are designated in section 4 of the City of Houston Ordinance No. 59-1887, dated December 22, 1959; said corner having coordinates of X = 3,189,600.00 feet and Y = 680,400.00 feet.

"THENCE North 2640.00 feet to the northeast corner of Drilling Unit 3 in Block S8-E8, said corner having coordinates of X = 3,189,600.00 feet and Y = 683,040.00 feet;

"THENCE West 1320.00 feet to the southwest corner of Drilling Unit 14 in Block S7-E8, said corner having coordinates of X = 3,188,280.00 feet and Y = 683,040.00 feet;

"THENCE North 5280.00 feet to the northwest corner of Drilling Unit 2 in Block S7-E8, said corner having coordinates of X = 3,188,280.00 feet and Y = 688,320.00 feet;

"THENCE East 1320.00 feet to the northeast corner of said Drilling Unit 2, Block S7-E8, said corner having coordinates of X = 3,189,600.00 feet and Y = 688,320.00 feet;

"THENCE North 1320.00 feet to the northwest corner of Drilling Unit 15 in Block S6-E8, said corner having coordinates of X = 3,189,600.00 feet and Y = 689,640.00 feet;

"THENCE East 2640.00 feet to the northeast corner of Drilling Unit 16 in Block S6-E8, said corner having coordinates of X = 3,192,240.00 feet and Y = 689,640.00 feet;

"THENCE South 2640.00 feet to the southeast corner of Drilling Unit 4 in Block S7-E8, said corner having coordinates of X = 3,192,240.00 feet and Y = 687,000.00 feet;

"THENCE South along the east line of Drilling Unit 8, Block S7-E8 to its intersection with the north city limit line of the City of South Houston;

"THENCE Westerly, along said north city limit line to the northwest corner of the City of South Houston;

"THENCE Southerly, along the west city limit line of the City of South Houston, to its intersection with the north line of forty-acre Drilling Unit 12 in Block S8-E8;

"THENCE West along the north lines of Drilling Units 12 and 11 in Block S8-E8 to the place of beginning.

All bearings, distances and coordinates are grid bearings, distances and coordinates based on the State Plane Coordinate System (Lambert) for the South Central Zone of Texas.

(Code 1968, § 30-10)

Sec. 31-10. Same—Humble Field.

The well spacing provisions of this chapter shall not apply to the Humble Field, the same being composed of the following listed and described 640-acre blocks as set out and established by section 31-3, insofar as they lie within the corporate limits of the city:

N15-E6, N14-E7, N14-E8, N15-E9, N18-E10
N16-E6, N15-E7, N15-E8, N16-E9, N19-E10
N17-E6, N16-E7, N16-E8, N17-E9, N20-E10
N18-E6, N17-E7, N17-E8, N18-E9
N19-E6, N18-E7, N18-E8, N19-E9
N20-E6, N19-E7, N19-E8, N20-E9
N20-E7

(Code 1968, § 30-11)

Sec. 31-11. Same—Webster and Olcott Fields.

The well spacing provisions of this chapter shall not apply to the Webster and Olcott Fields, which consist of the following described forty-acre oil drilling blocks or units:

S10-E10-1, S10-E10-2, S10-E10-3, S10-E10-4, S10-E10-5, S10-E10-6, S10-E10-7, S10-

E10-8, S10-E10-9, S10-E10-10, S10-E10-11, S10-E10-12, S10-E10-13, S10-E10-14, S10-E10-15, S10-E10-16

S10-E11-1, S10-E11-2, S10-E11-3, S10-E11-4, S10-E11-5, S10-E11-6, S10-E11-7, S10-E11-8, S10-E11-9, S10-E11-10, S10-E11-11, S10-E11-12, S10-E11-13, S10-E11-14, S10-E11-15, S10-E11-16

S11-E10-1, S11-E10-2, S11-E10-3, S11-E10-4, S11-E10-5, S11-E10-6, S11-E10-7, S11-E10-8, S11-E10-9, S11-E10-10, S11-E10-11, S11-E10-12, S11-E10-13, S11-E10-14, S11-E10-15, S11-E10-16

S11-E11-1, S11-E11-2, S11-E11-3, S11-E11-4, S11-E11-5, S11-E11-6, S11-E11-7, S11-E11-8, S11-E11-9, S11-E11-10, S11-E11-11, S11-E11-12, S11-E11-13, S11-E11-14, S11-E11-15, S11-E11-16

S12-E10-1, S12-E10-2, S12-E10-3, S12-E10-4, S12-E10-5, S12-E10-6, S12-E10-7, S12-E10-8, S12-E10-9, S12-E10-11, S12-E10-11, S12-E10-12, S12-E10-13, S12-E10-14, S12-E10-15, S12-E10-16

S12-E11-1, S12-E11-2, S12-E11-3, S12-E11-4, S12-E11-5, S12-E11-6, S12-E11-7, S12-E11-8, S12-E11-9, S12-E11-10, S12-E11-11, S12-E11-12, S12-E11-13, S12-E11-14, S12-E11-15, S12-E11-16

S12-E12-11, S12-E12-15, S12-E12-16

S12-E13-9, S12-E13-10, S12-E13-11, S12-E13-13, S12-E13-14, S12-E13-15, S12-E13-16

S12-E14-13

S13-E11-1, S13-E11-2, S13-E11-3, S13-E11-4, S13-E11-5, S13-E11-6, S13-E11-7, S13-E11-8, S13-E11-9, S13-E11-10, S13-E11-11, S13-E11-12, S13-E11-14, S13-E11-15, S13-E11-16

S13-E12-1, S13-E12-2, S13-E12-3, S13-E12-4, S13-E12-5, S13-E12-6, S13-E12-7, S13-E12-8, S13-E12-9, S13-E12-10, S13-E12-11, S13-E12-12, S13-E12-13, S13-E12-14, S13-E12-15, S13-E12-16

S13-E13-1, S13-E13-2, S13-E13-3, S13-E13-4, S13-E13-5, S13-E13-6, S13-E13-7, S13-E13-8, S13-E13-9, S13-E13-10, S13-E13-11, S13-E13-12, S13-E13-13, S13-E13-14, S13-E13-15, S13-E13-16

S13-E14-1, S13-E14-2, S13-E14-5, S13-E14-6, S13-E14-7, S13-E14-9, S13-E14-10, S13-E14-11, S13-E14-13, S13-E14-14, S13-E14-15

S14-E12-1, S14-E12-2, S14-E12-3, S14-E12-4, S14-E12-7, S14-E12-8, S14-E12-12

S14-E13-1, S14-E13-2, S14-E13-3, S14-E13-4, S14-E13-5, S14-E13-6, S14-E13-7, S14-E13-8, S14-E13-9, S14-E13-10, S14-E13-11, S14-E13-12, S14-E13-13, S14-E13-14, S14-E13-15, S14-E13-16

S14-E14-1, S14-E14-2, S14-E14-3, S14-E14-5, S14-E14-6, S14-E14-7, S14-E14-9, S14-E14-10, S14-E14-11, S14-E14-13, S14-E14-14, S14-E14-15

S15-E13-2, S15-E13-3, S15-E13-4, S15-E13-7, S15-E13-8, S15-E13-12

S15-E14-1, S15-E14-2, S15E-14-3, S15-E14-4, S15-E14-5, S15E-14-6, S15-E14-7, S15-E14-9

(Code 1968, § 30-11.1; Ord. No. 80-2297, § 1, 7-15-80; Ord. No. 97-115, § 1, 1-29-97; Ord. No. 03-1160, § 1, 11-25-03)

Sec. 31-12. Same—West Clear Lake Field.

The well spacing provisions of this chapter shall not apply to the West Clear Lake Field, which consists of the following described forty-acre oil drilling blocks or units:

S9-E15-11, S9-E15-12, S9-E15-E14, S9-E15-15, S9-E15-16

S9-E16-9, S9-E16-10, S9-E16-13, S9-E16-14, S9-E16-15

S10-E15-2, S10-E15-3, S10-E15-4, S10-E15-6, S10-E15-7, S10-E15-8, S10-E15-10, S10-E15-11, S10-E15-12, S10-E15-14, S10-E15-15, S10-E15-16

S10-E16-1, S10-E16-2, S10-E16-3, S10-E16-4, S10-E16-5, S10-E16-6, S10-E16-7, S10-E16-8, S10-E16-9, S10-E16-10, S10-E16-11, S10-E16-12, S10-E16-13, S10-E16-14, S10-E16-15, S10-E16-16

S10-E17-5, S10-E17-9, S10-E17-13

S11-E15-2, S11-E15-3, S11-E15-4, S11-E15-6, S11-E15-7, S11-E15-8, S11-E15-10, S11-E15-11, S11-E15-12, S11-E15-15, S11-E15-16

S11-E16-1, S11-E16-2, S11-E16-3, S11-E16-4, S11-E16-5, S11-E16-6, S11-E16-7, S11-E16-8, S11-E16-9, S11-E16-10, S11-E16-11, S11-E16-12, S11-E16-13, S11-E16-14

S11-E17-1, S11-E17-5

S12-E15-4, S12-E15-8

S12-E16-1
(Code 1968, § 30-11.2; Ord. No. 80-2297, § 2, 7-15-80)

Sec. 31-13. Effect of ineffectiveness of chapter as to part of regulated area.

Should this chapter for any reason be ineffective as to any part of the regulated area, such ineffectiveness as to any such part or parts of the regulated area shall not affect the effectiveness of this chapter as to all the remainder of the regulated area.
(Code 1968, § 30-12)

Sec. 31-14. Application to Addicks and Barker Reservoirs.

The provisions of this chapter shall not apply to any federally-owned surface estate nor to any mineral interest underlying such federally-owned surface estate situated in the Addicks and Barker Reservoirs and condemned or purchased by the federal government in the Addicks and Barker Dams area of Harris County, Texas.
(Code 1968, § 30-13; Ord. No. 80-2862, § 1, 9-24-80; Ord. No. 81-971, § 1, 5-19-81)

Secs. 31-15—31-22. Reserved.

ARTICLE II. PERMIT

Sec. 31-23. Required.

(a) It shall be unlawful and an offense for any person, acting either for himself or as agent, employee, independent contractor, or servant of any other person, to commence to drill, or to operate any oil or gas well within the regulated area of the city, or to work upon or assist in any way in the prosecution or operation of any such well, without a permit for the drilling and operation of such well having first been issued in accordance with the provisions of this article.

(b) In the event a well is completed in one or more oil zones and one or more gas zones through the one-well bore, a permit must be secured from the city for both an oil well and a gas well.

(c) In the event a well is drilled under an oil well drilling permit and the permittee for any reason wishes to complete the well as a gas well, he must first secure a gas well drilling permit.

(d) In the event a well is drilled under a gas well drilling permit and the permittee for any reason wishes to complete the well as an oil well, he must first secure an oil well drilling permit.
(Code 1968, § 30-23)

Sec. 31-24. Application generally; filing fee.

(a) Any person desiring to drill, complete and operate a well for oil or gas within the regulated area of the city shall present an application in duplicate therefor to the building official which application shall be in writing, addressed to the mayor, be signed by the applicant or some person duly authorized to sign the same for the applicant, and shall state:

(1) The date of the application.

(2) The name and address of the applicant and, if the applicant is a corporation, the state of incorporation, and if applicant is a partnership, the names and addresses of the general partners.

(3) The number of the drilling unit, the particular lot and block number or tract in the drilling unit on which the proposed well is to be located and the exact location of the proposed well by Lambert Coordinates.

(4) The type of the well, whether oil or gas, and the proposed depth of the well.

(5) The proposed complete casing program of the well.

(6) The exact and correct number of square feet in the drilling unit over which the applicant has control of oil rights or gas rights.

(b) Attached to the application for such permit shall be:

(1) A plat prepared by a duly licensed surveyor showing the exact location of the proposed well with respect to the drilling unit boundaries and with respect to the boundaries of the lot or block on which the applicant has secured the rights from the owner to drill; designation of lots, blocks, or tracts owned or controlled by the applicant within the drilling unit, and the distances from the well location to all parks, streets, alleys or other public property, residences, commercial buildings and structures situated within 400 feet of the well location.

(2) A copy of Railroad Commission Form 1.

(c) Each application shall be accompanied by the filing fee stated for this provision in the city fee schedule, paid in the form of a cashier's check made payable to the city.

(d) Each application shall be filed by the building official and kept as a part of the public records of the city.
(Code 1968, § 30-24; Ord. No. 90-635, § 67, 5-23-90; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 31-25. Notice of application.

Notice of the filing of each application for a permit under this article shall be given by the applicant to each owner and lessee of lots, blocks and tracts within the drilling unit described in the application not owned by or under lease to the applicant as such ownership is disclosed by the deed records of the county in which the property is located. Such notice shall be in words and figures, as follows:

> "Notice is hereby given that _____, acting under and pursuant to the terms and provisions of Chapter 31 of the Code of Ordinances, City of Houston, Texas, and any and all ordinances amendatory thereof, did on the ____ day of _____, 20____, file with the Director of Houston Public Works an application to drill, complete and operate a well for oil (or gas) upon Lot No. ____, Block No. ____ (or other appropriate description), City of Houston, Texas, as per map of record in Volume ____, Page ____, Plat Records of _____ County, Texas, in Drilling Unit No. ____ and located by Lambert Coordinates for the South Central Zone of Texas at the intersection of X = ____ and Y = ____."

At least ten days prior to the granting or refusal of an application, a copy of such notice shall be mailed by registered mail, at the expense of the applicant, addressed to the last known address of each owner and lessee of lots, blocks and tracts in the drilling unit not owned by or under lease to the applicant; and a copy of such notice shall be published, at the expense of the applicant, in every issue of a daily newspaper of the city for ten days prior to the date of the granting or refusal of such application. Proof of such publication shall be made by the printer or publisher of the newspaper by affidavit filed with the building official and shall be prima facie evidence of such publication. The applicant shall file with the building official an affidavit showing the name and last known address of each owner and lessee of lots, blocks and tracts to whom notice is required to be given and the names of each owner and lessee of lots, blocks and tracts to whom notice is required to be given and whose addresses are unknown to the applicant.
(Code 1968, § 30-25; Ord. No. 90-635, § 68, 5-23-90; Ord. No. 93-514, § 46, 5-5-93; Ord. No. 98-613, § 56, 8-5-98; Ord. No. 04-1015, § 18, 9-27-04; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 31-26. Applicant's bond.

(a) If the issuance of a permit under this article is authorized, the same shall not be issued until the applicant files with the building official a bond, executed by the permittee as principal and by a good and sufficient corporate surety company licensed to do business in state as surety, and whose name appears on the

current list published by the United States Treasury Department of accepted sureties on federal bonds, conditioned that the principal obligor will drill and operate the well in strict accordance with the terms of this chapter, and that the principal will remedy any and all damages to streets, curbs, gutters, water lines, fire hydrants and other public property, occasioned in any manner by his drilling of the well. Such bond shall inure to the benefit of the city, shall be in a form to comply herewith, and shall be in the amount of $50,000.00, and shall be approved by the city attorney. A permittee shall not be required to post additional bond if he has approved bonds on file with the city as required by this section totaling $100,000.00.

(b) If the issuance of a permit to operate a well currently producing oil or gas after all drilling operations have ceased is authorized, the same shall not be issued until the applicant files with the building official a bond in the amount of $15,000.00 in accordance with and for the purposes set out in subsection (a) above, except that said security may be in the form of a bond, letter of credit, or other acceptable security approved by the building official and the city attorney. A permittee shall not be required to post additional bond if he has approved bonds or other security on file with the city as required by this section totaling $30,000.00. Any permittee who initially posted a $50,000.00 bond, and whose well is in the producing stage and all drilling operations have ceased, may submit an application to the building official in accordance with section 31-24 to reduce the existing $50,000.00 bond to comply with the lower security provisions of this subsection.

(c) Failure to keep the bond or alternative security in full force and effect, in accordance with the terms hereof, shall cause a revocation of the permit and shall be unlawful.
(Code 1968, § 30-26; Ord. No. 88-1506, § 1, 9-14-88; Ord. No. 90-635, § 67, 5-23-90)

Sec. 31-27. Release from bond.

(a) The Director of Houston Public Works or any assistant director of Houston Public Works is hereby authorized upon request of the surety to release the surety on the bond required herein from future liability on such bond upon the conditions hereinafter provided and as further limited by subsection (b) hereof:

(1) If the permit has terminated and become inoperative as herein provided.

(2) If the permittee has filed with the Director of Houston Public Works notice of his intention to surrender his permit and abandon the premises covered thereby.

(3) After receipt of written notice from the surety advising of cancellation no sooner than 15 days after being mailed or delivered to the city.

(b) Such release of future liability shall in no manner impair any liability which may have accrued prior to the release of future liability herein authorized. Such release shall not be issued until the permittee shall have first complied with all requirements of this chapter relating to the abandoning and plugging of a well. The bond shall be retained by the city in its custody and will not be returned to the surety.
(Code 1968, § 30-26.1; Ord. No. 68-731, § 1, 5-7-68; Ord. No. 90-635, § 69, 5-23-90; Ord. No. 93-514, § 47, 5-5-93; Ord. No. 98-613, § 57, 8-5-98; Ord. No. 04-1015, § 19, 9-27-04; Ord. No. 2018-11, §§ 22, 49, 1-10-2018)

Sec. 31-28. Applicant's liability insurance.

(a) No permit shall be issued under this article until the applicant has filed with the building official a memorandum copy or certificate of a policy of public liability and property damage insurance, issued by an insurance company authorized to do business in the state, to be approved by the city attorney, the amount of which policy for liability for bodily injury or death of one person shall not be less than $100,000.00, and for any one accident, not less than $300,000.00, and the amount of such policy for damage to property of others shall not be less than $100,000.00. The terms and conditions of such policy covering such operations are to be such as to insure persons against loss by liability imposed by law by reason of any accidental personal injury or death to any person other than the insured or his employees, or by reason

of any such loss or damage to property of any person other than the insured or his employees. Each policy of insurance shall contain a provision obligating the insurer to give the city council written notice of cancellation not less than 15 days prior to the date of cancellation. The applicant shall, upon request of the building official, submit the original or a certified copy of any policy for inspection at any time.

(b) Irrespective of the requirements as to insurance to be carried, the insolvency, bankruptcy or failure of any insurance company carrying insurance for any applicant or permittee hereunder, or the failure of any such company to pay claims accruing shall not be held to waive any of the provisions of this chapter. The applicant shall pay promptly all premiums for such insurance in strict accordance with his obligations to his carrier and maintain the above described coverage in full effect so long as the permit is valid and alive.

(c) Failure to keep such policy in full force and effect, in accordance with the terms hereof, shall be unlawful.
(Code 1968, § 30-27; Ord. No. 90-635, § 67, 5-23-90)

Sec. 31-29. Supplemental permit to deepen well.

Once any well has either been completed as an oil or gas producer or abandoned as a dry hole, it shall be unlawful for any person to drill such well to a greater depth than that reached in the prior drilling operations without the permittee, as to such well, obtaining a supplemental permit after filing a supplemental application with the building official specifying:

(1) The then condition of the well and the casing therein.

(2) The depth to which it is proposed such well be deepened.

(3) The proposed casing program to be used in connection with proposed deepening operations.

In any deeper drilling or any deeper completion, or any deeper production operations, the permittee shall comply with all other provisions contained in this chapter and applicable to the drilling, completion and operation of a well or wells, but no additional filing fee shall be required.

Each supplemental application shall be kept as a part of the public records of the city.
(Code 1968, § 30-28; Ord. No. 90-635, § 67, 5-23-90)

Sec. 31-30. Issuance or denial generally.

If, after an application or supplemental application is filed pursuant to this article, it is found by the building official to comply in all respects with the terms of this chapter, and the drilling and operation or deepening and operation of a well is not prohibited by the terms of this chapter, the building official shall issue a permit for the drilling and operation or deepening and operation of the well applied for. The granting and issuance of a permit for a well on a drilling unit shall automatically operate as a rejection and denial of all other pending applications for a well or wells to be completed upon the drilling unit involved, or any portion or portions thereof.

In the event the building official should deny the applicant a permit to drill or deepen a well, an appeal to the city council may be made by such applicant by filing written notice of appeal with the city council. Such appeal shall be heard by the city council within thirty (30) days after the filing date.
(Code 1968, § 30-29; Ord. No. 90-635, § 67, 5-23-90)

Sec. 31-31. Conditions to issuance when applicant does not own or have lease or contract for entire drilling unit.

(a) In the event an application for a permit for the drilling, completion and operation of a well, either for oil or gas, shall be made by any person not owning or holding leases of oil or gas rights, or drilling contracts from the owners of all lots, blocks or parcels of land included in or embraced within a drilling unit, a permit shall be issued to such applicant, his heirs, successors and assigns, only upon the following conditions, in addition to such other conditions as may be provided for in other sections of this chapter: The permittee

shall be free to enter into such contracts and agreements with the owners of such other lots, blocks or tracts as he may be able to make. If agreements are not reached with all owners of lots, blocks and tracts within the drilling unit, then the owner or owners of any given lot or lots, block or blocks, tract or tracts shall have the right or option, by notice to the permittee given in writing within 30 days after the issuance of a permit for a well on the drilling unit involved, either:

(1) To treat his interest as a working interest and contribute toward the actual cost and expense of drilling, completing and operating the well with all necessary appurtenances currently each month in the proportion that the number of square feet in area owned by him in the drilling unit bears to the total number of square feet embraced in the unit, and thereupon receive the same proportion of the oil produced and saved from such well, or its value at the well, at the option of the permittee, and a like proportion of natural gas produced, saved and utilized or sold, or the value of same at the well, at the option of the permittee; or

(2) To treat his interest as a royalty interest and receive, delivered free of cost in the pipeline to which the well may be connected, a share of all oil produced and saved from such well equal to one-eighth of the proportion of the whole quantity of oil and casinghead gas so produced and saved that the number of square feet in the area owned by him bears to the total number of square feet in such drilling unit, or at the election of the permittee, to receive such proportion of the value at the well of the oil so produced, and to receive a like proportion of the gas and casinghead gas produced, saved and utilized or sold, or at the election of the permittee, the market value at the well of such proportion of gas or casinghead gas produced and sold or used off the premises, or, for gas sold at the well, such proportion of the amount realized from such sale.

If any owner does not exercise the right and option above provided, and give notice to the permittee within the period above provided, the obligation shall then be upon the permittee, his heirs, successors and assigns, to make settlement with such owner on the terms provided in option (2) above, providing for the payment of a one-eighth royalty. If the owner of a lot, block, or tract shall exercise option (1) above and treat his interest as a working interest, as therein provided, the permittee shall be entitled to reimburse himself for such owner's proportionate part of the costs out of such owner's proportionate part of the oil, gas and casinghead gas, or the value thereof, before making deliveries of products or settlement for the value thereof. If option (1) is exercised by the owner of any lot, block or tract, such owner shall, within the time provided for notice of his election above set forth, file with the building official a bond or other obligation executed by such owner as principal and by an authorized surety company as surety, in which such principal and surety agree, bind and obligate themselves to pay to the permittee, his heirs, successors and assigns, currently each month, that proportion of the actual and necessary costs and expenses involved in the drilling, completion and operation of such well that the number of square feet embraced within the lot, block or tract of such owner bears to the total number of square feet in such drilling unit, such bond to be approved by the city attorney and held by the building official for the benefit of the beneficiaries therein. Permits shall be issued in all such cases and shall be subject to the provisions of section 31-35 and upon the condition that the permittee, his heirs, successors and assigns, shall make settlement in accordance with the provisions hereof.

(b) The interests of persons other than the permittee who hold oil and gas leases or equivalent contracts, in any drilling unit, shall be treated as part of the total working interest of the drilling unit, and such other persons holding such interests shall each make the following election with the permittee within 30 days from the date of the issuance of a permit with respect to a drilling unit, either:

(1) Agree in writing with the permittee to contribute their share of all costs and

expenses, properly allocated to the well and drilling unit by the permittee in accordance with accepted accounting practice, currently each month in the proportion that the number of square feet in the area held by them or each of them in the drilling unit bears to the total number of square feet embraced in the unit, and within said thirty-day period, execute and file with the building official a bond with an authorized surety company as surety in an amount representing that portion of the estimated maximum cost of the well that the area of land held in fee simple under lease or other contract by the principal bears to the whole area of the drilling unit, conditioned that the principal in the bond will pay to the permittee and his assigns such proportion of the cost of drilling and operating the well, from time to time, as required in the drilling and operation thereof, such bond to be approved by the city attorney and held by the building official for the benefit of all persons interested; and thereupon such persons so acting shall be entitled to participate in the total working interest under the unit; and such persons so acting shall have the right, upon reasonable notice given to the permittee, upon the furnishing of storage tanks or facilities for handling the same, and upon the payment of or securing the payment of their share of the royalty interests and any overriding royalty or oil payment interests thereon, to receive in kind their proportionate share of oil and gas produced and saved from the well in the drilling unit and allocated to the working interest of the well; or,

(2) If such other persons, or any one or more of them, fail to elect under (1) above within such 30-day period, then he or they shall be deemed to have elected to agree that the permittee shall be entitled to reimburse himself currently each month from such other persons' proportionate share of the proceeds of sale or production in kind for twice the amount of such other persons' proportionate part of the costs and expenses as set out in option (1) above.

The permittee and such other persons, or any one or more of them, shall be able to alter the obligations as set out in this section by an agreement made by them in writing; provided such agreement is not repugnant to other rules and regulations set out in this chapter.
(Code 1968, § 30-30; Ord. No. 90-635, § 67, 5-23-90)

Sec. 31-32. Issuance in case of more than one application for same drilling unit.

In case there are applications filed with the building official and pending at the same time, for permits to drill a well in any one drilling unit, by more than one applicant, that application shall be granted, if otherwise sufficient, which shall be made by the person holding the greater area of the land within the drilling unit by ownership in fee, or by a lease or other contract with the owner or owners, permitting the drilling thereon for oil or gas, provided, however, that this section shall not apply to the fields exempted from the well spacing provisions of article I of this chapter.
(Code 1968, § 30-31; Ord. No. 80-2296, § 2, 7-15-80; Ord. No. 90-635, § 67, 5-23-90)

Sec. 31-33. Contents; signing; effect.

Each permit issued under this article shall:

(1) By reference have incorporated therein all provisions of this chapter with the same force and effect as if this chapter were copied verbatim in the permit.

(2) Specify definitely the location of the well and the number of the drilling unit in which the well is to be located.

(3) Specify that drilling shall begin within 90 days from the date of the permit or the permit shall be forfeited; provided, however, such forfeiture shall not affect the right of the applicant to apply for another permit.

(4) Specify that such permit shall remain in full force and effect until the well is abandoned.

Such permit, in duplicate originals, shall be signed by the building official and, prior to delivery to the permittee, shall be signed by the permittee. One original of the permit duly executed, shall be delivered to the permittee and one original of the permit, duly executed, shall be retained and filed by the building official, and, when so filed, shall constitute the permittee's drilling and operating license and the contractual obligations of the permittee to comply with the terms of such permit, of the required bond and of this chapter.
(Code 1968, § 30-32; Ord. No. 90-635, § 67, 5-23-90)

Sec. 31-34. Permit not required for remedial well work operations.

Any person operating any well for oil or gas within the corporate limits of the city may perform any remedial well work operations, except drilling deeper, without a prior permit, provided the operator complies with all safety rules set forth in this chapter and no additional filing fees will be required for such work.
(Code 1968, § 30-33)

Sec. 31-35. Article does not authorize trespass or affect owner's right of contract.

Neither this article nor any permit issued hereunder shall be interpreted to grant any right or license to the permittee to enter upon, use or occupy in any respect for the drilling or operation of any well on any surface land except by the written contract of the surface owner, unless the permittee obtained such right in an oil and gas lease, or other contract; nor shall it limit or prevent the free right of the owner to contract for the amount of damages, rights or privileges with respect to his own land and property.
(Code 1968, § 30-34)

Sec. 31-36. Exemptions from certain requirements.

Any applicant for an oil or gas well permit in a field as described in sections 31-7, 31-8, 31-9, 31-10, 31-11 or 31-12 of this Code, or any other producing oil or gas field hereafter exempted from the well spacing provisions of Article I of this chapter, shall hereafter also be exempt from the provisions of sections 31-25 and 31-31 of this Code; provided, however, that any remaining portion of a city-designated drilling block or unit, not included in a producing oil or gas field exempt from said well spacing provisions and from sections 31-25 and 31-31, shall have the same rights as if no portion of said block or unit fell within such exempt field.
(Code 1968, § 30-35; Ord. No. 80-2296, § 1, 7-15-80)

Secs. 31-37—31-44. Reserved.

ARTICLE III. DRILLING AND OPERATING RULES

Sec. 31-45. Compliance with article.

All persons engaged in the drilling and operation of oil and/or gas wells within the corporate limits of the city shall comply with the rules and regulations prescribed by this article.
(Code 1968, § 30-45)

Sec. 31-46. Installation of pipelines on, under, etc., public property.

In order to enable the holder of each permit to move oil, gas, water or other products to or from each drilling unit within the city limits, the holder of each permit issued under this chapter for the drilling and operation of a well for oil or gas in the city shall apply to the city council for an easement on, over, under, along or across the city streets, sidewalks, alleys and other city property for the purpose of constructing, laying, maintaining, operating, repairing, replacing and removing pipelines so long as production or operations may be continued under any permit issued pursuant to this chapter; provided, however, such permittee shall:

(1) Not interfere with or damage existing water, sewer or gas lines or the facilities of public utilities located on, under or across the course of such rights-of-way.

(2) Furnish to the Director of Houston Public Works of the city a plat showing the location of such pipelines.

(3) Construct such lines or cause same to be constructed out of new or reconditioned pipe in accordance with provisions of article VIII of chapter 40 of this Code, and properly cased and vented if under a street.

(4) Grade, level and restore such property to the same surface condition, as nearly as practicable, as existed when operations for the drilling of the well were first commenced.

(Code 1968, § 30-46; Ord. No. 90-635, § 70, 5-23-90; Ord. No. 93-514, § 48, 5-5-93; Ord. No. 98-613, § 58, 8-5-98; Ord. No. 04-1015, § 20, 9-27-04; Ord. No. 2018-11, § 49, 1-10-2018)

Cross reference—Pipelines along, under or across streets, etc., § 40-228 et seq.

Sec. 31-47. Reserved.

Editor's note—Ord. No. 04-498, § 7, adopted May 26, 2004, repealed § 31-47 in its entirety. Formerly said section pertained to obstructing streets or alleys and derived from Code 1968, § 30-47.

Sec. 31-48. Letters relative to fresh water sands required prior to drilling.

Before drilling and setting casing in any well for oil or gas within the corporate limits of the city, the permittee must contact the Director of Houston Public Works and the state board of water engineers and obtain letters stating where the fresh water sands are to be found in the area or field in which the well is to be drilled. A copy of the state board of water engineers' letter must be filed with the utility official and the permittee must set sufficient surface casing as required. Failure to file a copy of the state board of water engineers' letter shall be unlawful and shall be punishable as such.

(Code 1968, § 30-48; Ord. No. 90-635, § 71, 5-23-90; Ord. No. 93-514, § 49, 5-5-93; Ord. No. 98-613, § 59, 8-5-98; Ord. No. 04-1015, § 21, 9-27-04; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 31-49. Permitted hours for delivery or removal of material, equipment, etc.

Material, equipment, tools or pipe used for either drilling or producing operations at the well shall not be delivered to or removed from the well site except between the hours of 7:00 a.m. and 7:00 p.m. of any day, except in case of emergency.

(Code 1968, § 30-49)

Sec. 31-50. Derrick and rig.

It shall be unlawful for any person to use or operate, in connection with the drilling or re-working of any well within the city limits, any wooden derrick or steam powered rig, or to permit any drilling rig or derrick to remain on the premises or drilling site for a period longer than 60 days after completion or abandonment of the well. All engines shall be equipped with effective mufflers.

(Code 1968, § 30-50)

Sec. 31-51. Drilling fluid.

No well shall be drilled or re-worked in the city without the bore hole at all times being filled with drilling fluid of such weight and viscosity as a reasonably prudent operator would use to keep the well under control at all times.

(Code 1968, § 30-51)

Sec. 31-52. Swabbing operations and drill stem tests.

It shall be unlawful for any person, in connection with the drilling or re-working operations of any well within the city, to conduct any swabbing operations or to take and to complete any drill stem test except during daylight hours. Drill stem tests may be conducted only if the well effluent during the test is produced through an adequate oil and gas separator to storage tanks, and the effluent remaining in the drill pipe at the time the tool is closed is flushed to the surface by circulating drilling fluid down the annulus and up the drill pipe.

(Code 1968, § 30-52)

Sec. 31-53. Casing.

(a) The operator of any well in any field or area within the city, shall be required to set and cement a sufficient amount of surface casing to properly protect all fresh water sands as specified by the state board of water engineers and the Director of Houston Public Works for the particular area or field. The surface casing shall be of new or reconditioned casing and shall be set and cemented in accordance with the rules, regulations and orders of the state railroad commission for the field or area in which the well is to be drilled. Cementing shall be by the pump and plug method and sufficient cement shall be used to fill the calculated annular space back of the casing to the surface of the ground and the cement shall be allowed to stand for a period of 12 hours before drilling plug.

(b) In lieu of setting the full amount of surface casing required to protect fresh water sands, the permittee may use the multi-stage cementing process. In using the multi-stage cementing process, sufficient cement shall be used in the stage cement job that is equivalent to the volume of the annulus from the cementing tool to the surface of the ground. Should the cement not reach the surface of the ground, a temperature survey must be conducted and if the survey shows that the top of the cement is less than one-third of the distance from the shoe of the surface casing to the surface, then corrective measures must be taken. Any permittee using the multi-stage process must file with the utility official a copy of the state railroad commission letter granting such permit and an affidavit from the company performing the cementing. Failure to file either of these shall be unlawful and shall be punishable as such.

(c) In any well drilled in any field or area within the city, the producing string of casing shall be of new or reconditioned pipe which has been tested and withstood the maximum anticipated pressures to be encountered. Cementing shall be by the pump and plug method and sufficient cement shall be used to fill the calculated annular space back of the casing to a point at least 600 feet above the shoe or the highest productive zone, whichever is applicable, and the cement shall be allowed to stand for a period of 12 hours before drilling plug. After cementing, the casing shall be tested at a pressure in pounds per square inch calculated by multiplying the length of the producing string by two-tenths, being the maximum test pressure required. If at the end of 30 minutes the pressure shows a drop of ten percent or more of the above required test pressure, the casing shall be condemned. After corrective operation, the casing shall again be tested in the same manner.
(Code 1968, § 30-53; Ord. No. 90-635, § 72, 5-23-90; Ord. No. 93-514, § 50, 5-5-93; Ord. No. 98-613, § 60, 8-5-98; Ord. No. 04-1015, § 22, 9-27-04; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 31-54. Blowout preventers.

Two dual controlled, fluid operated blowout preventers with working pressures equal to the maximum anticipated wellhead pressures shall be used for all drilling or completion operations involving the use of drill pipe or tubing after the surface casing has been set. The mechanical operation of the preventers shall be checked every 24 hours and shall be tested with pump pressure with enough frequency to insure good working order at all times.
(Code 1968, § 30-54)

Sec. 31-55. Christmas tree fittings and wellhead connections.

All completed wells within the city shall be equipped with Christmas tree fittings and wellhead connections, with a rated working pressure equal to or greater than the surface shut-in pressure of the well. All wellhead connections shall be assembled and tested prior to installation by a fluid pressure which shall be equal to the test pressure of the fitting employed.
(Code 1968, § 30-55)

Sec. 31-56. Flaring and burning of escaping gas.

No person engaged in drilling or operating any well shall permit gas to escape or be vented into the air unless such gas is flared and burned. All gas flared or burned from a torch, pipe or other burning device within the city must be

done in such manner so as not to constitute a fire hazard to any property, and the location of the torch, pipe or other burning device and the construction, maintenance and operation thereof shall at all times be in full compliance with such regulations as may from time to time be issued by the fire marshal of the city.
(Code 1968, § 30-56)

Sec. 31-57. Disposal of salt water and other impurities.

Any person drilling or operating a well for oil or gas shall make adequate provisions for the disposal of salt water or other impurities which may be produced along with the oil or gas in such a manner as not to contaminate the water supply of the city or destroy vegetation.
(Code 1968, § 30-57)

Sec. 31-58. Escape of waste matter onto adjoining property prohibited.

It shall be unlawful for any person to permit to escape any mud, water, oil, slush or other waste matter related to the drilling or operating of any oil or gas well into any adjoining lots upon which the permittee does not have leases or other contractual rights to use the surface, or upon leases not owned by the permittee, or into the alleys, streets, gutters or sewers of the city.
(Code 1968, § 30-58)

Sec. 31-59. Slush tanks for mud or water.

Only portable steel slush tanks for mud or water shall be permitted in connection with the drilling and re-working operations of any well.
(Code 1968, § 30-59)

Sec. 31-60. Crude oil storage tanks; separators; etc.

It shall be unlawful for any person to use, construct or operate in connection with any producing well within the city limits any crude oil storage tanks except to the extent of two steel tanks for oil storage, not exceeding 500-barrel capacity each, and so constructed and maintained as to be vapor tight and each surrounded with an earthen fire wall at such distance from the tanks as will, under any circumstances, hold and retain at least one and one-half times the maximum capacity of such tank. A permittee may use, construct and operate a steel conventional separator, and such other steel tanks and appurtenances as are necessary for treating oil with each of such facilities to be so constructed and maintained as to be vapor tight. Each oil and gas separator shall be equipped with both regulation pressure relief safety valve and a bursting head.
(Code 1968, § 30-60)

Sec. 31-61. Equipment for secondary recovery, pressure maintenance or automatic lease operations.

Any person may install equipment for the purpose of secondary recovery or pressure maintenance operations or for automatic lease operations provided such person complies with all safety requirements of this chapter and of the state railroad commission.
(Code 1968, § 30-61)

Sec. 31-62. Fired vessel or open flame prohibited near well or storage tank.

It shall be unlawful for any person within the corporate limits of the city to install any fired vessel or open flame nearer than 150 feet to any well or storage tank.
(Code 1968, § 30-62)

Sec. 31-63. Fencing.

All wellheads, tank batteries, pumping units and equipment appurtenant thereto within the city, which are located within a densely populated area or nearer than 100 feet to a public street shall be adequately protected by a fence so constructed that it will prevent easy entry. Any wellhead, tank battery, pumping units or equipment appurtenant thereto which is located on any lease, tract or farm, which is fenced in its entirety, will require no additional protection other than that commonly used by prudent operators. Fences to prevent easy entry shall be approved by the building official.
(Code 1968, § 30-63; Ord. No. 90-635, § 67, 5-23-90)

Sec. 31-64. Maintenance of premises.

The premises shall be kept in a clean and sanitary condition, free from rubbish of every character, at all times during the drilling operations and as long thereafter as oil and/or gas is being produced therefrom. All of the permittee's premises shall be kept clear of high grass, weeds and combustible trash or any other rubbish or debris that might constitute a fire hazard within a radius of 100 feet around any oil tank or tanks, or producing wells, or to the limits of the premises, whichever is the lesser.
(Code 1968, § 30-64)

Sec. 31-65. Prime movers.

No prime movers shall be permitted within the corporate limits of the city for the purpose of pumping wells, except electric motors.
(Code 1968, § 30-65)

Sec. 31-66. No smoking signs.

Printed signs reading "DANGER, NO SMOKING ALLOWED" or similar words shall be posted in conspicuous places on each well, storage tank or battery of tanks, within the corporate limits of the city.
(Code 1968, § 30-66)

Sec. 31-67. Abandonment generally.

Whenever any well is abandoned within the city limits it shall be the obligation of the permittee to plug such well in accordance with the rules and regulations of the state railroad commission and to take any and all additional provisions or precautionary measures prescribed by the state or the state railroad commission in connection with abandonment and plugging of the well. It shall be the further obligation of the permittee or the operator of the well to cut the surface casing off at least six feet below the surface of the ground and to place at least a 25 foot cement plug in the top of the casing and to weld the top of the casing completely shut. The resulting hole in the ground must be completely filled to the surface of the ground and duly tamped.
(Code 1968, § 30-67)

Sec. 31-68. Removal of mud and similar materials upon completion or abandonment.

Within 15 days after the completion or abandonment of any oil or gas well, the mud and other similar matter and materials used in connection with the drilling and operations thereon shall be removed from the premises.
(Code 1968, § 30-68)

Sec. 31-69. Violation of state law or rules, regulations, etc., of state or federal regulatory body.

Any violation of the law of the state or any rules, regulations or requirements of any state or federal regulatory body having jurisdiction in reference to drilling, completing, equipping, operating, producing, maintaining or abandoning an oil or gas well or related appurtenances, equipment or facilities, or in reference to fire walls, fire protection, blow-out protection, safety protection or convenience of persons or property, shall also be a violation of this article and shall be punishable as such.
(Code 1968, § 30-69)

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Chapter 32

PARKS AND RECREATION*

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ARTICLE I. IN GENERAL

Sec. 32-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings assigned in this section, except where the context clearly indicates a different meaning:

Department means the parks and recreation department of the city.

Director means the director of the department of parks and recreation of the city or the director's designee.

Members of the public shall include all persons other than (1) those engaged in park maintenance and construction under authority of the city, and (2) officers, employees, and agents of government while engaged in the performance of their duties of employment or office.

Parks means the various properties under the direction, control and supervision of the director pursuant to the authority granted in sections 32-4 and 32-5 of this Code.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-2. Department—Created.

There is hereby created and established the parks and recreation department of the city.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-3. Same—Director generally.

There is hereby created the office of director of the department of parks and recreation of the city. The director shall be the head of the department and shall be appointed by the mayor, subject to confirmation by the city council.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

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*__Editor's note—__Ord. No. 2016-65, § 2(Exh. A), adopted January 20, 2016, amended Ch. 32 in its entirety to read as herein set out. Formerly said chapter pertained to similar subject matter and derived from Code 1968, §§ 31-1—31-172 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

__Charter reference—__Authority of city to own, operate, etc., parks and recreational facilities, Art. II, §§ 4, 7a.

__Cross references—__Convention and entertainment facilities, Ch. 12; Lake Houston, Ch. 23; libraries, Ch. 24; pay toilets in public places, § 28-29; recreational areas in manufactured home parks, § 29-91; recreational buildings in manufactured home parks generally, § 29-117; street dances, § 40-27; speed limit in parks, § 45-93.

Sec. 32-4. General duties of director.

It shall be the duty of the director to direct, control and manage all parks, parkways, esplanades, trails, playgrounds and recreation buildings and other improvements on park and playground property belonging to or under the control of the city and such other grounds as may be placed under his control, from time to time, by the mayor and city council, and to direct the improvement and maintenance of all such properties.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-5. Authority of the director.

(a) The director shall have authority to promulgate written rules and regulations for the administration of the department and for the orderly management and use of parks by the public, provided that such regulations do not conflict with valid laws or ordinances. A copy of such rules and regulations shall be published on the city(s website and maintained for public inspection in the offices of the director and the city secretary.

(b) The director shall be authorized to contract with referees and sports field monitors for athletic contests and instructors for recreation classes. Fees paid to referees, sports field monitors, and recreation instructors shall be approved by the city council. No such referee, sports field monitor, or recreation instructor shall be considered an employee of the city.

(c) From time to time, city council may approve contracts with other entities for the operation or management of various parks or park facilities. These city council approved contracts shall be the governing rules and regulations for the specified parks or park facilities.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-6. Trees, shrubs and plants in public property.

(a) The director shall have authority and jurisdiction over all trees, shrubs and plants of any kind and character that are now or may hereafter be planted on or along the streets or other public places of the city, including all plantings of every kind and character lying outside of the property lines of privately owned property and as prescribed in chapter 33 of this Code.

(b) The director shall have the duty to:

(1) Direct, regulate and encourage the planting, culture and preservation of shade and ornamental trees and plants on the streets and public places of the city;

(2) Direct, regulate and encourage the pruning, spraying, cultivation and maintenance of such trees and plants, and to direct the time and method of pruning and trimming the same;

(3) Remove or cause to be removed any tree or plant, or other obstruction, that in his judgment, would interfere with the development of adjoining trees or plants or with the free use of the streets or sidewalks;

(4) Advise property owners with respect to the kinds of trees to plant or shrubbery desired on the particular street, and the method of planting the same;

(5) Take all such measures as may be deemed necessary or desirable to control all dangerous insects, pests and plant diseases that may affect trees or shrubbery on the streets or other public places in the city;

(6) Devise plans for the planting of trees on and along the streets between the curbs and property lines within the city, where trees may be desirable;

(7) Prescribe the character, kind, size, space and position of all trees so planted on or along public streets or other public places;

(8) Prevent the planting of trees, shrubs or other plants that are not in his judgment desirable; and

(9) Plant or cause to be planted such trees on or along such streets or other public places as the director may deem proper.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-7. Revenues from park operations.

(a) All revenues derived by the city in any manner from park user fees as defined in section 32-69 of this Code and from concession agreements authorized under section 32-8(b) (collectively denoted "park revenues"), except revenues received by the city from city park golf facilities as set out in subsection (b) below, shall be regularly remitted to the city controller with an accounting thereof. Unless otherwise expressly provided by ordinance or state law, park revenues shall be deposited in the parks special revenue fund to be used for repairs, replacement, and renovation of parks' revenue producing facilities, and equipment and for maintenance and operation of parks' revenue producing facilities and activities. By 60 days following the end of each fiscal year, any amount of money in the fund's current fiscal yearend fund balance that is in excess of four months of the average of the previous three fiscal years' audited expenditures less debt from the current fiscal year's ending fund balance, may be appropriated by city council and transferred to the General Fund for general city expenditures, as needed.

(b) Unless otherwise expressly provided by ordinance, 100 percent of the revenues received by the city and derived from all city-owned golf facilities, whether operated by the city or private entities, including all related concession fees, shall be deposited into the parks golf special fund to be used exclusively for the maintenance, operation and improvements of any or all of such golf facilities.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2018-366, § 2, 5-2-2018; Ord. No. 2019-447, § 3, 6-12-2019)

Sec. 32-8. Concessions in parks.

(a) Except as otherwise specifically authorized in this Code, no person shall have the right to offer or promote anything for sale or barter, or to exhibit anything, or to conduct any amusement, recreational activity, sports event, or other business for which any participation or admission fee is charged or revenue is otherwise derived, within any park without first obtaining the written consent of the director as provided in this section.

(b) Consent, for the purpose of subsection (a) of this section, may be granted in writing by the director upon receipt of uniform standard fees, conditions and consent forms adopted therefor pursuant to section 32-69 of this Code, if the right is nonexclusive and of six months' duration or less. Any other consent shall be effective only if granted by an express written contract therefor which has been executed by the mayor pursuant to an ordinance of the city specifically authorizing the execution thereof.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-9. Certain facilities to be managed by houston first corporation.

The city facilities known as Fish Plaza, Jones Plaza, Miller Outdoor Theater, Sesquicentennial Parks I and II, Sweeney Clock Triangle and Root Memorial Square shall be managed by Houston First Corporation. The provisions of this chapter shall be applicable to these facilities to the extent that they may constitute parks, but any duties and responsibilities placed upon the department and its director and employees hereunder shall, with respect to these facilities, be instead performed by Houston First Corporation. Nothing in this section shall be construed to affect the status of these facilities, and their mention in this section shall not be construed to dedicate the facilities as parks if they have not already been so dedicated.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-10. Maintenance or adoption of natural areas.

Any person desiring to maintain a "natural area," as provided in section 10-451(b)(10) of this Code, whether situated in a park or not, or desiring to adopt such an area that is located in a park, parkway, trail, esplanade, playground, or other property belonging to or under the control of the city, shall submit an application to the director, and obtain a permit for that purpose. As authorized in section 32-5 of this Code, the director shall promulgate rules and regulations for natural areas, which shall include, but not be limited to, permit procedures, a list of unacceptable plants, and maintenance requirements.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-11. Off-leash dog recreation areas.

(a) The director is authorized to designate parks or portions of parks as off-leash dog recreation areas in which persons may allow unleashed dogs to be at large. The director may promulgate rules and regulations as provided in section 32-5 of this Code for the operation of off-leash dog recreation areas, provided that any such regulations shall be reviewed and countersigned by the director of the department of administration and regulatory affairs with respect to animal regulation and care issues, including but not limited to:

(1) Security measures to assure that the unleashed dogs remain contained within the dog recreation area;

(2) Control of noise and other potential nuisances that might affect nearby land uses;

(3) Parasite control;

(4) Feces control within the dog recreation area and feces runoff from the dog recreation area; and

(5) Provisions for the exclusion of dogs that do not participate in compliance with the applicable regulations or that demonstrate aggressive behavior towards other dogs or persons.

(b) Dogs within off-leash dog recreation areas shall not be subject to impoundment for being or running at large as otherwise provided in chapter 6 of this Code provided that such dogs, while in the designated off-leash dog recreational areas, must remain under the immediate personal supervision and command of their owner or handler. It is a defense to prosecution under any provision of chapter 6 of this Code relating to being or running at large of a dog that the dog and its owner or handler were in a designated off-leash dog recreation area of a park.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Secs. 32-12—32-24. Reserved.

ARTICLE II. USE OF PARKS

Sec. 32-25. Alcohol.

The director may promulgate rules and regulations as provided in section 32-5 of this Code relating to the possession or consumption of any alcoholic beverages while in the parks. Nothing in this section limits the director's authority to promulgate rules and regulations relating to the sale or distribution of alcoholic beverages by city-authorized vendors, park permittees, and concessionaires operating within the parks.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-26. Playing of musical instruments.

Without the express written permission of the director, it shall be unlawful for any person to play any musical instrument or use any sound amplification equipment in violation of the applicable provisions of chapter 30 of this Code within the parks other than for his own enjoyment, provided that such person shall not thereby encroach upon the use and enjoyment of the parks by others.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-27. Glass bottles and containers prohibited.

Without the express written permission of the director, it shall be unlawful for any person to bring into or upon the parks, or have in his possession while therein or thereupon any glass receptacle, including but not limited to, glass bottles, glass jars, drinking glasses and glass containers of any kind. This provision shall not apply to baby bottles, baby food jars, glass lined vacuum bottles and glass lined picnic beverage coolers.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-28. Camping.

(a) For purposes of this article, the term camp or camping means the erection of a tent or the use of other materials, including but not limited to, sleeping bags, bedrolls, blankets, sheets, tarps, cardboard, or other materials, to provide sleeping quarters for temporary human habitation.

(b) It shall be unlawful for any person to camp in any area of the parks. This section shall not apply to persons camping in areas designated for overnight camping pursuant to rules and regulations promulgated in accordance with section 32-5 of this Code.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-29. Parking and driving vehicles.

(a) It shall be unlawful for any person to park any vehicle on park property except in areas designated for such purpose.

(b) It shall be unlawful for any person to drive or propel any vehicle over or through the parks, except along or upon park roads or to drive or propel along or over any park road any heavily laden vehicle or vehicle carrying merchandise, goods, material or rubbish, or any moving van or truck. This section shall not apply to golf carts operated upon golf course cart paths or bikes and personal assistance mobility devices operated upon designated park roads authorized for such use by the director. For purposes of this subsection, personal assistance mobility device means any mobility device powered by batteries or fuel or other engine that is used by an individual with mobility impairment.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-30. Riding or driving animals.

It shall be unlawful for any person to ride or to drive any horse or other animal over or through the parks, except along and upon the designated bridle paths and driveways.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-31. Injuring, etc., animals, fowl or fish.

It shall be unlawful for any person to tease, annoy, injure, catch, or throw any stone, object or missile of any kind at, or strike with any stick, object or weapon, any animal in the parks.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-32. Erecting structures, bill posting, etc.

It shall be unlawful for any person to place, erect, or attach any structure, sign, bulletin board, post, pole or advertising device of any kind whatever in the parks, or to attach any notice, bill, poster, sign, wire, rod or cord to any tree, shrub, fence, railing, post or structure in the parks unless authorized by rule or regulation promulgated pursuant to section 32-5 of this Code.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-33. Walking, standing or sitting on borders, flower beds, etc.

It shall be unlawful for any person to walk, stand or sit on any border, flower bed, monument, vase, fountain, railing or fence in the parks.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-34. Hunting and firearms.

It shall be unlawful for any person to hunt any animal or shoot, fire, display, or discharge any air-gun, paint-ball gun, pistol, shotgun, rifle, or other firearm or archery arrow in, on, along or across the parks; provided however, the director may authorize hunting for wildlife management purposes in Lake Houston Wilderness Park during designated seasons and times according to state law and the regulations of the Texas Parks and Wildlife Department. The provisions of this section shall not apply to designated target ranges and other areas of the parks approved for such use by the director. The provisions of this section are cumulative of all applicable state laws concerning the regulation of firearms by municipalities.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-35. Fishing.

It shall be unlawful for any person to catch fish within the parks. It shall be an affirmative defense to prosecution under this section that the actor is:

(1) Fishing in an area of Lake Houston, Lake Houston Wilderness Park, Cullinan Park Oyster Creek, or Keith Weiss Park in which fishing is permitted under this Code; or

(2) Twelve years of age or less or 65 years of age or more and is fishing in any body of water which has been designated for fishing by children and elderly persons by regulations promulgated by the director pursuant to section 32-5 of this Code.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-36. Playing baseball, football, etc.

It shall be unlawful for any person to play any game of baseball, football, golf, cricket, lacrosse, polo, soccer, hockey or other game of like character in the parks, except at the places set apart and designated as grounds therefor.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-37. Canoeing or boating on lakes.

(a) It shall be unlawful for any person to place any canoe, kayak, raft, boat, or vessel of any type or description upon the waters of any lake or pond upon the parks except Lake Houston. This section shall not apply to model or toy boats that are not designed or intended for human transportation or to any recreational project sponsored by the department and supervised by its employees or representatives or, in accordance with subsection (b), canoeing or kayaking in Cullinan Park, Lake Houston Wilderness Park, or Keith Wiess Park that is conducted in compliance with the director's rules and regulations.

(b) The director may by rules and regulations adopted under section 32-5 of this Code authorize canoeing for individual and family pleasure in Cullinan Park, Lake Houston Wilderness Park, or Keith Wiess Park. Without limitation, the rules and regulations shall be intended to preserve the park as a place of beauty and peacefulness and shall not authorize motorized canoes or kayaks, canoe or kayak rentals, or concessions or competitive canoeing or kayaking activities.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-38. Compliance with law is condition of use of parks and playgrounds.

(a) Any person may use the parks for any lawful purpose; provided however, the use of the parks shall be subject to compliance with all applicable provisions of this Code and state and federal law.

(b) The director, all other employees of the department, and members of the City of Houston Police Department are hereby individually and severally authorized and directed for and on behalf of the city to notify any person who fails or refuses to comply with any applicable provision of law or of departmental rules and regulations to depart from any city property or building under the control of the department. It shall be unlawful for any person who, upon receiving such notice, fails to depart from any such property or building.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-39. Exemptions.

The provisions of this article shall not be construed to apply to workmen of the city and its agents and contractors in the lawful discharge of their respective duties.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-40. Violations declared nuisance.

It shall be unlawful for any person to neglect or refuse to comply with any provision of this article. Additionally, any neglect or refusal to comply with any provision of this article shall be deemed a nuisance and may be abated in the manner provided by law and by the ordinances of the city for abatement of nuisances.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-41. Park hours—Generally.

(a) With the exception of overnight camping areas designated by the director, Parks and park facilities shall be open to members of the public between the hours of 6:00 a.m. and 11:00 p.m. unless other public use or visitation hours have been posted for such park or park facility pursuant to rules and regulations promulgated in accordance with section 32-5 of this Code or permitted in writing by the director in accordance with article III of this chapter.

(b) It shall be unlawful for any person to remain within any park or park facility outside the hours designated or permitted for its use who fails to leave immediately after being requested to do so.

(c) Nothing in this section shall be construed to prohibit the use of sidewalks, roadways, parkways, trails, streets, or esplanades for vehicular or pedestrian traffic outside of designated park hours unless such use is

prohibited pursuant to section 26-91 of this Code. The director is authorized to designate interior sidewalks, roadways, parkways, trails, streets and esplanades that are dedicated for park use and serve park areas only.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Secs. 32-42—32-58. Reserved.

ARTICLE III. PARK EVENTS

Sec. 32-59. Park use permit required.

(a) Park use permits are required for certain activities so that parks personnel can limit or eliminate activities that would tend to damage the park or are likely to create an atmosphere that would discourage use of the park for its intended purpose or, if not limited via regulatory controls or eliminated, would allow one person or group to monopolize any portion of a park, park road, or other park property to the exclusion of others. Pursuant to section 32-5 of this Code, the director shall identify and may from time to time amend the designation of any portion of a park, park road, or park property wherein any conduct authorized by this article or other proposed use inconsistent with the use of the park, park road, or park property for its intended purposes is strictly prohibited.

(b) Notwithstanding the regulatory provisions of this article and other applicable provisions of this Code incorporated by reference herein, nothing in this article shall be construed to prevent members of the public from assembling in parks for the purpose of engaging in lawful activities without holding a permit pursuant to the terms of this article.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-60. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings assigned in this section, except where the context clearly indicates a different meaning:

Park event means:

(1) Any group activity or organized event of more than 75 people, including but not limited to picnics, parties, family, religious institution, community or school events, or other similar activities; or

(2) Any group activity or organized event that involves the reservation or temporary exclusive use of a designated area of a park, park road, or other park property.

Permittee means a person in receipt of a park use permit.

Park use permit means written authorization from the director for the use of a park, park road, or other park property to conduct a park event.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-61. Park event—Park use permit required.

(a) Except as otherwise specifically authorized in this Code, it shall be unlawful for any person to conduct a park event without first having secured a park use permit.

(b) Notwithstanding any other provision of this article, any request to conduct a park event that is of a size and nature requiring the significant provision or coordination of city services shall require a special event permit pursuant to chapter 25 of this Code.

(c) The provisions of this article shall be cumulative of all applicable rules and regulations promulgated pursuant to section 32-5 of this Code.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-62. Park event areas.

(a) In each park, the director shall maintain a map or general description of each area in that park designated for park event use. Complete lists of the parks with designated areas shown thereon shall be maintained in the offices of the director and the city secretary. The use of any other portion of a park, park road or other park property for a park event is strictly prohibited unless expressly authorized in writing by the director.

(b) Use of the designated areas for park events shall be on a first-come, first-served basis, unless a permit for a specific area has been issued. The director shall cause all completed written applications received pursuant to section 32-63 of this Code to be immediately time stamped upon their actual receipt by his office. The first in time shall be the first in right, provided that if two or more conflicting applications are received simultaneously, then the precedence shall be determined by an impartial means of chance.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-63. Application for park use permit.

An applicant for a park use permit shall make written application to the director setting forth the following information:

(1) The date of application;

(2) The proposed area desired to be used to conduct the park event;

(3) The date and time period for use of the proposed area;

(4) The name, address and phone number of the applicant;

(5) The name of the person reserving the park, park road, or other park property;

(6) The estimated attendance;

(7) The type or purpose of the function;

(8) The type of sound system or amplified sound equipment to be used, if any;

(9) The special effects or features to be utilized, if any; for example, hot air balloons, gun salutes (blanks only), fireworks, bands, moonwalks, petting zoos, or portable stages;

(10) Whether the function sponsored is for profit or nonprofit;

(11) Whether goods will be sold or fees charged; and

(12) Any other information required by the director.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-64. Review; issuance; denial of park use permit.

The director shall review each application to ensure the proposed park event complies with all applicable provisions of this chapter. Upon reviewing the application, the director shall:

(1) Issue a park use permit if the applicant has satisfied all applicable requirements of this chapter; or

(2) Deny the issuance of the park use permit if:

a. The proposed designated area has been previously reserved;

b. The proposed designated area is not one in which park events are authorized pursuant to subsection (a) of section 32-62 of this Code.

c. The applicant refuses to pay any applicable fees imposed by the city pursuant to section 32-69 of this Code;

d. The applicant refuses to obtain a concession consent pursuant to section 32-8 of this Code, if applicable;

e. The size, nature, or duration of the proposed park event is inappropriate for the proposed designated area or will substantially interrupt the safe and orderly movement of traffic, or police, fire or ambulance emergency equipment on streets adjacent to, running through or around the park;

f. The proposed park event would be disruptive to or incompatible with or cause an adverse effect on the use and enjoyment of the designated area by others;

g. The proposed designated area is not suitable because of landscaping, planting or other environmental conditions reasonably likely to be harmed or damaged by the proposed event;

h. The proposed designated area is not suitable because it is a specialized

area designated for a particular use (i.e. the zoo, a swimming pool, or golf course);

i. The application contains a material falsehood or misrepresentation;

j. The proposed park event is of a size and nature requiring the applicant to obtain a special event permit;

k. The proposed park event consists of conduct prohibited by law;

l. The applicant refuses to comply with conditions imposed by the director to ensure that public property is not damaged and the comfort, convenience, safety, and welfare of the public is not disturbed; or

m. The applicant fails or refuses to comply with any other applicable law or directive of the director.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-65. Procedure upon denial of park use permit.

If the director denies the issuance of a park use permit, the director shall notify the applicant of the denial, the reason therefor, and the applicant's right to appeal pursuant to section 32-67 of this Code, by letter mailed to the applicant at the applicant's address stated on the park use permit application or by electronic mail at an email address provided by the applicant. If the denial is based upon subitems b, d, e, f, g, or h of item (2) of section 32-64 of this Code, the director shall advise the applicant of alternative designated areas, if any, capable of accommodating the proposed park event.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-66. Park use permit contingent upon approved traffic or security precautions.

If the director, after consulting with the police chief, determines the proposed park event may reasonably be expected to result in injury to persons or property, or create a riot or disturbance detrimental to the health, safety and welfare of the public, the director shall require traffic or security precautions be taken to permit the use of the authorized designated area. In such case, the director may issue the park use permit upon condition that the applicant must submit a written traffic or security proposal and obtain the director's approval thereof prior to the proposed park event. The director shall not consider the content of expression or overall subject matter of the proposed park event in determining whether the provision of any traffic or security proposal shall be required. The traffic or security proposal shall be subject to review, approval and appeal in the same manner as a park use permit application under this article.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-67. Appeal of denial or revocation of park use permit.

(a) The decision of the director is final unless appealed under this section. A park use permit applicant may appeal the denial or revocation of a park use permit by filing a written request for a hearing with the director within ten business days of the date of receipt of the denial. A hearing shall be conducted within ten business days of the receipt of such request before a hearing officer appointed by the director.

(b) In each proceeding before the hearing officer, the burden shall be upon the park use permit applicant to demonstrate that he has satisfied all requisites of this article, including all rules and regulations promulgated by the director regarding the issuance of park use permits, and is therefore in good standing to receive the requested park use permit. Any such hearing shall be conducted under rules established by the director consistent with the nature of the proceedings. The hearing officer shall render a written decision on the matter within five business days after the date of the hearing and immediately provide a copy of the decision to the park use permit applicant. The decision shall be final and shall exhaust the park use permit applicant's administrative remedies.

(c) If the time requirements set forth in this section appear inadequate to resolve the appeal prior to the proposed date of park event, the burden shall be upon the park use permit

applicant to expedite any filings required and to request that the hearing officer conduct the hearing and render a written decision in a timely manner. The park use permit applicant's request for an expedited hearing shall be granted, and the hearing officer's written decision shall be issued in a timely manner if reasonable under the circumstances.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-67.1. Duties of permittee.

(a) It shall be the duty of every permittee to:

(1) Obey all laws and terms and conditions of the park use permit;

(2) Clean the area used at the conclusion of the park event and restore the area and property used to the same condition as existed prior to the park event; and

(3) Reimburse the department for any expenses incurred, including the cost of labor, to clean, restore, and make any necessary repairs to park property and equipment damaged during the park event.

(b) The director may impose a cleaning or security deposit in an amount sufficient to cover the costs, including staff time, of cleaning, restoring, and repairing park property in the event park property is damaged during the park event.

(c) This provision shall be cumulative of any rules and regulations the department already has in place.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-68. Transfers, refunds.

The director, subject to the approval of the mayor and city council, may establish rules and regulations pursuant to section 32-5 of this Code relating to refunds. No refund shall be made except as authorized pursuant thereto. Permits may not be assigned or transferred under any circumstances.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-69. Park user fees.

(a) Fees and charges for park concessions, rentals, vending licenses and permits, park use permits, admissions, golf and tennis, as well as athletics and recreation classes sponsored by department (collectively denoted "park user fees") shall be established by the city council. The schedule of fees approved under this provision shall be included in the city fee schedule. A copy of the schedule of park user fees shall be maintained for public inspection both in the office of the city secretary and the office of the director.

(b) It shall be the responsibility of the director to submit to the city council, as appropriate, revisions to the schedule of park user fees. The city council may act upon any such submittal by motion.

(c) In the event a participation or admission fee is charged by any person for any activity using park grounds or facilities, then the user fee applicable thereto shall be the park user fee established by city council, if any, plus the current percentage approved by the mayor and city council of the gross revenue derived from participation and admission fees. The director shall require the use of consecutively numbered admission tickets, recording cash registers or other reasonable methods to ensure accurate accounting of receipts and revenues derived from such activities.

(d) Park facilities shall be made available for use as election day polling places in accordance with the applicable provisions of Subchapter B, Chapter 43 of the Texas Election Code.

(e) The director, by regulation, shall establish uniform procedures relating to reservations, deposits and the manner for paying park user fees.

(f) The director may waive park user fees for any city-sponsored or cosponsored function or event. For purposes of this subsection, the director is authorized to declare city sponsorship.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-70. Voluntary contributions.

In the event voluntary contributions are given to or received by a permittee in connection with any use of the parks facilities or other function conducted within the parks, the fees in section 32-69(c) shall be applicable, whether or not the contributions are wholly voluntary, requested as a condition of admission to or participation in the function conducted, or for the provision of any goods or services.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Secs. 32-71—32-85. Reserved.

ARTICLE IV. MUNICIPAL GOLF COURSES

Sec. 32-86. Supervision.

The city's municipal golf courses shall be under the direction and supervision of the director, who shall have and exercise jurisdiction and control over the grounds and properties of such golf courses.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-87. Maintenance.

The director shall be charged with the duty of maintaining and keeping in good repair all of the grounds of the city's golf courses.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Secs. 32-88—32-115. Reserved.

ARTICLE V. NATURE PRESERVES

Sec. 32-116. Purpose and policy.

The purpose of this article is to preserve and protect in perpetuity city-owned natural areas by regulating public uses and development of these lands. Protection of the land within a preserve system provides a habitat for native wildlife, ecosystem services, and co-benefits in the form of carbon storage, reduced urban heat island effects, improved air quality, improved water quality and quantity, and educational opportunities for the public. The preserve will not contain traditional or customary facilities or improvements associated with a public park but may contain improvements to support passive recreational activities.

Uses shall be limited to those that maintain and protect the ecology of the area, conserve the natural features and scenic values, and expand community awareness and understanding of natural history and the environment. Nature preserve designations will be targeted for park land throughout the city to ensure equitable access to the benefits of nature for all Houstonians.
(Ord. No. 2022-812, § 2, 10-12-2022)

Sec. 32-117. Scope.

This article applies only to city-owned nature preserves within the Houston Parks and Recreation Department, or city-owned nature preserves managed by Harris, Fort Bend or Montgomery County. Department staff, county staff, and other authorized persons working under staff supervision shall be exempt from the provisions of this article when performing activities related to director approved management plans. Additionally, the provisions shall not apply to city employees or county employees in the course of their official duties; others authorized by the city to engage in rescue, medical, or veterinary services; or vendors or others on preserve related business, when authorized by the director.
(Ord. No. 2022-812, § 2, 10-12-2022)

Sec. 32-118. Definitions.

The following words, terms, and phrases, when used in this chapter, shall have the meanings assigned in this section, except where the context clearly indicates a different meaning:

Designated trail means a trail or path within the boundaries of a natural area, whether paved or unpaved, maintained or unmaintained, designated as a trail for use by the public by the posting of signs or by designation on official maps of a natural area.

Conservation easement means a nonpossessory interest of a holder in real property that imposes limitations or affirmative obligations

on the holder designed to retain or protect natural, scenic, and ecological values of real property in perpetuity.

Constructed stormwater wetlands mean wetland systems which are modified and controlled for stormwater management and water treatment. Constructed stormwater wetlands store water in relatively shallow pools that support conditions suitable for the growth of wetland plants.

Native ecosystem means a geographic area where indigenous plants, animals, and other organisms have adapted and evolved with competing species, predators, and diseases over many thousands of years to form an ecological balance that limits their abundance.

Nature preserve means a parcel of land owned or operated by the city that is designated for the protection and preservation of ecological communities and native wildlife through ordinance and/or the use of a conservation easement; the following areas are finally approved and designated by the city council as nature preserves:

Blackhawk Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

Brock Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

Cambridge Village Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

Clinton Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

Crooker/Moody Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

Cullinan (J.S. & L.H.) Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

E.R. & Ann Taylor Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

East Tidwell Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

Eisenhower Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

Farnsworth Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

FM Law Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

Freed Art & Nature Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

Furman Street Greenspace: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

Herman Brown Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

Keith-Wiess Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

Lake Houston Wilderness Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

Maxey Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

Robert C Stuart Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

Sheldon Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

South Main Estates Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

Sylvan Rodriguez Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

The Lorraine Cherry Nature Preserve: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

Tidwell Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

West Mount Houston Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

White Oak Parkway: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

Woodland Park: The area described in Exhibit A to Ordinance No. 2022-812, a copy of which is on file in the office of the city secretary.

Natural area means all city-owned lands containing native ecosystems that are under the control of or assigned to the department, Harris County, or other county for management, maintenance, and operation.

Official search and rescue activities means activities authorized and instigated by or on behalf of the local Coast Guard, Police or other National or local emergency service responsible for locating, relieving distress and preserving life of, and removing survivors from the site of a disaster, emergency, or hazard to a place of safety in case of lost, stranded, entrapped, or injured persons.

Passive recreation activities mean leisure or non-motorized recreational activities that place minimal stress on a site's resources such as hiking, fishing, and wildlife viewing.

Service dog has the meaning ascribed in Americans with Disabilities Act Title Il Regulations, 28 C.F.R § 35.104. Defined terms within the definition of Service Animal set forth in 28 C.F.R § 35.104 shall have the meaning defined in 28 C.F.R § 35.104. Service Animal also means and includes a service animal or assistance animal as defined in Section 121.002 of the Texas Human Resources Code. A Service Animal does not include emotional support animals, comfort animals, and therapy dogs.

(Ord. No. 2022-812, § 2, 10-12-2022)

Sec. 32-119. Management objectives.

The Houston Parks and Recreation Department's (HPARD) Natural Resources Management Division will be responsible for creating management objectives and plans for the preserves that are consistent with the defined purpose (Section 32-116). The management objectives are to:

(1) Preserve the local plants, wildlife, and natural resources to maintain the biological diversity and long-term sustainability of the area's ecology;

(2) Preserve the aesthetic values of the area for all to enjoy and for its contribution to the quality of life of the community;

(3) Provide a variety of opportunities for passive recreation activities;

(4) Support tourism in the community by providing public outdoor educational opportunities for visitors; and

(5) Restore habitat in degraded areas of the preserve as close to its undisturbed condition as possible by reestablishing diverse plant species and native ecosystem processes.

(Ord. No. 2022-812, § 2, 10-12-2022)

Sec. 32-120. Conservation easement.

Where possible, the City of Houston shall record a conservation easement in the Real Property Records of Harris County, Texas, or other metropolitan county, to ensure the nature preserves remain undeveloped in perpetuity and are used only for passive recreation activities.

(Ord. No. 2022-812, § 2, 10-12-2022)

Sec. 32-121. Development of nature preserve.

(a) Development shall be minimal and limited to amenities for passive recreation activities, including and limited to designated trails, noninvasive benches, signage, bird-friendly lighting, trash cans, and constructed stormwater wetlands built as required by section 32-125.

(b) Existing improvements are allowed under this article, including:

(1) Roads constructed prior to October 12, 2022, are allowed under this article;

(2) Lighting installed prior to October 12, 2022, are allowed under this article; and

(3) The canoe launch, picnic tables, and fishing pier at Lake Houston Wilderness Park are allowed under this article.

(c) Existing agreements and easements are allowed under this article, including Harris County Flood Control District and utility easements. All future agreements and easements shall adhere to the rules set forth in this article.

(Ord. No. 2022-812, § 2, 10-12-2022)

Sec. 32-122. Boundary markers.

Nature preserves boundaries shall be made clearly evident by HPARD posting boundary markers at intervals of approximately 330 feet if feasible.

(Ord. No. 2022-812, § 2, 10-12-2022)

Sec. 32-123. General rules for use.

(a) All persons using the preserve shall comply with all applicable federal and state laws, city ordinances, and Houston Parks and Recreation Department rules and regulations, some of which are provided on the City of Houston website.

(b) Except as may be specifically authorized by a permit or permits issued in accordance with section 32-124, all persons using the preserve shall comply with the following:

(1) No person shall construct any structure or building, or to develop the natural habitat of the nature preserve in any manner, except as provided by section 32-121 and section 32-125;

(2) No person shall swim, wade, or otherwise enter any waters of a natural area or allow any pet animal or any riding or livestock animal to do so, except as provided by section 32-37 of this Code;

(3) All preserve users must remain on designated trails and roads to prevent damage to the land and all other areas shall be considered "off limits";

a. No person shall enter areas considered "off limits" for any use; and

b. Dogs are restricted to designated trails, except service dogs or dogs assisting in official search and rescue activities. No person shall allow a dog to enter areas considered "off limits";

(4) Mountain biking is prohibited within a nature preserve and biking is restricted to designated hike and bike trails, except that mountain biking is allowed on designated trails located within Eisenhower Park. No person shall ride a bicycle off designated trails;

(5) The owner or person in custody of a dog shall immediately pick up all dog droppings (fecal matter) in accordance with section 6-24 of this Code;

(6) Unless there is an existing utility corridor, existing easement, existing road,

parking lot, well or existing right-of-way, no entity shall be allowed to place any new public service utility or road into, upon, or across nature preserve lands, and installation or removal of lines within existing utilities corridors, easements, or rights-of-way, requires the written approval from the director;

(7) No person shall deface, damage, or inscribe a message, slogan, sign, or symbol upon any feature in the preserve, including the ground itself, using any material, including paint or markers of any kind;

(8) No person shall remove any wildlife from the preserve, or release, abandon, place, bury, or otherwise dispose of any live animal, carcass, or remains of an animal in the preserve, except as provided by section 32-35 of this Code;

(9) No person shall feed wildlife in the preserve;

(10) No person shall remove, disturb, or damage any archaeological, geological, or paleontological materials from a natural area;

(11) No person shall deposit rocks, wood, dirt, trash, or any other material in a natural area; and

(12) It shall be unlawful for any person owning or having control of any livestock to graze or pasture such livestock, or cause such livestock to be grazed or pastured, or permit such livestock to graze or pasture upon any land within the preserve.

(Ord. No. 2022-812, § 2, 10-12-2022)

Sec. 32-124. Permits and procedures for special uses of the nature preserves.

The provisions of this section shall not apply to persons or groups which have been issued a permit by the director to engage in such activities. Examples of such activities, for illustrative purposes only, might include: scientific research, including collecting any specimens such as plants, rocks, wildlife, or artifacts; non-fee educational activities or outdoor classes not conducted by the city; or educational activities or outdoor classes, not conducted by the city, with fees charged to participants.

(Ord. No. 2022-812, § 2, 10-12-2022)

Sec. 32-125. Constructed stormwater wetland guidelines.

(a) Parks that are designated as nature preserves in section 32-118 of this Code and encompass existing tributaries or channels may be considered for additional flood mitigation activities in the form of constructed stormwater wetlands, not listed within this Code, with the approval of the director and city council after a public hearing is held in accordance with section 32-126. Flood mitigation activities will only be considered in a designated nature preserve if there is no feasible and prudent alternative for flood mitigation in nearby areas of the watershed and if there is no existing restrictions, conditions, and covenants attached to the park.

(b) All persons constructing stormwater wetlands in the preserve shall comply with the following design considerations and requirements:

(1) All constructed stormwater wetlands plans, including associated lighting, benches, signage, and trails shall be approved by the director;

(2) The hydraulic design, wetland sizing, selection of plants, and additional considerations shall be based the management objectives in section 32-119 of this Code and approved by the director;

(3) The design of the stormwater wetlands incorporates sufficient shallow areas to support aquatic vegetation and integrates ecologically designed features to manage stormwater;

(4) Allowable stormwater wetland vegetation is set forth in Appendix A; and

(5) Plant vendors must be approved by the director.

(Ord. No. 2022-812, § 2, 10-12-2022)

Sec. 32-126. Public hearing required prior to approval of a constructed stormwater wetland.

Prior to approval of a constructed stormwater wetland established under section 32-126, city council shall hold a public hearing at which interested persons shall be entitled to speak and present written materials for or against the approval of the constructed stormwater wetland. Notice of the public hearing shall be published in a local daily newspaper of general circulation not later than the seventh day before the date of the hearing. Notice of the public hearing may be given, posted, or published in other places or by other means as the director deems appropriate, including giving notice to civic associations in the area surrounding the proposed constructed stormwater wetland.
(Ord. No. 2022-812, § 2, 10-12-2022)

Sec. 32-127. Penalty for article violations.

The violation of any provision of this article is hereby declared to be unlawful. Any person violates the terms and conditions of section 32-123 and 32-126(b) of this article shall be deemed guilty of an offense and, upon conviction thereof, shall be punished as provided in section 1-6 of this Code. Each violation shall constitute and be punishable as a separate offense.
(Ord. No. 2022-812, § 2, 10-12-2022)

APPENDIX A. STORMWATER WETLAND VEGETATION LIST

Scientific Name	**Common Name**
Acmella oppositifolia var. repens	creeping spotflower
Andropogon glomeratus	bushy bluestem
Andropogon virginicus	broomsedge bluestem
Asclepias perennis	aquatic milkweed
Bacopa caroliniana	blue waterhyssop
Bacopa monnieri	herb of grace
Bidens aristosa	swamp marigold
Carex cherokeensis	cherokee sedge
Carex flaccosperma	thinfruit sedge
Carex hyalinolepis	Shoreline sedge
Cephalanthus occidentalis	common buttonbush
Chasmanthium latifolium	inland sea oats
Cladium mariscus ssp, jamaicense	Jamaica swamp sawgrass
Crinum americanum	swamp lily
Cyperus articulatus	jointed flatsedge
Cyperus echinatus	globe flatsedge
Cyperus elegans	royal flatsedge
Cyperus haspan	haspan flatsedge
Cyperus ochraceus	pond flatsedge
Cyperus virens	green flatsedge
Echinodorus cordifolius	creeping Burhead
Eleocharis quadrangulata	squarestem spikerush
Equisetum hyemale	scouringrush horsetail
Helianthus angustifolius	swamp sunflower
Hibiscus laevis	halberdleaf rosemallow
Hibiscus lasiocarpos	rosemallow
Hydrocotyle umbellata	manyflower marshpennywort
Hydrolea ovata	blue waterleaf
Hymenocallis liriosme	spring spiderlily
Iris brevicaulis	zigzag iris

Scientific Name	Common Name
Iris virginica	southern blue flag iris
Juncus effusus	common rush
Juncus marginatus	grassleaf rush
Juncus roemerianus	needlegrass rush
Juncus validus	roundhead rush
Justicia lanceolata	looseflower water-willow
Kosteletzkya virginica	saltmarsh mallow
Lobelia puberula	downy lobelia
Ludwigia decurrens	wingleaf primrose-willow
Ludwigia octovalvis	Mexican primrose-willow
Ludwigia repens	creeping primrose-willow
Najas guadalupensis	southern waternymph
Nymphaea mexicana	yellow water lily
Nymphaea odorata	white water lily
Panicum hemitomon	maidencane
Panicum virgatum	switchgrass
Phyla nodiflora	turkey tangle fogfruit
Physostegia virginiana	obedient plant
Pluchea odorata	marsh fleabane
Polygonum hydropiperoides	swamp smartweed
Pontederia cordata	pickerelweed
Rhynchospora caduca	anglestem beaksedge
Rhynchospora colorata	white topped sedge
Rhynchospora corniculata	shortbristle horned beaksedge
Rhynchospora recognita	globe Beaksedge
Rudbeckia maxima	great coneflower
Saccharum giganteum	sugarcane plumegrass
Sagittaria lancifolia	bulitongue arrowhead
Sagittaria latifolia	broadleaf arrowhead
Sagittaria platyphylla	delta arrowhead
Saururus cernuus	lizard tail
Schoenoplectus californicus	California bulrush
Schoenoplectus tabernaemontani	softstem bulrush
Spartina patens	marsh hay cordgrass
Spartina spartinae	gulf cordgrass
Thalia dealbata	powdery alligator flag
Tradescantia ohiensis	bluejacket
Tripsacum dactyloides	eastern gama grass
Utricularia gibba	humped bladderwort
Zizaniopsis miliacea	giant cutgrass

(Ord. No. 2022-812, § 2, 10-12-2022)

Secs. 32-128—32-145. Reserved.

ARTICLE VI. THE HOUSTON ZOO

Sec. 32-146. Established.

There is hereby established a permanent and official name for the fenced off area located in

Hermann Park, such area having been re-established by Ordinance No. 2002-574, passed June 26, 2002, and used as a public zoo. The aforementioned public zoo area shall be known as The Houston Zoo.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-147. Official address.

The official Houston Zoo address for all purposes shall be 6200 Hermann Park Drive, Houston, Texas 77030.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-148. Operation of zoo.

The Houston Zoo shall be under the direction and management of a non-profit corporation as provided by contract from time to time.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-149. Reserved.

Sec. 32-150. Hours of operation.

The organization contracted to manage the Houston Zoo shall have the right to establish the days, times and conditions for the operation of the Houston Zoo.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-151. Entry onto zoo grounds at unauthorized time.

It shall be unlawful for any person to enter onto or upon the zoo grounds, for any purpose, at any time other than during those times during which the zoo is open to the public as designated in section 32-150 of this Code. This section shall not apply to properly authorized zoo personnel.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-152. Bringing animals onto zoo grounds.

It shall be unlawful for any person to bring any animal onto or upon the zoo grounds without permission from the zoo manager.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-153. Throwing, etc., items into animal confinement or keeping areas.

It shall be unlawful for any person to throw, roll, shove, push or in any other way cause the entrance into an area of animal confinement or keeping, of any stone, ball, or other physical object; provided however, that this provision shall be inapplicable to the foodstuffs specifically authorized in section 32-155 of this Code. This section shall not apply to authorized zoo personnel.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-154. Entering animal confinement areas.

It shall be unlawful for any person to enter any area wherein an animal or animals are being confined or restrained; provided however, this section shall not apply to the authorized contact areas within the children's zoo at such times when the said children's zoo is open to the public.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-155. Feeding animals.

Except in designated areas overseen by zoo staff and set aside for feeding animals with foodstuffs sold by the zoo, it shall be unlawful for any person to feed any animal, or place any object within an animal confinement or place of keeping or otherwise induce or permit any animal to ingest any food or object.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-156. Police department.

The police department shall have jurisdiction and authority to patrol upon the zoo grounds and enforce all ordinances pertaining to the zoo.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Secs. 32-157—32-170. Reserved.

ARTICLE VII. RESERVED

Secs. 32-171—32-200. Reserved.

ARTICLE VIII. HOUSTON PARKS BOARD LGC, INC.

Sec. 32-201. Creation; composition; appointment of members.

There is hereby created the Houston Parks Board LGC, Inc., a local government corporation of the City of Houston, hereinafter called "the parks board," which shall consist of 20 members who shall be appointed by the mayor, subject to confirmation by the city council. The director shall serve as a non-voting, ex-officio member of the parks board.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-202. Positions, term of members.

The members of the parks board shall be appointed to specific positions. The terms of office are as follows:

(1) The terms of office for Positions 1, 2, 3, 10, 13, 16, and 19 shall expire on January 1, 2007, and on the same date in each third successive year thereafter.

(2) The terms of office for Positions 4, 5, 6, 11, 14, 17, and 20 shall expire on January 1, 2006, and on the same date in each third successive year thereafter.

(3) The terms of office for Positions 7, 8, 9, 12, 15, and 18 shall expire on January 1, 2005, and on the same date in each third successive year thereafter.

(4) Any member serving in a position for which the term has expired shall continue to serve until the member's successor in that position is appointed and confirmed.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-203. Assistance by certain city departments.

The directors of the department of planning and development, department of finance, department of administration and regulatory affairs, Houston Public Works, general services department, and parks and recreation department and their staffs shall provide requested assistance

the parks board. The city attorney and his staff shall provide legal services and representation to the parks board.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2018-11, § 23, 1-10-2018)

Sec. 32-204. Compensation of members; conflicts of interest.

Members of the parks board shall serve without compensation from the city or any firm, trust, donation or legacy to or on behalf of the city; provided, however, that a member of the board, or the firm, company or corporation with whom the member is associated shall not be precluded from receiving compensation from the city under any contract for services rendered that have no relation to the member's duties as a member of the board. Members of the board shall abstain from voting upon matters in which they have or may have a conflict of interest, and officers and members of the board shall not participate in any activity of the corporation in which they have or may have a conflict of interest.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-205. Organization.

The parks board shall organize by electing from their membership a chairman, a vice-chairman, a president, a vice president, a secretary, and a treasurer, each of whom shall hold office for one year or until a successor shall have been elected and qualified. In addition, the board may appoint one of its employees to act as an executive director and may appoint one of its employees to act as an assistant secretary. The board may adopt such administrative procedures as are necessary or convenient to accomplish the purposes set out in this article.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-206. Purposes.

The purposes of the parks board shall be to:

(1) Solicit funds, gifts, and bequests for park acquisitions, additions and improvements in the city.

(2) Review and make advisory recommendations to the mayor and city council on proposed park acquisitions, additions and improvements to be paid for within city funds.

(3) Review and make advisory recommendations on parks department matters submitted to it by the director or mayor and city council.

(4) Manage and invest and oversee the management and investment of solicited funds, gifts, and bequests donated for park purposes, including, but not limited to, the purchase or sale of real and personal property and of investments in bonds, notes, common stocks and securities of any kind whatsoever.

(5) Formulate and submit to the mayor and city council proposals for acquisitions, additions and improvements to parks from funds and assets held by the board or for its benefit in trust accounts, or invested by the board.

(6) Convey land to the city for park purposes upon conditions acceptable to the city.

(7) Lease land and improvements, and related fixtures, equipment, facilities and amenities, to or from the city for a term of years for park purposes upon conditions acceptable to the city.

(8) Acquire lands for new public parks and open spaces and develop, improve and install new and existing public parks and open spaces and related fixtures, equipment, facilities and amenities within the city limits of the city and its extraterritorial jurisdiction.

(9) Perform any duties authorized by the certificate of formation or by-laws of the parks board as approved by city council.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-207. Additional powers.

(a) The parks board may cooperate with any trust created for a purpose similar to that of the board as set out in item (1) of section 32-206 of this Code. In addition, the board may contract for financial management and investment services and may pay the reasonable fees therefor from

solicited funds, gifts, bequests and income therefrom, provided, the board shall exclude therefrom any solicited funds, gifts or bequests when payment of a financial management and investment service fee would be contrary to the provisions of the grant.

(b) The board may exercise its sole discretion in the application for park purposes of funds received from any trust created specifically for the benefit of the parks board when such trust specifically grants such sole authority to the board and from funds donated directly to the parks board, provided construction of public improvements on city-owned property shall be in compliance with the competitive bid laws of the state applicable to local government corporations.

(c) When using donated funds described in subsection (b) the parks board may negotiate the purchase of items for city parks, but any such item that might otherwise become a fixture or part of the realty shall be deemed to remain personalty and subject to removal at the discretion of the city council. The parks board shall have no authority to take any action that will create a lien on city-owned land. Park land, no matter how modified under this provision, shall remain subject to the discretion of the city council in directing another or different park use or in authorizing the construction of a permanent park improvement. The following list is illustrative of the types of items that the parks board may purchase, subject to the approval of the director:

(1) Playground equipment.

(2) Trees.

(3) Landscaping.

(4) Water meters and sprinkler systems.

(5) Shuffleboard courts.

(6) Playpads.

(7) Benches.

(8) Water fountains.

(9) Picnic benches.

(10) Hike and bike trails.

(11) Exer-trail with equipment.

(12) Fencing.

(13) Sidewalks.

(14) Sculptures.

(15) Fountains.

(16) Equipment used in recreational programs.

(17) Flower clock.

(18) Flag pole.

(19) Gazebo.

(d) Subject to the approval of the director, the board may seek removal of any trustee of a trust established to benefit the parks of the city by instituting appropriate action in the district court upon at least 90 days written notice (unless waived by the trustee) to such trustee. Any removal notice must be actually received by the trustee being removed and must contain the appointment of a successor trustee and the acceptance of the successor trustee endorsed on it. Any successor trustee appointed to act shall be a bank with trust powers or a trust company, either state or national, located in the city, with a combined capital and surplus of at least $20,000,000.00.

(e) To more fully and efficiently carry out the purposes of the parks board, the city hereby grants the parks board a general right of entry on the city's public parks, open spaces and other lands of the city, subject to the prior approval by the director of the projects, and the design and construction thereof, for which such right of entry may be exercised, which right of entry is revocable by the director in the event actions taken under the right of entry are inconsistent with the limits of the approval, if any.

(f) To more fully and efficiently carry out the purposes of the parks board, the city hereby grants the parks board some of the same powers and functions as a park board of trustees established under Chapter 306 of the Texas Local Government Code, as follows:

(1) Acquiring by gift, devise, or purchase, or improving or enlarging:

a. Land and buildings to be used for public parks, playgrounds, or historical museums; and

b. Land on which are located:

[1] Historic buildings or sites, or landmarks of statewide historical significance associated with historic events or personalities;

[2] Prehistoric ruins, burial grounds, or archaeological or paleontological sites; and

[3] Sites including fossilized footprints, inscriptions made by human agency, or any other archaeological, paleontological, or historical buildings, markers, monuments, or other historical features.

c. Land described by the foregoing subitems a and b of this item (1) may be located inside or outside the boundaries of the city, but must be located inside the limits of the counties in which the city is located;

(2) Accepting and receiving from any person or entity, and having authority to expend, gifts of money or other things of value for the purpose of performing any function or authority conferred on the board by this chapter;

(3) Accepting and receiving from the city, and having authority to expend, funds appropriated by the city for the purpose of improving, equipping, and promoting recreational and other facilities under the board's development;

(4) Advertising the city's recreational advantages for the purpose of attracting visitors, tourists, residents, and other users of the public facilities developed by the board;

(5) Entering into a contract, lease, or other agreement connected with, incident to, or in any manner affecting the financing, construction, equipping, or promoting of facilities under its development. The board may execute and perform its powers and functions on land leased from others, subject to the approval of the director; and

(6) Carrying out such other lawful purposes as the parks board may deem necessary or appropriate in connection with the foregoing powers and functions to the extent consistent with directions of the director.

(g) The parks board, as a local government corporation, shall have the power to enter into long-term contracts with the city, within the authority of the city, and other entities as relevant, for any length of term it deems necessary or appropriate to more fully and efficiently carry out the purposes of the parks board.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-208. Financial records.

The financial books and records of the parks board shall be open to inspection and audit during regular business hours by authorized representatives of the city, or by independent certified public accountants employed by the city. Similarly, the financial books and records of any trust created for the benefit of or to cooperate with the parks board shall be open to inspection and audit.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-209. Annual financial report.

The parks board shall make an annual financial report to the city council.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-210. Fidelity bond.

Each parks board member shall furnish to the city a fidelity bond in the amount of $10,000.00, provided the premium therefor shall be paid by the city, and provided further this requirement may be satisfied by amendment to the city's blanket fidelity bond for city employees by amendment thereto so as to authorize inclusion of the board members.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-211. Meetings.

The parks board shall hold regular meetings as established by the board's bylaws. In addition, special meetings may be held in accordance with such rules as the board may provide. A quorum of the directors of the board shall consist of such number of members, being not less than a majority thereof, as may be specified in the corporate bylaws of the board.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-212. Removal of members.

In addition to the removal provisions of the certificate of formation and the by-laws approved by city council, parks board members may be removed by the mayor for the following causes:

(1) Four consecutive absences from regular monthly meetings of the park board.

(2) Failure to abstain in any vote or activity of the parks board, where a direct or indirect conflicts of interest is or may be involved.

(3) Failure to obtain or keep in force a fidelity bond.

(4) For conduct, whether or not resulting in a conviction, that impairs the ability of the member to carry out his parks board duties.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-213. Certificate of formation.

The city council hereby approves the form and substance of the proposed certificate of formation of the Houston Parks Board LGC, Inc. to be incorporated under the Texas Nonprofit Corporation Act. A copy of said certificate of formation is on file in the office of the city secretary. In the event of the dissolution of this corporation, the city shall succeed to the funds and assets of the corporation except to the extent that this may conflict with the conditions of a particular donation to the corporation.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Secs. 32-214—32-220. Reserved.

ARTICLE IX. PARK FOOD VENDORS

DIVISION 1. GENERALLY

Sec. 32-221. Purpose.

The purpose of this article is to establish procedures and standards by which persons may be permitted to sell food from park food service establishments, within certain city parks.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-222. Definitions.

As used in this article, the following terms and phrases shall have the following meanings:

Application means that form generally described in section 32-225 of this Code.

Concession stand means a park food service establishment that operates in a fixed location and may include the use of any existing building or structure or the use of any temporary structure provided by the operator.

Food has the meaning ascribed in section 20-18 of this Code.

Food service establishment has the meaning set forth in section 20-18 of this Code.

Food truck means a park food service establishment that is mounted on wheels, designed to be readily movable, and propelled by a motor.

Mobile food unit means a park food service establishment that is mounted on wheels, designed to be readily movable, and propelled solely by human power. A food truck shall not be considered a mobile food unit for purposes of this chapter.

Packaged has the meaning set forth in section 20-18 of this Code.

Park or *parks* has the meaning set forth in section 32-1 of this Code.

Park food service establishment means a food service establishment operating within a park.

Permit means a permit granted under the authority of this article.

Roadway means that portion of a public street which is improved, designed, or ordinarily used for vehicular travel, exclusive of the curb, berm, esplanade, or shoulder. In the event that a public street includes two or more separate roadways, roadway means each such roadway separately.

Sidewalk means that portion of the public street which is between the curblines, or the lateral lines of a roadway, and the adjacent property lines and is improved and designed for or is ordinarily used for pedestrian travel.

Vendor means a person who has been granted a permit under this article and shall include that person's officers and employees.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-223. Permits required for park food service establishments.

(a) The director is authorized to issue permits for the operation of park food service establishments within parks.

(b) It shall be unlawful for any person to erect, operate or maintain a park food service establishment in a park without first obtaining a permit.

(c) It is an affirmative defense to prosecution under this section that the person is maintaining or operating the park food service establishment under the authority of a concession contract approved by city council.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-224. Reserved.

Sec. 32-225. Applications.

As a part of the application and proposal the applicant shall provide:

(1) The name and street address (and mailing address, if different) of the operator, manager or other person responsible for the operation or supervision of the park food service establishment;

(2) The name under which the park food service establishment will be operated;

(3) A letter or other notice from the health officer, by which the director of public health certifies that, under chapter 20 of this Code, the applicant meets the requirement for a food dealer's permit and, if applicable, the mobile food unit meets the requirements for a mobile food unit medallion;

(4) A copy of any certificate of insurance required to be provided;

(5) A general description and proposed prices of all foods to be sold and the proposed hours of operation;

(6) The park and description of the area in that park in which the applicant desires to operate his park food service establishment;

(7) A map showing the proposed location of the specific site desired;

(8) The written permission of the director for the use of the site; and

(9) Such other documentation or information as the director may reasonably require.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-226. Determination of qualified applicants.

Upon receipt of each application, the director shall examine its contents and determine whether the applicant is qualified for issuance of a permit based on the following factors:

(1) The application meets the requirements of this article;

(2) The park food service establishment is in compliance with the food service establishment specifications set out in chapter 20 of this Code and with all other applicable city ordinances;

(3) Given the particular characteristics of the park in which the park food service establishment is to be operated, and of the pedestrian and vehicular traffic in the area, the operation of the proposed park food service establishment will not

interfere with pedestrian or vehicular traffic in the park or with the public's use of the park;

(4) Operation of the park food service establishment is not expected to obstruct vehicular or pedestrian travel upon any sidewalk or public street;

(5) The products to be sold are not expected to cause or contribute to littering in the parks nor to annoy, through noxious odors or other means, the park's patrons; and

(6) The park food service establishment and the equipment proposed to be used will be appropriate, suitable and aesthetically pleasing in that area of the park.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-227. Evaluation of applications.

The vendors to be issued permits shall be selected by a comparison of the applications submitted for each area and park. The director may request the assistance of the health officer to evaluate these applications. If more than one qualified applicant has applied for a license to serve the same area of a park, the director shall choose from among the applicants based upon the following criteria:

(1) Ability to contribute to the availability of a variety of foods for park patrons;

(2) Ability to address consumer preferences for particular foods in a particular park or in parks generally;

(3) Ability to engage in park vending activities for an optimum number of hours and days per week;

(4) Ability to successfully operate a mobile food vending business and comply with the applicable ordinances of the city governing his activities and his park food service establishment based on his ability as determined from his financial resources and history and any experience in similar types of ventures; and

(5) Ability to provide a reasonable and competitive price structure for the food proposed to be sold.

Based upon the information set out in the applications, the director shall rate each applicant's relative ability to meet the above criteria. The applicant receiving the highest overall rating shall be the applicant selected as the vendor for that area. The director may consider applicants who were not selected but were otherwise qualified, for areas of the same or other parks for which the city received no applications.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-228. Term of permit.

(a) A permit granted under this article shall be valid for the time and day indicated on the permit. The permit shall specify the foods permitted to be sold or distributed based on recommendations from the health officer.

(b) A permit granted under this article constitutes a temporary and interruptible authorization for the use of a park or designated portion thereof in a manner consistent with the conditions upon which the permit has been granted. It is a privilege granted by the city not a right. It is not an exclusive permit and does not and shall not be construed to convey any legal or equitable interest whatsoever to any part of the park.

(c) A permit is issued in the vendor's name for a particular park food service establishment and designated area of a park and cannot be assigned, sold, lent, leased, or otherwise transferred even though the ownership of the park food service establishment may change.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-229. Reserved.

Sec. 32-230. Indemnification of city.

The vendor must agree, as a condition of his permit, to indemnify and hold harmless the city, its officers and employees against any loss, liability or damage, including expenses and costs for bodily injury and for property damage sustained by any person as a result of the vendor's operation of a park food service establishment on public property.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-231. Permit conditions.

(a) A permit shall be subject to the following conditions and may be suspended or revoked for failure to comply with any one of them:

(1) The vendor shall maintain the park food service establishment in good repair and keep it free from material defects that may present a hazard to life or property.

(2) The vendor shall make the park food service establishment available for an inspection by the director or his representatives at any time while the park food service establishment is on park property. No notice from the director prior to such an inspection shall be required.

(3) The vendor must comply with all other applicable state and city rules and regulations specifically including all food or health-related ordinances of the city and all state and federal food labeling laws. The park food service establishment itself and the vendor and all of his employees must meet applicable requirements for the operation of food establishments as set out in chapter 20 of this Code at all times.

(4) In addition to the marking requirements of Chapter 20 of this Code, each park food service establishment shall be clearly marked with the name and phone number of the owner of the park food service establishment and the phone number of the Houston Health Department.

(5) The vendor shall maintain adequate lighting in and around the park food service establishment to ensure that the park food service establishment may be easily seen at night. Such lighting shall be of such type and location and shall have such shading as will prevent the source of the light from being seen from any property contiguous or adjacent to the park. It shall not cause illumination beyond the boundaries of the park on which it is located so as to be obtrusive to adjacent property owners and shall not cause illumination beyond the boundaries of the park in excess of 0.5 foot candles. The illumination of any street from the park food service establishment shall be no brighter than the illumination provided by ornamental street lights nor shall it have an adverse impact on the flow of vehicular traffic. In addition, its design and color shall not be such that is could be mistaken for a traffic signal.

(6) A vendor may not obstruct ingress or egress to any other building, roadway, or pathway

(7) The vendor shall not install, erect or maintain any signs on park property except those permitted on the park food service establishment itself.

(8) The vendor shall not install any permanent improvement in a park.

(9) During hours of operation under a permit, the vendor shall serve, store and display his food on or in the park food service establishment itself and shall not use, set up or attach any crate, carton, rack, table or other device to increase the selling or display capacity of his park food service establishment.

(10) Outside hours of operation under a permit, the vendor shall not store any items, including food and/or equipment, within a park facility or upon park property.

(11) The vendor shall not leave the park food service establishment open (unlocked) and unattended. If a park food service establishment is left unattended, it may be shut down and towed, if applicable. The vendor shall then be liable for all reasonable removal, towing, and storage charges.

(12) The vendor shall not operate the park food service establishment in the park between the hours of 11:00 p.m. and 7 a.m. or outside hours of operation under a permit.

(13) The vendor shall not permit any electrical or mechanical sound to emanate beyond 20 feet from the park food service establishment.

(14) The vendor shall not operate the park food service establishment in a fashion that creates a traffic hazard or increases traffic congestion or delay.

(15) Where exigent circumstances exist and a police officer or other authorized officer or employee of the city gives notice to a vendor to temporarily move from a location, such vendor shall not operate from or remain at such location. For the purpose of this subdivision, exigent circumstances shall include, but shall not be limited to, unusually heavy pedestrian or vehicular traffic, existence of any obstructions in the public space at or near such location, an accident, fire or other emergency situation at or near such location, or a parade, demonstration, or other such event or occurrence at or near such location.

(16) The vendor shall update and supplement the information provided as a part of his application to ensure that it remains true and correct at all times.

(17) The vendor shall have his permit available at all times while the park food service establishment is in operation and shall present the permit upon request. In addition, the vendor shall have in his possession satisfactory proof or documentation detailing the origin or source of all foods being held, stored, offered for sale, sold, distributed or given away. Those records shall be available for review upon request.

(18) The vendor shall comply with all rules promulgated by the director and shall refrain from operating the park food service establishment during certain days or in certain areas if so requested by the director.

(19) The vendor shall not use the park food service establishment or permit anyone else to use the park food service establishment to sell distribute or give away any foods other than those specifically approved by the director, in writing, at the time the permit is issued. The vendor is not authorized to and shall not sell any non-food items without the written consent of the director.

(20) The vendor shall maintain records of daily gross sales, purchases, and expenses of or from the park food service establishment and those records shall be available for inspection by the director upon request.

(21) The vendor shall be responsible for supervising the conduct of its patrons and employees.

(22) The vendor and his employees shall wear clean outer garments and shall refrain from smoking on park property and eating during working hours.

(23) The vendor shall furnish good, prompt, courteous, and efficient service to its patrons. At no time shall a vendor hawk his merchandise or shout at or otherwise annoy park patrons in an effort to encourage them to purchase his merchandise.

(24) The vendor shall keep the area within 25 feet of the park food service establishment clean and free of litter at all times. The vendor's litter receptacle shall be emptied regularly in other than a public receptacle. The litter receptacle shall be kept covered with a tight fitting lid when not in continuous use.

(25) The vendor shall not use any park facilities including utility outlets, for operating or cleaning the park food service establishment or its appurtenances with the exception of electrical service which may be approved in advance at the option of the director. The vendor and his employees may use available restroom facilities for their personal use.

(26) The vendor shall provide a cash bond or a bond with the vendor as principal and a corporate bonding company licensed to do business in the state as surety in the amount of $2,500.00 to cover the costs of

repair or replacement of any city property, the damage or destruction of which was caused directly or indirectly by the vendor. This bond shall be duly executed by the vendor and a corporate surety company licensed to do business in the State of Texas and shown on the most recent edition of the United States Treasury Circular 570 as having an "underwriting limitation" at least as great as the penal sum of the bond. The vendor may substitute a cash deposit or comprehensive public liability insurance for property damage in the amount of $2,500.00. The city shall be named as an additional insured on the policy and the policy shall include a provision to the effect that the city will be notified in writing by the insurance company ten days prior to a cancellation, nonrenewal, or material change in the policy. In the case of nonrenewal or cancellation, the vendor shall then have five days to replace the coverage or the vendor's permit shall be deemed revoked without further action on the part of the city.

(b) A permit for a mobile food unit shall be subject to the following additional conditions and may be suspended or revoked for failure to comply with any one of them:

(1) The vendor shall thoroughly clean the mobile food unit and drain and flush the liquid waste tanks each day the mobile food unit is operated.

(2) The mobile food unit itself and the vendor and all of his employees must meet requirements for the operation of mobile food units and food establishments as set out in sections 20-22 and 20-37 of this Code at all times.

(3) The vendor shall maintain adequate lighting in and around the mobile food unit to ensure that the mobile food unit may be easily seen at night. Such lighting shall be of such type and location and shall have such shading as will prevent the source of the light from being seen from any property contiguous or adjacent to the park. It shall not cause illumination beyond the boundaries of the park on which it is located so as to be obtrusive to adjacent property owners and shall not cause illumination beyond the boundaries of the park in excess of 0.5 footcandles. The illumination of any street from the mobile food unit shall be no brighter than the illumination provided by ornamental street lights nor shall it have an adverse impact on the flow of vehicular traffic. In addition, its design and color shall not be such that is could be mistaken for a traffic signal.

(4) The vendor shall not park or stop a mobile food unit within 20 feet of an entrance or exit to any building, or a hydrant, street light, curb, crosswalk, telephone booth, driveway, mailbox, transit stop, or any other public service facility even temporarily. In addition, a vendor shall not park or stop a mobile food unit within 20 feet of another mobile food unit.

(5) The vendor shall not load or unload the mobile food unit or any food items while the mobile food unit or a vehicle transporting the mobile food unit is parked on a roadway. In no case shall a mobile food unit be positioned on a sidewalk so as to occupy more than 40 percent of the width of that sidewalk. In addition, all mobile food units shall comply with clearances required from structures to utility lines as provided in the *Construction Code*.

(6) The vendor shall remove the mobile food unit from park property between the hours of 11:00 p.m. and 7:00 a.m. and during any time not covered by the permit.

(7) The vendor shall operate only within his assigned area of the park. The vendor shall avoid positioning the mobile food unit so as to damage or destroy any park property and shall not allow the mobile food unit to touch, lean against or be affixed temporarily or permanently to any building, structure, tree, or shrubbery.

(8) The director is hereby authorized to promulgate such additional rules as he deems necessary or appropriate from time to time based on circumstances unique to an individual park or to ensure safe and efficient operation of a unit. This authorization includes the authority to impose additional insurance requirements in such amounts as the director may deem necessary. All such rules shall be in writing, shall be on file in the city secretary's office and shall be available to the public upon request from the office of the director. This authorization also includes the authority to temporarily suspend a vendor's permit.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2021-1037, § 20(Exh. I.38), 12-1-2021, eff. 4-1-2022)

Sec. 32-232. Enforcement.

(a) Notwithstanding the other provisions of this article, whenever the director or the health officer finds an unsanitary or other unhealthful or unsafe condition in the operation of a unit, he may issue a written notice to the vendor citing such condition, specifying the corrective action to be taken, and specifying the time period within which such action shall be taken; and, if deemed necessary, such order shall state that the permit is immediately suspended, and all food service operations are to be immediately discontinued. Any person to whom such an order is issued shall comply immediately therewith, but upon written petition to the director, shall be afforded a hearing within ten days after the issuance of that order.

(b) The director may suspend or revoke a permit for failure to observe any of the conditions listed in section 32-231. Prior to such suspension or revocation the director shall give ten days' written notice to the vendor of his violation of or his failure to observe a general condition as set out above. If the vendor requests a hearing prior to the expiration of that ten-day notice period, the director shall hold a hearing to determine if the permit should be suspended or revoked. The vendor may present evidence in his own behalf if he so desires. The director's decision in regard to suspension or revocation shall be final. If the vendor fails to request such a hearing, the suspension or revocation shall become effective upon the expiration of the ten-day notice period. If a permit granted under this article is suspended or revoked, the vendor shall not operate the unit on park property thereafter. A vendor whose permit has been suspended or revoked may apply for a permit the following vending season.

(c) All notices required or permitted under this article shall be in writing and shall be deemed delivered upon email notification, personal delivery or three days after deposit in a United States Postal Service post office or receptacle with proper postage affixed and addressed to the vendor at the address provided by the vendor (the applicant's name and street address) in his application for a permit.

(d) In the event that the health officer issues a notice of violation of any law or ordinance to a vendor in connection with the operation of or any condition related to the unit or the vendor's operation, including a violation of this article, the health officer shall immediately notify the director. Conversely, if the director is notified of or becomes aware of any condition or occurrence which may constitute a violation of this article or of any food or health-related statute or ordinance, the director shall immediately notify the health officer. Copies of all inspection reports, prepared by the health officer, on units permitted hereunder shall be promptly forwarded to the director.

(e) Suspension, revocation, or expiration of a vendor's good dealer's permit or mobile food service unit medallion shall result in the immediate suspension of the permit granted hereunder without further action on the part of the city. Such suspension shall remain in effect until the vendor's food dealer's permit and mobile food service unit medallion are restored. The notice provisions of section 32-232(c) shall not be applicable to suspension of a permit under this subsection.

(f) In addition, a permit shall be revocable without liability therefor if the director finds that a public necessity or emergency exists requiring an immediate revocation of the permit and

termination of operation of the unit for the remainder of a vending season. In that case the director shall provide written notice to the vendor as promptly as possible. This notice shall state the reason or reasons emergency revocation is or was required. Notice under this clause shall constitute an exception to the notice provisions of section 32-232(c).
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-233. Fees.

Permit fees for units shall be established by the city council. The schedule of fees approved under this provision shall be included in the city fee schedule.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Secs. 32-234—32-239. Reserved.

DIVISION 2. FOOD TRUCKS

Sec. 32-240. Operation.

(a) It shall be unlawful for any person to operate a food truck in any park.

(b) It shall be an affirmative defense to prosecution under this section that the actor is:

(1) Operating under a special event permit issued pursuant to chapter 25 of this Code;

(2) Operating under a contract awarded pursuant to the city's procurement procedures set forth in chapter 15 of this Code; or

(3) Operating under the authority of a concession contract authorized pursuant to section 32-8(b) of this Code.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-241. Authority of the director to promulgate rules

The director is authorized to promulgate additional rules and regulations regarding the permitting and operation of food trucks in city parks. The promulgation of such rules and regulations shall conform to the provisions of subsection 32-5(a) of the Code.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

ARTICLE X. RESERVED

Sec. 32-242. Reserved.

ARTICLE XI. MILLER THEATRE ADVISORY BOARD

Sec. 32-243. Creation of advisory board.

There is hereby created the Miller Theatre Advisory Board, whose members shall be appointed by the mayor, subject to confirmation by the city council. The director shall serve as executive secretary to the board but shall not be a member of the board and shall not have a vote. The Houston Arts Alliance (HAA) shall select a representative to be an ex officio member of the board. Additionally, from time to time, the Hermann Park Conservancy shall select a representative to be an ex officio member of the board; neither of these representative ex officio members shall have a vote or be considered a member for the purpose of establishing a quorum.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-244. Positions and terms of board.

(a) There shall be 21 voting members of the Miller Theatre Advisory Board, each of whom must reside within the limits of the city and shall be appointed by the mayor and approved by city council. The term of each member shall be for four years and shall continue until a successor has been appointed and confirmed. Terms shall be staggered. An appointment made to fill a vacancy caused by the death or resignation of a board member shall be for the balance of the term of the position.

(b) The initial appointments shall be made for staggered terms, with seven members being appointed for four-year terms, seven members being appointed for three-year terms, and seven members being appointed for two-year terms,

with consideration being given to the number of years, if any, an individual served on the Miller Theatre Advisory Council.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-245. Assistance of city departments.

Through the director, the directors of other city departments shall provide requested assistance to the board. The city attorney shall provide requested legal representation and services to the board.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-246. Members to serve without pay.

Members of the board shall serve without compensation from the city or any firm, trust, donation or legacy to or on behalf of the city; provided, however, that a member of the board, or the firm, company or corporation with whom the member is associated shall not be precluded from receiving compensation from the city under any contract for services rendered that have no relation to the member's duties as a member of the board. Members of the board shall abstain from voting upon matters in which they have or may have a conflict of interest.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-247. Organization of the board.

The board shall elect from their membership a chairman, a vice-chairman, a secretary and a treasurer to serve for one year commencing on January 1 and ending on December 31, or until a successor shall have been elected and installed. The board must adopt such administrative procedures as are necessary to accomplish the purposes set out in this article.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-248. Purposes.

The purposes of the Miller Theatre Advisory Board shall be:

(1) Receipt and management of an annual allocation from the city in support of performances at the Miller Outdoor Theatre. Applicants for such support will be reviewed and auditioned as necessary.

(2) Management and distribution of funds for Miller Outdoor Theatre performances in accordance with an approved schedule of performances.

(3) Solicitation of funds, gifts, and bequests for Miller Outdoor Theatre performances, programs, and facilities.

(4) Management, investment, and oversight of funds, gifts, and bequests donated to Miller Outdoor Theatre.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-249. Additional powers of board.

(a) The board may cooperate with any trust created for similar purpose or purposes. However, the board has no authority to commit city funds, property, personnel, or services.

(b) The board may contract for financial management and investment services, paying reasonable fees therefor from solicited funds, gifts, bequests, or income therefrom, provided the board shall exclude from provision of such payment those solicited funds, gifts, bequests or income the donor of which made provisions contrary to such use.

(c) The board may exercise its sole discretion in the application, for Miller Outdoor Theatre purposes, of those funds donated directly to the board, provided purchases and improvements to the Miller Outdoor Theatre shall be in compliance with the competitive bid laws of the state and the Charter of the city and shall be approved by the city.

(d) The board may exercise its sole discretion in the application, for Miller Outdoor Theatre purposes, of those funds received from any trust created specifically for the benefit of the board when such trust specifically grants such sole authority to the board, provided purchases and improvements to the Miller Outdoor Theatre shall be in compliance with the competitive bid laws of the state and the Charter of the city and shall be approved by the city.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-250. Financial records of board.

The financial books and records of the board shall be open to inspection and audit during regular business hours by authorized representatives of the city, or by independent certified public accountants employed or engaged by the city. Further, as a condition of the acceptance of funds or the cooperation described in sections 32-248 and 32-249 of this Code, the board must provide annual audited financial statements.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-251. Annual report.

The board shall make an annual report to the mayor, city council, and the director.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-252. Removal of board members.

Board members may be removed by the mayor for the following causes:

(1) Four consecutive absences from regular monthly meetings of the board.

(2) Failure to abstain in votes or activities of the board where a direct or indirect conflict of interest is or may be involved.

(3) Conduct, whether within or without board activities, which impairs the ability of the member to discharge his board duties.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Secs. 32-253—32-260. Reserved.

ARTICLE XII. HOUSTON YOUTH RECREATION PROGRAMS STANDARDS OF CARE*

DIVISION 1. GENERALLY

Sec. 32-261. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings assigned to them in this section, except where the context clearly indicates a different meaning:

Assistant director means an assistant director of the parks and recreation department of the city, or the assistant director's designee.

Parent means a parent or guardian who has legal custody and authority to enroll a child in a youth recreation program.

Participant means a youth (ages 5—13) whose parent or guardian has completed all required registration procedures and has been determined to be eligible for a youth recreation program.

Program manual means the notebook of policies, procedures, forms, and organizational and programming information relevant to a youth recreation program.

Program site means the area or facilities where a youth recreation program is held.

Program staff means the person or persons who have been hired or have volunteered to work for the city and have been assigned responsibility for managing, administering, or implementing some or all portions of a youth recreation program. This definition includes recreation facility managers, program managers, recreation supervisors, recreation specialists, and recreation assistants.

Site manager means a recreation facility manager, program manager, or recreation supervisor.

Youth recreation programs mean the department programs consisting of the after school enrichment program, the summer enrichment program, the holiday enrichment program, and other non-school day programs.

(Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No. 08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09;

*__Editor's note__—In accordance with Section 42.041(b)(14) of the Texas Human Resources Code, the City Council has annually conducted public hearings regarding the continuation of this Article. Following public hearings conducted in 2020, City Council continued this Article by adoption of Ord. No. 2020-778, § 2, effective September 16, 2020. Following public hearings conducted in 2021, City Council continued this Article by adoption of Ord. No. 2021-689, § 2, effective August 11, 2021. City Council continued this Article by adoption of Ord. No. 2023-648, § 2, effective August 23, 2023.

Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011; Ord. No. 2012-717, §§ 2—4, 8-22-2012; Ord. No. 2013-665, § 2, 7-25-2013; Ord. No. 2014-725, § 2, 7-23-2014; Ord. No. 2015-745, § 2, 8-5-2015) Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2016-606, § 2, 8-10-2016; Ord. No. 2017-588, § 2, 8-8-2017; Ord. No. 2018-587, § 3, 7-25-2018; Ord. No. 2019-593, § 2, 8-7-2019; Ord. No. 2020-778, § 2, 9-16-2020; Ord. No. 2021-689, § 2, 8-11-2021; Ord. No. 2023-648, § 2, 8-23-2023)

Sec. 32-262. Organization.

(a) The governing body of the youth recreation programs is the city council.

(b) Implementation of the youth recreation program standards of care is the responsibility of the assistant director and program staff.

(c) The standards of care, as provided in this division, shall apply to the department's youth recreation programs.

(d) Each program site will have a current copy of the standards of care available for the public and the staff.

(e) Parents of participants will be provided a copy of the standards of care prior to the start of a youth recreation program, preferably during the registration process. Parents will be informed that a youth recreation program is not licensed by the state and that the youth recreation program is not a child-care facility.

(f) Criminal background checks will be conducted on prospective program staff. If results of a criminal check indicate that an applicant has been convicted of any of the following offenses, the applicant will not be considered for employment in a youth recreation program:

(1) A felony or a misdemeanor classified as an offense against a person or family;

(2) A felony or a misdemeanor classified as public indecency;

(3) A felony or a misdemeanor violation of any law intended to control the possession or distribution of any controlled substance;

(4) Any offense involving moral turpitude; or

(5) Any offense that would potentially put the city at risk.

(Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No. 08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09; Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011; Ord. No. 2012-717, §§ 2—4, 8-22-2012; Ord. No. 2013-665, § 2, 7-25-2013; Ord. No. 2014-725, § 2, 7-23-2014; Ord. No. 2015-745, § 2, 8-5-2015 Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2016-606, § 2, 8-10-2016; Ord. No. 2017-588, § 2, 8-8-2017; Ord. No. 2018-587, § 3, 7-25-2018; Ord. No. 2019-593, § 2, 8-7-2019; Ord. No. 2020-778, § 2, 9-16-2020; Ord. No. 2021-689, § 2, 8-11-2021; Ord. No. 2023-648, § 2, 8-23-2023)

Sec. 32-263. Inspection, monitoring, and enforcement.

(a) A site manager of a program site will ensure compliance with the standards of care and will prepare a monthly inspection report.

(b) Inspection reports will be sent to the assistant director for review.

(c) The assistant director will review the report and establish deadlines and criteria for compliance with the standards of care.

(d) The assistant director will make visual inspections of youth recreation programs based on the following schedule:

(1) An after school enrichment program site will be inspected monthly. This may be scheduled or unscheduled.

(2) The summer enrichment program will be inspected twice during its summer schedule.

(e) A complaint regarding enforcement of the standards of care will be directed to the site manager. The site manager will be responsible for taking the necessary steps to resolve the complaint. The site manager will record complaints regarding enforcement of the standards of care and their resolution. Serious

complaints regarding enforcement of the standards of care will be forwarded to the assistant director for review and resolution.

(f) The assistant director will make an annual report to the director on the overall status of the youth recreation programs and their operation relative to compliance with the adopted standards of care.

(Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No. 08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09; Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011; Ord. No. 2012-717, §§ 2—4, 8-22-2012; Ord. No. 2013-665, § 2, 7-25-2013; Ord. No. 2014-725, § 2, 7-23-2014; Ord. No. 2015-745, § 2, 8-5-2015 Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2016-606, § 2, 8-10-2016; Ord. No. 2017-588, § 2, 8-8-2017; Ord. No. 2018-587, § 3, 7-25-2018; Ord. No. 2019-593, § 2, 8-7-2019; Ord. No. 2020-778, § 2, 9-16-2020; Ord. No. 2021-689, § 2, 8-11-2021; Ord. No. 2023-648, § 2, 8-23-2023)

Sec. 32-264. Enrollment.

Before a child can become a youth recreation program participant, a parent must sign a registration form that contains:

(1) The child's name, age, address, and home telephone number;

(2) Emergency contact names and telephone numbers;

(3) The child's doctor's name and telephone number; and

(4) A liability waiver.

(Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No. 08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09; Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011; Ord. No. 2012-717, §§ 2—4, 8-22-2012; Ord. No. 2013-665, § 2, 7-25-2013; Ord. No. 2014-725, § 2, 7-23-2014; Ord. No. 2015-745, § 2, 8-5-2015 Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2016-606, § 2, 8-10-2016; Ord. No. 2017-588, § 2, 8-8-2017; Ord. No. 2018-587, § 3, 7-25-2018; Ord. No. 2019-593, § 2, 8-7-2019; Ord. No. 2020-778, § 2, 9-16-2020; Ord. No. 2021-689, § 2, 8-11-2021; Ord. No. 2023-648, § 2, 8-23-2023)

Sec. 32-265. Suspected child abuse.

(a) Program staff will report suspected child abuse in accordance with the Texas Family Code.

(b) Program staff will receive basic training related to child abuse prevention and reporting.

(Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No. 08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09; Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011; Ord. No. 2012-717, §§ 2—4, 8-22-2012; Ord. No. 2013-665, § 2, 7-25-2013; Ord. No. 2014-725, § 2, 7-23-2014; Ord. No. 2015-745, § 2, 8-5-2015 Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2016-606, § 2, 8-10-2016; Ord. No. 2017-588, § 2, 8-8-2017; Ord. No. 2018-587, § 3, 7-25-2018; Ord. No. 2019-593, § 2, 8-7-2019; Ord. No. 2020-778, § 2, 9-16-2020; Ord. No. 2021-689, § 2, 8-11-2021; Ord. No. 2023-648, § 2, 8-23-2023)

Secs. 32-266—32-270. Reserved.

DIVISION 2. STAFFING QUALIFICATIONS AND TRAINING

Sec. 32-271. Recreation facility manager qualifications.

(a) Recreation facility managers will be employees of the department and will be required to have the minimum qualifications outlined in this section.

(b) Recreation facility managers should possess the following combination of experience and training:

(1) Two years of experience in recreation facility operations.

(2) An associate's degree in physical education, art or a related field.

(Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No. 08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09; Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011; Ord. No. 2012-717, §§ 2—4, 8-22-2012; Ord. No. 2013-665, § 2, 7-25-2013; Ord. No. 2014-725, § 2, 7-23-2014; Ord. No. 2015-745, § 2, 8-5-2015 Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2016-606, § 2, 8-10-2016; Ord. No. 2017-588, § 2, 8-8-2017; Ord. No. 2018-587, § 3, 7-25-2018; Ord. No. 2019-593, § 2, 8-7-2019; Ord. No. 2020-778, § 2, 9-16-2020; Ord. No. 2021-689, § 2, 8-11-2021; Ord. No. 2023-648, § 2, 8-23-2023)

Sec. 32-272. Program manager qualifications.

(a) Program managers will be employees of the department and will be required to have the minimum qualifications outlined in this section.

(b) Program managers should possess the following combination of experience and training:

(1) Two years of experience coordinating and managing community programs and activities.

(2) An associate's degree in business administration, management, physical education, art or a related field.

(Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No. 08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09; Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011; Ord. No. 2012-717, §§ 2—4, 8-22-2012; Ord. No. 2013-665, § 2, 7-25-2013; Ord. No. 2014-725, § 2, 7-23-2014; Ord. No. 2015-745, § 2, 8-5-2015 Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2016-606, § 2, 8-10-2016; Ord. No. 2017-588, § 2, 8-8-2017; Ord. No. 2018-587, § 3, 7-25-2018; Ord. No. 2019-593, § 2, 8-7-2019; Ord. No. 2020-778, § 2, 9-16-2020; Ord. No. 2021-689, § 2, 8-11-2021; Ord. No. 2023-648, § 2, 8-23-2023)

Sec. 32-273. Recreation supervisor qualifications.

(a) Recreation supervisors will be employees of the department and will be required to have the minimum qualifications outlined in this section.

(b) Recreation supervisors should possess the following combination of experience and training:

(1) An associate's degree in education, recreation, physical education, art or a related field.

(2) Two years of experience in recreation or education.

(Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No. 08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09; Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011; Ord. No. 2012-717, §§ 2—4, 8-22-2012; Ord. No. 2013-665, § 2, 7-25-2013; Ord. No. 2014-725, § 2, 7-23-2014; Ord. No. 2015-745, § 2, 8-5-2015 Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2016-606, § 2, 8-10-2016; Ord. No. 2017-588, § 2, 8-8-2017; Ord. No. 2018-587, § 3, 7-25-2018; Ord. No. 2019-593, § 2, 8-7-2019; Ord. No. 2020-778, § 2, 9-16-2020; Ord. No. 2021-689, § 2, 8-11-2021; Ord. No. 2023-648, § 2, 8-23-2023)

Sec. 32-274. Reserved.

Editor's note—Ord. No. 2012-717, § 5, adopted August 22, 2012, repealed § 32-274 in its entirety. Formerly said section pertained to senior recreation specialist qualifications and derived from Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No. 08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09; Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011.

Sec. 32-275. Recreation specialist qualifications.

(a) Recreation specialists will be employees of the department and will be required to have the minimum qualifications outlined in this section.

(b) Recreation specialists should possess the following combination of experience and training:

(1) Three months of experience in recreation, education or a related field.

(2) An associate's degree in physical education, art or a related field.

(Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No. 08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09; Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011; Ord. No. 2012-717, §§ 2—4, 8-22-2012; Ord. No. 2013-665, § 2, 7-25-2013; Ord. No. 2014-725, § 2, 7-23-2014; Ord. No. 2015-745, § 2, 8-5-2015; Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2016-606, § 2, 8-10-2016; Ord. No. 2017-588, § 2, 8-8-2017; Ord. No. 2018-587, § 3, 7-25-2018; Ord. No. 2019-593, § 2, 8-7-2019; Ord. No. 2020-778, § 2, 9-16-2020; Ord. No. 2021-689, § 2, 8-11-2021; Ord. No. 2023-648, § 2, 8-23-2023)

Sec. 32-276. Recreation assistant qualifications.

(a) Recreation assistants will be employees of the department and will be required to have the minimum qualifications outlined in this section.

(b) Recreation assistants should possess the following combination of experience and training:

(1) Three months of experience in recreation, education or a related field.

(2) A high school diploma or GED certificate.

(Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No. 08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09; Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011; Ord. No. 2012-717, §§ 2—4, 8-22-2012; Ord. No. 2013-665, § 2, 7-25-2013; Ord. No. 2014-725, § 2, 7-23-2014; Ord. No. 2015-745, § 2, 8-5-2015; Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2016-606, § 2, 8-10-2016; Ord. No. 2017-588, § 2, 8-8-2017; Ord. No. 2018-587, § 3, 7-25-2018; Ord. No. 2019-593, § 2, 8-7-2019; Ord. No. 2020-778, § 2, 9-16-2020; Ord. No. 2021-689, § 2, 8-11-2021; Ord. No. 2023-648, § 2, 8-23-2023)

Sec. 32-277. Training and orientation.

(a) The department is responsible to provide training and orientation to program staff in working with participants and for specific job responsibilities. The assistant director will provide each program site with a program manual.

(b) Program staff should be familiar with the standards of care for youth recreation programs as adopted by city council.

(c) Program staff should be familiar with a youth recreation program's policies including discipline, guidance, and release of participants.

(d) Program staff will be trained in appropriate procedures to handle emergencies.

(e) Program staff will be trained in areas including city, department, and youth recreation program policies and procedures, recreation activities organization, safety issues, program organization, and other areas as required by an assigned youth recreation program.

(f) Program staff will be required to sign an acknowledgment that they have received the required training.

(Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No. 08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09; Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011; Ord. No. 2012-717, §§ 2—4, 8-22-2012; Ord. No. 2013-665, § 2, 7-25-2013; Ord. No. 2014-725, § 2, 7-23-2014; Ord. No. 2015-745, § 2, 8-5-2015; Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2016-606, § 2, 8-10-2016; Ord. No. 2017-588, § 2, 8-8-2017; Ord. No. 2018-587, § 3, 7-25-2018; Ord. No. 2019-593, § 2, 8-7-2019; Ord. No. 2020-778, § 2, 9-16-2020; Ord. No. 2021-689, § 2, 8-11-2021; Ord. No. 2023-648, § 2, 8-23-2023)

Secs. 32-278—32-280. Reserved.

DIVISION 3. OPERATIONS

Sec. 32-281. Staff-participant ratio.

In a youth recreation program, the standard ratio of participants to staff is 25 to 1, based on average daily attendance. For a field trip, the standard ratio of participants to staff is 10 to 1, based on average daily attendance.
(Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No. 08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09; Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011; Ord. No. 2012-717, §§ 2—4, 8-22-2012; Ord. No. 2013-665, § 2, 7-25-2013; Ord. No. 2014-725, § 2, 7-23-2014; Ord. No. 2015-745, § 2, 8-5-2015; Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2016-606, § 2, 8-10-2016; Ord. No. 2017-588, § 2, 8-8-2017; Ord. No. 2018-587, § 3, 7-25-2018; Ord. No. 2019-593, § 2, 8-7-2019; Ord. No. 2020-778, § 2, 9-16-2020; Ord. No. 2021-689, § 2, 8-11-2021; Ord. No. 2023-648, § 2, 8-23-2023)

Sec. 32-282. Discipline.

(a) Program staff will implement discipline and guidance in a consistent manner based on the best interests of participants.

(b) There will be no cruel treatment or harsh punishment.

(c) As necessary, program staff will initiate discipline reports to the parent(s) of participants. A parent will be asked to sign a participant discipline report to indicate that the parent has been advised about specific problems or incidents.

(d) A sufficient number and/or severe nature of discipline reports may result in a participant being suspended from a youth recreation program.

(e) A participant will be removed from the program site as soon as possible in instances of danger to other participants or program staff.
(Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No. 08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09; Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011; Ord. No. 2012-717, §§ 2—4, 8-22-2012; Ord. No. 2013-665, § 2, 7-25-2013; Ord. No. 2014-725, § 2, 7-23-2014; Ord. No. 2015-745, § 2, 8-5-2015; Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2016-606, § 2, 8-10-2016; Ord. No. 2017-588, § 2, 8-8-2017; Ord. No. 2018-587, § 2, 7-25-2018; Ord. No. 2019-593, § 2, 8-7-2019; Ord. No. 2020-778, § 2, 9-16-2020; Ord. No. 2021-689, § 2, 8-11-2021; Ord. No. 2023-648, § 2, 8-23-2023)

Sec. 32-283. Programming.

(a) Program staff will provide cultural, educational, and recreational programs for participants according to their ages, interests, and abilities. The activities will be appropriate to the health, safety, and well-being of participants. The activities also will be flexible and promote the emotional, social, and mental growth of participants.

(b) Program staff will attempt to provide indoor and outdoor time periods to include:

(1) Alternating active and passive activities;

(2) Opportunity for individual, small, and large group activities; and

(3) Outdoor time each day, as weather permits, based upon room availability and weather conditions.

(c) Program staff will be attentive and considerate of the participant's safety on field trips and during any transportation provided by a youth recreation program.

(d) During field trips, program staff will have emergency contact information for each participant.

(e) Program staff will have a written list of the participants in the group and should check the roll before departure to and from the destination.

(f) Program staff will have first aid supplies available on field trips.
(Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No.

08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09; Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011; Ord. No. 2012-717, §§ 2—4, 8-22-2012; Ord. No. 2013-665, § 2, 7-25-2013; Ord. No. 2014-725, § 2, 7-23-2014; Ord. No. 2015-745, § 2, 8-5-2015; Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2016-606, § 2, 8-10-2016; Ord. No. 2017-588, § 2, 8-8-2017; Ord. No. 2018-587, § 3, 7-25-2018; Ord. No. 2019-593, § 2, 8-7-2019; Ord. No. 2020-778, § 2, 9-16-2020; Ord. No. 2021-689, § 2, 8-11-2021; Ord. No. 2023-648, § 2, 8-23-2023)

Sec. 32-284. Communication.

A program site will have a telephone to allow a program site to be contacted by program staff. A program site will have access to a telephone for use in contacting program staff or making emergency telephone calls. At a program site, the site manager will post the following telephone numbers adjacent to a telephone accessible to program staff:

(1) City ambulance or emergency medical services;

(2) Houston Police Department;

(3) Houston Fire Department;

(4) Department administrative office; and

(5) Telephone numbers and address of the program site.

(Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No. 08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09; Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011; Ord. No. 2012-717, §§ 2—4, 8-22-2012; Ord. No. 2013-665, § 2, 7-25-2013; Ord. No. 2014-725, § 2, 7-23-2014; Ord. No. 2015-745, § 2, 8-5-2015; Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2016-606, § 2, 8-10-2016; Ord. No. 2017-588, § 2, 8-8-2017; Ord. No. 2018-587, § 3, 7-25-2018; Ord. No. 2019-593, § 2, 8-7-2019; Ord. No. 2020-778, § 2, 9-16-2020; Ord. No. 2021-689, § 2, 8-11-2021; Ord. No. 2023-648, § 2, 8-23-2023)

Sec. 32-285. Transportation.

(a) Before a participant can be transported to and from city sponsored activities, a registration/waiver form, completed and signed by a parent of the participant, will be filed with the department.

(b) First aid supplies will be available in a youth recreation program vehicle used to transport participants.

(c) Seatbelts will be worn, if provided.

(d) Participants will be oriented to expected behavior and safety rules.

(Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No. 08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09; Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011; Ord. No. 2012-717, §§ 2—4, 8-22-2012; Ord. No. 2013-665, § 2, 7-25-2013; Ord. No. 2014-725, § 2, 7-23-2014; Ord. No. 2015-745, § 2, 8-5-2015; Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2016-606, § 2, 8-10-2016; Ord. No. 2017-588, § 2, 8-8-2017; Ord. No. 2018-587, § 3, 7-25-2018; Ord. No. 2019-593, § 2, 8-7-2019; Ord. No. 2020-778, § 2, 9-16-2020; Ord. No. 2021-689, § 2, 8-11-2021; Ord. No. 2023-648, § 2, 8-23-2023)

Secs. 32-286—32-290. Reserved.

DIVISION 4. FACILITY STANDARDS

Sec. 32-291. Safety.

(a) Program staff will inspect program sites weekly checking for sanitation and safety concerns that might affect the health and safety of participants.

(b) Buildings, grounds and equipment on a program site will be inspected, cleaned, repaired and maintained to protect the health and safety of participants.

(c) Program site equipment and supplies will be safe for use of participants

(d) Program staff will have first aid supplies available at a program site in a designated location, during transportation, and for the duration of any off-site activity.

(Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No. 08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09; Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011; Ord. No. 2012-717, §§ 2—4, 8-22-2012; Ord. No. 2013-665, § 2, 7-25-2013; Ord. No. 2014-725, § 2, 7-23-2014; Ord. No. 2015-745, § 2, 8-5-2015; Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2016-606, § 2, 8-10-2016; Ord. No. 2017-588, § 2, 8-8-2017; Ord. No. 2018-587, § 3, 7-25-2018; Ord. No. 2019-593, § 2, 8-7-2019; Ord. No. 2020-778, § 2, 9-16-2020; Ord. No. 2021-689, § 2, 8-11-2021; Ord. No. 2023-648, § 2, 8-23-2023)

Sec. 32-292. Fire.

(a) In case of fire, danger of fire, explosion or other emergency, program staff's first priority is to evacuate participants to a pre-designated safe area.

(b) A program site will have an annual fire inspection, and the resulting report will detail any safety concerns observed and recommend deadlines and criterion for compliance.

(c) A program site will have at least one fire extinguisher readily available to all program staff. The fire extinguisher will be inspected monthly by the site manager. Program staff will be trained in the proper use of a fire extinguisher.

(d) Fire drills will be initiated at program sites based on the following schedule:

(1) After school enrichment program—Once every three months; and

(2) Summer enrichment program—Once during each program.

(Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No. 08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09; Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011; Ord. No. 2012-717, §§ 2—4, 8-22-2012; Ord. No. 2013-665, § 2, 7-25-2013; Ord. No. 2014-725, § 2, 7-23-2014; Ord. No. 2015-745, § 2, 8-5-2015; Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2016-606, § 2, 8-10-2016; Ord. No. 2017-588, § 2, 8-8-2017; Ord. No. 2018-587, § 3, 7-25-2018; Ord. No. 2019-593, § 2, 8-7-2019; Ord. No. 2020-778, § 2, 9-16-2020; Ord. No. 2021-689, § 2, 8-11-2021; Ord. No. 2023-648, § 2, 8-23-2023)

Sec. 32-293. Health.

(a) *Illness or injury.*

(1) A participant who is considered to be a health or safety concern to other participants or program staff will not be admitted to a youth recreation program.

(2) Illnesses and injuries will be handled in a manner to protect the health of all participants and program staff.

(3) Program staff will follow emergency procedures for injured participants or for participants with symptoms of an acute illness.

(b) *Toilet facilities.*

(1) A program site will have toilets located and equipped so participants can use them independently and program staff can monitor as needed.

(2) An adequate number of lavatories will be provided.

(c) *Sanitation.*

(1) An indoor program site will have adequate light, ventilation, air conditioning, and heat.

(2) A program site will have an adequate supply of water, and water will be supplied to the participants in a safe and sanitary manner.

(Ord. No. 02-756, § 2, 8-21-02; Ord. No. 03-793, 9-3-03; Ord. No. 04-891, § 2, 9-1-04; Ord. No. 05-1011, § 2, 8-30-05; Ord. No. 06-875, § 2, 8-23-06; Ord. No. 07-964, § 2, 8-29-07; Ord. No. 08-743, § 2, 8-27-08; Ord. No. 09-711, § 2, 8-5-09; Ord. No. 2010-660, § 2, 8-18-2010; Ord. No. 2011-672, § 2, 8-10-2011; Ord. No. 2012-717,

§§ 2—4, 8-22-2012; Ord. No. 2013-665, § 2, 7-25-2013; Ord. No. 2014-725, § 2, 7-23-2014; Ord. No. 2015-745, § 2, 8-5-2015; Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2016-606, § 2, 8-10-2016; Ord. No. 2017-588, § 2, 8-8-2017; Ord. No. 2018-587, § 3, 7-25-2018; Ord. No. 2019-593, § 2, 8-7-2019; Ord. No. 2020-778, § 2, 9-16-2020; Ord. No. 2021-689, § 2, 8-11-2021; Ord. No. 2023-648, § 2, 8-23-2023)

Secs. 32-294—32-299. Reserved.

ARTICLE XIII. BUFFALO BAYOU PARK

Sec. 32-300. Definitions.

The following words, terms and phrases, when used in this article, shall have the meaning assigned to them in this section.

BBP means the Buffalo Bayou Partnership, a Texas non-profit corporation, or its permitted successor under that certain Construction, Operation and Maintenance Agreement approved by City of Houston, Texas, Ordinance No. 2011-1166 (Dec. 14, 2011).

BBP areas means the areas of Buffalo Bayou East Park that are operated and managed by BBP pursuant to the Buffalo Bayou East Agreement.

Buffalo Bayou East Agreement means that certain Development, Construction, Operations, Maintenances and Concession Agreement approved by City of Houston, Texas Ordinance No. 2022-716 that authorizes BBP to operate and manage Buffalo Bayou East Park, as may be amended from time to time.

Buffalo Bayou East Park means a public park or parks owned by the city generally located between Clinton Drive to the north, Lockwood Drive to the east, Navigation Boulevard to the south, and the Union Pacific Railroad Bridge to the west, and as further described by the Buffalo Bayou East Agreement.

Buffalo Bayou Park means a publicly dedicated park adjacent to Buffalo Bayou and generally between Memorial Drive and Glenwood Cemetery on the north, Sabine Street on the east, Allen Parkway on the south, and Shepherd Drive on the west.

(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016; Ord. No. 2022-716, § 2, 9-28-2022)

Sec. 32-301. Buffalo Bayou Park.

(a) The director delegates authority to BBP to permit special uses, including exhibits of art, in Buffalo Bayou Park. Such delegation of authority shall end upon BBP's written notice of rejection of such authority to the director.

(b) BBP shall have the right to grant consents for offering anything for sale or barter, or to exhibit anything, or to conduct any amusement, recreational activity, sports event, or other business for which any participation or admission fee is charged or revenue is otherwise derived, within Buffalo Bayou Park.

(c) Notwithstanding section 32-7(a) of this Code, revenues derived from Buffalo Bayou Park, including user fee revenues related to special events but excluding other revenues related to special events as defined in section 25-2 of the Code, shall be deposited in accounts managed by the BBP for the sole benefit of Buffalo Bayou Park.

(d) BBP shall have the authority of the director under section 32-8 of the Code to grant written consent for concessions in Buffalo Bayou Park.

(e) BBP shall have the authority of the director under section 32-10 of the Code with respect to the approving applications for and permitting the maintenance or adoption of natural areas in Buffalo Bayou Park.

(f) Skateboarding and scooters are prohibited in Buffalo Bayou Park with the exception of the Lee and Joe Jamail Skateboard Park and adjacent Skater's Alley.

(g) Swimming is prohibited in Buffalo Bayou Park.

(h) BBP shall have the authority of the director under article IX of this chapter with respect to mobile food units and food trucks in Buffalo Bayou Park.

(i) BBP shall have the authority to designate (i) areas in Buffalo Bayou Park where a permit shall be required to conduct a special event, (ii) restricted use areas in Buffalo Bayou Park where certain types of special events shall not be permitted, and (iii) the allowable frequency of special events. BBP shall cause maps of such areas to be prepared and made available in the offices of the director and the director of the mayor's office of special events.

(j) Solely with respect to Buffalo Bayou Park, BBP shall have the concurrent authority with the director of the mayor's office of special events to deny a permit pursuant to section 25-7 of the Code.

(k) Solely with respect to Buffalo Bayou Park and in addition to any deposit levied by the city, BBP may levy a security deposit to protect Buffalo Bayou Park from damage and BBP from unpaid services BBP may be required to provide to protect the park and public safety, with such security deposit paid to BBP.

(l) Solely with respect to Buffalo Bayou Park, BBP and the director of the mayor's office of special events shall establish insurance requirements and indemnification requirements for special uses, special events and other activities.

(m) Solely with respect to Buffalo Bayou Park, BBP and director of the mayor's office of special events shall be required to coordinate the schedules of special uses, special events and other activities.

(n) The provisions of this article XIII shall terminate when BBP is no longer under contract with the city for the operation of Buffalo Bayou Park.
(Ord. No. 2016-65, § 2(Exh. A), 1-20-2016)

Sec. 32-302. Buffalo Bayou East Park.

(a) In accordance with and subject to the terms and conditions of the Buffalo Bayou East Agreement:

(1) BBP shall have the authority of the director under section 32-61 of this Code to issue park use permits in the BBP areas.

(2) Notwithstanding section 32-7(a) of this Code, park revenues, as defined in section 32-7(a) of this Code, derived in BBP areas shall be allocated to BBP for the sole benefit of the Buffalo Bayou East Park.

(3) BBP shall have the authority of the director under section 32-8 of the Code to grant written consent for concessions in the BBP Areas.

(4) Notwithstanding section 32-69 of this Code, BBP shall have the authority to establish park user fees, as defined in section 32-69 of this Code, in the BBP areas. The fees established under this provision shall be included in the city fee schedule.

(5) BBP shall have the authority to establish parking meter fees for parking meters placed in the park, subject to the parking meter fee schedule established pursuant to section 26-160 of this Code. Prior to exercising this authority, BBP shall notify the director and the parking official of its intent to do so and present its plan for parking meters in the park to city council no less than 90 days before the first parking meter is installed.

(6) All fees and/or revenues generated from the parking meter fees for parking meters described by item (5) of this section shall be first expended to defray costs associated with debt service of those meters, and all remaining funds shall be allocated to BBP for the sole benefit of the park.

(7) BBP shall have the right to have the fee described in section 26-182 of this Code waived upon submission of an application for a permit under division 2 of article Ill of chapter 26 of this Code.

(8) BBP shall have the authority of the director under article IX of this chapter with respect to mobile food units and food trucks in the BBP areas.

(9) Solely with respect to the BBP areas, BBP shall have the authority to designate (i) areas where a permit shall be required

to conduct a special event, (ii) restricted use areas where certain types of special events shall not be permitted, and (iii) the allowable frequency of special events.

(10) Solely with respect to the BBP areas, BBP shall have the concurrent authority with the director of the mayor's office of special events to deny a permit pursuant to section 25-7 of the Code.

(11) BBP and the director of the mayor's office of special events shall coordinate the scheduling, security, traffic management, and locations of special uses, special events, and other activities within the park.

(12) BBP and the director of the mayor's office of special events shall establish requirements for insurance, indemnification, and any other matters agreed to in the Buffalo Bayou East Agreement relating to special uses, special events and other activities in the park.

(13) BBP shall have the authority to conduct or permit others to conduct any amusement, recreational activity, sport event, or other business in the BBP areas for which any participation or admission fee is charged or revenue is otherwise derived.

(14) BBP shall have the authority of the director under section 32-10 of the Code with respect to approving applications for and permitting the maintenance or adoption of natural areas in the BBP areas.

(15) Solely within the BBP areas, BBP shall have the authority to manage and grant temporary use or installation within the park for exhibits, cultural activities, performances, and artwork.

(16) In addition to any deposit levied by the city, BBP may levy a security deposit with its granting of permits and other approvals authorized by this section to protect the park from damage and BBP from unpaid services it may be required to provide for the protection of the park and public safety, with such security deposit paid to BBP.

(17) The provisions of this section shall terminate upon termination or expiration of the Buffalo Bayou East Agreement.

(b) Swimming is prohibited in Buffalo Bayou East Park.

(c) Skateboarding and scooters are prohibited in Buffalo Bayou East Park, except in designated areas.

(Ord. No. 2022-716, § 3, 9-28-2022)

Secs. 32-303—32-310. Reserved.

ARTICLE XIV. MEMORIAL PARK

Sec. 32-311. Definitions.

The following words, terms and phrases, when used in this article, shall have the meaning assigned to them in this section.

Memorial Park means a public park consisting of approximately 1,464 acres owned by the city and generally located at 6501 Memorial Drive.

Memorial Park Agreement means that certain Amended and Restated Development, Construction, Operations, Maintenance and Concession Agreement approved by City of Houston, Texas, Ordinance No. 2018-366, May, 2, 2018, that authorizes MPC to operate and manage the MPC Areas, as may be amended from time to time.

MPC Areas means the areas of the Memorial Park that are operated and managed by MPC pursuant to the Memorial Park Agreement.

(Ord. No. 2018-366, § 3, 5-2-2018)

Sec. 32-312. Memorial Park Agreement.

In accordance with and subject to the terms and conditions of the Memorial Park Agreement:

(1) MPC shall have the authority of the director under section 32-61 of the Code to issue park use permits in the MPC Areas.

(2) Notwithstanding section 32-7(a) of this Code, park revenues, as defined in section 32-7(a) of this Code, derived in the MPC Areas shall be allocated to MPC for the sole benefit of Memorial Park.

(3) Notwithstanding section 32-7(b) of this Code, a portion of the revenues received by the city and deposited into the Parks Golf Special Fund may be allocated to MPC for the sole benefit of Memorial Park in such amounts as may be required under the Memorial Park Agreement.

(4) MPC shall have the authority of the director under section 32-8 of the Code to grant written consent for concessions in the MPC Areas.

(5) Notwithstanding section 32-69 of the Code, MPC shall have the authority to establish park user fees, as defined in section 32-69 of this Code, in the MPC Areas. The fees established under this provision shall be included in the city fee schedule.

(6) MPC shall have the authority to establish parking meter fees for parking meters placed in the MPC Areas, subject to the parking meter fee schedule established pursuant to section 26-160 of this Code.

(7) All fees and/or revenues generated from the parking meter fees for parking meters described by item (6) of this section shall be first expended to defray costs associated with debt service of those meters, and all remaining funds shall be allocated to MPC for the sole benefit of Memorial Park.

(8) MPC shall have the right to have the fee described in section 26-182 of this Code waived upon submission of an application for a permit under division 2 of article III of chapter 26 of this Code.

(9) MPC shall have the authority of the director under article IX of this chapter with respect to mobile food units and food trucks in the MPC Areas.

(10) Solely with respect to the MPC Areas, MPC shall have the authority to designate (i) areas where a permit shall be required to conduct a special event, (ii) restricted use areas where certain types of special events shall not be permitted, and (iii) the allowable frequency of special events.

(11) Solely with respect to the MPC Areas, MPC shall have the concurrent authority with the director of the mayor's office of special events to deny a permit pursuant to section 25-7 of the Code.

(12) MPC and the director of the mayor's office of special events shall establish requirements for insurance, indemnification, and any other matters agreed to in the Memorial Park Agreement relating to special uses, special events and other activities in Memorial Park.

(13) MPC and director of the mayor's office of special events shall be required to coordinate the scheduling, security, traffic management and locations of special uses, special events and other activities in Memorial Park.

(14) The provisions of this article XIV shall terminate upon termination or expiration of the Memorial Park Agreement.

(Ord. No. 2018-366, § 3, 5-2-2018)

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Chapter 33

PLANNING AND DEVELOPMENT*

Art. I. **In General, §§ 33-1—33-13**
Art. II. **Planning Commission, §§ 33-14—33-50**
Art. III. **Comprehensive Planning and Zoning, §§ 33-51—33-70**
Art. IV. **City Surveys, §§ 33-71—33-100**
Div. 1. Generally, §§ 33-71—33-80
Div. 2. Official Survey System, §§ 33-81—33-100
Art. V. **Trees, Shrubs and Screening Fences, §§ 33-101—33-150**
Div. 1. Generally, §§ 33-101—33-120
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Art. XI. **Conservation Districts, §§ 33-601—33-699**

***Charter reference—**Platting, Art. I, § 3.

Cross references—Location restrictions for establishments dealing in alcoholic beverages, § 3-2; location restrictions for kennels, § 6-126; location restrictions on keeping fowl, § 6-31; location restrictions for rabbits and guinea pigs, § 6-32; location restrictions on keeping of wild animals, § 6-51; keeping of wild animals prohibited on certain property, § 6-53; location restrictions on keeping of milch goats, § 6-12; location restriction on keeping cattle, § 6-13; offstreet parking requirements for airports, § 9-34; oil and gas exploration, etc., at George Bush Intercontinental Airport/Houston (IAH), § 9-261 et seq.; buildings, Ch. 10; house numbering, § 10-211 et seq.; restriction on location of abattoirs or slaughterhouses, § 10-271 et seq.; restrictions on location of automobile storage lots, automobile wrecking and salvage yards and lots used for open storage by junk dealers and secondhand dealers, § 28-34; flood hazard areas, Ch. 19; location restrictions for piers, § 23-35; manufactured homes, manufactured home parks, travel trailers, motor homes, etc., Ch. 29; oil and gas wells, Ch. 31; sexually oriented enterprises, § 28-35; subdivisions, Chs. 41, 42.

ARTICLE I. IN GENERAL

Sec. 33-1. Department established.

There is hereby created and established within and for the city a department to be known as the department of planning and development.
(Code 1968, § 33-1; Ord. No. 84-326, § 2, 2-28-84)

Sec. 33-2. Director—Generally.

The office of the director of the department of planning and development is hereby created. Such director shall be the head of such department and shall be appointed by the mayor with the approval of the city council.
(Code 1968, § 33-2; Ord. No. 84-326, § 2, 2-28-84)

Charter reference—Appointment of heads of administrative departments, Art. VI, § 7a.

Cross reference—Officers and employees generally, § 2-21 et seq.

Sec. 33-3. Duties.

The department, under the supervision of the director, is charged with the responsibility for the preparation of all plans, drawings and reports on all matters within the jurisdiction of the department and shall perform such other duties as may be assigned by the commission and the city council.
(Code 1968, § 33-3; Ord. No. 84-326, § 1, 2-28-84; Ord. No. 90-635, § 73, 5-23-90; Ord. No. 91-63, § 1, 1-9-91; Ord. No. 93-514, § 52, 5-5-93; Ord. No. 98-613, § 61, 8-5-98; Ord. No. 02-399, § 76, 5-15-02; Ord. No. 02-528, § 14m., 6-19-02; Ord. No. 04-1015, § 23, 9-27-04; Ord. No. 04-1075, § 9, 10-20-04)

Sec. 33-4. Definitions.

For the purposes of this chapter the following terms, phrases and words will have the following meanings:

Commission shall mean the city planning commission.

Department shall mean the department of planning and development of the city.

Director shall mean the director of the department of planning and development of the city.

Neighborhood shall mean a particular community, district or geographic area.
(Ord. No. 91-63, § 2, 1-9-91; Ord. No. 2015-559, § 2, 6-10-2015)

Secs. 33-5—33-13. Reserved.

ARTICLE II. PLANNING COMMISSION*

Sec. 33-14. Created.

There is hereby created a commission composed of 26 members. Five of the 26 members shall be nonvoting ex officio members. The director or his designee shall serve as ex officio member and secretary to the commission. The four additional ex officio members shall be (1) the Director of Houston Public Works or his designee; (2) a designee of the Board of Directors of the Metropolitan Transit Authority of Harris County, Texas; (3) the Executive Director of the Harris County Flood Control District or his designee; and (4) the most recent former chair of the commission. In the event that the most recent former chair of the commission is unable or unwilling to serve as an ex officio member of the commission, any former member of the commission with five years' experience on the commission may be appointed by the mayor, subject to confirmation by the city council, to serve in the former chair nonvoting ex officio position. The director may request that directors of other city departments or their designees meet with the commission from time to time when the commission has business affecting their departments.
(Ord. No. 91-63, § 3, 1-9-91; Ord, No. 05-14, § 1, 1-5-05; Ord. No. 05-994, § 1, 8-24-05; Ord. No. 2015-559, § 3, 6-10-2015; Ord. No. 2018-11, § 49, 1-10-2018; Ord. No. 2020-1093, § 2, 12-16-2020)

***Editor's note—**Section 3 of Ord. No. 91-63, adopted Jan. 9, 1991, amended Art. II to read as herein set forth. Prior to such amendment, Art. II, §§ 33-14—33-22, pertained to the planning commission and derived from §§ 33-14—33-22 of the 1968 Code and Ord. Nos. 77-364, 78-2349, 84-326, 86-463, 88-1238, 89-933 and 90-635.

Cross reference—Boards, commissions and authorities, generally, § 2-316 et seq.

Note—Ord. No. 95-104, § 1, adopted Jan. 25, 1995, changed the name of this article from "planning and zoning commission" to "planning commission."

Sec. 33-15. Qualifications, appointment and terms of members.

(a) Four members of the commission shall be ex officio members as specified in section 33-14 of this Code and do not need to be residents or qualified voters of the city. In addition, three members of the commission may be appointed, one each, from the membership of the Commissioners' Courts of Harris County, Texas, Fort Bend County, Texas, and Montgomery County, Texas, whether or not the appointees are residents or qualified voters of the city or residents of the city's extraterritorial jurisdiction. Two members of the commission shall be residents of the city's extraterritorial jurisdiction. The remaining 16 members shall be residents and qualified voters of the city. As far as practicable, these 16 nominated and confirmed members of the commission shall be representative of the ethnic and geographical demography of the city. The determination by the city council that the members of the commission meet the qualifications set forth in this section shall be final.

(b) If a commission member, except for the ex officio members and any representative from the membership of the commissioners' courts provided in subsection (a) above, removes his or her actual residence from the city or the city's extraterritorial jurisdiction, as applicable, during the term of his or her appointment, such person shall be disqualified to hold such position, and the position shall become vacant effective simultaneously with such change in residency.

(c) The members of the commission, other than the ex officio members, shall be appointed by the mayor, subject to confirmation by the city council. All appointments will be for two-year staggered terms. Each commissioner shall continue to act after the end of his or her term until a successor is appointed and confirmed.

(d) Within 12 months after the population within the city's extraterritorial jurisdiction in Waller County exceeds 25,000 persons, according to the most recent federal census, one member of the commission shall be appointed from the membership of the Commissioners' Court of Waller County, Texas. At such time the number of commission members will be increased by one.

(e) Within 12 months after the population within the city's extraterritorial jurisdiction in Liberty County exceeds 25,000 persons, according to the most recent federal census, one member of the commission shall be appointed from the membership of the Commissioners' Court of Liberty County, Texas. At such time the number of commission members will be increased by one.
(Ord. No. 91-63, § 3, 1-9-91; Ord. No. 92-1046, §§ 1, 2, 7-29-92; Ord. No. 05-14, § 2, 1-5-05)

Sec. 33-16. When county engineer to serve as member.

A county engineer may serve as a member of the commission in the absence of the member representing his county commissioners court whenever a member of that court is serving as a duly appointed member of the commission. For purposes of this section, a "county engineer" shall mean the person officially designated as the county engineer or such other employee of the county engineering department who is designated as an alternate by the member representing his commissioners' court.
(Ord. No. 91-63, § 3, 1-9-91; Ord. No. 99-1146, § 1, 10-27-99)

Sec. 33-17. Compensation.

The members of the commission, in the performance of their duties as such, shall serve without compensation.
(Ord. No. 91-63, § 3, 1-9-91)

Sec. 33-18. Chairman.

The chairman of the commission shall be selected from the commission and elected by a majority of the entire commission. An individual may serve for not more than eight consecutive years as chairman.
(Ord. No. 91-63, § 3, 1-9-91; Ord. No. 95-105, § 1, 1-25-95; Ord. No. 2020-1093, § 3, 12-16-2020)

Sec. 33-19. Quorum.

Eleven members of the commission shall constitute a quorum; however, in the event of vacancies on the commission, a majority of the members of the commission, or of the membership of the commission as expanded pursuant to

section 33-15(d) or (e), which, in any event, may include the secretary of the commission, shall constitute a quorum for the transaction of business.
(Ord. No. 91-63, § 3, 1-9-91; Ord. No. 05-14, § 3, 1-5-05)

Sec. 33-20. Committees.

The commission may form committees, including persons not on the commission, to assist it in the discharge of its responsibilities.
(Ord. No. 91-63, § 3, 1-9-91)

Sec. 33-21. Absence from meetings.

Three successive unexcused absences from the regularly scheduled meetings, after due notice served by telephone or mail of the time and place of such meetings, shall ipso facto terminate membership on the planning commission. Absences may be excused only by a majority of the commissioners present and voting at any scheduled meeting.
(Ord. No. 91-63, § 3, 1-9-91; Ord. No. 95-104, § 1, 1-25-95)

Sec. 33-22. General powers and duties.

(a) The commission shall have all powers of a planning commission as set forth in Chapter 212 of the Texas Local Government Code.

(b) Additionally, the commission shall have the power:

(1) To review and consider studies and plans for the improvement of the city and its extraterritorial jurisdiction with a view to its future development and welfare, and make recommendations for the adoption, amendment, or implementation of such studies and plans.

(2) To act with and assist all other municipal and governmental agencies and especially the city council in formulating and executing proper plans of municipal development.

(3) To select and recommend to the city council routes of transportation corridors and particularly to investigate and recommend the opening, widening or abandoning of streets, or the changing thereof to conform with the city's system, present and future, of streets, avenues, parks and parkways.

(4) To investigate, consider and report to the city council upon the layout or platting of new subdivisions of the city or of property adjacent to or near the city when requested by the city council to do so, and to perform all duties imposed upon planning and development commissions by chapter 42 of the Code of Ordinances, Houston, Texas and the statutes of the state.

(5) To recommend plans to the city council in agreement with the director of the parks and recreation department for improving, developing, expanding and beautifying the parks, parkways, bayous and streams in or adjoining the city and to cooperate with the city council and the other agencies of the city in devising, establishing, locating, improving, selecting, expanding and maintaining the public parks, parkways and places for public recreation.

(6) In conjunction with the traffic and transportation division of Houston Public Works, or a city department charged with that responsibility, to make recommendations to the city council concerning traffic regulation and control which directly affect the proper functioning of the planning and development programs adopted by the city council.

(7) Generally to investigate, consider and recommend to the city council all matters for the development and advancement of the city's physical layout and appearance.

(8) To recommend to the city council such capital improvements or other programs as the commission shall consider necessary to accommodate the present or future parking needs of the city.

(9) To conduct studies of the current or anticipated parking needs of the city or

any locale as the commission shall deem necessary or advisable and to report its findings on such matters to the city council.

(10) To provide a forum for input on present and future parking needs and related issues for stakeholders and other interested parties.

(Ord. No. 91-63, § 3, 1-9-91; Ord. No. 93-514, § 53, 5-5-93; Ord. No. 2010-683, § 4, 8-25-2010; Ord. No. 2015-513, § 4, 6-3-2015; Ord. No. 2018-11, § 50, 1-10-2018)

Editor's note—Ord. No. 93-514, § 53, adopted May 5, 1993, contained a provision to amend the Code designated as § 33-32(b)(9). Inasmuch as this provision pertained to 33-22(b)(9), its has been redesignated as such, at the discretion of the editor.

Sec. 33-23. Rules, regulations and bylaws.

The commission shall, subject to the approval of the city council, make such rules and regulations and adopt such bylaws for its own governance and designate such times and places for holding meetings as it deems proper.
(Ord. No. 91-63, § 3, 1-9-91)

Sec. 33-24. Commission meetings.

(a) The commission shall adopt a regular meeting schedule and shall give public notice of the meeting schedule by publication for three consecutive days in a daily newspaper of general circulation within the city and the area of extraterritorial jurisdiction. The commission may change this meeting schedule by the adoption of a new schedule, the effective date of which shall not be less than ten days after publication of the new schedule for three consecutive days in a daily newspaper having general circulation within the city and the area of extraterritorial jurisdiction. The commission may, by rule, designate the times and places for holding meetings as it deems proper.

(b) The commission may hold a special meeting for any purpose except for the filing of any plats or replats pursuant to chapter 42 of this Code.

(c) The commission shall hold at least one public hearing prior to the adoption of the major thoroughfare and freeway plan or any amendments thereto. The commission may establish rules governing the circumstances under which it will call public hearings and the reservation of time for speaking. All such rules shall grant reasonable opportunity for the public to be heard on matters within the jurisdiction of the commission.
(Ord. No. 99-262, § 3, 3-24-99)

Sec. 33-25. Reserved.

Editor's note—Ord. No. 2017-208, § 2, adopted March 23, 2017, repealed § 33-25 in its entirety. Formerly said section pertained to Annual major thoroughfare and freeway plan review and derived from Ord. No. 99-262, § 3, 3-24-99.

Secs. 33-26—33-50. Reserved.

ARTICLE III. GENERAL PLAN*

Sec. 33-51. Scope.

(a) The city shall adopt and maintain a general plan that describes an overall vision for the city that incorporates plans, policies, regulations, and coordinates strategies for the betterment of public health, safety, and welfare of the city and its extraterritorial jurisdiction.

(b) The general plan shall include, but not be limited to:

(1) A vision statement that provides an overview of the city's immediate and long term objectives for economic development, fiscal responsibility, infrastructure, development, redevelopment, public health, safety, welfare, and quality of life;

(2) Implementation and coordination strategies to achieve the objectives of the vision statement; and

*__Editor's note—__Ord. No. 2015-559, § 5, adopted June 10, 2015, amended Ch. 33, Art. III in its entirety to read as herein set out. Formerly said article pertained to Comprehensive Planning and Zoning and derived from Ord. No. 91-63, § 4, 1-9-91; Ord. No. 92-928, § 1, 7-1-92; Ord. No. 95-104, § 1, 1-25-95.

(3) A digital interactive planning coordination tool that provides information on related plans, policies, regulations, and identified performance indicators.

(Ord. No. 2015-559, § 5, 6-10-2015)

Sec. 33-52. Duties and responsibilities of the director.

(a) It shall be the responsibility of the director to oversee the maintenance of the general plan and to update the general plan at the direction of the Mayor of the City of Houston.

(b) The director shall coordinate with other city departments and offices, government agencies, stakeholder organizations, and the general public in formulating amendments to the general plan. The director shall periodically present recommendations for amendments to the general plan to the commission for consideration.

(c) The director shall make the general plan available to the public.

(d) The director shall establish an open, inclusive, public process for engaging the diverse ethnic and cultural communities to participate in the development of the general plan and any proposed amendments.

(e) Following the adoption of the general plan by city council, the director shall coordinate with other city departments, government agencies, and related stakeholder organizations on the implementation and maintenance of the general plan.

(Ord. No. 2015-559, § 5, 6-10-2015)

Sec. 33-53. Duties and responsibilities of city departments and offices.

(a) Each director of a city department or office shall designate a liaison to periodically report to the department new or updated policies, regulations, and planning activities related to the scope of the general plan.

(b) Each director of a city department or office shall consult and coordinate with the general plan, including with the digital interactive planning tool described in section 33-51(b)(3) of this Code, when formulating plans, policies, and regulations.

(Ord. No. 2015-559, § 5, 6-10-2015)

Sec. 33-54. Duties and responsibilities of the commission.

The commission shall hold a public hearing on the proposed general plan or any proposed amendments to the general plan. Upon the close of the public hearing, the commission shall consider whether the proposed general plan or the proposed amendments further the objectives outlined in the vision statement and the goals of the general plan. The commission shall vote to recommend the adoption of the proposed general plan or the proposed amendments to city council, refer the general plan or the proposed amendments back to the director for further study and evaluation, defer consideration of the proposed general plan or the proposed amendments to a future meeting, or disapprove the proposed general plan or the proposed amendments.

(Ord. No. 2015-559, § 5, 6-10-2015)

Sec. 33-55. Duties and responsibilities of the city council.

The city council is authorized to adopt a general plan after conducting a public hearing on the recommendation of the commission to adopt or amend the general plan. Upon close of the public hearing, the city council shall vote to approve, disapprove, or modify the recommendation of the commission made pursuant to section 33-54 of this Code.

(Ord. No. 2015-559, § 5, 6-10-2015)

Secs. 33-56—33-70. Reserved.

ARTICLE IV. CITY SURVEYS*

DIVISION 1. GENERALLY

Sec. 33-71. City surveys confirmed.

*__Editor's note—__Section 5 of Ord. No. 91-63, adopted Jan. 9, 1991, provided that former Art. III of Ch. 33 be

The original plan and survey, known and designated as the A.C. & J.K. Allen Survey, as far as marked by actual measurements, and so far as revised, reestablished and determined by the surveys of W.H. Griffin, C.E., under and by resolutions of the city council, shall be and is hereby affirmed and established as the true city survey of the city. The theory, survey and plat, as

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redesignated as Art. IV and the sections therein renumbered accordingly; hence, former § 33-51 and 33-61—33-66 were renumbered as §§ 33-71 and 33-81—33-86, respectively.

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marked on W.E. Wood's map, as to the dimensions of lots, blocks and widths of streets, is also confirmed in each and every particular.
(Code 1968, § 2-4; Ord. No. 91-63, § 5, 1-9-91)

Secs. 33-72—33-80. Reserved.

DIVISION 2. OFFICIAL SURVEY SYSTEM*

Sec. 33-81. Generally.

(a) As used in this article, the term "official coordinate system" shall mean the standard system of coordinates and elevations based upon the National Oceanic and Atmospheric Administration data known as the Texas State Plane Coordinate Grid System of 1983 (also known as the Texas Coordinate System of 1983) or such newer system as may be recognized by the state.

(b) Pursuant to Chapter 21, Subchapter D, of the Texas Natural Resources Code, the city hereby adopts the official coordinate system for surveys in the city.
(Ord. No. 03-1292, § 2, 12-17-03)

Sec. 33-82. Adoption of official maps and records of survey markers.

There are hereby adopted as a part of this Code, as fully as if set out at length herein, the maps developed as part of the City of Houston's Survey, Monumentation and Mapping Program. Each map is hereby declared to be an official map and an official record of the city. The official copy of each of such maps shall be kept and maintained in Houston Public Works and shall be available at all reasonable hours for inspection by the public. Employees of the department are authorized to cause copies of such maps and separate sheets within such records to be prepared and made available for sale to the public. As official custodians of the official copy of each such map, the employees of the department are authorized, upon application of any person, to issue a copy of any such map. In addition to the established sale price of the copy of the map, a fee of $1.00 payable to the city shall be charged and collected for certifying such copy.
(Ord. No. 03-1292, § 2, 12-17-03; Ord. No. 2018-11, § 50, 1-10-2018)

Sec. 33-83. Requirements for survey methodology.

Each survey shall be performed by reference to the National Spatial Reference System and the city's continuously operating reference system.
(Ord. No. 03-1292, § 2, 12-17-03)

Sec. 33-84. Approval of subdivision maps by planning commission.

Every subdivision plat tendered to the planning commission of the city for its approval, prerequisite to being recorded with the county clerk, shall be based upon a survey upon the ground which must be based on the official coordinate system.
(Ord. No. 03-1292, § 2, 12-17-03)

Sec. 33-85. Surveys and construction plans by city departments and surveyors employed by the city.

Every survey made by personnel of Houston Public Works or by any person performing surveying under contract with the city or by any person performing surveying work for any other political subdivision with which the city may hereafter contract relative to the construction of public works of any description wherever located, shall be based on the official coordinate system.
(Ord. No. 03-1292, § 2, 12-17-03; Ord. No. 2018-11, § 50, 1-10-2018)

***Editor's note—**Ord. No. 03-1292, § 2, adopted Dec. 17, 2003, amended Div. 2, §§ 33-81—33-86 in its entirety. Formerly said sections pertained to similar subject matter and derived from Code 1968, § 2-182 and subsequent amendments.

The provisions of Division 2 of Article IV of Chapter 33 of the Code of Ordinances, Houston, Texas, as amended are saved from repeal for the limited purpose of their continuing application to any requirement relating to a survey performed before the effective date of this section [1-1-04], provided that any plat, map or other document relating thereto must be initially filed with the City by the 180th day next following the effective date of this section.

Cross reference—Numbering of buildings, § 10-211 et seq.

Sec. 33-86. Surveys made by public utilities and others using streets.

Any telecommunications company, telegraph company, electric company, gas company, cable television company or other public utility of any kind (similar or dissimilar), lawfully possessed of the privilege of using the streets of the city for public utility installations, and any and all other persons having lawful permission from the city under general ordinances (including, without limitation, the Construction Code) or special ordinances to use either the surface or subsurface of any of the streets for any installation of any kind (including, without limitation, sewers, pipelines and waterlines) shall, in making its survey incident to the installation, when a survey is required by other applicable rules, regulations or ordinances of the city, base the survey on the official coordinate system. The map of the survey so made shall be filed with Houston Public Works when the application for permit for the installation is made.
(Ord. No. 03-1292, § 2, 12-17-03; Ord. No. 2018-11, § 50, 1-10-2018)

Secs. 33-87—33-100. Reserved.

ARTICLE V. TREES, SHRUBS AND SCREENING FENCES

DIVISION 1. GENERALLY

Sec. 33-101. Definitions; figures; appendices.

(a) As used in this article, the following terms shall have the meanings ascribed below unless the context of their usage clearly indicates another meaning:

Artificial lot means an area within the contiguous tract(s) or parcel(s) held under common ownership and designated on the building permit application that is delineated by the planning official for the sole purpose of satisfying the requirements of this article.

Association means a natural unit of vegetation characterized by a relatively uniform species composition and often dominated by a particular species.

Block face means that portion of a block that abuts a street between two intersecting streets.

Building setback area means the area of building line restrictions along a street as established by or pursuant to division 3 of article III of chapter 42 of this Code.

Building site means:

(1) The tract or parcel of land which is designated on the building permit application, together with all contiguous tracts or parcels of land held under common ownership and any existing buildings and appurtenant parking;

(2) If designated, an artificial lot contained therein and delineated by the planning official; or

(3) A city-funded construction or reconstruction project that includes the entire width of the pavement of a public street and is at least 30 feet in length.

Caliper means the minimum diameter of a tree as measured six inches above the ambient grade for trees up to and including four inches in diameter, 12 inches above the ambient grade for trees having a diameter exceeding four inches but not exceeding eight inches and 54 inches above the ambient grade for trees having a diameter greater than eight inches.

Consumer price index means the "Consumer Price Index for all Urban Consumers" as established by the Bureau of Labor Statistics for the Department of Labor.

Corridor tree means a tree of a species listed on the street tree list that has a caliper of 20 inches or more and is situated in the building setback area along a local street or along a major thoroughfare, other than a portion of a major thoroughfare that has been designated as a green corridor.

Cost adjustment shall be the increase in any cost specified in this article as subject thereto and calculated by the percentage change in the Consumer Price Index for the period

from January 2002 to the third month preceding the date the cost is payable where the sum of money is computed to the nearest cent according to the following formula:

(A/B-1) × Cost subject to adjustment

In the foregoing formula:

'A' is the index value of the 'Consumer Price Index for All Urban Consumers, U.S. city average, All Items (1982-1984=100),' as published in the Monthly Labor Review by the Bureau of Labor Statistics of the Department of Labor of the United States of America ('index') applicable to the third month immediately preceding the month during which the computation is required to be performed.

'B' is the index value of such Index applicable to January 2002.

Deciduous plants means those which shed their leaves at one time each year, usually in the autumn.

Designated tree means a specific tree designated by the city council as having particular historical or arboricultural significance under section 33-103 of this Code.

Dripline means an imaginary circle drawn around a tree, extending to the tree's branching limit.

Esplanade means an unpaved area between two paved roadway sections.

Evergreen plants means those that do not lose all of their leaves at one time, though they shed their old leaves intermittently, as new leaves come out.

Existing vegetation to be preserved means any viable grouping of or single existing evergreen or deciduous trees and associated understory for which tree or buffer preservation credit is being requested.

Green corridor means any portion of a major thoroughfare that has been designated as a green corridor under section 33-104 of this Code.

Green corridor tree means a tree of a species listed on the street tree list that has a caliper of 15 inches or more and is situated in the building setback area of a green corridor.

Landscape buffer means the shielding or obscuring of one land use from another by the planting of evergreen trees or shrubs, or both, or the erection of a screening fence designed to minimize the transmission or propagation of noise, light, vibration, or dust, from traffic or other activity on one property to adjoining public or private properties.

Local street means a public street that is not a major thoroughfare.

Mulch means any covering except fresh grass clippings placed on soil to conserve moisture, minimize weed growth and protect plants from extremes in temperature.

Multifamily residential means any building, or portion thereof, which is designed, built, rented, leased, let out or hired out to be occupied, or which is occupied as the home or residence of three or more families living independently of each other, and shall include flats, apartments and a condominium created under chapter 82 of the Texas Property Code.

Nonresidential use means all uses other than single-family or multifamily residential use.

Parking lot means a paved, surfaced or leveled area designed and ordinarily used for accessory or public parking of motor vehicles, including commercial parking areas available for lease and leased premises available for public parking. The term shall not include parking garages.

Parking lot tree means a tree of a species listed on the parking lot tree list and includes both large and small parking lot trees as provided on the list.

Parking lot tree list means a list of trees issued and revised from time to time by the director of parks and recreation, which, based upon recognized arboricultural standards, shall designate trees that are required to be used for planting in parking lots. The director may only decline to include and may only remove

otherwise suitable trees on the basis of health or disease concerns or warnings. The list shall be subdivided into large trees and small trees based upon canopy size characteristics.

Parking space means an individual vehicle parking space within a parking lot, which shall be computed on the basis of the provisions of chapter 26 of this Code.

Parkway means the area lying between the street curb or the edge of the roadway paving and the adjacent property line.

Parkway tree means a tree of a species listed on the street tree list that is situated in the parkway area adjacent to any tract or parcel of land and that has a caliper equal to or greater than 1½ inches.

Protected tree means a corridor tree, designated tree, green corridor tree or parkway tree.

Protected tree replacement requirement means the requirement established in section 33-105(b) or section 33-122(c), as applicable, of this Code.

Public street or *right-of-way* means the entire width between the boundary lines of every way which is held by the city, a county, the state or otherwise by the public in fee or dedication when any part thereof is open to the use of the public for purposes of vehicular travel.

Remove or *removal* means to take a tree away from its existing position, and includes such actions that may be reasonably expected to damage a tree sufficiently to cause it to die.

Roadway means that portion of a public street which is improved, designed, or ordinarily used for vehicular travel, exclusive of the curb, berm, or shoulder. In the event that a public street includes two or more separate roadways, "roadway" means each such roadway separately.

Root collar means an encircling structure of bandlike markings or a marked color change (from the tree bark) located at the highest part of the root system joining into the trunk of the tree at or slightly below the surrounding soil line.

Shrub means any plant, deciduous or evergreen, which is generally multistemmed and sold by height or spread and measured in inches or feet.

Sidewalk means the paved portion of a public street right-of-way which is between the curb lines, or the lateral lines of a roadway, and the adjacent property lines and is improved and designed for or is ordinarily used for pedestrian travel.

Single-family residential means a building (attached or detached) designed to contain one or two separate living units with facilities for living, sleeping, cooking or eating.

Specimen tree means an exemplary tree of good health and true to species habit and form, containing a minimum caliper of 1½ inches.

Street tree means a tree of a species listed on the street tree list.

Street tree list means a list of trees issued and revised from time to time by the director of parks and recreation, which, based upon recognized arboricultural standards, shall designate trees that are required to be used for planting adjacent to and within street rights-of-way within the city. The director may only decline to include and may only remove otherwise suitable trees on the basis of health or disease concerns or warnings. The list shall be subdivided into categories of trees that may be planted under power lines and trees that shall not be planted under power lines. The categories of trees that may be planted under power lines shall include live oak trees.

Temporary classroom building means a building(s) built on skids and which is utilized by a public school district for the purpose of eliminating the shortage of classrooms in order to bring the student/teacher ratio into compliance with state law.

Total tree planting requirement means the total number of trees, if any, that must be

planted under this article, excluding any which might be planted as part of a landscape buffer and further excluding the protected tree replacement requirement.

Total tree requirement means the total number of trees that must be provided under this article, excluding any which might be provided as part of a landscape buffer, and further excluding the protected tree replacement requirement. This sum shall be made up of:

(1) Any street and parking lot trees to be planted; and

(2) Planting equivalency credits earned pursuant to section 33-123.

Tree means any evergreen or deciduous tree which at the time of planting has a caliper equal to or greater than 1½ inches as measured six inches above the root collar, which is not less than six feet in height as measured from the root collar, and which meets the Standard for Nursery Stock Specifications as established by the American Association of Nurserymen (1986 ed.).

Understory means the small tree, shrub and grass constituents of a plant association, excluding canopy vegetation.

Visibility triangle means the triangular area adjacent to the intersection of any public street or public alley within which no obstruction may be placed which would block the sight lines for vehicular traffic. The triangle is established by measuring a distance of 45 feet from the intersection of the extended curb or edge of the pavement of major thoroughfares, and 25 feet from the extended edge of the curb or pavement of local streets. A straight line connecting the ends of each measured distance which forms the hypotenuse shall establish the visibility triangle (see figure A). The visibility triangle shall not contain any visual or physical impediments or obstructions to the vertical view between 30 inches and seven feet in height.

(b) All references in this article to letter-designated or letter-and-number designated figures or appendices shall mean the applicable figure or appendix as attached to Ordinance No. 91-1701.
(Ord. No. 03-159, § 5, 2-12-03; Ord. No. 09-84, §§ 2—4, 2-11-09; Ord. No. 09-1266, § 2, 12-9-09)

Sec. 33-102. Application.

This article is applicable to all persons, including, without limitation, the city and other governmental agencies and entities, except that its application shall not extend to real property owned or controlled by the State of Texas or the United States of America.
(Ord. No. 03-159, § 5, 2-12-03)

Sec. 33-103. Designation of trees.

(a) The city council may by motion designate a tree that:

(1) Has historical significance arising from any historical event or events that are associated with the tree; or

(2) Has arboricultural significance as listed on the county, state or national tree register by American Forests, the Texas Forest Service, the Park People or an equivalent arboricultural organization.

(b) No tree shall be designated except upon application made or joined by the owner of the tree, which application shall be filed with the planning official in such form as the planning official may require and shall set forth and document the grounds for the requested designation.

(c) The planning official shall review each application that is received and shall return any application that is determined to be incomplete or inconsistent with the requirements of this section. A complete and consistent application that is based upon historical significance shall be submitted for review by the Houston archaeological and historical commission, which shall review the same and provide its response, if any, to the planning official within 45 days. A complete and consistent application that is based upon arboricultural significance shall be submit-

ted for review by the parks and recreation director who shall review the same and provide his response, if any, within 15 days. The planning official shall submit comments of the commission or the parks and recreation director to the city council together with the planning official's own recommendation for approval or denial.

(d) The city council shall consider each application on the basis of the application itself and the recommendations and comments provided. City council shall not be obligated to conduct any hearing on the matter, provided that interested persons may make an appearance on the matter under city council rule 8 or may submit written comments to the city secretary for distribution to the council members.

(e) The city council shall approve or disapprove an application that is referred by the planning official by motion. The decision of the city council shall be final, and if the application is disapproved, another application for designation of the same tree may not be considered for a period of three years.

(f) To the extent permitted by laws governing the filing of documents in county real property records, a notice setting forth each tree designation shall be filed in the real property records of the county in which the tree is situated.
(Ord. No. 03-159, § 5, 2-12-03)

Sec. 33-104. Green corridors.

(a) A green corridor may be designated in accordance with this section.

(b) In this section, a tract or parcel of land and its contiguous parkway that is devoted by actual use or by valid deed restrictions or covenants running with the land to single-family residential use is referred to as a "single-family property." The provisions of this section shall not be construed to prohibit a single-family property from being physically situated within a green corridor. However, a single-family property shall not be subject to any requirement created by the green corridor designation.

(c) Each green corridor shall consist of the right-of-way of a major thoroughfare and building setback areas of abutting and contiguous properties. A green corridor shall be not less than one mile long.

(d) A green corridor may be designated by the city council by motion following a hearing and determination that designation of the green corridor would significantly enhance the beautification of the city. Trees within the green corridor shall be entitled to enhanced protection as provided in this article, and the city council may, in designating the green corridor, specify one or more particular species, varieties, and/or colors of trees to be planted, to the exclusion of others within the green corridor. Additionally, green corridors may be given priority for expenditure of city moneys for street tree planting, to the extent permitted by law.

(e) Petitions for the designation of a green corridor shall be submitted to the city secretary upon a form promulgated by the planning official for that purpose. Each petition shall be joined and signed by the owners of properties representing three quarters of the front footage of tracts or parcels that would abut the major thoroughfare in the proposed green corridor, single-family properties and their owners excluded. All required signatures must be collected within a period of time not exceeding 90 days, and the petition must be filed with the city secretary not later than the fifteenth day after the last date of any property owner's signature on the petition.

(f) The city council shall conduct a hearing regarding each petition within 90 days following the date of its filing. Written notice of the hearing shall be given by the planning official in such manner as the city council may specify in the call for the hearing. Any person may present testimony at the hearing. Additionally, written comments may be provided to the city secretary for distribution to council members. If a petition is disapproved, another petition for designation of the same or substantially the same green corridor shall not be considered for a period of three years.

(g) Nothing in this section shall be construed to prohibit the city council from waiving any irregularity in any petition or from designating any green corridor for which a petition has not been presented.
(Ord. No. 03-159, § 5, 2-12-03)

Sec. 33-105. Removal of protected trees.

(a) The provisions of this section shall be applicable to the removal of a protected tree unless:

(1) The tree is situated upon the site of a construction or enlargement of a building or parking lot such that division 2 of this article is applicable; or

(2) The tree is not a designated tree and is situated upon a tract or parcel of land devoted by use or by valid deed restrictions or covenants running with the land to single-family residential use;

and the term "protected tree" is so restricted as used in this section.

(b) No person shall cause a protected tree to be removed without complying with a protected tree replacement requirement, which may be satisfied as follows:

(1) By the planting anywhere on the tract or parcel of land where the protected tree to be removed is situated or in the adjacent parkway area of additional trees on the basis of one caliper inch of tree planted for one caliper inch of tree removed;

(2) By contributing to the fund created under section 33-123(a)(2) of this Code an amount equal to:

a. If the tree is a parkway tree, the fee stated for this provision in the city fee schedule per caliper inch of tree removed; or

b. If the tree is a corridor tree or green corridor tree, the fee stated for this provision in the city fee schedule per caliper inch of tree removed; or

c. A combination of the foregoing;

any or all of which shall be subject to a cost adjustment from January 2002 in accordance with the formula established in the definition of the term "cost adjustment."

Installation of trees provided shall be subject to the planting standards established in division 2 of this article, and the trees shall be planted within 30 days following the removal of the tree unless a documented assurance of planting is provided to the department with the notice, in which case the trees shall be placed within six months of the removal of the trees. A documented assurance may be provided in the same manner as under section 33-132(b) of this Code. A variance may be requested in the same manner provided in sections 33-135 through 33-137 of this Code. Additionally, the mitigation provisions of section 33-138 of this Code shall be applicable to trees that are provided in order to satisfy a protected tree replacement requirement.

(c) No person shall cause a protected tree to be removed without first filing with the department a written notice of removal of the protected tree, which must be filed at least 20 days prior to the removal. The notice shall include a map depicting the tract or parcel of land upon which the protected tree or trees to be removed are situated and shall demonstrate the manner in which the protected tree replacement requirement will be provided.

(d) It is an affirmative defense to prosecution under this section that the protected tree sustained damage from fire, wind storm, accident or other cause such that the protected tree became an immediate threat to persons or property, provided that the owner of the tree caused the circumstances to be documented and filed written notice of the removal with the department within ten days following the removal of the tree.

(e) It is a defense to prosecution under this section that the protected tree was removed by or on behalf of a public utility or a governmental entity and that its removal without notice was reasonably required for the maintenance or installation of public facilities or utility systems.

(f) The planning official shall promulgate forms of notices and procedures under this section. A map need not be prepared in the form of a survey map, provided that it shall provide sufficient information to unmistakably identify the protected tree that is to be removed and the location of any tree that is to be planted in order to provide the protected tree replacement requirement, as well as the species and caliper of each tree. If the owner elects to make a contribution to the fund created under section 33-123(a)(2) of this Code, then the contribution shall be tendered with the notice. No provision of this section shall be construed to require city personnel to review any notice filed under this section for accuracy or sufficiency or to perform any site inspection of trees for which notices are filed.

(g) No provision of this article shall be deemed to excuse compliance with article VI of this chapter. If a notice of removal calls for the removal of a tree situated in a public right-of-way that is protected under article VI, then written permission for its removal issued by the department of parks and recreation shall be submitted with the notice of removal that is required under subsection (c), above.
(Ord. No. 03-159, § 5, 2-12-03; Ord. No. 09-84, § 5, 2-11-09; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 33-106. Cumulative effect.

The protections afforded to trees under this article are cumulative of other provisions of this Code, including, but not limited to, sections 32-6 and 45-17 and Article VI of this chapter. Without limitation of the foregoing, nothing in this article shall be construed to authorize the removal or damaging of a tree growing in whole or in part within a public street that is subject to protection under article VI without full compliance with the provisions of article VI.
(Ord. No. 03-159, § 5, 2-12-03)

Sec. 33-107. Tree protection; affirmative defense.

No person shall perform or cause or allow to be performed any construction activity, including, without limitation, construction or repair of buildings or other structures, installation or repair or utilities, or installation or repair of streets or sidewalks within the dripline circle area of any protected tree that is not to be removed, without complying with the applicable provisions of Chapter 16 of the Infrastructure Design Manual promulgated by the Director of Houston Public Works with respect to any protected tree. It is an affirmative defense to prosecution under this section that the construction activity is an emergency repair of utilities on public or private property.
(Ord. No. 03-159, § 5, 2-12-03; Ord. No. 09-84, § 6, 2-11-09; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 33-108. Records.

(a) Notices, maps, applications, landscape plans and other documents received by the city under this article are governmental records, and any person providing a false governmental document shall be subject to prosecution as provided by the Texas Penal Code.

(b) Governmental records received by the city under this article are subject to public inspection and copying as provide by law.
(Ord. No. 03-159, § 5, 2-12-03)

Sec. 33-109. Penalty.

This article is subject to the provisions of section 1-6 of this Code, and violations shall be punishable by a fine of up to $500.00 as provided therein.
(Ord. No. 03-159, § 5, 2-12-03)

Sec. 33-110. Single-family residential properties.

(a) While single family residential properties are not subject to the requirements of division 2 of this article, it is the policy and requirement of the city that no final building permit inspection approval shall be given by the building official for construction of a new single-family residential house unless the property owner has complied with this section by preserving or planting a tree or trees or obtaining credit therefor, as follows:

(1) The required tree or trees, whether planted or preserved, shall be 1½ inches caliper size or larger.

(2) The required tree or trees may be either new trees that are planted in compliance with this article or trees already existing on the building site or abutting street right-of-way as hereinbelow provided that have been preserved in accordance with this article.

(3) The required tree or trees, whether newly planted or preserved, must be of species listed on the street tree list or the parking lot tree list.

(4) Except as provided in subsection (b), below, the requirement for building sites less than 5,000 square feet in size is:

a. Planting or preservation of one tree of 1½-inch caliper or larger;

b. If the tree is an existing tree that is preserved, then it may be situated anywhere on the building site or in the abutting street right-of-way;

c. If the tree is a newly planted tree, then it shall be planted in the abutting street right-of-way, unless the planning official authorizes it to be planted elsewhere on the building site upon determination after consulting with the parks and recreation director or his designee that no suitable planting site exists in the abutting street right-of-way.

(5) Except as provided in subsection (b), below, the requirement for building sites 5,000 square feet or greater in size is:

a. Planting of two new trees of 1½-inch caliper or larger; if this option is selected, then one tree must be planted in the abutting street right-of-way and the other planted either in the abutting street right-of-way or elsewhere on the building site;

b. Planting of one new tree of four-inch caliper or larger; if this option is selected, then the tree shall be planted in the abutting street right-of-way, unless the planning official authorizes it to be planted elsewhere on the building site with the written concurrence of the director of parks and recreation or his designee upon determination that no suitable planting site exists in the abutting street right-of-way;

c. Preservation of one existing tree of 1½-inch caliper or larger and planting of one new tree of 1½-inch caliper or larger; if this option is selected, then one tree must be preserved or planted in the abutting street right-of-way and the other

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tree shall be preserved or planted in either the abutting street right-of-way or elsewhere on the building site; or

d. Preservation of two existing trees of 1½-[inch] caliper or larger; if this option is selected, then both trees must be situated in the combined area created by the abutting street right-of-way and the building set back area of the building site.

(b) After consulting with the director of parks and recreation or his designee, the director may excuse the planting or preservation of the tree or trees otherwise required under this section and instead authorize the property owner to purchase credits under section 33-123 of this Code upon determination that the size and configuration of the property and the house do not afford sufficient space for the planting or preservation of even one tree.
(Ord. No. 03-159, § 5, 2-12-03; Ord. No. 04-1015, § 24, 9-27-04)

Sec. 33-111. Screening of electric meters on residential properties.

A single-family or multi-family residential development that contains three or more electric meters that are clustered together in a group meter or gang meter configuration that is visible from the right-of-way shall install screening around the electric meters in accordance with the following:

(1) The screen must be constructed out of wood, lattice, metal, brick, vegetation, or other opaque fencing material;

(2) The screen must be tall enough to obstruct the view of the electric meters from the right-of-way; and

(3) The screen shall provide for at least three feet of front clearance from the face of the meter and at least two feet of side clearance from the electric meter, or the minimum clearance for electric meters required by all utility companies with authority to service the electric meters.
(Ord. No. 2015-639, § 2, 6-24-2015, eff. 7-24-2015)

Secs. 33-112—33-120. Reserved.

DIVISION 2. BUILDING SITES

Sec. 33-121. Application.

(a) The requirements of this division shall only apply to a building site where any of the following conditions is present:

(1) There is new construction of a nonresidential or multifamily residential building for which a building permit is required;

(2) There is an enlargement exceeding 1,000 square feet in area of the exterior dimensions of an existing nonresidential or multifamily residential building for which a building permit is required;

(3) There is either a new parking lot for which site plans are required for initial construction under the provisions of chapter 26 of this Code or an existing parking lot which is expanded in area to provide additional parking spaces; or

(4) There is a city-funded construction or reconstruction project that includes the entire width of the pavement of a public street and is at least 30 feet in length.

(b) The requirements of this division apply to the entirety of the building site if 1) it is completely developed by the new construction of a building (or buildings) and appurtenant surface parking area, or 2) it is a city-funded construction or reconstruction project that includes the entire width of the pavement of a public street and is at least 30 feet in length. In case the entirety of the building site is only partially developed by new construction or enlargement, the requirements of this division shall be applied incrementally. Trees, shrubs, and landscape buffers are required with respect to and in proportion to 1) the area of the new or increased building and off-street parking spaces, or 2) the length of street pavement, if the building site is a city-funded construction or reconstruction project that includes the entire width of the pavement of

a public street and is at least 30 feet in length. This subsection shall control over any other conflicting or inconsistent provision.

(c) The requirements of this division do not apply to:

(1) The reconstruction of an existing building of which 50 percent of the existing building floor area ratio or less was physically destroyed or ruined by flooding, fire, windstorm or act of God. This exemption shall apply only where reconstruction of that building will not result in an increase in the paving area of the parking facilities to be provided; or

(2) The placement of a temporary classroom building if there is a reasonable likelihood that the condition necessitating a temporary classroom building will not continue for more than five years and an analysis of the public school site and the buildings thereon support the conclusion that timely compliance with the statutory student/teacher ratio cannot be achieved without the installation of the temporary classroom building(s).

(d) Nothing in this division shall be construed to require a landscape plan or landscape plan review for finish work performed by an owner, a tenant or on behalf of a tenant, in a portion of a building unless that tenant finish work or remodeling results in an increase in the paving area of the parking facilities to be provided or in an enlargement of the exterior dimensions of an existing building.

(e) Nothing in this division shall be construed to preclude the filing of a landscape plan where the requirements of this division are not otherwise applicable and the property owner desires to plant trees and obtain a credit under section 33-123(c) of this Code.
(Ord. No. 03-159, § 5, 2-12-03; Ord. No. 09-1266, §§ 3, 4, 12-9-09)

Sec. 33-122. Landscape plan required.

(a) A landscape plan for the building site shall be submitted to the department by an applicant for a building permit for approval in accordance with the provisions of this division.

(b) The landscape plan may be depicted on either the development plans or parking lot site plan, provided the drawing scale is sufficient to properly depict the landscape plan requirements. The landscape plan shall identify and show the locations of existing and proposed utility lines (both above and below ground), roadways, sidewalks, street lights, trees, shrubs, understory, natural features, other landscape elements, and planting or construction details. Where credit is being requested for the preservation of existing trees and associated understory, the landscape plan shall also demonstrate the manner in which the requirements for preservation established under section 33-130 are to be satisfied. A plant schedule shall be provided which includes quantities, minimum size at time of planting, and botanical and common names keyed to the plan.

(c) If the building site includes any protected trees, then the landscape plan shall depict the location of each and indicate whether each is to be removed or preserved. If any protected trees are to be removed, then a protected tree replacement requirement shall be applicable, in addition to any other tree planting requirements of this division, which may be satisfied as follows:

(1) By the planting anywhere on the building site or in the adjacent parkway area of additional trees on the basis of one caliper inch of tree planted for one caliper inch of tree removed;

(2) By contributing to the fund created under section 33-123(a)(2) of this Code an amount equal to either:

a. If the tree is a parkway tree, the fee stated for this provision in the city fee schedule per caliper inch of tree removed; or

b. If the tree is a corridor tree or green corridor tree, the fee stated for this provision in the city fee schedule per caliper inch of tree removed,

which shall be subject to a cost adjustment from January 2002 in accordance with the formula established in the definition of the term "cost adjustment".

(3) By preservation credits as provided in section 33-123(b) of this Code; or

(4) By a combination of the foregoing.

(d) The protected tree replacement requirement shall not be applied to trees;

(1) That must reasonably be removed in order to:

a. Install or maintain public utilities;

b. Construct or maintain access drives, streets and sidewalks;

c. Prevent visual impairment in a visibility triangle;

d. Prevent visual impairment where a driveway intersects with a street; or

e. Conduct emergency repairs of utilities on public or private property; or

(2) That are in poor condition.

(e) Based upon the landscape plan as filed, the department shall review the landscape plan to verify compliance with all requirements of this article prior to the issuance of a building permit. If an artificial lot is delineated, it shall be depicted on the building plans prior to the issuance of the building permit. Nothing in this section shall be construed to require that city personnel perform a site inspection prior to the issuance of the building permit.

(f) No building permit shall be issued by the building official for the construction or alteration of a building within the city unless the planning official approves the landscape plan verifying that the applicant has provided for the planting of trees and shrubs to the extent required in this article. If the landscape plan calls for the removal of any protected tree, then the building permit shall be conditioned such that the protected tree may not be removed until the twentieth day following the date of filing of the landscape plan.

(g) Except as provided in subsection (h) below, no final certificate of occupancy shall be issued by the building official for the occupancy of a new or altered building unless the plantings required by this article have been provided. Prior to the issuance of a certificate of occupancy, the building official shall inspect the planting provided to verify compliance with the approved landscape plan.

(h) A six-month conditional certificate of occupancy may be issued if the owner provides the building official with either the documented assurances specified in section 33-132 or a bond or assigned certificate of deposit as set forth in section 33-133.

(i) No provision of this article shall be deemed to excuse compliance with article VI of this chapter. If a landscape plan calls for the removal of a tree situated in a public right-of-way that is protected under article VI of this chapter, then written permission for its removal issued by the department of parks and recreation shall be submitted with the landscape plan filed under this section.

(Ord. No. 03-159, § 5, 2-12-03; Ord. No. 09-84, §§ 7, 8, 2-11-09; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 33-123. Tree planting equivalency credits.

(a) The following credits may be claimed against the total tree requirement under this division:

(1) *Credit for planting trees exceeding the minimum caliper required.* Credit toward the total tree requirement shall be given for the planting of trees that exceed the minimum caliper required by this division at the rate of two trees for each tree with a caliper of four inches or more that is planted.

(2) Credit for depositing with the city's department of parks and recreation a sum of money equal to the cost of planting the required trees. Money so deposited shall be placed in a special fund designated for the purposes of planting street trees in city parks or public street rights-of-way that are located within the park sector in which the removed trees were located. The credit shall be calculated based on a planting cost per tree of $500.00 per fifteen-gallon container-grown tree, planted and maintained for a year, subject

to a cost adjustment from January 2002 in accordance with the formula established in the definition of the term "cost adjustment." The maximum allowable credit under this option shall not exceed 30 percent of the total tree requirement.

(3) *Credit for preserving existing on-site trees.* Credit for the preservation of existing on-site trees (including any to be transplanted) may be granted when requested and depicted on the landscape plan in accordance with section 33-122. In order to be eligible for credit, an existing tree to be preserved on the site shall have a minimum caliper of 1½ inches, shall be in good condition, and shall be true to species habit and form. Credit for preserving existing trees shall be granted based upon the caliper of the trees preserved, with a credit of one tree to be allowed for each 1½ total caliper inches of eligible trees that are preserved, subject to the limitations otherwise provided in this division. This item (3) shall not apply to trees situated in the abutting street right-of-way.

(4) *Credit for preserving existing right-of-way street trees.* Credit for the preservation of existing trees situated within the abutting street right-of-way that are designated on the street tree list may be granted when requested and depicted on the landscape plan in accordance with section 33-122 of this Code. In order to be eligible for credit, an existing street tree to be preserved shall have a minimum caliper of 1½ inches, shall be situated in the street right-of-way, be in good condition, and be true to a species listed on the street the list in habit and form. Credit for preserving existing street trees shall be granted on the basis of one street tree preserved for each street tree otherwise required to be planted in the same block-face under this article, with no additional credit being allowed for preservation of a street tree that exceeds 1½ inches in caliper. Preservation methods for the tree must be at a minimum those specified in section 33-130 of this Code.

Provided, however, that:

(5) The combined credit under items (1) and (2) above may not exceed 50 percent of the total tree planting requirement, and

(6) The total number of street trees, whether planted or preserved, shall never be less than 50 percent of the number required in section 33-126 of this Code as applied separately to each side of the property that abuts a street right-of-way and, if any side abuts two or more block faces, then separately to each block face.

(b) A credit may be claimed for up to the entire protected tree replacement requirement for preservation of existing trees in the same manner provided in subsection (a)(3), above, except that the credit shall be based upon one caliper inch of tree preserved for one caliper inch of tree removed. However, a tree or caliper inch portion of a tree preserved may only be used for credit against the total tree requirement or the protected tree replacement requirement, but not both.

(c) Any owner who proposes to plant trees when no planting requirement exists under this division or desires to plant trees in excess of the requirements of this division may, at the time of filing of a landscape plan, request future credit against tree requirements upon the same building site. Upon completion of the work and verification of the unrequired planting or excess in planting by the planning official, a certificate of credit shall be provided by the planning official to the owner.

(Ord. No. 03-159, § 5, 2-12-03; Ord. No. 04-1015, § 25, 9-27-04; Ord. No. 09-84, § 9, 2-11-09)

Sec. 33-124. Artificial lot delineation.

If the building site is over two acres in size, the applicant may request that the planning official designate an artificial lot to satisfy the requirements of this division. If requested, the planning official shall designate an artificial lot consistent with the purposes and policies of this

division as determined from the criteria established below. No artificial lot may be delineated by the planning official unless it:

(1) Wholly includes the area on which the construction work is to be done;

(2) Has an area that does not exceed 50 percent of the area of the building site; and

(3) Depicts and includes all proposed and existing buildings and structures, access drives, appurtenant parking required for the building expansion or new building construction, and other areas functionally appurtenant to the buildings or structures.

(Ord. No. 03-159, § 5, 2-12-03; Ord. No. 04-1015, § 26, 9-27-04)

Sec. 33-125. Review of documents.

(a) The planning official shall review building permit applications for the construction or expansion of a building or parking lot, and construction drawings for city-funded construction or reconstruction projects that include the entire width of the pavement of a public street and are at least 30 feet in length, to determine if the proposed landscape plan complies with the provisions of this article.

(b) When a certificate of occupancy is sought, the building official shall determine whether the applicant has complied with this article.

(c) An application for a building permit or certificate of occupancy shall not be issued or approved unless the applicant demonstrates compliance with the provisions of this article.

(Ord. No. 03-159, § 5, 2-12-03; Ord. No. 09-1266, § 5, 12-9-09)

Sec. 33-126. Street trees required.

(a) Street trees shall be planted within the public street rights-of-way, or on private property within ten feet parallel and adjacent to a local

street right-of-way, or on private nonresidential property within 25 feet parallel and adjacent to a major thoroughfare, or in the esplanade pursuant to the requirements of section 33-129(b) (see figure E). When the building site abuts a designated state or federal highway or road or any designated county road and street trees are not otherwise required by law, street trees shall be planted on private property in accordance with this section. The number of street trees planted shall equal the total number of trees (T) required under the following formula:

T = (X/30), where X shall represent the length in linear feet measured along each side of the property line on the public street(s). (See figure B.)

This formula and all resulting planting requirements under this section shall be applied separately to each side of the property that abuts a street right-of-way, and if any side abuts two or more block faces, then separately to each block face.

(b) Street trees planted in accordance with this section shall be of a species listed on the street tree list. In the case of trees planted within the public rights-of-way, trees shall be planted in a location which conforms with the requirements of section 33-129 of this division. The trees shall be planted so as not to interfere with existing utilities, roadways, sidewalks, or street lights.

(c) The planting scheme for street trees shall be such that no street tree is planted closer than 20 feet to any other street tree (whether an existing tree or a tree planted hereunder) with the trees being spaced without extreme variation in distance across each blockface frontage taking into account existing site conditions and driveway locations. The director may authorize a partial waiver under the credit terms of section 33-123 of this Code if he determines that planting all of the otherwise required street trees upon any given side of the property that abuts a street right-of-way or block face would result in excessive tree canopy, based upon existing trees that are to be preserved during construction. Any request for a waiver shall be in writing and shall specify the preservation methods that will be used for the existing trees, which shall meet or exceed the requirements of section 33-130 of this Code. Additionally, the director may authorize the spacing to be reduced from 20 feet to no less than 18 feet if he determines that the conditions in the right-of-way make compliance at 20-foot spacing impracticable.
(Ord. No. 03-159, § 5, 2-12-03)

Sec. 33-127. Parking lot planting of trees and shrubs required.

(a) In addition to any street trees that may be required pursuant to section 33-126, the owner of a building site included under section 33-121 shall provide one tree for every ten parking spaces, rounding up or down in the case of a fraction to the nearest whole number, but in no case less than one tree. There shall be at least one parking lot or street tree within 120 feet of each parking space as measured from the center of the trunk of the tree to some point on the marked parking space. Not fewer than one-half of the parking lot trees so required shall be large parking lot trees, and the remainder may be either large or small parking lot trees. In the case of a parking lot that is being expanded, the trees required pursuant to this subsection may be planted in the same manner as those required for a new parking lot.

(b) In addition to the street tree and parking lot tree requirements established within section 33-126 and subsection (a), above, the owner of a building site included under section 33-121 shall plant or cause shrubs to be planted along the perimeter of all parking surfaces so that the parking lot is screened from all adjacent public streets, exclusive of driveway entrances, pedestrian walkways and visibility triangles. Shrubs shall be maintained at a height of no more than 36 inches nor less than 18 inches as measured from the surrounding soil line. The number of shrubs required under this subsection shall be equal to the total number of street trees required under this division multiplied by ten. No less than 75 percent of the shrubs required under this section shall be planted along the perimeter of the parking surface adjacent to the public street.
(Ord. No. 03-159, § 5, 2-12-03)

Sec. 33-128. Landscape buffer required.

The owner of a building site included under section 33-121 and which is to be developed or

expanded for a nonresidential or a multifamily residential use adjacent to any existing single-family residential property shall provide a landscape buffer adhering to at least one of the following two buffer types:

(1) Except as may otherwise be provided in chapter 19 of this Code, either a wood, concrete or masonry opaque screening fence with a minimum height of six feet along the entire property line or entire artificial lot line, if any, adjacent to the single-family residential property.

(2) Evergreen screening on the property line or artificial lot line.

a. The evergreen screening shall contain a minimum width of 15 feet of green space as measured from the property line. This area shall extend along that portion of the property line or artificial lot line where proposed nonresidential and multifamily residential projects abut existing single-family residential developments. The area shall be planted in combinations of compatible evergreen trees and shrubs. The arrangement of plantings in buffer areas shall provide maximum protection to adjacent properties and avoid damage to existing plant material. Possible arrangements include planting in parallel, serpentine, or broken rows. Plant materials shall be sufficiently large and planted in such a fashion as to be capable of forming a continuous year-round screen of at least six feet in height as measured from the root collar or surrounding soil line within three annual growing seasons. All plantings shall be installed and maintained in accordance with the standards contained within appendices B and E. No buildings, structures, storage of materials, or parking shall be permitted within the buffer area; buffer areas shall be maintained and kept free of all debris, rubbish, weeds, and tall grass.

b. The preservation of existing vegetation within the landscape buffer may be used to meet the requirements of this section provided the vegetation is preserved in accordance with section 33-130 of this Code.

(Ord. No. 03-159, § 5, 2-12-03; Ord. No. 09-84, § 10, 2-11-09)

Sec. 33-129. General planting standards.

(a) Trees and shrubs planted in a parkway shall be planted in accordance with the applicable standards required by appendix B or E. The following additional limitations shall apply:

(1) When located in the visibility triangle, trees shall be headed to a minimum height of seven feet, and shrubs shall be maintained at a maximum height of 30 inches as measured from the surrounding soil line.

(2) For streets with curbs or proposed curbs, trees shall be planted at least three feet from the back of the existing curb or the city's final approved design line of the back of the curb of any public street as measured from the center line of the tree trunk. Provided, the city engineer may in writing authorize the planting distance to be reduced after review of the specific location, with the preference that at least two feet of open space should be maintained between the street side of the tree and the back of the curb.

(3) For streets without curbs or proposed curbs, trees shall be planted at least four feet behind the roadside drainage ditch as measured from the back (private property) side of the top of the roadside drainage ditch bank to the center line of the tree trunk. Provided, the city engineer may in writing authorize the planting distance to be reduced, after review of the specific location, with the preference that the roots not interfere with ditch maintenance.

(b) In addition to the tree and shrub planting standards contained within appendices B and E, trees and shrubs in esplanades shall be planted according to the following requirements as illustrated in figure C:

(1) Trees in any major thoroughfare street esplanade shall not be planted closer to the end of the esplanade than 75 feet.

(2) Trees in any local street esplanade shall not be planted closer to the end of the esplanade than 50 feet.

(3) Trees planted in any esplanade shall be located not closer than 50 feet from any mid-block opening in the esplanade.

(4) Shrubs planted in any esplanade shall not be planted closer to the end of the esplanade than 25 feet or closer than three feet from the back of the curb or the final approved design line for the curb of any public street. Use of ground covers or annuals and perennials conforming with the height restrictions of a visibility triangle shall not be restricted.

(5) Trees planted in the esplanade shall not be located closer than five feet from the back of the curb or the final approved design line for the curb. Trees shall not be spaced at intervals of less than 30 feet.

(c) Any tree located within a parking lot must be planted and maintained within a permeable area which has a radius of not less than three feet. No tree shall be planted closer than three feet from a curb or tire stop.
(Ord. No. 03-159, § 5, 2-12-03)

Sec. 33-130. Preservation of existing trees and associated understory.

(a) The following procedure shall be required where credit for the preservation of existing trees and associated understory is being requested to be applied toward the total tree planting requirement pursuant to section 33-123(a) of this Code or the protected tree replacement requirement. Where such credit is being requested, the applicant shall also supply to the building official for review with the building plans a tree and associated understory preservation plan, which shall be integrated into the proposed landscape plan and shall include:

(1) Delineation of proposed limit of clearance and establishment of tree protection zones which shall extend to just outside the dripline of the tree and understory to be protected, if any;

(2) Proposed soil stabilization practices, i.e., silt fence, hay bales;

(3) The species of each tree to be preserved and for which credit is being requested;

(4) The proposed finished grade and elevation of land within six feet of or within the dripline of any tree to be preserved, whichever is greater, shall not be raised or lowered more than three inches unless compensated for by welling or retaining methods;

(5) Existing and proposed location of all trees and plant materials to be relocated at the drawing scale;

(6) A landscaping tabulation, and itemized credit requests for existing trees to be preserved which have a minimum of four inches in caliper and greater;

(7) Tree and associated understory preservation details; and

(8) Specification of ground plane treatment as either turf or sod. If a combination of both is utilized, the limit of each shall be indicated.

(b) The following tree relocation information shall be provided on the landscape plan or in a report for the transplantation of existing specimen trees when preservation credit is being requested for them. This information shall include an assessment of the cost of transplanting the trees as opposed to the potential mortality rate which may result from the attempted transplantation. If relocation is elected, the following information shall be provided:

(1) Transplanting techniques;

(2) Equipment to be utilized;

(3) Locations of existing trees and proposed locations for transplanted trees;

(4) Genus, species, caliper, height and general condition of the existing tree;

(5) Pruning and maintenance schedule and methods to be followed; and

(6) Which form of assurance of performance will be provided, i.e., executed contract, bond or assigned certificate of deposit.

(c) If preservation credit is requested, the trees shall be protected and preserved as set forth in Chapter 16 of the Infrastructure Design Manual promulgated by the Director of Houston Public Works.

(d) The department shall make recommendations to minimize damage to existing vegetation during the site construction phase. The department shall also suggest possible uses for those trees removed as a result of development such as the creation of wood chip mulch from removed hardwood trees.
(Ord. No. 03-159, § 5, 2-12-03; Ord. No. 09-84, § 11, 2-11-09; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 33-131. Duty; affirmative defenses.

(a) All owners of building sites included under section 33-121 shall plant or cause the planting of trees or shrubs required in sections 33-126 and 33-128 or secure the planting equivalency credits allowed in section 33-123, and if protected trees are being removed, shall further satisfy the protected tree replacement requirement in accordance with this division.

(b) All owners and lessees of new or expanded parking lots on building sites included under section 33-121 shall additionally plant trees or shrubs in compliance with section 33-127, and if protected trees are being removed, shall further satisfy the protected tree replacement requirement in accordance with this article.

(c) It shall be an affirmative defense to prosecution under this section that:

(1) The person caused the tree or shrub to be planted and maintained in accordance with this article, but the tree or shrub died more than two years after the issuance of the certificate of occupancy;

(2) The person caused the tree or shrub to be planted and maintained on the public right-of-way in accordance with this article, but the tree or shrub died and was removed by the owner with the written permission of the department of parks and recreation obtained under article VI of this chapter, or the period allowed by this article for replacing the tree or shrub has not yet elapsed;

(3) The person caused the tree or shrub to be planted or maintained on private property in accordance with this article but the tree or shrub died and the period allowed by this article for replacing the tree or shrub has not yet elapsed;

(4) The building permit for the person's property is for single-family residential use;

(5) The person's property has an unexpired conditional certificate of occupancy, and the person has provided an executed contract or a bond or assigned certificate of deposit in accordance with this article; or

(6) A variance or waiver was secured for the building site in conformity with the requirements of this article.
(Ord. No. 03-159, § 5, 2-12-03; Ord. No. 09-84, § 12, 2-11-09)

Sec. 33-132. When required landscaping (trees, shrubs or fences) must be installed; documented assurance.

(a) Except as otherwise provided in subsection (b) and section 33-133, all proposed landscaping must be installed in accordance with the approved landscape plan prior to issuance of a final certificate of occupancy on a building site.

(b) The property owner may elect to provide the building official with documented assurances that the landscaping will be completed within a six-month period. If so, a conditional

certificate of occupancy may be issued by the building official for six months. For purposes of this section, 'documented assurance' shall mean a copy of an executed contract for the proper installation of the required landscaping in accordance with the approved landscape plan within a six-month period.

(c) The property owner is responsible for notifying the building official when the landscape installation is complete. If the property owner fails to notify the building official within the prescribed six-month period, the building official shall revoke the conditional certificate of occupancy.
(Ord. No. 03-159, § 5, 2-12-03)

Sec. 33-133. Bond; assigned certificate of deposit.

(a) Prior to the issuance of any conditional certificate of occupancy, any applicant who has not provided the documented assurance set forth in section 33-132 shall file with the planning official a bond which bond shall be executed by the applicant as principal and by a good and sufficient corporate surety company licensed to do business in the State of Texas. The bond in the sum of one and one-quarter times the proposed cost to install the required landscaping improvements and fences, based upon the adjusted costs established in appendix F, shall be payable to the city and conditioned that the principal and surety will pay all amounts required to install the landscaping and fences required by this division. The bond shall provide that it will remain in full force and effect until released by the planning official pursuant to this division.

(b) In lieu of such bond, an applicant for a conditional certificate of occupancy may, upon payment to the city of the nonrefundable fee stated for this provision in the city fee schedule, assign an account with a financial institution insured by the Federal Deposit Insurance Corporation to the city. Such account shall have a deposit of not less than the amount required under subsection (a). Under such an assignment, the financial institution must agree not to release, make payment from, or otherwise divert or dispose of the funds in such account, except it shall agree to disburse all or such portion of the funds in the account as may be directed by city council resolution.

Upon installation and inspection of the required landscaping, the city shall release the assigned deposit to the property owner.

When requesting a conditional certificate of occupancy, the owner must grant the city permission to enter upon his land for the purpose of installing the required landscaping if the owner does not fulfill his obligation to install the required landscaping within the specified six-month period. If permission is not granted, the owner's application for a conditional certificate of occupancy shall be denied.

(c) In the event that any holder of a conditional certificate of occupancy who has previously furnished an account assignment under subsection (b) elects to furnish a bond under subsection (a) instead, then the holder shall be entitled to disbursement of the account proceeds in the same manner and under the same terms provided in subsection (b).
(Ord. No. 03-159, § 5, 2-12-03; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 33-134. Appeal of denial of building permits.

Appeals from the denial of a building permit for noncompliance with this division shall be reviewed in the same manner as appeals from development plat disapprovals under section 42-87 of this Code.
(Ord. No. 03-159, § 5, 2-12-03)

Sec. 33-135. Variance procedure.

(a) An applicant for a building permit may make written application to the planning official for a variance from the requirements of this division other than those which may be made the basis of a request for a waiver under section 33-139. A completed application for a variance shall include:

(1) Completed application on form supplied by the city; and

(2) The nonrefundable fee stated for this provision in the city fee schedule.

This application package shall be reviewed by the department.

(b) Within seven days of the date the application is accepted, the planning official shall forward a copy of the application to the traffic engineer who shall file his report and recommendations regarding the proposed variance with the secretary of the commission.

(c) A staff report regarding the variance request shall be provided to the commission prior to the meeting at which the variance shall be considered.
(Ord. No. 03-159, § 5, 2-12-03; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 33-136. Standards for variance.

(a) The commission is authorized to consider and grant variances from the provisions of this division by majority vote of those members present and voting, when the commission determines that the first four of the following conditions exist, and if applicable, the fifth condition, exists:

(1) The imposition of the terms, rules, conditions, policies and standards of this division would deprive the owner or applicant of the property of reasonable use of the land or building;

(2) The circumstances supporting the granting of the variance are not the result of a hardship imposed or created by the applicant, and the general purposes of this division are observed and maintained; and

(3) The intent of this article is preserved;

(4) The granting of such a variance will not be injurious to the public health, safety or welfare; and

(5) For a development that is subject to the requirements of article VII, chapter 33, of this Code, the granting of the variance is necessary to accomplish the purposes of a certificate of appropriateness issued pursuant to article VII of chapter 33 of this Code.

(Ord. No. 03-159, § 5, 2-12-03)

Sec. 33-137. Applicability of variance.

Any variance granted under the provisions of this section will apply only to the specific property and use upon which the commission was requested to grant a variance by the applicant. All variances as granted shall be in writing, shall be signed by the secretary of the commission and maintained as a permanent record of the commission.
(Ord. No. 03-159, § 5, 2-12-03)

Sec. 33-138. Mitigation for loss of installed and preserved vegetation.

(a) All proposed, existing or relocated vegetation shall be maintained in accordance with this article and appear healthy for a minimum of two years from the issuance of the final certificate of occupancy. Dying, damaged or removed trees shall be replaced at the owner's expense with another living plant that complies with the approved landscape plan. The tree replacement quantity shall be equal to or greater than the original or credited quantity for the tree in question.

(b) The planning official shall notify the owner of a building site in writing when a plant is discovered which does not meet the requirements of subsection (a), above. The owner shall then replace the plant within one year from receipt of the written notice or between November 1st and April 1st, whichever period is less.
(Ord. No. 03-159, § 5, 2-12-03)

Sec. 33-139. Interference with existing utilities, curbs, sidewalks, drainage facilities, roadways, street lights, appeal of denial of waiver.

(a) The planning official shall grant a waiver when requested in the application if the area in which the planting is required by this division is too small to accommodate the required planting without damage to existing utilities, curbs, sidewalks, roadways, street lights or drainage facilities, and the planting requirements of this division may not be otherwise satisfied pursuant to this division.

(b) A waiver shall be granted where the planning official finds the following:

(1) That a literal application of this division will result in damage to existing utilities, roadways, street lights, curbs, sidewalks or drainage facilities;

(2) The waiver, if granted, will not be contrary to the public interest;

(3) The waiver, if granted, will not be detrimental to the public health, safety, or welfare; and

(4) The waiver, if granted, will not result in a violation of any other applicable ordinance, regulation or statute.

(c) No later than the thirtieth calendar day following the filing of the required application for a waiver, the planning official shall issue to applicant a written notice that the waiver has been granted or refused. Any notice of refusal of an application for a waiver must include a written report explaining in detail the reasons for such refusal. The issuance of a written notice to the applicant shall be complete upon deposit of such notice in the United States mail, first class postage paid, addressed to the applicant at address given on the application for the waiver.

(d) The applicant may appeal the denial of a waiver to the commission in the manner provided in section 33-134 of this Code.

(e) Notwithstanding the provisions of this section, the planning official and the Director of Houston Public Works shall use their best efforts to resolve any disputes regarding the application of this division to city-funded projects that include the entire width of the pavement of a public street and are at least 30 feet in length. The Director of Houston Public Works is authorized to promulgate guidelines for administration of this article, in consultation with the planning official, that are consistent with this chapter.
(Ord. No. 03-159, § 5, 2-12-03; Ord. No. 09-1266, § 6, 12-9-09; Ord. No. 2018-11, § 49, 1-10-2018)

Secs. 33-140—33-150. Reserved.

ARTICLE VI. PROTECTION OF CERTAIN TREES*

Sec. 33-151. Definitions

As used in this article, the following words shall have the meanings ascribed in this section:

Caliper means the minimum diameter of a tree as measured six inches above the ambient grade for trees up to and including four inches in diameter, 12 inches above the ambient grade for trees having a diameter exceeding four inches but not exceeding eight inches and 54 inches above the ambient grade for trees having a diameter greater than eight inches.

Director means the director of parks and recreation or the director's designee.

Pedestrian realm has the meaning as ascribed in section 42-1 of this Code.

Remove or *removal* means to take a tree away from its existing position and includes such actions that may be reasonably expected to damage a tree sufficiently to cause it to die, including but not limited to, uprooting, severing the main trunk, damaging the root system, and excessive pruning or topping.

Street means the entire width between the boundary lines of every way which is held by the city, a county, the state or otherwise by the public in fee or dedication when any part thereof is open to the use of the public for purposes of vehicular travel.

Tree means and includes:

(1) Any tree of a size 20 caliper inches or more of any species; or

(2) Any tree of a size of 1½ caliper inches or more of any species included on the street tree list that is promulgated under article V of this chapter.

*__Editor's note__—Ord. No. 09-84, § 13, adopted February 11, 2009, amended the title of Ch. 33, Art. VI to read as herein set out. Formerly said article was entitled Protection of street trees.

Tree canopy means the total area of the tree where the leaves and outermost branches or limbs extend, also known as the "dripline."

(Ord. No. 03-159, § 7, 2-12-03; Ord. No. 09-84, §§ 14, 15, 2-11-09; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 33-152. Removal of a tree.

Except as may otherwise be provided in this article, it shall be unlawful for any person to remove any tree or to cause, permit or suffer the removal of any tree that is situated in whole or in substantial part within a street or the minimum pedestrian realm required by section 42-621 of this Code, as applicable, to perform any construction activity, including, without limitation, construction or repair of buildings or other structures, installation or repair of utilities, or installation or repair of streets or sidewalks within the dripline circle area of any tree that is situated in whole or in substantial part within a street or pedestrian realm. The determination of whether the tree is situated in whole or in substantial part in the street or pedestrian realm shall be based upon the location of the trunk of the tree at ground level. For purposes of the foregoing requirements, a tree shall be considered to be in substantial part within a street or pedestrian realm if one-half or more of the area of the trunk of the tree is situated in the street or pedestrian realm as determined at the point where the trunk intersects the ground.

(Ord. No. 03-159, § 7, 2-12-03; Ord. No. 09-84, § 16, 2-11-09; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 33-153. Affirmative defenses.

It is an affirmative defense to prosecution under section 33-152 of this Code that:

(1) The person complied with the provisions of Chapter 16 of the Infrastructure Design Manual promulgated by the Director of Houston Public Works;

(2) The person had the prior written permission of the director for the action taken and that the action taken was consistent with the terms of the director's written permission; or

(3) The person reasonably removed the tree in order to conduct emergency repairs of utilities located on public or private property.

(Ord. No. 03-159, § 7, 2-12-03; Ord. No. 09-84, § 17, 2-11-09; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 33-154. Affirmative defense; house movers.

It is an affirmative defense to prosecution under section 33-152 of this Code that the person is a house mover who holds a license under article III of chapter 10 of this Code, and that the person removed a tree in order to move a house, provided that the house was being moved in accordance with all applicable requirements of the said article upon a route authorized in a permit issued by the building official thereunder, and further provided, with respect to any tree that is removed, that the person had the prior written permission of the director for the action taken and that the action taken was consistent with the terms of the director's written permission. This defense shall extend to agents and employees of the house mover.

(Ord. No. 03-159, § 7, 2-12-03; Ord. No. 09-84, § 18, 2-11-09)

Sec. 33-155. Procedure for permission.

For purposes of sections 33-153 or 33-154 of this Code a person may obtain the director's permission by making written application. The application shall be made in accordance with regulations promulgated for that purpose by the director and in a form provided in the regulations. In considering whether or not to grant the approval, the director shall consider the age and condition of the tree. The director shall consult with the planning official and shall also consider whether the requested action is reasonably required, considering other alternatives that may exist, if the request is for the purpose of installing or maintaining public utilities and access lines thereto, constructing or maintaining driveways, alleys or streets, constructing or maintaining sidewalks or preventing visual obstruction of a street or driveway intersection. The director, in consultation with the planning official, may also authorize the removal of a tree

to facilitate development of the abutting property if the tree extends in part beyond the building set back line established by law or deed restriction and the director and the planning official determine that the requested action is reasonably required in order to make beneficial use of the property. In the event that the director proposes to deny an application, then the director shall ensure that the applicant is afforded the opportunity for an informal hearing to be conducted as provided in the director's regulations before the decision to deny the application is made final.
(Ord. No. 03-159, § 7, 2-12-03; Ord. No. 09-84, § 19, 2-11-09)

Sec. 33-156. Educational intent.

The intent of this article is to result in compliance through public assistance and education. Upon request, the director shall, without charge therefor, provide assistance in identifying tree species, training and/or instructional materials with respect to proper practices for tree pruning and other reasonable assistance for the purpose of ensuring compliance with this article.
(Ord. No. 03-159, § 7, 2-12-03)

Sec. 33-157. Provisions cumulative.

The provisions of this article are cumulative of state laws and are also expressly made cumulative of the provisions of article V of this chapter. To the extent that any tree governed by this section is also subject to regulation under article V, then both the provisions of this article and of article V shall be applicable. The director and the planning official shall establish procedures under which removal notices and landscape plans that are required to be filed under article V may be combined with or jointly filed with applications filed under section 33-155 of this Code, above.
(Ord. No. 03-159, § 7, 2-12-03)

Sec. 33-158. Penalty; civil remedies.

Violation of this article shall be punishable by a fine of up to $500.00, as more particularly provided in section 1-6 of this Code, and each tree that is unlawfully removed shall constitute a separate offense. Criminal prosecution shall not preclude civil action by the city to recover for the damage to or loss of the tree, and the city attorney is hereby authorized, without further authorization from city council to institute and prosecute a lawsuit against any person who removes a tree without permission or authorization as required under this section to recover the reasonable value of the tree or damage thereto.
(Ord. No. 03-159, § 7, 2-12-03; Ord. No. 09-84, § 20, 2-11-09)

Sec. 33-159. Deferred disposition.

In keeping with the policy of education and street tree protection that is the underlying purpose of this article, the municipal courts are urged to consider deferred dispositions under article 45.54 of the Texas Code of Criminal Procedure whenever the circumstances warrant deferred dispositions. Conditions of deferral may include the defendants' replacing or repairing damaged trees wherever practicable and participating in community service programs for the planting and care of trees.
(Ord. No. 09-84, § 21, 2-11-09)

Sec. 33-160. Tree replacement requirement.

(a) Notwithstanding anything to the contrary in this article, no person shall cause a tree that is situated in whole or in substantial part within a street to be removed without complying with a tree replacement requirement, which may be satisfied as follows:

(1) By the planting in the area adjacent to the street of additional trees from the street tree list on the basis of one caliper inch of tree planted for one caliper inch of tree removed;

(2) By contributing to the fund created under section 33-123(a)(2) of this Code the fee stated for this provision in the city fee schedule per caliper inch of tree removed; or

(3) By a combination of the foregoing.

Installation of trees provided shall be subject to the planting standards established in division 2

of article V of chapter 33, and the trees shall be planted within 30 days following the removal of the tree unless a documented assurance of planting is provided to the department with the notice, in which case the trees shall be placed within six months of the removal of the trees. A documented assurance may be provided in the same manner as under section 33-132(b) of this Code. A variance may be requested in the same manner provided in sections 33-135 through 33-137 of this Code. Additionally, the mitigation provisions of section 33-138 of this Code shall be applicable to trees that are provided in order to satisfy a protected tree replacement requirement.

(b) No person shall cause a tree to be removed without first filing with the department a written notice of removal of the tree, which must be filed at least 20 days prior to the removal. The notice shall include a map depicting the tract or parcel of land upon which the tree or trees to be removed are situated and shall demonstrate the manner in which the tree replacement requirement will be provided.

(c) It is an affirmative defense to prosecution under this section that the tree sustained damage from fire, wind storm, accident or other natural cause such that the tree became an immediate threat to persons or property, provided that the owner of the tree caused the circumstances to be documented and filed written notice of the removal with the department within ten days following the removal of the tree.

(d) It is a defense to prosecution under this section that the tree was removed by or on behalf of a public utility or a governmental entity and that its removal without notice was reasonably required for the maintenance or installation of public facilities or utility systems.

(e) The planning official shall promulgate forms of notices and procedures under this section. A map need not be prepared in the form of a survey map, provided that it shall provide sufficient information to unmistakably identify the tree that is to be removed and the location of any tree that is to be planted in order to provide the tree replacement requirement, as well as the species and caliper of each tree. If the owner elects to make a contribution to the fund created under section 33-123(a)(2) of this Code, then the contribution shall be tendered with the notice. No provision of this section shall be construed to require city personnel to review any notice filed under this section for accuracy or sufficiency or to perform any site inspection of trees for which notices are filed.

(Ord. No. 09-84, § 22, 2-11-09; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 33-161. Preservation of the existing tree canopy along a walkable places street or transit-oriented development street.

(a) Except as otherwise provided in this section, it shall be unlawful for any person to remove any portion of a tree canopy or to cause, permit or suffer the removal of any tree canopy, for any tree of a size 10 caliper inches or more that is within:

(1) The right-of-way of a walkable places street or transit-oriented development street; or

(2) Ten feet from the edge of the right-of-way of a walkable places street or transit-oriented development street that is not designated a major thoroughfare; or

(3) Twenty-five feet from the edge of the right-of-way of a walkable places street or transit-oriented development street that is also designated as a major thoroughfare.

(b) This section shall not apply to:

(1) The removal of any dead, damaged, or diseased tree canopy or limbs that constitutes an immediate hazard to life or property;

(2) Maintenance or pruning authorized by the director upon written request for permission in the form approved by the director. In considering whether to grant the authorization, the director shall consider the age and condition of the tree canopy, the size of the limb(s) to be pruned or removed, and the extent of the pruning. The director shall consult with

the planning official and consider whether the requested action is reasonably required, considering other alternatives that may exist; or

(3) The removal of a tree canopy, in part or in whole, authorized by the granting of a variance under the procedure outlined in section 33-135 of this Code.

(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Secs. 33-162—33-200. Reserved.

ARTICLE VII. HISTORIC PRESERVATION*

DIVISION 1. GENERALLY

Sec. 33-201. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alteration means any change to the exterior of a building, structure, object or site. Alteration shall include, but is not limited to, replacing historic material; changing to a different kind, type or size of roofing or siding materials or foundation; changing, eliminating, or adding exterior doors, door frames, windows, window frames, shutters, railings, columns, beams, walls, porches, steps, porte-cocheres, balconies, signs attached to the exterior of a building, or ornamentation; or the dismantling, moving or removing of any exterior feature. Alteration includes expanding an existing structure or the construction of an addition to an existing structure. Alteration includes the painting of unpainted masonry surfaces. Alteration does not include ordinary maintenance and repair, or the addition or replacement of fences that are not otherwise regulated by this article.

Archaeological means relating to the study of past human behavior through use of material remains of historic and prehistoric origin.

Archaeological site means property or a location designated by the city council on which there exists material remains of past life or past life activities that occurred on the property or at the location.

Block means one or more lots, tracts, or parcels of land bounded by streets, easements, rights-of-way, or other physical features or a combination thereof.

Blockface means the portion of a block that abuts a street.

Building means any structure used or intended for supporting or sheltering any use or occupancy.

Building permit means an official document or certificate issued by the building official authorizing performance of a specified activity, including the alteration, restoration, rehabilitation, construction, relocation or demolition of a building, structure or object.

Certificate of appropriateness means a current and valid permit issued by the HAHC or the director, as applicable, authorizing the

*__Editor's note__—Formerly, Art. VI. Ord. No. 03-159, § 6, adopted February 12, 2003, renumbered said article from Art. VI to Art. VII.

issuance of a building permit for construction, alteration, rehabilitation, restoration, relocation or demolition required by this article.

Certificate of remediation means a current and valid permit issued by the HAHC authorizing the issuance of a building permit for construction, alteration, rehabilitation, restoration, relocation or demolition intended to correct action taken contrary to the requirements of this article, and shall serve as a certificate of appropriateness for the enforcement and violation of this article, and is granted by the same standards that a certificate of appropriateness is granted.

Context area means the blockface and the opposing blockface within the district where the proposed activity is located. Context area may include a different geographic area if the commission finds that unusual and compelling circumstances exist or that context area is described differently in design guidelines.

Contributing structure means a building, structure, object or site that reinforces, or that has conditions, which, if reversed, would reinforce, the cultural, architectural or historical significance of the historic district in which it is located, and that is identified as contributing upon the designation of the historic district in which it is located. The term also includes any structure that was identified as "potentially contributing" in any historic district.

Demolition means an act or process that destroys, in whole or in part, or permanently impairs the structural integrity of any building, structure, object or site. The term also includes demolition by neglect, which is defined as inaction or a series of inactions that result in the destruction or irreversible deterioration of a building, structure, object, or site.

Designation means the formal recognition by the city council of a building, structure, object, site or district as historically, architecturally, culturally or archaeologically significant to the city, state, nation or region.

Design guidelines means an inventory and analysis of historic resources within a geographic area of the city designated or proposed for designation as one or more historic districts pursuant to the provisions of this article that contains standards for alteration, rehabilitation, restoration, new construction, relocation and demolition of buildings, structures, objects or sites in an historic district, and approved by the city council.

Excavation means to expose, uncover, or remove by digging, cutting or hollowing out.

Exterior feature means an element of the architectural character and general arrangement of the external portion of a building, structure or object, including building material, that is visible from a street, as well as those portions of the building that are essential to support the building envelope; including parts of the exterior wall assembly such as siding, wall studs, and interior shiplap; as well as the foundation. The term does not include purely interior structural elements including interior load-bearing walls or interior non-structural elements such as sheetrock.

HAHC means the Houston Archaeological and Historical Commission.

Height means the vertical distance from the existing natural grade.

Historic district means a geographical area designated by the city council that possesses a significant concentration, linkage or continuity of buildings, structures, objects or sites united by historical, cultural, architectural or archaeological significance to the city, state, nation or region.

Historic preservation officer means a person designated by the director to perform the duties of the director under this article.

Landmark means any individual building, structure, object or site designated by the city council for its historical, cultural, architectural or archaeological significance in the city, state, nation or region.

Mandatory repair means a repair of a building or structure that is necessary to comply with chapter 10 of this Code as evidenced by an order of the hearing official or the building and standards commission or by a citation.

Massing means the arrangement of the overall shape and volume of a building.

New construction means a free-standing building or structure proposed to be constructed within a historic district designated by city council, whether that building or structure is on the location of a vacant lot or a lot with another structure on it.

Noncontributing structure means a building, structure, object or site that does not reinforce the cultural, architectural, or historical significance of the historic district in which it is located, and is identified as noncontributing upon the designation of the historic district in which it is located.

Nonprofit organization means an entity organized for religious or not-for-profit purposes that holds a determination letter from the Internal Revenue Service that it is exempt from taxes under section 501(a) of the Internal Revenue Code of 1986, as amended, by virtue of section 501(c)(3) of that Code.

Object means a material thing of a functional, aesthetic, cultural, historical or scientific value that may be moveable by nature or design, yet related to a specific setting or environment.

Old Sixth Ward Protected Historic District or *OSWPHD* means the protected historic district established by the city council pursuant to division 6 of this article.

Ordinary maintenance and repair means any work to correct or prevent deterioration, decay or damage to a building, structure, object or site (or any part thereof), provided that the work does not change the design, character, texture or material of any exterior feature or constitute an 'alteration' as defined above. Ordinary maintenance and repair does not include replacement of historic material. Ordinary maintenance and repair does include the leveling of a foundation in a way that does not raise or lower the foundation.

Paleontological means relating to the study of all fossil remains of organisms that existed in the past.

Place of worship means a building, structure, object or site, owned by a nonprofit religious organization for a period of ten years prior to the later of October 13, 2010 or the date an application for designation of an historic district that includes the building, structure, object, or site is filed with the department and that is used primarily for worship or conducting religious services. A place of worship does not include ancillary buildings used for administration, schools, living quarters, or meeting halls not primarily used for worship. An organization may establish that it is a nonprofit religious organization through a determination letter from the United States Internal Revenue Service that the organization is tax-exempt pursuant to Section 501(c)(3) of the Internal Revenue Code or other equivalent evidence.

Planning commission means the planning commission of the city.

Plate height means the distance from the subfloor of a building to the top of the framed wall.

Protected landmark means a landmark whose owner has elected to permanently protect the landmark by foregoing the 90-day waiver certificate authorized by this article.

Qualified curatorial association means an organized and permanent non-profit institution, essentially educational or aesthetic in purpose, with professional staff, that owns and utilizes tangible objects, cares for them, and exhibits them to the public on some regular schedule, provided that the institution meets the requirements of the Council of Texas Archaeologists' Guidelines (Curation Standards and Procedures), 1992 edition, as may be amended or updated from time to time.

Real property records means the applicable records of a county in which conveyances of real property are recorded.

Rehabilitation means the act or process of returning a building, structure, object or site to a state of utility that makes possible an efficient contemporary use while preserving those portions or exterior features that are historically, architecturally and culturally significant.

Relocation means any change in the location of a building, structure or object.

Restoration means the act or process of accurately recovering the form and details of a building, structure, object or site and its setting as it appeared at a particular period of time by means of the removal of later work, or by the replacement of missing earlier work or both.

Roof pitch means the slope of a roof surface expressed in inches of vertical rise per twelve inches of horizontal distance.

Site means property upon which a significant event occurred, including, but not limited to, any land, building or natural resource where prehistoric or historic occupations or activities occurred and the location of buildings and structures, whether standing, ruined, demolished or relocated, where the location retains historical, architectural or archaeological value and integrity.

Street means a public or private street or roadway that is not an alley or a shared driveway.

Structure means that which is built or constructed, an edifice or building of any kind, or any piece of work artificially built up or composed of parts joined together in some definite manner.

Tract means a contiguous parcel of land under common ownership.

Typical means being within commonly occurring values in a group. Extreme values within a group are not necessarily typical of that group.

Working day means a day other than a Saturday, Sunday or official city holiday.

(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 05-969, § 2, 8-17-05; Ord. No. 07-855, § 3, 8-1-07; Ord. No. 2010-814, §§ 2—5, 10-13-2010; Ord. No. 2015-967, §§ 2—4, 10-7-2015)

Sec. 33-202. Scope.

(a) The provisions of this article apply to the alteration, rehabilitation, restoration, construction, relocation and demolition of any building, structure, object or site that is designated as a landmark or protected landmark or that is located within an historic district or an archaeological site and to the excavation of any archaeological site.

(b) Nothing in this article shall be construed to authorize the city to regulate the use of any building, structure or property.

(c) Nothing in this article shall be construed to authorize the city to regulate the interior characteristics of any building or structure, provided that any change in the interior characteristics of a landmark, protected landmark, or contributing structure in an historic district that has the effect of changing any exterior feature shall be subject to the terms of this article. Other provisions of this Code, the Construction Code, the Fire Code or state or federal law or regulation that are applicable to any building, structure, object or site that is subject to the provisions of this article shall continue to apply.

(d) This article does not abrogate or annul any restrictive covenant contained or incorporated by reference in a properly recorded map, plat, replat, declaration, or other instrument filed in the county real property records, map records or deed records. Any property designated as a landmark, protected landmark, or archaeological site or included within an historic district shall remain subject to the provisions of any restrictive covenants applicable to the property, and the restrictive covenants shall remain fully enforceable.

(e) The provisions of this article shall apply to buildings, structures, objects or sites that are owned by the United States of America, the State of Texas or a political subdivision of the State of Texas; provided such entities are not otherwise exempted from this article by law.

(f) Prior to any amendment of this article, the HAHC shall conduct one public hearing to solicit public comments on the proposed amendments. The HAHC may make recommendations to the city council with respect to the proposed amendments. The provisions of this subsection shall

not apply to any amendment to correct clerical errors or to make nonsubstantive changes in this article.
(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 02-399, § 78, 5-15-02; Ord. No. 05-969, § 3, 8-17-05; Ord. No. 2010-814, § 6, 10-13-2010)

Sec. 33-203. Enforcement and penalties; remedies cumulative; other action not limited.

(a) The procedures set forth in this article are cumulative of all other remedies available to the city relating to the subject matter hereof. Specifically, the city attorney may institute any legal action necessary to enforce this article or enjoin or otherwise cause the abatement of any violations hereof, including legal action necessary to recover damages or require restoration or reconstruction under section 315.006 of the Texas Local Government Code. The city council finds that alteration, rehabilitation, restoration, construction, relocation or demolition of any building, structure, object or site that is subject to the provisions of this article without a certificate of appropriateness as required under this article adversely affects the structural, physical or visual integrity of the building, structure, object or site.

(b) The building official shall not issue a building permit for any activity that requires a certificate of appropriateness pursuant to this article unless the applicant for the building permit presents a certificate of appropriateness or a 90-day waiver certificate issued pursuant to section 33-250 of this Code. The building official shall use any and all available enforcement mechanisms to enforce and require compliance with the provisions of this Code.

(c) Any person who violates any provision of this article shall be guilty of a misdemeanor, and, upon conviction, shall be punished by a fine of not less than $50.00 nor more than $500.00 for each violation. Each day during which any violation of this article continues shall constitute a separate offense.

(d) If a landmark or protected landmark, archaeological site, or a contributing structure located in an historic district is demolished without a certificate of appropriateness required by this article or, in the case of a landmark or archaeological site only, a 90-day waiver certificate issued pursuant to section 33-250 of this Code, or is ordered to be demolished by the city for public safety reasons after the property owner has received notice of neglect pursuant to section 33-254 of this Code, the building official shall not issue a building permit, and no other person shall issue any other city permit, for the site where the landmark, protected landmark or structure was formerly located for a period of two years after the date of the demolition. After the period of two years after the date of demolition has elapsed, the HAHC may approve a certificate of appropriateness for new construction on the site of the demolished structure only if the size and dimensions of the new construction are substantially similar, and not larger, than the demolished structure. After a period of ten years after the date of demolition has elapsed, the HAHC may approve a certificate of appropriateness for new construction on the site of the demolished structure without the limitation imposed by this section. New construction approved pursuant to this section shall not be eligible to receive a certificate of appropriateness for demolition or relocation before ten years after the date of demolition.

(e) If activity that requires a certificate of appropriateness is performed outside the scope of a certificate of appropriateness, which for purposes of this section shall include work done without a certificate of appropriateness, the building official shall not issue a permit, and no other person shall issue any other city permit, except as required to perform work required under a certificate of remediation under this subsection, for the site where the activity occurred until either:

(1) The commission issues a certificate of appropriateness for the work that was performed outside the scope of a certificate of appropriateness; or

(2) The commission finds that the work that was performed outside the scope of a certificate of appropriateness does not satisfy the criteria of this article and issues a certificate of remediation for the work that was performed outside the

scope of a certificate of appropriateness; and the commission may, as a condition of granting the certificate of remediation, also require that the applicant repair, reconstruct, or restore all or part of the work that was done without a certificate of appropriateness prior to the issuance of any permits besides those required for the reconstruction or restoration, using as many historically appropriate or salvage materials as are reasonably available.

(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 07-463, § 2, 4-11-07; Ord. No. 2010-814, § 7, 10-13-2010; Ord. No. 3015-967, §§ 5—7, 10-7-2015)

Sec. 33-204. Article supplemental.

The provisions of this article shall be cumulative of all other ordinances, laws and applicable regulations.

Sec. 33-205. Historic preservation officer.

The director shall appoint a qualified city official, or staff person to serve as historic preservation officer ("HPO"). The HPO must have an interest, knowledge and a demonstrated background in the disciplines of architecture, history, urban planning, archeology, or other disciplines related to historic preservation. The director may delegate the responsibilities of the director in this article to the HPO, in which case the HPO shall administer the duties and responsibilities of the director under this article, maintain and hold open for public inspection all documents and records pertaining to the provisions of this article, and review and help coordinate the city's historic preservation activities with other public and private entities.

(Ord. No. 3015-967, § 8, 10-7-2015)

Secs. 33-206—33-210. Reserved.

DIVISION 2. HOUSTON ARCHAEOLOGICAL AND HISTORICAL COMMISSION

Sec. 33-211. Composition; qualifications of members.

(a) The creation of the Houston Archaeological and Historical Commission is hereby reaffirmed. The HAHC shall consist of 13 members. Each member shall be a person who has knowledge and experience in the archaeological, architectural, cultural, social, economic, ethnic or political history of the city, and must have a known and demonstrated, competence, or knowledge in historic preservation within the city. The mayor shall assign a staff member to serve as a liaison between the HAHC and the mayor's office. The director, or in his absence or inability to act, a deputy director or assistant director of the department shall serve as a non-voting, ex officio member and as executive secretary to the HAHC. The archivist of the Houston Public Library System shall serve as an ex officio member of the HAHC, but shall not have a vote. When HAHC business requires the involvement of other departments, representatives of those departments shall attend meetings of the HAHC upon notice by the executive secretary. The HAHC shall elect its own chair and vice-chair.

(b) The 13 members of the HAHC shall hold specific positions as follows:

(1) Position 1 shall be filled by a professional archaeologist with knowledge of and interest in archaeology of the city.

(2) Position 2 shall be filled by a professional historian with knowledge of and interest in the history of the city.

(3) Position 3 shall be filled by an architectural historian.

(4) Position 4 shall be filled by a person who has knowledge of and interest in the cultural history of the city.

(5) Position 5 shall be filled by a registered architect.

(6) Position 6 shall be filled by a person with commercial interests in a historic district.

(7) Position 7 shall be filled by a professional real estate appraiser certified to perform appraisals for the city.

(8) Position 8 shall be filled by a representative of an organization for remodelers or builders who has knowledge of and interest in restoration, historic building renovation and compatible new construction.

(9) Position 9 shall be filled by a person who has professional knowledge in preservation construction and technology.

(10) Positions 10 through 13 shall be filled by citizen representatives.

(c) At least four members of the HAHC shall own or reside in a historic landmark or contributing structure in a designated historic district designated pursuant to this division.

(d) Members holding Positions 1 through 9 of the HAHC shall be appointed by the mayor, subject to confirmation by the city council. Members holding Positions 10 through 13 shall be appointed by the city council. The terms of each even-numbered position shall end on March 1 of even-numbered years, and the terms of each odd-numbered position shall end on March 1 of odd-numbered years.

(e) Each member shall serve for a term of two years and shall hold over until the member's successor is qualified.
(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 99-378, § 12, 4-21-99; Ord. No. 07-840, § 16, 7-18-07; Ord. No. 09-191, § 2, 3-4-09; Ord. No. 2010-814, § 8, 10-13-2010; Ord. No. 3015-967, § 9, 10-7-2015)

Sec. 33-212. Meetings; vacancies; removal.

(a) The HAHC shall adopt a regular meeting schedule and a schedule of submittal deadlines for applications filed pursuant to this article.

(b) A position on the HAHC shall be considered to be vacant if the member appointed to that position is absent from HAHC meetings three times within the period of a year, unless those absences are judged to be excusable by the director.

(c) A vacancy in any position shall be filled in the manner provided for original appointments, and the person so appointed shall serve for the remainder of the unexpired term. A member may be appointed to serve consecutive terms.

(d) Seven members of the HAHC shall constitute a quorum; however, in the event of vacancies on the HAHC, a majority of the members of the HAHC shall constitute a quorum. The executive secretary shall be counted for purposes of determining the presence of a quorum. Other ex officio members of the HAHC shall not be counted for purposes of determining the presence of a quorum.
(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 09-191, § 3, 3-4-09; Ord. No. 2010-814, § 9, 10-13-2010; Ord. No. 2015-967, §§ 10, 11, 10-7-2015)

Sec. 33-213. Service without pay.

Members of the HAHC shall serve without compensation.
(Ord. No. 95-228, § 2, 3-1-95)

Sec. 33-214. Responsibilities.

In addition to other responsibilities specified in this article, the responsibilities of the HAHC shall be as follows:

(1) Adopt such rules of procedure for meetings and proceedings of the HAHC as are necessary or convenient to accomplish the purposes set out in this article;

(2) Actively pursue and encourage the creation and maintenance of a list and maps of buildings, structures, objects, sites and areas in the city having special archaeological, historical, paleontological and historical architectural interest or value. The HAHC shall place particular emphasis upon evaluating and incorporating into the list and maps the findings of studies and surveys already completed;

(3) Identify buildings, structures, objects, sites and areas of the city that have the potential for designation as landmarks, protected landmarks, historic districts or archaeological sites and, where authorized by this article, initiate the process for the designation of landmarks, historic districts and archaeological sites;

(4) Increase public awareness of the value of archaeological, historical, paleontological and historical architectural conservation by facilitating and participating in public educational programs and by recommending updates to the conservation program;

(5) Make recommendations to the city council concerning the availability and utilization of grants from federal and state agencies, private groups and individuals, and the utilization of budgetary appropriations to promote the conservation of significant archaeological, historical, paleontological or historical architectural sites or structures in the city;

(6) Evaluate and comment upon decisions by city departments and agencies affecting archaeological, historical, paleontological or historical architectural resources;

(7) Assist the city in working with the Texas Historical Commission, the Texas Antiquities Committee, the Texas State Historic Preservation Officer, the Harris County Historical Commission, and other appropriate federal, state and local agencies;

(8) Facilitate efforts of persons wishing to donate archaeological, historical, paleontological or historical architectural artifacts, materials, structures, objects or sites to the public in placing those resources with qualified curatorial associations;

(9) Evaluate the effectiveness of the design guidelines in achieving the goals of this article and recommending changes to the design guidelines, if appropriate;

(10) Report annually to the city council the results of its work in these areas;

(11) Make recommendations regarding the furnishing of City Hall in a manner that is consistent with its original furnishings, architectural style, and period of construction;

(12) Assist in locating suitable new and used items of city hall furniture for acquisition by donation or city purchase;

(13) Facilitate the donation of funding for City Hall furnishings and the donation of appropriate items of City Hall furnishing from private sources, provided that the committee may not directly receive donations and that any donations be made directly to the city;

(14) Accomplish any other relations responsibilities that may be requested by city officials; and

(15) Perform any other duties that the city council authorizes the HAHC to perform.

(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 05-969, § 4, 8-17-05; Ord. No. 07-855, § 4, 8-1-07; Ord. No. 2010-668, § 3, 8-18-2010; Ord. No. 2010-814, § 10, 10-13-2010)

Secs. 33-215—33-220. Reserved.

DIVISION 3. DESIGNATION OF LANDMARKS, PROTECTED LANDMARKS, HISTORIC DISTRICTS AND ARCHAEOLOGICAL SITES*

Sec. 33-221. Designation.

(a) The city council may designate buildings, structures, objects and sites as landmarks and protected landmarks, may designate areas as historic districts, may designate sites as archaeological sites, and may define, amend and delineate the boundaries of any landmark, protected landmark, historic district or archaeological site as provided in this article.

(b) To encourage public participation and the resultant preservation of historical, cultural and archeological resources, the city council shall be authorized to offer owners of properties considered for designation tax exemptions and other incentives that the city council may determine appropriate, at the time of the proposed designation.

(c) Prior to action by the city council, the HAHC shall review each application for designation and make a recommendation with respect to the application, but designation shall be made only by the city council.

(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 05-969, § 6, 8-17-05; Ord. No. 2010-814, § 11, 10-13-2010)

*__Editor's note—__Ord. No. 05-969, § 5, adopted Aug. 17, 2005, amended the title of Ch. 33, Art. VII, Div. 3, to read as herein set out. Formerly, said division was entitled designation of landmarks, historic districts and archaeological sites.

Sec. 33-222. Application for designation of a landmark, archaeological site or protected landmark.

(a) Application for designation of a landmark or an archaeological site shall be initiated by either:

(1) The owner of the property for which the application is made or the owner's authorized representative; or

(2) The HAHC upon instructing the director to prepare an application for designation. Within ten working days following the action of the HAHC initiating an application, the director shall mail notice to the owner of the property or the owner's agent, as shown on the most recent city tax roll, that the HAHC has initiated an application.

(b) Application for designation of a protected landmark shall be initiated by the owner of the property proposed for designation.

(c) The application for designation of a landmark, protected landmark, or archaeological site shall be filed with the department in the form prescribed by the director. The application shall include a description and photographs of the property or properties and shall address each of the applicable criteria for designation contained in section 33-224 of this Code. The application for designation of a protected landmark shall include an instrument suitable for recording in the real property records, in a form approved by the city attorney, signed by the owner indicating that the 90-day waiver provision of section 33-250 of this Code shall not apply to the protected landmark and that the property is subject to the demolition by neglect provisions of section 33-254 of this Code.

(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 05-969, §§ 7, 8, 8-17-05; Ord. No. 07-463, § 3, 4-11-07; Ord. No. 2010-814, §§ 5, 12, 10-13-2010; Ord. No. 2015-967, § 12, 10-7-2015)

Sec. 33-222.1 Application for designation of an historic district.

(a) Application for designation of an historic district shall be initiated by either:

(1) Ten percent of the owners of tracts in the proposed district; or

(2) The HAHC upon instructing the director to prepare an application for designation.

(b) The application for designation of an historic district shall be filed with the department in the form prescribed by the director, and shall be subject to the following rules:

(1) The application shall include:

a. A map indicating the boundaries of the proposed historic district;

b. A description and a photograph of each of the properties in the proposed district;

c. A written statement outlining the historical, cultural, or architectural significance of the proposed district which shall address each of the applicable criteria for designation contained in section 33-224 of this Code;

(2) The application shall identify with respect to each building, structure, object or site within the proposed historic district whether it is proposed for designation as a contributing structure or a noncontributing structure;

(3) The boundaries of the proposed district must comprise a continuous land mass without out tracts inside of it;

(4) Tracts of publicly owned land, utility easements, and streets shall not be counted towards determining support for or against the designation of an historic district, but may be included within the historic district; and

(5) If a tract of land is owned by more than one person, only the signature of one owner is required to indicate support for initiating an application in accordance with this section.

(c) The director shall review each application for initial completeness. Upon determining that the application includes the items required by subsection (b) of this section, the director shall determine that the application is initially complete, and the director shall schedule and

conduct at least one public meeting on the application for the historic district. The director shall give notice of the public meeting in accordance with subsection (d) of this section, including procedures for giving notice of any additional public meeting.

The director shall establish rules for the conduct of public meetings, and shall endeavor to conduct the meeting within or near the proposed historic district, subject to the availability of appropriate space for public assembly. The director will present information on the proposed application and the process for approval at the public meeting.

(d) The director will establish the process for notice and for determining the evidence of support of the application, which shall include the following:

(1) Within 30 days after determining the application is initially complete, the director shall mail a notice to the owners of each property within the proposed historic district as indicated on the most current appraisal district records. The director shall endeavor to give notice to a civic association registered with the city whose area is included, in whole or in part, in the proposed district.

(2) The notice shall include the following:

a. The date, time, and location of the public meeting described in subsection (c) of this section;

b. Any other information the director determines may be useful to the property owners.

(e) After the final public meeting, the director shall mail notice to the owners of all property within the proposed historic district. The notice shall include a response form to be returned by the property owner which shall indicate whether the property owner does or does not support designation of the historic district. The response form must be placed in the U.S. mail with proper postage affixed and postmarked or delivered to the director not later than the thirtieth day after the date on the notice

(f) After the deadline for returning response forms mailed in accordance with subsection (e) has passed, the director shall determine if owners of 67 percent of all the tracts in the proposed district support the designation of the district in accordance with the following rules:

(1) If a tract of land is owned by more than one person, only the signature of one owner is required for determining public support by returned response forms in accordance with this section; and

(2) Tracts of publicly owned land, utility easements, and streets that are included within the boundaries of the proposed district shall not be counted toward determining support for or against the designation of an historic district.

(g) If the director is able to make the determination required by subsection (f) of this section, the application will be considered final and the boundaries of the proposed district shall be the boundaries of the proposed historic district. If the director is not able to make this determination, then the director shall either:

(1) Modify the boundaries of the proposed historic district if the modification will result in boundaries of one or more historic districts containing one or more noncontiguous areas where the response forms for owners of 67 percent of the tracts support designation of the proposed historic district. If the director modifies the boundaries, the application shall be considered final, the boundaries of the reduced proposed district shall be the boundaries of the proposed historic districts, and any property excluded from the proposed district shall be ineligible for inclusion within a historic district for a period of one year from the date the director modifies the boundaries of the proposed district pursuant to this item; or

(2) Determine that the application fails and that no further action will be taken by the HAHC. If an application fails pursuant to this section, the director shall mail notice to the owners of all property within

the proposed historic district that the application has failed and that no further action will be taken. Any property within the proposed district is ineligible for inclusion within a historic district for a period of one year from the date of the determination pursuant to this section.

(h) If the director determines that an application is final, the director shall give notice to all property owners within the proposed district of a hearing before the HAHC in accordance with the provisions of section 33-226 of this Code. The notice shall include the boundaries of one or more proposed historic districts.

(i) The director may conduct a public workshop for the HAHC on any application for designation of a historic district in which the director reviews the application, the results of response forms received by the department, the boundaries of the proposed districts as modified in accordance with subsection (g) of this section, and any other information the director determines is relevant to the application.

(j) The HAHC will conduct a public hearing on each final application for designation of a historic district. Following the public hearing, the HAHC may:

(1) Approve the proposed boundaries and forward them to city council for approval;

(2) Amend the boundaries in accordance with the provisions of this article, in which case the HAHC may defer the application and continue the public hearing to a later meeting; or

(3) Disapprove the application, after which no further action shall be taken.

(Ord. No. 2010-814, § 13, 10-13-2010; Ord. No. 2015-967, § 13, 10-7-2015)

Sec. 33-223. Property pending designation.

(a) Upon initiation of an application for designation of a landmark, archaeological site or historic district that satisfies the minimum age criteria of section 33-224(b) of this Code, the building, structure, object or site proposed for designation as a landmark or archaeological site and any building, structure, object or site located in an area proposed for designation as an historic district shall be subject to the requirements of division 4 of this article as though the building, structure, object, site or area had been designated by the city council. If the HAHC denies an application for certificate of non-designation for any property pursuant to section 33-228 of this Code, the property shall also be subject to the provisions of this section.

(b) The protected status provided in subsection (a) above ends on the earliest of the following dates:

(1) The day after an action of the city council or the HAHC rejecting an application for designation;

(2) In the case of an application for designation of a landmark or archaeological site, the day after the withdrawal of the application by the property owner;

(3) In the case of an application for designation of an historic district, the 181st day after the director determines the application is initially complete, or:

a. If the HAHC defers the application once in accordance with section 33-222.1(j)(2), the 211th day after the director determines the application is initially complete;

b. If the HAHC defers the application two or more times in accordance with section 33-222.1(j)(2), the 241st day after the director determines the application is initially complete;

c. If the city council defers the application or remands the application back to HAHC for reconsideration, 60 days will be added to the number of days of the protected status provided for by this subsection.

(4) In the case of an application for designation of an historic district, the day after the director determines that the application fails; or

(5) In the case of the denial of a certificate of non-designation by the HAHC, the 181st day after the decision of the HAHC.

For purposes of this article, an application for designation is initiated immediately upon the occurrence of either the filing of an application for designation by the requisite owners pursuant to section 33-222 or section 33-222.1 of this Code or, in the case of an application initiated by the HAHC, the date a majority of the HAHC votes to authorize the preparation of an application.
(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 07-463, § 4, 4-11-07; Ord. No. 2010-814, § 14, 10-13-2010; Ord. No. 2015-967, § 14, 10-7-2015)

Sec. 33-224. Criteria for designations.

(a) The HAHC, in making recommendations with respect to designation, and the city council, in making a designation, shall consider one or more of the following criteria, as appropriate for the type of designation:

(1) Whether the building, structure, object, site or area possesses character, interest or value as a visible reminder of the development, heritage, and cultural and ethnic diversity of the city, state, or nation;

(2) Whether the building, structure, object, site or area is the location of a significant local, state or national event;

(3) Whether the building, structure, object, site or area is identified with a person who, or group or event that, contributed significantly to the cultural or historical development of the city, state, or nation;

(4) Whether the building or structure or the buildings or structures within the area exemplify a particular architectural style or building type important to the city;

(5) Whether the building or structure or the buildings or structures within the area are the best remaining examples of an architectural style or building type in a neighborhood;

(6) Whether the building, structure, object or site or the buildings, structures, objects or sites within the area are identified as the work of a person or group whose work has influenced the heritage of the city, state or nation;

(7) Whether specific evidence exists that unique archaeological resources are present; and

(8) Whether the building, structure, object or site has value as a significant element of community sentiment or public pride.

(b) Notwithstanding the foregoing, no building, structure, object or site less than 50 years old shall be designated as a landmark, protected landmark, or archaeological site, and no area in which the majority of buildings, structures or objects is less than 50 years old shall be designated as an historic district, unless it is found that the building, structure, object, site or area is of extraordinary importance to the city, state or nation for reasons not based on age.
(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 05-969, § 9, 8-17-05; Ord. No. 2010-814, § 15, 10-13-2010)

Sec. 33-225. Procedures for designation of landmark, historic district and archaeological site.

(a) The HAHC shall review each final application for designation of a landmark, historic district, and archaeological site and shall conduct a public hearing on each application. The director shall make a record of the public hearing. The HAHC shall consider the application and evidence presented at the public hearing. After due consideration, the HAHC shall determine whether to recommend the designation, provided, however, that if the HAHC does not act with respect to an application for designation within 60 days of the public hearing before the HAHC on the designation, the HAHC shall be deemed to have recommended the designation. The recommendation of the HAHC, which shall include the basis for the recommendation, shall be in writing. If the HAHC recommends against designation upon consideration of the application, the application shall be disapproved and no recommendation shall be submitted to the city council.

(b) The director shall submit the recommendation of the HAHC for designation and the application to the city council.

(c) The city council shall consider an application for designation after receiving a recommendation from the HAHC and shall decide whether to designate the property or historic district.

(d) The city secretary shall maintain a copy of a map identifying each landmark, protected landmark, and historic district designated by the city council, and additional copies shall be maintained by the director and the building official. The director shall file for recordation in the real property records of the county or counties in which the designated property is located each action of the city council designating a landmark, protected landmark, and historic district. The city secretary shall maintain a copy of a map identifying each archaeological site designated by city council which shall not be made available to the public.
(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 05-969, § 10, 8-17-05; Ord. No. 06-783, § 3, 7-26-06; Ord. No. 2010-814, §§ 5, 16, 10-13-2010; Ord. No. 2015-967, §§ 15, 16, 10-7-2015)

Sec. 33-226. Notice requirements for public hearings.

(a) The director shall give notice of a public hearing before the HAHC on the designation of a landmark or archaeological site initiated by the HAHC not less than 30 days before the date of the public hearing to the owner of the property at the name and address as shown on the most current appraisal district records. If the notice address for the owner as shown on the most current appraisal district records does not coincide with the street address of the property, then the director shall also send a notice addressed occupant to the street address for the proposed landmark or archaeological site. The director shall also publish notice of the public hearing in a newspaper of general circulation in the city not less than 30 days before the date of the public hearing.

(b) The director shall provide notice of a public hearing on the designation of a landmark or archaeological site by letter, first class mail, postage paid, by facsimile transmission or by electronic mail no later than the fifth day before the date of the public hearing to the owner of the landmark or archaeological site.

(c) The director shall give notice of a public hearing before the HAHC on the designation of an historic district not less than 30 days before the date of the public hearing on designation as follows:

(1) Notice shall be given by mail to each property owner within the proposed historic district, as shown on the most current appraisal district records.

(2) Notice shall be published in a newspaper of general circulation in the city; and

(3) Notice shall be posted by sign in at least four locations within the district selected by the director at locations reasonably calculated to be seen easily by residents of the district and where each sign will be visible from at least one street. In addition, where, in the opinion of the director, because of the size, configuration, traffic patterns or other characteristics of the proposed historic district, additional signs would be beneficial in providing notice, the director shall cause an appropriate number of additional signs to be posted. The signs shall conform to specifications prescribed by the director.

(d) Written notice that is given by mail shall be deemed given when it is deposited in the United States mail, properly addressed, postage paid. The affidavit of a person who has knowledge of the fact that notice was mailed constitutes prima facia evidence that notice has been given as required by this section.

(e) Additional notice need not be given if the public hearing is adjourned or continued to another date, provided that the date, time and place to which the public hearing is adjourned or continued are specified in the public hearing.
(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 06-783, § 4, 7-26-06; Ord. No. 07-463, §§ 5—7, 4-11-07; Ord. No. 2010-814, §§ 5, 16, 10-13-2010; Ord. No. 2015-967, § 17, 10-7-2015)

Sec. 33-227. Amendment; changes in boundary.

(a) Amendment of any designation of any landmark, protected landmark, or archaeological site shall require action by the city council and shall follow the procedures for application, notice, public hearing and recommendation by HAHC used for the designation of the landmark, protected landmark, or archaeological site.

(b) Enlargement of the boundaries of a historic district shall require action by the city council and shall follow the procedures for application, notice, public hearing and recommendation by HAHC used for the designation of a historic district with respect to the property to be added to the district and not the property within the existing district except that the requirements of section 33-224 of this Code shall be applied to the entire district as modified by the enlargement of the boundaries.

(c) Amendment of any classification of a building, structure, object, or site within a historic district may be initiated by the director only upon finding that a building, structure, object, or site is incorrectly classified as contributing or non-contributing or that the existence of unusual or compelling circumstances, such as the presence of significant and irreversible changes not caused by the owner of the building, structure, or object, justifies the changing of the classification of the building, structure, object, or site. The director shall not recommend the change in classification of a building, structure, object, or site that has deteriorated due to any action or negligence of the owner. The director shall present the findings at a regularly scheduled meeting of the HAHC after giving notice to the property owner of the proposed change not later than 15 days before the meeting, The HAHC shall either disapprove the director's recommended change, or approve the change and refer the change to city council for approval.

(d) Nothing herein shall be construed to require the city council to follow all of the procedures used in the designation if the amendment is solely for the purpose of correcting minor technical errors, including, but not limited to, errors in property descriptions, that are necessary to implement the intent of the city council with respect to the designation.

(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 05-969, § 11, 8-17-05; Ord. No. 2010-814, § 16, 10-13-2010; Ord. No. 2015-967, § 18, 10-7-2015)

Sec. 33-228. Certificate of non-designation.

(a) The owner or owner's agent of any property may submit an application for a certificate of non-designation with respect to any building, structure, object, site, property or area that has not been designated as a landmark, protected landmark, or structure in an historic district or an archaeological site. Applications shall be filed with the director and shall contain the following information:

(1) The name, address and daytime telephone number of the owner and the applicant, if different from the owner;

(2) The address and general description of the property that is the subject of the application;

(3) A current photograph of the property that is the subject of the application; and

(4) Information demonstrating whether the property is eligible for designation as a landmark or protected landmark or as a contributing structure in an historic district.

(5) For an archaeological site, an assessment from a professional archaeologist that demonstrates whether the archaeological site is eligible for designation as an archaeological site.

The application for a certificate of non-designation shall be accompanied by a nonrefundable fee stated for this provision in the city fee schedule.

(b) The HAHC shall consider an application for certificate of non-designation at a regular meeting within 35 days of the date a complete application for the certificate is filed with the director or at a later time mutually agreed upon in writing by the director and the applicant. The HAHC may continue its consideration of an

application for a certificate of designation to its next regular meeting upon finding that specific information is needed by the HAHC to enable it to reach its decision or upon agreement with the applicant for a continuance. If the HAHC does not act upon an application for a certificate of non-designation within the later of 70 days from the date the application is filed with the director or 35 days after the date mutually agreed on by the applicant and director for review of the application by the HAHC, the application shall be deemed approved, unless the applicant consents in writing to an extension to a specified date.

(c) The HAHC shall not grant the certificate of non-designation if it finds any of the following:

(1) The building, structure, object, site, property or area is the subject of a pending application for designation as a landmark, protected landmark or archaeological site;

(2) The building, structure, object, site, property or area is within an area that is the subject of a pending application for designation of an historic district;

(3) The building, structure, object, site, property or area is eligible for designation as a landmark, protected landmark or archaeological site; or

(4) The building, structure, object, site, property or area is located in an area that is eligible for designation as an historic district and meets the criteria for contributing structure if the area were to be designated as an historic district.

Otherwise, the HAHC shall grant the certificate of non-designation.

(d) The certificate of non-designation shall expire ten years after the date of its issuance and shall be evidence that the subject of the certificate of non-designation will not be subject to the provisions of this article for a period of ten years from the date of issuance of the certificate of non-designation. The certificate of non-designation shall run with the land and may not be transferred to any other building, structure, object, site, property or area.

(e) If the HAHC finds that the subject of an application does not qualify for a certificate of non-designation, the HAHC shall deny the application and shall notify the applicant in writing of the denial. If the HAHC denies the certificate of non-designation, the property shall be subject to the provisions of section 33-223 of this Code for the time specified therein.

(f) Following notice and an opportunity for hearing, the HAHC may revoke a certificate of non-designation that is found to have been issued in error.

(g) If the city council designates as a landmark or archaeological site a building, structure, object or site that is the subject of an unexpired certificate of non-designation, the designation shall not be effective until the expiration of the certificate of non-designation. If the city council designates an historic district, the designation shall not be effective with respect to an individual building, structure, object or site located within the historic district that is the subject of an unexpired certificate of non-designation until the expiration of the certificate of non-designation with respect to the individual building, structure, object or site.
(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 07-463, § 8, 4-11-07; Ord. No. 2010-814, §§ 5, 17, 10-13-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2015-967, § 19, 10-7-2015)

Sec. 33-229. Designation of protected landmark.

(a) An application for designation of a protected landmark may only be submitted by the property owner. The HAHC shall review each application and shall recommend a property to be designated as a protected landmark if the property:

(1) Meets at least three of the criteria for designation in section 33-224 of this Code;

(2) Was constructed more than 100 years before application for designation was received by the director;

(3) Is listed individually or as a contributing structure in an historic district on the National Register of Historic Places; or

(4) Is recognized by the State of Texas as a Recorded State Historical Landmark.

(b) The recommendation of the HAHC shall be submitted to the city council pursuant to section 33-225 of this Code.

(c) The city secretary shall maintain a copy of a map identifying each protected landmark designated by the city council, and additional copies shall be maintained by the director and the building official. The director shall file for recordation in the real property records of the county or counties in which the designated property is located notice of each action of the city council designating a protected landmark and the form submitted by the owner pursuant to subsection 33-222(c) of this Code.
(Ord. No. 05-969, § 12, 8-17-05; Ord. No. 2010-814, §§ 5, 18, 10-13-2010; Ord. No. 2015-967, § 20, 10-7-2015)

Secs. 33-230—33-235. Reserved.

DIVISION 4. CERTIFICATES OF APPROPRIATENESS

Sec. 33-236. Prohibited activities; offense.

(a) No person shall alter, rehabilitate, restore or construct any exterior feature of a landmark or protected landmark without a certificate of appropriateness.

(b) No person shall alter, rehabilitate, restore or construct any exterior feature of any building, structure or object within an historic district without a certificate of appropriateness.

(c) No person shall excavate any archaeological site; alter, rehabilitate, restore or construct any exterior feature of any building, structure or object located on or in an archaeological site; or demolish any building, structure or object located on or in an archaeological site without a certificate of appropriateness.

(d) No person shall relocate any landmark or protected landmark without a certificate of appropriateness.

(e) No person shall relocate any building, structure or object within, into or out of an archaeological site without a certificate of appropriateness.

(f) No person shall relocate any building, structure or object within or into an historic district or relocate a contributing structure out of an historic district without a certificate of appropriateness, provided that a certificate of appropriateness shall not be required to relocate a noncontributing structure to a location outside of the historic district in which it is located.

(g) No person shall demolish any landmark, protected landmark, or any contributing structure within an historic district without a certificate of appropriateness.

(h) No person shall conduct any mandatory repair of a landmark, protected landmark, or of a building, structure or object within an historic district or archaeological site without a certificate of appropriateness.

(i) No owner of a protected landmark or contributing structure in an historic district shall allow a protected landmark or contributing structure to fall into a serious state of disrepair so as to result in the deterioration of any exterior architectural feature.

(j) No person shall alter, rehabilitate, restore, construct, relocate or demolish any landmark, protected landmark, or any building, structure or object in an historic district or archaeological site, or excavate any archaeological site, without complying with the applicable provisions of this article. It is a defense to prosecution under this section that the Director of Houston Public Works or a deputy director or an assistant director having supervisory responsibilities over the issuance of building permits has determined (1) that the work to be performed is necessary to correct conditions that are in violation of the life safety requirements for existing buildings as set forth in the *Existing Building Code,* including Appendix D thereto; (2) that the work to be performed is the only means for achieving compliance with the life safety requirements; and (3) that, based upon the nature of the life safety violations and

the risks associated with their continuation, the provisions of this article should be waived to the extent of the life safety requirements.

(k) Any application for amendment to a pending certificate of appropriateness application or building permit application or a certificate of appropriateness or building permit that has been issued under the provisions of this section that would affect any part of the work that is within the scope of this article, as set forth in section 33-202 of this Code, shall be considered as though it were an original application for the purposes of this division.
(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 98-613, § 62, 8-5-98; Ord. No. 02-399, § 79, 5-15-02; Ord. No. 04-1015, § 27, 9-27-04; Ord. No. 05-969, § 13, 8-17-05; Ord. No. 2010-814, §§ 19, 20, 10-13-2010; Ord. No. 2015-967, § 21, 10-7-2015; Ord. No. 2018-11, § 49, 1-10-2018; Ord. No. 2021-1037, § 20(Exh. I.39), 12-1-2021, eff. 4-1-2022)

Sec. 33-237. Exemptions.

(a) A certificate of appropriateness is not required for ordinary maintenance and repair, or for the alteration, rehabilitation, restoration, or construction of the following:

(1) Reroofing with in-kind materials with no change to the structure, shape, or pitch of the roof;

(2) An alteration that is obscured from view from the street by the original structure and not merely obscured by fencing, landscaping, non-historic additions, or other impermanent obstructions;

(3) Gutters, downspouts, storm windows and doors, window screens, screen doors, temporary emergency weatherization features such as plywood coverings over windows, porch ceiling fans, light fixtures, HVAC units, landscaping;

(4) Fences;

(5) Removal of burglar bars, satellite dishes, antennae, solar panels, free-standing signs, and accessibility ramps and lifts;

(6) Installation of solar panels, antennae, satellite dishes, or other roof equipment installed on the rear half of the roof; and installation of free-standing signs; and

(7) Painting non-masonry surfaces, and repainting previously painted masonry surfaces.

(b) A certificate of appropriateness is not required for the reconstruction of the portion of a contributing or noncontributing structure that was completely or partially destroyed by a fire, natural disaster, or other damage not intentionally caused by the owner of the structure only if the reconstruction is built within the same footprint and has the same exterior features as the contributing or noncontributing structure.

(c) A certificate of appropriateness is not required for the demolition of a non-contributing structure in a historic district.

(d) The operation of this section shall constitute an affirmative defense to prosecution under section 33-236 of this Code.

(e) The design guidelines for an individual historic district may require that an alteration exempted by this section require a certificate of appropriateness pursuant to provisions contained in the design guidelines.
(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 2010-814, § 21, 10-13-2010; Ord. No. 2015-967, § 22, 10-7-2015)

Sec. 33-238. Application.

No application shall be deemed to be filed unless it is submitted in the form promulgated by the director and contains all required supporting plans, designs, photographs, reports, and other exhibits required by the director. The fee for an application for a certificate of appropriateness shall be as prescribed in the fee schedule and may vary depending on the type of activity proposed.
(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 04-1015, § 28, 9-27-04; Ord. No. 09-191, § 4, 3-4-09; Ord. No. 2010-814, §§ 5, 22, 10-13-2010; Ord. No. 2015-967, § 23, 10-7-2015)

Sec. 33-238.1. Notice requirements.

(a) The applicant for a certificate of appropriateness for a landmark, protected landmark, or any contributing structure in an historic district, or for an appeal from a decision of the HAHC, shall give notice of the application for a certificate of appropriateness by posting at least one sign on the property for which the

certificate of appropriateness is requested. A sign shall face each street bordering the site; provided, however, that if more than four signs would be required to be posted, the applicant may request the director to approve an alternative number and location of signs. The director shall approve an alternative to the number and location of signs required by this subsection in excess of four upon determining that the alternative will provide maximum visibility and obtain the objectives of this section without unduly burdening the applicant. Each sign required under this subsection shall comply with the following:

(1) For an application for a certificate of appropriateness for demolition, relocation, or for an appeal from the decision of the HAHC, each sign shall be a minimum of four by eight feet in size and shall be posted no more than 15 feet from the street. Each sign shall be posted not less than ten days before the date of the meeting at which the certificate of appropriateness will next be considered. The lettering on each sign shall be legible from the street. The applicant shall use reasonable efforts to maintain each required sign on the site until the close of the meeting at which the application for certificate of appropriateness or appeal is considered. Each sign shall include:

a. The application number and the type of certificate of appropriateness being requested;

b. The date, time, and place of the meeting at which the application or appeal will next be considered, updated to reflect any changes in the date, time, and place of the meeting, including if the applicant's request is deferred, continued, or otherwise postponed;

c. A telephone number of the applicant to call for additional information; and

d. A department telephone number to call for additional information.

(2) For an application for a certificate of appropriateness not mentioned by item (1) of this subsection, each sign shall be the size of a typical yard sign or as prescribed by the director and shall be posted no more than 15 feet from the street. Each sign shall be posted within three days of submission of an application for a certificate of appropriateness. The lettering on each sign shall be legible from the street. The applicant shall use reasonable efforts to maintain each required sign on the site until the close of the meeting at which the application for certificate of appropriateness is considered, if applicable. Each sign shall include:

a. The application number and the type of certificate of appropriateness being requested; and

b. A department telephone number to call for additional information.

(b) Notice under this section is not required for a certificate of appropriateness pursuant to sections 33-241.1(c)(1)—(4).

(Ord. No. 09-191, § 5, 3-4-09; Ord. No. 2010-814, §§ 23, 24, 10-13-2010; Ord. No. 2015-967, § 24, 10-7-2015)

Sec. 33-239. Procedures.

An application for a certificate of appropriateness shall be considered by the HAHC if the complete application is submitted by the next scheduled submittal deadline as approved by the HAHC. The HAHC may continue its consideration of an application for a certificate of appropriateness to its next regular meeting upon finding that specific information is needed by the HAHC to enable it to reach its decision or upon agreement with the applicant for a continuance. If the HAHC does not act upon an application for a certificate of appropriateness within the next two meetings of the HAHC after the first meeting in which the application is considered for a total of three meetings in which the application is considered, the application shall be deemed approved, unless the applicant consents in writing to an extension to a specified date.

(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 09-191, § 6, 3-4-09)

Sec. 33-240. Criteria for issuance of certificates of appropriateness—General.

(a) The HAHC shall be the body responsible for approving certificates of appropriateness unless otherwise provided in this article. The HAHC shall review and approve or disapprove a certificate of appropriateness pursuant to:

(1) The applicable specific criteria in this division; and

(2) Design guidelines approved pursuant to section 33-268 of this Code or division 6 of this article for the Old Sixth Ward Protected Historic District, to the extent applicable.

(3) In the event of a conflict between the criteria in this division and the design guidelines, more restrictive criteria shall control.

(b) The applicant for a certificate of appropriateness shall have the burden of demonstrating that the application satisfies the criteria applicable to the issuance of the certificate of appropriateness. To approve or disapprove an application for a certificate of appropriateness, the HAHC shall consider and make findings with respect to the relationship between the proposed activity and the applicable criteria. The HAHC shall take into consideration the current needs of the applicant and shall be sensitive to the property owner's financial condition in determining whether to issue a certificate of appropriateness.

(c) In reviewing applications for certificates of appropriateness under this article, the HAHC or the director, respectively as appropriate, shall also consider any elements of the proposed activity that may be necessary to enable the property to comply with any other applicable city ordinances or state or federal law so as to facilitate compliance with this ordinance and other applicable laws.
(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 07-855, § 5, 8-1-07; Ord. No. 2010-814, § 25, 10-13-2010; Ord. No. 2015-967, §§ 25, 26, 10-7-2015)

Sec. 33-241. Same—Exterior alteration, rehabilitation, restoration and addition.

The HAHC shall issue a certificate of appropriateness for the alteration, rehabilitation, restoration or addition of an exterior feature of (i) any landmark, (ii) protected landmark, or (iii) any building, structure or object that is part of an archaeological site, or (iv) contributing building in a historic district, upon finding that the application satisfies the following criteria, as applicable:

(1) The proposed activity must retain and preserve the historical character of the property;

(2) The proposed activity must contribute to the continued availability of the property for a contemporary use;

(3) The proposed activity must recognize the building, structure, object or site as a product of its own time and avoid alterations that seek to create an earlier or later appearance;

(4) The proposed activity must preserve the distinguishing qualities or character of the building, structure, object or site and its environment;

(5) The proposed activity must maintain or replicate distinctive stylistic exterior features or examples of skilled craftsmanship that characterize the building, structure, object or site;

(6) New materials to be used for any exterior feature excluding what is visible from public alleys must be visually compatible with, but not necessarily the same as, the materials being replaced in form, design, texture, dimension and scale;

(7) The proposed replacement of exterior features, if any, should be based on accurate duplication of features, substantiated by available historical, physical or pictorial evidence, where that evidence is available, rather than on conjectural designs or the availability of different architectural elements from other structures;

(8) Proposed additions or alterations must be done in a manner that, if removed in the future, would leave unimpaired the essential form and integrity of the building, structure, object or site;

(9) The proposed design for any exterior alteration or addition must not destroy significant historical, architectural, archaeological or cultural material, including but not limited to siding, windows, doors, and porch elements;

(10) The proposed alteration or addition must be compatible with the massing, size, scale, material and character of the property and the context area; and

(11) The distance from the property line to the front and side walls, porches, and exterior features of any proposed addition or alteration must be compatible with the distance to the property line of similar elements of existing contributing structures in the context area.

(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 05-969, § 14, 8-17-05; Ord. No. 07-855, § 6, 8-1-07; Ord. No. 2010-814, § 25, 10-13-2010; Ord. No. 2015-967, § 27, 10-7-2015)

Sec. 33-241.1. Same—Administrative approvals.

(a) The director shall approve a certificate of appropriateness for the construction of any one, but no combination of the following additions to a contributing structure in a historic district:

(1) A rear addition that:

a. Is not taller than the existing structure;

b. Is set back from the side property lines at least as much as the structural walls of the existing structure;

c. Is not wider than the wall to which it is attached;

d. Does not require the demolition of any portion of the existing structure except for the rear wall to which the addition will be attached;

e. Has a roof pitch that is less than or equal to the existing structure; and

f. Is not constructed on a building that has had an addition approved under this chapter.

(2) A side addition that:

a. Is not taller than the existing structure;

b. Is attached only to one exterior wall of the existing structure and does not extend past the existing rear wall of the side to which it is attached;

c. Is set back from the front of the wall to which it is attached at least 30 percent of the distance between the front of the wall to which it is attached to the rear of the wall to which it is attached;

d. Is not wider than half the distance that the addition is set back from the front of the wall to which it is attached. For example, if the addition is set back 20 feet from the front wall to which it is attached, the addition may not be wider than ten feet;

e. Does not require the demolition of any portion of the existing structure except for the exterior wall to which the addition will be attached; and

f. Does not deviate from the roof pitch of the existing structure except for cross gable or hip roofs; and

g. Is not constructed on a building that has had an addition approved under this chapter.

(3) A partial second-story addition that:

a. Is constructed on top of a one-story structure;

b. Does not extend outside the footprint of the existing structure;

c. Is set back from the front wall of the existing structure at least half the distance between the front wall of

the existing structure and the farthest point of the rear of the existing structure;

d. Has a plate height that does not exceed the plate height of the story beneath the proposed addition;

e. Has a roof pitch that is less than or equal to the existing structure;

f. Is constructed without the removal of any existing exterior walls; and

g. Is not constructed on a building that has had an addition approved under this chapter.

(b) The director shall issue a certificate of appropriateness for the alteration, rehabilitation, or restoration of a non-contributing structure or an addition to a noncontributing structure in an historic district upon finding that the application satisfies the following criteria, as applicable:

(1) For an alteration, rehabilitation, or restoration that does not require the removal or replacement of the structural elements, not including the foundation, within 67 percent of the structure:

a. The proposed activity must recognize the building, structure, object or site as a product of its own time and avoid alterations that seek to create an earlier or later appearance; and

b. The proposed activity must match the architectural features, materials, and character of either the existing noncontributing structure or the contributing structures within the context area.

(2) For an alteration, rehabilitation, or restoration that requires the removal or replacement of the structural elements, not including the foundation, within 67 percent or more of the structure, the director shall refer the application to the HAHC, which shall approve a certificate of appropriateness if the result of the project conforms to the requirements for new construction in a historic district in section 33-242 of this Code.

(3) For an addition to a noncontributing structure:

a. The distance from the property line to the front and side walls, porches, and exterior features of any proposed addition or alteration must be compatible with the distance from the property line of similar elements of existing contributing structures in the context area; and

b. The noncontributing structure with the constructed addition is compatible with the typical proportions and scale of existing contributing structures in the context area.

(c) The director is authorized to issue a certificate of appropriateness for the following activities if the director finds that the proposed activity will be performed in a manner that satisfies the criteria for alterations, additions, or new construction in this article, as applicable. If the director finds that an application for a certificate of appropriateness pursuant to this subsection does not satisfy the applicable criteria, or that the application does not satisfy the general intent and purposes of this article, the director shall refer the application to the HAHC for consideration:

(1) Removal of a window or door element that was not original to the contributing structure and replacement with a window or door element that:

a. Is appropriate to the historic significance of the structure; and

b. Does not change the size, shape or location of any opening, including the trim, molding or other features associated with the opening, from which the window or door elements are to be removed;

(2) Removal of:

a. Exterior wall cladding that was not an original feature or characteristic of the structure and replacement with appropriate cladding;

b. Non-historic additions, including attached garages or carports;

c. Non-historic decorative elements, such as shutters or brackets; and

d. Non-historic low-profile skylights, canopies, awnings, or signs attached to the building.

(3) Replacement of historic materials that are damaged beyond repair with materials of the same size, shape, material, and pattern;

(4) Installation of:

a. Burglar bars;

b. Accessibility ramps or lifts;

c. Low-profile skylights, shutters, solar panels, antennae, satellite dishes, or other roof equipment installed on the front half of the roof; and

d. Awnings and canopies;

(5) Construction of:

a. Freestanding garages, including garage apartments, freestanding carports, and other secondary structures, that have a footprint of 600 square feet or less, located at the rear of the lot,

b. A rear porch that is not taller than the existing structure and that does not extend beyond the existing side walls of the structure;

(6) Installation of any details including porch elements or detailing that have been partially lost or removed but whose existence has been substantiated by the remaining elements still in existence or historical documentation such as architectural plans or historic photographs; and

(7) Installation of signs attached to the exterior of a building that

a. Do not compromise historic exterior features on the structure;

b. Are 25 square feet or less in total area; and

c. Are installed without damage to significant historic material.

(d) The director shall issue a certificate of appropriateness for repair or reconstruction of those internal structural elements that are essential to support the building's envelope to which they are attached, for example, interior shiplap, if the applicant demonstrates to the satisfaction of the director that the structural repair or reconstruction can be accomplished without harm to the exterior features of the building or structure visible from the right-of-way. In support of an application for repair or reconstruction under this subsection, the applicant shall include a written statement from a structural engineer licensed by the State of Texas that the proposed repair or reconstruction can be accomplished without harm to the exterior features of the building or structure visible from the right-of-way.

(e) If the director does not approve the application for a certificate of appropriateness pursuant to this section within 15 business days of receipt of a complete application, the director shall refer the application to the HAHC for consideration. The HAHC shall review the application according to the criteria for alterations, additions, or new construction, as applicable, or as otherwise provided by this section. The schedule for consideration of an application for a certificate of appropriateness provided by section 33-239 of this Code shall apply to an application considered under this section and the administrative process authorized herein shall not suspend any time required for consideration. The director may promulgate rules for the receipt and processing of applications under this section.

(f) The director may administratively approve an amendment to a certificate of appropriateness approved by the HAHC if the amendment has an insignificant and non-substantive impact on the project for which a certificate of appropriateness was granted and does not affect the historic character of the structure, if applicable.

(g) Design guidelines for an individual historic district may provide that administrative approvals under this section must instead be approved by the HAHC using the criteria of this section, or of this article, as appropriate. Design guidelines

for an individual historic district remove the administrative approval of additions provided in subsection (a) of this section and instead require that additions be approved in accordance with the provisions of section 33-241 of this Code.
(Ord. No. 2015-967, § 28, 10-7-2015)

Sec. 33-242. Same—New construction in historic district.

(a) The HAHC shall issue a certificate of appropriateness for new construction in an historic district upon finding that the application satisfies the following criteria:

(1) The distance from the property line of the front and side walls, porches, and exterior features of any proposed new construction must be compatible with the distance from the property line of similar elements of existing contributing structures in the context area;

(2) The exterior features of the new construction must be compatible with the exterior features of existing contributing structures in the context area;

(3) The scale and proportions of the new construction, including the relationship of the width, overall height, eave height, foundation height, porch height, roof shape, and roof pitch, and other dimensions to each other, must be compatible with the typical scale and proportions of existing contributing structures in the context area unless special circumstances, such as an atypical use, location, or lot size, warrant an atypical scale and proportions;

(4) The height of the new construction must not be taller than the typical height of existing contributing structures in the context area unless special circumstances, such as an atypical use, location, or lot size, warrant an atypical height, except that;

a. Design guidelines for an individual historic district may provide that a new construction with two stories maybe be constructed in a context area with only one-story contributing structures as long as the first story of the new construction has proportions compatible with the contributing structures in the context area, and the second story has similar proportions to the first story; and

b. A new construction shall not be constructed with more than one story in a historic district that is comprised entirely of one-story contributing structures, except as provided for in design guidelines for an individual historic district.

(b) Nothing in the foregoing shall be construed to require or impose a single architectural style in any historic district.
(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 2010-814, § 25, 10-13-2010; Ord. No. 2015-967, § 29, 10-7-2015)

Sec. 33-243. Same—Relocation of landmark, protected landmark, or contributing structure.

(a) The HAHC shall issue a certificate of appropriateness for the relocation of any landmark, protected landmark, or contributing structure only upon finding that the application satisfies one or more of the following criteria:

(1) For a landmark or protected landmark that is not located in a historic district, the structure:

a. Has architectural or historical value independent of its physical location that will not be diminished by relocation;

b. Can be moved without significant damage to its physical integrity; and

c. Will be relocated to an area that is compatible with the historical and architectural character of the landmark or protected landmark.

(2) For a contributing structure located in a historic district that is being located

within the same historic district, the relocation must also meet the following criteria:

a. The structure can be relocated without significantly diminishing the integrity of the historic district in which it is located;

b. The structure can be moved without significant damage to its physical integrity;

c. The structure will be located to an area that is compatible with and retains the distinguishing qualities and historical and architectural character of the contributing structure;

d. There are compelling circumstances justifying the relocation of the structure; and

e. The distance from the property line to the front and side walls, porches, and exterior features of the structure on the new location shall be compatible with the distance from the property line of similar elements of existing contributing structures in the context area of the new location.

(3) For contributing structures being relocated outside of the historic district, in addition to the criteria of item (2) of this section, the applicant must also establish that the relocation is necessary to prevent an unreasonable economic hardship pursuant to the criteria of section 33-247(c) of this Code.

(4) The relocation is necessary to protect the landmark, protected landmark, or contributing structure from demolition resulting from a public improvement project;

(b) Alternatively, the HAHC shall issue a certificate of appropriateness for relocation if relocation of the landmark, protected landmark, or contributing structure has been identified as an alternative to demolition pursuant to section 33-247(f) of this Code.

(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 05-969, § 15, 8-17-05; Ord. No. 2010-814, § 25, 10-13-2010; Ord. No. 2015-967, § 30, 10-7-2015)

Sec. 33-244. Same—Relocation of noncontributing structure.

The HAHC shall issue a certificate of appropriateness for the relocation of a noncontributing structure within or into an historic district upon finding that the application satisfies the criteria in section 33-242 of this Code as if it were new construction.

(Ord. No. 95-228, § 2, 3-1-95)

Sec. 33-245. Same—Relocation of a building, structure or object on archaeological site.

The HAHC shall issue a certificate of appropriateness for the relocation of a building, structure or object within, into or out of an archaeological site upon finding that the application satisfies the following criteria:

(1) The relocation will not destabilize any archaeological resources within or on the archaeological site; and

(2) The relocation will comply with the requirements of section 33-246 of this Code.

(Ord. No. 95-228, § 2, 3-1-95)

Sec. 33-246. Same—Excavation.

(a) The HAHC shall issue a certificate of appropriateness for the excavation of an archaeological site that does not propose to disturb, modify, remove, or destroy archaeological resources upon finding that the application meets the following criteria:

(1) The excavation must be monitored by a professional archaeologist, and conducted so as to protect and preserve archaeological resources affected by, or adjacent to, the excavation; and

(2) The applicant must commit to make reasonable efforts to mitigate and stabilize archaeological resources if they are disturbed.

(b) For a certificate of appropriateness for the excavation of an archaeological site that proposes to disturb, modify, remove, or destroy archaeological resources, the applicant shall provide a scope of work prepared by a professional archaeologist that includes the archaeological significance of the site and the methodology utilized for the excavation, that demonstrates that the site will not be adversely affected by the proposed excavation.

(c) An application under this section shall include a cultural resources review prepared by a professional archaeologist that includes an inventory of the archaeological resources within a one-mile radius of the archaeological site, as well as any surveys, evidence of test excavations, mitigation measures that will be taken, and a curation plan describing how and where artifacts and archaeological resources and data will be stored.
(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 2015-967, § 31, 10-7-2015)

Sec. 33-247. Same—Demolition of landmark, protected landmark or contributing structure, or within archaeological site.

(a) The issuance of a certificate of appropriateness for the demolition of a landmark, a protected landmark, or a contributing structure, or for demolition of a building, structure or object on or in an archaeological site shall be granted only if:

(1) The building, structure, or object has seriously deteriorated to an unusable state and is beyond reasonable repair; and

(2) The HAHC finds, based on the preponderance of credible evidence presented by the applicant, the existence of an unreasonable economic hardship under subsection (c) of this section or the establishment of an unusual and compelling circumstance pursuant to subsection (d) of this section.

(b) An application for a certificate of appropriateness for demolition shall contain the following information:

(1) Photographs and other documented evidence detailing the deteriorated state of the property and the inability to reasonably repair the property;

(2) A certified appraisal of the value of the property conducted by a certified real estate appraiser that takes into account that the property is a landmark, protected landmark or contributing structure in a historic district as well as the two most recent assessments of the value of the property unless the property is exempt from local property taxes;

(3) All appraisals obtained by the owner in connection with the acquisition, purchase, donation, or financing of the property, or during the ownership of the property;

(4) All listings for the sale or lease of the property by the owner within the last year, and a statement by the owner of any bids and offers received and counteroffers given on the property;

(5) Evidence of any consideration by the owner of uses and adaptive reuses of the property;

(6) Itemized and detailed rehabilitation cost estimates for the identified uses or reuses, including the basis of the cost estimates;

(7) Any financial statements showing revenue and expenses incurred for the property;

(8) Complete architectural plans and drawings of the intended future use of the property, including new construction, if applicable;

(9) Plans to salvage, recycle, or reuse building materials if a certificate of appropriateness is granted;

(10) An applicant who is a nonprofit organization shall provide the following additional information:

a. A comparison of the cost of performance of the mission or func-

tion of the nonprofit organization in the existing building and in a new building;

b. The impact of the reuse of the existing building on the organization's program, function or mission;

c. The additional cost, if any, attributable to the building of performing the nonprofit organization's function within the context of costs incurred by comparable organizations, particularly in the Houston area;

d. Grants received, applied for or available to maintain or improve the property; and

e. The nonprofit organization's budget for the current and immediately past fiscal years.

(11) Any additional information the director determines is reasonably necessary to the review the application.

(c) Determination of an unreasonable economic hardship shall be based upon the following criteria:

(1) That the property is incapable of earning a reasonable return, regardless of whether the return is the most profitable return, including without limitation, regardless of whether the costs of maintenance or improvement of the property exceed its fair market value;

(2) That the owner has demonstrated that the property cannot be adapted for any other use, whether by the current owner, by a purchaser or by a lessee, that would result in a reasonable return;

(3) That the owner has demonstrated reasonable efforts to find a purchaser or lessee interested in acquiring the property and preserving it, and that those efforts have failed; and

(4) If the applicant is a nonprofit organization, determination of an unreasonable economic hardship shall instead be based upon whether the denial of a certificate of appropriateness financially prevents or seriously interferes with carrying out the mission, purpose, or function of the nonprofit corporation.

(d) Determination of the existence of an unusual or compelling circumstance shall be based upon the following criteria:

(1) That current information does not support the historic or archaeological significance of the building, structure or object or its importance to the integrity of an historic district, if applicable;

(2) Whether there are definite plans for reuse of the property if the proposed demolition is carried out and what effect such plans have on the architectural, cultural, historical or archaeological character of the context area; and

(3) Whether reasonable measures can be taken to save the building, structure or object from further deterioration, collapse, arson, vandalism or neglect.

(e) If the HAHC denies an application for a certificate of appropriateness for demolition, the director and the applicant shall have 90 days for which to explore alternatives to demolition. The applicant may not appeal the decision of the HAHC during this period. It shall be the duty of an applicant for a certificate of appropriateness for demolition to participate in good faith in a diligent effort to identify alternatives to demolition. The HAHC, the director and the applicant may consult with recognized historic preservation organizations and other civic groups, public agencies and interested citizens to determine the feasibility of:

(1) Public or other acquisition of the property, structure, building or object;

(2) Relocating one or more of the structures or features of the property if to do so would preserve its historic or architectural value and that the property meets the criteria for relocation in section 33-243 of this Code; or

(3) Any other reasonable means of preserving the property, structure, building or object's historic or architectural value.

(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 05-969, § 16, 8-17-05; Ord. No. 2010-814, §§ 5, 26, 10-13-2010; Ord. No. 2015-967, § 32, 10-7-2015)

Sec. 33-248. Reserved.

Editor's note—Ord. No. 2015-967, § 33, adopted October 7, 2015, repealed § 33-248 in its entirety. Former section pertained to Same—Demolition of noncontributing structure and derived from Ord. No. 95-228, § 2, 3-1-95; Ord. No. 2010-814, § 5, 10-13-2010.

Sec. 33-249. Reserved.

Editor's note—Ord. No. 2015-967, § 34, adopted October 7, 2015, repealed § 33-249 in its entirety. Former section pertained to Same—Mandatory repair and derived from Ord. No. 95-228, § 2, 3-1-95; Ord. No. 05-969, § 17, 8-17-05; Ord. No. 2010-814, § 5, 10-13-2010.

Sec. 33-250. Ninety-day waiver certificate.

(a) The director shall not issue a 90-day waiver certificate for any protected landmark or for any property located within the OSWPHD.

(b) The director shall not issue a 90-day waiver certificate for any property located within any historic district other than a place of worship.

(c) Only for landmarks and archaeological sites located outside of historic districts, and places of worship within an historic district, if for any reason a certificate of appropriateness has not been issued on or before the ninetieth day following the scheduled submittal deadline at which a complete application for a certificate of appropriateness was received by the director, then the applicant, upon request to the director, shall be entitled to the immediate issuance of a 90-day waiver certificate, which shall for all purposes be the equivalent of a certificate of appropriateness.

(d) Before the expiration of the 90 days, the applicant shall consult with department staff to explore alternatives to the actions proposed by the applicant to mitigate the reasons for which the certificate was denied. Notwithstanding the foregoing, any landmark or architectural site for which a 90-day waiver certificate is granted pursuant to the provisions of this section shall not be eligible for any tax exemptions or other financial benefit authorized by the city council for the property based on its designation pursuant to this article.

(e) An application for a certificate of appropriateness may be filed before, at the same time as or after the filing of an application for a building permit, but the 90-day period provided for in this section shall not begin until a completed application for a certificate of appropriateness is filed with the director. An applicant for a building permit may request the building official to review and process the application for a building permit during the 90-day period provided for in this section, but no building permit shall be issued until the applicant for the building permit presents a certificate of appropriateness or a 90-day waiver certificate issued pursuant to this section.

(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 04-1015, § 29, 9-27-04; Ord. No. 05-969, § 18, 8-17-05; Ord. No. 07-855, § 7, 8-1-07; Ord. No. 09-191, § 7, 3-4-09; Ord. No. 2010-814, §§ 5, 27, 10-13-2010; Ord. No. 2015-967, § 35, 10-7-2015)

Sec. 33-251. Emergency action, securing dangerous buildings; mandatory repair.

(a) Nothing in this division shall limit the ability of the city to demolish, to order the demolition of, or to order any other action with respect to, any building, structure or object that the building standards official, as that term is defined in article IX of chapter 10 of this Code, determines to be an imminent danger to the health, life or safety of any person. No certificate of appropriateness shall be required for any action required by the city pursuant to division 7 of article IX of chapter 10 of this Code, or the securing of a building required by the city pursuant to article IX of chapter 10 of this Code.

(b) The building standards official shall not issue an order for, authorize, or set a hearing before the hearing officer or the building and standards commission for, the demolition of a building, structure, or site for which a certificate

of appropriateness is required by this article without first obtaining a certificate of appropriateness from the HAHC.

(c) The director shall issue a certificate of appropriateness for mandatory repair of a landmark, protected landmark, or of a building, structure or object within an historic district or archaeological site upon application and review of the order or citation requiring the mandatory repair if the director finds that the proposed mandatory repair is necessary to comply with the order or citation and will not result in a change in the architectural, historical, archaeological or cultural character of the landmark, protected landmark, or of the building, structure or object in the historic district or archaeological site that existed prior to the issuance of the order or citation. The director shall consider the criteria in section 33-241 in reviewing the application and making the findings required by this section.

(d) If the director does not issue a certificate of appropriateness for mandatory repair within three working days following receipt of the application or a later date mutually agreeable to the applicant and the director, or if the director denies the application, the application shall be submitted to the HAHC for consideration as if it were an application for a certificate of appropriateness for alteration, rehabilitation, restoration or construction pursuant to section 33-241 of this Code.
(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 2015-967, § 36, 10-7-2015)

Sec. 33-252. Conditions.

In granting any certificate of appropriateness, if the HAHC has reason to believe that the activity for which the certificate of appropriateness is required may result in the disturbance of any archaeological or paleontological resource, the HAHC may require, as a condition of the certificate of appropriateness, that the applicant submit a construction plan demonstrating actions that the applicant will undertake to mitigate the disturbance and loss of archaeological or paleontological resources.
(Ord. No. 95-228, § 2, 3-1-95)

Sec. 33-253. Appeal.

(a) The Historic Preservation Appeals Board ("HPAB") is hereby created. The HPAB shall consist of 5 members and shall consist of two former members of the planning commission, two former members of the HAHC, and one citizen representative that has not served on either commission. Each member shall have extraordinary knowledge and experience in the archaeological, architectural, cultural, social, economic, ethnic or political history of the city, and must have a known and demonstrated interest, competence, or knowledge in historic preservation within the city. Members of the HPAB shall be appointed by the mayor, subject to confirmation by the city council. Each member shall serve for a term of two years and shall hold over until the member's successor is appointed. A member may be appointed to serve consecutive terms. The director, or in his absence or inability to act, a deputy director or assistant director of the department shall serve as a non-voting, ex officio member and as executive secretary to the HPAB. Three members of the HPAB shall constitute a quorum; however, in the event of vacancies on the HPAB, a majority of the members of the HPAB shall constitute a quorum. The HPAB shall elect its own chair and vice-chair. The mayor shall assign a staff member to serve as a liaison between the HPAB and the mayor's office. The HPAB shall adopt rules, procedures, and schedules for meetings as are necessary or convenient to accomplish the purposes of this article, and shall meet as needed when notified by the director of an appeal from a decision of the HAHC.

(b) An applicant aggrieved by a decision of the HAHC with respect to any certificate of appropriateness may appeal to the HPAB by filing a written notice of appeal, stating the grounds for the appeal, with the director within ten days following the date the HAHC renders its decision, or in the case of an application for a certificate of appropriateness for demolition, the notice of appeal may be filed with the director not earlier than 90 days after the denial of a certificate of appropriateness by the HAHC as provided for in section 33-247(f) of this Code and not later than 120 days after the denial by

HAHC. The director shall notify the members of the HPAB of the receipt of a notice of appeal and shall schedule a meeting of the HPAB to consider the appeal.

(c) The HPAB shall consider the appeal within 45 days after a notice of appeal is filed with the director. The HPAB shall consider the application, the findings of the HAHC, written comments from the public, and any evidence presented at the meeting at which the appeal is considered. The HPAB shall reverse or affirm the decision of the HAHC based upon the criteria applicable to the certificate of appropriateness. If the HPAB does not make a decision on the appeal within 45 days after a notice of appeal is filed with the director, the decision of the HAHC with respect to the application for the certificate of appropriateness shall be deemed affirmed.

(d) The director shall provide the applicant with notice of the time and place of the meeting at which each appeal will be considered by mail no less than ten days before the date of the meeting.

(e) An applicant aggrieved by a decision of the HPAB may appeal to the city council. The city council shall consider the appeal at its first regularly scheduled meeting for which the required notice can be given. The city council shall consider the appeal under the provisions of Rule 12 of section 2-2 of this Code. At the conclusion of the city council's review of the matter, the city council shall reverse or affirm the decision of the HPAB. The decision of the city council shall be final and exhaust the applicant's administrative remedies.
(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 2010-814, §§ 5, 27.5, 28, 10-13-2010; Ord. No. 2015-967, § 37, 10-7-2015)

Sec. 33-254. Demolition by neglect.

(a) The owner of a contributing structure located within an historic district or of a protected landmark shall not permit the contributing structure or protected landmark to fall into a serious state of disrepair so as to result in the deterioration of any exterior architectural feature. This section applies to a structure regardless of whether it is occupied or vacant. An owner shall prevent or repair the following when necessary:

(1) A deteriorated or inadequate foundation;

(2) Defective or deteriorated floor supports or floor supports that are insufficient to carry the loads imposed with safety;

(3) Ceilings, roofs, ceiling or roof supports, or other horizontal members which sag, split, or buckle due to defect or deterioration, or are insufficient to support the loads imposed with safety;

(4) Fireplaces and chimneys which bulge, or settle due to defect or deterioration, or are of insufficient size or strength to carry the loads imposed with safety;

(5) Deteriorated, crumbling, or loose exterior stucco, mortar, or siding;

(6) Leaks and other conditions that allow the penetration of water into the structure; and

(7) Damage caused by termites and other pests that contribute to the deterioration of the structure.

(b) The director shall investigate complaints regarding deteriorated or poorly maintained contributing structures and may refer complaints to the appropriate city department for investigation. If needed, the director will notify the property owner of the findings of any investigation and repairs required to comply with this article. If repairs are required, the property owner must develop a plan acceptable to the director to remedy the contributing structure or protected landmark within a specified amount of time, including plans to obtain any required certificates of appropriateness and other city permits. Failure to prepare a plan acceptable to the director or to comply with the provisions of an approved plan shall be a violation of this article.
(Ord. No. 05-969, § 19, 8-17-05; Ord. No. 07-855, § 8, 8-1-07; Ord. No. 2010-814, § 29, 10-13-2010; Ord. Noo. 2015-967, § 39, 10-7-2010; Ord. No. 2015-967, § 38, 10-7-2015)

Sec. 33-255. Validity.

A certificate of appropriateness shall be valid for two years from its effective date.
(Ord. No. 95-228, § 2, 3-1-95; Ord. No. 05-969, § 19, 8-17-05; Ord. No. 2015-967, § 39, 10-7-2015)
Note—Formerly, § 33-254.

Sec. 33-256. Amendment.

A certificate of appropriateness may be amended, modified or extended only in accordance with the procedures and criteria established for its original approval.
(Ord. No. 05-969, § 19, 8-17-05)
Note—Formerly, § 33-255.

Secs. 33-256—33-265. Reserved.

DIVISION 5. DESIGN GUIDELINES*

Sec. 33-266. Application.

(a) The applicants for the designation of an historic district may prepare and submit proposed design guidelines as part of the application. If the applicants do not submit proposed design guidelines, the director shall prepare design guidelines for consideration by city council within one year after the creation of an historic district.

(b) The HAHC or city council may direct the director to prepare design guidelines for one or more historic districts for which no design guidelines have been adopted in accordance with subsection (a) of this section if the HAHC or city council finds that the adoption of design guidelines would benefit the review of certificates of appropriateness for the historic district. The director shall prepare design guidelines for the historic district in accordance with the following:

(1) The director shall conduct one or more public meetings within or near the historic districts for which design guidelines are proposed to enable the public to provide input on the proposed guidelines;

(2) The director shall mail notice to all property owners within the historic districts for which design guidelines are proposed not less than 15 days before each public meeting; and

(3) The director shall present design guidelines to the HAHC within one year of the request for design guidelines, or if the director is unable to do so, the director shall report on the progress of the design guidelines to the HAHC and include a timeline for completion of the design guidelines.

(c) Reserved.
(Ord. No. 2015-967, § 40, 10-7-2015; Ord. No. 2016-848, § 2, 11-9-2016)

Sec. 33-267. Requirements.

(a) The purpose of design guidelines is to provide guidance on how to interpret the criteria of this article within individual historic districts.

(b) The proposed design guidelines shall contain:

(1) A map and description of the proposed historic district, including boundaries; photographs of buildings in the district; an inventory of the age, setting, character and architectural, cultural or historical significance of structures in the district; and objectives to be achieved in the historic district;

(2) A statement of the architectural, cultural or historical significance of the proposed historic district and a description of structures and features to be preserved; and

(3) A set of specific standards that illustrate compliance and noncompliance with the criteria for certificates of appropriateness for demolition, new construction, alteration, rehabilitation, restoration and relocation that are tailored to the specific characteristics and features of the district

*__Editor's note—__Ord. No. 2015-967, § 40, adopted October 7, 2015, amended Ch. 33, Art. VII, Div. 5, in its entirety to read as herein set out. Former Division 5 pertained to similar subject matter and derived from Ord. No. 95-228, § 2, 3-1-95; Ord. No. 2010-814, § 30, 10-13-2010.

for which the design guidelines are written. These standards may be stricter than the provisions of this article, and shall not be more lenient except as provided for by this article.

(c) The proposed design guidelines shall not contain any standards for reviewing applications for certificates of appropriateness that allow for activity specifically prohibited by the criteria for certificates of appropriateness in this article, except as provided for by this article. Design guidelines shall not provide for alternative rules and regulations except as provided for in this article.
(Ord. No. 2015-967, § 40, 10-7-2015)

Sec. 33-268. Approval; effect of approval; amendment.

(a) The director shall present the proposed design guidelines for adoption to the HAHC, who shall conduct a public hearing on the adoption of the design guidelines. The director shall mail notice to all property owners within the historic districts to be affected by the design guidelines not less than 15 days before the public hearing before the HAHC. At the public hearing, interested parties may comment in person or in writing on the proposed design guidelines. At the close of the public hearing, the HAHC shall vote to disapprove, defer, or recommend that city council approve the proposed design guidelines in the form presented to the HAHC or as amended by HAHC during the public hearing. The director shall present any recommended design guidelines to city council as soon as is reasonably possible.

(b) The city council shall consider the recommendation of the HAHC and shall vote to approve or disapprove the design guidelines in the form in which they are recommended by the HAHC. If city council disapproves the design guidelines, the director shall revise the design guidelines in accordance with any suggested changes made by city council, and resubmit the design guidelines to HAHC in accordance with the provisions of subsection (a) of this section as soon as is reasonably possible. After approval by city council, the HAHC shall use the criteria within the design guidelines for granting or denying applications for certificates of appropriateness for applicable activities within the boundaries of the historic district.

(c) Amendments to design guidelines that have been approved by city council shall be considered in accordance with the process for the adoption of design guidelines in this section.

(d) A copy of the design guidelines is to be maintained in the office of the city secretary and on the website of the department.
(Ord. No. 2015-967, § 40, 10-7-2015)

Secs. 33-269—33-274. Reserved.

DIVISION 6. OLD SIXTH WARD PROTECTED HISTORIC DISTRICT

Sec. 33-275. Designation of Old Sixth Ward Protected Historic District.

In recognition of the unique historical significance of the Old Sixth Ward area and in furtherance of the project plan and reinvestment zone financing plan of the Old Sixth Ward tax increment reinvestment zone (Reinvestment Zone Number Thirteen, City of Houston, Texas), there is hereby designated an area to be known as the Old Sixth Ward Protected Historic District. The purpose of the designation is to provide additional protection against the irretrievable loss or alteration of the historic structures within the OSWPHD and new construction that is not compatible with the historic structures in the district. The area included in the OSWPHD and the contributing and noncontributing structures in the OSWPHD are shown in Appendix G and Appendix H, respectively, to this chapter. The provisions of section 33-250(c) and (d) of this Code shall not apply to a certificate of appropriateness for any

structure or property within the OSWPHD. The director shall not issue a 90-day waiver certificate for any property located within the OSWPHD.
(Ord. No. 07-855, § 9, 8-1-07; Ord. No. 2010-814, § 31, 10-13-2010)

Sec. 33-276. Approval of design guidelines.

The city council hereby approves design guidelines to be applicable in the Old Sixth Ward Protected Historic District. A copy of the design guidelines is to be maintained in the office of the city secretary and on the website of the department. The HAHC shall refer to the design guidelines in determining whether an application for certificate of appropriateness satisfies the applicable criteria of division 4 of this article and in making the findings required by section 33-240 of this Code.
(Ord. No. 07-855, § 9, 8-1-07)

Sec. 33-277. Amendment of design guidelines.

The HAHC shall conduct a public hearing on amendments to the design guidelines if changes are recommended by the HAHC in any annual report. At the public hearing, interested parties may comment in person or in writing on any recommended amendments to the design guidelines. Following the public hearing, the HAHC may amend the design guidelines.
(Ord. No. 07-855, § 9, 8-1-07)

Secs. 33-278—33-300. Reserved.

ARTICLE VIII. SUPER NEIGHBORHOOD INITIATIVE

DIVISION 1. GENERALLY

Sec. 33-301. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, unless the context clearly indicates a different meaning:

Alliance means the super neighborhood alliance.

CIP means the city's annual capital improvement program.

Representative means a super neighborhood council's president, chair or other council appointee assigned to serve on the alliance.

SNAP means super neighborhood action plan, an annual action plan or update of priority community projects proposed by a super neighborhood council.

Stakeholders means the residents, civic clubs, non-profit associations, community development corporations, business associations, school districts or systems, faith-based institutions, and other institutional organizations located or operating in a super neighborhood.

Super neighborhood means a grouping of contiguous neighborhoods based on a geographic framework established by the director and shown on a super neighborhood map maintained in the office of the director.

Super neighborhood council means a representative group of stakeholders from a super neighborhood that have joined together for the purposes set forth in this article and have been formally recognized by the mayor.
(Ord. No. 03-1025, § 2, 11-5-03)

Sec. 33-302. Super neighborhood initiative.

The super neighborhood initiative is hereby recognized as a program within the department.
(Ord. No. 03-1025, § 2, 11-5-03)

Sec. 33-303. Super neighborhoods established.

The 88 super neighborhoods identified on the map or maps created by the director and placed on file in the director's office on or before November 5, 2003, are hereby established as the initial super neighborhoods of the city for purposes of this article. The director may create additional super neighborhoods and adjust the boundaries of a super neighborhood from time to time to reflect changes in physical characteristics, community demographics or changes in the corporate

limits of the city. The official list of super neighborhoods and maps of their boundaries shall continue to be maintained by the director.
(Ord. No. 03-1025, § 2, 11-5-03)

Sec. 33-304. Assistance by city departments and employees.

The mayor shall appoint city employees to serve as the city's general liaison to each recognized super neighborhood council as appropriate and necessary, and as the budget allows.
(Ord. No. 03-1025, § 2, 11-5-03)

Secs. 33-305—33-310. Reserved.

DIVISION 2. SUPER NEIGHBORHOOD COUNCILS

Sec. 33-311. Formation of super neighborhood councils.

(a) The super neighborhood councils previously established and recognized by the mayor on or before November 5, 2003, are hereby recognized for purposes of this article as super neighborhood councils.

(b) Additional super neighborhood councils may be recognized by the mayor upon determination that the requestors have satisfied the following:

(1) Identification of stakeholders within the super neighborhood and demonstration of efforts to invite them to participate in the formation of the proposed council;

(2) Demonstration that no stakeholder was denied representative participation on the proposed super neighborhood council;

(3) Creation of an organizational structure that will provide representative participation on the council by all stakeholders desiring to participate; and

(4) Adoption of written by-laws that address the manner in which the business of the proposed council is to be conducted and the procedures for election of officers.

The director shall promulgate written guidelines that further describe how super neighborhood stakeholders can satisfy the criteria listed above. In addition, the director shall recommend to the mayor whether stakeholders of a proposed super neighborhood council have satisfied the criteria needed to achieve recognition. The mayor shall make the determination regarding recognition.

(c) The director shall maintain a list of recognized super neighborhood councils for public inspection.
(Ord. No. 03-1025, § 2, 11-5-03)

Sec. 33-312. Objectives and duties of a super neighborhood council.

(a) The objective of a super neighborhood council is to serve as a forum where stakeholders may identify and discuss broad-based issues that affect their super neighborhood, develop a consensus on community priorities for action, and formulate a plan to address the issues and priorities.

(b) A super neighborhood council may undertake various activities, including but not limited to the following:

(1) Development of a written SNAP for review and consideration by appropriate city departments;

(2) Assisting the district council member in the scheduling and conducting of CIP public hearings;

(3) Designation of a representative to serve on the alliance; and

(4) Submission of the SNAP to the alliance for inclusion in the alliance's annual report to the mayor and city council.
(Ord. No. 03-1025, § 2, 11-5-03)

Sec. 33-313. Compensation of members; conflicts of interest.

Members of a super neighborhood council shall serve without compensation. Each member of a council shall abstain from voting upon matters in which there is or may be a conflict of interest, shall not participate in any activity of a

super neighborhood council or the alliance in which there is or may be a conflict of interest, and shall not participate in any city contract that relates to the duties of the super neighborhood councils or the alliance.
(Ord. No. 03-1025, § 2, 11-5-03; Ord. No. 2025-845, § 3, 10-8-2025)

Secs. 33-314—33-320. Reserved.

DIVISION 3. THE ALLIANCE

Sec. 33-321. The alliance is hereby recognized.

The super neighborhood alliance as heretofore created under auspices of the mayor and the director is hereby recognized as the alliance for purposes of this article. Its membership is composed of the representatives of the super neighborhood councils.
(Ord. No. 03-1025, § 2, 11-5-03)

Sec. 33-322. Purpose.

The alliance is an advisory board to the mayor and city government on community matters and its purpose is to provide a mechanism for bringing together the voices of the individual super neighborhood councils. The alliance may coordinate on issues of citywide significance or otherwise affecting community participation in city decision-making that may have local significance and facilitate the communication of neighborhood priorities to the mayor and city council.
(Ord. No. 03-1025, § 2, 11-5-03)

Sec. 33-323. Objectives and duties of the alliance.

The alliance shall advise and make recommendations to the mayor and city council on the priorities for neighborhood projects from the SNAPs of the super neighborhood councils. The alliance shall prepare and submit a written report to the mayor and city council by March 31st of each year regarding the status of SNAPs during the current CIP year and recommending to the mayor and city council a list of priority projects for the next year's CIP, as such projects are specified and prioritized by each of the recognized super neighborhood councils that participate in the alliance. The mayor and city council shall consider the recommendations of the alliance when making final decisions regarding projects included in the CIP and the city's annual operating budget.
(Ord. No. 03-1025, § 2, 11-5-03)

Sec. 33-324. Meetings.

The alliance shall conduct meetings in accordance with the memorandum of understanding adopted by the alliance in March 2003, a true copy of which has been placed on file in the office of the city secretary. A majority vote of the alliance members present and voting, constituting a quorum, shall establish the recommendations and advice of the alliance.
(Ord. No. 03-1025, § 2, 11-5-03)

Sec. 33-325. Compensation of members; conflicts of interest.

Members of the alliance shall serve without compensation. Each member of the alliance shall abstain from voting upon matters in which there is or may be a conflict of interest, shall not participate in any activity of a super neighborhood council or the alliance in which there is or may be a conflict of interest, and shall not participate in any city contract that relates to the duties of the alliance.
(Ord. No. 03-1025, § 2, 11-5-03; Ord. No. 2025-845, § 4, 10-8-2025)

Secs. 33-326—33-350. Reserved.

ARTICLE IX. MAJOR PLANS

DIVISION 1. IN GENERAL

Sec. 33-351. Definitions.

The following definitions shall apply to this article:

Applicant means any of the following that requests an amendment to a plan pursuant to this article: a property owner or the owner's authorized agent, a governmental entity, a

political subdivision, a transit authority, a local government corporation, or an entity that represents property owners within the entity's boundaries.

Back-of-curb means the lateral line of a roadway measured from the back of the roadway's curb nearest the property line.

Bicycle means a vehicle propelled by human power that has two tandem wheels at least one of which is more than 14 inches in diameter.

Bicycle master plan or *BMP* means the plan, and any amendments thereto, that is adopted by city council to provide for developing and enabling the use of bicycling as a mode of transportation in the city, and enhances bicycle safety.

Committee means the bicycle advisory committee.

Design manual has the meaning ascribed in section 42-1 of this Code.

Director means the director of the planning and development department of the city or the director's designee.

Director of Houston Public Works means the Director of Houston Public Works or the director's designee.

Director of parks and recreation means the director of the department of parks and recreation of the city or the director's designee.

Extraterritorial jurisdiction or *ETJ* has the meaning ascribed in section 42-1 of this Code.

Linear street frontage means the part of a parcel that shares a common property line with a street.

Major thoroughfare and freeway plan or *MTFP* means the plan, and any amendments thereto, that is adopted by city council to preserve and enhance mobility within the city and the city's extraterritorial jurisdiction.

METRO means the Metropolitan Transit Authority of Harris County.

Pedestrian realm has the meaning ascribed in section 42-1 of this Code.

Roadway has the meaning ascribed in section 42-1 of this Code.

Street means the area within the boundary of an existing or proposed public right-of-way that provides access to adjacent property.

Street segment means the street between two intersecting streets, or between an intersecting street and the termination of the roadway at a well-defined physical barrier.

Super neighborhood council has the meaning ascribed in section 33-301 of this Code.

Transit corridor street means a major thoroughfare designated on the MTFP that METRO has proposed or maintains as a route for a guided rapid transit or fixed guideway transit system.

Transit station means a passenger loading or unloading facility of a route for a guided rapid transit or fixed guideway transit system owned or operated by METRO along a transit corridor street. The term does not include the stops or stations of the local or park and ride bus systems.

Walking distance means the distance identified by this article, as applicable, from the edge of a transit station platform along a continuous path measured along the centerline of a street or sidewalk easement, as the term is defined in section 40-551 of this Code.

(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017; Ord. No. 2018-11, § 24, 1-10-2018; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Secs. 33-352—33-370. Reserved.

DIVISION 2. MAJOR THOROUGHFARE AND FREEWAY PLAN

Sec. 33-371. Scope.

The city shall adopt and maintain a major thoroughfare and freeway plan to preserve and enhance mobility within the city and the city's extraterritorial jurisdiction. The MTFP must be consistent with the general plan described in

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article III of this chapter, the bicycle master plan, and other applicable plans, policies, and regulations.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017)

Sec. 33-372. Duties and responsibilities of the director.

(a) The director shall make the MTFP adopted by city council and any policies adopted by the commission available to the public on the department website.

(b) The director shall establish a process for the public to submit written comments to the department regarding the MTFP. The director shall submit the comments to the commission during the annual MTFP process.

(c) The director shall, in collaboration with the Director of Houston Public Works, annually prepare and submit to the commission a proposed MTFP. The director, in developing the MTFP, shall consider all probable modes of transportation within the streets, including but not limited to automobile, transit, bicycle, and pedestrian traffic.

(d) For an application requesting an amendment to the MTFP, the director shall present to the commission a recommendation made in collaboration with the Director of Houston Public Works and any of the following with jurisdiction over the streets included in the application: governmental entities, political subdivisions, transit authorities, or local government corporations.

(e) The director shall, in accordance with section 33-377 of this Code, ensure that notification requirements have been met prior to commission consideration of a MTFP.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 33-373. Duties and responsibilities of the Director of Houston Public Works.

The Director of Houston Public Works shall collaborate with the director in the preparation of an annual MTFP and, when applicable, review the proposed plan and make recommendations to the director on a MTFP amendment prior to commission consideration.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 33-374. Duties and responsibilities of the commission.

(a) The commission shall establish an annual schedule to consider amendments to the MTFP related to deleting, realigning, or reclassifying a street designated on the MTFP or adding a street to the MTFP. The commission is authorized to adopt policies related to the administration, implementation, and interpretation of the MTFP.

(b) Each year, on or before the last day of September, the commission shall consider the annual MTFP prepared by the director and any applications to amend the MTFP.

(c) The commission shall hold at least one public hearing on the MTFP and any proposed amendment to the MTFP. Upon the close of the public hearing, the commission shall consider whether the MTFP will further the objectives stated in section 33-371 of this Code. The commission shall vote to recommend the MTFP to city council, refer the MTFP back to the director for further evaluation, defer consideration of the MTFP to a future meeting, or disapprove the MTFP. A MTFP approved by the commission under this section shall not be effective until approved by city council.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017)

Sec. 33-375. Duties and responsibilities of city council.

City council is authorized to consider the MTFP as recommended by the commission and each year shall vote to approve the recommendation of the commission, disapprove the recommendation of the commission, or refer the MTFP back to the commission for further consideration.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017)

Sec. 33-376. Application to amend the MTFP.

(a) An applicant may submit a written application to the department to delete, realign, or reclassify a street designated on the MTFP or to

add a street to the MTFP. An application for an amendment shall include a completed application form in the form prescribed by the director and be accompanied by the non-refundable application fee set forth for this provision in the city fee schedule.

(b) Prior to filing an application with the department, the prospective applicant shall meet with the director. The director shall conduct a preliminary review of the application during such meeting and advise the prospective applicant on possible alternatives, if any, related to the MTFP.

(c) If, following a pre-submittal meeting, an applicant submits an application, the director shall review the application for completeness. If the director determines that the application is complete, the director shall present the amendment to the commission for consideration at the next meeting at which the commission is scheduled to consider amendments to the MTFP. If the director determines that an application is not complete, the application shall be returned to the applicant. An incomplete application that is not corrected and resubmitted within the time period prescribed by the director or by formal commission policy shall not be considered by the commission.

(d) If the commission votes to disapprove an application to amend the MTFP filed under this section or if the commission approves an alternative street alignment, any street included in the application is ineligible for inclusion in a new application for a period of two years from the date of the approval or disapproval by the commission.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017)

Sec. 33-377. Notification requirements.

(a) The director shall give notice by mail to property owners identified on the appraisal district records whose properties are adjacent to the projected street alignments in the MTFP application or related alternative street alignments. Notice shall be given no later than 20 days before the date of the public hearing required by section 33-374(c) of this Code. The applicant shall be assessed a fee for notice given under this section.

(b) Prior to the public hearing, notice by electronic or regular mail shall be given to:

(1) Each district council member in whose district any portion of the proposed amendment to the MTFP or related alternative street alignment is located; and

(2) Each neighborhood association with defined boundaries registered with the department of neighborhoods in which any portion of the proposed amendment to the MTFP or related alternative street alignment is located.

(c) Notice of the public hearing shall be given no later than 20 days before the public hearing by publication.

(d) The notification provisions of subsection (a) shall not apply to an application to amend the MTFP filed by the city, a governmental entity, or a transit authority, if the proposed amendment was previously presented to the general public at no fewer than two public meetings held with civic clubs, super neighborhood councils, or other groups representing property owners within the area.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017)

Secs. 33-378—33-390. Reserved.

DIVISION 3. BICYCLE MASTER PLAN

Subdivision A. In General

Sec. 33-391. Scope.

The city shall adopt and maintain a bicycle master plan for supporting bicycling as a mode of transportation and enhancing bicycle safety in the city. The BMP must be consistent with the general plan described in article III of this chapter and other applicable plans, policies, and regulations.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017)

Sec. 33-392. Duties and responsibilities of the director.

(a) The director shall develop and oversee the maintenance and coordination of the BMP and make the BMP adopted by city council and any policies adopted by the commission available to the public on the department website.

(b) The director shall establish a process for the public to submit written comments to the department regarding the BMP. The director shall review and consider the comments received and provide a summary of the comments to the commission prior to any public hearing and the biennial review of the BMP required in section 33-394 of this Code.

(c) The director shall present to the commission a recommendation made in collaboration with city departments and any of the following with jurisdiction related to streets or property included within the BMP: governmental entities, political subdivisions, transit authorities, or local government corporations.

(d) Following the adoption of the BMP by city council, the director shall coordinate with city departments and any of the following with jurisdiction related to the streets or property included within the BMP: governmental entities, political subdivisions, transit authorities, or local government corporations to implement the BMP.

(e) The director shall document and report to the commission concerning the implementation of the BMP biennially.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017)

Sec. 33-393. Duties and responsibilities of city departments and offices.

The directors of city departments, including but not limited to Houston Public Works, the parks and recreation department, the Houston Health Department, the police department, and the fire department, shall each designate a liaison to coordinate with the director regarding implementation and maintenance of the BMP and, when applicable, review and make recommendations to the director on proposed amendments to the BMP prior to commission consideration.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017; Ord. No. 2018-11, § 25, 1-10-2018)

Sec. 33-394. Duties and responsibilities of the commission.

(a) The commission shall hold at least one public hearing on the BMP. Upon the close of the public hearing, the commission shall consider whether the BMP will further the objectives outlined in section 33-391 of this Code. The commission shall vote to recommend the adoption of the BMP to city council, refer the BMP back to the director for further evaluation, defer consideration of the BMP to a future meeting, or disapprove the BMP. A BMP approved by the commission under this section shall not be effective until approved by city council.

(b) The commission shall, upon adoption of the BMP by city council, establish a biennial schedule to review and consider the need for amendments to the BMP. Upon completion of the biennial review and following a public hearing, the commission shall report its findings to the mayor and city council.

(c) Following the adoption of the BMP by city council, the commission is authorized to adopt formal policies related to the administration, implementation, and interpretation of the BMP.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017)

Sec. 33-395. Duties and responsibilities of city council.

Upon consideration of the recommendation of the commission and other relevant information, city council shall vote to approve the recommendation of the commission, disapprove the recommendation of the commission, or refer the BMP back to the commission for further consideration.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017)

Secs. 33-396—33-400. Reserved.

Subdivision B. The Bicycle Advisory Committee

Sec. 33-401. Created.

There is hereby created a bicycle advisory committee to advise and make recommendations to the commission and the director on issues related to bicycling in the city including, but not limited to, amendments to the BMP, bicycle safety and education, implementation of the BMP, development of strategies for funding projects related to bicycling, and promoting public participation in bicycling.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017)

Sec. 33-402. Members; chair.

(a) The committee shall consist of twenty voting members and three nonvoting ex officio members.

(b) The voting members shall be individuals who: (1) have knowledge or expertise on issues related to bicycling, bicycle safety and education, plan implementation, funding strategies, public participation, or other subjects relevant to the BMP; (2) are at least 18 years of age; and (3) are residents of or business owners within the city.

(c) The ex officio members shall be:

(1) The director, who shall serve as secretary to the committee.

(2) The Director of Houston Public Works; and

(3) The director of parks and recreation.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 33-403. Qualifications, appointment and terms of members.

(a) The members of the committee, other than the ex officio members, shall be appointed by the mayor and confirmed by city council. The mayor shall designate the committee chair from among the committee members. At the first meeting of the committee, the members shall elect a vice chair who shall perform all duties of the chair when the chair is absent or unable to perform such duties.

(b) Except as modified hereafter in this subsection, all appointments will be for two-year staggered terms. The initial terms of office for members serving in even numbered positions shall expire on January 1, 2018, and on the same date on each second successive year thereafter. The initial terms of office for members serving in odd numbered positions shall expire on January 1, 2019, and on the same date on each second successive year thereafter. Any subsequent appointments or reappointments shall be made by the Mayor in a manner consistent with the appointment and confirmation process prescribed in this section. Each committee member shall continue to act after the end of his or her term until a successor is appointed and confirmed.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017)

Sec. 33-404. Compensation.

The members of the committee, in the performance of their duties as such, shall serve without compensation, provided that any member who is a city employee shall continue to receive his or her regular compensation while serving on the committee.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017)

Sec. 33-405. Quorum.

A majority of the committee members shall constitute a quorum for the transaction of business; however, in the event of a vacancy on the committee, a majority of the remaining members of the committee shall constitute a quorum for the transaction of business.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017)

Sec. 33-406. Committees.

The committee may form sub-committees to assist it in the discharge of its responsibilities. The sub-committees shall make recommendations to the committee and the committee shall make final recommendations to the commission.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017)

Sec. 33-407. Meetings.

(a) The committee shall meet from time to time at the call of the committee chair, provided that the committee shall meet at least once per quarter during a calendar year.

(b) All meetings of the committee shall be conducted in accordance with the Texas Open Meetings Act, as amended.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017)

Sec. 33-408. Rules, regulations and bylaws.

The committee shall adopt administrative procedures applicable to its own governance of the committee, and may designate such times

and places for holding meetings as necessary to accomplish the purposes set out in this subdivision.
(Ord. No. 2017-208, § 3(Exh. A), 3-22-2017)

Secs. 33-409—33-420. Reserved.

DIVISION 4. WALKABLE PLACES PLAN

Sec. 33-421. Scope.

(a) The city shall adopt and maintain a walkable places plan to preserve and enhance the pedestrian-friendly design and development along certain designated streets within the city. The walkable places plan shall include, but is not limited to, the identification and classification of street segments where modifications to plans, programs, policies, and regulations are necessary or available to enable improvements to the pedestrian experience and the built environment along the identified street segment(s) and a corresponding map.

(b) The walkable places plan must be consistent with the general plan described in article II of this chapter, the major thoroughfare and freeway plan, and other related plans, programs, policies, laws, and regulations.
(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 33-422. Administrative responsibilities.

(a) It shall be the responsibility of the planning official to:

(1) Oversee the development, amendment, and maintenance of the walkable places plan in accordance with this division;

(2) Make the WPP available to the public on the department website;

(3) Report annually to the commission concerning the implementation of the WPP;

(4) Review and consider the comments received and provide a summary of the comments to the commission prior to any public hearing on the WPP or with the annual report to the commission;

(5) Present to the commission a recommendation on proposed amendments to the WPP made in collaboration with city departments and entities with an interest in planning and development within the right of way such as governmental entities, political subdivisions, transit authorities, or local government corporations and any other entity as determined by the planning official; and

(6) Coordinate with other entities with an interest in planning and development within the right of way such as city directors, governmental entities, political subdivisions, transit authorities, or local government corporations and any other entity as determined by the planning official.

(b) The planning official is authorized to promulgate rules and procedures for the efficient administration of the walkable places plan and this division.
(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 33-423. Amending the walkable places plan.

(a) An amendment to add, reclassify, or remove a street segment in the walkable places plan shall be made in accordance with the requirements of this division and related policies adopted by the commission, and may only be initiated by:

(1) The planning official on behalf of the city; or

(2) A signed petition, in the form prescribed by the planning official, of property owners representing at least fifty percent of the total linear street frontage along each street segment included in the proposed amendment.

(b) Prior to filing a petition to amend the walkable places plan under subsection (a)(2) of this section, a representative of the petitioners shall meet with the planning official. The planning official shall conduct a preliminary review of the proposed amendment, advise the representative of the amendment process, and may give preliminary comments on the merits of

the proposed amendment or potential alternative amendments. The planning official may also advise the representative of deficiencies that would prevent the petition from moving forward for consideration.

(c) Except as provided in subsection (d) below, the planning official shall hold at least one informational meeting prior to consideration by the commission of an amendment to the walkable places plan to inform the community about the proposed amendment to the WPP and the amendment process, as well as provide an opportunity for public comments on the proposed amendment for the planning official to review and consider prior to making a recommendation on the proposed amendment to the commission. The informational meeting shall be open to the public and held within the vicinity of the street segment under consideration with the proposed amendment, subject to the availability of an appropriate venue. If the planning official determines no appropriate venue can be secured, the planning official may establish an alternate reasonably accessible venue.

(d) Unless requested by the petitioners, an informational meeting shall not be required for a petition by property owners representing 100% of the total linear street frontage along the street segment(s) included in the proposed amendment.

(e) The commission shall hold at least one public hearing on the proposed walkable places plan amendment. Upon the close of the public hearing, the commission shall consider public comments, support and opposition from property owners along the proposed walkable places street, and the recommendation of the planning official and determine whether the proposed WPP furthers the objectives and intent of this division. The commission shall vote to recommend the adoption of the proposed WPP to city council with or without modifications, refer the proposed WPP back to the planning official for further study and evaluation, defer consideration of the proposed WPP to a future meeting, or disapprove the proposed WPP.

(f) The affirmative recommendation of the commission on the walkable places plan will be forwarded to city council.

(g) Following placement of the commission's recommended walkable places plan on an agenda, city council may consider the commission's recommendation and shall vote to approve the recommendation of the commission, defer the recommendation to another meeting, disapprove the recommendation of the commission, refer the WPP back to the administration or commission for further consideration, or deny the amendment.

(h) If the commission votes to disapprove a petition amendment and not forward it to city council, or if the city council votes to deny a petition amendment, any street segment included within the petition amendment will be ineligible for inclusion in a new petition for a period of five years from the date of the final action by commission or city council as applicable. The planning official may allow an ineligible street segment to be included in a new petition upon receipt of new information unknown at the time of the prior petition or substantially changed circumstances that the planning official determines warrants the inclusion of the street segment in a new petition amendment.
(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 33-424. Street classification.

(a) Classification of each street segment in the walkable places plan shall be made in accordance with this section and will reflect existing, planned, or desired conditions along the street segment based upon, but not limited to, community input, adopted plans or policies, pedestrian-related infrastructure projects, best practices and sound public policy, surrounding development context, and the enhancement of pedestrian comfort.

(b) Each street segment in the walkable places plan shall be designated as either a primary walkable places street or a secondary walkable places street; provided, however, a secondary WP street may only be designated if the street segment connects to a primary WP street directly

or indirectly via one or more secondary WP street or designated transit-oriented development street.

(c) The walkable places plan shall establish the minimum pedestrian realm width for each walkable places street from the alternatives listed in the table below.

Measured from:	*Minimum Width*
The property line	0, 5, 10, 15, or 20 feet
The back-of-curb or edge of roadway	10, 12, 15, 18, or 20 feet

(d) The walkable places plan shall establish a minimum unobstructed sidewalk width requirement of six (6) feet, eight (8) feet, or ten (10) feet for each walkable places street.

(e) The walkable places plan establishes the minimum right-of-way width required for each walkable places street. When a WP street is also a major thoroughfare, the minimum right-of-way width established by the major thoroughfare and freeway plan shall prevail.
(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 33-425. Notification requirements.

(a) The planning official shall give notice, by regular mail, to all owners of real property as identified in current appraisal district records for all properties having linear street frontage on the street segment under consideration for addition, reclassification, or removal in the walkable places plan. Notice shall be mailed no later than 30 days before the date of:

(1) An informational meeting required by section 33-423 of this Code; and

(2) The public hearing required by section 33-423 of this Code.

(b) Prior to a meeting where notice is required under subsection (a) of this section, the planning official shall give notice by electronic or regular mail to:

(1) Each district council member in whose district any portion of the proposed amendment to the walkable places plan is located; and

(2) Each neighborhood association with defined boundaries, registered with the department of neighborhoods, in which any portion of the proposed amendment to the walkable places plan is located.

(c) The planning official shall give notice of any informational meeting and public hearing requiring notice in subsection (a) of this section by the placement of at least two notification signs on each street segment of the walkable places plan under consideration by the commission no later than 15 days before date of the meeting or hearing. The planning official is authorized to approve an alternative to the number and location of signs required by this subsection upon determining that the alternative proposal will provide sufficient visibility of the signs and accomplishes the objectives of this section.

(d) The planning official shall publish the current draft of the proposed amendment and corresponding walkable place plan street classification for each street segment on the department website no later than 30 days before an informational meeting or public hearing that requires notice under this section.
(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Secs. 33-426—33-440. Reserved.

DIVISION 5. TRANSIT-ORIENTED DEVELOPMENT PLAN

Sec. 33-441. Purpose and scope.

(a) The city shall adopt and maintain a transit-oriented development plan to preserve and enhance the pedestrian-friendly design and development near transit stations within the city. The transit-oriented development plan shall include, but not be limited to, the identification and classification of each street segment designated as a transit-oriented development street in accordance with this division and a corresponding map.

(b) The transit-oriented development plan must be consistent with the general plan described in article II of this chapter, the major thoroughfare

and freeway plan, the walkable places plan, and other applicable plans, programs, policies, and regulations.

(c) When a street segment on the walkable places plan is eligible for transit-oriented development street designation under this division, the designation and development standards under the WPP shall prevail.
(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 33-442. Administrative responsibilities.

(a) It shall be the responsibility of the planning official to:

(1) Oversee the development, amendment, and maintenance of the transit-oriented development plan in accordance with this division;

(2) Make the transit-oriented development plan available to the public on the department website; and

(3) Coordinate with other entities with an interest in planning and development within the right of way such as city departments, governmental entities, political subdivisions, transit authorities, or local government corporations, and any other entity as determined by the planning official to implement the TODP.

(b) The planning official is authorized to promulgate rules and procedures for the efficient administration of the transit-oriented development plan and this division.
(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 33-443. Amending the transit-oriented development plan.

(a) Except when prohibited by subsection (c) of this section, the planning official is authorized and directed to periodically revise the transit-oriented development plan consistent with the requirements and standards of this division and in collaboration with the city engineer, the traffic engineer, and a representative acting on behalf of METRO.

(b) Prior to voting on a proposed transit-oriented development plan amendment, the commission shall consider relevant public comments, the recommendation of the planning official, and whether the proposed TODP meets requirements and standards of this division. The commission shall vote to adopt the proposed TODP if it meets the requirements and standards of this division, refer the proposed TODP back to the planning official for further study and evaluation, defer consideration of the proposed TODP to a future meeting, or disapprove the proposed TODP.

(c) A "potentially eligible street" under section 33-444 of this Code shall not be added, removed, or reclassified in the transit-oriented development plan until after one year from the date of the last approved TODP amendment that evaluated the street segment, except when:

(1) A transit station is added to or removed from the transit-oriented development plan within one-half mile walking distance from the street segment; or

(2) The planning official determines an error was made in the process to determine the transit-oriented development street designation for a transit station within one-half mile walking distance from to the street segment.
(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 33-444. Process to determine transit-oriented development streets.

(a) The planning official shall identify all street segments within a one-half mile walking distance from an existing or proposed transit station on a designed transit corridor street. Street segments identified in this subsection shall be considered a "potentially eligible street" segment for the purposes of this section.

(b) A potentially eligible street segment that meets one or more of the following criteria is not eligible for designation as a transit-oriented development street:

(1) More than 75% of the linear length of the street segment abuts property in use for

or otherwise restricted to single-family residential use, and the street segment is not a major thoroughfare;

(2) More than 50% of the linear length of the street segment abuts property in use for or otherwise restricted to single-family residential on a lot greater than or equal to 3,500 square feet in area, and the street segment is not a major thoroughfare;

(3) Included in a special minimum lot size or special minimum building line block, or within the boundaries of a special minimum lot size area, as those terms are defined in section 42-1 of this Code;

(4) Grade-separated or limited access roadway;

(5) Included within the central business district, as the term is defined in section 42-1 of this Code;

(6) Frontage road, except where the corresponding freeway is below-grade and covered by an at-grade cap structure; or

(7) Existing roadway does not meet the applicable infrastructure design manual standards for roadway width or have plans approved by the city engineer showing the location of the back-of-curb or edge of roadway after roadway reconstruction.

Following the evaluation conducted by the planning official, any potentially eligible street that is not connected to the corresponding transit station via one or more transit corridor street, transit-oriented development street, walkable places street, or other potentially eligible street that remains eligible for designation as a TOD street shall not be eligible for designation on the transit-oriented development plan.

(c) Except when designated as a primary transit-oriented development street in accordance with section 33-445 of this Code, a potentially eligible street segment that is not excluded for designation following the evaluation in subsection (b) of this section shall be a secondary TOD street.

(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 33-445. Process to determine primary tod streets.

(a) A transit-oriented development street that is within 1,000 feet walking distance from an existing transit station or proposed transit station with a contract for construction approved by METRO is a primary TOD street if the planning official determines the corresponding station is within:

(1) A designated major activity center as defined in section 42-1 of this Code;

(2) A census tract where car ownership is estimated to be 80-percent or less;

(3) A census tract with a high activity population density greater than or equal to 7,200 activity population per square mile as identified by the most recent data published by the Houston-Galveston Area Council;

(4) A census tract with an intersection density greater than or equal to 76 intersections per square mile; or

(5) 1,000 feet walking distance from a college or university with a campus enrollment greater than or equal to 1,000 students.

(b) A transit-oriented development street that is 300 feet or less in length and connects two or more primary TOD streets or primary walkable places streets will be designated as a primary TOD street.

(c) A transit-oriented development street shall not be a primary TOD street if:

(1) The street segment is more than one-quarter mile in length; or

(2) More than 50% of the linear length of the street segment abuts property in use for or otherwise restricted to heavy

manufacturing and industrial or truck terminal, as those terms are defined in section 26-472 of this Code.

(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 33-446. Notification requirements.

(a) The planning official shall give notice, by regular mail, to all owners of real property as identified in current appraisal district records for all properties having linear street frontage on the street segment under consideration for addition, reclassification, or removal as a transit-oriented development street in the transit-oriented development plan. Notice shall be mailed no later than 30 days before the date of the first meeting where the commission considers the TODP amendment as described in section 33-443 of this Code.

(b) Prior to a meeting where notice is required under subsection (a) of this section, the planning official shall give notice by electronic or regular mail to:

(1) Each district council member in whose district any portion of the proposed amendment to the transit-oriented development plan is located; and

(2) Each neighborhood association with defined boundaries, registered with the department of neighborhoods, in which any portion of the proposed amendment to the transit-oriented development plan is located.

(c) The planning official shall publish the current draft of the proposed amendment and corresponding transit-oriented development street classification for each street segment on the department website no later than 30 days before a public hearing that requires notice under this section.

(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Secs. 33-447—33-500. Reserved.

ARTICLE X. HERITAGE DISTRICTS

Sec. 33-501. Definitions.

As used in this article, the following terms shall have the meanings ascribed below unless the context of their usage clearly indicates another meaning:

Civic association means an organization whose membership consists of owners of real property in or the residents of a subdivision located within in a heritage district or proposed heritage district. A civic association includes property owners' associations, homeowners' associations, civic clubs, Super Neighborhoods, and similar neighborhood associations whose membership consists of property owners and residents.

Community-based organization means a public or private non-profit organization that has experience with meeting human, educational, cultural, or public safety needs and is incorporated as a 501(c)(3) organization.

Heritage district means a section of the city that is distinguished from other areas of the city by a unique community identity and history. A heritage district is a recognizable, definable, geographic area that is bordered by public rights-of-way and has ongoing cultural traditions and history that citizens generally recognize.

Intangible cultural heritage means social traditions and practices, rituals, and community events that provide a common identity and social cohesion.

Public right-of-way has the meaning ascribed in section 40-481 of this Code.

(Ord. No. 2021-456, § 2, 6-2-2021)

Sec. 33-502. Purpose of heritage district.

The purpose of a heritage district is to:

(1) Protect and preserve the city's historic and cultural heritage;

(2) Foster civic and cultural pride by protecting character-defining elements within historic neighborhoods;

(3) Highlight the significant achievements and contributions of the community at large; and

(4) Promote neighborhood stability.

(Ord. No. 2021-456, § 2, 6-2-2021)

Sec. 33-503. City council designation.

(a) A heritage district shall be designated by city council at its discretion and upon joint recommendation by the director and the historic preservation officer. The director shall maintain a list of current heritage districts and maps or written descriptions of their boundaries.

(b) Prior to action by the city council, the director or designee and the historic preservation officer shall review each application for designation as a heritage district and make a joint recommendation to city council as to whether or not an application should be approved.

(c) After considering the joint recommendation and the standards for designation, as listed below in section 33-504, city council may, at its discretion, approve or disapprove of the designation of the heritage district as recommended; or refer it back to the director and the historic preservation officer for further consideration or modification or disapprove the proposed designation.

(d) A heritage district may only be designated by city council.

(Ord. No. 2021-456, § 2, 6-2-2021)

Sec. 33-504. Standards for designation.

(a) *Size.* The minimum size for a heritage district is one block. There is no maximum size. A heritage district must consist of land within a contiguous and defined boundary that is bordered by public rights-of-way. The proposed area must share a common history or intangible cultural heritage.

(b) *Elements of preservation.* A heritage district must have one or more streets, bridges, structural and architectural materials, parks, street signage or markers, civic art, statues or monuments that define the character of or contribute to the district's character-defining intangible cultural heritage, unique cultural heritage, or shared history and identity.

(Ord. No. 2021-456, § 2, 6-2-2021)

Sec. 33-505. Application for designation of a heritage district

(a) Application for a heritage district may be filed by either:

(1) A community-based organization that is fiscally sound; in good standing with the state; and has documented work within the proposed heritage district that aligns with the community's values and the city's strategic plan for community improvement;

(2) A community-based entity that demonstrates fiscal capacity and the ability to implement and sustain its vision and strategic plan for the proposed heritage district. A community-based entity may elect to partner with a community-based organization; or

(3) A civic association.

(b) A civic association, community-based organization, or community-based entity may file an application for designation of a heritage district with the department in the form prescribed by the director, and shall be subject to the following rules:

(1) The application shall include:

a. A map indicating the boundaries of the proposed heritage district. The boundaries must comprise a contiguous land area and must exclude non-contiguous tracts of land.

b. A written statement documenting the historical, cultural, social significance, and intangible cultural heritage of the proposed heritage district.

c. Photographic examples of the structural properties in the proposed heritage district that have historical, cultural, social, or architectural materials.

d. A written statement on the strategic vision for the proposed heritage district that includes plans for implementation of projects; ongoing funding and resources to sustain the strategic vision.

e. Documentation of the organization or entity's ability to provide continued financial support and resources for the proposed heritage district.

f. How the strategic vision will impact pedestrian and vehicular mobility, health, safety, and the overall quality of life within the proposed heritage district.

(c) Applications for heritage district designation are available online at www.houstontx.gov/planning or by mail to:

City of Houston Planning and Development
Department
P.O. Box 1562
Houston, TX 77251-1562

(d) The director shall review each application for completeness. Upon determining that the application includes the items required by subsection (b)(1) of this section, the director shall determine that the application is complete.

(e) If the director determines the application is complete, the director shall review the application to determine whether the application meets the criteria set forth in section 33-505(b) and the rules and regulations promulgated under section 33-506. After review and consideration, the director may recommend placement of the request to designate a heritage district on the city council agenda.

(f) The director shall post notice of city council approval to designate a heritage district on the department's website within 30 days.
(Ord. No. 2021-456, § 2, 6-2-2021)

Sec. 33-506. Rules and regulations.

The director is hereby authorized to promulgate rules and regulations consistent with the intent and purposes of the provisions of this article. A copy of all rules and regulations shall be maintained by the department, published on the department's website, and be made available in the office of the city secretary for inspection by the public, and copies shall be made available for purchase consistent with the fees prescribed by law.
(Ord. No. 2021-456, § 2, 6-2-2021)

Secs. 33-507—33-600. Reserved.

ARTICLE XI. CONSERVATION DISTRICTS

Sec. 33-601. General.

(a) It is the purpose and intent of this article to create a tool for residents to initiate the establishment of a recognized conservation district with standards to preserve, maintain, and protect the physical elements of development, and the community character and heritage of neighborhoods having distinctive characteristics and patterns of development. When a conservation district is initiated by the residents, subject to department capacity, specific regulations will be developed by the residents and the department, put to public meetings and hearings for revisions, and considered and adopted by council to protect and strengthen the neighborhood's desirable and unique physical features and design characteristics, to promote new compatible development, and to encourage the harmonious, orderly, and efficient growth and redevelopment of these Houston neighborhoods.

(b) Due to anticipated interest and in order to effectively evaluate the program, department staff will undertake the implementation of the program in the following pilot conservation district areas, where community interest has already been expressed:

(1) Independence Heights,

(2) Freedmen's Town,

(3) Acres Home,

(4) Magnolia Park/Manchester,

(5) Pleasantville, and

(6) Piney Point.

Upon the completion of efforts in these pilot areas, whether that be by the adoption of ordinances establishing conservation districts, or determination that a conservation district cannot be created in accordance with the requirements for such, the director may thereafter recommend amendments to this article.
(Ord. No. 2023-232, § 2(Exh. A), 4-5-2023)

Sec. 33-602. Initiation of conservation districts.

(a) A conservation district may be initiated following the expression of interest by a community with residents, and property- and homeowners support and input, along with discussions with department staff. No formal application or petition is required. Existing historic districts designated by the City of Houston may not be converted to only conservation districts, though the two districts may overlap.

(b) Upon notification to the department of resident and property and homeowner support, one or more of the following criteria may be utilized in considering whether an area should be analyzed for consideration as a conservation district:

(1) Analysis of development applications and any existing restrictive covenants in the area;

(2) Historical studies of the neighborhood and cultural institution;

(3) Analysis of the area confirming consistent and identifiable physical attributes of culture, history, scale and development that can be preserved by protecting or enhancing one or more of those attributes;

(4) Whether the area is of a sufficient size, is compact and contiguous, and reasonable boundary lines can be drawn to the logical edges of the area or subdivision, as may be indicated by a creek, street, subdivision line, utility easement, or other boundary; and

(5) Other data relevant to consideration as determined appropriate by the director.
(Ord. No. 2023-232, § 2(Exh. A), 4-5-2023)

Sec. 33-603. Process for designation of a conservation district.

(a) The department's analysis for a proposed conservation district shall include, at a minimum:

(1) A map indicating the boundaries of the proposed district, which must be contiguous;

(2) A description and photographs of properties in the proposed district;

(3) Reserved.

(4) A statement regarding the reason for creating the proposed district. A list of characteristics identified by those bringing forth the request to be applied to new construction or exterior alterations on existing structures. The director will prepare draft design guidelines appropriate for the proposed district from the list so identified, or as may otherwise be requested or determined appropriate:

a. Building height or number of stories;

b. Building size and massing, the general shape and form of the structure;

c. Lot size, coverage;

d. Front and side building setbacks;

e. Off-street parking;

f. Roof line and pitch;

g. Paving, hardscape covering;

h. General site planning, location of primary and ancillary structures;

i. Architectural style and detailing;

j. Building materials;

k. Alterations to the exterior of existing structures;

l. Garage entrance location;

m. Fences and walls; and

n. Building relocation and demolitions, subject to other provisions in this Code.

(5) Additional information to assist in the evaluation of the application, or as may be requested by the director.

(b) Upon completion of the above-described design guidelines and map of the proposed conservation district boundaries, the director will schedule and conduct at least one public meeting to review the analysis, proposed design guidelines and map boundaries with the community. The director will give notice of each public meeting as described in subsection (e) and complying with state law. As of the date notices are mailed, the director shall cause notice of pending designation to be placed in the city permitting system and on the City of Houston's public access GIS mapping site: https://mycity-.houstontx.gov/houstonmapviewer/.

(c) The director may establish additional rules for the conduct of public meeting(s) and shall hold the public meeting(s) within or near the proposed conservation district, provided that an adequate location is available. At the public meeting(s), the director will present information on the proposed district map and boundaries, the draft design guidelines, and the process for approval.

(d) Draft design guidelines and a detailed map of the proposed conservation district will be displayed to the public as part of the public meetings for community input.

(e) Procedures for consideration of designation as a conservation district:

(1) No more than 60 days after the documents described in subsection (b) are in draft form, the director shall mail a notice to the property and homeowners within the proposed conservation district boundary area. as indicated on the most current appraisal district records, and in the case of properties owned with a land trust, to the owners of the improvements on land trust owned property. The director will also give notice by regular mail or email to all civic associations registered with the city whose boundaries include land in the proposed district. The notice shall contain, at a minimum:

a. The date, time, and location of the public meeting(s) described in subsection (c) of this section;

b. A map of the proposed conservation district boundaries; and

c. Any other information the director determines may be useful to the recipients of the notice.

(2) After closing the public meeting, the director shall send, by regular mail, a response form to the property- and homeowners within the proposed conservation district, as indicated on the most current appraisal district roles, and, in the case of properties owned with a land trust, to the owners of the improvements on land trust owned property. The response form, to be returned by the home or property owner, shall indicate whether they support or do not support the designation of the conservation district. The response form must be delivered to the department as directed on the response form. A minimum of 30 days will be allowed between the date of the notice and the deadline for return to the department.

(3) After the deadline for returning response forms has passed, the director will determine the percentage of owners in support of and owners in opposition to the designation of the proposed conservation district. The signature of one owner is required to indicate support of a property, even if the property is co-owned.

(4) Tracts of publicly owned land will be included in determining the percentage of owners in support or in opposition only if they have been designated as a landmark or protected landmark.

(f) If the director determines that 51% or more of the owners to whom notice was sent, within the proposed conservation district boundar-

ies support the designation, the proposed conservation district may move forward for review and consideration as described below.

(g) If support for the proposed conservation district is below 51%, then the director may either:

(1) Consider modifying the boundaries of the proposed conservation district to a smaller area that meets the minimum support level and the general criteria in section 33-604. The design guidelines will be revised if necessary. The director will mail notice to the owners of all property, as described above, within the original boundaries of the proposed conservation district notifying them of the modified boundaries and the proposal to move forward with the modified boundary, and detailing whether their property is located within the modified boundary or has been removed. The director will hold at least one additional public meeting for further comment and consideration of the boundaries and design guidelines; or

(2) Determine that the proposed conservation district fails and that no further action will be taken. The director will mail notice to the owners of all property, as indicated on the most recent appraisal district records, within the proposed conservation district that the application has failed and that no further action will be taken.

(h) Following a determination that a proposed conservation district as originally drafted or as modified above, has at least 51% support to move forward, the director will prepare a final proposed map and final draft of design guidelines for the proposed conservation district and schedule one or more public hearings before the HAHC. Notice shall be given in accordance with Chapter 211, Texas Local Government Code.

(i) The HAHC will conduct at least one public hearing on each proposed district. Following the closing of the public hearing process, the HAHC may:

(1) Approve the proposed conservation district and design guidelines and forward the item to the mayor for council consideration;

(2) Approve after amending the boundaries or design guidelines in accordance with the provisions of this article, and forward the item to the mayor for council consideration;

(3) Defer the application and continue the public hearing to a later public hearing date; or

(4) Disapprove the application, after which no further action shall be taken.

(j) Once an item for a conservation district has been submitted to the mayor for consideration by council, council will schedule and conduct a public hearing and give notice in accordance with Chapter 211, Texas Local Government Code for each application recommended for designation as a conservation district. A district-specific ordinance for each proposed conservation district, containing the detailed design guidelines shall be made part of the HAHC recommendation and be submitted for consideration by council. Following the public hearing, council may:

(1) Approve the proposed conservation district;

(2) Approve after amending the boundaries or design guidelines in accordance with the provisions of this article;

(3) Defer the application and continue the public hearing to a later public hearing date; or

(4) Disapprove the application, after which no further action shall be taken.

(k) Action to approve a proposed conservation district by HAHC and council will be done in accordance with Chapter 211, Texas Local Government Code.
(Ord. No. 2023-232, § 2(Exh. A), 4-5-2023)

Sec. 33-604. Criteria for designation.

The HAHC and council will each evaluate the proposed conservation district boundaries and design guidelines, and must find that the proposed district meets the following criteria:

(a) Common streetscapes, street patterns, significant community sites, or land use patterns creating an area identity;

(b) Common or generally similar property sizes and uses;

(c) Common pattern of improvements, landscaping, or building setbacks on the properties; and

(d) Common scale or bulk among buildings and structures, roof heights, location of garages, or other building footprint elements

In addition, HAHC and Council must determine that a conservation district meets one of the following criteria:

(a) Whether a proposed district is an area that was planned or developed by or for historically underrepresented or disenfranchised communities;

(b) The value of the area as an aspect of community sentiment or public pride.

(Ord. No. 2023-232, § 2(Exh. A), 4-5-2023)

Sec. 33-605. Restrictions on development pending designation.

In accordance with section 33-603(c), and the placement of notice in the city permitting and public GIS systems as described in section 33-603(b), no application for a subdivision plat of any type, or a building permit for new construction, demolition, or alterations shall be granted until:

(a) The HAHC makes a negative recommendation on a proposed designation,

(b) Council determines not to enact the proposed designation, or

(c) 181 calendar days has elapsed, whichever is less.

(d) Provided, however, that the applications described above may be processed where it is established or clear from the record the landowner has made application for such permit for development prior to the date of the notices being placed in the city permitting and public GIS systems, or

(e) the department determines that the permit is within the parameters of the proposed design guidelines.

If HAHC defers the application at a public meeting once, then subsection (c) shall be extended to 211 calendar days; if HAHC defers two or more times, then subsection (c) shall be extended to the 241 calendar days after the application is deemed complete. If council defers the application or remands the application back to HAHC for reconsideration, 60 days will be added to the number of days of the protected status provided for by this subsection.

(Ord. No. 2023-232, § 2(Exh. A), 4-5-2023)

Sec. 33-606. Effect of designation as conservation district.

(a) Following council approval of a conservation district ordinance for a particular neighborhood, the district-specific ordinance shall control over conflicts with other codes or ordinances, except those for the protection of public health and safety.

(b) Nothing in a district-specific ordinance shall be construed to prevent the following:

(1) Ordinary maintenance, repair or replacement of any exterior feature of structure located in a conservation district which does not involve a structural change or the outward appearance thereof;

(2) Landscaping with plants, trees, or shrubs; or

(3) The partial reconstruction of a structure or exterior architectural feature damaged or destroyed by fire, storm or other disaster.

(Ord. No. 2023-232, § 2(Exh. A), 4-5-2023)

Sec. 33-607. Review of building permits and development applications in conservation district once established.

(a) Conservation district boundaries shall be entered into the city's permitting system to flag them for department review.

(b) The department shall ensure that each conservation district ordinance shall be recorded in Harris County real property records.

(c) Department staff shall review each development application and may administratively review for compliance with the design guidelines in the district-specific ordinance.

(d) Department staff may request the advice of an HAHC commissioner, or submit an application to the HAHC for review and comment in particular cases where additional expertise is required. Such review shall be completed in no more than 60 days, and these items may not be deferred by HAHC except with the consent of the applicant or owner.
(Ord. No. 2023-232, § 2(Exh. A), 4-5-2023)

Sec. 33-608. Amendment or removal of conservation district boundaries or regulations.

To amend or remove the boundaries or design guidelines for a conservation district, the process is the same as for its establishment.
(Ord. No. 2023-232, § 2(Exh. A), 4-5-2023)

Sec. 33-609. Penalty for violation.

Any person who intentionally, knowingly, recklessly, or with criminal negligence violates any provision of this article shall be deemed guilty of a misdemeanor and, upon conviction, shall be fined as provided for in section 1-6 of this Code.
(Ord. No. 2023-232, § 2(Exh. A), 4-5-2023)

Secs. 33-610—33-699. Reserved.

APPENDIX A-1. LARGE TREES FOR HOUSTON

Botanical Name	*Common Name**		*Comments*
Acer rubrum var drummondii	D	Drummon Red Maple	Wet sites
Acer rubrum var tridens	D	Trident Red Maple	Wet sites
Acer barbatum	D	Southern or Texas Sugar Maple	
Betula nigra	D	River Birch	Wet sites
Bumelia lanuginosa	D	Chittamwood, Gum bumelia or Wooly Bucket	Drought-tolerant/Attracts birds
Carya cordiformis	D	Bitternut Hickory	
Carya illinoenses	D	Pecan	Nut
Carya texana	D	Black Hickory	Drought-tolerant
Carya tomentosa	D	Mockery Nut Hickory	Fruit
Diospyros virginiana	D	Persimmon, eastern	Fruit
Ehretia anacua	D	Anacua	Flowering/Fruit/Drought-tolerant
Fraxinus americana	D	White Ash	
Fraxinus Pennsylvanica	D	Green Ash	
Ginkgo biloba	D	Ginkgo	Male only
Ilex opaca (and cultivars)	E	American Holly	Female/Fruit
Juglans nigra	D	Black Walnut	
Liquidambar styraciflua	D	Sweetgum	Fall color
Liriodendron tulipifera	D	Tulip tree or Yellow Poplar	Flowering/Wet sites
Magnolia grandiflora	E	Southern Magnolia	Flowering
Magnolia virginiana	E	Sweet Bay Magnolia	Flowering/Wet sites
Metasequoia glyptostroboides	D	Dawn Redwood	
Nyssa aquatica	D	Water tupelo	Wet sites
Nyssa sylvatica var biflora	D	Swamp tupelo or Black Gum	Wet sites
Nyssa sylvatica var sylvatica	D	Black Gum	Fruit/Fall color
Pinus palustris	E	Longleaf Pine	
Pinus taeda	E	Loblolly Pine	
Pinus glabra	E	Spruce Pine	
Plantanus mexicana	D	Mexican Sycamore	Wet sites
Plantanus occientalis	D	Sycamore	
Prunus serotina	D	Black Cherry	Flowering/Fruit
Quercus acutissima	D	Sawtooth Oak	
Quercus alba	D	Oaks, white	Fall color
Quercus canbii	D	Canby Oak	
Quercus falcata	D	Southern Red Oak	
Quercus laurifolia	D	Laurel Oak	
Quercus lyrata	D	Overcup Oak	Wet sites
Quercus macrocarpa	D	Bur Oak	Wet sites/Drought-tolerant
Quercus michauxii	D	Swamp Chestnut Oak	Fall color
Quercus muehlenbergii	D	Chinkapin Oak	Drought-tolerant
Quercus nutallii	D	Nutall Oak	Fall color/Wet sites
Quercus palustris	D	Pin Oak	Fall color

*D means deciduous; and E means evergreen.

Botanical Name	*Common Name**	*Comments*
Quercus phellos	D Willow Oak	
Quercus polymorpha	D Monterrey Oak	
Quercus rizophyllia	D Loquat Leaf Oak	
Quercus shumardii	D Shumard Oak	Fall color
Quercus stellata	D Post Oak	
Quercus virginiana	D Live Oak	
Sassafras albidum	D Sassafras	Fall color/Attracts birds
Taxodium distichum var distichum	D Bald Cypress	Wet sites/Drought-tolerant
Taxodium distichum var nutans	D Pond Cypress	
Taxodium mucronatum	D Montezuma Bald Cypress	
Tilia caroliniana	D Carolina Basswood	
Ulmus americana	D American Elm	
Ulmus alata	D Winged Elm	
Ulmus crassifolia	D Cedar Elm	Drought-tolerant
Ulmus parvifolia var drakii	D Drake Elm	
Zelkova serrata	D Japanese Zelkova	

*D means deciduous; and E means evergreen.

APPENDIX A-2. SMALL TREES FOR HOUSTON

Botanical Name	*Common Name**		*Comments*
Acer leucoderme	D	Chalk Maple	Fall color
Acacia wrightii	D	Wright Acacia	Flowering/Drought-tolerant
Aesculus pavia var pavia	D	Red Buckeye	Flowering
Aesculus pavia var flavescens	D	Red Buckeye	Yellow flowers
Aesculus glabra var arguta	D	White Buckeye	Flowering/Drought-tolerant
Asimina triloba	D	Pawpaw	Flowering/Fruit
Bauhinia congesta	D	Anacacho Orchid Tree	Flowering/Drought-tolerant
Carpinus caroliniana	D	American Hornbeam, Ironwood or Blue Beech	Wet sites/Fall color
Cercis canadensis	D	Eastern Redbud	Flowering
Cercis canadensis var texensis cultivars	D	Texas Redbud	Flowering/Drought-tolerant
Cercis canadensis var mexicana	D	Mexican Redbud	Flowering/Drought-tolerant
Chionanthus virginicus	D	Fringe Tree	Flowering/Attracts birds
Chionanthus retusus	D	Chinese Fringe Tree	Flowering/Drought-tolerant
Cornus florida	D	Flowering Dogwood	Flowering/Attracts birds
Cotinus obovatus	D	American Smoke Tree	Fall color/Drought-tolerant
Cratagus marshallii	D	Parsley Leaf Hawthorn	Flowering/Attracts birds
Cratagus opaca	D	May Haw	Flowering/Fruit/Attracts birds
Cratagus spathulata	D	Little Hip Hawthorn	Flowering/Attracts birds
Cratagus viridis	D	Green Hawthorn	Flowering
Cratagus texana	D	Texas Hawthorn	Flowering
Cratagus reverchonii	D	Reverchon Hawthorn	Flowering
Cyrilla racemiflora	D	Titi	Wet sites
Diospyros texana	D	Texas Persimmon	Fruit/Drought-tolerant
Eysenhardtia texana	D	Texas Kidneywood	Flowering/Drought-tolerant
Halesia diptera	D	Two-winged Silverbell	Flowering
Ilex cassine	E	Dahoon Holly	Female-Fruit/Attracts birds
Ilex decidua	D	Possum Haw	Female-Fruit/Attracts birds
Ilex vomitoria	E	Yaupon	Female-Fruit/Attracts birds
Malus angustifolia	D	Southern Crabapple	Flowering/Fruit
Myrica cerifera	E	Southern Wax Myrtle	Wet sites/Attracts birds
Ostrya virginiana	D	Eastern Hop Hornbeam	
Parkinsonia aculeata	D	Retama	Flowering/Drought-tolerant
Pistacia chinensis	D	Chinese Pistachio	Fall color/Drought-tolerant
Pistacia texana	D	Texas Pistache	Drought-tolerant
Prosopis glandulosa var glandulosa	D	Mesquite	Drought-tolerant
Prunus mexicana	D	Mexican Plum	Flowering/Fruit/Drought-tolerant
Prunus umbellata	D	Flatwoods Plum	Flowering/Fruit
Prunus augustifolia	D	Creek Plum	Flowering/Fruit

*D means deciduous; and E means evergreen.

Botanical Name	*Common Name**	*Comments*
Rhamnus caroliniana	D Carolina Buckthorn	Fall color/Fruit/Attracts birds/ Drought-tolerant
Rhus copallina	D Sumac	Fall color
Sophoria secundiflora	E Texas Mountain Laurel	Flowering/Drought-tolerant
Sophora affinis	D Eve's Necklace	Flowering
Ungnadia speciosa	D Mexican Buckeye	Flowering/Drought-tolerant
Viburnum rufidulum	D Rusty Black Haw Viburnum	Flowering/Fall color/Drought-tolerant/Attracts birds

*D means deciduous; and E means evergreen.

APPENDIX A-3. RESERVED*

*__Editor's note—__Ord. No. 03-159, § 8, repealed Ch. 33, Art. V, App. A-3. in its entirety. Formerly said appendix pertained to department of parks and recreation street trees and derived from Ord. No. 01-181, § 3, 2-21-01.

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APPENDIX B. TREE PLANTING

I. *Tree selection.* Trees planted under section 33-108 must be selected from the street trees list (Appendix A-3). All plant stock shall meet the Standard for Nursery Stock Specifications, as established by the American Association of Nurserymen (1986 ed.) on file in the office of the city secretary.

The following factors should be considered in the selection of trees from the tree and shrub lists, Appendices A-1, A-2, A-3, and D:

A. Hardiness of trees for the specific site, i.e., soil conditions, pH, drainage.
B. Mature plant size, form and growth rates, i.e., proximity to overhead utility lines.
C. Drought tolerance.
D. Pest and insect resistance.

II. *Tree planting:*

A. Holes for the trees should be excavated one and one-half (1½) to two (2) feet greater in width than the diameter of the soil ball. The sides of the hole should be vertical and the bottom horizontal. Trees should be planted with the top of the root ball two (2) inches above existing grade. No holes should be left uncovered overnight.
B. Trees should be set in an upright plumb position at depth two (2) inches higher than grown in the container. Care should be taken so as not to injure the root system, trunk, or foliage. The trunk should not be used as a lever in positioning or moving the tree in the planting hole.
C. The backfill should consist of topsoil excavated from the planting hole. If there is not enough topsoil, a supplement of similar topsoil should be furnished. Each planting hole should be backfilled and tamped lightly so as not to damage roots. A saucer should be constructed six (6) to eight (8) inches above soil grade around the planting hole and should be a minimum of six (6) feet in diameter, free of weeds and grass.
D. Any pruning should be done according to the standards of the National Arborist Association (rev. 1988) (The Meeting Place Mall, Route 101, P.O. box 1094, Amherst, NH 03031), on file in the office of the city secretary. All damaged limbs should be removed. The tree should be maintained in a shape appropriate to its species. Street trees should be pruned in accordance with the standards for hazard pruning contained in class III.
E. Trees planted hereunder should be staked with a minimum of two (2) stakes, eight (8) feet long, attached to the tree with plastic tree chain, one (1) inch in size, or equivalent, in a manner that is secure and will not injure the tree. Any one-hundred-gallon trees should be tri-staked (three (3) stakes). Other types of securing ties or devices may be used if designed for that purpose.
F. Mulch shall be placed loosely around trees planted hereunder within twenty-four (24) hours after planting to a uniform depth of three (3) to four (4) inches and to a diameter of six (6) feet. No leaves, branches, roots or other foreign material may be used as a mulch. This area should be maintained free of weeds and grass vegetation with a three (3) to four (4) inch mulch cover for a minimum period of one (1) year.

III. *Watering.* The following watering schedule may be utilized and revised during prolonged periods of rain or drought.

Initial Watering After Planting	Root zones should be slow-soaked every seven (7) days for four (4) weeks.

November December January February	In the absence of sufficient rainfall, root zones should be slow-soaked on a twenty-one-day water schedule.
October March April	In the absence of sufficient rainfall, root zones should be slow-soaked on a fourteen-day water schedule.
May June July August September	In the absence of sufficient rainfall, root zones should be slow-soaked on a seven-day watering schedule.

APPENDIX C. RESERVED*

*__Editor's note—__Ord. No. 09-84, § 23, adopted February 11, 2009, repealed Appendix C of Ch. 33 in its entirety. Formerly said appendix pertained to Tree protection.

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APPENDIX D. SHRUB LIST

Expected Height After 3 Years (in feet)	*Common Name*	*Botanical Name*
	Evergreens	
1–3	Japanese Boxwood	Buxus microphylla japonica
1	Dwarf Euonymus	Euonymus japonica "Microphylla"
2–3	Silver King Euonymus	Euonymus japonica "Silver King"
1–2	Dwarf Gardenia	Gardenia jasminoides "Radicans"
2–3	Dwarf Burford Holly	Ilex cornuta "Burfordii Nana"
2–3	Dwarf Chinese Holly	Ilex cornuta "Rotunda"
1–2	Compact Japanese Holly	Ilex crenata "Compacta"
1–3	Dwarf Yaupon Holly	Ilex vomitoria "Nana"
1–2	Primrose Jasmine	Jasminum mesnyi
3–4	Texas Sage	Leucophyllum Frutescens
3–4	Dwarf Wax Myrtle	Myrica cerifera
1	Dwarf Purply Nandina	Nandina domestica nana "Purpurea"
2–3	Harbor Dwarf Nandina	Nandina domestica nana "Harbor Dwarf"
2–3	Dwarf Oleander	Nerium oleander
1–2	Turner's Dwarf Pittosporum	Pittosporum tobira "Turner's Dwarf"
1–2	Wheeler's Dwarf Pittosporum	Pittosporum tobia "Wheeler's Dwarf"
3–4	Fraser's Photinia	Photinia x fraseri
2–3	Red Elf Pyracantha	Pyracantha "Red Elf"
2–4	Indian Hawthorne	Raphiolepis indica
2–3	Red Spirea	Spiraea x bumalda "Anthony Waterer"
3–4	Spring Bouquet Vib	Viburnum tinus "Spring Bouquet"
6	Red Tip Photina	Photinia glabra
6	Chinese Photina	Photinia serrulata
6	Waxleaf Ligustrum	Ligustrum japonicum
6	Southern Wax Myrtle	Myrica cerifera

APPENDIX E. SHRUB PLANTING

I. *Shrub selection.* Shrubs planted in public rights-of-way shall be selected from the parks and recreation department perennial shrub list (Appendix D). Shrubs planted in other areas may also be selected from that list.

The following factors should be considered when making a selection from the shrub list for planting:

A. Hardiness for the specific site selected.

B. Present and ultimate size, branching habits, and growth rate. The plant shall be at least eighteen (18) inches in height as measured from the surrounding soil line, shall have a minimum eighteen-inch width at the widest portion when planted and shall be capable of growth to not less than thirty (30) inches in height as measured from the surrounding soil line within three (3) annual growing seasons.

C. Resistance to pests.

II. *Shrub planting.*

A. Holes for shrubs should be excavated six (6) inches greater in width than the diameter of the soil ball. The sides of the hole should be vertical and the bottom horizontal. Shrubs should be planted with top of root ball slightly above existing grade. No holes should be left uncovered overnight.

B. Shrubs should be set in an upright plumb position at a depth slightly higher than grown in the container. Care should be taken not to injure the root system, trunk, or foliage. The trunk should not be used as a lever in positioning or moving the shrub in the planting hole.

C. Holes should be backfilled with soil and tamped lightly and carefully so as not to damage roots. The shrub should be watered to settle soil around the roots and remove air pockets.

D. All damaged branches shall be removed.

E. A minimum three-inch layer of mulch shall be placed loosely at the base to retard weed growth and conserve moisture.

III. *Watering.* The following water schedule may be utilized and revised during prolonged periods of rain or drought.

Initial Watering After Planting	Root zones should be drenched every seven (7) days for four (4) weeks.
November December January February	In the absence of sufficient rainfall, root zones should be drenched on a twenty-one-day watering schedule.
October March April	In the absence of sufficient rainfall, root zones should be drenched on a fourteen-day watering schedule.
May June July August September	In the absence of sufficient rainfall, root zones should be drenched on a seven-day watering schedule.

APPENDIX F. LANDSCAPE UNIT COSTS

The following are to be used as installed prices for bonding and deposits purposes, and shall be subject to a cost adjustment.

Trees:

15-gallon container	$100.00
30-gallon container	225.00
2"—2.5" caliper, B & B	200.00
2.5"—3" caliper, B & B	275.00
4" caliper, B & B	450.00
6" caliper, machine planted	650.00
8" caliper, machine planted	900.00

Shrubs and Vines:

1-gallon container	$ 4.50
2-gallon container	15.00
5-gallon container	18.00

Mulch (for beds):

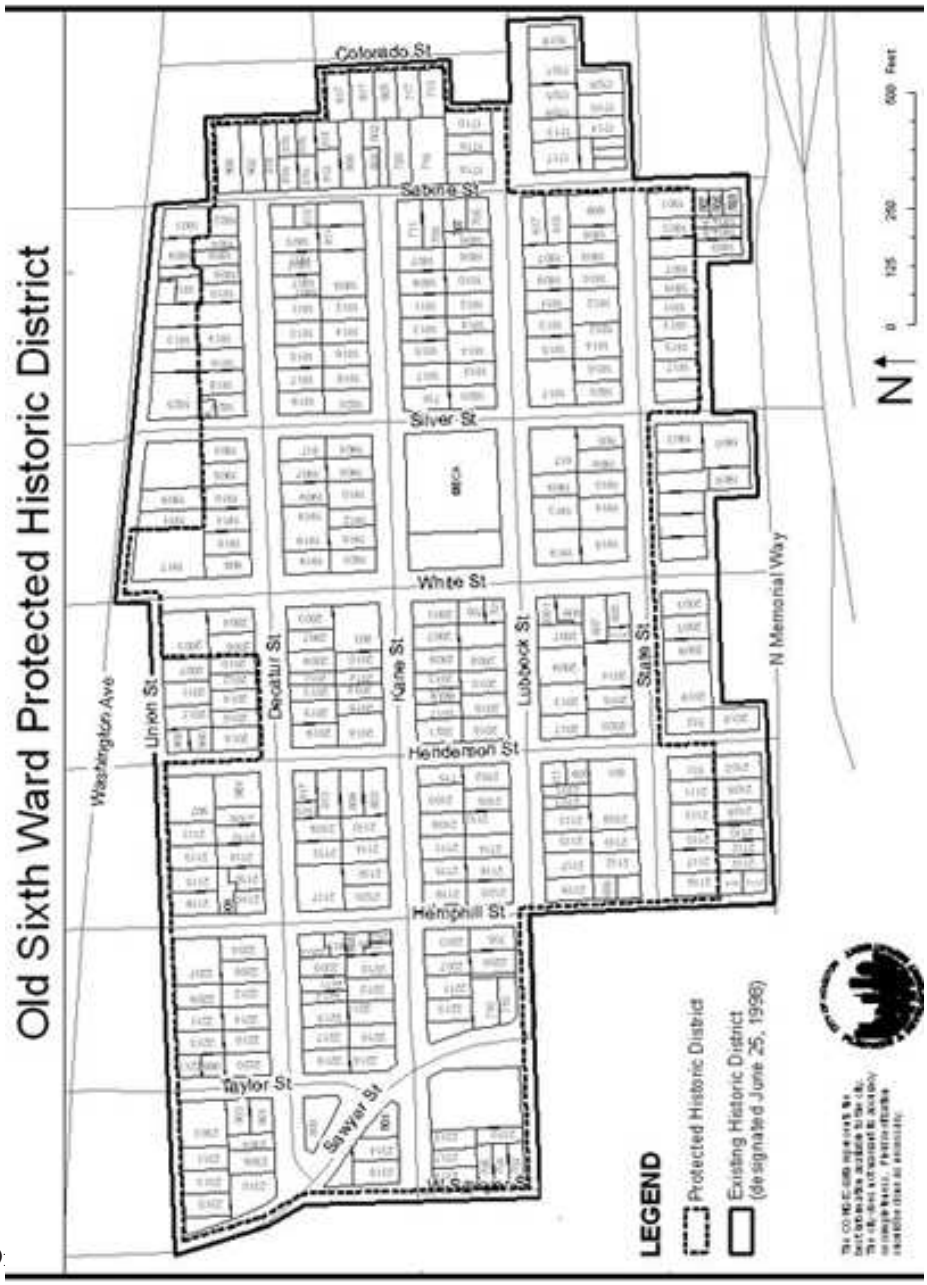
Shredded pine bark, per cubic yards	$35.00

Fence:

6` high #1 cedar batten board fence, per linear foot	$11.00
Gate, each	$50.00

[The next page is 2329]

APPENDIX G.


Old Sixth Ward Protected Historic District
Colorado St
Sabine St
Silver St
White St
Henderson St
Hemphill St
Taylor St
Sawyer St
Washington Ave
Union St
Decatur St
Kane St
Lubbock St
State St
N Memorial Way
N
0 125 250 500 Feet
LEGEND
Protected Historic District
Existing Historic District
(designated June 25, 1998)

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APPENDIX H. OLD SIXTH WARD PROTECTED HISTORIC DISTRICT
Inventory—August 1, 2007

C = Contributing
PC = Potentially Contributing
NC = Noncontributing
V = Vacant Property (noncontributing)

ADDRESS	*LEGAL DESCRIPTION*	*HCAD NO.*	*STATUS*
814 BISMARK ST	TR 8A RENNER	0300430000014	PC
713 COLORADO ST	LT 14 HEISS GREGOR	0162030000014	PC
717 COLORADO ST	LT 13 HEISS GREGOR	0162030000013	PC
805 COLORADO ST	LT 12 HEISS GREGOR	0162030000012	PC
811 COLORADO ST	LT 11 HEISS GREGOR	0162030000011	C
817 COLORADO ST	LT 10 HEISS GREGOR	0162030000010	PC
1802 DECATUR ST	TRS 8B & 9 BLK 444 BAKER W R NSBB	0052270000022	V
1803 DECATUR ST	TR 10A BLK 443 BAKER W R NSBB	0052260000030	V
1804 DECATUR ST	TR 8A BLK 444 BAKER W R NSBB	0052270000027	C
1805 DECATUR ST	LT 11 & TR 10B BLK 443 BAKER W R NSBB	0052260000011	PC
1806 DECATUR ST	TRS 7A & 8A-1 BLK 444 BAKER W R NSBB	0052270000028	NC
1807 DECATUR ST	LT 12 BLK 443 BAKER W R NSBB	0052260000012	C
1807 DECATUR ST	E 47 FT OF LT 13 BLK 443 BAKER W R NSBB	0052260000013	C
1808 DECATUR ST	TRS 6A & 7 BLK 444 BAKER W R NSBB	0052270000020	PC
1810 DECATUR ST	TR 6 BLK 444 BAKER W R NSBB	0052270000006	PC
1811 DECATUR ST	E 47 FT LT 14 & W 3 FT LT 13 BLK 443 BAKER W R NSBB	0052260000032	PC
1812 DECATUR ST	LT 5 BLK 444 BAKER W R NSBB	0052270000005	V
1813 DECATUR ST	W 3FT LT 14 & LT 15 BLK 443 BAKER W R NSBB	0052260000028	C
1814 DECATUR ST	LT 4 BLK 444 BAKER W R NSBB	0052270000004	PC
1815 DECATUR ST	LT 16 BLK 443 BAKER W R NSBB	0052260000016	V
1816 DECATUR ST	LT 3 BLK 444 BAKER W R NSBB	0052270000016	V
1817 DECATUR ST	LT 17 BLK 443 BAKER W R NSBB	0052260000017	PC
1818 DECATUR ST	LT 2 BLK 444 BAKER W R NSBB	0052270000002	C
1819 DECATUR ST	LT 18 BLK 443 BAKER W R NSBB	0052260000018	PC
1820 DECATUR ST	TR 1 BLK 444 BAKER W R NSBB	0052270000001	PC
1904 DECATUR ST	LT 6 BLK 426 BAKER W R NSBB	0052090000006	NC
1907 DECATUR ST	LT 8 BLK 427 BAKER W R NSBB	0052100000008	PC
1908 DECATUR ST	LT 5 BLK 426 BAKER W R NSBB	0052090000005	C
1909 DECATUR ST	LT 9 BLK 427 BAKER W R NSBB	0052100000009	C
1910 DECATUR ST	LT 4 BLK 426 BAKER W R NSBB	0052090000004	C
1914 DECATUR ST	LT 3 BLK 426 BAKER W R NSBB	0052090000003	C
1918 DECATUR ST	LT 2 BLK 426 BAKER W R NSBB	0052090000002	NC
1915 DECATUR ST	RES A BLK 1 DECATUR ST PLAZA	1257770010001	V
1919 DECATUR ST	LT 12 BLK 427 BAKER W R NSBB	0052100000020	C

C = Contributing
PC = Potentially Contributing
NC = Noncontributing
V = Vacant Property (noncontributing)

ADDRESS	*LEGAL DESCRIPTION*	*HCAD NO.*	*STATUS*
2003 DECATUR ST	LT 7 BLK 417 BAKER W R NSBB	0052000000007	C
2004 DECATUR ST	LT 6 BLK 418 BAKER W R NSBB	0052010000006	C
2006 DECATUR ST	LT 5 BLK 418 BAKER W R NSBB	0052010000005	PC
2007 DECATUR ST	TR 8A BLK 417 BAKER W R NSBB	0052000000014	PC
2009 DECATUR ST	TRS 8 & 9A BLK 417 BAKER W R NSBB	0052000000008	NC
2011 DECATUR ST	TRS 9 & 10A BLK 417 BAKER W R NSBB	0052000000015	C
2013 DECATUR ST	TR 10 BLK 417 BAKER W R NSBB	0052000000009	C
2015 DECATUR ST	LT 11 BLK 417 BAKER W R NSBB	0052000000016	C
2019 DECATUR ST	LT 12 BLK 417 BAKER W R NSBB	0052000000011	NC
2105 DECATUR ST	TR 8 BLK 406 BAKER W R NSBB	0051910000007	C
2106 DECATUR ST	TRS 4 & 5 BLK 405 BAKER W R NSBB	0051900000004	C
2109 DECATUR ST	LT 9 BLK 406 BAKER W R NSBB	0051910000009	C
2110 DECATUR ST	TR 4A BLK 405 BAKER W R NSBB	0051900000028	C
2113 DECATUR ST	LT 10 BLK 406 BAKER W R NSBB	0051910000010	PC
2114 DECATUR ST	LT 3 BLK 405 BAKER W R NSBB	0051900000003	C
2115 DECATUR ST	LTS 11 & 12 BLK 406 BAKER W R NSBB	0051910000011	C
2116 DECATUR ST	TR 2A BLK 405 BAKER W R NSBB	0051900000026	C
2117 DECATUR ST	LTS 11 & 12 BLK 406 BAKER W R NSBB	0051910000011	C
2118 DECATUR ST	S 65 FT OF LT 1 BLK 405 BAKER W R NSBB	0051900000001	C
2203 DECATUR ST	TR 7A BLK 396 BAKER W R NSBB	0051810000021	C
2204 DECATUR ST	LT 6 BLK 397 BAKER W R NSBB	0051820000006	C
2205 DECATUR ST	TR 8A BLK 396 BAKER W R NSBB	0051810000013	PC
2206 DECATUR ST	LT 5 BLK 397 BAKER W R NSBB	0051820000005	PC
2211 DECATUR ST	TRS 8 & 9A BLK 396 BAKER W R NSBB	0051810000008	C
2212 DECATUR ST	LT 4 BLK 397 BAKER W R NSBB	0051820000004	C
2213 DECATUR ST	TR 9 BLK 396 BAKER W R NSBB	0051810000009	C
2214 DECATUR ST	LT 3 BLK 397 BAKER W R NSBB	0051820000003	C
2215 DECATUR ST	LT 10 BLK 396 BAKER W R NSBB	0051810000010	C
2217 DECATUR ST	LT 11 BLK 396 BAKER W R NSBB	0051810000011	C
2218 DECATUR ST	LT 2 BLK 397 BAKER W R NSBB	0051820000002	C
2219 DECATUR ST	LT 12 BLK 396 BAKER W R NSBB	0051810000012	C
2220 DECATUR ST	LT 1 BLK 397 BAKER W R NSBB	0051820000001	C
2304 DECATUR ST	TRS 4 & 5A BLK 384 BAKER W R NSBB	0051760000004	PC
2306 DECATUR ST	TRS 3 & 4A BLK 384 BAKER W R NSBB	0051760000003	V
2310 DECATUR ST	TRS 1 2 & 3A BLK 384 BAKER W R NSBB	0051760000001	NC

C = Contributing
PC = Potentially Contributing
NC = Noncontributing
V = Vacant Property (noncontributing)

ADDRESS	*LEGAL DESCRIPTION*	*HCAD NO.*	*STATUS*
606 HEMPHILL ST	N 1/2 OF LT 1 BLK 408 BAKER W R NSBB	0051930000014	NC
705 HEMPHILL ST	LT 6 BLK 395 BAKER W R NSBB	0051800000006	PC
710 HEMPHILL ST	LT 12 BLK 407 BAKER W R NSBB	0051920000012	PC
803 HEMPHILL ST	TR 6B BLK 396 BAKER W R NSBB	0051810000023	C
811 HEMPHILL ST	TR 7 BLK 396 BAKER W R NSBB	0051810000007	PC
906 HEMPHILL ST	N 35 FT OF LT 1 & TR 2 BLK 405 BAKER W R NSBB	0051900000027	C
511 HENDERSON ST	LT 7 BLK 409 BAKER W R NSBB	0051940000007	C
601 HENDERSON ST	LT 3 HENDERSON VILLA	0051930000005	NC
609 HENDERSON ST	S 1/2 OF LT 7 BLK 408 BAKER W R NSBB	0051930000007	NC
611 HENDERSON ST	N 1/2 OF LT 7 BLK 408 BAKER W R NSBB	0051930000015	NC
707 HENDERSON ST	LT 6 & TR 5 BLK 407 BAKER W R NSBB	0051920000005	C
715 HENDERSON ST	E 40 FT OF 7 BLK 407 BAKER W R NSBB	0051920000007	PC
803 HENDERSON ST	TRS 5A & 6A BLK 406 BAKER W R NSBB	0051910000013	C
809 HENDERSON ST	TRS 5 & 6 BLK 406 BAKER W R NSBB	0051910000005	C
813 HENDERSON ST	TRS 7 & 8B BLK 406 BAKER W R NSBB	0051910000025	C
817 HENDERSON ST	TRS 7A & 8A BLK 406 BAKER W R NSBB	0051910000024	C
901 HENDERSON ST	LT 6 & TR 5A BLK 405 BAKER W R NSBB	0051900000025	PC
907 HENDERSON ST	LTS 7 & 8 BLK 405 BAKER W R NSBB	0051900000007	PC
915 HENDERSON ST	LTS 7 & 8 BLK 405 BAKER W R NSBB	0051900000007	PC
919 HENDERSON ST	LTS 7 & 8 BLK 405 BAKER W R NSBB	0051900000007	PC
1804 KANE ST	LT 8 BLK 443 BAKER W R NSBB	0052260000034	C
1807 KANE ST	LT 12 BLK 442 BAKER W R NSBB	0052250000010	PC
1808 KANE ST	LT 7 BLK 443 BAKER W R NSBB	0052260000006	PC
1809 KANE ST	LT 13 BLK 442 BAKER W R NSBB	0052250000030	PC
1810 KANE ST	LT 6 BLK 443 BAKER W R NSBB	0052260000006	PC
1811 KANE ST	LT 14 BLK 442 BAKER W R NSBB	0052250000014	C
1812 KANE ST	LT 5 BLK 443 BAKER W R NSBB	0052260000005	PC
1813 KANE ST	LT 15 BLK 442 BAKER W R NSBB	0052250000015	PC
1814 KANE ST	LT 4 BLK 443 BAKER W R NSBB	0052260000004	PC
1815 KANE ST	LT 16 BLK 442 BAKER W R NSBB	0052250000016	C
1816 KANE ST	LT 3 BLK 443 BAKER W R NSBB	0052260000003	C
1817 KANE ST	LT 17 BLK 442 BAKER W R NSBB	0052250000017	C
1818 KANE ST	TR 2 BLK 443 BAKER W R NSBB	0052260000001	PC
1819 KANE ST	LT 18 BLK 442 BAKER W R NSBB	0052250000018	PC

C = Contributing
PC = Potentially Contributing
NC = Noncontributing
V = Vacant Property (noncontributing)

ADDRESS	*LEGAL DESCRIPTION*	*HCAD NO.*	*STATUS*
1820 KANE ST	LT 1 & TR 2A BLK 443 BAKER W R NSBB	0052260000031	C
1901 KANE ST	RES A BLK 1 DOW SCHOOL BLOCK	1248130010001	C
1901 KANE ST	RES B BLK 1 DOW SCHOOL BLOCK	1248130010002	C
1904 KANE ST	LT 6 BLK 427 BAKER W R NSBB	0052100000006	PC
1906 KANE ST	LT 5 BLK 427 BAKER W R NSBB	0052100000005	PC
1910 KANE ST	LT 4 & TR 3 BLK 427 BAKER W R NSBB	0052100000003	C
1912 KANE ST	TR 3A BLK 427 BAKER W R NSBB	0052100000013	PC
1916 KANE ST	LT 2 BLK 427 BAKER W R NSBB	0052100000002	PC
1920 KANE ST	LT 1 BLK 427 BAKER W R NSBB	0052100000001	C
2000 KANE ST	LT 3 PREMIER'S SIXTH WARD HOME ADVENTURE	0052000000005	NC
2002 KANE ST	LT 2 PREMIER'S SIXTH WARD HOME ADVENTURE	0052000000005	NC
2003 KANE ST	LT 7 BLK 416 BAKER W R NSBB	0051990000007	C
2004 KANE ST	LT 1 PREMIER'S SIXTH WARD HOME ADVENTURE	0052000000005	NC
2007 KANE ST	LT 8 BLK 416 BAKER W R NSBB	0051990000008	PC
2009 KANE ST	LT 9 BLK 416 BAKER W R NSBB	0051990000009	C
2010 KANE ST	TR 4 BLK 417 BAKER W R NSBB	0052000000004	PC
2012 KANE ST	TRS 3A & 4A BLK 417 BAKER W R NSBB	0052000000013	C
2013 KANE ST	TR 10 BLK 416 BAKER W R NSBB	0051990000010	PC
2014 KANE ST	TR 3 & TR 10 LK 417 BAKER W R NSBB	0052000000003	C
2015 KANE ST	TRS 10A & 11A BLK 416 BAKER W R NSBB	0051990000013	C
2016 KANE ST	TR 2A BLK 417 BAKER W R NSBB	0052000000002	PC
2017 KANE ST	TR 11 BLK 416 BAKER W R NSBB	0051990000011	PC
2018 KANE ST	LT 1 & TR 2B BLK 417 BAKER W R NSBB	0052000000001	C
2021 KANE ST	LT 12 BLK 416 BAKER W R NSBB	0051990000012	PC
2105 KANE ST	LT 8 & TR 7A BLK 407 BAKER W R NSBB	0051920000008	V
2109 KANE ST	LT 9 BLK 407 BAKER W R NSBB	0051920000009	PC
2110 KANE ST	LT 4 BLK 406 BAKER W R NSBB	0051910000004	NC
2111 KANE ST	LT 10 BLK 407 BAKER W R NSBB	0051920000010	PC
2114 KANE ST	LT 3 BLK 406 BAKER W R NSBB	0051910000023	PC
2115 KANE ST	LT 11 BLK 407 BAKER W R NSBB	0051920000011	C
2116 KANE ST	LT 2 BLK 406 BAKER W R NSBB	0051910000002	C
2119 KANE ST	LT 12 BLK 407 BAKER W R NSBB	0051920000012	PC
2120 KANE ST	LT 1 BLK 406 BAKER W R NSBB	0051910000001	V
2202 KANE ST	TR 6A BLK 396 BAKER W R NSBB	0051810000022	C

C = Contributing
PC = Potentially Contributing
NC = Noncontributing
V = Vacant Property (noncontributing)

ADDRESS	*LEGAL DESCRIPTION*	*HCAD NO.*	*STATUS*
2203 KANE ST	LT 7 & TR 8A BLK 395 BAKER W R NSBB	0051800000007	C
2206 KANE ST	TR 6 BLK 396 BAKER W R NSBB	0051810000006	PC
2207 KANE ST	TR 8 BLK 395 BAKER W R NSBB	0051800000008	PC
2210 KANE ST	LT 5 BLK 396 BAKER W R NSBB	0051810000005	C
2211 KANE ST	LT 9 BLK 395 BAKER W R NSBB	0051800000009	PC
2212 KANE ST	LT 4 & TR 3A BLK 396 BAKER W R NSBB	0051810000004	PC
2214 KANE ST	TR 3 BLK 396 BAKER W R NSBB	0051810000003	C
2215 KANE ST	LT 10 BLK 395 BAKER W R NSBB	0051800000010	C
2216 KANE ST	LT 2 BLK 396 BAKER W R NSBB	0051810000002	C
2218 KANE ST	TR 1 BLK 396 BAKER W R NSBB	0051810000001	PC
2219 KANE ST	TR 11 BLK 395 BAKER W R NSBB	0051800000015	V
2314 KANE ST	TR 4 BLK 385 BAKER W R NSBB	0051770000004	PC
2315 KANE ST	TRS 8 9 11 & 12 BLK 1 KING NSBB	0220630000008	C
2317 KANE ST	TRS 8B & 9B BLK 1 KING NSBB	0220630000020	C
2318 KANE ST	LT 3 BLK 385 BAKER W R NSBB	0051770000003	C
2319 KANE ST	TRS 8A & 9A BLK 1 KING NSBB	0220630000019	C
1710 LUBBOCK ST	LT 3 BLK 453 BAKER W R NSBB	0052310000003	PC
1716 LUBBOCK ST	TR 2 BLK 453 BAKER W R NSBB	0052310000002	C
1718 LUBBOCK ST	LT 1 & TR 2A BLK 453 BAKER W R NSBB	0052310000001	C
1806 LUBBOCK ST	W 30.5 FT OF LT 8 BLK 442 BAKER W R NSBB	0052250000031	C
1807 LUBBOCK ST	LT 10 BLK 441 BAKER W R NSBB	0052240000010	C
1808 LUBBOCK ST	LT 7 BLK 442 BAKER W R NSBB	0052250000007	C
1809 LUBBOCK ST	LT 11 BLK 441 BAKER W R NSBB	0052240000011	C
1810 LUBBOCK ST	LT 6 BLK 442 BAKER W R NSBB	0052250000006	NC
1811 LUBBOCK ST	TR 12A BLK 441 BAKER W R NSBB	0052240000023	PC
1812 LUBBOCK ST	LT 5 BLK 442 BAKER W R NSBB	0052250000005	PC
1813 LUBBOCK ST	LTS 13 & TR 12 BLK 441 BAKER W R NSBB	0052240000012	C
1814 LUBBOCK ST	TR 4 BLK 442 BAKER W R NSBB	0052250000021	NC
1815 LUBBOCK ST	LT 14 BLK 441 BAKER W R NSBB	0052240000014	PC
1816 LUBBOCK ST	LT 3 & TR 4A BLK 442 BAKER W R NSBB	0052250000003	V
1817 LUBBOCK ST	LT 15 BLK 441 BAKER W R NSBB	0052240000015	C
1818 LUBBOCK ST	LT 2 BLK 442 BAKER W R NSBB	0052250000002	PC
1819 LUBBOCK ST	LT 16 BLK 441 BAKER W R NSBB	0052240000015	PC
1820 LUBBOCK ST	LT 1 BLK 442 BAKER W R NSBB	0052250000001	C
1909 LUBBOCK ST	LT 9 BLK 429 BAKER W R NSBB	0052120000009	C
1913 LUBBOCK ST	LT 10 & TR 11A BLK 429 BAKER W R NSBB	0052120000010	PC

C = Contributing
PC = Potentially Contributing
NC = Noncontributing
V = Vacant Property (noncontributing)

ADDRESS	*LEGAL DESCRIPTION*	*HCAD NO.*	*STATUS*
1915 LUBBOCK ST	LT 10 & TR 11A BLK 429 BAKER W R NSBB	0052120000010	C
1917 LUBBOCK ST	LT 10 & TR 11A BLK 429 BAKER W R NSBB	0052120000010	C
1919 LUBBOCK ST	LT 12 & TR 11 BLK 429 BAKER W R NSBB	0052120000011	NC
2001 LUBBOCK ST	TRS 7 & 8A BLK 415 BAKER W R NSBB	0051980000007	C
2006 LUBBOCK ST	LT 5 BLK 416 BAKER W R NSBB	0051990000005	V
2007 LUBBOCK ST	TRS 8 & 9A BLK 415 BAKER W R NSBB	0051980000008	C
2008 LUBBOCK ST	LT 4 BLK 416 BAKER W R NSBB	0051990000004	PC
2009 LUBBOCK ST	TRS 9 9B & E 33.5 FT LT 10 BLK 415 BAKER W R NSBB	0051980000014	NC
2010 LUBBOCK ST	LT 3 BLK 416 BAKER W R NSBB	0051990000003	C
2013 LUBBOCK ST	LT 11 & W 18.5 FT LT 10 BLK 415 BAKER W R NSBB	0051980000018	NC
2016 LUBBOCK ST	LT 2 BLK 416 BAKER W R NSBB	0051990000002	C
2017 LUBBOCK ST	LT 12 BLK 415 BAKER W R NSBB	0051980000012	NC
2018 LUBBOCK ST	LT 1 BLK 416 BAKER W R NSBB	0051990000001	PC
2101 LUBBOCK ST	LT 1 BLK 1 ER DEVER JR	1219960010001	NC
2102 LUBBOCK ST	LT 6 & TR 5 BLK 407 BAKER W R NSBB	0051920000005	PC
2103 LUBBOCK ST	LT 2 BLK 1 ER DEVER JR	1219960010002	V
2106 LUBBOCK ST	TR 5A BLK 407 BAKER W R NSBB	0051920000013	PC
2112 LUBBOCK ST	LT 4 BLK 407 BAKER W R NSBB	0051920000004	C
2113 LUBBOCK ST	LT 9 BLK 408 BAKER W R NSBB	0051930000009	PC
2114 LUBBOCK ST	LT 3 BLK 407 BAKER W R NSBB	0051920000003	C
2115 LUBBOCK ST	TR 10 BLK 408 BAKER W R NSBB	0051930000010	PC
2116 LUBBOCK ST	LT 2 BLK 407 BAKER W R NSBB	0051920000002	PC
2117 LUBBOCK ST	LT 11 & TR 10A BLK 408 BAKER W R NSBB	0051930000013	PC
2118 LUBBOCK ST	LT 2 BLK 407 BAKER W R NSBB	0051920000002	PC
2119 LUBBOCK ST	LT 12 BLK 408 BAKER W R NSBB	0051930000012	C
2120 LUBBOCK ST	LT 1 BLK 407 BAKER W R NSBB	0051920000001	C
2206 LUBBOCK ST	LT 5 BLK 395 BAKER W R NSBB	0051800000005	PC
2310 LUBBOCK ST	TRS 6B 7B & 12B BLK 1 KING NSBB	0220630000016	C
609 SABINE ST	TRS 8 & 18 BLK 441 BAKER W R NSBB	0052240000008	V
615 SABINE ST	TRS 9 & 17 BLK 441 BAKER W R NSBB	0052240000009	V
617 SABINE ST	TRS 9A & 17A BLK 441 BAKER W R NSBB	0052240000022	PC
705 SABINE ST	TRS 8A & 9 BLK 442 BAKER W R NSBB	0052250000008	C

C = Contributing
PC = Potentially Contributing
NC = Noncontributing
V = Vacant Property (noncontributing)

ADDRESS	*LEGAL DESCRIPTION*	*HCAD NO.*	*STATUS*
707 SABINE ST	TRS 8B & 9A BLK 442 BAKER W R NSBB	0052250000032	C
709 SABINE ST	TRS 10A & 11A BLK 442 BAKER W R NSBB	0052250000011	PC
711 SABINE ST	TRS 10 & 11 BLK 442 BAKER W R NSBB	0052250000009	C
716 SABINE ST	LT 1 SABINE STREET ADDITION	1268530010001	V
716 SABINE ST	LT 2 SABINE STREET ADDITION	1268530010002	V
720 SABINE ST	LT 11 RENNER	0300430000011	PC
802 SABINE ST	TR 10 RENNER	0300430000010	C
804 SABINE ST	TR 10A RENNER	0300430000019	C
806 SABINE ST	LT 9 RENNER	0300430000009	C
811 SABINE ST	LT 9 BLK 443 BAKER W R NSBB	0052260000034	PC
812 SABINE ST	TR 8 RENNER	0300430000008	C
815 SABINE ST	TR 10 BLK 443 BAKER W R NSBB	0052260000010	C
816 SABINE ST	TRS 6A & 7A RENNER	0300430000013	NC
816 SABINE ST	TR 7 RENNER	0300430000016	NC
816 SABINE ST	TR 7B RENNER	0300430000017	NC
816 SABINE ST	TRS 6A-1 & 7A-1 RENNER	0300430000018	NC
818 SABINE ST	TR 6 RENNER	0300430000006	C
900 SABINE ST	LT 5 RENNER	0300430000005	C
902 SABINE ST	LT 5 RENNER	0300430000005	C
908 SABINE ST	LT 4 RENNER	0300430000015	PC
910 SABINE ST	LT 4 RENNER	0300430000015	PC
701 SAWYER ST	LTS 3 4 & 5 & TRS 2 11A & 12A BLK 1 KING NSBB	0220630000013	V
710 SAWYER ST	RES A BLK 1 TRI-JONES	1195800010004	V
710 SAWYER ST	LT 1 BLK 1 TRI-JONES	1195800010001	NC
710 SAWYER ST	LTS 2 & 3 BLK 1 TRI-JONES	1195800010002	NC
800 SAWYER ST	TRS 7 8 & 9 BLK 385 BAKER W R NSBB	0051770000007	NC
801 SAWYER ST	TR 5 & 6 BLK 385 BAKER W R NSBB	0051770000022	NC
803 SAWYER ST	TRS 9A & 10A BLK 385 BAKER W R NSBB	0051770000021	V
605 SILVER ST	LT 6 BLK 429 BAKER W R NSBB	0052120000006	NC
610 SILVER ST	LT 16 BLK 441 BAKER W R NSBB	0052240000015	C
617 SILVER ST	LTS 7 & 8 BLK 429 BAKER W R NSBB	0052120000007	C
712/714 SILVER ST	LT 1 BLK 442 BAKER W R NSBB	0052250000001	C
716 SILVER ST	LT 18 BLK 442 BAKER W R NSBB	0052250000018	C
811 SILVER ST	LT 7 BLK 427 BAKER W R NSBB	0052100000007	PC
815 SILVER ST	LT 7 BLK 427 BAKER W R NSBB	0052100000007	C
817 SILVER ST	LT 7 BLK 427 BAKER W R NSBB	0052100000007	C
906 SILVER ST	TR 1A BLK 444 BAKER W R NSBB	0052270000026	PC

C = Contributing *PC = Potentially Contributing* *NC = Noncontributing* *V = Vacant Property (noncontributing)*			
ADDRESS	*LEGAL DESCRIPTION*	*HCAD NO.*	*STATUS*
1801 STATE ST	LT 10 & TR 11B BLK 440 BAKER W R NSBB	0052230000010	C
1803 STATE ST	TR 11 BLK 440 BAKER W R NSBB	0052230000021	C
1805 STATE ST	TRS 11A 12A BLK 440 BAKER W R NSBB	0052230000007	V
1806 STATE ST	TR 8A BLK 441 BAKER W R NSBB	0052240000021	PC
1807 STATE ST	TRS 12 & 13A BLK 440 BAKER W R NSBB	0052230000012	PC
1808 STATE ST	LT 7 BLK 441 BAKER W R NSBB	0052240000007	C
1809 STATE ST	TRS 13 & 14A BLK 440 BAKER W R NSBB	0052230000013	V
1810 STATE ST	LT 6 BLK 441 BAKER W R NSBB	0052240000006	PC
1811 STATE ST	TRS 14 & 15A BLK 440 BAKER W R NSBB	0052230000014	V
1812 STATE ST	LT 5 BLK 441 BAKER W R NSBB AMEND	0052240000004	NC
1813 STATE ST	TRS 15 & 16A BLK 440 BAKER W R NSBB	0052230000015	C
1814 STATE ST	LT 3 BLK 441 BAKER W R NSBB AMEND	0052240000003	V
1815 STATE ST	TRS 16 & 17A BLK 440 BAKER W R NSBB	0052230000016	PC
1817 STATE ST	TRS 17 & 18A BLK 440 BAKER W R NSBB	0052230000017	C
1818 STATE ST	LT 2 BLK 441 BAKER W R NSBB	0052240000002	C
1819 STATE ST	TR 18 BLK 440 BAKER W R NSBB	0052230000018	V
1820 STATE ST	LT 1 BLK 441 BAKER W R NSBB	0052240000001	NC
1906 STATE ST	LT 5 BLK 429 BAKER W R NSBB	0052120000005	NC
1910 STATE ST	LT 4 & E 4 FT LT 3 BLK 429 BAKER W R NSBB	0052120000003	C
1914 STATE ST	E 1/2 LT 2 & W 46 FT LT 3 BLK 429 BAKER W R NSBB	0052120000002	PC
1918 STATE ST	LT 1 & W HLF LT 2 BLK 429 BAKER W R NSBB	0052120000001	PC
1922 STATE ST	LT 1 & W HLF LT 2 BLK 429 BAKER W R NSBB	0052120000001	PC
2008 STATE ST	TR 5A BLK 415 BAKER W R NSBB	0051980000013	NC
2014 STATE ST	LT 4 & TR 3 BLK 415 BAKER W R NSBB	0051980000003	PC
2016 STATE ST	TRS 2 & 3A BLK 415 BAKER W R NSBB	0051980000002	PC
2020 STATE ST	LT 1 & TR 2A BLK 415 BAKER W R NSBB	0051980000001	V
2104 STATE ST	LT 2 HENDERSON VILLA	0051930000005	NC

C = Contributing
PC = Potentially Contributing
NC = Noncontributing
V = Vacant Property (noncontributing)

ADDRESS	*LEGAL DESCRIPTION*	*HCAD NO.*	*STATUS*
2106 STATE ST	LT 1 HENDERSON VILLA	0051930000005	NC
2108 STATE ST	LT 4 & TR 5A BLK 408 BAKER W R NSBB	0051930000004	PC
2110 STATE ST	LT 3 BLK 408 BAKER W R NSBB	0051930000003	C
2111 STATE ST	LT 8 BLK 409 BAKER W R NSBB	0051940000008	C
2112 STATE ST	LT 2 BLK 408 BAKER W R NSBB	0051930000002	C
2113 STATE ST	LT 9 & TR 10A BLK 409 BAKER W R NSBB	0051940000009	PC
2115 STATE ST	TR 10 BLK 409 BAKER W R NSBB	0051940000010	PC
2117 STATE ST	LT 11 BLK 409 BAKER W R NSBB	0051940000011	C
2118 STATE ST	S 1/2 OF LT 1 BLK 408 BAKER W R NSBB	0051930000001	V
2119 STATE ST	LT 12 BLK 409 BAKER W R NSBB	0051940000012	PC
901 TAYLOR ST	TRS 5 & 6 BLK 384 BAKER W R NSBB	0051760000005	PC
903 TAYLOR ST	TRS 5B & 6A BLK 384 BAKER W R NSBB	0051760000013	C
907 TAYLOR ST	LT 7 BLK 384 BAKER W R NSBB	0051760000007	C
908 TAYLOR ST	S 50 FT OF LT 12 BLK 397 BAKER W R NSBB	0051820000013	C
2003 UNION ST	LTS 7 & 8 BLK 418 BAKER W R NSBB	0052010000007	PC
2111 UNION ST	LT 9 BLK 405 BAKER W R NSBB	0051900000009	C
2113 UNION ST	LT 10 BLK 405 BAKER W R NSBB	0051900000010	C
2115 UNION ST	LT 11 BLK 405 BAKER W R NSBB	0051900000011	PC
2119 UNION ST	LT 12 BLK 405 BAKER W R NSBB	0051900000012	NC
2207 UNION ST	LTS 7 & 8 BLK 397 BAKER W R NSBB	0051820000007	V
2209 UNION ST	LT 9 BLK 397 BAKER W R NSBB	0051820000009	PC
2211 UNION ST	LT 10 BLK 397 BAKER W R NSBB	0051820000010	PC
2215 UNION ST	LT 11 BLK 397 BAKER W R NSBB	0051820000011	C
2217 UNION ST	N 50 FT OF LT 12 BLK 397 BAKER W R NSBB	0051820000012	C
2303 UNION ST	LT 7 BLK 384 BAKER W R NSBB	0051760000007	PC
2307 UNION ST	LT 8 BLK 384 BAKER W R NSBB	0051760000016	PC
2311 UNION ST	LT 9 BLK 384 BAKER W R NSBB	0051760000009	PC
2313 UNION ST	LT 10 BLK 384 BAKER W R NSBB	0051760000010	C
2315 UNION ST	LT 11 BLK 384 BAKER W R NSBB	0051760000011	PC
2317 UNION ST	TR 12A BLK 384 BAKER W R NSBB	0051760000014	V
702 W SAWYER ST	TR 6A BLK 1 KING NSBB	0220630000018	PC
704 W SAWYER ST	TRS 6 & 7 BLK 1 KING NSBB	0220630000006	PC
706 W SAWYER ST	TR 7A BLK 1 KING NSBB	0220630000017	PC
1917 WASHINGTON AVE	LTS 11, 12 & TR 10A BLK 426 BAKER W R NSBB	0052090000011	PC
605 WHITE ST	TRS 5A-1 & 6A BLK 415 BAKER W R NSBB	0051980000015	PC

C = Contributing *PC = Potentially Contributing* *NC = Noncontributing* *V = Vacant Property (noncontributing)*			
ADDRESS	*LEGAL DESCRIPTION*	*HCAD NO.*	*STATUS*
606 WHITE ST	LT 1 & W HLF LT 2 BLK 429 BAKER W R NSBB	0052120000001	PC
607 WHITE ST	TRS 5 & 6 BLK 415 BAKER W R NSBB	0051980000005	PC
609 WHITE ST	TRS 7A & 8A-1 BLK 415 BAKER W R NSBB	0051980000016	C
701 WHITE ST	TR 6A BLK 416 BAKER W R NSBB	0051990000014	C
705 WHITE ST	TR 6 BLK 416 BAKER W R NSBB	0051990000006	V
908 WHITE ST	LT 1 BLK 426 BAKER W R NSBB	0052090000001	NC

(Ord. No. 07-855, § 13, 8-1-07)

FIGURE A

Sight Visibility Triangles

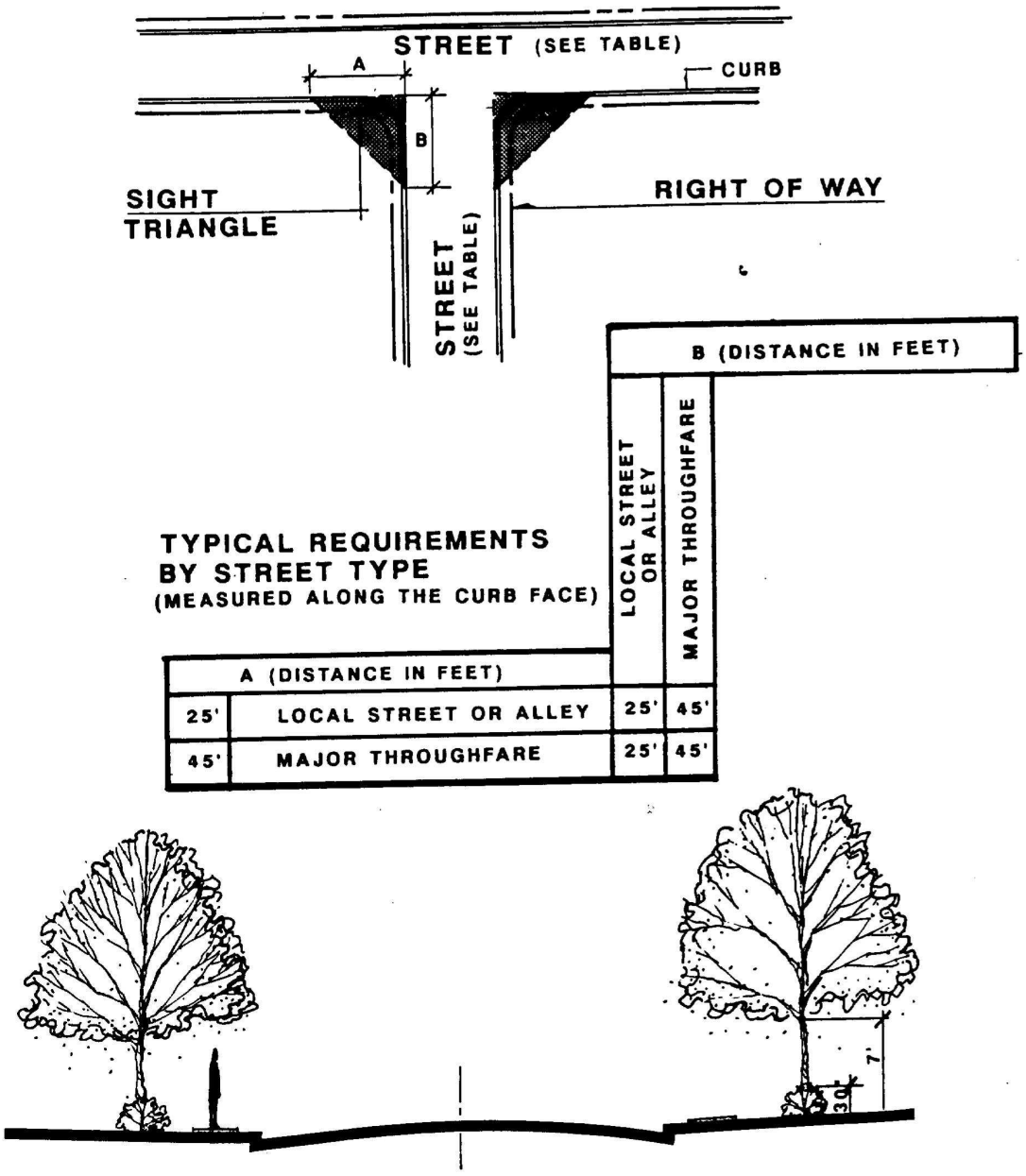
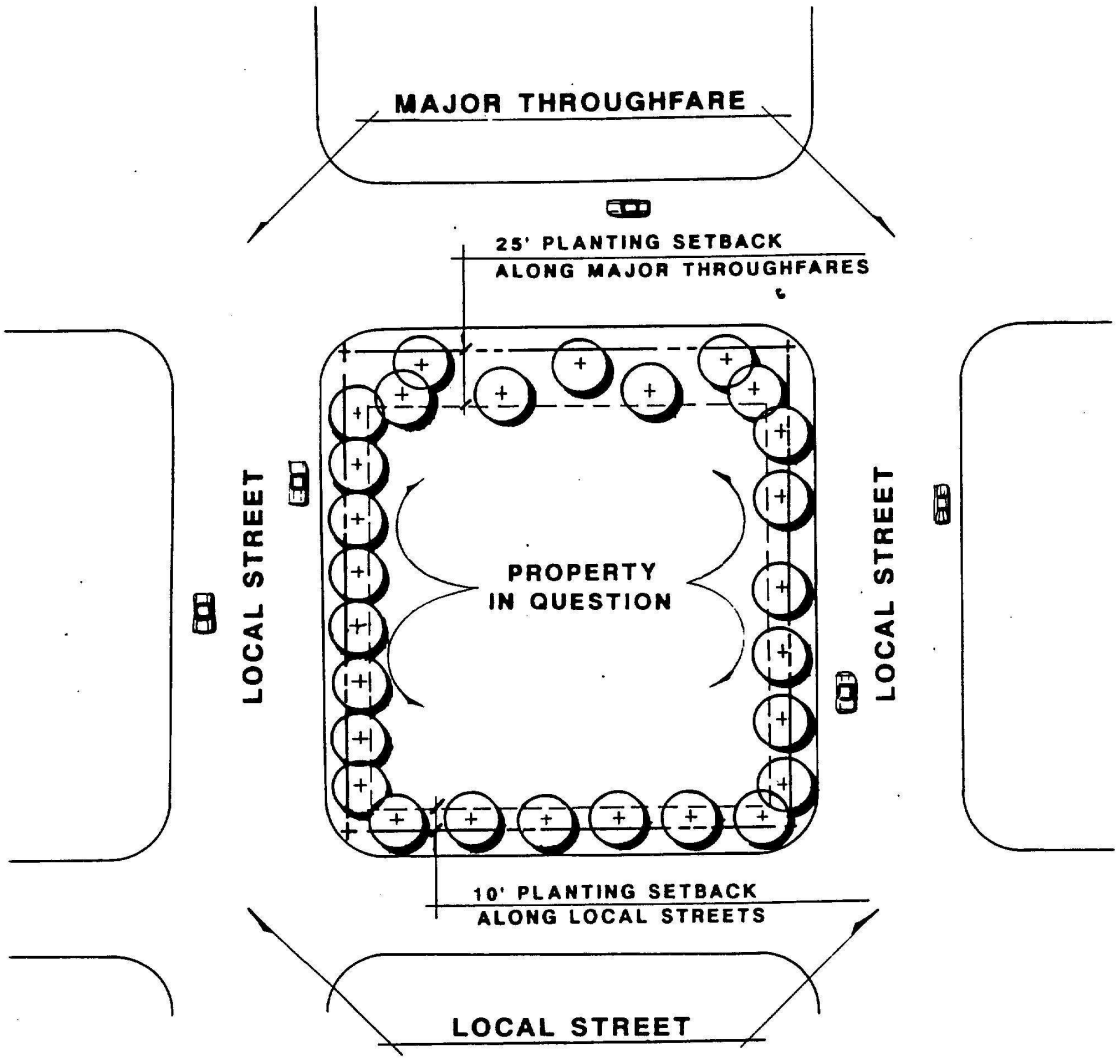


FIGURE B

Street Tree Planting



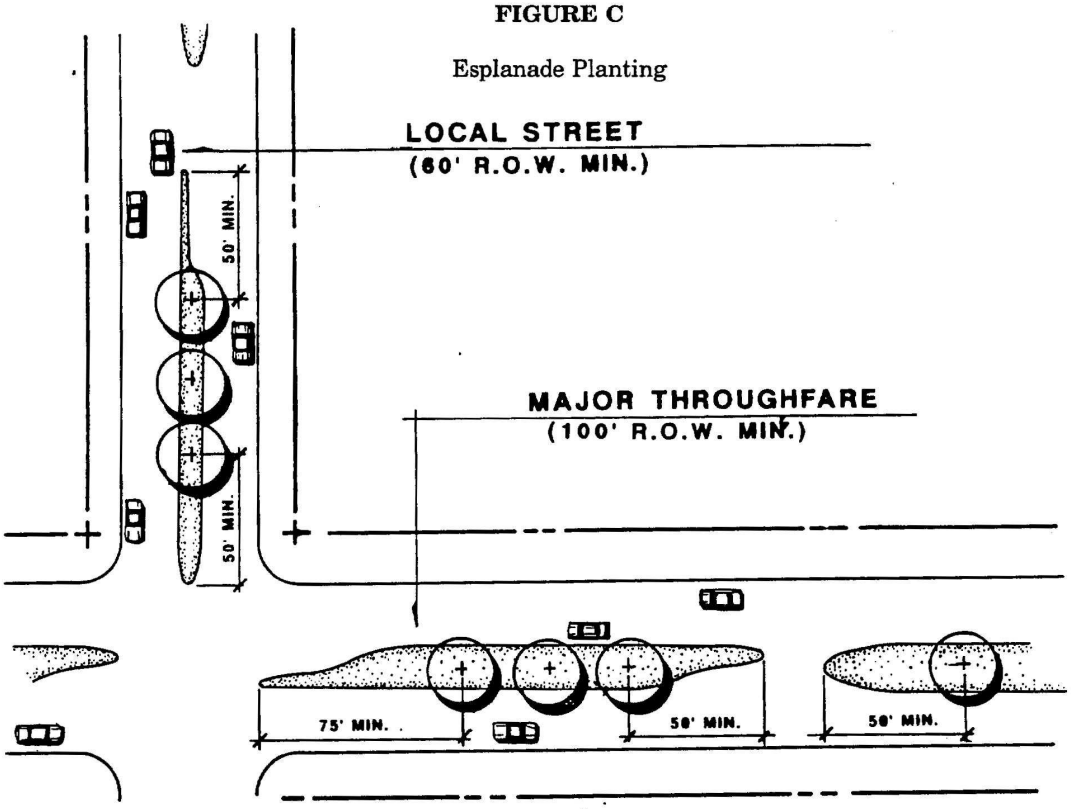
STREET TREE REQUIREMENT

SCALE: 1" = 60'-0"

FORMULA: TOTAL PROPERTY LINE LENGTH ALONG LOCAL OR MAJOR THROUGHFARES DIVIDED BY 30

FIGURE C

Esplanade Planting



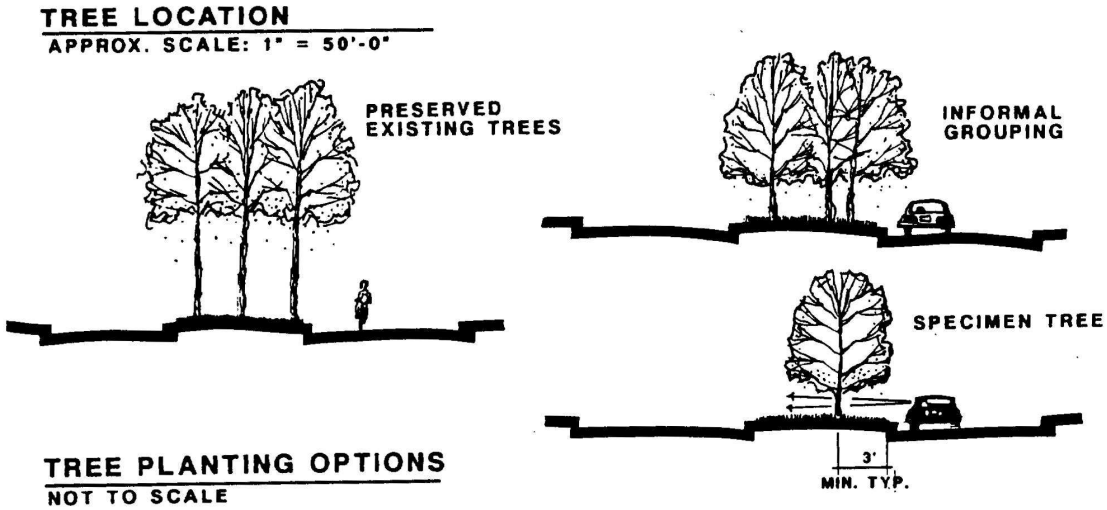
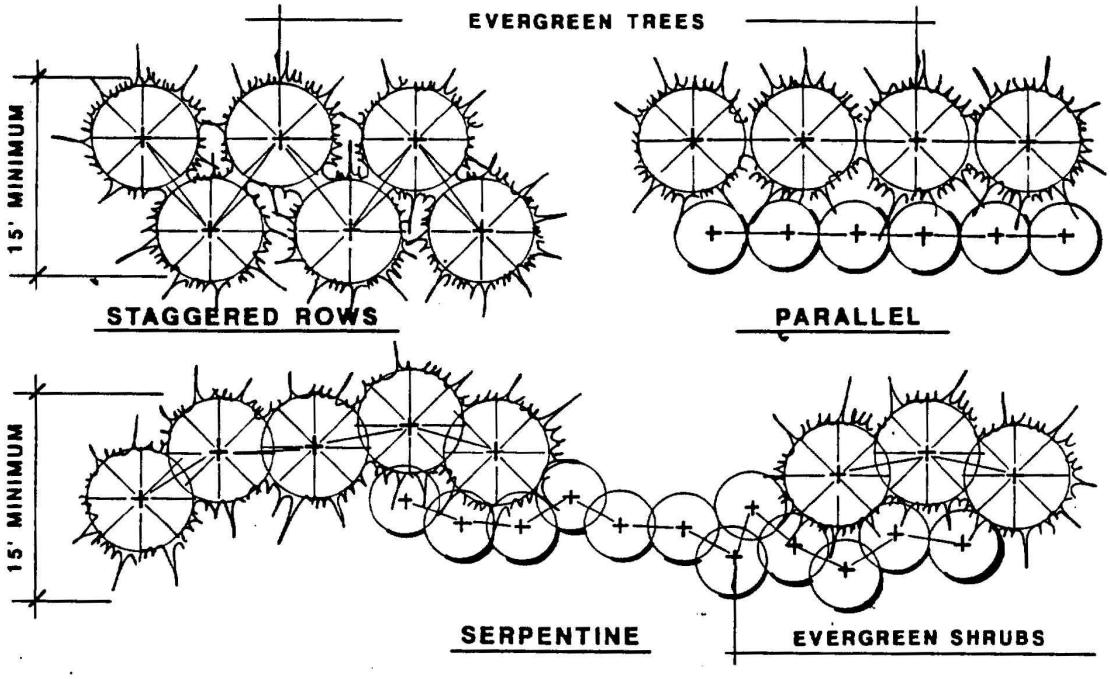


FIGURE D

Screening Evergreen and Parking



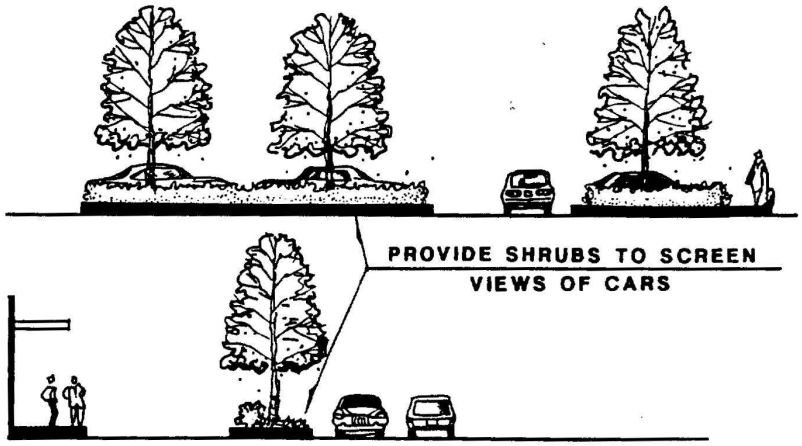
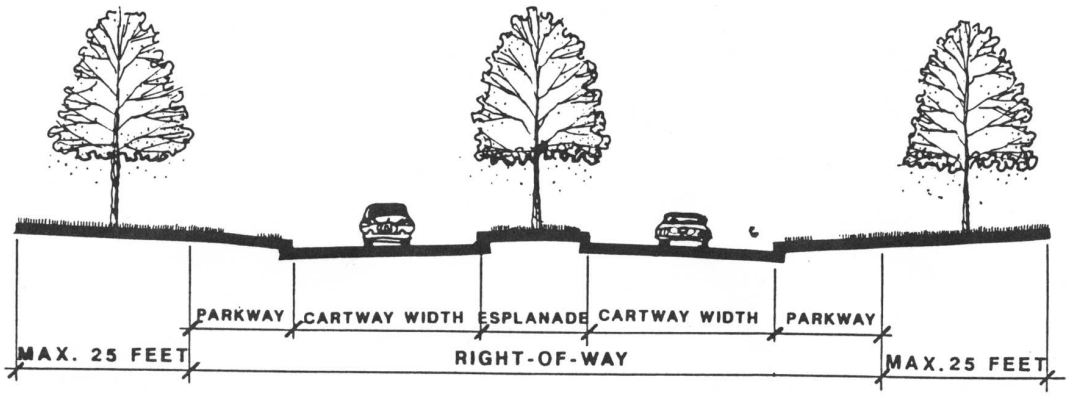
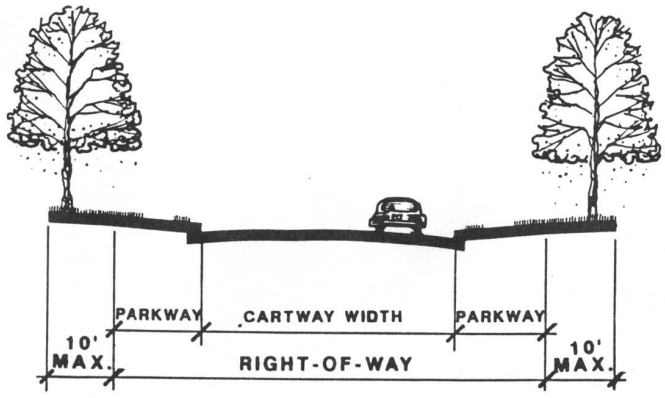


FIGURE E

Rights-of-way Profiles



MAJOR THROUGHFARE / DIVIDED ROADWAY
APROX. SCALE: 1" = 20'-0"



LOCAL STREET
APPROX. SCALE: 1" = 20'-0"

Chapter 34

POLICE AND FIRE PROTECTION*

Art. I.	**In General, §§ 34-1—34-20**
Art. II.	**Police Department, §§ 34-21—34-45**
Art. III.	**Fire Department, §§ 34-46—34-125**
Art. IV.	**News Media Identification, §§ 34-126—34-150**
Art. V.	**Subdivision Security Organizations, §§ 34-151—34-159**
Art. VI.	**Investigation of Employee Misconduct—Police Officers and Firefighters, §§ 34-160—34-170**
Art. VII.	**Disposal of Abandoned, Unclaimed, or Other Property, §§ 34-171—34-199**
Art. VIII.	**Public Safety Video Program, §§ 34-200—34-208**

ARTICLE I. IN GENERAL

Sec. 34-1. Fee for fingerprinting.

(a) The police chief may impose a fee for fingerprinting services. The fee shall be based upon the cost of providing the service as determined by the police chief and shall not exceed the amount stated for this provision in the city fee schedule per set of fingerprints recorded.

(b) The fee authorized under subsection (a) above shall not be imposed for:

(1) Fingerprints recorded at the initiation of the police department in connection with criminal investigation and apprehension functions or other activities relating to law enforcement functions of the police department.

(2) Fingerprints recorded at the request of another law enforcement agency in connection with criminal investigation or apprehension functions.

(3) Fingerprints of minors that are recorded at the request of their parents in connection with child safety, missing children prevention, and related public service functions.

(4) Fingerprints recorded in connection with licenses, permits, or other authorizations that are issued by departments of the city.

(5) Fingerprints that are recorded in connection with applications for employment by the city.

(c) No fee shall be imposed under this section if its imposition is prohibited by a valid and applicable state or federal law, and no fee shall be imposed in excess of any fee limitation established by a valid and applicable state or federal law.

(Code 1968, § 34-103; Ord. No. 79-616, § 1, 4-17-79; Ord. No. 03-1302, § 1, 12-17-03; Ord. No. 1168, § 13, 12-14-2011)

Sec. 34-2. Temporary performance of duties of higher classification by firemen or policemen.

(a) Whenever the holder of a classified position in the fire or police department of the city is absent for one day or more, and, in the opinion of the chief of the fire or police department, it would be in the best interests of the operation of such department to fill the position temporarily, the chief of such department may designate in writing, copies of such designation to be furnished to the civil service department, the holder of a position in the next lower classification to fill such higher position temporarily.

(b) Any person designated under the terms of this section to fill a position in the higher classification temporarily shall be paid the base salary of the higher position plus his own longevity pay during the time he performs the duties thereof.

*__Cross references—__Burglar and fire alarm protective services, Ch. 11; civil service, Ch. 14; city marshal, § 16-41 et seq.; miscellaneous provisions and offenses, Ch. 28; prisoners and prison farm, Ch. 35; notification to police and fire departments of street closing, § 40-29.

(c) The temporary performance of the duties of a higher position under the terms of this section by a person who has not been promoted to such position in accordance with the terms of article 1269m of the Revised Civil Statutes of Texas, and the civil service rules and regulations of the city governing the fire and police departments, shall never be construed to promote such person to the higher position.
(Code 1968, §§ 18-24, 34-5.1; Ord. No. 70-1835, §§ 1—3, 10-20-70; Ord. No. 73-2079, § 1, 11-21-73)

Sec. 34-3. Payment for sick or vacation leave upon firemen's or policemen's death or termination of employment; repayment upon reemployment.

(a) Reserved.

(b) Firefighters or police officers who are members of the classified service of the fire and police departments of the city may accumulate vacation time to a total of 720 working hours; however, any firefighter or police officer who leaves the classified service for any reason shall receive, in a lump sum payment, the full amount of his salary for the period of his accumulated vacation leave, minus any hours of vacation leave previously taken during the calendar year in which the termination occurs. However, any fire fighter or police officer who loses his life, or is forced to leave the classified service, as a result of a line of duty injury or illness, or the beneficiaries of such fire fighter or police officer, shall receive in a lump sum payment the full amount of his salary for the total number of his working hours of accumulated vacation time.

(c) For purposes of determining the amount to which a fireman or policeman or his beneficiaries is entitled under subsections (a) and (b) of this section, "salary" shall mean the authorized base pay of the employee plus the longevity rate he has attained up to the date of separation or death. For purposes of this section, "salary" shall not include educational or training incentive pay or any other form of premium pay except as provided above.

(d) Reserved.
(Code 1968, § 2-35; Ord. No. 71-1592, § 1, 9-1-71; Ord. No. 75-139, § 1, 1-28-75; Ord. No. 76-1882, § 1, 11-2-76; Ord. No. 78-180, § 1, 2-1-78; Ord. No. 90-1138, § 2, 9-19-90; Ord. No. 96-1076, § 5, 10-16-96; Ord. No. 96-1088, § 4, 10-23-96)

Sec. 34-4. Authority of peace officers while under the influence of alcohol.

No peace officer employed by the city shall be entitled to exercise any authority of his or her office while under the influence of alcohol at any time during which the officer is not engaged in the performance of his or her assigned work duties. For purposes of this section, a peace officer shall be considered to be "under the influence of alcohol" if the peace officer has any measurable concentration of alcohol in his or her blood, breath or urine. For purposes of this section "assigned work duties" shall only include times during which the peace officer is actually engaged in work scheduled and paid for by the city, whether during the peace officer's regularly assigned work shift or authorized overtime work for the city.
(Ord. No. 89-1704, § 1, 11-29-89)

Secs. 34-5—34-20. Reserved.

ARTICLE II. POLICE DEPARTMENT*

Sec. 34-21. Created; general duties.

There is hereby created a police department, which together with its officers and employees, is charged with the duties of preserving the public peace; detecting and preventing crimes; arresting violators of the law; protecting the rights of persons and property; preserving the peace at all public meetings and public places; preventing and removing, whenever possible, all nuisances on or in the streets, highways, alleys, waters, and all other places; regulating and controlling vehicular and pedestrian traffic on the streets and alleys; investigating traffic accidents and determining the cause and responsibility for such accidents;

*__Charter reference—__Authority to establish regulate, etc., police department, Art. II, § 16(a).

__Cross references—__Officers and employees generally, § 2-21 et seq.; airport police, § 9-6 et seq.; civil service, Ch. 14; miscellaneous provisions and offenses, Ch. 28; prisoners and prison farms, Ch. 35; traffic, Ch. 45; police to enforce traffic ordinances, § 45-8; authority of police officer to direct traffic, § 45-9.

enforcing the Texas Penal Code; enforcing the penal ordinances of the city, and performing and discharging such other duties as are herein or which may hereafter be imposed upon it or them or any of them by the laws of the state, by the ordinances of the city, by the mayor or by the city council.
(Code 1968, § 34-1; Ord. No. 04-1075, § 10, 10-20-04; Ord. No. 2011-108, § 7, 2-9-2011)

Sec. 34-22. Chief of police generally.

There is hereby created the office of the chief of police in the police department of the city. The chief of police shall be appointed by the mayor and confirmed by the city council. Subject only to the orders and actions of the city council and mayor, the chief of police shall be the executive officer and director of the police department. He shall have management of the department, shall exercise all of the functions assigned to the department, and shall carry out the provisions of law and of ordinances with respect to such functions.
(Code 1968, § 34-2; Ord. No. 68-1756, § 1, 10-29-68; Ord. No. 05-91, § 9, 1-25-05)

Charter reference—Appointment of heads of administrative departments, Art. VI, § 7a.

Sec. 34-23. Administrative rules and regulations.

The chief of police shall promulgate administrative rules and regulations of the police department, with the approval of the mayor, governing the assignments, conduct, equipment, duties, responsibilities and authority of all officers and employees of the department, in relation to the customary assignments in the department, and

shall specify the kinds of uniforms to be worn and the equipment to be carried by officers and employees, subject to the approval of the mayor and city council, and the times and conditions under which such uniforms shall be worn and equipment carried. Such rules and regulations may further cover such other matters as the chief of police may deem necessary or expedient for the proper conduct of the work of the department and for making effective the provisions of this Code and other ordinances, and not inconsistent therewith. Subject to the city charter, ordinances, and rules and regulations of the civil service commission, the chief of police may punish officers and employees of the department for violation of the rules and regulations promulgated in accordance with this section. All such rules and regulations in effect shall be compiled, and published under the direction of the chief of police, and a copy of every rule and regulation to which he is subject shall be supplied to each officer and employee of the department.
(Code 1968, § 34-3)

Sec. 34-24. Absence or disability of chief of police.

The chief of police shall, from time to time, designate one of the persons holding the rank of assistant chief of police to discharge his duties during any time that the chief of police may be absent or otherwise unable to perform such duties. The person so designated shall be vested with the full authority of the office of chief of police when acting for the chief in that capacity.
(Code 1968, § 34-4)

Sec. 34-25. Temporary officers and police reserve force.

(a) The mayor, in case of a riot, flood, fire, or other public emergency, shall have power to appoint, for temporary service only and not to exceed 30 days, any number of temporary police officers and to discharge the same at will. Such temporary officers shall be paid by the city for service rendered the city in the discharge of their duties at a salary rate to be determined by the mayor.

(b) Pursuant to section 341.012 of the Local Government Code, the chief of police is hereby authorized to establish a police reserve force. The chief may establish rules and regulations governing the police reserve force not inconsistent with the provisions of this section of the Code of Ordinances.

(c) The chief of police may appoint members of a reserve police force who shall serve at the chief's discretion and who shall not receive any pay or other benefits except as provided herein.

(d) No person shall serve as a member of the police reserve force who does not meet the following qualifications:

(1) A member must meet all of the qualifications for licensing as a reserve officer by the Texas Commission on Law Enforcement Officer Standards and Education.

(2) The chief of police may prescribe additional written requirements that are related to the performance of the duties of the police reserve force.

(e) Members of the police reserve force shall serve as peace officers during the actual discharge of official duties. However, an appointment to the reserve forces must be approved by city council before the person is authorized to carry a weapon or otherwise act as a peace officer. After the appointment is approved, the appointee may carry a weapon only when authorized to do so by the chief of police and only when discharging official duties as a peace officer.

(f) The chief of police may call members of the reserve force into service at any time the chief considers it necessary to have additional officers to preserve the peace and enforce the law. Reserve officers may act only in a supplementary capacity to the regular police force may not assume the fulltime duties of regular police officers without complying with the requirements for regular police officers.

(g) The chief of police shall provide all training required for members of the reserve force to be certified by the Texas Commission on Law En-

forcement Officer Standards and Education and may provide additional training, uniforms and equipment as the chief determines is necessary.
(Ord. No. 1968, § 34-5; Ord. No. 91-1324, § 1, 9-18-91)

Sec. 34-26. Pension system.

The city council hereby approves and adopts those acts of the legislature of the state pertaining to police officers' pension systems codified as article 6243g-1 of the Revised Civil Statutes of Texas, as amended, and to such extent as such action may be necessary for the establishment and creation of the fund set out in such article 6243g-1, such fund is hereby established and created. Such article 6243g-1 is hereby referred to, adopted as a part hereof, and incorporated herein by reference as fully as if such article were set out at length herein.
(Code 1968, § 34-6)

Charter reference—Authority for pension system, Art. II, § 20.

Sec. 34-27. Refusing to assist police.

It shall be unlawful for any person, having been summoned or commanded by any policeman for assistance in making an arrest, or in executing any other duty devolving upon him under any law of the city in relation to public offenses within the city, to refuse or neglect to obey such summons or command, provided, however, such policeman shall be dressed in the uniform of the police department or present official police department identification in order for a refusal or failure to obey such summons or command to constitute an offense.
(Code 1968, § 34-10; Ord. No. 76-359, § 1, 3-2-76)

Sec. 34-28. Disposition of certain weapons.

Any pistol, dirk, dagger, knife, slingshot or any weapon prohibited by the Texas Penal Code which comes into the possession of the police department during the course and scope of said department's duties which is not being held as evidence for use in trials or pending cases or which has not been ordered returned to the person entitled to possession of such item by a court of competent jurisdiction, which for a period of not less than 90 days has remained unidentified or unclaimed by the lawful owner after notice to such owner as provided in section 34-29 et seq.*, of this Code, or if the lawful owner cannot be determined shall be destroyed in the presence of three police officers of the rank of lieutenant or higher, who shall make a written report under oath listing the type, make, model and serial number, if any, of the item destroyed, together with the time, date, place and manner of destruction; provided, however, that abandoned pistols which the chief of police or his designated representative has determined to be serviceable may be transferred to the permanent city equipment inventory of the police department for usage by said department in the daily course of its business as if such pistols had been originally purchased by the city for that purpose; and provided further that in the case of abandoned pistols which have been classified as "antiques" or "collector's items" by a qualified expert in the firearms field, such pistols shall be disposed of pursuant to the provisions of article IV of this chapter. The chief of police or his designated representative shall determine and select such qualified expert in the firearms field to classify such pistols.
(Code 1968, § 34-14; Ord. No. 77-563, § 1, 3-16-77)

*It should be noted that the provisions of former § 34-29 can now be found within Article VII of this chapter.

Secs. 34-29—34-34. Reserved.

Editor's note—Ord. No. 00-394, § 1, adopted May 17, 2000, repealed §§ 34-29—34-34 in their entirety. Formerly, said sections pertained to "unclaimed property", "abandoned property", "disposition list" defined; disposal of abandoned property by chief of police; acceptable proof of ownership required to assert claim to unclaimed or abandoned property; final disposition of abandoned property and disposition of perishable property or goods. See the Code Comparative Table.

Sec. 34-35. Workweek; overtime compensation; sick leave; vacation.

(a) Definitions. Unless otherwise indicated, the following words shall, for purposes of this section, have the following meanings:

(1) *Compensatory time* or *compensatory time off.* Hours during which eligible employees are not working and which are not counted as hours worked during the applicable workweek for purposes of over-

time compensation and for which the employee's is compensated at the employee's regular rate.

(2) *Eligible employee.* All classified members of the police department subject to the provisions of article 1269m of the Revised Civil Statutes of Texas.

(3) *Overtime.* Time actually worked in excess of the 40 hours in a workweek.

(4) *Regular rate of pay.* The regular rate of pay shall include:

a. Base pay;

b. Longevity pay;

c. Educational incentive pay;

d. Assignment pay; and

e. Higher classification pay, where authorized.

The term "regular rate of pay" shall not include compensation excluded under Section 7(e) of the Fair Labor Standards Act of 1938, as amended or the interpretative regulations and administrative or judicial opinions construing that section.

(5) *Time actually worked* or *actual work.* The time the employee is actually on duty or on a council declared holiday, on authorized sick leave, vacation leave, compensatory time off, death in the family leave or any other authorized leave. Hours spent by a police officer doing the work of an injured or ill police officer pursuant to section 26(h) of article 1269m shall not count as time actually worked for purposes of overtime compensation.

(6) *Workweek.* The workweek shall consist of a maximum of 40 hours of actual work within the consecutive 168-hour period beginning with the day shift Saturday.

(b) Eligible employees shall have a regularly scheduled workweek of 40 hours on a schedule established by the department.

(c) The police chief shall cause to be maintained accurate, complete and permanent records of all employee attendance and time actually worked during each workweek, and shall make reports of attendance and time actually worked as may be prescribed by the civil service commission. He shall certify the correctness of the reports. The reports shall be forwarded to the human resources department on a weekly basis.

(d) All eligible employees shall be compensated for working overtime beyond their regularly scheduled workweek by the payment of either monetary compensation at the rate of 1½ times their regular rate of pay or compensatory time at the rate of 1½ hours for each overtime hour worked. The following shall apply to the payment of overtime compensation:

(1) The chief of police or his designated subordinate shall verify that the overtime is needed to complete a required city service or operation.

(2) Any eligible employee shall elect to have his or her overtime paid in cash or compensatory time. Such election shall be made on a form prescribed by the chief and filed with the department's payroll clerk prior to the end of the applicable pay period. Failure to file the prescribed form will be deemed to be an election for compensatory time. Where overtime is paid in cash it shall be paid in the pay period in which it is earned or as soon thereafter as is possible, taking into consideration both the work cycle and the payroll system used.

(3) Where the employee is granted compensatory time the following shall apply.

a. The number of hours of compensatory time which may be accumulated shall not exceed 480.

b. Accrued compensatory time which is given must be used within 365 calendar days from the date accrued, provided that it does not unduly disrupt departmental operations. The police chief shall issue appropriate regulations governing the use of compensatory time.

c. Accrued compensatory time not taken within 365 days from the date of accrual shall be paid for, in cash, at the greater of:

1. The employee's regular rate of pay over the last three years of employment by the city preceding the date of payment; or

2. The employee's regular rate of pay as of the end of the pay period preceding the date of payment.

Such payment shall be made in the pay period following the expiration of the 365-day period.

d. The police department shall maintain detailed records of the accumulation and use of compensatory time on a form prescribed by the human resources director.

e. Accumulated compensatory time shall be used in accordance with the first-in-first-out (FIFO) accounting principle.

f. Any compensatory time accrued prior to April 15, 1986 and not used shall be carried on the records of the department until such time as it is used by the employee. The employee shall be entitled to monetary compensation for any compensatory time accrued prior to April 15, 1986, subject to the preceding limitations and restrictions.

(e) The police chief, or a designated subordinate may, subject to the operational requirements of the department, require an employee to work on a holiday subject to the following:

(1) An employee who is scheduled to work on a holiday may be given a day off in the same workweek in lieu of the holiday or the employee shall receive half-pay in addition to regular pay for the hours actually worked on the holiday.

(2) An employee who is called to duty on a holiday by virtue of an operational emergency shall be paid time and one-half for the hours actually worked on such holiday in addition to regular pay for the holiday.

(3) Where an employee's regularly scheduled day off falls on a holiday, the employee shall, subject to the operational requirements of the department, be given a day off in lieu of the holiday.

(4) For purposes of scheduling a holiday where an employee is unable to take the holiday as specified in (e)(1) or (e)(3) above, a holiday shall have an hour value equal to the number of hours in the employee's regularly scheduled shift or workday. However, for purposes of computation of overtime, the holiday shall have a value of eight hours.

(5) When a council declared holiday occurs during any paid leave of absence (vacation, sick time, injury on duty, etc.) the holiday is considered observed and that day's absence shall not be charged against the paid leave.

(f) The police chief may prepare and issue administrative guidelines to implement the provisions of section 26(h) of article 1269m wherein police officers are authorized to voluntarily do the work of an injured or ill police officer. The police department shall maintain records of all such assumed duty and the pay of the sick or injured police officer shall be continued only for that time during which a volunteer actually works on the behalf of the sick or injured police officer. This subsection shall provide the sole mechanism by which police officers may substitute themselves in the performance of the duties of another police officer.

(g) Employees of the police department who are classified pursuant to chapter 143 of the Texas Local Government Code, shall be granted sick leave consistent with applicable provisions of state law and article III of chapter 14 of this Code.

(h) Employees of the police department classified pursuant to article 1269m of the Revised Civil Statutes of Texas, shall earn 15 days of vacation with pay per year to be accrued at a

rate of 1¼ days per month. After 15 years of service employees shall be entitled to a vacation according to the following schedule:

16 years	16 days
17 years	17 days
18 years	18 days
19 years	19 days
20 years	20 days
21 years	21 days
22 years	22 days
23 or more years	22 days

Employees whose absences on authorized vacation leave are for periods other than a full working day as defined herein shall be assessed vacation leave in proportion to the number of full working days or fractions thereof they are absent.

(i) *Prenatal wellness leave.* Eligible employees of the police department who are classified pursuant to Chapter 143 of the Texas Local Government Code shall receive a maximum of 160 hours of paid prenatal leave for prenatal wellness healthcare appointments and other absences related to the pregnancy from the first date the leave is used in a 12-month period, regardless of whether more than one birth occurs within that 12-month period. Such leave shall be compensated at the employee's regular rate of pay plus any longevity or supplemental pays. Unused leave shall not be compensable and shall be forfeited (1) on the date the pregnancy ends; or (2) upon the date the employee separates from employment with the city. The human resources director shall promulgate internal rules and regulations regarding employee eligibility for and use of this leave.

(j) *Paid parental leave.* Eligible employees of the police department who are classified pursuant to Chapter 143 of the Texas Local Government Code shall receive a maximum 320 hours of paid parental leave to bond and care for a child after the birth or placement of a child with the employee for adoption or foster care as from the first date the leave is used in a 12-month period, regardless of whether more than one birth or placement of a child with the employee for adoption or foster care occurs within that 12-month period. Beginning September 1, 2023, eligible employees of the police department who are classified pursuant to Chapter 143 shall receive a maximum of 480 hours of paid parental leave per 12-month period described above. Any unused paid parental leave shall not be compensable and shall be forfeited (1) on the date after the child's first birthday; (2) on the date after one year since placement of a child with the employee for adoption or foster care; (3) when an employee separates from employment with the city; or (4) when the employee moves to a part-time or temporary position, whichever comes first. The human resources director shall promulgate internal rules and regulations regarding employee eligibility for and use of this leave.

(k) *Infant wellness leave.* Eligible employees of the police department who are classified pursuant to Chapter 143 of the Texas Local Government Code shall receive a maximum of 40 hours of infant wellness leave to seek medical care for their infants during the infant's first year after birth. An eligible employee shall not receive more than the maximum allotted amount of infant wellness leave, regardless of whether more than one birth or placement of a child with the employee for adoption or foster care occurs within that 12-month period. Any unused infant wellness leave shall not be compensable and shall be forfeited (1) after the infant's first birthday; or (2) upon the date the employee separates from employment with the city. The human resources director shall promulgate internal rules and regulations regarding employee eligibility for and use of this leave.

(Code 1968, § 34-19; Ord. No. 77-2411, § 2, 11-22-77; Ord. No. 86-490, § 1, 4-9-86; Ord. No. 96-1088, § 5, 10-23-96; Ord. No. 96-1290, §§ 23, 24, 12-4-96; Ord. No. 2022-267, § 3, 4-13-2022, eff. 5-14-2022)

Sec. 34-36. Use of police academy driving track by private persons.

(a) The chief of police or a person designated by him shall issue a permit for the use of the driving track at the city's police academy for low

speed vehicular events upon proper application therefor and payment of the permit fee upon a first come-first served basis if:

(1) The time and nature of the event shall not interfere with the use of the track or any other part of the police academy by the police department, any other city department, or governmental agency requiring or desiring the use thereof;

(2) The event meets the conditions and terms of such regulations as may be adopted from time to time by the chief of police as he may find necessary or desirable to avoid injury to persons or damage to private or public property due to the use of the facility;

(3) The applicant and any other persons, organizations, firms and corporations on whose behalf the application is made have contractually agreed that they will, if granted the permit, jointly and severally, indemnify and hold the city harmless against liability for any and all claims for damage to property or injury to or death of persons arising in any manner out of their use of the facility;

(4) Liability insurance with limits not less than $300,000.00 for each occurrence of property damage and $1,000,000.00 for each person and $1,000,000.00 for each occurrence for bodily injury or death be furnished in a form to protect the city and that evidence of such insurance be by a certificate of insurance or a policy naming the city as coinsured by appropriate endorsement. The insurance policy must be approved by the city attorney prior to the granting of any permit to use the facility.

(b) Any application for use of the driving track at the police academy shall be submitted to the chief of police on a form to be approved by the city attorney and supplied by the police department for that purpose no earlier than 180 days and no later than 30 days prior to the date use of the driving track is desired. The fee for a permit for use of the facility shall be submitted with the application.

(c) The permit fee for use of the driving track at the police academy pursuant to this section is stated for this provision in the city fee schedule for each hour or portion of an hour for which use of the facility is requested. Such fee shall be returned to the permit holder if the permit is withdrawn by the city on the grounds that the event would interfere with the use of the driving track or any part of the police academy by the city or any other governmental agency. The permit fee shall not otherwise be refundable.

(d) A permit issued pursuant to this section shall not grant any property right to the applicant and shall be subject to withdrawal by the city at any time up to and including the date of the proposed use of the driving track if the event will in any way interfere with any use of the driving track or any part of the police academy by the city or any other governmental agency.

(e) No fee may be charged for any spectators at any event held at the track at the police academy pursuant to this section.

(f) No participant, spectator or any person who is on the grounds of the police academy in connection with a low speed vehicular event shall consume or have in his possession any alcoholic beverage while on those grounds.
(Code 1968, § 34-20; Ord. No. 82-33, § 1, 1-12-82; Ord. No. 1168, § 13, 12-14-2011)

Sec. 34-37. Acceptance of donations and loans of tangible property by the chief of police for the Houston Police Museum.

The chief of police or his designated representative is hereby authorized to accept on behalf of the city, without action by the city council, donations and loans of tangible property for the Houston Police Museum. Any loan of tangible property pursuant to the authority of this section shall both be free of charge to the city and be documented by an agreement signed by the lender, which agreement includes all and only the following terms and conditions:

(a) The city shall not be liable for the destruction or loss of an item unless said destruction or loss is due to the gross negligence of City of Houston employees while work-

ing within the course and scope of their employment. In no event shall the city be liable for more than the lesser of the following for any item:

(i) Five thousand dollars; or

(ii) The value of the item as indicated by the lender in the agreement.

(b) It is understood by the lender that all items are subject to gradual inherent deterioration for which the city is not responsible. Although he has no duty to do so, director of the police museum ("director") may fumigate items which in his opinion show evidence of infestation.

(c) The police museum may photograph items for educational and publicity purposes. It is understood that items on exhibit may be photographed by the general public.

(d) The chief of police, through the director, retains the right to determine when, if, and for how long items will be exhibited.

(e) Items will be returned to the lender at the site of the police museum upon 30 days written notice to the director. If the person who comes to take custody of an item is not the lender who signed the loan agreement, the chief of police, through the director, may demand proof that said person is authorized by the owner to take custody of the item. The person taking custody of the item will be required to sign an appropriate receipt prior to the return.

(f) If the police museum closes, the lender will receive notice thereof at the address listed on the loan agreement or at his new address if communicated to the director. Within 30 days of receipt of said notice, lender shall be required to take possession of the item. If the lender does not take possession of the item within said 30-day period, the director will store the item at the lender's risk. If after one year of storage and after reasonable efforts have been made to contact the lender the item is still unclaimed, then in consideration of the item's storage and safe-guarding during such period, the lender shall be deemed to have made an unrestricted gift of the item to the police museum.

(Code 1968, § 34-21; Ord. No. 83-1744, § 1, 10-26-83)

Sec. 34-38. Payment of cost of medical examination for victims of alleged sexual assault where examination requested by police department.

(a) As used in this section:

(1) *Sexual assault* and *aggravated sexual assault* are the offenses defined in §§ 21.011 and 21.021 of the Texas Penal Code.

(2) *Medical examination* includes a medical examination and all laboratory tests related to the alleged offenses of sexual assault and aggravated sexual assault as defined herein.

(b) The chief of the police department is hereby authorized to initiate a voucher for the payment of medical examinations that are requested by an authorized member of such department. Such vouchers shall be based on bills submitted to the police department by the attending physician.

(c) No payment of a voucher for the cost of a medical examination shall be made without the approval of the director of the public health. The director shall review all payments for the appropriateness of the medical procedures and tests performed and the costs thereof. Such review shall be based on generally accepted medical standards for such procedures and fees.

(d) The chief of police may delegate the responsibility for authorizing and paying for such tests to any member of the police department.

(e) The director of the public health may delegate his responsibility for the review provided herein to any member of the Houston Health Department who is licensed to practice medicine in the state.

(Code 1968, § 2-24; Ord. No. 75-386, § 1, 3-11-75; Ord. No. 2015-820, §§ 33, 34, 8-26-2015)

Sec. 34-39. Acts of cruelty or harassment directed at horses of the mounted police.

It shall be unlawful for any person to strike, prod, poke, torment, injure or make any physical contact with a horse, whether mounted or unmounted, which is in use on official duties by an officer of the Houston Police Mounted Patrol, which such person knows or should reasonably believe would tend to irritate, alarm, disturb, frighten or stampede such horse. Any physical action by a mounted patrol officer to use, direct or control his mount shall not be an offense under this section. Any offense under this section which also constitutes an offense under state law shall be punishable as provided by the applicable state law.
(Ord. No. 85-649, § 1, 5-7-85)

Sec. 34-40. Use of police training services by outside agencies.

Priority shall be given in all training courses conducted by the police department to peace officers and peace officer candidates of the city. To the extent that any excess capacity may exist in any class or training course after city needs have been accommodated the police department may allow persons who are employed as peace officers or peace officer candidates by other jurisdictions to attend the class or training course. The chief of police may adopt administrative regulations regarding the offering of training to persons from other jurisdictions. The police chief or such member of the police department as the chief may designate shall establish training fees, registration fees, lab fees, printing fees, and other related fees for any training furnished to persons from other jurisdictions. The fees shall be payable for each person other than a city peace officer or candidate attending each class. The fees shall be based upon the city's cost of providing the services and shall be remitted to the city treasury. All fees shall be subject to the approval of the director of administration and regulatory affairs. The fees approved under this provision shall be included in the city fee schedule.
(Ord. No. 91-975, § 1, 6-26-91; Ord. No. 08-52, § 55, 1-16-08, eff. 1-26-08; Ord. No. 1168, § 13, 12-14-2011)

Sec. 34-41. Immigration procedures.

(a) *Definitions.* Unless otherwise indicated, the following words shall, for purposes of this section, have the following meanings:

(1) *ICE.* U.S. Immigration and Customs Enforcement (ICE) enforces federal laws governing border control, customs, trade, and immigration to promote homeland security and public safety.

(2) *NCIC.* National Crime Information Center database maintained by the Federal Bureau of Investigation.

(3) *TCIC.* Texas Crime Information Center database maintained by the Texas Department of Public Safety.

(4) *Background check.* A routine law enforcement database inquiry conducted through NCIC or TCIC during the course of official duties.

(5) *Criminal warrant.* A warrant issued by a neutral magistrate or judge based upon probable cause that a criminal law has been violated.

(6) *ICE administrative warrant.* An administrative warrant (form I-200/I-205) issued by ICE personnel commanding the arrest of an individual either to conduct removal proceedings or for removal.

(7) *Field encounter.* A temporary investigative or enforcement interaction between an officer and civilian individual, including traffic stops and disturbance interviews.

(8) *ICE detainer.* A request made by ICE through I-247 or a similar or successor form to maintain custody of someone already lawfully arrested and booked, usually in a jail setting.

(b) Pursuant to section 752.053 of the Texas Government Code, nothing in this section shall be construed to prohibit or materially limit cooperation with federal immigration authorities as required by state law or by agreement.

(c) During a field encounter, in accordance with the Fourth Amendment of the U.S. Constitution, officers may temporarily detain an individual as long as reasonably necessary to complete the legitimate purpose of the initial stop or investigation and for other legitimate purposes discovered during the detention. HPD will ensure the policy complies with this reasonable standard.

(d) Each council member shall receive a public quarterly memorandum from HPD concerning the use of City resources for immigration enforcement, excluding information that would jeopardize any ongoing criminal investigation or prosecution. The report shall include anonymized records of:

(1) Each instance where officers inquired into immigration status, including: the offense or ordinance section if any; the reason for the inquiry; the person's race and ethnicity; the number of officers involved; the officer employee numbers of the inquiring officers; and the general location, such as the ZIP code of the incident.

(2) Each instance where officers contacted federal immigration authorities, including ICE, or responded to requests during a field encounter from such federal immigration authorities, including: the reason for the stop, detention, or arrest; the offense or ordinance section if any; whether an administrative warrant, detainer, or criminal warrant was involved; the start and end times of detention; the officer employee numbers of the inquiring officers; the number of individuals taken into federal immigration custody for alleged civil immigration violations if known; the person's race and ethnicity; the number of officers involved; and the general location, such as the ZIP code of the incident.

(3) Notwithstanding any reporting requirement in this section, no information that is confidential by law may be publicly released in any report.

(Ord. No. 2026-0284, § 2, 4-8-2026; Ord. No. 26-0335, §§ 2—5, 4-22-2026)

Secs. 34-42—34-45. Reserved.

ARTICLE III. FIRE DEPARTMENT*

Sec. 34-46. Created; duties generally.

There is hereby created a fire department, the officers and employees of which, excepting those attending the firemen's training school, those designated as apprentice fireman and those who are on probation, are charged with the duty of preventing and extinguishing fires and conflagrations and preventing the loss of human life and property by fire, and doing all such other duties as are imposed upon them by ordinance of the city council. In addition to the duties and functions specifically set forth in this article for the various officers of the fire department, each of such officers and those employees acting under them shall perform such other and further duties as may be required of them by the mayor or their superior officers, or by the provisions of the state law, the Charter and ordinances of the city.

(Code 1968, § 18-1; Ord. No. 73-2079, § 1, 11-21-73)

Sec. 34-47. Administration division; duties generally.

The administration division of the fire department and its personnel shall supervise and manage the fire department and shall be charged with the primary duty of seeing that the functions and duties of such department and each division and action thereof are duly performed and carried out, and shall do and perform, or cause to be done and performed, such other duties and functions that may be assigned to or required of the fire department, any of its divisions, sections and personnel by state laws, the provisions of the Charter and ordinances of the city and by order of the mayor.

(Code 1968, § 18-2; Ord. No. 73-2079, § 1, 11-21-73)

***Charter reference—**Authority to establish, maintain, etc., fire department, Art. II, § 8.

Cross references—Officers and employees generally, § 2-21 et seq.; fire department emergency ambulance service, § 4-9; building constituting fire hazard generally, § 10-296 et seq.; dangerous buildings, § 10-326 et seq.; civil service, Ch. 14; authority of fire department officer to direct traffic, § 45-10; fire hydrants standard pipes, etc., generally, § 47-27 et seq.

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Sec. 34-48. Fire prevention division; duties generally.

The fire prevention division of the fire department and its personnel shall be charged with the primary duty of enforcing all laws of the state and ordinances of the city covering the following:

(1) The prevention of fires.

(2) The storage and use of explosives and inflammables.

(3) The installation and maintenance of automatic and other fire alarm systems and protection systems, fire extinguishers and equipment.

(4) The maintenance and regulation of fire escapes.

(5) The means and adequacy of exits in cases of fires from factories, schools, boarding homes, as defined in section 28-451 of this Code, lodging facilities, as defined in section 28-601 of this Code, convalescent homes, hotels, asylums, hospitals, churches, public halls, theaters, and in all other places where numbers of persons work, live, or congregate from time to time for any purposes.

(6) The investigation of causes, origin and circumstances of fire.

(7) The conducting of fire prevention campaigns and the circulation of fire prevention literature, for the benefit of civic clubs, labor organizations, business and commercial enterprises, schools, factories, boarding homes, as defined in section 28-451 of this Code, lodging facilities, as defined in section 28-601 of this Code, hotels, lodges, hospitals, convalescent homes, churches, halls, theaters and the general public in the interest of fire prevention and public safety.

(8) Such other duties as may be imposed from time to time by the mayor, the laws of the state, ordinances of the city, and by the chief of the fire department and the fire marshal.

(Code 1968, § 18-3; Ord. No. 73-2079, § 1, 11-21-73Ord. No. 2018-225, § 11, 3-22-2018)

Sec. 34-49. Auxiliary fire division.

The auxiliary fire division of the fire department and its personnel shall supervise the program and work of the auxiliary firemen in the city and shall do and perform, or cause to be done and performed, such other duties and functions as may be assigned to or required of such division and its personnel by order of the mayor, by the chief of the fire department, and by the provisions of state laws, the Charter and ordinances of the city.

(Code 1968, § 18-4; Ord. No. 73-2079, § 1, 11-21-73)

Sec. 34-50. Divisions of fire department; general duties and responsibilities of each division.

(a) The fire department shall consist of three divisions, to be known as the fire suppression division, the fire alarm division and the fire prevention division.

(b) The fire suppression division and its personnel shall be charged with the primary duty of extinguishing fires and conflagrations and preventing the loss of human life and property by fire.

(c) The fire alarm division of the fire department and its personnel shall be charged with the primary duty of operating the fire alarm system in the city, and performing or causing to be performed such other duties and functions as may be assigned to or required of it or them by the mayor, the chief of the fire department, by state law and the provisions of the Charter or ordinances of the city.

(d) The fire prevention division and its personnel shall be charged with the primary duty of conducting inspections, reviewing plans for

construction and conducting public information campaigns to reduce the loss of life and property by fire.

(e) In addition to the duties of the divisions and their personnel, as hereinabove set out, each division and its personnel shall do and perform, or cause to be done and performed, such other duties and functions as may be assigned to or required of such section by the mayor, the fire chief, and the provisions of the state law, the Charter and ordinances of the city.
(Code 1968, § 18-5; Ord. No. 73-2079, § 1, 11-21-73; Ord. No. 2010-803, § 9, 10-13-2010)

Sec. 34-51. Employee regulations generally.

All employees of the fire department shall be employees of the department and not of the several divisions or sections of divisions thereof. The title of each of the positions created in this article, as well as the provisions of this article setting forth the primary duties and functions of the divisions and sections of the fire department and its personnel, describe generally the duties and functions to be required of and performed by the employees holding such positions, but such employees shall do and perform such other and further duties and functions as may be required of them from time to time by order of their superior officers, the mayor, and by the provisions of the state law, the Charter and ordinances of the city. The holders of the positions assigned herein to a particular division or section of the fire department may be reassigned or transferred to do the same or related work from one division to another, or from one section to another, in either the same division or another, temporarily or permanently, or reassigned or retransferred by the chief of the fire department at his discretion; provided, however, no change shall be made in the rank, title or salary of any employee unless such change shall have the approval of the mayor and be in conformity with the Charter, ordinances, and the rules and regulations of the civil service commission. The title of each of the holders of the positions herein created shall be in accordance with the terms of this article.
(Code 1968, § 18-6; Ord. No. 73-2079, § 1, 11-21-73)

Sec. 34-52. Chief generally.

(a) *Appointment; qualifications.* The chief of the fire department shall be appointed by the mayor and confirmed by the city council. No person shall be appointed to the office of chief of the fire department unless the person shall have had at least ten years' experience as a firefighter prior to the date of appointment and has served two years of such time either:

(1) In the Houston Fire Department in the rank of senior captain or a higher rank;

(2) In another fire department in a rank that is equivalent in duties and responsibilities to that of senior captain or a higher rank in the Houston Fire Department.

(b) *Oath.* The chief of the fire department, before entering upon his duties, shall take the constitutional oath of office.
(Code 1968, § 18-7; Ord. No. 73-2079, § 1, 11-21-73; Ord. No. 84-1778, § 1, 11-14-84)

Charter reference—Appointment of heads of administrative departments, Art. VI, § 7a.

Sec. 34-53. Functions of chief.

The chief of the fire department, subject to the direction and supervision of the mayor, shall be the executive officer and director of the fire department and the administration thereof, and he shall have full control, supervision and authority over all officers and employees, stations, buildings, apparatus, equipment and other property of the fire department or in the possession thereof. He shall attend such fires in the city as may demand his presence when within his power to do so. He shall exercise and perform or cause to be exercised and performed all of the duties and functions assigned to such department and any of its divisions and sections and shall carry out the provisions of laws and ordinances with respect to such duties and functions, and it shall be his duty to enforce or cause the enforcement of all laws, ordinances and regulations pertaining to the prevention and extinguishment of fires and fire hazards within the city and perform such other duties as are

required of him by the laws of the state, the Charter and ordinances of the city, and the orders of the mayor.
(Code 1968, § 18-8; Ord. No. 73-2079, § 1, 11-21-73; Ord. No. 05-91, § 10, 1-25-05)

Sec. 34-54. Assistant chiefs.

The positions of assistant chief of the fire department shall constitute the second level of command within the department, and the holders thereof shall assist the chief of the fire department in the administration of the department by performing such duties as he may lawfully direct.

Sec. 34-55. Absence or disability of chief.

The chief of the fire department shall, from time to time, designate one of the persons holding the rank of assistant chief of the fire department to discharge his duties during any time that the chief may be absent or otherwise unable to perform such duties. The person so designated shall be vested with the full authority of the office of chief of the fire department when acting for the chief in that capacity.
(Code 1968, § 18-9; Ord. No. 73-2079, § 1, 11-21-73)

Sec. 34-56. Fire marshal.

The holder of the position of fire marshal shall be the assistant chief in charge of the fire prevention division of the fire department and, together with those employees holding the assisting positions within the fire prevention division, shall perform or cause to be performed all of the duties required of such division.
(Code 1968, § 18-10; Ord. No. 73-2079, § 1, 11-21-73; Ord. No. 92-345, § 1, 4-1-92)

Sec. 34-57. Functions of other employees.

The duties and functions of all other employees of the fire department, whose primary duties are not set forth in this article, shall be those set forth in the rules and regulations and classifications of the civil service commission, and the holders of such positions, in conformity with the state laws, the city Charter and ordinances of the city and the rules and regulations of the civil service commission, shall perform such duties and functions or such further or related duties and functions as may be required by the chief of the fire department by those in charge of such divisions of the fire department to which such employees may be assigned or reassigned by the fire chief.
(Code 1968, § 18-16; Ord. No. 73-2079, § 1, 11-21-73)

Sec. 34-58. Police power at fires; authority to command reasonable assistance.

The chief of the fire department and each of his assistants and all officers thereof shall have the same police power at all fires as the police officers of the city have. Any person refusing to comply with any reasonable orders given by the chief of the fire department, or any official in the fire department, shall be deemed guilty of a misdemeanor.
(Code 1968, § 18-19; Ord. No. 73-2079, § 1, 11-21-73)

Sec. 34-59. Workweek; overtime compensation; sick leave; vacation leave.

(a) Definitions. Unless otherwise indicated, the following words shall, for purposes of this section, have the following meanings:

(1) *Compensatory time* or *compensatory time off.* Hours during which eligible employees are not working and which are not counted as hours worked during the applicable workweek for purposes of overtime compensation and for which the employee is compensated at the employee's regular rate.

(2) *Eligible employee.* All classified members of the fire department subject to the provisions of articles 1269m and 1269p of the Revised Civil Statutes of Texas.

(3) *Overtime.* Dependent upon the duty assignment and work cycle of the firemen, overtime shall be that time worked in excess of either:

a. 40 hours in a workweek; or

b. An average number of hours of actual work per week over a calendar year of 46.7 hours as authorized by the provisions of article 1269p.

(4) *Regular rate of pay.* Regular rate of pay shall include:

a. Base pay;

b. Longevity pay;

c. Educational incentive pay;

d. Assignment pay; and

e. Higher classification pay where authorized.

The term "regular rate of pay" shall not include compensation excluded under Section 7(e) of the Fair Labor Standards Act of 1938, as amended, or the interpretative regulations and administrative or judicial opinions construing that section.

(5) *Workweek.* Dependent upon the duty assignment and work cycle of the fireman, the workweek shall be either:

a. Forty hours of actual work within the consecutive one hundred sixty-eight-hour period beginning with the dayshift Saturday; or

b. An average number of hours of actual work per week over a calendar year of 46.7 hours as authorized by the provisions of article 1269p.

(6) *Time actually worked* or *actual work.* The time the employee is actually on duty or on a council declared holiday, on authorized sick leave, vacation leave, compensatory time off, death in the family leave or any other authorized leave, provided that this is for the purpose of overtime calculations dealt with in this section only and not for purposes of determining compliance with article 1269p, section 6(D) of the Revised Civil Statutes of Texas, which shall be governed by state law. Hours spent by a fireman doing the work of an injured or ill fireman pursuant to section 26(h) of article 1269m shall not count as hours worked for purposes of overtime compensation. Hours worked in "substitution" pursuant to subsection (f) hereof shall not be counted as time actually worked for purposes of overtime compensation. Calculation of time actually worked shall commence upon the arrival of the fireman at his or her assigned place of duty for the particular duty day at the time established for the commencement of the work shift.

(b) Eligible employees shall have a regularly scheduled workweek on a schedule established by the department. Any fireman whose duties involve either the extinguishment of fires or the delivery of emergency medical services shall be entitled to overtime pay for those hours in excess of the scheduled work cycle as established pursuant to article 1269p. Any fireman whose duty assignment is not described by the foregoing shall be entitled to overtime pay for all time actually worked in excess of his or her forty-hour workweek.

(c) The fire chief shall cause to be maintained accurate, complete and permanent records of all employee attendance and time actually worked during each workweek. He shall make reports of attendance and time actually worked as may be prescribed by the civil service commission. He shall certify the correctness of the reports. The reports shall be forwarded to the human resources department on a weekly basis.

(d) All eligible employees shall be compensated for working overtime beyond their regularly scheduled workweek by the payment of either monetary compensation at the rate of 1½ times their regular rate of pay or compensatory time at the rate of 1½ hours for each overtime hour worked. The following shall apply to the payment of overtime compensation:

(1) The fire chief or his designated subordinate shall verify that the overtime is needed to complete a required city service or operation.

(2) Upon request of the fireman, the fire chief may, in his discretion, grant compensatory time in lieu of cash payment for overtime. Where overtime is paid in cash it shall be paid in the pay period in which it is earned or as soon

thereafter as is possible, taking into consideration both the work cycle and the payroll system used.

(3) Where the employee is granted compensatory time the following shall apply:

a. The number of hours of compensatory time which may be accumulated shall not exceed 480.

b. Accrued compensatory time which is given must be used within 365 calendar days from the date accrued, provided that it does not unduly disrupt departmental operations. The fire chief shall issue appropriate regulations governing the use of compensatory time.

c. Accrued compensatory time not taken within 365 days from the date of accrual shall be paid for, in cash, at the greater of:

1. The employee's average regular rate of pay over the employee's last three years of employment by the city preceding the date of payment; or

2. The employee's regular rate of pay as of the end of the pay period preceding the date of payment.

Such payment shall be made in the pay period following expiration of the three hundred sixty-five-day period.

d. The fire department shall maintain detailed records of the accumulation and use of compensatory time on a form prescribed by the human resources director.

e. Accumulated compensatory time shall be used in accordance with the first-in-first-out (FIFO) accounting principle.

f. Any compensatory time accrued prior to April 15, 1986 and not used shall be carried on the records of the department until such time as it is used by the employee. The employee shall not be entitled to monetary compensation for any compensatory time accrued prior to April 15, 1986.

(e) All classified firefighters of the fire department who are subject to the provisions of chapter 142 and chapter 143 of the Local Government Code shall be entitled to the same number of holidays or days in lieu thereof as are granted to all other employees of the city as provided below:

(1) All holidays shall have an accrual value of eight hours. When a classified employee is unable to take the holiday, he or she shall have eight hours posted to his or her accrued holiday balance. When an accrued holiday day is taken in lieu of the regularly scheduled holiday, eight hours will be charged; however, its usage value will be dependent upon the shift worked by the classified employee at the time the day in lieu of the holiday is taken. For each holiday accrued, an employee shall receive hours off as follows:

a. *A classified employee in the Emergency Operations Division assigned to the average of 46.7 hours per week work schedule:* 12 hours.

b. *A classified employee in the Office of Emergency Communications assigned to a 12-hour work day:* 12 hours.

c. *A classified employee assigned to a ten-hour work day:* 10 hours.

d. *Any other classified employee:* 8 hours.

(2) Where a holiday falls on a regularly scheduled day off, any employee so affected shall accrue the holiday in the manner described in subsection (e)(1) above.

(3) Employees in the Emergency Operations Division and assigned to the average of 46.7 hours per week work schedule who are normally scheduled to work on the actual dates of July 4th, December 24th, December 25th, and January 1st, as well as the following City approved Holidays (Martin Luther King Jr. Day, Memorial

Day, Labor Day, Veteran's Day, Thanksgiving Day, and the day after Thanksgiving Day) shall accrue two holidays, provided the member is physically on-duty and completes the entire 24-hour shift, beginning at 0630 hours of the holiday in question. The holidays will accrue as two eight-hour accruals for the holiday shift worked.

Employees in the Emergency Operations Division, not normally scheduled to work, that are called in to work on the actual dates of July 4th, December 24th, December 25th, and January 1st, as well as the following City approved Holidays (Martin Luther King Jr. Day, Memorial Day, Labor Day, Veteran's Day, Thanksgiving Day) shall accrue one eight-hour accrual for the holiday shift worked.

(4) Employees in the Emergency Operations Division and assigned to the average of 46.7 hours per week work schedule who are not normally scheduled to work, that are called in to work on the actual dates of July 4th, December 24th, December 25th and January 1st, as well as the following City approved Holidays (Martin Luther King Jr. Day, Memorial Day, Labor Day, Veteran's Day, Thanksgiving Day, and the day after Thanksgiving Day) shall be paid at the rate of time and one-half the hourly rate for actual hours worked during the 24-hour period beginning at 0630 hours of the holiday in question in lieu of the extra board straight time rate.

(5) When a holiday occurs during any paid leave of absence (vacation, sick time, injury on duty, etc.), the holiday is considered to have not been observed and the holiday shall be accrued and that day's absence will be changed against paid leave.

(6) Any classified employee separates from employment and has an accrued holiday leave-balance shall be paid for such holidays. Any classified employee hired on or after July 1, 2017, who separates from service and has an accrued holiday leave-balance shall be paid for such holidays not to exceed a total of 11 holidays. The limitation of 11 holidays shall not apply to a classified employee who leaves the classified service because of disability or death, and in such event, the employee, or his/her estate, shall be paid for all of the accrued holiday balance. All holidays for which payment is made upon separation, disability or death shall be valued at eight hours, regardless of the scheduled work hours or duties assigned to the firefighter at the time they were earned.

(f) The fire chief shall prepare and issue administrative guidelines to implement the provisions of section 26(h) of article 1269m wherein firemen are authorized to voluntarily do the work of an injured or ill fireman.

(g) If the fire chief elects to permit "substitution," as that term is used in the context of the Fair Labor Standards Act and as the practice is described by section 7 of article 1269p, he shall prepare and issue administrative guidelines to implement the provisions of section 7 of article 1269p subject to all applicable provisions of the Fair Labor Standards Act and the interpretations thereof.

(h) The fire chief shall prepare and issue administrative guidelines regarding on-call status for firemen. Such guidelines shall be structured so as to limit the number of firemen on-call to a number reasonably required to meet the needs of the department. Further, such policy shall conform with the standards pertaining to overtime pay for on-call time under the Fair Labor Standards Act of 1938, as amended, and the interpretations thereof.

(i) Employees of the fire department classified pursuant to article 1269m of the Revised Civil Statutes of Texas, shall be allowed sick leave consistent with the provisions of section 26(b)(a) of article 1269m and Ordinance No. 84-1962, as amended. When a sick day is taken, its value will be dependent upon the shift or duty assignment held by the fireman at the time the day is taken. Any fireman engaged in fighting

fires or the actual delivery of emergency medical services shall receive 12 hours off for each sick day taken. All other classified personnel shall receive eight hours off for each sick day taken. Officers and employees whose absences on authorized sick leave are for periods other than a full working day as defined herein shall be assessed sick leave in proportion to the number of full working days or fraction thereof they are absent.

(j) Officers and employees of the fire department classified pursuant to article 1269m of the Revised Civil Statutes of Texas, shall earn 15 days of vacation with pay per year to be accrued at a rate of 1¼ days per month. After 15 years of service employees shall be entitled to a vacation according to the following schedule:

16 years	16 days
17 years	17 days
18 years	18 days
19 years	19 days
20 years	20 days
21 years	21 days
22 years	22 days
23 or more years . .	22 days

When a vacation day is taken, its value will be dependent upon the shift held by the fireman at the time the day is taken. Any fireman engaged in fighting fires or the actual delivery of emergency medical services shall receive 12 hours off for each vacation day taken. All other classified personnel shall receive eight hours off for each vacation day taken. Officers and employees whose absences on authorized vacation leave are for periods other than a full working day as defined herein shall be assessed vacation leave in proportion to the number of full working days or fractions thereof they are absent.

(k) *Prenatal wellness leave.* Eligible employees of the fire department who are classified pursuant to Chapter 143 of the Texas Local Government Code shall receive a maximum of 160 hours of paid prenatal leave for prenatal wellness healthcare appointments and other absences related to the pregnancy from the first date the leave is used in a 12-month period, regardless of whether more than one birth occurs within that 12-month period. Such leave shall be compensated at the employee's regular rate of pay plus any longevity or supplemental pays. Unused leave shall not be compensable and shall be forfeited (1) on the date the pregnancy ends; or (2) when an employee separates from employment with the city. The human resources director shall promulgate internal rules and regulations regarding employee eligibility for and use of this leave.

(l) *Paid parental leave.* Eligible employees of the fire department who are classified pursuant to Chapter 143 of the Texas Local Government Code shall receive a maximum 320 hours of paid parental leave to bond and care for a child after the birth or placement of a child with the employee for adoption or foster care from the first date the leave is used in a 12-month period, regardless of whether more than one birth or placement of a child with the employee for adoption or foster care occurs within that 12-month period. Beginning September 1, 2023, eligible employees of the fire department who are classified pursuant to Chapter 143 shall receive a maximum of 480 hours of paid parental leave per 12-month period described above. Any unused paid parental leave shall not be compensable and shall be forfeited (1) on the date after the child's first birthday; (2) on the date after one year since placement of a child with the employee for adoption or foster care; (3) when an employee separates from employment with the city; or (4) when the employee moves to a part-time or temporary position, whichever comes first. The human resources director shall promulgate internal rules and regulations regarding employee eligibility for and use of this leave.

(m) *Infant wellness leave.* Eligible employees of the fire department who are classified pursuant to Chapter 143 of the Texas Local Government Code shall receive a maximum of 40 hours of infant wellness leave to seek medical care for their infants during the infant's first year after birth. An eligible employee shall not receive more than the maximum allotted amount of infant wellness leave, regardless of whether more than one birth or placement of a child with the employee for adoption or foster care occurs within that 12-month period. Any unused infant wellness leave shall not be compensable and shall be forfeited (1) after the infant's first

birthday; or (2) upon the date the employee separates from employment with the city. The human resources director shall promulgate internal rules and regulations regarding employee eligibility for and use of this leave.
(Code 1968, § 18-20; Ord. No. 73-2079, § 1, 11-21-73; Ord. No. 74-2184, § 1, 12-17-74; Ord. No. 77-2411, § 1, 11-22-77; Ord. No. 79-1035, § 1, 6-21-79; Ord. No. 80-2873, § 1, 9-30-80; Ord. No. 81-1319, § 1, 7-8-81; Ord. No. 86-489, § 1, 4-9-86; Ord. No. 86-517, § 1, 4-15-86; Ord. No. 92-1412, § 1, 10-28-92; Ord. No. 94-189, § 1, 2-23-94; Ord. No. 94-1005, § 1, 9-21-94; Ord. No. 96-1290, §§ 25, 26, 12-4-96; Ord. No. 98-669, § 1, 8-19-98; Ord. No. 2017-462, §§ 7.4, 7.5, 6-28-2017, eff. 7-1-2017; Ord. No. 2022-267, § 4, 4-13-2022, eff. 5-14-2022)

Sec. 34-60. Retirement age.

No fireman shall be permitted to remain on active duty with the fire department of the city after the date on which he attains the age of 65 years or over, but any such fireman shall he retired from the service on the birthdate at which he attains the age of 65 years or over.
(Code 1968, § 18-21(g); Ord. No. 73-2079, § 1, 11-21-73)

Sec. 34-61. Hazardous materials response team service; charges.

(a) In this section, the following words, terms, and phrases shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

Business entity or person means any corporation, sole proprietorship, partnership, limited partnership, person, firm or other similar entity engaged in any commercial, business or industrial transactions of any nature.

Fire chief shall mean the fire chief of the city and such persons as he may designate to perform his duties under this section.

Hazardous materials means any flammables, explosives, radioactive materials, hazardous waste, toxic substances or related materials, including substances defined as "hazardous substances," "hazardous materials," "toxic substances" or "solid wastes" in or pursuant to the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 as amended, 42 U.S.C. § 9601, et seq.; the Hazardous Materials Transportation Act, 49 U.S.C. § 1801, et seq.; the Resource Conservation and Recovery Act of 1976, 42 U.S.C. § 6901, et seq.; the Toxic Substances Control Act, as amended, 15 U.S.C. § 2601, et seq.; or the Texas Solid Waste Disposal Act, as amended, Texas Health & Safety Code § 361.001, et seq.

Hazardous materials response team or *team* means the hazardous materials response team of the city's fire department.

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Responsible party means, jointly and severally, all persons involved in the possession, ownership or transportation of any hazardous material that is released or abandoned, or who have legal liability for the causation of an incident resulting in the release or abandonment of any hazardous material.

Service means a response by the team to an incident involving a leakage, spill and/or other release and/or abandonment of any hazardous material.

Service call means the period of time from the arrival of the team at the site where the service is to be performed to the return of the team to on-call status at the incident site.

(b) In order to partially defray the costs incurred by the city in providing service by the team, charges are hereby established to be paid by and collected from the responsible party. As an alternative means of recoupment of some of the costs of hazardous materials service there is hereby established a voluntary program by which any business entity or person may choose to pay an annual contribution to the city in order to exempt such entity or person from the necessity of paying specific service charges for any incident for which that entity or person bears responsibility for a period of one year. Any business entity or person may be exempt from the charges specified for the services of the team for any hazardous materials incident occurring within a period of one year; provided that the business entity or person has made a voluntary contribution for that year. The amount of the charges and of such voluntary annual contributions shall be as authorized by city council motion from time to time upon the request of the fire chief. The charges and contributions authorized under this provision shall be included in the city fee schedule.

(c) Notwithstanding any other provision of this section, any individual who constitutes a responsible party as hereinabove defined shall not be required to pay charges authorized under subsection (b) or to make any voluntary contributions allowed under subsection (b) of this section for the release or abandonment of any hazardous material if all of the following conditions are met:

(1) The individual otherwise responsible or liable for the release or abandonment of a hazardous material is not involved in the possession, ownership or transportation of the hazardous material as the employee, agent or servant of any business entity or person;

(2) The individual involved in the possession, ownership or transportation of the hazardous material released or abandoned is so involved solely for private, noncommercial purposes related to the individual's own residential property, real property or private personal property, and the individual receives or is to receive no compensation for any services involving the hazardous materials; and

(3) The hazardous materials possessed, owned or being transported by the individual are in forms, quantities and containers ordinarily and lawfully available for sale as consumer products to members of the general public.

Provided, however that nothing in this section shall be construed to exempt any individual from compliance with the reporting requirement of subsection (e) of this section.

(d) The city council may by contract enter into mutual aid agreements for hazardous material response services with various persons. No charge shall apply where a contract calls for reciprocal service without charge.

(e) It shall be the duty of each responsible party to report any incident involving any leakage, release, spill or abandonment of any hazardous materials to the fire department dispatcher immediately upon discovery of the same, or as soon thereafter as possible. Any person who violates any provision of this section shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not less than $250.00 nor more than $2,000.00.

(f) This section shall not apply to hazardous materials possessed, owned or transported by the city, the State of Texas (including its political subdivisions) or the federal government.

(g) The service provided by the team is limited to the initial emergency response to a hazardous materials release or abandonment incident and

includes only those stabilization and protective measures deemed necessary and feasible by the team to initially address the immediate threat to the public health and safety. Deployment of the team beyond the scope of the team's resources and capabilities for such an initial response is not contemplated under this section and the city reserves the right to terminate the services of the team at any time after arrival at the site. Protective and stabilization requirements continuing beyond the cessation of service, along with the cleaning up, removal or disposal of hazardous materials, and any testing, monitoring or long-term care of the site of the hazardous materials incident, shall remain the duty of the responsible party. The provisions of this section shall not be construed to excuse or exempt any responsible party from any legal duties, liabilities or costs associated with the hazardous materials release or abandonment other than the costs for the services of the team for the duration of the service call.

(h) The Fire Chief shall promulgate procedures for billing and collection of charges and for collection and processing of voluntary annual contribution payments. The Fire Chief shall have the authority to adopt regulations necessary to implement or enforce this section. The city attorney is authorized and directed to institute any legal proceedings necessary to collect any charges due hereunder.
(Ord. No. 92-1503, § 1, 11-18-92; Ord. No. 94-299, § 2, 3-30-94; Ord. No. 1168, § 13, 12-14-2011)

Sec. 34-62. Adopt-A-Fire Station program.

(a) The Adopt-A-Fire Station program is hereby created. The program shall be used to assist the city in its effort to maintain, refurbish, and renovate fire stations. The director of the general services department and the fire chief shall jointly administer the program and shall promulgate rules and procedures for administering the program.

(b) The fire chief or his designated representative is hereby authorized to accept on behalf of the city, without action by the city council, donations of tangible property and services for the program. All donations of tangible property become the property of the city.

(c) The fire chief shall, periodically, promulgate a list of fire stations that have the greatest need along with a master list of needed tangible property and services for these and all other stations. The donating party may designate a specific fire station to receive a donation, otherwise, donations may be distributed at the discretion of the fire chief. Donations shall meet the following criteria:

(1) The Adopt-A-Fire Station program will accept items included on the program's master list of needed items, supplies, and materials; however, donations of items not on the list may be accepted at the discretion of the fire chief;

(2) Tangible property must be new; and

(3) Except for manufacturer's labels or seals, tangible property must be free from noticeable corporate identifying logos, marks, or advertisements.

(d) The donating party shall apply in writing and the application must be approved by the fire chief or his designated representative prior to the acceptance of any donations. The application shall include at least the following information:

(1) An inventory of items or services to be donated;

(2) Proof of ownership of tangible items; and

(3) For services, proof of insurance for corporate entities and release of liability for individuals.

(e) Valuation of donations for purposes of any applicable tax benefits shall be the responsibility of the donating party.
(Ord. No. 02-976, § 2, 10-30-02; Ord. No. 07-840, § 17, 7-18-07)

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ARTICLE IV. NEWS MEDIA IDENTIFICATION

Sec. 34-126. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Emergency:* A sudden unexpected or unscheduled happening that calls for immediate action.

(2) *Official municipal line:* A discretionary designation by the official in charge in municipal facilities and at municipal events and functions beyond which the general public may not pass. This generally but not exclusively applies to the media facilities in the police department, fire department, and city hall as well as to public events necessitating the presence of the mayor or other public officials.

(3) *Personal card:* A news media identification card issued pursuant to the provisions of this article.

(4) *Police or fire line:* A discretionary designation by the official in charge at a police or fire emergency scene beyond which the general public is restrained.

(5) *Print and electronic media:* Includes newspapers, news-gathering agencies, news photography agencies, motion pictures newsreel agencies, radio broadcasting companies, television companies, and any other medium which is engaged in the gathering and reporting of news events which are issued or presented at regular intervals to the general public or regularly distributed to other news media.

(6) *Regularly:* Occurring at fixed or uniform intervals.

(7) *Routinely:* A regular course of action, i.e., an activity engaged in daily or with reasonable frequency.

(8) *Unauthorized person:* A person who is not a holder of a news media identification card or news media vehicle card or who is not an official or employee of the city with a duty to respond to official scenes or events.

(9) *Vehicle card:* A news media vehicle identification card issued pursuant to the provisions of this article.

(Code 1968, § 2-311; Ord. No. 78-1630, § 1, 8-15-78)

Sec. 34-127. Authority of chief of police to issue news media identification cards; to whom issued.

The chief of police is hereby authorized to issue news media identification cards (hereinafter referred to as a "personal card") and news media vehicle identification cards (hereinafter referred to as a "vehicle card") to news-gathering representatives of electronic and print media organizations that maintain a news service which regularly covers police, fire and other official municipal events within the City of Houston. Print media qualify if the publication appears on a regular basis. Such cards may also be issued to a self-employed reporter or photographer who routinely covers police, fire, and official municipal events. The representative or the self-employed reporter or photographer shall be principally, actively, and routinely employed, by a news media organization qualified under this article, to gather information or pictures for distribution or broadcast to the general public as news. The exclusive purpose of the personal and vehicle cards shall be to enable the bearer thereof to pass through established police, fire and official municipal lines in order to cover news events occurring behind such lines or to utilize the press facilities located in city hall, the Houston Police Department, or the Houston Fire Department.

(Code 1968, § 2-312; Ord. No. 78-1630, § 2, 8-15-78; Ord. No. 84-790, § 1, 5-22-84)

Sec. 34-128. Application far personal card and vehicle card; form, contents.

A written application for a personal card and vehicle card shall be submitted by the individual employee to the chief of police on a form to be

provided by the chief of police. An applicant shall be required to furnish at least the following information:

(a) The name, residence address and residence telephone number of the applicant.

(b) The age, weight, height, color of hair and color of eyes of the applicant.

(c) The date of the application.

(d) The date and place of birth of the applicant.

(e) The name, address, and telephone number of the applicant's employer and the name and telephone number of the applicant's supervisor.

(f) The social security number of applicant.

(g) The signature of the editor and/or responsible official of the company verifying the employment of the applicant, the primary duties and responsibilities of the applicant.

(h) The signature of the applicant reflecting that he understands and agrees to the following stipulations as a news media identification card holder (with or without a vehicle card):

(1) He assumes all risks of accidents or injury which might accompany its use.

(2) Neither the personal card nor the vehicle card is transferable.

(3) If the card is presented or used by any person other than the one to whom it is issued, it shall be forfeited forthwith without appeal.

(4) He understands that the right to remain within the designated line at the scene of an emergency is subject to the judgment of the official at the scene.

(5) He shall not allow or use any facsimile or other copy of said cards.

(6) Temporary emergency parking is a privilege authorized by the city council to facilitate public awareness. It does not grant blanket permission to violate parking laws when legal parking is reasonably accessible or when the news assignment is not an emergency as defined in section 34-131.

(i) All applicants requesting a vehicle card shall submit additional information concerning the make and model of the vehicle most likely to be used on assignments, license plate number, and Texas driver's license number.

(j) The application shall also contain a space for the written approval or disapproval by the chief of police and the reasons therefor.

(k) A self-employed reporter or photographer shall submit a letter signed by the editor and/or responsible official of the company stating that applicant covers or will cover police, fire, and official municipal events for the named company. The named company shall meet the criteria of section 34-127.

(Code 1968, § 2-313; Ord. No. 78-1630, § 3, 8-15-78; Ord. No. 84-790, § 2, 5-22-84)

Sec. 34-129. Cards to be issued for current calendar year; contents of personal card.

Each personal card or vehicle card shall be issued for the current calendar year. The personal card shall bear upon its face the following:

(a) The words "City of Houston—News Identification".

(b) The name of the newspaper, news service radio or television station, or the name of the self-employed reporter or photographer represented.

(c) A photograph of the holder.

(d) The right index fingerprint of the holder.

(e) The signature of the holder.

(f) The signature of the chief of police.

(g) The year of issuance imprinted in bold numbers.

(h) The age, weight, height, color or hair, and color of eyes of the holder.

(i) The city seal.
(Code 1968, § 2-314; Ord. No. 78-1630, § 4, 8-15-78)

Sec. 34-130. Personal cardholders to be permitted inside police or fire lines; exceptions; display of personal card.

(a) Personal news media identification cardholders shall be permitted inside police or fire lines, except where such admission would be dangerous to human life or substantially interfere with police or fire fighting activities. The foregoing determination shall be made by the official in charge of the scene to which the card holder seeks entry. Cardholders may take tape recorders, cameras and other photographic equipment into an area within police or fire lines that has been designated by the officer in charge. However, the right to remain within the designated line is subject to the judgment of the official at the scene. Possession of a personal card does not in itself authorize access to buildings or private property located within police or fire lines.

(b) Upon entering police or fire lines, the holder of a personal card shall display the card prominently on his person so as to be readily visible to any official at the scene.
(Code 1968, § 2-3156; Ord. No. 78-1630, § 5, 8-15-78; Ord. No. 84-790, § 3, 5-22-84)

Sec. 34-131. Contents of vehicle card; vehicle card to issue only to holder of personal card; display of card.

(a) The vehicle card shall bear upon its face the following:

(1) The words "City of Houston—News Vehicle Pass Through Police, Fire and Official Lines".

(2) Name of the news-gathering representative and employer news service.

(3) Signature of the chief of police.

(4) Expiration date.

(5) The distinct number of the pass.

(b) News media vehicle identification cards shall be issued only to holders of personal cards. A vehicle card shall be clearly displayed on or through the vehicle windshield and will permit temporary emergency parking of the vehicle at police, fire and official municipal scenes in the city while the cardholder is actually engaged in gathering news or news photographs at or near the location at which such news event is happening and photographs are being taken. This privilege shall not be operative when the parking of a vehicle, in the sound discretion of the senior official present, would be dangerous to human life, obstruct traffic or interfere with the duties of any governmental agency or public utilities corporation at the scene of an emergency.
(Code 1968, § 2-316; Ord. No. 78-1630, § 6, 8-15-78)

Sec. 34-132. Issuance, duration of temporary cards.

Temporary cards, the duration of which shall last no more than one month, may be issued to news media representatives who do not qualify under section 34-127 hereof. Such card may be issued at the discretion of the fire chief, police chief, or mayor or their respective designates.
(Code 1968, § 2-317; Ord. No. 78-1630, § 7, 8-15-78)

Sec. 34-133. Denial of application for cards; grounds for revocation of cards.

(a) An application may be denied by the chief of police for refusal or inability to comply with sections 34-127 and 34-128 herein.

(b) A personal card and/or a vehicle card may be revoked by the chief of police for the following reasons: The holder thereof has resisted officers in the discharge of their duties, delayed or obstructed officers conducting an investigation, has interfered with firemen at a fire, endangered the preservation of public order and safety where police, fire or official municipal lines have been established, or no longer meets the qualifications necessary for the issuance of a card.
(Code 1968, § 2-318; Ord. No. 78-1639, § 8, 8-15-78)

Sec. 34-134. Unauthorized person not to cross police, fire or official municipal lines; counterfeiting, imitating press cards prohibited; card to be used only by person to whom issued; surrender of card upon revocation.

(a) It shall be unlawful for any unauthorized person to cross police, fire or official municipal lines. Any person violating this subsection, upon conviction, shall be fined not less than $100.00 nor more than $500.00.

(b) It shall be unlawful for any person to counterfeit or imitate or attempt to counterfeit or imitate any such press card so issued by the chief of police; nor shall any person use or exhibit, or attempt to use or exhibit, any such press card unless he is the actual authorized holder. Any person violating any of the provisions of this subsection, upon conviction, shall be fined not less than $100.00 nor more than $500.00.

(c) Upon revocation of a personal card and/or vehicle card the same shall be surrendered to the police chief within three days after notice of revocation of such card. Any person who fails to do so shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be fined not less than $100.00 nor more than $500.00.
(Code 1968, § 2-319; Ord. No. 78-1630, § 9, 8-15-78; Ord. No. 92-1449, § 50, 11-4-92)

Sec. 34-135. Appeals board created; composition; appeal from denial or revocation of cards.

There is herein created an appeals board which shall upon application by the person affected promptly review the reasons for denial of an original or renewal application or for the revocation of a news media identification card and/or news media vehicle card and shall issue a decision either affirming or overruling the denial. The appeals board shall be composed of three members to include the director of communications from the office of the mayor, the director of public information from the police department, and the

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director of public relations from the fire department. The holder of said news media card has a right to file a written appeal within seven (7) days from the denial of his/her application or revocation of his/her news media card contesting the decision by serving such a request on the director of communications in the office of the mayor. Upon the filing of such appeal, the board has twenty-one (21) days to issue a written decision either granting or denying the appeal, a copy of which shall be forwarded by certified United States mail, return receipt requested, to the applicant or holder.
(Code 1968, § 2-320; Ord. No. 78-1630, § 10, 8-15-78)

Sec. 34-136. Renewal of cards.

Between January 1st and January 30th inclusive of each calendar year, all news-gathering representatives shall submit a renewal form with updated information for his or her personal and vehicle card which form shall also verify the person's employment as a news-gathering representative and reaffirm that such person is then still in compliance with sections 34-127 and 34-128 above. Such renewal forms shall be supplied by the division of public information in the police department.
(Code 1968, § 2-321; Ord. No. 78-1630, § 11, 8-15-78)

Sec. 34-137. Notification of residence address change; return of card upon termination of employment or change in job duties; report of loss or theft of card.

(a) Each person to whom a card has been issued shall, within five (5) days, notify the board in writing as to each change of his or her residence address.

(b) The holder of a card who has terminated his employment with the employer listed in his application or who no longer covers, on a regular or on-call basis, news events at which police and/or fire lines are established or where press facilities are utilized, shall return such card to the police chief within ten (10) days of such occurrence. A new application shall be submitted as hereinabove described before such person may subsequently be reissued a card.

(c) The holder of a personal card and/or vehicle card shall immediately report the loss or theft of the card to the police chief. This loss shall be reported by letter giving the circumstances concerning the loss or theft thereof. When a duplicate card is required a written request shall accompany an affidavit of the loss.
(Code 1968, § 2-322; Ord. No. 78-1630, § 12, 8-15-78)

Sec. 34-138. Promulgation of rules, regulations to implement article provisions.

The chief of police is hereby authorized to promulgate and issue such rules and regulations as many as be necessary and proper to implement the provisions of this article.
(Code 1968, § 2-323; Ord. No. 78-1630, § 13, 8-15-78)

Secs. 34-139—34-150. Reserved.

ARTICLE V. SUBDIVISION SECURITY ORGANIZATIONS

Sec. 34-151. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Chief of police* shall mean the chief of police of the city, or his duly designated representative.

(2) *Department* shall mean the city's police department.

(3) *Subdivision security organization* or *Organization* shall mean a non-profit corporation, organization, or association organized by and maintained for the sole benefit of property owners within the residential subdivision organizing same, which provides or causes to be provided security and guard services within such subdivision located within the city.
(Code 1968, § 34-131; Ord. No. 81-2514, § 1, 12-22-81)

Sec. 34-152. Qualifications.

To be qualified under this article, an organization shall comply with the following requirements:

(1) The security and guard services shall be provided through a "guard company" as defined in the Private Investigators and Private Security Agencies Act (art. 4413(29bb) Tex. Rev. Civ. Stats.) and duly licensed as a 'security services contractor' under said act which is operated by or under contract to the organization; and

(2) The security personnel utilized shall be "commissioned security officers" under such act; and

(3) The security service provided shall include an automobile security patrol maintained in the organization's subdivision or subdivisions on a twenty-four-hour a day, seven-day a week basis; and

(4) The guard company operated or employed by the organization shall maintain a central office radio dispatch system on a twenty-four-hour a day, seven-day a week basis; and

(5) The guard company operated or employed by the organization shall maintain a central dispatching office which has the necessary equipment to receive digital-dial alarm signals directly from the residential property owners within its subdivisions; and

(6) The guard company operated or employed by the organization shall be prepared to respond to all alarm calls from within its subdivisions which it receives through its receiver or from other alarm companies; and

(7) All costs and expenses of operation of the organization's security and guard services shall be borne solely by the organization and at no cost or expense to the city.

(Code 1968, § 34-132; Ord. No. 81-2514, § 1, 12-22-81)

Sec. 34-153. Access to police department radio frequencies—Requirements.

Subject to the following conditions, any organization qualified under the terms of this article may apply for and receive access to the radio frequencies of the department for its guard company's transmission and reception purposes:

(1) The organization shall file a written application for such access with the chief of police on forms prepared and provided by the chief of police; and

(2) The organization or its guard company shall at its own cost and expense acquire and provide the city the necessary radio equipment for proper communication and interface with the department's communication system. The organization and its guard company shall agree in writing that all equipment so provided shall be and remain the property of the city, subject to the organization's right to utilize the same in conformity with this article. The department shall establish minimum standards for such equipment and the organization shall provide or cause to be provided only equipment which meets or exceeds such standards. The organization's guard company shall only access the department's communications system with communication equipment provided to the city under this subsection; and

(3) The chief of police shall establish reasonable rules and regulations for the maintenance, operation, calibration, methods of access, training, frequencies which may be utilized, circumstances under which transmission is authorized, kinds of transmissions which are authorized and any other provisions necessary or desirable to prevent abuse or overloading of department frequencies by the organizations. Each organization shall agree in writing to comply and shall comply with all such rules and regulations, including all amendments thereto.

(Code 1968, § 34-133; Ord. No. 81-2514, § 1, 12-22-81)

Sec. 34-154. Same—Approval; recision of approval.

Upon approval by the chief of police as provided in section 34-153 of this Code, the organization shall have access to the radio frequency or frequencies designated in the rules and regulations of the department for transmission and reception purposes in accordance therewith. The chief of police may suspend or revoke any such approval and the organization's guard company shall discontinue use of the department's radio frequencies and surrender the equipment upon a finding

by the chief of police that the organization or its guard company:

(1) Is no longer qualified under section 34-152 of this Code; or

(2) Has failed to substantially comply with the rules and regulations of the department; or

(3) By its use of the department's radio frequencies impairs or overloads the proper operation of the department's radio communication system.

(Code 1968, § 34-134; Ord. No. 81-2514, § 1, 12-22-81)

Secs. 34-155—34-159. Reserved.

ARTICLE VI. INVESTIGATION OF EMPLOYEE MISCONDUCT—POLICE OFFICERS AND FIREFIGHTERS*

Sec. 34-160. Definitions.

As used in this article, the following words and phrases shall have the meanings ascribed to them in this section unless the context of their usage clearly indicates another meaning:

Employee means a firefighter or police officer employed by the city who holds a position that is classified under article 1269m, Vernon's Texas Civil Statutes, and who has completed the probationary period specified in section 12 of article 1269m.

Investigation means any administrative investigation conducted by the city of any alleged misconduct by an employee that could result in punitive action against that employee.

Investigator means any agent or employee of the city who is assigned to conduct an investigation.

Punitive action means a disciplinary suspension, indefinite suspension, demotion in rank, or any combination of those actions.

(Ord. No. 86-2247, § 1, 12-30-86)

Sec. 34-161. Time of interrogation.

An investigator may interrogate an employee who is the subject of an investigation only during the employee's normally assigned working hours unless:

(1) As determined by the employee's department chief or the chief's designee, the seriousness of the investigation requires interrogation at another time; and

(2) The employee is compensated for the interrogation time on an overtime basis.

(Ord. No. 86-2247, § 1, 12-30-86)

Sec. 34-162. Work time missed.

The department chief may not consider work time missed from regular duties by an employee due to participation in the conduct of an investigation in determining whether to impose a punitive action or in determining the severity of a punitive action.

(Ord. No. 86-2247, § 1, 12-30-86)

Sec. 34-163. Interrogation at employee's home.

Investigators may not interrogate an employee who is subject to an investigation at the employee's home without the permission of the employee.

(Ord. No. 86-2247, § 1, 12-30-86)

Sec. 34-164. Identity of investigators.

An employee who is subject to an investigation has the right to inquire and, on inquiry, to be informed of the identities of all investigators taking part in any interrogation of the employee.

(Ord. No. 86-2247, § 1, 12-30-86)

Sec. 34-165. Formal complaints, complainants, anonymous complaints.

(a) Before an investigator may interrogate an employee who is subject to an investigation, the investigator must inform the employee in writing of the nature of the investigation and the names

*__Cross references—__Administration generally, Ch. 2; officers and employees, § 2-21 et seq.; civil service generally, Ch. 14; disciplinary action—city marshals and airport police, § 14-218 et seq.; ethics and financial disclosure, Ch. 18.

of the persons who have complained about the employee concerning the matters under investigation.

(b) An investigator may not conduct an interrogation of an employee based on a complaint by a person who is not a peace officer unless the person verifies the complaint in writing before a public officer who is authorized by law to take statements under oath.

(c) An investigator may interrogate an employee about events or conduct reported by a witness who is not a complainant without disclosing the name of the witness.

(d) As used in this subsection, "complainant" means a person claiming to be the victim of police misconduct.

(e) This section does not prohibit an interrogation based on a complaint from an anonymous complainant if the departmental employee receiving the anonymous complaint certifies in writing, under oath, that the complaint was indeed anonymous.

(f) This section does not apply to on-the-scene investigations that occur immediately after an incident being investigated if the limitations of this section would unreasonably hinder the essential purpose of the investigation or interrogation. If the limitation would hinder the investigation or interrogation, the employee under investigation must be furnished, as soon as practicable, a written statement of the nature of the investigation and the names of the complaining parties.
(Ord. No. 86-2247, § 1, 12-30-86)

Sec. 34-166. Length of interrogation.

An interrogation session of an employee who is subject to an investigation may not be unreasonably long. In determining reasonableness, the gravity and complexity of the investigation must be considered. The investigator shall allow reasonable interruptions to permit the employee to attend to personal physical necessities.
(Ord. No. 86-2247, § 1, 12-30-86)

Sec. 34-167. Cooperation during investigation.

Investigators may not threaten an employee who is subject to an investigation with punitive action during an interrogation. However, an investigator may inform an employee that failure to answer truthfully reasonable questions directly related to the investigation or to cooperate fully in the conduct of the investigation may result in punitive action.
(Ord. No. 86-2247, § 1, 12-30-86)

Sec. 34-168. Recording interrogation; prior notice.

If prior notification of intent to record an interrogation is given to the other party, either the investigators or the employee subject to an interrogation may record the interrogation.
(Ord. No. 86-2247, § 1, 12-30-86)

Sec. 34-169. Results of investigation; employee response.

(a) If an investigation does not result in punitive action against an employee, but does result in a reprimand recorded in writing or an adverse finding or determination regarding the employee, the reprimand, finding, or determination may not be placed in a personnel file maintained on the employee unless the employee is first given an opportunity to read and sign the reprimand, finding, or determination. If the employee refuses to sign the reprimand, finding, or determination, it may be placed in the personnel file with a notation that the employee refused to sign it.

(b) An employee may respond in writing to any reprimand, finding, or determination that is placed in the employee's personnel file under this section by submitting a written response to the department chief no later than the tenth day after the date on which the employee was asked to sign the document. The response shall be placed in the personnel file.

(c) An employee who receives a punitive action and who elects not to appeal the action may file a written response as prescribed by this subsection

not later than the tenth day after the date on which the employee is given written notice of the punitive action from the department chief.
(Ord. No. 86-2247, § 1, 12-30-86)

Sec. 34-170. Reserved.

ARTICLE VII. DISPOSAL OF ABANDONED, UNCLAIMED, OR OTHER PROPERTY*

Sec. 34-171. Authority, written procedures.

(a) The chief of police shall have the authority to dispose of various classes of property in the possession of the police department, in accordance with applicable state and federal law.

(b) The chief of police shall promulgate written procedures to ensure that disposition of all classes of property held by the police department, including abandoned or unclaimed property, liquor, gambling devices, prohibited weapons, contraband, impounded vehicles not listed as stolen, perishable property that deteriorates rapidly in value and utility (including food or other organic materials), and stolen property is in accordance with state and federal law.
(Ord. No. 2014-760, § 2, 8-13-2014, eff. 8-18-2014)

Sec. 34-172. Final disposition of abandoned or unclaimed property.

(a) The police department shall dispose of all abandoned or unclaimed personal property in a manner consistent with Article 18.17 of the Code of Criminal Procedure.

(b) The chief of police is authorized to act as the person designated by a municipality under Article 18.17 of the Code of Criminal Procedure to take the actions authorized under that article with respect to the disposition of abandoned and unclaimed property in the possession of the police department.
(Ord. No. 2014-760, § 2, 8-13-2014, eff. 8-18-2014)

Sec. 34-173. Disposition of stolen property.

The municipal courts shall have authority to hold hearings for the disposition of stolen property in a manner consistent with Chapter 47 of the Code of Criminal Procedure.
(Ord. No. 2014-760, § 2, 8-13-2014, eff. 8-18-2014)

Secs. 34-174—34-199. Reserved.

ARTICLE VIII. PUBLIC SAFETY VIDEO PROGRAM

Sec. 34-200. Program created.

There is hereby created within the police department the public safety video program (the "program").
(Ord. No. 07-704, § 2, 6-13-07)

Sec. 34-201. Purpose.

The purpose of the program shall be to create a framework for cooperative participation between qualified governmental entities, qualified members of the private sector, the police department, and the city's Office of Public Safety and Homeland Security, for the purchase, installation, operation, and maintenance of a coordinated, integrated system of video cameras and camera monitors, designed and utilized to protect critical infrastructure and other potential targets of terrorism, provide situational awareness for police and fire first responders, deter and prevent crime, reduce the fear of crime, assist in criminal investigation and the generation of evidence for criminal prosecution, and to generally detect criminal activity as viewed from the public rights-of-way and appropriate portions of private property accessible to the general public and identified by the police department as prone to criminal activity within the city. The camera system authorized herein shall be used for monitoring activity occurring on the city's public rights-of-way and on those portions of public and private property for which approval has been given by the property

*__Editor's note—__Ord. No. 2014-760, § 2, adopted August 13, 2014, effective August 18, 2014, amended Ch. 34, Art. VII, in its entirety to read as herein set out. Formerly said article was entitled "Disposal of Certain Property" and derived from Ord. No. 00-394, § 2, 5-17-00 and subsequent amendatory ordinances.

owner, which are accessible to the general public, where there is no reasonable expectation of privacy, and which have been identified by the police department as prone to criminal activity.
(Ord. No. 07-704, § 2, 6-13-07)

Sec. 34-202. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Applicant means a governmental entity or a member or members of the private sector, consisting of businesses or property owners' associations, that express an interest in participating in the program by completing an application and by taking all other steps as required herein to participate in the program.

Business means a recognized legal entity actively engaged in a trade, occupation, profession or other lawful commercial activity; the term shall include any lawful organization, such as a corporation, partnership, or other similar entity.

Chief of police means the chief of police of the city or his duly designated representative.

Department means the city's police department.

Field of view means that vista which shall be subject to monitoring by an individual video camera used in the program. For purposes of the program, the field of view shall be limited to that portion of the city's rights-of-way identified for monitoring by the department and/or that portion of public or private property for which such monitoring has been approved in writing in advance by the property owner. To be subject to such monitoring, the portions of public or private property included in the program must be accessible to the general public to the extent there is no reasonable expectation of privacy, such as parking lots, shall not include the interior of any structure, and shall consist of those areas identified by the department as prone to criminal activity.

Governmental entity means any unit of Federal, state or local government; for purposes of this article, a governmental entity shall include the Houston Port Authority, the Metropolitan Transit Authority, and the Downtown Management District or other similar management district.

Property owners' association means that entity as defined in § 204.004 of the State Property Code.

Program means the public safety video program.

Public way or *rights-of-way* shall be as defined in section 40-121 of this Code.

Site means the location where each video camera is mounted.

Video camera means each camera used in monitoring the field of view meeting the technical requirements established by the department, including the camera itself and any attachments, brackets, supports, or other peripherals necessary to mounting and scanning the camera.

Video camera feed, live feed, camera feed, camera signal, or other similar expression means that electronic signal produced by and emanating from the action of each video camera, transmitted to the department, and displayed on department monitors.

Video camera system or *system* means the total network of video cameras, computer hardware, computer software, transmission system, monitors, recorders, and other peripherals utilized in the program.
(Ord. No. 07-704, § 2, 6-13-07)

Sec. 34-203. Application for participation.

(a) The chief of police is hereby authorized to prepare an application in such form as shall be consistent with the requirements of this article for the participation of qualified members of the public and private sector in the program.

(b) As a minimum, the application shall require the following:

(1) Applicant's name, telephone number, and email address;

(2) Applicant's type of entity (governmental entity, business, or property owners' association);

(3) Applicant's mailing address and street address of main office;

(4) Location of property to be used in siting the camera;

(5) A description of applicant's interest in the property where the camera would be sited, *i.e.,* fee ownership, leasehold interest, or otherwise, and supporting evidence thereof;

(6) A detailed description of the business or activity conducted at the site, including normal hours of operation;

(7) Any other information the chief of police deems appropriate.

(c) The applicant shall also be required to make the following representations and accept the following obligations as part of the application:

(1) That the person completing the application is authorized to do so and to legally bind the applicant to the representations made in the application.

(2) That the applicant agrees at its sole cost and expense to purchase, install, and maintain cameras conforming with the technical standards and requirements of the department.

(3) That the applicant will, at its sole cost and expense, comply with all city codes, rules, regulations, and other requirements and will obtain all necessary permits as part of the process of installation of the camera.

(4) That the applicant will, at its sole cost and expense, pay all monthly charges associated with the operation of the camera, transmission system, monitors, and other peripherals, including the cost of power, maintenance, parts replacement, etc.

(5) That the applicant will, in accordance with the department's technical standards and requirements, and at its sole cost and expense, pay any and all costs associated with the transmission of the camera feed to the department's monitoring station, including any wireless, telephone, or other similar transmission cost.

(6) That the applicant will, at its sole cost and expense, pay the cost of a camera monitor, computer hardware, computer software, recorders, and associated peripheral equipment for use by the department and conforming with the technical standards and requirements of the department.

(7) That the applicant recognizes and agrees that the control of the field of view and the general operation of the camera will lie exclusively with the department, and that the live feed will be received, reviewed, and recorded exclusively by the department.

(8) That the applicant recognizes and agrees that the live feed will be monitored by the department at such hours and with such staffing levels as the department in its sole discretion shall determine is appropriate, and that the department in no way represents that the live feed will be monitored (a) on a continuous basis, or (b) on any particular day, or (c) at any particular interval or hour of the day.

(9) That the applicant recognizes and agrees that the department reserves the right at any time to change or modify the program as the department deems appropriate, or to terminate applicant's participation in the program at any time and for any reason, without recourse by applicant.

(10) That if the applicant is terminated from participation in the program by the department, or if the applicant voluntarily withdraws from the program, the applicant shall as soon as possible and at applicant's sole cost and expense remove any equipment encroaching into the city's rights-of-way and repair any damage to the rights-of-way associated with said removal. The department shall return to applicant any equipment in its posses-

sion, such as monitors or cameras, but shall not be required to remove imbedded peripherals or computer software, nor return any recordings of live feed.

(d) At the sole discretion and choice of the applicant, the applicant may request, and shall be required to authorize if such request is approved, the extension of the video camera field of view to include portions of the applicant's property. By signing the application, the applicant acknowledges and agrees that the only portions of applicant's property subject to monitoring will be those portions accessible to the public, such as parking lots, will not include the interior of any structure, and shall consist of those areas identified by the department, in its sole discretion, as areas prone to criminal activity.

(e) The applicant's representative shall sign the application agreeing to the terms, conditions, and representations contained in the application.
(Ord. No. 07-704, § 2, 6-13-07)

Sec. 34-204. Review and approval of application.

(a) In reviewing each application the department shall determine if the proposed applicant and camera site are appropriate for inclusion in the program. In doing so, the department may consider the following:

(1) The completeness of the application;

(2) The appropriateness of the proposed site;

(3) The availability of departmental staffing for performing the monitoring activities;

(4) The promptness with which the applicant can meet the department's deadlines for installation of the camera and monitor into the system;

(5) Any other criteria related to the efficacy of the program that the department deems appropriate.

(b) The department will conduct a feasibility study to (1) determine if it is technologically feasible to integrate the proposed camera placement into the department transmission/monitoring system and (2) determine if the camera placement and field of view will monitor a public right-of-way or portion of public or private property that merits the monitoring.

(c) The chief of police is authorized, based on his review of the application and the representations and promises made therein, the results of the feasibility study, and any other information he deems relevant or appropriate, to accept and approve the applicant for participation in the program; to deny the application; or to accept and approve the applicant subject to such conditions as the chief of police shall specify. The chief of police is not required to approve any application which the chief of police determines is not in the best interest of the program or the city.
(Ord. No. 07-704, § 2, 6-13-07)

Sec. 34-205. Technical requirements.

The department shall establish technical specifications and standards for all equipment, apparatus, and software used in the program.
(Ord. No. 07-704, § 2, 6-13-07)

Sec. 34-206. Use of city right-of-way authorized.

The department is hereby authorized to utilize those portions of the city's rights-of-way where such use is necessary to accommodate the siting of a camera or part of the transmission system as part of the program. Before any public right-of-way may be used, the department shall consult with the city engineer and the city legal department to determine if the proposed use of the right-of-way will impair the city's primary use of said right-of-way or pose any legal issues with regard to the city's right to so use said right-of-way. Any installation of any program equipment in the right-of-way must be approved in advance by the city engineer and the chief of police.
(Ord. No. 07-704, § 2, 6-13-07)

Sec. 34-207. Operation.

(a) The chief of police may establish rules and regulations for the implementation of the program.

(b) The video camera system is to be installed as a matter of public safety. Its primary use will be as an adjunct in conducting law enforcement investigations and in deterring crime. It is to be installed at the direction of the department and it is to be installed and operated in a manner such that the only locations subject to monitoring are those for which prior approval has been given by the property owner, are accessible to the general public (e.g., parking lots) such that there is no reasonable expectation of privacy, and are areas identified by the department as prone to criminal activity.

(c) The control and operation of the camera, the choice of the field of view, the control of the live feed, the transmission of the live feed, and the monitoring and recording of the live feed shall be exclusive to the department.

(d) The live feed will be monitored by the department at such times and such frequency as the department shall determine is appropriate, to the extent permitted by staffing levels and other considerations. The department shall be under no obligation to any applicant to monitor the live feed for any duration, frequency, or at any time.

(e) The live feed will be digitally stored for a time period determined by the department to be administratively valuable to the department. Any portion of the stored images recorded for a specific criminal investigation will be maintained pursuant to the applicable records retention schedule, and as the department shall in its discretion determine.

(f) Digitally stored images will be available to the public, including program participants, only pursuant to the parameters of the Texas Public Information Act.
(Ord. No. 07-704, § 2, 6-13-07)

Sec. 34-208. Criminal investigations.

This article shall not be construed to limit or restrict the use of surveillance cameras by the department as part of any criminal investigation.
(Ord. No. 07-704, § 2, 6-13-07)

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Chapter 35

PRISONERS AND PRISON FARM*

Sec. 35-1. Definitions.

The following words, terms and phrases, when used in the following sections, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Division. The word "division" shall mean the municipal prison farm division of the police department.
(Ord. No. 87-747, § 1, 5-13-87)

Sec. 35-2. Division of municipal prison farm.

There is hereby created a (nonclassified civilian) division of the police department to be known as the municipal prison farm division.
(Code 1968, § 35-1; Ord. No. 87-747, § 2, 5-13-87)

Sec. 35-3. Prison farm records.

(a) The division shall keep and maintain at all times a permanent and accurate record as to each prisoner delivered into the custody of such division. Such record shall reflect but shall not be limited to, the following information:

(1) The date of commitment and fine.

(2) The date and hour of delivery of the prisoner to such division.

(3) The nature, description and quantity of personal property of such prisoner.

(4) The daily work assignment of such prisoner.

(5) A record of the credit against the fine and sentence of such prisoner which such prisoner has earned or served.

(6) Such other personal and particular information as may be necessary or pertinent. Such records shall be kept by, or under the direction of the division and shall be public records, available and open to the inspection of any interested person at all reasonable times.

(b) In addition to the records provided for in subsection (a), the division shall keep a current and active daily roll or record upon which shall appear the names of all prisoners in the custody of the department and which record shall show the time served, total credits and release date as to each prisoner. When any prisoner is released from the custody of the division for any reason, a permanent record shall be made of the date, hour and circumstances of such release, and a copy of such record shall be delivered forthwith to the chief of police.
(Code 1968, § 35-2; Ord. No. 87-747, § 3, 5-13-87)

Sec. 35-4. Unauthorized conversations with prisoners.

It shall be unlawful for any person on the outside of the municipal prison farm to hold any conversation with any of the inmates therein confined, without first obtaining permission from the jailer.
(Code 1968, § 35-5)

Sec. 35-5. Working of prisoners generally.

(a) Any person who has been convicted in the municipal court for the violation of any law of the state or any law or ordinance of the city, and has been committed to jail in default of the payment of the fine adjudged against him, may elect to labor in the city workhouse, on the city prison farm, on the public streets, on a city rock pile or on any public work or improvement in the city that may now or hereafter be authorized by the charter, a sufficient number of days to liquidate such fine; provided, in no event shall any prisoner who is physically unable to labor, as evidenced by

*__Charter reference—__Prison farms, jails, etc., authorized, Art. II, § 11.
__Cross reference—__Courts, Ch. 16.

a certificate from the city health officer, be permitted to labor under the provisions on this section.

(b) Any prisoner who is permitted to labor shall be worked under the direction of the superintendent.

(c) No prisoner shall be permitted to work more than eight full hours during one day at any labor named in this section.

(d) Any prisoner permitted to labor under this section shall not be allowed to come in conflict with the employed laborers of the city, and when such persons are permitted to labor on the streets or other public works of the city, the person who has supervision of them shall first ask the city official having charge of the streets or other public works to designate the place where such prisoner shall be put to labor; provided, that should such official refuse to designate such place, then the person having supervision, or the mayor, shall put him at labor on such street or such public work as he may deem best and proper for the best interest of the public.
(Code 1968, § 35-6)

Sec. 35-6. Credit against fines—Generally.

Each prisoner committed to the city jail or to the municipal prison farm for nonpayment of the fine arising out of his conviction of a misdemeanor in the municipal courts shall receive a credit against such fine of $15.00 for each day or fraction of a day that he has served.
(Code 1968, § 35-8; Ord. No. 81-1103, § 1, 6-9-81; Ord. No. 2010-846, § 17 11-3-2010)

Sec. 35-7. Same—Good conduct credit.

In order to encourage prison farm discipline, a distinction may be made in the credit allowed to prisoners so as to extend to all such as are orderly, industrious and obedient, comforts and privileges according to their desserts. The reward to be bestowed on prisoners for good conduct shall consist of such relaxation of strict prison farm rules, and extension of social privileges as may be granted by the superintendent for good conduct, industry and obedience; provided, however, that such additional credit shall not exceed in time more than ½ day credit on his fine for each day's work. Should any prisoner be guilty of misconduct in violation of any established prison farm rule (including escape or attempt to escape), any part of all of the good conduct credit which shall have accrued in favor of the prisoner to the date of such misconduct may be forfeited and taken away by the division. The division shall keep or cause to be kept a conduct record in card or ledger form and a calendar card on each inmate showing all forfeitures of good conduct credit and the reason therefor.
(Code 1968, § 35-9; Ord. No. 87-747, § 4, 5-13-87)

Sec. 35-8. Release of persons committed for failure to pay fine.

Upon the liquidation of the fines against any defendant under commitment by the municipal courts, whether by money payment or by daily credits to which he may be entitled under this chapter or by a combination of both, or upon receipt of a written certificate of the health officer directing immediate release, the chief of police (in case the defendant is housed in the jail) or the division (in case the defendant is housed in the prison farm) shall cause the defendant to be released from custody.
(Code 1968, § 35-10; Ord. No. 87-747, § 5, 5-13-87)

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Chapter 36

PUBLIC CHARITIES AND TRUSTS*

Art. I.	**In General, §§ 36-1—36-19**
Art. II.	**Board of Public Trusts, §§ 36-20—36-45**
Art. III.	**Houston Foundation, §§ 36-46—36-60**
Art. IV.	**W.A.T.E.R. Fund, §§ 36-61—36-70**
Art. V.	**Solicitation of Funds for Charitable Purposes, §§ 36-71—36-85**

ARTICLE I. IN GENERAL

Sec. 36-1. Intent and purpose of chapter.

It is not intended by this chapter to supersede or interfere with any charitable organization or institution in the city, nor to pledge the credit of the city in any manner to discharge the wants and needs of its indigent population, or those who may be in special need of helpful assistance. It is merely intended to create a department consisting of boards for the purpose of administering such funds as the city may set apart for charitable purposes, and such funds as may be voluntarily placed in their hands for charitable use by individuals by gifts, bequests or donations, or in any other manner; it being expressly provided that the city shall, as a part of its fixed budget, designate and limit the amount of moneys which it shall expend through such boards, and will not be responsible in any one year for obligations of a charitable or social service nature beyond such budget.
(Code 1968, § 37-1)

Sec. 36-2. When city may act as trustee.

The city is hereby authorized and empowered to act as trustee where any property or fund heretofore or hereafter given is devised or bequeathed to the city or to any class of persons in the city, for the purposes of charity, education or other public purposes and there is no trustee of such property or fund, the trust is about to fail for want of a trustee, or the trustees have resigned or been removed.
(Code 1968, § 37-2)

Sec. 36-3. Authority of city to institute and prosecute suits relating to charitable, etc., trusts.

The city, acting through the mayor, is hereby authorized and empowered to institute and prosecute in any court of competent jurisdiction all suits and proceedings relating to any property or funds given, devised or bequeathed to the city, or to any class of persons in the city, for charitable, educational and other public purposes, including the right to sue to have the trust established, to have a trustee named and appointed for such property and funds, and to remove any such trustees for misconduct or mismanagement of such fund or property, or for any act justifying the removal of such trustee, and the city is further authorized and empowered, acting through the mayor, to prosecute any suits for the removal of any such trustees, and for the appointment of other trustees in their place, and to do and perform all acts and prosecute all proceedings of every character incident or relating to or in anywise connected with such trust property and funds that may be necessary for the full and complete protection of same.
(Code 1968, § 37-3)

Secs. 36-4—36-19. Reserved.

ARTICLE II. BOARD OF PUBLIC TRUSTS†

Sec. 36-20. Created; composition; qualifications of trustees.

There is hereby created a board of trustees to be known as the board of public trusts, consisting

*__Charter reference—__City charities, Art. II, § 11.

†__Cross reference—__Boards, commissions, authorities, etc., generally, § 2-316 et seq.

of nine members, each of whom shall be a resident of the city, of skill and discretion in handling financial and trust matters, of good moral character, interested in welfare work, and possessing a knowledge of the civic, educational, physical and moral needs of the inhabitants of the city. Any person holding or seeking political office shall be disqualified from serving on such board.
(Code 1968, § 37-14; Ord. No. 79-1392, § 1, 8-21-79; Ord. No. 05-931, § 1, 7-27-05)

Sec. 36-21. Appointment and terms of trustees.

The members of the board of public trusts shall be appointed by the mayor, subject to the approval of the city council. The trustees shall hold their office for two years, and until their successors shall have been duly chosen and qualified. The regular membership positions shall be numbered one through nine. The terms for members in odd-numbered positions shall commence on March 23 of each odd-numbered year and end on March 22 of the next following odd-numbered year. The terms for members in even-numbered positions shall commence on March 23 of each even-numbered year and end on March 22 of the next following even-numbered year.
(Code 1968, § 37-15; Ord. No. 78-2614, § 1, 12-27-78; Ord. No. 05-931, § 1, 7-27-05)

Sec. 36-22. Oath of trustees.

The trustees of the board of public trusts shall take an oath to faithfully execute any trusts committed to their care and management, and dispose of the income and corpus in conformity with this article and the wishes expressed in the instruments creating such trust estate.
(Code 1968, § 37-16)

Sec. 36-23. Compensation of trustees.

The trustees of the board of public trusts shall serve without compensation, but may appropriate and disburse sufficient of the funds in their control to pay the expenses of administering their duties.
(Code 1968, § 37-17)

Sec. 36-24. President.

The trustees of the board of public trusts shall organize by electing one of their number president, who shall hold such office for two years and until his successor shall have been elected and qualified.
(Code 1968, § 37-18)

Sec. 36-25. Secretary.

The board of public trusts shall elect a secretary, who may or may not be a member of the board, as it may determine, and the secretary shall hold office as such at the pleasure of the board. Such secretary shall keep the minutes of the meetings of the board and perform such other services as may be required of him by the board and receive such compensation as may be fixed by the board with the approval of the city council.
(Code 1968, § 37-19)

Sec. 36-26. General powers and duties.

(a) The board of public trusts shall proceed to make provision for properly organized work to meet such needs as may now exist or hereafter arise in the city under the following general heads:

(1) Care of dependent and helpless children.

(2) Nursing the sick.

(3) Free bureau for securing employment.

(4) Humane treatment of children and animals.

(5) Bureau for social service information.

(b) The board of public trusts shall have the power:

(1) To investigate all charities dependent upon public appeal or general solicitation for support, and to endorse such of them as meet actual needs of the community, attain a reasonable standard of efficiency and are so conducted as to insure the public of the wise use of funds.

(2) To encourage the formation of new private charities to meet the needs that are not already provided for, and to foster all worthy enterprises of a philanthropic nature and to give assistance thereto.

(3) To collect and preserve statistics relating to charities, conditions of life, unemployment and delinquency, and to suggest means for improving the conditions producing the need of relief.

(4) To maintain a constant survey of the field of charities with regard to the need and the work being done in connection therewith, and to secure intelligent cooperation among all charitable and social agencies in the city, to the end that a comprehensive and economical plan of philanthropy may be attained.

(5) To disburse all funds set apart by the city for charitable purposes, and to make a report to the city council of the work done in connection therewith.

(6) To receive donations, gifts or bequests to be used for charitable or philanthropical purposes, and to administer any trust declared or created for any such purpose in accordance with the terms of such trust not in conflict with the provisions of section 36-1 of this Code.

(7) To establish and maintain a bureau for the purpose of providing employment free of charge to persons applying therefor; to furnish information concerning any vacant position, situation or employment which may come within the knowledge of the board; to keep a register containing the names and addresses of persons who make application for employment, together with the names and addresses of all persons who are seeking help; and to keep a list of all positions and situations filled.

(Code 1968, § 37-20)

Sec. 36-27. Bylaws; authority relative to employees and agents.

The board of public trusts shall have power to pass bylaws for the regulation of its business and affairs, and to provide for the appointment or employment of such agents, servants and employees as it may find necessary or expedient in the conduct of its affairs and business, and fix their compensation and term of service, subject to the approval of the city council.

(Code 1968, § 37-21)

Sec. 36-28. Control and management of charitable, benevolent, etc., funds.

The board of public trusts shall have control, management and supervision of all moneys or other support that is contributed by the city to any charitable, benevolent or uplift cause, and the same shall be disbursed and spent exclusively by the board, and it shall be responsible to the city for the proper and judicious use of all moneys or other properties so placed in its hands for charitable, benevolent or uplift purposes.

(Code 1968, § 37-22)

Sec. 36-29. Payments and disbursements.

All payments and disbursements of city funds in reference to charity, benevolence and public welfare shall be made under the authority of the board of public trusts, by checks or warrants, signed by the director of treasury and countersigned by the president or secretary of the board, and such checks or warrants shall show the purpose for which they were issued.

(Code 1968, § 37-23)

Sec. 36-30. Records to be kept.

The trustees of the board of public trusts shall cause to be kept full and complete minutes of all the transactions occurring at its meetings, the same to be kept in a well-bound book, which shall be open to the inspection of the public at all rea-

sonable times, and they shall also cause to be kept a well-bound book, or books, in which shall be recorded all instruments, documents, ordinances, resolutions or other writings under which title to money or property is given, granted, taken and held and the same shall be a public record, and they shall also cause to be kept books of account showing all receipts and disbursements and the true condition of the various funds and trusts committed to their charge, and such books of account shall be audited by the auditors of the city whenever, and as often as, an audit is made of the other accounts of the city, and an audit may be ordered by the city council at any time it deems such an audit advisable.
(Code 1968, § 37-24)

Sec. 36-31. Legal department to be legal advisor.

The legal department of the city shall act as legal advisor to the trustees of the board of public trusts.
(Code 1968, § 37-25)

Secs. 36-32—36-45. Reserved.

ARTICLE III. HOUSTON FOUNDATION*

Sec. 36-46. Composition; permitted use of funds, etc.

The city shall accept any gifts, trusts, devises or bequests for charitable, benevolent or public welfare purposes upon the condition that they shall be administered, managed and dealt with, save as otherwise provided, as a single trust to be known as the Houston Foundation, which shall be constituted of the aggregate of such gifts, trusts, devises and bequests. From the time the donor or testator provides that income from a trust or that a trust estate shall be available for the use of the city or the Houston Foundation, such income or estate, less proper charges and expenses, shall be annually devoted to charitable or benevolent purposes, until and unless the principal shall have been distributed in accordance with the trust or until the trust estate has been exhausted. Without limiting in any way the charitable or benevolent purposes for which such gifts, trust income or estates, devises or bequests may be used, they shall be available for assisting charitable and educational institutions, whether supported by private donations or public taxation, for promoting education, scientific research, care of the sick, aged or helpless, to improve living conditions, or to provide recreation for all classes, and for such other charitable or benevolent purposes as will best make for the mental, moral and physical improvement of the inhabitants of the city as it may be now or hereafter constituted, regardless of race, color or creed, according to the discretion of a majority in number of the trustees of the board of public trusts; provided, that no gratuity that is purely personal, and no pension, shall be granted to any individual. If contributors to the Houston Foundation, in the instruments creating their trusts, indicate their desire as to the time of distribution and the purposes for which the principal contributed by them shall be distributed, or as to the purpose for which the income from such principal shall be used, either for a definite or indefinite period of time, or that the power to distribute principal or income shall be vested in the trustees of the board of public trusts as provided in this section, the trustees shall respect and be governed by the wishes as so expressed unless under conditions as they may subsequently exist it shall seem to the trustees then in office wise and most widely beneficial to divert such income or principal to some other special or general purpose of the Houston Foundation, in which case the majority of such trustees, with the approval of the city council, shall have power to make such diversion.
(Code 1968, § 37-36)

Sec. 36-47. General powers and liability of board of public trusts in administering property.

In administering the property constituting the Houston Foundation, unless otherwise specifically provided in the instrument creating the trust, the trustees of the board of public trusts shall have power, by unanimous vote and with the approval of the mayor and city council, to sell, lease, trans-

*Cross reference—Boards, commissions, authorities, etc., generally, § 2-316 et seq.

fer or exchange all or any part of such property at such prices and upon such terms and conditions and in such manner as they may deem best; to execute agreements that they may deem necessary and proper; to invest and reinvest in such loans, securities or real estate as they may deem suitable for the investment of trust funds; to determine whether money or property coming into their possession shall be treated as principal or income, and charge or apportion any expenses or losses to principal or income according as they may deem just and equitable; to select and employ in and about the execution of the trust suitable agents and attorneys, and to pay their reasonable compensation and expenses; the trustees of the board in no event to be held liable for any neglect, omission or wrongdoing of such agents or attorneys, provided reasonable care shall have been exercised in their selection. The trustees, save for their own gross neglect or willful default, shall not be liable for any loss or damage.
(Code 1968, § 37-37)

Sec. 36-48. Conveyance of property.

If it shall become necessary or desirable to convey any real estate constituting a part of the Houston Foundation, the board of public trusts shall pass a resolution authorizing such conveyance, and if a like resolution is passed by the city council approving the resolution of the board, then the mayor shall execute a deed under the corporate seal of the city conveying such property in conformity with the authority of such resolutions, and such deeds shall be held to vest title in the grantee in accordance with its tenor and effect.
(Code 1968, § 37-38)

Sec. 36-49. Liens and encumbrances.

Neither the trustees of the board of public trusts nor the city shall have power to mortgage, pledge or hypothecate the property of the Houston Foundation, or create any manner of lien or encumbrance thereon, unless expressly authorized to do so by the instrument creating such estate or funds, and none of such property shall be subject to sale under execution, and neither shall the city nor the board have the right or power to divert such property or any part thereof, to the ordinary corporate purposes of the city, but the same shall be and remain a public trust and be known as the Houston Foundation.
(Code 1968, § 37-39)

Sec. 36-50. Payments and disbursements.

All payments and disbursements in reference to the Houston Foundation shall be made under the authority of the board of public trusts, by checks or warrants, signed by the director of treasury and countersigned by the president or secretary of the board, and such checks or warrants shall show the purpose for which they were issued.
(Code 1968, § 37-40)

Secs. 36-51—36-60. Reserved.

ARTICLE IV. W.A.T.E.R. FUND

Sec. 36-61. Permitted use of W.A.T.E.R. Funds.

The city shall accept any gifts for the W.A.T.E.R. Fund including, but not limited to, those donations made to the fund pursuant to section 47-70.2 of this Code, on the condition that they shall be administered, managed and dealt with, save as otherwise provided, as a single trust to be known as the W.A.T.E.R. Fund (water aid to elderly residents) which shall be constituted of the aggregate of such gifts and shall be deposited in the city's trust and agency account. The aggregate of such gifts to the W.A.T.E.R. Fund may be invested pursuant to Chapter 104, Texas Local Government Code. At the direction of the utility official, the donations shall be devoted to the public purposes set forth in section 36-62 of this Code without regard to race, ethnic origin, color, sex or creed and shall not be diverted to the ordinary corporate purposes of the city.
(Ord. No. 84-1919, § 1, 12-18-84; Ord. No. 86-435, § 1, 4-1-86; Ord. No. 92-23, § 1, 1-15-92; Ord. No. 07-599, § 44, 5-16-07)

Sec. 36-62. Special and general purposes.

The W.A.T.E.R. Fund shall be administered and managed for the purpose of assisting certain elderly residents whose incomes meet the below

specified criteria, persons with disability, and certain other residents for payment of city water and sanitary sewer bills (excluding deposits, fees, tap, meter and related service installation charges) in accordance with the administrative procedures set forth in chapter 47 of this Code. Eighty percent of the funds shall be available for assisting the elderly on fixed incomes, five percent shall be available for assisting persons with disability, and the remaining 15 percent shall be available for assisting certain other residents meeting the criteria set forth below. (In the event one or more of these classes do not exhaust their percentage allowance within a six-month period, excess funds available may be assigned to the remaining class or classes.) Recipients of the assistance must be single-family residential customers as defined in section 47-61 of this Code who meet the qualifications set forth in this section below. Once a recipient has received benefits from the W.A.T.E.R. Fund in the sum of $100.00 the recipient shall not be entitled to any further benefits there from until a period of six months has expired. The city shall give assistance under this program based on the date of initial application in the order that the applications are actually received at the processing locations designated by the city.

The city shall determine whether an applicant qualifies for assistance based on the criteria specified below. City water and sewer service must be provided in the name of the applicant who must reside at the property. All residents of the household must be listed on the application along with their income.

(1) *Elderly residents.* Elderly residents otherwise eligible under this section may qualify for assistance if:

a. They are at least sixty years old.

b. Their monthly household income, when adjusted by subtracting all medical bills for the month not reimbursed by insurance or Medicaid, is less than or equal to the current year's poverty guidelines applicable to their size of family unit as promulgated by the U.S. Department of Health and Human Services or its successor agency.

(2) *Person with disability.* Person with disability shall mean a person:

a. Who has a presently existing, medically determined physical or mental impairment of a chronic or permanent character that substantially limits one or more of his or her major life activities.

b. Whose monthly household income, when adjusted by subtracting all medical bills for the month not reimbursed by insurance or Medicaid, is less than or equal to the current year's poverty guidelines applicable to their size of family unit as promulgated by the U.S. Department of Health and Human Services or its successor agency.

(3) *Low income residents.* Other residents who are otherwise ineligible under this section may qualify for assistance if their monthly household income is less than or equal to 100 percent of the current poverty income guideline amount applicable to their size of family unit as promulgated by the U.S. Department of Health and Human Services. Preference shall be given to those who have met the guidelines for at least three months or more.

(4) *Ineligibles.* Any resident who is an active city employee or whose household includes a city employee shall not be eligible for assistance from the W.A.T.E.R. Fund.

(Ord. No. 84-1919, § 1, 12-18-84; Ord. No. 86-435, § 1, 4-1-86; Ord. No. 87-265, § 1, 2-24-87; Ord. No. 92-23, § 2, 1-15-92; Ord. No. 07-599, § 45, 5-16-07)

Sec. 36-63. General powers, duties and liabilities of utility official in administering W.A.T.E.R. Fund.

The utility official shall establish and review procedures to ensure the selection of recipients for assistance in accordance with the criteria set forth in section 36-62. Subject to the criteria set forth in section 36-62, the utility official shall, establish all necessary administrative procedures including the promulgation of application forms and the designation of places where applications shall be received. The utility official shall select the recipients from those determined to be qualified based on the order their applications are received. Houston Public Works will be responsible for the accounting of funds and final disbursal of credits to the accounts of designated recipients in accordance with the criteria set forth in section 36-64.
(Ord. No. 84-1919, § 1, 12-18-84; Ord. No. 86-435, § 1, 4-1-86; Ord. No. 90-635, § 78, 5-23-90; Ord. No. 92-23, § 3, 1-15-92; Ord. No. 93-514, § 56, 5-5-93; Ord. No. 2018-11, § 50, 1-10-2018)

Sec. 36-64. Fund transfers and credits to recipients' accounts.

All fund transfers in reference to the W.A.T.E.R. Fund from the city's trust and agency account to the receivables accounts of Houston Public Works and credits to recipients' water and sanitary sewer bills therefrom shall be made at the direction of the utility official. Such fund transfers and credits shall show the purpose for which they were issued.
(Ord. No. 84-1919, § 1, 12-18-84; Ord. No. 86-435, § 1, 4-1-86; Ord. No. 90-635, § 78, 5-23-90; Ord. No. 92-23, § 4, 1-15-92; Ord. No. 93-514, § 56, 5-5-93; Ord. No. 2018-11, § 50, 1-10-2018)

Secs. 36-65—36-70. Reserved.

ARTICLE V. SOLICITATION OF FUNDS FOR CHARITABLE PURPOSES*

Sec. 36-71. Definitions.

As used in this article, the following terms shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

Adult means an individual who has attained the age of 18.

Charitable purpose means philanthropic, religious or other nonprofit objectives, including the benefit of poor, needy, sick, refugee or handicapped persons; the benefit of any church or religious society, sect, group or order; the benefit of a patriotic or veterans' association or organization; the benefit of any fraternal, social or civic organization, or the benefit of any educational institution. The term "charitable purpose" shall not be construed to include the direct benefit of the individual making the solicitation or the benefit of any political group or political organization that is subject to financial disclosure under state or federal law.

Class A refers to a certificate of registration permitting the solicitation of funds that includes among its means and methods the solicitation of occupants of vehicles on public streets.

Class B refers to a certificate of registration permitting the solicitation of funds that does not include among its means and methods the solicitation of occupants of vehicles on the public streets.

Director means the director of the department of administration and regulatory affairs of the city or any individual employed by such department that he shall designate to perform any of his functions specified in this article.

Individual means only a natural person.

*__Editor's note__—Ord. No. 2005-1346, § 1, adopted December 7, 2005, amended Ch. 36, Art. V in its entirety to read as herein set out. Formerly, said article pertained to similar subject matter and derived from Ord. No. 85-497, § 1, adopted April 10, 1985.

Median means a dividing area, whether landscaped or paved, maintained for the purpose of separating or directing vehicular traffic.

Minor means an individual who has not attained the age of 18.

Person means and includes any natural person, firm, partnership, corporation or association.

Roadway has the meaning ascribed in section 45-2 of this Code.

Solicit funds or *solicitation of funds* means any request for the donation of money, property, or anything of value, or the pledge of a future donation of money, property, or anything of value; or the selling or offering for sale of any property, real or personal, tangible or intangible, whether of value or not, including, but not limited to, goods, books, pamphlets, tickets, publications or subscriptions to publications, or brochures, upon the representation, express or implied, that the proceeds of such sale will be used for a charitable purpose as such term is herein defined. Expressly excluded from the meaning of "solicit funds" or "solicitation of funds" are any offer of membership in any organization and any solicitation of funds for any purpose either by a governmental agency or political subdivision. The means of solicitation of funds covered by this definition are limited to a solicitation communicated in the physical presence of any individual or by telephone call placed and received within the corporate limits of the city.

Street has the meaning ascribed in section 45-2 of this Code.

(Ord. No. 05-1346, § 1, 12-7-05; Ord. No. 08-52, § 58, 1-16-08, eff. 1-26-08)

Sec. 36-72. Unlawful solicitation.

It shall be unlawful within the corporate limits of the city:

(1) For any person, directly or through an agent or employee, to solicit funds unless such person has first obtained a certificate of registration from the director, as hereinafter provided.

(2) For any individual, as the agent or employee of another, to solicit funds unless his principal or employer has received a certificate of registration as hereinafter provided.

(3) For any person to solicit funds between the hours of 9:00 p.m. and 8:00 a.m.

(4) For any person, directly or through an agent or employee, to solicit funds after the expiration of any certificate of registration issued as hereinafter provided.

(5) For the person registering or the agents or employees thereof to solicit funds for a purpose other than that set out in the registration statement upon which the certificate of registration was issued.

(6) For any person who solicits funds to represent, in connection with such solicitation of funds, that the issuance of a certificate of registration by the city constitutes an endorsement or approval of the purposes, means, or methods of such solicitation of funds by the city or any department, officer or employee thereof.

(7) For any person issued a certificate of registration hereunder to fail to file any financial statement required to be filed under this article.

(8) For any person to employ, suffer or permit a minor to solicit funds.

(9) For any person to use or expose any animal to hazardous conditions to solicit funds.

(Ord. No. 05-1346, § 1, 12-7-05)

Sec. 36-73. False or misleading solicitation.

It shall be unlawful for any person to knowingly make a false or misleading representation in the course of a solicitation of funds. False or misleading representations include, but are not limited to, the following:

(1) Stating that the solicitation of funds is being carried out on behalf of an organization that does not exist.

(2) Stating that the solicitor represents an organization when such statement is false.

(3) Exhibiting a military, medical or religious order uniform or other indication of military service or membership in a medical profession or religious order when the person soliciting funds is neither a present

nor former member of the service indicated, or a member of a medical profession or religious order, unless the person is soliciting funds on behalf of the military branch, medical profession, or religious order indicated in the statement.

(4) Exhibiting an indication of physical disability or using makeup or a device to simulate any deformity or disability, when the person soliciting funds does not suffer the deformity or disability indicated.

(Ord. No. 05-1346, § 1, 12-7-05)

Sec. 36-74. Solicitation on public streets.

(a) *Solicitation in roadways.* Except as provided in section 36-75, it shall be unlawful for any person to stand in a roadway to solicit funds. It shall be unlawful for a minor to stand in a roadway for any purpose, including solicitation of funds, except as permitted by the traffic laws of the state.

(b) *Requirements.* It shall be unlawful for any person to solicit funds pursuant to a class A certificate unless the person:

(1) Properly wears a high visibility traffic vest provided by the director pursuant to rules and regulations promulgated therefor;

(2) Conducts the solicitation of funds only within 40 feet of an intersection controlled by a traffic signal that requires all traffic to come to a full stop;

(3) Solicits funds only while located on a shoulder, improved shoulder, curb or sidewalk adjacent to the roadway, excluding any median;

(4) Does not enter the roadway to solicit or retrieve funds; and

(5) Does not obstruct traffic or create a hazard to traffic or any other person.

(c) *First aid requirement.* It shall be unlawful for a person to solicit funds pursuant to a class A certificate where more than four individuals are also soliciting funds simultaneously at the same location unless a person certified by the American Heart Association or American Red Cross in cardiopulmonary resuscitation and first aid is present at the location.

(d) *Location.* It shall be unlawful for a person to solicit funds pursuant to a class A certificate from a location not specified in the certificate.

(e) *[Authority.]* The director is authorized to promulgate such rules and regulations necessary for the implementation and administration of this section.

(Ord. No. 05-1346, § 1, 12-7-05)

Sec. 36-75. Charitable solicitation by municipal employees and/or agents.

(a) No nonprofit corporation, group, or organization may engage, suffer or permit any employee or agent of the city to engage in a solicitation of funds on its behalf that requires the issuance of a class A certificate under this article unless such certificate has been issued to the nonprofit corporation, group, or organization in compliance with this article.

(b) No employee or agent of the city shall engage in a solicitation of funds on behalf of a nonprofit corporation, group, or organization that has not received a valid class A certificate issued pursuant to this article.

(c) An employee or agent of the city engaged in the solicitation of funds on behalf of a nonprofit corporation, group, or organization may solicit funds while standing in a roadway as authorized by Section 552.0071 of the Texas Transportation Code.

(Ord. No. 05-1346, § 1, 12-7-05)

Sec. 36-76. Registration statement.

(a) *In general.* Any person who seeks to solicit funds for charitable purposes within the corporate limits of the city shall file with the director a registration statement, on forms provided by the director, containing the following:

(1) The name of the person registering to solicit funds for charitable purposes.

(2) Whether the person registering is an individual, partnership, corporation or association, and:

a. If an individual, his or her business or residence address and telephone number.

b. If a partnership, the names of all partners and the principal business address and telephone number of each partner.

c. If a corporation, whether it is organized under the laws of Texas or is a foreign corporation, the mailing address, business location, telephone number, and name of the individual in charge of the Houston office of the corporation, the names of all officers and directors or trustees of the corporation, and, if a foreign corporation, the place of incorporation.

d. If an association, the association's principal business address and telephone number, if any, and the names and principal business or residence addresses and telephone numbers of all members of the association. However, if there are more than ten members, the person registering may alternatively list the names and principal business or residence addresses and telephone numbers of the officers and directors or trustees of the association. If the association is part of a multistate organization or association, the mailing address and business location of its principal headquarters shall be given, in addition to the mailing address and business location of its local office.

(3) A brief description of the charitable purpose for which the funds are to be solicited, and an explanation of the intended use of the funds toward that purpose.

(4) The names of all individuals authorized to incur expenses related to the solicitation or to disburse any proceeds of the solicitation.

(5) The name, mailing address and telephone number of each individual who will have organizational responsibility with respect to the solicitation of funds. If there are more than 20 such individuals, the person registering may alternatively list the 20 individuals with the principal organizational responsibility with respect to the solicitation of funds.

(6) The time period within which the solicitation of funds is to be made, giving the date of the beginning of solicitation and its projected conclusion.

(7) A description of the means and methods by which the solicitation of funds is to be accomplished, including whether such means and methods will include any solicitation of occupants of vehicles on public streets.

(8) The total amount of funds proposed to be raised.

(9) A projected schedule of salaries, wages, fees, commissions, expenses and costs that the person registering reasonably believes will be expended and paid in connection with the solicitation of funds or in connection with their disbursement, and an estimated percentage of the total projected collections which the costs of solicitation will comprise. These figures shall cover the entire time period during which the solicitation is to be made.

(10) The names of any cities outside of Harris County, Texas, in which the person registering has solicited funds for charitable purposes within the past five years, but in the event that the person registering has solicited funds for charitable purposes in more than five other cities, the person registering may list the five most populated cities in which it has solicited funds during the previous five years.

(11) A statement to the effect that if a certificate of registration is granted, such certificate will not be used as or represented to be an endorsement by the city or any of its officers or employees.

(12) As to each, if any, officer, director, trustee, partner, or any current agent or employee engaging in the solicitation of funds who within the past seven years has been convicted of (or been incarcerated for any conviction of) a felony or a misdemeanor involving moral turpitude, the name of the individual, the nature of the offense, the name of the state where the conviction occurred, and the year of the conviction.

(13) An explanation of the reasons, if the person registering is unable to provide any of the foregoing information, why such information is not available.

(14) The signature of an individual on behalf of the person registering. If the person registering is an individual, this is the applicant. If the person registering is a partnership, this is the partner charged with disbursing the funds solicited. If the person registering is a corporation or an association, this is its officer charged with disbursing the funds solicited. The individual signing the registration statement shall sign the statement and swear before an officer authorized to administer oaths that he or she has carefully read the registration statement and that all the information contained therein is true and correct.

(b) *Class A certificate; additional requirements.* Each registration statement for a class A certificate shall include the following additional information:

(1) Each location at which solicitation of funds is to occur; and

(2) The number of persons to be involved in solicitation of funds at each location.

(c) *Class A certificate; use of city employee or agent; additional requirements.* If the proposed solicitation is to include the use of any employee or agent of the city as provided in section 36-75 of this Code, the applicant shall also provide, in a form acceptable to the city attorney, proof of a current policy of commercial general liability insurance providing coverage against claims against the applicant and the city in the amount of at least $1,000,000.00 for any damages that may arise from the solicitation.
(Ord. No. 05-1346, § 1, 12-7-05)

Sec. 36-77. Registration fee.

Every registration statement shall be accompanied by the registration fee stated for this provision in the city fee schedule to compensate the city for the cost of administering this article provided that no fee shall be charged to a nonprofit corporation, group, or organization that uses only employees or agents of the city to solicit funds pursuant to a class A certificate issued under this article. Such fee will be nonrefundable, irrespective of whether a certificate of registration is issued.
(Ord. No. 05-1346, § 1, 12-7-05; Ord. No. 2010-1016, § 2, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 36-78. Issuance of certificate of registration.

(a) *Class A.* A registration statement for a class A certificate shall be filed not later than the eleventh day before the date the solicitation of funds is to begin. Within five working days of the receipt of the registration statement, the director shall either issue a certificate of registration, as provided in section 36-79, or notify the person registering that the registration statement does not comply with the requirements of section 36-76, and specifically point out what information or explanation has not been furnished that is required before a certificate of registration can be issued.

(b) *Class B.* Within ten working days of the receipt of a class B registration statement, the director shall either issue a certificate of registration, as provided in section 36-79, or notify the person registering that the registration statement does not comply with the requirements of section 36-76, and specifically point out what information or explanation has not been furnished that is required before a certificate of registration can be issued.
(Ord. No. 05-1346, § 1, 12-7-05)

Sec. 36-79. Form of certificate of registration.

(a) The director shall prescribe the form of each certificate of registration, each of which shall be printed in black except that the following shall be printed prominently thereon in red: "The issuance of this certificate of registration is not an endorsement by the City of Houston or any of its departments, officers or employees." Each certificate of registration shall specify the period of its validity as determined pursuant to section 36-81 and shall also bear a registration number, and the same number shall be assigned by the director to the file containing the registration statement filed by the registrant.

(b) In addition to the foregoing requirements, each class A certificate shall specify each location at which funds may be solicited.
(Ord. No. 05-1346, § 1, 12-7-05)

Sec. 36-80. Transfer of certificate of registration prohibited.

A certificate of registration issued under the provisions of this article shall not be transferable, and the authority a certificate confers shall be conferred only on the holder named therein. The certificate of registration shall have endorsed thereon in red letters the words "NOT TRANSFERABLE."
(Ord. No. 05-1346, § 1, 12-7-05)

Sec. 36-81. Expiration of certificate of registration; filing of financial statements within specified time of termination of solicitation.

(a) Each certification of registration issued by the director shall expire according to the following schedule:

(1) A Class A certificate of registration shall expire not later than 30 days from the date of issuance, or upon the termination of the solicitation period specified, whichever is less.

(2) A Class B certificate of registration shall expire not later than one year from the date of issuance, or upon the termination of the solicitation period specified, whichever is less.

(b) Not later than 120 days after the expiration of its certificate of registration, each person who registered shall file a closing statement with the director. Except as provided to the contrary in this section, the closing statement shall be a financial statement that is either:

(1) On a form provided by the director for this purpose and sworn to by the individual who would be the appropriate individual to sign a registration statement on behalf of the person who registered; or

(2) Audited by a certified public accountant.

The closing statement shall indicate the total funds collected or pledged from the solicitation of funds, the purpose or purposes (with the amount of funds for each purpose) for which such funds have been or will be disbursed by the person registering, any incurred but unpaid expenses resulting from the solicitation of funds, all other anticipated disbursements of collected or pledged funds, the actual or projected date of each disbursement, and, if funds have been or will be kept by the person registering for over 30 days before disbursement, the name of the financial institution, if any, with which such funds have been or will be deposited. The requirement to show the total funds represented by any food that has been collected or pledged may be satisfied either by estimating the monetary value of the food to the nearest multiple of $100.00 or by providing the weight of the food in the manner required by the director.

(c) Each person registering shall file a preliminary closing statement no later than 30 days from the expiration of its certificate of registration. The preliminary closing statement shall be filed with the director on forms provided for this purpose. It shall be a financial statement containing the same information as listed on the preceding paragraph of this section, except that it need not be sworn to or audited by a certified public accountant and that any amounts stated thereon may be estimated based upon whatever informa-

tion is reasonably available to the person registering at the time the preliminary closing statement is filed.

(d) Any requirement in this section to submit a financial statement may alternatively be satisfied by the submission of an information return covering the entire time period during which the solicitation of funds was conducted and actually filed with the United States Internal Revenue Service to fulfill federal requirements for submission of information returns for persons exempt from taxes in accordance with 26 U.S.C.A. § 501 or any successor provision.
(Ord. No. 05-1346, § 1, 12-7-05)

Sec. 36-82. Public disclosure.

All registration statements and closing statements filed with the director, whether or not a certificate of registration has been issued, shall be public records and shall be available for inspection by members of the public during the director's regular business hours. Copies may be obtained at the fees prescribed by law for copies of city records.
(Ord. No. 05-1346, § 1, 12-7-05)

Sec. 36-83. Exceptions.

The following are excepted from the operation of sections 36-71 through 36-81:

(1) The solicitation of funds for charitable purposes by any organization or association from its members;

(2) The solicitation of funds for charitable purposes by a person when such solicitation occurs on premises owned or controlled by the person soliciting funds or with the permission of the person who owns or controls the premises; and

(3) The issuance of any announcement or advertisement which states that a solicitation as described in subsections (1) and (2) above will occur or which announces or advertises an event at which unannounced solicitation as described in subsections (1) and (2) above occurs.

(Ord. No. 05-1346, § 1, 12-7-05)

Sec. 36-84. Penalties.

Violation of any applicable provision of this article shall be punished as provided by section 1-6 of this Code. Each day that any violation continues shall constitute a separate offense. However, an offense under any provision of this article which also constitutes an offense pursuant to state law shall be punishable in accordance with the applicable state law.
(Ord. No. 05-1346, § 1, 12-7-05)

Sec. 36-85. Provisions cumulative.

The provisions of this article are cumulative of any other valid and applicable laws, rules or regulations governing the solicitation of funds or any activity which may be associated therewith. Compliance with this article shall not be deemed to excuse compliance with any other valid and applicable laws, rules or regulations governing the solicitation of funds or any activity which may be associated therewith.
(Ord. No. 05-1346, § 1, 12-7-05)

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Chapter 37

PUBLIC UTILITIES AND CABLE TELEVISION SERVICES*

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Art. IV.	**Standards of Service, §§ 37-70—37-79**
Art. V.	**Access to Public, Educational, and Governmental Cable Channels by Other Municipalities, 37-80—37-86**

ARTICLE I. IN GENERAL

Sec. 37-1. Definitions.

The following words, terms, and phrases, when used in this chapter, shall have the same meanings as provided in this section, except where the context clearly indicates a different meaning:

Commission means the Public Utility Commission of Texas.

Director means the director of administration and regulatory affairs or the director's designee.

Electric utility shall have the meaning prescribed in Section 31.002(6) of the Texas Utilities Code, as amended.

Gas services means the department of the Oversight and Safety Division of the Railroad Commission responsible for the regulation of the natural gas utility industry in Texas.

Gas utility shall have the meaning prescribed in Section 101.003(7)(A)—(F) of the Texas Utilities Code, as amended.

Gas Utility Regulatory Act means the Gas Utility Regulatory Act, being Subtitle A of Title 3 of the Texas Utilities Code, as amended.

Public utility means an electric utility, gas utility, or water and sewer utility as defined by this section.

Public Utility Regulatory Act means the Public Utilities Regulatory Act, being Title 2 of the Texas Utilities Code, as amended.

Railroad Commission means the Railroad Commission of Texas.

Regulatory authority means the city council of the city.

System improvement charge mean a charge for recovery of the portion of the cost of a public utility's eligible plant that is not already included in the utility's rates.

Telecommunications utility shall have the meaning prescribed in Section 51.002(11)(A)—(G) of the Texas Utilities Code, as amended.

Water Code means the Texas Water Code.

Water and sewer utility shall have the meaning prescribed in Section 13.002(23) of the Texas Water Code, as amended.

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*__Editor's note—__Ord. No. 2023-1079, § 2, adopted December 6, 2023, amended the title of Ch. 37 to read as herein set out. Formerly Ch. 37 was titled public utilities. Section 3 of said ordinance repealed and replaced Ch. 37 in its entirety and derived from Code 1968, §§ 38-1—38-73 and subsequent amendatory ordinances. See the Code Comparative Tables for a complete derivation.

Cross references—Removal or destruction of utility poles or wires in connection with moving of buildings, § 10-70; posting advertising matter on utility poles, trees, traffic signs, etc. § 28-39; identification cards for utility, cable, etc. company employees, § 28-23; provisions for surveys made by public utilities, § 33-81 et seq.; railroads, Ch. 38; streets and sidewalks generally, Ch. 41; installation of street lights at expense of property owner, § 40-3; vehicles for hire, Ch. 46; water and sewers, Ch. 47.

The definitions of the words and terms set forth in the Texas Utilities Code and the Texas Water Code are hereby adopted and shall apply herein with the same force and effect as if set forth in this chapter.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-2. Scope.

The provisions of this chapter shall not apply to any municipally-owned public utility of the city.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-3. Public utility improvements on city property.

(a) It shall be unlawful for any public utility, its officers, agents, or employees to implement, construct, or install any improvements, changes, modifications, or new service along, upon, under, or through the streets or public property of the city without first notifying and receiving consent from the city.

(b) Any public utility company must, within thirty (30) calendar days after receipt of written request by the director, relocate any of its facilities located within any street, public right-of-way, or city property at no expense to the city where reasonable and necessary to accommodate street widening, water and/or sewer service installation, or other improvement projects and maintenance work of the city, its agents, and contractors.

(c) A public utility shall relocate any facility for the accomplishment of a public works project as prescribed in Article XVIII of Chapter 40 of this Code of Ordinances.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-4. Street lighting.

Any person having a franchise to furnish and distribute electrical energy for domestic and commercial uses within the city shall, when ordered by the city council so to do, furnish, install, operate, and maintain, at its own cost, street lights of a candle power and general character, at designated locations, and charge the city therefor at schedules as agreed upon. Bills for the same shall be payable monthly in equal installments. Such street lights need not be installed, maintained, and operated until the city and the person supplying same have reached an agreement as to service terms for the provision thereof and the charges to be paid therefor by the city.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-5. Uniform accounts.

Every electric utility and water and sewer utility shall maintain uniform accounts as prescribed by the Commission. Every gas utility shall keep uniform accounts as prescribed by the Railroad Commission.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-6. Rate schedules.

Each public utility furnishing service within the city shall electronically file with the director a copy of all established tariffs. Each public utility company furnishing service within the city shall also file a copy of all established tariffs with the city secretary's office. Each utility company shall maintain on file at its principal office in this city in printed form one copy of all established tariffs. A copy shall be made available for examination during regular business office hours of the public utility to any person.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-7. Communication with the city.

The principal contact for communications regarding the regulated activities of public utility companies shall be the director.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-8. Compliance with law.

To the extent of any conflict between any of the terms or provisions of this chapter and any state or federal law, rule, or regulation, which has precedence over this chapter as a matter of law, the provisions of such state or federal law, rule, or regulation shall prevail.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-9. Reserved.

ARTICLE II. FILINGS

DIVISION 1. GENERALLY

Sec. 37-10. Interpretation.

The provisions of this article shall not be construed to relieve any public utility of its obligation to file with and make available to the city, the director, or any other city officer or agency, any information not specified in this article which is required to be furnished or made available by state law or by a franchise agreement granted by the city. Furthermore, each utility shall file, furnish, and make available to the director, within such time limits as the director reasonably prescribes, all information that the director may from time to time lawfully request.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-11. Permanent file.

(a) Each public utility shall furnish to the director such informative documents, maps, and other written materials, from time to time, as may be necessary for the director to maintain a complete and current permanent information file for such public utility including the following:

(1) The public utility's functional/divisional organization chart;

(2) The public utility's chart of accounts detailing each account number and account title;

(3) A detailed explanation of the accounting procedures for all intercompany and interdepartmental allocations of shared cost and intercompany and interdepartmental charges for the public utility (or the controlling company, if any);

(4) A complete list of all fuel contracts;

(5) A detailed map of the service area of the relevant system or division of the public utility; and

(6) The public utility's complete tariff schedules which are currently in force for service within the area of jurisdiction of the city.

(b) Each amendment, revision, or addition to the information required in such permanent file shall, insofar as may be practicable, be furnished to the director by the public utility as soon as reasonably possible, but, without exception, prior to filing any statement of intent to change rates.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-12. Periodic information file.

Each public utility shall furnish to the director such information, documents, and other written materials, from time to time, as may be necessary for the director to maintain a complete and current periodic information file for such public utility including the following:

(1) Two copies of each and every report or other document containing operating or financial information which the public utility files with the United States Securities and Exchange Commission or Federal Energy Regulatory Commission;

(2) One copy of each and every written report affecting the system or division which the public utility files with or furnishes to the Commission, Railroad Commission, Texas Commission on Environmental Quality, or Texas Attorney General;

(3) One copy of each and every public report which the public utility furnishes to its stockholders; and

(4) Any other document or written material, including reports or records of audits conducted by the Commission or Railroad Commission, as requested by the director.

(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-13. Waiver of reports.

The director may waive the filing of any report or item of information required by this article which is not otherwise required to be provided by law if the director determines that the filing thereof is either impractical or unduly burden-

some upon the utility which would otherwise be required to file the same. Such waiver shall be effective only if requested by the utility in writing and granted by the director in writing.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-14. Additional information permitted.

A utility may submit additional information, that is not required to be submitted to the director in this chapter, to the director as it considers relevant and appropriate.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-15. Additional information upon request.

(a) In connection with each statement of intent to change rates or application for a rate adjustment, and in addition to the rate filing package provided, the utility shall make available the following information to the director or his representative for his inspection or copying upon written request:

(1) Supporting studies, workpapers, or documentation relied upon by each representative or witness in the presentation of his testimony;

(2) The utility's books of original entry including the general ledger, subledgers, journals, balance sheets, operating income statements, and monthly trial balances by primary account number for each month during the test year;

(3) All workpapers used to derive the utility's adjusted value of invested capital which were not included in the filing package; and

(4) All workpapers used to derive the utility's test year adjusted operating income which were not included in the filing package.

(b) The utility shall also make its plants, equipment, and other properties or any portion thereof designated by the director available for inspection by the director.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-16. Adoption by reference.

A utility may adopt by reference any information required by this article which has been previously furnished to the director in a previous rate filing package or has been previously furnished to the director pursuant to division 1 of this article, provided that such information was furnished in the same form and format required by this division and further provided that such adoption by reference specifies the name or title of the document referred to, its filing date with the director and the relevant page or section number thereof.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-17. Forms.

A utility may submit filings to the director on any form and format prescribed by the Commission or Railroad Commission unless the director prescribes a form or format for the submission of any information required in this article. Any form or format prescribed by the director shall replace any form and format prescribed by the Commission or Railroad Commission. Each utility shall comply with all applicable forms and formats which have been so prescribed.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Secs. 37-18, 37-19. Reserved.

DIVISION 2. WATER UTILITIES FILINGS AND REPORTS

Sec. 37-20. Application to change rates.

(a) Water and sewer utilities requesting a rate change shall file with the director, at least 35 days before the effective date of the rate change, the applicable rate change application and a statement of intent to change rates. The water and sewer utility shall provide a copy of the notice to all customers of the utility affected by the proposed rate change. Notices to affected ratepayers may be mailed separately, e-mailed (if the customer has agreed to receive communications electronically), or may accompany customer billings. The statement of intent to change rates shall include a rate filing package that includes

at least the following information on a Commission-approved form or a form approved by the director:

(1) A billing comparison regarding the existing water rate and new water rate for 5,000 gallons of water and 10,000 gallons of water;

(2) A billing comparison regarding the existing sewer rate and the new sewer rate computed for the use of 5,000 gallons, unless the water and sewer utility proposes a flat rate for sewer services;

(3) A description of how the ratepayer may participate in the ratemaking proceeding;

(4) The PUC docket number, if any, assigned to the rate application; and

(5) Any other information reasonably required by the director.

(b) The rate change application for a Class A water and sewer utility shall consist of:

(1) The Commission's applicable rate filing package form or filing package form prescribed by the director; and

(2) Pre-filed direct testimony supporting each rate schedule.

(c) The rate change application for a Class B water utility, Class C water utility, or Class D water utility shall file the following rate package:

(1) The Commission's rate filing package form or filing package form prescribed by the director, and

(2) An affidavit supporting each rate schedule. The utility may file pre-filed direct testimony at the same time as the application to change rates.

(d) Proof of notice in the form of an affidavit stating that proper notice was mailed, e-mailed, or delivered to customers and stating the dates of such delivery must be filed with the director by the applicant utility as part of the rate change application.

(e) The director shall not consider an application to change rates to be properly filed until all items listed in subsection (1)—(5) of this section have been filed with the director.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-21. Reports.

Each water utility shall submit the following reports and records to the director:

(1) Any financial, managerial, and technical report that has been submitted to the Commission following violation of a final order of the Texas Commission on Environmental Quality;

(2) A record of all interruptions of service, both emergency and scheduled;

(3) A copy of any status report required to be filed with the Texas Commission on Environmental Quality concerning temporary restrictions or reductions in ability to supply water;

(4) A copy of any planning report filed with the Texas Commission on Environmental Quality;

(5) Any facilities review conducted by the water utility; and

(6) Any other report and record related to rates, operations, and services requested by the director.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-22. System improvement charge.

(a) Definitions. The following words, terms, or phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Capitalized operation and maintenance expenses* means expenses that have been deferred or amortized as a regulatory asset or liability.

(2) *Eligible plant* means: a plant properly recorded in the National Association of Regulatory Utility Commissioners System of Accounts, accounts 304 through 336 for water utility service or accounts 354

through 382 for sewer utility service which has been placed into service; is prudent, reasonable, and necessary; and applicable to customers within the city's municipal boundaries. Eligible Plant does not include: indirect corporate costs; capitalized operations and maintenance expenses; and capital recovered through a separate rate including a surcharge, tracker, rider, or other mechanisms.

(b) Eligibility.

(1) A utility is eligible to file for a system improvement charge if the latter of: the date on 1) the ordinance approving the utility's most recently-filed comprehensive base rate case which was filed pursuant to section 37-20 or 2) the Commission's final order for the utility's most recently-filed comprehensive base rate case, is not older than the following:

a. Four years for a utility that was a Class A utility at the time of application;

b. Six years for a utility that was a Class B utility at the time of application; or

c. Eight years for a utility that was a Class C or Class D utility at the time of application.

(2) A utility must have only one system improvement charge in effect for water and one system improvement charge in effect for sewer for each of its approved rate schedules at any time.

(3) A utility may apply to establish or amend one or more system improvement charges in accordance with the requirements of this section. A utility must not adjust its rates under this section more than once each calendar year. A utility that is applying to establish or amend multiple system improvement charges in a calendar year must do so in a single application.

(4) A utility may not apply to establish or amend a system improvement charge while it has a comprehensive rate proceeding pending before the city or the Commission.

(5) If a utility with a pending application to establish or amend a system improvement charge files an application to change before the city or the Commission, or if the city or the Commission initiates a rate change review, the utility will be deemed to have withdrawn its application to establish or amend a system improvement charge and the application will be presumed dismissed.

(c) An application to establish or amend a system improvement charge must include the following:

(1) A description of the eligible plant for which cost recovery is sought through the system improvement charge, including the project or projects included in the request and an explanation of how each project has improved or will improve service and an indication of which specific systems and customers benefitted from the change in investment;

(2) A calculation of the system improvement charge in accordance with subsection (f) of this section and all supporting calculations and assumptions for each component of the system improvement charge;

(3) Information that sufficiently supports the eligible cost, such as invoices, receipts, and direct testimony, and that sufficiently addresses the exclusion of costs for plant provided by explicit customer agreements or funded by customer contributions in aid of construction;

(4) A copy of the utility's most recent annual report filed with the Commission, which must be the annual report most recently due for filing;

(5) If the utility is earning a return on invested capital as demonstrated through its most recently filed annual report with the Commission that is more than 75 basis points above the return established in the Order from the utility's most

recently filed comprehensive base rate case, the utility must also file a statement as to how the system improvement charge as requested results in rates which are just and reasonable; and

(6) An affidavit confirming that the application meets the requirements of this section.

(d) The revenue requirement for the system improvement charge must be calculated using the following formula: SIC RR = (Reconcilable Cost * ROR) + Federal Income Taxes + Depreciation + ad valorem taxes + other revenue related taxes, where:

(1) SIC = the system improvement charge;

(2) SIC RR = system improvement charge revenue requirement;

(3) Reconcilable Cost = the original costs of eligible plant installed after the end of the test year used in the utility's most recent base-rate proceeding, less:

a. Accumulated depreciation; and

b. Any costs for plant provided by explicit customer agreements or funded by customer contributions in aid of construction;

(4) Accumulated depreciation = depreciation accumulated for eligible plant after the date the eligible plant was placed in service;

(5) ROR = after-tax overall rate of return as defined in paragraph (10) of this subsection;

(6) Federal Income Taxes = current annual federal income tax, as related to eligible costs;

(7) Depreciation = current annual depreciation expense for the eligible plant;

(8) Ad Valorem Taxes = current annual amount of taxes based on the assessed value of the eligible cost;

(9) Other Revenue Related Taxes = current annual amount of any additional taxes resulting from the utility's increased revenues related to the SIC;

(10) The after-tax overall rate of return shall be the after-tax rate overall rate of return approved by the City or Commission in the utility's last base-rate case; and

(11) The SIC must be calculated based on annualized meter equivalents, derived using the most recent month's total customer meter equivalents multiplied by 12. The base SIC must be calculated as the SIC RR divided by annual meter equivalents. The SIC for each meter size must be calculated as the base SIC multiplied by the multiplier for that meter size.

Meter Size	*Multiplier*
⅝"	1.00
¾"	1.50
1"	2.50
1½"	5.00
2"	8.00
3"	15.00

(e) By the first business day after it files its application, the utility must send notice of its SIC application to all affected ratepayers by first class mail, e-mail (if the customer has agreed to receive communications electronically), bill insert, or hand delivery. The utility must include the date the application was filed with the city, the intervention deadline, and a brief explanation of how an affected ratepayer may participate in the ratemaking proceeding. The intervention deadline is 25 days from the date service of notice is complete.

(f) System improvement charge reconciliation shall be conducted in accordance with 16 Tex. Admin. Code § 24.76(i).

(g) Recovery of rate case expenses may be requested and must be reviewed in the utility's next comprehensive base rate case.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-23. Water utility rates for elderly customers.

A water and sewer utility, as defined in Section 13.002 of the Texas Water Code, may establish reduced rates for a minimal level of service for customers 65 years of age or older to ensure that

those customers receive that level of service at more affordable rates, provided the water and sewer utility may not recover the costs of the reduced rates through charges to the utility's other customer classes. The water and sewer utility may establish a fund to receive donations for the purpose of recovering the costs of providing the reduced rates.

To request the reduced rates under this section, the water and sewer utility shall comply with the provisions and rules of § 24.21(b)(2)(B) of Title 16 of the Texas Administrative Code, as amended. The water and sewer utility shall provide to the director the proposed plans and other information filed with the Commission for reduced rates and provide additional information when requested by the director.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Secs. 37-24—37-29. Reserved.

DIVISION 3. GAS UTILITIES FILINGS AND REPORTS

Sec. 37-30. Statement of intent to increase rates.

(a) The gas utility proposing to change rates shall file with the director a statement of intent at least 35 days before the effective date of the proposed increase. The statement of intent to increase rates shall include a rate filing package that includes at least the following:

(1) The proposed revisions of tariffs and schedules;

(2) A detailed statement of each proposed change;

(3) A description of the effect that the proposed increase is expected to have on the revenues of the applicant;

(4) A description of each class and number of utility consumers affected; and

(5) Any other information required by the director.

(b) The gas utility shall provide notice to the public of any proposed rate change as required by the Public Utility Regulatory Act.

(c) The director shall not consider an application to change rates to be properly filed until all items listed in subparagraphs (a)-(c) of this section have been filed with the director.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-31. Annual report.

Each gas utility shall submit an annual gathering, transmission, and distribution report to the director. The annual report shall be made on a form approved by gas services or on a form prescribed by the director. The annual report shall be made on a calendar year basis with the reports being due not later than April 1 of each calendar year for the preceding calendar year.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Secs. 37-32—37-39. Reserved.

DIVISION 4. ELECTRIC UTILITIES FILINGS AND REPORTS

Sec. 37-40. Statements of intent to increase rates.

(a) All statements of intent to change rates which are filed by an electric utility with the city shall be filed with the director at least 35 days before the effective date of the proposed increase. Statements of intent to increase rates shall include a rate filing package that includes at least the following:

(1) Proposed revisions of tariffs;

(2) A detailed statement of each proposed change;

(3) A detailed statement of the effect the proposed change is expected to have on the revenues of the utility;

(4) A description of each class and number of utility consumers affected; and

(5) Any other information required by the director.

(b) The director shall not consider an application to change rates to be properly filed until all items listed in subparagraphs (a)-(c) of this section have been filed with the director.

(c) The electric utility shall provide notice to the public of any proposed rate change as required by the Public Utility Regulatory Act.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-41. Reports.

Each electric utility shall submit the following reports and records to the director:

(1) A current set of maps showing the physical locations of its facilities that includes an accurate description of all facilities (substations and transmission lines);

(2) A summary report shall be submitted within five working days to the director after the end of a significant interruption lasting more than 24 hours. The summary report must include the date and time of the significant interruption; the date and time of full restoration; the cause of the interruption, the location, substation, and feeder identifiers of all affected facilities; the total number of customers affected; the dates, times, and numbers of customers affected by partial or step restoration; and the total number of customer-minutes of the significant interruption (sum of the interruption durations times the number of customers affected);

(3) An emergency operations plan as described by the Commission in chapter 25 of the Commission's rules;

(4) A storm hardening plan summary as described by the Commission in chapter 25 of the Commission's rules. The summary shall describe in detail the utility's current and future storm hardening plans over a five-year period. By May 1 of each year, the electric utility shall file with the director a detailed summary of any material reviews to the plan and a detailed summary of its progress in implementing the plan. A full copy of the plan shall be provided to the director upon request;

(5) A facilities review conducted by the electric utility; and

(6) Any other report and record related to rates, operations, services, and resiliency as requested by the director.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Secs. 37-42—37-49. Reserved.

ARTICLE III. DISCOVERY PROCEDURE AND HEARINGS

DIVISION 1. DISCOVERY PROCEDURE

Sec. 37-50. Requests for information, documents, and admission.

After a public utility files with the city an application to change rates, the director may serve upon the public utility written requests for information, requests for documents, and requests for admission.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-51. Making requests for information.

(a) A request under this division shall identify with reasonable particularity the information, documents, and materials sought. A request of documents or property shall describe with reasonable particularity the documents to be produced or the property to which access is requested and shall set forth the items to be inspected by individual item or category.

(b) Requests for information may be served by electronic mail or any other method prescribed by the director.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-52. Time for response.

A public utility upon whom a request is served shall provide a full written response to the request within 10 calendar days after receipt of the request. The director may extend or shorten the time for providing responses.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-53. Responding to requests for information, documents, and admission of fact.

(a) Each response to discovery under this division shall identify the preparer or person under whose direct supervision the response was prepared, and the sponsoring witness, if any.

(b) Each request shall be answered separately. Responses to requests shall be preceded by the request to which the answer pertains.

(c) Responses to requests for production of documents, property, or other items shall state, for each item or category of items for which an objection has not been raised, that inspection or other requested action will be permitted at a mutually convenient time at the location where the documents, property, or other items are maintained. If compliance with the request is impossible, a written response shall be provided to the director stating the reasons for the unavailability of the information.

(d) Where a request may be answered by production of or reference to information that currently exists in the form of a document, computer record, or other existing tangible thing that is voluminous, as defined in section 37-54 of this division, it is a sufficient answer to the request to specify the records from which the answer may be derived or ascertained and to afford a reasonable opportunity to the requesting party to examine, to audit or to inspect such records and to allow the director to make copies, compilations, abstracts, or summaries from such records. The specification of records provided shall include sufficient detail to permit the director to locate and to identify, as readily as can the public utility, the records from which the answers may be ascertained.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-54. Production of voluminous material.

The following procedures shall apply to production of voluminous materials:

(1) Responses to particular questions that consist of less than 1000 pages are not voluminous and shall be filed in full;

(2) Subject to paragraph (3) of this section, the public utility shall make available all voluminous material provided in response to a request for information at a location designated by the director;

(3) A public utility will be released from its obligation to make available the requested voluminous material at a designated location, only if the volume of the material exceeds eight linear feet. In that event, the party shall make the material available where the material is located; and

(4) The public utility providing the voluminous material shall file with its response a detailed index of the voluminous material responsive to a particular question and shall organize the responses and material to enable the director to efficiently review the material, including labeling of material by request for information number and subparts and sequentially numbering the material responsive to a particular question. The index shall include:

a. Information sufficient to locate each individual document by page number, file number, and box number;

b. The date of each document;

c. The title of the document, or, if none exists, a description of the document;

d. The name of the preparer of each document; and

e. The length of each document.

(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-55. Duty to supplement.

A public utility is under a continuing duty to supplement its discovery responses if that public utility acquires information upon the basis of which the public utility knows or should know that the response was incorrect or incomplete when made, or though correct or complete when made, is materially incorrect or incomplete. The

public utility shall amend its prior response within five working days of acquiring the information.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-56. Modifications of deadlines.

The director may modify deadlines for responses and objections at the request of a public utility.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-57. Objections to production and privileged information.

A public utility may make an objection to production of information, documents, or materials founded upon, without limitation, a claim of privilege, an exemption under the Texas Rules of Civil Procedure, and relevance. Objections to requests, if any, shall be filed within five calendar days of receipt of the request for information. The objections shall state the date the request for information was received. Any objection to production of information or claim of privilege shall meet the following requirements:

(1) The objections shall be submitted to the director electronically and be entitled, 'Objections of (name of public utility) to (style of request for information objected to).' The request for information to which an objection is being filed shall be stated and the specific grounds for the objection shall be separately listed for each question. If an objection pertains only to a part of a question, that part shall be clearly identified. All arguments upon which the objecting party relies shall be presented in full in the objection;

(2) If the objection is founded upon a claim of privilege or exemption under the Texas Rules of Civil Procedure, the public utility shall file within two working days of the filing of the objections, an index that lists, for each document: the date and title of the document; the preparer or custodian of the information; to whom the document was sent and from whom it was received; and the privilege(s) or exemption(s) that is claimed. A full and complete explanation of the claimed privilege or exemption shall be provided. The index shall be sufficiently detailed to enable the director to identify the documents from the list provided;

(3) A public utility raising objections on the grounds of relevance as well as grounds of privilege or exemption is not required to file an index to the privileged or exempt documents at the time the objections are filed. A public utility may instead include an objection to the filing of the index. The objections shall show good cause for postponement of the filing of the index. An index to the privileged or exempt documents shall be due within three working days of receipt of an order by the director denying the relevance objection or overruling the objection to the filing of an index;

(4) The requirement to respond to those requests, or portions thereof, to which objection is made shall be postponed until the objections are ruled upon by the director and for such additional time as granted by the director; and

(5) In the interests of narrowing discovery disputes, the public utility may agree to provide certain information sought by a request while objecting to the provision of other information sought by the request.

(Ord. No. 2023-1079, § 3, 12-6-2023)

Secs. 37-58, 37-59. Reserved.

DIVISION 2. HEARINGS

Sec. 37-60. Scope.

The provisions of this division shall apply where hearings other than informal proceedings are authorized or required under the Public Utility Regulatory Act, Gas Utility Regulatory Act, or Water Code to be conducted by the city as the regulatory authority for a public utility whether initiated upon motion of city council, by complaint of any affected person, or by the filing of a statement of intent to change rates or other action of a utility.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-61. Open to public.

All hearings conducted pursuant to this article shall be open to the public.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-62. Hearings before city council.

All public utility hearings before city council shall be conducted in regular or special session in accordance with the rules generally applicable to sessions of city council or such other and further rules as the city council may adopt. The mayor or other person designated by the mayor shall act as presiding officer for hearings conducted under this division.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-63. 'parties of interest' defined.

The term 'parties of interest,' as used in this division, means and includes the public utility whose rates or service standards or other regulated practices are in issue, the director, their respective legal representatives, other persons entitled as a matter of law to participate, and any other person whose presence is, in the judgment of the city council, necessary or expedient to the complete resolution of the matters in issue.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-64. Notice to parties of interest.

The city council shall transmit to all parties of interest in any hearing written notice of the time, date, and place of commencement of such hearing. After a hearing begins, the city council may give the parties notice of the times, dates, and the places of a postponed, continued, recessed, or adjourned hearing.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-65. Making a record of hearing.

The city secretary shall make a record of a hearing as required by section 2-67 of this Code.

The mayor or director may also retain a court reporter to transcribe the hearing upon request from the public utility. The cost of such transcription shall be borne by the public utility.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-66. Rights of parties of interest.

In a hearing conducted pursuant to this division, all parties of interest shall have the right to present their case or defense, to submit rebuttal evidence, and to conduct cross-examination of witnesses.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-67. Burden of proof.

In a hearing conducted pursuant to this division, the utility has the burden of proving that the rate change is just and reasonable.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-68. Order of procedure.

Unless the director otherwise states, the order of procedure in a hearing conducted under this division shall proceed as follows:

(1) The utility shall be entitled to open and to close. Parties may be allowed to make opening statements. Following opening statements, if any, the utility shall be allowed to proceed with its direct case. Opposing parties shall be allowed to cross-examine each witness, consistent with any order aligning parties. Each party shall then present its case and witnesses will be subjected to cross-examination. Unless otherwise ordered by the presiding officer, the city shall be the last party to present a direct case;

(2) Redirect or recross examination will be limited to matters raised in the round of examination immediately preceding the redirect or recross examination;

(3) The party with the burden of proof may rebut evidence presented by opposing parties after all parties have presented their direct cases. Rebuttal may be afforded other parties at the presiding officer's discretion, provided that the party with the burden of proof shall be entitled to make the closing presentation, which may include surrebuttal;

(4) The presiding officer may allow supplemental rebuttal only to the extent that the party with the burden of proof

could not have reasonably anticipated the need for such evidence in time to file it with the party's main rebuttal case. Oral supplemental rebuttal may be allowed, provided that the testimony is in response to matters first brought up in cross examination of a nonapplicant witness and only to the extent that the applicant could not have reasonably anticipated the need for such evidence in time to file it in written form. If a party intends to present supplemental rebuttal, it shall state in writing or on the record at the beginning of the presentation of its rebuttal case which witnesses will be presenting supplemental rebuttal, the general subject of the supplemental rebuttal, the evidence which the supplemental rebuttal is intended to rebut, and which rebuttal, if any, will be oral rather than written. Written supplemental rebuttal, if allowed, shall be filed no later than three working days after the date the evidence being rebutted was admitted. Oral supplemental rebuttal shall be limited to evidence offered to rebut evidence admitted less than five working days before the oral supplemental rebuttal is offered. Any exhibits offered during oral supplemental rebuttal shall be distributed to the presiding officer and the parties at the beginning of the applicant's rebuttal case, unless otherwise ordered by the presiding officer. A party may be exempted from the requirements of this subparagraph only upon a showing that compliance is not feasible;

(5) After parties have completed the presentation of evidence, and have been afforded the opportunity to cross-examine the other parties' witnesses, closing statements may be allowed. Such statements shall be made either in writing or orally at the presiding officer's discretion;

(6) The presiding officer and council members may question any witness testifying in a case. A party may raise an evidentiary objection to any question asked by the presiding officer or city council members, and the presiding officer shall rule on any such objection;

(7) The parties shall have an opportunity to cross-examine witnesses regarding answers to questions from the presiding officer and/or city council members; and

(8) The presiding officer may call upon any party for further material or relevant evidence on any issue. The additional evidence shall not be admitted without an opportunity for inspection, objection, and cross-examination by all parties, and rebuttal by the party with the burden of proof on the whole proceeding.

(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-69. Keeping a record of the hearing.

The city secretary shall maintain a record of any hearing conducted under this division as a permanent record of the city. The record shall include the transcript, exhibits, papers, applications, requests, briefs, and the final determination by the city council of the proposed rate increase.

(Ord. No. 2023-1079, § 3, 12-6-2023)

ARTICLE IV. STANDARDS OF SERVICE

Sec. 37-70. Standards of service.

The city adopts by reference the following provisions governing a public utility's standards of service:

(1) For an electric utility, subchapter A of chapter 38 of the Public Utility Regulatory Act, including, without limitation, section 38.005, as amended, and any Commission rules governing standards of service;

(2) For a gas utility, subchapter F of chapter 104 of the Gas Utility Regulatory Act, including, without limitation, section 104.251, as amended, and any Railroad Commission rules governing standards of service; and

(3) For a water and sewer utility, subchapter G of chapter 24 of the Commission's rules, as amended.

Any reference to the Commission or Railroad Commission in rules adopted by reference shall be construed as reference to the city.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-71. Non-waiver.

Nothing contained in this chapter shall be construed as constituting a surrender of jurisdiction by the city over the regulation of the service provided by any public utility. The city reserves the right to adopt local modifications to the regulations which are adopted by reference or to supersede the same in whole or in part with local rules to the extent of its jurisdictional area.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Secs. 37-72—37-79. Reserved.

ARTICLE V. ACCESS TO PUBLIC, EDUCATIONAL, AND GOVERNMENTAL CABLE CHANNELS BY OTHER MUNICIPALITIES

Sec. 37-80. Definitions.

The following words, terms, or phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Applicant municipality means any municipality that submits an application to the director in substantially the form prescribed in this division.

Cablecast franchisee means the applicant municipality's cable television franchisee that will cablecast the city's PEG channel programming.

CPI means the Consumer Price Index, Urban Consumers, all items, United States Average, as compiled by the United States Department of Labor, Bureau of Labor Statistics, Washington, D.C. (or, if the CPI is discontinued, the most nearly comparable statistics published by a recognized financial authority selected by the director).

PEG channel means a cable television channel reserved for public, educational, or governmental programming and used in accordance with the rules and procedures established by the city.

PEG channel programmer means an entity that provides PEG channel programming, including with respect to governmental programming, the city. PEG channel programming means programming provided either by the city or under contract with the city for cablecast on the city's PEG channels.

Playback facility means the facility for playback of all pre-recorded programming for a PEG channel and switching of all programming from remote locations that may be required to support PEG channel programming, including, but not limited to, cameras, recording, or playback machines and related devices.

Receiving municipality means a municipality that receives the city's PEG channel programming under this division.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-81. Policy.

It is the policy of the city that PEG channel programming be reasonably available for cablecast through the city's PEG channel playback facilities on the cable systems serving other municipalities. The policies and procedures established in this division are intended to accomplish PEG channel access in a fair and equitable manner without disruption to viewers within the city.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-82. Application.

(a) An applicant municipality that desires its cablecast franchisee to obtain PEG channel programming shall submit an application to the

director in a form promulgated by the director for that purpose, which shall contain the following information:

(1) The PEG channel programming the applicant municipality wishes its cablecast franchisee to receive, which need not include all PEG channels;

(2) The name of the applicant municipality's cablecast franchisee;

(3) The estimated number of the cablecast franchisee's cable television subscribers located within the applicant municipality;

(4) A written statement from each PEG channel programmer whose channel is included in the application consenting to the cablecast of its programming as provided in the application and agreeing to accept compensation therefor as provided in this division;

(5) A written statement from each of the applicant municipality's cablecast franchisees that the cablecast franchisee consents (or is required by the applicant municipality's ordinance) to carry the requested PEG channel programming;

(6) An indemnification and release in the form prescribed by the city attorney, executed by the cablecast franchisee in favor of the city;

(7) Written evidence satisfactory to the director that the cable systems of the city and the applicant municipality are compatible and capable of interconnection without interference with the cable television reception of viewers within the city;

(8) A certified copy of an ordinance or other official action by the applicant municipality's governing body approving the application and agreeing to abide by the terms of this division and any authorization granted by the city pursuant hereto; and

(9) Any other information the director determines is reasonably required to facilitate the application.

(b) Application information may be changed before the director's decision becomes final by submission of an amended application.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-83. Issuance.

(a) If the director determines that the application complies with the requirements of section 37-82 of this Code, the director shall grant the application and promptly notify the applicant of the decision.

(b) If the director determines that the application does not comply with the requirements of section 37-82 of this Code, the director shall deny the application and promptly notify the applicant of the decision and the specific reason therefor.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-84. Fees.

(a) As compensation for access to PEG channel programming, each municipality shall pay the city the fee stated for this provision in the city fee schedule.

(b) The director shall issue regulations relating to the manner in which the fee will be assessed and collected and the manner in which the CPI adjustment shall be calculated and implemented.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-85. Effect of approval.

The city will not provide any services under this division other than the use of the playback facility to receive the PEG channel programming and consent to cablecast the municipal channel operated by the city. Any municipality receiving PEG channel programming under this division is responsible for obtaining any and all consents or other authorization necessary to cablecast the requested PEG channel programming. Nothing herein shall be construed to in any way alter the status, responsibilities, duties, or liabilities of the respective parties to the municipal franchise agreements under which the cablecast franchisees may operate. Responsibility for compliance with applicable copyright, intellectual property, or similar laws remains with the PEG channel

programmer. Further, responsibility for certifying that the PEG channel programming does not contain obscene or indecent material or material that is otherwise proscribed by law also remains with the PEG channel programmer.
(Ord. No. 2023-1079, § 3, 12-6-2023)

Sec. 37-86. No additional obligations.

The city assumes no obligation to change, reconfigure, or otherwise upgrade the playback facility, or to make any interconnection with the cable television system of a municipality to facilitate reception of the PEG channels.
(Ord. No. 2023-1079, § 3, 12-6-2023)

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Chapter 38

RAILROADS*

Sec. 38-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Major street.* Any street within the city which:

a. Is a through or express street as designated by the city traffic engineer on the express street plan pursuant to section 45-39(a) of this Code; or

b. Has a traffic count of 10,000 motor vehicles or more per day over any railroad track intersecting it, where the total traffic count is the total of the number of vehicles crossing the railroad track from each direction per day.

(2) *Person in charge.* That physical person accompanying a train who is empowered to direct its operations.

(3) *Principal officer or manager.* The principal person in charge of all operations of a railroad company in the city.

(4) *Railroad company.* Any individual, partnership, association, corporation, trustee, receiver or other person that lays out, constructs, maintains or operates any railroad or operates any trains, engines or cars on a line of railway in the city.

(5) *Switch train.* Any train engaged solely in moving freight or passenger cars within the city from one railroad yard to another railroad yard, or in the same railroad yard, or in transferring railroad cars to and from the various switch tracks or spur tracks within the city. A switch train is distinguished from a through passenger or freight train operating intrastate or interstate into or through the city.

(Code 1968, § 39-1; Ord. No. 82-1854, § 1, 11-23-82; Ord. No. 90-635, § 79, 5-23-90; Ord. No. 93-514, § 57, 5-5-93)

Sec. 38-2. Permit to lay tracks.

No railway company shall lay tracks within the limits of the city without a special permit from the city council being first had and obtained. It shall be the duty of the city engineer to examine and report on each application for such permit as to the advisability of granting such permit.

(Code 1968, § 39-2; Ord. No. 90-635, § 80, 5-23-90)

Charter reference—Authority to regulate construction of railroad tracks, Art. II, § 5.

Sec. 38-3. Map and profile required before grant of right-of-way.

(a) No right-of-way over any of the streets within the city shall be granted to any railway company unless a map and profile of the grades along the streets named shall accompany the application and ordinance granting the right-of-way. It shall be the duty of the city engineer to inspect any and all such maps and profiles and report the result of his investigation as soon thereafter as possible to the city council, and no right-of-way shall be granted until such examination shall be made and reported upon in order to better protect the rights of property owners along the several streets; provided, that there shall be no costs attached to the city.

(b) When a railroad company applies to renew a franchise to cover existing track or tracks, including tracks which cross a street or streets, the city engineer, with the concurrence of the director of the department of administration and regulatory affairs, may waive the requirement

*__Charter reference—__Authority of city over railroads, Art. II, §§ 5, 5a, 16(g), (p), (t).
__Cross reference—__Streets and sidewalks, Ch. 40.

for filing a profile of the grades along or across the streets named in the application by filing a written recommendation with the city council to be attached to said application, provided that the railroad company shall furnish said profile upon the request of the city engineer.
(Code 1968, § 39-3; Ord. No. 70-177, § 1, 2-4-70; Ord. No. 87-851, § 1, 6-2-87; Ord. No. 90-635, § 80, 5-23-90; Ord. No. 08-52, § 62, 1-16-08, eff. 1-26-08)

Cross reference—Official survey system, § 33-61 et seq.

Sec. 38-4. Duty to reconstruct or construct grade crossings.

(a) It is hereby made the duty of each railroad company owning, controlling, maintaining or operating railroad tracks crossing a public street at a grade within the corporate limits of the city to reconstruct (in case of existing tracks) and to construct (in the case of future tracks) any and all such tracks according to the various categories of streets set forth below. Once tracks crossing a street have been reconstructed or constructed according to said categories, it shall be the duty of each railroad company to keep any and all such tracks, at all times thereafter, in a good and safe condition until said grade crossing is again reconstructed in compliance with this section 38-4.

(b) There are hereby established three categories of street crossing to be used by each railroad company when reconstructing or constructing a grade crossing:

(1) *Category I:* Major street, as defined in section 38-1 of this chapter.

(2) *Category II:* Any public street which has a traffic count of 3,500 or more but less than 10,000 motor vehicles per day over the railroad track, where the traffic count is the total of the number of vehicles crossing the railroad track from each direction.

(3) *Category III:* Any public street other than Categories I and II above.

(c) Each railroad company shall reconstruct or construct grade crossings over public streets in Categories I and II using not less than the standard permanent type materials such as steel; steel reinforced molded rubber; high density polyethylene; full depth timber or other permanent type materials acceptable to the Director of Houston Public Works.

(d) Each railroad company shall reconstruct or construct grade crossings over public streets in Category III using not less than the standard plain bituminous materials.

(e) It shall be the duty of the traffic engineer to conduct a survey and study of all existing railroad crossings in the city, and, from this survey and study, to compile and maintain a list or lists of all such crossings, together with the name of each railroad company owning or controlling each crossing and the type of crossing required under subsections (c) and (d). The list for each railroad company shall rank the crossings in the order of priority to be reconstructed in accordance with subsections (c) and (d) hereof, and it shall be the duty of each railroad company to secure these lists from the traffic engineer and to commence and complete a program of systematic reconstruction of all such crossings.

(f) In addition to the systematic reconstruction required in subsection (e) hereof, the traffic engineer may, from time to time, notify a railroad company that a particular track (or tracks) crossing a street is in such state of disrepair that it must be reconstructed in compliance with subsections (c) and (d) hereof, regardless of the priority assigned to such crossing, and the railroad company shall thereafter start and complete such reconstruction within a reasonable time, but in no event shall such time exceed 120 days.

(g) Any railroad company that disagrees with any decision made by the traffic engineer under this section shall have ten days from the date it was notified of that decision by the traffic engineer to appeal such decision to a three-member board to be known as the grade crossing review board. Such board shall be composed of the directors of Houston Public Works, the department of administration and regulatory affairs, and the department of planning and development or their designees. The director of Houston Public Works or designee shall serve as chairman of the

grade crossing review board and notify the appealing railroad company in writing of the time and place for hearing such appeal.

(h) At the time and place designated for such hearing, the appealing railroad company and the traffic engineer shall attend and present all relevant facts concerning the decision under appeal.

After considering all the facts and circumstances presented at the hearing, the grade crossing review board, by a majority vote, shall issue a decision in writing to both parties upholding, modifying or overruling the decision of the traffic engineer. Such written decision shall be made within five days after the date of the hearing and the decision of the grade crossing review board shall thereafter be complied with as the decision of the traffic engineer.

(i) Any railroad company violating any of the provisions of this section 38-4 may be enjoined or mandamused by a suit filed by the city in a court of competent jurisdiction, and this remedy shall be in addition to other penalty provisions.
(Code 1968, § 39-4; Ord. No. 82-1954, § 2, 11-23-82; Ord. No. 85-297, § 1, 3-5-85; Ord. No. 90-635, § 81, 5-23-90; Ord. No. 93-514, § 58, 5-5-93; Ord. No. 08-52, § 63, 1-16-08, eff. 1-26-08; Ord. No. 2018-11, §§ 26, 49, 1-10-2018)

Charter reference—Authority to require railroad to construct crossings, Art. II, § 5.

Sec. 38-5. Mayor authorized to execute license agreements for crossing right-of-way by city water and sewer lines.

The mayor is authorized to execute and the city secretary to attest license agreements with railroad companies operating in the city, for the crossing by the city of the railroad right-of-way with sewer and water lines, where such license agreements are on the usual and customary forms furnished by the railroad company concerned, where the consideration to be paid by the city does not exceed $10.00 in any one year, and where no special or extraordinary obligations are incurred by the city over and above those normally contained in the usual and customary printed form of license agreement.
(Code 1968, § 39-5)

Sec. 38-6. Provisions governing franchise to construct and use railroad tracks across public streets.

The right, privilege and franchise, which may be granted by separate ordinance to a railroad company ("the company"), to permit its construction, use and maintenance of railroad track(s) upon and across public street(s) within the corporate limits of the city for the purpose of operating its trains, engines and cars thereon, shall, when granted, be granted subject to and upon the following provisions and requirements, and the company, by accepting the franchise, covenants and agrees to be bound by and to observe and perform each and all of the following provisions and requirements, which shall for all purposes be deemed to be a part of the granting ordinance as if set forth verbatim, therein:

(a) Without limiting the scope or application of any other provision hereof, the company's installation of and all later activities with respect to the tracks:

(1) Shall comply with all matters set forth in the construction plans for same which have been reviewed and approved by the city engineer including, but not limited to, all matters added to or deleted from such plans by or at the request of the city engineer or for the purpose of obtaining his approval thereof, such plans to be identified by drawing number in the granting ordinance; and

(2) Shall be performed to the satisfaction of the city engineer.

(b) The company shall construct its tracks so as not to interfere with drainage across and along any public street, and the company shall construct and maintain all ditches, drains and culverts necessary to the proper drainage of those parts of any street occupied by the tracks, as determined by the city engineer. The

company shall construct each crossing in compliance with the applicable specifications as set forth in section 39-4, and shall construct, repair and maintain the paving in the entire remainder of the franchise area described in the granting ordinance (on both sides of each crossing) in such manner and with such material as determined and ordered by the city engineer.

(c) The city reserves and shall have the right to install any sewer line, water line or other utility lines or facilities of any kind whatever under, over or across the tracks, or to make any other lawful use of the streets where same are located. The company shall reimburse the city for that portion of the cost of construction of any new such facilities, and that portion of the cost of maintenance, repair or replacement of any city utility facilities existing at the time the franchise is granted, which would not have been incurred by the city except for the presence of the tracks. The city engineer shall determine the amount of such portion of cost to be paid by the company, and his determination thereof shall be final. Where a sewer line, water line or other utility lines or facilities of any kind whatever are occasioned by the presence of the tracks, the total cost of such lines or facilities shall be borne by the company. Standard railroad cross bucks shall be installed by the company on the right side of each approach to each crossing, unless the city directs that other or additional safety protective devices be installed.

(d) The company shall in no instance allow its use of the rights granted to it under the franchise to endanger the streets where the tracks are located, or the use thereof by the city or the public. Should the company's use of its rights under the franchise ever damage such streets or any other property of the city, the company shall promptly repair and restore same to the condition in which it existed, and to the usefulness which it possessed, prior to the occurrence of such damage.

(e) In consideration of the grant of franchise, the company shall annually pay to the city, per track, the fixed fee of $100.00, plus the charge of $75.00 for the first 125 feet (or fraction thereof), and an additional $25.00 for each additional 100 feet (or fraction thereof), of occupancy of public street right-of-way. The payment to be made for the year in which acceptance of the franchise occurs shall be the greater of:

(1) A proportioned amount of the total of the $100.00 fixed fee plus the per-foot charge, computed as set forth above, according to the time remaining from the effective date of the ordinance granting the franchise until the next succeeding first day of January; or

(2) $1,000.00.

The payment to be made for each succeeding year shall be the full amount of the total of the $100.00 fixed fee plus the per-foot charge, computed as set forth above. The first such payment shall be made within 30 days after the effective date of the granting ordinance, and subsequent annual payments shall be made on the first day of January of each year thereafter during the term of the franchise.

(f) The franchise shall not take effect until after the expiration of 30 days after the granting ordinance has been duly passed by the city council and has been approved by the mayor, and then only if, within such time, the company has filed with the city secretary written acceptance of the franchise. The franchise shall be for a term of 15 years commencing as of the effective date thereof, unless some shorter term is specified in the granting ordinance.

(g) The city reserves and shall have the right (without limitation) to require that automatic flasher warning signals, or

other or additional safety protective devices, be installed at each crossing on such conditions as the city council, acting pursuant to and in accordance with the authority and provisions of the constitution and general laws of the state, and of the Charter and ordinances of the city, shall direct.

(h) The company shall not, wholly or in part, transfer, assign or otherwise dispose of the franchise, or its rights thereunder, without the express written consent of the city having been first obtained. To obtain the city's consent, the company must file its request therefor, together with a true copy of the proposed instrument of transfer, with the director of administration and regulatory affairs, who shall make a recommendation thereon to the city council. Upon consent by the city to the transfer or assignment, each provision of the franchise shall be binding upon, and inure to the benefit of, the transferee or assignee of the company.

(i) The company may voluntarily terminate the franchise at any time by giving the city 60 days' written notice thereof. However, failure to commence installation of the tracks within 90 days after the franchise takes effect; or later abandonment or discontinuance of use of the tracks; or default in the payment of any taxes or lawful charges due thereon; or violation of or failure to comply with any of the provisions or requirements of the granting ordinance, or any of the provisions of the Constitution and general laws of the state, or of the Charter and ordinances of the city, insofar as they relate to the franchise granted, shall, at the option of the city, annul the franchise and work as a forfeiture of all rights and privileges granted therein, which shall thereupon refer to and vest absolutely in the city.

(j) Upon termination of the franchise under any circumstances, the company shall remove the tracks from the streets where located, and replace the streets in such condition and repair as shall be determined and ordered by the city engineer. Should it fail to remove the tracks, the company consents to any damage to, dismantling of, or paving over the tracks which might occur after such termination of the franchise or its rights thereunder, and further releases the city from all liability for or because of any such damage, dismantling or paving over, which might occur after such termination.

(k) The exercise of any and all rights, and the fulfillment of any and all requirements or obligations, under the franchise shall be at the sole and complete expense and liability of the company. Further, the company agrees that it will defend, indemnify and hold the city free and harmless from and against any and all loss, claims, liability, recoveries and/or expense which may be asserted against, incurred by or involve the city in any manner whatever because of:

(1) The grant of franchise to the company; or

(2) The company's exercise of any rights granted to it, or fulfillment of any requirement or obligation imposed on it, thereunder.

(The word "city," in this paragraph means the city, its officers, agents, contractors and employees.)

(l) The franchise shall be subject to all existing laws and ordinances, and to such laws and ordinances as may be enacted hereafter. Nothing shall be considered as a waiver of any power of regulation of public utilities vested in the city by the Constitution and general laws of the state, or the Charter and ordinances of the city. No requirement added to those stated hereunder for the franchise, whether now or subsequently authorized by law, shall be defeated by the company on the ground that the ordinance granting the franchise and the acceptance

thereof constitutes a contract, the obligation whereof is impaired by such additional requirement.

(m) Should the city council find that public convenience and necessity require the removal of the tracks installed pursuant to the franchise, city council reserves and shall have the absolute right to terminate the franchise. Termination in such event may be effected only by ordinance passed by the city council, and the termination shall not be effective until 60 days after the company's receipt of written notice thereof delivered to it by registered mail at the address for the company recited in the granting ordinance.

(Code 1968, § 39-6; Ord. No. 73-1218, § 1, 6-27-73; Ord. No. 82-972, § 1, 6-15-82; Ord. No. 82-1174, § 1, 7-27-82; Ord. No. 82-1854, § 3, 11-23-82; Ord. No. 90-635, §§ 82—84, 5-23-90; Ord. No. 08-52, § 64, 1-16-08, eff. 1-26-08)

Sec. 38-7. Drainage improvements; maintenance and repair of streets, bridges, etc.

(a) It shall be the duty of all railroad companies whose lines of road are constructed on, over or across any street or part of a street or land in the city to make, construct and maintain, under the supervision of the city engineer and in accordance with plans and specifications to be furnished by the Director of Houston Public Works, all such drains, culverts, waterways, ditches, sewers and such other connections as shall be deemed necessary by the city council to properly drain the streets and lands on, over or across which such railway line is constructed, and to conduct the water into some proper sewer, and, if necessary, conduct such water outside the city limits.

(b) It shall be the duty of each railroad company whose lines of road are constructed within the corporate limits of the city to keep all streets, or parts of streets, through or over which its lines of road may run, free from obstructions of every kind.

(c) It shall be the duty of each railroad company to construct and keep in good repair all bridges and crossings over all ditches, sewers and culverts on the lines of its railway, and to fill up and grade all sinks and gullies adjacent to or on the lines of its road; which work and improvements shall be done and made under the direction and supervision of the city engineer, and in such manner and of such material and at such points as may be required by him.

(d) In any case where an improvement contemplated by this section is deemed necessary by the city engineer, he shall prepare or cause to be prepared plans and specifications as to the several practicable ways, if more than one exists, in which such improvement can be made. Such plans and specifications shall be submitted to the city council, together with a recommendation that such improvement is necessary. If the recommendation appears reasonable, the council shall make an order directing the city secretary to notify the officer or agent having an office in the city and having direct charge and control of the operations of the railroad company within the corporate limits of the city, to appear before the council at a date and place fixed in such order to show cause, if any it can, why such improvement should not be constructed without delay in accordance with one or the other of such plans and specifications so submitted.

(e) At the time and place stated for the hearing provided for in this section, the city council shall hear evidence as to the necessity for such improvements and as to the best plan for carrying out the same. Evidence should also be heard as to the reasonable and proper length of time which will be required to complete such improvements. After the conclusion of such hearing, the council shall, by ordinance, order the improvement made, and it shall also approve the plans and specifications deemed to be most suitable and practical for the work therein ordered to be done, which ordinance shall also designate a date at which such improvements shall be completed and order same to be completed (within such time), and the city engineer shall notify the city secretary upon completion or failure to complete such improvements within the time designated. A copy of such ordinance, together with a copy of the plans and specifications for such work as approved by the council, authenticated by the certificate of the city

secretary, shall be mailed to the officer or agent having an office in the city and having direct charge and control of the operations of the railroad company within the corporate limits of the city. Such notice shall be addressed to the main office of the railroad company in the city.

(f) It shall be unlawful for the officer or agent of the railroad company having an office in the city and having direct charge and control of the operations of the railroad company within the corporate limits of the city to fail, refuse or neglect to construct and complete the improvements ordered by the city council within the specified time. Any such failure, refusal or neglect shall be punished by a fine as provided in section 1-6 of this Code and each day such violation is continued shall constitute a separate offense. The failure, refusal or neglect to construct and complete the improvements ordered by the city council within the specified time shall also be deemed the failure, refusal or neglect of the railroad company, and such company shall be liable to the city for a civil penalty of $50.00 per day of each day that such failure, refusal or neglect shall continue. The city shall have the right to institute civil suits for the recovery of such penalties, or to maintain criminal prosecutions or to pursue both of such remedies, the adoption of one course of procedure not to be deemed an abandonment of its right to proceed under both.

(Code 1968, § 39-7; Ord. No. 82-1854, §§ 4, 5, 11-23-82; Ord. No. 90-635, § 85, 5-23-90; Ord. No. 93-514, § 59, 5-5-93; Ord. No. 2018-11, § 49, 1-10-2018)

Charter reference—Authority to require railroads to maintain streets, etc., Art. II, § 5.

Sec. 38-8. Separation of railroad grade from street grade.

(a) Wherever the city council shall find that a public necessity exists for a determination as to whether the public safety requires the separation of the grade of any railroad from the grade of any street crossed by such railroad within the corporate limits of the city, such inquiry shall be made as follows:

(1) The city council shall pass a resolution finding that a public necessity exists for a determination as to whether the public safety requires such grade separation, describing the location of such street and of such railroad. The city council in such resolution shall call a public hearing, but no such hearing shall be set for any date prior to the elapse of 15 full days from the date of the passage of the resolution. The city secretary shall forward a certified copy of such resolution to the principal officer of the railroad company in the city by registered United States mail, or by causing the same to be delivered to the principal office of such company by some officer or employee of the city.

(2) At the time and place set in such resolution, the city council shall assemble in public meeting and proceed with such hearing. The city attorney shall represent the city in such hearing. The railroad company shall be heard fully upon the questions presented.

(3) The city council is empowered, in its discretion, to permit the giving of evidence by any other person interested in or affected by the proposed grade separation.

(b) At such public hearing, the city council shall determine the following:

(1) Whether the safety of the public requires a separation of the grade of the railroad from the grade of the street at the crossing in question.

(2) If such separation is required, the most practical and feasible plan to be adopted for such separation, whether by one or more of the following methods:

a. Lowering of the present grade of the tracks of the railroad below the grade of the street.

b. Elevating or raising the tracks of the railroad so as to bridge the grade of the street.

c. Constructing an underpass so that the street shall pass under the railroad.

d. Constructing an overpass so that the street shall pass over the tracks of the railroad.

(3) Whether any additional lands or rights-of-way are required for the construction of such project, and the estimated cost of acquiring same.

(4) A determination as to how the cost of the construction of the entire project shall be apportioned, whether all of the same shall be paid by the railroad company, or all by the city, or part by the company and part by the city.

(c) When all evidence has been received at such public hearing by the city council, the city council shall close the same and proceed to a determination of the fact issues presented. If the city council shall find that the public safety requires such grade separation, it shall cause plans and specifications to be prepared showing how the work is to be constructed and shall embody its findings and orders in an ordinance ordering the separation of the grade and the payment of the costs incident thereto.
(Code 1968, § 39-8)

Charter reference—Authority to regulate grade separation, Art. II, § 5.

Sec. 38-9. Obstructing street or crossing.

Any officer, agent, servant or receiver of any railway corporation who willfully obstructs for more than five minutes at any one time any street, railway crossing or public highway by permitting a train to stand on or across such crossing, shall be fined not less than $50.00 nor more than $500.00.
(Code 1968, § 39-9; Ord. No. 75-486, § 1, 3-26-75; Ord. No. 92-1449, § 52, 11-4-92)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

Sec. 38-10. Report of obstructed crossings.

(a) It shall be the duty of the yardmaster, engineer, conductor and every other person in any manner controlling or operating any railway locomotive, engine, car or train of cars, including the resident superintendent, general manager, president or receiver of such railway company, to report in writing to the traffic engineer, within one week thereafter, all obstructions of public crossings in the city by a railway locomotive engine, car or train of cars coming within his knowledge or jurisdiction, specifying particularly the period of time for which such public crossing was blocked, the number of the engine and the name of the engineer or conductor of such engine, car or train of cars, if available.

(b) Whenever the traffic engineer shall receive information from the police department or any other person that a major street has been blocked at a railroad crossing by a switch train for a longer period than five minutes at one time, he is hereby authorized and empowered to serve a demand in writing upon the principal officer or manager of any railroad company believed by him to be operating trains upon such railroad at such crossing to make a report in writing containing the following information:

(1) Whether the railroad company operated a switch train or trains, at or about the time or times specified in the traffic engineer's demand on the railroad crossing the major street at the intersection in question.

(2) If so, the number assigned to the engine and to the train, if any.

(3) The correct legal name of the railroad company operating such switch train.

(4) The name of the person in direct charge of such switch train and the movements thereof.

The report shall be filed in the office of the traffic engineer not later than 5:00 p.m. of the day following the day of service of his written demand, unless such following day shall fall on a Saturday or a Sunday, in which case the report shall be filed on the following Monday by 5:00 p.m. If the following day shall fall on a legal holiday established by the city council upon which day the city hall is closed for business, the report shall be filed on the next day thereafter when the

city hall shall be open. Such report shall be in writing and signed by the principal officer or manager of the railroad company in the city.
(Code 1968, § 39-10; Ord. No. 90-635, § 86, 5-23-90; Ord. No. 93-514, § 60, 5-5-93)

Sec. 38-11. Gates, guards and other protection at crossings generally.

(a) Whenever, on any street or sidewalk crossed by the tracks of any railway company, the city council deems it necessary to provide protection to persons and property at such crossings by the erection and maintenance of gates, guards or other protection, the council may so declare and direct that such railway company shall, within a certain time to be fixed by the council, erect, construct and maintain a sufficient safeguard of such character at such crossings, specifying the kind of protection to be erected, constructed and maintained, whether it be a gate, guard or other protection,

and it shall be the duty of the city secretary to serve upon such company named in such resolution a certified copy thereof within ten (10) days after passage of such resolution, leaving a copy thereof with the local agent of such company in the city, or at the general office of such company.

(b) Every gate, guard or other protection, and the approaches thereto, when ordered as provided by this section, shall be erected and constructed at the sole cost and expense of the railroad company, under the supervision of the city engineer and the same shall thereafter be kept and maintained by such railroad company in proper repair and condition at its own cost and expense, and without cost or expense to the city, and under the supervision of the traffic engineer.

(c) Whenever any railroad company shall have been directed by the city council to erect, construct and maintain at any street or sidewalk crossed by its tracks, any gates, guards or other protection, as provided in this section, such company shall, within the time prescribed in such resolution, construct and thereafter maintain the protection specified in such resolution, under a civil penalty of one hundred dollars ($100.00) for every failure so to do, and each and every ten (10) days after the expiration of the time so fixed for the construction of such protection that any company shall refuse or neglect to proceed with the erection and construction of the kind of protection specified shall constitute a separate and distinct offense, and incur a separate penalty. The city shall have the right to institute civil suits for the recovery of such penalty.
(Code 1968, § 39-11; Ord. No. 90-635, § 87, 5-23-90)

Sec. 38-12. Closing of crossing gates and guards.

Whenever any gate or guard has been erected under the provisions of this chapter, it shall be the duty of the railway company on whom devolves the duty of maintaining and operating the same to keep the same securely closed at the approach of and during the passage of any railway train across the part of the street or sidewalk it is designed to protect; provided, that the crossing shall not be kept closed longer than five (5) minutes at any one time, and any railway company violating the provisions of this section shall be subject to a criminal penalty of not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00).
(Code 1968, § 39-12; Ord. No. 92-1449, § 53, 11-4-92)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

Sec. 38-13. Flagmen at crossings.

It shall be the duty of each railway company operating a railroad within the corporate limits of the city to keep, by day and night, at such public crossings as may be designated from time to time by the city council, one (1) or more flagmen, whose duty it shall be to warn traffic of the approach of trains, and to see that such crossings are kept free of standing trains, locomotives and other obstructions, except at crossings where the railroad company maintains electric warning devices approved by the traffic engineer.
(Code 1968, § 39-13; Ord. No. 90-635, § 88, 5-23-90)

Charter reference—Authority to regulate crossings, Art. II, § 5.

Sec. 38-14. Lighting of crossings.

(a) It shall be the duty of each railroad company customarily and regularly operating trains at night within the city over and across the public streets in the city to erect, establish, keep and maintain an electric light, when and as may be ordered by the city council, at each crossing that is designated by the city council. Such electric light shall be of not less than fifty (50) watts, and shall be not more than seventy-five (75) feet distant from the nearest rail at such crossing and not less than twenty-two (22) feet distant from the ground.

(b) The crossings where electric lights are required to be erected, established, kept, lighted and maintained in accord with this section shall be designated by the city council by resolution passed by it after a finding by the city council that trains are customarily and regularly operated over each such crossing at night, and that a necessity exists for the erection, establishment and maintenance of an electric light at such crossing for the protec-

tion of the safety and security of persons traveling over the same.

(c) At crossings where electric lights are required to be erected, established, kept and maintained in accord with this section, such lights shall not be required to be kept burning nor lighted during such hours, or parts of hours, when the lights in use for lighting the city streets shall not be lighted or burning. The purpose of this subsection is to exempt the railroad company from lighting such crossing at any time the streets of the city are not lighted.

(d) Should any standard safety device be installed, designed to warn citizens and other travelers of the approach of a train, and to provide for their safety and security, or should a watchman be placed to accomplish this purpose, at any crossing designated by the city council for the erection of electric lights, the provisions of this section shall not apply and such provisions shall become inoperative as to such crossing.

(e) Any railroad company or person operating a railroad in the city who shall fail to keep and maintain such lights as are hereinbefore provided for when required to do so by proper resolution of the city council, or who shall fail to comply with the provisions of this section, shall be liable to the city for a fine which may be imposed as provided in section 1-6 of this Code, which penalty shall be recoverable by and in the name of the city by a suit in any court of competent jurisdiction.
(Code 1968, § 39-14)

Charter reference—Authority to regulate crossings, Art. II, § 5.

Sec. 38-15. Cumulative provisions relating to lighting at railroad crossings.

(a) Regardless of whether trains are customarily and regularly operated over a railroad crossing at night, the city council may determine that a necessity for such lighting exists in which event the railroad company operating such crossing shall erect, establish and maintain at its sole cost and expense an electric light for the protection of the safety and security of persons traveling over such crossing.

(b) The city may participate with the railroad companies in paying for up to one-half of the cost of electrical power for lighting at all railroad crossings within the City. This provision may be invoked by adopting a resolution which shall state:

(1) The crossing or crossings required to be lighted under the provisions of this section;

(2) The name or names of the railroad company or companies operating such crossing or crossings; and

(3) The share of the electrical bill, up to one-half that the city will pay.

(c) The city secretary shall mail a certified copy of such resolution, return receipt requested, to each railroad named in such resolution.

(d) The provisions of this section shall be cumulative of all other provisions of the code relating to this subject matter.
(Code 1968, § 39-14.1; Ord. No. 83-2092, § 1, 12-28-83)

Secs. 38-16, 38-17. Reserved.

Sec. 38-18. Speed limit for trains—At crossings generally.

Except as otherwise provided in section 38-19, it shall be unlawful for any engineer or other person in charge of any locomotive, train, motor car or other vehicle for the transportation of freight or passengers by railroad to run the same onto any street crossing within the corporate limits of the city at a greater rate of speed than twenty (20) miles per hour.
(Code 1968, § 39-17; Ord. No. 86-465, § 1, 4-2-86)

Sec. 38-19. Same—At specific crossings.

Upon the portions of the railroad lines set out in this section, the maximum speed authorized for any train or vehicle operated on the rails, when entering any street crossing, is as follows:

(1) *Maximum speed of thirty (30) miles per hour:*

a. Upon the Galveston, Houston and Henderson Railroad Line, which generally

parallels Harrisburg and Galveston Road, from a point one hundred (100) feet east of its intersection with 67th Street, to a point one hundred (100) feet southeast of its intersection with Park Terrace Boulevard.

b. Upon the Houston Belt and Terminal Line, which generally parallels Hardy Street, from a point one hundred (100) feet north of its intersection with Bennington Street, and including the short connecting tracks, to the east-west Houston Belt and Terminal Line just north of the North Loop Freeway, southerly to its intersection with the Gulf Freeway near Calhoun Road. This is referred to as the "Freight Main Line."

c. Upon the Houston Belt and Terminal Railway Line, generally parallel to and north of the North Loop, at its intersection with Hardy Street.

d. Upon the Houston Belt and Terminal Railway Line, which generally parallels South Wayside, from its crossing by the North Loop (137) just south of Settegast Yard, in a southwesterly direction, to its intersection with the Houston Belt and Terminal Railway Line which travels in a southerly direction toward Alvin, Texas.

e. Upon the Missouri-Kansas-Texas Railroad Company Texas Line, which generally parallels Katy Road, between its crossing of White Oak Bayou (just west of North Shepherd Drive) and a point one hundred (100) feet west of its intersection with Gessner.

f. Upon the Missouri Pacific Line, which generally parallels Almeda Road, from a point one hundred (100) feet north of Almeda-Genoa Road to the south corporate limits of the city.

g. Upon the Port Terminal Railroad Association Line, which lies just north of Clinton Drive, from a point one hundred (100) feet east of its intersection with McCarty Road easterly to the corporate limits of the city at Green's Bayou, excluding that portion which lies within the City of Galena Park and Harris County.

h. Upon the Port Terminal Railroad Association Line, which generally parallels the Houston Ship Channel, from a point one hundred (100) feet east of its intersection with 76th Street, southeasterly to the corporate limits of the City at Light Company Road, excluding that portion which lies within the Houston Navigation District.

i. Upon the Texas and New Orleans Railroad Line, which generally parallels Hempstead Road, from a point one hundred (100) feet south of Antoine to the north corporate limits of the city.

j. Upon the Texas and New Orleans Railroad Line, which generally parallels LaPorte Road, from a point one hundred (100) feet east of its intersection with Broadway easterly to the corporate limits of the city.

k. Upon the Texas and New Orleans Railroad Line, which generally parallels Washington Avenue and Lyons Avenue, from the midpoint between Yale Street and Heights Boulevard east to a point one hundred (100) feet east of Bringhurst Street.

(2) *Maximum speed of forty (40) miles per hour:*

a. Upon Missouri-Kansas-Texas Railway Company Texas Line, which generally parallels Katy Road from a point one hundred (100) feet west of Gessner to the corporate limits of the city.

(3) *Maximum speed of forty-five (45) miles per hour:*

a. Upon the joint Texas Division of the Forth Worth and Denver Railway and the Chicago, Rock Island and Pacific Railroad Line, which generally parallels West 34th Street, from its junction with the Houston Belt and Terminal Railway Line near North Shepherd Drive, westerly to a point one hundred (100) feet southeasterly of Pinemont Road.

b. Upon the Galveston, Houston and Henderson Railroad Line, which generally parallels Galveston Road, from a point one hundred (100) feet south of Park Terrace Boulevard southerly to the corporate limits of the city, excluding the portion of such railroad line that lies within the City of South Houston.

c. Upon the Gulf, Colorado and Santa Fe Railroad Line, which generally parallels Mykawa Road, from its junction with the Houston Belt and Terminal Line near the intersection of Griggs Road and Long Drive southerly to a point one hundred (100) feet south of Bellfort.

d. Upon the Houston Belt and Terminal Railway Line, which generally parallels West Hardy Street, from its junction with the Missouri Pacific Line near Turner Drive to a point one hundred (100) feet north of its intersection with Bennington Street.

e. Upon the Houston Belt and Terminal Railway Line from its intersection with the Gulf Freeway near Calhoun southerly to its junction with the Gulf, Colorado and Santa Fe Railway Company Line near the intersection of Griggs Road and Long Drive.

f. Upon the Houston Belt and Terminal Line, which generally parallels the North Loop and 34th Street, from its crossing by the North Loop (137), just south of the Settegast Yards, westerly to its junction with the Joint Texas Division of the Fort Worth and Denver Railway and the Chicago, Rock Island and Pacific Railroad Line near North Shepherd Drive, excluding the zone which covers West Hardy Street.

g. Upon the Missouri Pacific Line, which generally parallels Almeda Road, from its junction with Houston Belt and Terminal Railway Line near Knight Road, southerly to a point one hundred (100) feet north of Almeda-Genoa Road.

h. Upon the Missouri Pacific Line, which generally parallels Shreveport Road, from its junction with the Houston Belt and Terminal Railway Line near Hirsch Road northeasterly to a point one hundred (100) feet northeast of Tidwell Road.

i. Upon the Texas and New Orleans Railroad Line, which generally parallels Holmes Road, from a point one hundred (100) feet west of its intersection with Long Drive westerly to a point one hundred (100) feet west of South Post Oak Road.

j. Upon the Texas and New Orleans Railroad Line, which generally parallels Washington Avenue, from a point one hundred (100) feet southeast of Antoine Street easterly to a point midway between Heights Boulevard and Yale Street.

k. Upon the Texas and New Orleans Railroad Line, which generally parallels Main Street, from a point one hundred (100) feet west of South Post Oak Road, westerly to the corporate limits of the city.

l. Upon the Texas and New Orleans Railroad Line, generally paralleling Hirsch Road, between a point one hundred (100) feet south of Quitman Street, and the north corporate limits of the city.

m. Upon the Southern Pacific Railroad line that generally parallels Westpark Drive, from the city limits to its junction with the Southern Pacific Railroad line that generally parallels Post Oak Road.

(4) *Maximum speed of sixty (60) miles per hour:*

a. Upon the Joint Texas Division of the Fort Worth and Denver Railway and the Chicago, Rock Island and Pacific Railroad Line, which generally parallels Randon Road and North Houston-Rosslyn Road, from a point one hundred (100) feet north of Pinemont Road northerly to the corporate limits of the city.

b. Upon the Gulf, Colorado and Santa Fe Railway Line, which generally parallels Mykawa Road, from a point one hundred (100) feet south of Bellfort southerly to the corporate limits of the city.

c. Upon the Missouri Pacific Line, which goes to Beaumont, from a point one hundred (100) feet northeast of Tidwell Road to the corporate limits of the city.
d. Upon the Texas and New Orleans Railroad Line, which parallels Liberty Road, from a point one hundred (100) feet east of Bringhurst easterly to the corporate limits of the city.
e. Upon the Missouri Pacific Line, generally parallel to West Hardy Street, from the north corporate limits of the city to its junction with the Houston Belt and Terminal Line near Turner Drive.
f. Upon the Texas and New Orleans Railroad Line, which generally parallels Post Oak Road, from its junction with the Texas and New Orleans Railroad Line just north of Katy Road southerly to its junction with the east-west Texas and New Orleans Railroad Line near the intersection of Main Street and Holmes Road.

(Code 1968, § 39-18; Ord. No. 69-2333, § 1, 12-17-69; Ord. No. 76-896, §§ 1—5, 6-1-76; Ord. No. 85-824, § 1, 6-4-85; Ord. No. 86-465, § 2, 4-2-86; Ord. No. 87-1726, §§ 1—3, 10-7-87)

Charter reference—Authority to regulate speed of trains, Art. II, § 5, (p).

Sec. 38-19.1. Same—For first class passenger trains at specific crossings.

Upon the portions of the railroad lines set out in this section, the maximum speed authorized for any first class passenger train operated on the rails, when entering any street crossing is as follows:

(1) *Maximum speed limit of forty-five (45) miles per hour:*

a. "Upon the Galveston, Houston and Henderson Railroad Line extending south from the Southern Pacific Transportation Company Railroad Line at San Jacinto Street to Park Terrace Boulevard in an alignment generally paralleling Harrisburg Boulevard on the north and State Highway No. 3 on the south to a point 100 feet east of its intersection with 67th Street, and from a point 100 feet east of 67th Street to a point 100 feet southwest of its intersection with Park Terrace Boulevard.
b. Reserved.

(2) *Maximum speed limit of sixty (60) miles per hour:*

a. Upon the Texas and New Orleans Railroad Line, which generally parallels Hempstead Road, from a point one hundred (100) feet south of Antoine to the north corporate city limits of the city.
b. Reserved.

(Ord. No. 89-1726, § 1, 11-29-89; Ord. No. 89-1786, § 1, 12-13-89)

Sec. 38-20. Same—Not restricted in absence of crossings.

Where no streets are crossed by a railroad line in the city, the speed of trains on such line is not restricted by the city.
(Code 1968, § 39-19)

Sec. 38-21. Blowing whistle.

All persons are prohibited form blowing any whistles on any locomotive, or single blasts therefrom, within the limits of the city, for a longer period of time than five (5) seconds, except when there is imminent danger of an accident.
(Code 1968, § 39-20)

Charter reference—Authority to regulate ringing of bells and blowing of whistles of trains, Art. II, § 16(p).

Cross references—Discharge of exhaust from steam engines, motor vehicles, etc., § 30-11; other restrictions on blowing of steam whistles, § 3-16.

Sec. 38-22. Restrictions on switching.

(a) It shall be unlawful for any railroad company to use any part of Commerce Avenue for the switching of railroad freight trains between San Jacinto and York (Travis) Streets, within the corporate limits, and the violation of this section by any railroad company is hereby declared to be unlawful. Prosecution for the violation of this section may be against the yardmaster or any employee, or person in control of such train, or the

manager, or the local agent of such railroad company.

(b) Except on Saturdays, Sundays or official city holidays, it shall be unlawful to operate any railroad train over and across the railroad track crossing of the 700 to 800 blocks of North San Jacinto Street at Allen Street between the hours of 7:00 a.m. to 9:00 a.m. and between the hours of 4:00 p.m. to 6:00 p.m. without first obtaining a written permit therefor from the traffic engineer. The traffic engineer shall apply the standards established in section 45-5 of this Code in determining whether to grant or deny the application for such a permit. Prosecution for violation of this subsection shall be as provided in subsection (a) of this section.
(Code 1968, § 39-21; Ord. No. 73-1713, § 1, 8-28-73; Ord. No. 90-635, § 89, 5-23-90)

Charter reference—Authority to regulate crossings, Art. II, § 5.

Sec. 38-23. Jumping on and off or clinging to train while in motion.

It shall be unlawful for any person in the city to jump off or on, cling to or hang on any railway engine or car, while the same is in motion, such person not being a paying passenger, an employee, or an official of the railroad company.
(Code 1968, § 39-24)

Sec. 38-24. City authorized to participate in certain costs relating to street and railroad intersections.

Notwithstanding anything contained in this chapter to the contrary, the city may participate in certain costs relating to the intersections of streets and railroads. The extent, if any, to which the city will participate in said costs will be determined by city council for each individual railroad crossing or intersection. The extent of participation, if any, by the city shall be set forth in a resolution and payment of said participation will be made only after completion of said construction and approval of the actual costs by city council. In the event the city participates in such construction costs, such determination by city council will in no manner constitute grounds for postponement or delay in the completion of such construction within the time limit set forth in said resolution.
(Code 1968, § 39-27; Ord. No. 72-331, § 1, 2-22-72)

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Chapter 39

SOLID WASTE AND LITTER CONTROL*

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*__Editor's note—__Ord. No. 2026-0516, Exhibit C, adopted June 10, 2026, effective July 1, 2026, amended Ch. 39 in its entirety to read as herein set out. Former Ch. 39 pertained to similar subject matter and derived from Code 1968, §§ 20-1—20-32 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

__Cross references—__Duty of automobile wreckers to remove glass, debris, etc., from scene of accident, § 8-113; deposit of waste or garbage at airports, § 9-67; removal of trash deposited on streets, etc., after moving of buildings, § 10-73; clean up after demolition or removal of structures, § 10-356 et seq.; garbage and refuse in restaurants, etc., § 20-21, item 20; health generally, Ch. 21; litter at Lake Houston, § 23-6; garbage and refuse receptacles at piers at Lake Houston, § 23-37; solid waste handling and disposal in manufactured home parks, §§ 29-99, 29-113 et seq.; moving vehicles which throw or drop mud or clay on streets, § 40-22; vehicles transporting earth material on streets and alleys, § 40-168 et seq.; placing trash, etc., into gutters, storm sewers, etc., § 47-34; water meter boxes to be free from rubbish, § 47-21.

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ARTICLE I. IN GENERAL

Sec. 39-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alley means a public right-of-way that is used only for secondary access to individual properties that have their primary access from an adjacent public street or an approved common or compensating open space or courtyard that has direct access to a public street.

Automated collection service means the collection of garbage or trash with the use of a standard automated side-loader truck. The term also includes semi-automated collection service authorized by the chief solid waste officer pursuant to section 39-62(d) of this Code.

Automated service container means a city-issued rolling, molded plastic container, equipped with a lid, capable of holding not more than 90 gallons, and designed to be collected by means of a garbage collection vehicle designed to be operated by a single person without the necessity of leaving the cab of the truck.

Basic garbage collection service means automated collection service, recyclable material collection service, and other basic collection services.

Biodegradable bag means a transparent disposable bag made of plastic film or any other synthetic or natural organic material that has sufficient strength and quality to securely contain a capacity of not more than 35 gallons and meets the American Society for Testing & Materials (ASTM) D6400 Standard Test Method for Compostable Plastics. The bags must indicate that they are 100% biodegradable or 100% compostable.

Bulk container means any container used for the collection or disposal of solid waste that is designated and intended:

a. To be transported from the premises where it is used by mechanical means with its contents to the dumpsite; or

b. To be emptied by mechanical means upon the premises where it is used into a waste transport vehicle.

Without limitation, the term includes the dumpster-type containers and roll-offs that are commonly used in multifamily residential, commercial, industrial and public locations. The term shall not include automated service containers furnished by the city and similar containers furnished and used by private collection contractors in the course of their collection business.

Bulk container service provider means the owner of the bulk container, provided that if a person other than the owner is contractually

or otherwise obligated to transport the bulk container and/or its contents for disposition, then it shall mean the person providing such service.

Central business district means the area beginning at the intersection of the centerline of U.S. 59 and the centerline of I.H. 45; thence in a northeasterly and northerly direction along the centerline of I.H. 45 to its intersection with the centerline of I.H. 10; thence in an easterly direction along the centerline of I.H. 10 to its intersection with the centerline of U.S. 59; thence in a southwesterly direction along the centerline of U.S. 59 to its intersection with I.H. 45, the point of beginning.

City collectors means employees of the division or private contractors of the city actively engaged in the collection of solid waste.

Curbline means an imaginary line drawn along the edge of the pavement on either side of a public street; the curbline shall include the area three feet beyond said imaginary line on the residence side of the line.

Department means Houston Public Works.

Director means the director of Houston Public Works or his designee.

Division means the division of solid waste management of Houston Public Works.

Extra capacity service means the collection of garbage or trash in automated service containers or one-way containers pursuant to section 39-62(a) of this Code.

Garbage means abandoned, discarded or unwanted putrescible animal and vegetable materials resulting from the handling, preparation, cooking and consumption of food, including such materials from food markets, food storage facilities, food handling, and the sale of produce and other food products.

Houston downtown management district means the district created by Subchapter A of Chapter 376 of the Texas Local Government Code.

Junk means any rubbish or trash generated upon the premises of a residential unit and of such size or weight that it cannot be containerized pursuant to this chapter, including, but not limited to, major appliances.

Litter means uncontrolled and improperly containerized garbage or trash on public or private property.

One-way container means a disposable bag made of plastic film or of any other synthetic or natural organic material that has sufficient strength and quality to securely contain a capacity of not more than 35 gallons.

Other basic collection services means yard waste collection, junk collection, tree waste collection, and dead animal collection.

Personal reusable container means any container provided by a resident that is suitable to contain yard waste, with no sharp edges, and not exceeding 50 pounds total weight when full. Automated service containers are not considered personal reusable containers.

Public street means the entire width between property lines of any road, street, way, alley, bridge, or other similar thoroughfare, not privately owned or controlled, when any part thereof is open to the public for vehicular traffic, which is the responsibility of the city or other similar public agency to maintain.

Recyclable material means material that has been recovered or diverted from the nonhazardous waste stream for purposes of reuse, recycling, or reclamation, a substantial portion of which is consistently used in the manufacture of products that may otherwise be produced using raw or virgin materials. Recyclable material is not solid waste; however, recyclable material may become rubbish at such time, if any, as it is abandoned or disposed of rather than recycled, whereupon it will be rubbish with respect only to the party actually abandoning or disposing of the material.

Residential unit means any occupied structure within the city limits of the city devoted to single-family residential use. Residential unit shall include, but not be limited to, houses, duplexes, condominiums, townhouses, townhomes, trailer homes,

manufactured homes and patio homes. The term shall also include each apartment in an apartment project or community containing eight or fewer individual units. Residential unit shall not include any unit in any hotel, motel, boarding house, or other similar rental unit.

Residential unit customer means a resident of a residential unit that is eligible for basic garbage collection service.

Rubbish or *trash* means abandoned, discarded or unwanted nonputrescible solid waste materials consisting of both combustible and noncombustible waste materials; combustible rubbish or trash shall include feathers, paper, rags, cartons, boxes (flattened and tied), wood, excelsior, nonmetallic furniture, rubber, plastics, yard trimmings, shrubs, leaves, and similar materials; noncombustible rubbish or trash shall include glass, crockery, tin cans, aluminum cans, metal furniture, and like materials which will not burn at ordinary incinerator temperatures (1,600 degrees Fahrenheit to 1,800 degrees Fahrenheit); provided that, rubbish or trash shall not include bulk quantities of building materials or major automotive components, and the city shall not be required to pick up such materials.

Solid waste means "municipal solid waste" as that term is defined in the Texas Solid Waste Disposal Act; waste resulting from the construction or demolition of any structure; and any other type of solid waste as defined in Title 30, Section 330.3 of the Texas Administrative Code and any amendments thereto.

Sponsorship agreement means a reimbursement agreement between the city and a civic or homeowners' association or other qualified entity for the purpose of partially offsetting the cost incurred by the association or qualifying entity in assuming the responsibility for all basic garbage collection service to residential units eligible for such service pursuant to this chapter 39 in certain defined areas of the city.

Standard automated side-loader truck means a truck manufactured or configured to permit the driver to collect the garbage and rubbish from automated service containers, placed at the curbline, by means of a mechanical device operated by the driver without the necessity of leaving the cab of the truck.

Trash. see rubbish or *trash.*

Tree waste means tree limbs, branches, and trunks greater than three inches in diameter.

Yard waste means grass, shrubs, or other plant clippings, leaves, and tree limbs.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-2. Disturbing or removing contents of containers.

(a) It is unlawful for any person to intentionally, knowingly or recklessly handle, scavenge from, disturb, or remove any contents of any bin, bag, or other container that has been placed for collection of garbage, trash or recyclable materials at the designated location for pickup by the division, or for pickup by any other public or private collection service. This subsection does not apply to trash receptacles that are clearly intended for the general public's use and are placed in city parks or city rights-of-way.

(b) It is a defense to prosecution under this section that the accused is the person who placed or caused the bin, bag or container to be placed for collection or that the accused is an agent or employee of the city.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-3. Littering generally.

With the exception of containers and items placed for pickup in conformity with the conditions for pick up and the times authorized pursuant to this chapter, no provision contained in this chapter shall be construed as constituting the permission of the city for the deposit of solid waste upon sidewalks, public streets, curbs or other public places of the city. Any deposit which does not conform in all respects with the provisions set forth in this chapter shall constitute an unlawful deposit of litter which shall be punishable as provided by law.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-4. Penalties; enforcement.

(a) When in this chapter an act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor, or whenever in this chapter the doing of any act is required or the failure to do any act is declared to be unlawful and no specific penalty is provided therefor, the violation of any such provision shall be punishable upon first conviction by a fine of not less than $50.00 nor more than $2,000.00 and upon each subsequent conviction by a fine of not less than $250.00 nor more than $2,000.00. Each day that any violation continues shall be punishable as a separate offense. To the extent that any conduct in violation of this chapter also constitutes a violation of state penal laws, then it shall be punishable as provided in the applicable state law.

(b) The remedies in this chapter are not exclusive. The city attorney is authorized to file and prosecute any other action authorized at law or in equity to abate any unsanitary condition or unlawful disposal of waste.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-5. Remedies cumulative.

This chapter is cumulative of other laws. To the extent of inconsistency between the provisions of this chapter and any other ordinance of the city, the more restrictive shall apply.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Secs. 39-6—39-15. Reserved.

ARTICLE II. DIVISION OF SOLID WASTE MANAGEMENT

Sec. 39-16. Created.

There is hereby established the solid waste management division, a division of Houston Public Works.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-17. Chief solid waste officer.

There is hereby created the position of the chief solid waste management officer, who shall oversee and be responsible for the day-to-day operation of the solid waste management division of Houston Public Works.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-18. Duties.

The division and the employees assigned to the division shall:

(1) Supervise and be responsible for the collection, transportation and disposal of solid waste.

(2) Carry out the policies of the director in the overall planning effort to develop a reliable and efficient method for solid waste disposal.

(3) Administer and enforce this chapter and related laws.

(4) Have such other duties and responsibilities as may be assigned by the director.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Secs. 39-19—39-29. Reserved.

ARTICLE III. HOUSTON CLEAN CITY COMMISSION*

Sec. 39-30. Created; purpose.

There is hereby established the Houston Clean City Commission to direct and oversee a comprehensive litter control program for the purpose of reducing and controlling to an acceptable level the concentration of litter in the city and to bring about a long-term improvement in the attitudes and trash handling habits of citizens.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-31. Litter defined.

As used in this article, the term "litter" shall mean uncontrolled and improperly containerized garbage or trash on public or private property.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

*__Cross reference—__Boards, commissions, authorities, etc. generally, § 2-316 et seq.

Sec. 39-32. Composition; appointment of members.

The Houston Clean City Commission shall consist of not more than 50 members to be appointed by the mayor and confirmed by city council. Members shall be community leaders representing the civic, business, and governmental segments of the city. Eleven members shall be designated as district members for positions lettered A through K and shall be residents of the city single-member council district which bears the letter corresponding to the position to which the district member is appointed. Each district member for positions lettered A through K shall be nominated by the council member representing the city single-member council district. In the event a district member's place of residence is redistricted from one council district to another during the term of the member's office, that member shall not be disqualified but shall serve the remainder of the term and until a successor is appointed and confirmed. Five members shall be designated as at-large ("AL") members for positions titled AL1 through AL5 and shall be residents of the city. Each at-large member for positions AL1 through AL5 shall be nominated by the council member representing the corresponding city council at-large position. Up to 34 members may be designated as members for positions numbered 1 through 34, as required. One member shall be the chief solid waste officer or his designee; one shall be the director of the public health or his designee; and one shall be the Director of Houston Public Works or his designee. Among the remaining members, the mayor may appoint and city council may confirm up to 11 persons who do not reside within the city to serve as nonresident members.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-33. Terms of members.

The members of the Houston Clean City Commission shall serve the following terms:

(1) The terms of office for members who hold even-numbered positions shall expire on February first of even-numbered years.

(2) The terms of office for members who hold odd-numbered positions shall expire on February first of odd-numbered years.

(3) The terms of office for district members shall expire on February first of the second year following the year of their appointment.

(4) The terms of office for at-large members shall expire on February first of the second year following the year of their appointment.

(5) Members whose terms have expired shall continue to serve until their successors are appointed and confirmed or their positions are eliminated due to a reduction in the size of the commission.

(6) The terms of office for the three city employee positions shall coincide with the tenure of their appointments as department directors and employment as chief solid waste officer.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-34. Compensation.

Members of the Houston Clean City Commission shall serve without compensation from the city or any firm, trust, donation or legacy to or on behalf of the city; provided, however, that a member of the commission, or the firm, company or corporation with whom the commissioner is associated, shall not be precluded from receiving compensation from the city under any contract for services rendered which have no relation to the commissioner's duties as a commissioner of the Houston Clean City Commission and, provided further the commission may hire or secure the services of a full-time program director to administer the clean city program.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-35. Chair.

The Houston Clean City Commission shall organize by electing one of its members as chair. The chair shall hold office for one year or until his successor has been elected and qualified.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-36. Adoption of administrative procedures.

The Houston Clean City Commission may adopt such administrative procedures as are necessary to accomplish the purposes set out in this article.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-37. Reports.

The Houston Clean City Commission shall, each quarter, during the months of January, April, July and October submit a written report to the mayor and city council summarizing the status of the clean city program.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-38. Consultation with city officers and departments.

The chief solid waste officer and other city officers and staffs of city departments may consult with and advise the Houston Clean City Commission from time to time on matters coming within the scope of this article and the commission may consult with and advise such city officers and personnel of such departments.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-39. Solicitation of funds.

The Houston Clean City Commission shall have the authority to solicit funds and donations to carry out the purposes for which it is established.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Secs. 39-40—39-47. Reserved.

ARTICLE IV. COLLECTION SERVICES

DIVISION 1. GENERALLY

Sec. 39-48. Limited to residential units within city.

Except as otherwise provided in this article, the city shall provide garbage and rubbish collection service only to eligible residential units. This section shall not prohibit separate contracts approved by the city council for additional service outside the terms of this article. The city shall provide garbage and rubbish collection service only within the city limits.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-49. Collection from nonresidential units.

(a) Nonresidential units are eligible for automated collection service and extra capacity service only, and only if qualified for such service under the terms of this section.

(b) Any nonresidential unit seeking city automated collection service or extra capacity service shall apply for same in writing to the chief solid waste officer on forms provided by the chief solid waste officer. The chief solid waste officer shall then grant such service, provided that the chief solid waste officer finds in writing that such nonresidential unit meets all of the following requirements:

(1) The cost to the city of providing service to such nonresidential unit is not unduly prohibitive.

(2) The nonresidential unit is located immediately adjacent to existing established residential routes which may be easily extended to provide the nonresidential unit with service.

(3) The city has the capability in terms of personnel and equipment to provide the nonresidential unit with service.

(4) Providing the nonresidential unit with the service will best serve the public convenience and necessity of the city.

(5) The chief solid waste officer shall be given written permission by the owner, lessee or authorized agent of any publicly or privately owned property to enter the premises and make inspections to determine whether or not garbage and rubbish is being properly stored, collected, removed and disposed of as required by the provisions of this chapter. If it is found that this chapter is being

violated, appropriate and timely action shall be taken to ensure full compliance with same.

(6) The nonresidential unit is not a medically-related facility, such as, but not limited to, hospitals, medical centers, health clinics, dental labs, medical labs, mortuaries and veterinary hospitals.

(c) Any nonresidential unit approved for city automated collection service or extra capacity service shall comply with all other appropriate terms and provisions of this chapter and, where appropriate, pay extra capacity service fees, as if the nonresidential unit were a residential unit.

(d) On each day that automated collection service is provided on the route for the nonresidential unit, city collectors will pick up the contents of not more than three automated service containers and any occasional one-way containers to which an extra capacity service tag has been affixed.

(e) Any nonresidential unit denied automated collection service or extra capacity service by the chief solid waste officer under this section may appeal the chief solid waste officer's decision to city council pursuant to Rule 12 of the Council Rules of Procedure by filing notice of appeal with the city secretary, with a copy to the chief solid waste officer, within 30 days of receipt of the chief solid waste officer's written notice of denial of service.

(f) There is hereby imposed the fee stated for this provision in the city fee schedule per calendar month or any portion thereof for automated collection service under this section. The fee for each additional automated service container or occasional extra capacity service tag requested shall be those set forth in section 39-62(a) of this Code and shall be paid annually in advance in accordance with billing procedures established by the chief solid waste officer; provided that upon presentation of a city water account number and advance payment of the first monthly extra capacity service fee for each additional automated service container requested, a water customer of the city desiring extra capacity service may be billed monthly pursuant to section 39-66 of this Code. City collectors are not authorized to receive payment of any fee. No extra capacity service shall be rendered to any person who has failed to make payment in advance.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-50. Materials to be picked up by division.

(a) The chief solid waste officer shall promulgate rules that establish the items that will be picked up by city collectors. The items will be limited to those that may be accepted at a Type I municipal solid waste site in accordance with applicable state and federal laws and regulations and the terms of the city's contracts with the site operators. For junk collection, items will be limited to those that may be accepted at a type IV municipal solid waste site in accordance with applicable state and federal laws and regulations and the terms of the city's contracts with the site operators. For tree waste, yard waste, and recyclable material, the items will be accepted based upon applicable laws and regulations and the city's contracts with purchasers of items to be recycled. The chief solid waste officer may impose further restrictions upon items or quantities of items to be collected based upon the safety of city collectors and the capability and capacity of division collection equipment. The chief solid waste officer shall similarly establish rules for neighborhood depository and adopt-a-container services.

(b) Copies of the rules shall be maintained in the chief solid waste officer's office and the city secretary's office. Additionally, copies shall be posted at neighborhood depository sites and adopt-a-container sites and made available to residents upon request.

(c) City collectors shall not accept any materials that are not authorized for collection under the rules. To the extent that any items placed for collection are mixed so as to include both authorized and unauthorized items, city collectors shall not be obliged to sort the materials and may refuse the entire lot.

(d) Except as provided in section 39-49 of this Code, the collection services shall be limited to the collection and acceptance of garbage or rubbish generated by residential users in connection

with activities that are incidental to their use of their property for residential purposes and waste generated upon a vacant residential lot that is generated in connection with the maintenance of that vacant residential lot. The division shall not collect or accept any other waste. It shall be unlawful for any person to place items for collection by city collectors at the curbline of any property except as authorized herein.

(e) The division shall not collect or accept bulky items, such as construction debris or debris from the trimming or removal of trees, unless generated by work performed by the residents of the property upon which the waste was generated, rather than by contractors retained to do the work. It is the duty of contractors who are performing work at residential units to which the division renders service to remove and lawfully dispose of construction debris, tree waste and similar bulky items or to cause the materials to be removed by private collectors, rather than to leave the materials upon the property for collection by city collectors.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Secs. 39-51—39-60. Reserved.

DIVISION 2. CONTAINERS, ETC.

Sec. 39-61. Defective, overloaded, or nonconforming containers.

(a) No person shall use or cause to be used or place or cause to be placed for collection by city or private collectors any garbage or rubbish container that:

(1) Is not of such construction as to have a lid or other closure means that will effectively prevent the spillage or airborne loss of its contents and the entry of vectors or elements of nature; or

(2) Is overloaded so that the lid will not fit securely thereon; or

(3) Is deteriorated to the extent of endangering collectors or to the extent that the lid will not fit securely or the contents are otherwise not effectively contained therein; or

(4) For yard waste bags, are not securely bound on the open end; or

(5) The combined weight of the garbage, rubbish and container exceeds 50 pounds; or

(6) Contains pet feces, unless such feces are wrapped separately and securely to avoid spillage, and placed so that its odor is not offensive to collection crews or the general public.

(b) City collectors shall not be obligated to service any garbage or rubbish container that does not contain garbage or rubbish as herein defined or that is not placed or prepared as set forth in this chapter.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-62. General specifications.

(a) The following specifications and service conditions shall apply to residential unit customers who receive basic garbage collection service and extra capacity service:

(1) *Container and administrative fees.*

a. The division shall provide one automated service container and one automated recycling container to each residential unit customer. The monthly fee for the provision, management, and use of the containers for basic garbage collection service is stated in the city fee schedule. The fee shall be paid annually in advance by the residential unit customer in accordance with billing procedures established by the director; provided that upon presentation of a city water account number, the city may bill the basic garbage collection service fee to the residential unit customer's city water account on a monthly basis.

1. The fee shall be sunset by the end of Fiscal Year 2027 unless City Council votes to continue the fee. Before a vote shall take place, a committee

presentation shall be conducted that includes an analysis of the fee.

b. The division shall charge an administrative fee for garbage collection and disposal services in the amount listed in the city fee schedule. The fee shall be paid monthly in advance by the residential unit customer in accordance with billing procedures established by the director; provided that upon presentation of a city water account number, the city may bill the administrative fee to the residential unit customer's city water account on a monthly basis.

c. The fees set forth in subitems (a)(1)a. and (a)(1)b. of this subsection may not be combined or listed in a single line on customer water bills.

(1a) *Extra capacity.* Upon request, and subject to the requirements of 39-63(2)(b), a residential unit customer shall be provided up to two additional automated service containers upon advance payment by money order or cashier's check of the monthly extra capacity service fee per automated service container stated for this provision in the city fee schedule. A city water customer who desires to contract for billing of the extra capacity service fee through the customer's city water account may provide the director the customer's city water account number and advance payment of the first monthly extra capacity service fee for each additional automated service container requested. Thereafter, a monthly charge for each additional container will be billed through the customer's water account. Each additional automated service container shall bear an extra capacity sticker containing serial or other identification numbers and shall be issued by the division for a minimum service period of 12 months.

(2) *Replacement for damage or loss of container.* The division will replace a container at no charge to a residential unit customer, if:

a. It is damaged beyond use by city collectors; or

b. It is lost as a result of a disaster for which the mayor has declared a local state of emergency or local state of disaster; or

c. It is lost as a result of a severe weather event that results in localized flooding for which the mayor has determined that fees for container replacement will not be charged.

(3) *Replacement due to routine wear.* The division will replace a container due to routine wear when necessary at no charge to a residential unit customer, but not more frequently than once every ten years, and will provide a second replacement within the same time period at a reduced cost only if:

a. The residential unit customer requesting a second container is a senior citizen over the age of 65; or

b. The residential unit customer is enrolled in the division's pickup for persons with disabilities program as identified in Section 39-80.

For these categories of residential unit customers, the replacement fee shall be waived for a second replacement and only the delivery fee shall be charged.

(4) *Replacement for other reason.* For a container that requires replacement for reasons other than those stated in items (2) and (3) of this subsection, the division shall replace a residential unit customer's container upon payment therefor by the residential unit customer using any payment method described in item (1a) of this subsection. The cost for container replacement includes the container delivery fee in addition to the city's actual

cost to purchase the replacement container, each as set forth in the city fee schedule.

(5) *City container not in compliance.* Only a city container that is directly provided by the division to the residential unit customer under the division's residential service program, extra capacity service program, or non-residential service program will be serviced by the city. Any other city container presented by a residential unit customer for service will be retrieved by the city at the residential unit customer's expense. The retrieval charges include the costs of retrieval and cleaning the improperly acquired container. The residential unit customer will be assessed a container cleaning fee, which includes the cost of disposal of contents, and a container retrieval fee, each of which is set forth in the city fee schedule. The division shall invoice the residential unit customer for the fees assessed by this subsection, which must be paid using any payment method described in item (1a) of this subsection.

(b) Operators of private collection services may establish different specifications as to the size, weight and construction of containers which they will pick up, provided that the specifications conform to section 39-61 of this Code.

(c) For purposes of conducting pilot programs to evaluate new solid waste disposal and recycling technologies, the chief solid waste officer may establish different specifications as to the size, weight, and construction of containers that the city will pick up in certain areas of the city, provided that the specifications conform to section 39-61 of this Code.

(d) The chief solid waste officer may establish service routes and/or designated areas of the city which receive semi-automated collection service such as on one-way streets which have residential units on the left-hand side of the street and therefore cannot be served by the city's standard automated sideloader trucks.

(e) In connection with pilot programs, the division may loan automated service containers, automated recycling containers or related equipment to residential unit customers for their use in placing garbage, trash and recyclable material for collection by the division.

(f) All collection equipment provided by the city shall remain the property of the city, and it shall be the responsibility of each residential unit customers who receives that equipment to exercise reasonable care with respect to the maintenance and use of the equipment.

(g) It shall also be the duty of each person who receives automated service containers and other equipment to store the equipment in a secure place where it will not be visible to a person standing in the right-of-way of any public street adjacent to the property where the equipment is used, except while placed for collection in accordance with this chapter. It is a defense to prosecution under this subsection that the person's property is so configured that no location exists for storage of the equipment in a place where it is not visible to a person standing in the right-of-way of a public street adjacent to the property. (Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-63. Eligibility for basic garbage collection service.

The following residential units shall be eligible for basic garbage collection service:

(1) Except as provided in item (2) of this section, residential units abutting a public street;

(2) A development or subdivision containing private streets, permanent access easements or shared driveways, that has 25 residential units or less, shall be eligible to receive basic garbage collection service, provided at least one residential unit located within such development or subdivision is adjacent to or abuts at least one public street and has direct access to that public street, if:

a. The development or subdivision has at least ten feet of frontage on a public street, not including the

driveway, for each residential unit within the development or subdivision; or

b. The development or subdivision contains an area that:

[1] Contains two distinct five-foot by five-foot square areas for each residential unit in the development or subdivision for the placement of automated service containers and automated recycling containers;

[2] Does not extend more than five feet into the roadway, as that term is defined in Chapter 42 of this Code;

[3] Does not block or prohibit access to driveways, fire hydrants, or sidewalks;

[4] Is not on private property; and

[5] Is on a flat surface free of physical features such as utility poles, trees, and other obstructions.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-64. Sponsorship agreements.

(a) The city shall enter into a sponsorship agreement, as defined in section 39-1 of this Code, only with a civic or homeowners association or other qualified entity that assumes responsibility for all basic garbage collection services available to those residential units eligible for such service pursuant to this chapter that are located within the geographical area to be served, provided the association or qualified entity is authorized to bind all residential units within the geographical area covered by the sponsorship agreement. Only those sponsorship agreements that are consistent with the provisions of this section and are in a form approved by the city attorney shall be approved.

(b) Sponsorship agreements shall be approved by the chief solid waste officer, provided that any agreement that requires payment by the city in any one year of an aggregate amount in excess of the city council approval requirement limitation amount established pursuant to article II, section 19a of the City Charter shall be approved by the city council.

(c) A sponsorship agreement shall be administered on an all or none basis and shall apply to all units in the development or community. A residential development or subdivision that is ineligible for automated collection service pursuant to this chapter shall be ineligible for a sponsorship agreement. No residential units in any development or subdivision covered by a sponsorship agreement shall be eligible for any city collection services, and all garbage collection services shall be the responsibility of the entity that entered into the sponsorship agreement with the city. The sponsorship payment per unit is the same whether the unit is eligible for basic garbage collection service or other collection services.

(d) No reimbursement payments shall be authorized by the chief solid waste officer or the city council except pursuant to the terms of a properly executed sponsorship agreement. Reimbursements shall be made on a semiannual basis. The amount of reimbursement for each residential unit included in a sponsorship agreement may be established annually as of July 1 of each year by the city council. If the city council does not, for any reason, establish an amount by July 1 of any year, the amount of reimbursement for the following fiscal year shall be that amount which was in effect during the prior fiscal year, and such amount shall remain in effect through June 30 of the following year.

(e) All sponsorship agreements shall terminate on June 30 of each and every year and shall expire unless the chief solid waste officer receives from the association or qualified entity, at least sixty days prior to the termination date, written notice that the association or qualified entity wishes to extend the agreement for an additional year. If any sponsorship agreement is allowed to terminate and the association or qualified entity wishes to resume the agreement, a new agreement must be executed.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-65. Placement for basic garbage collection service.

(a) Except as otherwise specifically permitted in subsection (b), (c) or (f) of this section or section 39-63(2) of this chapter, basic garbage collection service shall be limited to garbage and trash prepared pursuant to this chapter placed at the curbline of a public street in front of the property upon which the garbage or trash was generated. The automated service containers shall be placed for collection in a location along the curbline that is accessible to the city's standard automated side-loader trucks, except as provided in section 39-62(d) of this Code.

(b) The chief solid waste officer shall determine the street on which the garbage and trash shall be placed for collection from a residential unit located on a corner lot.

(c) If vehicle parking is permitted on both sides of a narrow, one-way or dead-end public street on which residential units abut, the chief solid waste officer may require that, on collection day:

(1) The parking of vehicles be restricted to one side of the street;

(2) Garbage and trash be placed for collection on only one side of the street; or

(3) The requirements of items (1) and (2) of this subsection both be met.

(d) All items shall be contained or bundled as provided in this chapter. Basic garbage collection service shall be provided on the basis of a schedule established and promulgated by the chief solid waste officer, which shall normally include one pickup per week for automated collection service, extra capacity service and yard waste. Basic garbage collection service shall also be limited to materials authorized under rules established by the chief solid waste officer, as provided in section 39-50 of this Code.

(e) It shall be unlawful to place or to allow to remain any materials at the curbline for basic garbage collection service by the division prior to 6:00 p.m. of the day preceding a day designated by the chief solid waste officer for basic garbage collection service at that location. Basic garbage collection service shall commence at 7:00 a.m. on the day designated by the chief solid waste officer. It shall be unlawful to place or allow to remain any materials at the curbline on a designated collection day after division collection service personnel have passed the site for that day, and the division shall not have any obligation to return to collect items not present at the curbline when the division vehicle serviced the site.

(f) The chief solid waste officer may, in lieu of collection at the curbline of a public street, authorize basic garbage collection service from the curbline of a public alley if a majority of the residents having property abutting the alley prefer collection from the alley and if the alley meets each of the following criteria with respect to the portions of the alley that will be used by division equipment:

(1) The alley must have a paved surface at least 16 feet in width;

(2) The alley must have no overhang or projection lower than a height of 13 feet six inches above the pavement;

(3) The alley must have a minimum turning radius of 35 feet at each place where the alley intersects a public street;

(4) The alley must have no obstruction (parked vehicle, fixed object, or whatever) that would prevent, hinder or impede the free passage of division equipment for collection service; and

(5) The chief solid waste officer may require that all garbage and trash be placed on one side of the alley.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-66. Billing.

Persons requesting extra capacity service who are not water customers of the city shall be billed for advance payment of the appropriate extra capacity collection fees for the services requested.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-67. Accounting.

(a) All extra capacity service fees collected shall be deposited in the city's general fund and recorded in a separate revenue code. All such amounts, together with all interest earned thereon, if any, shall be used solely for the purposes set forth in subsection (b) of this section.

(b) The extra capacity service fees collected pursuant to this article shall be used for the sole benefit of the city's solid waste management system.

(c) The division shall establish adequate financial and accounting controls to ensure that extra capacity solid waste collection fees are utilized solely for the purposes authorized. The records of the fund or account into which extra capacity service fees are deposited shall be open for public inspection, and copies may be purchased during ordinary business hours.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Secs. 39-68—39-75. Reserved.

DIVISION 3. OTHER BASIC COLLECTION SERVICES

Sec. 39-76. Yard waste collection

City collectors will pick up yard waste in conjunction with automated collection service if the waste is prepared and placed pursuant to this section. Any person desiring to place yard waste for collection by the city shall cause the same to be placed in biodegradable bags or personal reusable containers not exceeding 50 pounds total weight, provided that tree trimmings having a diameter of less than three inches and related materials may be securely tied in bundles not heavier than 50 pounds and not more than four feet in length nor 18 inches in diameter. No person shall place more than four bundles of tree trimmings for removal on any one day of collection. Yard waste not placed for collection in biodegradable bags, personal reusable containers, or bundled properly will not be collected. Yard waste placed for collection must be a sufficient distance from automated service containers so as not to interfere with standard automated side-loader trucks. Yard waste shall not be placed in automated service containers. During rainy weather, personal reusable containers must have lids to keep water out. The city is not responsible or liable for damage to any personal reusable container a resident decides to use for yard waste pickup.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-77. Junk and tree waste collection.

(a) Junk and tree waste shall be collected on separate days on the basis of a schedule established and promulgated by the chief solid waste officer.

(b) Service shall be limited to materials authorized under rules established by the chief solid waste officer as provided in section 39-50 of this Code, and no more than eight cubic yards (216 cubic feet) of material shall be collected from any one residential unit on any scheduled collection day.

(c) Service shall be limited to items that are placed at the curbline in an unobstructed location, such that automated division equipment may reach and pick up the items. Without limitation, service will not be provided if the items are obstructed by fire hydrants, trees or vegetation, parked cars or other objects that prevent the automated function of the division's equipment.

(d) It shall be unlawful to place or to allow to remain any materials at the curbline for junk or tree waste collection service prior to 6:00 p.m. of the Friday next preceding a day upon which the collection service for the site is scheduled by the chief solid waste officer.

(e) When any property is found in violation of subsection (d) of this section, such fact shall be prima facie evidence that the current record owner or occupant of the property committed such offense. It is a defense to prosecution under subsection (d) of this section that the property owner or occupant can name and identify the person who committed the offense.

(f) All persons have an affirmative duty to comply with all provisions of this section, and it shall not be a defense to prosecution of such persons that they were acting without a culpable mental state.

(g) Reserved.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-78. Collection of dead animals.

(a) Small dead animals, such as dogs, cats, or other of similar size, will be picked up by the city as a special service at no charge; provided, that such special pickup must be requested by contacting the division between 8:00 a.m. and 5:00 p.m.

(b) Large dead animals, such as horses and cattle, or others of similar size, will be picked up by the city as a special service for the fee stated for this provision in the city fee schedule; provided that such special pickup must be requested by contacting the division between 8:00 a.m. and 5:00 p.m. The owner of the animal shall pay the aforesaid fee to the division in such manner as the chief solid waste officer shall specify; provided, that the chief solid waste officer shall not impose such fee in the case of animals of unknown ownership. In case of animals of unknown ownership, the chief solid waste officer may require an affidavit or a signed statement to that effect from the land owner or resident.

(c) It shall be unlawful for any person to place dead animals in any garbage or trash container or receptacle. Disposal thereof may require special equipment, routing and handling which cannot be provided in conjunction with other collection services.

(d) The city shall not pick up dead animals from those locations engaged in the business of treating, handling, or disposing of animals.

(e) The city shall be responsible for the pickup of dead animals from city property and rights-of-way only.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-79. Collection of decomposed organic products.

In cooperation with the chief solid waste officer of the public health or his designee, the city shall assist where appropriate in situations involving decomposed organic products on private property deemed detrimental to the health and safety of the general public.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-80. Pickup for persons with disabilities.

The division shall provide basic garbage collection service to persons with disabilities by entering onto the private property of such persons to collect garbage and trash generated by such persons under the following conditions:

(1) A person with a disability shall request such service, in writing;

(2) The disability which is the basis of such request must be a disability which prevents the citizen from placing garbage and trash at the curbside for collection;

(3) The person with a disability shall present with the request for service, documentation from an attending physician confirming the disability;

(4) The person with a disability shall be the sole resident at the service address at which service is requested, unless all other residents at the service address qualify for service under the provisions of this section; and

(5) No more than two automated service containers meeting the specifications of this article shall be collected on any collection day.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-81. Adopt-a-container program.

The city may provide bulk containers for use by residents of the city. This service is intended to assist non-profit community organizations with weekend neighborhood cleanup campaigns. The bulk containers will be provided on a first-come-first-served basis, depending upon the availability of equipment. The containers will be delivered on Friday and collected on Monday. Only non-profit and civic organizations are eligible

to sponsor bulk containers. Requests to the chief solid waste officer for bulk containers must comply with the following conditions:

(1) The request must be received in writing not less than 21 days prior to the anticipated cleanup date; requests must include a reschedule date in the case of inclement weather;

(2) The request must indicate a specific location for the container to be placed by the city;

(3) The request must specifically indicate which community group is requesting the container; and

(4) The request must specifically name a person to be responsible for monitoring the container, and that person must sign the written request.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-82. Neighborhood depositories.

In addition to the junk and tree waste collection service, the division may operate solid waste depository sites at which junk, tree waste, and recyclable material may be deposited. No person may utilize depository sites more than four times per month. The following rules and conditions shall apply to neighborhood depositories:

(1) Each user must provide proof of residency in a form acceptable to the chief solid waste officer, or must show a current city property tax receipt for use of a facility as a nonresident;

(2) Only junk, tree waste, and city approved recyclables will be accepted in accordance with rules established by the chief solid waste officer under section 39-50 of this Code;

(3) Salvaging or scavenging items deposited at a site or from vehicles that are waiting to make deposits at a site is unlawful; and

(4) Trespassing on a site is prohibited, and the chief solid waste officer shall cause each site to be posted with appropriate no trespassing signage. Only persons who are depositing waste or recyclable material at the site and division employees may be present at a site.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Secs. 39-83—39-94. Reserved.

ARTICLE V. LITTER CONTROL*

Sec. 39-95. Enforcement of state solid waste laws and regulations.

(a) In cooperation with the legal department, the neighborhood protection official and any other city departments having code enforcement responsibilities relating to solid waste, sanitation or litter control, the chief solid waste officer shall conduct an effective program of the enforcement of state and local laws relating to solid waste, sanitation and litter control including, but not limited to, enforcement of the Texas Litter Abatement Act (Texas Health and Safety Code, ch. 365).

(b) The health officer may report the failure of any person to comply with the said act or regulations in writing to the legal department for the institution by the city of suits for the civil penalties and injunction remedies provided in the solid waste disposal act; provided, that the health officer may, but shall not be obligated to, attempt to secure voluntary compliance prior to referral of the complaint to the legal department. Prior to the institution of suit, the legal department shall refer the health officer's request to the city council for authorization to file suit. Such authorization may be granted by motion of the city council. Further authorization shall not be required for taking of any action which the city attorney deems necessary or desirable in connection with the prosecution of the suit or the enforcement of any judgment obtained therefrom.

*__Cross references—__Duty of automobile wrecker drivers to remove glass, debris, etc. from scene of accident, § 8-213; deposit of garbage or waste at airports, § 9-67; removal of trash on streets after moving of buildings, § 10-73; clean up after demolition or removal of structures, § 10-356 et seq., § 28-30(a)(2).

(c) Upon completion of appropriate training, employees designated by the division, fire department, Houston Health Department, mayor's citizens' assistance office, and police department, are authorized to issue citations charging the violation of any of the provisions of this chapter. Duly trained and designated employees of the division are also authorized to issue citations charging the violation of any provisions in this Code relating to solid waste, including but not limited to garbage, refuse, and dumpsters.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-96. Information required on solid waste transport vehicles.

(a) It shall be unlawful for any person to operate or cause to be operated any vehicle whose major use (as defined by the chief solid waste officer) is the transporting of solid waste upon any public street within the city unless the name and telephone number of the hauler is posted and maintained thereupon in the manner provided in this section. The word "hauler" as used in this section shall mean the owner of the vehicle, provided that if the vehicle is operated pursuant to a lease or other arrangement whereby the owner is not entitled to the use of the vehicle, then "hauler" shall mean the person entitled to the use of the vehicle.

(b) It is an affirmative defense to prosecution under this section that the cargo transported by such person:

(1) Contains two cubic yards of solid waste or less; or

(2) Originated outside the city and is destined for transport outside the city, provided that no solid waste is loaded or unloaded within the city.

(c) It is also an affirmative defense to prosecution under this section that:

(1) The vehicles is owned by a political subdivision and is marked in compliance with the law applicable to vehicles owned by such subdivision; or

(2) The vehicle is required to be marked or posted in a manner inconsistent herewith by applicable state or federal laws, rules or regulations and is marked or posted in compliance therewith.

(d) The name and telephone number required to be posted by this section shall be printed on a vertical or nearly vertical surface upon both sides, and when the configuration of the vehicle allows, in the rear, in proportional and proportionally spaced block letters and numbers not less than three inches in height having a brush stroke not less than three-eighths inch in width, shall be of a solid color which contrasts with the background color upon which they are printed and shall be maintained in a clean and unobstructed manner at all times. Abbreviated names may be used, provided that the hauler notifies the director of public health and chief solid waste officer of the abbreviation. In the event that the vehicle is designed in such a manner that the solid waste is transported within a trailer or off-site service type of receptacle which is towed or carried by the vehicle, then the letters and numbers required on the rear of the vehicle may be printed upon such trailer or receptacle in lieu of the vehicle itself. The requirement may be met through the use of decals.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-97. Information required on bulk containers.

(a) It shall be unlawful for any bulk container service provider to use or to provide any bulk container for the use of any other person within the city unless the name and telephone number of the bulk container service provider is posted and maintained thereon in the manner provided in this section.

(b) The name and telephone number required to be posted by this section shall be printed on a vertical or nearly vertical surface upon the bulk container in proportional and proportionally spaced block letters and numbers not less than two and one-fourth inches in height having a brush stroke of not less than three-eighths inch in width, shall be of a solid color which contrasts with the background color upon which they are printed and shall be maintained in a clean condition at all times. Abbreviated names may

be used, provided that the bulk container service provider notifies the director of public health and the chief solid waste officer of the abbreviation. If the bulk container is designed for on-premise emptying, then the name and telephone number shall be printed on the side thereof which is intended for access by the truck or other mechanical device which empties the bulk container.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-98. Duty of property owners for collection.

Property owners shall ensure that solid waste collection services are provided on a regularly scheduled basis to collect all solid waste generated or accumulated on their property. Such schedule will be established to ensure that solid waste is collected at least one time per week or more frequently if required to prevent the creation of any hazard to public health or public nuisance."
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-99. Placement for collection in the central business district.

It shall be unlawful for any owner, manager, tenant, or occupant of any business establishment or building in the central business district, or the agent or employee of such person, to fail to comply with the following minimum standards relating to the placement and collection of garbage, rubbish, or recyclable material:

(1) Types of receptacles. Suitable containers must be used for private service commercial collection of municipal solid waste. Solid waste generated or accumulated in any business establishment or building shall be contained in a bulk container or one of the following trash receptacles:

   a. A garbage or rubbish container. A garbage or rubbish container shall meet the requirements of section 39-61 of this Code.

   b. Plastic bags. Plastic bags shall have a minimum film thickness of two mils.

(2) Cardboard boxes. When cardboard boxes alone are placed for collection, they shall be broken down, flattened, and tied in bundles not exceeding four feet.

(3) Collection. Collection of garbage, recyclable material, or rubbish is permitted at all hours except between 7:00 a.m. and 2:00 p.m.

(4) Placement.

   a. Garbage, trash, and recyclable material receptacles and cardboard boxes shall not be placed out for collection earlier than 2:00 p.m. on the day of collection, and the receptacles shall be removed immediately after collection of the contents.

   b. No garbage, trash, or recyclable material receptacle or cardboard box may be placed out for collection for more than four hours, and the receptacles shall be removed from an improved public street right-of-way, including the street, sidewalk, or other public right-of-way property adjacent thereto, no later than 7:00 a.m.

   c. Garbage, trash, and recyclable material receptacles and cardboard boxes shall be placed out for collection at the curbline of a public street in front of or adjacent to the premises and in such a manner as to leave a five foot minimum width corridor for pedestrian passage.

   d. Garbage, trash, and recyclable material receptacles may not be placed adjacent to or in a parking meter zone or a commercial vehicle loading zone or within five feet of any crosswalk.

(5) City-owned trash receptacles. Solid waste generated or accumulated in any business establishment or building shall not be placed in city-owned trash receptacles used to collect litter.

(6) Exception. This section does not apply to sidewalk litter collected by the city or the Houston Downtown Management District.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-100. Reserved.

ARTICLE VI. SCREENING OF BULK CONTAINERS

Sec. 39-101. Screening required.

This article shall apply to all new developments, which for purposes of this section is defined as those for which plans are submitted after February 25, 2023, other than single-family residences, are located within the city, and are not serviced by the division. All such developments shall identify the location of the service area or the bulk container along with screening when applicable on a site plan required per section 26-473 or section 42-46.

(a) An owner or lessee of property shall place or maintain a bulk container so that it is not visible from any abutting public street right-of-way. A bulk container located on a service drive, or in a service area behind or beside a building on the property shall not be deemed visible from a public street right-of-way.

(b) A bulk container shall be deemed to be visible only if it can be seen by any person who is standing at grade level on any part of the right-of-way of a public street.

(c) An owner or lessee of property may utilize a berm, building, fence, wall, gate, or a combination thereof, to accomplish the screening of a bulk container from view.

(d) A bulk container placed on new developments located in a service area between a building and an abutting residential property shall require a minimum eight-foot-high solid fence or screen between the property line and the bulk container.

(e) A bulk container placed on new developments located between a building and a public street shall require minimum six-foot-high solid fence to screen the dumpster from public view. A bulk container housed inside the building is exempt from this requirement.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-102. Offenses and defenses.

(a) *Offenses.* It shall be unlawful for any person to:

(1) Fail to comply with section 39-101 of this Code.

(2) Place or cause to be placed a bulk container on private property without first obtaining the permission of the owner or person in charge of the property.

(3) Fail to maintain screening as required under this article.

(b) *Defenses.* It is a defense to prosecution under subsection (a) above that:

(1) The bulk container is in daily actual use, exclusive of weekends, holidays, and inclement weather days, for the purpose of disposing of waste generated by the demolition or construction, or both, of improvements on the property upon which the bulk container is situated and that all building permits required for the work have been obtained.

(2) The bulk container was placed by or upon written authority of the chief solid waste officer on a temporary basis for a neighborhood clean-up campaign or similar temporary purpose.

(3) The bulk container is used exclusively for the collection of recyclable materials.

(4) For new development, as that term is defined in section 39-101, there is inadequate space to locate the bulk container upon the property in a manner that complies with section 39-101 of this Code.

(5) Placement of the bulk container on the property in a manner that complies with section 39-101 of this Code would violate any provision of:

a. Chapter 26 of this Code relating to off-street parking requirements;

b. Chapter 42 of this Code relating to planning standards;

c. Chapter 10 of the Building Code relating to means of egress; or

d. The Fire Code relating to dumpsters or fire apparatus access roads.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-103. Exceptions.

This article shall not apply to a bulk container situated upon property that is owned and maintained by a public school district or a private school.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Secs. 39-104—39-110. Reserved.

ARTICLE VII. COMMERCIAL SOLID WASTE OPERATORS

Sec. 39-111. Definitions.

As used in this article, the following terms shall have the meanings ascribed in this article, unless the context of their usage clearly indicates another meaning:

Commercial properties means land used for commercial and industrial purposes, excluding apartment and condominium complexes and land used for single-family residential dwelling purposes as defined in section 42-1 of this Code.

Commercial solid waste operator means any person who collects, hauls, or transports solid waste or industrial waste for a fee by use of any means, including, but not limited to, front-load dumpster trucks, roll-off trucks, or rear-load garbage trucks.

Director means the director or the director's designee of the city's department of administration and regulatory affairs.

Industrial waste has the meaning ascribed to the term "industrial solid waste" by chapter 361 of the Texas Health and Safety Code, as may be amended from time to time.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-112. Scope.

The provisions of this article shall not apply to any municipally-owned commercial solid waste operator or to any commercial solid waste operator for services performed under a contract between the operator and the city.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-113. Franchise required.

It shall be unlawful for any commercial solid waste operator to collect, haul or transport solid waste or industrial waste from commercial properties located within the city without first having obtained a franchise for that purpose upon the consent of the city council.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-114. Franchise administration.

Any franchise granted pursuant to this article shall be administered by the director, upon such application and rules as the director may establish, including standards for performance.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-115. Granting of franchise.

(a) After receiving a complete application, the director may make such investigation as he considers necessary to determine whether the applicant meets the requirements of law and of this article.

(b) The director may require the applicant to furnish additional information to assist the director in his determination.

(c) After the director determines whether the applicant meets the requirements of the law and this article the director or his duly authorized representative shall recommend either (1) that the city council deny the franchise agreement or (2) that the city council approve the franchise agreement.

(d) Each franchise proposed by the director pursuant to this article shall incorporate the terms of this article and shall address at a minimum the following terms and conditions, which shall be as consistent as practicable between franchises:

(1) Definition of gross revenues;

(2) Statement that the franchise is not exclusive;

(3) Amount and time of payment to the city, including right of the city to inspect the franchisee's records to determine compliance and provision for a late penalty;

(4) Requirements for record keeping;

(5) Requirements for release, indemnification and insurance;

(6) Provisions for default and termination, including the opportunity to cure;

(7) Payment of liquidated damages to the city;

(8) Prohibition against assignment of franchise without consent of the city; and

(9) Such other miscellaneous terms and conditions that the director determines to be necessary, appropriate and consistent with terms and conditions in other city franchises.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-116. Franchise fee.

Any franchise granted pursuant to this article shall provide that the commercial solid waste operator shall be liable for an annual franchise fee equal to four percent of the operator's gross revenues from the collection, hauling, or transporting of solid waste or industrial waste within the scope of this article, payable quarterly, within 45 days of the close of the calendar quarter for which the quarterly payment is calculated. The initial quarterly payment shall cover the period beginning as of the effective date of the franchise. Any necessary prorations shall be allowed. The operator shall reflect the franchise fee as a separate line item on the invoice from the operator to the customer.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-117. Identification required.

(a) It shall be unlawful for any person to operate, or to cause or allow to be operated, any vehicle while engaged in any activity for which a franchise is required under this article unless there is conspicuously displayed upon both sides of the vehicle a decal at least five inches by six inches in size issued by the director.

(b) In any prosecution under this article it shall be presumed that any vehicle not in display of the decals required in this section is not in compliance with the requirements of this article.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-118. Penalty.

(a) Without limitation of other remedies available to the city, persons operating in violation of the terms of this article, shall be liable to the city for all fees authorized by this article dating to the inception of such violation.

(b) Any person who violates any provision of this article shall be guilty of an offense and upon conviction thereof, shall be punished by a fine of not less than $150.00 nor more than $500.00 for each violation.

(c) A citation issued under section 39-117(a) shall be dismissed upon proof that the required decals were affixed to the cited vehicle within five business days of the issuance of the citation.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Secs. 39-119—39-150. Reserved.

ARTICLE VIII. STORAGE, TRANSPORTATION AND DISPOSAL OF TIRES

DIVISION 1. GENERALLY

Sec. 39-151. Definitions.

The following words, terms and phrases, when used in this article shall have the meanings in this section, except where the context clearly indicates a different meaning:

Driver means an individual who operates a permittee's truck pursuant to the permit.

Elements of nature means rainfall, snow, sleet, hail or other natural precipitation.

Permit means a written grant of approval issued by the chief solid waste officer for the transportation of tires pursuant to this article.

Permittee means a person who holds a valid permit issued by the chief solid waste officer pursuant to this article.

Registrant means a person who holds a valid registration issued by the chief solid waste officer pursuant to this article.

Registration means a written grant of approval issued by the chief solid waste officer to tire facilities pursuant to this article.

Scrap tire means a tire that a tire generator has rendered unusable; or a tire that can no longer be used for its original intended purpose because it has:

(1) Tire tread less than one-sixteenth inch deep;

(2) Chunking, bumps, knots, or bulges evidencing cord, ply, or tread separation from the casing or other adjacent material; or

(3) Exposed tire cords or belting material as a result of damage to the tire.

The term "scrap tire" shall not include any tire that has been shredded, ground or cut up into pieces one quarter or less the size of the whole tire from which they were derived.

Store means to place, collect or accumulate tires that are not for sale or resale as tires, whether the tires are directly on the ground, in roll-off containers or otherwise.

Tire means any covering for a wheel, whether new, used, or scrap, made wholly or partially of rubber that was manufactured for use on any vehicle propelled by a motor (including vehicles pushed or pulled by a vehicle propelled by a motor), regardless of whether such vehicle is intended for use on a public street, provided that such tire is not mounted upon a wheel or rim and in service upon or carried as a component spare part of a vehicle.

Tire disposer means any person who, in compliance with all applicable state, federal and local laws, rules and regulations, disposes of or converts tires to another purpose including, without limitation, persons who:

(1) Landfill, incinerate or otherwise dispose of tires as waste or as fuel; or

(2) Shred, grind, chemically treat or use other means to reduce tires into basic components for oil, steel, carbon black, rubber, road paving or other marketable salvage materials; or

(3) Convert tires into other useful items such as doormats and sandal soles.

Tire facility means any business or establishment where 100 or more tires per year are collected, repaired, processed, recycled, scrapped, sold, bought or stored. For purposes of this article a tire facility does not include a business or establishment owned or operated by a governmental entity.

Tire generator means a fleet operator, an automotive dismantler, or a retailer, wholesaler, manufacturer, recapper, or retreader of new or used tires.

Tire transporter means a person who is responsible for causing tires to move along a public street from one location to another within the city.

Truck means a vehicle operated by a permittee's driver for the transport of tires pursuant to a permit issued pursuant to this article.

Used tire means a tire, including a recapped or retreaded tire, suitable for continued use for its original intended purpose.

Vector control means any method to limit or eradicate organisms capable of transporting infectious agents.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-152. Open storage of tires prohibited; nuisance.

It shall be unlawful for any person to store any tire in the city in such a manner that the tire is exposed to the elements of nature, and this action is hereby declared to be a nuisance,

subject to abatement at the expense of the owner of the premises where the tire is stored as provided by law and this Code.

Sec. 39-153. Storage; precautions; reports; affirmative defense.

(a) All persons having any tires in their possession shall keep tires secure at all times that such persons, their agents or employees are not physically present on the premises where the tires are stored. If tires are not stored in a building or enclosed container that is capable of being secured, then those persons having tires in their possession shall monitor the tires at least once every two weeks for vector control, and the tires themselves must be secured by passing a heavy bar or chain made of steel not less than three-eighths of one inch in thickness through the center of the tire and locking the bar or chain to a fixture; provided, the chief solid waste officer may upon written request grant permission for an alternate method of storage. The proposed alternative storage method must comply with all applicable federal, state and local laws and regulations and provide equivalent security from theft and vector control.

(b) All tires for sale shall be stacked, sorted, classified and arranged in an organized manner.

(c) Each theft of any tire shall be reported to the chief solid waste officer in writing within five days after the theft or its discovery. The report shall include the number of tires stolen and a description thereof. The report shall be made regardless of whether such theft is also reported to the police department.

(d) It is an affirmative defense to prosecution under subsection (a) that a person having tires in his possession stores them in a manner consistent with an alternate use such as, but not limited to, a swing, planter, stabilizing platform for sports equipment, etc.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-154. Actions authorized to enforce article.

(a) The city, acting through the city attorney or the city attorney's designee, is hereby authorized to file an action in a court of competent jurisdiction to:

(1) Enjoin any person from violating the terms, conditions and restrictions of any registration or permit issued under this article;

(2) Enjoin the violation of the provisions of this article;

(3) Recover civil penalties for violation of the terms, conditions and restrictions of any registration or permit issued under this article;

(4) Recover civil penalties for violation for the provisions of this article; or

(5) Recover damages from the owner of a tire facility in an amount adequate for the city to undertake any construction or other activity necessary to bring about compliance with this article.

This authority is in addition to all provisions of this Code relative to the definition of offenses and the provision of penalties for violations of such ordinances.

(b) The city, acting through the city attorney or the city attorney's designee, is hereby authorized to enter into agreements in lieu of litigation to achieve compliance with the terms, conditions and restrictions of any registration or permit issued under this article.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-155. Criminal sanctions.

A violation of any of the provisions of this article constitutes a misdemeanor that shall be punishable, upon conviction, by a fine of not less than $250.00 nor more than $2,000.00, and each day that any violation continues shall constitute a separate offense; provided, however, that an offense provided in this article which also

constitutes an offense under state law shall be punishable as provided in the applicable state law.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-156. Fees.

There are hereby established and the chief solid waste officer shall charge and collect fees for each permit (includes one truck) or registration application and for each additional truck to be covered by a permit. Fees shall be as stated for this provision in the city fee schedule. Payment of any applicable fees when due is a condition of the processing of any application under this article.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Secs. 39-157—39-170. Reserved.

DIVISION 2. REGISTRATIONS, PERMITS AND RECORDS

Sec. 39-171. Annual registration required.

It shall be unlawful for any person to own or operate a tire facility where tires will be stored without having a registration issued annually by the chief solid waste officer.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-172. Annual permit required.

It shall be unlawful for any person to transport tires upon any public street within the city unless such person is acting pursuant to a permit issued annually by the chief solid waste officer. It is an affirmative defense to prosecution under this section that the cargo transported by such person:

(1) Contains five or fewer tires; or

(2) Contains five percent or less tires by volume and is part of a general cargo of "municipal solid waste" as that term is defined by Chapter 361 of the Texas Health and Safety Code; or

(3) Originated outside of the city and is destined for transport outside of the city, provided that no tires are loaded or unloaded within the city.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-173. Tire generators; disposal of tires; records.

It shall be unlawful for any tire generator to cause or allow any tire to be transported upon any public street other than by a permittee. Each tire generator shall maintain daily records of the numbers of tires generated at each premises under his control and his disposition. A receipt showing the number of tires, the names of the tire generator and permittee and the permit number of the permittee shall be obtained by a permittee for each consignment of tires. Each receipt shall be issued at least in duplicate and signed by both parties with one copy thereof to be retained by the tire generator and one copy to be retained by the permittee. Tire generators who are also permittees shall maintain internal trip tickets in lieu of receipts for tires that they transport. For purposes of this article, TCEQ form 10304, entitled "Whole Used or Scrap Tire Manifest," or any successor form, is a sufficient receipt.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-174. Registrants and permittees; disposal of tires; records.

It shall be unlawful for any registrant or permittee to dispose of any tire transported by the registrant or permittee other than by the delivery of the tire to a tire disposer. Each registrant and permittee shall maintain daily records of the number of tires received and delivered. Each registrant and permittee shall obtain a receipt showing the number of tires, the names of the registrant, permittee and tire disposer and the registration or permit number of the registrant and permittee for all tires delivered. Each receipt shall be issued at least in duplicate and signed by both parties with one copy to be retained by the tire disposer and one copy to be retained by the registrant and permittee. Tire disposers who are also registrants or permittees shall maintain internal trip tickets in

lieu of the receipts for tires that they transport. Permittees shall maintain records of the name and residence address of each driver (including the permittee if the permitee intends to act as a driver under the permit) who will be authorized to drive the permittee's trucks, and their respective driver's license numbers.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-175. Inspection of records.

The records required by this article shall be retained for three years from their creation. Registrants and permittees shall maintain the records at the address designated in their applications. All records shall be made available during regular business hours for inspection, audit, or copying by the chief solid waste officer, police department, and the city attorney or the city attorney's designee as often as may be necessary to ensure compliance with this article.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-176. Applications for registration; permit.

(a) Each person desiring to own or operate a tire facility shall apply for a registration in a form acceptable to the chief solid waste officer, which shall include at a minimum all of the following:

(1) The person's name;

(2) The person's business address, including a facsimile number or email address;

(3) The physical address within the county at which the records required in this article will be maintained;

(4) The person's principal business or occupation; and

(5) The person's state registration number, if applicable.

(b) Each person desiring a tire transporter's permit shall apply in a form acceptable to the chief solid waste officer, which shall include at a minimum all of the following:

(1) The person's name;

(2) The person's business address, including a facsimile number or email address;

(3) The physical address within the county at which the records required in this article will be maintained;

(4) The person's principal business or occupation;

(5) A description of each truck that the applicant will use for the transport of tires including the manufacturer, gross weight, license number, color, vehicle identification number, year of manufacture and its registered owner; and

(6) A statement that the applicant has not had a permit revoked under this article within the immediately preceding period of three years.

(c) Each application shall be accompanied by an application fee and a fee for each truck described in an application under this section.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-177. Issuance, duration and amendment.

(a) The chief solid waste officer shall issue a permit to the applicant designating the trucks authorized pursuant thereto unless the chief solid waste officer has a reasonable basis to believe that:

(1) Any statement on the application was incomplete or false;

(2) The applicant has committed any offense involving the unlawful disposal, storage, or theft of tires within the immediately preceding period of three years; or

(3) The applicant has had a permit revoked under this article in the immediately preceding period of three years.

(b) In addition to the permit itself, the chief solid waste officer shall issue one or more identification plates, stickers or decals to be attached by the permittee in such places and manner as the chief solid waste officer may administratively direct to each truck covered thereby. Failure to properly display a required plate, sticker or decal shall be a violation of this article.

(c) Permits and registrations issued under this article shall be valid for one year from the date of issuance unless sooner revoked.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-178. Transfer of permit or registration prohibited; reporting.

(a) Permits, registrations, stickers or decals issued under this article are personal to the applicant and may not be transferred, leased, assigned, given away or sold in any manner or under any circumstances.

(b) It shall be the duty of each registrant and permittee to advise the chief solid waste officer in writing within ten business days of any change to any item for which a representation or response was made in its application for registration or permit.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-179. Authorized trucks.

It shall be unlawful for a permittee to allow any truck to be used for the transport of tires except those trucks designated in his permit. The permittee shall ensure that, at all times, each truck bears the identification plates, stickers or decals issued by the chief solid waste officer.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-180. Basis for revocation of registration or permit.

Any registration or permit issued under this article may be revoked in accordance with these procedures if the chief solid waste officer determines there is a reasonable basis to believe that:

(1) The registrant or permittee has violated any of the provisions of this article;

(2) The registrant or permittee violates any state or municipal law or ordinance involving the unlawful disposal, storage or theft of tires;

(3) The registrant or permittee violates any provision of Chapter 37 of the Texas Penal Code relating to the records required to be kept under this article;

(4) Any truck bearing a decal or sticker issued pursuant to this article is used for the commission of any violation of any state or municipal law or ordinance involving the unlawful disposal, storage or theft of tires; or

(5) Any statement made in the application for the permit or registration or any amendment thereto was known to be false.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-181. Investigation; notice.

The chief solid waste officer, in consultation with the police department, shall investigate the facts underlying an allegation that there is a reasonable basis for revocation of a registration or permit. If the chief solid waste officer determines that there is a reasonable basis for revocation of a registration or permit, the chief solid waste officer shall give written notice to the registrant or permittee by personal service, by facsimile, or by certified mail, return receipt requested, which notice shall include, at a minimum:

(1) The specific grounds upon which the registration or permit may be revoked;

(2) That there will be a hearing before the chief solid waste officer in which the city will seek to revoke the registration or permit;

(3) The date, time and place of the hearing; and

(4) That the permittee or registrant may appear in person and may be represented by an attorney.
(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-182. Revocation hearing.

(a) All hearings shall be held by the chief solid waste officer or a designated representative. Such officer shall be referred to as the "hearing officer."

(b) All hearings shall be conducted under rules consistent with the nature of the proceedings, and the registrant or permittee shall have the burden of proof; provided, however, that the following rules shall apply to such hearings:

(1) Each party shall have the right to representation by a licensed attorney, though an attorney is not required.

(2) Each party may present witnesses in its own behalf.

(3) Each party has the right to cross-examine all witnesses.

(4) The hearing officer shall consider only the evidence presented at the hearing in rendering an order.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-183. Failure to appear at revocation hearing.

If the registrant or permittee fails to appear at the hearing at the date and time specified, the hearing officer may enter an order revoking the registration or permit.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-184. Findings of hearing officer after revocation hearing.

After completion of the presentation of evidence by all parties appearing, the hearing officer shall determine whether there is a reasonable basis to revoke the registration or permit. If there is a reasonable basis the hearing officer shall make written findings that specify the facts upon which the determination was based, and shall render a written order to revoke the registration or permit; provided, the hearing officer may exercise discretion to take other lesser actions such as a temporary suspension or revision of a registration or permit. A copy of the hearing officer's order shall be personally delivered, sent by facsimile or mailed by certified mail, return receipt requested, to the registrant or permittee.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-185. No refund of fee after revocation.

In the event any registration or permit is revoked, suspended or revised by the hearing officer, the city shall not be liable to any person for any refund of any part of the registration or permit fee.

(Ord. No. 2026-0516, Exh. C, 6-10-2026)

Sec. 39-186. Surrender of permit, plates, decals upon revocation or suspension.

It shall be the duty of each person whose registration or permit has been revoked or suspended to return the permit to the chief solid waste officer, as well as any identification plates, stickers or decals issued therewith.

Ord. No. 2026-0516, Exh. C, 6-10-2026)

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Chapter 40

STREETS AND SIDEWALKS*

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ARTICLE I. IN GENERAL

Sec 40-1. Reserved.

Editor's note—Ord. No. 99-379, § 2, adopted April 21, 1999, repealed § 40-1 in its entirety. Formerly, said section pertained to council consent required for street improvements and derived from Code 1968, § 41-1. See the Code Comparative Table.

Sec. 40-2. Survey of sidewalks and fixing of bounds and limits.

It shall be the duty of the city engineer to survey and lay out the several sidewalks along the several streets of the city, and fix the bounds and limits between the sidewalks and the streets. (Code 1968, § 41-2; Ord. No. 90-635, § 96, 5-23-90)

Sec. 40-3. Installation of street lights.

(a) Where lighting is requested for installation by the city, the mayor is hereby authorized to approve, upon the recommendation of Houston Public Works, the installation of ornamental standard type street lights in residential areas. For lighting requested for installation by a developer of a housing, commercial, or industrial development or the developer's agent, ('developer'), and upon approval of the request by Houston Public Works, a fee shall be paid to the city by the developer in an amount of money sufficient to pay the operating cost of the lights for a period of one year. This section shall also be applicable for ornamental standard type lighting on nonresidential streets where lighting is requested prior to the time it is scheduled by the city. The mayor may delegate such authority to persons named in a written delegation notice signed by the mayor and filed with the city secretary, subject to revocation at any time.

(b) The fee paid to the city whenever ornamental street lights are to be installed shall be in an amount calculated by Houston Public Works to represent the operating cost of the street lights for one year. The fee collected shall be deposited in a special revenue account which is hereby established. The monies collected in the special account shall be designated for street lighting use only. All notices of the amount of fee due shall clearly state that any fee not received within six months from the date of issuance by Houston Public Works shall be subject to increase.

(c) The foregoing requirement for a fee paid by a developer shall not apply in the case of ornamental standard type street lights for which the installation charges, if any, plus the estimated operating cost for one year or more are to be paid for out of funds obtained through the Department of Housing and Urban Development of the United States of America as part of the Community Development Block Grant Program. The installation of such street lights may be approved by the mayor (or the mayor's designee) upon the determination by the Director of Houston Public Works that such funds are available and have been duly authorized to be expended for such purpose.

(Code 1968, § 41-4.1; Ord. No. 70-636, § 1, 5-5-70; Ord. No. 79-962, § 1, 6-14-79; Ord. No. 80-571, § 1, 3-18-80; Ord. No. 82-368, § 1, 3-8-82; Ord. No. 82-906, § 1, 6-1-82; Ord. No. 86-528, § 30, 4-22-86; Ord. No. 90-635, § 97, 5-23-90; Ord. No. 92-1009, § 1, 7-22-92; Ord. No. 93-514, § 67, 5-5-93; Ord. No. 2018-11, §§ 49, 50, 1-10-2018; Ord. No. 2023-1081, § 2, 12-6-2023)

Sec. 40-4. Maps and notice of abandonment.

(a) It is hereby made the duty of every person owning, using, controlling or having an interest in pipes, conduits, ducts or tunnels under the surface of any public street, alley, sidewalk or other public place for supplying or conveying gas, electricity, water, steam, ammonia or oil in, to or from the city, or to or from its inhabitants,

or for any other purpose, to file in the office of the city engineer a map or a set of maps, each drawn to a scale of 200 feet to one inch, which map or set of maps shall be on tracing cloth to be furnished in sheets 15½ inches by 23 inches or even multiple thereof, or as may be required by the city engineer, with a border one and one-half inches on the left hand, and shall show in detail the exact location, size, description and date of installation, if known, of all holes, laterals and service pipes, and of all valves, pressure regulators, drips, manholes, handholes, transform chambers or other appliances installed beneath the surface of public streets, alleys, sidewalks or other public places in the city, belonging to, used by or under the control of such person or in which such person has an interest. It shall also be the duty of every person to file, within 15 days after the first day of January of each and every year, a corrected map or set of maps, each drawn to a scale of not less than 200 feet to one inch, showing the complete installation of all such pipes and other appliances, including all installations made during the previous year, to and including the last day of such year. Each such map shall be accompanied by an affidavit endorsed thereon, subscribed and sworn to by such person, or by a member of a firm, or by the president or secretary of a corporation, to the effect that the same correctly exhibits the details required by this section to be shown thereon.

(b) Whenever any pipe, conduit, duct, tunnel or other structure located under the surface of any public street, alley or other public place, or the use thereof, is abandoned, the person owning, using, controlling or having an interest therein shall, within 30 days after such abandonment, file in the office of the city engineer a statement in writing giving in detail the location of the pipe, conduit, duct, tunnel or other structure so abandoned. Each map or set of maps filed pursuant to the provisions of this section shall show in detail the location of all such pipes, conduits, ducts, tunnels or other structures abandoned subsequent to the filing of the last preceding map or set of maps.

(c) It shall be unlawful for any person to fail, refuse or neglect to file any map or set of maps at the time and in all respects as required by this section.
(Code 1968, § 41-5; Ord. No. 90-635, § 98, 5-23-90)

Sec. 40-5. Minimum depth.

It shall be unlawful for any person to install or cause or permit to be installed any service pipe or main pipe, conduit, duct, tunnel or other structure, or part thereof, except manholes, culverts and catch-basins, in any public street, alley, sidewalk or other public place at a depth of less than two feet below the established grade of the gutter of such public street, sidewalk, alley or other public place.
(Code 1968, § 41-6)

Sec. 40-6. Pipes, conduits, etc., to be laid prior to paving.

All pipes, conduits, tunnels and other structures in or under the surface of public streets, alleys and other public places, shall all be made and laid prior to the paving of such street, alley or public place.
(Code 1968, § 41-7)

Sec. 40-7. Subdivision identification markers.

(a) *Definition.* When used in this section, the term subdivision identification marker means a marker placed in the public right-of-way intended to identify a residential community or residential development with 50 or more platted single-family residential lots. The city engineer may issue a variance for subdivision identification markers for a residential community or residential development with less than 50 single-family residential lots.

(b) Encroachment permit required. A subdivision identification marker installed after December 31, 2008, in the median of a public street right-of-way or in unimproved excess public street right-of-way of a street within, abutting or adjacent to the subdivision must have an encroach-

ment permit issued by the city engineer's office and shall not be subject to the requirements of the *Sign Code*.

(c) *Design standards.* A subdivision identification marker must contain the name of the recorded subdivision, and may contain an insignia or motto of the subdivision in addition to identification directly related to the residential community or development, such as 'deed restrictions enforced' and civic association/homeowner's association meeting announcements. A subdivision identification marker may not include any advertising content unrelated to the subdivision, and may not contain any moving, electronic, LED or other changeable message.

The design of the subdivision identification marker shall conform to the standards set forth in the Infrastructure Design Manual, as promulgated and revised from time to time by Houston Public Works. The city engineer must approve each request for more than two subdivision identification markers in the public street right-of-way and may restrict the number of subdivision identification markers for a subdivision taking into account the number of lots in the subdivision, the number of major entrances to the subdivision, and the area (acreage) of the subdivision. The city engineer may establish minimum clearances for subdivision identification markers from the edge of the pavement. The city engineer may also specify acceptable foundations for subdivision identification markers in the public street right-of-way and may require frangible or breakaway marker supports. Variances to any design standards for proposed subdivision identification markers must be granted by the city engineer.

(d) *Application for encroachment permit.* A subdivision developer or homeowners' association may apply to the city engineer for an encroachment permit for subdivision identification markers. The application for subdivision identification markers must identify the person, partnership, association, corporation or other legal entity responsible for the perpetual maintenance of the marker and include a drawing, approved by Houston Public Works, that shows the design, location, size, height, and material composition of all markers to be permitted, and the location of any utility (water, sanitary sewer, storm sewer, electricity, telephone, cable) facilities in the immediate vicinity of the markers. Each subdivision identification marker must be located so as not to constitute a traffic hazard and shall not be located within the visibility triangle, as defined in section 33-101 of this Code, or otherwise impair the visibility of a vehicle from a road or driveway. The application fees for subdivision identification markers to be located in the public street right-of-way shall be stated for this provision in the city fee schedule. All application fees shall be payable at the time of application for an encroachment permit.

(e) *Issuance of encroachment permit.* An encroachment permit for subdivision identification markers installed or to be installed in the public street right-of-way shall be issued by the city engineer on terms approved by the city engineer. A legal representative for the applicant shall be required to sign the offered encroachment permit to indicate acceptance of the terms and undertakings therein, whereupon the applicant shall then be the holder of the encroachment permit.

(f) *Transfer of encroachment permit.* An encroachment permit issued to a developer may be transferred to a homeowners' association upon approval of the city engineer following the submittal of an instrument setting forth the undertaking of the homeowners' association to comply with all the terms of the encroachment permit and to assume all the obligations and responsibilities of the prior holder of the encroachment permit.

(g) *Existing subdivision identification markers.* Subdivision identification markers located within the public right-of-way on December 31, 2008, must be registered with the Houston Public Works. Houston Public Works shall publish a form to register existing subdivision identification markers. No fees will be assessed for registration of existing subdivision identification markers.

(h) *Maintenance, repair and replacement.* As used in this subsection, the term *holder* refers to the holder of an encroachment permit for a subdivision identification marker and the

registrant for an existing subdivision identification marker. The holder shall be, and the city shall not be, responsible for any and all maintenance, repair, and/or replacement for the subdivision identification marker, marker support, structure, illumination, and associated landscaping. The city may require the holder, upon 30-days written notice, to perform maintenance, repair, relocation, or removal of the subdivision identification marker, marker structure, and any associated landscaping. After expiration of the 30-day notice, the city may cause the maintenance, repair or removal of the subdivision identification marker at the expense of the holder. In the event that the city needs to perform improvements, maintenance, or repairs of infrastructure within the right-of-way, the city may, without providing 30-days written notice, cause the removal or alteration of the subdivision identification marker or marker structure and landscaping without repair, replacement, or compensation to the holder. In no circumstances shall the city be obligated to repair or replace a subdivision identification marker, or compensate the holder of the marker for any damage caused by the city or other parties.

(Ord. No. 08-1118, § 2, 12-3-08; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2014-364, § 5, 4-30-2014; Ord. No. 2018-11, § 50, 1-10-2018; Ord. No. 2021-1037, § 20(Exh. I.40), 12-1-2021, eff. 4-1-2022)

Note—Formerly § 41-12.

Sec. 40-8. Sale of goods on streets or sidewalks.

(a) It shall be unlawful for any person to expose for sale or to sell any foodstuffs of any nature, any liquids, or any other goods, wares, or merchandise, either exposed or enclosed in boxes, crates, barrels, baskets or any other container or any animals, on any sidewalk, street, parkway, esplanade or any other public property or any property dedicated to public use.

(b) It is an affirmative defense to prosecution under subsection (a) that the person is selling newspapers in full compliance with article XX of chapter 40 of this Code, that the person is operating a sidewalk café under a permit issued pursuant to section 40-10.1 of the Code, that the person is acting in compliance with a franchise granted by the city, or that the person is conducting a transaction in a public building or on public property in which transaction the city is a party, or that the person is selling food or non-food merchandise within the "theater/entertainment district" defined in section 40-261 of this Code pursuant to a permit issued under article XI of chapter 40 of this Code.

(c) Except within a "school crossing zone", it is a defense to prosecution under subsection (a) that the person is selling frozen desserts from a sanitary vehicle in full compliance with laws applicable thereto. For purposes of this section a "school crossing zone" means a reduced-speed zone that is designated on a street by ordinance to facilitate safe crossing of the street by children going to or leaving a public or private elementary school during the times that the reduced speed limit is applicable, provided that the school crossing zone is duly posted by reduced speed signage in accordance with the ordinance applicable to its creation.

(d) It shall be unlawful for any person to cause or aid a minor in conduct prohibited by this section or to provide foodstuffs, liquids or any other goods to a minor with knowledge that the minor intends to sell or offer for sale such goods in contravention of this section.

(e) No provision of section 40-9 or 40-9.1 of this Code shall be construed to authorize sale of frozen desserts in a school crossing zone.

(Code 1968, § 41-10; Ord. No. 69-1122, § 1, 6-25-69; Ord. No. 76-980, § 1, 6-30-76; Ord. No. 76-1191, § 1, 7-14-76; Ord. No. 84-1671, § 1, 10-23-84; Ord. No. 91-1168, § 2, 8-14-91; Ord. No. 97-1004, § 4, 8-20-97; Ord. No. 04-498, § 3, 5-26-04; Ord. No. 07-225, § 3, 2-14-07)

Sec. 40-9. Sale of frozen desserts from vehicles.

(a) A person may sell frozen desserts from sanitary vehicles approved and licensed by the health officer pursuant to this Code, and such other refrigerated vehicles from which are sold or dispensed frozen dessert products that are fully wrapped, enclosed and contained in individual wrappers or containers, provided that

such vehicles shall be operated and maintained in full compliance with the health, food, drug and sanitary provisions of this Code and the applicable statutes of the state, and provided further that prior to making a sale or dispensing such frozen dessert products the driver of such vehicle shall drive to the side of the street, as close as practicable to the curb, and if there is no curb, then as close as practicable to the hedge of the paved portion or the edge of the portion used for vehicular traffic of said road, and the driver shall stop, stand or park such vehicle in full compliance with all applicable ordinances of the city and statutes of the state, and particularly ordinances governing the stopping, standing, or parking of vehicles, and such vehicle shall remain so stopped, standing or parked for no longer than is necessary to make the immediate sale or to dispense such frozen dessert products.

(b) Any truck used for the purpose of selling or dispensing frozen desserts shall be equipped with a sign clearly visible from both the front and rear, mounted on the top of the truck and bearing the warning "CAUTION—CHILDREN." The lettering for such sign shall be block style letters not less than six inches high and one-half inch wide, and such letters shall be black against a yellow background. Flasher-type warning lights displaying yellow to the front and red to the rear and which operate continuously while the truck is stopped for the purpose of making a sale or dispensing frozen desserts shall be installed at each end of the sign. Failure to so equip and maintain such a truck shall be punishable upon conviction by a fine of not less than $100.00 nor more than $500.00 and each day's violation shall be a separate offense.

(Code 1968, § 41-10.2; Ord. No. 76-981, § 1, 6-30-76; Ord. No. 92-1449, § 54, 11-4-92)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Food and drugs, Ch. 20; assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

Sec. 40-9.1. Sale of frozen desserts from push carts.

Frozen desserts may be sold upon the sidewalks from non-motorized push cart mobile food units. Each push cart mobile food unit must be operated pursuant to a medallion issued under section 20-37 of this Code. If the mobile food unit does not meet the criteria for restricted operations, as established in section 20-22 of this Code, then the operator shall also obtain a food dealer's permit under section 20-36 of this Code. The provisions of this section do not authorize the operation of a push cart mobile food unit upon the sidewalks in a park as defined in article IX of chapter 32 of this Code or within the "theater/entertainment district," as defined in article XI of this chapter, unless any additional permits, concessions or licenses that are required for operation in those areas are also obtained in full compliance with the aforesaid articles.

(Ord. No. 93-1327, § 3, 10-20-93)

Sec. 40-10. Reserved.

Editor's note—Ord. No. 07-225, § 4, adopted Feb. 14, 2007, repealed § 40-10 in its entirety. Formerly, said section pertained to the sale of newspapers on public property and derived from Code 1968, § 41-10.3; Ord. No. 76-1190, § 1, 7-14-76.

Sec. 40-10.1. Sidewalk cafés.

(a) *Purpose.* The purpose of this section is to establish procedures and standards by which persons may use certain city rights-of-way for café purposes by means of a license issued under the authority of this section.

(b) *Definitions.* As used in this section, the following terms and phrases shall have the following meanings:

(1) *Abutting property* shall mean restaurant property contiguous to a public street right-of-way on which a sidewalk café will be operated under this section.

(2) *Application* shall mean that form generally described in subsection (d) which must be completed prior to the issuance of a license hereunder.

(3) Canopy shall mean an awning as defined by the *Building Code.*

(4) *License* shall mean the written authorization from the traffic engineer granted pursuant to the provisions of this section.

(5) *Owner* shall include any owner of fee simple title, part owner, joint owner, tenant in common, tenant in partnership, joint tenant, or tenant by the entirety of the whole of the land contiguous to the right-of-way on which a sidewalk café is to be operated under the authority of this section.

(6) *Person* shall mean an individual, a group of individuals, an association, a club, a society, a firm, a partnership or a corporation.

(7) *Public clearance way* shall mean an imaginary three-dimensional shape not less than four and one-half feet and not more than 12 feet high vertically extending in a straight line parallel to the public right-of-way and extending the full and complete width of the property to be used as a sidewalk café under the authority of this section.

(8) *Public street* means the entire width between the boundary lines of every way which is held by the city in fee or by easement or dedication when any part thereof is open to the use of the public for purposes of vehicular travel; provided the term "public street" shall not include any designated state or federal highway or road or any designated county road.

(9) *Restaurant* shall mean a food service establishment where food is served in individual portions for consumption on the premises as defined by section 20-18 of this Code. This term shall not include an establishment which operates exclusively as a caterer, a commissary, a food processing establishment, a mobile food unit, a retail food store or a temporary food service establishment, all as defined by section 20-18.

(10) *Roadway* means that portion of a public street which is improved, designed, or ordinarily used for vehicular travel, exclusive of the curb, berm, or shoulder. In the event that a public street includes two or more separate roadways, "roadway" means each such roadway separately.

(11) *Sidewalk* shall mean that portion of the public street which is between the curblines, or the lateral lines of a roadway, and the adjacent property lines and which is improved and designed for or is ordinarily used for pedestrian travel.

(12) *Sidewalk café* shall mean an outdoor dining area located on a sidewalk and containing removable tables, chairs, planters, or related appurtenances. In no event shall a sidewalk café be located on or encroach upon the public clearance way as established by the traffic engineer under the provisions of this section. It shall not be enclosed by fixed walls and shall be open to the air, except that it may have a canopy.

(c) *License required.* It shall be unlawful for any person to erect, operate or maintain a sidewalk café without first obtaining a license to do so as provided in this action.

(d) *Procedure for issuance of license:*

(1) The traffic engineer is authorized to issue licenses to persons for sidewalk café purposes under the procedures established in this subsection. To obtain a license, a person must pay the applicable fee and file an application on a form prescribed by the traffic engineer. As a part of the application the applicant shall provide:

a. The name and street address of the applicant.

b. The name and street address of the owner of the abutting property.

c. A description of the owner, if other than a natural person, including its legal status (i.e., corporation, partnership, etc.) and a general description of the type(s) of business the owner operates on the abutting property.

d. Written authority in the form of a power of attorney from the owner to submit the application if the applicant is not the owner of the abutting property.

e. The name and street address of the registered agent for the service of process, if the applicant represents a corporation; or the names and street addresses of the officers or partners, if the applicant represents an association, partnership or other entity.

f. The name and street address of the operator, manager or other person responsible for the operation of the sidewalk café.

g. The name under which the sidewalk café will be operated.

h. The street address and the city food establishment license number of the sidewalk café.

i. One or both of the following:

1. A copy of a title policy covering the abutting property and verification by the owner that there has been no change in ownership since the issuance of that policy; or

2. A certified copy or copies of the most recent deed or deeds conveying all or a portion of the abutting property so that ownership of all of the abutting property is accounted for, and verification by the owner or owners that there has been no change in ownership since the date or dates of that deed or deeds.

j. A site plan of legible proportions prepared by a registered public surveyor or professional engineer showing:

1. The entirety of the abutting property of the owner;

2. All contiguous, adjacent properties;

3. All existing sidewalk features including but not limited to utility poles, sign poles, fire hydrants, permanent litter receptacles, telephone booths, newsracks, and mailboxes; and

4. Streets for a distance of at least 25 feet on either side of the abutting property.

k. Detailed drawings of legible proportions showing the design, dimension and proposed location of all temporary structures (i.e., canopies, umbrellas, planters, landscaping, tables, chairs, all exterior lighting, electrical outlets, etc.), the proposed public clearance way and the side and front elevations of the proposed sidewalk café. In addition to the above-noted drawings the traffic engineer may require detailed drawings at a scale of ½ inch equals one foot showing the front facade of the abutting property and at least ten feet of the first story facade of adjacent buildings.

l. The seating capacity of the proposed sidewalk café and the seating capacity of the restaurant which will be associated with the sidewalk café, if any.

m. A copy or copies of the certificate or certificates of insurance required to be provided under subsection (d)(4).

n. Written documentation showing that adequate public water and sewer utilities are available to serve the sidewalk café.

If the records of Houston Public Works include existing and apparently valid property boundary data that address a portion of the relevant information specified in part j. above, or if the traffic engineer otherwise determines that survey data is not required in order to determine property boundaries in compliance with this section, then the traffic engineer shall allow the applicant to provide a simplified site plan that need not be prepared by an engineer or surveyor,

provided that the site plan is drawn to scale and includes the sidewalk configuration.

(2) Upon receipt of the application, the traffic engineer shall examine its contents and he shall approve the application if he finds that:

a. The application meets the requirements of this section.

b. The proposed sidewalk café would be in compliance with applicable city ordinances.

c. Given the particular characteristics of the sidewalk upon which the sidewalk café is to be located, and of the pedestrian and vehicular traffic in the area, the operation of the proposed sidewalk café will not unreasonably interfere with pedestrian or vehicular traffic.

d. He has determined in writing that:

1. The improvement or facility will not be located on, extend onto, nor intrude upon any portion of the roadway;

2. The improvement or facility will not be located on, extend onto, nor intrude upon any portion of the sidewalk which is needed for pedestrian use;

3. The design and location of the improvement or facility includes all reasonable planning to minimize potential harm or injury to or interference with the public in the use of the public street; and,

4. The improvement or facility will not create any hazardous condition or obstruction of vehicular or pedestrian travel upon the public street.

Otherwise he shall reject the application. If the application is approved, the traffic engineer shall specifically approve, disapprove or modify the location and dimensions of the public clearance way. If the traffic engineer rejects the application, he shall inform the applicant by notice in writing of his action including the reasons for the action if the application is rejected. Upon rejection of the application a person may modify and refile his application if he so desires or he may, within ten days of the date of the mailing of the notice of rejection, request a hearing before the city planning commission if he believes his license was unreasonably denied. The applicant's request for a hearing should be made in writing to the director of the department of planning and development as secretary of the city planning commission. A hearing shall then be scheduled in a timely manner before the city planning commission.

(3) A license granted hereunder shall be valid for a period of one year from the date of its issuance. The licensee is responsible for renewing his sidewalk cafélicense prior to that anniversary date. If the licensee does not renew his license, he shall remove all tables, chairs and other appurtenances associated with that sidewalk café on or before the expiration date of the license.

(4) The licensee shall maintain insurance in the following types and amounts:

$1,000,000.00 combined single limit for bodily injury and property damage, each occurrence, and $2,000,000.00 annual aggregate.

The city shall be an additional insured on each such policy and such policy shall include a provision to the effect that the city will be notified in writing by the insurance company ten days prior to the cancellation of such policy. The licensee shall then have five days to replace that coverage or the licensee's license shall be deemed revoked without further action on the part of the city. The notice provisions of subsection (d)(7) shall not be applicable for revocation of the license for this reason. THE LICENSEE ALSO AGREES TO INDEMNIFY AND HOLD

HARMLESS THE CITY, ITS OFFICERS AND EMPLOYEES AGAINST ANY LOSS, LIABILITY OR DAMAGE, INCLUDING EXPENSES AND COSTS FOR BODILY INJURY AND FOR PROPERTY DAMAGE SUSTAINED BY ANY PERSON AS A RESULT OF THE LICENSEE'S OPERATION OF A SIDEWALK CAFÉ ON PUBLIC PROPERTY.

(5) A license issued by the traffic engineer shall be subject to the following conditions and may be suspended for failure to comply with them:

a. The sidewalk shall be kept free of standing water, maintained in good repair and kept free from material defects that may present a hazard to life or property.

b. No permanent improvement will be installed in or on the sidewalk. All chairs, tables and other appurtenances associated with the sidewalk café shall be removable at all times.

c. A sidewalk café license is issued in the licensee's name and can not be assigned, sold, or otherwise transferred.

d. A sidewalk café license is a license for a temporary and interruptible use of a sidewalk. It does not and shall not be construed to convey any legal or equitable interest whatsoever to any part of the sidewalk or public right-of-way.

e. A sidewalk café licensed hereunder shall be subject to an inspection by the traffic engineer or his representatives at any time such an inspection is requested. No notice from the traffic engineer prior to such an inspection shall be required.

f. The license is granted subject to the availability of utilities and compliance with all other applicable state and city rules and regulations specifically including all food or health-related ordinances of the city.

g. The sidewalk café may never be enclosed by a permanent wall or other temporary or permanent structure or improvement, except that the boundaries of a sidewalk café may be delineated through the use of a temporary barrier such as a balustrade, cordon, or railing. Any such temporary barrier must be easily removed and three feet or less in height above the sidewalk. Under no circumstances shall temporary barriers as authorized hereunder be allowed in the public clearance way as established by the traffic engineer. In addition, a temporary barrier shall not be affixed to the sidewalk or to any permanent structure, except that it may be attached by removable clips or devices approved in advance by the traffic engineer. With the approval of the traffic engineer, a licensee may drill holes in the sidewalk to secure those clips or devices to the sidewalk. Those clips or devices shall enable a temporary barrier to be easily attached, detached and removed without the temporary barrier, clips, or devices causing damage to the sidewalk.

h. A licensee may not obstruct ingress or egress to any other building or business. In addition, all facilities or improvements shall comply with clearances required from structures to utility lines as provided in a nationally recognized building code.

i. Under no circumstances, shall planters, trees, shrubs, tables, chairs or other such material or appurtenances be allowed in a public clearance way as established by the traffic engineer.

j. The licensee shall maintain adequate lighting in and around the public clearance way to ensure that all

obstructions may be easily seen. Such lighting shall be of such type and location and shall have such shading as will prevent the source of the light from being seen from any contiguous, adjacent residential property. It shall not cause illumination beyond the boundaries of the property on which it is located so as to be obtrusive to adjacent property owners and shall not cause illumination beyond the boundaries of the property in excess of five-tenths footcandle. The illumination of the street from the sidewalk shall be no brighter than the illumination provided by ornamental street lights nor shall it have an adverse impact on the flow of vehicular traffic. In addition, its design and color shall not be such that it could be mistaken for a traffic signal.

k. The licensee shall not obstruct access to hydrants, street lights, telephones, mailboxes, transit stops, or any other public service facility on the sidewalk or street. City facilities or improvements or public utility facilities and improvements within the public streets cannot and will not be relocated by the city or the licensee as the result of the sidewalk café operations.

l. The licensee shall install and maintain permanent markers in the sidewalk at grade showing the corners of the public clearance way as established by the traffic engineer.

m. The licensee shall not install, erect or maintain any signs not permitted by the *Sign Code*.

n. The licensee shall be responsible for supervising the conduct of its patrons and employees.

o. The licensee shall not serve food or beverages to a patron at a sidewalk café unless that patron is seated at a table.

p. The licensee shall ensure that the information provided as a part of his application remains true and correct at all times.

q. The licensee shall not allow the outdoor storage or preparation of food or drink and shall not erect or permit the erection of outdoor waiters' stations.

r. Under no circumstances shall the licensee place, erect, or construct any structure or sidewalk café appurtenance within two feet of the curbline.

s. The licensee shall obtain and maintain in force a certificate of occupancy for the sidewalk café and associated premises.

t. A sidewalk café licensed hereunder may be operated only on the abutting property.

(6) Failure to observe any of the above conditions shall result in up to a one-year suspension of a sidewalk café license. Prior to such suspension the traffic engineer shall give ten days' written notice to the licensee of his violation of or his failure to observe a general condition as set out above. If the licensee requests a hearing prior to the expiration of that ten-day notice period, the traffic engineer shall hold a hearing to determine if the license shall be suspended. The licensee may present evidence in his own behalf if he so desires. The traffic engineer's decision in regard to suspension shall be final. If the licensee fails to request such a hearing, the suspension shall become effective upon the expiration of the ten-day notice period. If operations under a license granted under this section are suspended, all tables, chairs and other appurtenances used as a part of the sidewalk café shall be immediately removed from the sidewalk.

(7) All notices required or permitted under this section shall be in writing and shall be deemed delivered three days after

deposit in a United States Postal Service post office or receptacle with proper postage affixed and addressed to the licensee at the street address provided by the licensee (the applicant's name and street address) in his application for a sidewalk café license.

(e) *Operations:*

(1) No licensee shall cause, permit or allow the following conditions to exist:

a. Preset tables.

b. Litter or trash on the sidewalk or street right-of-way.

c. Any temporary obstruction in the public clearance way (i.e., ice carts, waiters, chairs, etc.).

d. An inadequate number of outdoor trash containers.

(2) The traffic engineer is authorized to issue a written notice of violation of any of the conditions noted above. In the event that three such notices are issued for violations of the above provisions, within a one-year period, the traffic engineer shall, after notice to the licensee, hold a hearing to determine if the license shall be revoked. The licensee may submit evidence in his own behalf if he so desires. The traffic engineer's decision with regard to revocation shall be deemed final. If a license granted hereunder shall be revoked, all tables, chairs and other appurtenances used as a part of the sidewalk café shall be immediately removed from the sidewalk.

(3) In the event that the city health department issues a notice of violation of any of the ordinances of the city to a licensee in connection with the operation or any condition attributable to the licensee's sidewalk café, that department shall immediately notify the traffic engineer of the issuance of that notice. Conversely, if the traffic engineer is notified of or becomes aware of any condition or occurrence which may constitute a violation of any food or health-related ordinance, the traffic engineer shall immediately so notify the Houston Health Department.

(4) In addition to the provisions of subsection (e)(1) hereof, a license shall be revocable without liability therefor if the traffic engineer finds that a public necessity or emergency exists requiring an immediate revocation of the license and termination of operation of the sidewalk café or in the event of lawful need for the site or for access thereto by the city or any utility company, in which case the city may remove the facilities on the site or order the licensee to do so. The traffic engineer shall provide written notice to the licensee as promptly as possible. This notice shall state the reason or reasons removal is or was required. Public necessity for these purposes shall include changed circumstances causing increased pedestrian or vehicular traffic in the area. Notice under this clause shall constitute an exception to the notice provisions of subsection (d)(7).

(f) *Fees and bond:*

(1) The fee for a sidewalk café license or a renewal of a sidewalk café license is stated for this provision in the city fee schedule.

(2) The licensee shall also provide a cash bond or a bond with the licensee as principal and a corporate bonding company licensed to do business in the state as surety in an amount determined by the traffic engineer to be sufficient to cover the costs of removal of the licensee's facilities by the city or any public utility under any of the provisions of this section, conditioned that the licensee will timely remove its facilities upon request therefor and will reimburse the city or a public utility in the event that the city or a public utility removes the facilities pursuant to this section. Any licensee who received his sidewalk café license hereunder on or before the June 1, 1985, shall have 60 days to provide a bond as

required hereunder. If such a licensee fails to deliver such a bond to the traffic engineer, his sidewalk café license shall terminate upon the expiration of that 60-day period.

(Ord. No. 84-1671, § 2, 10-23-84; Ord. No. 84-1888, § 1, 12-5-84; Ord. No. 85-902, § 1, 6-18-85; Ord. No. 86-916, § 1, 6-17-86; Ord. No. 90-635, §§ 99, 100, 5-23-90; Ord. No. 93-514, § 68, 5-5-93; Ord, No, 03-942, §§ 1, 2, 10-15-03; Ord. No. 07-225, § 5, 2-14-07; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2015-820, § 34, 8-26-2015; Ord. No. 2018-11, § 50, 1-10-2018; Ord. No. 2021-1037, § 20(Exh. I.41, 42), 12-1-2021, eff. 4-1-2022)

Sec. 40-11. Interactive informational and wayfinding kiosks.

(a) *Definitions.* When used in this section the following terms shall apply:

Interactive wayfinding kiosk (commonly referred to as *'interactive kiosk'*) means an interactive informational wayfinding platform for use by pedestrians and erected by or on behalf of the city in a designated city right-of-way in the form of a kiosk capable of providing or generating electronically-displayed content including but not limited to: weather updates; multimodal mapping to event destinations with mobile integration; shopping, dining, and medical points of interest; job postings; real time transportation information; public opinion surveys; traffic and pedestrian counts; public safety and police emergency notifications; kiosk usage information; public service announcements, and advertisements.

Interactive kiosk service area means any portion of the city's right-of-way approved by the city engineer for placement of an interactive wayfinding kiosk.

(b) Notwithstanding any other city code or ordinance, an interactive kiosk may be erected in any interactive kiosk service area approved by the city engineer. The city engineer shall not approve an interactive kiosk service area that encroaches into the standard minimum sidewalk width required by this Code except upon coordination with the planning official and the MOD official, as defined in section 40-551 of this Code. When the city engineer reviews a proposed placement of an interactive kiosk that will be within the boundaries of a council district, management district or Tax Increment Reinvestment Zone (TIRZ), the city engineer shall notify the district council member, and the management district's or TIRZ's board of directors of the proposed location of the kiosk in writing.

(Ord. No. 2021-357, § 2, 5-5-2021)

Sec. 40-12. Sidewalk access doors.

(a) It shall be unlawful for any person to construct, maintain or operate, or cause or permit to be constructed, maintained or operated, any sidewalk access door without lifts or chutes, on a sidewalk or street or other public area of the city serving the basement of any building or structure adjacent thereto, without first obtaining from the Director of Houston Public Works a written permit to make such installation. Such permit shall only be issued on a written application in form approved by the city legal department, which shall provide for indemnity to the city for damage to persons or property by reason of such installation. Such application shall be duly acknowledged by the applicant and, where the applicant is not the owner of the abutting property, by the owner of such abutting property, and it shall contain a covenant running with the land, binding the fee owner of the land abutting the installation and on which the sidewalk and installation are constructed, and his heirs and assigns.

(b) Such permit shall require that such sidewalk door shall be opened only between the hours of 10:00 p.m. and 6:00 a.m., so as to impede pedestrian traffic as little as possible. The type of door and the exact location of the door shall be subject to the inspection and approval by the Director of Houston Public Works, and such permit shall be issued subject to all the pertinent requirements of this chapter.

(Code 1968, § 41-12; Ord. No. 90-635, § 101, 5-23-90; Ord. No. 93-514, § 69, 5-5-93; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-13. Group mailboxes or cluster box units.

For purposes of this section, a cluster box unit means a pedestal-mounted or wall-mounted

centralized mail receptacle containing multiple mailboxes. A group mailbox or cluster box unit may only be constructed in the public right-of-way if the group mailbox or cluster box unit does not obstruct:

(1) A sidewalk, street, or other paved improvement in the public right-of-way;

(2) Visibility at the intersection of a street with a private driveway or another street; and

(3) Access to utilities, fire hydrants, or other objects lawfully placed within the public right-of-way.

(Ord. No. 2015-639, § 4, 6-24-2015, eff. 7-24-2015)

Sec. 40-14. Clearance of tree limbs over sidewalks.

It shall be the duty of the owners and occupants of lots in the city in front of and adjacent to which shade trees are growing in the streets, to keep the same trimmed in such a manner that the limbs and branches of the same overhanging the sidewalks shall be at least eight feet above the ground.

(Code 1968, § 41-15)

Sec. 40-15. Banners and signs prohibited over or across streets.

It shall be unlawful for any person to erect, place, construct or maintain or to permit any premises owned or controlled by such person to be used for the purpose of supporting any banner or suspended sign over or across any portion of a public street in the city, except as provided in sections 40-30 and 40-31 of this Code.

(Code 1968, § 41-16; Ord. No. 85-2072, § 2, 11-27-85; Ord. No. 05-603, § 3, 5-11-05)

Sec. 40-16. Painting or posting house numbers on curbs.

(a) No person, except the abutting property owner, shall paint, print or post any house number upon any curb in any public street in the city unless such person has first obtained a permit from the Director of Houston Public Works and prior approval from the owner of the abutting property.

(b) To obtain a permit, the applicant must file an application therefor in writing, on a form provided by the city, setting forth his permanent address and the address at which he can be reached. Copies of leaflets or other materials intended to be used in the solicitation of approval of owners or otherwise promoting the painting, printing or posting of house numbers upon curbs shall be submitted for approval with the application.

(c) All leaflets or other materials soliciting approval of owners or otherwise promoting the painting, printing or posting of house numbers upon any curb in any public street shall conspicuously state that neither the city nor any department thereof is engaged in, promotes or is any way connected with such painting, printing or posting of such house numbers, and shall state the name and address of the person or company responsible for such painting, printing or posting. "Conspicuously" as used in this section, shall mean that the words are of such size, type or color that they will be noticed by an average person who reads such leaflet or materials.

(d) The Director of Houston Public Works shall issue a permit without charge to the applicant unless it is determined that the applicant has not set forth his permanent address and the address at which he can be reached, or the leaflets or other materials intended to be used in soliciting approval of owners or otherwise promoting the painting, printing or posting of house numbers upon curbs do not comply with the requirements set out in subsection (c).

(e) Said permit shall entitle the holder thereof to paint, print or post house numbers on curbs for a period of one year from the date of issuance of the permit when such painting, printing or posting of house numbers is done in compliance with all applicable laws and ordinances. Upon expiration of the permit, a renewal may be obtained by complying with all requirements for the issuance of an original permit.

(f) Any person, including the abutting property owner, who paints, prints or posts house numbers on any curb of a public street shall do so in compliance with the rules and regulations promulgated by the Director of the Houston Public Works with regard to size, color, location or other matters dealing with the painting, printing or posting; provided, however, any such rules promulgated by the said director shall be in writing and shall be available to the public during office hours in the office of said director.

(g) Neither the provisions of this section nor the granting of a permit in accordance herewith shall be construed to permit the distribution of any leaflets or other materials in violation of any ordinance.
(Code 1968, § 41-17; Ord. No. 76-860, § 1, 5-25-76; Ord. No. 90-635, § 102, 5-23-90; Ord. No. 93-514, § 70, 5-5-93; Ord. No. 2018-11, §§ 49, 50, 1-10-2018)

Cross reference—House numbering, § 10-211 et seq.

Sec. 40-17. Tearing up, injuring, defacing, etc.—Streets.

It shall be unlawful for any person to wilfully or maliciously tear up, injure, deface or destroy in any manner any paved street or any portion thereof.
(Code 1968, § 41-18)

Sec. 40-18. Same—Sidewalks.

It shall be unlawful for any person to wilfully or maliciously tear up, injure, deface or destroy any sidewalk, or any portion thereof.
(Code 1968, § 41-19)

Sec. 40-19. Removing or defacing street line marks or street name signs.

It shall be unlawful for any person to remove any post, stake or other mark indicating the lines of any street or alley, or pull down, remove or deface any board, sign or plate indicating the name of any street.
(Code 1968, § 41-20)

Sec. 40-20. Removal of street construction materials.

It shall be unlawful for any person to remove any street construction materials, articles or substances placed on or in any street of the city without first obtaining the written permission of the mayor.
(Code 1968, § 41-21)

Sec. 40-21. Mixing mortar or cement on streets.

It shall be unlawful for any person to mix any lime or other mortar or cement upon any of the streets of the city.
(Code 1968, § 41-22)

Sec. 40-22. Moving vehicles which drop or throw mud or clay on streets.

(a) It shall be unlawful for any person to move or allow the moving of, by his agent or employee, upon the streets within the city, any vehicle that drops or throws mud, clay or earth upon the surface of any such streets.

(b) Any person violating this section, upon conviction, shall be punished as provided by section 1-6 of this Code.
(Code 1968, § 41-23; Ord. No. 92-1449, § 55, 11-4-92)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Solid waste and litter control, Ch. 39; assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

Sec. 40-23. Use of unguarded welding apparatus near street or sidewalk.

It shall be unlawful for any person to operate or cause or permit to be operated any electrical welding apparatus or oxyacetylene welding apparatus, which emits a flare or arc within 20 feet of any public street or sidewalk of the city, unless such flare or arc emitted from such welding apparatus is shielded so as to be invisible from the public street and sidewalk.
(Code 1968, § 41-24)

Sec. 40-24. Allowing water to run into or upon streets or sidewalks.

It shall be unlawful for any person to permit the water from any hydrant, fountain or sink, situated upon any premises owned or controlled by such person, to run into or upon any sidewalk

or street of the city so as to cause such sidewalk or street to become wet and muddy, or so as to cause a public nuisance.
(Code 1968, § 41-26)

Sec. 40-25. Throwing articles on streets or sidewalks from roofs or upper stories.

It shall be unlawful for any person to throw any article from the roof or an upper story of a house upon any street or sidewalk.
(Code 1968, § 41-27)

Sec. 40-26. Dropping window cleaners' tools on sidewalk.

It shall be unlawful for any person engaged in the washing, cleaning or polishing of any windows upon the outside of any building on, over or abutting any sidewalk in the city to use, handle or have any tool or other equipment for use in such work unless the same is tied, chained or fastened in some suitable manner so that such tool or other equipment cannot fall or drop in, on or upon the sidewalk beneath or adjacent to which such workman is working.
(Code 1968, § 41-28)

Sec. 40-27. Impeding the use of a roadway.

(a) The following words, terms, and phrases when used in this section shall have the meanings ascribed to them in this subsection, unless the context of their usage clearly indicates another meaning:

Block means to render the entrance or exit to a building impassable, or to place, plant, leave, or erect any object or thing, upon a sidewalk that would in any manner prevent or restrict public use of or access to any part of the sidewalk, or that would render the use of the sidewalk unreasonably dangerous or difficult. *Block* shall not mean any activity authorized by this Code or by the city or any expressive activity.

Impede means to render the use of a roadway unreasonably difficult or dangerous.

Roadway means the portion of a street improved, designed, or ordinarily used for vehicular travel and includes medians or any raised paved surface within the roadway.

Sidewalk means that portion of the public street that is between the curblines, or the lateral lines of a roadway, and the adjacent property lines and is improved and designed for or is ordinarily used for pedestrian travel.

Street means the entire width between the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel.

(b) It shall be unlawful for an individual to impede the use of a roadway.

(c) It shall be unlawful for an individual to block a sidewalk.

(d) It shall be unlawful for an individual to block the entrance or exit to a building.

(e) No police officer shall issue a citation, make an arrest or otherwise enforce this section against any person unless the officer first requests or orders the person to refrain from the alleged prohibited conduct and the person fails to comply.

(f) It is a defense to prosecution under subsection (b) that the person impeding the roadway is authorized to do so under an authorization issued by the city as required by Texas Transportation Code Section 552.0071 (a).

(g) It is a defense to prosecution under subsection (d) that the person is blocking the entrance or exit to a building with the permission of the property owner.

(h) Any person who violates any provision of this section shall be guilty of a misdemeanor and, upon conviction, shall be punished as provided in section 1-6 of this Code.
(Ord. No. 2017-256, § 2, 4-12-2017; Ord. No. 2021-206, § 2, 3-24-2021)

Sec. 40-28. Reserved.

Editor's note—Ord. No. 04-498, § 7, adopted May 26, 2004, repealed § 40-28 in its entirety. Formerly said section pertained to street work and removal of manhole covers prohibited between certain hours and derived from Code 1968, § 41-30 and subsequent amendatory ordinances.

Sec. 40-29. Police and fire departments to be notified of street closing.

The Director of Houston Public Works shall give and direct notices of the closing of any streets within the city, at least 24 hours before the closing thereof, to the police department and the fire department.
(Code 1968, § 41-31; Ord. No. 90-635, § 106, 5-23-90; Ord. No. 93-514, § 74, 5-5-93; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-30. Banner districts; creation; decorative banners permitted.

(a) *Purpose.* Except as provided in section 40-31 of this Code, the purpose of this section is to allow an electric utility to use its street light standards for the installation of cloth banners to enhance and accentuate the aesthetic appeal of certain areas of the city.

(b) *Definitions.* As used in this section and in section 40-31 of this Code, the following terms and phrases shall have the meanings ascribed to them in this subsection:

Banner shall mean a decorative outdoor display that is placed, erected or fastened to a street light standard owned and maintained by an electric utility as permitted by this section. Banners shall be used for noncommercial or nonpolitical purposes only and shall use a word or words only as a part of an artistic composition.

Banner district means an area designated by the city council pursuant to this section within which the display of banners is permitted.

Electric utility shall mean a franchisee of the city actively conducting an electrical power and lighting business.

(c) *Designation procedure.* A banner district may be designated by the city council in accordance with the following procedure:

(1) Residents of the city may request that the city council designate any area or areas within the city as a banner district. Any such request must include the specific boundaries of the proposed district to be considered by the city council.

(2) Following the filing of any such request with the city secretary, the city council

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shall, within 45 days of the date of filing, conduct a public hearing to consider the merits of the request.

(3) Any interested person shall have the opportunity to participate in any hearing conducted under the provisions of this section and to present any relevant evidence and testimony.

(4) As a result of such hearing, city council shall determine whether or not the area meets the following criteria:

a. The area has paved public streets with rights-of-way not less than 60 feet wide;

b. The land use in the proposed district is primarily nonresidential; and

c. The designation of the proposed district would not endanger the health, safety, welfare and public convenience of the citizens of the city.

(5) Should a majority of the city council decide that the proposed area meets all the above criteria, the council shall designate the proposed area or a portion thereof as a banner district.

(6) Should a majority of the city council decide that the proposed area does not meet the above criteria, the proposed area shall not be designated as a banner district. No subsequent request seeking designation of any area or portion of an area that failed to meet the criteria of this section under a prior request shall be considered by city council until one year has elapsed from the date of the filing of the prior request.

(7) The action of the city council in approving or disapproving the designation of the banner district proposal may be taken by a motion duly adopted by the city council, and no resolution or ordinance shall be required.

(d) *Banners allowed.* An electric utility may place, install, erect or maintain, or cause or allow to be placed, installed, erected or maintained, a banner or banners on street light standards on public streets in a banner district. A banner shall not be allowed to be or become a distraction to drivers, or a traffic hazard, or to obstruct street light illumination to any substantial degree.

(e) *Removal of banners.* A banner shall be immediately removed by the owner of the light standard if the Director of Houston Public Works finds that a public necessity or emergency exists requiring the immediate removal of the banner. The director may issue a written or oral removal order directed and delivered to the owner. Subsequent to an oral removal order, the director shall issue a written notice to the owner within five days of such oral removal order. Written removal notices hereunder shall specify the reasons for the director's removal order and the duration of that order. The duration of the order shall be for only as long as is reasonably necessary under the circumstances. "Public necessity" for this purpose shall include but not be limited to, a threat to the public health, safety and welfare.

(Ord. No. 85-2072, § 3, 11-27-85; Ord. No. 90-635, § 107, 5-23-90; Ord. No. 91-160, § 1, 2-6-91; Ord. No. 93-514, § 75, 5-5-93; Ord. No. 95-1085, §§ 1—3, 10-11-95; Ord. No. 04-1006, § 2, 9-29-04; Ord. No. 05-603, § 4, 5-11-05; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-31. Special event banners.

(a) *Definitions.* As used in this section, the following terms and phrases shall have the meanings ascribed to them in this sub-section:

Convention means a convention, trade show, corporate meeting or other event scheduled to be conducted at the George R. Brown Convention Center that is anticipated to generate at least 2,000 peak room nights or in excess of 10,000 room nights in hotels located within the city over the course of the event, as determined by the director of the convention and entertainment facilities department.

Special event banner means a banner that, in connection with a convention, may contain a word or words limited to the following: (1) a welcome, (2) the name of the convention, (3)

the date of the convention, (4) the location of the convention, and (5) the symbol or logo of the organization whose name is part of the convention name.

(b) *Authorization of display.* Special event banners may be displayed only in connection with a convention, as defined in this section. It shall be unlawful to display any special event banner without written confirmation by the director of the convention and entertainment facilities department that a convention is scheduled to be conducted.

(c) *Time of display.* Special event banners may be displayed only during the time period that begins ten days before the opening date and ends not more than five days after the closing date of the same convention, provided that in the event of a conflict between two or more conventions that each desire to display special event banners or in the case of a conflict with a display of banners on streets where special event banners are requested, the director of the convention and entertainment facilities shall be authorized to coordinate or alter but not extend the display periods.

(d) *Location of display.* Special event banners may be displayed only on the following specific street segments: Avenida de las Americas from Polk Avenue to Texas Avenue; LaBranch Street from Rusk Avenue to Dallas Avenue; Lamar Avenue from Crawford Street to Avenida de las Americas; Dallas Avenue from Bagby Street to Crawford; McKinney Avenue from Crawford Street to Avenida de las Americas; and Walker Avenue from Avenida de las Americas to Main Street.

(e) *Removal of special event banners.* A special event banner shall be removed immediately by the owner of the light standard pursuant to section 40-30(e) of this Code if the Director of Houston Public Works finds that a public necessity or emergency exists requiring the immediate removal of the special event banner.

(f) *Biennial review.* On July 1 in each odd year beginning in 2007, the convention and entertainment facilities department will provide the mayor's office with a report reflecting the events for which special event banners have been used during the preceding two year period and, to the extent available, events for which such banners are planned for succeeding years. The reports will include an evaluation of the impact of such banners on attracting and booking conventions together with a discussion of any other benefits or problems associated with use of the special event banners, such as effects on aesthetics surrounding the George R. Brown Convention Center, attendance at conventions, or assistance to attendees in locating events. The mayor's office will forward the reports to the chair of the appropriate city council committee or committees for review and recommendations for any changes to this section 40-31 of this Code.
(Ord. No. 05-603, § 5, 5-11-05; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-32. Pedestrian safety and visibility buffer.

(a) It shall be unlawful for any person without an approved application to build, construct, plant, place, or otherwise cause a visual obstruction within the pedestrian safety and visibility buffer adjacent to a driveway where vehicular traffic exits onto a public street and crosses a sidewalk required by article XXII of this chapter. Objects or improvements below 24 inches or above eight feet as measured from the sidewalk surface shall not be considered a visual obstruction.

(b) The pedestrian safety and visibility buffer shall encompass a rectangular area extending from edges of the exit driveway in both directions along the sidewalk. The two primary dimensions of this triangular area, as measured from intersection of the exit driveway edge and the point of the required sidewalk farthest from public street, shall be:

(1) 14 feet along the length of the sidewalk, and

(2) 6 feet along the edge of the exit driveway perpendicular to the sidewalk.

Exhibits 40-32-1 and 40-32-2 depict the pedestrian safety and visibility buffer on streets with two-way and one-way traffic, respectively.

Exhibit 40-32-1—Two-way Driveway

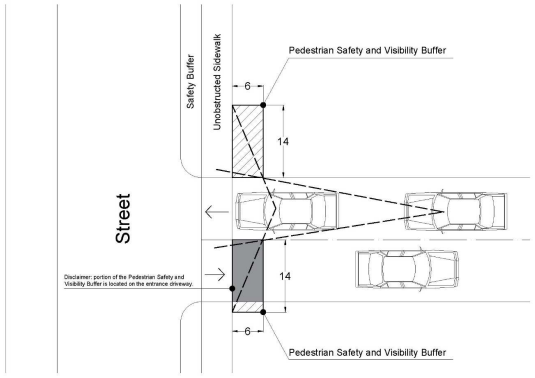
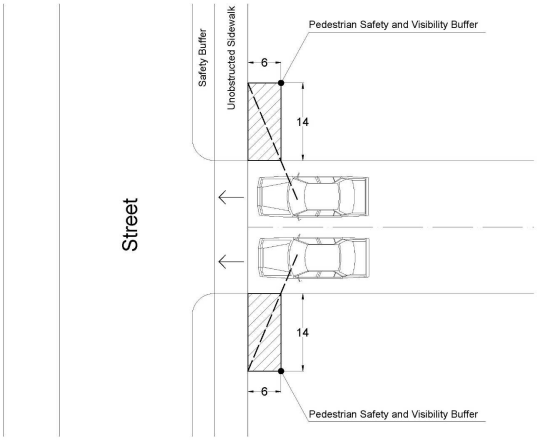


Exhibit 40-32-2—One-way Driveway



(c) The city engineer is authorized to modify the pedestrian safety and visibility buffer area required by this section when, upon review of written documentation provided by the individual or entity requesting the modification, the city engineer concludes that the standards of this section are technically or otherwise infeasible due to the presence of existing permitted physical conditions.

(d) A permitted object or improvement that would otherwise be considered a visual obstruction under subsection (a) of this section that existed prior to October 1, 2020 shall not be considered a violation of this section.
(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Secs. 40-33—40-40. Reserved.

ARTICLE II. PRIVATE STREET WORK IN GENERAL*

DIVISION 1. GENERALLY

Sec. 40-41. Scope of article; definitions.

This article shall control and govern the doing within any street or alley in the city of any of the following work or construction: Any paving, or the construction of any curb or gutter (including driveway construction incident to curb or gutter construction). The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Director* shall mean the Director of Houston Public Works of the city or his duly designated employees.

(2) *Paving* shall include not only the construction of a concrete roadway or an asphalt or asphaltic surfaced roadway, but also a shell or gravel roadway or a roadway constructed of any other type whatsoever of road building material.

*__Cross references—__Erection of detour or barricade signs, 45-18; driving on fresh pavement, § 45-42.

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(3) *Private street work*. Any and all of the work or construction described in this section (except that which is described in section 40-42) will be meant when the term "private street work" is used in this article or in any application, permit or bond made, issued or given pursuant to the requirements hereof.

(4) *Street* shall include any public street in the city, including areas shown as such on any subdivision map which has been approved by the planning commission whether or not such map has yet been filed for record with the county clerk of the county in which the subdivision is located; and shall include also any areas shown as such on any map which has been filed with and which is on file with the planning commission for its approval thereof.

(Code 1968, § 41-42; Ord. No. 90-635, § 108, 5-23-90; Ord. No. 93-514, § 76, 5-5-93; Ord. No. 95-104, § 1, 1-25-95; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-42. Exemptions.

(a) Notwithstanding the provisions of section 40-41 of this Code, there shall be excluded from the operation of this article any of the following work, and none of the following work shall require any of the permits, applications or bonds required by this article:

(1) Work done by city forces (that is, by employees of the city in the course of their employment) or by contractors employed therefor by the city.

(2) Sidewalks.

(3) Repair by gas, light or telephone companies of cuts made by them in streets incident to installation or repair of their lines, or ordinary repair made by railway companies within the area between the rails of their tracks or within two feet of the outside of such rails.

(4) Work which the director or any other officer of the city may, within his authority, duties or powers, direct or order any person to perform.

(b) The foregoing work which is excluded from the application of this article shall remain subject to any and all of the city's present or future ordinances related to any of such work. (Code 1968, § 41-43)

Sec. 40-43. Minimum standards, drawings and specifications.

(a) There are hereby approved and adopted certain specifications, including certain drawings which have been prepared by the director covering private street work and setting forth in detail the types, sorts, grades and standards of the various materials to be used on the several types and sorts of such work referred to in section 40-41 of this Code, together with the manner, means and methods of the doing of such work. No private street work shall be done in the city except in accordance with such drawings and specifications, or in accordance with drawings, plans and specifications approved by the director which provide for a higher standard of material or work.

(b) Such specifications hereby approved, securely bound together, in two identical duplicate counterparts, bear upon their faces the endorsement of the director identifying them as the specifications which have been prepared by him and submitted to the city council for approval in connection with this article. The city secretary is hereby ordered to likewise identify them under his signature and seal and to file one copy thereof as a permanent record and document in his office and to deliver the other thereof to the director to become a permanent record in his office.

(c) Such minimum standards may hereafter from time to time be amended without other formality than the passage of an appropriate ordinance to such effect, appropriately identifying the new or substituted drawings or specifications, and requiring that the same (appropriately identified as above provided by the signature of the director and of the city secretary) be appended to and made a part of the specifications and drawings hereinabove approved as minimum standards.

(d) The city council hereby approves an amendment to the drawing referred to above (to bear, however, the same drawing number it has in the past), by which there will be eliminated from such drawing the entire reference therein to "concrete post street name markers" and there will instead be placed upon such drawing an appropriate endorsement to the effect that a street name sign conforming with the requirements of Council Motion No. 5965, 1956, shall be erected at each street intersection and that specifications for the sign and erection method will be available in the office of the director.

Upon a print of such revised drawing, appropriately identified as such, being delivered to him by the director, the city secretary will insert such revised drawing in such specifications as and to become a part thereof, leaving therein, however, the sheet of such drawing as originally contained therein, writing upon such original sheet an appropriate endorsement over his signature to the effect that it has been superseded by the revised drawing.
(Code 1968, § 41-44; Ord. No. 90-635, § 109, 5-23-90)

Sec. 40-44. Stop work orders.

(a) If the director is of the opinion that any work which is being done pursuant to or under color of any permit issued as provided for in this article is not in accordance with the terms of the permit or the plans or specifications therefor, he may direct the person to whom the permit was issued to cease all work on the project until the defaults, errors or omissions specified by him have been remedied. Any person to whom a permit has been issued for the doing of any private street work who, after the director shall have ordered the cessation of work thereupon, shall do any such work or cause or permit any such work to be done (except the remedying of the defects, defaults, or omissions complained of by the director) shall be guilty of an offense. Each day on which any such unauthorized work is performed in violation of an order to cease the work shall constitute a separate offense.

(b) When satisfied that the defaults, errors or omissions specified by him have been remedied, the director shall in writing authorize the resumption of the work. It shall not, in any prosecution for a violation of this section, be necessary that the complaint negative the issuance of such a resumption order, but the same shall be matter to be shown in defense in any such prosecution.
(Code 1968, § 41-45)

Sec. 40-45. Work beyond scope of permit prohibited.

Any person to whom a permit shall have been issued for the doing of any private street work, as provided for in this article, who shall do or cause to be done any private street work beyond the scope of or not within the permission given by such permit shall be guilty of an offense. Each day on which any such unauthorized work is performed shall constitute a separate offense.
(Code 1968, § 41-46)

Sec. 40-46. Removal of work done without permit.

(a) If any such work is done in any street or alley in the city of any of the sorts described in section 40-41 of this Code, without a permit therefor having been issued as required by this article, the director shall, upon the same being brought to his notice, direct the person who did the work or caused it to be done to forthwith remove all of such work and restore the street or alley in question to the state and condition in which it was before such unauthorized work was done. Such order may include a specific direction as to the things to be done to accomplish compliance with it, including the removal of any earth or any other material which, without authority therefor, may have been placed in any street or alley or any part thereof and the replacement of any earth or any other material which may have been removed therefrom or from any part thereof, and it may state the time within which the things therein ordered shall be done. Such order and direction may be in writing or verbal and may be delivered or given either by the director or by any person thereto instructed by him.

(b) If any person to whom an order has been given under this section shall fail, within the time therein stated, to do or cause to be done all of the things therein commanded and ordered,

he shall be guilty of an offense. Each calendar day after the expiration of the time provided in such order

within which any of the work therein commanded to be done remains undone shall constitute a separate offense.

(c) The offense defined in this section shall be a separate and distinct offense from the offense defined in section 40-55 of this Code of having done the work in the first instance without a permit therefor, and a conviction or an acquittal of a charge of the violation of either of such two offenses shall not constitute a bar to a prosecution for a violation of the other of them.
(Code 1968, § 41-47)

Sec. 40-47. Appeal from orders or decisions of director.

In every case in which any person is aggrieved and dissatisfied at any order, decision or direction made or given by the director under any of the provisions of this article, he shall have the same right of appeal therefrom, and to the same effect and result, as is provided in section 40-65 of this Code for appeals from the refusal of the director to issue a permit as under this article.
(Code 1968, § 41-48)

Sec. 40-48. Responsibility for violations.

(a) If any private street work is done without a permit therefor or is otherwise done in violation of this article by a partnership or any other unincorporated association, every member of the partnership or of the association shall be guilty of the violation. If any such work is so done by a corporation, the president of such corporation, the general manager or the person in active charge of its operations or business, and every director of such corporation shall be guilty of the violation.

(b) If any private street work is done in violation of this article by a contractor for another person, the contractor and the person for which the work is being done shall each be guilty of the offense.

(c) Laborers, mechanics, and other craftsmen having no other connection with the doing of the work regulated by this article than to be employed thereupon at a wage or salary shall not be guilty of offenses for work done in violation of this article. It shall not be necessary, however, for a complaint for a violation of this article to negative the fact that the person complained of is such laborer, mechanic or craftsman, but the same shall be matter to be shown in defense in any prosecution thereunder.
(Code 1968, § 41-49)

Secs. 40-49—40-54. Reserved.

DIVISION 2. PERMIT

Sec. 40-55. Required.

It shall be unlawful for any person to do or cause to be done any private street work for which a permit has not been issued by the director. Each day on which any such work is done without a permit therefor having been so issued shall constitute a separate offense.
(Code 1968, § 41-55)

Sec. 40-56. Application and accompanying documents generally.

(a) Any person desiring to do or to have done any private street work (except construction of curb and gutter only, with incidental driveway construction, as referred to in section 40-57) shall file with the director an application for a permit therefor, which application shall contain the following information and be accompanied by the following documents:

(1) The name, mailing address, and telephone number of the applicant, together with a statement as to whether the applicant is an individual, a partnership or a corporation, and if a partnership the names of all of the partners.

(2) A general statement of the location of the proposed work and a general statement of the nature and scope of the work proposed to be done.

(3) A statement of whether the work has or has not yet been contracted for, and if a contract has been made the name and address of the contractor and the amount of the contract price; but if the work has not yet been

contracted for, then a statement of the applicant's estimate of the probable cost of the proposed work.

(4) A list sufficient to identify the several sheets of the plans and drawings accompanying the application and the several parts or documents constituting the written specifications under which the work is proposed to be done.

(5) Complete specifications under which the work is proposed to be done, together with plans and drawings therefor, which shall be in sufficient detail to enable an engineer to determine definitely what is supposed to be done, where it is to be done, and how it is to be done. Such drawings must in any event include a complete profile and a plan on which there is shown the width and other dimensions of any paving, curb or gutter proposed to be built and the location thereof with reference to the center line of any street or streets within which the same are to be placed. Such plan must be "tied" to an established city reference monument, or if there is no city reference monument within a reasonable or practicable distance from the proposed work, then the plan must be tied to some other permanent recognized monument on the ground. If the proposed work is in, or is in connection with, a subdivision which is in the process of development and/or approval by the planning commission, the plan must be appropriately tied to the subdivision map. Such plan or other drawings accompanying the application must show the location of all existing or proposed utility lines, sewer lines, or storm sewers. Every sheet of the drawings and each part or document which is a part of any of the written specifications shall be signed under his seal by a professional engineer duly licensed under the professional engineers licensing law of the state. All of the drawings and written specifications accompanying the application shall be deemed to be a part thereof. Where appropriate and desired, any of the drawings or written specifications herein approved as the city's minimum standards under section 40-43 of this Code may, by appropriate reference thereto, be included in and made a part of the application without the necessity of attaching the same thereto.

(6) The name and address of the professional engineer by whom the drawings and specifications accompanying the application have been prepared, together with a statement as to whether or not the actual performance of the work will be under his supervision.

(7) A statement that if the permit is issued on the application, the proposed work will be done in strict accordance with the plans, drawings and specifications therefor, including amendments and supplements thereto which may be required by the director and agreed to by the applicant before the permit is issued (except for such changes therein as within the general scope, purpose and intent of this article may thereafter be approved in writing by the director).

(8) The date on which it is desired or intended to commence the work and, if any of the work is to be within an existing traveled thoroughfare, the length of time which the applicant proposes to consume in the doing thereof.

(b) Such application, as well as the drawings and specifications accompanying the same, shall be filed in duplicate and both the original and duplicate original of the application itself shall be signed by or on behalf of the applicant and, unless the engineer responsible for the drawings and specifications is himself the applicant, the application shall include a statement signed by him to the effect that the statements therein made as to his connection and intended future connection with the project are true. If the application shows that the actual performance of the work is to be under such engineer's supervision, and if he shall thereafter cease to be so connected with the project, he shall, within 48 hours after the termination of his connection with it, certify the fact of such termination to the director.

(c) The applicant may either be the person at whose instance or for whose purpose the work is proposed to be done, or a contractor employed or

intending to be employed to do the actual work, or a licensed professional engineer employed to supervise the work. If such licensed professional engineer is himself the applicant, the application shall contain a statement by him that he has been so employed and a statement of the name and address of the person at whose instance or for whose purposes the work is to be done, and he shall sign the application under his official seal.
(Code 1968, § 41-56; Ord. No. 95-104, § 1, 1-25-95)

Sec. 40-57. Application when work limited to construction of curbs and gutters.

Any person desiring to do or to have done in the city any private street work consisting of nothing other than the construction of curbs and gutters (including driveway construction incidental thereto), instead of filing the detailed application with accompanying drawings, which is required under section 40-56 of this Code, may simply file with the director an application for a permit for such work, which application shall be sufficient if it shows who desires to do the work, by whom it is intended to be done, and is sufficient to indicate the scope and extent of the work intended to be done. Such application need not include any plans, drawings or specifications, unless a plan or drawing is necessary to the description of the work proposed to be done, and if the work is to be done by a duly licensed and bonded sidewalk and curb and gutter contractor, it need not indicate that any licensed professional engineer has any connection with the project. It shall, however, contain an unconditional undertaking that the applicant will observe and comply with any directions or instructions given him by the director incident to the work or the sufficiency of the completion thereof to the end that, if a permit is issued therefor, the director shall have absolute power to require the applicant to do all of those things and none other than those things which the director considers necessary, incident to the work proposed.
(Code 1968, § 41-57)

Sec. 40-58. Style and numbering of application.

Every application for a permit under this division shall be styled "Application for Permit for Private Street Work" and, upon filing, shall be appropriately numbered by the director in such manner that future reference thereto by number and style shall be sufficient to identify it.
(Code 1968, § 41-58)

Sec. 40-59. Applicant's bond—Generally.

(a) If the permit application under this division is for the doing of work within the portion of an existing street which is actually being used by the public, no permit shall be issued thereupon until there has been filed with the director a bond to secure the city that the proposed work will be done in accordance with the permit, application and plans and specifications, and securing the city against loss, damage, claim, or liability in connection therewith, which bond shall comply with the following requirements of this section as to the terms, conditions and execution thereof.

(b) The bond required by this section shall be in a penal sum equal to the total estimated cost of the improvements to be constructed (including design and engineering costs) plus an additional ten percent of such amount. No such bond shall be required for work to improve an alley for private access pursuant to section 40-346.

(c) The bond required by this section shall be in favor of and solely and exclusively for the use and benefit of the city.

(d) The bond required by this section shall describe by reference to the number of the application, together with such other brief descriptive matter as is necessary, the work proposed to be done or to be covered by the permit in connection with which the bond is given.

(e) The bond required by this section shall be conditioned that the work therein referred to will be done and performed in strict and full accordance with the terms and provisions of the application and the permit and in strict accordance with the plans and specifications therefor; and that if any of such work is not done in accordance therewith, or if any materials not in accordance therewith are used in the process of such work, such failure and default will be promptly remedied, and any defective material or work torn out and removed or replaced with material and by

workmanship in accordance with the terms of the application, permit and plans and specifications without cost or expense to the city; and that if such is not done within a reasonable time after demand therefor upon the principal by the city, the principal and surety on such bond will (within the penal sum of the bond) be held and firmly bound to the payment to the city of the reasonable cost and expense incurred by the city either in tearing out and removing the defective work entirely and restoring the street to its original state, or in replacing the same with work in accordance with the permit, or in completing and perfecting any work imperfectly or incompletely done; and shall provide that the certificate of the director to the reasonable necessity for and the cost of any work so done by the city shall be conclusive and binding upon the principal and surety in the absence of clear, convincing and unmistakable proof that his action in so certifying is fraudulent, arbitrary or capricious.

It shall further be conditioned that the principal and surety indemnify and agree to fully indemnify and save harmless the city and its officers from any and all demand, liability or claim, no matter by whom asserted, arising from or in any manner incident to the doing of any work pursuant to or under color of such permit or the construction of any of the paving or other street work authorized thereby. It shall, however, provide that the liability of the principal and surety shall not include liability to indemnity against causes of action asserted by persons arising from the grade or location of the pavement or other structure built in the street, or from defects or alleged defects therein occurring or existing after the date of the certificate of acceptance of the work hereinafter provided for.

The principal shall further covenant that if the work is not completed within the required number of days after the commencement thereof, the principal, but not the surety, will be liable to the city on account of and for such delay at the rate of $150.00 per day for each day that the completion of the work be delayed beyond the time allowed therefor in the permit.

Such bond shall provide that within the general scope and spirit of the work covered by the permit, the director may without notice to or consent of the surety permit changes in the actual plans and specifications therefor, without in any wise affecting the liability either of the principal or surety.

(f) Such bond shall be upon a form to be prepared and approved by the city legal department and may be executed by the applicant or by the contractor proposing and intending to do the actual work, or if the application is not made by the person at whose instance or for whose purpose the work is proposed to be done, such person may nevertheless execute such bond as principal. It shall be executed also by one corporate surety, which surety shall be a corporation qualified and licensed by the insurance licensing authority of the state under and pursuant to the provisions of articles 4969 to 4972, inclusive, of the Texas Revised Civil Statutes.

(g) If the surety on such bond is a company appearing on the then current list of approved sureties of the United States Treasury Department, the bond need not be accompanied by any proof of the qualification and license as aforesaid of such company, but if such bonding company's name does not appear upon such treasury department's current list there shall be submitted, along with the bond, a certificate from the board of insurance commissioners of the state, bearing date no more than ten days prior to the date of the bond, evidencing the fact that such surety is so qualified and licensed by the state. Such bond shall in any event be accompanied by an appropriate power of attorney evidencing the authority of the issuing agent or attorney to execute the bond for the company.

(h) A bond upon such form so executed shall be accepted on behalf of the city by the director, and his acceptance noted thereupon. If he is in doubt as to the manner or form of the execution thereof, he may submit the same to the city legal department for its approval as to form and execution before he accepts it. Such bond, together with the proof of the authority of the agent to execute the same, and the proof of the surety's qualifications and license if the surety is not on the treasury department's current list, shall be attached to the

city's duplicate original of the permit and become a part of the permanent record in connection therewith.

(i) When the work covered by the permit has, in the opinion of the director, been completed in substantial accordance with the plans and specifications therefor, the director shall, at the request either of the principal or of the surety on such bond, deliver to either or both of them a certificate to such effect. Such certificate shall, in favor of the surety upon such bond, be conclusive proof of the contents thereof, but shall not relieve the principal upon the bond from liability for failure of or defect in the work arising from failure to have fairly and substantially complied in any material respect with the specifications.
(Code 1968, § 41-59; Ord. No. 99-379, §§ 4, 5, 4-21-99)

Sec. 40-60. Same—Cash deposit in lieu of bond.

In any instance in which, by the provisions of section 40-59 of this Code, a bond is required to be given, there may instead be deposited with the director in cash an amount equal to the required penal sum of the bond, which deposit shall secure the city to the same purpose, intent and effect as the bond prescribed by section 40-59 of this Code. When the director is of the opinion that the work has been completed in accordance with the plans and specifications, he shall so certify as provided in section 40-59 of this Code and the deposit referred to shall be returned to the applicant or upon the applicant's order.
(Code 1968, § 41-60)

Sec. 40-61. Same—Bond or cash deposit for curb and gutter work only.

The bond required in connection with any permit for curb and gutter work only, issued as provided in section 40-64 of this Code, shall be conditioned and executed in accordance with the requirements of section 40-59 of this Code, and shall be in such amount as the director considers necessary to protect the city against having to go in and finish up or undo work begun or done under the permit. Any person to whom such a permit is to be issued may, instead of furnishing such bond, deposit with the director in cash the amount so deemed necessary by the director, to be returned to the applicant after the work has been completed to the satisfaction of the director, or upon surrender of the permit before commencing any work thereunder. If the work is to be done by a duly licensed and bonded sidewalk and curb and gutter contractor, no separate bond shall be required under this division or any cash deposit in lieu thereof.
(Code 1968, § 41-61)

Sec. 40-62. Fees.

(a) No fee shall be charged upon any permit or application for the construction of any pavement (including curb and gutter construction incident thereto) which includes a reinforced concrete base, the city council here declaring that the advantage and benefit to the city from the construction of that type of pavement is such as to fully warrant the handling by the city, without cost to the person having such work done, the necessary application, investigation, inspection, etc. Upon permits for other paving work or for curb or gutter construction as governed by this article, fees are hereby fixed and established as follows, to be collected by the director before the permit is issued:

(1) For curb and gutter (or either), the permit fee stated for this provision in the city fee schedule per lineal foot of the curb and gutter (or either) to be constructed, but excluding from the computation so much thereof as is within the intersection of any two streets.

(2) For any pavement (except pavement involving a reinforced concrete base) the fee stated for this provision in the city fee schedule per running or lineal foot of street to be paved, but excluding from the computation such work as is to be done within the intersection of any two streets.

(3) When the pavement is to be constructed without curb or gutter, the fee charged shall be only the fee stated for this provision in the city fee schedule per running foot for the pavement as provided above, but where pavement is with curb and

gutter, the fee shall be stated for this provision in the city fee schedule per running foot of pavement plus the fee stated for this provision in the city fee schedule per lineal foot of curb and gutter.

(b) The minimum fee, where any fee at all is required by the terms of this section, is stated for this provision in the city fee schedule upon any one permit.

(c) The fees prescribed by this section are established to cover the expense or a part of the expense to the city incident to the examining of the application, investigation in connection therewith, the inspection of the work as the work progresses.

(Code 1968, § 41-62; Ord. No. 2011-1168, § 13, 12-14-2011)

Cross reference—Refund of permit fees paid to department of public works and engineering, § 2-285.

Sec. 40-63. Issuance or refusal generally.

(a) If the director finds that the plans and specifications for the proposed work for which a permit is sought under this division are sufficient and are in accordance with the purpose, intent and provisions of this article, he shall notify the applicant, and subject to the provisions of this division he shall issue and deliver to the applicant a permit for the work desired to be done in accordance with the provisions of this article.

(b) If the plans or specifications for work for which a permit is sought under this division are not sufficient or do not contemplate or describe work in accordance with the city's minimum standards or are not adequate to the place and purpose in question, the director shall communicate to the applicant or to the applicant's engineer his objections thereto, permitting and agreeing to such changes in the original drawings and specifications as may be sufficient to meet his objections and after such changes have been agreed to by the applicant and by the applicant's engineer, the director shall, subject to this division, issue the permit.

(c) The director shall not, in any event, issue a permit for the construction of a pavement which includes curb and gutter or curb, unless suitable and sufficient drainage and drainage facilities are already in existence, or the construction thereof is provided for in the plans and specifications for the work covered by the application. Similarly, he shall not issue a permit upon any application which contemplates pavement of a general sort or type (including width thereof, thickness and reinforcing thereof) which, in his opinion, is inadequate or unsuitable to the area or place where it is proposed to be placed, notwithstanding that the same, as applied for, is in accordance with the minimum standards approved by this article.

(d) If the plans and specifications (with such changes therein as have been required by the director and approved by the applicant and the applicant's engineer) do not meet the standards and requirements set up by this article, the director shall refuse to issue the permit applied for and shall, upon the duplicate original of the application or a paper attached thereto and suitably identifying the application, certify the fact of his refusal, together with such statement as he sees fit to make of the reasons therefor, notifying the applicant or the applicant's engineer to such effect and delivering such duplicate of the application with his certificate of rejection to either of them who may request it. At the same time, he shall similarly certify the fact of his refusal upon the other original of the application, which shall remain as a permanent file and record in his office.

(Code 1968, § 41-63)

Sec. 40-64. Issuance for curb and gutter work.

Upon an application under section 40-57 of this Code for curb and gutter work, the director shall make such investigation and inquiry as he deems necessary, and if it appears to him that the work referred to may be done without damage or injury to the street or to the rights of any other abutting property owners or of any other person who may have any interest or right related thereto, he shall grant a permit therefor. The procedure in the matter of actual issuance of such permit, retention of the identical duplicate thereof and numbering and identification thereof shall be the same (except as herein expressly provided otherwise) as that provided in this division for other permits.

(Code 1968, § 41-64)

Sec. 40-65. Appeal from refusal.

(a) If the director refuses to issue a permit applied for under any provision of this division, the applicant may, within 30 days after such refusal is communicated to him, appeal therefrom to the city council without other formality than filing with the city secretary a letter in duplicate signed by the applicant sufficient to show the fact of the refusal of his application, the reason (if any) stated therefor by the director, and the applicant's desire to appeal from such refusal to the city council. The city council shall thereafter, upon such investigation and the hearing and considering of such evidence as it deems proper, either sustain or overrule the director's action, by motion, resolution or ordinance. If the council overrules the director, he shall thereupon issue the permit, noting thereon and on the city's duplicate original thereof, the fact that it is issued pursuant to council's action in overruling his refusal to grant it in the first instance.

(b) The action and decision of council shall be final; provided, the city council shall not order the issuance of a permit for any street work providing for the doing of work of a sort which is not adequate and suitable for the place to which and the purpose for which it is proposed to be done, taking into consideration the public welfare and safety, and the nature and density of traffic which may be expected to use the street in question.
(Code 1968, § 41-65)

Sec. 40-66. Contents.

A permit issued under this division shall state that the applicant (or the applicant's engineer) must notify the director when the work is commenced. If the application includes any work to be done within an existing traveled thoroughfare and is of a sort which, in the director's opinion, will interfere with or inconvenience the public while the work is in progress, then the permit shall state that the work must be completed within the length of time, after the commencement thereof, stated by the applicant as required by paragraph (8), subsection (a), of section 40-56 of this Code.
(Code 1968, § 41-66)

Sec. 40-67. Permit for work in subdivision in advance of plat approval.

Any person intending to subdivide or develop as a subdivision any unplatted area within the city, in advance of submitting his proposed plat to the planning commission may, if he desires to do any of his street development work, make an application to the director containing those essentials which are stated in section 40-56 of this Code, and the director may, upon his approval of the proposed work and the payment of the fees required by this division, issue a permit therefor in all respects the same as if the work were to be done on a street as defined in section 40-41 of this Code, but the issuance of such permit shall not constitute an approval of any proposed plan or plat of the addition, and shall in no manner interfere with the right of the planning commission to withhold its approval thereof or to require changes therein before the same is approved.

If any person shall do any such work in any such area without first having obtained the permit herein provided for, the planning commission shall not thereafter approve the plan of such subdivision until there is furnished to it a certificate by the director that all of the street work in such subdivision is in accordance with standards which are at least equal to the minimum standards provided in this article and are of a sort which the director would have issued a permit if one had been applied for.
(Code 1968, § 41-67; Ord. No. 95-104, § 1, 1-25-95)

Sec. 40-68. Effect of acceptance.

(a) Any person to whom a permit is issued pursuant to any of the provisions of this division will, by his acceptance of such permit (which acceptance shall be conclusively presumed if, after the permit is issued, he does any of the work contemplated or provided for in the application), undertake or promise that the work covered by the permit and application will be done in full and exact accordance with the provisions of the application and of the plans and specifications, if any, therefor, and that no other work than that covered by the permit will be undertaken pursuant thereto. He will further thereby agree that, during the course of the work, every instruction and

order of the director, or of any inspector or other city employee delegated thereto by the director, for stopping any work which is being done in a manner contrary to the plans and specifications or the application, correcting and replacing any work not in compliance therewith or completing any work necessary to accomplish compliance therewith, will be promptly and immediately observed.

(b) Without limiting the obligation of the applicant to faithfully adhere to the plans, drawings and all of the specifications, he will, by the acceptance of a permit, particularly undertake that no materials will be used in the work except those which, under the appropriate provisions of the city's minimum standard of specifications, have been tested and approved by an approved testing laboratory as therein provided; and that if any materials not so tested and approved are used, he will, upon such violation being discovered by him or brought to his notice, promptly remove and tear out the work in which such untested or unapproved materials were used and replace the same by work of proper, tested and approved materials.
(Code 1968, § 41-68)

Cross reference—Subdivisions, Ch. 42.

Sec. 40-69. Issuance does not impose liability on director or city.

By virtue of the issuance of any permit required by this division neither the director nor the city shall be or become liable or responsible in any way either to the applicant, the contractor, if any, for the work, or to any other person for the sufficiency, correctness or suitability of the plans or specifications or the project itself, and the work done pursuant to such permit shall be the private venture, work and responsibility of those interested in it, and the city shall not be liable directly or indirectly to any laborer or workman employed thereupon or to the furnisher of any materials for use therein, or to any person having a cause of action arising directly or indirectly from the doing or prosecution of the work or the construction of the pavement or other facilities accomplished thereby.
(Code 1968, § 41-69)

Sec. 40-70. Issuance does not constitute approval of subdivision or acceptance of streets and alleys therein.

If a permit issued under this division is for work in a subdivision not yet approved by the planning commission, the issuance of the permit shall not constitute an approval of the subdivision or an acceptance of streets or alleys shown on the subdivision map, and neither the city nor the planning commission shall be in any way estopped by virtue of the issuance of such permit.
(Code 1968, § 41-70)

Sec. 40-71. Records to be kept.

If the director issues a permit under this division, including the issuance of a permit pursuant to council action as provided in section 40-65 of this Code, he shall attach to the city's original of the application the bond, if required under this division, filed with and approved by him, together with an exact copy of the permit, signed by him, and such duplicate of the permit, such bond and the entire application therefor shall be and continue a permanent file and record in his office.
(Code 1968, § 41-71)

Secs. 40-72—40-81. Reserved.

ARTICLE III. CONSTRUCTION OR REPAIR OF SIDEWALKS, DRIVEWAYS, CURBS AND GUTTERS*

Sec. 40-82. Order of council generally.

Whenever it shall be found necessary by the city council that sidewalks, driveways, curbs and gutters, or any of them, be constructed, reconstructed, repaired or brought to grade along or in front of any real estate abutting upon any public street in the city, the city council shall designate the lot, block, street or community in which work is deemed necessary and shall order the construction, reconstruction, repair or regrading of such improvements, prescribe the width of the sidewalks, the kind and character of the material out of which they shall be built, the building of all

*__Cross reference—__Erection of detour of barricade signs, § 45-18.

such improvements according to the line and grade as fixed by the city engineer and the specifications adopted by the city, and designate the time within which such improvements shall be completed.
(Code 1968, § 41-82; Ord. No. 90-635, § 110, 5-23-90)

Sec. 40-83. Notice to property owners when work ordered.

When the city council shall have ordered the construction, reconstruction, repair or regrading of sidewalks, driveways, curbs and gutters as provided for in this article, it shall be the duty of the city engineer to serve notice that such improvements must be laid by the owners of the abutting property, showing the width of the sidewalks, and the materials out of which the same shall be constructed, and the time within which the improvements shall be completed, and the estimated cost thereof per square or lineal foot. Such notice may be served by delivering a copy thereof to the owner of the abutting property or to any tenant of the owner living on the particular real estate included in the order, or if the property is unoccupied and the owner or his authorized agent cannot be found, then notice may be given by posting a copy thereof upon the property, and such officer shall make due return to the city engineer stating the manner and time of service thereof, which return when produced in court shall preclude any question as to whether or not sufficient notice has been given. In lieu of the above notice, the city engineer may cause notice to be mailed to the post office address of the owner, and the mailing of such notice shall constitute sufficient notice, whether received or not, or notice may be given by publishing a brief summary of the order once in some daily newspaper published in the city, of general circulation, addressed "Sidewalk Improvements: To Whom It May Concern," at least 30 days before the improvement is required to be completed, and such publication in the paper shall be deemed a sufficient notice. Notice will be sufficient if given to the proper owner in any one of the ways above indicated.
(Code 1968, § 41-83; Ord. No. 90-635, § 110, 5-23-90)

Sec. 40-84. Duties of abutting property owners; failure of property owners to have work done.

It shall be the duty of every owner of real estate in the city, abutting on any public street in the city, in front of which real estate or along which street the city council may order the construction, reconstruction or repair, or bringing to grade of sidewalks, driveways, curbs or gutters, or any of them, to cause the same to be constructed, reconstructed or repaired or bring the same to grade, as the case may be, in accordance with the terms of such order, the specifications set out in this article and on the line and grade as established by the city engineer for the particular block, street or community in which the real estate may be situated. Such property owners shall cause to be constructed such improvements in front of their respective property after the giving of notice as prescribed in this article, within the time fixed by the city council. After the expiration of the time indicated in the notice to construct, reconstruct, repair or regrade, if the abutting owner shall not have built such improvements as ordered and indicated in the notice, then the city shall have the right to construct the same in accordance with the order for the same, and the standard specifications hereinafter set out, under the supervision of the city engineer, and may advertise for bids or may itself construct such improvements, at the expense of the abutting property owner, and may recover a personal judgment in any court having jurisdiction of the amount for the cost and expense in constructing, reconstructing, repairing or regrading such sidewalks, driveways, curbs and gutters, with ten percent additional for attorneys' fees, and may, by ordinance, fix a lien on the property improved.
(Code 1968, § 41-84; Ord. No. 90-635, § 110, 5-23-90)

Sec. 40-85. Performance of work by city at request of property owner.

Any property owner or his duly authorized agent, who shall desire the city to construct for him any sidewalk, driveway, curb or gutter, or to reconstruct, or repair or regrade the same, shall have the right to petition the city council therefore, asking that such work be performed at the

cost and expense of the petitioner, offering to defray all costs of advertising for bids, if any, letting contract and cost of grading, constructing and finishing, and designate the terms upon which he can pay. Upon receiving such petition, the same shall be referred to the city engineer, who shall determine forthwith the line and grade, make a record thereof and estimate the cost of construction, including the advertising for bids, if necessary, and report to the council. Should the council see fit to grant such petition, it shall determine the material out of which the improvements shall be constructed and the manner of payment therefor. Before any work or sidewalk, driveway, curb, or gutter construction shall be undertaken by the city for any property owner, such property owner shall comply with all requirements of the city as to payment therefor, either in cash in advance, or part cash and the giving of security for the unpaid balance. The city shall have the right to award any quantity of work under this section to a general contractor whose bid shall be accepted by the council as the lowest and best secure bid for the construction of sidewalks, driveways, curbs and gutters during a stipulated time, not to exceed one year.
(Code 1968, § 41-85; Ord. No. 90-635, § 110, 5-23-90)

Sec. 40-86. Permit for construction of driveways.

(a) No person shall construct, or cause to be constructed, any driveway connecting private property with a public street without first obtaining a written permit therefor from the city engineer.

(b) Upon receipt of an application for a driveway permit, the city engineer shall make a determination as to whether the driveway applied for is necessary to provide reasonable access to the private property consistent with the safety and convenience of the public, taking into account the following matters:

(1) The nature and volume of traffic on the street on which the private property abuts.

(2) The dimensions and type of construction of the street on which the private property abuts.

(3) The effect that the passage of vehicles to and from the private property will have on the safety of the traveling public and on the movement of traffic in the street to which the driveway connects.

(4) The use to be made of the private property.

(5) The dimensions of the private property, and the type and location of improvements thereon or to be placed thereon.

(6) The extent of the access which the private property has or will have to other public streets, if any.

(c) After making such determination, the city engineer shall grant or refuse the application in accordance with the following rules:

(1) He shall refuse to issue a permit for a single driveway opening unless it shall have been found to be necessary for reasonable access.

(2) If the application is for more than one driveway opening into the same premises, he shall allow no more such openings than the minimum number necessary to provide reasonable access.

(3) He shall refuse to issue a permit for any driveway opening as to which it has been found that the proposed use of the driveway would create an extraordinary traffic hazard or would excessively interfere with the normal use of the street right-of-way.

(4) Every permit issued shall specify the maximum width of the driveway opening for which the permit is granted and such width shall be no greater than the minimum necessary to provide reasonable access.

(5) If a permit is granted for more than one driveway opening into the same premises, it shall specify that each such opening shall be separated from the others by a distance of not less than 20 feet, and that

an upright curb must be constructed along the edge of the area of separation next to the improved portion of the street.

(Code 1968, § 41-86; Ord. No. 90-635, §§ 110, 111, 5-23-90; Ord. No. 93-514, § 77, 5-5-93)

Sec. 40-87. Driveway openings under city's street improvement contracts.

So far as they may be applicable, the standards and procedures above set forth in section 40-86, of this Code, including the requirements for a written permit for each opening, shall also be used by the city engineer in allowing driveway openings under the city's street improvement contracts; provided, however, the specifications to any such contracts may authorize the replacement of previously existing driveways without the necessity of obtaining a permit and, to the extent that they do so, no permit will be required.

(Code 1968, § 41-87; Ord. No. 70-932, § 1, 6-16-70; Ord. No. 90-635, § 110, 5-23-90)

Sec. 40-88. Permit to construct or repair sidewalks, curbs or gutters.

(a) It shall be unlawful for any person, except a person laying permanent street pavement under contract with the city, to construct, reconstruct, repair or regrade any sidewalks, curbs, or gutters in the city without obtaining a permit from the city engineer, which permit shall be kept conspicuously displayed within 20 feet of the work during the course of the work.

(b) The application for a permit shall be made to the city engineer, in the form prescribed by the city engineer, and shall state:

(1) The nature and extent of the proposed improvements; and

(2) The location of the improvements by lot, block and street number.

(c) If a person constructs, reconstructs, or repairs any sidewalk, curb or gutter in the city on any line or grade other than the line or grade given by the city engineer, or in any manner other than as provided by this Code, the city engineer shall not issue any permit to the person until the person has rebuilt or reconstructed or repaired the sidewalk, curb, or gutter in accordance with the requirements of the city engineer and the requirements of this Code.

(d) The city engineer is responsible for the establishment of the lines and grades required for the construction, reconstruction, or repair of sidewalks, curbs and gutters in the city. The city engineer shall not issue a permit under this section or under any order of city council ordering the construction, reconstruction, repair or regrade of any sidewalks, curbs, or gutters, until the city engineer has established and made a record of the lines and grades for the proposed work.

(e) The fee for a permit issued under this section shall be as stated in the city fee schedule, which shall be the fee for the issuance of each permit and for the staking of such work. No fee shall be required for the owner of a fully-constructed dwelling unit in use for single-family residential purposes, as those terms are defined in chapter 42 of this Code, if:

(1) The permit sought is only to reconstruct, repair, or regrade the portion of an existing sidewalk abutting the dwelling unit, that is not a part of the driveway for the dwelling unit;

(2) The owner submits a notice of repair to the city engineer in the form prescribed by the city engineer prior to reconstruction, repair, or regrade of the existing sidewalk; and

(3) The owner submits a notice of completion to the city engineer in the form prescribed by the city engineer upon completion of the reconstruction, repair, or regrade of the existing sidewalk.

(Code 1968, § 41-88; Ord. No. 90-635, § 110, 5-23-90; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2015-351, § 2, 4-15-2015)

Cross reference—Refund of certain permit fees paid to department of public works and engineering, § 47-49.

Sec. 40-89. Establishment of line and grade.

All petitions for the creation of sidewalk districts or for the building of sidewalks under the supervision of the city, or matters of constructing, reconstructing, repairing or regrading sidewalks, curbs, gutters or driveways, whether initiated by petition or by action of the city engineer, shall be referred to the city engineer, whose duty it shall be to establish forthwith the line and grade upon which any sidewalk, driveway, curb or gutter shall be built.
(Code 1968, § 41-89; Ord. No. 90-635, § 110, 5-23-90)

Sec. 40-90. Altering lines or grades when putting down permanent street pavement.

The city hereby expressly reserves the right, when putting down a permanent street pavement, either by the original construction or reconstruction, to change or alter the lines and grades of such permanent pavement and of the sidewalks, driveways, curbs and gutters on the street, when in the opinion of the city council such change is necessary for the proper paving or drainage of the street, and without liability on the part of the city by reason of such change. In the event that a sidewalk or driveway, the line or grade of which is changed, is in good condition and does not, in the opinion of the city council, require entire reconstruction, the owner thereof shall be given notice, as provided for in section 40-83 of this Code, to break such sidewalk or driveway back to a point fixed by the city engineer and to remove the broken portion and reconstruct such portion on the line and grade determined by the city engineer, at the cost of such abutting owner. In the event such owner shall fail or refuse to obey the order of the city council, he shall be subject to all the penalties of this article, and the city council shall have the right to have such breaking and reconstructing to grade of such sidewalk or driveway done by a paving contractor, or other person, at the expense of the abutting owner.
(Code 1968, § 41-90; Ord. No. 90-635, § 110, 5-23-90)

Sec. 40-91. Required materials.

Sidewalks shall be constructed of either cement, concrete, asphalt or other durable material as the council may designate, and the order of the city council ordering the construction shall designate the materials to be used. No driveways, curbs or gutters shall be built of other material than cement or concrete.
(Code 1968, § 41-91)

Sec. 40-92. Specifications for cement work.

The city hereby adopts and approves as standard specifications for cement sidewalks, driveways, curbs and gutters the following:

(1) *Materials.* Cement or concrete sidewalks, driveways, curbs and gutters shall be built of Portland cement, fine aggregate and coarse aggregate.

(2) *Fine aggregate.* Fine aggregate shall consist of washed sand having clean, hard, durable, uncoated grains, free from soft or flaky particles or other injurious matter, shall be well graded from coarse to fine and, when tested by standard laboratory methods, shall meet the following requirements:

Retained on	*Percent by weight*
3/8" screen	0%
1/4" screen	0—5%
50 mesh sieve	70—95%
100 mesh sieve	95—100%

Weight removed by elutriation test not more than 2%.

When subjected to the color test for organic impurities, fine aggregate shall not show a color darker than the standard color.

Aggregates from different material sources, or aggregates from the same source having different grading or other physical characteristics, shall be stock piled separately and batched independently. Aggregates shipped in dirty cars or containers, or that which

becomes mixed with weeds, dirt or other foreign material, or that which is not uniform or the component parts of which have become segregated will be rejected.

(3) *Coarse aggregate.* Coarse aggregate shall consist of crushed stone, gravel or oyster

shell, having hard, clean, strong, durable pieces free from excessive adherent coatings, free from salt and alkali, and, when tested by standard laboratory methods, shall conform to the following requirements:

The maximum percentage of deleterious substances shall not exceed the following values by weight:

Removed by decantation	4%
Shale	0.25%
Clay lumps	0.25%
Soft fragments	3%
Other local deleterious substances, such as friable pieces	3%
The sum of the percentages of all above constituents shall not exceed	5%

The wear for crushed stone or gravel shall not exceed the following percentages:

Crushed stone	7%
Gravel	17%

Coarse aggregate shall conform to the grading requirements given below when tested on standard round-opening screens, and shall be well graded within the limits specified. Aggregates of different classes shall not be mixed except on the written permission of the engineer. Changes in the classes of aggregate being used while the work is in progress will be permitted upon due notice by the contractor to the engineer of his intentions and the fulfillment of the necessary requirements to comply with these specifications. Aggregates in which different size particles have become segregated due to improper stockpiling, improper handling, or for other reasons, shall before being used, be mixed to conform to the grading requirements hereinafter specified, and shall be uniform.

Coarse aggregate (crushed stone or gravel)

Retained on	*Percent by weight*
3″ screen	
2½″ screen	0—5
1½″ screen	5—40
¼″ screen—Not less than	90
No. 8 sieve—Not less than	95

Coarse aggregate (oyster shell)

Retained on	*Percent by weight*
2½″ screen	
1½″ screen	5—20
¾″ screen	20—50
¼″ screen	65—90
No. 8 sieve	88—100

Aggregates from different material sources, or having different characteristics, shall not be mixed either in piling or batching, except by special permission from the engineer. Aggregate shipped in dirty cars or containers, or that becomes mixed with weeds, dirt or foreign material, or that is not uniform, or the component parts of which have become segregated will be rejected.

(4) *Concrete body.* The concrete shall be composed of standard Portland cement or an approved high early strength cement, fine aggregate, coarse aggregate and water, mixed and proportioned according to the workability factor method of design, and in accordance to definite specification requirements herein outlined.

The concrete shall contain not less than four sacks of cement per cubic yard and not more than eight gallons of water net per sack of cement when gravel coarse aggregate is used.

The concrete shall contain not less than five sacks of cement per cubic yard and not more than eight and one-half gallons of water net, per sack of cement when oyster shell coarse aggregate is used.

The concrete shall be uniform and workable. The amount of coarse aggregate (dry loose volume) shall not be more than 0.85 cubic feet per cubic foot of concrete.

The net amount of water will be the amount of water added at the mixer plus the free water in the aggregates, plus or minus the absorption of the aggregates, based on a 30 minute absorption period. No water allowance will be made for evaporation after batching.

(5) *Foundation.* The foundation shall consist of firm, hard soil from which all vegetable matter and other loose material have been removed. In the event it is necessary to build up the foundation, the same shall be done with selected earth or other material satisfactory to the city engineer and shall be built up and well tamped in six-inch layers and such filling shall extend at least one foot on each side of the walk.

(6) *Location and grade.* All sidewalks, driveways, curbs and gutters shall be built as located by the city engineer, and on the grade established by him. At street intersections and at other places, the curb and gutter may be built on a radius, as the city engineer may direct, and the contractor in charge of the work shall receive no extra compensation on account of such work being on a curved alignment. Where driveways occur into private property across the parkway between the curb line and the sidewalk, such driveways shall be built with a return curb, having a vertical face and joining the main curb of the street with a two-foot radius.

(7) *Combined curb and gutter.*

a. Thickness. The standard combined curb and gutter shall consist of a curb six inches in thickness and 15¾ inches in height combined with a gutter eight inches in thickness and 18 inches in width, all built as a monolithic structure. The outer corner of the curb shall be rounded to a three-inch radius.

b. Templates. The curb and gutter shall be constructed with a one-eighth-inch metal template placed at six foot intervals. These shall be removed before placing the topping.

c. Mortar topping. The mortar topping shall be a mortar composed of one part of Portland cement and 1½ parts of fine aggregate thoroughly mixed dry before the addition of water.

The face board and templates shall be removed as soon as the concrete has set sufficiently to stand up and the mortar topping shall then be immediately applied. The topping shall be ¾-inch thick on the top of the curb and the top of the gutter and shall be ½-inch thick on the face of the curb.

d. Finishing. The mortar topping shall be given a smooth trowel finish and shall have a ¼-inch "finish joint" at the exact location of each template joint.

The back edge of the curb and the front edge of the gutter shall be rounded with a one-half-inch edging tool.

The back of the gutter at the face of the curb shall be finished with a one-inch radius.

The curb and gutter surface shall be lightly brushed to remove all trowel marks.

e. Expansion joints. An approved type of commercial pre-molded expansion joint one-inch thick shall be placed at the end of all radius returns at street intersections and where meeting existing inlets.

The joint materials shall be cut from one piece of material to conform to the shape of the curb and gutter.

(8) *Sidewalks.*

a. Thickness. Standard sidewalks shall be composed of not less than 4¼

inches of concrete and ¼ inch of mortar topping, making a total of 4½ inches. The maker's name shall be stamped on each sidewalk built by him in letters not less than 1¼ inches high and ¼-inch deep.

b. Expansion joints. An approved type of commercial pre-molded expansion joint ½-inch thick shall be placed where two lines of sidewalks intersect, where meeting existing walk at intervals of not more than 36 feet throughout the entire length of the sidewalk. At all places where sidewalks meet curbs, a one-inch approved type of commercial pre-molded expansion joint shall be provided. An expansion joint material shall extend entirely through the sidewalk, and shall extend the entire width of the sidewalk.

c. Mortar topping. The mortar topping shall be a mortar composed of one part Portland cement and 1½ parts of fine aggregate thoroughly mixed dry and may be applied wet or dry.

All topping must be applied before the concrete has been in place not more than ten minutes.

In the use of dry or monolithic topping, the topping must be applied while excess water is on the concrete and must be worked to a plastic mixture by the use of wood floats or darbies. The addition of water to the dry mortar topping will not be allowed unless there is insufficient excess water in the concrete to thoroughly wet the dry mortar.

The mortar topping shall be smoothly struck off by use of a wood strike board riding on top of the forms. The surface shall then be smoothly finished with a wood hand float working in a circular or rotary motion.

The edges of the walk shall be rounded off with a one-half-inch radius edging tool.

The walk shall be marked off one-eighth-inch deep at a spacing equal to the width of the walk with a joint tool equal in width to the width of the edging tool.

(9) *Driveways.*

a. Thickness. Standard concrete driveways shall be composed of not less than five and three-quarter inches of concrete and one-quarter-inch of mortar topping, making a total of six inches.

On streets having curb and gutter, the driveway shall have a monolithic curb on each side, six inches in width and a varying height, meeting the height of the curb at the street and meeting the sidewalk elevation. This curb shall have at least a two-foot radius joining with the street curb and shall have a wet mortar topping one-half-inch thick.

b. Expansion joints. An approved type of commercial premolded expansion joint material one inch thick and extending entirely through the driveway for its full width and depth shall be placed at the sidewalk intersection.

c. Mortar topping. The mortar topping shall be a mortar composed of one part Portland cement and one and one-half parts of fine aggregate thoroughly mixed dry and may be applied wet or dry.

All topping must be applied before the concrete has been in place not more than ten minutes.

In the use of dry monolithic topping, the topping must be applied while excess water is on the concrete and must be worked to a plastic mixture by the use of wood floats or darbies. The addition of water to the dry mortar topping will not be allowed unless there is insufficient water in the concrete to thoroughly wet the dry mortar.

d. Finishing surface. The mortar topping shall be struck off with a wood strike board to a smooth finish. The surface shall then be smoothly finished with a wood darby and a hand float working in a circular or rotary motion.

(10) *Protecting new work.* After sidewalks, driveways, curbs and gutters have been completed they must be protected from injury by keeping traffic off for at least five days, and from the sun by a covering of sand, boards, building paper or canvas, and must be sprinkled daily for at least two days after completion.

(11) *Miscellaneous.* In general, all forms shall be smooth and the work shall be done in a workmanlike manner giving straight lines where required, true planes and a smooth finish properly brushed to remove marks and shall be in every way satisfactory to the city engineer. When the work is completed, all curbs shall have earth thoroughly filled in and tamped against the back; all rubbish, surplus excavated material, forms and other materials shall be removed and the work left in a neat and orderly manner.

(Code 1968, § 41-92; Ord. No. 90-635, §§ 110, 112, 5-23-90)

Sec. 40-93. Specifications for sidewalks of other than cement or concrete.

If the city council selects other material than cement or concrete for the building of sidewalks, it shall be the duty of the city engineer to prepare specifications therefor, and the property owners shall cause such sidewalks to be built in accordance with such specifications and on the line and grade established by the city engineer.
(Code 1968, § 41-93; Ord. No. 90-635, § 110, 5-23-90)

Sec. 40-94. Contracts for construction not to provide longer time than fixed by council.

No contract for the construction of any sidewalk, driveway, curb or gutter ordered by the city council shall be made which shall provide a longer time for the completion of such work than the time fixed by the city council.
(Code 1968, § 41-94)

Sec. 40-95. Contractor's bond.

(a) No person, except a person laying permanent street pavement under contract with the city, shall be entitled to construct, reconstruct or repair any sidewalk, driveway, curb or gutter in the city, unless he shall first execute to the city a yearly bond in the sum of $2,000.00, payable to the city, with two or more sureties, or with a corporate surety authorized to do business in Texas, conditioned that the principal therein will construct, reconstruct or regrade all sidewalks, driveways, curbs or gutters in accordance with the ordinances of the city and on the line and grade as established by the city engineer, and further conditioned that such person will save the city harmless from all loss or damage to any person, of whatever character, arising by reason of negligence on the part of the contractor in performing such work, or in leaving the same ungraded, or from any other cause. The bond shall further recite that all work done by the contractor during the year for which such bond shall hold good, shall be performed to the satisfaction of the city engineer.

(b) The bond may be accepted on behalf of the city by the mayor, the mayor pro tem, the Director of Houston Public Works, or any person designated and so authorized by the mayor in a writing signed by the mayor and filed with the city secretary. Any such acceptance may be

accomplished by signature on the bond itself or by any other means which indicates an acceptance of the benefits of such bond.

(c) The requirements of this section shall not apply to a person exempted from permit fees by section 40-88(e) of this Code.
(Code 1968, § 41-95; Ord. No. 81-22, § 1, 1-13-81; Ord. No. 90-635, §§ 110, 113, 5-23-90; Ord. No. 93-514, § 78, 5-5-93; Ord. No. 2015-351, § 3, 4-15-2015; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-96. Deviation from council's order.

After the passage of any order prescribing the construction, reconstruction, repair or regrading of sidewalks, curbs, gutters or driveways, or any of them, it shall be unlawful for any property owner to construct any other or different sidewalk, driveway, curb or gutter than that prescribed in such order, and any person, after the passage of such order, who shall construct a sidewalk, driveway, curb or gutter different from that prescribed in such order shall be deemed guilty of an offense.
(Code 1968, § 41-96)

Sec. 40-97. City may refuse to pave streets until sidewalks and curbs laid.

The city shall have the right, and it is hereby expressly reserved, to refuse to pave any street unless and until the owners of abutting property shall previously lay, in the manner prescribed by the city council, curbs and sidewalks thereon.
(Code 1968, § 41-97)

Sec. 40-98. Article applies to construction in connection with erection of buildings.

The provisions of this article shall apply to and govern the construction or reconstruction of side walks, driveways, curbs or gutters in connection with the erection of buildings in the city.
(Code 1968, § 41-98)

Sec. 40-99. Violations.

A person is guilty of a misdemeanor, and upon conviction, shall be fined as provided by section 1-6 of this Code if:

(1) The person constructs, reconstructs, repairs, or regrades any sidewalk, driveway, curb, or gutter without a permit required by this article, or without first obtaining the line and grade of the sidewalk, driveway, curb, or gutter from the city engineer;

(2) The person constructs, reconstructs, repairs, or regrades any sidewalk, driveway, curb, or gutter without first giving the bond required by section 40-95 of this Code, except of that person is exempted from permit fees pursuant to section 40-88(e) of this Code;

(3) The person constructs, reconstructs, repairs, or regrades any sidewalk, driveway, curb, or gutter on any other line and grade than that given by the city engineer;

(4) The person fails to construct, reconstruct, repair or regrade any sidewalk, driveway, curb or gutter after notice to do so under this article; or

(5) The person violates any other provision of this article.

(Code 1968, § 41-99; Ord. No. 90-635, § 110, 5-23-90; Ord. No. 2015-351, § 3, 4-15-2015)

Secs. 40-100—40-109. Reserved.

ARTICLE IV. STREET OILING PERMIT

Sec. 40-110. Required.

It shall be unlawful for any person to oil or allow the oiling of any public street, highway, or alleyway within the city, without having applied for and obtained a street oiling permit from the Director of Houston Public Works or his designee ("the director").
(Code 1968, § 41-110; Ord. No. 90-635, § 114, 5-23-90; Ord. No. 93-514, § 79, 5-5-93; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-111. Information to be furnished by applicant.

Applicants for a permit required by this article shall furnish, on forms to be furnished by the director, the following information:

(1) Which portions of which streets, highways or alleyways are proposed to be oiled.

(2) The name, business address and business telephone number of the contractor who is to perform the street oiling.

(3) The description, by specification, of the materials to be used.

(4) The method of application to be used.

(5) The date of the proposed work is to commence.

(6) Such other information as the director may require.

(Code 1968, § 41-111; Ord. No. 90-635, § 114, 5-23-90)

Sec. 40-112. Bond to be furnished by applicant.

Each applicant for a street oiling permit must furnish, on forms to be provided by the director, a bond executed by the contractor who is to perform the street oiling and by one corporate surety, which surety shall be a corporation qualified and licensed by the board of insurance commissioners of the state, in the amount of $10,000.00, which bond shall provide and be conditioned that the principal and surety will be primarily liable for its negligent and wrongful acts and will further indemnify and save harmless the city and its officers from any and all demands, claims, or liability, regardless of by whom claimed, arising out of or in any manner incident to the doing of any work pursuant to or under the terms of any permit issued, during the coverage period of the bond, and assumes all liability for any and all acts relating to the performance of the oiling of any street. A single recovery shall not exhaust such bond, but the same shall remain in full force and effect until the whole amount thereof has been recovered, or until the bond has terminated in accordance with the following provision. Such bond shall terminate at midnight on December thirty-first of the same year in which it shall have been executed; provided, that such termination shall not discharge or release the principal obligor and the surety from the payment of claims and the liability therefor based upon breach of the conditions of the bond occurring prior to the termination thereof. Each such bond shall be accompanied by an appropriate power of attorney evidencing the authority of the issuing agent or attorney to execute the bond for the corporate surety.

(Code 1968, § 41-112; Ord. No. 90-635, § 114, 5-23-90)

Sec. 40-113. Denial.

The director shall deny any application for a street oiling permit if the proposed street oiling would interfere with, hinder or adversely affect any project of the city or result in damage to any city-owned property. The director shall deny any such application if the material to be used is anything other than used lubricating oil, or if the method of application to be used is any method other than at least two applications evenly distributed, totaling a minimum of three-fourths of one gallon per square yard. The director shall deny any such application if all of the information requested on the application form is not accurately and truthfully given, or if the required bond is not furnished, or if the bond furnished does not meet the requirements of this article.

(Code 1968, § 41-113; Ord. No. 90-635, § 114, 5-23-90)

Sec. 40-114. Expiration; not transferable.

All street oiling permits will expire and be null and void at the end of 90 days after the date of issuance. All street oiling permits shall be nontransferable.

(Code 1968, § 41-114)

Sec. 40-115. Penalty.

Each person violating any provision of this article shall, upon conviction, be punished as provided by section 1-6 of this Code. Each day in which this article is violated shall be considered a separate offense.

(Code 1968, § 41-115; Ord. No. 92-1449, § 56, 11-4-92)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

Secs. 40-116—40-120. Reserved.

ARTICLE V. EXCAVATION IN PUBLIC WAY*

DIVISION 1. GENERALLY

Sec. 40-121. Definitions.

As used in this article, the following terms shall have the meanings ascribed in this section, unless the context of their usage clearly indicates another meaning:

Applicant means any person who seeks a permit for an excavation.

Backfill means excavation fill material meeting city specified quality requirements or the placement thereof.

Construction standards means the City of Houston Standard Specifications for Wastewater Collection Systems, Water Lines, Storm Drainage, and Street Paving and the City of Houston Standard Construction Details for Wastewater Collection Systems, Water Lines, Storm Drainage, and Street Paving as they may be amended from time to time by Houston Public Works and approved by the city engineer.

Emergency means an unforeseeable event or occurrence that endangers health, life, or property, or a situation in which public need for uninterrupted utility service requires immediate corrective action to restore services.

Excavation means an activity that cuts, penetrates, or bores under any portion of the public way that has been improved with a paved surface for street, sidewalk, surface drainage, or related public transportation infrastructure purposes. The term includes but is not limited to cutting, tunneling, jacking and boring, backfilling, restoring, repairing, and installing and maintaining a temporary surface in, the public way. The term does not include a transportation improvement; however, it does include excavations that are undertaken for the improvement or maintenance of publicly owned utility systems, such as water and wastewater lines and facilities. The term also does not include utility maintenance or other activities that are performed within already existing structures, vaults, conduits, or cable ways that are located underneath street improvements, provided that any access required for the work is obtained through manholes, or other previously constructed entrances that may be utilized without cutting or penetrating any pavement or other street improvement.

Facility means any structure, device, or other thing whatsoever that may be installed or maintained in, on, within, under, over, or above a public way by an excavation.

Inspection means the inspection of an excavation by any person approved by the city engineer to determine compliance with this article.

Owner means a person, including the city, who is the owner or will, following the completion of the installation, become the owner of any facility that is installed or is proposed to be installed or maintained in the public way.

Permit means a current and valid authorization issued under division 2 of this article.

Permittee means a person who holds a permit; the singular term includes the plural if two or more persons jointly hold the permit, where applicable.

Public way means any public street right-of-way located in the city, including the entire area between the boundary lines of every way (including but not limited to roads, streets, alleys, highways, boulevards, bridges, tunnels, or similar thoroughfares), whether acquired by purchase, grant, or dedication and acceptance by the city or by the public, that has been opened to the use of the public for purposes of vehicular travel.

Public way construction entity means the City of Houston, the Metropolitan Transit Authority of Harris County, Texas, the Texas Department of Transportation, Harris County, Harris County Flood Control District, or any other public entity

*__Editor's note—__Ord. No. 00-1115, § 2, adopted Dec. 20, 2000, amended Art. V in its entirety. Formerly said article pertained to similar subject matter and derived from Code 1968, §§ 41-127—41-157. See the Code Comparative Table.

Cross references—Open or uncovered wells, cisterns, excavations, etc., § 28-11; erection of detour or barricade signs, § 45-118 et seq.; driving on fresh pavement, § 45-42.

performing or causing to be performed transportation improvement construction or construction-related activities in public ways.

Traffic-control device means a traffic sign, signal, or marking that is placed and maintained in accordance with state law and this Code.

Transportation improvement means the portion of work within the finished paved surface of a public way undertaken by or pursuant to contract for the state or a political subdivision of the state for the purpose of improving or maintaining public way transportation and related storm drainage and street lighting infrastructure, but does not include any activity, such as connection to other facilities, that cuts, penetrates, or bores under a public way other than the one being improved or maintained pursuant to the contract or that cuts, penetrates or bores under the public way after installation of new paving.
(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 01-203, § 2, 2-28-01; Ord. No. 06-595, § 2, 6-7-06; Ord. No. 2018-11, § 50, 1-10-2018)

Sec. 40-122. Prohibited activities.

(a) It shall be unlawful for any person to excavate or cause an excavation within the city unless the person is a permittee to whom a permit has been issued for the excavation pursuant to this article.

(b) It shall be unlawful for a permittee to excavate or cause an excavation within the city in violation of any term of a permit issued pursuant to this article.

(c) It shall be unlawful for any permittee to fail to exhibit a permit upon request as required by section 40-142 of this Code. In any prosecution under this article, it shall be presumed that there is no permit if the permit is not properly exhibited.

(d) It shall be unlawful for any permittee to fail to restore the public way following excavation as required by this article.

(e) It is an affirmative defense to prosecution under subsections (a) and (c) above that the excavation was begun in response to an emergency and that a permit was timely applied for in compliance with section 40-139 of this Code.
(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 06-595, § 3, 6-7-06)

Sec. 40-123. Provisions cumulative.

(a) The provisions of this article are cumulative of all other requirements of this Code and other laws, including, without limitation, the Construction Code and the Fire Code, and utility franchises, as well as all applicable state and federal laws and regulations. Compliance with this article does not excuse compliance with any other law, and permittees are additionally required to obtain any other permits, licenses, and authorizations required by law, including but not limited to utility franchises, permits, licenses, and authorizations that are required to be obtained from the city, the Texas Department of Licensing and Regulation, the Texas Public Utility Commission, and the Texas Underground Facility Notification Corporation or any other appropriate governmental agency. However, to the extent that any provision set forth in this article may not be imposed upon any person because its imposition would be inconsistent with a controlling state or federal law, then this article shall be construed and applied in a manner that conforms with the applicable state or federal law. In addition, this article shall not be construed to require an owner to pay any fee that is prohibited by applicable state or federal law or valid city utility franchise.

(b) To the extent that any other city permit or authorization is required for work that is also governed by this article, the Director of Houston Public Works shall, to the extent practicable, devise consolidated application forms and issue the required permits or authorizations on a combined basis.
(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 02-399, § 80, 5-15-02; Ord. No. 06-595, § 4, 6-7-06; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-124. Penalty.

Violation of this article is unlawful. Any person who violates any provision of this article shall be

guilty of an offense and, upon conviction thereof, shall be punished as provided in section 1-6 of this Code. Each and every day that any violation continues shall constitute a separate offense and shall be punishable as such.
(Ord. No. 00-1115, § 2, 12-20-00)

Sec. 40-125. No private rights in public way.

Nothing in this article shall be construed to give any person or permittee any property right in or to the use of the public way. All permits issued and held under this article shall be subject to the superior right of the public to control the use of the public way and ensure the safe and orderly movement of traffic, and a separate permit shall be required under article XVII of this chapter where applicable to any work that causes an obstruction.
(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 02-974, § 6, 10-30-02; Ord. No. 04-498, § 4, 5-26-04)

Sec. 40-126. Appeals; hearing.

Any person whose permit is denied or who is otherwise aggrieved by a notice, action, or decision of the city engineer hereunder shall, upon written request, be entitled to a hearing to be conducted by a hearing officer designated by the Director of Houston Public Works, who shall promulgate rules for hearings. The decision of the hearing officer shall be final. Where time is of the essence, the aggrieved person may so advise and state the reason therefor in the request and, to the extent reasonably warranted and allowed by the circumstances, an expedited hearing of the issue shall be afforded.
(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-127. Public entities not exempt.

In addition to their application to other persons, the provisions of this article are applicable to excavations made by the city and its contractors, as well as to excavations made by or on behalf of other governmental entities and subdivisions, to the extent of the city's police power jurisdiction. In connection with excavations made by the city, the city engineer may waive compliance with insurance and other requirements that have no practical application as applied to the city.
(Ord. No. 00-1115, § 2, 12-20-00)

Sec. 40-128. Rules and regulations.

(a) The Director of Houston Public Works is authorized to promulgate rules and regulations regarding any aspect of the operation of this article, including without limitation requirements for drawings and specifications, methods by which excavations will be performed, traffic control procedures, application processing and hearing procedures, debarment procedures, construction management procedures, and inspection procedures. The rules and regulations shall be consistent with applicable federal and state laws, city ordinances, and sound engineering practices, and the City Council Committee on Transportation, Infrastructure and Aviation, or its successor committee, shall conduct a public hearing on the proposed rules and regulations not less than ten days following the publication of notice of intent in a newspaper of general circulation, and the proposed rules and regulations shall be approved by a majority vote of the City Council Committee on Transportation, Infrastructure and Aviation, or its successor committee, prior to implementation. The Director of Houston Public Works shall make copies of the rules and regulations available for inspection in the director's office, and copies may be purchased at the fees prescribed by law.

(b) Before adopting any rules and regulations under subsection (a) or any substantive amendments thereto, the Director of Houston Public Works shall publish a notice of intent one time in a newspaper of general circulation and shall afford a ten-day period in which affected persons may obtain a copy of draft proposals and submit written comments thereon.
(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 06-595, § 5, 6-7-06; Ord. No. 2018-11, § 49, 1-10-2018)

Secs. 40-129—40-135. Reserved.

DIVISION 2. PERMITS

Sec. 40-136. Application.

(a) A permit for any excavation shall be obtained by the owner of the facility. If the owner of a facility will not be making the excavation with its own personnel, then the contractor retained to perform the work shall join with the owner as an applicant in obtaining the permit. Where two or more related excavations are being performed as part of the same project, the application and permit may cover the related work, consistent with the regulations issued under section 40-128 of this Code.

(b) Applications for permits shall be in the form prescribed by the director, who may provide for the filing and processing of applications by electronic means. Each application shall be submitted to the city engineer, shall be signed and sworn to before an officer authorized to administer oaths by each applicant and shall include the following:

(1) The name, assumed name, or business name, business type (corporation, partnership, individual/sole proprietor or other) of each applicant;

(2) Each applicant's mailing address (and street address if different), telephone number, facsimile number, and e-mail address;

(3) The location (including key map number), depth, length, and width of each excavation to be made in each block and/or intersection, which may alternatively be set forth on the provided drawings and specifications;

(4) The purpose of the excavation, including a description of the facilities to be installed, maintained, and/or repaired;

(5) The method of excavation;

(6) The proposed excavation start date and duration;

(7) A statement that each person executing the application is fully authorized to act on behalf of and bind his principal in executing and filing the application;

(8) A statement that each applicant accepts and obligates itself to the following release and indemnification provisions:

'RELEASE

PERMITTEE AGREES TO AND SHALL RELEASE THE CITY, ITS AGENTS, EMPLOYEES, OFFICERS, AND LEGAL REPRESENTATIVES (COLLECTIVELY THE "CITY") FROM ALL LIABILITY FOR INJURY, DEATH, DAMAGE, OR LOSS TO PERSONS OR PROPERTY SUSTAINED IN CONNECTION WITH OR INCIDENTAL TO PERFORMANCE UNDER THE PERMIT, EVEN IF THE INJURY, DEATH, DAMAGE, OR LOSS IS CAUSED BY THE CITY'S ACTUAL OR ALLEGED JOINT OR CONCURRENT NEGLIGENCE AND/OR THE CITY'S STRICT PRODUCTS LIABILITY OR STRICT STATUTORY LIABILITY.

INDEMNIFICATION

PERMITTEE AGREES TO AND SHALL DEFEND, INDEMNIFY, AND HOLD THE CITY, ITS AGENTS, EMPLOYEES, OFFICERS, AND LEGAL REPRESENTATIVES (COLLECTIVELY THE "CITY") HARMLESS FOR ALL CLAIMS, CAUSES OF ACTION, LIABILITIES, FINES, AND EXPENSES (INCLUDING, WITHOUT LIMITATION, ATTORNEYS' FEES, COURT COSTS, AND ALL OTHER DEFENSE COSTS AND INTEREST) FOR INJURY, DEATH, DAMAGE, OR LOSS TO PERSONS OR PROPERTY SUSTAINED IN CONNECTION WITH OR INCIDENTAL TO PERFORMANCE UNDER THIS PERMIT, INCLUDING, WITHOUT LIMITATION, THOSE CAUSED BY:

(i) PERMITTEE'S AND/OR ITS AGENTS', EMPLOYEES', OFFICERS', DIRECTORS', PRINCIPALS', OR SUBCONTRACTORS OF PERMITTEES' (COLLECTIVELY IN NUMBERED PARAGRAPHS (i)—(iii), "PERMIT-

TEE") ACTUAL OR ALLEGED NEGLIGENCE OR INTENTIONAL ACTS OR OMISSIONS;

(ii) THE CITY'S AND PERMITTEE'S ACTUAL OR ALLEGED CONCURRENT NEGLIGENCE, WHETHER PERMITTEE IS IMMUNE FROM LIABILITY OR NOT; AND

(iii) THE CITY'S AND PERMITTEE'S ACTUAL OR ALLEGED STRICT PRODUCTS LIABILITY OR STRICT STATUTORY LIABILITY, WHETHER PERMITTEE IS IMMUNE FROM LIABILITY OR NOT.

PERMITTEE SHALL DEFEND, INDEMNIFY, AND HOLD THE CITY HARMLESS DURING THE TERM OF THE PERMIT AND FOR FOUR YEARS AFTER THE PERMIT TERMINATES.

WHERE APPLICABLE, THE PROVISIONS OF SECTION 283.057 OF THE TEXAS LOCAL GOVERNMENT CODE SHALL CONTROL IN LIEU OF THE FOREGOING; ADDITIONALLY, TO THE EXTENT THAT THE APPLICANT HOLDS A CURRENT AND VALID UTILITY FRANCHISE FROM THE CITY, THE RELEASE AND INDEMNIFICATION PROVISIONS OF THE FRANCHISE SHALL CONTROL IN LIEU OF THE FOREGOING.'

(9) The name of the owner of the facility;

(10) The 24-hour telephone number at which each applicant's representative who will respond to emergencies may be contacted;

(11) The name, mailing address, telephone number, facsimile number, and e-mail address of a person who is authorized to receive all notices authorized to be given by the city under this article to each applicant;

(12) Confirmation that all materials necessary for construction will be on hand and ready for use so as not to delay the excavation;

(13) A transmittal number issued by the Texas Underground Facility Notification Corporation evidencing that the applicant has complied with the Texas Underground Facility Damage Prevention and Safety Act or an assurance that the transmittal number will be provided to the city engineer before the excavation commences;

(14) Evidence of insurance as required in section 40-147 of this Code;

(15) Drawings and specifications, as provided in section 40-137 of this Code;

(16) The work warranty as required by section 40-140 of this Code; and

(17) The nonrefundable application fee established pursuant to this article.

If the director provides for the filing of applications by electronic means, each application for a permit or permit extension not submitted by electronic means shall also be accompanied by an additional application fee established pursuant to this article for the cost of data entry.

(c) An application for a permit for an excavation performed pursuant to section 40-139 of this Code shall, in addition to the items required above, also include a written statement:

(1) Explaining the basis for the emergency actions;

(2) Describing the excavation being performed;

(3) Describing any work remaining to be performed in the public way; and

(4) Stating the time and date when the emergency occurred.

(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 06-595, § 6, 6-7-06)

Sec. 40-137. Drawings to accompany application; exceptions.

(a) Unless otherwise provided in the rules and regulations promulgated under section 40-128 of this Code, each application shall be accompanied by drawings and specifications, which shall show:

(1) The location of the excavation;

(2) The method and manner in which the excavation will be performed; and

(3) The methods by which vehicular and pedestrian traffic will be controlled during the prosecution of the excavation, including any proposed signage, use of flaggers, or use of peace officers to direct traffic.

The drawings and specifications shall be prepared in compliance with all applicable laws, rules, regulations, and construction standards. The Director of Houston Public Works may approve standard details for frequently encountered types of excavations, and the approved details may be incorporated into drawings and specifications, where applicable.

(b) Consistent with applicable laws, sound engineering practices, and the nature and extent of the excavation, the city engineer may require the drawings and specifications to be sealed by a professional engineer who is licensed in Texas.

(c) An emergency excavation may be commenced under section 40-139 of this Code without submission of drawings and specifications. Consistent with the nature of the emergency and the excavation required, the city engineer shall allow the applicant a reasonable period of time to produce any required drawings and specifications.
(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 01-203, § 3, 2-28-01; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-138. Approval of application; issuance or denial of permit; hearing; validity.

(a) The city engineer shall initially review each application to determine whether it is complete. The city engineer shall return an incomplete application with an explanation of the deficiencies. Consistent with the terms of this article, the city engineer shall approve, approve with conditions, or deny each complete application.

(b) If an application is denied, the city engineer shall notify the applicant of the grounds for denial and of the applicant's right to a hearing under section 40-126 of this Code.

(c) Upon approval of an application, the city engineer shall issue a permit. The permit shall include the following:

(1) Identity of the excavation that is authorized.

(2) Name, mailing address, telephone number, and e-mail address of permittee and owner.

(3) Date of issuance.

(4) Any special conditions applicable to the permit.

(5) The number of days from date of entry on the public way to final completion to be allowed for the excavation, which shall be determined pursuant to the rules and regulations promulgated under section 40-128 of this Code, taking into consideration the nature and extent of the excavation and the vehicular and pedestrian use of the public way. Where a permit covers two or more excavations, the number of days for final completion may, consistent with the nature of the work, be separately established for each portion of the work.

(6) Any additional information deemed necessary for compliance with this article.

(7) A statement that the permit is issued subject to the terms of this article, the rules and regulations promulgated under section 40-128 of this Code, the construction standards, the approved drawings and specifications, and all other applicable requirements.

(d) A permit shall no longer be valid if there are material changes to the excavation, including but not limited to a change in the scope of the work or the method of performing the work of such consequence that the drawings and specifications no longer accurately depict the work, extending the excavation into any geographical area not included in the permit or an excavation that is not authorized by the original permit.
(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 06-595, §§ 7, 8, 6-7-06)

Sec. 40-139. Applicability of article to emergencies.

Nothing contained in this article shall be construed to prevent any person from making an excavation that is necessitated by an emergency, provided that the owner shall: (1) before the excavation is initiated notify the city engineer by telephone at the 24-hour city response telephone number provided in the procedures established under section 40-128 of this Code and also notify any other city, state, or federal authority required under law to be notified; and (2) apply for a permit for the excavation within 24 hours after the initiation of the excavation or, if the city offices are then closed, within 24 hours after the offices of the city are first opened subsequent to the initiation of the excavation.
(Ord. No. 00-1115, § 2, 12-20-00)

Sec. 40-140. Work warranty.

Each applicant shall execute and provide a work warranty in a form approved by the city attorney, which shall be incorporated into the application form. The purpose of the work warranty is to undertake and ensure that the permittee will:

(1) Timely perform the excavation in accordance with the permit, the drawings and specifications, all applicable laws, rules, and regulations, and the construction standards adopted in or pursuant to this article, subject to remediation as provided in section 40-159 of this Code; and

(2) Warrant the excavation following its completion for two years, subject to remediation as provided in section 40-160 of this Code.

(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 06-595, § 9, 6-7-06)

Sec. 40-141. Permit not transferable; void if excavation not timely commenced.

(a) A permit issued under this division is personal to the permittee and may not be transferred to another person or used by any other person to perform the excavation authorized in the permit.

(b) A permit is valid only for the location(s) described on the application, depicted on the drawings and specifications, and authorized in the permit, and no excavation shall be authorized at any other location without another permit.

(c) Unless sooner extended by the city engineer upon written request and for reasonable cause, a permit shall become void if the excavation is not commenced within 60 days from the date of its issuance.
(Ord. No. 00-1115, § 2, 12-20-00)

Sec. 40-142. Record at excavation-site; public notice.

(a) A permittee shall, at all times while an excavation is in progress, keep, at the location of the excavation, the original permit (or a copy thereof) and shall, immediately on demand, exhibit the permit upon request to the city engineer or any other person.

(b) Each permittee shall post and maintain notices in the vicinity of the excavation in the time, place, and manner prescribed in the rules and regulations promulgated under section 40-128 of this Code. Failure to post and maintain the required notice shall be unlawful.

(c) Such notice required in paragraph (b) above shall include, but not be limited to, the name of the permittee, the permittee's telephone number, and the city permit number.
(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 06-595, § 10, 6-7-06)

Sec. 40-143. Removal or relocation of facilities.

All permittees who place facilities thereby obligate and bind themselves to move or change the location of facilities whenever required or instructed to do so by the city in order to accommodate the construction, repair, or relocation of city infrastructure facilities, and failure to do so shall be unlawful.
(Ord. No. 00-1115, § 2, 12-20-00)

Sec. 40-144. Owner business plans; coordination of excavations.

(a) On or before June 1 of each year, owners shall submit a plan of excavations anticipated to be done in the public way during the five-year period commencing on July 1 of that year. Additionally, the city engineer shall annually solicit a five year transportation improvement plan from the various public way construction entities. As soon as practicable following receipt and compilation of the plans, the city engineer shall make available for inspection a composite list of all projects and transportation improvements designated in the various plans. Applicants are responsible for keeping themselves apprised of the current status of the list. An owner or public way construction entity may change, add, or delete any project in its five year business plan, and if any modification is made, the owner and/or public way construction entity shall notify the city engineer.

(b) Prior to issuance of a permit, the city engineer shall check the application against the composite list. The city engineer may require owners to (i) coordinate their excavations; (ii) coordinate excavations with transportation improvements that are ongoing or are scheduled by public way construction entities; and (iii) complete excavations before transportation improvements commence. The city engineer may grant a waiver of coordination requirements for good cause. The city engineer shall consider the following before granting a waiver:

(1) Effect of each proposed excavation(s) on the surrounding vicinity and on traffic mobility;

(2) The applicant's need for the facility;

(3) The need to facilitate the deployment of new technology as directed pursuant to official city policy; and

(4) Public health, safety, welfare, and convenience.

(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 06-595, § 11, 6-7-06)

Sec. 40-145. Newly constructed or reconstructed streets.

(a) Except as provided in subsection (b) below, no permit shall be issued for an excavation in any public way that has been constructed, reconstructed, repaved, or resurfaced in the preceding period of five years, as measured from the date of acceptance by the public works construction entity. Owners shall determine alternative methods of making necessary repairs and facility installations to avoid excavations that are subject to this section.

(b) The city engineer, for good cause, shall grant a variance to an applicant for repair of existing utilities, to respond to emergencies, or to afford an owner the means to provide service to buildings that the owner has no other reasonable means of serving in the determination of the city engineer. Variances shall be granted subject to special conditions that the city engineer determines to be appropriate to the circumstances, such as special coordination with other excavations, special paving requirements, additional soil compaction test reports, or any other requirements needed to restore the integrity of the public way to "as new" condition. In addition to the information provided on the application, applicant shall provide the following with respect to that part of the public way subject to this provision:

(1) Reason why the excavation was not performed before or when public way was paved;

(2) Reason why the excavation cannot be delayed until after the five-year period expires; and

(3) Reason why the excavation cannot be performed at another location or the owner's need cannot be accomplished by a method that does not require excavation.

(Ord. No. 00-1115, § 2, 12-20-00)

Sec. 40-146. Defaults; unauthorized excavations.

(a) The city engineer shall not issue a permit to any person who is in default or breach of any obligation to the city under this article on a prior permit or on a warranty obligation under section 40-159 or 40-160 of this Code.

(b) The director is authorized to debar from obtaining a permit any person who has performed an unpermitted excavation or any owner who has knowingly allowed that practice. Any such debarment shall be for a reasonable period of time that is consistent with the nature and circumstances of the alleged transgressions. Regulations shall be issued for debarment under section 40-128 of this Code.

(c) Before invoking the provisions of this section, the city engineer shall provide a written notice to the affected persons and afford them a right to a hearing under section 40-126 of this Code.
(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 06-595, § 12, 6-7-06)

Sec. 40-147. Insurance.

(a) As a condition of the issuance of a permit, the applicant shall provide evidence that the applicant holds a current policy of comprehensive general liability insurance covering the excavation, with an endorsement for any liability assumed under this article and policy limits of not less than $150,000.00 for property damage, per occurrence, and of not less than $150,000.00, per person, and $500,000.00, per occurrence, for bodily injury or death. Each policy shall include a provision obligating the insurer to furnish to the city engineer at least ten days prior written notice of any cancellation.

(b) The failure of the permittee to continuously maintain any required coverage shall cause any permit covered thereby to become invalid. No work may be performed on any excavation at any time when any required proof of insurance coverage is not on file in the city engineer's office. Following notice and an opportunity for a hearing under section 40-126 of this Code, the city engineer shall revoke any permit for which any required proof of insurance is not being maintained.

(c) For joint applications and permits, the coverage required in this section may be provided by a policy jointly covering all of the applicants or by separate proofs of coverage for each applicant or permittee.
(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 06-595, § 13, 6-7-06)

Sec. 40-148. Extensions.

For good cause not relating to any fault of the permittee in diligently prosecuting the excavation, the city engineer may extend the number of days allowed in the permit pursuant to section 40-138(c)(5) of this Code for completion of the excavation. To obtain an extension, the permittee shall submit an application therefor, including the nonrefundable application fee established pursuant to this article and indicating the number of additional days needed for final completion. Extensions of time granted under this subsection shall be noted on the records regarding the permit.
(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 06-595, § 14, 6-7-06; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 40-149. Application fees.

The director may, from time to time, prepare and submit for approval by motion of the city council revisions to the schedule of nonrefundable application fees that shall be paid by an applicant for a permit, permit extension or data entry. The fees approved under this provision shall be included in the city fee schedule. Payment of any applicable fees when due is a condition of the processing of any application under this article.
(Ord. No. 06-595, § 15, 6-7-06; Ord. No. 2011-1168, § 13, 12-14-2011)

Secs. 40-150—40-155. Reserved.

DIVISION 3. PERFORMANCE OF EXCAVATIONS

Sec. 40-156. Access to fire hydrants.

Each excavation shall be performed so it does not obstruct emergency access to any fire hydrant or public water supply valve.
(Ord. No. 00-1115, § 2, 12-20-00)

Sec. 40-157. Crossings; traffic control devices.

It shall be the duty of each permittee to make provisions for the safe crossing of pedestrians

and the orderly movement of vehicular traffic. Provisions therefor shall be included in the drawings and specifications for the excavation. Any required traffic control devices shall conform to applicable laws, the Texas Manual on Uniform Traffic Control Devices, and any rules and regulations promulgated under section 40-128 of this Code.
(Ord. No. 00-1115, § 2, 12-20-00)

Sec. 40-158. Steel plate temporary surfaces.

It shall be unlawful to place a steel plate at an excavation without a permit. The director may authorize as a condition of a permit the use of a steel plate as a temporary surface for an excavation. Any such permit shall specify the length of time the steel plate is allowed to remain in the public way. It shall be unlawful for any permittee or former permittee to maintain or cause to be maintained a steel plate in the public way after the time specified in the permit for the excavation at which the steel plate is located. Each steel plate shall be clearly marked with the name of the owner of the steel plate, and a permittee's failure to use a steel plate so marked shall be a violation of this article.
(Ord. No. 06-595, § 16, 6-7-06)

Sec. 40-159. Completion of excavation; warranty.

(a) In accordance with the rules and regulations promulgated under section 40-128 of this Code, a permittee shall notify the city engineer before commencing and obtain permission to commence the excavation before it enters into the public way. In connection with the notification and permission, the authorized date of entry on the public way, for purposes of section 40-138(c)(5) of this Code shall be established. In connection with the notification, the permittee shall also furnish the transmittal number required under section 40-136(b)(13) of this Code, if it has not previously been provided. The permittee shall diligently prosecute the excavation to its final completion within the time authorized under the permit. It shall be unlawful for a permittee to fail, refuse or neglect to diligently prosecute or to timely complete the excavation in accordance with the permit and all applicable rules and regulations and the construction standards adopted in or pursuant to this article.

(b) If a permittee commences an excavation and then fails, refuses, or neglects to diligently prosecute or to timely complete the excavation in accordance with the permit and all applicable rules and regulations and the construction standards adopted in or pursuant to this article, the city engineer may, following written notice to the permittee, perform the excavation or cause a city contractor to perform the excavation. The city engineer shall afford the permittee five days' written notice and opportunity to cure before taking over the excavation, unless the Director of Houston Public Works determines that hazards to public safety and convenience that are posed by the condition of the excavation require a shorter notice period. The city engineer may charge the cost of having the excavation performed, including related administrative expenses, to the permittee. The city engineer shall so notify the permittee, and the permittee shall be obliged to pay the cost within 30 days following receipt of notification. Disputes over costs assessed shall be subject to the hearing process established under section 40-126 of this Code.
(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 06-595, §§ 16, 17, 6-7-06; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-160. Warranty of excavation; correction of defects.

Each permittee shall warrant its excavations against all defects in workmanship and materials for a period of two years after final completion. Whenever within the one year period any portion of the pavement or surface of any public way excavated under such a warranty is, in the engineering determination of the city engineer, in need of repairs, by reason of any defect in workmanship or materials, the city engineer shall serve upon the permittee a written notice stating the repairs necessary, and requiring the repairs to be made within five days after service of the notice. If the repairs are not timely made, the city engineer shall at once make or cause to the repairs to be made at the expense of the

permittee. The expenses, including any related administrative expenses, shall be charged to the permittee, and the permittee shall be obliged to pay the cost within 30 days following receipt of notification. Disputes over costs assessed shall be subject to the hearing process established under section 40-126 of this Code.
(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 06-595, § 16, 6-7-06)

Sec. 40-161. Inspections of excavations.

(a) All excavations shall be inspected by the city. Based upon the complexity and nature of the excavation and as specified in the permit, inspections may be required during the performance of the excavation, immediately upon completion of the excavation, or both.

(b) Consistent with applicable laws, sound engineering practices, and the nature of the excavation, the city engineer may, in addition to or in lieu of the inspections called for under subsection (a), require that a permittee, at the permittee's expense, retain a professional engineer licensed in Texas to observe the excavation and, based upon the observations, to provide written certification upon completion of the excavation stating that the public way has been restored in accordance with the drawings and specifications and all other applicable technical requirements.
(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 01-203, § 4, 2-28-01; Ord. No. 06-595, §§ 16, 18, 6-7-06)

Sec. 40-162. Damage to facility.

A permittee who, in connection with an excavation, damages another owner's facility shall immediately notify the city engineer and, to the extent that the owner's identity is reasonably determinable, the owner of the damaged facility.
(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 06-595, § 16, 6-7-06)

Sec. 40-163. As-built drawings and specifications.

Upon final completion of an excavation, the permittee shall provide to the city engineer a set of as-built drawings and specifications for the excavation, which shall be in a form provided by the rules and regulations promulgated under section 40-128 of this Code. In the event that the work was performed exactly in accordance with the drawings and specifications provided with the permit application, then the permittee may so advise the city engineer in writing, and the previously supplied drawings and specifications will be regarded as the as-built drawings and specifications.
(Ord. No. 00-1115, § 2, 12-20-00; Ord. No. 06-595, § 16. 6-7-06)

DIVISION 4. RESERVED*

Secs. 40-164—40-167. Reserved.

ARTICLE VI. TRANSPORTATION OF EARTH MATERIALS ON STREETS AND ALLEYS

DIVISION 1. GENERALLY

Sec. 40-168. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Earth materials* shall mean dirt, sand, gravel, shell, clay, and any other materials of a similar nature.

(2) *Vehicle* shall mean any truck, wagon, trailer, or any other type of vehicle, conveyance, equipment, or machine used to carry, haul, or to transport earth materials.

(Code 1968, § 41-168)

Sec. 40-169. Owner's name and permit number to be displayed on vehicle.

It shall be unlawful for any person to drive, or to permit any agent, employee, subcontractor, or

*__Editor's note—__Ord. No. 2006-595, § 19, adopted June 7, 2006, repealed Division 4, §§ 40-163—40-167, in their entirety. Formerly said sections pertained to general permits and derived from Ord. No. 00-203, § 5, 2-28-00 and subsequent amendatory ordinances.

other person under his general supervision or control to drive, any vehicle carrying, hauling, or transporting earth materials on the public streets and alleys of the city, unless the name of the owner of such vehicle and the number of the permit provided for by this article is prominently and legibly displayed on each side of such vehicle.
(Code 1968, § 41-170)

Sec. 40-170. Penalty.

Any person violating any provision of this article shall be fined not less than $50.00 nor more than $500.00 for each offense, and a separate offense shall be deemed committed on each day during or on which a violation occurs or continues.
(Code 1968, § 41-171; Ord. No. 92-1449, § 58, 11-4-92)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

Secs. 40-171—40-176. Reserved.

DIVISION 2. PERMIT

Sec. 40-177. Required.

(a) It shall be unlawful for any person to drive, or to permit any employee, agent, subcontractor, or other person under his general supervision or control to drive, any vehicle carrying, hauling or transporting earth materials on the public streets and alleys of the city, unless a permit for the carrying, hauling or transporting of such earth materials is first secured by the owner of such vehicle from the city. No person other than the owner of the vehicle shall be required to secure such permit.

(b) The owner of a vehicle shall be required to secure only one permit under this division, regardless of the number of vehicles which he may operate in the city.
(Code 1968, § 41-177)

Sec. 40-178. Issuance; fee.

The Director of Houston Public Works or his designee ("the director") shall issue a permit for the carrying, hauling or transporting of earth materials to the owner of a vehicle, upon his making a written application and paying the permit fee stated for this provision in the city fee schedule.
(Code 1968, § 41-178; Ord. No. 90-635, § 118, 5-23-90; Ord. No. 93-514, § 81, 5-5-93; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2018-11, § 49, 1-10-2018)

Cross reference—Refund of permit fees paid to Houston Public Works, § 47-49.

Sec. 40-179. To be numbered.

Each permit issued under this division shall have a permit number.
(Code 1968, § 41-179)

Sec. 40-180. Term.

A permit issued under this division shall be valid for one year from the date of issuance.
(Code 1968, § 41-180)

Sec. 40-181. Suspension or revocation.

(a) Any permit issued pursuant to the provisions of this division may be subject to suspension for any period of time not to exceed 30 days or to revocation upon the finding pursuant to a public hearing conducted by the director that the permittee or any of his agents or employees has failed to comply with applicable state laws on transportation of loose materials, provided that the holder of such permit shall be given prior notice of date, time and place of the hearing setting forth the grounds upon which the suspension or revocation is based and affording the holder an opportunity to appear in person and/or by counsel, present evidence and cross examine all witnesses appearing at such hearing.

(b) A person may appeal such suspension or revocation to the city council by filling a written notice of appeal with the city secretary within ten days after he receives notice of the suspension or revocation from the director. The city council shall have the power to uphold the suspension or revocation, or to reinstate the permit. When the city council upholds the revocation of a permit, no new permit shall be issued to

the person whose permit has been revoked until six months have passed since the date of the revocation.
(Code 1968, § 41-181; Ord. No. 90-635, § 119, 5-23-90)

Secs. 40-182—40-191. Reserved.

ARTICLE VII. INSPECTION PERMIT FOR CERTAIN STRUCTURES IN PUBLIC RIGHT-OF-WAY

Sec. 40-192. Findings of city council.

The city council hereby finds and determines:

(1) That the safety, health and welfare of the members of the general public will best be served by requiring periodic inspection, as provided in this article, of all structures, facilities, utility lines and encroachments located within the public streets or right-of-way, including, but not limited to, basements, vaults, tunnels and pipelines; and

(2) That there are numerous structures, facilities, basements and pipelines that were heretofore constructed, built or placed within the public streets without permission or knowledge on the part of the city, and the owners thereof should be required to pay a reasonable inspection fee to defray the city's expense of inspecting the aforesaid structures and facilities for the purpose of assuring protection of the public safety by lawful compliance with applicable provisions of the Construction Code, as well as to regulate the use of the public streets; therefore

(3) The fees for initial installation and each annual inspection stated for this provision in the city fee schedule shall be paid by the permittee as provided by this article, and that such fees are commensurate with and not in excess of the city's expense involved in administering, supervising, inspecting and regulating the use and maintenance of the aforesaid structures or facilities located within said streets, as well as the city's cost pertaining to the regulation of such public streets because of the abutting owner's occupancy, use, and maintenance of encroachments within the public right-of-way. Subsequent to the issuance of an inspection permit, should the cost to the city of such inspection decrease, the inspection fee shall be reduced correspondingly.

(Code 1968, § 41-192; Ord. No. 72-97, § 1, 1-19-72; Ord. No. 82-972, § 2, 6-15-82; Ord. No. 02-399, § 81, 5-15-02; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 40-193. Definition.

As used in this article the term "permittee" shall mean any person who submits or files an original or renewal application with the building official, and shall mean any person who is the holder of an inspection permit provided for in this article or any agent, servant or employee of such person.
(Code 1968, § 41-193; Ord. No. 72-97, § 2, 1-19-72; Ord. No. 90-635, § 120, 5-23-90)

Sec. 40-194. Required; application; revocation.

(a) Any person who owns or leases land which abuts a public street or right-of-way and which abutting land has been improved with any structure, including basements, tunnels, vaults, or facilities, all or a part of which is within the subsurface of the city's right-of-way, shall obtain an inspection permit with regard to the occupancy or maintenance of the aforesaid structures or facilities within any part of the said subsurface of a public street.

(b) Any person who owns or leases land which abuts a public street or right-of-way and who desires to use or occupy any portion of the subsurface of a street by constructing any improvement, structure, basement, or vault within such subsurface area shall obtain an inspection permit therefor.

(c) Any person referred to in subsections (a) and (b) above shall make a written application on a form to be provided by the building official and thereby make a request for an inspection

permit with regard to the occupancy or maintenance of the portion of the subsurface area of the right-of-way which abuts the applicant's property. The application shall contain, in addition to other information, the following:

(1) A map or plat showing the nature and extent of the intended use to be made of any portion of the subsurface of the right-of-way.

(2) The metes and bounds description of the subsurface area.

(3) The number of cubic feet contained in the area to be used.

(d) After the approval of the application, the payment of an inspection permit fee, and the issuance of an inspection permit with regard to the occupancy and maintenance of any improvements, structures, basements, tunnels, vaults or facilities within the city's right-of-way, under the terms and provisions of this article, the building official shall from time to time make inspections of any such structures, improvements, facilities or occupied area. If an inspection reveals that any part of the subsurface structure, improvements, facilities or occupied area within the city's right-of-way does not comply with applicable terms and provisions of the Construction Code and is dangerous or hazardous for human occupancy, the owner or lessee of the structure, improvements or occupied area, shall be notified and required to make such repairs as are necessary in order to comply with the applicable terms and provisions of the Construction Code. If any permittee fails and refuses to allow the building official to come upon or enter the premises of any such structures, improvements, facilities or occupied area for the purpose of making an inspection, he may be prosecuted under the terms of this article, and the building official may revoke the inspection permit for any such occupied area within the city's right-of-way, and such action shall be final, subject to the provisions of paragraph (9) of section 40-197 of this Code.

(Code 1968, § 41-194; Ord. No. 72-97, § 3, 1-19-72; Ord. No. 90-635, §§ 120, 121, 5-23-90; Ord. No. 02-399, § 82, 5-15-02)

Sec. 40-195. Content and conditions of inspection permit.

An inspection permit granted by the city with regard to any part of the city's right-of-way shall be issued pursuant to the terms and provisions of this article, which shall become a part of the inspection permit. The form of inspection permit issued by the building official shall contain a legal description of the property which abuts the city's right-of-way as well as a legal description of the area of the right-of-way proposed to be used and occupied by the permittee; and said inspection permit shall contain an acknowledgement to be made by the applicant, and upon acceptance of the inspection permit, it shall be acknowledged by the applicant.

(Code 1968, § 41-195; Ord. No. 72-97, § 4, 1-19-72; Ord. No. 85-638, § 1, 5-1-85; Ord. No. 90-635, § 122, 5-23-90)

Sec. 40-196. Additional permit conditions when new, remodeling or renovating construction is to be made.

If any person or the owner of land abutting a public street or right-of-way reveals by his application for an inspection permit that any new, remodeling or renovating construction is desired to be made within any part of the city's right-of-way, the requested inspection permit will be issued upon compliance with the terms and provisions of this article, and in addition, upon the following conditions:

(1) The proposed use of the city's right-of-way by any person or the abutting land owner shall not interfere with the city's lawful use thereof; and no inspection permit will be granted without the approval of the building official.

(2) The proposed construction within the city's right-of-way shall be under the supervision of and in accordance with plans and specifications approved by the building official.

(3) At all times during the construction and building of any structure within the city's right-of-way the street or highway shall be kept open for vehicular and pedestrian

traffic in a reasonable manner, and no obstruction of the sidewalks shall be permitted in such a way as to prevent the use thereof by pedestrians; dirt and other material removed from the building and construction of any such structure within the city's right-of-way shall not be permitted or allowed to remain on the street or sidewalk, but all such dirt and other materials shall be removed immediately at the sole cost, risk, liability and expense of permittee; all excavations and obstructions of any kind where permitted during the period of permittee's construction, shall be properly barricaded, and well illuminated during the night time, all subject to the approval of the building official.

(4) After the completion of the construction within the city's right-of-way, the permittee shall at his own cost and expense replace any sidewalks and surface of any streets that were damaged or removed in the construction of any improvement in a condition equally as good as they were immediately prior to the time of excavation or construction, and all of such sidewalks and streets shall be maintained in a good and useable condition for one year after said sidewalks or streets have been replaced, all subject to the approval of the building official. All damage, if any, to said sidewalks and streets caused by the construction, use, maintenance and operation by permittee shall be repaired by and at the cost and expense of the permittee. In the event permittee fails or refuses to proceed with diligence with the performance of any work in connection with the replacement, rebuilding or resurfacing of streets and sidewalks within 30 days after receiving written notice from the building official, the city may do such work or cause same to be done, all at the sole risk, cost, liability and expense of permittee.

(5) The permittee, or his successors, assigns or representatives agree, obligate and bind himself or itself to indemnify and does hereby indemnify and hold and save forever harmless the city, from all liability, cost or damage on account of the construction within the city's right-of-way, or on account of using, occupying, preparing, maintaining and operating any such improvements therein. The permittee also agrees to furnish the building official written evidence that he has in full force and effect during all times of the building and construction within the city's right-of-way, public liability insurance in the amount of not less than $200,000.00 and insurance for property damage in the sum of not less than $100,000.00 covering such buildings and construction.

(Code 1968, § 41-196; Ord. No. 72-97, § 5, 1-19-72; Ord. No. 90-635, § 120, 5-23-90)

Sec. 40-197. General conditions.

Upon the acceptance of any inspection permit with regard to the occupancy or maintenance of any part of a public street or right-of-way, including inspection permits for new construction, remodeling or renovating, within the city's right-of-way, the applicant and all persons in privity withhim, expressly covenant and agree to comply with the terms and provisions of this article and the following conditions:

(1) The city shall have the right at any and all times upon 180 days written notice to the permittee, its representatives, successors or assigns, to take possession of and use all or any part of such city right-of-way in the event that such use be desired or needed by the city, as reasonably determined by the city council, for street, sewer, transportation or any other public or municipal use or purpose, and in such event, the city shall have the right to cancel such inspection permit as to that portion of the property or part of the right-of-way so designated and required by the city.

(2) The permittee shall have the right at any time upon 180 days written notice to the city, to relinquish the use and possession of all or any part of the property or right-of-way covered by the permit as it

may so determine and to cancel said inspection permit as to that part so relinquished. In the event that any part of the property or right-of-way which is included and covered by the inspection permit shall be relinquished or diminished, then the cubic footage remaining and continuing to be used by the inspection permittee and thus requiring inspection shall be determined, and the inspection fee shall be calculated on the basis of the new cubic footage.

(3) Upon the lawful termination of an inspection permit issued hereunder, in whatsoever manner such termination may be made, permittee, assigns, successors and representatives, bind and obligate themselves to restore the city's right-of-way occupied under the provisions of the inspection permit to the original condition as it existed prior to any construction, or to fulfill any other reasonable conditions for the restoration of the right-of-way which may be acceptable to the city council of the city, and should the permittee, assigns, successors, or representatives fail or refuse to do so within 90 days after such termination then in that event the city may do or have done the work necessary for such purpose at the sole cost, risk, liability and expense of permittee, their assigns, successors and representatives.

(4) Upon written consent of the city, acting by and through the building official, the permittee may, at his sole cost, risk liability and expense including public liability and property damage insurance in the amounts specified in section 40-196 of this Code, remove, reroute, reconstruct, lower or raise any existing utility lines, public or private sewer lines, water lines, including storm sewers, pipes or conduits presently located within the city's right-of-way, provided that before changing or interfering with any such utility lines as described aforesaid, the permittee shall notify the respective utility companies and the city, owning or operating the aforesaid utility lines, concerning any and all changes, modifications, rerouting of or any interference whatsoever with the aforesaid utility lines, pipes or conduits. Any necessary changes, modifications, rerouting or interference with the aforesaid utility lines, pipes or conduits shall be done under the direction of the representatives of the respective utility companies or the city, as the case may be.

(5) After the completion of any construction within the city's right-of-way under the terms of an inspection permit granted hereunder, should the city desire to lay or construct its utility lines, including sewer lines, water lines, or any other pipes, or conduits under, across, or along said streets within its right-of-way, any and all additional cost for the laying or construction of the aforesaid utility lines, including pipes and conduits, within said street right-of-way, which may occur by reason of the existence of said construction, shall be paid to the city by the said permittee, his assigns, successors and representatives.

(6) Solely as between the city and the permittee, and not for the benefit of any other person, the permittee, by acceptance of such inspection permit, hereby waives any claim he, or any heirs, successors or assigns might have for damages for loss of lateral support to any other improvements hereby contemplated which loss of lateral support might be occasioned by any improvements which the city, its assigns, grantees, licensees, or permittees might install or construct.

(7) The permittee, or his successors, assigns, or representatives, by the acceptance of such inspection permit, agree, obligate and bind himself or itself to indemnify and does hereby indemnify and hold and save forever harmless solely the city, any of its agencies, and any person, from all liability, cost or damage on account of permittee's use, occupancy and maintenance of any part of the city's

right-of-way and the structures and improvements therein, including, but not by way of limitation, any basements, tunnels or vaults constructed within the subsurface of any public street or right-of-way. This indemnity shall continue in force and effect during the existence of any inspection permits issued under the provisions of this article.

(8) No transfer or assignment of any inspection permit granted under the terms and provisions of this article shall be effective unless and until:

a. The permittee has, in writing, advised the building official of the name and mailing address of the transferee or assignee; and

b. The transferee or assignee has furnished the building official its written agreement to assume and perform all of the duties, covenants and obligations of the inspection permit; and, thereupon, each provision of the inspection permit shall be binding upon, and inure to the benefit of, the transferee or assignee of the permittee.

(9) The breach or violation of any one of the terms, provisions, or conditions set forth in this article shall be sufficient to constitute grounds for the cancellation and forfeiture of the inspection permit granted under the authority of this article. Any such cancellation and forfeiture may be exercised upon 20 days written notice by the city to the permittee, a representative or successor, unless, at the expiration of such time, any such violation or breach has ceased or the permittee is proceeding with all diligence and good faith to remedy any such violation or breach and thereafter continues without delay with such remedial work or correction until such violation or breach has been completely remedied, and, any person violating any of the provisions of this article may be prosecuted as provided herein.

(Code 1968, § 41-197; Ord. No. 72-97, § 6, 1-19-72; Ord. No. 80-3227, § 1, 11-20-80; Ord. No. 85-638, § 2, 5-1-85; Ord. No. 90-635, §§ 120, 123, 5-23-90)

Cross reference—Refund of certain permit fees paid to Houston Public Works, § 47-49.

Sec. 40-198. Intent of article.

It is the intention of the city council by the enactment of this article to lawfully regulate the subsurface use and occupancy of public streets and rights-of-way by persons as defined herein, abutting land owners, and their lessees, and establish an inspection fee, in accordance with the city's general power of control and regulation of public streets and highways as provided by law; however, this article shall not be construed as an assertion by the city of any property rights in derogation of abutting land owner's fee simple title and rights incident thereto, in those cases where the city does not own the fee simple title.
(Code 1968, § 41-198; Ord. No. 72-97, § 7, 1-19-72)

Sec. 40-199. Penalty.

Any person who violates any of the provisions of this article shall be guilty of an offense and upon conviction thereof shall be punished as provided by section 1-6 of this Code. Each and every day that any such violation continues shall constitute a separate offense and shall be punishable as such.
(Code 1968, § 41-199; Ord. No. 72-97, § 8, 1-19-72; Ord. No. 92-1449, § 59, 11-4-92)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

State law reference—Penalty for ordinance violations, Vernon's Ann. Civ. St. arts. 1011, 1195.

ARTICLE VIII. BUS SHELTERS

Sec. 40-200. Construction and maintenance of shelters for users of public transportation.

(a) *Permit required.* It shall be lawful for any person owning or leasing real property abutting the public right-of-way (hereinafter referred as

"landholders") or for any person holding a franchise granting the right, privilege and franchise to place advertising materials upon shelters constructed pursuant to a permit issued under this section (hereinafter referred to as "franchisees") or for the Metropolitan Transit Authority (a governmental entity organized and existing under and pursuant to the provisions of Article 1118x, Texas Revised Civil Statutes) to use and occupy a designated area of the public right-of-way as hereinafter stated for the construction and maintenance of a public transportation structure upon obtaining a permit for each such use and occupancy from the Director of Houston Public Works or his designee (hereinafter referred to as the "director"). All persons seeking such permit shall make a written application on a form provided by the director and thereby make a request for the privilege, license and permission to use, occupy and maintain a designated area of the right-of-way, which area, if the applicant is applying in the capacity of a landholder, must abut the applicant's property. An applicant may request one or more permits in a single application.

(b) *Approval of permits.*

(1) No permit shall issue for the use or occupancy of the city right-of-way until the director of administration and regulatory affairs shall certify to the public necessity of such use, occupancy and maintenance for a public transportation structure.

(2) No permit shall issue for the use or occupancy of the city right-of-way until the director shall certify that such permit will comply with and be consistent with the current city traffic plans and standards.

(c) *Inspection under permit.* After the approval of the application and the issuance of the permit, and the payment of the permit fee stated for this provision in the city fee schedule, the director shall from time to time make inspections of such transportation structures and occupied areas.

(d) *Revocation of permit.*

(1) If any inspection of a public transportation structure, improvement, facilities or occupied area under the provisions of this section reveals that the permittee has failed to comply with the terms and provisions of the Construction Code or that the structure is in a dangerous or hazardous condition for human occupancy, the permittee shall be notified by certified mail to make such repairs as are necessary in order to comply with the terms and provisions of the Construction Code within ten days after the receipt of such notice by certified mail. If the permittee fails to make the repairs or to otherwise comply with this section or the Construction Code, the permit will be revoked.

(2) Upon revocation, the permittee shall have the right to appeal the decision of the director within ten days of the date of such revocation. The decision of the city council on the revocation appeal shall be final. The city shall have the right to remove such public transportation structure from the city right-of-way after the expiration of the ten-day appeal period or to make whatever arrangements with respect thereto as the city council may desire.

(e) *Terms and conditions of permit.*

(1) Any permit granted by the city for the use and occupancy of the city right-of-way shall be issued to the applicant upon the following terms and conditions of this section. In the case of franchisees, the permit holder shall also be subject to the terms and conditions of the franchise.

a. All permits issued by Houston Public Works to an abutting landowner or his lessee shall contain the legal description of the property which abuts the city right-of-way.

b. All permits issued under this section must contain a legal description or plat map of the area of the right-of-way to be occupied by the proposed structure.

c. Upon acceptance of the permit it shall be acknowledged by the applicant and filed for record by the city in the office of the county clerk.

d. The proposed use of the city's right-of-way under a permit shall not interfere with the city's use thereof.

e. The proposed construction within the city's right-of-way shall be under the supervision of and in accordance with plans and specifications approved by the director.

f. At all times during the construction and building of any structure within the city's right-of-way, the street or highway or other public right-of-way shall be kept open for vehicular and pedestrian traffic in a reasonable manner, and no obstruction of the sidewalks shall be permitted so as to prevent the use thereof by pedestrians for an unreasonable period of time; dirt and other material removed from the building and construction of any such structure within the city's right-of-way shall not be permitted or allowed to remain on the street or sidewalk and all such dirt and other material removed from the building and construction site shall be at the risk, liability and expense of the permittee; all excavations or obstructions of any kind which are permitted during the period of permittee's construction, shall be properly barricaded, and well-illuminated during the night time, all subject to the approval of the director.

g. After the completion of the construction within the city's right-of-way, the permittee shall at his own cost and expense replace any sidewalks and surface of any streets that were damaged or removed in the construction of any improvement in a condition equally as good as they were immediately prior to the time of excavation or construction and all of such sidewalks and streets shall be maintained in a good and usable condition for one year after said sidewalks and streets have been replaced, all subject to the approval of the director. All damage, if any, to said sidewalks and streets caused by the construction, use, maintenance and operation by the permittee shall be repaired by and at the cost and expense of the permittee. In the event the permittee fails or refuses to proceed with diligence with the performance of any work in connection with the replacement, rebuilding or resurfacing of streets and sidewalks within 30 days after receiving written notice from the director the city may do such work or cause same to be done all at the sole risk, liability and expense of the permittee.

(f) *Conditions of use and occupancy after construction.* In general, it shall be a condition of such use and occupancy that any structure shall be made available without discrimination at all times to all persons using public transportation.

(1) Insurance. Permittee agrees that as a condition of such use and occupancy of the right-of-way that he shall provide written evidence that he has in full force and effect, during such use and occupancy, public liability insurance in the amount of not less than $300,000.00 per accident for property damage and $300,000.00 for public liability for accidental bodily injuries or death occurring in relation to or arising out of the permittee's maintenance, occupancy or use of the right-of-way.

(2) The city shall have the right at any and all times upon 30 days' written notice by certified mail to the permittee, its representatives, successors or assigns to

take possession of and use all or any part of such city right-of-way in the event that such use be desired and needed by the city as determined by the city council for street, sewer, transportation or any other public or municipal purpose or use. In such event, the city shall have the right to cancel his license and permit as to the portion of the property or part of the right-of-way so designated and required by the city.

(3) The permittee shall have the right at any time upon 30 days' written notice to the city to relinquish and give up to the city the use and possession of all or any part of the property or right-of-way described in the permit as it and the city may so cancel the license and permit as to that part so relinquished and given up.

(4) All privileges, licenses and permits granted hereunder shall, subject to the terms and provisions of this section and unless not otherwise renewed or extended, remain in force and effect for a period not to exceed ten years from and after the issuance of the permit hereunder. Should a franchisee's franchise expire or terminate sooner than said ten years, any permits held by the franchisee shall terminate simultaneously. Upon the termination of the privilege and permit issued hereunder and unless otherwise provided for by any franchise agreement, permittee, assigns, successors and representatives bind and obligate themselves to restore the city's right-of-way occupied under the provisions of the permit to the original condition of such right-of-way as it existed prior to any construction or to fulfill any other condition for the continued existence of the structure or restoration of the right-of-way which may be acceptable to the city council, and should the permittee, assigns, successors or representatives fail or refuse to do so within 30 days after such termination, then, in that event the city may do or have done the work necessary for such purpose at the sole cost, risk and liability and expense of permittee, their assigns, successors and representatives.

(5) After the completion of any construction within the city's right-of-way under the terms of a permit granted hereunder, should the city desire to lay or construct its utility lines including sewer lines, water lines or any other pipe or conduit under, across or along said street within its right-of-way, any and all additional cost in the laying or construction of the aforesaid utility lines including pipes and conduits within said street right-of-way which may occur by reason of the existence of the construction or occupancy granted to permittee under the terms hereof shall be paid to the city by the said permittee, his assigns, successors and representatives.

(6) By the acceptance of such permit the permittee, his assigns, successors and representatives agree, obligate and bind himself or itself to indemnify and does hereby indemnify and hold and save forever harmless solely the city, insofar as said city is concerned from all liability, cost or damage on account of the use, occupancy or maintenance of any part of the city's right-of-way and the structures and improvements therein. This indemnity shall continue in force and effect during the existence of any permit or permits issued under the provisions of this section.

(7) No transfer or assignment of any permit granted under the terms and provisions of this section shall be made without the approval of the city council.

(8) No permittee shall knowingly cause, permit or allow any advertising materials, posters, billboards, handbills of any nature whatsoever to be posted, distributed or allowed to remain within any structure or upon the premises of the public transportation structure for which such permittee holds authority to use or occupy the city's right-of-way pursuant

to this section; provided, however, an incidental use of a structure for advertising purposes by a permittee shall be lawful if the permittee holds a franchise granting such privilege upon such terms and conditions as the city council may impose.

(g) The breach or violation of any one of the terms, provisions or conditions set forth in subsections (e) and (f) hereof shall be sufficient to constitute grounds for the cancellation and forfeiture of the privilege, license and permit granted under the authority of this article. Any such cancellation and forfeiture may be exercised upon 20 days' written notice by the city to the permittee, a representative or successor unless at the expiration of such time any such violation or breach has ceased or the permittee is proceeding with all diligence and good faith to remedy such violation or breach and thereafter continues without delay with such remedial work or correction until such violation or breach has been completely remedied.

(h) It is the intent of the city council by the enactment of this section to regulate the surface, use and occupancy of public rights-of-way by persons as defined herein, specifically those landowners and their lessees abutting the city right-of-way and franchisees in accordance with the city's general power of exclusive dominion, control and regulation of the public streets and highways as provided by law. However, this section shall not be construed as an assertion by the city of any property rights in derogation of the abutting landowner's fee simple title in those cases where the city does not own the fee simple title.

(Code 1968, § 41-200; Ord. No. 72-1850, § 1, 10-11-72; Ord. No. 78-1870, § 1, 9-20-78; Ord. No. 79-1281, §§ 1, 2, 8-7-79; Ord. No. 90-635, § 124, 5-23-90; Ord. No. 93-514, § 82, 5-5-93; Ord. No. 02-399, § 83, 5-15-02; Ord. No. 08-52, § 67, 1-16-08, eff. 1-26-08; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2018-11, §§ 49, 50, 1-10-2018)

Secs. 40-201—40-227. Reserved.

ARTICLE IX. PIPELINES, CONDUITS, ETC., ACROSS, ALONG OR UNDER STREETS*

Sec. 40-228. Definitions.

For the purposes of this article, the following terms have the meaning ascribed to them in this section, unless the context clearly indicates otherwise:

Abandoned pipeline means a pipeline in any portion of a street that the permittee has permanently disconnected from an operating pipeline.

Director means the Director of Houston Public Works or his or her designee.

Effective date means the effective date of this article which is December 11, 2001.

Emergency refers to an incident that may cause an immediate threat to public health, safety, or welfare, including an incident in which any of the following has occurred, is occurring or is imminent: (i) fire or explosion not initiated by the permittee as part of its operations, in accordance with accepted safety practices; (ii) release of an explosive gas, hazardous liquid or chemical that could adversely affect the environment or health of individuals, livestock, domestic animals, and wildlife; (iii) death of any person; (iv) bodily harm of any person that results in loss of consciousness, the need to assist a person from the scene of an incident or the necessity of medical treatment in excess of first aid; (v) damage to private or public property not owned by the permittee in excess of $5,000.00 in combined values; or (vi) the rerouting of traffic or evacuation of buildings.

Existing pipeline means a pipeline, including an abandoned pipeline, in any portion of a street as of the effective date of this article.

Gathering system means a pipeline or system of pipelines, in any portion of a street, operated as incident to the development or operation of an oil and/or gas field within or adjacent to the

*__Cross references__—Oil and gas wells, Ch. 31; installation of pipelines for oil and gas wells under public property, § 31-46 et seq.

corporate limits of the city, including but not limited to lines for gathering liquids or gases from wells, tanks, or field pumping stations, for the transportation of water (including salt water) for mineral drilling and production purposes, and for transportation of liquids or gases produced from the field to other locations within the field for operational, gathering, or drilling purposes or to a gas plant or pipeline not included in such gathering system.

New pipeline means a pipeline other than an existing pipeline in any portion of a street.

Permit ordinance means a permit ordinance enacted by city council pursuant to this article.

Permitted affiliate means a person controlling, controlled by, or under common control with permittee, which has (or for which permittee has) agreed, in a form approved by the city attorney, to unconditionally assume all duties, obligations, and liabilities of permittee under this article and/or a permit ordinance, without regard to the legal status of such person.

Permittee means a person, its successors and assigns, and permitted affiliates named in a permit ordinance.

Person means an individual, corporation, joint venture, partnership, limited liability company, limited partnership, limited liability partnership, municipality, or other legal entity, including but not limited to trustee, assignee, receiver, and personal representative.

Pipeline means a system of physically connected lines of pipe through which gas or liquids move in transportation and which are operated as a single unit under normal operating conditions, including but not limited to spurs, laterals, valves, corrosion protection devices, and other appurtenances attached to and part of the operation of the line of pipe. Each gathering system shall be treated as one pipeline for all purposes of this article and each permit ordinance.

Street means, but is not limited to in any manner, the surface, land below and airspace above any public street, road, avenue, highway, freeway, bridge, tunnel, alley, boulevard, sidewalk, parkway, lane, drive, circle, or other public right-of-way (each irrespective of its extent of public use or whether opened to vehicular traffic) in the corporate limits of the city, as may be established from time to time. "In" the street means across, along, under, or over a street.
(Ord. No. 01-1078, § 2, 12-5-01; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-229. Violations of article.

(a) It shall be a violation of this article for a person to knowingly make a material misrepresentation of any information reported under this article or to own, maintain, operate, acquire, construct, or extend a pipeline in the street except in accordance with the provisions of this article.

(b) A material and willful violation of any section, subsection, or part of this article may be subject to a fine of not more than $1,000.00, which shall be assessed per day following any failure to comply within 15 business days after notice from the director.

(c) The city shall be entitled to injunctive relief in a court of appropriate jurisdiction to prevent violation of or to compel compliance with the provisions of this article, in addition to all other rights and remedies available to the city.
(Ord. No. 01-1078, § 2, 12-5-01)

Sec. 40-230. Scope of article.

This article applies to each pipeline in a street or streets. No permit ordinance shall authorize the transport or distribution of natural gas by a permittee or applicant whose use of streets is subject to city action or approval under Texas Revised Civil Statutes article 1175. Nothing contained in this article shall preclude the city imposing other or additional fees or charges for the use or presence of pipelines in its streets if the city is required or allowed to assess such fees or charges pursuant to Texas Tax Code § 182.025, or other applicable federal, state or local law, now or hereafter existing, which authorizes the city to make a charge for the use of its streets in excess of the charges set forth in section 40-234(f) of this Code. Such other fees or charges, if assessed by the city, shall be in lieu of the charges set forth in section 40-234(f) of this

Code, but the remaining terms and provisions of any permit ordinance then in effect shall remain in full force and effect, save and except of any conflict with the applicable law under which the other fees or charges are assessed.
(Ord. No. 01-1078, § 2, 12-5-01)

Sec. 40-231. Permit ordinance required.

No person may own, maintain, operate, acquire, construct, or extend a pipeline in a street except in accordance with a permit ordinance enacted in accordance with this article.
(Ord. No. 01-1078, § 2, 12-5-01)

Sec. 40-232. Application process.

(a) Application for a permit ordinance shall be made to the director and shall include:

(1) For all existing pipelines:

(a.) Maps or schematic drawings, in a format to be approved by the director, showing the route within the city of each pipeline including its location and elevation in every street (elevation need not be supplied for gathering systems, or if not economically feasible);

(b.) The diameter, normal operating pressure range and the maximum allowable operating pressure of each existing pipeline, other than a gathering system, within the city;

(c.) The materials transported by each existing pipeline within the city;

(d.) The location of shutoff valves for every segment of a pipeline in a street;

(e.) The business address and telephone number of the person responsible for the operation of each existing pipeline;

(f.) The business address and telephone number of the owner of each existing pipeline;

(g.) The telephone number of at least one emergency contact available on a 24-hour basis; and,

(h.) Such other information as the director shall reasonably request.

(2) Certificates of insurance for the coverages set forth in this article; and;

(3) The name, address and telephone number of permittee and the names of its permitted affiliates, if any.

(b) If the application is in compliance with the terms of this article the director shall recommend to the city council that it enact a permit ordinance.

(c) If the director believes the application is not in compliance with the terms of this article, the director shall notify the applicant in writing of the specific deficiencies found.

(d) If the applicant re-files its application and/or amends its application to correct all deficiencies noted by the director, the director shall recommend to the city council that it enact a permit ordinance.

(e) A permit ordinance will constitute permit for pipelines owned or operated by the permittee or any permitted affiliate designated by the permittee in its application. Permittee may add additional permitted affiliates under its permit from time to time by submitting to the director a suitable written assumption by or on behalf of the permitted affiliates of all duties, obligations, and liabilities of a permittee under this article in accordance with section 40-234(m) of this Code.

(f) The director shall endeavor to process applications within 120 days after their submittal, refiling, or amendment, as applicable.
(Ord. No. 01-1078, § 2, 12-5-01)

Sec. 40-233. Form of permit ordinance.

Every permit ordinance enacted pursuant to this article shall permit, on the conditions provided in this article, the construction, operation,

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maintenance, improvement, repair, and replacement in the street of pipelines (including new pipelines constructed pursuant to construction permits granted under subsection (c) of section 40-234) owned or operated by permittee or any designated permitted affiliate and within the scope of this article. The city attorney shall prepare each permit ordinance recommended by the director consistent with this article.
(Ord. No. 01-1078, § 2, 12-5-01)

Sec. 40-234. Conditions of permit ordinance.

(a) *Term.* The term of the permit ordinance, subject to the termination provisions, shall be for a period of a maximum of 30 years from and after its effective date.

(b) *Material transported.* Permittee may operate pipelines authorized under the permit ordinance for the purpose of transporting the material or materials indicated in the application or in accordance with any notice filed with the director pursuant to subsection (d) below. If permittee changes the material transported in a pipeline, the permittee shall notify the director in accordance with subsection (d) below.

(c) *Permit for new pipeline.*

(1) *Application requirements.* From time to time during the term of a permit ordinance, permittee may file an application to construct a new pipeline (including an extension of a previously constructed pipeline) in a street. To apply, permittee shall submit to the director the information set forth in section 40-232(a)(1) of this Code. Notwithstanding anything contained in this article or in any permit ordinance to the contrary, the director shall not approve any application for a new pipeline (other than a replacement pipeline) which is intended to be constructed so as to run within and parallel to the right of way of a street for a distance of 5,000 or more consecutive feet, unless expressly authorized by the city council.

(2) *Permit approval process.* If permittee has supplied the required information to the director, and the director determines that the new pipeline will not unduly interfere with the construction, maintenance, or use of any existing or planned public work or utility in the affected streets, the director shall permit the new pipeline by issuing an addendum to the existing permit ordinance. If the director does not approve the application, the director will notify permittee in writing of the basis of the failure to approve, and permittee may re-file its application to cure any deficiency capable of cure by permittee. The director shall endeavor to process applications within 120 days after their submittal, or refiling.

(3) *Construction permit required.* Permittee shall not construct or cause to be constructed a new pipeline in a street without obtaining a permit for such construction from the director in accordance with this subsection.

(d) *Updating information.* Permittee shall update permit information within 30 days after changes occur. Permittee shall not transport in a pipeline any material other than materials set forth in its application and prior notices, or operate pipelines in excess of their maximum operating pressure or disable any shutoff valve, without notifying the director of such change ten days or more prior to such change. Upon request by the director, made no more frequently than annually, permittee shall certify in writing to the director that permittee's information filed with the city is true, correct and complete.

(e) *Abandoned pipeline.*

(1) Permittee shall notify the director of the location of each abandoned pipeline owned by permittee in the street as of the effective date and, on request, notify the director of the manner in which such pipeline has been retired from service, to the extent such information is available.

(2) In the event a pipeline that is permitted under a permit ordinance becomes an abandoned pipeline, permittee shall notify the director as soon as practicable. The director may request the permittee to remove such abandoned pipeline from the street (and if objected to by permittee,

only if city council so directs), and in such instance, permittee shall obtain all building permits and street-cut permits, and effect such removal within 120 days.

(3) Permittee shall not be required to pay any fees under its permit ordinance for an abandoned pipeline following the date of its abandonment, however, permittee shall not be allowed any credit or rebate for any fees previously paid for an abandoned pipeline.

(f) *Fees.* Permittee shall pay the applicable fees stated for this provision in the city fee schedule to the city on or before the stated due date.

For purposes of this subsection, a permittee and its permitted affiliates shall be considered to be one person. The foregoing fees are commensurate with the city's expenses in administering, supervising, inspecting, and regulating pipelines in streets. The city does not waive by assessing the foregoing fees and expressly reserves its right *(i)* under Texas Tax Code § 182.025 to make a reasonable lawful charge for the use of a street in the city by a public utility, as defined therein, to distribute gas, and *(ii)* to assess any other lawful fees or charges.

(g) *Miscellaneous.* All costs and expenses connected with a pipeline, including without limitation costs and expenses for the operation, maintenance, repair, and insurance of the pipeline, shall be permittee's sole responsibility. The pipeline and the internal or external, structural, electrical or mechanical apparatus and hardware included therein shall at all times during the term of the permit ordinance be the sole property of permittee or the person for whom permittee operates the pipeline. Furthermore, throughout the term of a permit ordinance, permittee shall at all times, maintain, operate and repair the pipeline in accordance with all applicable laws. The city retains the right to make visual, non-invasive inspections of the pipeline and on request of the director from time to time, to require permittee to provide available records or data to demonstrate its current compliance with the terms of this article.

(h) *Restoring streets.* In installing, maintaining, repairing or removing a pipeline, permittee shall not disturb water mains or sanitary or storm sewers without the approval of the director, except during an emergency. Permittee shall, at its sole cost and expense, refill and repair (including by repaving any cut in any pavement or sidewalk) all excavations made by permittee in the street or any adjacent public right-of-way or other city property and all damage to water mains and sanitary and storm sewers in connection with the maintenance, operation, repair or removal of any pipeline.

In the event that permittee fails to commence or thereafter to diligently prosecute any required repair, refilling or other work so required to be done by the permittee, following notice and opportunity to cure as provided for in this article, then the city may cause such work to be done and may recover all costs thereof from permittee together with all court costs and reasonable attorney's fees.

(i) *Removal.* The city council reserves the right, subject to the terms of this article, to require permittee to remove a pipeline from the street and cause the street to be restored to the same condition, or in as good a state of repair or condition, as said street was in prior to placement or removal of the pipeline, whenever required to maintain the safe condition of the city's use of the street or for the construction of public works.

(j) *Other ordinances.* Permit ordinances issued under this article are in all respects subject to the charter and ordinances of the city, including but not limited to section 40-4 of this Code, article V of this chapter, the regulations issued pursuant to section 40-128 of this Code, the Construction Code, the Fire Code, and such future charter provisions and ordinances as may be hereafter passed and adopted by the city, except that (i) the insurance and indemnity provisions of this section shall pre-empt the requirements of sections 40-136(b)(8) and 40-147 of this Code and (ii) sections 40-143 and 40-145 of this Code shall not apply to pipelines within the scope of this article.

(k) *Relocations.* When found necessary by the director to facilitate the construction of public works, permittee shall lower, adjust or remove a

pipeline in a street. It is the purpose of this subsection that improvements, changes and alterations in existing streets covered by this article, including right-of-way and water, sanitary sewer or storm sewer lines, shall in no wise be hampered by permittee's pipeline. All work incident to the lowering and/or relocation of permittee's pipeline, or of removing a permittee's pipeline pursuant to subsection (i) of this section, shall be done at the sole expense of permittee, unless there was no street, street easement or public way at such location prior to the installation of the pipeline or pipeline easement, in which case the city shall bear the expense of relocation or removal. In the event of a dispute, permittee shall bear the burden of proving no prior street or street easement.

(l) *Successors.* The permit ordinance and all limitations and obligations imposed thereby and under this article shall inure to the benefit of and be binding upon the successors, in law or otherwise, of permittee.

(m) *Acceptance of permit ordinance.* Permittee shall file a written acceptance of the permit ordinance with the city secretary within 30 days after the date of passage thereof and shall thereupon be bound by all of the terms and conditions hereof. Such written acceptance shall constitute, whether or not expressly stated therein, an acceptance of and agreement to observe and perform all limitations and obligations contained in this article. A permit ordinance shall commence and inure to the benefit of permittee, effective immediately upon the filing of such written acceptance by permittee. An acceptance by permittee or a permitted affiliate satisfies the requirements of this subsection if it is in writing, signed in the name of such person by an authorized officer, addressed to the city, and provides substantially as follows:

> '[*Name of permittee or permitted affiliate*] [, on behalf of itself and each permitted affiliate named therein,] hereby fully accepts City of Houston Ordinance No. [*number of permit ordinance*] and expressly agrees to fully observe and fully perform all limitations and obligations contained in chapter 40, article IX, Code of Ordinances, City of Houston, and further certifies to the city all of permittee's information filed with the city in connection with the issuance of such permit ordinance is true, correct and complete.'
>
> If permittee or a permitted affiliate is an entity other than a natural person, such entity shall file with such acceptance a copy of its corporate resolution or other document ("authorization") appropriate to demonstrate that such entity is duly authorized to accept the permit.

(n) *Enforcement.* The city attorney or his designee shall have the right to enforce all legal rights and obligations under the permit ordinance without further authorization. Permittee shall provide to the director, director of administration and regulatory affairs and city attorney documents and records that the director, director of administration and regulatory affairs and city attorney deems reasonably necessary to determine permittee's compliance with the permit, with the exception of those documents made privileged and/or confidential by federal or state law or regulation or any documents that would be privileged under the Texas Rules of Civil Procedure.

(o) *Indemnity; release.* Permittee shall release, protect, defend, and hold harmless the city, its employees, officers, and legal representatives (collectively in this section, the "city") from any and all permittee and/or third party claims, demands, and liability, including defense costs, relating in any way to damages, claims, or fines (collectively, "claims") arising by reason of or in connection with: (1) the city's actual or alleged negligence arising solely from the grant of, administration of, or operations under a permit ordinance, including but not limited to the city's approval of work plans, city inspection of the permittee's pipelines or the repair or maintenance thereof, the city's receipt or failure to receive insurance policies, or similar acts or omissions of the city in connection with its rights, duties, or obligations under the permit ordinance together with (2) permittee's actual or alleged negligence in the construction, maintenance, or operation of its pipelines in the rights of way under the permit ordinance, provided, however, that the permittee shall not be required to indemnify or pay the defense costs of the city where: (1) the claims arise in whole or in part out of permittee's compliance with the city's

directives (other than those ordering compliance with applicable laws, ordinances, rules, or regulations) relating to the time, place, or manner of the activities of permittee alleged or found to be negligent; and additionally (2) there is a finding in a final, nonappealable order or judgment that the city is 51 percent or more at fault.

(p) *Insurance.* Permittee shall provide and maintain in full force and effect during the term of its permit ordinance at least the following insurance:

(1) Worker's compensation at statutory limits;

(2) Employer's liability, including bodily injury by accident and by disease, for $500,000.00 combined single limit per occurrence and a 12-month aggregate policy limit of $1,000,000.00;

(3) Commercial general liability coverage, including blanket contractual liability, products and completed operations, personal injury, bodily injury, broad form property damage, operations hazard, pollution, explosion, collapse and underground hazards for $5,000,000.00 per occurrence and a 12-month aggregate policy limit of $10,000,000.00; and

(4) Automobile liability insurance (for automobiles used by the permittee in the course of its performance under the permit, including employer's non-ownership and hired auto coverage) for $2,000,000.00 combined single limit per occurrence.

The director of administration and regulatory affairs shall adjust the above minimum liability limits every five years during the term to compensate for the effects of inflation and with the objective to reestablish the value of coverage required as of the effective date.

Each policy or an endorsement thereto, except those for worker's compensation and employer's liability, shall name the city and its officers, employees and agents as additional insured parties, but limited to risks indemnified pursuant to subsection (o) of this section. If any such policy is written as "claims made" coverage and the city is required to be carried as an additional insured, then permittee shall purchase policy period extensions so as to provide coverage to the city for a period of at least two years after the last date that the permit ordinance is in effect. No deductible shall exceed ten percent of the minimum limits of liability or one percent of the consolidated net worth of permittee and its permitted affiliates, whichever is greater.

Permittee shall assume and bear any claims or losses to the extent of deductible amounts and waives any claim it may ever have for the same against the city and its officers, agents or employees in respect of any covered event.

All such policies and certificates shall contain an agreement that the insurer shall notify the director of administration and regulatory affairs in writing not less than 30 days before any material change, reduction in coverage or cancellation of any policy. Permittee shall give written notice to the director of administration and regulatory affairs within five days of the date upon which total claims by any party against permittee reduce the aggregate amount of coverage below the amounts required by the permit.

Each policy must contain an endorsement to the effect that the issuer waives any claim or right in the nature of subrogation to recover against the city, its officers, agents or employees.

Each policy must contain an endorsement that such policy is primary insurance to any other insurance available to the city as an additional insured with respect to claims arising thereunder.

Permittee shall be entitled to purchase and maintain the insurance required under this subsection under so-called "blanket policies," provided the coverage thereunder is at least at the levels contained herein and is otherwise adequate in keeping with prudent underwriting standards.

At the time of application, and at the director of administration and regulatory affairs' request, permittee shall provide certificates of insurance reflecting that the terms of this subsection have been met. Notwithstanding

the proof of insurance requirements set forth in this subsection, permittee, throughout the term of its permit, continuously and without interruption, shall maintain in force the required insurance coverages set forth in this subsection.

In lieu of maintaining policies of insurance described in this subsection, permittee may elect to self-insure against the risks described in this subsection, provided that permittee submits to the director documents showing either (i) self-insurance reserves or other assets sufficient to pay judgments equal to the minimum limits of liability set forth in this subsection, or (ii) a net worth that exceeds ten times the aggregate minimum limits of liability set forth in this subsection. If, during the term of a permit ordinance, any such self-insurance program ceases or the self-insured's assets, reserves or net worth are no longer adequate to provide the above coverages, permittee shall immediately notify the city of such lapse of coverage and obtain or cause to be obtained commercial insurance in accordance with the requirements of this subsection within 30 days. If permittee self-insures, permittee has a duty to defend the city in the same manner as a permittee with insurance in any suit seeking damages against the city in connection with permittee's pipeline, and permittee will pay all costs and expenses of such defense or reimburse the city for all costs and expenses incurred by the city for such defense."

(q) *Events of termination.* A permit ordinance issued under this article shall, at the option of the city council, terminate (as to the affected pipeline or portion thereof only in the event of an occurrence under items (1), (5) or (6) of this subsection) upon the occurrence of any one or more of the events described below (collectively referred to herein as 'events of termination'). Each event of termination is a separate and independent basis for termination of the permit (or application thereof to the affected pipeline or portion thereof, as applicable). The events of termination are as follows:

(1) The city council, in its legislative discretion, determines that the existence or operation of a pipeline, or any part thereof, constitutes a hazard, nuisance or other threat to the public health, safety or welfare or that the existence or continued operation of the pipeline, or any part thereof, interferes with the current or prospective use of a street. Termination under this subsection shall be by ordinance and become effective after permittee has been given 180 days' notice of such termination, unless circumstances comprising a bona fide emergency and an imperative public necessity warrant more immediate termination.

(2) Expiration of the term of the permit ordinance.

(3) Permittee fails to timely pay any of the fees herein provided for or is delinquent in the payment of any charges due under the permit ordinance.

(4) Permittee fails to maintain at any time the insurance as required in this article.

(5) Permittee fails to commence or thereafter to diligently prosecute to completion any required maintenance, repair or other work required by this article to be done by permittee within 30 days after being notified of such required action by the director. In the event of an emergency, notice shall be deemed given and received after telephone contact with an authorized officer or director of permittee, and permittee shall commence the requested repairs within 24 hours.

(6) Permittee abandons the pipeline.

(7) Permittee fails to file a written acceptance of the permit ordinance within the time and in the manner prescribed in this article.

(8) Permittee fails to comply with any of the terms, conditions or provisions of the permit ordinance or this article.

(9) Permittee commences dissolution or some other similar proceeding that would impair, modify, alter, extinguish or significantly change permittee's ability to perform permittee's obligations under the permit ordinance.

Upon the occurrence of an event of termination described in item (1) or (2) of this subsection, such an event of termination may not be cured by permittee and the permit ordinance shall terminate (only as to the affected pipeline in the event of termination pursuant to item (1), (5), or (6) of this subsection) in the manner and in accordance with the applicable provisions of said subsections and the permit ordinance. Upon the occurrence of one or more of the events of termination other than in item (1) or (2) of this subsection, the director or director of administration and regulatory affairs shall so notify permittee in the manner provided in the permit ordinance. After such notice, permittee shall have 30 days in which to cure the event of termination. Should permittee fail or refuse to cure the event of termination within the 30-day time period prescribed, city council may terminate the permit ordinance (only as to the affected pipeline or portion thereof in the event of termination pursuant to item (5) or (6) of this subsection; provided that if permittee commences efforts to cure such event of termination within 30 days after receipt of such written notice and thereafter prosecutes such efforts with reasonable diligence in the sole determination of city council until such event of termination is cured, then such event of termination shall cease to exist and no action to terminate the permit ordinance or an application thereof will be taken. Failure of the city to enforce its rights and remedies under this section with respect to one event of termination shall not operate as a waiver of the city's right to thereafter enforce its rights and remedies with respect to any such continuing event of termination or another event of termination. Termination of the permit ordinance or an application thereof shall not waive, release or satisfy any duty, covenant or obligation of permittee under this article or the permit ordinance which permittee has not fully performed as of the time of termination.

(r) *Transfer of authority.*

(1) *Notice.* A person may acquire and own pipeline prior to being permitted pursuant to this article if (i) the permittee notifies the city within ten days of the transfer of ownership, and (ii) permittee retains all responsibilities associated with the permit until the city approves the transfer of the permit.

(2) *Prohibition.* Neither the permit ordinance nor the permit granted thereby may be assigned, in whole or in part, without the prior consent of the city council expressed by resolution or ordinance, and then only under such conditions as may therein be prescribed. No assignment in law or otherwise shall be effective until the assignee has filed with the director an instrument, duly executed, reciting the fact of such assignment, accepting the terms of this article, and agreeing to comply with all of the provisions of the permit ordinance. A mortgage or other pledge of assets in a bona fide lending transaction shall not be considered an assignment for the purposes of this section.

(3) *Process.* Upon receipt of a request for consent to an assignment, the director shall diligently investigate the request in a timely manner and recommend placement of the request on the city council agenda at the earliest practicable time. The city council shall proceed to act on the request within a reasonable period of time.

(4) *Scope of review.* In reviewing a request for consent to an assignment, the city may inquire into the technical and financial qualifications of the prospective assignee, and permittee shall assist the city in so inquiring.

(5) *Assignments not requiring approval.* Notwithstanding anything to the contrary contained in this section, the approval of the city shall not be required for any assignment (1) to any permitted affiliate; (2) to any entity with which permittee or an affiliate of permittee shares joint ownership of the pipeline, as long as permittee is retained as the manager of day-to-day pipeline operations; or (3) to any entity that is a holder of a then current permit ordinance enacted by the city on or

after the effective date. Permittee shall give written notice of such assignment to the director.

(6) *Release.* Upon receiving the director's consent to an assignment or, in the event of an assignment qualifying under subsection (r)(5), upon giving notice under subsection (r)(5), the assigning permittee shall be relieved of all conditions, obligations, and liabilities arising or which might arise under the assigned permit, from and after the date of assignment.

(s) *Cathodic protection.* Any cathodic protection system used with permittee's pipelines shall not cause any existing public facilities in the vicinity of the pipeline and known to permittee to be sacrificed or experience materially accelerated corrosion as a result of the operation of such cathodic protection system.
(Ord. No. 01-1078, § 2, 12-5-01; Ord. No. 02-399, § 84, 5-15-02; Ord. No. 08-52, §§ 68, 69, 1-16-08, eff. 1-26-08; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 40-235. Effect of other laws.

The provisions of this article shall be subject to any federal and state legislation, rules, or regulations, presently or hereafter enacted or adopted, to the extent that said laws and regulations preempt or supersede the authority of the city with respect to this article or any provision hereof.
(Ord. No. 01-1078, § 2, 12-5-01)

Secs. 40-236—40-249. Reserved.

ARTICLE X. PAVING ASSESSMENTS*

Sec. 40-250. Declaration of policy.

It is hereby declared to be the policy of the City of Houston that a dwelling claimed as a residence homestead which is located in an area where deed restrictions do not exist, or where such restrictions are of doubtful enforceability, shall, for paving assessment purposes, be treated similarly to a dwelling located in an area having enforceable deed restrictions, to the extent that is practicable.
(Ord. No. 87-285, § 1, 2-25-87)

Sec. 40-251. Definitions.

The following words and phrases shall be defined as follows:

(1) *Eligible,* when used to modify "unrestricted homestead property," as herein defined, shall mean that the ordinance closing the hearing and assessing the benefits has not been adopted at the time of the effective date of this article.

(2) *Equivalent assessment* shall mean that part of the paving assessment on an eligible unrestricted homestead property which would be applicable to a similar restricted dwelling.

(3) *Excess assessment* shall mean the amount by which an assessment on an eligible unrestricted residence homestead property exceeds the assessment on a similar restricted dwelling.

(4) *Exemption* shall mean a residence homestead exemption recognized by the H. C. A. D., as herein defined.

(5) *H. C. A. D.* shall mean the Harris County Appraisal District, or where appropriate, any other governmental entity or agency which has, or previously had, authority to recognize residence homestead exemptions.

(6) *Owner* shall mean one or more persons who have legal title to an unrestricted residence homestead property.

(7) *Restricted dwelling* shall mean a dwelling located in an area which has enforceable deed restrictions.

(8) *Unrestricted residence homestead property* shall mean a dwelling claimed as a homestead and located in an area having

*__Cross references—__Taxation generally, Ch. 44; paving assessment lien releases—Authority to execute § 44-20.

no deed restrictions, or where such deed restrictions are of doubtful enforceability.

(Ord. No. 87-285, § 1, 2-25-87)

Sec. 40-252. Reduction of excess assessment—Amount.

The personal obligation of the owner of an eligible unrestricted residence homestead property for payment of the excess assessment levied against such property may be reduced and cancelled by one-tenth of the amount of such excess assessment for each year of occupancy in which the owner has received an exemption from the H.C.A.D. and furnishes proof thereof to the department of finance.

(Ord. No. 87-285, § 1, 2-25-87; Ord. No. 08-52, § 70, 1-16-08, eff. 1-26-08)

Sec. 40-253. Same—Procedure.

An owner desiring to reduce and cancel the amount of the excess assessment on eligible unrestricted residence homestead property shall:

(1) Apply to the finance department of the city for the reduction and cancellation of the excess assessment;

(2) Furnish with such application proof satisfactory to the finance department that the eligible unrestricted residence homestead property was occupied by the owner at the time the initiation ordinance for the paving improvement was passed;

(3) Furnish proof the owner had received an exemption from the H.C.A.D. for the year in which the initiation ordinance was adopted; and

(4) Annually furnish proof to the finance department of the city that the H.C.A.D. has continued to grant an exemption for such eligible residence homestead property so long as the owner remains qualified to claim a reduction or cancellation of the excess assessment as herein provided.

(Ord. No. 87-285, § 1, 2-25-87; Ord. No. 08-52, § 71, 1-16-08, eff. 1-26-08)

Sec. 40-254. Obligation for payment of equivalent assessment.

The personal obligation of the owner for payment of the equivalent assessment, if any, shall continue in force without regard to the reduction or cancellation of the excess assessment, and the owner shall be obligated to pay interest on the unpaid balance thereof as provided in the ordinance closing the hearing and assessing the benefits. If the exemption terminates before cancellation of the excess assessment, the balance thereof shall become a personal obligation of the owner or the owner's estate and interest thereon shall accrue at the rate provided in the ordinance closing the hearing and assessing the benefits from the date of the loss of the exemption.

(Ord. No. 87-285, § 1, 2-25-87)

Sec. 40-255. Satisfaction of amount due.

Upon final and complete payment of the equivalent assessment, if any, and the cancellation or payment of the balance of the excess assessment, the city will furnish to the owner or the owner's successor in interest, a recordable instrument acknowledging the full and final satisfaction of the amount owed by the owner or the owner's estate.

(Ord. No. 87-285, § 1, 2-25-87)

Secs. 40-256—40-260. Reserved.

ARTICLE XI. SIDEWALK SALES*

DIVISION 1. GENERALLY

Sec. 40-261. Scope of article; definitions.

(a) This article shall control and govern certain sales of merchandise within a portion of the downtown area that is associated with the theater/entertainment district.

*__Editor's note—__Ord. No. 2023-238, § 3, adopted April 12, 2023, amended the title of Ch. 40, Art. XI to read as herein set out. Former Art. XI was titled sidewalk sales and performances.

(b) The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

Director shall mean the Director of Houston Public Works and shall include the director's designee.

Fee owner shall mean the holder of the fee title or other person having the present right of possession and control of the real property abutting the sidewalks. In those instances where the city is the fee owner, then it shall mean the department director of the city department responsible for maintenance and control of the property. No provision herein shall be construed to require any city department director to grant permission for the use of any city property or to waive the payment of any applicable concession or use fee.

Food shall have the meaning ascribed in section 20-18 of this Code.

Food vendor shall mean a person who sells food from a mobile food unit.

Merchandise vendor shall mean a person engaged in the sale of artwork, souvenirs, or fresh flowers, or any combination thereof.

Mobile food unit or *unit* shall mean a food service establishment, mounted on wheels, designed to be readily movable, and propelled solely by human power.

Permit shall mean a current, valid permit issued by the director pursuant to the terms of this article to a function as a vendor.

Permittee shall mean the holder of a permit issued by the director under this article and includes the permit holder's agents, employees, and subcontractors.

Sidewalk shall mean that portion of the street right-of-way that is improved for pedestrian use.

Theater/entertainment district shall mean the area including to the mid-point of and bounded by Preston Street on the north, Dallas Street on the south, Milam Street on the east, and Interstate Highway 45 on the west.

Vendor shall mean a person engaged in the sale of food or nonfood merchandise on the sidewalk.

(Ord. No. 91-1168, § 4, 8-14-91; Ord. No. 04-1015, § 30, 9-27-04; Ord. No. 05-91, § 1, 1-25-05; Ord. No. 2018-11, § 28, 1-10-2018; Ord. No. 2023-238, § 4, 4-12-2023)

DIVISION 2. PERMIT

Sec. 40-262. Required.

It shall be unlawful for any person who is not a permittee to sell merchandise or food on the sidewalks in the theater/entertainment district. (Ord. No. 91-1168, § 1, 8-14-91; Ord. No. 2023-238, § 5, 4-12-2023)

Sec. 40-263. Application and accompanying documents generally.

Any person desiring to obtain a permit to sell merchandise or food on the sidewalks in the theater/entertainment district shall file an application with the director on a form prescribed by the director for that purpose. The application shall set forth the following information and be accompanied by the following documents:

(1) The name, mailing address, street address (if different), and telephone number of the applicant, together with a statement as to whether the applicant is an individual, a partnership, or a corporation, and if a partnership, the names of all general partners or if a corporation a copy of the articles of incorporation;

(2) A map showing the proposed location of the specific site(s) desired. The applicant may either designate one site for twenty-four hour use or designate two sites, with one site designated as the daytime site with hours of operation between 7:00 a.m. until 5:00 p.m. and the other site designated as the night time site with hours of operation between 5:01 p.m. until 6:59 a.m.;

(3) The written permission of the abutting fee owner for the use of the site(s);

(4) A statement whether the applicant desires a permit as a food vendor or merchandise vendor;

(5) If the applicant seeks a permit as a food vendor or a merchandise vendor, then proof that the sales of merchandise or food will be covered by comprehensive general liability insurance with limits of not less than $100,000.00 for death of or injury to one person and $300,000.00 for death of or injury to more than one person and $25,000.00 for property damage, per occurrence, which policy shall name the city as an additional insured, and shall provide that ten days' prior notice be given to the director in the event of cancellation;

(6) A description of the nature, size, and manner of construction of any carts or racks, or other display equipment to be utilized by the applicant which shall be subject to review to ensure that the same will not pose a hazard to vehicular or pedestrian traffic;

(7) A food vendor applicant shall provide proof that the mobile food unit has a current and valid mobile food service unit medallion issued under section 20-37 of this Code;

(8) A food vendor applicant shall state whether his operations will be limited to "restricted operations" as defined in section 20-22 of the City Code. If not, then the applicant shall also provide proof that he holds a current and valid food dealer's permit issued under chapter 20 of this Code;

(9) A food vendor applicant shall state whether the mobile food unit will be fueled by liquefied petroleum gas. If so, the applicant shall provide proof that he holds a current and valid permit for the use of liquefied petroleum gas on the mobile unit issued pursuant to Chapter 61 of the Fire Code; and

(10) A food vendor applicant shall provide a photograph or graphic representation accurately depicting the unit and a general written description of the unit and shall demonstrate that the unit meets all of the same special requirements that are applicable to mobile food units used by licensed park vendors as specified in section 20-22 of this Code.

(Ord. No. 91-1168, § 4, 8-14-91; Ord. No. 95-279, § 12, 3-15-95; Ord. No. 2021-1037, § 20(Exh. I.43), 12-1-2021, eff. 4-1-2022; Ord. No. 2023-238, § 6, 4-12-2023)

Sec. 40-264. Fees.

Each application shall be accompanied by the applicable nonrefundable fees stated for this provision in the city fee schedule.

(Ord. No. 91-1168, § 4, 8-14-91; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 40-265. Permit—Issuance or denial.

(a) Within ten days of receipt of a permit application, the director shall grant or deny the requested permit and give written notice to the applicant of the decision.

(b) The director shall issue a permit to the applicant on a first applied, first issued basis unless one or more of the following conditions exist:

(1) The applicant failed to supply all of the information requested on the application;

(2) The applicant gave materially false, fraudulent, or untruthful information on the application;

(3) The applicant has not fully complied with all state, federal, and local laws or regulations affecting the conduct of its businesses;

(4) Houston Public Works determines that the application should be denied on the basis of the review conducted under section 40-268 of this Code; or

(5) The application or the applicant does not meet any other requirement of this Code.

(c) In the event that the director determines that an application should be denied, the applicant shall be given notice in writing of the reasons for

the denial. An applicant may appeal the decision of the director regarding such denial by filing a written request for a hearing with the director within ten days after he is given notice of such denial. The director's decision on the application shall be final unless an appeal is timely filed. An appeal shall not stay the director's decision on the issuance of a permit. The applicant's written request for a hearing shall set forth the grounds on which the denial is challenged. The hearing shall be conducted by the city's director of administration and regulatory affairs or his designee who shall act as the hearing official under this article. The hearing official shall not have participated in any investigation or decision relating to the denial of the permit. At the hearing, the hearing official shall receive oral and written evidence regarding the application. Hearings shall be conducted under rules issued by the director of administration and regulatory affairs which shall be consistent with the nature of the proceedings and shall ensure that each party may present evidence, cross-examine witnesses, and be represented by legal counsel.

(d) The hearing official shall conduct the hearing within ten days after receipt of the applicant's written request for a hearing, unless the applicant requests an extension in writing. The hearing official shall render written decision and issue notice thereof, to the applicant within five days after the conclusion of the hearing. The written decision of the hearing official shall be final.

(e) Failure of the director to give timely notice of his action on an application or failure of the hearing official to timely conduct or give notice of his decision on an appeal from the director's decision, shall entitle the applicant to the issuance of a temporary permit upon written demand therefor filed by the applicant with the director. Such a temporary permit shall only be valid until the third day after the director gives notice of his action on the application or the hearing official gives notice of his decision on the appeal, as applicable.

(Ord. No. 91-1168, § 4, 8-14-91; Ord. No. 93-514, § 84, 5-5-93; Ord. No. 08-52, § 72, 1-16-08, eff. 1-26-08; Ord. No. 2018-11, § 50, 1-10-2018)

Sec. 40-266. Same—Revocation.

(a) The director shall have the authority to revoke a permit for any one or more of the following reasons:

(1) The permittee gave materially false, fraudulent, or untruthful information on the application;

(2) The permittee failed to fully comply with all state, federal, and local laws or regulations affecting the conduct of its business;

(3) The permit was issued in error;

(4) The permittee has failed to follow the direction of the director or any peace officer of the city to temporarily vacate a site until any undue vehicular and pedestrian traffic congestion or any other unsafe condition was abated;

(5) The permittee has violated any other provision of this article;

(6) The activities of the permittee are not being conducted in the manner described in the application;

(7) That the insurance required in section 40-263 has expired or been cancelled without renewal or replacement; or

(8) The written permission of the abutting fee owner for the use of the site(s) has been revoked.

(b) Prior to revocation of a permit, the director shall investigate the grounds alleged to determine whether probable cause for revocation may exist and, if so, shall notify the permittee in writing of reasons for the proposed revocation and grant such permittee the opportunity to appear before a hearing official to be designated by the director of administration and regulatory affairs at a time and place specified within such notice. The hearing official designated shall not have participated in any investigation of the alleged grounds for the revocation. Such hearing shall be held not less than ten days after the notice is given. Hearings shall be conducted under rules issued by the director of administration and regulatory affairs. Such rules shall be consistent with the nature of the proceedings

and shall ensure that each party may present evidence, cross-examine witnesses, and be represented by legal counsel. If, after the hearing, the hearing official finds that the permit should be revoked, he shall issue a written order revoking such permit which shall be effective on the third day after notice thereof is given to the permittee. The written decision of the hearing official shall be final.
(Ord. No. 91-1168, § 4, 8-14-91; Ord. No. 08-52, § 73, 1-16-08, eff. 1-26-08; Ord. No. 2023-238, § 7, 4-12-2023)

Sec. 40-267. Other permit provisions.

(a) A permit shall be valid only for the use of the site(s) stated thereon and must be maintained and prominently displayed at the site(s) at all times while in use.

(b) All activities by permittees will be conducted upon the designated site(s); provided however, that if the director of parks and recreation grants approval for a special event in a city park that is located within the theater/entertainment district and a permittee has selected a site(s) in or within 100 feet of the boundaries of that park, then the permittee agrees that upon notice by an employee of the parks and recreation department of that park event, for the duration of that park event, he shall suspend his operations at that site(s) during the time that the park event is occurring and select an alternative site(s) subject to any approval herein required and located outside of 100 feet of the boundaries of that park.

(c) The permittee shall not install, erect, or maintain any signs on the sidewalk except in the case of food vendors, those permitted on the unit itself.

(d) Sites for mobile food units and merchandise vendors shall be at least 20 feet apart.

(e) The size and location of sites must be such that they will not pose a hazard to vehicular or pedestrian traffic.

(f) The permittee shall not install any permanent improvement on the sidewalk.

(g) In the event that activities at any site should cause undue vehicular and pedestrian traffic congestion or any other unsafe condition, then the director or any peace officer of the city may direct the permittee to temporarily vacate the site until the situation has abated, and the permittee shall comply.

(h) All equipment and materials shall be removed from the site at any time that the permittee is not physically present upon the site. If equipment and materials are left unattended, they may be removed. The permittee shall then be liable for all reasonable removal and storage charges.

(i) Sales of food or merchandise shall be made only to pedestrians. No food or merchandise shall be offered or sold to any occupant of any vehicle.

(j) Permittees shall remain within their sites and shall not hawk their merchandise or services in any manner, but may respond to inquiries about their merchandise or services.

(k) The permittee shall maintain records of daily gross sales, purchases, and expenses of or from the unit and those records shall be available for inspection by the director upon request. These records need not be available on the unit itself.

(l) The permittee shall be responsible for supervising the conduct of its patrons and employees.

(m) The permittee and his employees shall wear clean outer garments and shall refrain from smoking and eating during working hours.

(n) A permit shall only be valid for the purpose described in the application.

(o) A permit may be canceled upon written request of the permittee and surrender of the permit itself to the director. The surrender of a permit shall be effective upon its filing in the office of the director.

(p) A permit shall be personal to the permittee and may not be transferred or assigned.

(q) The permittee shall update and supplement the information provided as a part of his application to ensure that it remains true and correct at all times.
(Ord. No. 91-1168, § 4, 8-14-91; Ord. No. 2023-238, § 8, 4-12-2023)

Sec. 40-268. Referral to other departments.

Each application shall be reviewed by Houston Public Works under the criteria of subsections (c), (d), and (e) of section 40-267 of this Code and item (6) of section 40-263 of this Code, referred to the department of parks and recreation for review under the criterion of subsection (b) of section 40-267 of this Code, and referred to the Houston Health Department for review under the criteria of items (7), (8), (9), and (10) of section 40-263 of this Code and subsection (d) of section 40-269 of this Code.
(Ord. No. 91-1168, § 4, 8-14-91; Ord. No. 93-514, § 85, 5-5-93; Ord. No. 04-1015, § 31, 9-27-04; Ord. No. 2015-820, § 34, 8-26-2015; Ord. No. 2018-11, § 50, 1-10-2018; Ord. No. 2023-238, § 9, 4-12-2023)

Sec. 40-269. Food vendors—Additional conditions for permits.

A food vendor's permit shall be further subject to the following conditions and may be suspended or revoked for failure to comply with any one of them:

(a) The permittee shall maintain the unit in good repair and keep it free from defects that may present a hazard to life or property.

(b) The permittee shall make the unit available for inspection by the director or the health officer or their representatives at any time while the unit is in operation. No notice prior to such an inspection shall be required.

(c) The permittee shall thoroughly clean the unit and drain and flush the liquid waste tanks each day the unit is operated.

(d) A food vendor applicant shall provide a description of all foods to be sold and the proposed hours of operation.

(e) The permittee must comply with all other applicable state and city rules and regulations specifically including all food or health-related ordinances of the city and all state and federal food labelling news. The unit itself and the permittee must meet all applicable requirements for the operation of mobile food units and food establishments as set out in chapter 20 of the City Code at all times.

(f) In addition to the marking requirements of chapter 20 of the City Code, each unit shall be clearly marked with the name and phone number of the permittee and the phone number of the Houston Health Department.

(g) The permittee shall serve, store, and display his food on or in the unit itself and shall not use, set up, or attach any crate, carton, rack, table, or other device to increase the selling or display capacity of his unit.

(h) The permittee shall not leave the unit unattended. If the unit is left unattended, it may be towed. The permittee shall then be liable for all reasonable towing and storage charges.

(i) The permittee shall not use the unit or allow anyone else to use the unit to sell, distribute, or give away any foods other than those stated in the application for the permit. The permittee is not authorized to and shall not sell any non-food items.

(j) The permittee shall keep the area within 25 feet of the unit clean and free of litter at all times. The litter receptacle on the unit shall be emptied regularly in other than a public receptacle. The litter receptacle shall be kept covered with a tight fitting lid when not in continuous use.

(k) The permittee shall not make any structural alteration of the unit without giving 30 days' advance written notice to the city.

(Ord. No. 91-1168, § 4, 8-14-91; Ord. No. 2015-820, § 34, 8-26-2015)

Sec. 40-270. Same—Unsafe or unhealthful conditions.

Notwithstanding the other provisions of this article, whenever the director or the health officer finds an unsanitary or other unhealthful or unsafe condition in the operation of a unit, he may issue a written notice to the permittee citing such condition, specifying the corrective action to be taken, and specifying the time period within which such action shall be taken; and, if deemed necessary, such order shall state that the permit is immediately suspended, and all food service operations are to be immediately discontinued. Any person to whom such an order is issued shall comply immediately therewith, but upon written petition to the director, shall be afforded a hearing within three business days after the issuance of that order.

(Ord. No. 91-1168, § 4, 8-14-91)

Sec. 40-271. Automatic suspension.

Suspension, revocation, or expiration of a permittee's food dealer's permit, mobile food service unit medallion, or required insurance coverage shall result in the automatic suspension of the permit granted hereunder without further action on the part of the city. Such suspension shall remain in effect until the permittee's food dealer's permit, mobile food service unit medallion, or insurance, as applicable are restored.

(Ord. No. 91-1168, § 4, 8-14-91)

Sec. 40-272. Issuance of regulations.

Consistent with the provisions of this Code, the director may issue regulations pertaining to the administration of this article, including but not limited to the submission of applications. A copy of such regulations shall be maintained on file for inspection at the office of the director. Copies of such regulations may be obtained upon payment of the copying fees prescribed by law.

(Ord. No. 91-1168, § 4, 8-14-91)

Sec. 40-273. Notices.

(a) Any notice required or permitted to be given by the director or any other city office, division, department, or other agency under this article to any applicant or permittee may be given either by personal delivery or by certified United States mail, postage prepaid, return receipt requested, addressed to the most recent address as specified in the application for the permit or permit renewal which has been received by the director, or any notice of address change which has been received by the director. Notices mailed as above shall be deemed given upon their deposit in the United States mail.

(b) Any notice required or permitted to be given to the director by any person under this article shall not be deemed given until and unless it is received in the office of the director at the time and in the manner provided for filing applications in section 40-263 of this Code.

(c) It shall be the duty of each applicant and permittee to furnish notice to the director in writing of any change of residence or mailing address.

(Ord. No. 91-1168, § 4, 8-14-91)

Secs. 40-274—40-280. Reserved.

ARTICLE XII. MONITORING WELLS AND ENVIRONMENTAL TEST BORING FACILITIES

Sec. 40-281. Definitions.

As used in this article, the following terms shall have the meanings ascribed to them in this section unless the context clearly indicates a different meaning:

Applicant means an applicant for a permit under this article.

Bond means a financial assurance mechanism in a form acceptable to the director, which may include, but is not limited to a letter of credit, a line of credit, pollution liability insurance or a bond executed by the permittee, as principal, with a corporate surety authorized to transact business in Texas.

Director means the Director of Houston Public Works or any person designated by the director to perform his responsibilities under this article.

Facility means any mechanical device or monitoring well and its associated apparatus, placed within a public street, and designed and constructed to measure or monitor the quality or movement of foreign substances, elements, chemicals, fluids, or pollutants below the surface of the ground; or any mechanical device, method, or apparatus, placed in a public street and designed and constructed to obtain a sample soil core boring from a depth of greater than one foot below the surface of the ground, for the purpose of removing soil for environmental quality testing.

Parks official means the director of the parks and recreation department or any person designated by that director to perform his responsibilities under this article.

Permit means a current and valid permit issued pursuant to this article.

Permittee means a person who holds a permit issued pursuant to this article.

Public street means the entire width between the boundary lines of every way that is held by the city in fee or by easement or dedication when any part thereof has been accepted by the city, or has been opened to the use of the public for purposes of vehicular travel, and specifically shall include any designated state or federal highway or road or any designated county road that is under the administrative control of the city for maintenance, repair, or vehicular traffic control purposes.

Roadway means that portion of a public street which is improved, designed, or ordinarily used for vehicular travel, exclusive of the curb, berm, or shoulder. In the event that a public street includes two or more separate roadways, "roadway" means each such roadway separately.

Sidewalk means that portion of a public street which is between the curb lines, or the lateral lines of a roadway, and the adjacent property lines and is improved and designed for, or is ordinarily used for, pedestrian travel.

Utility means the city or any other person, whether franchised as a public utility or not, who is lawfully authorized to construct, install, or maintain any pipes for transportation of gas, liquids, or other materials, or any electrical distribution system, or any telephone or intelligence distribution systems, or any cable television transmission system, in, on, under, or over a public street.

(Ord. No. 90-1157, § 1, 8-14-91; Ord. No. 93-514, § 86, 5-5-93; Ord. No. 2012-522, § 2, 5-30-2012, eff. 7-1-2012; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-282. Permit required; offense; penal and judicial remedies.

(a) By authority of a permit issued by the director under the provisions of this article, a permittee may install and maintain a facility at a designated location upon a public street. A separate limit is required for each facility to be installed.

(b) It shall be unlawful for any person to install or maintain a facility unless a permit for the facility has been issued by the director.

(c) It shall be unlawful to fail to remove a facility within the time periods provided for in this article. The city may remove each noncomply-

ing facility after the passage of ten days following the date of noncompliance and may institute a civil suit for damages, costs of removal and restoration, and attorney fees against the owner or the operator of the noncomplying facility. The existence of any penalty and costs levied against an owner or an operator of a facility shall serve as a bar to the future issuance, to the owner or the operator, of a permit provided by this article until all such penalties and costs are paid in full.

(d) Any person who violates any provision of this article shall be guilty of an offense and upon conviction, shall be punished by a fine of not less than $250.00 nor more than $2,000.00 for each violation. Each day in which any violation shall occur shall constitute a separate offense. Prosecution or conviction under this subsection shall not preclude any civil remedy or relief for a violation of this article.

(e) The city, acting through the city attorney or any other attorney representing the city, is hereby authorized to file an action in a court of competent jurisdiction to:

(1) Enjoin any person from violating or threatening to violate the terms, conditions and restrictions of any permit issued under this article;

(2) Enjoin the violation or threatened violation of the provisions of this article;

(3) Recover civil penalties for violation of the terms, conditions and restrictions of any permit issued under this article;

(4) Recover civil penalties for violation for the provisions of this article; or

(5) Recover damages from the owner of a parcel in an amount adequate for the city to undertake any construction or other activity necessary to bring about compliance with this chapter.

(f) The city, acting through the city attorney or any other attorney representing the city, is hereby authorized to enter into agreements in lieu of litigation to achieve compliance with the terms, conditions and restrictions of any permit issued under this article or the provisions of this article.
(Ord. No. 91-1157, § 1, 8-14-91; Ord. No. 2012-522, § 3, 5-30-2012, eff. 7-1-2012)

Sec. 40-283. Location on public street.

(a) Facilities shall be designed, constructed, and maintained in such a manner as to comply with the provisions of this section.

(b) A facility may not be located on, extend on to, nor intrude upon any portion of a roadway or a sidewalk unless the director determines that no reasonable alternative site exists. In any instance in which a facility must be situated on a sidewalk or roadway, it shall be installed entirely below the surface and covered in such a manner as to allow normal use of the roadway or sidewalk.

(c) A facility may not create any hazardous condition or obstruction of vehicular or pedestrian travel upon a public street.

(d) The design and location of a facility shall include all reasonable planning to minimize potential harm, injury, or interference to the public in the use of the public streets.

(e) Upon its removal a facility shall be properly closed by cementing or other sound engineering practice to prevent injuries to persons at the surface and underground contamination.
(Ord. No. 91-1157, § 1, 8-14-91)

Sec. 40-284. Design standards, plans.

(a) The director, the city engineer, the utility official, and the parks official may jointly approve and promulgate design, construction, and maintenance standards for facilities. Such standards shall be so drafted as to ensure that facilities do not impose a significant risk of personal injury or property damage.

(b) Consistent with this article and the standards promulgated under subsection (a), above, the officials named therein may adopt and promulgate standardized plans and specifications that permittees may utilize for facilities. Each applicant shall either adopt an approved plan or submit his own detailed plans prepared

under the seal of a professional engineer registered as such in Texas with his application. Each set of plans shall show the design, dimension, and depth of the facility, the manner in which it will be placed, and the process that will be used for its removal and closure.

(c) The director, the city engineer, the utility official, and the parks official, or any one of them, may require the revision of any applicant's plans to conform to the standards promulgated or adopted in this article as a condition of granting a permit.
(Ord. No. 91-1157, § 1, 8-14-91)

Sec. 40-285. Other permits.

The granting of a permit shall neither excuse the permittee from obtaining nor obligate the city to grant any other permit or license that may be required by law for the installation or construction of the facility.
(Ord. No. 91-1157, § 1, 8-14-91)

Sec. 40-286. Intent of article.

It is the intent of the city council by the enactment of this article to regulate the surface and subsurface use and occupancy of public streets and rights of way by permittees and to establish a permitting mechanism and fee in accordance with the city's general power of control and regulation of public streets and highways as provided by law. However, this article shall not be construed as an assertion by the city of any property rights in derogation of abutting land owner's fee simple title and rights incident therein, in those cases where the city does not own fee simple title. It shall be the duty of permittees hereunder to notify all abutting landowners, whether title is held in fee or easement, of the permittee's receipt of the permit provided for in this article and to obtain any requisite permission to access said land.
(Ord. No. 91-1157, § 1, 8-14-91)

Sec. 40-287. Transfer; assignment; termination.

A permit shall apply only to the designated location specified. Permits shall be personal to the permittee and his agents and employees. No assignment by any permittee of any obligation assumed or right granted under this article shall be effective unless and until expressly consented to in writing by the director. A permittee may terminate a permit prior to its designated expiration date by giving 30 days' written notice to the city, removing the facility, and restoring the site as provided in this article. Termination shall not release or excuse the permittee or his insurers from any obligation which arose in any manner by virtue of the acceptance or enjoyment of the permit.
(Ord. No. 91-1157, § 1, 8-14-91; Ord. No. 2012-522, § 4, 5-30-2012, eff. 7-1-2012)

Sec. 40-288. Street repairs; utilities.

(a) The permittee shall upon five days' prior written notice from the city or any utility company and at the sole expense of the permittee, temporarily remove his facility for such period of time as may be reasonably specified in the notice to accomplish any street or utility installation, repairs, replacement, or expansion.

(b) In the event of any emergency condition in which the notice required in subsection (a) may not be given without creating an inconvenience to the public or in the event that the permittee fails to comply with a notice given pursuant to subsection (a), then the city or the utility company may remove the facility and close the bore site at the sole risk and expense of the permittee by utilizing whatever reasonable force or means are necessary therefor.

(c) Each permittee shall bear all costs associated with the relocation of lines and other improvements belonging to the city or any utility that may require relocation for the installation or maintenance of the permittee's facilities. The city or the utility, as applicable, may require a deposit for the estimated cost of the work prior to the commencement of the relocation work.
(Ord. No. 91-1157, § 1, 8-14-91)

Sec. 40-289. Maintenance; inspection.

(a) The permittee shall maintain his facility in a good and safe condition and repair at all times. The permittee shall assume all risk of loss or damage to the facility, and neither the city nor

any other person shall have any obligation to replace or repair the same under any circumstances.

(b) The director, the city engineer, the health officer, the utility official, the parks official, or any other inspector designated by the city shall have the right to inspect any facility at any time without the necessity of prior notice. Upon at least one hour's notice given during regular hours (8:00 a.m. to 5:00 p.m., Monday through Friday, holidays excepted) the permittee shall open the facility and make a sample of the well contents available to the health officer.

(c) The director may notify the permittee in writing of any deficiency under this article in the physical condition of any facility and shall afford the permittee a reasonable period of time to correct the same. In determining the length of time to be allowed the director shall consider the danger, if any, which is posed by the deficiencies and the nature of the changes or repairs required. In the event that the director is of the opinion that the continued existence of the facility will constitute a significant threat to the safety of the public pending its repair, he may order it removed at once.
(Ord. No. 91-1157, § 1, 8-14-91)

Sec. 40-290. Notice before commencing work; site work; restoration.

(a) Permittee shall provide notice to the director no less than 48 hours before commencing work to install or remove a facility. At all times during the installation of any facility within the public street, the roadway(s) shall be kept open by the permittee for vehicular traffic in a reasonable manner, and no obstruction of the sidewalks shall be permitted so as to prevent the use thereof by pedestrians for an unreasonable period of time. Dirt and other material removed during the installation of the facility within the public street shall not be permitted to remain on the public street, and said dirt and other material from the site shall be removed at the risk, liability, and expense of the permittee. All excavations or obstructions of any kind which are permitted during the period of permittee's construction shall be properly barricaded and shall also be well illuminated during the night time.

(b) Upon the revocation or expiration of the permit, if not renewed, the permittee shall remove the facility, close the bore site, and restore the public street to its previous condition at his sole expense. Any facility which has not been removed by the tenth day next following the revocation or expiration of the permit shall be deemed abandoned, and it may be removed by the city without notice to the permittee. Removal of the facility by the city shall be at the sole expense of the permittee and shall be recorded as a charge against the permittee's restoration bond.
(Ord. No. 91-1157, § 1, 8-14-91; Ord. No. 2012-522, § 5, 5-30-2012, eff. 7-1-2012)

Sec. 40-291. Notices.

(a) Any notice required or permitted to be given to the city under this article may be given by e-mail or by certified United States Mail, return receipt requested, postage prepaid, addressed to the director at the then-current mailing address.

(b) Any notice required or permitted to be given to a permittee under this article may be given by e-mail, by certified United States Mail, return receipt requested, postage prepaid, addressed to the permittee at the mailing address designated in the permit application. A permittee may amend the mailing address specified in his application from time to time, upon written notice to the director given in the manner specified in this section.
(Ord. No. 91-1157, § 1, 8-14-91; Ord. No. 2012-522, § 6, 5-30-2012, eff. 7-1-2012)

Sec. 40-292. Indemnity.

By the acceptance of a permit the permittee, his assigns, successors, and representatives agree, obligate, and bind themselves to indemnify, defend and hold and save forever harmless the city, its officers, agents, and employees from all liability, costs, or damages arising in any manner on

account of the installation, maintenance, or removal of the permittee's facility on the public streets.
(Ord. No. 91-1157, § 1, 8-14-91)

Sec. 40-293. Insurance; bond.

(a) Permittee shall maintain in effect certain insurance coverage and shall furnish certificates of insurance, in duplicate form, before beginning its performance under it permit. All policies except Professional Liability and Worker's Compensation must name the city as an additional insured. All liability policies must be issued by a company with a Certificate of Authority from the State Department of Insurance to conduct insurance business in Texas or a rating of at least B+ and a financial size of Class VI or better according to the current year's Best's Key Rating Guide, Property-Casualty United States. Permittee shall maintain the following insurance coverage in the following amounts:

(1) *Commercial General Liability insurance including Contractual Liability insurance:* $500,000 per occurrence; $10,000,000 aggregate;

(2) *Worker's Compensation including Broad Form All States endorsement:* Statutory amount;

(3) *Professional Liability:* $1,000,000 per claim; $1,000,000 aggregate; and

(4) *Automobile Liability insurance:* $1,000,000 combined single limit per occurrence.

Aggregate limits are per 12-month policy period unless otherwise indicated. All insurance policies must require on their face, or by endorsement, that the insurance carrier waives any rights of subrogation against the city. Permittee shall give 30 days written notice to the city before a policy may be canceled or non-renewed. Within the 30-day period, permittee shall provide other suitable policies in lieu of those about to be canceled or non-renewed so as to maintain in effect the required coverage. The director of the department of administration and regulatory affairs, or its successor department, may adjust the above liability limits as reasonably necessary.

(b) Each permittee shall furnish a bond in an amount determined by the director to be adequate to cover the cost of removal of his facilities, closure of the well bore, and restoration of the public street to its condition prior to the installation.

(c) The bond and evidence of insurance need not be furnished with the application; however, they shall be furnished to the director prior to the issuance of the permit. The proof of insurance shall include a covenant extending through the term of the permit that the insurer will provide the director ten days' prior written notice in the event of cancellation or nonrenewal thereof.
(Ord. No. 91-1157, § 1, 8-14-91; Ord. No. 2012-522, § 7, 5-30-2012, eff. 7-1-2012)

Sec. 40-294. Application.

(a) Applications for permits shall be in the form prescribed by the director, who may provide for the filing and processing of applications by electronic means. Each application shall set forth and include the following:

(1) The name of the applicant. If the applicant is a corporation, partnership, or association, then the applicant shall provide evidence of its existence, of its authority to maintain the facility, and of the authority of the persons signing the application to act on behalf of the entity.

(2) The applicant's mailing address (and street address, if different), telephone number (including relevant mobile phone numbers), and e-mail address for any written notice required or permitted to be given under this article.

(3) An acknowledgment that the applicant is aware of the terms and provisions of this article and will, by acceptance of a permit, if approved, agree to be bound thereby and by all amendments adopted in all respects in the exercise of the rights granted under the permit.

(4) The name, home and business street addresses, and home, business and mobile telephone number of two persons who

may be contacted by the city, any utility, or other person in the event of any emergency regarding the facility.

(5) The names, addresses, and telephone numbers of any agents who will perform any work for the permittee regarding the installation, monitoring, or removal of the facility.

(6) A copy of the driller's license issued by the State of Texas.

(7) The accurate location of the proposed facility, which shall include a description provided by the Global Position Satellite x, y coordinates for mapping by Geographic Information System and shall be depicted on a diagram prepared by a registered professional surveyor or engineer.

(8) Any other information specified pursuant to the terms of this article or reasonably required by the director to review and act upon the application.

(b) The application shall be sworn to be true and correct by the applicant and shall be submitted in any reasonable number of copies that the director may specify.

(c) A single application for permits for multiple facilities may be filed with the director provided that the physical location of each proposed facility logically arises out of, and reasonably pertains to, the scheme and plan of a single environmental testing project. The requirements of this article governing the issuance of a permit must be fulfilled for each facility.

(d) Applications for renewal permits shall be submitted in the same form and manner as original applications, provided that any information furnished in a prior application which has not changed may be adopted by reference.

(e) The director shall, from time to time, prepare and submit for approval by motion of the city council a schedule of fees that shall be paid by an applicant for a facility. Payment of any applicable fees when due is a condition of the processing of any application under this article, and no refund of the application fee shall be made. The director may waive the application fee but not other costs if the director finds that the applicant is the city, Harris County, the state or any of its departments, employees, agents or contractors, or that payment of the application fee would result in a substantial financial hardship to the applicant.

(Ord. No. 91-1157, § 1, 8-14-91; Ord. No. 2012-522, § 8, 5-30-2012, eff. 7-1-2012)

Sec. 40-295. Issuance; review.

(a) The director shall forward copies of the application to the city engineer, the utility official, and the parks official for their review pursuant to subsections (b) and (c) prior to his acting on the application. Upon its approval under subsections (b) and (c) the director shall review and approve the application for the facility unless he finds:

(1) That the application or required information furnished therewith is incomplete;

(2) That any statement on the application or information furnished therewith is false in any material respect; or

(3) That the applicant's proposed facility does not comply in any manner with the requirements of this article and regulations adopted hereunder.

(b) Each application shall also be referred by the director to the utility official and the city engineer who shall review the proposed facility to determine whether its installation or maintenance will interfere with any existing or planned improvement of the city or any existing or planned improvement by a utility that is known by the city. The director, as a condition for approval of the permit, may require an applicant to furnish, from utilities that are not owned, operated, or maintained by the city, letters of release; or leases, licenses, or other instruments that have been duly recorded in the office of the county clerk where the facility is to be situated, evidencing the applicant's right to utilize the site. The city engineer may also refer copies of the application to utilities for comment or may require the applicant to do so. The city engineer and utility official shall approve the application unless they find that the proposed facility will

interfere with existing or planned lines or improvements of the city or any utility. The approval of the application by the city engineer and utility official shall not be deemed to excuse any obligation of a permittee to pay relocation fees as provided in subsection 40-288(c) of this Code.

(c) Each application shall also be referred to the parks official who shall review the same to determine whether the facility would cause any significant damage to trees or landscaping. The parks official shall approve the application if he finds that all reasonable precautions have been taken to avoid permanent damage to trees and landscaping.

(d) The director may condition the approval upon any revisions that the director, the city engineer, the utility official, or the parks official determines to be necessary in the design of the proposed facility to meet the standards specified in this article. Additionally, the director shall condition the approval upon the furnishing of any requirement of this article which was not submitted with the application. The amount of the bond shall be specified by the director.

(e) If an application is not approved, the director shall notify the applicant thereof and of the reasons therefor in writing.
(Ord. No. 91-1157, § 1, 8-14-91; Ord. No. 2012-522, § 9, 5-30-2012, eff. 7-1-2012)

Sec. 40-296. Fees.

(a) The applicable nonrefundable fees stated for this provision in the city fee schedule are hereby imposed for permit applications and renewals thereof.

(b) All fees shall be tendered to the director with the application by certified or cashier's check on a bank that is authorized to transact business in the State of Texas.
(Ord. No. 91-1157, § 1, 8-14-91; ; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2012-522, § 10, 5-30-2012, eff. 7-1-2012)

Sec. 40-297. Term.

The term of each permit, whether original or renewal, that is issued hereunder shall be one year from the date of its issuance.
(Ord. No. 91-1157, § 1, 8-14-91)

Sec. 40-298. Revocation.

(a) Any permit issued under this article may be revoked in accordance with the provisions of this section if it is found that:

(1) Any material statement made or information furnished with or in connection with the review of the application was false;

(2) Conditions have changed such that the use of the permittee's facility no longer meets all applicable requirements of this article or such that the permittee's use interferes with the public's use of the public streets or creates any hazardous condition thereon;

(3) The permittee has failed to comply with any provision of this article; or

(4) The facility has not been installed in compliance with the permit within 90 days after its issuance, unless an extension is granted for good cause by the director.

(b) Whenever the director receives reliable information that grounds for revocation of a permit exist, he shall investigate the facts. If he finds that there are grounds for revocation of a permit, he shall give a written notice to the permittee setting forth:

(1) The specific grounds upon which the permit in question may be revoked;

(2) That there will be a hearing before a hearing official designated by the director in which the city will seek the revocation of the permit;

(3) The date, time, and place of such hearing; and

(4) That the permittee may appear in person and be represented by an attorney.

(c) After completion of the presentation of evidence by all parties, the hearing official shall make written findings and render an order as to whether or not there are grounds for revocation of the permit. If there are such grounds, then he shall order the permit to be revoked.

(d) The decision of the hearing official shall be final.

(e) Notwithstanding the foregoing grounds and procedures, the director may revoke any permit in whole or in part upon ten days' notice to the permittee and without a hearing thereon if he determines that the facility should be removed or relocated to accommodate any widening, realignment, or extension of the public streets or other public improvements or utility improvements. The director may also revoke a permit for which the insurance or bond has been cancelled or has expired without renewal, without a hearing, after five days' written notice and failure of the permittee to replace the insurance or bond.

(f) The revocation of a permit under this section shall not release or excuse the permittee or his insurers or sureties from their duty to remove the facility or any other obligation which arose by virtue of the acceptance or enjoyment of the permit.
(Ord. No. 91-1157, § 1, 8-14-91)

Sec. 40-299. Other appeals.

Except as provided in subsection (e) of section 40-298, any decision of the director, the city engineer, the utility official, or the parks official under this article may be appealed, by a permittee or applicant, to a hearing official designated by the director upon written notice of appeal given to the director within ten days after the permittee receives notice of the decision complained of from the director. The hearing official shall conduct a hearing thereupon in the manner contemplated by the foregoing section for revocations.
(Ord. No. 91-1157, § 1, 8-14-91)

Sec. 40-300. Reserved.

Editor's note—Ord. No. 2012-522, § 11, adopted May 30, 2012, effective July 1, 2012, repealed § 40-300 in its entirety. Formerly said section pertained to existing facilities and derived from Ord. No. 91-1157, § 1, 8-14-91.

Secs. 40-301—40-310. Reserved.

ARTICLE XIII. SPECIAL RACING EVENTS

Sec. 40-311. Nature of the events and definitions.

The city council desires that there be an opportunity to hold special racing events in the city and to encourage and facilitate the promotion of such events upon such terms and conditions as the city council may approve by written agreement.
(Ord. No. 97-1055, § 2, 9-3-97)

Sec. 40-312. Definitions.

As used in this article, the following words and terms shall have the meanings herein ascribed, unless the context of their use clearly indicates another meaning:

Promoter shall mean the person principally responsible for holding the special racing event and who is authorized to enter into a written agreement with the city regarding the conduct of the special racing event and setting forth the responsibilities of the parties.

Racecourse area shall mean the property within a perimeter to be defined by written agreement between the promoter and the city that contains the track or racecourse and the structures and facilities necessary for the conduct of the special racing event.

Sanctioning body shall mean a statewide, national or international organization that regularly engages in the governance, supervision or sanctioning of any form of auto racing.

Special racing event shall mean an auto race or races held within a consecutive period of time specified by written agreement between the promoter and the city and that is held under the auspices or with the approval of a sanctioning body.
(Ord. No. 97-1055, § 2, 9-3-97)

Sec. 40-313. Terms for conducting special racing events.

(a) Notwithstanding any ordinance, code, rule or regulation of the city to the contrary, a special racing event may occupy and utilize the racecourse

area and any public property, facilities or structures therein for purposes of conducting the special racing event for a temporary period and under such terms and conditions as may be specified in one or more written agreements between the promoter and the city. Such terms and conditions may authorize, without limitation, charging of admission to race events, sale of food, beverages or merchandise, street improvements or alterations, temporary removal or alteration of structures within the racecourse area, temporary construction of fences, viewing stands, signage, concession structures, storage or maintenance structures or any other structure, service or facility reasonably necessary to promote and conduct the special racing event. This subsection shall not be construed to prohibit the inclusion in such an agreement of interested parties other than the promoter and the city or to prohibit other agreements between any parties relating to the special racing event, provided that no provision of any such agreement shall conflict with any provision of this article.

(b) Any structure or facility for storing or dispensing fuel or other potentially dangerous materials, any temporary electrical service equipment or facility utilized in the special racing event and/or any temporary structures such as viewing stands, booths, decks, barriers, towers or poles shall be subject to inspection and approval by both the building official and the fire marshal or their authorized inspectors but otherwise shall not be subject to the city's ordinances, codes, rules or regulations.

(c) Upon written permission of the traffic engineer, a portion of the street and sidewalk rights-of-way may be temporarily obstructed for a period not to exceed 60 consecutive days preceding the special racing event and for no more than 15 days after the special racing event. The approval shall be limited to rights-of-way within the racecourse area or rights-of-way adjacent to the racecourse area whose partial temporary obstruction is required for safety or traffic reasons and shall be limited to the minimum period and the minimum portion of right-of-way necessary to reasonably accommodate setting up, conducting and dismantling the special racing event and its facilities, and shall be given only to the extent that the traffic engineer determines that the proposal will not pose an undue hazard to vehicles and pedestrian travel by the public.

(d) Upon written permission of the traffic engineer, street and sidewalk rights-of-way may be temporarily closed for a period not to exceed five consecutive days preceding the special racing event and for a reasonable period during and after the special racing event, provided, that the total period involving street closure shall not exceed 15 consecutive days. The approval shall be limited to rights-of-way within the racecourse area or rights-of-way adjacent to the racecourse area whose temporary closure is required for safety or traffic reasons and shall be limited to the minimum period and the minimum portion of right-of-way necessary to reasonably accommodate setting up, conducting and dismantling the special racing event and its facilities, and shall be given only to the extent that the traffic engineer determines that the proposal will not pose an undue hazard to vehicles and pedestrian travel by the public.
(Ord. No. 97-1055, § 2, 9-3-97)

Sec. 40-314. Reserved.

Editor's note—Ord. No. 2011-391, § 2, adopted June 1, 2011, effective July 1, 2011, repealed § 40-314 in its entirety. Formerly said section pertained to City parking facilities and derived from Ord. No. 97-1055, § 2, 9-3-97.

Secs. 40-315—40-330. Reserved.

ARTICLE XIV. GRANT OF PRIVILEGES TO TELECOMMUNICATIONS PROVIDERS TO PLACE TELECOMMUNICATIONS FACILITIES ACROSS, ALONG OR UNDER PUBLIC WAYS

Sec. 40-331. Definitions.

As used in this article, the following words and terms shall have the meanings provided below, unless the context of their usage clearly indicates another meaning:

Cable service shall have the meaning defined for such term in the Cable Communications Policy Act of 1984, 47 U.S.C. § 521 et seq., as amended.

City engineer means the city engineer for the city or a designee thereof.

CPI-U means the Consumer Price Index for All Urban Consumers (U.S. City Average, all items).

Director means the director of the city's department of administration and regulatory affairs, or its successor department, including the director's designee.

Director of Houston Public Works means the Director of the Houston Public Works, or its successor department, including the director's designee.

Fee means the fees payable to the city by a telecommunications provider subject to this article.

Network facilities means conduits, ducts, manholes, vaults, tanks, towers, wave guides, optic fiber, microwave, dishes, and any associated converters, electrical lines, communications lines, transmission lines, cables, wires, amplifiers, switches, utility equipment, or other such object, device or facilities, including attachments and encasements containing such facilities, whether underground or overhead that are designed, installed and constructed within the public way for the purpose of producing, receiving, amplifying, switching, transmitting or distributing audio, video, or other forms of electronic or optical signals to or from customers, subscribers or locations within the city limits of the city. Network facilities do not include such facilities to the extent that they are solely used to provide services under Chapter 283 of the Texas Local Government Code or services under Chapter 66 of the Utilities Code or respective successor laws.

Network facilities franchise means an ordinance adopted pursuant to this article granting a telecommunications provider authority to use the public way as provided therein.

Payment date means January 1 of each year during the term of a network facilities franchise.

Public way means any public street right-of-way located in the city, including the entire area between the boundary lines of every right-of-way (including but not limited to roads, streets, alleys, highways, boulevards, bridges, tunnels or similar thoroughfares, and public utility easements), whether acquired by purchase, grant or dedication and acceptance by the city or by the public, that has been opened to the use of the public for purposes of vehicular travel; and shall include any designated state or federal highway or road or any designated county road under the administrative control of the city for maintenance, repair, or vehicular traffic control purposes.

Services means telecommunication services provided through network facilities located wholly or partially in the public way without regard to technology. This definition does not include services provided under Chapter 283 of the Texas Local Government Code or under Chapter 66 of the Texas Utilities Code or any respective successor law.

Private or commercial purposes means any purposes, other than public purposes.

Telecommunications provider means a person who offers or provides services through network facilities located wholly or partially in the public way.

(Ord. No. 98-593, § 1, 7-22-98; Ord. No. 08-52, § 74, 1-16-08, eff. 1-26-08; Ord. No. 2010-831, § 2(Exh. A), 10-27-2010; Ord. No. 2018-11, §§ 49, 50, 1-10-2018)

Sec. 40-332. Declaration of policy.

(a) It shall be the policy of the city to grant to any person the right to lay, construct, operate, lease or make any use whatsoever of any network facility for private or commercial purposes, across, along, over, above or under any public way within the city in accordance with this article. Except as otherwise specifically provided, this article shall be administered by the director.

(b) It is not the policy or intention of this article to prohibit, regulate, license or franchise the provision of any services within the city, and no provision of this article shall be so construed. Any terms or conditions contained in this article or any network facilities franchise relate to the right of a person to make use of the public way, not in limitation of any rights granted by the

Public Utility Commission of Texas, the Federal Communications Commission, or respective successor agency.
(Ord. No. 98-593, § 1, 7-22-98; Ord. No. 2010-831, § 2(Exh. A), 10-27-2010)

Sec. 40-333. Rights to be granted by franchise.

As provided by sections 17 and 18 of article II of the City Charter, the rights to be granted under this article shall only be granted by a network facilities franchise in the manner, with the formalities, and subject to all of the applicable terms and conditions stated in those sections of the Charter.
(Ord. No. 98-593, § 1, 7-22-98; Ord. No. 2010-831, § 2(Exh. A), 10-27-2010)

Sec. 40-334. Network facilities required to be authorized.

(a) It shall be unlawful for any telecommunications provider to lay, construct, operate, offer for lease or make available for any use whatsoever any network facilities across, along, over, above, or under any public way within the limits of the city for any private or commercial purpose unless the right to do so has been granted to the telecommunications provider by a network facilities franchise in accordance with this article.

(b) A telecommunications provider desiring a network facilities franchise shall make written application upon a form promulgated by the director on which shall be set forth a detailed description of existing or proposed network facilities, including the proposed number of linear feet and location thereof, the nature of the business or use to be transacted in the public way and such other information as may be required by the director, under the charter or any other city ordinance, sufficient to enable the director to determine the advisability of granting a network facilities franchise and to establish the applicant's capacity to meet its financial or other obligations thereunder.

(c) A network facilities franchise shall authorize the specific use that the telecommunications provider shall be permitted to make of the public way. No facility shall be located, operated or used in any public way in a manner not expressly stated in the network facilities franchise. No network facilities franchise shall be construed to grant access to city land owned in fee simple, other than the public way, unless specifically included therein. No telecommunications provider shall make any use of a public way or allow any other person to make use of its network facilities located in a public way, unless stated in the network facilities franchise. A telecommunications provider shall not permit any other person to locate, operate or use the provider's network facilities in the public way without proof that the person holds authorization for the contemplated location, operation, or use under any required network facilities franchise duly granted pursuant to this section by the city and that the person holds a permit for the construction issued in accordance with this article. Notwithstanding the foregoing, a network facilities franchise is not required for any person engaging solely in resale of a telecommunications provider's services or the provision of service by unbundled network elements obtained from a telecommunications provider, provided that the applicable network facilities franchise covers the network facilities involved and the person does not own or operate any network facilities in the public way.

(d) This article shall not apply to any telecommunications provider already specifically franchised by the city on the effective date of this ordinance; provided that upon the termination of such franchise, the telecommunications provider shall be subject to this article. Nothing in this article shall be construed to diminish the right or authority of the city to require any other user of the public way to secure appropriate city authorization for such use.
(Ord. No. 98-593, § 1, 7-22-98; Ord. No. 2010-831, § 2(Exh. A), 10-27-2010)

Sec. 40-335. Network facilities franchise fees.

(a) The fee to be paid by a telecommunications provider subject to this article under any network facilities franchise shall be determined in accordance with applicable law in a

competitively neutral manner by the director and set forth in a network facilities franchise approved by city council.

(b) With each annual fee remittance, a telecommunications provider shall file a report with the city secretary and the director on a form promulgated by the director showing in detail the calculation of the fee for the preceding calendar year. An officer or authorized representative of the telecommunications provider shall certify that the information contained in the report is true and correct (to the best of the officer's or representative's knowledge and belief) after due inquiry. The report shall be treated as confidential information to the extent permitted by law. Upon written request by the director, a telecommunications provider shall verify the information contained in its report, and upon 30 days advance written notice, all non-customer specific records and other documents required for verification shall be subject to inspection by the director, expressly excluding any records, documents, or other writings the disclosure of which is prohibited by state or federal law, including the Electronic Communications Privacy Act, 18 U.S.C. Sec. 2701, et seq. Upon receipt of any such request, the telecommunications provider shall promptly designate or identify the specific information proposed to be withheld and the law supporting or authorizing its non-disclosure.

(c) *Payment due date.* Each telecommunications provider shall remit fees on an annual basis. Payment shall be made on or before the payment date. Fees that are not received by the city by the payment date shall incur interest beginning on the date the payment is due at the rate of twelve percent per annum, compounded daily.

(d) *Circumvention of fee prohibited.* A telecommunications provider shall not underpay fees due to the city, circumvent payment of the fee for use of the public way or evade payment of fees by barter, transfer of rights, or any other means that results in undercounting of the telecommunications providers' linear feet of network facilities in the public way within the city.

(e) *Leased network facilities.*

(1) A telecommunications provider may lease its network facilities or otherwise make its network facilities available, in whole or in part, to its customers in the ordinary provision of services, if the telecommunications provider retains the responsibility for servicing and repairing the network facilities. This shall not be construed to provide any person, other than an affiliate, with authority to place any facilities in the public way without a valid franchise granted by the city, if one is required. The director shall determine whether a franchise is required in accordance with applicable law, and such determination shall be made as if the third party were the owner of the network facilities used by the third party, rather than the telecommunications provider. A telecommunications provider shall notify the city within 30 days of any lease of its network facilities.

(2) A telecommunications provider's acceptance of a network facilities franchise constitutes its agreement to notify its customers or subscribers making sales of telecommunications services through the use of its network facilities of the possible need for a certificate from the Public Utility Commission of Texas, an FCC license, other state or federal authorization, or city franchise. A telecommunications provider shall notify its existing customers or subscribers of the requirement of this provision within 30 days of the acquisition of each customer or subscriber.

(f) Fees paid pursuant to this section shall constitute the sole compensation to the city for a telecommunications provider's use of the public way.

(Ord. No. 98-593, § 1, 7-22-98; Ord. No. 2010-831, § 2(Exh. A), 10-27-2010)

Sec. 40-336. Conditions of network facilities franchise.

A network facilities franchise that is granted to any telecommunications provider under this

article shall incorporate the terms of this article and be further subject to the following specific provisions, whether or not such terms are specifically included in such network facilities franchise:

(1) *Enforcement.* The city attorney, or the city attorney's designee, shall have the right to enforce all legal rights and obligations under the network facilities franchise without further authorization. The telecommunications provider shall provide the city access to all documents and records the city attorney deems reasonably necessary to assist in determining the telecommunications provider's compliance with the network facilities franchise.

(2) *Interference with public use prohibited.* The obligation and duty of a telecommunications provider to lay, construct, operate, lease, maintain, repair and replace the network facilities shall not interfere with the public use of the public way. Insofar as it is practical to do so, the telecommunications provider shall use existing network facilities in the provision of the services. The telecommunications provider shall provide and maintain current any information reasonably related to location or operation of the network facilities or services determined to be necessary by the city engineer or the director. The telecommunications provider shall maintain the network facilities in good order and condition, subject to ordinary wear and tear.

(3) *Permit fees included in fee.* A portion of the fee due to the city under a network facilities franchise constitutes payment to the city for the cost of permits and inspections, or other similar approvals or submissions that a telecommunications provider is required to obtain for its work in the public way under a network facilities franchise. As a result, no additional fees shall be charged to the telecommunications provider. This subsection shall not be construed to waive any requirement relating to permitting, inspections or similar approvals or submissions other than the payment of separate fees.

(4) *Permitting and plan approval.*

a. *New construction permit.* Before commencing any work in the public way other than routine maintenance or emergency work (as described in subsections b. and c. below), a telecommunications provider shall apply for and obtain a new construction permit. The application shall include a written work description, including scale drawings with plan and profile, showing the network facilities' location (or proposed location) and estimated depth of the network facilities (existing and proposed) in the immediate area of the proposed new construction. Such drawings and specifications shall be prepared, executed and sealed by a registered professional engineer, as may be required by the Texas Engineering Practice Act or by the city engineer. Such drawings and specifications will be reviewed by the city engineer and any comments will be provided to the telecommunications provider as soon as practicable. The telecommunications provider shall make any changes to the drawings and specifications requested by the city engineer.

b. *Routine maintenance.* The Director of Houston Public Works may promulgate rules and procedures for routine maintenance of existing network facilities located in the public way, including but not limited to required notices by the telecommunications provider that the telecommunications provider shall provide, standards for street and curb repairs, and inspection of facilities and street repairs necessitated by such maintenance. Routine maintenance or repair performed on existing network facilities located in the public way shall be performed in a manner consistent with city standards promulgated by the Director of Houston Public Works.

c. *Emergency repairs.* Emergency repairs requiring immediate work may be performed by the telecommunications provider and notice shall be given in writing to the Director of Houston Public Works within 24 hours following the commencement of such repairs. The notice shall state the nature of the emergency, the repairs required and an estimate of the time necessary to complete the repairs. The telecommunications provider shall apply for all required approvals, including those required under article XVII of this chapter as soon as reasonably practicable. Any work performed that is not consistent with city standards shall be corrected upon notice from the Director of Houston Public Works.

d. *Payment of fees required.* The city is not required to grant any permit or approval to the telecommunications provider unless and until all fees due and payable pursuant to the network facilities franchise have been paid in full.

e. *Other licenses and fees.* The telecommunications provider shall obtain and pay the cost of all licenses, permits, and certificates required by any statute, ordinance, rule or regulation of any state or federal regulatory body having jurisdiction over the conduct of its operations hereunder. The telecommunications provider shall give notice to the director of any revocation or failure to obtain any such license, permit or certificate affecting its performance hereunder within 15 days of such revocation or of the day upon which the telecommunications provider received actual or constructive notice of its failure to obtain such license, permit or certificate.

f. *City engineer's procedures.* Notwithstanding the above, the city engineer may promulgate procedures, applicable to all similarly situated telecommunications providers, regarding pre-approval of work in the public way by a telecommunications provider in circumstances that do not require detailed review of the proposed work.

(5) *Work standards.* All work in the public way shall be performed in accordance with the city's Standard Construction Specifications and Standard Construction Details, as such may be amended from time to time, and shall be subject to the regulation, control and direction of the Director of Houston Public Works. All work done in connection with the laying, construction, operation, maintenance, repair and replacement of the network facilities shall be in compliance with all applicable laws, ordinances, rules and regulations of city, the applicable county, the state, and the United States.

(6) *Work in the public way.* Any work that constitutes an obstruction of a street for which a permit is required under section 40-362 of this Code shall only be performed in accordance with a permit issued under article XVII of this chapter.

(7) *Restoration.* A telecommunications provider shall repair, clean up and restore the public way disturbed or affected during the maintenance, construction, repair, replacement or removal of the network facilities in accordance with article V of this chapter.

(8) *Relocation or removal.* A telecommunications provider may be required to relocate its network facilities in any public way in accordance with article XVIII of this chapter.

(9) *Subsequent rules and regulations.* The city council or the Director of Houston Public Works may make such other reasonable rules and regulations for the placement and manner of the network facilities as they may deem appropriate for the protection of the public and the

public way and to avoid unreasonable interference with other uses or contemplated uses of the public way. Without limitation of the above, the city council may amend the rules or regulations to require that all network facilities constructed after the effective date of such amended rules be placed underground.

(10) *Inspections.* The city engineer may perform inspections, upon 24 hour written notice from the city, of any network facilities located in the public way from time to time as deemed appropriate. A telecommunications provider may have a representative present during such inspection.

(11) *Abandonment of obsolete network facilities.* Upon request by the city engineer, a telecommunications provider shall remove aerial facilities and/or facilities in conduits when such facilities are obsolete and no longer in service. When a telecommunications provider removes or abandons permanent structures in the public way, the telecommunications provider shall notify the city engineer in writing of such removal or abandonment and shall file with the city engineer the location and description of each facility removed or abandoned. The city engineer may additionally direct remedial measures as the city engineer may determine necessary for the public safety and the integrity of the public way.

(12) *Bonding.* The telecommunications provider shall comply with all applicable requirements relating to the provision of bonds or other security to the city in connection with its work in the public way.

(13) *Tree trimming.* A telecommunications provider, its contractors and agents may trim trees that are upon and overhanging the public way and public places of the city so as to prevent the branches of such trees from coming in contact with the telecommunications provider's fiber or cables. At the option of the city, said trimming shall be done under the supervision and direction of the city or of any city official to whom said duties have been or may be delegated.

(14) *Indemnification and insurance.* The network facilities franchise shall contain indemnity and insurance provisions in a form acceptable to the city attorney.

(15) *Default and termination; valuation.* A network facilities franchise shall contain provisions relating to default and termination. For purposes of compliance with article II, section 17 of the charter of the city, unless the network facilities franchise provides otherwise, there shall be no requirement that the network facilities be purchased by the city upon termination of a network facilities franchise.

(16) *Other terms and conditions.* The network facilities franchise may contain such other terms and conditions as the director and the city attorney may prescribe and city council may approve that are not inconsistent with the terms of this article.

(Ord. No. 98-593, § 1, 7-22-98; Ord. No. 02-974, § 8, 10-30-02; Ord. No. 04-498, § 6, 5-26-04; Ord. No. 08-52, § 75, 1-16-08, eff. 1-26-08; Ord. No. 2010-831, § 2(Exh. A), 10-27-2010; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-337. Penalty for unauthorized use of the public way.

It shall be unlawful to make use of the public ways in violation of the terms of this article. Without limitation of other remedies available to the city, persons making use of the public way in violation of this article, or otherwise without valid consent of the city, shall be liable for all fees authorized by this article dating back to the inception of such use.

(Ord. No. 98-593, § 1, 7-22-98; Ord. No. 2010-831, § 2(Exh. A), 10-27-2010)

Secs. 40-338, 40-339. Reserved.

ARTICLE XV. ALLEYS

DIVISION 1. GENERALLY

Sec. 40-340. Scope of article; application; definitions.

(a) This article shall govern the improvement and use of the types of alleys, as defined herein, whether such improvement or use shall be for public use or pursuant to private rights of access.

(b) The provisions of this article shall apply only to alleys, as herein defined, but shall not apply to alleys platted, dedicated, and/or constructed subsequent to September 19, 1982, or dedicated and/or improved in conformity with Chapter 42 of this Code.

(c) The following words, terms and phrases used in this article shall have the meanings ascribed to them in this section, unless the context clearly indicates otherwise:

Alley shall mean the entire width between property lines forming any public right-of-way and which is designed primarily for secondary access to abutting properties having their primary access from an adjacent street or an approved or compensating open space or courtyard which has direct access to a public street.

Applicant shall mean a person who owns real property abutting an alley and seeks to improve such alley for motorized vehicular traffic use either by the public or pursuant to private rights of access.

Improve or *improvement* shall mean the filling, grading, raising, paving, re-paving, surfacing or other work done to change or alter the surface of, or drainage for, any alley, including any work, or the application of any material of whatever type, in, upon or to the surface or subsurface of an alley for the purpose of rendering such alley accessible by or usable for motorized vehicular purposes.

Paving shall mean the construction of any improvements to, or upon, any alley, including drainage or other similar work and the preparation and construction of both the subsurface and ultimate wearing or top surface of any alley, pursuant to the minimum standards set forth in section 40-343 of this Code.

Private rights of access shall mean those private rights of ingress and egress recognized by Texas law as being appurtenant to the purchase of real property by reference to a map or plat showing streets or alleys abutting such real property.

Public use shall mean a use or right of use available to the public in general, as distinguished from a particular individual or group of individuals. Public use alleys shall refer to alleys available for vehicular use and travel by the general public.
(Ord. No. 99-379, § 3, 4-21-99)

Sec. 40-341. Purpose, interpretation; type of alley covered; determination.

(a) The purpose of this article is to prescribe:

(1) Rules and regulations governing the improvement of certain alleys in the city; and

(2) Minimum standards and criteria for the improvement, including paving, of alleys that are to be improved and maintained for motorized vehicular or pedestrian use by the public.

(b) The terms and provisions of this article shall be interpreted and applied as minimum requirements adopted for the protection of the public health, safety and welfare and shall be applied to the alleys covered hereby, unless specifically provided otherwise herein.

(c) Houston Public Works will determine whether an alley has been dedicated to and accepted for use by the city, based upon its records, and to the extent necessary, the records of other city departments and applicable county records.
(Ord. No. 99-379, § 3, 4-21-99; Ord. No. 2018-11, § 50, 1-10-2018)

DIVISION 2. PUBLIC USE ALLEYS

Sec. 40-342. Initiating improvement of alley for public use; criteria.

(a) *Procedure.* The improvement of an alley for public use may be initiated by:

(1) Any person(s) owning real property abutting an alley who agree(s) to obtain the permit required by section 40-344 of this Code and comply with all requirements applicable to such alley, as provided in this article, including payment of all costs of improving such alley for public use; or

(2) The filing of a petition with the city engineer, signed by at least 75 percent of the property owners abutting such alley, wherein such abutting owners agree to pay their share of the costs to improve such alley through the city's usual paving assessment procedures.

(b) *Determination by city engineer.* No alley shall be improved or maintained for public use unless the city engineer authorizes the issuance of an appropriate permit after determining that:

(1) The improvement of such alley for public use will serve a bona fide public purpose and need;

(2) The traffic entering upon or exiting from such alley to an adjacent public street will not result in a significant impediment to existing traffic flow or constitute a traffic hazard;

(3) The condition or location of underground or above-ground utilities:

(i) will not be damaged or otherwise adversely affected by the opening of such alley; or;

(ii) if existing utilities would be adversely affected, the applicant agrees to relocate such utilities, at applicant's sole cost and expense;

(4) The condition and location of underground or above-ground utilities are such that it is unlikely that any paving or other surface improvements to be constructed or installed in such alley will be disturbed to replace, repair or upgrade such utilities within the succeeding five years; and

(5) Any applicant seeking a permit to improve such alley for public use has demonstrated the financial ability to fully comply with the requirements of this article, including, without limitation, the improvement of the alley to the standards prescribed in section 40-343 of this Code, if applicable.

(c) *Minimum requirements.* The following requirements shall apply in connection with the improvement for public use of any alley:

(1) A minimum right-of-way width of ten feet shall be available within such alley;

(2) Alleys with a right-of-way width of 20 feet or less shall be restricted to one-way traffic and shall connect two public streets;

(3) The junction of the alley and any connecting public street shall be at right angles, except as otherwise approved by the city engineer;

(4) The alley shall be constructed and improved in accordance with the standards, specifications and requirements set forth in section 40-343 of this Code;

(5) Minimum paving widths shall be 12 feet for alleys with a right-of-way width of 15 feet or more and eight feet for alleys with a right-of-way width of less than 15 feet; and

(6) An applicant must obtain the permit and post the bond (or cash deposit) required by this article.

(Ord. No. 99-379, § 3, 4-21-99)

Sec. 40-342.1. Acceptance of existing alleys for public use.

(a) *Purpose.* The purpose of this division is to provide a procedure alternative to provisions of section 40-342 of this Code whereby the owners of property abutting an alley ("*applicants*") may petition the city to accept the alley for public purposes.

(b) *Scope.* This section does not apply to:

(1) Service drives or other routes that serve the principal purpose of providing access for a single property;

(2) Public streets; or

(3) Any alley that has been duly accepted by the city by any other method.

(c) *No abridgement or limitation on deed restrictions.* With respect to private individuals and entities, this section and/or the city's decision to accept and maintain an alley hereunder does not abridge or limit any current or future deed restrictions that apply to such alley or any easement or right-of-way adjacent to the alley.

(d) *Petition—Form.* The applicants seeking city acceptance of an alley for public use shall submit to the city engineer a petition in the form promulgated therefor by the Director of Houston Public Works or his designee, who may revise the petition form from time to time as he deems appropriate.

(e) *Petition—Number of applicants.* For the city engineer to consider such a petition, the minimum number of applicants required to sign the petition shall be as follows:

(1) If the alley was dedicated to public use by a recorded plat or instrument, 51% of all persons owning property abutting the alley, on a block-by-block basis, between two streets; or

(2) If the alley was not dedicated to the public by a recorded plat or separately recorded instrument, 100% of all persons owning property abutting the alley on a block-by-block basis, between two streets.

(f) *Petition—Required accompaniments.* Along with the signed petition, the applicants must provide the following:

(1) Copies of recorded instruments vesting title in all property owners abutting the alley;

(2) If there are any city-owned signs or markers in the alley, photographs of such signs or markers;

(3) If any fence, structure or other item of private property (other than property owned by private utilities) encroaches into the alley, the written agreement of the owner of such structure or property to move same, as required by subsection (i) of this section;

(4) A list of city services to be provided in the alley that the applicants are requesting, if any;

(5) Any other proof of ownership as deemed necessary by the city engineer; and

(6) Upon request by the city engineer, a boundary and a topographic survey by a surveyor licensed to practice in the State of Texas showing improvements, easements, rights-of way, drainage, utilities, water lines, sanitary sewers, storm sewers, ditches, culverts, encroachments, and extent and type of pavement surface.

(g) *Standards.* In order to be accepted by the city, an alley must meet the standards set forth in the Infrastructure Design Manual, as promulgated and revised from time to time by Houston Public Works, unless the city engineer determines that it is necessary or appropriate to alter or waive one or more standards with respect to a particular alley, if in the public interest to provide public access.

(h) *Acceptance.* The city is not obligated to accept any alley. The determination of whether the city will accept an alley shall be made by the city engineer, whose decision shall be final. When an application is denied, no subsequent application for acceptance of the same alley shall be eligible for consideration for at least one year, unless this limitation is waived by the city engineer for good cause.

(i) *Removal of encroachments.* The owner of any fence, structure or other item of private property (other than property owned by private utilities) that encroaches into the alley shall remove same within 30 days following acceptance of the alley by the city.

(Ord. No. 08-167, § 2, 2-27-08; Ord. No. 2018-11, §§ 49, 50, 1-10-2018)

Sec. 40-342.2. Inventory of alleys.

The Houston Public Works shall make reasonable efforts to maintain an inventory of alleys within the city, to determine whether such alleys are accepted for public use or are for private access, and to maintain such inventory in a form that is accessible to the public. A copy of the inventory shall be maintained on file in the office of the city engineer.
(Ord. No. 08-167, § 2, 2-27-08; Ord. No. 2018-11, § 50, 1-10-2018)

DIVISION 3. MINIMUM STANDARDS; PERMIT

Sec. 40-343. Paving standards.

Alleys to be improved and maintained for public use shall be paved to the minimum standards and specifications, including the types of materials allowed, set forth in Public Works Drawing No. 7879-A.
(Ord. No. 99-379, § 3, 4-21-99)

Sec. 40-344. Permit required.

It shall be unlawful for any person to do, or cause to be done, any work to improve an alley for public use without a permit having been issued to such person as provided in section 40-55 et seq. of this Code.
(Ord. No. 99-379, § 3, 4-21-99)

Sec. 40-345. Bond; cash deposit.

No work to improve an alley for public use shall be commenced until the bond required by section 40-59, or a cash deposit in lieu of such bond, as authorized by section 40-60 of this Code, has been filed or deposited with the city engineer.
(Ord. No. 99-379, § 3, 4-21-99)

DIVISION 4. USE OF ALLEYS FOR PRIVATE ACCESS

Sec. 40-346. Use of alley.

(a) *Use.* Any alley not improved or maintained for public use may be improved and used pursuant to private rights of access held by the owners of abutting lots or property, under the terms and conditions provided by this section.

(b) *Application.* Any abutting property owner may apply to the city engineer for permission to improve and use an alley for private access from a public street to such applicant's property.

(c) *Requirements.* An applicant seeking the private use of an alley must:

(1) Be the fee simple owner of land abutting the alley;

(2) Obtain a permit pursuant to section 40-86 of this Code to connect such alley to any public street;

(3) Prepare and construct the surface of the alley so as to prevent the drainage of storm or surface water or runoff onto adjacent property;

(4) Assure drainage of stormwater and other runoff along the alley and into the intersecting street or drainage facilities; and

(5) If an applicant elects to post signs in connection with the private use of an alley, which election may be made in the applicant's sole discretion, such signs must be of a size, color and with wording and printing that is approved by the city engineer, must be posted at both sides of the street entrance to the alley as required by chapter 41 of this Code, and such signs must state that the alley is being used for private access and is not maintained by the city.

(d) *Materials.* Alleys to be used for private rights of access may be improved, constructed and/or surfaced with shell, gravel, asphalt, concrete or other materials, at the option of the applicant.

(e) *Non-liability of city.* With respect to any alley used or to be used for private rights of access, the city shall have no liability for:

(1) Maintenance of the alley;

(2) Patrolling the alley; or

(3) Drainage of stormwater or other surface runoff from such alley onto abutting properties.

(f) *No bond required.* The provisions of sections 40-59 and 40-60 of this Code shall not be applicable in the instance of any public alley improved or used pursuant to private rights of access.
(Ord. No. 99-379, § 3, 4-21-99)

Secs. 40-347—40-350. Reserved.

ARTICLE XVI. SITTING AND LYING UPON PUBLIC SIDEWALKS

Sec. 40-351. Definitions.

As used in this article, the following words, terms, and phrases shall have the meanings ascribed to them in this section, unless the context of their use clearly indicates another meaning:

Central Business District means the area beginning at the intersection of the centerline of U.S. 59 and the centerline of I.H. 45; thence in a northwesterly and northerly direction along the centerline of I.H. 45 to its intersection with the centerline of I.H. 10; thence in an easterly direction along the centerline of I.H. 10 to its intersection with the centerline of U.S. 59; thence in a southwesterly direction along the centerline of U.S. 59 to its intersection with I.H. 45, the point of beginning.

Designated area means the following areas finally approved and designated by the city council under section 40-353 of this Code:

(1) *The Central Business District.*

(2) *Midtown Area:* The area described in Exhibit A to Ordinance No. 2004-825, a copy of which is on file in the office of the city secretary.

(3) *Old Sixth Ward Area:* The area described in Exhibit A to Ordinance No. 2006-922, a copy of which is on file in the office of the city secretary.

(4) *Avondale Area:* The area described in Exhibit A to Ordinance No. 2006-923, a copy of which is on file in the office of the city secretary.

(5) *Greater Hyde Park Area:* The area described in Exhibit A to Ordinance No. 2006-924, a copy of which is on file in the office of the city secretary.

(6) *East Downtown Management District Area:* The area described in Exhibit A to Ordinance No. 2011-696, a copy of which is on file in the office of the city secretary.

(7) *Historic Near Northside Area:* The area described in Exhibit A to Ordinance No. 2016-794, a copy of which is on file in the office of the city secretary.

(8) *South Post Oak / West Bellfort Area:* The area described in Exhibit A to Ordinance No. 2017-219, a copy of which is on file in the office of the city secretary.

(9) *Near Northside II Area:* The area described in Exhibit A to Ordinance No. 2017-655, a copy of which is on file in the office of the city secretary.

(10) *Riverside Terrace Area:* The area described in Exhibit A to Ordinance No. 2024-127, a copy of which is on file in the office of the city secretary.

(11) *Museum Park Area:* The area described in Exhibit A to Ordinance No. 2024-655, a copy of which is on file in the office of the city secretary.

(12) Magnolia Park Area: The area described in Exhibit A to Ordinance No. 2024-856, a copy of which is on file in the office of the city secretary.

(13) East End Area: The area beginning at Chartres at Commerce, going north on Chartres to the Buffalo Bayou, then east/southeast along the southern bank of Buffalo Bayou to 75th street, then south on 75th street to Capitol, then west on Capitol back to where it connects with the Union Pacific rail line, as described in Exhibit A to Ordinance No. 2025-960, a copy of which is on file in the office of the city secretary.

Sidewalk means that portion of the public street that is between the curblines, or the lateral lines of a roadway, and the adjacent property lines and is improved and designed for or is ordinarily used for pedestrian travel.
(Ord. No. 02-504, § 4, 6-12-02; Ord. No. 04-825, § 4, 8-3-04; Ord. No. 06-922, § 4, 9-6-06; Ord. No. 06-923, § 4, 9-6-06; Ord. No. 06-924, § 4, 9-6-06; Ord. No. 2011-696, §§ 3, 4, 8-10-2011; Ord. No. 2016-794, § 4, 10-19-2016; Ord. No. 2017-219, § 4, 3-29-2017; Ord. No. 2017-655, § 4, 8-23-2017; Ord. No. 2024-127, § 4, 3-6-2024; Ord. No. 2024-655, § 4, 9-11-2024; Ord. No. 2024-856, § 4, 11-14-2024; Ord. No. 2025-960, § 4, 11-12-2025)

Sec. 40-352. Sitting and lying down on sidewalks.

(a) It shall be unlawful for any person to sit or lie down on a sidewalk or on a blanket, stool, or any other object placed upon a sidewalk:

(1) At any time in the Central Business District, East Downtown Management District Area, East End Area, and any other designated area defined in section 40-351 if subject to the rules and regulations for enforcement issued in compliance with section 40-354 of this Code; or

(2) Between the hours of 7:00 a.m. and 11:00 p.m. in any designated area not subject to the provisions of subsection (a)(1) of this section.

(b) It shall be unlawful for any person to place or deposit any item of bedding materials or personal possessions, including but not limited to any blanket, bag, package, or container of personal possessions on a sidewalk:

(1) At any time in the Central Business District, East Downtown Management District Area, East End Area, and any other designated area defined in section 40-351 if subject to the rules and regulations for enforcement issued in compliance with section 40-354 of this Code; or

(2) Between the hours of 7:00 a.m. and 11:00 p.m. in any designated area not subject to the provisions of subsection (b)(1) of this section.

(c) It is an affirmative defense to any prosecution under subsection (a) or (b) of this section that the person is:

(1) Sitting or lying down on a sidewalk because of a medical emergency;

(2) As the result of a disability, utilizing a wheelchair, walker, or similar device to move about the sidewalk;

(3) Operating or patronizing a commercial establishment or service or governmental function conducted on the sidewalk pursuant to a permit or authorization issued under this Code or under the laws of this state;

(4) Participating in or attending a parade, festival, performance, rally, demonstration, meeting, or similar event lawfully conducted on the public street or a sidewalk;

(5) Sitting on a chair or bench located on the sidewalk that is supplied by a governmental agency or the abutting private property owner; or

(6) Sitting or has placed materials on a sidewalk while waiting for public or private transportation or waiting for access to enter any building.

(d) Prior to taking any action to enforce the provisions of this article, any law enforcement officer observing a violation of this article shall first notify the person engaged in the prohibited conduct that he or she is in violation of this article. It is an affirmative defense to a prosecution under this article that any person so notified promptly ceased, within a time reasonable under the circumstances, to engage in the prohibited conduct following such notification.
(Ord. No. 02-504, § 4, 6-12-02; Ord. No. 2025-605, § 2, 7-16-2025; Ord. No. 2025-960, §§ 5, 6, 11-12-2025)

Sec. 40-353. Creation of designated areas.

(a) This section shall govern the creation of a designated area within the city other than the central business district.

(b) Residents of the city may petition the city council to designate any area within the city as a designated area under this article.

(c) Any such petition must meet the following requirements to be considered by the city council:

(1) Describe the proposed area by street boundaries;

(2) Contain the signatures of property owners whose property represents 20 percent of the total area to be designated;

(3) Contain the signatures of at least 100 citizens residing within the proposed area, each of whom was above the age of 18 years old when signing the petition;

(4) Indicate that the signatures thereon were collected within a 60-calendar-day period; and

(5) Indicate that the signatories thereon desire the area to be designated as an area subject to this article.

(d) Any such petition must be submitted to the city secretary within 90 calendar days of the date of the first signature thereon.

(e) Following the filing of any such petition with the city secretary, the city council shall, within 45 days of the date of filing, conduct a public hearing to consider the merits of the petition.

(f) The city secretary shall give notice as to the filing of any such petition and the date, time,and place of the city council hearing by posting same at least 14 days in advance of such hearing at a place convenient to the public at the City Hall. Any interested person shall have the opportunity to participate in any hearing conducted under the provisions of this section and to present any relevant evidence and testimony.

(g) The chief of police shall be requested to cause the proposed area to be investigated with regard to the existence of conduct in the proposed area that would be violative of this article if the proposed area were to be designated, along with any incidents of criminal misconduct in the proposed area, and to report the results of such investigation to the city council at or prior to the public hearing.

(h) Following such hearing and upon review of the report of the chief of police, the city council shall establish the designated area as requested if it determines that:

(1) The petition complies with the requirements of this section;

(2) The proposed area exhibits the kinds of conduct and adverse impact on use of the sidewalks and adverse impact on adjacent properties that this article was intended to address; and

(3) Designation of the proposed area would best serve the health, safety, and welfare of the public.

(i) This section shall not be construed to limit the authority of city council consistent with the provisions of this section to designate other areas without a public petition; provided, that the city council receives evidence, substantiated by the police department, that a particular area within the city exhibits a significant incidence of the kinds of conduct addressed by this article and makes the findings required under subsection (h)(2) and (h)(3) of this section.
(Ord. No. 02-504, § 4, 6-12-02)

Sec. 40-354. Rules and regulations.

(a) The housing and community development department director or the director's designee, in conjunction with the chief of police or the chief's designee and the director of the mayor's office of public safety and homeland security or the director's designee, is authorized to promulgate rules and regulations regarding any aspect of the operation of this article, including without limitation, the enforcement and issuance of citations for violations of this article. The rules and regulations shall be consistent with applicable federal and state law, and city ordinances. The rules and regulations shall also take into consideration available resources for housing and enforcement, as well as data on areas where

violations are concentrated and the impact of those violations on health conditions and use of the surrounding environment.

(b) In instances where a law enforcement officer observes an individual appearing to be experiencing a mental health crisis in connection with the enforcement of this article, prior to any enforcement action, the officer may engage appropriate mental health crisis resources such as dispatching a mobile crisis outreach team (MCOT) or a crisis intervention response team (CIRT). Engagement with these or other resources may occur in person or through telehealth services.

(c) Before implementing any rules and regulations under subsection (a) or any substantive amendments thereto, the housing and community development director or the director's designee shall publish notice of the rules and regulations on the city's website and post in affected locations at least 10 days prior to enforcement. Copies of the rules and regulations shall also be available for inspection in the city secretary's office, and copies may be obtained at no cost.
(Ord. No. 2025-605, § 3, 7-16-2025)

Secs. 40-355—40-360. Reserved.

ARTICLE XVII. SIDEWALK AND ROADWAY OBSTRUCTIONS AND IMPAIRMENTS*

DIVISION 1. GENERAL

Sec. 40-361. Definitions.

As used in this article, the following words and terms shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

Central business district or *CBD* means the area beginning at the intersection of the centerline of U.S. 59 and the centerline of I.H. 45; thence in a northwesterly and northerly direction along the centerline of I.H. 45 to its intersection with the centerline of I.H. 10; thence in an easterly direction along the centerline of I.H. 10 to its intersection with the centerline of U.S. 59; thence in a southwesterly direction along the centerline of U.S. 59 to its intersection with I.H. 45, the point of beginning.

Crosswalk means an area upon a roadway that has been designated by the traffic engineer with striping and/or signage as a place for pedestrians to cross the street. The term includes both crosswalks that have been designated at street intersections and those that have been designated between intersections.

Emergency means an unforeseen occurrence that creates a condition of substantial hazard or threat of damage or injury to life or property.

General permit means a permit issued for intermittent short-term (less than 24 hours) obstructions undertaken by utilities or public employees. An obstruction may not occur at the same location for more than seven consecutive days.

Impairment includes an excavation or removal of a sidewalk or portion thereof or an obstruction of a sidewalk or portion thereof.

Local street means a street that is not a major thoroughfare or major collector street.

Major collector street has the meaning ascribed in section 1-2 of this Code.

Major thoroughfare has the meaning ascribed in section 1-2 of this Code.

Mobility official means the Director of Houston Public Works or his designee.

Mobility inspector means an employee of the department designated by the mobility official to enforce the provisions of this article.

Obstruction means any construction or excavation related vehicle, equipment, fence, structure, bulk waste container, building or construction materials or debris, barricade, cone, sign, barrel, or other thing or object that is placed, planted, left or erected in or upon a

*__Editor's note—__Ord. No. 04-498, § 2, adopted May 26, 2004, amended Ch. 40, Art. XVII, in its entirety. Formerly said article pertained to pedestrian way and impairment and derived from Ord. No. 02-974, § 2, adopted 10-30-02.

roadway or sidewalk that would in any manner prevent or restrict public use of or access to any part of the roadway or sidewalk or restrict the drainage system of the roadway or sidewalk.

Peak traffic hours. This term is limited in its application to pedestrian and vehicular traffic on sidewalks and roadways on major collector streets and major thoroughfares and in the central business district and means the following hours on Mondays through Fridays, excepting holidays other than Veterans' Day that are observed by the closure of city offices: 6:00 a.m. to 9:00 a.m. and 4:00 p.m. to 7:00 p.m.

Permit means a current and valid permit issued under division 2 of this article.

Public employee means an employee of the state or a political subdivision of the state; the term also includes employees of contractors of the state and its political subdivisions when retained to perform public infrastructure maintenance contract functions, such as water and sewer line point repairs, pothole repairs, traffic signal maintenance and other functions that relate to the ongoing repair, public right of way enhancements including lane line striping, preservation, and cleaning of existing public facilities.

Roadway means the portion of a street that is paved or otherwise improved, designed, or ordinarily used for vehicular travel and/or for on-street parking. In the event a street includes two or more separate roadways, the term *"roadway"* shall refer to any such roadway. The term does not include any roadway that is primarily maintained by the Texas Department of Transportation or by any political subdivision other than the city.

Sidewalk means the portion of a street that is between the curblines or lateral lines of the roadway and the adjacent property lines and is improved for or ordinarily used for pedestrian travel. Where a street has two sidewalks, the term shall apply separately to each.

Street means the entire width between the boundary lines of every way that is publicly maintained, including sidewalks and crosswalks, provided that the term does not include any street that is primarily maintained by the Texas Department of Transportation or by any political subdivision other than the city.

Traffic-control device has the meaning ascribed in section 40-121 of this Code.

Utility means a public utility operating under a franchise from the city or a certificated telecommunications provider operating pursuant to Chapter 283 of the Texas Local Government Code.

Vehicle includes a vehicle whether motorized or not and/or a vehicle trailer.

(Ord. No. 04-498, § 2, 5-26-04; Ord. No. 09-1267, §§ 2, 3, 12-9-09, eff. 1-1-10; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-361.1. General powers and duties of mobility official.

It shall be the duty of the mobility official to direct, control, and manage all impairments and obstructions of roadways and sidewalks, including the enforcement of all regulations set forth in this article concerning impairments and obstructions of roadways and sidewalks. The mobility official shall also maintain a system to issue and track permits issued under this article. The mobility official is authorized to designate the necessary persons as mobility inspectors to enforce the provisions of this article.

(Ord. No. 09-1267, § 4, 12-9-09, eff. 1-1-10)

Sec. 40-361.2. Mobility inspectors.

(a) Mobility inspectors designated by the mobility official shall enforce the provisions of this article by issuance of citations on an official form prescribed by the mobility official for such notices. Mobility inspectors shall not have the power of arrest under the authority conferred by this section. Mobility inspectors shall be issued appropriate identification by the mobility official and shall be issued the necessary forms to carry out their duties. Mobility inspectors shall account to the mobility official for all citations issued and for all citation forms provided to them.

(b) Peace officers shall enforce the provisions of this chapter and applicable state laws and regulations relating to obstructing or impairing roadways and sidewalks by issuance of citations. (Ord. No. 09-1267, § 4, 12-9-09, eff. 1-1-10)

Sec. 40-362. Impairments and obstructions unlawful.

(a) It shall be unlawful for any person to place, cause, or allow any impairment or obstruction of a sidewalk or roadway, except as authorized by a permit.

(b) It is a defense to prosecution under this section that the impairment or obstruction is or consists of:

(1) A vehicle that is lawfully standing, stopped, or parked in compliance with applicable provisions of this Code and state traffic laws.

(2) A vehicle that has been rendered inoperable by a mechanical or other systems failure or by an accident and is stopped pending police investigation and/or towing or recovery services.

(3) A public transit facility, traffic control device, sign, street light, public trash receptacle, bicycle rack, or other structure or object lawfully placed by or on behalf of the state or a political subdivision of the state.

(4) A sign or display that is being utilized as part of a lawfully conducted demonstration or rally provided that the object does not obstruct or impair vehicular or pedestrian traffic and further provided that it is used and displayed only during the period of time that the demonstration or rally is attended and ongoing and the attendees remove the sign or display at the conclusion of the demonstration or rally.

(5) Equipment and materials related to work actively being performed by a utility or public employee that has obtained a general permit.

(6) Trees, grass, shrubbery, and landscaping that is placed and maintained in a manner conforming to applicable requirements of chapters 32 and 45 of this Code and regulations issued thereunder.

(7) A parade lawfully conducted under chapter 45 of this Code.

(8) A sidewalk café authorized under section 40-10.1 of this Code, street function authorized under section 40-27 of this Code, or newsrack placed as authorized under article XX of chapter 40 of this Code.

(9) A valet zone as authorized under section 26-445 of this Code.

(10) Equipment and materials relating to public infrastructure maintenance work performed, outside of the general permit requirements, by public employees, provided that the work is performed in accordance with a time, place, and manner protocol approved by the traffic engineer.

(11) Solid waste containers and heavy trash items of the type and size authorized for residential service of the nature provided by the city and city contractors under chapter 39 of this Code that are placed for collection in a manner that does not obstruct the roadway or impair pedestrian use of the sidewalk; however, this defense does not extend to bulk containers of the "dumpster" or "roll-off" type that are typically used to service multifamily residential properties, commercial properties, and construction sites.

(12) Poles, distribution boxes, and related structures of utilities, provided that they are not placed in such a manner as to obstruct or impair vehicular or pedestrian use of the roadway or sidewalk.

(13) Postal deposit and delivery boxes, provided that they are not placed in such a manner as to obstruct or impair vehicular or pedestrian use of the roadway or sidewalk.

(14) A building encroachment or other permanent obstruction for which the abutting owner has a current and valid permit or other authorization as obtained from city council.

(15) Equipment relating to a sidewalk activity as authorized under article XI of this chapter.

(16) An emergency as defined in section 40-376 of this Code.

(c) Under the authority granted in section 40-366 of this Code, the mobility official may issue rules and regulations regarding the application of the defenses set forth in subsection (b), above. It is a required element of any defense asserted under subsection (b) that the actor is in compliance with any applicable rules and regulations.
(Ord. No. 04-498, § 2, 5-26-04; Ord. No. 07-225, § 6, 2-14-07; Ord. No. 01-1111, § 4, 10-3-07; Ord. No. 09-1267, §§ 5, 6, 12-9-09, eff. 1-1-10)

Sec. 40-363. Inactivity during permit period; revocation.

(a) As a condition of a permit, it is the responsibility of the permit holder to diligently prosecute the work for which the permit was obtained; without limitation of the foregoing, the permit holder shall ensure that there is no period of 15 consecutive days or more during which the work site is inactive.

(b) The foregoing inactivity prohibition is inapplicable to:

(1) A delay that arises from causes beyond control and without fault or negligence of the permit holder. Examples of these causes are:

a. Acts of God or of the public enemy.

b. Acts of government in its sovereign capacity.

c. Fires, floods, or unusually severe weather.

d. Epidemics or quarantine restrictions.

e. Strikes or freight embargoes.

f. Discovery of pollutants at the site which requires cessation of activity pursuant to a federal, state, or local law.

(2) A delay caused by an order to temporarily cease work issued by the traffic engineer or chief of police.

(Ord. No. 04-498, § 2, 5-26-04)

Sec. 40-364. Provisions cumulative.

(a) The provisions of this article are cumulative of all other applicable laws and ordinances. Compliance with this article shall not excuse compliance with any other requirement of laws or ordinances or the obtaining of any other license, permit, franchise, or other required authorization.

(b) Without limiting the foregoing, a separate permit is also required under article V of this chapter whenever the obstruction is for purposes of an excavation and the provisions of that article are applicable to the work. The Director of Houston Public Works shall coordinate the two permit processes.

(c) To the extent that any provision set forth in this article may not be imposed upon any person because its imposition would be inconsistent with a controlling state or federal law, then this article shall be construed and applied in a manner that conforms to the state or federal law.
(Ord. No. 04-498, § 2, 5-26-04; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-365. Construction work in roadways or sidewalks; public work.

(a) With the exception of work addressed in sections 40-362(b)(5) or (b)(10) of this Code above, utilities, contractors of the city and other political subdivisions of the state who are performing construction, reconstruction, or repair work in the roadways or sidewalks or work that otherwise causes an impairment or obstruction shall be required to obtain a permit. Except as provided in section 40-373, nothing in this article shall be construed to authorize the imposition of restraints upon the contractor's work that are inconsistent

with traffic control plans or other documents upon which the contracts for the work were bid or let, provided that the documents were reviewed and approved under subsection (b), below. However, the traffic engineer shall not be obliged to issue a permit hereunder for work to be performed at times not authorized in the contract documents or for the occupancy of areas of any roadway or sidewalk that are not expressly authorized to be occupied for the performance of the work under the contract documents.

(b) Traffic control plans and other bid/contract related documents proposed for public works by the city or other political subdivisions that are for construction projects in a roadway or sidewalk or that will otherwise cause any impairment or obstruction of a roadway or sidewalk shall be submitted to the traffic engineer for review and approval by the public entity contracting for the work before bids are taken, or if the work is not let on bids, before the contract is negotiated.

(c) The defense set forth in section 40-362(b)(10) of this Code is not intended to excuse public employees from coordinating their work with the traffic engineer to ensure that impairments or obstructions conform to applicable requirements of this article, and the Director of Houston Public Works shall administratively adopt regulations for that purpose.

(d) Notwithstanding any provisions under this article to the contrary, the traffic engineer may issue a permit to a city department necessary to perform departmental functions without requiring a permit fee, release and indemnity provisions or evidence of insurance. The traffic engineer may adopt specific rules and regulations regarding time. Place and manner with regard to such city department permits, as deemed appropriate to ensure that traffic and mobility are not adversely affected.

(e) Notwithstanding any provisions under this article to the contrary, the deployment and use of all traffic-control devices shall conform to the specifications set forth in the Texas Manual on Uniform Traffic Control Devices.
(Ord. No. 04-498, § 2, 5-26-04; Ord. No. 09-1237, § 7, 12-9-09, eff. 1-1-10; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-366. Regulations.

The Director of Houston Public Works is authorized to adopt rules and regulations for the administration of this article. To the extent practicable, as determined by the traffic engineer, the rules and regulations may provide for the filing and processing of permit documents by electronic means.
(Ord. No. 04-498, § 2, 5-26-04; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-367. Penalty.

(a) It is a criminal offense for any person to violate any of the provisions of this article. Every person convicted of violating any of the provisions of this article for which another penalty is not specifically provided shall be punished by a fine of not less than $200.00 nor more than $500.00; provided however that no penalty shall be greater or less than the penalty for the same offense under the laws of this state.

(b) For violations under this chapter that are of a continuing nature, each day that the violation continues shall constitute a separate offense.
(Ord. No. 04-498, § 2, 5-26-04; Ord. No. 09-1237, § 8, 12-9-09, eff. 1-1-10)

Sec. 40-368. Hearing.

Any person who is aggrieved by a decision of the city, its officials, or employees with respect to a permit application or impairment or obstruction abatement action under this article shall, upon written request, be entitled to a hearing to be conducted by hearing officer designated by the Director of Houston Public Works, who shall promulgate rules for hearings. The decision of the hearing officer shall be final. A hearing requested under section 40-126 of this Code may be consolidated with a hearing requested under this section.
(Ord. No. 04-498, § 2, 5-26-04; Ord. No. 09-1237, § 8, 12-9-09, eff. 1-1-10; Ord. No. 2018-11, § 49, 1-10-2018)

Secs. 40-369, 40-370. Reserved.

DIVISION 2. PERMITS

Sec. 40-371. Administration and schedule of permit fees.

The traffic engineer shall issue and administer permits. The schedule of fees established pursuant to this section shall be applicable initially to the permits authorized to be issued pursuant to this article. The Director of Houston Public Works shall determine annually in connection with the city's fiscal year whether an increase or decrease in these fees is required for the sidewalk and roadway obstructions and impairments permit program, based on an analysis of the actual costs of administering and enforcing this program, and is hereby authorized to make adjustments annually to the schedule of fees. If the fee is increased, it may be increased only by the documented additional cost to administer and enforce this program. The traffic engineer shall not issue any permit unless and until the applicable fee has been paid, unless the applicant is exempt from paying a fee under city contract, including the "Adopt a Container" program, franchise agreement, or federal, state or local statutes or other applicable laws. Weekly fees shall not be prorated for obstructions lasting less than a full week. Persons who desire to obtain permits shall be charged a fee under the following conditions:

(1) For an impairment or obstruction of a roadway or sidewalk, the permit holder shall pay, on a weekly basis only, the applicable fee as shown in the city fee schedule. Fees are based upon single lane closures of up to one week in duration. Multiple lane closure fees are assessed separately. Each hundred block or portion thereof (for instance the 100 block, the 200 block, etc.) constitutes a full hundred-block closure.

(2) Work areas include *transition areas, activity areas,* and *termination areas* as defined in the latest edition of Texas Manual of Uniform Traffic Control Devices.

(3) A utility or public employee may apply for a general permit. A general permit may be used for all street obstructions except as defined below (or defined as an emergency):

a. Obstructions may not be performed during peak traffic hours in the CBD and other high vehicle occupancy and transit corridors;

b. Obstructions may not reduce lane usage to less than two driving lanes in the CBD during off peak traffic hours;

c. Outside the CBD during off peak hours, obstructions may not reduce lane usage to less than one lane in each direction on roadways with four or more lanes, and not less than one lane on two-lane roadways;

d. Obstructions may not occur in conflict with special events or parades;

e. Sidewalk impairments in the CBD may not be performed under a general permit.

(4) Any fees or revenues generated by roadway obstruction or sidewalk impairments covered under this article shall be distributed as follows:

a. 85 percent of all fees and revenues shall be allocated to the transportation special revenue fund administered by the Houston Public Works;

b. 15 percent of all fees and revenues shall be allocated to the police special services fund administered by the police department.

(Ord. No. 04-498, § 2, 5-26-04; Ord. No. 09-1237, §§ 9, 10, 12-9-09, eff. 1-1-10; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2018-11, §§ 49, 50, 1-10-2018)

Sec. 40-372. Application.

Persons who desire to obtain permits shall make application to the traffic engineer at least ten business days before the date on which the

permit is required, unless the traffic engineer approves a shorter time, setting forth the following:

(1) The applicant's name, business street address and mailing address if different, and business telephone number. If the proposed impairment or obstruction involves efforts of two or more persons, such as a utility and a contractor or an abutting property owner and a contractor, then they shall join as coapplicants, and the required information shall be provided for each.

(2) The name and 24-hour telephone number of a person or persons whom the traffic engineer may contact if needed to resolve any issues that may arise with respect to the permit.

(3) The purpose for which the permit is requested.

(4) If the permit relates to construction or demolition work on abutting property, then the building permit number.

(5) If the permit is for an activity for which any other city permit is also required, then the permit number or evidence that the application therefor has been filed.

(6) If the permit is for street construction work, the name and description of the project, or if the city is the contracting agency, then the contract or job number.

(7) The duration, dates, and times of day of the proposed impairment or obstruction.

(8) A description of the proposed impairment or obstruction, including its size, material, and the location upon the roadway or sidewalk where it will be placed.

(9) The reasons why the work, function, or activity proposed requires an impairment or obstruction of a roadway or sidewalk and cannot otherwise reasonably be accomplished.

(10) A statement that if the permit is issued, the applicant as a permit holder accepts and obligates itself to the following release and indemnification provisions:

"RELEASE

PERMIT HOLDER AGREES TO AND SHALL RELEASE THE CITY, ITS AGENTS, EMPLOYEES, OFFICERS, AND LEGAL REPRESENTATIVES (COLLECTIVELY THE "CITY") FROM ALL LIABILITY FOR INJURY, DEATH, DAMAGE, OR LOSS TO PERSONS OR PROPERTY SUSTAINED IN CONNECTION WITH OR INCIDENTAL TO PERFORMANCE UNDER THE PERMIT, EVEN IF THE INJURY, DEATH, DAMAGE, OR LOSS IS CAUSED BY THE CITY'S ACTUAL OR ALLEGED JOINT OR CONCURRENT NEGLIGENCE AND/OR THE CITY'S STRICT PRODUCTS LIABILITY OR STRICT STATUTORY LIABILITY.

INDEMNIFICATION

PERMIT HOLDER AGREES TO AND SHALL DEFEND, INDEMNIFY, AND HOLD THE CITY, ITS AGENTS, EMPLOYEES, OFFICERS, AND LEGAL REPRESENTATIVES (COLLECTIVELY THE "CITY") HARMLESS FOR ALL CLAIMS, CAUSES OF ACTION, LIABILITIES, FINES, AND EXPENSES (INCLUDING, WITHOUT LIMITATION, ATTORNEYS' FEES, COURT COSTS, AND ALL OTHER DEFENSE COSTS AND INTEREST) FOR INJURY, DEATH, DAMAGE, OR LOSS TO PERSONS OR PROPERTY SUSTAINED IN CONNECTION WITH OR INCIDENTAL TO PERFORMANCE UNDER THIS PERMIT, INCLUDING, WITHOUT LIMITATION, THOSE CAUSED BY:

(i) PERMIT HOLDER'S AND/OR ITS AGENTS', EMPLOYEES', OFFICERS', DIRECTORS', PRINCIPALS', OR SUBCONTRACTORS OF PERMIT HOLDERS' (COLLECTIVELY IN NUMBERED

PARAGRAPHS (i)—(iii), "PERMIT HOLDER") ACTUAL OR ALLEGED NEGLIGENCE OR INTENTIONAL ACTS OR OMISSIONS;

(ii) THE CITY'S AND PERMIT HOLDER'S ACTUAL OR ALLEGED CONCURRENT NEGLIGENCE, WHETHER PERMIT HOLDER IS IMMUNE FROM LIABILITY OR NOT; AND

(iii) THE CITY'S AND PERMIT HOLDER'S ACTUAL OR ALLEGED STRICT PRODUCTS LIABILITY OR STRICT STATUTORY LIABILITY, WHETHER PERMIT HOLDER IS IMMUNE FROM LIABILITY OR NOT.

PERMIT HOLDER SHALL DEFEND, INDEMNIFY, AND HOLD THE CITY HARMLESS DURING THE TERM OF THE PERMIT AND FOR FOUR YEARS AFTER THE PERMIT TERMINATES.

WHERE APPLICABLE, THE PROVISIONS OF SECTION 283.057 OF THE TEXAS LOCAL GOVERNMENT CODE SHALL CONTROL IN LIEU OF THE FOREGOING; ADDITIONALLY, TO THE EXTENT THAT THE APPLICANT HOLDS A CURRENT AND VALID UTILITY FRANCHISE FROM THE CITY, THE RELEASE AND INDEMNIFICATION PROVISIONS OF THE FRANCHISE SHALL CONTROL IN LIEU OF THE FOREGOING."

(11) If the roadway obstruction or sidewalk impairment is proposed during peak traffic hours on streets within the central business district, or on major thoroughfares or major collector streets, the reason why the activity cannot reasonably be performed at an other time.

(12) A detailed current traffic control plan for the impairment or obstruction, if required by the traffic engineer.

(13) If proposed during other than peak hours, standard operating procedures that will be used to remove impairments or obstructions during peak hours.

(14) A schedule of activities, if the work will occur for more than 14 days.

(15) Any other information required to determine compliance with the requirements of this article.

(Ord. No. 04-498, § 2, 5-26-04)

Sec. 40-373. Review, issuance, terms, revocation.

(a) All applications submitted pursuant to the provisions of this article shall be reviewed on a first-come, first-served basis. The traffic engineer shall, subject to the provisions of this article, approve an application as submitted or modified subject to subsection (b) below and issue a permit, unless he determines that:

(1) The application is incomplete or materially untruthful;

(2) The proposed impairment or obstruction relates to work or an activity that can reasonably be accomplished by alternative methods that, even if they might be more costly, would not require impairment or obstruction of the roadways or sidewalks; or

(3) Based upon the scope and nature of the proposed impairment or obstruction and the anticipated vehicular or pedestrian traffic upon the roadway or sidewalk at the times requested, that the impairment or obstruction would substantially inconvenience the public in its use of the roadways or sidewalks and that the inconvenience would outweigh any public benefits from the work, function, or activity for which the impairment or obstruction is proposed.

(b) The traffic engineer may impose reasonable limitations upon the time and manner in which a impairment or obstruction will be authorized, which shall be consistent with the nature and time of the impairment or obstruction and its anticipated effects upon vehicular and pedestrian use of the roadways or sidewalks. Without limiting the foregoing, the traffic engineer shall not authorize an impairment or obstruction during peak traffic hours if a practicable alterna-

tive time schedule could be used, unless he determines that traffic and mobility will not be adversely affected. Consistent with the foregoing criteria, the traffic engineer may require the permit holder to provide vehicular and pedestrian traffic control devices, alternative pedestrian walkways (covered or open), signage, and traffic control personnel at the permit holder's expense. The permit holder shall furnish any required traffic control personnel, such as flaggers or peace officers, in accordance with directives of the chief of police and at the permit holder's expense. To the extent that another person has previously requested or obtained a permit for all or part of the area subject to the application or the traffic engineer is aware of any other activity that will also affect traffic at the time and in the area affected by the application, the traffic engineer may require the persons to coordinate their impairments or obstructions or may delay the effective date of the permit until a previous impairment or obstruction or activity will have been concluded.

(c) Each permit shall be issued in writing, shall set forth the location, beginning and ending dates, authorized days of the week and times of day, nature and authorized site of the authorized impairment or obstruction, and any requirements for traffic control devices, signage, or personnel. The permit shall not be valid for any impairment or obstruction except in strict accordance with its terms and shall be void if used in any other time, place, or manner.

(d) Permits are personal to the permit holder and may not be assigned or used by any other persons.

(e) Upon written notice to the holder, a permit may be withdrawn, suspended, or revoked if the Director of Houston Public Works or the traffic engineer determines that it was issued by error, that the impairment or obstruction is having unanticipated adverse effects upon vehicular or pedestrian traffic, or that the holder has not complied with any applicable term of the permit.
(Ord. No. 04-498, § 2, 5-26-04; Ord. No. 09-1237, § 11, 12-9-09, eff. 1-1-10; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-374. Permits for suspension of metered parking.

A person who wishes to suspend the operation of metered parking must obtain a separate permit to do so pursuant to Division 2 of Article III of Chapter 26 of this Code.
(Ord. No. 04-498, § 2, 5-26-04; Ord. No. 09-2, § 20, 1-7-09)

Sec. 40-375. Insurance.

(a) As a condition of the issuance of a permit, the applicant shall provide evidence that the applicant holds a current policy of comprehensive general liability insurance covering the impairment or obstruction, with an endorsement for any liability assumed under this article and policy limits of not less than $100,000.00 for property damage, per occurrence, and of not less than $250,000.00, per person, and $500,000.00, per occurrence, for bodily injury or death. Each policy shall include a provision designating the city as an additional insured with respect to activities under the permit and shall also include a provision obligating the insurer to furnish to the traffic engineer at least 15 days prior written notice of any cancellation.

(b) The failure of the permit holder to continuously maintain any required coverage shall cause any permit covered thereby to become void. No work may be performed on any excavation at any time when any required proof of insurance coverage is not on file in the traffic engineer's office.

(c) For joint applications and permits, the coverage required in this section may be provided by a policy jointly covering all of the applicants or by separate proofs of coverage for each applicant or permit holder.

(d) To the extent that any other city permit, license, or authorization is required for the impairment or obstruction, and insurance coverage is also required as a condition thereof, then the permit holder shall not be required to duplicate coverage and may provide one policy that meets all applicable requirements.
(Ord. No. 04-498, § 2, 5-26-04)

Sec. 40-376. Emergencies.

(a) The traffic engineer shall establish a means by which obstructions of an emergency nature may be commenced without obtaining a street obstruction permit unless work continues longer than 24 hours, at which time a full application shall be filed. Permit fees are waived for the duration of the emergency obstruction. The application shall include an explanation of the nature of the emergency, a description of the proposed impairment or obstruction, the duration, dates, and times of day of the proposed impairment or obstruction, and the name and emergency contact telephone number for the requestor.

(b) In addition to the defenses provided in section 40-362(b) of this Code, it is an affirmative defense to prosecution under section 40-362(a) that the impairment or obstruction was reasonably required to address an emergency. This affirmative defense shall only apply pending the timely submission of a permit application and shall not be valid if the application is denied.
(Ord. No. 04-498, § 2, 5-26-04)

Sec. 40-377. Posting at impairment or obstruction site.

(a) The permit holder shall post a copy of the permit at each impairment or obstruction site in accordance with the regulations issued under section 40-365 of this Code.

(b) In any prosecution under section 40-362 of this Code, it shall be presumed that no permit existed unless the permit is posted as required under subsection (a) of this section.
(Ord. No. 04-498, § 2, 5-26-04)

Sec. 40-378. Abatement.

Impairments or obstructions that are created without a permit or that are created in a time, place, or means that is inconsistent with a permit shall be subject to summary abatement upon order of or by the traffic engineer, mobility inspector, or any peace officer of the city. If the person causing the impairment or obstruction is present at the site, the traffic engineer, mobility inspector, or peace officer may, consistent with the nature of the impairment or obstruction and ambient traffic conditions, afford an opportunity to remove the impairment or obstruction. Otherwise, the impairment or obstruction shall be removed by city forces or contractors. Any costs of removing the impairment or obstruction shall be assessed to the person who caused it, if known, and, no additional permits shall be issued to that person until the city has been reimbursed for the costs. To the extent that an impairment or obstruction has an identifiable owner and an apparent value of $100.00 or more, the obstruction, unless of a perishable nature, shall be placed in storage for a period of 30 days, and the owner shall be notified and afforded an opportunity to have the return of the item, subject to payment of any removal and storage costs.
(Ord. No. 04-498, § 2, 5-26-04; Ord. No. 09-1237, § 12, 12-9-09, eff. 1-1-10)

Secs. 40-379—40-390. Reserved.

ARTICLE XVIII. RELOCATION OF PRIVATELY-OWNED FACILITIES

Sec. 40-391. Definitions.

As used in this article, the following terms shall have the meanings ascribed in this section, unless the context of their usage clearly indicates another meaning:

Director means the Director of Houston Public Works or his designee.

Facility means any structure, device or other thing whatsoever that is installed or maintained in, on, within, under, over or above a public right-of-way within the city.

Public right-of-way means any public street right-of-way located in the city, including the entire area between the boundary lines of every right-of-way (including but not limited to roads, streets, alleys, highways, boulevards, bridges, tunnels, or similar thoroughfares).

Public works project means any construction, reconstruction, improvement, repair or maintenance project undertaken by or on behalf

of the city, including but not limited to projects included on the city's capital improvement plan regardless of source of funding.

Relocate means to move, remove or replace a facility.

(Ord. No. 05-371, § 2, 4-13-05; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 40-392. Registry of facilities and owners.

(a) The owner of any facility as defined in this article, other than a pipeline that is subject to the provisions of article IX of this chapter, shall provide to the director, and thereafter maintain, current: (1) contact information indicating the name and address of the owner of the facility and the individual at that address designated as a contact person for the owner; and (2) information describing and locating any facilities of the owner in the public right-of-way. The information shall be in the form prescribed by the director. If an owner does not have contact information on file, the owner shall provide the contact information at the time application is made for an excavation

permit pursuant to article V of this chapter. It shall be unlawful for any owner to fail to provide or maintain current information as required by this section.

(b) Any location information submitted under this section that is designated by the owner as "confidential," "trade secret," or "proprietary" will not be disclosed to the public by the city without the consent of the owner, unless otherwise compelled by an opinion of the attorney general pursuant to the Texas Public Information Act ("TPIA") or by order a court having jurisdiction of the matter pursuant to applicable law. Upon receipt of a request for such location information, the city will notify the contact person of the request in writing. If the owner elects to protect the location information from disclosure, the owner shall immediately notify the city and submit to the Texas Attorney General a brief that: (1) identifies the legal exceptions that apply; (2) identifies the specific parts of each document that are covered by each exception; and (3) explains why each exception applies. The city shall have no obligation or duty to submit any argument or brief to the Texas Attorney General on behalf of the owner.
(Ord. No. 05-371, § 2, 4-13-05)

Sec. 40-393. Relocation required.

(a) Whenever the city engineer determines, in the exercise of sound engineering judgment, that a facility should be relocated for the accomplishment of a public works project, the owner of the facility shall relocate the facility at the owner's sole expense in accordance with this article. In the event that an owner's failure to timely relocate a facility in accordance with this article causes the city to incur expenses, damages or losses, including loss of grant funds, for any resulting delay, the owner of the facility shall be responsible for the city's expenses, damages or losses.

(b) It shall be the policy of the city to design public works projects to minimize the relocation of facilities, but the city shall not be obligated to design a public works project to avoid facility relocation and the determination of the city engineer of the appropriate design of the public works project shall be final.
(Ord. No. 05-371, § 2, 4-13-05)

Sec. 40-394. Notice of annual adopted capital improvement plan.

The city engineer shall provide notice of the passage of the annual adopted capital improvement plan for the city within 60 days of its passage by the city council. Notice shall be given by first class letter deposited into the United States postal service to the person and at the address on file with the city pursuant to section 40-392 of this Code and shall identify the location on the city's website or provide notice of other locations where the adopted capital improvements plan can be reviewed.
(Ord. No. 05-371, § 2, 4-13-05)

Sec. 40-395. City engineer's preliminary notice.

When during the design of a public works project the city engineer, based on information then available to him, determines that the presence of a facility in a public right-of-way may interfere with a public works project so that the relocation of the facility may be necessary, the city engineer shall provide the owner of the facility written notice of the planned public works project and the potential for relocation. The city engineer shall make this determination as soon as practicable, but no later than a reasonable period following receipt of a preliminary engineering report for the public works project, and shall give the notice to the owner as soon as practicable thereafter. The notice shall be given to the contact person identified pursuant to section 40-392 or section 40-232 of this Code, as applicable, by any means that requires proof of delivery. The notice shall identify the public works project and provide the owner with an opportunity to discuss with the city engineer the public works project and potential design alternatives that could avoid facility relocation. Notice pursuant to this and the preceding section of this Code is for the purpose of coordination only and is not a condition precedent

to the city's exercise of its rights and remedies under this article nor to the facility owner's obligations hereunder.
(Ord. No. 05-371, § 2, 4-13-05)

Sec. 40-396. City engineer's final determination and notice.

(a) The city engineer shall determine before completion of final design of a public works project whether the design of the public works project requires relocation of a facility and shall provide notice thereof to the owner of any facility required to be relocated. The notice shall be given in the manner provided in section 40-395 of this Code. In making a determination pursuant to this section, the city engineer or the director, as applicable, shall consider the purpose and complexity of the public works project and timetable for its construction, the number of facilities potentially affected by the project, the number of facility relocations required for the project, the cost and complexity of relocating each facility and any other factors he determines in the exercise of sound engineering judgement are relevant to the public works project.

(b) Notwithstanding the notice provisions of this Code that are otherwise applicable, if the city engineer discovers during the construction of a public works project:

(1) That a facility located in the public right-of-way not previously known to the city engineer requires relocation; or

(2) That inaccurate information about the location of the facility was provided by or on behalf of the facility owner and relocation is required which was not previously anticipated;

the city engineer shall give notice of the necessity for relocation in the manner provided in section 40-395 of this Code.

(c) Except for facilities discovered under section 40-396 (b)(1) or (2), the owner of the facility shall have a period of 60 days following the date of the notice sent pursuant to subsection (a) of this section to submit a proposed schedule for relocation of the facility for approval by the city engineer. The city, through the city engineer, and the owner may enter into a memorandum of agreement, in a form approved by the city attorney, evidencing agreement on the relocation schedule. The city engineer for good cause may extend, for a period not to exceed an additional 60 days, the time for submission or re-submission of a relocation schedule. The owner of facilities discovered under section 40-396(b)(1) or (2) shall provide to the city engineer at the earliest possible date, but not later than five business days following the owner's receipt of notice under that section , a proposed schedule for relocation of the facility and shall diligently prosecute the relocation of such facility until completed.

(d) No schedule for the relocation of a facility shall provide a period for relocation of longer than 180 days without written approval of the director, who for good cause shown by the facility owner, may extend the period of time for relocation. The time allowed for relocation shall commence on the date agreed to by the city engineer and the facility owner, but no later than the date of the notice to proceed for the public works project, unless extended by the city engineer for good cause shown by the facility owner, and shall be suspended upon the occurrence, and extended for the duration of, an event of force majeure, which shall include a strike, war or act of war (whether an actual declaration of war is made or not), insurrection, riot, act of public enemy, accident, fire, flood or other act of God, sabotage or other events, where the facility owner has exercised all due care in the prevention thereof so that the causes or other events are beyond the control and without the fault or negligence of the facility owner. For good cause shown by the facility owner, the city engineer may determine that the failure of the city to timely process a properly filed, complete application for a city permit or approval required for the facility relocation constitutes an event of force majeure.

In determining "good cause" as used in this section (excluding the failure of the city to act timely as set forth in the preceding paragraph) the director shall be entitled to consider such factors, not attributable to any fault or negligence of the facility owner, including, but not limited to the following:

1. Availability of materials or supplies required for a relocation.

2. Availability of sufficient labor or technical personnel to timely effect a relocation.

3. Any loss or damage to the public or users of the facility to be relocated.

4. The availability of any alternative means of providing to the public or other users the services of the facility to be relocated.

(Ord. No. 05-371, § 2, 4-13-05)

Sec. 40-397. Relocation authorized; other legal action.

(a) If upon the expiration of 60 days from the date of the city engineer's notice to the owner pursuant to subsection 40-396(a) of this Code, or five business days from the date of the city engineer's notice to owner pursuant to subsection 40-396(b) of this Code, or any extension of time approved by the city engineer, the city and the owner have not agreed upon a schedule for the relocation of the facility at the owner's expense, the city engineer is authorized to:

(1) Refer the matter to the city attorney for appropriate legal action; or

(2) Relocate the facility, or cause the facility to be relocated, on behalf of the owner and, subject to subsection (d) of this section, recover the cost of the relocation from the owner.

(b) If the city engineer determines that the owner has not timely complied with the terms of an agreed relocation schedule and that the unfinished relocation of the facility will delay completion of the affected city project, the city engineer is authorized to:

(1) Refer the matter to the city attorney for appropriate legal action; or

(2) Relocate the facility, or cause the facility to be relocated, on behalf of the owner and, subject to subsection (e) of this section, recover the cost of the relocation from the owner.

(c) No later than the date of the commencement of any construction activity for the relocation of any facility by the city pursuant to this section, the city engineer shall give notice of the date on which the relocation shall begin by first class letter deposited into the United States postal service to the person and at the address on file with the city pursuant to section 40-392 of this Code. Not less than three days before the transfer of service to a facility relocated pursuant to this section is feasible, the city engineer shall give notice of such fact by first class letter deposited into the United States postal service to the affected person and at the address on file with the city pursuant to section 40-392 of this Code. If the facility owner fails to commence the transfer of service within 24 hours after the expiration of the third calendar day following the giving of notice to the facility owner, the city may deem the original facility abandoned and cause it to be removed without further liability and, at the city's election, transfer such service to the relocated facility.

(d) Failure of a facility owner to provide a relocation schedule satisfactory to the city engineer, applying reasonable engineering judgment, within the initial 60 or 5 day period, whichever is applicable, or any extension thereof, shall constitute authorization for the city to assess damages, including expenses, damages or losses for project delay, and, subject to subsection (e) of this section, recover costs of relocating the facility from the owner and shall also constitute a waiver by the owner of any claim for damages against the city.

(e) Failure of a facility owner to comply with an agreed relocation schedule shall constitute authorization for the city to recover damages, including expenses, damages or losses for project delay, and recover costs of relocating the facility from the owner and shall also constitute a waiver by the owner of any claim for damages against the city.

(f) All relocations required under this article shall be at the sole expense of the owner of the facility, except to the extent provided otherwise in a current, valid city franchise held by the owner of the facility or by section 40-234(k) of this Code. In addition, if the city requires the relocation of a facility from a location approved by the city as part of a public works project pursuant to this article within five years following the date of a relocation of the facility pursuant to this article, the city shall bear the cost of the subsequent relocation of the facility. Nothing in this subsec-

tion shall preclude the application of funds from sources other than the city to the payment of relocation expenses on behalf of the owner of a facility.

(g) The city engineer's certification of the costs of relocation of any facility undertaken on behalf of an owner shall constitute prima facie evidence of the reasonableness of the costs chargeable to the owner.
(Ord. No. 05-371, § 2, 4-13-05)

Sec. 40-398. Notice after relocation.

If a facility is relocated under section 40-397 of this Code, the city engineer shall, within 30 days of the completion of the relocation, notify the owner of the facility that is relocated of the owner's right to a hearing under section 40-399 of this Code.
(Ord. No. 05-371, § 2, 4-13-05)

Sec. 40-399. Hearing upon written request.

The owner of a facility that is relocated under section 40-397 of this Code shall, upon written request within 10 days from the mailing of the city engineer's notice under section 40-398 of this Code, be entitled to a hearing on the issue of the reasonableness of the city's costs of relocation. The hearing shall be conducted by a hearing officer designated by the director, and the director shall promulgate rules for hearings. The hearing officer's decision on the issue of the reasonableness of the city's costs of relocation is final.
(Ord. No. 05-371, § 2, 4-13-05)

Sec. 40-400. Conflicts.

The provisions of article IX of this chapter shall control for those facilities governed thereby to the extent inconsistent with this article.
(Ord. No. 05-371, § 2, 4-13-05)

Sec. 40-401. Actions authorized to enforce article.

The city attorney is authorized to institute appropriate civil proceedings to compel the relocation of any facility whose relocation the city engineer determines to be necessary for a public works project and seek other relief consistent with this article.
(Ord. No. 05-371, § 2, 4-13-05)

Secs. 40-402—40-430. Reserved.

ARTICLE XIX. THE SALE OF USED MOTOR VEHICLES AT CERTAIN LOCATIONS*

Sec. 40-431. Definitions.

As used in this article, the following words and terms shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

Motor vehicle has the meaning ascribed in Section 502.001 of the Texas Transportation Code, as amended from time to time.

Police chief means the chief of the police department and any employees of the police department assigned by the chief to perform the duties prescribed in this article.

Residence has the meaning ascribed in section 28-201 of this Code, as amended from time to time.
(Ord. No. 06-29, § 2, 1-11-06)

Sec. 40-432. Motor vehicles for sale; penalties; towing

(a) Except as provided in subsection (b) of this section, it shall be unlawful for any person to park a motor vehicle on public or private property having displayed thereon any writing indicating that such vehicle is for sale.

(b) The provisions of this section shall not apply to:

(1) A vehicle parked on private property having both a certificate of occupancy issued by the city and a license from the Texas Department of Transportation authorizing the sale of vehicles at that location;

*__Editor's note—__Ord. No. 06-29, § 2, adopted January 11, 2006, provided for a new Art. XIV. Inasmuch as there is already an existing Art. XIV, at the request of the city, said article was redesignated as Art. XIX.

(2) A single vehicle legally parked on the premises of, or in the right-of-way immediately adjacent to a residence provided the vehicle is owned by or registered to the occupant of the residence; or

(3) A vehicle that is parked on either public or private property adjacent to a building or location to which the vehicle owner has traveled to perform his normal course of business or employment or on a personal errand.

(4) A vehicle located on private property that has affixed on the windshield a notarized statement from the property owner or authorized agent indicating that the vehicle owner has permission to sell the vehicle on the property. The notarized statement shall include the name, address and telephone number of the property owner or authorized agent. If the property owner is a partnership or corporation, the notarized statement shall include the name, address, and telephone number of one of the partners or one of the principals.

(c) A violation of this section shall constitute a class C misdemeanor.

(d) Subject to the provisions in subsection (e) of this section:

(1) A vehicle parked on public property in violation of this section shall be subject to immediate removal; or

(2) A vehicle parked on private property in violation of this section shall be subject to removal not sooner than two hours after the notice pursuant to section 40-433 of this Code is attached to the vehicle.

(e) Prior to causing a vehicle to be removed pursuant to subsection (d), the police chief shall attempt to contact the individual whose phone number appears on the "for sale" sign of the vehicle by phone to provide an opportunity for that individual to remove the vehicle. If contact is made, the individual shall have one hour to remove the vehicle from that location after the police chief has contacted him regarding the violation.
(Ord. No. 06-29, § 2, 1-11-06)

Sec. 40-433. Notice procedures.

The police chief may, without the consent of the owner or operator of a vehicle parked on private property in violation of this section, cause the vehicle and any property on or in the vehicle to be removed and stored at a vehicle storage facility at the owner's or operator's expense if:

(1) The police chief has mailed to the owner or operator of the vehicle actual notice that the vehicle is in violation of this section and that it will be towed and stored at the vehicle owner's or operator's expense if it is not removed; or

(2) The police chief has caused a conspicuous notice to be attached to the vehicle's front windshield or, if the vehicle has no front windshield, to a conspicuous part of the vehicle stating:

a. That the vehicle is parked in violation of this section;

b. That the vehicle will be towed and stored at the expense of the owner of the vehicle not sooner than two hours after the notice is attached to the vehicle; and

c. A telephone number that is answered 24 hours a day to enable the owner of the vehicle to locate the vehicle.

(Ord. No. 06-29, § 2, 1-11-06)

Sec. 40-434. Procedures for towing; contesting a tow.

(a) All tows conducted pursuant to this article shall be performed in accordance with chapter 8 of this Code.

(b) The owner or operator of a vehicle has the right to contest the towing of the vehicle under chapter 685 of the Texas Transportation Code. A

hearing under chapter 685 shall be in the justice court having jurisdiction in the precinct in which the vehicle storage facility is located.
(Ord. No. 06-29, § 2, 1-11-06)

Secs. 40-435—40-450. Reserved.

ARTICLE XX. NEWSRACKS

Sec. 40-451. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates a different meaning:

Central business district means the area beginning at the intersection of the centerline of U.S. 59 and the centerline of I.H. 45; thence in a northwesterly and northerly direction along the centerline of I.H. 45 to its intersection with the centerline of I.H. 10; thence in an easterly direction along the centerline of I.H. 10 to its intersection with the centerline of U.S. 59; thence in a southwesterly direction along the centerline of U.S. 59 to its intersection with I.H. 45, the point of beginning.

Department means the department of administration and regulatory affairs.

Newsrack means any self-service or coin-operated box, container, storage unit, or other dispenser installed, used, or maintained for the display and sale or distribution without charge of newspapers, periodicals, magazines or other publications.

ParkHouston has the meaning assigned in section 26-2 of this Code.

Vending screen means any device constructed of metal or other similar permanent material installed by or with the approval of the city designed and used to obscure from view on an adjacent roadway the existence of newsracks.
(Ord. No. 07-225, § 7, 2-14-07; Ord. No. 08-417, § 11, 5-14-08; Ord. No. 08-568, § 30, 6-18-08; Ord. No. 2010-304, § 10, 4-21-2010, eff. 4-1-2010; Ord. No. 2019-1015, § 34, 12-11-2019)

Sec. 40-452. Permit and decal required.

It shall be unlawful for any person to place, maintain, or cause to be placed, or maintained a newsrack on, or projecting on, any public right-of-way without first receiving a permit from the city for the newsrack and affixing a decal evidencing such permit on the newsrack.
(Ord. No. 07-225, § 7, 2-14-07)

Sec. 40-453. Permit.

(a) *Application.* An application for a newsrack permit for one or more newsracks shall be made to the director on a form prescribed by the director, which shall include, without limitation:

(1) The name, street and mailing address, email address, and telephone number of the applicant, which shall be the duly authorized representative of both the publisher and, if applicable, any independent distributor authorized to service the publisher(s) newsrack for which the permit is sought.

(2) The name, street and mailing address, email address, and telephone number of the distributor or other responsible person whom the city may notify or contact at any time concerning the applicant(s) newsrack(s).

(3) The number of proposed newsracks and a description of the exact proposed locations.

(4) A description of each proposed newsrack, including its dimensions and signage, and whether it contains a coin-operated mechanism.

(5) The name and frequency of the publication proposed to be contained in each newsrack.

(b) *Separate application.* A separate application shall be required for each publication.

(c) *Issuance of permit.* If the application is properly completed and the type of newsrack and location proposed for each newsrack meets the standards set forth in this article, ParkHouston shall issue a permit within ten business days from the date the applicant files the application

with the director. A single permit shall be issued for all newsracks, applied for by an applicant, that meet the standards of this article. A permit shall not be transferable.

(d) *Period of permit validity.* A permit shall be valid for three years.

(e) *Permit application fee; decal fee.* The permit application and decal fees per newsrack shall be stated for this provision in the city fee schedule. All fees imposed under this article shall be paid to the director at the time the application is filed and retained in a fund administered by the department for ParkHouston.

(f) *Decal replacement.* ParkHouston may require a permittee to replace a decal that has become worn, faded, defaced, or missing. The decal replacement fee shall be stated for this provision in the city fee schedule.

(g) *Renewal.* A permit may be renewed if, prior to its expiration, the permittee pays the renewal fee stated for this provision in the city fee schedule.

(h) *Issuance of decal.* Each permittee shall be issued a pre-printed decal for each permitted newsrack, which shall be affixed to the lower right or left corner inside the window opening on the front of each newsrack.

(i) *Denial of permit.* If the application is incomplete or the type of newsrack and location proposed for a newsrack does not meet the standards set forth in this article, then the director shall deny the permit application. If the newsrack permit is denied, in whole or in part, the director shall, by certified mail or by email to the address(es) provided by the applicant, notify the applicant within ten business days from the date of filing a completed application with the city, explaining the reasons for the denial of the permit. The applicant shall have ten business days from the receipt of notice of a denial to correct and resubmit the application or appeal the decision, in writing, to the hearing examiner designated by the director.

(j) *Suspension or termination of permit.* The director may, following ten business days written notice to the permittee and an opportunity to be heard, suspend or terminate a permit. Grounds for suspension or termination require a proven history of continual noncompliance with the requirements of this Code, consisting of a minimum of four violations in a 12-month period for which citations have been issued under section 40-459 of this article and a final judgment of guilt or a plea of nolo contendere has been entered. The period of suspension shall be at the discretion of the director, depending on the severity of the violations, not to exceed six months. Where the director finds that termination is appropriate, the permittee may not apply for a new permit for a period of 12 months. The decision of the director may be appealed as provided in subsection (k) of this section.

(k) *Appeal of denial, suspension, or termination.* The hearing examiner shall conduct a hearing within 30 days of receipt of the applicant(s written appeal request. Written notice of the time and place of the hearing shall be provided to the applicant at least ten business days prior to the date of the hearing. The hearing shall be conducted according to procedures promulgated by the director. The hearing examiner shall render a written decision within 15 business days after the date of the hearing. The decision of the hearing examiner shall be final.

(l) *Amendment to permit.* In the event of a change in any of the information contained in the application, the permittee shall submit the change in writing to the director. A permittee may install and maintain additional newsracks by amendment to the permit. This section shall govern the review and approval of any amendment.

(m) *Processing.* The director shall have authority to promulgate forms, rules, and procedures relating to the permitting process.
(Ord. No. 07-225, § 7, 2-14-07; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2019-1015, §§ 35, 36, 12-11-2019)

Sec. 40-454. Maintenance and display.

(a) Any newsrack requiring a permit under this article shall:

(1) Be in a neat and clean condition and in good repair at all times, i.e., reasonably

free of dirt and grease; no chipped, faded, peeling, or cracked paint; no rust and corrosion; no broken or cracked plastic or glass parts; and no broken structural parts.

(2) Be constructed, installed, and maintained in a safe and secure condition.

(3) Be made of solid material on all sides; no wire or other open form of newsrack will be permitted.

(4) Be kept free of graffiti.

(5) Be painted or covered with a protective coating, so as to keep it free from rust and graffiti, and shall be cleaned and repaired on a regular basis.

(6) Other than the display of the publication contained therein, not display or be affixed with any words or pictures, except for identifying information and coin return information as required herein; however, the front and back of each newsrack may be affixed with a single sign or decal, no larger than 15 inches by 17 inches, containing only the information relating to the display, sale or distribution of the publication contained in the newsrack.

(7) Be affixed with identifying information, which shall contain the name, address and telephone number of the newsrack owner and of the distributor of the publication contained therein. Such information shall be placed in a visible location on the front of the newsrack, and shall be legible. The size of the identifying information shall be no larger than three inches by five inches.

(8) Be affixed with one face plate, no larger that four inches by seven inches, on the front or top of the newsrack near the coin-operated mechanism, if applicable, containing only the information indicating the publication(s price(s) and the acceptable coin combinations or indicating that the publication is free of charge.

(b) In addition to the requirements of subsection (a) of this section, any coin-operated newsrack requiring a permit under this article shall:

(1) Be equipped with a coin-return device that is maintained in good repair and working order.

(2) Display information on how to secure a refund in the event of coin return malfunction. Such information shall be placed in a visible location on the front or top of the newsrack, shall be legible, and no larger than three inches by five inches.

(Ord. No. 07-225, § 7, 2-14-07)

Sec. 40-455. Size and design standards.

(a) *Size requirements.* Any newsrack requiring a permit under this article shall have a height of not less than 36 inches and not more than 54 inches (excluding the base); a width of not less than 15 inches and not more than 25 inches; and a depth of not less than 12 inches and not more than 21 inches.

(b) *Physical requirements.* Any newsrack requiring a permit under this article shall meet the following requirements:

(1) A newsrack shall be manufactured from 20-gauge or thicker zinc coated steel.

(2) All hinge rods and springs on a newsrack shall be made of steel.

(3) Coin mechanisms, if any, shall be housed in the body of a newsrack or in armored heads made from 12-gauge or thicker steel welded or bolted to the body of a newsrack.

(4) A coin-operated newsrack shall have a net weight of no less than 80 pounds, when empty of publications, excluding its base. A newsrack that provides free publications shall have a net weight of no less than 50 pounds, when empty of publications, excluding its base.

(5) A newsrack shall be attached to a concrete base or concrete base and pedestal, with a net weight of not less than 95 pounds, and the concrete base shall be 23 inches measured from front to back and no more

than 1½ inches beyond each side of the bottom of the newsrack, with a height of three inches, and shall not be decorated or colored.

(6) The door of a newsrack shall be constructed with a window opening to display clearly the front page of the current edition, and the window opening shall be covered by plastic manufactured from no less than .060" polycarbonated clear plastic material.

(7) Newsrack door handles shall be a loop-style handle with a minimum one-inch clearance, designed to allow a person to slip his hands easily in and out of the handle.

(8) Newsrack door springs shall meet the tension requirements of the Americans with Disabilities Act.

(9) The color of the entire newsrack including the coin box shall be forest green (RAL # 6009).

(10) The design of a newsrack shall not create a danger to the persons using the newsrack.

(c) Any newsrack requiring a permit under this article shall comply with federal, state and local laws and regulations including, without limitation, the Americans with Disabilities Act, Texas Accessibility Standards, and other laws and regulations relating to barrier-free design. (Ord. No. 07-225, § 7, 2-14-07; Ord. No. 07-984, § 1, 8-29-07)

Sec. 40-456. Placement and location.

(a) A person may not install, use or maintain a newsrack on any public right-of-way if the newsrack:

(1) Endangers public safety;

(2) Interferes with public utility, public transportation, or other governmental use; or

(3) Interferes with or impedes:

a. Pedestrian or vehicular traffic;

b. Entry or exit from a residence or business;

c. Access to a legally parked or stopped vehicle;

d. Use of a traffic sign or signal, emergency call box, transit shelter, bus stop, elevator, mailbox, or other public service; or

e. Access to use of a delivery area or loading zone.

(b) Except as otherwise provided in subsections (c), (d), and (e) of this section, a newsrack requiring a permit under this article shall be placed or maintained on any public right-of-way in compliance with the following standards:

(1) Every newsrack shall be placed so as to open toward the sidewalk.

(2) If multiple newsracks are permitted at the same location, all such newsracks must be placed together in a straight line and abutting adjoining newsracks; however, no group of newsracks shall extend for a distance of more than ten feet; no group of newsracks shall be closer than four feet to another group of newsracks; and no group of newsracks shall contain more than one newsrack of the same publication.

(3) No newsrack shall be chained or otherwise attached to another newsrack. Newsracks shall not be chained or otherwise attached to any parking meter, kiosk, trash receptacle, street light, utility pole or device, sign pole, stand pipe, transit shelter, bus bench, bus stop, or to any tree, shrub or other plant, or other structure other than the newsrack base.

(4) No newsrack shall be placed, installed or maintained:

a. Within three feet of any fire hydrant, emergency call box, or other emergency facility.

b. Within three feet of any parking meter, bench, kiosk, trash receptacle,

tree well, utility pole, signal pole, sign pole, stand pipe, or control cabinet.

c. Within five feet of any transit shelter, bus bench or designated bus stop. The distance requirement shall be measured from the roof of any transit shelter, the edge of any bus bench, or the pole sign for any designated bus stop.

d. Within five feet of any alley, loading zone, disabled ramp or curb cut.

e. At any location where the clear space for the passage of pedestrians after placement or installation is less than three feet, or as required by ADA Accessibility Guidelines, whichever is greater.

f. Within three feet of or on any area of flowers or shrubs or similar landscaping, or in such a manner where ordinary use of the newsrack will cause damage to such landscaping.

g. Within three feet of any commercial window display.

h. Within three feet of or in such a manner as to block or cover any portion of an underground utility vault, manhole, or other sidewalk underground access location.

i. In such a manner as to be permanently affixed to any sidewalk, street or other city property.

j. Within 20 feet of any crosswalk.

(c) Within the central business district:

(1) No newsrack shall be placed or maintained:

a. Within ten feet of any transit shelter, bus bench or designated bus stop. The distance requirement shall be measured from the roof of any transit shelter, the edge of any bus bench, or the pole sign for any designated bus stop.

b. At any location where the clear space for the passage of pedestrians is less than five feet; and

(2) Newsracks shall be placed only on a sidewalk, near a curb, in which case, the back of the newsrack shall be placed parallel to such curb and not less than 18 inches nor more than 24 inches from the face of the curb in no parking zones, otherwise, not less than 36 inches and no more than 42 inches from the face of the curb. A newsrack placed behind a vending screen shall be exempt from this provision; however, in such instance, a newsrack may not be placed between a vending screen and the curb.

(d) Along a major thoroughfare, no newsrack shall be placed or maintained within ten feet of any transit shelter, bus bench or designated bus stop. The distance requirement shall be measured from the roof of any transit shelter, the edge of any bus bench, or the pole sign for any designated bus stop.

(e) A newsrack requiring a permit under this article may be placed on the grassed area in the public right-of-way adjacent to a sidewalk when placement of the newsrack on the sidewalk would reduce clear passage for pedestrians in violation of subsections (b)(4)e or (c)(2) of this section.

(f) In the event the city must expand or otherwise reconfigure public right-of-way or make improvements thereto to improve the adjacent street, sidewalk, or for other public purpose, any and all newsracks displaced by such improvements shall be removed by the permittee at the permittee(s sole cost and expense and in accordance with the instructions of the city. Wherever possible, and only in accordance with the requirements of this ordinance, the city shall attempt to allow the relocation of any newsracks displaced as provided herein to the newly reconfigured right-of-way without additional permit fee; provided, however, where such right-of-way will no longer accommodate newsracks in accordance with the requirements of this

ordinance, the city shall not be obligated to provide alternative or other sites for such displaced newsracks.
(Ord. No. 07-225, § 7, 2-14-07)

Sec. 40-457. Abandoned newsracks.

In the event any newsrack (a) is severely damaged, or (b) remains empty for more than 31 days, the newsrack shall be deemed abandoned, and may be seized and removed in the manner as provided in section 40-458 of this Code.
(Ord. No. 07-225, § 7, 2-14-07)

Sec. 40-458. Seizure and removal of newsracks.

(a) The city may seize and remove a newsrack if the person responsible for the newsrack has failed:

(1) To obtain a permit as required by this article;

(2) To remedy a violation within ten business days following the date of notice or a written decision by the hearing examiner that the newsrack was installed or maintained in violation of this article; or

(3) To request a hearing within ten business days following the date of notice of a violation.

(b) Other than in the instance of failing to obtain a permit as provided in (a)(1) above, before any newsrack is seized, the person responsible for its installation and maintenance shall be notified and provided ten business days in which to remedy the violation or to request a hearing to contest the seizure.

(c) A person notified under this section may request, in writing, a hearing before a hearing examiner designated by the director.

(d) The hearing examiner shall conduct a hearing within 30 days of receipt of the applicant's written request. Written notice of the time and place of the hearing shall be provided to the applicant.

(e) The hearing shall be conducted according to procedures promulgated by the director.

(f) The hearing examiner shall render a written decision within 15 days after the date of the hearing. The decision of the hearing examiner shall be final.

(g) In the event the seized or impounded newsrack is not claimed and picked up from the city within 31 calendar days from the date the newsrack was seized, or in the case where the owner is known, within 31 calendar days from the date the notice was given to the owner to claim the newsrack, the city has the absolute right to dispose of said newsrack by salvage or other method available to the city. *"Salvage"* as used in this section shall mean the disposal through waste management procedure or recycling if practical. Any owner or agent of the owner of said newsrack shall be deemed to have waived any claim of ownership or damage of said newsrack if said owner or agent has not taken the necessary steps to reclaim the newsrack, including paying any fees under this chapter, and shall assume all risk of loss for destruction or salvage of said newsrack.
(Ord. No. 07-225, § 7, 2-14-07; Ord. No. 09-1112, § 2, 11-10-09, eff. 11-11-09)

Sec. 40-459. Issuance of citations.

Upon completion of appropriate training, employees designated by the police department and ParkHouston are authorized to issue citations charging the violation of any provision of this article.
(Ord. No. 07-225, § 7, 2-14-07; Ord. No. 2019-1015, § 35, 12-11-2019)

Sec. 40-460. Violations.

(a) Any failure to comply with any applicable provision of this article shall be an offense punishable as provided in section 1-6 of this Code.

(b) It shall be unlawful for a person, other than the permittee, to remove a decal from a newsrack.

(c) It shall be unlawful for any person to remove, take, or appropriate more than one copy of a publication from any newsrack for the purpose of (i) selling such publication to any

recycler; (ii) selling, trading or bartering such publication to anyone for payment of any kind; or (iii) depriving others of the opportunity to read or enjoy such publication. This prohibition shall not apply to an authorized representative of the owner or operator of any newsrack, or any publisher or authorized distributor of a publication.
(Ord. No. 07-225, § 7, 2-14-07)

Secs. 40-461—40-480. Reserved.

ARTICLE XXI. FACILITIES IN THE PUBLIC RIGHT-OF-WAY

Sec. 40-481. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates a different meaning:

ARA director means the director of the department of administration and regulatory affairs.

Agent means a director, officer, employee, or other person authorized to act on behalf of a corporation, association, or facilities owner.

Camouflage measures describes actions taken to ensure that facilities are covered, blended, painted, disguised, camouflaged or otherwise concealed such that the facilities blend into the surrounding environment or supporting area and are visually unobtrusive. Camouflage measures include, without limitation, hiding facilities beneath a façade, blending facilities with surrounding area design, painting facilities to match the supporting area, or disguising facilities with artificial tree branches.

Collocate or *collocation* has the meaning assigned in Chapter 284 of the Texas Local Government Code, which reads as: "the installation, mounting, maintenance, modification, operation, or replacement of network nodes in a public right-of-way on or adjacent to a pole.

Decorative pole has the meaning assigned in Chapter 284 of the Texas Local Government Code, which reads as: "a streetlight pole specially designed and placed for aesthetic purposes and on which no appurtenances or attachments, other than specially designed informational or directional signage or temporary holiday or special event attachments, have been placed or are permitted to placed according to nondiscriminatory municipal codes.

Department means Houston Public Works.

Design district has the meaning assigned in Chapter 284 of the Texas Local Government Code, which reads: "an area that is zoned, or otherwise designated by municipal code, and for which the city maintains and enforces unique design and aesthetic standards on a uniform and nondiscriminatory basis.

Director means the Director of Houston Public Works or the director's designee.

Electric utility has the meaning assigned in Section 31.002 of the Texas Utilities Code.

Facilities means any one or more equipment boxes, poles, coaxial and fiber-optic cables, meters, wires, and other devices or structures, including network nodes, owned by private parties that have authorization from the city or state to be in the city's public right-of-way. The term does not include wayfinders, informational kiosks, signs or city-owned property.

Facilities owner means the owner of facilities or the owner's contractor, subcontractor, agent, or representative.

Historic district has the meaning assigned in Chapter 284 of the Texas Local Government Code, which reads: "an area that is zoned or otherwise designated as a historic district under municipal, state, or federal law.

Municipal park means any property for recreational activity, including all trails, buildings and improvements on the property, that is under the direction, control and supervision of the parks department and as listed in the Houston Parks and Recreation Department Park Inventory, as amended.

Network node has the meaning assigned in Chapter 284 of the Texas Local Government

Code, which reads: "equipment at a fixed location that enables wireless communications between user equipment and communications network. The term: (A) includes: (i) equipment associated with wireless communications; (ii) a radio transceiver, an antenna, a battery-only backup power supply, and comparable equipment, regardless of technological configuration; and (iii) coaxial or fiber-optic cable that is immediately adjacent to and directly associated with a particular collocation; and (B) does not include: (i) an electric generator; (ii) a pole; or (iii) a macro tower.

Parks department means the parks and recreation department.

Permit means a document issued by the department authorizing installation, removal, and other work in the public right-of-way, including an approved application for plans and drawings.

Permit holder means the person, entity, or organization listed as the owner of the facilities on the permit application and who shall be responsible for the contractors, subcontractors, or agents that apply for the permit or work under the permit.

Planning and development means the department of planning and development or its successor.

Pole has the meaning assigned in Chapter 284 of the Texas Local Government Code, which reads: "a service pole, municipally owned utility pole, node support pole, or utility pole.

Public right-of-way means the area on, below, or above a public roadway, highway, street, public sidewalk, alley, waterway, or utility easement in which the municipality has an interest. The term does not include:

(1) A private easement; or

(2) The airwaves above a public right-of-way with regard to wireless telecommunications;

(3) A park road that is not formally dedicated or otherwise designated by the city as public right-of-way; or

(4) A non-public street, as that term is defined by section 41-2 of this Code.

The term shall include any designated state or federal highway or road or any designated county road under the administrative control of the city for maintenance, repair, or vehicular traffic control purposes.

Public street has the meaning assigned in section 42-1 of this Code.

Underground utility district means an area of the public right-of-way where electric utility poles, overhead wires, and associated overhead or above ground structures have been removed and buried or application for removal or burial has been approved by the director for burial underground.

Terms not defined in this article but defined in Chapter 284 of the Texas Local Government Code shall have the meanings assigned to them in Chapter 284 of the Texas Local Government Code.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017; Ord. No. 2018-11, §§ 49, 50, 1-10-2018)

Sec. 40-482. Use of the public right-of-way.

(a) It shall be unlawful for any person to place, maintain, or cause to be placed or maintained facilities in the public right-of-way unless the person has:

(1) Authorization by state law or city ordinance to construct, modify, maintain, operate, relocate, or remove facilities in the public right-of-way; or

(2) An agreement with the city from the city to construct, modify, maintain, operate, relocate, or remove facilities the public right-of-way.

(b) It shall be unlawful for any person to collocate on a pole owned by the city without first entering into an agreement with the city.

(c) The facilities owner shall comply with this article.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-483. Permits.

(a) Prior to installing or attaching facilities in the public right-of-way, the facilities owner shall obtain all permits required by the department.

(b) The facilities owner shall submit a permit application that is required for one or more facilities to the director on a form prescribed by the director.

(c) The director may consider a permit application as withdrawn by the applicant if the director does not receive missing or additional information within 180 days after the date the director sends notice of the missing information to the applicant.

(d) A permit is valid only for the location authorized in the permit, and no installation of or attachment to facilities shall be authorized at any other location without another permit.

(e) A permit application may be denied or a permit revoked by a written decision of the director, including but not limited to revocation or denial if the permit application contains incorrect, misleading, or false information or if the permit was issued in error or in violation of any ordinance, laws, the city's design manual, or rules and regulations promulgated by the director.

(f) The facilities owner, permit holder, or permit applicant shall make permits available upon request of the director when working in the public right-of-way.

(g) The director may promulgate forms, rules, and procedures relating to the permit process, including approval and denial of permits. A copy of the forms rules, and procedures, if any, shall be maintained in the office of the director or on the city's web site for inspection, and copies may be purchased at the fee prescribed by law.

(h) Permit fees shall be remitted to the department at the time the permit application is submitted and in the amount stated in the city's then-current fee schedule, but such fees shall be no more than allowed by state law. An application shall not be considered complete and the director may not issue a permit under this article until the applicant pays the applicable permit application fees.

(i) If the director denies a permit application in writing, the applicant may cure the deficiencies identified in the director's denial document and resubmit the permit application without paying an additional permit application fee, other than a fee for actual costs incurred by the city, not later than 30th day after the date on the director's denial document. The director shall approve or deny a completed, resubmitted permit application not later than the 90th day after the date the municipality receives the completed, resubmitted permit application.

(j) The applicant may appeal the denial or revocation of a permit by delivering a written request for an appeal to the director not more than 14 days after the date the written notice of denial or revocation. Appeals of denial or revocation of a permit will be handled pursuant to the procedures set forth in Section 117 of the *Building Code.*

(k) Without first obtaining a permit, the facilities owner may remove or repair its facilities to remedy an imminent danger to health and safety posed by its facilities in the public right-of-way, but the facilities owner shall promptly notify the director and apply for a permit not later than noon the next city business day from the date the remediation commenced, except if the work performed falls under section 40-495(a) of this Code. As part of the remediation, the facilities owner may not relocate facilities in the public right-of-way without first obtaining permits from the director.

(l) At least once per month, the director will notify the appropriate district council members of the permit applications received by the department for installation of facilities within their districts.

(m) The applicant or the facilities owner shall identify each party that is attaching, collocating, leasing, or otherwise using its facilities in the permit application and notify the director within

five business days whenever an additional party attaches, collocates, leases, or otherwise uses its facilities.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017; Ord. No. 2021-1037, § 20(Exh. I.44), 12-1-2021, eff. 4-1-2022)

Sec. 40-484. Design standards.

(a) The facilities owner shall not install facilities in the public right-of-way in a design district with decorative poles without first obtaining the director's written approval of the facilities.

(b) The facilities owner shall ensure that facilities comply with the city's aesthetic and design standards for each design district with decorative poles, as maintained by the department and amended by the director from time to time.

(c) The director may adopt and amend design standards for facilities in the public right-of-way applicable to each design district with decorative poles. The director will maintain and make publicly available the design standards for the city and for each design district designated by city council.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-485. Design districts.

(a) The city council hereby designates the following areas in the city as design districts, the boundaries of which have been set by state law or adopted by the city if the area is a tax increment reinvestment zone (TIRZ):

Houston Downtown Management District

East Downtown Management District

Energy Corridor Management District

Greater East End Management District

Hobby Area Management District

Memorial Management District

Midtown Management District

North Houston District

Reinvestment Zone No. 16 (Uptown Management District)

Upper Kirby Management District

Westchase Area Management District

(b) The city council may designate the following areas in the city as design districts to protect and encourage improvements in the public right-of-way:

(1) Municipal management districts created under Chapter 375 of the Texas Local Government Code or other state law or legislation;

(2) Tax increment reinvestment zones created under Chapter 311 of the Texas Tax Code (TIRZs); and

(3) Cultural districts designated by the Texas Commission on Arts.

(c) An entity described in subsection 40-485 of this Code may file with the department an application for designation as a design district. The application shall be in the form prescribed by the director and shall include:

(1) A description, by street boundaries, of the proposed area for design district designation;

(2) A map of the proposed area for design district designation;

(3) A picture or photograph of decorative poles in the proposed area for design district designation; and

(4) The design standards for the proposed design district.

(d) The director shall review each application for completeness. The director may forward the application to other departments for further review. After determining that the application is complete, the director shall consider and recommend the designation of the design district if the director finds that the application meets the following criteria:

(1) The area proposed for design district designation has clearly defined boundaries;

(2) The area proposed for design district designation has decorative poles; and

(3) The applicant has provided aesthetic and design standards.

(e) When the director's recommendation is presented to city council for consideration on a city council agenda, the city council, consistent with the criteria of subsection (b), shall approve or deny the proposed design district designation.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017; Ord. No. 2018-420, §§ 3, 4, 5-23-2018)

Sec. 40-486. Historic districts.

(a) The facilities owner shall not install facilities in the public right-of-way in a historic district without first obtaining the director's written approval of the facilities.

(b) The facilities owner shall comply with a historic district's aesthetic and design standards for the public right-of-way approved by the director of planning and development and shall apply reasonable camouflage measures approved by the director of planning and development when installing facilities in a historic district.

(c) The director of planning and development may adopt the city's design standards for historic districts designated under section 40-484 of this Code, which adopted standards shall be maintained and made publicly available by the director of the department.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-487. Underground utilities.

(a) The facilities owner shall not install facilities at or above ground level in an underground utility district without prior written approval of the director.

(b) The facilities owner shall adopt camouflage measures that consider the color, design, and other visuals of the underground utility district and minimize the visual impact of the facilities, as approved, in writing, by the director. Camouflage measures may include, but are not limited to, street light poles installed or replaced at the facilities owner's expense.

(c) If an area becomes or is in the process of becoming an underground utility district, the facilities owner shall remove its facilities from that area at its expense within the time period required by the director. When installing or re-installing poles to support network nodes in an underground utility district, the facilities owner shall comply with this section.

(d) The director will consider the availability of alternative locations, proposed camouflage measures, and the impact of the facilities to the underground utilities district when approving or denying installation of the facilities.

(e) The facilities owner shall not install overhead lines in an underground utility district.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-488. Municipal parks.

(a) The facilities owner may not install a new pole to support network nodes in a public right-of-way within a municipal park without first obtaining written consent from the director of the parks department.

(b) The facilities owner shall provide written notice to the director of the parks department prior to installing a network node or new pole to support network nodes in a public right-of-way adjacent to a municipal park.

(c) The facilities owner shall comply with any city design standards or requirements for facilities in a public right-of-way located within a municipal park.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-489. City's preference.

(a) The facilities owner should use commercially reasonable efforts to comply with the following city preferences:

(1) Poles that support network nodes should be spaced at least 300 feet apart from another pole that supports network nodes along the same public right-of-way to prevent interference with the public's enjoyment and safe use of the public right-of-way;

(2) Existing, available utility poles and street light poles should be considered for use before installing new poles to support network nodes; and

(3) Non-wooden poles to support network nodes should be installed.

(b) The director may not deny a permit application solely for not meeting the city's preferences.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-490. Coverings.

It shall be the duty of the facilities owner to ensure that facilities are enclosed in a cabinet or other covering as much as possible and that all wires are sheathed to the extent possible.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-491. Signage.

(a) The facilities owner shall ensure that a sign or placard displaying the name, location identifying information, and emergency telephone number of the facilities owner is affixed to an

area of the cabinet or pole that is visible to the public, unless excepted in writing by the director or by state law.

(b) Signage required under this section shall not exceed 4 × 6 inches, unless otherwise required by law (for example, RF ground notification signs) or the director.

(c) Except as required by this Code or other law, the facilities owner shall not allow any other signage or advertising to be displayed on or by the facilities.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-492. Graffiti.

(a) The facilities owner shall ensure that each network node and pole to support network nodes are free of graffiti.

(b) As soon as practical, but not later than 14 days from the date the facilities owner receives notice from the director thereof, the facilities owner shall remove all graffiti on any of its network nodes or poles to support network nodes located in the public right-of-way. The foregoing shall not relieve the facilities owner from complying with any city graffiti or visual blight ordinance or regulation.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-493. Generators.

The facilities owner shall not install any generators in the public right-of-way.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-494. Maintenance and display.

(a) The facilities owner shall ensure that facilities:

(1) Are constructed, installed, and maintained in a safe, secure condition and in compliance with this article and the city's codes, design manual, and applicable state laws;

(2) Are in compliance with federal, state and local laws and regulations, including without limitation the Americans with Disabilities Act and Texas Accessibility Standards;

(3) Are in compliance with department rules and regulations and applicable state laws regarding size and design of facilities; and

(4) Are not placed within a pedestrian path, unless approved by the director, in writing.

(b) The facilities owner shall comply with all rules, regulations, statutes, or orders of the Environmental Protection Agency, the Texas Commission on Environmental Quality, and any other governmental agency with the authority to promulgate environmental rules and regulations applicable to the facilities owner's use of the public right-of-way.

The facilities owner shall not possess, use, generate, release, discharge, store, dispose of, or transport any hazardous materials on, under, in, above, to, or from the site except in compliance with the environmental laws. Hazardous materials means any substances, materials, or wastes that are or become regulated as hazardous or toxic substances under any applicable federal, state, or local laws, regulations, ordinances, or orders. The facilities owner shall not deposit oil, gasoline, grease, lubricants, or any ignitable or hazardous liquids, materials, or substances in the city's storm sewer system or sanitary sewer system or elsewhere in violation of the environmental laws.

(c) When requested by the director, the facilities owner shall trim trees under the supervision and direction of the city's designated person for tree maintenance. The facilities owner shall not trim trees without first obtaining the written approval of the director or the city's designated person for tree maintenance.

(d) The facilities owner shall install and maintain its facilities in a manner that does not:

(1) Endanger public safety, health or welfare;

(2) Interfere with or impede pedestrian use of the public right-of-way;

(3) Interfere with or impede vehicular traffic, entry or exit from a residence or

business, or access to a legally parked or stopped vehicle, nor block view of traffic signs; or

(4) Interfere with or impede use of a delivery area or a bus, taxi, or valet loading zone.

(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-495. Installation.

(a) The facilities owner shall provide written notice to the city engineer fourteen days prior to:

(1) Conducting routine maintenance that does not require excavation or closing of a sidewalk or vehicular lane in a public right-of-way;

(2) Replacing or upgrading a network node that is substantially similar in size or smaller and that does not require excavation or closing of a sidewalk or vehicular lane in a public right-of-way. Substantially similar has the meaning set forth in Section 284.157(b)(1) of the Texas Local Government Code; or

(3) Conducting the installation, placement, maintenance, operation, or replacement of a micro network node that is strung on cables between existing poles or node support poles, in compliance with the National Electrical Safety Code.

(b) The written notice required in section 40-495(a) of this Code shall be mailed or delivered to the city engineer and contain the following information:

(1) Date work is set to commence;

(2) Description of the work;

(3) Name of company conducting the work in the public right-of-way; and

(4) Name of contact person and contact information.

(c) The facilities owner, at the owner's sole expense, shall restore the public right-of-way to the condition in which it was before the facilities owner began work in the public right-of-way.

(d) The facilities owner shall install facilities in compliance with the plans approved in writing by the director.

(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-496. Interference with communications.

(a) The facilities owner shall be responsible for ensuring that facilities do not interfere with the use of other facilities in the public right-of-way or the city's radio frequency, wireless network, or communications operations.

(b) Upon written notice from the director, the facilities owner shall take all steps reasonably necessary to remedy any harmful interference as indicated in the director's written notice, which steps may include but are not limited to:

(1) promptly ceasing operation of its facilities causing interference with the city's radio frequency, wireless network or communications operations upon receiving notice from the director and refraining from operating, except for intermittent testing to be coordinated with the department as part of the remedial process, until the facilities owner has eliminated the interference; and

(2) testing the facilities' radio frequency and other functions to confirm that they do not interfere with the city's radio frequency, wireless network, or communications operations.

(c) It shall be unlawful for the facilities owner to continue to operate the facilities that are causing interference after notice from the city. The city may remove the interfering facilities without further notice and at the facilities owner's expense.

(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-497. Streetlight poles.

The facilities owner shall not place signs, attachments, or appurtenances on a decorative pole other than specially designed informational or directional signage or temporary holiday or

special event attachments. The facilities owner must obtain permission of the owner of the streetlight pole before placing anything on it.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-498. Abandoned facilities.

In the event any facilities are unused, non-operational, or in a non-functioning condition for more than 90 consecutive days, the director may consider the facilities abandoned, unless otherwise proven by the facilities owner. The facilities owners shall remove the abandoned facilities at the facilities owner's expense and within the deadlines established in section 40-499 of this Code.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-499. Removal of facilities.

(a) The director may remove facilities without first notifying the facilities owner if the facilities pose an imminent danger to public health, safety, or welfare.

(b) The director may require the facilities owner to remove facilities that are in violation of this article at the facilities owner's expense. The facilities owner shall commence removal of its facilities from the public right-of-way not later than 10 days after receiving notice from the director for violations of sections 40-494 and 40-496 of this Code and not later than 30 days after receiving notice of any other violations. The facilities owner shall complete removal by the 14th day after receiving notice, unless otherwise approved by the director, and complete any restoration of the public right-of-way by the 90th day after receiving notice. The facilities owner shall peaceably surrender the public right-of-way to the city in the same condition it was in on the date prior to the facilities owner's installation of its facilities in the public right-of-way, excepting ordinary wear and tear.

(c) The director may remove facilities that are in violation of this article at the facilities owner's expense if the facilities owner does not comply with the requirements of section 40-499(b) of this Code. The director shall provide 30 calendar days' written notice to the facilities owner before removing the facilities under this section, unless there is imminent danger to the public health, safety, and welfare.

(d) Within 30 days after receiving an invoice from the city, the facilities owner shall reimburse the city for all of the city's costs and expenses associated with the removal of its facilities (including without limitation, all administrative and legal expenses, attorney fees, and costs and expenses incurred in connection therewith).

(e) The terms for removal of facilities under an agreement with the city, if any, shall apply.

(f) If a facilities owner removes facilities at its own discretion, it shall notify the director in writing not less than 10 business days prior to removal or relocation.

(g) The department shall store facilities that the director removes and provide the following information to the facilities owner the next business day after the removal: the description of the removed facilities, the location from where the facilities were removed, the storage location, the storage facilities' hours of operation, removal costs, and storage fees due. Upon payment of the removal costs and storage fees, the department shall release the facilities to the facilities owner or his authorized representative. If the facilities owner fails to retrieve the facilities within 30 days of the date of the department's notice, then the city may dispose of the facilities.

(h) The facilities owner shall comply with and be subject to the city's relocation ordinance in article XVIII, chapter 40 of this Code.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-500. Stop work orders.

Where construction or other work is being done contrary to the provisions of this Code, the Construction Code or the Fire Code, or is being done in an unsafe or dangerous manner, the director may order the work stopped by notice in writing served on the person engaged in doing or causing the work to be done, and the person shall forthwith stop the work until authorized to recommence it by the building official.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-501. Fees.

The facilities owner shall pay to the city all right-of-way use fees required by an agreement with the city, the city's fee schedule, or the amount required by state law. Fees for use of the public right-of-way shall be remitted to the ARA director not later than January 31 after permits are granted, unless otherwise provided for in an agreement with the city.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-502. Authority, enforcement, and violations.

(a) *Director's authority.*

(1) The director is authorized to administer and enforce the provisions of this article and to promulgate regulations, including but not limited to engineering, technical, and other special criteria and standards to aid in the administration and enforcement of this article that are not in conflict with this article, this Code, or state or federal law.

(2) The director is authorized to determine compliance with permits or with this article.

(b) *Violations.* Violations of this article shall be strict liability offenses. Except as otherwise prescribed by state law, neither an allegation nor evidence of a culpable mental state shall be required for proof of an offense under this article. The facilities owner, the facilities owner's agent, the permit holder, or the person installing facilities in the public right-of-way commits an offense if he:

(1) Violates, allows a violation or causes a violation of any provision of this article;

(2) Performs work, allows work or causes work to be performed that is not in accordance with the permit approved by the department; or

(3) Fails to comply with a requirement or guideline issued pursuant to this article.

(c) This article may be enforced by civil court action in accordance with state or federal law, in addition to any other remedies, civil or criminal, the city has for violation of this article.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-503. Penalties.

(a) Except as otherwise provided for in this article:

(1) Any violation of any provision of this article is a misdemeanor punishable upon conviction by a fine not to exceed $500.00 for each offense. Each day a violation continues shall constitute a separate offense.

(2) Prosecution or conviction under this article is cumulative of and shall not be a bar to any other civil or administrative remedy provided or allowed in this article or by law.

(b) When an existing agreement with the city for facilities in the public right-of-way contains the same provisions as this article, then the agreement's penalties for violation of that provision shall apply unless the agreement is silent with regard to penalties.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-504. Indemnification and liability.

(a) The indemnification provisions of Sections 283.057(a) and (b) of the Texas Local Government Code shall apply, unless otherwise provided for in an agreement with the city.

(b) The facilities owner shall be responsible and liable for the acts and omissions of the facilities owner's employees, agents, consultants, contractors, and subcontractors.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Sec. 40-505. Other law.

(a) This article does not apply to facilities installed in the public right-of-way before the passage of this article under a franchise, license, and other agreements with the city.

(b) This article does not affect the city's enforcement of the city's existing agreements, unless provided by state law.

(c) All other applicable city codes and regulations, state law, and federal law shall apply to facilities in the public right-of-way.
(Ord. No. 2017-677, § 2(Exh. A), 8-30-2017)

Secs. 40-506—40-550. Reserved.

ARTICLE XXII. SIDEWALKS*

DIVISION 1. SIDEWALK NETWORK REQUIREMENTS

Sec. 40-551. Scope and administration, penalty.

(a) This article establishes standards and procedures for creating a connected sidewalk network within the city to achieve the goal of providing a safe, comfortable, and accessible sidewalk network for all residents.

(b) It shall be the responsibility of the planning official to administer this article in coordination with the city engineer, chief transportation planner, and the MOD official, as defined herein.

(c) The planning official is authorized to promulgate rules and procedures for the efficient administration of this article.

(d) The planning official has established fees to be added to the city fee schedule where authorized by this article. All fees are nonrefundable.

(e) An obligation to install sidewalks or the fee assessed in lieu of installing sidewalks is subject to a proportionality review by the city engineer in accordance with Ch. 212, Texas Local Government Code.

(f) Except as expressly provided, the provisions of this article are cumulative of all other provisions of this Code or regulations of the city, state or federal government.

(g) This article may be known and cited as the Sidewalk Network Ordinance.
(Ord. No. 2023-58, § 2(Exh. A), 1-25-2023, eff. 3-1-2023)

Sec. 40-552. Definitions.

As used in this article, the following terms and phrases shall have the meanings ascribed in this section unless the context of their usage clearly indicated another meaning:

Applicant means a property owner or the property owner's designated agent, landlord, or tenant, holder of certificate of occupancy, or other person or entity who is applying for an approval required by this article.

Back-of-curb has the meaning ascribed in section 33-351 of this Code.

Block has the meaning ascribed in section 42-1 of this Code.

Blockface has the meaning ascribed in section 42-1 of this Code. Business day means any day of the week except for Saturday, Sunday, or any other day on which department offices are closed.

Central business district has the meaning ascribed in section 40-361 of this Code.

Chief transporlation planner means the person designated by the mayor to lead the city's systems-level transportation planning efforts or their designee.

Commission means the planning commission of the city.

Design manual has the meaning ascribed in section 42-1 of this Code.

Department means the department of planning and development of the city.

Local street has the meaning ascribed in section 42-1 of this Code.

Lot has the meaning ascribed in section 42-1 of this Code.

*__Editor's note—__Ord. No. 2023-58, adopted January 25, 2023, § 2(Exh. A), effective March 1, 2023, amended Ch. 40, Article XXII in its entirety to read as herein set out. Formerly said article pertained to similar subject matter and derived from Ord. No. 2020-684, § 2(Exh. A), 8-5-2020. See the Code Comparative Table for a complete derivation.

Mobility device means a motorized or non-motorized wheelchair, scooter,

Rollator, crutch, cane, walker or any similar device(s) that functions similarly to allow an injured or disabled person increased mobility for independent travel.

MOO official means the person designated by the mayor to lead the Mayor's Office on Disabilities, as established in section 2-388 of this Code, or such person's designee.

Project site means the area under review where a building permit, certificate of occupancy, or other construction permit or approval listed under section 40-553 of this Code is located. This shall include the section of public street between the roadway and corresponding blockface abutting the area, when applicable.

Public street means a public right-of-way, however designated, dedicated or acquired, that provides access to adjacent property. An alley, as the term is defined in section 42-1 of this Code, shall not be considered a public street.

Roadway has the meaning ascribed in section 42-1 of this Code.

Safety buffer is the area between the back-of-curb or the roadway, and the edge of the sidewalk nearest the back-of-curb or the roadway.

School has the meaning ascribed in section 28-151 of this Code.

Sidewalk means a publicly accessible firm-and-stable-surfaced path that is improved and designed for or is ordinarily used by pedestrians in accordance with the design manual, applicable state and federal disability rights laws, and this article. The sidewalk serves as a continuous and obstacle-free pathway for people to safely and comfortably walk or use a mobility device.

Sidewalk committee means the group of licensed or otherwise qualified technical professionals established by section 40-558 of this Code.

Sidewalk easement means a recorded easement that grants to the public a perpetual, non-exclusive easement on, over, and across private land for the construction, maintenance, and use of a sidewalk.

Sidewalk fund means the fund established in accordance with section 40- 581 of this Code.

Sidewalk plan means a detailed, graphical representation of the arrangement of sidewalks, buildings, driveways, plantings, and other improvements or above-ground existing and planned physical features for the project site for which a permit or approval is sought in accordance with this article.

Single-family residential use has the meaning ascribed in section 42-1 of this Code.

Subdivision plat has the meaning ascribed in section 42-1 of this Code.

(Ord. No. 2023-58, § 2(Exh. A), 1-25-2023, eff. 3-1-2023)

Sec. 40-553. Applicability.

(a) Except as provided in subsection (b) of this section, any person or entity seeking approval for a building permit, certificate of occupancy, or other construction permit or approval required by this Code for any of the following activities must first obtain approval of a sidewalk plan in accordance with this article:

(1) Construction of a new sidewalk within a public street or sidewalk easement;

(2) Repair, reconstruction or replacement of 20 linear feet or more of an existing sidewalk within a public street or sidewalk easement;

(3) Construction of a new single-family residential use other than a secondary dwelling unit;

(4) Development of property for non-single-family residential use that requires a development plat under to section 42-22;

(5) Construction of a new parking lot;

(6) Construction of a parking lot addition greater than ten parking spaces to an existing parking facility, as those terms are defined in section 26-472;

(7) Reconstruction of more than ten parking spaces or 25% of the total area, whichever is greater, of an existing permitted parking lot. Restriping parking spaces, asphalt resurfacing and other cosmetic, decorative or surface level enhancements shall not be considered reconstruction;

(8) To establish the pedestrian route for off-site parking facilities as required by section 26-499;

(9) Alterations to any non-single-family residential building or improvement within 15 feet of the minimum pedestrian realm along a transit-oriented development street or walkable places street that increases the building or improvement by 250 square feet or more;

(10) Alterations to any non-single-family residential building or improvement that increases the exterior square footage of the building or the footprint of the improvement by more than 25%;

(11) Construction of a new roadway within a public street;

(12) Expansion or reconstruction of an existing roadway within a public street. Repair and rehabilitation work performed as described in subsection (b) of this section shall not be considered reconstruction or expansion; and

(13) Removal of an existing sidewalk within a public street or existing sidewalk easement.

(b) This article shall not apply to repair and rehabilitation work performed by governmental entities, political subdivisions, transit authorities, or local government corporations provided that:

(1) Following the repair or maintenance of public infrastructure, any sidewalk that is disturbed is replaced in the same or better condition than existed before the repair or maintenance work; or

(2) The width and location of a sidewalk is not fundamentally altered after rehabilitation improvements to extend the life and effectiveness of existing public infrastructure. Rehabilitation improvements may include, but are not limited to: pavement overlays, street panel replacements, resizing stormwater inlets, replacing or reestablishing curbs, regrading ditches, or the restoration of erosion or flood damage.

(Ord. No. 2023-58, § 2(Exh. A), 1-25-2023, eff. 3-1-2023)

Sec. 40-554. Options for compliance.

An applicant for a permit required to comply with this article shall file a sidewalk plan for the project site with the department for review. Upon approval of the sidewalk plan by the planning official, the applicant shall:

(1) Construct the sidewalk(s) in accordance with the approved sidewalk plan; or

(2) Pay the fee-in-lieu of sidewalk construction in the amount stated in the current fee schedule if authorized by the planning official or sidewalk committee pursuant to section 40-560.

(Ord. No. 2023-58, § 2(Exh. A), 1-25-2023, eff. 3-1-2023)

Sec. 40-555. Sidewalk plan and approval required.

(a) An applicant shall submit a sidewalk plan to the department for review and approval in conjunction with a development plat required by chapter 42, or prior to obtaining a building permit, certificate of occupancy, or other construction permit, or for approval of a sidewalk plan required to perform an activity listed under section 40-553. The sidewalk plan for the project site shall:

(1) Be in the form prescribed by the planning official.

(2) Be to scale, provide a north arrow, and contain dimensions and boundaries of all public streets, and sidewalk easements; and

(3) Show:

a. The location and dimensions of each existing and proposed sidewalk and safety buffer;

b. The location of above-ground existing and planned physical features within the public street or sidewalk easement such as utility poles and equipment, signposts, traffic signal equipment, parking meters, guywires, fire hydrants, bollards, bus or transit shelters, bicycle racks, planters, stairs or steps, street furniture, and fences or barriers;

c. The location and dimension of each driveway that crosses the sidewalk and safety buffer;

d. The location and dimension of each pedestrian safety and visibility buffer required by section 40-32;

e. The location and dimension of each curb ramp, as the term is used in chapter 17 of the design manual;

f. The location, dimension, and vertical clearance of any building or structure constructed over the sidewalk or safety buffer;

g. Existing and proposed trees, shrubs, and screening fences required by article V of chapter 33 that are within the public street or sidewalk easement;

h. The functional edge furthest from the roadway of an adequate drainage facility, as approved by the city engineer, along any public street that is not curb and gutter; and,

i. If requesting an exemption, the location and details of any exemption condition listed under section 40-556; and

j. Reserved.

k. A fee calculation analysis when a fee-in-lieu of sidewalk construction is requested in accordance with this article.

(b) Upon receipt of a sidewalk plan containing all the information required by subsection (a), the planning official shall review the sidewalk plan to verify compliance with this article. This review shall be completed within 15 business days from the date a complete application is submitted to the planning official. The planning official shall deny in writing all sidewalk plans that do not comply with the requirements of this article.

(c) The building official or city engineer shall not issue a building permit, certificate of occupancy, or other construction permit unless the planning official approves the sidewalk plan.

(d) The building official or city engineer shall not issue a certificate of occupancy or otherwise certify satisfactory completion of a construction permit or approval unless the applicant constructs or provides for the sidewalk and related information shown on the approved sidewalk plan or provides payment of the required fee-in-lieu of sidewalk construction.
(Ord. No. 2023-58, § 2(Exh. A), 1-25-2023, eff. 3-1-2023)

Sec. 40-556. Sidewalk required; exceptions.

(a) Except as provided in subsection (b) of this section, a sidewalk shall be required along each public street blockface within the city. The sidewalk may be within the public street or a sidewalk easement adjacent to the public street.

(b) No sidewalk shall be required along a public street blockface when, upon review of written documentation and other relevant information provided by the applicant, the planning official finds that one or more of the following circumstances apply:

(1) There is an existing sidewalk in good repair that was built to the minimum width required by this article;

(2) There is an existing sidewalk in good repair that was built through a sidewalk

construction project completed by a governmental entity, political subdivision, transit authority, or local government corporation not more than five years before the date the sidewalk plan is filed with the department;

(3) The public street is within a community with an approved pedestrian plan on file with the department in which alternative publicly accessible pedestrian trails or pathways are provided;

(4) The sidewalk is, constructed, or will be constructed in accordance with this article, within a sidewalk easement that provides a reasonable alternative alignment for pedestrian accessibility along the general route of the public street;

(5) The public street is a grade-separated freeway or other limited access roadway, and the planning official, after consultation with the sidewalk committee, determines one or more of the following conditions exist:

a. The public street is a grade-separated freeway that does not have an at-grade frontage road;

b. The construction of a sidewalk is technically or otherwise infeasible due to the presence of existing, permitted physical conditions, or

c. The characteristics of existing permitted development, land uses, or other physical conditions within the immediate vicinity of the grade-separated or limited access roadway create unsafe conditions related to the practical use of a sidewalk.

(6) There is no roadway constructed within the public street and the city engineer confirms:

a. The construction of a roadway is not required as part of the action prompting the applicability of this article under section 40-553 of the Code; or

b. There are no approved capital improvement plans or plans pending approval by an entity with an interest in planning and development within the right of way such as governmental entities, political subdivisions, transit authorities, or local government corporations or any other entity as determined by the planning official for improvements or construction of the roadway.

(7) The cost to meet the standard sidewalk requirement is more than 50% of the total cost of the action prompting the applicability of this article, or is otherwise found to be disproportionate to the development. For a cost waiver, the city engineer shall review the cost estimate provided by the applicant and make a recommendation to the planning official on the reasonableness of the estimate. The following shall not qualify for a waiver under this subsection:

a. Items (1), (2), and (8) under section 40-553;

b. The requirement to construct a sidewalk within the central business district; or

c. The requirement to construct a sidewalk along a walkable place, street or transit-oriented development street;

(8) The street is located within the boundaries of the Fourth Ward Street Streets in Place Ordinance, Ordinance No. 99-1344; or

(9) The applicant pays a fee-in-lieu of sidewalk construction when authorized in accordance with this article.

(Ord. No. 2023-58, § 2(Exh. A), 1-25-2023, eff. 3-1-2023)

Sec. 40-557. Sidewalk standards.

(a) The minimum unobstructed width of a sidewalk required by this article shall be as prescribed by the design manual.

(b) The minimum width of the safety buffer required by this article shall be as prescribed by the design manual.

(c) The minimum unobstructed vertical clearance required by this article shall be eight feet as measured from the surface of the sidewalk.

(d) All sidewalks shall be constructed in a manner consistent with technical standards and design requirements of the design manual and applicable state and federal disability rights laws.
(Ord. No. 2023-58, § 2(Exh. A), 1-25-2023, eff. 3-1-2023)

Sec. 40-558. Establishment of the sidewalk committee.

There is hereby created a sidewalk committee to evaluate and make technical findings on a modification request, or a fee-in-lieu of sidewalk construction request submitted in accordance with this article. Membership of this committee shall include the planning official, the city engineer, and the MOD official. The sidewalk committee may establish procedures necessary for the conduct of its business and may conduct its review via electronic mail, teleconference, or in-person meetings. The unanimous consent of all members is required for any approval or authorization required by the sidewalk committee under this article. The decision of the sidewalk committee is final.
(Ord. No. 2023-58, § 2(Exh. A), 1-25-2023, eff. 3-1-2023)

Sec. 40-559. Modification of sidewalk standards, process.

(a) The sidewalk committee is authorized to approve a sidewalk plan that includes a modification to the standards of section 40-557. Granting a modification for one property does not set a precedent for any other, and each case shall be reviewed on its own merits.

(b) The sidewalk committee may modify, but not eliminate, the sidewalk width required by subsection (a) in section 40-557. The sidewalk committee may modify or eliminate safety buffer required by subsection (b) in section 40-557 when, upon review of written documentation provided by the applicant requesting the modification, the sidewalk committee concludes that the standards of section 40-557 are technically or otherwise infeasible solely due to the presence of existing permitted p ysical conditions.

(c) An applicant requesting modification of the sidewalk width or the safety buffer width, or to eliminate the safety buffer requirement shall:

(1) File an application in the form prescribed by the planning official;

(2) Pay the application fee set forth for this provision in the city fee schedule and all costs associated with the notice provisions of this section. No fee shall be charged for a request solely for modification of the safety buffer requirement; and

(3) Provide documentation to support the required findings in subsection (e) of this section.

(d) Upon receipt of a complete application filed in accordance with subsection (c) of this section to modify the width of the sidewalk, the planning official shall give notice of the application by electronic mail to:

(1) The district council member in whose district the sidewalk is located;

(2) Each neighborhood association registered with the department of neighborhoods in whose boundaries the sidewalk is located;

(3) The members of the sidewalk committee;

(4) The applicant; and

(5) Other entities, as determined by the planning official, with an interest in the proposed modification request and mobility, generally those within the sidewalk sector where the request is located.

(e) The sidewalk committee shall approve the application submitted in accordance with subsection (c) of this section, with or without conditions, if the committee finds that all the following conditions exist:

(1) One or more of the following:

a. Pedestrian pathways or sidewalks exist within the immediate vicinity

of the public street that provide reasonably sufficient access and connectivity for public pedestrian use;

b. The characteristics of existing permitted development, land uses, or other physical conditions within the immediate vicinity of the public street create unsafe conditions related to the practical use of the sidewalk that is otherwise contrary to sound public policy; or

c. The cost of the standard sidewalk requirement is disproportionate to the total cost of the action prompting the applicability of this article under section 40-553 and the development is unlikely to contribute to an increase in pedestrian traffic or otherwise create an adverse impact to existing pedestrian accessibility within the immediate vicinity. Section 40-553, subsections (1), (2), and (8) shall not qualify for a modification under this condition.

(2) The circumstances supporting the approval are not the result of hardship or condition created or imposed by the applicant; and

(3) The granting of the approval will create an alternative that furthers the intent and purposes of this article.

(f) The sidewalk committee shall conduct a review of an application submitted under subsection (c) of this section and the planning official shall advise the applicant of a decision within 15 business days from the date a complete application is submitted to the planning official.

(g) The planning official shall maintain a list of approved sidewalk modifications on the department website.

(Ord. No. 2023-58, § 2(Exh. A), 1-25-2023, eff. 3-1-2023)

Sec. 40-560. Fee-in-lieu of sidewalk construction eligibility; fee established.

(a) The planning official and sidewalk committee may waive the sidewalk construction requirement only in accordance with this section. An applicant must file a sidewalk plan with the department and pay the application fee for the plan review and fee-in-lieu determination.

(b) An applicant may request approval to pay a fee-in-lieu of sidewalk construction when either:

(1) The planning official determines the activity listed under section 40-553 meets the following conditions:

a. Construction of a new single-family residential use, other than a secondary dwelling unit;

b. The lot was not created by a subdivision plat submitted after October 1, 2020;

c. The lot fronts a local street that is not a walkable place street or TOD street;

d. The lot is not a corner lot at an intersection of two or more public streets;

e. The lot makes up 20% or less of the linear length of the blockface;

f. The lot is on a blockface where no existing sidewalk is located, or no existing sidewalk is located within 500 feet of the lot along the same blockface; and

g. There is no school located on the same block as the project site.

(2) If the request does not meet the conditions for approval by the planning official, the applicant may request the sidewalk committee to authorize a fee-in-lieu of sidewalk construction pursuant to section 40-561;

(c) Upon authorization for payment of the fee-in-lieu of sidewalk construction, the applicant shall deposit the funds with the city as part of the permitting process. All fees collected in accordance with this division shall be deposited into the sidewalk fund. The planning official shall:

(1) Maintain a list of approved fee-in-lieu of sidewalk construction projects along with the name and mailing address of the applicant; and

(2) Complete an annual evaluation in coordination with the city engineer on the city's total cost per square footage to construct a typical new sidewalk for a construction project funded by the sidewalk fund.

(d) The amount of the fee-in-lieu of sidewalk construction shall be included in the city fee schedule, shall be computed on a square foot basis of the cost of materials and labor, and shall be determined by the city engineer on an annual basis to be in place by January 1 of each year, and is not subject to the Annual CPI-U Adjustment under section 1-13 of this Code. The total fee due for a fee-in-lieu of sidewalk construction shall be determined based on the square footage of the sidewalk the applicant would have otherwise been required to construct under this article.
(Ord. No. 2023-58, § 2(Exh. A), 1-25-2023, eff. 3-1-2023)

Sec. 40-561. Fee-in-lieu of sidewalk construction application process.

(a) An applicant requesting approval to pay a fee-in-lieu of sidewalk construction, shall:

(1) File an application in the form prescribed by the planning official;

(2) File a sidewalk plan with the department as part of the application;

(3) Pay the non-refundable fee set forth for this provision in the city fee schedule and all costs associated with the notice provisions of this section; and

(4) Provide documentation to support the request.

(b) Upon receipt of a complete application, the planning official shall give notice of the application by electronic mail to:

(1) The district council member in whose district the request is located;

(2) Each neighborhood association registered with the department of neighborhoods in whose boundaries the request is located;

(3) The sidewalk committee;

(4) The applicant; and

(5) Other entities, including governmental agencies, political subdivisions, transit authorities, or local government corporations, and other entities as determined appropriate by the planning official.

(c) The sidewalk committee shall review the application, may approve or deny the application, or request additional information from the applicant. On final action by the sidewalk committee, the planning official shall advise the applicant of the decision within 15 business days from the date the complete application is received by the director.

(d) The sidewalk committee may approve the request to pay a fee-in-lieu of sidewalk construction when one or more of the following conditions exist:

(1) Construction of the sidewalk is infeasible due to existing physical conditions at the project site;

(2) Construction of the sidewalk may create an unsafe condition or be otherwise contrary to sound public policy;

(3) There is an approved public street or sidewalk project that includes the project site for which the exception is sought, and which is at 60% or more of the design stage; or

(4) The required sidewalk construction at the project site would adversely impact an approved public street project or other construction project by a governmental entity, political subdivision, transit authority, or local government corporation.

(e) The amount of the non-refundable fee established by item (3) of subsection (a) shall be credited to the fee-in-lieu of sidewalk construction upon approval by the sidewalk committee.
(Ord. No. 2023-58, § 2(Exh. A), 1-25-2023, eff. 3-1-2023)

Sec. 40-562. Violations.

(a) The violation of any provision of this article within the territorial limits of the city, including the failure to do any act or perform any

duty that is required herein, shall be punishable as provided by section 1-6. Each day a violation continues constitutes a separate offense. Prosecution or conviction under this provision shall never be a bar to any other remedy or relief for violation of this Code.

(b) The planning official and city engineer shall have the authority to administratively enforce violations of this article.
(Ord. No. 2023-58, § 2(Exh. A), 1-25-2023, eff. 3-1-2023)

Secs. 40-563—40-580. Reserved.

DIVISION 2. THE SIDEWALK FUND

Sec. 40-581. Sidewalk fund, deposits, use and refunds.

(a) There is hereby established a special fund which shall be known as the "Sidewalk Fund", for the deposit of all fees paid in lieu of sidewalk construction under this article. Distribution of moneys from this account shall on appropriation by city council. A minimum of seventy percent of the fee collected shall be allocated for use on sidewalk project(s) within the corresponding sidewalk service area. The remaining funds may be allocated for priority projects in accordance with section 40-582.

(b) The planning official shall account for all fees paid in lieu of sidewalk construction under this article with reference to the individual developments that generate the fee payment requirement. Any funds paid for such purpose must be obligated by the city within ten years after the date of deposit. If the funds are not obligated within the initial ten years, the planning official may request from the city council a time extension for a period not to exceed an additional five years for the expenditure of funds. Each extension request shall be submitted in writing by the planning official at least 60 days prior to the expiration date for the funds to be committed by the city and shall include a detailed justification for the extension request.

(c) Funds in the sidewalk fund shall be used for the construction of sidewalks and shall not be used for general sidewalk maintenance or to pay for city staff overhead expenses. Indirect costs reasonably incurred in connection with the sidewalk construction may be covered by the fund. These indirect costs may include but are not limited to legal expenses, engineering and design costs, surveys, and sidewalk easement acquisition.

(d) The planning official shall identify and record the sidewalk service area where each project site is located for any fee-in-lieu of sidewalk construction.

(e) Other sources of funding may be allocated or deposited to the sidewalk fund to support the sidewalk construction projects paid for by the fund and will be separately accounted for.

(f) Within 30 days of the final expiration of the period detailed in subsection (b), the planning official shall provide a "notice of eligibility for refund" to the current property owner indicating they are entitled to a refund in the amount equal the total sum of fee in lieu of sidewalk construction paid. Notice shall be given by letter via the United States Postal Service, postage paid to the applicant's name and address provided in subsection (c) of section 40-560. Notice shall be deemed given on the date the notice is mailed. The applicant must respond in writing to the planning official requesting the refund within one year of the notice or such claim to the refund shall be barred.
(Ord. No. 2023-58, § 2(Exh. A), 1-25-2023, eff. 3-1-2023)

Sec. 40-582. Sidewalk fund administration.

(a) It shall be the responsibility of the chief transportation planner to plan and prioritize the sidewalk projects to be funded from the sidewalk fund in coordination with the city engineer, the city traffic engineer, the MOD official, and the planning official. The chief transportation planner shall also coordinate with other governmental entities, political subdivisions, transit authori-

ties, or local government corporations with an interest in the specific public street where a particular sidewalk project is located.

(b) The chief transportation planner shall develop and maintain:

(1) A Sidewalk Service Area Map, that subdivides the city geographically into Sidewalk Service Areas for the purposes of prioritizing investment of moneys from the sidewalk fund within the general area where the fee-in-lieu of sidewalk construction was collected. Each area in the Sidewalk Service Area Map shall be known as "Sidewalk Service Area" and numbered accordingly for identification purposes; and

(2) A Sidewalk Prioritization Scoring Matrix to objectively score and prioritize potential sidewalk construction projects to advance the intent of this article and -the plans it implements.

(c) The chief transportation planner shall present any proposed updates to the sidewalk service area map or prioritization scoring matrix to the commission. The commission shall hold at least one public hearing on the proposed update. Upon the close of the public hearing, the commission shall consider public comments and the recommendation of the chief transportation planner then determine whether the proposed update furthers the objectives and intent of this article. The commission shall vote to:

(1) Approve the proposed update, with or without modifications;

(2) Refer the proposed update back to the chief transportation planner for further study and evaluation;

(3) Defer consideration of the proposed update to a future meeting; or

(4) Disapprove the proposed update. If the updated is disapproved by the commission, then the last map or matrix approved by city council or the commission, as applicable, shall remain in effect.

(d) The chief transportation planner shall provide an annual report to the commission on the utilization of the sidewalk fund and related sidewalk projects completed during the previous fiscal year of the city.
(Ord. No. 2023-58, § 2(Exh. A), 1-25-2023, eff. 3-1-2023)

Secs. 40-584—40-600. Reserved.

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Chapter 41

STREET NAMES AND SITE ADDRESSES*

Art. I.	**In General, §§ 41-1—41-20**
Art. II.	**Streets, §§ 41-21—41-49**
	Div. 1. Street Naming and Site Addressing, §§ 41-21—41-30
	Div. 2. Additional Requirements for Non-public Streets, §§ 41-31—41-35
	Div. 3. Naming Non-public Streets, §§ 41-36—41-45
	Div. 4. Street Name Changes, §§ 41-46—41-49
Art. III.	**Reserved, §§ 41-50—41-67**

ARTICLE I. IN GENERAL

Sec. 41-1. Other provisions.

To the extent of any conflict between any of the terms and provisions of this chapter and any of the terms and provisions of chapter 42 of this Code, the terms and provisions of chapter 42 shall control.

Sec. 41-2. Definitions.

In this article:

Building means any structure used or intended for supporting or sheltering any use or occupancy.

Development plat has the meaning assigned to that term by section 42-1 of this Code.

Directional prefix means any of the four cardinal compass directions (north, south, east or west) preceding a street name.

Directional suffix means any of the cardinal compass directions (north, south, east or west) or inter-cardinal compass directions (northwest, southwest, northeast or southeast) following a street name.

Director means the director of the department of planning and development or the director's designees.

Identifying number has the meaning assigned to that term by section 10-211 of this Code.

Non-public street means:

(1) Any area, parcel, or strip of land to which there is no other access from a public street than over the area, parcel, or strip of land in question and that:

a. Is not a public street; and

b. Provides access from any public street in the city to any building or buildings designed or appropriate for occupancy by:

[1] Two or more dwelling units;

[2] Two or more business, industrial or commercial establishments; or

[3] One or more industrial, commercial or business establishments and two or more dwelling units; or

(2) Any area, strip, or parcel of land that:

a. Provides a connection between any two public streets; and

***Editor's note—**Ord. No. 2014-364, § 10, adopted April 30, 2014, amended the title of Chapter 41 to read as herein set out. Formerly, said chapter was entitled "Subdivisions—Generally."

Cross references—Buildings, Ch. 10; flood-prone areas, Ch. 19; piers in or adjacent to unapproved subdivisions at Lake Houston, § 23-35; permit for private street work in subdivisions in advance of plat approval, § 40-67 (see also § 40-70); manufactured homes and recreational vehicles, Ch. 29; planning and development generally, Ch. 33; piers prohibited in unapproved subdivisions, § 23-35; subdivisions security organizations, § 34-151 et seq.; installation of street lights at expense of property owner, § 40-3.

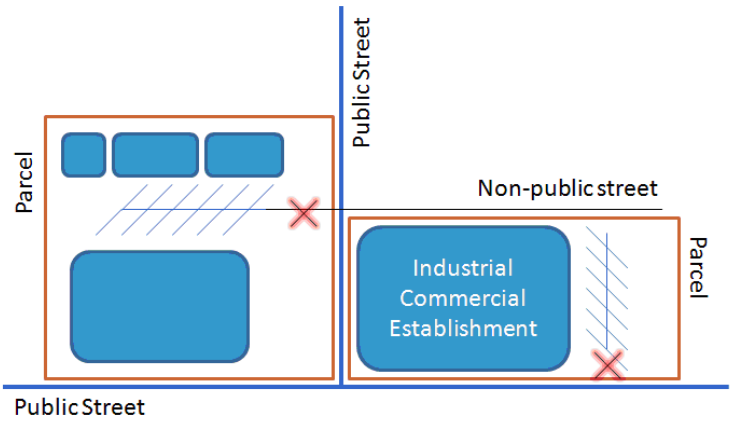
b. Is used by the general public for the purpose of traveling from one public street to the other; or

(3) A private drive, a private street, or a permanent access easement, as these terms are defined in chapter 42 of this Code.

The public may use a non-public street if its use is not physically obstructed. A posted sign prohibiting use of non-public street does not constitute sufficient notice that the owner of a non-public street has prohibited use by the public, unless the owner has taken affirmative steps to prohibit such use.

A *non-public street* does *not* include:

(1) Any driveway designed principally to provide access to the outbuildings appurtenant to any principal building, or to provide access to delivery platforms or the entrances of a building appropriate for the delivery thereto of goods or merchandise.



(2) An area appurtenant to a store or a group of stores, a theater, a church or any similar establishment, designed primarily to be used as a parking space by customers or patrons of the establishment or group of establishments in question.

(3) An entranceway or roadway designed to provide entrance to or communication or passage between the several units of a single industrial establishment or of a group of such establishments which are under common control or management; provided such industrial entranceway or roadway shall be considered a non-public street under the terms of this chapter if it has entrances upon two or more public streets, unless there are, at each of such entrances, gates, chains, or watchmen by which all persons are prevented from using the same except those employed by or having business to conduct at such industrial establishments.

(4) A shared driveway, as that term is defined in chapter 42 of this Code.

Parcel means any quantity of land capable of being described with such definiteness that its location and boundaries can be established that is designated by its owner as land to be used or developed as a unit or that has been used or developed as a unit.

Public street means a public street right-of-way.

Site address means the series of ordered components required to provide a unique identifier of location to a building or parcel, consisting of an identifying number, a street name and a street name suffix.

Subdivision plat has the meaning assigned to that term by section 42-1 of this Code.

Street means a public street or a non-public street.

Street name means the combination of words used to form the proper title of a street.

Street name suffix means a descriptive road type, such as "street," "road" or "highway."
(Code 1968, § 42-1; Ord. No. 2014-364, § 11, 4-30-2014)

Sec. 41-3. Fees.

The director may, from time to time, with the assistance of the department of finance, pursuant to Administrative procedure 4-9, prepare and submit for approval by motion of the city council revisions to the fees that shall be paid by an applicant in conjunction with the submittal of an application, petition or other request pursuant to this article. The fees approved under this provision shall be included in the city fee schedule. Payment of any applicable fees when due is a condition of the processing of any application, petition or other request under this article.
(Ord. No. 2014-364, § 12, 4-30-2014)

Secs. 41-4—41-7. Reserved.

Editor's note—Ord. No. 99-262, § 7, adopted March 24, 1999, repealed §§ 41-3—41-7 in their entirety. Formerly, said sections pertained to direction of planning commission; compliance with rules; filing fees; withholding city improvements until platting approved; compliance prerequisite to city work on streets. See the Code Comparative Table.

Sec. 41-8. Reserved.

Editor's note—Ord. No. 2014-364, § 15, adopted April 30, 2014, repealed § 41-8 in its entirety. Formerly said section pertained to compliance with chapter prerequisite to issuance of building permits and sewer and water connections and derived from Code 1968, § 42-7, Ord. No. 90-635, § 127, 5-23-90.

Secs. 41-9, 41-10. Reserved.

Editor's note—Ord. No. 94-1154, § 5, repealed former §§ 41-9 and 41-10, which pertained to the city as party to suit to enjoin or abate recorded restricts affecting subdivisions and limitations on the same, respectively.

Sec. 41-11. Reserved.

Editor's note—Ord. No. 2014-364, § 4, adopted April 30, 2014, redesignated § 41-11 as § 10-556. The users' attention is directed to 10-556 for provisions relating to notice of deed restrictions upon conveyance of property.

Sec. 41-12. Reserved.

Editor's note—Ord. No. 2014-364, § 5, adopted April 30, 2014, redesignated § 41-12 as § 40-7. The users' attention is directed to § 40-7 for provisions pertaining to subdivision identification markers.

Secs. 41-13—41-20. Reserved.

ARTICLE II. STREETS*

DIVISION 1. STREET NAMING AND SITE ADDRESSING

Sec. 41-21. Program established.

(a) The director shall administer a program for the following purposes:

(1) Approving street names within the city and its extraterritorial jurisdiction;

(2) Assigning and changing site addresses within the city; and

(3) Assigning and changing site addresses within any other jurisdiction that has

*__Editor's note—__Ord. No. 2014-364, § 13, adopted April 30, 2014, amended Ch. 41, Art. II, in its entirety to read as herein set out. Formerly, Art. II pertained to Naming public streets and derived from Code 1968, §§ 42-24—42-26 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

entered into an agreement with the city for assignment of site addresses within that jurisdiction.

(b) The director may establish an electronic system for the temporary reservation of street names. The director may promulgate regulations consistent with the policies of this article in the administration of the program described in subsection (a), subject to review and approval by the planning commission.

(c) The provisions of this article shall apply to all responsibilities assigned to other city departments that relate to the program described in subsection (a), including the change of an identifying number or a site address by the building official.
(Ord. No. 2014-364, § 13, 4-30-2014)

Sec. 41-22. Street names.

(a) Streets shall be named in conformance with the following parameters:

(1) A new street that is a direct extension of an existing street shall have the same name as the existing street, unless the existing street name is a duplicate street name.

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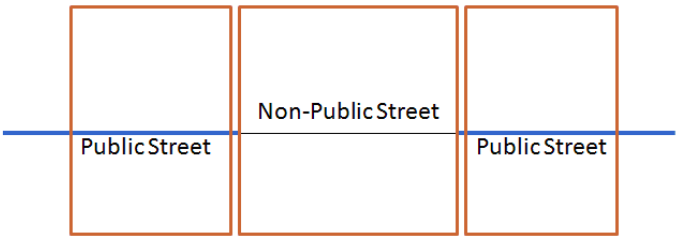
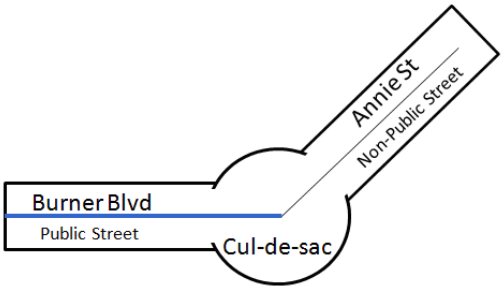
(2) A non-public street that is a direct extension of a public street or a cul-de-sac shall not have the same name as the public street.





(3) A directional prefix or directional suffix may be used to clarify the general location of a street, provided that the use of the directional prefix or directional suffix is consistent with existing naming and numbering patterns within the area in which the street is located.

(4) Street name suffixes shall be limited to the following uses:

a. 'Circle,' 'Court' and 'Loop' shall be used only to designate streets that terminate at a cul-de-sac or are configured as a loop street.

b. 'Boulevard,' 'Crossing,' 'Crossroad,' 'Expressway,' 'Motorway,' 'Parkway,' 'Speedway' and 'Throughway' shall be used only to designate major thoroughfares, major collector streets, collector streets or other streets designed to handle traffic volumes in excess of normal neighborhood traffic generation or that are divided streets with at least two lanes of traffic in each direction separated by a median.

c. 'Bypass,' 'Expressway,' 'Freeway' and 'Highway' shall be used only to designate highways or freeways subject to the jurisdiction of the state department of transportation.

d. 'Avenue,' 'Drive,' 'Road' and 'Street' shall be used only to designate major thoroughfares, major collector streets, collector streets or local streets.

e. 'Bridge,' 'Fork,' 'Lane,' 'Oval,' 'Passage,' 'Path,' 'Place,' 'Trail' and 'Way' shall be used only to designate collector streets or local streets.

f. 'Tunnel' shall be used only to designate streets that provide underground or underwater passage.

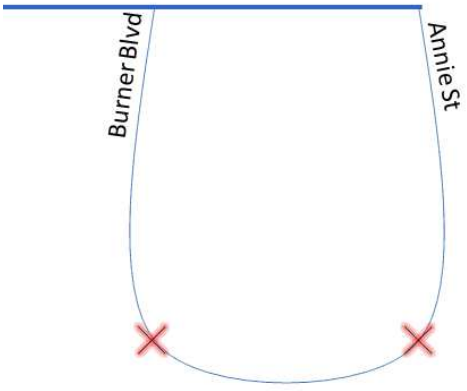
g. A street name suffix shall not be used as part of the street name.

h. The abbreviation of a street name suffix shall be consistent with United States Postal Service postal addressing standards.

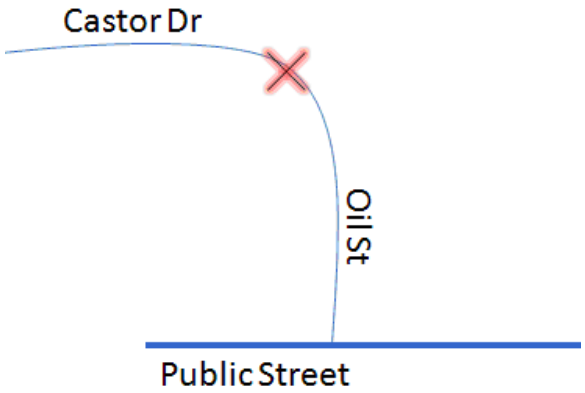
(6) A street name shall not include any typographic characters or symbols.

(7) An alphabetical or numerical street name shall not be used to name a new street unless the street is a direct extension of an existing street with an alphabetical or numerical name that is not duplicative of an existing street name.

(8) A street shall not intersect with another street more than one time without an intervening name change.



(9) When a street changes direction by approximately 90 degrees, the street name shall change.



(10) The proper name of a deceased national figure may be used as a street name for a major thoroughfare, a major collector street, a collector street or a local street.

(11) The proper name of a deceased locally elected figure may be used as a street name for a major collector street, a collector street or a local street.

(b) If a street is served by a local or inter-local 9-1-1 emergency dispatch system, the director may deny use of a proposed street name if the street name:

(1) Is currently in use;

(2) Is duplicative of or so similar in name or sound to an existing street name that the use could be misleading to emergency communicators or responders; or

(3) Is temporarily reserved in an electronic system established under section 41-21 of this Code.

(c) For purposes of this section, the terms *cul-de-sac*, *collector street*, and *local street* shall have the meanings assigned to those terms by chapter 42 of this Code.
(Ord. No. 2014-364, § 13, 4-30-2014)

Sec. 41-23. Site addressing.

(a) The director shall assign site addresses in accordance with the following parameters:

(1) A site address shall include the name of a street to which the parcel is adjacent or has direct vehicular access.

(2) A site address shall be numbered in a consecutive, uniform manner.

(3) A site address shall not be utilized for more than one building.

(4) For any property composed of more than one lot or parcel, each lot or parcel shall have an identifying number. A large parcel containing more than one building may be assigned more than one identify-

ing numbering sequence of the surrounding area.

(5) Identifying numbers shall be assigned to a site address based on the number of units, the number of buildings, the number of floors within the buildings on a parcel and the range of numbers available for assignment.

(6) Odd and even identifying numbers shall be assigned to opposite sides of the street, with even numbers assigned to the right side of the street and odd numbers assigned to the left side of the street in the direction of increasing numbers, unless existing numbering patterns within the area differ.

(7) Fractional numbers shall not be used unless required for:

a. Consistency with existing numbering patterns; or

b. The assignment of site addresses for utility purposes, including but not limited to traffic signals, billboard meters, check meters, guard lights, cable meters and cell towers.

(8) Identifying numbers shall follow a pattern in which the street block numbers increase in correlation to the increase in distance from downtown.

(b) The director may assign a site address to a parcel that does not have a site address if a property owner or the property owner's authorized agent submits to the director a written request for each site address to be assigned.

(c) In assigning a site address pursuant to this section, the director may request that a property owner or the property owner's authorized agent prepare an addressing plan and may consider an addressing plan submitted by a property owner or the property owner's authorized agent, provided that the addressing plan meets the parameters of this section.

(d) A site address shall be assigned to a parcel before any of the following actions may occur:

(1) The issuance of a building permit;

(2) The processing of an application for a building permit or development plat; or

(3) The recordation of a subdivision plat.

(Ord. No. 2014-364, § 13, 4-30-2014)

Sec. 41-24. Site address changes.

(a) Prior to the recordation of a subdivision plat, the director may change a site address that has previously been assigned pursuant to section 41-23(d)(3) of this Code if a property owner or the property owner's agent submits to the director a written request for each site address to be changed.

(b) After the recordation of a subdivision plat, the building official may change a site address if a property owner or the property owner's agent submits to the building official a written request and payment for each site address to be changed of the fee established in Section 118.1.13 of the *Building Code* for which the fee amount is stated in the city fee schedule.

(c) For property that is not located in a recorded subdivision plat, the building official may change a site address if a property owner or the property owner's agent submits to the building official a written request and payment for each site address to be changed of the fee established in Section 118.1.13 of the *Building Code* for which the fee amount is stated in the city fee schedule.

(Ord. No. 2014-364, § 13, 4-30-2014; Ord. No. 2021-1037, § 20(Exh. I.45), 12-1-2021, eff. 4-1-2022)

Sec. 41-25. Posting of identifying numbers.

The posting and maintenance of the identifying number assigned to a site address is subject to the requirements of chapter 10, article V of this Code.

(Ord. No. 2014-364, § 13, 4-30-2014)

Secs. 41-26—41-30. Reserved.

DIVISION 2. ADDITIONAL REQUIREMENTS FOR NON-PUBLIC STREETS

Sec. 41-31. Street name markers for non-public streets; regulation by Director of Houston Public Works.

(a) A street name marker erected on a non-public street shall conform to standards and specifications established by the Director of Houston Public Works and shall not be installed without the approval of the Director of Houston Public Works.

(b) The designation 'PRIVATE' or 'PVT' shall follow the street name suffix of a non-public street and shall be indicated on a street name marker erected pursuant to this section.

(c) Upon the establishment of the name of any non-public street pursuant to this division, the property owners abutting the non-public street shall be responsible for the installation, erection and continued maintenance of appropriate street name markers at the intersection of the non-public street with any other street. The color of the background of a street name marker to be installed on a non-public street shall not be the same color as a street name marker used to identify a public street.

(d) The Director of Houston Public Works may declare as a nuisance or a traffic hazard any street name marker for a non-public street installed in a public street that contains a name not established in conformance with this article.

(e) Upon determining that a street name marker for a non-public street is misleading, confusing, deteriorated or is located so as to create a traffic hazard, the Director of Houston Public Works may remove the marker from a public street without providing notice.

(f) The property owners abutting a non-public street shall be responsible for the replacement of a street name marker removed by the Director of Houston Public Works pursuant to this section.
(Ord. No. 2014-364, § 13, 4-30-2014; Ord. No. 2018-11, § 49, 1-10-2018)

Secs. 41-32—41-35. Reserved.

DIVISION 3. NAMING NON-PUBLIC STREETS

Sec. 41-36. Use of terminology.

For purposes of this division and division 4 of this article, the term 'majority' means 51 percent, and the term 'property owner' does not include a lienholder.
(Ord. No. 2014-364, § 13, 4-30-2014)

Sec. 41-37. Generally.

No street name for a non-public street shall be established or changed by action of the city council, unless such name conforms to the requirements of division 2 of this article.
(Ord. No. 2014-364, § 13, 4-30-2014)

Sec. 41-38. Approval by the city council.

(a) The property owner abutting an existing or proposed non-public street may submit a written petition to the director requesting that the city council adopt an ordinance establishing the name of the non-public street. A written petition submitted pursuant to this section shall be signed by not less than a majority of the property owners along the non-public street concurring in the proposed street name to be established for such non-public street and shall be accompanied by the applicable administrative fee and:

(1) A title report certifying that all of the property owners listed on the petition are current owners of record having a legal interest in the non-public street and that the list of owners represents not less than a majority of the owners abutting the non-public street;

(2) A written metes and bounds description of the property occupied by the non-public street or a copy of a recorded plat depicting the non-public street; and

(3) A boundary survey map of the property occupied by the non-public street that:

a. Has been prepared by an engineer or surveyor;

b. Shows all engineering and survey data and accurately depicts the location of the non-public street;

c. Is prepared in conformance with the official survey system described in division 2 of article III of chapter 33 of this Code.

(b) The director shall review all written petitions submitted pursuant to this section and forward written recommendations to the mayor and city council for their consideration. The director shall maintain a permanent record of all written petitions submitted pursuant to this section, and upon final passage of an appropriate ordinance by the city council approving and establishing a name for a non-public street, the director shall enter the name into all appropriate records of the city.
(Ord. No. 2014-364, § 13, 4-30-2014)

Sec. 41-39. Change of existing street name of non-public street.

Notwithstanding any other provision of this division, the director may change the street name of a non-public street if the director finds that the change is necessary for the preservation of public safety.
(Ord. No. 2014-364, § 13, 4-30-2014)

Secs. 41-40—41-45. Reserved.

DIVISION 4. STREET NAME CHANGES

Sec. 41-46. Application; process for consideration.

(a) The property owner abutting a street may submit a written petition to the director requesting that the city council adopt an ordinance changing the street name. The written petition shall be accompanied by the applicable application fee. A written petition submitted pursuant to this section shall be signed by not less than 75% of the property owners abutting the entire length of a public street or a majority of the property owners abutting the entire length of a non-public street and shall be accompanied by a title report certifying that all of the property owners listed on the petition are current owners of record abutting the street and that the list of property owners represents not less than 75% of the property owners abutting the entire length of a public street or a majority of the property owners abutting the entire length of a non-public street.

(b) Upon receipt of a written petition that meets the requirements of subsection (a), the director shall:

(1) Verify that the proposed street name conforms to the parameters of this article;

(2) Prepare a map depicting the boundaries of the area in which the street name is to be changed; and

(3) Cause notice to be provided to all property owners abutting the street and to all affected public agencies.

(c) The department shall accept comments regarding a written petition to change a street name for a period of not less than 30 days after providing notice pursuant to subsection (b).

(d) All costs associated with the notice provisions of this section and section 41-47 of this Code shall be paid by the applicant submitting the written petition.
(Ord. No. 2014-364, § 13, 4-30-2014)

Sec. 41-47. Approval by city council; subsequent actions.

(a) Upon completion of the administrative street name change process described in section 41-46 of this Code, the director shall submit to city council an ordinance to approve the street name change. If city council approves the ordinance, the street name change shall take effect 90 days after the date of approval.

(b) Upon approval by city council of a street name change under this section, the director shall:

(1) Cause notice to be provided to all property owners abutting the street and to all utility or service providers; and

(2) Request Houston Public Works to erect new street signs on the affected street.

(Ord. No. 2014-364, § 13, 4-30-2014; Ord. No. 2018-11, § 50, 1-10-2018)

Secs. 41-48, 41-49. Reserved.

ARTICLE III. RESERVED*

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*__Editor's note—__Ord. No. 2014-364, § 6(Exh. A), adopted April 30, 2014, redsignated Ch. 41, Art. III, §§ 41-50—41-67 as a new Ch. 28, Art. XVI, §§ 28-521—28-543. The users' attention is directed to Ch. 28, Art. XVI, §§ 28-521—28-543, for provisions relating to regulation of towers.

[The next page is 2865]

Chapter 42

SUBDIVISIONS, DEVELOPMENTS AND PLATTING*

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***Editor's note—**Ord. No. 2013-343, § 3(Exhs. A, B), adopted April 24, 2013, amended Ch. 42 in its entirety to read as herein set out. Former Ch. 42 pertained to similar subject matter and derived from Ord. No. 99-262, § 2, 3-24-99 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

Cross references—Buildings, Ch. 10; flood hazard areas, Ch. 19; planning and development, Ch. 33; streets and sidewalks, Ch. 40; subdivisions generally, Ch. 41.

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ARTICLE I. IN GENERAL

Sec. 42-1. Definitions.

As used in this chapter, the following terms shall have the meanings ascribed in this section unless the context of their usage clearly indicates another meaning:

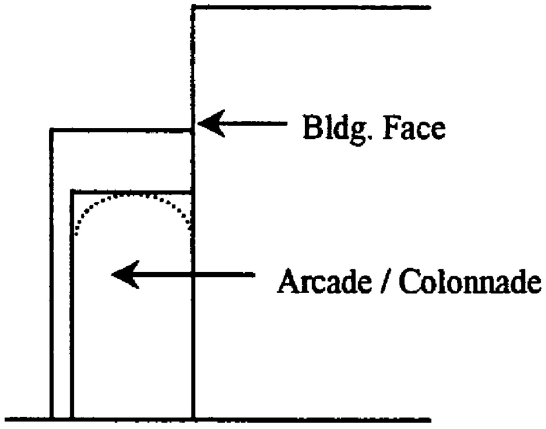
Abutting development means a development located on property not in use for or restricted to single-family residential use or multi-unit residential use that is either directly abutting or within 30 feet of property that is in use for or restricted to single-family residential use or multi-unit residential use.

Alley means a public or private right-of-way that is not used primarily for through traffic and that provides vehicular access to rear or side entrances to buildings or properties.

Amending plat means an amending subdivision plat prepared and approved under the applicable provisions of chapter 212 and this chapter.

Applicant means the owner of property or the owner's authorized agent who applies for approval of a plat or plan as required by this chapter.

Arcade/colonnade means a series of arches or columns with a roof attached to the face of a building creating an unenclosed covered pedestrian space.

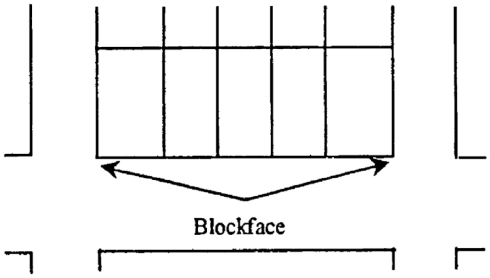


Back-of-curb means the lateral line of a roadway measured from the back of the roadway's curb nearest the property line.

Bicycle space has the meaning ascribed in section 26-472 of this Code.

Block means one or more lots, tracts or parcels of land bounded by streets, easements, rights-of-way or other physical features or a combination thereof.

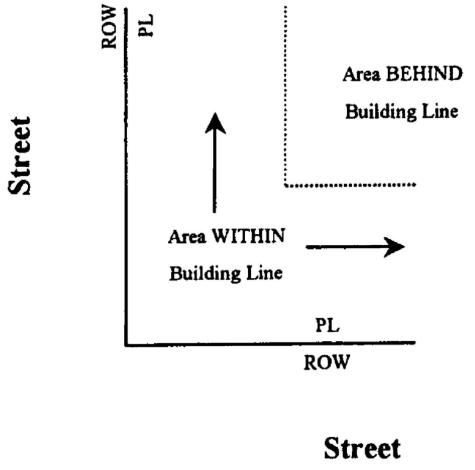
Blockface means that portion of a block that abuts a street between two intersecting streets, or between an intersecting street and the termination of the street. A street shall be considered to terminate at the intersection of a railroad or a drainage channel required by a governmental entity with flood control jurisdiction, except for purposes of the intersection spacing requirements of this chapter.



Buffer area means the area required by division 8 of article III of this chapter, measured from the property line of lots or tracts in use for or restricted to single-family residential use or multi-unit residential use.

Building means any structure used or intended for supporting or sheltering any use or occupancy.

Building line means the line shown on a subdivision plat or development plat establishing the building line requirement. An area is within the building line if it lies between the building line and the property line adjacent to a street or private street and is behind the building line if it lies to the interior of the property from the building line.



Building line requirement means the minimum required distance from an easement or a property line adjacent to a street or private street in which no improvements requiring a building permit can be constructed on the property.

Building permit means an official document or certificate issued by the building official authorizing performance of a specified activity under the Construction Code.

Business day means any day of the week except for Saturday, Sunday, any legal holiday, or any other day on which city offices are closed.

Central business district means the area beginning at the intersection of the centerline of U.S. 59 and the centerline of I.H. 45; thence in a northwesterly and northerly direction along the centerline of I.H. 45 to its intersection with the centerline of I.H. 10; thence in an easterly direction along the centerline of I.H. 10 to its intersection with the centerline of U.S. 59; thence in a southwesterly direction along the centerline of U.S. 59 to its intersection with I.H. 45, the point of beginning.

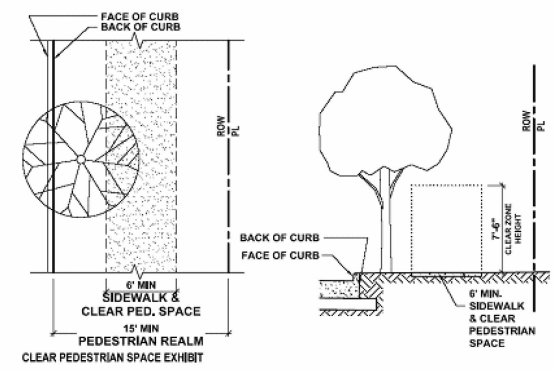
Chapter 212 means Chapter 212 of the Texas Local Government Code, as it may be amended from time to time.

Class I plat means a subdivision plat that meets the applicable requirements of section 42-23 of this Code.

Class II plat means a subdivision plat that meets the applicable requirements of section 42-23 of this Code.

Class III plat means a subdivision plat that is not a Class I plat or a Class II plat.

Clear pedestrian space or *clear space* means that area above a sidewalk that forms a continuous, obstacle free path for a minimum width of six feet and a minimum height of seven and one-half feet.



CLEAR PEDESTRIAN SPACE EXHIBIT

Collector street means a public street that is not a major thoroughfare or a local street, but that distributes traffic between major thoroughfares and other streets.

Commission means the planning commission of the city.

Compensating open space means one or more areas designated as common open space on a subdivision plat or a development plat that are used to reduce the minimum lot size requirements pursuant to the provisions of article III of this chapter.

Courtyard access drive means a private drive that provides driveway access to lots and parking from the street or alley within Courtyard style development meeting the requirements of section 42-194.

Courtyard style development means a tract of land located within the city boundary, divided into lots, reserves, courtyard and access drives that allow for a unified development.

Courtyard means a space, open and unobstructed to the sky, located at or above grade level on a lot or parcel and bounded on two or more sides by walls of a building.

Cul-de-sac means a street with only one outlet that terminates in a vehicular turnaround appropriate for the safe and convenient reversal of traffic movement.

Department means the department of planning and development of the city.

Design manual means the Houston Public Works Infrastructure Design Manual, as it may be amended from time to time.

Develop/development means any activity for which a development plat is required by this chapter.

Development plat means a site plan prepared and approved pursuant to section 42-22 of this Code.

Director means the director of the department or the director's designees.

Director of solid waste means the director of the department of solid waste management or his designee.

Dwelling unit means a structure, or a portion of a structure, that has independent living facilities including provisions for non-transient sleeping, cooking and sanitation.

Extraterritorial jurisdiction means the unincorporated territory extending beyond the

corporate boundaries of the city established pursuant to chapter 42 of the Texas Local Government Code, as may be amended from time to time.

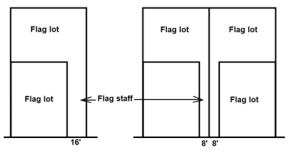
Façade means the exterior wall of any building on a property that faces a public street abutting the property or a courtyard meeting the requirements of section 42-194.

Filing date means the date on which a subdivision plat is formally presented to the commission for its consideration as part of the commission's official meeting agenda, which shall be considered as the initial date of the statutory 30-day time period in which the commission is required to act upon a subdivision plat submitted to it under the provisions of chapter 212.

Fire lane means an access road so marked as to clearly indicate the required lane of unobstructed fire department access to a building, structure or property in event of a fire or other emergency situation.

Final plat means a map or drawing of a proposed subdivision prepared in a manner suitable for recording in the appropriate county map, plat or real property records and prepared in conformity with the requirements of article II of this chapter.

Flag lot means a lot whose frontage on and access to the street right-of-way is provided by a narrow driveway, access easement, or other parcel of land referred to as the "flag staff" where more than one lot abutting the flag staff use it for shared vehicular access.



Front entrance means the primary pedestrian doorway located on the first floor of a building facade along a street. A garage door is not considered a front entrance.

Frontage means that portion of any lot or tract that abuts a street. A lot or tract abutting more than one street shall have frontage on only one street, which shall be deemed to be the side of the lot or tract with the shortest dimension unless otherwise indicated on the subdivision plat or development plat.

General plan means a map illustrating the general design features and street layout of a proposed development of land that is to be subdivided and platted in sections.

Gross floor area or *GFA* has the meaning ascribed in section 26-472 of this Code.

Ground floor façade means the façade of a building along a transit-oriented development street or walkable places street, as applicable, between the finished floor height of the ground floor and a vertical height of eight feet.

Hardscape means a walkable surface made of durable materials, including paving or asphalt.

High-rise means a structure greater than 75 feet in height measured from grade to the finished floor of the highest habitable floor, or to the highest floor of a parking garage.

Local street means a type 1 permanent access easement and a public street that is not a major thoroughfare or collector street.

Lot means: (1) in the context of a subdivision plat, an undivided tract of land intended for single-family residential use contained within a block and designated on a subdivision plat by numerical identification; (2) in the context of a development plat, a parcel intended as an undivided unit for the purpose of development; or (3) in the context of the provisions of this chapter pertaining to special minimum building line blocks, special minimum lot size blocks, and special minimum lot size areas, contiguous land under common ownership, as shown on the most current appraisal district records, that is used or developed for any use, regardless of whether the land consists of a

platted lot or a portion of a platted lot or a combination thereof. Two or more platted lots that have been combined in their entireties as a single building site shall not constitute a single lot under item (3) of this definition.

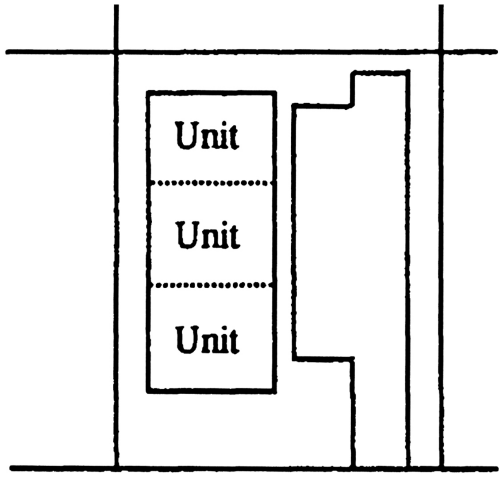
Major Activity Center or *MAC* means an area so designated by city council pursuant to section 42-273 of this Code.

Major thoroughfare means a public street designated as a principal thoroughfare or thoroughfare on the latest edition of the major thoroughfare and freeway plan.

Major thoroughfare and freeway plan means the latest edition of the major thoroughfare and freeway plan adopted by the commission and approved by the city council.

Mid-rise means a structure 65 feet or greater measured from grade to the top of structure but less than a high-rise as defined in this chapter.

Multi-family residential means the use of property with one or more buildings on a parcel designed for and containing an aggregate of three or more dwelling units. Multi-family residential includes apartments, condominiums, triplexes and quadraplexes.



Multi-unit residential (MUR) means the use of property located within the city boundary, for one or more buildings on a tract designed for and containing an aggregate of three to eight dwelling units, which may include multiple duplexes, triplexes, quadraplexes, and apartments and condominiums.

Narrow lot means a lot that has less than 44 feet of frontage on a street or type 1 permanent access easement.

Nonresidential means any use that is not multi-family residential or single-family residential.

Occupiable space has the meaning ascribed in the construction code.

Off-street parking means vehicular parking that is provided in a location other than in a public right-of-way.

Open space amenities plan means a plan submitted as part of a subdivision plat application that specifies how each area not otherwise eligible to be used as compensating open space will be improved and maintained with amenities such as parks, nature trails, picnic areas or other similar facilities that render the compensating open space accessible to and useable by the owners of lots in the subdivision.

Parcel means any quantity of land capable of being described with such definiteness that its location and boundaries can be established that is designated by its owner as land to be used or developed as a unit or that has been used or developed as a unit. Parcel includes an easement supporting or related to a primary parcel, and a condominium unit.

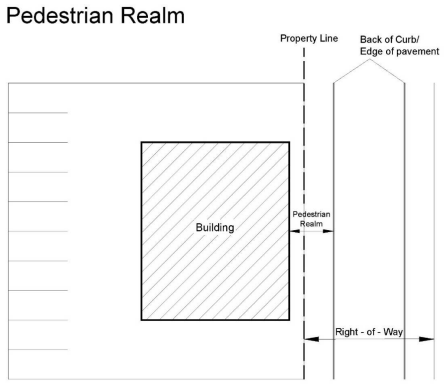
Park means an area owned or to be owned by the city that may be used for passive or active recreational use or otherwise left in an unimproved state, and that, if specifically noted as a type of public park, shall conform to the designations in the City of Houston Parks Master Plan.

Parks board means the board created pursuant to section 33-201 of this Code.

Parks director means the director of the city's parks and recreation department, or the director's designee.

Pedestrian realm means the area from the back-of-curb or the edge of the roadway on a

street without curbs, to the front of a building on the lot or tract. This pedestrian realm area may be within either a dedicated public right-of-way or within designated pedestrian areas on private property, for which an easement granting public use has been filed of record in the county real property records. This pedestrian realm area may include hardscape, publicly accessible and unobstructed sidewalks, pedestrian amenities, softscape and utilities, all constructed in accordance with the city infrastructure design manual, this article and other applicable regulations.



Permanent access easement means a privately maintained and owned street easement approved by the commission that provides for vehicular access to three or more single-family residential units and which shall be either a Type 1 permanent access easement or a Type 2 permanent access easement, each of which is defined in this section.

Permeable means a surface that allows water to pass through it and penetrate into the ground.

Plat restriction means any covenants, restrictions, or plat notations that are contained only on a subdivision plat recorded in the real property records without reference in any dedicatory instrument recorded in the real property records separately from the subdivision plat. Plat restrictions do not include (1) building lines, (2) lot lines, or (3) covenants, restrictions, and notations on a recorded subdivision plat of a multi-family residential development relating to the requirements and standards of division 6 of article III of this chapter.

Preliminary plat means a map or drawing of a proposed subdivision that illustrates the proposed layout and features of the subdivision submitted to the commission for review and approval, but not suitable for recording in the county map, plat or real property records.

Primary street means a street designated as a primary walkable places street on the walkable places plan or a primary transit-oriented development street on the transit-oriented development plan.

Private drive means a privately owned way for vehicular travel that is not a street or private street and that provides an unobstructed connection between one or more streets or private streets or to any portion of a parking lot, shopping center, institution, commercial area, multi-unit residential development, or industrial development. A private drive may provide for access by the general public, but the owner of the private drive shall maintain the right to restrict public access to the private drive.

Private park means a privately owned area that may be used for passive or active recreational use or otherwise left in an undeveloped state and, in a single family residential development, that is subject to restrictive covenants filed of record in the appropriate county providing for the creation and operation of a homeowners association to maintain and improve the private park. Compensating open space as defined by this section can also be private park land to the extent it meets the requirements of section 42-254(b)(2)a of this Code.

Private roadway means a privately owned and maintained vehicular accessway that provides access to a tract of land.

Private street means a privately maintained and owned vehicular accessway that provides access from a public street to one or more multi-family residential buildings.

Public street means a public right-of-way, however designated, dedicated or acquired, that provides access to adjacent property.

Recorded map return agreement means a written agreement authorizing the county clerk of the county in which a subdivision plat is filed to return the original recorded subdivision plat to the department.

Remainder tract means the undivided acreage tract that remains when a portion of a tract that is comprised of all contiguous land under common ownership is subdivided pursuant to a subdivision plat.

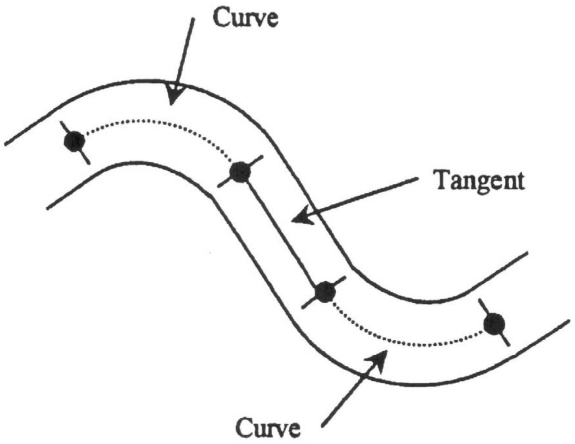
Replat means a subdivision plat prepared, approved, and recorded under the applicable provisions of this chapter that is controlling over the previous plat or a portion of the previous plat without vacation of that plat.

Reserve tract means a parcel of land that is not a lot, but is created within a subdivision plat for other than single-family residential use and is established to accommodate some purpose for which a division into lots is not suitable or appropriate.

Residential means pertaining to the use of land for premises that contain habitable rooms for nontransient occupancy and that are designed primarily for living, sleeping, cooking and eating therein. A premises that is designed primarily for living, sleeping, cooking and eating therein will be deemed to be residential in character unless it is actually occupied and used exclusively for other purposes. Hotels, suites hotels, motels, boarding houses, and day care centers shall not be considered to be residential.

Retail commercial center means one or more commercial establishments contained or to be contained in a building or buildings encompassing a total building area of not more than 100,000 square feet developed as an integrated unit under common ownership or operating as an integrated unit under reciprocal agreements governing all external, nonbuilding space.

Reverse curve means a curve composed of two curves turning in opposite directions.



Roadway means the portion of a public street that is improved for, designed for, or ordinarily used for vehicular use.

Secondary street means a street designated as a secondary walkable places street on the walkable places plan or a secondary transit-oriented development street on the transit-oriented development plan.

Sector means a geographic area within the city as shown in the City of Houston Parks Master Plan for designation of new park needs or additional park improvements.

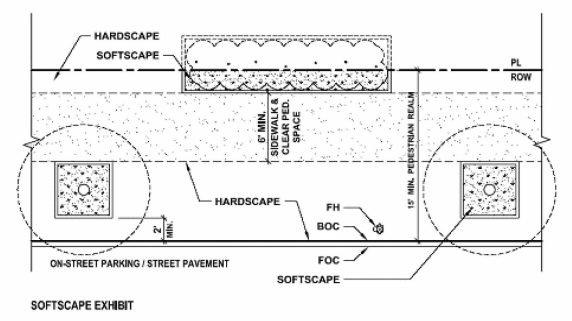
Shared driveway shall mean a private roadway that is not an extension of any street or private roadway and provides access to two or more single-family residential lots through appropriate cross-access easements.

Sidewalk has the meaning ascribed in section 40-551 of this Code.

Single-family residential means the use of a lot with one building designed for and containing not more than two separate unit with facilities for living, sleeping, cooking, and eating therein. A lot upon which is located a free-standing building containing one dwelling unit and a detached second dwelling unit of not more than 1500 square feet shall also be considered single-family residential. A building that contains one dwelling unit on one lot that is connected by a party wall to another

building containing one dwelling unit on an adjacent lot shall be single-family residential.

Softscape means the horticultural elements of a landscape, including grass, ground cover, hedges, plantings, shrubs, soil, and vines.



SOFTSCAPE EXHIBIT

Solid waste collection plan means a plan that is filed with a single-family subdivision plat application for property located within the city that includes the following provisions to allow (i) the collection of solid waste without hindrance or obstruction of any adjacent public street, (ii) the frequency of solid waste collection as necessary to avoid a health hazard caused by the accumulation of solid waste, (iii) heavy trash removal, (iv) one or more sites for the placement of trash cans to serve all units within the subdivision without infringing on any required open space or parking areas required by this chapter, and (v) whether the city or another provider is expected to provide service.

Special exception shall mean a commission-approved adjustment to a requirement of article III of this chapter that is issued under section 42-82 of this Code.

Special minimum building line block means the area subject to a minimum building line requirement pursuant to subdivision B of division 3 of article III of this chapter that is composed of not less than one blockface and not more than two opposing blockfaces.

Special minimum lot size area means the area subject to a minimum lot size requirement pursuant to subdivision B of division 4 of article III of this chapter that is composed of not less than five contiguous blockfaces and not more than 500 lots within the same subdivision plat or not more than 400 lots within two or more contiguous subdivision plats.

Special minimum lot size block means the area subject to a minimum lot size requirement pursuant to subdivision B of division 4 of article III of this chapter that is composed of not less than one blockface and not more than two opposing blockfaces.

Street shall mean a public street or a permanent access easement.

Street dedication plat shall mean a plat that illustrates only the location and right-of-way of one or more public streets to be dedicated by the street dedication plat.

Street width exception area shall mean an area so designated by or pursuant to section 42-123 of this Code.

Subdivide shall mean the act or process of creating a subdivision.

Subdivision shall mean the division of a tract of land, including a lot, into two or more parts to lay out a subdivision of the tract, to lay out suburban, building or other lots, or to lay out streets, alleys, squares, parks or other parts of the tract intended to be dedicated to public use or for the use of purchasers or owners of lots fronting on or adjacent to the streets, alleys, squares, parks or other parts, regardless of whether the division is made by a metes and bounds description in a deed of conveyance or in a contract for deed, by using a contract of sale or other executory contract to convey or by using any other method. A subdivision does not include a division of land into parts greater than five acres, where each part has access to a public street and no public improvement is required to be dedicated. A subdivision includes a replat.

Subdivision plat shall mean (1) a map or plan prepared and approved pursuant to the applicable provisions of division II of this chapter showing the proposed subdivision of land or (2) an instrument recorded in the map, plat or real property records of the appropriate county showing the previous subdivision

of property. A subdivision plat includes a replat, an amending plat and a vacating plat.

Title report shall mean a current report, commitment, opinion or title policy that: (1) is prepared and executed by a title company authorized and in good standing to do business in the State of Texas or by an attorney licensed in the State of Texas; (2) provides a legal description of the property proposed to be subdivided or developed; (3) identifies the owner and lienholder of the property subject to the subdivision plat or development plat and the recording information of each instrument by which each owner or lienholder acquired its respective interest; and (4) describes all encumbrances of record that affect the property and the recording information of each instrument by which each encumbrance was established. A title report shall be current if it certifies that the records were examined not more than 30 days from the date of the application to which it applies. For purposes of a replat, a title report shall also include information regarding any deed restrictions applicable to the property or reflect that no deed restrictions apply.

Tract shall mean a parcel.

Transit corridor street has the meaning ascribed in section 33-351 of this Code.

Transit station means a passenger loading or unloading facility of a route for a guided rapid transit or fixed guideway transit system owned and operated by the Metropolitan Transit Authority of Harris County, Texas (METRO). The term does not include the stations of a public bus system.

Type 1 permanent access easement shall mean a permanent access easement at least 50 feet in width that is designed and constructed like a public street in accordance with the design manual and contains one or more public utilities in an unpaved portion of the easement.

Type 2 permanent access easement shall mean a permanent access easement at least 28 feet in width that is designed and constructed like a private street serving a development that has no public utilities other than a public water line connected only to one or more fire hydrants that provides no domestic water services.

Type A street means a public street that intersects a transit corridor street and that abuts a blockface that is located within 1,320 feet walking distance of the end of an existing or proposed transit station platform.

Utility district shall mean a conservation and reclamation district organized under Article III, Section 52, or Article XVI, Section 59, of the Texas Constitution, the creation or enlargement of which requires the consent of the city.

Vacating plat shall mean a vacating plat prepared and approved under the applicable provisions of chapter 212.

Variance shall mean a commission-approved deviation from the requirements of this chapter issued under section 42-81 of this Code.

(Ord. No. 2013-343, § 3(Exhs. A, B), 4-24-2013; Ord. No. 2015-639, §§ 5, 6, 6-24-2015, eff. 7-24-2015; Ord. No. 2018-11, § 29, 1-10-2018; Ord. No. 2019-1028, § 2, 12-11-2019; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020; Ord. No. 2022-391, § 2, 5-18-2022; Ord. No. 2023-64, § 2, 1-25-2023, eff. 2-25-2023; Ord. No. 2023-801, §§ 2, 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-2. Scope.

This chapter shall apply to all development and subdivision of land within the city and its extraterritorial jurisdiction. This chapter establishes the general rules and regulations governing plats, subdivisions and development of land within the city and its extraterritorial jurisdiction to promote the health, safety, morals and general welfare of the city and the safe, orderly and healthful development of the city.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-3. Conflict with county regulations.

This chapter shall not be applied in such a manner as to amend or alter any rules, regulations, procedures or policies lawfully and officially

adopted by the governing body of any county in which there exists territory contained within the city's extraterritorial jurisdiction. In the circumstance where any rule, regulation, procedure or policy lawfully and officially adopted by the governing body of any county is less restrictive than that contained herein, the standards of this chapter shall apply; provided, however, to the extent that this chapter conflicts with any provision of the Harris County Road Law (Special Laws of the 33rd Texas Legislature, Regular Session, 1913, Chapter 17, as amended), then the provisions of that law, to the extent of conflict, shall apply.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-4. Enforcement and penalties.

(a) It shall be unlawful for any person to lay out, subdivide or plat any land into lots, blocks, tracts or streets within the city, or sell property therein and thereby, if the land has not been laid out, subdivided and platted in accordance with the requirements of this chapter.

(b) The building official shall not issue a building permit:

(1) For construction on property that was subdivided after March 15, 1963 unless the property is included in a subdivision plat approved and recorded in accordance with this chapter; or

(2) For a development unless there is attached to the application a development plat approved by the director or the commission.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-5. Penal provisions applicable.

(a) The violation of any provision of this chapter within the corporate limits of the city, including the failure to do any act or perform any duty that is required herein, shall be punishable as provided by section 1-6 of this Code. Each day a violation continues constitutes a separate offense. Prosecution or conviction under this provision shall never be a bar to any other remedy or relief for violation of this chapter.

(b) The violation of any provision of this chapter outside the corporate limits of the city but within the city's extraterritorial jurisdiction shall not constitute an offense, and no fine shall be applicable to the violation.

(c) In addition criminal prosecution, where applicable, the city shall have the right to seek the judicial remedies provided in section 42-6 of this Code for any violation of this chapter within the city or its extraterritorial jurisdiction.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-6. Judicial provisions applicable.

The city, acting through the city attorney or any other attorney representing the city, may file an action in a court of competent jurisdiction to:

(1) Enjoin the violation or threatened violation by the owner of land of a requirement of this chapter applicable to the land; or

(2) Recover damages from the owner of a tract of land in an amount adequate for the city to undertake any construction or other activity necessary to bring about compliance with this chapter.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-7. Denial of utility connections.

(a) The building official shall not issue any building permit or other permits required for the installation of any utility, either public or private, to serve:

(1) Lots or tracts within the city for which a subdivision plat has not been properly recorded as required by this chapter; or

(2) A development within the city that is subject to the provisions of this chapter, for which a development plat has not been properly approved as required by this chapter.

(b) The utility official shall not permit any tract of land to receive any service from the city water or wastewater collection systems unless, at the time of the application for service, the

applicant provides to the utility official satisfactory evidence that the tract of land was subdivided or developed in compliance with this chapter.

(c) In those areas located within the city's extraterritorial jurisdiction, the utility official shall not approve any plans for the construction of any wastewater collection system or domestic water distribution system and the city engineer shall not approve any plans for the construction of storm drainage system within any utility district for which the city has granted its consent for creation or enlargement, unless and until the provisions of this chapter have been complied with for any tract of land served by utilities provided by the utility district.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-8. Forms authorized.

The director is authorized to promulgate forms to use in the implementation of this chapter, including forms for standardized language to be used on the face of subdivision plats and development plats. Prior to the use of any form, the city attorney or the city attorney's designee shall review the form for legal sufficiency and approve each form the city attorney or the city attorney's designee, in his sole professional judgment, determines to be legally sufficient.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-9. Cumulative effect.

This chapter is cumulative of other requirements imposed by ordinances and regulations of the city. To the extent of any inconsistency, the more restrictive provision shall govern.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Secs. 42-10—42-19. Reserved.

ARTICLE II. REQUIREMENTS AND PROCEDURES

DIVISION 1. PLATTING REQUIREMENTS

Sec. 42-20. Subdivision plat required.

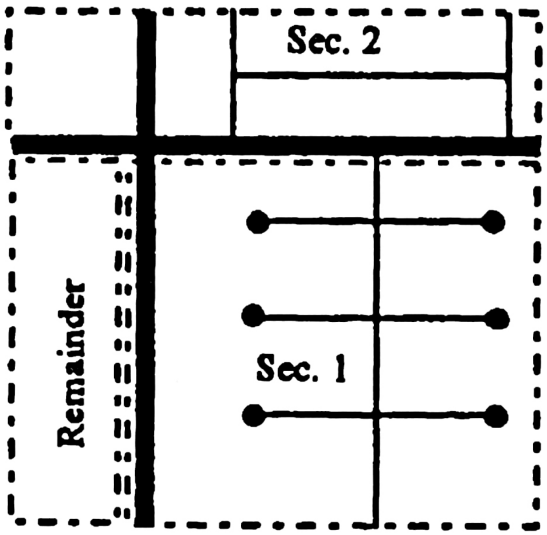
(a) Except as provided in section 42-21 of this Code, any subdivision of property in the city and its extraterritorial jurisdiction shall require a subdivision plat approved pursuant to this article. Prior to the subdivision of any property within the city or its extraterritorial jurisdiction, the owner of the property proposed to be subdivided, or the owner's authorized agent, shall obtain approval from the commission or the director, as applicable, of a subdivision plat of the subdivision submitted pursuant to the requirements of this chapter. All property in the city and its extraterritorial jurisdiction that is subdivided shall be laid out under the direction of the commission, and the city will recognize no other subdivisions.

(b) The requirement to file and obtain approval of a subdivision plat may be met by filing either a class I plat, a class II plat or a class III plat, as applicable to the property proposed to be subdivided.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-21. Exceptions to subdivision platting requirements.

(a) A subdivision plat shall not be required for a subdivision of a reserve tract that is part of a subdivision plat approved by the commission or pursuant to this article if the reserve tract is not encumbered by a one-foot reserve and will not be used for single-family residential purposes.

(b) A subdivision plat shall not be required for a remainder tract that is included in a general plan previously approved by the commission or filed simultaneously with an application for a subdivision plat for any portion of the entire tract.



(c) A subdivision plat shall not be required for the dedication of a public street if the dedication is accomplished through a street dedication plat approved by the commission pursuant to this article.
(Ord. No. 2013-343, § 3(Exhs. A, B), 4-24-2013)

Sec. 42-22. Development plat required.

Development of property through the new construction or enlargement of any exterior dimension of any building, structure or improvement within the city or its extraterritorial jurisdiction shall require a development plat, except that the following types of development shall be exempt from this requirement:

(1) Buildings, structures or improvements within the central business district;

(2) Alterations to any building or improvement, including enclosing an existing canopy or porte-cochere, that do not increase the exterior square footage by more than 100 square feet and that do not result in an encroachment into the building line requirement. An encroachment into a building line requirement authorized by section 42-151 of this Code shall not constitute an encroachment for the purposes of this section;

(3) Construction of a detached single-family residential unit (or enlargement thereto) that meets the requirements of article III of this chapter on a lot that is part of, and in a manner that complies with, a recorded subdivision plat or an unrecorded subdivision plat that is recognized as a plat for the purposes of property conveyance;

(4) A parking lot or expansion thereof;

(5) A retaining wall, masonry wall or fence under eight feet high; or

(6) Placement of a temporary classroom building at a public school facility.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-23. Classes of subdivision plat.

(a) There are hereby established three classes of subdivision plat: a class I plat, a class II plat and a class III plat. Class I plats and class II plats are optional and may be used in lieu of a class III plat if the subdivision plat meets the qualifications of this section.

(b) A class III plat is required for subdivisions that require or propose the creation of any new street or the dedication of any easement for public water, wastewater collection or storm sewer lines. A class III plat is also required for a vacating plat. Subdivisions that do not require or propose the creation of any new street or the dedication of any easement for public water, wastewater collection or storm sewer lines, at the option of the applicant, may be submitted as either a class I plat or a class II plat as determined by the respective applicable criteria, or may be submitted as a class III plat.

(c) A class II plat is a subdivision plat that:

(1) Does not require or propose the creation of any new street;

(2) Does not require or propose the dedication of any easement for public water, wastewater collection or storm sewer lines; and

(3) Is not a replat that requires notification of adjacent property owners pursuant to chapter 212.

(d) A class I plat is a subdivision plat that either meets the four criteria below or is an amending plat:

(1) Creates no more than four lots each fronting on an existing street;

(2) Does not require or propose the creation of any new street;

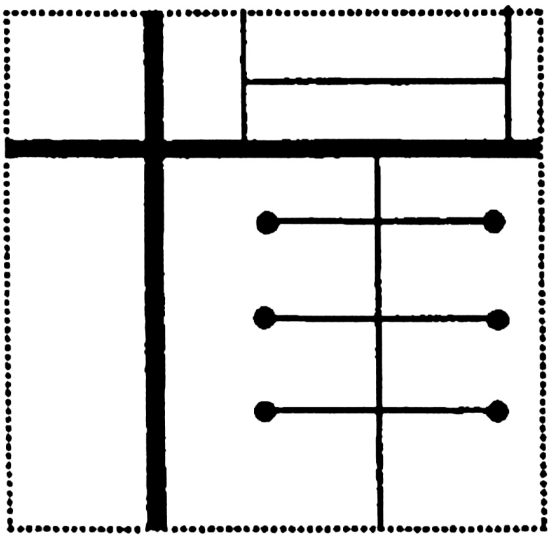
(3) Does not require or propose the dedication of any easement for public water, wastewater collection or storm sewer lines; and

(4) Is not a replat.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-24. General plan.

(a) When property is proposed to be subdivided in sections, a general plan illustrating all contiguous property under one ownership, legal interest or common control shall be submitted prior to or simultaneously with the application for the subdivision plat for the first section.



(b) The general plan shall show:

(1) The alignment of any major thoroughfares within or adjacent to the property in accordance with the major thoroughfare and freeway plan and all collector streets that are necessary to demonstrate an overall circulation system for the property that will meet the requirements of article III of this chapter;

(2) Recorded easements; and

(3) All the floodways and the 100- and 500-year floodplains per current FEMA (Federal Emergency Management Agency) map as may be approved by the flood plain administrator that was effective at the time of the general plan approval; and

(c) The general plan also may identify the number of sections anticipated to be platted pursuant to the general plan and proposed land uses including single-family residential, multi-family residential, restricted and unrestricted reserves, utility plant sites, drainage and detention facilities and proposed easements affecting the subdivision of the property.

(d) Commission approval of a general plan shall be noted on the face of the plan and shall be applicable only to the major thoroughfare, collector street pattern and any local street shown on the general plan.

(e) The general plan may be amended in the same manner required for approval of the initial general plan.

(f) A general plan shall remain in effect for four years from the date of commission approval, subject to extension as provided herein. Any amendment of the general plan shall not result in an extension of the effective period. Recordation of a subdivision plat for a section within the general plan during the effective period of the general plan shall renew the general plan for an additional four years from the expiration date of the general plan if the recorded subdivision plat meets the following requirements:

(1) The subdivision plat is consistent with the general plan; and

(2) The subdivision plat represents the lesser of 20 percent of the total acreage in the general plan or 25 acres.

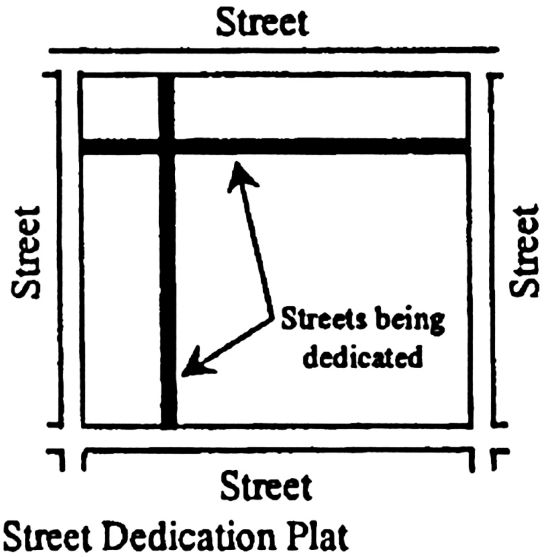
Recordation of a street dedication plat shall not extend the effective period of a general plan; provided, however, that a street dedica-

tion plat that dedicates a major thoroughfare or a collector to its points of connection with adjacent properties as shown on the general plan shall extend the general plan for four years. Nothing shall prohibit an applicant from filing an application for a general plan for the same property that was included in an expired general plan.

(g) As long as the general plan remains in effect, the street system approved in the general plan shall form the basis for street system extensions into adjacent properties to be platted, unless the subdivider of such properties demonstrates that the requirements of article III of this chapter can be met without the street extensions.
(Ord. No. 2013-343, § 3(Exhs. A, B), 4-24-2013; Ord. No. 2022-391, § 3, 5-18-2022)

Sec. 42-25. Street dedication plat.

A street dedication plat is a plat that may be filed at the option of an applicant to dedicate one or more public streets. Except as provided in this section, a street dedication plat shall not be approved unless the commission previously has approved a general plan for the area in which the street dedication plat is located.



Street Dedication Plat

(Ord. No. 2013-343, § 3(Exhs. A, B), 4-24-2013)

Secs. 42-26—42-39. Reserved.

DIVISION 2. APPLICATION REQUIREMENTS

Sec. 42-40. Basic subdivision plat submittal requirements.

(a) An application for the approval of a subdivision plat shall be filed with the department in the form prescribed by the director for the respective class of subdivision plat, and shall:

(1) Be made on an application form provided by the department;

(2) Provide all required materials, in the quantity and manner prescribed by the director, on paper, on a computer disc or on electronic media;

(3) Be accompanied by an affidavit of the owner, or the owner's authorized agent with duty to inquire, regarding all contiguous land under common ownership or control;

(4) Meet the graphic and legal requirements of sections 42-41 through 42-45 of this Code, as applicable; and

(5) Be accompanied by the applicable filing fee.

(b) An application for the approval of a subdivision plat that is a replat and not subject to the notice provisions of section 42-49 of this Code shall also be accompanied by a current title report.

(c) A class III plat shall be first submitted for review as a preliminary plat in accordance with the requirements below.

(d) The application to plat a single-family subdivision inside the city must be accompanied by a solid waste collection plan, as defined in this chapter, which plan shall be subject to the approval of the director of solid waste. An approved plan is a prerequisite to plat approval. The plan must be noted on the plat by a note placed on the face of the plat indicating whether

the development is eligible or ineligible for solid waste collection provided by the city, as applicable, utilizing one of the following forms.

(1) THE RESIDENTIAL UNITS OR LOTS ENCOMPASSED BY THIS PLAT ARE INELIGIBLE FOR SOLID WASTE COLLECTION SERVICES PROVIDED BY THE CITY AT THE TIME OF THE FILING OF THE PLAT. THE OBLIGATION TO PROVIDE SOLID WASTE COLLECTION SERVICES SHALL BE THE SOLE RESPONSIBILITY OF THE OWNERS OF PROPERTY IN THE SUBDIVISION. NOTWITHSTANDING THE FOREGOING, THE CITY RESERVES THE RIGHT TO AMEND THE LEVEL OF SOLID WASTE COLLECTION SERVICES IT PROVIDES; or

(2) THE RESIDENTIAL UNITS OR LOTS LOCATED IN THIS SUBDIVISION ARE ELIGIBLE FOR SOLID WASTE COLLECTION SERVICES BY THE CITY AT THE TIME OF THE FILING OF THE PLAT. NOTWITHSTANDING THE FOREGOING, THE CITY RESERVES THE RIGHT TO AMEND THE LEVEL OF SOLID WASTE COLLECTION SERVICES IT PROVIDES.

(e) The city attorney shall review each application for a subdivision plat that is subject to the notice provisions of section 42-49 of this Code. The applicant shall pay for the cost associated with this provision in the form of a nonrefundable fee set forth for this provision in the city fee schedule.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 7, 6-24-2015; Ord. No. 2015-639, §§ 7, 8, 6-24-2015, eff. 7-24-2015)

Sec. 42-41. Additional requirements—All subdivision plats.

Each preliminary or final subdivision plat, regardless of class, shall:

(1) State the proposed name of the subdivision, which shall not be a duplicate of any subdivision or development of record within the city or its extraterritorial jurisdiction and conform to the current subdivision naming standards promulgated by the director and located on the planning department website;

(2) Provide the legal description of the property proposed to be subdivided, including the name of the previous subdivision as applicable, the name of the county, survey and abstract number;

(3) Provide reference to the nearest corner or street right-of-way intersection in the general area;

(4) Show the location of all streets, shared driveways, alleys and easements within the subdivision plat boundaries;

(5) Show the location of all building lines required by this chapter;

(6) State the total acreage within the subdivision and the total number of lots, blocks and reserves;

(7) Identify the owner of the property. If the owner of the property is not a natural person, state the name of the entity along with the name of the individual authorized to execute the subdivision plat on behalf of the entity;

(8) Identify the person or firm who prepared the plat;

(9) Indicate the date on which the plat was drawn;

(10) Provide a north arrow;

(11) Orient the layout of the subdivision with north to the top of the drawing;

(12) Provide the numeric and graphic scale for the subdivision;

(13) Orient the subdivision within the larger area by providing a vicinity map;

(14) Draw plat boundaries with heavy lines to indicate the subdivided area;

(15) Identify adjacent areas outside the plat boundaries indicating the name of the adjacent subdivisions, churches, schools, parks, bayous and drainage ways, acreage and all existing streets, easements, pipelines and other restricted uses;

(16) Identify blocks and lots within a subdivision by consecutive numbers; lot numbering may be cumulative throughout the subdivision so long as the numbering system continues from block to block in a uniform manner; and

(17) Identify reserves by alphabetical letter.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2022-391, § 4, 5-18-2022)

Sec. 42-42. Additional requirements—Class I plat and class II plat.

In addition to the requirements of section 42-41 of this Code, applications for a class I plat or a class II plat shall meet the following requirements so that the subdivision plat is suitable for recordation upon approval by the director or the commission, as applicable:

(1) The class I plat or class II plat shall be drawn on positive photographic film with black lines and image and shall be suitable for the reproduction of direct positive prints and reproductions;

(2) The scale shall be one of the following:

a. One inch to 20 feet;

b. One inch to 30 feet;

c. One inch to 40 feet;

d. One inch to 50 feet;

e. One inch to 60 feet; or

f. One inch to 100 feet;

provided that the director may authorize the use of a different scale when the director determines that circumstances warrant a different scale.

(3) The subdivision plat shall show all engineering and surveying data in a manner and to an extent sufficient to locate all of the features of the subdivision plat on the ground, including the following:

a. Full dimensions along all boundaries of the subdivision plat;

b. Full dimensions of all shared driveways;

c. Full dimensions of all easements, drainageways, gullies, creeks and bayous;

d. Full dimensions of all lots, blocks, reserves, out-tracts, compensating open space and any other tracts designated separately within the subdivision plat boundaries; and

e. Full dimensions of all fee strips, pipelines and other physical and topographical features necessary to be accurately located by surveying methods.

Full dimensions shall include line dimensions, bearings of deflecting angles, radii, central angles and degrees of curvature and lengths of curves and tangent distances, all of which shall be shown in feet and decimal fractions thereof.

(4) The subdivision plat shall identify and note the intended use of all lots and reserves. In those instances where the intended use of a reserve has not been determined, the reserve shall be identified as unrestricted and so noted on the subdivision plat;

(5) All dedication statements and certificates shall be included on the subdivision plat;

(6) The name of each individual who will sign the subdivision plat shall be lettered under a line provided for the signature;

(7) For each class 1 plat and, at the option of the applicant for a class 2 plat, materials for recordation as provided in section 42-45 of this Code shall be submitted;

(8) A current title report shall be submitted; and

(9) An existing conditions survey shall be submitted for a class II plat if required by the provisions of section 42-56 of this Code.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-43. Additional requirements—Class III plat—Preliminary plat.

In addition to the requirements of section 42-41 of this Code, applications for a preliminary class III plat shall:

(1) Show the location and approximate dimensions of all blocks and reserves and approximate dimensions typical for lots within the subdivision plat boundaries;

(2) Provide survey dimensions and bearings for the boundaries of the subdivision plat, with lines outside the subdivision plat boundary, if any, drawn as dashed lines;

(3) Show the location and approximate width of existing and proposed watercourses, ravines and drainage easements within the subdivision plat boundaries;

(4) Be accompanied by an affidavit of the owner, or the owner's authorized agent with duty to inquire, identifying all encumbrances on the property inside the subdivision plat boundaries; and

(5) Be accompanied by an existing conditions survey if required by the provisions of section 42-56 of this Code.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-44. Additional requirements—Class III plat—Final plat.

In addition to the requirements of section 42-41 of this Code, applications for a final class III plat shall:

(1) Incorporate all of the provisions relating to preliminary plats and reflect the conditions and requirements of final subdivision plat approval previously imposed by the commission;

(2) Be drawn on positive photographic film with black lines and image and be suitable for the reproduction of direct positive prints and reproductions;

(3) Use one of the following scales:

a. One inch to 20 feet;

b. One inch to 30 feet;

c. One inch to 40 feet;

d. One inch to 50 feet;

e. One inch to 60 feet; or

f. One inch to 100 feet;

provided that the director may authorize the use of a different scale when the director determines that circumstances warrant a different scale;

(4) Show all engineering and surveying data in a manner and to an extent sufficient to locate all of the features of the subdivision plat on the ground, including the following;

a. Full dimensions along all boundaries of the subdivision plat;

b. Full dimensions of all shared driveways;

c. Full dimensions of all easements, drainageways, gullies, creeks and bayous;

d. Full dimensions of all lots, blocks, reserves, out-tracts, compensating open space and any other tracts designated separately within the subdivision plat boundaries; and

e. Full dimensions of all fee strips, pipelines and other physical and topographical features necessary to be accurately located by surveying methods.

Full dimensions shall include line dimensions, bearings of deflecting angles, radii, central angles and degrees of curvature and lengths of curves and tangent distances, all of which shall be shown in feet and decimal fractions thereof;

(5) The intended use of all lots and reserves; in those instances where the intended use of a reserve has not been determined, the reserve shall be identified as unrestricted and so noted on the subdivision plat;

(6) Include all dedication statements and certificates; and

(7) Include a current title report.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-45. Additional requirements for recordation of subdivision plats.

After approval of a class I plat, a class II plat or a final class III plat, the applicant shall present the following to the department for recordation of the subdivision plat:

(1) The original subdivision plat drawing prepared on any suitable permanent translucent material of positive photographic film with lines, lettering and signatures in black ink or image, and the names of all individuals signing the subdivision plat lettered under the respective signature. The original subdivision plat drawing shall evidence compliance with all conditions of final plat approval;

(2) A current update of the previously submitted title report that reflects any change in any of the conditions or information required in the title report since the date of the last title report, including that there has been no change, if applicable;

(3) An executed recorded map return agreement;

(4) Certification that all current city, county and school district taxes have been paid and that there are no delinquent taxes on the property, which may be provided as part of the title report or in the form of a certificate from the city, if applicable, and from the county and the school district in which the land being subdivided is located.

(5) For a vacating plat, the original vacation instrument.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-46. Development plat submittal requirements.

An application for the approval of a development plat shall be filed with the department, and shall:

(1) Be made on an application form provided by the department;

(2) Provide a copy of a survey sealed and certified by a Texas registered professional land surveyor showing:

a. The location of each existing building, structure or improvement;

b. Each easement and right-of-way within or abutting the boundary of the surveyed property, tied to a street intersection or landmark; and

c. The dimensions of each sidewalk, alley, square, park or other part of the property intended to be dedicated to public use or for the use of purchasers of property fronting on or adjacent to the sidewalk, alley, square, park or other part.

The survey does not have to be recent so long as it illustrates all contiguous property under one ownership or common control;

(3) Include a copy of a site plan illustrating:

a. All proposed and existing buildings, proposed and existing driveways, stairways, fences and adjacent roadways;

b. Parking that meets the applicable requirements of this chapter and chapter 26 of this Code;

c. Landscaping that meets the applicable requirements of chapter 33 of this Code;

d. Location of bulk container and screening for bulk containers that meets the applicable requirements of article VI of chapter 39 of this Code; and

e. Location of gang mailboxes or cluster box units that are constructed in the public street pursuant to section 40-13 of this Code, as applicable; and

(4) Be accompanied by the applicable filing fee.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 9, 6-24-2015, eff. 7-24-2015; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-47. Applications requesting variance.

(a) The application for a general plan subdivision plat or development plat requesting a variance from any requirement of this chapter shall:

(1) Identify the specific requirement for which the variance is sought;

(2) State the extent of the variance sought;

(3) Provide a detailed explanation of the hardship that justifies the granting of the variance; and

(4) Provide a statement of facts addressing each of the conditions for commission approval provided in section 42-81 of this Code.

(b) An application may be amended to request one or more variances that were not requested in the initial application.

(c) The applicant for a variance shall pay all costs and shall provide information in the form prescribed by the director associated with the notice provisions of section 42-83 of this Code.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 10, 6-24-2015, eff. 7-24-2015)

Sec. 42-48. Applications requesting special exception.

(a) The application for a general plan subdivision plat or a development plat requesting a special exception from any requirement of article III of this chapter shall:

(1) Identify the specific requirement for which the special exception is sought;

(2) State the extent of the special exception sought;

(3) Provide a detailed explanation of the circumstances and facts that justify the granting of the special exception; and

(4) Provide a statement addressing each of the conditions for commission approval provided in section 42-82 of this Code.

(b) An application may be amended to request one or more special exceptions that were not requested in the initial application.

(c) The applicant for a special exception shall pay all costs and shall provide information in the form prescribed by the director associated with the notice provisions of section 42-83 of this Code.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 11, 6-24-2015, eff. 7-24-2015)

Sec. 42-49. Replats requiring notification of adjacent property owners.

(a) A subdivision plat that is a replat must provide notification to adjacent property owners pursuant to this section if any lot in any preceding plat was limited by deed restrictions, separately filed restrictions, or plat restrictions to single family residential use or restricted to residential use for not more than two single family residential units per lot. The commission shall establish the public hearing date for replats requiring notification at the next meeting for which proper notice can be met on a complete application.

(b) Notification to adjacent property owners on a replat is not required if the subdivision plat that created the single family plat restriction was replatted in its entirety for any other use permitted by law, and the plat restrictions were removed by that replat.

(c) A replat filed under this section shall provide the following:

(1) An affidavit of owner or an authorized agent in the form specified by the director requesting commission approval and affirming:

a. that the submitted replat does not amend, remove, or violate, or have the effect of amending, removing, or violating, any covenants or restrictions that are contained or referenced in a dedicatory instrument recorded in the real property records separately from the preceding plat or replat, or a deed restriction, and

b. that it further does not attempt to amend, remove, or violate, or have the effect of amending, removing or

violating, any existing public utility easements without the consent of the affected utility companies;

(2) The information required in the form specified by the director to provide notification in accordance with this section; and

(3) All costs for notice as set forth in the city fee schedule.

(d) The applicant shall cause notice of the required public hearing to be published a minimum of 20 days before the date of the public hearing in a newspaper of general circulation in Harris, Fort Bend and Montgomery Counties upon authorization by the director, which shall be given after the commission establishes the date for the public hearing. Prior to commission consideration of the replat, the applicant shall provide an affidavit of publication to the department.

(e) Each replat filed under this section shall require additional notification in compliance with section 42-83 of this Code.

(f) If a replat under this section requires a variance or special exception, the requirements of section 42-84 of this Code also apply.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, §§ 12, 13, 6-24-2015, eff. 7-24-2015; Ord. No. 2022-391, § 5, 5-18-2022)

Sec. 42-50. General plan submittal requirements.

An application for the approval of a general plan shall be filed with the department, and shall:

(1) Be made on an application form provided by the department;

(2) Provide all required materials, in the quantity and manner prescribed by the director, on paper, on a computer disc or on electronic media;

(3) Be accompanied by an affidavit of the owner, or the owner's authorized agent with duty to inquire, identifying all encumbrances on the property inside the general plan boundary;

(4) State the proposed name of the general plan, which shall not be a duplicate of any subdivision or development of record within the city or its extraterritorial jurisdiction;

(5) Provide the legal description of the property in the general plan, including the name of the county, survey and abstract number and a reference to the nearest corner or street right-of-way intersection in the general area;

(6) Show the location of all collector streets and major thoroughfares, and at the option of the applicant, all local streets, within the general plan boundaries;

(7) State the total acreage within the general plan;

(8) Identify the owner of the property; if the owner of the property is not a natural person, state the name of the entity along with the individual authorized to execute the general plan on behalf of the entity;

(9) Identify the person or firm who prepared the general plan;

(10) Indicate the date on which the general plan was drawn;

(11) Provide a north arrow;

(12) Orient the layout of the general plan with north to the top of the drawing;

(13) Provide a numeric and graphic scale, which shall be a minimum of 1" = 600' and no greater than 1" = 100';

(14) Orient the general plan within the larger area by providing a vicinity map;

(15) Have boundaries drawn with heavy lines to indicate the area included in the general plan;

(16) Identify adjacent areas outside the general plan boundaries, indicating the name of the adjacent subdivisions, and show the location and approximate width of existing and proposed water courses, ravines, drainage easements, floodways, 100- and 500-year floodplains per current FEMA

(Federal Emergency Management Agency) map as approved by the flood plain administrator that was effective at the time of the general plan approval, streets and pipelines within and adjacent to the general plan boundaries;

(17) Provide survey dimensions and bearings for the boundaries of the general plan, with lines outside the general plan boundaries, if any, drawn as dashed lines; and

(18) Be accompanied by the applicable filing fee.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2022-391, § 6, 5-18-2022)

Sec. 42-51. Street dedication plat submittal requirements.

An application for the approval of a street dedication plat shall be filed with the department, and shall:

(1) Be made on an application form provided by the department;

(2) Provide all required materials, in the quantity and manner prescribed by the director, on paper, on a computer disc or on electronic media;

(3) Be accompanied by an affidavit of the owner, or the owner's authorized agent with duty to inquire, identifying all encumbrances on the property inside the street dedication plat boundary;

(4) State the proposed name of the street dedication plat, which shall not be a duplicate of any subdivision or development of record within the city or its extraterritorial jurisdiction;

(5) Provide the legal description of the property proposed to be dedicated, including the name of the county, survey and abstract number and a reference to the nearest corner or street right-of-way intersection in the general area;

(6) State the total acreage within the street dedication plat;

(7) Identify the owner of the property. If the owner of the property is not a natural person, state the name of the entity along with the name of the individual authorized to execute the street dedication plat on behalf of the entity;

(8) Identify the person or firm who prepared the street dedication plat;

(9) Indicate the date on which the plat was drawn;

(10) Provide a north arrow;

(11) Orient the layout of the street dedication plat with north to the top of the drawing;

(12) Provide a numeric and graphic scale, which shall be a minimum of 1" = 100' and no greater than 1" = 20';

(13) Orient the street dedication plat within the larger area by providing a vicinity map;

(14) Draw plat boundaries with heavy lines;

(15) Provide survey dimensions and bearings for the boundaries of the street dedication plat, with lines outside the street dedication plat boundaries, if any, drawn as dashed lines; and

(16) Be accompanied by the applicable filing fee.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-52. Initial review by director.

The director initially shall review each application for subdivision plat, development plat, general plan and street dedication plat for completeness. If the director determines that the application is complete, the application shall be acted upon as further provided in this article. If the director determines that the application is incomplete, he or she shall return the application with an explanation of the deficiency.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-53. Time for submittal.

(a) Complete applications that require approval by the commission and that are submitted to the department by 11:00 a.m. on the submittal due

date as per the annual calendar available on the department website shall be placed on the agenda for consideration by the commission at that meeting.

(b) The director shall maintain at the department's office and on the department website an annual calendar approved by the commission that details the submittal period for all plat applications that require approval by the commission. The calendar shall include:

(1) The submittal period, including the date and time by which an applicant must file a complete application with the department; and

(2) The corresponding date of the regularly scheduled meeting of the commission where a complete application will first be considered by the commission following the submittal period, as applicable.

(c) Each year, on or before the first regularly scheduled meeting of the commission in December, the commission shall adopt a schedule for the next calendar year that meets the following criteria:

(1) The schedule outlined in the calendar ensures the timely and expeditious consideration of a complete application submitted by an applicant;

(2) The schedule outlined in the calendar creates regular and predictable periods of time during which an applicant may file a complete application with the department; and

(3) The schedule outlined in the calendar establishes a reasonable time period for the director to perform the administrative procedures, consider and review the application, and fulfill the notification requirements of this article, as applicable.

(d) Complete applications for a class I plat or a development plat shall be reviewed and approved, where appropriate, or referred to the commission by the director not later than ten days from the date the complete application was submitted. Applications referred to the commission under this subsection shall be placed on the commission agenda for consideration at the next meeting for which proper notice can be given.

(e) Replats that require notice to property owners pursuant to section 42-49 of this Code shall be placed on the commission agenda for consideration on the date established for the public hearing.

(f) Plats that require notice to property owners pursuant to sections 42-81 or 42-82 of this Code shall be placed on the commission agenda for consideration at the next meeting for which proper notice can be given."
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2022-391, § 7, 5-18-2022)

Sec. 42-54. Application fees.

(a) The director may, from time to time, with the assistance of the department of finance, pursuant to Administrative procedure 4-9, prepare and submit for approval by motion of the city council revisions to the city fee schedule that shall be paid by an applicant for services performed by the department in accordance with the provisions of this chapter. The fees approved under this provision shall be included in the city fee schedule. Payment of any applicable fees when due is a condition of the processing of any application under this article.

(b) Unless otherwise specified in the city fee schedule, application fees shall be doubled for work performed without prior authorization or approval required by this chapter.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 14, 6-24-2015, eff. 7-24-2015)

Sec. 42-55. Private easement holder's consent.

Prior to recordation of the subdivision plat, the applicant shall submit a written instrument from the owner of any privately owned easement or fee strip within the plat boundaries that is proposed to be crossed by a street, private street, shared driveway or public utility or drainage easement. The instrument must state that the owner of the easement or fee strip consents to each crossing for the purposes intended and

depicted upon the subdivision plat. In those instances where the applicant submits an instrument of record in lieu of a letter or statement from the owner of the private easement or fee strip, the department shall then refer the recorded instrument to the city attorney for determination of whether the conditions contained in the recorded instrument adequately provide or accommodate the crossing of the private easement or fee strip by the proposed street, private street, shared driveway or public utility or drainage easement depicted on the plat. If the city attorney determines that the recorded instrument is not adequate, the applicant shall then submit evidence of the consent of the owner of the private easement or fee strip.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-56. Application requirements—Existing conditions survey.

Each class II and class III preliminary plat providing for single-family residential use on a tract within the city shall provide an existing conditions survey that illustrates the location of any of the following:

(1) Curbs, driveways, utility poles, meters, fire hydrants, storm sewer inlets, and other physical features on the tract or in the public right-of-way within ten feet of the tract;

(2) Recorded easements on the tract;

(3) Trees located within the public right-of-way within ten feet of the tract or within the building setback area as that term is defined by article V of Chapter 33 of this Code;

(4) Roadways and sidewalks including the paving section width on the tract and in the public right-of-way within ten feet of the tract; and

(5) Public rights-of-way including the width on or adjacent to the tract.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Secs. 42-57—42-69. Reserved.

DIVISION 3. REVIEW PROCEDURES

Sec. 42-70. In general.

This division establishes the procedures for the review of applications for subdivision plats, development plats, general plans and street dedication plats. As provided in this division, the director is authorized to approve class I plats and development plats that meet the requirements of this chapter. Only the commission is authorized to approve class II plats, class III plats, general plans, street dedication plats and any class I plat or development plat that the director refers to the commission. The following chart is a summary of the approval process intended for illustrative purposes only. In case of conflict between the chart and the text, the text shall prevail.

	Class I plat	*Class II plat*	*Class III plat*	*Dev. plat*
Administrative Approval	Yes	No	No	Yes
Planning Comm'n Approval Required				
• Always	No	Yes	Yes	No
• For plat with variance or special exceptions	Yes	Yes	Yes	Yes
• For replat	N/A	Yes	Yes	N/A

	Class I plat	*Class II plat*	*Class III plat*	*Dev. plat*
Preliminary approval required	No	No	Yes	N/A

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-71. Commission consideration and action.

(a) The commission shall consider and act on each class III plat submitted to it on a preliminary basis and upon a final basis. The commission shall consider and act on each class II plat submitted to it on a final basis. The commission shall consider and act on each subdivision plat or development plat that requests a variance or special exception. The commission also shall consider and act on each class I plat or development plat that is referred to the commission by the director.

(b) The commission shall approve each subdivision plat that complies with the provisions of this chapter and other applicable laws and requirements.

(c) The approval of any subdivision plat that is encompassed by a general plan approved by the commission shall reflect a determination that the subdivision plat is consistent with that general plan.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-72. Commission consideration and action—Class I plat.

(a) The commission shall consider and act on each class I plat for which a variance or special exception is requested as provided in this subsection. Upon consideration of a class I plat for which a variance to or special exception from the requirements of article III of this chapter is requested, the commission shall:

(1) Approve the class I plat, with or without conditions, if the commission finds that it meets the applicable requirements of this chapter and other applicable law;

(2) Grant one or more requested variances or special exceptions in whole or in part, with or without conditions, upon satisfaction of the requirements of section 42-81 or section 42-82 of this Code, as applicable, and approve the class I plat with the variance or special exception so granted;

(3) Deny any requested variance or special exception, if the commission is unable to make the findings necessary for granting a variance or a special exception pursuant to sections 42-81 or 42-82 of this Code and approve the class I plat without the variance or special exception so denied;

(4) Defer action until the next regular meeting, but not to exceed 30 days from the filing date; or

(5) Disapprove the class I plat upon finding that it fails to comply with all the applicable requirements of this chapter or other applicable law.

(b) The commission shall consider and act on each class I plat referred to it by the director, as provided in this subsection. Upon consideration of a class I plat referred to it by the director, the commission shall:

(1) Approve the class I plat upon finding that it complies with the applicable requirements of this chapter and other applicable law;

(2) Disapprove the class I plat upon finding that it fails to comply with the applicable requirements of this chapter or other applicable law; or

(3) Defer action until the next regular meeting, but not to exceed 30 days from the filing date.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-73. Commission consideration and action—Class II plat.

The commission shall consider and act on each class II plat as provided in this section. Upon consideration of a class II plat, the commission shall:

(1) Grant final approval of the class II plat, with or without conditions, if the commission finds that it meets the requirements of this chapter and other applicable law;

(2) Grant one or more requested variances or special exceptions in whole or in part, with or without conditions, upon satisfaction of the requirements of section 42-81 or section 42-82 of this Code, as applicable, and approve the class II plat with the variance or special exception so granted;

(3) Deny any requested variance or special exception, if the commission is unable to make the findings necessary for granting a variance or a special exception pursuant to sections 42-81 or 42-82 of this Code and approve the class II plat without the variance or special exception so denied;

(4) Defer action until the next regular meeting, but not to exceed 30 days from the filing date; or

(5) Disapprove the class II plat upon finding that it fails to comply with all the applicable requirements of this chapter or other applicable law.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-74. Commission consideration and action—Class III plat.

(a) The commission shall consider and act on each preliminary class III plat and each final class III plat as provided in this section.

(b) Upon consideration of a preliminary class III plat, the commission shall:

(1) Grant approval of the preliminary class III plat, with or without conditions, upon finding that it meets all the applicable requirements of this chapter and other applicable law;

(2) Approve one or more requested variances or special exceptions, in whole or in part, with or without conditions, pursuant to section 42-81 or section 42-82 of this Code, as applicable, and approve the preliminary class III plat with the variance or special exception so granted;

(3) Deny any requested variance or special exception, if the commission is unable to make the findings necessary for granting a variance or a special exception pursuant to sections 42-81 or 42-82 of this Code and approve the preliminary class III plat without the variance or special exception so denied;

(4) Defer action until the next regular meeting, but not to exceed 30 days from the filing date; or

(5) Disapprove the preliminary class III plat upon finding that it fails to comply with all the applicable requirements of this chapter or other applicable law.

(c) Upon consideration of a final class III plat, the commission shall:

(1) Grant final approval, with or without conditions, if the final class III plat complies with all the applicable requirements of this chapter and other applicable law and with the conditions of preliminary approval;

(2) Defer final action until the next regular meeting, but not to exceed 30 days from the filing date; or

(3) Disapprove the final class III plat upon finding that it fails to comply with the applicable requirements of this chapter or other applicable law or with any conditions of approval of the preliminary plat.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-75. Commission consideration and action—Development plat.

(a) The commission shall consider and act on each development plat for which a variance or special exception is requested as provided in this

subsection. Upon consideration of a development plat for which a variance or special exception is requested, the commission shall:

(1) Approve the development plat, with or without conditions, if the commission finds that it meets the applicable requirements of this chapter and other applicable law;

(2) Grant one or more requested variances or special exceptions in whole or in part, with or without conditions, pursuant to section 42-81 or section 42-82 of this Code, as applicable, and approve the development plat with the variance or special exception so granted;

(3) Deny any requested variance or special exception, if the commission is unable to make the findings necessary for granting a variance or special exception pursuant to sections 42-81 or 42-82 of this Code and approve the development plat without the variance or special exception so denied;

(4) Defer action until the next regular meeting, but not to exceed 30 days from the date of initial commission consideration; or

(5) Disapprove the development plat if the commission finds that it fails to comply with all the requirements of this chapter or other applicable law.

(b) The commission shall consider and act on each development plat referred to the commission by the director as provided in this subsection. Upon consideration of a development plat referred to it by the director, the commission shall:

(1) Approve the development plat if the commission finds that it complies with the applicable requirements of this chapter and other applicable law;

(2) Disapprove the development plat if the commission finds that it fails to comply with the applicable requirements of this chapter or other applicable law; or

(3) Defer action until the next regular meeting, but not to exceed 30 days from the initial commission consideration.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-76. Commission consideration and action—General plan.

The commission shall consider and act on applications for a general plan as provided in this section. Approval of a general plan by the commission shall be limited to the location and alignment of major thoroughfares, collector streets and any local streets shown on the general plan. Upon consideration of a general plan the commission shall:

(1) Approve the general plan if the commission finds that the general plan complies with the applicable requirements of this chapter with respect to the location of major thoroughfares, collector streets and any local streets shown on the general plan;

(2) Grant one or more requested variances or special exceptions in whole or in part, with or without conditions, pursuant to section 42-81 or section 42-82 of this Code, as applicable, and approve the general plan with the variance or special exception so granted;

(3) Deny any requested variance or special exception, if the commission is unable to make the findings necessary for granting a variance or special exception pursuant to section 42-81 or section 42-82 of this Code, as applicable, and approve the general plan without the variance or special exception so denied; or

(4) Disapprove the general plan if the commission finds that the general plan does not comply with the applicable requirements of this chapter with respect to the location of major thoroughfares, collector streets and any local streets shown on the general plan.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-77. Commission consideration and action—Street dedication plat.

The commission shall consider and act on applications for street dedication plats as provided in this section. Upon consideration of a street dedication plat the commission shall:

(1) Approve the street dedication plat if the commission finds that the street dedication plat is consistent with a previously approved general plan encompassing each street to be dedicated by the street dedication plat; or

(2) Disapprove the street dedication plat if the commission finds that the street dedication plat is not consistent with a previously approved general plan encompassing each street to be dedicated by the street dedication plat.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-78. Director consideration and approvals.

(a) The director shall consider applications for class I plats and development plats as provided in this section. Upon consideration of a class I plat or a development plat the director shall:

(1) Approve the class I plat or the development plat if it complies with the requirements of this chapter; or

(2) Refer the class I plat or the development plat to the commission if the director finds that it does not comply with the requirements of this chapter.

(b) If the director refers a class I plat or a development plat to the commission as provided in this section, the director shall promptly notify the applicant that the class I plat or the development plat has been referred to the commission and will be considered by the commission at the next meeting for which proper notice can be given.

(c) An applicant for a class I plat or development plat that the director refers to the commission pursuant to this section shall be entitled to amend the application for the class I plat or development plat to seek one or more variances or special exceptions. The commission shall consider and act on a class I plat or development plat amended as provided by this subsection pursuant to the standards of sections 42-72(a) or 42-75(a) of this Code, as applicable.

(d) If an applicant does not amend an application for a class I plat or development plat, the director shall refer the application to the commission for consideration at the first commission meeting for which proper notice can be given. The commission shall consider and act on a class I plat or development plat referred as provided by this subsection pursuant to the standards of sections 42-72(b) or 42-75(b) of this Code, as applicable.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-79. Reconsideration of subdivision plat approval conditions.

(a) At the request of the owner of a proposed subdivision, at any time during the period a previous commission approval of a subdivision plat remains valid, but prior to the time that the subdivision plat is filed of record, the commission may reconsider any requirement or condition of approval imposed by it. A request for reconsideration shall:

(1) Be made in writing;

(2) Be submitted to the director in conformance with the provisions of section 42-53 of this Code regarding the submittal of subdivision plats;

(3) State the specific requirement or condition of approval requested to be reconsidered and the reasons for reconsideration; and

(4) Be accompanied by the applicable fee.

(b) Upon consideration of a request for reconsideration, the commission shall reaffirm its previous actions or shall approve the request for reconsideration, with or without conditions, as the commission finds the merits of the situation warrant. The director shall not calendar a request to reconsider the same requirement or condition of approval once the commission has rendered a decision upon a request for reconsidera-

tion unless the applicant presents new information that was not known by the applicant at the time of the original reconsideration.

(c) If the relief requested by the applicant requires a variance or special exception, the applicant shall submit a compete amended application for the subdivision plat that contains all of the information required by section 42-47 or 42-48 of this Code, as applicable, and the commission shall make the findings necessary for the granting of a variance or special exception, as applicable, in considering the request for reconsideration.

(d) Each request for reconsideration shall be subject to all public hearing and notification requirements that applied to the subdivision plat for which the request for reconsideration is made or that apply to the request for reconsideration. The applicant shall be responsible for providing current information pursuant to section 42-49 of this Code.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-80. Expiration of subdivision plat and development plat approval; extension of approval.

(a) Approval of a preliminary or final class III plat or a class II plat shall be valid for a period of 12 months from the date on which the commission approved the preliminary or final subdivision plat. The commission shall extend the period of validity of an unrecorded class II plat or class III plat for not more than 12 months from the original expiration date upon the written request of the owner of the land subject to the subdivision plat.

(b) Approval of a class I plat shall be valid for a period of 12 months from the date on which the director or commission, as applicable, approved the class I plat. The director shall extend the period of validity of an unrecorded class I plat approved by the director or the commission for not more than 12 months from the original expiration date upon the written request of the owner of the land subject to the class I plat.

(c) Approval of a development plat shall be valid until the completion of the project for which the development plat was approved.

(d) An applicant shall submit a request for extension of approval of a class II plat or a class III plat to the department pursuant to the subdivision plat submittal requirements of section 42-53(a) of this Code to allow the request for extension of time to be considered and acted upon before the expiration date of the subdivision plat. An applicant shall submit a request for extension of approval of a class I plat to the department not later the tenth day before the expiration date of the class 1 plat to allow the request for the extension of time to be considered and acted upon before the expiration date of the class I plat. Neither the commission nor the director shall consider any request for extension of approval after the original expiration date of a subdivision plat.

(e) When a subdivision plat approval expires, the applicant must submit a new subdivision plat and pay all applicable fees.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 15, 6-24-2015, eff. 7-24-2015)

Sec. 42-81. Variances.

(a) The commission is authorized to consider and grant variances from the requirements of this chapter by majority vote of those members present and voting, except as required by subsection (d), for any subdivision plat or development plat when the commission finds that each of the following conditions exist, except for variance requests submitted under subsection (e):

(1) Either:

a. The imposition of the terms, rules, conditions, policies and standards of this chapter would create an undue hardship by depriving the applicant of the reasonable use of the land; or

b. Strict application of the requirements of this chapter would make a project infeasible due to the existence of unusual physical characteristics that affect the property in question,

or would create an impractical development or one otherwise contrary to sound public policy;

(2) The circumstances supporting the granting of the variance are not the result of a hardship created or imposed by the applicant;

(3) The intent and general purposes of this chapter will be preserved and maintained;

(4) The granting of the variance will not be injurious to the public health, safety or welfare; and

(5) Economic hardship is not the sole justification for the variance.

In granting a variance, the commission is authorized to impose any condition on the subdivision plat or the development plat for which the variance is requested that the commission determines is reasonably related to the variance requested and that furthers the intent and purpose of this chapter. The findings of the commission, together with the specific facts upon which such findings are based, shall be incorporated into the official minutes of the commission meeting at which a variance was granted. The commission shall not consider or grant a variance from the performance standards or definitions of this chapter or from any provision of state law.

(b) Any variance granted under the provisions of this chapter shall apply only to the specific property for which the commission approved the variance, and shall not constitute a change of this chapter, or any part hereof, or establish any policy, rule or regulation contrary to the provisions of this chapter.

(c) The commission shall not grant or deny any request for a variance on which a public hearing is required by the applicable provisions of section 42-49 of this Code until after the hearing has been conducted.

(d) Approval of a variance requested for a replat pursuant to section 42-49 of this Code that is subject to the protest provisions of section 42-84 of this Code shall be by the affirmative vote of three-fourths (¾) of the commission members present, or such other number as may be established by state law.

(e) The commission shall grant a variance to an owner of a lot that is subject to a special minimum building line requirement or a special minimum lot size requirement established under the provisions of article III of this chapter upon determining that the owner has established a vested right to the building line or lot size otherwise applicable under article III of this chapter. The commission shall determine that the owner has established a vested right upon the owner's demonstration that:

(1) The owner, in good faith and in material reliance on the building line or lot size otherwise applicable under article III of this chapter, expended a substantial sum of money prior to the effective date of the establishment of the special minimum building line requirement or special minimum lot size requirement for the lot that cannot be recovered; or

(2) That the applicant, in good faith and in material reliance on building line or lot size otherwise applicable under article III of this chapter, has irreversibly changed position prior to the effective date of the establishment of a special minimum building line requirement or special minimum lot size requirement for the lot that will require the expenditure of substantial sums of money in the future.

It shall be a rebuttable presumption that the existence of a contract to purchase, or option contract on, property subject to a special minimum building line requirement or special minimum lot size requirement does not constitute the expenditure of a substantial sum of money.

(f) Each application for a general plan, subdivision plat or development plat for property all or part of which is located within the city that requests or requires a variance from the provisions of this chapter shall require notification in

compliance with section 42-83 of this Code unless one or more of the following conditions is applicable:

(1) The application is for a general plan that does not request or require a variance from section 42-135 of this Code;

(2) The only variance requested or required is from the requirements of section 42-132 of this Code;

(3) The only variance requested or required is from the provisions of section 42-131 of this Code for a cul-de-sac that intersects with a street that does not form any part of the boundary of the subdivision plat; or

(4) The only variance requested or required is from a building line requirement of division 3 of article III of this Code for property adjacent to a street that does not form any part of the boundary of the plat adjacent to platted or developed property.

(g) The variance provisions of this section shall not apply to the requirements of article IV of this chapter.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 16, 6-24-2015, eff. 7-24-2015; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020; Ord. No. 2022-391, §§ 8, 9, 5-18-2022)

Sec. 42-82. Special exceptions.

(a) The commission is authorized to consider and grant special exceptions to the provisions of article III of this chapter other than those specified in subsection (e), by majority vote of those members present and voting, except as required by subsection (d), when the commission finds that each of the following conditions exist:

(1) Special circumstances exist that are unique to the land or the proposed subdivision or development and that are not generally applicable to all other land, subdivisions or developments in the city or its extraterritorial jurisdiction that justify modification of the standards that otherwise would apply;

(2) The proposed special exception will achieve a result contemplated by the standards in article III of this chapter;

(3) The modification of the standard requested is not disproportionate to the requirement of the standard, provided however that the commission shall not be authorized to grant a special exception if the modification of the standard is 33 percent or greater. A modification of a measurable standard by 10 percent or less shall be presumed to be not disproportionate;

(4) The intent and general purposes of this chapter will be preserved and maintained; and

(5) The granting of the special exception will not be injurious to the public health, safety or welfare.

If a provision of article III of this chapter requires more specific findings with respect to the consideration and granting of a special exception, the more specific findings shall control. In granting a special exception, the commission is authorized to impose any condition on the subdivision plat or the development plat for which the special exception is requested that the commission determines is reasonably related to the special exception requested and that furthers the intent and purpose of this chapter. The findings of the commission, together with the specific facts upon which such findings are based, shall be incorporated into the official minutes of the commission meeting at which a special exception was granted.

(b) Any special exception granted under the provisions of this chapter shall apply only to the specific property for which the commission approved the special exception and shall not constitute a change of this chapter, or any part hereof, or establish any policy, rule or regulation contrary to the provisions of this chapter.

(c) The commission shall not grant or deny any request for a special exception on which a public hearing is required under section 42-49 of this Code until after the hearing has been conducted.

(d) Approval of a special exception requested for a replat that is subject to the protest provisions of section 42-84 of this Code shall be by the affirmative vote of three-fourths (¾) of the commission members present, or such other number as may be established by state law.

(e) The commission shall not grant a special exception to any of the following:

(1) Lot size requirements;

(2) Compensating open space requirements;

(3) Building line requirements; or

(4) Performance standards of this chapter.

(f) Each application for a general plan, subdivision plat or development plat for property all or part of which is located within the city that requests or requires a special exception from the provisions of this chapter shall require notification in compliance with section 42-83 of this Code unless one or more of the following conditions is applicable:

(1) The only special exception requested or required is from the requirements of section 42-132 of this Code; or

(2) The only special exception requested or required is from the provisions of section 42-131 of this Code for a cul-de-sac that intersects with a street that does not form any part of the boundary of the subdivision plat.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2022-391, § 10, 5-18-2022)

Sec. 42-83. Notification of applications.

(a) The director shall give the notice required by subsections 42-49(e), 42-81(f) and 42-82(f) of this Code by:

(1) Either:

a. Mailing a letter to the owners of all lots or tracts that are within 300 feet of the boundary of the general plan, subdivision plat or development plat a minimum of 20 days before the date of the public hearing or the first meeting at which the commission will first consider the application; or

b. By causing the information to be readily available to the public in an electronic format; and

(2) By letter mailed first class mail, postage paid, or by electronic mail message to the following as soon as reasonably possible before the first meeting at which the commission will consider the application:

a. Each neighborhood association with defined boundaries registered with the department in whose area the general plan, subdivision plat, replat or development plat is located;

b. The office of the council member in whose district the general plan, subdivision plat, replat or development plat is located;

c. All at-large councilmember offices;

d. The Super-Neighborhood Alliance;

e. All management districts and tax increment reinvestment zones in which the general plan, subdivision plat, replat or development is located; and

f. The super-neighborhood in which the general plan, subdivision plat, replat, or development plat is located.

(b) The applicant shall give the notice required by subsections 42-49(d), 42-81(f) and 42-82(f) of this Code by posting at least one sign on the property that is the subject of the general plan, subdivision plat, replat or development plat a minimum of 20 days before the date of the meeting at which the commission will first consider the application. A sign shall face each public street or private roadway bordering the site, provided, however, that if more than four signs would be required to be posted, the applicant may request the director to approve an alternative number and location of signs. The director may approve an alternative to the number and location of signs required by this subsection in excess of four upon determining that the alternative will provide maximum visibility and obtain

the objectives of this section without unduly burdening the applicant. Each sign shall be a minimum of four by eight feet in size and shall be posted no more than 15 feet from the public street or private roadway. The lettering on the sign shall be legible from the public street or private roadway. The applicant shall use reasonable efforts to maintain each required sign on the site until the close of the meeting at which the commission acts on the application.

(c) Required signs shall provide the following information:

(1) The application address or name and number of the general plan, subdivision plat, replat, or previous plat when applicable and a summary of the variance or special exception being requested, if any;

(2) The date, time, and place of the meeting at which the commission will next consider the application, updated to reflect any changes in the date, time, and place of the meeting, including if the applicant's plat is deferred by the commission, or if the public hearing is postponed for any reason. If the application is deferred or the hearing date is otherwise postponed, the applicant shall amend all signs to reflect the correct date and information for the new hearing date, and shall provide proof of such change to staff;

(3) The proposed land uses of the property, if known;

(4) A telephone number of the applicant to call for additional information; and

(5) A department telephone number to call for additional information.

(d) The applicant shall remove the signs within 60 days after the application being acted upon by the commission, withdrawn by the applicant, or otherwise deemed inactive by the director.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2022-391, § 11, 5-18-2022)

Sec. 42-84. Replats requiring notification with a variance/special exception—Protest procedure, required vote.

(a) If the proposed replat pursuant to section 42-49 of this Code requires a variance or special exception and is protested in accordance with this subsection, the proposed replat must receive, in order to be approved, the affirmative vote of at least three-fourths (¾) of the members present at the commission meeting.

(b) To constitute a legal protest, written instruments signed by the owners of at least 20 percent of the area of the lots or land immediately adjoining the area covered by the proposed replat and extending 200 feet from that area, but within the original subdivision plat limited by the deed or plat restrictions to single family residential use, must be filed with the commission prior to the close of the public hearing.

(c) In computing the percentage of land area under subsection (b), the area of streets and alleys shall be included.

(d) Compliance with this section is not required for approval of a replat or part of a preceding plat if the area to be replatted was designated or reserved for other than single family residential use by notation on the last legally recorded plat or in the legally recorded restrictions applicable to the plat.
(Ord. No. 2022-391, § 12, 5-18-2022)

Secs. 42-85—42-99. Reserved.

ARTICLE III. PLANNING STANDARDS

DIVISION 1. GENERAL

Sec. 42-100. Applicability.

The standards established in this article shall apply to all subdivision plats and development plats required by this chapter. Notwithstanding the foregoing, land use regulations adopted by a tax increment reinvestment zone created by the city pursuant to chapter 311 of the Texas Tax Code, and to which the city has delegated the

authority to adopt land use regulations, shall govern all property in the tax increment reinvestment zone to the extent of a conflict with these requirements.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-101. Conflict with off-street parking requirements.

In the event of a conflict between the provisions of this chapter relating to off-street parking and the provisions of article VIII of chapter 26 this Code, the definitions or regulations of article VIII of chapter 26 of this Code shall apply, provided, however, that requirements to provide off-street parking in this chapter that are not mentioned in article VIII of chapter 26 of this Code shall be considered additional requirements to provide off-street parking. Requirements to provide off-street parking contained in this chapter shall not apply in the central business district as that term is defined in article VIII of chapter 26 of this Code.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Secs. 42-103—42-119. Reserved.

DIVISION 2. STREETS AND SHARED DRIVEWAYS

Subdivision A. Streets

Sec. 42-120. General layout and arrangement of street systems.

(a) The street system proposed within any subdivision plat or general plan shall comply with the design standards of this section and shall provide:

(1) A sufficient number of continuous streets to accommodate the traffic generated by the development of the subdivision;

(2) A system serving properties to be developed for residential purposes that discourages through traffic while maintaining adequate access and traffic movement for convenient circulation within the subdivision and access for fire, police and other emergency services;

(3) Adequate vehicular access to all properties within the subdivision plat boundaries;

(4) Connections to adjacent properties to ensure adequate traffic circulation within the general area; and

(5) The dedication of rights-of-way, including the rights-of-way for major thoroughfares in accordance with the major thoroughfare plan.

(b) One or more alleys may be included within a subdivision plat provided that:

(1) Each alley will be drained in accordance with the design manual; and

(2) The alley shall not provide access to any property outside the subdivision plat boundaries unless the alley was part of an earlier subdivision plat.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-121. Dedication of rights-of-way.

(a) The applicant shall dedicate to the public the right-of-way for any street or alley designated in a subdivision plat as a public right-of-way in accordance with the requirements of this chapter and applicable state law.

(b) When an existing public street with a right-of-way width that does not meet the requirements of section 42-122 of this Code is adjacent to and forms a boundary of a subdivision plat or development plat, the owner of the property within the proposed subdivision or development shall dedicate sufficient additional right-of-way within the proposed subdivision or development adjacent to the existing

right-of-way to provide one-half of the total right-of way width necessary to meet the requirements of section 42-122 of this Code. In the case of a subdivision plat, the dedication shall be made by plat. In the case of a development plat, the dedication shall be made by separate instrument. The commission shall waive the requirement to dedicate right-of-way upon finding that the applicant has made a satisfactory showing that the proposed subdivision or development will not contribute to a significant increase in traffic on the street.

(c) When the commission finds that it is necessary for the proper subdivision of land and it is in the public interest to locate a new public street right-of-way centered on a property line, the commission shall approve the dedication of one-half of the land needed for the right-of-way. Any subdivision plat that provides for a partial street dedication pursuant to this subsection shall include a one-foot reserve along the proposed centerline with appropriate notations restricting access from any right-of-way so dedicated to adjacent property until the required additional adjacent right-of-way is dedicated.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-122. Right-of-way widths.

The minimum right-of-way required for each of the following types of streets or public alleys shall be as follows, subject only to the street width exception areas established pursuant to section 42-123 of this Code:

Major thoroughfares	(1) The lesser of 100 feet or the right-of-way specified by the street hierarchy classification established by the major thoroughfare and freeway plan; or
	(2) 100 feet for streets designated on the major thoroughfare and freeway plan for which a street hierarchy classification is not established
Collector streets designated on the major thoroughfare and freeway plan	The right-of-way width established by the major thoroughfare and freeway plan
Other collector streets	(1) 60 feet; or
	(2) 50 feet if all properties on both sides of the collector street consist of single-family residential lots, that do not have driveway access to the collector street.
Local streets	(1) 50 feet if adjacent to exclusively single-family residential lots, MUR's and other uses that are allowed on a 50 feet right-of-way in accordance with section 42-190; or
	(2) 60 feet if adjacent to any other development
Transit-oriented development street not designated as a major thoroughfare or collector street on the MTFP	60 feet
Walkable places street	The right-of-way width established by the walkable places plan
	The right-of-way width otherwise required by this division for street segments designated on the walkable places plan for which a substitute right-of-way width is not established
Public alleys	20 feet

Type 1 permanent access easement	The width required if the permanent access easement were a public street
Type 2 permanent access easement	28 feet
The right-of-way width of a type 2 permanent access easement is coterminous with the pavement width and the terms are used interchanged. The width shall be measured from edge to edge across the surface of the pavement	

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-123. Street width exception areas.

(a) Except as provided in this section, subdivision plats and development plats for subdivisions and developments within a street width exception area shall not be required to dedicate additional right-of-way for an existing public local street that does not meet the standards of the preceding section.

(b) The following are street width exception areas for which additional widening is not required unless the existing right-of-way is less than 50 feet:

(1) The central business district;

(2) The area beginning at the intersection of I.H. 610 (North Loop West) and Yale Street, then south along Yale Street to its intersection with W. 20th Street; thence east along W. 20th Street to its intersection with Oxford Street, thence south along Oxford Street to its intersection with West I.H. 10 Frwy.; thence west along West I.H. 10 Frwy. to its intersection with N. Shepherd Drive; thence north along N. Shepherd Drive to its intersection with the MKT R.R.; thence northwest along the MKT R.R. to its intersection with Washington Avenue; then southeast along Washington Avenue to its intersection with a line projected and extended from E. Memorial Loop Drive; thence westerly, southwesterly and easterly following the curve of E. Memorial Loop Drive to its intersection with Crestwood Street; thence south along Crestwood Street to its intersection with Memorial Drive; thence east along Memorial Drive to its intersection with Westcott Street; thence south along Westcott Street to its intersection with Buffalo Bayou; thence east along Buffalo Bayou to its intersection with Shepherd Drive; thence south along Shepherd Drive to its intersection with San Felipe Street; thence west along San Felipe Street to its intersection with Kirby Drive; thence south along Kirby Drive to its intersection with W. Holcombe Boulevard; thence east along W. Holcombe Boulevard to its intersection with Main Street; thence south along Main Street to its intersection with Hermann Drive; thence east along Hermann Drive to its intersection with Almeda Road; thence south along Almeda Road to its intersection with N. MacGregor Parkway; thence east along N. MacGregor Parkway to its intersection with the H.B. & T.R.R.; thence northeast along the H.B. & T.R.R. to its intersection with Elgin Street; thence east along Elgin Street to its intersection with Dietz Street; thence north along Dietz Street and in a line projected to its intersection with I.H. 45 Frwy.; thence northwest along I.H. 45 Frwy. to its intersection with West I.H. 610 (North Loop West); thence west along West I.H. 610 to the point of beginning; with the exception of the portions of the following streets within this area:

a. Bayland from Studewood to Houston Avenue;

b. Birdsall Street from Maxie to Memorial Drive;

c. Cleburne from San Jacinto to Jackson;

d. W. Clay Street from McDuffie to Taft;
e. Enid Street from IH 610 (North Loop West) to North Main;
f. Fairview Street from Shepherd to Tuam;
g. Feagan Street from Westcott to Waugh;
h. E. 14th Street from Oxford to North Main;
i. Garrot Street from Hawthorne to Milam;
j. Gibbs from W. 23rd Street to Link;
k. Hawthorne from Woodhead to Spur 527;
l. Hazard Street from Peden to Rice;
m. Link Street from Airline to IH 45;
n. Mandell from Fairview to Sunset;
o. McGowen from W. Gray to Scott;
p. Michaux Street from E. 23rd Street to Usener;
q. Patterson Street from IH 10 to Washington;
r. Sampson Street from Leeland to Holman;
s. Stanford Street from Allen Parkway to US 59 South;
t. Taft Street from Allen Parkway to Hawthorne;
u. Tuam Street from Fairview to Sauer;
v. E. 23th Street from Rutland to Gibbes;
w. Usener from Studemont to Sawyer;
x. Watson Street from Pecore to Usener;
y. Woodhead from W. Clay to Bissonet; and
z. The area described in subsection (c) of this section.

(c) The area bounded by western right-of-way line of Heiner Street on the east, the northern right-of-way line of West Gray Street on the south, the western right-of-way line of Genesee Street on the west, and the southern right-of-way line of West Dallas Street on the north, including the right-of-way of Genesee Street, but excluding the right-of-way of Heiner, West Gray and West Dallas Streets, is a street width exception area for which dedication of right-of-way in excess of that described in City Ordinance No. 1999-1344 is not required

(d) The commission is authorized to designate additional areas as street width exception areas as provided in this subsection. An area that has block lengths that are generally 600 feet or less measured centerline to centerline and paved public streets with rights-of-way of not less than 50 feet wide with equivalent levels of vehicular traffic, as determined after a study by the Director of Houston Public Works, is eligible for designation as a street width exception area. The commission, after a public hearing on the study of the Director of Houston Public Works, shall designate an eligible area as a street width exception area upon finding that the area has an adequate system of streets in place, the number and spacing of which is sufficient to forego requirements of a right-of-way width of greater than 50 feet. In designating a street width exception area, the commission shall exclude any street within the area that it determines does not have an adequate right-of-way.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2018-11, § 49, 1-10-2018; Ord. No. 2022-391, § 13, 5-18-2022)

Sec. 42-124. Right-of-way transition.

Where a transition from one right-of-way width for any type of street to a different right-of-way width is proposed, the transition shall conform to the geometric design guidelines of the design manual or to other geometric design guidelines that are approved by the Director of Houston Public Works if in his professional opinion the proposed transition is warranted by the circumstances and achieves the intent and purpose of this section.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 42-125. Location and alignment of major thoroughfares.

(a) The location and alignment of a major thoroughfare shall conform to the major thoroughfare and freeway plan. The commission shall not approve a change in the location or alignment of any major thoroughfare unless the city council first adopts a major thoroughfare and freeway plan incorporating the change. For purposes of this section, an alignment shown on a subdivision plat that occurs completely within the boundaries of the proposed subdivision, that does not change any intersecting points and that does not affect properties outside the proposed subdivision that were shown as adjacent to the major thoroughfare on the major thoroughfare and freeway plan shall not be considered a "change in the location or alignment of a major thoroughfare." Any other proposed location or alignment shall be a "change in the location or alignment of a major thoroughfare."

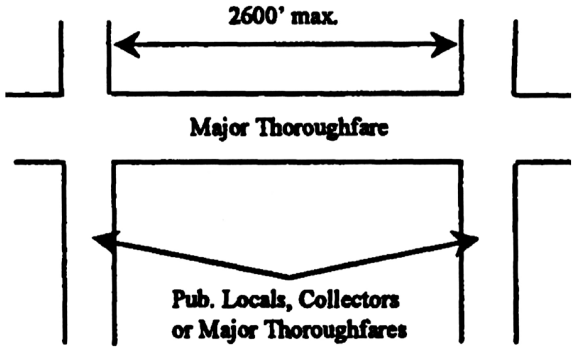
(b) The location and alignment of a collector street designated on the major thoroughfare and freeway plan shall conform to the major thoroughfare and freeway plan. The commission shall not approve a change in the location or alignment of any collector street designated on the major thoroughfare and freeway plan unless the city council first adopts a major thoroughfare and freeway plan incorporating the change.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-126. Intersections.

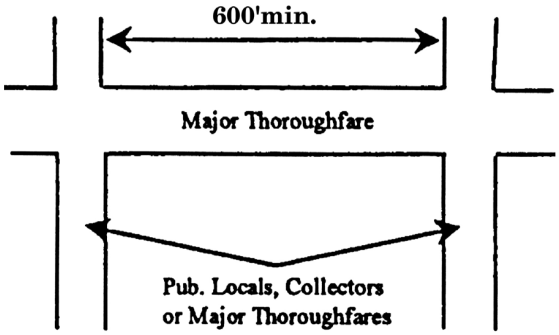
The design of each intersection shall conform to the geometric design guidelines of the design manual and the standards of this article. All intersection distances shall be measured along the centerline from blockface to blockface.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-127. Intersections of major thoroughfares.

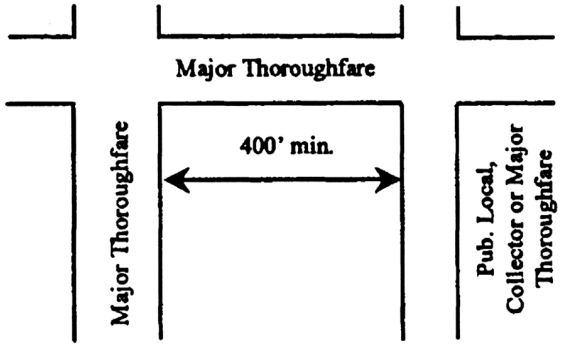
(a) A major thoroughfare shall intersect with a public local street, a collector street or another major thoroughfare at least every 2,600 feet.



(b) Intersections along a major thoroughfare shall be spaced a minimum of 600 feet apart.



(c) An intersection with a major thoroughfare shall not be within 400 feet of the intersection of two major thoroughfares.



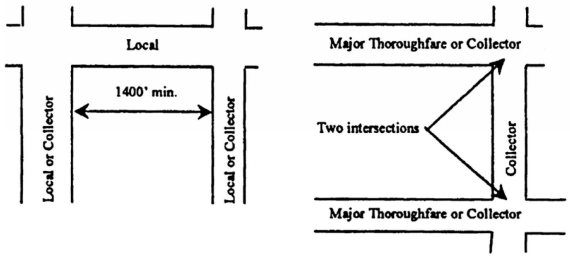
(Ord. No. 2013-343, § 3(Exhs. A, B), 4-24-2013)

Sec. 42-128. Intersections of local streets.

(a) Each class III plat and each general plan that shows local streets shall provide for internal circulation by meeting either of the following requirements:

(1) Each local street shall intersect with a street that meets the requirements of subsection (b) at least every 1,400 feet; or

(2) One or more collector streets within the class III plat or general plan shall connect with another collector street or major thoroughfare at a minimum of two points.



(b) A street that intersects with a local street will satisfy the intersection length requirement of item (a)(1) of this section if the street:

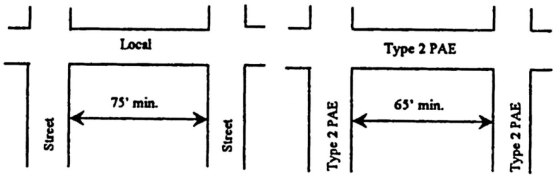
(1) Is a public street that intersects with two different public streets; and

(2) Is not a permanent access easement.

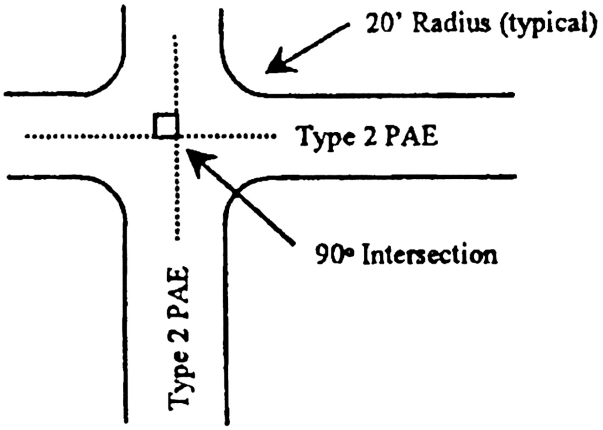
(c) Intersections along local streets shall be spaced a minimum of 75 feet apart.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-129. Intersections of type 2 permanent access easements.

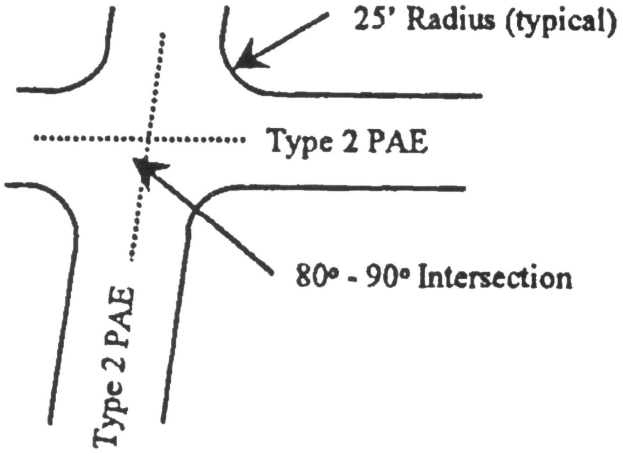
(a) Intersections along type 2 permanent access easements shall be spaced a minimum of 65 feet apart and shall not intersect at less than an 80 degree angle.



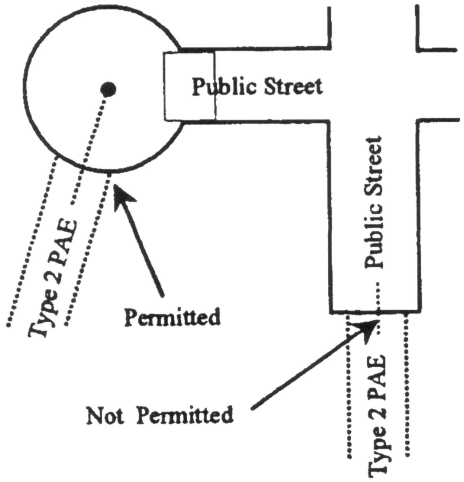
(b) When a type 2 permanent access easement intersects with another type 2 permanent access easement at a 90-degree angle, the type 2 permanent access easement shall provide a 20-foot radius at the intersection.



(c) When a type 2 permanent access easement intersects with another type 2 permanent access easement at an angle of between 80 and 90 degrees each acute angle shall have a 25-foot radius at the intersection.



(d) A type 2 permanent access easement may not be a direct straight-line extension of a public street.



(Ord. No. 2013-343, § 3(Exhs. A, B), 4-24-2013; Ord. No. 2015-639, § 17, 6-24-2015, eff. 7-24-2015)

Sec. 42-130. Intersection exceptions.

(a) Nothing in the intersection standards established by sections 42-127 through 42-129 of this Code shall require:

(1) The crossing of a single existing pipeline by a street more than every 2,000 feet;

(2) The crossing of multiple existing pipelines by a street more than once every ½ mile;

(3) The crossing of an existing railroad track (other than an industrial lead) or an existing major creek or bayou in a drainage easement having a width of 300 feet or more by any street other than a major thoroughfare;

(4) The crossing of a drainage channel required by a governmental entity with flood control jurisdiction to be located in a recorded drainage easement having a required width of 220 feet or more by a street more than every ½ mile;

(5) The crossing of an drainage channel required by a governmental entity with flood control jurisdiction to be located in a recorded drainage easement having a required width of less than 220 feet and more than 100 feet by a street more than every 2,000 feet;

(6) The crossing of a stormwater detention facility required by a governmental entity with flood control jurisdiction by a street more than once every 2,000 feet;

(7) The crossing by any street other than a major thoroughfare of any portion of Addicks Reservoir, Barker Reservoir, Sheldon Reservoir, the Houston Ship Channel or Lake Houston that is wider than 100 feet; or

(8) The crossing of any portion of a golf course by a local street more than once every 2,800 feet, provided that the golf course provides 60 feet of frontage at the location where each street intersection would otherwise occur.

(b) Nothing in the intersection requirements established by sections 42-127 through 42-129 of this Code shall require the creation of a street that stubs into:

(1) Publicly owned airport property;

(2) Property owned or leased by the United States for use by the National Aeronautics and Space Administration for the Johnson Space Center;

(3) Any grade-separated freeway that does not have a frontage road;

(4) Property owned in fee by an electric utility and used or intended for use for electric transmission facilities; or

(5) Any portion of Addicks Resevoir, Barker Resevoir, Sheldon Resevoir, the Houston Ship Channel or Lake Houston that is wider than 100 feet.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-131. Culs-de-sac.

(a) A cul-de-sac shall not serve a single-family residential development that will generate more than 350 vehicle trips a day at the intersection of the cul-de-sac with a through street. A cul-de-sac that exclusively serves a single-family residential development and that has a length of not more than 350 feet from the centerline of its intersection with the nearest street shall have a paving width of at least 24 feet and shall not be used to

serve single-family residential development that will generate more than 350 vehicle trips a day at the intersection of the cul-de-sac with a through street. For purposes of the foregoing requirements, each dwelling unit type shall be deemed to generate the following trips per day:

Detached units	10 trips per unit
Attached units	8 trips per unit

(b) A cul-de-sac shall comply with the applicable terminus design as specified in the design manual.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-132. Curves.

(a) Curves for the right-of-way of a major thoroughfare shall have a centerline radius of at least 2,000 feet. Reverse curves shall be separated by a tangent distance of not less than 100 feet.

(b) Reverse curves with a tangent distance of 100 feet or less along collector streets and local streets shall have a centerline radius of at least 300 feet. Reverse curves shall be separated by a tangent distance of not less than 50 feet.

(c) Curves along a type 2 permanent access easement or a private street may have any centerline radius except that the centerline radius of a reverse curve shall not be less than 65 feet. Reverse curves shall be separated by a tangent of not less than 25 feet.

(d) At the request of an applicant, the commission shall approve a lesser curve radius upon certification by the Director of Houston Public Works that the lesser radius meets nationally accepted standards set forth in either the "Guidelines for Urban Major Streets Design" of the Institute of Transportation Engineers or "A Policy on Geometric Design of Highways and Streets" of the American Association of State Highway and Transportation Officials.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 18, 6-24-2015, eff. 7-24-2015; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 42-133. Street names.

All public streets, permanent access easements and private streets contained in any subdivision plat approved by the commission shall be named in conformance with the requirements of section 41-22 of this Code.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2014-364, § 14, 4-30-2014)

Sec. 42-134. Street extension.

(a) A public street that terminates at the boundary of a plat previously approved by the commission without means of a vehicular turnaround shall be extended into the adjacent property at the time the adjacent property is platted unless:

(1) The existing stub street is a local street and is not designated as a collector or major thoroughfare on the major thoroughfare and freeway plan;

(2) The existing stub street is not shown as a through street on a current general plan approved by the commission for the subdivision in which the existing street is located or the subdivision that is the subject of the application;

(3) The existing stub street is only one lot in depth;

(4) The proposed subdivision will not extend residential development; and

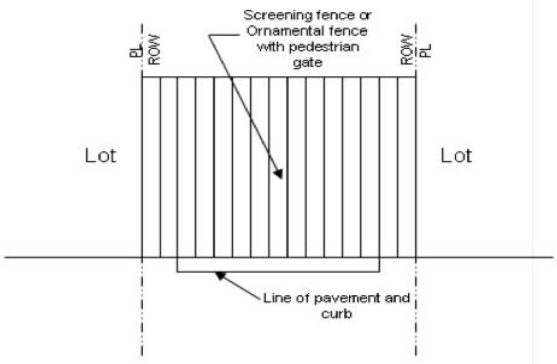
(5) The extension of the street is not required to meet the intersection spacing requirements of this chapter.

If each of these criteria is met, the stub street is not required to be extended.

(b) The owner of the property adjacent to the end of a stub street that is not extended pursuant to subsection (a) of this section shall:

(1) Construct a pedestrian gate and ornamental screening fence with a minimum height of six feet along the entire right-of-way line when the adjacent property is a public park, a detention reserve, a flood control easement or fee strip, or other platted open space that pedestrian access to and from may be appropriate; or

(2) Construct a wood, concrete or masonry opaque screening fence with a minimum height of six feet that extends the width of the right-of-way of the stub street if the adjacent property does not meet the criteria of item (1) of this subsection (b).



Elevation at End of Right-of-way

(c) Each application for a plat for property located wholly or partially within the city shall indicate whether any existing stub street will be extended into the proposed subdivision. The director shall notify each district city council member of each proposed plat within the council member's district that proposes to extend a stub street. The director shall give the notice as soon as practicable prior to commission consideration of the plat.

(Ord. No. 2013-343, § 3(Exhs. A, B), 4-24-2013; Ord. No. 2015-639, § 19, 6-24-2015, eff. 7-24-2015)

Note—Formerly § 42-135.

Secs. 42-135—42-144. Reserved

Subdivision B. Shared Driveways

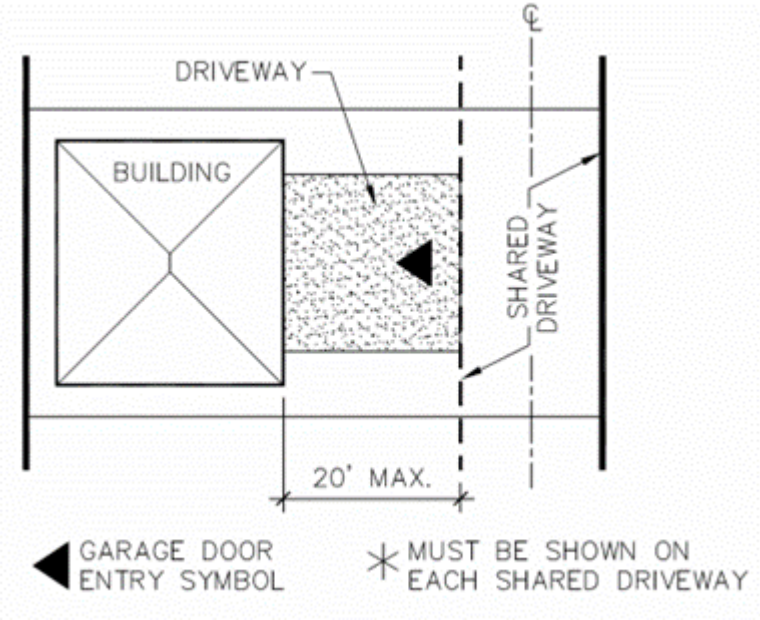
Sec. 42-145. General layout and arrangement for all shared driveways.

(a) A subdivision plat within the city may provide for a lot that takes access from a shared driveway within the same subdivision plat as the lot in accordance with the following requirements:

(1) A shared driveway shall have a minimum width of 18 feet except as provided in section 42-146 of this Code;

(2) No part of a shared driveway shall be more than 200 feet from a type 1 permanent access easement or a public street that is not an alley and that contains a roadway. The distance shall be measured along the centerline of the shared driveway starting from the intersection with the type 1 permanent access easement or the public street.

(3) A shared driveway may be any length if all lots that take access from the shared driveway have frontage in the amount of the minimum lot width required by section 42-185 of this Code on a type 1 permanent access easement or a public street that is not an alley and that contains a roadway;



(4) The length of a driveway that connects to a shared driveway shall be 20 feet or less as measured from the edge of the shared driveway. The total length of the driveway and the shared driveway, excluding a garage building line, if any, may not exceed 200 feet;

(5) Any parking space in a subdivision containing a shared driveway shall provide sufficient space for turning movements as depicted on the drawings of the space requirements for off street parking referenced in Section 3112.4.5 of the Construction Code;

(6) A shared driveway containing a reverse curve shall have a centerline radius of 65 feet or more. A reverse curve within a shared driveway shall be separated by a tangent of 25 feet or more; and

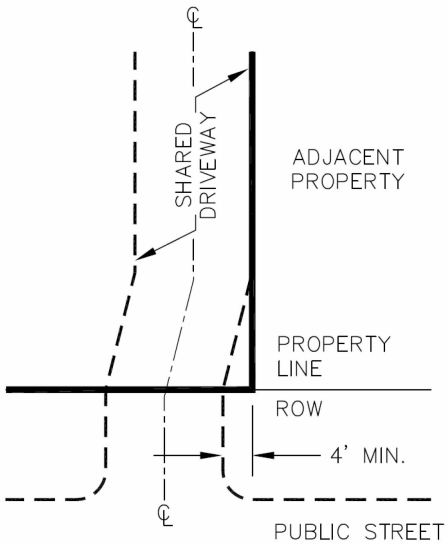
(7) A shared driveway that intersects with a major thoroughfare shall not provide gated vehicular access to the shared driveway unless the gate is set back 25 feet or more from the right-of-way of the major thoroughfare.

(b) A shared driveway shall not intersect with a type 2 permanent access easement, a private alley, or connect to, or be the extension of, a shared driveway created by an adjacent subdivision. A shared driveway shall intersect with at least one type 1 permanent access easement or public street that is not an alley in accordance with the following requirements:

(1) The shared driveway shall intersect with a public street that has a roadway;

(2) The shared driveway shall intersect with a type 1 permanent access easement or a public street at a 90-degree angle except as needed to comply with item (3) of this subsection; and

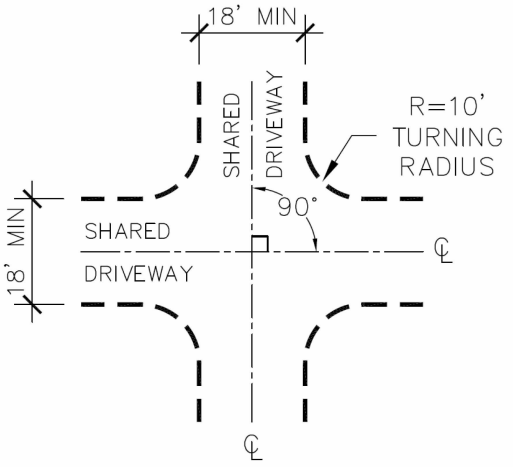
(3) The shared driveway shall be set back at least four feet from the boundary of the subdivision plat measured at the point of intersection with the public street.

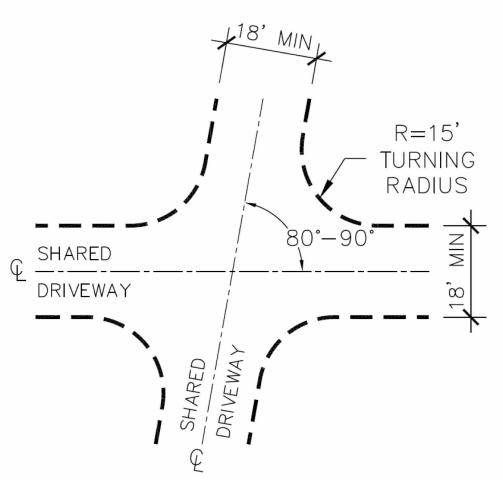


(c) Intersections within a shared driveway shall comply with the following requirements:

(1) Intersections shall be spaced a minimum of 65 feet apart measured from the closest edges of the shared driveway and shall not intersect at less than an 80-degree angle; and

(2) A shared driveway with a width of 18 feet or more shall provide for a 10-foot turning radius at every 90-degree angle in the shared driveway and shall provide for a 15-foot turning radius at every angle less than 90 degrees but equal to or greater than 80 degrees in the shared driveway.

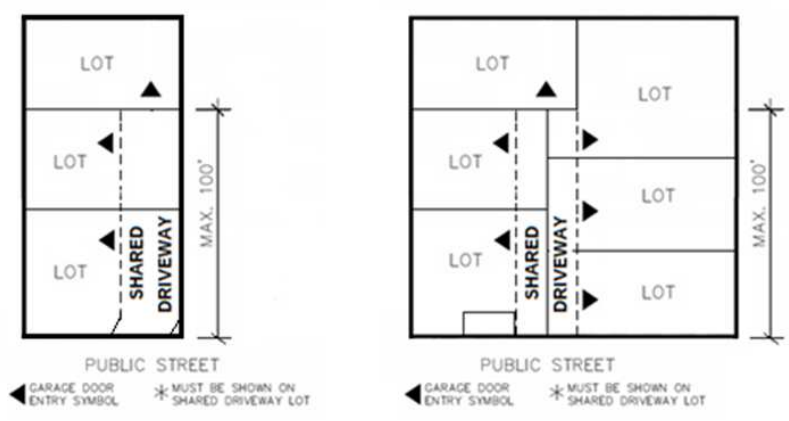




(d) A subdivision plat containing a shared driveway shall provide a three-foot wide emergency access easement along each boundary of the subdivision plat that does not abut a public street. No objects or obstructions shall be placed within the emergency access strip except that a fence may be permitted if it provides for pedestrian gate access for emergency services.

(e) Each garage entry door on each lot within a subdivision plat that takes access from a shared driveway shall be parallel to the length of the shared driveway allowing sufficient room for turnaround. The garage entry door may be perpendicular to the length of the shared driveway when the shared driveway complies with the following performance standards:

(1) No more than six lots take access from the shared driveway and no more than one lot has a garage perpendicular to the length of the shared driveway;



(2) The shared driveway does not intersect a major thoroughfare or collector street; and

(3) The shared driveway is less than or equal to 100 feet in length.

(Ord. No. 2013-343, § 3(Exhs. A, B), 4-24-2013; Ord. No. 2015-639, § 20, 6-24-2015, eff. 7-24-2015; Ord. No. 2021-1037, § 20(Exh. I.46), 12-1-2021, eff. 4-1-2022; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-146. Optional performance standards for reduction in shared driveway width.

(a) A shared driveway may have a minimum width of 12 feet if the subdivision complies with all of the following performance standards:

(1) No more than six dwelling units are proposed;

(2) The maximum depth of the proposed subdivision does not exceed 150 feet from a public street where the shared driveway will have access; and

(3) The garage must be set back an adequate distance allowing sufficient room for vehicular turn around.

(b) A shared driveway shall have a minimum width of 16 feet if it complies with one of the following performance standards:

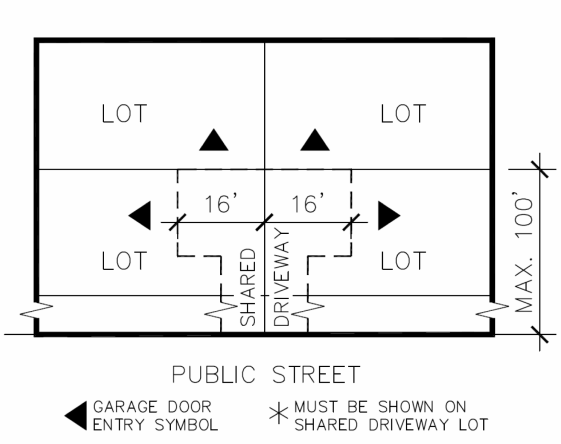
(1) The shared driveway is equal to or less than 100 feet in length and contains no turns except those turns that are part of a "T" turnaround configuration that complies with the following performance standards:

a. The "T" turnaround portion of the shared driveway has a minimum width of 16 feet;

b. The length of each branch of the "T" turnaround extends exactly 16 feet from the centerline of the shared driveway;

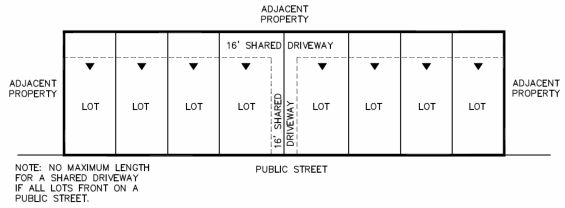
c. Not more than four lots take vehicular access from the "T" turnaround; and

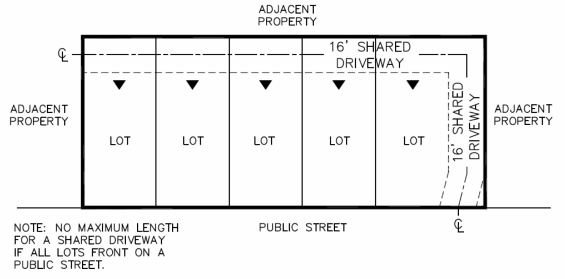
d. Each garage entry door is parallel to the shared driveway except for a garage entry door located within the "T" turnaround; or

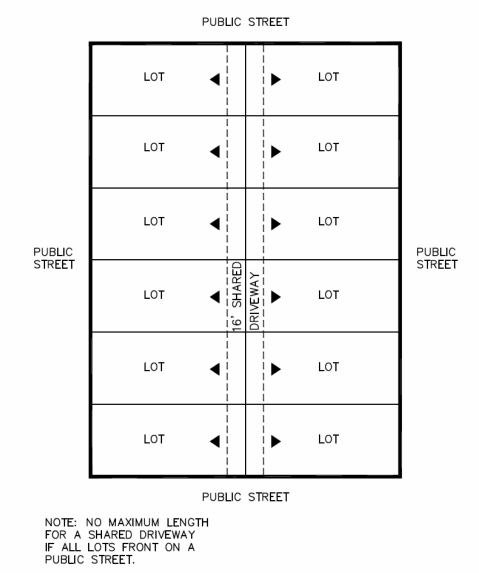


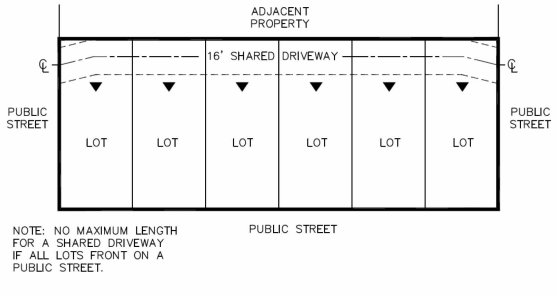
(2) The shared driveway is greater than 100 feet in length and complies with the following performance standards:

a. Each lot within the subdivision plat has frontage along a public street that is not an alley and takes vehicular access only from the shared driveway; or

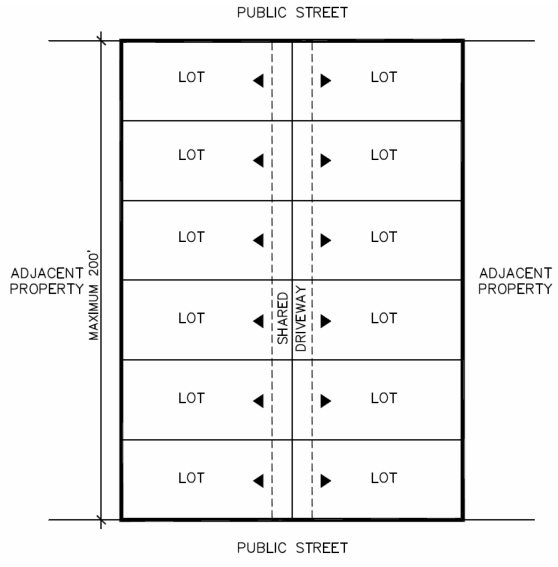








b. The shared driveway connects to two public streets and has no turns or curves.

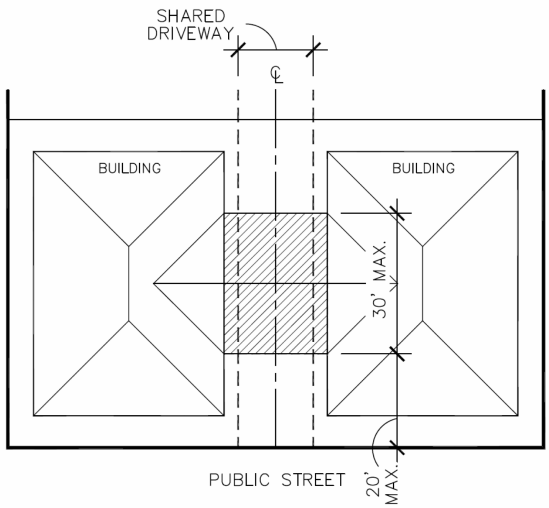


(Ord. No. 2013-343, § 3(Exhs. A, B), 4-24-2013; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

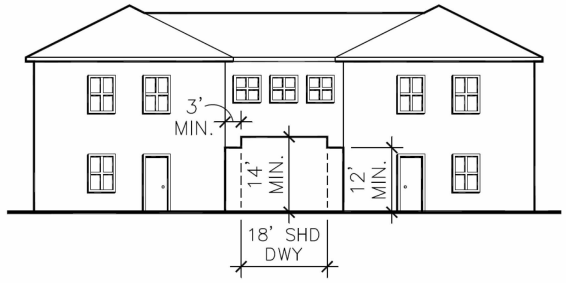
Sec. 42-147. Construction over a shared driveway.

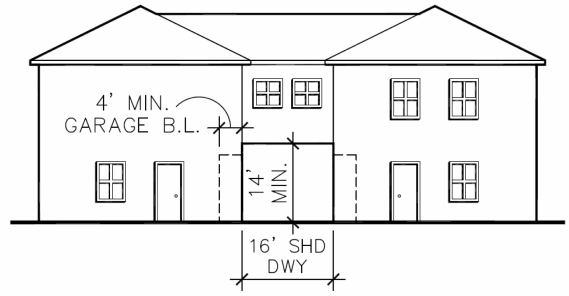
A building or a portion of a building may be constructed over a shared driveway at each intersection of a shared driveway and a public street that is not an alley. A building constructed over a shared driveway shall:

(1) Be set back not more than 20 feet from the intersection of the shared driveway and the public street and be not more than 30 feet in length as measured along the centerline of the shared driveway;



(2) Have an unobstructed overhead clearance of 14 feet or more in height above the shared driveway as measured from the highest point of the paving of the shared driveway under the building to the lowest point of the building above the shared driveway;





(3) Provide for an automatic sprinkler system in accordance with the requirements of Construction Code and the Fire Code; and

(4) Be constructed to a minimum fire resistance of one hour firewall construction standards in accordance with the Construction Code and the Fire Code.

(Ord. No. 2013-343, § 3(Exhs. A, B), 4-24-2013)

Editor's note—Section 5 of Ord. No. 2013-343, adopted April 24, 2013, established certain time limitations affecting the application of the provisions of this Subdivision. The user's attention is directed to Section 5 of Ord. No. 2013-343 to ensure that the effect of such time limitations is fully understood as they may apply to an affected subdivision or redevelopment plat.

Secs. 42-148, 42-149. Reserved.

DIVISION 3. BUILDING LINES

Subdivision A. General Requirements for Building Lines

Sec. 42-150. Building line requirement.

(a) An improvement that requires a building permit shall not be constructed within the building line requirement established by this chapter. Each subdivision plat and development plat shall show all applicable building lines and the following note:

> "Unless otherwise indicated, the building lines [b.l.], whether one or more, shown on this subdivision plat are established to evidence compliance with the applicable provisions of Chapter 42, Code of Ordinances, City of Houston, Texas, in effect at the time this plat was approved, which may be amended from time to time."

(b) The building line requirements established by this chapter are minimum standards. Where deed restrictions provide for a greater building line or setback, the deed restrictions shall control over the provisions of this chapter.

(c) A special minimum building line requirement established pursuant to subdivision B of this division shall control over all other provisions of this chapter relating to building line requirements.

(d) The following chart is a summary of certain building line requirements of this chapter and is intended for illustrative purposes only. In case of any conflict between the chart and the text of this chapter, the text shall control.

Summary of Minimum Building Line Requirements

Type of Street or Private Roadway	*Tract Description*	*Minimum Building Line Requirement*
All Public Streets	Within the central business district	No requirement
Major Thoroughfares	In general	25 feet
	Single-family residential backing on a major thoroughfare	10 feet, if the lot meets the standards of section 42-152(b)
	Not single-family residential and abutting a major thoroughfare with a planned right-of-way width of 80 feet or less	15 feet, if the reserve meets the standards of section 42-153(a)
	Retail commercial center abutting a major thoroughfare with a planned right-of-way width of 80 feet or less	5 feet, if the reserve meets the standards of section 42-154(a)
		zero feet, if the reserve meets the standards of section 42-154(b)
	Single-family residential lots with vehicular access from a flag staff, shared driveway, alley, permanent access easement or courtyard access drive abutting a major thoroughfare with a planned right-of-way width of 80 feet or less	15 feet, if the development meets the standards of section 42-153(b)
	Multi-unit residential use abutting a major thoroughfare with a planned right-of-way width of 80 feet or less.	15 feet, if the multi-unit residential use meets the standards of section 42-237 and 52-153(c)
Primary Streets	All tracts	Zero feet and subject to the standards of section 42-164
Secondary Streets	All tracts	See applicable public street classification
		Zero feet, if the lot or reserve meets the standards of section 42-164
Collector Streets	Not single-family residential and across the street from a single-family residential lot with a platted building line of 10 feet or more	Lesser of 25 feet or the greatest building line on the single-family residential lots
	Single-family residential	25 feet, if the lot meets the standards of section 42-156(a)

Type of Street or Private Roadway	*Tract Description*	*Minimum Building Line Requirement*
		10 feet, if the lot meets the standards of section 42-157(b)
		5 feet, if the lot meets the standards of section 42-157(c)
		zero feet, if the lot meets the standards of section 42-157(d)
	Single-family residential lots within a courtyard style development	5 feet, if the courtyard style development meets the standards of section 42-194
	Multi-unit residential reserves	5 feet, if the multi-unit residential use meets the standards of section 42-237
	All others	10 feet
Local streets	Not single-family residential and across the street from a single-family residential lot with a platted building line of 10 feet or more	Lesser of 25 feet or the greatest platted building line on the single-family residential
	Single-family residential	20 feet, if the lot meets the standards of section 42-156(b)
		10 feet, if the lot meets the standards of section 42-156(b) or section 42-157(b)
		5 feet, if the lot meets the standards of section 42-157(c)
		zero feet, if the lot meets the standards of section 42-157(d)
	Single-family residential lots within courtyard style development	5 feet, if the courtyard style development meets the standards of section 42-194
	Multi-unit residential reserve	5 feet, if the multi-unit residential use meets the standards of section 42-237
	All others	10 feet
Private Streets	All tracts	5 feet for habitable structures
Type 2 Permanent Access Easements	All tracts	5 feet
Shared Driveways	All tracts	3 feet, if the lot meets the standards of section 42-159(a)
		zero feet, if the lot meets the standards of section 42-159(b)

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 21, 6-24-2015, eff. 7-24-2015; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-151. Exceptions to building line requirement.

(a) A tract within the central business district shall not be subject to a building line requirement.

(b) For a building line requirement of ten feet or greater established by this article, an encroachment shall be permitted as follows:

(1) An encroachment of up to 30 inches into the building line requirement shall be permitted for eaves, bay windows, balconies, fireplace chimneys, decorative features, and habitable area if:

a. The encroachment is cantilevered into the building line requirement and is not supported by other means;

b. The lowest point of the encroachment is at least nine feet higher than the highest point of the building foundation;

c. The encroachment for habitable living area for each floor does not have an area greater than 50 percent of the total area of the building façade for that floor; and

(2) An encroachment of up to five feet into the building line requirement shall be permitted for open stairways and wheelchair ramps.

(c) For a building line requirement less than ten feet established by this article along a collector or local street, an encroachment of up to 30 inches shall be permitted for eaves, bay windows, balconies, fireplace chimneys, decorative features, and habitable living area if:

(1) The encroachment is cantilevered into the building line requirement and is not supported by other means;

(2) The lowest point of the encroachment is at least nine feet higher than the highest point of the building foundation;

(3) The encroachment for habitable living area for each floor does not have an area greater than 50 percent of the total area of the building façade for that floor; and

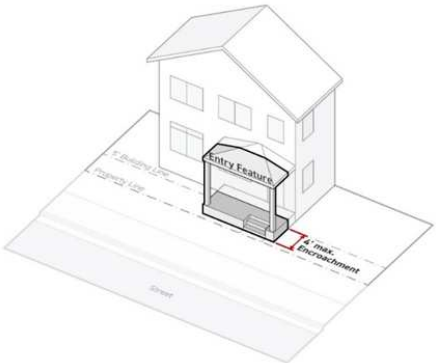
(4) The encroachment is not within ten feet of aboveground utility lines except those individual service lines used to connect the building to the utility lines, as measured horizontally from the point of the encroachment closest to the utility lines.

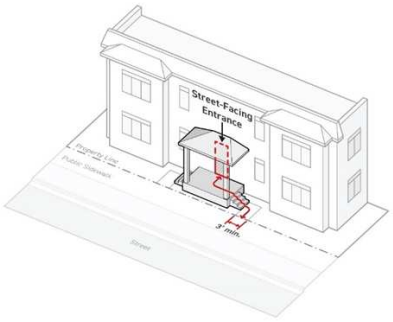
(d) For single family residential lots, lots within courtyard style development in accordance with section 42-194 or MUR tracts in accordance with section 42-237 with a building line requirement of five feet or greater established by this article, an encroachment of the entry feature in accordance with section 42-165 shall be permitted within the building line provided;

(1) The vehicular access is via alley, flag staff, shared driveway, permanent access easement, courtyard access drive or private drive.

(2) The entry feature encroaches no more than 4 feet into the building line on the first floor if there is adequate room for sidewalks and all utilities with no structures above the entry feature and;

(3) The encroachment is not within ten feet of aboveground utility lines except those individual service lines used to connect the building to the utility lines, as measured horizontally from the point of the encroachment closest to the utility lines.





(e) An encroachment of up to 30 inches into the building line requirement along a type 2 permanent access easement established by this article shall be permitted if:

(1) The encroachment is cantilevered into the building line requirement and is not supported by other means; and

(2) The lowest point of the encroachment is at least nine feet higher than the highest point of the building foundation.

(f) Encroachments into the building line requirement along a shared driveway established by this article shall be permitted if:

(1) The encroachment is cantilevered into the building line requirement and is not supported by other means; and

(2) The lowest point of the encroachment is at least 12 feet higher than the highest point of the shared driveway paving.

(g) An encroachment into the building line requirement as provided by this article shall be permitted for any building that has received a certificate of appropriateness issued pursuant to article VII, chapter 33, of this Code, relating to historic preservation, evidencing approval of the encroachment into the building line requirement.

(h) An existing building may encroach into the building line requirement established by this article if:

(1) The existing building was constructed in accordance with the building line requirement that was in effect at the time the building was constructed;

(2) Additional construction on the portion of the existing building that encroaches into the building line requirement does not expand the size, footprint, or any dimension of the encroachment;

(3) The portion of the existing building that encroaches into the building line requirement is not reconstructed in a way that replaces the structural elements of the encroachment; or

(4) A subdivision plat filed with the department after July 24, 2015, that includes a tract containing the existing building depicts the encroachment as a dual building line and contains a plat notation that requires compliance with the terms of this section.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 22, 6-24-2015, eff. 7-24-2015; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

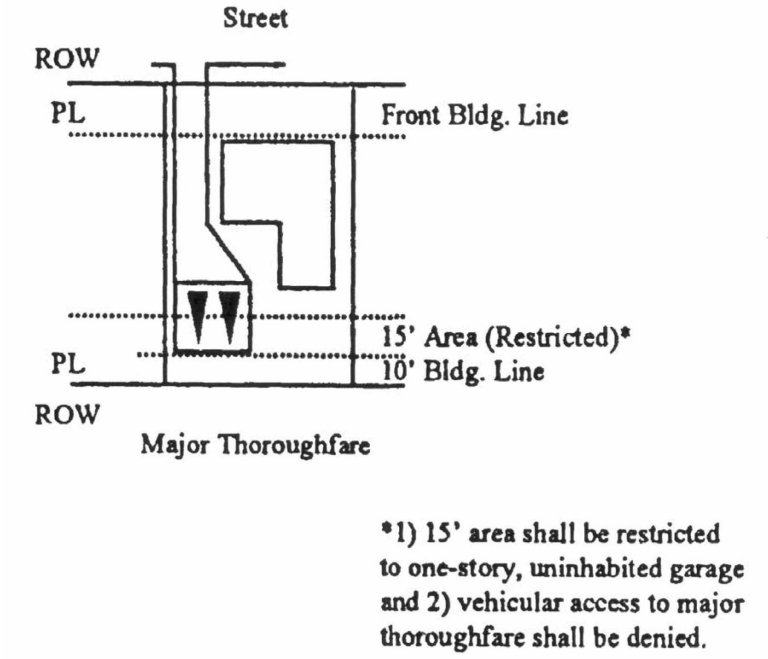
Sec. 42-152. Building line requirement along major thoroughfares.

(a) The portion of a lot or tract that is adjacent to a major thoroughfare shall have a building line requirement of 25 feet unless otherwise authorized by this chapter.

(b) A building line requirement of ten feet is authorized for that portion of a single-family residential lot that backs onto a major thoroughfare, provided that the subdivision plat contains a notation that:

(1) The area 15 feet behind the building line along the major thoroughfare is restricted to use as a one-story, uninhabited garage; and

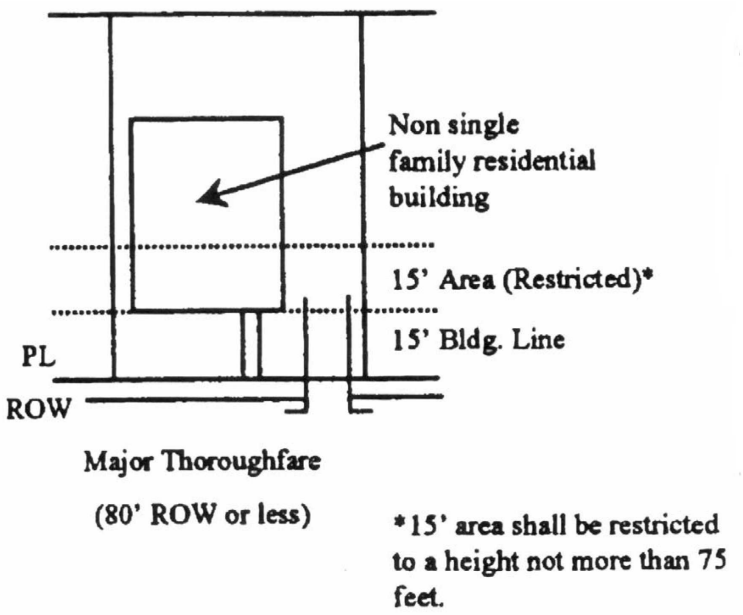
(2) Vehicular access cannot be taken from the major thoroughfare.



(Ord. No. 2013-343, § 3(Exhs. A, B), 4-24-2013)

Sec. 42-153. Optional performance standards for a major thoroughfare within the city with a planned right-of-way of 80 feet or less—in general

Except for along a walkable places street or transit-oriented development street, a building line requirement of 15 feet is authorized for a tract in the city that has frontage on a major thoroughfare with a planned right-of-way of 80 feet or less if the applicant submits a subdivision plat that includes plat notations that require compliance with the following performance standards or a development plat that demonstrates compliance with each of the following performance standards, as applicable:



(a) Uses other than single-family or multi-unit residential, adjacent to a major thoroughfare, may build to a fifteen-foot building line, provided:

(1) Any private street or private drive crossing the building line is substantially perpendicular to the adjacent major thoroughfare and the building line;

(2) The area within the building line is not used for parking, driveways, or any other auto-related uses such as access to a drive-through window;

(3) A clearly defined pedestrian walkway that is separate from any private street or private drive is established providing a connection from the public sidewalk along the major thoroughfare to an entrance to a building or the development;

(4) The sidewalk and safety buffer standards of article XXII of chapter 40 of this Code;

(5) The height of any building within 15 feet behind the building line is restricted to not more than 75 feet, as measured in accordance with the Building Code;

(6) Trees that are within 25 feet of the property line adjacent to the major thoroughfare are protected as corridor trees pursuant to article V of chapter 33 of this Code;

(7) The building line conforms to the visibility triangle required by section 42-161 of this Code at the intersection of a major thoroughfare and any other street;

(8) For any property used for nonresidential purposes, the maximum height of any fence, wall, berm, or combination thereof within the building line is 36 inches in height measured from mean grade;

(9) For multi-family residential uses, any fence, wall, berm, or combination thereof within the building line that is more than 36 inches high, but less than eight feet high, measured from mean grade is at least two feet from the property line adjacent to the major thoroughfare and the space created thereby is used and maintained for landscape plantings; and

(10) For purposes of section 33-127(b) of this Code, the number of required shrubs shall be equal to the number of required street trees multiplied by five, which required shrubs shall be distributed along the street frontage of the property in the landscape strip.

(b) A single-family residential lot that takes vehicular access via an alley, flag staff, shared driveway, permanent access easement or courtyard access drive per section 42-194 may build to a fifteen-foot building line, provided;

(1) The units along the major thoroughfare front the street with an entry feature per section 42-165;

(2) Any flag staff, shared driveway, permanent access easement or courtyard access drive crossing the building line is substantially perpendicular to the adjacent major thoroughfare and the building line;

(3) The area within the building line along the major thoroughfare is not used for parking;

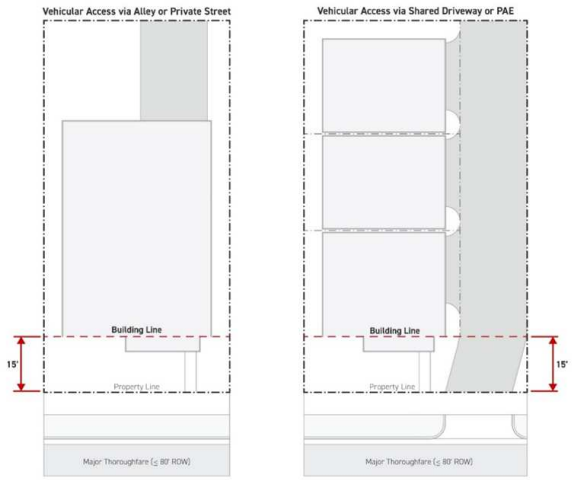
(4) A decorative non-opaque fence may be provided along the major thoroughfare;

(5) All parking is located 20 feet away from the ROW;

(6) A development shall not provide gated vehicular access to the flag staff, shared driveway or permanent access easement unless the gate is set back 25 feet or more from the right-of-way of the major thoroughfare;

(7) A clearly defined pedestrian walkway is established providing a connection from the public sidewalk along the major thoroughfare to an entrance to the development; and

(8) The sidewalk and safety buffer standards of article XXII of chapter 40 are met.



(c) Multi-unit residential tracts developed in accordance with section 42-237, and taking vehicular access from a public street, through an alley, or a private drive, may build to a fifteen-foot building line, provided:

(1) The structures along the major thoroughfare front the street with an entry feature in accordance with section 42-165

(2) Any private drive crossing the building line is substantially perpendicular to the adjacent major thoroughfare and the building line;

(3) The area within the building line along the major thoroughfare is not used for parking or any other auto-related uses;

(4) Parking is located at the rear or on the side of the property;

(5) A clearly defined pedestrian walkway is established providing a connection from the public sidewalk along the major thoroughfare to an entrance to the development;

(6) The sidewalk and safety buffer standards of article XXII of chapter 40 are met; and

(7) Trees that are within 25 feet of the property line adjacent to the major thoroughfare are protected as corridor trees pursuant to article V of chapter 33 of this Code.

(Ord. No. 2013-343, § 3(Exhs. A, B), 4-24-2013; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-154. Optional performance standards for a major thoroughfare within the city with a planned right-of-way of 80 feet or less—Retail commercial center.

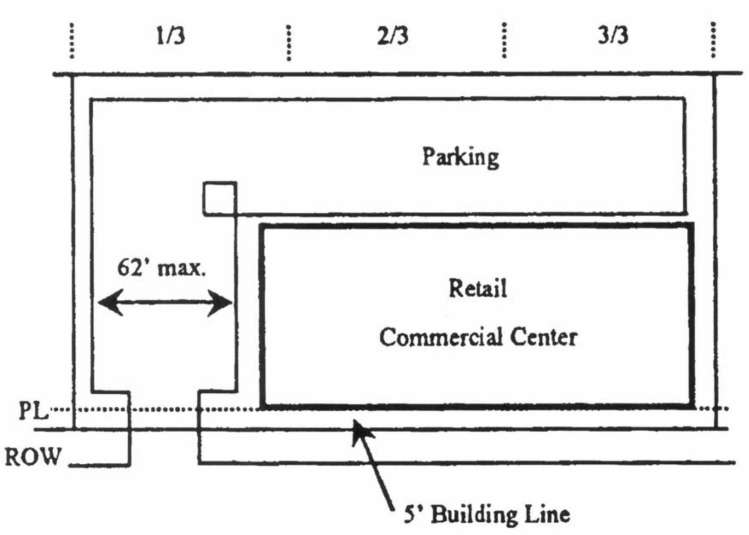
(a) Except for along a walkable places street, transit-oriented development street, or as provided in subsection (c) of this section, a building line requirement of five feet is authorized for a tract in the city used for a retail commercial center with frontage on a major thoroughfare with a planned right-of-way of 80 feet or less if an applicant submits a subdivision plat that includes plat notations that require compliance with the following performance standards or a development plat that demonstrates compliance with each of the following performance standards:

(1) The subdivision plat or development plat incorporates a five-foot area within the building line that the applicant will improve with a sidewalk or landscaping if the sidewalk is provided in the right-of-way;

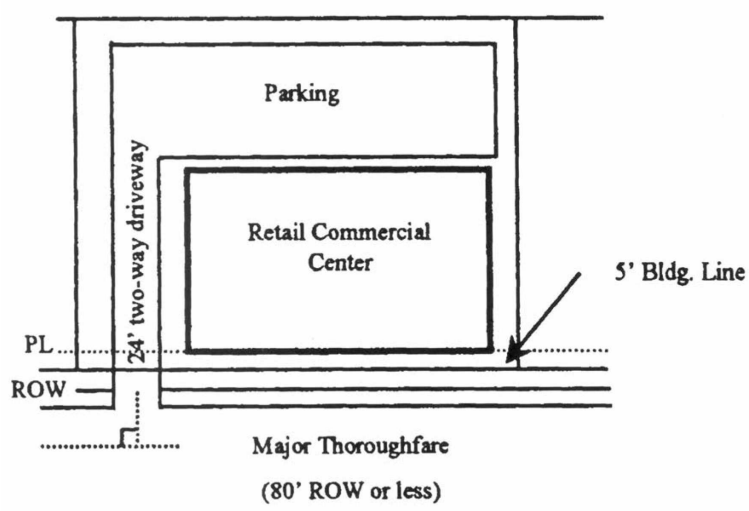
(2) All off-street parking is provided to the rear or side of any improvements on the property;

(3) If any driveway is provided from the major thoroughfare to the side of any improvements on the property, the driveway shall meet one of the following standards:

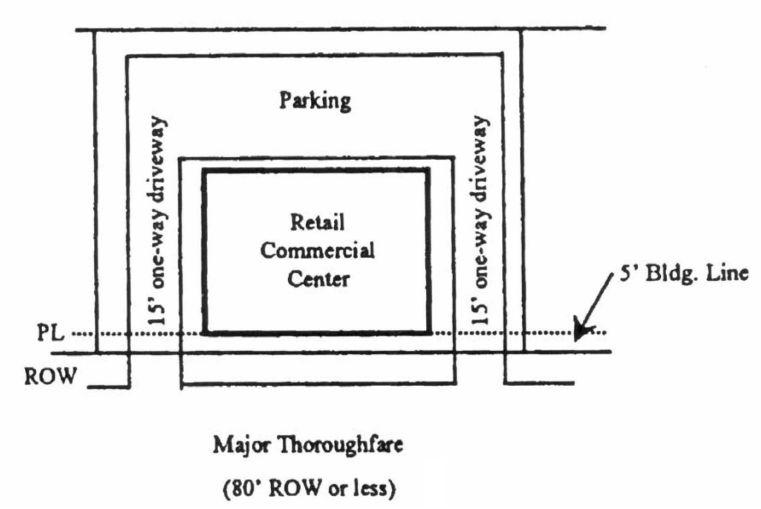
a. Not more than one driveway with two bays of parking comprising a maximum of 62 feet in width is placed to the side of any improvements, provided that the combination of parking and driveway does not exceed ⅓ of the total frontage of the retail commercial center; or



b. Not more than one two-way driveway of not more than 24 feet in width is provided from the major thoroughfare to parking at the rear of the improvements; or



c. Not more than two one-way driveways of 15 feet each is provided from the major thoroughfare to parking at the rear of the improvements;



(4) The sidewalk and safety buffer standards of article XXII of chapter 40 of this Code;

(5) The improvement that will be located along the reduced building line contains 90 percent of the gross floor area of all improvements located on the parcel;

(6) Trees that are within 25 feet of the property line adjacent to the major thoroughfare are protected as corridor trees pursuant to article V of chapter 33 of this Code; and

(7) For purposes of section 33-127(b) of this Code, the number of required shrubs shall be equal to the number of required street trees multiplied by five, which required shrubs shall be distributed along the street frontage of the property in the landscape strip.

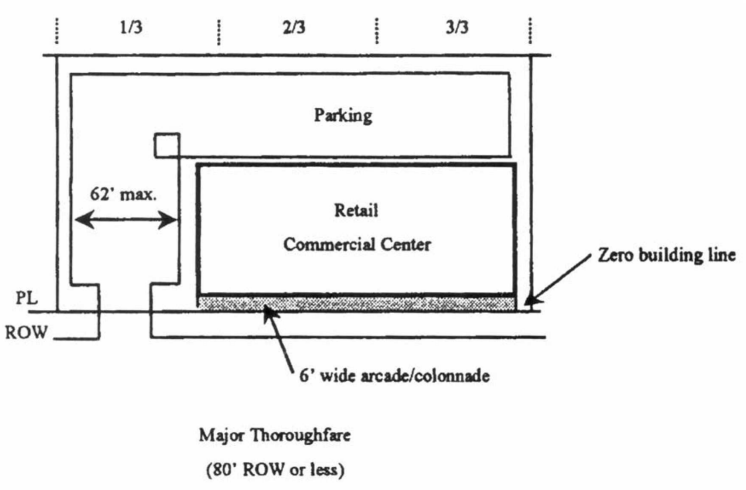
(b) Except for along a walkable places street, transit-oriented development street, or as provided in subsection (c) of this section, a building line requirement of zero feet is authorized for a tract in the city used for a retail commercial center with frontage on a major thoroughfare with a planned right-of-way of 80 feet or less if an applicant submits a subdivision plat that includes plat notations that require compliance with the following performance standards or a development plat that demonstrates compliance with each of the following performance standards:

(1) The subdivision plat or development plat provides for an arcade or colonnade at least six feet wide along the full face of the retail commercial center parallel to the major thoroughfare;

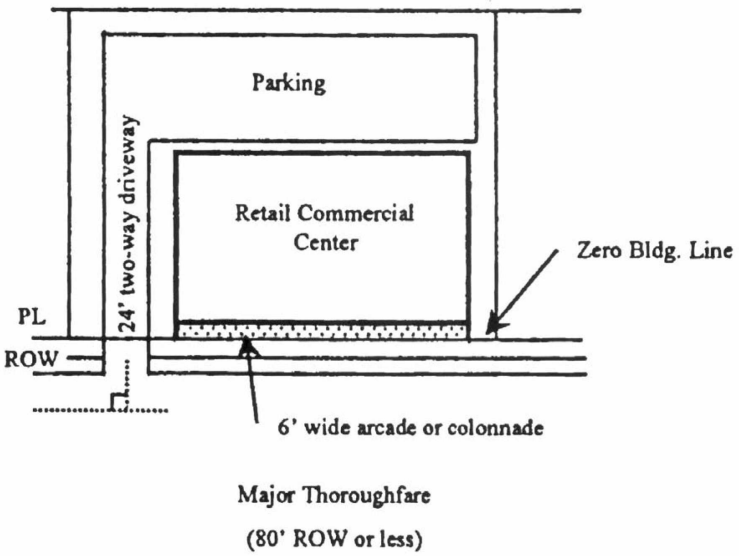
(2) All off-street parking is to the rear or side of any improvements on the property;

(3) Any driveway from the major thoroughfare to the side of any improvements on the property shall meet one of the following standards:

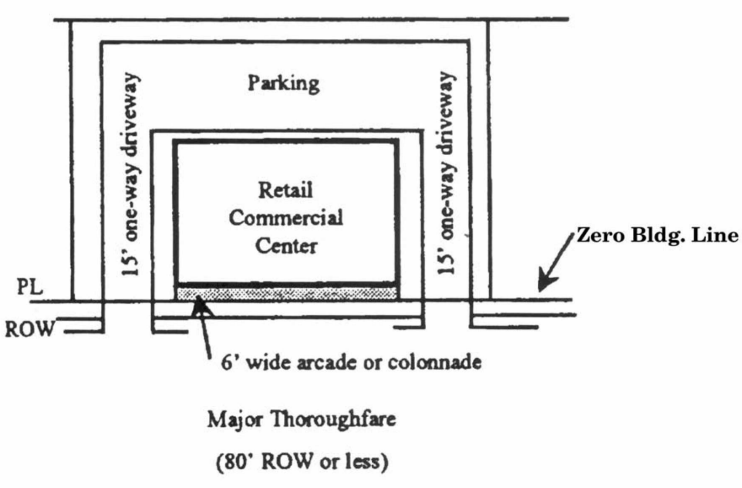
a. Not more than one driveway with two bays of parking comprising a maximum of 62 feet in width is placed to the side of any improvements, provided that the combination of parking and driveway does not exceed ⅓ of the total frontage of the retail commercial center;



b. Not more than one two-way driveway of not more than 24 feet in width is provided from the major thoroughfare to parking at the rear of the improvements; or

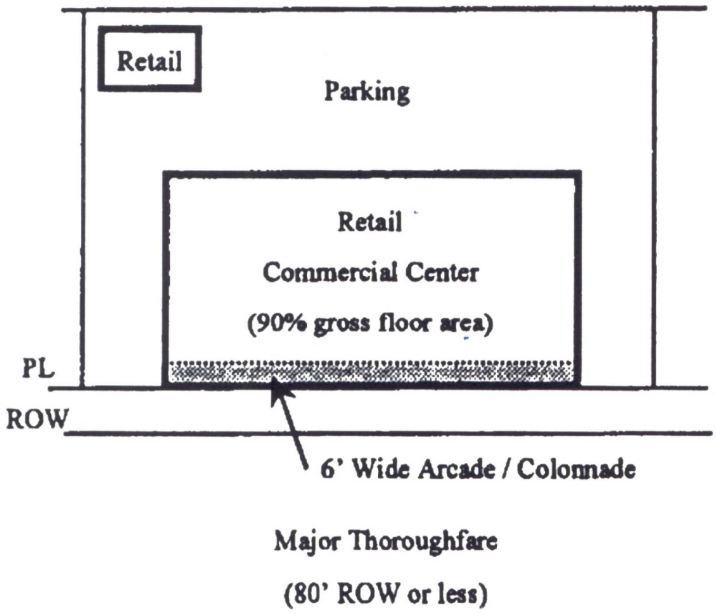


c. Not more than two one-way driveways of 15 feet each is provided from the major thoroughfare to parking at the rear of the improvements;



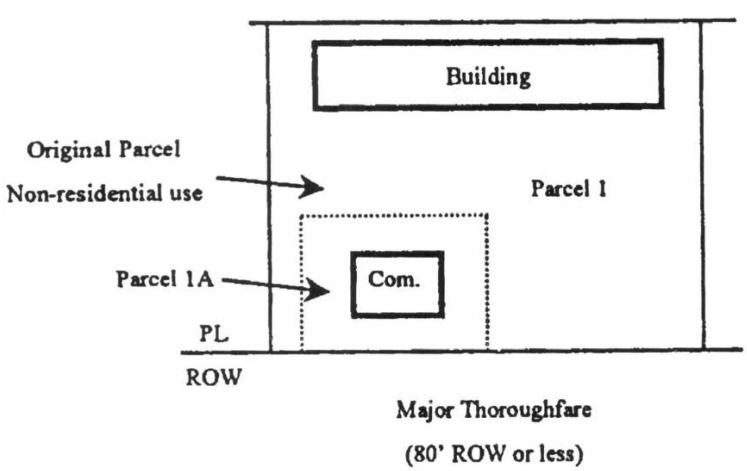
(4) The sidewalk and safety buffer standards of article XXII of chapter 40 of this Code;

(5) The improvement that will be located along the reduced building line contains 90 percent of the gross floor area of all improvements located on the parcel; and



(6) Trees that are within 25 feet of the property line adjacent to the major thoroughfare are protected as corridor trees pursuant to article V of chapter 33 of this Code.

(c) Subsections (a) and (b) of this section do not apply to any retail commercial center that is located on a tract that has been created from a larger parcel or reserve, either by subdivision or lease agreement, if the remaining portion of the original tract or reserve is used for nonresidential purposes.



(Ord. No. 2013-343, § 3(Exhs. A, B), 4-24-2013; Ord. No. 2018-11, § 49, 1-10-2018; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 42-155. Collector and local streets—Uses other than single-family residential.

(a) The building line requirement for a tract used or to be used for other than single-family residential purposes adjacent to a street that is a collector street or local street that is not an alley shall be ten feet unless otherwise required or authorized by this chapter.

(b) The building line requirement for property used or intended for to be used for other than single-family residential purposes adjacent to a street that is a collector street or local street and that is not an alley and across which street are located single-family residential lots having platted building lines greater than ten feet shall be the lesser of 25 feet or the greatest building line on the single-family residential lots directly across the street from the property.

(c) The building line requirement for tracts used for multi-unit residential purposes adjacent to a collector street or local street that is not an alley shall be as identified in section 42-237 unless otherwise required or authorized by this chapter.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-156. Collector and local streets—Single-family residential.

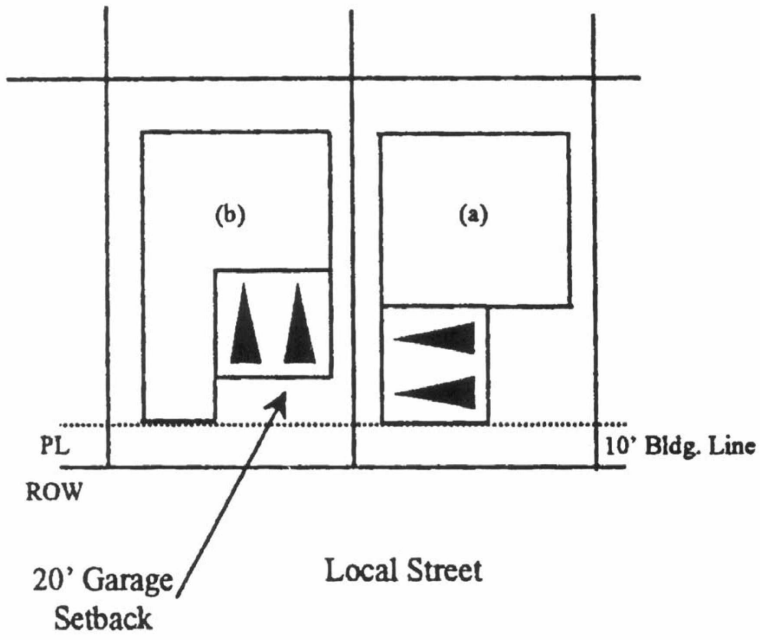
(a) Except as otherwise required or authorized by this chapter, the building line requirement for a lot restricted to single-family residential use shall be 25 feet along the front of a lot and ten feet along the back and sides of a lot adjacent to a collector street that is not an alley.

(b) Except as otherwise required or authorized by this chapter, the building line requirement for a lot restricted to single-family residential use along a local street that is not an alley shall be:

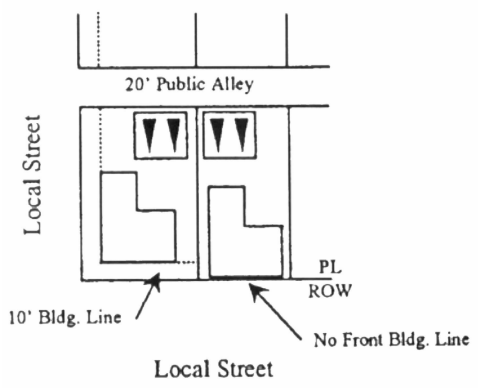
(1) 20 feet along the front of a lot and ten feet along the back and side of a lot adjacent to a local street; or

(2) 10 feet if the subdivision plat contains a typical lot layout and the subdivision plat contains plat notations that reflect the requirements of this section.

(c) Notwithstanding the other provisions of this section, the building line requirement for a lot restricted to single-family residential use shall be 20 feet for a garage or carport facing the street, except as provided in subsection (b) of section 42-157 of this Code.



(d) When the plat contains a typical lot layout and notes that restrict vehicular access to an approved public alley, then no front building setback line shall be required, except for corner lots as provided herein.



(Ord. No. 2013-343, § 3(Exhs. A, B), 4-24-2013)

Sec. 42-157. Optional performance standards for collector streets and local streets—Single-family residential.

(a) The performance standards for building lines in the city are intended to:

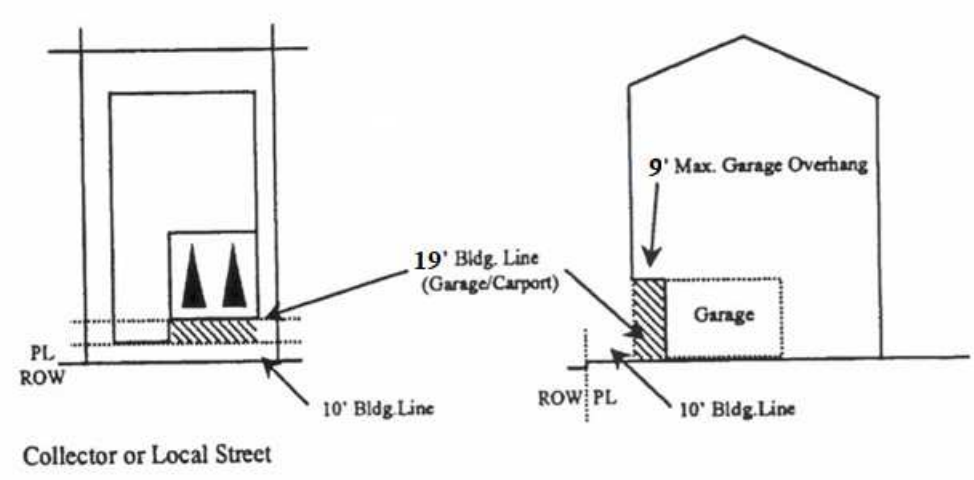
(1) Foster a design framework applicable to the city; and

(2) Assure that pedestrian use of sidewalks is not impeded by vehicles blocking the sidewalks.

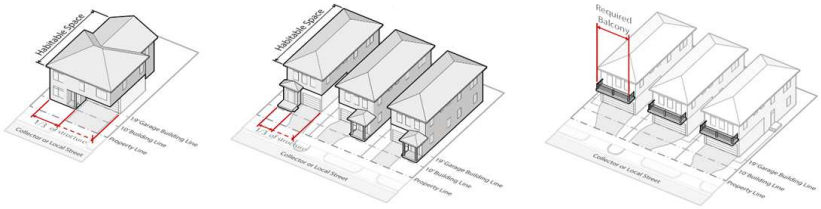
(b) The building line requirement for a subdivision or development in the city restricted to single-family residential use adjacent to a collector street or a local street that is not an alley shall be:

(1) Ten feet for the principal structure;

(2) Notwithstanding the other provisions of this section, 19 feet for a garage or carport facing the street. An occupiable space above the garage or carport may overhang the building line up to nine feet; and



(3) For lots with the garage facing the street, at least ⅓ of the structure along the street must be occupiable space with the front door facing the street. This ⅓ of the structure can be located within the 9 feet ahead of the garage building line or no more than 4 feet behind the garage building line. For narrow lots, if not able to meet the ⅓ requirement, then functional balconies must be provided on the second floor. In lieu of a balcony, there may be a minimum of 36 square feet of windows facing the street, with at least one or more windows being a minimum of 3 feet by 5 feet.



(c) A front building line requirement of five feet is authorized for all or a portion of the lots in a subdivision or development in the city that is restricted to single-family residential use adjacent to a collector street or a local street that meets one of the following performance standards:

(1) Vehicular access to a driveway, garage or carport is available only from the rear or side of each lot through an alley, flag staff, permanent access easement or courtyard access drive, and each dwelling unit on a lot that is adjacent to a public street has a front door with an entry feature per Sec. 42-165; or

(2) Vehicular access to each lot is provided by a shared driveway and:

a. The shared driveway meets the requirements of division 2 of article III of this chapter relating to shared driveways;

b. Each dwelling unit on a lot that is adjacent to a public street has front door with an entry feature per section 42-165; and

c. All electrical service installations for the development are installed according to the energy provider's service standards for the underground installations including the dedication of any easements required for the underground installation.

(d) A front building line requirement of zero feet is authorized for all or a portion of the lots in a subdivision plat in the city that is restricted to single-family residential use adjacent to a collector street or local street that meets the following performance standards:

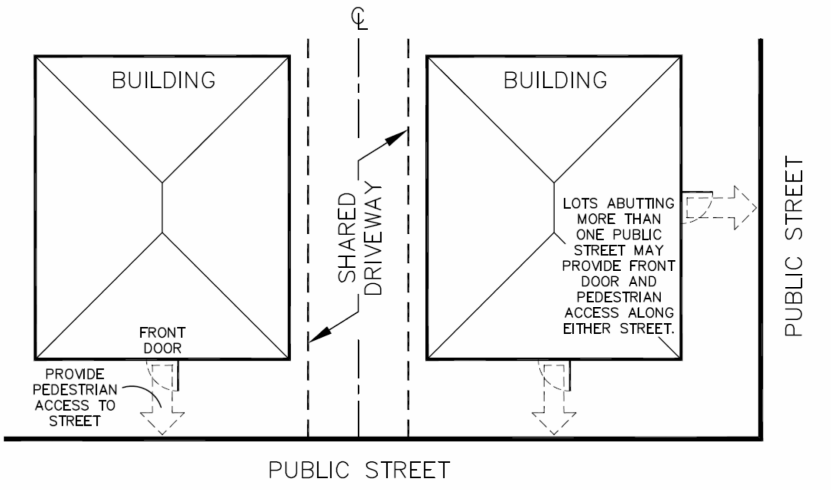
(1) The subdivision is solely a replat of a lot on a corner at the intersection of two public streets;

(2) Each lot in the replat provides for one or more shared driveways so that every dwelling unit will share a shared driveway with at least one other dwelling unit;

(3) Each dwelling unit on a lot that is adjacent to a public street has a front door with an entry feature per section 42-165;

(4) All electrical service installations for the development are installed according to the electrical service provider's standards for the underground installations including the dedication of any easements required for the underground installation; and

(5) There is adequate room for required sidewalks and utilities within the right-of-way.



(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 23, 6-24-2015, eff. 7-24-2015; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-158. Private streets; type 2 permanent access easement.

The building line requirement for habitable structures along the right-of-way of a private street or type 2 permanent access easement shall be five feet.
(Ord. No. 2013-343, § 3(Exhs. A, B), 4-24-2013)

Sec. 42-159. Building line requirement along a shared driveway.

(a) A shared driveway that is 18 feet or greater in width shall have a building line of three feet along each side of the shared driveway.

(b) A shared driveway that is less than 18 feet in width shall have a building line of four feet for a garage or carport along each side of the shared driveway.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-160. Pipelines.

(a) The building line requirement for property adjacent to an undefined easement for a pipeline that carries flammable material under pressure through or over properties within a subdivision or development shall be 15 feet from the centerline of the pipeline.

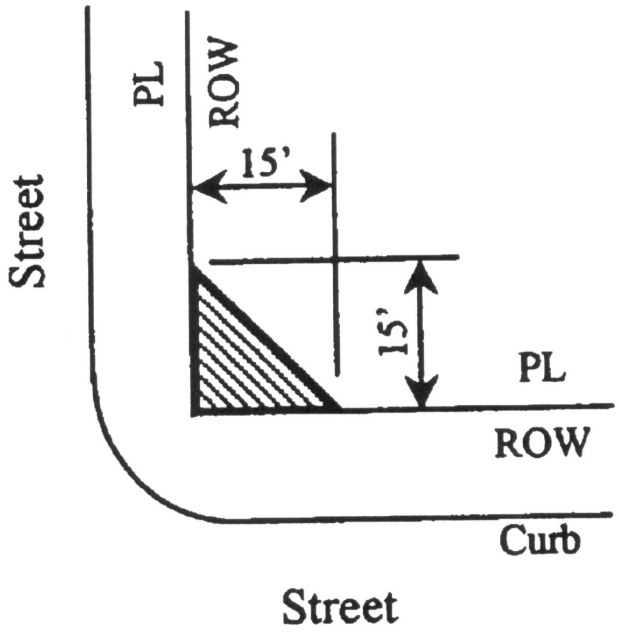
(b) A subdivision plat may contain a notation that the building line established pursuant to this section will no longer be applicable upon the abandonment or termination of the respective easement or right-of-way.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-161. Visibility triangles.

The building line for property adjacent to two intersecting streets shall not encroach into any visibility triangle, the triangular area adjacent to the intersection of any street established by measuring a distance of 15 feet from the point of intersection of two streets along the right-of-way of

each of the intersecting streets and connecting the ends of each measured distance, to assure adequate visibility sight lines for vehicular traffic approaching the intersection. The maximum height of the visibility triangle shall be 20 feet as measured vertically from the ground.

For lots and multi-unit residential sites located on collector or local streets that take rear or side access in accordance with section 42-188 and qualify for a reduced building line of 5 feet, an encroachment into the visibility triangle is allowed above 10 feet as measured vertically from the ground.



(Ord. No. 2013-343, § 3(Exhs. A, B), 4-24-2013; Ord. No. 2015-639, § 24, 6-24-2015, eff. 7-24-2015; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-162. Reconstruction after casualty.

(a) Reconstruction of a building after fire, damage or other casualty not intentionally caused by the owner of the building or the owner's agent shall comply with the requirements of this division if the estimated cost to rebuild the damaged portion of the building exceeds 75 percent of the estimated replacement cost of the entire building, exclusive of the replacement cost of the building foundation.

(b) Reconstruction of a building after fire, damage or other casualty not intentionally caused by the owner of the building or the owner's agent shall not require compliance with the provisions of this division if:

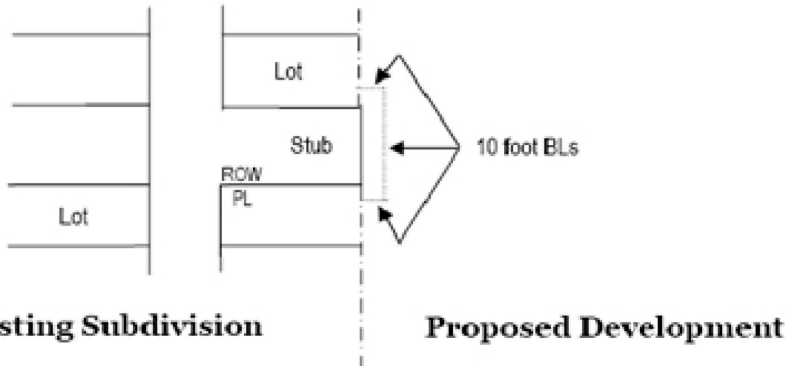
(1) The estimated cost to rebuild is 75 percent or less of the estimated replacement cost of the entire building, after subtracting the estimated replacement cost of the building foundation; and

(2) The reconstruction would not result in an increase in the floor area of the building or a change in the use of the property.

(c) For purposes of this section, the determination of the estimated cost to rebuild and the estimated replacement cost of a building shall be based on a certified cost estimate provided by an architect or contractor and approved by the building official.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-163. Stub street.

The building line adjacent to the end of a stub street that is not required to be extended pursuant to subsection (a) of section 42-134 of this Code shall be ten feet from the end of the stub street and ten feet on either side of a ten foot projection of the stub street into the adjacent property.



(Ord. No. 2013-343, § 3(Exhs. A, B), 4-24-2013; Ord. No. 2015-639, § 19, 6-24-2015)

Sec. 42-164. Transit-oriented development streets and walkable places streets

(a) This section shall apply to any improvement requiring a building permit or development within a lot on a walkable places street or transit-oriented development street.

(b) The portion of a lot or development that is adjacent to a primary street shall have a building line requirement of zero feet and the lot or development must comply with the requirements of article IV of this chapter.

(c) A building line of zero feet is authorized for the portion of a lot or development that is adjacent to a secondary street if the lot or development complies with the requirements of article IV of this chapter. Any lot or development that does not meet the standards of this subsection must be in compliance with the standard building line requirement otherwise required by this article for the corresponding type of street and tract description.

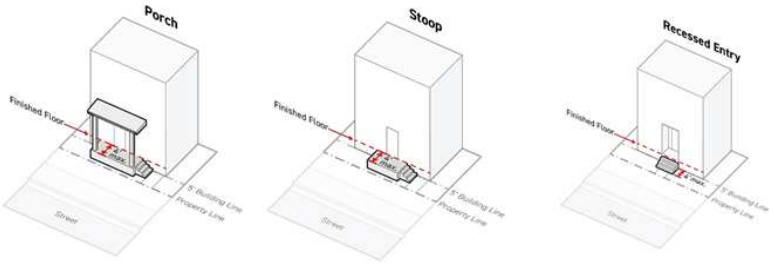
(d) Except when a special minimum building line requirement is applicable, this section shall prevail over the building line requirement otherwise required or authorized by this chapter.
(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-165. Entry feature performance standards for units fronting the street

A reduced building line within the city boundary will be allowed for single family and multi unit residential developments having rear or side access to the units, if units fronting the street meet the following entry feature criteria:

1. Each structure with frontage on a street, not including an alley, must provide at least one entry feature;

2. To be considered street-facing, an entry feature must face the street it is intended to serve. An entrance directly accessed from a porch, stoop or recessed entry on the street-facing side, counts as a street-facing entrance, regardless of if it faces the street;
3. The required entrance must provide both pedestrian ingress and egress to the first story of a building;
4. The required entrance must provide access to occupiable space within the first story of a building;
5. The required entrance must have a separate pedestrian access gate if a fence is provided, and a minimum 3-foot wide pedestrian connection to the nearest public sidewalk or public street;
6. The required entrance must include a porch, a stoop, or a recessed entry. A porch or stoop may encroach up to 4 feet into a required building line, provided there is adequate room for required sidewalks and all utilities; and
7. A porch or stoop may encroach up to 4 feet into the required building line, but may not have occupiable space above the first floor.



(Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Secs. 42-166—42-169. Reserved.

Subdivision B. Special Minimum Building Line Requirements.

Sec. 42-170. In general.

(a) The city council may designate a special minimum building line block within the city to preserve the building line character of a single-family residential neighborhood that does not have a minimum building line requirement established by deed restrictions. A minimum building line requirement established pursuant to this subdivision shall prevail over any lesser minimum building line established by this article. The department shall maintain a list of current special minimum building line blocks on its website.

(b) An area is eligible for designation of a special minimum building line block if it:

(1) Contains not less than one blockface and no more than two opposing blockfaces;

(2) Contains every lot on each blockface within the proposed area;

(3) Forms a contiguous area;

(4) Contains lots, at least 60 percent of which are developed for or restricted to single-family residential use, exclusive of land used for a park, utility, drainage or detention, public recreation or community center, library, place of religious assembly or an elementary, junior

high, or high school. For purposes of this item, a vacant lot that contained a structure or was used for any lawful purpose within the five years prior to the date the application was accepted by the director shall be considered to be in use for the most recent lawful use of that lot; and

(5) Contains at least one lot that does not have a building line established by deed restrictions.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 25, 6-24-2015, eff. 7-24-2015)

Sec. 42-171. Application.

(a) An application for designation of a special minimum building line block shall be filed with the department by an applicant who shall be the primary contact person regarding the application. The applicant shall be an owner of a lot within the proposed special minimum building line block or a representative of a home owner's association, civic association, or other entity representing the interests of individual owners of lots within the proposed area. The application shall be in the form prescribed by the director and shall:

(1) Be signed by the owner of a lot within the proposed special minimum building line block. The signature of one owner of a lot shall be presumed to represent the consent of all owners of a lot with more than one owner;

(2) Include evidence of support from the owners of lots within the proposed special minimum building line block;

(3) Include an inventory of the lots in the proposed special minimum building line block identifying the address, land use at the time of the filing of the application, the building line of existing buildings on each lot, and which lots, if any, have a building line established by deed restrictions;

(4) Include a survey of at least one lot on each blockface within the proposed special minimum building line block that includes the location and dimensions of all buildings on the lot; and

(5) Include a map depicting boundaries of the proposed special minimum building line block.

(b) Prior to the filing of an application with the department, the applicant shall meet with the director. The director shall conduct a preliminary review of the application during the pre-submittal meeting and advise the applicant of any deficiencies that would cause the application to be considered incomplete.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 26, 6-24-2015, eff. 7-24-2015)

Sec. 42-172. Application review.

(a) Upon receipt of an application, the director shall evaluate the application to determine whether the application meets the requirements of section 42-171 of this Code. The director shall inform the applicant of whether the application is accepted or rejected within two business days of receipt of the application and if the application is rejected, the director shall give written notice to the applicant of the specific deficiencies of the application.

(b) If an application is accepted pursuant to subsection (a) of this section, the director shall:

(1) Within two business days, update the list of special building line applications and designations on the department website to include:

a. The reference number for the application;

b. A description of the location of the minimum lot size block proposed by the application;

c. The date when a complete, valid, subdivision plat, development plat, or building permit application filed with the department shall be subject to the special minimum building line requirement pursuant to section 42-179 of this Code; and

d. The status of the application.

(2) Within 30 business days, review each application for completeness and shall determine the effective building line requirement pursuant to section 42-173 of this Code. If an application satisfies the eligibility requirements of section 42-170 of this Code, the director shall consider the application to be complete. If an application does not satisfy the eligibility requirements of section 42-170 of this Code, the director shall either:

a. Consider the application incomplete, return the application to the applicant for revision, and advise the applicant of the specific deficiencies within the application; or

b. For an application with two blockfaces, the director may modify the boundaries of the proposed special minimum building line block by removing a blockface so that the boundaries as amended satisfy the requirements, after which the director shall consider the application to be complete.

(c) The director shall, within 15 business days of receipt of a complete application, give notice by first class mail to the owners of lots within the proposed special minimum building line block as shown on the current appraisal district records. The notice shall inform the owners of lots of the application and the procedure for review and consideration of the application. The notice shall also inform the owners of lots of their prerogative to file a written protest of the application with the department within 30 days of the date of the notice.

(d) The director shall give notice by electronic mail to each district city council member in whose district any lot within the proposed special minimum building line block is located.

(e) The applicant shall place two signs on each blockface within the proposed area that shall conform to the specifications prescribed by the director. The director shall approve an alternative to the number and location of signs required by this subsection upon determining that the alternative will provide sufficient visibility of the signs and accomplish the objectives of this section without unduly burdening the applicant. The applicant shall use reasonable efforts to maintain each required sign on each blockface until either the director refers an approved application to city council or the commission takes final action on an application.

(f) For an application signed by the owners of 51 percent or more of the land within the proposed special minimum building line block, if no timely written protest by an owner of a lot within the proposed special minimum building line block is received by the department, and the director finds that the application meets the approval criteria of section 42-175 of this chapter, the director shall approve the application and refer the application directly to city council for consideration.

(g) If the director is not able to approve the application, the director shall refer the application to the commission for review and consideration pursuant to section 42-175 of this Code.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 27, 6-24-2015)

Sec. 42-173. Determination of special minimum building line requirement.

(a) The following formula shall be used to determine the special minimum building line requirement:

(1) List all of the lots within the proposed special minimum building line block that have an existing building constructed in descending order of building lines.

(2) Express each lot's building line as a percentage of the total sum of the building lines within the proposed special minimum building line block by dividing the building line of each lot by the sum of the combined building lines of all lots within the entire special minimum building line block.

(3) Add the areas expressed as a percentage in the order of the list until the cumulative sum of the percentages reaches 70 percent or greater, or in the case of a special minimum building line block within a historic district designated by city council, 60 percent or greater.

(4) The building line of the lot at which the cumulative sum reaches the percentage required by item (3) of this section is the special minimum building line requirement.

(b) The constructed building line shall be measured from the property line adjacent to the blockface to the nearest point of the building footprint excluding uninhabitable porches.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 28, 6-24-2015, eff. 7-24-2015)

Sec. 42-174. Notice of a public hearing before the commission.

(a) The director shall give notice by first class mail of the date, time, and location of the public hearing on the application before the commission to the owners of a lot within the proposed area as shown on the current appraisal district records not later than 15 days before the date of the public hearing.

(b) The director shall give notice of the public hearing by electronic mail to each district city council member in whose district any portion of the proposed area is located.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-175. Commission review and consideration.

(a) The commission shall consider each complete application referred by the director and shall hold a public hearing on the application. After the close of the public hearing, the commission shall consider the application and recommend designation of a proposed special minimum building line block that meets the following standards:

(1) The proposed area has an identifiable building line character, taking into account the age of the neighborhood, the age of structures in the neighborhood, existing evidence of a common plan and scheme of development, and other relevant factors;

(2) The establishment of the proposed special minimum building line requirement will further the goal of preserving the building line character of the proposed special minimum building line block;

(3) The applicant has demonstrated sufficient support for the application to warrant the designation of the special minimum building line block; and

(4) The application complies with the application requirements of section 42-171 of this Code and the eligibility requirements of section 42-170 of this Code.

(b) If the commission is unable to recommend designation of the special minimum building line block, the commission shall:

(1) Defer the application to a later commission date;

(2) Deny the application; or

(3) Modify the boundaries of the proposed special minimum building line block for an application with two blockfaces by removing a blockface if the modification will result in boundaries of a special minimum building line block that the commission finds will satisfy the criteria of subsection (a) of this section.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-176. City council review and consideration.

(a) The director shall submit an affirmative recommendation of the commission to designate the proposed special minimum building line block to city council, which shall decide whether to designate the special minimum building line block based on the criteria of subsection (a) of section 42-175 of this Code.

(b) After designation by city council, the director shall file for recordation in the real property records of the county or counties in which the designated special minimum building line block is located, a notice of the city council action for each lot within the designated special minimum building line block.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-177. Ineligibility for inclusion after denial.

(a) If the commission votes not to recommend the application or the city council votes to deny the application, any lot included in the boundaries of the application at its final consideration is ineligible for inclusion in a new application for a period of one year from the date of the final action.

(b) The director may allow an ineligible lot to be included in a new application upon receipt of new information not known to the applicant at the time of the prior application regarding changed circumstances that the director determines warrants the inclusion of the lot in a new application.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-178. Term and expiration; application to rescind; application to renew.

(a) A special minimum building line requirement established pursuant to an application that the director determines to be complete after July 24, 2015 shall terminate 40 years after the effective date of the ordinance establishing the requirement, unless terminated earlier by an ordinance adopted by the city council. A special minimum building line requirement established pursuant to an application that the director determines to be complete before July 24, 2015 shall terminate 20 years after the effective date of the ordinance establishing the special minimum building line requirement unless terminated earlier by an ordinance adopted by city council.

(b) An application to rescind a special minimum building line requirement shall comply with the application requirements of section 42-171 of this Code except that items (3), (4), and (5) of subsection (a) of section 42-171 of this Code shall not be required. The application to rescind shall be accepted by the director no earlier than five years after the effective date of the ordinance establishing the special minimum building line requirement, and no earlier than five years after the final action on the most recent application to rescind the special minimum building line requirement. Notwithstanding the foregoing, an application may be accepted by the director if the applicant provides new information regarding changed circumstances that the director determines warrants the acceptance of the application. The application shall be reviewed in accordance with the provisions of this subdivision for a new application for designation of a special minimum building line requirement, as applicable, except as provided by subsection (c) of this section.

(c) In addition to the criteria for reviewing an application to establish a special minimum building line requirement in this subdivision, an application to rescind a special minimum building line requirement shall be evaluated in accordance with the following:

(1) If the application is not signed by the property owners of 67 percent of the area within the special minimum building line block, the application fails and no further action shall be taken;

(2) If the application is signed by the property owners of 67 percent of the area within the special minimum building line block and no timely written protest is received by the department, the director shall approve the application and refer the application directly to city council for consideration; and

(3) If the application is signed by property owners of 67 percent of the area within the special minimum building line block and a timely written protest is received by the department, the director shall refer the application to the commission. The commission shall approve the application and refer the application to city council for consideration if the special minimum building line block no longer satisfies the criteria of section 42-175 of this Code.

(d) An application to renew a special minimum building line requirement shall comply with the application requirements of section 42-171 of this Code except that items (2), (3), (4), and (5) of subsection (a) of section 42-171 shall not be required. The application to renew shall be accepted by the director no earlier than two years before the expiration of the ordinance establishing the special minimum building line requirement. The application shall be reviewed in accordance with the provisions of this subdivision for a new application for designation of a special minimum building line requirement, as applicable, except as provided by subsection (e) of this section.

(e) For an application to renew a special minimum building line requirement that does not receive a timely protest by an owner of a lot within the proposed special minimum building line block, and the director finds that the application meets the approval criteria of 42-175 of this chapter, the director shall approve the application and refer the application directly to city council for consideration.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 29, 6-24-2015, eff. 7-24-2015)

Sec. 42-179. Rules governing subdivision plats, development plats, and building permits.

(a) A complete, valid, subdivision plat, development plat, or building permit application filed with the department shall be subject to the special minimum building line requirement only if it is filed after the seventh day following the date an application for a special minimum building line block is published online by the director in accordance with subsection (b) of section 42-172 of this Code.

(b) A subdivision plat, development plat, or building permit that is filed with the department shall not be approved if it provides for a building line that is less than or equal to the special minimum building line requirement established by the director pursuant to section 42-173 of this Code.

(c) Notwithstanding the provisions of this section, if the city council has not completed action on the special minimum building line block application 180 business days after the earlier of the date the application is determined by the director to be complete or the date after the end of a time period during which that the director fails to timely perform an action required by the application review requirements of section 42-172 of this Code, a subdivision plat, development plat, or building permit application shall not be subject to the special minimum building line requirement.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 30, 6-24-2015, eff. 7-24-2015)

DIVISION 4. LOTS AND RESERVES

Subdivision A. General Requirements for Lots and Reserves

Sec. 42-180. General lot design standards.

(a) Each lot in a subdivision plat shall be of sufficient size and shape to:

(1) Allow for the construction of a single-family residential building that meets the requirements of this Code, the Construction Code, and the design manual;

(2) Accommodate an easement for all public and private utilities necessary to serve the single-family residential building constructed thereon;

(3) Ensure that direct vehicular access is provided from a street, shared driveway, or alley.

(4) When proposing a narrow lot, no more than 1 vehicular access from a street is allowed.

(5) No vehicular access is required for lots within a courtyard style development.

(6) Provide for the number of parking spaces required by section 42-186 and article VIII of chapter 26 of this Code, as applicable. The size and dimensions of a parking space shall be in conformance with the requirements of the Construction Code.

(b) A lot that will not be served by a wastewater collection system shall meet the minimum requirements of the Texas Commission on Environmental Quality. The applicant shall provide a letter from the Texas Commission on Environmental Quality evidencing compliance with the minimum requirements. In addition, a lot without wastewater collection service that is platted in a special flood hazard area, as determined under the National Flood Insurance Program, shall meet the applicable requirements of the Texas Commission on Environmental Quality, the city, and the county engineer of the county in which the lot is located with respect to the location of the onsite sewage system.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-181. Single-family residential lot size.

(a) The minimum lot size for a single-family residential lot with wastewater collection service shall be as shown below, except for lots within courtyard style development meeting the requirements of section 42-194:

(1) 5,000 square feet for a lot within the extraterritorial jurisdiction; or

(2) 3,500 square feet for a lot within the city.

(b) The lot size for a single-family residential lot with wastewater collection service may be less than the minimum lot size provided by subsection (a) if the subdivision plat meets the performance standards of either:

(1) The compensating open space performance standards of section 42-182 of this Code; or

(2) For a subdivision plat within the city, the performance standards of section 42-184 of this Code.

(c) A subdivision plat shall not include a lot that is less than 1,400 square feet unless the plat meets the following performance standards:

(1) The property to be platted is located within the city and all lots within the subdivision take vehicular access from the shared driveway or permanent access easement;

(2) The average lot size within the subdivision plat is greater than or equal to 1,400 square feet. A lot that is larger than 3,500 square feet shall be counted as 3,500 square feet for purposes of the average lot size calculation of this subsection;

(3) For the purposes of this subsection, blockface has the meaning in 42-1 and shall include the distances measured from and to shared driveways, intersecting or terminating with shared driveways.

(4) If the subdivision plat contains one or more blockfaces in their entirety, the average lot size of each blockface within the subdivision plat is greater than or equal to 1,400 square feet; and

(5) If a subdivision plat includes a lot with a lot size less than 3,500 square feet, any subsequent replat of a lot within the subdivision plat shall maintain an average lot size that is greater than or equal to 1,400 square feet. The average lot size for each subsequent replat shall be based on all lots within the original subdivision plat containing a lot with a lot size less than 3,500 feet. The subdivision plat and all subsequent replats of lots within the subdivision plat shall contain a plat notation stating the requirements of this item.

(d) The minimum lot size for lots without wastewater collection service shall be in accordance with the requirements of subsection (b) of section 42-180 of this Code;

(e) A special minimum lot size requirement established pursuant to subdivision B of this division shall control over all other provisions of this section.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Editor's note—Section 5 of Ord. No. 2013-343, adopted April 24, 2013, established certain time limitations affecting the application of the preceding section, as well as the following section and Sections 42-184 and 42-185 of this Subdivision. The user's attention is directed to Section 5 of Ord. No. 2013-343 to ensure that the effect of such time limitations is fully understood as they may apply to an affected subdivision or redevelopment plat.

Sec. 42-182. Optional performance standards for the reduction in lot size—Compensating open space.

A subdivision plat may contain a lot of less than minimum lot size required by subsection (a) of section 42-181 of this Code if compensating open space is provided within the boundaries of the subdivision plat in accordance with the following schedule and in conformance with the design standards of section 42-183 of this Code:

Average lot size may be reduced to this square footage	*Upon providing this amount of compensating open space per lot (square feet)*	
	City	*Extraterritorial Jurisdiction*
4,999—4,500	None	100
4,499—4,000	None	200
3,999—3,500	None	300
3,499—3,000	240	400
2,999—2,500	360	500
2,449—2,000	480	600
1,999—1,400	600	720

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-183. Standards for compensating open space.

(a) Compensating open space may be used to reduce the minimum lot size requirement only to the extent that the area proposed to be dedicated to compensating open space meets the standards of this section.

(b) The following areas shall not be used for or considered compensating open space:

(1) Areas designated or used as lots or building sites for dwelling units, utility or storage purposes, carports or garages;

(2) Driveways, private roadways, or streets;

(3) Private medians less than 12 feet wide; or

(4) Except as provided by section 42-192 of this Code, detention ponds, drainageways, water areas including floodplains and floodways, or ravines.

(c) Compensating open space shall be reasonably dry and flat, unless the area is within an open space amenities plan approved by the commission pursuant to section 42-192 of this Code.

(d) The ground floor square footage of a building used for recreational purposes, at the option of the applicant, may be included in calculating compensating open space provided that the recreational use of the building is shown as a plat restriction on the face of the subdivision plat.

(e) The minimum size of any area used for compensating open space shall be 240 square feet, with dimensions of 20 feet by 12 feet.

(f) Any area used for compensating open space:

(1) Shall be restricted for the use of owners of property in and residents of the subdivision;

(2) Shall be owned, managed and maintained under a binding agreement among the owners of property in the subdivision; and

(3) Shall be accessible to all of the residents of the subdivision.

(g) Compensating open space can be used to provide courtyard access from groups or clusters of lots adjacent to one or more streets provided that the minimum distance between the opposing faces of the buildings forming the courtyard is 20 feet.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-184. Optional performance standards for the reduction in lot size within the city.

A subdivision plat for property located within the city may provide for a single-family residential lot size of less than 3,500 square feet, but not less than an average of 1,400 square feet, for lots with adequate wastewater collection service, if the subdivision plat meets the following performance standards and includes plat notations requiring compliance with the following performance standards:

(1) More than 60% of the area of each lot that is less than 3,500 square feet is not covered by buildings, or for a subdivision plat that is solely a replat of a lot on a corner at the intersection of two public streets, more than 75% of the area of the lot is not covered by buildings;

(2) The subdivision plat provides for at least 150 square feet of permeable area on each lot that is less than 3,500 square feet;

(3) The number of single-family residential dwelling units that can be constructed within the proposed subdivision plat does not exceed an equivalent density of 27 units to the gross acre of all land within the boundaries of the subdivision plat; and

(4) An equivalent density of 35 units to the gross acre of all land within the boundaries of the subdivision plat is allowed if all lots within the subdivision take vehicular access from the rear or side via an alley, flag staff, shared driveway or permanent access easement.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-185. Minimum width of a lot.

(a) The minimum width of any lot along a street or shared driveway shall be 20 feet unless otherwise allowed by this ordinance.

(b) The minimum width of any lot in a subdivision within the city may be 15 feet if all lots within the subdivision plat take vehicular access from the shared driveway or permanent access easement and the subdivision plat conforms to the following performance standards:

(1) The average width of all lots within the subdivision plat is greater than or equal to 18 feet. A lot with a width greater than 30 feet shall be counted as 30 feet for purposes of the average lot width calculation of this subsection;

(2) For the purposes of this subsection, blockface shall have the meaning of 42-1 and further shall include the distances measured from and to shared driveways, intersecting or terminating with shared driveways.

(3) If the subdivision plat contains one or more blockfaces in their entirety, the average lot width of each blockface within the subdivision plat is greater than or equal to 18 feet; and

(4) If a subdivision plat includes a lot with a width of less than 20 feet, any subsequent replat of a lot within the subdivision plat shall maintain an average lot width that is greater than or equal to 18 feet. The average lot width for each subsequent replat shall be based on all lots within the original subdivision plat containing a lot with a width less than 20 feet. The subdivision plat and all subsequent replats of lots within the subdivision plat shall contain a plat notation stating the requirements of this item.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-186. Parking for single-family residential uses.

(a) Each subdivision plat or development plat providing for a single-family residential use shall provide at least two off-street parking spaces per dwelling unit on each lot with the following exceptions:

(1) for a dwelling unit that is not more than 1500 square feet, only one space shall be required per dwelling unit; or

(2) for a dwelling unit that is less than or equal to 1000 square feet, no off-street parking is required when all of the following criteria are met:

a. the lot has less than 33 feet of public street frontage,

b. 100 percent of the unit has occupiable space fronting the street, and

c. driveway access from the public street is not permitted, and shall be reflected on the plat and building permit.

(b) If the first unit meets the off-street parking requirements:

(1) When a second dwelling unit of not more than 1000 gross square feet is provided, no additional off-street parking spaces shall be required.

(2) When a second dwelling unit is greater than 1000 square feet but less than or equal to 1500 square feet, only one additional off-street parking space shall be required.

(c) Each courtyard style development plat completed in accordance with section 42-194, providing for single-family residential use, shall provide one off-street parking space for every dwelling unit less than or equal to 1000 square feet and 2 off-street parking spaces per dwelling unit if the units are between 1001-1800 square feet.

(d) For lots within a courtyard style development in accordance with section 42-194 parking may be located in a reserve within the subdivision provided there is a shared access and maintenance agreement among lot owners.

(e) Each subdivision plat providing for a single-family residential use on property located within the city that includes a courtyard access drive, a shared driveway, or a type 2 permanent access easement with six or more dwelling units shall provide one additional parking space for every six dwelling units. Dwelling units on a lot that includes a parking space in excess of the parking requirements of subsection (a) of this section shall not be counted in determining the required number of additional parking spaces required by this subsection. Each additional parking space shall conform to the following requirements:

(1) The size and dimensions of the parking space shall be in conformance with the requirements of the Construction Code;

(2) The parking space shall be placed within the boundaries of the subdivision plat;

(3) For a subdivision plat where the lots abut a type 2 permanent access easement and take vehicular access only from a private alley, a parking space may be included within the type 2 permanent access easement;

(4) The parking space shall not be placed within a shared driveway or within a lot;

(5) The parking space shall not be placed where parking is prohibited by law, and the parking space shall be placed a minimum of 20 feet away from the right-of-way of a major thoroughfare, major collector, or existing protected bike lanes;

(6) The parking space shall be accessible to all residents of each dwelling unit of the subdivision plat via an internal path of either the shared driveway, type 2 permanent access easement or an improved walkway surface in an access easement within the subdivision meeting accessibility requirements in accordance with IDM standards with a minimum width of 3 feet in accordance with Chapter 40 sidewalk regulations.

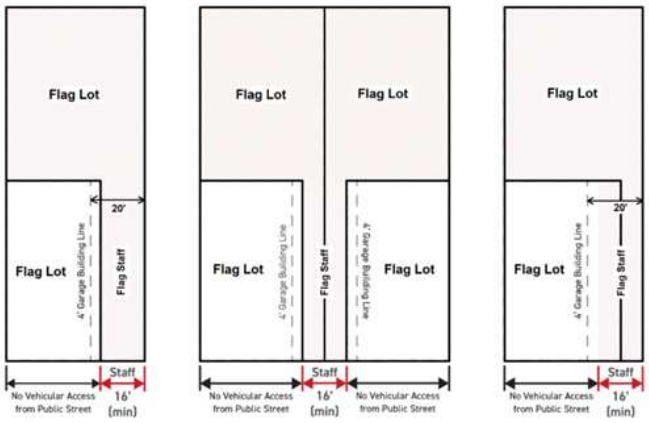
(f) A variance granted by the commission to parking requirements contained in this chapter is also a variance to the same parking requirement in Chapter 26.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-187. Flag lots.

(a) Each flag lot shall provide for a combined vehicular access to the principal portion of all lots that are less than 44 feet wide through the flag staff. The maximum number of lots that may take access from a flag staff is 4.

(b) The minimum width of the flag staff shall be 16 feet. The entire width of the flag staff need not be paved.

(c) If the garage is parallel to the length of the flag staff, the distance between the face of the garage and the farthest edge of the flag staff shall be 20 feet.



(d) The total length of the flag staff and driveway cannot be longer than 200 feet from the street that contains a roadway.

(e) Any area required to be used for vehicular access purposes shall be depicted by a note on the subdivision plat that restricts the portions of the lots for ingress and egress only and that precludes construction of any building, structure, wall or fence within those portions. The plat note shall clearly indicate the joint or shared nature of the access.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-188. Lot access.

This section sets forth requirements for lot access. Subsections (b)(2) and (d) through (h) apply only in the city boundary.

(a) Each lot shall have access to a street or shared driveway that meets the requirements of this chapter and the design manual, subject to the limitations of this section except for lots within courtyard style development in accordance with section 42-194.

(b) A single-family residential lot shall not have direct vehicular access to a major thoroughfare unless:

(1) The lot takes vehicular access to a major thoroughfare through a shared driveway that meets the requirements of subdivision B of division II of this article;

(2) The lot takes vehicular access to a major thoroughfare through a flag staff that meets the requirements of section 42-187 and a turnaround is provided that prohibits vehicles from backing onto the major thoroughfare; or

(3) The lot is greater than one acre in size and the subdivision plat contains a notation adjacent to the lot requiring a turnaround on the lot that prohibits vehicles from backing onto the major thoroughfare.

(c) Lots that front on or take access from a permanent access easement must be a part of a unified development scheme where the owners of all lots within the subdivision are legally bound together by deed restriction, contract or any other constituted and binding homeowners association, corporation, or other organization with, as one of its purposes, the continued care and maintenance of all commonly owned properties within the subdivision, particularly the

areas established as permanent access easements, and the authority and means to impose binding assessments upon the lot owners for that purpose. Each subdivision plat that contains a permanent access easement shall contain the following notation on the face of the plat:

"THIS SUBDIVISION CONTAINS ONE OR MORE PERMANENT ACCESS EASEMENTS THAT HAVE NOT BEEN DEDICATED TO THE PUBLIC OR ACCEPTED BY THE CITY OF HOUSTON OR ANY OTHER LOCAL GOVERNMENT AGENCY AS PUBLIC RIGHTS-OF-WAY. THE CITY OF HOUSTON HAS NO OBLIGATION, NOR DOES ANY OTHER LOCAL GOVERNMENT AGENCY HAVE ANY OBLIGATION, TO MAINTAIN OR IMPROVE ANY PERMANENT ACCESS EASEMENT WITHIN THE SUBDIVISION, WHICH OBLIGATION SHALL BE THE SOLE RESPONSIBILITY OF THE OWNERS OF PROPERTY IN THIS SUBDIVISION."

(d) Lots within a courtyard style development must be a part of a unified development plan where the owners of all lots within the subdivision are legally bound by deed restriction, contract or any other legal and binding homeowners association, corporation, or other organization with, as one of its purposes, the continued care and maintenance of all commonly owned properties within the subdivision, particularly the areas established as courtyards, parking, pedestrian pathways and courtyard access drives, and the authority and means to impose binding assessments upon the lot owners for that purpose. Each subdivision plat for a courtyard style development shall contain the following notation on the face of the plat:

"THIS SUBDIVISION CONTAINS ONE OR MORE COURTYARD ACCESS DRIVES THAT HAVE NOT BEEN DEDICATED TO THE PUBLIC OR ACCEPTED BY THE CITY OF HOUSTON OR ANY OTHER LOCAL GOVERNMENT AGENCY AS PUBLIC RIGHTS-OF-WAY. THE CITY OF HOUSTON HAS NO OBLIGATION, NOR DOES ANY OTHER LOCAL GOVERNMENT AGENCY HAVE ANY OBLIGATION, TO MAINTAIN OR IMPROVE ANY COURTYARD ACCESS DRIVES WITHIN THE SUBDIVISION, WHICH OBLIGATION SHALL BE THE SOLE RESPONSIBILITY OF THE OWNERS OF PROPERTY IN THIS SUBDIVISION."

(e) Properties being subdivided that abut an alley that is maintained by the city or a homeowners association must take vehicular access from the alley, unless determined by the director to be undevelopable or inaccessible, including the blockage or partial blockage of the alley by obstructions not allowing vehicular use.

(f) Corner properties being subdivided shall provide vehicular access:

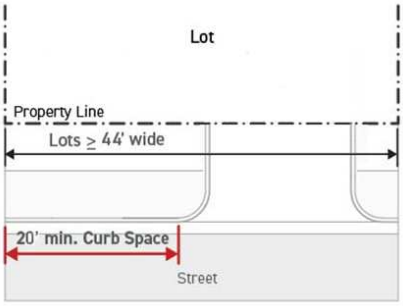
1. from an existing alley that is maintained by the city or a homeowners association;

2. if there is no alley or the alley is determined by the director to be undevelopable or inaccessible, the access must be provided from the side street unless the side street is a major thoroughfare through a flag staff, shared driveway, courtyard access drive or permanent access easement; or

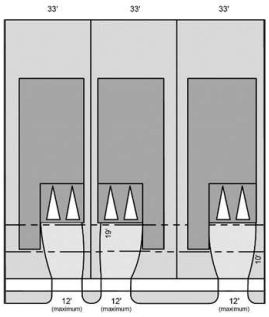
3. for a sole corner lot, access must be from the side street.

(g) Mid-block property being subdivided is adjacent to an undevelopable or inaccessible alley as determined by the director, or is not abutting an alley, access must be provided as follows:

1. For a lot that is 44 feet wide or more, at least 20 feet of frontage must be left as unobstructed curb space, and a minimum of ⅓ of the width of the structure façade facing the street must be occupiable space.



2. When proposing one or more narrow lots on a public street, the following shall apply:
   a. Vehicular access must be provided through a flag-staff, a shared driveway or permanent access easement; or
   b. For property less than or equal to 15,000 square feet, direct vehicular access from a street may be allowed for lots 33 feet or wider but less than 44 feet wide, through a driveway of maximum 12 feet in width.



(h) When a tract along a transit-oriented development street or walkable places street is subdivided, a single-family residential lot within this new subdivision shall not be designed to have direct vehicular access to the TOD street or WP street unless opting-into TOD or walkable places standards, and:
   (1) The lot takes vehicular access to the TOD street or WP street through a shared driveway that meets the requirements of subdivision B of division II of this article; or
   (2) The lot is greater than one acre in size and the subdivision plat contains a note prohibiting vehicles from backing onto the transit-oriented development street or walkable places street and requiring the turnaround to be located wholly outside the pedestrian realm.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2020-684, § 2(Exh. A), 8-5-2020; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-188.5. Optional performance standards for direct driveway access.

Direct driveway access to a street or type 1 permanent access easement for existing lots narrower than 33 feet is permitted if all the following standards are met:

(a) The existing lot was platted with less than 33 feet width, or the property is of an insufficient width to subdivide into multiple equal-sized lots of 33 feet or more prior to September 27, 2023;

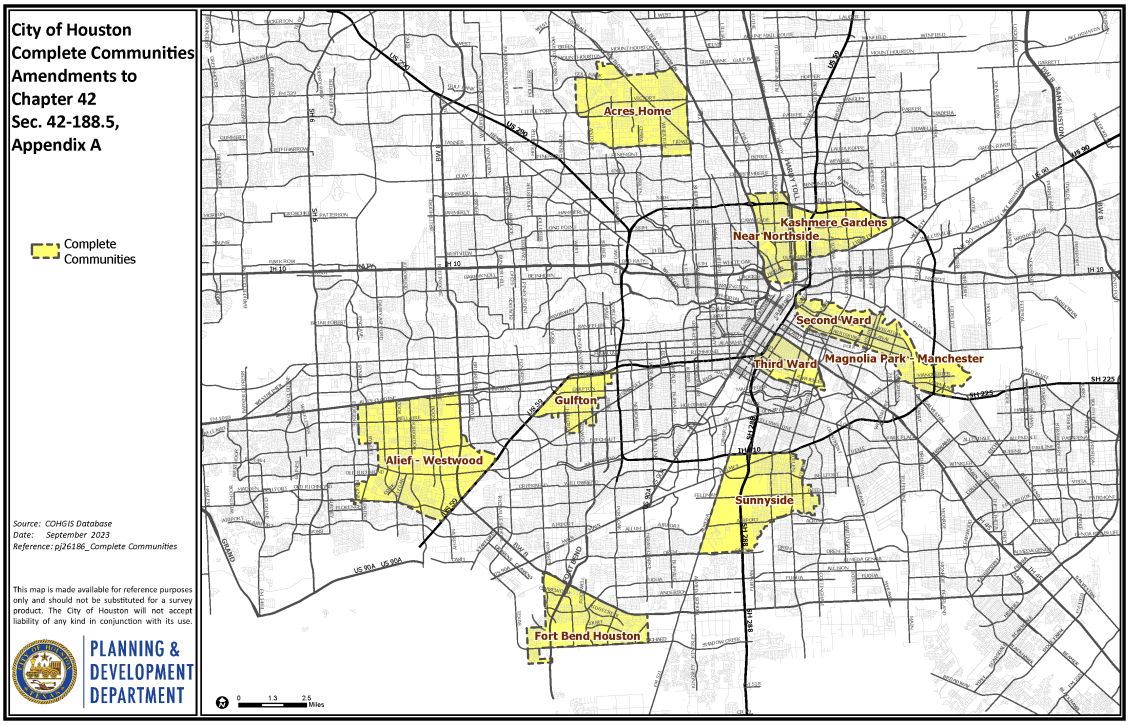
(b) The existing property does not have usable side or rear access to a public street or a type 1 permanent access easement or an alley maintained by the city or a homeowners association;

(c) Each proposed lot will have only one driveway approach of no more than 12 feet in width;

(d) The garage building line on each proposed lot must be a minimum of 20 feet;

(e) The property proposed to be subdivided is not within 1,400 feet walking distance, measured by walking on sidewalks or other paved surface, from the primary entrance of a primary or secondary school; and

(f) The property is not located in an area shown as a Complete Community on the map attached as Appendix A to this chapter and also available on the department's website.



(Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-189. Points of access.

Any subdivision that includes more than 150 lots shall have at least two points of access separated from each other by a distance of at least 250 feet to a public street outside the boundaries of the subdivision.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-190. Tracts for non-single-family use—Reserves.

(a) A tract of land that is not restricted to single-family residential use shall not be designated on a subdivision plat as a lot but shall be designated as a reserve and shall be subject to those provisions of this chapter pertaining to reserves.

(b) A subdivision plat shall identify each reserve by alphabetical letter and shall show the total acreage of the reserve within the delineated reserve boundaries. The applicant may note on the plat the use intended for each reserve. The applicant shall identify a reserve tract for which it has not determined a use as an unrestricted reserve.

(c) Each reserve shall meet the following requirements for minimum size, the type and width of street or shared driveway on which it may be located, and the minimum frontage, as applicable to the type of reserve:

TYPE OF RESERVE	*MINIMUM SIZE*	*TYPE OF STREET OR SHARED DRIVEWAY*	*MINIMUM STREET OR SHARED DRIVEWAY WIDTH*	*MINIMUM STREET OR SHARED DRIVEWAY FRONTAGE*
Unrestricted reserve	5,000 sq. ft.	public street	60 feet (50 feet in a street width exception area)	60 feet
MUR Reserve per Sec. 42-237	3500 sq ft	public street or type 1 permanent access easement	50 feet	50 feet
Restricted reserve - Courtyard per Sec. 42-194	480 sq ft for the main courtyard	None required	None required	None required
Restricted reserve—Lift station	Minimum size required by the design manual	public street or type 1 permanent access easement	50 feet	20 feet
		Temporary access easement if the reserve meets the standards of section 42-190(d)	Temporary access easement if the reserve meets the standards of section 42-190(d)	
Restricted reserve—Compensating open space	240 sq. ft.	public street or type 1 permanent access easement	50 feet	12 feet
		type 2 permanent access easement	28 feet	
		shared driveway	16 feet	
Restricted reserve—Landscape or open space	None required	None required	None required	None required
Restricted reserve—Recreation	5,000 sq. ft.	public street or type 1 permanent access easement	50 feet	50 feet
		Type 2 permanent access easement	28 feet	50 feet
		Shared driveway	16 feet	50 feet

TYPE OF RESERVE	*MINIMUM SIZE*	*TYPE OF STREET OR SHARED DRIVEWAY*	*MINIMUM STREET OR SHARED DRIVEWAY WIDTH*	*MINIMUM STREET OR SHARED DRIVEWAY FRONTAGE*
Restricted reserve—Drainage or detention	None required	public street	50 feet	20 feet
		permanent access easement	28 feet	
		shared driveway owned by homeowners association	16 feet	16 feet
		None if adjoining existing reserve restricted to drainage or detention	None if adjoining existing reserve restricted to drainage or detention	None if adjoining existing reserve restricted to drainage or detention
Restricted reserve—Wastewater treatment, water production, or water repressurization	5,000 sq. ft.	public street or type 1 permanent access easement	50 feet	50 feet
		Temporary access easement if the reserve meets the standards of section 42-190(d)	Temporary access easement if the reserve meets the standards of section 42-190(d)	
		None if adjoining existing reserve restricted to wastewater treatment, water production, or water repressurization	None if adjoining existing reserve restricted to wastewater treatment, water production, or water repressurization	None if adjoining existing reserve restricted to wastewater treatment, water production, or water repressurization
Restricted reserve—Parking	Minimum size requirement for a parking space specified in the Construction Code	public street or type 1 permanent access easement	50 feet	Minimum width of a parking space required by the Construction Code
		type 2 permanent access easement	28 feet	
		shared driveway	16 feet	
Restricted reserve—All other	5,000 sq. ft.	public street	60 feet (50 feet in a street width exception area)	60 feet

(d) A reserve may take access via an access easement temporarily until the adjacent public streets within the general plan are platted with abutting sections if all of the following conditions are met:

(1) The reserve is specifically restricted to lift station, wastewater treatment, water production, or water repressurization;

(2) The access easement is temporary and non-exclusive that must be recorded prior to the recordation of the plat in a form approved by the city attorney;

(3) The access easement aligns with the public street pattern identified in the current approved general plan;

(4) The minimum width of the access easement must be 30 feet with all-weather road surface and shall comply with all applicable Design Manual, Fire Code, city, county, and Texas Commission of Environmental Quality (TCEQ) requirements; and

(5) The minimum street width and minimum frontage requirements otherwise required by this section must be met as other sections abutting the reserve are recorded.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2022-391, §§ 14, 15, 5-18-2022; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-191. One foot reserves.

Subdivision plats shall provide a one-foot reserve within the street right-of-way as a buffer strip dedicated to the public to prevent access to public streets when a proposed public street stub ends into adjacent acreage or where the proposed public street is adjacent to the plat boundary and abutting acreage.

The following notation shall be placed upon the face of the subdivision plat:

> "ONE-FOOT RESERVE DEDICATED TO THE PUBLIC IN FEE AS A BUFFER SEPARATION BETWEEN THE SIDE OR END OF STREETS WHERE SUCH STREETS ABUT ADJACENT PROPERTY, THE CONDITION OF THIS DEDICATION BEING THAT WHEN THE ADJACENT PROPERTY IS SUBDIVIDED OR RE-SUBDIVIDED IN A RECORDED SUBDIVISION PLAT, THE ONE-FOOT RESERVE SHALL THEREUPON BECOME VESTED IN THE PUBLIC FOR STREET RIGHT-OF-WAY PURPOSES AND THE FEE TITLE THERETO SHALL REVERT TO AND REVEST IN THE DEDICATOR, HIS HEIRS, ASSIGNS OR SUCCESSORS."

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-192. Open space amenities plan.

(a) All or part of an area included in an open space amenities plan may qualify as compensating open space by complying with the applicable provisions of this section.

(b) Fifty percent of the area in the open space amenities plan qualifies as compensating open space if:

(1) The open space amenities plan contains less than three acres and provides each of the following:

a. Detention facility, if any, provides a stormceptor if the facility will not be a permanently wet lake or pond;

b. Detention facility, if any, has a bank slope ratio of 4:1 or flatter;

c. One 2.5-inch caliper tree from the street tree list, as defined in article V of chapter 33 of this Code, for each 30 feet of the boundary of the area included in the open space amenities plan:

[1] Planted at least 20 feet apart without extreme variation in spacing along pathways;

[2] Planted in one or more groupings within the area included in the open space amenities plan in a manner consistent with the growth characteristics of the trees; or

[3] A combination of both;

d. One or more pathways that provide access to and through the area included in the open space amenities plan and that are a minimum of five feet wide to be constructed of decomposed granite, asphalt or concrete;

e. One bench installed for each 500 feet of pathway, with a minimum of one bench;

f. Amenities are accessible to person with disabilities pursuant to standards of the Americans with Disabilities Act; and

g. An irrigation system that will irrigate all of the area included in the open space amenities plan other than a permanently wet lake or pond; or

(2) The open space amenities plan contains three acres or more and provides:

a. All of the amenities listed in item (b)(1); plus:

b. Parking required by chapter 26 of this Code for a class 6 park occupancy.

(c) All of the area within an open space amenities plan qualifies as compensating open space if:

(1) The open space amenities plan contains less than one acre and provides:

a. All of the amenities listed in item (b)(1); plus

b. At least two of the following:

[1] Additional landscaping, which may be;

[a] Additional trees from the street tree list, as defined in article V of chapter 33 of this Code;

[b] Shrubs from the approved shrub list contained in appendix D of article V of chapter 33 of this Code;

[c] 4.0-inch caliper trees in lieu of the same number of 2.5-inch caliper trees; or

[d] A combination of the above;

[2] Use of decorative stone or pavers in lieu of decomposed granite, asphalt or concrete;

[3] Use of decorative fencing;

[4] Pedestrian scale lighting with a minimum of 0.25 foot-candles at any point along the trail;

[5] Bicycle racks sufficient to store five bicycles per acre or portion thereof;

[6] At least one drinking fountain;

[7] A decorative fountain; or

[8] Connectivity with other community amenities;

(2) The open space amenities plan contains at least one acre but less than three acres and provides:

a. All of the amenities listed in item (b)(2); plus

b. At least four of the amenities listed in paragraph (c)(1)b; or

(3) The open space amenities plan contains three or more acres and provides:

a. All of the amenities listed in item (b)(1); plus

b. At least six of the amenities listed in paragraph (c)(1)b; plus

c. Parking required by chapter 26 of this Code for a class 6 park occupancy.

(d) An open space amenities plan shall be submitted in the form and contain the information prescribed by the director. Any area included in an open space amenities plan shall be clearly identified on the corresponding subdivision plat and shall include a table showing the type and quantities of amenities to be provided. The open space amenities plan approved by the commission shall be recorded simultaneously with the subdivision plat.

(e) Failure to provide or maintain any amenity included in an approved open space amenities plan shall be a violation of this chapter.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-193. Rules governing partial replats of certain property.

(a) The rules in this section govern partial replats of subdivision plats recorded in the real property records and shall apply to each subsequent replat as though it were the first replat of the original subdivision plat. These rules do not apply to a replat of all the property in the original subdivision plat by all of the current owners thereof. For purposes of this section, "original subdivision plat" means the first recorded subdivision plat in which a plat restriction was included, and a "partial replat" means a replat of part of a recorded subdivision plat.

(b) Property within a subdivision plat that does not contain lots restricted to single-family residential or residential use may be replatted to amend any plat restriction contained on the preceding subdivision plat.

(c) Property within a subdivision plat that contains lots restricted to single-family residential or residential use may be replatted to amend a plat restriction only as provided below:

(1) A plat restriction limiting the use of property to residential or single-family residential use may be amended to permit the use of that property only for landscape, park, recreation, drainage, or open space uses.

(2) A plat restriction limiting the use of property specifically to 'nonresidential':

a. May not be amended to permit multi-family residential use of that property unless the applicant demonstrates that the property was actually improved and used for multi-family residential purposes prior to April 3, 1999;

b. May be amended to permit single-family residential use of that property only if:

[1] The typical lot size in the replat is not less than the typical lot size of lots in the preceding plat; or

[2] The property abuts a major thoroughfare.

c. May be amended to any more specific "nonresidential" use of that property.

(3) A plat restriction limiting the use of property specifically to 'commercial' use:

a. May not be amended to permit multi-family residential use of that property unless the applicant demonstrates that the property was actually improved and used for multifamily residential purposes prior to April 3, 1999;

b. May be amended to permit single-family residential use of that property only if:

[1] The typical lot size in the replat is not less than the typical lot size of lots in the preceding plat; or

[2] The property abuts a major thoroughfare.

c. May be amended to any more specific "commercial" use of that property.

(4) A plat restriction limiting the use of property to drainage, water plant, wastewater treatment, lift station or similar public utility use may be amended only to permit:

a. Landscape, park, recreation, drainage, open space or similar amenity uses of that property, or

b. Single-family residential use of that property only if the typical lot size in the replat is not less than the typical lot size of lots in the preceding plat.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2022-391, § 16, 5-18-2022)

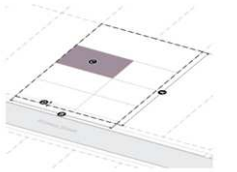
Sec. 42-194. Courtyard style development performance standards

(a) The intent of the courtyard style development is to allow design of a group of small single-family residential lots arranged around a shared open space, to incentivize a greater range of naturally occurring affordable housing options, smaller single-family residential homes with functioning open space in a compact development pattern. It will also promote access and proximity to mobility options and better utilize land closer to existing infrastructure.

(b) The courtyard style development performance standards applicable to developments are shown in the table, and summarized, with depictions below. The full text of standards is contained in subsection (c). The following chart is a summary of certain requirements of this section and is intended for illustrative purposes only. In case of any conflict between the chart, drawings or this section, the text controls. These standards can only be used on property submitted on a site plan showing compliance with this section, and platted as a unified courtyard style development with single-family restricted lots, reserves and courtyard access drive. For purposes of courtyard style developments, the word courtyard does not include roof top courtyards.

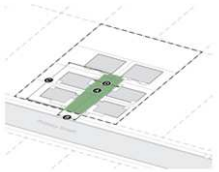
SUMMARY OF PERFORMANCE STANDARDS

SITE



Site Requirements		
	Site frontage	Street
A	Depth (max)	150'
B	Width (min)	50'
	Unit size (max)	1,800 SF
C	Lot area (max)	3,500 SF
	Lot frontage	Street Alley Courtyard Pedestrian Path Courtyard Access Drive
Building Lines		
D	Local/Collector Street (min)	5'
	Major thoroughare with ROW 80' or less	15'
	Courtyard (min)	0'

COURTYARD



Courtyard Dimensions		
	Courtyard area per lot (min)	150 SF
A	Courtyard size for main courtyard (min)	480 SF
	% of lots that must front a courtyard (min)	50%
B	Courtyard width (min)	12'
C	Courtyard depth (min)	12'
D	Distance between buildings across courtyard (min)	20'
Courtyard Activation		
	Fence height facing courtyard (max)	4'
	Courtyard-facing entrance	Required
	Pedestrian connection to courtyard	Required

PARKING / VEHICLE ACCESS

Vehicle Access		
	Access from alley (where existing)	Required
	Distance between drives (min)	75'
A	Courtyard Access Drive width (min/max)	12'/18'
Parking Ratios		
	Spaces per unit (min)	
	Up to 1,000 SF	1
	More than 1,000 SF	2
	Guest spaces (min)	1 per 6 units
	Spaces required within Market-based parking area	0
Parking Location		
	On-site	Required
	Off-site	Not allowed
	Consolidated parking (detached from individual lot)	Allowed
	Between building and street	Not allowed
	Between building courtyard	Not allowed

BUILDINGS/STREET ACTIVATION

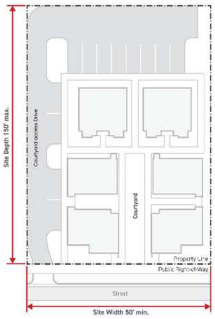
Massing		
A	Building height (max)	30'
Pedestrian Access		
C	Street-facing entrance	Required
D	Pedestrian connection to public sidewalk	Required

(c) The common areas and courtyards within the development cannot be replatted into any other use and are subject to section 42-193. Each subdivision plat that contains a courtyard style development shall contain a notation to that effect on the face of the plat. Any area used for common space or a courtyard:

(1) Shall be restricted for the use and access of owners of property in and residents of the subdivision; and

(2) Shall be owned, managed, and maintained under a binding agreement among the owners of property in the subdivision.

(d) A Courtyard style development site must have a minimum width of 50-foot frontage on a 50 feet street. No portion of a site can be more than 150 feet from a street containing a roadway.

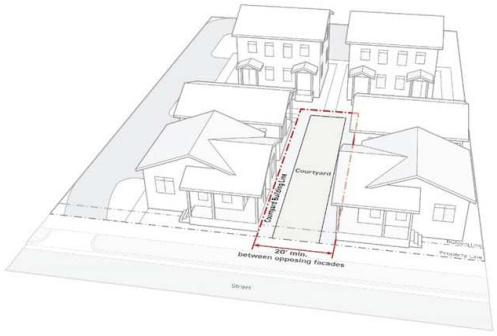


(e) No individual lot can be more than 3,500 square feet in area, and no unit on a site can exceed 1800 square feet in floor area.

(f) Each lot on the site must have frontage on a public street or alley that meets the requirements of section 42-122, a courtyard, a courtyard access drive that meets the requirements of this section, or a pedestrian pathway that is at least 3 feet wide and connects the dwelling units to courtyard space, parking, and public street.

(g) The building line requirement for a structure along a public street right-of-way other than major thoroughfare and not including an alley, is 5 feet. A reduced building line of 15 feet is authorized for a structure along major thoroughfares with a right-of-way 80 feet or less. All units along the public street must face the street with an entry feature, and provide a pedestrian connection to the sidewalk in accordance with section 42-165.

(h) The minimum building line for a structure along a courtyard edge is 0 feet, provided there is at least 20 feet between opposing building facades across the courtyard, measured from edge to edge of the courtyard, including any pedestrian walkways.

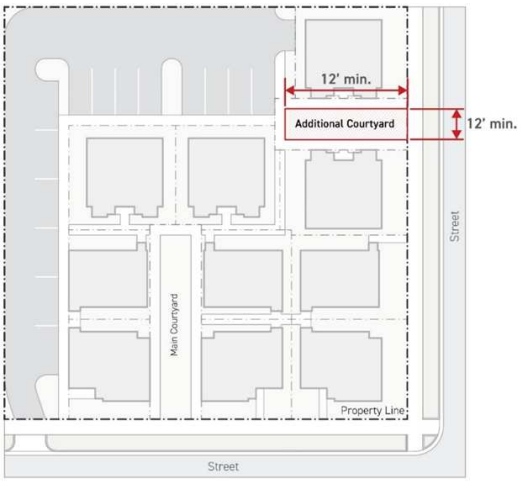


(i) A courtyard style development may have more than one courtyard area. One must be designated as the main courtyard area, and at least one must be provided within each courtyard style development. A main courtyard must be a minimum of 480 square feet in area. A minimum area of 150 square feet of courtyard space per lot must be provided within the boundaries of the subdivision plat. Courtyards must have minimum dimensions of 12 feet by 12 feet, measured from edge to edge of the area designated, including any pedestrian walkways.

(j) At least half of all lots must front the main courtyard or a street. To be considered fronting, at least 50% of the width or depth of each residence lot must front the main courtyard or a street. Each lot with frontage on the main courtyard must provide an entrance that faces the courtyard unless an entrance is provided along the street, provide pedestrian ingress and egress to a first floor occupiable space, and must provide a minimum 3-foot-wide pedestrian connection to the main courtyard.

(1) Additional courtyards are allowed in order to meet the 150 square foot per lot requirement.

(2) Additional courtyards are not required to meet the minimum area of 480 square feet, but must meet the minimum width and depth standards below to receive credit for the courtyard requirement.

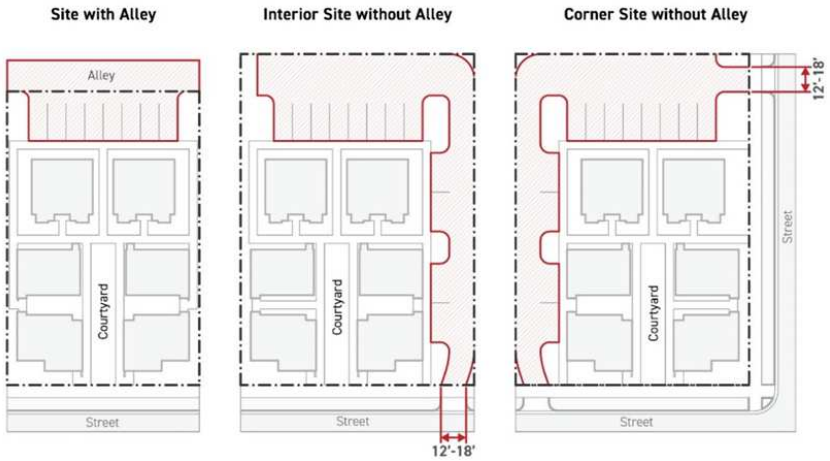


(k) Courtyards must be located at grade and may be a mix of impervious or pervious material and may contain elements such as patios, seating areas, landscaping, lighting, and pedestrian walkways. Fences along the edge of the main courtyard may not exceed 4 feet in height. If a fence is installed, a pedestrian access gate must be provided for access to the main courtyard for each lot or building fronting on the main courtyard.

(l) Where the property abuts an alley meeting the requirements of section 42-188, all vehicular access is provided from that alley.

(m) On a site without alley access, or abutting an undeveloped alley midblock, a driveway is allowed every 75 feet along each street frontage, measured along the property line from edge to edge of the pavement from all existing and proposed driveways located on-site. Measurement does not apply to abutting properties. On a corner site without alley access, vehicular access must be provided from the side street if not a major thoroughfare.

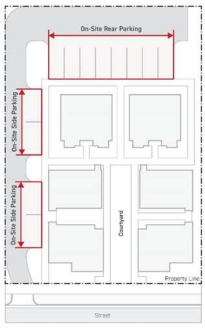
(n) A driveway to or from a street must be at least 12 feet wide but can be no wider than 18 feet, measured from edge to edge of driveway along the property line. One-way driveways are permitted for corner property and must meet the design manual.



(o) Parking requirements for courtyard style developments must meet section 42-186. In addition, the following parking requirements apply:

(1) Parking spaces may be consolidated in one or more locations to the side or rear of the site. Pedestrian access must be provided from consolidated parking areas to each lot or structure the parking area is intended to serve.

(2) No required parking space may be located between a street or courtyard and a building that faces a street or courtyard.



(p) No building on the site may exceed 30 feet in height, as measured from average grade to the highest roof surface. Roof surface is defined, in accordance with Section D of the International Fire Code, as the measurement to the eave of a pitched roof, the intersection of the roof to the exterior wall, or the top of a parapet wall, whichever is greater.

(Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Secs. 42-195—42-196. Reserved.

Subdivision B. Special Minimum Lot Size Requirements

Sec. 42-197. In general.

(a) The city council may designate a special minimum lot size block or a special minimum lot size area within the city to preserve the lot size character of a single-family residential neighborhood that does not have a minimum lot size established by deed restrictions. A minimum lot size requirement

established pursuant to this division shall prevail over any lesser minimum lot size established by this article. The department shall maintain a list of current special minimum lot size blocks and special minimum lot size areas on its website.

(b) An area is eligible for designation as a special minimum lot size block if it:

(1) Contains not less than one blockface and no more than two opposing blockfaces;

(2) Contains all lots on each blockface within the proposed area;

(3) Forms a contiguous area without containing any out tracts;

(4) Contains lots, at least 60 percent of which are developed for or restricted to single-family use, exclusive of land used for a park, utility, drainage or detention, public recreation or community center, library, place of religious assembly or an elementary school, junior high school, or high school. For purposes of this item, a vacant lot that contained a structure or was used for any lawful purpose within the five years prior to the date the application was accepted by the director shall be considered to be in use for the most recent lawful use of that lot; and

(5) Contains at least one lot that does not have a minimum lot size established by deed restrictions.

(c) An area is eligible for designation as a special minimum lot size area if it:

(1) Contains not less than five blockfaces composed of 5 lots or more on each blockface;

(2) Contains not more than 500 lots within the same subdivision plat or not more than 400 lots within different subdivision plats;

(3) Contains all lots on each blockface within the proposed area;

(4) Forms a contiguous area without containing any out tracts;

(5) Contains lots, at least 80 percent of which are developed for or restricted to single-family use, exclusive of land used for a park, library, place of religious assembly or an elementary school, junior high school, or high school; and

(6) Contains lots, at least 10 percent of which do not have a minimum lot size established by deed restrictions;

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 31, 6-24-2015, eff. 7-24-2015)

Sec. 42-198. Application.

(a) An application for designation of a special minimum lot size block or a special minimum lot size area shall be filed with the department by an applicant who shall be the primary contact person regarding the application. The applicant shall be an owner of a lot within the proposed block or area or a representative of a home owner's association, civic association, or other entity representing the interests of individual owners of lots within the proposed block or area. The application shall be in the form prescribed by the director and shall:

(1) Be signed by the owner of a lot within the proposed special minimum lot size block or the owners of ten percent of the lots in a proposed special minimum lot size area. The signature of one owner of a lot shall be presumed to represent the consent of all owners of a lot with more than one owner;

(2) Include an inventory of the lots in the proposed area identifying the address, land use at the time of the filing of the application, area of each lot, and which lots, if any, have a minimum lot size established by deed restrictions;

(3) For a special minimum lot size block, the applicant shall provide evidence of support from the owners of lots within the proposed area;

(4) For a special minimum lot size area, the applicant shall provide suggestions for suitable and freely available venues in or near the proposed special minimum lot size area for the location of a community meeting at which evidence of support for the application can be determined;

(5) For a special minimum lot size area, the applicant shall provide a brief description of how the application meets the criteria of subsection (a) of section 42-204 of this Code; and

(6) Include a map depicting boundaries of the proposed block or area.

(b) Prior to the filing of an application with the department, the applicant shall meet with the director. The director shall conduct a preliminary review of the application during the pre-submittal meeting and advise the applicant of the procedures for applications as well the criteria used by the commission and city council to evaluate an application. The director shall also advise the applicant of any deficiencies that would cause the application to be considered incomplete or that would cause the application to not conform to the criteria.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 32, 6-24-2015, eff. 7-24-2015)

Sec. 42-199. Application review.

(a) Upon receipt of an application, the director shall evaluate the application to determine whether the application meets the requirements of section 42-198 of this Code. The director shall inform the applicant of whether the application is accepted or rejected within two business days of receipt of the application and if the application is rejected, the director shall give written notice to the applicant of the specific deficiencies of the application.

(b) If an application is accepted pursuant to subsection (a) of this section, the director shall:

(1) Within two business days, update the list of special building lot size applications and designations on the department website to include:

a. The reference number for the application;

b. A description of the location of the minimum lot size block or area proposed by the application;

c. The date when a complete, valid, subdivision plat, development plat, or building permit application filed with the department shall be subject to the special minimum lot size requirement pursuant to section 42-208 of this Code; and

d. The status of the application.

(2) Review each application for completeness and shall determine the effective minimum lot size requirement pursuant to section 42-202 of this Code. The director shall determine if an application satisfies the eligibility requirements of section 42-197 of this Code and shall consider the application to be complete within 30 business days of receipt of an application for a special minimum lot size block or initially complete within 60 business days of receipt of an application for a special minimum lot size area.

(c) If an application does not satisfy the eligibility requirements of section 42-197 of this Code, the director shall either:

(1) Consider the application incomplete, return the application to the applicant for revision, and advise the applicant of the specific deficiencies within the application; or

(2) Modify the boundaries of the proposed area by removing a blockface from a special minimum lot size block or one or more blockfaces from a special minimum lot size area so that the boundaries as amended satisfy the requirements, or modify the boundaries in accordance with subsection

42-204(c) of this Code, after which the director shall consider the application for a minimum lot size block to be complete or an application for a minimum lot size area to be initially complete.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 33, 6-24-2015)

Sec. 42-200. Additional procedures for a special minimum lot size block application.

(a) For an application for a special minimum lot size block, the director shall, within 15 business days of the receipt of a complete application, give notice of the application by first class mail to the owners of lots included in the application as shown on the current appraisal district records.

(b) The director shall give notice by electronic mail to each district city council member in whose district any lot within the proposed special minimum lot size block is located.

(c) The notice shall inform the owners of lots of the application and the procedure for review and consideration of the application. The notice shall also inform the owners of lots of their prerogative to file a written protest of the application with the department within 30 days of the date of the notice.

(d) The applicant shall place two signs on each blockface included in the application which shall conform to the specifications prescribed by the director. The director shall approve an alternative to the number and location of signs required by this subsection upon determining that the alternative will provide sufficient visibility of the signs and accomplish the objectives of this section without unduly burdening the applicant. The applicant shall use reasonable efforts to maintain each required sign on each blockface until either the director refers an approved application to city council or the commission takes final action on an application.

(e) For an application signed by the owners of 51 percent or more of the area within the proposed block, if no timely written protest by an owner of a lot within the proposed block is received by the department, and the director finds that the application meets the approval criteria of section 42-204 of this chapter, the director shall approve the application and refer the application directly to city council for consideration.

(f) If the director is not able to approve the application, the director shall refer the application to the commission for review and consideration pursuant to section 42-204 of this Code.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, §§ 34, 35, 6-24-2015, eff. 7-24-2015)

Sec. 42-201. Additional procedures for a special minimum lot size area application.

(a) For an application for a special minimum lot size area, the director, within 60 business days of receipt of an initially complete application, shall establish a date for a community meeting on the application which shall not take place later than 90 business days after determination that the application is initially complete. The director shall give notice of the meeting by first class mail to all owners of lots within the proposed area as indicated on the current appraisal district records not later than 15 business days prior to the date of the community meeting. The notice shall include the date, time, and location of the community meeting, and the procedures for consideration of an application.

(b) The director shall give notice by electronic mail to each district city council member in whose district any portion of the proposed area is located.

(c) The applicant shall place two signs on each blockface within the proposed area that conforms to the specifications prescribed by the director. The director shall approve an alternative to the number and location of signs required by this subsection upon determining that the alternative will provide sufficient visibility of the signs and accomplish the objectives of this section without unduly burdening the applicant. The applicant shall use reasonable efforts to maintain each required sign on each blockface until commission takes final action on an application.

(d) The director shall establish rules for the conduct of the community meeting, and will hold the community meeting within or near the proposed area, subject to the availability of an appropriate venue. At the community meeting, the director shall inform the owners of lots of the application for designation of the proposed special minimum lot size area and the process for review and consideration by the department, commission, and city council.

(e) Not later than 60 days after the community meeting, the director shall mail a response form by first class mail to the owners of all lots within the proposed area for the purpose of gathering evidence of support for the application. The response form shall be completed and returned by the lot owner and shall indicate whether the lot owner does or does not support designation of the proposed special minimum lot size area. The response form must be signed by the lot owner, delivered or mailed to the director, and if mailed, postmarked not later than 30 days after the date of notice indicated on the response form. The signature of one owner of a lot is presumed to represent the consent of all owners of a lot with more than one owner.

(f) Within 60 business days after the deadline for returning response forms mailed in accordance with subsection (e) has passed, the director shall determine if owners of 55 percent of the proposed area support the designation of the special minimum lot size area. For purposes of determining whether 55 percent of the proposed area supports the designation, the director shall not count land that is owned by a governmental entity or a utility that does not return a response form. If the director finds that 55 percent of the proposed area supports the designation, the application will be considered complete. If the director is unable to make the determination, the director shall:

(1) Modify the boundaries of the proposed area by removing one or more blockfaces or modify the boundaries in accordance with subsection 42-204(c) of this Code if the modification will result in boundaries where the owners of 55 percent of the lots support designation of the proposed area. If the director modifies the boundaries in a way that achieves 55 percent support, the application will be considered complete; or

(2) Determine that the application fails and that no further action will be taken by the department or the commission. The director shall give notice by first class mail to the owners of all lots within the proposed area as shown on the current appraisal district records that the application has failed to meet the criteria of this subdivision and that there will be no public hearing before the commission.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, §§ 36, 37, 6-24-2015)

Sec. 42-202. Determination of special minimum lot size requirement.

The following formula shall be used to determine the special minimum lot size requirement:

(1) List all of the lots within the proposed special minimum lot size block or area that are not owned by a governmental entity or utility in descending order of lot sizes.

(2) Express each lot's area as a percentage of the total area of all lots within the proposed special minimum lot size block or area by dividing the square footage of each lot with the sum of the square footage of all lots within the entire special minimum lot size block or area.

(3) Add the areas expressed as a percentage in the order of the list until the cumulative sum of the percentages reaches 70 percent or greater, or in the case of a special minimum lot size block or area within a historic district designated by city council, 60 percent or greater.

(4) The square footage of the lot at which the cumulative sum reaches the percentage required by item (3) of this section is the special minimum lot size requirement.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 38, 6-24-2015, eff. 7-24-2015)

Sec. 42-203. Notice of a public hearing before the commission.

(a) The director shall establish a date for a public hearing on the application before the commission, and give notice by first class mail of the date, time, and location of the public hearing to the applicant and the owners of all lots within the proposed block or area as shown on the current appraisal district records not later than 15 days before the date of the public hearing.

(b) The director shall give notice by electronic mail to each district city council member in whose district any portion of the proposed area is located.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-204. Commission review and consideration.

(a) The commission shall consider each complete application referred by the director and shall hold a public hearing on the application. After the close of the public hearing, the commission shall consider the application and recommend designation of a proposed special minimum lot size block or a special minimum lot size area that complies with the following criteria:

(1) The proposed area has an identifiable lot size character, taking into account the age of the neighborhood, existing evidence of a common plan and scheme of development, and other factors that the commission reasonably determines to be relevant to an individual application;

(2) The establishment of the proposed special minimum lot size requirement will further the goal of preserving the identifiable lot size character of the proposed area;

(3) The applicant has demonstrated sufficient support for the application to warrant the designation of the special minimum lot size requirement;

(4) The application complies with the application requirements of section 42-198 of this Code and the eligibility requirements of section 42-197 of this Code;

(5) For a proposed special minimum lot size area, no blockface within the boundaries includes a significant area developed as or restricted to a use that is not single-family residential use; and

(6) For a proposed special minimum lot size area, no blockface within the boundaries includes a significant area that does not share a lot size character with the rest of the proposed area.

(b) If the commission is unable to recommend designation of the proposed block or area, the commission shall:

(1) Defer the consideration of the application to a later commission date and request additional information needed to consider the application be provided;

(2) Deny the application;

(3) Modify the boundaries of the proposed block or area by removing one or more blockfaces if the modification will result in boundaries of a block or area that the commission determines to satisfy the criteria of subsection (a) of this section; or

(4) Modify the boundaries of the proposed special minimum lot size area in accordance with subsection (c) of this section.

(c) When provided for by this chapter, the boundary of a proposed special minimum lot size block or area may terminate at the location of existing major physical features that create a distinct and identifiable boundary. The modified boundary must satisfy the requirements of subsection (a) of this section, except for item 42-197(c)(3) of this Code. For the purposes of this subsection, major physical features include, but are not limited to, the following:

(1) A public street that:

a. Does not have a roadway;

b. Has a right-of-way width of 100 feet or more; or

c. Is a major thoroughfare;

(2) Property owned in fee by an electric utility and used or intended for use for electric transmission facilities;

(3) A drainage channel required by a governmental entity with flood control jurisdiction, or other creeks, bayous, or other waterways; and

(4) A railroad track;

(5) An existing neighborhood perimeter wall or sound barrier wall; and

(6) A lot on the perimeter of the proposed area that is:

a. More than ten times the size of the proposed special minimum lot size requirement calculated in accordance with section 42-202 of this Code; or

b. Not in use for or restricted to single-family residential use that is abutting a major thoroughfare.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 39, 6-24-2015)

Sec. 42-205. City council review and consideration.

(a) The director shall submit an affirmative recommendation of the commission to designate the proposed special minimum lot size block or special minimum lot size area to city council, which shall decide whether to designate the block or area based on the criteria of subsection (a) of section 42-204 of this Code.

(b) After designation by city council, the director shall file for recordation in the real property records of the county or counties in which the designated block or area is located, a notice of the city council action for each lot within the designated block or area.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-206. Ineligibility for inclusion after denial.

(a) If the commission votes not to recommend the application or the city council votes to deny the application, any lot included within the boundaries of the application at its final consideration is ineligible for inclusion in a new application for a period of one year from the date of the final action.

(b) The director may allow an ineligible lot to be included in a new application upon receipt of new information not known to the applicant at the time of the prior application regarding changed circumstances that the director determines warrants the inclusion of the lot in a new application.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-207. Term and expiration; application to rescind; application to renew.

(a) A special minimum lot size requirement established pursuant to an application that the director determines to be complete after May 24, 2013 shall be effective for 40 years after the effective date of the ordinance establishing the requirement unless terminated earlier by an ordinance adopted by city council. A special minimum lot size requirement established pursuant to an application that the director determines to be complete before May 24, 2013 shall be effective for 20 years after the effective date of the ordinance establishing the minimum lot size requirement unless terminated earlier by an ordinance adopted by city council.

(b) An application to rescind a special minimum lot size requirement shall comply with the application requirements of section 42-198 of this Code for establishing a special minimum lot size requirement except that items (2) and (5) of subsection (a) of section 42-198 of this Code shall not be required. The application to rescind shall be accepted by the director no earlier than five years after the effective date of the ordinance establishing the special minimum lot size requirement and no earlier than five years after the final action on the most recent application to rescind the special minimum lot size requirement. Notwithstanding the foregoing, an application may be accepted by the director if the applicant provides new information regarding changed circumstances that the director determines warrants the acceptance of the application The application shall be reviewed in accordance with the provisions of this subdivision for a new application for designation of a special minimum lot size block or special minimum lot size area, as applicable, except as provided by subsection (c) of this section.

(c) In addition to the criteria for reviewing an application to establish a special minimum lot size requirement in this subdivision, an application to rescind a special minimum lot size requirement shall be evaluated in accordance with the following:

(1) For an application to rescind a special minimum lot size block:

a. If the application is not signed by the property owners of 67 percent of the area within the special minimum lot size block, the application fails and no further action shall be taken;

b. If the application is signed by the property owners of 67 percent of the area within the special minimum lot size block and no timely written protest is received by the department, the director shall approve the application and refer the application directly to city council for consideration; and

c. If the application is signed by property owners of 67 percent of the area within the special minimum lot size block and a timely written protest is received by the department, the director shall refer the application to the commission. The commission shall approve the application and refer the application to city council for consideration if the special minimum lot size block no longer satisfies the criteria of section 42-204 of this Code.

(2) For an application to rescind a special minimum lot size area:

a. If the application does not receive the support of the property owners of 67 percent of the area after return of the response forms required by section 42-201 of this Code, the application fails and no further action shall be taken; and

b. If the application receives the support of the property owners of 67 percent of the area within the special minimum lot size area after return of the response forms required by section 42-201 of this Code, the commission shall approve the application and refer the application to city council if it finds the special minimum lot size area no longer satisfies the requirements of section 42-204 of this Code.

(d) An application to renew a special minimum lot size requirement shall comply with the application requirements of section 42-198 of this Code except that items (2), (3), and (5) of subsection (a) of section 42-198 shall not be required. The application to renew shall be accepted by the director no earlier than two years before the expiration of the ordinance establishing the special minimum lot size requirement. The application shall be reviewed in accordance with the provisions of this subdivision for a new application for designation of a special minimum lot size block or special minimum lot size area, as applicable, except as provided by subsection (e) of this section.

(e) In addition to the criteria for reviewing an application to establish a special minimum lot size requirement in this subdivision, an application to renew a special minimum lot size requirement shall be evaluated in accordance with the following:

(1) For an application to renew a special minimum lot size block that does not receive a timely protest by an owner of a lot within the proposed special minimum lot size block, and the director finds that the application meets the approval criteria of 42-204 of this chapter, the director shall approve the application and refer the application directly to city council for consideration;

(2) For a special minimum lot size area, the application to renew shall be administratively approved by the director and forwarded to city council for consideration if the owners of less than 10 percent of the special minimum lot size area oppose the renewal of the special minimum lot size requirement after return of the response forms required by section 42-201 of this Code, and the director finds that the application meets the approval criteria of 42-204 of this chapter; and

(3) Applications that cannot be administratively approved by the director shall be evaluated in accordance with the procedures for applications to establish a special minimum lot size requirement.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 40, 6-24-2015, eff. 7-24-2015)

Sec. 42-208. Rules governing subdivision plats, development plats, and building permits.

(a) A complete, valid subdivision plat or development plat application filed with the department shall be subject to the special minimum lot size requirement only if it is filed after the seventh day following the date an application for a special minimum lot size block or special minimum lot size area is published online by the director pursuant to subsection (b) of section 42-199 of this Code.

(b) A subdivision plat that is subject to the minimum lot size requirement shall not be approved if it provides for the creation of a lot that is smaller than or equal to the special minimum lot size established by the director pursuant to section 42-202 of this Code.

(c) If a lot is lawfully developed for or is lawfully in use for other than single family residential use at the time the application for establishment of a special minimum lot size block was filed with the department, a subdivision plat or development plat for that lot may provide for any use permitted by law.

(d) If a lot that was in use for or restricted to single-family residential use or a vacant lot that was not restricted to a use other than to single-family residential use at the time the application for establishment of a special minimum lot size block was determined by the director to be complete or the application for establishment of a special minimum lot size area was determined by the director to be initially complete, a subdivision plat, development plat, or building permit for that lot shall provide only for single-family residential use.

(e) If a vacant lot was restricted by deed restrictions to any use other than single-family residential use at the time the application for establishment of a special minimum lot size block was determined by the director to be complete or the application for establishment of a special minimum lot size area was determined by the director to be initially complete, a subdivision plat or development plat for the vacant lot may provide for any use permitted by law.

(f) Notwithstanding the provisions of this section, if the city council has not completed action on the special minimum lot size block or special minimum lot size area application 180 business days after the earlier of the date the application is determined by the director to be complete or the date the director fails to timely perform an action required by this subdivision, the subdivision plat or development plat application shall not be subject to the special minimum lot size.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2015-639, § 41, 6-24-2015, eff. 7-24-2015)

Sec. 42-209. Reserved.

DIVISION 5. EASEMENTS

Sec. 42-210. Public utility easements.

(a) An easement for one or more public utilities shall meet the standards of this section and the location, design and width requirements of the design manual and of the respective utility companies.

(b) A public utility easement located along the boundary of a subdivision plat or a development plat shall contain the full width required for the easement, except that one-half of the required width may be shown and dedicated when one of the following conditions is satisfied:

(1) The property adjacent to the proposed public utility easement is within a recorded subdivision plat as the property that is the subject of the application and which provided for the dedication of a public utility easement contiguous to the proposed easement; or

(2) The additional public utility easement width is or was previously dedicated by the owner of the adjacent property by separate instrument.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-211. Drainage easements.

Each drainage easement shall be located in conformity with the requirements of the design manual and all other governmental agencies with jurisdiction over surface water drainage or flood control within the area in which the proposed subdivision or development is located. Each subdivision plat or development plat that contains a drainage easement shall contain a restriction on the plat that:

(1) Prohibits all properties abutting the easement from the construction of fences or buildings, whether temporary or permanent, and the installation or maintenance of plantings or other obstructions to the operation and maintenance of the drainage facility within the drainage easement; and

(2) Prohibits any property abutting the drainage easement from draining directly into the drainage easement except by means of a drainage structure approved by the Director of Houston Public Works or the authorized public drainage or flood control official.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 42-212. Private easements; fee strips.

All easements or fee strips created prior to the subdivision or development of any tract of land shall be shown on the subdivision plat or development plat with appropriate notations indicating the name of the holder of the easement or fee strip, the purpose of the easement, the dimensions of the easement or fee strip tied to all adjacent lot lines, street rights-of-way and plat boundary lines and the recording reference of the instruments creating and establishing the easement or fee strip. If an easement has not been defined by accurate survey dimensions, such as an "over and across" easement, the subdivider shall request the owner of the easement to define the limits and location of the easement through the property within the plat boundaries. If the holder of an undefined easement does not define the easement involved and the applicant certifies to the director the owner's refusal to define the easement, the subdivision plat or the development plat shall provide accurate information about the centerline location of all existing pipelines or other utility facilities placed in conformance with the easement owners' rights.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Secs. 42-213—42-229. Reserved.

DIVISION 6. MULTI-FAMILY RESIDENTIAL DEVELOPMENTS

Sec. 42-230. Application requirements.

(a) In addition to the information otherwise required to be submitted for a development plat in accordance with section 42-46, a development plat that provides for the development of one or more multi-family or multi-unit residential buildings shall provide the following information:

(1) The number of separate buildings that will contain residential dwelling units;

(2) The location of the principal entrance to each residential building;

(3) The total number of dwelling units;

(4) An itemized listing of residential dwelling units existing and proposed within the property indicating the number of bedrooms in and square footage of each dwelling unit; and

(5) The number, location and dimensions of off-street parking spaces required to serve the dwelling units pursuant to section 42-234 of this Code or section 26-492.

(b) When property is replatted to remove a one-foot restricted reserve, the subdivision plat shall additionally provide all of the information required for a development plat and required by subsection (a) of this section and shall be deemed a development plat for the purposes of this division.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-231. Private streets—General standards.

(a) A development plat that contains a multi-family residential building shall provide at least one private street. The private street shall remain clear at all times for emergency vehicle access. No parking shall be allowed within the private street. Except as provided in section 42-235 of this Code, a private street shall comply with the requirements of this section.

(b) Width:

(1) The minimum right-of-way width for a private street shall be 28 feet, which is coterminous with the pavement width measured from edge-to-edge across the surface of the pavement.

(2) At the option of an applicant, for a distance of not more than 100 feet from the intersection of the private street and the right-of-way of a public street, the right-of-way width of the private street may be comprised of two paving sections of not less than 20 feet each, separated by a curbed section of not less than five feet and not more than 20 feet in width.

(c) Intersections:

(1) Intersections along private streets shall be a minimum of 65 feet apart.

(2) When a private street intersects with another private street at a 90-degree angle, the private street shall provide a 20-foot radius at the intersection.

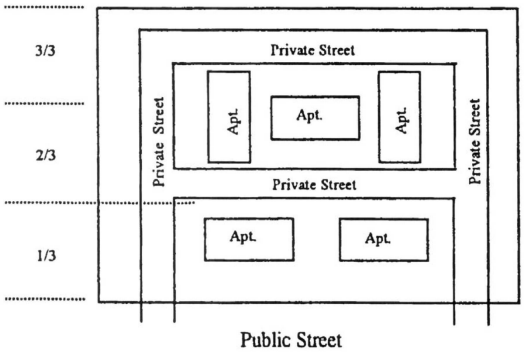
(3) When a private street intersects with another private street at an angle less than 90 degrees, but more than 80 degrees, the private street shall provide a 25-foot radius at the intersection.

(d) The centerline radius of a reverse curve on a private street shall not be less 65 feet. Reverse curves shall be separated by a tangent of not less than 25 feet.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-232. Points of access; termination.

(a) Except as otherwise provided in this section, the private street system serving each multi-family residential development shall form a loop that provides more than one point of access to the development from the public streets adjacent to the boundaries of the development. A divided entrance shall not constitute two separate points of access.

(b) When two points of access are provided from the same public street, the private street shall not be deemed to have a second point of access unless the private street connecting the two points of access extends into the property ⅓ of the depth of the property.

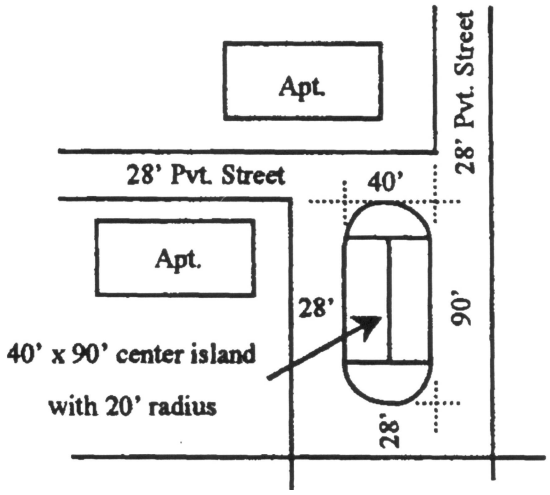


(c) Notwithstanding the foregoing, a multi-family residential development on a tract of land of one acre or less shall not be required to provide more than one point of access to a public street.

(d) A dead-end private street intersecting with a public street or with a private street may be extended up to 200 feet without a turnaround provided that a fire hydrant is located not more than 100 feet from the intersection of the dead end private street with the public street or looped private street.

(e) A private street is exempt from complying with the provisions of subsections (a) and (b) if it terminates in a "P" turnaround configuration that is comprised of a center island that is 40 feet wide and 90 feet long surrounded on four sides by a 28 foot wide paved private street. The center island shall

be established by a raised portion that has a radius of 20 degrees on each 40-foot wide end of the island. The interior of the center island may be used for parking, providing that no parking is allowed within the 28-foot private street.



(Ord. No. 2013-343, § 3(Exhs. A, B), 4-24-2013)

Sec. 42-233. Fire protection.

(a) Fire hydrants shall be located along each private street in a manner that will allow fire fighting apparatus to park and connect by hose to a hydrant not more than 300 feet away and reach any part of any building within the development with a 200-foot long hose extending from the equipment. The hose distance shall be measured as laid on the ground, around buildings, fences and other obstacles, and not as an aerial radius from a hydrant or parked equipment. Notwithstanding the foregoing, fire hydrants shall be located not more than 600 feet apart, unless the fire chief approves a different configuration where, in his professional judgement, fire protection needs can be adequately provided.

(b) If a multi-family residential building will be constructed over and across a private street, the unobstructed overhead clearance of the multi-family residential building shall be not less than 14 feet measured between the highest point of the private street paving under the building and the lowest part of the building or associated parts thereof.

(c) The fire chief shall review and approve each development plat that provides for one or more multi-family residential buildings and shall provide the director with recommendations regarding the adequacy of the design of the development to provide sufficient emergency access to all buildings by firefighters and fire fighting equipment, considering the kinds of equipment and methods of fire-fighting in use by the fire department of the city, the location of buildings in the proposed development and their relationship to existing and proposed fire hydrants and any other factors that may affect the safety and general welfare of the public and the occupants of the buildings to be constructed.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-234. Parking.

(a) Each development plat containing a multi-family residential development shall provide off-street parking spaces in accordance with the following schedule:

Unit Size	*Parking Spaces Required Per Unit*
Efficiency	1.25
One bedroom	1.333
Two bedrooms	1.666
Three or more bedrooms	2

In determining the total number of spaces required, any fraction of one-half or less shall be counted as the next smaller whole number and any fraction in excess of one-half shall be counted as the next higher whole number.

(b) Parking space arrangements, sizes of spaces and driveway openings shall be in conformance with the *Building Code*. A parking space shall not be in tandem unless the tandem parking space is reserved for use by occupants of the same residential unit to which the space is in tandem.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2021-1037, § 20(Exh. I.47), 12-1-2021, eff. 4-1-2022)

Sec. 42-235. Performance standards.

A multifamily residential development with a density of 30 dwelling units or more per acre that meets each of the performance standards of this section shall be exempt from the requirements of sections 42-231, 42-232(a), 42-232(b), 42-233(a), and 42-233(b) of this Code:

(1) The development provides fire truck access to all fire hydrants by a 20-foot wide fire lane along which no parking is allowed, a 28-foot wide private street or a public street. The fire lane or private street may loop through the development or may terminate at a dead end if the dead end is less than 500 feet. A dead end longer than 150 feet but less than 500 feet must have an "L", "T" or 90-foot diameter circular turnaround, as depicted in figures 1, 2, and 3. No dead end may be greater than 500 feet;

(2) Fire hydrants are located no further than 20 feet, measured perpendicularly, from the edge of the pavement of the fire lane, private street or public street. Access to the fire hydrants through any fence is provided by gates with 911 access;

(3) One fire hydrant is located within 100 feet of the property line on any fire lane or private street, as shown in figure 4.

(4) Fire hydrants are located so that a fire truck can drive a maximum of 200 feet from a fire hydrant and then use a maximum 300 feet hose length from the edge of pavement at the fire truck around all buildings, as the hose lays on the ground around all obstacles, including but not limited to fences, walls, buildings, structures and trees, as shown in figure 5; and

(5) The maximum distance between fire hydrants is 600 feet, as shown in figure 6.

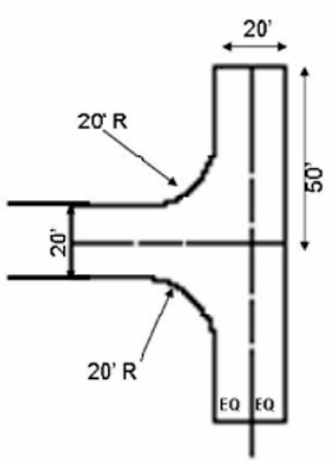


Figure 1. "L" Turn Around

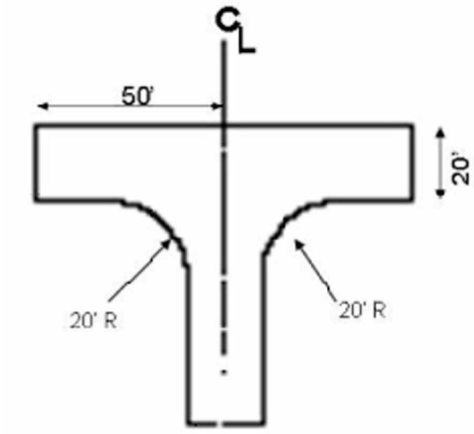


Figure 2. "T" Turn Around

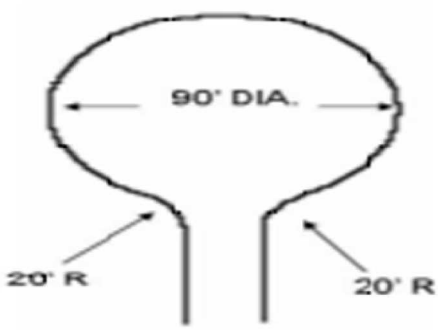


Figure 3. 90' Diameter Turn Around

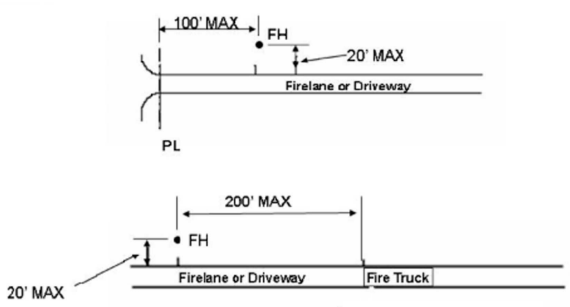


Figure 4

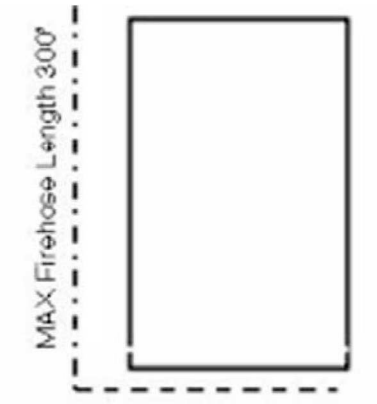


Figure 5

Figure 6

(Ord. No. 2013-343, § 3(Exhs. A, B), 4-24-2013)

Sec. 42-236. Open space.

(a) Except as otherwise provided in this section, each multi-family residential development in the extraterritorial jurisdiction shall provide open space in accordance with the following schedule:

Dwelling Unit Size	*Square Feet Of Open Space Required Per Dwelling Unit*
Efficiency	200
1 Bedroom	240
2 Bedrooms	320
3 Bedrooms	440
4 Bedrooms	500

For purposes of this section, *"open space"* shall mean land within the multi-family residential development that is not covered by buildings, covered walkways, parking spaces, private streets or driveways.

(b) In lieu of the requirements of subsection (a) of this section, a multi-family residential development in the extraterritorial jurisdiction may provide for open space by complying with each of the following conditions:

(1) At least ten percent of the total land area in the multi-family residential development, exclusive of land within the building line requirement area, shall be provided as open space;

(2) Enclosed amenities, such as an exercise or game room, shall constitute no more than ten percent of the open space provided;

(3) Each area provided as open space is at least 20 feet wide by 60 feet long;

(4) Any street trees required to be planted to comply with this Code are located in the street right-of-way; and

(5) The development plat or subdivision plat provides for the construction of sidewalks that are a minimum of five feet in width within the right-of-way of each street that is adjacent to the development.

(c) The aggregate open space requirement of subsection (a) of this section may be reduced by 15 percent if the development meets each of the following conditions:

(1) At least 25 percent of the dwelling units have individual enclosed garages within the buildings where the dwelling units are located; and

(2) Areas within the building line requirement are not used for parking.

(d) The aggregate open space requirement of subsection (a) of this section may be reduced according to the following schedule if the development meets each of the following conditions:

(1) Any street trees required to be planted to comply with city ordinance are located in the street right-of-way; and

(2) The development plat or subdivision plat provides for the construction of sidewalks that are a minimum of five feet in width within the right-of-way of each street that is adjacent to the development.

Development Density	*Reduction in Aggregate Open Space*
30—39 units per acre	15%
40—49 units per acre	30%
50—59 units per acre	45%
60 units per acre or more	60%

(e) A multi-family residential development in the extraterritorial jurisdiction with five or more stories shall not be required to provide open space.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

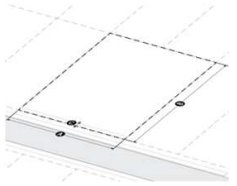
Sec. 42-237. Multi-unit residential (MUR) performance standards

(a) The intent of the multi-unit residential (MUR) development standards is to incentivize a greater range of naturally occurring affordable housing options, encourage more small-scale multi-unit housing options, to promote more compact development patterns and encourage residential units to face the street. It is also designed to promote access and proximity to mobility options and better utilize land closer to existing infrastructure.

(b) The multi-unit residential performance standards applicable to developments are shown in the table, and summarized, with depictions below. The full text of performance standards is contained in subsection (c). The following chart is a summary of certain performance standards contained in this section and is intended for illustrative purposes only. In case of any conflict between the charts, drawings, or text, the text shall control.

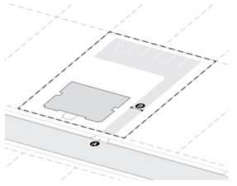
SUMMARY OF PERFORMANCE STANDARDS

SITE



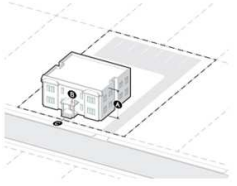
Site Dimensions		
	Site size (min)	3500 SF
A	Site frontage (min)	50'
B	Depth (max)	150'
Dwelling Units		
	Per site (min/max)	3/8
	Along local street (max)	4
Building Lines		
C	Local/Collector Street (min)	5'
	Major thoroughfare with ROW 80 feet or less	15'
Front Yard Fencing		
	Height (max)	4'

PARKING / VEHICLE ACCESS



Vehicle Access		
	Access from alley (where existing)	Required
A	Curb cuts per street front (max)	1
B	Drive width (min/max)	12'/16'
Parking Ratios		
	Spaces per unit (min)	
	Less than or equal to 1,000 SF	1
	More than 1,000 SF	2
	Guest spaces (min)	1 per 6 units
	Spaces required within Market-based parking area	0
Parking Location		
	On-site	Required
	Off-site	Not allowed
	Between building and street	Not allowed

BUILDINGS/STREET ACTIVATION



Massing		
A	Building height (max)	30'
Pedestrian Access		
B	Street-facing entrance	Required
C	Pedestrian connection to public sidewalk	Required

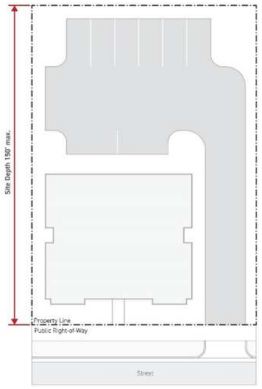
(c) Multi-unit residential performance standards are as follows:

(1) Site Dimensions

a. A site must have a minimum of 50' frontage on a 50 feet street.

b. A site can be no more than 150' deep from the street containing a roadway.

c. The minimum size of a site required is 3500 square feet.



(2) A site must contain at least 3 dwelling units but no more than 8 dwelling units. No more than 4 units may be located within a site on a local street.

(3) The building line requirement along a public street right-of-way, not including an alley is 5 feet except along major thoroughfares. A reduced building line of 15 feet is authorized along major thoroughfares with a right-of-way of 80 feet or less. All structures along the public street must face the street with an entry feature, and provide a pedestrian connection to the sidewalk in accordance with section 42-165.

(4) A fence, if installed in a front yard must be constructed of a non-opaque, decorative material and may be no more than 4' in height.

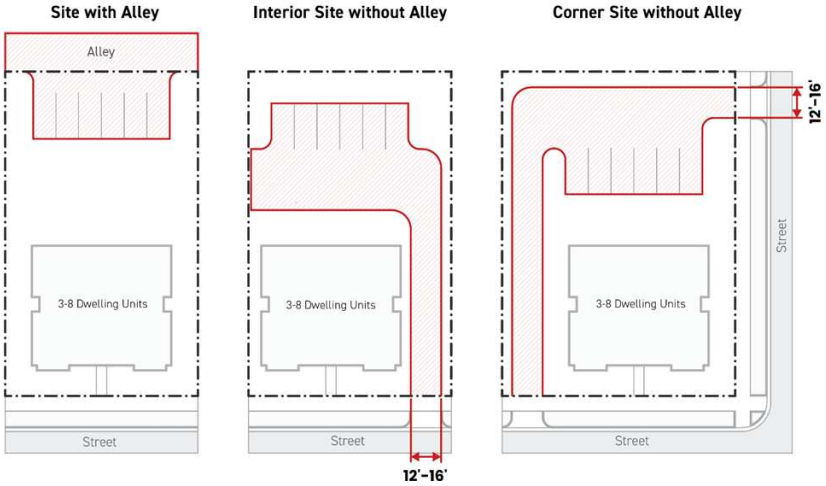
(5) Vehicular Access

a. Where the property abuts an alley, vehicular access is provided from that alley.

b. On an interior site without alley access, or along an undeveloped alley, one driveway to or from a street is allowed.

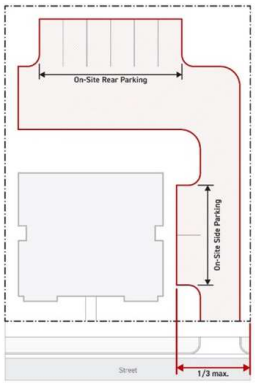
c. On a corner site without alley access, vehicular access is provided from the side street if not a major thoroughfare. No more than two driveways, one per street frontage, are allowed per site.

d. A driveway to or from a street may be no wider than 16 feet. One-way driveways are permitted for corner property and must meet the design manual.



(6) Parking requirements for multi-unit residential developments must meet section 26-492. In addition, one guest parking space must be provided for every 6 dwelling units.

(7) All required parking spaces must be provided on-site and must be located to the side or rear of any improvements on the property; see the example below.



(8) Building height may not exceed 30 feet as measured from average grade to the highest roof surface. Roof surface is defined, in accordance with Section D of the International Fire Code, as the measurement to the eave of a pitched roof, the intersection of the roof to the exterior wall, or the top of a parapet wall, whichever is greater.

(Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Secs. 42-238—42-250. Reserved.

DIVISION 7. PARKS AND PRIVATE PARKS

Sec. 42-251. Applicability.

(a) The regulations contained in this division shall be applicable to all property within the city limits of the city proposed to be developed in whole or in part for single family residential, multi-unit residential or multifamily residential purposes for which a subdivision plat or development plat is required, unless otherwise noted herein.

(b) These regulations do not apply to replats of land owned by a governmental unit.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-252. Park dedication required.

(a) Each single-family residential subdivision, multi-unit residential development, and multifamily residential development shall provide one or a combination of the following for park or open space purposes:

(1) Fee simple dedication of land suitable in type and location for development of parks within the park sector in which the subdivision or development is located, which land may be, but is not required to be, located within the subdivision or development creating the dedication requirement; or

(2) Payment of fees in lieu of the dedication of land for parks in the amount established in section 42-253 of this Code.

(b) The amount of land required to be dedicated for parks shall be proportionate to the development calculated on the basis of the following formula:

$$\frac{10 \text{ ac.} \times \text{No. of DU} \times \text{PPDU}}{1000}$$

Where:

DU = the number of dwelling units in the development;

PPDU = 1.8, the number of persons per dwelling unit for each dwelling unit; and

1000 = the number of residents per 10 acres of park land.

(c) Recordation of a subdivision plat subject to the requirements of this section shall require one or a combination of the following necessary to satisfy the requirements of subsection (a) of this section taking into account any credits authorized pursuant to section 42-254 of this Code:

(1) For land dedicated to parks within the subdivision, a fee simple dedication on the subdivision plat of the required park land as approved by the parks director;

(2) For land dedicated to parks outside the subdivision, evidence of recording in the appropriate real property records of a deed of the required park land as approved by the parks director;

(3) For land established as private park, identification of the required amount of private park as one or more restricted reserves with the following notation on each private park reserve within the subdivision:

'RESERVE RESTRICTED TO PRIVATE PARK PURSUANT TO CHAPTER 42 OF THE CODE OF ORDINANCES, CITY OF HOUSTON, TEXAS. THIS PRIVATE

PARK DESIGNATION MAY NOT BE CHANGED WITHOUT APPROVAL OF THE PLANNING COMMISSION OF THE CITY OF HOUSTON, TEXAS.'

Land established as a private park for the purposes of this section may not be replatted to change this designation pursuant to section 212.0146 of Chapter 212 without the approval of the commission. The commission shall not approve a replat that would change the private park designation unless it determines that alternative private park space that satisfies the requirements of this subsection is available within the original subdivision generating the dedication requirement.

(4) Confirmation of deposit into the park and recreation dedication fund of the fee in lieu of dedication in the amount established pursuant to section 42-253 of this Code; or

(5) A statement on the plat that payment of a required fee in lieu of dedication has been deferred and shall be paid at the then-current fee prior to the issuance of a building permit for each single family dwelling unit within the subdivision.

(d) Issuance of a building permit for a single family dwelling unit in a subdivision subject to the requirements of this section for which the payment of fees in lieu of dedication has been deferred pursuant to item (5) above shall require confirmation of deposit into the park and recreation dedication fund of the fee in lieu of dedication in the amount per dwelling unit then required by section 42-253 of this Code.

(e) Issuance of a building permit for a multi-unit residential or multifamily residential development subject to the requirements of this section shall require one or a combination of the following necessary to satisfy the requirements of subsection (a) of this section taking into account any credits authorized pursuant to section 42-254:

(1) For land dedicated for park purposes, evidence of recording in the appropriate real property records of a general warranty deed of the required park land as approved by the parks director;

(2) Identification of the required amount of private park on an approved development plat; or

(3) Confirmation of deposit into the park and recreation dedication fund of the fee in lieu of dedication in the amount established pursuant to section 42-253 of this Code.

(f) If the calculation in subsection (b) of this section results in a requirement of less than one-half acre for property located in the area within and bounded by Interstate Highway 610 or one acre for property located in the area outside of Interstate Highway 610, the parks director may require the developer to pay the fee in lieu of land dedication as provided in section 42-253 of this Code. The parks director may approve the dedication of less than one-half acre of property in the area within and bounded by Interstate Highway 610 or one acre of property in the area outside of Interstate Highway 610 if the proposed park is a pocket park the need for which is identified in the Parks Master Plan, is adjacent to an existing park or other public space, provides access to a park, or otherwise presents an opportunity to enhance the city parks system consistent with the Parks Master Plan. This limitation, however, shall not apply to limit the size of compensating open space, which shall be governed by section 42-182 of this Code.

(g) Notwithstanding any other provision of this section, the owner of property for which dedication is required may pay a fee in lieu of dedication in the amount determined pursuant to section 42-253 of this Code, and the parks director shall not refuse any payment of a fee in lieu of dedication.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2023-801, § 3(Exh. A), 9-27-2023, eff. 11-27-2023)

Sec. 42-253. Fees in lieu of land dedication.

(a) In some instances, the parks director may require the developer to pay fees in lieu of dedicating land. In making this determination, the parks director shall consider the following factors:

(1) Whether sufficient parkland and open space exists in the area of the proposed development; and

(2) Whether recreation potential for an area would be better served by expanding or improving existing parks, by adding land or additional recreational amenities.

The parks director shall notify the developer in writing of the park director's decision to require a fee in lieu of dedication and the reason for the decision. The developer shall be entitled to appeal the park director's decision to the commission.

(b) The dedication requirement shall be met by a payment in lieu of land dedication at a specified dollar amount per dwelling unit determined annually pursuant to this section. Cash payments may be used only for acquisition or improvement of park land and facilities located within the same park sector as the development. Fees may be applied to any type of park site or improvement within the sector in accordance with park department prioritization.

(c) The initial fee in lieu of dedication shall be $700.00 per dwelling unit. Each year following certification of the city's tax roll, the director and the parks director shall report to the commission on the amount of fees in lieu of dedication received, expended or encumbered during the preceding 12 months. The report shall also include an analysis of changes in the taxable value of land within the city as certified by each respective county appraisal district. The director and the parks director may recommend an increase in the fee in lieu of dedication based on increases in appraised value. The commission shall review the report, conduct a public hearing on any recommended increase in the fee in lieu of dedication, and issue a final report. The commission shall file its report, which shall advise of any need to increase the fee in lieu of dedication, with the city council. The fee in lieu of dedication shall thereafter, upon approval by the city council, be the amount stated for this provision in the city fee schedule.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-254. Calculations; deductions and credits.

(a) *Initial calculations.* The parks director shall determine the amount of land required to be dedicated or fees in lieu of dedication to be paid in accordance with sections 42-252 and 42-253 of this Code and as further provided in this section.

(1) The parks director shall first calculate the amount of park dedication required using the formula contained in subsection (b) of section 42-252 of this Code;

(2) If the owner of the subdivision or development elects to pay a fee in lieu of dedication, or the parks director requires the payment of a fee in lieu of dedication pursuant to section 42-253 of this Code, the parks director shall calculate the fee by multiplying the number of dwelling units in the subdivision or development by the then-current fee established pursuant to section 42-253 of this Code;

(3) If the owner of the subdivision or development elects to satisfy the requirements of this division by a combination of dedication of land and payment of a fee in lieu of dedication, the parks director shall:

a. First, calculate the total park dedication requirement;

b. Second, subtract from the total park dedication requirement the amount of land for parks to be dedicated;

c. Third, calculate a percentage as follows: (remaining park dedication requirement (total park dedication requirement) × 100; and

d. Fourth, apply the resulting percentage to the total fee in lieu of dedication to determine the amount of fee

in lieu of dedication that has to be paid. This percentage shall be applied to the then-current fee in lieu of dedication per lot when payment of the fee in lieu of dedication is deferred pursuant to subsection (c) of section 52-252 of this Code to determine the fee per dwelling unit.

(b) *Deductions and credits.*

(1) The number of dwelling units shall be based on an incremental increase in dwelling units. The parks director shall deduct from the initial calculation pursuant to subsection (b) of section 42-252 of this Code the number of dwelling units that the applicant demonstrates to the satisfaction of the parks director existed prior to the application for the subdivision plat or development plat generating the dedication requirement;

(2) The parks director shall reduce the dedication requirement of section 42-254(a)(1) or the fee in lieu of dedication of section 42-254(a)(2), as applicable, by one or more of the following credits:

a. Up to a maximum of 100 percent of the total requirement credit shall be given for each acre or portion thereof of private park land provided within the subdivision or development generating the dedication requirement that meets the requirement of this part. For example, if the total dedication requirement is 5 acres and the applicant proposes to include 2.1 acres of private park within the subdivision, 2.1 acres will be deducted from the total requirement. Private park land eligible for credit must be centrally located within the development, designed so that it cannot easily be joined into one or more adjacent lots with a fence, legally and practically accessible to all residents of the development, and of a size, shape and configuration so that it is likely to be used by residents of the development as determined in comparison to city park standards. Equipment in a private park shall comply with city standards applicable to the type of equipment. When private park land is also compensating open space, these requirements prevail over any contrary requirements of section 42-182 of this Code.

b. Up to a maximum of 100 percent of the total requirement credit shall be given for each acre or portion thereof of private park land provided within the subdivision generating the dedication requirement attributable to lots that are for the provision of low and moderate income single family housing as determined pursuant to section 47-319(2) of this Code. If credit is given on a subdivision plat for low and moderate income single family housing, the property owner shall certify prior to the issuance of a building permit for the house that the initial purchase price does not exceed the latest available 12-month listing for median price single family housing in the city as published by the Real Estate Center at Texas A&M University. In the event the initial purchase price exceeds this amount, the property owner making the certification shall pay to the city the then-current fee in lieu of dedication for a single family dwelling unit. If publication of the median price for single family housing is discontinued by the Real Estate Center at the Texas A&M University, the mayor is authorized to select another publication that lists the median price of single family houses in the city.

c. Up to a maximum of 100 percent of the total requirement credit shall be given for each acre or portion thereof of park land provided as a

greenbelt along a creek bed or around the perimeter of the subdivision or development generating the dedication requirement, including improvements to a hike or bike trail that meet city standards.

d. Up to a maximum of 100 percent of the total requirement credit shall be given for each acre or portion thereof of park land that links one or more parks.

(c) Credits are cumulative, but in no case other than as provided in subitems b and d above shall credits given under this section exceed 100 percent.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-255. Park and recreation dedication fund.

(a) There is hereby established a special fund for the deposit of all sums paid in lieu of land dedication under this division, which fund shall be known as the "Park and Recreation Dedication Fund." Funds shall only be released from the Park and Recreation Dedication Fund upon approval by the city council of a plan to utilize the funds to build or enhance a park within the park sector from which the funds originated.

(b) The city shall account for all sums paid in lieu of land dedication under this division with reference to the individual subdivisions or developments that generate the dedication requirement. Any funds paid for such purpose must be obligated by the city within three years after the completion of the contributing subdivision or development, or the completion of the final phase or section of the respective subdivision or development. If the funds cannot be encumbered within the initial three year time period, the parks director may request from the city council a time extension for a period not to exceed an additional one year for the expenditure of the funds. If the extension request is granted and the funds cannot be expended within the one-year extension, the parks director may request from the city council an additional one year extension. Each extension request shall be submitted in writing by the parks director 60 days prior to the expiration period for the funds to be committed by the city, and shall include a detailed justification for the extension request. The owners of the property on the last day of the initial three year period, or any extension thereof, shall be entitled to a pro rata refund of the sum, computed on a dwelling unit basis. The city shall give notice to the owner of the property as shown on the most recent certified tax roll of the county in which the property is located of the right to a refund and the procedure to claim a refund. Notice shall be given by letter deposited into the United States Postal Service, postage paid, and shall be deemed given on the date of deposit into the United States Postal Service. The owners of the property must request a refund within one year of notice entitlement. Such request must be made in writing to the parks director, or such right shall be barred.

(c) Where funds have been paid or a dedication for a phased development has been made in accordance with section 42-254 of this Code, and the original developer does not complete all phases of the entire development, credit for any prior dedication or payment shall be applied to subsequent subdivision plats or development plats for the same land on a pro-rata basis by dwelling unit. Increased density shall require the dedication of additional parkland or payment of additional fees.

(d) Moneys in the park dedication fund shall be used for the acquisition and improvement of parks and shall not be used for park maintenance or city staff overhead expenses. Indirect costs reasonably incurred in connection with park acquisition and improvement, such as appraisal fees, environmental assessment costs, legal expenses, engineering and design costs, shall be limited to not more than five percent of total acquisition or improvement cost.

(e) For purposes of this section only, a park is defined as either of the following: (i) park as defined in section 42-1 of this Code, or (ii) an area open to the public that may be used for passive or active recreational use or otherwise left in an unimproved state, and on which the city may construct or place improvements pursuant to a written agreement.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2019-1028, § 3, 12-11-2019)

Sec. 42-256. Park location standards.

A goal of this article is to ensure that parks are easy to access, can be linked with nearby park and recreational facilities, and are generally open to public view or accessible by easement so as to benefit area development, enhance the visual character of the city, protect public safety and minimize conflict with adjacent land uses. Land proposed to be dedicated for parks shall meet the following location standards:

(1) Where physically feasible, parks should be bound by streets or by other public uses (e.g., school, library, recreation center) to facilitate access and possible joint use.

(2) Where residential lots directly abut a park, consideration should be given to future owners' access to the facility and protection from future park uses, such as lighting and noise.

(3) Street or pedestrian connections to existing and future adjoining subdivisions, private parks or park amenities are desirable to provide reasonable access to parks and private parks.

(4) Where a proposed subdivision would block or limit access to a park, access ways of not less than ten feet in width may be required through the private development to provide public access to the park. Any easement or private park provided for this purpose will be credited toward any land dedication requirement.

(5) The land must comply with the Parks Master Plan.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-257. Park land acceptance standards.

(a) The city council reserves the right to accept or reject an offer of dedication, after consideration of the recommendation of the parks director, and to require the payment of fees in lieu of dedication as provided herein in section 42-254 of this Code.

(b) Land dedicated for park and recreational areas shall be of such size, dimensions, topography and general character as is reasonably required by the city for the type of use necessary to meet the requirements of park facilities as identified for that geographic sector in the city's most current Parks Master Plan.

(c) Land proposed to be dedicated for parks generally shall meet the following requirements. The parks director may recommend the acceptance of the dedication of property that does not meet these criteria if the property is adjacent to an existing park or other public space, provides access to a park, or otherwise presents an opportunity to enhance the city parks system consistent with the Parks Master Plan.

(1) *Minimum size and configuration standards.*

a. Unless determined otherwise by the parks director pursuant to subsection (f) of section 42-252 of this Code, the minimum size of land dedicated for a park in the area within and bounded by Interstate Highway 610 shall be one acre.

b. Unless determined otherwise by the parks director pursuant to subsection (f) of section 42-252 of this Code, the minimum size of land dedicated for a park in the area outside of Interstate Highway 610 shall be two acres.

c. Land dedicated for a park shall constitute a contiguous piece of property of such dimensions that it can physically accommodate the types of improvements associated with the park type in the Parks Master Plan.

(2) *Location and access standards.*

a. The land shall meet the applicable location requirements of section 42-256 of this Code.

b. The land shall have connectivity to a public street appropriate for the size and use of the park.

(3) *Physical characteristics standards.*

a. The land shall be vacant and cleared of nonvegetative material and shall contain no conditions that could constitute a violation of chapter 10 of this Code.

b. The land shall not have severe slopes or unusual topography that would not allow the park to be used for its intended purpose without recontouring the property.

(4) *Minimum environmental conditions standards.* Unless provided otherwise in rules promulgated by the parks director, the land shall be reasonably free of recognized environmental conditions. If land is proposed to be dedicated by subdivision plat, prior to submittal of an application for final subdivision plat approval the applicant shall submit either a phase I environmental assessment that shows no environmental conditions exist on the property or a phase II environmental assessment that shows no remediation is required.

(d) Land in a federally designated floodplain or floodway may be dedicated as park land if the land otherwise meets the acceptance standards for park land of this section and any rules promulgated by the parks director.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-258. Minimum park improvement standards.

Prior to acceptance by the city and prior to the filing of the final subdivision plat, any park land dedicated to the city or developed as a private park for credit against park land dedication under this division shall meet the standards developed by the parks department. Any improvements provided by the developer to park land shall comply with applicable regulations and codes set forth for such improvements.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Sec. 42-259. Administration.

(a) This article shall be administered by the planning department as part of the subdivision process within the city limits, in cooperation with the parks department. The parks board shall have the authority to manage and expend funds in accordance with the city's adopted parks master plan, the capital improvements plan for parks, and related official documents to the extent authorized by the city council for that purpose.

(b) The parks director is authorized to promulgate guidelines for the administration of this article that are consistent with the requirements of this article.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Secs. 42-260—42-270. Reserved.

DIVISION 8. RESIDENTIAL BUFFERING STANDARDS

Sec. 42-271. Applicability.

(a) The requirements of this division shall apply to all abutting developments within the city except as provided below. An addition to an existing abutting development shall be treated as though only the addition is a new development. The provisions of section 42-162 relating to reconstruction after casualty shall apply to this division.

(b) The requirements of this division shall not apply to any of the following:

(1) An abutting development that is contiguous to or takes access from a major thoroughfare or transit corridor street;

(2) An abutting development that is contiguous to or takes access from both a local or collector street and a major thoroughfare or transit corridor street; or

(3) An abutting development located within a major activity center.
(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2023-64, § 3, 1-25-2023, eff. 2-25-2023)

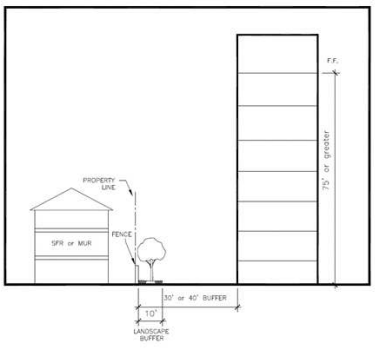
Sec. 42-272. Abutting development standards.

(a) The following standards shall apply to a high-rise or mid-rise structure located on an abutting development that is contiguous to or

takes access from a public street, except as provided in section 42-271(b). For purposes of this section, a private roadway shall be treated as: (i) a major thoroughfare if it intersects a major thoroughfare; (ii) a collector street if it intersects a collector street and not a major thoroughfare, or (iii) a local street if it does not intersect a major thoroughfare or a collector street.

(1) An abutting development shall provide a buffer area from any side of a property line that abuts lots or tracts in use for or restricted to single-family residential use or multi-unit residential use if the majority of the lots or tracts abutting the shared side property line are in use for or restricted to single family residential or multi-unit residential use, and 60% or more of the length of the shared property line is in use for or restricted to single family residential or multi-unit residential use. No structure or covered parking may be located within the buffer area. The buffer area may be used for vehicular access and surface parking.

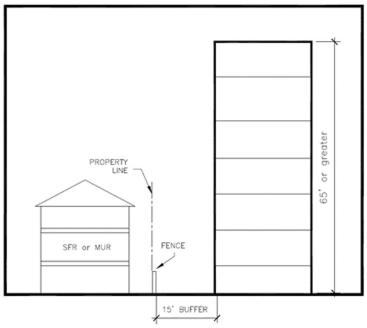
a. For an abutting development with a high-rise structure that is required to provide a buffer area, and is contiguous to or takes access from a collector street, the buffer area shall be 30 feet from the property line of the abutting property in use for or restricted to single-family residential or multi-unit residential uses.



BUFFER FOR HIGH-RISE

b. For an abutting development with a high-rise structure that is required to provide a buffer area and is contiguous to or takes access from only local streets, the buffer area shall be 40 feet from the property line of the abutting property in use for or restricted to single-family residential or multi-unit residential uses.

c. For an abutting development with a mid-rise residential structure that is required to provide a buffer area and is contiguous to or takes access from a local street only, the buffer area shall be 15 feet from the property line of an abutting property in use for or restricted to single family residential or multi-unit residential uses.



BUFFER FOR MID-RISE

d. No buffer area is required for buildings less than 65 feet in height.

(2) The buffer area required for high-rise structures shall include a ten-foot landscape buffer from the property line of the abutting development. The landscape buffer shall include:

a. An eight-foot tall solid masonry wall along the property line or an eight-foot tall wooden fence if a utility easement runs along the property line;

b. Grass, shrubs, other vegetation, or non-vegetative permeable cover with no paving or other impervious cover within the landscape buffer;

c. No mechanical equipment; and

d. At least one tree, planted or preserved, for every 20 feet of the length of the side of the property line. The trees shall be arranged throughout the landscape buffer to provide additional screening to adjacent single-family or multi-unit residential uses and avoid damage to existing plant material. Possible arrangements include planting in parallel, serpentine, or broken rows. Each tree shall have a minimum caliper of 1.5 inches, and be a species listed on the street tree list or parking lot tree list issued and revised by the director of parks and recreation pursuant to article V of Chapter 33. Compliance with this subsection is not required where a utility easement runs along, over or on the shared property line.

Compliance with this subsection shall satisfy the requirements of section 33-128 of this Code.

(b) The commission is authorized to grant a variance or special exception to the requirements of this section in accordance with the provisions of sections 42-81, 42-82, and 42-83. (Ord. No. 2013-343, § 3(Exh. A), 4-24-2013; Ord. No. 2023-64, § 4, 1-25-2023, eff. 2-25-2023)

Sec. 42-273. Major activity center designation.

(a) The city council may designate any area within the city as a Major Activity Center that meets each of the following criteria:

(1) The area contains two or more major thoroughfares or abuts a freeway, tollway, or transit corridor street;

(2) The area is comprised of at least 400 acres of land;

(3) The area is comprised of at least 10,000,000 square feet of gross floor area developed for uses other than single-family residential use;

(4) Not more than three percent of the area is in use for or restricted to single-family residential use;

(5) The area contains properties used for two or more of the following uses: office, commercial, institutional, or multi-family.

(6) The area is comprised of contiguous tracts and contains no out tracts as determined by the director in his sole professional judgment.

(b) The city council may expand the boundaries of a MAC to include any area abutting the MAC if the boundaries of the MAC as expanded continue to satisfy the criteria of subsection (a) of this section.

(c) An application for the designation or expansion of a MAC shall be filed with the department by one or more owners of property within an area that meets the criteria of subsection (a) of this section, and shall be made on an application form provided by the department. The director shall forward applications that meet the criteria of subsection (a) of this section to the commission which shall hold a public hearing on the application.

(d) The director shall cause notice to be given of a public hearing before the commission to each owner of property within the proposed MAC or area proposed to be added to a MAC and each owner of property in use for or restricted to single-family residential use within 250 feet of the proposed area as shown on the current appraisal district records. Notice shall be given by United States mail no later than 30 days before the date of the public hearing. The applicant shall give notice of the public hearing before the commission by posting at least two signs within the boundaries of the proposed MAC no later than 30 days before the date of the public hearing. The signs shall be placed at locations selected by the director as reasonably calculated to be seen by occupants of property within the proposed MAC and facing at least one public right-of-way. Each sign shall be a minimum of four by eight feet in size, and shall contain at a minimum the following items of information:

(1) That the area is being considered for designation as a MAC;

(2) A general description of the area being considered for designation;

(3) The date of the public hearing on the designation; and

(4) The name and telephone number of a person within the department who can be contacted for additional information.

If the director, in his sole discretion, determines that the size, configuration, traffic patterns or other characteristics of the proposed area warrant the placement of additional signs, the director shall cause an appropriate number of additional signs to be posted. All costs associated with the notice provisions of this section are to be paid by the applicant.

(e) After the close of the public hearing, the commission shall vote on whether to recommend to the city council the designation of the proposed area that meets the criteria of subsection (a). If the commission votes to recommend the designation of the proposed area, by majority vote of those members present and voting, the director shall forward the recommendation to city council for consideration. If the commission does not vote to recommend the designation of the proposed area, the action of the commission with respect to the application is final. If the commission does not recommend designation of an area as a MAC or as an addition to a MAC, the department shall not accept an application for designation of the same or substantially the same area for one year following the date of the commission action.

(f) Upon receipt of the recommendation of the commission, the city council shall hold a public hearing on the recommendation. After the close of the public hearing the city council shall consider the recommendation of the commission and, consistent with the criteria of subsection (a), approve or deny the proposed designation. The decision of the city council with respect to a designation shall be final. If the city council does not designate an area proposed as a MAC, the department shall not accept an application for designation of the same or substantially the same area for one year following the date of the city council action.

(Ord. No. 2013-343, § 3(Exh. A), 4-24-2013)

Secs. 42-275—42-600. Reserved.

ARTICLE IV. ENHANCED PEDESTRIAN REALM STANDARDS*

DIVISION 1. IN GENERAL

Sec. 42-601. Purpose and applicability.

(a) This article applies to any person or entity seeking approval for a building permit, certificate of occupancy, or other construction permit or approval required by this Code along a walkable places street or transit-oriented development street when one or more of the following is filed:

(1) A development plat;

(2) A building permit subject to the code compliance review in section 10-2 of this Code;

(3) A sidewalk plan required under article XXII of Chapter 40 of this Code;

(4) A landscape plan required under section 33-122 of this Code;

(5) A site plan required under section 26-473 of this Code; or

(6) A driveway permit.

(b) This article establishes standards to facilitate how people interact with the built environment and to implement successful context-sensitive, pedestrian- and bike-friendly development that also accommodates automobiles.

(c) This article establishes standards to encourage the development of safe pedestrian and multi-modal transportation routes for new development and certain redevelopment or alterations to structures fronting on all transit-oriented development and walkable places streets.

(d) These standards are to establish consistent public realm design and reinforce safe, pleasant walking experiences for pedestrians of all ages

*__Editor's note—__Ord. No. 2020-684, § 2(Exh. A), adopted August 5, 2020, removed and replace ch. 42, Art. IV, in its entirety to read as herein set out. Former Art. IV pertained to Transit Corridor Development and derived from Ord. No. 2013-343, § 3(Exh. A), 4-24-2013.

and abilities. At a minimum, these standards provide a pedestrian-scale buffer area from vertical surfaces or walls and allows people to interact with or enter/exit buildings with minimal interference with vehicular traffic.
(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 42-602. Cumulative effect.

Except as expressly provided, the provisions of this article are cumulative of all other provisions of this Code, and other regulations of the city, including without limitation, the Construction Code, the Fire Code and the design manual, and all applicable state and federal laws and regulations.
(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 42-603. Pedestrian realm plan.

(a) An applicant shall submit a pedestrian realm plan to the department prior to obtaining a certificate of occupancy or a building permit, or in conjunction with a development plat required by chapter 42 of this Code. This plan shall:

(1) Be accompanied by the non-refundable fee set forth for this provision in the city fee schedule when the plan is not submitted in conjunction with a development plat;

(2) Be in the form prescribed by the planning official; and

(3) Describe the proposed pedestrian realm, including the locations of existing and proposed sidewalks, pedestrian amenities and improvements, obstructions, utility lines (both above and below ground), roadways, street lights, required street trees, landscape elements, hardscape, softscape, construction details, and other

information required by the planning official or the city engineer to determine compliance with this article.

(b) Upon receipt of a complete pedestrian realm plan, the planning official shall review the plan to verify compliance with this article. The planning official shall deny in writing any plan that does not comply with the requirements of this article.

(c) The building official shall not issue a building permit for the construction of a building or alteration to a building or tract within the city unless the planning official approves the pedestrian realm plan verifying compliance with this article.
(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 42-604. Modification of standards, process.

(a) The planning official, in collaboration with the city engineer, may approve a modification to the standards of section 42-621, 42-651, or 42-653 of this Code.

(b) To request approval for a modification, an applicant shall:

(1) File an application in the form prescribed by the planning official;

(2) Pay the non-refundable fee set forth for this provision in the city fee schedule and all costs associated with the notice provisions of this section; and

(3) Provide documentation to support the required findings in subsection (c) of this section.

(c) In collaboration with the city engineer, the planning official shall approve the application, with or without conditions, if the following conditions exist:

(1) Either:

a. The characteristics of existing permitted development, land uses, or other physical conditions within the immediate vicinity of the pedestrian realm create unsafe conditions related to the practical use of the property; or

b. The standard creates an impractical design or a development that is otherwise contrary to sound public policy. A modification to the standard would, in the sole professional judgement of the planning official and city engineer, create a more practical or technically feasible alternative.

(2) The circumstances supporting the approval are not the result of hardship created or imposed by the applicant; and

(3) Approval creates an alternative that furthers the intent and purposes of this article.

(d) The planning official shall conduct their review and advise the applicant of a decision or request more information within 30 days from the date a complete application is submitted to the planning official.
(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Secs. 42-605—42-620. Reserved.

DIVISION 2. PEDESTRIAN REALM

Sec. 42-621. Pedestrian realm standards.

(a) The pedestrian realm shall comply with all the following standards, unless a modification is granted under section 42-604 of this Code:

(1) Meet the minimum width standards shown below:

Classification	*Street Type*	*Minimum Width of the Pedestrian Realm*
WP Street	All	As established by the walkable places plan
Transit Corridor Street	Only one vehicular through traffic lane in each direction	15 feet
	All others	20 feet

Classification	*Street Type*	*Minimum Width of the Pedestrian Realm*
TOD Street	Major thoroughfare with a right-of-way width of 80 feet or less as designated by the MTFP	15 feet
	All other major thoroughfares	20 feet
	Any street that is not curb and gutter	10 feet measured from the functional edge furthest from the roadway of an adequate drainage facility, as approved by the city engineer
	All others	15 feet

(2) Any building constructed within the pedestrian realm above-grade shall be prohibited from having support columns within the minimum width requirement of the pedestrian realm and must maintain an unobstructed vertical clearance of at least:

a. 8 feet for any uninhabitable shade structure or unenclosed balcony; and

b. 10 feet for all other buildings or structural elements built over the pedestrian realm.

This vertical clearance is measured from the top of the highest point of the ground or sidewalk of the pedestrian realm under the building or structure to the lowest point of the building or structure over the pedestrian realm;

(3) Meet the landscaping requirements of articles V and VI of chapter 33 of this Code, except that the minimum caliper of each required street tree, as the terms are defined in section 33-101 of this Code, shall be:

a. Three inches along each transit corridor street or major thoroughfare; and

b. Two inches along all other streets.

(4) The maximum softscape area in the pedestrian realm shall be 35% of the surface area of the pedestrian realm excluding any driveways. This requirement shall not apply to single-family residential uses; and

(b) Any fence, wall, or barrier within the pedestrian realm shall be 48 inches or less in height and non-opaque.

(c) Any sidewalk and safety buffer within the pedestrian realm shall conform with the requirements of article XXII of chapter 40 of this Code.

(d) Any bulk container, as the term is section 39-1 of this Code, and related screening for compliance with article VI of chapter 39 of this Code shall be located outside of the pedestrian realm.

(e) The area in the pedestrian realm outside the unobstructed sidewalk may accommodate activities such as outdoor seating or merchant displays associated with adjacent uses provided, however, that such activities within the public right-of-way shall comply with the applicable requirements of this Code.
(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 42-622. Automobile-related uses.

Automobile-related uses are prohibited within the pedestrian realm, except for:

(1) A driveway through the pedestrian realm that is perpendicular to the street;

(2) A pedestrian drop-off and loading area along a secondary street that is beyond the minimum pedestrian realm width required by this division and approved by the traffic engineer;

(3) A pedestrian drop-off and loading area along a primary street that is beyond the minimum pedestrian realm width required by this division when, in the professional judgement of the planning official made in coordination with the traffic engineer, unique traffic circulation conditions exist in the area that

make it impractical to have a pedestrian drop-off and loading area along a secondary street;

(4) On-street cutback parking or on-street pedestrian drop-off and loading area approved by the traffic engineer where a minimum pedestrian realm width of ten feet is maintained behind the back-of-curb adjacent to the cutback parking or pedestrian drop-off and loading area; and

(5) Parking or other related uses constructed below-grade or sidewalk of the pedestrian realm.

(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Secs. 42-623—42-650. Reserved.

DIVISION 3. ADDITIONAL BUILDING AND SITE DESIGN STANDARDS

Sec. 42-651. Ground floor façade.

The ground floor façade of buildings used for other than single family residential occupancy shall comply with the following standards, unless a modification is granted under section 42-604 of this Code:

(1) A minimum of 50% of the ground floor façade of a building with linear street frontage along a primary street shall be transparent openings such as windows or doors into occupiable space.

(2) A minimum of 40% of the ground floor façade along a secondary street shall be transparent openings such as windows or doors into occupiable space.

(3) When a building has facades on three or more streets designated as a transit-oriented development street or walkable places street, the applicant may designate, in writing to the planning official, one secondary street frontage to be exempted from the requirements of this section.

(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 42-652. Public entrances and doors.

(a) A non-single-family residential building constructed adjacent to the pedestrian realm of a walkable places street or transit-oriented development street subject to this article shall provide and maintain at least one public entrance to the pedestrian realm.

(b) No door to a building or structure, other than a door used only for emergency access, shall swing into the minimum unobstructed sidewalk within the pedestrian realm.

(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 42-653. Driveway locations and dimensions.

The following standards apply to driveway locations and dimensions unless a modification is granted under section 42-604 of this Code:

(1) The minimum distance between driveways along a walkable places street or transit-oriented development street shall be 300 feet where one or more lots on the same street are under one ownership, legal interest, or common control, except that:

a. When a lot has linear street frontage along more than one street, no new driveway shall be permitted along a primary street. If two or more streets are designated as a primary walkable places or transit-oriented street, then the applicant may select one street where the driveway standards otherwise required by the section may apply; and

b. A lot that has linear street frontage along three or more walkable places streets or transit-oriented development streets may have one non-primary street that is exempt for the driveway standards of this section.

(2) The maximum width of a driveway shall be 30 feet for a two-way driveway or 15 feet wide for two one-way driveways.

(3) When there is an existing driveway along a primary street, the applicant may modify

or relocate the driveway(s) and have one driveway from the primary street in accordance with the distance and width requirements of this section.

(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Sec. 42-654. Bicycle parking.

(a) For all classifications listed under classes 1 - office, 6 - recreation and entertainment, 7 - food and beverage, and 8 - retail services in section 26-492 of this Code, two bicycle spaces shall be required for each 10,000 square feet of gross floor area up to 150,000 square feet of GFA.

(b) One bicycle space shall be required for every 20 dwelling units in an apartment, as those terms are defined in section 26-472 of this Code.

(c) Bicycle spaces required by this section shall conform to the design criteria of section 26-583 of this Code.

(d) This section shall prevail over the minimum number of bicycle spaces otherwise required by this Code.

(Ord. No. 2020-684, § 2(Exh. A), 8-5-2020)

Secs. 42-655—42-700. Reserved.

Chapter 43

POOL AND SPA SAFETY*

Art. I. **Generally, §§ 43-1—43-30**
Art. II. **Permits, Inspections, Enforcement, Etc., §§ 43-31—43-39**

ARTICLE I. GENERALLY

Sec. 43-1. General policy.

It shall be the general policy of the City of Houston Health Department to enforce the most stringent pool safety standards permitted by law. The health officer may refer those matters involving state or federal laws, rules or regulations that the city is not authorized to enforce to the state or federal office or agency having jurisdiction.
(Ord. No. 2010-908, § 2(Exh. A), 11-17-2010, eff. 1-1-2011; Ord. No. 2015-820, § 34, 8-26-2015)

Sec. 43-2. Definitions.

The following words and terms when used in this chapter shall have the following meanings unless the context clearly indicates otherwise.

Abate means to remove or demolish and shall include filling an aquatic structure to the surface with earth, bank sand or other similar material approved by the health officer.

Approved drain cover means a suction outlet drain cover that meets the requirements of the VGBA.

Aquatic structure means a pool, spa, PIWF or residential pool or spa.

Department means the Houston Health Department.

Facility means a pool, spa or PIWF and the restrooms, dressing rooms, equipment rooms, deck, enclosure, and other appurtenances directly serving the pool, spa or PIWF.

Inactive aquatic structure means an aquatic structure that is not functioning, operating, or in use, or that has been abandoned but not abated.

Operator means the owner of the property upon which an aquatic structure is located, or any business manager, complex manager, manager of a property owners association, rental agent or other individual who is in charge of the day-to-day operation or maintenance of an aquatic structure or the property on which it is located.

Permit means an operating permit for a facility issued by the department pursuant to this chapter.

Person in charge means an individual who is i) actually present or available at a facility at a given moment and is in immediate charge of the day-to-day operation or maintenance of the facility, ii) the supervisor of the facility at the time, or iii) the operator.

Pool means any man-made permanently installed or non-portable structure, basin, chamber, or tank containing or designed to contain a body of water to be used for human swimming, diving, aquatic sports, or other aquatic activity, including any pool that is categorized as a Class A, Class B, or Class C public pool pursuant to Section 265.182(76) of Title 25 of the Texas Administrative Code, regardless of whether a fee is charged for use, and regardless of whether its use has been abandoned or discontinued; provided, however, that this term does not include a residential pool or spa or a pool that has been abated.

***Editor's note—**Ord. No. 2010-908, § 2(Exh. A), adopted November 17, 2010, effective January 1, 2011, amended Ch. 43 in its entirety to read as herein set out. Formerly said Chapter was entitled swimming pools and derived from Code 1968, §§ 36-144—36-150; Ord. No. 85-1326, § 1, 7-31-85; Ord. No. 90-635, §§ 144, 145, 5-23-90; Ord. No. 92-184, § 1, 2-19-92; Ord. No. 94-1268, § 4, 11-22-94; Ord. No. 96-732, § 1, 7-17-96; Ord. No. 02-399, § 89, 5-15-02; Ord. No. 02-528, § 13e., 6-19-02. See the Code Comparative Table.

Cross references—Buildings generally, Ch. 10; health generally, Ch. 21; fencing or filling of abandoned swimming pools, § 28-12.

PIWF (public interactive water feature and fountain) means any indoor or outdoor water installation maintained for public recreational use, including but not limited to water sprays, dancing water jets, waterfalls, dumping buckets, or shooting water cannons in various arrays.

Property owners association means an association of property owners as defined in Section 204.004 of the Texas Property Code.

Remodeled or remodeling means modification of the design, configuration, capacity or components of an aquatic structure, including, but not limited to, reconfiguration of a pool or the addition of new plumbing and filtration pipes to an aquatic structure; provided, however, that this term does not include minor alterations, such as removal of a pool lip, replacing a pump, or replastering the inside of such structure.

Residential pool or *spa* means a pool or spa that is located on private property under the control of the property owner or the owner's tenant and that is intended for use by not more than two resident families and their guests, including a pool or a spa serving only a single-family home or duplex.

Spa means a body of water intended for the immersion of persons in either hot or cold water, circulated in a closed system, and not intended to be drained and refilled after each use. A spa can include a filter, a heater, a pump, a blower and water sanitizing equipment. The term includes a swim spa or exercise spa, including any spa that is categorized as a Class A, Class B or Class C spa pursuant to Section 265.182(94) of Title 25 of the Texas Administrative Code.

VGBA means the Virginia Graeme Baker Pool and Spa Safety Act, 15 U.S.C. Section 8001 et seq.

(Ord. No. 2010-908, § 2(Exh. A), 11-17-2010, eff. 1-1-2011; Ord. No. 2015-820, §§ 29, 34, 8-26-2015; Ord. No. 2021-1037, § 20(Exh. I.48), 12-1-2021, eff. 4-1-2022)

Sec. 43-3. Responsibilities of operator.

(a) It shall be the responsibility of an operator to ensure that an aquatic structure is in full compliance with the applicable provisions of this chapter and the terms and conditions of any permit issued under this chapter.

(b) Each operator of a facility shall ensure that a person in charge is available during all hours of operation. The responsibilities of the operator under this subsection shall also apply to any other person having possession or control of the operation of the facility.

(Ord. No. 2010-908, § 2(Exh. A), 11-17-2010, eff. 1-1-2011)

Sec. 43-4. Applicability of chapter; inspection and compliance; penalty for violation.

(a) Unless a variance is granted pursuant to section 43-7 of this Code, all provisions of this chapter shall apply to aquatic structures. No aquatic structure shall be operated within the city unless it conforms to the requirements of this chapter.

(b) The operator of a facility shall maintain on site a water quality testing device or kit capable of accurately testing for and measuring pH and disinfectant levels within certain chemical ranges in accordance with section 43-6 of this Code. Operational records of testing results and maintenance activities, including documentation of approved drain covers, shall be retained on site at a facility for not less than two years. However, to the extent that state or federal law requires a more lengthy record retention period, the records shall be retained for the entirety of the state or federally-mandated period.

(c) The health officer may inspect all aquatic structures to protect the public health and to ensure compliance with the provisions of this chapter; provided that in any case in which permission to inspect is denied, the health officer shall obtain an administrative search warrant.

(d) Except as provided in subsection (e), any person who violates any provision of this chapter, any rule or regulation promulgated by the health officer or any applicable state law, rule or regulation regarding pool safety shall be guilty of a misdemeanor, and upon conviction thereof shall be punished by a fine of not less than $250.00 nor more than $2,000.00 for the first conviction. For any succeeding conviction, such person shall

be fined not less than $500.00 nor more than $2,000.00. Each day that a violation continues shall constitute a separate offense.

(e) Notwithstanding any other provision of this chapter, the penalty for a violation of section 43-33(b) of this Code shall not exceed $1,000.00. (Ord. No. 2010-908, § 2(Exh. A), 11-17-2010, eff. 1-1-2011)

Sec. 43-5. Residential pool or spa: minimum standards.

No permit is required to operate a residential pool or spa. Notwithstanding the foregoing, the operator of a residential pool or spa shall:

(1) Maintain the water clarity standards so that an eight-inch black disk on the residential pool or spa floor at its deepest point can be clearly seen by an observer standing on the deck at a point closest to the disk;

(2) Maintain the water so as to prevent the breeding or harborage of insects;

(3) Maintain the water free of any odor that is foul or offensive to a person of reasonable sensibilities;

(4) Keep the water free of algae; and

(5) Maintain and operate the residential pool or spa in a manner that ensures no danger to human health or welfare or hazard to the public health.

(Ord. No. 2010-908, § 2(Exh. A), 11-17-2010, eff. 1-1-2011)

Sec. 43-6. Aquatic structures: Minimum standards.

(a) Except as provided in subsection (b) of this section, the city adopts minimum standards for aquatic structures that are identical to or stricter than those pool safety standards contained in the following state and federal laws, all of which are incorporated herein:

(1) The VGBA;

(2) Chapter 757 of the Texas Health and Safety Code, as it relates to facilities;

(3) Subchapters L and M of Chapter 265 of Title 25 of the Texas Administrative Code, as it relates to facilities; and

(4) That volume of the *Construction Code* known as the *Swimming Pool and Spa Code*.

(b) The provisions of Section 265.211 of Title 25 of the Texas Administrative Code shall not apply to enforcement of this chapter.

(c) The operator of an aquatic structure shall maintain the aquatic structure in accordance with the pool safety standards adopted by the city pursuant to subsection (a) of this section. Any inconsistency between the requirements of this article and subsection (a) shall be resolved in favor of the more restrictive requirement. (Ord. No. 2010-908, § 2(Exh. A), 11-17-2010, eff. 1-1-2011; Ord. No. 2021-1037, § 20(Exh. I.49), 12-1-2021, eff. 4-1-2022)

Sec. 43-7. Variances.

(a) A person may request a variance from one or more requirements of this chapter by submitting to the health officer documentation of the proposed variance, including citations to the applicable chapter provisions and an explanation of how the potential public health hazard will be alternatively addressed by the proposal.

(b) The health officer may consider and grant variances from the provisions of this chapter when the health officer determines that the following conditions exist:

(1) The imposition of the terms or standards of this chapter would deprive the applicant of the reasonable use of the aquatic structure;

(2) The circumstances cited in support of the variance are not the result of a hardship imposed or created by the applicant;

(3) The alterations proposed in the variance request will ensure that the general purposes of this chapter are observed and maintained; and

(4) The granting of a variance will not be injurious to the public health, safety or welfare.

(c) Any variance granted under this section will apply only to the specific property and use requested by the applicant. All variances shall i) be in writing, ii) contain the findings upon which the variance was approved, iii) be signed by the health officer and iv) be maintained as a permanent record of the department.

(d) This section shall not be construed in any way to excuse any operator from compliance with state or federal laws, rules or regulations regarding pool safety or to limit the enforcement authority of state or federal officials with respect to state or federal laws, rules or regulations regarding pool safety or protection of the public health, safety or welfare.
(Ord. No. 2010-908, § 2(Exh. A), 11-17-2010, eff. 1-1-2011)

Sec. 43-8. Rules and regulations.

The health officer shall promulgate rules and regulations necessary to protect the health, safety and welfare of the public relating to the design, construction and installation of all aquatic structures. The rules and regulations shall conform to the applicable provisions of this Code and the Construction Code. In the event of a conflict between this Code and the Construction Code, the most restrictive provision shall control. A copy of the rules and regulations shall be provided to any person upon request.
(Ord. No. 2010-908, § 2(Exh. A), 11-17-2010, eff. 1-1-2011)

Sec. 43-9. Approval of plans and specifications.

(a) No aquatic structure shall be constructed, remodeled, or altered except in accordance with plans and specifications approved by the health officer. An applicant shall submit two sets of properly prepared plans and specifications for the construction, remodeling, or alteration of an aquatic structure, along with a nonrefundable plan review fee, to the health officer for approval before the construction, remodeling, or alteration is begun. The health officer shall approve the plans and specifications if they meet the applicable requirements. If the plans and specifications do not meet all applicable requirements, the health officer shall reject the plans and provide the applicant a written explanation of the discrepancies between the applicable requirements and the existing plans and specifications. An applicant whose plans and specifications have been rejected may resubmit a revised set of plans and specifications for review.

(b) The plans and specifications shall comply with this chapter and all other applicable laws, rules and regulations, including the Construction Code. The plans and specifications shall include, at a minimum, such elements as the proposed layout, arrangement, and construction materials of an aquatic structure and its components. One set of the approved plans and specifications shall be given to the owner or contractor responsible for the construction of the aquatic structure. A second set of approved plans and specifications shall remain on file with the health officer.

(c) Any proposed change to the proposed layout, arrangement, and construction materials of an aquatic structure and its components after the first set of plans and specifications have been approved by the health officer shall be shown on revised plans and specifications which shall be submitted to and reviewed by the health officer. Upon approval prior to any work related to such elements, the approved changes shall be added to the original plans and specifications.

(d) An aquatic structure may not be constructed so as to discharge its wastes into a sanitary sewer or other public drainage system unless such discharge is approved in writing by the health officer and the utility official.

(e) All portions of the water distribution system of an aquatic structure shall be protected against backflow from the water into the city's water supply system. The fill line used to introduce water to the aquatic structure shall have a backflow device on the discharge side of the last gate valve or a six-inch air gap at the end of the fill line. The fill line shall not be connected directly to any of the piping or equipment of the circulation system. A fill line from the water supply to prime the pump shall not be allowed.

(f) A pool or spa shall be equipped with approved drain covers.

(g) The health officer shall inspect an aquatic structure that has been constructed, remodeled or altered prior to its operation to determine compliance with the approved plans and specifications and with all other applicable requirements. A preoperational inspection fee will be assessed in conjunction with the inspection of an aquatic structure. An aquatic structure that fails to pass this inspection may not be operated or used.

(h) No permit shall be issued to or renewed for any aquatic structure for which outstanding fees are owed to the city.
(Ord. No. 2010-908, § 2(Exh. A), 11-17-2010, eff. 1-1-2011; Ord. No. 2021-1037, § 20(Exh. I.50), 12-1-2021, eff. 4-1-2022)

Sec. 43-10. Landlord/tenant.

The terms of this chapter shall not be construed to alter the terms of any lease or other agreement between landlord and tenant relating to property that is subject to this chapter; provided, however, that no lease or other agreement between landlord and tenant relating to property that is subject to this chapter shall be construed to excuse compliance by any person with this chapter or any applicable state or federal law, rule or regulation regarding pool safety.
(Ord. No. 2010-908, § 2(Exh. A), 11-17-2010, eff. 1-1-2011)

Secs. 43-11—43-30. Reserved.

ARTICLE II. PERMITS, INSPECTIONS, ENFORCEMENT, ETC.

Sec. 43-31. Permitting requirement.

(a) No person shall operate a facility without a permit issued by the health officer. An application for a permit shall be made on forms provided by the health officer and shall be accompanied by payment of the applicable permit fee. The information provided in the application shall include, at a minimum: i) the applicant's full name and post office address; ii) whether the applicant is an individual, firm, corporation or other type of entity, and, if a partnership, the names of the partners, together with their addresses; and iii) the location and type of proposed facility. If the health officer determines that the requirements of this chapter have been satisfied, a permit shall be issued to the applicant.

A permit shall be valid only for the location specified and may not be transferred to another location or to another owner of the property on which the facility is located. A copy of the permit shall be posted in view of the public, shall be valid for one year from the date of issuance and shall be renewed on or before the date of its expiration. A fee shall be imposed for reissuing a lost permit.

(b) If a permit renewal application is not received in the offices of the department in completed form and accompanied by the permit fee on or before the next business day after the date of expiration of the permit to be renewed, no renewal permit shall be issued prior to payment of a fee to defray the additional administrative costs associated with the permit renewal.

(c) The holder of a permit shall have a continuing duty to apply for an amended permit within thirty days after the occurrence of an event that causes a change in any information for which a representation or response was made in the original permit application. Failure to timely submit an application for an amendment shall cause the permit to become void. Applications for permit amendments shall be processed and amended permits shall be issued in accordance with the same criteria as original applications.
(Ord. No. 2010-908, § 2(Exh. A), 11-17-2010, eff. 1-1-2011)

Sec. 43-32. Compliance, inspections and investigations.

(a) The health officer shall inspect each facility within the city at least once every 12 months and shall make as many additional inspections as are necessary for the enforcement of this chapter, taking into consideration all public health risks posed by the facility, consumer complaints, reports of illness outbreaks or the facility's past compliance history. Upon request, the operator

shall provide the health officer with all records pertaining to the servicing, maintenance, and operation of the facility.

(b) The findings related to a facility inspection shall be recorded on an inspection report form, a copy of which report shall be provided for the person in charge of the facility. A copy of the inspection report shall be kept at the facility and may not be removed by any person except the health officer. The health officer shall maintain a copy of the inspection report in the departmental records.

(c) The inspection report form shall specify a specific time by which each violation must be corrected. The operator may be subject to criminal or civil penalties for a violation.

(d) Upon request of the operator of a facility, the health officer may allow an extension of the time in which to correct a violation. In determining whether to allow an extension and the length of the extension, the health officer shall consider the degree of risk, if any, posed by the violation and the time reasonably required to correct it. No extension shall be granted if the health officer determines that a significant risk is posed to the public.

(e) If the health officer determines that a reinspection is necessary to ascertain that the conditions responsible for a violation no longer exist, the operator shall be assessed a reinspection fee in conjunction with that reinspection.

(f) A facility that is required to or agrees to cease operations under the provisions of this section shall not resume operations until a reinspection by the health officer determines that the conditions responsible for the requirement to cease operations no longer exist.

(g) The health officer shall conduct all reinspections required under this section within a reasonable period of time. A permit shall not be renewed until all outstanding fees assessed under this chapter have been paid.
(Ord. No. 2010-908, § 2(Exh. A), 11-17-2010, eff. 1-1-2011)

Sec. 43-33. Enclosure of aquatic structures.

(a) The operator of a residential pool or spa shall at all times maintain an enclosure that consists of a man-made, permanently installed fence, wall or barrier completely surrounding and enclosing the residential pool or spa. A building or existing wall may be used as part of an enclosure constructed as required herein. The enclosure shall:

(1) Measure not less than four feet in height, with no openings, holes, or gaps larger than four inches as measured in any direction, except that such openings for a picket fence or a picket-type fence (one composed primarily of vertical members) shall be measured in a horizontal direction between members; and

(2) Include self-closing and self-latching devices on the upper quarter of all gates and doors opening directly into the enclosure, so that the doors or gates remain securely closed at all times when not in actual use, except that the door of any residential dwelling that forms any part of the enclosure need not be so equipped.

(b) The operator of an aquatic structure that is regulated by Chapter 757 of the Texas Health and Safety Code shall at all times maintain an enclosure that complies with those provisions of that chapter adopted by reference in section 43-6(a) of this Code, and the city may remedy violations of this subsection in accordance with the provisions of Section 214.101 of the Local Government Code, including the placement of a lien against the property to recover expenses incurred pursuant to remediation.

(c) The operator of an aquatic structure that is regulated by Subchapter L of Chapter 265 of Title 25 of the Texas Administrative Code shall at all times maintain upon such property an enclosure that complies with the requirements of Section 265.203 of that subchapter adopted by reference in section 43-6(a) of this Code.

(d) It shall be unlawful for the operator of an aquatic structure to fail to comply with this section. Each day that a violation continues shall constitute a separate offense. A violation of this section is also a violation of article IX of chapter 10 of this Code.

(e) Any person may advise the appropriate enforcement officer regarding an enclosure that is damaged, deteriorated, substandard, dilapidated or otherwise in a state that poses a hazard to the public health, safety and welfare.
(Ord. No. 2010-908, § 2(Exh. A), 11-17-2010, eff. 1-1-2011; Ord. No. 2021-1037, § 20(Exh. I.51), 12-1-2021, eff. 4-1-2022)

Sec. 43-34. Violation of minimum standards for aquatic structures.

(a) In the event of a violation of the minimum standards established by this chapter, the health officer shall provide written notice to the operator to abate, remove or otherwise remedy the violation immediately. The notice shall be given:

(1) By personal hand delivery to the operator;

(2) By letter addressed to the operator at the operator's post office address and sent by certified mail, return receipt requested; or

(3) If personal service cannot be obtained or the operator's post office address is unknown:

a. By posting the notice on or near the front door of each building on the property to which the violation relates; or

b. By posting the notice on a placard attached to a stake driven into the ground on the property to which the violation relates, if the property contains no buildings.

(b) If the operator does not abate, remove or remedy the violation within ten days of service or posting of a notice under this section, the health officer may enter the property where the violation is occurring and perform any work necessary to protect the public health, safety and welfare.

(c) Notwithstanding the notice provisions of this section, upon any determination that the immediate abatement of a violation is necessary to protect the public health, safety or welfare, the health officer may enter the property where the violation is occurring and perform or cause to be performed any work necessary to protect the public health, safety and welfare.

(d) Pursuant to the authority granted by Chapter 342 of the Texas Health and Safety Code, the city may charge all costs incurred by the city under this section in remediating water quality issues, including the cost of providing notice as required, to the owner of the property. The city may assess the expenses against the property where the work was performed and obtain a lien against the property in accordance with the procedure established in Chapter 342 of the Texas Health and Safety Code.

(e) The remedy provided by this section is in addition to all other remedies available under this chapter or as otherwise provided by the Code or state or federal law.
(Ord. No. 2010-908, § 2(Exh. A), 11-17-2010, eff. 1-1-2011)

Sec. 43-35. Enforcement and closures.

(a) The health officer is authorized to issue citations charging the violation of any of the provisions of this chapter, the *Swimming Pool and Spa Code,* and, to the extent authorized or permitted by law, any applicable state laws, rules or regulations regarding pool safety. In addition, the health officer may order an aquatic structure closed if the health officer determines:

(1) That it is being operated without a valid permit; or

(2) That the continued operation of the aquatic structure will constitute a hazard to the health or safety of persons using the aquatic structure or those in close proximity to the aquatic structure.

(b) Written notice of a closure order shall be provided to the operator of an aquatic structure. The notice shall:

(1) Set forth the specific conditions at the aquatic structure that constitute a hazard to public health; or

(2) Set forth the specific conditions at the aquatic structure that are in violation of this chapter, the *Swimming Pool and Spa Code,* federal or state laws, or rules or regulations regarding pool safety.

(3) Be sent by personal hand delivery, certified mail, or private delivery service, return receipt requested. If there is documented proof that these methods are not successful, the written notice of a closure order may be sent to the operator by email.

(c) Upon closure of an aquatic structure pursuant to this section, the person in charge of the aquatic structure shall immediately:

(1) Properly post and maintain signs at all entrances to the aquatic structure that state: "CLOSED UNTIL FURTHER NOTICE"; and

(2) Lock all doorways and gates that form a part of the aquatic structure enclosure, so that the aquatic structure is only accessible to maintenance or authorized personnel for repairs.

Signs required to be posted under this section shall be a minimum size of 8½ inches by 11 inches. The lettering shall be of a contrasting color to the background and not less than one inch in height. Signs shall be positioned so that they are readily visible to a person seeking entry to the aquatic structure.

(d) If the person in charge of the aquatic structure is absent or fails or refuses to comply with the requirements of subsection (b), the health officer may post signs and secure the premises in accordance with this section.

(e) A person commits an offense under this section if the person:

(1) Removes, defaces, alters, covers or renders unreadable a closure sign posted by the health officer; or

(2) Uses an aquatic structure subject to a closure order for swimming, diving or bathing; or

(3) Is a person in charge of an aquatic structure subject to a closure order and knowingly allows persons to use the aquatic structure for swimming, diving or bathing; or

(4) Is a person in charge of an aquatic structure subject to a closure order and fails to comply with the requirements of this section.

(f) The health officer shall notify the operator of a timeframe for reinspection after the health officer issues the closure order. If, upon reinspection any time before the end of the timeframe provided, it is found that the violations have been corrected, the health officer will lift the closure order. If the violations have not been corrected within the timeframe, and the operator has not received an approved extension, the closure order shall remain in place and the health officer may issue additional citations.

(g) An operator may appeal a closure order within ten days after receipt of notice of the closure order by filing a written statement with the health officer setting forth the reasons why the closure order should be rescinded. The filing of an appeal does not postpone or halt the closure order.

(h) If an appeal is not timely filed, the closure order shall remain in place pending the results of the reinspection scheduled pursuant to subsection (f) of this section. If the appeal is timely filed, a hearing shall be scheduled with written notice provided to the operator by personal hand delivery, certified mail, or private delivery service within five days after receipt of the appeal. If there is documented proof that these methods

are not successful, the written notice may be sent to the operator by email. The notice shall set forth:

(1) That a hearing will be held before a hearing officer;

(2) The date, time, and place of the hearing; and

(3) That the operator may appear in person or virtually, may be represented by counsel, and may present testimony and cross-examine all witnesses. The hearing shall be held not later than ten days after receipt of the appeal.

(i) All hearings shall be conducted by a person designated by the director of the department, who shall be referred to as the hearing officer. The director of the department shall not designate any person to perform the duties of hearing officer under this section who has participated in the inspection of the aquatic structure, or has prior knowledge of the allegations or circumstances discovered in the inspection or inspections, except that the person designated as hearing officer may, prior to the hearing, receive a copy of the closure order given to the operator.

(j) All hearings shall be conducted under rules consistent with the informal nature of the proceedings; provided, however, the following rules shall apply:

(1) Each party shall have the right to representation by a licensed attorney, although an attorney is not required.

(2) Each party may present witnesses on his own behalf.

(3) Each party has the right to cross-examine all witnesses.

(4) The hearing officer may consider only the evidence presented at the hearing in rendering the order.

(k) If the operator fails to appear at the hearing at the time, place, and date specified, the health officer shall present sufficient evidence to establish a prima facie case showing violation of this chapter or the *Swimming Pool and Spa Code,* or conditions constituting a hazard to public health that formed the basis of the closure order.

(l) If the hearing officer determines that the aquatic structure was operated in violation of this chapter, the Swimming Pool and Spa Code, federal or state laws, rules or regulations regarding pool safety, or constituted a hazard to public health, the hearing officer shall make written findings of fact and shall affirm the closure order. If the hearing officer finds that the public interest will be adequately protected by a warning or other penalties authorized under this chapter, he may rescind the closure order and impose such penalties. A copy of the findings and order of the hearing officer shall be sent by personal hand delivery, certified mail, or private delivery service, return receipt requested, to the operator. If there is documented proof that these methods are not successful, the findings and order may be sent to the operator by email.
(Ord. No. 2010-908, § 2(Exh. A), 11-17-2010, eff. 1-1-2011; Ord. No. 2021-1037, § 20(Exh. I.52), 12-1-2021, eff. 4-1-2022)

Sec. 43-36. Permit suspension.

(a) The health officer may, upon notice to the permit holder, suspend a permit if the operator of an aquatic structure does not comply with the requirements of this chapter or the *Swimming Pool and Spa Code,* or if the operation of the aquatic structure otherwise constitutes a hazard to public health. Suspension is effective upon service of the notice required by subsection (b) below. Upon issuance of a permit suspension, active pool operations shall immediately cease, and the permit shall be removed from the aquatic structure by the health officer and retained at the department until the suspension has terminated.

(b) Written notice of a permit suspension shall be provided to the operator of an aquatic structure by personal hand delivery, certified mail, or private delivery service, return receipt requested. If there is documented proof that these methods are not successful, the written notice may be sent to the operator by email. The notice shall set forth:

(1) The specific conditions at the aquatic structure that are in violation of this

chapter, the *Swimming Pool and Spa Code,* or federal or state laws, rules or regulations regarding pool safety, or that constitute a hazard to public health;

(2) That a hearing will be held before a hearing officer;

(3) The date, time and place of the hearing; and

(4) That the operator may appear in person or virtually, may be represented by counsel, and may present testimony and cross-examine all witnesses. The hearing shall be held not later than ten days after the date the permit is suspended.

(c) A permit suspension hearing under this section shall be held in accordance with the procedures set forth in section 43-35 of this Code.

(d) If the operator fails to appear at the hearing at the time, place, and date specified, the health officer shall present sufficient evidence to establish a prima facie case showing violation of this chapter or the *Swimming Pool and Spa Code,* or conditions constituting a hazard to public health that formed the basis of the suspension of the permit.

(e) If the hearing officer determines that the aquatic structure was operated in violation of this chapter or the Swimming Pool and Spa Code, or constituted a hazard to public health, the hearing officer shall make written findings of fact and shall affirm the permit suspension until all violations of this chapter are corrected and any conditions constituting a hazard to public health are eliminated. If the hearing officer finds that the public interest will be adequately protected by a warning or other penalties authorized under this chapter, he may order the permit to be reinstated and impose such penalties. A copy of the findings and order of the hearing officer shall be sent by personal hand delivery, certified mail, or private delivery service, return receipt requested, to the operator. If there is documented proof that these methods are not successful, the findings and order may be sent to the operator by email.

(f) Whenever the reason for a suspension no longer exists, the operator shall notify the health officer that the conditions under which the permit was suspended have been corrected and request a reinspection. The reinspection shall be conducted as soon as possible after the request is received and, in any event, no later than three regular working days after the receipt of the request.
(Ord. No. 2010-908, § 2(Exh. A), 11-17-2010, eff. 1-1-2011; Ord. No. 2021-1037, § 20(Exh. I.52), 12-1-2021, eff. 4-1-2022)

Sec. 43-37. Permit revocation.

(a) A permit may be revoked for up to 180 days if:

(1) The person in charge or his agents or employees fail or refuse to permit an inspection of the aquatic structure by a health officer; or

(2) The department has found three or more violations of the applicable portions of this chapter, the *Swimming Pool and Spa Code,* or federal or state laws, rules or regulations regarding pool safety within the preceding 12-month period.

(b) Prior to the revocation of a permit, written notice shall be provided to the operator by personal hand delivery, certified mail, or private delivery service, return receipt requested. If there is documented proof that these methods are not successful, the written notice may be sent to the operator by email. The notice shall set forth:

(1) The grounds on which the city will seek revocation of the permit, including the specific violations of this chapter, the *Swimming Pool and Spa Code,* or federal or state laws regulating pool safety on which the city will rely in seeking revocation of the permit;

(2) That a hearing will be held before a hearing officer;

(3) The date, time and location of the hearing; and

(4) That the operator may appear in person or virtually, may be represented by counsel

and may present testimony and cross-examine all witnesses. The hearing shall be held not later than ten days after the date the permit revocation notice is received.

(c) A permit revocation hearing under this section shall be held in accordance with the procedures set forth in section 43-35 of this Code.

(d) If the hearing officer determines that there are grounds for revocation of the permit, the hearing officer shall make written findings of fact and shall order the revocation of the permit for a period of not more than 180 days. A copy of the findings and order of the hearing officer shall be sent by personal hand delivery, certified mail, or private delivery service, return receipt requested, to the operator. If there is documented proof that these methods are not successful, the findings and order may be sent to the operator by email.

(e) All operation of an aquatic structure shall cease immediately upon receipt of service of written notice that the permit for that aquatic structure has been revoked pursuant to subsection (d), and the health officer shall physically remove the permit from the premises.

(f) Reinstatement of a permit that has been revoked shall require the operator to resubmit an application and repay the permit fee as if it were an initial application. No new permit application shall be considered for an aquatic structure where the hearing officer has revoked the permit until the expiration of the revocation period.
(Ord. No. 2010-908, § 2(Exh. A), 11-17-2010, eff. 1-1-2011; Ord. No. 2021-1037, § 20(Exh. I.52), 12-1-2021, eff. 4-1-2022)

Sec. 43-38. Fees.

(a) The fees to be assessed under this chapter are stated for this provision in the city fee schedule.

(b) All fees collected pursuant to this chapter shall be deposited in the swimming pool safety fund and may be expended for the costs of activities related to this chapter and other permitting, inspection, monitoring, abating, controlling, education and enforcement activities pertaining to environmental health services of the health department. By 60 days following the end of each fiscal year, any amount of money from the fund's current fiscal year- end fund balance that is in excess of four months of the average of the previous three fiscal years' audited expenditures less debt from the current fiscal year's ending fund balance, may be appropriated by city council and transferred to the general fund for general city expenditures, as needed, to the extent the transferred funds are not committed funds under any federal and state law, regulation, or grant.
(Ord. No. 2010-908, § 2(Exh. A), 11-17-2010, eff. 1-1-2011; Ord. No. 2010-1016, § 5, 12-15-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2013-617, § 16, 6-19-2013; Ord. No. 2015-820, § 34, 8-26-2015; Ord. No. 2019-447, § 6, 6-12-2019)

Sec. 43-39. Additional legal remedies.

(a) The city, acting through the city attorney or any other attorney representing the city, is hereby authorized to file an action in a court of competent jurisdiction to:

(1) Enjoin any person from violating or threatening to violate the terms, conditions and restrictions of any permit issued under this chapter;

(2) Enjoin the violation or threatened violation of the provisions of this chapter or of applicable state laws, rules or regulations regarding pool safety, to the extent permitted by law;

(3) Recover civil penalties for violation of the terms, conditions and restrictions of any permit authorized under this chapter; or

(4) Recover damages from the owner of property on which a violation has occurred in an amount adequate for the city to undertake any construction or other activity necessary to bring about compliance with this chapter.

(b) The city, acting through the city attorney or any other attorney representing the city, is hereby authorized to enter into agreements in

lieu of litigation to achieve compliance with the terms, conditions and restrictions of any permit authorized under the provisions of this chapter. (Ord. No. 2010-908, § 2(Exh. A), 11-17-2010, eff. 1-1-2011)

Chapter 44

TAXATION*

Art. I.	**In General, §§ 44-1—44-74**
Art. II.	**Specific Occupation Taxes, §§ 44-75—44-100**
	Div. 1. Generally, §§ 44-75—44-81
	Div. 2. Coin-Operated Machines, §§ 44-82—44-100
Art. III.	**Hotel Occupancy Tax, §§ 44-101—44-119**
Art. IV.	**Tax Abatement, §§ 44-120—44-138**

ARTICLE I. IN GENERAL

Sec. 44-1. Prior provisions saved.

In the compilation of this Code various provisions of chapter 44 (taxation) of the prior (1968) edition of the Code of Ordinances, as amended were deleted by virtue of their having been superseded by the Texas Property Tax Code; the said provisions which were deleted are expressly saved from repeal, not withstanding the adoption of this Code or any provision contained in the ordinance adopting this Code, to the extent that they remain applicable to any delinquent taxes which have not been collected or to any cause of action relating thereto.

Sec. 44-2. Annual levy; effect of failure to levy.

It shall be the duty of the city council, at its first meeting in January of each and every year, to levy such ad valorem and occupation taxes as may be necessary to cover the expenses of the city government for the current year; provided, the failure to levy such taxes at such meeting shall not prevent the same being levied at any such subsequent meeting of the council, and if the council should fail or neglect to pass a tax ordinance for any year, levying the taxes for that year, the tax ordinance last passed will be considered in force, and the failure to pass such ordinance shall in no wise invalidate the collection of the tax for that year.
(Code 1968, § 44-2)

Sec. 44-3. Property subject to taxation; applicability of state law.

All real, personal or mixed property held, owned or situated in the city, except such as may be expressly exempted in or pursuant to this article, is subject to taxation, and the same shall be rendered and listed in the manner prescribed by the general laws in regard to general state taxation, when applicable. The definition of property and terms, as defined by the general state laws under the head of taxation, and what is subject to taxation, as prescribed by the general laws of this state, shall apply to the taxation of this city.
(Code 1968, § 44-3)

Sec. 44-4. Tax exemption for resident homesteads.

(a) There is hereby exempted from all ad valorem taxes hereafter levied by the city a portion of the appraised value of residence homesteads of persons, married or unmarried, including those living alone, who are under a disability for purposes of payment of disability insurance benefits under Federal Old-Age, Survivors, and Disability Insurance, or its successor, or of married or unmarried persons 65 years of age or older, including those living alone. Effective January 1, 2022, the amount of the aforesaid exemption shall be $260,000.00 for the tax year 2022 and for each year thereafter.

(b) An owner of a residence homestead is hereby granted an exemption of 40 percent of the market value of such residence homestead for the years 1982 through 1984, 30 percent for the years 1985 through 1987, and 20 percent in 1988 and each subsequent year. Any exemption granted under this subsection shall be administered in a manner consistent with the applicable provisions of the state Property Tax Code.
(Code 1968, § 44-4; Ord. No. 72-2298, § 1, 12-13-72; Ord. No. 73-1783, § 1, 9-5-73; Ord. No.

*__Cross reference—__Payment of ad valorem taxes as prerequisite to putting taxicabs in operation, § 46-19.

74-1433, § 1, 8-14-74; Ord. No. 75-584, § 1, 4-15-75; Ord. No. 77-502, § 1, 3-15-77; Ord. No. 77-900, § 1, 5-10-77; Ord. No. 78-1294, § 1, 6-28-78; Ord. No. 80-675, § 1, 3-26-80; Ord. No. 82-481, § 1, 3-23-82; Ord. No. 88-1700, § 1, 10-26-88; Ord. No. 94-673, § 1, 7-6-94; Ord. No. 02-647, § 1, 7-10-02; Ord. No. 2013-630, § 2, 6-26-2013; Ord. No. 2015-554, § 2, 6-10-2015; Ord. No. 2022-454, § 2, 6-8-2022)

Sec. 44-5. Tax relief for the restoration or preservation of historical sites.

(a) *Scope.* The city council may, by ordinance, grant tax relief in the form of an exemption from ad valorem taxation to any "historic site," which for purposes of this section means a structure that has been designated as a landmark, protected landmark, or as a contributing structure in a historic district pursuant to article VII of chapter 33 of this Code ("Historic Preservation Ordinance").

(b) *Eligibility.* A property is eligible for tax exemption under this section in accordance with the following:

(1) The tax exemption is only being sought for eligible work under subsection (e) of this section;

(2) The eligible work performed must be at a cost of at least 25 percent of the "base value," which for purposes of this section means the assessed value of the historic structure or improvements, not including the value of any land associated with the historic site;

(3) The eligible work is performed not earlier than five years before the application for tax exemption; and

(4) The eligible work is performed pursuant to a certificate of appropriateness granted by the Houston Archaeological and Historical Commission ("HAHC").

(c) *Application.* An application for tax exemption under this section shall be filed with the director of the Finance Department, or his designee ("director of finance") in the form prescribed by the director of finance, and shall contain documentary evidence, including photographs and other documentation, of:

(1) All completed work for which a tax exemption is sought;

(2) Itemized accounting of eligible costs, shown as distinct from any ineligible costs, associated with any interior and exterior construction for which a tax exemption is sought; and

(3) Compliance with the requirements of any certificates of appropriateness issued pursuant to the Historic Preservation Ordinance.

Any application that does not contain sufficient documentary evidence under this section, including insufficiently itemized accounting of eligible costs as show distinctly from ineligible costs, shall be rejected by the director of finance and considered incomplete.

(d) *Procedure.* The director of finance shall establish and promulgate procedures for the implementation of the exemption granted under this section, the review of applications for tax exemption pursuant to this section, including deadlines for submission and consideration of applications required for a tax exemption to be effective for the next tax year. The director of finance shall calculate the projected tax exemption in accordance with this section, and forward the recommendation and projected tax exemption to city council. The city council shall approve an application for tax exemption upon receipt of a recommendation and a projected tax exemption from the director of finance.

(e) *Eligible work.* The following work qualifies for tax exemption under this section:

(1) Restoration performed pursuant to a certificate of appropriateness granted under the Historic Preservation Ordinance;

(2) Repair or reconstruction of the historic portion of the structural components, which includes parts of a building such as walls, partitions, floors, ceilings; windows and doors; all components of a

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central air conditioning or heating system, whether within or adjacent to a building, including motors, compressors, pipes and ducts; plumbing and plumbing fixtures, such as sinks and bathtubs; electric wiring and lighting fixtures; chimneys; stairs, escalators, and elevators; interior sprinkler systems; fire escapes; and other components relating to the operation or maintenance of a building;

(3) Interior remodeling of the historic portion of the structure's paint, flooring, permanent coverings such as paneling or tiling;

(4) Professional services such as architectural, engineering, and other development fees; and

(5) Construction management and labor, materials, and reasonable overhead.

(f) *Ineligible work.* The following work does not qualify for tax exemption under this section:

(1) Appliances, consumer and industrial machinery, including machinery needed for the preparation and storage of food;

(2) Furniture, including cabinetry and countertops;

(3) Decks, fencing, retaining walls, swimming pools, and any exterior work such as sidewalks, driveways, and landscaping;

(4) Acquisition costs;

(5) Demolition and relocation costs;

(6) All costs, both exterior and interior, associated with the construction of a new addition or new construction, as those terms are defined in the Historic Preservation Ordinance;

(7) Work done outside the scope of a certificate of appropriateness required by the Historic Preservation Ordinance; and

(8) Work done pursuant to a certificate of remediation issued by the HAHC.

(g) *Annual review of tax exemption.* The director of finance shall conduct an annual review of each property granted an exemption under this section and may recommend revocation of the tax exemption granted under this section to city council if:

(1) The historic site is or has been the subject of a certificate of appropriateness issued pursuant to sections 33-247 or 33-250 of this Code;

(2) The owner of a historic site exceeds the scope of a certificate of appropriateness or takes any action without a certificate of appropriateness required by article VII of chapter 33 of this Code;

(3) The owner causes the property to be demolished by neglect under section 33-254 of this Code or as a dangerous building under chapter 10 of this Code; or

(4) City taxes assessed against the property are delinquent, as confirmed by the director of finance.

(h) *Calculation of tax exemption.* An exemption granted hereunder by the city council shall exempt the historic structure or improvements not including the value of any land associated with this historic site from ad valorem taxation and shall be computed on the following basis:

(1) If the said qualifying expenditures are at least 25 percent but less than 100 percent of the base value, then the exemption for each tax year on the assessed value of the structure shall be equal to the amount of the qualifying expenditures; or

(2) If the said qualifying expenditures are 100 percent or more of the base value of the improvements, then for each tax year:

a. For single-family residential properties that are not within a qualifying census tract, the exemption shall be equal to the qualifying expenditures; or

b. For properties other than single-family residential properties and all

properties within a qualifying census tract, as that term is defined below, the exemption shall be equal to 100 percent of the assessed value of the historic structure or improvements not including the value of any land associated with this historic site.

In any event, however, the exemption granted to any historic site pursuant to this section shall be subject to a limitation in the form of a maximum dollar amount. The maximum dollar amount shall be the assessed value of the historic structure in the year following demonstration of completion of the restoration or preservation work and demonstration of the qualifying expenditures to the director of finance. The amount of the exemption allowed on a historic structure shall not exceed the aforesaid maximum dollar amount in any tax year for the duration of the exemption period.

For purposes of this subsection qualifying census tract means any population census tract if either:

(1) The poverty rate for such tract is at least 20 percent; or

(2) The median family income for such tract does not exceed 80 percent of the metropolitan area median family income.

(i) *Term.* An exemption granted under this section shall begin on January 1 of the year following the date that the director of finance makes the determination that the owner of the historic site has met all of the requirements of this section for an exemption. The duration of the exemption shall be for a period of 15 years if the restoration project receives no financial incentive from the city funded by municipal hotel occupancy taxes, or ten years if the restoration project receives a financial incentive from the city funded by municipal hotel occupancy taxes. The exemption shall be automatically continued as of January 1 of each year succeeding the year the exemption was first granted for the duration of the ten- or 15-year period. The exemption shall be continued in the event of a transfer of an ownership interest or a portion of an ownership interest in the historic structure during such ten or 15-year period.

(j) *Recordation.* A person who has an ownership interest in property that has been granted a historic site exemption from ad valorem taxation shall record a copy of the ordinance providing for such exemption in the form prescribed by the city attorney in the real property records of the county in which the property is located. Failure on the part of the applicant to deliver a copy of such recorded ordinance, showing the date of recordation in the appropriate real property records, to the director of finance within 90 days of the date of passage of the ordinance providing for a tax exemption shall cause the expiration of the exemption at the end of such 90-day period.

(k) *Recapture.* Tax receipts and tax certificates issued for any historic site receiving tax relief pursuant to this section shall be clearly marked: "Historic site—Subject to recapture of additional taxes under Code of Ordinances." Each year during which the property is granted tax relief, the director of finance shall note on his records the valuation which would have been made and the taxes that would have been due had the historic site not qualified for tax relief under this section. If the historic site is subsequently damaged, demolished, or destroyed, or if the tax exemption is revoked under this section, then the property shall be subject to a recapture of taxes and subject to penalties and interest calculated under pertinent provisions of the Texas Tax Code. The additional tax shall be equal to the total amount of tax relief granted under this section over the life of the structure. Such additional taxes shall be deposited in the Historic Preservation Fund. Until paid, there shall be a lien for additional taxes, penalty, and interest on the property granted tax relief under the provisions of this section. An obligation to pay recaptured taxes is extinguished by operation of force majeure. Force majeure means: fires, floods, hurricanes, tornadoes, ice storms and other natural disasters, explosions, war, terrorist acts, riots, and the acts of superior governmental or military authority, and which the affected party is unable to prevent by the exercise of reasonable diligence. The term does not include any changes in general economic conditions such as inflation, interest rates, economic downturn or other factors of general

application, bankruptcy or an event that merely makes performance more difficult, expensive or impractical.

(l) A historic site for which an exemption has expired or has been withdrawn, revoked, or terminated may not requalify for a tax exemption under this section. Only one tax exemption at a time under this section may apply to a property.

(m) Notwithstanding any other provision of this Code, a structure that has been designated as a landmark or as a contributing structure in a historic district pursuant to the Historic Preservation Ordinance and that is owned by the State of Texas or a political subdivision thereof is entitled to an exemption equal to 100 percent of the assessed value of the historic structure and the land necessary for access and use of such structure. If an application for an exemption pursuant to this subsection is granted prior to the adoption of the ad valorem tax rate for the tax year in which the application is granted, the exemption shall be effective as of January 1 of that tax year. If such an application is granted after the adoption of the ad valorem tax rate for the tax year in which the application is granted, the exemption shall be effective as of January 1 of the tax year following the date the application was granted. An exemption granted pursuant to this subsection shall remain effective until the property is sold.
(Code 1968, § 44-4.1; Ord. No. 81-625, § 1, 4-1-81; Ord. No. 95-227, § 2, 3-1-95; Ord. No. 01-212, § 2, 3-7-01; Ord. No. 02-399, § 91, 5-15-02; Ord. No. 02-838, § 2, 9-4-02; Ord. No. 03-159, § 10, 2-12-03; Ord. No. 04-955, § 1, 9-15-04; Ord. No. 07-658, § 2, 6-6-07; Ord. No. 08-52, § 76, 1-16-08, eff. 1-26-08; Ord. No. 2015-967, § 41, 10-7-2015; Ord. No. 2019-143, § 1, 3-20-2019)

Sec. 44-6. Property liable for taxes due by owners.

All real, personal and mixed property held, owned or situated in the city shall be liable for all taxes due by the owners thereof, including taxes on real estate, franchises, personal and mixed property.
(Code 1968, § 44-5)

Sec. 44-7. Power of tax assessor-collector to enter premises and inspect property.

In the performance of his duties, the tax assessor-collector, or any of his deputies or duly and legally authorized representatives, shall have the power and authority to enter upon and into the premises, after having demanded entrance, of any person for the purpose of ascertaining what property such person has on hand that is subject to taxation. The tax assessor-collector, or any of his deputies or duly and legally authorized representatives, shall have the power and authority to inspect all property located on the premises for the purpose of obtaining an inventory to be filed for the purpose of taxation of the property included in such inventory and for the purpose of fixing the taxable value of the property found thereon. It shall be unlawful for any person to refuse to allow the tax assessor-collector for the city, or any of his deputies or duly and legally authorized representatives, to enter upon and into the premises as above provided after demand has been made by such person for admittance.
(Code 1968, § 44-11)

Sec. 44-8. Invalid city tax assessments.

(a) The tax assessor-collector shall notify the city council of any city tax assessments on real or personal property that he shall discover to be invalid, as defined and provided herein.

(b) An invalid assessment, within the meaning of this subsection is one that is:

(1) On property outside the taxing jurisdiction, hereinafter referred to as "outside jurisdiction";

(2) On property that is exempt from taxation, hereinafter referred to as "exempt";

(3) A second or double assessment on property properly assessable, hereinafter referred to as "double".

In notifying the council of such invalid city tax assessments under this subsection, the tax assessor-collector shall prepare lists and on each list show the name and address of the property owner, the account number, the property description, the amount of the assessment, the taxes,

and the reason that the assessment is invalid. The reasons, above, for an assessment being invalid may be indicated on each list by the words "outside jurisdiction," "exempt," "double." Each list shall be certified to by the tax assessor-collector as follows:

"This is a correct list of invalid assessments as provided for by the ordinances of the City of Houston."

One or more lists shall be forwarded to the city council attached to a form of ordinance which contains in its caption the reasons that the assessments are invalid and which provides for the city council:

(i) To find the city tax assessment invalid, and

(ii) To order such assessments and the city taxes based thereon cancelled.

(c) An invalid assessment, within the meaning of this subsection, is one that is:

(1) Grossly excessive, for example, the assessment of property at 100 percent or more above its fair market value, hereinafter referred to as "grossly excessive";

(2) Discriminatory, for example, the use of a different appraisal standard than used for similar property, hereinafter referred to as "discriminatory"; and

(3) An assessment that is illegal for any other reason, hereinafter referred to as "illegal";

In notifying the council of such invalid city tax assessments under this subsection, the tax assessor-collector shall prepare lists and on each list show the name and address of the property owner, the account number, the property description, the amount of the assessment, the taxes, and the reason that the assessment is invalid. The reasons, above, for an assessment being invalid may be indicated on each list by the words "grossly excessive," "discriminatory," and "illegal," respectively. Each list shall be certified to by the tax assessor-collector as follows:

"This is a correct list of invalid assessments as provided for by the ordinances of the City of Houston."

Every such invalid assessment shall be accompanied by affidavits and an opinion from the city attorney, based upon the facts set out in such affidavits, stating it to be his opinion that the assessment could properly be found invalid by the council. One or more lists shall be forwarded to the city council attached to a form of ordinance which contains in its caption the reasons that the assessments are invalid and which provides for the city council:

(i) To find the city tax assessment invalid; and

(ii) To order such assessments and the city taxes based thereon cancelled.

(d) The tax assessor-collector shall immediately reassess all taxable property on which the assessment has been cancelled under the terms hereof and place the same on the supplemental roll to be equalized prior to the next time the tax roll is approved by the board of appraisement.
(Code 1968, § 44-16.1; Ord. No. 68-1163, §§ 1—3, 7-17-68; Ord. No. 81-690, § 1, 4-14-81)

Sec. 44-9. Partial payment of current taxes based on a proposed reassessment.

(a) The tax assessor-collector is hereby authorized to accept a partial payment of current taxes on property if:

(1) It appears that the tax assessment for the current year on the property is invalid, and the tax assessor-collector has affidavits or other documents proving that the assessment for the current year is invalid as provided by the section on invalid assessments; and

(2) The tax assessor-collector has recommended that the assessment be cancelled by the city council; and

(3) The tax assessor-collector has also received full, true and complete information upon which a valid reassessment can be made; and

(4) The payment is equal to what a payment in full on the reassessment would be.

After the partial payment in the amount aforesaid has been made, the tax assessor-collector shall issue a tax receipt clearly marked "partial payment receipt." It shall also contain the following notation:

> "This receipt represents a partial payment of taxes originally assessed for the year shown and the amount thereof is tendered by the taxpayer and accepted by the City of Houston and/or Houston Independent School District with the express understanding that it will not in any way impair the balance of the taxes due for the year nor the lien securing same."

(b) In the event that a prior assessment is cancelled, a reassessment made and the assessment roll has been changed to show the new value, a copy of the portion of the roll showing the new amount and the "partial payment receipt" shall constitute a receipt in full for the tax for that year.
(Code 1968, § 44-17; Ord. No. 79-1809, § 1, 10-23-79)

Sec. 44-10. Tax assessor-collector to be charged with total amount of taxes due.

After the certificates of the board of appraisement and the tax assessor-collector have been entered in the minutes of the meeting of the city council, it shall be the duty of the city controller to charge to the account of the tax assessor-collector the total amount of taxes due the city for the current year, as shown on such assessment roll

and by his certificates, which amount shall be a valid claim against such tax assessor-collector and the sureties on his official bond, until the same shall be properly accounted for.
(Code 1968, § 44-28)

Sec. 44-11. When taxes due and payable; penalty and interest on delinquent taxes.

(a) All taxes, except occupation and license taxes, are hereby declared to become due and payable on the first day of each and every year, and if not paid by the thirty-first day of December following, shall be deemed delinquent, and beginning with the delinquent taxes for the year 1933 and every year thereafter, a penalty of two percent upon the amount of the taxes due shall be added and paid, if paid during the month of January following such delinquency; four percent if paid during the month of February following such delinquency; six percent if paid during the month of March following such delinquency; eight percent if paid during the month of April following such delinquency; nine percent if paid during the month of May following such delinquency; and ten percent if paid thereafter; and interest shall be charged upon the gross amount of the tax and penalty due until paid, at the rate of six percent per annum.

(b) On all assessments made after the year of the tax, the six percent per annum interest shall be calculated the same as if the assessment had been made during the year of the tax and the ten percent penalty shall be calculated as if the tax did not occur until the year in which the assessment was made. All assessments for prior years made during the month of December shall be considered for purposes of calculating penalty to have been made during the calendar year next succeeding.

(c) The provisions of the foregoing subsections (a) and (b) shall not apply to the calculation of penalty and interest from and after January 1, 1982, being the effective date of Chapter 33 of the Texas Property Tax Code.
(Code 1968, § 44-30; Ord. No. 70-1813, § 1, 1-14-70)

Sec. 44-12. Where taxes payable.

All city taxes shall be payable at the office of the tax assessor-collector.
(Code 1968, § 44-31)

Sec. 44-13. Extension of time for payment, remitting, etc., of taxes and holding city position while owing taxes prohibited.

In no case shall the city council or any member of the city council, or any other officer of the city, extend the time for the payment of the taxes; nor shall any officer of the city remit, discount or compromise any taxes legally due the city; nor shall any person be elected mayor or councilman of the city, or hold any position, office or employment thereunder who is in arrears, or due and owing to the city any sum of money for taxes or otherwise.
(Code 1968, § 44-34)

Sec. 44-14. Payment of taxes to be credited on property; receipt for payment.

All sums of money received by the tax assessor-collector in payment of taxes, other than occupation or license taxes, shall be credited on the particular tract of land or parcel of property, or the specific item of personal property, upon which the tax is due, and a proper receipt shall be given therefor.
(Code 1968, § 44-35)

Sec. 44-15. Partial payment of current taxes on homestead.

(a) The tax assessor-collector is hereby authorized to accept a partial payment of current taxes on a homestead or veteran's property if:

(1) The taxpayer claims a partial homestead or veteran's exemption after the assessment roll has been approved; and

(2) The tax assessor-collector has been furnished a proper claim document proving that the taxpayer is entitled to the exemption.

After the partial payment has been made based on the proposed net taxable value of the property

the tax assessor shall issue a tax receipt clearly marked: "partial payment receipt." It shall also contain the following notation:

> "This receipt represents a partial payment of taxes originally assessed for the year shown and the amount thereof is tendered by the taxpayer and accepted by the City of Houston and/or Houston Independent School District with the express understanding that it will not in any way impair the balance of the taxes due for the year nor the lien securing same."

(b) In every event where the tax assessor-collector has been furnished the foregoing document providing the taxpayer's right to a partial tax exemption and as provided by the constitution and laws of this state, the tax assessor-collector shall correct the roll to show the correct net taxable value. As soon as practicable after the close of the tax year, the tax assessor-collector shall report in writing to the city council the total dollar amount of such corrections to the assessment roll.

(c) In the event that the assessment roll has been corrected to show the correct taxable value, a copy of the portion of the roll showing the corrected amount and the "partial payment receipt" shall constitute a receipt in full for the tax for that year.
(Code 1968, § 44-35.1; Ord. No. 79-1810, § 1, 10-23-79)

Sec. 44-16. Partial payment of delinquent taxes, penalty and interest.

The tax assessor-collector of the city is hereby authorized to accept partial payment on delinquent taxes and the penalty and interest due thereon, subject to the conditions set out herein; provided, each partial payment shall be credited against the oldest delinquent tax year or years, and provided further, that each payment shall be divided into the part of the tax actually paid and the penalty and interest due on such part to the date of the partial payment. The tax assessor-collector shall issue a "partial payment receipt" to the taxpayer showing the actual amount paid broken down into tax, penalty and interest. Such partial payments shall be apportioned ratably to the city and school taxes due for the year or years to which they are applied and they shall be in amounts which will clear the delinquency within a reasonable time.
(Code 1968, § 44-40.1; Ord. No. 69-966, § 1, 5-28-69)

Sec. 44-17. Assignment of tax judgments.

Upon the payment of any person of all taxes, penalties, interest and costs due to the city in any judgment recovered by the city against delinquent taxpayers for city taxes to the tax assessor-collector, the mayor and city secretary are hereby authorized to transfer and assign such judgment to the person so paying; provided, such transfer shall not be made except by consent of the delinquent taxpayer.
(Code 1968, § 44-48)

Sec. 44-18. Purchase of property sold to city for taxes.

(a) Any person who desires to buy any property which has been sold to the city for city taxes at an execution sale, shall except as heretofore provided, first pay to the tax assessor-collector the entire amount of taxes, penalties, interest and costs that may be due on such property.

(b) After such payment by such person the tax assessor-collector shall certify to the delinquent tax attorney that such payment has been made; and the city delinquent tax attorney, upon receipt of such certificate or statement, shall prepare a quitclaim deed to such property to the person making the payment, reciting in the deed as consideration the payment shown by the certificate of the tax assessor-collector and shall endorse on such deed his approval thereof.

(c) The delinquent tax attorney shall transmit the quitclaim deed, together with the certificate of the city tax assessor-collector, to the city secretary, who shall retain possession of such certificate as a permanent record of the office of the city secretary, and it shall thereupon be the duty of the mayor and city secretary to execute such deed in behalf of the city.
(Code 1968, § 44-52)

Sec. 44-19. Claims for refunds of ad valorem taxes.

(a) If a taxpayer applies to the tax assessor-collector of the city for a refund of an overpayment or erroneous payment of city ad valorem taxes and the city treasurer determines that the payment was erroneous or excessive, the tax assessor-collector shall refund the amount of the excessive or erroneous payment from available current city tax collections or from funds appropriated by the city council for making refunds.

(b) Each claim shall be in the form of an affidavit by the claimant describing in full the circumstances of the payment. Each claim shall be accompanied by a valid tax receipt or other acceptable proof of payment.

(c) No refund shall be made to a taxpayer who is delinquent in the payment of any tax collected by the city tax assessor-collector or who otherwise owes any sum of money whatsoever to the city.

(d) No refund of any tax shall be made under any circumstances unless and until the same has been approved in writing by the legal department.

(e) If the amount of the refund exceeds $500.00, the tax assessor-collector shall not make the refund unless the city council also determines that the tax payment was erroneous or excessive and approves the refund.

(f) A written application for a refund must be received by the tax assessor-collector within three years after the date of the payment or the refund shall not be allowed.

(g) No warrant shall be issued in payment of any claim unless and until all the above requirements have been complied with.
(Code 1968, § 44-52.1; Ord. No. 68-1162, §§ 1, 2, 7-17-68; Ord. No. 71-93, § 1, 1-13-71; Ord. No. 77-1068, § 1, 5-13-77; Ord. No. 80-144, § 1, 1-29-80)

Sec. 44-20. Paving assessment lien releases—Authority to execute.

(a) In any instance in which the record in the office of the city's tax assessor-collector reflects the fact that an assessment against a particular parcel of property in connection with any particular paving project has been paid in full, he is hereby authorized to execute in the name of the city and to acknowledge and deliver to any person requesting the same, a due and proper release reciting the fact of such payment and releasing the particular parcel of property involved from the assessment lien; and in any instance in which he is assured, either by the city controller, the city engineer, or the city attorney or a responsible assistant to him, that any paving assessment, the detailed record in connection with which is not being kept in his office, has been paid in full, he is also hereby authorized to execute, acknowledge and deliver such due and proper release. A request in writing to the tax assessor-collector, by the city controller, the city engineer, or the city attorney or any of his responsible assistants, shall constitute and have the effect of a certificate to him that the assessment in question has in fact been paid in full and that a release is in order.

(b) In any instance in which it is made to appear to the finance director of the city or to the mayor that any paving assessment owned or held by the city has been paid in full, they and either of them are hereby also authorized to execute, acknowledge and deliver such a release, being also entitled to rely for their assurance that the assessment has been paid in full, upon a written request therefor by the city controller, the city engineer, the city attorney or a responsible assistant to him, or a responsible assistant to the tax assessor-collector.

(c) In any instance in which the ordinance levying assessments with respect to a particular project indicates that no assessment was levied against a particular parcel of property included within the originally initiated limits of such project, the director of treasury is hereby authorized, upon approval by the city attorney or one of his assistants, to execute, acknowledge and deliver a due and proper release of the apparent lien against such property arising by virtue of the recording of the notice prescribed by article 1220a, Revised Civil Statutes of Texas.

(d) In any instance in which it is made to appear to the satisfaction of the city attorney, by affidavits or otherwise, that a particular parcel

of property included within the originally initiated limits of an assessment street-improvement project was, on the effective date, the exempt homestead of the owner or owners of such parcel, then the director of treasury is hereby authorized, upon approval by the city attorney or one of his assistants, to execute, acknowledge and deliver a due and proper release of the apparent lien against such property arising by virtue of the recording of the notice prescribed by article 1220a, Revised Civil Statutes of Texas. Any such release shall include a provision that the execution and delivery thereof shall not affect the personal liability of the true owners of the property with respect to the assessment.

(e) A fee shall be imposed for each release of lien provided hereunder as specified in section 2-125 of this Code.
(Code 1968, § 44-53; Ord. No. 74-831, §§ 1, 4, 5-21-74; Ord. No. 90-635, § 147, 5-23-90; Ord. No. 08-52, § 77, 1-16-08, eff. 1-26-08)

Cross reference—Paving assessments, § 40-250 et seq.

Sec. 44-21. Same—Attestation under city seal.

None of the releases authorized by section 44-20 of this Code shall require for their validity that they be attested by the city secretary or be under the seal of the city; provided, in any instance in which a particular person may desire and express a request that a release be furnished which is so attested under the city's seal, the city secretary is hereby authorized, upon there being presented to him duly signed by any of the foregoing authorized persons, a release releasing any such paving assessment, to attest the same under the city's seal.
(Code 1968, § 44-54)

Sec. 44-22. Residence homestead exemption.

(a) An owner of a residence homestead is hereby granted an exemption of 30 percent of the market value of such residence homestead for the year 1987.

(b) Any exemption granted hereunder shall be administered in a manner consistent with the applicable provisions of the state Property Tax Code.
(Code 1968, § 44-55; Ord. No. 83-1945, § 1, 12-1-83; Ord. No. 84-1839, § 1, 11-27-84; Ord. No. 85-1828, § 1, 10-15-85; Ord. No. 86-605, § 1, 4-29-86; Ord. No. 87-598, § 1, 4-28-87)

Sec. 44-23. Reserved.

Editor's note—Former § 44-23 was repealed by § 3 of Ord. No. 88-104, enacted Jan. 20, 1988. The repealed provisions pertained to a tax abatement program and derived from Ord. No. 85-55, § 1, enacted Jan. 15, 1985 and Ord. No. 87-1304, § 1, enacted July 29, 1987.

Sec. 44-24. Definition.

As used in this chapter, the term ad valorem property tax revenues means all revenues collected as a result of the taxation of real and personal property in the city, both current and delinquent.
(Ord. No. 03-737, § 1, 8-6-03)

Sec. 44-25. Tax rate limitation.

The city council shall not, except by ordinance approved by two-thirds of the full city council, levy ad valorem taxes at a rate expected to increase the city's ad valorem property tax revenues for the then current fiscal year in an amount greater than five percent more than the ad valorem property tax revenues collected during the immediately preceding fiscal year.
(Ord. No. 03-737, § 1, 8-6-03)

Sec. 44-26. Verification.

Each year before the adoption of an ordinance levying ad valorem taxes in the city, the city controller must furnish written verification as to whether the ad valorem tax rate proposed is expected to produce ad valorem property tax revenue collections during the then current fiscal year of no more than five percent more than the ad valorem property tax revenues collected in the immediately preceding fiscal year.
(Ord. No. 03-737, § 1, 8-6-03)

Sec. 44-27. Notice.

Before the passage of any ordinance required under section 44-25 of this Code, city council shall:

(1) Have published in the major Houston newspaper an analysis of anticipated increased revenues in any form required by the Texas Tax Code, if applicable; and

(2) Hold a public hearing thereon not earlier than seven days before the date of passage. The public hearing may be combined with a hearing required by the Texas Tax Code.

(Ord. No. 03-737, § 1, 8-6-03; Ord. No. 2020-629, § 2, 7-15-2020)

Sec. 44-28. Effect of annexation.

Ad valorem property tax revenues collected from any properties annexed after calendar year 2002 will be excluded from the calculation described in section 44-25 of this Code for the fiscal year in which the property is annexed.
(Ord. No. 03-737, § 1, 8-6-03)

Sec. 44-29. Tax relief for significant historic structures

(a) The city council may, by ordinance, grant tax relief in the form of an exemption from ad valorem taxation to any significant historic structure, that:

(1) Is at least 50 years old;

(2) If a residence, the structure:

A. Was originally built and used for non-residential purposes and

B. Now contains more than four residential units;

(3) Has received a city protected landmark designation under article VII of chapter 33 of this Code; and

(4) Has been designated as a Recorded Texas Historical Landmark, or is individually listed in the National Register of Historic Places, or has been mentioned as having historic significance in an authoritative survey conducted by a non-profit or government agency.

(b) For purposes of this section, any property that meets the criteria in subsection (a) is a significant historic structure. Each significant historic structure must obtain a 75 percent approval of the members of the Houston Archeological and Historical Commission present at a regularly scheduled meeting. The Houston Archeological and Historical Commission shall review the applications for tax relief for significant historic structures on an annual basis to determine whether the eligibility standards of subsection (a) are met. Each owner desiring the tax exemption must make sworn application to the director of finance of the city. The application shall be in a form approved by the director of finance and shall set forth facts sufficient to show that the significant historic structure is eligible for tax relief as described in this section.

(c) An exemption granted by city council upon recommendation of the Houston Archeological and Historical Commission shall exempt from ad valorem taxation the significant historic structure, improvements and land associated with this significant historic structure from ad valorem taxation. The exemption shall be computed on the following basis:

100 percent of the appraised value of the structure, improvements and the land necessary for access to and use of the significant historic structure per year may be exempt from ad valorem taxation. If the significant historic structure is owned by more than one owner, then the total tax reduction shall be pro-rated among the various multiple owners, in proportion to the appraised value of each owner's respective ownership interest in the structure to the total appraised value of all the owners' ownership interests in the structure. Under no circumstances may the exemption for any one structure result in a tax reduction of greater than $30,000.00 for any tax year.

City council from time to time may, by ordinance, exempt properties from the maximum limit established above so long as

the properties meet the criteria required for this exemption. The duration of the aforesaid exemption shall be for the duration of compliance with subsection (a) of this section. The exemption shall begin on January 1 of the year following the date that the exemption is granted by city council.

The director of finance, in consultation with the planning official, shall establish and promulgate written procedures for the implementation of the exemption and the annual review of applications, and these officials shall jointly make a recommendation and submit the recommendation of the Houston Archeological and Historical Commission to the city council regarding each application that is duly submitted for consideration.

(e) The director of finance shall conduct an annual review of each property granted an exemption as a significant historic structure, and, if he finds that:

(1) Any city taxes assessed on the subject property are delinquent;

(2) The owner or, in the case of multiple owners, any of the multiple owners is delinquent on city taxes on any other property;

(3) The significant historic structure has deteriorated, has been relocated, demolished or destroyed; or

(4) The site no longer meets the requirements of section (a) of this ordinance;

then the changed condition shall constitute grounds for revocation of the exemption.

The director of finance shall give a 90-day notice to the owner of a significant historic structure prior to any revocation of the exemption granted pursuant to this section. The purpose of such notice shall be to allow the owner an opportunity to correct the changed condition.

(f) Tax certificates issued for any significant historic structure receiving tax relief pursuant to this section shall be clearly marked: Significant Historic Structure—Subject to recapture of taxes under Code of Ordinances.(Each year during which the property is granted tax relief, the director of finance shall note on his or her records the valuation that would have been made and the taxes that would have been due had the significant historic structure not qualified for tax relief under this section. If the property has a changed condition described under subsection (e) of this section or no longer meets the requirements of subsection (a) of this section, then the property shall be subject to a recapture of taxes and subject to penalties and interest calculated under pertinent provisions of the Texas Tax Code. The additional tax shall be equal to the amount of the tax payable for the preceding fifteen years had the property not been granted tax relief. Such additional taxes shall be deposited in a segregated account, the use of which shall be established by city council by a subsequent ordinance. Until paid, there shall be a lien for additional taxes, penalty, and interest on the property granted tax relief under the provisions of this section. An obligation to pay recaptured taxes is extinguished by operation of force majeure. Force Majeure means: fires, floods, hurricanes, tornadoes, ice storms and other natural disasters, explosions, war, terrorist acts, riots, and the acts of superior governmental or military authority, and which the affected party is unable to prevent by the exercise of reasonable diligence. The term does not include any changes in general economic conditions such as inflation, interest rates, economic downturn or other factors of general application, bankruptcy or an event that merely makes performance more difficult, expensive or impractical.

(g) This exemption is not available to any qualifying significant historic structure that has been acquired or improved in whole or in part by a city funded economic development grant or loan, tax increment reinvestment zone financing or funding, tax abatement agreement, or acquired or improved as the subrecipient of a federally funded economic development grant or loan agreement.

(h) The owner of a historic site that receives an exemption under section 44-5 of this code may apply for and receive an exemption as a significant historic structure if it meets the requirements under this section.

(Ord. No. 07-658, § 3, 6-6-07; Ord. No. 08-52, § 78, 1-16-08, eff. 1-26-08)

Sec. 44-30. Tax exemption for child-care facilities.

There is hereby exempted from all ad valorem taxes hereafter levied by the city a portion of the appraised value of qualifying child-care facilities, as defined under Chapter 11 of the Texas Tax Code, as periodically amended. Effective January 1, 2024, the amount of the aforesaid exemption shall be equal to 100 percent of the appraised value of qualifying child-care facilities for the tax year 2024 and for each year thereafter." (Ord. No. 2024-146, § 2, 3-20-2024)

Secs. 44-31—44-74. Reserved.

ARTICLE II. SPECIFIC OCCUPATION TAXES

DIVISION 1. GENERALLY

Secs. 44-75—44-81. Reserved.

DIVISION 2. COIN-OPERATED MACHINES

Sec. 44-82. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Coin-operated machines means and includes every machine or device of any kind or character operated by or with coins, metal slugs, tokens, credit, debit or other electronic cards, checks or similar objects. A machine designed and manufactured to be so operated, but which is operated by payment of a fee for its use is included in this definition. Music coin-operated machines and skill and pleasure coin-operated machines, as those terms are hereafter defined, shall be included in such term.

Director means the director of the department of administration and regulatory affairs or his designee.

Merchandise coin-operated machine means and includes every coin-operated machine of any kind which dispenses or vends, or which is used or operated for dispensing or vending merchandise, commodities, or confections. The following are expressly included within such term: candy machines, gum machines, sandwich machines, handkerchief machines and sanitary drink cup machines.

Music coin-operated machine means and includes every coin-operated machine of any kind or character which dispenses or vends, or which is used or operated for dispensing or vending music. The following are expressly included within such term: coin-operated phonographs, pianos, gramophones, radios and all other coin-operated machines which dispense or vend music.

Operator means and includes any person who exhibits, displays or permits to be exhibited or displayed, in his or its place of business or upon premises under his or its control, any coin-operated machine in the city.

Owner means and includes any person owning or having the care, control, management or possession of any coin-operated machine in the city. The owner is solely responsible for paying to the city the occupation tax on each coin-operated machine exhibited or displayed within the city and for securing the city decal evidencing payment of such tax on each coin-operated machine.

Properly displayed means that the decal required by section 44-83 of this Code is affixed to a machine subject to this article in the manner required by section 44-85 of this Code.

Property owner means any person that owns, controls, leases or manages a building or location where coin-operated machines are displayed or exhibited and includes any agent of the property owner.

Service coin-operated machine means and includes pay toilets, pay telephones and all other machines or devices which dispense service only and not merchandise, music, skill or pleasure.

Skill or *pleasure coin-operated machine* means and includes every coin-operated machine of any kind or character whatsoever,

when such machine dispenses or is capable of being used or operated for amusement or pleasure, or when such machine is operated for the purpose of dispensing or affording skill or pleasure or for any other purpose other than the dispensing or vending of merchandise, music or service exclusively, as those terms are defined herein. The following are expressly included within such term: marble machines, marble table machines, marble-shooting machines, miniature race track machines, miniature football machines, miniature golf machines, miniature bowling machines, billiard tables and all other coin-operated machines which dispense or afford skill or pleasure. Every machine or device of any kind or character which dispenses or vends merchandise, commodities or confections or plays music in connection with or in addition to such games or dispensing of skill or pleasure shall be considered a skill or pleasure coin-operated machine.

(Code 1968, § 44-72; Ord. No. 75-1800, § 1, 10-7-75; Ord. No. 08-188, § 1, 3-5-08; Ord. No. 09-867, § 2, 9-23-09)

Sec. 44-83. Tax imposed; amount; registration.

(a) Every owner who exhibits or displays, or who permits to be exhibited or displayed in the city any coin-operated machine shall pay, and there is hereby levied on each coin-operated machine, except those that are exempt under section 44-89 of this Code, an annual occupation tax in the amount equal to one-fourth of the current state occupation tax. All occupation taxes for coin-operated machines are payable annually in advance. Upon payment of the tax every owner shall register each machine by make, model, serial number, and street address location with the director.

(b) Whenever an owner shall exhibit or display, or permit to be exhibited or displayed, any coin-operated machine for commercial use, there shall be securely attached thereto a decal issued by the director evidencing payment of the tax applicable thereto. Each coin-operated machine is subject to the occupation tax when exhibited or displayed for commercial use within the city. Since the tax is payable in advance on an annual calendar year basis, the following pro rata tax rate schedule will be applicable to a coin-operated machine which is first exhibited or displayed for commercial use within the city during any quarter of the calendar year:

(1) *First quarter: January 1 to March 31*—An amount equal to the applicable annual occupation tax;

(2) *Second quarter: April 1 to June 30*—An amount equal to three-quarters of the applicable annual occupation tax;

(3) *Third quarter: July 1 to September 30*—An amount equal to one-half of the applicable annual occupation tax; and

(4) *Fourth quarter: October 1 to December 31*—An amount equal to one-quarter of the applicable annual occupation tax.

In computing any tax payable under the aforesaid pro rata tax rate schedule, amounts calculated thereunder shall be rounded to the next higher full cent amount as required.

(Code 1968, § 44-73; Ord. No. 75-1800, § 1, 10-7-75; Ord. No. 81-2477, § 1, 12-15-81; Ord. No. 82-26, § 1, 1-5-82; Ord. No. 91-1649, § 1, 11-26-91; Ord. No. 07-1113, § 4, 10-3-07; Ord. No. 08-188, § 1, 3-5-08)

Sec. 44-84. To whom tax payable.

All occupation taxes provided for in this division shall be paid to the director.

(Code 1968, § 44-74; Ord. No. 75-1800, § 1, 10-7-75; Ord. No. 08-188, § 1, 3-5-08)

Sec. 44-85. Display and issuance of decal evidencing payment; penalties for noncompliance.

(a) The decal issued by the director to evidence payment of the tax levied herein shall be securely attached with its own adhesive to be a fixed, noninterchangeable part of the coin-operated machine so as to be easily seen by the public. This decal shall be of such a nature that the word "void" will appear if one attempts to remove it.

(b) During the period commencing on October 1 and ending on December 31 of each year, owners shall pay the occupation tax, register the machines taxed, and thereby receive a decal for each coin-operated machine to be within the city on January 1. For random generator machines as defined in section 5-161 of this Code, no more than five decals may be issued for such machines at one location unless the building, facility, or other place where the machines are located meets the requirements of this article and has a game room permit issued under this article. Prior to moving a registered machine to a new location, the owner shall personally submit to the director a change of street address location form.

(c) If, during each calendar year, an owner desires to register machines in addition to the machines registered during the period from October 1 through December 31, decals for such machines shall be issued upon registration of the machines and payment of the tax applicable to the calendar quarter in which such decals are obtained.

(d) It shall be unlawful for an owner or operator to exhibit or display, or to permit to be exhibited or displayed for commercial use any coin-operated machine which:

(1) Does not have properly attached thereto a decal evidencing payment of the applicable occupation tax;

(2) Is located at any address or location other than the location listed for such machine as shown in the records of the city; or

(3) Has affixed to it a decal other than the decal issued for such machine as shown in the records of the city.

Any violation of this subsection shall also subject the owner of a machine to the imposition of the civil penalty prescribed by subsection (e) of this section.

(e) The owner of a coin-operated machine on which the tax has not been paid shall forfeit to the city as a penalty the sum of $100. The penalty, if not paid, shall be recovered in a suit by the city attorney in a court of competent jurisdiction. A penalty assessed under this subsection is in addition to any other remedy authorized under this division.

(Code 1968, § 44-75; Ord. No. 75-1800, § 1, 10-7-75; Ord. No. 81-2326, § 1, 11-24-81; Ord. No. 07-1113, § 3, 10-3-07; Ord. No. 08-188, § 1, 3-5-08; Ord. No. 08-1145, § 5, 12-10-08; Ord. No. 09-867, § 3, 9-23-09; Ord. No. 2010-86, § 2, 2-3-10; Ord. No. 2010-754, § 9, 9-29-2010; Ord. No. 2014-674, §§ 5, 6, 6-25-2014)

Sec. 44-86. Sealing machine for nonpayment; hearings.

After January 1 of each year, the director or any officer of the police department shall seal, in a manner that will prevent further operation, any coin-operated machine upon which the tax required by this division has not been paid or upon which the decal is not properly displayed. The owner of any machine subject to this division shall be required to pay a fee equal to the maximum amount permitted under § 2153.453 of the Texas Occupations Code for the release of any machine sealed as provided herein for nonpayment of the tax or for failure to properly display the decal evidencing the payment of the tax. The current fee amount shall be stated for this provision in the city fee schedule. Upon proof of payment of the occupation tax provided for in this division, the penalty provided for in section 44-85 of this Code, and the release fee, the director will remove the seal.

Any owner desiring to contest the tax, fee, or penalty owed to the city to secure the release of a sealed machine may request a hearing before a hearing officer designated by the director in accordance with the following procedures:

(1) A request for hearing must be in writing and delivered to the director within ten days of the sealing of the machine. The owner waives the right to hearing if the request is not timely received by the director.

(2) The only issue before the hearing officer shall be whether or not a decal evidencing payment of the occupation tax was

purchased and properly displayed for the particular machine(s) made the subject of the appeal.

(3) If the hearing officer determines that a decal was not purchased or properly displayed, the machine shall remain sealed until any tax, fee, or penalty owed to the city has been paid or until the decal issued for a particular machine is properly displayed on that machine.

(4) The decision of the hearing officer shall be final.

(Code 1968, § 44-76; Ord. No. 75-1800, § 1, 10-7-75; Ord. No. 08-188, § 1, 3-5-08; Ord. No. 09-867, § 4, 9-23-09; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 44-87. Penalty for removal of sealed machine.

It shall be unlawful to remove from the premises any machine that has been sealed pursuant to section 44-86 of this Code. Whoever shall remove a machine that is sealed shall be guilty of a misdemeanor and, upon conviction, shall be punished by a fine of not less than $100.00 nor more than $500.00.

(Code 1968, § 44-77; Ord. No. 75-1800, § 1, 10-7-75; Ord. No. 92-1449, § 61, 11-4-92; Ord. No. 08-188, § 1, 3-5-08)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

Sec. 44-88. Penalty for breaking seal.

Whoever shall break the seal affixed pursuant to section 44-86 of this Code, or exhibit, display or remove any machine on which such seal has been broken, shall be guilty of a misdemeanor, and upon conviction, shall be punished by a fine of not less than $100.00 nor more than $500.00.

(Code 1968, § 44-78; Ord. No. 75-1800, § 1, 10-7-75; Ord. No. 92-1449, § 62, 11-4-92; Ord. No. 08-188, § 1, 3-5-08)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

Sec. 44-89. Offense by property owner; notice.

(a) It shall be unlawful for a property owner to knowingly permit the exhibition or display for commercial use any coin-operated machine that does not comply with this division.

(b) It shall be unlawful for a property owner to lease any property for the display or exhibition of any coin-operated machine in violation of this article.

(c) A property owner is presumed to have knowledge of a violation of this division upon notification to the property owner in writing by any law enforcement officer that a violation has occurred on his property.

(Code 1968, § 44-79; Ord. No. 75-1800, § 1, 10-7-75; Ord. No. 08-188, § 1, 3-5-08)

Sec. 44-90. Exemptions.

(a) Service coin-operated machines, merchandise coin-operated machines, gas meters, and cigarette vending machines which are now subject to an occupation or gross receipts tax, and coin-operated machines designed for and utilized exclusively by children are expressly exempt from the tax levied in this division.

(b) Coin-operated machines that have been remanufactured or altered not to accept coins are expressly exempt from the tax levied in this division unless they are operated by payment of a fee, as described in the definition of *coin-operated machine* set forth in section 44-82 of this Code.

(c) Coin-operated machines operated solely in a private residence and not available to the general public are expressly exempt from the tax levied in this division.

(Code 1968, § 44-80; Ord. No. 08-188, § 1, 3-5-08)

Sec. 44-91. No authorization for illegal machines.

Nothing contained in this division shall be construed or have the effect to license, permit, authorize or legalize any machine, device, table or coin-operated machine, the keeping, exhibition, operation, displaying or maintenance of

which is illegal or in violation of any article of the Penal Code of this state, or the constitution of this state.
(Ord. No. 08-188, § 1, 3-5-08)

Secs. 44-92—44-100. Reserved.

ARTICLE III. HOTEL OCCUPANCY TAX

Sec. 44-101. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Consideration means the cost of the room in a hotel only if the room is one ordinarily used for sleeping, and shall not include the cost of any food served or personal services rendered to the occupant of such room not related to the cleaning and readying of such room for occupancy.

Director means the director of the finance.

Hotel means any building or buildings in which the public may, for a consideration, obtain sleeping accommodations. The term shall include hotels, motels, tourist homes, houses, or courts, inns, rooming houses, or other buildings where rooms are furnished for a consideration, but shall not include hospitals, sanitariums, or nursing homes. Hotel does not include a boarding home, as defined in section 28-451 of this Code or a lodging facility, as defined in section 28-601 of this Code.

Occupancy means the use or possession, or the right to the use or possession, of any room in a hotel if the room is one ordinarily used for sleeping and if the occupant's use, possession, or right to use or possession extends for a period of less than 30 days.

Occupant means anyone, who, for a consideration uses, possesses, or has a right to use or possess any room in a hotel if the room is one ordinarily used for sleeping.

Person means any individual, company, corporation, or association owning, operating, managing or controlling any hotel.

Quarterly period means any one of the regular calendar quarters of the year, the first quarter being composed of the months of January, February and March, the second quarter being the months of April, May and June, the third quarter being the months of July, August and September, and the fourth quarter being the months of October, November and December.
(Code 1968, § 44-91; Ord. No. 69-637, § 1, 4-23-69; Ord. No. 72-300, § 1, 2-16-72; Ord. No. 06-946, § 2, 9-13-06; Ord. No. 08-52, § 79, 1-16-08, eff. 1-26-08Ord. No. 2018-225, § 12, 3-22-2018)

Sec. 44-102. Tax levied; amount.

There is hereby levied within the corporate limits of the city a tax upon the cost of occupancy of any room furnished by any hotel where such cost of occupancy is at the rate of $2.00 or more per day, such tax to be equal to seven percent of the consideration paid by the occupant of such room to such hotel.
(Code 1968, § 44-92; Ord. No. 69-637, § 2, 4-23-69; Ord. No. 72-300, § 2, 2-16-72; Ord. No. 77-1876, § 1, 9-21-77; Ord. No. 83-2054, § 1, 12-21-83; Ord. No. 84-65, § 1, 1-17-84; Ord. No. 91-89, § 1, 1-16-91)

Sec. 44-103. Collection of tax.

Every person owning, operating, managing or controlling any hotel shall collect the tax imposed by section 44-102 hereof for the city.
(Code 1968, § 44-93; Ord. No. 69-637, § 3, 4-23-69)

Sec. 44-103.1 Records; receipts; retention and inspection.

(a) Every person required to collect the tax imposed in this article shall keep the following information:

(1) For each room rental, the check-in and check-out dates, the consideration paid (including the state and local hotel occupancy taxes collected) on a per sleeping room rental basis, and the method of payment;

(2) Supporting documentation and certificates of exemption for guests who are exempt from the tax imposed in this article;

(3) Banking records that identify all room rental revenue collected; and

(4) Credit card records reflecting payments of room rentals.

(b) For room rentals paid by cash, every person required to collect the tax imposed in this article shall:

(1) Issue a customer an electronic or handwritten receipt that provides the date and time of the rental transaction, the room number, and the charges for room rental; and

(2) For handwritten receipts:

a. Issue the receipts in sequential, numeric order;

b. Retain a duplicate copy of the receipts; and

c. Mark spoiled receipts as void and retain such receipts as evidence of spoilage.

(c) A person subject to the requirements of this section shall retain all records provided for in this section in written or electronic form for a minimum of four years from the date of transaction.
(Ord. No. 06-946, § 3, 9-13-06)

Sec. 44-104. Quarterly reports to director.

On the last day of the month following each quarterly period, every person required in section 44-103 of this Code to collect the tax imposed by this article, shall file a report with the showing the consideration paid for all room occupancies in the preceding quarter, the amount of the tax collected on such occupancies, and any other information the director may reasonably require. Such person shall pay to the city the tax due on such occupancies at the time of filing such report.
(Code 1968, § 44-94; Ord. No. 69-637, § 4, 4-23-69; Ord. No. 06-946, §§ 1, 4, 9-13-06)

Sec. 44-105. Rules and regulations of director; access to books and records.

The director shall have the power to make such rules and regulations as are reasonable and necessary to effectively collect the tax levied hereby, and shall upon reasonable notice have access to books and records necessary to enable him to determine the correctness of any report filed as required by this article and the amount of taxes due under the provisions of this article.
(Code 1968, § 44-95; Ord. No. 69-637, § 5, 4-23-69; Ord. No. 06-946, § 1, 9-13-06)

Sec. 44-106. Penalties, interest and attorneys fees for delinquent reports and payments.

(a) Any person who fails to file a report as required herein or fails to pay to the director the tax imposed herein when said report or payment is due, shall be liable, in addition to the amount of tax owed under this article, for interest on the principal amount due at the rate of ten percent per annum, and a civil penalty equal to 15 percent of the total amount of the tax owed. In the event that a suit is instituted for the recovery of the taxes, the person shall also be liable for the city's reasonable attorney fees and costs incurred for the recovery of the tax, penalties and interest.

(b) Any person who fails to timely file a report or maintain a record or information as required by this article shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not less than $100.00 nor more than $500.00. Each day that any violation continues shall constitute and be punishable as a separate offense.

(c) The provisions of subsections (a) and (b) of this section are cumulative. However, no testimony or other evidence provided by a person in a civil prosecution under subsection (a) may be used against that person in a criminal prosecution under subsection (b).
(Code 1968, § 44-96; Ord. No. 69-637, § 6, 4-23-69; Ord. No. 69-925, § 1, 5-21-69; Ord. No. 82-2005, § 1, 12-21-82; Ord. No. 94-808, § 1, 8-17-94; Ord. No. 06-946, §§ 1, 5, 9-13-06)

Sec. 44-107. Use of funds derived from tax.

The revenue derived from the hotel occupancy tax shall be used for the following purposes and none other:

(1) The acquisition of sites for and the construction, improvement, enlarging, equipping, repairing, operation, and maintenance of convention center facilities, including, but not limited to, convention and entertainment facilities convention buildings, auditoriums, coliseums, civic theaters, museums, and parking areas or facilities for the parking or storage of motor vehicles or other conveyances located at or in the immediate vicinity of the convention center facilities;

(2) The furnishing of facilities, personnel and materials for the registration of convention delegates or registrants;

(3) For advertising for general promotional and tourist advertising of the city and its vicinity and conducting a solicitation and operating program to attract conventions and visitors either by the city or through contracts with persons or organizations selected by the city;

(4) The encouragement, promotion, improvement, and application of the arts, including music (instrumental and vocal), dance, drama, folk art, creative writing, architecture, design and allied fields, painting, sculpture, photography, graphic and craft arts, motion pictures, television, radio, tape and sound recording, and the arts related to the presentation, performance, execution, and exhibition of these major art forms;

(5) Historical preservation and restoration.

Provided that a portion of the said tax revenue equal to at least one percent of the cost of occupancy of hotel rooms shall be reserved for the purpose of advertising and conducting solicitation programs to acquaint potential users with public meeting and convention facilities, and for promotion of tourism and advertising of the city and its vicinity either by the city or through contract with organizations or persons selected by the city.

(Code 1968, § 44-97; Ord. No. 72-300, § 3, 2-16-72; Ord. No. 77-1876, § 2, 9-21-77; Ord. No. 96-50, § 2, 1-17-96)

Secs. 44-108—44-119. Reserved.

ARTICLE IV. TAX ABATEMENT*

Sec. 44-120. Preamble—General policy and program requirements.

(a) The City of Houston Tax Abatement Program is created to encourage new development and the growth of existing development and to stimulate new job growth and investment in the city. The tax abatement program and other forms of economic development incentives are available to many types of businesses to address the city's economic development needs and objectives stated in this general policy and pursuant to the provisions of this article.

The city's principal economic development tools should be maintenance of the city's natural competitive advantages and provision of detailed information concerning the city's advantages compared to those of other cities for potential relocation of all or substantial portions of various businesses. For a wide variety of businesses and professional firms, Houston rarely should be at a cost disadvantage relative to large urban centers, particularly those outside of Texas.

The city and its metropolitan area offer significant competitive advantages and cost savings to businesses seeking to locate or expand in our region. These advantages include:

(1) A large, growing workforce with abundant skills appropriate for all levels of an organization;

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*__Editor's note—__The City Council adopts and ratifies revised guidelines and criteria for tax abatement to be codified as Article IV of Chapter 44, which shall replace the expired version of same article which was Ord. No. 2022-344, § 4, adopted May 4, 2022 as amended by Ord. No. 2024-624, § 2, adopted August 28, 2024.

(2) An affordable cost of living, which makes Houston attractive to workers and makes our personnel costs more competitive than most major urban areas;

(3) An abundance of buildable sites and relatively low cost of occupancy compared to other major urban centers in the United States, especially those outside of Texas; and

(4) A superb transportation infrastructure, including the Port of Houston, the Houston Airport System, and central locations for distribution by truck, rail, and water.

The city, however, will from time to time consider appropriate economic incentives for the relocation, expansion or retention of businesses, whether intellectual capital or fixed asset-based, to the extent these incentives would be the critical element that would govern a decision to relocate or expand a business here. Incentives might include tax abatements, as described in these guidelines and criteria, or another appropriate form of incentive, such as expedited permitting for a development project or investment in infrastructure that would be useful in developing a particular site, which could include investments enhancing transportation, water and sewer services or other public infrastructure. Such improvements benefit not only the affected business but also the larger community.

Incentives other than tax abatement might be funded through accelerated capital improvements plan action or special district financing such as tax increment financing, special assessment financing, or in-city municipal utility districts. The city could also consider beneficial land exchanges, right-of-way abandonment, or below-market financing or leases on public property that could provide mutual benefit to the city and the proposed development. Any offer of such an incentive would be reviewed case-by-case to determine eligibility and compliance with all applicable laws.

To assist the city in obtaining an equitable portion of state economic development funds, the city will consider applications for tax abatements that trigger some level of state economic development assistance. The Houston region contributes about one-quarter of the funds to the State of Texas' general revenues. In turn, a proportionate share of the state's economic development budget is attributable to the Houston region. If allocated over time equitably among the regions of the state in proportion to the employment and financial contributions to state revenues, these funds should provide funding for economic incentives for corporate relocations and expansions in our region, when combined with the other substantial advantages for economic growth in our region.

It is the goal of the city that local taxing jurisdictions in our region should not use ad valorem tax abatement to compete against each other for business relocations or expansions. It should be recognized that the attraction of new businesses to any part of our region strengthens our overall region and the people in it.

Officials at the city, at the most senior level, will meet at any time with the person who is ultimately responsible for making a decision to relocate or to expand to address specific economic or other issues that would be decisive in corporate location. The city would negotiate in a business-like manner on a case-by-case basis. There is no "standard" tax abatement, and no entity or individual other than a designated city official is authorized to negotiate with respect to any tax abatement proposal or incentive that might be available on a case-by-case basis.

Typically, city officials would want to see pro forma financial information to assist in making judgments concerning the role of property tax costs in the economics of the relocation. The city understands that for many businesses some incremental amount of ad valorem taxes would not represent a substantial percentage of the cost of goods sold. Other incentives, as referenced above, may be discussed with city officials.

(b) Tax abatements may be used in special situations, subject to the guidelines and criteria described herein. Examples of special situations include:

(1) The location of a high-employment facility in a particularly distressed or neglected part of the city, where increased job opportunities could contribute significantly to a reduction in crime or cascading redevelopment of other sites, which would more than offset the loss of the tax benefit;

(2) A substantial equity investment in real estate development serving an important public purpose, such as providing affordable housing that could lead to redevelopment of a blighted area or attracting additional development;

(3) A case in which a company could not and would not remain, expand or locate in Houston, because of another viable option that took into account all significant costs. Any representation by the company would need to be supported by credible economic analysis in a direct communication between the mayor or other appropriate senior official and the private sector decision maker; or

(4) The property, if abated, will be reasonably likely to contribute to the retention or expansion of primary employment or to attract major investment that would be a benefit to the property and the larger community and that would contribute to the economic development of the city.

(c) Subject to this general policy, when tax abatements are available, they would be offered as described in the guidelines and criteria set forth in this article, with the following general limits and guidelines:

(1) For typical commercial and industrial tax abatements, the city would negotiate an abatement scale and duration based primarily on investment level, rather than jobs. Each project would be evaluated and the incentive tailored to an analysis based on factors such as industry competitive disadvantages, quantifiable economic impacts, and furthering other public purposes in unique ways. An applicant would be required to submit an economic impact analysis from reliable modeling tools. Depending on an analysis of such factors and data, the city would evaluate the appropriate level and duration of abatement;

(2) Reduced investment requirements and flexible abatement scales could be available for tax abatements within state enterprise zones, or eligible new markets tax credits census tracts, bank finance districts, and other non-city incentives that require local matching. This aspect of the program would emphasize encouraging access to other local, state and federal incentives to leverage the city abatement incentive;

(3) The city will require applicants to commit to providing enhanced community benefits as a condition to tax abatement incentive benefit. The enhanced community benefit may include employment and development of programs that strengthen local communities, such as the city's Minority and Women-Owned and Disadvantaged Business Enterprise Programs, local purchasing, construction and redevelopment within underserved communities or other identified areas that would see a greater benefit or return on investment in the area, the creation of permanent employment and full-time job opportunities within those defined areas, jobs that include employee health care benefits, and other endeavors that can be shown to bring a wider reaching, long-term economic benefit to the communities where the activity or enterprise will be located, and to the city overall. Table 44-1 below includes the types of activities and benefits the city will give the most weight to, though others not on the list may be considered by the Mayor's Office of Economic Development. Applica-

tions for tax abatement must include one or more of the items listed in Table 44-1.

Table 44-1

1	Job Training and Certification Grants to Non Profit Workforce Training Agencies for Residents of Qualifying Census Tracts
2	On-Site Retail Space and Pop-Up Opportunities for Businesses Located in Qualifying Census Tracts
3	First Source Hiring Focused on Residents of Qualifying Census Tracts (e.g., utilizing good faith efforts toward employing residents of qualifying census tracts for entry-level positions on applicable projects)
4	Affordable Housing
5	Workforce Housing
6	Job Training for Entry or Mid-Skill Level Jobs
7	Participation in Job Reentry Programs (other than the City of Houston's Community Re-Entry Network Program)
8	Paid Internships for Low Income Students

(4) In addition, the city will require applicants to provide evidence they will:

a. Advertise new job postings with the City of Houston's Community Re-Entry Network Program;

b. Provide construction workers with a minimum of ten hours of OSHA-approved safety training;

c. Require general contractors to employ a safety representative with a minimum of 30 hours of OSHA-approved supervisor safety training on each construction site;

d. Make good faith efforts to ensure that a minimum of 25 percent of the total labor force for construction and non-construction job requirements is obtained by hiring individuals who live in a census tract with an average income lower than that of the city average, based on the most recent five-year American Community Survey estimate;

e. Make good faith efforts to ensure that a minimum of 25 percent of the total labor force for construction and non-construction job requirements is obtained by hiring individuals who live in the same census tract as the project, or who live in an adjacent census tract, for a tax abatement agreement described in subsection (c)(8) of this section where the project is located in, or adjacent to, a census tract described in subsection (c)(4)d above; and

f. Make good faith efforts to hire and employ a minimum of 30 percent of its construction workforce from local Department of Labor-certified apprenticeship programs.

(5) All contracts and subcontracts for public infrastructure, or for other public improvements that are to be conveyed to the city upon completion, shall contain requirements for compliance with governing statutes and local requirements on labor classification of wage scales for each craft or type of laborer, worker, or mechanic.

(6) Contractors and subcontractors will be subject to audits and inspections of payroll records to ensure compliance with the requirements of this chapter.

(7) Qualifying residential projects or projects with a qualifying residential component will be required to develop and commit 20% or more of the project residential units for residents with income levels between 30% and 120% of area median income for the duration of the tax abatement agreement.

(8) An enhanced abatement for no more than ten years and up to 90% may be considered for:

a. Targeted industry clusters specifically targeted for future growth, for

example, aviation, biotechnology, information technology, aerospace, energy, or other industries that the city from time to time determines to have a particular beneficial impact on the regional economy;

b. New or expanding businesses (for example, retail, industrial, commercial) in neighborhood areas targeted for revitalization (for example, Houston Hope areas or other distressed or neglected parts of the city); and

c. Transit-oriented development within 1,500 feet of transportation corridors, such as existing and planned Metro rail stops, multi-modal centers, and bus transfer stations.

(Ord. No. 2018-391, § 2(Exh. A), 5-16-2018; Ord. No. 2020-424, § 2(Exh. A), 5-13-2020; Ord. No. 2022-344, § 4, 5-4-2022; Ord. No. 2024-624, § 2, 8-28-2024)

Sec. 44-121. Definitions.

As used in this article, the following terms shall have the meanings ascribed in this section unless the context of their usage clearly indicates another meaning:

Abatement means the full or partial exemption from ad valorem taxes of certain real and/or personal property in a reinvestment zone.

Abatement recipient means the owner of real or tangible personal property located on the real property, the lessee of real or personal property, or both, as applicable, who receive an abatement pursuant to this article.

Agreement means a contractual agreement authorized by the city council between an abatement recipient and the city for the purpose of a tax abatement.

Base year value means the assessed value of eligible property on January 1 preceding the execution of the agreement plus the agreed upon value of eligible property improvements made after January 1, but before the execution of the agreement.

Brownfield facility means real property or tangible personal property located on the real property used as an authorized facility as provided in sections 44-129 and 44-130 of this Code.

Competitive siting means evidence that the applicant has studied competing locations for expansion, relocation, or new operations to evaluate operating cost differentials and incentives available, excluding, however, locations in taxing jurisdictions with which the city has an agreement not to compete for projects by offering financial incentives.

Complete community means an area designated as such by the city or the mayor in order to focus civic, business, and philanthropic resources on community needs as identified by the residents and larger community, such as housing, parks and environmental, economic, health, educational, mobility and infrastructure, and other social services, projects, or programs.

Contract employee means an individual who is not a permanent employee or an affiliate of the abatement recipient but who does work for the abatement recipient in the reinvestment zone on a contract basis, either on a full- or part-time basis.

Conventional stormwater detention means stormwater detention that does not meet the applicable design criteria for a low impact development design approach described in chapter 9 of the design manual.

Deferred maintenance means improvements necessary for continued operations that do not improve productivity or alter the process technology.

Design manual has the meaning ascribed in section 42-1 of this Code.

Deteriorated/demolished property means any real property located in a reinvestment zone designated pursuant to item (1), (2), or (3) of section 44-122(d) of this Code, and on which improvements subject to an order and any extensions granted by the department of neighborhoods were declared dangerous or were demolished not more than one year before the date that a complete application for

tax abatement is filed, and pursuant to a permit for demolition issued by the city with which the owner complied, and on which the owner has filed with the city an application for a building permit to construct new improvements no later than one year after the date that a complete application for tax abatement was filed.

Deteriorated / demolished property redevelopment means a residential facility with structures containing four or fewer dwelling units per structure constructed as part of a unified plan on contiguous property comprising at least one existing block.

Director means the mayor, or the person designated by the mayor to administer these guidelines and criteria.

Dwelling unit means a structure, or a portion of a structure, that has independent living facilities including provisions for non-transient sleeping, cooking and sanitation.

Economic life means the number of years a property improvement is expected to be in service in a facility.

Eligible jurisdiction means any county, municipality or college district that levies ad valorem taxes upon and provides services to property located within a proposed or existing reinvestment zone.

Expansion means the addition of buildings, structures, fixed machinery or equipment for purposes of increasing production capacity.

Facility means property improvements, completed or in the process of construction or expansion, that together comprise an integral whole.

Full-time equivalent means a job that is equivalent to 1,750 hours of work annually performed in the reinvestment zone by one or more contract employees or part-time employees.

Green stormwater infrastructure means infrastructure designed and constructed for stormwater management to minimize the downstream impacts of development while providing additional environmental, social, or ecosystem benefits or services, which may include mitigating risk of flooding, reducing heat island effect or other climate-related hazards, improving water quality, sequestering carbon, encouraging water conservation, restoring native ecosystems, creating economic growth, or addressing quality of life challenges.

LEED means Leadership in Energy and Environmental Design, a green building rating system developed by the USGBC that provides a framework and standard for green building design, construction, operations, and performance.

LEED certification means a Silver, Gold, or Platinum rating level certification obtained from USGBC.

Manufacturing facility means buildings and structures, including fixed machinery and equipment, the primary purpose of which is or will be the manufacture of tangible goods or materials or the processing of such goods or materials by physical or chemical change.

Mixed-use facility means a facility used or to be used for more than one of the types of facilities defined in this section.

Modernization means the replacement and upgrading of existing facilities that increase the productive input or output, extend the economic life of a facility, update the technology or substantially lower the unit cost of the operation of a facility. Modernization may result from the construction, alteration or installation of buildings, structures or fixed machinery or equipment, but construction, alteration or installation for the purpose of reconditioning, refurbishing or repairing to meet local, state, or federal regulations shall not be considered modernization.

New commercial facility means a new facility, other than a residential facility that consists of one structure containing four or fewer dwelling units, that is an authorized facility described in section 44-127(a) of this Code.

New facility means improvements on property previously undeveloped that is placed into service by means other than or in conjunction with expansion or modernization.

Order means an order issued by the city pursuant to article IX of chapter 10 of this Code requiring the improvements on property to be demolished.

Other basic industry facility means buildings and structures, including fixed machinery and equipment not elsewhere described, that meet the economic development objectives of the general policy stated in section 44-120 of this Code.

Owner means the person or entity responsible for paying property taxes on taxable real property or tangible personal property located on the real property or an interest therein including one or more leasehold interests.

Part-time employee means an individual who works for, and is an employee of, the abatement recipient in the reinvestment zone, but is not a permanent employee.

Permanent employee means an individual who is an employee of the abatement recipient or an affiliate of the abatement recipient, works a minimum of 35 hours in a seven-day period, and reports to work in the reinvestment zone, excluding any contract employee, seasonal employee or part-time employee.

Qualifying census tract means any population census tract where (1) the poverty rate for such tract is at least 20 percent; or (2) the median family income for such tract does not exceed 80 percent of the metropolitan area median family income for the Houston-The Woodlands-Sugar Land Metropolitan Statistical Area as defined by the Office of Management and Budget in the Executive Office of the President of the United States.

Regional distribution center facility means buildings and structures, including fixed machinery and equipment, used or to be used primarily to receive, store, service or distribute goods or materials owned by the facility operator, where a majority of the goods or services are distributed to points at least 100 miles from any part of Harris County, unless there is no facility in Harris County that receives, services or distributes such goods and services to businesses and residents of Harris County.

Regional entertainment facility means buildings and structures, including fixed machinery and equipment, used or to be used to provide entertainment through the admission of the general public, where the majority of users reside at least 100 miles from any part of Harris County, unless there is no facility providing the same or similar entertainment in Harris County.

Regional service facility means buildings and structures, including fixed machinery and equipment, used or to be used to service goods, where a majority of the goods being serviced originate at least 100 miles from any part of Harris County, unless there is no facility in Harris County where businesses and residents of the county can obtain such service.

Research and development facility means buildings and structures, including machinery and equipment, used or to be used primarily for research or experimentation to improve or develop current technology, including but not limited to bio-medicine, electronics or pre-commercial emerging industries.

Research facility means buildings and structures, including fixed machinery and equipment, used or to be used primarily for research or experimentation.

Residential facility means one or more buildings and structures, including machinery and equipment, used or to be used primarily for living, sleeping, cooking and eating, that are intended to be used or occupied as dwelling places whether or not attached.

Retail facility means buildings and structures, including machinery and equipment, used or to be used primarily for the sale or service of goods or foods to consumers.

TCEQ means the Texas Commission on Environmental Quality or other agency of the

state of Texas that administers the voluntary cleanup program authorized in Subchapter S, Chapter 361, Texas Health & Safety Code.

Target area means an area that qualifies for Texas Enterprise Zone designation pursuant to the Texas Enterprise Zone Act.

Texas Enterprise Zone Act means Chapter 2303 of the Texas Government Code, as amended from time to time.

Total green stormwater infrastructure cost means, with respect to a facility that is eligible for a green stormwater infrastructure tax abatement, the total cost to the owner for the construction of green stormwater infrastructure, including soft costs such as planning and design costs and interest incurred in financing the construction of green stormwater infrastructure, and, for green stormwater infrastructure described in subsection (c)(ii) of section 44-132, five years of maintenance costs, but excluding the costs associated with construction of conventional stormwater detention.

Total project cost means, with respect to a facility that is eligible for a LEED tax abatement or a green stormwater infrastructure tax abatement, the total cost of construction to the owner, including soft costs such as planning and design, but excluding the costs of the acquisition of land.

USGBC means the U.S. Green Building Council.

(Ord. No. 2018-391, § 2(Exh. A), 5-16-2018; Ord. No. 2020-424, § 2(Exh. A), 5-13-2020; Ord. No. 2020-1091, § 2, 12-16-2020; Ord. No. 2022-344, § 4, 5-4-2022; Ord. No. 2024-624, §§ 3, 8-28-2024)

Sec. 44-122. Reinvestment zones.

(a) Tax abatement shall only be allowed in a reinvestment zone.

(b) Reinvestment zones in the city for the purpose of tax abatement shall be considered for designation by city council upon the recommendation of the director subject to the criteria of this section. The city council may approve the creation of reinvestment zones on a zone-by-zone basis after a public hearing before the city council.

(c) The city council shall not adopt an ordinance designating a reinvestment zone until it has held a public hearing at which interested persons are entitled to speak and present evidence for or against the designation. Notice of the hearing shall be given not later than the seventh day before the date of the hearing by:

(1) Publication in a newspaper of general circulation in the city; and

(2) Delivery in writing to the presiding officer of each eligible jurisdiction.

The notice shall contain the location, time, and place of the public hearing and a description of the proposed boundaries of the reinvestment zone.

(d) To be designated as a reinvestment zone an area must:

(1) Substantially impair or arrest the sound growth of the city, retard the provision of housing accommodations or constitute an economic or social liability and be a menace to the public health, safety, morals, or welfare in its present condition and use by reasons of the presence of:

a. A substantial number of substandard, slum, deteriorated, or deteriorating structures;

b. The predominance of defective or inadequate sidewalks or streets;

c. Faulty size, adequacy, accessibility or usefulness of lots;

d. Unsanitary or unsafe conditions;

e. The deterioration of site or other improvements;

f. Tax or special assessment delinquency exceeding the fair value of the land;

g. Defective or unusual conditions of title;

h. Conditions that endanger life or property by fire or other cause; or

i. Any combination of these factors or conditions;

(2) Be predominantly open or undeveloped and, because of obsolete platting, deterioration of structures or site improvements or other factors, substantially impair or arrest the sound growth of the city;

(3) Be designated a local or state-federal enterprise zone under the Texas Enterprise Zone Act;

(4) Be located wholly within an eligible area under Section 119 of the Housing and Community Development Act of 1974, as identified from time to time by city council; or

(5) Be reasonably likely as a result of the designation to contribute to the retention or expansion of primary employment or to attract major investment in the zone that would be a benefit to the property and the larger community and that would contribute to the economic development of the city.

(e) The goals and objectives expressed above and the standards and restrictions expressed in Chapter 312 of the Texas Tax Code, as amended, are not exhaustive and shall be supplemented by such further and additional goals, objectives, rules, standards and restrictions as the city council may from time to time impose.

(f) The designation of a reinvestment zone hereunder shall expire five years after the date of its designation and may be renewed for periods not to exceed five years. The expiration of a designation, however, shall not affect any existing agreement entered into pursuant to this article.
(Ord. No. 2018-391, § 2(Exh. A), 5-16-2018; Ord. No. 2020-424, § 2(Exh. A), 5-13-2020; Ord. No. 2020-1091, § 3, 12-16-2020; Ord. No. 2022-344, § 4, 5-4-2022; Ord. No. 2024-624, § 2, 8-28-2024)

Sec. 44-123. Abatement application.

(a) Any present or potential owner in the city may request tax abatement by filing a written request with the director.

(b) The application shall consist of a complete application form accompanied by a nonrefundable application fee in the amount stated for the applicable provision in the city fee schedule, subject to subsection (k) of this section, and, unless otherwise provided herein:

(1) A general description of the new improvements to be undertaken;

(2) A descriptive list of the improvements for which abatement is requested;

(3) A list of the kind, number and location of all proposed improvements of the property;

(4) A map and legal description of the property;

(5) A time schedule for undertaking and completing the proposed improvements;

(6) Financial information including but not limited to items (i) demonstrating the role of property tax costs in the economics of the proposed improvements; (ii) stating concisely the amounts and sources of financing for the proposed improvements, including all sources and terms of debt and equity financing; and (iii) demonstrating the overall financial impact of the proposed improvements on the local and regional economy, using reliable economic forecast modeling tools in such form as approved by the director;

(7) If the applicant is considering a location outside the city for the proposed improvements, evidence of abatement or other financial incentive from other local, state, or federal governmental entities; and

(8) A statement describing how the proposed improvements are consistent with the general policy stated in section 44-120 of this Code.

(c) The complete application for an economic development abatement shall consist of a complete application form accompanied by a nonrefundable application fee in the amount stated for this provision in the city fee schedule and:

(1) A certification of the current number of permanent, part-time, and contract employees of the applicant, by category, at the time of the application;

(2) If the applicant is considering a location outside the city for the project, information regarding the project's competitive siting, including written evaluation of competing locations for expansion, relocation, or new operations, including identification of specific sites in those locations;

(3) For a project located in a leased facility, the name and address of the lessor and, if executed, a copy of the lease; and

(4) For modernization, a statement of the assessed value of the existing facility for the tax year immediately preceding the application year, separately stated for real and tangible personal property.

(d) The complete application for a brownfield development abatement shall consist of a complete application form accompanied by a nonrefundable application fee in the amount stated for this provision in the city fee schedule and:

(1) A description of the intended use of the proposed brownfield facility; and

(2) A copy of a voluntary cleanup agreement with the TCEQ for the proposed brownfield facility or a certificate of completion for the property issued by TCEQ for the proposed brownfield facility.

(e) The complete application for a deteriorated/demolished property abatement shall consist of a complete application form accompanied by a nonrefundable application fee in the amount stated for this provision in the city fee schedule and

(1) The information required by items (1) through (5) of subsection (b) of this section;

(2) A copy of the order;

(3) A copy of the demolition permit issued by the city for the demolition of the improvements subject to the order; and

(4) Photographs showing the current conditions of the deteriorated/demolished property.

(f) The complete application for a LEED tax abatement shall consist of a complete application form accompanied by a nonrefundable application fee in the amount stated for this provision in the city fee schedule and:

(1) The information required by items (1) through (5) of subsection (b) of this section;

(2) The total project cost; and

(3) Documentation that the applicant has registered with USGBC seeking LEED certification for the new commercial facility for which it is seeking a tax abatement.

(g) The complete application for a green stormwater infrastructure tax abatement shall consist of a complete application form accompanied by a nonrefundable application fee in the amount stated for this provision in the city fee schedule and:

(1) The information required by items (1) through (5) of subsection (b) of this section;

(2) Proposed strategy to obtain all required plans and approvals to construct the green stormwater infrastructure;

(3) Proposed strategy to maintain, during the abatement period, the green stormwater infrastructure in accordance with the applicable detention volume or stormwater quality design criteria from the design manual;

(4) The total project cost;

(5) The total green stormwater infrastructure cost; and

(6) An analysis that indicates that the green stormwater infrastructure will mitigate risk of flooding, reduce heat island effect or other climate-related hazards, improve water quality, sequester carbon, encourage water conservation, or restore native ecosystems through green stormwater infrastructure. The analysis must demonstrate how the green stormwater infrastructure of the facility for which the applicant is seeking a tax abatement

provides (i) hazard mitigation and additional environmental, social, or ecosystem benefits or services, and (ii) a net public benefit. The analysis must use a methodology that (i) is promoted or utilized by federal agencies, or (ii) has otherwise been peer-reviewed and is academically-accepted in the field of green infrastructure and stormwater management.

(h) The application form may require such financial and other information as the director deems appropriate for evaluation of the financial capacity and other factors of the applicant.

(i) The city shall not enter into an agreement if it finds that the request for the abatement was filed after the commencement of construction, alteration, or installation of improvements related to a proposed modernization, expansion or new facility. An applicant is ineligible for abatement if a decision to commence a modernization, expansion or new facility in the city has been formally announced on or before an application for abatement has been filed with the city.

(j) Upon receipt of a complete application for abatement, the director shall notify in writing the presiding officer of the governing body of each eligible jurisdiction of the abatement application, which notice shall include a copy of the application.

(k) An applicant who submits an application for more than one type of tax abatement shall only be required to submit one nonrefundable application fee, which, if applicable, shall be in the amount stated for the type of tax abatement with the highest application fee.

(l) The application fees established in this section shall not be subject to the annual adjustment provided for in section 1-13 of this Code.
(Ord. No. 2018-391, § 2(Exh. A), 5-16-2018; Ord. No. 2020-424, § 2(Exh. A), 5-13-2020; Ord. No. 2020-1091, § 4, 12-16-2020; Ord. No. 2022-344, § 4, 5-4-2022; Ord. No. 2024-624, § 2, 8-28-2024)

Sec. 44-124. Cost/benefit analysis.

After receipt of a complete application for abatement, the director shall prepare a cost/benefit impact analysis setting out the impact of the proposed tax abatement. the cost/benefit impact analysis shall include, but need not be limited to, an estimate of the economic effect of the abatement of taxes, the benefit to the city and the property to be included in the zone, and any other pertinent measures of the project's overall projected effects on the city's revenue stream both during and after the abatement period.
(Ord. No. 2018-391, § 2(Exh. A), 5-16-2018; Ord. No. 2020-424, § 2(Exh. A), 5-13-2020; Ord. No. 2022-344, § 4, 5-4-2022; Ord. No. 2024-624, § 2, 8-28-2024)

Sec. 44-125. Variances.

Requests for a variance from any of the provisions of these guidelines and criteria shall be made in writing to the director; provided however, the total duration of an abatement shall in no instance exceed ten years, or such other limitation on duration as provided by applicable law. A request for a variance shall include a complete description of the circumstances explaining why the applicant should be granted a variance and how the grant of abatement is consistent with the general policy of section 44-120 of this Code. If the city council finds that the application meets the economic development objectives of these guidelines, then the city council may approve a request for variance by a three-fourths vote of the city council members present.
(Ord. No. 2018-391, § 2(Exh. A), 5-16-2018; Ord. No. 2020-424, § 2(Exh. A), 5-13-2020; Ord. No. 2022-344, § 4, 5-4-2022; Ord. No. 2024-624, § 2, 8-28-2024)

Sec. 44-126. Public hearing and approval; notice requirements.

(a) Prior to entering into an agreement, the city council shall hold a public hearing at which interested persons shall be entitled to speak and present written materials for or against the approval of the agreement. Notice of the public hearing shall be published in a newspaper of general circulation and posted on the city's website not later than the seventh day before the date of the hearing. Notice of the public hearing may be given, posted or published in other places or by

other means as the director deems appropriate, including giving notice to civic associations in the area surrounding the proposed zone.

(b) In order to enter into an agreement, the city council must find that the terms of the proposed agreement meet the applicable criteria of this article and that:

(1) There will be no substantial potential adverse effect on the provision of city services or the tax base; and

(2) The planned use of the property will not constitute a hazard to public safety, health or morals.

(c) Not later than the seventh day before the day on which the city enters into an agreement, the city shall deliver to the presiding officer of the governing body of each eligible jurisdiction a written notice that the city intends to enter into the agreement, together with a copy of the proposed agreement.

(d) In addition to any other requirement of law, the public notice of the meeting at which city council will consider the approval of an agreement must be provided in the manner required by Chapter 551 of the Texas Government Code at least 30 days before the scheduled time of the meeting and must contain:

(1) The name of the owner and the name of the applicant for the agreement;

(2) The name and location of the reinvestment zone in which the property subject to the agreement is located;

(3) A general description of the nature of the improvements or repairs included in the agreement; and

(4) The estimated cost of the improvements or repairs.

(Ord. No. 2018-391, § 2(Exh. A), 5-16-2018; Ord. No. 2020-424, § 2(Exh. A), 5-13-2020; Ord. No. 2022-344, § 4, 5-4-2022; Ord. No. 2024-624, §§ 2, 4, 8-28-2024)

Sec. 44-127. Economic development abatement authorized.

(a) *Authorized facility.* A facility is eligible for economic development abatement if it is a manufacturing facility, mixed-use facility, regional distribution center facility, regional service facility, regional entertainment facility, research facility, research and development facility, residential facility, retail facility, or other basic industry facility.

(b) *Creation of new value.* Abatement shall only be granted for the additional value of eligible property improvements made subsequent to and listed in an agreement, subject to such limitations as the city council may require.

(c) *New and existing facilities.* Abatement may be granted for new facilities or the expansion of existing facilities. Improvements to existing facilities for purposes of modernization may receive abatement if proven to be essential to the entity's or the facility's economic survival.

(d) *Eligible property.* The following types of property shall be eligible for abatement:

(1) Buildings;

(2) Structures;

(3) Fixed machinery and equipment;

(4) Site improvements;

(5) Office space and related fixed improvements necessary to the operation and administration of the facility; and

(6) Tangible personal property, including inventory purchased after the effective date of a tax abatement agreement under this article, for logistics, distribution, or manufacturing facility, with the exception of inventory of natural gas, fluids or gases, or crude petroleum products that are not integral to the operation of the facility.

(e) *Ineligible property.* The following types of property shall be ineligible for abatement:

(1) Land;

(2) Supplies;

(3) Tools;

(4) Vehicles, vessels and aircraft;

(5) Property receiving a historic site exemption as provided in section 44-29 of this Code;

(6) Deferred maintenance investments;

(7) Improvements for the generation or transmission of electrical energy not wholly consumed by a new facility or expansion;

(8) Any improvements, including those to produce, store or distribute natural gas, fluids or gases, that are not integral to the operation of the facility;

(9) Any improvements that are not integral to the operation of the facility;

(10) Property owned or used by the State of Texas or its political subdivisions or by an organization owned, operated or directed by a political subdivision of the State of Texas; and

(11) Property that is owned or leased at any time during the term of an abatement agreement by a member of city council or by a member of the city planning commission.

(f) *Value and term of the abatement.* Abatement may be granted effective upon the January 1 valuation date immediately following the effective date of the agreement or such later date upon which the parties may agree. On or before reaching the agreed date, the parties may agree, by mutual consent, to terminate the agreement, subject to approval by the city council. Projects (other than modernizations) that meet these guidelines and criteria are eligible for abatement on the value of the new properties in an amount and for a duration based on an analysis of factors such as industry competitive disadvantages, quantifiable economic impacts, and furthering other public purposes in unique ways. Depending on an analysis of such factors and data, the director will evaluate and make a recommendation for approval by the city council of the appropriate amount and duration of abatement. In no case, however, shall the period of abatement exceed ten years.

If a modernization project includes facility replacement, the value upon which abatement shall be determined shall be the value of the new unit less the value of the old unit(s).

(g) Economic qualifications. Except as provided in subsections (h), (i), (j). and (k) of this section, to be eligible for abatement, the planned improvement shall:

(1) Provide an economic benefit to the city, taking all relevant factors into consideration, including:

a. Size of the abatement;

b. Income from sales tax and franchise fees generated by the planned improvement; and

c. Any additional expense to the city in providing city services as a result of the improvement;

(2) Be necessary because capacity cannot be provided efficiently utilizing existing improved property when reasonable allowance is made for necessary improvements;

(3) Be reasonably expected to increase the value of the real or tangible personal property in the amount of $1,000,000 for deteriorated/demolished property redevelopment or $5,000,000 for other development, including commercial, upon completion of construction; and

(4) Be expected to either:

a. Prevent the loss of permanent employment, retain or create permanent employment for at least 25 people on a permanent basis in the designated zone beginning three years after the effective date of abatement and continuing through the remaining term of the agreement; or

b. Result in an abatement equivalent to a maximum investment of $500,000.00 per job created or retained.

(h) *Economic qualifications in enterprise zone.* If the property includes property described under the provisions of this section and (i) is located in an area designated as an enterprise zone and the city has not created a reinvestment zone or (ii) is an authorized facility that meets the criteria established for a qualified business pursuant to the Texas Enterprise Zone Act, to be eligible for tax abatement, the planned improvement shall:

(1) Be reasonably expected to increase the value of the property by a minimum amount of $500,000.00 upon completion of construction;

(2) Be expected to create additional permanent employment for at least five people on a permanent basis who are residents of the enterprise zone or who are economically disadvantaged as that term is defined in the Texas Enterprise Zone Act;

(3) Not be expected to solely or primarily have the effect of transferring employment from one part of the city to another; and

(4) Be necessary because capacity cannot be provided efficiently utilizing existing improved property when reasonable allowance is made for necessary improvements.

(i) *Economic qualifications in a complete community.* If the property includes property described under the provisions of this section and is located in an area designated as a complete community, to be eligible for tax abatement, the planned improvement shall:

(1) Be reasonably expected to increase the value of the real or tangible personal property in the amount of $500,000.00 for deteriorated/demolished property redevelopment or $1,000,000.00 for other development, including commercial, upon completion of construction; and

(2) Be expected to create permanent employment for at least five people on a permanent basis beginning three years after the effective date of abatement and continuing through the remaining term of the agreement.

(j) *Economic qualifications in a qualifying census tract.* If the property includes property described under the provisions of this section and is located in a qualifying census tract, to be eligible for tax abatement, the planned improvement shall:

(1) Be reasonably expected to increase the value of the real or tangible personal property in the amount of $500,000.00 for deteriorated/demolished property redevelopment or $1,000,000.00 for other development, including commercial, upon completion of construction; and

(2) Be expected to create permanent employment for at least five people on a permanent basis beginning three years after the effective date of abatement and continuing through the remaining term of the agreement.

(k) *Research and development projects.* If the planned improvement is for a research and development facility, to be eligible for tax abatement, the planned improvement shall:

(1) Be reasonably expected to increase the value of the property by a minimum amount of $1,000,000.00 upon the completion of construction; and

(2) Be expected to create permanent employment for at least five people on a permanent basis in the designated zone, provided that this employment qualification shall take effect two years after the effective date of abatement and continue through the term of the agreement. The abatement period shall not exceed five years from the effective date of abatement, and the percentage of value to be abated shall be 100 percent throughout the abatement period.

(l) *Taxability.* From the date of execution of the abatement agreement to the end of the abatement period, taxes shall be payable as follows:

(1) The value of ineligible property as provided in subsection (e) of this section shall be fully taxable;

(2) The base year value of existing eligible property as determined each year shall be fully taxable; and

(3) The additional value of new eligible property shall be taxable in the manner described in subsection (f) of this section.

(Ord. No. 2018-391, § 2(Exh. A), 5-16-2018; Ord. No. 2020-424, § 2(Exh. A), 5-13-2020; Ord. No. 2022-344, § 4, 5-4-2022; Ord. No. 2024-624, § 2, 8-28-2024)

Sec. 44-128. Agreement for economic development abatement.

Upon designation of a reinvestment zone, the city may enter into an agreement that shall include:

(1) Estimated value to be abated and the base year value;

(2) Percent of value to be abated each year as provided in this article;

(3) The commencement date and the termination date of abatement;

(4) The proposed use of the facility, nature of construction, time schedule, map, property description and improvement list as provided in this article;

(5) Contractual obligations regarding the event of default, violation of terms or conditions, delinquent taxes, recapture of all previously abated taxes, administration, and assignment as provided in this article and other provisions that may be required for uniformity or by state law;

(6) Amount of investment and total permanent employees to be retained or created and total full-time equivalent jobs to be retained or created;

(7) A requirement that the abatement recipient, on or before February 1 of each year the tax abatement agreement is in effect, provide the director an affidavit that includes a delineation of the number of permanent employees, contract employees and part-time employees of the abatement recipient as of the immediately preceding December 1, who report to work in the reinvestment zone at each site covered by the agreement;

(8) A requirement that the abatement recipient annually file the appropriate form with the appropriate county appraisal district to qualify for the abatement;

(9) A provision that contract employees and part-time employees may be used to comply with the abatement recipient's contractual obligation to create/retain jobs on a full-time equivalency basis for any number of jobs; provided that full-time equivalent jobs shall only be used to satisfy the abatement recipient's contractual obligation if the abatement recipient maintains a minimum of 25 permanent employees who work on the project within the reinvestment zone;

(10) A requirement that property in a reinvestment zone that is owned or leased at any time during the term of an abatement agreement by a member of the city council or by a member of the city planning commission is ineligible for and excluded from tax abatement;

(11) A requirement that the abatement recipient's chief financial officer, or the officer's designee, on or before January 1 of each year that the agreement is in effect, provide the director an affidavit that the recipient is and has been in compliance in the prior year with all agreement provisions;

(12) A requirement that the abatement recipient's chief financial officer, or the officer's designee, who cannot make the affidavit required by item (11) of this section on any January 1 shall provide the director with a written statement identifying any provision of the agreement with which the abatement recipient is or has not been in full compliance;

(13) A provision that failure by the abatement recipient's chief financial officer, or the officer's designee, to timely provide the director with either the affidavit

required by item (11) of this section or the statement required by item (12) of this section will result in automatic default under the agreement for which no notice of default or opportunity to cure shall be required; and

(14) A provision that the city may amend the agreement in lieu of termination pursuant to section 44-135(d) of this Code.

(Ord. No. 2018-391, § 2(Exh. A), 5-16-2018; Ord. No. 2020-424, § 2(Exh. A), 5-13-2020; Ord. No. 2020-1091, § 5, 12-16-2020; Ord. No. 2022-344, § 4, 5-4-2022; Ord. No. 2024-624, § 2, 8-28-2024)

Sec. 44-129. Brownfield development abatement authorized.

(a) *Creation.* A property tax abatement program is hereby created for brownfield development abatements to be administered in accordance with Chapter 312 of the Texas Tax Code.

(b) *Authorized facility.* A facility shall be eligible for brownfield development abatement if it is real property or tangible personal property located on real property that is:

(1) Located in a reinvestment zone;

(2) Not an improvement project financed by tax increment bonds; and

(3) The subject of a voluntary cleanup agreement under Section 361.606 of the Texas Health & Safety Code.

(c) *Eligible property.* The following types of property are eligible for brownfield development abatement:

(1) Land;

(2) Buildings;

(3) Structures;

(4) Fixed machinery and equipment;

(5) Site improvements; and

(6) Tangible personal property located on the real property.

(d) *Ineligible property.* The following types of property are ineligible for brownfield development abatement:

(1) Property that is owned or used by the State of Texas or its political subdivisions or by an organization owned, operated or directed by a political subdivision of the State of Texas; and

(2) Property that is owned or leased at any time during the term of an abatement agreement by a member of city council or by a member of the city planning commission.

(e) *Value and term of the abatement.* Abatement shall be granted effective upon the January 1 valuation date immediately following the date the owner of the brownfield facility receives a certificate of completion for the property under Section 361.609 of the Texas Health and Safety Code. A brownfield facility is eligible for abatement according to the following sliding scale:

Year Abated	*Percentage of Value Abated*
1	100%
2	75%
3	50%
4	25%

Provided, however that no abatement shall be given in a year in which the use of the brownfield facility is changed from the use specified in the certificate of completion and the city council determines that the new use may result in an increased risk to human health or the environment.

(f) *Taxability.* From the date of execution of the abatement agreement to the end of the abatement period, the value of eligible property shall be taxable in the manner described in subsection (e) of this section.

(Ord. No. 2018-391, § 2(Exh. A), 5-16-2018; Ord. No. 2020-424, § 2(Exh. A), 5-13-2020; Ord. No. 2022-344, § 4, 5-4-2022; Ord. No. 2024-624, § 2, 8-28-2024)

Sec. 44-130. Agreement for brownfield development abatement.

Upon designation of a reinvestment zone, the city may enter into an agreement with the owner of the brownfield facility. The agreement shall include:

(1) The estimated value to be abated;

(2) The percent of value to be abated each year as provided in this article;

(3) The commencement date and the termination date of abatement;

(4) The proposed use of the facility as indicated on the certificate of completion issued pursuant to Section 361.609 of the Texas Health and Safety Code, a map showing the location of the brownfield facility, and a property description of eligible improvements;

(5) Contractual obligations regarding the event of default, violation of terms or conditions, delinquent taxes, recapture, administration, and assignment as provided in this article and other provisions that may be required for uniformity or by state law;

(6) A requirement that the owner of the eligible property subject to abatement annually file with the appraisal district the appropriate form for qualifying for the abatement;

(7) A requirement that property in a reinvestment zone that is owned or leased at any time during the term of an abatement agreement by a member of the city council or by a member of the city planning commission is ineligible for and excluded from tax abatement;

(8) A requirement that the abatement recipient's chief financial officer, or his or her designee, on or before January 1 of each year that the agreement is in effect, provide the director an affidavit that the recipient is and has been in full compliance with all agreement provisions;

(9) A requirement that the abatement recipient's chief financial officer who cannot make the affidavit required by item (8) of this section on any January 1 shall provide the director with a written statement identifying any provision of the agreement with which the abatement recipient is or has not been in compliance;

(10) A provision that failure by the abatement recipient's chief financial officer, or the officer's designee, of an abatement recipient to timely provide the director with either the affidavit required by item (8) of this section or the affidavit required by item (9) of this section will result in automatic default under the agreement for which no notice of default or opportunity to cure shall be required; and

(11) A provision that the city may amend the agreement in the event of default or in lieu of termination pursuant to section 44-135(d) of this Code.

(Ord. No. 2018-391, § 2(Exh. A), 5-16-2018; Ord. No. 2020-424, § 2(Exh. A), 5-13-2020; Ord. No. 2020-1091, § 6, 12-16-2020; Ord. No. 2022-344, § 4, 5-4-2022; Ord. No. 2024-624, § 2, 8-28-2024)

Sec. 44-131. LEED tax abatement.

(a) *Authorized facility.* A facility is eligible for a LEED tax abatement if:

(1) It is a new commercial facility whose owner has registered with USGBC to apply for LEED certification for the facility;

(2) Construction of the facility has not commenced prior to the application for abatement; and

(3) The total project cost is reasonably expected by the applicant to be at least $3,000,000.

This type of tax abatement may be a standalone abatement or part of a standard economic development abatement.

(b) *Value and term of abatement.* Abatement shall be granted effective upon the January 1 valuation date immediately following the date

that both of the following events have occurred: (i) construction of the facility has been completed in accordance with the terms of the agreement, and (ii) a LEED certification has been obtained for the facility. The abatement may remain in effect for up to ten years. A facility described in subsection (a) of this section is eligible for abatement for the percentage of the increase in the facility's value over the base year value that corresponds to the applicable LEED certification level obtained for the facility according to the following sliding scale:

	LEED Certification Level	*Percentage of Increase Over Base Year Value Abated*
(1)	Silver	5%
(2)	Gold	10%
(3)	Platinum	15%

(c) *Agreement.* Upon designation of a reinvestment zone, the city may enter into an abatement agreement that shall include:

(1) The items listed in items (3)—(5), (7), (8), and (10)—(14) of section 44-128 of this Code;

(2) The estimated value to be abated and the base year value;

(3) The percentage of value abated based upon the applicable LEED certification level;

(4) The total project cost; and

(5) A requirement that the facility be constructed pursuant to and in compliance with all applicable permitting requirements.

(d) *Taxability.* From the date of the city's execution of the abatement agreement to the end of the abatement period, the value of a facility described by subsection (a) of this section shall be taxable in the manner described in subsection (b) of this section.

(Ord. No. 2018-391, § 2(Exh. A), 5-16-2018; Ord. No. 2020-424, § 2(Exh. A), 5-13-2020; Ord. No. 2020-1091, § 7, 12-16-2020; Ord. No. 2022-344, § 4, 5-4-2022; Ord. No. 2024-624, § 2, 8-28-2024)

Sec. 44-132. Green stormwater infrastructure tax abatement.

(a) *Authorized facility.* A facility is eligible for a green stormwater infrastructure tax abatement if:

(1) It is either an authorized facility as described in section 44-127(a) of this Code or a brownfield facility;

(2) Construction or alteration of the facility has not commenced prior to the application for abatement; and

(3) The total project cost is reasonably expected to be at least $735,000, with a minimum total green stormwater infrastructure cost of $35,000.

This type of tax abatement may be a standalone abatement or part of a standard economic development abatement.

(b) *Value and term of abatement.* Abatement shall be granted effective upon the January 1 valuation date immediately following the date that both of the following events have occurred: (i) all permits required by the design manual for the green stormwater infrastructure have been obtained, and (ii) the construction or alteration of the facility has been completed under the terms of the agreement. The abatement may remain in effect for up to ten years. A facility described in subsection (a) of this section is eligible for abatement for 100 percent of the increase in facility's value over the base year value; provided, however, that the amount of abatement shall not exceed the total green stormwater infrastructure cost.

(c) *Eligible green stormwater infrastructure.* To be eligible for abatement, a facility described in subsection (a) of this section must include at least one type of green stormwater infrastructure that either (i) meets the applicable design criteria for a low impact development design approach described in chapter 9 of the design manual; or (ii) involves urban forestry and native ecosystem restoration through the planting of trees or shrubs listed in appendices A-1, A-2 and D of chapter 33 of this Code.

(d) *Qualifications.* To be eligible for abatement, a facility described in subsection (a) of this section must:

(1) Include green stormwater infrastructure that is (i) expected to mitigate risk of flooding, reduce heat island effect or other climate-related hazards, improve water quality, sequester carbon, encourage water conservation, or restore native ecosystems, and (ii) designed in accordance with the design manual and the applicable water quantity and stormwater quality design criteria from the design manual;

(2) Provide an economic benefit to the city, taking into consideration all relevant factors, including the size of the abatement, income from sales tax and franchise fees generated by the planned improvement, and any additional expense to the city in providing city services as a result of the improvement; and

(3) Be reasonably expected to increase the value of the real or tangible personal property within the reinvestment zone.

(e) *Agreement.* Upon designation of a reinvestment zone, the city may enter into an abatement agreement that shall include:

(1) The items listed in items (3)—(5), (7), (8), and (10)—(14) of section 44-128 of this Code;

(2) The estimated value to be abated and the base year value, provided that the amount of the abatement may not exceed the total green stormwater infrastructure cost;

(3) The total project cost and the total green stormwater infrastructure cost;

(4) A requirement that the facility and the green stormwater infrastructure be constructed pursuant to and in compliance with all applicable permitting requirements;

(5) A requirement that the green stormwater infrastructure is maintained in compliance with the applicable design manual requirements, including annual stormwater quality permits and annual certification requirements;

(6) A requirement that the owner maintain, and provide to the city for inspection, records with respect to the stormwater quality and water quantity benefits of the green stormwater infrastructure, such as mitigating risk of flooding, reducing heat island effect or other climate-related hazards, improving water quality, sequestering carbon, encouraging water conservation, or restoring native ecosystems; and

(7) A requirement that the green stormwater infrastructure be made accessible to others for purposes of study and education regarding best practices for design, construction and maintenance of green stormwater infrastructure.

(f) *Taxability.* From the date of execution of the abatement agreement to the end of the abatement period, the value of a facility described by subsection (a) of this section shall be taxable in the manner described in subsection (b) of this section.

(Ord. No. 2020-1091, § 8, 12-16-2020; Ord. No. 2022-344, § 4, 5-4-2022; Ord. No. 2024-624, §§ 2, 5, 8-28-2024)

Sec. 44-133. Deteriorated/demolished property abatement authorized.

(a) *Creation.* A property tax abatement program may be granted for deteriorated/demolished properties that meet the requirements of this section.

(b) *Authorized facility.* A facility shall be eligible for abatement if:

(1) It is a deteriorated/demolished property;

(2) It is not an improvement project financed by tax increment bonds;

(3) It is constructed pursuant to and in compliance with a valid building permit issued by the city;

(4) Construction has not commenced prior to the application for abatement; and

(5) It is not a facility eligible for economic development abatement pursuant to section 44-127 of this Code.

(c) *Eligible property.* The following types of property are eligible for deteriorated/demolished property abatement:

(1) Buildings;

(2) Structures;

(3) Fixed machinery and equipment; and

(4) Site improvements.

(d) *Ineligible property.* The following types of property are ineligible for deteriorated/demolished property abatement:

(1) Land;

(2) The value of improvements on deteriorated/demolished properties prior to demolition;

(3) Residential facilities containing four or fewer dwelling units per structure other than a deteriorated/demolished property redevelopment;

(4) Modernization;

(5) Inventory;

(6) Supplies;

(7) Tools;

(8) Vehicles, vessels and aircraft;

(9) Deferred maintenance investments;

(10) Property that is owned or used by the State of Texas or its political subdivisions or by an organization owned, operated or directed by a political subdivision of the State of Texas;

(11) Property that is owned or leased at any time during the term of an abatement agreement by a member of city council or by a member of the city planning commission; and

(12) Property receiving a historic site exemption as provided in section 44-29 of this Code.

(e) *Value and term of the abatement.* Abatement shall be granted effective upon the January 1 valuation date following the year in which the owner receives a final certificate of occupancy for the improvements constructed on the property. Absent extraordinary conditions as determined by the director in the exercise of his or her professional judgment, the amount of abatement shall not exceed 90% for properties located in a target area and shall not exceed 50% for properties not located in a target area.

(f) *Economic qualifications.* To be eligible for abatement, the planned new improvement shall:

(1) Provide an economic benefit to the city, taking into consideration all relevant factors, including the impact of the new improvements on the neighborhood in which the property is located; and

(2) Be reasonably expected to increase the value of the real deteriorated/demolished property by the lesser of $1,000,000.00 or 1.5 × the value of the demolished improvements on the deteriorated/demolished property.

(g) *Taxability.* From the date of execution of the abatement agreement to the end of the abatement period, the value of eligible property shall be taxable in the manner described in subsection (l) of section 44-127 of this Code.
(Ord. No. 2018-391, § 2(Exh. A), 5-16-2018; Ord. No. 2020-424, § 2(Exh. A), 5-13-2020; Ord. No. 2020-1091, § 8, 12-16-2020; Ord. No. 2022-344, § 4, 5-4-2022; Ord. No. 2024-624, § 2, 8-28-2024)

Sec. 44-134. Agreement for deteriorated/demolished property abatement.

Upon designation of a reinvestment zone, the city may enter into an agreement with the owner of the facility to be constructed on the deteriorated/demolished property. The agreement shall include:

(1) The estimated value to be abated;

(2) The percent of value to be abated each year as provided in this article;

(3) The commencement date and the termination date of abatement;

(4) Contractual obligations regarding the event of default, violation of terms or conditions, delinquent taxes, recapture, administration, and assignment as provided in this article and other provisions that may be required for uniformity or by state law;

(5) A requirement that the owner of the eligible property subject to abatement annually file with the appropriate county appraisal district the appropriate form for qualifying for the abatement;

(6) A requirement that property that is owned or leased at any time during the term of an abatement agreement by a member of the city council or by a member of the city planning commission is ineligible for and excluded from tax abatement; and

(7) A provision that the city may amend the agreement in the event of default or in lieu of termination pursuant to section 44-134(d) of this article.

(Ord. No. 2018-391, § 2(Exh. A), 5-16-2018; Ord. No. 2020-424, § 2(Exh. A), 5-13-2020; Ord. No. 2020-1091, § 8, 12-16-2020; Ord. No. 2022-344, § 4, 5-4-2022; Ord. No. 2024-624, § 2, 8-28-2024)

Sec. 44-135. Default; recapture.

(a) *Event of default.* The abatement recipient shall be in default under the agreement if any of the following occur at any time during the term of the agreement:

(1) A facility is completed and begins producing or providing the product or service delineated in the agreement, but subsequently discontinues producing or providing the product or service for any reason other than fire, explosion, or other casualty or accident or natural disaster;

(2) The abatement recipient fails to comply timely with job creation or investment requirements pursuant to the agreement;

(3) The abatement recipient fails to comply timely with any material term of the agreement;

(4) The abatement recipient fails to timely file any required report or statement or to timely give any required notice pursuant to the agreement; or

(5) Employees or designated representatives of the city determine pursuant to an inspection under section 44-135 of this Code that the abatement recipient has not complied with the agreement.

(b) *Notice.*

(1) If the director determines that an event of default has occurred, the director shall notify the abatement recipient in writing at the address stated in the agreement, and if the condition of default is not cured within 30 days after the date of the notice, then the city may take any one or more of the actions set forth in subsection (d) of this section. Provided, however, that the city shall only be required to give a 30-day notice of default for failure to comply with job creation or investment requirements. The abatement recipient's failure to comply with job creation or investment requirements is an "incurable default." Within the 30-day notice period, the abatement recipient shall be entitled to question the accuracy of the city's determination of the incurable default but shall not be entitled to cure the default. After the 30-day notice period, if the city concludes that its determination of the incurable default is correct ("noticed incurable default"), then the city shall be entitled to pursue any one or more of the remedies set forth in subsection (d) of this section.

(2) If the abatement recipient is in default under subsection (a) of this section, the abatement recipient shall notify the city within 30 days after the default and if the default is one that can be cured hereunder (and is not an incurable default), such default shall be cured within 30 days following the date of the notice of default. If the abatement recipient fails to cure such curable default within the

30-day period, then the city may pursue any one or more of the remedies listed in subsection (d) hereof.

(c) *Cure.* In curing an event of default based on any of the items set forth in subsection (a) of this section, and assuming such event of default is curable and is not an incurable default, the abatement recipient shall provide sufficient evidence to the director that the default has been cured within 30 days following the date of the notice of default. Sufficient evidence shall include the providing of the information not timely provided and/or providing evidence of the completion of the act(s) not timely performed. The city shall have the right to ask for additional information to confirm the adequate cure of any default.

(d) *City remedies for default.*

(1) In the event of a noticed incurable default or a curable default that has not been cured after notice and an opportunity to cure, no tax abatement shall be allowed for the calendar year in which the default occurs (and thereafter), and the city shall have the right to pursue any one or more of the following remedies: terminate the agreement; terminate the abatement recipient's right to any future abatement under the agreement without terminating the agreement; pursue any and all remedies allowed under the abatement agreement; and pursue any and all remedies allowed under Texas law;

(2) In addition to the foregoing, in the event of a noticed incurable default or a curable default that has not been cured after notice and an opportunity to cure, the city, in its sole discretion, may recover all or any part of the taxes abated at any time under the agreement. The abatement recipient shall pay all taxes to the city within 30 days after the city's written demand therefore. Any taxes not paid timely shall bear interest at the rate of 12% annually;

(3) Notwithstanding the foregoing, the director and the city attorney are hereby authorized to negotiate and enter into amendments and revisions to agreements under which there are noticed incurable defaults or curable defaults that have not been cured after notice and opportunity to cure. In the foregoing circumstances, the parties are also authorized to negotiate and enter into any other and further agreements they determine best protect the city's interests; and

(4) The city's right and authority to pursue any default and to recover abated taxes under this section shall survive the amendment, revision, expiration, or termination of any tax abatement agreement.

(Ord. No. 2018-391, § 2(Exh. A), 5-16-2018; Ord. No. 2020-424, § 2(Exh. A), 5-13-2020; Ord. No. 2020-1091, § 8, 12-16-2020; Ord. No. 2022-344, § 4, 5-4-2022; Ord. No. 2024-624, § 2, 8-28-2024)

Sec. 44-136. Administration.

(a) The chief appraiser of the county appraisal district shall annually determine the value of the real and personal property comprising the reinvestment zone. Each year, the abatement recipient shall furnish the city with any additional information applicable to the tax abatement that may be necessary for the administration of the abatement. Once the value of the real and personal property has been established, the chief appraiser shall notify the eligible jurisdictions of the amount of the assessment.

(b) The agreement shall stipulate that employees of the city and/or designated representatives will have full access to the reinvestment zone both during and after the expiration or termination of the term of the abatement agreement in order to inspect the facility and shall have full access to any and all abatement recipient records related to the agreement to determine, by audit or otherwise, that the abatement recipient is (or has been) in full compliance with the agreement. All inspections will be made only after the giving of 24 hours' notice and will only be conducted in such a manner as to not unreasonably interfere with the construction and/or operation of the facility.

All inspections will be made with one or more representatives of the company or individual and in accordance with safety standards.
(Ord. No. 2018-391, § 2(Exh. A), 5-16-2018; Ord. No. 2020-424, § 2(Exh. A), 5-13-2020; Ord. No. 2020-1091, § 8, 12-16-2020; Ord. No. 2022-344, § 4, 5-4-2022; Ord. No. 2024-624, § 2, 8-28-2024)

Sec. 44-137. Assignment.

An agreement may be assigned to a new owner or lessee of the facility with the written consent of the director, which consent shall not be unreasonably withheld. If the proposed assignee is an affiliated entity of the assignor, then the director may consent to an assignment if the assignor is in compliance with all terms of the agreement. Any assignment of the agreement shall not relieve the assignor of continuing liability under the agreement unless specifically agreed to in a writing signed by both the director and the city attorney. Any assignment shall provide that the assignee shall irrevocably and unconditionally assume all the duties and obligations of the assignor upon the same terms and conditions as set out in the agreement. Any assignment of an agreement shall be to an entity that contemplates the same improvements or repairs to the property, except to the extent such improvements or repairs have been completed. No assignment shall be approved if either the assignor or the assignee is indebted to the city for ad valorem taxes or other obligations.
(Ord. No. 2018-391, § 2(Exh. A), 5-16-2018; Ord. No. 2020-424, § 2(Exh. A), 5-13-2020; Ord. No. 2020-1091, § 8, 12-16-2020; Ord. No. 2022-344, § 4, 5-4-2022; Ord. No. 2024-624, § 2, 8-28-2024)

Sec. 44-138. Sunset provision.

These guidelines and criteria for tax abatement are readopted and will expire at 12:00 a.m. on August 28th, 2026. These guidelines and criteria shall apply to all applications subsequently considered by city council prior to the expiration date. At the expiration of these guidelines and criteria, all reinvestment zones and agreements created and entered into pursuant to these provisions shall be reviewed to determine whether the goals have been achieved. Based on that review, the guidelines and criteria may be readopted, amended, repealed or reauthorized, after city council has held a public hearing regarding the proposed readopting, amendment, repeal or reauthorization at which members of the public are given the opportunity to be heard. Notice of the public hearing shall be given, posted or published in the same manner provided in section 44-126(a) of this Code. The expiration of these guidelines shall not affect the validity or enforceability (for the full term thereof) of any agreement entered into when these guidelines were in effect.
(Ord. No. 2018-391, § 2(Exh. A), 5-16-2018; Ord. No. 2020-424, § 2(Exh. A), 5-13-2020; Ord. No. 2020-1091, § 8, 12-16-2020; Ord. No. 2022-344, § 3, 5-4-2022; Ord. No. 2022-344, § 3, 5-4-2022; Ord. No. 2024-624, §§ 2, 6, 8-28-2024)

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Chapter 45

TRAFFIC*

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ARTICLE I. IN GENERAL

Sec. 45-1. Short title.

This chapter may be known and cited as the Traffic Ordinance.
(Code 1968, § 46-1)

Sec. 45-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alley means any street, as herein defined, of 20 feet or less in width having no legal or official name other than "alley."

Animal has the meaning ascribed in Texas Agricultural Code section 141.001 which states an animated being that is not human and has the power of voluntary action.

Authorized emergency vehicle means any vehicle of the fire department (fire patrol), any

*__Cross references—__Use of signs or flashing lights by ambulances, § 4-11; driving livestock through streets, § 6-9; house moving, § 10-48 et seq.; noisy vehicles, § 30-3; driving vehicles in parks, § 32-29; use of police academy driving track by private persons, § 34-36; obstructing railroad crossings, § 38-9 et seq.; streets and sidewalks generally, Ch. 40; moving vehicles that throw or dump mud or clay on streets, § 40-22; street dances, § 40-27; transportation of earth materials on streets and alleys, § 40-168; vehicles for hire, Ch. 46.

police vehicle, any public or private ambulance for which a permit has been issued by the state board of health, any emergency vehicles of a municipal department or public service corporation as may be designated or authorized by the city council, any private vehicle operated by volunteer fire fighter or certified emergency medical services volunteer while answering a fire alarm or responding to a medical emergency, and any vehicle operated by a blood bank or tissue bank, accredited or approved under the laws of this state or the United States, while making emergency deliveries of blood, drugs or medicines, or organs.

Bicycle means every device propelled by human power upon which any person may ride, having two tandem wheels either of which is 14 inches or over in diameter.

Bus means every motor vehicle designed for carrying more than ten passengers and used for the transportation of persons, and every motor vehicle, other than a taxicab or limousine, designed and used for the transportation of persons for compensation.

Bus zone means the area or space officially set apart within a roadway by appropriate signs or markings for the exclusive use of buses operating under franchise granted by the city, for loading and unloading passengers.

Business district means the territory contiguous to and including a roadway when, within any 600 feet along such roadway, there are buildings in use for business or industrial purposes which occupy 300 feet of frontage on one side or 300 feet collectively on both sides of the roadway.

Crosswalk means that part of a roadway at an intersection included within the connections of the lateral lines of the sidewalks on opposite sides of the street measured from the curbs, or in the absence of curbs, from the edges of the traversable roadway. The word "crosswalk" also includes any portion of a roadway at an intersection or elsewhere distinctly indicated for pedestrian crossing by lines or other markings on the surfaces.

Department means Houston Public Works.

Director means the Director of Houston Public Works or his designee.

Driver means every person who drives or is in actual physical control of a vehicle.

Driveway means entrances to and exits from private premises where it is possible to park completely off the street, and which are not open for vehicle traffic except by permission of the owner of such private premises.

Esplanade has the meaning ascribed in section 33-101 of this Code.

House trailer means a trailer or semitrailer:

a. That is designed, constructed and equipped as a dwelling place, living abode or sleeping place (either permanently or temporarily) and is equipped for use as a conveyance on streets and highways; or

b. Whose chassis and exterior shell is designed and constructed for use as a house trailer, as defined in subsection a., but is used instead permanently or temporarily for the advertising, sales, display or promotion of merchandise or services, or for any other commercial purpose except the transportation of property for hire or the transportation of property for distribution by a private carrier.

Intersection means the area embraced within the prolongation or connection of the lateral curb lines, or if none, then the lateral boundary line of the roadways of two streets which join one another at, or approximately at, right angles, or the area within which vehicles traveling upon different highways joining at any other angle may come in conflict. Where a street includes two roadways, 30 feet or more apart, then every crossing of each roadway of such divided street by an intersecting street shall be regarded as a separate intersection. In the event such intersecting street also includes two roadways 30 feet or more apart, then every crossing of two roadways of such

streets shall be regarded as a separate intersection. The junction of an alley with a street or highway shall not constitute an intersection.

Legal holidays means the term "legal holidays" shall include only such holidays as are officially designated by the city council.

Limited-access or controlled-access highway means any highway, street or roadway in respect to which owners or occupants of abutting lands and other persons have no legal right of access to or from the same except at such points only and in such manner as may be determined by the public authority having jurisdiction over such highway, street or roadway.

Livestock has the meaning ascribed in Texas Agricultural Code Section 1.003.

Median strip means the dividing area, either landscaped or paved, between opposing highway traffic lanes.

Meter has the meaning ascribed in section 26-181 of this Code.

Micromobility device means a self-propelled transportation device designed primarily for individual use for short-distance travel with: (1) a deck designed to allow a person to stand or sit while operating the device; (2) a braking system capable of stopping the device under typical operating conditions; and (3) is capable of propulsion by an electric motor, by human power, or by a combination thereof. The term includes electric scooters, hoverboards, electric skateboards, and electric roller skates. The term does not include all-terrain vehicles, mopeds, motorcycles, electric bicycles, motorized mobility devices, electronic personal assistive mobility devices, or a neighborhood electric vehicle, all of which are defined and subject to regulations pursuant to the Texas Transportation Code.

Minor has the meaning ascribed in section 28-17 of this Code.

Motor vehicle means every vehicle which is self-propelled and every vehicle which is propelled by electric power obtained from overhead trolley wires, but not operated upon rails.

Motorcycle means every motor vehicle having a saddle for the use of the rider and designed to travel on not more than three wheels in contact with the ground, but excluding a tractor.

Neighborhood electric vehicle means a vehicle subject to Federal Motor Vehicle Safety Standard 500 (49 C.F.R. Section 571.500).

Off-highway vehicle means a vehicle as defined in Chapter 551A.001 of the Texas Transportation Code, as amended.

Owner means a person, other than a lienholder, having the property in or title to a vehicle. The term includes a person entitled to the use and possession of a vehicle subject to a security interest in another person, but excludes a lessee under a lease not intended as security.

Park or parking means the standing of a vehicle, whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading passengers or merchandise except an involuntary stopping of such vehicle by reason of mechanical failure or direction of a police officer.

Pedestrian means any person afoot.

Pole trailer means every vehicle without motive power designed to be drawn by another vehicle and attached to the towing vehicle by means of a reach, or pole, or by being boomed or otherwise secured to the towing vehicle, and ordinarily used for transporting long or irregularly shaped loads such as poles, pipes, or structural members, capable, generally, of sustaining themselves as beams between the supporting connections.

Police officer means every officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations.

Private driveway means every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner but not by other persons.

Rent means the payment of any money, fee, charge, consideration, thing of value, reward, tip, donation, or gratuity, whether on a recur-

ring or one-time basis, by a person for the right to possess or use a micromobility device or off-highway vehicle, including but not limited to possession and use of the micromobility device or off-highway vehicle pursuant to a lease, sublease, license, timeshare agreement, or other agreement.

Right-of-way means the right of one vehicle or pedestrian to proceed in a lawful manner in preference to another vehicle or pedestrian approaching under such circumstances of direction, speed and proximity as to give rise to danger of collision unless one grants precedence to the other.

Roadway means that portion of a street or highway improved, designed, or ordinarily used for vehicular travel. In the event a street or highway includes two or more separate roadways, the term "roadway" shall refer to any such roadway separately but not to all such roadways collectively.

Semitrailer means every vehicle with or without motive power, other than a pole trailer, designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that some part of its weight and that of its load rests upon or is carried by another vehicle.

Sidewalk means that portion of a street between the curb lines, or the lateral lines of a roadway, and the adjacent property lines intended for the use of pedestrians.

Stop, when required, means complete cessation of movement.

Stop, stopping, standing, when prohibited, means any stopping or standing of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control sign or signal.

Street or highway means the entire width between the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel.

Taxi zone means the area or space officially set apart within a roadway by appropriate signs or markings for the exclusive use of taxicabs licensed as such by the city.

Temporary structure means any structure or vehicle which is designed to be easily transported or dismantled after its function has been fulfilled, and which is used for the purposes of renting or facilitating the rental of a micromobility device.

Through street or express street means every highway or portion thereof on which vehicular traffic is given preferential right-of-way, and at the entrances to which vehicular traffic from intersecting highways is required by law to yield right-of-way to vehicles on such through highway in obedience to a stop sign, yield sign or other official traffic-control device, when such signs or devices are erected as provided by law.

Traffic means pedestrians, ridden or herded animals, vehicles, and other conveyances, either singly or together, while using any street or highway for purposes of travel.

Traffic island means a raised area over which vehicles may not pass, placed at a junction of streets or between opposing traffic lanes.

Traffic-control devices means all signs, signals, markings, and devices not inconsistent with this chapter placed or erected by authority of a public body or official having jurisdiction, for the purpose of regulating, warning, or guiding traffic.

Traffic-control signal means any device, whether manually, electrically, or mechanically operated, by which traffic is alternately directed to stop and to proceed.

Trailer means every vehicle with or without motive power, other than a pole trailer, designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that no part of its weight rests upon the towing vehicle.

Truck or *commercial vehicle* means every motor vehicle designed, used, or maintained primarily for the transportation of property.

Vehicle means every device in, upon, or by which any person or property is or may be transported or drawn upon a street or highway, excepting devices used exclusively upon stationary rails or tracks.

(Code 1968, § 46-2; Ord. No. 80-3073, § 1, 10-22-80; Ord. No. 90-635, § 148, 5-23-90; Ord. No. 91-62, §§ 1, 2, 1-9-91; Ord. No. 93-514, § 102, 5-5-93; Ord. No. 03-703, § 6, 7-30-03; Ord. No. 04-679, § 2, 6-23-04; Ord. No. 05-935, § 2, 8-3-05; Ord. No. 05-1315, § 1, 11-30-05; Ord. No. 07-464, § 9(Exh. C), 4-11-07; Ord. No. 07-1111, § 5, 10-3-07; Ord. No. 09-2, § 21, 1-7-09; Ord. No. 2018-11, §§ 49, 50, 1-10-2018; Ord. No. 2021-205, § 5, 3-24-2021; Ord. No. 2025-971, §§ 3, 4, 11-19-2025)

Sec. 45-3. Compliance.

It is unlawful and, unless otherwise declared in this chapter with respect to particular offenses, it is a misdemeanor for any person to do any act forbidden or fail to perform any act required in this chapter.

(Code 1968, § 46-3)

Sec. 45-4. Houston Public Works.

The city's former department of traffic and transportation has been merged into Houston Public Works. Any reference in this Code or other ordinances or documents of the city to the department of traffic and transportation shall be construed to mean Houston Public Works. Similarly, any reference to the director of traffic and transportation or to the director of the traffic and transportation department shall be construed to mean the Director of Houston Public Works.

(Code 1968, § 46-4; Ord. No. 90-635, § 149, 5-23-90; Ord. No. 93-514, § 103, 5-5-93; Ord. No. 2018-11, § 30, 1-10-2018)

Charter reference—Appointment of heads of administrative departments, Art. VI, § 7a.

Cross reference—Officers and employees generally, § 2-21 et seq.

Sec. 45-5. General powers and duties of traffic engineer.

(a) The Director of Houston Public Works or such other person as the director may from time to time designate in writing to perform such function shall be the traffic engineer of the city. The traffic engineer shall exercise the powers and duties as provided in this Code and the other traffic ordinances of the city.

(b) The city traffic engineer shall have the responsibility and authority to determine the installation and proper timing and maintenance of traffic-control devices, to conduct engineering analyses of traffic accidents and to devise remedial measures, to conduct engineering investigation of traffic conditions, to plan the operation of traffic on the streets and highways of this city, and to cooperate with other city officials in the development of ways and means to improve traffic conditions, and to carry out the additional powers and duties imposed by ordinances of this city.

(Code 1968, § 46-5; Ord. No. 90-635, § 150, 5-23-90; Ord. No. 93-514, § 104, 5-5-93; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 45-6. Authority of traffic engineer to make regulations.

(a) The traffic engineer is hereby empowered to make regulations necessary to make effective the provisions of this chapter and other traffic ordinances of the city.

(b) The city traffic engineer is hereby empowered to make temporary or experimental traffic regulations to cover emergencies or special conditions. No such temporary or experimental regulations shall remain in effect for more than 90 days; provided however, the traffic engineer shall have no authority to eliminate established school zone speed limits without city council authorization.

(Code 1968, § 46-6; Ord. No. 87-2025, § 1, 12-16-87)

Sec. 45-7. Traffic engineer's regulations, designations, etc., to be recorded and kept on file.

Every regulation, designation, delineation or determination promulgated by the traffic engineer pursuant to the authority granted in this chapter shall, unless otherwise provided herein, be described and recorded, and a true record thereof shall be maintained on file and available for

public inspection in the offices of the traffic engineer. The original records may be maintained in the data base of a data processing system, provided that the system has the capability to generate printed copies upon request therefor. Each such record shall constitute public record, and all persons shall be charged with notice of the contents of the same.
(Code 1968, § 46-7; Ord. No. 88-726, § 1, 5-4-88)

Sec. 45-8. Enforcement generally.

It shall be the duty of the officers of the police department or such officers as are assigned by the chief of police to enforce all street traffic laws of this city and all of the state vehicle laws applicable to street traffic in this city. Additionally, parking compliance officers are authorized to enforce the provisions of this chapter relating to stopping, standing or parking by issuance of a parking citation on the official form prescribed by the city for such notices.
(Code 1968, § 46-8; Ord. No. 77-1069, § 1, 5-31-77; Ord. No. 07-464, § 10, 4-11-07; Ord. No. 2019-1015, § 37, 12-11-2019)

Sec. 45-9. Authority of police officers to direct traffic.

Officers of the police department or such officers as are assigned by the chief of police are hereby authorized to direct all traffic by voice, hand, or signal in conformance with this chapter and other traffic laws, provided that, in the event of a fire or other emergency or to expedite traffic or to safeguard pedestrians, officers of the police department may direct traffic as conditions may require notwithstanding the provisions of this chapter or other traffic laws.
(Code 1968, § 46-9)

Sec. 45-10. Authority of officers of fire department to direct traffic.

Officers of the fire department, when at the scene of a fire, may direct or assist the police in directing traffic thereat or in the immediate vicinity.
(Code 1968, § 46-10)

Sec. 45-11. Obedience to traffic officers generally.

No person shall willfully fail or refuse to comply with any lawful order, direction or signal, visual or audible, of any police officer or officer of the fire department vested by law with authority to direct, control or regulate traffic. No police officer shall be directed or required to have a quota on the minimum amount of traffic stops during a normal working shift.
(Code 1968, § 46-11; Ord. No. 2025-457, § 2, 5-28-2025)

Sec. 45-12. Reserved.

Editor's note—Ord. No. 07-464, § 11, adopted April 11, 2007, repealed § 45-12 in its entirety. Formerly said section pertained to using vehicle for primary purpose of advertising and derived from Code 1968, § 46-13.

Sec. 45-13. Pedestrians, bicycles, etc., upon limited or controlled-access highways.

(a) No pedestrian shall go upon, walk along, or cross over any limited-access or controlled-access highway within the corporate limits of the city, except upon the portions along the outer margins thereof, which are designed for and known as "service roadways."

(b) No person shall ride any bicycle or take any bicycle upon any limited-access or controlled-access highway within the corporate limits of the city, except upon the portions along the outer margins thereof, which are designed for and known as "service roadways."

(c) No person shall drive or operate any wheeled vehicle which is not motor-propelled upon any limited-access or controlled-access highway within the corporate limits of the city, except upon the portions along the outer margins thereof which are designed for and known as "service roadways."

(d) To avoid any doubt, if any doubt might otherwise exist, it is the purpose of the city council by this section to prohibit, within the center or middle portions of limited-access or controlled-access highways which are designed to accommodate through traffic, and to and from

which connecting roadways lead to and from the service roadways, any use except for the operation thereupon of motor vehicles.

(e) Any person violating any of the terms of this section shall be guilty of an offense and shall be fined not less than $25.00 and not more than $200.00.
(Code 1968, § 46-16)

Charter reference—Penalty for ordinance violation, Art. II, § 12.

Cross references—Assessment of fines against corporations, § 16-76; payment of fines, § 16-78; credit against fines for incarceration, § 35-6 et seq.

Sec. 45-14. Riding on portion of vehicle not intended for passengers.

No person shall ride on any vehicle upon any portion thereof not designed or intended for the use of passengers. This provision shall not apply to an employee engaged in the necessary discharge of a duty, or to persons riding within truck bodies in space intended for merchandise.
(Code 1968, § 46-17)

Sec. 45-15. Boarding or alighting from moving vehicles.

No person shall board or alight from any vehicle while such vehicle is in motion.
(Code 1968, § 46-20)

Sec. 45-16. Use of coasters, toy vehicles and similar devices on roadway.

No person riding in or by means of any coaster, toy vehicle or similar vehicle, shall go upon any roadway, except while crossing such roadway in accordance with the pedestrian crossing regulations. The provisions of this section shall not apply to persons on roller skates.
(Code 1968, § 46-22; Ord. No. 90-1182, § 1, 10-3-90)

Sec. 45-17. Removal of foliage restricting vision.

(a) Whenever the traffic engineer shall find a tree, shrub, hedge, or other natural growth of any sort or description located and growing within the boundaries of any public street in the city, which interferes with the vision of automobile drivers driving upon such street, therefore constituting a traffic hazard, he is authorized and directed to cause the traffic hazard to be abated by trimming or removing any such obstruction. If deemed advisable and without materially increasing the danger to the public, the traffic engineer is authorized to give notice to the owner of the abutting property and afford such owner an opportunity to do the work of abating the hazard himself, but the traffic engineer shall never be compelled to await the owner's action in any case where he shall find that the public safety requires the immediate abatement of the hazard.

(b) The mayor is authorized to detail skilled employees of the parks and recreation department or other employees of the city other than classified police officers and fire fighters to assist the traffic engineer in the actual work of abating and removing such traffic hazards and such employees shall perform the work under the direction and supervision of the traffic engineer.
(Code 1968, § 46-24; Ord. No. 07-464, § 12, 4-11-07)

Cross reference—Authority of director of park and recreation relative to trimming of trees, etc., § 32-6.

Sec. 45-18. Operation of neighborhood electric vehicles and off-highway vehicles by minors prohibited.

(a) It shall be unlawful for a minor to operate a neighborhood electric vehicle or off-highway vehicle on a public roadway, street, alley, sidewalk, trails, or city park within city limits.

(b) It shall be unlawful for the parent or guardian of a minor to allow or permit the minor to operate a neighborhood electric vehicle or an off-highway vehicle on any public roadway, street, alley, sidewalk, trail, or city park within the city limits.

(c) It is a defense to prosecution under this section if a minor presents evidence of being a qualified individual with a disability pursuant to the Americans with Disabilities Act of 1990 (42 U.S.C. Sections 12131 and 12132).
(Ord. No. 05-935, § 3, 8-3-05; Ord. No. 2025-971, § 5, 11-19-2025)

Sec. 45-19. Application of chapter to drivers of government vehicles.

The provisions of this chapter shall apply to the driver of any vehicle owned by or used in the service of the United States government, this state, county or city, and it shall be unlawful for any such driver to violate any of the provisions of this chapter, except as otherwise permitted in this chapter or by state statute.
(Code 1968, § 46-26)

Sec. 45-20. Application of chapter to persons propelling push carts, riding animals, etc.

Every person propelling any push cart or riding an animal upon a roadway, and every person driving any animal-drawn vehicle, shall be subject to the provisions of this chapter applicable to the driver of any vehicle, except those provisions of this chapter which, by their very nature, can have no application.
(Code 1968, § 46-27)

Sec. 45-21. Removing materials from highway.

Any person who drops or permits to be dropped or thrown, upon any street or highway any destructive or injurious material, or other material such as dirt, shell, oil, etc., which would be detrimental to the use or appearance of such street or highway, shall immediately remove the same or cause it to be removed.
(Code 1968, § 46-23(b))

Sec. 45-22. Penalty for violation of chapter.

(a) It is a misdemeanor for any person to violate any of the provisions of this chapter. Every person convicted of a misdemeanor for a violation of those provisions of this chapter for which another penalty is not specifically provided shall be punished by a fine of not less than $1.00 nor more than $200.00; provided however that no penalty shall be greater or less than the penalty for the same offense under the laws of this state.

(b) For violations under this chapter that are of a continuing nature, each day that the violation shall continue shall constitute a separate offense.
(Ord. No. 95-81, § 2, 1-25-95; Ord. No. 01-759, §§ 4, 5, 8-15-01; Ord. No. 04-679, § 3, 6-23-04; Ord. No. 04-799, § 3, 7-28-04; Ord. No. 07-464, § 13, 4-11-07)

Secs. 45-23—45-35. Reserved.

ARTICLE II. OPERATION OF VEHICLES GENERALLY

Sec. 45-36. Markers, buttons, or signs indicating course to be travelled in turning at intersections.

(a) The traffic engineer is authorized to place markers, buttons, or signs within or adjacent to intersections indicating the course to be travelled by vehicles turning at such intersections, and such course to be travelled as so indicated may conform to or be other than as prescribed by this article.

(b) When authorized markers, buttons, signs, or other indications are placed within an intersection indicating the course to be travelled by vehicles turning thereat, no driver of a vehicle shall disobey the directions of such indications.
(Code 1968, § 46-48)

Sec. 45-37. Prohibited turns at intersections; U-turns.

(a) The traffic engineer is hereby authorized to determine those intersections at which drivers of vehicles shall not make a right, left, or U-turn, and shall place proper signs at such intersections. The making of such turns may be prohibited between certain hours of any day and permitted at other hours, in which event the same shall be plainly indicated on the signs, or they may be removed when such turns are permitted. Whenever authorized signs are erected indicating that no right or left or U-turn is permitted, no driver of a vehicle shall disobey the directions of any such sign.

(b) The driver of any vehicle shall not turn such vehicle so as to proceed in the opposite direction (U-turn) at any intersection where such turns are prohibited by official signs or markings. The driver of any vehicle shall not so turn a vehicle unless such movement can be made in safety and without interfering with other traffic, and then only where a roadway is crossed or makes intersection with another roadway, or on a divided highway, where an official opening in the physical barrier or dividing section has been established by public authority.
(Code 1968, § 46-49; Ord. No. 99-500, § 1, 5-26-99)

Sec. 45-38. Turning from or into alley or private driveway.

(a) Any vehicle emerging from an alley or private driveway onto a two-way street or turning into an alley or private driveway from a two-way street in a business district shall proceed straight ahead or make a right turn and it shall be unlawful to turn left or into such alley or driveway.

(b) Any vehicle emerging from an alley or private driveway onto a one-way street shall proceed straight ahead or turn only in the direction of the designated flow of traffic on the one-way street being entered.
(Code 1968, § 46-51)

Sec. 45-39. Through streets and stop intersections.

(a) Those streets or parts of streets forming the express street plan as designated by the city traffic engineer are hereby declared to be through or express streets for the purpose of this chapter. Whenever a street is designated and described as a through or express street, the traffic engineer may place and maintain a stop sign on each and every street intersecting such through street or intersecting that portion thereof described and designated as such, unless traffic at any such intersection is controlled at all times by traffic-control signals; provided, however, that at the intersection of two such through streets or at the intersection of a through street and a heavy traffic street not so designated, stop signs shall be erected at the approaches of either or both of such streets as may be determined by the traffic engineer upon the basis of an engineering and traffic study.

(b) The traffic engineer is hereby authorized to determine and designate intersections where a particular hazard exists upon other than through streets and to determine whether vehicles shall stop at one or more entrances to any such stop intersection, and shall erect a stop sign at every such place where a stop is required.
(Code 1968, § 46-56)

Sec. 45-40. Yield intersections.

The traffic engineer is hereby authorized to determine and designate intersections where a particular hazard exists and to determine whether vehicles on one of the intersecting streets shall yield the right-of-way to vehicles on the other street or streets and to erect a "yield right-of-way" sign at every place where such a sign is needed.
(Code 1968, § 46-57)

Sec. 45-41. One-way streets and alleys.

(a) The traffic engineer is hereby authorized to designate streets or portions of streets and alleys upon which vehicles shall proceed and move in one direction only and to designate the direction in which movement is permitted, and to install official signs and markings designating such one-way movement. Upon those streets and parts of streets and in those alleys designated as one-way under the provisions of this subsection, vehicular traffic shall move only in the indicated direction when signs indicating the direction of traffic are erected and maintained at every intersection where movement in the opposite direction is prohibited, and it shall be unlawful for any person to operate any vehicle in violation of such signs so placed in accordance with this subsection.

(b) The traffic engineer is hereby authorized to determine and designate streets, parts of streets, or specific lanes thereon upon which vehicular traffic shall proceed in one direction during one period and the opposite direction

during another period of the day and he shall place and maintain appropriate markings, signs, barriers or other devices to give notice thereof. The traffic engineer may erect signs temporarily designating lanes to be used by traffic moving in a particular direction, regardless of the centerline of the roadway. It shall be unlawful for any person to operate any vehicle in violation of such markings, signs, barriers, or other devices so placed in accordance with this subsection.
(Code 1968, § 46-59)

Sec. 45-42. Driving or riding on fresh pavement.

It shall be unlawful for any person to drive any vehicle or ride any horse or other animal upon any portion of the streets in the city that has been freshly paved, unless all barriers or signal lights have been lawfully removed therefrom indicating that such street is ready for travel.
(Code 1968, § 46-69)

Sec. 45-43. Obstructing crosswalks and intersections.

The operator of a vehicle shall not cause the vehicle to enter a street intersection or a marked pedestrian crosswalk unless there is sufficient space for the operator's vehicle to pass through the intersection or crosswalk without obstructing other vehicular or pedestrian use of and passage through the intersection or crosswalk. The provisions of this section shall apply notwithstanding any traffic control signal indication to proceed into the intersection or crosswalk.
(Ord. No. 00-885, § 1, 10-4-00)

Sec. 45-44. Vulnerable road users.

(a) *Definitions.* The following words, terms and phrases, when used in this section will have the meanings set forth in this subsection, except when the context clearly indicates a different meaning:

Safe distance means:

(1) While passing, a separation between a motor vehicle and a vulnerable road user that, when all road, traffic and weather conditions are considered, provides the motorist sufficient space and time to avoid a collision with a vulnerable road user but, in any event, not less than 3 feet if the operator's vehicle is a passenger car or light truck and not less than 6 feet if the operator's vehicle is a truck (other than a light truck) or a commercial vehicle as defined by Texas Transportation Code Section 522.003; or

(2) While trailing, a separation between a motor vehicle and a vulnerable road user that, when all road, traffic and weather conditions are considered, provides the motorist sufficient space and time to avoid a collision with a vulnerable road user.

Vulnerable road user means:

(1) A pedestrian (including a runner), physically disabled person (including a person in a wheelchair), stranded motorist or passenger, highway construction or maintenance worker, tow truck operator, or utility worker in the roadway;

(2) A person on horseback or operating a horse-driven conveyance, in the roadway;

(3) A person operating a bicycle (including an electric bicycle), hand cycle, or other human-powered wheeled vehicle in the roadway; or

(4) A person operating a moped, motor-driven cycle, or motor-assisted scooter, as those terms are defined in sections 541.201 and 551.351 of the Texas Transportation Code, as applicable.

(b) *Action required.* An operator of a motor vehicle or motorcycle shall:

(1) When passing a vulnerable road user on a highway or street;

a. Vacate the lane in which the vulnerable road user is located if the highway or street has two or more

marked lanes running in the same direction if such action can be taken safely; or

b. Pass the vulnerable road user at a safe distance; or

(2) When making a turn at an intersection (including an intersection with an alley or private road or driveway), yield the right-of-way to a vulnerable road user who is approaching from the opposite direction and is in the intersection, or is in such proximity to the intersection as to be an immediate hazard.

(c) *Prohibited action.* An occupant of a motor vehicle may not:

(1) Knowingly throw or project any object or substance at or against a vulnerable road user, or the user's animal, equipment, vehicle or conveyance;

(2) Overtake a vulnerable road user traveling in the same direction and subsequently make a turn in front of the vulnerable road user unless the operator is safely clear of the vulnerable road user, taking into account the speed at which the vulnerable road user is traveling and the braking requirements of the motor vehicle making the right-hand turn; or

(3) Maneuver the vehicle in a manner that is intended to cause intimidation or harassment to a vulnerable road user or threatens a vulnerable road user.

(d) *Affirmative defense.* It is an affirmative defense to prosecution under this section that, at the time of the offense, the vulnerable road user was acting in violation of any applicable traffic law.

(e) *Offenses.* The penalty for any violation of this section shall be a fine not to exceed $500.00. (Ord. No. 2013-429, § 2, 5-8-2013)

Secs. 45-45—45-55. Reserved.

ARTICLE III. TRANSPORTATION OF HAZARDOUS MATERIALS

Sec. 45-56. "Hazardous materials" defined.

For the purposes of this article "hazardous materials" are defined as including the following:

(1) *Acids and other corrosive liquids.* Corrosive liquids are those acids, alkaline caustic liquids and other corrosive liquids which, when in contact with living tissue, will cause severe damage of such tissue by chemical action; or in case of leakage, will materially damage or destroy other freight by chemical action; or are liable to cause fire when in contact with organic matter or with certain chemicals.

(2) *Class "A" poisons.* Class "A" poisons are poisonous gases or liquids of such nature that a very small amount of the gas or vapor of the liquid, mixed with air is dangerous to life. This class includes, not by way of limitation, but by way of example only, the following:

a. Bromacetone.

b. Cyanogen.

c. Cyanogen chloride containing less than 0.9 percent water.

d. Diphosgene.

e. Ethyldichlorarsine.

f. Hydrocyanic acid; provided, however, that diluted solutions of hydrocyanic acid of not exceeding five percent strength are not class "A" poisons.

g. Lewisite.

h. Methyldichlorarsine.

i. Mustard gas.

j. Nitrogen peroxide (tetroxide).

k. Phenylcarbylamine chloride.

l. Phosgene (diphosgene).

n. Nitrogen tetroxide-nitric oxide mixtures containing up to 33.2 percent weight nitric oxide.

(3) *Class "B" poisons.* Class "B" poisons are those substances, liquid or solid (including pastes and semi-solids) other than class "A" poisons, which are known to be so toxic to man as to afford a hazard to health during transportation, or which, in the absence of adequate data on human toxicity, are presumed to be toxic to man.

(4) *Explosive.* An explosive is defined as any chemical compound, mixture, or device, the primary or common purpose of which is to function by explosion, *i.e.,* with substantially instantaneous release of gas and heat, unless such compound, mixture, or device is otherwise specifically classified.

(5) *Flammable compressed gas.* A flammable compressed gas is any compressed gas that is so classified by section 173.300 of the Regulations of the Department of Transportation Governing the Transportation of Dangerous Articles in Tank Motor Vehicles, dated September, 1967.

(6) *Flammable liquid.* A flammable liquid is any liquid which gives off flammable vapors (as determined by flash point from Tagliabue's open-cup tester, as used for test of burning oils) at or below a temperature of 140 degrees Fahrenheit. Pyroforic liquids that become self-igniting when exposed to air are flammable liquids.

(7) *Flammable solid.* A flammable solid is any solid material, other than one classified as an explosive, which, under conditions incident to transportation, is liable to cause fires through friction, absorption of moisture, spontaneous chemical changes, retained heat from manufacturing or processing, or which can be ignited readily and when ignited burns so vigorously and persistently as to create a serious transportation hazard; such as, not by way of limitation, but by way of example only, certain metallic hydrides, metallic sodium and potassium, and certain oily fabrics, processed meals, and nitrocellulose product.

(8) *Non-flammable compressed gas.* A nonflammable compressed gas is any compressed gas which is poisonous to human beings or which has asphyxiating or toxic effect to human beings.

(9) *Oxidizing material.* An oxidizing material is a substance such as a chlorate, permanganate, peroxide, nitro carbo nitrate, or a nitrate that yields oxygen readily to stimulate the combustion of organic matter.

(10) *Radioactive materials.* Radioactive materials include any nuclear or fissionable material, radioactive or waste that have external radiation requiring critical safety control.

(Code 1968, § 46-77; Ord. No. 70-280, § 1, 3-4-70)

Sec. 45-57. Transportation upon freeways within boundaries of fire zones 1 and 2.

It shall be unlawful for any truck transporting a cargo of over 100 gallons or over 1,000 pounds of hazardous materials, as herein defined, to travel upon any of the elevated freeways of the city within the boundaries of fire zones 1 and 2 as such boundaries existed on December 1, 1969; provided, however, explosives, as herein defined, shall be strictly prohibited in any quantity, upon such elevated freeways within the boundaries of fire zones 1 and 2, and provided, further, however, the prohibition herein contained shall not apply to trucks operated by the fire department of the city carrying supplies of gasoline or other fuels to the scene of fire alarms.

(Code 1968, § 46-78; Ord. No. 70-280, § 1, 3-4-70)

Sec. 45-58. Transportation on routes encompassed by Loop 610.

(a) No truck transporting hazardous materials shall use any route or be driven on any street within that portion of the city encompassed by Loop 610-North, West, South and East unless:

(1) Such truck is being driven to or from a place within that portion of the city encompassed by Loop 610 where the cargo of such truck is intended to be loaded or unloaded; or

(2) Such truck is being driven to or from the property of the motor carrier owning such truck or under whose contract the truck is being driven and such property is located within that portion of the city encompassed by Loop 610; or

(3) Such truck is being driven to or from a place within that portion of the city encompassed by Loop 610 designated as a safe haven in accordance with federal law and supporting regulations where such truck is to be parked or was parked for a period of not less than four hours.

Provided, however, trucks transporting hazardous materials may travel on Loop 610-North, West, South and East.

(b) Proof that a truck transporting hazardous materials was within that portion of the city that is encompassed by Loop 610-North, West, South and East shall constitute prima facie evidence of a violation of this section; but the owner or operator of such truck shall have the right to introduce evidence to show that the truck was being driven to or from a place within that portion of the city encompassed by Loop 610 as authorized by subsection (a).
(Code 1968, § 46-79; Ord. No. 76-2098, § 1, 12-7-76)

Secs. 45-59—45-70. Reserved.

ARTICLE IV. TRAFFIC-CONTROL DEVICES*

Sec. 45-71. Conformity with state specifications; uniformity.

All traffic-control signs, signals, and devices shall conform to the manual and specifications approved by the state department of highways and public transportation. All signs and signals required under this chapter for a particular purpose shall, so far as practicable, be uniform as to type and location throughout the city. All traffic-control devices so erected and not inconsistent with the provisions of state law or this chapter shall be official traffic-control devices.
(Code 1968, § 46-81)

Sec. 45-72. General powers and duties of traffic engineer.

The traffic engineer shall place and maintain traffic-control signs, signals, and devices when and as required under this chapter and other traffic ordinances of this city to make effective the provisions of this chapter and such ordinances, and may place and maintain such additional traffic-control devices as he may deem necessary to regulate traffic under the traffic ordinances of this city or under state law, or to guide or warn traffic.
(Code 1968, § 46-82)

Sec. 45-73. Designation of crosswalks and safety zones.

The city traffic engineer is hereby authorized:

(1) To designate and maintain, by appropriate devices, marks, or lines upon the surface of the roadway, crosswalks at intersections where, in his opinion, there is particular danger to pedestrians crossing the roadway, and at such other places as he may deem necessary.

(2) To establish safety zones of such kind and character and at such places as he may deem necessary.
(Code 1968, § 46-83)

Sec. 45-74. Marking of traffic lanes.

The traffic engineer is hereby authorized to mark traffic lanes upon the roadway of any street or highway where a regular alignment of traffic is necessary.
(Code 1968, § 46-84)

Sec. 45-75. Testing devices.

The traffic engineer may test traffic-control devices under actual conditions of traffic.
(Code 1968, § 46-85)

*__Cross reference—__Posting advertising matter on traffic signs, etc., § 28-39.

Sec. 45-76. Unauthorized installation of signs; prima facie evidence that devices were installed by traffic engineer.

It shall be unlawful for any person other than the traffic engineer to install or cause to be installed any sign purporting to direct the use of streets or the activities on the streets of pedestrians or vehicles, and proof in any prosecution that any traffic-control device, sign, signal or marking was actually in place on any street in the city shall constitute prima facie evidence that the same was installed by the traffic engineer pursuant to the authority granted in this chapter. (Code 1968, § 46-92)

Secs. 45-77—45-90. Reserved.

ARTICLE V. SPEED REGULATIONS*

Sec. 45-91. Maximum limits generally.

(a) No person shall drive a vehicle on any street or highway in the city at a speed greater than is reasonable and prudent under the circumstances then existing. Except when a special hazard exists that requires lower speeds for compliance with subsection (d), the following limits shall be lawful, but any speed in excess of such limits shall be prima facie evidence that the speed is not reasonable or prudent and that it is unlawful:

(1) Where no other speed limit has been posted with appropriate signs giving notice thereof, 30 miles per hour on any street or highway other than an alley and 15 miles per hour on an alley within the city limits.

(2) Seventy miles per hour during the daytime and 65 miles per hour during the nighttime for any passenger car on any state or federal numbered highway outside any urban district, including farm and/or ranch-to-market roads, and 60 miles per hour during the daytime and 55 miles per hour during the nighttime for any passenger car on all streets or highways outside any urban district.

(3) Sixty miles per hour for all other vehicles on any streets or highway outside any urban district.

(4) The speed limits for any bus or other vehicle engaged in the business of transporting passengers for compensation or hire, for any commercial vehicle which is in authorized use as a "Highway Post Office" vehicle furnishing Highway Post Office service in the transportation of the United States mail, and for any light truck, shall be the same as prescribed for passenger cars at the same location.

(b) The above limitations notwithstanding, the following prima facie maximum limits are declared, for any streets or highway outside any urban district:

(1) Forty-five miles per hour for any vehicle towing any house trailer of actual or registered gross weight exceeding 4,500 pounds or with an overall length exceeding 32 feet, excluding the tow bar.

(2) Sixty miles per hour in daytime and 55 miles per hour during nighttime for any truck, except light trucks, truck tractor, trailer or semi-trailer, or for any vehicle towing any trailer, semi-trailer, another motor vehicle, or any house trailer of actual or registered gross weight less than 4,500 pounds and overall length of 32 feet or less, excluding the tow bar.

(3) Fifty miles per hour for any school bus.

(c) For the purposes of this section, the following definitions shall apply:

(1) *Daytime* means from one-half hour before sunrise to one-half hour after sunset, and "nighttime" means at any other hour.

(2) *Urban district* means the territory contiguous to and including any highway or street which is built up with structures devoted to business, industry, or dwelling

*__Cross reference—__Speed limits at airport, § 9-103.

houses, situated at intervals of less than 100 feet for a distance of one-fourth of a mile or more on either side.

(3) *Light truck* means any truck with a manufacturer's rated carrying capacity not to exceed 2,000 pounds and includes those trucks commonly known as pickup trucks, panel delivery trucks and carry-all trucks.

(4) *Passenger car* means any motor vehicle, except motorcycles and motor-driven cycles, designed for carrying ten passengers or less and used for the transportation of persons.

(5) *Alley* means a street that:

(1) Is not used primarily for through traffic; and

(2) Gives access to rear entrances of buildings or lots along the street.

(d) Notwithstanding any other provisions of this article, no person shall drive a vehicle on a street at a speed greater than is reasonable and prudent under the conditions and having regard to the actual and potential hazards then existing. In every event, speed shall be so controlled as may be necessary to avoid colliding with any person, vehicle or other conveyance on or entering the street in compliance with legal requirements and the duty of all persons to use due care.

(e) The driver of every vehicle shall, consistent with the requirements of subsection (d), drive at an appropriate reduced speed when approaching or crossing an intersection or railway grade crossing, when approaching or going around a curve, when approaching a hill crest, when traveling upon any narrow or winding roadway, and when a special hazard exists with respect to pedestrians or other traffic or by reason of weather or street or highway conditions.
(Code 1968, § 46-104; Ord. No. 72-1223, § 1, 7-18-72; Ord. No. 93-1624, §§ 1, 2, 12-22-93)

Sec. 45-92. Maximum limits on specific streets.

The city council may alter the maximum speed limits established by section 45-91 of this Code, on any street or portion thereof within the city in accordance with the provisions of Article 6701d, Section 169, of Vernon's Annotated Civil Statutes. Whenever signs are posted giving notice of the maximum legal speed limit so established for a particular street or portion thereof, it shall be unlawful for any person to drive or operate any vehicle at a rate of speed in excess of such limit.
(Code 1968, § 46-105)

Sec. 45-93. Speed limits in certain public parks.

(a) The maximum prima facie speed limits shall be as set forth below on and within those certain named and designated streets, drives, roads or public ways, or parts thereof, located in Hermann Park, MacGregor Park and Memorial Park, in the city limits of the city:

(1) A maximum speed limit of 30 miles per hour shall apply to and prevail on and within the following named and designated streets, drives, roads or public ways, or parts thereof, located in Hermann Park, MacGregor Park and Memorial Park:

a. Golf Course Drive from the centerline of Hermann Loop Drive to the centerline of Zoo Circle Drive.

b. Hermann Loop Drive from the centerline of Fannin to the centerline of North MacGregor.

c. Hermann Loop Drive from the centerline of Zoo Circle Drive to the centerline of Golf Course Drive.

d. North MacGregor from the centerline of Almeda to a point approximately 1,000 feet north of Holcombe.

e. MacGregor Loop Drive from the centerline of Calhoun to the centerline of South MacGregor Way.

f. South MacGregor Way from the centerline of Calhoun to the dead end of South MacGregor Way approximately 1,500 feet east of South Park.

g. Memorial Loop Drive from the centerline of Memorial (west intersection) to the centerline of Memorial (east intersection).

h. North Entrance Drive from the centerline of Washington to the centerline of Memorial Loop Drive.

i. North MacGregor from the centerline of Fannin to the centerline of Hermann Loop Drive.

j. South Picnic Drive from the centerline of Memorial south 0.4 mile.

(2) A speed limit of 20 miles per hour shall apply to and prevail on the following streets or drives, or parts thereof, within Hermann Park:

Zoo Circle Drive from the centerline of North MacGregor to the centerline of Golf Course Drive.

(b) Such maximum speed limits shall be effective in, to and on the respective streets, drives, roads or public ways, or parts thereof, set forth in this section when appropriate signs giving notice thereof shall have been erected by the department.
(Code 1968, § 46-109; Ord. No. 68-433, §§ 1—3, 3-20-68; Ord. No. 07-464, §§ 14—16, 4-11-07)

Secs. 45-94—45-110. Reserved.

ARTICLE VI. STOPPING, STANDING AND PARKING GENERALLY

Sec. 45-111. Sitting, standing, and walking in certain areas prohibited.

(a) Except as otherwise permitted by law, a person commits an offense if the person sits, stands or walks on a median strip that measures six feet or less in width or in areas between divided roadways where no median strip exists.

(b) This section does not apply if the person:

(1) is crossing a divided roadway in the most direct route possible;

(2) is the victim of or rendering aid in an emergency situation or in compliance with the directions of a peace officer;

(3) is performing work in the right-of-way in accordance with a permit issued under another section of this Code; or

(4) has prior authorization from the city or is otherwise in compliance with applicable laws and regulations.
(Ord. No. 2025-755, § 2, 8-27-2025)

Sec. 45-112. Reserved.

Editor's note—Ord. No. 07-464, § 17(Exh. D), adopted April 11, 2007, repealed § 45-112 in its entirety. Formerly said section pertained to blocking roadways and derived from Code 1968, § 46-123. The user's attention is directed to Ch. 26 for similar provisions.

Sec. 45-113. Parking or standing on left side of one-way roadway.

If a street or highway includes two or more separate roadways and traffic is restricted to one direction upon any such roadway, the traffic engineer is authorized to determine when standing or parking may be permitted upon the left-hand side of any such one-way roadway and to direct that signs be erected giving notice thereof.
(Code 1968, § 46-125; Ord. No. 07-464, § 17(Exh. D), 4-11-07)

Sec. 45-114. Cut-back curb sections for parking—Consent required to cut curb.

(a) It shall be unlawful for any person to cut back any curb in front of any place or establishment for the purpose of providing individual parking space or parking space for the use of customers of such person without the consent of the director.

(b) The director shall notify the appropriate district council members and all at large council members in writing of such requests to cut back a curb within their districts within 14 days of application
(Code 1968, § 46-126; Ord. No. 07-464, § 17(Exh. D), 4-11-07; Ord. No. 2013-110, § 2, 2-6-2013)

Sec. 45-115. Same—Method of parking.

(a) As approved by the traffic engineer, parking may be at an angle to the curb.

(b) The traffic engineer is authorized to prohibit angle parking when, upon the basis of an engineering and traffic investigation, it is determined that such practice is hazardous or dangerous to vehicular or pedestrian traffic.

(c) The traffic engineer shall notify the appropriate district council members and all at large council members in writing of such requests for angle parking within their districts within 14 days of application.
(Code 1968, § 46-127; Ord. No. 07-464, § 17(Exh. D), 4-11-07; Ord. No. 2013-110, § 2, 2-6-2013)

Sec. 45-116. Reserved.

Editor's note—Ord. No. 07-464, § 17(Exh. D), adopted April 11, 2007, repealed § 45-116 in its entirety. Formerly said section pertained to parking prohibitions and restrictions on specific streets generally and derived from Code 1968, § 46-128. The user's attention is directed to Ch. 26 for similar provisions.

Sec. 45-117. Parking on narrow streets.

The traffic engineer is hereby authorized to designate a no parking zone upon any street when the width of the roadway does not exceed 20 feet, or upon one side of a street as indicated by appropriate signs, when the width of the roadway does not exceed 30 feet. The traffic engineer and the parking official, as authorized by the traffic engineer, are hereby authorized to erect and maintain signs indicating no parking upon any street within a no parking zone designated by the traffic engineer.
(Code 1968, § 46-129; Ord. No. 07-464, § 17(Exh. D), 4-11-07)

Sec. 45-118. Parking adjacent to schools.

The traffic engineer is hereby authorized to designate a no parking zone upon either or both sides of any street adjacent to any school property when such parking would, in his opinion, interfere with traffic or create a hazardous situation. The traffic engineer and the parking official, as authorized by the traffic engineer, are hereby authorized to erect and maintain signs indicating no parking upon any street within a no parking zone designated by the traffic engineer.
(Code 1968, § 46-130; Ord. No. 07-464, § 17(Exh. D), 4-11-07)

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Sec. 45-119. Stopping, standing or parking near hazardous or congested places.

The traffic engineer is hereby authorized to designate a no parking zone upon any street where the stopping, standing or parking of vehicles would create an especially hazardous condition or would cause unusual delay to traffic. The traffic engineer and the parking official, as authorized by the traffic engineer, are hereby authorized to erect and maintain signs indicating no parking upon any street within a no parking zone designated by the traffic engineer.
(Code 1968, § 46-131; Ord. No. 07-464, § 17(Exh. D), 4-11-07)

Secs. 45-120—45-124. Reserved.

Editor's note—Ord. No. 07-464, § 17(Exh. D), adopted April 11, 2007, repealed §§ 45-120—45-124 in their entirety. Former said sections pertained to parking in excess of 24 hours; parking on restricted city property; vehicles on parking lots not to protrude over property line; time limit for trailer parking; parking of commercial vehicles prohibited between certain hours and derived from Code 1968, § 46-133; Code 1968, §§ 46-134—46-137. The user's attention is directed to Ch. 26 for similar provisions.

Sec. 45-125. Designation of curb loading zones.

The traffic engineer is hereby authorized to determine the location of curb loading zones and traffic engineer shall place and maintain appropriate signs indicating the same and stating the hours during which the provisions of this section are applicable.
(Code 1968, § 46-138; Ord. No. 07-464, § 17(Exh. D), 4-11-07)

Secs. 45-126, 45-127. Reserved.

Editor's note—Ord. No. 07-464, § 17((Exh. D), adopted April 11, 2007, repealed §§ 45-126, 45-127 in their entirety. Formerly said sections pertained to parking in truck loading zones; vehicles driven by disabled veterans [parking in truck loading zones] and derived from Code 1968, §§ 46-139, 46-140. The user's attention is directed to Ch. 26 for similar provisions.

Sec. 45-128. Parking areas for persons with disabilities.

(a) The traffic engineer is hereby authorized and directed, pursuant to the provisions and procedures of sections 45-5 through 45-7 of this Code and Chapter 681 of the Texas Transportation Code, to designate and establish spaces on the streets of the city and on any property owned or controlled by the city, and the owner or person in control of any other private or public property may similarly designate and establish spaces thereon, for the exclusive use as parking spaces or parking areas for vehicles transporting persons with disabilities. Such spaces shall be marked with signs in the manner provided by law.

(b) The traffic engineer shall cause the various parking spaces for the exclusive use of vehicles transporting persons with disabilities that are established on the public streets to additionally be marked and designated as tow-away zones. Any vehicle parked in such a marked tow-away zone parking space that does not display a placard or plate with the international symbol of access issued in a form prescribed by the Texas Department of Transportation (or an equivalent symbol issued by another state if the vehicle is not registered in Texas) shall be subject to towing and impoundment by authority of any police officer of the city in the manner provided in this Code.
(Code 1968, § 46-140.1; Ord. No. 80-3073, § 2, 10-22-80; Ord. No. 89-669, §§ 1, 2, 5-10-89; Ord. No. 07-464, § 17(Exh. D), 4-11-07)

Sec. 45-129. Public carrier stops and zones generally.

(a) The traffic engineer is hereby authorized and required to establish bus stops, bus zones, and zones for other passenger common-carrier motor vehicles on such public streets in such places and in such number as he shall determine to be of the greatest benefit and convenience to the public, and every such bus stop, bus zone, or other zone shall be designated by appropriate signs.

(b) The traffic engineer is hereby authorized and directed, pursuant to the procedures of sections 45-5 and 45-7 of this Code, to establish traffic lanes for the exclusive use of passenger buses during specified hours and days. When such lanes are designated by traffic markings and signs, such lanes shall be deemed to have been established in accordance with this subsection

and any person operating a motor vehicle, motorcycle or bicycle therein during prohibited times, other than crossing said lanes at intersections, shall be guilty of a misdemeanor, and upon conviction, shall be fined as provided in section 1-6 of this Code.
(Code 1968, § 46-141; Ord. No. 75-825, § 1, 5-20-75; Ord. No. 07-464, § 17(Exh. D), 4-11-07)

Cross reference—Use of designated loading points by suburban buses, § 46-151.

Sec. 45-130. Taxi zones.

(a) The traffic engineer and his authorized assistants, in consultation with the parking official, are authorized and directed to designate spaces on the streets of the city for the exclusive use as taxi zones and to mark the same with appropriate signs and to install standard signs to indicate the location of such zones, such locations to be determined after traffic engineering surveys, studies and conclusions.

(b) Taxi zones shall be designated at or near entrances to principal hotels and passenger depots, such as bus depots, passenger train depots, and airports. Such zones shall be designated by the traffic engineer.

(c) No portion of any street in the city shall be used as a taxi zone other than the ones prescribed as such by ordinance, unless such taxi zone is approved as such by the traffic engineer in consultation with the parking official. Any person establishing a taxi zone in violation of this provision and any person driving a taxicab who uses any such taxi zone established in violation of this provision shall be deemed guilty of a misdemeanor.
(Code 1968, § 46-142; Ord. No. 07-464, § 17(Exh. D), 4-11-07)

Cross references—Taxicab stands at George Bush Intercontinental Airport/Houston (IAH), § 46-26; designation of taxicab stands at William P. Hobby Airport (HOU), § 46-27.

Sec. 45-131. Standing and parking of buses.

(a) The operator of a bus shall not stand or park such vehicle upon any street at any place other than a bus stop or bus zone designated as provided in this article.

(b) The operator of a bus shall not stop such vehicle upon any street at any place for the purpose of loading or unloading passengers or their baggage, other than at a bus stop or bus zone designated as provided in this article, except in case of an emergency.

(c) The operator of a bus shall enter a bus stop or bus zone on a public street in such a manner that the bus, when stopped to load or unload passengers or baggage, shall be in a position with the right front wheel of such vehicle not further than 18 inches from the curb, with the bus approximately parallel to the curb so as not to unduly impede the movement of other vehicular traffic.
(Code 1968, § 46-143; Ord. No. 07-464, § 17(Exh. D), 4-11-07)

Sec. 45-132. Standing or parking of taxicabs.

(a) The operator of a taxicab which is in-service shall not stand or park such vehicle upon any street at any place other than in a taxi zone designated as provided in this article, and in no case shall the operator of an in-service taxicab leave his vehicle while it is parked at a taxi zone. This provision shall not prevent the operator of a taxicab from temporarily stopping at any place in accordance with other stopping or parking regulations for the purpose of and while engaged in the expeditious loading or unloading of passengers.

(b) The operator of any taxicab which is out-of-service shall park his vehicle in conformity with the provisions of this article and article II of chapter 26 of this Code relating to the parking and standing of motor vehicles generally. In no case shall the operator of a taxicab which is out-of-service park at a taxi zone.

(c) No driver shall load or unload passengers while his vehicle is out-of-service.

(d) The number of taxicabs occupying a taxi zone shall not exceed the number designated on the official sign establishing such zone.

(e) As used in this section, a taxicab is "out-of-service" whenever a sign reading "taxi is out-of-service" is affixed to the visor of such taxicab so as

to be visible from the outside of the taxicab. Lettering for such a sign shall be at least one-and-a half inches high. A taxicab is "in-service" whenever it is not "out-of-service" in accordance with the foregoing definition.
(Code 1968, § 46-144; Ord. No. 83-894, § 1, 6-14-83; Ord. No. 07-464, § 17(Exh. D), 4-11-07; Ord. No. 09-2, § 22, 1-7-09)

Cross references—Standing, etc., of taxicabs at George Bush Intercontinental Airport/Houston (IAH), § 46-26; loading zones, etc., at William P. Hobby Airport (HOU), § 46-27.

Secs. 45-133—45-135. Reserved.

Editor's note—Ord. No. 07-464, § 17(Exh. D), adopted April 11, 2007, repealed §§ 45-133—45-135 in their entirety. Formerly said sections pertained to restricted use of bus zones and taxicab stands; owner and operator responsible for illegal parking; use of esplanade, median strip or traffic island and derived from Code 1968 §§ 46-145, 46-147; Ord. No. 05-1315, § 2, 11-30-05. The user's attention is directed to Ch. 26 for similar provisions.

Sec. 45-136. Establishment of "tow-away" zones.

The traffic engineer is hereby authorized to establish "tow-away zones" in conjunction with no-parking regulations upon any street of the city, and for whatever times his study of such streets shows that an illegally parked vehicle would cause an undue hazard or delay to moving traffic. The traffic engineer and the parking official, as authorized by the traffic engineer, are hereby authorized to erect and maintain signs indicating a tow-away zones upon any street within a tow-away zone established by the traffic engineer.
(Code 1968, § 46-149; Ord. No. 68-1965, § 1, 12-11-68; Ord. No. 79-1339, § 1, 7-5-78; Ord. No. 79-1214, § 3, 7-25-79; Ord. No. 07-464, § 17(Exh. D), 4-11-07)

Sec. 45-137. Reserved.

Editor's note—Ord. No. 07-464, § 17(Exh. D), adopted April 11, 2007, repealed § 45-137 in its entirety. Formerly said section pertained to large vehicle restrictions and derived from Ord. No. 91-62, § 3, 1-9-91. The user's attention is directed to Ch. 26 for similar provisions.

Sec. 45-138. Assimilated offenses.

The elements of those various offenses that are set forth in Subtitles C and H of Title 7 of the Texas Transportation Code that relate to the parking and stopping of vehicles, including any amendments thereto, are adopted as a part of this article by reference. Violations of any of the aforesaid provisions that are adopted by reference shall also constitute city ordinance violations and may be adjudicated as provided in article IV of chapter 16 of this Code.
(Ord. No. 95-186, § 2, 2-22-95; Ord. No. 07-464, § 17(Exh. D), 4-11-07)

Secs. 45-139—45-160. Reserved.

ARTICLE VII. SPEED FEEDBACK SIGN PROGRAM

Sec. 45-161. Program created.

There is hereby created within Houston Public Works the Speed Feedback Sign Program.
(Ord. No. 08-614, § 2, 7-1-08; Ord. No. 2018-11, § 50, 1-10-2018)

Sec. 45-162. Purpose.

The purpose of this article shall be to create a program to set criteria for the use of speed feedback devices in public street rights-of-way. The speed feedback signs authorized herein shall be used to provide to the driver of a vehicle real-time feedback by radar of the vehicle's speed and to bring attention to posted speed limits. Such devices are not approved as traffic control devices in the Texas Manual of Uniform Control Devices and are thus not designed to hinder, prevent, or aid in any police function.
(Ord. No. 08-614, § 2, 7-1-08)

Sec. 45-163. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Applicant means property owners' associations and public or private school districts which express an interest in participating in the program by completing an application and by taking all other steps as required herein to participate in the program.

Department means Houston Public Works.

Property owners' association means that entity as defined in Section 204.004 of the Texas Property Code.

Program means the Speed Feedback Sign Program.

Public way or *public street right-of-way* shall have the definition ascribed to the term public way(in section 40-121 of this Code.

Site means the location where the speed feedback sign will be placed.

Speed feedback sign or *sign* means each sign used in the program that gives real-time feedback of a vehicle's actual speed to the driver of the vehicle by the use of radar.

(Ord. No. 08-614, § 2, 7-1-08; Ord. No. 2018-11, § 50, 1-10-2018)

Sec. 45-164. Application for participation.

(a) The traffic engineer is hereby authorized to prepare an application in such form as shall be consistent with the requirements of this article for the participation of qualified members of the public and private sector in the program.

(b) As a minimum, the application shall require the following:

(1) Applicant's name, telephone number, and email address;

(2) Applicant's type of entity "property owners" association or school district);

(3) Applicant's mailing address and street address of main office;

(4) A description of the public street right-of-way where the speed feedback sign will be located and the applicant's interest therein;

(5) The estimated length of time necessary to acquire the required equipment; and

(6) Any other information the traffic engineer deems appropriate.

(c) The applicant shall also be required to make the following representations and accept the following obligations as part of the application:

(1) That the individual preparing the application is authorized to do so and to legally bind the applicant to the representations made in the application.

(2) That the applicant agrees at its sole cost and expense to purchase, install, and maintain (and, if deemed necessary by the traffic engineer, dismantle and remove) signs conforming with the technical standards and requirements of the department subject to the supervision, direction and control of the department.

(3) That the applicant will, at its sole cost and expense, comply with all city codes, rules, regulations, and other requirements and will obtain all necessary permits as part of the process of installation of the sign.

(4) That the applicant will, at its sole cost and expense, pay all monthly charges associated with the operation of the sign, transmission system, monitors, and other peripherals, including the cost of power, maintenance, parts replacement, etc.

(5) That the applicant will, in accordance with the department's technical standards and requirements, and at its sole cost and expense, pay any and all costs associated with the installation and maintenance of the sign.

(6) That the applicant recognizes and agrees that the department reserves the right at any time to change or modify the program as the department deems appropriate, or to terminate applicant's participation in the program at any time and for any reason, without recourse by applicant.

(7) That if the applicant is terminated from participation in the program by the department, or if the applicant voluntarily withdraws from the program, the applicant shall as soon as possible and at applicant's sole cost and expense remove

any equipment encroaching into the city's public way and repair any damage to the public way associated with said removal.

(d) The individual preparing the application shall sign the application as the applicant's representative agreeing to the terms, conditions, and representations contained in the application.
(Ord. No. 08-614, § 2, 7-1-08)

Sec. 45-165. Review and approval of application.

(a) In reviewing each application the department shall determine if the proposed applicant is appropriate for inclusion in the program. In doing so, the department may consider the following:

(1) The completeness of the application;

(2) The appropriateness of the proposed site;

(3) The availability of departmental staffing for performing related activities;

(4) The promptness with which the applicant can meet the department's deadlines for installation and availability of the sign;

(5) Any other criteria related to the efficacy of the program that the department deems appropriate.

(b) The traffic engineer is authorized, based on his review of the application and the representations and promises made therein, the results of consultations with the city legal department, and any other information he deems relevant or appropriate, to accept and approve the applicant for participation in the program; to deny the application; or to accept and approve the applicant subject to such conditions as the traffic engineer shall specify. The traffic engineer is not required to approve any application which the traffic engineer determines is not in the best interest of the program or the city.
(Ord. No. 08-614, § 2, 7-1-08)

Sec. 45-166. Technical requirements.

The department shall establish technical specifications and standards for all equipment, apparatus, and software used in the program.
(Ord. No. 08-614, § 2, 7-1-08)

Sec. 45-167. Use of city public street right-of-way authorized.

The department is hereby authorized to utilize those portions of the city's public street right-of-way where such use is necessary to accommodate the placement of a feedback sign as part of the program. Before any public way may be used, the traffic engineer and the legal department shall consult to determine if the proposed use of the public way will impair the city's primary use of said public way or pose any legal issues with regard to the city's right to so use said public way. Any installation of any program equipment in the public way must be approved in advance by the traffic engineer.
(Ord. No. 08-614, § 2, 7-1-08)

Sec. 45-168. Operation.

(a) The traffic engineer may establish rules and regulations for the implementation of the program.

(b) The feedback sign is to be installed as a matter of public safety. Its primary use will be to reduce overall vehicle speed and improve the safety of city streets. It is to be installed at the direction of the department and it is to be installed and operated in a manner such that it will not hinder or interfere with the police department's enforcement of all traffic laws of this city and all of the state vehicle laws applicable to traffic in this city.
(Ord. No. 08-614, § 2, 7-1-08)

Secs. 45-169—45-200. Reserved

ARTICLE VIII. REMOVAL AND IMPOUNDMENT OF VEHICLES*

Sec. 45-201. Motor vehicle compounds.

The city council shall establish and maintain one or more vehicle compounds to which all motor vehicles removed from the public streets, alleys, sidewalks and public ways, as provided in this article, shall be immediately taken and stored for protective custody. The motor vehicle compounds so established shall remain open seven days a

*__Cross reference—__Automobile wreckers, § 8-101 et seq.

week, 24 hours a day and an attendant shall be on duty at the compound at all times. Such attendants and such compounds shall be under the supervision and direction of the chief of police. (Code 1968, § 46-182; Ord. No. 79-1681, § 1, 10-2-79)

Sec. 45-202. General authority of police.

(a) Any police officer is hereby authorized to provide for the removal of a vehicle from a street or a public place to the nearest garage or other place of safety, or to a garage designated or maintained by the city, under the circumstances hereafter enumerated:

(1) When any vehicle is left unattended upon any bridge, viaduct, or causeway, or in any tube or tunnel where such vehicle constitutes an obstruction to traffic.

(2) When any vehicle is illegally parked so as to block the entrance to any private driveway and it is impracticable to move such vehicle from in front of the driveway to another point on the street or highway.

(3) When any vehicle is found upon a street and report has previously been made that such vehicle has been stolen or complaint has been filed and a warrant thereon issued charging that such vehicle has been embezzled.

(4) When any such officer has reasonable grounds to believe that such vehicle has been abandoned.

(5) When a vehicle upon a street is so disabled that its normal operation is impossible or impractical and the person in charge of the vehicle is incapacitated by reason of physical injury or other reason to such an extent as to be unable to provide for its removal or custody, or is not in the immediate vicinity of the disabled vehicle.

(6) When an officer arrests any person driving or in control of a vehicle for an alleged offense and such officer is by this Code or other law required to take the person arrested immediately before a magistrate.

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(7) When any vehicle is illegally parked in violation of any ordinance of the city and of the laws of the state not provided for in this section.

(8) When any vehicle has remained illegally overparked at any parking meter for a period of time in excess of five times the minimum time limit which may be purchased from the parking meter where such motor vehicle is illegally overparked.

(b) When any motor vehicle has been parked or left standing on the "prisoners' parking lot" located on the grounds of the Police Administration Building, 61 Riesner Street, a public place, for a period of five days, it shall be the duty of the police officer in charge of said "prisoners' parking lot" to give written notice to the owner or claimant, at his last known address, that if said motor vehicle is not removed, or caused to be removed from such parking lot within five days from the date of notice, the vehicle will be removed under the conditions and in the manner provided by this section.

(c) Any police officer is hereby authorized to provide for the removal of any vehicle parked or standing in or on any portion of a street or highway when, in his opinion, the vehicle constitutes a hazard, or interferes with a normal function of a governmental agency, or by reason of any catastrophe, emergency or unusual circumstance, the safety of the vehicle is imperiled.

(d) To provide for the public safety and protection of motorists, a law enforcement officer is hereby specifically authorized to provide for the immediate removal of any vehicle:

(1) Parked or standing in or on any portion of any freeway within the city limits; or

(2) Parked or standing in or on any portion of a "restricted access lane," as that term is defined and used in section 45-336 of this Code, during the hours that access to such lane is so restricted.

As used in this subsection, "freeway" means the entire public right-of-way of a limited-access or controlled-access highway, including controlled access roadway lanes, ramps, shoulders and unimproved areas, but excluding frontage or service roads.

(e) A vehicle removed pursuant to subsection (d) may be taken:

(1) As directed by the owner if the owner is present;

(2) To a nearby site designated by the police chief for such purpose; or

(3) To a vehicle storage facility.

(Code 1968, § 46-183; Ord. No. 68-340, § 1, 3-5-68; Ord. No. 79-1214, § 2, 7-25-79; Ord. No. 93-514, § 106, 5-5-93; Ord. No. 04-497, § 4, 5-26-04)

Sec. 45-203. When removal required.

(a) The police department shall remove from the public streets, alleys, sidewalks, and public ways of the city:

(1) Any abandoned motor vehicle, as that term is herein defined;

(2) Any motor vehicle which has remained unlawfully overparked at any parking meter for a period of time in excess of five times the minimum time limit which may be purchased from the parking meter where the motor vehicle is unlawfully overparked;

(3) All other motor vehicles which are illegally parked in violation of any ordinance of the city or of the laws of the state not otherwise provided for.

(b) An "abandoned motor vehicle," within the meaning of this article, shall be any motor vehicle standing, parked or remaining unattended on the public streets, alleys, sidewalks and public ways of the city for 48 or more continuous hours.

(c) Any abandoned motor vehicle, any motor vehicle which shall remain overparked at a parking meter as provided in subsection (a)(2) above, and any other motor vehicle which is illegally parked, is hereby declared to be a detriment and a menace to traffic and shall be a nuisance per se.

(Code 1968, § 46-184; Ord. No. 76-185, § 1, 2-10-76)

Sec. 45-204. Notice of removal.

(a) Whenever an officer removes a vehicle from a street as authorized in this article, and the officer knows or is able to ascertain the name and address of the owner thereof, such officer shall immediately give or cause to be given notice in writing to such owner of the fact of such removal, and the reasons therefor, and of the place to which such vehicle has been removed. In the event any such vehicle is stored in an authorized garage, a copy of such notice shall be given to the proprietor of such garage.

(b) Whenever an officer removes a vehicle from a street under this article, and does not know and is not able to ascertain the name of the owner, or for any other reason is unable to give the notice to the owner as hereinbefore provided, and in the event the vehicle is not returned to the owner within a period of three days, then and in that event the officer shall immediately send or cause to be sent written report of such removal by mail to the state department of highways and public transportation in Austin, Texas, and shall file a copy of such notice with the proprietor of any authorized garage in which the vehicle may be stored. Such notice shall include a complete description of the vehicle, the date, time, and place from which removed, the reasons for such removal, and the name of the garage or place where the vehicle is stored.
(Code 1968, § 46-185)

Sec. 45-205. Fees to be paid.

No vehicle being stored at a city compound shall be released until all fees payable under this article have been paid or security therefor has been posted.
(Ord. No. 91-1170, § 1, 8-14-91)

Sec. 45-206. Towing and storage charges when removed to city compound; redemption from compound.

(a) There shall be a towing charge for the removal of each motor vehicle to a motor vehicle compound operated by the city. The amount of the towing charge shall be equal to the actual cost to the city of having the vehicle towed to the city compound. The actual charge shall be determined by reference to the contract between the city and the contractor providing the towing service for which the charge is incurred.

In addition to the foregoing towing charge there shall be storage, preservation, notice, and related fees as authorized by section 8-193 of this Code to be imposed by privately operated storage lots. The chief of police shall cause the amount of the fees to be computed on the basis of actual costs of operation incurred or expected to be incurred in the operation of the compound; provided that no fee shall exceed the maximum amount authorized to be imposed by a privately operated storage lot for the same service under section 8-193 of this Code.

The police chief or his authorized agent shall post a conspicuous notice at each city compound, which notice shall contain a listing of the current schedule of towing and storage charges. The city shall have a lien in the total amount of the towing charge and storage charge on all motor vehicles at the compound, which lien shall be prior and superior to any and all other liens and claims except those for ad valorem taxes.

(b) Whenever the owner or the authorized agent of the owner of any motor vehicle, which has been removed from any public street, alley, sidewalk and public way of the city and which is stored at a city compound shall present himself at the compound and shall demand that motor vehicle, the attendant in charge shall satisfy himself that the person so claiming the motor vehicle is the true and lawful owner thereof or the authorized agent of the true and lawful owner thereof and is entitled to possession thereof. The attendant shall demand of the person proper identification and may require the display of a certificate of title to the motor vehicle and, upon being so satisfied and upon the owner's or his authorized agent's compliance with the provisions of subsection (c), below, the attendant shall deliver the motor vehicle to the owner thereof or the owner's authorized agent. The owner thereof or his authorized agent shall execute a receipt therefor, which receipt shall be made on a form prepared and furnished

by the chief of police and the attendant shall issue to the owner or his authorized agent a receipt for the towing fee and the storage fee so collected.

(c) In order to obtain release of his motor vehicle an owner or the authorized agent of an owner must:

(1) Provide adequate proof to the attendant that he is the owner or the authorized agent of the owner of the vehicle which release he is seeking;

(2) Post security in the amount of the towing charge and the accrued storage charge in the manner set out in subsection (d);

(3) Post an appearance bond, in the manner prescribed in article V of chapter 16 of this Code, for the parking violation, if any, for which the motor vehicle was towed; and

(4) Where the attendant has notice that the impounded vehicle was the subject of other citations for parking violations that have remained outstanding, where the current owner was the owner of record at the time of those violations, and where the attendant notifies the owner as to these outstanding violations, post an appearance bond for each and every one of those parking violations.

(d) The security provided for in (c)(2) above may be in the form of cash, cashier's check, certified check, or money order. The receipt for the security, to be signed by the owner and chief of police or his agent, shall authorize the chief of police or his duly authorized agent to apply the security in satisfaction of the impounding charges specified above in the event the owner or operator or person charged with the violation leading to the impounding of the vehicle is found guilty of the charge, or enters a plea of guilty or nolo contendere to the charge, or shall forfeit any cash bail which may have been posted, or where a warrant for the arrest of the person has been issued because of his failure to appear in the municipal courts. In the event that trial results in a finding of not guilty, or the charge is dismissed, the security tendered for the release of the motor vehicle shall be refunded by the clerk of the municipal courts and the city shall assume the obligation to pay the towing fee.

(Code 1968, § 46-187; Ord. No. 79-1681, § 2, 10-2-79; Ord. No. 91-1170, § 2, 8-14-91; Ord. No. 01-1079, § 6, 12-5-01; Ord. No. 04-497, § 4, 5-26-04; Ord. No. 2010-846, § 18, 11-3-2010)

Sec. 45-207. Payment of fine to compound attendant.

(a) If the owner of a motor vehicle removed to a city compound under this article so desires, he may pay the minimum fine for such unlawful parking at the compound by leaving the amount shown for such unlawful parking on the reverse side of the ticket with the compound attendant. The attendant shall issue a receipt to the owner of such vehicle on a form of receipt furnished to him by the clerk of the municipal court, showing thereon that such fine is paid. All such fines so collected by the compound attendant shall be delivered to the clerk of the municipal court when called for by such clerk.

(b) In the event that the owner of such motor vehicle does not desire to pay the amount of the fine at the compound, such owner may demand that such charge be heard before the municipal court of the city.

(Code 1968, § 46-188)

Cross reference—Courts, Ch. 16.

Sec. 45-208. Compound records.

It shall be the duty of the attendant at the city compound to keep a permanent and accurate up-to-date record of all motor vehicles brought to and stored at such compound. The record shall contain the type, make, license number, engine number, color and general description of all the motor vehicles brought to and stored at the compound and the month, date, year and hour each motor vehicle was delivered to the compound and such other information as directed by the chief of police. The disposition of each motor vehicle shall also be noted on such record.

(Code 1968, § 46-189)

Sec. 45-209. Sale of unredeemed vehicles at compound—Generally.

(a) Any motor vehicle stored at a city compound for a period of 60 days, the owner of which, whether known or not known, having failed or refused within such time to claim or reclaim such motor vehicle, shall be sold at public auction, as herein provided, to satisfy the towage and storage lien.

(b) After a motor vehicle has been stored at a city compound for a period of 60 days, the chief of police shall prepare a list of all such motor vehicles so stored, giving the make, model, type, body style and other details and shall deliver such list to the director of the treasury department. All auctions of such motor vehicles shall be conducted under the supervision and direction of the director of the treasury department.

(c) The director of the treasury department shall give 30 days' notice of the time and the place of the sale of such motor vehicles and a descriptive list of same to be offered for sale by posting such notice of sale at the courthouse door of Harris County, and at two other public places in the city, and a copy of such notice shall be sent by certified mail to the last known address of the owner of each vehicle so listed on the notice of sale, in the event the name of the owner is known to the director of the treasury department, or such name can be ascertained by him by the exercise of reasonable diligence. At the time and place so stated in such notice, each motor vehicle shall be offered for sale for cash at public auction and the director of the treasury department shall accept the highest bid for the motor vehicle. Each motor vehicle shall be sold separately.

(d) The public auction for the sale of such motor vehicles shall be conducted at the compound or at any other place so designated by the director of the treasury department in such notice and shall be at the time designated in such notice, and all sales shall be final.
(Code 1968, § 46-190)

Sec. 45-210. Same—Delivery of vehicle, bill of sale, etc., to purchaser; purchaser to pay fees necessary to secure title certificate.

Upon payment by the highest bidder to the director of the treasury department of the amount so bid for a motor vehicle sold pursuant to section 45-209 of this Code, such director shall deliver to such highest bidder such motor vehicle, together with a bill of sale therefor executed by such director in the name of the city. In addition thereto, such director shall furnish to the highest bidder all of the necessary documents required by the laws of the state in order that such bidder may secure a certificate of title therefor. All fees, transfer taxes and other charges for securing a certificate of title shall be paid by the purchaser.
(Code 1968, § 46-191)

Sec. 45-211. Same—Records and reports.

The director of the treasury department shall keep an accurate record of each motor vehicle sold under this article, the name and address of the purchaser, the price paid therefor, the date of sale and other information deemed necessary by the director. The director shall make a complete report in writing to the city controller of the time, place and manner of conducting such sale.
(Code 1968, § 46-192)

Sec. 45-212. Same—Disposition of proceeds.

(a) All funds received by the director of the treasury department from the sale of a motor vehicle under this article shall be delivered to the city controller who shall give his receipt therefor.

(b) Out of the proceeds from the sale of a motor vehicle under this article, the city controller shall first apply such proceeds to the towage and storage lien of the city, which sum shall be placed to the credit of the general fund and shall thereafter be disbursed as the city council shall determine and direct. In the event the proceeds of such sale are in excess of the towage and storage lien, then the excess sum shall be deposited by the city controller in a separate fund and, upon demand being made by the true owner of such motor vehicle, the controller shall deliver such excess sum to such owner. If no demand is made by the true owner of such motor vehicle for such excess sum within two years from the date of the sale of such motor vehicle, such sum shall become the

property of the city and the controller shall transfer such sum to the general fund to be used as the city council shall determine and direct.
(Code 1968, § 46-193)

Sec. 45-213. Same—Disposition of vehicle not bid upon.

Any motor vehicle which has been offered for sale at public auction under this article, and for which no bid is received, shall be disposed of by the director of the treasury department in such a manner as he deems advisable and all such motor vehicles so disposed of in such manner shall be reported to the city controller in writing, together with amount received therefor and the date and manner of such disposition.
(Code 1968, § 46-194)

Secs. 45-214—45-230. Reserved.

ARTICLE IX. PARADES AND PROCESSIONS*

DIVISION 1. RESERVED†

Secs. 45-231—45-45-250. Reserved.

DIVISION 2. FUNERAL PROCESSIONS

Sec. 45-251. Identification of vehicles.

A funeral composed of a procession of vehicles shall be identified as such by the display, upon the outside of each vehicle, of a pennant or other identifying insignia or by such other method as may be determined and designated by the police department.
(Code 1968, § 46-214)

Sec. 45-252. Use of streets during certain hours.

It shall be unlawful for a funeral procession to travel on the streets of the city, including freeways and expressways, between the hours of 7:00 a.m. and 9:00 a.m. and between the hours of 4:00 p.m. and 6:00 p.m., Monday through Friday, inclusive. Funeral processions may use the streets at any hour on a legal holiday.
(Code 1968, § 46-215)

Sec. 45-253. Police escort.

Each funeral procession shall be accompanied by a police motorcycle escort which shall be a part of the funeral procession and the police officer's motorcycle shall constitute an emergency vehicle when the siren and red lights are in operation. There shall be not less than one police motorcycle escort when the vehicles in the funeral procession, including the mortuary vehicles, do not exceed ten and there shall be not less than two police motorcycle escorts when such vehicles exceed ten.
(Code 1968, § 46-216)

Sec. 45-254. Drivers to use right-hand edge of roadway and follow vehicle ahead as close as practical.

Each driver in a funeral or other procession shall drive as near to the right-hand edge of the roadway as practical and shall follow the vehicle ahead as close as is practical and safe.
(Code 1968, § 46-217)

Sec. 45-255. Speed.

The drivers of motor vehicles participating in a funeral procession shall obey the applicable speed limit; provided, however, if, in the opinion of the police escort, conditions require that the funeral procession proceed at a speed less than the minimum speed limit or if conditions require that the

*__Cross references—__Carrying clubs in certain demonstrations, picket lines, etc., § 28-33; use of radios, etc., for advertising, § 30-4; public gatherings in parks, § 32-61 et seq.; street dances, § 40-27.

†__Editor's note—__Ord. No. 2010-911, § 4, adopted December 1, 2010, repealed Ch. 45, Art. IX, Div. 1, §§ 45-231—45-236 in its entirety. Formerly said division pertained to parades and processions generally and derived from Ord. No. 99-1352, § 1, 12-21-99; Ord. No. 05-1347, § 2, 12-7-2005; Ord. No. 07-657, § 2, 6-6-07; Ord. No. 08-50, § 3, 1-16-08; Ord. No. 09-167, § 2, 3-4-09. The users' attention is directed to Ch. 25, § 25-1 et seq. for similar provisions.

procession be brought to a complete stop, such direction shall be obeyed by the participants in the funeral procession.
(Code 1968, § 46-218)

Sec. 45-256. Obedience to traffic signals.

It shall be unlawful for the driver of a vehicle being the leader of a funeral procession to enter into an intersection in violation of a traffic signal, stop sign or direction of a police officer; however, as soon as the procession has started through an intersection, the whole procession may continue through without stopping or observing the direction of such stop sign or traffic signal, provided such vehicles are conspicuously designated as required by this division.
(Code 1968, § 46-219)

Sec. 45-257. Right-of-way rules as between two or more processions.

The right-of-way rules provided by law shall be applicable as between two or more funeral processions, subject to the authority of the police motorcycle escort to direct, control and regulate such funeral processions.
(Code 1968, § 46-220)

Sec. 45-258. Driving between vehicles in procession.

No driver of a vehicle shall drive between the vehicles comprising a funeral or other authorized procession while they are in motion and when such vehicles are conspicuously designated as required in this division.
(Code 1968, § 46-221)

Secs. 45-259—45-270. Reserved.

ARTICLE X. VEHICLE WEIGHT LIMITS

Sec. 45-271. Generally.

(a) Except as otherwise provided by law, no commercial motor vehicle, truck-trailer, trailer or semitrailer, nor combination of such vehicles, shall be operated over, on, or upon the public streets and highways within the corporate limits of the city, having a weight in excess of one or more of the following limitations:

(1) No such vehicle nor combination of vehicles shall have a greater weight than 20,000 pounds carried on any one axle, including all enforcement tolerances; or within a tandem axle weight in excess of 34,000 pounds, including all enforcement tolerances; or with an overall gross weight on a group of two or more consecutive axles produced by application of the following formula:

$$W = 500 \frac{LN}{N-1} + 12N \div 36$$

Where:

W = Overall gross weight on any group of 2 or more consecutive axles to the nearest 500 pounds;
L = Distance in feet between the extreme of any group of 2 or more axles; and
N = The number of axles in the group under consideration.

Notwithstanding the above, two consecutive sets of tandem axles may carry a gross load of 34,000 pounds each providing the overall distance between the first and last axles of such consecutive sets of tandem axles is 36 feet or more; provided, that such overall gross weight may not exceed 80,000 pounds, including all enforcement tolerances.

(2) No such vehicles nor combination of vehicles shall have a greater weight than 600 pounds per inch width of tire upon any wheel concentrated upon the surface of the highway and using high-pressure tires, and a greater weight than 650 pounds per inch width of tire upon any wheel concentrated upon the surface of the highway and using low-pressure tires, and no wheel shall carry a load in excess of 8,000 pounds on high-pressure tires and 10,000 pounds

on low-pressure tires, nor any axle a load in excess of 16,000 pounds on high pressure tires, and 20,000 pounds on low-pressure tires.

(3) Nothing in this section shall be construed as permitting size or weight limits on the national system of interstate and defense highways within the corporate limits of the city in excess of those permitted under 23 U.S.C. section 127. If the federal government prescribes or adopts vehicle size or weight limits greater than those prescribed by 23 U.S.C. section 127 for the national system of interstate and defense highways, the increased limits shall become effective on the national system of interstate and defense highways within the corporate limits of the city.

(4) Nothing in this section shall be construed to deny the operation of any vehicle or combination of vehicles that could be lawfully operated upon the highways and roads within the corporate limits of the city on December 16, 1974.

(5) In this section, an axle load is defined as the total load transmitted to the road by all wheels whose centers may be included between two parallel transverse vertical planes 40 inches apart, extending across the full width of the vehicle. Tandem axle group is defined as two or more axles spaced 40 inches or more apart from center to center having at least one common point of weight suspension.

(b) Any police officer having reason to believe that the gross weight or axle load of a loaded motor vehicle is unlawful, is authorized to weigh the same by means of portable or stationary scales approved by the police department of the city for such use, or the police officer may cause the loaded motor vehicle to be weighed by any public weigher and may require such vehicle to be driven to the nearest available scales for the purpose of weighing.

If the gross weight of a motor vehicle or an axle load exceeds the maximum permitted by law plus a tolerance allowance of five percent of the gross weight authorized by law, such police officer may require the operator to unload or rearrange the load to conform to law without proceeding if the police officer determines that such work may be safely accomplished at the site where the vehicle was weighed or may require the operator to proceed to a location where the cargo can be unloaded or rearranged safely without causing disruption to traffic. Such location shall be the nearest such place on authorized city property, on property under the control of the driver or his principal, or on property where consent has been given for such loading and where it is feasible to unload or rearrange such cargo.

If the load of a motor vehicle consists of livestock, the operator shall be permitted to proceed to destination without unloading providing the destination is within the state.

(c) Any person desiring to operate a vehicle on city streets in excess of the load limit set out herein shall first obtain a special permit from the Director of Houston Public Works and such permit shall not be issued unless reasonably necessary.

(d) The limitation as to weight prescribed by this section shall not apply to road rollers or other road making or road repairing machinery being moved or used on a street by the United States, the state, the city, or any contractor moving or using such road machinery in the performance of or preparatory to the performance of a contract with any one of the United States, the state or the city, but in the event of any such road making or road repairing machinery of a weight in excess of the limit set out herein being moved over the streets or bridges in the city, the person in charge thereof shall first obtain from the city engineer a permit for such movement, which permit shall designate the route or streets and also the bridges over which such movement shall take place, and such machinery may then be moved, but not elsewhere than over such designated routes.

(e) Any person moving or causing to be moved a load which, together with the weight of the vehicle, exceeds the limit as set out herein, shall be liable to the city for any damage done by any such excessively loaded vehicle to the streets,

bridges or culverts in the city and the acceptance of either of the permits provided for in this section shall be conclusive evidence that the person to whom such permit is issued agrees to make good and pay all such damages upon demand thereof made by the city.

(f) The driver, owner, operator, or other person operating or driving any commercial motor vehicle, truck, tractor, trailer or semitrailer or combination of such vehicles, over, on, or upon city streets or public highways within the limits of the city, shall comply with the provisions of article 6701d-11, section 5(a), of the Revised Civil Statutes of Texas.

(g) The driver, owner, operator, or other person operating or driving any commercial motor vehicle, truck, tractor, trailer or semitrailer or combination of such vehicles, over, on, or upon city streets or public highways within the limits of the city, who fails to comply with the provisions of this section, shall be guilty of a misdemeanor which shall be punishable, upon conviction, by a fine of not less than $100.00 and not more than $200.00.

(h) All persons have the affirmative duty to comply with all provisions of this article, and it shall not be a defense to prosecution of such persons that they were acting without a culpable mental state.
(Code 1968, § 46-251; Ord. No. 73-405, § 1, 2-28-73; Ord. No. 75-1220, § 1, 7-15-75; Ord. No. 76-284, § 1, 2-24-76; Ord. No. 78-1702, § 1, 8-29-78; Ord. No. 85-2065, § 1, 11-27-85; Ord. No. 86-3, § 1, 1-7-86; Ord. No. 93-514, § 106, 5-5-93; Ord. No. 02-449, § 2, 5-29-02; Ord. No. 2018-11, § 49, 1-10-2018)

Cross reference—General penalty for Code violations, § 1-6.

Sec. 45-272. Weight limits on specific streets.

(a) When signs are erected giving notice thereof, no person shall operate any vehicle with a gross weight in excess of the amounts specified on such signs at any time upon any of the streets or parts of streets so signed. Under this section, as vehicle weight is indicated by the number of axles supporting such vehicles, signs limiting the number of axles on through vehicles shall be official.

(b) When signs are erected stating "No Through Trucks," no person shall operate any commercial vehicle exceeding 3,000 pounds gross weight at any time upon any of the streets or parts of streets so signed, except that such vehicles may be operated thereon for the purpose of delivering or picking up materials or merchandise or for vehicle storage and then only by entering such street at the intersection nearest the destination of the vehicle and proceeding thereon no farther than the nearest intersection thereafter.
(Code 1968, § 46-252)

Secs. 45-273—45-285. Reserved.

ARTICLE XI. ACCIDENTS*

Sec. 45-286. Report required.

(a) The driver of a vehicle involved in an accident within the city limits resulting in property damage in excess of $1,000.00 shall report such accident either to the investigating police officer or in person to the police department, within 24 hours of its occurrence.

(b) Whenever the driver of a vehicle is physically incapable of making a required accident report and there was another occupant in the vehicle at the time of the accident capable of making a report, such occupant or representative shall make or cause to be made such report.
(Code 1968, § 46-268; Ord. No. 09-748, § 2, 8-12-09)

Cross references—Requests for accident reports, § 2-96; charge for records furnished by police department, § 2-97.

Sec. 45-287. Garage keeper to report damaged vehicle.

The person in charge of any garage or repair shop to which is brought any motor vehicle which shows evidence of having been involved in an accident or struck by any bullet shall file a

*__Cross reference—__Automobile wreckers, § 8-101 et seq.

written report of same with the police department within 24 hours after such vehicle is received and before any repairs have been made, giving the make of the vehicle and its engine number and the name and address of the person representing himself as being in charge of such vehicle.
(Code 1968, § 46-269)

Sec. 45-288. Parking or loitering near scene of collision.

(a) It shall be unlawful for the driver of any motor vehicle to park or stand the same on a public street within 25 feet of any place where a collision has occurred between two or more other vehicles or one or more vehicles and a pedestrian, until such time as the vehicles involved in such collision and any persons injured or killed have been removed from such place. It shall be unlawful for any person to loiter in the vicinity of any such collision, or to stand in the street within 200 feet of the place where the same occurred until such time as the vehicles involved, and any person injured or killed, have been removed therefrom.

(b) The provisions of subsection (a) shall not apply to peace officers, state, county or city officials in the discharge of their official duties, justices of the peace, members of the Harris County Emergency Corps, authorized representatives of daily newspapers, drivers of ambulances, passengers of any vehicle involved in any such collision, persons requested by a police officer to remain at the scene for the purpose of giving information to such officer, or to the driver of any automobile wrecker, after such driver has received specific authorization from a police officer to remove any vehicle involved in such collision.
(Code 1968, § 46-271)

Secs. 45-289—45-300. Reserved.

ARTICLE XII. BICYCLES*

DIVISION 1. GENERALLY

Sec. 45-301. Authority to prohibit riding on roadways.

The traffic engineer is authorized to erect signs on any roadway prohibiting the riding of bicycles thereon and, when such signs are in place, no person shall disobey the same.
(Code 1968, § 46-284)

Sec. 45-302. Riding on sidewalks.

(a) No person shall ride a bicycle upon a sidewalk within the central business district.

(b) The traffic engineer is authorized to erect signs on any sidewalk outside the central business district prohibiting the riding of bicycles thereon by any person, and when such signs are in place, no person shall disobey the same.

(c) Whenever any person is riding a bicycle upon a sidewalk, such person shall yield the right-of-way to any pedestrian and shall give audible signal before overtaking and passing any pedestrian.
(Code 1968, § 46-285; Ord. No. 2021-205, § 6, 3-24-2021; Ord. No. 2025-971, § 6, 11-19-2025)

Secs. 45-303—45-310. Reserved.

DIVISION 2. RESERVED†

Secs. 45-311—45-324. Reserved.

*__Cross reference—__Riding bicycles in restricted airport areas, § 9-66.

†__Editor's note—__Ord. No. 2008-968, § 2, adopted October 29, 2008, repealed Division 2, §§ 45-311—45-319 in its entirety. Formerly said division pertained to registration and derived from Code 1968, § 46-289; Ord. No. 72-1598, §§ 1(1)—1(9), 9-6-72; Ord. No. 72-2309, § 1, 12-20-72; Ord. No. 74-1732, § 1, 10-1-74; Ord. No. 92-1449, § 64, 11-4-92.

DIVISION 3. BICYCLE HELMETS

Sec. 45-325. Definitions.

In this division the following words and terms shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

Child means any person under 18 years of age.

Dealer means any commercial establishment that sells or leases new or used bicycles, whether as its principal business activity or in connection with the selling or leasing of other merchandise, from a place of business within the city.

Fund means the bicycle helmet fund created under section 45-329 of this Code.

Helmet means a properly fitted bicycle helmet that is not structurally damaged and that conformed to the standards of the American National Standards Institute, the American Society for Testing and Materials, the Snell Memorial Foundation or any federal agency having regulatory jurisdiction over bicycle helmets, as applicable, at the time of the manufacture of the helmet.

Parent means the natural or adoptive parent or court-appointed guardian or conservator of a child.

Public way means any property that is publicly owned or maintained, including, but not limited to, a "street or highway" as defined in section 45-2 of this Code, a publicly maintained trail, and any public parks facility.

Wearing a helmet means that the person has a helmet fastened securely to his head with the straps of the helmet securely tightened.
(Ord. No. 95-813, § 1, 7-12-95)

Sec. 45-326. Helmet required.

(a) It is unlawful for any child to operate or ride upon a bicycle or any side car, trailer, child carrier, seat or other device attached to a bicycle unless the child is wearing a helmet.

(b) It is unlawful for a parent to suffer or permit a child under 14 years of age to operate or ride upon a bicycle or any side car, trailer, carrier, seat or other device attached to a bicycle unless the child is wearing a helmet.

(c) It is a defense to prosecution that the bicycle was not being operated upon a public way at the time of the alleged offense.

(d) It is an affirmative defense to prosecution under this section, upon first offense only, that the person owns or has acquired a helmet prior to the court hearing and promises the court that the helmet will be used in the future.

(e) This section shall not be applicable to the operation of a pedicab pursuant to Article III of chapter 46 of this Code.
(Ord. No. 95-813, § 1, 7-12-95; Ord. No. 2010-834, § 5, 10-27-2010)

Sec. 45-327. Sale or lease of bicycles by dealers.

(a) It shall be unlawful for any dealer to sell a bicycle, bicycle side car, trailer or child carrier without providing a written statement to the purchaser advising of the terms of this division. The statement shall be in a form promulgated by the chief of police. Upon request, the chief of police shall provide a sample of the required form to a dealer. However, printing of distribution copies shall be at the dealer's expense.

(b) It shall be unlawful for any dealer to lease a bicycle to any person without providing a helmet for the use of each child who will operate or ride upon the bicycle or determining that each child who will operate or ride upon the bicycle has a helmet available. The dealer may impose an additional fee for use of the helmet if the dealer sells or leases a helmet to the bicycle lessee.
(Ord. No. 95-813, § 1, 7-12-95)

Sec. 45-328. Penalty.

(a) Any person who violates any provision of this division shall be guilty of a misdemeanor and upon conviction shall be fined an amount not

exceeding $50.00 upon first conviction and an amount not exceeding $100.00 upon the second and each subsequent conviction.

(b) The purpose of this division is to encourage the use of helmets. In keeping with that purpose, the municipal courts are urged to consider deferred dispositions under article 45.54 of the Texas Code of Criminal Procedure whenever the circumstances warrant deferred dispositions. Conditions of the deferral may include that the defendant, if financially able, has obtained a helmet and has agreed to make a contribution in support of the fund.
(Ord. No. 95-813, § 1, 7-12-95)

Sec. 45-329. Bicycle helmet fund.

(a) The bicycle helmet fund is hereby created. The fund shall accept donations of helmets and money to be used for the purchase of helmets. All monetary gifts to the fund shall constitute a trust that shall be deposited in the city's trust and agency account, which may be invested as provided in chapter 104 of the Texas Local Government Code.

(b) The fund shall be used exclusively for the purpose of providing bicycle helmets for the use of members of "very low income families" as defined in 24 Code of Federal Regulations, section 813.102, as computed for the city for purposes of section 8 of the United States Housing Act of 1937. The directors of the parks and recreation department and the Houston Health Department shall jointly administer the fund and shall promulgate rules and procedures for the distribution of helmets. Helmets shall be provided on a first-come-first-served basis to the extent of available supply.
(Ord. No. 95-813, § 1, 7-12-95; Ord. No. 2015-820, § 34, 8-26-2015)

Secs. 45-330—45-335. Reserved.

ARTICLE XIII. RESTRICTED ACCESS LANES

Sec. 45-336. Definitions.

As used in this article, the following terms shall have meanings as set out below:

(1) *Authorized vehicle* shall mean a vehicle authorized by the commission to enter and to use a restricted access lane, which vehicle has affixed to it, in the place prescribed by the commission, a valid and unexpired identifying sticker or emblem issued by the commission, or by the authority of the commission, specifically for such vehicle.

(2) *Commission* shall mean the Texas Transportation Commission.

(3) *Restricted access lane* shall mean that portion of any highway facilities located in, upon or over a controlled access highway:

a. Which is restricted to one-way operation by the commission;

b. To which access is allowed only for certain vehicles providing mass transportation services, as prescribed by the commission;

c. To which access is allowed only at certain points designated by the commission; and

d. Which is marked and regulated by official signs and traffic-control devices erected by the commission or by its authority.

(Code 1968, § 46-401; Ord. No. 79-1214, § 1, 7-25-79; Memorandum of 10-15-2015, § 2)

Sec. 45-337. Use.

It shall be unlawful for any person, other than a driver or passenger within an authorized vehicle, to operate any vehicle in or upon a restricted access lane, or to enter a restricted access lane otherwise, during the hours that access to such lane is restricted by the commission.
(Code 1968, § 46-402; Ord. No. 79-1214, § 1, 7-25-79)

Secs. 45-338—45-340. Reserved.

ARTICLE XIV. MICROMOBILITY DEVICES AND OFF-HIGHWAY VEHICLES

Sec. 45-341. Operation of micromobility devices; off-highway vehicles prohibited at certain times.

(a) It shall be unlawful for any person to operate a micromobility device or off-highway vehicle on any public roadway, street, alley, sidewalk, trail, or city park within the city limits between the hours of 8:00 p.m. and 4:00 a.m. the following day, unless expressly authorized by state law.

(b) It shall be unlawful for the parent or guardian of a minor to allow or permit the minor to operate a micromobility device on any public roadway, street, alley, sidewalk, trail, or city park within the city limits between the hours of 8:00 p.m. and 4:00 a.m. the following day.

(c) It shall be unlawful for any person to place, erect, operate, or maintain a temporary structure for the purpose of renting or facilitating the rental of a micromobility device within the city limits.

(d) It shall be unlawful for any person to rent or offer to rent a micromobility device or an off-highway vehicle within the city limits between the hours of 8:00 p.m. and 4:00 a.m. the following day.

(e) It is a defense to prosecution under this section if a person presents evidence of being a qualified individual with a disability pursuant to the Americans with Disabilities Act of 1990 (42 U.S.C. Sections 12131 and 12132).

(f) The traffic engineer is authorized to install signage in high-traffic areas to provide public notice of the curfew and prohibition on micromobility devices and off-highway vehicles.

(g) It is an affirmative defense to prosecution under this section that between the hours of 8:00 p.m. and 4:00 a.m., the person was:

(1) Operating a micromobility device as a direct means of transportation to or from the individual's school or place of employment;

(2) Operating a micromobility device when reasonably necessary to respond to a personal or family emergency, or to obtain emergency medical care or other urgent assistance;

(3) Operating a micromobility device as law enforcement, fire, or emergency medical personnel, or as a city employee in the performance of official duties; or

(4) Operating a micromobility device during a special event or activity expressly permitted or authorized by the city, provided such use complies with all conditions of permit authorization. The provisions of this section do not restrict a person operating or parking a micromobility devices as part of a parade or special event permitted under chapter 25 of this Code provided such use is expressly authorized in the special event or parade permit and complies with all conditions established by the director of the Mayor's Office of Special Events to ensure public safety and minimize disruption to pedestrian and vehicular traffic.

(Ord. No. 2025-971, § 8, 11-19-2025)

Sec. 45-342. Offense; penalty.

(a) Any person who violates any provision of this article shall be guilty of an offense and, upon conviction thereof, shall be punished as provided in section 1-6 of this Code.

(b) Each violation of this article shall constitute and be punishable as a separate offense.

(Ord. No. 2025-971, § 9, 11-19-2025)

Sec. 45-343. Micromobility device impoundment and removal.

(a) The city may impound all micromobility devices that are operated or parked in violation of state law, city ordinances, the motorized device curfew established in this chapter, or any other applicable provisions of this Code.

(b) Every micromobility device that is impounded may be redeemed and released only upon payment of a fee as set forth in the city's fee schedule. Every micromobility device that is

impounded may be redeemed and released only upon payment of removal, storage, and redemption fees established in the city's fee schedule. Such fees may be adjusted periodically by the finance department and approved by city council in accordance with applicable administrative procedures.

(c) If an impounded micromobility device remains in the possession of the city for 30 calendar days following notice of impoundment, it shall become and remain the property of the city.

(d) The police department may remove any micromobility devices from a public street, sidewalk, or public place when probable cause exists to believe that the micromobility device is being operated or used in violation of this chapter, including curfew violations. The administration and regulatory affairs department shall assist the police department with coordinating the removal of micromobility devices operated or used in violation of this chapter.

(e) Any person whose micromobility device has been removed without the consent of the owner or operator may request a hearing to determine whether probable cause existed for the removal. Hearings under this section shall be before a municipal court judge.

(f) A person who wishes to request a hearing hereunder shall deliver a written request for the hearing to the clerk of the municipal courts not later than the 14th day after the date the micromobility device was placed in a secured facility. A person who fails to deliver the request within the specified time period waives the right to the hearing.

(g) The written request must contain the following information:

(1) The name, address, and telephone number of the owner and operator of the micromobility devices;

(2) The date and location from which the micromobility devices was removed;

(3) The name of the police officer who authorized the removal of the micromobility device; and

(4) The name, address, and telephone number of the secured facility to which the micromobility device was removed.

(h) Upon receipt of a complete and timely filed hearing request, the clerk of the municipal courts shall schedule a hearing to occur as soon as practicable; provided, however, all hearings conducted pursuant to this section shall be held within 21 days after the date the hearing request was received.

(i) The court shall notify the owner or operator of the micromobility device and the police officer who authorized the removal of the micromobility device of the date, time, and place of the hearing. The sole issue to be determined in a hearing under this section is whether probable cause existed for the removal of the vehicle.

(j) The court shall make written findings of facts and conclusions of law regarding the issues in the hearing. If the court determines that probable cause existed for the removal of the micromobility devices, the owner or operator shall pay the costs of removing and storing the device prior to the release of the micromobility device.

(k) If the court determines that probable cause did not exist for the removal of the micromobility devices, the vehicle shall be ordered released without the payment of any costs for removing and storing the micromobility devices. If the owner or operator paid removal and storage costs before the hearing and the court determines that probable cause did not exist for the removal and storing of the micromobility devices, the city shall fully reimburse the owner or operator.

(l) The provisions of this section shall be cumulative of all other enforcement powers granted by this chapter and available to the city. (Ord. No. 2025-971, § 10, 11-19-2025)

Secs. 45-344—45-360. Reserved.

ARTICLE XV. NEIGHBORHOOD TRAFFIC MANAGEMENT PROGRAM*

DIVISION 1. GENERALLY

Sec. 45-361. Definitions.

As used in this article, the following words and terms shall have the meanings ascribed to them in this section unless the context of their usage clearly indicates a different meaning:

Applicant means one or more property owners or residents within a neighborhood area, a duly authorized representative of a neighborhood association or the director who makes a request for the construction of a project.

Applicant's priority area means the specific location(s) or street(s) within the neighborhood area designated by the applicant.

Designated street means that portion of a particular street within the right-of-way of which a device is proposed to be constructed under this article. Designated streets may include the rights-of-way of local or minor collector streets, but may not include any portion of a major collector street or a major thoroughfare.

Device means a traffic calming device, consisting of the physical structure or other improvement constructed, placed or located, whether on a temporary or a permanent basis, upon a designated street pursuant to this article.

Director means the Director of Houston Public Works or the traffic engineer or any other person designated by the said director to perform the director's duties under this article.

Interdepartmental review committee means a committee consisting of one representative each of the fire department, police department, department of planning and development, solid waste management department, and Houston Public Works.

Install or *installation* means the permanent placement of a device following approval by final action of city council as required pursuant to section 45-377 or 45-396 of this Code. Install or installation does not include the temporary placement of a device for test or evaluation purposes.

Local street has the meaning ascribed in section 42-1 of this Code.

Major collector street means a public street that accumulates traffic from local streets and minor collector streets for distribution to a major thoroughfare.

Major thoroughfare has the meaning ascribed in section 42-1 of this Code.

Minor collector street means a public street that accumulates traffic from local streets for distribution into a major thoroughfare or a major collector street.

Neighborhood area means any contiguous area within the city that generally has as its boundaries: (i) the interior right-of-way line of any major thoroughfare or major collector street; (ii) the interior boundary or right-of-way line of any railroad line, utility or pipeline corridor, river or waterway (not including drainage or flood control ditches not being traversed by other streets within the general locale); (iii) the corporate limits of the city; or (iv) any combination of one or more of the foregoing boundaries. A neighborhood area

*__Editor's note__—Ord. No. 2015-587, § 2(Exh. A), adopted June 17, 2015, amended Ch. 45, Article XV, in its entirety to read as herein set out. Formerly said article pertained to similar subject matter and Ord. No. 95-1070, § 1, 10-4-95; Ord. No. 98-334, § 11, 4-29-98; Ord. No. 98-1162, § 1, 12-9-98; Ord. No. 07-464, § 19, 4-11-07; Ord. No. 2010-394, §§ 2—19, 5-19-2010; Ord. No. 2011-1168, § 13, 12-14-2011.

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may consist of one or more subdivisions and shall include only those properties within and fronting on or taking their only access from a street within the bounded area.

Neighborhood association means any homeowners' association, property owners' group or civic association, whether incorporated or not, whose membership includes property owners and/or residents of a neighborhood area.

Neighborhood traffic committee means a committee, consisting of not more than five members drawn from the residents or property owners within a neighborhood area, selected as provided in section 45-371 of this Code, to assist in the processing of a request for a project.

Neighborhood traffic management program means the entirety of the processes and procedures as described in this article whereby one or more devices may be placed upon a designated street in a neighborhood area.

Project means the construction of one or more devices upon a designated street(s) in the neighborhood area, as may be amended.

Property owner means the owner(s) of any tract or parcel of real property within a neighborhood area.

Resident means any person who resides in or owns or operates a home or business upon any tract or parcel of real property within a neighborhood area.

Speed control program means one or more projects intended to address speeding problems by installation of speed cushions within a neighborhood area.

Volume control program means one or more projects intended to address cut-through traffic and speeding problems within a neighborhood area.

(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015; Ord. No. 2018-11, §§ 31, 49, 1-10-2018; Ord. No. 2024-420, § 2, 6-5-2024)

Sec. 45-362. Purpose; regulations.

(a) The purpose of this article is to establish the procedures governing the application for and review, approval, financing and construction of projects to minimize or eliminate traffic congestion, cut-through traffic, speeding or other traffic-related problems in a neighborhood area. In accordance with the provisions of this article, the director shall prepare and make available to the public appropriate forms to request a project.

(b) Consistent with the other provisions of this article and state law, the director may promulgate request forms and may promulgate rules and regulations for the implementation of this article, including without limitation rules, policies, procedures and regulations establishing the criteria for the modification and partial approval/denial of projects, the neighborhood area and concept plans, resubmittal of projects, phased implementation of concept plans that the director approved but were not implemented in their entirety due to funding availability, and notice requirements for amended concept plans and projects completed in phases due to funding availability. A copy of the rules and regulations shall be maintained for public inspection in the offices of the said director, and published on the city web site.

(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015; Ord. No. 2024-420, § 3, 6-5-2024)

Sec. 45-363. Construction.

The director shall be responsible for the construction, or shall direct and oversee the construction by a private contractor or contractors, of approved projects. Approval under this article shall not excuse the applicant from obtaining any other permit or authorization required by law to perform the work.

(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015)

Sec. 45-364. Removal.

(a) Nothing contained in this article shall be construed to prohibit the city from removing any device or portion thereof. If, and only if, the device to be removed is a gate, then the removal must first be authorized by the city council.

(b) The director shall maintain an accurate record of each approved project.
(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015)

Sec. 45-365. Limitation on action of city.

The approval, installation and maintenance of a project and associated devices, as provided for by this article, shall never be construed to cause an abandonment or relinquishment of any street or public property or to authorize the installation of a device upon any right-of-way not under the control of the city. The installation of a project and associated devices that involves the closure of a street to vehicular traffic shall require a public hearing by city council and approval by a majority vote.
(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015)

Sec. 45-366. Coordination with city council offices.

Notice of the progress of the request under this article shall be given to each district council member whose district includes any part of the neighborhood area and to any other city council member who so requests, including, but not limited to, notice of each public meeting, the concept plan, the traffic study and the proposed placement of any device.
(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015)

Sec. 45-367. Request for projects.

(a) A request for a project must be initiated by an applicant. Multiple requests from the same or similar neighborhood areas may be consolidated into and considered as a single request, at the director's option.

(b) The director may, from time to time, prepare and submit for approval by motion of the city council revisions to the schedule of fees that shall be paid by an applicant for a project. Payment of any applicable fees stated for this provision in the city fee schedule when due is a condition of the processing of a request under this article.

(c) The director may adjust the boundaries of a neighborhood area at any stage of the neighborhood traffic management process upon the consideration of information including, but not limited to, public input from residents or property owners in the neighborhood area, amount and availability of public assistance or funding (including Council District Service Funds) or funding from private funding sources, or findings made by the director as a result of the presence of special conditions affecting the neighborhood area.
(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015; Ord. No. 2024-420, § 4, 6-5-2024)

Sec. 45-368. Preliminary review process.

(a) Each request for a project shall be made or forwarded by the applicant to the director upon a form promulgated for that purpose by the director and shall include, at a minimum, the following:

(1) A description or definition of the proposed neighborhood area;

(2) A list containing the names, addresses and telephone numbers of the individuals comprising the applicant or, in the case of a request from a neighborhood association, the name, address and telephone number of the duly authorized representative of the neighborhood association.

(3) A general description of the traffic problem or condition to be remedied;

(4) The type of program, speed control or volume control, being sought;

(5) The applicant's priority area where the speed control or volume control is being sought;

(6) Special conditions concerning the proposed neighborhood area, including, but not limited to, such factors as the location and nature of businesses, schools, parks, churches or other non-residential traffic generators within or in close proximity to the neighborhood area;

(7) Written evidence of neighborhood or community support for the project from residents and property owners within the affected neighborhood area;

(8) Whether public funding or assistance is requested for the project; and

(9) Any other information reasonably required by rule or regulation of the director in order to make any determination specified under this article.

(b) Each request shall initially be reviewed for completeness. If determined to be complete, the request shall be considered to have been filed when received in the director's offices and shall be acted upon as further provided in this article. If determined to be incomplete, the request shall be returned to the applicant with written notice of the deficiencies.

(c) Each request that is properly filed shall be reviewed and evaluated in accordance with section 45-369 of this Code. If the director determines that the request does not merit further consideration, based upon the criteria set forth in section 45-369(1) through (5) of this Code, then the director shall so notify the applicant in writing and, wherever practicable to do so, shall provide any suggested modifications to the request that might cause it to receive more favorable consideration if resubmitted. For requests that the director determines merit further consideration under the criteria of section 45-369(1) through (5) of this Code, the applicant shall be so advised in writing and shall also be advised:

(1) If no public funding or assistance has been requested, that the project is eligible to proceed under division 2 or division 3 of this article, as applicable; or

(2) If public funding or assistance has been requested, whether or not the director has given preliminary approval for consideration of the project on a publicly funded basis under the criteria of section 45-369(6) of this Code, and:

a. If so, that the project is eligible to proceed under division 2 or division 3 of this article, as applicable; or

b. If not, that the project will not be further considered under division 2 or division 3 of this article, as applicable, unless the applicant withdraws the request for public assistance or funding.

(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015; Ord. No. 2024-420, § 5, 6-5-2024)

Sec. 45-369. Review criteria.

The director shall evaluate and prioritize all requests pursuant to the following criteria:

(1) Whether the request identifies a problem that could be remedied under this article;

(2) Whether the request identifies a problem that could readily be addressed through the installation of a type of traffic control device that may be installed without approval under this article;

(3) Whether special conditions concerning the neighborhood area, including, but not limited to, the location and nature of businesses, schools, parks, churches or other non-residential traffic generators within or in close proximity to the neighborhood area, may support approval of the project;

(4) Whether there is public support for the project as evidencing that the project will enhance and promote the public health, safety and welfare;

(5) Whether existing evidence, studies, data or reports regarding the severity of the existing problem, if any, merit the project;

(6) For requests that include a public funding component, the amount of public funds available for planning of projects, the number of outstanding requests for publicly funded projects, the amount of public funds available for the project, and the apparent merit of the request as compared to that of other requests and established city priorities; and

(7) For requests that include a private funding component, the amount of private funds available for the planning of the project and the project.

(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015; Ord. No. 2024-420, § 6, 6-5-2024)

Sec. 45-370. Reserved.

DIVISION 2. VOLUME CONTROL PROGRAM

Sec. 45-371. Initial public meeting; neighborhood traffic committee; citizen comments.

(a) Not later than 180 days following the receipt of notification by the director that a project has received preliminary approval for further consideration, the applicant shall notify the director of a suitable location for the holding of a public meeting within the neighborhood area for the purpose of receiving public comments on the project. If the applicant fails to provide notice of a suitable location for the holding of a public meeting within the prescribed time, the applicant shall be notified that the request for a project has been closed. Any applicant who desires to renew a request for a project that has been closed due to the applicant's failure to notify the director of a suitable location for the holding of an initial public meeting shall be required to provide the director with a new application containing the minimum requisites pursuant to section 45-368(a) of this Code.

(b) Following receipt by the director of the information required by subsection (a) above, a written notice, in a form approved by the director, shall be mailed to all property owners and residents within one-half mile of the proposed device setting forth the date, time and location of a public meeting to receive public input on a proposed project. The notice shall specify the location and general nature of the proposed project and shall solicit public comments on the project. The director shall select the method(s) utilized to identify the property owners and residents to be notified, with due regard to the cost, time and accuracy of the method(s) to be utilized.

(c) Each notice shall be effective when deposited in the U.S. mail, postage prepaid, addressed to the property owner, resident or representative of a neighborhood association. Failure of any person to receive actual notice of the hearing required by this section shall not affect the validity of any action taken by the city in connection with the project.

(d) At the initial public meeting:

(1) A neighborhood traffic committee shall be selected by those present;

(2) Public comments shall be received on the proposed project; and

(3) The director shall ensure that necessary provisions are made for the receipt of written comments and public input on the proposed project. Written comments concerning the project shall not be considered in evaluating any project unless received in the offices of the director or such other place as the director may specify within 14 days after the meeting.

(e) Persons in attendance may register, and the names and addresses of those who do register shall be delivered to the director and added to the notification list for any future meetings held in connection with a project.

(f) The initial public meeting shall be conducted by the director, and all requirements and expenses relating to its being conducted shall be borne by the city for requests that receive preliminary approval for further consideration as a publicly funded project pursuant to section 45-368(c)(2) of this Code. For all other requests, the initial public meeting shall be conducted in all respects at the expense of the applicant, and the director may delegate to the applicant the accomplishment of any one or more of the requirements of this section in accordance with rules and regulations promulgated for that purpose by the director. The applicant shall provide to the director evidence that any requirements so delegated have been fully and properly carried out.
(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015)

Sec. 45-372. Traffic studies.

Upon receipt of all public comments and information required by section 45-371, the director shall cause or authorize to be conducted a traffic study to complete the preliminary eligibility review of a proposed project. Unless the

director has given preliminary approval for consideration of the project on a publicly funded basis, the director shall determine, and notify the applicant concerning, the scope and type of traffic study to be conducted by the applicant and indicate any additional information required by the director to facilitate review of the proposed project.
(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015)

Sec. 45-373. Completion of staff review.

The director shall determine, based upon all available information regarding a project, including, without limitation, any traffic study prepared in accordance with section 45-372 of this Code, whether the project is eligible for further consideration and processing in accordance with section 45-374 of this Code. The director shall consider the impact of the following on selected streets within the neighborhood area in making a determination whether a project is eligible for further consideration and processing in accordance with section 45-374 of this Code:

(1) Whether the estimated percentage of cut-through traffic on a street is equal to or greater than 20% of the observed daily traffic volume, or the observed daily volume is equal to or greater than 750 vehicles per day;

(2) Whether at least 15% of observed vehicle speeds on a street are equal to or in excess of the posted speed limit plus three miles per hour or, where there is no posted speed limit, the authorized speed limit pursuant to section 45-91(a)(1) of this Code plus three miles per hour;

(3) Whether at least 8% of the total daily traffic volume on a street consists of trucks having more than two axles; and

(4) The presence of any additional special conditions or safety concerns within the approved neighborhood area as determined by the director.

Written notice of the director's determination shall be given to the applicant. Absent demonstrable evidence of a significant change in traffic volume or traffic patterns in the intervening period which would in the director's reasonable professional judgment prompt an earlier review, any project declared ineligible for further consideration pursuant to this section shall not be eligible for reconsideration for the same or a similar project for a period of three years.
(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015)

Sec. 45-374. Concept plan.

The director shall prepare a concept plan for each project approved pursuant to section 45-373, taking into account all traffic studies, public comments, and other data and factors developed in accordance with the requirements of this article. Each concept plan shall be reviewed by the neighborhood traffic committee and approved by the interdepartmental review committee and the city attorney before being submitted for public comments, as hereinafter provided. No concept plan or project shall be approved by the interdepartmental review committee if it is found that:

(1) Pedestrian traffic or access to a neighborhood area would be denied or materially impeded;

(2) General mobility of traffic in the neighborhood area, the surrounding community, or both, as determined by the city's traffic engineer, would be unreasonably adversely affected to a material extent;

(3) Based upon review of any reasonably suitable alternative methods identified by the interdepartmental review committee to resolve the problem, that the proposed resolution is not the least restrictive device that could reasonably be expected to substantially mitigate or resolve the problem;

(4) The project would prevent any owner of property from having direct vehicular access to at least one abutting street in the city; or

(5) The project would be likely to significantly delay ingress to or egress from neighborhoods by emergency service vehicles.

The city attorney shall approve the concept plan unless he determines that its implementa-

tion would be contrary to local, state or federal laws or regulations. Written notice of the interdepartmental review committee and the city attorney's determination shall be given to the applicant. If either the city attorney or interdepartmental review committee deny the concept plan, the director may, in the director's reasonable professional judgment, develop a new concept plan(s), and the provisions of this section 45-374 shall be applicable to the new concept plan(s). Written notice of the interdepartmental review committee and the city attorney's determination regarding the subsequent concept plan(s) shall be given to the applicant. Absent demonstrable evidence of a significant change in traffic volume or traffic patterns in the intervening period which would in the director's reasonable professional judgment prompt an earlier review, the same or a similar project that was denied by the city attorney or interdepartmental review committee shall not be eligible for reconsideration for a period of three years.
(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015; Ord. No. 2024-420, § 7, 6-5-2024)

Sec. 45-375. Second public meeting.

(a) Upon approval of the concept plan, a second public meeting shall be held to gather public comments. Notice of the meeting shall be given in the same manner and to the same parties notified of the initial public meeting, plus those persons who registered their names and addresses at the initial public meeting, and shall contain a description of the concept plan and a comment card for use by members of the public to address public safety, convenience and traffic issues and to express either support for or opposition to the concept plan. Unless the director has given preliminary approval for consideration of the project on a publicly funded basis, the director shall require that all expenses of conducting the second public meeting shall be borne by the applicant, and the provisions of section 45-371(f) shall also be applicable to the second public meeting.

(b) At the second public meeting, comments regarding the concept plan may be made by any interested party. Written comments concerning the plan shall not be considered unless received in the offices of the director or such other place as the director may specify within 14 days after the meeting.
(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015)

Sec. 45-376. Final review and ranking; recommendation by director.

(a) Following the close of the public comment period provided in section 45-375(b) above, the director shall evaluate each concept plan, and shall compare it to all other unimplemented concept plans that have reached the same level in the approval process. The director shall either (i) disapprove the concept plan and its underlying request and so notify the applicant in writing; or (ii) approve the concept plan, as may have been modified by the director, in whole or in part, for further consideration and so notify the applicant in writing. The director shall give those concept plans receiving approval a priority ranking that shall be used to establish the order in which the various approved projects will be considered for implementation. If the director disapproves the concept plan, and absent demonstrable evidence of a significant change in traffic volume or traffic patterns in the intervening period which would in the director's reasonable professional judgment prompt an earlier review, the same or a similar project shall not be eligible for reconsideration for a period of three years.

(b) Each concept plan must be tested with a temporary device and receive a recommendation of approval from the director before being submitted to city council for final approval. Unless the project has been approved by the director for public funding assistance, the temporary device shall be placed at the applicant's sole expense. Each concept plan whose priority ranking is sufficient to indicate that public funding will be available to complete the project, if approved, during the current or next succeeding fiscal year and each concept plan for a project to be financed from private funding sources shall receive approval from the director for the construction of a temporary device, in accordance with its priority ranking, provided that the director may approve a temporary device for any ranked project without regard to its priority ranking in

order to reflect special or changed circumstances, availability of Council District Service Funds, or in order to avoid delay in implementing worthy projects that have not been approved for public funding. No temporary device may be placed without the approval of the director. Temporary devices shall be in place for a testing period of not less than 90 days, provided that the director shall immediately remove a temporary device that is determined to be a threat to public health, safety or welfare.

(c) Upon authorization of placement of a temporary device:

(1) The device, with appropriate signs, shall be constructed within the neighborhood area in accordance with the concept plan;

(2) City staff, the neighborhood traffic committee and the interdepartmental review committee shall monitor and review traffic impact and any comments received regarding the temporary device during the testing period; and

(3) At least 90 but no more than 210 days following the placement of the temporary device, to receive public comments regarding the temporary device, a third public meeting shall be called and conducted, in the same manner as for the second public meeting with written notice to: the same parties notified as for the second public meeting, those additional persons who registered their names and addresses at the second public meeting, and all property owners and residents within one-half mile of the location where the temporary device was placed. The provisions of section 45-371(f) of this Code shall also be applicable to the third public meeting. Written notice shall also specify how public comments may be received by city council prior to its consideration of the project and materially modified the concept plan since the second public meeting or if the temporary device was placed at a location materially different from the location described in the concept plan published with the notice for the second public meeting.

(d) Upon the conclusion of the public meeting and expiration of the 14 day comment period following the third public meeting, the director shall review all of the available information regarding the temporary device, including timely received public comments, and either (i) remove or cause to be removed the temporary device and deny all or part of the concept plan or (ii) forward his recommendation for final approval of all or part of the concept plan to city council, during which time the temporary device may remain in place. Written notice of the director's action shall be given to the applicant. If the director disapproves the concept plan, in whole or in part, and absent demonstrable evidence of a significant change in traffic volume or traffic patterns in the intervening period which would in the director's reasonable professional judgment prompt an earlier review, the concept plan or disapproved portions thereof may not be resubmitted as any part of a new request for the same or a similar project for a period of three years. Notwithstanding anything to the contrary herein, the three-year prohibition on resubmitting a new request for the same or similar project shall not apply to a project or concept plan, including any portion thereof, for which the director modified, approved (in whole or in part), or disapproved solely due to funding availability.

(e) If a project is proposed to be constructed by the city or a city contractor, the director shall prepare and present to city council as part of his recommendation under subsection (d) above a preliminary cost estimate and time line for the project, which shall identify the source of funds to be used to finance the project and the time and priority in which the city would construct the project if the project is approved by city council. (Ord. No. 2015-587, § 2(Exh. A), 6-17-2015; Ord. No. 2024-420, § 8, 6-5-2024)

Sec. 45-377. Final action by city council.

(a) All projects recommended for approval by the director as provided in section 45-376(d) of this Code shall be forwarded to city council accompanied by a summary setting forth in relevant detail the information relied upon in

formulating the recommendation, including copies of all timely received written public comments provided as a result of a request for a project.

On the request of affected residents and property owners within one-half mile of the proposed device, city council shall hold a public meeting to consider the implementation of a device.

(b) The city council shall, by motion, approve or deny the request for the project.

(c) A decision by city council to approve or deny a request shall be final and shall not be subject to further appeal or rehearing. If the city council denies the request, the applicant shall not be permitted to file a new request for the same or a similar project for a period of three years.
(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015)

Secs. 45-378—45-390. Reserved.

DIVISION 3. SPEED CONTROL PROGRAM

Sec. 45-391. Traffic studies.

The director shall cause or authorize to be conducted a traffic study to complete the preliminary eligibility review of a proposed project on a minor collector street. Unless the director has given preliminary approval for consideration of the project on a publicly funded basis, the director shall determine, and notify the applicant concerning, the scope and type of traffic study to be conducted by the applicant and indicate any additional information required by the director to facilitate review of the proposed project.
(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015; Ord. No. 2016-408, § 2, 5-25-2016)

Sec. 45-392. Completion of staff review.

(a) All proposed projects on local streets shall be eligible for further consideration and processing in accordance with section 45-393 of this Code.

(b) The director shall determine, based upon all available information regarding a project on a minor collector street, including, without limitation, any traffic study prepared in accordance with section 45-391 of this Code, whether the project is eligible for further consideration and processing in accordance with section 45-393 of this Code. The director shall consider the impact of the following on selected minor collector streets within the neighborhood area in making a determination whether a project is eligible for further consideration and processing in accordance with section 45-393 of this Code:

(1) Whether at least 15% of observed vehicle speeds on a street are equal to or in excess of the posted speed limit plus three miles per hour or, where there is no posted speed limit, the authorized speed limit pursuant to section 45-91(a)(1) of this Code plus three miles per hour; and

(2) The presence of any additional special conditions or safety concerns within the approved neighborhood area as determined by the director.

Written notice of the director's determination shall be given to the applicant. Absent demonstrable evidence of a significant change in traffic speeds in the intervening period which would in the director's reasonable professional judgment prompt an earlier review, any project declared ineligible for further consideration pursuant to this section shall not be eligible for reconsideration for the same or a similar project for a period of three years.
(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015; Ord. No. 2016-408, § 2, 5-25-2016)

Sec. 45-393. Concept plan.

The director shall prepare a concept plan for each project deemed eligible pursuant to section 45-392 of this Code, taking into account all traffic studies and other data and factors developed in accordance with the requirements of this article. Each concept plan shall be reviewed and approved by the fire department before being submitted for public comments.

In the director's reasonable professional judgment or due to the availability of funding, the director may modify a concept plan or project at any stage of the neighborhood traffic management process prior to the submission of an

agenda item for the project to City Council provided: (i) the fire department reviews and approves the materially modified concept plan, (ii)?residents within one-half mile of the proposed device as described in the materially modified concept plan receive sufficient notice to enable City Council to receive and consider public comments, and (iii) the materially modified plan is tested with a temporary device in accordance with section 45-395(b).
(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015; Ord. No. 2016-408, § 2, 5-25-2016; Ord. No. 2024-420, § 9, 6-5-2024)

Sec. 45-394. Public notice.

(a) Upon approval of the concept plan, written notice, in a form approved by the director, shall be mailed to all property owners and residents within one-half mile of the proposed device. Written notice shall contain a description of the concept plan and a comment card for use by members of the public to address public safety, convenience and traffic issues and to express either support for or opposition to the concept plan. Written notice shall also specify how public comments may be received by city council prior to its consideration of the project.

(b) Each notice shall be effective when deposited in the U.S. mail, postage prepaid, addressed to the property owner, resident or representative of a neighborhood association. Failure of any person to receive actual notice of the concept plan shall not affect the validity of any action taken by the city in connection with the project.

(c) On the request of affected residents and property owners within one-half mile of the proposed device, the director shall hold a public meeting to consider implementation of a device.

(d) Each district council member whose district includes any part of the neighborhood area and any other city council member who so requests shall be notified pursuant to section 45-366 of this Code upon approval of the concept plan.
(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015; Ord. No. 2016-408, § 2, 5-25-2016)

Sec. 45-395. Final review and ranking; recommendation by director.

(a) The director shall evaluate the comments received and modify the concept plan as needed. The director shall have the discretion to approve the concept plan in part, in the director's reasonable professional judgment, such as approving only the portion of the concept plan for which funding, whether public funding (including Council District Service Funds) or private funding, is available. The director shall either (i) disapprove the concept plan and its underlying request and so notify the applicant in writing; or (ii) approve the concept plan, as may have been modified by the director, in whole or in part, for implementation and so notify the applicant in writing. The director shall give the approved concept plan a priority ranking that shall be used to establish the order in which the various approved projects will be considered for implementation. If the director disapproves the concept plan, and absent demonstrable evidence of a significant change in traffic speeds in the intervening period which would in the director's reasonable professional judgment prompt an earlier review, the same or a similar project shall not be eligible for reconsideration for a period of three years.

(b) Each concept plan must be tested with a temporary device and receive a recommendation of approval from the director before being submitted to city council for final approval. Unless the project has been approved by the director for public funding assistance, the temporary device shall be placed at the applicant's sole expense. Each concept plan whose priority ranking is sufficient to indicate that public funding will be available to complete the project, if approved, during the current or next succeeding fiscal year and each concept plan for a project to be financed from private funding sources shall receive approval from the director for the construction of a temporary device, in accordance with its priority ranking, provided that the director may approve a temporary device for any ranked project without regard to its priority ranking in order to reflect special or changed circumstances, availability of Council District Service Funds, or in order to avoid delay in implementing worthy

projects that have not been approved for public funding. No temporary device may be placed without the approval of the director. Temporary devices shall be in place for a testing period of not less than 90 days, provided that the director shall immediately remove a temporary device that is determined to be a threat to public health, safety or welfare. Upon authorization of placement of a temporary device, the device, with appropriate signs, shall be constructed within the neighborhood area in accordance with the approved concept plan.

The director shall review all of the available information regarding the temporary device, including public comments, and either (i) remove or cause to be removed the temporary device and deny all or part of the concept plan or (ii) forward his recommendation for final approval of all or part of the concept plan to city council, during which time the temporary device may remain in place. Written notice of the director's action shall be given to the applicant. If the director disapproves the concept plan, in whole or in part, and absent demonstrable evidence of a significant change in traffic volume or traffic patterns in the intervening period which would in the director's reasonable professional judgment prompt an earlier review, the concept plan or disapproved portions thereof may not be resubmitted as any part of a new request for the same or a similar project for a period of three years. Notwithstanding anything to the contrary herein, the three-year prohibition on resubmitting a new request for the same or similar project shall not apply to a project or concept plan, including any portion thereof, for which the director modified, approved (in whole or in part), or disapproved solely due to funding availability.
(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015; Ord. No. 2016-408, § 2, 5-25-2016; Ord. No. 2024-420, § 10, 6-5-2024)

Sec. 45-396. Final action by city council.

(a) All projects recommended for approval by the director as provided in section 45-395 of this Code shall be forwarded to city council accompanied by a summary setting forth in relevant detail the information relied upon in formulating the recommendation, including copies of all timely received written public comments provided as a result of a request for a project.

(b) The city council shall, by motion, approve or deny the request for the project.

(c) A decision by city council to approve or deny a request shall be final and shall not be subject to further appeal or rehearing. If the city council denies the request, the applicant shall not be permitted to file a new request for the same or a similar project for a period of three years.
(Ord. No. 2015-587, § 2(Exh. A), 6-17-2015; Ord. No. 2016-408, § 2, 5-25-2016)

ARTICLE XVI. RESERVED*

Secs. 45-397—45-400. Reserved.

ARTICLE XVII. RESERVED†

Secs. 45-401—45-450. Reserved.

ARTICLE XVIII. CERTAIN TRAFFIC CONTROL DUTIES

DIVISION 1. GENERAL

Sec. 45-451. Definitions.

As used in this article, the following words and terms shall have the meanings ascribed to them in this section:

Off-duty, with respect to a peace officer, means any time other than while the officer is on-duty, as defined herein.

***Editor's note—**Ord. No. 07-464, § 18, adopted April 11, 2007, repealed Ch. 45, Art. XVI in its entirety. Formerly, said article pertained to adjudication of parking citations and derived from Ord. No. 95-81, § 1, 1-25-95 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation. The user's attention is also directed to Ch. 26 for similar provisions.

†**Editor's note—**Ord. No. 07-464, § 18, adopted April 11, 2007, repealed Ch. 45, Art. XVII, §§ 45-401—45-435 in its entirety. Formerly, said article pertained to residential parking permits and derived from Ord. No. 01-759, § 2, 8-15-01 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation. The user's attention is also directed to Ch. 26 for similar provisions.

On-duty, with respect to a peace officer, means while performing functions or activities during work hours assigned by the jurisdiction through which the officer holds his commission and for which the officer receives wages that are paid by that jurisdiction.

Peace officer shall mean a person holding a permanent peace officer license issued under chapter 1701, Texas Occupations Code.

Police chief means the Chief of the Houston Police Department.

Traffic control permit means a current and valid permit issued by the police chief pursuant to division 2 of this article to conduct traffic direction.

Traffic direction means any activity by which a peace officer directs vehicular or pedestrian traffic upon a street or upon other property situated in such proximity to a street that the activity affects the flow of vehicular or pedestrian traffic upon a street for the purpose of facilitating ingress or egress to a street in the city from another street, a private street, parking lot, parking garage or other private property. The activity includes, but is not limited to control of traffic by hand signals, whistle or verbal directions, or the assumption of control of the functions of an otherwise automated traffic signal light or control device. The term shall not include the direction of traffic in connection with any construction occurring within or upon a street by personnel employed for that purpose, as authorized by chapter 472, Texas Transportation Code.

(Ord. No. 04-798, § 2, 7-28-04)

Sec. 45-452. Prohibited conduct; defenses.

(a) During the hours between 6:00 a.m. and 7:00 p.m. on any Monday, Tuesday, Wednesday, Thursday, or Friday, other than a holiday observed by the closure of city offices, it shall be unlawful within the city:

(1) For any person other than a peace officer to conduct or engage in traffic direction; or

(2) For any off-duty peace officer to conduct or engage in traffic direction unless a traffic control permit for that activity has been issued pursuant to this article; or

(3) For any person to hire, employ or otherwise cause, suffer or permit any person to conduct or engage in traffic direction for or on behalf of such person, unless a traffic control permit has been issued pursuant to this article; or

(4) For any person to conduct or engage in, or hire, employ or otherwise cause, suffer or permit another to conduct or engage in, traffic direction in violation of the terms of a traffic control permit.

(b) It is an affirmative defense to prosecution under this section that:

(1) The actor is an on-duty peace officer of a jurisdiction other than the city and is conducting or engaging in traffic direction within the legally authorized territory of that jurisdiction;

(2) The actor is a peace officer of the city or another jurisdiction of this state and conducts or engages in traffic direction in an emergency situation, provided that the actor does not receive any additional compensation for conducting or engaging in the traffic direction; or

(3) The actor is a school crossing guard acting pursuant to chapter 541 of the Texas Transportation Code and is conducting or engaging in traffic direction for the protection of children going to or leaving school within a school crossing zone.

(4) The actor is otherwise expressly authorized by law to conduct or engage in traffic direction.

(Ord. No. 04-798, § 2, 7-28-04)

Sec. 45-453. Rules; forms; fees.

(a) The police chief, in consultation with the Director of Houston Public Works or his designee, may issue rules and regulations for the operation of this article and shall promulgate application and permit forms, which shall be approved by the city attorney prior to use.

(b) The fee for the issuance of a traffic control permit is stated for this provision in the city fee schedule. The director of administration and regulatory affairs may, from time to time, review the fee to determine whether it allows for full recovery of the city's costs, taking into account permit issuance and renewal costs, inspection and oversight services that may be required, and equipment and resource utilization, and if deemed necessary may prepare and submit for approval by motion of the city council a revision to the fee.

(c) The Director of Houston Public Works or his designee may also establish a fee for traffic engineer reviews required under this article, which fees may be reviewed and adjusted in the manner established in the preceding subsection. The current fee amounts shall be stated for this provision in the city fee schedule.

(d) Applicants must represent that only off-duty peace officers with appropriate training will perform traffic direction under the permit.
(Ord. No. 04-798, § 2, 7-28-04; Ord. No. 08-52, § 81, 1-16-08, eff. 1-26-08; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 45-454. Disposition of fees.

All fees generated under this article, except those for traffic engineering reviews, shall be allocated to the police special services fund administered by the police department.
(Ord. No. 04-798, § 2, 7-28-04)

Sec. 45-455. Hearings.

Any person who is aggrieved by the action of the police chief in failing to approve an application or in terminating a traffic control permit under this article shall be entitled to a hearing on the matter. The hearing shall be conducted by a hearing officer designated for that purpose by the police chief and shall be conducted informally but in a manner consistent with principles of due process. The hearing officer's decision on the matter shall be final.
(Ord. No. 04-798, § 2, 7-28-04)

Secs. 45-456—45-460. Reserved.

DIVISION 2. TRAFFIC CONTROL PERMITS

Sec. 45-461. Application for traffic control permit.

Any person who desires a traffic control permit may make application for the permit to the police department upon forms promulgated for that purpose as provided in section 45-453.
(Ord. No. 04-798, § 2, 7-28-04)

Sec. 45-462. Traffic engineering review.

All applications for a traffic control permit shall be reviewed by the traffic engineer. The rules established pursuant to section 45-453 of this Code for the consideration of applications for traffic control permits shall ensure that the provision of traffic direction requested by an applicant is consistent with sound principles of traffic engineering and public mobility. Consistent with those criteria, the traffic engineer may require that certain applications also include the traffic engineer's approval of a traffic engineering study to be provided by the applicant and prepared by a professional engineer acceptable to the traffic engineer.
(Ord. No. 04-798, § 2, 7-28-04)

Sec. 45-463. Action on application.

Following receipt of a complete application and any required fee, the police department shall cause the application to be reviewed for compliance with this article and any applicable rules, including review by the traffic engineer. The police department shall notify the applicant whether the application has been approved or denied. If it is denied, then the grounds for denial shall be articulated in the notice.
(Ord. No. 04-798, § 2, 7-28-04)

Sec. 45-464. Issuance of permit.

(a) Traffic control permits shall be issued on the basis of standard forms that are promulgated under section 45-453 of this Code.

(b) Without limitation of any other requirements, the permit form shall provide that no traffic direction shall be implemented until the permit holder has prepaid the city for all applicable fees.

(c) Traffic control permits shall contain a provision that allows the police chief or his designee to terminate a permit for failure of the permit holder to comply with any applicable term of the permit upon ten days' prior written notice.
(Ord. No. 04-798, § 2, 7-28-04)

Sec. 45-465. Services under permit.

(a) Services under traffic control permits shall be limited to traffic direction at the times and places described in the permit. Off-duty peace officers operating under a permit issued under this article shall at all times remain subject to the full supervision and control of the police chief or his designee but shall not function in any manner as employees or agents of the department or the city.

(b) All traffic control permits are subject to the continuing supervision of the police department to ensure public safety and efficient mobility on the streets and highways of the city. The police chief or his designee may suspend all services under a traffic control permit at any time if in the opinion of the police chief such action is required to ensure the safe and efficient movement of traffic on the streets and highways of the city. A determination by the police chief to suspend a traffic control permit shall be final.
(Ord. No. 04-798, § 2, 7-28-04)

Secs. 45-466—45-480. Reserved.

ARTICLE XIX. RESERVED*

Secs. 45-481—45-500. Reserved.

*__Editor's note—__Ord. No. 2011-748, § 1, adopted August 24, 2011, repealed Article XIX, §§ 45-481—45-487 in their entirety. Formerly said article pertained to photographic traffic signal enforcement systems and derived from Ord. No. 07-985, § 1, 8-29-04; Ord. No. 2010-846, §§ 19, 20, 11-3-2010.

ARTICLE XX. MINIMOTORBIKES

Sec. 45-501. Definitions.

As used in this article, the following terms shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

Alley is defined in section 39-1 of this Code.

Minimotorbike means a self-propelled vehicle that is equipped with an electric motor or internal combustion engine having a piston displacement of less than 50 cubic centimeters, is designed to propel itself with not more than two wheels in contact with the ground, has a seat or saddle for the use of the operator, is not designed for use on a highway, and is ineligible for a certificate of title under Chapter 501 of the Transportation Code. The term does not include:

(1) A golf cart, moped, motorcycle, or tractor;

(2) An electric bicycle or motor-driven cycle, as defined by Section 541.201 of the Transportation Code;

(3) A motorized mobility device, as defined by Section 542.009 of the Transportation Code;

(4) An electric personal assistive mobility device, as defined by Section 551.201 of the Transportation Code; or

(5) A neighborhood electric vehicle or a motor assisted scooter, as defined by Section 551.301of the Transportation Code.

Park means any portion of the city's park system, including any park owned by another entity and managed by the city.

Roadway is defined in section 32-222 of this Code.

Sidewalk is defined in section 32-222 of this Code.

Street is defined in section 10-48 (4) of this Code.
(Ord. No. 05-664, § 2, 5-24-05)

Sec. 45-502. Offense involving the operation of minimotorbikes on roadways and parks within the city.

(a) A person commits an offense if the person rides or operates, or as the parent or guardian of a child younger than 18 years of age permits the child to ride or operate, a minimotorbike on any roadway, street, alley, sidewalk or park within the city limits.

(b) An offense under this section is a misdemeanor punishable by a fine of not more than $500.00.
(Ord. No. 05-664, § 2, 5-24-05)

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Chapter 46

VEHICLES FOR HIRE*

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***Editor's note—**Ord. No. 2014-754, § 2(Exh. A), adopted August 6, 2014, amended Ch. 46 in its entirety to read as herein set out. Formerly, said chapter pertained to similar subject matter and derived from Ord. No. 2012-112, § 2(Exh. A), December 19, 2012.

Cross references—Ambulances, Ch. 4; ground transportation, § 9-51 et seq.; valet parking services, § 26-371 et seq.; conduct in buses generally, § 28-30; shelters for users of public transportation, § 40-200 et seq.; traffic, Ch. 45.

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ARTICLE I. IN GENERAL

DIVISION 1. VEHICLES FOR HIRE GENERALLY

Sec. 46-1. Definitions.

The following words, terms, and phrases, when used in this chapter, shall have the meanings assigned to them in this section, except where the context clearly indicates a different meaning:

Central business district means the area beginning at the intersection of the centerline of U.S. 59 and the centerline of I.H. 45; thence in a northwesterly and northerly direction along the centerline of I.H. 45 to its intersection with the centerline of I.H. 10; thence in an easterly direction along the centerline of I.H. 10 to its intersection with the centerline of U.S. 59; thence in a southwesterly direction along the centerline of U.S. 59 to its intersection with I.H. 45, the point of beginning.

Certificate of registration has the meaning assigned in section 46-451 of this Code.

Certification decal means and refers to a metal tag, decal, or placard for attachment on a vehicle for hire and is evidence that a permit or certificate of registration has been issued and an inspection performed by the director.

Compensation means any money, thing of value, payment, consideration, reward, tip, donation, gratuity, or profit paid to, accepted, or received by the driver or owner of any vehicle providing transportation for a person; whether paid upon solicitation, demand or contract, or voluntarily, or intended as a gratuity or donation. Reimbursement for the following is not compensation:

(1) Tolls;

(2) Vehicle operating costs in an amount that is equal to or less than the most current privately-owned vehicle mileage reimbursement rates established by the U.S. General Services Administration; and

(3) Parking costs at the shared destination.

Curb means the raised edge of the street, driveway, or other public or private way upon which a vehicle for hire is operating, provided that if no raised edge curbing exists, then it means the edge of the area that is paved for vehicular operation.

Customer service liaison refers to a representative made available to the city by the permittee for the purpose of coordinating with the city to resolve any passenger complaints concerning transportation services rendered by the permittee or registrant.

Director means the director of the department of administration and regulatory affairs or the director's designee.

Disability has the meaning assigned in section 17-2 of this Code.

Dispatch means the operation of a scheduling service by which prospective passengers request, by phone, by the internet or by any other voice, data or electronic communication, pre-arranged transportation services offered or provided for compensation from vehicles for hire and vehicles for hire are scheduled or routed via the relay of information from the scheduling service to the vehicle for hire by radio or data device, including but not limited to a device capable of any voice, data, or electronic communication.

Electric-drive vehicle means a vehicle having an electric motor that uses electricity as its primary or secondary source of propulsion.

For hire means providing, or offering to provide, a transportation service in exchange for compensation. The term expressly excludes ride sharing.

Licensee means any person who is the holder of a current and valid license issued pursuant to division 2 of this article authorizing that person to drive a specific class of vehicle for hire.

Metropolitan area means the metropolitan statistical area that includes the City of Houston, as defined by the United States Office of Management and Budget within the Executive Office of the President of the United States, as amended.

Mobile dispatch service has the meaning assigned in section 46-451 of this Code.

Permittee means any person, partnership, corporation, firm, joint venture, limited liability company, association, organization, and any other entity holding a permit issued pursuant to this chapter.

Place of business means a location where the city may send and the permittee shall accept all notices from the city.

Pre-arranged transportation service means scheduled vehicle for hire transportation services involving the issuance of a trip confirmation in advance of a vehicle for hire rendering transportation services to a prospective passenger.

Registrant has the meaning assigned in section 46-451 of this Code.

Ridesharing, when describing conduct, means the travelling of two or more persons by any mode of private passenger vehicle, including, but not limited to, carpooling, vanpooling, buspooling, to any location incidental to another purpose of the driver, for which compensation is not accepted, collected, encouraged, promoted, or requested.

Service animal has the meaning assigned in section 20-18 of this Code.

Vehicle for hire, when describing a class of vehicles, means a taxicab, pedicab, sightseeing and charter vehicle, chauffeured limousine, school vehicle, jitney, or low-speed shuttle used for the provision of transportation services for hire to the general public. The term expressly excludes vehicles operated or regulated by other government entities.

Wheelchair accessible vehicle means any wheelchair accessible motor vehicle that is equipped with a ramp or lift or has been constructed and designed or redesigned, modified, or equipped to provide wheelchair accessible service to persons with disabilities who require the use of a wheelchair as a means of movement or ability to move from one place to another.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 2, 10-14-2015; Ord. No. 2015-998, § 2, 10-14-2015; Ord. No. 2019-669, § 5, 9-4-2019)

Sec. 46-2. Refusal to convey.

(a) It shall be unlawful for any permittee, registrant, or licensee to refuse to transport a passenger on the basis of a passenger's race, color, ethnicity, religion, sex, national origin, age, familial status, marital status, military status, sexual orientation, genetic information, gender identity, pregnancy or disability, including a driver's refusal to transport any service animal or medical equipment utilized in conjunction with a passenger's disability. All permittees, registrants, and licensees shall be required to provide safe, reliable, consistent and equivalent transportation services to the general public, including but not limited to persons with disabilities requesting transportation services from a specific class of vehicle for hire operating pursuant to this chapter.

(b) It shall be unlawful for any permittee, registrant, or licensee to refuse to transport a passenger at the rates authorized by this chapter or to demand or receive an amount in excess of the rates authorized by this chapter. It is an affirmative defense to prosecution under this subsection that the permittee, registrant, or licensee advised the passenger of the fare or estimated fare to the passenger's destination, and the passenger advised that he did not have the means to pay the fare.

(c) Upon receipt of a written substantiated complaint from a passenger or a dispatcher, the department of administration and regulatory affairs may issue a citation to a permittee, registrant or licensee who fails to comply with this section.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2019-669, § 6, 9-4-2019)

Sec. 46-2.1. Inequity of service prohibited.

(a) When a wheelchair accessible vehicle is requested, the permittee or registrant must provide a wheelchair accessible vehicle, or cause one to be provided, without unreasonable delay.

(b) Options for arranging wheelchair accessible vehicle service by phone, by the internet or by any other voice, data or electronic communication shall not be segregated from options made

available to prospective passengers seeking general transportation service. The pricing for accessible service shall be equivalent to the pricing for service provided for non-accessible services.
(Ord. No. 2015-998, § 3, 10-14-2015; Ord. No. 2019-669, § 6, 9-4-2019)

Sec. 46-3. Audit and evaluation.

Upon request of the director or designee, each permittee or registrant shall submit the information necessary for audit and evaluation of compliance with sections 46-2 and 46-2.1 of this Code, including but not limited to the following:

(1) The number of wheelchair accessible vehicle trips requested.

(2) The number of trips completed by wheelchair accessible vehicles.

(3) The average wait time for trips where a wheelchair accessible vehicle was required.

The director shall analyze the relevant data and inform the permittee or registrant of any failure to comply with this section within 30 days of receipt of the requested data. Subsequently, the permittee or registrant must within 30 days either cure the failure or demonstrate to the director that the finding of non-compliance was incorrect. Within three weeks of the end of the 30-day cure period, the director shall analyze any additional data provided by the permittee or registrant. If the director determines that the permittee or registrant remains out of compliance, a hearing for permit/registration revocation will be held in accordance with section 46-5 of this Code.
(Ord. No. 2019-669, § 6, 9-4-2019)

Sec. 46-4. Failure to pay taxes and permit and license fees; failure to maintain insurance; authorization to operate a vehicle for hire.

(a) A license or permit issued for the operation of a vehicle for hire may be terminated at any time for failure to pay any applicable tax, fee, or installment payments imposed pursuant to this chapter or the Texas Tax Code or failure to maintain the requisite insurance. No license or permit issued for the operation of a vehicle for hire shall be terminated if a tax protest or value-related tax litigation is underway or prior to the date on which the tax becomes past due as specified in the Texas Tax Code.

(b) No permittee shall allow a licensee to operate a vehicle for hire in connection with the permittee, unless such licensee is either:

(1) A citizen of the Unites States of America;

(2) A lawful permanent resident of the United States of America; or

(3) An individual who has the legal right to work as a driver of a vehicle for hire in the United States of America.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2016-986, § 3, 12-14-2016)

Sec. 46-4.1. Reserved

Editor's note—Ordinance No. 2025-1050, § 2, adopted December 17, 2025, repealed § 46-4.1 in its entirety. Former said section pertained to Consolidated vehicle for hire electronic dispatch applications and derived from Ordinance No. 2016-736, § 2, adopted Oct. 5, 2016.

Sec. 46-5. Revocations, suspensions, and refusals to renew.

(a) Permits, certificates of registration, and licenses issued pursuant to this chapter may be denied, revoked, suspended, or refused for renewal based upon the applicable grounds specified in section 1-10 of this Code by following procedures specified in section 1-9 of this Code.

(b) Additionally, permits, certificates of registration, and licenses may be revoked, suspended, or refused for renewal following notice and a hearing conducted by an impartial hearing officer appointed by the director if:

(1) The permit, certificate of registration, or license was issued through error;

(2) The applicant provided materially false or incomplete information on the permit, certificate of registration, or license application; or

(3) The permittee or registrant or the permittee's or registrant's employee or licensee violates any provision of this chapter or regulation issued by the director hereunder. Consistent with sections 1-9 and 1-10 of this Code and applicable state laws, the director shall promulgate regulations for any required hearings and procedures.

(c) The director shall not designate a person to act as hearing officer who participated in the review of the application. Hearings shall be conducted in a manner that is consistent with principles of due process. The applicant may be represented by legal counsel, may present evidence and cross examine witnesses presented by the city. The hearing officer shall have the discretion to exclude from hearings any person who is not the applicant, the director, their legal representatives, and such other persons not entitled to attend and participate as a matter of law and any persons whose presence the hearing officer deems unnecessary to the complete resolution of the matter. The decision of the hearing officer, which shall be based upon the preponderance of credible evidence presented, shall be final, subject to the applicant's right to appeal pursuant to state law if the denial is based upon section 1-10 of this Code.

(d) In the event the director confirms a licensee's criminal record has been updated to reflect a conviction, the director shall require the licensee to submit to a hearing, wherein a hearing officer will determine if the licensee's license should be suspended or revoked as a result of the conviction.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2016-736, § 3, 10-5-2016)

Sec. 46-6. Drug screening.

(a) The director shall have the authority to require a licensee to submit to a drug screening test when reasonable suspicion to test exists.

(1) For purposes of this section, reasonable suspicion means an articulable belief based on specific facts and reasonable inferences drawn from those facts that a licensee is under the influence of drugs or alcohol when operating as a vehicle for hire. Circumstances which can constitute a basis for determining reasonable suspicion may include, but are not limited to:

a. Complaint of, or information provided regarding, abnormal or erratic behavior on the part of the licensee by a passenger or other reliable and credible source;

b. Complaint of, or information provided regarding, direct observation of drug or alcohol use by the licensee by a passenger or other reliable or credible source;

c. Complaint of, or information provided regarding, the presence of physical symptoms of drug use in the licensee's appearance and demeanor (i.e., glassy or bloodshot eyes, slurred speech, poor coordination or reflexes) by a passenger or other reliable or credible source; or

d. Violent or threatening behavior.

(2) A license issued pursuant to this chapter shall be subject to revocation pursuant to the procedures set forth in section 46-5 of this Code if a licensee:

a. Obtains a positive test result pursuant to a drug screening test required under this section;

b. Fails to submit to a drug screening test required under this section within 24 hours of being notified by the director or permittee that reasonable suspicion to test exists; or

c. Fails to provide the results of a drug screening test required under this section to the director within five business days of submitting to the test.

(b) The director shall promulgate rules and regulations relating to the drug screening test required under this section. The drug screening test procedure shall be similar to that prescribed by the mayor for drug screenings for city contractors. The director shall authorize laboratories

and facilities that meet nationally recognized standards to obtain samples and perform the tests. The responsibility for obtaining the test and all costs associated therewith shall rest with the licensees.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Memorandum of 1-28-2015; Ord. No. 2015-997, § 3, 10-14-2015; Ord. No. 2016-736, § 3, 10-5-2016; Ord. No. 2016-986, § 4, 12-14-2016)

Sec. 46-7. Criminal history check.

(a) Upon initial application for any license and at license renewal intervals stated in this chapter, the director shall cause the criminal history of each person designated as a driver in an application for a license to be researched. In accordance with the provisions of subsections (c) and (d) of this section, each person designated as a driver in an application shall complete any forms required for the director to obtain the report, and the applicant shall present the required completed forms to the director and shall bear the cost to cover any fees imposed by state or federal agencies for the report. This provision shall not be construed to preclude the director from obtaining interim reports at the expense of the city. Results of the criminal history check shall be valid for two years from the date the fingerprints are submitted to the state or federal agency researching the criminal history.

(b) An applicant who has met the other requirements of this chapter may be provisionally authorized to drive for a permittee if the permittee has caused the criminal history of the applicant to be researched by a company approved by the director, and such search discloses that the applicant has no convictions of any applicable offense listed in section 1-10 of this Code. Such a search shall include a national criminal history database and a national sex offender database. Drivers provisionally authorized pursuant to this subsection shall be required to comply with the requirements of subsection (c) of this section within 30 days of being provisionally authorized by the permittee.

(c) Each applicant for any permit, certificate of registration, or license issued pursuant to this chapter shall be fingerprinted at the location indicated by the director to determine if the applicant has been convicted of any applicable offense listed in section 1-10 of this Code. Upon authorization of the mayor and city council, an applicant may undergo a national background screening administered by a third party in lieu of fingerprint screening to determine whether the applicant has been convicted of any applicable offense listed in section 1-10 of this Code. If applicable, the applicant shall complete any forms required for the director to obtain the report and shall bear the cost to cover any fees imposed by state or federal agencies for the report. This provision shall not be construed to preclude the director from obtaining interim reports at the expense of the city.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2016-736, § 6, 10-5-2016; Ord. No. 2016-986, § 5, 12-14-2016)

Sec. 46-8. Change of information.

It shall be the duty of each registrant, permittee, licensee, and all applicants for a permit, certificate of registration, or license issued pursuant to this chapter to advise the director immediately of any change of mailing address or any other information required to be submitted pursuant to this chapter. Any change in information shall be submitted within ten calendar days of the change on the form prescribed by the director. Notices under this article shall be effective if mailed to the last address provided to the director. The failure of a permittee, registrant, or licensee, applicant for a permit, certificate of registration, or license to receive any notice that is properly addressed and mailed to the last known address shall not affect any action authorized or taken under this article, and the only obligation of the director with respect to returned notices shall be to publicly post them as provided herein or by regulation of the director.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-9. Accident reports.

(a) When any vehicle for hire is involved in an accident or collision that results in any injury or damage to any person or property, including, but not limited to, damage to the vehicle for hire or injury of the licensee or a passenger, the licensee

shall report the accident or collision to the permittee without delay. The permittee shall keep on the permittee's premises records of all accidents and collisions upon forms to be promulgated by the director, which shall include the following information:

(1) The permittee's and the licensee's names;

(2) The licensee's driver license number;

(3) The time and location of the accident or collision; and

(4) A detailed description of any injury or damage to any person or property involved in the accident or collision.

(b) A permittee shall report any accident or collision to the director not later than five business days after the accident or collision. Upon one hour's prior request by the director during normal business hours, the permittee shall make the records available to the director for inspection and copying.

(c) A vehicle for hire involved in an accident shall not thereafter be placed in service and used in operation as a vehicle for hire until it has been inspected by the director. If the director's inspection reveals that the vehicle for hire has been damaged to an extent that it is not in a reasonably good operating condition from the standpoint of the safety, health and comfort of passengers, the director shall order the vehicle for hire out of service until the director has authorized the return of the vehicle for hire to operations, which authorization shall not be given until proper repairs or corrections have been made and the vehicle for hire is inspected and meets all applicable minimum operation requirements prescribed by this chapter.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-9.1. Passenger comfort; courtesy.

(a) It shall be unlawful for the permittee or licensee to suffer, allow or cause the vehicle for hire to be in service at any time during which the vehicle's heating, ventilating, and air conditioning system, if applicable, is not in good repair and capable of functioning within the tolerances of the vehicle manufacturer's specifications.

(b) It shall be the duty of the licensee to ensure that the vehicle for hire is operated for the comfort of the passengers and that the vehicle's heating, ventilating, and air conditioning system, if applicable, is in operation at all times while one or more passengers are present in the vehicle and is functioning in accordance with a passenger's reasonable request for heating, ventilating, or cooling, unless the passenger(s) specifically request that the system be turned off.

(c) No licensee while operating a vehicle for hire shall:

(1) Use abusive, indecent, profane or vulgar language that by its very utterance tends to incite an immediate breach of the peace;

(2) Make any offensive gesture or display that by its very nature tends to incite an immediate breach of the peace;

(3) Create by chemical means any noxious and unreasonable odor;

(4) Threaten another person in an obviously offensive manner;

(5) Fight with another person; or

(6) Engage in any other conduct that is a violation of law.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2019-669, § 7, 9-4-2019)

Sec. 46-9.2. Vehicle for hire condition.

It shall be unlawful for the permittee or licensee of any vehicle for hire to allow or cause the vehicle for hire to be in service at any time that the cleanliness and condition of the vehicle for hire do not meet any one or more of the following standards:

(1) The passenger compartment of the vehicle is free of litter and debris.

(2) The passenger compartment of the vehicle is free of any personal items of the licensee or other objects that would restrict the seating comfort of the passengers.

(3) The vehicle is free of noxious or offensive odors.

(4) The carpet, seating surfaces and head liner, if applicable, have no tears, exposed springs or underparts and are free of any spots or stains that are removable with a reasonable cleaning effort.

(5) The exterior of the vehicle is free from debris and dirt, commensurate with ambient weather conditions and free of any paint or body work damage, excepting "door dings," minor scratches, and similar defects that are not significantly visible.

(6) The vehicle has no broken windows or windows with cracks, except for cracks in places that do not interfere with licensee's vision.

(7) The vehicle has hubcaps or wheel covers on all four wheels if it was so equipped by the manufacturer.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-9.3. Duty to inspect vehicle; procedure when passenger leaves article in vehicle for hire.

(a) Each licensee shall inspect his vehicle for hire before going on duty and after discharging each passenger to see that the vehicle is free of cigars, cigarettes, papers, bottles, and anything that could cause offensive or objectionable odors. He shall check the interior of the vehicle and the trunk, if applicable, to see that no articles have been left in the vehicle after each passenger reaches his destination. In the event a passenger should leave any article in the vehicle, the licensee shall immediately notify the permittee or registrant and shall immediately return the article to the owner, the permittee, the registrant, a company representative, or a customer service liaison before making another trip.

(b) The permittee, registrant, company representative, or customer service liaison shall keep the article for a period of not more than ten days and, if the owner of the article has not called for it within that period of time, shall then deliver the lost article to the office of the chief of police. The chief of police shall give the permittee, registrant, company representative, or customer service liaison a receipt for the article and, following any holding period required for the redemption, shall cause the item to be disposed of in accordance with applicable law.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-9.4. Appearance of licensee.

(a) It shall be the duty of every licensee to be hygienically clean, well groomed, neat, and suitably dressed in compliance with all applicable requirements of this section at all times while operating or in custody of a vehicle for hire.

(b) The term suitably dressed means the licensee shall wear slacks, trousers, dress or cargo shorts, a shirt or blouse, a dress or suit, shoes, and, if desired, appropriate outer garments.

(c) Clothing that is not considered appropriate and is not permitted when the licensee is operating a vehicle for hire includes: underwear (as an outer garment), swimwear, or similar types of attire when worn as an outer garment, or cut off shorts or trunks (jogging or bathing).

(d) Additionally, each licensee shall be authorized to wear other appropriate attire prescribed by the director.

(Ord. No. 2014-914, § 2, 10-8-2014; Ord. No. 2015-997, § 4, 10-14-2015; Ord. No. 2016-986, § 6, 12-14-2016; Ord. No. 2025-1050, § 3, 12-17-2025)

Sec. 46-9.5. Blocking traffic prohibited.

No licensee shall be authorized to remain at a curb or otherwise block traffic for the purpose of waiting to acquire a passenger, whether by dispatch or hail, unless the vehicle for hire is operating in compliance with Chapter 45 of this Code.

(Ord. No. 2016-736, § 7, 10-5-2016; Ord. No. 2019-669, § 8, 9-4-2019)

Sec. 46-10. Deficient service or operation; action by director.

Should the director determine upon his own initiative or upon complaint of any person that the service authorized to be provided by any permittee or registrant is not being operated so as to provide safe, reliable, equivalent and

consistent for hire transportation services to the general public, including but not limited to the operation of unsuitable or unsafe equipment or any other matter incident to the operation or the unsafe or unlawful operation of the vehicle for hire in violation of any provision of this chapter or applicable state or federal law, the director shall notify the permittee or registrant by clearly delineating the respects in which the service is deficient or the specific incident of the alleged unsafe or unlawful operation of a vehicle for hire operated by the permittee or registrant and require that the conditions complained of be remedied within such time as the director may designate. In the event the conditions are not remedied within the time specified, the director may either suspend the permit or certificate of registration for a period not to exceed 15 days or revoke the permit after providing a hearing in a manner consistent with section 1-9 of this Code. (Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-11. Records to be kept by permittees and registrants.

(a) Permittees and registrants shall maintain business and operations records in a manner that demonstrates compliance with this chapter as provided by regulation of the director.

(b) Permittees and registrants, other than wheelchair accessible service providers, who operate wheelchair accessible vehicles shall collect, maintain, and provide to the director on a quarterly basis and on demand, operations data pertaining to the performance or facilitation of transportation services, including service provided by wheelchair accessible service providers on behalf of the permittee or registrant, as follows:

(1) The total number of trips provided by the permittee or registrant in the city, specifying the number of trips provided by all authorized methodologies used to connect prospective passengers with the permittee's or registrant's vehicle for hire transportation service, including but not limited to the number of trips provided as pre-arranged transportation services and the number of trips provided as a result of the direct, in-person solicitation of the licensee by a prospective passenger (i.e. street hailing), when direct, in-person solicitation of the licensee by a prospective passenger is an appropriate means of requesting vehicle for hire transportation services;

(2) The total number of wheelchair accessible trips provided to passengers traveling to and from George Bush Intercontinental Airport and William P. Hobby Airport, if applicable;

(3) The total number of vehicles available and in use by the permittee or registrant that are wheelchair accessible vehicles or are vehicles constructed and designed or redesigned, modified, or equipped to provide vehicle for hire transportation services to persons with disabilities who require the use of a wheelchair as a means of movement or ability to move from one place to another;

(4) The total number of wheelchair accessible trips requested of the permittee or registrant;

(5) The total number of wheelchair accessible trips completed by the permittee or registrant; and

(6) The average amount of time a passenger in need of a wheelchair accessible vehicle had to wait before pick up.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 5, 10-14-2015; Ord. No. 2015-998, § 4, 10-14-2015; Ord. No. 2019-669, § 9, 9-4-2019)

Sec. 46-11.1. Tracking information and access to identifying information.

For purposes of law enforcement, emergency response, and complaint resolution, all permittees and registrants shall collect, maintain, and provide to the director, on demand, all tracking information concerning the permittee's or registrant's licensees and vehicles, including access to the licensee's identifying information. The provisions of this subsection shall only apply to permittees and registrants operating vehicles for hire equipped with global positioning satel-

lite equipment or permittees and registrants using internet-enabled applications or digital platforms to send or transmit electronic, radio or telephonic communication through the use of a portable or handheld device, monitor, smartphone, or other electronic device or unit indicating the location of the passenger which information is then relayed to a vehicle for hire by radio or data communication of any type.
(Ord. No. 2019-669, § 9, 9-4-2019)

Sec. 46-11.2. Use of cellular telephones and electronic communication devices prohibited.

(a) It shall be unlawful for any permittee, registrant or licensee to use or cause to be used any cellular telephone or any other electronic communication device to place or receive a phone call or write, send, or read a text-based communication during the active provision of transportation services while the passenger is in the vehicle for hire unless the cellular telephone or electronic communication device is specifically designed and configured to allow voice-operated and hands-free operation to listen and talk or dictate, send, or listen to text-based communication and is used in that manner during the active provision of transportation services while the passenger is in the vehicle for hire.

(b) The provisions of this section shall not prohibit the use of an electronic communication device designed, configured and used to provide voice-operated and hands-free navigation assistance to the licensee during the active provision of transportation services while the passenger is in the vehicle for hire.

(c) Permittees, registrants and licensees may use or cause to be used cellular telephones or other electronic communication devices while the vehicle for hire is lawfully standing or parked.

(d) It is an affirmative defense to prosecution under this section that the permittee, registrant or licensee used or caused to be used a cellular telephone or other electronic communication device during the active provision of transportation services while the passenger is in the vehicle for hire to contact 9-1-1 to report an imminent threat to life or property; and

(1) The licensee could not safely stop the vehicle for hire to initiate contact with 9-1-1; and

(2) The licensee provides documentary proof of communication with 9-1-1.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-11.3. Vehicle for hire title classification.

(a) No vehicle for hire authorized to operate as such pursuant to the terms of this chapter shall have a title classification of "salvage," "junk," "rebuilt-salvage," "total loss," "non-repairable," or any equivalent or comparable classification in any other jurisdiction.

(b) The provisions of this section shall not be applicable to the renewal or amendment of permits for vehicles for hire operating with vehicle title classifications prescribed in subsection (a) that were originally issued on the basis of applications that were filed and permits issued on or before August 6, 2014, the date this section was adopted; provided however, the revocation of a permit for a vehicle operated pursuant to this special exemption or any transfer, lease, sale, rental, assignment or any other conveyance of a vehicle operated pursuant to this special exemption from a licensee or permittee shall result in the forfeiture of the privilege of operating pursuant thereto and shall require the submission of a new application and compliance with the vehicle for hire title classifications prescribed in this section.

(c) The provisions of subsection (b) of this section shall not prohibit a licensee from transferring a vehicle operated pursuant to this special exception from one permittee to another permittee.

(d) A licensee or permittee may operate a vehicle pursuant to the special exemption in subsection (b) provided the licensee or permittee submits the vehicle for annual inspection at a location authorized and identified by the director and the vehicle is determined to be in compliance

with the provisions of this chapter and any other conditions of operation prescribed by the director.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-23, § 2, 1-7-2015; Ord. No. 2015-997, § 6, 10-14-2015; Ord. No. 2019-669, § 10, 9-4-2019)

Sec. 46-11.4. Vehicle removal.

(a) The police department may remove any vehicle from a public street or public place when probable cause exists to believe that the vehicle is being operated as a vehicle for hire without the required permit, certificate of registration, certification decal, or other authorization issued by the director and required pursuant to this chapter. A vehicle removed pursuant to this section shall be placed in a secured facility designated by the city.

(b) If a vehicle has been removed from a public street or public place without the consent of the owner or operator, he may request a hearing to determine whether or not probable cause existed for the removal of the vehicle. Hearings under this section shall be before a municipal court judge.

(c) A person who wishes to request a hearing hereunder shall deliver a written request for the hearing to the clerk of the municipal courts not later than the 14th business day after the date the vehicle was placed in a secured facility. A person who fails to deliver the request within the specified time period waives the right to the hearing.

(d) A written hearing request under this section must contain the following information:

(1) The name, address, and telephone number of the owner and operator of the vehicle;

(2) The date and the location from which the vehicle was removed;

(3) The name of the police officer who authorized the removal of the vehicle; and

(4) The name, address, and telephone number of the secured facility to which the vehicle was removed.

(e) Upon receipt of a complete and timely filed hearing request, the clerk of the municipal courts shall schedule a hearing to occur as soon as practicable; provided, however, all hearings conducted pursuant to this section shall be held within ten business days after the date the hearing request was received.

(f) The court shall notify the vehicle owner or operator and the police officer who authorized the removal of the vehicle of the date, time and place of the hearing. The sole issue to be determined in a hearing under this section is whether probable cause existed for the removal of the vehicle.

(g) The court shall make written findings of fact and conclusions of law regarding the issues in the hearing. If the court determines that probable cause existed for the removal of the vehicle, the owner or operator of the vehicle shall pay the costs of removing and storing the vehicle prior to release of the vehicle.

(h) If the court determines that probable cause did not exist for the removal and of the vehicle, the vehicle shall be ordered released without the payment of any costs for removing and storing the vehicle. If the vehicle's owner or operator paid removal and storage costs before the hearing and the court determines that probable cause did not exist for the removal and storing of the vehicle, the city shall fully reimburse the owner or operator.

(i) The provisions of this section shall be cumulative of all other enforcement powers granted by this chapter and available to the city.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2014-914, § 3, 10-8-2014)

Sec. 46-11.5. Waiting period before becoming eligible to reapply.

A person whose application for a license has been denied or whose current license has been revoked or refused for renewal and such action has become final shall be required to wait a period of one year from the date the denial, revocation, or refusal became final before becoming eligible to reapply for a license.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2021-804, § 2, 9-15-2021)

Sec. 46-11.6. Operation and inspection of wheelchair accessible vehicles for hire.

A permittee operating a wheelchair accessible vehicle pursuant to a valid permit may operate the wheelchair accessible vehicle beyond any applicable vehicle for hire age and mileage limitations prescribed in this chapter, provided the permittee submits the vehicle for inspection at a location authorized and identified by the director prior to the expiration of the permit, and the director determines that the wheelchair accessible vehicle for hire is in compliance with all applicable vehicle inspection provisions and any other conditions of operation prescribed by the director.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-11.7. Preferences and soliciting of business prohibited.

(a) It shall be unlawful for any person to seek or solicit a passenger or passengers for any vehicle for hire, other than a pedicab, whether or not the vehicle is identified as a vehicle for hire, at, in or near any passenger depot, hotel, airport, ship or ferry landing, bus stop or station, or upon any sidewalk or street or any other place in the city. It shall be unlawful for any person to call out "taxicab," "limousine," "auto for hire," "carriage," "bus," "baggage," "hotel," or any other words or gestures or signage that could be construed as soliciting a passenger for hire. Violators of this section, upon conviction, shall be fined not less than $50.00 nor more than $500.00.

(b) It shall be unlawful for any cab starter, bell person, maitre d', or other person having the ability or authority to control the selection of vehicles for hire available for hire at any business premises to solicit a fee or other compensation or favor for the purpose of granting preference or priority rights to any vehicle for hire. The provisions of this section shall not be construed to prohibit the owner of a business premises that maintains a private off-street cabstand or limo stand area for the convenience of its patrons from entering into a written contract by which the owner receives compensation from one or more permittees in exchange for access to the premises' off-street cabstand or limo stand area. Violators of this section, upon conviction, shall be fined not less than $50.00 nor more than $500.00.
(Ord. No. 2014-914, § 4, 10-8-2014; Ord. No. 2016-736, § 8, 10-5-2016)

Sec. 46-12. Penalty.

Any person who fails or refuses to comply with the terms and provisions of this chapter shall be deemed guilty of an offense and, upon conviction thereof, shall be punished as provided by section 1-6 of this Code. Each violation shall constitute and be punishable as a separate offense.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-13. Rules and regulations.

The director is hereby authorized to adopt rules and regulations consistent with the intent and purposes of the provisions of this chapter. A copy of all rules and regulations shall be maintained in the director's office and the office of the city secretary for inspection by the public, and copies shall be made available for purchase consistent with the fees prescribed by law.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-13.1. Suspension of requirements during declared disaster.

(a) Upon the issuance of a proclamation of a local state of emergency issued by the mayor pursuant to Chapter 418, Texas Government Code, the mayor may by executive order, suspend any provision of this chapter the mayor reasonably deems necessary due directly to the circumstances that are the subject of the proclamation.

(b) Factors to be used to determine whether suspension of a provision is reasonably necessary include:

(1) An industry regulated under this chapter is unable to operate, due directly to the circumstances that are the subject of the proclamation;

(2) The requirements of a provision of this chapter impose an undue hardship on a

vehicle for hire platform regulated under this chapter, due directly to the circumstances that are the subject of the proclamation;

(3) Changes in city operations due to the circumstances that are the subject of the proclamation prevent compliance with a provision of this chapter;

(4) The requirements of a provision of this chapter would endanger the health or safety of city employees, due directly to the circumstances that are the subject of the proclamation.

(c) Any suspension of insurance requirements pursuant to this section may only apply to vehicles for hire that are not in operation. No executive order issued pursuant to subsection (a) of this section shall be construed to conflict with the provisions of the Texas Motor Vehicle Safety Responsibility Act.

(d) An executive order issued pursuant to subsection (a) of this section shall remain in force and effect until:

(1) The executive order is rescinded by the mayor; or

(2) The executive order is terminated by an ordinance passed and approved by the city council.

(Ord. No. 2020-440, § 4, 5-20-2020)

DIVISION 2. VEHICLE FOR HIRE DRIVER LICENSES

Sec. 46-14. Vehicle for hire driver's license required.

(a) It shall be unlawful for any person who does not hold a current and valid license issued pursuant to this division to operate a vehicle for hire on the streets of the city. A duly authorized licensee shall have a current and valid license in his possession at all times when operating a vehicle for hire and shall display the license to any peace officer or city inspector upon request.

(b) No permittee shall suffer or allow any vehicle for hire to be driven by anyone who does not possess a current and valid license issued pursuant to the terms of this division.

(c) The provisions of this division shall be cumulative of all other additional license requirements contained in this chapter applicable to the license for the operation of a specific vehicle for hire.

(d) All licenses issued pursuant to the provisions of this article and applicable to this chapter shall be specific to the vehicle for hire indicated in the license application.

(e) The requirements of this section do not apply to the driver of a sightseeing or charter vehicle.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2019-669, § 11, 9-4-2019)

Sec. 46-15. License application.

Applications for licenses or renewal of licenses shall be submitted to the director on a form promulgated by the director. The applicant shall provide the following information with each application, which shall be sworn before a notary public or conform to minimum state law requirements for unsworn declarations:

(1) The applicant's full name, residence, places of residence for five years previous to moving to his present address, age, race, height, weight, color of eyes and hair, place of birth, and length of time he has resided in the city;

(2) The specific type of vehicle for hire license for which the applicant is applying;

(3) Whether the applicant is a citizen of the United States, and his record of employment for the five years prior to the date of the application, and social security number;

(4) Whether the applicant has ever been convicted of a felony or misdemeanor;

(5) Whether the applicant has previously been a licensee;

(6) Whether the applicant has ever had a license issued pursuant to this chapter denied, revoked, or suspended;

(7) Whether the applicant has ever had a state issued private passenger vehicle driver license or commercial vehicle driver license denied, revoked, or suspended;

(8) The permittee with whom the applicant intends to work; and

(9) Evidence of compliance with all qualifications established in this article; and

(10) Any other information that may be reasonably requested by the director.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2016-986, § 8, 12-14-2016)

Sec. 46-15.1. Qualifications of license applicant.

Each applicant for a license required by this chapter pursuant to this division must:

(1) Except as provided by section 46-151(b)(4) of this Code, have a valid state class A, B or C Texas driver license.

(2) Be 18 years of age or older.

(3) Have no criminal history that is disallowed under section 1-10 of this Code.

(4) Be classified as either:

a. A citizen of the United States of America;

b. A lawful permanent resident of the United States of America; or

c. An individual who has the legal right to work as a driver of a vehicle for hire in the United States of America.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 7, 10-14-2015; Ord. No. 2016-736, § 9, 10-5-2016; Ord. No. 2016-986, § 9, 12-14-2016; Ord. No. 2025-1050, § 4, 12-17-2025)

Sec. 46-15.2. License issuance or denial.

(a) The director, upon consideration of the application and reports submitted under this division shall, subject to applicable requirements of this article, issue the license or deny the application. If the director denies the application, he shall notify the applicant in writing within five days after the date of the decision that the application has been denied and the grounds therefor.

(b) If the reason for the denial of a license is curable, the director shall allow the applicant, upon written request, to submit an amendment within the time allowed in section 46-15.5 of this Code to cure the defect in lieu of filing an appeal of the denial of the license. If the director denies the license again, the applicant shall still be entitled to file an appeal in the manner prescribed in section 46-15.5 of this Code.

(c) Additionally, the director may delay any decision on an application until final adjudication when the applicant is under indictment for or has charges pending for an offense listed in subsection (c) of section 1-10 of this Code pertaining to vehicle for hire driver licenses and shall promptly inform the applicant of the reason for the delay. Upon receiving notice of the reason for the delay, the applicant shall be entitled to an appeal of the director's delay in the same manner as provided in section 1-9 of this Code.

(d) If the criminal background check reveals that the applicant has been convicted of any applicable offense listed in subsection (a) of section 1-10 of this Code, the director shall follow the procedures set forth in section 1-9 of this Code and conduct a hearing if timely requested.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-15.3. License term; renewal.

All licenses issued for the operation of vehicles for hire pursuant to this chapter shall be valid for two years from the date of issuance; provided however, licenses for school vehicles operated pursuant to article V of this chapter shall be valid for the period provided in section 46-291 of this Code. All licenses may be renewed by making application to the director upon forms provided by the director.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-15.4. License fee.

The fee for issuance of a license pursuant to this article is stated in the city fee schedule.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-15.5. Appeal from denial of license.

An applicant aggrieved with the decision of the director denying an application for a license under any provision of this article may appeal the decision to an independent hearing examiner designated by the director. Each appeal must be perfected by a letter addressed to the director and delivered to the director's office within 15 business days after the date that notice of the director's decision, addressed to the party with the right of appeal, is placed in the United States Mail. The letter of appeal must state that an appeal from the decision of the director is desired. The director may grant the applicant a hearing only if the applicant's notice of appeal is in writing and timely given. The hearing shall be conducted in accordance with section 1-9 of this Code and applicable state laws if the denial was based in whole or in part upon section 1-10 of this Code. Subject to any further appeal authorized by state law, the hearing examiner's decision shall be final.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-15.6. State driver license status.

Except as provided by section 46-151(b)(4) of this Code, the issuance of a license is subject to the holder's maintenance of a current and valid Class A, B, or C Texas Driver License and the expiration, suspension, or revocation of the state license shall automatically render the license invalid until the applicant again holds a current and valid state license.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2025-1050, § 5, 12-17-2025)

ARTICLE II. TAXICABS

DIVISION 1. GENERALLY

Sec. 46-16. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings assigned to them in this section, except where the context clearly indicates a different meaning:

Daytime trip means a taxicab trip originating between the hours of 6:00 a.m. and 8:00 p.m.

License means a taxicab driver's license issued pursuant to division 2 of article I of this chapter.

Licensee means any person in physical control of a taxicab who is the holder of a current and valid license.

Nighttime trip means a taxicab trip originating between the hours of 8:01 p.m. and 5:59 a.m. of the following day.

Permit means a current and valid permit issued by the director under this article for the operation of a taxicab.

Permittee means the person to whom a permit has been duly issued by the director. Any permittee who operates two or more taxicab companies under separate assumed names or different subsidiary firms or by any other means shall nevertheless be regarded as one and the same permittee for permit applications, disciplinary actions, and all other purposes relating to the administration of this article.

Stool light means an instrument or an accessory which is attached to a vehicle and indicates to the public that a vehicle is a taxicab.

Street means any public street, road, boulevard, alley, lane, highway, sidewalk, park roadway, railroad station, ship landing, ferry landing roadway, viaduct or other place under control of the city or other public authority and established by it for the use of vehicles not otherwise controlled by law or ordinance. It also means any vehicular road, driveway, or area outside of and adjacent to, or in any railroad station, ferry landing, or bus station owned by the city or other public authority that is used regularly by taxicabs for pickup and discharge of passengers, which places shall hereafter remain open to and be used by all duly permitted taxicabs without charge, except as authorized by city council, and

without discrimination as to the identity of the permittee. The properties constituting the William P. Hobby Airport (HOU), the George Bush Intercontinental Airport/Houston (IAH), and the Ellington Airport (EFD) are not designated as streets under this definition.

Taxicab means every automobile or motor-propelled vehicle, whether the vehicle is identified or not as a taxicab as set forth herein, used for the transportation of passengers for hire over the public streets of the city, whether or not the operation extends beyond the city limits. Provided, the term taxicab shall not apply to limousines, school vehicles, emergency vehicles, jitneys, sightseeing or charter vehicles, or low-speed shuttles that operate under a permit issued by the city or any other governmental regulatory authority, and, provided further, the term shall not apply to limousines that are chartered, hired or provided in connection with funeral services or any vehicles operating under a contract with the city.

Taxicab cost index (TCI) means a weighted combination of selected consumer price indexes and employment statistics as published by the United States Department of Labor used to measure the change in the costs of operating a taxicab.

Taximeter means a mechanical and/or electrical instrument that records miles or distances traveled or time consumed, or both, during the period of engagement of taxicab service and is so constructed as to visibly record the cumulative charges to the person engaging the service.

Virtual taximeter means a device that utilizes software designed to record the miles or distance traveled or time consumed, or both, during the period of engagement of taxicab service and is so constructed and mounted as to visibly record and display the cumulative charges to the person engaging the service.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2016-736, §§ 10, 11, 10-5-2016; Ord. No. 2019-669, § 12, 9-4-2019)

Sec. 46-17. Authorized operators.

No taxicab for which a permit has been issued under this article shall be operated by anyone except the permittee or an employee of the permittee or other person who may be operating the vehicle under a written agreement specifically incorporating therein any rules, regulations, and conditions as may be reasonably required by the director to ensure compliance with applicable laws and regulations. The permittee shall be responsible for anyone operating under his permit whether as an employee or contractor. Any person driving or operating a taxicab upon the streets or other public property of the city is presumed to be an employee of the taxicab's permittee or to have entered into a written agreement with the taxicab's permittee. (Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-18. General prerequisites to putting vehicle into service.

(a) Before any permittee may put a taxicab into service or replace a taxicab, he shall submit, for the director's approval, the vehicle, the certificate of title showing the current true ownership of the vehicle, his public liability insurance policy, insurance endorsement or evidence of self-insurance and, in the case of a leased vehicle, the written lease contract. In addition, before a permittee may replace a taxicab that is an electric-drive vehicle or a wheelchair accessible vehicle with a vehicle that is not an electric-drive vehicle or a wheelchair accessible vehicle, the permittee shall be required to pay, in full, the difference between the permit fee amount he paid for the electric-drive vehicle or the wheelchair accessible vehicle and the permit fee amount for the replacement vehicle.

(b) The director shall not authorize a vehicle to initially be placed into service unless it is equipped with an air conditioning system that was factory-installed by the vehicle manufacturer. (Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2016-736, § 12, 10-5-2016; Ord. No. 2016-986, § 10, 12-14-2016; Ord. No. 2019-669, § 13, 9-4-2019; Ord. No. 2021-804, § 3, 9-15-2021)

Sec. 46-19. Accessibility training.

Each permittee who first receives a permit and each licensee who receives a license after

September 4, 2019, shall attend an accessibility training course designated by regulation of the director.
(Ord. No. 2019-669, § 14, 9-4-2019)

Sec. 46-20. Age and mechanical condition of taxicabs.

A licensee or permittee shall not drive or cause to be driven upon the streets of the city any taxicab vehicle that is more than 15 years old. For purposes of this requirement, a taxicab will be considered to be 15 years old on March 31st of the 15th year following the manufacturer's model year of the vehicle, regardless of the purchase date or the date it was originally placed into service.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 41, 10-14-2015; Ord. No. 2016-736, § 13, 10-5-2016; Ord. No. 2016-986, § 11, 12-14-2016; Ord. No. 2021-804, § 4, 9-15-2021)

Sec. 46-21. Identification of vehicles generally.

(a) A permittee or licensee shall not drive or cause or suffer to be driven or operate or cause to be operated a taxicab in the city unless the taxicab has signs on each side of the taxicab stating the telephone number and the name or the assumed name under which the owner operates or the name of the partnership, copartnership, association, society or corporation under which the owner operates the taxicab, as is on file with the director. The name and numbers of the taxicab shall be placed in a location and in a size as provided by regulation of the director.

(b) A permittee shall not operate or cause or suffer or allow to be operated a taxicab in the city unless and until a permit number has been assigned by the director at the time the permit is issued under this article. The number shall remain in full force and effect for each permit so long as the permit remains valid. The number shall be displayed on the taxicab in four separate and plainly visible locations and in a size as provided by regulation of the director.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2014-914, § 5, 10-8-2014; Ord. No. 2015-997, § 8, 10-14-2015; Ord. No. 2019-669, § 15, 9-4-2019)

Sec. 46-22. Vehicle color scheme.

(a) A permittee or licensee shall not drive or cause to be driven any taxicab in the city until the permittee has filed with the director the color scheme that he proposes to use under his ownership or dispatch service.

(b) The color scheme shall be of contrasting colors that are visible from a distance of 50 feet.

(c) Upon vehicle inspection, if the director determines the color scheme displayed on the vehicle does not contrast, the director may require the permittee or licensee to change the color scheme.

(d) Replacement vehicles must be operated in compliance with this subsection. The director shall determine whether the colors submitted by the permittee comply with the requirements articulated within this section.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2016-736, § 14, 10-5-2016; Ord. No. 2016-986, § 12, 12-14-2016; Ord. No. 2019-669, § 16, 9-4-2019; Ord. No. 2021-804, § 5, 9-15-2021)

Sec. 46-23. Certification decals and taxicab permits.

At the time a permit is issued or renewed under this article, the director shall issue one certification decal to the permittee for the taxicab covered by the permit. The certification decal and permit shall be attached to the taxicab for which it is issued, at the place on the taxicab designated by the director and shall be affixed by the director or designee. It shall further be unlawful for any person to drive a taxicab without the certification decal and permit being so attached. The reissuance of any certification decal that is lost, mutilated or otherwise rendered unusable shall be provided only upon reinspection of the taxicab.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 9, 10-14-2015; Ord. No. 2019-669, § 17, 9-4-2019)

Sec. 46-24. Stool light.

No permittee or licensee shall operate or cause to be operated any taxicab within the city unless it is equipped with a stool light that is

illuminated when the taxicab is vacant and available for hire or illuminated at all times. The stool light may be magnetic or permanently affixed to:

(1) The top of the vehicle; or

(2) The front and rear windshields; or

(3) The front dashboard and rear windshield.

If the stool light is connected to taximeter, the stool light shall illuminate a 'vacant' or 'taxi' sign. If the stool light is not connected to the taximeter then it must illuminate a 'taxi' sign. Permittees and licensees shall be authorized to display and illuminate either the taxicab permittee name or permit number on the stool light when the taximeter is not recording.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2016-736, § 15, 10-5-2016; Ord. No. 2021-804, § 6, 9-15-2021)

Sec. 46-25. Passenger's right of selection.

Every person shall be allowed to select a taxicab of his choice at any place in the city.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-26. Taxicabs at George Bush Intercontinental Airport/ Houston.

(a) The provisions of this section shall apply to all taxicab service at any place upon the grounds of George Bush Intercontinental Airport/ Houston (IAH).

(b) The Director of the Houston Airport System shall establish one or more locations at or near the various terminal buildings at IAH as taxicab arrival and departure loading zones for the loading and discharge of passengers and baggage by taxicabs. It shall be unlawful for any licensee to load or discharge passengers or baggage at any location within the airline terminal areas of IAH other than in a zone so established.

(c) The Director of the Houston Airport System shall establish taxicab standing lines to service the departure loading zones designated under subsection (b) above. It shall be unlawful for any licensee to cause his vehicle to stand upon any area of IAH other than in a designated standing line. It is a defense to prosecution under this subsection that the operator has lawfully stopped his vehicle in order to comply with a traffic control device or that the operator is actually and lawfully engaged in the loading or unloading of passengers or baggage.

(d) Except where the passenger may request the service of a particular taxicab, departing passengers at IAH terminals will be assigned to taxicabs waiting in the standing lines by starters who have been designated by the Director of the Houston Airport System to operate the various departure zones and standing lines. Taxicabs will be assigned from the standing lines on a first-in-line-first-to-depart basis, provided that the Director of the Houston Airport System shall administratively provide by rule for the priority reassignment of any taxicab operating from a standing line that receives a short trip. For purposes of this provision, short trip means a trip within an area immediately adjacent to IAH as defined on a map promulgated for that purpose by the Director of the Houston Airport System.

(e) A licensee carrying a passenger or passengers from IAH shall pay to the city the airport use fee established from time to time by division 3 of article II of chapter 9 of this Code. The licensee shall deposit the fee in the manner prescribed by the Director of the Houston Airport System, and the fee may be added by the licensee to metered fares and flat rate fares for trips originating from IAH. Where passengers are being carried to two or more destinations, the airport use fee shall be prorated among them on a per destination basis.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2019-669, § 18, 9-4-2019)

Sec. 46-27. Operation at William P. Hobby Airport.

(a) The Director of the Houston Airport System is hereby authorized to designate one or more locations on the airport adjacent to the airline terminal building at the William P. Hobby Airport (HOU) as standing and loading zones for the loading and discharge of passengers and baggage by taxicabs. It shall be unlawful for a

licensee to load or discharge passengers or baggage at any other location within the airline terminal building area of the airport.

(b) A licensee carrying a passenger or passengers from the airline terminal building at the HOU shall pay to the city the airport use fee established from time to time by division 3 of article II of chapter 9 of this Code. The licensee shall deposit the fee in the manner prescribed by the Director of the Houston Airport System, and the fee may be added by the licensee to metered fares and flat rate fares for trips originating from HOU. Where passengers are being carried to two or more destinations, the airport use fee shall be prorated among them on a per destination basis.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2019-669, § 18, 9-4-2019)

Sec. 46-28. Reserved.

Sec. 46-29. Carrying additional passengers.

Any passenger who engages the services of a taxicab shall have the exclusive right to the passenger compartment of the taxicab. Except as provided in item (3) of subsection 46-30(a) of this Code, it shall be unlawful for a licensee to carry additional passengers unless specific permission is obtained from the passenger who originally engaged the taxicab.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-30. Taximeter.

(a) A licensee or permittee shall not drive or cause or suffer or allow to be driven a taxicab in the city, unless the taxicab is equipped with a properly functioning taximeter. A licensee shall not carry a passenger, whether for hire or not, unless the taximeter is in the recording position. Provided, however, it shall be an affirmative defense to prosecution under this subsection that the only passenger in the taxicab at the time the taximeter was not in recording position was a person riding for training purposes only, and:

(1) The passenger had a valid license issued by the city at the time he was riding as a passenger;

(2) The passenger had not driven a taxicab within the city for 30 days or more prior to the date the defendant was charged for violation of this subsection; and

(3) At the time the person was riding as a passenger, there was a sign indicating that a passenger was riding for purposes of training as a licensee. The sign must be located so that it would be visible to any person who might ride in the vehicle as a passenger for hire.

(b) A licensee may utilize a virtual taximeter, provided the virtual taximeter meets the applicable standards as established and updated or amended in the National Institutes of Standards and Technology's Handbook 44 and enforced by federal or state Departments of Weights and Measures or comparable agency or program. The virtual meter must be visible to a passenger seated in the rear of the vehicle, and the virtual taximeter must have been submitted to the city and approved by the director prior to use.

(c) Except for any deposit or scheduling fee required for taxicab vehicle for hire services provided as pre-arranged transportation services or as otherwise provided in this article, all charges and collections for hire shall be based upon the taximeter reading. The dial showing the fare shall be in full view and readily visible and readable by the passenger or passengers at all times taxi service is being rendered.

(d) Upon receipt of a complaint or information that a permittee or licensee is operating or has operated a taxicab vehicle in violation of this section, the director shall require the subject permittee's or licensee's records and the subject taxicab vehicle's taximeter to be inspected by the director at a time and location designated by the director.

(e) A permittee shall not drive or cause or suffer or allow to be driven and a licensee shall not drive any taxicab on which any modification has been made to the taximeter or virtual taximeter or to any mechanical or electrical parts of the taxicab activating the taximeter or virtual taximeter that causes rates higher than

those authorized in this division to be recorded and shown on the taximeter or virtual taximeter. (Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2016-736, § 16, 10-5-2016; Ord. No. 2019-669, § 19, 9-4-2019)

Sec. 46-31. Rates prescribed.

(a) Except for taxicabs dispatched through a mobile dispatch service, all permittees and licensees shall comply with and abide by the rates established in this section:

(1) Daytime metered travel. For daytime trips, the maximum metered travel fee shall be $3.72 for the first 1/11 of a mile or less plus $0.27 for each additional 1/11 of a mile or less.

(2) Nighttime metered travel. For nighttime trips, the maximum metered travel fee shall be $4.72 for the first 1/11 of a mile or less plus $0.27 for each additional 1/11 of a mile or less.

(3) *IAH flat rates.* Alternative maximum flat rates shall be imposed for trips between George Bush Intercontinental Airport/ Houston (IAH) and its geographic zones I through X. Current maximum rates shall be posted on the website maintained by the department of administration and regulatory affairs and kept on file in the office of the city secretary, where, upon request, such rates shall be made available for viewing during normal business hours. Provided that the lesser of the applicable flat rate or the actual metered rate shall be charged. A copy of the zone map for IAH taxicab rates shall remain on file for public inspection in the office of the city secretary. The centers of the streets and geographic features noted thereon as boundary lines shall determine boundaries between adjacent zones. The foregoing zone rates exclude the airport use fees, which may be additionally imposed on metered or flat fares.

(4) *HOU flat rates.* Alternative maximum flat rates shall be imposed for trips between William P. Hobby Airport (HOU) and its geographic zones I through XI. Current maximum rates shall be posted on the website maintained by the department of administration and regulatory affairs and kept on file in the office of the city secretary, where, upon request, such rates shall be made available for viewing during normal business hours. Provided that the lesser of the applicable flat rate or the actual metered rate shall be charged. A copy of the zone map for HOU taxicab rates shall remain on file for public inspection in the office of the city secretary. The centers of the streets and geographic features noted thereon as boundary lines shall determine boundaries between adjacent zones. The foregoing zone rates exclude the airport use fees, which may be additionally imposed on metered or flat fares.

(5) *Waiting time.* An amount not to exceed $24.00 per hour may be charged for waiting time, provided the clock on the taximeter is set and regulated at a rate not to exceed $24.00 per hour.

(6) *Hand luggage.* No charge will be made for hand luggage.

(7) *Reservation and billing service fee:*

a. A reservation and billing service fee may be added to the total trip charges authorized in this section, provided:

1. The trip originates with an advance reservation; and

2. At the request of the account holder or his authorized agent the fare and other charges are billed on account by the permittee, rather than being paid at the end of the trip.

The reservation and billing service fee shall not exceed ten percent of the total trip charges imposed, including the tip, if any.

b. Notwithstanding the foregoing, this item (7) shall not be construed to authorize the operation of a taxicab service in such manner as to

constitute a chauffeured limousine service. In the event of conflict, the provisions of article IV of this chapter shall prevail.

(8) *Toll road fee.* In addition to the fees prescribed in this section, the permittees and licensees may impose a toll road fee in an amount exactly equal to any fees imposed by the Harris County Toll Road Authority for use of its facilities during the trip, provided that the imposition of the fee is noted on the posted rate card, and further provided that the passenger(s) are notified of the fee before the taxicab enters the toll road. Where passengers are being carried to two or more destinations, the toll road fees shall be prorated among them, per destination.

(9) *Alternate central business district flat rate.* An alternate maximum flat rate of $6.00 shall be imposed for trips entirely within the central business district. All forms of payment shall be accepted for these trips.

(10) *TCI review and rate adjustment.* The director shall promulgate regulations regarding review of the TCI and its factors and weighting, which shall be used to determine whether taxicab rates need to be adjusted, and regarding the review of rates and the implementation of new rates, should they be deemed necessary. Current rates as adjusted by the TCI shall be posted on the website maintained by the department of administration and regulatory affairs and kept on file in the office of the city secretary and, upon request, made available for viewing during normal business hours.

(11) Fuel cost recovery fee and fuel surcharge:

a. When the average price per gallon of regular unleaded gasoline exceeds $3.00, the per trip fuel surcharge shall be as follows:

Gasoline Price Per Gallon	*Surcharge Per Trip*
$3.00 or less	None
$3.01 to $3.50	$0.50
$3.51 to $4.00	$1.00
Each additional increment of $0.50	$0.50 per additional increment of $0.50

b. When required, a fuel surcharge shall become effective on the first day of the first month of each calendar quarter, and shall remain in effect for the duration of the quarter.

c. The average price per gallon of regular unleaded gasoline shall be based on the American Automobile Association (AAA) Daily Fuel Gauge Report for Houston, Texas.

d. The average price per gallon shall be calculated for a three-month period ending not more than 14 days prior to the beginning of a calendar quarter.

e. It shall be the duty of the permittee to post signage in each permitted vehicle that fuel surcharge is in effect. The signage shall be posted in plain view of the customer.

(b) The director shall establish a taxicab passenger capacity rating (exclusive of children in arms), which will constitute the maximum number of passengers that may be carried simultaneously.

(c) In the event two or more taxicab passengers are going to the same destination, the licensee shall collect only one fare as recorded on the taximeter. If the passengers are going to different destinations, the licensee shall clear his taximeter at the first destination and charge the first passenger the amount recorded on the taximeter, and then proceed to the next destination as though it were a completely new trip. Other destinations shall be treated likewise.

(d) Where any permittee has contracted with any department, agency or subdivision of the state, the United States or any foreign government or any nonprofit charitable organization for the transportation of passengers for the

entity on a regular basis within the corporate limits of the city, the permittee is authorized, in lieu of the fares prescribed in subsection (a) above, to make other charges as are agreed to in writing by the contracting parties and filed with the director, prior to the transportation of passengers under the contract. A permittee or licensee transporting contract passengers under this subsection must fully comply with all other applicable provisions of this article.

(e) Senior citizens' discount:

(1) *Rate; restrictions.* Any taxicab passenger 60 years old or older who provides to the licensee proof of age as specified in this subsection at the time the fare is collected shall be charged a reduced fare equal to 90 percent of the fee otherwise applicable as set out in items (a)(1) through (a)(5) of this section; provided, however, the reduced fare set out in this subsection shall not be applicable in any of the following situations:

a. In the event the passenger has ridden in the taxicab to the same destination with another passenger who is not an attendant but is 13 years of age or older but less than 60 years of age;

b. The passenger is a person with disabilities who is riding in the taxicab pursuant to the terms of a contract between the permittee and the Metropolitan Transit Authority; or

c. The fare is being charged to any account other than the passenger's personal account.

For purposes of this item, an attendant is a person who is accompanying a passenger because the passenger is physically or mentally unable to travel alone.

(2) *Proof of age.* To provide proof of age for the purposes of this subsection, the taxicab passenger must allow the licensee to examine one of the following identification documents that has been issued to the passenger and that has a picture of the passenger thereon:

a. A driver license or identification card issued by a state of the United States;

b. A military identification card;

c. A passport; or

d. An alien registration receipt card (Form I-551 or I-151) or border crossing card issued by the United States Immigration Service.

(3) *Posting of notice in taxicab.* A person shall not operate a taxicab unless a notice regarding the discount set out in this subsection is posted in the passenger area of the taxicab. The director shall specify the information to be set out on the notice, the size of the print, the colors, and the location where the notice shall be placed.

(f) A permittee may charge rates that are lower than the maximum rates approved in this section, provided the permittee must file its schedule of rates or any revisions to its schedule with the director at least ten days before the rates become effective.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2014-914, § 6, 10-8-2014; Ord. No. 2015-997, §§ 10, 11, 10-14-2015; Ord. No. 2019-669, §§ 20—22, 9-4-2019; Ord. No. 2022-387, § 2, 5-18-2022; Ord. No. 2025-1050, § 6, 12-17-2025)

Sec. 46-32. Posting of license and other information.

(a) Each permitted taxicab shall be equipped with a license and rate card holder approved by the director. The holder shall be mounted on the taximeter or dashboard of the taxicab in a conspicuous location where the contents thereof may be seen by the passengers. It shall be the duty of the permittee and licensee to place in the holder the city-issued license containing a picture of the licensee, the licensee's name and description, and a rate card showing the name of the permittee and the approved maximum taxicab rates specified in section 46-31 of this Code and

the rates that will be charged by the permittee or licensee, if the rates are lower. The size and contents of the license and the rate cards shall be approved by the director.

(b) It shall be the duty of the permittee and licensee of each taxicab to ensure that the taxicab has cards posted showing the rates for travel to and from IAH and to and from HOU for each zone as specified in section 46-31 of this Code and the taxicab zone rates that will be charged by the permittee or licensee, if the rates are lower, as well as a map depicting the zones. One card shall be posted in a location conspicuous to a passenger in the front seat and the other card shall be posted in a location in the back seats so that the contents thereof can be seen by passengers riding in the back seats.

(c) It shall be the duty of each permittee and licensee to post a card with the telephone numbers of the director and the permittee for complaint purposes regarding taxicab services or charges. This card shall be mounted adjacent to the rate cards required by this section and shall instruct the passenger that if he wishes to file a complaint, he should obtain the taxicab number as posted on the taxicab, date, time, destination, and fare charged.

(d) It shall be the duty of each permittee and licensee to post a card that indicates whether smoking is permitted or prohibited in the taxicab.

(e) In lieu of placement of the information cards required in this section, the director may authorize the information to be displayed on the passenger information module in the rear of the vehicle.

(f) Each permittee and licensee shall ensure that the fare rates charged for travel in a taxicab are displayed as provided in subsection (b) of this section. Each permittee and licensee whose taxicab is dispatched through a mobile dispatch service shall ensure that the fare rates charged for travel in his taxicab are displayed along with a fare rate estimator, on the website, internet-enabled application, or digital platform used by the permittee to connect drivers and passengers.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 12, 10-14-2015; Ord. No. 2016-736, § 17, 10-5-2016; Ord. No. 2019-669, § 23, 9-4-2019)

Sec. 46-33. Payment method.

A permittee or licensee shall not drive or cause or suffer or allow to be driven a taxicab in the city, unless it is equipped with a properly functioning credit card payment device that either is mounted in a location that is within reach of a customer in a rear seat or can be passed to a passenger in a front seat or back seat. Additionally, it shall be unlawful for any permittee or licensee to refuse to accept a passenger's payment of posted rates by credit card. The use of other credit card payment devices that do not allow the passenger to maintain control of his credit card is expressly prohibited.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014 eff. 2-2-2015; Ord. No. 2015-997, § 13, 10-14-2015; Ord. No. 2019-669, § 23, 9-4-2019)

Sec. 46-34. Receipt for payment of fare.

No licensee of any taxicab, upon receiving full payment for a fare as authorized by this article, shall refuse to give a receipt upon the request of any passenger making the payment. A receipt provided to the passenger via the passenger's e-mail address shall be sufficient for purposes of providing a receipt for payment upon the request of any passenger. Additionally, the permittee shall make available to each licensee a receipt book or other electronic instrument capable of creating a payment record required by this section.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-35. Required operation; placing taxicab vehicles into service.

(a) Permittees shall pick up or accept delivery of any permit initially granted under this article and place the taxicab into service as follows:

(1) A permit initially applied for on or after the effective date of this ordinance shall not be issued unless the permittee has a vehicle to place into service;

(2) The permittee shall present the taxicab for initial placement into service and for inspection at a location authorized and identified by the director within 180 days subsequent to the date of the granting of the permits; and

(3) If any permit is not obtained or any taxicab is not placed into service as provided herein, the permit shall be automatically revoked, and the director shall cause the permittee to surrender any certification decals or other permit indicia that have been issued.

(b) Permittees shall operate or cause their taxicabs to be operated whenever public convenience requires that the taxicabs be in operation. The director may order any or all permittees to put into operation any taxicab not then in operation whenever public convenience requires that all permitted taxicabs be in operation.

(c) If a vehicle is removed from any permit initially applied for and issued on or after the effective date of this ordinance and not replaced with another vehicle, the vacant permit shall be returned to the director without a refund. Permittee may reapply for a permit as stated in this article.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 14, 10-14-2015; Ord. No. 2019-669, § 24, 9-4-2019; Ord. No. 2021-804, §§ 7, 8, 9-15-2021)

Sec. 46-36. Removal of identification marks when vehicle retired from service.

No permittee shall dispose of a taxicab that is being retired from service until all marks of taxicab identification have been removed therefrom.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-37. Inspection by city—Generally.

(a) The director shall cause each taxicab for which a permit has been issued to be inspected at the time that it is initially placed into service and thereafter at least once each year. The inspection shall be made to determine that the taxicab is in a reasonably good state of repair, clean, and equipped and being operated in compliance with all requirements of this article. The inspection shall be made at a place designated by the director. The director shall create a permanent record, in paper or electronic format, of all inspections, which shall be maintained for a period of at least two years.

(b) If the inspection reveals that a vehicle is not in a reasonably good operating condition, from the standpoint of the safety, health, and comfort of passengers, the director shall order the taxicab out of service until remedial repairs and corrections have been made. When the repairs and corrections have been made, the vehicle shall be reinspected to determine whether or not proper repairs and corrections have been made, and in no case shall the taxicab be permitted to resume its operation until the repairs and corrections have been made. It shall be unlawful for a permittee to utilize any taxicab that has been ordered out of service until the vehicle has been reinspected and the director authorizes resumption of its use.

(c) Inspections shall include, but not be limited to, the following items: vehicle identification number; taxicab number; date of purchase; foot brakes; parking brake; head lamps; tail lamps; license plate lights; stool light; dome light; horn; windshield wipers; heating, ventilating, and air conditioning systems; rearview mirror; all glasses; cleanliness; safety; condition of paint; color scheme; certification decals; taximeter seals and readings; credit card payment device integrated with global positioning satellite system; rate card; signs; fumes; state license plates and registration sticker; speedometer readings; mileage; steering; tires; muffler and tail pipe; accuracy of taximeter; and condition of the body of the vehicle and fenders.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014, eff. 2-2-2015; Ord. No. 2016-736, § 18, 10-5-2016; Ord. No. 2025-1050, § 7, 12-17-2025)

Secs. 46-38, 46-39. Reserved.

Sec. 46-40. Reserved.

Editor's note—Ord. No. 2014-914, § 7, adopted October 8, 2014, repealed § 46-40 in its entirety. Formerly said section pertained to preferences and soliciting of businesses prohibited and derived from Ord. No. 2014-754, § 2(Exh. A), adopted August 6, 2014.

Secs. 46-41—46-60. Reserved.

DIVISION 2. VEHICLE PERMIT

Sec. 46-61. Definitions.

As used in this division, the following words and terms shall have the meanings assigned to them in this section:

Operator means the person who is or will be principally in charge of the day-to-day operations of a permittee or applicant for a permit.

Principal means the operator and also includes in the case of a proprietorship the proprietor and proprietor's spouse, in the case of a partnership each partner, and in the case of a corporation each corporate officer or director. For any other form of entity, the term shall include the equivalent persons as determined by the director.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2019-669, § 25, 9-4-2019)

Sec. 46-62. Required.

(a) It shall be unlawful for any person to operate or drive or cause to be operated or driven any taxicab upon and over the streets of the city unless a current permit has been issued for the taxicab by the director in accordance with this article.

(b) It is an affirmative defense to prosecution under this section that the taxicab is not being operated for the purpose of serving any passenger in exchange for consideration unless the trip originated in a jurisdiction outside the city in which the taxicab is operated in compliance with all applicable laws. The provisions of this section shall not be construed to authorize a taxicab from another jurisdiction to originate any passenger service trip within the city.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-63. Reserved.

Editor's note—Ord. No. 2019-669, § 26, adopted September 4, 2019, repealed § 46-63 in its entirety. Formerly said section pertained to computation of permits to be distributed, if any and derived from Ord. No. 2014-754, § 2(Exh. A), 8-6-2014.

Sec. 46-64. Application for permit—Form.

(a) An application for a permit shall be submitted on forms to be furnished by the director and the applicant shall furnish the following information with each application, which shall be sworn to before a notary public or conform to minimum state law requirements for unsworn declarations:

(1) The applicant's name, mailing address (and street address if different), and telephone number (which information a permittee shall keep current);

(2) The name and form of business under which the service will be operated (if a partnership or corporation, a copy of the partnership agreement or articles of incorporation must be attached).

(3) Criminal history information for every principal as required by the director to determine compliance with section 1-10 of this Code.

(4) Evidence that the applicant has a place of business within the metropolitan area from which the applicant's taxicab business is or will be operated and that use of the proposed location is in compliance with any applicable deed restrictions.

(5) Evidence that the operator is either a United States citizen or an alien legally residing in the United States with the legal right to engage in employment in the United States.

(6) Any additional information that may be reasonably requested by the director.

Each application shall be accompanied by an application filing fee. The filing fee established by city council is stated in the city fee schedule and is not subject to the annual fee increase established in section 1-13 of this Code. The application filing fee is non-refundable.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2019-669, § 27, 9-4-2019; Ord. No. 2021-804, § 9, 9-15-2021)

Sec. 46-65. Permit issuance procedure.

(a) The director shall initially review each application for issuance or amendment of a permit to determine whether the application is complete and all required information has been provided. If not, the director shall return the application and advise the applicant of the deficiencies.

(b) The director shall review complete applications to determine whether the applicant has met all applicable requirements of this article and of other applicable provisions, including section 1-10 of this Code. If so, the director shall issue the permit without conducting a hearing. If, based upon the review, the director determines that one or more requirements may not have been met, the director shall afford the applicant the right to a hearing before acting on the application.

(c) Prior to the denial of an application, the director shall afford the applicant notice of the proposed grounds for denial and that the applicant may, within 15 business days following the date of deposit of the notice in the mail request a hearing. Where the grounds are based in whole or in part upon section 1-10 of this Code, the hearing shall conform to the requirements of section 1-9 of this Code with respect to those grounds.

(d) In the event that the director approves the permit, issuance shall be subject to compliance with this article, including, but not limited to, payment of any required fees, inspection of vehicles to be utilized, and submission of proof of insurance.

(e) A permit does not entitle the permittee to act as the driver of covered vehicles. A separate license is required for that purpose pursuant to sections 46-14 and 46-15 of this Code.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2016-736, § 19, 10-5-2016; Ord. No. 2019-669, § 28, 9-4-2019; Ord. No. 2021-804, § 9, 9-15-2021)

Sec. 46-66. Transfer of permit.

A permit initially applied for on or after the effective date of this ordinance may not be transferred.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2016-736, § 20, 10-5-2016; Ord. No. 2019-669, § 29, 9-4-2019; Ord. No. 2021-804, § 10, 9-15-2021)

Sec. 46-67. Insurance as prerequisite.

(a) Before any taxicab permit shall be issued to any person, or before renewal of any permit shall be granted, the applicant shall file an insurance policy evidencing insurance coverage complying with the requirements contained in subsection (b) below or give proof that he has qualified as a self-insurer, as the term is defined in the Texas Motor Vehicle Safety Responsibility Act as now in force or hereafter amended.

(b) The insurance required in subsection (a) shall be in the form of commercial auto liability coverage in no less than the minimum coverage amounts specified in the Texas Motor Vehicle Safety Responsibility Act issued by either a company listed as an authorized auto liability lines carrier on the Texas Department of Insurance's List of Authorized Insurance Companies or a surplus lines insurer listed on the Texas Department of Insurance's list of Eligible Surplus Lines Insurance Companies. The eligible surplus lines insurance company is required to have a Best's Rating of at least B+ and a Best's Financial Size Category of Class VI or better according to the most current edition of Best's Key Rating Guide, Property-Casualty, United States. Additionally, the insurance policy must include an endorsement requiring 30 days' written notice of termination or cancellation to the director and an endorsement requiring ten days' written notice of non-payment to the director. In the event that a policy terminates or is cancelled without replacement, then each permit to which it pertains shall be suspended, and those taxicabs may not be operated. If a proper replacement policy is not provided to the director on or before the 10th business day after the date of termination or cancellation of the policy, the permit shall automatically terminate. Proof of

insurance coverage shall be maintained at all times and shall be accepted only in the authorized form approved by the Texas Department of Insurance for that purpose.

(c) A permittee will be in compliance with subsection (b) if a licensee with whom the permittee contracts obtains insurance that fulfills the standards articulated in subsection (b); however, it shall be the duty of the permittee to ensure that the licensee maintains the aforementioned valid insurance policy at all times. Additionally, upon no fewer than five days' notice, the director may require the permittee to provide access to records that demonstrate proof of financial responsibility and compliance with the insurance requirements articulated in this section.

(d) If an insurance policy maintained by a licensee under subsection (c) has lapsed or does not provide the coverage required by this section, the permittee shall provide the coverage required by this section, regardless of whether the licensee maintains insurance adequate to cover any portion of the claim.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2016-736, § 21, 10-5-2016; Ord. No. 2025-1050, § 8, 12-17-2025)

Sec. 46-68. Fee.

(a) The annual fee for each permit under this division is stated for this provision in the city fee schedule. After payment of the initial annual permit fee, the annual permit fee shall be paid to the department on or before April 1 of each calendar year. The annual permit fee may be paid in advance to the department in three installments on or before April 1, May 1, and June 1 of each calendar year in amounts prescribed in the city fee schedule. To be eligible for installment payments, the first installment payment must be paid on or before April 1. In the event the permit is issued for a period of time less than one year, the fee shall be prorated, payable at the rate stated for this provision in the city fee schedule for each month or fraction thereof remaining in the calendar year, not to exceed the full amount of the annual fee.

(b) There shall be no fee for replacement of a vehicle with another vehicle of equivalent capacity, except as provided by section 46-18 of this Code, if applicable.

(c) The permit fee is non-refundable.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2016-736, § 38, 10-5-2016; Ord. No. 2019-669, § 30, 9-4-2019; Ord. No. 2021-804, § 11, 9-15-2021)

Sec. 46-69. Reserved.
Ord. No. 2021-804, § 12, adopted September 5, 2021, repealed § 46-69 in its entirety. Formerly said section pertained to permit is privilege, not property right and derived from Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 15, 10-14-2015; Ord. No. 2019-669, § 3, 9-4-2019.

Sec. 46-70. Term; renewal; temporary vehicles.

(a) A taxicab permit issued under this division shall be valid for a one-year permit term commencing April 1 and extending through the succeeding March 31. A permit may be renewed each year on forms promulgated by the director and by payment of the annual fee as provided in section 46-68 of this Code.

(b) In addition to the vehicles regularly operated by a permittee, the permittee may place one or more vehicles into use on a temporary basis from time to time to meet seasonal or unexpected needs in accordance with this subsection. The director shall issue temporary certification decals for a term of 30 consecutive calendar days to commence on the date of issuance at the fee stated for this provision in the city fee schedule per vehicle, per certification decal, upon the permittee's provision to the director of proof of the identity of the vehicle to be used. Proof of identity shall include verification that the vehicle is in compliance with all requirements of this division and proof that it is insured as required in section 46-67 of this Code and has been inspected and approved for use as provided in section 46-23 of this Code within six months preceding the date the temporary certification decal is issued. If the permittee's insurance

policy on file with the director pursuant to section 46-67 of this Code also covers the vehicles that will be placed in service on a temporary basis, no additional proof of insurance is required.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2019-669, § 32, 9-4-2019; Ord. No. 2021-804, § 13, 9-15-2021)

Sec. 46-71. Reserved.

Editor's note—Ord. No. 2021-804, § 14, adopted September 15, 2021, repealed § 46-71 in its entirety. Formerly said section pertained to changes in principals after issuance and derived from Ord. No. 2014-754, § 2(Exh. A), 8-6-2014.

Sec. 46-72. Transfer of permits.

(a) When used in this section, the following words and terms shall have the meanings assigned to them in this subsection:

Transfer means any sale, lease, lease assignment, or other arrangement by contract or otherwise whereby a permittee allows another person on a temporary or permanent basis to make use of one or more permits that are held by the permittee except an arrangement in the nature excepted in subsection (b).

(b) The terms of this section do not apply to a license, lease, or subcontractor arrangement in conformity with section 46-17 of this Code between a permittee and an individual driver-operator that allows the driver-operator to operate a taxicab under one of the permittee's permits, provided that the permittee remains fully responsible to the city for the driver's compliance with this chapter.

(c) A permit may only be transferred to:

(1) A person who is an existing permittee; or

(2) A qualified applicant under section 46-65 of this Code.

(d) Any transfer to a person who is not an existing permittee shall be subject to an application to be filed in the same manner as under section 46-65 of this Code for a permit application and shall only be allowed to the extent that the applicant is determined to be qualified thereunder. Every transfer must be approved in advance by the director.

A nonrefundable transfer fee shall be paid by the transferee at the time of application or upon transfer of the permit by the director. Any permit issued in conjunction with a permit computation conducted in 2017 or later is subject to the nonrefundable transfer fee. The transfer fee shall be five percent of the purchase price.

(e) A permit that is subject to a suspension or revocation proceeding may not be transferred, nor may a suspended permit be transferred during the period of suspension.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, §§ 16, 17, 39, 10-14-2015; Ord. No. 2016-736, §§ 22, 23, 10-5-2016; Ord. No. 2019-669, § 33, 9-4-2019)

Secs. 46-73—46-85. Reserved.

DIVISION 3. RESERVED

Secs. 46-86—46-110. Reserved.

DIVISION 4. MISCELLANEOUS LICENSEE REQUIREMENTS

Sec. 46-111. Reserved.

Editor's note—Ord. No. 2014-914, § 7, adopted October 8, 2014, repealed § 46-111 in its entirety. Formerly said section pertained to licensee appearance and derived from Ord. No. 2014-754, § 2(Exh. A), adopted August 6, 2014. The users' attention is directed to § 46-9.4 for similar provisions.

Sec. 46-112. Reserved.

Sec. 46-113. Limitation on hours of work.

(a) A licensee shall not drive more than 12 hours in any consecutive 24 hour period.

(b) A permittee shall not suffer or allow any licensee to drive more than 12 hours in any consecutive 24 hour period.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-114. Duty to transport passengers by shortest route.

Each licensee shall transport his passengers to definite points designated by the passengers,

and he shall take the most direct and shortest route to deliver the passengers safely and expeditiously to their destination.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-115. Duty to pull to curb to load or unload.

It shall be the duty of each licensee to pull his vehicle to the curb when loading or unloading passengers.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-116. Refusal to discharge passenger at designated place.

(a) A licensee shall not refuse to discharge a passenger at any place designated by the passenger upon the streets of the city, except when the place so designated is at a point not easily accessible by reason of an obstruction, a no parking zone, or conditions rendering the designated place or access to the designated place unreasonably hazardous.

(b) The provisions of this section shall not be deemed to excuse compliance with section 46-115 of this Code, which requires passengers to be unloaded at the curb.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-117. Leaving taxicab while waiting at depot, airport, hotel, etc.

No licensee shall leave his taxicab for any purpose, except in emergencies, while he is waiting at a depot, airport or hotel. This section does not prohibit a licensee from assisting passengers in loading and unloading.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-118. Reserved.

Sec. 46-119. Duty to transport within the corporate limits.

It shall be unlawful for a licensee to refuse to transport a person to a requested destination located within the corporate limits of the city.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Secs. 46-120—46-140. Reserved.

ARTICLE III. PEDICABS

DIVISION 1. GENERALLY

Sec. 46-141. Definitions.

When used in this article, the following words and terms shall have the meanings provided in this section, unless the context of their usage clearly indicates another meaning:

Bicycle means a belt-, chain-, or gear-driven device propelled by human power and on which a person may ride and that has two tandem wheels, either of which is more than 14 inches in diameter.

Daytime means the period between sunrise and sunset.

License means a pedicab driver's license issued pursuant to division 2 of article I of this chapter.

Licensee means any person in physical control of a pedicab who is the holder of a current and valid pedicab driver's license.

Nighttime means the period between sunset and sunrise.

Pedicab means a bicycle or tricycle used to transport passengers for hire, including a bicycle to which is attached a trailer, sidecar, or similar device.

Pedicab service means the business of transporting passengers for hire by means of a pedicab. Specifically excluded from this definition are:

(1) Vehicles used in connection with any phase of a funeral or funeral service;

(2) Taxicabs, jitneys, sightseeing and charter vehicles, chauffeured limousines, school vehicles, and low speed shuttles permitted and licensed by the city; and

(3) Vehicles operating under a contract with the city.

Permit means a permit to operate a pedicab service pursuant to this article.

Permittee means any person, partnership, corporation, firm, joint venture, limited liability company, association, organization and any other entity holding a permit issued pursuant to this article.

Tricycle means a belt-, chain-, or gear-driven device that is propelled by human power and on which a person may ride and that has three wheels in contact with the ground, any of which is more than 14 inches in diameter.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2019-669, § 34, 9-4-2019)

Sec. 46-142. Reserved.

Sec. 46-143. Article cumulative.

This article is cumulative of all other applicable laws and ordinances. Without limitation, this article is expressly made cumulative of division 3 of article II of chapter 9 of this Code. The director shall not approve the operation of a pedicab upon any airport terminal complex unless the permittee has first obtained an airport use permit for use of pedicabs.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Secs. 46-144—46-150. Reserved.

DIVISION 2. PERMITS

Sec. 46-151. Permit required.

(a) It shall be unlawful for any person to operate a pedicab service without first obtaining a permit pursuant to the terms of this division.

(b) Each applicant for a permit required by this division must:

(1) Have no conviction of an offense listed in subsection (c) of section 1-10 of this Code;

(2) Identify each pedicab the applicant desires to receive a certification decal for, including trade name, if any, serial or identification number and body style of the pedicab;

(3) Provide proof of insurance pursuant to the requirements of this article;

(4) If a natural person:

a. Be 18 years of age or older; and

b. Hold a current and valid driver's license issued by a state of the United States, the District of Columbia, or a territory of the United States.

(5) Provide evidence that the applicant has a place of business within the metropolitan area from which the applicant's pedicab service will be operated and that the use of the location is in compliance with any applicable deed restrictions enforceable by the city; and

(6) Provide any other information reasonably requested by the director for administration of this article.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2022-387, § 3, 5-18-2022; Ord. No. 2025-1050, § 9, 12-17-2025)

Sec. 46-152. License required.

It shall be unlawful for any person to operate a pedicab without a license issued pursuant to this chapter.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-153. Fees.

(a) There shall be a nonrefundable application processing fee in the amount stated for this provision in the city fee schedule payable upon the filing of an application for a permit.

(b) In addition to the application processing fee provided in subsection (a) of this section, an annual permit fee in the amount stated for this provision in the city fee schedule shall be paid in advance to the department of administration and regulatory affairs for each pedicab before it is placed into service and annually thereafter on or before February 1 of each year.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 18, 10-14-2015; Ord. No. 2022-387, § 4, 5-18-2022)

Sec. 46-154. Application.

(a) Each person desiring to obtain a permit shall apply on forms provided by the director and shall include all information required by this article.

(b) Each permit applicant (including the proprietor if a proprietorship, each partner if a partnership, or each corporate officer if a corporation) shall appear at a location specified by the director for identification and fingerprinting to determine the existence of any conviction of any applicable offense(s) set forth in subsection (c) of section 1-10 of this Code. If any conviction exists, the director shall follow the procedures set forth in section 1-9 of this Code and conduct a hearing if timely requested.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 19, 10-14-2015)

Sec. 46-155. Review.

(a) Following review of the application, the director shall provide the applicant with written notification of the approval or denial of the requested permit. The director shall initially review each application for issuance or amendment of a permit to determine whether the application is complete and all required information has been provided. If not, the director shall return the application with a statement of deficiencies.

(b) The submission of any false information or a materially incomplete application, including but not limited to an applicant's failure to provide any information reasonably requested by the director, shall be grounds for denial of the application. In the event of denial, the director shall give the applicant written notice of the basis for the denial. The applicant shall be entitled to appeal a decision based, in whole or in part, upon section 1-10 of this Code. Notice of any denial shall comply with section 1-9 of this Code and applicable state laws.

(c) If the application is denied on the basis of the applicant's failure to satisfy any other requisites stated in this division, the applicant may request a hearing by submitting a written notice of appeal to the director within 15 business days following the date notice of the director's decision is deposited in the United States Mail. A hearing official shall conduct an informal hearing and shall render a decision within 30 business days from the date of the filing of the appeal. At the hearing, the burden shall be upon the applicant to demonstrate that he is entitled to the permit.

(d) If the reason for the denial of an application is curable, the director shall allow the applicant, upon a written request, to submit an amendment within the time allowed in subsections (b) and (c) for an appeal, in lieu of filing an appeal. If the director denies the application again, the applicant shall still be entitled to file an appeal within 15 business days following the date notice of the director's decision regarding the amended application is deposited in the United States Mail.

(e) The director shall not issue a permit until the applicant has identified each pedicab, if not provided with the application, and has also obtained a satisfactory inspection and certification decal, provided proof of insurance, and provided proof of ownership or lease of each pedicab.

(f) The director shall promulgate regulations and procedures for any required hearings which shall be consistent with sections 1-9 and 1-10 of this Code and applicable state laws.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-156. Transfer; nonexclusive; fee.

(a) A permit is personal to the permittee to whom it is issued and may not be transferred or otherwise assigned. Any change of ownership, partnership interests, corporate officer or director on the permit application shall render a permit void, unless an application for transfer is filed within ten days following the effective date of the change. The director shall promulgate procedures for the processing of amendments and may suspend the permit pending the completion of the processing if any additional person who has acquired an interest in the business is determined to have been convicted of an offense

listed in section 1-10(c) of this Code. The fee for filing an application amendment is stated for this provision in the city fee schedule.

(b) Each permit is nonexclusive, and no limits or restrictions shall exist upon the number of pedicabs that may be approved, provided that each must be operated pursuant to a permit and in accordance with all applicable requirements of this article.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-157. Permit term.

(a) A permit shall be valid for five years from the date of issuance.

(b) In accordance with regulations promulgated by the director, a permit may be amended, without charge, for the limited purpose of adding, deleting or substituting any number of pedicabs; provided however, the addition, deletion, or substitution of any pedicabs pursuant to a current and valid permit shall require an inspection as provided for in section 46-161 of this Code, including the payment of the inspection fee.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Secs. 46-158—46-160. Reserved.

DIVISION 3. PEDICAB OPERATING REQUIREMENTS

Sec. 46-161. Pedicab inspection; fee.

(a) It shall be unlawful for any person to operate or cause to be operated any pedicab unless the pedicab has been inspected as required in this section and has a current and valid certification decal affixed in a manner and location prescribed by the director. There shall be a non-refundable inspection fee stated for this provision in the city fee schedule for each pedicab. All pedicabs shall be maintained in a safe and sanitary condition and shall be thoroughly cleaned and disinfected at least once in each 24-hour period.

(b) The director shall inspect each pedicab before it is initially placed into service and thereafter before February 1 of each year at such location as the director may specify. The director shall approve the pedicab if he determines that:

(1) The pedicab is of the approved color scheme and is marked as provided in this article;

(2) The pedicab is in generally good working condition with no safety-related defects, including inspection or testing of the wheels, brake system, pedicab frame, passenger compartment, audible signaling device, steering mechanism, tires, front lamp, rear lamp, and all reflectors; and

(3) The pedicab complies with all other requirements of this article.

(c) Upon satisfactory completion of the inspection, the director shall issue and permanently affix a certification decal to the pedicab. In any prosecution under this section, it shall be presumed that a pedicab has not been inspected as required in this section unless it has a current and valid certification decal affixed thereto.

(d) The director shall provide replacement certification decals only upon reinspection of the pedicab.

(e) It shall be unlawful to:

(1) Remove, move, alter, or deface a certification decal;

(2) Transfer a certification decal from the pedicab for which it was issued to another pedicab;

(3) Operate a pedicab with a certification decal that was not issued for that pedicab; or

(4) Operate a pedicab with a fictitious or fraudulent certification decal.

(f) The director may inspect any pedicab and any records or documents required to be carried in or on the pedicab at any time upon presentation of identification to the licensee in order to

determine compliance with the provisions of this article and the regulations adopted by the director.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 20, 10-14-2015; Ord. No. 2022-387, § 5, 5-18-2022)

Sec. 46-162. Authorized operators.

No pedicab shall be operated by anyone except the permittee or an employee of the permittee or other person who may be operating the pedicab under a written agreement specifically incorporating therein any rules, regulations, and conditions as may be reasonably required by the director to ensure compliance with applicable laws and regulations. The permittee shall be responsible for any person operating under his permit whether the person is an employee or is a person operating under a written agreement. Any person operating a pedicab on the streets or other public property of the city is presumed to be an employee of the permittee or to have entered into a written agreement with the permittee. Any person operating a pedicab on the streets or other public property of the city shall be required to secure a license pursuant to this chapter.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-163. Rate structure and fares.

A permittee shall file all rate structure and fare information with the director. It shall be unlawful for a permittee or licensee to charge a passenger a fare that was not agreed upon with the passenger in advance or to demand a fare from a passenger after agreeing to provide the service for a gratuity only.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-164. Receipt for payment of fare.

No licensee, upon receiving full payment for a fare as authorized by this article, shall refuse to provide a receipt upon the request of any passenger. The permittee of the pedicab shall make available to each licensee a receipt book or other electronic instrument capable of creating a payment record for this purpose.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-165. Posting of pedicab driver's license, fares, and other information.

(a) Each permitted pedicab shall be equipped with a holder mounted in a conspicuous location on the pedicab to ensure that its contents are visible by the passengers. It shall be the duty of the permittee and licensee to post in this holder a photograph of the licensee, the licensee's name, and a copy of the licensee's pedicab license. Each permitted pedicab shall also display the name, trademark, logo, or other identifying information of the permittee and the specific fares charged for services rendered. The size and content of the permittee's information and the posted fares shall be affixed to the pedicab in a manner approved by the director.

(b) It shall be the duty of each permittee and licensee to post a card with the telephone numbers of the director and the permittee for complaint purposes regarding pedicab services or charges. The card shall be mounted adjacent to licensee's pedicab license information and shall inform any passenger that wishes to file a complaint to obtain the pedicab certification decal number as posted on the pedicab, and the date, time, destination, and fare charged. The director shall approve the size of the print, the colors, and the information to be provided so that the information may be easily read by passengers.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-166. Carrying additional passengers.

Any passenger who engages the services of a pedicab shall have the exclusive right to the passenger compartment of the pedicab. It shall be unlawful for a licensee to carry additional passengers unless specific permission is obtained from the passenger who originally engaged the pedicab.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-167. Operation of pedicabs on roadways.

(a) All pedicabs operating on a roadway shall comply with all traffic laws of the state and applicable provisions of this Code.

(b) All pedicabs operating on a roadway and moving slower than the other traffic on the roadway shall ride as near as practicable to the right curb or edge of the roadway, unless:

(1) The pedicab is passing another vehicle moving in the same direction;

(2) The pedicab is preparing to turn left at an intersection or onto a private road or driveway;

(3) A condition on or off the roadway, including a fixed or moving object, parked or moving vehicle, pedestrian, animal, or surface hazard prevents the pedicab from safely riding next to the right curb or edge of the roadway; or

(4) The person is operating a pedicab in an outside lane that is:

a. Less than 14 feet in width and does not have a designated bicycle lane adjacent to that lane; or

b. Too narrow for a bicycle and a motor vehicle to safely travel side by side.

(c) A licensee operating a pedicab on a one-way roadway with two or more marked traffic lanes may ride as near as practicable to the left curb or edge of the roadway.

(d) Licensees operating pedicabs on a roadway may ride two abreast. Licensees riding two abreast on a laned roadway shall ride in a single lane. Licensees riding two abreast may not impede the normal and reasonable flow of traffic on the roadway. Licensees may not ride more than two abreast unless they are riding on a part of a roadway set aside for the exclusive operation of bicycles, tricycles, or other similar forms of non-motorized transportation.

(e) Each licensee shall pull his or her pedicab to the curb when loading or unloading passengers.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-168. Pedicab condition.

It shall be unlawful for a permittee or licensee to operate, or cause to be operated, a pedicab that is not in good working order, including, but not limited to, the operation of a pedicab that has:

(1) Exposed rust;

(2) Ripped upholstery or fabric;

(3) Visible chips or scratches on any painted surface;

(4) Exposed wood that is not painted and in good condition;

(5) Exposed sharp edges; or

(6) Dirt or debris on any surface accessible to patrons.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-169. Reserved.

Editor's note—Ord. No. 2014-914, § 7, adopted October 8, 2014, repealed § 46-169 in its entirety. Formerly said section pertained to licensee appearance and derived from Ord. No. 2014-754, § 2(Exh. A), adopted August 6, 2014. The users' attention is directed to § 46-9.4 for similar provisions.

Sec. 46-170. Pedicab lighting and reflectors.

It shall be unlawful for any permittee or licensee to operate, or cause to be operated, a pedicab that does not have the following:

(1) A lamp on the front that emits a white light visible from a distance of at least 100 feet to the front during daytime;

(2) A lamp on the front that emits a white light visible from a distance of at least 500 feet to the front during nighttime;

(3) A red reflector on the rear of a type approved by the Texas Department of Transportation that is visible from 50 feet to 300 feet to the rear when the reflector is directly in front of lawful upper beams of head lamps on a motor vehicle during nighttime; and

(4) One lamp that emits a red light visible from a distance of 500 feet to the rear during nighttime.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-171. Pedicab brakes.

It shall be unlawful for a permittee or licensee to operate, or cause to be operated, a pedicab that is not equipped with a braking system capable of being manipulated by the licensee from his normal position of operation and is capable of causing a pedicab with a loaded passenger compartment to come to a complete stop in a linear path of motion when each wheel of the pedicab is in contact with the ground on dry, level, clean pavement.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-172. Pedicab seat belts.

It shall be unlawful for a permittee or licensee to operate, or cause to be operated, a pedicab that is not equipped with a lap seat belt for each passenger, or a continuous lap seat belt that extends across the full width of the pedicab passenger seat and is designed to accommodate and secure all passengers in the pedicab.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2025-1050, § 10, 12-17-2025)

Sec. 46-173. Pedicab trailer; limitation on number.

It shall be unlawful to operate a pedicab with more than one attached trailer, sidecar, or similar device.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-174. Pedicab width.

It shall be unlawful to operate a pedicab that is wider than 54 inches at its widest point.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-175. Pedicab operation; conduct.

(a) It shall be unlawful for a licensee operating a pedicab, or a permittee operating a pedicab service, to cause, suffer, or permit a licensee to:

(1) Operate the pedicab other than on or astride a permanent and regular seat attached to the pedicab;

(2) Carry at any one time a number of persons in excess of the number of seats available, provided that a passenger under five years of age shall not be considered a person for purposes of this subsection;

(3) Operate a pedicab in a manner that results in damage to public or private property;

(4) Fail to exercise due care to avoid colliding with a pedestrian on any roadway or sidewalk;

(5) Operate a pedicab that is not equipped with an audible signaling device approved by the director and a radio, mobile telephone, or other means of two-way communication that may be used to request assistance in the event of an emergency;

(6) Permit a person riding on a bicycle, coaster, sled, toy vehicle or roller skates to attach to the pedicab;

(7) Operate a pedicab while carrying a package, bundle or article if the package, bundle or article prevents the operator from keeping at least one hand on the handlebars;

(8) Operate a pedicab on any street or adjoining sidewalk that has been closed to vehicular traffic by barricade or similar barrier;

(9) Permit or allow passengers to ride in or on a pedicab in such a position that the licensee's vision forward or to the side is blocked;

(10) Stop or stand to pick up or discharge any passenger in a taxicab zone or any other area designated for other categories of vehicles.

(b) It shall be unlawful for any person to operate a pedicab on a street where the posted speed limit exceeds 35 miles per hour, except for the purpose of crossing that street.

(c) It shall be unlawful for any person, while operating a pedicab, to pick up or drop off passengers on a street where the posted speed limit exceeds 35 miles per hour.

(d) It shall be unlawful for any person to operate a pedicab upon any portion of a public sidewalk except as necessary to access locations immediately adjacent to roadways through the use of points of ingress and egress made available for use by motor vehicles operating in compliance with all applicable traffic laws.

(e) It shall be unlawful for any person, while operating a pedicab, to obstruct the flow of pedestrian or vehicular traffic by remaining stopped by a sidewalk, except for the time period necessary to load or unload passengers.

(f) It shall be unlawful to operate a pedicab that does not have a clearly visible manufacturer's serial or identification number. In the case of a pedicab that is not of unibody design, it is sufficient for purposes of this subsection that either the operator's portion or the passenger's portion of the pedicab contain the manufacturer's serial or identification number.

(g) It shall be unlawful to remove, deface, alter or destroy the manufacturer's serial or identification number on a pedicab.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-176. Pedicab insurance.

(a) Before any permit shall be issued to any person, or before renewal of any permit shall be granted, the applicant shall file with the director a commercial general liability insurance policy evidencing insurance coverage complying with the requirements contained in subsection (b) of this section.

(b) The insurance required in subsection (a) shall be in the form of commercial general liability policy. The required policy shall name the city as an additional insured and be issued by either a company listed as an authorized general liability lines carrier on the Texas Department of Insurance's List of Authorized Insurance Companies or a surplus lines insurer listed on the Texas Department of Insurance's list of Eligible Surplus Lines Insurance Companies. The eligible surplus lines insurance company is required to have a Best's Rating of at least B+ and a Best's Financial Size Category of Class VI or better according to the most current edition of Best's Key Rating Guide, Property-Casualty, United States. The insurance shall be a policy of commercial general liability insurance, including broad form coverage, products and completed operations, and personal injury and advertising injury in an amount not less than $1,000,000.00 12-month aggregate, and $1,000,000.00 per occurrence.

(c) Additionally, the policy must include an endorsement requiring 30 days' written notice of termination or cancellation to the director and an endorsement requiring ten days' written notice of non-payment to the director. In the event that a policy terminates or is cancelled without replacement, then each permit to which it pertains shall be suspended, and all pedicabs within such coverage may not be operated. If a proper replacement policy is not provided to the director on or before the tenth business day after the date of termination or cancellation of the policy, the permit shall automatically terminate. Proof of insurance required in subsection (b) shall be carried by licensees at all times while operating a pedicab and shall be accepted only in the authorized form approved by the Texas Department of Insurance for that purpose.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Secs. 46-177—46-190. Reserved.

ARTICLE IV. SIGHTSEEING, CHARTER AND CHAUFFEURED LIMOUSINE SERVICES

DIVISION 1. GENERALLY

Sec. 46-191. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings assigned to them in this section, except where the context clearly indicates a different meaning.

Charter service means the transporting of passengers by charter from the same or various points of origin to specific destination(s).

Chauffeured limousine means:

a. A sedan-type luxury motor vehicle with a passenger capacity of five or

six persons (including the driver), which vehicle is either less than or equal to 15 years of age;

b. An extended-body type motor vehicle with a passenger capacity of no more than 15 persons (including the driver), which vehicle is either less than or equal to ten years of age and modified to extend its original factory wheelbase by 40 inches or more in conformity with Federal Motor Vehicle Safety Standard requirements;

c. A luxury motor vehicle that is classified in the United States Environmental Protection Agency's annual Fuel Economy Guide as a sport utility vehicle that has a passenger capacity of not less than five persons nor more than nine persons, including the driver, which shall be less than or equal to 15 years of age;

d. A passenger van, as designated by the director as such, with a passenger capacity of eight to 15 persons (including the driver), which vehicle is less than or equal to ten years of age and has a manufacturer's suggested base retail selling price of not less than $32,500.00, adjusted annually on November 1st each year based upon Consumer Price Index (CPI-U), All Urban Consumers, U.S. City Average, New Trucks, as published by the U.S. Department of Labor, excluding the cost of any manufacturer installed options or of any modifications or conversions that were made by other persons following the original assembly of the vehicle by the manufacturer, with the adjustment based upon the not seasonally adjusted data for the month of August; or

e. An antique, classic, or special interest vehicle.

For the purposes of this article, antique means a vehicle that is 25 years old or older; classic means a vehicle recognized by the Classic Car Club of America; and special interest means a vehicle that, due to limited production, outstanding design, and/or technical achievement, is of special interest. The age of the vehicle will be measured from the manufacturer model year date. The model year shall always count as the first full year. It shall be the duty of the director to make a determination as to whether or not a given vehicle is less than or equal to 15 years of age or is an antique, classic or special interest vehicle within the meaning of this article.

Chauffeured limousine service means the business of renting or leasing a chauffeured limousine, as defined in this section, including the services of a driver, to a person, solely upon his request or one acting for or on his behalf, to be used by the person or persons hiring the vehicle or under their direction and authority for the period of time the vehicle is rented or leased. Specifically excluded from this definition are the following:

a. Vehicles, and the drivers thereof, provided for use in connection with, or attending, or participating in any phase of a funeral or funeral service;

b. Taxicabs, pedicabs, jitneys, sightseeing and charter vehicles, school vehicles, and low speed shuttles permitted and licensed by the city; and

c. All vehicles operating under a contract with the city.

Extended body means that a vehicle has been modified to extend its original factory wheelbase by 40 inches or more in conformity with any applicable state or federal safety laws, standards, and regulations.

License means a sightseeing or charter service or chauffeured limousine service driver's license issued pursuant to division 2 of article I of this chapter.

Licensee means the person in physical control of a motor vehicle operated as a sightseeing or charter vehicle or a chauffeured limousine

who is the holder of a current and valid sightseeing or charter service or chauffeured limousine service license.

Livery edition vehicle means a vehicle manufactured for being used primarily to provide chauffeured limousine transportation services for hire to the general public.

Luxury motor vehicle means:

a. Any livery edition vehicle;

b. A vehicle that has a manufacturer's suggested base retail selling price of not less than $38,644.57, adjusted annually based upon Consumer Price Index (CPI-U), All Urban Consumers, U.S. City Average, New Cars, as published by the U.S. Department of Labor, excluding the cost of any manufacturer installed options or of any modifications or conversions that were made by other persons following the original assembly of the vehicle by the manufacturer. The adjustment shall be based upon the not seasonally adjusted data for the month of August and shall be effective November 1st; or

c. A vehicle designated by the director as a luxury motor vehicle.

Passenger van means a motor vehicle built on a small truck chassis that is constructed or adapted to provide a passenger seating capacity of not less than nine but not more than 15 persons, including the driver.

Permit means authorization to operate a sightseeing or charter service or a chauffeured limousine service pursuant to this article.

Permittee means any person, partnership, corporation, firm, joint venture, limited liability company, association, organization, and any other entity holding a permit issued pursuant to this article.

Sightseeing service means the transporting of passengers between points within the city and between such points and points without the city upon a route including stops at various points of public interest and providing for eventual discharge at the place at which such passengers are picked up. From such definition is specifically excluded the discharge of passengers from points other than those at which they are picked up.

Sightseeing or *charter service* means the transporting of passengers by charter between points within the city and between such points and points without the city upon a route including stops at various points of public interest and providing for eventual discharge at the place at which such passengers are picked up. From such definition is specifically excluded the discharge of passengers from points other than those at which they are picked up.

Sightseeing or *charter vehicle* means a motor vehicle with a manufacturer's seating capacity of 16 persons or more, including the driver, manufactured, certified, and operated in compliance with the minimum requirements of the Federal Motor Vehicle Safety Standards and Regulations, as amended.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 39, 10-14-2015; Ord. No. 2016-736, § 24, 10-5-2016; Ord. No. 2016-986, §§ 13, 14, 12-14-2016; Ord. No. 2019-669, § 35, 9-4-2019; Ord. No. 2021-804, § 15, 9-15-2021; Ord. No. 2023-856, §§ 2, 3, 10-18-2023; Ord. No. 2025-1050, § 11, 12-17-2025)

Secs. 46-192—46-199. Reserved.

DIVISION 2. SIGHTSEEING AND CHARTER SERVICES

Sec. 46-200. Scope.

The provisions of this division shall apply to charter and sightseeing services and permittees thereof.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-201. Permit and license required.

It shall be unlawful for any person to operate a sightseeing or charter service, or to drive or cause to be operated or driven any sightseeing motor vehicle or charter service motor vehicle

upon and over the streets of the city, until such time as the director has approved and issued a permit for such service and a license.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-202. Permit term; operations authorized.

(a) A permit for sightseeing shall be issued for a term of five years and shall authorize the permittee to operate in a manner under which persons picked up. Proof that persons carried by a permittee are discharged and leave the motor vehicle at points other than those at which they are picked up shall constitute grounds for termination of the permit under the provisions hereinafter stated for notice and hearing; A sightseeing service permittee shall wait for the passengers and return them to the point of origin.

(b) A permit for a charter service shall be issued for a term of five years and shall authorize the permittee to operate in a manner under which persons picked up at the same or various points are taken to specific destination(s). A charter service permittee may operate between points within the city and between such points and points outside the city.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 21, 10-14-2015; Ord. No. 2025-1050, § 12, 12-17-2025)

Sec. 46-203. Reserved.

Sec. 46-204. Permit application; issuance procedure.

(a) An application for a permit shall be submitted on forms to be furnished by the director and the applicant shall furnish the following information with each application, which shall be sworn to before a notary public or conform to minimum state law requirements for unsworn declarations:

(1) The name and form of business under which the service will be operated. (If a partnership or corporation, a copy of the partnership agreement or articles of incorporation must be attached.)

(2) The name, mailing address, and street address, if different, of the applicant's agent for service of legal process (which information a permittee shall keep current).

(3) A schedule showing the model, manufacturer model year date, type, make, vehicle identification number, license plate number, and mileage of each motor vehicle that the applicant proposes to place into operation and a statement as to the legal ownership of each vehicle.

(4) For a sightseeing service, a description of the sightseeing tours that the applicant proposes to furnish and a schedule of the routes proposed to be followed.

(b) An applicant for a permit under this division must:

(1) Be not less than 18 years of age.

(2) Not have been convicted of an applicable offense specified in section 1-10 of this Code unless the license is granted notwithstanding the conviction pursuant to section 1-9 of this Code.

(c) If the applicant is a partnership or association, the partners or associates, or if the applicant is a corporation, each person who is either an officer or director, shall be required to join in filing the application and all of the provisions and requirements of this chapter applicable to individual applicants shall apply to and be required of each partner, associate, officer or director. Failure of any of these persons to meet the requirements shall be grounds to deny the application of the partnership, association or corporation.

(d) Any change in associates, partners, officers, or directors of the business entity holding a permit shall require a permit amendment and must be reported to the director within ten days after the change. The new associates, partners, officers, or directors shall complete and file the forms and supply the information required of applicants for permits. The director shall consider the information supplied regarding the new or proposed associate, partner, officer, or director of the permittee, and if this examination discloses that the new or proposed person possesses the

qualifications of a person to whom a permit would be issued under the terms of this article, he shall change his records to reflect the new associate, partner, officer, or director of the permittee.

(e) Except as provided in section 46-218 of this Code, the addition, removal or substitution of any vehicle with a replacement vehicle operated pursuant to a permit shall require a permit amendment.

(f) The director shall initially review each application for issuance or amendment of a permit to determine whether the application is complete and all required information has been provided. If not, the director shall return the application to the applicant with a statement of deficiencies.

(g) The director shall review complete applications to determine whether the applicant has met all applicable requirements of this article and of other applicable provisions, including section 1-10 of this Code. If so, the director shall issue the permit without conducting a hearing. If, based upon the review, the director determines that one or more requirements may not have been met, the director shall afford the applicant the right to a hearing before acting on the application.

(h) Prior to the denial of an application, the director shall notify the applicant of the proposed grounds for denial and that the applicant may, within 15 business days following the date of deposit of the notice in the mail, request a hearing. Where the grounds are based in whole or in part upon section 1-10 of this Code, the hearing shall conform to the requirements of section 1-9 of this Code with respect to those grounds.

(i) In the event that the director approves the permit, issuance shall be subject to compliance with this article, including, but not limited to, payment of any required fees, and submission of proof of insurance.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2021-804, § 16, 9-15-2021; Ord. No. 2025-1050, § 13, 12-17-2025)

Sec. 46-205. Vehicle certification decals.

The director shall devise a system of identification for authorized vehicles and prescribe and issue a certification decal identifying each vehicle as one lawfully operated under the permit.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 22, 10-14-2015; Ord. No. 2015-997, § 22, 10-14-2015; Ord. No. 2025-1050, § 14, 12-17-2025)

Sec. 46-206. Reserved.

Sec. 46-207. Insurance requirements.

(a) Every vehicle operated under a permit issued pursuant to the provisions of this division shall at all times be covered by commercial automobile liability insurance meeting all requirements of Chapter 643 of the Texas Transportation Code.

(b) Policies issued under this section shall contain provisions for a continuing liability thereon up to the full amount thereof, notwithstanding any recovery thereon, and include an endorsement requiring 30 days' written notice of termination or cancellation to the director and an endorsement requiring ten days' written notice of non-payment to the director. In the event that a policy terminates or is cancelled without replacement, then each permit to which it pertains shall be suspended, and all sightseeing and charter service vehicles within such coverage may not be operated. If a proper replacement policy is not provided to the director on or before the tenth business day after the date of termination or cancellation of the policy, the permit shall automatically terminate.

(c) The insurance required in subsection (a) shall be issued by either a company listed as an authorized auto liability lines carrier on the Texas Department of Insurance's List of Authorized Insurance Companies or a surplus lines insurer listed on the Texas Department of Insurance's list of Eligible Surplus Lines Insurance Companies. The eligible surplus lines insurance company is required to have a Best's Rating of at least B+ and a Best's Financial Size Category of Class VI or better according to the most current edition of Best's Key Rating Guide,

Property-Casualty, United States. Proof of coverage shall be accepted only in the authorized form approved by the Texas Department of Insurance for that purpose.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2025-1050, § 15, 12-17-2025)

Sec. 46-208. Maintenance and operation of vehicles; qualifications of licensees.

(a) A permittee shall not permit or cause to be driven, and shall not drive on any street of the city any vehicle which does not comply with all of the provisions of this article. It shall be a violation of this article on the part of any permittee and licensee to fail to comply or to fail to require compliance with any of the provisions of this article.

(b) All vehicles operating as a sightseeing or charter service shall be maintained in a safe and sanitary condition and shall be thoroughly cleaned and disinfected at least once in each 24-hour period.

(c) If applicable, all vehicles operating as a sightseeing or charter service shall be equipped with rear vision mirrors, a double windshield wiper, a partition or other guard to keep passengers from standing to the left of the driver, proper headlights and taillights in good working condition, which shall be lit from one-half hour after sunset to one-half hour before sunrise, and four-wheel hydraulic or air brakes in good working condition.

(d) Every vehicle operating as a sightseeing service shall have posted in a conspicuous place in the vehicle the route to be traveled thereby and a schedule of the rates of fares.

(e) The director may at any time make tests and inspections of all vehicles operating as a sightseeing or charter service, and if the director finds any vehicle to be in an unsatisfactory condition, he shall notify the owner or operator thereof of the defects observed. The owner or operator shall immediately correct all defects to the satisfaction of the director. If the director finds any sightseeing or charter service vehicle to be unfit or unsafe for the carriage of passengers, he shall forthwith notify the operator of the sightseeing or charter service and the operator shall not thereafter cause or permit the vehicle to be operated on any street of the city until it has been made safe for the carriage of passengers. The director and any employee whom he may designate to the duty of inspection of sightseeing or charter service vehicles shall be given free and ready access to all sightseeing or charter service vehicles. Proof of a valid state inspection in the last twelve months will suffice for the purposes of this subsection in determining that the sightseeing and charter vehicle is fit and safe for the carriage of passengers.

(f) Licensees shall not smoke or use tobacco during the time they are driving vehicles that are operating as a sightseeing or charter service.

(g) A licensee shall not drive for more than 12 hours in any consecutive 24-hour period and a permittee shall not permit or cause a licensee to drive a vehicle operating as a sightseeing or charter service more than 12 hours in any consecutive 24-hour period.

(h) The doors of a vehicle operated as a sightseeing or charter service shall be securely closed at all times while the vehicle is in motion.

(i) Passengers of a sightseeing or charter service shall not be picked up or discharged in the traveled portion of any street. Licensees shall pull the vehicle to the curb and pick up and discharge the passengers on the side of the vehicle immediately against the curb.

(j) A licensee shall not permit or allow passengers or employees to stand or ride on the running board, dash board, fender or any outside portion of the vehicle, or permit any passenger to stand in such a position that the driver's vision forward or to the right front or left is blocked.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 23, 10-14-2015; Ord. No. 2025-1050, § 16, 12-17-2025)

Sec. 46-209. Schedule of fares.

Upon being issued a permit, a permittee shall file with the director a complete schedule of fares to be charged. In the event any changes are

made in the fares, the permittee shall file the changes with the director not later than 30 days before the effective date of the changes.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-210. Routes and schedules.

A permittee operating a sightseeing service shall operate its motor vehicles only over and along routes and schedules filed with and approved by the director. The permittee shall submit all proposed routes and schedules for review and approval by the director. Routes and schedules may be amended from time to time. Routes shall not be exclusive.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2025-1050, § 17, 12-17-2025)

Sec. 46-211. Annual permit fee.

(a) *Fees.* The annual fee for a permit under this division for each sightseeing or charter vehicle is stated for this provision in the city fee schedule and shall be paid in advance to the department of administration and regulatory affairs in two installments on or before January 1 and March 1 of each calendar year in amounts prescribed in the city fee schedule. In the event the permit is issued for a period of time less than one year, the fee shall be prorated, payable at the rate stated for this provision in the city fee schedule for each month or fraction thereof remaining in the calendar year, not to exceed the full annual fee. The reissuance of each certification decal that is lost, mutilated, or otherwise rendered unusable shall be provided only upon reinspection of the sightseeing or charter service vehicle.

(b) *Additional to other required fees.* The fees established in this section shall be payable in addition to any other applicable fees imposed by this Code or other ordinances of the city.

(c) In addition, before a permittee may replace a sightseeing or charter vehicle that is an electric-drive vehicle or a wheelchair accessible vehicle with a vehicle that is not an electric-drive vehicle or a wheelchair accessible vehicle, the permittee shall be required to pay, in full, the difference between the permit fee amount he paid for the electric-drive vehicle or the wheelchair accessible vehicle and the permit fee amount for the replacement vehicle.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 24, 10-14-2015; Ord. No. 2019-669, § 36, 9-4-2019; Ord. No. 2021-804, § 17, 9-15-2021)

Sec. 46-212. Statements, reports, records.

Permittees shall furnish and render to the director statements and reports incident to the operation of a sightseeing or charter service required by the director, including but not limited to records of the operation sufficient to show the amount of gross receipts during any and every monthly period.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Secs. 46-213—46-215. Reserved.

Sec. 46-216. Transfer of permit.

A permit may not be transferred.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-217. Reserved.

Sec. 46-218. Temporary certification decals.

In addition to the vehicles regularly operated by a permittee, the permittee may place one or more vehicles into use on a temporary basis from time to time to meet seasonal or unexpected needs in accordance with this subsection. Temporary certification decals shall be issued for a term of 30 consecutive calendar days to commence on the date of issuance at the fee stated for this provision in the city fee schedule per vehicle, per certification decal, upon provision to the director of proof of the identity of the vehicle to be used including verification that the vehicle is in compliance with all requirements of this division including proof that it is insured as required in section 46-207 of this Code and has been inspected and approved for use as provided in section 46-208 of this Code within twelve months preceding the date the certification decal is issued. For vehicles placed in service on a temporary basis that are less than or equal to

two years of age (manufacturer's model year date counted as first full year), proof of a valid state inspection will suffice for the requirement of section 46-208 of this Code. If the permittee's insurance policy on file with the director pursuant to section 46-207 of this Code also covers the vehicles that will be placed in service on a temporary basis, no additional proof of insurance is required.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2025-1050, § 18, 12-17-2025)

Secs. 46-219—46-229. Reserved.

DIVISION 3. CHAUFFEURED LIMOUSINE SERVICE

Sec. 46-230. Scope.

The provisions of this division shall apply to chauffeured limousine services and permittees thereof.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-231. Permit required.

(a) It shall be unlawful for any person to operate a chauffeured limousine service or to offer or agree to provide chauffeured limousine service, or to rent or lease motor vehicles, including the service of a driver, for chauffeured limousine service in the City of Houston, unless the person holds a current and valid chauffeured limousine service permit that has been issued under this division.

(b) It is an affirmative defense to prosecution under this section that the chauffeured limousine is not being operated for the purpose of serving any passenger in exchange for consideration or the trip originated in a jurisdiction outside the city in which the chauffeured limousine is operated in compliance with all applicable laws. The provisions of this section shall not be construed to authorize a chauffeured limousine from another jurisdiction to originate any passenger service trip within the city.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-232. Annual permit fee; other fees and taxes to be paid.

(a) *Required.* The annual fee for a permit under this division for each limousine is stated for this provision in the city fee schedule shall be paid in advance to the department of administration and regulatory affairs in two installments on or before January 1 and March 1 of each calendar year in amounts prescribed in the city fee schedule. In the event the permit is issued for a period of time less than one year, the fee shall be prorated, payable at the rate stated for this provision in the city fee schedule for each month or fraction thereof remaining in the calendar year, not to exceed the full amount of the annual fee. The reissuance of any certification decal that is lost, mutilated, or otherwise rendered unusable shall be provided only upon reinspection of the limousine.

(b) *Additional fees.* The fees established in this section shall be payable in addition to any other applicable fees imposed by this Code or other ordinances of the city.

(c) In addition, before a permittee may replace a limousine that is an electric-drive vehicle or a wheelchair accessible vehicle with a vehicle that is not an electric-drive vehicle or a wheelchair accessible vehicle, the permittee shall be required to pay, in full, the difference between the permit fee amount he paid for the electric-drive vehicle or the wheelchair accessible vehicle and the permit fee amount for the replacement vehicle.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 25, 10-14-2015; Ord. No. 2019-669, § 37, 9-4-2019; Ord. No. 2021-804, § 18, 9-15-2021; Ord. No. 2025-1050, § 19, 12-17-2025)

Sec. 46-233. Application for permit—Form.

(a) An application for a permit shall be submitted on forms to be furnished by the director and the applicant shall furnish the following information with each application, which shall be sworn to before a notary public or conform to minimum state law requirements for unsworn declarations:

(1) The name and form of business under which the service will be operated (If a

partnership or corporation, a copy of the partnership agreement or articles of incorporation must be attached.);

(2) The name, mailing address, and street address, if different, of the applicant's agent for service of legal process (which information a permittee shall keep current);

(3) A schedule showing the model, manufacturer model year date, type, make, vehicle identification number, license plate number, and mileage of each motor vehicle, and a statement as to the legal ownership of each vehicle proposed to be placed into operation as a chauffeured limousine;

(4) Documentary evidence from an insurance company indicating a willingness to provide insurance or proof of current coverage of insurance as required in section 46-238 of this Code; and

(5) Any additional information as requested by the director for the administration of this division.

(b) If the applicant is a partnership or association, the partners or associates, or if the applicant is a corporation, each person who is either an officer or a director, shall be required to join in filing the application and all of the provisions and requirements of this chapter applicable to individual applicants shall apply to and be required of each partner, associate, officer, or director. Failure of any of these persons to meet the requirements shall be grounds to deny the application of the partnership, association or corporation.

(c) Any change in associates, partners, officers, directors, or shareholders of the business entity holding a permit shall require a permit amendment and must be reported to the director within ten days after the change. The new associates, partners, officers, directors, or shareholders shall complete and file the forms and supply the information required of applicants for permits. The director shall consider the information supplied regarding the new or proposed associate, partner, officer, or director of the permittee, and if this examination discloses that the new or proposed person possesses the qualifications of a person to whom a permit would be issued under the terms of this article, the director shall change his records to reflect the new associate, partner, officer, or director of the permittee.

(d) Except as provided in section 46-235(b) of this Code, the addition, removal, or substitution of any vehicle with a replacement vehicle pursuant to a permit shall require a permit amendment.

(e) In addition to any other information required to be provided under this section, each applicant for issuance, renewal, or amendment of a permit shall be required to advise the director in writing upon the application form whether the applicant desires privileges to operate the limousine(s) covered by the permit upon the property of city airports.

(f) The director shall cause each permit that is issued, renewed, or amended and any certification decals or other evidence of authorization to operate a chauffeured limousine to indicate whether or not the permittee and vehicles have city airport privileges under this subsection.

(g) It shall be unlawful for any person to operate or cause to be operated any chauffeured limousine that does not have city airport privileges under this subsection upon any city owned or operated airport. Additionally, violation of this subsection shall be grounds for revocation or suspension of the offender's permit and license. (Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-234. Permit issuance procedure.

(a) The director shall initially review each application for issuance or amendment of a permit to determine whether the application is complete and all required information has been provided. If not, the director shall return the application to the applicant with a statement of deficiencies.

(b) The director shall review complete applications to determine whether the applicant has met all applicable requirements of this article and of other applicable provisions, including section 1-10 of this Code. If so, the director shall

issue the permit without conducting a hearing. If, based upon the review, the director determines that one or more requirements may not have been met, the director shall afford the applicant the right to a hearing before acting on the application.

(c) Prior to the denial of an application, the director shall afford the applicant notice of the proposed grounds for denial and that the applicant may, within 15 business days following the date of deposit of the notice in the mail request a hearing. Where the grounds are based in whole or in part upon section 1-10 of this Code, the hearing shall conform to the requirements of section 1-9 of this Code with respect to those grounds.

(d) In the event that the director approves the permit, issuance shall be subject to compliance with this article, including, but not limited to, payment of any required fees, inspection of vehicles to be utilized, and submission of proof of insurance.

(e) A permit does not entitle the permittee to act as the driver of covered vehicles. A separate license is required for that purpose pursuant to the applicable provisions concerning the issuance of vehicle for hire driver's licenses contained in this chapter.

(f) No chauffeured limousine for which a permit has been issued under this article shall be operated by anyone except the permittee or an employee of the permittee or other person who may be operating the vehicle under a written agreement specifically incorporating therein any rules, regulations, and conditions as may be reasonably required by the director to ensure compliance with applicable laws and regulations. The permittee shall be responsible for anyone operating under his permit whether the operator is an employee or other person operating under a written agreement. Any person driving or operating a chauffeured limousine upon the streets or other public property of the city is presumed to be an employee of the permittee or to have entered into a written agreement with the permittee.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-235. Permit—Term; renewal; temporary vehicles.

(a) Permits shall be issued for a term of five years. Permittees desiring to have reissuance of their permit shall, at least 60 days prior to the expiration of the permit, file with the director a written application for a renewal of their permit. Except as otherwise expressly stated, renewals shall be subject to the same requirements set forth in this article for issuance of new permits. A permit shall be valid only for the vehicles listed thereon and any vehicles reported under an amendment to the application filed pursuant to section 46-233 of the Code, which vehicles must also pass inspection under section 46-236 of the Code.

(b) In addition to the vehicles regularly operated by a permittee, the permittee may place one or more vehicles into use on a temporary basis from time to time to meet seasonal or unexpected needs in accordance with this subsection. The director shall issue temporary certification decals for a term of 30 consecutive calendar days to commence on the date of issuance at the fee stated for this provision in the city fee schedule per vehicle, per certification decal, upon the permittee's provision to the director of proof of the identity of the vehicle to be used. Proof of identity shall include verification that the vehicle is in compliance with all requirements of this division and proof that it is insured as required in section 46-238 of this Code and has been inspected and approved for use as provided in section 46-236 of this Code within six months preceding the date the temporary certification decal is issued. If the permittee's insurance policy on file with the director pursuant to section 46-238 of this Code also covers the vehicles that will be placed in service on a temporary basis, no additional proof of insurance is required.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 26, 10-14-2015)

Sec. 46-236. Inspection fee; maintenance equipment.

(a) Each permittee shall cause each limousine operated under his permit to be submitted for inspection by the director from time to time at

intervals not exceeding 12 months as more particularly provided in section 46-237 of this Code. The director shall inspect each limousine before the permittee initially places the limousine into service and thereafter before January 1st of each year. The inspection compliance decal shall be affixed by the director to the windshield of the vehicle. It shall be unlawful to drive or to cause to be driven any limousine permitted under this division that does not have a current inspection compliance decal affixed by the director.

Each permittee shall pay to the director an inspection fee stated for this provision in the city fee schedule for the inspection services described in this section for each limousine operated pursuant to this division.

(b) All vehicles shall be maintained in a safe and sanitary condition at all times and shall always be maintained in good working condition.

(c) All vehicles shall be air-conditioned and equipped with interior and exterior rearview mirrors, windshield washers and two-speed windshield wipers, proper headlights and taillights that shall be in operation from one-half hour before sunset to one-half hour after sunrise when the limousine is in operation. The inspection shall include, but not be limited to, the following items: Vehicle identification number; date of purchase; foot brakes; parking brake, headlights; taillights; brake lights; turn signal lights; license plate lights; horn; two-speed windshield wipers; interior and exterior rear vision mirrors; air conditioner; tires; muffler and tail pipe; condition of the body; condition of the fenders; condition of the paint; condition of the interior; state license plates; speedometer readings; mileage; and steering. Brakes, seat belts, and all other safety, noise and antipollution requirements specified by the United States Government and the state shall be complied with at all times. The brakes shall always be kept in good working condition.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 27, 10-14-2015; Ord. No. 2025-1050, § 20, 12-17-2025)

Sec. 46-237. Tests and inspections of limousine vehicles.

The director may at any time, and shall at least once each year, make tests and inspections of all limousine vehicles then in operation to assure that they are in compliance with the terms of section 46-236 of this Code. If upon inspection the director finds a limousine vehicle is not in compliance with any of the requirements therein set out, he shall notify the permittee of the defects observed. The permittee shall immediately correct the defects. Any vehicle that is the subject of the notification shall not be operated on any street of the city until it has been reinspected and determined to be in compliance with the requirements of inspection. The director shall be given access to the vehicles at all reasonable times. Failure to submit a vehicle requested for inspection by the director shall be cause for suspension of the operation of the vehicle until such time the vehicle is submitted for inspection and it is determined that the vehicle is in compliance with the terms of section 46-236 of this Code.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 42, 10-14-2015; Ord. No. 2016-986, § 15, 12-14-2016)

Sec. 46-238. Insurance requirements.

(a) Notwithstanding any other provision of this article to the contrary, no permit shall become effective nor shall chauffeured limousine services be provided until the person to whom the permit is granted has filed with the director the requisite proof of insurance insuring the general public against any loss or damage that may result to any person or property from the operation of chauffeured limousine vehicles covered by his permit.

(b) The insurance required in subsection (a) shall be in a form of commercial automobile liability coverage with limits of not less than $500,000.00 combined single limit per accident issued by either a company listed as an authorized auto liability lines carrier on the Texas Department of Insurance's List of Authorized Insurance Companies or a surplus lines insurer listed on the Texas Department of Insurance's List of Eligible Surplus Lines Insurance Companies. The eligible surplus lines insurance company is required to have a Best's Rating of at least B+ and a Best's Financial Size Category of Class VI

or better according to the most current edition of Best's Key Rating Guide, Property-Casualty, United States.

(c) The insurance shall be for the protection of the passengers of limousine vehicles as well as for the general public. The required insurance shall name the city as an additional insured. The policies issued under this section shall contain a provision for a continuing liability thereon up to the full amount thereof, notwithstanding any recovery thereon, and include an endorsement requiring 30 days' written notice of termination or cancellation to the director and an endorsement requiring ten days' written notice of nonpayment to the director.

(d) If any insurer desires to be released from any insurance policy filed under this section, he may do so by giving written notice to the director at least 30 days before he desires to be released from liability. The director shall thereupon give written notice to the permittee and demand that such permittee furnish evidence of new insurance obtained before the expiration of the policy.

(e) If any policy is cancelled as herein provided, or expires, and no new policy is filed by the permittee before the cancellation or expiration of the original insurance, the permit shall automatically be suspended, and the permittee shall discontinue the operation of the affected vehicles within the city. If a proper replacement policy is not provided to the director on or before the tenth business day after the date of termination or cancellation of the policy, the license shall automatically terminate.

(f) Proof of coverage shall be accepted only in the authorized form approved by the Texas Department of Insurance for that purpose.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2019-962-1, § 2, 12-4-2019; Ord. No. 2025-1050, § 21, 12-17-2025)

Sec. 46-239. License; other driver requirements.

(a) A person shall not operate a limousine upon the streets of the city unless he holds a current and valid license.

(b) At all times while in service, whether physically operating a limousine, assisting passengers, or performing other duties attendant to the provision of limousine service, it shall be the duty of the licensee to conspicuously display his license upon his upper chest. The license may be attached to the driver's outer shirt or jacket pocket or lapel, suspended from a necklace or displayed in an equivalent manner on the driver's outer garments. In any prosecution under this subsection, it shall be presumed that the driver was not in possession of a current and valid license if the license card was not conspicuously displayed as aforesaid.

(c) A licensee shall not drive for more than 12 hours in any consecutive 24-hour period and a permittee shall not permit or cause a licensee to drive a chauffeured limousine more than 12 hours in any consecutive 24-hour period.

(d) Each licensee shall, while operating a permittee's limousine, wear business attire (a dress shirt and matching slacks, dress, or skirt or a chauffeur's uniform with a company-issued polo or dress shirt or blouse. Additionally, each licensee shall be authorized to wear other appropriate attire prescribed by the director.

(e) It is an affirmative defense to prosecution under this section that the person driving a limousine had been engaged by the permittee to perform repairs or servicing of the vehicle, and that the vehicle was not in service at the time of the alleged offense.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2014-914, § 8, 10-8-2014; Ord. No. 2023-856, § 4, 10-18-2023; Ord. No. 2025-1050, § 22, 12-17-2025)

Sec. 46-240. Written or electronic vehicle rental agreements.

(a) A written or electronic vehicle rental agreement shall be entered into by the permittee and any person renting or leasing any chauffeured limousine. All vehicle rental agreements shall include, among other things: the name(s) of the permittee and the name of the assigned licensee; the name(s) of the passenger(s); the date and time of hiring; the scheduled pickup address or location; the date and time of release of the

vehicle; and the rates applicable to the vehicle. In addition to the foregoing information, all vehicle rental agreements for service originating at city airports shall also include the airline name, flight number, and scheduled date and time of arrival. The permittee shall deliver a copy of the vehicle rental agreement to the renting or leasing party at the time the vehicle is released or, if a monthly statement is submitted, at that time. A completed copy of the bill submitted showing the total fare charged and received shall be retained by permittee for a period of two years from the date of contract. Upon request, the permittee shall make available to the director completed copies of the vehicle rental agreements retained within the two-year period.

(b) A copy of the vehicle rental agreement form shall be filed with the director who shall approve the form before the permittee may operate his vehicles under this article.

(c) The licensee shall maintain a vehicle rental agreement at all times while operating and providing services and shall further upon request, present the vehicle rental agreement to the director or other person authorized to enforce this chapter.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2016-736, § 24, 10-5-2016)

Sec. 46-241. Operation from permittee's usual place of business, etc.

(a) A permittee shall operate only from his usual place of business; provided, however, if any permittee has a written agreement authorizing the permittee to operate from a hotel or motel, that place shall be considered a usual place of business when a copy of the agreement is filed with the director.

(b) The permittee shall not operate out of a house or store or maintain any of his vehicles at any place of public accommodation unless the limousine is at that time hired. It shall be the duty of each licensee to present a copy of the rental agreement required under section 46-240 of this Code to any administration and regulatory affairs department employee or police officer upon request to evidence compliance with this section. If the licensee fails to produce a rental agreement evidencing compliance it shall be presumed in any prosecution under this subsection that the licensee's presence at the public place of accommodation was unlawful.

(c) The licensee shall not approach potential customers in any public place for the purpose of soliciting their business, and a chauffeured limousine shall only display the permittee's company name on the exterior of the vehicle; provided however, a passenger van may display the company name, company logo, and company telephone number on the outside of the van.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2022-387, § 6, 5-18-2022; Ord. No. 2025-1050, § 23, 12-17-2025)

Sec. 46-242. Operation upon city airport property.

No licensee shall operate a limousine upon the property of any city airport except for the purpose of discharging passengers whose trips originated elsewhere or for the purpose of rendering service to deplaning passengers who wish to be transported from the airports. No licensee shall park or stand his limousine upon airport property except for the purpose of actually loading or unloading passengers in accordance with a rental agreement executed under section 46-240 of this Code, nor shall any licensee enter or remain upon airport property unless his limousine has permanently affixed on the windshield an automatic vehicle identification tag in accordance with policies and procedures promulgated by the Director of the Houston Airport System. It shall be the duty of each licensee to present a copy of the rental agreement instrument required under section 46-240 of this Code to any Houston Airport System employee, administration and regulatory affairs department employee, or peace officer upon request to evidence compliance with this section. If the licensee fails to produce the rental agreement evidencing compliance, it shall be presumed in any prosecution under this subsection that the licensee's presence upon the airport property was unlawful.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2019-669, § 38, 9-4-2019)

Sec. 46-243. Schedule of fares.

Permittees shall file with the director a schedule of fares or rates to be charged. Permittees shall advise the director of any change in its schedule of fares or rates within five calendar days of the change on a form prescribed by the director.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-244. Reserved.

Sec. 46-245. Transfer of permit.

A permit may not be transferred.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Secs. 46-246—46-275. Reserved.

ARTICLE V. SCHOOL VEHICLES

DIVISION 1. GENERALLY

Sec. 46-276. Definitions.

When used in this article, the following words and terms shall have the meanings assigned to them in this section, unless the context of their usage clearly indicates another meaning:

License means a school vehicle driver's license issued pursuant to division 2 of article I of this chapter.

Licensee means any person in physical control of a school vehicle who is the holder of a current and valid school vehicle driver's license.

Permit means authorization to operate a school vehicle service pursuant to this article.

Permittee means any person, partnership, corporation, firm, joint venture, Limited Liability Company, association, organization and any other entity holding a permit issued pursuant to this article.

School means a public or private facility offering any one or more of: (i) day care or preschool programs, (ii) kindergarten, (iii) regular grades 1 through 12 or (iv) alternative programs for students under 21 years of age who have physical or learning disabilities or other special needs. The term also includes governmentally-sponsored job training centers, regardless of the age of persons attending the centers.

School vehicle means any motorized vehicle, whether a conventional sedan, station wagon, van, bus or other type, with a manufacturer's rated seating capacity of not more than 15 passengers, including the driver, that is used for hire to transport students to or from any school that is situated in the city or that is used under the sponsorship of the school to transport students to or from any school-sponsored activity of a school that is situated in the city. The term excludes any vehicle owned or leased by the person who operates the school and operated by that person's employees for the primary purpose of providing transportation to students of the school, and any intrastate or interstate motor bus operating under Texas Department of Transportation or federal licensing jurisdiction.

School vehicle service means the business of transporting passengers for hire by means of a school vehicle. Specifically excluded from this definition are:

(1) Vehicles used in connection with any phase of a funeral or funeral service;

(2) Taxicabs, pedicabs, jitneys, sightseeing and charter vehicles, chauffeured limousines, and low speed shuttles permitted and licensed by the city; and

(3) Vehicles operating under a contract with the city.

State certificate means a current and valid certificate pursuant to Chapter 14, Part 1, Title 37 of the Texas Administrative Code evidencing that the holder is enrolled in or has completed a driver training course in school bus safety education that has been approved jointly by the Texas Board of Education and the Texas Department of Public Safety. The term additionally means and includes a current and valid driver's license of a class that

authorizes the operation of a school vehicle of the largest capacity that the driver will be assigned to drive.

Student means a person who is enrolled in a school.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 39, 10-14-2015; Ord. No. 2019-669, § 39, 9-4-2019)

Sec. 46-277. Reserved.

Sec. 46-278. Article is cumulative.

This article is cumulative of all other applicable laws and ordinances. Without limitation, this article is expressly made cumulative of the other articles of this chapter. No vehicle operated under a license or permit issued under another article of this chapter may be utilized as a school vehicle except by additionally complying with this article.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Secs. 46-279—46-285. Reserved.

DIVISION 2. PERMITS AND LICENSES

Sec. 46-286. Permit and license required.

(a) It shall be unlawful for any person to operate or cause to be operated any school vehicle service unless a permit has been issued for the operation of the school vehicle service under this article.

(b) It shall be unlawful for any person to act as a licensee unless the person receives a license and is designated as a licensee on the permit that pertains to that school vehicle. It is a defense to prosecution under this subsection that the vehicle was not being used for the transport of any student at the time of the alleged offense.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-287. Permit applications.

(a) Each person desiring to obtain a permit shall make application on forms provided by the director and shall include the information requested by the director for implementation of this article. The director shall initially review each application for issuance or amendment of a permit to determine whether the application is complete and all required information has been provided. If not, the application shall be returned, and the applicant shall be so advised. The application shall be completed by and, if granted, issued in the name of the person who owns the entity that will operate the school vehicles. A nonrefundable application process fee in an amount stated for this provision in the city fee schedule shall be payable upon the filing of each application. Each application shall be accompanied by:

(1) A list of vehicles proposed to be utilized;

(2) A list of the licensees proposed to operate pursuant to the permit;

(3) A copy of each licensee's state certificate;

(4) Evidence of compliance with any qualifications established in this article and any other relevant information that may be requested by the director; and

(5) Evidence that the applicant has a place of business within the metropolitan area from which the applicant's school vehicle service will be operated and that such use of the location is in compliance with any applicable deed restrictions.

(b) Except where otherwise provided in this article, licenses for school vehicles shall be issued in a manner consistent with the requirements established in division 2 of article I of this chapter.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-288. Review.

(a) Following review of the application, the director shall notify the applicant of intent to issue the permit unless:

(1) The applicant or any proposed licensee is determined to be unfit in accordance with the criteria of section 1-10 of this Code following a hearing under section 1-9 of this Code;

(2) The applicant fails to demonstrate that each proposed licensee has a state certificate;

(3) The applicant, if a natural person, is not yet 18 years old; or

(4) Any information provided in the application was materially incomplete or false.

(b) In the event that the application is denied, the applicant shall be given written notice of each reason for the denial. If the application is denied in whole or in part upon the basis of first criterion specified above, the applicant shall be entitled to appeal the decision regarding the first criterion in the manner provided by the applicable state law. If the application is denied in whole or in part on the basis of any of criteria (2) through (6), above, then the applicant may request a hearing regarding the denial under those criteria by submitting a written notice of appeal to the director within 15 business days following the date that notice of the director's decision is deposited in the United States Mail, addressed to the applicant. The director shall cause an informal hearing to be conducted on the matter by a disinterested hearing officer who shall render a decision within 30 business days from the date of the filing of the appeal. In the hearing, the burden shall be upon the applicant to demonstrate that he is entitled to the issuance of the permit.

(c) If the application is approved, the actual permit shall not be issued until the applicant has provided proof of vehicle ownership for each school vehicle, caused each school vehicle to be inspected, and provided proof of insurance for each school vehicle as required under sections 46-290, 46-292 and 46-293 of this Code, and has made payment of the annual permit fee prescribed in section 46-289 of this Code.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2021-804, § 19, 9-15-2021; Ord. No. 2025-1050, § 24, 12-17-2025)

Sec. 46-289. Annual permit fee.

(a) There is hereby assessed an annual fee which shall be paid by each permittee in advance to the department of administration and regulatory affairs in two installments on or before November 1 and February 1 of each calendar year.

(b) The amount of the fee is stated for this provision in the city fee schedule. There shall be no fee for replacement of a vehicle with another vehicle of equivalent capacity. In the event that a permit is issued after March 1, or in the event that an additional vehicle is placed into service after March 1, then an amount equal to ½ of the foregoing fees shall be payable for the balance of the annual fee period
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 28, 10-14-2015; Ord. No. 2019-669, § 40, 9-4-2019)

Sec. 46-290. Vehicle inspection.

(a) It shall be unlawful for any licensee or permittee to drive or cause to be driven any school vehicle while in service for the transportation of any student, unless the vehicle has been inspected as required in this section or inspected and permitted by the Texas Department of Transportation.

(b) Each vehicle shall be inspected before it is initially placed into service and thereafter during October of each year by the director at such location as the director may specify. The director shall approve the vehicle if he determines that:

(1) The vehicle has a current Texas registration and required stickers for both safety and air quality, if applicable;

(2) That the vehicle is marked as provided in section 46-301 of this Code;

(3) The vehicle is in generally sound working condition with no apparent safety-related defects and has a functioning speedometer and odometer;

(4) The vehicle has a lap or lap/shoulder seat belt for the driver and for each passenger seating space to the extent required by state law; and

(5) The vehicle has no seats that have been added in excess of the manufacturer's specifications.

(c) Upon the satisfactory completion of the inspection, the director shall issue and permanently affix a certification decal to the windshield of the vehicle. In any prosecution under this section, it shall be presumed that a vehicle has not been inspected as required in this section unless it has a current and valid certification decal affixed thereto.

(d) Replacement certification decals shall only be provided upon reinspection of the vehicle.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2025-1050, § 25, 12-17-2025)

Sec. 46-291. Permit and license terms; licensees and vehicles.

(a) A permit shall be valid for five years from the date of its issuance. A license shall be valid for three years from the date of its issuance. A permit shall be valid only for the operation of the school vehicles designated thereon and operated by the licensees designated in the application, provided that each licensee designated continues to maintain a current and valid state certificate. No permittee shall suffer or permit the driving of any school vehicle while in service for the transportation of any student by a person not designated as a licensee on the application. It shall also be the duty of each permittee to ensure that no licensee continues to operate any school vehicle in the event that the licensee's state certificate expires without renewal or is revoked or suspended by the state.

(b) School vehicles may be added to or deleted from a permit by filing an amended application listing the vehicles to be added or deleted and providing proof of insurance and ownership for vehicles to be added as specified in sections 46-292 and 46-293 of this Code. Added vehicles may not be placed into service until they have been inspected and certified in accordance with section 46-290 of this Code. It shall be the duty of the permittee to return the certification decal or remnants thereof for any vehicle that is removed from the permittee's authorized fleet.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2019-669, § 41, 9-4-2019; Ord. No. 2025-1050, § 26, 12-17-2025)

Sec. 46-292. Insurance.

(a) Each school vehicle operated by a permittee shall be covered by liability insurance meeting all requirements of Chapter 643 of the Texas Transportation Code.

(b) The policy must be issued by either a company listed as an authorized auto liability lines carrier on the Texas Department of Insurance's List of Authorized Insurance Companies or a surplus lines insurer listed on the Texas Department of Insurance's List of Eligible Surplus Lines Insurance Companies. The eligible surplus lines insurance company is required to have a Best's Rating of at least B+ and a Best's Financial Size Category of Class VI or better according to the most current edition of Best's Key Rating Guide, Property-Casualty, United States. Additionally, the policy must include an endorsement requiring 30 days' written notice of termination or cancellation to the director and an endorsement requiring ten days' written notice of non-payment to the director. In the event that a policy terminates or is cancelled without replacement, then the permit to which it pertains shall be suspended, and no school vehicle may be operated under the permit. If a proper replacement policy is not provided to the director on or before the tenth business day after the date of termination or cancellation of the policy, the permit shall automatically terminate.

(c) Proof of the insurance required in this section shall be accepted only in the authorized form approved by the Texas Department of Insurance for that purpose.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 29, 10-14-2015; Ord. No. 2025-1050, § 27, 12-17-2025)

Sec. 46-293. Ownership of vehicles, use of permits.

(a) Each school vehicle must be registered to or leased on a long-term basis of at least a year to the permittee who operates the vehicle, a copy of which title or lease shall be provided to the director.

(b) It is the express intent of the city council in establishing the requirements of this section to ensure that permittees are fully responsible

for the maintenance and operation of their school vehicles and to avoid any sort of scheme or artifice in which school vehicles are operated by persons who "lease" permits or drive vehicles as "independent contractors." The director shall promulgate any regulations that are necessary to carry out this section. Without limitation, the regulations may require that each permittee make his drivers' payroll records available for inspection and copying by the director to verify compliance.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-294. Transfer, non-exclusive.

(a) A permit is personal to the permittee to whom it is issued and may not be sold, transferred or conveyed by operation of law or otherwise.

(b) Each permit is non-exclusive, and no limits or restrictions shall exist upon the number of school vehicles that may be authorized to operate pursuant to a permit in accordance with all applicable requirements of this article.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Secs. 46-295—46-300. Reserved.

DIVISION 3. OPERATING RULES

Sec. 46-301. Marking of vehicles.

Each school vehicle shall be conspicuously marked on the right and left sides and upon the rear with the name of the permittee and the permittee's local telephone number. The information shall be in characters at least three inches high and having a brush stroke width of at least ⅜ of an inch.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-302. Contracts required.

Each permittee under this article shall have a contract in writing authorizing the carriage of each student who is transported.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-303. Picking up and delivering students.

Each licensee shall ensure that students are loaded and offloaded in a safe manner that does not invite hazardous exposure to traffic or other hazards.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2025-1050, § 28, 12-17-2025)

Sec. 46-304. Standees, seat belts.

(a) To the extent required by state law, each school vehicle shall be equipped with a functioning seat belt for each passenger seating space.

(b) It shall be unlawful for a licensee to allow any greater number of persons to be on board the vehicle than the seating capacity of spaces.

(c) It shall be the duty of a licensee to exercise reasonable caution to ensure that the vehicle is not in motion at any time when any person is not seated and does not have his seat belt attached, if seatbelts are required by state law.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Secs. 46-305—46-320. Reserved.

ARTICLE VI. JITNEYS

DIVISION 1. GENERALLY

Sec. 46-321. Definitions.

When used in this article, the following words and terms shall have the meanings assigned to them in this section, unless the context of their usage clearly indicates another meaning:

Jitney means a motorized passenger vehicle having a manufacturer's rated seating capacity of not less than nine nor more than 15 persons including the driver, that is operated in a zone carrying passengers from place to place in exchange for a fee.

Jitney service means the business of renting, leasing, or owning a "jitney," as defined in this section, including the services of a driver,

for the use and convenience of the general public. Specifically excluded from this definition are the following:

(1) Vehicles, and the drivers thereof, provided for use in connection with, or attending, or participating in any phase of a funeral or funeral service;

(2) Taxicabs, pedicabs, sightseeing and charter vehicles, chauffeured limousines, and low speed shuttles permitted and licensed by the city; and

(3) All vehicles operating under a contract with the city.

License means a current and valid jitney driver's license issued pursuant to division 2 of article I of this chapter.

Licensee means any person who is the holder of a current and valid jitney driver's license.

Permit means a current and valid jitney permit issued under division 2 of this article.

Permittee means any person, entity, business, partnership, joint venture, or corporation that holds a current and valid permit to operate a jitney service issued under division 2 of this article.

Zone means the zone for a jitney, as filed with the director in accordance with section 46-340 of this Code.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 39, 10-14-2015; Ord. No. 2016-736, §§ 26, 27, 10-5-2016; Ord. No. 2019-669, § 42, 9-4-2019)

Sec. 46-322. Reserved.

Sec. 46-323. Article is cumulative.

This article is cumulative of all other applicable laws and ordinances. Without limitation, this article is expressly made cumulative of division 3 of article II of chapter 9 of this Code. The director shall not approve a zone that involves the operation of a jitney upon any airport terminal complex unless the permittee has first obtained an airport use permit for use of that jitney within that zone.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2016-736, § 28, 10-5-2016)

Sec. 46-324. Reserved.

Editor's note—Ord. No. 2015-997, § 30, adopted October 14, 2015, repealed § 46-324 in its entirety. Formerly said section pertained to Exception for existing permits and derived from Ord. No. 2014-754, § 2(Exh. A), 8-6-2014.

Secs. 46-325—46-330. Reserved.

DIVISION 2. LICENSES AND PERMITS

Sec. 46-331. Permit required.

(a) It shall be unlawful for any person to operate a jitney service unless a permit has been issued for the operation of the jitney service under this article.

(b) Each applicant for a permit required by this division must:

(1) Have no conviction of an offense stated in subsection (c) of section 1-10 of this Code;

(2) Identify the make, model, manufacturer's rated seating capacity and vehicle identification number for each vehicle the applicant desires to receive a permit for and operate as a jitney;

(3) Be 18 years of age or older, if a natural person;

(4) Provide evidence that the applicant has a place of business within the metropolitan area from which the applicant's jitney service will be operated and that such use of the location is in compliance with any applicable deed restrictions;

(5) Hold a current and valid class A, B, or C Texas driver license; and

(6) Provide any other information reasonably requested by the director for administration of this article.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2014-914, § 9, 10-8-2014; Memorandum of 1-28-2015; Ord. No. 2021-804, § 20, 9-15-2021; Ord. No. 2025-1050, § 29, 12-17-2025)

Sec. 46-332. License required.

It shall be unlawful for any person to drive a jitney unless the person holds a license issued pursuant to under this chapter.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-333. Fees.

(a) There shall be a nonrefundable application processing fee in the amount stated for this provision in the city fee schedule payable upon the filing of each application for one or more permits, regardless of the number of permits requested.

(b) In addition to the application processing fee provided in subsection (a) of this section, an annual permit fee shall be payable in the amount stated for this provision in the city fee schedule for each jitney before it is placed into service and annually thereafter as provided in section 46-336 of this Code.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-334. Permit application.

(a) Each person desiring to obtain one or more permits shall make application on forms provided by the director and shall include the information requested by the director for implementation of this article. The director shall initially review each application for issuance or amendment of a permit to determine whether the application is complete and all required information has been provided. If not, the application shall be returned, and the applicant shall be so advised.

(b) Upon notification by the director, each permit applicant (including the proprietor if a proprietorship, each partner if a partnership, or each corporate officer or director if a corporation) shall present himself at the location identified by the director for identification and fingerprinting to determine if he has been convicted of any applicable offense(s) as set forth in subsection (c) of section 1-10 of this Code. If so, the director shall follow the procedures set forth in section 1-9 of this Code and conduct a hearing if timely requested.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-335. Review.

(a) Following review of the application, the director shall provide the applicant with written notification of the approval or denial of the requested permit(s).

(b) The submission of any false information or a materially incomplete application, including but not limited to an applicant's failure to provide any other information reasonably requested by the director, shall be immediate grounds for denial of the application. In the event that the application is denied, the applicant shall be given written notice of each reason for the denial. The applicant shall be entitled to appeal the decision if the application is denied in whole or in part upon section 1-10 of this Code. Notice of denial in whole or in part upon section 1-10 of this Code shall comply with section 1-9 of this Code and applicable state laws. If the application is denied in whole or in part on the basis of any other criteria stated in sections 46-331 and 46-332 of this Code, the applicant may request a hearing regarding the denial by submitting a written notice of appeal to the director within 15 business days following the date that notice of the director's decision is deposited in the United States Mail, addressed to the applicant. The director shall cause an informal hearing to be conducted on the matter by a disinterested hearing officer who shall render a decision within 30 business days from the date of the filing of the appeal. In the hearing, the burden shall be upon the applicant to demonstrate that he is entitled to the issuance of the permit.

(c) If the reason for the denial of an application is curable, the director shall allow the applicant, upon the applicant's request, to submit an amendment within the time allowed in subsection (b) for an appeal, in lieu of filing of an

appeal. If the application is again denied, the applicant shall still be entitled to file an appeal within 15 days following the date that notice of the director's decision regarding the amended application is deposited in the United States Mail, addressed to the applicant.

(d) Following approval of an application for one or more permits, the actual permits shall not be issued until the applicant has provided the make, model, manufacturer's seating capacity and vehicle identification number of each jitney, if not provided with the application, and also has paid the annual fee, obtained a certification decal, provided proof of insurance, provided proof of ownership or lease and filed zone and rate data for each jitney in a manner consistent with sections 46-336 through 46-340 of this Code.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2016-736, § 29, 10-5-2016)

Sec. 46-336. Annual permit fee.

(a) There is hereby assessed the annual permit fee stated for this provision in the city fee schedule per jitney, which shall be paid in advance to the department of administration and regulatory affairs on or before June 1 and September 1 each year. In the event that a permit is issued after December, then an amount equal to ½ of the foregoing fees shall be payable for the balance of the annual fee period.

(b) Except for the vehicle inspection fee provided in section 46-337 of this Code, there shall be no additional fee for replacement of a jitney with another jitney.

(c) Reserved.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 40, 10-14-2015; Ord. No. 2019-669, § 43, 9-4-2019; Ord. No. 2025-1050, § 30, 12-17-2025)

Sec. 46-337. Vehicle inspection; fee.

(a) It shall be unlawful for any person to drive or operate or cause to be driven or operated any jitney, unless the jitney has been inspected as required in this section and has a current and valid certification decal affixed thereto. There shall hereby be a non-refundable vehicle inspection fee stated for this provision in the city fee schedule per jitney. All jitneys shall be maintained in a safe and sanitary condition and shall be thoroughly cleaned and disinfected at least once in each 24-hour period.

(b) Each jitney shall be inspected before it is initially placed into service and thereafter before June 1 of each year by the director at such location as the director may specify. The director shall approve the jitney if he determines that:

(1) The jitney has a current Texas registration for both safety and air quality, if applicable;

(2) The jitney is of the approved color scheme and is marked as provided in this article;

(3) The jitney is in generally sound working condition with no apparent safety-related defects, including inspection or testing of the speedometer, odometer, horn, windshield wipers, mirrors, steering, service brake, parking brake, tires, exhaust system, high beam indicator, tail lamp, stop lamps, license plate lamp, rear reflectors, turn signal lamps and headlamps;

(4) The jitney has a lap or lap/shoulder seat belt for the driver and for each passenger seating space to the extent that the vehicle was so equipped by the manufacturer;

(5) The jitney has no seats that have been added in excess of the manufacturer's specifications; and

(6) The jitney complies with all other applicable requirements of this article.

(c) Upon the satisfactory completion of the inspection, the director shall issue and permanently affix a certification decal to the lower right portion of the windshield of the jitney. In any prosecution under this section, it shall be presumed that a jitney has not been inspected as required in this section unless it has a current and valid certification decal affixed thereto.

(d) Replacement certification decals shall only be provided upon reinspection of the jitney.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2025-1050, § 31, 12-17-2025)

Sec. 46-338. Insurance.

(a) Before any permit shall be issued to any person, or before renewal of any permit shall be granted, the applicant shall file an insurance policy evidencing insurance coverage complying with the requirements contained in subsection (b) below or give proof that he is qualified as self-insured, including the provision of a certificate of self-insurance issued pursuant to the Texas Motor Vehicle Safety Responsibility Act as now in force or hereafter amended.

(b) The insurance required in subsection (a) shall be in the form of commercial auto liability coverage in no less than $1,000,000.00 combined single limit per accident. The insurance required shall be issued by either a company listed as an authorized auto liability lines carrier on the Texas Department of Insurance's List of Authorized Insurance Companies or a surplus lines insurer listed on the Texas Department of Insurance's List of Eligible Surplus Lines Insurance Companies. The eligible surplus lines insurance company is required to have a Best's Rating of at least B+ and a Best's Financial Size Category of Class VI or better according to the most current edition of Best's Key Rating Guide, Property-Casualty, United States. Additionally, the policy must include an endorsement requiring 30 days' written notice of termination or cancellation and an endorsement requiring ten days' written notice of non-payment to the director. In the event that a policy terminates or is cancelled without replacement, then each permit to which it pertains shall be suspended, and those jitneys may not be operated. If a proper replacement policy is not provided to the director on or before the tenth business day after the date of termination or cancellation of the policy, the permit shall automatically terminate.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 31, 10-14-2015; Ord. No. 2019-669, § 44, 9-4-2019; Ord. No. 2025-1050, § 32, 12-17-2025)

Sec. 46-339. Authorized operators.

No jitney for which a permit has been issued under this article shall be operated by anyone except the permittee or an employee of the permittee or other person who may be operating the jitney under a written agreement specifically incorporating therein any rules, regulations, and conditions as may be reasonably required by the director to ensure compliance with applicable laws and regulations. The permittee shall be responsible for anyone operating under his permit whether he be an employee or other person operating under a written agreement. Any person driving or operating a jitney upon the streets or other public property of the city is presumed to be an employee of the permittee or to have entered into a written agreement with the permittee. Any person driving or operating a jitney upon the streets or other public property of the city shall be required to secure a license pursuant to the applicable provisions of this chapter.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-340. Rates; zones.

(a) Each jitney shall be operated within a zone that has been filed by the permittee with the director. Except for jitneys dispatched through a mobile dispatch service, the rate for transportation of passengers within a zone shall be a fixed amount, per person. Rates may either be constant or may be differentiated between peak and off-peak hours, provided that the hours during which each rate will be imposed are specified.

(b) All jitneys dispatched through a mobile dispatch service shall display their fare rate and provide a fare rate estimator on their website, internet-enabled application, or digital platform used by the permittee to connect drivers and passengers.

(c) The permittee shall submit all proposed rates and zone cards for review and approval by the director. Rates and zones may be amended from time to time. Zones shall not be exclusive. A fee stated for this provision in the city fee schedule shall be imposed for each zone filing, per jitney. Each zone application that involves

use of airport facilities shall be accompanied by the proof required under section 46-323 of this Code.

(d) Approved rate and zone cards for each jitney shall be conspicuously posted in the manner specified by regulation of the director. The zone card shall state the zone and the rate. The information shall also be posted on each side of the vehicle in a manner and location approved by the director. The director may assign zone numbers and may assign different colors of zone cards to signify fare amounts.

(e) It shall be unlawful for a licensee or permittee to provide transportation services to passengers for hire outside of the zone that has been filed with the director for that jitney; unless the jitney must operate outside of its zone due to a road closure or construction present within such zone.

(f) It shall be unlawful for a licensee or permittee to impose a fare other than as filed with the director, except for jitneys dispatched through a mobile dispatch service.

(g) It shall be unlawful to drive or operate or cause to be driven or operated any jitney without the current rate cards posted as provided by the director for the jitney.

(h) Following notice and a hearing, the director may cancel any zone that was authorized in error.

(i) Upon request a licensee shall display to the director, or other person authorized to enforce this chapter, a physical or electronic record of a ride in progress sufficient to establish that it was a prearranged transportation service through a mobile dispatch application. To the extent that trip records are contained on an electronic device, a licensee is not required to relinquish custody of the device in order to make the required display but must demonstrate to the director or other person authorized to enforce this chapter that the licensee has in his possession proof that the ride in progress is the result of a prearranged transportation service through the mobile dispatch application.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, §§ 32, 32a, 10-14-2015; Ord. No. 2016-736, § 30, 10-5-2016)

Sec. 46-341. Transfer; nonexclusive.

(a) A permit is personal to the permittee to whom it is issued and may not be leased, rented, sold, transferred or conveyed by operation of law or otherwise. Provided, any change of proprietor, change of partnership interests or change of corporate officer or director as shown on the permit application shall render a permit void, unless an application for transfer is filed within ten days following the effective date of the change. The director shall promulgate procedures for the processing of amendments and may suspend the permit(s) pending the completion of the processing if any additional person who has acquired an interest in the business is determined to have been convicted of an applicable offense as provided in subsection (c) of section 1-10 of this Code. The fee for filing an application amendment is stated for this provision in the city fee schedule.

(b) Each permit is nonexclusive, and no limits or restrictions shall exist upon the number of jitneys that may be permitted, provided that each must be operated pursuant to a permit and in accordance with all applicable requirements of this article.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-342. Permit terms; suspension.

(a) A permit shall be valid for five years from the date of its issuance.

(b) In accordance with regulations promulgated by the director, a permit may be amended, without charge, for the limited purpose of adding, deleting or substituting jitney vehicles.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Secs. 46-343—46-350. Reserved.

DIVISION 3. OPERATING REQUIREMENTS

Sec. 46-351. Licensee conduct.

No licensee shall permit or allow passengers or employees to stand or ride on the running board, dash board, fender or any outside portion of the vehicle, nor shall a licensee permit any

passenger to stand in such a position that the licensee's vision forward or to the right front or left is blocked.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2014-914, § 10, 10-8-2014)

Sec. 46-352. Jitney equipment.

(a) It shall be unlawful for any person to drive or operate or cause to be driven or operated any jitney that is not marked in a manner and location approved by the director and equipped as provided in this section.

(b) No licensee or permittee shall drive or cause to be driven any jitney in the city until the permittee has filed with the director, for approval, the color scheme that he proposes to use in conjunction with the provision of the jitney service. In approving or disapproving the color scheme submitted, the director shall consider:

(1) The color scheme presently in use by the permittee, if any;

(2) The color schemes of other permittees; and

(3) Which permittee first used or requested approval of the color scheme.

(c) If the color scheme is approved, the permittee shall, within 15 days, deliver to the director a color photograph, of a size and kind to be approved by the director, of a jitney of his color scheme, and he shall not change the color scheme without approval of the director.

(d) Additionally, each jitney shall:

(1) Have no taximeter;

(2) Have the word "jitney" painted on each side of the vehicle in black in letters at least six inches tall with a brush stroke width of at least one inch;

(3) Have the following signage in letters not less than three inches in length nor less than 5/16 of an inch in brush stroke and of contrasting color to the background:

a. The name and telephone number of the permittee on both front doors;

b. The telephone number of the permittee on the rear deck or trunk lid;

c. The permit number on the right side of the trunk or rear deck and the right side of the hood; and

d. The current zone and rate structure for each shall be posted in a conspicuous manner in the interior of the vehicle so as to be clearly visible and understood by all passengers. In the event one jitney services multiple zones, a changeable electronic or analog sign may indicate the zone the vehicle is currently servicing.

(4) Have a dashboard-mounted holder of a type approved by the director in which shall be mounted the operator's license, a photograph of the operator and one set of rate and zone cards approved by the director under section 46-340 of this Code; and

(5) Have a radio, mobile telephone or other means of two-way communication that may be used to request assistance in the event of an emergency.

The information required in items (2) and (3) above shall be painted upon the vehicle, provided that the director may allow the street name or zone name information only to be posted upon a magnetic sign or other removable sign of durable materials.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2014-914, § 11, 10-8-2014; Ord. No. 2016-736, § 31, 10-5-2016)

Sec. 46-353. Age of vehicle.

(a) No licensee or permittee shall drive or operate or cause to be driven or operated any jitney that is more than 15 years old. For purposes of this requirement, a jitney is considered to be 15 years old on the 31st day of May of the 15th year following the manufacturer's model year of the jitney, regardless of the date of its original purchase or the date it was first placed into service.

(b) A permittee or licensee may drive or cause to be driven a jitney beyond the age limitations prescribed in subsection (a) of this section provided:

(1) The licensee or permittee submits the jitney for inspection at a location authorized and identified by the director

prior to the expiration of the permit issued authorizing the operation of the jitney; and

(2) The vehicle is determined to be in compliance with the provisions of section 46-337 of this Code and any other conditions of operation prescribed by the director.

(c) A permittee or licensee may initially submit a vehicle into service beyond the age limitations prescribed in subsections (a) and (b) of this section, provided:

(1) The licensee or permittee submits the jitney for inspection at a location authorized and identified by the director; and

(2) The vehicle is determined to be in compliance with the provisions of section 46-337 of this Code and any other conditions of operation prescribed by the director.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 43a, 10-14-2015; Ord. No. 2021-804, § 21, 9-15-2021)

Sec. 46-354. Operating requirements.

(a) It shall be the duty of the licensee to ensure that his jitney is operated in accordance with this section.

(b) Solicitation of passengers is unlawful. However, a licensee may indicate available space by gesture from within the jitney and may stop when flagged or hailed by a potential passenger.

(c) No jitney shall stop or stand to pick up or discharge any passenger in a taxicab zone.

(d) No jitney shall stop or stand to pick up or discharge any passenger at any place that is not upon the streets and highways designated upon the zone.

(e) No jitney shall stop or stand upon the public streets or other public property, except as required to comply with lawful traffic control devices and to discharge and pick up passengers.

(f) Additional passengers shall have the right to utilize the jitney up to the manufacturer's rated seating capacity.

(g) A log shall be maintained within each jitney in a form prescribed by the director setting forth the hours of work of each licensee. A licensee shall not operate a jitney for more than 12 hours in any consecutive 24-hour period and a permittee shall not allow or cause any licensee to drive a vehicle in operation as a jitney more than 12 hours in any consecutive 24-hour period. Each permittee shall maintain the log for a period of six months and shall make the same available for inspection or copying upon request at the offices of the director.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2016-736, § 32, 10-5-2016)

Sec. 46-355. Inspection.

The director may inspect any jitney and any records or documents required to be carried in or upon the jitney at any time upon presentation of identification to the driver in order to determine operation in compliance with the provisions of this article and the regulations adopted hereunder by the director.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Secs. 46-356—46-370. Reserved.

ARTICLE VII. LOW-SPEED SHUTTLES

DIVISION 1. GENERALLY

Sec. 46-371. Definitions.

When used in this article, the following words and terms shall have the meanings provided in this section, unless the context of their usage clearly indicates another meaning:

License means a current and valid low-speed shuttle driver's license issued pursuant to division 2 of article I of this chapter.

Licensee means any person in engaged in the act of driving a low-speed shuttle who is the holder of a current and valid low-speed shuttle driver's license.

Low-speed shuttle means a motorized non-fossil fuel powered vehicle with a seating capacity of four to eight passengers, including the driver, that has an attainable speed of more than 20 miles per hour and not more than 25 miles per hour on a paved level surface, conforms to Federal Motor Vehicle Safety Standard 500 (49 C.F.R. Section 571.500), and is used to transport passengers for hire. The term does not include:

(1) A vehicle modified after its original manufacture to meet the speed requirements or safety equipment requirements contained in 49 C.F.R. Section 571.500;

(2) A moped, motorcycle, or tractor;

(3) An electric bicycle or motor-driven cycle, as defined by § 541.201 of the Transportation Code;

(4) A motorized mobility device, as defined by § 542.009 of the Transportation Code;

(5) An electric personal assistive mobility device, as defined by § 551.201 of the Transportation Code; or

(6) A motor-assisted scooter, as defined in § 551.351 of the Transportation Code.

Low-speed shuttle service means the business of transporting passengers for hire by means of a low-speed shuttle. Specifically excluded from this definition are:

(1) Vehicles used in connection with any phase of a funeral or funeral service;

(2) Taxicabs, pedicabs, jitneys, sightseeing and charter vehicles, and chauffeured limousines permitted and licensed by the city; and

(3) Vehicles operating under a contract with the city.

Permit means a permit to operate a low-speed shuttle service pursuant to this article.

Permittee means any person, partnership, corporation, firm, joint venture, limited liability company, association, organization and any other entity holding a permit issued pursuant to this article.

Zone means the geographic area in which the low-speed shuttle will generally operate, as filed with the director in accordance with section 46-400 of this Code.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2019-669, § 45, 9-4-2019; Ord. No. 2022-387, § 7, 5-18-2022)

Sec. 46-372. Reserved.

Sec. 46-373. Article cumulative.

This article is cumulative of all other applicable laws and ordinances. Without limitation, this article is expressly made cumulative of division 3 of article II of chapter 9 of this Code. The director shall not approve a zone that involves the operation of a low-speed shuttle upon any airport terminal complex unless the permittee has first obtained an airport use permit for use of low-speed shuttles within that zone.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Secs. 46-374—46-390. Reserved.

DIVISION 2. PERMITS AND LICENSES

Sec. 46-391. Permit required.

(a) It shall be unlawful for any person to operate a low-speed shuttle service without first obtaining a permit pursuant to the terms of this division.

(b) Each applicant for a permit required by this division must:

(1) Have no conviction of an offense stated in subsection (c) of section 1-10 of this Code;

(2) Identify the make, model, manufacturer's rated seating capacity and vehicle identification number for each vehicle to be used as a low-speed shuttle;

(3) Identify the proposed zone(s) where the applicant desires to operate the low-speed shuttle service;

(4) Provide proof of insurance pursuant to the requirements of this article;

(5) If a natural person:

a. Be 18 years of age or older; and

b. Hold a current and valid class A, B, or C Texas driver license; and

(6) Provide evidence that the applicant has a place of business within the metropolitan area from which the applicant's low-speed shuttle service will be operated and that such use of the location is in compliance with any applicable deed restrictions; and

(7) Provide any other information reasonably requested by the director for administration of this article.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2021-804, § 22, 9-15-2021; Ord. No. 2025-1050, § 33, 12-17-2025)

Sec. 46-392. License required.

It shall be unlawful for any person to operate low-speed shuttle without a license issued pursuant to this chapter.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-393. Fees.

There shall be a nonrefundable application processing fee in the amount stated for this provision in the city fee schedule payable upon the filing of an application for a permit.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-394. Annual permit fee.

(a) The annual permit fee in the amount stated for this provision in the city fee schedule per low-speed shuttle shall be paid in advance to the department of administration and regulatory affairs on or before June 1 of each year.

(b) There shall be no fee for the replacement of a low-speed shuttle with another low-speed shuttle.

(c) Reserved.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 33, 10-14-2015; Ord. No. 2019-669, § 46, 9-4-2019)

Sec. 46-395. Application.

(a) Each person desiring to obtain a permit shall apply on forms provided by the director and shall include all information required by this article.

(b) Each permit applicant (including the proprietor if a proprietorship, each partner if a partnership, or each corporate officer or director if a corporation) shall appear at a location specified by the director for identification and fingerprinting to determine the existence of any conviction of any applicable offense(s) set forth in subsection (c) of section 1-10 of this Code. If any conviction exists, the director shall follow the procedures set forth in section 1-9 of this Code and conduct a hearing if timely requested.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 34, 10-14-2015)

Sec. 46-396. Review.

(a) Following review of the application, the director shall provide the applicant with written notification of the approval or denial of the requested permit. The director shall initially review each application for issuance or amendment of a permit to determine whether the application is complete and all required information has been provided. If not, the application shall be returned, and the applicant shall be so advised.

(b) The submission of any false information or a materially incomplete application, including but not limited to an applicant's failure to provide any information reasonably requested by the director, shall be grounds for denial of the application. In the event of denial, the applicant shall be given written notice of the basis for such action. The applicant shall be entitled to appeal a decision based, in whole or in part, upon section 1-10 of this Code. Notice of any denial shall comply with section 1-9 of this Code and applicable state laws.

(c) If the application is denied on the basis of the applicant's failure to satisfy any other requisites stated in this division, the applicant may request a hearing by submitting a written notice of appeal to the director within 15 business days following the date the director's decision is deposited in the United States Mail. An informal hearing shall be conducted by an impartial hearing officer who shall render a decision within 30 business days from the date of the filing of the appeal. At the hearing, the burden shall be upon the applicant to demonstrate that he is entitled to the permit.

(d) If the reason for the denial of an application is curable, the director shall allow the applicant, upon a written request, to submit an amendment within the time allowed in subsections (b) and (c) for an appeal, in lieu of filing of an appeal. If the application is again denied, the applicant shall still be entitled to file an appeal within 15 business days following the date the director's decision regarding the amended application is deposited in the United States Mail.

(e) Following approval of an application for a permit, the actual permit shall not be issued until the applicant has provided the make, model, manufacturer's seating capacity and vehicle identification number of each low-speed shuttle, if not provided with the application, and has paid the annual permit fee, obtained a certification decal, provided proof of insurance, provided proof of ownership or lease of each low-speed shuttle, and filed and received approval of all requested zones and rate data for each low-speed shuttle with the director.

(f) The director shall promulgate regulations and procedures for any required hearings which shall be consistent with sections 1-9 and 1-10 of this Code and applicable state laws.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-397. Vehicle inspection; fee.

(a) It shall be unlawful for any person to operate or cause to be operated any low-speed shuttle, unless the low-speed shuttle has been inspected as required in this section and has a current and valid certification decal affixed thereto. There shall be a non-refundable vehicle inspection fee stated for this provision in the city fee schedule per low-speed shuttle. All low-speed shuttles shall be maintained in a safe and sanitary condition and shall be thoroughly cleaned and disinfected at least once in each 24-hour period.

(b) Each low-speed shuttle shall be inspected before it is initially placed into service and thereafter before June 1 of each year at such location as the director may specify. The director shall approve the low-speed shuttle if he determines that:

(1) The low-speed shuttle has current Texas registration stickers for both safety and air quality, if applicable;

(2) The low-speed shuttle is of the approved color scheme and is marked as provided in section 46-423 of this Code;

(3) The low-speed shuttle is in generally sound working condition with no apparent safety-related defects, including inspection or testing of the speedometer, odometer, horn, windshield wipers, mirrors, steering, service brake, parking brake, tires, high beam indicator, tail lamp, stop lamps, license plate lamp, rear reflectors, turn signal lamps and headlamps;

(4) The low-speed shuttle has a lap or lap/shoulder seat belt for the driver and for each passenger seating space to the extent the vehicle is so equipped by the manufacturer;

(5) The low-speed shuttle has no seats that have been added in excess of the manufacturer's specifications; and

(6) The low-speed shuttle complies with all other requirements of this article.

(c) Upon the satisfactory completion of the inspection, the director shall issue and permanently affix a certification decal to the lower right portion of the windshield of the low-speed shuttle. In any prosecution under this section, it shall be presumed that a low-speed

shuttle has not been inspected as required in this section unless it has a current and valid certification decal affixed thereto.

(d) Replacement certification decals shall be provided only upon reinspection of the low-speed shuttle.

(e) The director may inspect any low-speed shuttle and any records or documents required to be carried in or upon the low-speed shuttle at any time upon presentation of identification to the driver in order to determine operation in compliance with the provisions of this article and the regulations adopted hereunder by the director.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2025-1050, § 34, 12-17-2025)

Sec. 46-398. Insurance.

(a) Before any permit shall be issued, or before renewal of any permit shall be granted, the applicant shall file proof of insurance coverage evidencing insurance coverage complying with the requirements contained in subsection (b) below or give proof that he is qualified as self-insured, including a certificate of self-insurance issued pursuant to the Texas Motor Vehicle Safety Responsibility Act as now in force or hereafter amended.

(b) The insurance required in subsection (a) shall be in the form of commercial auto liability coverage in an amount not less than $500,000.00 combined single limit per occurrence issued by either a company listed as an authorized auto liability lines carrier on the Texas Department of Insurance's List of Authorized Insurance Companies or a surplus lines insurer listed on the Texas Department of Insurance's List of Eligible Surplus Lines Insurance Companies. The eligible surplus lines insurance company is required to have a Best's Rating of at least B+ and a Best's Financial Size Category of Class VI or better according to the most current edition of Best's Key Rating Guide, Property-Casualty, United States. Additionally, the policy must include an endorsement requiring 30 days' written notice of termination or cancellation to the director and an endorsement requiring ten days' written notice of non-payment to the director. In the event that a policy terminates or is cancelled without replacement, then each permit to which it pertains shall be suspended, and those low-speed shuttles may not be operated. If a proper replacement policy is not provided to the director on or before the tenth business day after the date of termination or cancellation of the policy, the permit shall automatically terminate. Proof of the insurance required in this subsection shall be carried by licensees at all times while operating a low-speed shuttle and shall be accepted only in the authorized form approved by the Texas Department of Insurance for that purpose.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 35, 10-14-2015)

Sec. 46-399. Authorized operators.

No low-speed shuttle shall be operated by anyone except the permittee or an employee of the permittee or other person who may be operating the low-speed shuttle under a written agreement specifically incorporating therein any rules, regulations, and conditions as may be reasonably required by the director to ensure compliance with applicable laws and regulations. The permittee shall be responsible for any person operating under his permit whether the person is an employee or is a person operating under a written agreement. Any person operating a low-speed shuttle on the streets or other public property of the city is presumed to be an employee of the permittee or to have entered into a written agreement with the permittee. Any person operating a low-speed shuttle on the streets or other public property of the city shall be required to secure a license pursuant to this article.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-400. Rate structure and fares; zones.

(a) Each low-speed shuttle shall be operated within a zone that has been filed with the director. The permittee shall also file with the director the rate structure or fares to be in effect for each zone. The permittee may file two or more operating zones for the same low-speed shuttle.

(b) The permittee shall submit all proposed zones for review and approval by the director. Rates and zones may be amended periodically. Zones shall not be exclusive. The applicable fees stated for this provision in the city fee schedule shall be imposed for each zone, per low-speed shuttle and for the amendment of all zone information submitted to the director. Each zone application that involves use of airport facilities shall be accompanied by the proof required under section 46-373 of this Code.

(c) Approved zones and all rate information, including compensation by gratuity only, for each low-speed shuttle shall be conspicuously posted on each side of the vehicle in a manner and location approved by the director. The director may assign zone numbers and may assign different colors to signify rate amounts.

(d) It shall be unlawful for a licensee or permittee while in service with any passenger for hire on board to deviate from the zone as filed with the director for that low-speed shuttle.

(e) It shall be unlawful for a licensee or permittee to impose a rate structure or collect a fare other than as filed with the director.

(f) It shall be unlawful to drive or operate or cause to be driven or operated any low-speed shuttle without the current structure or fare posted as provided by the director.

(g) Following notice and a hearing, the director may cancel, alter, or amend any zone authorized in error.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-997, § 36, 10-14-2015)

Sec. 46-401. Receipt for payment of fare.

No licensee, upon receiving full payment for a fare as authorized by this article, shall refuse to provide a receipt upon the request of any passenger making a payment. The permittee of the low-speed shuttle shall make available to each licensee a receipt book or other electronic instrument capable of creating a record to be used for this purpose.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-402. Transfer; nonexclusive.

(a) A permit is personal to the permittee to whom it is issued and may not be leased, rented, sold, transferred or conveyed by operation of law or otherwise. Provided, any change of proprietor, change of partnership interests or change of corporate officer or director as shown on the permit application shall render a permit void, unless an application for transfer is filed within ten days following the effective date of the change. The director shall promulgate procedures for the processing of amendments and may suspend the permit(s) pending the completion of the processing if any additional person who has acquired an interest in the business is determined to have been convicted of an applicable offense as provided in subsection (c) of section 1-10 of this Code. The fee for filing an amended application shall is stated for this provision in the city fee schedule.

(b) Each permit is nonexclusive, and no limits or restrictions shall exist upon the number of low-speed shuttles that may be permitted, provided that each must be operated pursuant to a permit and in accordance with all applicable requirements of this article.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-403. Permit terms.

(a) A permit shall be valid for five years from the date of issuance.

(b) In accordance with regulations promulgated by the director, a permit may be amended, without charge, for the limited purpose of adding, deleting or substituting any number of low-speed shuttle vehicles; provided however, the addition, deletion, or substitution of any low-speed shuttles pursuant to a current and valid permit shall require an inspection as provided for in section 46-397 of this Code, including the payment of the inspection fee.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Secs. 46-404—46-420. Reserved.

DIVISION 3. LOW-SPEED SHUTTLE OPERATING REQUIREMENTS

Sec. 46-421. Operating restrictions.

(a) It shall be unlawful for a licensee or permittee to operate or cause to be operated any low-speed shuttle in a zone that has not approved by the director or on any roadway in the city where the posted speed limit exceeds 35 miles per hour, except for the purpose of crossing that roadway. It shall be unlawful for a low-speed shuttle to be operated on a roadway at a speed that exceeds the lesser of the posted speed limit or 25 miles per hour.

(b) It shall be unlawful for a licensee or permittee to operate or cause to be operated any low-speed shuttle upon any portion of a public sidewalk except as necessary to access locations immediately adjacent to a roadway through the use of points of ingress and egress made available for use by motor vehicles operating in compliance with all applicable traffic laws.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-422. Licensee conduct.

No licensee shall permit or allow passengers or employees to stand or ride on the running board, dash board, fender or any outside portion of the vehicle, nor shall a licensee permit any passenger to stand in such a position that the licensee's vision forward or to the side is blocked.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2014-914, § 12, 10-8-2014)

Sec. 46-423. Low-speed shuttle equipment.

(a) It shall be unlawful for any person to drive or operate or cause to be driven or operated any low-speed shuttle that is not marked in a manner and location approved by the director and equipped as provided in this division.

(b) No licensee or permittee shall drive or cause to be driven any low-speed shuttle in the city until the permittee has filed with the director, for approval, the color scheme that he proposes to use in conjunction with the provision of the low-speed shuttle service. In approving or disapproving the color scheme submitted, the director shall consider:

(1) The color scheme presently in use by the permittee, if any;

(2) The color schemes of other permittees; and

(3) Which permittee first used or requested approval of the color scheme.

(c) If the color scheme is approved, the permittee shall, within 15 days, deliver to the director a color photograph, of a size and kind to be approved by the director, of a low-speed shuttle of his color scheme, and the permittee shall not change the color scheme without approval of the director.

(d) Additionally, each low-speed shuttle shall:

(1) Have no taximeter;

(2) Have the following signage in letters not less than three inches in length nor less than 5/16 of an inch in brush stroke and of contrasting color to the background:

a. The name and telephone number of the permittee and rate structure on its exterior;

b. The telephone number of the permittee on the rear deck or trunk lid;

c. The permit number on the right side of the trunk or rear deck, the right side of the hood, and on each side of the vehicle; and

d. The zone name below the permit number on each side of the vehicle. In the event one low-speed shuttle serves multiple zones, a changeable electronic or analog sign shall indicate the zone the vehicle is currently serving. The current zone and rate structure or fare for each low-speed shuttle must be posted in a conspicuous manner in the interior of the vehicle so as to be clearly visible and understood by all passengers;

(3) Have a dashboard-mounted holder of a type approved by the director in which

shall be mounted the operator's license, a photograph of the operator, and the telephone numbers of the director and the permittee for complaint purposes regarding low-speed shuttle services or charges, including instructions that if the passenger wishes to file a complaint, he should obtain the low-speed shuttle permit number as posted on the low-speed shuttle, date, time, destination, and fare charged. The director shall approve the size of the print, the colors, and the information to be provided so that the information may be easily read by passengers; and

(4) Have a radio, mobile telephone or other means of two-way communication that may be used to request assistance in the event of an emergency.

The information required in item (2) above shall be painted upon the vehicle, provided that the director may allow the zone information only to be posted upon a magnetic sign or other removable sign of durable materials.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-424. Age of vehicle.

No person shall drive or operate or cause to be driven or operated any low-speed shuttle that is more than 15 years old. For purposes of this requirement, a low-speed shuttle is considered to be 15 years old on the 31st of May of the 15th year following the manufacturer's model year of the low-speed shuttle, regardless of the date of its original purchase or the date it was first placed into service.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2019-669, § 47, 9-4-2019; Ord. No. 2021-804, § 23, 9-15-2021)

Sec. 46-425. Carrying additional passengers.

Any passenger who engages the services of a low-speed shuttle shall have the exclusive right to the passenger compartment of the low-speed shuttle, and it shall be unlawful for a licensee to carry additional passengers unless specific permission is obtained from the passenger who originally engaged the low-speed shuttle.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-426. Operating requirements.

(a) It shall be the duty of the licensee to ensure that his low-speed shuttle is operated in accordance with this section.

(b) It shall be unlawful for a licensee to seek or solicit a passenger or passengers in an attempt to engage the services of a low-speed shuttle.

(c) It shall be unlawful for a low-speed shuttle to stop or stand to pick up or discharge any passenger in a taxicab zone or any other area designated for other categories of vehicles. It shall be the duty of each licensee when loading or unloading passengers to pull the low-speed shuttle to the curb and ensure that the low-speed shuttle does not impede normal vehicular and pedestrian movement.

(d) It shall be unlawful for a low-speed shuttle to stop or stand to pick up or discharge any passenger at any place that is not on a street or roadway with a zone submitted to and approved by the director.

(e) It shall be unlawful for a low-speed shuttle to stop or stand upon the public streets or other public property, except as required to comply with lawful traffic control devices and to discharge and pick up passengers.

(f) A log shall be maintained for each low-speed shuttle in a form prescribed by the director setting forth the hours of work of each licensee. A licensee shall not operate a low-speed shuttle for more than 12 hours in any consecutive 24-hour period and a permittee shall not allow or cause any licensee to drive a vehicle in operation as a low-speed shuttle more than 12 hours in any consecutive 24-hour period. Each permittee shall maintain the log for a period of six months and shall make the same available for inspection or copying upon request at the offices of the director.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-427—46-450. Reserved.

ARTICLE VIII. MOBILE DISPATCH SERVICES

Sec. 46-451. Definitions.

When used in this article, the following words and terms shall have the meanings provided in this section, unless the context of their usage clearly indicates another meaning:

Certificate of registration means a current and valid certificate of registration issued by the director under this article to the owner or operator of a mobile dispatch service.

Mobile dispatch service means the operation of a scheduling service that enables prospective passengers to request pre-arranged transportation services offered or provided for compensation from qualified vehicles for hire using an internet-enabled application or digital platform to send or transmit an electronic, radio or telephonic communication through the use of a portable or handheld device, monitor, smartphone, or other electronic device or unit that indicates the location of the passenger which information is then relayed to a qualified vehicle for hire by radio or data communication of any type.

Qualified vehicles for hire means vehicles for hire authorized to provide such transportation services pursuant to all articles of this chapter except article V.

Registrant means a person holding a current and valid certificate of registration for a mobile dispatch service under this article and includes all owners and operators of the mobile dispatch service identified in the registration application filed under this article.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2015-998, § 5, 10-14-2015; Ord. No. 2016-736, § 33, 10-5-2016; Ord. No. 2019-669, § 48, 9-4-2019)

Sec. 46-452. Registration required.

(a) Each mobile dispatch service shall register with the city on a form prescribed by the director and shall maintain and provide to the director current and accurate records of all qualified vehicles for hire providing vehicle for hire transportation services through the use of the mobile dispatch service.

(b) A person commits an offense if the person operates a mobile dispatch service without a current and valid certificate of registration.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-453. Use of valid permittees and licensees required.

(a) Each mobile dispatch service shall be responsible for ensuring that any driver assigned to provide vehicle for hire transportation services and any vehicle used in the rendition of the transportation services are duly licensed and permitted, respectively, to provide the transportation service pursuant to the applicable provisions of this chapter.

(b) Upon request, a mobile dispatch service shall make available to the director its records of all qualified vehicles for hire and drivers assigned to provide vehicle for hire transportation services. The provisions of this article applicable to the submission of information to the director shall be cumulative of the provisions of section 46-11 of this Code.

(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-454. Registration—Form.

(a) To obtain a certificate of registration, a mobile dispatch service shall furnish the following information on a form provided for that purpose by the director, which shall be sworn to before a notary public or conform to minimum state law requirements for unsworn declarations:

(1) The name and form of business under which the service will be operated (If a partnership or corporation, a copy of the partnership agreement or articles of incorporation must be attached.);

(2) The name, phone number, street address, and mailing address (if different from the street address) of the applicant's agent for service of legal process (which information the registrant shall always keep current);

(3) A list of all current licensees and permittees providing vehicle for hire transportation services through the use of the mobile dispatch service and updated to the director on a quarterly basis;

(4) The name, phone number, street address, mailing address (if different from the street address), and e-mail address of the applicant's customer service liaison;

(5) The proposed schedule of fares, rates, or other compensation to be charged by the applicant; and

(6) Any additional information as requested by the director for the administration of this division.

(b) The following shall join in the filing of the application for a certificate of registration:

(1) Each partner if the applicant is a partnership;

(2) Each associate if the applicant is an association; or

(3) Each person who is either an officer or director if the applicant is a corporation.

(c) An applicant or registrant shall notify the director within ten days of any change in associates, partners, officers, or directors of the business applying for or holding a certificate of registration issued pursuant to this article.

(d) An applicant shall have no criminal history that is disallowed under section 1-10 of this Code. Upon initial application for a certificate of registration and upon the request for the renewal thereof, the director shall cause each applicant's criminal history to be researched. The applicant shall complete any forms required for the director to obtain the applicant's criminal history and shall bear the cost of any fees imposed by state or federal agencies providing the criminal history information. This requirement shall not be construed to preclude the director from obtaining interim criminal history information at the expense of the city.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2025-1050, § 35, 12-17-2025)

Sec. 46-455. Certificate of registration issuance procedure.

(a) The director shall initially review each application for issuance of a certificate of registration to determine whether the application is complete and all required information has been provided. If not, the director shall return the application to the applicant with a statement of deficiencies.

(b) The director shall review completed applications to determine whether the applicant has met all applicable requirements of this article and section 1-10 of this Code. If so, the director shall issue to the applicant a certificate of registration. If, based upon the review, the director determines that one or more requirements may not have been met, the director shall afford the applicant the right to a hearing before acting on the application.

(c) Prior to the denial of an application for a certificate of registration, the director shall give the applicant written notice of the grounds for denial. If the reason for the denial of an application is curable, the director shall allow the applicant, upon the applicant's request, to submit an amendment within the time allowed for an appeal, in lieu of filing of an appeal. If the application is again denied, the applicant shall still be entitled to file an appeal within 15 business days following the date that notice of the director's decision regarding the amended application is deposited in the United States Mail, addressed to the applicant. Where the grounds for denial are based in whole or in part upon section 1-10 of this Code, the hearing shall conform to the requirements of section 1-9 of this Code with respect to those grounds.

(d) A certificate of registration does not entitle the permittee to act as the driver of covered vehicles. A separate license is required for that purpose.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-456. Expiration and renewal of certificate of registration.

(a) A certificate of registration issued pursuant to this article shall be valid for five years from the date of issuance.

(b) Except as provided in subsection (c) of this section, a licensee or permittee shall not drive or cause to be driven upon the streets of the city any wheelchair accessible vehicle that is more than 15 years old. For the purposes of this requirement, a wheelchair accessible vehicle will be considered to be 15 years old on September 30th of the 15th year following the manufacturer's

model year of the vehicle, regardless of the purchase date or the date it was originally placed into service.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014; Ord. No. 2016-736, § 34, 10-5-2016; Ord. No. 2021-804, § 25, 9-15-2021)

Sec. 46-457. Display of fare rates.

All registrants shall display their fare rates and provide a fare rate estimator on the website, internet-enabled application, or digital platform used by the registrant to connect passengers to qualified vehicles for hire.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-458. Certificate of registration; non-transferability.

(a) A certificate of registration is specific to the registrant to whom it is issued and may not be transferred or otherwise assigned.

(b) Each certificate of registration is nonexclusive, and no limits or restrictions shall exist upon the number of qualified vehicles for hire that may provide vehicle for hire transportation services through a mobile dispatch service provided that each vehicle must be operated pursuant to a permit and in accordance with all applicable requirements of this article. The director shall promulgate procedures for the processing of amendments and may suspend the certificate of registration pending the completion of the processing if any additional person who has acquired an interest in the business is determined to have been convicted of an offense listed in section 1-10(c) of this Code.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-459. Violations; penalty.

(a) A person who violates a provision of this article, or who fails to perform an act required of the person by this article, commits an offense. A person commits a separate offense for each and every violation relating to the operation of a mobile dispatch service, and for each day during which a violation is committed, permitted, or continued.

(b) An offense under this article is punishable as provided in section 1-6 of this Code and the city may enforce the provisions of this article through any other means prescribed in this chapter.
(Ord. No. 2014-754, § 2(Exh. A), 8-6-2014)

Sec. 46-460—46-500. Reserved.

ARTICLE IX. RESERVED*

Secs. 46-501—46-540. Reserved.

ARTICLE X. WHEELCHAIR ACCESSIBLE SERVICE PROVIDERS

Sec. 46-541. Scope.

The provisions of this article shall not apply to wheelchair accessible vehicles for hire operated in accordance with a permit issued pursuant to another article of this chapter.
(Ord. No. 2015-998, § 6(Exh. A), 10-14-2015)

Sec. 46-542. Definitions.

When used in this article, the following words and terms shall have the meanings provided in this section, unless the context of their usage clearly indicates another meaning:

Wheelchair accessible service means a transportation service offered or provided to individuals with disabilities who require the use of a wheelchair on behalf of an entity that holds a valid permit or registration issued in accordance with another article of this chapter through a contractual relationship.

Wheelchair accessible service provider means an entity that contracts with another entity that holds a valid permit or registration in accordance with another article of this chapter to provide accessible service to the riding public.

*__Editor's note—__Ord. No. 2019-669, § 49, adopted September 4, 2019, repealed Ch. 46, Art. IX, §§ 46-501—46-516 in its entirety. Formerly said article pertained to transportation network companies and derived from Ord. No. 2014-754, § 2(Exh. A), 8-6-2014.

Wheelchair accessible vehicle driver means an individual affiliated with a wheelchair accessible service provider transporting passengers for compensation using a wheelchair accessible vehicle.

Wheelchair accessible vehicle means any wheelchair accessible motor vehicle that is equipped with a ramp or lift or has been constructed and designed or redesigned, modified, or equipped to provide wheelchair accessible service to persons with disabilities who require the use of a wheelchair as a means of movement or ability to move from one place to another. Specifically excluded from this definition are wheelchair accessible vehicles permitted and operated in compliance with articles II through IX of this chapter.

(Ord. No. 2015-998, § 6(Exh. A), 10-14-2015)

Sec. 46-543. Permit required.

(a) No person shall operate a wheelchair accessible service provider in the city without a permit issued pursuant to this article.

(b) It shall be unlawful for any wheelchair accessible service provider permitted, licensed or authorized by another jurisdiction to initiate wheelchair accessible service provider service within the corporate boundaries of the city without a permit issued pursuant to this article; provided however, a wheelchair accessible vehicle operated by a driver affiliated with a wheelchair accessible service provider permitted, licensed, or authorized by or in another jurisdiction may come into the city to discharge a passenger whose trip originated outside of the city.

(Ord. No. 2015-998, § 6(Exh. A), 10-14-2015)

Sec. 46-544. Wheelchair accessible service provider permit—Application and qualifications.

(a) Each person desiring to obtain a permit shall apply on forms provided by the director and shall include all information required by this article.

(b) Each permit applicant (including the proprietor if a proprietorship, each partner if a partnership, or each corporate officer or director if a corporation) shall appear at a location specified by the director for identification and fingerprinting to determine the existence of any conviction of any applicable offense set forth in subsection (c) of section 1-10 of this Code. If any conviction exists, the director shall follow the procedures set forth in section 1-9 of this Code and conduct a hearing if timely requested.

(c) Each applicant for a permit required by this article must:

(1) Have no conviction of an offense stated in subsection (c) of section 1-10 of this Code;

(2) Identify the make, model, manufacturer's rated seating capacity, current rated seating capacity, and vehicle identification number for each wheelchair accessible vehicle to be used as a vehicle for hire;

(3) Provide proof of insurance pursuant to the requirements of this article;

(4) Provide evidence that the applicant has a place of business within the metropolitan area from which the applicant's wheelchair accessible service will be operated and that such use of the location is in compliance with any applicable deed restrictions; and

(5) Provide any other information reasonably requested by the director for administration of this article.

(Ord. No. 2015-998, § 6(Exh. A), 10-14-2015; Ord. No. 2019-669, § 50, 9-4-2019; Ord. No. 2021-804, § 24, 9-15-2021)

Sec. 46-545. Review.

(a) Following review of the application, the director shall provide the applicant with written notification of the approval or denial of the requested permit. The director shall initially review each application for issuance or amendment of a permit to determine whether the application is complete and all required information has been provided. If not, the application shall be returned, and the applicant shall be so advised.

(b) The submission of any false information or a materially incomplete application, including but not limited to an applicant's failure to provide

any information reasonably requested by the director, shall be grounds for denial of the application. In the event of denial, the applicant shall be given written notice of the basis for such action. The applicant shall be entitled to appeal a decision based, in whole or in part, upon section 1-10 of this Code. Notice of any denial shall comply with section 1-9 of this Code and applicable state laws.

(c) If the application is denied on the basis of the applicant's failure to satisfy any other requisites stated in this division, the applicant may request a hearing by submitting a written notice of appeal to the director within 15 business days following the date the director's decision is deposited in the United States Mail. An informal hearing shall be conducted by an impartial hearing officer who shall render a decision within 30 business days from the date of the filing of the appeal. At the hearing, the burden shall be upon the applicant to demonstrate that he is entitled to the permit.

(d) If the reason for the denial of an application is curable, the director shall allow the applicant, upon a written request, to submit an amendment within the time allowed in subsections (b) and (c) for an appeal, in lieu of filing of an appeal. If the application is again denied, the applicant shall still be entitled to file an appeal within 15 business days following the date the director's decision regarding the amended application is deposited in the United States Mail.

(e) Following approval of an application for a permit, the actual permit shall not be issued until the applicant has provided the make, model, manufacturer's seating capacity and vehicle identification number of each wheelchair accessible vehicle, if not provided with the application, and has paid the annual permit fee, obtained a certification decal, provided proof of insurance, provided proof of ownership or lease of each wheelchair accessible vehicle.

(f) The director shall promulgate regulations and procedures for any required hearings which shall be consistent with sections 1-9 and 1-10 of this Code and applicable state laws.
(Ord. No. 2015-998, § 6(Exh. A), 10-14-2015)

Sec. 46-546. License required.

It shall be unlawful for any person to operate wheelchair accessible vehicle as a vehicle for hire without a license issued pursuant to division 2 of article I of this chapter.
(Ord. No. 2015-998, § 6(Exh. A), 10-14-2015)

Sec. 46-547. Annual permit fee.

(a) The fee for a permit under this article is stated for this provision in the city fee schedule and is payable per wheelchair accessible vehicle used as a vehicle for hire. Fees shall be paid in advance to the department of administration and regulatory affairs on or before October 1st of each year.

(b) There shall be no fee for replacement of a vehicle with another vehicle of equivalent capacity.

(c) In the event that a permit is issued after March 1, or in the event that an additional vehicle is placed into service after March 1, then an amount equal to ½ of the annual fee shall be payable for the balance of the annual fee period.
(Ord. No. 2015-998, § 6(Exh. A), 10-14-2015; Ord. No. 2016-736, § 36, 10-5-2016)

Sec. 46-548. Vehicle inspection.

(a) It shall be unlawful for any person to operate or cause to be operated any wheelchair accessible vehicle used as a vehicle for hire, unless such vehicle has been inspected as required in this section and has a current and valid certification decal affixed thereto. Each wheelchair accessible vehicle used as a vehicle for hire shall be maintained in a safe and sanitary condition and shall be thoroughly cleaned and disinfected at least once in each 24-hour period.

(b) Each wheelchair accessible vehicle used as a vehicle for hire shall be inspected before it is initially placed into service and thereafter before October 1 of each year at such location as the director may specify. The director shall approve the wheelchair accessible vehicle used as a vehicle for hire if he determines that:

(1) The wheelchair accessible vehicle used as a vehicle for hire has current Texas

registration sticker and the required Texas vehicle inspection documents for both safety and air quality, if applicable;

(2) The wheelchair accessible vehicle used as a vehicle for hire is in generally sound working condition with no apparent safety-related defects, including but not limited to, inspection or testing of the speedometer, odometer, horn, windshield wipers, mirrors, steering, service brake, parking brake, tires, high beam indicator, tail lamp, stop lamps, license plate lamp, rear reflectors, turn signal lamps and headlamps and any installed safety devices to assist with wheelchairs;

(3) The wheelchair accessible vehicle used as a vehicle for hire has a lap or lap/shoulder seat belt for the driver and for each passenger seating space to the extent the vehicle is so equipped by the manufacturer;

(4) The wheelchair accessible vehicle used as a vehicle for hire has no seats that have been added in excess of the manufacturer's specifications; the vehicle may have fewer seats than in the specifications to accommodate one or more wheelchairs, provided appropriate safety devices, including but not limited to tie-downs, a ramp, or a lift, are installed; and

(5) The wheelchair accessible vehicle used as a vehicle for hire complies with all other requirements of this article.

(c) Upon the satisfactory completion of the inspection, the director shall issue and permanently affix a certification decal to the lower right portion of the windshield of the wheelchair accessible vehicle used as a vehicle for hire. In any prosecution under this section, it shall be presumed that wheelchair accessible vehicle used as a vehicle for hire has not been inspected as required in this section unless it has a current and valid certification decal affixed thereto.

(d) Replacement certification decals shall be provided only upon reinspection of the wheelchair accessible vehicle used as a vehicle for hire.

(e) The director may inspect any wheelchair accessible vehicle used as a vehicle for hire and any records or documents required to be carried in or upon the wheelchair accessible vehicle used as a vehicle for hire at any time upon presentation of identification to the driver in order to determine operation in compliance with the provisions of this article and the regulations adopted hereunder by the director.
(Ord. No. 2015-998, § 6(Exh. A), 10-14-2015)

Sec. 46-549. Insurance.

(a) Notwithstanding any other provision of this article to the contrary, no permit shall become effective nor shall wheelchair accessible service be provided until the permittee has filed with the director the requisite proof of insurance insuring the general public against any loss or damage that may result to any person or property from the operation of a wheelchair accessible vehicle used as a vehicle for hire covered by the permit.

(b) The insurance required in subsection (a) shall be in a form of automobile liability coverage with limits of not less than $1,000,000.00 combined single limit per accident issued by either a company listed as an authorized auto liability lines carrier on the Texas Department of Insurance's List of Authorized Insurance Companies or a surplus lines insurer listed on the Texas Department of Insurance's List of Eligible Surplus Lines Insurance Companies. The eligible surplus lines insurance company is required to have a Best's Rating of at least B+ and a Best's Financial Size Category of Class VI or better according to the most current edition of Best's Key Rating Guide, Property-Casualty, United States.

(c) The insurance shall be for the protection of the passengers of wheelchair accessible vehicle used as a vehicle for hire as well as for the general public. The required insurance shall name the city as an additional insured. The policies issued under this section shall contain a provision for a continuing liability thereon up to

the full amount thereof, notwithstanding any recovery thereon, and a provision requiring that 30 days written notice shall be given the city before cancellation of the policy is effective.

(d) If any insurer desires to be released from any insurance policy filed under this section, he may do so by giving written notice to the director at least 30 days before he desires to be released from liability. The director shall thereupon give written notice to the permittee and demand that the permittee furnish evidence of new insurance obtained before the expiration of the policy.

(e) If any policy is cancelled as herein provided, or expires and no new policy is filed by the permittee before the cancellation or expiration of the original insurance, the permit shall automatically be suspended, and the permittee shall discontinue the operation of the affected vehicles within the city. If a proper replacement policy is not provided to the director on or before the tenth business day after the date of termination or cancellation of the policy, the license shall automatically terminate.

(f) Proof of coverage shall be accepted only in the authorized form approved by the Texas Department of Insurance for that purpose.
(Ord. No. 2015-998, § 6(Exh. A), 10-14-2015)

Sec. 46-550. Authorized operators.

No wheelchair accessible vehicle used as a vehicle for hire shall be operated by anyone other than the permittee or an employee of the permittee or other person who may be operating the wheelchair accessible vehicle under a written agreement specifically incorporating therein any rules, regulations, and conditions as may be reasonably required by the director to ensure compliance with applicable laws and regulations. The permittee shall be responsible for any person operating under his permit whether the person is an employee or is a person operating under a written agreement. Any person operating a wheelchair accessible vehicle as a vehicle for hire on the streets or other public property of the city is presumed to be an employee of the permittee or to have entered into a written agreement with the permittee. Any person operating a wheelchair accessible vehicle as a vehicle for hire on the streets or other public property of the city shall be required to secure a license pursuant to article I of this chapter
(Ord. No. 2015-998, § 6(Exh. A), 10-14-2015)

Sec. 46-551. Receipt for payment of fare.

No licensee, upon receiving full payment for a fare as authorized by this article, shall refuse to provide a receipt upon the request of any passenger making a payment. The permittee shall make available to each licensee a receipt book or other electronic instrument capable of creating a record to be used for this purpose.
(Ord. No. 2015-998, § 6(Exh. A), 10-14-2015)

Sec. 46-552. Permit amendment; nonexclusive.

(a) A permit is personal to the permittee to whom it is issued and may not be leased, rented, sold, transferred or conveyed by operation of law or otherwise. Provided, any change of proprietor, change of partnership interests or change of corporate officer or director as shown on the permit application shall render a permit void, unless an application for amendment is filed within ten days following the effective date of the change. The director shall promulgate procedures for the processing of amendments and may suspend the permit(s) pending the completion of the processing if any additional person who has acquired an interest in the business is determined to have been convicted of an applicable offense as provided in subsection (c) of section 1-10 of this Code.

(b) Each permit is nonexclusive, and no limits or restrictions shall exist upon the number of wheelchair accessible vehicles used as a vehicle for hire that may be permitted, provided that each must be operated pursuant to a permit and in accordance with all applicable requirements of this article.
(Ord. No. 2015-998, § 6(Exh. A), 10-14-2015)

Sec. 46-553. Permit terms.

(a) A permit shall be valid for five years from the date of issuance.

(b) In accordance with regulations promulgated by the director, a permit may be amended, without charge, for the limited purpose of deleting or substituting any number of wheelchair accessible vehicles used as a vehicle for hire; provided however, the deletion or substitution of any wheelchair accessible vehicle used as a vehicle for hire pursuant to a current and valid permit shall require an inspection as provided for in section 46-548 of this Code.
(Ord. No. 2015-998, § 6(Exh. A), 10-14-2015; Ord. No. 2016-736, § 37, 10-5-2016)

Sec. 46-554. Street hails prohibited.

It shall be unlawful for a wheelchair accessible vehicle driver to accept or respond to a passenger's or potential passenger's request for service via traditional street hail, including hand gestures and verbal statements. A wheelchair accessible service provider shall immediately notify the department of administration and regulatory affairs and provide any evidence in its possession if it obtains actual knowledge of any violation of this subsection.
(Ord. No. 2015-998, § 6(Exh. A), 10-14-2015; Ord. No. 2019-669, § 51, 9-4-2019)

Sec. 46-555. Rates.

A wheelchair accessible service provider may not charge rates that differ from rates approved for like service under another article of this chapter. The pricing established for wheelchair accessible service must be equivalent to the pricing for non-accessible service provided to the general public by the entity that holds the current and valid permit or registration issued in accordance with another article of this chapter.
(Ord. No. 2015-998, § 6(Exh. A), 10-14-2015; Ord. No. 2019-669, § 51, 9-4-2019)

Sec. 46-556. Vehicle age and standards.

(a) Each wheelchair accessible vehicle must be a ramp- or lift-equipped wheelchair accessible vehicle or a vehicle constructed and designed or redesigned, modified, or equipped to provide vehicle for hire transportation services to persons with disabilities who require the use of a wheelchair as a means of movement or ability to move from one place to another.

(b) Except as provided in subsection (c) of this section, a licensee or permittee shall not drive or cause to be driven upon the streets of the city any wheelchair accessible vehicle that is more than 15 years old. For the purposes of this requirement, a wheelchair accessible vehicle will be considered to be 15 years old on September 30th of the 15th year following the manufacturer's model year of the vehicle, regardless of the purchase date or the date it was originally placed into service.

(c) A licensee or permittee may drive or cause to be a driven a wheelchair accessible vehicle indefinitely beyond the age limitation prescribed in subsection (b) of this section provided the licensee or permittee submits the wheelchair accessible vehicle for inspection each year, at a location authorized and identified by the director prior to the expiration of the permit and the director determines that the wheelchair accessible vehicle is in compliance with the provisions of section 46-548 of this Code and any other conditions of operation prescribed by the director.
(Ord. No. 2015-998, § 6(Exh. A), 10-14-2015; Ord. No. 2016-986, § 17, 12-14-2016; Ord. No. 2021-804, § 25, 9-15-2021)

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Chapter 47

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ARTICLE I. IN GENERAL

Sec. 47-1. Definitions.

The term "department" when used in this chapter shall mean Houston Public Works and the term "director" shall mean the Director of Houston Public Works except where the context requires otherwise.
(Code 1968, § 49-1; Ord. No. 83-19, § 22, 1-11-83; Ord. No. 90-635, § 152, 5-23-90; Ord. No. 91-1076, § 11, 7-17-91; Ord. No. 93-514, § 111, 5-5-93; Ord. No. 2018-11, § 32, 1-10-2018)

Sec. 47-2. Applicability of chapter to water systems of former water control and improvement and fresh water supply districts.

The provisions of this chapter applicable to water service and rates and charges therefor shall be applicable not only to the city water distribution system proper but also to the water systems of those certain former water control and improvement and fresh water supply districts, and all other water distribution systems, which have been taken over for operation and are being operated by the city as the result of annexations made of areas which included the entire areas of such districts.
(Code 1968, § 49-2)

Sec. 47-3. Responsibility to repair, replace, etc., facilities installed by former water control and improvement or fresh water supply district.

In those instances where a water control and improvement or fresh water supply district has installed water and sanitary sewer and drainage facilities in undeveloped areas and such district is thereafter annexed by the city and abolished as provided by law, any person desiring to subdivide, develop or build in any such area shall bear the cost and expense of repairing, replacing, testing and placing such facilities in operational condition acceptable to the director,

as and until such time as any such person desiring to use any such facilities has, at his own

cost and expense, placed such facilities in such proper operational condition, no building permits within such area shall be issued by the city, and no connections for services from any such facilities will be allowed by the city.
(Code 1968, § 49-3)

Sec. 47-4. Use of water meter required; exception for fire sprinkler systems previously installed.

(a) Metered water service requirements.

(1) *Definitions.* The following terms, when used in this subsection, shall have the meanings ascribed to them in this item, except where the context clearly indicates a different meaning:

Closed type sprinkler system is a sprinkler system in which no water can be drawn off except through a sprinkler head, main drain, or inspector's test connection.

Open type sprinkler system is any sprinkler system other than a closed type sprinkler system, including those using a tank or hose valves.

(2) Water will be furnished and delivered through the water distribution system of the city only through meters. Meters must be listed on the City of Houston Public Works product approval list.

(3) Open type automatic fire sprinkler systems will be metered by a fire rated meter as specified by the utility official.

(4) Closed type automatic fire sprinkler systems either will be metered by a fire rated mater or will have a city approved backflow prevention device with a bypass meter. When a property owner elects to use a backflow prevention device, the backflow prevention device will be located on private property in a location that may be inside or outside of the structure as approved by the utility official and will be owned and maintained by the property owner, provided that the bypass meter will be owned and maintained by the city.

(b) The provisions of subsection (a) shall not apply to the continuation of unmetered water service for fire sprinkler systems installed prior to October 2, 2002, unless:

(1) Testing by the utility official determines that there is an unauthorized flow of water through the fire line;

(2) An illegal connection to a fire line is found through which water for domestic purposes can flow without being metered; or

(3) The building owner or manager fails to provide access upon request to the utility official to inspect and/or test the system.

(Code 1968, § 49-4; Ord. No. 02-926, § 1, 10-2-02; Ord. No. 03-332, § 1, 4-2-03; Ord. No. 2018-11, § 50, 1-10-2018)

Sec. 47-5. Connections generally.

It shall be unlawful for any person other than the authorized employees of the department, persons authorized in writing by the utility official pursuant to the regulations promulgated pursuant to subsection (b) of section 47-18 of this Code, and persons authorized pursuant to a written contract or agreement therefor executed by the city, to make any tap, or connection with, or repair or attachment to the water mains or water distribution pipes of the city, or to pipes belonging to the water customers of the city situated on any city property, or to any pipes or mains not metered, or to any fixture connected to said pipes or mains.
(Code 1968, § 49-5; Ord. No. 90-635, § 153, 5-23-90; Ord. No. 2013-320, § 2, 4-10-2013, eff. 6-1-2013)

Sec. 47-6. Drinking water.

The utility official shall conduct an effective program to insure that all drinking water used by the residents of the city is safe and free from any deleterious matter and that it complies with all laws, rules, regulations and standards for drinking water of the state and the United States. Such program shall include, but not be limited to, the duty to:

(1) Conduct drinking water quality monitoring and evaluation and maintain records thereof.

(2) Investigate complaints of violation of Article 4477-1 of the Revised Civil Statutes of Texas and other state and federal laws applicable to drinking water standards and rules, regulations and standards issued thereunder by obtaining samples of drinking water, performing analysis and testing thereof and maintain records of such complaints, sampling, testing and analysis.

(3) Cooperate with the city attorney and with county, state and federal officers, offices, departments and agencies in the filing and prosecution of legal actions for the enforcement of civil and criminal sanctions relating to the provision, use, sale or supply of unsafe drinking water.

(4) Collect and disseminate information to the general public regarding drinking water quality and safety.

(Ord. No. 2015-820, § 30, 8-26-2015)

Sec. 47-7. Control of water service connection.

The department shall own and maintain that part of the water service connection extending from the main to the meter, including the service line, meter, meter box, vault enclosure, and attached electronic devices. No person may remove, repair or tamper with any of the elements of the water service connection except with the consent of the utility official. Violation of this section shall be punishable by a fine not to exceed $500.00. Provided, however, this section does not prohibit the resident or custodian of the property from shutting off the water at the meter if necessary to prevent water loss due to frozen water pipes and other emergencies.

(Code 1968, § 49-7; Ord. No. 87-538, § 1, 4-21-87; Ord. No. 93-514, § 112, 5-5-93; Ord. No. 07-599, § 2, 5-16-07)

Sec. 47-8. Application for installation of water meter.

Any person desiring the installation of a water meter must complete an application for installation of the meter. The application shall include the name and address of applicant, the billing address, the type of service requested, and any other information required by the utility official.

(Code 1968, § 49-8; Ord. No. 07-599, § 3, 5-16-07)

Sec. 47-9. Enforcement.

The department shall have the authority to issue citations for unlawful acts as described in this chapter including, but not limited to, furnishing the city false or fraudulent information. Each offense shall be punishable by a fine of not less than $50.00 and no more than $500.00 unless otherwise specified. Each day the violation continues shall constitute a separate offense. The city reserves the right to seek civil remedies for any such offenses as well as penal sanctions.

(Ord. No. 07-599, § 4, 5-16-07)

Sec. 47-10. Installations for supplying boilers or hot water tanks.

Installations for supplying boilers or hot water tanks shall be made in such manner as will prevent the hot water from backing into the meter. The owner of the premises will be held responsible for all damages to meters resulting from hot water backing up into them.

(Code 1968, § 49-10)

Sec. 47-11. Required connections to public sewers.

All owners of real property having a building or structure thereon shall ascertain the availability of city sewer service for the owner's property. If such property is situated within 300 feet of a city sewer main, the owner shall within 60 days of notice from the department apply for a sewer tap permit and pay any fee due the city for the permit including sewer impact fees if applicable. The connection must be completed six months after the date of the application for the permit, unless the utility official, because of extraordinary circumstances, grants additional time. After expiration of the six-month period, the department shall charge the owner's account for sewer service unless the utility official grants additional time.

During the same six-month time period the owner must also remove all septic tanks from the property, or in the alternative, may leave any

tanks in place and fill them with sand or dirt after the waste has been removed. The owner must ensure all remediation is in accordance with requirements established by the department.

In addition to other remedies available to the department, in the event the owner fails to comply with this section, the department may terminate water service to the property. Provided, however, in the event the department terminates water service, it must provide notice to the owner and the opportunity for an administrative hearing as provided in section 47-70 of the Code.

Any person owning such property, who after notice from the department fails the comply with these requirements within the time period specified herein, shall be guilty of an offense punishable by a fine not to exceed $2,000.00. Each day the violation continues shall constitute a separate offense.
(Code 1968, § 49-10.1; Ord. No. 69-1637, §§ 1—3, 9-3-69; Ord. No. 87-2064, § 1, 12-22-87; Ord. No. 07-599, § 5, 5-16-07)

Sec. 47-12. Application and permit for sewer service generally.

Any person desiring sewer service from the city who is not currently a water customer of the city shall make application therefor to the utility official on forms furnished by such official. Upon obtaining a permit from the utility official authorizing such service, and upon making the deposit required by section 47-126 of this Code, and executing a form of agreement provided for by the city for sewer service, such person shall, subject to the provisions of this chapter and other city ordinances governing same, be entitled to receive from the city sanitary sewer service.
(Code 1968, § 49-11; Ord. No. 90-635, § 153, 5-23-90)

Sec. 47-13. Sewer lines and facilities for industrial, institutional, commercial and other developments.

For industrial, institutional, commercial and other developments (including among others, by way of example but not by limitation, apartment projects, shopping centers, medical centers, condominiums, et cetera), where it is intended that title to all of the land to be developed will remain as a unit in the developer or his assigns, and the improvements to be constructed thereon may or may not be leased, rented or sold to others, sanitary sewer lines and facilities to provide service to such land and the improvements thereon shall be installed, repaired and maintained at no cost or expense to the city and title to such sanitary sewer lines and facilities shall remain vested in the owners of the land and be such owners' sole responsibility. No permit will be issued by the city authorizing such sanitary sewer lines and facilities to be constructed or to be connected to the city's sewer system until the city has approved the plans for such lines and facilities and the applicable connection charge has been paid to the city in cash in full. All such sewer lines shall be inspected during their construction by the city and, upon completion, tested to insure compliance with the latest adopted standard specifications of the city.
(Code 1968, § 49-12)

Sec. 47-14. Retail water or sewer service outside city limits.

(a) This section applies to any retail water or sewer service requested to be provided by the city at premises which are located, in whole or in part, outside of the corporate limits of the city. As used in this section, "retail water or sewer service" means service provided by the city directly to the ultimate retail consumer (to one customer per connection) at premises under common ownership. "Retail water or sewer service" does not include:

(1) Service provided by the city on a wholesale basis under contract whereby the buyer intends to resell such service to the ultimate retail consumers of such service;

(2) Service provided in bulk under contract authorized by the city council; or

(3) Untreated water service.

(b) No such retail utility service shall be provided for consumption at premises located in whole or in part outside of the corporate limits of the city unless the customer desiring such service

has filed an application with the director and such application has been effectively approved as required by this section. An application may be made for water service or sewer service, or both.

(c) The application for such service shall be made upon a form supplied by the director which is substantially similar to the forms used for applications for service to premises inside the corporate limits, except that each application must contain a conspicuous statement in substantially the following form:

THE APPLICANT UNDERSTANDS THAT ALL ORDINANCES OF THE CITY (AS NOW WRITTEN AND AS HEREAFTER AMENDED) WHICH RELATE TO WATER OR SEWER SERVICE OR TO PLUMBING MATTERS, INCLUDING THOSE ORDINANCES WHICH IMPOSE CRIMINAL SANCTIONS, APPLY TO WATER AND SEWER SERVICES PROVIDED BY THE CITY TO PREMISES OUTSIDE OF THE CORPORATE LIMITS. THE APPLICANT ALSO UNDERSTANDS THAT THE CITY MAY SUSPEND OR DISCONNECT SUCH SERVICES IN THE EVENT THAT THE APPLICANT OR ANY OTHER PERSON AT THE PREMISES TO BE SERVED FAILS TO COMPLY WITH SUCH ORDINANCES, WITHOUT REGARD TO WHETHER OR NOT CRIMINAL SANCTIONS ARE ENFORCEABLE AGAINST ANY SUCH PERSON.

(d) No such application shall be accepted by the director unless the application is completed and properly signed by the applicant. No such application shall be approved by the director unless:

(1) The applicant has paid all applicable charges prescribed by the ordinances of the city, including the provisions of this chapter and the ordinances listed in section 47-42 of this Code;

(2) The applicant has paid all other applicable tapping and meter charges and has made any necessary deposit to secure payment of monthly charges;

(3) In the case of sewer service, the applicant has paid the prescribed *Plumbing Code* inspection fees and the director has received written evidence from the appropriate plumbing official that the plumbing system at the premises to be served has been inspected by the city and is in compliance with the *Plumbing Code;* and

(4) The applicant has submitted proof to the director that the premises to be served are outside of the corporate limits of the city and are under common ownership and that the applicant is the proposed ultimate retail consumer of the requested service and the sole customer to be served by the connection to be established pursuant to the application.

Notwithstanding the foregoing, in the case of a plumbing system which is not in existence at the time the application is considered for approval, the director may approve such application upon the express condition that the plumbing system at the premises to be served be inspected by the city and found to be in compliance with the Plumbing Code before any connection to city water or sewer facilities is made. Any such conditional approval which may be given shall be ineffective unless and until such inspection and finding have occurred.

(e) No application shall be approved unless the director determines that the requested service is engineeringly feasible and that sufficient capacity exists to provide such service.

(f) This section shall not authorize the extension of any utility facilities (other than the installation of a tap or meter, as the case may be). This section shall not affect any other requirements of the city's ordinances relating to extensions of utility facilities.

(g) All ordinances of the city as now written or hereafter amended which relate to water or sewer service or to plumbing matters, including those ordinances which impose criminal sanctions, shall hereafter apply to retail water and sewer utility services provided by the city to premises located outside of the corporate limits. Any such services may be suspended or disconnected in the event that a customer of the city or any other person at the premises so served fails

to comply with such ordinances, without regard to whether or not criminal sanctions are enforceable against any such persons.
(Code 1968, § 49-13; Ord. No. 81-488, § 1, 3-17-81; Ord. No. 2021-1037, § 20(Exh. I.53, 54), 12-1-2021, eff. 4-1-2022)

Sec. 47-15. Responsibility of the department.

It shall be the responsibility of the department to provide each city customer an accurate bill. If the bill is inaccurate, the department shall correct the bill in a timely manner and correct the customer's account in accordance with the provisions of this chapter.
(Ord. No. 07-599, § 6, 5-16-07)

Sec. 47-16. Right of city to use, close or disconnect private sewers.

(a) The city shall have the right at all times, through the utility official, chief plumbing inspector or health officer, to connect with and use any private sewer built upon any public street or to reconstruct or close up or disconnect any private sewer which, from any cause, may have become a nuisance.

(b) The utility official shall have the power to stop and prevent the discharging into any public, private or house sewer or drain substances that are liable to obstruct or clog the public sewer, or in any manner injure it, or to disconnect any sewer or house drain that may have been installed contrary to the provisions of this chapter or other ordinances of the city, or that receives the drainage from a plumbing installation not in accor-

dance with this chapter or other ordinances, and to this end may, after five days' notice to the owner thereof, disconnect any such private sewer or drain, and it is made his duty to do so.
(Code 1968, § 49-15; Ord. No. 90-635, § 153, 5-23-90)

Sec. 47-17. Reserved.

Editor's note—Ord. No. 07-599, § 7, adopted May 16, 2007, repealed § 47-17 in its entirety. Formerly said section pertained to water tap charges and derived from Code 1968, § 49-16; Ord. No. 73-836, § 1, 5-8-73; Ord. No. 78-631, § 1, 3-29-78; Ord. No. 83-19, § 1, 1-11-83; Ord. No. 90-635, § 153, 5-23-90.

Sec. 47-18. Installation of water meters.

(a) Subject to the provisions of section 47-18.1 of this Code, the department shall not accept an application for the purchase of a water meter unless the application includes payment in full for the meter and appurtenances as well as the inspection fee. Provided, however, if a meter has already been installed, the applicant may exchange the meter for a larger meter and pay the city the difference between the cost of the original meter and the new larger meter plus the inspection fee.

(b) The utility official shall prescribe regulations for the furnishing and installation of meters by private contractors. Any person turning on the water without written approval of the department shall be guilty of an offense.

(c) The department shall charge for meters at the actual cost to the city, including cost for the meter, meter box and the required electronic devices. The department shall also charge for its inspection of the meters at the rates stated for this provision in the city fee schedule. The department shall not furnish water service until the applicant pays all charges required by the city.

(d) The applicant or his designated agent may request that the department set a time for the inspection of the water meter tap. If the applicant or its agent fails to keep the appointment and does not provide at least one hour's notice to the department, the department shall charge the agent an additional fee stated for this provision in the city fee schedule.
(Code 1968, § 49-17; Ord. No. 73-836, § 2, 5-8-73; Ord. No. 78-631, § 2, 3-29-78; Ord. No. 83-19, § 2, 1-11-83; Ord. No. 90-635, § 153, 5-23-90; Ord. No. 07-599, § 8, 5-16-07; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 47-18.1. Tap and meter charges for certain acquired customers.

(a) *Definition.* In this section, "*acquired customer*" means:

(1) Any customer occupying the same building or structure to which water service was actually provided by a private utility company at one time, but which utility has since been acquired by the city by purchase, condemnation or gift; or

(2) Any applicant for water service occupying the same building or structure to which water service was actually provided at one time by a private utility company holding a certificate of convenience and necessity issued by the Public Utility Commission of the State of Texas (or other state agency) to serve the area in which the premises are located, but which utility's certificate of convenience and necessity has been revoked or amended to exclude the area in which the premises are located.

(b) Applicability; conflicting provisions. Water taps and water meters installed to serve acquired customers shall be governed by section 47-18 of this Code, except as provided below. This section controls over any conflicting provision of section 47-18.

(c) *Existing meters.* Any acquired customer whose premises in the six months preceding acquisition or decertification of the private utility company were served by a meter formerly owned by a private utility company shall be entitled to a $50.00 reduction in the amount of any meter charge otherwise applicable. An acquired customer occupying the same building or structure to which water service was actually provided at one time by a private utility company which has been

acquired by the city, and whose premises are currently served by a meter formerly owned by a private utility company, may exchange such meter for a meter of like size with no meter charge.

(d) *Installment payments—When due.* When an acquired customer is required to pay a meter charge or tap charge, or both, such payment may be made either in cash or in equal installments. Each such installment shall be 1/18 of the total payment. The first installment is due at the time that application for the work is made, and the remaining 17 installments come due on the last day of each even-numbered month thereafter.

(e) *Same—Delinquent; subsequent customers.* When an acquired customer begins making any such installment payments but fails to pay all installments, and if another acquired customer desires to make application for water service to the same premises, then the subsequent acquired customer shall be required to pay the full tap and meter charges applicable to the acquired customer who first elected to pay in installments, less any payments or installments made by the first customer and any intervening customers. The subsequent customer may pay such charges in cash or in installments, each of which shall be equal to the installments begun by the first customer. The first such installment shall be due when the subsequent customer makes application, and the installments come due on the last day of each even-numbered month thereafter until the full charges applicable to the subsequent customer are paid.

(Code 1968, § 49-17.1; Ord. No. 83-19, § 3, 1-11-83; Ord. No. 83-907, §§ 1, 2, 6-14-83; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2013-320, § 3, 4-10-2013, eff. 6-1-2013)

Sec. 47-19. Reserved.

Editor's note—Ord. No. 07-599, § 9, adopted May 16, 2007, repealed § 47-19 in its entirety. Formerly said section pertained to title to water meters and appurtenances; unauthorized opening, etc., of meter box; maintenance of meters and derived from Code 1968, § 49-18; Ord. No. 87-538, § 2, 4-21-87.

Sec. 47-20. Setting of meters.

It shall be an offense for any person to install, repair, or perform any work or adjustment to a city water meter (including meter boxes and electronic devices) without authorization by the department.

(Code 1968, § 49-19; Ord. No. 07-599, § 10, 5-16-07)

Sec. 47-21. Water meter and box to be free from rubbish and obstructions.

Wherever a water meter is set, whether in an easement or in the basement of a building, the customer shall keep the space occupied by the meter and the meter box or vault free from rubbish, animals or obstructions of any kind. In the event the water meter box or vault is buried or obstructed, the department may give written notice to the customer requiring such person to uncover or remove obstructions from the meter box or vault within 30 days of the notice. If the customer does not remove the obstruction, the city may remove the obstruction and charge the customer or property owner the city's cost for such work. If the customer fails to make payment, the city may file a lien against the property as provided in section 47-44 of this Code. If the meter is obstructed by persons not controlled by the customer or owner, or by conditions beyond control of the customer, the city may remove the obstructions or uncover the meter and bring appropriate legal action against the person responsible for the obstructions."

(Code 1968, § 49-20; Ord. No. 07-599, § 11, 5-16-07)

Cross reference—Solid waste and litter control, Ch. 39.

Sec. 47-22. Transient water meters.

(a) Persons desiring to use a transient water meter shall make such application as may be required by the department and make a cash deposit in accordance with the following schedule to secure the city against any loss, damage or water charges:

Transient Water Meter Size (Inches)	*Deposit*
1	$500.00
2	$1,000.00
3	$1,500.00

(b) Such meter and appurtenances will be installed by authorized city personnel and shall be made available for reading and inspection at all reasonable hours. The director shall establish procedures for installation, repairs, maintenance, disconnection and relocation of said meters, and said procedures will be made available to the applicant at the time of initial application.

(c) Any transient meter moved from its original location by unauthorized personnel shall authorize the city to forfeit the entire amount of the customer's deposit. In the event that the applicant wishes to have the transient water meter relocated after installation, it shall be the duty of the applicant to request that authorized city personnel relocate said meter. The charge stated for this provision in the city fee schedule shall be assessed for the relocation of a transient water meter.

(d) Rates for water usage through a transient water meter shall be as specified in section 47-61 of this Code. In addition to a charge for water usage, a rental rate shall be charged for each month or portion of a month the meter is held by the transient meter customer according to the city fee schedule.
(Code 1968, § 49-21; Ord. No. 73-836, § 3, 5-8-73; Ord. No. 83-19, § 4, 1-11-83; Ord. No. 07-599, § 12, 5-16-07; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 47-23. Furnishing water where only available fixture is hydrant or spigot placed in parking section of street; location of hydrant or spigot in yard or common area; etc.

With the exception of temporary service for building construction purposes and similar circumstances, water will not be furnished where the only fixture available is a hydrant or spigot placed in the parking section of the street, and all such water service lines shall be metered. No hydrant or spigot will be placed in any yard, or common area in any premises so situated as to be accessible to persons living in or occupying adjoining premises. No branch shall be taken off a service pipe until after it enters the property of the applicant and then only for providing services to the property of applicant.
(Code 1968, § 49-22)

Sec. 47-24. Warranties; contracts; liability.

(a) The city makes no warranties, either express or implied, with respect to any water or water service. No industrial customer, commercial customer or any other customer, consumer or person is guaranteed any specific quantity, quality, pressure or other characteristic of water or water service. No officer, agent or employee of the city is authorized to make any warranty or guarantee with respect to water or water service, unless such warranty or guarantee is contained in a written contract duly authorized by motion, resolution or ordinance duly adopted by the city council and duly signed by the mayor. Should any express or implied warranty ever be applicable to water or water service provided by the city, the city disclaims any and all implied warranties of merchantability or fitness for a particular purpose, except to the extent contained in a written contract described in this subsection.

(b) Inasmuch as the city is not operated for profit and water charges are computed to cover only the costs of service, the city shall never be liable for any direct, indirect, special, incidental or consequential damages arising out of or relating to water or water services, whether based on contract, tort or other legal theory. The provisions of this Code relating to reductions of water charges in certain circumstances are sole and exclusive remedies.
(Code 1968, § 49-23; Ord. No. 83-19, § 23, 1-11-83)

Sec. 47-25. Reserved.

Editor's note—Ord. No. 01-753, § 2, adopted Aug. 8, 2001, repealed § 47-25 in its entirety. Formerly, said section pertained to water emergencies. See the Code Comparative Table.

Sec. 47-26. Access to premises supplied with water.

The utility official and other employees in the department shall have free access at all reasonable hours of the day to all parts of any premises to which water is supplied.
(Code 1968, § 49-24; Ord. No. 90-635, § 153, 5-23-90)

Sec. 47-27. Maximum size of water service connection for fire protection or hydraulic motors.

No water service connection for fire protection or hydraulic motors shall be made larger than eight inches unless approved by the utility official in conformance with the Construction Code.
(Code 1968, § 49-25; Ord. No. 02-926, § 2, 10-2-02)

Sec. 47-28. Right of fire department to use water facilities supplied for fire protection.

In case of fire, the fire department shall have the right to use any hydrant, cistern, hose, pipe or other fixtures supplied wholly or in part from any service pipe used for fire protection.
(Code 1968, § 49-26)

Sec. 47-29. Reserved.

Editor's note—Former § 47-29, which pertained to restrictions on the provision of water service for fire protection purposes, was repealed by § 1 of Ord. No. 86-2109, enacted Dec. 3, 1986. The repealed provisions derived from § 49-27 of the 1968 Code.

Sec. 47-30. Interference with fire hydrants, cisterns, etc.

(a) Every hydrant placed by the city for the purpose of extinguishing fires is hereby declared to be a public hydrant, and no person other than members of the fire department, the Houston Health Department, and those authorized by the utility official, shall open any of such hydrants, or draw or attempt to draw water from the same, or in any manner interfere with such hydrants.

(b) No person, unless authorized by the department, shall except in time of fire, take water from any public cistern or fire plug, or other means of supply, or place or remove the cover from any such public cistern or fire plug, or place or deposit any dirt or material in any such fire plug, or in the box or appendage connected therewith, or turn any public or private stopcock, or remove the cover from any private stopcock, or permit any act tending to obstruct the use thereof.
(Code 1968, § 49-28; Ord. No. 90-635, § 153, 5-23-90; Ord. No. 2015-820, § 34, 8-26-2015)

Sec. 47-31. Obstructing access to hydrants.

No person shall in any manner obstruct the access to any hydrant connected with any water pipe in any street, alley or common in the city, by means of any lumber, brick, building material or other article, or by any hindrance whatsoever.
(Code 1968, § 49-29)

Sec. 47-32. Pollution of reservoirs.

It shall be unlawful for any person to put any filth, animal matter, chips, shavings or any other substance into or to bathe in any city water reservoir, tank or other portion of the city water system. This section shall not be construed to prohibit swimming, fishing and other recreational activities in and upon Lake Houston in those portions of Lake Houston where such activities are authorized pursuant to this Code. A violation of this section shall be punishable by a fine of not more than $4,000.00.
(Code 1968, § 49-31; Ord. No. 2021-431, § 8, 5-26-2021)

Cross reference—Lake Houston, Ch. 23.

Secs. 47-33, 47-34. Reserved.

Editor's note—Ord. No. 01-800, § 4, repealed §§ 47-33 and 47-34 in their entirety. Formerly said sections pertained to prohibited deposits in storm sewers and watercourses generally and placing cuttings, clippings, other trash into storm sewers, gutters draining into storm sewers and derived from Code 1968, §§ 49-32 and 49-32.1.

Sec. 47-35. Waste of percolating water.

It shall be unlawful for any person to commit waste of percolating waters within the city limits by pumping the same into streets, storm sewers, drainage ditches, or natural waterways, except

as a temporary measure where required as an incident to the bona fide excavation for the construction of a building or structure, or any public work or public construction.
(Code 1968, § 49-35)

Sec. 47-36. Construction of surface water drains.

(a) It shall be unlawful for any person to construct or maintain any drain into a public street from private property, where the same has been laid for the purpose of draining surface

water from such private property, or for the purpose of taking care of rainwater and water from the roofs of buildings on private property, unless such drain shall be laid from the property line to the street, curb or ditch, and be constructed entirely of durable and substantial material as approved by the Director of Houston Public Works or his designee, and be laid entirely underneath the surface of the ground in the sidewalk, and be covered at all points where the same crosses under such sidewalk, and in the event such drain shall cross under a cement or concrete sidewalk, there shall be not less than two inches of concrete on top of such drain or pipe, and the surface of the sidewalk where such pipe shall cross the same shall be made to conform in height and level to the balance of such sidewalk. All existing drains heretofore laid from property line to the gutter or ditch in any public street shall be made to conform to the provisions of this section. Where tops of drain leaders do not exceed 25 feet above top of curb or ground at property line, drains may be taken through curb or into ditch. Where drain leaders do exceed 25 feet above top of curb or ground at property line, drains must be taken into a catch basin or curb inlet.

(b) The owner of any property in the city, or his lessee, who is maintaining any drain pipe across any sidewalk in the city, or any downspout not in conformity with the provisions of this section, shall upon notice in writing from the Director of Houston Public Works or the chief of police, remove such drain or pipe and make the same conform in every respect to the requirements of this section, and failure for five days on the part of such owner, agent or lessee to make such pipe or drain conform to the provisions of this section, after receiving such notice, shall constitute an offense, and each day such owner, agent or lessee shall neglect to correct or repair such drain pipe, after receiving the notice above mentioned, shall constitute a separate offense.
(Code 1968, § 49-35.1; Ord. No. 67-2032, § 1, 10-24-67; Ord. No. 90-635, § 154, 5-23-90; Ord. No. 93-514, § 113, 5-5-93; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 47-37. Misuse of water; altering plumbing system.

(a) No person shall apply water furnished by the city to any use different from that named in the application or contract for water service, nor shall any customer supply water to other persons or to other families or permit them to take water, nor shall any person, after the water is introduced to any building or upon any property make any tap or connection upon such property for the purpose of altering, repairing, or making extensions or attachments to furnish water to other families on such property. Misuse of water also includes theft of water service, making an unauthorized connection, construction of a bypass of the water meter or use of any other device or arrangement that would prevent the water meter from correctly measuring the customer's water supply from the city. Any waste or misuse of water shall be an offense.

It is prima facie evidence that a person has misused water or tampered with the meter if the person is the customer or owner of the property and:

(1) Water is prevented from passing through the city's meter;

(2) The city's meter is prevented from correctly registering the quantity of water supplied to the property unless the faulty measurement is due to age, normal wear and tear or natural causes;

(3) Water is diverted or bypassed around the meter;

(4) The city's meter or service connection to the property is removed; or

(5) Wastewater is prevented or diverted from flowing from the property into the city's wastewater system.

(b) It shall be an offense for any person to use water (i) from a connection to a city water main except through meter properly measuring the flow, (ii) for any property that does not have a separate meter to measure water for the family or business receiving the water, or (iii) for any purpose not specified in the application, contract or permit with the city.

(c) Unmetered fire sprinkler lines installed prior to October 2, 2002, and fire sprinkler lines with city approved backflow prevention devices with a bypass meter may be used only for fire protection. If there is any other usage of the fire sprinkler lines in excess of 1,000 gallons per month for each fire system, except for permitted construction, remodeling or expansion of existing systems, the department shall require that line be metered with a fire rated meter as specified in subsection (b) of section 47-38 of this Code.
(Code 1968, § 49-36; Ord. No. 02-926, § 3, 10-2-02; Ord. No. 03-332, § 2, 4-2-03; Ord. No. 07-599, § 13, 5-16-07)

Sec. 47-38. Discontinuing service for waste or misuse of water.

(a) If any customer causes or permits any waste or misuse of city water contrary to the provisions of this chapter or other ordinances of the city, the department may upon notice to the customer terminate the customer's water connection, excluding any independently served fire service, and restore regular service only at such time as the objectionable conditions have been corrected to the satisfaction of the utility official. Provided, however, the customer shall have the right to request an administrative hearing as provided in section 47-70.1 of this Code. Violation of this subsection shall be an offense.

(b) If unauthorized usage or an illegal connection is found on any unmetered fire line or on an unmetered fire line with a city approved backflow prevention device and a bypass meter, or if the utility official is refused reasonable access upon request to test any unmetered fire line, the utility official shall notify the property owner or manager that the line must be metered with a fire rated meter within 120 days. The new meter must meet the specifications outlined in section 47-4 of this Code, and be installed on private property in the city easement. The property owner will take whatever steps are required to assure that the fire protection system meets all requirements of the Construction Code and the Fire Code, and shall provide appropriate documentation to city code enforcement official that the installation of a full flow meter has not compromised the integrity of the existing fire sprinkler system. If the property owner or manager fails to timely install the meter, service to all other service accounts except fire service accounts at the property location shall be terminated. During the interim period, usage through the unmetered fire line will be estimated and billed based on usage found during the test or based upon the utility official's estimation of usage if testing is refused.

A person who receives a notice to install a meter under this subsection shall upon request be entitled to a hearing regarding the matter, which shall be afforded in the same manner provided in section 47-70 of this Code. In the event that the hearing official finds that the notice has been issued in error and that there has in fact been no unauthorized, illegal connection or failure to allow access for inspection, then the hearing official shall order the notice withdrawn. Additionally, the hearing official shall be authorized to suspend the notice upon request of the customer and demonstration by the customer that: (1) the customer has not committed any other violation of section 47-4 of this Code within the preceding period of five years, (2) the violation giving rise to the notice was not intentionally committed, (3) the customer has taken effective steps to prevent future violations, and (4) the customer has agreed to reimburse the city for any unauthorized water use and all administrative expenses of the investigation and hearing proceedings in an amount established by the hearing official.

(c) When water is turned off under this section, the reconnection fees prescribed by section 47-70 of this Code shall apply and the service shall not be resumed until such fees have been paid. In addition, the provisions of subsection (f) of section 47-70 of this Code shall apply to such cases where the water is turned on by any unauthorized person or where the utility official deems it necessary to take the steps authorized by subsection (f) of section 47-70 of this Code to protect the city against waste or misuse of water.
(Code 1968, § 49-37; Ord. No. 90-635, § 153, 5-23-90; Ord. No. 02-926, § 3, 10-2-02; Ord. No. 03-332, § 2, 4-2-03; Ord. No. 07-599, § 14, 5-16-07)

Sec. 47-39. Notice of consumer's desire to disconnect premises from water service.

Whenever a consumer of city water does not desire to be furnished with water any longer, he shall notify the department at least two days prior to the time he desires his premises to be disconnected.
(Code 1968, § 49-38)

Secs. 47-40—47-42. Reserved.

Editor's note—Ord. No. 96-1248, § 2, adopted Nov. 26, 1996, repealed former §§ 47-40—47-42, which pertained to provisions relating to the release of liens for water and sewer extensions. Regarding references to section 47-42, see section 47-325.

Sec. 47-43. Acceptance of esplanade irrigation systems by the city.

(a) The city shall accept donations of privately constructed irrigation systems located in roadway esplanades in accordance with the following conditions and procedures:

(1) The requesting party shall apply in writing to the department of parks and recreation of the city.

The application shall include:

a. An inventory of irrigation facilities;

b. The date of construction of the facilities;

c. A diagram showing all piping, connections, sprinkler heads and other appurtenances; and

d. A signed deed of gift transferring the irrigation facilities to the city.

(2) If the application is complete, the director of parks and recreation department ("director of parks") shall sign his approval to the deed of gift and forward the application to Houston Public Works for review. If the Director of Houston Public Works finds that the system is acceptable in accordance with the criteria established in accordance with subsection (b) and that the applicant has paid all outstanding water bills for the system transferred, the Director of Houston Public Works shall sign the deed of gift indicating the city's acceptance of the system.

(3) In no event shall the Director of Houston Public Works be authorized to excuse or authorize the cancellation of outstanding water bill(s) for the applicant's irrigation system in exchange for the transfer of the irrigation system.

(b) The Director of Houston Public Works and the director of parks shall jointly promulgate rules and regulations regarding the transfer of irrigation systems, including criteria for city acceptance, and forms for the application and the deed of gift. Such rules and regulations shall be available:

(1) At the office of the city secretary;

(2) At the office of the director of parks; and

(3) At the office of the Director of Houston Public Works.

The rules and regulations established hereunder may be amended or supplemented from time to time as mutually agreeable to the Director of Houston Public Works and the director of parks.

(c) The department of parks and recreation shall be responsible for maintenance of all esplanade irrigation systems donated to the city.

(d) After the date of acceptance of an irrigation system by the city (execution by the Director of Houston Public Works of the deed of gift), billing for water usage by such system shall be transferred to the city.
(Ord. No. 86-1991, § 1, 11-18-86; Ord. No. 90-635, §§ 156, 157, 5-23-90; Ord. No. 93-514, §§ 115, 116, 5-5-93; Ord. No. 2018-11, §§ 33, 49, 50, 1-10-2018)

Sec. 47-44. Delinquent water and wastewater charges—Lien authorized*.

(a) The city is authorized pursuant to the state constitution and the Texas Local Government Code to impose liens on property incurred as a result of nonpayment for water or wastewater service to such property.

(b) The city council has determined that water and sewer services benefit:

(1) The occupants of property served;

(2) The owners of property served; and

(3) The property served.

(Ord. No. 89-24, § 1, 1-4-89; Ord. No. 90-635, § 153, 5-23-90; Ord. No. 03-925, § 3, 10-8-03; Ord. No. 03-1196, § 2, 12-23-03; Ord. No. 07-599, §§ 15, 16, 5-16-07)

*__Note—__On October 8, 2003, City Council adopted Ordinance 2003-925, establishing drainage utility service charges for property in the City. The City received a referendum petition under Article VII-b of the Charter regarding Ordinance 2003-925. On December 23, 2003, rather than calling an election, City Council adopted Ordinance No. 2003-1196, which completely repealed Ordinance No. 2003-925.

Sec. 47-45. Same—Procedures relating to filing of liens; release of liens*.

(a) A lien for delinquent water and wastewater service charges may be filed any time after the conditions specified in section 47-44 obtain.

(b) The form of lien shall be promulgated by the Director of Houston Public Works and approved by the city legal department. The form shall contain:

(1) A statement indicating the purpose of the lien;

(2) The address of the property which is the subject of the lien;

(3) A complete legal description of the property which is the subject of the lien; and

(4) The amount of delinquent charges incurred upon the property as of the date of execution of the lien.

(c) Each lien that is filed shall be:

(1) Executed by the utility official and acknowledged by a notary public of the state; and

(2) Filed in the deed or lien records of the county in which the property is located.

(d) Should additional delinquent charges be incurred subsequent to the date of the original lien, additional liens may be executed and filed, in the form provided above, fixing the additional delinquent charges.

(e) The city attorney may file suit to judicially foreclose the lien in a state court of competent jurisdiction.

(f) When all delinquent charges which existed against the property have been fully paid, the utility official is authorized to execute a release of the lien. The release shall be prepared and approved as to form by the city attorney and shall be duly acknowledged. After execution, the utility official must immediately file the release in the deed or lien records of the county in which the property is located.

(g) No water or sewer services shall be provided to property encumbered by a lien filed pursuant to this division. Provided, however, the utility official shall be authorized to reconnect water and wastewater services if the customer agrees in writing to pay the accrued water and wastewater charges for such property in accordance with a payment schedule acceptable to the utility official.

(h) This section is cumulative of any other remedies, methods of collection or security available to the city under the charter and ordinances of the city or under state law. This section does not affect the department's authority to refuse or to furnish service when delinquent charges exist.

(Ord. No. 89-24, § 2, 1-4-89; Ord. No. 90-635, §§ 153, 158, 5-23-90; Ord. No. 93-514, § 117, 5-5-93; Ord. No. 03-925, § 3, 10-8-03; Ord. No. 03-1196, § 2, 12-23-03; Ord. No. 2018-11, § 49, 1-10-2018)

*__Note—__On October 8, 2003, City Council adopted Ordinance 2003-925, establishing drainage utility service charges for property in the City. The City received a referendum petition under Article VII-b of the Charter regarding Ordinance 2003-925. On December 23, 2003, rather than calling an election, City Council adopted Ordinance No. 2003-1196, which completely repealed Ordinance No. 2003-925.

Sec. 47-46. Same—Notice of lien*.

(a) At least seven days prior to recording of a lien for delinquent water and wastewater charges, the utility official shall send notice, by certified

mail, return receipt requested, that a lien will be recorded on the property in accordance with law. The notice shall provide a means by which the charges constituting the lien may be paid or disputed. The notice must be sent to:

(1) The customer in whose name the account for service at the property exists; and

(2) The last known record owner of the property according to the tax rolls of the city.

(b) The customer or owner may file a written protest concerning the lien for any of the following reasons:

(1) The charges assessed are not owed to the city;

(2) The charges assessed are for water and wastewater service at a site other than the property described in the notice; or

(3) That the property to be subject to the lien is exempt as a homestead under the Texas Constitution.

In the event of any such protest, the utility official shall conduct a hearing in accordance with the provisions of subsection 47-70(a).

(c) Absence of receipt of notice required hereunder does not affect the enforceability of the lien.
(Ord. No. 89-24, § 3, 1-4-89; Ord. No. 90-635, § 153, 5-23-90; Ord. No. 03-925, § 3, 10-8-03; Ord. No. 03-1196, § 2, 12-23-03)

***Note—**On October 8, 2003, City Council adopted Ordinance 2003-925, establishing drainage utility service charges for property in the City. The City received a referendum petition under Article VII-b of the Charter regarding Ordinance 2003-925. On December 23, 2003, rather than calling an election, City Council adopted Ordinance No. 2003-1196, which completely repealed Ordinance No. 2003-925.

Sec. 47-47. Posting notice of termination for commercial customers.

Prior to terminating water service for a commercial customer with tenants, the department shall post notice of termination at a prominent location on the property. After placement of the notice, the department shall allow an additional six calendar days for payment before terminating service. The department shall charge the commercial customer the fee stated for this provision in the city fee schedule for the cost of posting such notice.
(Ord. No. 07-599, § 17, 5-16-07; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 47-48. Notice of water termination of multifamily residential customer.

Prior to terminating water service to a multifamily residence with five or more units for failure to make an application for service, make a payment or pay a required deposit when required, the department shall post notice of water termination either by hanging tenant notices or by posting notice at a prominent location on the property. The manager or customer shall allow city personnel access to the premises to post or hang notices. After placement of the notices, the department shall allow an additional six calendar days for payment or application for service before the department terminates service.

It shall be unlawful for any person to remove a notice of water termination posted by the department until the earliest of the following:

(1) The multifamily residential customer pays its arrearage for water and sewer service;

(2) The date of termination specified on the notice has passed; or

(3) The termination is cancelled by the utility official or prohibited by a court of competent jurisdiction.

Provided, however, a tenant of the multifamily residential customer may remove the termination notice from his or her door. Violation of this section shall be an offense.

The department shall charge the multifamily residential customer the fees stated for this provision in the city fee schedule for hanging notices.
(Ord. No. 07-599, § 18, 5-16-07; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 47-49. Refund of fees charged for permits, taps or meters.

The following provisions shall govern refunds of fees charged for permits issued under this chapter by Houston Public Works as well as refunds of charges for taps and meters for water or wastewater service:

(1) No refund will be made after the stated effective period of the permit has expired.

(2) No refund will be made for a fee of $25.00 or less.

(3) When a fee is in excess of $25.00, the city will retain the first $25.00 and ten percent thereof and refund the balance to the applicant.

(Code 1968, § 2-181; Ord. No. 82-1011, § 1, 6-2-82; Ord. No. 87-1326, § 9, 8-5-87; Ord. No. 90-635, § 159, 5-23-90; Ord. No. 93-514, § 118, 5-5-93; Ord. No. 2018-11, § 50, 1-10-2018)

Editor's note—Section 159 of Ord. No. 90-635, adopted May 23, 1990 and effective July 1, 1990, renumbered former § 2-285 as § 47-49 and amended § 47-49 to read as herein set forth.

Sec. 47-50. Wellhead protection.

(a) The following requirements have been adopted to prevent pollution of water pumped from the wellheads of city-owned wells, as set out below:

(1) It shall be unlawful for any person to construct a tile or concrete sanitary sewer, sewer appurtenance, septic tank, storm sewer, or cemetery within 50 feet of a city water well. With respect to sanitary or storm sewers, it is an affirmative defense to prosecution under this item (1) that the sanitary or storm sewer is located ten feet or more from the city water well, is constructed of ductile iron or PVC pipe that meets American Water Works Association standards, has a minimum working pressure of 150 psi or greater, and is equipped with pressure type joints.

(2) It shall be unlawful for any person to allow livestock in pastures within 50 feet of a city water well.

(3) It shall be unlawful for any person to construct an on-site sewage facility tank perforated drain field, tank absorption bed, or tank evapotranspiration bed, or to construct a petroleum or chemical storage tank or liquid transmission pipeline within 150 feet of a city water well.

(4) It shall be unlawful for any person to irrigate an area within 150 feet of a city water well with spray from an on-site sewage facility.

(5) It shall be unlawful for any person to construct a water well within 150 feet of a city water well unless the well complies with all applicable state regulations.

(6) It shall be unlawful for any person to construct a sewage wet well or sewage pumping station within 300 feet of a city water well.

(7) It shall be unlawful for any person to construct a drainage ditch for industrial waste or sewage treatment waste within 300 feet of a city water well.

(8) It shall be unlawful for any person to construct a sewage treatment plant, animal feed lot, or solid waste disposal site within 500 feet of a city water well.

(9) It shall be unlawful for any person to apply sludge or effluent from a septic tank or sewage treatment plant on land with 500 feet of a city water well.

(10) It shall be unlawful for any person to drill an oil or gas well, including an injection well for recovery of oil or gas, within 500 feet of a city water well.

(b) The department shall investigate existing facilities whether located within or without the distance requirements of subsection (a) and determine if those facilities are a pollution hazard to city well water. The department shall recommend acquisition of such facilities in the event the department determines that the facilities are a pollution hazard to city well water and the owner refuses to take action necessary to abate the pollution hazard.

(c) Any person who violates any provision of this section shall be guilty of an offense and upon conviction thereof shall be subject to a fine of not less than $500.00 nor more than $2,000.00 for each violation. Each day in which a violation occurs shall constitute a separate offense. In addition to criminal prosecution, the legal department may seek appropriate judicial remedies to protect city ground water from contamination. (Ord. No. 04-844, § 1, 8-11-04; Ord. No. 2016-504, § 2, 6-22-2016)

Secs. 47-51—47-60. Reserved.

ARTICLE II. CITY WATER SERVICE CHARGES

DIVISION 1. GENERALLY

Sec. 47-61. Charges for treated water service generally.

(a) *Generally.* Except as otherwise specifically provided for in this chapter and as further defined below, the charge for treated water service furnished by the city in any given month to any given customer shall include all water that passes through the customer's meter and shall be the monthly water charge applicable to such customer, plus any applicable miscellaneous charges accruing in accordance with this chapter or the appendices of this Code, provided, however, single-family residential customers may be charged the conservation rate as defined in subsection (b) of this section. Single-family residential customers using more than 3,000 gallons in a month will be charged at the incremental rate for all their water usage and are not eligible for the conservation rate in that month. Additionally, compliance with all applicable laws is a condition of continued utility service.

(b) *Definitions.* As used in articles I and II of this chapter, the following terms shall have the meanings set out below, unless the context clearly indicates that another meaning is intended:

Additional quantity means the customer's monthly water usage over a gross quantity with a defined charge. The charge for additional quantity shall be computed for each month using the applicable incremental rate.

Applicable laws means, but is not limited to limitations, restrictions, conditions, standards, prohibitions and requirements established in this Code, and any law, statute, ordinance, rule, regulation, order or determination of any government authority with jurisdiction, such as, for example, the Texas Commission on Environmental Quality. Applicable laws include, without limitation, all applicable provisions of the Texas Water Code, zoning ordinances, building codes, flood rules and regulations, health laws and regulations and environmental laws.

Average usage means the customer's average monthly water usage as determined by the utility official on the basis of historical usage and other relevant factors.

Basic service means fire protection, metering, administrative, billing, and other services related to water service that the customer receives and pays for regardless of the customer's consumption or lack of consumption of treated water furnished by the city. Fire protection included in basic service does not include metered or unmetered fire lines.

City-caused leak means a defect in the customer's line caused by a city employee or city contractor during and within the scope of their authorized work on city projects which led directly to a loss of water that registered as consumption on the customer's water meter.

Commercial fire line service means service to a water supply system that has been installed for the sole purpose of fire protection and does not register any usage except as needed for fire protection or standard maintenance and testing as required by NFPA 25 Standards.

Conservation rate means the reduced volume rate charged to single-family residential users for water usage of 3,000 gallons or less in a month.

Contract treated water customer means a customer who has contracted with the city to receive treated water under subsection 47-61(f) below.

Customer means any person who has applied for or contracted with the city for water service, the owner of a property with a meter connected for water service, or any person who resides at the address where the city provides the water service at the time the monthly charges are incurred. A customer may have more than one meter and more than one property with water service.

Defined charge means the monthly charge for basic service.

Disabled veteran means a veteran of the armed forces entitled to receive compensation for service connected disability under the laws of the United States.

Emergency means a mechanical, electrical, or systemic failure of the waterworks system of an EBS customer, such that the failure significantly affects the EBS customer's ability to supply water to its own water customers. An emergency shall not mean a water shortage or a greater than expected water use by the EBS customer's own water customers, nor shall it mean a circumstance or condition caused by ordinary wear and tear of the EBS customer's facilities.

Emergency backup service customer or *EBS customer* means any customer who (i) would otherwise be a resale customer or contract treated water customer, (ii) has submitted an application for emergency backup service approved by the utility official, (iii) has installed and conveyed an EBS system to the city in accordance with this Code; and (iv) has not had the EBS terminated by the utility official.

Excess usage means and refers to the difference between the total water consumption shown on the customer's bill and the customer's average usage.

Excusable defect means a rupture or leakage of the customer's water lines caused by city personnel, a city contractor, freezing weather, settlement, corrosion, or accidental occurrence not caused by customer negligence or disregard of waterline or fixture maintenance. The term does not apply to any defective or out-of-repair plumbing fixtures that are exchangeable devices or components attached to the plumbing system to deliver and drain water.

Exempt senior customer means any customer who (i) is at least 60 years old; (ii) is a residential customer occupying the entire premises for which exempt senior customer status is requested; (iii) has filed with the department a request for exempt senior customer status; and (iv) provides all necessary information as requested by the utility official.

Gross quantity means the total quantity of water actually delivered to a customer's meter during a month.

Incremental rate means the rate charged to a customer for monthly water usage that is not included in a defined charge.

Industrial customer or *commercial customer* means any non-residential customer with retail water service that the utility official determines is not a transient customer, EBS customer, or an outdoor customer.

Month means the billing period for each customer and consists of approximately 30 days. A billing period begins on the date that a customer's measuring equipment is read (or the date as of which the customer's gross quantity is estimated) and ends when the next such reading (or estimation) occurs. There shall be 12 such readings (or estimations) per customer per calendar year, and the date of the most recent reading (or estimation) is usually shown on each water bill.

Monthly water charge means charges to a customer in a given month for water services that include defined charges and charges for additional quantities.

Monthly water usage means services a customer receives including the total gross quantity in increments of 1,000 gallons of treated water attributable to a customer's meter for a given month. Monthly water

usage includes basic service and all gross quantity not previously included in the customer's monthly water charge.

Multifamily residential customer means a residential customer whose meter is connected to, or serves exclusively, a residential establishment with more than one unit.

Non-residential customer means a retail customer who (i) has a meter that does not serve a residential establishment and (ii) is not a contract water customer.

Outdoor customer means a customer whose meter is connected to and serves only one of the following:

(1) A device or system for irrigation or distributing water to any area not enclosed within a permanent roofed structure; or

(2) One or more spigots, hydrants or outlets for water wholly located outside of a permanent, roofed structure.

No connection or water flow to a city or private sewer is permitted for outdoor customers. If a connection or flow into the sewer is found, the customer's account shall be changed to include water and sewer charges and the department shall bill the customer for all wastewater usage, including any arrearage.

Per-unit gross quantity means the gross quantity for a multifamily residential customer divided by the number of units in the residential establishment of that customer. In the event a person owning a multifamily residential establishment served by more than one meter has established an umbrella account, the gross quantity shall be the total amount of water as measured by all meters serving the establishment during the billing period. Otherwise, a person owning a multifamily residential establishment served by more than one meter shall be considered a separate customer for each meter for the purpose of determining the per-unit gross quantity. If a multifamily residential customer that has not established an umbrella account maintains a water distribution system in which a unit is served by more than one meter, such unit shall be prorated between or among such meters for the purpose of determining the per-unit gross quantity in accordance with the following formula:

$$\text{Per unit gross quantity per meter} = \frac{W}{U}$$

Where:

W =is the total water delivered through such meter during a bill period.

U =is the sum of the units served by the meter, except where a unit is served by x meters such unit shall be counted only as 1/x unit.

In no event shall the sum of units used for the calculation of the "per-unit gross quantities" exceed the actual number of units located at the multifamily residential establishment.

Person means any legally competent individual, business entity, governmental entity, or any combination of individuals or entities legally bound together.

Person with disability has the meaning ascribed in section 36-62 of this Code.

Resale customer means any customer (other than a contract treated water customer, an EBS customer or a transient meter customer) owning or operating for compensation equipment or facilities for transmitting, storing, distributing, selling or furnishing potable water to the public or for resale to the public for any use; provided that the term shall not include any customer that furnishes water only to itself, its employees or tenants as an incident of such employee service or tenants when such water is not resold to or used by others.

Residential customer means any customer whose meter exclusively serves a residential establishment. Residential customers do not include commercial customers, contract treated water customers, EBS customers, industrial customers, outdoor customers, resale customers, or transient customers.

Residential establishment means any structure or group of structures within which at least 75 percent of the floor space (exclud-

ing corridors) is occupied or intended for occupancy as living quarters. Residential establishment does not include hotels, motels, inns, lodging houses or any similar establishment in which lodging is furnished for consideration and in which permanent residents occupy less than 80 percent of the accommodations. Residential establishment does not include group quarters. Group quarters are living arrangements for other than ordinary household life, such as dormitories, military barracks, hospitals, assisted care facilities and prisons.

Single-family residential customer means a residential customer whose meter is connected to, or serves exclusively, a residential establishment with one unit.

TCEQ public health service fee means the fee per connection for public water systems pursuant to 30 Texas Administrative Code (TAC) § 290.51(a)(3)—(6). The fee is included in each customer's bill for treated water connections and pays for services provided by the Texas Commission on Environmental Quality, including: scheduling of analysis of drinking water for chemical content; collection of samples of drinking water for chemical analyses; review of system data for evaluation of sampling waivers; inspection of public water systems; review of plans for new systems and major improvements to existing systems; and, provision of technical assistance as needed.

Transient meter customer means a nonresidential customer that has obtained a transient meter from the department for purposes approved by and in accordance with procedures adopted by the utility official.

Umbrella account means a customer account established under section 47-71 of this Code.

Unit means a house, an apartment, a town house, a manufactured home, a group of rooms, or a single room occupied or intended for occupancy as separate living quarters. Separate living quarters are those in which the occupants do not live and eat with any other persons in the structure and which quarters have either:

(1) Direct access from the outside of the structure or through a common hall: or

(2) Complete kitchen facilities for the exclusive use of the occupants.

The occupants may be a single family, one person living alone, two or more families living together, or any other group of related or nonrelated persons who share living arrangements.

(c) *Residential water service.* Each residential customer shall incur monthly charges for water for each meter serving the customer's premises. Multifamily residential customer meters under umbrella accounts may be exempt from certain basic service charges

(1) *Single-family residential customers.* Each single-family residential customer's monthly water charge shall be calculated using the total of the applicable defined charge, the charge for additional quantities, and the TCEQ public health service fee set forth below:

a. *Defined charge.* The customer's defined charge shall be calculated using the chart set forth for this provision in the city fee schedule, referencing the customer's monthly water usage and meter size, measured by diameter in inches.

b. *Charge for additional quantities.* The customer's charge for additional quantities shall be calculated using customer's monthly water usage multiplied by the applicable incremental rates set forth for this provision in the city fee schedule.

c. *TCEQ public health service fee.*

(2) *Multifamily residential customers.* Each multifamily residential customer's monthly water charge shall be the total of the defined charge and the charge for additional quantities as set forth below.

a. *Defined charge.* The customer's defined charge shall be calculated using the chart set forth for this provision in the city fee schedule, referencing the customer's meter size, measured by diameter in inches.

b. *Charge for additional quantities.* The customer's charge for additional quantities shall be calculated using customer's monthly water usage multiplied by the incremental rate set forth for this provision in the city fee schedule.

c. *TCEQ public health service fee.*

(d) *Non-residential water service.* Non-residential customers shall incur monthly water charges for each meter based upon the customer's meter size, measured by diameter in inches, the charge for additional quantities, plus the TCEQ public health service fee, if applicable, in accordance with the applicable rates set out in the city fee schedule.

(1) *Resale customers.* Each resale customer's monthly water charge shall be the total of the defined charge and the charge for additional quantities, and the TCEQ public health service fee, if applicable, as set forth below.

a. *Defined charge.* The customer's defined charge shall be calculated using the chart set forth for this provision in the city fee schedule, referencing the customer's meter size, measured by diameter in inches.

b. *Charge for additional quantities.* The customer's charge for additional quantities shall be calculated using customer's monthly water usage multiplied by the applicable rates set forth for this provision in the city fee schedule.

c. *TCEQ public health service fee* for treated water connections only.

(2) *Outdoor customers.* Each outdoor customer's monthly water charge shall be the total of the defined charge and the charge for additional quantities, and the TCEQ public health service fee, if applicable, as set forth below:

a. *Defined charge.* The customer's defined charge shall be calculated using the charts set forth for this provision in the city fee schedule, referencing the customer's monthly water usage and meter size, measured by diameter in inches.

b. *Charge for additional quantities.* The customer's charge for additional quantities shall be calculated using customer's monthly water usage multiplied by the applicable rates set forth for this provision in the city fee schedule.

c. *TCEQ public health service fee* for treated water connections only.

(3) *Commercial and industrial customers.* With the exception of a customer with a metered fire connection, which shall be billed as provided in section 47-64(a) of this Code, each commercial customer's monthly water charge and each industrial customer's monthly water charge shall be the total of the defined charge and the charge for additional quantities, and the TCEQ public health service fee, if applicable, as set forth below:

a. *Defined charge.* The customer's defined charge shall be calculated using the charts set forth for this provision in the city fee schedule, referencing the customer's monthly water usage and meter size, measured by diameter in inches.

b. *Charge for additional quantities.* The customer's charge for additional quantities shall be calculated using customer's monthly water usage multiplied by the applicable rates set forth for this provision in the city fee schedule.

c. *TCEQ public health service fee* for treated water connections only.

(4) *Emergency backup service customer.* Each EBS customer's monthly water charge shall be the total of the defined charge and the charge for additional quantities, and the TCEQ public health service fee, if applicable, as set forth below:

a. *Defined charge.* The customer's defined charge shall be calculated

using the charts set forth for this provision in the city fee schedule, referencing the customer's monthly water usage and meter size, measured by diameter in inches.

b. *Charge for additional quantities.* The customer's charge for additional quantities shall be calculated using customer's monthly water usage multiplied by the applicable rates set forth for this provision in the city fee schedule.

c. *TCEQ public health service fee* for treated water connections only.

(5) *Reserved.*

(6) *Transient meter customers.* Each transient meter customer's monthly water charge shall be the total of the defined charge and the charge for additional quantities, and the TCEQ public health service fee, if applicable, as set forth below:

a. *Defined charge.* The customer's defined charge shall be calculated using the charts set forth for this provision in the city fee schedule, referencing the customer's monthly water usage and meter size, measured by diameter in inches.

b. *Charge for additional quantities.* The customer's charge for additional quantities shall be calculated using customer's monthly water usage multiplied by the applicable rates set forth for this provision in the city fee schedule.

c. *TCEQ public health service fee* for treated water connections only.

(e) *Emergency backup service (EBS) customer.*

(1) *Eligibility and applications.* Any person desiring to become an EBS customer must apply to the director. Each EBS application must:

a. Be made in a form prescribed by the director; and

b. Include engineering drawings and detailed specifications of the applicant's proposed installation of EBS equipment.

(2) Action upon applications. The director shall examine each EBS application. An application shall be approved if the director determines that:

a. The applicant can qualify as an EBS customer;

b. The requested EBS service is practical and sound from an engineering point of view;

c. The proposed installation of EBS equipment meets city standards; and

d. The application otherwise complies with this Code.

The director shall allow an applicant to modify its application or its proposed installation of EBS equipment so as to meet any requirements for approval.

(3) *EBS equipment.*

a. All installations of EBS equipment shall include measuring equipment, valves, backflow prevention devices, a locking mechanism, a proper vault and such other items as are necessary in the judgment of the director. All such installations shall conform to city standards as to location, materials and workmanship.

b. When the director has approved an application, the applicant shall furnish, deliver and install the EBS equipment at its own expense in strict compliance with this Code and the plans and specifications approved by the director. The applicant shall provide reasonable opportunities for the director to inspect the work as it progresses and shall so notify the director at appropriate times. When the completed installation has been inspected and approved by the director, the applicant shall:

1. Convey to the city the complete installation (excluding back

flow prevention devices) free and clear of liens and encumbrances by written documents approved by the director.

2. Deliver all keys to the locking mechanism to the director. To the extent an existing, city-owned installation is to be used for the applicant's EBS installation, the foregoing provisions may be modified by the director.

(4) *Monthly billing and charges.* Each EBS customer's monthly water charge shall be the total of the defined charge and the charge for additional quantities as set forth below:

a. *Defined charge.* The customer's defined charge shall be calculated using the charts set forth for this provision in the city fee schedule, referencing the customer's monthly water usage and meter size, measured by diameter in inches.

b. *Charge for additional quantities.* The customer's charge for additional quantities shall be calculated using customer's monthly water usage multiplied by the applicable rates set forth for this provision in the city fee schedule.

c. *Rates and charges.* Rates and charges for each EBS customer begin to accrue on the day its installation is conveyed to the city.

(5) *Opening and closing connections.* In the event of an emergency, the EBS customer may notify the director of the emergency and request that the EBS connection be unlocked and opened. If the director determines that an emergency exists, the city shall unlock and open the EBS connection. Under no circumstances shall the EBS customer unlock or open the connection or otherwise operate or tamper with the installation. When the emergency has ceased or is deemed to have ceased, the city shall close and lock the EBS connection. The emergency shall be deemed to have ceased when the EBS customer so notifies the director or when 30 days have elapsed after the date of EBS customer notified the director of the emergency, whichever first occurs. If the director determines that an extension of time will not cause undue hardship to the other customers of the city, the director may extend the time the EBS connection is open upon written request of the EBS customer and a showing by that customer that an emergency still exists and that all practicable steps are being taken to correct the circumstances causing the emergency. However, if at any time the director determines that an emergency has actually ceased and consults with the EBS customer, the director may close and lock the connection.

(6) *Termination of service.* Service to an EBS customer shall be terminated, after reasonable notice to the customer and an opportunity to be heard, if the customer fails to pay any rates or charges within the time allowed or if the customer fails to comply with the other terms of service applicable to such customer. Upon such termination, the connection shall be permanently closed, locked and disconnected, and the rates and charges shall cease accruing.

(f) *Contract treated water service.*

(1) *Eligibility and applications.* Applications for contract treated water service shall be made on forms prescribed by the director. Each application shall include the nonrefundable processing fee stated for this provision in the city fee schedule. Any customer or potential customer is eligible for contract treated water service under this subsection if:

a. The customer is a municipality or conservation and reclamation district organized under article XVI, section

59 of the Texas Constitution that proposes to resell water purchased from the city;

b. The customer would otherwise be a commercial customer and has minimum water consumption equal to at least 150,000,000 gallons per month;

c. The customer is a private utility company holding a certificate of convenience and necessity from the state that (i) resells water to single family or multi-family dwellings only and (ii) maintains a water distribution system in public rights-of-way or public easements; or

d. The customer would otherwise be a commercial customer and is in compliance with a conservation plan pursuant to chapters 288 and 295 of title 30 Texas Administrative Code to reduce its minimum water consumption from 150,000,000 or more gallons per month while continuing to provide the same or higher levels of production or services.

(2) *Contract requirements.* Upon receipt of a completed application, the department shall determine water availability and, if sufficient water is available for the customer, shall secure a written agreement from the applicant, which shall include:

a. The term of the agreement;

b. The minimum monthly quantity of water to be taken by the customer. This minimum for customers other than those described under items (1)a, (1)c and (1)d of this subsection shall be 150,000,000 gallons per month. Customers defined under items (1)a, (1)c and (1)d of this subsection shall be permitted to change the minimum monthly quantity only in accordance with the terms of their contracts;

c. The designation of the point or points of delivery;

d. Rates as described in subsection (f)(3) of this section; and

e. Any special requirements regarding metering or facilities desired by the parties.

No agreement for contract treated water service shall be valid unless approved by the city council.

(3) *Rates and charges.* Treated water supply contract customers shall incur monthly water charges for each meter including a defined charge based on the customer's meter size, measured by diameter in inches, and the volume charge for metered water usage. The contract rate for all water supplied under an untreated water supply contract is as stated in the city fee schedule for the volume of water, including minimum monthly amount and amounts in excess of the minimum monthly amount, as specified in the contract for each customer type as set out below, for treated water supply with airgap or treated water supply without airgap.

For contract treated water customers, the monthly charge shall equal:

$$P \times R$$

plus

$$(P\text{-}M) \times F$$

Where:

P = The total water delivery to such customer during the month expressed in units of 1,000 gallons, except if the minimum monthly amount of water specified in the customer's contract is greater than P, P shall equal M;

M = The minimum monthly amount of water specified in the customer's contract expressed in units of 1,000 gallons; and

R = The applicable rate stated for this provision in the city fee schedule contract treated water service with or without airgap. An airgap shall be required of every customer unless the director determines that this requirement be waived because of prior conditions, excessive pressure, or health and safety concerns.

F = The contract treated water service monthly charge factor stated for this provision in the city fee schedule.

A contract treated water service charge premium per thousand gallons shall apply to amounts taken in excess of the minimum monthly amount.

In the event a billing period is longer or shorter than 30 days, a daily charge shall be determined using the formula specified above, but with P defined as average daily amount of water delivered during the billing period and M defined as the monthly minimum divided by 30. Such daily charge shall then be multiplied by the number of days in the billing period.

(g) *Paperless billing rebate.* The director is authorized to offer customers a paperless billing rebate for switching from paper billing to paperless billing. The initial rebate is set at $0.50, the director may adjust the rate once per year based on changes in costs.

(Code 1968, § 49-52; Ord. No. 69-291, § 1, 2-17-69; Ord. No. 71-598, § 1, 3-24-71; Ord. No. 72-622, § 1, 4-18-72; Ord. No. 74-220, § 1, 2-6-74; Ord. No. 75-22, § 1, 1-7-75; Ord. No. 76-1847, § 1, 10-20-76; Ord. No. 77-154, § 1, 1-25-77; Ord. No. 78-631, § 3, 3-29-78; Ord. No. 79-2336, § 1, 12-26-79; Ord. No. 83-19, § 5, 1-11-83; Ord. No. 86-1663, §§ 1—3, 9-17-86; Ord. No. 87-1326, §§ 1—3, 8-5-87; Ord. No. 88-1194, §§ 1, 2, 7-6-88; Ord. No. 89-1048, § 2, 7-5-89; Ord. No. 90-15, §§ 1—3, 1-10-90; Ord. No. 90-635, § 153, 5-23-90; Ord. No. 90-861, §§ 1—9, 7-11-90; Ord. No. 92-113, §§ 1, 2, 2-5-92; Ord. No. 93-314, §§ 1—4, 3-24-93; Ord. No. 94-1268, § 4, 11-22-94; Ord. No. 02-926, §§ 4, 5, 10-2-02; Ord. No. 03-332, §§ 3, 4, 4-2-03; Ord. No. 04-297, §§ 2, 3, 4-21-04; Ord. No. 04-299, § 5.2, 4-21-04; Ord. No. 04-297, eff. 4-1-07; Ord. No. 07-599, §§ 19, 20, 5-16-07; Ord. No. 07-466, § 1, 4-11-07; Ord. No. 08-630, §§ 2, 6, 7-9-08, eff. 9-1-08; Ord. No. 09-206, §§ 2, 3, 3-11-09, eff. 4-1-09; Ord. No. 09-1145, §§ 2, 3, 12-2-09; Ord. No. 09-1238, § 1, 12-9-09, eff. 1-1-10; Ord. No. 2010-305, § 2, 4-21-2010, eff. 6-1-2010; Ord. No. 2010-305, § 9, 4-21-2010, eff. 1-1-2011; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2021-515, § 3(Exh. B), 6-23-2021, eff. 7-1-2021; Ord. No. 2021-583, §§ 2, 3, 6-30-2021; Ord. No. 2023-1127, § 7, 12-13-2023)

Sec. 47-62 Groundwater reduction plan agreements.

(a) The Harris-Galveston Subsidence District ("subsidence district") has established requirements for the reduction of groundwater production in Harris and Galveston counties. Groundwater producers within the subsidence district are required to formulate ground water reduction plans ("GRP") to reduce their production of groundwater as provided in their GRP in order to abate land subsidence. According to the district regulatory plan, two or more groundwater producers may enter into agreements to share costs and cooperate to reduce groundwater production and jointly produce a GRP to attain the percentage reduction of groundwater production required by the subsidence district ("GRP agreement"). The city has acquired sufficient surface water rights and constructed facilities for the treatment and transmission of surface water to become the manager of a GRP for itself and other groundwater producers ("GRP participants") such that they jointly comply with the subsidence district's regulatory plan.

(b) The monthly charge for GRP participants not purchasing water from the city is:

$R \times P \times Q$, where

R is the base rate for contract treated water customers receiving water through an airgap.

P is the percentage reduction for groundwater production required for the GRP participant under the subsidence district regulatory plan, or the percentage required under the GRP agreement, whichever percentage is the greater.

Q is the quantity of groundwater produced by the GRP participant during the month.

(c) GRP participants purchasing treated water from the city are subject to the minimum purchase requirements of their contracts in accordance with their location in Regulatory Areas 1 and 2, or Regulatory Area 3, all defined in the subsidence district regulations, as set forth in the city fee schedule. Standard contract treated water rates, rate classifications, and premiums apply to GRP participants that purchase treated water from the city.

(d) The city council has approved standard contract forms for wholesale and retail GRP agreements for groundwater producers in area three of the subsidence district. All other GRP agreements are subject to individual approval by the city council.

(e) Each application for a GRP agreement shall include the nonrefundable processing fee stated for this provision in the city fee schedule.

(f) The department shall provide application forms for GRP agreements and administer the GRP program on behalf of the city. Prior to transmittal of the GRP agreement to the mayor for signature, the department shall review the application to ensure that the GRP agreement is consistent with both the city's GRP and with the department's projection for future surface water availability and surface water demand. Money collected under the GRP agreements shall be considered gross revenue of the water and sewer utility system.

(Ord. No. 08-630, §§ 1, 6, 7-9-08, eff. 9-1-08; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2021-515, § 3(Exh. B), 6-23-2021, eff. 7-1-2021)

Sec. 47-63. Minimum monthly charges generally.

(a) Wherever meters are connected to the city's water distribution system, the minimum monthly charges called for in section 47-61 of this Code shall apply (except as otherwise specifically provided in this chapter), regardless of whether or not any water is actually used or consumed and regardless of whether or not the premises to which connection is made have water service from another source. Where more than one meter is used to serve the premises, the total charge for water service shall be computed as if each were connected to separate premises, except a multifamily residential customer that has established an umbrella account shall pay the minimum monthly charge based on the size of its largest meter only.

(b) The department shall create a meter lock fee and place such a fee on the city fee schedule.

(c) If a meter lock can be placed on the meter, a customer may request that the department place a lock on the meter. Once the department determines that a lock can be placed, the department will place a lock on the meter after the customer pays a one-time fee. Once the meter is locked, then the defined charge described in section 47-61 shall be suspended from their account until service is restored.

(d) During the suspension of service through this section, if the department determines that the meter lock has been tampered with but the meter did not register water usage, then the one-time replacement fee will be re-assessed and there will be no other penalty.

(e) During the suspension of service through this section, if the department determines that the meter lock has been tampered with and the meter registered water usage, a fine as described under Section 47.7 may be assessed and all defined charges will be reapplied and reassessed going back to the placement of the meter lock. All defined charges shall be assessed and the owner will be ineligible for a new meter lock.

(f) When service is reactivated by the customer, if there has been no change to the service unit calculation of the property, then the customer can petition the director to have any impact fees associated with reactivating the account waived. This petition may be rejected if the director finds there has been a change in the service unit calculation to the property.

(g) The minimum charges called for in section 47-61 of this Code shall be in addition to and not credited against the charges made for installation of the meter and making connections as provided elsewhere in this Code.

(Code 1968, § 49-54; Ord. No. 76-1847, § 3, 10-20-76; Ord. No. 79-2336, § 1, 12-26-79; Ord. No. 93-314, § 7, 3-24-93; Ord. No. 2023-1127, § 8, 12-13-2023)

Sec. 47-64. Service charges for metered fire connection or unmetered connection for fire sprinkling systems and other fire suppression systems.

(a) *Metered fire connection.* Each metered fire connection customer's monthly water charge shall be the total of the defined charge and the charge for additional quantities using the rates for industrial customers without surcharge as stated in the city fee schedule, and the TCEQ public health service fee, if applicable, as set forth below:

(1) *Defined charge.* The customer's defined charge shall be calculated using the charts set forth for this provision in the city fee schedule, referencing the customer's monthly water usage and meter size, measured by diameter in inches.

(2) *Charge for additional quantities.* The customer's charge for additional quantities shall be calculated using customer's monthly water usage multiplied by the applicable rates set forth for this provision in the city fee schedule for industrial water use.

(3) *TCEQ public health service fee* for treated water connections only.

(b) *Unmetered fire connection.* Each person with an unmetered connection serving a fire sprinkler system under the provisions of subsection (b) of section 47-4 of this Code shall pay the monthly service charge stated for this provision in the city fee schedule for the corresponding size of the diameter of each unmetered sprinkler service line connected to the city's water main. The charge for a fire line with a city approved backflow prevention device with a bypass meter will be the same as for unmetered fire lines.

(c) *Billing and enforcement.* Billing for charges made under this section shall be made on a monthly basis. Payment shall be due and made in accordance with the provisions of this Code, and payment of such charges shall be enforced by any and all means available to the city under other provisions of this Code, including termination of service.

(d) *Water supply for private fire suppression.* The department may supply water for private fire suppression systems if in the opinion of the utility official the connection will not cause appreciable reduction in the pressure of the city's water system. The director shall determine all conditions necessary for connecting such private fire protection to the city's water system to ensure the safety of the public water system. The cost for a city employee to participate in or witness any test of a fire suppression system as required by this Code or any other ordinance of the city is stated for this provision in the city fee schedule.

(Code 1968, § 49-55; Ord. No. 83-19, § 7, 1-11-83; Ord. No. 86-1663, § 5, 9-17-86; Ord. No. 88-1194, § 3, 7-6-88; Ord. No. 89-1048, § 3, 7-5-89; Ord. No. 90-861, § 10, 7-11-90; Ord. No. 92-113, § 3, 2-5-92; Ord. No. 02-926, § 6, 10-2-02; Ord. No. 03-332, § 5, 4-2-03; Ord. No. 04-297, eff. 4-1-07; Ord. No. 04-299, § 5.2, 4-21-04; Ord. No. 07-599, § 21, 5-16-07; Ord. No. 09-206, § 3, 3-11-09, eff. 4-1-09; Ord. No. 2010-305, § 3, 4-21-2010, eff. 6-1-2010; Ord. No. 2011-1086, § 2, 12-7-2011; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2021-515, § 3(Exh. B), 6-23-2021, eff. 7-1-2021)

Sec. 47-65. Billing errors—In general.

Subject to the provisions of this article, the department shall charge for all water that passes through the water meter.

If the department commits a billing error, it shall correct the customer's bill as soon as it discovers the incorrect billing. If the incorrect billing is an overcharge that is more than six times the customer's average bill, the department shall refund the overcharge to the customer at the request of the customer. Provided, however, if the customer can show extreme economic hardship to the utility official, the department shall refund the overcharge to the customer notwithstanding the amount of the overcharge. The utility official shall determine whether extreme economic hardship exists. In cases where the overcharge is not refunded, the department shall credit the customer's account the amount of the overcharge to be applied to the charges thereafter accruing.

Subject to the provisions of this article, for non-residential customers, contract treated water customers, or contract untreated water customers, the department may not correct any billing error that occurred more than two years prior to the date the department learns of the error. For residential customers, if the correction results in a credit for the customer, the department shall correct the error that occurred up to two years prior to the date the department learns of the error. If the correction results in the residential customer owing the department money, the department shall correct the error that occurred up to three months prior to the date the department learns of the error. However, in the case of fraud or theft of city water or sewer service, the city reserves the right to recover the amount owed by the customer back to the date of the fraud or theft.
(Code 1968, § 49-56; Ord. No. 06-502, § 1, 5-17-06; Ord. No. 2023-1127, § 2, 12-13-2023)

Sec. 47-66. Reserved.

Editor's note—Ord. No. 07-599, § 22, adopted May 16, 2007, repealed § 47-66 in its entirety. Formerly, said section pertained to charge when meter out of order and derived from Code 1968, § 49-57; Ord. No. 87-1326, § 10, 8-5-87.

Sec. 47-67. Charge for change of customer at same address.

Each time that a request for change of customer, for water service to an address or property is made, the fee stated for this provision in the city fee schedule shall be charged, and shall be added to the first bill sent to the new customer for water service.
(Code 1968, § 49-58; Ord. No. 83-19, § 8, 1-11-83; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 47-68. Deposit to assure payment.

(a) Every person requesting water service from the city shall furnish the information required by the utility official, including information necessary to investigate the credit stability of the applicant. The utility official may require that an applicant provide the name and address of the owner of the service address, and the full legal description of the service address.

(1) A customer who uses service without making application shall pay for all water used from the date of the last meter reading previous to that customer's use of service.

If the customer fails to make an application or to provide information that the department requests, the department may disconnect the premises without further notice.

(2) By making an application for water service, the applicant agrees to timely pay for all furnished services.

(3) The department may review multi-family, light commercial, commercial, and industrial customer accounts at any time to determine financial stability.

(b) The city may disconnect service for failure to make an application or provide information requested by the department.

(c) If a deposit is required, water service will not be commenced until the applicant has made the required deposit with the city.

(d) Each time a termination of service is made to a customer for failure to make timely payment of charges for water or sanitary sewer service, a recheck of the customer's credit stability will be made and a deposit will be required before water service is restored, if the utility official determines that it is necessary in order to protect the interests of the city.

(e) Deposits will be retained by the city until a satisfactory credit rating has been established by the customer making the deposit, or termination of services requested, or application for services to the same property or address is made by a new applicant.

(f) After a customer's water service has been discontinued at his request, and all water charges and fees have been fully satisfied, if he has a deposit with the department, he shall be entitled to have refunded to him the deposit or the

remaining portion thereof after all charges due the city by the customer have been deducted from such deposit.

(g) In order to collect past due payments, the utility official may transfer account balances from one account to another for customers with more than one account (including accounts for different properties), but the utility official must give written notice to the customer.

(Code 1968, § 49-59; Ord. No. 89-24, § 4, 1-4-89; Ord. No. 90-635, §§ 153, 160, 5-23-90; Ord. No. 93-514, § 119, 5-5-93; Ord. No. 07-599, §§ 23, 24, 5-16-07)

Sec. 47-69. Potable water bills; charge for late payment.

(a) All potable water bills shall be payable in full based upon the rates and schedules provided in this division, on or before the due date stated on the customer's bill, unless the customer notifies the department in writing that he or she desires to challenge the correctness of the bill in an administrative hearing as described in section 47-70.1. If payment in full is not received by the department or an authorized agent by the due date and the customer has not requested an administrative hearing, the department shall bill such customer ten percent of the past due amount as a charge for late payment. Provided, that any bill attempted to be paid by a check or money order drawn on or issued by a financial institution which has had it funds frozen by involuntary, or voluntary action after the attempt to pay the bill in such manner, shall not be charged in late fee if the bill is paid within 30 days from the date the customer has been notified that payment on the check or money order has not been honored. The director shall prescribe the form for the customer's bills.

(b) Notwithstanding the provisions of subsection (a), late charges shall not apply to governmental customers (unless provided by contract), exempt senior customers, persons with a disability or disabled veterans.

As used in this subsection, the term *"governmental customer"* means the United States, the city, and the state including its agencies and political subdivisions.

(Code 1968, § 49-60; Ord. No. 71-204, § 1, 1-27-71; Ord. No. 82-37, § 6, 1-12-82; Ord. No. 83-19, § 9, 1-11-83; Ord. No. 84-1279, § 1, 8-14-84; Ord. No. 87-1326, § 11, 8-5-87; Ord. No. 89-51, § 1, 1-11-89; Ord. No. 06-502, § 2, 5-17-06; Ord. No. 07-599, § 25, 5-16-07)

Sec. 47-70. Termination of service for failure to pay.

(a) If any customer fails to pay charges for water service furnished by the city when due, the department shall notify such customer about the delinquent bill, the amount the customer owes, and the right of the customer to an administrative review or hearing as provided by section 47-70.1 of this Code. The department shall give notice to single family residential customers concerning the availability of the W.A.T.E.R. Fund established pursuant to chapter 36 of this Code for assistance in paying water and sewer charges. Provided, an application for assistance from the W.A.T.E.R. Fund shall not delay or otherwise affect the responsibilities of the customer or the city under this chapter.

(b) If a customer does not choose to challenge a charge for water service, then, at the end of the ten-day period following notice to the customer, the water shall be immediately turned off and not turned on again, except by authorized representatives of the department.

(c) When the water supply to any property or premises of a customer has been disconnected or otherwise terminated by the department for failure of the customer to pay any water charges due and owing to the city, the water service to that customer at the affected property or premises shall not be resumed until and after all delinquent charges have been fully paid and satisfied, or satisfactory arrangements have been made with the director to pay such delinquent bills, and the delinquent customer has made any required deposit with the department. Whenever an umbrella account established under section 47-71 of this Code is delinquent, water service to each meter under that account may be terminated by the department in accordance with this subsection.

(d) The department shall charge the customer the fee stated for this provision in the city fee schedule as the cost to restore water service after

termination for nonpayment or, in case where there is a new tenant at the service address, the failure to make an application.

(e) If the department has closed the water meter pursuant to the provisions of this chapter, and the customer, without the department's authorization, restores water service, the department shall charge the customer for water usage plus the reclosing fee stated for this provision in the city fee schedule for each occurrence, plus the following penalties:

(1) No penalty for first occurrence;

(2) $75.00 for second occurrence; and

(3) $230.00 for third and subsequent occurrences.

In the event the department requires a penalty, it must provide notice to the customer and allow the customer to contest the penalty at an administrative hearing as provided in section 47-70.1 of this Code.

If the meter has been damaged in the attempt to unlawfully restore water services, the department shall charge the customer the actual cost to repair or replace the meter. If it is necessary for the department to place a locking device on the meter to prevent theft of water, the department shall charge the customer not only the cost to repair or replace the meter, but also the cost of the locking device.

(f) The foregoing procedures shall also apply to sewer service charges. An informal administrative hearing as to the correctness of a charge for sewer service may be combined with a similar hearing on water charges for the same customer. (Code 1968, § 49-61; Ord. No. 83-19, § 10, 1-11-83; Ord. No. 84-1919, § 2, 12-18-84; Ord. No. 86-435, § 3, 4-1-86; Ord. No. 89-1493, §§ 1, 2, 10-18-89; Ord. No. 93-314, § 6, 3-24-93; Ord. No. 00-791, § 1, 9-6-00; Ord. No. 03-925, § 4, 10-8-03; Ord. No. 03-1196, § 2, 12-23-03; Ord. No. 04-460, § 3, 5-12-04; Ord. No. 07-599, § 26, 5-16-07; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 47-70.1. Disputing water bills; administrative review and hearing.

(a) Customers have the right to request an administrative review and/or administrative hearing. The policies governing such review and hearing are prescribed by the utility official and will be available to any person upon request; provided, however, the field investigator for the city shall be authorized to conduct such inquiry or investigation as the investigator or reviewing official shall deem appropriate, including, but not limited to, personal inspection of the customer location and water connection. The reviewing official may also receive and consider information submitted by the customer, to include: Reports from plumbers, engineers, or other relevant sources; and relevant photographs and other tangible information, whether provided by the city or the customer. The customer has 90 days from the date of the first bill that is disputed to request an administrative review or hearing.

(b) An administrative review is an investigation by the department of the customer's account and relevant facts in order to resolve the dispute.

(c) A customer may request an administrative hearing within ten days of the date of the customer's notification of the administrative review outcome, to review disputes related to article I, division 1 of article II, and article III of this chapter. Before the customer may request the administrative hearing, the department must complete an administrative review of the disputed charges that are the subject of the administrative hearing. The hearing shall be set at a reasonable time and place and shall be held before a hearing officer independent of the operation of the city's water and sewer system, designated by the utility official, with the power to correct or adjust water bills in accordance with applicable laws; provided, however, the department shall not provide hearings for the following:

(1) The terms or denial of a deferred pay agreement;

(2) The amount, terms or denial of assistance from the W.A.T.E.R. Fund;

(3) The customer's financial inability to pay for water services;

(4) The rate schedule;

(5) The amount of deposit;

(6) The amount or application of late penalties;

(7) Requests that are inconsistent with city ordinances;

(8) The cost of administrative fees;

(9) A matter where the complainant is not the customer for the account; or

(10) A decision by the utility official under subsection 47-73(c) of this Code as to whether or not a payment plan should be extended.

(d) The customer has the right to be represented by counsel or any other agent at said hearing and shall notify the city at least ten business days prior to the hearing of such representation. In the event the customer is represented by legal counsel, the city may likewise be represented by legal counsel. Failure of the customer to give advance notice of representation by legal counsel will result in the hearing being postponed unless the city fails to object to such lack of notice. In addition to the evidence presented by the customer and the department, the hearing officer may, at the hearing officer's discretion, request additional evidence from either party and may conduct such additional inquiry or investigation as the hearing officer deems appropriate. The hearing officer shall consider all credible evidence presented and shall, based on a preponderance of the evidence, render a written ruling upholding the decision of the department, modifying the decision of the department, or reversing the decision of the department in accordance with applicable laws. The hearing officer's written ruling shall specify the applicable provision of this Code and shall direct the actions to be taken by the department to implement the ruling. The department shall ensure that a record is made of the hearing.

(e) Termination of service is suspended by a request for an administrative hearing unless the service was terminated prior to the customer's request for the hearing, the customer closes or transfers his account to a new address, the customer fails to pay charges not in dispute or the customer has prevented the city from obtaining meter readings within the last 60 days.
(Ord. No. 84-1919, § 3, 12-18-84; Ord. No. 86-435, § 2, 4-1-86; Ord. No. 92-23, § 5, 1-15-92; Ord. No. 03-925, § 5, 10-8-03; Ord. No. 03-1196, § 2, 12-23-03; Ord. No. 07-599, § 28, 5-16-07; Ord. No. 2013-320, § 4, 4-10-2013, eff. 6-1-2013; Ord. No. 2021-583, § 4, 6-30-2021)

Sec. 47-70.2. Acceptance and disposition of donations to the W.A.T.E.R. Fund.

(a) The utility official is authorized to accept donations to the W.A.T.E.R. Fund, as established by section 36-61 of this Code, The utility official shall place such funds in the city's trust and agency account in trust for the W.A.T.E.R. Fund.

The utility official shall include the following statement on all water and sanitary sewer bills:

'Check if $1 added as gift to W.A.T.E.R.'

Whenever a customer's water or sanitary sewer payment shall exceed the amount then due by the exact sum of $1.00 and such customer has checked the box provided on the bill for contributions to the W.A.T.E.R. Fund, the utility official shall deem the excess a contribution in the amount of $1.00 to the W.A.T.E.R. Fund.

(b) Upon the written approval of the utility official, the department shall apply W.A.T.E.R. funds as a credit to a customer's water and sanitary sewer bill in the same proportion, which the water and sanitary sewer charges bear to the customer's total bill. Such donated and transferred W.A.T.E.R. funds shall be under the general direction and control of the utility official for all purposes and shall under no circumstances be commingled with water, sanitary sewer or other public funds.
(Ord. No. 07-599, § 28, 5-16-07)

Sec. 47-71. Meter reading not to be combined for billing purposes; exception for umbrella account.

(a) As used in this section, the following terms shall have the meanings set out below, unless the context clearly indicates another meaning is intended:

Contiguous: An establishment is contiguous if all included buildings lie on a continuous tract of land, except for division by a street, alley, sidewalk, right-of-way, natural or man-made waterway, or preserved green area.

Umbrella account shall mean a multifamily residential customer account established pursuant to this section.

(b) Except as provided in this section for umbrella accounts, the meter readings of two or more water meters, even though serving a single building or establishment, shall not be combined for billing purposes, but separate billing shall be made for the water metered through each individual meter based on the sliding scale of charges provided by this division, with the charge computed the same as if there were only one meter serving such customer building or establishment.

(c) A multifamily residential customer whose establishment is served by more than one meter may elect to establish an umbrella account under which all meter readings from its establishment are combined for billing purposes. In order to be eligible to establish an umbrella account the following criteria must be met:

(1) The establishment must be contiguous, and all included buildings must be under the same ownership; and

(2) The owner of the establishment must complete the application for the umbrella account and agree to the conditions required by this article.

(d) The following types of meters may not be included in an umbrella account:

(1) Submeters maintained by the customer;

(2) Meters for which the city bills for water service only, such as outdoor customer meters;

(3) Meters that measure wastewater discharge only; and

(4) Meters that determine the usage for a single unit only of the establishment.

(e) The utility official shall promulgate the application form for establishment of the umbrella account. The application shall include information regarding the address or addresses of the multifamily residential establishment, the nature of any factor that may determine whether the buildings or structures are contiguous, the name of the owner, the number of units in the establishment, the number of meters covered by the proposed account, and any other information deemed relevant by the utility official. The application must be signed by the owner or duly authorized agent thereof, and must be notarized.

(f) The utility official shall grant the owner an umbrella account if the utility official is satisfied that all criteria of this section are met, and the owner or his agent has completed the application for an umbrella account. The umbrella account shall be effective for the next billing period after approval by the utility official.

(g) The following events will terminate the umbrella account:

(1) a transfer of ownership of the establishment in whole or in part; or

(2) an election in writing by the owner of the establishment to terminate the umbrella account. Any such election to terminate shall not be effective until the end of the billing period during which the owner's notice is received by the department. An umbrella account that is delinquent may not be terminated by owner election.

(Code 1968, § 49-62; Ord. No. 93-314, § 7, 3-24-93; Ord. No. 2013-320, §§ 4, 5, 4-10-2013, eff. 6-1-2013)

Sec. 47-72. Scaling or reduction of bill generally.

Any scaling or reduction of a water bill as shown by a meter is unlawful and is prohibited,

unless such reduction is made in accordance with specific provisions of this division. Any officer or employee of the city scaling or reducing any meter bill, except in accordance with such provisions, shall be personally responsible for the reduction in the bill, and shall be dismissed from the city's service therefor.
(Code 1968, § 49-63)

Sec. 47-73. Testing meters.

(a) In case any consumer of water questions the accuracy of a city water meter, he may obtain a test thereof upon written request therefor to the department. The customer may additionally request that he be permitted to be present at the removal and testing of the meter in person or by agent, and the customer may also invite an independent expert, at the customer's expense, to observe the removal and testing, provided the customer identifies in the written request the name of the expert and the expert's area of expertise.

(b) Upon the receipt of a written request therefor, the city shall cause the meter to be thoroughly and accurately tested. If the party complaining of the meter has requested that he be present for the removal and testing of the meter, he shall be afforded the opportunity to be present and participate therein.

(c) All meters must meet the accuracy test guidelines of the American Water Works Association. The department shall adjust customer bills for up to 24 months on the basis of results of tests performed by the department. If the meter or register is defective, the department shall repair or replace it. If a meter is damaged so that it cannot be tested, the customer's account may be adjusted for up to 24 months based on the average usage. Any adjustment in the bill to the city's advantage associated with a water meter shall be payable by the customer prorated over future billings equal to the number of past billings for which the adjustment was accrued; provided, however, in an instance where the utility official finds that such a payment plan would constitute extreme economic hardship, based on a determination that the customer's monthly household income meets the criteria established in section 36-62(2)b of this Code, the utility official may extend the payment plan over additional billings as the official may deem appropriate. A decision by the utility official under this subsection as to whether or not a payment plan should be extended shall be final and not subject to appeal.

(d) When the department retests the meter at the request of the customer, the department shall bill the customer for the cost as follows:

(1) If a customer requests that a meter be tested that is within the manufacturer's warranty period, and such meter when tested is accurate under the American Water Works Association guidelines; or

(2) If the department has tested the meter within the previous 12 months, and such meter when retested at the request of the customer is accurate under the American Water Works Association guidelines, then the department shall charge the customer the fee stated for this provision in the city fee schedule for the following:

a. Field testing of meters less than three inches.

b. Bench testing of meters less than three inches, plus cost of the new meter and related electronic devices.

c. Bench testing three-inch and larger meters, plus cost of the new meter,

(e) If the department re-reads a meter at the customer's request, and the reading verifies that the department's original reading was correct (equal to or greater than the prior reading), the department shall charge the customer the fee stated for in this provision in the city fee schedule. Provided, however, that exempt senior customers, disabled veterans and persons with disability are exempt from this fee.
(Code 1968, § 49-64; Ord. No. 87-1326, § 12, 8-5-87; Ord. No. 07-599, §§ 29—32, 5-16-07; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2013-320, § 7, 4-10-2013, eff. 6-1-2013)

Sec. 47-74. Adjustment of bill as result of defect in customer's line.

(a) Any residential, commercial, multifamily or outdoor customer of the city may request an adjustment of any water bill showing excess

usage due to a loss of water through an excusable defect in the customer's water line for a period not to exceed three consecutive months. To apply for the adjustment the customer must file a sworn written application or an application that conforms to minimum state law requirements for unsworn declarations with the director within six months of the repair of the excusable defect. There are no limit to the number of times customers may apply for and receive adjustments under this section. The director shall promulgate all necessary adjustment application forms. The adjustment application shall contain the following information and any other information as the director may require:

(1) The name of the applicant, the address or description of the property or premises furnished water, the bills which are sought to be adjusted, the date of the bill and the period of water usage covered thereby.

(2) A statement of the date on which the excusable defect in the applicant's water line was discovered and the date on which it was repaired; and a statement that water was lost through the city water meter serving such property and that such water was not used in any manner by anyone.

(3) A written acknowledgment that the applicant makes the statements shown on the application and swears to their veracity for the purpose of inducing the city to grant a reduction in the amount of the water bill for which an adjustment is requested.

(4) An indication of any additional water consuming devices placed in use on the applicant's premises during the period covered by such bill.

(5) Documentation shall be submitted detailing the exact nature and date of repairs to the applicant's water line.

(6) A statement that the applicant is personally familiar with all the matters of facts stated in the application and sworn to therein, that they are made on his personal knowledge and that they are each true and correct.

(7) A statement executed by the applicant setting forth an understanding that the application is a government record subject to criminal prosecution for false statements under chapter 37 of the Texas Penal Code and the applicant's certification that the application contains no false statements.

(b) Upon receipt of a properly completed application, the director shall review the application for completeness and to determine if the applicant has been a customer for a sufficient length of time to make an adjustment determination. If the applicant has not been a customer for a sufficient length of time needed to determine normal consumption as determined by the director, then the department shall defer the adjustment for a sufficient period of time needed to calculate the customer's average water usage. If the applicant qualifies for an adjustment, by meeting the requirements set out in subsection 47-74(a) of this Code, then the applicant's bill shall be adjusted as follows:

(1) For an excusable defect in a customer's line that is not a city-caused leak, if the customer repairs the leak within 30 days of receipt of a bill that first reflects the leak, the customer shall be billed only at their established rate for customers in the applicant's rate classification applied to the average usage and this is the only amount that will be charged. There will be no additional charge for excess usage.

Provided, however, for multifamily residential customers that have established umbrella accounts, average usage and excess usage under this section shall be determined with reference to each customer meter rather than the entire account as billed by the department.

(2) For an excusable defect in a customer's line that is not a city-caused leak that is repaired between 30 and 60 days of receipt of a bill that first reflects the

leak, a rate of charge equal to one-fourth of the established rate of such water usage by a customer in the applicant's classification shall be applied to the excess usage to determine the amount the applicant must pay for excess usage.

The established rate for customers in the applicant's rate classification will be applied to the average usage and this amount will be added to the amount due for the excess usage and the total of those two amounts will be the amount that the applicant must pay for water usage during the period covered by the adjusted bill.

Provided, however, for multifamily residential customers that have established umbrella accounts, average usage and excess usage under this section shall be determined with reference to each customer meter rather than the entire account as billed by the department.

(3) For an excusable defect in a customer's line that is not a city-caused leak that is repaired after 60 days of receipt of a bill that first reflects the leak, a rate of charge equal to one-half of the established rate of such water usage by a customer in the applicant's classification shall be applied to the excess usage to determine the amount the applicant must pay for excess usage.

The established rate for customers in the applicant's rate classification will be applied to the average usage and this amount will be added to the amount due for the excess usage and the total of those two amounts will be the amount that the applicant must pay for water usage during the period covered by the adjusted bill.

Provided, however, for multifamily residential customers that have established umbrella accounts, average usage and excess usage under this section shall be determined with reference to each customer meter rather than the entire account as billed by the department.

(4) For leak adjustments calculated under subsection (b)(2) or subsection (b)(3) there will not be any associated sanitary charges as calculated under Section 47, Article III related to the one-fourth or one-half excess usage charge.

(5) For an excusable defect in a customer's line that is documented and verified by the city as a city-caused leak, a rate of charge equal to the established rate of such water usage by a customer in the applicant's classification shall be applied to the applicant's average water usage derived in the leak calculation, which determines the customer's normal usage and excludes charges for the customer's excess usage to determine the amount the applicant must pay for water usage during the period specified in the customer's application.

(c) If the applicant has already paid the bill for which an adjustment is authorized under this section and the adjustment is no more than six times the applicant's average bill, the department shall credit the applicant's account the amount of the adjustment to be applied to the charges thereafter accruing. However, if the adjustment is more than six times the customer's average bill and the customer requests a refund, or the applicant can show extreme economic hardship to the director, the department shall refund the amount of the adjustment as specified in section 47-74.1 of this Code. The director shall determine whether extreme economic hardship exists.

If an applicant discontinues water service before subsequent charges have depleted the credit, the department shall refund to the applicant at the time of discontinuance the remaining credit balance minus any overdue debt the applicant owes the city.

(d) Except as provided by section 47-75.2 of this Code, a determination by the director of the amount of an adjustment to be made in an applicant's water bill in accordance with the provisions of this section shall be final.
(Code 1968, § 49-65; Ord. No. 83-19, § 11, 1-11-83; Ord. No. 87-1326, § 13, 8-5-87; Ord. No. 88-128, § 1, 1-27-88; Ord. No. 90-635, §§ 153, 161, 5-23-90; Ord. No. 93-314, § 8, 3-24-93; Ord. No. 93-514, § 120, 5-5-93; Ord. No. 97-497, §§ 1, 2, 5-7-97; Ord. No. 06-502, § 3, 5-17-06; Ord. No. 07-599, §§ 33, 34, 5-16-07; Ord. No. 2013-320, §§ 8, 9, 4-1-2013, eff. 6-1-2013; Ord. No. 2018-11, § 49, 1-10-2018; Ord. No. 2021-583, § 5, 6-30-2021; Ord. No. 2023-1127, § 3, 12-13-2023)

Sec. 47-74.1. Leak balance remaining adjustment.

(a) Any single-family residential customer with a leak balance remaining (LBR) may request a leak balance remaining adjustment. As used in this section the term leak balance remaining means a water bill amount due that is derived from excess usage that remains after the director's approval of a billing adjustment under section 47-74 of this Code. The LBR includes only water and sewer service charges on the customer's account and may include usage billed in consecutive months prior to or after the months adjusted under section 47-74 of this Code.

(b) To qualify for an LBR adjustment, the LBR must be greater than $1,000.00. For elderly customers who meet the eligibility criteria for elderly residents in section 36-62 (1) of this Code, the LBR must be greater than $100.00. Customers requesting an LBR adjustment shall submit an LBR adjustment application on a form prescribed by the director. The application form shall contain a statement requiring the applicant to affirm its understanding that the application is a government record subject to criminal prosecution for false statements under chapter 37 of the Texas Penal Code, and a statement that the application contains no false statements.

(c) A customer requesting an LBR must demonstrate that he:

(1) Is the named account holder of record at the time that the excusable defect occurred;

(2) Qualified for and received an adjustment under section 47-74 of this Code;

(3) Had an excusable defect in the line that was not a city-caused leak;

(4) Worked with the customer account services' (CAS) collections team and exhausted the CAS recommended assistance options prior to submitting the LBR adjustment application;

(5) Submitted the LBR adjustment application within 30 days after the date on which an approved adjustment for the defect in the customer's line appeared on the bill; and

(6) Had not received an LBR adjustment on the account during the past 12-month period.

(d) Upon receipt of a completed LBR adjustment application, the director shall review the application and if the director approves the application as being eligible for an adjustment under this section, the customer's bill shall be adjusted as follows:

(1) For customers with a leak balance remaining greater than $1,000.00, the leak balance remaining shall be adjusted to $1,000.00.

(2) Notwithstanding item (1) of this subsection, for eligible elderly customers with a leak balance remaining greater than $100.00, the leak balance remaining shall be adjusted to $100.00.

(e) The LBR billing adjustment will be applied to the customer's account upon full payment of the amount owed after the LBR adjustment.

(f) The director shall offer a customer who receives a LBR adjustment a payment agreement to pay any remaining balance on the account in monthly installments.

(g) In the event of extraordinary circumstances and when reasonable effort was made by customer to remedy the defect in the water line in a timely manner, the director may consider additional qualifying conditions as prescribed in departmental procedures.

(h) Within ten days of the customer notification of the LBR decision, the customer may request an internal review by the department; however, the decision of the director or the director's designee following the internal review is final. There are no rights for further administrative review, an administrative hearing, or any further proceedings or appeals regarding the LBR Adjustment Application and/or the LBR Adjustment under this section.

(i) Customers may receive no more than one LBR adjustment in any 12-month period for any one account.

(Ord. No. 2021-583, § 5, 6-30-2021; Ord. No. 2023-1127, § 4, 12-13-2023)

Sec. 47-75. Adjustment of unusually large bill.

(a) Any single-family residential customer who receives a water bill for any given month that is greater than 200 percent of the average usage of the customer, the customer may request an adjustment of the bill in the manner provided in this section. Provided, that the customer must make an application within six months of receipt of such bill and only one such monthly bill out of any 12 consecutive monthly bills may be adjusted under this section. If the applicant has not been a customer for a sufficient length of time for the department to determine average usage, the department shall delay the adjustment until it can calculate the average usage. In order to request such an adjustment, the customer must file an application for the adjustment on a form furnished by the utility official. The application form shall contain a statement setting forth an understanding that the application is a government record subject to criminal prosecution for false statements under chapter 37 of the Texas Penal Code, and the customer must state that the application contains no false statements. The application shall identify the bill and briefly state:

(1) The reasons for the request for the adjustment;

(2) A description of the additional water consuming devices or fixtures, if any, that have been placed in use by the customer during the current month or the preceding 12 months;

(3) That there have been no plumbing repairs or necessity therefor during the month for which an adjustment is sought or that the nature of any plumbing defects was not such as would explain the additional usage; and

(4) Such other information as the utility official may require.

(b) Upon receiving such application, the utility official shall make an investigation to determine if an error was made, which investigation shall include inspection of the customer's water meter for accuracy and review of the customer's billing record. If the initial investigation reveals a billing or meter error, the utility official shall correct the error. If the investigation does not reveal an error, the utility official may make such further investigation as the utility official deems advisable and shall give full consideration to the statements contained in the customer's application. If the utility official concludes that, in all reasonable probability, the customer consumed and was charged for more water during the month in question but is unable to actually account for such unusual quantity, the utility official shall recompute the bill using as the gross quantity 125 percent of the average monthly gross quantity applicable to the customer. Except as provided by section 47-75.2 of this Code, a determination by the utility official made in accordance with the provisions of this section shall be final.

(c) If the customer has already paid the bill for which an adjustment is authorized under this section and the adjustment is no more than six times the customer's average bill, the department shall credit the customer's account the amount of the adjustment to be applied to the charges thereafter accruing. However, if the adjustment is more than six times the customer's average bill and the customer requests a refund, or the customer can show extreme economic hardship, the department shall refund the amount

of the adjustment. The utility official shall determine whether extreme economic hardship exists.

If a customer discontinues water service before subsequent charges have depleted the credit, the department shall refund to the customer at the time of discontinuance the remaining credit balance minus any overdue debt the customer owes the city.
(Code 1968, § 49-66; Ord. No. 83-19, § 12, 1-11-83; Ord. No. 87-1326, § 14, 8-5-87; Ord. No. 88-128, § 2, 1-27-88; Ord. No. 90-635, § 153, 5-23-90; Ord. No. 93-314, § 9, 3-24-93; Ord. No. 97-497, §§ 3, 4, 5-7-97; Ord. No. 06-502, § 4, 5-17-06; Ord. No. 07-599, § 35, 5-16-07; Ord. No. 2013-320, §§ 10, 11, 4-10-2013, eff. 6-1-2013; Ord. No. 2023-1127, § 5, 12-13-2023)

Sec 47-75.1. Exceptional circumstances adjustment.

(a) Under exceptional circumstances as identified in this section, any billed amount in excess of two times the average monthly bill of a commercial, residential or not-for-profit account may be reduced by up to $10,000.00 for one occurrence that does not exceed a timeframe of two billing cycles. To receive this credit, the following criteria will be used:

(1) The usage must exceed the customer's average monthly usage by at least two times; and

(2) Based on an investigation conducted by the department as described in section 47-75 of this Code, the evidence clearly establishes that such increased usage was not the result of the customer's failure to take action reasonably calculated to address the problem.

(b) A customer may receive no more than one exceptional circumstances adjustment in a 24 month period.

(c) The adjustment may not be combined with any other adjustment granted pursuant to this chapter for a single incident.

(d) In order to request such an adjustment, the customer must file an application for the adjustment on a form furnished by the utility official. The application form shall contain a statement setting forth an understanding that the application is a government record subject to criminal prosecution for false statements under Chapter 37 of the Texas Penal Code, and the customer must state that the application contains no false statements. The application shall identify the bill(s) and briefly state:

(1) The reasons for the request for the adjustment;

(2) A description of the additional water consuming devices or fixtures, if any, that have been placed in use by the customer during the current month or the preceding 12 months;

(3) Information on any plumbing repairs or necessity therefor during the month(s) for which an adjustment is sought; and

(4) Such other information as the utility official may require.

(e) A customer may request a hearing regarding this section following the process set forth in section 47-70.1 of this Code.

(f) Except as provided by section 47-75.2 of this Code, a determination by the utility official made in accordance with the provisions of this section shall be final.
(Ord. No. 2013-320, § 12, 4-10-2013, eff. 6-1-2013; Ord. No. 2023-1127, § 6, 12-13-2023)

Sec. 47-75.2. Water adjustment board.

(a) There is hereby created a water adjustment board. The water adjustment board shall consist of three members appointed by the mayor and approved by city council, each to serve a term of three years unless removed earlier by the mayor. At least one member of the board shall hold or have held a journeyman plumber's license and shall have been eligible in the past five years to take the Texas State Board of Plumbing Examiners' master plumber examination.

(b) The board's jurisdiction shall be limited to reviewing decisions of hearing officers relating to matters arising under sections 47-73, 47-74, 47-75, and 47-75.1 of this Code.

(c) Not later than ten days following the decision of the hearing officer under section 47-70.1 of this Code the customer may request that the decision be reviewed by the water adjustment board. The review will be based exclusively on the record of the hearing; no additional evidence or information shall be considered. The board may uphold, reverse or modify the decision of the hearing officer in conformance with the provisions of this Code but may not make any adjustment greater than allowed by section 47-73, 47-74, 47-75, or 47-75.1, as applicable, of this Code. The board may be assisted by a member of the legal department in order to ensure proper interpretation of this Code.
(Ord. No. 2013-320, § 12, 4-10-2013, eff. 6-1-2013; Ord. No. 2014-207, § 1, 3-12-2014)

Sec. 47-76. Charge for collecting in the field.

If a city collection representative makes a field call on a customer and a water or sewer bill is paid to the representative, the collection charge stated for this provision in the city fee schedule shall be added to the amount of such bill.
(Code 1968, § 49-68; Ord. No. 83-19, § 20, 1-11-83; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 47-77. Charges for disinfection of potable water mains by city employees.

(a) This section shall be applicable on all construction contracts for potable water mains constructed or renewed under city specifications where the mains are disinfected (chlorinated) by employees of the department.

(b) The director shall prescribe policies, procedures, and rates to be paid by contractors for the disinfection of newly constructed or renewed water mains. Such policies, procedures, and rates will be made available to the contractor prior to the completion of the construction.

(c) The rates for disinfection shall be established yearly by the director and shall be subject to approval by the city council by motion duly adopted.
(Code 1968, § 49-69; Ord. No. 83-19, § 21, 1-11-83)

Sec. 47-78. Delinquent customers to provide certain information to utility official.

The utility official may require any delinquent customer to provide the city:

(1) The name and address of the owner of the service address of such customer; and

(2) The full legal description of the service address of such customer.

(Ord. No. 89-24, § 5, 1-4-89; Ord. No. 90-635, § 153, 5-23-90)

Sec. 47-79. Charge for billing information.

Any customer may request an itemized summary of the department's billing records in accordance with procedures and forms promulgated by the Director of Houston Public Works. Each such request shall include payment to the city of the copying fees stated for this provision in the city fee schedule.
(Ord. No. 87-1326, § 15, 8-5-87; Ord. No. 90-635, § 162, 5-23-90; Ord. No. 93-514, § 121, 5-5-93; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2018-11, § 49, 1-10-2018)

Secs. 47-80—47-83. Reserved.

DIVISION 2. UNTREATED WATER

Sec. 47-84. Statement of policy; standard untreated water rates.

(a) *Application.* This division applies to all sales of untreated water by the city.

(b) *Contracts.* All contracts for untreated water supply shall be in the form approved by the city council. In the event any untreated water customer requests terms, conditions or amendments not included in the approved form, the director shall follow appropriate procedures for review of the proposed changes and consideration of the proposed contract by the city council. The policy of the city is that the provisions of this division shall be deemed a part of every city contract for sale of untreated water for industrial, municipal, or agricultural use.

(c) *No warranty.* It is the city's policy that no guarantees or warranties of any sort shall be made with respect to continued service, water quality, prices, quantity, pressure or any other matter relating to the furnishing of untreated water, unless such guarantee or warranty is contained in a written contract approved by city council.

(d) *Standard rates.* When no contract is in effect, there are no warranties or guarantees of any sort, nor shall there be any minimum monthly quantity, and any water taken by any such customer in the absence of a water supply contract shall be paid for at the rates stated for this provision in the city fee schedule per month.

(Code 1968, § 49-72; Ord. No. 83-19, § 13, 1-11-83; Ord. No. 84-484, § 1, 3-27-84; Ord. No. 86-1663, § 6, 9-17-86; Ord. No. 87-1326, § 5, 8-5-87; Ord. No. 88-1194, § 4, 7-6-88; Ord. No. 89-1048, § 4, 7-5-89; Ord. No. 90-861, § 11, 7-11-90; Ord. No. 92-113, § 4, 2-5-92; Ord. No. 93-314, § 10, 3-24-93; Ord. No. 94-1012, § 1, 9-28-94; Ord. No. 04-297, § 4, 4-21-04; Ord. No. 04-299, § 5.2, 4-21-04; Ord. No. 09-206, § 4, 3-11-09, eff. 4-1-09; Ord. No. 2010-305, § 4, 4-21-2010, eff. 6-1-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2021-515, § 3(Exh. B), 6-23-2021, eff. 7-1-2021)

Sec. 47-85. Contract rates and terms of service.

Subject to variations as provided in section 47-86 of this Code, sales of untreated water under written contracts for industrial and municipal use shall be made in consideration of the requirement that the buyer agrees to purchase at least ninety percent of all its untreated water requirements from the city; however, the buyer shall not be required to purchase a minimum quantity during each month. Untreated water contracts shall include provisions limiting the city's obligation to deliver water to a stated contract quantity, and the buyer shall be required to pay a surcharge equal to five percent of the otherwise applicable cost for the portion of the water delivered to the buyer which exceeds the contract quantity whenever the amount actually delivered exceeds the contract quantity by ten percent or more. The rate for untreated water sold pursuant to this subsection is stated for this provision in the city fee schedule per 1,000 gallons.

(Code 1968, § 49-73; Ord. No. 71-598, § 3, 3-24-71; Ord. No. 72-662, § 3, 4-18-72; Ord. No. 73-1753, §§ 1, 2, 8-29-73; Ord. No. 73-2471, § 1(1), (2), 12-19-73; Ord. No. 76-1847, § 4, 10-20-76; Ord. No. 78-631, § 5, 3-29-78; Ord. No. 79-2336, § 2, 12-26-79; Ord. No. 83-19, § 14, 1-11-83; Ord. No. 86-1663, § 7, 8-17-86; Ord. No. 87-1326, § 6, 8-5-87; Ord. No. 88-1194, § 5, 7-6-88; Ord. No. 89-1048, § 5, 7-5-89; Ord. No. 90-861, § 12, 7-11-90; Ord. No. 92-113, § 5, 2-5-92; Ord. No. 93-314, § 11, 3-24-93; Ord. No. 94-1012, § 2, 9-28-94; Ord. No. 96-764, § 1, 7-31-96; Ord. No. 04-297, § 5, 4-21-04; Ord. No. 04-299, § 5.2, 4-21-04; Ord. No.

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09-206, § 5, 3-11-09, eff. 4-1-09; Ord. No. 2010-305, § 4, 4-21-2010, eff. 6-1-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Editor's note—Ordinance No. 2010-305, passed April 21, 2010, requires the annual adjustment of water and sewer rates each year on the first of April. The adjustment is usually based on the change in the U.S. Producers Price Index for all commodities as reported annually by the Bureau of Labor Statistics. In years when an increase based on the Producers Price Index would exceed the amount allowed by Article IX Section 20 of the City Charter, the adjustment will be based on the changes in the Annual U.S. Census Houston Population Index and the U.S. Consumer Price Index for all Urban Consumers for the Houston-Galveston-Brazoria Texas Metropolitan Area. The city's published rates for each year are rounded down to the nearest cent but the annual adjustment for each year is calculated to the nearest one-thousandth of a cent ($0.00001). A fractional portion of the rate adjustment (less than one cent) may not appear in one year's published rates but may appear in the next year's published rates because the rate calculation retains more decimals than the published rates.

Sec. 47-86. Same—Variations.

(a) If a contract under this division provides for delivery of water by the city at some point away from the main San Jacinto River conveyance systems and the Trinity River conveyance systems of the city and the Coastal Industrial Water Authority, the rate of the otherwise applicable schedule will be increased by agreed amounts so as to allow for the additional cost of service factors, including amortization of the cost of additional facilities and interest.

(b) A customer taking untreated water under this division will be relieved from its obligation to take, or pay for, its minimum quantity of water for a single annual period of time, not to exceed 14 days in any calendar year, if such customer's plant or facility substantially ceases operations during such period and if the conditions of this subsection (b) are met. The customer must apply to the utility official at least 30 days prior to the beginning of the cessation of operations. The application, on a form provided by the city, shall be made under oath by the customer, or its duly authorized agent, and shall contain the following:

(1) The beginning and ending dates of the cessation of operations and a request that minimum payments be suspended between such dates;

(2) The dates of the last preceding cessation of operations and suspension period, if any;

(3) The reason that such cessation of operations is necessary;

(4) A statement that the cessation of operations cannot reasonably be avoided. If the reason for cessation is maintenance of the customer's plant or facility, the application must state that such maintenance cannot practicably be performed without a cessation of operations.

Upon approval of the application by the utility official, the customer's monthly bill or statement shall be adjusted prorata so as to relieve the customer of that portion of its minimum monthly payment corresponding to the cessation period. The provisions of this subsection shall not apply to any circumstances defined as force majeure in any water supply contract or to any other suspension of payments provided for in such contracts.
(Code 1968, § 49-74; Ord. No. 73-2471, § 2, 12-19-73; Ord. No. 77-182, § 1, 2-1-77; Ord. No. 90-635, § 153, 5-23-90)

Sec. 47-87. Bills; penalty for late payment.

The water division will read the meter of each customer of untreated water for industrial and municipal uses on the first day of each calendar month and will render to each customer, on or before the tenth day of each month, a statement showing the quantity of water delivered, the payment which is due for water during the preceding month, and the time when payment is due. The statement will be mailed to such address as customers, from time to time, furnish the water division. If a customer fails to pay any amount when due, interest thereof shall accrue at the rate of ten percent per annum from the date when due until paid. The statements will refer to the penalty for late payment.
(Code 1968, § 49-75)

Sec. 47-88. Provisions of long-term contracts.

Long-term contracts authorized pursuant to the provisions of section 402.021 of the Texas Local Government Code may contain special provisions not inconsistent with the provisions of this

division regarding options for additional water, stand-by charges, and other provisions in consideration for contractual commitments from customers to purchase their surface water requirements from the city over long periods of time.
(Code 1968, § 49-76; Ord. No. 77-183, § 1, 2-1-77; Ord. No. 94-1012, § 3, 9-28-94)

Sec. 47-89. Rates and terms for sale of untreated water for agricultural use.

(a) *Definitions.* The words, terms, and phrases used but not defined in this section shall have their plain meaning or the same meaning as attributed elsewhere in this chapter, unless such meaning is clearly inconsistent with the intent of passage:

Agricultural customer shall mean a customer with a contract (i) with the city for untreated water supply for agricultural use and (ii) that is subject to the this Code.

Agricultural use means a lawful and intentional diversion of water for use on land or in tanks dedicated to production of crops or live stock. The utility official may apply the definition in Texas Tax Code to further limit "agricultural use."

Contracted land means a certain area of land described in a contract between the customer and the city. Contracted land shall generally be described in acres and apply to rice production only.

(b) *Rates for agricultural use.*

(1) *General agricultural use rate.* Unless entitled to a different rate authorized under this Code, each agricultural customer shall pay for water according to usage recorded by a meter at the rate stated for this provision in the city fee schedule per million gallons.

(2) *Rice irrigation rate.* Each agricultural customer that diverts water onto contracted land for rice production shall pay rates as described below:

a. The customer shall pay for the first watering at the rate stated for this provision in the city fee schedule per acre of contracted land or, if diverted through a meter on the canal or conveyance system, per million gallons actually used; and

b. The customer shall pay for each additional watering during the annual term of the contract at the rate stated for this provision in the city fee schedule per acre of contracted land or, if diverted through a meter on the canal or conveyance system, per million gallons actually used.

(c) *Agricultural use application.* All persons desiring to purchase untreated water for agricultural use purposes shall apply to the director for such purchases.

(1) Each application must:

a. Be in a form specified by the director;

b. Be filed with the director on or before April 1 of a year for a purchase during that year (the director may extend the deadline at his discretion);

c. Contain the complete legal name of the person applying for purchase of untreated water for agricultural use (the "applicant") and the applicant's business address and telephone number;

d. Contain a description of the property on which the water shall be used, such that the property may be located with ease and certainty;

e. Contain the number of acres to be irrigated to the nearest tenth of an acre;

f. State whether the applicant will use gravity or a pump to convey untreated water to the land described in the application, and if one or more pumps are used, state the make, model, age, size, condition and location of all pumps and self-reading (or self-recording) meters;

g. Contain an agreement by the applicant to be bound and abide by the provisions set out in this section; and

h. Be signed by the applicant, or by a person authorized to bind the applicant to contracts and agreements.

(2) The director shall examine each application for purchase of untreated water for agricultural use. An application shall be approved if the director determines that:

a. The city reasonably anticipates a surplus of untreated water after filling the needs of its domestic, commercial and industrial customers such that it may serve irrigation customers;

b. The applicant's pumps, meters and other facilities are satisfactory;

c. The applicant is not in arrears for water previously taken for irrigation purposes; and

d. The application complies with this Code.

(d) *Irrigation requirements.* The following provisions shall apply to all sales of untreated water sold for irrigation purposes:

(1) Water shall be taken only from a point approved by the director.

(2) Water may be taken only when the director determines that a surplus of water remains after the needs of domestic, commercial and industrial customers are fully met.

(3) If water is to be taken through a self-reading or self-recording meter, the applicant shall have the obligation to install and maintain the meter at the applicant's own expense and shall have the meter tested for accuracy whenever requested by the director. If any test results indicate that the meter is inaccurately measuring the water by two percent or more, the applicant shall recalibrate the meter or replace it.

(4) The applicant shall have full responsibility with respect to any damages to persons or property caused by the water after it leaves the canal and shall indemnify the city for any such damages.

(5) The city shall not be liable for any damages caused by failure to furnish water to the applicant for any reason.

(6) The applicant shall construct all canals, levees, banks, ditches and other improvements reasonably deemed necessary by the director to receive water and to prevent the waste thereof.

(7) The applicant shall not sell or otherwise make available to other parties any water delivered for irrigation purposes.

(8) The city shall have a lien on crops produced on the irrigated land until all sums owing are paid in full or until the director releases said lien in whole or part.

(9) No warranties or representations are made by the city with respect to the quality of water sold, or its suitability for crop irrigation purposes, and it shall be the applicant's responsibility to determine whether the water is suitable for irrigation purposes.

(e) *Agricultural customer payment.* Each agricultural customer shall pay for the applicable amount for water on a monthly basis or, for rice irrigation only on before November 1 of that year, and before December 1 of that year for any additional amount of watering. Payment shall be made to the city water division at such place as the director may specify. Interest shall accrue on any unpaid balance at the rate of ten percent per annum until paid.

(Code 1968, § 49-77; Ord. No. 83-19, § 15, 1-11-83; Ord. No. 84-484, § 2, 3-27-84; Ord. No. 86-1663, § 8, 9-17-86; Ord. No. 87-1326, § 7, 8-5-87; Ord. No. 88-1194, § 6, 7-6-88; Ord. No. 89-1048, § 6, 7-5-89; Ord. No. 90-861, § 13, 7-11-90; Ord. No. 92-113, § 6, 2-5-92; Ord. No. 93-314, § 12, 3-24-93; Ord. No. 04-297, § 6, 4-21-04; Ord. No. 04-299, § 5.2, 4-21-04; Ord. No. 09-206, § 6, 3-11-09, eff. 4-1-09; Ord. No. 2010-305, § 5, 4-21-2010, eff. 6-1-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Editor's note—Ordinance No. 2010-305, passed April 21, 2010, requires the annual adjustment of water and sewer

rates each year on the first of April. The adjustment is usually based on the change in the U.S. Producers Price Index for all commodities as reported annually by the Bureau of Labor Statistics. In years when an increase based on the Producers Price Index would exceed the amount allowed by Article IX Section 20 of the City Charter, the adjustment will be based on the changes in the Annual U.S. Census Houston Population Index and the U.S. Consumer Price Index for all Urban Consumers for the Houston-Galveston-Brazoria Texas Metropolitan Area. The city's published rates for each year are rounded down to the nearest cent but the annual adjustment for each year is calculated to the nearest one-thousandth of a cent ($0.00001). A fractional portion of the rate adjustment (less than one cent) may not appear in one year's published rates but may appear in the next year's published rates because the rate calculation retains more decimals than the published rates.

Sec. 47-90. Sale of groundwater pumping certificates.

The director is hereby authorized to sell city groundwater pumping certificates issued by the Harris-Galveston Coastal Subsidence District ("certificates"). Transfer of any such certificate may be made only upon tender of payment to the director.

Rates for certificates are as follows: participants in the city's southeast water treatment plant will be charged the current operations and maintenance rate for the southeast water treatment plant or the latest price charged for certificates by the Harris-Galveston Coastal Subsidence District, whichever rate is higher. All other buyers will be charged the base rate for contract treated water service for customers that receive surface water only from the city.

Certificates may be sold only if the director determines use of the certificates is not required by the city. Documents evidencing sale of certificates must be approved by the legal department as to form.
(Ord. No. 99-13, § 1, 1-13-99)

Secs. 47-91—47-100. Reserved.

DIVISION 3. WATER USED BY CITY

Sec. 47-101. Generally.

(a) Other departments or divisions of the city shall be deemed a customer of the water division with respect to each meter or connection which serves areas or structures which:

(1) Are used primarily for or in connection with activities for which fees, charges or other nontax revenues are paid to the city; and

(2) Are under the control of a department or division of the city which is shown as a revenue-supported, "enterprise" operation in the most recently published annual financial report of the city.

(b) The director shall bill each such department or division monthly, and each such department or division shall pay for water used by it upon receipt of the bill.
(Code 1968, § 49-82; Ord. No. 83-19, § 16, 1-11-83)

Sec. 47-102. Sale to state.

The sale of unmetered water to the state department of highways and public transportation for use in its street sweepers and herbicide trucks and other similar purposes is hereby authorized provided that the utility official requires that adequate reporting procedures by such department to the city are established in order to insure that water furnished by the city to such department is paid for.
(Code 1968, § 49-82.1; Ord. No. 73-2515, § 1, 12-26-73; Ord. No. 90-635, § 153, 5-23-90)

Secs. 47-103—47-120. Reserved.

ARTICLE III. CITY SEWER SERVICE CHARGES

Sec. 47-121. Definitions.

(a) The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Average usage means the user's average monthly sanitary usage as determined by the utility official on the basis of historical usage and other relevant factors.

Basic service means metering, administrative, billing, and other services related to sanitary service that the user receives and pays for regardless of the user's usage.

City sanitary sewer system means the sanitary sewer and waste disposal system owned, maintained and operated by or on behalf of the city in order to furnish sanitary sewer and waste disposal services, including, but not limited to waste treatment facilities, such as fertilizer plants, plants, disposal fields, lagoons and areas devoted to sanitary landfills for purposes of treating, neutralizing, stabilizing or disposing of waste, and sewer systems including pipelines, conduits, canals, pumping stations, force mains, and all other constructions, devices and appurtenant appliances used to transport waste, as such system may be now constituted or as it may be hereafter improved, enlarged or extended by construction, reconstruction, acquisition, annexation or otherwise.

Commercial user means any business or establishment that is not an industrial user as identified in the 1987 Edition of the Standard Industrial Classification Manual.

Duplex residence means a residential establishment equipped for sanitary service for two users.

Effluent means the raw sewage actually passing through a user's sanitary sewer meter during a month. When an effluent meter is used, charges shall be based on the usage registering on the meter when the meter is operating within manufacturers' standards.

Industrial user means any business or establishment that discharges industrial waste as defined in Article V of this chapter.

Monthly volume means the total effluent in increments of 1,000 gallons attributable to a user's meter for a given month. Monthly volume includes all effluent not previously included in the user's monthly sanitary charge.

Monthly sanitary charge means the charge in a given month for city sanitary sewer services that includes applicable charges for basic service and volume charges.

Multiple-dwelling units means one or more buildings, each equipped for occupancy by three or more families and used as a permanent residence by those families.

Person with disability has the meaning ascribed in section 36-62 of this Code.

Residential user means any user whose meter exclusively serves a residential establishment. Residential users do not include commercial users, contract treated water users, EBS users, industrial users, outdoor users, resale users, or transient users.

Single-family residence means a residential establishment serving a single family, or household, which may not include separate living quarters. In those instances where there is no meter on the water supply to the principal household, separate living quarters shall be considered as a separate residence and a separate sewer service charge shall be applied.

User means any person who has applied for or contracted with the city for sanitary sewer service, including any person who resides at the address to which sanitary sewer service is provided under that application or contract at the time monthly charges are incurred. A user may have more than one meter and more than one property with sewer service, but each meter will have a separate account number.

(b) The following words, terms, and phrases used but not defined in this section shall have the same meaning as defined in section 47-61 of this Code: *month, monthly water usage, person, residential establishment,* and *unit.* Words, terms, and phrases in this section shall be generally construed to have the same meaning as other words, terms, or phrases used in other parts of this chapter, unless the context clearly indicates another meaning.

(Code 1968, § 49-94; Ord. No. 74-221, § 1, 2-6-74; Ord. No. 77-499, § 1, 3-15-77; Ord. No. 90-861, § 15, 7-11-90; Ord. No. 92-113, § 8, 2-5-92; Ord. No. 93-314, § 14, 3-24-93; Ord. No. 07-599, § 36, 5-16-07; Ord. No. 2010-305, § 6, 4-21-2010, eff. 6-1-2010)

Sec. 47-122. Rates for users taking city water.

(a) *Residential users.* Each residential user shall incur monthly sanitary charges for each meter serving the user's premises, except certain multifamily residential users with umbrella accounts authorized to receive different basic service charges as set forth in section 47-71 of this Code.

(1) *Single-family residential user.* Each single-family residential user's monthly sanitary charge shall be calculated using the total of the applicable basic service charge and the volume charge set forth below:

a. *Basic service charge.* The user's basic service charge shall be based on meter size, measured by meter diameter in inches, as set forth in the chart stated for this provision in the city fee schedule.

b. *Volume charge.* The user's volume charge, regardless of meter size, shall be calculated using the user's monthly water usage as set forth in the chart stated for this provision in the city fee schedule.

(2) *Multifamily residential user.* Each multifamily residential user's monthly sanitary charge shall be calculated using the total of the applicable basic service charge and the volume charge set forth below:

a. *Basic service charge.* The user's basic service charge shall be based on meter size, measured by meter diameter in inches, as set forth in the chart stated for this provision in the city fee schedule.

b. *Volume charge.* The user's volume charge, regardless of meter size, shall be the user's monthly water usage multiplied by the wastewater volume rate stated for this provision in the city fee schedule for each 1,000 gallon increment.

(b) *Non-residential users.* Each non-residential user shall incur monthly sanitary charges for each meter serving the user's premises.

(1) *Commercial user.* Each commercial user's monthly sanitary charge shall be calculated using the total of the applicable basic service charge and volume charge set forth below:

a. *Basic service charge.* The user's basic service charge shall be based on meter size, measured by diameter in inches, as set forth in the chart stated for this provision in the city fee schedule.

b. *Volume charge.* The user's volume charge, regardless of meter size, shall be the user's monthly water usage multiplied by the wastewater volume rate stated for this provision in the city fee schedule.

(2) *Industrial user.* In additional to any applicable charges under section 47-143 of this Code, each industrial user's monthly sanitary charge shall be calculated using the total of the applicable basic service charge and volume charge set forth below:

a. *Basic service charge.* The user's basic service charge shall be based on meter size as set forth in the chart stated for this provision in the city fee schedule.

b. *Volume charge.* The user's volume charge, regardless of meter size, shall be the user's monthly water usage multiplied by the wastewater volume rate, and the flow rate, if applicable, plus the industrial waste program charge, all as stated for this provision in the city fee schedule and as described further below:

[1] *Industrial users without industrial waste surcharge.* The user's volume charge shall be the user's monthly usage multiplied by the wastewater volume rate stated for this provision in the city fee

schedule, plus the user's monthly usage multiplied by the wastewater volume rate stated for this provision in the city fee schedule for all flow to the city's public water system.

[2] *Industrial users with an industrial waste surcharge.* The user's volume charge shall be the user's monthly usage multiplied by the wastewater volume rate for BOD per pound, TSS per pound, and Ammonia per pound, as stated for this provision in the city fee schedule.

[3] *All industrial waste permittees* shall pay the industrial waste program charge.

(Code 1968, § 49-95; Ord. No. 74-221, § 1, 2-6-74; Ord. No. 77-499, § 2, 3-15-77; Ord. No. 83-37, § 1, 1-12-82; Ord. No. 83-1138, § 1, 7-26-83; Ord. No. 85-1094, § 1, 7-2-85; Ord. No. 86-1664, § 1, 9-17-86; Ord. No. 87-494, § 1, 4-14-87; Ord. No. 87-581, § 1, 4-21-87; Ord. No. 87-1906, § 1, 11-10-87; Ord. No. 88-1194, § 8, 7-6-88; Ord. No. 89-1048, § 8, 7-5-89; Ord. No. 90-861, § 16, 7-11-90; Ord. No. 92-113, § 9, 2-5-92; Ord. No. 93-314, § 15, 3-24-93; Ord. No. 04-297, § 7, 4-21-04; Ord. No. 04-299, § 5.2, 4-21-04; Ord. No. 09-206, § 7, 3-11-09, eff. 4-1-09; Ord. No. 2010-305, § 6, 4-21-2010, eff. 6-1-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2021-515, § 3(Exh. B), 6-23-2021, eff. 7-1-2021)

Sec. 47-123. Rates for users not receiving water from city.

The monthly sanitary sewer service charge for each user who has a private water supply or receives water from a source other than the city's water system and whose water supply is not self-metered and billed as provided in section 47-128 of this Code shall be as stated for this provision in the city fee schedule, according to the following categories and customer types:

(1) Single family residence.

(2) Duplex residence.

(3) Multiple dwelling units, per single family unit.

(4) Commercial user rate, per commercial equivalent. Each commercial user shall pay each month the cost of a single commercial equivalent unless such commercial user requires additional commercial equivalents of service as determined by the table in section 47-1002 of this Code.

(5) Industrial user rate, per commercial equivalent. Each industrial user shall pay the cost of a single commercial equivalent unless such industrial user requires additional commercial equivalents of service as determined by the table in section 47-1002 of this Code.

(Code 1968, § 49-96; Ord. No. 74-221, § 1, 2-6-74; Ord. No. 77-499, § 3, 3-15-77; Ord. No. 82-37, § 2, 1-12-82; Ord. No. 83-1138, § 2, 7-26-83; Ord. No. 85-1094, § 2, 7-2-85; Ord. No. 86-1664, § 2, 9-17-86; Ord. No. 87-494, § 2, 4-14-87; Ord. No. 87-1906, § 2, 11-10-87; Ord. No. 88-1194, § 9, 7-6-88; Ord. No. 89-1048, § 9, 7-5-89; Ord. No. 90-861, § 17, 7-11-90; Ord. No. 92-113, § 10, 2-5-92; Ord. No. 93-314, § 16, 3-24-93; Ord. No. 04-297, § 8, 4-21-04; Ord. No. 04-299, § 5.2, 4-21-04; Ord. No. 09-206, § 8, 3-11-09, eff. 4-1-09; Ord. No. 2010-305, § 6, 4-21-2010, eff. 6-1-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2021-515, § 3(Exh. B), 6-23-2021, eff. 7-1-2021)

Sec. 47-124. Reserved.

Editor's note—Ord. No. 07-599, § 37, adopted May 16, 2007, repealed § 47-124 in its entirety. Formerly, said section pertained to property located outside the city and derived from Code 1968, § 49-9-1407; Ord. No. 74-221, § 1, 2-6-74; Ord. No. 89-1048, § 13, 7-5-89.

Sec. 47-125. Reduced rates or free service.

All persons owning, renting, leasing or having management or control of property or premises that produce waste that is discharged into the sanitary sewers of the city, including domestic waste, and subject to the provisions of this article, shall be charged the rates established in

this division, and no reduced rates or free sanitary sewer service shall be furnished to any such person, property or premises.
(Code 1968, § 49-98; Ord. No. 74-221, § 1, 2-6-74)

Sec. 47-126. Deposit to secure payment.

Applicants for sewer service only shall post a deposit with the department in the amount determined by the utility official as provided in section 47-68 of this Code.
(Code 1968, § 49-99; Ord. No. 74-221, § 1, 2-6-74; Ord. No. 90-635, § 153, 5-23-90; Ord. No. 07-599, § 38, 5-16-07)

Sec. 47-127. Determination of charges generally.

In those instances where water meters are provided on the sources of water providing water to the facilities discharging into the sanitary sewer system of the city, water usage will be determined from the water meter readings, for the purpose of determining the sewer service charge. As to such water sources that are not metered, estimates of water usage will be made by the city and sewer service charges based upon such estimates will be in addition to those determined from water meter readings.
(Code 1968, § 49-100; Ord. No. 74-221, § 1, 2-6-74)

Sec. 47-128. Metering water not furnished by city to determine charge.

Any person discharging waste from any property or premises into the sanitary sewers of the city who has a private source of water supply or who receives his water supply from a source other than the city may choose to install a water meter of the type and standard approved by the department for the purpose of measuring the amount of water taken into such facilities. Such meter shall be installed in a location approved by the department and accessible to the water meter readers of the city at all times during the hours from 4:00 a.m. to 5:00 p.m., Monday through Saturday of each week of each year. The water consumption indicated by such meter shall be the basis of determining the sewer charge provided for in this article, to be billed at the applicable rate as stated in section 47-122 of this Code.
(Code 1968, § 49-101; Ord. No. 74-221, § 1, 2-6-74; Ord. No. 77-499, § 4, 3-15-77)

Sec. 47-129. Metering water not discharged into sewer system to determine charge.

(a) Any customer discharging wastewater into the sewer system, except a single-family residential user, who takes water for the manufacture of a product or as cooling water, may receive credit for that portion of the water provided to his or her facilities that is not discharged into the sanitary sewers of the city under the city's submeter credit program.

(b) In order to apply for the submeter credit program, the customer must submit to the department an application together with the nonrefundable fee stated for this provision in the city fee schedule.. The customer must meet all guidelines specified herein to qualify and remain in the submeter credit program.

(c) The customer shall, at his or her own expense, install water submeter(s) of a type, design and location approved by the utility official. The department shall inspect and approve the submeter installations to ensure that the department's standards are met.

(d) The customer shall take monthly readings from these submeters within two days of the date specified by the utility official. The department shall not accept readings taken outside this time frame. The customer shall provide the readings as required by the utility official. The department shall charge the monthly administrative processing fee stated for this provision in the city fee schedule for participation in the submeter credit program. This fee will be deducted from the monthly credit given to the customer.

(e) The customer shall test all submeters at least once every twelve months and provide the department a certificate reporting the results of the tests. The test must include:

(1) A determination of the accuracy of the submeters, and

(2) A determination that no water is discharged into the sanitary sewers of the city except water that is measured by the blow-down submeter.

Such testing must be conducted by a technician certified to perform the testing and employed by a company approved by the utility official for such testing. It shall be the customer's responsibility to notify the department within a reasonable time in advance of the test so that the department may, if it chooses, have a witness present during such test. If test results show the percentage of accuracy is not within the accuracy tolerance specified by the manufacturer, then the customer shall repair or replace and retest the meter. The department shall bill the customer by (1) adjusting the sewer bill back to the time when the inaccuracy began, if such time is ascertainable, or (2) adjusting the sewer bill for a period extending back one-half of the time elapsed since the date of the last test of the meter.

(f) Under the submeter credit program, the department shall determine the quantity of wastewater for billing purposes by subtracting the monthly reading of the customer's submeter from the monthly reading of the city's meter. In the event the property is not supplied water by the city, the department shall deduct the submeter readings from the total water usage furnished to the property as estimated by the utility official.

(g) A customer taking water for cooling purposes under the submeter credit program must also maintain an acceptable range of cycles of concentration as indicated by the ratio of make-up water to blow-down water from the submeter readings in order to receive credit. The utility official will determine the acceptable range of system cycles of concentration based on industry standards.

(h) If the submeter readings are not within range compliance, the department shall notify the customer and allow the customer a 30-day period to make corrections. During this 30-day period, the department shall give the customer a credit based on the credit for the same period of the prior year, subject to prior year compliance as defined in subsection (g) of this section. After the 30-day correction period, the department shall not give credits to the customer until submeter readings fall within range compliance.

(i) The department shall remove any customer from the submeter credit program if such customer fails to submit submeter readings for six consecutive months or more. The customer may reapply for the program by meeting all herein specified requirements. No credits shall be given to a customer for the period during which program participation was terminated.

(j) No facility for which a submeter is installed under the provisions of this section may be connected to the sanitary sewer system of the city, unless the customer secures the written approval of the utility official for the proposed connection.

(k) The department shall have the right during regular business hours to inspect the submeters installed to measure the amount of water provided to the facility and not discharged into the city's sanitary sewer system. The department may also require submeter calibration tests to be performed at any time to ensure accuracy of the submeters.

(l) Any person who has approval from the department for a submeter credit program and who knowingly submits false information to the city for the submeter credit program or who connects his or her facilities to the city's sanitary sewer system without notifying the utility official shall be guilty of an offense. In addition, the department shall remove the customer from the submeter program for a period of one year.

(m) If a facility does not discharge into the city's sewer system but does take water from the city, all applicable rates and requirements of this chapter for water service shall apply to the customer responsible for such facility.

(Code 1968, § 49-102; Ord. No. 74-221, § 1, 2-6-74; Ord. No. 89-1048, § 14, 7-5-89; Ord. No. 90-15, § 4, 1-10-90; Ord. No. 90-635, § 153, 4-23-90; Ord. No. 07-599, § 39, 5-16-07; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 47-130. Reserved.

Editor's note—Ord. No. 07-599, § 40, adopted May 16, 2007, repealed § 47-130 in its entirety. Formerly said section pertained to engineering study to determine charge where portion of water not discharged into sewer and derived from Code 1968, § 49-103; Ord. No. 74-221, § 1, 2-6-74; Ord. No. 77-499, § 5, 3-15-77; Ord. No. 90-15, § 5, 1-10-90; Ord. No. 90-635, § 153, 5-23-90; Ord. No. 90-861, § 18, 7-11-90.

Sec. 47-131. Determination of charge where user maintains more than one source of water supply.

(a) Where a sewer system user maintains more than one source of water supply, and only one source produces sewage flow discharging into the sanitary sewer system of the city, the sewer service charge shall be determined by metering only that source of water supply. Failure of the owner or operator to install the necessary approved meter will constitute an agreement and consent by such owner or operator that the city's estimate of the total water usage, irrespective of actual discharge, will be the basis upon which the sewer charge will be based.

(b) The city's estimate of water usage may be made by whatever means and calculations the utility official determines to be fair and equitable, and which will reasonably reflect the approximate water usage of such premises.
(Code 1968, § 49-104; Ord. No. 74-221, § 1, 2-6-74; Ord. No. 90-635, § 153, 5-23-90)

Sec. 47-132. Responsibility for charges for multiple living units.

Where the city does not supply the source of water for all multiple living unit connections, the owner of the premises will be held responsible for the sewer service charge, where individual water meters are not provided for each living unit.
(Code 1968, § 49-105; Ord. No. 74-221, § 1, 2-6-74)

Sec. 47-133. No deductions for vacancies in apartments or duplex residences; removal of apartment or duplex unit from service.

No deductions will be made for vacancies in the application of the minimum sewer service charge to apartments or duplex residences in any classification. An apartment unit or duplex unit removed from such service by remodeling or abandonment will be relieved of payment of a sewer service charge, but correction of the city's records must be requested by the owner in writing or by signing the proper forms provided by the city.
(Code 1968, § 49-106; Ord. No. 74-221, § 1, 2-6-74)

Sec. 47-134. Billing.

(a) Billing for sewer service charges shall be made to the water customers of the city concurrently with the monthly or bimonthly water bills issued by the city to such customers. Those customers without water meters or with a source of water supply other than the city will be billed on those same dates. As to those persons discharging into the sewer of the city who are not water customers of the city, bimonthly bills shall be sent to them for the charges incurred during the preceding two months.

(b) All sewer bills shall be payable in full based upon the rates and schedules provided in this division. The provisions of section 47-69 of the Code shall be applicable to the date of payment and charges for late payments.
(Code 1968, § 49-107; Ord. No. 74-221, § 1, 2-6-74; Ord. No. 82-37, § 7, 1-12-82; Ord. No. 83-19, § 18, 1-11-83; Ord. No. 84-1279, § 2, 8-14-84; Ord. No. 89-51, § 2, 1-11-89; Ord. No. 06-502, §§ 5, 6, 5-17-06; Ord. No. 07-599, § 41, 5-16-07)

Sec. 47-135. Adjustment of bill.

(a) If the department makes an adjustment in customer's water bill under the provisions of this chapter, the department shall make an appropriate adjustment to the customer's sewer charge for the same period to the extent that the sewer charge is calculated using the customer's water bill.

(b) A single-family residential customer may apply for an adjustment for credit on sewer charges associated with the customer's initial filling of a newly constructed and permitted pool within six months of the day the pool passes the

city's final inspection. The department shall make applications for initial pool filling credit available on the department's website and at any city location designated by the director. The department shall apply credit to the customer's bill for sewer charges proportional to the number of gallons required to fill the pool, as documented in the city building permit, after

(1) The department receives the customer's completed application for a pool that has passed the city's final inspection; and

(2) Based on the customer's meter reading, the department determines that the customer has received city water documented on the permit in addition to the customer's normal usage.

(Code 1968, § 49-108; Ord. No. 74-221, § 1, 2-6-74; Ord. No. 2011-1086, § 3*, 12-7-2011)

***Editors note—**Ord. No. 2011-1086, adopted December 7, 2011, section 4, has been renumbered to section 3, pursuant to the adoption of Ord. No. 2011-797, Section 1-16 of this Code of Ordinances. A Memorandum of February 22, 2012, corrected the numbering of this ordinance. The users' attention is directed to the Memorandum History Table, following the Code Comparative Table.

Sec. 47-136. Discontinuance of service for failure to pay.

The city shall have the right to discontinue either or both water and sanitary sewer service to any customer discharging into the sanitary sewers of the city, who fails or refuses to make timely payment of the sewer charges for which he is billed; provided, however, in the event of a dispute as to the amount of charges made, service shall not be terminated if the customer follows procedures prescribed in section 47-70.1 of this Code and a hearing official determines that the disputed charges are incorrect.

The city shall have the right to discontinue water and sanitary sewer service to any other property owned by the customer if that customer fails to make application or fails to make timely payment of the sewer charges. The cost to restore water service after termination for nonpayment shall be the same as provided in sections 47-70(e) and 47-70(f) of this Code.

(Code 1968, § 49-109; Ord. No. 74-221, § 1, 2-6-74; Ord. No. 83-19, § 19, 1-11-83; Ord. No. 07-599, § 42, 5-16-07)

Sec. 47-137. Continued use of sewer after refusal to pay.

Any person failing or refusing to pay the charges provided for in this article, or to deposit the proper sum in the event of a dispute as to the amount of such charges, in the time and manner provided, and who continues to discharge waste from his property into the sanitary sewer systems of the city shall be guilty of an offense and upon continuance thereof shall be fined as provided in section 1-6 of this Code. Each and every day that such violation continues shall constitute a separate offense and shall be punishable as such. The conviction of a person for such an offense shall not be a bar to the institution by the city of a suit for the collection of the delinquent charges and for an injunction to enjoin such person from discharging waste into the sanitary sewer systems of the city without complying with the provisions of this division and paying the charges established hereby.

(Code 1968, § 49-110; Ord. No. 74-221, § 1, 2-6-74; Ord. No. 77-499, § 6, 3-15-77)

Sec. 47-138. Violations of article; furnishing city false information.

Any person violating any of the provisions of this article or knowingly furnishing the city with false or fraudulent information, or failing to comply with the provisions hereof, shall be guilty of an offense and, upon conviction thereof, shall be fined as provided in section 1-6 of this Code. Each and every day that such violation continues shall constitute a separate offense and be punishable as such. This penalty shall be in addition to any other remedy, penalty or sanction provided for herein.

(Code 1968, § 49-112; Ord. No. 74-221, § 1, 2-6-74)

Sec. 47-139. Charges for collection and disposal of refuse from sewage holding tanks and septic tanks in the Lake Houston vicinity.

(a) The utility official shall prescribe rules and regulations for the collection and disposal by the department of domestic sewage from any

on-site sanitary facility located in the Lake Houston vicinity. As used herein, the term "Lake Houston vicinity" includes the lake itself and all territory, which is either within 200 feet of the lakeshore or within the watershed of the lake, and the term "on-site sanitary facility" includes holding tank, aerobic, and anaerobic systems for domestic sewage treatment.

(b) The department shall charge the fee stated for this provision in the city fee schedule for each collection and disposal of up to 500 gallons of domestic sewage from any on-site facility.
(Code 1968, § 49-113; Ord. No. 83-19, § 25, 1-11-83; Ord. No. 07-599, § 43, 5-16-07; Ord. No. 07-741, § 1, 6-27-07; Ord. No. 2011-1086, §§ 4*, 5*, 12-7-2011; Ord. No. 2011-1168, § 13, 12-14-2011)

***Editors note—**Ord. No. 2011-1086, adopted December 7, 2011, sections 5 and 6, have been renumbered to sections 4 and 5, pursuant to the adoption of Ord. No. 2011-797, Section 1-16 of this Code of Ordinances. A Memorandum of February 22, 2012, corrected the numbering of this ordinance. The users' attention is directed to the Memorandum History Table, following the Code Comparative Table.

Sec. 47-140. Wholesale wastewater service rates for municipalities and conservation and reclamation districts.

(a) *Wholesale contracts.* Municipalities and conservation and reclamation districts ('municipalities') may purchase wholesale wastewater service from the city at rates established herein or as set forth in the city fee schedule for the applicable customer type, including specified per connection rates. In case of conflict between this section and a wholesale contract entered into before the effective date hereof, the provisions of the wholesale contract prevail.

(b) *Rate for municipalities that have made capital contributions and that discharge directly into a city treatment plant.* The rate established in this subsection is applicable only for wholesale wastewater services the city provides to municipalities that meet the following requirements:

(1) The municipality discharges directly into a city treatment plant;

(2) The municipality has purchased permanent treatment capacity in the city's wastewater treatment system; and

(3) The municipality has executed a contract with the city for wholesale wastewater treatment services.

The wholesale wastewater rate for municipalities meeting these criteria is stated for this provision in the city fee schedule, per 1,000 gallons for municipalities without a collection system. If the contract does not require that charges be based on metered quantities, monthly quantities (in 1,000 gallon units) shall be determined by the formula:

$$0.250 \times A \times B$$

Where:

A = The number of calendar days in the particular month; and

B = The number of residential equivalent units connected to the municipality's collection system. (Conversion factors for residential equivalent units are provided in the wholesale wastewater service contracts.)

(c) *Rate for municipalities that have made capital contributions and that discharge into the city wastewater collection system.* The rate established in this subsection is applicable only for wholesale wastewater services the city provides to municipalities that meet the following requirements:

(1) The municipality discharges directly into the city wastewater collection system;

(2) The municipality has purchased permanent sewage treatment capacity in the city's wastewater treatment system; and

(3) The municipality has executed a contract with the city for wholesale wastewater treatment services.

The wholesale wastewater rate for municipalities meeting these criteria is stated for this provision in the city fee schedule, per 1,000 gallons for municipalities with a capital contribution. If the contract does not require

that charges be based on metered quantities, monthly quantities (in 1,000 gallon units) shall be determined by the formula:

$$0.250 \times A \times B$$

Where:

A = the number of calendar days in the particular month; and

B = the number of residential equivalent units connected to the municipality's collection system. (Conversion factors for residential equivalent units are provided in the wholesale wastewater service contracts.)

(d) *Rate for other municipalities.* The wholesale rate for wastewater service for municipalities not eligible for the rate specified in any other subsection of this section shall be the rate per 1,000 gallons stated for this provision in the city fee schedule.
(Ord. No. 84-1257, § 1, 8-14-84; Ord. No. 85-1094, § 5, 7-2-85; Ord. No. 86-1664, § 5, 9-17-86; Ord. No. 87-494, § 5, 4-14-87; Ord. No. 88-1194, § 10, 7-6-88; Ord. No. 89-1048, § 10, 7-5-89; Ord. No. 90-861, § 19, 7-11-90; Ord. No. 93-314, § 17, 3-24-93; Ord. No. 01-637, § 1, 7-3-01; Ord. No. 04-297, § 9, 4-21-04; Ord. No. 04-299, § 5.2, 4-21-04; Ord. No. 09-206, § 9, 3-11-09, eff. 4-1-09; Ord. No. 2010-305, § 7, 4-21-2010, eff. 6-1-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2021-515, § 3(Exh. B), 6-23-2021, eff. 7-1-2021)

Sec. 47-141. Established user charges.

(a) The user charges established herein shall be in lieu of any other city sanitary sewer service charges.

(b) The user charges are to provide for the reimbursement of costs to the city and the control necessary by the city to provide treatment for those wastes of quantity and strength produced by industrial processes, including wastes of characteristics difficult to treat for final disposal, but economically amenable to the city system when pretreated or accepted without pretreatment.

(c) These user charges are not in lieu of any sanitary sewer connection charges and/or industrial cost recovery charges established by this or any other city ordinance.

(d) All user charges established herein shall be an obligation of the permittee as a condition of keeping his permit valid.
(Code 1968, § 49-159; Ord. No. 74-222, § 1, 2-6-74; Ord. No. 92-1309, § 1, 9-30-92)

Sec. 47-142. City's allocated unit costs.

(a) The following items shall be used to compute allocated unit costs but shall not be deemed to be exclusive of other pertinent factors:

(1) The total proposed sewer division budget for the current year will be used as a basis for figuring operation and maintenance expenditures plus the following:

a. An appropriate percentage for old age benefits and pension payments based on salaries.

b. Vehicular replacements based on an appropriate replacement plan.

c. An approved percentage for indirect costs to other departments based on the proposed sewer division budget for the current year.

d. An appropriate percentage of the actual water/sewer billing costs.

e. The annual debt service for retirement of sanitary sewer bonds.

(2) The city's allocated unit costs will be computed annually for processing each of the following operational-functions of the system: Volume of flow, removal of BOD, removal of suspended solids, removal of ammonia.

(b) The allocated unit costs shall be evaluated annually to examine increases or decreases in operation and maintenance costs and annual debt service.
(Code 1968, § 49-160; Ord. No. 74-222, § 1, 2-6-74; Ord. No. 77-499, § 16, 3-15-77; Ord. No. 92-1309, § 1, 9-30-92; Ord. No. 2021-515, § 3(Exh. B), 6-23-2021, eff. 7-1-2021)

Sec. 47-143. Computation of user charge.

(a) The user charges to be determined to each establishment that produces industrial waste shall be computed by use of the following formula:

UC = BC + Q × R

Formula values are as follows:

UC = User charge (in dollars).

BC = Basic Service Charge defined in 47-122(b)(2)(a) (in dollars)

Q = Billable quantity of wastewater in thousand gallon units

R = [X + (BOD × 8.337 × Y/1000) + (SS × 8.337 × Z/1000) + (NH3 x 8.337 x W/1000)] per thousand gallons OR the rate per thousand gallons specified in section 47-122(b)(2)b, whichever is greater

W = The fee stated for this provision in the city fee schedule, per pound of NH3

X = The fee stated for this provision in the city fee schedule, per thousand gallons

Y = The fee stated for this provision in the city fee schedule, per pound of BOD

Z = The fee stated for this provision in the city fee schedule, per pound of SS

BOD = Biochemical Oxygen Demand in milligrams per liter based on the results of a five-day analytical test for BOD at 20 degrees Centigrade

SS = Suspended solid content of the waste delivered, measured in milligrams per liter

NH3 = Ammonia nitrogen (ammonia) content of the waste delivered, measured in milligrams per liter

(b) When an industry produces both domestic and process waste with one connection to the sewer system, the waste so delivered shall be considered as industrial waste with uniform rate; or by user charge computations, in compliance with the above, based on the combined volume, BOD, suspended solids, and ammonia content.

(c) A permittee may reduce his user charge rate by obtaining greater removals in pretreatment or plant operation procedure, but once the pretreatment or plant procedure is established to obtain uniform or lower rate, written consent from the director to increase the delivered strength shall be required, and charges for a higher rate based on tests by the city may be made without other notice to the industry.

(d) Establishments that produce industrial waste shall be billed monthly or bimonthly for industrial waste disposal, according to the established procedures.

(e) During periods while the city is sampling the content of the industrial waste discharge or attempting to obtain information from the industrial user regarding the quality of water the industrial user is discharging to the city system, the industrial user shall not alter its discharge practices, increase the use of process water, dilute or attempt to dilute its industrial waste discharge or otherwise alter the quality and content of the discharge in a manner which reduces the industrial waste surcharge or attempts to achieve compliance with discharge limitations. The city will exclude the results of samples that may have been impacted by dilution from the averages used for establishment of the user charge.

(Code 1968, § 49-161; Ord. No. 74-222, § 1, 2-6-74; Ord. No. 77-499, §§ 17, 18, 3-15-77; Ord. No. 82-37, §§ 3—5, 1-12-82; Ord. No. 83-1138, §§ 3, 4, 7-26-83; Ord. No. 85-1094, §§ 3, 4, 7-2-85; Ord. No. 86-1664, §§ 3, 4, 9-17-86; Ord. No. 87-494, §§ 3, 4, 4-14-87; Ord. No. 87-1906, §§ 3, 4, 11-10-87; Ord. No. 88-1194, §§ 11, 12, 7-6-88; Ord. No. 89-1048, §§ 11, 12, 7-5-89; Ord. No. 90-861, §§ 20, 21, 7-11-90; Ord. No. 92-113, § 12, 2-5-92; Ord. No. 92-1309, § 1, 9-30-92; Ord. No. 93-314, § 18, 3-24-93; Ord. No. 04-297, § 10, 4-21-04; Ord. No. 04-299, § 5.2, 4-21-04; Ord. No. 09-206, § 10, 3-11-09, eff. 4-1-09; Ord. No. 2010-305, § 8, 4-21-2010, eff. 6-1-2010; Ord. No. 2011-1086, § 6*, 12-7-2011; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2021-515, § 3(Exh. B), 6-23-2021, eff. 7-1-2021)

***Editors note—**Ord. No. 2011-1086, adopted December 7, 2011, section 7, has been renumbered to section 6, pursuant to the adoption of Ord. No. 2011-797, Section 1-16 of this

Code of Ordinances. A Memorandum of February 22, 2012, corrected the numbering of this ordinance. The users' attention is directed to the Memorandum History Table, following the Code Comparative Table.

Sec. 47-144. User charges with installed water meters.

(a) For producers with installed water meters, the charges established herein shall become effective from and after each producer's first regular meter reading date after the issuance of the industrial waste permit. Producers who are required under the provisions of this article to install water meters for the purpose of determining the charges established by this article shall have 30 days from the date of issuance of the industrial waste permit to install such meters as are required herein, and the installation will be at the producer's expense. Such meters will be of a type and standard and in a location approved by the utility official.

(b) Any person required to install a water meter under the provisions hereof and who fails or refuses to do so in the time and manner required shall be charged as provided herein based on water usage estimated by the utility official.
(Code 1968, § 49-162; Ord. No. 74-222, § 1, 2-6-74; Ord. No. 90-635, § 153, 5-23-90; Ord. No. 92-1309, § 1, 9-30-92)

Sec. 47-145. Industrial waste program charge.

In addition to the charges set out above, each industrial waste customer with an industrial waste discharge permit must pay a monthly industrial waste program charge in the amount set out in the city fee schedule. The industrial waste program charge funds the city's management of the industrial waste program.
(Ord. No. 2021-515, § 3(Exh. B), 6-23-2021, eff. 7-1-2021)

Secs. 47-146—47-160. Reserved.

ARTICLE IV. DEVELOPMENT AND UTILITY SYSTEM EXTENSIONS*

Sec. 47-161. Definitions.

As used in this article, the following terms shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

Construction cost means the full cost for materials and labor for construction of main, excluding the cost for surveys, easements and engineering and inspection services.

Developer means the owner or agent of the owner developing lots or tracts of property for further sale, lease, development or redevelopment for residential, commercial or industrial use.

Developer contract means a contract between a developer and the city for construction of main pursuant to section 47-164 of this Code.

Main, unless otherwise designated, includes water, wastewater and storm sewer main and includes off-site main.

Nonrevenue producing water main means water main supplying fire sprinkling systems and other water services for which the city receives no water revenue.

Off-site main means water, wastewater and storm sewer main lying outside the tract of land that is developed or redeveloped.

Permittee means a person granted a permit to construct main pursuant to section 47-165 of this Code.

Pro-rata charges means the charges established by city council for connection to off-site main as may be established under section 47-168 of this Code.

Public easement means an easement or right-of-way dedicated to the city or to the public, either by a recorded plat or recorded

*__Editor's note—__Ord. No. 96-1248, § 1, adopted Nov. 26, 1996, did not specifically repeal former art. IV, §§ 47-161—47-171; hence, the provisions of said ordinance have been treated as superseding the provisions of former art. IV.

instrument of conveyance, or acquired by condemnation, within which main may be constructed, maintained and operated.

Subdivision means a tract or parcel of land subdivided into lots or tracts by a subdivision or development plat and to be sold or leased for residential, commercial or industrial purposes.

Utility construction permit or *permit* means a permit issued pursuant to section 47-165 of this Code allowing the developer to construct main.

(Ord. No. 96-1248, § 1, 11-26-96; Ord. No. 05-992, § 2, 8-24-05)

Sec. 47-162. Construction by the city; cost sharing agreements between city and developer.

The department shall install main under the provisions hereof only in public easements. The department shall construct main for the unserved areas of the city as required by state law and may construct other main identified in the city's capital improvements plan, except as otherwise required by city council.

Subject to the availability of city funds for capital improvements as determined by city council, a developer has the option of having the city construct the necessary main for the proposed development pursuant to a cost-sharing contract approved by the city council. Under any such contract, the developer must provide the engineering design and pay one-half of the construction cost. The city will pay one-half the cost of construction and provide construction inspection services. In addition, the city will pay the entire cost of oversizing the main if required by the department.

In the event the developer is required under the contract to pay the city $5,000.00 or more, the developer cost shall be subject to pro-rata reimbursement as provided in sections 47-162 through 47-170.

(Ord. No. 96-1248, § 1, 11-26-96; Ord. No. 00-171, § 1, 3-8-00)

Sec. 47-163. Developer construction—In general.

Except for main constructed by the city under section 47-162 of this Code, all main dedicated to the city for public use must be constructed by the developer as required by this article. As a condition for acceptance by the city, main must be constructed in accordance with the following requirements:

(1) The developer must obtain water or wastewater capacity sufficient to serve its development as provided in articles IX and X of this chapter.

(2) An engineer registered in the state must design main. The design of main must conform to the design standards promulgated by the director. All main must be constructed in public easements, and the minimum diameter size for off-site main shall be eight inches, unless otherwise permitted by the department. Plans and profiles shall be approved by the department prior to commencement of construction.

(3) The developer must obtain all required subdivision or development plat approvals required under this Code.

(4) Construction of main estimated by the department to cost more than $25,000.00 must be guaranteed by payment and performance bonds in the form approved by the legal department. Bonds must be in the amount of the construction contract, and the city shall be an obligee for the performance bonds. The performance bond must guarantee materials and workmanship, including surface restoration, for a period of one year after acceptance by the department on behalf of the city.

(5) The developer must provide the department original record drawings in the form prescribed by the director.

(6) The department must inspect and approve the construction when completed.

(Ord. No. 96-1248, § 1, 11-26-96; Ord. No. 00-171, § 2, 3-8-00; Ord. No. 05-992, § 3, 8-24-05)

Sec. 47-164. Construction by developers under developer contract.

Subject to the availability of funds allocated for that purpose by city council, the city may share in the expense of construction of the main and other eligible costs by any of the following methods, as applicable, at the option of the developer:

(1) *50 percent reimbursement:* Reimbursement to the developer is the sum of 50 percent of the construction cost for water and wastewater main, the balance of oversizing costs, plus design costs for a total reimbursement that does not exceed the maximum contract amount not requiring council approval under the Houston City Charter; or

(2) *30 percent reimbursement:* Reimbursement to the developer for 30 percent of the construction cost for water and wastewater main plus the balance of oversizing costs; or

(3) *70 percent reimbursement:*

a. For new low or moderate cost single family homes sold to home owners by fee simple deed (single family residences located within the city limits having initial purchase prices as certified by the developer that do not exceed the latest available 12-month listing for median price single family housing in the city as published by the Real Estate Center at Texas A&M University), reimbursement to the developer for the following eligible costs:

(i) 70 percent of water and wastewater main construction costs plus the costs of inspection and construction management,

(ii) 100 percent of related design cost,

(iii) All oversizing costs not reimbursed under provision (i) above,

(iv) Up to a $3,000.00 per lot reimbursement of storm sewer drainage cost, and

(v) The developer's interest cost up to the market interest rate the city's financial advisor determines the city would pay if it issued bonds on the city's water and sewer system on the date the developer contract is countersigned by the city controller.

b. For all other new single-family homes sold to home owners by fee simple deed, reimbursement to the developer for the following eligible costs:

(i) 70 percent of water and sanitary sewer main construction costs,

(ii) 100 percent of related design costs,

(iii) All oversizing construction costs not reimbursed under provision (i) above, and

(iv) The developer's interest cost up to the market interest rate the city's financial advisor determines the city would pay if it issued bonds on the city's water and sewer system on the date the developer contract is countersigned by the city controller.

Reimbursement under this item is not available for off-site main. In addition, the developer must give notice to the department of the commencement of construction of the project and award the construction contract in a manner consistent with the procedures of Chapter 252 of the Texas Local Government Code.

The city shall reimburse the developer for eligible costs upon the completion of at least 25 percent of the total number of housing units required under the terms of the developer contract.

(4) a. A developer shall not be reimbursed for any eligible costs, including interest, and shall waive any right to claim such reimbursement if the developer fails to:

(i) Obtain a fully executed developer contract prior to beginning construction of the facilities;

(ii) Begin actual construction of the facilities described in the developer contract within 18 months after the date of countersignature of the developer contract by the city controller; or

(iii) Complete construction of 100 percent of the facilities described in the developer contract (and 25 percent of the number of housing units required by a 70 percent developer reimbursement contract) within three years of the date the developer commences construction.

b. The director may extend the contract term, including the time limits set out in subitems a(ii) and (iii) of this item (4) if the developer can show good cause for its delay. The director may extend the developer participation contract term, including the time limits set out in subitems a(ii) and (iii) of this item (4) for a period of three years ("initial extension") for the following reasons:

(i) Serious illness or death of developer or developer's immediate family.

(ii) Local, state, or federally recognized housing sales slowdown caused by economic conditions, such as a depression or recession that affects housing sales in the Houston metropolitan area.

Thereafter, the director may authorize one subsequent extension for up to one more year if, in the director's reasonable judgment, the economic conditions described in subitem b(ii) of this item (4) continue to exist, and the developer has completed construction of the project and at least 25 percent of the housing units, but has been unable to sell the housing units according to subsection 3(a) above. Provided however, the total contract term extension shall not exceed four years, unless approved by city council.

c. In no case shall the city's total combined payments under the original developer participation contract and the development assistance contract exceed the total amount set out in the original developer participation contract. In no case shall the city pay for anything under the development assistance contract that it has already paid for under the original developer participation contract. Funds appropriated for a development assistance contract shall not exceed the remaining funds under the original developer participation contract for the same development.

d. In no case shall the city reimburse the contractor for an amount in excess of the amount set out in the developer contract, which must not ever exceed $1,000,000.00 per contract.

(5) Contingent upon city council's having appropriated sufficient funds to pay for such contracts, the city council delegates to the director the authority to approve and execute the following, using standard forms approved by city council:

a. Developer participation contracts, and

b. Development assistance contracts with a successor developer for a project described in an original developer participation contract upon which the original developer has defaulted, or with the original developer when its default on the original developer participation contract is solely due to its failure to meet the construction or home sales deadlines set out herein.

When a developer participation contract application or a request for extension thereto or a development assistance contract application is administratively complete, but at least ten days prior to approval by director, the department shall provide the members of the city council notice of the scope and location of the proposed project as well as contact information for the developer.

(6) The department shall charge each developer requesting a developer contract application fees stated for this provision in the city fee schedule. Provided, however, the department shall refund the application fee if the developer has submitted a complete application as required by the department and funds are not available

within 30 days of the developer's application. No refund shall be given for any other reason.

These application fees shall be adjusted by the department each year effective on the first of April. The adjustment shall be based on the percentage change in the U.S. Consumer Price Index for all Urban Consumers for the Houston-Galveston-Brazoria Texas Metropolitan Area rounded up to the next ten dollar increment.

(7) In the event construction costs not reimbursed by the city are $5,000.00 or more, such unreimbursed cost shall be subject to pro-rata reimbursement as provided in sections 47-168 through 47-170.

(8) In the case of construction of water main, the department shall be responsible for chlorination required by state law prior to use by the city.

(9) Except as provided in subsection (5) above, in the event a developer defaults under a developer participation or assistance contract, the developer shall be barred from any additional developer contract for a period of a year following the default.

(Ord. No. 96-1248, § 1, 11-26-96; Ord. No. 00-171, § 3, 3-8-00; 01-76, § 1, 1-17-01; Ord. No. 05-992, § 4, 8-24-05; Ord. No. 08-307, § 2, 4-9-08; Ord. No. 08-741, § 2, 8-20-08; Ord. No. 2010-184, §§ 2—5, 3-3-2010; Ord. No. 2010-760, §§ 2, 3, 9-29-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 47-165. Construction by developers under permit.

(a) No developer may construct main unless the developer secures a permit issued by the department. In the event there are not sufficient funds allocated or materials available for execution of the developer contract, or the developer chooses not to execute a developer contract, the developer may proceed to construct the main under a permit issued by the department.

(b) The department shall promulgate a permit application form. The permit application shall include the following items:

(1) The name and address of the developer;

(2) The location of main;

(3) A copy of the approved subdivision or development plat showing the proposed development;

(4) Evidence that the developer has obtained sufficient water and wastewater capacity for its development;

(5) Evidence of ownership of the proposed development;

(6) An original copy of the plans and specifications prepared by an engineer registered in the state (if not already approved when the subdivision or development plat was approved by the department); and

(7) Any additional information as may be required by the department to determine compliance under this article.

(c) Upon submittal of a complete application (including plans and specifications already approved by the department), valid performance and payment bonds as required under section 47-163 of this Code, and evidence that the developer has obtained required water and wastewater capacity for the development, the director shall grant the permit.

(Ord. No. 96-1248, § 1, 11-26-96; Ord. No. 05-992, § 5, 8-24-05)

Sec. 47-166. Requirements for construction under permit.

A developer constructing main under a utility construction permit must comply with each requirement described in section 47-163 of this Code, including the furnishing of performance and payment bonds executed by the contractor and its surety in the full amount of the construction contract.

(Ord. No. 96-1248, § 1, 11-26-96)

Sec. 47-167. Management and control.

All main constructed under a permit shall, upon acceptance by the city, be managed, controlled and regulated by the city, and connections therewith shall be governed and regulated in the same manner as connections with any city utility lines, except that for off-site main constructed

under a permit the right is hereby reserved to the permittee to receive, for private service connections, the compensation fixed by the city council under section 47-168 of this Code. It is distinctly understood that such main shall be placed so as not to interfere with the construction in the streets of the city of any other underground pipes, ducts, conduits or other structures laid on the part of the city, and the city shall have the right to take the same up, or disconnect, or destroy or abandon the same when in the best interest of the city in the discretion of the director; and the city shall be in no wise responsible for any cost or damage on account thereof. The city shall have the right to lay any main down the streets where permittee-constructed main runs even though it may render such main useless without being in any manner required to compensate the permittee. It is intended by these provisions merely to furnish to the permittee a means of reimbursing himself from other private persons similarly situated under the rules and regulations that may be established by the city council, and not in any manner to obligate the city to pay or cause to be paid any sum of money on account thereof or to vest in any persons constructing such main any private right against the city or the public use.
(Ord. No. 96-1248, § 1, 11-26-96)

Sec. 47-168. Statement of costs; pro-rata charges.

If the construction cost of the main not paid or reimbursed by the city is $5,000.00 or more, the permittee or developer may apply to the department for pro-rata reimbursement of its costs by each successive person who connects to the off-site main built by the permittee or developer. Within 90 days of the date the main is accepted and approved by the department, the permittee or developer must file with the department: (i) an accurate and verified statement showing the cost of such construction; and (ii) all documents and certificates required under section 47-163 of this Code. Upon determination that the documents are complete and in proper form, the director shall forward them to the city secretary for consideration by city council together with the director's recommendation. When documents have been filed with the city secretary, the city council will, as soon thereafter as practicable, determine and fix the amount that shall be paid per lot, per connection, or per acre by each successive person making a service connection with the off-site main. The schedule of such amount shall be filed in the office of the director, and no person shall be allowed to make service connections with such off-site main for a period of 15 years after city acceptance of the main, unless the person deposits with the department, for the use and benefit of the permittee or developer, the amount required under the schedule approved by city council.

No permittee or developer shall be entitled to pro-rata reimbursement on account of extensions made by others to main previously constructed by such permittee or developer.
(Ord. No. 96-1248, § 1, 11-26-96; Ord. No. 00-171, § 4, 3-8-00)

Sec. 47-169. Pro-rata fee account.

A pro-rata fee account is hereby established. The city shall deposit all pro-rata charges collected into such account. Expenditures from such account shall be reserved solely for reimbursement of permittees for the reasonable costs of installing off-site main as approved by city council pursuant to section 47-168 of this Code.
(Ord. No. 96-1248, § 1, 11-26-96)

Sec. 47-170. Reimbursement for construction of approved main.

For a period of 15 years after acceptance by the department of the completed off-site main, the permittee shall be entitled to reimbursement for connections from the proceeds of the pro-rata charges established herein. Payment shall be from the pro-rata fee account. The city shall make reimbursements for main extensions semi-annually on May 1 and November 1 of each calendar year. Following expiration of the 15 year period, the city shall cease to collect pro-rata charges for the off-site main.
(Ord. No. 96-1248, § 1, 11-26-96)

Sec. 47-171. Violations.

Any person who shall lay or connect into main without a utility construction permit or contract from the city shall be guilty of a misdemeanor,

which shall be punishable by a fine not to exceed $500.00. Each day that the connection is suffered or allowed to exist shall constitute a separate offense. In addition, the department shall discon nect any such unpermitted connection from the city main or otherwise terminate utility services. (Ord. No. 96-1248, § 1, 11-26-96)

Secs. 47-172—47-185. Reserved.

ARTICLE V. INDUSTRIAL WASTEWATER*

Sec. 47-186. Purpose and policy.

(a) This article sets forth uniform requirements for users of the wastewater system, to enable the city of Houston to comply with all applicable state and federal laws, including the Federal Water Pollution Control Act, as amended by the Clean Water Act, as amended (33 USC §§ 1251 et seq.) and the general pretreatment regulations (Title 40, Code of Federal Regulations, Part 403). The purposes and objectives of this article are:

(1) to prevent the introduction of pollutants into the wastewater system that will interfere with its operation;

(2) to prevent the introduction of pollutants into the wastewater system that will pass, inadequately treated, through the wastewater system and into receiving waters, or that will otherwise be incompatible with the wastewater system;

(3) to protect the health and safety of both the wastewater system's personnel and the general public;

(4) to promote the reuse and recycling of industrial wastewater and sludge within the wastewater system;

(5) to provide for wastewater contracts between the city and other municipalities or extra-jurisdictional users who discharge to the wastewater system; and

(6) to enable the city to comply with its Texas Pollutant Discharge Elimination System permit conditions, sludge use and disposal requirements, and any other federal or state laws to which the wastewater system is subject.

(b) Incorporation of EPA or TCEQ standards. All categorical pretreatment standards, sewage pretreatment rules, lists of toxic pollutants, industrial categories, and other applicable standards, laws, rules, and regulations promulgated by the EPA or TCEQ, including all future amendments of those standards, laws, rules, and regulations, are incorporated into this article.
(Ord. No. 2020-1024, § 2(Exh. A), 12-2-2020)

Sec. 47-187. General provisions.

(a) *[Generally.]* This article shall apply to all users of the publicly owned treatment works (POTW). This article authorizes the issuance of individual and general wastewater discharge permits; provides for monitoring, compliance, and enforcement activities; establishes administrative review procedures; requires user reporting; and provides for the setting of fees for the equitable distribution of costs resulting from the program established herein.

The discharge of industrial waste to the sanitary sewer system shall be done in strict conformance to this article and this article shall be construed to strictly prohibit the unauthorized discharge of any wastewater stream to the sanitary sewer system, and to grant all powers the control authority needs to fulfill the purposes and objectives of this article, the Clean Water Act (33 U.S.C. § 1251 et seq.), and the General Pretreatment Regulations (Title 40 of the Code of Federal Regulations [C.F.R.] Part 403), including disconnecting wastewater services.

(b) *Administration.* Except as otherwise provided herein, the director shall administer, implement, and enforce the provisions of this article. Any powers granted to or duties imposed upon the director may be delegated by the director to a city employee.

*__Editor's note—__Ord. No. 2020-1024, § 2(Exh. A), adopted December 2, 2020, amended Ch. 47, Article V, in its entirety to read as herein set out. Former Article V was entitled Disposal of Industrial Wastes Through City Sewer System and derived from Code 1968, §§ 49-145-49—49-167 and subsequent amendatory ordinances. See the Code Comparative Table for a complete derivation.

The director shall be authorized to act for the city as control authority of the POTW. The city shall have the legal authority to enforce any and all pretreatment standards as well as pretreatment requirements specified by regulations promulgated by the EPA, including but not limited to the powers enumerated in 40 C.F.R. § 403.8(f)(1), as amended, and same are hereby incorporated herein by this reference. Any industrial user that is subject to pretreatment standards shall file with the director such reports as may be required by pretreatment standards or requirements promulgated by the EPA or the TCEQ. In case of any conflict between a pretreatment standard or requirement promulgated by the EPA or the TCEQ and any standard or requirement imposed elsewhere by this article, the standard or requirement that is more protective of human health and the environment shall apply.

(c) *Abbreviations.* The following abbreviations, when used in this article and in permits issued or agreements entered into pursuant to this article, shall have the designated meanings:

BOD	—	Biochemical oxygen demand.
BMP	—	Best management practice.
BMR	—	Baseline monitoring report.
C.F.R.	—	Code of Federal Regulations.
CIU	—	Categorical industrial user.
COD	—	Chemical oxygen demand.
EPA	—	U.S. Environmental Protection Agency.
IU	—	Industrial user.
mg/L	—	Milligrams per liter.
POTW	—	Publicly owned treatment works.
RCRA	—	Resource Conservation and Recovery Act, 42 U.S.C. § 6922, et seq., and its implementing regulations.
SIU	—	Significant industrial user.
SNC	—	Significant non-compliance.
TBLL	—	Technically based local limit.
TCEQ	—	Texas Commission on Environmental Quality or its successor agency.
TexTox	—	Texas Toxicity Modeling Program.
TPDES	—	Texas Pollutant Discharge Elimination System.
TSS	—	Total suspended solids.
TTO	—	Total toxic organics.
U.S.C.	—	United States Code.

(d) *Definitions.* Unless a provision explicitly states otherwise, the following terms and phrases, as used in this article and in permits issued or agreements entered into pursuant to this article, shall have the meanings hereinafter designated.

Act or *the Act.* The Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 U.S.C. § 1251 et seq.

Approval authority. The State of Texas and the TCEQ.

Authorized or *duly authorized representative of the user.*

(1) If the user is a corporation:

a. The president, secretary, treasurer, or a vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation; or

b. The manager of one or more manufacturing, production, or operating facilities, provided the manager is authorized to make management decisions that govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recom-

mendations, and initiating and directing other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for individual or general wastewater discharge permit requirements; and has been assigned or delegated authority to sign documents in accordance with corporate procedures.

(2) If the user is a partnership, limited liability company, or sole proprietorship: a general partner, limited liability company individual member, or proprietor, respectively.

(3) If the user is a federal, state, or local governmental facility: a director or highest official appointed or designated to oversee the operation and performance of the activities of the government facility, or their designee.

(4) The individuals described in items (1) through (3) of this definition, may designate a duly authorized representative if the authorization is in writing, the authorization specifies the individual or position responsible for the overall operation of the facility from which the discharge originates or having overall responsibility for environmental matters for the company, and the written authorization is submitted to the director.

Best management practices or *BMPs* means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the general and specific prohibitions listed in section 47-188(a) of this article and 40 C.F.R. § 403.5(a)(1) and (b). BMPs include, but are not limited to, treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw material storage. BMPs shall be considered local limits and pretreatment standards for the purposes and objectives of this article and Section 307(d) of the Act.

Biochemical oxygen demand or *BOD.* The quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedures for five days at a temperature of 20° Celsius ("C"), usually expressed as a concentration (e.g., mg/L).

Categorical pretreatment standard or *categorical standard.* Any regulation containing pollutant discharge limits promulgated by the EPA in accordance with sections 307(b) and (c) of the Act (33 U.S.C. § 1317) that apply to a specific category of users and that appear in 40 C.F.R. § Chapter I, Subchapter N, Parts 405-471.

Categorical industrial user. An industrial user subject to a categorical pretreatment standard or categorical standard, excluding dental dischargers subject to 40 C.F.R. Part 441.

Chemical oxygen demand or *COD.* A measure of the oxygen required to oxidize all compounds, both organic and inorganic, in water.

City. The City of Houston in the State of Texas.

Composite sample. A representative flow- or time-proportioned sample generally collected within a 24-hour period or the operating day of the user and combined according to flow or time, respectively.

Control authority. The City of Houston.

Control manhole. A manhole located outside the property of a user which receives wastewater discharged by a user where that wastewater can be sampled by the city prior to combination with wastewater from other sources.

Daily maximum. The arithmetic average of all effluent samples for a pollutant collected during a 24-hour period.

Daily maximum limit. The maximum allowable discharge limit of a pollutant during a

24-hour period. Where a daily maximum limit is expressed in units of mass, the daily discharge is the total mass discharged over the course of the sampling period. Where a daily maximum limit is expressed in terms of a concentration, the daily discharge is the arithmetic average measurement of the pollutant concentration derived from all measurements taken during that 24-hour period. If only one measurement is taken during the 24-hour period, that measurement is the daily discharge.

Dental discharger. A source of wastewater to a POTW from a facility where the practice of dentistry is performed as described in 40 C.F.R. Part 441.

Department. Houston Public Works.

Director. The Director of Houston Public Works or the director's authorized representative.

Domestic wastewater. Wastewater that does not contain industrial waste.

Environmental Protection Agency or *EPA.* The U.S. Environmental Protection Agency or, where appropriate, the Regional Water Management Division Director, the Regional Administrator, or other duly authorized official of said agency.

Establishment, plant. Any establishment or plant producing industrial waste that is discharged into the sewer system.

Existing source. Any source of discharge that is not a new source.

Facility. A place, building, or equipment used for a particular purpose or activity. When used in reference to an industrial user, it means all equipment, buildings, and operations contained within the property boundary of the source of an indirect discharge.

General permit. A general permit is an authorization to discharge that covers a group of dischargers with similar qualities. The director may issue a general permit to a category of users if the discharges of a group of users meets any one or more of the following conditions:

a. Involve the same or substantially similar types of operations;

b. Discharge the same types of wastes;

c. Require the same effluent limitations; or

d. Require the same or similar monitoring."

Grab sample. A sample that is taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Indirect discharge or *discharge.* The introduction of pollutants into the POTW from any non-domestic source.

Industrial waste. Any waterborne solid, liquid or gaseous waste resulting from any production, industrial, manufacturing, service, or food processing operation or from the development, recovery, or processing of any natural resource including waste that is required to be pretreated by this article or the city's *Plumbing Code.* Included in this definition is any wastewater stream subject to pretreatment standards or requirements at 40 C.F.R. Parts 405—471.

Instantaneous limit. The maximum concentration of a pollutant allowed to be discharged at any time, determined from the analysis of any discrete or composited sample collected, independent of the industrial flow rate and the duration of the sampling event.

Interference. A discharge that, alone or in conjunction with a discharge or discharges from other sources, both (1) inhibits or disrupts the POTW, its treatment processes or operations, or its sludge processes, use or disposal; and (2) is a cause of a violation of the city's TPDES permit (including an increase in the magnitude or duration of a violation) or of the prevention of sewage sludge use or disposal in compliance with any of the following statutory/regulatory provisions or permits issued thereunder, or any more stringent state or local regulations: Section 405 of the Act; the

Solid Waste Disposal Act, including Title II commonly referred to as the Resource Conservation and Recovery Act (RCRA); any state regulations contained in any state sludge management plan prepared pursuant to Subtitle D of the Solid Waste Disposal Act; the Clean Air Act; the Toxic Substances Control Act; and the Marine Protection, Research, and Sanctuaries Act.

Local limit. Specific discharge limits developed and enforced by the city upon industrial or commercial facilities to implement the general and specific discharge prohibitions listed in 40 C.F.R. § 403.5(a)(1) and (b).

Medical waste. Isolation wastes, infectious agents, human blood and blood products, pathological wastes, sharps, body parts, contaminated bedding, surgical wastes, potentially contaminated laboratory wastes, and dialysis wastes.

Monthly average. The sum of all "daily discharges" measured during a calendar month divided by the number of "daily discharges" measured during that month.

Monthly average limit or *standard.* The highest allowable average of "daily discharges" over a calendar month, calculated as the sum of all "daily discharges" measured during a calendar month divided by the number of "daily discharges" measured during that month.

New source.

(1) Any building, structure, facility, or installation from which there is (or may be) a discharge of pollutants, the construction of which commenced after the publication of proposed pretreatment standards under section 307(c) of the Act that is applicable to such source if such standards are thereafter promulgated in accordance with that section, provided that:

a. The building, structure, facility, or installation is constructed at a site at which no other source is located; or

b. The building, structure, facility, or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source; or

c. The production or wastewater generating processes of the building, structure, facility, or installation are substantially independent of an existing source at the same site. In determining whether these sources are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source, will be considered.

(2) Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility, or installation meeting the criteria of item 1a or 1b above but otherwise alters, replaces, or adds to existing process or production equipment.

(3) Construction of a new source as defined under this paragraph has commenced if the owner or operator has:

a. Begun, or caused to begin, as part of a continuous onsite construction program:

1. Any placement, assembly, or installation of facilities or equipment; or

2. Significant site preparation work including clearing, excavation, or removal of existing buildings, structures, or facilities which is necessary for the

placement, assembly, or installation of new source facilities or equipment; or

b. Entered into a binding contractual obligation for the purchase of facilities or equipment which are intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this definition.

Noncontact cooling water. Water used for cooling that does not come into direct contact with any raw material, intermediate product, waste product, or finished product.

Pass through. A discharge which exits the POTW into waters of the United States in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the city's TPDES permit or a TexTox Limit, including an increase in the magnitude or duration of a violation.

Permit. A written document issued by the director which, by its conditions, may authorize the permittee to construct, install, modify, or operate in accordance with stated limitations a specified facility for industrial waste discharge to the POTW.

Permittee, permit holder. Any person who owns, operates, possesses or controls an establishment, plant, or property being operated in accordance with a valid individual or general permit.

Person. Any individual, partnership, copartnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity, or any other legal entity; or their legal representatives, agents, or assigns. This definition includes all federal, state, and local governmental entities.

pH. A measure of the acidity or alkalinity of a solution, expressed in standard units.

Pollutant. Dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, septic waste, sewage sludge, munitions, medical wastes, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt, municipal, agricultural and industrial wastes, and certain characteristics of wastewater (e.g., pH, temperature, TSS, turbidity, color, BOD, COD, toxicity, or odor).

Pretreatment. The reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater prior to, or in lieu of, introducing such pollutants into the POTW. This reduction or alteration can be obtained by physical, chemical, or biological processes; by process changes; or by other means, except as prohibited by 40 C.F.R. § 403.6(d).

Pretreatment facility. Any device, structure or method that will remove specified pollutants from the wastewater prior to its discharge into the POTW.

Pretreatment requirements. Any substantive or procedural requirement related to pretreatment imposed on a user, other than a pretreatment standard.

Pretreatment standards or *standards.* Any regulation containing pollutant discharge limits promulgated by the EPA in accordance with Section 307(b) and (c) of the Act, which applies to industrial users. The term includes prohibited discharge standards, categorical pretreatment standards, and local limits. In cases of differing standards or regulations, the most stringent standard shall apply.

Process wastewater means any water which, during manufacturing or processing, comes into direct contact with or results from the production or use of any raw material, intermediate product, finished product, by-product, or waste product.

Prohibited discharge standards or *prohibited discharges.* Absolute prohibitions against the discharge of certain substances; these prohibitions appear in section 47-188 of this article.

Publicly owned treatment works or *POTW.* A treatment works, as defined by section 212 of the Act (33 U.S.C. § 1292), which is owned by the city. This definition includes any devices or systems used in the collection, storage, treatment, recycling, and reclamation of sewage or industrial wastes of a liquid nature and any conveyances, which convey wastewater to a treatment plant.

Regulated entity. A permittee or a user that does not hold a permit under this article but that is authorized by the director to discharge into the POTW.

Sample well or *sampling facility.* A physical connection on an industrial user's discharge pipe that is constructed to allow access for sampling and inspection.

Septic tank waste. Any sewage from holding tanks such as vessels, chemical toilets, campers, trailers, and septic tanks.

Sewage. Human excrement and gray water (household showers, dishwashing operations, etc.).

Significant industrial user or *SIU.* Except as provided in item (3) of this definition, a significant industrial user is:

(1) A categorical industrial user; or

(2) An industrial user that:

a. Discharges an average of 25,000 gallons per day or more of process wastewater to the POTW (excluding sanitary, noncontact cooling and boiler blowdown wastewater);

b. Contributes a process wastestream which makes up five percent or more of the average dry weather hydraulic or organic capacity of the POTW treatment plant; or

c. Is designated as such by the city on the basis that it has a reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement.

(3) Upon a finding that a user meeting the criteria in item (2) of this definition has no reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement, the city may at any time, on its own initiative or in response to a petition received from an industrial user, and in accordance with procedures in 40 C.F.R. § 403.8(f)(6), determine that such user should not be considered a significant industrial user.

Slug load or *slug discharge.* Any discharge at a flow rate or concentration that could cause a violation of the prohibited discharge standards in section 47-187 of this article. A slug discharge is any discharge of a nonroutine, episodic nature, including but not limited to an accidental spill or a noncustomary batch discharge, which has a reasonable potential to cause interference or pass through, or in any other way violate the POTW's regulations, local limits or permit conditions.

Source. Any building, structure, facility, or installation from which there is (or may be) a discharge of pollutants.

Storm water. Any flow occurring during or following any form of natural precipitation, and resulting from such precipitation, including snowmelt.

Total suspended solids. The total suspended matter that floats on the surface of, or is suspended in, water, wastewater, or other liquid, and that is removable by laboratory filtering.

User or *industrial user.* Any discharger or potential source of indirect discharge, including but not limited to any categorical industrial user, significant industrial user, dental

discharger or a non-domestic user that has a sewer connection for domestic wastewater discharge only.

Wastewater. Liquid and water-carried industrial wastes and sewage from residential dwellings, commercial buildings, industrial and manufacturing facilities, and institutions, whether treated or untreated, which are contributed to the POTW.

Wastewater treatment plant or *treatment plant*. That portion of the POTW which is designed to provide treatment of municipal sewage and industrial waste.

(Ord. No. 2020-1024, § 2(Exh. A), 12-2-2020; Ord. No. 2021-1037, § 20(Exh. I.55), 12-1-2021, eff. 4-1-2022)

Sec. 47-188. General sewer use requirements.

(a) *Prohibited discharge standards.*

(1) *General prohibitions.* No user shall introduce or cause to be introduced into the POTW any pollutant or wastewater which causes pass through or interference. These general prohibitions and the specific prohibitions in item (2) of this subsection apply to all users of the POTW whether or not they are subject to categorical pretreatment standards or any other National, state, or local pretreatment standards or requirements.

(2) *Specific prohibitions.* No user shall introduce or cause to be introduced into the POTW the following pollutants, substances, or wastewater:

a. Pollutants which create a fire hazard or explosion hazard in the POTW, including, but not limited to, any wastestreams with a closed-cup flashpoint of less than 140° F (60° C) using the test methods specified in 40 C.F.R. § 261.21;

b. Wastewater having a pH less than 5.0 or more than 11.0, or otherwise having the potential to cause corrosive structural damage to the POTW or POTW equipment;

c. Any liquid or solid that contains wax, grease, oil, plastics, or other substances that can solidify or become discernibly viscous at temperatures between 15° to 65.5° C (60° to 150° F);

d. Solid or viscous substances in amounts which could cause obstruction of the flow in the POTW resulting in interference, but in no case solids greater than 3/16 inch in any dimension;

e. Wastes from garbage grinders, except waste generated in the preparation of foods that are generally consumed on the premises, and not unless it has been properly comminuted or shredded to reduce all food scraps and like particles to 3/16 inch or less in greatest dimensions. Garbage grinders shall not be used for grinding plastics, paper products, linens, garden refuse, hospital or veterinarian refuse, or similar refuse for disposal into a city sewer;

f. Substances that exert or cause:

1. Unusual BOD or an immediate oxygen demand;

2. Unusual concentrations of solids or composition, as an example, in TSS of an inert nature (such as Fuller's earth) or in total dissolved solids (such as sodium chloride or sodium sulfate); or

3. Unusual flow or concentration such that, either alone or by interaction with other substances, may cause interference with the POTW;

g. Wastewater having a temperature greater than 113° F (45° C), or which will inhibit biological activity in the treatment plant resulting in interference, but in no case wastewater which causes the

temperature at the introduction into the treatment plant to exceed 104° F (40° C);

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h. Petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin;

i. Pollutants which result in the presence of toxic gases, vapors, or fumes within the POTW in a quantity that may cause acute worker health and safety problems;

j. Trucked or hauled pollutants, except at discharge points designated by the director in accordance with section 47-189 of this article;

k. Noxious or malodorous liquids, gases, solids, or other wastewater which, either singly or by interaction with other wastes, are capable of causing a

1. Public nuisance or objectionable odor;

2. Hazard to life or property; or

3. Risk to worker health or safety;

l. Wastewater which imparts color, such as, but not limited to, dye wastes and vegetable tanning solutions, which may impart color to the treatment plant's effluent, thereby violating the city's NPDES or TPDES permit;

m. Wastewater containing any radioactive wastes or isotopes except in compliance with applicable state or federal regulations;

n. Storm water; surface water; ground water; artesian well water; downspout or roof runoff; subsurface drainage; water from irrigation sprinklers, fountains, or ponds; and unpolluted water, unless specifically authorized by the director;

o. Sludge, screenings, or other residues from the pretreatment of industrial wastes;

p. Medical wastes, except as specifically authorized by the director in an individual or general wastewater discharge permit;

q. Wastewater causing, alone or in conjunction with other sources, the treatment plant's effluent to fail a toxicity test;

r. Detergents, surface-active agents, aircraft fire fighting foam, or other substances that may cause excessive foaming in the POTW;

s. Free or emulsified oil and grease, if such materials:

1. Exceed a concentration of 200 milligrams per liter of free or emulsified oil and grease, provided that a user eligible for a compliance schedule as set forth in subsections 47-188(d)(2)b and 47-188(d)(2)e must not exceed a concentration authorized by an applicable schedule of compliance;

2. Form a discernible floating layer on the surface of the discharge waters;

3. Overload the industrial user's skimming and grease handling equipment;

4. Are not amenable to biological treatment and therefore may pass through to the receiving waters without being affected by normal sewage treatment processes;

5. Have adverse effects on the treatment process due to the excessive quantities; or

6. Deposit oil or grease in the sewer lines in such a manner as to obstruct the sewer;

t. Any substance which is not amenable to treatment or reduction by the wastewater treatment process employed by a user, or is amenable to treatment only to such degree that the sanitary sewer system cannot meet the requirements of its permits;

u. Any discharge which fails to meet applicable pretreatment standards or requirements;

v. Flammable or explosive liquids, solids or gases, including, but not limited to gasoline, kerosene, benzene, naphtha, or wastewater causing two readings on an explosion hazard meter at the point of discharge into the POTW, or at any point in the POTW, of more than ten percent (10%) of the lower explosive limit of the meter;

w. Substances in such concentrations as to produce odor or taste in the effluent as to affect the taste and odor of the receiving waters;

x. Any substance that:

1. Forms solids in concentrations exceeding limits established in this article;

2. Causes any other condition that adversely impacts POTW processes, structures, or treatment processes, or increases other costs or expenses of the POTW, provided that the director has provided advance notice to the user of such condition.

y. Any pollutant discharged directly into a manhole or other opening in the POTW unless specifically authorized by the city or as otherwise permitted under this article; or

z. Pollutants, including oxygen-demanding pollutants (BOD, etc.), released in a discharge at a flow rate and/or pollutant concentration which, either singly or by interaction with other pollutants, will cause interference with the POTW.

Pollutants, substances, or wastewater prohibited by this subsection shall not be processed or stored in such a manner that they could be discharged to the POTW.

(3) No person shall open a city manhole for the purpose of discharging waste without specific authorization in accordance with this article.

(b) *National categorical pretreatment standards.* Users must comply with the categorical pretreatment standards found at 40 C.F.R. Chapter I, Subchapter N, Parts 405—471, including BMPs or pollution prevention alternatives and reporting requirements.

(1) Where a categorical pretreatment standard is expressed only in terms of either the mass or the concentration of a pollutant in wastewater, the director may impose equivalent concentration or mass limits in accordance with subsections 47-188(b)(4) and(b)(5) of this article.

(2) When the limits in a categorical pretreatment standard are expressed only in terms of mass of pollutant per unit of production, the director may convert the limits to equivalent limitations expressed either as mass of pollutant discharged per day or effluent concentration for purposes of calculating effluent limitations applicable to individual industrial users.

(3) When wastewater subject to a categorical pretreatment standard is mixed with wastewater not regulated by the same standard, the director shall impose an alternate limit in accordance with the combined wastestream formula promulgated in 40 C.F.R. § 403.6(e).

(4) When a categorical pretreatment standard is expressed only in terms of pollutant concentrations, an industrial user may request that the city convert the limits to equivalent mass limits. A determination to convert concentration limits to mass limits is within the discretion of the director. The city may establish equivalent mass limits only if the industrial user

meets all the conditions set forth in subsections 47-188(b)(4) a.1 through 47-188(b)(4) a.5 below.

a. To be eligible for equivalent mass limits, the industrial user must:

1. Employ, or demonstrate that it will employ, water conservation methods and technologies that substantially reduce water use during the term of its individual wastewater discharge permit;

2. Use control and treatment technologies adequate, at the time of the request, to achieve compliance with the applicable categorical pretreatment standard; in addition, the industrial user must certify that it is not using, and has not in the past used, dilution as a substitute for treatment under its then current permit or authorization;

3. Provide sufficient information to establish the facility's actual average daily flow rate for all wastewater streams, based on data from a continuous effluent flow monitoring device, as well as the facility's long-term average production rate. Both the actual average daily flow rate and the long-term average production rate must be representative of operating conditions at the time of the request to use equivalent mass limits;

4. Not have daily flow rates, production levels, or pollutant levels that vary so significantly that equivalent mass limits are not appropriate to control the discharge; and

5. Have complied with all applicable categorical pretreatment standards prior to the industrial user's request for equivalent mass limits under its then current permit or authorization.

b. An industrial user subject to equivalent mass limits must:

1. Maintain and effectively operate control and treatment technologies adequate to achieve compliance with the equivalent mass limits;

2. Continue to record the facility's flow rates through the use of a continuous effluent flow monitoring device;

3. Continue to record the facility's production rates and notify the director whenever production rates are expected to vary by more than 20 percent from its baseline production rates determined in subsection (b)(4) a.3 of this section. Upon notification of a revised production rate, the director will reassess the equivalent mass limit and revise the limit as necessary to reflect changed conditions at the facility; and

4. Continue to employ the same or comparable water conservation methods and technologies as those implemented pursuant to subsection (b)(4)a1 of this section so long as it discharges under an equivalent mass limit.

c. When developing equivalent mass limits, the director:

1. Will calculate the equivalent mass limit by multiplying the actual average daily flow rate of the regulated process of the industrial user by the concentration-based daily maximum and monthly average standard for the applicable

categorical pretreatment standard and the appropriate unit conversion factor;

2. Upon notification of a revised production rate, will reassess the equivalent mass limit and recalculate the limit as necessary to reflect changed conditions at the facility; and

3. May retain the same equivalent mass limit in subsequent individual wastewater discharge permit terms if the industrial user's actual average daily flow rate was reduced solely as a result of the implementation of water conservation methods and technologies, and the actual average daily flow rates used in the original calculation of the equivalent mass limit were not based on the use of dilution as a substitute for treatment pursuant to section 47-188(f) of this article. The industrial user must also be in compliance with section 47-199(b) of this article regarding the prohibition of bypass.

(5) The director may convert the mass limits of the categorical pretreatment standards of 40 C.F.R. Parts 414, 419, and 455 to concentration limits for purposes of calculating limitations applicable to individual industrial users. The conversion is at the discretion of the director.

(6) Once included in its permit, the industrial user must comply with the equivalent limitations developed in this section 47-188(b) in lieu of the promulgated categorical standards from which the equivalent limitations were derived.

(7) Many categorical pretreatment standards specify one limit for calculating maximum daily discharge limitations and a second limit for calculating monthly average, or 4-day average limitations. Where such standards are being applied, the same production or flow figure shall be used in calculating both the average and the maximum equivalent limitation.

(8) Any industrial user operating under a permit incorporating equivalent mass or concentration limits calculated from a production-based standard shall notify the director within two business days after the user has a reasonable basis to know that the production level will change by 20 percent or more from its baseline production rates, as determined in subsection (b)(4) a.3 of this section, within the next calendar month. Any user who does not notify the director in the timeframe prescribed by this subsection of such anticipated change will be required to meet the mass or concentration limits in its permit that were based on the original estimate of the long-term average production rate.

(c) *State pretreatment standards.* Users must comply with state pretreatment standards.

(d) *Local limits.*

(1) The director is authorized to establish local limits pursuant to 40 C.F.R. § 403.5(c).

(2) The following pollutant limits are established to protect against pass through and interference:

a. No person shall discharge wastewater containing more than the following daily maximum limits:

Pollutant Parameter	*Local Limit, mg/L (Industrial Discharge Flow)*
Arsenic*	**1.5** (Flow <1 MGD)
	0.08 (Flow ≥1 MGD)
Cadmium	**0.2**
Chromium	**1.0**
Copper	**2.0**
Cyanide*	**1.4** (Flow <1 MGD)
	0.5 (Flow ≥1 MGD)
Lead	**1.0**
Mercury	**0.01**
Molybdenum*	**3.7** (Flow <1 MGD)
	0.9 (Flow ≥1 MGD)
Nickel*	**2.0** (Flow <1 MGD)

Pollutant Parameter	*Local Limit, mg/L (Industrial Discharge Flow)*
	0.08 (Flow ≥1 MGD)
Silver	**1.0**
Zinc	**3.3**

*The limits for Arsenic, Cyanide, Molybdenum, and Nickel are tiered based on the discharge flow rate of the IU; specifically, discharges of 1 MGD or greater are subject to a lower concentration-based limit.

b. No person shall discharge wastewater containing more than the following instantaneous limits:

200 mg/L oil and/or grease, except that existing permittees are eligible for a 3-year schedule to comply subject to paragraph e.

c. Limitations on discharges of the following pollutants are established in the TBLLs portion of the approved program, to be applied on an as-needed basis:

Ammonia

BTEX

Total toxic organics (TTOs)

d. The limits in subsections 47-188(d)(2)a and 47-188(d)(2)b apply where the wastewater is discharged to the POTW and compliance may be determined at any sample point that captures all or a portion of the process wastewater flow as determined by the director. All concentrations for metallic substances are for total metal unless indicated otherwise. The director may impose mass limitations in addition to the concentration-based limitations set out in subsections 47-188(d)(2)a and 47-188(d)(2)b.

e. Existing sources that have an industrial waste permit on December 2, 2020 are eligible for a 3-year schedule to comply with the 200 mg/L oil and grease limit. No later than two years from December 2, 2023, an existing source, as identified above, must achieve compliance with a limit of 300 mg/L oil and grease. No later than three years from December 2, 2020, an existing source must meet the discharge limit set forth in 47-188(d)(2)b.

(3) The director may develop BMPs, by ordinance approved by city council or in individual wastewater discharge permits or general permits, to implement local limits and the requirements of sections 47-188(a) of this article. BMPs may not be implemented in lieu of local limits.

(4) The director may impose additional or more stringent limitations or pretreatment requirements in a permit as necessary to fulfill the purposes and objectives of this article.

(5) Appropriate pretreatment technology includes control equipment, such as equalization tanks or facilities, for protection against surges or slug loadings that might interfere with or otherwise be incompatible with the POTW. However, where wastewater from a regulated process is mixed in an equalization facility with unregulated wastewater or with wastewater from another regulated process, the effluent from the equalization facility must meet an adjusted pretreatment limit calculated in accordance with 40 CFR Section 403.6(e).

(6) The director may determine user's compliance with the local limits or any other applicable limit using grab or composite sampling techniques. Composite samples may be taken by the director or user over a 24-hour period, or over a longer or shorter time span, as determined by the director to meet specific circumstances.

(e) *City's right of revision.* The city reserves the right to establish, by ordinance or in individual wastewater discharge permits or general permits, more stringent standards or requirements on discharges to the POTW consistent with the purposes and objectives of this article.

(f) *Dilution.* No user shall increase the use of process water, or in any way attempt to dilute a discharge, as a partial or complete substitute for adequate treatment to achieve compliance with a discharge limitation unless expressly authorized by an applicable pretreatment standard or requirement. The director may impose mass limitations on users who are using dilution to meet applicable pretreatment standards or requirements, or in other cases when the imposition of mass limitations is appropriate.

(g) *Responsibility to inform.* The industrial user shall make available to the user's employees copies of this article, together with such other wastewater information and notices which may be furnished by the department from time to time for the purpose of improving and making more effective water pollution control.
(Ord. No. 2020-1024, § 2(Exh. A), 12-2-2020)

Sec. 47-189. Pretreatment and monitoring facilities.

(a) *Pretreatment facilities.* Users shall provide wastewater treatment as necessary to comply with this article and shall achieve compliance with all categorical pretreatment standards, local limits, and the prohibitions set out in sections 47-188(a) of this article within the time limitations specified by the EPA, the state, or the director, whichever is more stringent. Any facilities necessary for compliance shall be provided, operated, and maintained at the user's expense. Users shall submit detailed plans describing such facilities and operating procedures to the director for review. Users shall not commence or cause to be commenced construction of facilities until the director has approved the submitted detailed plans.

The user shall submit detailed plans showing any proposed new construction, modifications, and significant changes in pretreatment facilities or method of operation to the director for review and approval prior to implementation. The user shall obtain any necessary construction permits before new construction or modifications of an existing facility may commence.

The review of such plans and operating procedures shall in no way relieve the user from the responsibility of modifying such facilities as necessary to produce a discharge acceptable to the city under the provisions of this article.

Within 90 days after the completion of the wastewater pretreatment facility, the permittee shall submit as-built drawings and its procedures for operations and maintenance to the director.

(b) *Additional pretreatment measures.*

(1) Whenever deemed necessary, the director may require users to restrict their discharge during peak flow periods, designate that certain wastewater be discharged only into specific sewers, relocate and/or consolidate points of discharge, separate sewage wastewater streams from industrial wastestreams, and such other conditions as may be necessary to protect the POTW and determine the user's compliance with the requirements of this article.

(2) The director may require any person discharging into the POTW to install and maintain, on their property and at their expense, a suitable storage and flow-control facility to ensure equalization of flow. An individual wastewater discharge permit or general permit may be issued solely for flow equalization.

(3) The director may require users with potential flammable discharge substances to install and maintain an approved combustible gas detection meter.

(c) *Accidental discharge/slug discharge control plans.* The director shall evaluate, within one year after a user is designated as a SIU, whether the SIU needs an accidental discharge/slug discharge control plan or other action to control slug discharges. The director may require any user to develop, submit for approval, and implement such a plan or take such other action that may be necessary to control slug discharges. Alternatively, the director may develop such a plan for any user. An accidental discharge/slug discharge control plan shall address, at a minimum, the following:

(1) Description of discharge practices, including nonroutine batch discharges;

(2) Description of stored chemicals;

(3) Procedures for immediately notifying the director of any accidental or slug discharge, as required by section 47-192(f) of this article; and

(4) Procedures to prevent adverse impact from any accidental or slug discharge. Such procedures include, but are not limited to, inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site runoff, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants, including solvents, and/or measures and equipment for emergency response.

Every user shall provide protection from accidental discharge into the POTW of prohibited materials. Such protection shall be provided and maintained at the user's cost and expense.

Users shall control the production of all discharges to the extent necessary to maintain compliance with all applicable regulations upon reduction, loss, or failure of its treatment facility until the facility is restored or an alternative method of treatment is provided. This requirement applies in the situation where, among other things, the primary source of power to the treatment facility is reduced, lost, or fails.

Users shall provide records of the activities associated with slug control evaluation and results available to the director upon director's request.

(d) The director may require a user to install, at the user's expense, suitable monitoring facilities, instrumentation or equipment that allows for the representative sampling and accurate observation of wastewater discharges. At all times and at its own expense, the user shall maintain the sampling and monitoring equipment in a safe and proper operating condition and accessible to city personnel. The user shall ensure all devices used to measure wastewater flow and quality are calibrated at least annually to ensure their accuracy.

(e) The location of the monitoring facility shall provide ample room in or near the monitoring facility to allow accurate sampling and preparation of samples and analysis. The monitoring facilities must be provided in accordance with the director's requirements and all applicable local construction standards and specifications whether constructed on public or private property. The user shall construct and maintain monitoring facilities in such manner so as to enable the director to perform independent and unscheduled monitoring activities.

(f) *Multitenant buildings.* When more than one user is able to discharge into a common service line, the director may require installation of separate monitoring equipment for each user.

(g) *Flow, pH, lower explosive limit, and other appropriate meters and instrumentation.* If the director determines that an industrial user needs to measure and report: wastewater flow, discharge process wastewaters necessitating continuous pH measurement, or discharge wastewater that may contain flammable substances, the director may require the user, at the user's expense, to install and maintain approved meters, structures, and equipment.

(h) *Hauled wastewater.* Only domestic septic tank waste generated within the city may be introduced into the POTW and only at locations designated by the director, and at the times established by the director. Users must comply with section 47-188 of this article and any other requirements established by the city. The director may require waste haulers to obtain individual wastewater discharge permits or general permits. (Ord. No. 2020-1024, § 2(Exh. A), 12-2-2020)

Sec. 47-190. Individual wastewater discharge permits and general permits.

(a) *Wastewater analysis.* When requested by the director, a user must submit information on the nature and characteristics of its wastewater

within 30 days of the request. This information shall include, but is not limited to, the items listed in section 47-190(e) of this article. The director is authorized to prepare a form for this purpose and may periodically require a user to update information on the nature and characteristics of the user's wastewater.

(b) *Individual wastewater discharge permit and general permit requirement.*

(1) A user meeting any of the following criteria shall not discharge wastewater into the POTW without first obtaining an individual wastewater discharge permit or a general permit from the director:

a. SIUs;

b. Industrial users that discharge concentrations of BOD or TSS greater than those levels established for the imposition of the user surcharge under article III of this chapter; or

c. Industrial users that contribute or have the potential to contribute industrial waste having concentrations of pollutants that would interfere with or pass through the sewer system or contaminate the city's sewage sludge.

(2) The director may require a user who does not meet any of the criteria in subsection 47-190(b)(1) of this article to obtain individual wastewater discharge permits or general permits as necessary to carry out the purposes and objectives of this article.

(3) Any violation of the terms and conditions of an individual wastewater discharge permit or general permit shall be deemed a violation of this article and subjects the wastewater discharge permittee to the sanctions set out in sections 47-196 through 47-198 of this article. Obtaining an individual wastewater discharge permit or general permit does not relieve a permittee of its obligation to comply with all federal and state pretreatment standards or requirements or with any other requirements of federal, state, and local law.

(c) *Individual wastewater discharge and general permitting—Existing connections.* Any user required to obtain an individual wastewater discharge permit or general permit who was discharging wastewater into the POTW prior to December 2, 2020 and who wishes to continue such discharges, shall, within 45 days after December 2, 2020, apply to the director for an individual wastewater discharge permit or general permit in accordance with section 47-190(e) of this article, and shall not cause or allow discharges to the POTW to continue after 90 days after December 2, 2020 except in accordance with an individual wastewater discharge permit or general permit issued by the director. A user with an expiring industrial waste permit must apply for a new permit by submitting a complete permit application at least forty-five (45) days prior to the expiration of the user's existing permit. A user that has filed a complete and timely application may continue to discharge as approved in writing by the city through an administrative extension of the existing permit if the delay in permit issuance is not due to any act or failure to act on the user's part.

(d) *Individual wastewater discharge and general permitting—New connections.* Any user required to obtain an individual wastewater discharge permit or general permit who proposes to begin discharging into the POTW must obtain such permit, if the user does not have an applicable permit, prior to the beginning or recommencing of such discharge. An application for an individual wastewater discharge permit or general permit pursuant to section 47-190(e) of this article must be filed at least 90 days prior to the date upon which any discharge will begin. The user shall provide a tour of the facilities for department inspectors prior to commencing or recommencing discharge.

(e) *Individual wastewater discharge and general permit application contents.*

(1) All users required to obtain an individual wastewater discharge permit or general permit must submit a permit applica-

tion. Users that are eligible may request a general permit under section 47-190(f) of this article. The director may require users to submit all or some of the following information as part of an individual or general permit application:

a. *Identifying information.*

1. The name and address of the facility, including the name of the operator and owner.
2. Contact information, types of products or services, description of activities, facilities, and plant production processes on the premises.

b. *Environmental permits.* A list of any environmental control permits held by or for the facility.

c. *Description of operations.*

1. A brief description of the nature, average rate of production (including each product produced by type, amount, processes, and rate of production), and standard industrial classifications of the operation(s) carried out by such user.
2. A schematic process diagram, which indicates all process tanks, process lines, treatment systems, drains, and points of discharge to the POTW.
3. Types of wastes generated, and a list of all raw materials and chemicals used or stored at the facility which are, or could accidentally or intentionally be, discharged to the POTW.
4. Number and type of employees, hours of operation, and proposed or actual hours of operation.
5. Type and amount of raw materials processed (average and maximum per day).
6. Site plans, floor plans, mechanical and plumbing plans, and details to show all sewers, floor drains, sampling points, city sewer connections, pretreatment facilities, and appurtenances by size, location, and elevation, and all points of discharge.

d. Time and duration of discharges including the date the user first began discharge or plans to discharge to the POTW.

e. The location for monitoring all wastewater discharges from the user.

f. *Flow measurement.* Information showing the measured average daily and maximum daily flow, in gallons per day, to the POTW from regulated process streams and other streams, as necessary, to allow use of the combined wastestream formula in accordance with subsection 47-188(b)(3) of this article and 40 C.F.R. § 403.6(e). For new sources and new permittees not currently discharging, an estimate of flows may be used for meeting the requirements of the BMR.

g. *Measurement of pollutants.*

1. The categorical pretreatment standards applicable to each regulated process and any new categorically regulated processes.
2. The results of sampling and analysis identifying the nature and concentration, and/or mass, where required by the standard or by the director, of regulated pollutants in the discharge from each regulated process.
3. Instantaneous, daily maximum, and long-term average concentrations, or mass, where required, shall be reported.
4. The sample shall be representative of daily operations and shall be analyzed in accordance with procedures set out in sec-

tion 47-192(k) of this article. Where the standard requires compliance with a BMP or pollution prevention alternative, the user shall submit documentation as required by the director or the applicable standards to determine compliance with the standard.

5. Sampling must be performed in accordance with procedures set out in section 47-192(l) of this article.

h. Any request to be covered by a general permit based on section 47-190(f) of this article.

i. Any other information as may be deemed necessary by the director to evaluate the permit application.

(2) Incomplete or inaccurate applications will not be processed and will be returned to the user for revision.

(3) The director shall charge and collect applicable fees for each industrial waste permit or regulated entity if a permit is not required. Fees shall be as stated for this provision in the city fee schedule. Payment of any applicable fees when due is a condition of the processing of any application or authorization request under this article.

(f) *Wastewater discharge permitting: general permits.*

(1) At the discretion of the director, the director may use general permits to control user discharges to the POTW if the facilities to be covered by a general permit meet the following conditions:

a. Involve the same or substantially similar types of operations;

b. Discharge the same types of wastes;

c. Require the same effluent limitations;

d. Require the same or similar monitoring; and

e. In the opinion of the director, are more appropriately controlled under a general permit than under individual wastewater discharge permits.

(2) To be covered by the general permit, the user must file a written request for coverage that identifies its contact information, production processes, the types of wastes generated, the location for monitoring all wastes covered by the general permit, and any other information the director deems appropriate.

(3) The director will retain a copy of the general permit, documentation to support the director's determination that a specific user meets all the criteria in subsection 47-190(f)(1) of this article and applicable state regulations, and a copy of the user's written request for coverage for three years after the expiration of the general permit.

(4) The director may not control a SIU through a general permit where the facility is subject to production-based categorical pretreatment standards or categorical pretreatment standards expressed as mass of pollutant discharged per day or for IUs whose limits are based on the combined wastestream formula in accordance with subsection 47-188(b)(3) of this article and 40 C.F.R. § 403.6(e).

(5) The director shall charge and collect fees for each industrial waste permit or regulated entity if a permit is not required. Fees shall be as stated for this provision in the city fee schedule. Payment of any applicable fees when due is a condition of the processing of any application under this article.

(g) *Application signatories and certifications.*

(1) All wastewater discharge permit applications, user reports and certification statements must be signed by an authorized representative of the user and contain the certification statement in section 47-192(o) of this article.

(2) If the designation of an authorized representative of the user is no longer accurate because a different individual or position has responsibility for the overall operation of the facility or overall responsibility for environmental matters for the company, the user must submit a new written authorization satisfying the requirements of this section to the director prior to or together with any reports to be signed by the new authorized representative.

(h) *Individual wastewater discharge and general permit decisions.* The director will evaluate the data furnished by the user and may require additional information. Within 90 days of receipt of a complete permit application from a new user, and within 45 days of receipt of a complete permit application from an existing user, the director will determine whether to issue an individual wastewater discharge permit or a general permit. The director may deny any application for an individual wastewater discharge permit or a general permit based on the following reasons:

A permit shall be denied if the applicant:

(1) Cannot demonstrate compliance with sampling and operating standards of this article;

(2) Fails to provide any requested information as provided in section 47-190(e) of this article;

(3) Fails to provide and operate treatment and sampling facilities as provided in sections 47-189 and 47-193(1) of this article;

(4) Fails to pay all fees or charges required by this chapter or other applicable fees,

(5) Cannot demonstrate to the satisfaction of the director that the facility has been designed or will be operated in a manner that will produce a discharge that is acceptable to the POTW.

A permit may be denied if the applicant:

(1) Is an existing user or a previously unpermitted user that is at the time of the application violating or has previously violated the provisions of this article or any other city ordinance pertaining to the sanitary sewer system;

(2) Is an existing user or prior user and has had, during the term of its current or previously issued permit, recurring noncompliance with any provisions of this article or its previously issued permit;

(3) Has not complied with all applicable building and plumbing codes.

If the permit is denied, the director shall notify the applicant of the denial and the basis for permit denial. Recurring non-compliance may result in an interim renewal that requires increased self-monitoring or other requirements deemed necessary to demonstrate compliance. A permit shall not be renewed to an applicant that has had its sanitary sewer service disconnected as the result of termination of utility service or to an applicant that is in arrears on its sewer bill.

(i) *Discharge flow meter.* A user shall be required to install and maintain a wastewater discharge meter if:

(1) The user accepts material from off-site that causes or contributes a wastewater discharge to the sanitary sewer system, including material received on trucks, trains, ships, or via pipeline;

(2) The user discharges wastewater to the sanitary sewer system that is from a source other than city-provided water and is not billed for city sewer usage, such as well water or storm water;

(3) The user has a chemical or physical process that produces water that will be discharged to the sanitary sewer system;

(4) The user is subject to flow- or mass-based pretreatment standards; or

(5) The director determines that a wastewater discharge meter is required.

The discharge meter shall be purchased and installed by the user in accordance with the requirements of the department.

User shall establish a discharge meter billing account with the department for each discharge meter prior to the issuance of a new industrial waste permit or prior to starting any new process that will discharge unmetered wastewater to the sanitary sewer system.

User's failure to install a required discharge meter or establish a discharge meter billing account shall be grounds for the director to deny issuance of a new permit or revoke any existing permit.

Failure to maintain a required discharge meter in good working order, to calibrate the meter as required by the department, or to maintain an active discharge meter billing account will result in the revocation of the user's permit in accordance with section 47-191(f) of this article. Diverting wastewater to avoid measurement in a discharge meter will also result in the revocation of the user's permit or disconnection of water/wastewater service.

(j) *Additional guidelines.* The director is authorized to promulgate guidelines for administration of this article that are consistent with its requirements and applicable state and federal laws and regulations.
(Ord. No. 2020-1024, § 2(Exh. A), 12-2-2020)

Sec. 47-191. Individual wastewater discharge and general permit issuance.

(a) *Individual wastewater discharge and general permit duration.* An individual wastewater discharge permit or a general permit shall be issued for a specified time period, not to exceed five years from the effective date of the permit. An individual wastewater discharge permit or a general permit may be issued for a period less than five years, at the discretion of the director. Each individual wastewater discharge permit or a general permit will indicate a specific date upon which it will expire.

(b) *Individual wastewater discharge permit and general permit contents.* An individual wastewater discharge permit or a general permit shall include such conditions as are deemed reasonably necessary by the director to prevent pass through or interference, protect the quality of the water body receiving the treatment plant's effluent, protect worker health and safety, facilitate sludge management and disposal, and protect against damage to the POTW.

(1) Individual wastewater discharge permits and general permits must contain:

a. The wastewater discharge permit issuance date, expiration date and effective date;

b. A statement that the wastewater discharge permit is nontransferable without prior notification to the city in accordance with section 47-191(e) of this article, and provisions for furnishing the new owner or operator with a copy of the existing wastewater discharge permit;

c. Effluent limits, including best management practices, based on applicable pretreatment standards;

d. Self-monitoring, sampling, reporting, notification, and record-keeping requirements. These requirements shall include an identification of pollutants (or best management practice) to be monitored, sampling location, sampling frequency, and sample type based on federal, state, and local law, including the site-specific circumstances and alternate sampling (when applicable);

e. A statement of applicable civil and criminal penalties for violation of pretreatment standards and requirements, and any applicable compliance schedule. Such schedule may not extend the time for compliance beyond that required by applicable federal, state, or local law;

f. Requirements to control and report slug discharge, if determined by the director to be necessary;

g. Requirements to provide facility access for sampling and inspection purposes; and

h. A statement of the user's responsibility to give advance notice to the director of any operational change that increases the volume or character of the user's wastewater discharge as represented in user's application for a permit or other authorization, including the addition of any hazardous waste.

(2) Individual wastewater discharge permits and general permits may contain, but need not be limited to, the following conditions:

a. Limits on the average and/or maximum rate of discharge, time of discharge, and/or requirements for flow regulation and equalization;

b. Requirements for the installation of pretreatment technology, pollution control, or construction of appropriate containment devices, designed to reduce, eliminate, or prevent the introduction of pollutants into the treatment works;

c. Requirements for the development and implementation of spill control plans or other special conditions including management practices necessary to adequately prevent accidental, unanticipated, or nonroutine discharges;

d. Development and implementation of waste minimization plans to reduce the amount of pollutants discharged to the POTW;

e. The unit charge or schedule of user charges and fees for the management of the wastewater discharged to the POTW;

f. Requirements for installation and maintenance of inspection and sampling facilities and equipment, including flow measurement devices;

g. Notification requirements prior to the release of batch discharges into the sanitary sewer system;

h. A statement that compliance with the individual wastewater discharge permit or the general permit does not relieve the permittee of responsibility for compliance with all applicable federal and state pretreatment standards, including those which become effective during the term of the individual wastewater discharge permit or the general permit; and

i. Other conditions as deemed appropriate by the director to ensure compliance with this article, and state and federal laws, rules, and regulations.

(c) *Permit issuance process.*

(1) *Public notification.* If determined to be necessary, the director will publish in an official government publication and/or newspaper(s) of general circulation that provides meaningful public notice within the jurisdiction(s) served by the POTW, or on a web page, a notice to issue a pretreatment permit, at least 30 days prior to issuance. The notice will indicate a location where the draft permit may be reviewed and an address where comments may be submitted by electronic and/or written communication.

(2) *Permit appeals.* Any person, including the user, may petition the director to reconsider the terms of an individual wastewater discharge permit or a general permit within 15 days of notice of its issuance.

a. Failure to submit a timely petition for review shall be deemed to be a waiver of the administrative appeal.

b. In its petition, the appealing party must indicate the individual wastewater discharge permit or general permit provisions objected to, the reasons for this objection, and the alternative condition, if any, it seeks to place in the individual wastewater discharge permit or general permit.

c. The effectiveness of the individual wastewater discharge permit or general permit shall not be stayed pending the appeal.

d. If the director fails to act within 30 days, a request for reconsideration shall be deemed to be denied. Decisions not to reconsider an individual wastewater discharge permit or general permit, not to issue an individual wastewater discharge permit or general permit, or not to modify an individual wastewater discharge permit or general permit shall be considered final administrative actions.

(d) *Permit modification.*

(1) The director may modify an individual wastewater discharge permit for good cause, including, but not limited to, the following reasons:

a. To incorporate any new or revised federal, state, or local pretreatment standards or requirements;

b. To address significant alterations or additions to the user's operation, processes, or wastewater volume or character since the time of the individual wastewater discharge permit issuance;

c. To address a change in the POTW that requires either a temporary or permanent reduction or elimination of the authorized discharge;

d. To address information indicating that the permitted discharge poses a threat to the city's POTW, city personnel, sludge use or disposal, or the receiving waters;

e. User's violation of any terms or conditions of the individual wastewater discharge permit;

f. To address user's misrepresentations or failure to fully disclose all relevant facts in the wastewater discharge permit application or in any required reporting;

g. To address a revision to a variance previously approved by the director or a request to the director for a new variance from categorical pretreatment standards pursuant to 40 C.F.R. § 403.13;

h. To prevent interference or pass through, contamination of sewage sludge, or violation by the city of laws or regulations enacted by the state or federal government;

i. To correct, abate, or prevent a recurrence of a violation of a term or condition of a permit;

j. To incorporate revised conditions, standards, or requirements as consistent with the purposes and objectives of this article;

k. To correct typographical or other errors in the individual wastewater discharge permit; or

l. To reflect a transfer of the facility ownership or operation to a new owner or operator where requested in accordance with section 47-191(e) of this article.

(2) The director may modify a general permit for good cause, including, but not limited to, the following reasons:

a. To incorporate any new or revised federal, state, or local pretreatment standards or requirements;

b. A change in the POTW that requires either a temporary or permanent reduction or elimination of the authorized discharge;

c. To correct typographical or other errors in the individual wastewater discharge permit; or

d. To reflect a transfer of the facility ownership or operation to a new owner or operator where requested in accordance with section 47-191(e) of this article.

(e) *Individual wastewater discharge permit and general permit transfer.* Individual wastewater discharge permits or coverage under general permits may be transferred to a new owner or operator only if the permittee gives at least 30 days advance notice to the director and the director approves the individual wastewater discharge permit or the general permit coverage transfer. The notice to the director must include a written certification by the new owner or operator that:

(1) States that the new owner and/or operator has no immediate intent to change the facility's operations and processes;

(2) Identifies the specific date on which the transfer is to occur; and

(3) Acknowledges full responsibility for complying with the existing individual wastewater discharge permit or general permit.

User's failure to provide advance notice of a transfer renders the individual wastewater discharge permit or coverage under the general permit void as of the date of facility transfer.

(f) *Individual wastewater discharge permit and general permit revocation.* The director may revoke an individual wastewater discharge permit or coverage under a general permit for good cause, including, but not limited to, the following reasons that are based on a user's or permittee's failure of performance as identified below:

(1) Failure to notify the director of any operational change that increases the volume or character of the user's wastewater discharge as represented in user's application for a permit or other authorization, including the addition of any hazardous waste;

(2) Failure to provide prior notification to the director of changed conditions pursuant to section 47-192(e) of this article;

(3) Misrepresentation or failure to fully disclose all relevant facts in the wastewater discharge permit application;

(4) Submission of false information on self-monitoring reports and certification statements;

(5) Tampering with monitoring equipment;

(6) Refusal to allow the director timely access to the facility premises and records;

(7) Failure to meet effluent limitations;

(8) Failure to pay fines or fees;

(9) Failure to meet compliance schedules;

(10) Failure to complete a wastewater survey or the wastewater discharge permit application;

(11) Failure to provide advance notice of the transfer of business ownership of a permitted facility;

(12) Violation of any pretreatment standard or requirement, or any terms of the wastewater discharge permit or the general permit or this article;

(13) Failure to accurately disclose or report the wastewater constituents and characteristics of any discharge; or

(14) Denial of timely access to the user's premises for the purpose of inspection or sampling.

Individual wastewater discharge permits or coverage under general permits shall be voidable upon cessation of operations or transfer of business ownership. All individual wastewater discharge permits, or general permits issued to a user, are void upon the issuance of a new individual wastewater discharge permit or a general permit to that user.

(g) *Individual wastewater discharge permit and general permit reissuance.* A user with an expiring individual wastewater discharge permit or general permit shall apply for individual wastewater discharge permit or general permit reissuance by submitting a complete permit application, in accordance with section 47-190(e) of this article, a minimum of 45 days prior to the expiration of the user's existing individual wastewater discharge permit or general permit.

(h) *Regulation of waste received from other jurisdictions.*

(1) Prior to accepting wastewater from a contributing municipality, the director shall execute an intermunicipal agreement between the City and the contributing municipality that seeks to contribute wastewater to the POTW.

(2) Prior to entering into an agreement required by item (1) above, the director may request the following information from the contributing municipality:

a. A description of the quality and volume of wastewater discharged to the POTW by the contributing municipality;

b. An inventory of all users located within the contributing municipality that are discharging to the POTW; and

c. Such other information as the director may deem necessary.

(3) An intermunicipal agreement, as required by item (1) above, shall contain the following conditions if industrial waste may be discharged in the service area of the contributing jurisdiction:

a. A requirement for the contributing municipality to adopt a sewer use ordinance which is at least as stringent as this article and local limits, including required BMPs which are at least as stringent as those set out in section 47-188(d) of this article. The requirement shall specify that such ordinance and limits must be revised as necessary to reflect changes made to this article or local limits;

b. A requirement for the contributing municipality to submit to the director a revised user inventory on at least an annual basis;

c. A provision specifying which pretreatment implementation activities, including individual wastewater discharge permit or general permit issuance, inspection and sampling, and enforcement, will be conducted by the contributing municipality; which of these activities will be conducted by the director; and which of these activities will be conducted jointly by the contributing municipality and the director;

d. A requirement for the contributing municipality to provide the director with access to all information that the contributing municipality obtains as part of its pretreatment activities;

e. Limits on the nature, quality, and volume of the contributing municipality's wastewater at the point where it discharges to the POTW;

f. Requirements for monitoring the contributing municipality's discharge;

g. A provision ensuring the director access to the facilities of users located within the contributing municipality's jurisdictional boundaries for the purpose of inspection, sampling, and any other duties deemed necessary by the director; and

h. A provision specifying remedies available for breach of the terms of the intermunicipal agreement.

(Ord. No. 2020-1024, § 2(Exh. A), 12-2-2020)

Sec. 47-192. Reporting requirements.

(a) *Baseline monitoring reports (BMR).*

(1) Within either 180 days after the effective date of a categorical pretreatment standard, or the final administrative decision on a category determination under 40 C.F.R. § 403.6(a)(4), whichever is later, existing categorical industrial users discharging to or scheduled to discharge to the POTW shall submit to the director a report which contains the information listed in subsection 47-192(a)(2) of this

subsection. At least 90 days prior to commencement of discharge, new sources, and existing sources that become categorical industrial users after the promulgation of an applicable categorical standard, shall submit to the director a report which contains the information listed in subsection 47-192(a)(2)a, b and e, below. A new source shall report the method of pretreatment it proposes to use in order to meet applicable categorical standards. A new source also shall give estimates of its anticipated flow and quantity of pollutants to be discharged.

(2) Users described in 47-192(a)(1) shall submit the information set forth below to the director.

a. All information required in subsections 47-190(e)(1)a1, 47-190(e)(1)b, 47-190(e)(1)c1, and 47-190(e)(1)f of this article.

b. *Measurement of pollutants.*

1. The user shall provide the information required in subsections 47-190(e)(1)g of this article to the director.

2. The user shall take a minimum of one representative sample to compile the data necessary to comply with the requirements of this item (2).

3. User shall collect samples immediately downstream from pretreatment facilities if they exist or immediately downstream from the regulated process if no pretreatment facility exists. If other wastewaters are mixed with the regulated wastewater prior to pretreatment, the user is required to measure the flows and concentrations necessary to allow use of the combined wastestream formula in 40 C.F.R. § 403.6(e) to evaluate compliance with the pretreatment standards. Where an alternate concentration or mass limit has been calculated in accordance with 40 C.F.R. § 403.6(e), the user shall submit this adjusted limit along with supporting data shall to the director.

4. Sampling and analysis shall be performed in accordance with sections 47-192(k) and (l) of this article.

5. The director may allow the submission of a BMR which utilizes only historical data so long as the data provides information sufficient to determine the need for industrial pretreatment measures.

6. The BMR shall indicate the time, date and place of sampling and methods of analysis, and shall contain a certification indicating that such sampling and analysis is representative of normal work cycles and expected pollutant discharges to the POTW.

c. *Compliance certification.* User shall submit a statement, reviewed by the user's authorized representative as defined in section 47-187(d) of this article, and certified by a qualified professional, indicating whether pretreatment standards are being met on a consistent basis, and, if not, whether additional operation and maintenance (O&M) and/or additional pretreatment is required to meet the pretreatment standards and requirements.

d. *Compliance schedule.* If additional pretreatment and/or O&M will be required to meet the pretreatment standards, the shortest schedule by which the user will provide such additional pretreatment and/or O&M must be provided. The completion date in this schedule shall not be later than the compliance date

established for the applicable pretreatment standard. A compliance schedule pursuant to this section must meet the requirements set out in section 47-192(b) of this article.

e. *Signature and report certification.* All BMRs must be certified in accordance with section 47-192(o) of this article and signed by an authorized representative of the user as defined in section 47-187(d) of this article.

(b) *Compliance schedule progress reports.* The following conditions shall apply to the compliance schedule required by subsection 47-192(a)(2)d of this article:

(1) The schedule shall contain progress increments in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the user to meet the applicable pretreatment standards (such events include, but are not limited to, hiring an engineer, completing preliminary and final plans, executing contracts for major components, commencing and completing construction, and beginning and conducting routine operation);

(2) No progress increment referred to in subsection 47-192(b)(1) above shall exceed nine months;

(3) The user shall submit a progress report to the director no later than 14 days following each date in the schedule and the final date of compliance including, at a minimum, whether or not the user complied with the increment of progress, the reason for any delay, and, if appropriate, the steps being taken by the user to return to the established schedule; and

(4) In no event shall more than nine months elapse between such progress reports to the director.

(c) *Reports on compliance with categorical pretreatment standard deadline.* Within 90 days following the date for final compliance with applicable categorical pretreatment standards, or in the case of a new source following commencement of the introduction of wastewater into the POTW, any user subject to such pretreatment standards and requirements shall submit to the director a report containing, the information described in subsections 47-190(e)(1)f, 47-190(e)(1)g, 47-192(a)(2)b, and 47-192(a)(2)c of this article. For a user subject to equivalent mass or concentration limits established in accordance with the procedures in section 47-188(b) of this article, this report shall contain a reasonable measure of the user's long-term production rate. For all other users subject to categorical pretreatment standards expressed in terms of allowable pollutant discharge per unit of production (or other measure of operation), this report shall include the user's actual production during the appropriate sampling period. All compliance reports must be signed and certified in accordance with section 47-192(o) of this article, and all sampling will be done in conformance with section 47-192(l) of this article.

(d) *Periodic compliance reports.*

(1) All SIUs or other users required by the director must, at a frequency determined by the director, submit no less than twice per year reports indicating the nature, concentration of pollutants in the discharge which are limited by pretreatment standards and the measured or estimated average and maximum daily flows for the reporting period. In cases where the pretreatment standard requires compliance with a BMP or pollution prevention alternative, the user must submit documentation required by the director or the pretreatment standard necessary to determine the compliance status of the user.

(2) All periodic compliance reports must be signed and certified in accordance with section 47-192(o) of this article.

(3) All wastewater samples must be representative of the user's discharge.

Wastewater monitoring and flow measurement facilities shall be properly operated, kept clean, and maintained in good working order at all times. The failure of a user to maintain its monitoring facility shall not be grounds for the user to claim that sample results are unrepresentative of its discharge.

(4) If a user subject to the reporting requirement in this section monitors any regulated pollutant at the appropriate sampling location more frequently than required by the director, using the procedures prescribed in sections 47-192(k) and (l) of this article, the results of the monitoring shall be included in the report.

(5) Users that send electronic (digital) documents to the city to satisfy the requirements of this section must meet the requirements of section 47-203 of this article.

(e) *Reports of changed conditions.* Each user must notify the director of any significant changes to the user's operations or system which might alter the nature, quality, or volume of its wastewater at least 14 days before the change. A significant change shall be equal to or greater than 20 percent in the mass or concentration of a pollutant or volume of flow discharged to the POTW.

(1) The notification shall include changes relating to:

a. The addition or removal of processing, manufacturing, or other production operations,

b. New pollutants which may be discharged, and

c. Changes in the listed or characteristic hazardous waste for which the user has submitted or is required to submit information to the city under this article.

(2) The director may require the user to submit information that the director deems necessary to evaluate the changed condition, including the submission of a wastewater discharge permit application under section 47-190(e) of this article.

(3) The director may issue an individual wastewater discharge permit or a general permit under section 47-191(g) of this article or modify an existing wastewater discharge permit or a general permit under section 47-191(d) of this article in response to changed conditions or anticipated changed conditions.

(f) *Reports of potential problems.*

(1) In the case of any discharge, including, but not limited to, accidental discharges, discharges of a nonroutine, episodic nature, a noncustomary batch discharge, a slug discharge, or slug load, that might cause potential problems for the POTW, the user shall immediately call and email the director to provide notice of the incident. This notification shall include the location of the discharge, type of waste, concentration and volume, if known, and corrective actions taken by the user.

(2) Within five days following such discharge, the user shall, unless waived by the director, submit a detailed written report describing the cause(s) of the discharge and the measures to be taken by the user to prevent similar future occurrences. Such notification shall not relieve the user of any expense, loss, damage, or other liability which might be incurred as a result of damage to the POTW, natural resources, or any other damage to person or property; nor shall such notification relieve the user of any fines, penalties, or other liability which may be imposed pursuant to this article. Failure to report slug discharges may, in addition to any other remedies available to the director, result in the disconnection of utility service.

(3) Users shall ensure that all employees who could cause such a discharge to occur are advised of the emergency notification procedure of this section.

(4) SIUs are required to notify the director immediately of any changes at its facility that affect the potential for a slug discharge.

(g) *Dental discharger compliance reports.* Within three years and 90 days after the effective date of the applicable categorical pretreatment standard, existing dental dischargers that are discharging to or scheduled to discharge to the POTW shall submit to the director a report which contains the information as required at 40 C.F.R. § 441.50. At least 90 days after commencement of their discharge, new sources, and existing sources that become dental dischargers subsequent to the promulgation of the applicable categorical standard, shall submit to the director a report which contains the information as required at 40 C.F.R. § 441.50. If the dental discharger transfers ownership of the facility, the new owner must submit a new one-time compliance report no later than 90 days after the transfer. The director may require the submittal of additional information or more frequent reports to assess and assure compliance with 40 C.F.R. Part 441.

(h) *Other reports.* All users not required to obtain an individual wastewater discharge permit or general permit shall provide appropriate reports to the director as the director may require.

(i) *Notice of violation/repeat sampling and reporting.* If sampling performed by a user indicates a violation, the user shall notify the director within 24 hours of becoming aware of the violation. The user shall also repeat the sampling and analysis and submit the results of the repeat analysis to the director within 30 days after becoming aware of the violation. Resampling by the user is not required if the city performs sampling at the user's facility at least once a month, or if the city performs sampling at the user's facility between the time the initial sampling was conducted and the time when the user or the city receives the results of this sampling, or if the city has performed the sampling and analysis in lieu of the user.

If the city performed the sampling and analysis in lieu of the user, the city will perform the repeat sampling and analysis unless it notifies the user of the violation and requires the user to perform the repeat sampling and analysis.

(j) *Notification of the discharge of hazardous waste.*

(1) Any user who commences the discharge of hazardous waste shall notify the director pursuant to the notification procedures within the permit, the EPA Regional Waste Management Division Director, and state hazardous waste authorities, in writing, of any discharge into the POTW of a substance which, if otherwise disposed of, would be a hazardous waste under 40 C.F.R. Part 261. Such notification must include the name of the hazardous waste as set forth in 40 C.F.R. Part 261, the EPA hazardous waste number, and the type of discharge (continuous, batch, or other). If the user discharges more than 100 kilograms of such waste per calendar month to the POTW, the notification also shall contain the following information to the extent such information is known and readily available to the user: an identification of the hazardous constituents contained in the wastes, an estimation of the mass and concentration of such constituents in the wastestream discharged during that calendar month, and an estimation of the mass of constituents in the wastestream expected to be discharged during the following 12 months. All notifications shall take place no later than 180 days after the discharge commences. Any notification under this item (1) need be submitted only once for each hazardous waste discharged. The user shall submit notifications of changed conditions under or pursuant to section 47-192(e) of this article. The notification requirement in this section does not apply to any pollutant already reported by a user subject to categorical pretreatment standards under the self-monitoring requirements of sections 47-192(a), (c) and (d) of this article.

(2) Dischargers are exempt from the requirements of item (1) above, during a calendar

month in which they discharge no more than 15 kilograms of hazardous wastes, unless the wastes are acute hazardous wastes as specified in 40 C.F.R. § 261.30(d) and 261.33(e). Users shall submit to the director a one-time notification of a discharge of more than 15 kilograms of nonacute hazardous wastes in a calendar month, or of any quantity of acute hazardous wastes as specified in 40 C.F.R. § 261.30(d) and 261.33(e). A user is not required to make additional notifications in subsequent months during which the user discharges more than previously identified quantities of any hazardous waste.

(3) In the case of any new regulations under section 3001 of RCRA identifying additional characteristics of hazardous waste or listing any additional substance as a hazardous waste, the user must notify the director, the EPA Regional Waste Management Division Director, and state hazardous waste authorities of the discharge of such substance within 90 days of the effective date of such regulations.

(4) In the case of any notification made under this section, the user shall certify that it has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree it has determined to be economically practical.

(5) This provision does not create a right to discharge any substance not otherwise permitted to be discharged by this article, a permit issued thereunder, or any applicable federal or state law. This provision does not waive any other notification that may apply to discharges subject to other provisions of this article.

(k) *Analytical requirements.* User shall perform all pollutant analyses, including sampling techniques, to be submitted as part of a wastewater discharge permit application or report in accordance with the techniques prescribed in 40 C.F.R. Part 136 and amendments thereto, unless otherwise specified in an applicable categorical pretreatment standard. If 40 C.F.R. Part 136 does not contain sampling or analytical techniques for the pollutant in question, or where the EPA determines that the Part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analyses shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by the director or other parties approved by the EPA.

(l) *Sample collection.* Samples collected to satisfy reporting requirements must be based on data obtained through appropriate sampling and analysis performed during the period covered by the report, based on data that is representative of conditions occurring during the reporting period. The director will prescribe a sampling protocol that produces representative results and takes into consideration all of the operation conditions and the physical configuration of the IU facility.

(1) Except as indicated in items 2 and 3 below, the user must collect wastewater samples using 24-hour flow-proportional composite sampling techniques, unless time-proportional composite sampling or grab sampling is authorized by the director. Where time-proportional composite sampling or grab sampling is authorized by the director, the samples must be representative of the discharge and collected during the portion of the 24-hour period that the IU is discharging from the regulated process(es) and or pretreatment unit. Using protocols (including appropriate preservation) specified in 40 C.F.R. Part 136 and appropriate EPA guidance, multiple grab samples collected during a 24-hour period may be composited prior to the analysis as follows: for cyanide, total phenols, and sulfides, the samples may be composited in the laboratory or in the field; for volatile organics, the samples may be composited in the laboratory. Composite samples for parameters unaffected by the compositing procedures as documented in approved EPA methodologies may be authorized by the director, as appropri-

ate. In addition, the director may require grab samples to demonstrate compliance with instantaneous limits.

(2) Samples for oil and grease, total residual chlorine, temperature, pH, cyanide, total phenols, sulfides, and volatile organic compounds must be obtained using grab collection techniques. Samples for total residual chlorine, pH, and temperature cannot be composited under any circumstances.

(3) For sampling required in support of baseline monitoring and 90-day compliance reports required in sections 47-192(a) and 47-192(c) of this article, a minimum of four grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide and volatile organic compounds for facilities for which historical sampling data do not exist; for facilities for which historical sampling data are available, the director may authorize a lower minimum. Where there has been a change to existing IUs, for example, the addition of treatment, historic data that does not represent the current discharge may not be used to justify a lower minimum number of grab samples. For the reports required by section 47-192(d) of this article, the user is required to collect the number of grab samples necessary to assess and assure compliance with applicable pretreatment standards and requirements.

(m) *Date of receipt of reports.* Written reports will be deemed to have been submitted on the date postmarked. For reports that are not mailed, the date of receipt of the report shall govern. If the user's industrial waste permit authorizes electronic reporting, the date of receipt shall be as established in the electronic reporting provision of the permit.

(n) *Recordkeeping.* Users subject to the reporting requirements of this article shall retain, and make available to the director for inspection and copying, all records of information obtained pursuant to any monitoring activities required by this article, any additional records of information obtained pursuant to monitoring activities undertaken by the user independent of such requirements, and documentation associated with best management practices established under subsection 47-188(d)(3) of this article. Records shall include the date, exact place, method, and time of sampling, and the name of the person taking the samples; the dates analyses were performed; who performed the analyses; the analytical techniques or methods used; and the results of such analyses. These records shall remain available for a period of at least three years. This period shall be automatically extended for the duration of any litigation concerning the user or the city, or where the user has been specifically notified of a longer retention period by the director.

Dental dischargers must maintain the one-time compliance report required by section 47-192(g) of this article and make it available for inspection by the director in either physical or electronic form as long as the dental discharger is in operation or until ownership is transferred. Dental dischargers must maintain on site and make available for inspection (in either physical or electronic form) for a period of three years:

(1) Documentation of the date, person conducting the inspection, and results of each inspection of the amalgam separator or equivalent device and a summary of follow-up actions, if needed, as specified in 40 C.F.R. § 441.30 or 40 C.F.R. § 441.40, including records of visual inspections of the amalgam separator to ensure that the device is not in bypass mode;

(2) Documentation of amalgam retaining container or equivalent container replacement including the date;

(3) Documentation of all dates that collected dental amalgam is picked up or shipped for proper disposal in accordance with 40 C.F.R. § 261.5(g)(3), and the name of the permitted or licensed treatment, storage, or disposal facility receiving the amalgam retaining containers;

(4) Documentation of any repair or replacement of an amalgam separator or

equivalent device, including the date, person making the repair or replacement, and a description of the repair or replacement (including make and model); and

(5) The manufacturer's operating manual for the amalgam separator or equivalent device.

The city shall maintain records of all information resulting from any monitoring activities required by this article, including documentation associated with BMPs. These records shall be available for a period of at least three years. This period shall be automatically extended for the duration of any litigation concerning the user or the city.

(o) *Certification statements—Certification of permit applications and user reports.* The following certification statement is required to be signed and submitted by users submitting permit applications in accordance with section 47-190(g) of this article; users submitting baseline monitoring reports under subsection 47-192(a)(2)e of this article; users submitting reports on compliance with the categorical pretreatment standard deadlines under section 47-192(c) of this article; users submitting periodic compliance reports required by section 47-192(d) of this article; and dental dischargers submitting compliance reports required by section 47-192(g) of this article. The following certification statement must be signed by an authorized representative of the user as defined in section 47-187(d) of this article:

I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.

(Ord. No. 2020-1024, § 2(Exh. A), 12-2-2020)

Sec. 47-193. Compliance monitoring.

The director shall have the right to enter the premises of any user to determine whether the user is complying with all requirements of this article and any individual wastewater discharge permit or general permit or order issued hereunder. Users shall allow the director ready access to all parts of the premises for the purposes of inspection, sampling, records examination and copying, and the performance of any additional duties.

(1) *Right of entry: inspection and sampling.*

a. Whenever it is necessary for the purposes and objectives of this article, the director may enter upon any user's facility, property, or premises subject to this article for the purpose of:

1. Performing all inspection, surveillance, and monitoring procedures necessary to determine, independent of information supplied by users, compliance or noncompliance with applicable pretreatment standards and requirements by a user. Compliance monitoring and inspection shall be conducted at a frequency as determined by the director and may be announced or unannounced;

2. Examining and copying any records required to be kept under the provisions of this article or of any other local, state or federal regulation;

3. Inspecting any monitoring equipment or method, pretreatment system equipment and/or operation;

4. Sampling any discharge of wastewater into POTW; and/or

5. Inspecting any production, manufacturing, fabricating or storage area where pollutants, regulated under this article, could originate, be stored, or be discharged to the POTW.

b. The occupant of such property or premises shall render all proper assistance in such activities. Where a user has security measures which require proper identification and clearance before entry into its premises, the user shall make necessary arrangements with its security guards so that, upon presentation of suitable identification, the director shall be permitted to enter without delay for the purposes of performing specific responsibilities.

c. The director shall have the right to set up on the user's property, or require installation of, devices necessary to conduct sampling and/or metering of the user's operations. The director may require the user to provide multiple sampling facilities at the end of each industrial process and at a final, end-of-pipe, combined flow location to determine compliance with the user's permit and this article.

d. The city may use a camera to photograph or video record any areas of the facility as deemed necessary for carrying out the duties of the pretreatment program including, but not limited to, documentation of the user's compliance status and for reinforcement of required written reports. The user shall be allowed to review copies of photographs for confidentiality claims.

e. Any temporary or permanent obstruction to safe and easy access to the facility to be inspected and/or sampled shall be promptly removed by the user at the written or verbal request of the director and shall not be replaced. The costs of clearing such access shall be borne by the user.

f. Failure to allow entry or unreasonable delays in allowing the director access to the user's premises shall be a violation of this article. Any delay exceeding 10 minutes shall be considered unreasonable. Obstructions to the safe and easy access to any portion of the facility including sampling locations shall be a violation of this article and warrant revocation of the user's permit.

g. The director shall assess the strength and concentration of the waste discharged to the sanitary sewer system unless an alternate sampling method or criteria is required by a permit, permit application, enforcement action, or other directive of the director. Tests made on representative samples collected by the director shall be made at such intervals as the director may designate.

h. For evaluating compliance with any pretreatment standard or requirement, the director may use any sampling location from which samples will either directly or indirectly represent a user's discharge. If a sampling location includes dilution, such as domestic wastewater, infiltration, inflow, or storm water, and if samples at this location violate an applicable limit, then the director may conclude that process wastewater discharged at an upstream location was the cause of the violation. The director may use sample collection techniques or analytical methods that bias sample results low as a basis for enforcement action, such as composite samples for pollutants for which grab samples are normally used. The director may use sampling locations, sample collection techniques,

or analytical methods other than those established in an industrial waste permit for compliance determination. In particular, the director may perform monitoring at the control manhole to determine compliance with local discharge limits.

(2) *Search warrants.* If the director has been refused access to a building, structure, or property, or any part thereof, and is able to demonstrate probable cause to believe that there may be a violation of this article, or that there is a need to inspect and/or sample as part of a routine inspection and sampling program of the city designed to verify compliance with this article or any permit or order issued hereunder, or to protect the overall public health, safety and welfare of the community, the director may seek issuance of a search warrant from a magistrate through the Environmental Crimes Division of the Harris County District Attorney's Office.

In the event the city has reason to believe a situation represents an imminent threat to public health and safety or the environment, and where entry has been denied or the area is inaccessible, an agent of the city may enter in the company of a uniformed peace officer, before a requested warrant has been produced, in order to determine if the suspected situation exists, and if so, to take such actions necessary to protect the public.
(Ord. No. 2020-1024, § 2(Exh. A), 12-2-2020)

Sec. 47-194. Confidential information.

(a) *Confidential information.* An industrial user who asserts the trade secret exception to public disclosure under Chapter 552 of the Texas Government Code (the Public Information Act) for any document they submit to the city must clearly mark or stamp the words "confidential business information" on each page that contains information the industrial user considers proprietary. The city shall make all information in a submission by an industrial user that is not so marked available to the public upon request without further notice. If an industrial user asserts that any portion of their submission may be excepted from public disclosure, the information will be treated in accordance with the procedures described in section 552.305 of the Texas Government Code.

(b) *Effluent data.* Information and data provided to the city under Subsection (a) of this section that is effluent data will be available to the public without restriction.

(c) *Other information.* All other information submitted to the city shall be available to the public at least to the extent provided by 40 C.F.R. § 2.302.
(Ord. No. 2020-1024, § 2(Exh. A), 12-2-2020)

Sec. 47-195. Publication of users in significant noncompliance (SNC).

The director shall publish annually, in a newspaper that provides meaningful public notice within the jurisdictions served by the city, a list of the users which, at any time during the previous 12 months, were in SNC with applicable pretreatment standards and requirements. A SIU (or any user which violates items (3), (4), or (8) of this section) is in significant noncompliance if its violation meets one or more of the following criteria:

(1) Chronic violations of wastewater discharge limits, defined here as those in which 66 percent or more of all the measurements taken for the same pollutant parameter taken during a six month period exceed (by any magnitude) a numeric pretreatment standard or requirement, including instantaneous limits as defined in section 47-188 of this article;

(2) Technical review criteria (TRC) violations, defined here as those in which 33 percent or more of wastewater measurements taken for each pollutant parameter during a six month period equals or exceeds the product of the numeric pretreatment standard or requirement including instantaneous limits, as defined by section 47-188 of this article multiplied by the applicable criteria (1.4 for BOD,

TSS, fats, oils and grease, and 1.2 for all other pollutants except pH, TRC criteria do not apply to pH);

(3) Any other violation of a pretreatment standard or requirement as defined by section 47-188 of this article (daily maximum, long-term average, instantaneous limit, or narrative standard) that the director determines has caused, alone or in combination with other discharges, interference or pass through, including endangering the health of POTW personnel or the general public;

(4) Any discharge of a pollutant that has caused imminent endangerment to the public or to the environment, or has resulted in the director's exercise of its emergency authority to halt or prevent such a discharge;

(5) Failure to meet, within 90 days of the scheduled date, a compliance schedule milestone contained in an individual wastewater discharge permit or a general permit or enforcement order for starting construction, completing construction, or attaining final compliance;

(6) Failure to provide within 45 days after the due date, any required reports, including baseline monitoring reports, reports on compliance with categorical pretreatment standard deadlines, periodic self-monitoring reports, and reports on compliance with compliance schedules;

(7) Failure to accurately report noncompliance; or

(8) Any other violation(s), which may include a violation of best management practices, which the director determines will adversely affect the operation or implementation of the local pretreatment program.

(Ord. No. 2020-1024, § 2(Exh. A), 12-2-2020)

Sec. 47-196. Administrative enforcement remedies.

(a) *Notification of violation.* When the director finds that a user has violated, or continues to violate, any provision of this article, an individual wastewater discharge permit, or a general permit or order issued hereunder, or any other pretreatment standard or requirement, the director may serve upon that user a written notice of violation. Within the timeframe specified in such notice, an explanation of the cause of the violation and a plan for the satisfactory correction and prevention thereof, to include specific required actions, shall be submitted by the user to the director. Submission of such a plan in no way relieves the user of liability for any violations occurring before or after receipt of the notice of violation. Failure to comply with a notice of violation will result in escalated enforcement, including but not limited to termination of utility service in accordance with the remedies provided in this article. Nothing in this section shall limit the authority of the director to take any action, including emergency actions or any other enforcement action, without first issuing a notice of violation.

(b) *Consent/agreed orders.* The director may enter into consent orders, assurances of compliance, or other similar documents establishing an agreement with any user responsible for noncompliance. Such documents shall include specific action to be taken by the user to correct the noncompliance within a time period specified by the document. Such documents shall have the same force and effect as the administrative orders issued pursuant to sections 47-196(d) and (e) of this article and shall be judicially enforceable.

(c) *Show cause hearing.* The director may order a user who has violated, or continues to violate, any provision of this article, an individual wastewater discharge permit, or a general permit or order issued hereunder, or any other pretreatment standard or requirement, to appear before the director and show cause why a termination of water/wastewater service notice should not be issued. Notice shall be served on the user specifying the time and place for the meeting, the reasons for such action, and a request that the user show cause why a termination of water/wastewater service notice should not be issued. Such notice may be served on any authorized representative of the user or designated facility

contact person. A show cause hearing shall not be a bar against, or prerequisite for, taking any other action against the user.

(d) *Administrative compliance orders.* When the director finds that a user has violated, or continues to violate, any provision of this article, an individual wastewater discharge permit, or a general permit or order issued hereunder, or any other pretreatment standard or requirement, the director may issue an order to the user responsible for the discharge directing that the user come into compliance within a specified time. If the user does not come into compliance within the time provided, sewer service may be discontinued unless adequate treatment facilities, devices, or other related appurtenances are installed and properly operated. Compliance orders also may contain other requirements to address the noncompliance, including the installation of pretreatment facilities and additional self-monitoring and management practices designed to minimize the amount of pollutants discharged to the sanitary sewer system. A compliance order may not extend the deadline for compliance established for a pretreatment standard or requirement, nor does a compliance order relieve the user of liability for any violation, including any continuing violation. Issuance of a compliance order shall not be a bar against, or a prerequisite for, taking any other action against the user. Failure to comply with any terms or requirements of a compliance order by the user shall be a basis for termination of wastewater services.

(e) *Cease and desist orders.* When the director finds that a user has violated, or continues to violate, any provision of this article, an individual wastewater discharge permit, or a general permit or order issued hereunder, or any other pretreatment standard or requirement, or that the user's past violations are likely to recur, the director may issue an order to the user directing it to cease and desist all such violations and directing the user to:

(1) Immediately comply with all requirements; and

(2) Take such appropriate remedial or preventive action as may be needed to properly address a continuing or threatened violation, including halting operations and/or terminating the discharge. Issuance of a cease and desist order shall not be a bar against, or a prerequisite for, taking any other action against the user.

(f) *Administrative fines.*

(1) When the director finds that a user has violated, or continues to violate, any provision of this article, an individual wastewater discharge permit, or a general permit or order issued hereunder, or any other pretreatment standard or requirement, the director may fine such user in an amount not to exceed $2,000 including the costs of preparing administrative enforcement actions, such as notices and orders. Such fines shall be assessed on a per-violation, per-day basis. Each day of violation shall constitute a separate offense. In the case of monthly or other long-term average discharge limits, fines shall be assessed for each day during the period of violation.

(2) When the director finds that a user has introduced or continues to introduce any substance into the POTW which causes personal injury or property damage shall, upon conviction, be guilty of a misdemeanor and be subject to a penalty of not more than $4,000.00. Each day that said violation shall continue shall constitute a separate offense. This penalty shall be in addition to any other cause of action for personal injury or property damage available under state law.

(3) Unpaid charges, fines, and penalties shall, after 30 calendar days, be assessed an additional penalty of ten percent of the unpaid balance, and interest shall accrue thereafter at a rate of five percent per month. Disconnection of water and/or wastewater service may result if the city does not receive full payment of the fines and penalties within 90 calendar days of the due date.

(4) Issuance of an administrative fine shall not be a bar against, or a prerequisite for, taking any other action against the user.

(g) *Emergency suspensions.* The director may immediately suspend a user's discharge, after informal (e.g., verbal) notice to the user, whenever such suspension is necessary to stop an actual or threatened discharge, which reasonably appears to present, or cause a potential imminent or substantial endangerment to the health or welfare of persons, the environment, or the POTW.

(1) Any user notified of a suspension of its discharge shall immediately stop or eliminate its contribution. In the event of a user's failure to immediately comply voluntarily with the suspension order, the director may take such steps as deemed necessary, including immediate severance of the sewer connection, to prevent or minimize damage to the POTW, its receiving stream, or endangerment to any individuals. The director may allow the user to recommence its discharge when the user has demonstrated to the satisfaction of the director that the period of endangerment has passed unless the termination proceedings in sections 47-196(h) of this article are initiated against the user.

(2) A user that is responsible, in whole or in part, for any discharge presenting imminent endangerment shall submit a detailed written statement describing the causes of the harmful contribution and the measures taken to prevent any future occurrence to the director prior to the date of any show cause or termination hearing under section 47-196(c) or 47-196(h) of this article.

Nothing in subsection (g) of this section shall be interpreted as requiring a hearing prior to any emergency suspension under this section.

(h) *Termination of discharge.* In addition to the provisions in section 47-191(f) of this article, any user who violates the following conditions is subject to discharge termination:

(1) Violation of any individual wastewater discharge permit or general permit conditions;

(2) Failure to accurately report the wastewater constituents and characteristics of its discharge;

(3) Failure to report significant changes in operations or wastewater volume, constituents, and characteristics prior to discharge;

(4) Refusal to provide the director with reasonable access to the user's premises for the purpose of inspection, monitoring, or sampling in accordance with subsections 47-191(b)(1)g and 47-191(f)(6); or

(5) Violation of the pretreatment standards in section 47-188 of this article.

The director shall notify a user of the proposed termination of its discharge. A user who is subject to a termination order shall be offered an opportunity to appeal the termination notice. An appeal request shall be received by the industrial wastewater service within ten calendar days of the termination notice. Exercise of discharge termination by the director shall not be a bar to, or a prerequisite for, taking any other action against the user.

(i) *Compliance conference.* When the director finds that a user has violated, or continues to violate, any provision of this article, an individual wastewater discharge permit, or a general permit or order issued hereunder, or any other pretreatment standard or requirement, the director may serve upon that user a written notice to attend a compliance conference. At the date and time specified in such notice, the user shall appear at the offices of the industrial wastewater service to discuss the cause of the noncompliance and corrective actions. Failure to attend a compliance conference may result in escalated enforcement, including but not limited to termination of utility service in accordance with the remedies provided in this article. Issuance of a compliance conference notice shall not be a bar against, or a prerequisite for, taking any other action against the user.

(Ord. No. 2020-1024, § 2(Exh. A), 12-2-2020; Ord. No. 2021-431, § 9, 5-26-2021)

Sec. 47-197. Judicial enforcement remedies.

(a) *Injunctive relief.* When the director finds that a user has violated, or continues to violate, any provision of this article, an individual

wastewater discharge permit, or a general permit or order issued hereunder, or any other pretreatment standard or requirement, the director may request that the city attorney file a civil suit in a court of competent jurisdiction to enjoin, temporarily or permanently, as appropriate, the violation of any of the provisions of this article, the individual wastewater discharge permit, the general permit, the order, or other requirement imposed by this article on activities of the user. The director may also seek such other action as is appropriate for legal and/or equitable relief, including a requirement for the user to conduct environmental remediation. A petition for injunctive relief shall not be a bar against, or a prerequisite for, taking any other action against a user.

(b) *Civil penalties.*

(1) A user who has violated, or continues to violate, any provision of this article, an individual wastewater discharge permit, or a general permit or order issued hereunder, or any other pretreatment standard or requirement shall be liable to the city for a maximum civil penalty of $2,000.00 per violation. Each day that said violation shall continue shall constitute a separate offense. In the case of a monthly or other long-term average discharge limit, penalties shall accrue for each day during the period of the violation.

(2) A user who knowingly introduces any substance into the POTW which causes personal injury or property damage shall, upon conviction, be guilty of a misdemeanor and be subject to a penalty of not more than $4,000.00. Each day that said violation shall continue shall constitute a separate offense. This penalty shall be in addition to any other cause of action for personal injury or property damage available under state law.

(3) The city may recover reasonable attorneys' fees, court costs, and other expenses associated with enforcement activities, including sampling and monitoring expenses, the cost of any actual damages incurred by the city, or any other costs incurred by the city in association with the enforcement activities.

(4) In determining the amount of civil liability, the judge or jury shall take into account all relevant circumstances, including, but not limited to, the extent of harm caused by the violation, the magnitude and duration of the violation, any economic benefit gained through the user's violation, corrective actions by the user, the compliance history of the user, and any other factor as justice requires.

(5) Filing a suit for civil penalties shall not be a bar against, or a prerequisite for, taking any other action against a user.

(c) *Criminal prosecution.*

(1) A user who knowingly or criminally violates any provision of this article, an individual wastewater discharge permit, or a general permit or order issued hereunder, or any other pretreatment standard or requirement shall, upon conviction, be guilty of a misdemeanor, punishable by a fine of not less than $300.00, nor more than $2,000.00 per violation. Each day that said violation shall continue shall constitute a separate offense.

(2) A user who introduced or continues to introduce any substance into the POTW which causes personal injury or property damage shall, be liable to the city for a maximum civil penalty of $4,000.00. Each day that said violation shall continue shall constitute a separate offense. This penalty shall be in addition to any other cause of action for personal injury or property damage available under state law.

(3) A user who knowingly or criminally introduces any substance into the POTW which causes personal injury or property damage shall, upon conviction, be guilty of a misdemeanor and be subject to a penalty of not more than $2,000.00. Each day that said violation shall continue

shall constitute a separate offense. This penalty shall be in addition to any other cause of action for personal injury or property damage available under state law.

(4) A user who knowingly makes any false statements, representations, or certifications in any application, record, report, plan, or other documentation filed, or required to be maintained, pursuant to this article, individual wastewater discharge permit, or general permit or order issued hereunder, shall, upon conviction, be punished by a fine of not less than $500.00, nor more than $2,000.00 per violation. Each day that said violation shall continue shall constitute a separate offense.

(5) A user who knowingly falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required under this article shall, upon conviction, be punished by a fine of not less than $500.00, nor more than $2,000.00 per violation. Each day that said violation shall continue shall constitute a separate offense.

(6) In the event of a second conviction, a user shall be punished by a fine of not more than $2,000 per violation. Each day that said violation shall continue shall constitute a separate offense.

(d) *Remedies nonexclusive.* The remedies provided for in this article are not exclusive. The director may take any, all, or any combination of these actions against a noncompliant user. Enforcement of pretreatment violations will be in accordance with the city's enforcement response plan. However, the director may take a more stringent action against any user when the circumstances warrant.

(Ord. No. 2020-1024, § 2(Exh. A), 12-2-2020; Ord. No. 2021-431, §§ 10, 11, 5-26-2021)

Sec. 47-198. Supplemental enforcement action.

(a) *Performance bonds.* The director may decline to issue or reissue an individual wastewater discharge permit or a general permit to any user who has failed to comply with any provision of this article, a previous individual wastewater discharge permit, or a previous general permit or order issued hereunder, or any other pretreatment standard or requirement, unless such user first files a satisfactory bond, payable to the city, in a sum not to exceed a value determined by the director to be necessary to achieve consistent compliance.

(b) *Liability insurance.* The director may decline to issue or reissue an individual wastewater discharge or a general permit to any user who has failed to comply with any provision of this article, a previous individual wastewater discharge permit, or a previous general permit or order issued hereunder, or any other pretreatment standard or requirement, unless the user first submits proof that it has obtained and provided financial assurances acceptable to the director, such as liability insurance, for the restoration or repair of damage to the POTW caused by the user's discharge.

(c) *Payment of outstanding fees and penalties.* The director may decline to issue or reissue an individual wastewater discharge permit or a general permit to any user who has failed to pay any outstanding fees, fines or penalties incurred as a result of any provision of this article, a previous individual wastewater discharge permit, or a previous general permit or order issued hereunder.

(d) *Water supply severance.* Whenever a user has violated or continues to violate any provision of this article, an individual wastewater discharge permit, a general permit, or order issued hereunder, or any other pretreatment standard or requirement, water service to the user may be severed. Service will recommence, at the user's expense, only after the user has satisfactorily demonstrated to the director its ability to comply.

(e) *Public nuisances.* A violation of any provision of this article, an individual wastewater discharge permit, a general permit, or order issued hereunder, or any other pretreatment standard or requirement is hereby declared a public nuisance and shall be corrected or abated as directed by the director. Any person creating a public nuisance shall be subject to the provisions

of the chapter 10 of this article governing such nuisances, including, but not limited to, reimbursing the city for any costs incurred in removing, abating, or remedying said nuisance.
(Ord. No. 2020-1024, § 2(Exh. A), 12-2-2020)

Sec. 47-199. Affirmative defenses to discharge violations.

(a) *Act of God defense.*

(1) The Act of God defense constitutes a statutory affirmative defense [Texas Water Code § 7.251] in an action brought in municipal or state court. If a person can establish that an event that would otherwise be a violation of a pretreatment ordinance, or a permit issued under the ordinance, was caused solely by an act of God, war, strike, riot, or other catastrophe, the event is not a violation of the ordinance or permit.

(2) A user who wishes to establish the Act of God affirmative defense shall demonstrate, through relevant evidence that:

a. An event that would otherwise be a violation of a pretreatment ordinance

or a permit issued under the ordinance occurred, and the sole cause of the event was an act of God, war, strike, riot, or another catastrophe; and

b. The user has submitted the following information to the POTW and the city within 24 hours of becoming aware of the event that would otherwise be a violation of a pretreatment ordinance or a permit issued under the ordinance (if this information is provided orally, a written submission must be provided within five days):

1. A description of the event, and the nature and cause of the event;

2. The time period of the event, including exact dates and times or, if still continuing, the anticipated time the event is expected to continue; and

3. Steps being taken or planned to reduce, eliminate and prevent recurrence of the event.

(3) Burden of proof. In any enforcement proceeding, the user seeking to establish the Act of God affirmative defense shall have the burden of proving by a preponderance of the evidence that an event that would otherwise be a violation of a pretreatment ordinance, or a permit issued under the ordinance, was caused solely by an act of God, war, strike, riot or other catastrophe.

(b) *Bypass.*

(1) *Definitions.* For the purposes of this section:

Bypass means the intentional diversion of wastestreams from any portion of a user's treatment facility.

Severe property damage means substantial physical damage to property, damage to the treatment facilities which causes them to become inoperable, or substantial and permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production.

(2) A user may allow any bypass to occur which does not cause pretreatment standards or requirements to be violated, but only if it is also for essential maintenance to assure efficient operation. The user seeking to establish that the discharge does not violate pretreatment standards and requirements shall have the burden of proof. These bypasses are not subject to the provisions of item (4) of this subsection.

(3) *Bypass notifications.*

a. If a user knows in advance of the need for a bypass, it shall submit prior notice to the director, at least ten days before the date of the bypass, if possible.

b. A user shall submit verbal notice to the director of an unanticipated bypass within 24 hours from the time it becomes aware of the bypass. User shall submit a written notice within five days of the time the user becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact dates and times, and, if the bypass has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the bypass. The director may waive the written report on a case-by-case basis if the verbal report has been received within 24 hours.

(4) *Bypass.*

a. Bypass is prohibited, and the director may take an enforcement action against a user for a bypass, unless the user can demonstrate that

1. Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage;

2. There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventive maintenance; and

3. The user submitted notices as required under item (3) of this subsection.

b. The director may approve an anticipated bypass, after considering its adverse effects, if the director determines that it will meet the three conditions listed in item (4)a of this subsection.

(Ord. No. 2020-1024, § 2(Exh. A), 12-2-2020)

Sec. 47-200. Wastewater treatment rates.

User charges for sanitary sewer service shall be calculated and applied in accordance with the provisions of article III of this chapter, as amended.

(1) The director, without prior notice, may take samples and perform tests, and the results of the tests shall be used to calculate the applicable user charge established in article III of this chapter. Provided, however, a user may request in writing permission to conduct self-monitoring through an independent laboratory to be used in combination with the city's sample results to determine the user charge. The director may grant such a request and accept the results of the user's self-monitoring if the user provides documentation in the format required by the director showing that proper chain of custody was followed, and that sampling and analysis were conducted in accordance with item (2) of this section. All costs of such sampling and analyses for self-monitoring shall be borne by the user. Approval of sampling and analysis performed by an independent laboratory does not restrict the director from collecting additional samples without prior notice to the user. Submission of any self-monitoring analyses that are not representative of the process wastewater discharge shall be the basis for termination of utility service.

(2) Sampling and analysis shall be conducted in accordance with the requirements of 40 C.F.R. Part 136, as amended.

(3) The director may make periodic tests of waste being discharged into the city sewer from the premises of a user under the provisions of this section.

(4) The director may develop other unit charges and calculate a surcharge for wastewater using flow rates and strengths or concentrations for other pollutants discharged to recover wastewater treatment and other applicable costs as deemed necessary and appropriate.

(Ord. No. 2020-1024, § 2(Exh. A), 12-2-2020)

Sec. 47-201. Quantity determination.

Except as may otherwise be provided in article III of this chapter, the quantity of waste delivered to the sanitary sewer system will be presumed to be substantially the same as the quantity of water delivered to the user or user's facility by the city water system.

(Ord. No. 2020-1024, § 2(Exh. A), 12-2-2020)

Sec. 47-202. Miscellaneous provisions.

(a) *Pretreatment charges and fees.* The city may adopt reasonable fees for reimbursement of costs of setting up and operating the city's pretreatment program, which may include:

(1) Fees for wastewater discharge permit applications including the cost of processing such applications;

(2) Fees for monitoring, inspection, and surveillance procedures including the cost of collection and analyzing a user's

discharge, and reviewing monitoring reports and certification statements submitted by users;

(3) Fees for reviewing and responding to accidental discharge procedures and construction;

(4) Fees for filing appeals;

(5) Fees to recover administrative and legal costs associated with the enforcement activity taken by the director to address IU noncompliance; and

(6) Other fees as the city may deem necessary to carry out the requirements contained herein. These fees relate solely to the matters covered by this article and are separate from all other fees, fines, and penalties chargeable by the city.

(b) *Indemnification.* Each user shall indemnify and hold harmless the city from any liability, claims of loss of business, property damage to city facilities, extra costs for wastewater treatment, and civil, criminal, or administrative penalties due to or caused by a discharge of wastewater in violation of this article. The city attorney or his designee shall prescribe the form of the indemnity agreement to be included in the permit application.

(c) *Compliance with Construction Code.* Any person who proposes to construct, effect, maintain, modify or use a sewer system extension or connection must do so in accordance with all applicable construction codes including building permits and the purchase of water and wastewater capacity.
(Ord. No. 2020-1024, § 2(Exh. A), 12-2-2020)

Sec. 47-203. Electronic reporting.

Users that send electronic documents to the director to satisfy the requirements of this article must certify and submit each report in compliance with:

(1) An electronic signature agreement (as defined in 40 C.F.R. § 3.3 as amended) on file with the director; and

(2) All other procedures and requirements of an electronic document receiving system authorized to accept such records in accordance with 40 C.F.R. Part 3.
(Ord. No. 2020-1024, § 2(Exh. A), 12-2-2020)

Secs. 47-204—47-220. Reserved.

ARTICLE VI. SEWER AND DRAIN CONTRACTORS

Sec. 47-221. License required; fee.

It shall be unlawful for any person to perform the work or supervise the laying of privately constructed sanitary or storm sewers in the city without first obtaining a license to do so from the utility official; provided, that no license for drain laying shall be required for anyone holding a master plumbers license. The person obtaining such license pursuant to the provisions of this division shall pay to the utility official the sum stated for this provision in the city fee schedule for such annual license; provided, that if said license is issued after January of any year, the license fee shall be for such proportionate part of the year, computed from the first day of the month from which the same is issued.
(Code 1968, § 49-201; Ord. No. 72-793, § 1, 5-10-72; Ord. No. 90-635, § 153, 5-23-90; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 47-222. Transfer of license; use by another.

It shall be unlawful for any person holding a drain layer's license issued hereunder to transfer it or allow its use, directly or indirectly, by any person for the purpose of obtaining a permit to do any work specified in this article.
(Code 1968, § 49-202; Ord. No. 72-793, § 1, 5-10-72)

Sec. 47-223. Application for license; persons eligible.

The utility official shall issue a drain layer's license to any person who makes application and satisfies such official:

(1) That he is thoroughly familiar with the ordinances of the city related to sewer

construction and with the current "City of Houston Specifications for Sewer Construction" together with the current amendments thereto; and

(2) That he agrees to carry out all sewer construction in accordance therewith; and

(3) That he agrees to secure a permit from the city for each job before starting construction thereof; and

(4) That he agrees to personally supervise all work constructed under permits issued to him; and

(5) That he is experienced in the work of drain laying by submitting a summary of his working experience in this area together with at least three references as to his qualifications.

(Code 1968, § 49-203; Ord. No. 72-793, § 1, 5-10-72; Ord. No. 90-635, § 153, 5-23-90)

Sec. 47-224. Suspension of license.

Bad faith or unreasonable delay in the performance of drain laying work shall be deemed sufficient reason for suspending the license of a drain layer and each licensee is held responsible for the violation of regulations governing such work by laborers and helpers employed by him.
(Code 1968, § 49-204; Ord. No. 72-793, § 1, 5-10-72)

Sec. 47-225. Compliance with engineered plan, etc.

In laying storm or sanitary sewers within street rights-of-way and easements, the drain layer shall perform all work in accordance with an engineered plan approved by the city engineer. Work on private property shall be limited to storm sewers, which shall be performed as shown on an approved storm water drainage plan. The drain layer shall be authorized to clean out and repair storm or sanitary sewers provided that the herein stated property limitations are met.
(Code 1968, § 49-205; Ord. No. 72-793, § 1, 5-10-72; Ord. No. 90-635, § 165, 5-23-90; Ord. No. 93-514, § 125, 5-5-93)

Secs. 47-226—47-248. Reserved.

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ARTICLE VII. WATER SHORTAGES*

DIVISION 1. GENERAL

Sec. 47-249. Definitions.

As used in this article, the following words, terms, and phrases shall have the meanings ascribed to them in this section, unless the context clearly indicates another meaning:

Agricultural use has the same meaning as provided in section 47-89 of this Code.

Authorized governmental use means the use of city water by a governmental entity to flush any water line for public health and safety purposes, wet any surface for the purpose of testing for leaks in buildings or structures, or alleviate any conditions threatening the life, safety, or welfare of the public, including fire suppression.

Available treatment capacity means a calculation of how much city water can be produced and distributed by the city's functioning operations.

Baseline usage means the average of the highest city water usage by non-residential customers during three consecutive months within the 12-month period immediately preceding the declaration of:

(1) A stage two, three, or four water shortage period, whichever occurs first; or

(2) An emergency water shortage period.

City treated water distribution system includes, but is not limited to, any and all infrastructure used to convey, store, or deliver city water that has been processed to make it fit for its desired end use.

City water means water obtained directly or indirectly from infrastructure owned or operated by the city.

City water supply system includes, but is not limited to, any and all infrastructure used to convey, treat, store, or deliver city water.

Current water production means the city's daily combined surface water and groundwater production averaged over the most recent three-day period.

Combined total storage of surface water supply means the aggregate volume of water available to the city from reservoirs as calculated from the current elevations that are measured by the United States Geological Survey.

Customer has the same meaning as provided in section 47-61 of this Code.

Even-numbered street address means water service addresses ending in 0, 2, 4, 6, or 8 or ending in a fraction, letter, unit or suite number and 0, 2, 4, 6, or 8. For purposes of this definition, locations without addresses shall be deemed to have an even-numbered street address.

Multifamily residential customer has the same meaning as provided in section 47-61 of this Code.

Non-residential customer has the same meaning as provided in section 47-61 of this Code.

Odd-numbered street address means water service addresses ending in 1, 3, 5, 7, or 9 or in a fraction, letter, unit or suite number and 1, 3, 5, 7, or 9.

Outdoor use means the use of city water for:

(1) Aesthetic purposes, including ornamental, decorative, or scenic devices located outside a structure, including but not limited to fountains, reflecting pools, and water gardens;

(2) Irrigation, including the wetting and maintaining of planted areas, whether publicly or privately owned, including but not limited to lawns, gardens, golf courses, parks, athletic fields, public rights-of-way, and esplanades; notwithstanding the foregoing, for purposes of section 47-252 of this Code only, outdoor use for irrigation shall not include water

*__Editor's note__—Ord. No. 2012-997, § 2(Exh. A), adopted November 14, 2012, amended Ch. 47, Art. VII, in its entirety, to read as hereing set out. Formerly said article pertained to similar subject matter and derived from Ord. No. 01-753, § 3, 8-8-01. See also the Code Comparative Table.

administered by an individual human holding a hose with a diameter of one inch or less, a bucket, watering can or other similar device; or

(3) Other purposes that occur outside a structure, including but not limited to washing motor vehicles and other self-propelled vehicles and trailers; washing any impervious surface, including but not limited to sidewalks, driveways, parking lots, playing surfaces, buildings or structures; foundation watering; and filling or adding to any swimming pool, spa, or whirlpool.

(4) Outdoor use shall not include the required use of city water to *(i)* alleviate conditions threatening life, safety, or welfare of the public, including without limitation, fire suppression and emergency response; or *(ii)* comply with federal, state, or local laws or regulations.

Residential customer has the same meaning as provided in section 47-61 of this Code.

Single-family residential customer has the same meaning as provided in section 47-61 of this Code.

Water shortage period means the time during which any water shortage declaration is in effect.

(Ord. No. 2012-997, § 2(Exh. A), 11-14-2012)

Sec. 47-250. Administrative procedures.

The director may establish administrative procedures relating to the implementation of this article. A copy of the procedures shall be available for inspection in the offices of the utility official and on the department's website.

(1) The director shall establish a water information management plan that includes provisions to be implemented during each water shortage period. The director may use water billing statements, news and social media, and other sources to disseminate information regarding voluntary or mandatory water use measures to be imposed during each water shortage period for all customers and to advise customers that additional restriction measures may be imposed should water shortage periods escalate as provided by this article.

(2) The directors of each department in the city shall prepare department-specific water use reduction plans that will achieve the same or greater level of reduction in water use for each declared water shortage period and shall submit the plans to the director on January 1 of each year. The water use reduction plans shall be implemented immediately upon the declaration of any water shortage period and shall remain in effect until the conclusion of the water shortage period.

(Ord. No. 2012-997, § 2(Exh. A), 11-14-2012)

DIVISION 2. SHORTAGES AND EMERGENCIES

Sec. 47-251. Stage one water shortage; abnormal conditions; voluntary restrictions targeted to reduce overall water use by five percent.

(a) A stage one water shortage is a period of time that begins when the director finds that the city's water supply system is under stress because of lower than average annual rainfall, temperatures that are higher or lower than normal, or other circumstances.

(b) The director's declaration, which may cover all or a portion of the city's water supply system, shall be in writing and filed with the city secretary. The declaration shall state that the city's overall water use reduction goal during a stage one water shortage is five percent. A stage one water shortage ends when the director finds that the abnormal conditions leading to the declaration either no longer exist, have been mitigated, or have been escalated, and the director files a written declaration to that effect with the city secretary.

(c) City departments' water use reduction plans shall be implemented immediately upon the declaration of a stage one water shortage period and shall remain in effect until the conclusion of the water shortage period.

(d) During a stage one water shortage, unless otherwise stated in the declaration, all customers are requested to take the following voluntary water use restriction measures:

(1) Check for and repair all leaks, dripping faucets, and running toilets;

(2) Check for and correct excessive irrigation or uncorrected leaks that result in city water leaving the customer's property by drainage onto adjacent properties or public or private roadways or streets or gutters; and

(3) Irrigate between 7:00 p.m. and 5:00 a.m. of the following day on no more than two days per week in conformity with the following schedule:

a. Sundays and Thursdays for single-family residential customers with even-numbered street addresses; and

b. Saturdays and Wednesdays for single-family residential customers with odd-numbered street addresses; and

c. Tuesdays and Fridays for all other customers.

(Ord. No. 2012-997, § 2(Exh. A), 11-14-2012)

Sec. 47-252. Stage two water shortage; severe conditions; certain mandatory restrictions targeted to reduce overall water use by ten percent.

(a) A stage two water shortage is a period of time that begins when, upon the recommendation of the director, the mayor declares a stage two water shortage upon finding that one or more of the following conditions exist that may impact all or a portion of the city's water supply system:

(1) Combined total storage of surface water supply is less than 24 months based on a calculated projection of monthly production of city water that includes historic production and information provided by customers;

(2) Combined total storage of surface water supply is less than 16 months, based on a calculated projection of current water production for the most recent 24-hour period;

(3) Current water production is 80 percent of the available treatment capacity;

(4) Loss of approximately 20 percent of available treatment capacity; or

(5) Water pressure readings of 45 pounds per square inch or less throughout all or material portions of the city's treated water distribution system.

(b) The declaration may cover all or a portion of the city's water supply system and shall be in writing and filed with the city secretary. The declaration shall state that the city's overall water use reduction goal during a stage two water shortage is ten percent. A stage two water shortage ends when the mayor declares, based on the recommendation from the director, that the severe conditions leading to the declaration either no longer exist, have been mitigated, or have been escalated, and the director files a written declaration to that effect with the city secretary.

(c) City departments' water use reduction plans shall be implemented immediately upon the declaration of a stage two water shortage period and shall remain in effect until the conclusion of the water shortage period.

(d) During a stage two water shortage, unless otherwise stated in the declaration, all classes of customers are subject to mandatory restrictions of outdoor use. During a stage two water shortage, outdoor use shall be unlawful with the exception of the following time periods as specified in the declaration:

(1) Between 7:00 p.m. and 5:00 a.m. of the following day on no more than two days per week in conformity with the following schedule:

a. Sundays and Thursdays for single-family residential customers with even-numbered street addresses; and

b. Saturdays and Wednesdays for single-family residential customers with odd-numbered street addresses; and

c. Tuesdays and Fridays for all other customers; or

(2) Between 7:00 p.m. and 5:00 a.m. of the following day on no more than one day per week in conformity with the following schedule:

a. Saturdays for single-family residential customers with odd-numbered addresses;

b. Sundays for single-family residential customers with even-numbered addresses; and

c. Tuesdays for all other customers.

(e) Any outdoor water use that results in city water leaving the customer's property by drainage onto adjacent properties or public or private roadways or streets or gutters shall be unlawful.
(Ord. No. 2012-997, § 2(Exh. A), 11-14-2012)

Sec. 47-253. Stage three water shortage; extreme conditions; mandatory reductions targeted to reduce overall water use by 20 percent.

(a) A stage three water shortage is a period of time that begins when, upon the finding of the director of an extreme shortage and the recommendation of the mayor, the city council declares a stage three water shortage upon finding that one or more of the following conditions exist that may impact all or a portion of the city's water supply system:

(1) Combined total storage of surface water supply is less than 18 monthsbased on a calculated projection of monthly production of city water that includes historic production and information provided by customers;

(2) Combined total storage of surface water supply is less than 12 months, based on a calculated projection of current water production for the most recent 24-hour period;

(3) Current water production is 85 percent of the available treatment capacity;

(4) Loss of approximately 25 percent of available treatment capacity; or

(5) Water pressure readings of 40 pounds per square inch or less throughout all or material portions of the city's treated water distribution system.

(b) The declaration may cover all or a portion of the city's water supply system and shall be in writing and filed with the city secretary. The declaration shall state that the city's overall water use reduction goal during a stage three water shortage is 20 percent. A stage three water shortage ends when, upon the recommendations of the director and the mayor, the city council finds that the extreme conditions leading to the declaration either no longer exist, have been mitigated, or have been escalated, and the city council files a written declaration to that effect with the city secretary.

(c) City departments' water use reduction plans shall be implemented immediately upon the declaration of a stage three water shortage period and shall remain in effect until the conclusion of the water shortage period.

(d) During a stage three water shortage, all outdoor use shall be unlawful except that customers may use city water to continue production and protect inventory of their primary business products.

(e) Immediately upon the declaration of a stage three water shortage, the city may claim force majeure to all of its existing water service contracts consistent with the terms of such water service contracts and in accordance with applicable state law.
(Ord. No. 2012-997, § 2(Exh. A), 11-14-2012)

Sec. 47-254. Stage four water shortage; exceptional conditions; mandatory rationing of city water targeted to reduce overall water use by 35 percent.

(a) A stage four water shortage is a period of time that begins when, upon the finding of the director of an exceptional shortage, and the rec-

ommendation of the mayor, the city council declares a stage four water shortage upon finding that one or more of the following conditions exist that may impact all or a portion of the city's water supply system:

(1) Combined total storage of surface water supply is less than 12 months, based on a calculated projection of monthly production of city water that includes historic production and information provided by customers;

(2) Combined total storage of surface water supply is less than six months, based on a calculated projection of current water production for the most recent 24-hour period;

(3) Current water production is 90 percent of the available treatment capacity; or

(4) Water pressure readings of 35 pounds per square inch or less throughout all or material portions of the city's treated water distribution system.

(b) The declaration may cover all or a portion of the city's water supply system and shall be in writing and filed with the city secretary. The declaration shall state that the city's overall water use reduction goal during a stage four water shortage is 35 percent. A stage four water shortage ends when, upon the recommendations of the director and the mayor, the city council finds that the exceptional conditions leading to the declaration either no longer exist or have been mitigated, and the city council files a written declaration to that effect with the city secretary.

(c) City departments' water use reduction plans shall be implemented immediately upon the declaration of a stage four water shortage period and shall remain in effect until the conclusion of the water shortage period.

(d) During a stage four water shortage, the following acts or omissions shall be unlawful:

(1) All outdoor use;

(2) Use of more than 4,000 gallons of city water per month by single-family residential customers;

(3) Use of more than 4,000 gallons of city water per month (used per unit, as provided in section 47-71 of this Code) by multifamily residential customers; and

(4) For all customers other than residential customers, failure to reduce use of city water by 15 percent of baseline usage, or any other percentage if recommended by the director and adopted by city council in the stage four water shortage declaration.

(e) During a stage four water shortage, the director may authorize a ten percent rate reduction for water usage to customers for reductions of city water use by 20 percent or more than those restrictions set forth in subsection (d) , except that the ten percent rate reduction shall not be available to customers whose average monthly usage during the preceding 12-month period was less than 4,000 gallons. The rate reduction for water usage shall be effective for the duration of the existing water shortage period.

(f) Immediately upon the declaration of a stage four water shortage, the city may claim force majeure to all of its existing water service contracts consistent with the terms of such water service contracts and in accordance with applicable state law.
(Ord. No. 2012-997, § 2(Exh. A), 11-14-2012)

Sec. 47-255. Emergency water shortage.

(a) An emergency water shortage is a period of time that begins when the director finds that there is an imminent threat to the capability of the city's water supply system to provide adequate service to assure the health or safety of the public, such as may result from a natural disaster, act of war or terrorism, or catastrophic system accident or failure. The declaration of a water emergency must be subsequently ratified within ten days following its declaration by the city council. An emergency water shortage ends when, upon the recommendation of the director, the city council finds that the conditions leading to the declaration no longer exist.

(b) During an emergency water shortage all provisions of sections 47-252, 47-253, and 47-254 shall apply.
(Ord. No. 2012-997, § 2(Exh. A), 11-14-2012)

DIVISION 3. ENFORCEMENT

Sec. 47-256. Variances.

(a) The utility official may grant in writing a temporary variance for an otherwise prohibited water use if the utility official determines that:

(1) Failure to grant the variance would cause an emergency condition immediately threatening the life, safety, welfare, or fire protection of the public, the person requesting the variance, or the environment; or

(2) The applicant cannot comply with the prohibition for technical reasons; or

(3) The applicant agrees to implement alternative methods that will achieve the same or a greater level of reduction in water use.

(b) An application for a variance shall be made in writing with the utility official and shall include the following:

(1) Name and address of the applicant;

(2) Purpose of water use;

(3) Specific provision(s) of this article from which the applicant is requesting relief;

(4) A detailed statement as to how the specific provision(s) of this article adversely affects the applicant or what damage or harm will occur to the applicant or others if the applicant complies with this article;

(5) Description of the relief requested;

(6) Period of time for which the variance is sought;

(7) Alternative water use restrictions or other measures the applicant is taking or proposes to take to conform to the provisions of this article and the compliance date; and

(8) Other pertinent information reasonably required by the utility official to determine whether the criteria of subsection (a) have been met.

(c) No variance shall be retroactive or otherwise justify any violation of the prohibitions hereunder occurring prior to the issuance of the variance. A variance is valid for only the declared water shortage period in existence at the time of issuance and shall expire at the conclusion of the existing water shortage period. If the conclusion of the existing water shortage period is immediately followed by a newly declared water shortage period, consisting of either more or less threatening conditions, a new application for a variance must be filed in accordance with subsection (b) of this section. Notwithstanding the foregoing, a variance may be applied retroactively if issued to a residential customer who is a member of a family consisting of five or more persons living in a single residential unit served by a single water meter.
(Ord. No. 2012-997, § 2(Exh. A), 11-14-2012)

Sec. 47-257. Penalties

(a) With the exception of customers with water service contracts, in accordance with section 54.001 of the Texas Local Government Code, any person who violates any provision of this article shall be guilty of an offense and upon conviction thereof, shall be punished by a fine of not less than $100.00 nor more than $2,000.00 for each violation. Each act of city water use in violation of this article shall constitute and be punishable as a separate offense. Each day that any violation continues shall constitute and be punishable as a separate offense. Unless another penalty is specifically provided by this Code or by state law, the penalty for violation of any provision of this article shall be as follows:

(1) *For violations of section 47-252 (stage two water shortage),* the department may issue a written warning to a customer for a first-time violation. Any subsequent violations are subject to a fine of $100.00 to $2,000.00.

(2) *For violations of section 47-253 (stage three water shortage),* the department may issue a written warning to a customer for a first-time violation. Any subsequent violations are subject to a fine of $500.00 to $2,000.00. Additionally, the director may monitor the water account of any cus-

tomer who has been convicted of a violation of section 47-253. Daily monitoring may continue through the end of the existing water shortage period. The director may turn off city water if a customer has violated the authorized water use during a stage three water shortage on three separate instances within a 30-day period. Water service may be reinstated to a customer after a termination only upon a) payment of all applicable fines and any outstanding water service charges; and b) agreeing to the maximum rate in existence, regardless of the customer's billing rate class, for all future water service provided during the 12 months immediately following the termination and filing such agreement in writing with the department.

(3) *Violations of section 47-254 (stage four water shortage)* are subject to fines of $1,000.00 to $2,000.00. Additionally, all customers exceeding the allowed water usage during a stage four water shortage by ten percent or more shall pay a 20 percent surcharge for the current and two subsequent billing periods. The director may also turn off city water if a customer has exceeded the authorized water use during a stage four water shortage on three separate instances within a 30-day period. Water service may be reinstated to a customer after termination only upon a) payment of all applicable fines and any outstanding water service charges; and b) agreeing to the maximum rate in existence, regardless of the customer's billing rate class, for all future water service provided during the 12 months immediately following the termination and filing such agreement in writing with the department.

(b) In the event that a customer with a water service contract engages in the unauthorized use of city water, the city shall have the right to pursue any and all rights and remedies allowed under existing contracts with customers, and any and all remedies allowed under Texas law.
(Ord. No. 2012-997, § 2(Exh. A), 11-14-2012)

Sec. 47-258. Affirmative defenses

(a) It is an affirmative defense to prosecution under sections 47-252, 47-253, and 47-254 that the water use was:

(1) Authorized by a variance issued under section 47-256; or

(2) An authorized governmental use.

(b) Additionally, it is an affirmative defense to prosecution under sections 47-252 and 47-253 that the water use was:

(1) For maintaining public gardens and arboretums of national, state, or regional significance when necessary to preserve specimens; or

(2) For agricultural use.

(c) It is an affirmative defense to prosecution under section 47-254 that the water use was:

(1) For the operation of a health care facility as defined in section 21-236 of this Code; however, no outdoor use by a health care facility is permitted during stage three and stage four water shortages; or

(2) For a multifamily residential customer that participates in an annual education program, approved by the utility official, that addresses at minimum water shortages.
(Ord. No. 2012-997, § 2(Exh. A), 11-14-2012)

Secs. 47-259—47-265. Reserved.

ARTICLE VIII. ABANDONMENT OF CITY-OWNED UTILITY FACILITIES

Sec. 47-266. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Customer* means any person who (or which) has applied to or contracted with the city for utility service from a facility and for whom (or for which) a tap or a connection has been installed.

(2) *Facility* means any line, pipe, valve, tank or similar facility which is owned by the city and used to provide water, sewer or gas service to any premises neither owned nor controlled by the city.

(3) *Substitute service line* means a new, replaced or relocated service line connecting the customer's premises to a city-owned meter, sewer line or other utility facility.

(Code 1968, § 49-601; Ord. No. 81-494, § 1, 3-17-81)

Sec. 47-267. Effect generally.

(a) No facility may be abandoned if the effect of such abandonment is to terminate utility service to any customer, except in compliance with this article.

(b) Abandonment shall not affect the city's ownership of any such facility, but instead shall only affect the then current use of such facility. Nor shall any such abandonment preclude or limit the right of the city to use such facility or any property where such a facility may be located for utility purposes at some time thereafter, either after repair or reconstruction or after replacement of the facility so abandoned.

(Code 1968, § 49-602; Ord. No. 81-494, § 1, 3-17-81)

Sec. 47-268. When authorized.

(a) A facility shall not be abandoned unless:

(1) The utility official first proposes such abandonment; and

(2) The facility is determined by the utility official to be surplus or is determined by a hearing examiner and the city council to be seriously substandard.

(b) A facility is surplus if no customer receives utility service directly from the facility.

(c) A facility is seriously substandard if:

(1) Because of age, wear or defects in materials or workmanship, the facility is subject to excessive leaks or sudden failure, or both;

(2) The facility lacks sufficient capacity to provide adequate service meeting general city standards for similarly situated facilities;

(3) The location of the facility aggravates problems of contamination of the facility or of adjacent areas; or

(4) The location of the facility prevents or hinders access for repairs, replacements or maintenance.

(Code 1968, § 49-603; Ord. No. 81-494, § 1, 3-17-81; Ord. No. 90-635, § 153, 5-23-90)

Sec. 47-269. Procedure after utility official's determination.

(a) If any facility which the utility official has proposed for abandonment is surplus, the utility official may authorize abandonment of the facility.

(b) If any facility which the utility official has proposed for abandonment is not surplus, it shall not be abandoned without the approval of the city council, and such approval shall not be given unless and until each customer served directly by the facility at the time of the utility official's abandonment proposal has been offered the opportunity to be heard at a hearing held pursuant to this article. The utility official shall refuse to allow new connections to such facility while the abandonment proposal is pending.

(Code 1968, § 49-604; Ord. No. 81-494, § 1, 3-17-81; Ord. No. 90-635, § 153, 5-23-90)

Sec. 47-270. Purpose of hearing.

(a) The purpose of the hearing shall be to determine the following questions:

(1) Whether or not the facility is seriously substandard; and

(2) Whether or not the public convenience and necessity require the abandonment of the facility as proposed by the utility official.

(b) In determining whether or not the public convenience and necessity require the abandonment as proposed by the utility official, the hearing examiner shall take into account all relevant facts and circumstances, including:

(1) Any adverse effects the abandonment would have upon customers;

(2) The tangible and intangible costs, if any, such abandonment would cause to be borne by the customers;

(3) The measures, if any, which may be imposed to mitigate such adverse effects;

(4) The cost of such mitigatory measures; and

(5) The tangible and intangible costs, if any, which would be borne by all other ratepayers of the utility system if the abandonment is not allowed, such costs including the costs of excessive leaks and sudden failures, the costs of maintaining any facility which lacks sufficient capacity to provide adequate service, the costs which the location of the facility may cause in terms of contamination and lack of access, and other costs directly caused by continued operation of the facility.

(Code 1968, § 49-605; Ord. No. 81-494, § 1, 3-17-81; Ord. No. 90-635, § 153, 5-23-90)

Sec. 47-271. Notice of hearing.

Notice of the time and place fixed for the hearing shall be sent by certified mail to each customer receiving service directly from the facility and to all other persons who own property located in whole or in part within 50 feet of any part of the facility (as such ownership is shown on the ad valorem tax rolls of the city or, if not within the city, the county in which the property is situated). In addition, notice of the hearing shall be published once a week for two consecutive weeks in some newspaper of general circulation in the area in which the facility is located, the first publication to be at least 15 days prior to the date fixed for the hearing.

(Code 1968, § 49-606; Ord. No. 81-494, § 1, 3-17-81)

Sec. 47-272. Conduct of hearing.

A hearing examiner shall be appointed by the director. The hearing shall be conducted in an open and public manner and in accordance with sections 37-88, 37-90, 37-93, 37-95 and 37-96 through 37-99 of this Code. Each customer served directly by the facility proposed to be abandoned who files a written request with the hearing examiner and any other person who demon

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strates a justiciable interest shall be designated as a party at interest. Any party at interest may be represented by counsel. The hearing examiner shall determine whether the record of the hearing shall be made by narrative summary, by tape recording or by stenographic transcription.
(Code 1968, § 49-607; Ord. No. 81-494, § 1, 3-17-81; Ord. No. 81-1649, § 1, 8-25-81; Ord. No. 94-1099, § 1, 10-12-94)

Sec. 47-273. Burden of proof.

At any hearing conducted under this article, the utility official shall carry the burden of proving by clear and convincing evidence that:

(1) The facility proposed for abandonment is seriously substandard; and

(2) The public convenience and necessity require such abandonment.

(Code 1968, § 49-608; Ord. No. 81-494, § 1, 3-17-81; Ord. No. 90-635, § 153, 5-23-90)

Sec. 47-274. Findings and report.

(a) After the close of the hearing, the required hearing examiner shall determine:

(1) Whether or not the facility proposed to be abandoned is seriously substandard; and

(2) Whether or not the public convenience and necessity require the abandonment as proposed (or as modified so as to include measures to mitigate any adverse effect). Such findings shall be expressed in the examiner's report which, together with the record of the hearing, shall be certified to the city council by the hearing examiner.

(b) If the hearing examiner finds that measures are necessary and appropriate to mitigate any adverse effects of the abandonment, such measures shall be expressed in the report as terms and conditions of the abandonment. Such measures may include, but are not limited to:

(1) The provision of a substitute service line upon reasonable terms and conditions.

(2) Abandonment of only a part of the facility.

(3) Converting the facility to a private facility with the responsibility for maintenance, repair and replacement being assumed by one or more customers.

(4) Other similar measures.

(Code 1968, § 49-609; Ord. No. 81-494, § 1, 3-17-81)

Sec. 47-275. Action by city council.

The city council may adopt, reject or modify the report of the hearing examiner made pursuant to the provisions of this article. The city council may remand the matter to the hearing examiner for further proceedings as to certain specified issues. The decision of the city council shall be made by motion, a copy of which shall be delivered to the utility official. The decision of the city council, unless otherwise qualified, shall be final.
(Code 1968, § 49-610; Ord. No. 81-494, § 1, 3-17-81; Ord. No. 90-635, § 153, 5-23-90)

Sec. 47-276. Mitigatory measures.

If the city council prescribes that the city should undertake mitigatory measures prior to abandonment of a facility, the utility official shall take all steps necessary to cause such mitigatory measures to be implemented. The utility official shall not allow any work necessary to provide such mitigatory measures to be conducted upon private property unless the person in control of such private property consents to the performance of such work and the entry upon such property.
(Code 1968, § 49-611; Ord. No. 81-494, § 1, 3-17-81; Ord. No. 90-635, § 153, 5-23-90)

Sec. 47-277. Termination of service.

No utility service to a customer may be terminated because of abandonment of a facility unless:

(1) The utility official has determined that all terms and provisions of the council motion authorizing such abandonment have been satisfied or, if all terms and conditions have not been satisfied, that the customer (or some person who owns or

controls the premises of the customer) has failed or refused to allow such terms and conditions to be satisfied; and

(2) The customer has received 90 days' written notice of such termination by certified mail or by hand delivery to the premises of the customer.

When the foregoing conditions have been satisfied, the utility official is authorized to abandon the facility and to terminate all utility service provided through such facility.
(Code 1968, § 49-612; Ord. No. 81-494, § 1, 3-17-81; Ord. No. 90-635, § 153, 5-23-90)

Secs. 47-278—47-300. Reserved.

ARTICLE IX. WASTEWATER IMPACT FEES AND CAPACITY RESERVATIONS*

DIVISION 1. GENERALLY

Sec. 47-301. Definitions.

As used in this article, the following terms and phrases shall have the following meanings:

(1) *Accelerated projects* means projects calling for the construction of specifically identified wastewater treatment or transportation facilities or both, with funds acquired in part from prepayments of capital recovery charges made by persons desiring new or additional service from the system in an area where such service would not otherwise be available.

(2) *Assessment* means the determination of the amount of the maximum impact fee per service unit which can be imposed on new development pursuant to this article, which determination occurs at the time specified in section 47-317.

(3) *Buffer zone* means an area of land which is owned or controlled by the owner of the private interim wastewater treatment plant or which is burdened by a public or private easement which renders it unsuitable for the location of habitable structures.

(4) *Building permit* means:

a. With respect to buildings or premises within the corporate limits of the city, the general permit required under the Construction Code; or

b. With respect to buildings or premises outside the corporate limits of the city or for which a general permit under the Construction Code is not required, a plumbing permit issued under the Construction Code or under section 47-14 of this chapter.

(5) *Capital recovery charge* means the fees imposed by the city on developments to provide financing for the costs of acquiring and constructing capital improvements to the system. These fees were established by the city pursuant to City of Houston Ordinances Nos. 83-650 and 84-1964.

(6) *City constructed wastewater facility* means a wastewater facility paid for wholly or partially by the city, a wastewater facility that has been acquired by the city upon assumption of obligations or debts for the construction costs thereof or by operation of law, a wastewater facility paid for by any other person, firm, corporation or governmental subdivision that has been purchased or otherwise acquired by the city, and a wastewater facility paid for partly by the city and partly by others when connection thereto is to be made from property to be served thereby and the owners of such property did not contribute their proportionate share of the cost for the intended land use.

(7) *Connection charge* means a charge on a property owner imposed pursuant to city ordinances referenced in section 47-42 for connection to the city's wastewater system.

*Editor's note—Section 4 of Ord. No. 90-675, adopted June 6, 1990, amended the title of Art. IX by adding the words "impact fees and" thereto.

(8) *Contractual reservation* means a reservation of wastewater capacity recognized in a legally enforceable written contract with the city where, either:

a. The contract was countersigned by the city controller prior to May 3, 1983; or

b. The city council, acting by motion, resolution or ordinance passed prior to May 3, 1983, authorized the director to negotiate the contract and identified the wastewater treatment facilities concerned, the contract negotiations were completed, and a final contract was approved by city council and countersigned by the city controller prior to October 24, 1985. The term "contractual reservation" also includes assignments of all or a portion of the original reservation when permitted under the terms of the contract; or

c. The contract was approved by a conservation and reclamation district that has been annexed by the city, where such contract provided wastewater capacity for property inside the city limits pursuant to consent of the city council.

(9) *Credit* means the amount determined under this article by which an impact fee for wastewater facilities is reduced as a result of a payment of connection charges for city constructed wastewater facilities imposed pursuant to city ordinances referenced in section 47-42, or payment of equivalent charges to a district providing such facilities within the city's wastewater benefit area, prior to June 20, 1990. Credit shall not include payment of a connection fee prior to June 20, 1990, or payment of charges under article IV of this chapter 47, which are imposed to reimburse a property owner for the costs of extending a wastewater main or lateral sewer.

(10) *Reserved.*

(11) *District reservation* means a written reservation of wastewater capacity which was:

a. Issued by a conservation and reclamation district which has been annexed to and abolished by the city and which has, prior to its abolition by the city, acquired or fully financed the acquisition of wastewater facilities which, when constructed and placed in operation, will have an aggregate wastewater capacity at least equal to the total of all wastewater capacity represented by the district's existing sanitary sewer system customers and its written reservations; and

b. Presented to the director, within three years after the latter of the date of abolition of the district or May 3, 1983, for written verification of its validity.

In the event that a district has issued written reservations of wastewater capacity in excess of the wastewater capacity the district has acquired or fully financed, then the director shall allocate the acquired or fully financed wastewater capacity of the district, first to the district's existing sanitary sewer system customers to the extent of their connections to the district's system, next to those persons who, within the 90 days immediately following the date of the district's abolition, present valid written reservations to the director for verification and finally, on a first-come-first-served basis, to those persons who present valid written reservations to the director for verification during the remainder of the three-year verification period.

(12) *Final plat recordation* means the filing of the final plat with the county clerk in the county in which the property platted is located, following compliance with all conditions of approval pursuant to chapter 42 of the Code.

(13) *Health-care facilities* means health-care facilities as defined in article 4418h, section 1.039(9), of the Texas Revised Civil Statutes Annotated.

(14) *Land use equivalency table* means the table approved by city council converting utilization of wastewater capacity required by various land uses to numbers of service units. Such table must be adopted by the city council as an element of its wastewater capital improvements plan.

(15) *New development* or *proposed development* means a project involving the construction, reconstruction, redevelopment, conversion, structural alteration, relocation or enlargement of any structure; or any use of extension of the use of land; any of which has the effect of increasing the requirements for wastewater capital improvements measured by the number of service units to be generated by such activity, and which requires either the approval of a plat pursuant to the city's subdivision regulations, the issuance of a building permit, or connection to the city's water or wastewater system, and which has not been exempted from these regulations by provisions herein.

(16) *Offset* means the amount of the reduction of an impact fee, determined under this article or pursuant to administrative guidelines, that is equal to the value of a wastewater facility or portion thereof included in the wastewater capital improvements plan, that is constructed or financed by a property owner.

(17) *Plat* means the plan or map for the subdivision to be filed for record in Harris County. Plat includes replat, but excludes development plat.

(18) *Property owner* means the owner in fee of a tract or parcel of land upon which new development is to be located, or his authorized representative.

(19) *Public education facilities* means buildings and other structures which are used by independent school districts or public or private junior or senior colleges or universities for the purpose of providing or supporting educational services.

(20) *Reservation application* means an application submitted to the director requesting a determination of the availability of adequate wastewater facilities and, if available, requesting a wastewater capacity reservation, subject to the provisions of this article.

(21) *Reservation for wastewater capacity* means either a contractual reservation, a district reservation, a restricted wastewater capacity reservation, or a wastewater capacity reservation acquired prior to June 20, 1990.

(22) *Restricted wastewater capacity reservation* means a reservation of wastewater capacity issued under authority of subsection 47-334(c) of this article.

(23) *Service area* means, for a particular wastewater facility or combination of wastewater facilities, a geographically defined area in which proposed developments can best be provided service by that wastewater facility or combination of wastewater facilities. The director shall determine the appropriate service area for each wastewater facility or combination of wastewater facilities by application of sound principles of civil engineering and in such a manner as to promote the safe and efficient operation of the system.

(24) *Service unit* means a standardized measure of consumption of wastewater system capacity which is equal to the average flow rate for a single-family dwelling unit in the Houston area.

(25) *Standard base level* means, for each acre of land, a level of utility service sufficient to receive, transport, treat and dispose of an average of 1,575 gallons per day of wastewater of the strength and character produced by typical residential customers of the city's system.

(26) *System* means the sanitary sewer system owned, maintained and operated by or on

behalf of the city in order to furnish sanitary sewer service, including but not limited to waste treatment facilities including fertilizer plants, plants, disposal fields and lagoons for the purpose of treating, neutralizing, stabilizing or disposing of wastewater, and sewer systems including pipelines, conduits, canals, pumping stations, force mains, and all other constructions, devices and related appliances used to transport wastewater, as such system may be now constituted or as it may be hereafter improved, enlarged or extended by construction, reconstruction, acquisition, annexation or otherwise.

(27) *Temporary reservation* means:

a. A reservation by a utility commitment letter issued by the city prior to May 3, 1983; or

b. A reservation of wastewater capacity which was not in the form of a utility commitment letter but which was:

1. Of a type customarily recognized by the city prior to May 3, 1983; and

2. For which the property owner had made a capital contribution which was accepted by motion, resolution or ordinance of city council.

(28) *Wastewater benefit area* means the area within the city and the city's extraterritorial jurisdiction, within which impact fees for wastewater capital improvements will be collected for new development occurring within such area and within which fees so collected will be expended for those improvements identified in the wastewater capital improvements plan applicable to the benefit area.

(29) *Wastewater capacity* means the capacity of the wastewater facilities, measured in units of volume per unit of time, to receive, transport, treat and dispose of wastewater produced by customers of the system.

(30) *Wastewater capacity reservation* means a commitment of the city, subject to the regulatory actions of the state and federal government, the applicable rules and regulations of the city and the terms and conditions contained in this article and in the wastewater capacity reservation itself, to permanently reserve capacity in wastewater facilities to serve a proposed development so that utility service will be available upon completion of the buildings or other structures contained in the proposed development. The phrase "wastewater capacity reservation" shall also include the written document evidencing its existence.

(31) *Wastewater capital improvement* means a wastewater facility, with a life expectancy of three or more years, to be owned and operated by or on behalf of the city.

(32) *Wastewater capital improvements plan* means the plan adopted by city council, as may be amended from time to time, which identifies the wastewater facilities and their associated costs which are necessitated by and which are attributable to new development, for a period not to exceed ten years, and which are to be financed in whole or in part through the imposition of wastewater impact fees pursuant to this article.

(33) *Wastewater connection* means authorization to connect a new development to the city's wastewater system.

(34) *Wastewater facility* means a facility designed or utilized for the purpose of collecting, conveying, pumping, treating or disposing of wastewater and byproducts of wastewater treatment, including an existing facility, the capacity of which has been expanded to serve new development. Wastewater facility includes land, easements or structures associated with such facilities. Wastewater facility excludes those wastewater lines or mains or portions thereof which are constructed by property owners, the costs of which are

reimbursed from charges paid by subsequent users of such wastewater lines or mains.

(35) *Wastewater impact fee* means a fee for wastewater facilities imposed on new development pursuant to this article in order to generate revenue to fund or recoup the costs of capital improvements necessitated by and attributable to such new development. Wastewater impact fees do not include requirements for the dedication of rights-of-way or easements for such facilities, or for the construction of such improvements. Wastewater impact fees also do not include payment of connection charges by persons receiving service from a wastewater main, which charges are imposed to reimburse a property owner for the costs of extending such main.

(Code 1968, § 49-701; Ord. No. 83-650, § 1, 5-3-83; Ord. No. 84-1673, §§ 1—3, 10-24-84; Ord. No. 90-635, § 167, 5-23-90; Ord. No. 90-675, § 1, 6-6-90; Ord. No. 91-64, § 1, 1-9-91; Ord. No. 93-514, § 127, 5-5-93; Ord. No. 02-399, § 92, 5-15-02)

Secs. 47-302—47-310. Reserved.

DIVISION 2. STATEMENT OF POLICY ON FINANCING OF SANITARY SEWERS SYSTEM CAPITAL IMPROVEMENTS

Sec. 47-311. Statement of city policy.

The following is established as the policy of the city for financing system:

(1) The city desires to finance the cost of acquiring and constructing capital improvements to the system necessary to maintain the level of wastewater capacity in the system so as to provide continued service at existing levels and new service to the holders of certain valid and unexpired commitments issued prior to May 3, 1983 in accordance with all applicable state and federal regulatory requirements which financing may be provided from the sale of revenue bonds, from state or federal grant funds or from any other funds available to the city other than from the proceeds of wastewater impact fees.

(2) The city intends to provide or cause to be provided financing for the cost of constructing special improvements to the system necessary to expand the level of wastewater capacity in order to provide service to new development through the establishment and collection of wastewater impact fees.

(3) Subject to the approval of the city council, special purpose conservation and reclamation districts organized under authority of article XVI, section 59 of the Constitution of the state may be utilized within the city to provide all or part of the funding for construction or enlargement of the system's wastewater treatment plants and capital facilities related to those plants.

(Code 1968, § 49-711; Ord. No. 83-650, § 1, 5-3-83; Ord. No. 90-675, § 2, 6-6-90)

Sec. 47-312. Authority.

This article is adopted pursuant to chapter 395 of the Texas Local Government Code, section 26.176 of the Texas Water Code, and the Houston Charter. The provisions of this article shall not be construed to limit the power of the city to utilize other methods authorized under state law or pursuant to other city powers to accomplish the purposes set forth herein, either in substitution for or in conjunction with this article.

(Ord. No. 90-675, § 2, 6-6-90)

Sec. 47-313. Reservations and capital recovery charges.

(a) Except as provided in subsection (b) below, no building permit shall be issued with respect to any building or new development in the wastewater benefit area, which will require additional wastewater capacity from the system unless both of the following are provided to the director:

(1) A wastewater capacity reservation, a restricted wastewater capacity reservation, a district reservation or a contractual

reservation, a district reservation or a contractual reservation which has not expired, with respect to which all required conditions have been met and which includes:

a. A description of such building or new development; and

b. Reference to an amount of wastewater capacity at least as great as the additional amount required; and

(2) Satisfactory proof that any applicable wastewater impact fees have been paid with respect to such reservation.

(b) Subsection (a) of this section does not apply to any wholesale sewage treatment services supplied by the city to any conservation and reclamation district pursuant to a valid written contract. (Code 1968, § 49-712; Ord. No. 83-650, § 1, 5-3-83; Ord. No. 90-675, § 2, 6-6-90)

Secs. 47-314, 47-315. Reserved.

DIVISION 3. WASTEWATER IMPACT FEES*

Sec. 47-316. Wastewater impact fees, in general.

(a) Except as otherwise provided herein, each new development within the city's wastewater benefit area shall pay an impact fee for wastewater facilities necessitated by and attributable to that development as provided in this division. Wastewater impact fees shall be assessed against and collected from new development on the basis of service units. The wastewater benefit area is established by the city council and may be amended from time to time.

(b) The maximum wastewater impact fee per service unit that is assessed against new developments is established for this provision in the city fee schedule, per service unit, and the wastewater impact fee per service unit that shall be collected from new development is stated for this provision in the city fee schedule, per service unit. Beginning in 2011, the wastewater impact fee shall remain unchanged until the water impact fee equals or exceeds wastewater impact fee in dollar value. On July 1 of each year after the water impact fee equals or exceeds the wastewater impact fee established pursuant to section 47-384 of this Code, wastewater impact fees shall be adjusted by an amount equal to the percentage increase (if any) in the designated index for the preceding calendar year multiplied by the amount of the wastewater impact fee for the then-current year, but shall never exceed the maximum wastewater impact fee established herein. The director shall annually calculate the effective wastewater impact fee on or before June 1 of each year and make it available in his office upon request for public inspection.

For purposes of this subsection, the term designated index shall mean the United States Producers Price Index for All Commodities (1982=100), as published by the Bureau of Labor Statistics, U.S. Department of Labor. If such index is subject to adjustment later, then the city shall use the adjusted index, together with any correlation factor necessary to relate the later adjusted index to the earlier index, as published by the entity publishing the index, or if such publication is discontinued, the designated index shall then refer to comparable statistics on changes in the cost of living for urban consumers as the same may be computed and published by an agency of the United States or by a responsible financial periodical of recognized authority, which agency or periodical shall be selected by the city.

(c) The city council may amend wastewater impact fees to be collected from new developments without amending the wastewater capital improvements plan adopted herein, as long as the impact fees to be collected do not exceed the maximum impact fees per service unit that may be assessed for such facilities.
(Ord. No. 02-517, § 4, 6-26-02; Ord. No. 05-958, § 3, 8-24-05; Ord. No. 2010-482, § 4, 6-30-2010; Ord. No. 2010-583, § 3, 7-28-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

*__Editor's note—__Section 3 of Ord. No. 90-675, adopted June 6, 1990, amended Ch. 47, Art. IX, Div. 3 to read as herein set forth. Prior to such amendment, Div. 3, §§ 47-321—47-324, pertained to capital recovery charges and derived from §§ 49-271—49-274 of the 1968 Code; Ord. No. 83-650, § 1, adopted May 3, 1983; and Ord. No. 84-1964, §§ 1, 2, adopted Dec. 27, 1984.

Sec. 47-317. Assessment of fees.

Assessment of wastewater impact fees against new development shall be based on the maximum wastewater impact fee per service unit established by the city council. The time of assessment depends upon the time the development was platted pursuant to Chapter 42 of the Code and when the development obtains a reservation for wastewater capacity. Assessment shall take place as follows:

(1) For new developments which have received final plat recordation and which have acquired a reservation for wastewater capacity prior to June 20, 1990, assessment shall occur at the time of application for a building permit or at the time of payment of the capital recovery charge specified in the reservation, whichever occurs first. If capital recovery charges for the new development have been paid prior to June 20, 1990, assessment for additional service units shall occur at the time of application for a building permit.

(2) For new developments which have received final plat recordation prior to June 20, 1990, but which have not acquired a wastewater capacity reservation by such date, assessment shall occur on the date a wastewater capacity reservation is obtained for the development.

(3) For new developments which have not received final plat recordation prior to June 20, 1990, but which have acquired a reservation for wastewater capacity prior to such date, assessment shall occur at the time of final plat recordation or the time at which the capital recovery charge specified in the reservation is paid, whichever occurs first. In the event that the capital recovery charge has been paid prior to June 20, 1990, assessment for additional service units shall occur at the time of final plat recordation, or if no final platting is required prior to development, at the time of application for a building permit.

(4) For new developments which have not received final plat recordation and which have not acquired a reservation for wastewater capacity prior to June 20, 1990, assessment shall occur at the time of final plat approval or at the time a wastewater capacity reservation is obtained, whichever occurs first.

(Ord. No. 90-675, § 3, 6-6-90)

Sec. 47-318. Time of fee collection.

Wastewater impact fees shall be collected at the time of issuance of building permits. In the event that a building permit is not required prior to development, collection shall be at the time of wastewater service connection. Provided, however, the developer and the department may agree to an earlier date for payment to reserve wastewater capacity for future development.

(Ord. No. 90-675, § 3, 6-6-90; Ord. No. 02-517, § 5, 6-26-02)

Sec. 47-319. Computation of fees.

The department shall compute the wastewater impact fees due for a new development in the following manner:

(1) Except as otherwise provided in this section, the amount of the impact fee due shall be determined by multiplying the number of service units generated by the new development by the wastewater impact fee per service unit then in effect.

(2) Development of low and moderate cost single family housing is exempt from payment of impact fees. In order to qualify for this exemption, the house must be a single family residence located within city limits having an initial purchase price as certified by the property owner that does not exceed the latest available 12-month listing for median price single family housing in the city as published by the Real Estate Center at Texas A&M University. In the event the initial purchase price exceeds this amount, the property owner making the certification shall pay to the city the full amount of the impact fee as calculated under this section. If publication of the median price for single family housing is discontinued by the Real Es-

tate Center at the Texas A&M University, the mayor is authorized to select another publication that lists the median price of single family houses in the city.

(3) In the event that the new development has paid a capital recovery charge prior to computation of the impact fee, or in the event that the new development has a valid district or contractual reservation, the capacity reserved by payment of such charge or such reservation shall be converted to service units using the land use equivalency table. If the wastewater service required for the new development exceeds such reserved capacity, the service units equivalent to the previously reserved capacity shall be subtracted from the total number of service units attributable to the new development, and the amount of the wastewater impact fee due shall be the number of additional service units multiplied by the wastewater impact fee per service unit then in effect.

(4) In the event that the new development involves razing or removing existing structures, the wastewater capacity utilized by such use or structure shall be converted into service units using the land use equivalency table. If the wastewater service required for the new development exceeds such utilized capacity, the service units equivalent to the previously reserved capacity shall be subtracted from the total number of service units attributable to the new development, and the amount of the wastewater impact fee due shall be the number of additional service units multiplied by the wastewater impact fee per service unit then in effect.

(5) The amount of each impact fee due shall be reduced by any allowable credits in the manner provided in section 47-321 of this Code.

(6) The amount of each impact fee due for a new development shall not exceed an amount computed by multiplying the maximum wastewater impact fee per service unit in effect at the time the new development was assessed by the number of service units generated by the development.

(7) If the property owner proposes to increase the number of service units for a development following payment of the wastewater impact fee, the additional wastewater impact fees collected for such new service units shall be determined in the same manner as provided in this section.

(Ord. No. 90-675, § 3, 6-6-90; Ord. No. 97-442, § 1, 4-23-97)

Sec. 47-320. Determination of service units.

The number of service units attributable to a new development shall be determined by using the land use equivalency table established by the city council, which may be amended from time to time.

(Ord. No. 90-675, § 3, 6-6-90)

Sec. 47-321. Credits against wastewater impact fees.

(a) A property owner who has paid a connection charge prior to June 20, 1990 for a city-constructed wastewater facility, or who has paid an equivalent charge for a facility included in the wastewater capital improvements plan to a district created under authority of article III, section 52, or article XVI, section 59 of the Texas Constitution, for which no reimbursement was received, may reduce the wastewater impact fee due for the lot or tract for which the fee was paid by a like amount.

(b) A property owner who constructs or finances a wastewater facility included in the wastewater capital improvements plan pursuant to a development agreement approved by the city on or after June 20, 1990 may offset the value of such improvement against the wastewater impact fees due for the development. The offset shall be associated with the plat of the property that is to be served by the wastewater facility constructed or financed. The amount of the offset shall be determined pursuant to rules established in this section and administrative guidelines promulgated by the director. The city may also agree to offset against wastewater impact fees the value of

a wastewater facility to be constructed or financed by the property owner, which has not been included in the wastewater capital improvements plan, if it is reasonably anticipated that the facility shall be included within the next revision to such plan. In no event shall the offset allowable under this subsection exceed the amount of the impact fees due, and no property owner shall be entitled to reimbursement for such excess amount unless the city otherwise agrees.

(c) The development agreement required by subsection (b) may provide for participation by the city in the costs of oversizing the wastewater facility to be constructed or financed by the property owner, or may provide for reimbursement according to the terms of the agreement. The amount of any offset shall be reduced by the amount of the city's participation.

(d) A credit or an offset associated with a plat shall be applied against a wastewater impact fee due at the time that the first fee for the new development is collected, and thereafter to all subsequently collected fees, until the credit or offset is exhausted.
(Ord. No. 90-675, § 3, 6-6-90)

Sec. 47-322. Accounting and refunds.

(a) All wastewater impact fees collected within the wastewater benefit area shall be deposited in a dedicated fund to which interest is allocated. All such amounts, together with all interest earned thereon, shall be used solely for the purposes set forth in subsection (b).

(b) The wastewater impact fees collected pursuant to this division may be used to finance or to recoup the costs of any capital improvements or facility expansions identified in the applicable wastewater capital improvements plan for the wastewater benefit area, including but not limited to the construction contract price, surveying and engineering fees, land acquisition costs (including land purchases, court awards and costs, attorneys' fees, and expert witness fees), and fees paid to an independent qualified engineer or financial consultant preparing or updating the wastewater capital improvements plan. Wastewater impact fees may also be used to pay the principal sum, interest and other finance costs on bonds, notes or other obligations issued by or on behalf of the city to finance such capital improvements.

(c) Disbursement of funds shall be authorized by the department at such times as are reasonably necessary to carry out the purposes and intent of this article; provided, however, that funds shall be expended within a reasonable period of time, but not to exceed ten years from the date wastewater impact fees are deposited into the fund.

(d) An owner of property for which a wastewater impact fee has been paid is entitled to a refund of all or a portion of the fee in the following circumstances:

(1) Upon application, any wastewater impact fee or portion thereof collected pursuant to this division, which has not been expended within the wastewater benefit area within ten years from the date of payment, shall be refunded to the record owner of the property for which the impact fee was paid together with interest calculated from the date of collection to the date of refund at the statutory rate as set forth in article 5069-1.03, Texas Revised Civil Statutes Annotated, or its successor statute. A wastewater impact fee shall be considered expended on a first-in, first-out basis. A wastewater impact fee shall also be considered expended if the total expenditures for wastewater facilities included in the wastewater improvements plan, as may be amended from time to time, within the wastewater benefit area within ten years following the date of payment exceeds the total wastewater impact fees collected within the benefit area during such period.

(2) If a refund is due pursuant to paragraph (1), the department shall divide the difference between the amount of expenditures and the amount of the fees collected by the total number of service units for which wastewater impact fees have been paid within the benefit area for the period to

determine the refund due per service unit. The refund to the record owner shall be calculated by:

a. Multiplying the refund due per service unit by the number of service units for the development for which the fee was paid; and

b. Determining interest due based on the amount calculated under subsection (d)(2)a.

(3) Upon completion of all the wastewater facilities identified in the wastewater improvements plan for the wastewater benefit area, the department shall recalculate the maximum impact fee per service unit using the actual costs for the improvements or expansions. If the maximum impact fee per service unit based on actual cost is less than the impact fee per service unit paid, the city shall refund the difference if such difference exceeds the wastewater impact fee paid by more than ten percent. If the difference is less than ten percent, no refund shall be due. The refund to the record owner shall be calculated by:

a. Multiplying such difference by the number of service units of the development for which the fee was paid; and

b. Determining interest due based on the amount calculated under subsection (d)(3)a.

(4) In no event shall a refund be due under this division for payment of any capital recovery charge.

(e) The department shall establish adequate financial and accounting controls to ensure that wastewater impact fees disbursed from the fund are utilized solely for the purposes authorized. The department shall maintain and keep financial records for wastewater impact fees, which shall show the source and disbursement of all fees collected in or expended within the wastewater benefit area. The records of the fund into which wastewater impact fees are deposited shall be open for public inspection and copying during ordinary business hours.

(f) Nothing in these regulations shall prevent the city from paying all or part of the wastewater impact fees due for a new development pursuant to criteria adopted by the city council.
(Ord. No. 90-675, § 3, 6-6-90)

Sec. 47-323. Impact fee appeals.

(a) The property owner or applicant for new development may appeal the following administrative decisions to an administrative hearings official appointed by the director:

(1) The applicability of an impact fee to the development;

(2) The amount of the impact fee due;

(3) Classification of the development under the land use equivalency table;

(4) The applicability of a credit or an offset to the development;

(5) The amount of a credit or of an offset; or

(6) The amount of a refund due, if any.

(b) The burden of proof shall be on the applicant to demonstrate that the administrative decision was not made in accordance with this division or applicable state law.

(c) The applicant must file a written notice of appeal with the director within 30 days following the decision from which an appeal is made. If the notice of appeal is accompanied by a payment or other sufficient security satisfactory to the department in an amount equal to the original determination of the impact fee due, the development application may be processed while the appeal is pending. Each appeal must include the fee stated for this provision in the city fee schedule.
(Ord. No. 90-675, § 3, 6-6-90; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 47-324. Relief procedures.

(a) Any person who has paid an impact fee or an owner of land for which an impact fee has been paid may petition the city council to determine whether any duty required by this article or by

chapter 395 of the Texas Local Government Code has not been performed within the time so prescribed. The petition shall be in writing and shall state the nature of the unperformed duty and request that the duty be performed within 60 days of the request. If the city council determines that the duty is required pursuant to the ordinance and is late in being performed, it shall cause the duty to commence within 60 days of the date of the request and to continue until completion. This subsection shall not apply to matters subject to appeal pursuant to section 47-323.

(b) The city council may grant a variance from any requirement of this article, upon written request by a property owner subject to this article, following a public hearing, and only upon finding that a strict application of such requirement would, when regarded as a whole, result in confiscation of the property.

(c) If the city council grants a variance to the amount of the impact fee due for a new development under this section, it shall cause to be appropriated from other city funds the amount of the reduction in the impact fee to the fund for the service area in which the property is located.
(Ord. No. 90-675, § 3, 6-6-90)

Sec. 47-325. Replacement of existing charges.

On and after June 20, 1990, the provisions of this division 3 relating to the assessment and collection of wastewater impact fees replace and supersede those provisions for payment capital recovery charges as well as the payment of connection charges for city-constructed wastewater facilities pursuant to city ordinances referenced in section 47-42. On and after such date, the city shall neither impose on or collect from a new development any capital recovery charges or connection charges for city-constructed wastewater facilities.
(Ord. No. 90-675, § 3, 6-6-90)

Sec. 47-326. Connection of existing development.

If an owner of existing development within the wastewater benefit area requests connection to the city's wastewater system, and the department agrees to extend a wastewater main to serve the development, the owner shall pay a fee equivalent to that prescribed by and computed according to section 47-319 prior to connection to such system; provided, however, that an existing development so connected is entitled to a credit against the fee equal to the charge for one service unit.
(Ord. No. 90-675, § 3, 6-6-90)

Secs. 47-327—47-330. Reserved.

DIVISION 4. RESERVATIONS

Sec. 47-331. Generally.

(a) The director is authorized and directed to establish and administer a system for determining whether wastewater facilities are available to serve proposed developments, for communicating the results of such determination to the property owner initiating the reservation request and, where necessary facilities are available, for reserving capacity in wastewater facilities to serve the proposed development.

(b) Any property owner who is contemplating a specific use of his property within the corporate limits of the city or within an area receiving utility services provided by the city which will require a change in the amount or character of utility service received from the city due to development, redevelopment or a change in occupancy must submit a reservation application to the director on the forms prescribed by the director. The application must be accompanied by the prescribed fee and must contain substantially the following information:

(1) An adequate legal description of the property.

(2) The number of existing buildings.

(3) The number of square feet within each of the existing buildings.

(4) The usage of each existing building (i.e., multifamily residence, office building, shop building, retail center, etc.).

(5) An explanation of the proposed construction projects and type of occupancies contemplated (*i.e.,* number of square feet and types of lease-occupancies, etc.).

(6) A map or sketch detailing the geographical location of the property.

(7) Copies of all wastewater capacity reservations associated with the property.

(8) Any other information reasonably requested by the director and necessary or useful to the director in performing a utility availability determination.

(Code 1968, § 49-731; Ord. No. 83-650, § 1, 5-3-83)

Sec. 47-332. Issuance of wastewater capacity reservations.

(a) Upon receipt of a completed application and the prescribed fee, the director shall determine whether the proposed development meets the requirements for issuance of a wastewater capacity reservation. In order for a proposed development to qualify for issuance of a wastewater capacity reservation the director must determine that there is sufficient unused and unreserved capacity in available wastewater facilities to meet the utility service requirements of the proposed development or that such capacity will be available before the proposed development will require it, that the proposed development will comply with applicable state and federal laws and regulations (including specifically regulations which restrict certain types of development in areas near the city's airports), written city policies which apply to city utility service and city ordinances, that utility service at the level required by the proposed development would not be in excess of any existing restrictions imposed under authority of section 47-333, and that any proposed private wastewater facilities are capable of providing safe and effective utility service.

If, upon completion of the determination, the director concludes that the proposed development meets all the requirements for issuance of a wastewater capacity reservation, he shall then calculate the capital recovery charge for the proposed development and issue a wastewater capacity reservation to the applicant conditioned upon payment of those charges within six months of the date of issuance. If, upon completion of the determination, the director concludes that the proposed development does not meet one or more of the requirements for issuance of a wastewater capacity reservation, then the director shall prepare and deliver to the applicant a denial notice which shall describe the results of the determination and specifically detail the reasons for the denial.

(b) Provided, however, that the director may issue a wastewater capacity reservation subject to special conditions for an application not otherwise acceptable under subsection (a) as follows:

(1) The reservation is expressly conditioned upon the occurrence of some future event if the director determines that after the occurrence of that event the proposed development would be qualified for issuance of a wastewater capacity reservation. Events upon the occurrence of which a wastewater capacity reservation may be conditioned include, without limitation, the completion and acceptance of an accelerated project in which the property owner is a subscriber, the construction of a sewer main extension, or the construction of private wastewater facilities.

(2) The director determines that the wastewater capacity reservation is necessary for the immediate development or redevelopment of property, but will not overload the city's sanitary sewer system. A wastewater capacity reservation issued under this paragraph shall be subject to express conditions required by the director to assure that the proposed development requiring the wastewater capacity reservation is constructed within the time schedule specified by the director.

(c) Notwithstanding the other provisions of this section, the director shall issue a wastewater capacity reservation whenever the director determines that:

(1) A particular proposed development would qualify for issuance of a wastewater capacity reservation, if one or more of the wastewater facilities available to serve the proposed development were not already fully reserved.

(2) All of the fully reserved wastewater facilities available to serve the proposed de-

velopment are consistently operating at a level below their design and legally permitted capacities.

(3) The proposed development is to be composed solely of one or more residential structures which would require utility service from the system at a level equal to or below the standard base level.

(4) The property owner has not obtained a wastewater capacity reservation under this subsection (c) during the preceding 12 months.

A wastewater capacity reservation issued under authority of this subsection (c) can not be transferred to another lot, tract or subdivision and can not be used for any proposed development other than that for which it is issued.

(Code 1968, § 49-732; Ord. No. 83-650, § 1, 5-3-83; Ord. No. 84-1673, § 6, 10-24-84; Ord. No. 88-646, § 1, 4-27-88)

Sec. 47-333. Service area restrictions.

(a) Whenever the director determines that particular existing wastewater facilities are operating at 85 percent of their legally permitted capacity and that to allow additional reservations of capacity in such facilities at a level above the standard base level would result in an overloading of such facilities, then the director shall impose restrictions upon utility connections in that service area. The restrictions imposed under authority of this subsection shall provide that the director will not issue wastewater capacity reservations (other than ones conditioned upon the acquisition or construction of wastewater facilities) within the restricted service area for so long as the restrictions remain in effect, except in response to applications for proposed development which will require service at a level equal to or less than the standard base level. Notwithstanding the imposition of restrictions the director shall, where the provision of utility service is physically possible and where the proposed development otherwise complies with the requirements of this article, issue wastewater capacity reservations for proposed developments which provide for:

(1) Construction of fire and police facilities, public education facilities, and health-care facilities.

(2) Redevelopment which will not increase the amount of utility service required within the restricted service area.

(3) Extension of the system to areas presently served by septic tanks.

(4) Development which will require additional wastewater utility service at a level equal to or below the level authorized in a valid and unexpired previous commitment by the city.

(5) Other types of development or redevelopment, which, as of the effective date, were permitted by the provisions of the city's wasteload control plan imposed under the requirements of Texas Water Quality Board Order No. 74-0122-1.

(b) Whenever the director determines that particular existing wastewater facilities are regularly operating at a level which substantially exceeds their design or legally permitted capacity, the director shall impose restrictions upon utility connections in that service area. The restrictions imposed under authority of this subsection shall provide that the director will not issue wastewater capacity reservations (other than ones conditioned upon the acquisition or construction of wastewater facilities) within the restricted service area for so long as the restrictions remain in effect. Notwithstanding the imposition of restrictions the director shall, where the provision of utility service is physically possible and where the proposed development otherwise complies with the requirements of this article, issue wastewater capacity reservations for proposed developments which provide for:

(1) Construction of fire and police facilities, public education facilities and health-care facilities, but only where the director finds that the provision of utility service to those facilities will have only a minimal effect on overloaded wastewater facilities.

(2) Redevelopment which will not increase the amount of utility service required within the restricted service area.

(3) Development which will require additional utility service at a level equal to or

below the level authorized in a valid and unexpired previous commitment by the city.

(4) Other types of development or redevelopment, which, as of the effective date, were permitted by the provisions of the city's wasteload control plan imposed under the requirements of Texas Water Quality Board Order No. 74-0122-1.

(c) The director shall remove or modify service area restrictions whenever he determines that a change in state or federal regulatory requirements or a change in the service area or its wastewater facilities has increased or decreased the wastewater capacity available in that service area.

(d) In order to impose, remove or modify restrictions on a service area, the director shall prepare a written notice which briefly describes the service area affected, the wastewater facility which serves the service area, the terms of the restrictions and the date upon which the imposition, removal or modification of restrictions is to take effect. The written notice shall be filed with the city secretary on or before the date the imposition, removal or modification is to take effect. The city secretary shall post a copy of the notice in a public place for a period of ten days, promptly publish a copy in a newspaper of general circulation in the city and shall thereafter maintain the notice in a file which shall be open to inspection by the public. The change in restrictions shall take effect on the date shown in the notice.
(Code 1968, § 49-733; Ord. No. 83-650, § 1, 5-3-83)

Sec. 47-334. Terms and conditions of reservations.

(a) A wastewater capacity reservation shall represent a commitment of the city subject to the regulatory actions of the state and federal governments, the applicable rules and regulations of the city and the terms and conditions contained in this article and in the wastewater capacity reservation itself, to permanently reserve capacity in wastewater facilities to serve a proposed development so that utility service will be available upon completion of the buildings or other structures contained in the proposed development. A wastewater capacity reservation is applicable only to the tracts, lots or subdivisions listed therein unless a transfer is approved as provided in section 47-335. A wastewater capacity reservation which is issued on the basis of an application which contains materially false information shall be void.

(b) A temporary reservation shall expire on its stated expiration date and may, upon application in writing to the director, be converted on or before its expiration date to a wastewater capacity reservation by paying the capital recovery charge.

(c) A temporary reservation which was originally issued before April 2, 1983, shall, notwithstanding its stated expiration date, expire at 5 p.m. on April 2, 1984, and may, upon application in writing to the director, on or before its date of expiration, be converted to a restricted wastewater capacity reservation if, prior to the conversion of the temporary reservation, one or more of the following conditions have been met:

(1) All connection charges have been paid for the proposed development; or,

(2) The temporary reservation required the property owner to construct a public wastewater utility line extension and the extension has been constructed or is under construction; or,

(3) The temporary reservation required a contribution of funds or the construction by the property owner of particular wastewater facilities and the conveyance of such facilities to the city, the city council has approved the transaction if it required a contribution of funds, and the property owner has paid the funds to the city or conveyed the ownership of the particular wastewater facilities to the city.

(d) A restricted wastewater capacity reservation may, upon application in writing to the director, be converted to a wastewater capacity reservation by paying the capital recovery charge at the time of application.

(e) A property owner whose temporary reservation expires may make a new reservation application under the terms of this article.
(Code 1968, § 49-734; Ord. No. 83-650, § 1, 5-3-83)

Sec. 47-335. Transfers of reserved wastewater capacity.

(a) A wastewater capacity reservation may be transferred, in whole or in part, to another proposed development in the same service area. Any person desiring to transfer a wastewater capacity reservation must file with the director a written application for transfer and, if the transfer is approved, must pay the prescribed transfer fee. Upon receipt of a transfer application, the director shall determine whether the wastewater facilities in which capacity has been reserved are available to serve the proposed development to which the wastewater capacity reservation is to be transferred. If he determines the wastewater facilities are available, he shall so notify the applicant and, upon receipt of the transfer fee, approve the transfer. If he determines that the wastewater facilities are not available, he shall notify the applicant in writing.

(b) An existing customer of the system may transfer the wastewater capacity which has been allocated to that customer's connection in the same manner as a transfer of a wastewater capacity reservation if the customer:

(1) Removes any physical connection between his building or premises and the system; and

(2) Pays, in addition to the transfer fee, a sum equal to the capital recovery charge for issuance of a wastewater capacity reservation for the amount of wastewater capacity to be transferred.

(c) Whenever a transfer of wastewater capacity within a restricted service area reduces the amount of wastewater capacity available to the tract, lot or subdivision from which it is transferred to an amount less than the standard base level, the director shall, immediately upon approval of the transfer, file in the real property records of the county in which that tract, lot or subdivision is located a notice that all or a portion of the standard base level of wastewater capacity has been transferred and that service from the system at a level above the untransferred amount will not be available until such time as existing service area restrictions are removed or modified.

(d) Wastewater capacity reserved by district reservation may be transferred in whole or in part to other properties of the same owner in the annexed area, provided (i) the conditions in subsection (a) are met, (ii) the transfer is made within three years of abolition of the annexed conservation and reclamation district, (iii) the properties receiving the transfer have district reservations independent of the transfer and (iv) the application for a transfer is submitted with the request for the director's written verification of the validity of the district reservations for both the transferring and receiving properties. No transfers may be made for wastewater capacity reserved by district reservations subsequent to the director's verification of the validity of the district reservation for the properties.

(e) Wastewater capacity reserved by temporary reservations, contractual reservations, restricted wastewater capacity reservations, or reservations specially conditioned pursuant to section 47-332(b)(2) of this Code cannot be transferred to another property. In addition, wastewater capacity reservations for low and moderate cost housing under subsection 47-319(2), for which no impact fee has been paid, cannot be transferred to another property.
(Code 1968, § 49-735; Ord. No. 83-650, § 1, 5-3-83; Ord. No. 88-646, § 2, 4-27-88; Ord. No. 97-442, § 2, 4-23-97; Ord. No. 97-910, § 1, 7-23-97)

Sec. 47-336. Private interim wastewater treatment plants.

In the event a reservation application is or would be denied because existing wastewater facilities are not adequate to serve the proposed development or because the proposed development requires utility service at a level in excess of the level available under existing service area restrictions, the property owner may, subject to the provisions of this section, construct and operate a private interim wastewater treatment plant to serve the proposed development and receive a wastewater capacity reservation conditioned upon

the construction and operation of the private interim treatment plant, participation in the next accelerated project in the same service area and payment of the applicable capital recovery charges at the time of subscribing to the accelerated project or, where there is no accelerated project, at the time adequate system wastewater facilities become available. In order to construct and operate a private interim wastewater treatment plant, the property owner must:

(a) Make written application to the director.

(b) Apply for and obtain waste discharge permits required by state and federal law and provide copies of the permit applications to the director and the Houston Health Department on the date of filing or, where the date of filing was prior to the effective date, within 30 days after such effective date.

(c) Provide for a three hundred-foot buffer zone between the treatment plant and adjoining land uses or provide for complete enclosure of the treatment plant within a building with odor control facilities for the exhaust air from the building.

(d) Provide for the discharge from the treatment plant directly into, or conveyed through a private conduit into, an open natural river, bayou or creek or open constructed storm drainage facilities.

(e) Secure a franchise from the city permitting the operation of a private utility line within designated public rights-of-way if any such lines are necessary to the operation of the treatment plant.

(f) If the use of public utility easements is necessary in order to provide service to the proposed development, enter into a waste treatment service contract with the city in which contract the director, in consultation with the Houston Health Department, may specify operating criteria.

(g) Obtain approvals for the treatment plant design from the Texas Department of State Health Servives and the director.

(h) Agree that, in the event that an accelerated project is proposed for the construction or expansion of the system's wastewater facilities which, when completed or expanded, would be adequate to serve the proposed development, the property owner will subscribe to that accelerated project in an amount adequate to acquire sufficient wastewater capacity in the system to serve the proposed development.

(i) Agree that, within six months of the date upon which adequate system wastewater facilities become available, the property owner, or his successors or assigns, will make proper application to the city for connection to the system and will discontinue operation of the treatment plant.

(j) Agree to provide to the Houston Health Department a copy of any and all reports on construction or operation of the treatment plant, including specifically all reports submitted to state or federal authorities, to provide any special reports reasonably required in writing by the director of the city health department and to maintain the treatment plant open to inspection by health department officials at all times.

(k) If the plant is not to be operated pursuant to a waste treatment service contract with the city, post with the director a "private sewage treatment plant operator's bond," in the form prescribed by the director, in a penal sum equal to 150 percent of the estimated annual cost of operating the plant (including rental costs or an amount equivalent to the fair market rental value of the plant site and of any equipment or necessary facilities owned by the property owner) and executed by the property owner and a corporate surety company licensed to do business in the state and shown on the most recent edition of the United States Treasury Circular 570 as having an "underwriting limitation" of at least the penal sum of the bond.

(l) Agree to provide for off-site disposal of all sludge produced by the treatment plant in the manner provided by applicable regulations, statutes and ordinances.

(m) Agree to have the treatment plant checked by a licensed sewage treatment plant operator at least once a day to insure that the plant is operating properly.

(Code 1968, § 49-736; Ord. No. 83-650, § 1, 5-3-83; Ord. No. 2015-820, §§ 34, 36, 8-26-2015)

Sec. 47-337. Review board.

There is hereby created and established a wastewater capacity reservation review board to consider appeals of certain decisions of the director under this article.

(a) The board shall consist of five members, three of whom shall be appointed by the mayor and confirmed by the city council and two of whom shall be appointed by the city council. Each member shall be appointed to one of five numbered positions and shall hold the qualifications and serve the two-year term prescribed for that position. The board shall select its own chairman.

(b) The terms of office for Positions 1, 3 and 5 shall expire on March 1st of odd-numbered years and the terms of office for Positions 2 and 4 shall expire on March 1st of even-numbered years. A member whose term has expired shall continue to serve until a successor is appointed and confirmed.

(c) The persons appointed to Positions 1 and 4 shall be registered as professional engineers with the State of Texas and shall be actively engaged in the practice of civil engineering. The members holding Positions 1, 2 and 3 shall be appointed by the mayor, subject to confirmation by the city council, and the members holding Positions 4 and 5 shall be appointed by the city council. No employee of the city may serve on the board; provided, however, that the director, though not a member, shall have the right to receive notice of and attend all meetings of the board. Positions on the board which become vacant due to death, resignation or removal shall be filled in the manner provided for original appointments to that position and the person so appointed shall serve for the remainder of the unexpired term. Three members of the board shall constitute a quorum.

(d) The board shall adopt reasonable rules of procedure for the conduct of its business.

(e) The board shall meet at such times and at such public places as may be required for the conduct of its business. The members shall serve without compensation.

(Code 1968, § 49-737; Ord. No. 83-650, § 1, 5-3-83)

Sec. 47-338. Appeals.

(a) A property owner who has made proper application under the terms of this article and is dissatisfied with a decision of the director on the application concerning:

(1) The issuance or recognition of a reservation of wastewater capacity;

(2) The applicability, amount or time of payment of capital recovery charges;

(3) The conversion of one type of reservation of wastewater capacity into another type; or

(4) The transfer of reserved wastewater capacity from one tract to another;

may appeal to the board in accordance with the provisions of this section.

(b) In order to appeal to the board a property owner must, within 15 days after receiving written notice of the director's decision, pay the applicable fee and file with the director a notice of appeal containing the following:

(1) A clear reference to the decision from which the property owner wishes to appeal.

(2) A short statement of the grounds for the appeal.

(3) A specific description of the action the property owner desires the board to take.

(4) The signature of the property owner.

(c) The director shall forward the notice of appeal to the board. During the ten days immediately following receipt of the notice of appeal, the director shall be authorized to modify the

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decision in question. If, pursuant to this authority, the director modifies his initial decision in such a manner as to grant to the property owner the relief requested, then in that event the board shall dismiss the appeal without action thereon.

(d) The board shall, upon receipt of a substantially complete notice of appeal, schedule a hearing on the matter and give reasonable notice of the time and location of the hearing. The hearing shall be held no earlier than ten days and no later than 40 days after receipt of the notice of appeal. A decision must be rendered within days after the hearing. The final decision of the board shall be in writing and shall either sustain the director's decision or grant all or a portion of the relief requested by the property owner.

(e) The board, in considering an appeal, may ascertain the relevant facts and may interpret the applicable provisions of this article, but may not grant exceptions to or variances from the provisions of this article except as provided in (f), below.

(f) (1) The board may order the director to issue a wastewater capacity reservation or restricted wastewater capacity reservation for a proposed development which would not otherwise qualify under the provision of this article, if the applicant files an application with the board prior to October 24, 1985, and can demonstrate that, prior to the effective date:

a. City officials represented to the applicant or his agents that wastewater capacity was reserved to serve the applicant's proposed development or that certain expenditures by the applicant would be credited against, or accepted in lieu of, any applicable charges for connecting to the system;

b. The applicant, in reasonable reliance upon such representation, incurred substantial expense in going forward with the proposed development and did not apply for issuance or renewal of a utility commitment letter for which the applicant's proposed development would have qualified; and

c. In view of the nature and extent of the city officials' representation and the actions taken by the property owner in reliance thereon it would be inequitable to require the property owner to comply with the provisions of this article.

(2) A reservation of wastewater capacity issued under authority of this subsection (f) may be conditioned in accordance with the circumstances under which it is issued and may provide for:

a. Restrictions against transfer;

b. Reduction or elimination of the capital recovery charge;

c. A change in the time at which the capital recovery charge is payable;

d. An amount of reserved wastewater capacity less than that applied for;

e. Such other restrictions, conditions or exceptions as may be appropriate.

(3) In no event shall the board order the director to issue a wastewater capacity reservation or restricted wastewater capacity reservation in wastewater facilities which are already fully loaded or reserved. In such circumstances the board may order the director to grant the appellant priority in the reservation of capacity in any new or expanded wastewater facilities which may be constructed in the future.

(g) The time limits prescribed for actions of the board are directory in nature and the board's failure to act within such limits shall not effect the validity of its actions. The time limit prescribed for the filing of a notice of appeal and

payment of the applicable fee is mandatory and the failure of the property owner to act within such time limits shall extinguish the right of appeal. All notices required or authorized by this article must be in writing and must either be hand delivered or mailed by United States mail. A notice delivered by mail shall be deemed to be received on the earlier of the date it is actually received, or the third day following the date upon which the notice was deposited, properly addressed and with proper postage attached, in custody of the U.S. Postal Service.
(Code 1968, § 49-738; Ord. No. 83-650, § 1, 5-3-83; Ord. No. 84-1673, § 4, 10-24-84)

Sec. 47-339. Fees.

(a) The fee for processing a reservation application shall be the lesser of:

(1) The fee determined according to the city fee schedule; or

(2) The maximum application processing fee stated in the city fee schedule.

The city and all of its departments and divisions shall be exempt from the processing fee.

(b) The fees for transfer of reserved wastewater capacity to a tract, lot or subdivision for the first tract from which capacity is transferred and for each additional tract (included in the same transfer application) from which capacity is transferred is stated for this provision in the city fee schedule.

(c) The fee for transfer of a wastewater capacity reservation from one person to another without changing the proposed development is stated for this provision in the city fee schedule.

(d) The fee for filing an appeal with the wastewater capacity reservation board is stated for this provision in the city fee schedule.

(e) All fees collected under this section shall be deposited to the same accounts as are revenues received from the sanitary sewer service charges imposed by this chapter and shall be used to pay the administrative costs incurred in processing applications.
(Code 1968, § 49-739; Ord. No. 83-650, § 1, 5-3-83; Ord. No. 84-1673, § 5, 10-24-84; Ord. No. 2011-1168, § 13, 12-14-2011)

Secs. 47-340—47-350. Reserved.

DIVISION 5. ACCELERATED PROJECTS

Sec. 47-351. Accelerated projects authorized.

(a) In areas served by the system where existing wastewater capacity is insufficient to meet current demand for additional service and such demand is sufficient to support the immediate acquisition or construction of improvements to increase the wastewater capacity of the system, the director is authorized and directed to define accelerated projects, and to provide for the financing thereof by soliciting prepaid capital recovery charges.

(b) In each such case the director shall determine, and publish a notice which states:

(1) A description of the area which will be served by the accelerated project.

(2) The total estimated cost of the accelerated project.

(3) The estimated minimum amount (the "city's minimum share"), in dollars, of the total cost of the accelerated project which will be financed by funds other than those received as prepaid capital recovery charges.

(4) The minimum amount (the "minimum subscription amount"), in dollars, of subscriptions which must be received before the city will commit to proceed with the accelerated project (such minimum amount shall not exceed a sum equal to 85 percent of the excess of the total estimated cost of the accelerated project over the city's minimum share).

(5) The maximum amount, in dollars, of subscriptions which will be accepted with regard to the accelerated project.

(6) The time period during which subscriptions will be accepted for the accelerated project (the "subscription period").

(7) The estimated date on which the accelerated project will become operational.

(Code 1968, § 49-751; Ord. No. 83-650, § 1, 5-3-83)

Sec. 47-352. Subscriptions to accelerated projects.

(a) In order to subscribe to an accelerated project a subscriber must file a reservation application for a proposed development located within the service area of the facilities constituting the accelerated project and, if the application is approved, must, within the time period prescribed, pay or provide

security for the payment of the capital recovery charges applicable to the proposed development. The director shall accept subscriptions on a first-come first-served basis in accordance with the date upon which each reservation application is received; provided, however, that subscriptions received for proposed developments which are currently served by private interim wastewater treatment plants will be given precedence over all other subscriptions regardless of the date of application. The director shall accept reservation applications which do not specify a proposed development. The aggregate total of such non-site specific reservation applications may not exceed 15 percent of the minimum subscription amount for the accelerated project.

(b) At the close of the subscription period, the director shall calculate the total dollar amount of subscriptions received and:

(1) If such amount equals or exceeds the minimum subscription amount; or

(2) If the director otherwise determines that the accelerated project should proceed and receives the approval of the city council;

then the director shall issue to each subscriber a wastewater capacity reservation in the amount of wastewater capacity for which application was made, conditioned upon the completion and acceptance of the accelerated project (or conditioned upon the occurrence of such other event in connection with the accelerated project as the director determines will reasonably assure that adequate facilities will be available prior to the initiation of utility service to the proposed developments).

(c) If, at the close of the subscription period, the director determines that less than the minimum subscription amount was received from subscribers and that the accelerated project should be cancelled, then the director shall notify each subscriber to the accelerated project of such cancellation and shall, within 60 days of the close of the subscription period, refund to each subscriber the amount of the capital recovery charges that subscriber has paid, plus interest earned by the city on such fund, if any, or release any security provided by that subscriber in connection with the subscription.

(d) The director shall accept as security for the payment of capital recovery charges, under this section, letters of credit which are:

(1) In the form or forms prescribed by the city attorney;

(2) Issued by a financial institution which meets the qualifications prescribed by the director of the department of finance; and

(3) For the full amount of the applicable capital recovery charges.

In addition to letters of credit, the director may accept other forms of security for the payment of capital recovery charges under this section if the city determines that such forms of security will adequately protect the interests of the city and if such forms of security are specifically identified in the published notice for the accelerated project for which they are to be accepted.

(Code 1968, § 49-752; Ord. No. 83-650, § 1, 5-3-83; Ord. No. 08-52, § 93, 1-16-08, eff. 1-26-08)

Sec. 47-353. Establishment of project priorities.

Before proceeding with the design and initiation of accelerated projects, the director shall review the current status of the system and its individual facilities, formulate a recommended priority list to be followed in the selection of

accelerated projects and submit that list to city council for its approval. In formulating the list the director shall consider:

(a) The current unfulfilled demand for service in each area.

(b) The amenability of existing facilities to expansion and the feasibility of constructing or otherwise acquiring new facilities.

(c) The time required to prepare necessary engineering plans.

(d) The availability of funds to finance the portion of the project which must be financed by revenue bonds, state or federal grant funds or other available funds.

(Code 1968, § 49-753; Ord. No. 83-650, § 1, 5-3-83)

Secs. 47-354—47-380. Reserved.

ARTICLE X. WATER IMPACT FEES

DIVISION 1. GENERAL PROVISIONS

Sec. 47-381. Purpose.

This article is intended to ensure the provision of adequate public facilities to serve new development in the city by requiring each such development to pay its pro rata share of the costs of water capital improvements necessitated by and attributable to such new development.

(Ord. No. 90-676, § 1, 6-6-90)

Sec. 47-382. Authority.

This article is adopted pursuant to chapter 395 of the Texas Local Government Code and pursuant to the Houston City Charter. The provisions of this article shall not be construed to limit the power of the city to utilize other methods authorized under state law or pursuant to other city powers to accomplish the purposes set forth herein, either in substitution for or in conjunction with this article.

(Ord. No. 90-676, § 1, 6-6-90)

Sec. 47-383. Definitions.

As used in this article, the following terms and phrases shall have the following meanings:

(1) *Assessment* means the determination of the amount of the maximum water impact fee per service unit that may be imposed on new development pursuant to this article, which determination occurs at the time specified in section 47-391.

(2) *Building permit* means:

a. With respect to buildings or premises within the corporate limits of the city, the general permit required by the Construction Code; or

b. With respect to buildings or premises outside the corporate limits of the city or for which a general permit under the Construction Code is not required, a plumbing permit under the Construction Code or under section 47-14 of this chapter.

(3) *City-constructed water facility* means a water facility paid for wholly or partially by the city, a water facility that has been acquired by the city upon assumption of obligations or debts for the construction costs thereof or by operation of law, a water facility paid for by any other person, firm, corporation or governmental subdivision that has been purchased or otherwise acquired by the city and water facilities paid for partly by the city and partly by others when connection thereto is to be made from property to be served thereby and the owners of such property did not contribute their proportionate share of the cost for the intended land use.

(4) *Credit* means the amount determined under this article by which a water impact fee is reduced as the result of a payment of a connection charge for city-constructed water facilities imposed pursuant city ordinances referenced in section 47-42 or payment of equivalent charges to a district providing such facilities within the city's water benefit area, prior to June 20, 1990. Credit shall not include payment of

a connection fee prior to June 20, 1990, or a payment of charges that are imposed to reimburse a property owner for the cost of extending a water main.

(5) *Reserved.*

(6) *Final plat recordation* means the filing of the final plat with the county clerk in the county in which the property platted is located, following compliance with all conditions for plat approval pursuant to chapter 42 of this Code.

(7) *Improved lot* means a lot on a tract of land on which there is located a complete permanent building capable of being occupied as a dwelling place or place of business.

(8) *Land use equivalency table* means the table approved by city council converting utilization of water capacity required by various land uses to numbers of service units.

(9) *New development* means a project involving the construction, reconstruction, redevelopment, conversion, structural alteration, relocation or enlargement of any structure; or any use or extension of the use of land; any of which has the effect of increasing the requirement for water capital improvements, measured by the number of service units to be generated by such activity, and that requires either the approval of a plat pursuant to the city's subdivision regulations, the issuance of a building permit, or connection to the city's water system and which has not been exempted from compliance with these regulations by provisions herein.

(10) *Offset* means the amount of the reduction of a water impact fee, determined under this article or pursuant to administrative guidelines, that is equal to the value of a water facility or portion thereof included in the water capital improvements plan, that is constructed or financed by a property owner.

(11) *Plat* means the plan or map for the subdivision to be filed for record with the county clerk in the county in which the property is located. Plat includes replat, but excludes development plat.

(12) *Property owner* means the owner in fee of a tract or parcel of land upon which new development is to be located, or his authorized representative.

(13) *Service unit* means a standardized measure of consumption of treated water system capacity which is equal to the average flow rate for a single-family dwelling unit in the Houston area.

(14) *Water benefit area* means the area within the city and the city's extraterritorial jurisdiction within which water impact fees for water capital improvements will be collected for new development occurring within such area and within which fees so collected will be expended for those improvements identified in the water capital improvements plan applicable to the benefit area.

(15) *Water capital improvement* means a water facility with a life expectancy of three or more years, to be owned or operated by or on behalf of the city.

(16) *Water capital improvements plan* means the plan adopted by city council, as may be amended from time to time, that identifies the water facilities and their associated costs which are necessitated by and which are attributable to new development, for a period not to exceed ten years, and which are to be financed in whole or in part through the imposition of water impact fees pursuant to this article.

(17) *Water connection* means authorization to connect a new development to the city's treated water system.

(18) *Water facility* means a facility designed or utilized for the purpose of producing, collecting, supplying, storing, pumping or conveying water, including an existing facility, the capacity of which has been

expanded to service new development. "Water facility" includes land, easements or structures and all appurtenances associated with such facilities. "Water facility" excludes those water lines or mains or portions thereof that are constructed by property owners, the costs of which are reimbursed from charges paid by subsequent users of the facilities.

(19) *Water impact fee* means a fee established by the city council for water facilities imposed on new development pursuant to this article in order to generate revenue to fund or recoup the costs of capital improvements necessitated by and attributable to such new development. Water impact fees do not include requirements for the dedication of rights-of-way or easements for such facilities, or for the construction of such improvements. Water impact fees also do not include payment of connection charges by persons receiving service from a water main, which charges are imposed to reimburse a property owner for the costs of extending such main.

(Ord. No. 90-676, § 1, 6-6-90; Ord. No. 93-514, § 128, 5-5-93; Ord. No. 02-399, § 93, 5-15-02)

Sec. 47-384. Water impact fees, in general.

(a) Except as otherwise provided herein, each new development within the city's water benefit area shall pay a water impact fee for water facilities necessitated by and attributable to that development as provided in division 2 of this article. Water impact fees shall be assessed against and collected from new development on the basis of service units. The water benefit area is established by the city council and may be amended from time to time.

(b) The maximum water impact fee per service unit that is assessed against new developments is established for this provision in the city fee schedule, per service unit, and the water impact fee that shall be collected from new development is is stated for this provision in the city fee schedule, per service unit. On July 1 of each year beginning in 2011, the water impact fee shall be adjusted by an amount equal to the percentage increase (if any) in the designated index for the preceding calendar year multiplied by the sum of water impact fees and wastewater impact fees, as established pursuant to section 47-316 of this Code, for the then-current year until the water impact fee equals or exceeds wastewater impact fee in dollar value. In each year after the water impact fee equals or exceeds wastewater impact fee in dollar value, water impact fees shall be adjusted by an amount equal to the percentage increase (if any) in the designated index for the preceding calendar year multiplied by the water impact fee only for the then current year, but shall never exceed the maximum water impact fee established herein. The director shall annually calculate the effective water impact fee on or before June 1 of each year, and make it available in his office upon request for public inspection.

For purposes of this subsection, the term designated index shall mean the United States Producers Price Index for All Commodities (1982=100), as published by the Bureau of Labor Statistics, U.S. Department of Labor. If such index is subject to adjustment later, then the city shall use the adjusted index, together with any correlation factor necessary to relate the later adjusted index to the earlier index, as published by the entity publishing the index, or if such publication is discontinued, the designated index shall then refer to comparable statistics on changes in the cost of living for urban consumers as the same may be computed and published by an agency of the United States or by a responsible financial periodical of recognized authority, which agency or periodical shall be selected by the city.

(c) This city council may amend water impact fees to be collected from new developments without amending the water capital improvements plan adopted herein, as long as the impact fees to be collected do not exceed the maximum water impact fees per service unit that may be assessed for such facilities.

(d) Effective May 19, 2021, the provisions of subsection (b) of this section, establishing requirements for the calculation and adjustment of the water impact fee related to the designated index, as defined therein, are hereby suspended. No later than June 1, 2026, the director shall calculate

the water impact fee per service unit that will take effect on July 1, 2026. The annual adjustment of the water impact fee shall resume, and water impact fees shall be adjusted, effective July 1, 2026, pursuant to the methodology established in subsection (b) of this section.
(Ord. No. 90-676, § 1, 6-6-90; Ord. No. 00-497, § 5, 6-14-00; Ord. No. 02-517, § 3, 6-26-02; Ord. No. 05-958, § 2, 8-24-05; Ord. No. 2010-482, § 5, 6-30-2010; Ord. No. 2010-583, § 4, 7-28-2010; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2021-388, § 6, 5-19-2021)

Editor's note—Ord. No. 2021-512, §§ 2(a)—(d), adopted June 16, 2021, amended Ord. No. 2021-388 to correct inadvertent errors in spelling, legal citations, cross-references and column headers.

Sec. 47-385. Replacement of existing charges.

On and after June 20, 1990, the provisions of this article relating to the assessment and collec-

tion of water impact fees, replace and supersede those provisions for payment of connection charges for city-constructed water facilities which had been established pursuant to city ordinances referenced in section 47-42.
(Ord. No. 90-676, § 1, 6-6-90)

Sec. 47-386. Connection of existing development.

If any owner of existing development within the water benefit area requests to be connected to the city's water system, and the department agrees to extend a water main to serve the development, the property owner shall pay a fee equivalent to that prescribed by and computed according to section 47-393 prior to connection to such system; provided, however, that an existing development so connected is entitled to a credit against the fee equal to the charge for one service unit.
(Ord. No. 90-676, § 1, 6-6-90)

Secs. 47-387—47-390. Reserved.

DIVISION 2. ASSESSMENT, COLLECTION AND COMPUTATION OF WATER IMPACT FEES

Sec. 47-391. Assessment of fees.

Assessment of water impact fees against new development shall be based on the maximum water impact fee per service unit, established by the city council. The time of assessment depends upon the time the development was platted pursuant to the city's subdivision regulations. Assessment shall take place as follows:

(1) For new developments that require platting prior to development and that have not received final plat recordation prior to June 20, 1990, assessment shall occur at the time of recordation of the final plat.

(2) For all other new development, assessment shall occur at the time of application for a building permit or at the time of water connection, whichever occurs first.

(Ord. No. 90-676, § 1, 6-6-90)

Sec. 47-392. Time of fee collection.

Water impact fees shall be collected at the time of issuance of building permits. In the event that a building permit is not required prior to development, collection shall be at the time of water connection.
(Ord. No. 90-676, § 1, 6-6-90)

Sec. 47-393. Computation of fees.

The department shall compute the water impact fees in the following manner:

(1) Except as otherwise provided in this section, the amount of the water impact fee due shall be determined by multiplying the number of service units generated by the new development by the water impact fee per service unit then in effect.

(2) Development of low and moderate cost single family housing is exempt from payment of impact fees. In order to qualify for this exemption, the house must be a single family residence located within city limits having an initial purchase price as certified by the property owner that does not exceed the latest available 12-month listing for median price single family housing in the city as published by the Real Estate Center at Texas A&M University. In the event the initial purchase price exceeds this amount, the property owner making the certification shall pay to the city the full amount of the impact fee as calculated under this section. If publication of the median price for single family housing is discontinued by the Real Estate Center at the Texas A & M University, the mayor is authorized to select another publication that lists the median price of single family houses in the city.

(3) In the event that the new development involves the razing or removing of existing structures, the water capacity utilized by such use or structure shall be converted to service units using the land use equivalency table. If the water service required for the new development exceeds such reserved capacity, the service units equivalent to the previously utilized ca-

pacity shall be subtracted from the total number of service units attributable to the new development, and the amount of the water impact fee due shall be the number of additional service units multiplied by the water impact fee per service unit then in effect.

(4) The amount of each water impact fee due shall be reduced by any allowable credits in the manner provided in section 47-394 of this Code.

(5) The amount of each water impact fee due for a new development shall not exceed an amount computed by multiplying the maximum water impact fee per service unit in effect at the time the new development was assessed by the number of service units generated by the development.

(6) If the property owner proposes to increase the number of service units for development following payment of the water impact fee, the additional water impact fees collected for such new service units shall be determined in the same manner as provided in this section.

(Ord. No. 90-676, § 1, 6-6-90; Ord. No. 90-717, § 1, 6-20-90; Ord. No. 97-442, § 3, 4-23-97)

Sec. 47-394. Determination of service units.

The number of service units attributable to a new development shall be determined by using the land use equivalency table established by the city council, which may be amended from time to time.

(Ord. No. 90-676, § 1, 6-6-90; Ord. No. 90-717, § 1, 6-20-90)

Sec. 47-395. Credits and/or offsets against water impact fees.

(a) A property owner who has paid a connection charge pursuant to city ordinances referenced in section 47-42 prior to June 20, 1990 for a city-constructed water facility, or who has paid an equivalent charge for a facility included in the water capital improvements plan to a district created under authority of article III, section 52, or article XVI, section 59 of the Texas Constitution, for which no reimbursement was received, may reduce the water impact fee due for the lot or tract for which the fee was paid by a like amount.

(b) A property owner who constructs or finances a water facility included in the water capital improvements plan pursuant to a development agreement approved by the city on or after June 20, 1990 may offset the value of such improvement against the water impact fee due from the development. The offset shall be associated with the plat of the property that is to be served by the water facility constructed or financed. The amount of the offset shall be determined pursuant to rules established in this section and administrative guidelines promulgated by the director. The city may also agree to offset the value of a water facility to be constructed or financed by the property owner, which has not been included in the water capital improvements plan, against water impact fees if it is reasonably anticipated that the facility shall be included within the next revision to such plan. In no event shall the offset allowable under this subsection exceed the amount of the water impact fees due, and no property owner shall be entitled to reimbursement for such excess amount unless the city otherwise agrees.

(c) The development agreement required by subsection (b) may provide for participation by the city in the costs of oversizing the water facility to be constructed or financed by the property owner, or may provide for reimbursement according to the terms of the agreement. The amount of any offset shall be reduced by the amount of the city's participation, or provision for reimbursement.

(d) A credit or offset associated with a plat shall be applied against a water impact fee due at the time that the first fee for the new development is collected, and thereafter to all subsequently collected fees, until the credit or offset is exhausted.

(Ord. No. 90-676, § 1, 6-6-90; Ord. No. 90-717, § 1, 6-20-90)

Secs. 47-396—47-400. Reserved.

DIVISION 3. ADMINISTRATION

Sec. 47-401. Accounting.

(a) All water impact fees collected within the water benefit area shall be deposited in a dedicated fund to which interest is allocated. All such amounts, together with all interest earned thereon, shall be used solely for the purposes set forth in subsection (b).

(b) The water impact fees collected pursuant to this article shall be used to finance or recoup the costs of any capital improvements identified in the water capital improvements plan for the water benefit area, including but not limited to the construction contract price, surveying and engineering fees, land acquisition costs (including land purchases, court awards and costs, attorneys' fees, and expert witness fees) and fees paid to an independent qualified engineer or financial consultant preparing or updating the water capital improvements plan. Water impact fees may also be used to pay the principal sum and interest and other finance costs on bonds, notes or other obligations issued by or on behalf of the city to finance such capital improvements.

(c) Disbursement of funds shall be authorized by the department at such times as are reasonably necessary to carry out the purposes intended by this article; provided, however, that funds shall be expended within a reasonable period of time, but not to exceed then ten years from the date water impact fees are deposited in the fund.

(d) An owner of property for which a water impact fee has been paid is entitled to a refund for all or a portion of the fee in the following circumstances:

(1) Upon application, any water impact fee or portion thereof collected pursuant to this article, that has not been expended within the water benefit area within ten years from the date of payment, shall be refunded to the record owner of the property for which the water impact fee was paid together with interest calculated from the date of collection to the date of refund at the statutory rate as set forth in article 5069-1.03, of the Texas Revised Civil Statutes Annotated, or its successor statute. A water impact fee shall be considered expended on a first-in, first-out basis. A water impact fee shall also be considered expended if the total expenditure for water facilities included in the water capital improvements plan, as may be amended from time to time, within the water benefit area within ten years following the date of payment, exceeds the water impact fees collected within the benefit area during such period.

(2) If a refund is due pursuant to paragraph (1), the department shall divide the difference between the amount of expenditures and the amount of the fees collected by the total number of service units for which water impact fees have been paid within the benefit area for the period to determine the refund due per service unit. The refund to the owner shall be calculated by:

a. Multiplying the refund due per service unit by the number of service units of the development for which the fee was paid; and

b. Determining interest due based on the amount calculated under subsection (d)(2)a.

(3) Upon completion of all the water facilities identified in the water capital improvements plan for the water benefit area, the department shall recalculate the maximum water impact fee per service unit using the actual costs for the water facilities. If the maximum water impact fee per service unit based upon actual cost is less than the water impact fee per service unit paid, the city shall refund the difference if such difference exceeds the water impact fee paid by more than ten percent. If the difference is less than ten percent, no refund shall be due. Refund to the record owner shall be calculated by:

a. Multiplying such difference by the number of service units of the development for which the water impact fee was paid; and

b. Determining interest due based on the amount calculated under subsection (d)(3)a.

(e) The department shall establish adequate financial and accounting controls to ensure that water impact fees disbursed from the fund are utilized solely for the purposes authorized. The department shall maintain and keep financial records for water impact fees, that shall show the source and disbursement of all fees collected in or expended within the water benefit area. The records of the fund into which water impact fees are deposited shall be open for public inspection and copying during ordinary business hours.

(f) Nothing in this article shall prevent the city from paying all or part of the water impact fees due for a new development pursuant to criteria adopted by the city council.
(Ord. No. 90-676, § 1, 6-6-90)

Sec. 47-402. Impact fee appeals.

(a) The property owner or applicant for a new development may appeal the following administrative decisions to an administrative hearing official appointed by the director:

(1) The applicability of a water impact fee to the development;

(2) The amount of the water impact fee due;

(3) Classification of the development under the land use equivalency table;

(4) The applicability of the credit or an offset to the development;

(5) The amount of a credit or of an offset; or

(6) The amount of a refund due, if any.

(b) The burden of proof shall be upon the applicant to demonstrate that the administrative decision was not made in accordance with this article or applicable state law.

(c) The applicant shall file a written notice of appeal with the director within 30 days following the date of the decision from which an appeal is made. If the notice of appeal is accompanied by a payment or other sufficient security satisfactory to the department in an amount equal to the original determination of the water impact fee due, the development application may be processed while the appeal is pending. Each appeal must include the processing fee stated for this provision in the city fee schedule.
(Ord. No. 90-676, § 1, 6-6-90; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 47-403. Relief procedures.

(a) Any person who has paid a water impact fee, or an owner of land for which a water impact fee has been paid, may petition the city council to determine whether any duty required by this article or by chapter 395 of the Texas Local Government Code has not been performed within the time so prescribed. The petition shall be in writing and shall state the nature of the unperformed duties and request that the duties be performed within 60 days of the request. If the city council determines that the duty is required pursuant to this article and is late in being performed, it shall cause the duty to commence within 60 days of the date of the request and to continue until completion. This subsection shall not apply to matters subject to appeal pursuant to section 47-402.

(b) The city council may grant a variance from any requirement of this article, upon written request by the property owner subject to the article, following a public hearing, and only upon finding that a strict application of such requirement would, when regarded as a whole, result in confiscation of the property.

(c) If the city council grants a variance to the amount of the water impact fee due for a new development under this section, it shall cause to be appropriated from other city funds the amount of the reduction in the water impact fee to the fund for the water benefit area in which the property is located.
(Ord. No. 90-676, § 1, 6-6-90)

Secs. 47-404—47-410. Reserved.

ARTICLE XI. TRANSPORTATION AND TREATMENT OF CERTAIN WASTES

DIVISION 1. GENERALLY

Sec. 47-411. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Applicant means a person applying for a permit required by this article.

Biological pretreatment service means the application of any additive or enzyme, including approved bioremediation media, or the use of any other biological means to digest waste in a grit trap/lint trap or grease trap that discharges into a public sewer system within the city.

Biological pretreatment service permit means a current and valid permit issued pursuant to this article authorizing the performance of biological pretreatment service.

Bioremediation media means enzymes or microbes injected into an interceptor for the purpose of biodegrading fat, oil, and grease. This term does not include any additives that will saponify or emulsify fat, oil and grease.

City official means the director of public health or the Director of Houston Public Works or their designees.

City-regulated waste means liquid, semi-liquid and solid wastes and wastewater removed from septic tanks used by single-family or multiple residential units, institutions or commercial establishments that primarily generate waste of a type associated with domestic use. It includes oily water, FOG, grease trap waste, sewage sludge, and portable toilet waste; as well as any materials collected in a septic tank, grit trap, lint trap, retention pond, utility service vault or any similar device, which materials result from or are incidental to any process of industrial, manufacturing, institutional or commercial operations including, but not limited to, mobile or stationary car or truck washing, pavement washing, environmental testing facilities and commercial laundries or laundromats.

Container means any portable device in which material is stored, transported, processed, disposed of or otherwise handled.

Department or *HHD* means the Houston Health Department.

Discharge or *indirect discharge* means the introduction of pollutants into the sanitary sewer system.

Disposal means the act of disposing.

Disposal site means a state-permitted or state-registered fixed facility to which waste is delivered for disposal.

Dispose means deposit, release, inject, dump, spill, leak or place any waste (whether or not contained) into or on any land or water so that the waste or any constituent thereof may enter the environment, including disposal into the air or discharge into any waters, including groundwater or sanitary or storm sewer systems.

Disposer means a person who operates a disposal site.

Drying bed means a structure intended for the drying of grit trap waste.

EPA means the United States Environmental Protection Agency.

Fats, oils and greases (FOG) means petroleum-based or mineral-based oils and greases or animal and vegetable-based fats. All are sometimes referred to herein as "grease" or "greases." These substances are detectable and measurable using analytical procedures established in 40 CFR 136, as may be amended from time to time.

Food service establishment has the meaning ascribed in section 20-18 of this Code, but shall not include mobile food units.

Generator means any person whose activities or process generate city-regulated waste within the city or who stores city-regulated waste within the city.

Generator permit means a current and valid permit issued pursuant to this article.

Generator permit number means the unique identification number on the generator permit.

Generator registration certificate means a current and valid certificate issued to a food service establishment pursuant to division 2 of this article.

Grease trap waste means that material accumulated in an interceptor in the sewer system at a food service establishment or any operation requiring a food dealer's permit pursuant to section 20-36 of this Code.

Grit trap/lint trap waste means waste collected in an interceptor at any maintenance and repair shop, automobile service station, car wash, laundry, beauty salon or other similar establishment.

Incompatible wastes means wastes that have different processing, storage or disposal requirements, or wastes that if mixed may cause a dangerous chemical or physical reaction.

Interceptor means a device designed to use differences in specific gravities to separate and retain FOG and settleable solids prior to the wastewater entering the sanitary sewer system. Interceptors may also be referred to as "grease traps".

Interference means a discharge that alone or in conjunction with a discharge or discharges from other sources inhibits or disrupts the sanitary sewer system, its treatment processes or operations or its sludge processes, use or disposal, or is a cause of a violation of any city TPDES permit, as defined in Article XII.

Lift station means a plumbing device used for pumping wastewater or sewage from a lower to higher elevation, particularly where the elevation of the source is not sufficient for gravity flow.

Manifest means a form approved by the health officer to document the collection, transportation and disposal of city-regulated waste.

Permit year means a permit period which runs from the 1st of February through the 31st of January of the following year.

Registered vehicle means a vehicle that is in compliance with all the requirements of division 4 of this article.

Sample well means a physical connection on a generator's sewer that is constructed to allow access for sampling and inspection of its interceptor.

Sanitary sewer system means the city's devices and systems used in the storage, recycling, and reclamation of municipal sewage or industrial wastes of a liquid or semi-liquid nature, including all sewers, pipes and other conveyances that convey wastewater to a sewage treatment plant. For purposes of this article, the terms public sewer system, *"sewer system"* and *"POTW"* as defined in Article XII, may be construed to have the same meaning as *"sanitary sewer system"*.

Sewage sludge means the residual material generated from the treatment of wastewater by a sewage treatment plant or pretreatment plant or material resulting from the cleaning of sanitary sewer lines.

Site means a contiguous tract or parcel of land under common ownership.

Spill means the loss or unauthorized release of waste.

Temporary transporter permit means a one month permit issued pursuant to division 3 of this article.

Transporter (primary or secondary) means a person who accepts waste that originates from a location within the city and who uses public rights-of-way for transportation of the waste. A generator or disposer who transfers its own waste over city streets for off-site disposal is also a transporter.

Transporter's manager means the individual having the primary responsibility for compliance with this article as identified on the transporter permit application form.

Transporter permit means a permit other than a temporary transporter permit issued pursuant to division 3 of this article.

Vehicle registration certificate means a certificate issued pursuant to division 4 of this article.

Waste means any type of city-regulated waste or any mixture thereof.

Waste load means the volume of waste that is transported from any specific site.

(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 04-1089, § 2, 10-20-04; Ord. No. 07-544, §§ 2—4, 5-9-07; Ord. No. 08-1229, §§ 2—4, 12-30-08; Ord. No. 2015-820, § 31, 8-26-2015; Ord. No. 2018-11, § 49, 1-10-2018; Ord. No. 2020-1024, §§ 3—5, 12-2-2020)

Sec. 47-412. Scope; interceptor or lift station requirement.

The purpose of this article is to protect the citizens and the environment from the potential hazard that may result from unauthorized waste releases and to deter illegal introduction of pollutants into the sanitary sewer system, storm sewers, street rights-of-way and other unauthorized places. It is not the intent of this article to address transportation of hazardous material in commerce or to regulate hazardous wastes that are subject to federal manifest requirements.

(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 5, 5-9-07; Ord. No. 2020-1024, § 6, 12-2-2020)

Sec. 47-413. Defenses.

(a) It is a defense to prosecution under this article that:

(1) The act or action complained of was the subject of regulation by the United States Secretary of Transportation under Chapter 51 of Title 49 of the United States Code; or

(2) The act or action complained of related to the generation, transportation, or disposal of waste that was subject to federal manifest requirements.

(b) With respect to sewage sludge, it is an affirmative defense to prosecution under this article that the sewage sludge meets the requirements of state regulations for land application for beneficial use.

(Ord. No. 07-544, § 6, 5-9-07)

Sec. 47-414. Mixing of wastes prohibited.

(a) No person shall mix incompatible wastes in the same container. It is a defense to prosecution under this section that a transporter mixed wastes as authorized in section 47-544 of this Code.

(b) No city-regulated waste may be directly disposed into the sanitary sewer.

(c) A violation of subsection (b) of this section shall be punishable by a fine of not more than $4,000.00.

(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, §§ 6, 7, 5-9-07; Ord. No. 08-1229, § 5, 12-30-08; Ord. No. 2021-431, § 12, 5-26-2021)

Note—Formerly § 47-413.

Sec. 47-415. Penalty.

Except as may otherwise be provided, whenever in this article an act is prohibited or is made or declared to be unlawful or an offense or misdemeanor, or whenever in this article the doing of anything or act is required or the failure to do anything or act is prohibited, the violation of the provision shall be and constitute a misdemeanor punishable, upon conviction, by a fine of not less than $250.00 nor more than $2,000.00. Each day that any violation continues shall constitute and be punishable as a separate offense. Any offense under this article that also constitutes a violation of any state penal law shall be punishable as provided in the applicable state law.

(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, §§ 6, 8, 5-9-07)

Note—Formerly § 47-414.

Sec. 47-416. Enforcement; legal actions.

(a) Any or all of the following remedies may be employed by the city to abate and prevent further violations of the provisions of this article:

(1) The department may discontinue city water service.

(2) The department may disconnect and seal the sanitary sewer connection.

(b) The city official is authorized to issue citations charging the violation of any of the provisions of this article.

(c) Consistent with applicable provisions of state and federal laws and regulations, the city attorney is hereby authorized to file and maintain civil legal actions to:

(1) Enjoin any violations of this article; and

(2) Enforce the state solid waste and water quality laws relating to matters addressed by this article.

(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, §§ 6, 9, 5-9-07)

Note—Formerly § 47-415.

Sec. 47-417. Responsibilities of agents and employees.

The responsibilities created under this article for biological pretreatment service providers, disposers, generators and transporters shall extend to the owners and other persons having possession and control of the site, facilities or equipment as well as to their officers, agents and employees having responsibilities for their operations.

(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 6, 5-9-07; Ord. No. 08-1229, § 6, 12-30-08)

Note—Formerly § 47-416.

Sec. 47-418. Hearings.

Applicants for permits or registrations under this article who are denied original or renewal permits or registrations or who are subject to revocation or suspension proceedings shall be afforded a right to a hearing. The hearings shall be conducted by a person designated by the director of the department in accordance with regulations issued for that purpose by the director. The regulations shall be submitted to the city attorney for approval prior to promulgation. If any of the grounds relate to section 1-10 of this Code, then a hearing shall be conducted under section 1-9 of this Code regarding those grounds.

(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 6, 5-9-07)

Note—Formerly § 47-417.

Sec. 47-419. Regulations.

The health officer is authorized to promulgate such regulations as are necessary to implement the provisions of this article. a copy of the regulations shall be maintained in the HHD offices for inspection by the public, and copies shall be made available for purchase at the fees prescribed by law.

(Ord. No. 07-544, § 10, 5-9-07; Ord. No. 2015-820, § 35, 8-26-2015)

Sec. 47-420. Reserved.

DIVISION 2. PERMITTING AND REGISTRATION OF GENERATORS*

Sec. 47-421. Permit or registration required.

(a) It shall be unlawful for any person, other than one operating a food service establishment, to act as a generator at any site for which a current and valid generator permit has not been issued under this division.

(b) It shall be unlawful for any person operating a food service establishment to act as a generator at any site for which a current and valid generator registration certificate has not been issued under this division.

(c) It is an affirmative defense to prosecution under this section that the waste generated at the site contains no city-regulated waste.

(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 12, 5-9-07; Ord. No. 08-1229, § 7, 12-30-08)

Sec. 47-422. Application.

In order to obtain a generator permit, a person shall complete a form provided by the health officer and pay the applicable fee. The applicant shall certify the holding capacity of the interceptor or lift station and provide evidence of any waste permits issued by the state to the applicant.

***Editor's note—**Ord. No. 07-544, § 11, adopted May 9, 2007, amended the title of Division 2 to read as herein set out. Formerly said division was entitled registration of generators.

If a site has more than one interceptor or lift station, a separate application must be completed for each interceptor or lift station.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 13, 5-9-07; Ord. No. 2020-1024, § 7, 12-2-2020)

Sec. 47-423. Fees; issuance of permit or registration certificate.

(a) The applicant shall submit a nonrefundable annual fee for each interceptor or lift station with each original and renewal application for a generator permit or registration certificate. The fee shall be payable in the form prescribed in the application. There shall be no fee to amend a generator permit or registration certificate; provided, however, that a fee shall be required to reissue a lost generator permit or registration certificate.

(b) The health officer shall either issue or deny the generator permit or registration certificate within 30 days after receipt of a completed application. If the generator permit or registration certificate is denied, the health officer shall provide written notice of the reasons to applicant, and the applicant shall be afforded opportunity to respond. The health officer shall issue the generator permit or registration certificate unless:

(1) The applicant provided incomplete or inaccurate information; or

(2) The applicant did not file an affidavit certifying the holding capacity of the interceptor; or

(3) The applicant did not pay any required fee.

(c) The fees for this division are set forth in the city fee schedule. Payment of any applicable fees when due is a condition of the processing of any application under this article.

(d) All fees collected pursuant to this division shall be deposited in the special waste transportation and inspection fund account established by the city council. Funds from this account may be expended for the costs relating to management and disposal of city regulated waste and other permitting, inspection, monitoring, controlling, education, and enforcement activities pertaining to environmental health services of the health department. By 60 days following the end of each fiscal year, any amount of money in the fund's current fiscal year-end fund balance that is in excess of four months of the average of the previous three fiscal years' audited expenditures less debt from the current fiscal year's ending fund balance, may be appropriated by city council and transferred to the general fund for general city expenditures, as needed, to the extent the transferred funds are not committed funds under any federal and state law, regulation, or grant.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 14, 5-9-07; Ord. No. 08-1229, §§ 8, 9, 12-30-08; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2013-617, § 17, 6-19-2013; Ord. No. 2015-820, § 34, 8-26-2015; Ord. No. 2019-447, § 5, 6-12-2019; Ord. No. 2020-1024, § 8, 12-2-2020)

Sec. 47-424. Term; revocation.

(a) Subject to continuing compliance with applicable provisions of this article, a generator permit or registration certificate shall be valid for a period of 12 months from the date it is issued.

(b) Following notice of the grounds and an opportunity for a hearing, the health officer may revoke a generator permit or registration certificate.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 15, 5-9-07)

Sec. 47-425. Amendment.

A holder of a generator permit or registration certificate shall have a continuing duty to apply for an amended permit or registration certificate within 15 days after the occurrence of an event that causes a change in any information for which a representation was made in its application. Failure to timely submit an application for an amendment shall cause the generator permit or registration certificate to become void. Applications for amendments shall be processed, and amended permits and registration certificates shall be issued, subject to the same criteria as

original applications, no later than 15 days following the occurrence of the event making the amendment necessary.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 16, 5-9-07)

Sec. 47-426. Assignment or transfer prohibited.

A generator permit or registration certificate is personal to the holder to whom it is issued and is valid only for the site and interceptor or lift station specified on the permit or certificate. A generator permit or registration certificate, including those issued for interceptors or lift stations, may not be conveyed or assigned to another person.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, §§ 17, 18, 5-9-07; Ord. No. 2020-1024, § 9, 12-2-2020)

Note—Formerly § 47-427.

Sec. 47-427. Posting required; fee for lost permit or certificate.

Each generator shall cause its generator permit or registration certificate to be conspicuously posted at the site for which it is issued. Upon request of a transporter or the health officer, the generator shall specify the location at which the generator permit or registration certificate is posted and shall make the generator permit or registration certificate available for inspection. If upon inspection the health officer cannot readily determine that the generator permit or registration certificate is available for inspection, the permit or certificate will be deemed lost. A fee shall be imposed for reissuing a lost generator permit or registration certificate.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, §§ 17, 19, 5-9-07; Ord. No. 08-1229, § 10, 12-30-08)

Note—Formerly § 47-428.

Secs. 47-428—47-430. Reserved.

DIVISION 3. PERMITTING OF TRANSPORTERS*

Sec. 47-431. Permit required.

It shall be unlawful for any person to act as a transporter unless the person holds a current and valid transporter permit or temporary transporter permit or is acting as the agent or employee of a person who holds a current and valid transporter permit or temporary transporter permit.
(Ord. No. 04-1089, § 3, 10-20-04)

Sec. 47-432. Types of waste covered.

Each transporter permit or temporary transporter permit shall specify the type or types of waste for which it is applicable. A transporter permit or temporary transporter permit is valid only for the classification or classifications of waste specified thereon.
(Ord. No. 04-1089, § 3, 10-20-04)

Sec. 47-433. Application.

The health officer shall promulgate forms for original and renewal transporter permit or temporary transporter permit applications, which shall request the following information:

(1) Name, street address, mailing address and telephone number of the applicant. The "applicant" shall be deemed to include the proprietorship, each partner if a partnership and each officer, director or holder of ten percent or more of the outstanding shares if a corporation.

(2) Name, street address and mailing address of the applicant's manager.

(3) A photocopy of the driver's license of each person, including the applicant's transporter manager, who will be authorized to operate any of the applicant's vehicles for the transportation of wastes under the permit.

*__Editor's note—__Ord. No. 04-1089, § 3, amended Ch. 47, Art. XI, Div. 3, in its entirety to read as herein set out. Formerly, said division pertained to similar subject matter and derived from Ord. No. 97-196, § 4, 2-19-97.

(4) The nature and classification of any waste that originates within the city that the applicant intends to transport.

(5) For each motor vehicle and motor vehicle trailer that the applicant desires to register under division 4 of this article, the following information:

a. The make, model and year of manufacture.

b. The current state vehicle license plate number.

c. The vehicle identification number.

d. The vehicle's waste hauling capacity certification.

e. A photocopy of the vehicle's registration papers.

(6) Whether the applicant or the applicant's manager or any vehicle driver has been convicted of any violation for which a transporter permit or temporary transporter permit is subject to denial, refusal to renew, or revocation under section 1-10 of this Code.

(7) The address of the physical location where each vehicle will be parked or garaged when not in use, if different from the addresses identified in items (1) and (2).

(8) Evidence of financial assurance for each vehicle and trailer not inconsistent with that described in Title 30 Texas Administrative Code Chapter 37, subchapter U. If the proof of financial assurances is in the form of an insurance policy, then the insurance policy must contain an endorsement requiring 30 days' advance written notice of cancellation to the health officer.

(9) Texas Commission on Environmental Quality transportation registration number.

(Ord. No. 04-1089, § 3, 10-20-04; Ord. No. 2011-194, § 2, 3-23-2011)

Sec. 47-434. Fee.

A nonrefundable permit application review fee shall be submitted with each original and renewal application for a transporter permit. A nonrefundable permit application fee shall be submitted with each original and renewal application for a temporary transporter permit. The fee shall be payable in such form as specified by the health officer on the application. There shall be no application review fee payable for the filing of an application for an amendment.

(Ord. No. 04-1089, § 3, 10-20-04; Ord. No. 07-544, § 20, 5-9-07; Ord. No. 08-1229, § 11, 12-30-08)

Sec. 47-435. Review.

(a) Unless a hearing is required under section 1-9 of this Code, the health officer shall either grant or deny the permit within five days following the receipt of a completed application for a temporary transporter permit or within 30 days following the receipt of a completed application for a transporter permit. If the transporter permit or temporary transporter permit is denied, written notice of the reasons shall be provided to applicant, and the applicant shall be afforded an opportunity for a hearing. The health officer shall grant the transporter permit or temporary transporter permit unless one or more of the following applies:

(1) The applicant provided incomplete or inaccurate information in the application.

(2) The applicant did not provide any required financial assurance or pay any required fee.

(3) A transporter permit or temporary transporter permit held by the applicant is currently under suspension.

(4) A transporter permit or temporary transporter permit held by the applicant has been revoked or refused for renewal for cause within one calendar year of the date of filing of an application form.

(5) The applicant failed to submit any required information or documents regarding any vehicle to be registered under the permit.

(6) The applicant failed to submit proof that it holds any required state registration, license or permit for the services to be provided.

(b) If it appears that the applicant, the applicant's manager, or any vehicle driver has been convicted of any violation for which a transporter permit or temporary transporter permit is subject to denial, refusal to renew, or revocation under section 1-10 of this Code, then the permit application may also be denied on that grounds, provided that the applicant shall be given notice and an opportunity for a hearing under section 1-9 of this Code.
(Ord. No. 04-1089, § 3, 10-20-04; Ord. No. 2011-194, § 3, 3-23-2011)

Sec. 47-436. Reserved.

Editor's note—Ord. No. 2011-194, § 4, adopted March 23, 2011, repealed § 47-436 in its entirety. Formerly, said section pertained to permit bond and derived from Ord. No. 04-1089, § 3, 10-20-04; Ord. No. 08-1229, § 12, 12-30-08.

Sec. 47-437. Term; renewal.

A transporter permit shall expire on January 31 of the year following the calendar year during which it was issued. A temporary transporter permit shall expire on the date specified on the registration certificate. A transporter may not be issued more than three one-month permits during any permit year.
(Ord. No. 04-1089, § 3, 10-20-04)

Sec. 47-438. Assignment or transfer prohibited.

(a) A transporter permit or temporary transporter permit is personal to the holder to whom it is issued and is valid only for the transporter named on the permit. A transporter permit or temporary transporter permit may not be conveyed or assigned to another person.

(b) Each transporter permit or temporary transporter permit shall specify the names of the transporter's manager and each vehicle driver authorized thereunder. The permit shall not authorize any person not designated as the transporter's manager thereon to act as the transporter's manager, nor shall it authorize any person not designated as a driver thereon to operate any vehicle for the transportation of waste under the permit.
(Ord. No. 04-1089, § 3, 10-20-04; Ord. No. 07-544, § 21, 5-9-07)

Sec. 47-439. Amendment.

(a) The holder of a transporter permit or temporary transporter permit shall have a continuing duty to apply for an amended permit within 15 days after the occurrence of an event that causes a change in any information for which a representation or response was made in its permit application. Failure to timely submit an application for an amendment shall cause the transporter permit or temporary transporter permit to become void. Applications for permit amendments shall be processed and amended permits shall be issued subject to the same criteria as original applications.

(b) The 15-day period allowed in subsection (a) for the filing of an application for a permit amendment shall not apply to the addition of drivers or vehicles or to the changing of the transporter's manager. A person may not act as the transporter's manager or operate a vehicle for the transportation of waste under the transporter permit or temporary transporter permit unless and until so designated on such permit or an amendment thereto. Nor may a vehicle not designated on the transporter permit or temporary transporter permit be utilized under such permit unless and until so designated on such permit or an amendment thereto.
(Ord. No. 04-1089, § 3, 10-20-04; Ord. No. 07-544, § 22, 5-9-07)

Sec. 47-440. Revocation or suspension.

(a) The health officer may revoke or suspend a transporter permit or temporary transporter permit following written notice and an opportunity for a hearing, if one or more of the following apply:

(1) The applicant provided incomplete or inaccurate information in the application;

(2) The permit was issued in error;

(3) The transporter or the transporter's manager or any of the transporter's drivers has been convicted of any offense or offenses that constitute grounds for denial, refusal to renew or revocation under section 1-10 of this Code;

(4) The transporter has failed to timely pay a bill for disposal or clean-up services rendered by or for the city under this article or a claim against the transporter's financial assurance has been dishonored;

(5) The transporter or the transporter's manager or any of the transporter's drivers has committed any violation of this article or of any city, state or federal law or regulation that applies to the rendition of services hereunder;

(6) The transporter has failed to maintain evidence of financial responsibility required hereunder and provide the required proof to the health officer; or

(7) The transporter or its manager or any of its drivers has failed to timely, completely and accurately provide any notice, report or other document that is required to be filed with the city under this article.

(b) The health officer shall consider the seriousness of the matter involved, whether the violation was intentional, whether effective measures have been taken to prevent recurrence of the violation and the likelihood of repeated violations of this article or any solid waste, hazardous waste, or water quality law by the transporter, the transporter's manager and/or the transporter's drivers when deciding whether to suspend or revoke a transporter permit or temporary transporter permit; however, revocation shall be mandatory and continue until the end of the permit term whenever the transporter permit or temporary transporter permit has already been suspended once during the transporter permit or temporary transporter permit term.

(c) Within seven days following the effective date of any revocation of a transporter permit or temporary transporter permit as authorized under this section, the transporter shall surrender all of its manifests and registration forms to the health officer. A holder of a transporter permit shall also produce its registered vehicles at a location designated by the health officer and allow the health officer to remove the registration decals, and a holder of a temporary transporter permit shall surrender all registration certificates to the health officer. Additionally, the transporter shall provide the health officer with an accounting of all manifests in its possession.

(Ord. No. 04-1089, § 3, 10-20-04; Ord. No. 08-1229, § 13, 12-30-08; Ord. No. 2011-194, § 5, 3-23-2011)

Secs. 47-441—47-450. Reserved.

DIVISION 4. TRANSPORTER VEHICLE REGISTRATION*

Sec. 47-451. Registration required.

It shall be unlawful for any person to utilize a motor vehicle or motor vehicle trailer for the transportation of waste originating within the city unless the driver of the vehicle has been designated on a current and valid transporter permit or temporary transporter permit and the vehicle or trailer has been designated on that permit.

(Ord. No. 04-1089, § 3, 10-20-04)

Sec. 47-452. Decals and certificates.

(a) It shall be unlawful for any person to utilize a motor vehicle or motor vehicle trailer for the transportation of waste originating within the city unless the vehicle or trailer has a registration decal affixed as provided in this division or a vehicle registration certificate issued as provided in this division.

(b) The health officer shall place a registration decal on each registered vehicle operated by a holder of a transporter permit. In the case of tractor-trailer combinations, either component may be the registered vehicle for registration

*__Editor's note—__Ord. No. 04-1089, § 3, adopted October 20, 2004, amended Ch. 47, Art. XI, Div. 4, in its entirety to read as herein set out. Formerly, said division pertained to similar subject matter and derived from Ord. No. 97-196, § 4, 2-19-97.

decal placement. The design and form of the registration decal shall be as promulgated by the health officer and shall include the date of expiration, which shall be coterminus with the transporter permit expiration.

(c) The health officer shall issue a registration certificate for each registered vehicle operated by a holder of a temporary transporter permit.
(Ord. No. 04-1089, § 3, 10-20-04; Ord. No. 08-1229, §14, 12-30-08)

Sec. 47-453. Conditions for issuance.

(a) The health officer shall issue registration decals for a given vehicle only if each of the following conditions exists:

(1) The transporter holds a current and valid transporter permit and the information contained on the vehicle's registration or title corresponds to the information given on the transporter's permit application or an amendment thereto.

(2) The transporter has paid the applicable vehicle registration fee. Vehicle registration fees shall not be refundable and cannot be prorated.

(3) The transporter makes the vehicle available to the health officer at a reasonable time for verification of vehicle identification and placement of registration decals.

(4) The transporter is identified by placing the transporter's name or logo and telephone numbers on each side of either the tractor, trailer, or tank in letters that are at least three inches high having a brush stroke width of at least 3/8-inch. The information shall be affixed by painting, attaching a decal or using other permanent means.

(5) The vehicle has a current state inspection sticker.

(6) The vehicle has a current state license registration.

(7) The vehicle is equipped with discharge valve markings as required by applicable state regulations.

(8) The vehicle is equipped with site gauges or alternative measurement devices that comply with state requirements.

(b) The health officer shall issue registration certificates for a given vehicle only if each of the following conditions exists:

(1) The transporter holds a current and valid temporary transporter permit and the information contained on the vehicle's registration or title corresponds to the information given on the transporter's permit application or an amendment thereto.

(2) The transporter has paid the applicable vehicle registration fee. Vehicle registration fees shall not be refundable and cannot be prorated.

(3) The transporter makes the vehicle available to the health officer at a reasonable time for verification of vehicle identification and placement of registration decals.

(c) Notwithstanding subsection (a), the health officer shall have the authority to withhold the issuance of a registration decal to any transporter who is a commercial solid waste operator and has not paid the annual franchise fee required by section 39-116 of this Code.
(Ord. No. 04-1089, § 3, 10-20-04; Ord. No. 08-1229, §§ 15—17, 12-30-08; Ord. No. 2011-194, § 6, 3-23-2011)

Sec. 47-454. Placement; visibility.

(a) The health officer shall determine the number of registration decals to be attached and their location on each vehicle based upon the configuration of the vehicle.

(b) It shall be the duty of the transporter permit holder and the driver of the vehicle to ensure that each registration decal is kept free of mud, dirt or any other obscuring material.

(c) It shall be the duty of the temporary transporter permit holder and the driver of the vehicle to ensure that each vehicle registration certificate is maintained in the vehicle while the vehicle is being operated under the permit. The

driver of the vehicle shall display the registration certificate issued for the vehicle upon the demand of a health officer or peace officer.
(Ord. No. 04-1089, § 3, 10-20-04)

Sec. 47-455. Reserved.

Editor's note—Ord. No. 08-1229, § 18, adopted December 20, 2008, effective January 1, 2009, repealed § 47-455 in its entirety. Formerly said section pertained to change of waste classification and derived from Ord. No. 04-1089, § 3, 10-20-04; Ord. No. 07-544, § 23, 5-9-07.

Sec. 47-456. Replacement; transfer.

(a) It shall be unlawful to remove any registration decal from a vehicle and place it on another vehicle. A registration decal shall automatically become void if it is attached to a vehicle other than the specific vehicle for which it was provided by the health officer.

(b) In the event a transporter desires replacement registration decals (as may be necessary if the vehicle is painted or repaired) or wishes to transfer waste decals to a replacement vehicle, the transporter shall surrender all registration decals for the vehicle and shall pay a registration decal replacement charge per vehicle. No registration decal shall be provided for a replacement vehicle until the transporter permit has been amended to include that vehicle. No replacement registration decal shall be provided unless the transporter surrenders the decals to be replaced or provides conclusive evidence that they have been destroyed. If the decals are not surrendered and the required proof is not provided, then the full vehicle registration fee applicable under this division shall be payable.
(Ord. No. 04-1089, § 3, 10-20-04; Ord. No. 08-1229, § 19, 12-30-08)

Secs. 47-457—47-460. Reserved.

DIVISION 5. DISPOSAL OF WASTE AT CITY FACILITIES

Secs. 47-461—47-463. Reserved.

Editor's note—Ord. No. 08-1229, § 20, adopted December 30, 2008, effective January 1, 2009, repealed §§ 47-461—47-463 in their entirety. Formerly said sections pertained to discharge at city sewage treatment facilities; grab samples; prohibited discharges and derived from Ord. No. 97-196, § 4, 2-19-97.

Sec. 47-464. Emergency disposal of portable toilet waste at city facilities.

(a) Upon the health officer's findings that conditions of force majeure exist, that there exist insufficient permitted disposal facilities within the area contiguous to the city for the disposal of portable toilet wastes and that a public health emergency exists or may exist, the utility official is authorized to declare a public health emergency and allow transporters to discharge portable toilet wastes into designated city sewage treatment facilities in accordance with the provisions of this division. To initiate emergency disposals, the health officer must file a declaration of public health emergency with the city secretary. The health officer shall specify the conditions or circumstances that cause or threaten to cause the public health emergency. A declaration of public health emergency shall end when the health officer files with the city secretary a written declaration finding that the conditions requiring the original certification of a public health emergency no longer exist.

(b) Transporters allowed to discharge portable toilet waste into designated city sewage treatment facilities shall:

(1) Discharge portable toilet wastes only;

(2) Discharge only from vehicles displaying registration decals authorizing transportation of city-regulated waste; and

(3) Comply with all other applicable provision of this article and environmental laws.

(c) A violation of this section shall be punishable by a fine of not more than $4,000.00.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 08-1229, § 21, 12-30-08; Ord. No. 2021-431, § 13, 5-26-2021)

Sec. 47-465. Discharge fees.

The discharge of waste at a city sewage treatment facility shall be in accordance with the

terms of section 47-464 of this Code and shall require payment of the discharge fee established by city council. The utility official is authorized to establish the method of payment for the discharge fee, as well as any additional regulations and procedures for the documentation of waste transfer and the orderly collection of fees required by this section. Without limitation, the regulations and procedures may provide for immediate suspension of discharge privileges following notice to any transporter who is delinquent in payment of fees or has otherwise violated city regulations in the discharge of waste at city sewage treatment facilities. Upon request, a suspended transporter shall be given a prompt hearing by the utility official or his designee.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 08-1229, § 22, 12-30-08)

Secs. 47-466—47-470. Reserved.

DIVISION 6. BIOLOGICAL PRETREATMENT

Sec. 47-471. Permit required.

(a) It shall be unlawful to perform any biological pretreatment service except pursuant to a current and valid permit issued pursuant to this division.

(b) It shall be unlawful for any person whose name is not listed on a permit as provided in section 47-473(d) of this Code and acting on behalf of that permit holder to perform any biological pretreatment service function.

(c) It shall be unlawful for a generator or Class A site operator to suffer or permit the performance of any biological pretreatment service on any site under his possession or control by any person who does not hold a current and valid permit issued under this division.

(d) It shall be unlawful for any person to cause or allow bioremediation to be performed on an interceptor or lift station by a person that does not possess a current permit for biological pretreatment or approved bioremediation media.

(e) It shall be unlawful for any person to cause or allow the introduction of any surfactant, solvent or emulsifier into an interceptor, lift station, or similar device.

(f) It is a defense to prosecution under this section that the use of surfactants, solvents or emulsifiers is incidental to normal personal hygiene.

(g) It is a defense to prosecution under this section that the person is the owner or operator of the site where the interceptor or lift station is situated, or an employee or agent of the owner or operator, and that the biological pretreatment service is being performed under the direction of a biological pretreatment service permit holder, provided that all notices and reports provided for under this article have been timely filed. It is also a defense to prosecution under this section that the site is used exclusively for residential purposes.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 24, 5-9-07; Ord. No. 2020-1024, § 10, 12-2-2020)

Sec. 47-472. Application; fees.

(a) The health officer shall promulgate forms for original and renewal biological pretreatment service permit applications, which shall request the following information:

(1) Name, street address, mailing address and telephone number of the applicant. The "applicant" shall be deemed to include the proprietorship, each partner if a partnership and each officer, director or holder of ten percent or more of the outstanding shares if a corporation.

(2) A copy of the material safety data sheet for each product that will be utilized to render the biological pretreatment service.

(3) A photocopy of the driver's license or Texas personal identification card of each person who will be authorized to perform biological pretreatment service functions on behalf of the applicant.

(4) Whether the applicant or any employee designated under item (3) of this subsection has been convicted of any violation

for which a biological pretreatment service permit is subject to denial, refusal to renew or revocation under section 1-10 of this Code.

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(5) Evidence of a comprehensive general liability insurance policy as required in section 47-475 of this Code.

(b) A non-refundable biological permit and registration fee shall be submitted with each original and renewal application.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 02-528, § 13h., 6-19-02; Ord. No. 08-1229, § 23, 12-30-08)

Sec. 47-473. Issuance; transfer; assignment.

(a) The health officer shall either grant or deny the biological pretreatment service permit within 30 days following the receipt of a completed application, unless a hearing is required under section 1-9 of this Code. If the biological pretreatment service permit is denied, written notice of the reasons shall be provided to applicant, and the applicant shall be afforded an opportunity for a hearing. The health officer shall grant the biological pretreatment service permit unless one or more of the following applies:

(1) The applicant provided incomplete or inaccurate information in the application.

(2) The applicant did not pay the required application processing fee.

(3) A biological pretreatment service permit held by the applicant is currently under suspension.

(4) A biological pretreatment service permit held by the applicant has been revoked or refused for renewal for cause within one calendar year from the date of filing of the application form.

(5) The applicant failed to provide proof of the liability insurance coverage required in section 47-475 of this Code. If it appears that the applicant or any employee designated under item (3) of section 47-472(a) has been convicted of any violation for which a biological pretreatment service permit is subject to denial, refusal to renew, or revocation under section 1-10 of this Code, then the permit application may also be denied on that grounds, provided that the applicant shall be given notice and an opportunity for a hearing under section 1-9 of this Code.

(b) *Reserved.*

(c) A biological pretreatment service permit is personal and is valid only for sites for which notice has been given as provided in section 47-478(a) of this Code. Any attempt to assign or transfer a biological pretreatment service permit to another person shall render it void.

(d) Each biological pretreatment service permit shall list the names of the persons authorized to perform biological pretreatment service functions under the permit. The permit shall not be valid for the performance of biological pretreatment service functions by any person not listed thereon.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 02-528, § 13i., 6-19-02)

Sec. 47-474. Term.

A biological pretreatment service permit shall expire on January 31 of the year following the calendar year during which it was issued.
(Ord. No. 97-196, § 4, 2-19-97)

Sec. 47-475. Liability insurance.

A biological pretreatment service permit holder shall at all times keep a policy of comprehensive general liability insurance in full force and effect. The policy shall insure the public against any loss or damage to any person or property resulting from the conduct of the biological pretreatment service. The policy shall provide a minimum coverage of $250,000.00 per occurrence, with $500,000.00 aggregate. The policy must be written by a carrier that holds a current and valid certificate of authority from the state of Texas for the type of policy issued. Additionally, each policy must contain an endorsement requiring 30 days' advance written notice of termination or cancellation to the health officer. Failure to maintain proof of the required with the health officer shall cause the permit to become void.
(Ord. No. 97-196, § 4, 2-19-97)

Sec. 47-476. Amendment.

(a) A biological pretreatment service permit holder shall have a continuing duty to amend its permit application whenever there is a change in any item for which a representation or response was made in its permit application. The biological pretreatment service permit holder shall submit the amendment in writing within 15 days following the occurrence of the event making the amendment necessary. Failure to timely submit an application for an amendment shall cause the permit to become void. Applications for permit amendments shall be processed and amended permits shall be issued subject to the same criteria as original applications.

(b) The 15-day period allowed in subsection (a) for the filing of an application for a permit amendment shall not apply to the addition of persons authorized to perform biological pretreatment service functions under the permit. A person may not perform biological pretreatment service functions under the permit unless and until so listed on the permit or an amendment thereto.
(Ord. No. 97-196, § 4, 2-19-97)

Sec. 47-477. Revocation; suspension.

A biological pretreatment service permit may be revoked or suspended in the same manner and for the same reasons as for a permit issued to a transporter under this article.
(Ord. No. 97-196, § 4, 2-19-97)

Sec. 47-478. Reports.

(a) Prior to the commencement of service at any site, a biological pretreatment service permit holder shall provide written notice to the health officer in a form prescribed by the health officer. Any such notice shall remain in effect until withdrawn in writing by the biological pretreatment service permit holder.

(b) On or before the fifteenth day of each calendar month, each biological pretreatment service permit holder shall provide a monthly report, accompanied by a processing fee, to the health officer, setting forth the name, address and telephone number of each site at which biological pretreatment service was performed, the dates on which the service was rendered during the preceding calendar month.

(c) Reports and notices under this section shall be made in or on a form promulgated by the health officer, shall be filed in such manner as the health officer may prescribe by regulations and shall be kept on site for at least five years after the date the biological pretreatment service was performed. The records shall be made available to the city official upon request. A copy of the regulations shall be maintained for inspection in the offices of the health officer, and copies shall be provided at the fees prescribed by law.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 25, 5-9-07; Ord. No. 08-1229, § 24, 12-30-08)

Secs. 47-479—47-480. Reserved.

DIVISION 7. CAR WASH DRYING BEDS

Sec. 47-481. Permit required.

It shall be unlawful for any person to operate or cause to be operated a drying bed for grit trap waste at any car wash premises for which a current and valid generator permit has not been issued under this article.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 26, 5-9-07)

Sec. 47-482. Application; standards.

In order to obtain a drying bed generator permit, a car wash operator shall make application on a form provided for that purpose by the health officer and shall demonstrate that the facility will, at a minimum, meet the following requirements:

(1) The base of the drying bed shall be made of impervious material sufficient to prevent the release of any leachate;

(2) The drying bed shall be surrounded by a berm made of impervious material sufficient to prevent the release of any leachate, be not less than two feet in height and provide at least one foot of freeboard at all times;

(3) The drying bed shall be covered. The cover shall not be more than eight inches nor less than four inches in height above the wall of the drying bed and shall extend at least one foot beyond the outside of the berm;

(4) The drying bed shall be adequately ventilated to prevent the accumulation of emissions;

(5) All construction must comply with the Construction Code;

(6) All discharges from the drying bed shall be returned to a grit trap or back to the structure itself; and

(7) The drying bed must be at least ten feet from any property boundary.

(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 02-399, § 94, 5-15-02; Ord. No. 07-544, § 27, 5-9-07)

Sec. 47-483. Issuance; acceptance.

(a) Following receipt of a properly completed application, the health officer shall issue a generator permit to the applicant for the site designated on the application, unless it is determined that the facility will not comply with the criteria established in section 47-482 of this Code. If the application is denied, then the applicant shall be given written notice of the grounds and shall be afforded an opportunity for a hearing.

(b) Following receipt, the applicant shall review the generator permit for accuracy and sign it if it is correct. If the generator permit contains any inaccuracies, the applicant shall notify the department and return the generator permit for correction. The generator permit shall be valid only when signed by the car wash operator.

(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 28, 5-9-07)

Sec. 47-484. Term; cancellation.

(a) Subject to continuing compliance with applicable provisions of this article, a registration certificate shall be of perpetual duration.

(b) Following notice of the grounds and an opportunity for a hearing, the health officer may cancel a registration certificate.

(Ord. No. 97-196, § 4, 2-19-97)

Sec. 47-485. Amendment.

A generator permit holder shall have a continuing duty to request amendment of its generator permit whenever there is a change in any item for which a representation or response was made in its application. The generator permit holder shall submit an application for the amendment in writing within 15 days following the occurrence of the event making the amendment necessary. Failure to timely submit an application for amendment shall cause the generator permit to become void.

(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 29, 5-9-07)

Sec. 47-486. Fees; lost generator permits.

There shall be no fee for the filing of an original application or amendment application under this division or for the issuance of an original generator permit or an amendment thereto. However, a fee shall be imposed for reissuance of a lost or missing generator permit.

(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 30, 5-9-07; Ord. No. 08-1229, § 25, 12-30-08)

Sec. 47-487. Assignment or transfer prohibited.

A generator permit is personal to the holder to whom it is issued and is valid only for the site specified thereon. Any attempt to assign or transfer a generator permit to another person or site shall render it void.

(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 31, 5-9-07)

Sec. 47-488. Posting required.

Each generator permit holder shall cause its generator permit to be conspicuously posted at the site to which it pertains. Upon request of a transporter or the health officer, the generator permit holder shall specify the location at which

the generator permit is posted and shall make the generator permit available for verification and inspection.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 32, 5-9-07)

Sec. 47-489. Reserved.

Editor's note—Ord. No. 08-1229, § 26, adopted December 20, 2008, effective January 1, 2009, repealed § 47-489 in its entirety. Formerly said section pertained to transportation of grit trap waste and derived from Ord. No. 97-196, § 4, 2-19-97.

Secs. 47-490—47-500. Reserved.

DIVISION 8. DOCUMENTS*

Sec. 47-501. Manifests.

(a) The department shall promulgate a multiple-copy form for manifests to be used by generators, transporters and disposers to document the transfer of waste.

(b) The manifest copies shall be designated as follows:

(1) Generator copy (white).

(2) Generator return copy (yellow).

(3) HHD copy/transporter copy.

(4) HHD copy/secondary transporter copy. If a secondary transporter is not used, this copy may be retained by the primary transporter.

(5) Disposal site copy.

(c) Reserved.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 33, 5-9-07; Ord. No. 08-1229, §§ 28, 29, 12-30-08; Ord. No. 2015-820, § 35, 8-26-2015)

*Editor's note—Ord. No. 08-1229, § 27, adopted December 30, 2008, effective January 1, 2009, amended the title of Ch. 47, Art. XI, Div. 8, to read as herein set out. Formerly Division 8 was entitled Manifest/Septic Tank Control Ticket Documents.

Sec. 47-502. Manifest requirements.

(a) It shall be unlawful for any reason to allow waste to be removed from a septic tank, trap, interceptor, lift station, or other device without first obtaining a completed manifest.

(b) The generator's portion of the manifest shall be completed with the following information:

(1) Name of generator;

(2) Generator address, including zip code;

(3) Generator permit or registration certificate number;

(4) Generator telephone number, including cellular phone number, if available, of generator's contact person;

(5) Holding capacity of trap or interceptor, lift station, or similar device;

(6) Date waste was collected;

(7) Name of transporter and its permit number;

(8) Transporter vehicle registration number, decal or certificate information, vehicle license plate number and tank capacity;

(9) Name and signature of transporter vehicle operator;

(10) Transporter mailing address and telephone number;

(11) Type and quantity (in gallons or pounds) of waste removed; and

(12) Name and address of intended disposal site.

(c) The transporter shall detach the generator's copy of the manifest and leave it with the generator.

(d) The remainder of the manifest shall be completed with the following information:

(1) Secondary transporter's name, address, telephone number and permit number, if a secondary transporter is used;

(2) Name and signature of secondary transporter's vehicle operator, if a secondary transporter is used;

(3) Location at which the waste was transferred to the secondary transporter, if applicable;

(4) Name, address and telephone number of disposer;

(5) Quantity (in gallons or pounds) of waste received and date;

(6) Name of manager/operator of disposer;

(7) Dated signature of disposer's manager/operator; and

(8) Any other relevant information reasonably required by the health officer.

(e) The transporter shall return the generator return copy to the generator within 15 days after the interceptor, lift station, or similar device has been cleaned.

(f) The generator shall retain all white and yellow copies of manifests on the site where the waste originated for at least five years after the waste was removed.

(g) Upon request by a health officer, the generator shall produce all originals of manifests for inspection and verification.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 34, 5-9-07; Ord. No. 08-1229, § 30, 12-30-08; Ord. No. 2020-1024, §§ 11—13, 12-2-2020)

Sec. 47-503. Reserved.

Editor's note—Ord. No. 08-1229, § 31, adopted December 30, 2008, effective January 1, 2009, repealed § 47-503 in its entirety. Formerly said section pertained to septic tank control tickets for Class A waste and derived from Ord. No. 97-196, § 4, 2-19-97.

Sec. 47-504. Forms supplied to transporters.

(a) The health officer shall supply manifests and other forms to transporters for their use under this article. The health officer may impose a fee that is based upon the city's production cost for the forms.

(b) It shall be the duty of each transporter to maintain a supply of manifests and other forms in each vehicle that is being utilized for the transportation of waste in the city and to make the forms available to generators whose sites are serviced by its vehicles in order to timely and properly complete the documentation requirements of this article.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 08-1229, § 32, 12-30-08)

Secs. 47-505—47-510. Reserved.

DIVISION 9. GENERATION, TRANSFER AND DISPOSAL OF WASTE

*Subdivision 1. Generator Responsibilities**

Sec. 47-511. Verification of transporter registration.

No generator shall allow a transporter to remove waste from a site under the person's control unless the transporter's vehicle displays current and valid registration decals.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 08-1229, § 34, 12-30-08)

Sec. 47-512. Cleaning and maintenance requirements.

(a) Except as specifically provided herein, generators shall clean, or cause to be cleaned, each interceptor and holding tank as often as necessary to comply with the effluent discharge parameters in this article to ensure that sediment and floating materials do not impair the efficiency of the interceptor, and to ensure that no visible fat, oil or grease (FOG) is observed in the sample well. The requirements of this section shall not apply to generators whose city-regulated waste consists solely of residential septic tank waste.

(b) Each interceptor or holding tank shall be fully evacuated at least once every 90 days.

(c) Each interceptor or holding tank shall be fully evacuated more frequently than once every 90 days when:

(1) Twenty-five percent or more of the wetted height of the grease trap or interceptor,

*__Editor's note—__Ord. No. 08-1229, § 33, adopted December 30, 2008, effective January 1, 2009, amended Ch. 47, Art. XI, Div. 9, Subdiv. 1 title to read as herein set out. Formerly said subdivision was entitled Generator and Class A Site Operator Responsibilities.

as measured from the bottom of the device to the invert of the outlet pipe, contains floating materials, sediment, oils or greases; or

(2) The discharge exceeds the discharge parameter set in this article; or

(3) There is history of non-compliance.

(d) If the volume of the interceptor is greater than the tank capacity of the transporter's vehicle, then the generator or transporter shall arrange for additional transportation capacity so that the interceptor is fully evacuated within 24 hours after the time the generator notifies the transporter, or the transporter becomes aware, that the tank capacity of the transporter vehicle is insufficient.

(e) The health officer shall waive compliance with the requirements of subsection (b) of this section if the generator submits to the health officer a completed Notice of Waiver (NOW) (form as provided by the health officer, which may be in an electronic format, unless the NOW is denied within 30 days of receipt by the health officer. If the health officer denies the notice of waiver of the requirements of subsection (b) of this section, the NOW shall be returned to the generator and the health officer shall state the reasons for the denial, which shall be consistent with this article. An approved NOW shall remain in effect until revoked by the health officer. Revocation of the NOW must be based on violation of this article. A generator may not resubmit a NOW form until six months from the date of revocation. The NOW form shall recite the elements of this subsection (e) and will include the following certifications:

(1) The generator section of the form shall require the generator to certify that it has not had any overflow or discharge at the site during the previous 12-month period; and

(2) The generator's transporter section of the form shall require the transporter to certify that, based on the transporter's judgment, at the generator's site, the frequency of cleaning is sufficient to:

a. Produce an effluent in consistent compliance with the discharge parameters in this article, or

b. Demonstrate that less than 25 percent of the wetted height of the entire grease trap or interceptor, as measured from the bottom of the device to the invert of the outlet pipe, contains floating materials, sediment, oils or greases.

(f) In any event, a grease trap or holding tank shall be fully evacuated, cleaned, inspected, and, if needed, repaired or otherwise maintained, at least once every 180 days.

(g) All grease trap, lift station, or interceptor waste shall be properly disposed of in accordance with federal, state or local regulation.

(h) No generator shall remove or cause or allow any person to remove waste from an interceptor or lift station on the site, unless the entire contents of the interceptor or lift station are removed from the site. It is the express intent of this section to prohibit the use of mobile processors and other devices that purport to separate waste or de-water the contents of an interceptor or lift station and leave a portion of the materials at the site.

(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 35, 5-9-07; Ord. No. 08-1229, §§ 35, 36, 12-30-08; Ord. No. 2020-1024, § 14, 12-2-2020)

Sec. 47-513. Interceptor requirement.

(a) Commercial, institutional, and industrial facilities, including, but not limited to, restaurants, cafeterias, bars, hotels and motels, hospitals, sanitariums, manufacturing facilities, nursing homes, prisons, private and public schools, car washes, truck washes or other establishments where FOG, grit, silt or clay may be generated for which an application for a building permit is submitted after August 31, 2006, shall be required to design, install, operate and maintain an interceptor complying with the *Plumbing Code* and install a sample well to allow access for inspection and sampling by the health officer.

(b) Each interceptor must be operated and maintained in accordance with this article, and must provide a sample well to allow access for inspection and sampling by the health officer.

(c) Except as may otherwise be provided, an interceptor shall not be required for single family or multi-family residential units.

(d) Interceptors or lift stations shall be operated and maintained in accordance with the manufacturer's recommendations and this article including, but not limited to, periodic removal of the accumulated waste.
(Ord. No. 07-544, § 36, 5-9-07; Ord. No. 08-1229, § 37, 12-30-08; Ord. No. 2020-1024, § 15, 12-2-2020; Ord. No. 2021-1037, § 20(Exh. I.56), 12-1-2021, eff. 4-1-2022)

Sec. 47-514. Discharge parameters.

(a) Except as may otherwise be provided, it shall be unlawful for a generator to discharge into the sanitary sewer:

(1) FOG, if such materials:

a. Exceed on analysis an average of 200 milligrams per liter (mg/L) of free or emulsified fats, oils or grease, except that a generator may request a three-year schedule to comply with this requirement if the generator meets the following criteria:

1. The generator has a valid generator permit or generator registration certificate;

2. No later than December 2, 2023, the generator must achieve compliance with the final limit of 200 mg/L oil and grease.

b. Form a discernible floating layer on the surface of the receiving waters;

c. Overload the generator's interceptor; or

d. Deposit FOG in the lines of the sanitary sewer in such a manner as to obstruct it.

(2) City-regulated waste that exerts or causes:

a. Unusual biological oxygen demand or an immediate oxygen demand; or

b. Unusual concentrations or composition of solids in total suspended solids or total dissolved solids; or

c. Unusual flow or concentration in the sanitary sewer.

(3) City-regulated waste in such amounts as to cause interference with the sanitary sewer system, or as to cause pollutants to pass through the sewer system into the environment.

(b) A violation of this section shall be punishable by a fine of not more than $4,000.00.
(Ord. No. 07-544, § 36, 5-9-07; Ord. No. 08-1229, §§ 38, 39, 12-30-08; Ord. No. 2020-1024, § 16, 12-2-2020; Ord. No. 2021-431, § 14, 5-26-2021)

Sec. 47-515. Penalty.

(a) It shall be unlawful for:

(1) Any generator who is required by this article to obtain a generator permit or registration certificate to connect or to be connected to the sewer system, unless that generator has obtained a generator permit or registration certificate for that connection.

(2) Any generator to violate any provision of this article that applies to generators.

(3) Any person to violate any condition of a permit or registration certificate required by this article.

(b) If the health officer determines that a generator is responsible for a blockage of a sanitary sewer system line, the health officer may issue a citation with a minimum fine of $1,000.00 for the first violation and $1,500.00 for a second violation that occurs within the same 12-month period. Each subsequent violation within a 12-month period shall result in a fine of not more than $2,000.00 for each violation, and the city may take other enforcement action as provided in section 47-416 of this Code. Each day that any violation continues shall constitute a separate offense. Violation of any provision of this division shall be a Class C misdemeanor.
(Ord. No. 07-544, § 36, 5-9-07)

Secs. 47-516—47-520. Reserved.

Subdivision 2. Documentation Responsibilities

Sec. 47-521. Signature and accuracy.

Each generator shall complete and sign the generator's portion of the manifest prior to allowing removal of waste from the generator's site. The generator shall ensure that the generator's portion of the manifest is complete and accurate.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 08-1229, § 40, 12-30-08)

Sec. 47-522. Retention.

Each generator shall retain, on site, the completed generator copy until it receives the completed generator return copy from the transporter. The generator shall retain the generator return copy of the manifest on site for a period of five years from the date the waste is transported from the generator site as specified on the manifest. The documents shall be retained at a location that is situated within the county and shall be made available for inspection and copying by the health officer at the generator's place of business during regular working hours, immediately upon request. It is a defense to prosecution under this section that the waste removed consisted exclusively of portable toilet waste from portable toilets provided by the transporter.
(Ord. No. 97-196, § 4, 2-19-97)

Sec. 47-523. Report to health officer.

If the generator return copy is not received from the transporter within 15 days after the date the waste was picked up from the generator's site as shown on the manifest, the generator shall file with the department a copy of the generator copy of the manifest together with a signed affidavit in a form specified by the health officer stating that the generator return copy was not received within the 15-day period required. The generator copy and affidavit shall be filed at an office specified by the health officer within ten business days after the expiration of 15 days after the waste was transported from the generator's site as specified on the manifest.
(Ord. No. 97-196, § 4, 2-19-97)

Secs. 47-524—47-530. Reserved.

Subdivision 3. Transporters' Duties

Sec. 47-531. Manifest completion.

It shall be unlawful for a transporter to:

(1) Remove or receive city-regulated waste from the site of a generator unless the generator's portion of the manifest has been completed, the transporter has signed the manifest and the generator's copy of the manifest has been left with the generator.

(2) Remove or receive waste from another transporter unless both transporters complete and sign the manifest.

(3) Transport a waste load without having, at all times in the vehicle transporting the waste, a copy of the manifest(s) for all waste being carried.

(4) Discharge any waste at a lawful disposal site without entering the name of the disposal site and the date the waste is delivered to the disposal site for final disposal, obtaining the signature of the disposer and tendering to the disposer the disposal site copy of the manifest signed and completed by both the generator and the transporter(s).

(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 08-1229, § 41, 12-30-08)

Sec. 47-532. Verification of registration.

It shall be unlawful for any transporter to remove or receive city-regulated waste from any site that has never been issued an original permit or registration certificate to the current generator as provided in Division 2 of this article. It is an affirmative defense to prosecution under this section that the waste consists exclusively of portable toilet waste.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 37, 5-9-07; Ord. No. 08-1229, § 42, 12-30-08)

Sec. 47-533. Return of manifests.

Each transporter of city-regulated waste shall ensure that the completed generator return copy

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of the manifest is delivered to the generator within 15 calendar days after the date the waste was picked up from the generator's site. If the waste load is transferred to another transporter, the secondary transporter shall send the completed generator return copy to the generator within 15 days after the date the waste was picked up from the generator's site.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 08-1229, § 43, 12-30-08)

Sec. 47-534. Monthly report; review; retention.

(a) On or before the 15th day of each calendar month, each transporter shall submit to the health officer the documents specified to be submitted below which shall document all of its waste transportation originating within the city during the preceding calendar month. Delivery shall be made in person, by courier, or by certified mail, return receipt requested. Transporters shall obtain from the health officer a receipt for all hand-delivered documents. All manifests and other documents submitted under this section shall be true, accurate and complete. The documents to be submitted are:

(1) All HHD/transporter copies or HHD/secondary transporter copies of the manifests except manifests for portable toilet waste;

(2) Monthly fee;

(3) A monthly waste summary for portable toilet waste in the form prescribed by the health officer; or

(4) A written statement signed by the transporter's manager stating that the transporter did not transport any waste from a site within the city during the preceding calendar month.

(b) The health officer shall review the reports submitted under subsection (a) and return any manifests submitted therewith to the submitting transporter within 60 days following receipt of the report. Following receipt of the returned documents, the transporter shall retain them for a period of five years from the date of disposal as reflected on the manifest. The documents shall be retained at a location that is situated within the county and shall be made available for inspection and copying by the health officer at the transporter's place of business during regular working hours, immediately upon request.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 08-1229, § 45, 12-30-08; Ord. No. 2015-820, § 35, 8-26-2015)

Secs. 47-535—47-540. Reserved.

Subdivision 4. Transportation Requirements

Sec. 47-541. Vehicle maintenance.

(a) Each transporter shall maintain each vehicle used by him for the transportation of waste in good working order. Without limitation, the transporter shall ensure that all hoses, tanks, pumps, pipes, valves and gauges shall be in good repair and free of any leaks that could cause a spill or discharge of waste from the vehicle.

(b) Each transporter shall ensure that the name and telephone numbers that are required to be affixed under item (4) of subsection (a) of section 47-453 are maintained and are legible at all times and that the discharge valves are marked as required by state regulation.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 38, 5-9-07)

Sec. 47-542. Spill remediation.

(a) Each transporter shall be responsible for the clean-up of any spills from its registered vehicles. In the event the city or the city's contractor provides the service of cleaning up the transporter's spill, the transporter shall pay the city's or its contractor's reasonable costs for clean-up as determined by the city official and as provided by the terms of the transporter's financial assurance. Payment shall be made within 30 days after the date of written notice from the city official.

(b) In the event of any spill of waste, the transporter shall take appropriate remedial action, including removing or causing removal of the spill in compliance with all applicable

environmental laws and regulations and issuing any notices to regulatory agencies as required under state or federal law or regulations.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 2011-194, § 7, 3-23-2011)

Sec. 47-543. Storage of waste.

A transporter shall store waste only in a mobile closed container (container on wheels) and shall not store waste for more than four days. A transporter who temporarily stores waste at a fixed or permanent site shall comply with all applicable state regulations.
(Ord. No. 97-196, § 4, 2-19-97)

Sec. 47-544. Mixing wastes.

(a) A transporter shall not collect or transport incompatible wastes in the same container. Nor shall a transporter utilize the same pumping equipment for incompatible wastes without first cleaning the equipment between batches to prevent the mixing of incompatible wastes.

(b) It is an affirmative defense to prosecution under subsection (a) that each of the following requirements was met:

(1) The mixing of the wastes did not cause a dangerous chemical or physical reaction;

(2) The facility to which the mixed wastes were being transported was then authorized to store, process, or dispose of the mixed wastes;

(3) The transporter was then authorized to transport each of the wastes being mixed; and

(4) The vehicle in which the wastes were being transported then met the requirements to transport each of the wastes being carried therein.

(Ord. No. 97-196, § 4, 2-19-97)

Sec. 47-545. Complete removal required.

No transporter shall remove waste from any interceptor, lift station, utility vault, septic tank, or similar device unless its entire contents are removed from the site. It is the express intent of this section to prohibit the use of 'mobile processors' and other devices that purport to separate waste or de-water the contents of an interceptor or lift station and leave a portion of the materials at the site.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 08-1229, § 45, 12-30-08; Ord. No. 2020-1024, § 17, 12-2-2020)

Secs. 47-546—47-550. Reserved.

Subdivision 5. Responsibilities of Disposers

Sec. 47-551. Compliance.

It shall be unlawful for a disposer to accept waste originating within the city from a transporter unless:

(1) The transporter's manifest accurately identifies the amount and type of waste contained in the vehicle at the time of disposal;

(2) The transporter's vehicle displays current and valid registration decals or complies with appropriate state and federal identification and placarding requirements for the wastes being carried; and

(3) The transporter tenders to the disposer the manifest that has been completed and signed by both the generator and the transporter(s).

(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 08-1229, § 46, 12-30-08)

Sec. 47-552. Handling of documentation.

(a) After acceptance of a waste load originating within the city from a transporter, a disposer shall sign and date the manifest tendered by the transporter and shall return all copies of the manifest, except the disposal site copy, to the transporter.

(b) The disposer shall maintain the disposal site copy of each manifest delivered to him for five years after the date of receipt of waste as reflected on the manifest.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 08-1229, § 47, 12-30-08)

Sec. 47-553—47-560. Reserved.

Subdivision 6. Inspections

Sec. 47-561. Generator inspections.

(a) The health officer shall conduct inspections of generators as often as needed but not less than once a year to assure compliance with the requirements of this article and other rules and regulations relating to the handling and disposal of city-regulated waste.

(b) Inspections shall include, but are not limited to, verification of cleaning frequency and compliance with this article and other applicable laws regarding generation, transportation and disposal of waste. City officials shall observe the establishment's rules and regulations concerning safety, internal security and fire protection. If the establishment has management in residence, the city official shall notify management or the person in charge of the city official's presence and shall exhibit proper credentials; provided, however, if refused entry onto the premises, the city official shall procure a search warrant to inspect the facilities or records.
(Ord. No. 97-196, § 4, 2-19-97; Ord. No. 07-544, § 39, 5-9-07; Ord. No. 08-1229, § 48, 12-30-08)

Sec. 47-562. Vehicle inspection at designated place.

Upon notice by the health officer, each transporter shall deliver one or more registered vehicles as designated by the health officer to the location designated by the health officer for inspection and/or compliance testing by the health officer. The notice shall designate the time and place for delivery of the vehicle(s) and shall give the transporter reasonable notice for the delivery. The health officer shall release each vehicle no later than the close of business on the same day on which it is received, unless retention of the vehicle for a longer period is agreed upon in writing between the health officer and the transporter. Delivery for inspection and testing of a registered vehicle shall be demanded pursuant to an administrative procedure established by the health officer.
(Ord. No. 97-196, § 4, 2-19-97)

Sec. 47-563. Vehicle spot inspection.

Transporters' registered vehicles traveling city streets are subject to stops and inspections by peace officers as provided by law. A peace officer may call upon a health officer for technical assistance in conducting the inspection. Transporters shall so advise their drivers. Unless a truck is out of compliance, it shall not be detained longer than one hour by the peace officer.
(Ord. No. 97-196, § 4, 2-19-97)

Sec. 47-564. Inspections of vehicles.

The health officer shall conduct inspections of transporters' vehicles and required documentation when observed to be in the receipt or disposal of waste.
(Ord. No. 97-196, § 4, 2-19-97)

Sec. 47-565. Vehicle inspections.

Vehicle inspections that are conducted on a spot basis shall include:

(1) Identification check of the driver.

(2) Registration and title check of the vehicle.

(3) Review of manifests as required by local, state or federal law.

(4) Sampling of the contents of the registered vehicle if the health officer or police officer has the ability to properly sample the contents. Samples shall be taken by trained personnel. Split samples may be taken if the driver supplies a sample bottle for the driver's portion.

(Ord. No. 97-196, § 4, 2-19-97)

Sec. 47-566. Procedures.

The director of the department shall establish procedures for inspections to be conducted by health officers under this subdivision. Copies of the procedure shall be available for public inspection in the offices of the director of the department and may be purchased at the fees prescribed by law. To the extent practicable, the health officer shall notify affected persons of the adoption or amendment of the procedures.
(Ord. No. 97-196, § 4, 2-19-97)

Secs. 47-567—47-600. Reserved.

ARTICLE XII. STORM WATER DISCHARGES*

DIVISION 1. IN GENERAL

Sec. 47-601. Definitions.

As used in this article, the following terms shall have the meanings ascribed in this section unless the context of their usage clearly indicates another meaning:

Accessory structure shall mean a non-commercial structure of the type typically associated with a single-family residential dwelling unit, including, but not limited to, a garage, carport or barn.

Applicant shall mean the owner of the land on which new development or significant redevelopment will occur or his authorized agent.

Authorized city official shall mean the Director or a Deputy Director of Houston Public Works, the city engineer, or the engineer in charge of the stormwater quality permitting.

CFR shall mean the Code of Federal Regulations, as it may be amended from time to time.

Clean Water Act shall mean the federal Water Pollution Control Act, 33 U.S.C. § 1251, et seq., as amended from time to time.

Commercial activity shall mean any profit or not-for-profit activity involved in the manufacture, storage, transportation, distribution, exchange or sale of goods or commodities, or the sale or lease of real property in the provision of professional or nonprofessional services, or in the use of property for residential purposes other than single-family residential purposes.

Construction permit shall mean an official document or certification issued by either the building official or the city engineer authorizing performance of a specified construction activity, including, but not limited to, building permits, plumbing permits, electrical permits, HVAC permits, lateral storm sewer permits, excavation permits, utility construction permits, paving permits, demolition permits, and development permits required by section 19-17 of this Code.

Design manual shall mean the Houston Public Works Infrastructure Design Manual, as it may be amended from time to time.

Developed parcel shall mean a parcel that is not undeveloped.

Development shall mean (i) any activity that requires a development plat pursuant to Chapter 42 of this Code; or (ii) any activity that requires a construction permit.

Discharge shall mean the introduction or addition of any pollutant, storm water or other substance into the MS4, or to allow, permit or suffer any such introduction or addition.

Discharger shall mean a person who causes or threatens to cause a discharge.

Dwelling unit shall mean a structure, or a portion of a structure, that has independent living facilities including provisions for non-transient sleeping, cooking and sanitation.

EPA shall mean the Federal Environmental Protection Agency and any successor agency thereto.

High-risk facility shall mean any industrial or commercial facility the Director of Houston Public Works, or city engineer believes is contributing a pollutant to the MS4.

Home occupation shall mean a commercial activity conducted entirely in a dwelling unit or accessory structure by a resident thereof that is incidental and secondary to the use of the dwelling unit for residential purposes and does not change the character thereof.

Homeowners' association shall mean an incorporated or unincorporated association owned by or whose members consist primarily of the owners of the property covered by a dedicatory instrument and through which the

*__Editor's note__—Section 27 of Ord. No. 06-892 states that amendments passed by this ordinance shall take effect at 12:01 a.m. on September 1, 2006.

owners, or the board of directors or similar governing body, manage or regulate the single-family residential subdivision that has as one of its purposes the continued care and maintenance of all commonly-owned properties within the subdivision, particularly the areas established for storm water quality controls, and the authority and means to impose binding assessments upon the lot owners for that purpose.

Impervious surface shall mean any area that does not readily absorb water including, but not limited to, building roofs, parking and driveway areas, compacted or rolled areas that are not revegetated, sidewalks, and paved recreation areas.

Industrial activity certification or *IAC* shall mean a certification filed with the city pursuant to section 47-633 of this Code.

Lot shall mean an undivided tract of land intended for single-family residential use contained within a block and designated on a subdivision plat by alphabetical or numerical designation.

Municipal separate storm sewer system or *MS4* shall mean the system of conveyances owned or operated by the city or any co-permittee of the city that is designed or used for collecting or conveying storm water.

New development shall mean development of an undeveloped parcel of land one acre or larger without regard to the amount of land that will actually be disturbed. The term does not include development on an undeveloped and undivided parcel of one acre or more of one dwelling unit and one or more accessory structures. The term also does not include a stormwater detention basin that includes a water quality feature.

Non-structural control shall mean a maintenance or operational practice designed to prevent or reduce the potential of storm water runoff contact with pollution-causing activities.

Notice of Change or *NOC* shall mean a notice of change that is required by the TPDES General Permit No. TXR050000, the EPA NPDES General Permit for Storm Water Discharges From Construction Activities in Region 6, or any similar general permit to discharge storm water associated with industrial or construction activity that is issued by the EPA or TCEQ.

Notice of intent or *NOI* shall mean a notice of intent that is required by the TPDES General Permit No. TXR050000, the EPA NPDES General Permit for Storm Water Discharges From Construction Activities in Region 6, or any similar general permit to discharge storm water associated with industrial or construction activity that is issued by the EPA or TCEQ.

Notice of termination or *NOT* shall mean the notice of termination that is required by the TPDES General Permit No. TXR050000, the EPA NPDES General Permit for Storm Water Discharges From Construction Activities in Region 6, or any similar general permit to discharge storm water associated with industrial or construction activity that is issued by the EPA or TCEQ.

NPDES shall mean National Pollutant Discharge Elimination System.

NPDES permit shall mean a permit issued by the EPA (or by the state under authority assumed pursuant to Section 1342(b) of Title 33 of the United States Code) that authorizes the discharge of pollutants to waters of the United States, whether the permit is applicable on an individual, group, or general basis.

Parcel shall mean a contiguous piece of land that is under common ownership or control or that is part of a larger common plan of development or sale.

Person shall mean an individual, corporation, organization, governmental entity, business trust, partnership, association, or other legal entity, or an agent or an employee thereof.

Pollutant shall mean, but shall not be limited to, dredged soil, solid waste, incinerator residue, sewage, garbage, sewage sludge, filter backwash, munitions, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand,

cellar dirt, concrete saw slurry, and other material discharged into the MS4 or any waters of the United States.

Pollution shall mean the alteration of the physical, thermal, chemical or biological quality of, or the contamination of, any waters of the United States that renders the water harmful, detrimental or injurious to humans, animal life, vegetation or property or to public health, safety or welfare, or impairs the usefulness or public enjoyment of the water for any lawful or reasonable purpose.

Public utility shall mean a water line, sanitary sewer, storm sewer, pump station or lift station in a public right-of-way that is or will be owned and operated by the city or other political subdivision of the state for public purposes.

Publicly owned treatment works or *POTW* shall mean any device or system used in the treatment (including recycling and reclamation) of municipal sewage or industrial wastes of a liquid nature that is owned by the state or a municipality, and includes sewers, pipes, or other conveyances only if they convey wastewater to a POTW.

Reinspection shall mean revisiting a site to insure that a violation noted on the previous inspection report has been resolved. Reinspections are subject to the reinspection fee.

Representative storm event shall mean a storm event that is greater than one-tenth of an inch in magnitude and that occurs at least 72 hours after the previously measurable (greater than one-tenth of an inch rainfall) storm event.

Significant redevelopment shall mean increase of 0.2 acre or more to the impervious surface on a one acre or larger developed parcel, but does not include a stormwater detention basin that includes a water quality feature.

Single-family residential shall mean the use of a lot with one building designed for and containing not more than two dwelling units.

Storm water discharges associated with construction activity shall mean storm water discharges from construction activity, including clearing, grading, excavation and demolition activities. The term does not include discharges from facilities or activities excluded from the NPDES program under 40 CFR Part 122.

Storm water discharges associated with industrial activity shall have the meaning provided in Section 122.26(b)(14) of Title 40 of the CFR, other than subsection (x) of that Section.

Storm Water Management Handbook for Construction Activities shall mean the Storm Water Management Handbook for Construction Activities promulgated by the city, Harris County and Harris County Flood Control District, as it may be amended from time to time.

Storm water pollution prevention plan or *SWPPP* shall be a required element of approved construction plans. The SWPPP can be as simple as the Stormwater Pollution Prevention Plan Detail (DWG NO 01571-01).

Storm water quality management plan or *SWQMP* shall mean a plan prepared pursuant to the requirements of division 2 of this article and the design manual.

Storm water quality permit or *SWQ permit* shall mean a current, valid permit issued pursuant to division 2 of this article.

Structural control shall mean a structure or vegetative practice that is generally designed to reduce pollutant levels in storm water runoff.

Structure shall mean that which is built or constructed, an edifice or building of any kind, or any piece of work, including, but not limited to, a paved surface, that is artificially built up or composed of parts joined together in some definite manner. The term does not include a street or a public utility.

Substantial deviation shall mean a deviation that:

(1) Increases the designed flow rate by more than five percent;

(2) Increases or decreases the designed storage volume by more than five percent;

(3) Increases or decreases the designed water surface elevation by more than six inches; or

(4) Increases the risk of flooding caused by a 100-year storm event as that term is defined in chapter 19 of this Code.

SWQ permittee shall mean the holder of a SWQ permit.

TCEQ shall mean the Texas Commission on Environmental Quality and any successor agency thereto.

TPDES means the Texas Pollutant Discharge Elimination System that was assumed by the state from the EPA pursuant to Section 1342(b) of Title 33 of the United States Code.

Third-party agreement shall mean an agreement that satisfies the requirements of section 47-673(b) of this Code.

TPDES permit shall mean a permit issued by the TCEQ that authorizes the discharge of pollutants to water in the state, whether the permit is applicable on an individual, group, or general basis.

Undeveloped parcel shall mean a parcel on which there are no structures at the time that a construction permit or development plat is applied for or required.

Waters of the United States shall mean all waters that are currently used, were used in the past, or may be susceptible to use in interstate or foreign commerce; all interstate waters, including interstate wetlands; all other waters the use, degradation or destruction of which would affect or could affect interstate or foreign commerce; all impoundments of waters otherwise defined as "waters of the United States" under this definition; all tributaries of water identified in this definition; all wetlands adjacent to waters identified in this definition; and any other waters within the federal definition of "waters of the United States" in Section 122.2 of Title 40 of the CFR; but not including any waste treatment systems, treatment ponds, or lagoons designed to meet the requirements of the Federal Clean Water Act.

Wetlands shall mean an area that is inundated or saturated by surface or ground water at a frequency and duration sufficient to support and that under normal circumstances does support, a prevalence of vegetation typically adapted for life in saturated soil conditions. Wetlands generally include swamps, marshes, bogs and similar areas.

(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 02-399, § 95, 5-15-02; Ord. No. 06-892, §§ 2—5, 8-23-06; Ord. No. 2016-864, §§ 2, 3, 11-9-2016; Ord. No. 2018-11, §§ 34, 49, 1-10-2018)

Sec. 47-602. Penal provisions applicable.

(a) With the exception of section 47-741 of this Code, any person who violates any provision of this article shall be guilty of an offense and upon conviction thereof, shall be punished by a fine of not less than $250.00 nor more than $2,000.00 for each violation. A violation of section 47-741 of this Code shall be punishable by a fine of not more than $4,000.00. Each day in which any violation shall occur shall constitute a separate offense. Prosecution or conviction under this section shall not preclude any civil remedy or relief for a violation of this article.

(b) In addition to criminal prosecution, where applicable, the city shall have the right to seek the judicial remedies provided in section 47-603 of this Code for any violation of this article.

(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 2021-431, § 15, 5-26-2021)

Sec. 47-603. Judicial provisions applicable.

(a) The city, acting through the city attorney or any other attorney representing the city, is hereby authorized to file an action in a court of competent jurisdiction to:

(1) Enjoin any person from violating or threatening to violate the terms, conditions and restrictions of any permit issued under this article;

(2) Enjoin the violation or threatened violation of the provisions of this article; or

(3) Recover civil penalties for violation of the terms, conditions and restrictions of any permit authorized under this article;

(4) Recover civil penalties for violation of the provisions of this article; or

(5) Recover damages from the owner of a parcel in an amount adequate for the city to undertake any construction or other activity necessary to bring about compliance with this chapter.

(b) The city, acting through the city attorney or any other attorney representing the city, is hereby authorized to enter into agreements in lieu of litigation to achieve compliance with the terms, conditions and restrictions of any stormwater permit authorized under this article or the provisions of this article.

The city's authority in subsections (a) and (b) is in addition to all provisions of this Code relative to the definition of offenses and the provision of penalties for violations of such offenses.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 06-892, § 6, 8-23-06)

Sec. 47-604. Stop orders.

(a) Whenever any work authorized by a construction permit is being performed contrary to the provisions of divisions 2 or 3 of this article, or other pertinent laws or ordinances implemented through the enforcement of this article, the building official or the city engineer may order the work (other than work to cure a violation) stopped by notice in writing served on any persons performing the work or causing the work to be performed, and any such persons shall forthwith stop the work until authorized by the building official or the city engineer to proceed with the work.

(b) At the time a stop work order is issued, the person performing the work and the permit holder shall be given notice of a right to a hearing on the matter pursuant to Section 117.2 of the *Building Code* for permits authorized by that code or pursuant to section 47-608 of this Code for all other construction permits. Upon request, such a hearing shall be held within three business days unless the permit holder or person who was performing the work requests an extension of time. Any stop work order that has been issued shall remain in effect pending any hearing that has been requested unless the stop work order is withdrawn by the building official or the city engineer.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 02-399, § 96, 5-15-02; Ord. No. 2021-1037, § 20(Exh. I.57), 12-1-2021, eff. 4-1-2022)

Sec. 47-605. Nuisances.

An actual or threatened discharge to the MS4 that violates or would violate this article is hereby declared to be a nuisance and shall be subject to enforcement pursuant to this Code.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 06-892, § 7, 8-23-06)

Sec. 47-606. Emergency suspension of utility service and MS4 access.

(a) When the Director or a Deputy Director of the Houston Public Works, or the city engineer, determines that a person is causing or threatening to cause a discharge to the MS4 or a publicly owned treatment work in violation of this article that:

(1) Presents or may present an imminent and substantial danger to the environment or to the health or welfare of persons; or

(2) Presents or may present an imminent and substantial danger to the MS4 or waters of the United States;

the director or deputy director may, without prior notice, suspend city water service, sanitary sewer service, and MS4 discharge access to the person causing or threatening to cause the discharge when the Director or a Deputy Director of the Houston Public Works determines that the service or access is an instrumentality of or contributes to the unlawful discharge and suspension is necessary to stop the actual or threatened discharge.

(b) As soon as practicable after the suspension of service or MS4 discharge access, the city engineer shall notify the discharger of the suspension of service or access by delivering notice by hand to the person in charge of the premises for which service is terminated or access denied if such person is present on the premises. The city engineer shall send a notice by certified mail, return receipt requested, to the person and address identified in the city's water service records for the account at the property for which service is suspended or access denied. If there is no water service account, the city engineer shall send notice to the address of the owner of the property as shown on the Harris County Appraisal District's appraisal roll. The notice shall specify the basis for the suspension of service or access and shall order the discharger to cease the discharge or threatened discharge immediately.

(c) If the discharger fails to comply with an order issued under subsection (b), the city engineer may take such steps as the city engineer deems necessary to prevent or minimize damage to the MS4 or waters of the United States or to minimize the danger to persons.

(d) The city shall not reinstate suspended services or MS4 access to the discharger until:

(1) The discharger presents proof that the noncomplying discharge or threatened discharge has been eliminated and its cause determined and corrected;

(2) The discharger pays the city for all costs the city incurred in responding to, abating, and remediating the discharge or threatened discharge or otherwise provides financial assurance to cover such expenses; and

(3) The discharger pays the city for all costs the city will incur in reinstating service or access or otherwise provides financial assurance to cover such expenses.

(e) A discharger whose service or access has been suspended or disconnected may appeal such enforcement action pursuant to section 47-608 by filing a written request with the city engineer not later than the tenth day after the day the service is suspended or the access denied.

(f) If the discharger does not pay the costs as provided by this section, the city shall be entitled to a lien against the property that is the subject of the suspension of service or access to recover its response costs pursuant to the procedures set out in section 10-457 of this Code.

(g) The remedies provided in this section are in addition to any other remedies set out in this article. Exercise of this remedy shall not be a bar against, nor a prerequisite for, taking other action against a discharger.

(h) A person commits an offense if the person reinstates water service, sanitary sewer service or MS4 access that has been terminated pursuant to this section without the prior written approval of the city engineer.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 2016-864, § 4, 11-9-2016; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 47-607. Non-emergency suspension of utility service and MS4 access.

(a) When the city engineer determines that a person is discharging or threatening to discharge to the MS4 in violation of this article, the city engineer may terminate city water supply, sanitary sewer connection and MS4 access to the person discharging or threatening to discharge to the MS4 if the city engineer determines that:

(1) The service or access is an instrumentality of or contributes to the unlawful discharge or threatened discharge; and

(2) Termination would prevent, abate or reduce:

a. The discharge of a pollutant; or

b. The commission of any other act or activity which in itself or in conjunction with any other discharge or activity causes, continues to cause, or may cause pollution of any of the waters of the United States.

(b) The city engineer shall notify a discharger of the proposed suspension of its water supply, sanitary sewer connection or MS4 access pursuant to this section before the service is suspended

or access denied. Notice shall be mailed, certified mail, return receipt requested, to the name and address on the city water service records for the account of the property where service is proposed to be suspended or access denied. If there is no water service account, the city engineer shall send notice to the address of the owner of the property as shown on the Harris County Appraisal District's appraisal roll. The notice shall specify the basis for the proposed suspension of service or access and shall order the discharger to cease the discharge or threatened discharge immediately. The discharger may request a hearing prior to termination pursuant to section 47-608 by filing a written request with the city engineer not later than the tenth day after the day the notice is deposited in the mail. Upon timely receipt of a request for a hearing, the city shall not suspend service or deny access until after the hearing officer renders a decision authorizing the suspension of service or denial of access. If the discharger does not request a hearing within the time specified, the city shall suspend the service or deny the access as described in the notice.

(c) The city shall not reinstate suspended services or MS4 access to the discharger until:

(1) The discharger presents proof that the unlawful discharge or threatened discharge has been eliminated and its cause determined and corrected; and

(2) The discharger pays the city for all costs the city will incur in reinstating service or MS4 access or otherwise provides financial assurance to cover such expenses.

(3) The remedies provided by this section are in addition to any other remedies set out in this chapter. Exercise of this remedy shall not be a bar against, nor a prerequisite for, taking other action against a discharger.

(d) A person commits an offense if the person reinstates water service, sanitary sewer service or MS4 access suspended pursuant to this section without the prior approval of the city engineer. (Ord. No. 01-800, § 3, 8-29-01; Ord. No. 06-892, § 8, 8-23-06)

Sec. 47-608. Appeals; hearing.

Any person whose permit is denied or revoked, whose water supply, sanitary sewer connection or MS4 access has been terminated or may be terminated, or who is otherwise aggrieved by a notice, action or decision by the city engineer or building official undertaken pursuant to this article shall, upon written request, be entitled to a hearing to be conducted by a hearing officer designated by the city engineer, who shall promulgate rules for hearings. The decision of the hearing officer shall be final. For an appeal filed pursuant to section 47-607, the hearing officer shall render a decision within five days after the close of the hearing. Where time is of the essence, the aggrieved person may so advise and state the reason therefore in the request and, to the extent reasonably warranted and allowed by the circumstances, an expedited hearing of and decision on the issue shall be afforded. (Ord. No. 01-800, § 3, 8-29-01; Ord. No. 06-892, § 9, 8-23-06)

Sec. 47-609. Compliance monitoring; methods.

(a) The city engineer shall have the right to install at a facility that discharges storm water to the MS4, or to require the installation of, such devices as are necessary to conduct sampling or metering of the discharger's operations.

(b) The city engineer may require any facility that the city engineer determines has discharged or is discharging a pollutant or any substance that causes, continues to cause, or will cause pollution, to conduct specified sampling, testing, analysis and other monitoring of its storm water discharges. The city engineer may specify the frequency and parameters of any required sampling or monitoring.

(c) The city engineer may require any facility that the city engineer determines has discharged or is discharging a pollutant or any substance that causes, continues to cause, or will cause pollution, to install monitoring equipment as necessary at the discharger's expense. The discharger, at its own expense, shall at all times maintain the facility's sampling and monitoring equipment in a safe and operating condition.

Each device used to measure storm water flow and quality must be calibrated to ensure accuracy. The city engineer may also require monitoring of non-storm water discharges if the city engineer reasonably believes that such discharges violate the city's MS4 permit requirements.

(d) Upon written request of the city engineer, the facility shall submit in writing the results of any sampling or monitoring undertaken pursuant to the requirements of this article.

(e) The facility shall maintain for three years the results of any monitoring undertaken pursuant to this article as well as any supporting documentation.

(f) All monitoring required by this article shall be performed in accordance with the methodologies and protocols established in Chapter 319 of Title 30 of the Texas Administrative Code, as amended from time to time.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 06-892, § 10, 8-23-06)

Sec. 47-610. Regulations and forms authorized.

The city engineer and building official shall jointly promulgate regulations and forms regarding compliance with the requirements of this article. Such regulations and forms shall be available:

(1) At the office of the city engineer; and

(2) At the office of the building official.

The regulations and forms established hereunder may be amended or supplemented from time to time as is mutually agreeable to the city engineer and the building official.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 06-892, § 11, 8-23-06)

Sec. 47-611. Cumulative effect.

(a) This article is cumulative of other requirements imposed by ordinances and regulations of the city. To the extent of any inconsistency, the more restrictive provision shall govern.

(b) Any authorization granted by or any affirmative defense to a violation allowed pursuant to this article does not excuse compliance with federal or state law or any other provisions of this Code or any other city ordinance relating to the activities regulated by this article.
(Ord. No. 01-800, § 3, 8-29-01)

Sec. 47-612. Remedies not exclusive.

The remedies listed in this article are not exclusive of any other remedies available under any applicable federal, state or local law, and it is within the discretion of the city to seek cumulative remedies. The suspension, revocation, cancellation, or denial of any permit issued under this article shall not prohibit imposition of any civil or criminal penalty. The imposition of a civil or criminal penalty shall not prohibit any other remedy and shall not prohibit the suspension, revocation, or denial of any permit issued under this article.
(Ord. No. 01-800, § 3, 8-29-01)

Sec. 47-613. Compliance, inspections and investigations.

(a) When it is necessary to make an inspection to enforce the provisions of this chapter or to inspect or investigate conditions related to water quality, an authorized city official may enter a building or premises at reasonable times to inspect or to perform the duties imposed by this article or to inspect or review records, reports, data, plans, or other documents relating to compliance with this chapter, the site's SWPPP, or with any TPDES or NPDES storm water permit. If the building or premises is occupied, credentials must be presented to the occupant and entry requested. If the building or premises is unoccupied, the authorized city official shall first make a reasonable effort to locate the owner or other person having charge or control of the building or premises and request entry. If refused, the authorized city official shall have recourse to the remedies provided by law to secure entry.

(b) The findings related to a site inspection shall be recorded on an inspection report form, a copy of which report shall be provided for the person in charge of the site. The authorized city official shall maintain a copy of the inspection report in the departmental records.

(c) Upon request of the operator of a site, the authorized city official may allow an extension of the time in which to correct a violation. In determining whether to allow an extension and the length of the extension, the authorized city official shall consider the degree of risk, if any, posed by the violation and the time reasonably required to correct it. No extension shall be granted if the authorized city official determines that a significant risk is posed to the public or environment.

(d) If the authorized city official determines that a reinspection is necessary to ascertain that the conditions responsible for a violation no longer exist, the operator shall be assessed the reinspection fee established in Section 118.1.5 of the *Building Code* in conjunction with that reinspection, and a hold will be placed on all permits and inspections on the site.

(e) A facility that is required to or agrees to cease operations under the provisions of this section shall not resume operations until an authorized city official does a reinspection and determines that the conditions responsible for the requirement to cease operations no longer exist.

(f) The authorized city official shall conduct all reinspections required under this section within a reasonable period of time. Other inspections and permits shall not be renewed or approved until all outstanding fees assessed under this chapter have been paid.

(g) When, due to emergency, immediate entry is necessary to protect life or property, or when the authorized city official shall have first obtained a proper inspection warrant or other remedy provided by law to secure entry, no owner, occupant or any other person having charge, care or control of any building or premises shall fail or neglect, after proper request is made as herein provided, to promptly permit entry therein by the authorized city official for the purpose of inspection and investigation pursuant to this article or other laws relating to water quality.

(h) Any temporary or permanent obstruction to safe and easy access to a facility that is to be inspected or sampled must be promptly removed by the discharger at the written or verbal request of the city engineer and may not be replaced. The cost of clearing access to the facility shall be borne by the discharger.

(i) The city engineer, utility official, building official, health officer or any city peace officer is hereby authorized to undertake the activities authorized by this section.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 06-892, §§ 12, 13, 8-23-06; Ord. No. 2016-864, § 5, 11-9-2016; Ord. No. 2021-1037, § 20(Exh. I.58), 12-1-2021, eff. 4-1-2022)

Secs. 47-614—47-630. Reserved.

DIVISION 2. POST-CONSTRUCTION CONTROLS ON NEW DEVELOPMENT AND SIGNIFICANT REDEVELOPMENT

Subdivision A. In General

Sec. 47-631. Applicability.

(a) This division shall apply to new development and significant redevelopment within the city (i) of any kind by a private individual or entity, except for the construction of major thoroughfares and major collector streets designated on the City's Major Thoroughfare and Freeway Plan and any public utilities in the rights-of-way for such thoroughfares and streets, or (ii) of a structure, parking or storage area, or park or recreational facility by a governmental entity.

(b) If the use of a parcel that was previously excluded from the definition of new development because it was development on an existing undeveloped and undivided parcel of five acres or more of one dwelling unit and one or more accessory structures changes to a commercial activity that is not a home occupation, or the property is further subdivided, the owner of the parcel shall at that time comply with all requirements of this article.

(c) This division shall not apply to demolition authorized by action of the neighborhood protection official pursuant to chapter 10 of this Code.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 02-528, § 14n., 6-19-02)

Sec. 47-632. General requirements.

(a) Subject to the limitation in subsection (c) of this section, all new development and significant redevelopment subject to this article shall either obtain and continuously maintain a storm water quality permit or file an industrial activity certification. If a parcel subject to the requirements of this section is located partially in the city and partially in the unincorporated area of Harris County and storm water from any portion of the parcel drains into the MS4, a SWQ permit or IAC shall be required for the parcel. If a parcel subject to the requirements of this subsection is located partially in the city and partially in the unincorporated area of a county other than Harris County, a SWQ permit or IAC shall be required for the parcel.

(b) The SWQ permit is in addition to any other construction permit required for the new development or significant redevelopment.

(c) Subject to the limitations in this subsection, the obligation to have and comply with a SWQ permit shall continue in perpetuity and shall run with all the land covered by the original SWQ permit. The owner of the land shall have the obligation to have and comply with a SWQ permit unless that obligation is transferred to another person pursuant to section 47-673 of this Code. If pursuant to sections 47-673(a)(1) or 47-673(b) of this Code the obligation to comply is transferred to a homeowners' association or a person other than the city, the homeowners' association or the other person shall have the obligation to maintain and comply with a SWQ permit. If pursuant to section 47-673(a)(2) of this Code, the obligation to comply is transferred to the city, the obligation to obtain and continuously maintain a SWQ permit for the land covered by the SWQ permit shall cease.

(d) For new development or significant redevelopment that includes, in whole or in part, the platting of a single-family residential subdivision, a SWQ permit for the single-family residential portion of the subdivision shall be obtained before the release of the plat for recordation. For all other new development or any significant redevelopment, a SWQ permit shall be obtained before the issuance of any construction permit for the new development or significant redevelopment.
(Ord. No. 01-800, § 3, 8-29-01)

Sec. 47-633. Industrial activity certification.

If the new development or significant redevelopment occurs at a facility that either has or will have permit coverage for storm water discharges from industrial activity issued by the state before the industrial activity will commence, the operator shall either submit an industrial activity certification in a form approved by the city engineer or obtain a SWQ permit. The industrial activity certification shall include any of the following:

(1) A copy of the application for an individual permit from the state for storm water discharges from industrial activity at the facility;

(2) A copy of the permit issued by the state for storm water discharges from industrial activity at the facility;

(3) A copy of the NOI for coverage under a general permit for storm water discharges associated with industrial activity issued by the state;

(4) A statement of commitment to file an application for an individual permit from the state for storm water discharges from industrial activity at the facility; or

(5) A statement of commitment to file a NOI for coverage under a general permit for storm water discharges associated with industrial activity issued by the state.

(Ord. No. 01-800, § 3, 8-29-01)

Sec. 47-634. Denial of plat recordation.

The planning and development department shall not release for recordation a subdivision plat for new development or significant redevelopment consisting in whole or in part of single-family residential lots that does not have a SWQ permit for the residential lots.
(Ord. No. 01-800, § 3, 8-29-01)

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Sec. 47-635. Denial of construction permit.

(a) Neither the city engineer nor the building official shall issue any construction permit required for new development or significant redevelopment that has not filed an IAC or that has not obtained or is not in compliance with a SWQ permit.

(b) If the SWQMP on which the SWQ permit is based includes one or more structural controls, neither the building official nor the city engineer shall issue any construction permit for streets, public utilities, demolition or storm water controls for all or part of the new development or significant redevelopment unless the requirements of section 47-652 of this Code have been met.

(c) If the SWQMP on which the SWQ permit is based includes one or more structural controls, neither the building official nor the city engineer shall issue any construction permit, except permits for streets, public utilities, demolition or storm water controls, for all or part of the new development or significant redevelopment unless the city engineer has confirmed the proper installation of all structural controls included in the SWQMP for all or that portion of the new development or significant redevelopment and the SWQ permittee has satisfied the requirements of section 47-672(a) of this Code;

(d) If the SWQMP on which the SWQ permit is based does not include one or more structural controls, neither the building official nor the city engineer shall issue any construction permit for all or a part of the new development or significant redevelopment unless the SWQ permittee has satisfied the requirements of section 47-672(b) of this Code.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 2016-864, §§ 6, 7, 11-9-2016)

Sec. 47-636. Denial of utility connections.

The utility official shall not permit any new development or significant redevelopment to receive any service from the city water distribution or wastewater collection systems unless, at the time of the application for service, the new development or significant redevelopment has and is in compliance with a SWQ permit or an industrial activity certification.
(Ord. No. 01-800, § 3, 8-29-01)

Sec. 47-637. Denial of certificate of occupancy.

The building official shall not issue a certificate of occupancy for any new development or significant redevelopment unless the new development or significant redevelopment has and is in compliance with a SWQ permit or an industrial activity certification.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 2016-864, § 8, 11-9-2016)

Sec. 47-638. Fees.

The fees for this article are set forth in the city fee schedule. Payment of any applicable fees when due is a condition of the processing of any application, renewal, amendment or structural control maintenance agreement under this article.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 06-892, § 14, 8-23-06; Ord. No. 2011-1168, § 13, 12-14-2011)

Secs. 47-639—47-650. Reserved.

Subdivision B. Storm Water Quality Permit Process

Sec. 47-651. Storm water quality permit application generally.

An applicant for a SWQ permit shall submit a storm water quality permit application on the form specified by the city engineer. The application shall include a storm water quality management plan that:

(1) Complies with the design manual;

(2) Includes a proposed inspection checklist, maintenance plan, and associated construction drawings; and

(3) Is sealed by a professional engineer licensed as such in Texas.

Each application for a SWQ permit shall be accompanied by the applicable application fee. (Ord. No. 01-800, § 3, 8-29-01)

Sec. 47-652. Bond.

(a) Except as provided in subsection (d), if the SWQMP includes structural controls, the applicant shall provide a performance bond that satisfies the following requirements:

(1) The bond shall name the owner or operator of the parcel subject to the SWQ permit as principal and a corporate bonding company licensed to conduct business in the state as surety to secure the city that the proposed structural controls to be covered by the bond will be constructed and installed in accordance with the SWQ permit, the SWQMP, and any plans and specifications contained therein, and securing the city against loss, damage, claim, or liability in connection therewith.

(2) The bond shall be in a sum that includes at a minimum the total estimated costs of the controls to be constructed.

(3) The bond shall be in favor of and for the use and benefit of the city.

(4) The bond shall describe, by reference to the number of the application together with such other brief descriptive matter as is necessary, the work proposed to be done or to be covered by the SWQ permit in connection with which the bond is given.

(5) The bond required by this section shall be conditioned that the work therein referred to will be performed in strict and full accordance with the terms and provisions of the SWQ permit, the SWQMP, and the plans and specifications therein; and that if any of the work is not performed in accordance therewith, or if any materials not in accordance therewith are used in the process of such work, such failure and default shall be promptly remedied and any defective material or work removed and replaced with material and by workmanship in accordance with the terms of the SWQ permit, the SWQMP, and plans and specifications therein without cost or expense to the city up to the sum of the bond. The bond must guarantee materials and workmanship for a period of one year after the city's initial inspection that confirms proper installation of the controls.

(6) The bond shall provide that the surety company will notify the city in writing 30 days prior to a cancellation, nonrenewal, or material change in the policy. In the case of nonrenewal or cancellation, the SWQ permittee shall then have 21 days after the surety company's notice to the city to replace the coverage or the SWQ permittee's SWQ permit shall be revoked after notice and the opportunity for a hearing without further action on the part of the city.

(7) The bond shall be in a form approved by the city attorney and must be accompanied by a power of attorney or other convincing evidence of the issuing agent's authority to act for the surety company and must meet the requirements of Article 7.19-1(b) of the Insurance Code.

(8) The bond shall be furnished to the city prior to the issuance of a construction permit for any construction on the parcel.

(b) The applicant must present to the city its estimate of the costs to construct the structural controls included in the SWQMP, and the city will assess the reasonableness of the estimate. If the city determines that the estimate is insufficient and the applicant does not provide a substitute bond in an amount deemed sufficient by the city, the city shall deny the SWQ permit that is supported by the bond.

(c) The bond shall be released one year after the date of the city's inspection that confirms that the structural controls covered by the bond have been properly installed and are performing as intended.

(d) A bond shall not be required if all structural controls will be completed and the certifications required by section 47-672(a) will be filed before any additional construction, including the construction of streets and utilities, commences.

(e) If the project is on public property, the owner or operator shall also provide a payment bond to the city to secure the payment of mechanics, materialmen and suppliers liens.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 06-892, § 15, 8-23-06)

Sec. 47-653. Issuance of SWQ permit.

(a) The city engineer shall review the SWQ permit application and the SWQMP and either approve or deny the application based on compliance with the applicable provisions of this article and the design manual. The city engineer shall also deny the application if any statement made in the application or any documents submitted therewith were known to be false or should have been known to be false by the applicant.

(b) The SWQ permit shall be issued to the owner of the land covered by the SWQ permit and shall run with the land and be binding on all subsequent owners unless responsibility for compliance has been transferred pursuant to section 47-673 of this Code.

(c) The applicant may seek a hearing for reconsideration of the denial of a SWQ permit pursuant to section 47-608 of this article by filing a written request with the city engineer not later than the tenth day after the applicant has been notified that the application has been denied.

(d) The granting of a SWQ permit does not imply that federal or state storm water management requirements or criteria have been met.
(Ord. No. 01-800, § 3, 8-29-01)

Sec. 47-654. Amendment of SWQ permit.

(a) An amendment to the SWQ permit is required in the following events:

(1) The person responsible for compliance with the SWQ permit changes either as a result of:

(A) The transfer of ownership of the parcel to a different person; or

(B) The transfer of the obligation to comply with this Code to a third-party permittee pursuant to section 47-673 of this Code.

(2) Any substantial deviation is made to a structural control or any change is made to a non-structural control in the SWQMP on which the SWQ permit is based; or

(3) The subsequent new development or significant redevelopment of any parcel covered by that SWQ permit (unless the subsequent new development or significant redevelopment has already been anticipated and provided for in the SWQMP on which the SWQ permit is based).

(b) Applications to amend a SWQ permit to satisfy subsection (a)(1) of this section shall be submitted within 30 days after any such transfer to a subsequent owner or to a third-party permittee. Amendments to a SWQ permit to satisfy subsections (a)(2) and (a)(3) of this section must be obtained before commencement of the activity that triggers the need for the amendment.

(c) An application to amend a SWQ permit to transfer the SWQ permit to a subsequent owner or a third-party permittee shall include an attestation by the subsequent owner or third-party permittee that he has read the SWQMP and agrees to adhere to the operation and maintenance requirements specified therein.

(d) To amend a SWQ permit, the SWQ permittee must submit a revised SWQMP, including any revisions to the inspection checklist, maintenance plan and associated construction drawings, together with the appropriate form and amendment fee. The city engineer shall review the amendment application and either approve or deny the amendment application based on compliance with the applicable provisions of this article and the design manual.

(e) If the amendment includes the transfer of responsibility for compliance with this division to a third-party permittee pursuant to section 47-673(b) of this Code, the legal agreement documenting that transfer shall be referred to the city attorney for a determination of whether

the legal agreement is adequate to assure compliance. If the city attorney determines that the legal agreement is not adequate and the applicant does not provide a substitute legal agreement deemed adequate by the city attorney, the amendment application shall be denied.

(f) The applicant may seek a hearing to reconsider the denial of an amendment to a SWQ permit pursuant to section 47-608 of this Code.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 2016-864, § 9, 11-9-2016)

Sec. 47-655. Revocation of SWQ permit.

(a) The city engineer shall revoke a SWQ permit after notice and opportunity for a hearing pursuant to section 47-608 of this article if he finds that:

(1) The applicant knew or should have known that a statement made in the application for the SWQ permit was false;

(2) The SWQ permittee has violated any provision of its SWQ permit or of this division including, but not limited to, failure to amend a SWQ permit as required by section 47-654 of this Code;

(3) The SWQ permittee or anyone acting on his behalf commits or threatens to commit an act of violence against a city official either on or off the job for the purpose of intimidating the official so that he will not perform his duties under this division; or

(4) The SWQ permit has been issued in error.

(b) The city engineer shall send a written notification by certified mail, return receipt requested, to the SWQ permittee informing him of the grounds for revoking his SWQ permit. The SWQ permittee may request a hearing pursuant to section 47-608 by filing a written request with the city engineer not later than the tenth day after notification by the city of the grounds for revocation.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 06-892, § 16, 8-23-06)

Sec. 47-656. Duration.

An initial SWQ permit shall be valid for one year from date of issuance, but may be renewed. All subsequent renewals of a SWQ permit shall be valid for one year.
(Ord. No. 01-800, § 3, 8-29-01)

Sec. 47-657. Renewal.

To renew a SWQ permit, the SWQ permittee shall submit a renewal application on a form prescribed by the city engineer and the applicable renewal fee not more than 30 days but not less than five days prior to expiration of the SWQ permit. As part of the renewal application, the SWQ permittee shall certify that all controls have been maintained as specified in the SWQMP. If structural controls are used, a state licensed professional engineer shall also certify that all structural controls still generally conform to the plans and technical specifications in the SWQMP. The city engineer shall deny a renewal application if it is found that the SWQ permittee failed to seek an amendment to its SWQ permit if required to do so pursuant to section 47-654 of this Code.
(Ord. No. 01-800, § 3, 8-29-01)

Sec. 47-658. Late renewals of permit.

The authorized city official shall accept and process a late filed application for the renewal of a permit if the application is filed or tendered for filing within the 30 day period following the permit expiration date and if the applicant demonstrates that the failure to timely file was based upon an error or misunderstanding and was not the result of a conscious indifference to the requirements for renewal.
(Ord. No. Ord. No. 2016-864, § 10, 11-9-2016)

Secs. 47-659—47-670. Reserved.

Subdivision C. Storm Water Quality Permit Requirements

Sec. 47-671. Incorporation by reference.

The SWQMP, including the proposed inspection checklist, maintenance plan and associated construction drawings, shall be incorporated into

the SWQ permit by reference. Failure to comply with the SWQMP shall be a violation of this article.
(Ord. No. 01-800, § 3, 8-29-01)

Sec. 47-672. Certifications and attestations.

(a) If the SWQMP on which the SWQ permit is based includes one or more structural controls, the SWQ permittee shall submit a certificate sealed by a professional engineer licensed as such in Texas within 14 days after the structural controls specified in the SWQMP for all or that part of the new development or significant redevelopment have been installed. The certificate shall certify that all structural controls are in general accordance with the plans and technical specifications in the SWQMP. At the same time this certificate is filed, the SWQ permittee shall also submit an attestation that he has read the SWQMP and agrees to adhere to the operation and maintenance requirements specified therein.

(b) If the SWQMP on which the SWQ permit is based does not include one or more structural controls, the SWQ permittee shall, before the issuance of a construction permit for any structure on land included in the SWQMP, submit an attestation that he has read the SWQMP and agrees to adhere to the operation and maintenance requirements specified therein.
(Ord. No. 01-800, § 3, 8-29-01)

Sec. 47-673. Transfer of permit; third-party permittees.

(a) The provisions of this subsection (a) shall apply to subdivisions that include lots for single-family residential use. Prior to the sale of the first lot in the subdivision or any section thereof, the owner of land that is being subdivided, in whole or in part, into single-family residential lots shall transfer the obligation to comply with all requirements of this division to a homeowners' association established for all or that part of the subdivision. The homeowners' association must have fee simple title to all structural controls and, at a minimum, an easement in favor of the homeowners' association allowing access to maintain structural controls or to implement non-structural controls. Further, the owner must require that any homeowners' association for the subdivision have the authority to impose fees or otherwise generate monies to fund operation and maintenance measures and bond requirements. After a homeowners' association complying with the provisions of this subsection has been established, the owner may seek to amend the SWQ permit pursuant to section 47-654 of this Code to transfer the SWQ permit to the homeowners' association. Until the city has approved the transfer to the homeowners' association, the owner shall remain responsible for compliance with the requirements of this division;

(b) The provisions of this subsection (b) shall apply to all new development or significant redevelopment that is not governed by subsection (a) above. The SWQ permit may be transferred to a person other than the owner of the land subject to the SWQ permit if the person and the owner enter into a binding legal agreement that meets the requirements of this subsection. The person must agree to comply with the requirements of this division and with the terms and conditions of the SWQ permit, including adherence to the operation and maintenance requirements specified therein. The third-party agreement shall grant fee simple title to all structural controls to the person, provide an easement if necessary to allow access by person across the owner's property to maintain structural controls or to implement non-structural controls, and if necessary, to allow storm water from the owner's property to drain across any adjacent property to a designated structural control. The legal agreement shall also provide that in the event of its termination for any reason, including by either choice or default, the obligation to comply with the provisions of this division shall revert to the owner of the land.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 2016-864, § 11, 11-9-2016)

Sec. 47-674. Reserved.

Editor's note—Ord. No. 2016-864, § 12, adopted November 9, 2016, repealed § 47-674 in its entirety. Formerly said section pertained to assumption of maintenance requirements and derived from Ord. No. 01-800, § 3, 8-29-01.

Sec. 47-675. Reserved.

Editor's note—Ord. No. 2016-864, § 12, adopted November 9, 2016, repealed § 47-675 in its entirety. Formerly said section pertained to accounting for structural control maintenance agreements and derived from Ord. No. 01-800, § 3, 8-29-01.

Sec. 47-676. Recordation.

(a) The SWQ permit requirements for each parcel shall be recorded in the real property records the county in which the parcel is located. The recordation shall note that none of the structural or non-structural controls on or for the parcel may be changed from the plans and technical specifications in the SWQ permit for the parcel, except as may otherwise be provided in this article.

(b) For new development that includes the platting of a reserve tract, a notation shall be placed on the subdivision plat that a SWQ permit must be obtained before the issuance of any construction permit for a structure on all or a part of the reserve tract.

(c) Third-party permittees: For subdivisions of lots for single-family residences, the homeowners' association agreement or structural control maintenance agreement shall be recorded for all parcels in the subdivision at the time of the transfer of the SWQ permit to the homeowners' association. For other new development or significant redevelopment for which there is a third-party permittee, the third-party agreement shall be recorded for all parcels subject to the rights and obligations specified in the agreement at the time of the transfer of the SWQ permit to the third-party permittee.

(d) The SWQ permit applicant or, if the SWQ permit has already been issued, the SWQ permittee, shall pay all recording fees required by the county clerk's office.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 06-892, § 17, 8-23-06)

Secs. 47-677—47-690. Reserved.

DIVISION 3. STORM WATER DISCHARGES ASSOCIATED WITH CONSTRUCTION ACTIVITY

Sec. 47-691. Applicability.

This division shall apply to all sites with a construction permit located within the city that have storm water discharges associated with construction activity.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 2016-864, § 13, 11-9-2016)

Sec. 47-692. Unpermitted discharges prohibited.

A person who is the operator of a site with a construction permit that has storm water discharges associated with construction activity commits an offense if the person discharges, or causes to be discharged, storm water associated with construction activity without first having obtained an NPDES or TPDES permit, or an approved SWPPP to do so.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 2016-864, § 14, 11-9-2016)

Sec. 47-693. Submission of NOI.

(a) The operator of a facility required to have an NPDES or TPDES permit to discharge storm water associated with construction activity shall submit a certification that he has submitted an NOI to the EPA or TCEQ, a copy of that NOI, and a copy of a site plan detailing the location of erosion control measures to the city engineer or the building official prior to obtaining a construction permit for that activity.

(b) A person commits an offense if the person operates a facility that is discharging storm water associated with construction activity without having submitted a copy of the NOI to do so to the city.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 06-892, § 3, 8-23-06)

Sec. 47-694. Submission of NOT.

(a) If required to submit an NOT to EPA pursuant to an NPDES or TPDES permit to discharge storm water associated with construc-

tion activity, an operator shall submit a certification that he has submitted an NOT to the EPA or TCEQ and a copy of that NOT to the city engineer at the same time the operator submits the NOT to the EPA or the TCEQ as applicable. If final stabilization as required by EPA has not been achieved at the time the operator submits the NOT, the operator shall also submit a copy of the NOI for the operator who is assuming responsibility for the site.

(b) A person subject to the requirements of subsection (a) of this section commits an offense if the person fails to submit a copy of the NOT to the city.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 06-892, § 3, 8-23-06)

Sec. 47-695. Compliance with permit.

(a) A facility that has storm water discharges associated with construction activity shall be operated in strict compliance with the requirements of its NPDES or TPDES permit or its construction permit to discharge storm water associated with construction activity.

(b) The storm water pollution prevention plan implemented to satisfy the requirements of an NPDES or TPDES permit to discharge storm water associated with construction activity shall comply with the storm water management handbook for construction activities. Construction sites that are not subject to an NPDES or TPDES permit due to their small size are still subject to their approved SWPPP.

(c) A person commits an offense if the person operates a site with a construction permit that has storm water discharges associated with construction activity in violation of the site's construction, NPDES or TPDES permit to discharge storm water associated with construction activity.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 2016-864, § 15, 11-9-2016)

Sec. 47-696. Modification of storm water pollution prevention plans.

(a) The city engineer and the building official may require the operator of a facility that has storm water discharges associated with construction activity to modify the facility's storm water pollution prevention plan if, in the best professional judgment of the city engineer or the building official, the storm water pollution prevention plan does not comply with the requirements of the facility's NPDES or TPDES permit to discharge storm water associated with construction activity.

(b) Notification of the deficiencies in a facility's storm water pollution prevention plan shall be made in writing, and the facility operator will be given a reasonable amount of time, not to exceed 30 days, to make the necessary changes in the storm water pollution prevention plan.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 06-892, § 18, 8-23-06)

Secs. 47-697—47-710. Reserved.

DIVISION 4. STORM WATER DISCHARGES FROM INDUSTRIAL AND HIGH RISK FACILITIES

Subdivision A. Storm Water Discharges Associated With Industrial Activity

Sec. 47-711. Unpermitted discharges prohibited.

(a) A person who is the owner or operator of a facility that has storm water discharges associated with industrial activity commits an offense if the person discharges, causes to be discharged, or threatens to discharge storm water associated with industrial activity without having first obtained an NPDES or TPDES permit to do so.

(b) A person who is the owner or the operator of a facility that has storm water discharges associated with industrial activity commits an offense if the person submits a certification pursuant to section 47-724 and fails to comply with the applicable standards established by the TCEQ.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 06-892, § 19, 8-23-06)

Sec. 47-712. Submission of NOI.

(a) A person who is the owner or the operator of a facility that has storm water discharges associated with industrial activity shall submit to the authorized city official a copy of:

(1) The notice of intent to obtain coverage under TPDES permit number TXR050000 for the facility;

(2) The notice of intent to obtain coverage under any other TPDES general storm water permit for the facility;

(3) The individual TPDES storm water permit for the facility; or

(4) The no exposure certification form submitted to TCEQ for the facility pursuant to the provisions of TPDES permit number TXR050000.

(b) A copy of the NOI or the no exposure certification form shall be submitted to the city no later than 14 calendar days after filing the NOI or no exposure form with the TCEQ for such coverage. A copy of the individual TPDES permit shall be submitted to the city no later than 14 calendar days after TCEQ signs the permit.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 06-892, § 3, 8-23-06; Ord. No. 2016-864, § 16, 11-9-2016)

Sec. 47-713. Submission of NOT.

(a) A person who is the owner or operator of a facility that has storm water discharges associated with industrial activity shall submit to the authorized city official a copy of an NOT for the facility which shall include any information required for notice of termination under TPDES permit number TXR050000 or any other TPDES general storm water permit, whenever:

(1) All storm water discharges associated with industrial activity are eliminated at the facility; or

(2) The operator of the facility changes.

(b) The copy of the NOT shall be submitted no later than 24 calendar days after either all storm water discharges associated with industrial activity are eliminated at the facility or the operator of the facility changes.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 2016-864, § 17, 11-9-2016)

Secs. 47-714—47-720. Reserved.

Subdivision B. Monitoring and Reporting

Sec. 47-721. Applicability.

This subdivision shall apply to municipal landfills, hazardous waste treatment, disposal and recovery facilities, facilities that are subject to Section 11023 of Title 42 of the United States Code, as it may be amended from time to time, and other municipal waste treatment, storage or disposal facilities (including, but not limited to, POTWs, transfer stations and commercial incinerators). This subdivision shall also apply to high-risk facilities that the Director of Houston Public Works, or city engineer believes have the potential to contribute a pollutant to the MS4.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 2016-864, § 18, 11-9-2016; Ord. No. 2018-11, § 49, 1-10-2018)

Sec. 47-722. Designation as a high risk facility.

(a) The city engineer shall promulgate regulations to determine whether a facility is contributing a substantial pollutant loading to the MS4 and so should be designated as a high-risk facility. The city engineer shall consider, but shall not be limited to, such factors as the nature of the activities at the facility and drainage patterns in the area of the facility. The city engineer shall provide the facility with written notice of the facility's designation.

(b) The city engineer shall send written notification by certified mail, return receipt requested, to each high-risk facility designated pursuant to subsection (a) of this section informing the operator of that designation. The notice shall specify the parameter or parameters that the facility will have to monitor for pursuant to section 47-723(b)(12) or section 47-723(c)(5), whichever is applicable. The facility operator may appeal the designation pursuant to section 47-608 of this Code. Designation as a high-risk facility shall be effective on the third day following the date notice is deposited in the mail to the facility.

(c) The city engineer shall further promulgate regulations for determining whether a facility designated as a high-risk facility pursuant to subsection (a) is no longer contributing a substantial pollutant loading or a pollutant to the MS4 and for terminating the facility's designation as a high-risk facility. Upon terminating the facility's designation as a high-risk facility, the city engineer shall send written notification by certified mail, return receipt requested to the facility informing it of that termination.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 06-892, § 20, 8-23-06; Ord. No. 2016-864, § 19, 11-9-2016)

Sec. 47-723. Monitoring required.

(a) Every high-risk facility that has storm water discharges associated with industrial activity shall undertake all of the following applicable monitoring:

(1) Required by an individual NPDES or TPDES storm water permit if the facility has an individual storm water permit;

(2) Required by a general NPDES or TPDES storm water permit, other than TPDES permit number TXR050000 if the facility has coverage under such a permit; or

(3) Required by TPDES permit number TXR050000, or any successor permit thereto, if neither (i) or (ii) above apply; as applicable.

(b) If a high-risk facility does not have storm water discharges associated with industrial activity, the facility annually shall analytically monitor and analyze storm water discharges from its facility during a representative storm event on an outfall-by-outfall basis for each of the following parameters:

(1) Any pollutants limited in an existing NPDES or TPDES permit for the facility;

(2) Total oil and grease;

(3) Chemical oxygen demand;

(4) pH;

(5) Biochemical oxygen demand, five-day;

(6) Total suspended solids;

(7) Total phosphorus;

(8) Total Kjeldahl nitrogen;

(9) Nitrate plus nitrite nitrogen;

(10) Any other discharges required to be monitored under Section 122.21(g)(7)(iii) and (iv) of Title 40 of the CFR;

(11) Any pollutants for which effluent limitations are imposed in the city's storm water permit for its MS4; and

(12) Any other pollutant that the city has determined the facility is discharging that contributes a substantial pollutant loading to the MS4.

(c) If a type 2 facility does not have storm water discharges associated with industrial activity, the facility annually shall analytically monitor and analyze storm water discharges from its facility during a representative storm event on an outfall-by-outfall basis for each of the following parameters:

(1) Chemical oxygen demand;

(2) Total oil and grease;

(3) pH;

(4) Any pollutants for which effluent limitations are imposed in the city's storm water permit for its MS4; and

(5) Any other pollutant that the city believes the facility may be contributing to the MS4 or waters of the United States.

(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 2016-864, § 20, 11-9-2016)

Sec. 47-724. No exposure certification.

In lieu of the monitoring required by section 47-723, a facility may submit once every five years a certification that raw and waste materials, final and intermediate products and by-products, material handling equipment or activities, industrial machinery or operations, or significant materials from past industrial activity are not presently exposed to storm water and are not expected to be exposed to storm water. If the facility is eligible for coverage under TPDES permit number TRX05000, the certification shall be on the form provided by TCEQ pursuant to

TPDES permit number TXR05000. If the facility is not eligible for coverage under TPDES permit number TRX05000, the certification shall be on a form provided by the city. A facility that submits a certification pursuant to this section shall notify the city at least 14 days before changing operating or management procedures that would result in exposure of storm water to industrial activities, and upon such a change shall become subject to the monitoring requirements of section 47-723 of this Code.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 06-892, §§ 3, 21, 8-23-06)

Sec. 47-725. Establishment of reporting thresholds.

The city engineer shall establish a reporting threshold for every parameter for which monitoring is required of high risk facilities that do not have storm water discharges associated with industrial activity under this subdivision, which may be amended from time to time as deemed warranted by the city engineer.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 2016-864, § 21, 11-9-2016)

Sec. 47-726. Reporting of monitoring results.

(a) If the results of any monitoring required by this subdivision:

(i) Exceed a benchmark or effluent limitation in the NPDES or TPDES storm water permit for a facility that has storm water discharges associated with industrial activity, or

(ii) Exceed the threshold established by the city engineer pursuant to section 47-725 for a facility that does not have storm water discharges associated with industrial activity,

the owner and operator of the facility shall submit the results in writing to the city engineer within 30 days after conducting the monitoring. Failure to report the results of such monitoring shall constitute a violation of this article.

(b) The city engineer may request in writing by certified mail, return receipt requested, the results of any other monitoring required by this division. The facility shall then submitted the requested data in writing to the city engineer within 30 days after the date the city engineer's request is deposited in the mail to the facility.
(Ord. No. 01-800, § 3, 8-29-01)

Sec. 47-727. Record retention.

Each high-risk facility shall retain the results of all monitoring required by this division and supporting documentation for three years.
(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 2016-864, § 22, 11-9-2016)

Sec. 47-728. Investigation, corrective measures, and additional monitoring.

(a) If the results of any monitoring required by this division:

(1) Exceed a benchmark or effluent limitation in an NPDES or TPDES storm water permit for a facility that has storm water discharges associated with industrial activity; or

(2) Exceed the thresholds established by the city engineer pursuant to section 47-725 for a facility that does not have storm water discharges associated with industrial activity;

the owner and operator of the facility shall investigate the cause of each exceedance and take appropriate corrective measures to eliminate each exceedance as soon as possible. The owner and operator shall notify the city engineer of the corrective measures that will be taken and a schedule for implementation.

(b) The city engineer may require additional monitoring at a frequency to be determined by the city engineer to ascertain the effectiveness of any corrective measures taken pursuant to subsection (a).

(c) Failure to undertake appropriate corrective measures to eliminate an exceedance within a reasonable amount of time as determined by the city engineer shall constitute a violation of this article.
(Ord. No. 01-800, § 3, 8-29-01)

Secs. 47-729—47-740. Reserved.

DIVISION 5. ILLICIT DISCHARGES AND CONNECTIONS

Sec. 47-741. Discharge to MS4 prohibited.

(a) A person commits an offense if the person threatens to introduce, introduces or causes to be introduced into the MS4 any discharge that is not composed entirely of storm water.

(b) It is an affirmative defense to any enforcement action for a violation of subsection (a) that the discharge was composed entirely of one or more of the following categories of discharges:

(1) A discharge authorized by, and in strict compliance with, an NPDES or TPDES permit (other than the NPDES permit for discharges from the MS4);

(2) A discharge or flow resulting from fire fighting by the fire department if that discharge is not reasonably expected to be a significant source of pollutants to the MS4;

(3) A discharge or flow of fire protection water if that discharge is not reasonably expected to be a significant source of pollutants to the MS4;

(4) Water line flushing, provided that the water is not significantly chlorinated when reaching a receiving water;

(5) Landscape irrigation;

(6) Diverted stream flows;

(7) Rising ground waters;

(8) Uncontaminated ground water infiltration;

(9) Infiltration (as defined in Section 35.2005(20) of Title 40 of the CFR) to separate storm sewers;

(10) Uncontaminated pumped ground water;

(11) Discharges from foundation drains;

(12) Discharges from potable water sources, providing the water is not significantly chlorinated when reaching a receiving water;

(13) Irrigation water;

(14) Air conditioning condensation;

(15) Water from crawl space pumps;

(16) Springs;

(17) Lawn watering;

(18) Discharges from footing drains;

(19) Flows from riparian habitats and wetlands;

(20) Non-commercial car washing (until such time as TCEQ issues a general permit for such discharges);

(21) Pavement wash waters provided cleaning chemicals are not used (until such time as TCEQ issues a general permit for such discharges);

(22) Dechlorinated swimming pool discharges; or

(23) Materials resulting from a spill where the discharge is necessary to prevent loss of life, personal injury or severe property damage provided that the party responsible for the spill takes all reasonable steps to minimize or prevent any adverse effects to human health or the environment.

(24) Pavement wash water provided cleaning chemicals are not used (cosmetic wash water);

(25) Individual residential vehicle washing provided cleaning chemicals are not used;

(26) Wash water using only potable water, and which are similar in quality to street wash water and individual vehicles washing but without the use of detergents or surfactants;

(27) Other allowable non-storm water discharges listed in 40 CFR § 122.26(d)(2)(iv)(B)(1);

(28) Other allowable non-storm water discharges as listed in the TPDES Construction General Permit No. TXR150000 and TPDES Multi-Sector General Permit No. TXR050000; or

(29) Other similar occasional incidental non-storm water discharges.

(c) No affirmative defense shall be available under subsection (b) if:

(1) The discharge or flow in question has been determined by the city engineer to be a source of a pollutant or pollutants to the waters of the United States or to the MS4;

(2) Written notice of such determination has been provided to the discharger; and

(3) The discharge has continued after the expiration of the time given in the notice to cease the discharge.

(d) Reserved.

(Ord. No. 01-800, § 3, 8-29-01; Ord. No. 06-892, §§ 3, 22—24, 8-23-06; Ord. No. 2016-864, § 23, 11-9-2016)

Sec. 47-742. Reserved.

Editor's note—Ord. No. 06-892, § 25, adopted Aug. 23, 2006, effective Sept. 1, 2006, repealed § 47-742 in its entirety. Formerly, said section pertained to compliance monitoring and derived from Ord. No. 01-800, § 3, 8-29-01.

Secs. 47-743—47-760. Reserved.

ARTICLE XIII. MUNICIPAL SETTING DESIGNATIONS*

Sec. 47-761. Definitions.

As used in this article, the following words and terms shall have the meanings ascribed in this section, unless the context of their usage clearly indicates another meaning:

Application means the application submitted to the city for a municipal setting designation ordinance.

Contaminant of concern means any contaminant that has the potential to adversely affect ecological or human receptors due to its concentration, distribution or mode of toxicity.

Critical protective concentration level means the lowest protective concentration level for a contaminant of concern within a source medium determined from all applicable human exposure pathways.

Designated groundwater means groundwater that will be or is prohibited from use as potable water by a municipal setting designation ordinance.

Designated property means the property that will be or is subject to a municipal setting designation ordinance. The designated property may cover several platted lots or tracts of land and may include rights-of-way of the city or other governmental entity.

EPA means the United States Environmental Protection Agency and any successor agency or department.

Groundwater means water below the surface of the earth.

Ingestion protective concentration level means the protective concentration level for human ingestion for contaminants of concern in groundwater established by the TCEQ under the Texas Risk Reduction Program, determined as if there were no municipal setting designation ordinance.

*__Editor's note—__Section 5 of Ord. No. 07-959, adopted August 22, 2007, states that this article shall take effect at 12:01 a.m. on November 1, 2007.

Ingestion protective concentration level exceedence zone means the area where concentrations of contaminants of concern from sources on or migrating from or through the designated property are greater than the ingestion protective concentration level in groundwater, determined as if there were no municipal setting designation ordinance.

Municipal setting designation means a TCEQ designation authorized by Subchapter W of Chapter 361 of the Texas Health and Safety Code, as it may be amended from time to time.

Municipal setting designation ordinance means an ordinance adopted pursuant to this article.

Non-ingestion protective concentration level means the protective concentration level for dermal contact or inhalation for contaminants of concern in groundwater established by the TCEQ under the Texas Risk Reduction Program.

Non-ingestion protective concentration level exceedence zone means the area where concentrations of contaminants of concern from sources on or migrating from or through the designated property are greater than the non-ingestion protective concentration level in groundwater.

Potable water means water that is used for irrigation, production of food or drink products intended for human consumption, drinking, showering, bathing or cooking purposes.

Protective concentration level means the concentration of a contaminant fo [of] concern that the TCEQ has determined can remain within the source medium and not result in a level that exceeds the applicable human health risk-based exposure limit or ecological protective concentration level at the point of exposure for an exposure pathway.

Response action means the control, decontamination or removal from the environment of a hazardous substance or contaminant pursuant to Subchapter W of Chapter 361 of the Texas Health and Safety Code, as it may be amended from time to time.

TCEQ means the Texas Commission on Environmental Quality and any successor agency.

TCEQ application means the application submitted to the TCEQ for certification of a municipal setting designation.

To the extent known means information known by an applicant or applicant's agent after review of all public and private records and other information sources available in the exercise of due diligence.

(Ord. No. 07-959, § 2, 8-22-07)

Sec. 47-762. Application.

(a) A person seeking a municipal setting designation ordinance shall file an electronic portable digital file and at least one paper copy of an application and any supporting documentation with the director.

(b) The application must be clear, complete, concise, correct, contain only relevant information and be organized to facilitate analysis. Maps must be accurate and drawn to scale. Supporting documentation, if necessary, must be submitted as a separate appendix to the application.

(c) A professional surveyor registered with the Texas Board of Professional Surveying must certify that all property descriptions or maps with metes and bounds descriptions are accurate.

(d) The application must be on the form required by the director and contain the following information in the order listed:

(1) An executive summary of the application;

(2) The name, address, telephone number(s) and email addresses of all applicants, all property owners within the designated property, and any representatives of the applicants or property owners;

(3) A legal description of the boundaries of the designated property and a copy of the deed for the designated property;

(4) A site map showing:

a. The location of the designated property;

b. The topography of the designated property as indicated on publicly available sources, which must note the watershed and whether the designated property is located in a floodplain or floodway, as those terms are defined in chapter 19 of this Code;

c. The detected area of groundwater contamination;

d. The location of all soil sampling locations and all groundwater monitoring wells;

e. Groundwater gradients, to the extent known, and direction of groundwater flow; and

f. The ingestion protective concentration level exceedence zone for each contaminant of concern, to the extent known;

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(5) A description of the current use, and, to the extent known, the anticipated uses, of the designated property and properties within 500 feet of the boundary of the designated property;

(6) For each contaminant of concern within the ingestion protective concentration level exceedence zone, to the extent known:

a. A description of the ingestion protective concentration level exceedence zone and the non-ingestion protective concentration level exceedence zone, including a specification of the horizontal area and the minimum and maximum depth below ground surface;

b. The level of contamination, the ingestion protective concentration level, and the non-ingestion protective concentration level, all expressed as mg/L units; and

c. Its basic geochemical properties (e.g., whether the contaminant of concern migrates with groundwater, floats or is soluble in water);

(7) For each contaminant of concern within the designated groundwater, to the extent known:

a. A description of the ingestion protective concentration level exceedence zone and the non-ingestion protective concentration level exceedence zone, including a specification of the horizontal area and the minimum and maximum depth below ground surface;

b. The level of contamination, the ingestion protective concentration level, and the non-ingestion protective concentration level, all expressed as mg/L units; and

c. Its basic geochemical properties (e.g., whether the contaminant of concern migrates with groundwater, floats or is soluble in water);

(8) A table displaying the following information for each contaminant of concern, to the extent known:

a. The concentration level for soil and groundwater, the ingestion protective concentration level, and the non-ingestion protective concentration level, all expressed as mg/L units; and

b. The critical protective concentration level without the municipal setting designation, highlighting any exceedences;

(9) A statement as to whether the plume of contamination is stable or contracting, with the basis for that statement. If this information is not known, a statement of why the information is not known;

(10) A statement as to whether contamination on and off the designated property without a municipal setting designation exceeds a residential assessment level as defined in the Texas Risk Reduction Program or analogous residential level set by EPA, if known, and the basis for that statement;

(11) A statement as to whether contamination on and off the designated property with a municipal setting designation will exceed a residential assessment level as defined in the Texas Risk Reduction Program or analogous residential level set by EPA, if known, and the basis for that statement;

(12) Identification of the points of origin of the contamination and the persons responsible for the contamination, to the extent known;

(13) A description of any environmental regulatory or litigation actions that have been taken within the past five years in connection with the designated property, to the extent known;

(14) A listing of all existing state or EPA registrations, permits, and identification numbers that apply to the designated property;

(15) A statement as to whether the designated property has been admitted to the Texas Voluntary Cleanup Program (§ 361.601 of the Texas Health & Safety Code, as may be amended from time to time) or similar state or federal program, and a description of the status of the designated property in the program;

(16) A summary of any environmental site assessment reports filed with the TCEQ regarding any site investigations or response actions that are planned, ongoing or completed related to the designated property;

(17) A statement as to whether any public drinking water supply system exists that satisfies the requirements of Chapter 341 of the Texas Health and Safety Code and that supplies or is capable of supplying drinking water to the designated property and property within ½ mile of the designated property and the identity of each supply system;

(18) The name and address of each owner or operator of a water well registered or permitted by the state or the Houston-Galveston Subsidence District that is located within five miles of the boundary of the designated property, along with:

a. A map showing the location of each well and, to the extent known, a notation of whether each well is used for potable water; and

b. A statement as to whether the applicant has provided notice to each owner in compliance with § 361.805 of the Texas Health and Safety Code;

(19) The name and address of each retail public utility, as defined in § 13.002 of the Texas Water Code, that owns or operates a groundwater supply well within five miles of the boundary of the designated property, along with a statement as to whether the applicant has provided notice as required by § 361.805 of the Texas Health and Safety Code;

(20) A listing of each municipality, other than the city, with a corporate limit within ½ mile of the boundary of the designated property, and a statement as to whether the applicant has provided notice as required by § 361.805 of the Texas Health and Safety Code;

(21) A listing of each municipality, other than the city, that owns or operates a groundwater supply well within five miles of the boundary of the designated property, and a statement as to whether the applicant has provided notice as required by § 361.805 of the Texas Health and Safety Code;

(22) The following statement signed and sealed by a licensed professional engineer or licensed professional geoscientist authorized to practice in the State of Texas with expertise in environmental remediation:

"To the best of my knowledge and belief, based upon a review of all public and private records and other information sources available to me in the exercise of due diligence, the opinions stated and conclusions made in this application are supported by such information, and the technical and scientific information submitted with the application is true, accurate and complete. Based on such review, the contaminants of concern from sources on the designated property or migrating from or through the designated property more likely than not do exceed or do not exceed a non-ingestion protective concentration level on property beyond the boundaries of the designated property";

(23) If the licensed professional engineer or licensed professional geoscientist determines that contaminants of concern from sources on the designated property or migrating from or through the designated property more likely than not do exceed a non-ingestion protective concentration level on property beyond the boundary of the designated property, then the applicant must:

a. Specify the name and address of the owner of each property;

b. Send a copy of the application to the owner of the property with the notice of the public meeting;

c. Provide documentation that the designated property has been included in a state or federal program that requires that the entire non-ingestion protective concentration level exceedence zone be addressed to the satisfaction of the agency administering the program, along with documentation of the estimated time period in which it is to be addressed. An example of such a program is the Texas Voluntary Cleanup Program (§ 361.501 of the Texas Health and Safety Code, as may be amended from time to time); and

d. Provide documentation upon completion of the state or federal program showing that the non-ingestion protective concentration level exceedences have been addressed to the satisfaction of the agency administering the program;

(24) The following statement certified by the applicant and any authorized representatives of the applicant(s) listed in the application:

"I certify under penalty of law that this application and all attachments were prepared under my direction or supervision in a manner designed to assure that qualified personnel properly gathered and evaluated the information submitted. Based on my inquiry of the persons responsible for gathering and evaluating the information, the information submitted is, the best of my knowledge and belief, true, accurate and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations";

(25) The signature of the applicant and proof that the applicant has the legal authority to restrict the use of the groundwater on the designated property; and

(26) Any other information that the director deems necessary.

(e) The fees payable pursuant to this article are set forth in the city fee schedule. Payment of any applicable fees when due is a condition of the processing of any application under this article, and no refund of the application fee shall be made. The director shall not mail notices or advertise the public meeting required by this article until the estimated cost of mailing notices and advertising the public meeting is paid by the applicant. The director shall not request that a municipal setting designation ordinance be placed on a city council agenda until the applicant has paid all costs associated with advertising and mailing notices for the public meeting. The director may waive the application fee but not other costs if the director finds that payment of the application fee would result in a substantial financial hardship to the applicant.

(f) Within 30 days after submission of an application, the director shall notify the applicant that the application is complete or notify the applicant in writing of any deficiencies in the application and of any additional documentation required. The applicant shall have 60 days from the date of the deficiency letter to correct the deficiencies or submit additional documentation. The director may, for good cause, extend the deadline to correct or supplement the application. If the applicant fails to correct or supplement the application within 60 days or the extended period, the application shall be deemed withdrawn and the initial filing fee forfeited. No application shall be deemed complete until all supporting documentation is supplied.
(Ord. No. 07-959, § 2, 8-22-07; Ord. No. 2010-556, §§ 2, 3, 7-14-2010, eff. 8-1-2010; Ord. No. 2011-1168, § 13, 12-14-2011)

Sec. 47-763. Staff review.

(a) The director shall distribute a copy of the complete application to the city attorney, the mayor's office, the Houston Health Department and any other city department whose property or operations may be affected by the application for review and comment. The director shall also send a copy of the application to the TCEQ.

(b) The city is not responsible for conducting an environmental risk assessment with respect to the application or the designated property.
(Ord. No. 07-959, § 2, 8-22-07; Ord. No. 2015-820, § 34, 8-26-2015)

Sec. 47-764. Public meeting.

(a) The director shall conduct a public meeting within 60 days after the application is deemed complete. The public meeting must be held at a facility open to the public near the designated property.

(b) Upon receipt of the estimated cost of mailing notices and advertising the public meeting, the director shall cause to be provided notification of the public meeting as follows:

(1) The notice of the public meeting must include:

a. The date, time and location of the public meeting;

b. The identity of the applicant;

c. The location and legal description of the designated property;

d. The purpose of a municipal setting designation; and

e. The type of contamination identified in the designated groundwater;

(2) The director shall publish notice of the public meeting in a newspaper of general circulation at least 30 days before the public meeting;

(3) The director shall mail notice of the public meeting at least 30 days before the date of the public meeting by depositing the notice properly addressed and postage paid in the United States mail. The notice must be written in at least English and Spanish. The applicant may not alter, change, amend, or enlarge the application after notices for the public meeting have been mailed. The director shall mail notice of the public meeting to:

a. The applicant;

b. Owners of real property within 2,500 feet of the boundary of the designated property as indicated by the most recent appraisal district records;

c. Owners and operators of water wells registered or permitted by the state or the Harris-Galveston Subsidence District that are located within five miles of the boundary of the designated property, as indicated on the application, by certified mail;

d. Any municipality with a corporate limit within one-half mile of the boundary of the designated property, as indicated on the application, by certified mail;

e. Any municipality that owns or operates a groundwater supply well within five miles of the boundary of the designated property, as indicated on the application, by certified mail;

f. The Harris-Galveston Subsidence District;

g. Any civic organization, property owners' association, or any other interested group with identifiable boundaries, provided that the organization, association or group is registered with the planning and development department in a manner prescribed by the director of that department, the boundary of which organization, association or group is within one-half mile of the boundary of the designated property, as indicated on the application, by certified mail; and

h. The TCEQ; and

(4) The director shall cause a copy of the application to be placed on display at the public library closest to the designated property at least 30 days prior to the public meeting.

(c) The applicant, the licensed professional engineer or licensed professional geoscientist who signed and sealed the application, or a licensed

professional engineer or licensed professional geoscientist who is familiar with the application must be present at the public meeting. If the required person is not present at the public meeting, the director may either deem the application withdrawn and any fees forfeited or reschedule the public meeting at the applicant's expense.

(d) The purpose of the public meeting is to provide information to the community about municipal setting designations in general and the application in specific, allow the applicant to explain the application, allow proponents and opponents to comment, and notify the community of the date of the public hearing.
(Ord. No. 07-959, § 2, 8-22-07; Ord. No. 2010-556, § 4, 7-14-2010, eff. 8-1-2010)

Sec. 47-765. Public hearing; consideration of application.

(a) *Public hearing.* The mayor shall designate a committee of city council that shall conduct a public hearing to consider a municipal setting designation ordinance. Upon a request from the director, the mayor may direct that city council will conduct the public hearing on a particular application.

(1) Prior to the public hearing, the director shall prepare a recommendation as to whether the municipal setting designation ordinance should be granted or denied, setting forth any conditions that should be imposed.

a. The director may recommend that the municipal setting designation ordinance prohibit the use of the designated groundwater from beneath public rights of way immediately adjacent to the designated property as potable water.

b. If, in the sole discretion of the director, the director determines it is more likely than not that a source of a contaminant of concern originated on the designated property, and the ingestion protective concentration level exceedence zone or the non ingestion protective concentration level exceedence zone for that contaminant of concern extends to public rights of way immediately adjacent to the designated property, the director may recommend that the municipal setting designation ordinance include a condition that the public right of way immediately adjacent to the designated property be included, at no additional cost to the city, in the TCEQ application.

(2) The applicant, the licensed professional engineer or licensed professional geoscientist who signed and sealed the application or a licensed professional engineer or licensed professional geoscientist who is familiar with the application must be present at the public hearing. If the required person is not present at the public hearing, the body conducting the hearing may either deny the application or continue the public hearing.

(b) *Council committee consideration.* Following the close of the public hearing, the city council committee shall consider whether it supports the director's recommendation. No further action shall be taken on the application if the city council committee finds that:

(1) It does not meet the eligibility criteria of § 361.803 of the Texas Health and Safety Code;

(2) The municipal setting designation will have an adverse effect on the current or future water resource needs or obligations of the city; or

(3) There is not a public drinking water supply system that satisfies the requirements of Chapter 361 of the Texas Health and Safety Code and that supplies or is capable of supplying drinking water to the designated property and property within one half mile of the boundary of the designated property.

(c) *City council consideration.* Upon receipt of the director's recommendation, or following the close of the public hearing if city council conducts the hearing, the city council shall approve or deny

the application. Approval of the application shall be demonstrated by adopting a municipal setting designation ordinance that:

(1) States that the ordinance is necessary because the concentrations of contaminants of concern exceed human ingestion protective concentration levels;

(2) Provides a legal description of the designated property;

(3) Describes the designated groundwater, including the maximum depth below ground surface of the designated groundwater; however, the maximum depth shall not exceed 200 feet below ground surface unless the applicant specifically so requests and the ordinance specifically provides a greater depth;

(4) Prohibits the use as potable water of groundwater from beneath the designated property;

(5) Appropriately restricts other uses of or contact with the designated groundwater, including, but not limited to, properly plugging any existing water production well on the designated property;

(6) Lists any reasonable and necessary conditions; and

(7) Indicates support of the applicant's TCEQ application, with any comments.

(d) The municipal setting designation ordinance may prohibit the use as potable water of the designated groundwater from beneath public rights of way immediately adjacent to the designated property as potable water.

(e) The municipal setting designation ordinance may include a condition that the public rights of way immediately adjacent to the designated property be included, at no additional cost to the city, in the TCEQ application.
(Ord. No. 07-959, § 2, 8-22-07; Ord. No. 2010-556, § 5, 7-14-2010, eff. 8-1-2010)

Sec. 47-766. Limitation on reapplication.

If the applicant withdraws the application after the public hearing, or if the city council committee or the city council denies the application, no further applications may be accepted for that property for one year after the date of the withdrawal or denial.
(Ord. No. 07-959, § 2, 8-22-07; Ord. No. 2010-556, § 6, 7-14-2010, eff. 8-1-2010)

Sec. 47-767. Effect of municipal setting designation ordinance.

(a) The effect of a municipal setting designation ordinance is to prohibit use of designated groundwater as potable water and thereby enable the TCEQ to certify a municipal setting designation for the designated property. If certified by the TCEQ, the municipal setting designation may limit the scope of or eliminate the need for risk-based site investigations and response actions pursuant to Section 361.808 of the Texas Health and Safety Code based on the non-existence, elimination, or control of pathways for human ingestion of contaminated groundwater.

(b) Any person owning, operating, or controlling the designated property remains responsible for complying with all applicable federal and state laws and regulations and all ordinances, rules, and regulations of the city. The city council's approval of a municipal setting designation ordinance in itself does not change any environmental assessment or cleanup requirements applicable to the designated property.

(c) Approval of a municipal setting designation ordinance shall not be construed to subject the city to any responsibility or liability for any injury to persons or damage to property caused by any contaminant of concern.
(Ord. No. 07-959, § 2, 8-22-07)

Sec. 47-768. Additional requirements following adoption of an ordinance.

(a) Within 30 days after adoption of a municipal setting designation ordinance, the applicant shall provide:

(1) The director with an electronic file showing the location of the designated property and the designated groundwater in a format compatible with the city's geographic information system and its integrated land management system; and

(2) The Harris County Appraisal District with an electronic file showing the location of the designated property and the designated groundwater in a format compatible with its system.

(b) Within 30 days after adoption, the director shall send a certified copy of the municipal setting designation ordinance to the applicant and the TCEQ or EPA, as applicable.

(c) The applicant shall provide the director with a copy of the municipal setting designation certificate issued by the TCEQ pursuant to § 361.807 of the Texas Health and Safety Code within 30 days after issuance of the certificate.

(d) Within 30 days after receipt of the copy of the municipal setting designation certificate issued by the TCEQ pursuant to § 361.807 of the Texas Health and Safety Code and the necessary filing fee from the applicant, the director shall file a certified copy of the municipal setting designation ordinance in the deed records of the county where the designated property is located.

(e) The applicant shall provide the director with a copy of the certificate of completion or other analogous documentation issued by the TCEQ or EPA showing that any site investigations and response actions required pursuant to § 361.808 of the Texas Health and Safety Code have been completed to the satisfaction of the TCEQ or EPA within the time period required. The director may, for good cause, extend the time for submitting the documentation.

(f) The director may, for good cause, recommend to the city council that the municipal setting designation ordinance be repealed, after giving 30 days written notice in advance to the applicant and the TCEQ or EPA, as applicable, of such a recommendation.

(g) The applicant shall notify the director in writing if the applicant determines that notice is required to be sent to an owner of other property beyond the boundaries of the designated property under Title 30 Texas Administrative Code, § 350.55(b), providing the name of the property owner, the property address, and a copy of the notice sent to the property owner.
(Ord. No. 07-959, § 2, 8-22-07; Ord. No. 2010-556, § 7, 7-14-2010, eff. 8-1-2010)

Sec. 47-769. Authority of the director.

The director is authorized to:

(1) Enter public or private property to determine whether designated groundwater is being used in violation of this section.

(2) Administer and enforce the provisions of this section.

(Ord. No. 07-959, § 2, 8-22-07)

Sec. 47-770. Offenses; penalty.

(a) A person commits an offense if the person:

(1) Uses designated groundwater as a potable water source or for a purpose prohibited in the municipal setting designation ordinance;

(2) Fails to provide the director with a copy of the municipal setting designation certificate issued by the TCEQ pursuant to § 361.807 of the Texas Health and Safety Code within 30 days after issuance of the certificate;

(3) Fails to provide the director with a copy of the certificate of completion or analogous documentation issued by the TCEQ or EPA showing that any site investigations and response actions required pursuant to § 361.808 of the Texas Health and Safety Code have been completed to the satisfaction of the TCEQ or EPA within the time period required; and

(4) Fails to notify and provide documentation to the director within the time period, if any, required in the municipal setting designation ordinance that the entire noningestion protective concentration level exceedence zone originating from sources on the designated property or migrating from or through the designated property has been addressed to the satisfaction of the state or federal agency administering the program.

(b) Except as may otherwise be provided, whenever in this article an act is prohibited or is made or declared unlawful or an offense or misdemeanor, or whenever in this article the doing of any thing or act is required or the failure to do

any thing or act is prohibited, the violation of the provision shall be and constitute a misdemeanor punishable, upon conviction, by a fine of not less than $500.00 nor more than $2,000.00 each day that any violation continues shall constitute and be punishable as a separate offense. Any offense under this article that also constitutes a violation of any state penal law shall be punishable as provided in the applicable state law.
(Ord. No. 07-959, § 2, 8-22-07)

Secs. 47-771—47-800. Reserved.

ARTICLE XIV. MUNICIPAL DRAINAGE UTILITY SYSTEM

DIVISION 1. CREATION OF THE SYSTEM

Sec. 47-801. Findings.

Incident to the creation of a municipal drainage utility system, the City Council of the City of Houston finds and determines that:

(1) The city shall establish a schedule of drainage charges against all benefitted real property in the city;

(2) The city shall provide drainage for all benefitted real property in the city upon payment of drainage charges unless the property is exempt from such payment as provided herein;

(3) The city shall offer drainage service on nondiscriminatory, reasonable and equitable terms.

(Ord. No. 2011-254, § 2, 4-6-2011; Ord. No. 2014-336, § 2, 4-23-2014)

Sec. 47-802. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Benefitted property means a lot or tract within the drainage service area that discharges directly or indirectly into the drainage system and that, according to a determination by the director, does not fall within an exemption.

Billing year means each 12-month period that begins on July 1st of one year and ends on June 30th of the ensuing year.

Cost of service, as applied to the drainage service for any benefitted property, means but shall not be limited to, the prorated cost of the following:

(1) The acquisition of interests in real property relating to drainage structures, equipment and facilities;

(2) The acquisition, construction, repair, and maintenance of drainage structures, equipment, and facilities;

(3) The acquisition of drainage-related architectural, engineering, legal, and related services, plans and specifications, studies, surveys, estimates of cost and of revenue, and all other expenses necessary or incident to planning, providing, or determining the feasibility and practicality of drainage structures, equipment and facilities;

(4) Providing and operating all drainage-related machinery, equipment, furniture, and facilities;

(5) Start-up costs of drainage facilities; and

(6) Administrative costs including direct and indirect costs.

County means any of the counties of Fort Bend, Harris, and Montgomery, Texas.

County-exempt property means real property owned by a county and administered or used by that county for a public purpose that is primarily supported by general county tax revenue, including, but not limited to, courthouses, emergency management facilities, jails, libraries, offices for county officers, parks, transportation facilities, flood control facilities, and other similar properties. County-exempt property shall not include real property owned and administered or used by county-wide entities that are largely self-sufficient, are primarily supported by fees and charges or a separate tax, and are not primarily funded by general county tax

revenue, including, but not limited to, courthouses, emergency management facilities, jails, libraries, offices for county officers, parks, transportation facilities, flood control facilities, and other similar properties. County-exempt property shall not include real property owned and administered or used by county-wide entities that are largely self-sufficient, are primarily supported by fees and charges or a separate tax, and are not primarily funded by general county tax revenue, including, but not limited to, the Port of Houston Authority, the Harris County Astrodome and Reliant Stadium complex, and other similar properties. For the purposes of this article, real property owned and administered or used for a public purpose by the Harris County Flood Control District, the Harris County Hospital District, and toll road authorities shall be considered county-exempt property.

Curb and gutter drainage means drainage primarily removed from a benefitted property by use of street curbs and gutters to channel the water to a system of underground pipes or culverts.

Department means Houston Public Works.

Director means the Director of Houston Public Works or the director's designee.

Drainage means streets, curbs, bayous, bridges, catch basins, channels, conduits, creeks, culverts, detention ponds, ditches, draws, flumes, inlets, pipes, pumps, rivers, sloughs, treatment works, and other means and appurtenances to those items, whether natural or artificial, or using force or gravity, that are used to draw off surface water from land, carry the water away, collect, store, or treat the water, or divert the water into natural or artificial watercourses or into which the surface water flows; *drainage* shall also mean the water so transported.

Drainage charge means the charge imposed by the city herein, including penalties, to recover the city's cost in furnishing drainage services for any benefitted property and the cost of funding future drainage system improvements.

Drainage system means the drainage owned or controlled in whole or in part by the city and dedicated to the service of benefitted property as provided for in section 47-804 of this Code, as well as provisions for additions to the system and any drainage system for which a Texas Pollutant Discharge Elimination System (TPDES) permit is held by the city alone or in conjunction with others. Drainage system components, including but not limited to streets, sidewalks, other dedicated improvements, and supporting rights-of-way, shall not be considered residential or nonresidential property as defined herein.

Impervious surface means any area that has been compacted or covered such that it does not readily absorb water or does not allow water to percolate through to undisturbed underlying soil strata. Surface materials considered impervious shall include, but not be limited to, bricks, pavers, concrete, asphalt, compacted oil-dirt, compacted or decomposed shale, oyster shell, gravel, or granite, and other similar materials. Surface features utilizing such materials and considered impervious shall include, but not be limited to, decks, foundations (whether pier and beam or slab), building roofs, parking and driveway areas, sidewalks, compacted or rolled areas, paved recreation areas, swimming pools, and other features or surfaces that are built or laid on the surface of the land and have the effect of increasing, concentrating, or otherwise altering water runoff so that flows are not readily absorbed.

Initial billing year means the City of Houston's initial billing year for drainage charges, which began on July 1, 2011, and ended on June 30, 2012.

Notification letter means the letter the city mails to a user, informing the user of the drainage charge the user shall be billed. The notification letter will also inform the user of the frequency of billing for drainage charges and the amount per bill due the city, based on the number of billing cycles per year. Changes to the drainage charge caused by changes in the square footage of impervious surface or otherwise may prompt a new notification letter.

Nonresidential property means any property that is not classified as residential under this article.

Open ditch drainage means drainage primarily removed from a benefitted property by use of an open ditch or ditches.

Parcel means one or more lots or tracts of land, or portions of lots or tracts.

Public or *private institution of higher education* means a public institution of higher education as defined by Section 61.003 of the Texas Education Code or a private college or university that issues degrees in the state of Texas and is accredited by a recognized accrediting agency as defined by Section 61.003 of the Texas Education Code.

Public utility means drainage service that is regularly provided by the city through municipal property dedicated to providing such service to the users of benefitted property within the service area, and that is based on an established schedule of charges, the use of police power to implement the service, and nondiscriminatory, reasonable, and equitable terms as provided under this article.

Record review panel means a panel of three hearing examiners that, upon a user's request, conducts a record review of a hearing examiner's decision pursuant to section 47-826 of this Code.

Religious organization means a religious organization exempt from taxation pursuant to the current provisions of Section 11.20 of the Texas Tax Code.

Residential property means any property upon which two or fewer single family residential units have or had been constructed or placed, including manufactured homes.

School district means any independent school district, as constituted by the laws of this state, located wholly or partly within the service area.

Service area for the drainage system, or drainage service area, means the corporate limits of the City of Houston, as those corporate limits are altered from time to time in accordance with state law and the Charter and ordinances of the city. Land annexed for limited purposes shall become part of the service area upon annexation for full purposes.

State agency means an administrative agency of the State of Texas; for the purposes of this article, state agency shall not include counties, special districts, or independent school districts.

User means the person or entity who owns or occupies a benefitted property.

Wholly sufficient and privately owned drainage system means land owned and operated by a person or entity other than the city's drainage utility system, the drainage of which does not discharge into a street, ditch, culvert, creek, river, slough, or other channel that is a part of the city's drainage system.

(Ord. No. 2011-254, § 2, 4-6-2011; Ord. No. 2014-336, §§ 3—5, 4-23-2014; Ord. No. 2018-11, §§ 49, 50, 1-10-2018)

Sec. 47-803. Creation of municipal drainage utility.

In the interest of public health and safety and a more efficient and economic operation of drainage facilities of the city, a municipal drainage utility system is created, which shall be a public utility. The public utility is created in accordance with the authority of the city as a home rule city pursuant to Article XI, Section 5 of the Texas Constitution; in accordance with Subchapter C of Chapter 552 of the Texas Local Government Code (the Municipal Drainage Utility Systems Act); and in accordance with Section 22 of Article IX of the City Charter. The provisions of Chapter 552, Subchapter C of the Texas Local Government Code, as amended, which are adopted and incorporated into this article by reference; the City Charter; this article; and any other provisions of this Code relating to drainage, shall govern the operation of the utility. The city shall have full authority to operate the municipal drainage utility system; such authority is delegated to the director. Drainage service will

be offered on nondiscriminatory, reasonable, and equitable terms within the drainage service area. (Ord. No. 2011-254, § 2, 4-6-2011; Ord. No. 2014-336, § 6, 4-23-2014)

Sec. 47-804. Dedication of assets to drainage utility system.

Existing City of Houston drainage facilities, including all real, personal, or mixed property, materials and supplies are incorporated into the

drainage utility system as permitted by section 552.046 of the Texas Local Government Code, as amended.
(Ord. No. 2011-254, § 2, 4-6-2011; Ord. No. 2014-336, § 7, 4-23-2014)

Sec. 47-805. Administration and operation of municipal drainage services.

(a) The director shall be responsible for administering this article and operating the drainage system including, but not limited to, interpreting and construing this article's provisions to correct any defect, supply any omission, and reconcile any inconsistency; enacting any procedures or policies necessary for the administration of the drainage system and the drainage charges, including establishing and implementing procedures for verification and correction of drainage charges and for appeals; developing maintenance and improvement programs; establishing drainage criteria and standards for operation of the drainage system; and determining which properties are benefitted or exempt, in accordance with and subject to the provisions of this article. The director's authority under this article shall be exercised in a manner and to the extent that the director considers the most expedient, in the best interests of the city, and in accordance with the provisions of this article.

(b) Calculation of impervious surface shall be adjusted by the director based on utilization of approved stormwater management techniques on the benefitted property. Any approved management techniques are to be identified and described in detail by the director and the information made readily available to the public.
(Ord. No. 2011-254, § 2, 4-6-2011; Ord. No. 2014-336, § 7, 4-23-2014)

Secs. 47-806—47-820. Reserved.

DIVISION 2. FUNDING

Sec. 47-821. Management of utility funds.

All drainage charges collected by the city beginning July 1, 2011, and such other monies as may be available to the city for the purpose of drainage shall be used exclusively for creation, operation, planning, engineering, inspection, construction, repair, maintenance, improvement, reconstruction, administration and other reasonable and customary expenses associated with the cost of service to provide drainage services within the service area. The income derived from the operation of municipal drainage services shall be maintained in accordance with Section 552.049 of the Texas Local Government Code and Section 22 of Article IX of the City Charter.
(Ord. No. 2011-254, § 2, 4-6-2011)

Sec. 47-822. Drainage charge established; exemptions.

(a) To recover the city's cost of service to provide drainage to benefitted properties, annual drainage charges calculated as provided herein are hereby imposed on all parcels of real property within the drainage service area for which drainage service is made available under this article, save and except for those properties exempted from the payment of drainage charges as provided herein.

(b) The rate applicable to each square foot of impervious surface of a benefitted property shall be determined on the basis of whether the land use of the benefitted property is classified as residential or non-residential. In addition, the rate applicable to a residential property shall be determined on the basis of whether the drainage system for the property is curb and gutter drainage or open ditch drainage.

(c) All drainage charges shall be calculated by multiplying the appropriate rate per square foot of impervious surface as specified in the city fee schedule by the total area in square feet of impervious surface on each benefitted property.

(d) The area of impervious surface on each benefitted property shall be determined on the basis of property inspections, appraisal district data, and/or the most current digital map data associated with tax plats and assessment rolls or other similar reliable data as shall be determined by the director.

(e) In the event a residential property is served by curb and gutter drainage on one or more sides and by open ditch drainage on one or more sides,

the appropriate rate shall be determined by the street address for the property and the drainage system that corresponds to that side of the property.

(f) The following are exempt from imposition of a drainage charge:

(1) Properties appraised for use as, and designated as, qualified agricultural use property by the respective county appraisal district where the property is located;

(2) Properties served exclusively by a properly constructed and maintained wholly sufficient and privately owned drainage system;

(3) State agencies;

(4) Any public or private institution of higher education;

(5) Any impervious surface owned by a school district as of April 6, 2011;

(6) Any impervious surface owned by a religious organization that is located on property exempt from taxation pursuant to Section 11.20, Tax Code as of April 6, 2011;

(7) County-exempt property.

(Ord. No. 2011-254, § 2, 4-6-2011; Ord. No. 2011-1168, § 13, 12-14-2011; Ord. No. 2014-336, §§ 8, 9, 4-23-2014)

Sec. 47-823. Review and adjustment of drainage rates.

The drainage rates established herein shall not be increased by city council for a minimum of ten years from April 6, 2011; provided, however, that such limitations shall not be applicable when a rate increase is necessitated by the enactment of any state law that directly and negatively impacts the collection of drainage charges under the existing rate structure. Save and except for any rate increase prompted by the enactment of state law, approval of any rate increase shall require a super majority vote of ⅔ of the members of city council. The director shall on a regular basis review available data to verify the amount of impervious surface for benefitted property, and will make adjustments where appropriate to the calculations of the square footage of impervious surface for purposes of determining the drainage charge for benefitted property.

(Ord. No. 2011-254, § 2, 4-6-2011)

Sec. 47-824. Verification and correction.

(a) *Establishing a system for verification and correction.* The director shall establish and implement a system of verification and correction of drainage charges for each property subject to the drainage charges established by this article. The user requesting a verification and correction must use either the city's officially-designated internet link (available on the city's website specifically for such purpose) or a form provided by the city with the notification letter and mailed to the address shown in the notification letter. As a condition of requesting verification and correction, the user shall grant the city reasonable access to the property for the city to independently verify on-site information. The following may be reviewed under the process described in this section:

(1) Ownership of the property;

(2) Whether the property is benefitted as defined in section 47-801 of this Code; and

(3) The amount of surface on a particular property determined to be impervious.

(b) *Documentation required.* The director may require the user to support the user's claim that the city's determination regarding the property is in error. The city's review will be based on documentation provided to the city by the user and on information available to the city. Required documentation shall be forwarded by the user either electronically or in writing. Any documentation submitted to the city for verification and correction shall also include an affidavit in a form approved by the city attorney whereby the user shall sign and verify under penalty of law that any document the user is submitting to the city is true and correct. The department shall provide a special affidavit form to every user along with the letter of notification.

Based on documentation submitted by the user and information available to the city in its files, in

databases, and from site visits, the city shall, where warranted, adjust the drainage charge accordingly.

(1) *Property ownership.* A user's request shall include documents demonstrating ownership such as titles, deeds, leases and other similar legal documents.

(2) *Benefitted property.* A user's request shall include documents demonstrating:

a. Whether the boundaries of the property lie outside the corporate limits of the city; or

b. That a particular exemption claimed applies to the property.

(3) *Amount of impervious surface.* A user's request shall include documentation demonstrating the user's calculation of impervious surface and shall be forwarded after receipt of the notification letter mailed to the user by the city that informed the user of:

a. The square footage of impervious surface on the benefitted property;

b. The rate applicable to each square foot of impervious area; and

c. The calculated drainage charge resulting from: the multiplication of the user's square footage of impervious surface by the applicable rate.

To be eligible for verification and correction of the amount of impervious surface, any request must at a minimum provide information sufficient to support a correction in the annual drainage charge to the user's favor of at least two percent or $3.00, whichever is greater.

(c) *Initial billing year.* If any charge paid by the user during the initial billing year and prior to an adjustment exceeds the amount of the adjusted charge, the cumulative total of such corrections due the user for payments made prior to an adjustment was credited to the user's account and shall be applied against the user's future charges due the city.

If any charge paid by the user in the city's initial billing year and prior to an adjustment falls short of the amount of the adjusted charge, the cumulative total of such corrections due the city for payments made prior to such adjustment shall be debited to the user's account and shall be applied against the user's future charges due the city.

The facts and information a user provides in a request to the city for verification and correction shall not form the basis for any subsequent request for verification and correction.

(d) *Request by user for verification and correction of changed impervious surface.* If the user's amount of impervious surface changes, and the user notifies the city of the change electronically or in writing and requests the city to verify and correct the drainage charges, the request will be handled as an initial request for verification and correction as provided in section 47-824(c) of this Code. Any adjustment in the drainage charge as a result of the request will become effective the first day of the month following the date of the user's request.

(e) *Request by user for verification and correction of change to drainage charge.* The city may periodically review any properties within the service area, shall revise the city's database to reflect any changes that affect the area of the impervious surface, and shall forward a notification letter to the user advising the user of such change and the resulting change in the drainage charge. Any request for verification and correction of drainage charges resulting from changes to or updated information about the impervious surface as identified by the city that are added by the city to the city's drainage utility database for any year following the city's initial billing year will be handled as an initial request for verification and correction, as provided in section 47-824(c) of this Code.

(f) *Results of verification and correction.* Based on documentation submitted by the user and information available to the city in its files, in databases, and from site visits, the city may make a determination regarding: ownership of the property, whether a property is benefitted, whether an exemption applies, or whether to increase or

decrease the figure for the amount of impervious surface on the property. The city shall adjust the drainage charge accordingly.

Editor's note—Ord. No. 2014-336, § 10, adopted April 23, 2014, set out two subsection (e)'s. At the direction of the City, the 2nd subsection (e) has been renumbered to subsection (f).

The city shall notify the user of the outcome of the city's verification and correction process using the same address and the same medium by which the request was tendered (whether in writing via the U.S. Postal Service or electronically), including advising the user of the adjustment, if any, made to the drainage charge.

(Ord. No. 2014-336, § 10, 4-23-2014)

Editor's note—Ord. No. 2014-336, § 10, 4-23-2014, replaced § 47-824 to read as herein set out. Former § 47-824 pertained to verification, correction and appeal and derived from Ord. No. 2011-54, § 2, 4-6-2011.

Sec. 47-825. Appeals.

(a) *Appeals.*In the event a user disagrees with the outcome of the verification and correction process, the user or the user's designated representative may request an appeal. Participation by a user in the verification and correction process as described herein and filing of a timely request for appeal shall be prerequisites to any appeal.

(b) The director shall designate drainage hearing examiners who will be independent of the operation of the city's drainage system to consider appeals as to whether or not a drainage charge was correctly applied to the property. City council is to review and approve the independent process utilized by the director for this appeal process.

(c) Any request for such an appeal shall be submitted by the user either online through a specifically-designated link on the city's website, or in writing, no later than 15 days following the date of the city's notification letter advising the user of the outcome of the verification and correction process.

(d) The user, or the user's designated representative, may select a date and time for the appeal hearing from those available dates shown on the department's online calendar, or if the user does not have access to said calendar, the user shall contact the department's Drainage Call Center to schedule an appeal. The appeal hearings shall be conducted under rules consistent with the nature of the proceedings; provided, however, that the following rules shall apply to such hearings:

(1) The user has the right to appear in person or through an attorney;

(2) The department and the user may present witnesses and evidence;

(3) The department and the user may cross-examine witnesses;

(4) The user may examine the information relied on by the department in reaching a determination in the verification and correction.

(e) Based on the outcome of the appeal, the drainage charge shall be adjusted accordingly or remain unchanged, and if appropriate, a credit or debit shall be applied to the user's account. The user shall be notified of the outcome of the appeal using the same address and the same medium by which the appeal was tendered (whether in writing via the U.S. Postal Service or electronically).

(f) The decision of the hearing examiner following appeal shall be final unless the user or the user's representative files a timely request for a record review.

(Ord. No. 2014-336, § 10, 4-23-2014)

Sec. 47-826. Record review.

(a) In the event a user disagrees with the decision of the hearing examiner, the user or the user's designated representative may request a record review of the hearing examiner's decision. The request for a record review shall be submitted by the user online through a specially-designated link on the department's website or in writing to the department's Utility Customer Service, P.O. Box 4863, Houston, TX 77210-4863, no later than 15 business days following the date of the city's letter advising the user of the hearing examiner's decision.

(b) The record review will be conducted by a three-member review panel of hearing examiners and shall not include the hearing examiner who made the decision on the appeal. The panel's

record review is limited to the information considered by the hearing examiner during the appeal.

(c) The city shall notify the user of the outcome of the panel's record review using the same address and the same medium by which the request was tendered (whether in writing via the U.S. Postal Service or electronically), including advising the user of the adjustment, if any, made to the drainage charge.

(d) The decision of the record review panel is final.
(Ord. No. 2014-336, § 10, 4-23-2014)

Secs. 47-826—47-840. Reserved.

DIVISION 3. BILLING

Sec. 47-841. Billing and payment.

(a) For users billed by the city for other utility charges, such as water and/or sewer service, the city may bill for drainage charges, identified separately, in the same bill. Otherwise the city shall establish new drainage billing accounts.

(b) An initial notification letter advising the user of the imposition of a drainage charge was mailed to each user prior to the initial billing year. After the initial billing year, notices will be sent when changes to drainage charges occur. The notice, as well as the bill itself, shall state the drainage charge that will be billed to the user and that failure of a user to pay the charges may result in the discontinuance of city drainage, water and sewer services.

(c) Bills for drainage charges shall reflect the annual charge imposed on a benefitted property divided by the user's number of utility billing cycles per year, e.g., if the city is billing a user for drainage on a monthly basis, the user's monthly drainage charge will equal the total annual drainage charge imposed on the property divided by 12 billing cycles per year."

(d) Bills shall be considered as received by the user, whether actually received or not, when deposited by the city in the United States mail, postage prepaid, addressed to the user's last known billing address or when electronically transmitted to the user's last known electronic address.

(e) Payment of bills shall be due when the bill is rendered.
(Ord. No. 2011-254, § 2, 4-6-2011; Ord. No. 2014-336, § 11 4-23-2014)

Sec. 47-842. Delinquent charges and penalties.

(a) Any drainage charge due hereunder that is not paid when due may subject the user to late charges and reconnection fees authorized under the provisions of this Code relating to water and sewer charges.

(b) Any drainage charge due hereunder that is not paid when due may subject the user to discontinuance of all utility services provided by the city, including drainage, water and sewer services.

(c) Any drainage charge due hereunder that is not paid when due may be recovered in an action at law by the city, or by any other remedies or penalties provided at law or in Subchapters A and C of Chapter 552 of the Texas Local Government Code, and the provisions of sections 47-70 and 47-136 of this Code relating to termination of service for failure to pay water or sewer charges.

(d) The employees of the city's drainage utility shall have access, at all reasonable times, to any benefitted properties served by the drainage utility for inspection or repair of the drainage system or for the enforcement of the provisions of this article.
(Ord. No. 2011-254, § 2, 4-6-2011; Ord. No. 2014-336, § 12, 4-23-2014)

Sec. 47-843. Determination of payment responsibility.

Under circumstances where there may be more than one user, either multiple tenants and/or multiple owners, the director shall determine the party responsible for payment of city-billed drainage charges as follows:

(1) On parcels where multiple utility accounts may exist and more than one tenant may be held responsible for payment

of drainage charges within a single parcel or group of parcels belonging to the same owner, the director may choose the common owner of the subject property or properties to be the officially-designated user.

(2) Where, within a 12-month period, a rental property has changed tenants two or more times, the director may choose the owner of the property to be the designated user. Such designation shall have no effect on responsibility for payment of water, sewer or solid waste charges.

(3) Where multiple residential owners are grouped into a single association responsible for the payment of collective water or sewer charges, the director may designate the association as the official user for all impervious surfaces within the association's purview, regardless of parcel boundaries.

(Ord. No. 2011-254, § 2, 4-6-2011)

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Sec. 47-844. Applicability of the W.A.T.E.R. Fund.

Beginning August 1, 2012, and on such date for each billing year thereafter, to the extent drainage charges collected under this article for the previous billing year exceed $125 million, the amount of any excess up to, but no more than $500,000.00, shall annually be transferred to the W.A.T.E.R. Fund (as such Fund has been established by section 36-61 of this Code), to be available for use in the payment of drainage bills; provided, however, the cumulative amount in the W.A.T.E.R. Fund for payment of drainage charges on such date for each billing year shall not exceed $500,000.00. Monies accumulated in the W.A.T.E.R. Fund as provided herein shall be administered in accordance with the applicable provisions of Chapters 36 and 47 of this Code, but such funds shall be used exclusively for drainage bills.
(Ord. No. 2011-254, § 2, 4-6-2011)

Secs. 47-845—47-860. Reserved.

DIVISION 4. USE OF FUNDS

Sec. 47-861. Oversight committee.

There shall be created an oversight committee of nine members, four members to be appointed by the mayor, including the committee chair, and five members to be appointed by city council, whose members shall advise the city on drainage project priorities and process. The committee will consist of individuals with significant backgrounds in community development, infrastructure assessments, and other appropriate qualifications. Contractors, engineers or firms participating in any city drainage system project will be ineligible to serve on the committee. Within 12 months following the appointment of the committee, the committee shall recommend to city council principles and guidelines by which future drainage projects shall be selected, and shall present to city council a proposed ten-year plan identifying drainage and street improvements recommended for construction with funding collected by the city pursuant to this article. Following presentment of said plan to city council, and after any amendments thereof by city council have been considered, the council shall approve the plan for implementation. The plan may thereafter be reviewed periodically by the city council and may be amended as appropriate. Following approval of the plan by city council, the plan shall be placed on the City's website or other public location for public viewing.

The oversight committee shall be in place by July 1, 2011.
(Ord. No. 2011-254, § 2, 4-6-2011)

Sec. 47-862. No assumed liability.

Floods from drainage and storm water runoff may occasionally occur that exceed the capacity of the drainage system maintained and financed with the drainage charges. In addition, surface water stagnation and pollution arising from nonpoint source runoff may occasionally occur that exceed the capacity of the drainage system maintained and financed with drainage charges. This article does not imply that properties subject to charges shall always be free from flooding or flood damage, surface water stagnation or nonpoint source pollution or that all flood control and water treatment projects to control the quantity and quality of runoff can be constructed effectively. Nothing whatsoever in this article should be construed as creating or be deemed to create additional duties on the part of the city or to hold the city liable for any damages incurred in a flood or from adverse water quality due to drainage runoff. Nothing in this article shall be deemed to waive the city's immunities under state law or to reduce the need or necessity for flood insurance by property owners within or without the city.
(Ord. No. 2011-254, § 2, 4-6-2011)

Secs. 47-863—47-880. Reserved.

ARTICLE XV. DRAINAGE IMPACT FEES

DIVISION 1. GENERAL PROVISIONS

Sec. 47-881. Purpose.

This article is intended to ensure the provision of adequate public drainage facilities to serve new development in the city by requiring each such

development to pay its pro rata share of the costs of drainage capital improvements necessitated by and attributable to such new development.
(Ord. No. 2013-281, § 5, 4-3-2013)

Sec. 47-882. Authority.

This article is adopted pursuant to Chapter 395 of the Texas Local Government Code and pursuant to the Houston City Charter, Article IX, Section 22. The provisions of this article shall not be construed to limit the power of the city to utilize other methods authorized under state law or pursuant to other city powers to accomplish the purposes set forth herein, either in substitution for or in conjunction with this article.
(Ord. No. 2013-281, § 5, 4-3-2013)

Sec. 47-883. Definitions.

As used in this article, the following terms and phrases shall have the following meanings:

Assessment means the determination of the amount of the service unit rate that may be imposed on new development pursuant to this article as determined at the time specified in section 47-891 of this Code.

Building permit means:

a. With respect to buildings or premises within the corporate limits of the city, the general permit required by the Construction Code; or

b. With respect to buildings or premises outside the corporate limits of the city or for which a general permit under the Construction Code is not required, a plumbing permit under the Construction Code or under section 47-14 of this Code.

Credit means a certain number of service units attributable to an improved lot with impervious surface for purposes of article XIV of this chapter.

Drainage means water transported by or detained in features and improvements, whether natural or man-made, such as streets, curbs, bridges, catch basins, channels, conduits, creeks, culverts, detention ponds, ditches, draws, flumes, pipes, pumps, sloughs, treatment works, and any appurtenances, that use force or gravity to draw off surface water from land, carry the water away, collect, store, or treat the water, or divert the water into natural or man-made watercourses.

Drainage benefit area means an area within the city's extraterritorial jurisdiction that may reasonably connect to the city's drainage system.

Drainage capital improvement or *drainage impact fee improvement* means a drainage facility with a life expectancy of three or more years, to be owned or operated by or on behalf of the city.

Drainage capital improvement plan or *drainage impact fee improvement plan* means the plan adopted by city council at least every ten years, as may be amended from time to time, identifying the drainage facilities and their associated costs, necessitated by and attributable to new development, to be financed in whole or in part through drainage impact fees imposed and collected pursuant to this article.

Drainage facility means an improvement to land designed or utilized, in whole or part, for the purpose of collecting, storing, pumping or conveying drainage, including an existing facility, the capacity of which has been expanded to service new development. Drainage facility includes land, roads, easements or structures and all appurtenances associated with such facilities.

Drainage impact fee means a fee imposed by city council on new development to fund or reimburse the costs of drainage capital improvements necessitated by and attributable to such new development. Drainage impact fees do not include requirements for the dedication or construction of rights-of-way or easements for such facilities, nor payment by persons receiving service from a drainage facility of connection charges imposed to reimburse a property owner for the costs of extending such drainage facility.

Drainage service area means an area designated as such by city council within a certain watershed boundary located within the corporate limits of the city.

Drainage system means the drainage and drainage facilities owned or controlled in whole or in part by the city, including provisions for additions to the system. Drainage system components, including but not limited to streets, sidewalks, other dedicated improvements, and supporting rights-of-way shall not be considered residential or nonresidential property as defined herein.

Impervious surface means any area that has been compacted or covered such that it does not readily absorb water or does not allow water to percolate through to undisturbed underlying soil strata. Surface materials considered impervious shall include, but not be limited to, bricks, pavers, concrete, asphalt, compacted oil-dirt, compacted or decomposed shale, oyster shell, gravel, or granite, and other similar materials. Surface features utilizing such materials and considered impervious shall include, but not be limited to, decks, foundations (whether pier and beam or slab), building roofs, parking and driveway areas, sidewalks, compacted or rolled areas, paved recreation areas, swimming pools, and other features or surfaces that are built or laid on the surface of the land and have the effect of increasing, concentrating, or otherwise altering water runoff so that flows are not readily absorbed.

Improved lot means a lot or a tract of land on which the city has recorded impervious surface as determined under Article XIV of this chapter.

New development means a project involving the construction, reconstruction, redevelopment, conversion, structural alteration, relocation or enlargement of any structure, or any use or extension of the use of land, that requires either the issuance of a building permit or connection to the city's drainage system and has not been exempted from compliance by this article or state law.

Offset means the amount of the reduction of a drainage impact fee, determined under this article or pursuant to administrative guidelines, that is equal to the value of a drainage facility or portion thereof included in the drainage impact fee improvement plan and is constructed or financed by a property owner without reimbursement from other city funds.

Plat means the plan or map of a subdivision to be filed for record with the county clerk in the county in which the property is located. Plat includes a replat, but excludes a development plat.

Property owner means the owner in fee of a tract or parcel of land upon which new development is to be located, or his authorized representative.

Service unit means 1,000 square feet of impervious surface rounded to the nearest ten square feet for purposes of impact fee calculation.

Service unit rate means the drainage impact fee that the city charges per service unit within a certain drainage service area.

(Ord. No. 2013-281, § 5, 4-3-2013)

Sec. 47-884. Drainage impact fees, in general.

(a) Except as otherwise provided herein, each new development within any of the city's drainage service areas shall pay a drainage impact fee for drainage facilities necessitated by and attributable to that development as provided in division 2 of this article. Drainage impact fees shall be assessed against and collected from new development on the basis of service units and shall vary depending on the drainage service area in which the property is located.

(b) The maximum drainage impact fee per service unit assessed against a new development is provided in the drainage impact fee improvement plan. The service unit rates shall never exceed the maximum drainage impact fee per service unit.

(c) The service unit rates shall be published in the city fee schedule and shall be collected from new development as stated in this article. On July 1 of each year beginning on July 1, 2018, and to the extent allowed by subsection (b), the director shall cause the service unit rates in the city fee schedule to be adjusted by an amount equal to the percentage increase (if any) in the designated

index for the preceding calendar year multiplied by the service unit rates. The director shall annually calculate the effective service unit rates for each drainage service area on or before June 1 of each year and make all calculations available in his or her office upon request for public inspection.

For purposes of this subsection, the term designated index shall mean the United States Producers Price Index for All Commodities (1982=100), as published by the Bureau of Labor Statistics, U.S. Department of Labor. If such index is subject to adjustment later, then the city shall use the adjusted index, together with any correlation factor necessary to relate the later adjusted index to the earlier index, as published by the entity publishing the index, or if such publication is discontinued, the designated index shall then refer to comparable statistics on changes in the cost of living for urban consumers as the same may be computed and published by an agency of the United States or by a responsible financial periodical of recognized authority, which agency or periodical shall be selected by the city.

(d) City council may amend drainage impact fees to be collected from new developments without amending the service unit rates or drainage impact fee improvement plan adopted herein, as long as the impact fees to be collected do not exceed the maximum drainage impact fees per service unit that may be assessed for such facilities.
(Ord. No. 2013-281, § 5, 4-3-2013)

Sec. 47-885. Drainage service areas

(a) The department shall keep, update, and make available to the public maps of the drainage service areas. The drainage service areas may be amended from time to time as part of a new or amended drainage impact fee improvement plan. When the city's corporate limits are altered by general purpose annexation to include land within a natural watershed boundary, the land so annexed shall become part of a drainage service area.

(b) At the time of assessment, the utility official shall determine the appropriate drainage service area or areas for the new development based on the developer's application and the map(s) attached to the most recent land use assumptions adopted by city council.
(Ord. No. 2013-281, § 5, 4-3-2013)

Secs. 47-886—47-890. Reserved.

DIVISION 2. ASSESSMENT, COLLECTION AND COMPUTATION OF DRAINAGE IMPACT FEES

Sec. 47-891. Assessment of fees.

Assessment of drainage impact fees against new development shall be based on the drainage impact fee per service unit within the applicable drainage service area, established by city council. Except as otherwise provided herein, the utility official shall assess a drainage impact fee on any building permit application for new development submitted after April 3,[1] 2014, at the time the building permit application is submitted.
(Ord. No. 2013-281, § 5, 4-3-2013)

Sec. 47-892. Time of fee collection.

Drainage impact fees shall be collected at or before the time of issuance of building permits.
(Ord. No. 2013-281, § 5, 4-3-2013)

Sec. 47-893. Computation of fees.

The department shall compute the drainage impact fees in the following manner:

(1) Except as otherwise provided in this section, the drainage impact fee shall be calculated by multiplying the applicable service unit rate by the number of service units generated by the new development, rounded to the nearest hundredth.

(2) The drainage impact fee for new development on an improved lot shall be reduced by a credit determined by the utility official to be equal to the existing impervious surface on which drainage fees are being paid at the time a building permit application is submitted.

(3) Development of low and moderate cost single family housing is exempt from payment of impact fees. To qualify for this exemption, a house must be a single family residence located within the city limits having an initial purchase price as certified by the property owner that does not exceed the latest available 12-month listing for median price single family housing in the city as published by the Real Estate Center at Texas A&M University. In the event the initial purchase price exceeds this amount, the property owner making the certification shall pay to the city the full amount of the impact fee as calculated under this section. If publication of the median price for single family housing is discontinued by the Real Estate Center at the Texas A & M University, the mayor is authorized to select another publication that lists the median price of single family houses in the city.

(4) If the new development involves the alteration of existing structures, new impervious surface created by such altered structure or structures shall be converted to additional service units. If the impervious surface for the new development exceeds the existing impervious surface, the amount of the drainage impact fee due shall be the number of additional service units, rounded to the nearest hundredth, multiplied by the drainage impact fee per service unit then in effect. If the impervious surface for the new development is less than or equal to the existing impervious surface, no impact fee is due.

(5) The amount of each drainage impact fee due shall be reduced by any allowable adjustments in the manner provided in section 47-894 of this Code.

(6) If the property owner proposes to increase the number of service units for development following payment of the drainage impact fee, the additional drainage impact fees collected for such new service units shall be determined in the same manner as provided in this section.

(Ord. No. 2013-281, § 5, 4-3-2013)

Sec. 47-894. Determination of service units.

(a) The utility official shall determine the number of service units generated from a new development based on the information contained in the building permit application along with digital map data associated with tax plats and assessment rolls or other similar, reliable data from independent sources authorized by the director.

(b) If the utility official determines that sufficient information is provided along with the building permit application to demonstrate that no drainage will ever flow off all or a significant portion of the property, the director may approve an adjustment in the number of service units. Before an adjustment is made, the property owner shall covenant not to change the property to allow drainage to flow off the property without first obtaining a building permit and paying impact fees on any new development. The director may develop guidelines to determine the amount of drainage that will flow off the property and what constitutes a significant portion of the property.
(Ord. No. 2013-281, § 5, 4-3-2013)

Sec. 47-895. Offsets against drainage impact fees.

(a) A property owner may receive an offset pursuant to a development agreement approved by the city, if

(1) The property owner constructs or finances a drainage facility included in the drainage impact fee improvement plan;

(2) The property owner does not receive reimbursement for the drainage facility constructed or financed by the property owner;

(3) The drainage facility serves only the city drainage system; and

(4) The offset does not include on-site drainage for the property.

(b) A drainage facility constructed for an offset pursuant to a development agreement must be constructed within the drainage service area in which the property is located. The offset may be associated with the plat of the property that is to be served by the constructed or financed drainage facility. The amount of the offset shall be deter-

mined pursuant to rules established in this section and any administrative guidelines promulgated by the director. In no event shall the offset allowable under this subsection exceed the amount of the drainage impact fees due.

(c) Any offset associated with new development shall be applied against the drainage impact fee due at the time that the fee for the building permit is collected.

(d) Any offset provided under this section shall have no effect on on-site drainage requirements associated with the property.
(Ord. No. 2013-281, § 5, 4-3-2013)

Sec. 47-896. Development agreements in drainage benefit areas.

If the director determines that adequate capacity exists within the drainage system, a property owner within a drainage benefit area may voluntarily enter into a development agreement to connect to the drainage system. The director may authorize a development agreement to allow the property owner to construct facilities consistent with section 47-895 of this Code, and any associated rules and guidelines, or pay charges equivalent to drainage impact fees. The drainage impact fee improvement plan, as amended in accordance with Chapter 395 of the Local Government Code, shall account for the connections pursuant to development agreements under this section and shall include projections for voluntary connections to the drainage system from the drainage benefit area.
(Ord. No. 2013-281, § 5, 4-3-2013)

Secs. 47-897—47-900. Reserved.

DIVISION 3. ADMINISTRATION

Sec. 47-901. Accounting.

(a) All drainage impact fees collected within a certain drainage service area shall be deposited in a dedicated fund to which interest is allocated in accordance with Section 22, Article IV of the City Charter. All such amounts, together with all interest earned thereon, shall be used solely for the purposes set forth in subsection (b).

(b) The drainage impact fees collected pursuant to this article shall be used to finance or recoup the costs of any drainage impact fee improvements identified in the drainage impact fee improvement plan for the applicable drainage service area, including but not limited to the construction contract price, surveying and engineering fees, land acquisition costs (including land purchases, court awards and costs, attorneys' fees, and expert witness fees) and fees paid to an independent qualified engineer or financial consultant for preparing or updating the drainage impact fee improvement plan.

(c) Disbursement of funds shall be authorized by the department at such times as are reasonably necessary to carry out the purposes intended by this article; provided, however, that funds shall be expended within a reasonable period of time, but not to exceed ten years from the date drainage impact fees are deposited in the fund.

(d) An owner of property for which a drainage impact fee has been paid is entitled to a refund for all or a portion of the fee in the following circumstances:

(1) The city denies service to the property on which the impact fees were paid; and

a. The city has the drainage facilities to provide service to the property;

b. The city has not constructed the drainage facilities within five years of the date the impact fees were collected; or

c. The city has not spent the impact fees within ten years of the date the impact fees were collected.

(2) After receiving a completed application for an impact fee refund, the department shall issue a refund to the record property owner. The refund shall include interest calculated from the date of collection to the date of refund at the statutory rate provided in Texas Local Government Code Section 395.024, or its successor statute. A drainage impact fee shall be considered expended on a first-in, first-out basis.

(3) If a refund is due pursuant to paragraph (2), the department shall divide the differ-

ence between the amount of expenditures and the amount of the fees collected by the total number of service units for which drainage impact fees have been paid within the service area for the period to determine the refund due per service unit. The refund to the owner shall be calculated by:

a. Multiplying the refund due per service unit by the number of service units of the development for which the fee was paid; and

b. Determining interest due based on the amount calculated under subsection (d)(3)a.

(4) Upon completion of all the drainage facilities identified in the drainage impact fee improvement plan for the drainage service area, the department shall recalculate the drainage impact fee per service unit using the actual costs for the drainage facilities. If the maximum drainage impact fee per service unit based upon actual cost is less than the drainage impact fee per service unit paid, the city shall refund the difference if such difference exceeds the drainage impact fee paid by more than ten percent. If the difference is less than ten percent, no refund shall be due. Refund to the record owner shall be calculated by:

a. Multiplying such difference by the number of service units of the development for which the drainage impact fee was paid; and

b. Determining interest due based on the amount calculated under subsection (d)(4)a.

(e) The department shall establish adequate financial and accounting controls to ensure that drainage impact fees disbursed from the fund are utilized solely for the purposes authorized. The department shall maintain and keep financial records for drainage impact fees that shall show the source and disbursement of all fees collected or expended within a certain drainage service area. The records of the fund into which drainage impact fees are deposited shall be open for public inspection and copying during ordinary business hours.

(f) Nothing in this article shall prevent the city from paying all or part of the drainage impact fees due for a new development pursuant to criteria adopted by city council.
(Ord. No. 2013-281, § 5, 4-3-2013)

Sec. 47-902. Impact fee appeals.

(a) The property owner or applicant for a new development may appeal the following administrative decisions to an administrative hearing official appointed by the director:

(1) The applicability of a drainage impact fee to the development;

(2) The amount of the drainage impact fee due;

(3) The determination of service units;

(4) The applicability of any credit or offset to the development;

(5) The amount of any credit or offset; or

(6) The amount of a refund due, if any.

(b) The burden of proof shall be upon the applicant to demonstrate that the administrative decision was not made in accordance with this article or applicable state law.

(c) The applicant shall file a written notice of appeal with the director within 30 days following the date of the decision from which an appeal is made. If the notice of appeal is accompanied by a payment or other sufficient security satisfactory to the department in an amount equal to the original determination of the drainage impact fee due, the development application may be processed while the appeal is pending. In addition to any other amount collected, the director shall collect from the applicant an administrative fee in accordance with section 1-14 before considering the applicant's appeal.
(Ord. No. 2013-281, § 5, 4-3-2013)

Sec. 47-903. Relief procedures.

(a) Any person who has paid a drainage impact fee, or an owner of land for which a drainage impact fee has been paid, may petition city council to determine whether any duty required by this article or by chapter 395 of the Texas Local Government Code has not been performed within the time so prescribed. The petition shall be in writing and delivered to the city secretary and shall state the nature of the unperformed duties and request that the duties be performed within 60 days of the request. If city council determines that the performance of the duty is required pursuant to this article and is late in being performed, it shall cause performance of the duty to commence within 60 days of the date of the request and to continue until completion. This subsection shall not apply to matters subject to appeal pursuant to section 47-902 of this Code.

(b) City council may grant a variance from any requirement of this article, upon written request by the property owner subject to the article following a public hearing, but only upon finding that a strict application of such requirement would, when regarded as a whole, result in confiscation of the property.

(c) If city council grants a variance to the amount of the drainage impact fee due for a new development under this section, it shall cause to be appropriated from other city funds the amount of the reduction in the drainage impact fee to the fund for the drainage service area in which the property is located.
(Ord. No. 2013-281, § 5, 4-3-2013)

Sec. 47-904. Storm water drainage letters.

(a) A storm water drainage letter associated with a new development shall automatically expire unless the developer makes progress towards completion of the new development within two years after the developer obtains the storm water drainage letter. If prior to expiration, the developer presents the utility official with evidence of progress towards completion of the project, then the developer shall have an additional two years to complete the project or make additional progress towards completion of the project.

(b) Progress towards completion of the project shall consist of one or more of the following:

(1) Payment or other provision of consideration authorized under this article for drainage impact fees on the new development;

(2) Execution of a performance bond, naming the city as obligee, for public infrastructure associated with the new development;

(3) Provision to the utility official of a copy of a substantially complete application necessary for completion of the new development that the developer has filed and actively pursued with the city or any local, state, or federal agency of competent jurisdiction; or

(4) Presentation to the utility official of documentation conclusively showing that the developer has spent, in aggregate, more than five percent of the most recent appraised market value of the property associated with the new development towards the development of infrastructure facilities.

(Ord. No. 2013-281, § 5, 4-3-2013)

ARTICLES XVI—XX. RESERVED

Secs. 47-905—47-1000. Reserved.

ARTICLE XXI. TABLES, CHARTS AND DIAGRAMS

Sec. 47-1001. Reserved.

Editor's note—Ord. No. 2010-305, § 10, adopted April 21, 2010, effective June 1, 2010, repealed § 47-1001 in its entirety. Formerly said section pertained to minimum monthly charges for treated water and derived from Code 1968, § 49-52 and subsequent amendatory ordinances.

Sec. 47-1002. Commercial equivalents of service.

The following table is applicable as provided in section 47-123 of this Code:

Type of Commercial Connection	*Units to Measure Contribution*	*Number of Contribution Units to Equal One Commercial Equivalent*
Offices, warehouses machine shops, producers of no process waste, without on premise showers	Total number of on premises employees working, based on 8-hour shifts	16 employees
Offices, warehouses machine shops, producers of no process waste, with on premise showers	Total number of on premise employees working, based on 8-hour shifts	8 employees
Offices, warehouses machine shops, producers of no process waste, without on premise showers	Total number of off premise employees working, based on 8-hour shifts	64 employees
Offices, warehouses machine shops, producers of no process waste, with on premise showers	Total number of off premise employees working, based on 8-hour shifts	32 employees
Offices, warehouses machine shops, producers of no process waste	Total number of employees who reside at their place of work	4 employees
Hospitals, with laundry facilities	Number of beds	1½ beds
Hospitals without laundry facilities	Number of beds	2 beds
Laundries	Pounds of laundry per day	50 pounds
Restaurants	Seating capacity	16 seats
Soda fountain only, without food facilities	Seating capacity	32 seats
Schools, all grades	Number of students, average daily attendance	32 students
Churches and Sunday Schools	Seating capacity	64 seats
Taverns, without food facilities	Seating capacity	32 seats
Skating rinks, theaters, bowling alleys, amusement parks, other entertainment facilities*	Average number of patrons daily, based on number of days facility is open	64 patrons
Tourist courts, motels, hotels, other transient lodging facilities*	Number of rooms	2 rooms

*The number of commercial equivalents for those facilities with restaurants or associated dining facilities to be calculated separately as for "Restaurants" above and added to the number of commercial equivalents calculated for this category.

(Code 1968, § 49-96; Ord. No. 74-221, § 1, 2-6-74; Ord. No. 77-499, § 3, 3-15-77; Ord. No. 82-37, § 2, 1-12-82; Ord. No. 83-1138, § 2, 7-26-83)

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CODE COMPARATIVE TABLE

1968 CODE

This table gives the location within this Code of those sections of the 1968 Code, which are included herein. Sections of the 1968 Code not listed herein have been omitted as repealed, superseded, obsolete, or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

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CODE COMPARATIVE TABLE

ORDINANCES

This table gives the location within this Code of those ordinances adopted since the 1968 Code, as supplemented through October 4, 1967, which are included herein. Ordinances adopted prior to such date were incorporated into the 1968 Code. Ordinances not listed herein have been omitted as repealed, superseded, or not of a general and permanent nature.

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73-1534	8- 8-73	1	2-3
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93-1096	9- 8-93	1		2-259
93-1251	10- 6-93	1	Added	2-2 Rule 1 d.
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93-1267	10-13-93	1	Added	14-168(f)
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			as	10-441—10-444
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		(e)	Rnbd	10-441—10-444
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93-1640	12-22-93	1	Added	6-137(h)
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03-760	8-20-03	1		16-9(1)
03-780	8-27-03	1	Added	10-535
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03-945	10-15-03	1	Added	47-200
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		7	Rpld	11-13(a)(8)
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03-1314	12-23-03	2	Added	28-49
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04-684	6-30-04	1	Added	21-3
04-797	7-28-04	1		16-11
04-798	7-28-04	2	Added	45-451—45-465
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04-844	8-11-04	1	Added	47-50
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04-1013	9-29-04	1		20-161
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05-104	2- 2-05	1		6-1(b)
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05-1271	9-22-05	2		8-101
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05-1401	12-20-05	1	Added	2-284
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06-76	1-25-06	1		28-14
06-255	3- 8-06	2	Added	Ch. 10, Art. XVII, 10-651—10-655
06-263	3-22-06	2	Added	1-6(b)
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06-657	6-21-06	2	Added	15-141, 15-142
06-668	6-21-06	2		46-26(e)
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06-731	6-28-06	2	Rpld	2-326-2-337
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			as	19-22(g), (h)
		9		19-43(a)
		10	Added	19-43(c), (d)
			Rnbd	19-43(c), (d)
			as	19-43(e), (f), 19-43(f)
		11	Added	19-44
		11A		19-1(d)
		11B		19-23(d)
		11C		19-23(g)
08-664	7-23-08	2	Rpld	2-240(c), (d) 2-241
08-665	7-23-08	2	Added	15-151—15-157
07-741	8-20-08	2		47-164(4)
08-743	8-27-08	2		32-261—32-265, 32-271—32-277, 32-281—32-285, 32-291—32-293
08-783	9- 3-08	2		42-1
		3	Added	42-196
08-846	9-24-08	2	Added	26-601—26-606, 26-616—26-620
08-847	9-24-08	2	Added	26-641—26-645, 26-651—26-654, 26-661—26-666
08-848	9-24-08	1		2-2, Rule 1a., e.
		2	Rpld	2-2, Rule 2a.5.
		3		2-2, Rule 2b.
		4		2-2, Rule 3(1st para.)
		5		2-2, Rule 3(3rd & 4th para.)
		6		2-2, Rule 4(1st para.)
		7		2-2, Rule 7.a.
		8		2-2, Rule 8
		9		2-2, Rule 9
		10		2-2, Rule 10(2nd & 3rd para.)
		11		2-2, Rule 11
		12		2-2, Rule 16
		13		2-2, Rule 22
08-893	10- 8-08	2(Exh. A)		12-1—12-7, 12-21—12-24, 12-31—12-39, 12-46—12-53, 12-61—12-64
08-923	10-15-08	2		8-58(b)
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08-968	10-29-08	2	Rpld	45-311—45-319
08-992	11-12-08	2	Rpld	28-37
08-992	11-12-08	3	Added	28-37
08-1052	12- 3-08	2	Added	9-351—9-364, 9-371—9-373, 9-381—9-387, 9-391—9-395, 9-401—9-405,

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		3		14-168(d)
08-1118	12- 3-08	2	Added	41-12
08-1145	12-10-08	2	Added	5-171(a)—(d)
		3		5-174
		4	Added	5-186(c), (d0
		5		44-85(d)
08-1171	12-17-08	2	Dsgnt.	21-15
			as	21-15(a)
			Added	21-15(b)
		4		21-15.1
08-1229	12-30-08	2—4		47-411
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		6		47-417
		7		47-421(c)
		8		47-423(a)
		9	Added	47-423(c)
			Rnbd	47-423(c)
			as	47-423(d)
			Amd	47-423(d)
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		14		47-452(b)
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		16		47-453(b)(2)
		17	Added	47-453(b)(3)
		18	Rpld	47-455
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		23		47-472(b)
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		29	Rpld	47-501(d)
		30		47-502(tit.), 47-502(a)
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09-59	1-28-09	2	Added	Ch. 28, Art. X, 28-301—28-305
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		13	Rpld	7-57(d)
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		16		7-60(c)
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		19	Rpld	7-72
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09-411	5-13-09	2	Rpld	Ch. 46, Art. III, 46-136—46-176
09-425	5-13-09	2		2-2(Rule 12)
		3	Added	7-25(e), (f)
		4		8-57(b)
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09-631	6-30-09	2		8-123(e)
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		5	Added	8-126(g)
		6	Added	8-143(f)
		7		8-192(Intro.)
09-683	7-22-09	1		9-35
09-711	8- 5-09	2		32-261—32-265, 32-271—32-277, 32-281—32-285, 32-291—32-293
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09-761	8-19-09	2		10-3(a)
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		4		42-154(Intro.)
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		6	Added	Ch. 42, Art.IV, 42-401—42-406
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	14		Added	39-76
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09-858	9-16-09	3		44-120—44-135
09-867	9-23-09	2		44-82
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		7	Added	5-178
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		8		14-168(d intro.)
		9		14-168(d)(1)
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			as	7-56(a)(8)—(15)
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09-1043	11- 4-09	2	Added	Ch. 10, Art. IV, 10-151—10-159
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09-1050	11- 4-09	2		10-365(b), intro.)
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09-1112	11-10-09	2	Added	40-458(g)
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		10		26-6(a)
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			as	26-655(a)(5)—(8)
			Added	26-655(a)(9)
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		21		26-662(1)
		22		26-662(2)—(4), (6)
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		24		26-662(10)g.
		25	Added	26-662(11)
			Rnbd	26-662(11)
			as	26-662(12)
		26	Added	26-664(3)
			Rnbd	26-664(3)
			as	26-664(4)
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09-1238	12- 9-09	1		47-61(f)(3)
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		7		7-58(a)(8)
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		8	Added	42-83(b)(3)
			Rnbd	42-83(b)(3), (4)
			as	42-83(b)(4), (5)
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		5	Rnbd	2-438
			as	2-508
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		7	Added	2-506(b)
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			Rnbd	9-53(l),
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		19		6-112(a)
		20		6-117(b)
		21	Rpld	6-118(b)(2)
			Rnbd as	6-118(b)(3), (4) 6-118(b)(2), (3)
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		28		6-126(b)
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		31	Rpld	6-137(a)(6)
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		5		47-384(b)
2010-525	6-30-2010	2		4-12
2010-551	7- 7-2010	2		14-168(d)(3)
2010-556	7-14-2010	2		47-762(d)(9)
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			Rnbd	46-65(d)(7),(8)
			as	46-65(d)(6), (7)
		5	Rnbd	46-66(d)(part)
			as	46-66(e)
		6	Rpld	46-66(d)(3)
		7	Rpld	46-206
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2010-660	8-18-2010	2		Ch.32, Art. XII(note), 32-261—32-265, 32-271—32-277, 32-281—32-285, 32-291—32-293
2010-668	8-18-2010	2	Rpld	Ch. 2, Art. XI, Div. 8, §§ 2-406, 2-407
		3	Added	33-214(11)—(14)
			Rnbd	33-214(11)
			as	33-214(15)
2010-683	8-25-2010	2	Rpld	Ch. 26, Div. 2 26-41—36-51
		3	Rpld	12-5(7)
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2010-721	9-15-2010	2		28-81
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2010-754	9-29-2010	2		Ch. 5, Art. VI, Div. 3(tit.)
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		6	Added	5-186(a)
			Rnbd	5-186(a)—(d)
			as	5-186(b)—(e)
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		9		44-85(b)
2010-760	9-29-2010	2		47-164(4)
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2010-767	10- 6-2010	2		Correcting Ord. No. 2010-721, § 3
2010-803	10-13-2010	2	Added	Ch. 2, Art. XVII, §§ 2-600—2-604
		3	Rpld	2-54(13)
		4		2-56(b)
		5	Rpld	2-434(7)
			Rnbd	2-434(8)
			as	2-434(7)
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		7		15-46(a), (b)intro.
		8		15-83(d)
		9		34-50(a)
			Rpld	34-50(d)
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			as	34-50(d), (e)
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		31		33-275
2010-815	10-13-2010	2	Added	Ch. 10, Art. XVIII, §§ 10-701—10-713
2010-831	10-27-2010	2(Exh. A)		Ch. 40, Art. XIV, 40-331—40-337
2010-834	10-27-2010	2—4		1-10(c)
		5	Added	45-326(e)
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2010-846	11- 3-2010	2		2-37(a)
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2010-908	11-17-2010	2(Exh. A)		Ch. 43
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2010-911	12- 1-2010	2(Exh. A)	Added	Ch. 25, §§ 25-1—25-20 25-50—25-63 25-101—25-116
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		4	Rpld	45-231—45-246
2010-1001	12- 8-2010	2		14-172(e)
			Added	14-172(f)
2010-1016	12-15-2010	2		2-97, 2-125, 4-3(e), 4-16 5-29, 5-77(a)(1)—(3) 5-172, 6-88(a)(1), (2) 6-114, 6-121(a), 6-137(a)(1)a.1—3, 6-137(a)(1)b.1—3, 6-137(a)(3), (4), 6-138(1), 7-19(a), (b), 7-59(a), 7-108(a), 8-58(a), (c)—(e), 8-62, 8-83, 8-87(c), 8-88, 8-123(e), 8-126(c), 8-143(d), 8-158, 8-159(a), 9-58(c), 10-414(a), 11-15, 11-19(a), 11-62(a)—(c), 11-68(d)(3), (4), 18-74(b), 20-20(g), 20-25(f), 20-38(b)(1)a.—e., 20-38(b)(2), 20-39(c), 22-17, 26-160(1), (2), 26-182(b)(1), 26-265(1), (2), 26-345(a)—(c), 26-392(c), 26-443(a), 26-449(a), 26-606(b), 26-652(c), 27-4, 28-92(e), 28-93(c), 28-94, 28-95(b), 28-123(b)(1)a., b 28-126(b(, 28-254(b), 30-8(a)(2), 36-77, 46-68(a), 46-161(a), 46-211(a), 46-218, 46-232(a), 46-235(b), 46-236(a), 46-289(b), 46-336(a), 46-337(a), 46-394(a), 46-397(a)

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2010-1063	12-22-2010	2	Added	10-713(c)
			Rnbd as	10-713(c) 10-713(d)
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		10		18-21(g)(1)
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		4	Rpld	47-436
		5		47-440(a)(4)
		6	Added	47-453(c)
		7		47-542(a)
2011-221	3-23-2011	2		9-352
		3		9-403(a)(1), 9-503(a)(1), 9-603(a)(1)
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			Added	9-359(c)
2011-254	4- 6-2011	2	Added	Ch. 47, Art. XIV, 47-801—47-805, 47-821—47-824, 47-841—47-844, 47-861, 47-862
2011-284	4-20-2011	2		2-2, Rule 6
2011-304	4-27-2011	1	Rpld	Ch. 2, Art. XI, Div. 6, 2-396—2-401
2011-320	5- 4-2011	1		2-293(7)
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		5		14-145, Div. 11, Rule 11, Exh. A
		6, 7		15-16, 15-20(b), 15-21(b), 15-82(4)c., 15-82(5)g., (8)c., 15-83(a), (c), 15-84(tit.), 15-84(intro.), 15-85, 15-86(a), (b), 15-87(a), (d), 15-88(a), (c), (e), 15-89(a)—(c)(2), (e), (h), 15-92(b), 15-93(a), 15-93(c)—(e), 15-94(a)
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2011-378	5-18-2011	2		1-2
2011-389	5-18-2011	2		Ch. 10, Art. XIII(tit.) 10-531—10-539
2011-391	6- 1-2011	2		Ch. 12(tit.), 12-1—12-7
		3	Rpld	40-314
2011-392	6- 1-2011	2	Added	Ch. 10, Art. XIX, 10-731—10-737

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2011-489	6-22-2011	2		1-10(c)
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		5	Added	9-58(e)
			Rnbd	9-58(e)—9-58(i)
			as	9-58(f)—9-58(j)
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2011-654	8- 3-2011	2		16-67(a)
2011-655	8- 3-2011	2		28-46(d)
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		4		28-46(f)
2011-672	8-10-2011	2		Ch. 32, Art. XII(note), 32-261—32-265, 32-271—32-277, 32-281—32-285, 32-291—32-293
2011-696	8-10-2011	3, 4	Added	40-361(6)
2011-697	8-10-2011	1		1-2
		2	Added	Ch 2, Art. XVIII, §§ 2-621—2-625
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		10	Added	10-332(m)
		11	Added	10-344(f)
2011-748	8-24-2011	1	Rpld	Ch. 45, Art. XIX, 45-481—45-487
2011-763	8-31-2011	2		46-289(a)
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		4		46-290(b)
2011-766	8-31-2011	2	Added	15-175—15-182
2011-779	9- 7-2011	2		5-171(e)
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2011-792	9-14-2011	2	Added	13-7
2011-797	9-14-2011	2	Added	1-16
2011-862	10-12-2011	2(Exh. A)		Ch. 23, 23-1—23-17, 23-31—23-40, 23-56—23-61, 23-76, 23-77, 23-91—23-117, 23-131—23-133, 23-146—23-163, 23-176—23-183, 23-196—23-206
2011-874	10-12-2011	2(Exh. A)		Ch.30, 30-1—30-18
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2011-1165	12-14-2011	2	Added	Ch. 32, Art. XIII, 32-300, 32-301
2011-1167	12-14-2011	3		44-120—44-135
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			Added	26-606(b)(4)
		29	Added	26-607
		30		26-616(b)
		31		26-617(b)
		32	Added	26-617(e)
		33	Added	26-624
		34		26-644(b)(5), (6)
			Added	26-644(b)(7)
				4-3(e)
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2012-71	1-25-2012	2		Ch. 2, Art. XI,

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		2		46-31(a)(1)—(9),
			Rpld	46-31(a)(9)
			Rnbd	46-31(a)(10)
			as	46-31(a)(9)
		5	Added	46-31(a)(10), (11)
2012-236	3-21-2012	2		3-3(a),
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2012-269	4- 4-2012	2	Added	Ch. 20, Art. V,
				20-251—20-257
2012-396	5- 2-2012	2	Added	4-13(c)(25)
2012-522	5-30-2012	2		40-281
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2012-589	6-20-2012	13		11-77
2012-597	6-26-2012	2	Added	Xh. 28, Art. XI,
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2012-717	8-22-2012	2		Ch. 32, Art. XII(note)
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2012-772	8-29-2012	2(Exh. A)		2-2(Rule 6)
2012-773	8-29-2012	2	Rpld	18-1(1)—(3)
			Added	18-1(1), (2)
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		4	Added	18-3(a)(5)
			Rnbd	18-3(a)(5)—(a)(8)
			as	18-3(a)(6)—(a)(9)
			Added	18-3(a)(9)
			Rnbd	18-3(a)(9)
			as	18-3(a)(10
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		11	Rpld	Ch. 18, Art. IV,
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		15	Rpld	18-51
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2012-850	9-26-2012	2	Added	Ch. 2, Art. XIX,
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		6	Added	7-6, 7-7,
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		14		7-20(a), (b), (d),
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		20		1-15(a)(7), (8)
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		3	Added	1-10(a)(6)
		4		1-15(a)
		5		5-173(a)
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		8	Added	8-52(a)(11)
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2013-281	4- 3-2013	5	Added	Ch. 47, Art. XV, 47-881—47-885, 47-891—47-896, 47-901—47-904
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		20	Added	Ch. 10, Art. IX, Div. 8, 10-411, 10-412
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		8	Rpld	2-504(4), (5), (13)
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			as	2-504(4)—(14)
		9		2-506(a)
		10	Rpld	Ch. 2, Art. XVI, Div. 2, 2-521—2-523
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		15		20-38(b)(5)
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2013-1081	11-20-2013	2	Added	1-10(b)(8)
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2013-1163	12-18-2013	2	Added	Ch. 28, Art. XV, §§ 28-481—28-483, 28-491—28-495, 28-501—28-504
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2014-914	10- 8-2014	2	Added	46-9.4
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		4	Rpld	Ch. 21, Art. VII, 21-181—21-185, 21-194—21-209
2015-1086	11- 4-2015	2	Added	Ch. 21, Art. X, 21-301—21-304
2015-1129	11-13-2015	7, 8(Exh. A)		Ch. 2, Art. XIV, 2-451—2-456 Ch. 17, 15-17

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		11		20-19(f)(3)
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		14		20-21.1(b)(2), (3)
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		18		20-21.1(b)(10)c.[3]
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		20		20-21.1(b)(13),
			Added	20-21.1(b)(14)
		21		20-21.2(a)(1), (2)
		22		20-21.2(b)(1)
		23		20-21.2(c)(4)a.[3]
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		25		20-21.2(d)(9)a.
		26		20-21.3(b)(1)—(3)
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		28		20-21.4(b)
		29		20-21.4(c)(1)Intro.
		30		20-21.4(c)(1)a.[2]
		31		20-21.4(c)(1)b.[2]
		32		20-21.4(c)(1)c.[1]
		33	Rnbd as	20-21.4(c)(2)para. 20-21.4(c)(3)
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		35		20-21.4(h)—(k)
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		37		20-21.4(l)(2)
		38		20-21.4, Tables 20-21.4-1— 20-21.4-3
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		42		20-21.7(a)(3)
			Added	20-21.7(4)
		43		20-21.7(b)
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		45		20-21.10(a)(9)
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		48		20-21.11(a)(3)
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		51		20-21.11(c)(4)
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			Added	20-25(g)
		66	Rpld	20-26(a)
			Rnbd	20-26(b)—(d)
			as	20-26(a)—(c)
			Added	20-26(d)
		67	Added	20-38(b)(1b)
		68		20-38(b)(4), (5)
			Added	20-38(e)
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2015-1302	12-16-2015	2	Added	Ch. 25, Art. IV, 21-151—25-158
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		4		20-22(a)
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		6		20-22(d)(7)e.
		7		20-22(e)(1)b.
		8		20-22(f)(4)a.
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2016-174	3- 9-2016	2		25-151
2016-252	3-30-2016	3		Ch. 44, Art. IV, 44-120—44-137
2016-369	5-11-2016	2		26-83
2016-408	5-25-2016	2		45-391—45-396
2016-456	6-15-2016	2		8-52(a)(10)
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2016-504	6-22-2016	2	Rpld	47-50(b)
			Rnbd as	47-50(c), (d) 47-50(b), (c)
2016-528	6-29-2016	2		18-31
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2016-562	7-20-2016	2		Ch. 28, Art. 5, 28-171—28-175
		2a		28-171
2016-606	8-10-2016	2		Ch. 32(note), 32-261—32-265, 32-271—2-273, 32-275—32-277, 32-281—32-285, 32-291—32-293
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		8	Added	9-62
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		3	Added	25-156.1
2016-730	9-28-2016	2		25-151(1)
2016-736	10- 5-2016	2	Added	46-4.1
		3	Added	46-5(d)
		4		46-6(tit.)
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2016-794	10-19-2016	4	Added	40-351(7)
2016-848	11- 9-2016	2	Rpld	33-266(c)
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			Added	1-10(b)(9)
		9		1-10(c)
			Added	1-10(c)(2)
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		5	Added	26-471(b)(4)
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			as	26-471(b)(5), (6)
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			Rnbd	26-503(4)
			as	26-503(3)
		11	Added	26-504
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2017-256	4-12-2017	2	Added	40-27
2017-261	4-12-2017	2	Added	Ch.21, Art. III, 21-61-21-64
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2017-500	7- 5-2017	2		8-17(a), (b)
2017-588	8- 8-2017	2		Ch. 32, Art. XII
2017-655	8-23-2017	4	Added	40-351(9)
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		6		2-385
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2018-227	3-22-2018	2(Exh. A)		Ch. 28, Art. IV, 28-151—28-165
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		5		2-303(e)(1)
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2018-375	5- 2-2018	2		39-62(a)(2)
			Added	39-62(a)(3)—(5)
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2018-421	5-23-2018	2	Added	26-99
2018-587	7-25-2018	2	Rpld	32-282(c)
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			as	28-91(c), (d)
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2019-143	3-20-2019	1		44-5(h)
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		6	Rpld	11-59(a)(11)
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		17	Added	11-71(f)
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			Added	46-11.1
		10	Added	46.11.3(c)
			Rnbd	46-11.3(c)
			as	46-11.3(d)
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		50	Rpld	46-544(c)(6)
			Rnbd	46-544(c)(7)
			as	46-544(c)(6)
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		6	Added	28-176
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		3	Added	4-13(e)
			Rnbd	4-13(c)
			as	4-13(d)
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		26	Rpld	26-273(d)
			Rnbd	26-273(e)—(i)
			as	26-273(d)—(h)
		27		Ch. 26, Art. XI, Div. 4(tit.)
		28		26-742(b)
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			Added	Ch. 28, Art. VI, Div. 1(tit.)
			Added	Ch. 28, Art. VI, Div. 2, 28-211-28-216
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2020-348	4-29-2020	6		26714(a)-(d), (f)
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2020-893	10-14-2020	2	Added	26-100
2020-911	10-21-2020	2	Added	Ch. 2, Art. XVI, Div. 2,2-522-2-527
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2021-350	5- 5-2021	2	Added	Ch. 28, Art. XIX, 28-631—28-634, 28-641—28-644, 28-651, 28-652, 28-656, 28-657
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2021-388	5-19-2021	6	Added	47-384(d)
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2021-456	6- 2-2021	2	Added	Ch.33, Art. X, 33-51—33-506
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		8		8-126(b-1), (e), (g)
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2022-694	9-14-2022	2	Added	Ch. 2, Art. XI, Div. 6, 2-391—2-397
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		3	Added	1-15(a)(13)
		4	Added	Ch. 28, Art. XXII 28-681—28-710

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		5	Added	45-368(a)(5)
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2024-655	9-11-2024	4	Added	40-351(11)
2024-853	11- 6-2024	2		2-2, Rule 8.a
2024-856	11-14-2024	4	Added	40-351(12)
2024-880	11-20-2024	2		2-277
2025-322	4-16-2025	2(Exh. A)	Added	Ch. 28, Art. XXIII, 28-721—28-723, 28-731—28-736, 28-741—28-743

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		17(Exh. A)	Added	Ch. 15, Art. XII, 15-183—15-192
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2025-604	7- 9-2025	2		2-2, Rule 1(a)
		3		2-2, Rule 8(a) intro.
2025-605	7-16-2025	2		40-352(a), (b)
		3	Added	40-354
2025-619	7-16-2025	2		5-46
		3		5-80
2025-722	8-27-2025	2		4-1
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		7		4-9(a)
		8		4-9(b)(2)a.
		9		4-10
		10		4-15
		11	Added	4-20
2025-742	8-27-2025	2		Ch. 3, Art. II(tit.)
		3		3-1
		4	Added	3-15
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2025-743	8-27-2025	2	Rpld	20-1, 20-19(d), (e), (f), 20-21 20-21.1—20-21.28, 20-22—20-24, 20-42, 20-44, 20-52, 20-53, 20-56, 20-57, 20-59—20-61, 20-63—20-65, 20-162—20-164, 20-174—20-178
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		13	Rpld	20-41(c), (d), (k)
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			as	Ch. 20, Art. III, Div. 2
		20		20-187(b)
		21		20-189(1), (3), (9)
		22		20-190(9), (10)
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		25, 26		20-200
		27	Rpld	20-204(h), (i)
			Rnbd	20-204(j)
			as	20-204(h)
		28	Rpld	20-207(h), (i), (k)
			Rnbd	20-207(j)
			as	20-207(h)
		29		20-211(b)
		30		20-254(2)b.
2025-755	8-27-2025	2	Added	45-111
2025-845	10- 8-2025	2		2-302
		3		33-313
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2025-960	11-12-2025	4	Added	40-351(13)
		5		40-352(a)(1)
		6		40-352(b)(1)
2025-971	11-19-2025	2		26-102(b)
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		6		45-302
		7		Ch. 45, Art. XIV(tit.)
		8	Added	45-341
		9	Added	45-342
		10	Added	45-343
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		3		2-2(Rule 8(a)
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		3		34-41(b)
		4		34-41(c)
		5		34-41(d)
2026-0388	5- 6-2026	2	Added	Ch. 10, Art. IV, Div. 1(tit.)
		3(Exh. A)	Added	Ch. 10, Art. IV, Div. 2, 10-170—10-179
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		7		10-159
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MEMORANDUM HISTORY TABLE

The table below has been created to maintain a detailed history of changes made to ordinances pursuant to Ordinance No. 2011-797, which is located as Section 1-16 of this Code of Ordinances.

Ordinance No. 2011-797 was adopted authorizing the City Attorney to direct the publisher of the Code to make non-substantive amendments, correct typographical errors and effect similar changes without the necessity of further action of the City Council.

Memorandum Date	Ordinance Amended	Description of Amendment
10-26-2011	2011-392	Renumbers the sections of Ch. 10, Article XIX from 10-1001—10-1007 to 10-731—10-737
	2011-108	Changing the word "on" to "one" of Section 10-363
	2011-655	Renumbers the reference to "Section 26-48" in sections 2, 3 and 4 of said ordinance to "Section 28-46".
2-22-2012	2011-1201	Section 2 of Ord. No. 2011-1201 replaced the term Article IV of Chapter 46 with the term "Section 46-191. The intent of this revision was to amend only Section 46-191, and not to replace the entirety of Article IV of Chapter 46 with the proposed amendments to Section 46-191.
	2011-1086	Former Section 3 was deleted, but the subsequent sections were not renumbered. This correction renumbers Sections 4 through 13 as Sections 3 through 12 and makes corresponding changes to citations to those sections.
	2011-1165	A subsection letter was accidentially skipped; this is corrected by redesignating subsections (k) through (o) of Section 32-301 of the City Code as subsections (j) through (n).
4-19-2012	2011-1175	Said ordinance accidentally repealed subsection (g) from Section 26-157. Said memorandum adds back Section 26-157(g).
9-12-2012		Section 2-263(a) is amended to update the references to State Law.
		Section 9-782(a)(3) is amended to correct the lettering of subitems so that there are no longer two subsections designated as "c.".
		Section 21-225 is amended to conform subsection (f) to changes in the Texas Health and Safety Code.
7-17-2013	2013-248	Mistakenly add a line of text to Item "7 to Section 15-17."7. Said line of text deleted.
1-23-2014	2013-455	Correct Sections 2 and 3 of said ordinance; intent of ordinance was to amend § 14-142, not § 14-140. If not corrected, the errors described above will lead to confusion, mislead the user of the Code and render the attempt to update Section 14-142 ineffective.
	2013-1081	Over the course of multiple drafts of the Wage Theft Ordinance, a new provision was inserted into Section 15-63 and numbered subsection (b), re-numbering the existing subsection (b) as subsection (c). Prior to such change, subsection (b) made a reference to "the preceding subsection" meaning subsection (a) of that section and the criteria listed therein. The insertion of the "new" subsection (b) made a reference in the current subsection (c) erroneous as it was always intended to refer to the criteria in subsection (a). Without the proposed correction, the reference to "preceding subsection" now in subsection (c) would be a reference to subsection (b), not subsection (a), as intended.
	2013-1163	Correct Section 2 of Ordinance No. 2013-1163, amending Chapter 28 of the Code to add a new Article XV relating to consumer protection and regulation of credit access businesses (Pay Day Loan Ordinance), by amending the last sentence of subsection (d) of Section 28-502 to read as follows: "An extension of consumer credit that provides for repayment in installments many not be refinanced or renewed." The error is a typo and the correction proposed above will ensure that the original intent of the ordinance is achieved in this regard.

Memorandum Date	Ordinance Amended	Description of Amendment
1-28-2015	2014-914	1. Amendments were to include a correction to item (5) of Section 46-331(b) intended to make the provision applicable to jitneys, rather than sightseeing or charter services. The amendment in Section 9 of the adopting ordinance was written incorrectly. The proposed change will preserve the intent of the Code as articulated above, and per the corresponding redline.
		2. Subsection (c) of Section 46-6 contains a typographical error. The first sentence of subsection (c) incorrectly identifies Section 1-10(a) as the Code provision that relates to vehicles for hire, rather than Section 1-10, because there are related provisions in both subsections (b) and (c). If the typographical error is not corrected, readers of the Code may be confused when they attempt to locate the information pertaining to certain requirements for vehicle for hire licenses, permits and certificate of registration. The proposed change will preserve the original intent of the Code by referencing the correct Code provision.
10-15-2015		1. The definition of solid waste in Section 39-1 of the Code of Ordinances includes a reference to a definition in the Texas Administrative Code. The definition states that it includes "any other type of solid waste as defined in Section 330.2 of the Texas Administrative Code and any amendments thereto." The definition cited is now found in Texas Administrative Code Title 30, § 330.3.
		Also in Section 39-1, the definition of *sponsorship agreement* is out of alphabetical order, so it will be moved to the appropriate position.
		2. The definition of commission in Article XIII of Chapter 45 of the Code of Ordinances refers to the State Highway and Public Transportation Commission, which was renamed the Texas Transportation Commission in 1991.
11-30-2015	2014-482	Section 1-9(a) was restored to its previous version.
11-30-2015	2009-1049	Section 10-215(b)(4), the word "except" was inadvertently deleted, in addition, the brackets should have been removed from the word "at". Brackets removed and the word "except" inserted.
1-12-2016	2015-1202	Removed the text "subitem b" from section 20-21.11(a)(3)b. During drafting, the substance of the highlighted text in subitem b. was moved to the paragraph below subitem d., but this was accidently retained.
1-27-2016	2015-1103	Duplicate subsection (c) of section 9-334. Renumbered the second subsection (c) as subsection (d) and subsequent subsections renumbered.
2- 3-2016	2015-1300	In December 2015, City Council passed Ord. No. 2015-1300, relating to civil service and employment. During drafting, the titles for Article II and Divisions 2 and 15 were accidentally deleted. Said titles have been inserted to read as they read before the passage of said ordinance.
1- 5-2017	2015-1300	Section 14-183 was amended to delete a reserved subsection, but a reference in subsection (a)(12) was not changed to account for the deleted subsection. To correct the inaccurate reference and to delete certain extraneous words and punctuation § 14-183 was revised to read as set out.
7- 8-2021	2021-350	A section referenced in Subsection (a)(4) of Section 28-641 was not changed to account for a non-existent subsection.
4-22-2025	2025-723	The phrase "or suspension" was inadvertently included in Subsection (b) of Section 28-723 of Ordinance No. 2015-322. The phrase is not relevant to the Ordinance and shall be removed from Subsection (b) of Section 28-723.
		Subsection (b) of Section 28-734 of Ordinance No. 2025-322 was inadvertently included in that section of the Ordinance and is not relevant to the overall subject of that section (Notice to platforms to delist short-term rentals) and shall be deleted from that Section and redesignated as Subsection (e) of Section 28-733. Furthermore, the Subsection (a) heading in Section 28-734 needs to be deleted so that the remaining paragraph/provision under Section 28-734 stands alone.

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STATUTORY REFERENCE TABLE

This table shows the location within this Charter and Code, either in the text or notes following the text, or references to the state law or related matters.

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